HISTORY

The History of England in Three Volumes, Vol.III.

Edward Farr and E. H. Nolan

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[Illustration: frontispiece.jpg QUEEN VICTORIA]

[Illustration: titlepage12.jpg VIGNETTE]

THE HISTORY OF ENGLAND

Volume III.

BY DAVID HUME, ESQ.

1688

London: James S. Virtue, City Road and Ivy Lane New York: 26 John Street 1860

In Three Volumes:

VOLUME ONE: The History Of England From The Invasion Of Julius Cæsar To The End Of The Reign Of James The Second..... By David Hume, Esq.

VOLUME TWO: Continued from the Reign of William and Mary to the Death of George II..... by Tobias Smollett.

VOLUME THREE: From the Accession of George III. to the Twenty-Third Year of the Reign of Queen Victoria..... by E. Farr and E.H. Nolan.

VOLUME THREE

CONTINUATION

OF

THE HISTORY OF ENGLAND,

By E. Farr and E. H. Nolan

[Illustration: 3–001–george3.jpg GEORGE III.]

{GEORGE III. 1760–1765}

GEORGE III.

CHAPTER I.

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Impeachment of Wilkes..... Changes in the Cabinet..... Meeting of Parliament, and further proceedings against Wilkes..... Proposition to tax the American Colonies..... Opposition of the Americans..... War with the North American Indians..... Domestic Occurrences

{1760}

ACCESSION OF GEORGE III.

Few monarchs ever ascended a throne under more auspicious circumstances than George III. The sources of national wealth and prosperity were daily becoming developed, and the British arms were everywhere victorious. So extensive were their conquests, indeed, that it may be said, the sun rose and set, at this date, within the limits of the British dominions.

Prince George, who was the eldest son of the late Frederick, Prince of Wales, was riding on horseback in the neighbourhood of Kew palace, with his groom of the stole, Lord Bute, when news was brought him that his grandfather was dead. This intelligence was confirmed soon after by the arrival of Mr. Pitt, the head of the government, and they repaired together to Kew. On the next morning George went up to St. James's, where Pitt waited upon him, and presented the sketch of an address to be pronounced at the meeting of the privy council. Pitt, however, was doomed to find a rival where he thought to have found a friend. He was told by his majesty, that an address had already been prepared, which convinced him that Bute, on whose favour he had reckoned, would not be contented with a subordinate place in the new government, but would aspire to the highest offices in the state. In the course of the day, October 26th, George was proclaimed king with the usual solemnities.

The accession of George, notwithstanding, did not involve any immediate change in the existing administration. The Earl of Bute, together with Prince Edward, Duke of York, were admitted into the privy council, but it was given out that his majesty was satisfied, and even charmed, with the existing cabinet, and that he would make no changes, with the exception of a few in the household and in the minor offices. One of the first acts of George III., was a proclamation "for the encouragement of piety and virtue, and for preventing and punishing of vice, profaneness, and immorality." This was naturally looked upon as a token of his majesty's virtue and devotion, which view was borne out by his after character; for although the proclamation may be considered in the light of a dead letter as regards actual operation, it was enforced, or recommended, by his example; and example hath a louder tongue either than precept, proclamations, or laws. From the beginning to the close of his long reign, George III. manifested a decent, moral, and religious life, which doubtless had very beneficial effects upon society at large.

On the accession of the new king, parliament was prorogued, first to the thirteenth, and afterwards to the eighteenth, of November. In the meantime, public attention was engaged by the equipment of a large squadron of men-of-war and transports at Portsmouth, and speculations were rife as to the policy of the monarch—whether it would be favourable to war or to peace. All classes of society, however, agreed in anticipating the happiest results from his rule, since he had been

born and bred among them, and was well acquainted with the language, manners, laws, and institutions of the people over whom he presided. Loyal and dutiful addresses, expressing such sentiments, were presented to the young monarch by the city of London, the two universities, and from various bodies of people, to all which he returned sententious but suitable replies, declaring his fixed resolve to respect their rights and conciliate their esteem. A letter was addressed to him by the venerable Bishop of London, Dr. Sherlock, as a parting benediction, in which he gave him the following wise council:—"You, sir," he writes, "are the person whom the people ardently desire; which affection of theirs is happily returned by your majesty's declared concern for their prosperity: and let nothing disturb this mutual consent; let there be but one contest, whether the king loves the people best, or the people him; and may it be a long, a very long, contest; may it never be decided, but let it remain doubtful; and may the paternal affection on the one side, and the filial obedience on the other, he had in perpetual remembrance."

MEETING OF PARLIAMENT ETC.

The new king met parliament for the first time on the eighteenth of November. He opened the session with a speech, announcing not only the state of public and domestic affairs, but also the general principles by which he intended to rule. One clause in his speech was very gratifying to the people: "Born and educated in this country," he observed, "I glory in the name of Briton." Having uttered this memorable sentence, he said it would be the happiness of his life to promote the happiness and interests of his loyal and affectionate people; and that their civil and religious rights were equally as dear to him as the valuable prerogatives of his crown. He then declared, that on his accession to the throne of his ancestors he found the kingdom in a flourishing and glorious state; victorious and happy; although engaged in a necessary war, which, in the language of the late reign, he designated, "a war for the Protestant interest." In this speech he neither spoke of peace nor negociation, but asked the assistance of parliament to prosecute this war with vigour. Finally, addressing the Commons on the subject of supplies, he concluded his speech thus:—"The eyes of all Europe are on you; from your resolutions the Protestant interest hopes for protection, as well as all our friends for the preservation of their independency; and our enemies fear the final disappointment of their ambitious and destructive views: let these hopes and fears be confirmed and augmented, by the vigour, unanimity, and despatch of our proceedings. In this expectation I am the more encouraged, by a pleasing circumstance, which I consider one of the most auspicious omens of my reign—that happy extinction of divisions, and that union and good harmony, which continue to prevail amongst my subjects, afford me the most agreeable prospects; the natural disposition and wish of my heart are to cement and promote them; and I promise myself, that nothing will arise on your part to interrupt or disturb a situation so essential to the true and lasting felicity of this great people." This speech was warmly responded to by addresses from both houses of parliament; and the supplies for the ensuing year, amounting to £19,616,119, were cheerfully voted, while the civil list was fixed at £809,000; the king, on his part, consenting to such a disposition of the hereditary revenues of the crown, as might best promote the interests of the nation.

War, therefore, was to be continued, and Mr. Pitt and his colleagues seemed to be confirmed in office: yet at this very moment the train was laying for their expulsion. Earl Bute was anxious to become secretary of state, and he was busily engaged in a correspondence with the noted intriguer, Bubb Doddington. A few days after the meeting of parliament his lordship declared to Doddington, that Lord Holderness "was ready at his desire to quarrel with his fellow ministers, and go to the king and throw up with seeming-anger, and then he (Bute) might come in without seeming to displace anybody." This expedient, however, did not please Doddington, and Bute paid deference to his opinion. Still the two friends took counsel together on this important affair. In a letter from Doddington to Bute, which was written in December, he advises "that nothing be done that can be justly imputed to precipitation; nothing delayed that can be imputed to fear." He adds: "Remember, my noble and generous friend, that to recover monarchy from the inveterate usurpation of oligarchy, is a point too arduous and important to be achieved without much difficulty, and some degree of danger; though none but what attentive moderation and unalterable firmness will certainly surmount."

In his career of ambition, Bute, who was "better fitted to perform Lothario on the stage," than to act as secretary of state, paid small regard to danger, but kept his eye fixed steadily on the point he had in view. In January, he told Doddington that "Mr. Pitt meditated a retreat;" and in the same month Doddington writes to him—"If the intelligence they bring me be true, Mr. Pitt goes down fast in the city, and faster at this end of the town: they add, you rise daily. This may not be true; but if he sinks, you will observe that his system sinks with him, and that there is nothing to replace it but recalling the troops and leaving Hanover in deposit." Again, on the 6th of February, Lord Bute declared, that it was easy to make the Duke of Newcastle resign, but at the same time he expressed a doubt as to the expediency of beginning in that quarter. Doddington replied, that he saw no objection to this step; and that if Bute thought there was, he might put it into hands that would resign it to him when he thought proper to take it. But Bute was not disposed to try the duke too much, nor to risk too bold a leap at once: so all ill humours were concealed under a fair surface.

Had Earl Bute taken any decisive step thus early in the reign of the new king, it would probably have exposed him to public derision and scorn. At this time the old system seemed to please everybody; and among the supplies voted by the House of Commons, none were more freely granted than the continental subsidies, and especially that of £670,000 to the King of Prussia. His victory at Torgau, which subjected all Saxony—Dresden excepted—to his power, was made known in England just before the meeting of parliament, and it had the effect of raising him high in the public favour of the people of England. Nor was it less advantageous to him on the Continent. His victory, with its results, indeed, were a full compensation to him for the previous losses he had sustained during the campaign. Laudohn raised the siege of Cosel, and evacuated Silesia; the Russians raised that of Colburg, and retreated into Poland; and the Swedes were driven out of Western Pomerania. In the same spirit of gratitude, the parliament granted £200,000 to our colonies in America, for the expenses they had incurred, and the efforts they had made in the present war—a war which laid some of the groundworks of the independence which a few years later

was claimed by those colonies.

JUDGES MADE INDEPENDENT OF THE CROWN.

By an act passed in the year 1701, under the reign of William III., the commissions of the judges were continued _quamdiu bené se gesserint_; or the power of displacing them was taken from the crown, and their continuance in office was made solely dependent on the faithful discharge of their duties, so that it might be lawful to remove them on the address of both houses to the king. Still, at the demise of the crown, their offices were vacated, and George II. had even refused to renew the commission of a judge who had given him personal offence. Towards the close of this session, his present majesty, in a speech from the throne, recommended an important improvement in this matter, which greatly increased his popularity. He declared his wish to render the bench still more independent of the crown, and the administration of justice still more impartial; and he recommended that provisions should be made for the continuance of their commissions and salaries, without any reference to the death of one king, or the accession of his successor. In compliance with this expressed wish, a bill was framed for rendering the judges thus independent, which was carried through both houses. It received the royal assent on the 19th of March, on which day his majesty put an end to the session.

CHANGES IN THE CABINET.

Before this event took place, a certain party in the state began to think that circumstances would authorise them to commence a gradual change of ministers, and of the policy of the nation. In this his majesty seems to have coincided, for on the same day that he closed the session, Mr. Legge, who was co-partner with Mr. Pitt in popularity, was unceremoniously dismissed from the office of chancellor of the exchequer, and Sir Francis Dashwood nominated his successor. On the same day, also, Lord Holderness having secured a pecuniary indemnification, with the reversion of the wardenship of the cinque ports, resigned the office of secretary of state in favour of Lord Bute. It was said that the king “was tired of having two secretaries, of which one (Pitt) _would_ do nothing, and the other (Holderness) _could_ do nothing; and that he would have a secretary who both could and would act.” At the same time, Lord Halifax was advanced from the board of trade to be Lord-lieutenant of Ireland, and was replaced by Lord Barrington; and the Duke of Richmond, displeased by a military promotion injurious to his brother, resigned his post as lord of the bedchamber. Other changes, of minor importance, took place—such as the introduction of several Tories into the offices of the court, and there was a considerable addition made to the peerage. These changes were, doubtless, unpalatable to Mr. Pitt; but Horace Walpole says that he was somewhat softened by the offer of the place of cofferer for his brother-in-law, James Grenville. At all events Mr. Pitt continued in office, and Earl Bute consented to leave the management of foreign affairs in his hands; but at the same time, both Bute and his majesty gave him to understand that an end _must_ be put to the war.

THE OPERATIONS OF THE WAR.

Since the accession of George III., the events of the war had been various. Although Frederick the Great had driven the Russians and Austrians from his capital, they were still within his own territory; while the French were on the side of the Rhine, and the Swedes continued to threaten invasions. Such was his situation when he heard that George II, was dead; that his successor was desirous of peace; that some of his advisers were projecting a separate treaty with France; and that it was probable that the English subsidies would soon be discontinued. This intelligence in some degree was confirmed by the tardiness with which the subsidy, so readily granted by the parliament in December, was paid into his treasury. Nothing daunted, however, Frederick planned fresh campaigns, and remonstrated with England; and, as an effect of the bold front he put upon his affairs, he had the satisfaction of learning, before he went into winter-quarters, that the Russians had retired beyond the Vistula, and that the Austrians and Swedes had departed out of Brandenburg, Silesia, and Pomerania. Still his situation was a critical one. His losses in men had been great, his coffers were empty, and his recruiting was therefore difficult: he looked forward to the campaign of 1761 with doubt and anxiety.

Contrary to the general rules of war, this campaign opened in the very depth of the winter. Contrasting the strong constitutions of his troops with the less hardy character of his opponents, Prince Ferdinand resolved to take them thus by surprise. Accordingly, early in February, by a sudden attack, he drove the French out of their quarters near Cassel, and they were only saved from utter destruction, by the defiles, and other difficulties of the country, which favoured their retreat. Almost simultaneously with this achievement, the Prussian general, Sybourg, effected a junction with the Hanoverian general, Sporken, and took three thousand French prisoners. Subsequently, these generals defeated the troops of the empire under General Clefeld; and Prince Ferdinand followed up these advantages by laying siege to Cassel, Marbourg, and Ziegenhayn. He was ably seconded in his operations by the Marquis of Granby, but he failed in capturing these places, and was compelled to retire into the electorate of Hanover. The retreat of Ferdinand took place in April, and in the same month the hereditary Prince of Brunswick was defeated by the French under Broglie, near Frankfort.

At this time, Frederick had certain information that the English were negociating with the French. This information appears to have paralysed his efforts, for preparations were not recommenced before June. On their part the French, also, were inactive till that time, when Broglie, being joined by the Prince of Soubise with large reinforcements, endeavoured to drive Prince Ferdinand and the combined army of English and Hanoverians from their entrenchments at Hohenower. On two several days Broglie made a fierce attack upon his posts, chiefly directing his murderous fire against that commanded by Lord Granby; but on the second day the French gave way, and made a precipitate retreat, leaving behind them several pieces of cannon, with five thousand of their comrades sleeping the sleep of death. Their non-success produced mutual recriminations between Broglie and Soubise, who had never perfectly agreed, and they resolved to separate: Broglie crossed the Weser, and threatened to fall upon Hanover, while Soubise crossed the Lippe, as if with the intention of laying siege to Munster.

The division of the French army caused a corresponding division in that of Prince Ferdinand; for whilst he marched with one half to watch the operations of Broglie, the hereditary Prince of Brunswick marched with the other half to check the career of Soubise. The skill and vigour of Ferdinand prevented Broglie from making any important conquests, though he could not protect the country from his ravages. Perceiving, indeed, that he could not check the onward march of his enemy, Ferdinand turned aside into Hesse, and cut off all the communications of the French in that country, destroying their magazines and menacing their forts, which, as he foresaw, had the effect of alarming Broglie, and causing him to retreat out of Hanover. In the meantime, the hereditary Prince of Brunswick had checked the career of Soubise, and destroyed many of his magazines; and soon after the French went into winter quarters—Soubise on the Lower Rhine, and Broglie at Cassel.

Frederick had taken the field in the month of April, and had marched into Silesia, where the fortress of Schweidnitz was threatened by the Austrian general, Laudon. On his approach, Laudon retreated into Bohemia, where he was joined by fresh columns of Russians under Marshal Butterlin. At the same time another Russian horde, under Romanzow, re-occupied Pomerania. The Austrian and Russian generals conceived that they could hem in Frederick, and prevent his escape; but aware of his danger, the skilful monarch threw himself into his fortified camp of Buntzelwitz, from behind the strong ramparts of which he laughed his enemies to scorn. A blockade was attempted, but the country, wasted by long wars, had become like a wilderness, and afforded no food either for man or horse; while their provision-waggons, 5000 in number, had all been taken by a flying column of Prussians, under General Platen, who had also destroyed three of the largest magazines which the Russians had established on the confines of Poland. Famine stared them in the face, and breaking up their blockade, Butterlin marched into Pomerania, and Laudon to an entrenched camp, near Fribourg. Thus relieved, Frederick marched towards Upper Silesia, which proved to be an unfortunate movement; for Laudon, taking advantage of it, rushed from his entrenched camp, made an assault by night upon Schweidnitz, which lie took by storm, and then took up his winter-quarters in Silesia. About the same time the Russians, assisted by the Swedes, took Colberg, which enabled them to winter in Pomerania and Brandenburg.

In the meantime the arms of the English had, for the most part, been successfully employed. Pondicherry, the capital settlement of the French in, the East Indies, and their last stronghold in that country, surrendered at discretion to Colonel Coote, after the garrison and inhabitants had been reduced to the necessity of feeding on the flesh of camels and elephants, and even upon dogs and vermin. In the West Indies, also, Lord Rollo and Sir James Douglas reduced the island of Dominica, which, contrary to treaty, had been fortified by the French. A less important conquest was made on the coast of Brittany. A secret expedition, which had been for some time in preparation, suddenly sailed from Spithead, and under the command of Commodore Kepple, with troops on board under General Hodgson, took its course across the Channel. Great things were expected as the result of this expedition, but it only enacted the old story of “The mountain in labour.” The point against which this force was directed was the sterile rock of Bellisle, which, at the expense of two thousand lives, was captured.

Thus disappointed, the people complained of the obstinacy of Pitt, and asked, sarcastically, what could be done with it? Nevertheless, if it was no use to England, it was a place of importance to France, as commanding a large extent of coast, and affording a convenient receptacle to privateers, whence it was insisted on as a valuable article of exchange, when peace was concluded between the two nations.

THE RESIGNATION OF MR. PITT.

At this time France was rapidly sinking under the efforts made to sustain war. Many of her colonies were conquered, her navy was ruined, and her finances exhausted, while the people were impoverished and discontented. Under these circumstances the king wished for repose and peace, and in this wish, Sweden, Poland, and even Russia were ready to join. Austria alone, whose empress-queen was bent on the recovery of Silesia, and the overthrow of its conqueror Frederick, was desirous of prolonging hostilities.

This wish of the king of France—which was also the wish of his people—seemed to be favoured by circumstances in England. The influence of Pitt was daily growing weaker, and Bute was fast gaining paramount ascendancy. The French ministers, therefore, flattered themselves that there would be no great difficulty in negociating; especially as they were ready and willing to make some sacrifices, in order to obtain peace. Accordingly an interchange of memorials was commenced, and in the month of July Mr. Stanley was dispatched to Paris, while the Count de Bussy came over to London, for the purpose of negociating. Preliminaries were mutually proposed and examined. On their part the French offered to cede Canada; to restore Minorca in exchange for Guadaloupe and Marigalante; to give up Senegal and Goree for Anamaboo and Acra; to renounce all claim to Cape Breton, on which no fortification was to be erected; and to consent that Dunkirk should be demolished. But one demand made by the French was fatal to the success of the negociations. They demanded the restitution of all the captures made at sea by the English before the declaration of war, on the ground that such captures were contrary to all international law, which restitution was sternly and absolutely refused, the English ministers arguing, that the right of all hostile operations results not from a formal declaration of war, but from the original hostilities of the aggressor. Another obstacle in the way of peace, was the refusal of the French to restore Cassel, Gueldres, and other places which they had taken from his Prussian majesty, although they were ready to evacuate what they occupied in Hanover. And as if these obstacles were not sufficient, the French preliminaries were accompanied by a private memorial, demanding from England the satisfaction of certain claims advanced by Spain, a country with which, though differences existed, England was at peace. The French ambassador was given to understand on this point, that the king of England would never suffer his disputes with Spain to be thus mixed up with the negociations carrying on with his country, and the cabinet called upon the Spanish ambassador to disavow all participation in such a procedure, and to state that his court was neither cognizant of it, nor wished to blend its trifling differences with the weighty quarrels of France. But this demand produced an unlooked-for budget, The Spanish ambassador at first returned an evasive reply, but he was soon authorized by the

court of Spain to declare, that the proceedings of the French envoy had the entire sanction of his Catholic majesty; and that, while his master was anxious for peace, he was united as much by mutual interest as by the ties of blood with the king of France. The fact is, Charles III., who now occupied the throne of Spain, had privately agreed, before this date, with the King of France, to consider every power as their common enemy who might become the enemy of either, and to afford mutual succours by sea and land. It had been also stipulated between them, that no proposal of peace to their common enemies was to be made except by common consent; that the two monarchs were to act as if they formed one and the same power; that they should maintain for each other all the possessions which they might possess at the conclusion of peace; and finally, that the King of Naples might be allowed to participate in their treaty, though no other family, except a prince of the house of Bourbon, was to be admitted into this family compact.

Negociations for peace, therefore, proved abortive. Even Bute considered many of the proposals of the French if not insulting to the majesty of the British nation, at least inadmissible. Yet these négociations resulted in the downfall of Pitt. At the council-table, that great minister represented that Spain was only waiting for the arrival of her annual plate-fleet from America, and then she would declare war. He proposed, therefore, that her declaration should be anticipated by England: that war should be forthwith proclaimed against Spain, and a fleet sent out to intercept her ships and treasures from the western world. He likewise proposed an immediate attack upon her colonies; recommending the capture of the Havannah and the occupation of the Isthmus of Panama, from whence an expedition might be sent against Manilla and the Philippine Isles, to intercept the communication between the continent of South America and the rich regions of the East. It suited the purpose of Bute, however, to raise the laugh of incredulity as to the declaration of war by Spain, questioning, at the same time, the real meaning of the treaty entered into between the two Bourbons. The other members of the cabinet also—Lord Temple excepted—pronounced the measures proposed by Pitt too precipitate, and he had no alternative but to resign; especially as he found, also, that the king was adverse to his schemes. Accordingly, on the 6th of October, Pitt delivered up his seals to the king, which his majesty received with ease and firmness, but without requesting him to resume them. The monarch, notwithstanding, lamented to him the loss of so valuable a servant, while he declared that even if his cabinet had been unanimous for war with Spain, he should have found great difficulty in consenting to such a measure. Pitt was affected by the kind, yet dignified, behaviour of the young king. “I confess, sire,” said he, with emotion, “I had but too much reason to expect your majesty’s displeasure: I did not come prepared for this exceeding goodness: pardon me, sir; it overpowers,—it oppresses me.”

Pitt retired with a pension of £3,000 per annum, which was to be continued for three lives. The peerage was offered him, but he declined it personally, accepting it only for his wife and her issue. He was succeeded in office by Lord Egremont, son of the great Tory, Sir William Wyndam. At the same time Lord Temple retired from office, and the privy seal was given to the Duke of Bedford. The resignation of Mr. Pitt, with his honours and rewards, were published in the Gazette on the following

day, and in the same paper a letter was published from the English ambassador at Madrid, which was replete with assurances of the pacific intentions of Spain. On this circumstance, combined with the resignation of Mr. Pitt, Burke remarks:—“It must be owned that this manouvre was very skilfully executed: for it at once gave the people to understand the true motive to the resignation, the insufficiency of that motive, and the gracious-ness of the king, notwithstanding the abrupt departure of his minister. If after this the late minister should choose to enter into opposition, he must go into it loaded and oppressed with the imputation of the blackest ingratitude; if, on the other hand, he should retire from business, or should concur in support of that administration which he had left, because he disapproved its measures, his acquiescence would be attributed by the multitude to a bargain for his forsaking the public, and that the title and his pension were the considerations. These were the barriers that opposed against that torrent of popular rage which it was apprehended would proceed from this resignation. And the truth is, they answered their end perfectly.”

This reasoning of Mr. Burke was strictly correct. The friends and partisans of Mr. Pitt raised violent clamours against Bute, for displacing a man who had raised the nation from its once abject state to the pinnacle of glory; and addresses, resolutions, and condolences were set on foot in London and the greater corporations, with a view of exciting the smaller cities and boroughs in England to follow the example. The press, also, was active in vilifying Bute for the part he had taken in this affair. But Bute had his friends as well as his enemies, and Pitt had his enemies as well as his friends. The press worked on both sides of the question; while it vilified Bute, it animadverted on Pitt’s pensions and honours. At the same time the people were only partially in the favour of the ex-minister. The progress of addresses, resolutions, and condolences was languid, and in some instances the people were disposed to cast odium _upon_, and to blacken the character _of_, the retired secretary. The popularity of Pitt was, in truth, obscured with mists and clouds for a time, and it was not till after he had raised a few thunder-storms of opposition, that his political atmosphere once again became radiant with the sunshine of prosperity. For the mind of Pitt was not to be long borne down by its heavy weight of gratitude to royalty, or by public accusations: he soon shook off the one, and resolutely braved the other.

THE MARRIAGE OF THE KING.

On the 8th of July the young king having called an extraordinary council, made the following declaration to its members:—“Having nothing so much at heart as to procure the welfare and happiness of my people, and to render the same stable and permanent to posterity, I have, ever since my accession to the throne, turned my thoughts towards the choice of a princess for my consort; and I now with great satisfaction acquaint you, that after the fullest information, and mature deliberation, I am come to a resolution to demand in marriage the Princess Charlotte of Mecklenberg Strelitz; a princess distinguished by every eminent virtue and amiable endowment; whose illustrious line has constantly shown the firmest zeal for the Protestant religion, and a particular attachment to my family. I have judged it proper to communicate to you these my intentions, in order that you may be fully apprised of

a matter so highly important to me and to my kingdoms, and which I persuade myself will be most acceptable to my loving subjects."

The preliminary negociations concerning this union had been conducted with great secresy, whence this announcement occasioned some surprise to most of the members of the extraordinary council. It met, however, with the warmest approbation of them all, and the treaty was concluded on the 15th of August. The Earl of Harcourt, with the Duchesses of Ancaster and Hamilton, were selected to escort the young bride to England, and Lord Anson was the commander of the fleet destined to convoy the royal yacht. Princess Charlotte arrived in England on the 7th of September, and on the following day she was escorted to St. James's, where she was met by his majesty.

Before the arrival of the future Queen of England, in a letter to one of his correspondents, Lord Harcourt had given this description of her:—"Our queen, that is to be, has seen very little of the world; but her very good sense, vivacity, and cheerfulness, I dare say will recommend her to the king, and make her the darling of the British nation. She is no regular beauty; but she is of a pretty size, has a charming complexion, with very pretty eyes, and is finely made." Lord Harcourt was right in his conjectures concerning the views which the king would take of his young bride. It is said, that in the first interview, although he saluted her tenderly, the king was disappointed in not finding in the princess those personal charms which he had expected. But this was only a momentary feeling. The king soon became interested in her artlessness, cheerful manners, and obliging disposition, while the whole court was loud in their praises of her affability, and even of her beauty. "In half an hour," says Horace Walpole, "one heard of nothing but proclamations of her beauty: everybody was content; everybody was pleased." So the marriage took place in the midst of good-humour and rejoicings: the nuptial benediction was given by Dr. Seeker, Archbishop of Canterbury, and the Duke of Cumberland gave away the bride.

CORONATION OF THEIR MAJESTIES.

Extraordinary preparations were made for the coronation of their majesties. It took place on the 22nd of September, and though described as solemn and magnificent, it did not materially differ from preceding coronations. The crown was placed on the head of the monarch by Archbishop Seeker, and before his majesty partook of the holy sacrament, he exhibited a very pleasing instance of piety before the assembled court. As he approached the altar, he asked if he might lay aside his crown; and when the archbishop, after consulting with Bishop Pearce, replied, that no order existed on the subject in the service, he rejoined, "Then it ought to be done;" at the same time taking the diadem from his head, he placed it, reverentially, on the altar. His majesty wished the queen to manifest the same reverence to the Almighty, but being informed that her crown was fastened to her hair, he did not press the subject. On the return of the procession, an incident occurred, which, had it happened among the nations of antiquity, would have been considered an omen of evil portent, which could only have been averted by a whole hecatomb of sacrifices. The most valuable diamond in his majesty's diadem fell from it, and was for some time lost, but it was afterwards found, and restored to his crown. The coronation of George III. could boast of one very

extraordinary spectator among the many thousands present. This was Charles Edward Stuart, the young Pretender, who had come over in disguise, and who obtained admission into the abbey, and witnessed all the ceremonies consecrating a king on that throne which he considered legitimately belonged to his father or himself! It is said that George knew that he was in London, and that he would not allow him to be molested; feeling, no doubt, secure in the affections of a loyal people. And that he was secure, the éclat with which the great festival of his coronation passed off, fully manifested. All combined to testify that their majesties were very popular, and that they had good reasons for anticipating a happy and prosperous reign.

MEETING OF PARLIAMENT.

The new parliament met on the 3rd of November, when Sir John Cust was elected speaker of the commons. He was presented to his majesty on the 6th, on which day the king, having first approved of the choice, thus addressed both houses:—“At the opening of the first parliament summoned and elected under my authority, I with pleasure notice an event which has made me completely happy, and given universal joy to my loving subjects. My marriage with a princess, eminently distinguished by every virtue and amiable endowment, while it affords me all possible domestic comfort, cannot but highly contribute to the happiness of my kingdoms, which has been, and always shall be, the first object in every action of my life.

“It has been my earnest wish that this first period of my reign might be marked with another felicity; the restoring of the blessings of peace to my people, and putting an end to the calamities of war, under which so great a part of Europe suffers: but though overtures were made to me, and my good brother and ally, the King of Prussia, by the several belligerent powers, in order to a general pacification, for which purpose a congress was appointed, and propositions were made to me by France for a particular peace with that crown, which were followed by an actual négociation; yet that congress has not hitherto taken place, and the negociation with France is entirely broken off.

“The sincerity of my disposition to effectuate this good work has been manifested in the progress of it: and I have the consolation to reflect, that the continuance of the war, and the further effusion of Christian blood, to which it was the desire of my heart to put a stop, cannot, with justice, be imputed to me.

“Our military operations have been in no degree suspended or delayed; and it has pleased God to grant us further important success, by the conquest of the islands of Belleisle and Dominica: and by the reduction of Pondicherry, which has in a manner annihilated the French power in the East Indies. In other parts, where the enemy’s numbers were greatly superior, their principal designs and projects have been generally disappointed, by a conduct which does the highest honour to the distinguished capacity of my general, Prince Ferdinand of Brunswick, and by the valour of my troops. The magnanimity and ability of the King of Prussia have eminently appeared in resisting such numerous armies, and surmounting so great difficulties.

“In this situation I am glad to have an opportunity of receiving the truest information of the sense of my people by a new choice of their representatives: I am fully persuaded you will agree with me in opinion, that the steady exertion of our most vigorous efforts, in every part where the enemy may still be attacked with advantage, is the only means that can be productive of such a peace as may with reason be expected from our successes. It is therefore my fixed resolution, with your concurrence and support, to carry on the war in the most effectual manner, for the interest and advantage of my kingdoms; and to maintain to the utmost of my power the good faith and honour of my crown, by adhering firmly to the engagements entered into with my allies. In this I will persevere until my enemies, moved by their own losses and distresses, and touched with the miseries of so many nations, shall yield to the equitable conditions of an honourable peace: in which case, as well as in the prosecution of the war, I do assure you, no consideration whatever shall make me depart from the true interests of these my kingdoms, and the honour and dignity of my crown.”

His majesty concluded his speech by calling upon the commons for adequate supplies to enable him to prosecute the war with vigour, and by asking for a provision for the queen in case she should survive him. The commons, besides the usual address, sent a message of congratulation to the queen, and they proved the sincerity of their professions by making her a grant of £100,000 per annum, with Somerset House and the Lodge in Richmond Park annexed: a patent also passed the privy seal, granting her majesty the yearly sum of £40,000 for the support of her dignity. On the subject of the supplies for the ensuing year, however, a long and stormy debate took place; and a month elapsed before they were finally adjusted. Opposition to them chiefly arose from the circumstance that the sentiments of the people, and likewise of the court, were beginning to change respecting the German war. But Lord Egremont found himself compelled to walk in the very steps which Pitt had marked out, at least for some time, and the large demands made were pressed upon the parliament, and finally received its sanction. Seventy thousand seamen were voted, and it was agreed to maintain 67,676 effective men, beside the militia of England, two regiments of fencibles in Scotland, the provincial troops in America, and 67,167 German auxiliaries. Some new taxes, also, were imposed, including an additional one on windows, and an increased duty on spirituous liquors, in order to pay the interest of £12,000,000, which it was found necessary to borrow, to make good the deficiences of last session. In the whole the supplies for the year 1762, voted by the parliament, amounted to more than £18,000,000: two millions of which were required for the defence of Portugal.

{GEORGE III. 1760–1765}

DISTURBANCES IN IRELAND.

In the month of October, Lord Halifax, the new Lord-lieutenant of Ireland met his Majesty’s first parliament in that country. The Irish parliament responded to the sentiments of the English parliament respecting the accession of the young monarch. Addresses replete with loyalty were voted by both houses; and the greatest

confidence was expressed in the rule of Lord Halifax, auguring the happiest results from his administration, and promising cordial co-operation. That ill-fated country, however, was restless as the waves of the ocean. During the vice-royalty of the Duke of Bedford, it had been totally under the dominion of the lord’s justices, and they had recently made an attempt to gain popularity, by expressing doubts in the privy council concerning the propriety of sending over a money bill, lest the rejection of it should occasion the dissolution of the new parliament, and thereby endanger the peace of the country. They were opposed in their views by Lord Chancellor Bowes and his party, and party violence was inflamed to the highest pitch. The popular coalition prevailed so far as to alter the established custom, by sending a bill not for the actual supplies, but relating to a vote of credit for Ireland, whence all ferment on this subject subsided. In such a contest it is not likely that the people would have joined, but they had grievances of their own, which endangered the public tranquillity. In his speech to the new parliament, Lord Halifax had recommended that the linen trade, which had been confined to the southern parts of the kingdom, should be extended throughout the country, inasmuch as there was a large demand for it, and it might thereby be made a source of wealth to the whole country. True patriots would have observed the wisdom of, and have acquiesced in, this measure; but self-interest in Ireland, as in all countries under the face of the sun, prevailed over the feelings of patriotism. The people in the southern parts of the kingdom murmured at such a project, as it would affect their personal interests, and their discontents were increased by the conversion of considerable quantities of land from a state of tillage to that of pasturage, for the purpose of feeding more cattle. By this measure, great numbers of the peasantry were deprived at once, not only of employment, but of their cottages. Many small farms were indeed still let to some cottagers at rack-rent, which cottages had the right of commonage, guaranteed to them in their leases; but afterwards the commons were enclosed, and no recompense was made to the tenants by the landlords. Thus provoked, and being joined by the idle and dissolute, these unhappy people sought to redress their own wrongs by acts of violence. Fences were destroyed, horses and arms were seized, cattle were maltreated, and obnoxious persons, especially tithe-proctors, were exposed to their vengeance. Many were stripped naked, and made to ride on horses with saddles formed of the skins of hedgehogs, or buried up to their chins in holes lined with thorns that were trodden down closely to their bodies. From their outrageous violence these people obtained the name of “Levellers,” but afterwards, from the circumstance of their wearing white shirts over their clothes for the purpose of disguise, they were termed “White Boys.” Their outrages demanded the strong arm of the law, and the royal troops were employed in their suppression. Many suffered the extreme penalty of the law, though many more were permitted to escape through the lenity of the judges, whence the disorders long prevailed. As the rioters were all Romanists, a popish plot was suspected, and the Romish clergy were charged with promoting their outrages. A motion was made in parliament to investigate this matter, but there not being sufficient evidence to inculpate any parties, it was dropped, and no efficient remedy was therefore applied to heal the disorder.

WAR WITH SPAIN.

The year had not closed before the ministers found that a rupture with Spain was inevitable. The first intimation of it was detected in the menacing conduct of the court of Versailles; and Lord Bristol, the English ambassador at Madrid, was instructed to demand the real intentions of Charles III., and the real purport of the family compact. General Wall, the Spanish minister replied more insolently than before; but an open rupture was avoided till the plate-ships had arrived at Cadiz with all the wealth expected from Spanish America. Then it was seen that the political vision of Pitt could penetrate much deeper than that of Bute and his colleagues. Complaining of the haughty spirit and the discord which prevailed in the British cabinet, and of the insults offered to his sovereign, Wall informed Bristol that he might leave Spain as soon as he pleased, and at the same time issued orders to detain all English ships then in the ports of Spain. Lord Bristol returned; the Count of Fuentes, the Spanish ambassador, quitted London, and war was mutually declared by both countries.

The declaration of war was made on the 4th of January, and on the 19th parliament met after its adjournment, when the king informed both houses of the measures he had been compelled to adopt. The members of both houses were unanimous in their approbation of his majesty’s conduct, and in assurances of vigorous support. The consideration of the intelligence, notwithstanding, caused a stormy debate, but as no regular opposition was organized, and government was supported by Pitt, clamour died away, and the war met with general approbation. In the house of lords, a motion was made reprobating the expense of the German campaigns, and recommending a recall of the British troops for the security of our own dominions; but it was strongly opposed, and the previous question was carried by a large majority. Preparations were therefore made for war with Spain, without diminishing the expenses of the war in Germany; and while fresh troops were enlisted, some wise alterations were made by parliament in the militia laws, by which a line was drawn between those persons liable to serve, and such as were exempt.

Operations were commenced in the Havannah. On the 5th of March, an expedition sailed under the command of General Lord Albemarle and Admiral Pococke, in order to strike a severe blow against the commerce of Spain in that quarter. This expedition was joined in the West Indies by a strong squadron commanded by Sir James Douglas, and sailing through the Straits of Bahama, it arrived before the Havannah on the 5th of June. A landing was easily effected and siege was laid to the Moro, a strong fort which defended the harbour, and which was considered impregnable. The difficulties in making the approaches on a hard rocky soil were great, and the troops suffered from sickness, fatigue, and the fire of the enemy; but being joined by fresh reinforcements from New York and our West Indian Islands, the fort was isolated from the town, and it was then stormed through a narrow and perilous breach, and carried at the point of the bayonet. The city of Havannah maintained the siege a fortnight longer; but it was compelled to capitulate, and it was yielded up with 180 miles of country westward, or all the best part of the island of Cuba. Nine Spanish ships of the line and three frigates were taken in the harbour, and three ships of the line and a galleon were destroyed, while the booty that fell into the hands of the victors amounted to £3,000,000 sterling. But the ultimate advantages of this victory

promised to be greater than its immediate results. By the possession of the Havannah, indeed, England obtained the absolute command of the passage pursued by the plate-fleets of Spain, and seemed to lay the wealth of that country at her feet.

It was not in the western hemisphere alone, that the dominions of the King of Spain were attacked. When the news of the war reached the East Indies an armament was fitted out at Madras, under the command of Admiral Cornish and Sir William Draper, which suddenly appeared off Manilla, the capital of Luconia, and the surrounding isles. Draper landed his forces and took possession of the suburbs of Manilla, before the inhabitants were well aware of the war between Spain and England. Manilla was governed by the archbishop, who proved by his conduct, that like the ecclesiastics of the middle ages, he could both fight and say mass. The archbishop excited the natives to assault the assailants in the rear, while at the head of about eight hundred Spainards he opposed them in front. The Indians fought with almost incredible ferocity; but they were cut to pieces by the sword, or died gnawing with their teeth the bayonets by which they were transfixed. The works of Manilla were carried by storm, and Draper’s forces, which were chiefly composed of Sepoys and Lascars, began to plunder and destroy the city. The inner citadel, however, remained uncaptured, and the archbishop with the magistrates, and some of the garrison threw themselves into it for safety. A capitulation ensued, by which the city and port of Manilla, with several ships and the military stores, were surrendered to England, while a ransom was given for all private property, amounting to 4,000,000 dollars. The fruits of this important conquest did not terminate here. Two ships were despatched from the British squadron to intercept the rich galleon Phillippina, and though they missed this prize, they captured the Santa Trinidad, a great Manilla and Acapulco galleon, with a cargo valued at 3,000,000 dollars. The whole group of islands then submitted to the English flag.

The English arms were equally successful in a series of attacks on the remaining French West India Islands. Martinique, Grenada, the Grenadines, St. Lucia, St. Vincent, and Tobago, were all captured by an army under general Moncton and a squadron under Admiral Rodney, so that England obtained possession of the entire chain of the Caribbees. It was in vain that the French in that part of the world sought to stem the onward progress of the British arms: they were overpowering, and being hopeless of succour from their mother-country, the French everywhere submitted to the conquerors.

FRANCE AND SPAIN DECLARE WAR AGAINST PORTUGAL.

Before the news of the loss of Havannah and Manilla reached the court of Spain, that court had commenced a land campaign on the continent. A close alliance had long subsisted between England and Portugal, whence France and Spain at this period chose to consider the king of Portugal as the creature of the King of England. These two powers therefore determined on a rupture with Portugal, unless the Portuguese should renounce their English alliance. Preparations were accordingly made for an invasion of Portugal by France as well as by Spain, while in the meantime a joint memorial was presented by the two powers, inviting the king of that country to join the alliance of the Bourbons against Great Britain, which they were

pleased to designate “the common enemy of all maritime nations.” At the same time they insisted that he should expel all English merchants and English sojourners from his kingdom, and close his ports to English shipping. It was added that if he acceeded to these proposals, his fortresses and sea-ports should be garrisoned by French and Spanish troops to protect him from England’s vengeance, but that if he refused—and the answer was to be given within four days—he must take the consequences of such a line of policy.

There were circumstances existing which ought to have disarmed all hostility on the part of France and Spain towards Portugal, even if that hostility had been founded in justice. The Portuguese had not yet recovered from the effects of the earthquake which, in 1756, had reduced a third part of Lisbon to a ruinous heap. Then again, the Portuguese power was acknowledged to be weak; but, above all, the King of Portugal was the near relation of the King of Spain. The weakness of the Portuguese government, however, was rather a temptation than a barrier to the view of the Spanish monarch, and as for the claims of kindred, they were absorbed in his views of ambition. Portugal was incorporated geographically, and he longed to incorporate it politically with Spain, whence the claims of misfortune and kindred were overlooked by him. Conscience, moreover, was not allowed to assert its sway over his actions, for he had armed himself against its lawful power by leaving the decision of peace or war to his Portuguese majesty. If he joined the Bourbon alliance, well and good, for the forces of France and Spain would obtain possession of Portugal at an easy rate; but if not, if he still adhered to his old alliance with England, then it would be manifest to all the world, if he lost the kingdom, it would be his own fault: in such cheap estimation does ambition hold morality.

At this period, Portugal had not an army exceeding 20,000 men, and her fleet was reduced to six ships of the line and a few frigates, while her fortresses were in ruins. In such a desperate condition, therefore, it might have been expected that, however repugnant to his inclinations, the heir of the house of Braganza would have broken his alliance with England, and have joined the Family Compact. Prudence would seem to have dictated such a step, but he acted otherwise. He had spirit enough to declare that he would never submit to such conditions; and the French and Spanish ambassadors quitted Lisbon, while their armies on the frontiers put themselves in motion towards his capital. Ruin seemed to await the monarch of Portugal. Braganza, Miranda, and Torre de Moncorvo were captured by the Marquis of Saria, who commanded the Spanish army north of the Douro, while another body of Spanish troops penetrated south of the Douro into Beira, and occupied a post near Almeida. But the Spaniards were doomed to receive a check. The militia and the brave peasantry of Portugal, assisted and directed by some British officers, maintained a destructive war of posts on the forces of Saria, and thus stemmed his onward progress till relief came from England.

On the 11th of May, George III. ordered the following message to be laid before the house of commons:—“His majesty, relying on the known zeal and affection of his faithful commons, and considering that in this conjuncture emergencies may arise, which may be of the utmost importance, and be attended with the most pernicious

consequences, if proper means should not be immediately applied to prevent or defeat them; and his majesty also taking into his most serious consideration the imminent danger with which the kingdom of Portugal, an ancient and natural ally of his crown, is threatened by the powers now in open war with his majesty, and of what importance the preservation of that kingdom is to the commercial interests of this country, is desirous that the house would enable him to defray any extraordinary expenses of the war incurred, or to be incurred for the service of the year 1762; and to take all such measures as may be necessary to disappoint or defeat any enterprises or designs of his enemies against his majesty or his allies."

This message was favourably received; Pitt advocated the cause of our ancient ally with fervour and eloquence, and the house of commons voted £1,000,000 sterling for the purposes therein specified. And this vote was followed by prompt and effective measures to arrest the arms of France and Spain. Eight thousand British troops under the command of Lord Tyrawley, the Earl of Loudon, General Townshend, Lord George Lennox, and Brigadiers Crawford and Burgoyne, landed in Portugal, and immediately commenced operations. At the same time the native Portuguese army consented to submit to the command of the Count de la Lippe, an active and experienced German officer, who had commanded the British artillery in Germany. The events of this campaign were complicated and various. Lippe concentrated the principal part of the Portuguese forces at Puente de Marcello, to prevent the progress of the Spanish arms northward, while Brigadier Burgoyne was detached to fall upon Valencia d'Alcantara, on the frontiers of Spain, southward. Burgoyne carried Valencia d'Alcantara by a _coup-de-main_, capturing a Spanish general with all his staff, and all the magazines which Spain had there collected for the purpose of an invasion along the Tagus, and then retraced his steps to Pnente de Marcello. At the same time Almeida was taken by the Spanish general, Count d'Aranda, and having garrisoned this place, and Ciudad Rodrigo, he marched towards the Tagus, designing to pass into the Alemtejo. When, however, he arrived at Villa Velha, on the Tagus, he found that the passage of the river would be disputed. Lippe, aware of his designs, had marched to Abrantes, the key of Portugal on the Tagus, and had posted detachments under Burgoyne and the Count de St. Jago at the adjacent passes of Alvite and at Niza. The Spanish general obtained possession of the castle of Villa Velha, and drove the Count de St. Jago from the pass of Alvite; but while some of the Spaniards were pursuing the routed Portuguese forces, Burgoyne threw a detachment across the Tagus upon Villa Velha, and while the Count d'Abrantes was amused in front by a feigned attack from Niza, this detachment, commanded by Colonel Lee, entered their quarters in the rear, and began a terrible fire of musquetry. It was under cover of the night that Lee entered the quarters of the Spanish commander, and thus surprised, the Spaniards were routed with terrible slaughter, while their magazines were destroyed and their guns spiked. This was a blow from which the Spaniards could not recover; and the French invading forces having failed in their co-operation, his provisions beginning to fail, the autumnal rains to descend in torrents, and the peasantry to block up the roads, the Count d'Aranda dismantled the few fortresses he had taken, and returned to Spain. To all these losses and defeats was added the capture of the Spanish ship, Hermione, off Cape St. Vincent, by the English, having treasure on board that

amounted to nearly £1,000,000 sterling. The only expedition of the English which failed during this year was that against Buenos Ayres, which was as ill conceived as it was paltry. But this gave Spain no hope for the future. Taught experience by reverses, the war with England became, indeed, unpopular with the Spanish people, and their universal cry was, at the close of this campaign, “Peace with England, and war with all the world!”

DISSENSIONS IN THE CABINET.

Early in January of this year died the Czarina Elizabeth, one of the most bitter and inveterate enemies of our ally, the King of Prussia. She was succeeded in her empire by Peter III., who, by the month of March, had concluded a close alliance with Frederick, placing an army of 20,000 men, which had hitherto fought against him, entirely at his disposal to fight against Austria. This had no sooner become known to the English cabinet, than Bute and his party proposed that no further subsidies should be paid to Frederick; at the same time, they reminded his Prussian majesty, that he had himself declared that if he were once secured by the neutrality of Russia, he should have little need of further assistance from England. But the old Duke of Newcastle would not admit the validity of this reasoning of his colleagues. He waited on Bute, and declared his intention to resign, unless a subsidy of £2,000,000 was paid, and the continental war continued. Bute answered drily, “that if the money were granted, peace might be retarded;” but he never requested him to continue in office, nor said a civil word to the aged politician. Accordingly, the Duke repaired from the minister to his master, and resigned his office, refusing a pension which was offered as a reward for his services, and for the large sacrifices which he had made since he had been minister, out of his private fortunes. “If he could no longer be permitted to serve his country,” he said, “he was at least determined not to be a burden on it: that if his private fortune had suffered by his loyalty, it was his pleasure, his glory, and his pride; and that he desired no reward but his majesty’s approbation.” Horace Walpole says, that he retired from the royal presence comparatively a poor man, to find how solitary and deserted could be the mansion of an ex-minister. Newcastle had been more than forty-five years in the cabinet, and this utter disregard to money-making exhibits his patriotism in a strong light: few would have served their country so long without well replenishing their coffers, especially at that age, when the virtues of disinterestedness and self-abnegation were exotic rather than indigenous to the human heart.

Bute had his reasons for answering the Duke of Newcastle coldly, and the result answered his expectations. He succeeded the ex-minister at the head of the treasury, “taking the reins of government with almost as little experience as Phaeton, and meeting with a fall almost as soon.” Mr. George Grenville was appointed secretary of state; but he afterwards exchanged posts with Lord Halifax, who had recently been appointed head of the admiralty. Lord Barrington was removed from the Exchequer in which office he was succeeded by Sir Francis Dashwood, and he was appointed treasurer of the navy. Soon after the Duke of Devonshire resigned his post of lord high chamberlain, and the Earl of Hardwicke retired from public life altogether. Many of the friends of the duke retained their places or accepted others; but several

noblemen and commoners of distinction before the end of the year ranged themselves in the ranks of opposition. Amongst these was the Duke of Newcastle, who, although during the summer he had abstained from opposing the government, at length formed a political connexion with the Duke of Cumberland, whom he had before invariably opposed.

EVENTS IN GERMANY, ETC.

Frederick of Prussia had not only entered into an alliance with Russia, but towards the end of May he had concluded a peace with Sweden. Backed by these two powers he boasted that he was in possession of more advantages than he could have derived from gaining three pitched battles, and without waiting for the English subsidy he took the field. He began operations in Silesia, and directed his attention to the recovery of Schweidnitz. He was aided in his designs by his brother, Prince Henry, who had gained an important battle near Freyburg, and thus changed the aspect of affairs in Saxony; but while he was intent on his plans, he was threatened with a sudden reverse of fortune. This was the death of his new ally, the Czar Peter.

After making peace with Frederick, and sending 20,000 of his troops to serve under him, Peter, from a spirit of admiration of the Prussian monarch, and of enthusiasm in his cause, insisted upon introducing the Prussian discipline, and even the Prussian uniform into his army. He set the example by appearing in the dress of a Prussian general, and he often observed that, if he had remained Duke of Holstein, he would have commanded a regiment in the Prussian service, and have become personally acquainted with Frederick. This naturally offended the national prejudices; but he took a more fatal step for his own welfare, by building or dedicating Protestant chapels, by ordering the removal of painted images of saints from the churches, and by checking the entrances of novices into convents. By these measures he therefore gained himself many enemies both among the military and the priesthood. Every third man he admitted into his councils or his presence, it has been said, was a traitor. His fall, however, might have been far distant but for the wife of his bosom. Catherine, Princess of Anhalt Zerbst, charmed the Russians as much as Peter disgusted them, and she was, moreover, induced to believe that he had discovered her guilty connexion with Count Gregory Orloff, and entertained a design of divorcing her and casting her into prison, that he might raise his own favourite mistress, Elizabeth Countess of Woronzow, to the throne. Hence—and being also inflamed with ambition—Catherine lent a willing ear to the complaints of the army, clergy, and nobility, and, aided by them, she effected another revolution in Russia. Habited in the garb of a man, and surrounded by some of the military and nobility, she proceeded to the church of the Virgin Mary of Casan, where a vast concourse of the clergy, the nobles, and the soldiery hailed her on her arrival as their deliverer. She was crowned sole empress by the Archbishop of Novogorod, and all present took the oath of allegiance to her. From the church, Catherine proceeded to the senate, which at once acknowledged her right, and swore fidelity to her cause. All the adherents of her husband were then arrested, and Peter himself was thrown into prison, where, after a few days, he died, as some say by disease, but more probably as others assert, by assassination.

No one was more interested in these proceedings than Frederick of Prussia. He conceived that he might find an enemy as implacable in Catherine as he had found in her predecessor, Elizabeth. His forebodings were not fully realized, for while the empress recalled the Russian troops serving under him, she restored the Prussian territories which had been occupied by Elizabeth, and promised to observe a strict neutrality. Thus set free from his fears, Frederick proceeded in his campaign with his accustomed vigour. Schweidnitz and Silesia were recovered, and the Austrians were driven into Bohemia, one part of the Prussian army advancing to the very gates of Prague. At the same time, the allied armies, under Prince Ferdinand and the Marquis of Granby, reduced Cassel, expelled the French from Hesse, and effected the salvation of Hanover—events which created alarm and despondency in the French cabinet.

NEGOCIATIONS FOR PEACE.

Notwithstanding the uninterrupted success of the British arms, Lord Bute was still anxious for peace. And his views at this time were seconded by the voice of the people, who loudly complained of the increased taxation and the expenses and burdens consequent upon this protracted war. Accordingly, having indirectly sounded some of the French cabinet, Bute engaged the neutral King of Sardinia to propose that it should resume négociations for peace. Both France and Spain, taught experience by their reverses, were eager for such a consummation; and Louis XV. had no sooner received the hint, than he acted upon it with all his heart and soul. Notes were interchanged, and it was agreed that a minister should be appointed on either side forthwith. In compliance with this agreement, the Duke of Bedford went as plenipotentiary and ambassador extraordinary to Paris, and the Duke de Nivernois came over to London in the same capacity. Preliminaries for peace were signed at Fontainbleau, on the third of November, by the ministers of Great Britain, France, Spain, and Portugal; and the sanction of the British parliament only was wanting to carry them into effect.

The terms of the preliminaries signed at Fontainbleau were as follow:—France consented to restore Minorca; to evacuate Hanover, Cleves, Wesel, Gueldres, the territories of the Landgrave of Hesse, the Duke of Brunswick, and the Count de la Lippe Bucke-burg, and every place taken from his Prussian majesty. France, also, renounced all pretensions to Nova Scotia, and ceded the islands of Cape Breton and St. John, with the entire province of Canada, including the islands in the Gulf and River of St. Lawrence; that part of Louisiana which is situate east of the Mississippi, and the tract between the Ohio and St. Lawrence, on which French forts had been erected, and which had been the proximate cause of the war. On her part Spain resigned East and West Florida, with all pretensions to fish on the coast of Newfoundland; and conceded the full right of cutting logwood in the Bay of Honduras. France and Spain promised full restitution to Portugal, and the fortifications of Dunkirk were to be demolished, according to the tenor of previous treaties. For these advantages, England agreed to restore Pondicherry, in the East Indies, Goree, in Africa, and Martinique, Guadaloupe, Marigalante, Desirade, and St. Lucie, in the West Indies, to France, together with Belleisle, in Europe. To Spain she

was to give up the Havannah, with all other conquests in Cuba, The conquests England retained, beside those specified in the preliminaries, were Senegal, in Africa, and St. Vincent, Dominique, Tobago, Grenada, and the Grenadines, in the West Indies. On the whole, England would evidently become a great gainer; but the terms gave rise to great contention, and a struggle of party on the meeting of Parliament.

THE MEETING OF PARLIAMENT AND THE CONCLUSION OF PEACE.

Although the great body of the people of England desired peace, yet there was a section of the community equally desirous for the continuance of the war. The citizens of London had largely profited by it; and during the negociations of last year they had instructed their representatives to oppose any peace which did not reserve to England all, or the greater part, of their conquests. This feeling was heightened by the successes of the last campaign, and while the whole glory of the war was assigned by them to Pitt, the very name of peace was considered as a sacrifice of the national honour. Encouraged by these feelings, Pitt organised a party in opposition to the cabinet, and he was aided in this by many of the Whigs, who, irritated by the removal of so many of their adherents from office, looked with jealousy upon the actions of the favourite minister, Bute. The premier, likewise, was very unpopular with the people, for although his views of peace coincided with their own, yet he lacked the genius which could alone command their admiration; and his cold, formal manners, and known lust of power, subjected him to their scorn and contempt.

Parliament met on the 25th of November, and the preliminaries of peace were then laid before both houses for their decision. In his opening speech, his majesty remarked upon this subject:—“It was impossible to execute what this nation has so gloriously performed in all parts of the world, without the loss of great numbers of men. When you consider this loss, whether on the principles of policy or humanity, you will see one of the many reasons which induced me to enter early into negociation, so as to make considerable progress in it before the fate of many operations was determined; and now, to hasten the conclusion of it, to prevent the necessity of making preparations for another campaign. As by this peace my territories are greatly augmented, and new sources opened for trades and manufactures, it is my earnest desire that you would consider of such methods, in the settlements of our new acquisitions, as shall most effectually tend to the security of those countries, and to the improvement of the commerce and navigation of Great Britain. I cannot mention our acquisitions without earnestly recommending to your care and attention my gallant subjects, by whose valour they were made. We could never have carried on this extensive war without the greatest union at home. You will find the same union peculiarly necessary in order to make the best use of the great advantages acquired by the peace, and to lay the foundation of that economy which we owe to ourselves and to our posterity, and which can alone relieve this nation from the heavy burdens brought on it by the necessities of this long and expensive war.”

There were points in this pacific speech of his majesty which were perfectly unanswerable. Humanity, and the burdens of the country demanded that the sword should be sheathed, and the demand was eloquently seconded by the great

advantages which England would secure by the peace. Notwithstanding, opposition was not disarmed, and a fierce war of words ensued. The motion for an address in the house of commons, approving of the terms of the treaty, was moved by Mr. Fox, Pitt's ancient rival, who still retained the lucrative place of paymaster of the forces. Pitt followed on the opposite side. He came to the house, suffering from gout and wrapped up in flannel; but, nevertheless, supported by two members, in an elaborate argument of more than three hours, he advanced every objection that could be urged against the negociations. The whole tenor of the treaty was denounced by him as unsound and impolitic, and as derogatory to the honour of England. He came, he said, at the hazard of his life to the house that day, to lift up his voice, his hand, and his arm against the preliminary articles of a treaty which obscured all the glories of the war, surrendered up the interests of the nation, and sacrificed the public faith by the abandonment of long-tried and faithful allies. Fox, supported by George Grenville, replied in a less eloquent; tone, but with more cogent arguments, and the ministers obtained a large majority. In the house of lords, Bute undertook the defence of the measure, and in his speech, the clauses of which fell from his lips like so many minute-guns, he detailed the rise and progress of the negociations at large, and set forth the advantages which England would derive from the treaty in the best manner his talents for oratory—which were very mean—would permit. He concluded his speech with declaring, that he desired no other epitaph to be inscribed on his tomb, than that he was the adviser of such a peace. He was opposed by Lord Temple, and supported by the Earl of Halifax; and notwithstanding all the arguments of the opposing peers, the address was carried by a large majority. The treaty was therefore signed, and commercial communications, which had been stopped during the war, were reopened with France.

Pitt had declared in his speech, that the desertion of the King of Prussia, England's most magnanimous ally, was insidious, base, and treacherous. A glance at the preliminaries will suffice to prove that Frederick's interests were not forgotten. Frederick, moreover, was now in a condition to defend himself. At this very time, in fact, he had induced all the princes and states in Germany to sign a declaration of neutrality, which led first to a truce between Austria and Prussia, then to a congress, and finally, in that congress, to a treaty of peace between Austria, Prussia, Saxony, and Poland. This treaty was not signed till the 15th of February, 1763, but its terms were agreed upon before the close of the present year. Frederick retained Silesia, and all the territories that belonged to him before the war, and the other powers were compelled to rest satisfied with their legitimate possessions, without the slightest reparation for the damages they had endured, and the sums they had spent, during this dream of their ambition. Thus ended this Seven Years' War—a war which had cost millions of lives, and in which a large portion of Europe was devastated, and carnage was earned into every quarter of the globe. England was a gainer by it, but her acquisitions cost so much blood, and treasures, that it may fairly be questioned whether her advantages were commensurate with the price she paid for them.

THE RESIGNATION OF BUTE.

Notwithstanding the large majority ministers had obtained in both houses of parliament on the subject of the newly-signed treaty, causes were at work which soon effected their overthrow. Pitt was resolutely bent on driving Bute from office; his stern opposition being ostensibly founded on an assertion that he had thrown away the best advantages in the treaty of peace. He was joined in his opposition by the old Duke of Newcastle, whose halls again became the resort of politicians. Meetings were held at his residence, in which nobles and commons alike concerted together the means of making the peace unpopular, and bringing Bute into still greater contempt with the public. Pens, dipped in gall, were set to work to demonstrate to the people that Martinique, Guadaloupe, St. Lucie, Pondicherry, and the Havannah ought to have been retained in the treaty of Fontainebleau; that compensation in money ought to have been obtained from both France and Spain; that, by demolishing the forts in Honduras, English subjects were deprived of the logwood trade, and subjected to the jealous rage of the Spaniards; and that an opportunity of humbling the house of Bourbon had been completely thrown away. In maintaining these propositions, dark insinuations were thrown out, reflecting upon the characters of Bute, the king’s mother, and the Duke of Bedford. They had all, it was said, touched French gold. Epigrams, scandals, and stories, also, concerning Bute and the princess dowager, rang from one end of the country to the other. And the conduct of the princess and Bute seemed to justify the scandal, although it does not appear to have rested on sure grounds. Thus they precluded, as much as possible, all access to the king, except to Bute’s relatives connexions, and dependents; and when Bute visited the princess it was generally in the evening, and then in a sedan-chair belonging to a lady of the household of the princess, and with close-drawn curtains. His enemies did not fail to take advantage of his imprudent conduct, and they soon succeeded in making him the most unpopular man in the three kingdoms. This soon became manifest to the royal favourite; for addresses on occasion of this peace were refused by the counties of York and Surrey, and they came in slowly and ill-supported from other quarters. Bute, however, was too proud and unconciliating to make any attempt to set himself right in public opinion, and he suffered his enemies to work on, till his character became unredeemable, and his downfall was effected.

Still Bute might possibly have enjoyed his high station for some time longer had there not existed at this time a necessity for an increase of taxation, and for a loan of three millions and a half, to enable government to pay debts contracted during the war. This necessity could not be fairly imputed to Bute, but he was unfortunate in his plan of raising the loan, and in his choice of new taxes. Instead of throwing the loan open to competition, he disposed of the shares privately, and they immediately rose to eleven per cent, premium; whence he was charged with gratifying himself or his dependents with £350,000 at the public expense. His new tax was produced in the shape of ten shillings duty per hogshead on cider and perry, which was to be paid by the first purchaser, while an additional duty of eight pounds per ton was proposed to be laid on French wines, and half that sum on other wines. The tax on cider raised such a storm of opposition from the country members generally, without reference to party, that Bute was induced to alter both the sum and the mode of levying it—four shillings per hogshead was to be paid, and it was to be levied upon the grower,

through the medium of the exciseman. This was not an unreasonable tax, for ale and porter were already taxed both directly and indirectly, and no argument could show that while a liquor produced from malt contributed to the public exigencies, a liquor produced from apples should be exempt. Englishmen, however, were always averse to the visits of the excisemen; and the city of London, the cities of Exeter and Worcester, and the counties of Devonshire and Herefordshire, the interests of which were concerned in the matter more nearly than the citizens of London, petitioned the commons, the lords, and the throne, against the bill. A general threat was made, that the apples should rot upon the ground rather than be made into a beverage subject to such a duty and such annoyances. In the house of commons, also, Pitt spoke long and eloquently against the bill; inveighing bitterly against the intrusion of officers into the private dwellings of Englishmen; quoting the well-known maxim that in England "every man's house is his castle." Stern opposition was, moreover, made in the house of lords; and, had Bute been wise, he would have bowed deferentially to the public feeling, and have adopted some other mode of raising the money less repugnant to the temper and disposition of the people. Bute, however, to use a figurative expression, proudly bared his head to the tempest which was playing around him. He was determined that the bill should pass, and he carried his point despite the fierce opposition of the whole country. The bill passed into a law, and although there were four different kinds of cider, varying in price from five to fifty shillings per hogshead, they were all taxed alike.

Yet Bute was not made of such stern material that he could defy the people with impunity. He had gained this victory over them, but he evidently felt that their voice was omnipotent, and that if he longer resisted it, he might possibly one day, and that soon, be doomed to suffer disgrace by defeat. Under these circumstances, almost as soon as the bill passed into a law, he surprised his friends and his enemies alike, by suddenly tendering his resignation. Opinions varied as to his motives for taking such a step. Some of his enemies said that he had retired from the rising storm of national indignation, and that Pitt had politically killed him; others that the king and queen, whose strict morality of conduct was well known, had at length taken umbrage at his intimacy with the queen dowager; while others asserted that he abandoned his post from a consciousness of guilt, and a dread of impeachment for certain acts not yet made known to the public. On the other hand, his friends asserted that his retirement arose from his hatred of the intrigues of a public life, and represented him as panting in the midst of the toils of his office for literary and rural retirement. His own reason, as expressed to a friend, was, that he found himself powerless in his own cabinet. "Single in a cabinet of my own forming," he observed, "no aid in the house of lords to support me, except two peers, [Denbigh and Pomfret]; both the secretaries of state silent, and the lord chief justice, whom I myself brought into office, voting for me, yet speaking against me; the ground I tread upon is so hollow, that I am afraid, not only of falling myself, but of involving my royal master in my ruin. It is time for me to retire." Bute retired as proudly as he had exercised his office, for he neither asked for pension nor sinecure, and his retirement was followed by that of Sir Francis Dashwood, chancellor of the exchequer, and of Fox, who were elevated to the peerage: the former as Baron le Despencer, and the latter as Baron Holland. Mr.

George Grenville succeeded to the premiership, and also to the place which had been occupied by Dashwood, uniting in himself the offices of chancellor of the exchequer and first lord of the treasury. But Bute still acted behind the scenes. He pulled the strings, and Grenville and the rest of the cabinet answered his motions, as mechanically as though they had been so many puppets. Grenville, indeed, seems to have been chosen by the king and Bute, as a willing instrument for carrying their plans into ready execution.

THE CHARACTER AND IMPEACHMENT OF WILKES.

One of the most sturdy opponents of Bute and his administration had been the celebrated John Wilkes, member of parliament for Aylesbury, and a lieutenant-colonel in the Buckinghamshire militia. On first entering into office, Bute, by the advice of Bubb Doddington, had established a newspaper, styled “The Briton,” the ostensible object of which was, to advocate the measures of Bute’s administration. Many writers were employed to write for this paper; and while they exalted the premier, they did not fail to vilify his opponents. To oppose this organ of the ministers, another paper was set on foot, and conducted by Wilkes, under the title of “The North Briton.” Wilkes was a man of ruined fortune and of dissolute habits; but he was active, enterprising, and daring, and possessed a considerable fund of wit and repartee. In the beginning of this reign, he had solicited a lucrative post under government, but had been disappointed. His failure was attributed by him to the influence which Bute held over the monarch, and he began to vent his spleen against the minister and his coadjutors in scandalizing and calumniating their actions and private characters. Both in conversation and in the “North Briton,” they were ever made the butts of his ready wit. He even reviled, stigmatized, and heaped curses upon Bute’s country and countrymen. According to his showing, the river Tweed was the line of demarcation between all that was honourable and noble, and all that was dishonourable and servile—south of that river, honour, virtue, and patriotism flourished; north of it, malice, meanness, and slavery prevailed. Every Scotchman was painted by him as a hungry beggar, time-server, and traitor. Wilkes was, perhaps, not singular in his antipathies at this time against the Scotch, for wiser men than him exhibited them in their writings and in their conversation, arising in a great measure from the circumstance of the introduction of large numbers of them into the offices of government. But in this, Bute acted as any other man would have done under similar circumstances, as every one possesses by nature a predilection for their own country and countrymen. This conduct, therefore, of Wilkes was as unwise as it was unjust and impolitic. Still no danger would have occurred to himself from the display of such bitter feelings, had he confined his malevolence to the subjects of Great Britain. Grown bold by impunity, however, Wilkes at length pointed his pen at the royal family, and even at the monarch himself; and, by so doing, he raised a persecution against himself, which has rendered him a prominent object in the annals of his country. On the 19th of April his majesty prorogued parliament, and in the next number of the “North Briton,” the celebrated 45th, Wilkes accused the monarch of uttering a direct falsehood in his speech on that occasion. Whether Grenville was more sensitive than his predecessor had shown himself, or whether Bute instigated him to take notice of this attack, in order to revenge himself upon Wilkes, is not clear,

but it is certain that on the 26th a general warrant was issued from the secretary of state's office, signed and sealed by Lord Halifax, for the arrest of the authors, printers, and publishers of the seditious paper, and for the seizure of their papers. No names were specified in this warrant, and within three days, no less than forty-nine persons were taken upon mere suspicion. These were innocent, but on the 29th, Kearsley, the avowed publisher, and Balfe, the printer, were taken into custody, who confessed that Wilkes was the author of the paper. Accordingly, the crown lawyers having been consulted, the messengers were directed to seize Wilkes, and bring him forthwith before the secretary of state. It was in vain that the offender asserted that they were acting upon an illegal warrant: his papers were seized, and he was carried before Lord Halifax. At the request of Wilkes, his friend, Lord Temple, applied to the court of common pleas for a writ of habeas corpus, and the motion was granted; but before it could be prepared, he was committed to the Tower in close custody, and his friends, his counsel, and his solicitor were denied access to him. The confinement of Wilkes, however, was of short duration, for on the 3rd of May, a writ of habeas corpus was directed to the constable of the Tower, by which he was brought before the court in Westminster Hall. In that court he made a virulent speech against the existing administration, broadly asserting that there was a plot among its members for destroying the liberties of the nation, and that he was selected as their victim, because they could not corrupt him with their gold. The court took time to consider the matter, and on the 6th, Lord Chief Justice Pratt proceeded to deliver the joint opinion of the judges. This opinion was, that though the commitment of Wilkes and the general warrant were not in themselves illegal, as they were justified by numerous precedents, yet he was entitled to his discharge by virtue of his privilege as a member of parliament; that privilege being only forfeited by members who were guilty either of treason, felony, or a breach of the peace. Wilkes was therefore discharged, but the attorney-general immediately instituted a prosecution against him for the libel in question, and the king deprived him of his commission as colonel in the Buckinghamshire militia, and dismissed his friend Lord Temple from the lord-lieutenancy of Buckinghamshire, and struck his name out of the roll of privy councillors. The liberation of Wilkes was followed by a long inky war. Upon regaining the use of his pen, he wrote a letter to the secretaries of state, in which he complained of the treatment he had received, and accused them of holding in their hands, goods of which his house had been robbed by their messengers. This letter, to which government replied, was printed and distributed by thousands, and considerable numbers of the opposition in parliament rallied round the author of the "North Briton," while the populace began to hail him throughout the country, as the noblest patriot England had known since the days of Algernon Sidney and Hampden. Taking advantage of his popularity, when he found publishers averse to the hazard of publishing his works, he established a printing-press in his own house, where he struck off copies of the proceedings against him, which were sold at one guinea each; a blasphemous and obscene poem entitled, "An Essay on Woman," with annotations; and the forty-five first numbers of the "North Briton," with notes and emendations. His pen was seconded by hundreds of newspaper writers and pamphleteers who wrote on his behalf, and John Wilkes thereby became one of the most popular men in all England. Men, even of talents and probity, though they detested his immoralities,

associated his name with the idea of liberty, and the proceedings against him were designated as the tyrannical efforts of arbitrary power.

{GEORGE III. 1760–1765}

CHANGES IN THE CABINET.

Mr. George Grenville had been first brought into notice by his connexion with Mr. Pitt. He was a man of integrity and of understanding, but he lacked the personal influence, and the abilities which could alone give stability to a political party. His proceedings against Wilkes, moreover, had brought his cabinet into public contempt, and in the month of August he was deprived of the best supporter of his administration, by the death of Lord Egremont. The loss of this nobleman brought his cabinet, indeed, to the verge of dissolution, and a coalition of parties was hence deemed desirable. To this end Bute waited, at his majesty’s commands, on his stern rival, Pitt, to whom he stated the king’s wish of employing political talent and integrity without respect of persons or parties. This was done without the knowledge of the members of the existing cabinet, and Pitt consented to wait upon his majesty at Buckingham House. He was received graciously, and in a conference which lasted three hours, he expatiated on the infirmities of the peace, and the disorders of the state; and the remedy he proposed to adopt, was the restoration of the Whigs to office; they only, he asserted, having the public confidence. This was on Saturday, the 27th of August, and at this time his majesty made no objection to his proposals, and he appointed a second interview on the following Monday. On Sunday, Pitt was closeted with the Duke of Newcastle, in arranging the new administration, in full confidence that the king was acquiescent. Pitt, however, did not find his majesty so pliant on the Monday, as he expected, and he was doomed to experience a complete disappointment of his views and hopes. The king wished to provide for Grenville, by allotting him the profitable place of paymaster of the forces, and to restore Lord Temple to favour, by placing him at the head of the treasury; but although both Grenville and Temple were Pitt’s relatives, he would not consent. “The alliance of the great Whig interests which had supported the revolution government,” he said, “was indispensable.” The whole project, therefore, fell to the ground. His majesty broke up the conference by observing, “This will not do; my honour is concerned, and I must support it.”

Negociation with Pitt having failed, overtures were made to the Duke of Bedford, who, it was thought, possessed sufficient influence—though he was little less unpopular than Bute himself—to support the tottering cabinet. His grace accepted the post of lord president of the council, Lord Sandwich was made secretary of state, and Lord Egmont was placed at the head of the admiralty. Grenville still retained his post, though the Duke of Bedford gave his name to the ministry.

MEETING OF PARLIAMENT, AND FURTHER PROCEEDINGS AGAINST WILKES.

Parliament met on the 15th of November, when his majesty exhorted both houses to cultivate the blessings of peace; to improve the commercial acquisitions of the country; to attend to the reduction of the debts contracted in the late war; to improve

the navy; and to promote domestic union, and discourage the licentious spirit which prevailed, to the utter subversion of the true principles of liberty.

The allusion in his Majesty's speech to the licentious spirit prevalent at that time in England, had reference to Wilkes and his associates. Many men of fashion and dissipation had lived with him and upon him recently as boon companions and partners in debauchery. Together with him, they formed the Dilettanti Club in Palace Yard, and they also revived the Hell-Fire Club of the days of the Duke of Wharton, at Medmenham Abbey, Bucks, where they revelled in obscenity, and made everything that was moral or religious, a subject of their scorn and derision. Over the grand entrance of this abbey was inscribed, _Fays ce que voudras_, "Do what you like;" and the jokes of the members of the club consisted principally in wearing monkish dresses, and drinking wine out of a communion cup to a pagan divinity. For the entertainment of these men, some of whom were even more conspicuous in their profligacy than Wilkes himself, he took a house at the court end of the town, by which he incurred expenses his fortune could not support, and which they were not willing to discharge. They could feast at his table, and drink his claret; but his entertainments and his wit, which they equally enjoyed, must be set down to his own account. Nay, one of his companions, the new secretary of state, Lord Sandwich, one of the most notorious of the whole club, now suddenly turned round upon him, and accused him of leading a profligate and debauched life!

On the return of the commons to their own house, Grenville, aware of the intention of Wilkes to make a formal complaint respecting the breach of privilege, anticipated him by relating what had passed in the arrest and liberation of that member, and by laying the libel on the table. The house by a large majority-resolved, that the 45th No. of the "North Briton" was a false, scandalous, and seditious libel, and ordered that the said paper should be burned by the hands of the common hangman. In reply, Wilkes declared that the rights of all the members had been violated in his person, and he requested that the question of privilege should be at once taken into consideration. The house adjourned this question for one week, but on the same night, Lord Sandwich produced in the house of lords, a copy of the "Essay on Woman," and loudly exclaimed against the profaneness and indecency of this poetical production of Wilkes. His attack on Wilkes surprised most men who heard him, but he was followed by one who had a right to complain. Dr. Warburton, now Bishop of Gloucester, inveighed bitterly on the use which had been made of his name in the annotations, and commented in severe language on the outrageous infidelity of the production, declaring that when the author of it arrived in hell, he would not find one companion there among its "blackest fiends." A day was appointed for bringing John Wilkes to their lordship's bar, to answer to a charge of a breach of privilege; but in the meantime, an event occurred which rendered it impossible for him to appear. In the course of the debate in the lower house, Mr. Martin, member for Camelford, who had been secretary to the treasury during Bute's administration, and had been attacked in the "North Briton," stigmatized Wilkes as a "cowardly, malignant, and scandalous scoundrel." His words were twice repeated, as he looked across the house at the object of his attack, with rage flashing from his eyes. Wilkes seemed to hear with cool indifference, but on leaving the house, he addressed a note to Martin, and a

meeting in Hyde Park was the consequence, in which the former was dangerously wounded. It was reported the next day that he was delirious, and crowds of people surrounded his house, hooting and shouting at his murderers: had he died, the populace would have considered him a martyr in the cause of liberty; but he recovered.

The question of privilege came on in the house of commons on the 23rd of November, and it lasted two whole days. Wilkes was defended by Pitt, who came to the house again enveloped in flannel, and this time supported by crutches. While Pitt defended him, however, he was careful to maintain his own character. He condemned the whole series of “North Britons,” as illiberal, unmanly, and detestable; declaimed against all national reflections, as having a tendency to promote disloyal feelings and disunity: asserted that his majesty’s complaint was well founded, just, and necessary; and declared that the author did not deserve to rank among the human species, as he was the blasphemer of his God, and the libeller of his sovereign. He was not connected with Wilkes, he said, nor had he any connexion with writers of his stamp. At the same time, he reprobated the facility with which parliament was surrendering its own privileges, carefully impressing on the house, that in so doing, he was simply delivering a constitutional opinion, and not vindicating the character of John Wilkes. The speech of Pitt was characterised by great eloquence and acuteness, but the measure was warmly defended by other members, and at the conclusion, a resolution was carried by a large majority, to the effect, “That the privilege of parliament does not extend to the case of writing and publishing seditious libels, nor ought to be allowed to obstruct the ordinary course of the laws in the speedy and effectual prosecution of so heinous and dangerous an offence.” The concurrence of the lords was not obtained without considerable difficulty, and when it was obtained, a spirited protest was signed by seventeen peers, affirming it to be “incompatible with the dignity, gravity, and justice of the house, thus to explain away a parliamentary privilege of such magnitude and importance, founded in the wisdom of ages, declared with precision in their standing orders, repeatedly confirmed, and hitherto preserved inviolable by the spirit of their ancestors; called to it only by the other house on a particular occasion, and to serve a particular purpose, _ex post facto, ex parte, et pendente lite_, the courts below.” On the 1st of December, a conference of both houses took place, when both lords and commons agreed in a loyal address to the king, expressive of their detestation of the libels against him; and Wilkes was ordered to attend at the bar of the commons in a week, should his health permit.

In the meantime—on the 3rd of the month—there was a terrible riot in London occasioned, by the burning of the “North Briton” in Cheapside. The execution of this sentence was entrusted to Alderman Harley, sheriff of London, and he assembled the city officers and the common hangman at the Royal Exchange, to put it into effect. The people, however, manifested a very different spirit from that of their representatives. So violent were they, that Harley was compelled to retreat to the Mansion House, where the lord mayor was sitting, surrounded by members of the common council, who were almost to a man the friends and admirers of Wilkes, and therefore not disposed to take part in the matter. The hangman was compelled to follow the sheriff. He had succeeded in partially burning the paper with a link, when

cheered on by some gentlemen standing at the windows of houses near the spot, the mob rushed upon him, and rescued the fragments, carrying them in triumph to Temple Bar, where a fire was kindled and a large jack-boot was committed to the flames, in derision of the Earl of Bute. The city was restored to its usual tranquillity in about an hour and a half, the mob dispersing of their own accord; but the affair occupied the attention of parliament four days, during which time nothing else was done, except voting a pension of £80,000 as a dowry to the Princess Augusta, the king's sister, who was about to be married to the Duke of Brunswick. In the debate on the subject of the riot, it was fully manifested that the populace of London was generally in favour of Wilkes; but both houses concurred in voting that the rioters were disturbers of the public peace, dangerous to the liberties of the country, and obstructors of national justice. Thanks were also voted to the sheriffs, and an address was presented to his majesty, praying that measures might be taken to discover and punish the offenders.

By their proceedings against Wilkes ministers had surrounded themselves with a maze of perplexity. Actions were brought by the printers, and others arrested under the general warrant, to recover damages for false imprisonment, and a verdict was universally given in their favour. These actions were brought against the messengers: Wilkes had nobler game in view. He brought actions against the two secretaries of state, Lord Egremont and Lord Halifax, and against Robert Wood, Esq., late under-secretary. Egremont was now dead, Halifax stood upon his privilege and defied the court, till relieved by the sentence of outlawry that was passed upon Wilkes, but Wood was condemned to pay £1000 damages to the plaintiff. At this trial, the lord chief justice Pratt was bold enough to declare that general warrants were unconstitutional, illegal, and absolutely void, and to challenge a reference of this opinion to the twelve judges. This was not deemed expedient, and Pratt's judgment respecting the illegality of warrants was shortly afterwards confirmed by the court of king's bench. The boldness of Pratt secured for him great popularity. He was presented with the freedom of the cities of London and Dublin, and others; and in addition to this mark of respect, the corporation of London requested that he would sit for his picture, which was to be placed in Guildhall, as a memorial of their gratitude.

The popularity of Wilkes was at this time increased by an attempt made upon his life by one Alexander Dun, a Scotchman, who sought admission into the patriot's house, and who publicly declared that he and ten others were determined to cut him off. A new penknife was found in his pocket, and for this alleged attempt against the life of a member of parliament, Dun was carried before the commons, who voted him insane, and ordered his dismissal. The court of king's bench, however, committed Dun to prison for want of bail and securities, and looking upon facts only in a cursory light, the people believed that the government was determined to make away with the defender of their liberties. All this tended to render the cabinet so obnoxious, that Horace Walpole was apprehensive that there would have been some violent commotion.

When the day arrived for the attendance of Wilkes at the bar of the house of commons, two medical gentlemen, Dr. Brocklesby and Mr. Graves appeared, and made a declaration that he was unable, from the state of his health, to obey the summons. The house granted a week's delay, and the excuse being repeated, the grant was extended beyond the Christmas recess. At the same time it was ordered that a physician and surgeon of their own appointing should see Wilkes, and report their opinion on his case. These were refused admittance into his house; but to vindicate the character of his own medical attendants, and to have the laugh at the ministry, he called in two Scotch doctors, observing that as the house wished him to be watched, two Scotchmen would prove the most proper spies.

The Christmas recess arrived, and the Christmas festivities afforded a short truce to this war of politicians. Wilkes, who could not have been so ill as represented, went to Paris, where he obtained great admiration by his wit in the salons and soirées of that gay city. He was thus employed when the parliament met on the 19th of January, 1764. This was the day fixed for his appearance, but the speaker produced a letter from him, enclosing a certificate signed by a French physician and a French surgeon, testifying that he could not quit Paris without danger to his life. This certificate wanted the signature of a notary public to give it authenticity, and the house, therefore, resolved to proceed against Wilkes as though he were present. Witnesses and papers were examined, and it was resolved, that No. 45 of the "North Briton," which had been voted a seditious libel, contained expressions of unexampled insolence and contumely toward his majesty, the grossest aspersions upon both houses of parliament, and the most audacious defiance of the whole legislative authority. It was also denounced as having a manifest tendency to alienate the affections of the people from their king, to withdraw them from obedience to the laws, and to excite them to insurrection. On the next day it was further resolved, that Wilkes should be expelled the house, and a new writ was issued for the borough of Aylesbury; a measure which ultimately had the effect of rendering him a popular champion in the struggle between the house of commons and the electors of Middlesex, which defined the power of the representative body in relation to its constituency. Even now it greatly increased the popularity of Wilkes among the great body of the people. On every opportune occasion they loudly expressed their sentiments in his favour. The king and his ministers were compelled to hear whenever they appeared in public the grating and unwelcome exclamation of, "Wilkes and liberty!"

Although ministers had triumphed over Wilkes personally, by obtaining his expulsion from the house, yet they were doomed to suffer a check from a motion naturally arising out of his prosecution. On the 13th of February, it was moved by the opposition, that Wilkes' complaint of breach of privilege should be heard. On this subject they obtained a large majority; his complaint being thrown out, after a stormy debate which lasted three days and one whole night. This, however, was followed by a resolution moved by Sir William Meredith, in which they were not so successful, namely, "That a general warrant for apprehending and securing the authors, printers, and publishers of a seditious libel, together with their papers, is not warranted by law." An adjournment was proposed, but Pitt and others made speeches upon the

subject, and when the house divided, ministers had only the small majority of fourteen upon the question of adjournment. This was virtually a defeat, and the illegality of general warrants was so effectually established by the numbers who voted on the side of the opposition, and by the sentiments of the orators, that henceforth the use of them was wholly discontinued. If, therefore, this prosecution of Wilkes was impolitic, it had at least the effect of settling a great constitutional principle; nor was it long before the measures taken against him effected other alterations in the constitution equally important.

Wilkes having entered an appearance in Westminster Hall, was at length tried and convicted on two indictments, for publishing the 45th Number of the North Briton, and the “Essay on Woman.” He was afterwards outlawed for not appearing in court to receive his sentence, whence the suit he had instituted against Lord Halifax fell to the ground. The cause of Wilkes, however, being identified with that of the constitution, his popularity remained undiminished, and the spirit excited by the proceedings against him was still as rife with bitterness as ever.

PROPOSITION TO TAX THE AMERICAN COLONIES.

It was at this troubled season that George Grenville brought forward a motion for extracting a direct revenue from the colonies. The idea was not altogether new, for such a scheme had been hinted at during Sir Robert Walpole’s administration. At this time it seems to have been revived, by the general complaint heard among the people of England, of the burden of taxation which they were called upon to bear. His majesty proposed such a step, as a just, as well as advantageous measure for relieving the country from the financial difficulties which had been occasioned by a war undertaken for the protection and security of the colonies themselves. Accordingly, a series of resolutions, respecting new duties to be laid on goods imported by the Americans, was brought into the House by Grenville on the 10th of March. These resolutions passed with little notice; General Conway, it is said, being the only member who protested against them; and they received the royal assent on the 5th of April. The minister, also, proposed raising a direct revenue from the colonies in the shape of a stamp-tax, but this was objected to by the opposition, and it was postponed to another session. Certain restrictions, however, were at the same time laid upon the profitable contraband trade carried on by the Americans with the Spanish colonies; a trade alike advantageous to England and the North American colonists, but of which the Spanish government was constantly and bitterly complaining to the court of Great Britain.

OPPOSITION OF THE AMERICANS.

It seems probable that ministers undertook this scheme of taxation, in order to gain popularity. It had that effect in some slight degree. The country gentlemen, in particular, were well pleased with the prospect of the non-increase on the diminution of the land-tax, and other sections of the community hoped eventually to have their burdens lightened by such a measure. In proroguing parliament the king expressed his hearty approbation of it, auguring the augmentation of the public revenues, a unity of the interests of his most distant possessions, and an increase of commerce,

as its natural results. Like the Greek fisherman in Theocritus, all dreamed of gold; but in the course of a few months this pleasant dream was swept away by a strong wind across the Atlantic.

The inhabitants of New England received these “wise regulations” of the British parliament “like knives put to their throats.” Perceiving that the claim made by their mother-country to tax the colonies for her own benefit, and at her own discretion, might possibly introduce a system of oppression, they boldly denied the authority of parliament to levy any direct tax on the colonies, and declared that it was a violation of their rights as colonists, possessing by charter the privilege of taxing themselves for their own support; and as British subjects, who ought not to be taxed without their legitimate representatives. The disaffection of the northern provinces extended to those of the south, and, as a strong measure of resistance, all engaged to abstain from the use of those luxuries which had hitherto been imported from Great Britain. They also made colonial taxation a subject of their petitions to king, lords, and commons, and thus firmly established the principle of resistance to such a measure. Their resistance was confirmed by an unwise measure of Grenville, who determined to intrust the execution of his prohibitory orders to military and naval officers, who were disposed to act with rigour. Government, also, had increased the salaries of judges, which gave rise to an opinion that it was desirous of diminishing their independence; and the governors had recently acted very arbitrarily, and when complaints were made no attention was paid to them, or if a reply was given, it was accompanied with rebuke. The colonists, moreover, were encouraged in their spirit of resistance by the emigration of numbers who had lately left England, and who being disaffected persons, diffused republican sentiments in all the provinces. The seeds of discontent were, in fact, sown far and wide before this new system of taxation was projected, and it had the effect of causing them to germinate and flourish.

WAR WITH THE NORTH AMERICAN INDIANS.

It unfortunately happened, that the news of colonial taxation arrived in America when the colonists were in no very pleasant humour. On quitting Canada, the French government still retained some slight connexion with the native Indians, and partly by their agents, and in part through encroachments made by the British on their hunting-grounds, they were incited to war. The tribes flew to arms, designing to make a simultaneous attack on all the English back-settlements in harvest-time, and though their secret was made known, and their intentions prevented in some places, yet the frontiers of Pennsylvania, Maryland, and Virginia were mercilessly ravaged by them, and the inhabitants in those parts utterly destroyed. The Indians also captured several forts in Canada, and massacred the garrisons; and their flying parties frequently intercepted and butchered the troops that were marching from place to place, and plundered and murdered the traders in the upper part of the country. Success made them more bold, and it seems probable, from the display of courage and of military talent which they manifested, that French officers were among them. They even resolved to advance on the principal force stationed at Fort Pitt, and they marched forward in full confidence of victory. In their route they defeated a detachment under Captain Dalzel, and killed that unfortunate officer, and the soldiers

escaped with difficulty into Fort Detroit. Fort Pitt was now surrounded by them, but they soon abandoned it, in order to attack Colonel Bouquet, who was advancing with a strong corps under his command for its relief. Fearful struggles took place between Colonel Bouquet and the Indians, in which a great number was killed on both sides, but they were finally routed, and as their bravest chiefs had perished, it was supposed that their loss was irreparable. The Indians, however, in the other parts of the country were not discouraged, and they surrounded an escort, and slew about eighty officers and men near the falls of Niagara. Thus disheartened, General Amherst used the powerful influence of Sir William Johnstone, who was enabled to detach the Indians of the Six Nations from the confederacy, and to engage them on the side of the British, and after various skirmishes and surprises, the rest submitted on conditions, or retired into the depths of their native wilds and forests. In the treaty concluded with them all occasions of future quarrels were guarded against; the limits of their territories were accurately defined; their past offences forgiven; and they were re-admitted to the friendship of Great Britain: the Indians on their part solemnly engaging to commit no more acts of violence.

These occurrences had for the most part happened in the summer and autumn of the year 1763. But the recollection of them was, from their very nature, strongly impressed upon the minds of the colonists, when they heard of the system proposed for their taxation. Moreover, every one was armed for the defence of his home and property against the Indians, and being now freed from their terrors in that quarter, they were bold to think that they might be used against their mother-country, should the scheme of colonial taxation not be abandoned. Hence the colonists made a show of resistance by passing strong resolutions against the measure, which were transmitted to their agents in London, to be laid before government. The province of Pennsylvania appointed a new agent to London, in the person of the celebrated Benjamin Franklin, who was instructed to oppose the stamp-act to the very utmost, and indeed every other act that might be proposed to the British parliament to tax the Americans without their consent. A more efficient agent than Franklin could not have been chosen by the Pennsylvanians. Born in humble life, he had, nevertheless, raised himself by genius and steady perseverance, to be a man of property and science, a leading magistrate, a high functionary in their state, a powerful writer, a statesman, and a philosopher.

DOMESTIC OCCURRENCES.

The measures of the new administration were generally approved of in the house of commons, and on dismissing the parliament the king thanked the members of both houses for their wise and spirited exertions, and exhorted them all to employ the present season of tranquillity in perfecting the peace so happily commenced. There was occasion for this exhortation. The cider-tax occasioned many turbulent meetings, which frequently ended in riot, and a great scarcity of provisions caused an increase of robberies and crime to a large amount. These evils were augmented by the discharge of large bodies of soldiers and sailors, who either could not find employment, or from their previous occupation could not settle down into habits of industry. Moreover, country gentlemen and landed proprietors from all parts of the

United Kingdom came to the metropolis, in order to gain posts under government, leaving their estates to be managed by stewards and bailiffs, the results of which were that they involved themselves in debt, and that they raised their rents for the purpose of relieving themselves. Discontent everywhere prevailed, and especially in Scotland and Ireland, and many thousands emigrated to the North American provinces, that they might be able to obtain a subsistence for their families, and at the same time preserve their religion and the customs of their fathers.

This year was marked by many maritime discoveries. A spirit of enterprize, fostered by the munificence of the king, was displayed, indeed, equal to that which distinguished the 15th and 16th centuries, and which produced advantages to the country of equal importance to those produced by the recent war. Byron, Wallis, Carteret, Cook, and Mulgrave, all set sail during this year, and in a few years discoveries were made which outrivalled all which had occurred since the expeditions of Columbus.

During this autumn Pitt broke his recently-formed league with the old Duke of Newcastle, telling him in a letter that he resolved henceforward to act for himself, to keep himself free from all stipulations, and to oppose or support measures in parliament upon his own responsibility. It is not clear why Pitt came to this resolution; but perhaps it may have arisen from his growing infirmity of body and temper, and of his overbearing pride. From his letter, in fact, it is made very manifest that his pride was offended, because the system of war which he had so long and eloquently defended was given up “by silence” in a full house. Hence it was, probably, that he was induced to stand single, and dare to appeal to his country solely upon the merits—real or supposed—of his principles. At all events, it seems certain that his resolution did not arise, as some have imagined, from dark and inexplicable intrigue, though it may wear that imposing aspect. But after all, as it has been well observed, it is next to impossible to understand the extraordinary alternations of alliance, neutrality, and opposition, between Pitt and the old Duke of Newcastle.

In the course of this year, the treaty of Fontainbleau was somewhat shaken by a French ship of the line having seized Turk’s Island, in the West Indies, and making the English inhabitants prisoners. The Spaniards also annoyed and interrupted the English logwood-cutters at Honduras, and were supposed to have seized a ship in the Mediterranean. These occurrences happened during the recess of parliament, but before the houses met, both the court of France and Spain disavowed all hostile proceedings, and gave explanations to the English cabinet, which were deemed satisfactory. It was evident, however, that the Bourbon courts were not satisfied with the terms of the recent peace, and that their weakness alone prevented them from renewing the struggle: their chagrin and enmity were but ill-concealed under the mask of friendship, which defeat in the field of battle had compelled them to wear.

CHAPTER II.

{GEORGE III. 1765–1769}

The Meeting of Parliament..... Debates on Colonial Taxation..... Instability of the Cabinet..... Attempts to form a new Administration..... Opposition to the Stamp Duties in America..... Embarrassment of Ministers and Meeting of Parliament..... Sentiments of the Americans on the Declaratory Act..... The Dissolution of the Rockingham Cabinet..... Decline of Lord Chatham's Popularity..... Meeting of Parliament..... East India Question..... American Taxation..... Changes in the Ministry..... Proceedings in America..... Domestic Troubles and Commotions..... The Return of Wilkes, &c. Resignation of Lord Chatham..... The Affairs of Wilkes..... Meeting of Parliament..... Debate on Wilkes, &c. Debates on America..... East India Affairs..... Prorogation of Parliament, &c. Discontents in England and Ireland.

{1765}

THE MEETING OF PARLIAMENT.

Parliament assembled on the 10th of January, 1765. The leading topics of the king's speech referred to continental events, from which he augured the continuation of peace. In allusion to American taxation and American discontents, he recommended the carrying out of Grenville's measures, and the enforcing obedience in the colonies. He remarked:—"The experience I have had of your former conduct makes me rely on your wisdom and firmness, in promoting that obedience to the laws, and respect to the legislative authority of this kingdom, which is essentially necessary for the safety of the whole, and in establishing such regulations as may best connect and strengthen every part of my dominions for their mutual benefit and support." In this speech, also, his majesty announced the approaching marriage of his youngest sister, the Princess Caroline, with the Prince Royal of Denmark: a union which was ultimately attended with tragical consequences.

Early in this session complaints were made by the opposition that the court of Spain had not paid the Manilla ransom, which gave rise to an angry debate; the ministers warmly defending the conduct of the Spaniards in this particular. An attempt was also again made by the opposition to procure a resolution against the illegality of general warrants, but decision on this point was eluded, and the previous question carried. Another motion, to restrain the attorney-general in his power of filing informations _ex officio_, which was made by the opposition, was likewise negatived by a ministerial majority. But these were only so many preludes to a storm which took place on the subject of colonial taxation.

DEBATES ON COLONIAL TAXATION.

It has been seen that the measure of laying a duty on stamps had been postponed, in order to give the colonists time to propose any other mode of taxation in lieu of it more agreeable to their own feelings. The agents of America, however, all replied that they were instructed not only to oppose the stamp-tax, but every other bill which assumed as a principle the right of taxing the colonies. They urged in reply to the statement, that it was reasonable for America to contribute her proportion toward the general expenses of the empire; that, "America had never been backward in obeying the constitutional requisitions of the crown, and contributing liberally, in her own assemblies, towards the expenses of wars, in which, conjointly with England, she had

been engaged; that in the course of the last memorable contest, her patriotism had been so conspicuous, that large sums had been repeatedly voted, as an indemnification to the colonists for exertions allowed to be far beyond their means and resources; and that the proper compensation to Britain for the expense of rearing and protecting her colonies was the monopoly of their trade, the absolute direction and regulation of which was universally acknowledged to be inherent in the British legislature."

In all ages of the world sovereign states have assumed to themselves the right of taxing their dependant colonies for the general good. A glance at ancient history, however, is sufficient to prove that there is danger in the expedient. By colonial taxation Athens involved herself in many dangerous wars, which proved highly prejudicial to her interests, and which reads a powerful lesson to modern states and kingdoms on this subject. The British king and British cabinet, however, had, like the Athenians, to learn a lesson from experience, and not from the pages of history. Conceiving that they had gone too far to recede, they were resolutely determined not to yield their claim of right. The memorials were not even allowed to be read in the house, for the British legislature, with few exceptions, considered the right which they questioned to be indisputable. Fifty-five resolutions of the committee of ways and means, relating to this branch of the revenue, were agreed to by the commons, and they were afterwards incorporated into an act for laying nearly the same stamp-duties on the American colonies as were payable at the time in England. The debate on this subject was generally languid, but on Townshend venturing to assert, that the Americans were "children planted by our care and nourished by our indulgence," Colonel Barre, who had served beyond the Atlantic, and knew both the country and people well, exclaimed vehemently, "They planted by your care! No! your oppression planted them in America—they fled from your tyranny to a then uncultivated and inhospitable wilderness, exposed to all the hardships to which human nature is liable. They nourished by your indulgence! No! they grew by your neglect of them; your care of them was displayed, as soon as you began to take care about them, in sending persons to rule them who were the deputies of deputies of ministers—men whose behaviour on many occasions has caused the blood of those sons of liberty to recoil within them—men who have been promoted to the highest seats of justice in that country, in order to escape being brought to the bar of justice in their own. I have been conversant with the Americans, and I know them to be loyal indeed, but a people jealous of their liberties, and who will vindicate them if ever they should be violated; and let my prediction of this day be remembered, that the same spirit of freedom which actuated that people at first will accompany them still." The prediction of Colonel Barre was treated as emanating from his loss of the regiment which he had commanded in America; and the bill passed both houses without any difficulty, and it received the royal assent by commission on the 22nd of March. It passed from a lack of knowledge of American affairs; from an indifference to the interests of the colonists; and from sheer cupidity. The profits which we had derived from commerce with the Americans, and which were the ostensible object proposed in planting the colonies, were not sufficient: if we could obtain it, we must share in their profits likewise. But this was a question which time only could solve; a riddle,

which events must explain.

INSTABILITY OF THE CABINET.

Ministers seemed to have carried matters with a high hand in parliament during the previous debates, but there were nevertheless causes at work which tended to weaken and dissolve their administration. The Americans had already put their threats into execution concerning their abstinence from the use of British goods, and this created great alarm among shipowners, merchants, manufacturers, artizans, and labourers. The complaints of the two latter classes of the community were increased by a scarcity of bread, and the high price of provisions, which were ascribed to the mal-administration of the ministers. These popular discontents, however, might have been disregarded, had not Grenville given offence to a royal personage, whose resentment would have ensured the downfall of even a much greater and more popular man than the prime minister.

About a week after he had given his assent to the American Stamp Act, it was reported that his majesty was seriously ill, and it would appear that his illness was a slight attack of that fearful malady which thrice afflicted him during his long reign, and incapacitated him for his kingly duties. This time his malady was transient; but, taking warning by it, he acquainted his ministers that he was anxious for a Regency Bill, and told them the particulars of his intention. The sketch of such a bill was drawn up by Fox, now Lord Holland, which left the regent to be named by the king, and which, among other members of the royal family, omitted the name of the queen. The queen’s name was subsequently added, but no mention was made of the Princess-dowager of Wales. The king himself proposed that he should be invested with power, from time to time, by instruments under his sign manual, to appoint either the queen or any other person of the royal family, usually residing in Great Britain, to be guardian of his succession and regent of the kingdom, until his successor should have attained his eighteenth year. A bill to this effect was carried in the upper house, but in the commons a motion was made requiring the king to name those persons whom he would intrust with so important a charge. This motion was negatived, and a question was then raised as to the construction of the words “any other member of the royal family,” and the answer given was, that they meant “the descendants of George the Second.” This interpretation would have excluded the princess-dowager from all share in the public councils, and therefore an amendment was moved at the next reading to insert her name next to that of the queen. This amendment was carried by a large majority; but it was foreseen that the king would resent the insult put upon his mother in both houses, and would attempt to rid himself of Mr. Grenville and Lord Halifax, who had omitted to insert her name in the bill at the very outset of the proceedings.

On the 15th of May, the king went in person to give his assent to this bill. On that occasion a mob of silk-weavers and others, from Spitalfields, went to St. James’s Palace with black flags and other symptoms of mourning and distress, to present a petition, complaining that they were reduced to a state of starvation by the importation of French silks. Both houses of parliament were surrounded by them, where they insulted various members, and even terrified the lords into an

adjournment. In the evening they attacked Bedford-house, and began to pull down the walls, declaring that the duke had been bribed to make the treaty of Fontainbleau, and that it had brought poverty and all other curses into England. The riot act was read, and the mob dispersed, but the streets were crowded with soldiers for some days for fear of an outbreak. Reports were also spread of mutinies among the sailors at Portsmouth, insurrections among the Norwich weavers, and riots in Essex and Lancashire. The cabinet and country alike seemed to be fast going to pieces; whence his majesty, combined with the insult offered to his mother, resolved to make some attempt to form a new administration, hoping thereby to effect a change in the aspect of public affairs.

ATTEMPTS TO FORM A NEW ADMINISTRATION.

In a letter written to the Earl of Hertford, when the yells of the populace of London were ringing in his ears, Mr. Burke writes:—“The Regency Bill has shown such want of capacity in the ministers, such an inattention to the honour of the crown, if not such a design against it; such imposition and surprise upon the king, and such a misrepresentation of the disposition of parliament to the sovereign, that there is no doubt a fixed resolution to get rid of them all—unless perhaps of Grenville—but principally of the Duke of Bedford; so that you will have much more reason to be surprised to find the ministry standing by the end of next week, than to hear of their entire removal. Nothing but an intractable temper in your friend Pitt can prevent a most admirable and lasting system from being put together, and this crisis will show whether pride or patriotism be predominant in his character: for you may be assured he has it now in his power to come into the service of his country upon any plan of politics he may choose to dictate, with great and honourable terms to himself and to every friend he has in the world, and with such a strength of power as will be equal to everything but absolute despotism over the king and kingdom. A few days will show whether he will take this part, or that of continuing on his back at Hayes, talking fustian, excluded from all ministerial, and incapable of all parliamentary service: for his gout is worse than ever, but his pride may disable him more than his gout.”

At the very time Burke wrote thus, negociations were in progress with Pitt. For when ministers went to the king on the 16th of May, to receive his commands for his speech at the end of the session, he had given them to understand that he would only have it prorogued, since he intended to make a change in the administration. In consequence of this determination, his majesty sent his uncle, the Duke of Cumberland, to Hayes, in Kent, to treat with Pitt. The final reply of Pitt to the offers is said to have been, “that he was ready to go to St. James’s provided he might carry with him the constitution.” A total change of men, measures, and counsels was involved in this reply; but the king had some “friends” whom he wished to retain in their official situations, and such a sweeping change could not be conceded. The Duke of Cumberland continued his endeavours to form a ministry for a day or two, but no one, possessing any merit, would undertake office when it was known that Pitt had refused, and the king was compelled to retain his old ministers. This was a mortifying circumstance in itself, but it was rendered doubly so by the insolent behaviour of some of the members of the cabinet. When he desired to know the

conditions of their continuance in office, they peremptorily demanded a royal promise of never consulting the Earl of Bute; the instant dismissal of Mr. Mackenzie, his lordship’s brother, from his high offices in Scotland; the deprivation of the paymastership of the forces, held by Lord Holland, which should be given to a member of the House of Commons; the nomination of Lord Granby to be head of the army; and the discretionary power of nominating to the government of Ireland whoever they pleased. The king expressed his anger and astonishment at these hard terms, and bade them return at ten o’clock at night for his answer. A partial compliance, however, was necessary, and before the appointed hour he sent them word by the lord chancellor that he would not bind himself by a promise never to consult Bute, though he acquiesced in the propriety of not letting him interfere in the councils of the state; that he consented to displace Mr. Mackenzie from his office, as well as Lord Holland; but that he absolutely refused the article about Lord Granby. Ministers now took time to consider, but they were too fond of office to retire without being actually compelled. On the following morning they gave up the point of Lord Granby, and contented themselves with the promise of not permitting Bute to interfere. They were, therefore, to continue in office; and Charles Townshend was made paymaster of the forces, while Lord Weymouth was appointed to the government in Ireland. But the king considered that he was dishonoured, and that he was held in thraldom by his ministers, whence he soon made fresh efforts to deliver himself. Again he negociated with Pitt, and again negociations with him fell to the ground. Pitt could not engage without Lord Temple, and Temple, when sent for, raised objections which rendered the whole scheme abortive. But the king was resolute in his determination to free himself from the chains by which his ministers had enthralled him. Early in July, he once more applied to his uncle, who undertook to treat with the Duke of Newcastle, whose parliamentary weight was nearly a counterpoise to Pitt’s oratory and popularity. Newcastle joined Cumberland in addressing himself to the more moderate section of the opposition, and at length a new ministry was formed. The Marquis of Rockingham became head of the treasury; General Conway became one of the secretaries of state, and was intrusted with the House of Commons; the Duke of Grafton was the other secretary of state; Mr. Dowdeswell was the chancellor of the exchequer; the Earl of Hertford was made lord-lieutenant of Ireland, instead of Lord Weymouth; the president’s chair, vacated by the Duke of Bedford, was given to Lord Winchelsea; and the Duke of Newcastle contented himself with the privy seal. The celebrated Edmund Burke was engaged as private secretary by Lord Rockingham, and now, for the first time, had a seat in parliament. There seemed a reasonable hope that this ministry would obtain strength and durability, but it wanted Pitt for its supporter; and it was weakened in October by the death of the Duke of Cumberland. This blow was more severely felt, because there was a want of union in the members of this cabinet from the first, and where there is no union there can be no real strength. Moreover, the Earl of Rockingham, though one of the most honest, honourable, and well-intentioned men in existence at that period, lacked the ability for collecting the scattered energies of party, and forming them into a system, whence it was soon found that his cabinet was unpopular; and, at no distant period of time, it was compelled to give place to another. In the whole course of its existence, indeed, it exhibited the lack of that

vitality which could alone make it memorable and enduring.

{GEORGE III 1765–1769.}

OPPOSITION TO THE STAMP DUTIES IN AMERICA.

The fatal effects of Grenville’s Stamp Act were soon made manifest—the storm which the anticipation of it had raised, grew into a perfect hurricane as soon as it was known in America that it was consummated. Throughout the whole country a disposition existed to resist to the death, rather than submit. The episcopalian and aristocratic colonists of Virginia, alike with the presbyterian and democratic colonists of New England, denounced the measure in the strongest language, and displayed strong feelings of dislike to it. Nay, the Assembly of Virginia, which hitherto had been pre-eminent in loyalty, was now the first to set an example of disobedience. The House of Assembly there was shaken by the eloquence of Patrick Henry, who took the lead in the debate. In a resolution which he brought forward against the Stamp Act, Henry exclaimed—“Cæsar had his Brutus; Charles I. his Oliver Cromwell; and George III.”—the orator at this point was interrupted by a voice crying “treason!” and, pausing for a moment, he added, “and George III. may profit by that example. If that be treason, make the most of it.” When tranquillity was restored, the assembly voted a series of resolutions, declaring that the first settlers in Virginia had brought with them all the privileges and immunities enjoyed by the people of England; that they possessed the exclusive right of taxing themselves in their own representative assemblies, which right had been constantly recognised by the king and parliament of Great Britain; and that every attempt to vest such a power in any other person or persons was illegal, unconstitutional, and unjust, and had a tendency to destroy both British and American independence. This had a great effect on the other colonies, and the house of representatives of Boston suggested that a congress should be held at New York, whither each province should send deputies to concert measures for averting the grievance of the Stamp Act. Nine out of thirteen of the colonies sent their delegates to this congress, and fourteen strong resolutions were passed condemnatory of the bill; and three petitions were concocted—one to the king, another to the lords, and a third to the commons. From the decorous manner adopted in its proceedings little alarm was excited, but by it an important point was gained to the Americans—a closer connexion was established by the meeting among the leading men of the various colonies; and thus a way was prepared for a more general and extensive combination should it be required by circumstances.

It was not in the assemblies alone that resistance to the Stamp Act was manifested. Ominous proceedings were adopted by the public. As soon as the news of it arrived in America, at Boston the colours of the shipping were hoisted half-mast high, and the bells were rung muffled; at New York the act was printed with a skull and cross bones, and hawked about the streets by the title of “England’s Folly, and America’s Ruin;” while at Philadelphia the people spiked the very guns on the ramparts. The public irritation daily increased, and when at length the stamps arrived, it was found impossible either to put them into circulation, or to preserve them from destruction. The distributors were even forced publicly to renounce, on oath, all concern with

them; and riots broke out in Boston, and several other cities, at which the public authorities were compelled to connive. Law-agents generally resolved to forego the practice of their profession rather than use stamps, and all stamped mercantile or custom-house papers were seized as the ships came into port, and publicly committed to the flames. By the 1st of November, the time when the act came into operation, not a sheet of stamped paper was to be found; and, therefore, all business which could not be legally carried on without it, was brought to a stand—the courts of justice were closed, and the ports shut up.

These measures were followed by others far more injurious to the interests of Great Britain. Merchants entered into solemn engagements not to order any more goods from England; to recall the orders already given, if not fulfilled by the 1st of January, 1766; and not to dispose of any goods sent to them on commission after that date, unless the Stamp Act, and even the Sugar and Paper-money Acts were repealed. Measures were also taken to render the importation of British manufactures unnecessary. A society for the promotion of arts and commerce was instituted at New York, and markets opened for the sale of home-made goods, which soon poured into them from every quarter. Linens, woollens, paper-hangings, coarse kind of iron-ware, and various other articles of domestic life were approved by the society, and eagerly purchased by the public. People of the highest fashion even preferred wearing home-spun, or old clothes, rather than purchase articles which could conduce to the welfare of Britain; and lest the new manufactories should fail from want of materials, many entered into an engagement to abstain from the flesh of the lamb. All classes were animated by the spirit of resistance to their mother-country, and resolutions began to be circulated of stopping exports as well as imports, and of preventing the tobacco of Virginia and South Carolina from finding its way into the British markets. The flame even spread to the West Indian plantations; for in the islands of St. Christopher and Nevis, all stamps were committed to the flames, and the distributors compelled to resign office. Here was evidently work for the British Cabinet during the next session of parliament, and we proceed to show how they acted.

EMBARRASSMENT OF MINISTERS AND MEETING OF PARLIAMENT.

During the recess, ministers, who were divided in opinion and thwarted by the king, could do nothing. It would not appear, indeed, that the subject was considered of such vital importance as to demand instant attention and extraordinary exertions. Parliament met on the 17th of December, but it was only to be prorogued for the Christmas holidays, and the king merely mentioned in his speech, that something had occurred in America which would demand the attention of the legislature. In the meantime a meeting was held at Rockingham-house, for the purpose of arranging measures against the opening of the session, and particularly with respect to America. Yet no vigorous measures were resolved on, and all which they did decide upon was merely the terms in which the king’s speech should be comprised when parliament reassembled.

{A.D. 1766}

Parliament reassembled on the 14th of January, when his majesty spoke more at length on the subject of the American colonies, and said that the papers were ordered to be laid before them. The subject was pointed out to the members as the principal object of their deliberation, and it was left to their wisdom, in full confidence the judgment and moderation of the two houses would conciliate the colonists without compromising the rights of the British legislature. Everything had been done, his majesty said, by the governors, and the commanders of the forces in America, for the suppression of riot and tumult, and the effectual support of lawful authority—they had failed, and the rest was left to them.

His majesty's speech was followed by the presentation of the petitions from America, and of numerous petitions from the great manufacturing towns of the kingdom, which set forth the present ruin of all classes, with the prospective derangement of the national finances; all which seemed to declare that the time was arrived when effectual measures should be taken for their redemption. Then succeeded the debate. It was opened in the commons by Mr. Nugent, who condemned the opposition made by the colonists, to what he deemed a reasonable and easy tax, yet expressed his willingness to abandon it, provided they would solicit its repeal as a boon, and acknowledge the right of the British legislature to impose it: with him "a peppercorn as an acknowledgment of a right was of more value than millions without such a concession." Burke followed; but nothing more is known of his first speech in parliament than that he astonished the house by the force and fancy of his eloquence, and that he gained by it the golden opinion of Pitt. That more experienced orator next spoke, and his sentiments were more to the purpose. After condemning the daring measures adopted by the late administration, and blaming the indecision and tardy efforts of their successors, against whom, as men, he had nothing to allege, as they were men of fair characters, and such as he rejoiced to see in his majesty's service, bowing with grace and dignity to them, he observed—"Pardon me, gentlemen, but confidence is a plant of slow growth in an aged bosom; youth is the season of credulity. By comparing events with each other, and reasoning from effects to causes, methinks I plainly discover an overruling influence. I have had the honour to serve the crown, and if I could have submitted to influence, I might have continued to serve, but I would not be responsible for others. I have no local attachments: it is indifferent to me whether a man was rocked in his cradle on this side, or the other side of the Tweed. I sought for merit wherever it was to be found. It is my boast that I was the first minister who looked for it, and found it in the mountains of the north. I called it forth, and drew into your service a hardy and intrepid race of men!—men who, when left to your jealousy, became a prey to the artifices of your enemies, and had gone nigh to overturn the state in the war before the last. These men, in the last war, were brought to combat on your side; they served with fidelity as they fought with valour, and conquered for you in every part of the world. Detested be the national reflections against them!—they are unjust, groundless, illiberal, unmanly. When I ceased to serve his majesty as a minister, it was not the country of the man by which I was moved; but the man of that country wanted wisdom, and held principles incompatible with freedom."

The great orator proceeded to observe, that when the resolution of taxing America was first taken he was ill in bed, and if he could have been brought to the floor of that house, he would have given his firm testimony against the measure. He then expressed a hope that the members of the British legislature would not consider it a point of honour, or themselves bound to persevere in carrying out what they had begun. His opinion was, that Great Britain had no right to lay a tax on the American colonies; but at the same time he uttered this seemingly contradictory opinion—that her authority over them was sovereign in all cases of legislation. He said—"The colonists are subjects of this kingdom, equally entitled with yourselves to all the natural advantages of mankind, and the peculiar privileges of Englishmen: equally bound by its laws, and equally participating in its free constitution. Taxation is no part of the legislative power. Taxes are the voluntary gift and grant of the commons alone. In legislation, the three estates of the realm are alike concerned; but the concurrence of the peers and the crown to a tax is only necessary to clothe it with the form of a law. The gift and grant is of the commons alone." Having shown in what way the great bulk of the land had passed into the hands of the commons, he remarked—"When, therefore, in this house, we give and grant, we give and grant what is our own. But in an American tax what do we do? We, your majesty's commons of Great Britain, give and grant to your majesty—what? our own property?—No; we give and grant the property of your majesty's commons of America! It is an absurdity in terms. The distinction between legislation and taxation is essentially necessary to liberty. The crown, the peers, are equally legislative powers with the commons. If taxation be a part of simple legislation, the crown and the peers have rights to taxation as well as yourselves—rights which they will claim, which they will exercise, whenever the principle can be supported by power." Pitt then proceeded to combat the arguments of those who asserted that America was represented in the British parliament. "I would fain know," said he, "by whom an American is represented here. Is he represented by any knight of the shire, in any county in this kingdom? Or will you tell him that he is represented by any representative of a borough—a borough which perhaps its own representatives never saw? This is what is called the rotten part of the constitution. It cannot last a century: if it does not drop, it must be amputated." Pitt concluded by reasserting, that the commons of America, represented in their assemblies, had ever been in possession of the constitutional right of granting their own money; and this kingdom had ever been in the possession of the rights of binding the colonies by her laws, and by her regulations and restrictions in trade, navigation, and manufactures, and in fact in everything, except taking money out of their pockets without their free and full consent.

The house was awed by Pitt's oratory, and, for some time, no one rose to reply. General Conway at length broke the silence by frankly declaring that his sentiments were generally conformable to those of Pitt; and by excusing ministers for their tardy notice of the subject, on the grounds that the first news of the troubles were vague and imperfect. In denying the continued ascendency of Bute, however, the general spoke with great warmth, utterly disclaiming it for himself, and, as far as he could discern, for all the members of the cabinet. Grenville, who followed, did not treat Pitt with such urbanity. He defended himself and his measures with great warmth and

ability, and boldly declared that the seditious spirit of the colonies owed its birth to the factions in the house of commons, and that gentlemen were careless of the consequences of what they uttered, provided it answered the purposes of opposition. As he ceased speaking, several members rose together; but Pitt was among them, and a loud cry was made for him, so that the rest gave way, and left him to answer the attack. Taking no notice of the denial which Conway gave to his charge concerning Bute's holding paramount influence in the cabinet, which denial he could not with justice gainsay, he confined his remarks to Grenville's arguments and grave charge. Since, he said, that member had gone into the justice, policy, and expediency of the Stamp Act, he would follow him through the whole field, and combat all his arguments. He bitterly complained that Grenville should have designated the liberty of speech in that house as a crime; but declared that the imputation should not prevent him from uttering his sentiments upon the subject. He then proceeded thus:—"The gentleman tells us America is obstinate—America is almost in open rebellion. I rejoice that America has resisted. Three millions of people, so dead to all the feelings of liberty as voluntary to submit to be slaves, would have been fit instruments to make slaves of the rest." Pitt then said, that in all our wants of money, no minister, since the revolution, had ever thought of taxing the American colonies; that he had, when in office, refused to burn his fingers with an American Stamp Act; and he recapitulated his arguments to prove that legislation and taxation were two different things, and that while we had a right to regulate the trade of the colonists, we could not legally or justly impose taxes upon them. He then asserted, that the profits to Great Britain from the trade of the colonies were two millions a year, and that this was the sum which carried England triumphantly through the last war, and the price America paid us for protection. "And shall," he asked, "a miserable financier come with a boast, that he can fetch a peppercorn into the exchequer by the loss of millions to the nation?" He added—"I am convinced the whole commercial system of America may be altered to advantage: you have prohibited where you ought to have encouraged, and you have encouraged where you ought to have prohibited: improper restraints have been laid on the Continent in favour of the islands. Let the acts of parliament, in consequence of treaties, remain; but let not an English minister become a custom-house officer for Spain or for any foreign power. Much is wrong; much may be amended for the general good of the whole. The gentleman must not wonder that he was not contradicted, when, as a minister, he asserted the right of parliament to tax America. I know not how it is, but there is a modesty in this house which does not choose to contradict a minister—even your chair, sir, looks towards St. James's. I wish gentlemen would think better of this modesty; if they do not, perhaps the collective body may begin to abate of its respect for the representative. A great deal has been said without doors of the power, the strength of America—it is a topic that ought to be cautiously meddled with. In a good cause, on a sound bottom, the force of this country can crush America to atoms; but on this ground, on the Stamp Act, when so many here will think it a crying injustice, I am one who will lift up my hands against it;—in such a cause your success would be hazardous. America, if she fell, would fall like a strong man; she would embrace the pillars of the state, and pull down the constitution along with her." Pitt, then deprecating the conduct of those who judged the Americans with an eye of severity, said—"I acknowledge they

have not acted in all things with prudence and temper; they have been wronged; they have been driven to madness by injustice. Will you punish them for the madness you have occasioned? Rather let prudence and temper come first from this side. I will undertake for America that she will follow the example. There are two lines in a ballad of Prior, on a man's behaviour to his wife, so applicable to you and your colonies, that I cannot help repeating them:—

'Be to her faults a little blind; Be to her virtues very kind.'"

Pitt concluded by proposing that the Stamp Act should be repealed, absolutely, totally, and immediately; but at the same time he advised, that the repeal should be accompanied by the strongest declaration of the sovereign authority of this country over the colonies, in everything that relates to trade and manufactures—in fact, in everything except taking their money out of their pockets without their consent.

This speech of Mr. Pitt had a potent effect upon the administration and the country at large. Nearly all the ministers coincided in his views, and petitions, which poured into the house from all parts against the stamp act, and which had been imperiously rejected by the late cabinet, were received with all due deference. Burke made two speeches against it, which were commended by Pitt, and filled the town with wonder. So great was the change in public opinion upon the subject, that a bill was brought in by the ministers for the repeal of the act, which bill was passed by a great majority. It was accompanied by a declaratory bill, setting forth the supreme right, sovereignty, &c. of Great Britain over her colonies in all other matters of legislation, and reprobating the tumultuous proceedings of the colonists. The repeal act was sent up to the lords, where it encountered a violent opposition, but it passed toward the end of March, when it received the reluctant consent of the crown. Sixty-one peers entered a strong protest against its non-taxing principle, and it was observed that in both houses the members belonging to the royal household voted with the opposition: a strong proof of his majesty's feeling upon this subject.

It was asserted by some that ministers were "bullied" into the repeal of the stamp act by Pitt. This was manifestly unjust, both to the great orator and the ministers themselves. In this session they showed themselves equally ready to redress grievances at home as in America. Thus they proposed and carried a repeal of the obnoxious cider-tax, laying on a different duty, and the mode of collecting it; they passed an act for restraining the importation of foreign silks; and they abolished the old duties on houses and windows, and settled the rates with greater equity toward the middle and lower classes of society. They also appeased the general apprehension of a scarcity of bread, by orders to prevent the exportation of corn, and by enforcing the old laws against monopoly, forestalling, and regrating. Moreover, they passed a bill for opening free ports in the islands of Dominica and Jamaica; made several new and important regulations in the commercial system of the colonies; and took off some burdensome restrictions. Finally, they promoted the extension of trade in general by a commercial treaty with Russia, and they obtained from France a liquidation of those bills which had been left unsettled since the cession of Canada.

Still, though the legislative acts of this administration were of great importance to the country, and were calculated to insure popularity, its doom was sealed. By a large portion of the community, the members of which it was composed were considered as intruders, who kept Pitt out of office, and they had lost the confidence of the king by the repeal of the Stamp Act. The resentment of the king was also excited by their omitting to procure a supply of money for his younger brothers. Sensible of their weakness, the Duke of Grafton resigned office, and the seals which he resigned were given to the Duke of Richmond. When he resigned he declared that he had no fault to find with his colleague's, except that they wanted strength, and that his opinion was, Mr. Pitt alone could give vigour and solidity to any administration in the present state of affairs. Under him, his grace said, he was "willing to serve in any capacity, not merely as a general officer, but as a pioneer: under him he would take up a spade or a mattock." Such was the situation in which the ministers found themselves at the close of this session, which was prorogued early in June.

SENTIMENTS OF THE AMERICANS ON THE DECLARATORY ACT.

The manner in which the repeal of the Stamp Act was received in America seemed to justify the measure. Although accompanied with the Declaratory Act, it was welcomed by many persons among the higher classes, of honest and upright mind, with great satisfaction. Washington declared that those who were instrumental in procuring the repeal were entitled to the thanks of all well-wishers to Great Britain and her colonies. There were fierce republican spirits, however, in New England, who viewed the Declaratory Act in the same light which they had viewed the Stamp Act; and as soon as the first burst of joy had subsided, this was made the subject of their declamation, and a stimulus to popular excitement. Public writers were employed to prevent a return of harmony between Great Britain and her colonies, and though addresses of thanks were voted by the assemblies to the king, this was but an evanescent show of gratitude. The same temper was found especially to prevail in the assembly of Massachusets against the Declaratory Act, as had been displayed against the Stamp Act, and the spirit of resistance soon spread to the other colonies. The right of legislative authority assumed by Great Britain over her colonies was loudly questioned, and bills were passed in the assemblies independently of the British parliament, and in defiance of our declared sovereign legislative right. One breach was therefore healed by the repeal of the Stamp Act, but another was opened by the scarcely less obnoxious act with which it was accompanied. A tree of liberty had been planted, and there was a universal disposition to preserve its leaves and its fruits from the touch of kingly and sovereign power.

THE DISSOLUTION OF THE ROCKINGHAM CABINET.

The seeds of the dissolution of the ministry, as before shown, were thickly scattered, and it was easy to foresee that the event was at no great distance. Its fall, however, might have been retarded for a little space, had it not been for the intrigues of the chancellor, Henry Earl of Northington. In order to discredit the cabinet, that nobleman started numerous difficulties on some legal points that were submitted to his judgment, and set on foot several intrigues, which accelerated its downfall. The first token of his defection appeared in the strong dissatisfaction which he exhibited

on account of the commercial treaty with Russia, and it was soon after made more fully manifest in a meeting of ministers on the subject of the government of Canada. There appears to have been no good ground for his opposition, but Northington panted for retirement, and longed to serve his ancient friend Pitt; whence it pleased him to denounce a report drawn up and submitted to the council on this subject as theoretical, visionary, and unworthy of practical statesmen. The meeting broke up without coming to any conclusion, and before another could be convened, Northington demanded an audience of the king; resigned under the pretence that the present ministry was unable to carry on the government; and recommended that his majesty should call Pitt into his councils. In consequence of this, Pitt received the personal commands of his majesty to form a new administration, offering him a _carte blanche_ for its formation.

Hitherto Pitt had manifested great patriotism, having served his country, apparently, for the love of it alone. That he was ambitious, however, he now proved. In reply to his majesty's commands he spoke of his infirmities, and—although he was only fifty-eight years old—of his great age. Under these circumstances he proposed taking to himself not the premiership, with the direction of the house of commons, but the office of privy-seal, which implied his exaltation to the peerage. The king and the country alike stared with astonishment at this proposition, but his views were not thwarted, and he proceeded to form his own cabinet. Negociations failed with Lord Temple, the Marquess of Rockingham, Lord Gower, Mr. Dowdeswell, and Lord Scarborough. In the midst of them, however, Pitt received an autograph note from his majesty, announcing his creation as Earl of Chatham, and thus stimulated, he proceeded in his task. On the 2nd of August the members of the new cabinet were formally announced in the Gazette. Pitt, as Earl of Chatham, took the office of privy-seal; Lord Camden was made chancellor; the Earl of Shelburne was appointed one of the secretaries of state; General Conway continued in office as the other; the Duke of Grafton was made first lord of the treasury; Charles Townshend became chancellor of the exchequer; Sir Charles Saunders succeeded to the admiralty; and the Earl of Hillsborough was nominated first lord of trade. Several changes were also made in the subordinate places of the treasury and the admiralty boards, and the strange medley, which soon became more mixed and various, has been thus described by Burke:—"He [Lord Chatham] made an administration so chequered and speckled; he put together a piece of joinery so crossly indented and whimsically dovetailed; a cabinet so variously inlaid; such a piece of diversified mosaic; such a tesselated pavement without cement; here a bit of black stone, and there a bit of white; patriots and courtiers; king's friends and republicans; Whigs and Tories; treacherous friends and open enemies; that it was indeed a very curious show, but utterly unsafe to touch, and unsure to stand on. The colleagues whom he had assorted at the same boards stared at each other, and were obliged to ask, Sir, your name? Sir, you have the advantage of me. Mr. Such-a-one, I beg a thousand pardons. I venture to say it did so happen, that persons had a single office divided between them, who had never spoken to each other in their lives, until they found themselves, they knew not how, pigging together, heads and points, in the same truckle bed."

DECLINE OF LORD CHATHAM'S POPULARITY.

Lord Chesterfield characterised the exaltation of Pitt to an earldom as “a fall up stairs”—a fall which hurt him so much, that he would never be able to stand upright again. By his acceptance of a coronet, in truth, he greatly diminished his popularity. Burke undermined his influence in the city by two clever publications: in the first of these he gave an account of the late short administration, and in the second he gave a humorous and ironical reply to it, in which the disingenuous conduct of their successors was ably exposed. The wit of Chesterfield ably seconded the pen of Burke; and the Earl of Chatham soon found that though he was dignified by the king, he had shorn himself of all his honours in the sight of the people. The influence which the Earl of Bute was supposed to have had over him tended still more to blight his fair fame. He was taunted with being a willing agent of men whom he did not esteem, and his acceptance of a peerage was a never-failing source of invective. Moreover, in his negociations with his brother-in-law, Lord Temple, he had quarrelled with that nobleman, and all its disparaging circumstances were freely discussed to his lasting disadvantage.. A shower of pamphlets appealed against him, and the city of London, where his influence had recently reigned paramount, mortified him, by declining repeated proposals of presenting him with an address on his appointment. Men saw in him no longer the unblemished patriot, but looked upon him as a cringing slave to royalty for place and power. In their displeasure they may have judged too harshly, but it is certain, as Lord Chesterfield observed, that he was no longer Mr. Pitt in any respect, but _only_ the Earl of Chatham. The charms of his eloquence were lost for ever, for when the people can place no confidence in their rulers, the finest oratory is but an empty sound.

It happened unfortunately for the Earl of Chatham’s popularity, that owing to a deficiency in the harvest of last year great scarcity prevailed, and as distress existed on the continent. The people, always disposed to look upon the dark side of the picture, apprehended that the country would be involved in all the horrors of famine. The price of provisions greatly increased, and in consequence tumultuous riots occurred in various parts of the kingdom, in which many lives were lost. Some of the rioters were captured, and special commissions were sent into the country to try them, and, in many instances, they were brought to condign punishment. A proclamation was issued for enforcing the law against forestallers and regraters, but as the price of all articles rose, and the city of London made a representation to the throne respecting large orders for wheat which had been received from the continent, another was issued prohibiting its exportation. At the same time an embargo was laid by royal authority on all outward-bound vessels laden with corn.

It was not in England alone that the waning influence of the Earl of Chatham became manifest. One of his first diplomatic attempts was to establish a powerful northern confederacy, principally between England, Prussia, and Russia, in order to counterbalance the formidable alliance framed by the Bourbons in their family compact. The king of Prussia, however, was averse to the formation of any new and stricter connexions with England, as well on account of the usage he had met with during the late war, as of the unsettled state of the government of Great Britain since the peace. “Till he saw,” he said, “more stability in our administration, he did not choose to draw his connexions with us closer,” and the negociations was therefore

dropped.

MEETING OF PARLIAMENT.

The session was opened on the 11th of November, and the principal topic of the king’s speech was the scarcity of corn; and measures were recommended, if necessary, for allaying or remedying the evil. The address was opposed in both houses, and in the commons four amendments were moved, but the government in every instance had a majority. On the subject of the embargo, however, and the delay of assembling parliament when the country was in such critical circumstances, ministers had a harder battle to fight. It was thought right to pass a bill of indemnity in favour of those who had acted in obedience to the council with respect to the embargo, and when this bill was brought in by a member of the cabinet, a remark was made, that although it provided for the security of the inferior officers, who had acted under the proclamation, it passed over those who advised the measure. This gave rise to much altercation and debate, especially among the lords, where the Earl of Chatham, Lord Camden, and others, who had long been the advocates of popular rights, vindicated the present exercise of royal prerogative, not on the plea of necessity but of right: arguing that a dispensing power was inherent in the crown, which might be exerted during the recess of parliament, but which expired whenever parliament reassembled. Camden asserted that Junius Brutus would not have hesitated to entrust such a power even to a Nero, and that it was at most but “a forty day’s tyranny.” The Earl of Chatham was a more powerful advocate of the measure. He vindicated the issuing of the embargo by legal authority during the recess of parliament as an act of power justifiable on the ground of necessity, and he read a paragraph from Locke on Government, to show that his views were borne out by that great friend of liberty, that constitutional philosopher, and that liberal statesman. The sentiments of the ministers, however, were strongly opposed by Lords Temple, Lyttleton, and Mansfield, the latter of whom, though he had once been spell-bound by court influence, “rode the great horse Liberty with much applause.” The Earl of Chatham replied, but the constitutional principles which his opposers laid down could not be answered with success, for although parliament passed the act of indemnity, yet the opposition lords so enlightened the public mind upon the subject, that the cry was instantly raised that the present ministers had sold their consciences to the court, and were in a league to extend the prerogative beyond the precedent of the worst periods in English history. The ferment was greatly increased by Mr. Beckford’s declaring in the house of commons, that the crown had in all cases of necessity a power to dispense with laws: an assertion which retraction, explanation, and contradiction from the same lips, could not efface from the public mind. When the bill passed it was in an amended state: the amendment including the advisers, as well as the officers, who had acted under the orders of council in enforcing the embargo. But even this, which implied an acknowledgment of error, was not sufficient to satisfy the public mind, for the clamour still continued against the ministers. The Earl of Chatham was also embarrassed by other circumstances, and in order to strengthen his hands, he was compelled to forego his determination, and to overlook his declaration, that he would never again have any connexion with the old Duke of Newcastle. The duke had a party which would be important to so weak a

cabinet, and in order to gratify him, Lord Edgecumbe was ungraciously dismissed from his office of treasurer of the household, to make room for Sir John Shelley, a near relation of his grace. But the remedy was as bad as the disease. Indignant at the treatment which their colleague had received, Lord Resborough, the Duke of Portland, the Earl of Scarborough, Lord Monson, Sir Charles Saunders, first lord of the admiralty, Admiral Keppel, and Sir William Meredith, all sent in their resignation, and they, with their adherents, ranged themselves on the side of the opposition. These numerous secessions compelled Chatham to negociate more explicitly, not only with Newcastle's party, but with that also which was headed by the Duke of Bedford. The place of first lord of the admiralty was offered to Lord Gower, who took a journey to Woburn, for the express purpose of consulting his grace upon the subject. But negociations with the Bedford party concluded with its total alienation from the administration, nor were those who accepted office thoroughly conciliated. These were Sir Edward Hawke, who was made first lord of the admiralty, and Sir Percy Brett and Mr. Jenkinson, who filled the other seats of the board; while Lords Hillsborough and Le Despenser were appointed joint postmasters. The ministry, as thus patched up, was more anomalous than ever, and Chatham aware of this, and seeing that his popularity was daily more and more declining, became a prey to grief, disappointment, and vexation. At times he sank into the lowest state of despondency, and left his incapable colleagues, to make their own arrangements and adopt their own measures. But they could not act efficiently without him. Burke says:—"Having put so much the larger part of his enemies and opposers into power, the confusion was such that his own principles could not possibly have any effect, or influence, in the conduct of others. If ever he fell into a fit of the gout, or if any other cause withdrew him from public cares, principles directly the contrary were sure to predominate. When he had executed his plan, he had not an inch of ground to stand upon. When he had accomplished his scheme of administration, he was no longer a minister. When his face was hid but for a moment, his whole system was on a wide sea without chart or compass." Yet Chatham, just before the recess, put a bold front upon his affairs in the house. He proclaimed a war against party cabals, and asserted that his great point was to destroy faction, and that he could face and dare the greatest and proudest connexions. But this was an Herculean task which neither Chatham nor any other minister has yet been able to accomplish. Faction is an hydraheaded monster, which no man can destroy, either by the charms of his eloquence or the terror of his countenance.

{A.D. 1767}

Chatham found that the warfare was an unequal one, and that he had not sufficient strength to withstand the power of his enemies. Hence, at the end of December, when all the appointments were made, he retired to his estate of Burton Pynset, which had been recently left him, where he took up his abode, doing nothing for the state, and yet taking the salary attached to his office. Parliament reassembled after the recess without him, his friends in the cabinet wondering at, and the king himself lamenting, his absence. Yet the ministers attempted to work without him. The chancellor of the exchequer proposed that the land-tax should be continued at four shillings in the

pound, stating that the proceeds of such a tax would enable him to bring about the most brilliant operation of finance recorded in the annals of Great Britain. This was a new measure, for hitherto it had been the practice at the return of peace to take off any addition that had been made to the land-tax in time of war. Hence when Townshend proposed it in committee he was laughed at by the country members, who contended for its reduction to three, or even two, shillings in the pound. Townshend had nobody by him to second his assertions, or give him powerful support; and when Mr. Grenville moved that the land-tax should be reduced to three shillings, his motion was carried by a majority of eighteen. It was said that the country gentlemen in effecting this reduction, “had bribed themselves with a shilling in the pound of their own land-tax,” but as this was the first money-bill in which any cabinet had been successfully opposed since the Revolution, it was rightly viewed as a symptom of weakness in the administration: yet Townshend retained his office.

{GEORGE III. 1765–1769}

EAST INDIA QUESTION.

The great question discussed in parliament during this session related to the East Indies. At this period the East India Company held “the gorgeous East in fee.” The merchant princes of Leadenhall-street, who commenced their career with a strip of sea-coast on the outermost limits of Hindostan, had now acquired principalities and kingdoms, and had even made themselves masters of the vast inheritance of Aurungzebe. Fortunate as the Argonauts, they found and possessed themselves of the “golden fleece,” which had been the object of their search. Enormous fortunes were made with a rapidity hitherto unknown, and they were gathered into the laps of even the most obscure adventurers. The fables of the ring and the lamp were more than realised, and the fountain from whence these riches ran appeared to flow from an inexhaustible source. Men had only to go and stand by its brink, and if avarice could be satisfied, they might soon return home with not only sufficient wealth to maintain them in opulence and splendour, but with some to spare for the poor and needy.

Such were the views which government seems to have taken of these merchant princes. Early in November a committee was appointed for investigating the nature of their charters, treaties, and grants, and for calculating the expenses which had been incurred on their account by government. In the course of this scrutiny two questions suggested themselves to the committee; namely, whether the company had any right to territorial acquisitions, and whether it was proper for them to enjoy a monopoly of trade. Some of the members argued that the company had a right, while on the other side some maintained that, from the costly protection afforded it, government had an equitable claim to the revenues of all territory acquired by conquest. It was the opinion of the cabinet, that the state did not possess its proper share of the company’s profits, and the chancellor of the exchequer conceived that by either taking their territorial conquests into the hands of government, or making them pay largely for keeping that management in their ow a hands, the state would obtain that wealth of which it stood so much in need. Chatham’s attention was drawn to this subject, but he merely advised that Beckford should make a motion for examining

into the state of the East India Company, and remained still in the west of England. This motion was made, and the house resolved itself into a committee of inquiry, and called for papers. In the meantime the company suggested an amicable arrangement, and presented a series of demands, among which were—that the administration should prolong the charter to the year 1800, or to a further term, and to confirm to the company the sole and exclusive trade of the East Indies for three years at least after the expiration of the charter granted in the last reign; that it should agree to an alteration in the inland duty upon tea, with the view of preventing smuggling; that it should allow a drawback on the exportation of tea; that it should alter the duties on calicoes and muslins; that it should consent to some proper methods of recruiting the company’s military forces, and for strengthening their cause in India; that it should prevent the commanders of the company’s ships and others from conveying any kind of warlike stores clandestinely to the East Indies; that it should use its strong interposition with the court of France to obtain large sums of money which the company had expended for the maintenance and transport of French prisoners to Europe; and that it should use its strong interposition likewise with the court of Spain with respect to the Manilla ransom, that the company might obtain indemnification for the great expenses incurred by that expedition. The company laid before the house their charters, treaties with the native sovereigns, letters and correspondence, and the state of their revenues in Bengal, Bahar, and Orissa; but the whole affair was so complicated, that the ministers could not make themselves thoroughly masters of the subject. Not one would, in fact, undertake the management of the business. They shifted the proposals from one to another, and could not come to any determination what to accept or what to reject. At every stage of the business it was attended with violent debates. Townshend was strongly in favour of an amicable arrangement with the company, laying great stress on the _quantum_ to be given for the prolongation of the term of their charter, while Company declared that the salvation of the country depended upon the proper adjustment of this nice affair. Still Chatham kept aloof from the business, and he either would not from illness, or could not from despondency, give his thoughts and directions in writing as to what steps to take and what further motion to make. In the end, therefore, after many divisions, a bill was framed, granting nearly all that was asked for by the company, and binding it to pay £400,000 per annum, in half-yearly payments, and to indemnify the exchequer, should any loss be sustained in consequence of lowering the inland duties on tea, and the allowance of the drawback on its exportation. But the term of this contract was limited to two years; commencing from the 1st of February of the current year; so that the company had a further interference with their territories and wealth in prospect: but till the expiration of that term, their territorial rights were fully admitted.

While this subject was under parliamentary discussion, the proprietors of East India stock demanded of the court, that, as the company had gained so much territory and so many new advantages, a larger dividend should be declared. In compliance with this demand the dividends were increased from ten to twelve and a half per cent., which step called for the interference of government. In order to check a proceeding which was considered calculated to renew the gambling stock and share

jobbing of the memorable South Sea year, two bills were brought into the house by ministers; one for regulating the qualifications of voters in trading companies, and the other for restraining and limiting the making of dividends by the company; fixing them at ten per cent. This latter bill encountered a most violent opposition both by the company and in the house, particularly by the lords, but it was carried, and received the royal sanction.

AMERICAN TAXATION.

Soon after the reassembling of parliament Mr. Grenville, intent upon taxing America, had proposed saddling that country for the support of troops, &c., and the chancellor of the exchequer, in reply, pledged himself to the house to find a revenue in the colonies sufficient to meet the expenses. Accordingly, during the session, he introduced a bill to lay certain duties on glass, tea, paper, and painters' colours, imported from Great Britain into America. This bill was carried through both houses with the greatest facility, and another act passed with equal facility, which placed these duties, and all other customs and duties in the American colonies, under the management of the king's resident commissioners. These acts were followed by one more justifiable. The assembly of New York had refused to comply with the statute requiring a grant of additional rations to the troops stationed in that province; and the refractory disposition of the colonists made it manifest that their intention was to deny the jurisdiction of Great Britain altogether. It was evident that a spirit of infatuation had taken deep root in America, and it was easy to foresee that confusion and bloodshed would one day ensue. Under these circumstances, and with a view of checking the onward progress of the march of insubordination, an act was passed, prohibiting the governor, council, and assembly of New York from passing any legislative act, till satisfaction should be given as to the treatment of the commissioners and troops, and submission paid to the Mutiny Act. But no measure which the parliament of England could devise, whether coercive or conciliatory, could tame the fierce spirit which the Stamp Act had created, and the new scheme of duties on imports was calculated to confirm in hostility to Great Britain. The breach grew wider and wider, until at length it was past all remedy.

CHANGES IN THE MINISTRY.

Parliament was prorogued on the 2nd of July, with a speech from his majesty, in which he acknowledged annuities of £8000, which had been settled during this session on each of the king's brothers; namely, the Dukes of York, Gloucester, and Cumberland. During the recess, an event occurred which threatened to overthrow the tottering cabinet. This was the death of Charles Townshend, who suddenly expired on the 4th of September. But before his death, there were signs of a dissolution of the ministry, and Townshend was actually engaged in the projection of a new administration. Lord Northington and General Conway had both expressed a wish to resign, and the Duke of Grafton showed a greater disposition for pleasure than for business, whence negociations were opened by Townshend with the Rockingham party.

His death set these aside, but several changes soon afterwards took place among the great officers of state. The Earl of Chatham, afflicted with the gout, and indisposed to business, still remained idle; and the king therefore, authorized the Duke of Grafton to make the necessary changes in the cabinet. All that could be done, however, before the meeting of parliament, was to entrust the seals of the office of chancellor of the exchequer to Lord Mansfield, chief justice of the king’s bench, and to empower him to renew negociations with the Duke of Bedford, in which the Duke of Grafton had been unsuccessful.

The ministry was in this unsettled state when the parliament met in November. The principal point recommended to its attention by his majesty was the high price of corn, with the consequent suffering of the poor. This subject was also impressed on parliament by strong petitions from all parts of the country; and an act was passed, extending the prohibition against exportation, and encouraging the importation of grain.

In the midst of these proceedings, Lord North was prevailed upon to accept the chancellorship of the exchequer; Mr. Thomas Townshend, cousin of the late Charles Townshend, succeeded him as joint paymaster of the forces; and his place, as one of the lords of the treasury, was given to Mr. Jenkinson. Soon after this, General Conway and Lord Northington insisted on resigning, and fresh overtures were made to the Duke of Bedford. That nobleman having been gained over, Earl Gower became president of the council in the place of Lord Northington, and Lord Weymouth secretary of state in lieu of Conway. At the same time the Earl of Hillsborough was appointed third secretary of state, which was a new office; and he was succeeded as joint paymaster with Lord North, by the Duke of Bedford’s ally, Lord Sandwich. General Conway was appointed lieutenant-general of the ordnance; and the ministry, thus reconstructed, took the name of the Duke of Grafton’s administration. As for the Earl of Chatham he was still a cipher, keeping aloof at Bath, or at Burton Pynsent, or at Hayes in Kent, where he would neither see nor speak to anybody. But he still retained the privy seal, and still retained the emoluments of office, and the king was afraid to deprive him of them.

{A.D. 1768}

Parliament, in this session, extended the act which restricted the East India Company’s dividends to ten per cent.; but scarcely any other business was transacted beside the voting of supplies. The king prorogued parliament on the 10th of March, and on the 12th of that month it was dissolved by proclamation, it having nearly completed its legal term of seven years.

PROCEEDINGS IN AMERICA.

The new Revenue Act, which imposed duties on various articles of merchandise, excited great resentment in America. It was looked upon by the colonists, indeed, as a deceptive measure, having a similar object to that of the Stamp Act, and it had the effect of reviving a question, which the British parliament should have endeavoured to have consigned to utter oblivion. The Americans, animated by a spirit of resistance,

would now no longer acknowledge that distinction between external and internal taxation, on which they had at first grounded their claim for relief. Their presses teemed with invectives against the British legislature, and it was confidently asserted that England was resolved to reduce the colonies to a state of abject slavery. The assembly of Massachusets Bay took the lead in opposing the government, and it soon engaged the other colonies to join in resisting the mother-country. A petition was likewise sent by that house to the king, and letters, signed by their speaker, to several of the British cabinet, containing statements of their rights and grievances, and soliciting relief.

A letter was also sent to Mr. De Berdt, their agent in London, instructing him to oppose the obnoxious measure on every ground of right and policy. This letter adverted to the appropriation of the revenue intended to be thus unconstitutionally raised—stating that it was to supply a support for governors and judges, and a standing army. On both these grounds, as well as its unconstitutional nature, the house opposed it, remarking, on the subject of the standing army, in the following terms, by way of remonstrance:—“As Englishmen and British subjects, we have an aversion to a standing army, which we reckon dangerous to our civil liberties; and considering the examples of ancient times, it seems a little surprising that a mother-state should trust large bodies of mercenary troops in her colonies, at so great a distance from her; lest, in process of time, when the spirits of the people shall be depressed by the military power, another Caesar should arise and usurp the authority of his master.”

A circular letter was sent, in the name of the assembly of Massachusets Bay, to the other provincial assemblies, informing them of the measures already taken; and it was couched in such terms that it had the effect of lulling the suspicions of some whose opinions were not so violent, and of making many of them firm adherents to the cause of liberty. The conduct of this republican assembly excited strong indignation in the ministry. A letter was sent, by Lord Hillsborough, to the governor, expressing great displeasure against those who had endeavoured to revive the dissensions which had been so injurious to both countries, and directing him to dissolve the assembly if it should decline to rescind the vote which gave rise to the circular. This letter was laid before the house; but instead of rescinding the vote, it justified the spirit and language of the circular, and declared that, as it had been answered by several of the assemblies, the vote had been already executed, and could not therefore be rescinded. The conclusion of this uncompromising reply was as follows:—“We take this opportunity faithfully to represent to your excellency, that the new revenue acts and measures are not only disagreeable, but in every view are deemed an insupportable burden and grievance, with very few exceptions, by all the freeholders and other inhabitants of this jurisdiction: and we beg leave, once for all, to assure your excellency, that those of this opinion are no ‘party or expiring faction;’—they have at all times been ready to devote their time and fortune to his majesty’s service. Of loyalty, this majority could as reasonably boast as any who may happen to enjoy your excellency’s smiles: their reputation, rank, and fortune, are at least equal to those who may have sometimes been considered as the only friends in good government; while some of the best blood in the colony, even in the two houses

of assembly, lawfully convened and duly acting, have been openly charged with the unpardonable crime of oppugnation against the royal authority. We have now only to inform your excellency, that this house has voted not to rescind, as required, its resolution; and that, in a division on the question, there were ninety-two nays, and seventeen yeas. In all this we have been actuated by a conscientious, and finally, by a clear and determined sense of duty to God, to our king, our country, and our latest posterity; and we most ardently wish and humbly pray, that in your future conduct, your excellency may be influenced by the same privileges."

A letter to the same import was addressed, by the assembly, to Lord Hillsborough. But this was its last act. When the governor had received the above communication, he immediately dissolved it, and the province was left for the remainder of the year without a legislature. Opposition, however, was not checked by such a measure—rather it was carried on with more spirit than ever. Riots took place at Boston and Halifax, and arms and ammunition were provided, under the pretext of anticipated war with France A meeting of delegates, from all the towns of the province, was convened at Boston, which was attended by deputies from every one except Hatfield. This convention sent a communication to the governor, disclaiming all intention of performing any act of government; professing to have met, in dark and distressing times, to consult and advise measures for the peace and good order of his majesty's subjects in the province; and praying that he would call together the legislative assembly. The governor refused to receive any communication from the meeting, warned it of the irregularity of its proceedings, and assured it that his majesty was determined to maintain his entire sovereignty over the province. A deputation was then sent to the governor by the convention, but it was refused admission into his presence, and a committee of nine persons were appointed to consult on the best mode of promoting peace and good order in the province. This committee sent in its report, and the meeting drew up a petition to the king, which was transmitted to the agent in London, and it then broke up. This was on the 29th of September, and on the same day, two regiments and a detachment of artillery from Halifax inarched into Boston. These were soon after joined by two more regiments from Ireland, under General Gage; and thus awed, the province was restored to comparative tranquillity. But underneath this show of quiet there were heart-burnings, which nothing but the recognition of American independence could allay. Associations formed throughout the whole length and breadth of America, by the exertions of the assembly of Massachusets Bay, stirred up and kept alive the flame of discord, and occasion need but fan it, and it would kindle into a blaze; the lurid glare of which would be seen burning brightly, and raging furiously across the wide Atlantic. The proceedings in America were but as yet, in truth, the warnings of a terrible commotion—the first intimations of an irruption, more frightful in its nature, and more disastrous in its consequences, than the bursting forth of the fire-streaming bowels of Mounts Ætna and Vesuvius, or the devastations of an earthquake. For the storms of human passion, when they burst forth in war and bloodshed, are more desolating to the human family, than any outbreak of visible nature recorded in the many-paged annals of history.

DOMESTIC TROUBLES AND COMMOTIONS.

While America threatened some fearful catastrophe, Great Britain was scarcely less disturbed by internal troubles and commotions. Much as he desired the happiness of the people, the jewels set in his majesty's crown were intermixed with sharp, piercing thorns. This is plainly observable in the previous pages, wherein the difficulties which had beset his various administrations, and which chiefly arose from the discordant passions of their members, are historically narrated. Burke rightly observes:—"Our constitution stands on a nice equipoise, with steep precipices and deep waters on all sides of it: in removing it from a dangerous leaning toward one side, there may be a risk of oversetting it on the other. Every project or a material change in a government so complicated, combined, at the same time, with external circumstances still more complicated, is a matter full of difficulties." This is not the language of a casual observer of men and manners, but of a profound politician. It is borne out by his majesty's early experience. The scheme which he adopted soon after his accession of breaking the power of the Whig aristocracy, and of calling men of different parties to the service of the state, was not only surrounded with difficulties, but fraught with clanger. Men looked with favour on the long-established supremacy of these great families, and their influence and power were therefore not easily broken. Bute sought to dissolve the spell; but the hand of Bute was not that of a magician, and he signally failed in the attempt. Broken, but not subdued, the aristocracy formed new parties, and acted upon new principles, all calculated, when dictated by the spirit of opposition, to annoy the sovereign, and disarrange the machinery of the state. Cabinets, formed with nice art and care, were unable to withstand their opponents; whence their frequent disarrangements and dissolutions. The age became signalised by ministerial revolutions and cabinet abortions; and why? because the cabinets formed were not supported by public opinion. Parliament itself had lost much of its credit with the people by reason of its indecisive measures. It had forfeited their confidence, nor could the recall of Pitt to the helm of state restore it to their favour, or rescue the sovereign from the dilemma in which he had placed himself. Intractable at all times, from the opposition he had met with, and from ill health, he had become so imperious, that, like an old Roman consul, he would fain have yoked the people, the cabinet, and the monarch to his chariot-wheels. Moreover, since he had become an earl, he was a changed man. He no longer sided with, but against, the people; sheltering himself from their clamours in the stronghold of privilege. Hence it was, that when he coalesced with others, he found no support on which he could lean with safety, and by which he could assist the monarch. His staff was but a reed on which, if he leant, it pierced his hand. This Chatham felt; and though he clung tenaciously to office, from the fear of displaying his weakness and incapacity, he only acted, when he did act, behind the scenes. Ministerial exertions were also paralysed by another cause. A prevalent notion existed that there was a mysterious power about the court which worked to the detriment of the public good. This was a constant theme of invective among the opposition, and, it would seem, not without good reason. But there was another cause of obstruction to the measures formed by government. This was found in the democratical spirit, which now universally prevailed. Courted by the aristocracy, who had till very recently

"Held them dangling at arm's length in scorn,"

and grown comparatively wealthy since relieved from the pressure of war, the population became restless, jealous, and insubordinate. The man whose fortune was only made, as it were, yesterday, deemed himself as great a man as the highest and noblest born aristocrat; while the man who had squandered away his patrimony, sought to restore himself from his fallen position in society, by assuming principles of patriotism which in his heart he despised. Moreover, the conduct of their rulers, which had been too frequently vacillating and manifestly corrupt, taught the great body of the people to look upon them with suspicion and distrust. Talk they as loud as they might of honesty of intention, of unimpeachable integrity, and of pure patriotism, the people nevertheless would not now believe them. Hence, political associations began to be formed; taverns were made so many parliament houses; and the people seemed as if they were resolved to take the government into their own hands.

But oh! ye Muses, keep your votary’s feet From tavern-haunts where politicians meet Where rector, doctor, and attorney pause, First on each parish, then each public cause: Indited roads and rates that still increase; The murmuring poor, who will not fast in peace: Election zeal and friendship since declined, A tax commuted, or a tithe in kind; The Dutch and German? kindling into strife; Hull port and poachers vile!—the serious ills of life.

THE RETURN OF WILKES, ETC.

Such was the state of society when writs were issued for a new election. Encouraged by it, John Wilkes once more stepped upon the stage, and offered himself as a candidate for the suffrages of the people. And, as it has been well said, Mephistopheles himself could not have chosen a better time for mischief. For, at this time, the populace had no idol in whom they could place their confidence, and they hailed his reappearance with delight. By their aid, indeed, he soon became enabled to insult his sovereign, and to trample on the legislature with impunity. Unprincipled as he was, he became the man of their choice, and their “champion bold” in the cause of what was called liberty.

Wilkes had made an attempt to return to England during the Rockingham ministry, but that party would not receive his overtures. Recently he had also sounded the Duke of Grafton, with whom he had formerly been on terms of intimacy; but his application for his mediation with the king was treated by that nobleman with neglect and disdain. Thus disappointed, and finding his situation at Paris, from his accumulated load of debt, disagreeable, he at length resolved to brave every danger. During the elections, he boldly presented himself at Guildhall, as a candidate to represent the metropolitan city in parliament. He was received with rapturous applause by the populace; but his present views were frustrated by some of the good citizens of London, who exerted all their influence to insure his defeat. Nothing daunted, however, Wilkes immediately offered himself for the county, and he was returned by the freeholders of Middlesex, by a very large majority. The mob, on this occasion, was in a transport of joy. The air rang with shouts of “Wilkes and Liberty!” and by way of exhibiting their exultation at their triumph, they demolished Bute’s windows in the west, and the windows of the mansion-house, in the east of the city.

Having secured his election for Middlesex, and confident of the support of the people, Wilkes appeared, in the month of April, in the court of king’s bench, and declared himself ready to submit to the laws of his country. Lord Mansfield, then on the bench, suggested that as he was not before the court by any legal process, no notice could be taken of his professed submission, and he was permitted to depart. On retiring, he was received with loud acclamations by the mob, and the general impression was, that Wilkes had conquered the government, and that the arm of the people was stronger than the arm of the law. Wilkes, likewise, may have flattered himself that he was secure from all further process; but, if so, he soon found himself deceived. Within a week, a writ of _capias ut legatum_ was issued against him, and he was taken into custody. Sergeant Glynn, his counsel, pointed out several errors in the outlawry, and offered bail; but the judges decided that no bail could be taken, and he was at once committed to the king’s bench prison. But the populace was resolved to reverse this decree. As he was proceeding over Westminster-bridge, they stopped the coach in which he was conveyed, took out the horses, and dragged him in triumph through the city, to a public-house in Spitalfields, where they retained him till nearly midnight. Wilkes, however, thought proper, when the people dispersed, to repair to the marshal of the king’s bench, out of whose hands the mob had rescued him, and surrender himself. But as soon as it was known that the “patriot” was in prison, the mob showed signs of rescuing him again. Crowds collected around his prison-house, pulled down the outward fence, and made a bonfire with it on the spot. An order was sent to the horse-guards, and a body of soldiers were stationed near the prison, but this only tended to increase the popular excitement. Every day, for nearly a fortnight, the mob abused the soldiers, and the soldiers threatened the mob, so that the metropolis was one continued scene of riot and confusion; Wilkes adding fuel to the flames from within the doors of his prison.

Such was the public temper when parliament reassembled on the 10th of May. The people supposed that neither strong walls, nor stronger laws, could prevent Wilkes from taking his seat in the house of commons, as member for Middlesex; and they assembled in great numbers round the gates of his prison, in order to escort him to Westminster. But the gates remained bolted and barred, and Wilkes continued secure within. They waited patiently for awhile, but when doubts arose whether they should be permitted to see then-idol, their patience at first grew into uneasiness, until at length it gendered into a storm of furious disappointment and passion. Demands were made for his appearance, but they were unheeded and unanswered. Their violence grew with their clamour, and it was in vain that they were urged to depart in peace. Stones and brickbats were aimed at the heads of the magistrates who attempted to read the riot act, and the military by whom they were guarded. Self-defence compelled the order to fire, which was readily obeyed by the soldiers; the more so, because the companies selected for the service were nearly all Highlanders and Lowland Scots, whose strong national feelings had been wounded by Wilkes, in his North Briton. Four or five persons were killed, and many more wounded; and among those who perished was a youth of the name of Allen, who had taken no part in the riot. One of the soldiers gave chase to a young man who had been pelting them, and by mistake shot Allen in a cow-house, near St. George’s-fields, while he was in the act

of protesting his innocence. This occurrence tended to increase the popular rage. At the coroner's inquest, a verdict of wilful murder was brought in against the soldier who shot Allen, and two others were charged with aiding and abetting. Maclean—for that was the name of the soldier who shot Allen—was committed to prison, and warrants were issued against the others as accessories. At the same time, Mr. Gillam, one of the Surrey magistrates, who had given the order to fire, was indicted for murder. On the other hand, the parliament then sitting voted loyal addresses to his majesty on the occasion, with assurances that every measure, which was adopted for the maintenance of the authority of the laws, had their hearty concurrence; and Lord Barrington returned thanks to the officers and men employed in this service, and directed that the crown lawyers should defend the soldiers under prosecution. This had the effect of exasperating the populace still more. They saw that the soldiers would be acquitted—which was actually the case, and rewarded likewise—and the exploit was named by the unenviable denomination of "The Massacre of St. George's-fields." Exciting papers were stuck up in every part of the metropolis, and even on the very walls of St. James's-palace. The mansion-house was assailed so frequently that a constant guard of soldiers was necessary to defend it from demolition. The firm of civil authority appeared too weak to control the unbridled passions of the populace; and it was rendered still more impotent by other riots and disturbances which broke out unconnected with politics. Coalheavers, sailors, and watermen at this time complained of low wages, and of frauds practised upon them by their employers; and Stepney-fields likewise became a scene of combat which could only be quelled by the military.

On the 8th of June, Wilkes's case was again heard in the king's bench. His outlawry was reversed, because he had voluntarily surrendered: but he was sentenced, for the seditious sentiments contained in the 'North Briton', to be confined in prison ten calendar months, and to pay a fine of £500; and for publishing the 'Essay on Woman', to pay a similar fine, and to be imprisoned twelve calendar months, to commence at the expiration of the term of the former imprisonment. He was, also, to find security for his good behaviour for seven years—himself in the sum of £1000, and two sureties in £500 each. On the trial, facts were divulged very disgraceful to the temper of the people. In order to ensure impunity for their idol, anonymous letters had been sent to chief-justice Mansfield, threatening him, and insulting him by every species of insult and intimidation. His lordship spoke feelingly and wisely in delivering the judgment of the court on these unworthy and unmanly proceedings:—"The last event," said he, "which can happen to a man never comes too soon, if he falls in support of the law and liberty of his country; for liberty is synonymous with law and government: as for himself, the temper of his mind, and the colour and conduct of his life, had given him a suit of armour against these arrows."

The sentence passed against Wilkes tended only to increase his popularity. Though immured within the walls of a prison, he became now in the very zenith of his fame. Subscriptions were raised to pay off his debts; valuable presents were conferred on him; and his portrait met the eyes of the passers-by, over the doors of the public-houses, in every part of the kingdom. The popularity of Wilkes was, if possible, augmented by the issue of the trials of the magistrate and soldiers for the murder of

Allen, and those who fell in “the massacre of St. George’s-fields.” They were all acquitted; and instead of being censured for a breach of discipline by the authorities, Maclean received from government the sum of thirty guineas for his sufferings on a false accusation. This was exceedingly impolitic; for it had the effect of further exasperating that huge-chafed monster, the populace, whose power is not to be provoked or despised with impunity.

RESIGNATION OF LORD CHATHAM.

A ministry so hetrogeneous in its composition as that which now administered the affairs of Great Britain could hardly be expected to act in union and with firmness at this critical season. The Earl of Chatham gave proof that he was not disposed to act with the opponents of Wilkes, by declaring to Sir William Beauchamp, who was contesting the election of Middlesex with Sergeant Glynn, and who applied to him for his assistance and countenance, that he constantly declined meddling in elections. His disinclination to act at all was, also, elicited by the Duke of Grafton, who sighed “after a life much more pleasing to his mind” than that of presiding over the government. Grafton urged the Countess of Chatham—for he dared not trouble his lordship—to state whether she thought her lord would resign. The countess, in reply, assured the noble duke that there was but little prospect of his ever being able to enter much into business; and intimated, that he was privy to, and highly disapproved of, an intention entertained of dismissing Lord Shelburne; adding, that he would never consent nor concur in such a removal, his services being of great importance to the administration. All the while the Earl of Chatham knew that it was Lord Shelburne’s intention of resigning voluntarily, which he did immediately after, having for his successor, as secretary for the southern department, Lord Weymouth from the northern, in whose post the Earl of Rochford was placed. From this cause, and being also displeased with the conduct of his colleagues regarding America, Chatham at length resolved to tender his resignation. He wrote to the Duke of Grafton, informing him that his health would no longer permit him to be useful to his majesty, and begging that his grace would lay him at his majesty’s feet, with his utmost duty and earnest request, that he would grant him his royal permission to resign the privy seal. It was in vain that the Duke of Grafton endeavoured to dissuade him from his purpose, on the grounds that his services were at this moment indispensable. His request was repeated in more positive terms, and a letter was sent also to the king to the same intent. His majesty now tried whether the refractory lord could not be brought to a proper sense of his duty. He wrote in reply:—“As you entered upon this employment in August, 1766, at my own requisition, I think I have a right to insist on your remaining in my service; for I with pleasure look forward to the time of your recovery, when I may I have your assistance in resisting the torrent of factions this country so much labours under. This thought is the more frequent in my mind, as the lord chancellor and the Duke of Grafton take every opportunity to declare warmly their desire of seeing that: therefore I again repeat it, you must not think of retiring, but of pursuing what may be most conducive to your health, and to my seeing you take a public share in my affairs.” It is probable that the Earl of Chatham was not so sanguine as his majesty concerning his ability to resist “the torrent of factions,” for he shrunk from his task in coward fear. In his reply, affliction, submission, gratitude,

veneration, and despair was seen in almost every line, and he insisted upon adhering to his purpose. Accordingly, he sent the privy seal by Lord Camden, who delivered it into the king’s hands, and who, to increase the monarch’s embarrassments, wished to resign likewise. Overcome by his majesty’s entreaties, however, Camden consented to remain in office.

The resignation of Chatham did not excite greater interest than the resignation of the meanest officer in the state. Even Thackeray, his admiring biographer, was obliged to make this confession:—“A greater contrast in the feelings of the cabinet and the nation upon the present resignation of Lord Chatham to those which were evinced upon his dismission from office in 1757, and upon his retirement in 1761, can scarcely be imagined. His dismission in 1757 excited one common cry of enthusiastic admiration towards himself, and of indignation towards his political opponents. The attention, not only of Great Britain, but of the whole of Europe, was attracted by his resignation in 1761; and although the voices of his countrymen were not so universally united in his favour as upon the former occasion, the event was considered as affecting the interests of nations in the four quarters of the globe. The resignation of Lord Chatham, in 1768, was, in fact, nothing more than the relinquishment of an appointment in which he had long ceased to exercise his authority, or to exert his abilities. It was expected by the ministry—it was little regarded by the people of Great Britain—it was almost unknown to the continent of Europe.” So low had the Earl of Chatham descended from his giddy height of popularity—so little to be depended upon is the breath of the people.

On the contrary, the causes which led to the retirement of Lord Shelburne, had the effect of increasing the reputation of that ex-minister, and of endearing him to the public. The ancient republic of Genoa had long been endeavouring to reduce the Corsicans to her obedience, but was compelled to give up the contest in despair. She resigned her right of sovereignty—real or pretended—to Louis XV.; and the French fitted out an armament to take possession of Corsica by force of arms. The Corsicans maintained that they were not to be bought and sold like revolted subjects and rebels; and their chosen chief, General Paoli, represented the cruelty of the case to all Europe, addressing himself in a special manner to England. As islanders and freemen, the English warmly sympathised with them. The Earl of Chatham and Lord Shelburne, likewise, felt deeply interested in the cause of the Corsicans; and the latter authorised Lord Rochford, the ambassador at Paris, to address a spirited remonstrance to the French cabinet on the subject. These orders, however, were not supported by the rest of the administration; the French court took no notice of the remonstrance; and Lord Shelburne was compelled to resign. Corsica was therefore abandoned to France, who established her supremacy by shedding much blood. This naturally created feelings of respect for Lord Shelburne in the breasts of the English people; and, as naturally, the feelings of contempt for his cold, calculating, official colleagues.

THE AFFAIRS OF WILKES.

By this time Sergeant Glynn had been elected for the county of Middlesex. Glynn was the friend and companion of Wilkes, and it happened that some of the chairmen

of his opponent killed a man of the name of Clarke in an affray. At this period, such events were by no means uncommon, but as Sir William Beauchamp was a ministerial candidate, the populace spread surmises abroad, and circulated accusations detrimental to his character. He was charged with being an employer of assassins, and two of his chairmen were tried at the Old Bailey for murder. They were acquitted, but this only tended to increase the popular excitement against the ministers. Wilkes still more inflamed it by his intemperate conduct. Lord Weymouth sent a letter to the bench of magistrates for the county of Surrey, expressing the warmest approbation of their conduct, and recommending them to quell all tumults on their first rising by the aid of the civil and military power. This letter, or a copy of it, having fallen into the hands of Wilkes, it was published by him, with an inflammatory preface, in which he called the affair in St. George's Fields "a horrid massacre, and the consequence of a hellish project deliberately planned." Irritated by his imprisonment, Wilkes, indeed, seems now to have set his fortune on the cast of a die, and the only way of playing the game successfully, seems to have been, considered by him, that of inflaming the passions of the people, already enraged beyond endurance, to the utmost. But the ministers resolved that he should not act with impunity, and this last act determined them upon taking effectual measures to overthrow his cause, finally and for ever. But the determination taken by them only aided the "patriot" in his ambitious projects, and tended to increase their own unpopularity.

{GEORGE III. 1765–1769}

MEETING OF PARLIAMENT.

Parliament, with the Duke of Grafton at its head, assembled on the 8th of November. In his speech his majesty alluded to the signs of commotion among the continental powers which now existed; to the state of our American colonies, especially to the proceedings at Boston, which he denounced in strong terms; and to the late abundant harvest, which he viewed with satisfaction, as having come opportunely to the relief of his poorer subjects. In the house of lords the address was agreed to unanimously, but the commons offered many objections, criticising the conduct of government with reference to America, Corsica, and its continental policy, whence it was not carried without much angry feeling.

The first question debated was that of corn. To prevent the recurrence of scarcity, a bill was prepared for enlarging the prohibition against exportation, and for preventing distillation from wheat. A more effectual mode of securing plenty would have been to have passed a bill for the better cultivation of the lands already in use, and for the enclosure of large tracts of land then uncultivated. But government had no extended views at this period, and, moreover, its attention was absorbed in the consideration of the one all-engrossing subject—civil discord.

DEBATE ON WILKES.

Before the session was a week old, Wilkes and the parliament were at open war. Determined upon keeping up the spirit of animosity among his admirers, the great agitator presented a petition to the house of commons, by means of Sir Joseph

Mawbey, one of the members for Southwark, which recited all the proceedings of government against him, and claimed redress and liberty as a member of that house. A violent debate took place, and it was agreed that Wilkes should have liberty to attend the house to support his allegations, and that he should be allowed the assistance of counsel. He was to appear on the 2nd of December, but in the meantime a member moved for an Inquiry into the occurrences in St. George's Fields, and of the conduct of the military employed on that occasion. This motion was negatived, and when Burke, who acted as leader of the Rockingham party, renewed it, it shared the same fate: some observed because many members were afraid of investigating the subject too closely.

{A.D. 1769}

The house postponed the hearing of Wilkes and his counsel, and this postponement was several times repeated. They were unheard on the 23rd of January, when Mr. Martin, member for Gatton, moved, "That John Wilkes, Esq., although he is convicted of publishing a seditious libel, is entitled to privilege of parliament." An amendment was moved by Lord North to the effect, "That John Wilkes, Esq., although he is convicted of printing and publishing a malignant, seditious, and scandalous libel, and of printing and publishing three obscene and impious libels, and now stands committed to the king's-bench prison, by virtue of two several judgments in the court of king's-bench, for the said offences, is entitled, by privilege of parliament, to be discharged from his imprisonment for the said offences." After a fiery debate, the amendment was carried by a large majority; and Mr. Martin, feeling himself disgraced by its making him the patron of sedition, obscenity, and impiety, moved, "That, in entering in the votes of this day the proceedings of the house upon the said question, the original motion be stated, with the proceedings of the house in making the several amendments thereto." This was reasonable, but when put to the vote it was rejected.

By these proceedings the temper of the house towards Wilkes was fully manifested, and it seemed morally certain that when his petition was taken into consideration it would prove a failure. It was on the 27th of January that this debate fairly commenced. On that day Lord North moved that the petitioner's counsel should be confined to two specified points only; namely, to prove the allegations in his petition, which asserted that Lord Mansfield had altered the record of his indictment the day before his trial in Westminster-hall; and that Mr. Carteret Webb, solicitor to the treasury, had bribed one Curry, a man in Wilkes's employment, to purloin the copy of the "Essay on Woman," for which he was undergoing imprisonment. This motion was agreed to, though not without fierce opposition, and Wilkes appeared at the bar of the house on the 31st, to make good these allegations. He objected, that as a member he could not legally appear there without taking the oaths, but this was overruled, he then proceeded to support his allegations, but all he could substantiate was, that Lord Mansfield had made an alteration on the record, and as this was in accordance with ancient custom, and had been sanctioned by all the judges, the house agreed, without a division, that the petitioner had not made good the two

allegations upon which he had been heard, and that his petition was frivolous.

The tables were now turned. Lord Weymouth made a complaint in the upper house, regarding a breach of privilege, in publishing his letter sent to the magistrates of Surrey, with an inflammatory preface. A conference between the two houses had been held, and Wilkes was charged with this misdemeanour before the bar of the commons. But at that bar Wilkes not only avowed himself the author of the publication, but claimed the thanks of his country for having exposed Weymouth's "bloody scroll." It was immediately resolved by the commons that he was guilty of a seditious libel, calculated "to inflame and stir up the minds of his majesty's subjects to sedition, and to a total subversion of all good order and legal government." This was on the 2nd of February, and on the following day Lord Barrington moved, "That John Wilkes, Esq., a member of this house, who hath at the bar of this house certified himself to be the author and publisher of what this house has resolved to be an insolent, scandalous, and seditious libel, and who has been convicted in the court of king's-bench of having printed and published a seditious libel, and three obscene and impious libels, and by the judgment of the said court has been sentenced to undergo twenty-two months imprisonment, and is now in execution under the said judgment, be expelled this house." A long and vehement debate followed this motion, Burke, Grenville, Beckford, and others taking the part of Wilkes, but the motion was carried by a large majority at midnight, and a new writ was issued for the election of another member for Middlesex.

Burke denominated the expulsion of Wilkes from the house as the fifth act of the tragi-comedy acted by his majesty's servants, for the benefit of the agitator, at the expense of the constitution. As for Wilkes himself, he was nothing daunted by it, for after indulging in many witticisms at the expense of his adversaries, he declared that he would stand again for Middlesex, and expressed his conviction that he should be returned. And the event answered his expectation. Liberty and Wilkes were now synonymous terms, and no ministerial candidate had a chance of obtaining the popular favour in preference to him. He was rechosen representative for Middlesex free of all expense to himself, but the house declared him incapable of being elected during the present parliament. The popularity of Wilkes, however, increased in proportion as the opposition to him in the house assumed a vindictive character. The agitator, in fact, only laughed at his adversaries, and said he would try again. Great efforts were made this time by the ministerial party to ensure his defeat, but it was to no purpose. Assisted by the public press, the mob, and many opulent merchants, who deemed him the champion of liberty, Wilkes was again triumphantly returned member for Middlesex: his opponent, Mr. Dingley, not being able to get himself named for fear of the mob's violence. But again the house of commons declared Wilkes's return null and void, and ordered a new writ.

The popular feeling was displayed on the occasion of this second election in a very unequivocal manner. The partisans of Dingley met at the King's-arms tavern, in Cornhill, for the purpose of proposing a loyal address to his majesty, in contradiction of certain instructions which had been prepared by the city. This was prevented by the Wilkites, who mingled among them, and who created such an uproar, that nothing

could be agreed upon. At a second meeting, however, in another place, the Dingleyans were more successful; but on the 22nd of March, when they went to present the address, they were beset by a countless mob, shouting, “Wilkes and liberty—liberty and Wilkes for ever!” They were even pelted with dirt from the kennels, and assailed with every species of violence and insult. A hearse was dragged before them, covered with paintings, representing the death of Allen, in St. George’s-fields, and the murder at Brentford by Sir William Proctor’s chairmen. So violent was the conduct of the mob, that many of those who were going with the address made off through by-streets, or ran into houses for protection. Few remained when they arrived at the court of St. James’s, and the mob attempted to pass through the gates with their ominous vehicle. This was resisted by the guard, and when the mob persevered, Lord Talbot rushed out and seized two of them, while the soldiers on duty captured fifteen more, and they were carried to prison.

In opposing the election of Wilkes, therefore, there was considerable danger. Hence, when the third writ was issued, Colonel Henry Lawes Luttrell, who was then sitting in the house as member for Bossiney, conceived that he, as a military man, might assist ministers in their dilemma by offering himself as a member for Middlesex. To this end he vacated his seat for Bossiney, and the house ordered the sheriffs to be in attendance with a large number of extra constables round the hustings at Brentford, for the preservation of peace. Encouraged by this care, and by the colonel’s boldness, two other candidates appeared at the hustings, to solicit the suffrages of the people. But all the care of the government, and all the exertions of the candidates were vain. Wilkes was a third time re-elected, and illuminations throughout the whole city of London testified the triumph of the people. The house of commons, however, was firm in its opposition to the popular idol and the popular feeling. A motion was made, and carried by a large majority, to alter this return, and to insert the name of Luttrell in place of Wilkes. The freeholders of Middlesex, looking only at the poll-book, exclaimed against the iniquity of this measure, as Luttrell had not above a fourth part of the votes which were entered on behalf of Wilkes; and they presented a petition to the commons, begging them to rescind their motion. An animated discussion followed this petition, but Luttrell was confirmed in his seat by a still greater majority. The exertions of the people were, therefore, rendered null and void, but Wilkes was as great a favourite with them as ever. Ten days after, he was chosen alderman of the city of London; and he was represented everywhere as a meritorious patriot, who was suffering for the cause of the people. And it cannot be denied that the conduct of ministers towards Wilkes assumed rather the aspect of vindictive persecution than that of strict justice. It was this that gave to Wilkes the importance he had obtained in the sight of the populace—an importance which his merits and his talents could never have given him.

DEBATES ON AMERICA.

During this session, committees had been appointed by both houses to examine and report upon papers relative to American affairs, which were submitted to them by the crown. Measures of rigour were urged by majorities in both houses. The lords voted strong-resolutions relative to the unwarrantable and rebellious conduct of the

legislature and people of Massachusets-bay, and recommended, in an address to the king, that the criminals should be brought over to England and tried by a special commission, according to a statute of the thirty-fifth of Henry the Eighth. It was moved in the commons that they should concur in this measure; and, after a long and spirited debate, in which many warning voices were lifted up against it, the motion was carried. This was on the 26th of January, and a few days after the subject was again brought before the house of commons, and the ministers were again warned of the danger of driving matters to extremities. Mr. Rose Fuller moved that the address should be recommitted, but no arguments which he, or any speaker that took part with him adduced, could alter the disposition of the house upon the subject, and his motion was negatived by a large majority. On the 14th of March, the subject of American affairs was resumed. This was occasioned by a petition, or remonstrance, from New York, which denied the right of parliament to tax the Americans in any way. Lord North proposed that such a paper should not be received. He was opposed by Mr. Grenville, Mr. Burke, and Colonel Barre; but the house had made up its mind to show no favour to the Americans, and Lord North’s motion was carried. Colonel Barre reminded the house that he had predicted all that would happen on passing the Stamp Act, and he now boldly asserted, that if ministers persisted in their present course, the whole continent of North America would rise in arms, and these colonies perhaps be lost to England for ever. But the ministers were deaf to argument, remonstrance, and warning, and they still determined upon rigorous measures. Later in the season, Governor Pownall moved, in a long speech, that the revenue acts affecting America should be forthwith repealed. This was the only mode of preserving the allegiance of that country; but it was pleaded that the session was too far advanced to enter upon the subject—all important as it was—and its discussion was therefore deferred till the next meeting of parliament, and then it was too late.

EAST INDIA AFFAIRS.

During this session the charter of the East India Company was prolonged for the further term of five years, on conditions similar to those in the last agreement. The company was to continue to pay £400,000 per annum, and to continue to export British goods, at an average of equal value with those sent to India during the last five years. The company, however, was now allowed to increase its dividend to twelve and a half per cent., provided it did not in any one year put on more than one per cent. If any decrease of dividend was found to be necessary, then the sum payable to government was to be reduced proportionately, and if the dividend fell to six per cent., it was to cease altogether. This bargain had scarcely been renewed when intelligence arrived from Hindostan, that Hyder Ally had reduced the company, after an expensive war, to sue for a dishonourable peace, and India stock fell rapidly.

PROROGATION OF PARLIAMENT.

Early in this session it was announced in a message from the king, that, in consequence of a deficiency in some branches of the revenue appropriated to the civil list, debts had been contracted to the amount of £513,511, which his majesty trusted that house would enable him to discharge. The opposition demanded the production of papers to account for these arrears, which were promised by Lord North, if they

would vote the money first. This proposition was warmly opposed, but, in the end, the house showed its loyalty by voting the money. On the 9th of May, the king went down to prorogue parliament. This was the day after the last vehement debate and division on the election of Wilkes; and as he was passing from the palace to the house of lords, he was grossly insulted by the populace. In his speech, his majesty exhorted the members, with more than ordinary earnestness, to exert themselves in their several counties to repress the efforts of the disaffected, and in maintaining public peace and good order.

DISCONTENTS IN ENGLAND AND IRELAND.

There was great occasion for his majesty’s advice to the members of parliament, but they were powerless to effect that which he desired, and which was a “consummation devoutly to be wished” by every lover of good order. During this summer, discontent was more prevalent than at any preceding period of this reign. The disputes with the Americans, and the expulsion of Wilkes from his seat in parliament, had the effect of keeping the public mind in a state of constant excitement. This latter cause gave the greater umbrage to the people, because a man was sitting in his place who was supported only by a minority. This involved a constitutional right of great importance, and a question was mooted, whether expulsion constituted disqualification during the current parliament. The pen of Dr. Johnson was employed in proving the affirmative; his chief argument being, that the power of disqualification was necessary to the house of commons, for otherwise expulsion would not be a real, but a nominal punishment. Other pens were employed in proving the contrary; and among them was that of Junius, whose argument rested on the axiom that political expediency does not prove existing law, and who defied his opponents to produce any statute applicable to the subject. Junius also argued that, although the house of commons could expel, the concurrence of every branch of the legislature was necessary to incapacitate. Junius, whose extraordinary powers as a writer on politics have rarely, if ever, been surpassed, was the most bitter antagonist of the present government. The Middlesex election was eagerly embraced by him as an opportunity of advancing the great object he had in view—namely, that of the restoration of the Whig aristocracy to power. He dipped his pen in gall for this purpose, attacking the Duke of Grafton’s administration with virulent invective and energetic eloquence, if haply he might effect its overthrow. He marred his fame, however, by an exhibition of personal resentment against individual members of the cabinet, and by putting forth foul calumnies from his secret hiding-place against the highest characters in the realm. Political writers may be bold in uttering truth, but when they use slander as one of their most powerful weapons, then they sink their characters as men, and forfeit their claim to be heard by society. But this was not the opinion in those days of turbulent excitement. Junius was heard and heeded by the mass, and though he did not break up the administration, which was the main object he had in view, his writings had the effect of confirming the people in their opposition to government. Faction was so prevalent that ministers sought to counteract it by procuring loyal addresses from various parts of the country. Only four counties, a few corporations, and the two universities responded to their call; while, on the other hand, numerous petitions of a contrary tendency, were got up without any difficulty.

Discontent ruled dominant before the legislature reassembled, both in the city of London, and throughout the whole country. With a view of embarrassing government, Alderman Beckford was again elected to the mayoralty, although some ancient by-laws forbade the same person to be chosen twice within the space of seven years. This objection was urged, but overruled by precedents. Ministerial troubles grew on every side. Ireland, as well as England and America, was in a state of trouble and commotion. At this time it was overrun by Levellers, White-boys, Oak-boys, and Hearts-of-Steel—factions which were bound together by secret oaths and a mutual detestation of tithes. Nor was the Irish parliament less disorderly. In the month of October a bill was brought into the Irish house of commons for increasing the military establishment in that country, which was recommended by the lord-lieutenant, and although it was carried, it was not till after it had encountered a violent opposition. In the month of November, also, the Irish commons claimed the right of framing all money-bills, which hitherto had been sent over to them by the English cabinet. They rejected the one sent over this year, and although they voted a more liberal supply of their own freewill, the lord-lieutenant would not recognise the newly-claimed right. He called it a violation of the law, and an encroachment upon the king’s prerogative. He entered his protest against it, and he then suddenly prorogued parliament before it had done any business. Thus his majesty was surrounded by troubles in almost every part of his dominions. England, Ireland, and America were all arrayed against him, and insubordination was the order of the day. What made his situation more critical was, that he had not a minister of sufficient ability to guide the helm of the state, so as to keep it clear from the rocks and the shoals by which it was surrounded.

CHAPTER III.

{GEORGE III. 1769—1771}

The Affairs of America..... Meeting of Parliament..... Dissolution of the Grafton Cabinet..... Debates on the Middlesex Election, &c. The Question of Controverted Elections..... Debates on America..... Release of Wilkes..... American Affairs..... Riots at Boston..... The Prorogation of Parliament..... Remonstrance of Beckford to the King..... Prosecution of Woodfall and Almon..... Disputes respecting Falkland Islands..... Affairs of America..... Meeting of Parliament..... Debate concerning the Falkland Islands..... Parliamentary Proceedings on the Law of Libel..... Quarrels between the Lords and Commons..... Convention with Spain..... Changes in the Ministry.

THE AFFAIRS OF AMERICA.

It has been seen how the Americans were affected by the Declaratory Bill, which accompanied the repeal of the Stamp Act. Had government been wise, their disaffection would have taught its members to have devised some conciliatory measures in order to prevent the threatened outbreak. The conduct of the government, however, was the very reverse from this. Instead of allaying the discontents of our colonists, ministers increased them by resolving to enforce what

they called the Mutiny Act. This was carried hurriedly through the house at the close of the session; and though the consequences of such a course must have been as clear as daylight, yet ministers resolved to put it into execution. For the Mutiny Act was, more properly speaking, an act for quartering and better providing for the troops at the expense of the colonies. It gave power to the military to billet themselves on private houses, as was done in the war, and therefore was naturally offensive to the whole of the American population, whether friendly or adverse to the English government. It was calculated to make foes of friends, and to confirm those who were already foes, in their opposition to the mother country. The design of this measure, doubtless, was to overawe the colonists; but the spirit of freedom had taken too deep root in America thus to be overawed. Matters, in truth, grew worse and worse daily in that country. The minds of the Americans had been chafed to such a degree by their original grievances, and the measures which had been adopted to enforce their quiescence, that they became every day more and more disaffected toward the English government. How full fraught the country was with rebellion became manifest on the arrival of the newly-formed American board of commissioners, at Boston, to enforce the payment of the duties recently imposed upon them, and to put an end to smuggling. In the preamble to Charles Townshend's Act, the colonists read, that these duties were laid "for the better support of the government, and the administration of the colonies;" and in the bill itself they found a clause which seemed to empower the king, by sign manual, to establish a general civil list in every province in North America, with salaries, pensions, and everything that could be obnoxious to a free-thinking people. This was instantly declared to be unnecessary, unjust, and dangerous to the rights of Americans; while the establishment of a civil list in America, independent of the assemblies, was pronounced illegal. Measures were taken by the people of Boston for putting into effect the non-importation agreements, which had been before suggested; the press was employed to demonstrate the iniquity of the taxing acts; and the assembly of Massachusets addressed a circular letter to all the other colonies to invite them to combine in taking measures to defeat the obnoxious act. Every assembly, except that of New Hampshire, adopted the sentiments and the plan contained in the circular of the assembly of Massachusets, and passed votes of thanks to the authors of it. How effective it was in exciting opposition is manifest from the following circumstance. Bernard, the governor of Massachusets, was instructed to require the house of representatives to rescind the resolution which gave birth to the letter, and to declare the king's disapprobation of it. But instead of rescinding the resolution, it received the emphatic confirmation of the assembly. This reply was sent to the governor:—"If the votes of this house are to be controlled by the direction of a minister, we have left us but a vain semblance of liberty. We have now only to inform you that this house have voted not to rescind, and that, on a division on the question, there were ninety-two nays, and seventeen yeas."

The next day, Governor Bernard received positive instructions to dissolve the assembly of Massachusets. But it was in vain that the arm of power sought to quell the general disaffection: when employed it had only the effect of making the colonists more resolute in their opposition. Associations and committees were formed in most

of the provinces, and smuggling was carried on in the broad face of day. Some months before, one Malcolm had fought with the custom-house officers, and had landed sixty pipes of Madeira at Boston without paying duty. In the month of June another cargo arrived at Boston, and when the excise-officer stepped on board he was seized and confined below, while the wine was sent on shore. The officer was afterwards liberated, and on the following morning the skipper of the sloop entered four or five pipes at the custom-house, declaring that this was the whole of his cargo. Aware of the falsehood of this statement, the commissioners ordered a comptroller to seize the sloop, and to fix the king’s broad arrow upon her. This was the signal for a riot. A mob, headed by Malcolm, beat and nearly killed several of the revenue officers, and the commissioners themselves were compelled to seek safety in flight. The sloop was, however, seized; the excise being assisted by the captain of the Romney man-of-war, then lying at anchor off Boston. This was on a Friday, and the two following days were comparatively quiet, but on Monday an immense mob gathered in the streets at Boston, and placards were stuck up, calling upon the “sons of liberty” to meet on the following morning. At this meeting a committee was appointed to wait upon the governor, to inquire why the sloop had been seized? This committee pretended that it was an affront offered to the town of Boston to act thus arbitrarily, since the sloop might have been left in safety at the wharf. The committee affected likewise to disapprove of the riot, and some few of the ringleaders were sought for and found, under the pretence of bringing them to condign punishment. But the whole was a farce. Malcolm, the smuggler, and others of a similar stamp, sate upon the grand jury, and quashed all prosecution.

It was these proceedings which seem to have persuaded the ministers at home to revive the obsolete statute of Henry VIII. Before the news of these Boston riots, however, had arrived in England, ministers had resolved to employ force. In a secret and confidential letter, Lord Hillsborough had told General Gage that it was his majesty’s pleasure he should send one regiment or more from Halifax to Boston, to be quartered in that town, in order to assist the civil magistrates and the revenue officers. This was on the 8th of June, and three days later Governor Bernard was informed by his lordship that his majesty had directed one regiment to be stationed at Boston, and had ordered a frigate, two sloops, and two armed cutters to repair to and remain in the harbour of that town for the above-mentioned purpose. It was not, however, till the month of September that the people of Boston became fully aware of the intention of government to send troops thither, and in the meantime they had been busy in organizing resistance to the Mutiny Act. In the month of August, the merchants and traders of Boston agreed upon a new subscription paper, to this effect:—“We will not send for or import from Great Britain, either upon our own account, or upon commission, this fall, any other goods than what are already ordered for the fall supply. We will not send for or import any kind of goods or merchandise from Great Britain, &c., from the lat of January, 1769, to the 1st of January, 1770; except salt, coals, fish-hooks and lines, hemp and duck, bar-lead and shot, wool-cards and card wire. We will not purchase of any factor or others any kind of goods imported from Great Britain, from January, 1769, to January, 1770. We will not import on our own account, or on commission, or purchase of any who shall

import from any other colony in America, from January, 1769, to January, 1770, any tea, paper, glass, or any other goods commonly imported from Great Britain. We will not, from and after the 1st of January, 1769, import into this province any tea, paper, glass, or painters' colours, until the act imposing duties on those articles shall be absolutely repealed." This paper was generally subscribed by the merchants of Boston, and, soon after, the merchants of Connecticut, New York, and Salem entered into similar agreements.

In the month of September a committee waited upon Governor Bernard, praying him to convene a general assembly. Then it was that they were informed that a military force was coming; and that, consequently, another assembly could not be convened till the governor had received the commands of his majesty. The inhabitants of Boston now resolved, at the peril of their lives and fortunes, to take all legal and constitutional measures to defend the rights, liberties, privileges, and immunities granted in their royal charter. They also agreed, that a certain number of persons should be chosen to act for them as a committee in convention, and to consult and advise with such as might be sent from other towns in the province. Finally, they fixed a convention, to be held in Faneuil-hall, on the 22nd of September, and voted that all the inhabitants not provided with arms should be requested to obtain some forthwith, as there was an apprehension in the minds of many of an approaching war with France.

The convention met on the day appointed. It consisted of deputies from eight districts and ninety-six towns, and its chief business was to petition the governor, make sundry loyal professions, and express an aversion to tumults and standing armies. Its deliberations were cut short by the arrival of the troops, under Colonel Dalrymple, who anchored in Nantasket Roads, near Boston. The governor requested the town-council to provide quarters for these troops in Boston, but they refused; stating, that by act of parliament all troops were to be quartered in the barracks, and that it was illegal to bring them into the town. Colonel Dalrymple led his soldiers to the common on the outside of Boston, and the town-council was again requested to quarter them in the town, which they again refused. He had two regiments under his command, and one of these took possession of Faneuil-hall—the other lay out on the cold common all night. On the evening of the next day, however, the governor ordered the town or state-house to be opened to the other regiment; and the soldiers took possession of every part of it, except the great council-chamber. These proceedings excited deep resentment, and when the governor and Colonel Dalrymple required the council to provide barrack provisions, as regulated by the Mutiny Act, the request was flatly refused. Still the inhabitants of Boston repressed their vindictive feelings. Care was taken by them, however, to make known their injuries, and the insults to which they were subjected in every part of British America. The picture they drew was, doubtless, exaggerated; but that they had grievances there can be no question. At all events they found the sympathy they desired in the various states of America. The Philadelphians, the Georgians, the Rhode-Islanders, and, in short, all the other colonies and towns, with the single exception of Portsmouth, the sole sea-port of New Hampshire, now followed their example, as regards the non-importation of goods from Great Britain. The very females of America partook of

the general spirit of resistance; for they entered into associations among themselves, proscribing the use of tea. Some there were among the merchants who showed a reluctance to comply with the terms of the agreement; but their houses were surrounded by organised mobs, and they were compelled to give up trade rather than risk the forfeiture of their property and lives by selling British goods.

Thus encouraged, the Bostonians became more bold in their opposition to government. The assembly being called together in May, 1769, a committee from the house of representatives remonstrated with the governor, complaining of an armament investing their city—of the military guard—of cannon pointed at the door of their state-house—and requesting him, as his majesty's representative, to order the removal of the ships and the troops. The answer they received was, that he had no authority over his majesty's ships, or over his troops, within the town of Boston. A few days after the house declared that the use of a military force in the execution of the laws was inconsistent with the spirit of the constitution, and that they would not transact any business while thus menaced by soldiers. In order to obviate this objection to business, the governor adjourned the assembly to Cambridge, a town separated from Boston by a narrow arm of the sea, but they were not more disposed for business at Cambridge than at Boston. The only vote passed by them was to this effect:—"That the establishment of a standing army in this colony in time of peace is an invasion of natural rights; that a standing army is not known as a part of the British constitution; that sending an armed force into the colony, under a pretence of assisting the civil authority, is highly dangerous to the people, unprecedented, and unconstitutional." When requested by the governor to make provision for the troops, after an indignant denunciation of the Mutiny Act, and observing, that of all the new regulations, not excepting the Stamp Act, this was the most unreasonable, they thus declared their resolution:—"Your excellency must excuse us in this express declaration—that as we cannot consistently with our honour and our interest, and much less with the duty we owe to our constituents, so we never will make provision for the purposes in your several messages mentioned." Finding the assembly thus refractory, the governor prorogued them, taking his leave in the following terms:—"To his majesty, therefore, and if he pleases, to his parliament, must be referred your invasion of the rights of the imperial sovereignty: you need not be apprehensive of any misrepresentations, as it is not in the power of your enemies, if you have any, to add to your publications—they are plain and explicit and need no comment. It is my duty, and I shall do it with regret, to transmit to the king true copies of your proceedings: and that his majesty may have an opportunity to signify his pleasure thereon before you meet again, I think it necessary to prorogue this general court immediately, to the usual time of the winter session."

Before governor Bernard prorogued the assembly, his majesty had requested his presence in England for the purpose of ascertaining the real state of the province; at the same time testifying his approbation of his conduct, and as a mark of his favour, creating him baronet. Sir Francis left the colony on the 1st of August, and at his departure, the powers of government devolved on lieutenant-governor Hutchinson, a native of the province; a man of great abilities, but influenced in his conduct by a grasping ambition, and an inordinate love of office and aggrandisement. On his

return, Sir Francis had no very favourable report to make of his province. Notwithstanding every precaution had been adopted, smuggling was still carried on to a very great extent. The Bostonians had even adopted the practice of tarring and feathering all informers, or all who attempted to assist the government: a brutal operation, which was often attended with a violence that destroyed life. Nor was smuggling carried on in the province of Boston alone. Associations against British commerce were organized to such an extent, that the exports to America were found to fall short of those in the preceding year by £740,000, and the revenue derived from that country was reduced from £701,000 to £30,000. In this the Americans were aided by other countries, who sent them their manufactures in great abundance, so that the narrow views of ministers not only destroyed the resources of Great Britain, but tended to enrich its commercial and political rivals. This greatly alarmed the English merchants, and Lord Hillsborough thought proper to issue a circular letter to the colonies, stating that his majesty's ministers intended, during the next session, to take off the duties upon glass, paper, and painters' colours, they having been enacted contrary to the true principles of commerce. No mention, however, was made of the duty upon tea, and the Americans looked upon this omission as having been purposely and invidiously made, as a mark of the legislative supremacy of Great Britain. Nothing, moreover, was said about repealing the odious clauses in the Mutiny Act, and the colonists likewise complained that the circular spoke of commercial expediency, and not of the right which they claimed of imposing taxes upon the colonies by their own act alone In truth, if this circular was intended to conciliate the inhabitants of British America, it was a total failure. The universal mind was too much irritated to be soothed by such an impotent palliative.

MEETING OF PARLIAMENT.

{A.D. 1770}

Although America was almost in a state of open rebellion, and England itself, with Ireland, were rent with faction, yet the parliament did not assemble till the 9th of January. This delay naturally excited surprise, and this was still further heightened by the tenor of the king's speech. Taking no notice of the public discontents, though it feelingly lamented the general distress, it chiefly adverted to a general distemper which had broken out among the horned cattle, which the king gravely assured the lords and commons, he had, by the advice of his privy-council, endeavoured to check. And this was solemnly uttered when wits and scoffers abounded on every hand—when Junius had his pen in his hand full fraught with gall, and Wilkes was bandying about his bon-mots and sarcasms. "While the whole kingdom," says Junius, in a letter to the Duke of Grafton, "was agitated with anxious expectation upon one great point, you meanly evaded the question, and instead of the explicit firmness of a king, gave us nothing but the misery of a ruined grazier." Never was a speech from the throne more unfortunate, indeed, than this, for though it slightly adverted to the disturbances in America, yet the subject of the disease existing among horned cattle was its prominent feature. It was no wonder, therefore, that it became the jest of the whole nation. Newspapers, pamphlets, and periodicals teemed with biting sarcasm on

this most extraordinary circumstance. The king's love of farming was bitterly descanted upon, and he was represented as attending to cows, stalls, dairies, and farms, while his people were misgoverned and discontented, and his empire, like a ship in a furious storm, in danger every minute of being dashed to pieces. In fine, to show the most profound contempt of such a speech from the mouth of the monarch, at such a season, the session was nicknamed "the horned cattle session."

Before the opening of parliament, one day the Earl of Chatham stalked into the drawing-room of St. James's, and after the levee had some private conversation with the king. What passed between them is unknown, but Horace Walpole says, that his reception was most flattering, and the king all condescension and goodness. It does not appear, however, that the interview satisfied Chatham, for it by no means tended to soften his opposition. When parliament met, indeed, he took his place in the house of lords, vigorous and more eloquent than ever, and the administration was doomed to feel his power, like that of a giant refreshed with wine.

The address, which was moved in the upper house by the Duke of Ancaster, and seconded by Lord Dunmore, was as general and unmeaning as the king's speech. Chatham rose to reply, and after glancing at his age and infirmities, he took a general review of measures since the year 1763. There never was a period, he asserted, when the serious attention of the house to public affairs was more imperatively demanded, and he boldly maintained that it was the duty of their lordships to lay the true state and condition of the country before his majesty. After indulging in a quiet sneer at the care the council had bestowed upon horned cattle, he remarked, that he was glad to hear that the king had reason to believe the peace of the country would be preserved, since peace could never be more desirable to a kingdom, than when it was torn to pieces by divisions and distractions, as England was at the passing hour. He then criticised the last treaty with France and Spain, asserting that England had not obtained what she had a right to expect from the success of our arms, and the feeble condition of our enemies. He also maintained, that having deserted our ally the King of Prussia, we had left ourselves without alliances on the continent, and, consequently, had been every moment on the verge of a new war, during a seven years' peace. This war, he said, might be unavoidable, and must be unfavourable to England, as the princes of the house of Bourbon, while we stood in an isolated position, had become closely united among themselves, and had formed the closest connexion with the powers of Europe. He, however, lamented still more the unhappy acts which had severed the affections of the American colonists from Great Britain; and the internal discontents of the country. To these he earnestly called the attention of their lordships, since their privileges, however transcendent and appropriate in themselves, stood in fact on the people as a basis. The rights of the highest and the meanest subject, he said, had the same foundation, the security of the law, which was common to all. He maintained that the liberty of the subject was invaded both at home and in the colonies, and that the people who were loud in their complaints, would not be pacified without a redress of their grievances. Liberty, he observed, was a plant that deserved to be cherished; that he loved the tree himself, and wished well to all its branches; that, like the vine in scripture, it had spread from east to west, had embraced whole nations with its branches, and sheltered them under its leaves.

Concerning the discontents of the colonists, he conceived that they arose from the measures of government. These had driven them into excesses which could not be justified, but for which, he, for one, was inclined to make some allowance. As to their combinations, and their success in supplying themselves with goods, this, he said, had alarmed him for the commercial interests of the mother country, but he could not conceive in what sense they could be deemed illegal, or how the house by any declaration could remove the evil. Other remedies must be looked for, as the discontents of two millions of people could only be removed by a removal of their causes. Finally, on the subject of discontent in England, he attributed it to the proceedings of the house of commons in the matter of Mr. Wilkes, and he concluded by submitting the following amendment:—"That after the words, 'and which alone can render our deliberations respectable and effectual,' be inserted these words, 'and for these great and essential purposes, we will, with all convenient speed, take into our most serious consideration the causes of the discontents which prevail in so many parts of your majesty's dominions, and particularly the late proceedings of the house of commons, touching the incapacity of John Wilkes, Esq., expelled by that house, to be elected a member to serve in this present parliament, thereby refusing, by a resolution of one branch of the legislature only, to the subject his common right, and depriving the electors of Middlesex of their free choice of a representative.'"

This amendment was opposed by Lord Mansfield, he considering that it was a gross attack on the privileges of the commons, and calculated to create a quarrel between the two houses, or between the king and the commons. A question, he said, relating to the seat of a member, could only be determined by the house itself, whose judgment was final, and must be received as the law of the land. The arguments which he used in his speech to support his opinions were ably answered by Chatham. The noble lord began his reply by extolling common sense above subtilty and ingenious refinement. The constitution had been invaded, and he heard with astonishment that invasion defended on principle. He denied that the commons had a supreme jurisdiction, or that its decision must be received as the law of the land; for why, he pertinently asked, were the generous exertions of our ancestors made to secure and transmit to their posterity a known law and a certain rule of living, if, instead of the arbitrary power of a king, we must submit to that of a house of commons? Tyranny was detestable in any shape, but especially when exercised by a number of tyrants. But that, he triumphantly asserted, was not the fact or the constitution of England, and he pointed out where the law of parliament might be found by every honest man; namely, in Magna Charta, in the statute-book, and in the Bill of Rights. The first principle of the constitution is, he observed, that the subject shall not be governed by the will of any man or body of men, but by the whole legislature, and by certain laws to which he has given his assent: laws which were open to him to examine, and not beyond his ability to understand. He then denounced the late decision as destitute of every condition essential to its legality, and as being unsupported by reason, precedent, Magna Charta, or the Bill of Rights. Whether it be questioned by the legislature, he continued, will depend on the resolution of the house; but that it violates the constitution, no man who had listened to the debate could deny. He then expressed his confidence in the wisdom and constitutional

authority of the house, and after praising the ancient nobility as founders of the constitution, and invoking the house to follow their brilliant example, he thus concluded:—“Those iron barons—for so I may call them when compared with the silken barons of modern days—were the guardians of the people; yet their virtues were never engaged in a question of such importance as the present. A breach has been made in the constitution—the battlements are dismantled—the citadel is open to the first invader—the walls totter—the constitution is not tenable. What remains, then, but for us to stand foremost in the breach, to repair, or to perish in it?”

The lord chancellor Camden had declared, upon his patron’s resignation of the privy-seal, that Chatham should still be his polar star, and that he reluctantly consented “to hold on a little while longer with this crippled administration.” The part which he took in this debate proved him to be sincere in his declarations. The house was astonished to hear, indeed, sentiments from his lips as strong as those delivered by Chatham. “I accepted,” said he, “the great seal without conditions: I meant not therefore to be trammelled by his majesty—I beg pardon—by his ministers. But I have suffered myself to be so too long. For some time I have beheld with silent indignation the arbitrary measures of the minister. I have often drooped and hung down my head in council, and disapproved by my looks those steps which I knew my avowed opposition could not prevent. I will do so no longer, but will openly and boldly speak my sentiments.” Lord Camden then agreed with his friend respecting the incapacitating vote of the commons, and accused the ministry, by implication, of having formed a conspiracy against the liberties of the country. By their violent and tyrannical conduct, he said, they had alienated the minds of the people from his majesty’s government—he had almost said from his majesty’s person—and that in consequence a spirit of discontent had spread itself into every nook of the kingdom, and was daily increasing, so that it was to be feared, that, if some methods were not devised to appease the clamours heard on every hand, the people might in despair become their own avengers, and take the redress of their grievances into their own hands. The address was negatived, and Lord Pomfret then moved an adjournment for some days; chiefly, as Lords Temple and Shelburne told the house in reply, for the purpose of removing the untractable chancellor, Camden, from his seat in the ministry. Lord Shelburne, however, expressed a conviction “that after the dismissal of the present worthy chancellor the seals would go a begging,” and that “there would not be found in the kingdom a wretch so base and mean-spirited as to accept of them on the conditions on which they must be offered.”

The address in the house of commons was moved by Sir George Osborne In opposition, Mr. Dowdeswell moved for the insertion into the address of words, intimating the necessity of inquiring into the causes of the prevailing discontents in every part of his majesty’s dominions. The debate on this motion was most violent, and lasted many hours. Colonel Barré observed, “that a great part of the king’s subjects were alienated from him; England was in opposition to its own representatives; in Ireland the parliament was prorogued because it had supported the true constitutional right of taxation; the colonies were in actual rebellion on account of taxes confessedly imposed, not for gain, but as a mere test of obedience; and, perhaps to crown the whole, France was on the eve of a war with us.” The

Marquis of Granby expressed his regret for having, in the preceding session, voted with ministers on the question of the disqualification of Mr. Wilkes, and wished the house would re-examine their resolution. General Conway opposed the amendment; and Lord North, Sir Fletcher Norton, and Charles James Fox took the same side of the question, and the amendment was rejected by a majority of 254 to 138. Another warm debate arose on the morrow, on the question of receiving the report of the address. Sir William Meredith said, that thanking the king for his approbation of their conduct would imply an approval of the vote respecting the Middlesex election. Sir George Sackville accused the house of betraying the rights of the people; and being threatened with the tower by General Conway, he was defended by Sergeant Glynn and Mr. Burke, the latter of whom dared ministers to punish Sir George, and told them that they were abhorred by the people. Thus supported, Sackville repeated the charge, and he was followed by Fox, who deprecated the licentious language introduced in the house. Burke replied, but there was no division.

{GEORGE III. 1769—1771}

DISSOLUTION OF THE GRAFTON CABINET.

Before the declarations made by Lord-chancellor Camden in the house of lords, his conduct had been so displeasing to his colleagues that he was not consulted in any of their measures, and he had not even a voice in the preparation of the king’s speech. When, therefore, he stood openly forward as an opponent of the cabinet, it was not to be expected that the seals would be long left in his possession. The opposition knew this, and their only fear was that he would anticipate ministers by a spontaneous resignation, and thereby free the ministers from the odium which they would obtain from the public by his dismissal. Camden, however, seems to have had no thoughts of taking such a step, and the ministers had no alternative left but to remove him from office. Accordingly he was dismissed, and Lord Shelburne’s prediction was literally verified—the great seals went a begging. The Honourable Charles Yorke, indeed, reluctantly accepted them, but before his patent of peerage could be completed, he committed suicide, and the government had to seek another chancellor. The seals were successively offered to Sir Eardley Wilmot and Lord Mansfield, who would not accept them, and nothing remained but to put them in commission, and to appoint a speaker in the house of lords in the interim. This latter office was accepted by Lord Mansfield, and some time after, Sir Sidney Stafford Smythe, one of the barons of the exchequer; the Honourable Henry Bathurst, one of the justices of the common pleas; and Sir Richard Aston, one of the justices of the king’s bench, were appointed commissioners. But the embarrassment of government did not end here. While business was suspended in the house of lords by the want of a chancellor, it was also suspended in the commons by the illness of the speaker, Sir John Cust. Moreover, the removal of Lord Camden was followed by the resignation of his friend Mr. Dunning, the solicitor-general; of the Marquess of Granby, as master-general of the ordnance, and commander-in-chief of the forces; of Mr. James Grenville, who held the office of one of the vice-treasurers for Ireland; and of several noblemen who held offices in the household. The greatest blow to the existence of the ministry seems to have been the

resignation of Granby—a blow which the king and the ministers in vain sought to avert. Urged by some of the leading members of the opposition, who as earnestly desired him to adopt this line of conduct, as the king and his ministers entreated him not to resign, he gave up everything except his regiment—the Blues. The ordnance was then offered to General Conway, who refused to accept any of “Lord Granby’s spoils,” and the fragment of the ministry still left in office had to brave the storm of opposition as they best could.

After the adjournment which had taken place during these changes, on the 22nd of January, the Marquess of Rockingham moved in the house of lords, that the house should, on the 24th, take into consideration the lamentable state of the nation. In reply, the Duke of Grafton remarked, that he did not intend to oppose this inquiry, and that he was ready at any time to enter into the question. The Earl of Chatham then rose, and in a long and eloquent speech, complained of a breach made in the constitution. There was a capital mischief fixed at home, which corrupted the very foundation of our political existence, and preyed upon the very vitals of the state. “The constitution,” he exclaimed vehemently, “has been grossly violated—the constitution at this moment stands violated! Until that wound be healed, until the grievances be redressed, it is in vain to recommend union to parliament—in vain to promote concord among the people. If we mean seriously to unite the nation within itself, we must convince them that their complaints are regarded, that their injuries shall be redressed. On that foundation I would take the lead in recommending peace and harmony to the people. On any other I would never wish to see them united again. If the breach in the constitution be effectually repaired, the people will of themselves return to a state of tranquillity; if not, may discord prevail for ever! I know to what point this doctrine and this language will appear directed; but I feel the principles of an Englishman, and I utter them without apprehension or reserve. The crisis is indeed alarming—so much the more does it require a prudent relaxation on the part of government. If the king’s servants will not permit a constitutional question to be decided on according to the forms, and on the principles of the constitution, it must then be decided in some other manner; and rather than it should be given up—rather than the nation should surrender their birthright to a despotic minister, I hope, my lords, old as I am, I shall see the question brought to issue, and fairly tried between the people and the government.” The Earl of Chatham next offered some severe remarks on the surrender of Corsica, the augmentation of troops in Ireland, the arrears of the civil list, the waste of the public revenues, and the evils arising from the riches of Asia. “The importers of foreign gold,” said he, “have forced their way into parliament by such a torrent of private corruption, as no private hereditary fortune could resist.” He then offered several suggestions on the propriety of a reform in parliament—suggestions, he observed, not crude and undigested, but ripe and well-considered, as the subject had long occupied his attention. His scheme was, not that the rotten boroughs should be disfranchised, though he considered them as the rotten part of the constitution; nor that the unrepresented towns should be allowed members, though he admitted that in them great part of the strength and vigour of the constitution resided—but that each county should elect three members instead of two, he considering that the knights of the shires approached the nearest

to the constitutional representation of the country, because they represent the soil. At the same time, he recommended that the city representatives should be augmented, and that in increasing the number of representatives for the English counties, the shires of Scotland should be allowed an equal privilege, in order to prevent any jealousy which might arise from an apparent violation of the union. In concluding his speech, he proclaimed his coalition with the Marquess of Rockingham, whom, on a previous occasion he had overthrown as an incapable statesman; justifying the union formed between them, on the grounds that it was formed for the good of the country; or, in his own words, “to save the state.”

It must be admitted that the scheme of parliamentary reform divulged by the Earl of Chatham was by no means enlightened or impartial. In it no allowance was to be made for the growing importance of the commercial and manufacturing interests, the landed interests alone were consulted, and the country gentlemen, who had never been celebrated for liberal measures in their legislation, were to crowd the house of commons, and to decide upon the affairs of the nation. The Earl of Chatham himself, at a later period, seems to have doubted the efficacy of his plan of reform, for he admitted that the knights of the shires or the country members of the house of commons, “were not the most enlightened or spirited part of the house.” All history, indeed, tends to prove that such a plan of reform would have proved abortive, so far as regards the liberty and well-being of the great body of the people, and the perfecting of the theory of the English constitution, so far as to make its political practice agree with its principles. There can be no question, indeed, but that all other interests would have been secondary to that of the agricultural in the consideration of a parliament thus constituted; whereas the aim of an enlightened legislature should be to secure the interests of every section of the community, whether agricultural, commercial, or manufacturing.

The Earl of Chatham signified his intention of supporting the Marquess of Rockingham on the 24th, when the great question mooted by him was to be discussed. On that day, however, it was announced that he was too ill to attend, and Rockingham also was distressed in mind by the melancholy suicide of the Honourable Charles Yorke. Under these circumstances, he moved the adjournment of the question to the 2nd of February, which was granted by the house; but before that time the Duke of Grafton, harassed by these commotions and scourged by the press, especially by the writings of Junius, had resigned his office, and the king had committed the charge of government to Lord North. At the same time, the state of the health of Sir John Cust, having induced him to resign the speaker’s chair, Sir Fletcher Norton was elected his successor. The Earl of Halifax, moreover, was appointed privy seal in the room of Lord Bristol; Mr. Wellbore Ellis was selected to be a vice-treasurer in Ireland; Charles Fox was made a lord of the admiralty; and Mr. Thurlow was created solicitor-general instead of Mr. Dunning. There were a few minor substitutions and interchanges of offices, but these were the principal; and Lord North’s ministry was, therefore, for the most part a continuation of that of the Duke of Grafton. The Marquess of Gran by’s places of the ordnance and commander-in-chief were left vacant for the present, and the great seal was left in commission, with the commissioners already named.

Lord North, with whose administration commences a momentous era in the annals of Great Britain, was eldest son to the Earl of Guildford. In private life he was one of the most amiable and worthy of men, and he was a man of elegant acquirements. In public life, also, he was scarcely less honoured. Brought up amidst official duties, and aiming constantly at legislatorial distinction, he had acquired eminent skill in managing a debate, while his good humour and equanimity of temper secured to him a greater share of esteem and affection than was perhaps ever possessed by any other minister. Yet his estimable qualities and his political skill had not sufficient potency to disarm opposition. In the very outset of his administration, indeed, the opposition made him feel that he had not taken possession of a bed of roses; or, at least, roses without thorns. The principal object of the late debates in the house of lords was to procure a vote in favour of the Middlesex electors: with the same end in view, Mr. Dowdeswell now moved another resolution in the commons; namely, “That by the law of the land, and the law and usage of parliament, no person eligible of common right can be incapacitated by a resolution of the house, but by an express act of parliament only.” This undeniable proposition placed ministers in a dilemma, for it was only a prelude to others, and if they agreed to it and rejected those that followed, they would seem to resist conclusions from premises they had themselves conceded; while if they rejected it, it would appear as if the house of commons was a capricious court; a court neither bound by law nor by the usages of parliament. The debate on the question was one of great violence; and in the course of it, Colonel Barre compared the state to a vessel in a storm which had parted with her mainmast (Grafton,) and was trying to sail under a jury-mast (North). The new premier acknowledged that the storm was great, but asserted that the ship was not compelled to hang out lights for pilots, as her own crew were capable of conducting her safely into port. And so it proved. North avoided the snare laid for him by moving as an amendment, “That the judgment of the house on the Middlesex election is conformable to law and the usage of parliament,” which was eventually carried by a large majority.

On the 2nd of February, pursuant to notice, the Marquess of Rockingham made a similar motion to that of Mr. Dowdeswell in the house of lords. He moved, “That the house of commons, in the exercise of its judicature in matters of elections, is bound to judge according to the law of the land, and the known and established law and custom of parliament, which is part thereof” This was opposed by Lord Sandwich on the ground of improper interference with the lower house, which, if aggrieved, had the means of redress in its own power. Lord Sandwich was answered by Lord Chatham. In the course of his speech, Sandwich had alluded to the expulsion of Lionel, Earl of Middlesex, and the great Lord Bacon, “for certain crimes and misdemeanours,” from which he argued that the peers now ought to take no more notice of the expulsion of Wilkes, than the commons then had taken notice of the expulsion pronounced by their lordships on the above-named noble offenders. To this point Chatham replied: “Neither of these cases bear any analogy to the present case. They affected only themselves: the rights of no constituent body were affected by them. It is not the person of Mr. Wilkes we complain of; as an individual he is

personally out of the dispute. The cause of complaint, the great cause is, that the inherent rights and franchises of the people are in this case invaded, trampled upon, annihilated. Lord Bacon and Lord Middlesex represented no county or city: the rights of no freeholder, the franchises of no elector, were destroyed by their expulsion!" In his speech, Chatham declaimed with great severity against the gross dereliction of principle shown by the commons. They were, indeed, he said, the proper protectors of their own rights and privileges; but he lamented that they had, by their recent conduct, forgotten those privileges, and had added to the long list of venality from Esau to the present day. The vote of the commons which made Colonel Luttrell representative for Middlesex, he maintained, was a gross invasion of law and of the rights of election; a dangerous violation of the constitution; a treacherous surrender of privileges; and a corrupt sacrifice of honour. He added, that to gratify the resentment of certain individuals, the laws had been despised and destroyed, and that since the commons had slavishly obeyed the commands of his majesty's ministers, and proved themselves corrupt, it was necessary for their lordships to step forward and oppose themselves, on the one hand, to the justly incensed and intemperate rage of the people, and, on the other to the criminal and malignant conduct of his majesty's ministers: their lordships were the constitutional barrier between the extremes of liberty and prerogative. The house was excited, but the motion was negatived by a large majority. On the ministerial side, the Earl of Marchmont then moved, "That any resolution of the lords directly or indirectly impeaching a judgment of the house of commons, in a matter where their jurisdiction is competent final, and conclusive, would be a violation of the constitutional right of the commons, tending to make a breach between the two houses of parliament, and leading to general confusion." In his speech, the Earl lost his temper and his discretion, imprudently hinting that if the opposition went one step further it would be necessary to call in the aid of Foreign assistance. He was called to order by the Duke of Richmond, and when he attempted to explain, he found himself unable, and Lord Mansfield was compelled to relieve him, by declaring as a lawyer and a statesman, that their lordships had no right to interfere in any determination of the commons. The Earl of Egmont pursued the same course, and declared that the people were guilty of treason in offering such petitions as they had recently offered to his majesty. The Earl of Chatham again rose, and after thanking Lord Egmont in an ironical strain for his lenity in allowing the petitioners to wear their heads, he defended the petitions as praiseworthy and constitutional, and re-asserted that the house of lords had a right to interfere, when either an invasion of the people's liberty was attempted, or an unconstitutional determination made. This was in reply to the statement of Lord Mansfield, and he then praised the abilities of that nobleman at the expense of his honour, honesty, and patriotism. Chatham next complained of the ministerial motion, and of the late hour—for it was midnight—at which it had been made. He proposed an adjournment for two days. "If," he exclaimed, "the constitution must be wounded, let it not receive its mortal stab at this dark hour, when honest men are asleep in their beds, and when only felons and assassins are seeking for prey." Ministers, however, seem to have acted upon the well-known adage, that "delays are dangerous." The adjournment was rejected, and at two o'clock in the morning Marchmont's motion was carried. Protests were entered against both

decisions, the former being signed by forty-two, and the latter by forty peers.

Similar discussions led to similar results in the house of commons. On the 5th of February a debate was there entered upon, in which the opposition urged that the expulsion of Wilkes had been determined by ministers in council, and a motion was also made to bring in a bill to regulate and define the consequences of expulsion from the house; but the ministers in each instance were victorious. The exertions of the opposition, however, were warmly supported by a large majority of the liverymen of London, who busied themselves in getting up memorials and remonstrances, and hence they were nothing daunted by their repeated defeats. Ministers were, indeed, attacked upon other points of their policy besides the matter of Wilkes Thus, on the 2nd of March, Lord Craven, acting with the opposition, moved an address to the throne, beseeching his majesty forthwith to take proper steps for such an increase of seamen in the royal navy as should effectually preserve the honour and security of his; majesty's kingdom and colonies. This was made the medium of severe censures on the dismissal of able officers for their votes in parliament, and also on the entire management of the navy. Earl Chatham supported the motion, and condemned the conduct of ministers in this particular branch of the national service, as base and unworthy. In his speech he again adverted to his favourite topic; that of the secret influence which was at work near the throne. This influence he denounced as dangerous, base, unconstitutional, and wicked; and maintained that it had occasioned all the unhappiness of the nation, and created confusion in the government of the colonies. He then asserted that this invisible influence was still working for evil, for although the favourite (Bute) was gone to Turin, Mazarine absent was Mazarine still; and his influence by means of agents was potent as ever. Then, raising his voice, he exclaimed, "This country was sold at the late peace! We were sold by the court of Turin to the court of France!" Chatham then indirectly accused the king of insincerity and treachery to himself, personally, during the time that he was minister; asserting that after he had given his approbation to plans and measures one week, he would let them vanish into air the next, and that all his promises and assurances were broken through an in-invisible influence. The king was defended by the Duke of Grafton, who hinted that the intellect of Chatham was affected; but this only drew forth a repetition of the accusation in stronger language. "I rise," said he, "neither to deny nor retract, nor to explain away the words I have spoken. As for his majesty, I have always found him everything gracious and amiable in the closet; so amiably condescending as to promise, in every repeated audience, not only to forgive, but to supply the defects of health by his cheerful support, and by the ready assistance of all his immediate dependents. Instead of this, all the obstacles and difficulties which attended every great and public measure did not arise from those out of government: they were suggested, nourished, and supported by that secret influence I have mentioned, and by the industry of those very dependents; first by secret treachery, then by official influence, and afterwards in public councils. A long train of these practices has at length unwillingly convinced me that there is something behind the throne greater than the king himself."

It seems clear that when the Earl of Chatham made these assertions, the councils of the king were no longer biassed by the influence of the Earl of Bute; but,

notwithstanding, the charges made all the impressions on the public mind which he could have desired. Some even declared that they knew the secret agents that went between the absent lord, the princess dowager and the king, and Mr. Dyson, Mr. Bradshaw, both placemen and members of parliament, and subsequently, Mr. Jenkinson (afterwards Baron Hawkesbury and Earl of Liverpool,) were expressly named as the principal of the parasites. The popular credulity on this subject appeared to receive confirmation from the conduct of the king towards the “good citizens” of London. Four days after this debate in the house of lords the common hall of the city took into consideration a memorial complaining that a petition which had been presented to his majesty by the citizens remained unanswered. This memorial, after the lord mayor Beckford had delivered an exciting harangue, was adopted by acclamation, and with three rounds of applause. At first the king refused to hear this memorial; but he at length consented, and it was carried up to St. James’s on the 14th of March by the lord mayor, and more than two hundred common-councilmen, liverymen, and city officers. It was read to the king as he sat upon his throne, and perhaps the ears of royalty were never destined to hear stronger remonstrances than this memorial contained. It told him that secret and evil counsellors, combined with a corrupt parliament, robbed the people of their dearest rights, and that they had done a deed more ruinous in its consequences than the levying of ship-money by Charles I., or the dispensing power assumed by James IL, and which deed must vitiate all the further proceedings of the present parliament; it called God and man to witness that the citizens would not be thus cheated of their liberties; and that as they were gained by the stern virtues of their ancestors, so they should be preserved by themselves; and it concluded by praying that the king would dissolve the present parliament, and remove from him all evil counsellors. With a clouded brow the king in reply pronounced the contents of this memorial to be disrespectful to himself, injurious to his parliament, and irreconcilable to the principles of the constitution; and he asserted that he had ever made the law of the land the rule of his conduct, that he esteemed it his chief glory to rule over a free people, and that he had a right to expect from them a steady and affectionate support. The city deputation withdrew, amidst the manifest resentment of the courtiers, and the court instantly resolved to bring the memorial before the notice of parliament. This was done on the 19th of March, when it was moved by Sir Thomas Clavering, “That to deny the legality of the present parliament, and to assert that the proceedings thereof are not valid, is highly unwarrantable, and has a manifest tendency to disturb the peace of the kingdom, by withdrawing his majesty’s subjects from then-obedience to the laws of the realm.” This motion was warmly opposed, but it was carried by a large majority, and an address to the king was also agreed to in condemnation of the city memorial, both by the lords and the commons. It is said that the king graciously received this address, but that he thought the city magistrates ought to have been proceeded against by parliament for their conduct. On the other hand, the city and the people of Middlesex were offended by the conduct of the opposition, and the smallness of the minority that voted against the address, and they passed strong resolutions, expressing their discontent. The blame was chiefly imputed to the Rockingham party; and the Rev. Mr. Home—better known at a later date by the name of Home Tooke—who had begun to rule the democracy at the Mile-end and Brentford meetings, announced his intention

of exposing that party; but this was prevented chiefly through the influence of the Earl of Chatham. Instead of this, indeed, the reverend orator employed his talents in getting up a strong petition and remonstrance to the king from the freeholders of Middlesex, and which was presented on the 31st of March; the Earl of Chatham having previously thanked him for his able exertions in the cause of freedom, and for abstaining from his proposed attack on the Rockingham party.

THE QUESTION OF CONTROVERTED ELECTIONS, ETC.

Ever since the famous Aylesbury case, in 1704, the house of commons had been sole judge of the qualification of electors, and of all other matters regarding the election of their own members. All controverted elections were tried before a committee of the whole house, the members not being bound to impartiality, either by oath, promise, or pledge. On the 2nd of April, Mr. George Grenville brought in a bill for regulating the trial of controverted elections, which provided that, in every case, the judicature should be transferred from the house to a sworn committee of fifteen members, whereof thirteen were to be chosen by the contesting claimants for the seat, out of a list of forty-five chosen by ballot by the whole house, and the other two named by the contesting parties themselves; one for each. The committee were to have full power to examine witnesses, papers, and records, and their oath bound them to a strict impartiality. This bill met with stern opposition from the ministers, and at one stage it was moved by Mr. Welbore Ellis, that it should be rejected, which was seconded by Mr. Charles Fox; but the bill was eloquently defended by Burke, and it passed into a law. It was carried up to the lords by Mr. Grenville on the 5th of April, where, as Lord Mansfield had expressed his approbation of it, and promised its support, no opposition was feared. It passed unanimously, and it seems to have had a very beneficial effect on the legislature.

Previously to the passing of this act, a bill was proposed by Mr. Dowdeswell to disqualify officers of the excise and customs from voting at elections The mover stated, that both classes were under the influence of the crown, and that the departments of the revenue were becoming so numerous as to render that influence incompatible with a free constitution. There was no attempt, however, to prove corruption, and the motion was rejected, as unfair in its attempt to deprive individuals of the rights of British subjects, on the mere presumption of venality. An act at the same time was passed for altering the law of privilege, so far as it extended to the effects and domestics of the members of either house. In the house of lords this bill was warmly supported by Lord Mansfield, and as warmly opposed by Lord Sandwich, who argued, that it was an encroachment upon the privileges of the peers. An inquiry into the accounts of the civil list, during the year 1769, was a popular subject in both houses about the same time. The expenses having greatly increased, it was inferred that the money was employed in the corruption of electors. Ministers opposed this inquiry, arguing, that as the civil list was solely the revenue of the crown, the crown had a right to expend it as it pleased; and that if an additional grant had been asked, then, and not till then, the expenditure might have been investigated, for the purpose of ascertaining the necessity of the grant, and how the money was spent. The motion was negatived, and other attempts to interfere with the

management of the king’s revenue met with a similar fate.

The debate in the house of lords on this question is rendered remarkable by the eloquent speech uttered by the Earl of Chatham. In the course of this speech he asserted that the minister who was bold enough to spend the money of the people before it was granted, though it might not be used for the purpose of corrupting their representatives, deserved death. He was reminded that he, too, when in office, had granted pensions, to which he replied, “It is true, and here is a list of them: you will find there the names of General Amherst, Sir Edward Hawke, and several others of the same nature—they were given as rewards for real services, and as encouragements to other gallant heroes. They were honourably earned in a different sort of campaign than those at Westminster; they were gained by actions full of danger to themselves, of glory and of benefit to this nation—not by corrupt votes of baseness and of destruction to their country. You will find no secret service there; and you will find that, when the warrior was recompensed, the member of parliament was left free. You will likewise find a pension of £1,500 a year to Lord Camden. I recommended his lordship to be chancellor; his public and private virtues were acknowledged by all; they made his station more precarious. I could not reasonably expect from him that he would quit the chief-justiceship of the common pleas, which he held for life, and put himself in the power of those who were not to be trusted, to be dismissed from the chancery perhaps the day after his appointment. The public has not been deceived by his conduct. My suspicions have been justified. His integrity has made him once more a poor and private man; he was dismissed for the opinion he gave in favour of the right of election in the people.” Here the noble orator was interrupted by loud cries of “To the bar, to the bar,” and Lord Marchmont moved that his words should be taken down. Chatham himself seconded this motion: “My words,” he thundered forth in an indignant tone, “My words remain unretracted, unexplained, and reaffirmed. I desire to know whether I am condemned or acquitted, and whether I may still presume to hold up my head as high as the noble lord who moved to have my words taken down.” Chatham paused for a reply, and none being given, he continued, “I will trust no sovereign in the world with the means of purchasing the liberties of the people. When I had the honour of being the confidential keeper of the king’s intention, he assured me that he never intended to exceed the allowance which was made by parliament, and therefore, my lords, at a time when there are no marks of personal dissipation in the king—at a time when there are no marks of any considerable sums having been expended to procure the secrets of our enemies—that a request of an inquiry into the expenditure of the civil list should be refused, is to me most extraordinary. Does the King of England want to build a palace equal to his rank and dignity? Does he want to encourage the polite and useful arts? Does he mean to reward the hardy veteran who has defended his quarrel in many a rough campaign, whose salary does not equal that of some of your servants? Or does he mean, by drawing the purse-strings of his subjects, to spread corruption through the people, to procure a parliament, like a packed jury, ready to acquit his ministers at all adventures? I do not say, my lords, that corruption lies here, or that corruption lies there; but if any gentleman in England were to ask me whether I thought both houses of parliament were bribed, I should laugh in his face and say, ‘Sir it is not so.’”

Chatham concluded by saying that an inquiry into the state and expenditure of the civil list was proper, just, and expedient; and that a refusal of it would elicit ridicule and exhibit folly. Nevertheless the motion was negatived.

DEBATES ON AMERICA.

A petition was presented to parliament by the English merchants trading with America, representing that, in consequence of the duties and taxes, the discontents of the Americans, and their combinations to prevent the importation of goods from England, their trade had gone to ruin; and praying for the intervention of the legislature. In consequence of this, a bill was proposed by Lord North, to repeal all the American taxes and duties except tea. In proposing this repeal he censured the Revenue Act only as an inexpedient or unproductive impost, and not as an illegal or impolitic claim. The duty on tea, he said, was continued to maintain the right of taxing the Americans, and it could not be supposed that an impost of three pence per pound on an article from which one shilling was deducted when exported to America, would offend the colonists, unless they were determined upon a rebellion. Mr. Grenville, the parent of the Stamp Act, argued that he had at least acted systematically, and that in imposing the stamp duties he had reason to think that they would be paid. The succeeding ministry, he said, had repealed that act, but had reaffirmed the right of parliament to tax the colonies, by laying duties upon unwise and anti-commercial principles: duties which were far more odious to the colonies than his Stamp Act. His opinion was, therefore, that the ministers must now give up, or stand by the whole. A partial repeal, he added, will not do: the Americans would not rest satisfied with any thing short of the renunciation by parliament of the right to tax them in any way, either externally or internally. In this General Pownall coincided, and he proposed as an amendment, that the repeal should be extended to all articles, as the only way of quieting the colonies. This amendment was supported by General Conway, Colonel Barre, and Sir William Meredith, but it was rejected, and leave was given to bring in North’s bill. A subsequent motion to repeal the duty on tea was also lost, and the act passed according to North’s first proposal.

RELEASE OF WILKES.

On the 12th of April, the term of Wilkes’s imprisonment having expired, he was set at liberty. He was no sooner freed from confinement than he recommenced his system of agitation. Everywhere he harangued on his sufferings, and declared that he was ready to die in the cause of liberty. He was considered a martyr by the populace, and in both houses he had his friends. On the 1st of May, the Earl of Chatham, after arranging his plan of attack with Temple, Rockingham, Shelburn, and others, stood up in the house of lords and presented a bill for reversing the adjudications of the house of commons, whereby John Wilkes, Esq. had been adjudged incapable of being elected a member to serve in this present parliament, and the freeholders of the county of Middlesex, had been deprived of one of their legal representatives. In descanting on this, Chatham declared that a violent outrage had been committed against everything dear and sacred to Englishmen. He then made some observations on the new state arithmetic by which Colonel Luttrel’s 296 votes had been held to be a greater number than Wilkes’s 1143! This, he said, was flying in the face of all law

and freedom: a robbery of the liberty of freeholders; and making the birthrights of Englishmen a mere farce. He then represented Colonel Luttrell as sitting in the lap of John Wilkes, and the majority of the house as being turned into a state engine. He added, in conclusion, “I am afraid this measure originated too near the throne. I am sorry for it; but I hope his majesty will soon open his eyes, and see it in all its deformity.” Lord Mansfield opposed the Earl of Chatham. He contended that the house had no right to interfere with the decisions of the commons; that those decisions were legal; that in consequence of previous votes and sentences, Wilkes was nobody in the eye of the law; and that, though the freeholders gave their votes, it was for the house of commons to judge as to the point of qualification. Lord Camden replied, that Lord Mansfield was delivering unconstitutional doctrines, and that Wilkes had been expelled in consequence of a secret influence which had said, “Mr. Wilkes shall not sit.” He also asserted that the judgment of the commons on the Middlesex election was a worse wound in the constitution than any of those inflicted in the reign of Charles I., when the nation had no parliament; and he expressed a hope that if this bill should be rejected, the good sense and spirit of the people would persevere session after session, till the judgment of parliament should be revoked. The bill was rejected, and thirty-eight peers signed a protest.

When this bill was lost, the Earl of Chatham demanded that the house should be summoned on the 4th, as he had a motion to make of great importance relative to the king. On the day appointed, his lordship moved, “That the advice inducing his majesty to give the answer to the late address, remonstrance, and petition of the lord mayor, aldermen, and livery of London, was of a most dangerous tendency, inasmuch as thereby the exercise of the rights of the subject to petition the king for redress of grievances, to complain of violations of the freedom of election, to pray dissolution of parliament, and to point out malpractices in administration, to urge the removal of evil ministers, etc., had been indiscriminately checked with reprimand; and the afflicted citizens of London had heard from the throne itself, that the contents of their humble addresses could not but be considered by his majesty as disrespectful, injurious, etc.” The noble lord said that an answer so harsh as this exceeded all precedent in the history of this country; that the very essence of the constitution not only permitted, but required petitioning; and that the Stuarts themselves never dared to prevent the practice. He then eulogized the lord mayor and the liverymen of London, and in conclusion, pronounced Colonel Luttrell as a mere nominee thrust in by the enemies of the law and constitution. The motion was negatived by a large majority.

{GEORGE II. 1769–1771}

AMERICAN AFFAIRS.

On the 1st of May, the opposition in the house of commons called for the correspondence of the American colonies, and subsequently Mr. Burke moved eight resolutions relating to the troubles in those colonies, and censuring the plan ministers were pursuing. The previous question was carried against the first of these resolutions, the second, third, and fourth were negatived, and the previous question

was carried against the remainder. Similar resolutions were moved in the house of lords by the Duke of Richmond; but they were all negatived by a large majority. On the 14th, however, nothing daunted, the Earl of Chatham coupled the discontents of America with those in England and Ireland, and founded a motion on them for an address to dissolve the parliament. He moved, “That an humble address be presented to his majesty, most dutifully and earnestly beseeching him, that in the dangerous state wherein his kingdoms are involved, from the high dissatisfactions generally prevailing at home, and from the most alarming disorders which have unhappily manifested themselves in his American dominions, his majesty will, in his great wisdom and necessary care, to prevent more fatal mischiefs, be graciously pleased to take the recent and genuine sense of his people, by dissolving this present parliament, and calling, with all convenient dispatch, a new parliament.” In his speech he declared that the house of commons had not the confidence of the people; and in speaking of the mode of reforming that assembly, he said, “Instead of depriving a county of its representatives, one or more members ought to be added to its representation, in order to counterbalance the weight of corrupt and venal boroughs.” The house, however, would not listen to his arguments: a loud cry of “Question, question,” was raised, and the motion was rudely negatived. But if Chatham was not listened to in parliament, he was venerated for his recent opposition to the measures of government by the people. On the same day, the common council of London carried a vote of thanks to him, for the zeal he had exhibited in support of their sacred privileges and the right of election; and also for his declaration that he would use his best endeavours to restore the house of commons to its purity, by shortening the duration of its term, and introducing a more equal representation.

RIOTS AT BOSTON.

While both houses of parliament were carrying on a wordy war, matters had assumed a more serious aspect in America. Committees had been appointed in nearly all the principal sea-ports of the colonies, to examine cargoes arriving from Great Britain, and to report to their constituents how far the act of association was carried into effect, or how far infringed Meetings of the association were regularly held at Faneuil Hall, Boston, and votes of censure were passed upon all who introduced or sold any of the prohibited goods. The names of such offenders were, indeed, regularly published in the newspapers, with comments appended to them, holding them up to the public as selfish slaves and traitors. A few, however, it would appear, were permitted to make a market, by selling the prohibited articles, which could only be purchased from their shops; and this becoming notorious, one Theophius Lillie, a tradesman at Boston, resolved to sell what was thus sold by others. In order to point him out as one whose shop was to be shunned, the mob placed a rude figure at his door, and a person named Richardson, either a friend or a servant of Lillies, attempted to remove the nuisance, and being defeated in his design by the mob, who pelted him with stones, he took up a loaded gun and fired upon his assailants from within doors. The shot killed a boy, who was forthwith recorded in the newspapers as the first martyr in the cause of liberty. He was, in truth, the first that was sacrificed, but the blow proceeded from the hand of a persecuted American, and not from the

hand of an Englishman. It was not long, however, before the English were involved in quarrels with the Americans, which resulted in the loss of life. The boldness of the Bostonians seems daily to have increased after the above-mentioned incident. It was in vain that merchants implored even to keep the goods they had imported in store, as if bonded, until the duties in England should be repealed: they were compelled to send them back to those who had shipped them. At the same time, it was shrewdly suspected that several of the Bostonian leaders still imported and sold goods largely; or, at least, permitted goods to be imported in their vessels. The people of New York, indeed, taxed the Bostonians with unfair and selfish dealings, and renounced the non-importation agreement. This gave rise to mutual recrimination between these two states: the New Yorkers called the Bostonians pedlars, and the Bostonians said that the New Yorkers were no patriots. At the same time, the Bostonians were fierce in their hatred of the English government and its measures. If they acted with duplicity in the matter of trade, they were at least consistent in their denunciations against all connection with England. The soldiers quartered in Boston were subject to constant insults from them, and were continually interrupted in their duty. All classes conceived that as they had not been called in by the civil magistrates of the place, that their presence was illegal, and that every means employed to hasten their departure, or make their stay uncomfortable was laudable. Hence, no sentinel could stand in his place without being insulted; and it was too much to expect from human nature, that the soldiers should suffer continual insult without retorting upon theis adversaries. Some alleged that Colonel Dalrymple and his officers should have kept their men separate from the inhabitants; but this could not have been done, except by keeping them prisoners in their quarters, and by discontinuing the practice of mounting guard at the government offices. It was easy to foresee, therefore, that sooner or later disastrous consequences would ensue. And this was rendered more certain, because government had not sent a sufficient number of troops to keep the populace of Boston in awe. As soon as the arrival of troops at Boston was known at home, General Pownal had pointed out the error, stating that if they intended to govern the country by military force, they had not sent sufficient troops; and that if they did not intend this, they had sent too many. The people of Boston, he said, were set in array against the military; that though the sword was not drawn, it was ready to leap from the scabbard; and that though the word for action was not yet given, mischief was on tip-toe, and the slightest circumstance would set it on foot. These remarks were founded in truth. The Boston newspapers gave insertion to a fictitious narrative of a defeat of a body of soldiers by the people of New York, and to a series of fictions which represented the English troops as a set of poltroons who would quail before the sons of liberty. While these reflections were fresh in the minds of the soldiers, one of them was involved in a quarrel, and was beaten by several Bostonians, who were rope-makers belonging to the establishment of Mr. John Gray. Incensed at the ill-treatment he had received, twelve of his comrades returned with him to the spot and fell upon the rope-makers, and compelled them to take refuge in flight. This served as a prelude to a more serious conflict. Meetings were held by the mob, who decided upon attacking the soldiers, and driving them out of Boston. The day appointed for this was the 5th of March, and on the evening of that day parties from all quarters assembled, armed with sticks and clubs, and made an attack upon

some of the troops in Dock-square. An officer appeared, who ordered the men to their barracks, and they with difficulty escaped thither. They were followed by the mob, who dared them to come out; and their rage increasing, the mob began to tear up the stalls of the market-place in Dock-square, and swore that they would attack the main-guard. Some peaceable citizens exerted themselves to allay their fury, and they had well nigh succeeded in persuading many of them to retire, when a tall man in a red cloak and white wig appeared among them, and incited them by a brief harangue to carry out their design. His discourse was followed by shouts of “To the main guard! To the main guard! We will destroy the soldiers!” The mob then separated into three divisions, each of which took separate roads. One of these divisions in their route passed by the Custom-house, and a boy pointing to the sentinel on duty there, asserted that he was the man who had knocked him down. A loud cry was instantly raised to kill him, and the sentinel loaded his gun by way of intimidating them. Nothing daunted, however, they first pelted him with every thing that came to hand, and then, seeing his reluctance to fire, closed upon him, and compelled him to retreat to the door of the Custom-house. He sought admittance, but those within were afraid of opening the door, and the sentinel then shouted for assistance to the main guard which was within hearing. A corporal and six privates were sent by Captain Preston to his rescue, while he followed at a short distance. Their guns were unloaded; but as they advanced, they found the mob increasing, and were pelted so pitilessly by them on every hand, and so grossly insulted by opprobrious language, that they loaded them and fixed on their bayonets. Still they were reluctant to fire; and when the mob pressed in upon them, they merely used their weapons to keep them off. At length a certain mulatto named Crispus Attucks, with others dressed like sailors, gave three cheers, hemmed in the soldiers, and struck at their muskets with clubs, exclaiming to those behind, “Come forward, they dare not fire; let us kill them, etc.” Attucks aimed a blow at Captain Preston, who was begging the rioters to desist, and keeping his men quiet, and in doing so he not only hit the Captain on his arm, but struck down one of the men’s muskets, and then seized his bayonet. Some persons behind Captain Preston now urged the soldiers to fire, and the private whose musket had been knocked out of his hand having recovered it, fired at the mulatto, who fell mortally wounded. The other soldiers now successively fired off their pieces, and three persons were killed, while others were wounded more or less dangerously. The mob retreated, but they recollected in an adjoining street, with dreadful yells, and the drums beat to arms. It seemed as if a combat of the fiercest kind was about to take place; but certain persons who had been gliding about the mob, urging them on to acts of violence, now thought proper to persuade them to retire. The storm was hushed for that night; but early in the morning the mob again collected in large numbers. At the same time, the lieutenant-governor held a council, and the magistrates and chief citizens met in full assembly, and chose a committee. The committee soon waited upon the governor and council, and declared that nothing could restore peace to the town but the immediate removal of the troops. Colonel Dalrymple proposed that the 29th regiment, whose men had been engaged in the riot, should remove to Castle William, and that the 14th regiment should remain. This was reported to the assembly; but another deputation demanded the total and immediate removal of all the troops, as the only means of tranquillizing the town. The governor

was told that he must not think the demand proceeded from a set of vagabonds, for that people of the best character were determined, that if the troops were not voluntarily removed, they should be expelled by force. A force of ten thousand men, it was stated, were at their beck, and these were determined to destroy the troops if not removed, albeit it might be called rebellion. The governor first flatly refused to accede to this demand; he then wavered in his determination, and finally he agreeded to divide the responsibility of removing them with Colonel Dalrymple and the members of the council, and the troops were ordered to march to Castle William. Thus successful the Bostonians grew more bold in their opposition to the English government. The newspapers represented the affair of the 5th of March as a deliberate murder on the part of the troops, and nothing was neglected to exasperate the public mind and perpetuate the memory of “the bloody and inhuman massacre.” Yet when Captain Preston and his men were put upon their trials, American judges and a jury from among the citizens of Boston, were compelled to admit that they had acted only in self-defence. Their verdict was, that Captain Preston and six of the solders were not guilty, and that two, Montgomery, who shot Crispus Attucks, and Killroy, who was proved to have shot another man, were not guilty of murder but of manslaughter only. These two prayed the benefit of clergy, which was allowed, and each being burnt in the hand in open court, they were discharged like their comrades. In the course of the trial, Judge Lynde declared that the affair turned out to the disgrace of every person concerned against Captain Preston, and to the shame of the people of Boston in general.

THE PROROGATION OF PARLIAMENT.

News of the disturbances in Boston arrived before the close of this session; but hopes being entertained that the late bill would have the effect of conciliating the Americans, it was deemed proper to abstain from any investigation, lest it should relight the torch of discord. The session terminated on the 19th of May.

REMONSTRANCE OF BECKFORD TO THE KING.

The answer which the king had given to the good citizens of London at the presentation of their recent memorial had given them great umbrage, and on the 23rd of May, the lord mayor and some aldermen, with a numerous train, went again to St. James’s with another petition, complaining of this answer. The address stated that it was, as well as the general acts of government, “against the clearest principles of the constitution, and the result of insidious attempts made by evil counsellors, to perplex, confound and shake the rights of the people.” It concluded with a renewed demand for the dissolution of parliament, and the removal of the present ministers. The king replied that it was his duty to express dissatisfaction at their last address, and that his sentiments on the subject were still the same. It was anticipated that the deputation would not be very graciously received, and that the king would not retract his former sentiments. Hence a remonstrance had been prepared in the shape of a reply, and to the astonishment of the court, Beckford, instead of retiring with the usual etiquette from the royal presence, approached the throne, and thus addressed the king: “Most gracious sovereign, will your majesty be pleased so far to condescend, as to permit the mayor of your loyal city of London to declare in your

royal presence, in behalf of his fellow-citizens, how much the bare apprehension of your majesty's displeasure would at all times affect their minds. The declaration of that displeasure has already filled them with inexpressible anxiety and with the deepest affliction. Permit me to assure your majesty, that your majesty has not in all your dominions any subjects more faithful, more dutiful, or more ready to sacrifice their lives and fortunes in the maintenance of the true honour and dignity of your crown. We do therefore, with the greatest humility and submission, most earnestly supplicate your majesty that you will not dismiss us from your presence, without expressing a more favourable opinion of your faithful citizens, and without some comfort, or at least some prospect of redress." Had the remonstrance stopped here, Beckford might have obtained the smiles of the king; but he continued: "Permit me, sire, to observe, that whoever has already dared, or shall hereafter endeavour by false insinuations and suggestions to alienate your majesty's affections from your loyal subjects in general, and from the city of London in particular, is an enemy to your majesty's person and family; a violator of the public peace, and a betrayer of our happy constitution, as it was established at the glorious Revolution." Beckford prayed for a reply, but none being given, the deputation withdrew. The king appears, indeed, to have been too angry to reply with courtesy, for he immediately issued orders, through the medium of the lord chamberlain, that lord mayors should in future confine themselves to delivering their papers, and not presume to make speeches. But if Beckford did not please the king, he gained great credit with the people for his conduct. The Earl of Chatham warmly applauded him for asserting the rights of the city with weight and spirit. On the other hand, the king increased his unpopularity by his conduct towards the deputation. The common council were so incensed, that they demurred about voting an address of congratulation on the birth of the Princess Elizabeth, which happened about this time. Wilkes in particular, who was made an alderman even while in the King's Bench, and who now wore the civic gown, opposed such an address, and when the good feelings of the citizens prevailed over their anger, and they voted an address, he did what he could to render it unpopular. The address, however, was presented in the usual form, and his majesty observed in reply, "that the city of London, entertaining such loyal sentiments, might always feel assured of his protection." A few days after this Beckford died, and the city voted that he should be honoured with a statue in Guildhall, and that the speech he had delivered to the king should be engraved on the pedestal. His death was considered a serious blow to the opposition, as no one could be found possessing the weight which he derived from his wealth and munificence, or who could supply his ardour and fearlessness.

PROSECUTION OF WOODFALL AND ALMON.

Almost every act which the government now committed tended only to excite the public clamour and indignation. During this summer it involved itself in new troubles, and exposed itself to fiercer attacks, by prosecuting the printers and publishers of Junius's Letters. In the month of June Woodfall was tried for printing in his newspaper, the "Public Advertiser," one of these letters, which was addressed to his majesty, and was considered a scandalous libel; and Almon was tried for selling a re-publication of it in the "London Museum." Almon was found guilty of publishing,

and was sentenced to pay a fine of ten marks, and find security for his good behaviour for two years. Woodfall was found “guilty of printing and publishing only” and in his case, the defendant moved to stay the entering of judgment on the verdict, while the attorney-general moved for a rule on the defendant, to show cause why the verdict should not be entered according to the legal import of the words. The attorney-general’s motion was attended to first; and when the matter came to be argued in the court of King’s Bench, Lord Mansfield, before whom both cases had been tried, went regularly through the whole evidence, as well as his own charge to the jury. After recapitulating the defence on the trial, his lordship remarked: “I directed the jury, that if they believed the innuendoes, as to persons and things, to have been properly filled up in the information, and to be the true meaning of the paper, and if they gave credit to the witnesses, they must find the defendant guilty. If the jury were obliged to determine whether the paper was in law a libel or not, or to judge whether it was criminal, or to what degree; or if they were to require proofs of a criminal intention—then this direction was wrong. I told them, as I have always told them before, that whether a libel or not, was a mere question of law arising out of the record, and that all the epithets inserted in the information were formal inferences of law. A general verdict of the jury finds only what the law implies from the fact, for that is scarcely possible to be produced: the law implies from the act of publication, a criminal intent.” After some further remarks of minor importance his lordship continued: “The motion of the attorney-general divides itself into two parts; first, to fill up the finding of the jury with the usual words of reference, so as to connect the verdict with the information: the omission of these words, we are of opinion, is a technical mistake of the clerk, and may be now supplied. The second head of the argument is to omit the word ‘only’ in the entry of the verdict: this we are all of opinion cannot be done. The word ‘only’ must stand in the verdict; if this word was omitted, the verdict would then be, ‘guilty of printing and publishing,’ which is a general verdict of guilty; for there is no other charge in the information but printing and publishing, and that alone the jury had to inquire. We are all of opinion, that my direction to the jury is right and according to law; the positions contained in it never were doubted; it never has been, nor is it now complained of in this court. There clearly can be no judgment of acquittal, because the fact found by the jury is the only question they had to try; the single doubt that remains, is concerning the meaning of the word ‘only.’” The court considering that the word “only” had been used in an ambiguous sense, ordered Woodfall a new trial on that ground; but when it came on, the attorney-general remarked that he had not the original newspaper by which he could prove the publication Thus terminated the second trial: the want of this was fatal to the cause.

DISPUTES RESPECTING FALKLAND ISLANDS.

During the summer and autumn of the present year the attention of government was absorbed by a subject, which at one time threatened a new war with France and Spain—this was the affair of the Falkland Islands.

The Falkland Islands are situate in the Southern Atlantic Ocean, off the extremity of the South American continent, and the eastern entrance to the Straits of Magellan.

They consist of two larger islands called East and West Falkland, and a great number of isles and islets. By right, they certainly belonged to England. The discovery of them was made by Captain Hawkins in the reign of Elizabeth, who called them “Hawkins’ Maiden Islands,” and they were afterwards visited by Strong in 1689, who gave them their present name. Subsequently they were visited by the French, who in 1764 formed a settlement at Berkeley Sound, an excellent harbour on West Falkland. In the next year, Commodore Byron formed a counter settlement at Port Egmont on East Falkland. The Spaniards, who had neglected these islands and their resources, now took the alarm, and demanded their evacuation both from France and England, as territories belonging to them both by right of papal bulls, and degrees of latitude and longitude. The French abandoned their settlement, but the English refused to accede to the demand. Spain, dreading the power of England, was for the time compelled to give up the claim; but at length, in 1769, the domestic distractions of Great Britain, her ready acquiescence in the transfer of Corsica to France, and the encouragement of the French minister Choiseul, emboldened the Spanish court to revive its pretensions to these islands. An armament, consisting of several ships of war, provided with apparatus for a siege, sailed from Buenos Ayres, and in the month of June suddenly appeared off Port Egmont. The British commandant, Captain Farmer, knowing that the place could not sustain a siege, after a few shots, submitted to terms of capitulation. Contrary to all the rules of war, however, the Spanish commodore, in order to prevent the intelligence from arriving in England on an early day, or from being first related by English lips, enjoined Captain Farmer not to sail without his permission, and to ensure compliance, he even unshipped the rudder of his vessel, and kept it on shore for three weeks. This was an insult to the British flag not to be endured. As soon as the proceedings were known in England, all ranks were inflamed with resentment, and eagerly desired that the national honour, thus grossly violated should be avenged. Lord North prepared for the worst, by putting ships in commission ready for war. It was thought expedient, however, to avert war, if possible, by negociations, and Spain was ultimately induced to disavow the enterprise of the governor of Buenos Ayres, and to restore the island. At the same time it was either stipulated or understood, that the settlement should at a future period be abandoned by the English: an arrangement which, as will be seen, formed a subject of complaint in parliament against the ministry.

AFFAIRS OF AMERICA.

When the news arrived of the repeal of the taxes by the British parliament, the people of Boston were by no means thankful for that act. The retention of the duty on tea, it was said, did away with all its merits, as it proved the unalterable resolution of asserting the disputed right. As, however, they could not hope to keep up the whole of the non-importation agreement, it was resolved, in a meeting of merchants, to import every thing but tea. This resolve was also entered into by the Philadelphian merchants, and great efforts were made by the leaders of the movement, to induce the people to adhere strictly to this agreement, until the tea duty should be repealed. But most of the provinces were not desirous of persevering in the quarrel, and consequently renewed their commercial intercourse with the mother country: orders came over to England, indeed, to such an extent, that our exports to the colonies in

this and the following year exceeded in amount what they had ever been before. Still the progress of a revolution was not impeded. There were many zealots in America, who could not rest satisfied while a connexion subsisted between England and her colonies, and who were still busied in sowing the seeds of discontent. Some such zealots existed in every colony, but it was in New England and in Virginia that that they were chiefly to be found. In the great southern province they were headed by Patrick Henry and Thomas Jefferson, and by their means the popular party in Virginia were led to deplore the massacre at Boston, and to uphold that city as a new Sparta and the seat of liberty. The assembly of Virginia, in a petition or remonstrance to his majesty, ventured to express their strong dissatisfaction at Lord North's imperfect Repeal Act, and their deep affliction at seeing that the pretension of the mother country to the right of taxing the colonies was persevered in by the retention of duty upon tea. They also criticised the conduct of Lord Bottetourt, their governor, and represented that no alliance was to be placed upon the goodwill or moderation of those who managed the affairs of the mother country. All the houses of assembly, now reopened, were, in truth, scarcely less difficult to manage than they had been the year before, and in almost every instance they were prorogued by the governors. In the assembly of Massachusets, especially, there were great commotions, arising partly from communications received from England, which represented that the state and conduct of the colony was likely to be submitted to the consideration of parliament in the present session, and partly from the dismissal of the provincial forces from Castle William, and the establishment of the royal troops in that fortress. It was suspected that measures were in train to reduce the province to a state of utter dependence on Great Britain, and they proceeded to prepare instructions for their agent in London, in order to prevent the blow. But before they proceeded to business the house made another attempt to obtain a removal of the seat of government to Boston; and having failed in this, they made a strong protest against their conduct being drawn into a precedent. Soon after this Mr. Hutchinson was appointed governor of the province; but the subject of the assembly's removal afforded matter of dispute in the remonstrances of the house at the opening of every session.

MEETING OF PARLIAMENT.

The king opened parliament on the 13th of November. The prominent part of his speech related to the Falkland Islands, a question that was still in abeyance. His majesty informed the lords and commons, that by an act of the governor of Buenos Ayres, in seizing one of his possessions by force, the honour of the crown and the rights of the people were deeply affected; and he called on them for advice and assistance. The addresses of both houses approved of the steps taken by his majesty, and assured him of their effectual support: to this end, supplies for the augmentation of the army and navy were cheerfully voted,—and in order to defray any extraordinary expenses, the land-tax was increased from three to four shillings in the pound.

DEBATE CONCERNING THE FALKLAND ISLANDS.

In the debate on the address, Lord North had said, that as the Spanish ambassador had thrown the responsibility upon the Governor of Buenos Ayres, it was proper that his Spanish majesty should be allowed time to disavow these proceedings. He had also endeavoured to show that the Falkland Islands were of little value to anybody, and not of sufficient importance to justify a war if it could be avoided. These sentiments ill accorded with the views of some in the lower house, in which they were uttered, and several, as Dowdeswell, Barré, Burke, Sir William Meredith, and Sir Charles Saunders, blamed the minister for putting forward the Governor of Buenos Ayres, instead of complaining of his master, the King of Spain; who must, they contended, have previously authorised his expedition against Port Egmont. Similar opinions appear to have been entertained in the house of lords, although the address passed there without any show of dissatisfaction. On the 20th of November, however, the Duke of Richmond gave notice that he would make a motion on the 22nd, on which day, therefore, the house was summoned. That day arrived, Richmond moved for an address, praying that the king would order that all papers received by the ministry between the 12th of September, 1769, and the 12th of September, 1770, touching hostilities commenced, or designed to be commenced, by the crown of Spain, or any of his officers, should be laid before parliament. In urging this demand, the duke said, that the affairs of the Falkland Islands was only one among many acts of aggression, and he asserted that while we were in want of seamen, three thousand, captured in trading ships by the Guarda-Costas, under pretence of smuggling, were rotting in Spanish prisons, or pining away in hopeless slavery in South America. The motion was opposed by Lords Weymouth and Hillsborough, who contended that the production of the papers called for, would embarrass a negociations now in good train that the Spanish government was entitled to respect and delicate management; and that the ministers were not wanting either in vigilance or vigour. The Duke of Richmond was supported by the Earl of Chatham, who, in a long and eloquent speech, showed the necessity of firmness on the part of the British cabinet;—accused the Spaniards of want of faith, and of being as mean and crafty as they are proud and insolent; and predicted that if ministers patched up an accommodation for the present, they would still have a Spanish war in six months. He concluded by charging the ministers with having destroyed all content and unanimity at home by a series of oppressive and unconstitutional measures; and with having delivered up the nation, defenceless, to a foreign enemy. He added this warning:—“Let me warn them of their danger. If they are forced into a war, they stand it at the hazard of their heads; if, by an ignominious compromise, they should stain the honour of the crown, or sacrifice the rights of the people, let them look to the consequences, and consider whether they will be able to walk the streets in safety.”—The Duke of Manchester, the Marquess of Rockingham, the Earl of Shelburne, and Lord Lyttleton also supported the Duke of Richmond’s motion, but it was nevertheless negatived by a large majority. On the same day, also, a similar motion was made and negatived in the house of commons; moreover, a few days later the Earl of Chatham moved that Captain Hunt, who had driven off a Spanish schooner from Port Egmont, before the armament arrived, should be ordered to attend the house; and when this was negatived, he moved an address to his majesty, praying that the house might be acquainted at what time reparation was first demanded from Spain, which likewise

received a negation.

PARLIAMENTARY PROCEEDINGS OF THE LAW OF LIBEL.

The sentiments promulgated by Lord Mansfield on the law of libel, in the case of Woodfall, had created much discussion among the legal profession, and had met with much obloquy among the people. They were represented as an attempt to infringe the rights and powers of juries, and to reduce their verdicts to a mere echo of the opinions of judges, inasmuch as they were merely to inquire into the fact of printing and publishing, and not allowed to judge whether the matter in question was a libel or not On the 28th of November, Lord Chatham denounced this mode of directing juries from the bench, but Lord Mansfield justified it, and laid it down as an axiom, “that a libel, or not a libel, was a matter of law to be decided by the bench, and the question to be left to the jury was only the fact of printing and publishing.” Mansfield demanded a call of the house for the 10th of December, and when that day arrived, he laid on the table a paper, drawn up with great care and precision, containing the unanimous opinion of the court of king’s bench in Woodfall’s case, in order that their lordships might, read or copy it as they pleased. Lord Camden inquired whether this paper was intended to be entered on the journals, and submitted to debate. Mansfield replied it was merely intended for the information of members, and he then suddenly moved an adjournment and quitted the house. On the next day, Camden considering the paper as a challenge to himself, endeavoured to provoke a discussion, by addressing six queries to the chief-justice, but Lord Mansfield declared that he would not answer interrogations, and the matter dropped.

In the house of commons, the power of filing _ex-officio_ informations by the attorney-general in cases like Almon’s, elicited the praises of Burke, on Junius as a writer, in these terms:—“How comes this Junius to have broken through the cobwebs of the law, and to have ranged uncontrolled, unpunished through the land? The myrmidons of the court have been long, and are still, pursuing him in vain. They will not spend their time upon me, or upon you, when the mighty boar of the forest, that has broke through all their toils, is before them. But what will all their efforts avail? No sooner has he wounded one than he strikes down another dead at his feet. For my own part, when I saw his attack upon the king, I own my blood ran cold. Not that he has not asserted many bold truths: yes, sir, there are in that composition many bold truths, by which a wise prince might profit. It was the rancour and venom with which I was struck. But while I expected from this daring flight his final ruin and fall, behold him rising still higher, and coming down souse upon both houses of parliament;—not content with carrying away our royal eagle in his pounces, and dashing him against a rock, he has laid you prostrate, and kings, lords, and commons, thus become but the sport of his fury.” Soon after this Sergeant Glynn moved for a committee to inquire “into the constitutional power and duty of juries.” His motion was opposed by Fox, and supported by Dunning, Wedderbume, Burke, and others. Fox opposed it because it was said that “the people complained of the perversion of law,” and he laid himself open to the following severe remarks from the lips of Burke:—“That there should be found, he said, gentlemen who would annihilate the people, and acknowledge no other voice than that of this house, is to me, not at all surprising, because the conduct

of the most violent sticklers for this doctrine has not deserved much applause or favour from them; but that they should have renounced reason and common sense so far as to maintain that the majority of this assembly is the only organ by which their sentiments can be expressed, is, to me, truly surprising. For where, in the name of wonder, should the house acquire the necessary knowledge or intelligence? Is it by turning these musty old volumes, or by rummaging these gaudy boxes which lie on your table? No! they contain none of these mysteries. How then are they to be explored? Is there any virtue or inspiration in these benches or cushions, by which they are to be communicated, or does the echo of these walls whisper the secret in your ears? No! but the echo of every other wall, the murmur of every stream, aye! the hoots and hisses of every street in the nation, ring it in your ears, and deafen you with their din. The people have a voice of their own, and it must, it will be, sooner or later heard: and I, as in duty bound, will always exert every nerve and every power of which I am master, to hasten the completion of so desirable an event." The motion was negatived.

QUARRELS BETWEEN THE LORDS AND COMMONS.

Ministers were still pressed by the opposition concerning the lingering negociations with Spain, and the incompleteness of their preparations for war. In the house of lords, the Duke of Manchester descanted in strong terms on the defenceless condition of Gibraltar, Minorca, and Jamaica. In the midst of his harangue Lord Gower desired that the house might be cleared of all persons except those who had a right to sit there. When motions like this, he said, were brought on by surprise, no one should be allowed to hear the debate except peers, inasmuch as in a crowded house, emissaries from the court of Spain and other powers might be present. He added that there was another reason why the house should be cleared. Persons, he said, had been admitted who took note of what was said, for he had in his pocket a paper which contained a speech recently made by a noble lord! This, he asserted, was contrary to a standing order, which standing order, No. 112, was produced and read. The Duke of Richmond and the Earl of Chatham warmly opposed such a step, but their voices were drowned by shouts of "Clear the house! Clear the house!" The Earl of Chatham, with eighteen peers, indignantly left the house, and the party who remained then insisted that all the members of the house of commons present should be turned out _sans cérémonie_! These members represented that they were there in the discharge of their duty, for that they were there attending with a bill. The bill was demanded, and they had no sooner delivered it, than they were hooted out of the house. A strong protest was made against these proceedings by members of both houses;—and on the same day, Mr. George Onslow moved in the lower house that it should be cleared—"peers and all." This motion was made merely from pique at the treatment of the commons by the lords, and not with a view of encouraging the notion that debates ought to be open, reported, and published. A better motion was made by Mr. Dunning, who moved for a committee "to inspect the journals of the house of lords of that day, as to what proceedings and resolutions were therein, with relation to the not permitting any persons to be present in any part of the said house during the sitting thereof." This motion was negatived; but no vote passed either in the house of lords or that of the commons could remove the stain which the ministers had

brought upon their characters by these tumultuous proceedings, or allay the desire which the people entertained for the publication of parliamentary debates; and the opposition did what they could to render their conduct more odious than it really was The Earl of Chatham recommended that search should be made by the commons in the journals, and that a conference should be demanded with the lords. Acting upon this advice, Lord George Germaine moved in the house of commons for such a conference, but though he was ably supported by Lord George Cavendish, Burke, Dunning, and Barré, all of whom dealt in humour as well as argument, the motion was negatived. Lord Germaine then moved that the speaker should write to such eldest sons and heirs apparent of peers, king's sergeants, and masters in chancery, as were members, and to the attorney and solicitor-general, and request them to be in their places every day at two o'clock, to assist in carrying bills to the house of lords; but the only result of this motion was a duel between the mover and Governor Johnstone, in Hyde-park, in consequence of some remarks which the latter had made in the course of the debate.

CONVENTION WITH SPAIN.

As the sincerity of the Spanish government was doubted by the ministry before Christmas, it was deemed advisable to adjourn parliament to the latter end of January, in order to afford time for the development of circumstances, and to enable the cabinet to decide upon peace or war. Ministers seem, indeed, to have learned of late that the plan of paying deference to the Spanish court was not founded in wisdom, and they changed their policy. On the 21st of December a messenger was despatched to Spain to recall our ambassador, and to intimate to the English merchants and commanders of ships, that it would probably be expedient for them to leave that country. This conduct alarmed the Spanish court, but it is probable that the King of Spain would have decided upon war, had not his views been disappointed in another quarter. He had invited the King of France to co-operate with him, and the Duc de Choiseul, his minister, was favourable to the cause of Spain, but during the month of December Choiseul was disgraced and exiled, through the influence of Madame du Barry, the king's mistress, and he was succeeded by the Duke d'Aiguillon, who advocated peace. This had the effect of bringing the negociations to a close: Louis XV. wrote to the Spanish monarch with his own hand, that he would not have war, and instructions were immediately sent to London to Prince Masserano, the Spanish envoy, to accept the propositions offered by the British Cabinet.

CHANGES IN THE MINISTRY.

During the Christmas recess, ministers were employed in gaining converts from the ranks of the opposition, and in making arrangements to complete and strengthen the administration. Lord Weymouth having resigned the seals of secretary of state, they were given to Lord Sandwich, who was succeeded in his office of postmaster-general by the Honourable H. F. Thynne. Mr. Wedderburne, the pet of Chatham and the city, abandoned his friends, and became solicitor-general to the queen; while Thurlow was made attorney-general in the place of Mr. de Grey, who was created chief-justice of the common pleas. A chancellor was now also found in the person of the Hon. Henry Bathurst, who took the title of Baron Apsley. Lord

Sandwich held the seals of secretary of state but for a few days. Having expressed a wish to be transferred to the admiralty, he was placed at the head of that board, instead of Sir Edward Hawke, and Lord Halifax succeeded him as secretary of state, giving up the privy seal to the Earl of Suffolk; Lord Rochford was removed to the southern department. Mr. Grenville had recently paid the great debt of nature, or he would have probably again come into office, but several of his friends were introduced into the ministry, by which it gained a considerable accession of talent.

CHAPTER IV.

{GEORGE III. 1771–1773}

Re-opening of Parliament..... Proceedings against Shoreham..... Resolutions respecting the Publication of Debates..... Committal of the Lord Mayor and Alderman Oliver to the Tower..... Contest between the City and Legislature..... The question of the Middlesex Election..... The question of the Dissolution of Parliament..... The Session closed..... Release of the Lord Mayor and Alderman Oliver..... Education of the Prince of Wales..... City Petition to the King..... Disputes in the City..... Meeting of Parliament..... Debates on Subscription to the Thirty- nine Articles..... ecclesiastical _Nullum Tempus_ Bill..... The case of Dr. Nowell..... Test and Corporation Acts..... The Royal Marriage Act..... East India Affairs..... The Session closed..... Fate of the Queen of Denmark..... Death of the Princess Dowager of Wales..... Revolution in Sweden..... Partition of Poland..... Investigation of the Middlesex Election..... Changes in the Ministry..... The Meeting of Parliament..... East India Affairs.

{A.D. 1771}

RE-OPENING OF PARLIAMENT.

When the commons assembled on the 22nd of January, Lord North announced the happy termination of the dispute with Spain, and the intention of government to lay the convention which had just been signed before parliament. Lord Rochford imparted similar information to the lords: in both houses the question gave rise to warm discussion. In the lords the Duke of Manchester moved for all the information received by government touching the designs of Spain upon Falkland Island, and for all the papers passed during the negociations. Rochford moved an amendment, limiting the inquiry to the subject of Falkland Island, and Lord Sandwich moved another amendment, which the Duke of Richmond said would so narrow the motion as to deprive the house of all necessary information. These amendments were withdrawn, and the original motion of the Duke of Manchester agreed to; but even this did not satisfy the opposition. The Duke of Richmond next moved, in order to recommend this ignominious affair to further censure, that all the memorials or other papers which had passed between his majesty’s ministers and the ministers of the King of France, relating to the seizure of Falkland Island by the Spaniards, should be laid before the house. Rochford said that he knew of no such papers, which assertion was questioned by the Earl of Chatham, inasmuch as the interference of France in the

matter was a fact that could not be denied. The house, he said, ought never to take the word of a minister, and that the refusal of this motion showed that some transaction with France had passed, though perhaps not papers or memorials. The motion was negatived; but the question gave rise to still further discussion in both houses, of which little is known; as on the great field-day in the lords, all strangers were rigidly excluded. The Earl of Chatham moved on that day, that the following two questions should be referred to the judges:—1. Whether, in law, the imperial crown of the realm can hold any territories or possessions otherwise than in sovereignty? 2. Whether the declaration or instrument for restitution of Port Egmont, to be made by the Catholic king to his majesty, under a reservation of a disputed right of sovereignty, expressed in the very declaration or instrument stipulating such restitution, can be accepted or carried into execution, without derogating from the maxim of law touching the inherent and essential dignity of the crown of Great Britain? This motion was negatived; and subsequently the Duke of Newcastle moved for an address to the king, in approbation of the convention, and of the wise and moderate measures which had been employed to procure it; which was carried by a large majority. So far as parliament was concerned, the question of Falkland Island was, by this motion, set at rest; but out of doors it long continued to be a matter of dispute. One party maintained that the possession of Port Egmont was of the utmost importance to England, and that by the secret article, which it was said existed in the convention, implying that after all we were to give it up, the national honour had been meanly sacrificed. The caustic Junius and other writers took this side of the question. Another party, however, at the head of whom Dr. Johnson may be reckoned, endeavoured to demonstrate that the whole group was worth little or nothing, and that it would have been absurd to go to war about them. Both parties adopted exaggerated language to prove their propositions; but whether they were of any real value or not, it behoved England, according to state maxims, to resent the conduct of Spain, in treacherously falling upon her colony at Port Egmont in times of peace. No argument, indeed, could justify such an invasion of the dignity of England’s crown and the rights of her subjects. But one thing seems certain arose from this affair; namely, that if the interests of the country were sacrificed by this convention, private individuals, at least, reaped great advantage therefrom. The sudden signing of it, when war was well nigh pronounced by the prime minister, gave rise to stockjobbing, and in the course of a few days large fortunes were made in Change-alley. This formed one of the most weighty charges brought by the opposition against ministers in the course of the debate. Colonel Barré, indeed, directly accused them of being implicated in these unworthy transactions. “A Frenchman,” said he, “being in your secrets, has made nearly half a million of money by jobbing in your funds; and some of the highest among yourselves have been deeply concerned in the same scandalous traffic.” In the course of the session this led to a bill for the more effectual prevention of stockjobbing; but though it passed the commons, it does not appear to have obtained the notice of the lords.

PROCEEDINGS AGAINST SHOREHAM.

In consequence of a petition lodged against one Hugh Roberts, the returning officer of Shoreham, the public were at this time startled by strange disclosures of

corruption in the elections for that borough. A select committee was appointed, according to Grenville's act, to determine a contested election, in which a candidate who had only thirty-seven votes had been declared duly elected, to the prejudice of a rival who had more than double that number. It appeared from the inquiry that the majority of the freeholders of this insignificant borough had formed themselves into an association, called "The Christian Club," for the ostensible purpose of promoting the cause of piety and charity. This, however, only served as a cloak for venality and corruption. These associated "Christians," sometimes performed a charitable act, in order to accredit their professions, but the bulk of the money which they received from their representatives found its way into their own pockets;—and this was no trifling sum. The borough was offered at elections to the highest bidder, and he who offered most was successful. In order to escape detection, the members of this club were bound to secrecy by solemn oaths, and by bonds with large penalties attached to them; and negociations with candidates were carried on by means of a select committee, who, under pretence of scruples of conscience, never voted themselves, but having sold the borough and received the money, directed the suffrages of the rest, and afterwards shared in the booty. Their hypocrisy, however, was brought to light by one in their own camp. At this election five candidates had offered themselves, and the secret committee were sent to treat with the bidders. The best offers were made by General Smith and Mr. Rumbold: the former offering £3000 in cash, and to build six hundred tons of shipping at Shoreham; and the latter offering £35 a man to all the freemen. The secret committee preferred Rumbold, but Roberts, the returning officer, preferred the General, and knowing that a large sum of money had been distributed among eighty-one of the majority, he considered them disqualified, and omitted them in his return. This formed the subject of the petition, and the facts being proved, a bill was brought in and carried, by which eighty-one freemen of Shoreham were disfranchised; and the Shoreham franchise was extended to all the freeholders of the neighbouring district, called the Rape of Bramber, who occupied tenements of the annual value of forty shillings. At the same time Roberts was reprimanded at the bar of the house by the speaker, for his assumption of illegal authority.

RESOLUTIONS RESPECTING THE PUBLICATION OF DEBATES.

Up to this period it had been held that to publish the debates of either house of parliament was a breach of privilege. The editors of periodicals had, indeed, endeavoured to evade the prohibition by publishing mutilated and occasionally invented speeches of honourable and noble lords, under fictitious names; but the people did not even obtain this doubtful information till after the discussion was over, and the matter in debate settled. The public, however, were now becoming more enlightened, and withal more curious, and these garbled and stale speeches did not satisfy them;—they longed for a full reporting newspaper, and the printers were encouraged by the general feeling to venture upon giving the proceedings in parliament from week to week, or from day to day, as they occurred. They were the more induced to take this step because the extent of the power of parliament to enforce this question of privilege had never been accurately defined. The letters of Junius, also, had a great effect in confirming them in their resolution: accordingly,

during the Middlesex elections and the debates on the affairs of the Falkland Islands, the public were gratified with certain and immediate intelligence of what their representatives were doing. But this was not likely to be allowed by parliament without a struggle. The members of both houses had been strenuous in their endeavours to shut their doors in the face of the nation—to choke all attempts at publicity, and to seclude themselves as rigorously as a jury, and therefore the proprietors of these newly established papers, must have expected, sooner or later, to be disturbed in their occupations. On the 5th of February their anticipations were realized. Colonel George Onslow, now one of the lords of the treasury, denounced the insolence and wickedness of these proceedings, as tending to the destruction of all things to be venerated in our constitution; and, on the 26th of the same month, he moved:—“That it is an indignity to, and a breach of privilege of this house, for any person to presume to give in written or printed newspapers any account or minutes of debate, or other proceedings of this house, or any part thereof; and that upon discovery of the authors, printers, or publishers of any such written or printed newspaper, this house will proceed against the offenders with the utmost severity.” The motion was opposed by Alderman Trecothick, who wished every man to hear what passed in the house; and by Burke, who in the course of his speech declared, that so long as an interest existed out of doors to examine the proceedings of parliament, so long would men be found to do what these printers had already done. It was also argued that the privilege enjoyed by constituents of knowing what is said and done by their representatives, is founded on the true principles of the constitution, and that falsehood and misrepresentation ought to be punished in a different manner from that proposed, inasmuch as it went to make the house of commons a secret tribunal. Onslow’s motion, however, was carried, and two of the printers, Thompson and Wheble, were ordered to attend at the bar of the house. This order was not noticed, and the sergeant-at-arms was directed to take them into custody: they were not to be found; and another printer, Evans, who was ordered on the 1st of March to attend the house, treated the order with the same contempt. Colonel Onslow then moved for an address to the king, to issue a proclamation, offering a reward of fifty pounds for their apprehension, which was agreed to; and subsequently he denounced six more printers as guilty of the same enormities. Wheble was at length taken by another printer, and carried before Alderman Wilkes, who discharged him from custody, and made him enter into his own recognisance to prosecute the man who captured him at the Old Bailey sessions for false imprisonment or an illegal arrest. On the same day Thompson was also carried before Alderman Oliver, who followed the example of Wilkes, and discharged him. Four printers, out of the six last denounced by Onslow, attended at the bar of the house; a fifth [Woodfall] was already in custody in Newgate, by order of the house of lords, and the sixth, named Millar, refused to obey the summons. A messenger was sent to apprehend him, but Millar had a constable in readiness, and he gave the messenger into custody, and he was carried to Guildhall to answer for the assault. Wilkes, the sitting alderman, said he had finished the business of the day, and would not enter upon the case, and the messenger was then conveyed to the mansion-house. The lord mayor being indisposed, he was kept there for three hours, but in the evening, being attended by Wilkes and Oliver, he admitted the parties: the deputy sergeant-at-arms

being also present. The printer having stated his complaint, the messenger was asked by what authority he had presumed to commit the assault? He produced his warrant, and the sergeant-at-arms then intimated that he was there by the speaker’s order, not only to release the messenger, but to take Millar into custody. The magistrates, however, represented that by the city charters no caption could be made, east of Temple-bar, without the authority of the lord mayor; and while they released Millar, they would have committed the messenger to prison, had not bail been given for his appearance to answer for the alleged assault.

COMMITTAL OF THE LORD MAYOR AND ALDERMAN OLIVER TO THE TOWER.

The above transactions were reported to the commons by the sergeant-at-arms, and orders were issued for the lord mayor to attend in his place, and his clerk to bring up the mansion-house minute-book, in which the proceedings had been entered. Alderman Oliver was likewise ordered to attend in his place, while Wilkes was directed to appear at the bar of the house. The two members obeyed the summons, and boldly justified their conduct; but though they were ably supported by many members in the house, and though the public emphatically displayed their approbation of their conduct, they were committed to the Tower. As for Wilkes he defied the government, refusing to attend unless in his seat as member for Middlesex. Three several times he was summoned to attend, but he would not listen to it under any other conditions, and nothing remained but compulsion, which the ministers were afraid of using. His majesty, indeed, is expressly said to have asserted, that he would have nothing to do with him, and he was left to act with impunity. This confessed weakness brought the cabinet into utter contempt, for though ministers resorted to the trick of adjournment with regard to his non-appearance, all men saw that it was fear alone which prevented them from taking him into custody. And that they had reason to fear there can be no question, for had any attempt been made to compel his appearance, it would have revived all the uproar of the election questions, and brought him forward with tenfold powers of mischief, as the champion of the mob: and, even as it was, ministers had brought themselves, by the proceedings against the printers, into no very enviable position. Riots and tumults in the avenues of the house were the order of the day, and the life of Lord North was on one occasion brought into imminent danger. On the day that the lord mayor was committed, indeed, the tumult was so violent that the house was obliged to stop business for some hours, and it was in vain that magistrates and constables endeavoured to restore peace: it was only through the speeches of some of the more popular members, who left the house on purpose to address them, that the minds of the chafed multitude became tranquil. It was thought that Lord North would now resign, and a report had been made to that effect, but he declared that though he wished for retirement, he entertained no such design; that nothing but the king or the mob, who were near destroying him, could remove him; and that he was determined to weather out the storm. He ungraciously charged the minority with hiring the mob to destroy him; upon which Burke’s brother, William, indignantly exclaimed, —“It is a falsehood, a most egregious falsehood; the minority are to a man persons of honour, who scorn such a resource. Such a charge could only emanate from a man hackneyed in indirect measures.”

CONTEST BETWEEN THE CITY AND LEGISLATURE.

Another occasion of contest between the city and legislature arose from the introduction of a bill for enclosing and embanking a part of the river Thames, adjoining to Durham-yard. The city considering that their rights were about to be invaded were heard by counsel. They produced a grant by Henry VII. of all the soil and bed of the river, from Staines bridge to a spot near the Medway, and likewise a lease granted by them of a nook of the river near Vauxhall, for which they had received rent upwards of sixty years. On the part of the legislature, a charter of Charles II. was produced, in which he had reserved the bed of the river, by the acceptation of which, it was argued, that the city had forfeited that granted by Henry VII. It was also contended that the charter of Henry only extended to that part of the river which was within the city, and the lease at Vauxhall was, therefore, an encroachment. These arguments prevailed, the bill was passed, and a pile of buildings, called the Adelphi, was erected on the site, and disposed of by lottery. The disposal of them in this manner was to eke out the ways and means, and this mode of procuring money called forth the indignant denunciations of Mr. Burke and Colonel Barré, who stigmatized it as an iniquitous project to bribe the servants of the public; a use to which lotteries had been previously applied.

THE QUESTION OF THE MIDDLESEX ELECTION.

The question of the Middlesex election was again brought forward in the lords on the 30th of April, when; the Duke of Richmond moved for expunging the resolution adopted on the subject. The Earl of Chatham delivered a long speech on that occasion, which was forthwith published in the Public Advertiser. The orator appears to have been unanswered, but the motion was negatived.

THE QUESTION OF THE DISSOLUTION OF PARLIAMENT.

On the 1st of May, the Earl of Chatham moved for an address to the king to dissolve the present parliament at the end of the session, and to call a new one with all convenient dispatch. The speech, which he delivered in making this motion first drew a sad contrast between the state of the country at the time it was uttered, and the condition it was in only a few years before. He then descanted on the treaty of Fontainbleau; the late convention with Spain; the occurrences in St. George’s Fields, which he called “murders;” on the affairs of America; and on the immense private debt contracted by the crown. “All these circumstances,” he observed, “have justly alarmed the nation, and made them attentive to the operations of parliament. Hence the publication of the parliamentary debates. And where is the injury, if the members act upon honest principles? For a public assembly to be afraid of having their deliberations published is monstrous, and speaks for itself. No mortal can construe such a procedure to their advantage; and the practice of locking the doors is sufficient to open the eyes of the blind;—they must see that all is not well within. Not satisfied, however, with shutting the doors, the commons would overturn the liberty of the press. The printers had spirit and resisted. The irritated commons exalted their privilege above the laws of the land, and their servants acted illegally in the execution of their illegal orders. The magistrates of London undertook the cause of the printers,

and the protection of the laws and of the city's franchises. The commons still proceeded with the same outrageous violence;—they called upon the magistrates to justify their conduct, and would not suffer them to be heard by counsel. These men, who had allowed the prostituted electors of Shoreham counsel to defend a bargain to sell their borough by auction, would not grant the same indulgence to the lord mayor of London, pleading for the laws of England, and the conscientious discharge of his duty. Accordingly they committed him to the tower for not violating his oath. The most sacred obligation of morality and religion they voted criminal, when it happened to stand in competition with their assumed privileges. Their next step was the act of a mob, and not of a parliament; I mean the expunging of the recognisance entered at Guildhall. We have heard of such violence committed by the French King; and it seems much better calculated for the latitude of Paris than of London. The people of this kingdom will never submit to such barefaced tyranny. They must see that it is time to rouse, when their own creatures dare to assume a power of stopping prosecutions by their vote, and consequently of resolving the law of the land into their will and pleasure. The imprudence, and indeed the absolute madness of these measures, demonstrates not the result of that assembly's calm, unbiassed deliberations, but the dictates of weak uninformed ministers, influenced by those who mislead their sovereign." Chatham then told the ministers that it was through their misconduct that Wilkes had become a person of consequence in the state, and twitted them with acknowledging him to be their lord and master, since while they had punished the chief magistrate of the city, they were compelled to allow him to act with impunity. On all these grounds, he said, it was that he moved for an address to the throne for the dissolution of parliament; a step which he considered might have the effect of restoring good humour and tranquillity on the one hand, and good government on the other. At the same time he expressed his doubts whether this would prove any thing more than a temporary and partial remedy, as the influence of the crown had become so enormous, that some stronger bulwark ought to be erected for the defence of the constitution. He concluded by stating that the act for septennial parliaments must be repealed, and by proclaiming himself a convert to triennial parliaments. The motion was negatived by seventy-two against twenty-three. In the house of commons, Alderman Sawbridge made a direct motion for shortening the duration of parliaments; a motion which, in spite of the large majorities against him, he renewed every session till his death. Out or doors, at this time, the question was very popular; the Rev. John Home, and Junius advocating it as the surest road to political perfection, and as the only means of preserving the substantial freedom of the constitution. It is probable, however, that Chatham only advocated this measure for the purpose of alarming ministers and increasing his popularity, for his views of parliamentary reform were never definite: he never had a fixed and settled purpose in the matter.

THE SESSION CLOSED.

This session ended on the eighth of May. In his speech from the throne, the king congratulated the houses on those exertions which had averted a war, and which enabled him to hope for the blessings of peace. He alluded to disturbances and groundless suspicions at home, and exhorted the members of both houses to use their

best endeavours to repress them. It is manifest that ministers had lost much reputation during the session, but it seems clear that they were never firmer in their seats than they were at its close. The defection of Mr. Grenville’s party added greatly to their strength, while it as greatly weakened the efforts of the opposition. In June the death of Lord Halifax made a vacancy in the cabinet, which was occupied by the Earl of Suffolk, while his place of lord privy seal was taken by the Duke of Grafton, whose restoration caused a great stir in the political world, and called forth the atrabilious rancour of Junius, who had prided himself on having driven the noble duke from office.

RELEASE OF THE LORD MAYOR AND ALDERMAN OLIVER.

All honour was paid to these captives during their confinement in the Tower. They were visited by nobles and members of the house of commons; the sheriffs waited upon them to express their disapprobation of all the proceedings against them; and at a meeting of the common-council the day after their commitment, a vote of thanks was passed to such members of the house of commons as had given them their support. The common-council also agreed to pay any law expenses that might occur, and to defray all the expenses of their tables while in confinement. On the 5th of March, they were brought by _habeas corpus_ from the Tower, to Lord Chief-Justice de Gray’s chambers, attended by a host of friends; but after hearing Sergeant Glynn and Mr. Lee, he said that he could neither bail nor discharge them. They were then taken to Lord Mansfield’s chambers, who expressed the same sentiments; stating that he could neither take bail nor discharge them while parliament was sitting. They were, therefore, carried back to the Tower, where they remained till the day the session closed, when they regained their liberty. In the mean time the printers remained unscathed. They had, indeed, obtained advantages almost equal to a victory, and there was little more to fear from the publication of the speeches of members of parliament. In the course of the debate Mr. Welbore Ellis moved that a secret committee of twenty-one members should be chosen by ballot, “to examine into the several facts and circumstances relative to the late obstructions to the executions of the order of the house, and to consider what further proceedings may be requisite to enforce a due obedience thereto.” This was agreed to, and on the 30th of April the secret committee produced their report. The document consisted of a tedious deduction of facts and cases, which concluded with a recommendation to the house to consider whether it might not yet be expedient that Millar should be taken into custody by the sergeant-at-arms. Roars of laughter followed this impotent conclusion, and Burke increased the merriment of the house, by observing that the secret committee might be compared to an assembly of mice, who came to a resolution that their old enemy the cat should be tied up, to prevent her doing any further mischief, but forgot to say how this was to be effected. Nothing, therefore, was done, and from that period the parliamentary debates have been published without any disguise or obstruction: a practice which is considered to be essential to the effective working of the representative system, and one of the best safeguards of the constitution, inasmuch as it brings the opinions and acts of representatives under the notice of the lynx-eyed public, who regard their rights and liberties with too severe a jealousy to admit of their being invaded with impunity.

EDUCATION OF THE PRINCE OF WALES.

Before the rising of parliament there was much speculation afloat concerning the appointment of a governor and preceptors for the king’s eldest son, Prince George. It was said that the king was at length “convinced of the error of his ways;” that is, he had become suspicious of the Tories, and was inclined to favour the Whigs. When the appointments were made, however, there was no display of any decided Whig tendency at court. The Earl of Holderness was made the young prince’s governor, and Lord Mansfield’s friend, Dr. Markham, Bishop of Chester, and the Rev. Cyril Jackson, were appointed preceptor and sub-preceptor. The plan of private education was severely censured at the time, as too narrow for the future sovereign of a free country: and it was argued that an education at one of the public schools would have proved more beneficial to the mind of the royal pupil, and to his future subjects. Lord Holderness, after a few years, resigned his trust, complaining that a secret and dangerous influence existed which was injurious to his authority. He was succeeded by Lord Bruce, who retained his office only a few days, and the next governor was the Duke of Montague, with Hurd, afterwards Bishop of Worcester, and the Rev. Mr. Arnold, as preceptor and sub-preceptor. During his education, common report spoke highly of the prince’s quickness of apprehension, retentive memory, and general aptitude for acquiring the elegances of literature.

CITY PETITION TO THE KING.

During the recess, inflamed by the imprisonment of the lord mayor, the harangues of Wilkes, and other circumstances, the city drew up another strong petition and remonstrance. This petition, which was presented by order of the lord chamberlain, without the procession of liverymen, complained of the abitrary, illegal, and wicked proceedings of the house of commons in imprisoning the city magistrates and members, and in passing the Durham-yard Act: it concluded by praying the king to dissolve parliament, and to dismiss his present despotic ministers from his councils for ever His majesty replied, that he was always willing to lend an ear to well-founded complaints, and expressed his concern at seeing the citizens of London so misled and deluded as to renew a request with which he had already declared he would not comply.

DISPUTES IN THE CITY.

At this time, Wilkes, not satisfied with the alderman’s gown, aspired to be sheriff. In this he was supported by Farringdon ward, and by other parts of the city, and the court taking alarm at the circumstance made use of all its influence to prevent his election. Their efforts were encouraged by dissensions among the city patriots, and by reports that Wilkes had offended, the lord mayor and several of the aldermen, and had involved himself in a quarrel with the Rev. John Home, one of the principal leaders of the people. Aldermen Plumbe and Kirkman, were opposed by the government party to Wilkes and Alderman Bull, and every thing was done to secure their election. An awkward mistake, however, frustrated all their endeavours. A letter was written by the celebrated ministerial manager, Mr. John Robinson, to Mr. Benjamin Smith of Cannon-street, informing him that Mr. Harley was to meet his

ward in the course of the day, to urge them to support Plumbe and Kirkman, and entreating him to second the efforts of government by active exertions. This letter was sent by a messenger, but by a mistake he carried it to Mr. B. Smith, of Budge-row, who was friendly to the cause of Wilkes, and he instantly published it, together with an affidavit as to its authenticity: this had such an effect on the poll, that Wilkes and Bull were elected. Alderman Oliver had been induced to offer himself, and he was supported by the Rev. John Home. This led to a correspondence between the Rev. orator and Junius, in the course of which the frailties of Wilkes were laid before the public eye in all their deformity. Home accused him of having commissioned Sir Thomas Walpole to procure a pension of £1000 upon the Irish establishment; of having accepted a clandestine pension from the Rockingham administration; of not having commenced patriot until his wife's fortune was consumed; and of various other delinquencies committed both in England and France, which were very derogatory to his moral character. These accusations, however, came too late, and were, moreover, made in too bad a spirit to have any immediate effect on his popularity:—this he had now the means in his hands of increasing, and he turned his power to good account in this particular. Together with his colleague, he declared that as long as they were sheriffs, the military, which had been the custom, should not be allowed to attend the execution of criminals; and they gratified the people at the beginning of the session, by throwing open the doors and galleries of the Old Bailey, and forbidding the doorkeepers to receive money.

{A.D. 1772}

MEETING OF PARLIAMENT.

Parliament, contrary to usual custom did not meet till after the Christmas holidays. It met on the 21st of January, when the king opened it with a speech which afforded no subject for debate. Addresses were passed in both houses without a division. On the same day Sir John Mawbey obtained leave to bring in a bill for preventing "clandestine outlawries," of which nothing more is known. On the next day Alderman Sawbridge gave notice of moving for leave during the session to bring in a bill for shortening the duration of parliaments; and on the day following there was a debate about the prevailing scarcity, and the necessity of continuing the prohibition against the exportation of corn. Sir William Meredith moved on the same day, that no bill or clause of any bill should be permitted to pass the house, whereby capital punishments were decreed, unless the same should previously be referred to a committee of the whole house: a motion which passed unanimously, and was made a standing order. The first debate of consequence in the house took place on the 29th of January, when Mr. Buller informed the house, in a committee of supply, that his majesty expected they would vote a considerable augmentation to our naval force, as additional ships were required in the Levant, where Russia was carrying on a maritime war against Turkey; in the East Indies, where France began to manifest hostility; and in Jamaica and the West Indies. He moved that 25,000 men including 6664 marines should be maintained, and the motion was seconded by Captain Harvey. The augmentation was opposed by several members as too small if war was expected, and too large to be

kept up in peace, and hints were thrown out by the opposition that ministers or the lords of the admiralty, either wanted more patronage at their disposal, or that something was concealed that made this great armament necessary. Mr. Buller's motion, however, was carried without a division.

DEBATES ON SUBSCRIPTION TO THE THIRTY-NINE ARTICLES.

The important subject of subscription to the thirty-nine articles of religion had long been discussed at public meetings, in the newspapers, and in pamphlets and other works, and during this session, on the 6th of February, a petition from about 240 of the clergy and many professors of civil law and physic, was presented to parliament, praying relief from subscription to these articles The document was thus worded:—"Your petitioners apprehend themselves to have certain rights and privileges which they hold of God alone, and of this kind is the exercise of their own reason and judgment. They conceive they are also warranted by those original principles of reformation from popery on which the church of England is constituted, to judge, in searching the scriptures, each man for himself, what may or may not be proved thereby. They find themselves, however, in a great measure precluded the enjoyment of this invaluable privilege, by the laws relative to subscription, whereby your petitioners are required to acknowledge certain articles and confessions of faith and doctrine, drawn up by fallible men, to be all and every one of them agreeable to the said scriptures. Your petitioners therefore pray that they may be relieved from such an imposition upon their judgment, and be restored to their undoubted right as Protestants, of interpreting scripture for themselves, without being bound by any human explanations thereof—holy scripture alone being acknowledged certain and sufficient for salvation." This petition was presented by Sir William Meredith, who said that he considered it as meriting the most serious attention of the house, as the grievance which affects the minds and consciences of men was more burtdensome than that which affects their property. It was inconsistent, he observed; with the liberality of the present age to oblige men to subscribe to the truth of articles which they could not believe; and he urged that such injunctions tended to establish, under religious authority, habits of prevarication and irreligion; were productive of great licentiousness in the church; and operated to the destruction of Christian charity. He affirmed that the removal of these shackles would give a strength to the established church which nothing could shake, and that no danger could arise from such a reformation while the hierarchy existed. He concluded with remarking that the oaths of allegiance and supremacy were quite enough for the security of the church and state.

The champion of the church on this occasion was Sir Robert Newdigate, member for the University of Oxford. Sir Robert considered the petition as praying to overturn the church of England, which he argued was only to be found in the thirty-nine articles and the Book of Common Prayer. He accused those clergymen who had signed it with possessing accomodating consciences; such consciences as had subverted the church in the last century. As for the house of commons, he maintained that it had no power to dispense with oaths, or to relieve those who had subscribed. Nay, it could not, he said, even receive the petition, since to comply with it would be a

breach of the articles of union between England and Scotland, and since the king is bound by oath never to admit any alteration either in the liturgy or the articles. Mr. Hans Stanley, Mr. Fitzmorris, and Mr. Jenkinson were all of opinion that the house ought to show no countenance to such a petition, and other members were either facetious at the expense of the tender consciences of the dissenters, or furious against every section of that body. Mr. Charles Fox spoke for the church as by law established, and said that he considered that all the laws and statutes by which it had been guarded were very necessary for its preservation: at the same time he deprecated the practice of exacting subscription to the articles from mere boys. Soame Jenyns said that at Cambridge no subscription was required except upon taking a degree, when the parties might be supposed to have arrived at an age when they might think for themselves. Other members opposed the petition, on the ground that it would give a mortal wound to the church, and through the church to the state, since they were so closely united that if one perished the other must share its fate. It was also argued that the church had long been and was still in danger; that the parliament could not grant relief to the petitioners, it having no power to release from oaths once taken; and that even the king could not afford relief, he being bound by oath to preserve the church as by law established. Burke, who opposed the opposition, took a more comprehensive and enlightened view of the subject than most of the preceding speakers. He remarked, “If the dissenters, as an honourable gentleman has described them, have formerly risen from a ‘whining, canting, snarling generation,’ to be a body dreadful and ruinous to our establishments, let him call to mind the follies, the violences, the outrages, and persecutions that conjured up, very blamably, but very naturally, that same spirit ol retaliation. Let him recollect, along with the injuries, the services which dissenters have done to our church and to our state. If they have once destroyed, more than once they have saved them.” Burke next observed that the church of England might alter her laws without changing her identity. He said that she professed no infallibility, and had always exercised the right of reforming her doctrine, discipline, and ceremonies, instancing as examples the change which she had made in the liturgy in the reign of Edward VI. and the reduction of her articles from forty-two to thirty-nine. The act of union, he maintained, had not rendered any further change possible. At the same time he contended that there was no great occasion for the change sought by the petitioners. “I will not enter,” he said, “into the abstract merits of our articles and liturgy; perhaps there are some things in them which one would wish had not been there; and they are not without the marks and character of human frailty. But,” he added, “it is not human frailty and imperfection, or even a considerable degree of them, that becomes a ground for alteration; for by no alteration will you get rid of those errors, however you may vary them.” He then adverted to the inexpediency of these alterations, and the temper of the times. “If,” said he, “you make this a season of religious alterations, depend upon it you will soon find it a season of religious tumults and wars.... These gentlemen complain of hardships. No considerable number shows discontent; but in order to give satisfaction to any considerable number of men, who come in so decent and constitutional a mode before us, let us examine a little what that hardship is. They want to be preferred clergymen of the church of England as by law established, but their consciences will not suffer them to conform to the doctrines

and practices of that church; that is, they want to be teachers in a church to which they do not belong; it is an odd sort of hardship. They want to receive the emoluments appropriated for teaching one set of doctrines, whilst they are teaching another. A church in any legal sense is only a certain system of religious doctrines and practices, fixed and ascertained by some law; by the difference of which laws different churches, as different commonwealths, are made in various parts of the world; and the establishment is a tax laid by the same sovereign authority for payment of those who so teach and practise, For no legislature was ever so absurd as to tax its people to support men, but by some prescribed rule." Burke then warned the house against making a new door into the church for such gentlemen, as ten times their number might be driven out of it, and as it would be inexpedient to displease the clergy of England as a body, for the chance of obliging a few who were, or wanted to be, beneficed clergymen, and who probably were not agreed among themselves as to what required alteration. He concluded by showing, from the different opinions of churches on the canon of scripture itself, that men are as little likely to be unanimous on that point as on any other. He remarked, "The Bible is a vast collection of different treatises: a man who holds the divine authority of one may consider the other as merely human. What is his canon? The Jewish? St. Jerome's? that of the thirty-nine articles? Luther's? There are some who reject the Canticles; others six of the Epistles; the Apocalypse has even been suspected as heretical, and was doubted of for many ages, and by many great men. As these narrow the canon, others have enlarged it, by admitting St. Barnabas's Epistles, the Apostolic Constitutions, to say nothing of many other Gospels. Therefore to ascertain scripture you must have one article more; and you must define what that scripture is which you mean to teach. There are, I believe, very few who, when scripture is to be ascertained, do not see the absolute necessity of knowing what general doctrine a man draws from it, before he is sent down authorised by the state to teach it as pure doctrine, and receive a tenth of the produce of our lands. The scripture is not one summary of doctrine regularly digested, in which a man cannot mistake his way; it is a most venerable but multivarious collection of the records of divine economy; a collection of an infinite variety of cosmogony, theology, history, prophecy, psalmody, morality, apologue, allegory, legislation, ethics, carried through different books by different authors at different ages, for different ends and purposes. It is necessary to sort out what is intended for example, what only as narrative, what to be understood literally, what figuratively—where one precept is to be controlled and modified by another—what is used directly and what only as an argument _ad hominem_—what is temporary and what of perpetual obligation—what appropriated to our state, and to one set of men, and what the general duty of all Christians. If we do not get some security for this, we not only permit, but we actually pay for, all the dangerous fanaticism which can be produced to corrupt our people and to derange the public worship of the country." Lord North said that he hoped to have seen nothing in the petition to prevent him from recommending that it should be laid on the table. He, however, saw that it was repugnant to the act of union, and that if such indulgences were allowed, there would then be nothing to exclude a man from the church of England but popery. Any innovations in the forms prescribed, he added, would occasion such contentions in the nation, that neither poppy nor mandragora could restore it to its former repose.

Mr. Dunning replied, and he argued that every good subject ought to be entitled to a chance of obtaining posts of profit and honour. It was by no means a principle of sound policy, he said, to narrow the means of access to emoluments. As to the quiet of the nation being disturbed by innovation, he could not see such could be the result from granting the prayer of the petition. He added, if the repose of the nation partook at all of the torpid state of insensibility which Lord North’s mandragora had diffused through the house, the sooner it was broken the better; it was an alarming symptom, which, instead of betokening health, was the forerunner of destruction. The house divided at midnight, when the petition was rejected by a large majority.

{GEORGE III. 1771–1773}

ECCLESIASTICAL NULLUM TEMPUS BILL.

Another debate in which the clergy were concerned arose from a motion made by Mr. Henry Seymour, for leave to bring in a bill for securing estates against dormant claims of the church. It was argued that as the _nullum tempus_ of the crown had been conceded in favour of the people, no reason existed why some limitation in this respect should not be set to ecclesiastical power. On the other hand it was contended that the power of reviving claims was necessary to protect the church from encroachments; and that while in the case of the crown it was an instrument in the hands of the strong to oppress the weak, in that of the church, it was a defence of the weak against the strong. The motion was rejected by 141 to 117.

THE CASE OF DR. NOWELL.

On the anniversary of the execution of King Charles, the 30th of January, Dr. Nowell preached a sermon before the house of commons. The speaker and four members only were present, and a motion of thanks and for printing the sermon was carried as a matter of course. When the sermon was printed, however, it was found to savour of the doctrines of passive obedience and the divine right of kings, and to contain principles in direct opposition to those which had placed the reigning family on the throne. This brought down a storm on the head of the preacher. Mr. Thomas Townshend moved that the sermon should be burned by the common hangman; and another member moved that all future sermons should be printed before the preachers received the thanks of the house. These motions were not carried, but on the motion of the Honourable Boyle Walsingham, it was voted that the thanks of the house to Dr. Nowell should be erased. In the course of the debate severe strictures were made upon the character of Charles I., and of that part of the liturgy which describes him as a blessed martyr; and this seems to have encouraged Mr. Montague soon afterwards to make a motion to repeal the act for observing the 30th of January as a holiday, or a day of prayer and fasting. Mr. Montague attacked the appointed form of prayer as blasphemous, inasmuch as it contains a parallel between Charles I. and our Saviour. But the motion was negatived by a majority of an 125 to 97.

TEST AND CORPORATION ACTS.

During the debates on the anti-subscription petition, many members on both sides of the house had acknowledged, that though it was just and reasonable to require subscription from persons entering the established church, it was nevertheless hard to demand it from dissenters and schoolmasters. Later in the season Sir Henry Houghton made a motion to relieve these from subscription, and from the operation of penal laws: in other words, for the repeal of the Test and Corporation Acts. This was strongly opposed by the high church party, who argued that such an exemption would open a road to heresy and infidelity, encourage schism, and tend to the overthrow of the church of England. The bill, however, was carried in the house of commons by a large majority; but it was thrown out in the lords, where it encountered the most violent opposition of the bench of bishops and the ministry.

THE ROYAL MARRIAGE ACT.

In the year 1771, the Duke of Cumberland had contracted a private marriage with Mrs. Horton, widow of Christopher Horton, Esq., a daughter of Lord Irnham, and sister of Colonel Luttrell. It was also generally believed, that his majesty’s other brother, the Duke of Gloucester, had married the widow of the Earl of Waldegrave. This gave offence to their majesties, who prided themselves on the antiquity of the House of Brunswick, on the family of Guelph, and the “antique blood” of Este, from which they were equally descended. The blood of princes, they thought, would be contaminated by any admixture with less precious blood, and especially with that which could not substantiate its claim to pure nobility. Such blood, they imagined, could not be found in all England, but the families out of which the royal dukes had chosen their wives were especially deficient in aristocratic pretensions; the Luttrells being an undistinguished stock of Irish Protestants, and the Countess Dowager Waldegrave, the natural daughter of Sir Edward Walpole. Under these circumstances, the royal dukes were forbidden the court, and his majesty sent a message to both houses of parliament, importing that he thought it would be wise and expedient to render effectual, by some new provision, the right of the sovereign to approve all marriages in the royal family. In consequence of this message, a bill was brought into the house of lords, by which it was declared that no member of the royal family, being under twenty-five years of age, should marry without the king’s consent; and that after attaining that age, they were at liberty, if the king refused his consent, to apply to the privy council, by announcing the name of the person they wished to espouse, and if, within a year, neither house of parliament should address the king against it, then the marriage might be legally solemnised. The bill further declared that all persons assisting in, or knowing of any intention in any member of the royal family to marry without fulfilling these ceremonies, and not disclosing it, incurred the penalties of a premunire. The bill encountered a violent opposition in the house of lords, but it was carried by a large majority, and then sent down to the commons. In the commons it was opposed with still greater violence: it being denounced by Burke and various speakers as cruel and oppressive, and as being calculated to extend the dangerous power of ministers and the limits of prerogative. The bill was, however, carried by a majority of forty members. In the house of lords, nineteen peers entered a long protest, declaring that if the bill passed into a law, it would, nevertheless, be void. The excitement out of doors on the subject was scarcely

less violent than that within the house. It was said there, that the bill should be entitled “an act for encouraging fornication and adultery in the descendants of George, II.” As for the Duke of Gloucester, in the course of the spring, he openly avowed his marriage with the widow of the late Earl of Waldegrave, and both brothers abstained from going to court for ten years, and lived as strangers to his majesty.

EAST INDIA AFFAIRS.

During the month of February, Lord North had called the attention of the house to the affairs of the East India Company, which were every day increasing in importance, and involving greater interests. In March, Mr. Sullivan, deputy chairman of the company, moved for leave to bring in a bill for the better regulation of its officers and concerns in India. The bill was brought in and read a second time, but it was then laid aside. In the course of the debates upon it—many charges and defences passed between certain members of the house and others that had acquired vast fortunes in India, and these accusations led to a secret committee of inquiry, which forthwith commenced its task: a task that was not completed during this session.

THE SESSION CLOSED.

This session closed on the 10th of June, when the king expressed his satisfaction at the temper and moderation displayed by the members during their sitting, and thanked them for the additional security which they had provided for the honour and welfare of his family: thanks which chiefly referred to the royal marriage act. The supplies voted for this year were £7,860,250; and the national debt amounted to £127,500,000. In the course of the session, it may be remarked, that the ancient and barbarous custom of _peine forte et dure_, by which felons refusing to plead, were stretched on their backs and pressed to death by heavy weights, was abolished by an act, which declared that all who acted thus contumaciously were to be adjudged guilty of the crimes laid to their charge. At the close of the session Lord North seemed firmly seated in office, and this conviction brought over many waverers, and time-servers to his side. Nevertheless, he was soon after doomed to lose the support of one of the best of his debaters, in the person of Charles Fox, who was suddenly converted to Whig principles, and who consequently resigned the admiralty.

FATE OF THE QUEEN OF DENMARK.

Carolina Matilda, the king’s youngest sister, was married in her sixteenth year to Christian VII., king of Denmark. This monarch was addicted to licentious and degrading pleasures, and was a prince of weak intellect, irritable and capricious, open to flattery, and easily deceived by the crafty. Soon after his marriage he visited England, France, and Germany, where he might, if he had possessed intellect, have obtained such knowledge as would have made him a better man. He returned, however, to his dominions the same character as when he left it—vicious in his private life, and despotic in his rule. During his travels he had been accompanied by a physician named Struensee, and this man had acquired such an absolute ascendency over his mind, that he obtained the supreme direction of affairs, with a title of nobility. Struensee was endowed with considerable abilities, and was possessed of a

handsome person and engaging manners. He appears to have ingratiated himself as much in the favour of the queen, as of the king, being allowed to converse with her in very familiar terms. Apart from this, however, there appears to have been no connection between the queen and the favourite. But Matilda was watched by unfriendly eyes. Juliana Maria, the queen-dowager, had from her first arrival taken a dislike to her, and this aversion was increased when she saw that Matilda, Struensee, and Brandt, a young nobleman, exercised complete authority over the imbecile monarch, and directed the affairs of government at their pleasure. The queen-dowager had numerous and powerful friends, and these were likewise incensed at seeing Struensee at the head of the government, and a strong party was formed against him; Juliana Maria being at the head of the faction. The queen, also, was an object of their malice from her supposed influence over the king, and her encouragement of a man who thus lorded it over the old nobility. By their intrigues they soon obtained an order from the king for her removal from Copenhagen, and for the apprehension of Struensee and Brandt: it being represented that they had plotted together and were about to depose him. It was on the night of the 16th of January that the faction put their conspiracy into execution. Struensee and Brandt were suddenly seized, cast into prison, and after undergoing the greatest indignities, were beheaded. At an early hour, also, the queen, who had just retired to rest from a masked ball, received a written order to remove instantly from Copenhagen. It was in vain that Matilda sought to see her husband: she was dragged half naked into a carriage, and driven to Cronborg castle, where she was immured with an English lady of her suite, and her infant daughter, the princess Louisa, whom she was then suckling. A project was set on foot to try her on a capital charge of adultery, for the purpose of rendering her offspring illegitimate, in order that Prince Frederic, son of the queen-dowager, might become presumptive heir to the throne. A secret commission had, indeed, found her guilty, and had pronounced a divorce, as a preparatory step to her trial on a capital charge. Matilda, however, was the sister of one of the greatest sovereigns of Europe, whose arm was to be dreaded, and the Danish court was compelled to agree that she should quit the kingdom, and live under the protection of his majesty of England. An English squadron repaired to Cronborg to receive her, but she was not allowed the consolation of bringing her infant daughter away with her. She was conveyed to the vessel in an agony of despair, and she sat on the deck with her eyes fixed on the walls of the castle where she had left her only earthly solace, till the darkness of night concealed them from her view. She was conveyed to the castle of Zell, in Hanover, where a cheap little court was provided for her; the expenses being paid out of the Hanoverian revenue, or out of the English privy purse. But her days of light-heartedness were over: her heart was stricken with grief which weighed her down. Portraits of her infant-son and daughter were procured, and these she hung in her chamber, where she would frequently talk to them, as though the images had been the originals—the shadows, the substance. She did not, however, long survive her misfortunes. She died at the age of twenty-four in the month of May 1775; less than three years after her release from Cronborg. Yet after all the machinations of the queen-dowager of Denmark, the son of the ill-fated queen afterwards ascended the throne: being first associated with his father Christian VII. as a sort of joint monarch. This, at least, proves that the king

himself was convinced of the innocence of his unhappy consort.

DEATH OF THE PRINCESS DOWAGER OF WALES.

Before her daughter was hurled from the throne of Denmark, her mother, the Princess-dowager of Wales, was no more. She died suddenly on the 8th of February, in the fifty-fourth year of her age. Although she had endured much popular clamour, the accusations of her enemies were never satisfactorily substantiated. At all events she appears to have possessed many good qualities. It tends greatly to her honour that she gradually liquidated her husband’s debts out of her own private income.

REVOLUTION IN SWEDEN.

In the beginning of this year a sudden revolution took place at Stockholm. About half a century before, the nobility of Sweden had limited the prerogative of the crown, and had erected themselves into an absolute and oppressive oligarchy. Since then the country had been split into two factions, which were called the Hats and Caps. Encouraged by this division, as well as by the venality of the aristocratical senate, Gustavus III. resolved to erect the old monarchical despotism. His plans were matured with extreme secrecy and precaution. The mass of the army was gained over to his cause; the affections of the brave people of Dalecarlia, who had established the dynasty of Gustavus Vasa, were secured; and the services of the citizens and burgher-guard of the capital were enlisted. All were ready, and the king, having assembled the troops within the walls of Stockholm, under the pretext of providing against an insurrection, then threw off the mask. He harangued the troops; telling them that he was about to save the nation from degradation and misery, to put an end to the insolence and venality of the nobles, and to restore the crown to its ancient splendour. The soldiers applauded; the senators were made prisoners; the obnoxious members of the secret committee of the states fled for their lives; the army, colleges, and citizens took the oath of allegiance in the absolute form; and the revolution was achieved. It was achieved gloriously; for not one drop of blood was shed. The states of the kingdom underwent no change—the council only was overturned, and the factions of the aristocracy, led on by family interests and supported by foreign influence, repressed.

PARTITION OF POLAND.

Sweden was more fortunate than Poland. At this time that country presented a melancholy aspect. It was torn by civil wars, harassed by religious discord, and wasted by the famine and the plague. But these were only the accessories to still greater misfortunes. Crippled by them, Poland had no power of resisting the spoilers who were now casting their eyes upon her as their prey. These spoilers were the rulers of Russia, Prussia, and Austria, whose armies entered the country under false pretences, in order to appropriate the fairest portion to themselves. And what made the condition of that unhappy country the more deplorable was, that she had not a single friend who could lend a willing ear to her call for aid. Turkey was at this period almost prostrate at the feet of Russia; Sweden and Denmark were engaged in revolutions of their own; Choiseul no longer directed the affairs of France, or was able to advocate war; and England was embarrassed by domestic commotions and

the violent remonstrances of her rebellious colonies. It was in vain that the King of Poland published refutations to the claims of the co-partitioners, and in vain that they made an appeal to all the states that had ever guaranteed the integrity of the country. Before the spirit of Europe could be roused, violent hands were laid upon the kingdom, and the work was done. The three powers, indeed, proceeded to the dismemberment of Poland, with no other check or impediment than such as arose from their own clashing interests, where each one strove to obtain as much as they could. But the agreement was made marvellously quick. The treaty of partition was signed between the spoliators on the 2nd of August, in 1772, and it was followed in the month of September by declarations, manifestoes, and specifications of the territories which each of he powers was to possess Austria and Prussia claimed their portions as their rights; Russia represented that she was entitled to hers for expenses incurred in keeping Poland in order. All the powers agreed that it was to put an end to anarchy, and the frequent troubles of Poland, that induced them to take this step; and they asserted that it was their intention of placing the ancient constitution of Poland and the national liberties upon a sure foundation. But their assertions ill agreed with their actions: all the world knew their motives, and that it was self alone which made them take such deep interest in the affairs of Poland. Nay, their very manifestoes declared their real designs. Cities, towns, provinces, rivers, and Mountains were to be taken from her, and placed under their own fostering care. But then it was stated by them, this was only done out of mercy to the nation. Having limited their kingdom thus, they promised that they would discharge the Poles from all other debts, dues, and demands, and for ever respect the integrity of the remnant of their dominions. Thus preaching peace, though war was in their hearts, the three powers invited the Poles of all ranks and orders to put up their swords, and to banish the spirit of discord and delusion, in order that a diet legally assembled might co-operate with their imperial majesties and the King of Prussia in re-establishing tranquillity, and at the same time ratify, by public acts, the titles, pretensions, and claims of the three powers; and the partition agreed upon and effected. The diet met, and although for a long time they opposed the dismemberment of the country, yet they were overcome by large presents and larger promises. The king was more firm, but he was menaced with deposition, his family with ruin, and his capital with pillage, and he signed the fatal instrument. The territory taken and divided among them was almost the third part of Poland, and it comprised some of the richest provinces in the kingdom. Thus to Russia was assigned the greater part of Lithuania, with all the vast country between the livers Dwina and Dneister; to Prussia the whole of Pomeralia, part of Great Poland, the bishopric of Warmia, and the palatinates of Marienberg and Culm, with the complete command of the lower part of the Vistula; and to Austria the country along the left bank of the Vistula, from Vielicza down to the confluence of the river Viroz, the whole of the country called Red Russia, the palatinate of Belz, and a portion of the province of Volhynia. But even this did not satisfy the spoliators. The treaty was scarcely signed when Frederick extended the limits of his acquisitions in the neighbourhood of Thorn, and to the east of the Devenza, while Austria seized on Casimir, part of the palatinate of Lublin, and some lands lying on the right bank of the Bog. Were not these three powers actuated by a spirit of revenge and envy, as well as by a spirit of cupidity, in this spoliation of Poland? Prussia was formerly in a state of

vassalage to that country; Russia once saw its capital and throne possessed by Poles; and Austria was indebted to a sovereign of this country for the preservation of its metropolis, if not for its very existence. Stanislaus could scarcely be persuaded that this dismemberment was intended to be perpetual; and when he was convinced of it, he addressed prayers and protests to France, Spain, and England, and to all the powers of Europe. These prayers and protests were useless; and yet it was the wisdom of the powers to vindicate his cause. Professor Heeren remarks:—"What were the consequences to Poland, in comparison with those which threatened the political system of Europe? The potentates themselves had begun its subversion. Politicians flatter ed themselves, indeed, and so did Frederick, that the balance of power would be upheld in the north by the nearly equal division; so fearfully had the error taken root, that this balance is to be sought in the material power of the state, and not in preserving the maxims of international law. What dismemberment could be illegal if this should be regarded as lawful? and what state could be more interested in maintaining the law of nations than Prussia—a state which was established by conquests piecemeal, and brought together by compacts and treaties of peace?" The dismemberment of Poland was in truth an outrage committed upon the law of nations. And this outrage was rendered tenfold more iniquitous by the new constitution imposed upon Poland. This constitution excluded all reform; perpetuated the elective monarchy with the _liberum veto_, the exorbitant privileges of the nobles, and every other inherent defect; and contracted the regal power, by appointing a co-operative council, and depriving the sovereign of more than half his patronage. The delegates who had been appointed to adjust the claims of the partitioning powers, and to settle this new constitution, long resisted these regulations, but their consent was finally extorted by threats, and a general diet was assembled which formally confirmed their acts. All things, therefore, were put into a proper train for future spoliation; nor did a long time elapse before another opportunity occurred of making inroads into the law of nations, and dissolving those ties which connect governing powers among themselves. The ambassadors of the three powers, indeed, continued to dictate to the council in which the executive power was vested, as they had done to the diet, and the king was only king in name. Some there were in the nation who dared to resist the spoliators, but they were soon compelled to leave the country with no fortune but their swords. Some of these afterwards fought under George Washington, in America, when the English colonies raised the standard of independence.

INVESTIGATION OF THE MIDDLESEX ELECTION.

During this year the dispute concerning the Middlesex election was revived in a new mode of investigation. An action was brought by Mr. Alderman Townshend against the collector of the land-tax for distraint in default of payment, which was refused, on the plea that Middlesex was not represented in parliament. Sergeant Glynn was retained for the plaintiff, and Mr. Wallace was employed for the defendant—the former of whom argued, that the county was not represented, and the latter of whom contented himself with producing the act of parliament under which the collector had acted. Lord Mansfield, in his charge to the jury, said, that the sole question for them to consider was, whether at the present time there was any

legislative power in the county or not—if they thought there was, they must find for the defendant. The jury thought there was, and gave a verdict accordingly.

CHANGES IN THE MINISTRY.

During the month of August several changes occurred in the ministry which had a tendency to strengthen the administration. Lord Hillsborough resigned his post of secretary for the colonies and first lord of trade; the Earl of Harcourt succeeded Lord Townshend in Ireland, the latter being appointed master-general of the ordnance; General Conway obtained the government of Jersey, and was succeeded as lieutenant-general of the ordnance by Sir Jeffery Amherst; and Lord Stormont was sent as ambassador to Paris. Moreover, later in the year, Charles Fox, whose services were of value to the ministers, and who was in want of ministerial pay, again changed sides, and was made a lord of the treasury; while Mr. Jenkinson was created vice-treasurer of Ireland.

THE MEETING OF PARLIAMENT.

Parliament reassembled on the 26th of November. The speech of his majesty contained no topic of importance, and the addresses of both houses did little more than echo the speech. It was expected that some allusion would have been made in it to the partition of Poland, but not a word was said about that flagrant act, and the members who spoke on the addresses were equally silent upon the subject. Mr. Burke appears to have felt deeply concerning it, but he reserved his eloquence for a future period.

EAST INDIA AFFAIRS.

On the first clay of the session hostile language was uttered by the retainers of government in the commons against the East India Company, and Lord North moved for a secret committee of thirteen to examine certain points, independently of the committee appointed last session, which was carried. In the course of seven days a report was made by this secret committee, recommending a bill to prevent the company from sending out certain supervisors whom it had selected to settle matters in India. It was at once seen that such a bill was only a preparatory measure for the interference of government in the administration of India, and therefore it excited the warmest opposition of many members. Several of the directors, sitting in parliament, declared that the report was hurried, irregular, and unconstitutional; and Burke, who was a holder of East India stock, maintained that the proposed bill would be a violation of the company’s charter, and the law of the land. “If,” said he, “we suffer this bill to pass we shall become the East India Company; the treasury bench will be the buyers, and on this side we shall be the sellers. The senate will become an auction-room, and the speaker an auctioneer.” The recommendation of the secret committee was, notwithstanding, adopted, and the bill was introduced.

During the progress of this bill, the East India directors petitioned against it, representing it as subversive of those rights and privileges which they held under their charter, which were purchased by their predecessors for a valuable consideration, and were confirmed to them by acts of parliament. The petition also complained of an erroneous calculation of expenses made by the committee, and

stated that those of the commission would be defrayed by savings meditated, to the great benefit of the creditors. The petitioners, moreover, suggested that injurious consequences would arise from their being prohibited to transact their own affairs, in the want of means to fulfil their engagements with the public; claimed the benefit of the law; appealed to the faith of the nation for their chartered rights; and prayed to be heard by counsel. This latter prayer was granted, and it appeared from evidence that government had received nearly £2,000,000 annually from the company, while the company had received little more than six per cent, on their capital. The evidence given at the bar also served to establish the great delinquency of the company's servants, and the need that existed of their being subject to supervision. At the same time it did not show that the company of itself was competent to redress these abuses, and the question was, whether the incompetency of the company warranted the interposition of parliament. Ministers acknowledged it to be a stretch of authority, but they justified it on the plea of cogent necessity—a necessity which took precedence of all other law. The company's battle was fought in the commons by Burke, whose speech on this occasion attracted great attention. After observing that parliament took the state of the company's trade into consideration, in 1767 for the maintenance of the public faith and public credit; for the increase of its commerce and revenues, and for the security of its stockholders—a bargain with which the eyes of the house were dazzled—he thus descanted on the distress of the company and the iniquity of the bill:—"The distress of the company," said he, "arises from the improvidence of administration and the short-sightedness of parliament, in not forming for it a system of government suitable to its form and constitution. Or am I mistaken? Were the directors left without any effectual control over delinquent servants? Was the collection of the revenue left without any check? Was the tyranny of a double government, like our double cabinet, tolerated with a view of seeing the concerns of the company become an absolute chaos of disorder, and of giving to government a handle for seizing the territorial revenue? I know that this was the original scheme of administration, and I violently suspect that it never has been relinquished. If the ministry have no sinister view, if they do not mean by this unconstitutional step to extend the influence of the crown, they will now speak out, and explicitly declare their intentions: their silence may be justly construed into a confession of such a design, and they will thenceforth be considered as the determined enemies of the liberty of their country. God knows, that the places and pensions, and expectancies, furnished by the British establishment, are too powerful for the small remains of patriotism and public spirit that remain in our island. What then will become of us, if Bengal, if the Ganges, pour in a new tide of corruption? Should the evil genius of British liberty so ordain it, I fear this house will be so far from removing the corruption of the East, that it will be corrupted by it: I dread more from the infection of that place than I hope from the virtue of this house. Was it not the sudden plunder of the East that gave the final blow to the freedom of Borne? What reason have we to expect a better fate? I conjure you, by everything which man ought to hold sacred—I conjure you by the spirits of your forefathers, who so nobly fought and bled for the cause for which I now plead—I conjure you by what includes everything, by your country, not to yield to the temptations which the East, in the hands of the crown, holds out: not to sink into the gulf of corruption, and to drag after

you your posterity and your country. I obtest heaven and earth, that in all places, and at all times, I have hitherto shoved by the gilded hand of corruption, and endeavoured to stem the torrent which threatens to overwhelm this land. On the whole, the bill is dangerous in itself, as being the first step towards the total invasion of the company's territories in Bengal; and should we admit the motives which lead to it to be good, yet such a step is dangerous as a precedent. I do not, however, deny that the house has power to pass it, but you have not the right. There is a perpetual confusion in gentlemen's ideas from inattention to this material distinction, from which, properly considered, it will appear that this bill is contrary to the eternal laws of right and wrong—laws that ought to bind all men, and, above all men, legislative assemblies." Notwithstanding Burke's eloquence, the bill was carried in the commons by an overwhelming majority, and it was also carried through the lords with little or no opposition. The two houses then adjourned for the Christmas recess.

CHAPTER V.

{GEORGE III. 1773–1775}

The Caribbs of St. Vincents..... Petition of Naval Officers..... Subscription to the Thirty-nine Articles..... Debates on East India Measures..... The Session closed..... Proceedings in the City..... Continental Politics-Irish Affairs..... Disputes with the American Colonies..... Meeting of Parliament..... Early Measures in this Session..... The Bostonian Petition..... Parliamentary Proceedings against America..... Bill for the Administration of Canada..... Prorogation of Parliament..... Proceedings at Boston..... General Election..... Meeting of the New Parliament.

{A.D. 1773}

THE CARIBBS OF ST. VINCENTS.

Before the Christmas holidays, Alderman Trecothick mentioned in the house that the island of St. Vincent had been made a scene of iniquity and cruelty: our troops having committed against the Caribbs, a defenceless and innocent people, the most shocking barbarities. Other members spoke on the same subject, and said that the troops had been barbarously made to suffer even more evils than those they inflicted on the Indians. Papers were produced which seemed to prove that proper care had been taken of the troops, but on the reassembling of parliament, a further inquiry was set on foot upon the subject. It appears that the Caribbs, who were in possession of the most fertile parts of the island, had not been mentioned when it was ceded to Great Britain; and that the British settlers wished them to exchange their districts for tracts which were said to be more appropriate to their occupations of hunting and fishing. This proposal was received by the Caribbs with indignation. They replied that they had held their lands independent of the King of France, and would still hold them independent of the King of England. The planters then submitted a plan to government for transporting this brave people to Africa, which plan met with approbation. The Caribbs, however, were passionately attached to their native plains,

and hence determined on resistance. Two regiments were then dispatched from North America, to join others in the island, for the purpose of reducing them to subjection. Several skirmishes took place, but the rainy season and sickness, added to the difficulties of the country, prevented our troops from completing their subjugation. Such was the state of the island when Parliament met, and the account of these hostilities, in which detestable cruelties had been committed on both sides, was made the subject of animadversion. Motions concerning the cause of the war and the state of our troops were made by the opposition, but ministers negatived them with their usual majorities; and before the discussions were over, intelligence arrived, that the Caribbs had acknowledged themselves subject to the British crown, retaining their ancient customs in their intercourse with each other, and ceding certain districts to the British settlers. This put an end to all further debates on the question.

PETITION OF NAVAL OFFICERS.

On the 9th of February, a petition was presented by Lord Howe, from the captains of the navy, praying for a trifling increase of their half-pay. This was opposed by Lord North, who stated that the present state of the public finances put it out of his power to be liberal, and that by granting this petition a door would be open to similar claims. It was, however, so warmly defended by Lord Howe, and other members—some of whom ridiculed the idea that the finances of this great and opulent country were in so wretched a state as not to be able to afford the pittance of £6000 a year, for the relief of men to whom her power and glory were so much indebted—that the prayer of the petition was granted. A motion was carried by which the half-pay of naval officers was increased by the addition of two shillings a day.

SUBSCRIPTION TO THE THIRTY-NINE ARTICLES.

This subject again occupied the attention of parliament in this session. A bill, more generally conceived than the last, was brought into the commons for the relief of Protestant Dissenters. Upon this occasion the Wesleyan methodists, now a numerous and powerful body, made common cause with the church, and denounced any change or innovation in the Act of Toleration, as dangerous. Petitions were sent up to parliament by them against the relief prayed for by the dissenting body, although they were, in point of fact, themselves dissenters. Burke supported the bill, and his eloquence and powerful reasoning had a great effect upon the house. But his exertions this time were scarcely needed, for Lord North himself, and other ministers gave the bill their warmest support, and it passed the commons by large majorities. In the house of lords, it was strongly opposed, and rejected by a majority of 102 against 29. In the debate upon it, the bill was defended by the Earl of Chatham, who in his speech did not even spare the right reverend bench. In the debate, Dr. Drummond, Archbishop of York, had called the dissenting ministers “men of close ambition.” In reply to this, Chatham observed:—“Whoever brought such a charge against them defamed them. The dissenting ministers are represented as men of close ambition. They are so in some respects. Their ambition is to keep close to the college of fishermen, not of cardinals; and to the doctrine of the inspired apostles, not to the decrees of interested and aspiring bishops. They contend for a spiritual creed

and a spiritual worship: we have a Calvinistic creed, a Popish liturgy, and an Arminian clergy." At a later period of the session a motion was made in the commons by Sir William Meredith, for abolishing the subscription to the thirty-nine articles at the time of matriculation, but this was rejected.

DEBATES ON EAST INDIA MEASURES.

During the recess, the East India directors reduced their dividend to six per cent. This palliative, however, was of no avail, and they were obliged to pass a vote for applying to government for the loan of one million and a half to relieve them from their pecuniary difficulties. A petition to this effect was presented to parliament, and Lord North, after exculpating government from various insinuations regarding the annual payment of the company, moved a series of resolutions, tending to establish the grant of a loan as a matter of necessary policy, but not as a claim of right or justice. He proposed that £1,400,000 should be advanced, and that their dividends should be restricted to six per cent, till the whole was repaid, and afterwards to seven per cent, until their bond debt was reduced to £1,500,000. This passed without a division. At the same time, Lord North suggested some regulations as proper to prevent the recurrence of similar embarrassments, and to reform all abuses in the government of India. On a future day he moved that the company should be permitted to export tea to America free of all duty, which was accepted by the company as a great boon: they having at that time seventeen millions of pounds of tea in their warehouses in England. Finally, he proposed his grand plan for the regulation of their affairs, as well in India as in Europe. This plan provided that six directors should be elected annually, none holding their seats more than four years; that the stock for the qualification of an elector should be raised from five hundred to one thousand pounds, and possessed twelve months previous to an election; and that in lieu of the mayor's court at Calcutta, a new tribunal should be established, consisting of a chief justice and three puisne judges appointed by the crown, a superiority being also given to Bengal over all the other presidencies. These latter resolutions occasioned warm debates, and met with vehement opposition, but they were all eventually carried, and a bill framed on them passed through both houses with overwhelming majorities. From this time the affairs of India are generally regarded as being lodged securely in the hands of government.

THE SESSION CLOSED.

During this session, ministers seem to have carried their motions and plans with great facility. The opposition for the most part was tame and spiritless, whence Burke calls it,—"a tedious session." On one occasion, however, the harmony which prevailed in the cabinet, and between the two houses, was momentarily interrupted. The lords having taken upon themselves to make some amendments in a money bill, sent it again down to the commons, and they resenting this as an infringement of their rights, tossed it over the table, and kicked it out of the house as though it had been a foot-ball. This matter, however, was soon forgotten; and when his majesty put an end to the session, he expressed his satisfaction at the harmony which had subsisted during their deliberations, as well as at the zeal, assiduity, and perseverance which had been displayed. In his speech he regretted the continuance of the war between

the Porte and Russia; declared he had a close friendship both with the czarina and sultan, but no engagements with either; applauded the relief and support given to the East India Company; and stated that the national debt had been somewhat reduced. But not one word was said about the fate of Poland.

PROCEEDINGS IN THE CITY.

During the month of May the Duke of Gloucester’s wife was delivered of a daughter, and on this occasion, Wilkes moved at a court of common-council, that an humble address of congratulation should be presented to his majesty on the safe delivery, and the birth of a princess. This motion was supported by Sir Watkin Lewes, but other aldermen opposed it, not only on the ground that the king had never acknowledged the lady for his sister, but because it was unusual for the city to address the king, except for the issue of his immediate heir. Earlier in the year, indeed, the queen had been delivered of another son, Augustus Frederic, the late duke of Sussex, and no mention had then been made of an address, and therefore to have presented one on this occasion, would have been invidious, if not indelicate. This motion, therefore, proved abortive. Wilkes, however, with his friend Oliver, succeeded in obtaining from the court of alderman a resolution “that a frequent appeal to the people by short parliaments was their undoubted right, as well as the only means of obtaining a real representation;” and the livery not only passed a similar resolution, but proposed it as a test for the city candidates at a future election. Another strong petition and remonstrance on the old grievances, the Middlesex election, the imprisonment of the lord mayor, etc., and praying for a dissolution of parliament, and a change of ministers, was got up in the city and presented to the king, by the lord mayor, Sergeant Glynn, Alderman Bull, and others of the city officers, on the 26th of March. Before the citizens were introduced to his majesty, they were given to understand that they would not be allowed the honour of kissing his hand, and when it was presented, the king sternly told them, that their petition was so void of foundation, and conceived in such disrespectful terms, that he felt convinced the petitioners did not seriously imagine that its prayer could be complied with.

CONTINENTAL POLITICS.

While the cabinets of Petersburg, Vienna, and Berlin were occupied in dismembering Poland, and aggrandizing their dominions at the expense of that ill-fated country, France was making preparations to send a powerful fleet into the Baltic. This was evidently the forerunner of some ulterior design, although D’Aigullon, the prime minister of France, endeavoured to keep those designs from the public view. He was, however, unable to elude the vigilance, or to baffle the penetration of the British cabinet. After expatiating on the ambition of Russia, as well as the ties of honour and interest by which France was bound to assist Sweden, D’Aigullon was informed by Lord Stormont, the British ambassador, that, if France sent her ships into the Baltic, they would be followed by a British fleet. The presence of two fleets, he said, would have no more effect than a neutrality, and that, however the British cabinet might desire peace between England and France, it was impossible to foresee the consequences that might arise from accidental collision.

This had some effect, for the squadron at Brest was countermanded; but soon after the French minister, in hopes of eluding observation, gave orders for the equipment of an armament at Toulon, under pretence of exercising the sailors of France in naval tactics. Discovering this, the British cabinet made vigorous demonstrations of resistance. The English ambassador was directed to declare that the objections made against a fleet of France occupying the Baltic, applied equally to the Mediterranean, and a memorial was presented to the French minister, accompanied by a demand that it should be laid before the king, and council. This was sufficient: the armament was countermanded and the sailors discharged.

IRISH AFFAIRS.

The spirit of disaffection was still rife in Ireland. The Earl of Harcourt having been appointed to the government, was at first received with great joy, but he soon found that his popularity was not sufficient to ensure obedience to the dictates of the British cabinet, or to repress the overflowings of human passion. The White Boys, and the Hearts of Steel, still exhibited a turbulent spirit, which nothing could allay or soothe. Nor was it among the populace alone that ill-feeling was displayed. When the Irish parliament met, the spirit of liberty was discerned in that assembly likewise. The speaker of the house of commons, in a speech to his excellency before the lords, expressed the inability of the country to endure any additional taxation, by reason of those commercial restrictions, which, he said, had fettered all its energies. The claim of commercial freedom was, indeed, warmly repeated in the official addresses of the speaker during the continuance of the government of this viceroy, and a spirit of jealousy also appeared in a refusal to admit foreign mercenaries, when the British troops were withdrawn to America, although the English government offered to defray all the expenses. A relaxation of the penal code, however, by which the condition of the Roman Catholics was improved, had the effect of lowering the angry feelings of the nation, and on the whole the government of the Earl of Harcourt is looked upon as having produced beneficial results to the country. Dr. Miller says, “The government of Lord Townshend had termininated the oligarchical administration: that of Lord Harcourt unfolded those germs of political energy, which were soon to expand themselves into national prosperity and importance.”

DISPUTES WITH THE AMERICAN COLONIES.

The storm which had long been gathering in the horizon, was now gathering thick over our American colonies, and threatened ere long to pour out its fury throughout the whole length and breadth of the conn-try. It was now increased by the attempt of Lord North at taking the payment of the colonial judges and governors out of the hands of the houses of assembly. This the Americans declared was an attempt of the British government to impose its own arbitrary instruments upon them; to destroy the very essence of their charters and liberties, by making the judges and governors wholly independent of the people, and dependent on the crown. Resistance was therefore resolved upon. A series of protests were issued from the assembly of Boston, and the example was followed by all the assemblies throughout the colonies. For the purpose of making the opposition more effectual, a corresponding committee was established, with branches and ramifications, which reached nearly to every

town and village throughout the colonies, and the effect of this great lever of the revolution was soon seen in a general combination of measures, a unanimity of language, and a general persecution of all those who were in favour of the British government. The movement, which had hitherto been slow in its progress, now took rapid strides, the celerity of which nothing could impede. The assembly of Boston, always in the van, next got up a manifesto, which treated the authority of the British parliament with contempt. This manifesto declared that the British parliament had no right to legislate for the colonies in any matter whatever; denounced the declaratory act recommended by Chatham, and passed in 1768, as an unjust assumption of a legislative power, without the consent of the colonists; and charged the British ministry with a design to complete a system of slavery begun in the house of commons. Copies of this manifesto were dispersed throughout the province of Massachusets, urging the people not to dose any longer, or to sit supinely, whilst the hand of oppression was plucking the choicest fruits from the tree of liberty. The people, however, seem to have considered it as too violent, for it was not responded to as the Bostonians expected it would have been, and they were compelled somewhat to retrace their steps, They apologized to the British government for having gone thus far, throwing the whole blame on their new governor, Mr. Hutchinson, who, they said, had provoked them to act thus by his intemperate conduct. At the same time they stated that they were faithful subjects of his majesty, and that they conceived themselves happy in their connexion with Great Britain! At this critical moment, however, when the minds of the people of New England wavered, and when the southern and middle countries were comparatively peaceable, communications were received from England, which set the whole country in commotion.

During the course of the disputes, certain letters had been written by Mr. Hutchinson, Mr. Oliver, lieutenant-governor., and others, to the home government, reflecting strongly on the character of the colonial opposition, and recommending the adoption of coercive measures, and a material change in the system of the government of the colonies. These letters were strictly confidential, but they were purloined from the office in which they were deposited by some person favourable to American interests, and placed in the hands of Dr. Franklin, agent for the province of Massachusets. Franklin thought proper to transmit these letters to a friend in that province, with a strict injunction against their being printed, as he had given a promise to the friend who had furnished him with them to that effect. Their contents, however, soon became known, and the legislative assembly obliged Franklin’s correspondent to produce them, and having resolved that the tendency of them was to overthrow the constitution and to introduce arbitrary power into the province, the house of assembly drew up a petition to the king, charging the governor with betraying his trust, and slandering the people under his government; declaring him an enemy to the colony; and praying for the instant dismissal of both Hutchinson and Oliver, the governor and deputy-governor of the province. Copies of this petition, and also of the letters which gave rise to it, were soon scattered over all the continent, from the Lawrence to the Mississippi, and from the shores of the Atlantic to the regions of the far west; and their effects soon became manifest. Long before this, in

1772, the people of Rhode Island had insulted the British flag by boarding, capturing, and burning a British ship of war, and though government had offered a large reward with pardon, if claimed by an accomplice, for the discovery and apprehension of any persons engaged in the outrage, all the offenders had escaped with impunity. Opposition to the British government, now that the letters transmitted by Franklin had inflamed the public mind, grew more bold. In the midst of the discontent two ships arrived at Boston with the cargoes of tea which Lord North had allowed the East India Company to export duty free. Anterior to their arrival, meetings had been held and mobs raised, to terrify the consignees into an engagement not to receive the tea, and when they arrived, another meeting of the inhabitants of Boston and all the neighbouring towns was called to prevent its being landed. At this meeting a resolution was passed, asserting among other things that the tea ships were sent for the purpose of enslaving and poisoning all freeborn Americans, and that the tea which came charged with a duty to be paid in America should not be landed, but be sent back in the same bottoms. The consignees offered to store the teas till they could receive further instructions; but this moderate offer was rejected with disdain, and a strong body of Bostonians armed with muskets, rifles, swords, and cutlasses, were sent down to Griffin’s wharf to watch the ships, in order to prevent a single leaf from being put on shore. This was on the 30th of November, and on the 14th of December, two other ships freighted by the East India Company having arrived, another crowded meeting was held at the Old South Meeting-house, whence orders were sent to the captains of the tea vessels to return without delay. The answer received was, that the collector could not give any clearance until the vessels had discharged their cargoes, and, indeed, if the captains had been disposed to return, they could not have complied with the demand, as the governor had ordered that they should not be allowed to pass the forts without a permit signed by himself, and Admiral Montague had sent two ships of war to guard all the passages out of the harbour. The meeting waited for the reply, and when it arrived, a question was put whether those assembled would abide by their former resolutions respecting the tea, which was carried unanimously. A message was then sent to desire the governor to give the ships a permit to depart, and he replied that he could not consistently with his duty to the king give any pass unless the vessels were properly qualified from the custom-house. The meeting was about to consider this reply, when a person disguised like an Indian, began uttering the war-whoop in tones so natural that he might have been taken for a real savage. His yell was succeeded by the cry of “A mob, a mob!” and some, more cautious than the rest, moved that the meeting should be dissolved. This was done, and many of the people ran at once from the old meeting-house to Griffin’s wharf, where they were met by a number of men disguised as Mohawk Indians, and by a still greater number of skippers, sailors, boatmen, and men of colour. In overwhelming force these boarded the ships, split open the tea-chests, and having emptied their contents into the sea, returned, without being discovered, to their homes. The moment of excitement was followed by trembling anxiety. The Bostonians now began to tremble for their charter, their property, and their trade; and, as before, some attempted to throw all the blame upon the conduct of their governor. As for the governor himself, he represented to the ministry at home, that it was out of his power to prevent the destruction of the tea, without yielding to

unreasonable demands, and thereby rendering the authority of government null and void. It is to be regretted that the assembly took part with the mob, and thereby accelerated the fearful consummation of their violent proceedings. As if animated by the popular proceedings they renewed their personal contests with the governor, and even proceeded so far as to vote articles of impeachment against the chief justice, Peter Oliver, for a design of introducing a partial, arbitrary, and corrupt administration of the laws, he having declined to receive the annual grant of the assembly, and accepted a stipend from his majesty. The message conveying this resolution was indignantly rejected by the governor, who disclaimed all power of determining on such cases, and as the house persevered in attempting to force it on him under a different form, he dissolved the assembly.

{A.D. 1774}

MEETING OF PARLIAMENT.

Parliament met on the 13th of January. At that time little was known of the disturbances in America, and the king’s speech represented the state of foreign affairs to be in such a quiescent state, that the legislature would have ample time to attend to the improvement of our domestic concerns, and to the prosecution of measures immediately connected with the revenue and commerce of the kingdom. The deteriorated state of the gold coin was especially mentioned as an object requiring attention. The addresses were voted in both houses with little or no debate.

EARLY MEASURES IN THIS SESSION.

In the early part of this session public attention was excited by the proceedings of the house of commons, respecting a libel on their speaker, which had been published in the Public Advertiser. The house issued an order for Woodfall the printer to attend at the bar, which was obeyed without hesitation, and being interrogated as to the author, he gave the name of the Rev. John Home. Woodfall was then ordered into the custody of the sergeant-at-arms, and Home was then brought before the house. Home inquired whether Woodfall’s declaration was to be taken as evidence, or as the charge against him, and being told that it constituted the charge, he pleaded “Not guilty,” as in an ordinary court. The house was embarrassed; Woodfall was again called in and confronted with Home, but as he was implicated in the guilt of the publication, his evidence was not sufficient to warrant conviction. Three of Woodfall’s printers were next brought before the house; but they failed in proving the accusation, and Home was set at liberty.

The first parliamentary struggle in this session, took place on the ministerial motion for 20,000 seamen, as in the preceding year. The opposition argued that it was absurd to talk of peace and yet keep up such an establishment, and they called upon ministers to state how they had disposed of the supplies voted in the last meeting of parliament for the navy. This motion, however, was carried without a division. On the part of the opposition two motions were made and negatived: the first being that of Alderman Sawbridge for shortening the duration of parliament, and the second, that of Sir George Saville, concerning the Middlesex election, and the

infringement of the rights of electors. Ministers, however, were not so successful in their opposition to a motion made by Sir Edward Stanley, to bring in a bill for rendering Grenville’s Controverted Election Act perpetual. Experience seems to have proved its utility, and though Lord North appeared at the head of the opposition, many of his friends forsook him on this occasion, and the bill was passed by a large majority, and received the royal assent before the end of the session. From this period disputed elections have been tried with the same scrupulousness and solemnity as any other titles: while previous to it, as Dr. Johnson observed, “the nation was insulted with a mock election, and the parliament was filled with spurious representatives.”

THE BOSTONIAN PETITION.

It has been seen that the assembly of Boston had voted a petition to the king for the removal of their governor and deputy governor. This petition, together with attested copies of the letters, were transmitted to Dr. Franklin, the agent for the colony, or house of representatives of Massachusets. These were delivered by Franklin to Lord Dartmouth, who presented them to the king, and his majesty signified his pleasure that they should be laid before the privy council.

In the mean time the affair had been the cause of bloodshed. Mr. Whately, secretary to the treasury, to whom the letters had been originally addressed, had recently died, and a sharp correspondence took place between his brother, a banker in Lombard-street, and Mr. John Temple, lieutenant-governor of New Hampshire: the former wishing to avoid the charge of giving up the documents, and the latter that of purloining them. The dispute ran so high that a duel was the consequence, in which Mr. Whately was dangerously wounded. The event caused great excitement, and Dr. Franklin wrote and published a letter in the Public Advertiser, in which he declared that neither Mr. Whately nor Mr. Temple had any thing to do with the letters, and that both of them were totally ignorant of the transaction. His words are:—“I think it incumbent on me to declare, for the prevention of further mischief, that I alone am the person who obtained and transmitted to Boston the letters in question. Mr. Whately could not communicate them, because they were never in his possession; and for the same reason, they could not have been taken from him by Mr. Temple. They were not of the nature of private letters between friends; they were written by public officers to persons in public stations, on public affairs, and intended to procure public measures; they were, therefore, handed to other public persons, who might be influenced by them to produce those measures; their tendency was to incense the mother country against her colonies, and by the steps recommended to widen the breach, which they effected. The chief caution expressed with regard to privacy was, to keep their contents from the colony agents, who, the writers apprehended, might return them, or copies of them, to America. That apprehension was, it seems, well founded; for the first agent who laid his hands on them thought it his duty to transmit them to his constituents.”

It was on the 29th of January that the subject of the Bostonian petition was brought before the privy council. On that day, Franklin, with Mr. Dunning as council, attended to support the petition, and Mr. Wedderburne, the solicitor-general,

attended as counsel for the governor. The counsel for the Assembly of Boston was first heard, and he endeavoured to substantiate their complaints, by exhibiting the letters which had been published, and drawing an inference from them, that the writers were unworthy of confidence, either from the government or the province of Massachusets. He called for the instant dismissal of an officer so hostile to the rights and liberties of his countrymen. He argued that the man who declared that “there must be an abridgment of English liberty in the colonies,” was justly charged with making wicked and injurious representations, designed to influence the ministry and the nation, and to excite jealousies in the breast of the king against his faithful subjects.

Mr. Dunning was replied to by Mr. Wedderburne, whose naturally sharp tongue was on this occasion rendered still sharper by his friendship for Mr. Whately who was lying between life and death. After reviewing the arguments of the opposite counsel, Wedderburne directed himself to an inculpation of the assembly and people of Massachusets; in the course of which he attacked Dr. Franklin in a strain of bitter invective, on the ground of having violated private confidence in the disclosure of the letters. He observed, “These could not have come to Dr. Franklin by fair means; the writers did not give them to him, nor yet did the deceased correspondent, who from our intimacy, would otherwise have told me of it. Nothing then will acquit Dr. Franklin of the charge of obtaining them by fraudulent or corrupt means, for the most malignant of purposes, unless he stole them from the person who stole them.... I hope, my lords, you will mark and brand the man for the honour of this country, of Europe, and of mankind. Private correspondence has hitherto been held sacred in times of the greatest party rage, not only in politics, but religion;—he has forfeited all the respect of societies and of men. Into what companies will he hereafter go with an unembarrassed face, or the honest intrepidity of virtue? Men will watch him with a jealous eye; they will hide their papers from him, and lock up their escrutoires; he will henceforth esteem it a libel to be called a man of letters; _homo trium literarum_! He not only took away the letters from one brother, but kept himself concealed till he nearly occasioned the murder of the other. It is impossible to read his account, expressive of the coolest and most deliberate malice, without horror.” Wedderburne concluded with this indignant burst of feeling:—“Amidst tranquil events, here is a man who, with the utmost insensibility of remorse, stands up and avows himself the author of all. I can compare him only to Zanga, in Dr. Young’s Revenge:—

‘Know, then, ’twas I. I forged the letter—I disposed the picture—I hated—I despised—and I destroy’

I ask, my lords, whether the revengeful temper attributed to the bloody African, is not surpassed by the coolness and apathy of the wily American?”

It is said that during this celebrated invective the members of the council laughed with exultation; none preserving a decent gravity, except Lord North. On the other hand, Franklin is said to have heard it all with composure, standing erect in one corner of the room, and not suffering the slightest alteration of his countenance to be visible. The words of Wedderburne, however, coupled with the derisive and exulting laugh of the council, sank deep into the soul of Franklin. He appeared in a full dress

of spotted Manchester velvet, and it is said that, when he returned to his lodgings he took off this dress, and vowed he would never wear it again until he should sign the degradation of England and the independence of America. After proceedings against him tended to perpetuate that feeling. Hitherto he had been allowed to retain the profitable place of postmaster general for America, but three days after the meeting of the council, he was dismissed by letter from that office. The report of the council also, on the subject of the petition, tended to confirm him in feelings of hostility toward the British government. It stated “that the petition was founded on resolutions which were formed on false and erroneous allegations: that it was groundless, vexatious, scandalous, and calculated only for the seditious purpose of keeping up a spirit of clamour and discontent in the province: that nothing had appeared to impeach in any degree the honour, integrity, and conduct of the governor or deputy-governor; and that their lordships were humbly of opinion that the said petition ought to be dismissed.” Moreover, the sympathy which Franklin met with from some of the leading members of the opposition, tended still further to embitter the passions which had been roused in the mind of the philosopher. That boastful patriot himself—the great Earl of Chatham—hastened to express his sympathy with Franklin, and his detestation of the treatment he had received from Wedderburne and the government. It is due to the character of Chatham, however, to say that had he been aware of Franklin’s extreme intentions, he would, instead of affording him his sympathy, have joined with Wedderburne in holding him up to public contempt. That great orator, indeed, at all times, whether in office or out of office, whether in favour of the measures of government or banding against them, invariably held that the dependence of the colonies was absolutely and vitally essential, not merely to the honour and greatness and wealth of the mother country, but also to her safety and existence. He had, in truth, asserted that the moment America should be free, wholly independent of, and separated from Great Britain, the sun of England would set for ever. It cannot be, therefore, supposed for one moment, that he would willingly and knowingly have aided in lopping this fair and fruitful branch from the parent tree. In point of fact, Franklin endeavoured, to conceal his extreme views from the public eye; for while in private life, and to bosom friends, he stated his unalterable resolution of procuring the independence of America, he was openly professing to his best advocates, the leaders of the opposition in both houses of parliament, that the wish dearest to his heart—in common with the hearts of all honest Americans—was a continuance of the connexion with his dear old mother country!

{GEORGE III. 1773–1775}

PARLIAMENTARY PROCEEDINGS AGAINST AMERICA.

At length intelligence arrived in England concerning the alarming transactions in America. The news excited strong national resentment, so that when the subject was brought before parliament, ministers had not to encounter any formidable opposition to the measures they proposed in order to meet the case. It was on the 7th of March that Lord North introduced this subject to the house. On that day he delivered a

message to the members from the king, in which a design was intimated of correcting and preventing such disorders, and submitted a vast mass of documents from the governor of Boston, and other persons in authority for their inspection. In reply to this message, a motion was made for an address to the throne, to return thanks for it, and the gracious communication of the papers, with an assurance that they would not fail to exert every means in their power of effectually providing for objects so important to the general welfare as maintaining the due execution of the laws, and securing the just dependence of the colonies upon the crown and parliament of Great Britain. Some few opposed this address, although they admitted that the conduct of the Bostonians and Rhode Islanders was exasperating in the highest degree; but the motion was nevertheless carried without a division. Following up this address, on the 14th of March, Lord North moved for leave to bring in a bill “for the immediate removal of all officers concerned in the collection and management of his majesty’s duties and customs from the town of Boston; and to discontinue the landing and discharging, lading and shipping, of goods, wares, and merchandize at the said town of Boston, or within the harbour thereof.” This bill encountered scarcely more opposition than the address had met with. On its first introduction it was received with general applause, and it was pushed on with such vigour that it passed through both houses within fourteen days, and on the 31st of March it received the royal assent: the trade of Boston was annihilated.

While the Boston Port Bill was before the lords, North, in a committee of the whole house, brought in a bill “for better regulating the government of Massachusets Bay.” The object of this bill was to alter the constitution of that province as it stood upon the charter of William III.; to do away with the popular elections, which decided everything in that colony; to take the executive power out of the hands of the democratic party; and to vest the nomination of the members of the council, of the judges, and of magistrates, including sheriffs, in the crown, and in the king’s governor. In support of this bill, Lord North said, that the province of Massachusets Bay had been turbulent beyond all bearing, and had set an ill example to all the colonies; that an executive power was required in that province, inasmuch as the force of the civil power consisted solely in the _posse comitatus_: that is, in the very people by whom the tumults were excited. He asked if the democratic party exhibits a contempt for the laws, how any governor was to enforce them, if he had not the power either of appointing or removing magistrates? He could now, he said, give no order without the assent of seven members of the popularly elected council; and he urged that it was in vain laws and regulations were made in England, when there were none found to execute them in America. In conclusion, he expressed a hope that the present bill would create an executive power, and give strength and spirit to the civil magistracy; and professed himself open to discussion and a change of opinion, if his views were proved to be erroneous.

This bill encountered more opposition than that of the Boston Port Bill, and it was considerably altered in committee. As it stood when presented anew, after the Easter recess, the council of Massachusets Bay was placed on the same footing as the councils of other colonies: the nomination was vested in the crown., and they were to have no negative voice, or power to appoint, as hitherto, the judicial officers of the

province. Moreover, the mode of choosing juries was altered, and the continual assemblies and town-meetings held in Boston were not to be convened without the consent of the governor, unless for the annual election of certain officers. The bill, as altered, however, encountered much opposition. In support of it Mr. Welbore Ellis asserted that it was the duty of the legislature to alter or take away charters, if they were abused, or found deficient; and he was supported in these views by Mr. Charles Jenkinson and Mr. Dyson, who argued that in this case the house proceeded, not in its judicial, but in its legislative capacity, regulating and supplying deficiencies in charters granted by the crown. The opposition took a different view of the measure, denouncing it as arbitrary and likely to lead to permanent evils. Thus General Conway could see nothing but increased exasperation, misfortune, and ruin from the adoption of such measures; and he, with other members, asked for more time, and demanded that the province should be heard before an act was passed which would deprive its people of their chartered rights. The opposition, also, argued, that the Bostonians and their neighbours had flourished for nearly fourscore years under their democratic charter, and that, therefore, they ought not now to be deprived of it. Some even asked what crime and errors the New Englanders had really been guilty of, as though they had never heard of the outrages which had been committed. In reply to this latter question, Lord North said, with more than his usual warmth, “I will tell you what the Americans have done: they have tarred and feathered the officers and subjects of Great Britain; they have plundered our merchants, burnt our ships, denied all obedience to our laws and authority! Our conduct has been clement and forbearing, but now it is incumbent to take a different course. Whatever may be the consequence, we must risk something, or all is over.” To adopt such a measure as this, however, was clearly risking too much. Governor Pownall, who said that he spoke for the last time on the subject, warned ministers of the more than probable consequences of it, in these terms:—“The measure which you are pursuing will be resisted, not by force or the effect of arms, but by a regular united system. I told this house, four years ago, that the people of America would resist the tax then permitted to remain on them—that they would not oppose power to power, But would become implacable. Have they not been so from that time to this very hour? I tell you again, that they will resist the measures now pursued in a more vigorous way. Committees of correspondence in the different provinces are in constant communication: they do not trust in the conveyance of the post-office; they have set up a constitutional courier, which will quickly grow up to the superseding of your post-office. As soon as intelligence of these affairs reaches them, they will judge it necessary to communicate with each other: it will be found inconvenient and ineffectual to do so by letters. They must confer; they will hold a conference; and to what these committees, thus met in congress, will grow up, I will not say. Should recourse be had to arms, you will hear of other officers than those appointed by your governor Then, as in the late civil wars of this country, it will be of little consequence to dispute who were the aggressors.” Sir Richard Sutton spoke in a similar strain; asserting, that though it was not confessed, the Americans were aiming at total independence, and would never again submit quietly to English laws and regulations of trade.

This debate took place on the second reading of the bill. The third reading occurred on the 2nd of May, when Sir William Meredith insisted that the parliament of Great Britain had an indisputable right to lay duties upon the Americans, and to tax them externally. Mr. Thomas Townshend, also, though equally warm as Sir William Meredith in opposition to ministers on general points, gave this measure his decided support. Though averse to meddling with charters, he said, the evils of town-meetings justified interference, and that the institution of juries was properly altered according to the forms of the mother country. Thurlow, the attorney-general, and Lord North spoke in favour of the bill, likewise, on this occasion, the latter expressing a hope that good consequences might arise from its adoption. It was opposed by Mr. Burke, Mr. Charles Fox, and Colonel Barré, the latter of whom reprobated the violence of both houses. “In the lords,” said he, “the phrase is, ‘We have passed the Rubicon!’—in the commons, ‘Delenda est Carthago!’” But opposition was of no avail. The bill was carried by an overwhelming majority in the lower house; and when it was taken into the upper house, though it was severely criticised, opposed, and denounced by a few lords, most of the peers were in its favour, and it passed into a law.

In order to qualify the severity of the bill for regulating the government of Massachusets, Mr. Rose Fuller, on the 19th of April, moved that the house should, that day se’nnight, resolve itself into a committee for taking into consideration the question of a total repeal of the tea duty. This was opposed by Lord North, who contended that no acts of lenity ought to attend their restrictive measures. He argued, that to repeal at this time would show such wavering and inconsistent policy as would defeat the good effects of that vigorous system which had been too long delayed, and which was now adopted. The expediency of the repeal, however, was ably advocated by Mr. Burke. He contended, that from the period of the repeal of the Stamp Act, the practical right of taxing America ought to have been for ever banished from the minds of all statesmen; and he severely exposed the absurdity of continuing a tax merely for the sake of a preamble to an act of parliament, when five-sixths of the revenue intended to be raised by it had been abandoned. Burke then gave a concise detail of our ministerial and political transactions with America; after which he recommended the repeal of this impost as a measure of policy, and advised the house, if they found any ill effects arising from this concession, then at once to stop short, and to oppose the ancient policy and practice of the empire to innovations on both sides. This, he said, would enable them to stand on great, manly, and sure grounds. As for the distinctions of rights he deprecated all reasonings about them. “Leave the Americans,” he observed, “as they anciently stood; and these distinctions, born of our unhappy contest, will die with it. Be content to bind America by laws of trade. You have always done so; and let this be your reason for continuing to do it. Do not burden them with taxes; for you were not used to do so from the beginning. These are arguments for states and kingdoms: leave the rest to the schools where alone they can be discussed with safety.” The rejection of this advice, he said, would be followed by resistance on the part of the colonies; for if the sovereignty of England and the freedom of America could not be reconciled, the Americans would be sure to cast off sovereignty: no man would be argued into slavery. The opinions which Burke uttered on this occasion were at variance with those expressed on the passing of the

Declaratory Act, and with the act itself. He attempted to reconcile them, however, by the nice distinction of a double power in parliament. He remarked:—“The parliament of Great Britain sits at the head of her extensive empire in two capacities—one as the local legislature of this island, with the executive power as her instrument of action; the other and nobler capacity is what I call her imperial character, by which she guides and controls all the inferior and provincial legislatures.” In this, he maintained, her power was boundless; and having entered at large on its utility, and the manner in which it had been exercised, he thus concluded:—“It is agreed that a revenue is not to be had from America: if, then, we lose the profit, let us at least get rid of the odium.” No arguments, however powerful, were of avail—the motion was negatived.

A third measure of restriction introduced into the commons by ministers was “A Bill for the impartial Administration of Justice in the Cases of Persons questioned for any Acts done by them in the Execution of the Laws, as for the Suppression of Riots and Tumults in the Province of Massachusets Bay, in New England.” By this bill the governor, if he found that a person indicted for murder, or any other capital offence, incurred in suppressing such tumults, was not likely to obtain an impartial trial, might send the person so indicted to another colony or to Great Britain, to be fairly tried there. This bill was to be limited to four years, and in support of it Lord North argued, that it was absolutely necessary to give effect to the other coercive measures; that it was in vain to appoint a magistracy that would act if none could be found bold enough to act with them and execute their orders; that these orders would probably be resisted by force; and this force would necessitate force on the side of government, and probably occasion the shedding of blood. He asked, what officers would risk this event if the rioters themselves, or their abettors, were afterwards to sit as their judges? And he alleged, that a precedent was to be found in our own laws, in the case of smuggling, it being customary to remove the trial of smugglers to another county: the Scotch rebels were also, he said, in 1745, tried in England. North next urged, that particular privileges ought to give way on some occasions, and that when the public safety of our own country was endangered even the _Habeas Corpus_ had been suspended. The bill, he remarked, was not meant to screen guilt, but to protect innocence. The Americans, he said, must be taught that we will no longer sit quietly under their insults; and that, being roused, our measures, though free from cruelty and revenge, would be as efficacious as they were necessary. This was the last act, he stated, that he had to propose in order to perfect his plan, and that the rest would depend on the vigilance of his majesty’s servants employed in America. In conclusion, he mentioned that four regiments, usually stationed in different parts of North America, had all been ordered to Boston; and that General Gage was appointed governor and commander-in-chief.

This measure was opposed with greater vehemence and better arguments than those which had preceded it. Colonel Barré, who had given a partial support to the Boston Port Bill, denounced it as unprecedented, unwarranted, and as fraught with misery and oppression to America, and with danger to this country. It stigmatised a whole people, he remarked, as persecutors of innocence, and as men incapable of doing justice, whereas the very reverse was the fact. As a proof of the impartiality of

Bostonian courts and juries, he instanced the acquittal of Captain Preston and the soldiers who had killed some persons in a riot; and he denied that the instances of trials for smuggling and for treason, adduced by Lord North, were at all applicable to the present case. He asked, what reliance the Americans could have on the impartiality of juries in other provinces, or in England, and dwelt with great force on the danger of screening the soldiery, whose passions were already inflamed against the people of Massachusets Bay. “A soldier,” he observed, “feels himself so much above the rest of mankind, that the strict hand of the civil power is necessary to check and restrain the haughtiness of disposition which such superiority inspires. What constant care is taken in this country to remind the military that they are under the restraint of civil power! In America their superiority is felt still more. Remove the check of the law, as this bill proposes, and what insolence, what outrage, may you not expect! Every passion that is pernicious to society will be let loose on a people unaccustomed to licentiousness and intemperance. The colonists, who have been long complaining of oppression, will see in the soldiery those who are to enforce it on them; while the military, strongly prepossessed against the people as rebellious, unawed by the civil power, and actuated by that arbitrary spirit which prevails in the best troops, will commit violences that might rouse the tamest people to resistance, and which the vigilance of their officers cannot effectually restrain. The inevitable consequences will be open rebellion, which you profess by this act to obviate. I have been bred a soldier; I have served long; I respect the profession, and live in the strictest habits of friendship with many officers; but no country gentleman in this house looks on the army with a more jealous eye, or would more strenuously resist the setting them above the control of civil power. No man is to be trusted in such a situation. It is not the fault of the soldier, but the vice of human nature, which, unbridled by law, becomes insolent and licentious, wantonly violating the peace of society, and trampling upon the rights of human kind.” In conclusion, Barré warned ministers of the results of their restrictive measures; entreating them, likewise, not to urge them on to rebellion. In the course of his speech Lord North had said that he had had the advantage of being aided by the ablest lawyers; and when Colonel Barré had concluded his harangue Mr. Wedderburne, the solicitor-general, arose, and explained and defended the principles of the bill, which, he observed, was limited as to time, and intended solely to procure a fair trial for the imputed offences of all who might be concerned or engaged to act under government.

The motion for leave to bring in this bill was passed without a division, and it was introduced on the 21st of April, on which occasion another stormy debate occurred. Alderman Sawbridge contended, that it was a ridiculous and cruel measure—a measure designed to enslave the Americans, by a minister who would, if opportunity was afforded him, enslave England. He added:—“But I sincerely hope the Americans will not admit of the execution of any of those destructive bills, but nobly refuse them all. If they do not, they are the most abject slaves upon the face of the earth, and nothing which the minister can do is base enough for them.” Lord North, in reply, calmly disclaimed any intention of enslaving America, and declared that the assertion was about as true as another report, circulated in some quarters, which stated that the colonists had seen their error, and were willing to make reparation to the East

India Company for the tea they had destroyed. Instead of making reparation, he added, letters had been recently received which conveyed intelligence of renewed acts of violence. In the course of the debate one member uttered these remarkable words:—“I will now take my leave of the whole plan: you will commence your ruin from this day. I am sorry to say, that not only the house has fallen into this error, but the people approve of the measure. The people, I am sorry to say it, are misled. But a short time will prove the evil tendency of this bill. If ever there was a nation running headlong to its ruin it is this.” The people were, in fact, as violently excited against the Americans, and the Bostonians in particular, as the ministers themselves, which doubtless had the effect of encouraging them in their measures. As a dissolution of parliament was near at hand, this may have caused the absence of many members; for it is a remarkable circumstance, that during the debates on these momentous questions there never was a full house. On the third reading, indeed, only one hundred and fifty-one members were present—one hundred and twenty-seven out of which number voted for the measure.

In the house of lords the bill was opposed in the same manner, and to a similar degree as in the commons. One of the most striking arguments against the measure was uttered by the Marquess of Rockingham. After reviewing ministerial transactions relative to America, since the repeal of the Stamp Act, and denouncing the tea duty as an uncommercial and unproductive claim, retained only as a bone of contention, he remarked:—“If officers were men of honour and sensibility, their situation would be worse under the protection of such a law than without it, as no acquittal could be honourable where the prosecutor had not the usual means of securing a fair trial.” The bill, however, passed by a large majority—eight peers signing a strong protest against it, in which it was designated as “a virtual indemnity for murder.”

During these debates the Earl of Chatham had been absent from indisposition. An opportunity, however, was afforded him of uttering his sentiments concerning the measure adopted towards America, on the 27th of May, in a discussion on a bill “for the quartering and better regulating the troops in the colonies.” He had long been complaining of the gout and other infirmities; but on this night, which was the third reading of the bill, he made a very long speech. He commenced by asserting, that the whole history of the Americans, their descent, and the character and disposition which they inherited from their English ancestors, all forbade the thought that they would ever submit to slavish and tyrannical principles; for as was the mother, so were her offspring. He admitted that the conduct of the Americans, and especially the Bostonians, was unwarrantable; but he denied that the means adopted to bring them back to a sense of their duty were either wise or just. Against the blocking up the harbour of Boston he inveighed most bitterly, assuming in the face of all fact, that it was “some guilty profligates” who had been concerned in destroying our goods, and not the main body of the people. He assumed, also, what was notoriously untrue, that the colonies had no thought of prosecuting the quarrel; asserting, that their gratitude was full to overflowing for the repeal of the Stamp Act, and that it was the tea tax alone which had goaded them on to insubordination and rebellion. Forgetting, moreover, that his own Declaratory Act had inflamed the passions of the colonists after the repeal of the Stamp Act, he charged ministers with having purposely

irritated them into their late outrages. Finally, although it is clear that Chatham, as a minister, would never have granted the objects which the American leaders required of the government, he recommended the substitution of kindness for severity. He remarked:—“Proceed like a kind and affectionate parent towards a child whom he tenderly loves; and, instead of these harsh and severe proceedings, pass an amnesty on all their youthful errors; clasp them once more in your fond and affectionate arms, and I will venture to affirm that you will find them children worthy of their sire. But should their turbulence exist after your proffered terms of forgiveness, I, my lords, will be among the foremost to move for such measures as will effectually prevent a relapse, and make them feel what it is to provoke a fond and forgiving parent.” It is manifest, however, that the children had already resolved to run all risks in discarding allegiance to their parent, and that they could never be bound to their duty by the law of kindness. So the majority of the peers whom Chatham addressed seemed to think, for the bill he was opposing passed.

BILL FOR THE ADMINISTRATION OF CANADA.

Towards the close of this session a bill was brought into the house of lords, “for making more effectual provision for the government of the province of Quebec, in North America.” The main objects of this bill was to ascertain the limits of that province; to form a legislative council for all its affairs, except taxation, which council should be appointed and be removable by the crown, and in which his majesty’s Canadian Roman Catholic subjects should have a place; to establish the old French laws, to which the Canadians had been accustomed, including trial without jury, in all civil cases, and the English laws with trial by jury in all criminal cases; and to secure to the Roman Catholics those rights which the articles of capitulation had allowed—that is, the legal enjoyments of their lands and of their tithes, in their own community, or from all who professed their doctrines. This bill passed through the lords without difficulty; but in the commons it met with a storm of opposition. On the second reading, which took place on the 20th of May, Mr. Thomas Townshend, junior, asked why the affairs of Canada had been so long postponed, and why the country, from the time of its conquest, had been left a prey to anarchy and confusion? The bill proposed to enlarge the boundaries of the province, so as to comprehend the whole country lying between New England, New York, and Pennsylvania, to the Ohio and eastern bank of the Mississippi; and northward, to the southern boundary of the territory granted to the merchant adventurers of England trading to Hudson’s Bay. Of this Townshend complained, and he said that it was the general opinion, that ministers intended to make all this vast tract of country an essentially French colony, as the population was almost entirely French, and the religion, laws, &c., that of France—the only exception being that they had at their head a subject of Great Britain as their governor. This, he opined, would one day cause a revolution, and would tend to re-establish the dominion of France in that country. As for the legislative council he deemed it as proposed the very worst kind of government ministers could have invented. He remarked:—“If it is not the proper time to give to Canada an assembly like those which exist in our other American colonies, it is better to let the governor be absolute—better to let him be without a council. He will then be responsible. But what have we here? Seventeen or eighteen gentlemen, who may

be removed or suspended by the governor; so that, if an act of oppression should come from the crown, these may be a screen for the governor to excuse and justify him." Townshend next condemned the countenance given by the bill to the church of Rome, and then put a series of stringent questions to the ministers concerning the administration of the French laws in Canada. Were they, he asked, to be administered by Canadians or French lawyers? and were English gentlemen who had bought estates in that country to be subject to them? It would be better, he conceived, to show the French Canadians, by degrees, the advantages of English law, and to gradually mix it with their own. In reply, Lord North excused the delay which had occurred in bringing this measure forward, on the ground that he had been seeking the fullest information before he legislated. He did not pretend that the bill was perfect, but he considered that it was the best that could have been devised, both for Great Britain and the colony, under all circumstances. North then justified the enlargement of the limits of the colony, and the concessions which the bill made to the Roman Catholics. He observed:—"The honourable gentleman dislikes the omitting the assembly; but the assembly cannot be granted, seeing that it must be composed of Canadian Roman Catholic subjects, for otherwise it would be oppressive. On the other hand, as the bulk of the inhabitants are Roman Catholics, to subject them to an assembly, composed of a few British Protestant subjects would be a great hardship. Being, therefore, under the necessity of not appointing an assembly, this is the only legislature you can give the Canadians, and it is the one under which they live at present. The governor and council really have been the legislature ever since our conquest, only now it is put under some regulation." As regarded the question of law, he reminded the house, that the most material part, that of the criminal law, was to be English, and that if the French civil law should be found incompatible with the wishes of the colony, the governor and council would have power to alter it. Returning to the question of religion, North remarked, that the free exercise of it was confirmed to the Canadians by treaty, and that the laws of Great Britain permitted the full and free exercise of any religion different from that of the Church of England, in any and all of the colonies. It was another question, he added, whether it is convenient to continue or abolish the bishop's jurisdiction; though, at the same time, he asserted, no bishop could be there under papal authority, as such is expressly forbidden in the act of supremacy. North concluded by asserting, that there was no intention of substituting French lawyers and judges for the English who now administered the laws in that country. Townshend rejoined; complaining bitterly of carrying the system of French law into those parts of the country where it had not previously existed, and where there were some thousands of British subjects. Having, at the end of the war, promised the Canadians English law, he conceived that injustice would be done them by giving them that of France. Mr. Townshend was followed by Mr. Dunning, who called the measure one of the most extensive, as well as the most pernicious, ever offered to parliament. He particularly inveighed against the concessions made to the Roman Catholics, though he admitted that the free exercise of their religion was promised to the Canadians by the treaty of peace. This bill, however, he contended, gave them more than this: it established the Roman Catholic faith, whereas Protestantism was merely tolerated, and its clergy left for a maintenance to the discretion of the crown. He observed:—"Different gentlemen may

entertain different opinions: my opinion of toleration is, that nothing can be more impolitic than to give establishment to that religion which is not the religion of our own country. Among the circumstances that unite countries, or divide countries, a difference in religion has ever been thought to be the principal and leading one. The Catholic religion unites France, but divides England. Without going further into the subject, it suffices me to say, that the religion of England seems to be preferable to the religion of France, if your object is to make this an English colony. When one sees that the Roman Catholic religion is established by law, and that the same law does not establish the Protestant religion, the people are, of course, at liberty to choose which they like. Are we, then, to establish the Roman Catholic religion, and tolerate the Protestant religion?" Mr. Dunning next insisted, that the civil law, as well as the criminal law of England, should be preserved, and that the institution of juries, however unpalatable it might prove to the Canadians, ought not to be dispensed with. He concluded by showing the unfitness of this political state to the habits and character of English settlers, and that there was an insurmountable difficulty in reconciling the feelings and habits of the small minority with the great French majority. The bill was next defended warmly in all its points by Attorney-general Thurlow. The definitive treaty of peace, he said, was made in favour of property in Canada; in favour of the Catholic religion, and in favour of the several religious orders, under which obligations it was that the crown of this country was called upon to frame a constitution for the colony. As for the importing and enforcing English laws in a country already settled, and habitually governed by other laws, he considered that it would be an act of the most absurd and cruel tyranny ever practised by a conquering nation over a conquered country—an act which would be unprecedented in the world's history. He thought it would be equally monstrous to strip the Roman Catholic clergy of their rights and dues, and to set up an Anglican establishment where the followers of our church were but few in number. To assimilate the constitution of the province to that of England he deemed neither practicable nor desirable, and asserted, that the constitution now proposed was on the side of liberality, and the best that could be given under existing circumstances. He concluded thus:—"If any English resort to that country, they do not carry with them the laws that are to prevail the moment they get there. It would be just as wise to say, if an Englishman goes to Guernsey, the laws of the city of London are carried over with him. To take the laws as they stand in Canada has been allowed—to act according to those laws, and to be bound by their coercion, is a natural consequence. In this view I think the bill has done nothing obnoxious. I have no speculative opinions. I would have consulted the French customs to a much greater extent, if it had been for me to have framed the law." Colonel Barré, Lord John Cavendish, and Sergeant Glynn next warmly opposed the bill, and they were followed by the Solicitor-general, Wedderburne, who defended it with greater ability and more knowledge of history than had been displayed by any of the preceding speakers. Sergeant Glynn had asserted, that in conquering the Irish and Welsh our laws had been imposed upon them; but Wedderburne clearly showed that this was only effected in the lapse of ages; English laws not being introduced into Ireland till the time of James I., and in Wales till the time of Henry VIII. He argued, that it was the custom of all conquering states to leave the conquered countries in the possession of

their own laws. He remarked:—“Not only are there instances of great states not considering themselves warranted, by right of conquest, in forcing their laws upon the conquered, but even countries that have scarcely any trace of public laws and general systems, have had that good policy with regard to the countries they have made themselves masters of. The very Mussulman, the Ottoman, the Turks—the worst of all conquerors—in the countries they subdued left the people in possession of their municipal laws. This is the case in Wallachia; this is the case in Moldavia; this is the case with all the great settlements in which the Turks have pushed their arms.” Wedderburne next showed the difference existing in the law of succession in England and Canada, and argued, that it would be hard upon all younger sons in that province to establish the right of primogeniture on a sudden. He concluded by representing the people of Canada as having, for several years past, been annually calling upon government to let them know what really was to be the law of the province. Charles Fox argued, that as the bill allowed the clergy of the Church of Rome their dues and rights, which dues he understood to mean the receiving of tithes, which were a tax upon the Canadians, it was to all intents and purposes a money bill. This objection he conceived fatal to the bill, inasmuch as the commons never permitted bills of that nature to originate in the lords. Dunning now took up the same line of argument, and as Lord North denied the conclusion to which these members had suddenly come, the speaker was appealed to for his opinion. The speaker replied, that he had seen bills that had originated in the lords that, he thought, ought not to have been brought into the lower house, but that he never presumed to judge upon them himself, and in this in stance it would be very unbecoming in him to do so, therefore’ he would leave it for the house to determine as was thought right. The second reading was carried by a majority of one hundred and five, against twenty-nine; and on the 31st of May, when the house went into committee on the bill, several amendments were negatived, with equally large majorities. On this occasion petitions were presented against the measure from Thomas Penn, on behalf of himself and of John Penn, Esq., true and absolute proprietors of Pennsylvania, and the counties of Newcastle, Kent, and Sussex, in Delaware, praying that the territory granted by King Charles II. to their father and grandfather might not be encroached upon by any extension of the frontiers of Canada. Ministers denied that it was ever intended to entrench upon other colonies, and the petition was ordered to lie upon the table; leave, also, being given to the petitioners to be heard by counsel if they thought proper. At the same time a petition was presented from merchants of the city of London, trading to the province of Quebec, praying for the preservation or establishment of the English civil law, in all matters of controversy relative to property and civil rights, with trial by jury, &c. This petition was ordered to be referred to the committee on the bill, and the petitioners were also ordered to be heard by themselves or counsel. Counsel were heard, and witnesses examined, which occupied the attention of the house for more than a week; but on the 13th of June the bill passed the commons as it originally stood—a few boundary amendments, made in committee, alone excepted. The bill thus passed was sent back to the lords for their concurrence in the amendments, on which occasion Chatham rose to reprobate the whole spirit of the bill. It tended, he said, to establish the worst of despotisms, and denounced it as a most cruel, oppressive, and odious measure—a measure which destroyed the very roots of justice

and good principle. He called the bill “a child of inordinate power,” and asked, if any on the bench of bishops would hold it out for baptism? He invoked the bishops to resist a law which would spread the Roman Catholic tenets over so vast a continent, and asserted, that parliament had no more right to alter the oath of supremacy than to repeal the great charter, or the bill of rights. The dangerous innovations of the bill, he declared, were at utter variance with all the safeguards and barriers against the return of popery and of popish influence, so wisely provided against by all oaths and offices of trust, from the constable up to the members of both houses, and even to the sovereign in his coronation oath. Chatham concluded by expressing his fears that such a measure might shake the confidence of his majesty’s Protestant subjects in England and Ireland, and totally alienate the hearts of all his American subjects. The bill, however, passed by twenty-six to seven, and received the royal assent on the 22nd of June; the corporation of London having ineffectually petitioned the king to refuse it.

PROROGATION OF PARLIAMENT.

On the same day that his majesty gave his assent to the above-mentioned bill, he prorogued parliament. In his speech he expressed his approval of that bill, conceiving it likely to produce the best effect in quieting the minds, and promoting the happiness of the Canadians. His majesty also applauded the temper and firmness, and general concurrence of parliament in the measures they had adopted with reference to Massachusets Bay; at the same time assuring them that nothing depending on him should be wanting to render those measures effectual. At the close of this session, Lord North, notwithstanding his many embarrassments, appeared to be more firmly seated in office than ever. Even Chatham himself was obliged to confess his success, efficiency, and the solidity of his position; asserting that no minister in any age ever held a better tenure. It was necessary that North should be well supported, for he had difficulties before him which would soon have compelled him to resign, and to seek solace in the shades of retirement, had not the voice of parliament been with him.

PROCEEDINGS AT BOSTON.

During the deliberations of the British parliament, the Bostonians and people of Massachusets Bay had continued their outrages. The assembly and populace alike showed their utter aversion to the British government in language and actions which could not be misunderstood. The mob destroyed every cargo of tea that arrived in the port, and the assembly showed its hostility by petitioning for the removal of the chief-justice, Peter Oliver, Esq., because he had taken his majesty’s grant. The house further resolved to impeach the chief-justice in their own name, and in the name of all the inhabitants of the province; and when the governor denounced their proceedings as unconstitutional, they drew up articles according to this resolution, charging him with high crimes and misdemeanors. The governor, however, refused to take any step in the matter, and this only tended to exasperate them still more. At this moment, indeed, some of the leaders, at the head of whom was Mr. Samuel Adams, were publicly proclaiming that America must and should become independent of Great Britain. Their sentiments were also made known by their unbounded admiration of

Benjamin Franklin. His name was mentioned everywhere with enthusiasm, and before their dissolution the assembly resolved to continue him their agent in England, although the governor refused to ratify the appointment, or to sanction their act for paying him his salary.

Among the ministerial arrangements was the substitution of General Gage in the room of Hutchinson as governor. General Gage landed on the wharf on the 13th of May, with part of his family and suite, and was warmly welcomed by the council, magistrates, and others, and afterwards entertained at a public dinner. On the other hand, the mob spent their impotent rage on Hutchinson by burning him in effigy. The reception which Gage met with on landing seemed to augur well for his administration, and his prospect seemed the more cheering because he was united to an American lady, and from long residence in the colony, had made many friends. But there was a strong under-current at work which threatened to sweep away all the authority which any governor might possess however popular he might be as a man. And this was made more impetuous at this time by the intelligence which arrived concerning the Boston Port Bill. This intelligence was received a few days before General Gage arrived, and although the Bostonians gave him a hearty welcome, they soon displayed what feelings they possessed upon the subject. On the very next day after they had given him this welcome, a numerous town meeting took the bill into consideration, and resolved, “That it is the opinion of this town, that, if the other colonies come into a joint resolution to stop all importation from, and exportation to Great Britain, and every part of the West Indies, till the act be repealed, the same will prove the salvation of North America and her liberties; and that the impolicy, injustice, inhumanity, and cruelty of the act exceed all our powers of expression: we, therefore, leave it to the just censure of others, and appeal to God and the world.” In order to spread disaffection, the act was printed and widely circulated throughout the colonies. Nor were the presses of Boston alone engaged in this work. Other colonies had thousands of copies struck off, and in some the copy of the act was accompanied with comments, and with a black border, while the vendors cried it about under the title of “A barbarous, cruel, bloody, and inhuman murder.” In some places it was burned with great solemnity; in others, as at Philadelphia, subscriptions were set on foot for the relief of those Bostonians who should be deprived of the means of subsistence by the operations of the act; while in Virginia the assembly which was then sitting, adopted a proposal that the first day of June, on which the Post Bill was to commence, should be a day of fasting, humiliation, and prayer, to implore heaven to avert the evils of civil war, to inspire the Americans with firmness in support of their rights, and to turn the hearts of king and parliament to moderation and justice. For this vote, Lord Dunmore, the governor of the province of Virginia, dissolved the assembly, and the members then repaired to a tavern, where they agreed to articles of association, in which they pronounced the Boston Port Bill to be the result of a system having for its object the reduction of the inhabitants of British America to slavery. At this meeting it was declared that tea ought not to be used by any well-wisher to constitutional liberty; and that from the course pursued by the East India Company in favour of arbitrary taxation, the people ought not to purchase any of their commodities, except saltpetre and spices, until their grievances should be

redressed. It was also declared that an attack on one colony was an attack upon all, and that it should be resisted by their united councils. Acting upon this opinion, which was by no means logical, they recommended to the committee of correspondence to communicate with all the other committees, “on the expediency of appointing deputies from the several colonies of British America, to meet in general congress, at such place, annually, as should be thought most convenient, to deliberate on the measures required by their common interests.” Finally, this meeting of the dissolved assembly of Virginia, agreed that the members who should be elected under the new writs then issuing, should meet in convention at Williamsburgh, on the first of August, for the purpose of appointing delegates to sit in congress. This was a monster stride in the march of revolution, and it was easy to foresee its ultimate and awful consequences.

The first of June was not only observed as a day of fasting and humiliation in Virginia, but also at Philadelphia, Boston, and other places. Shops were closed, and the church-bells tolled dolefully; but whether prayer was offered in sincerity and truth, and in calm devotion, demands a doubt; for when men’s passions are inflamed, there can be no fitness for acts of piety. In the mean time the assembly of Massachusets Bay met at Boston, on the 25th of May, for the last time. On that day, General Gage laid before them some common business of the province, and then announced the painful necessity he was under of removing them and all public offices to Salem, by the first of June, in conformity with the recent acts of parliament. He adjourned them to the 7th of June, then to meet at Salem, and on that day they reassembled at the place appointed, and named a committee to consider and report the state of the province. Some of the committee named were for pursuing mild and conciliatory measures, and seeing this, Mr. Samuel Adams conferred with Mr. Warren on the necessity of obtaining a better display of spirit. Warren engaged to keep the committee in play, while Adams should be secretly engaged in winning over members to their party. In a few days Adams succeeded in gaining over and concerting measures with more than thirty members, and it was then resolved to proceed at once to business. On the 17th of May they ordered the doors to be locked, and that no one should be permitted to go in or out. They hoped by this plan to keep all friends of government from giving any information concerning their councils, and to finish their business before the governor could interfere with a prorogation or dissolution. One member favourable to government, however, contrived to get out, and to give information of what was doing within. The governor sent his secretary to dissolve them, but he was refused admittance, and he read the proclamation of dissolution upon the stairs leading to the chamber in the hearing of several members, who, like himself, could not obtain admittance. By this time, however, the committee had done all they wanted to do: they had appointed a committee to meet other provincial committees on the 1st of September, at Philadelphia; had voted £500 for its use; had chosen a treasurer; and having no money in hand, had recommended the towns and districts of the province to raise the sum by equitable proportions, according to the last provincial tax. This was a gross insult to the governor, and the committee exulted in having had the opportunity of offering it. Their feelings of triumph, however, do no honour to human nature, since that triumph, such as it was,

was obtained by the paltry artifice of obtaining possession of the house to the exclusion of all such members as would have voted against the measure they had proposed and carried.

On the 1st of June, exactly as the clock struck twelve, the custom-house of Boston was shut up, and all lawful business ceased in its port. Its trade was nominally transferred to Salem; but the spirit of rivalry which formerly distinguished American merchants seemed now to be wholly lost in sympathy. No one discovered the slightest inclination to profit by the distress of the refractory town of Boston. The merchants and freeholders of Salem, indeed, presented an address to General Gage, censuring the measures that had been adopted, commiserating the people of Boston, and declining to derive any advantage offered them by the Boston Port Bill. Nature, they said, by the formation of their harbour, forbade their becoming rivals with that convenient mart, and were it otherwise they must be dead to every idea of justice, and lost to all feelings of humanity, if they could indulge one thought of acquiring wealth, and building up their fortunes upon the ruin of their suffering neighbours. These certainly were sentiments honourable to humanity, but unfortunately they were coupled with others of a different character. The petitioners repeated the old saying, which was now become notoriously false, that they still ardently wished to preserve their connexion with the British empire: and yet the people of Salem falsified their assertion on the very next day after it was made, by joining a general association, which by this time had been got up by many of the committees of correspondence, and which was called “a solemn league and covenant,” after the famous bond of their Puritan forefathers. The nature of this league may be seen from the document which all its members signed. It declared that the compact had been entered into as the only means of avoiding the horrors of slavery, or the carnage and desolation of civil war; that those who subscribed to it covenanted in the presence of God to suspend all commercial intercourse with Great Britain till the Boston Port Bill should be restored; and that they would have no dealings with persons who would not sign it, or should afterwards violate it, but would publish their names as enemies to their country, and as men excommunicated or cut off from all social intercourse. This league spread rapidly through all the states; thousands joined it of their own free will, and others were impelled to subscribe to it through fear. In most places, indeed, it was conceived more dangerous to oppose the popular will, than to risk a war with Great Britain. And it was in vain that the governor sought to stem the onward progress of the tide of revolution. He issued a proclamation, forbidding such unlawful and traitorous combinations, and warned the people against countenancing them; but his orders were disregarded, and his very power questioned. In Boston all became sullen and threatening, and General Gage at length deemed it advisable to take means more efficacious than proclamations in repressing tumult. A detachment of artillery, with some regiments of infantry were ordered to encamp near Boston, and these were soon reinforced by fresh troops from Great Britain and Ireland. But it was soon found that the troops could not be depended upon:—bought by gills of ardent spirits and promises of reward, many, and especially the raw recruits, deserted their ranks; and General Gage next placed a guard on the Isthmus, called Boston-neck, which joins the peninsula whereon the town is built to the main land. This movement,

like all the other movements made by the officers of government, was misrepresented, and hastened on the crisis. A cry was raised and a report spread that the governor intended to cut off all communications, and compel the town to submit to terms. The exciting cry produced the effect that was wished far and near. Even those provinces which had hitherto been slow to join the Bostonians in their hostility towards government, now earnestly exhorted them to brave their supposed doom, as the eye of all America was upon them; and the hands of all the Americans ready to be stretched forth for their deliverance.

In conformity to the bill for regulating the government of Massachusets Bay, General Gage reorganised the Massachusets council. Commissions arrived in August for the new council, and thirty-six were appointed, but twelve out of that number refused to accept office; and even those who did accept office, were soon glad, for the most part, to throw up their commissions, from the odium which they had incurred and the threats by which they were intimidated. General Gage, however, issued writs for convening an assembly in October. But order and law were now out of the question in Boston. The juries would not serve under the new judges, and the very officers refused, from disaffection or fear, to summon them. The colonists had now, in fact, begun to arm, to collect warlike stores, and to train the youth to military exercises. Nothing was to be seen or heard of except the purchasing of arms and ammunition, the casting of balls, and the making of all those preparations which testified immediate and determined resistance. Under these circumstances, General Gage fortified Boston-neck, and seized and removed to head-quarters all the gunpowder and military stores that were deposited at Charlestown, Cambridge, and other places within his province. The people now rose in arms, and threatened to attack the troops. Several thousands marched from all quarters for this purpose, and though they did not come to blows, they threw every possible obstruction in the way of those employed in constructing the works on Boston-neck, burning the materials by night, sinking the boats laden with bricks, and overturning the trucks laden with timber. The governor saw clearly that scenes of bloodshed were at hand, and though thus braved, he mercifully forbore to commence them.

In the mean time the committees of correspondence in order to fan the flames of sedition into one universal conflagration, had been spreading abroad rumours of massacres, and of attacks on Boston both by land and sea. It was in this state of affairs that a meeting of delegates from all the neighbouring towns was called, and which was held, in spite of the governor’s proclamation. This meeting passed resolutions more decidedly hostile to the British government than any previously promulgated. They called the late acts of parliament gross infractions of civil and religious liberty, and wicked attempts to establish despotism, which ought to be resisted; they resolved to indemnify all officers who should refuse to execute any process issued by the judges appointed by the crown; they declared every member of the new council an enemy to his country; they condemned the plan of fortifying Boston-neck; they denounced the late act establishing the Roman Catholic religion in Canada, as dangerous alike to the Protestant religion, and to the rights and liberties of all America; they recommended a total suspension of commercial intercourse with Great Britain, the encouragement of domestic manufactures, the appointment of a

provincial congress, and the exercise of the people in arms; they advised collectors of taxes to retain the money in their own hands until the civil government of the province should be placed on a constitutional basis, or a provincial congress should direct its application; and while they exhorted the people to abstain from riots, they expressed their determination to resist the measures of government to the utmost. Their resolutions concluded thus:—“Should our enemies by any sudden manoeuvre, render it necessary for us to ask aid of our brethren in the country, some one of the committee of correspondence, or a select man from the town where hostilities shall commence or be expected, or from the town adjoining, shall despatch couriers with written messages to the select men, or committees of correspondence in the vicinity, who shall send others to committees more remote, until sufficient assistance be obtained: the expense of couriers to be defrayed by the county, until otherwise ordered by the provincial assembly.” The meeting also drew up a petition of remonstrance to the governor, respecting the fortification of Boston-neck, in which they plainly stated that although they had no inclination to commence hostilities, they were resolved, notwithstanding, to resist the late acts of the British parliament at all hazards. Gage replied, that it was his duty to preserve the peace, and to erect such works as should protect his soldiers from surprise: at the same time he assured them that his artillery should not be employed unless hostile proceedings on their part rendered it necessary.

By this time the people of Virginia had taken one of the front ranks in the march of revolution and independence. On the 1st of August, Jefferson and other members of the convention met as appointed, to agree as to instructions for the delegates to be sent to the approaching congress. Jefferson had drawn up a violent paper, but falling sick, it was presented by Peyton Randolph. The sum and substance of this paper was, in fact, that the Virginians should claim an absolute independence and sovereignty. The leap, however, which Jefferson proposed to take was far too long for the mass of his fellow-citizens as yet to take; but the document was deemed worthy of being printed, and it was published under the title of “A summary View of the Rights of British America.” The members of this convention, however, took a leap which did not fall far short of that which Jefferson proposed. The instructions they prepared, at least, made it manifest unto all men, that, although they professed loyalty to the sovereign, their aim was to undermine his throne; or, in other words, to obtain independence. They averred their allegiance to King George, declared that they sincerely approved of a constitutional connexion with their mother country, and even professed a willingness to submit to reasonable regulations and restrictions on their commerce—but this was only a preamble to sentiments teeming with rebellion and hostility to the king whom they professed to obey, and the country with which they asserted they still wished to be connected. In this section of their instructions the Virginians instructed their deputies at congress to co-operate cordially with Massachusets Bay and the other colonies; declared that the proclamation issued by General Gage was alarming, and illegal, and such as would justify resistance and reprisals if attempted to be carried into effect; agreed to send speedy and liberal relief to the Bostonians, and to abide by such alterations in their present articles as congress might recommend and the delegates of Virginia assent to; and bound

themselves not to export any tobacco after the 10th of August, and in lieu of its cultivation to encourage manufactures; to deal with no merchants who raised the price of articles during the present crisis, and to require the county committees to publish the name of those who would not conform to their regulations. The convention finished by choosing the delegates who were to represent them in congress.

This congress met, as appointed, at Philadelphia, on the 4th of September. On their meeting, all the provinces from Massachusets to South Carolina, with the single exception of North Carolina, were found to be represented, and even delegates from that province arrived on a later day. The delegates met on the following day at Carpenters'-hall, chose Payton Randolph president, and organised themselves into a deliberate assembly. At the commencement, although there were several delegates from some of the provinces, it was agreed that each state should have only one distinct vote. They then proceeded to business. At first they agreed upon a declaration of rights to which they were entitled, they said, by the laws of nature, the principles of the British constitution, and their several charters. Their next step was to concoct a non-importation, non-consumption, and non-exportation association, which was not to be infringed by any American citizen. This was followed by a series of solemn addresses; one to the king, expressing loyalty and affection; one to the people of Great Britain, showing how barbarously and tyrannically they had been treated by a corrupt administration, etc.; and one to the French people of Quebec, inviting them to make common cause with them, and urging them to take up arms against the English, who had only recently conquered Canada. Their province was only wanting, they said, to complete the bright and strong chain of union! The congress also sent letters to the colonists of Georgia, East and West Florida, Nova Scotia, and Newfoundland, exhorting them to shake off their dependence on their mother country, and to join them in their contest. They also sent a remonstrance to General Gage, against his military proceedings, which bore, they said, a hostile appearance unwarranted by the tyrannical acts of parliament: forgetting that it was the conduct of the Bostonians alone which induced him to take these steps. Finally, the congress resolved that if any attempts were made to seize any American, in order to transport him beyond sea for trial of offences committed in America, resistance and reprisals should be made: then, having agreed that another general congress should be held on the 10th of May next, they dissolved themselves; i. e. on the 28th of October.

It has been seen that General Gage had issued writs calling the assembly to meet at Salem on the 5th of October. Before that day arrived, he thought it expedient to countermand the writs by proclamation, and to discharge such members as were already returned. This proclamation, however, was not heeded. Ninety members met on the day appointed, and though the governor was not there to open the session, or any one deputed by him to administer the oaths, they appointed a committee to consider the proclamation, and resolved themselves, with others who might afterwards join them, into a provincial congress. Having chosen Mr. John Hancock, the owner of the Liberty sloop, and a great merchant in the contraband line, to be their president, they adjourned to the town of Concord, about twenty-live miles

distant from Boston Here their first business was to appoint a committee to wait upon Governor Gage with a remonstrance, in which they vindicated their meeting by a reference to the distracted state of the province, and called upon him, for the honour of the king and the public peace, to desist from the construction of fortifications against the town of Boston. The governor indignantly replied, “That the lives, liberty, and property of none but avowed enemies could be endangered by the troops of Great Britain, who had shown no disposition for hostilities, though they might be expected to feel resentment at the exertions employed to deprive them even of the necessaries of life.” He also reminded this self-constituted provincial congress that while they affected to complain of alterations made in their charter by acts of parliament, their very meeting was in direct violation of their own constitution; and, finally, he exhorted them to desist from all illegal proceedings. The governor’s exhortation was, however, unheeded. On receiving his reply, they adjourned to Cambridge, where they appointed a committee to draw up a plan for the military defence of the province. They likewise settled all matters relating to the militia; arranged means for the collection of arms; provided for the receipt of taxes; appointed committees for these different purposes; named Jedediah Pribble and Artemas Ward, who had seen some service in the war with the French and Canadians, to be their generals; and even deliberated upon the precise period for opposing or attacking the king’s troops. Emissaries were also sent by them to Rhode Island, New Hampshire, and Connecticut, to request them to prepare their respective quotas, so as to make up an army of 20,000 men, and a committee was appointed to correspond with the Protestants of Canada, and especially those of the Presbyterian persuasion. Finally, they addressed a circular letter to all the dissenting ministers in New England, exhorting them to assist in averting the slavery with which the country was threatened, and appointed a day of public thanksgiving for the happy union which existed throughout the colonies. Having done all this, early in December the provincial congress of Massachusets prorogued themselves, appointing a new meeting in the ensuing month of February.

This conduct naturally excited the indignation of the governor, and he issued a proclamation forbidding the people to pay any obedience to these seditious resolutions. But proclamations now sounded in the ears of the people of Massachuset’s Bay as idle words, and the resolutions were strictly obeyed. The same disregard to the mandates of government was also shown in other colonies. The king had issued a proclamation strictly prohibiting the exportation of warlike stores to America; and as soon as this became known in the colonies, the people of Rhode Island seized upon forty pieces of cannon belonging to the crown, which had been mounted on batteries for the defence of the harbour, and carried them off, while those of New Hampshire surprised a small fort, called “William and Mary,” and carried off the ordnance, gunpowder, and other military stores. Mills, moreover, were erected for making gunpowder, and manufactories for making arms. Every thing, in fact, indicated that a fierce and bitter struggle was about to commence between America and the mother country. The train was laid, and the application of the match only was wanting to effect a fearful conflagration.

{GEORGE III. 1773–1775}

GENERAL ELECTION.

In the month of September, although parliament had more than a year to complete its septennial term, it was dissolved by proclamation, and writs issued for a new one. This step was taken, it would appear, chiefly that the sense of the nation might be known more fully concerning the affairs of America. This was found to be decidedly hostile to the late proceedings of the Americans. Loyalty, indeed, had increased at home in proportion as it had decreased in the colonies. All classes united in the opinion that the king, parliament, and country had been grossly insulted by the Americans, and that they deserved chastisement. Hence the general election, which took place in October, resulted greatly in favour of ministers. Some few places, it is true, proposed tests to the candidates, including pledges to stop hostilities with America, but the great majority were in favour of coercive measures if the Americans did not lay down their arms of rebellion. In this election Wilkes and Glynn were elected for Middlesex, so that this popular idol once more found a seat in parliament. He took his seat more proudly than ever, for he was this year also elected lord mayor of London: a high dignity for a man whose chief merits were those of agitation.

MEETING OF THE NEW PARLIAMENT.

The new parliament met on the 29th of November when the king signified his pleasure that the commons should elect a speaker to be presented on the next day for his approbation. Sir Fletcher Norton was unanimously re-elected, and on the following day his majesty opened the session with a speech in the usual form. The leading topic in this speech was the rebellious spirit displayed in America. His Majesty remarked: “It gives me much concern that I am obliged at the opening of this parliament, to inform you that a most daring spirit of resistance and disobedience to the law still unhappily prevails in the province of Massachusets Bay, and has, in divers parts of it, broke forth in fresh violences of a very criminal nature. These proceedings have been countenanced and encouraged in others of my colonies, and unwarrantable attempts have been made to obstruct the commerce of this country by unlawful combinations. I have taken such measures and given such orders as I judged most proper and effectual for carrying into execution the laws which were passed in the last session of the late parliament, for the protection and security of the commerce of my subjects, and for the restoring and preserving peace, order, and good government in the province of Massachusets Bay; and you may depend upon my firm and steadfast resolution to withstand every attempt to weaken or impair the supreme authority of this legislature over all the dominions of my crown: the maintenance of which I consider as essential to the dignity, the safety, and the welfare of the British empire; assuring myself that, while I act upon these principles, I shall never fail to receive your assistance and support.” In conclusion, his majesty recommended both houses to proceed with temper and unanimity in their resolutions, in order that his subjects in every part of his dominions might be taught by their example to preserve a due reverence for the laws, and a just sense of the blessings of the British constitution.

In the debate on the address in the commons, an amendment was proposed on the part of the opposition, to the effect that his majesty would be pleased to communicate the whole intelligence received from America, and to lay all letters, orders, and instructions relating to the late transactions before parliament. This was opposed by Lord North, who argued that it was not a proper time for entering into a discussion on the subject, since matters were in a state of suspense, He said that a reconcilliation was highly desirable, but as no terms of concession had been made by the Americans, it could not be expected that England would offer terms of submission. On the opposition benches the conduct of the late parliament in passing the American acts was severely censured, and the prime-minister was taunted with the failure of those acts from which he had augured such great and beneficial effects. The amendment, however, was negatived by a majority of 264 against 73, and the original address carried. Opposition shared the same fate in the lords. The Duke of Richmond moved an amendment similar to that in the commons, and a hot debate took place in consequence, but it was lost by a majority of 63 against 13. Nine of the minority entered a strong protest against the address—the first ever made upon an address—which concluded with these words: “Whatever may be the mischievous designs or the inconsiderate temerity, which leads others to this desperate course, we wish to be known as persons who have ever disapproved of measures so pernicious in their past effects and their future tendency; and who are not in haste, without inquiry or information, to commit ourselves in declarations which may precipitate our country into all the calamities of a civil war.”

It might have been expected that ministers, having apparently made up their minds to pursue coercive measures, would have prepared to meet the alternative of war with an efficient force. Ministers, however, seem to have been as impotent in execution as they were magnanimous in resolve. Instead of increasing the forces, they left the estimates to be entirely formed upon a peace establishment: continuing the army as it was and actually reducing the navy by 4000 men; leaving only 16,000 for the service of the ensuing year. The country felt a difficulty in reconciling this conduct of the ministers with the speech from the throne, and vehement debates took place in both houses on the subject. Lord Sandwich, however, asserted that our navy establishment, small as it was, would be sufficient to reduce the colonies to obedience, as the power, courage, and discipline of the Americans were by no means so formidable as had been represented, and as was generally supposed. Their very numbers, he said, would only add to the facility of their defeat when brought into action. Beyond this, the commons did little more before the Christmas recess than receive petitions which had been got up by Franklin and his agents in the North, and counter petitions which were concocted through the agency of Adam Smith, Dr. Roebuck, and others who seem to have been set to work by ministers, although they pretended some surprise when they were presented. In the house of lords, in the meantime, one important resolution had passed on the motion of the Duke of Manchester. This was to admit not only the members of the house of commons, but also other strangers, to hear the debates of the upper house. This put an end to a bitter contention which had existed between the lords and commons for four years.

CHAPTER VI.

{GEORGE III. 1775–1776}

Debates on America..... Pacific Measure of Lord North..... Burke’s Plan of Conciliation..... Close of the Session..... Petition of the City of London..... Departure of Franklin..... Proceedings of the Americans..... Expedition to seize Stores at Salem..... Affair at Lexington, etc..... Meeting of the Assemblies and General Congress..... Battle of Bunker’s Hill..... General Washington..... Expedition against Ticonderoga and Crown Point, etc,..... Expedition against Canada..... Disposition and Revolt of the Virginians..... Conduct of Congress towards New York, etc..... Proceedings in England..... Prosecution and Trial of Home Tooke, etc..... Meeting-of Parliament..... Changes in the Ministry..... The Militia Bill..... The Navy and Land Estimates..... Petition of Nova Scotia..... Petition of Congress..... Motions of the Duke of Grafton..... The Land-tax increased..... Burke’s Second Conciliatory Motion..... Lord North’s Prohibitory bill.

{A.D. 1775}

DEBATES ON AMERICA.

During the Christmas recess, ministers had received more alarming intelligence from America, coming down to the seizure of Fort William and Mary by the people of New Hampshire, as previously recorded. When parliament again met, therefore, which was on the 20th of January, the affairs of America became the prominent subject of discussion. Before that day it had been concerted between the Earl of Chatham and his friends that he should make one of his grand displays on the subject in the house of lords. After the minister had laid some important documents respecting the state of the colonies before the house, Chatham accordingly rose. He commenced by condemning all that the ministers had done, and by reproving them for their tardiness in communicating the American papers. He then congratulated their lordships upon the fact that the business was at last entered upon, by the noble lords laying these papers before them, and expressing a supposition that their contents were well known, he next made this motion: “That an humble address be presented to his majesty, to desire and beseech that, in order to open the way towards a happy settlement of the dangerous troubles in America, by beginning to allay ferments and soften animosities there; and, above all, for preventing, in the mean time, any sudden and fatal catastrophe at Boston, now suffering under the daily irritation of an army before their eyes, posted in their town; it may graciously please his majesty that immediate orders be dispatched to General Gage, for removing his majesty’s forces from the town of Boston, as soon as the rigour of the season and other circumstances indispensable to the safety and accommodation of the said troops may render the same practicable.” In continuation, Chatham proceeded to discuss the whole question: a question which, he said, demanded instant attention, as an hour lost might produce years of calamity. He remarked: “I will not desert for a single moment the conduct of this weighty business; unless nailed to my bed by

extremity of sickness, I will give it my unremitted attention. I will knock at the door of this sleeping and confounded ministry, and will rouse them to a sense of their impending danger. When I state the importance of the colonies, and the magnitude of the danger hanging over this country from the present plan of mis-administration practised against them, I desire not to be understood to argue for a reciprocity of indulgence between England and America. I contend not for indulgence but justice to America; and I shall ever contend, that the Americans justly owe obedience to us in a limited degree; they owe obedience to our ordinances of trade and navigation. But let the line be skilfully drawn between the objects of those ordinances and their private internal property; let the sacredness of their property remain inviolate; let it be taxed only by their own consent, given in their provincial assemblies, else it will cease to be property. As to the metaphysical refinements, attempting to show that the Americans are equally free from obedience and commercial restraints as from taxation of revenue, being unrepresented here, I pronounce them futile, frivolous, and groundless. Resistance to your acts was necessary as it was just; and your vain declaration of the omnipotence of parliament, and your imperious doctrines of the necessity of submission, will be found equally impotent to convince or enslave your fellow-subjects in America, who feel that tyranny, whether ambitioned by an individual part, of the legislature or by the bodies who compose it, is equally intolerable to British subjects." Chatham next drew a startling yet not unfaithful picture of the army of General Gage, which he represented as placed in a dangerous position, as being penned up and pining in inglorious inactivity, and as being alike an army of impotence and contempt, as well as of irritation and vexation. He then proceeded to declare that activity would be even worse than this inglorious inactivity, and that the first drop of blood shed in this civil and unnatural war would produce an incurable wound. Chatham next, by a strange infatuation, extolled the congress of Philadelphia for its decency, firmness, and wisdom, and even maintained that it was more wise than the assemblies of ancient Greece! He remarked:—"I must declare and avow, that in all my reading—and it has been my favourite study, and I have read Thucydides, and have studied and admired the master-states of the world—for solidity of reasoning, force of sagacity, and wisdom of conclusion, under such a complication of difficult circumstances, no nation or body of men can stand in preference to the general congress at Philadelphia!" If Chatham did not take this view of the proceedings of the congress of Philadelphia out of sheer opposition to the existing administration, which it was his pleasure always to gall and oppose, then he must have been miserably blinded by the half-speaking papers, which no man in his senses could misinterpret, and which that congress had issued. Having passed this strange eulogium on that body, Chatham next called upon ministers to retract now that they might do it with a good grace, and asserted that they had derived their information from wrong sources, from selfish merchants, packers, and factors, and such servile classes of Americans, whose strength and stamina were not worthy to be compared with the cultivators of the land, in whose simplicity of life was to be found the simpleness of virtue, and the integrity of courage and freedom. He continued: "These true genuine sons of the earth are invincible. They surround and hem in the mercantile bodies, and if it were proposed to desert the cause of liberty, they would virtuously exclaim, 'If trade and slavery are companions, we quit trade; let trade and

slavery seek other shores; they are not for us!’ This resistance to your arbitrary taxation might have been foreseen: it was obvious from the nature of things and of mankind; but above all, from the Whiggish spirit flourishing in that country. The spirit which now resists your taxation in America, is the same which formerly opposed loans, benevolences, and ship-money in England: the same spirit which called all England on its legs, and by the Bill of Rights vindicated the constitution; the same principle which established the great fundamental and essential maxim of our liberties, that no subject of England shall be taxed but by his own consent. This glorious spirit of whiggism animates three millions in America, who prefer poverty with liberty, to gilded chains and sordid affluence, and who will die in defence of their rights as men—as freemen.” Chatham enlarged greatly upon this glorious spirit of Whiggism displayed on both sides of the Atlantic, asserting that it would finally compel the ministers not only to abandon their present measures and principles, however many noses they might count on a division, but to hide their heads in shame. He continued: “They cannot my lords, they cannot stir a step; they have not a move left; they are check-mated. It is not repealing this or that act of parliament—it is not repealing a piece of parchment—that can restore America to our bosom; you must repeal her fears and her resentments, and you may then hope for her love and gratitude. But now, insulted by an armed force at Boston, irritated by a hostile array before her eyes, her concessions, if they could be forced, would be suspicious and insecure; they will be _irato animo_, not sound honourable factions of freemen, but dictates of fear and extortions of force. It is, however, more than evident, you cannot force them, principled and united as they are, to your unworthy terms of submission. It is impossible.” Having been pathetic on General Gage in one part of his speech, Chatham now was witty upon him, comparing him with the great General Condé, who upon being asked why he did not capture his adversary Turenne, replied, that he was afraid Turenne would take him. Chatham then contended that nothing was left but to withdraw the troops from Boston, and to repeal all the acts of parliament. This, he imagined, might satisfy the Americans, and have the effect of binding them to an acknowledgment of our sovereignty, and our rights to regulate their navigation and commerce. Concessions, he said, must be made at some time or other, and they had better be made now, when they might do it as became their dignity. He concluded his speech thus:—“Every danger impends to deter you from perseverance in the present ruinous measures. Foreign war is hanging over your heads by a slight and brittle thread. France and Spain are watching your conduct, and waiting for the maturity of your errors. If ministers thus persevere in misadvising and misleading the king, I will not say they can alienate the affections of his subjects from the crown; but I will affirm, that they make the crown not worth his wearing; I will not say the king is betrayed, but I will pronounce the kingdom undone.” Chatham’s motion was supported by the Duke of Richmond, the Marquess of Rockingham, the Earl of Shelburne, and Lord Camden, who were, however, not fully agreed as to the propriety of recalling the troops, and who seem to have considered that proper concessions had not been made by the people of Boston, and that concessions made on the part of the British government on previous occasions had been misinterpreted in America, and had told to our disadvantage. On the other hand, the motion was opposed by the Earls of Suffolk, Rochford, and Gower, Viscounts Weymouth and

Townshend, and Lord Lyttleton, who defended the recent acts of parliament, vindicated the legislative supremacy of parliament, and controverted the eulogy passed on the American congress, maintaining rightly that its acts and resolutions savoured strongly of a rebellious spirit. In the course of their arguments it was said that all conciliating means had proved ineffectual, or had only tended to increase the disorders; that if we gave way now from notions of present advantages in trade and commerce, such a yielding would defeat its own object, as the Navigation Act, and all other acts regulating trade, would inevitably fall victims to the interested and ambitious views of the colonists. This was a cogent argument, and Chatham rose to reply to it. He remarked, “If the noble lord should prove correct in suggesting that the views of the Americans are ultimately directed to abrogate the Act of Navigation and the other regulating acts, so wisely calculated to promote a reciprocity of interests, and to advance the grandeur and prosperity of the whole empire, no person present, however zealous, would be readier than myself to resist and crush their endeavours; but to arrive at any certain knowledge of the real sentiments of the Americans, it would first be proper to do them justice—to treat them like subjects before we condemn them as aliens and traitors.” Chatham then went over some of his previous arguments, especially contending that the right of taxing-was not included in legislation, and that sovereignty and supremacy did not imply that we could touch the money of the Americans, except by measures of trade and commerce. The motion was negatived by a majority of 68 against 18.

In submitting this motion to the house, the Earl of Chatham said that he had prepared a plan for healing all differences between England and America! This plan he afterwards submitted to Franklin, with whom he had recently much communication, and on Wednesday, the 1st of February, he submitted it to the house. He called it “A Provisional Bill for settling the Troubles in America, and for asserting the supreme legislative Authority and superintending Power of Great Britain over the Colonies.” In the speech made on this occasion, lie said, he offered this bill as a basis of measures for averting the dangers which threatened the British empire, and expressed a hope that it would obtain the approbation of both sides of the house. In stating the urgent necessity of such a measure, he represented England and America as drawn up in martial array, waiting for the signal to engage in a contest, in which it was little matter for whom victory declared, as the ruin of both parties was certain. He stood forth, he said, from a principle of duty and affection, to act as a mediator. In doing so, he represented that he would hold the scales of justice even-handed. He remarked, “No regard for popularity, no predilection for his country, not the high esteem he entertained for America on the one hand, nor the unalterable steady regard he entertained for the dignity of Great Britain on the other, should at all influence his conduct; for though he loved the Americans as men prizing and setting the just value on that inestimable blessing, liberty, yet if he could once bring himself to believe that they entertained the most distant intentions of throwing off the legislative supremacy and great constitutional superintending power and control of the British legislature, he should be the very person himself who would be the first and most zealous mover for securing and enforcing that power by every possible exertion this country was capable of making.” Chatham concluded by entreating the

house to revise and correct the bill, and to reduce it to that form which was suited to the dignity and importance of the subject; and by declaring that he was actuated by no narrow principle or personal consideration, for though his bill might be looked upon as one of concession, it was likewise one of assertion. The bill which Chatham proposed was briefly to the following effect: That the parliament of Great Britain had full power to bind America in all matters touching the weal of the whole dominion of the crown of Great Britain, and especially in making laws for the regulation of navigation and trade throughout the complicated system of British commerce, etc.; that it should be declared that no military force could ever be lawfully employed to destroy the best rights of the people, while at the same time the authority of sending troops to the colonies of the British dominions should be maintained, independent of the voice of the provincial assemblies in the colonies; that no taxes for his majesty's revenue should be levied in America without consent of the provincial assemblies; that the congress of Philadelphia should be legalized and empowered to meet again on the 9th of May ensuing, for the purpose of making due recognition of the supreme legislative authority and superintending power over the colonies, and of voting a free grant to the crown of a certain perpetual revenue, etc.; that the prayer of the petition of congress should then be granted, and that the powers of admiralty and vice-admiralty courts in America should be confined to their ancient limits, and the trial by jury in civil cases should be restored wherever they had been abolished, etc.; that all the recent acts of parliament which had been the cause of the agitation in America should be forthwith suspended; and that, in order to secure due and impartial administration in the colonies, his majesty's judges in the courts of law, who were appointed in America by the crown with salaries, should hold their offices and salaries in the same manner as his majesty's judges in England; _quamdiu se benè gesserint_. The bill which Chatham introduced concluded thus: "And it is here by further declared that the colonies in America are justly entitled to the privileges, franchises, and immunities granted by their several charters or constitutions; and that the said charters or constitutions ought not to be invaded or resumed, unless for misuser, or some legal ground of forfeiture. So shall a true reconcilement avert impending calamities, and this most solemn national accord between Great Britain and her colonies stand an everlasting monument clemency and magnanimity in the benignant father of his people; of wisdom and moderation in this great nation, famed for humanity as for valour; and of fidelity and grateful affection from brave and loyal colonies to their parent kingdom, which will ever protect and cherish them."

There is full evidence that Chatham, in bringing such a bill as this before the house—a bill which was rather theoretical than practical—did not expect that it would be adopted. In a consultation over the bill between himself and Franklin, after certain suggestions made by the philosopher, none of which were adopted, he said that there was not time to make alterations and another fair copy; that neither of them expected it would be adopted; and that it might be afterwards amended. On the part of Franklin, no desire seems to have existed in his mind for its adoption. What he chiefly wanted, was another brilliant speech from the veteran statesman, that government might be further embarrassed, and the resistance of the colonies further stimulated. This appears to have escaped the penetration of Chatham. Sincere

himself in the matter, he thought Franklin also sincere: otherwise there can be no doubt that he would have spurned him from his door. Franklin, in truth, took care to throw dust in the eye of Chatham. At a previous interview, he assured him that he had never heard any person, drunk or sober, express a wish for the disseveration of the two countries, or hint that such a thing would be advantageous to America. This he expressly states in a letter to his son, so that he stands condemned by his own handwriting of the most gross duplicity for ulterior purposes. It is pitiable to see a mind so highly gifted as was that of Franklin stoop so low in a matter of such momentous consequences The eyes of all America were turned towards him as their champion in England, and had he been so inclined there is little doubt but he could have procured great and lasting benefits to his country without the shedding one drop of precious blood. But his single aim was the dismemberment of the empire.

At the conclusion of Chatham’s speech, the Earl of Dartmouth, secretary of state for America, moved that the bill should lie on the table, till the papers referred to the house by his majesty should have been taken into consideration. On the other hand, the Earl of Sandwich moved that the bill should be at once rejected with the contempt it deserved. He could not, he said, believe it was the production of a British peer. It appeared to him the work of an American, and seeing Franklin leaning on the bar of the house, he pointed him out as its author, and as one of the bitterest and most mischievous enemies this country had ever known. To make any concession at this moment, he said, would be an abandonment of the whole cause of government, since the one grand aim of the Americans was absolute independence. At this very time, he asserted they were courting the trade of other nations, and he stated that he had letters in his pocket to prove that ships were being-laden at some European ports with East India produce and European commodities for America. Lord Sandwich was supported by Earls Gower and Hillsborough, and the Duke of Grafton, the latter of whom denounced the way in which the bill had been hurried into the house, as irregular and unparliamentary. The bill was supported by the Duke of Richmond, the Earl of Shelburne, and Lord Camden, who analysed the laws proposed to be repealed with great severity, and pointed out the evils of foreign interference, and the danger of famine at home, from the discontinuance of supplies from America. Another party in the house, consisting of the Duke of Manchester, Earl Temple, and Lord Lyttleton, were for taking a more moderate course, that is, not to reject the bill thus summarily, on consideration of the exalted character of its proposer. An angry debate followed, in the course of which one noble lord mentioned with applause the candid proposal of a member of the administration for the bill to lie on the table. But this had the contrary effect to that which the noble lord intended. Lord Dartmouth instantly rose and said that he had altered his opinion, and that he could not accept praise offered to him for candour of which he was now ashamed. The Earl of Chatham rose to defend both himself and his bill from the numerous attacks which had been made in the course of the debate. He commenced by avowing that the bill was the offspring of his own creation, though he had sought the advice of Franklin. He then attacked his quondam colleague in office, the Duke of Grafton, with severity, and inveighed against the whole administration in the most bitter terms. He remarked:—“The noble duke is extremely angry with me that I did not previously consult him on the bringing

in of the present bill. I would ask the noble lord, does he consult me? or do I desire to be previously told of any motion he thinks fit to propose to this house? His grace seems to be much offended at the manner this bill has been hurried. I am certain he could not be serious, if he gave himself a minute to consider how the case really stands. Here we are told that America is in a state of rebellion, and we are now got to the 1st of February, and no one step is taken to crush this rebellion: yet such being the case I am charged with hurrying matters; but whether my conduct may be more justly charged with hurrying this business into, or his grace with hurrying it out of the house, I believe requires no great depth of penetration to discover. As to the other general objections, I presume it will be recollected that the last day I submitted the proposition about withdrawing the troops, I then gave notice that I would present in a few days a plan of general reconciliation. Eleven days have since elapsed and nothing has been offered by the king's servants. Under such circumstances of emergency on one side, when, perhaps, a single day may determine the fate of this great empire, and such a shameful negligence, total inaction, and want of ability on the other, what was to be done? No other alternative, in my opinion, remained, but either to abandon the interests of my country, and relinquish my duty, or to propose some plan, when ministers by their inaction and silence owned themselves incapable of proposing any. But even now let them speak out and tell me that they have a plan to lay before us, and I will give them an example of candour they are by no means deserving, by instantly withdrawing the present bill. The indecent attempt to stifle this measure in embryo may promise consequences the very reverse of what I am certain will be the case. The friends of the present motion may flatter themselves that the contents of the bill will sink into silence and be forgotten; but I believe they will find the contrary. This bill, though rejected here, will make its way to the public, to the nation, to the remotest wilds of America: it will in such a course undergo a deal of cool observation and investigation, and whatever its merits or demerits may be, it will rise or fall by them alone; it will, I trust, remain a monument of my poor endeavours to serve my country, and however faulty or defective, will at least manifest how zealous I have been to avert the impending storms which seem ready to burst on it, and for ever overwhelm it in ruin. Yet, when I consider the whole case as it lies before me, I am not much astonished, I am not much surprised, that men who hate liberty should detest those who prize it, or that those who want virtue themselves should endeavour to persecute those who possess it. Were I disposed to pursue this theme to the extent that truth would fully bear me out in, I could demonstrate that the whole of your political conduct has been one continued series of weakness, temerity, despotism, ignorance, futility, negligence, and the most notorious servility, incapacity, and corruption. On reconsideration I must allow you one merit, a strict attention to your own interests—in that view you appear sound statesmen and able politicians. You well know that if the present measure should prevail, that you must instantly relinquish your places. I doubt much whether you will be able to keep them on any terms; but sure I am such are your well-known characters and abilities, that any plan of reconciliation, however moderate, wise, and feasible, must fail in your hands. Such, then, being your precarious situation, who could wonder that you should put a negative on any measure which must annihilate your power, deprive you of your emoluments, and at once reduce you to that state of insignificance for which God and

nature designed you." Earls Gower and Hillsborough reprobated this severe language of Chatham, as calculated to inflame the public mind both here and in the colonies, and questioned if the noble lord would not, on some future day, if his age permitted, give another of the many proofs of his versatility, by acting with the ministers he condemned, and patronising the measures he now censured. Upon a division, the bill was rejected by a majority of sixty-one against thirty-two. Its rejection proved a fine theme out of doors for those adverse to the ministry. A vote of thanks was passed by the corporation of the city of London to Chatham, for his humane design; and Franklin enlarged upon the folly and madness of the ministers in rejecting it, although he had not expressed his approbation of it even to Chatham himself. He obtained, however, by its introduction what he most wanted—namely, a subject by means of which he could widen the breach between America and the "dear old mother country."

In the meantime debates had taken place in the commons upon various petitions presented to the house, and especially upon one presented from Franklin, Bolland, and Lee, who prayed to be examined at the bar in support of the demands made by the general congress at Philadelphia. A motion, that this petition should be brought up, was negatived, on the ground that it would have the appearance of sanctioning the proceedings of the congress.

On the 2nd of February, Lord North, in the commons, in a committee of the whole house, moved for an address of thanks to the king for the communication of the papers. In introducing this motion Lord North intimated that a large military force was to be sent to America, and that the foreign commerce of New England and their fishing on the banks of Newfoundland were to be effectually stopped, until they should return to their duty. Fox moved an amendment, censuring ministers for having rather inflamed than healed differences, and praying for their removal. In doing so he descanted largely on the injustice of the motion for an address; predicting defeat in America and ruin at home. The amendment was negatived by a large majority, and, on a second division, the motion for an address was carried. It was reported on the 6th of February, when there was another warm debate, in which Wilkes, whose conduct on this subject was steady and consistent, took part. He remarked:—"Who can tell whether, in consequence of this day's violent and mad address, the scabbard may not be thrown away by the Americans, as well as by us; and should success attend them, whether, in a few years, they may not celebrate the glorious era of the revolution of 1775, as we do that of 1608? Success crowned the generous efforts of our forefathers for freedom, else they had died on the scaffold as traitors and rebels; and the period of our history which does us most honour would have been deemed a rebellion against lawful authority—not a resistance sanctioned by all the laws of God and man, and the expulsion of a tyrant." There is much truth in these observations; but in reply it was observed, that the present crisis had been produced as much by a zeal for their cause and a seditious spirit at home, as by the restless spirit of the colonists themselves; and that, while the proceedings of the Americans evidently tended to independence, and a future age might perhaps see them successful, it was the duty of all to unite in preventing the evil day from arriving at that period, and affixing an indelible stain on that age. At the commencement of this debate Lord John

Cavendish had moved, that the address should be recommitted, but it was in the end negatived by two hundred and eighty-eight to one hundred and five.

A conference between the two houses on the address was held on the 7th of February, after which Lord Dartmouth moved, that the lords should concur in it; and on this motion the previous question was demanded. Another warm debate ensued. Lord Mansfield first rose, and, in a long and argumentative speech, he combated the arguments of those who maintained that the Americans were merely contending for exemption from taxation. He next minutely analysed the declarations of congress, and the acts of parliament of which they complained; in the course of which he insisted, that to annul any laws, except the acts of taxation, would be a renunciation of sovereignty. As a lawyer, he declared, from the documents before the house, that the Americans were already in a state of rebellion; and he condemned the taxes imposed in the year 1767, as the origin of the ferment in the colonies, and as tending to injure British commerce, inasmuch as they had furnished the colonists with a temptation to smuggle. On the other hand, Lord Camden, as a lawyer, denied that the Americans were in a state of rebellion, and drew sundry nice distinctions between actual treason and constructive treason. He also disclaimed all participation in the law for taxing America, as he had not been consulted on the subject. The Duke of Grafton complained of both these lords, and accused Camden of meanness and shuffling, in endeavouring to screen himself by accusing others; reminding him, that at the time the act was passed, he was lord-chancellor, and had signified the royal approbation of the act in his official capacity. Lord Lyttleton seconded the blow given to the ex-chancellor by his quondam colleague; but Lord Shelburne acquitted both Camden and the Duke of Grafton of approving the cabinet scheme for taxing America, and expressed a hope that public retribution would soon fall upon the author of the present despotic measures. The Duke of Richmond endeavoured to show that Lord Mansfield was its foster-parent; and a scene of mutual recrimination took place between them, in which other noble lords took an active part. Each one strove to lay the blame upon the shoulders of their opponents—all feeling that a blunder had been committed, which was likely to lead to the most disastrous consequences. This stormy altercation, however, terminated by the house agreeing to the address of the commons by a majority of nearly four to one. The king’s reply to the address was accompanied by a message to the commons, recommending an augmentation to the forces by sea and land; and, in consequence of this message, 2000 additional seamen and 4,400 soldiers were voted—an increase altogether inadequate to meet the contingency; especially as France was at this moment increasing her fleets, and getting many line-of-battle ships ready for sea, which many members justly looked upon with suspicion.

In pursuance of his plan, on the 10th of February, Lord North moved for leave to bring in his bill for cutting off the commerce of New England and their profitable fishery—excepting such persons as should procure from their governors certificates of good and loyal conduct, and who should subscribe a test, acknowledging the supremacy of the British Parliament. This bill was warmly opposed in both houses, on the grounds of confounding the innocent with the guilty—of destroying a trade which perhaps could never be recovered—and of cruelly starving whole provinces, and thus

irritating the Americans to withhold debts due to the British merchants. In support of the bill it was argued, that as the Americans had resolved not to trade with England, it was but fair to prevent their trading with other countries; that as they had entered into associations to ruin British merchants, impoverish British manufacturers, and starve our West India islands, it was a justifiable act of retaliation to return their mischiefs upon their own heads; and that, if any foreign power had only offered a tithe part of the insults and injuries we had received from our colonists, the whole nation would have been aroused to advocate revenge, and the minister who would not have responded to the demand would have been inevitably ruined. The charge of cruelty was denied, and the bill asserted to be one of humanity and mercy as well as of coercion. The colonists had incurred the penalties of rebellion, and had, therefore, rendered themselves liable to military execution; but instead of proceeding to such extremities, government only proposed to bring them back to a sense of duty, by a restriction on their trade—that is, they were to be kept without food instead of undergoing corporeal punishment. It was stated, moreover, that they had too long imposed upon us with their threats of depriving us of their trade, hoping thereby to bend the legislature to a compliance with all their demands, until they had completed their plans for asserting their independence. As for American courage and resources, they were considered by the ministers and their supporters in both houses to be unequal to the task of contending with those of England. It was even wished by Lord Sandwich that the Americans could produce four times the number of forces it was stated they could bring into the field; he contending, that the greater the numbers the easier would be the conquest. He even gravely predicted, that if they did not run away, they would starve themselves into compliance with the measures of government, Taking these views of the matter, which were manifestly erroneous, the bill was sanctioned by large majorities. Another bill also passed very soon after it, laying similar restraints on the colonies of New Jersey, Pennsylvania, Maryland, Virginia, and South Carolina, for the hostilities they had exhibited in their sympathy with the people of New England.

PACIFIC MEASURE OF LORD NORTH.

Having adopted such measures as the above, it could hardly be expected that Lord North would lower his tone. Yet, to the surprise of all parties, and even of many of his own adherents, Lord North, in a committee of the whole house, moved the following resolution:—“That when the governor, council, and assembly, or general court of any of his majesty’s provinces or colonies, shall propose to make provision for contributing their proportion to the common defence, such proportion to be raised under the authority of the general court, or general assembly of such province or colony, and disposable by parliament; and shall engage to make provision also for the support of the civil government and administration of justice in such province or colony, it will be proper, if such proposal shall be approved by his majesty in parliament, and for so long as such provision shall be made accordingly, to forbear, in respect of such province or colony, to levy any duties, tax, or assessment, or to impose any further duty, tax, or assessment, except only such duties as it may be expedient to impose for the regulation of commerce—the net produce of which duties last mentioned shall be carried to the account of such province, colony, or plantation

exclusively.” Lord North endeavoured to show that this resolution arose out of the following passage in the address:—“And whenever any of the colonies shall make a proper application to us, we shall be ready to afford them every just and reasonable indulgence.” The terms of the resolution, he said, being such as in the hour of victory would be good and just, would afford a test as to the pretensions of the Americans. If their ostensible causes of opposition were real, he conceived that they must agree with such proposals, and that, if they did not agree with them, then it would be proved that they had other views and were actuated by other motives than those which they professed. He added:—“To offer terms of peace is wise and humane; if the colonists reject them, their blood must be on their own heads.” Burke, in his Annual Register, says, that the court party, who always loved a strong government in whatever hands it might be lodged, and accordingly had upon principle ever opposed any relaxation in favour of the colonies, heard these proposals with horror, and considered themselves abandoned and betrayed. Be that as it may, it is certain that opposition to the minister’s motion commenced on the treasury benches. The party, called “the King’s Friends,” at the head of whom were Mr. Welbore Ellis and Mr. Rigby, contended that Lord North’s propositions were in direct opposition to every principle and idea of the address; that the scheme was at variance with all the preceding acts and declarations of parliament, and designed to pay court to the opposition; and that they went to acknowledge that there was, in reality, something unjust and grievous in the idea of taxing the Americans by parliament. In fact, they denounced the whole matter as a shameful prevarication and a mean departure from principle, and boldly asserted that they would make no concessions to rebels with arms in their hands, or give their consent to any measure for a settlement with the Americans, in which an express and definitive acknowledgment of the supremacy of the British parliament was not a preliminary article. Mr. Ackland went so far, indeed, as to move that the chairman should leave the chair, or, in other words, that the committee should be dissolved and the house resumed without the resolutions being put to the vote. Lord North had never been in such a dilemma before, and it seems probable that he would have yielded to the storm he had unconsciously raised, had not Sir Gilbert Elliot and Mr. Wedderburne rose to his rescue. Sir Gilbert Elliot remarked, that the address contained two correspondent lines of conduct—the one tending to repress rebellion, for which measures of restriction had been resorted to, the other offering indulgence to those who would return to their duty. In the address this was necessarily intimated in general and vague terms; but was so far from being contradictory to it, that without it, the plan adopted at the beginning of the session would be defective and unjust. When Wedderburne rose, he declared that nothing was further from the intention of Lord North than a dereliction of the rights of parliament, or a yielding to the insolence of the Americans. What he really proposed was, to enforce the one and repress the other. For himself, he contended, that indulgence should be offered to such of the colonists as would return to their duty, but the contumacious should be proceeded against with an increased army and navy, with gallant officers, who were going to America to enforce the spirited proposition. He added:—“We have at length put the dispute upon its proper footing—revenue or no revenue.” The resolution being thus reconciled with the address, and Lord North having stated that the measure was designed to separate the grain from the chaff,

and to disunite the colonies, the “king’s friends” were satisfied. This healing of the breach on the treasury benches, however, had the effect of widening it on the side of the opposition, who had been exulting in the strife. Fox rejoiced in the retrograde movement of the minister; but doubted the sincerity of the motion made, and predicted, that the Americans would reject them with disdain. He was followed by Colonel Barré, who indulged in bitter sarcasm upon Lord North’s recent embarrassment and danger from his friends, and said, that his motion was founded upon the pitiful and abominable maxim, _divide et impera_. It was to divide the Americans, and dissolve their generous union in defence of their rights and liberties; but, he added, “The Americans are not such gudgeons as to be caught with so foolish a bait.” Lord North had by this time recovered his fortitude and he defended himself with great spirit from the attacks which had been made upon him, and justified his motion, on the ground that it would have the effect of sifting the reasonable from the unreasonable—of distinguishing those who acted upon principle, from those who wished to profit by the general confusion and ruin—of dividing the good from the bad, and of giving aid and support to the friends of peace and good government. Burke next attacked the minister. He declared, that the measure was mean without being conciliatory, and that it was a more oppressive mode of taxation than any that had yet been adopted. It was proposed, he said, that the colonies were to be held in durance by troops and fleets, until, singly and separately, they should offer to contribute to a service they could not know, and in a proportion they could not guess, since ministers had not even ventured to hint at the extent of their expectations. This conduct he compared to that of Nebuchadnezzar, who, when he had forgotten his dream, ordered his wise men to relate what he had dreamt, and likewise to give him its interpretation. He added, that every benefit, natural and political, must be acquired in the order of things and in its proper season, and that revenue from a free people must be the consequence, not the condition, of peace. Dunning next followed, showering more sarcasms and more odious comparisons on the head of Lord North than any of the preceding speakers; but in the end the resolution was adopted by a majority of two hundred and seventy-four against eighteen.

{GEORGE III. 1775–1776}

BURKE’S PLAN OF CONCILIATION.

The present occasion was deemed by the opposition a favourable one for putting forth a plan of conciliation, the terms of which might, by comparison, reflect censure on that of Lord North. This task was committed to Burke, and on the 22nd of March he brought forward a plan comprised in thirteen resolutions. These resolutions went to repeal many acts of parliament, and to reform many regulations, but the foundation on which the whole rested, was the mode of raising a revenue from the colonists through grants and aids by resolutions in their general assemblies. In the opening of an eloquent speech uttered upon this occasion, Burke took a comprehensive view of the state of Britain as connected with America, and then stated the nature of his proposition. He remarked:—“The proposition is peace. Not peace through the medium of war; not peace to be hunted through the labyrinth of

intricate and endless negociations; not peace to arise out of universal discord, fermented from principle in all parts of the empire; not peace to depend on the periodical determination of perplexing questions, or the precise marking the shadowy boundaries of a complex government. It is simple peace; sought in its natural course and in its ordinary haunts. It is peace sought in the spirit of peace; and laid in principles purely pacific. I propose, by removing the ground of the difference, and by restoring the former unsuspecting confidence of the colonies in the mother country, to give permanent satisfaction to your people; and, far from a scheme of ruling by discord, to reconcile them to each other in the same act, and by the bond of the very same interest, which reconciles them to British government." His plan of conciliation, he declared, was founded on the sure and solid basis of experience, and he asserted that neither the chimeras of imagination, nor abstract ideas of right, nor mere general theories of government, ought to receive any attention. He then entered into a copious display and elucidation of his subject. He dwelt on the spirit of freedom existing in America, asserting that their extreme notions of liberty arose from the peculiar religious spirit which existed in the colonies, which he termed a refinement on the principles of resistance, and which was carried with them on their first emigration from England. Law, also, he said, had fostered this high spirit of liberty, since the study of it was more universal in America than in any other country in the world, and since that study made them acute, inquisitive, dexterous, prompt in attack, ready in defence, and full of resources. Burke next dwelt on the enlarged population of America, and the increased importance of her commerce, both in exports and imports, and animated by this view of their great and growing prosperity, he exclaimed in a lofty tone of eloquence:—"While we follow them into the north amongst mountains of ice, while we behold them penetrating the deepest recesses of Hudson's Bay, while we are looking for them beneath the Arctic circle, thay have pervaded the antipodes, and engaged under the frozen serpent of the south: nor is the equinoctial heat more discouraging to them, than the accumulated winter of the poles; while some of them strike the harpoon on the coast of Africa, others pursue their gigantic toils on the shores of the Brazils. There is no climate that is not a witness of their labours. When I contemplate these things; when I know they owe little or nothing to any care of ours, but that they have arrived at this perfection through a wise and salutary neglect; I feel the pride of power and the presumption of wisdom die away within me; and I pardon everything to their spirit of liberty." The love of freedom, Burke contended, was the predominant feature in the cause of the Americans, and he pointed out two other causes which tended to increase its growth beyond those above-mentioned. One of these causes may seem parodoxical: it was that black slavery prevailed in the colonies! The possession of slaves, he said, was more than a counterpoise to the prevalence of the established church in some of the provinces, and he established his argument thus:—"I can perceive, by their manner, that some gentlemen object to the latitude of my description, because in the southern colonies the church of England forms a large body, and has a regular establishment. It is certainly true. There is, however, a circumstance attending these southern colonies, which, in my opinion, fully counterbalances this difference, and makes the spirit of liberty still more high and haughty than in those to the northward. It is that in Virginia, and the Carolinas they have a vast multitude of slaves! Where this is the

case, in any part of the world, those who are free, are by far the most proud and jealous of their freedom. Not seeing there that freedom, as in countries where it is a common blessing, and as broad and general as the air, may be united with much abject toil, with great misery, with all the exterior of servitude, liberty looks amongst them like something that is more noble and liberal. I do not mean to commend the superior morality of this sentiment, which has at least as much pride as virtue in it; but I cannot alter the nature of man. The fact is so; and these people of the southern colonies are much, more strongly, and with a higher and more stubborn, spirit, attached to liberty than those to the northward." Burke's reasoning was unhappily sound. All the great nations of antiquity who fought with blood-stained swords, and with indomitable ardour for their own liberties, were great slave owners; eating the bread which was grown by the sweat of other men's brows. This fact, however, redounds to the everlasting shame of the Americans, and the black stain on their annals is not yet wiped out: nay, it grows blacker and blacker as the period of their history rolls onward. Slavery is the plague-spot of that boasted land of liberty! The last cause of their thirst for freedom mentioned by Burke, was their distance from the seat of government. He remarked:—"Three thousand miles of ocean lie between you and your subjects! This is a powerful principle in the natural constitution of things for weakening government, which no contrivance can prevent. Seas roll, and months pass, between the order and the execution; and the want of a speedy explanation of a single point is enough to defeat a whole system. You have, indeed, winged ministers of vengeance, who carry your bolts to the remotest verges of the sea. But there a power stops, that limits the arrogance of raging passions, and says, 'Hitherto shalt thou go, and no further.' Who are you, that should fret, and rage, and bite the chains of nature? Nothing worse happens to you than to all nations possessing extensive empire; and it happens in all the forms into which empire can be thrown. In large bodies the circulation of power must be less vigorous at the extremities. Nature has said it. The Turk cannot govern Egypt, as he governs Thrace; nor has he the same dominion in Crimea and Algiers, which he has at Brusa and Smyrna. Despotism itself is obliged to truck and huckster. The sultan gets such obedience as he can. He governs with a loose reign, that he may govern at all; and the whole of the force and vigour of his authority in his centre is derived from a prudent relaxation in all his borders. Spain in her provinces submits to this immutable condition, the eternal law of extensive and detached empire." Still Burke did not conceive the idea of proclaiming the independence of America. On the contrary, like Chatham, he contended for the general supremacy of parliament, and the rights of the crown, expressing at the same time his conviction that we had arrived at the decisive moment of preserving or of losing both our trade and empire. How to preserve it was the question, and he proposed that it should be done by concession and conciliation,—and not by force. The plan he proposed, therefore, to obtain this consummation was, to allow all the claims the Americans had set forth in their petitions and declarations, and by undoing all that the parliament had done respecting America, since the year 1765. His resolutions were briefly these:—That the colonies not being represented in parliament, could in no way be taxed by parliament; that the said colonies had been made liable to several subsidies, payments, rates and taxes, given and granted by parliament, etc.; that from the

distance of the colonies, with other circumstances, no means had ever been devised for procuring for them a representation in parliament; that the colonies had each a general assembly that ought to tax and assess them; that these assemblies had often spontaneously granted the crown subsidies, etc.; that experience had shown that such grants made by the assemblies were more beneficial and conducive to the public service, than the mode of giving and granting aids and subsidies in parliament to be paid in the colonies: that the act for granting certain duties in the colonies, for allowing a drawback upon the exportation from this kingdom of coffee and cocoa-nuts of the produce of the said colonies, etc. should be repealed; that the bill for altering the course of trials in Massachusets Bay should be repealed; that the Boston Port Bill should be repealed; that the bill for altering the constitution of Massachusets Bay should be repealed; that the act of King Henry VIII., in regard to the trial of treasons committed out of the king’s dominions, should be amended; that the new regulations for appointing and paying the judges should be altered so as to meet the views of the colonists; and that the American courts of admiralty or vice-admiralty should be regulated in such, a manner as to make them more commodious to those who sued or were sued in them, and to provide for the more decent maintenance of the judges presiding in those courts. These propositions were vigorously combated by the ministers, and rejected by the house; and five days afterwards a scheme closely resembling Lord Chatham’s, proposed by Mr. Hartley, shared the same fate. Burke appealed to the public by printing his speech, but though it was read and admired, it was soon forgotten. On the other hand a defence of American taxation, published by his friend Dr. Johnson, in which he defended colonial subordination on the principles of the law of nations, and maintained that the colonists, by their situation, became possessed of such advantages as were more than equivalent to their right of voting for representatives in parliament, etc., had a great effect on the public mind, which was pre-disposed to admit his arguments. The voice of the nation was, in fact, in favour of the measures pursued by Lord North and his coadjutors in the ministry.

CLOSE OF THE SESSION.

Towards the close of the session Lord North moved an additional clause in the second restraining bill, to include in it the counties of Newcastle, Kent, and Sussex, on Delaware, which was carried without a division. Burke, as agent for the colony of New York, presented a remonstrance from the general assembly of that province, but though Lord North admitted that the people of that colony had hitherto been peaceably inclined, he opposed the bringing up of the paper, upon the ground that parliament could not hear anything which called in question its right to legislate for the colonies, and it was refused. In both houses attempts were made to procure a repeal of the act for settling the government of Canada, but without effect. The remainder of the session was occupied in considering the annual motion of Alderman Sawbridge for shortening the duration of parliaments; in appointing a committee on the motion of Mr. Gilbert, to consider the poor laws; in voting the purchase of Buckingham-house for the queen, in lieu of Somerset-house, which was converted into public offices; and in settling financial measures. His majesty prorogued parliament on the 26th of May, after expressing his satisfaction at the course which had been pursued, and auguring the happiest results from the measures which had

been adopted.

PETITION OF THE CITY OF LONDON.

At this period, the livery of London attempted to turn the royal counsels respecting America, by an address containing a remonstrance, in which the citizens of London declared their abhorrence of the measures which had been pursued for the oppression of their fellow-subjects in the colonies, and which they affirmed were carried into execution by the same fatal corruption which had enabled his majesty's ministers to wound the peace and violate the constitution of this country. The petitioners prayed his majesty, therefore, to dismiss his advisers on the instant, as the first step towards a redress of grievances which alarmed and afflicted his people. This petition was presented by Mr. Wilkes, as lord mayor; a circumstance which doubtless embittered his majesty's feelings in reply. This reply was explicit and emphatic. His majesty remarked:—"It is with the utmost astonishment that I find any of my subjects capable of encouraging the rebellious disposition which unhappily exists in some of my colonies in North America. Having entire confidence in my parliament, the great council of the nation, I will steadily pursue those measures which they have recommended, for the support of the constitutional rights of Great Britain, and the protection of the commercial interests of my kingdom." Wilkes was prevented from making a reply by a hint from the lord in waiting, and the king directed a notice to be issued a few days after, that the king would not receive any address from the city except in its corporate capacity. This address had, indeed, been got up by a minority of the livery: the majority were in favour of the measures adopted.

DEPARTURE OF FRANKLIN.

During the month of April, while parliament was deliberating on the course to be pursued in the colonies, Dr. Franklin suddenly left England. Before he left he put in his protest against the measures adopted by the ministry and the British parliament, into the hands of Lord Dartmouth. On the evening before his departure, he had, also, a long interview with Burke, in which he expressed regret for the calamities which he anticipated as the consequence of ministerial resolutions, and again professed his attachment to the mother country, under whose rule America had enjoyed so many happy days. Yet there can be no question but that Franklin's principal motive for leaving England was to widen the breach which existed between her and the colonies, and to aid them in the struggle for independence.

PROCEEDINGS OF THE AMERICANS.

In the mean time military preparations had been continued in America. Inflamed by publications and harangues on every side, the Americans had been active in preparing for the approaching contest. No thought of concession or conciliation was entertained: provincial and private meetings all breathed the language of defiance to the mother country, and threatened resistance to taxation, external or internal, as well as to every other act of coercion. A great impetus was given to the popular movement by the resolutions of congress. A few assemblies there were, indeed, as that of New York, who at first refused to admit these resolutions, but they were soon

induced to join the confederation. Every province prepared its levies and its cannon and its military stores for the deadly strife. And at length that strife commenced. While the houses of parliament in England were yet echoing with the oratory of its empassioned members, the hillsides of America were reverberating with peals of musketry. The banner of revolt was first unfolded in the province where the spirit of resistance first showed itself—that of Massachusets Bay. The aversion which General Gage had shown to the adoption of violent measures and the forbearance of the troops had rather tended to increase than to allay hostile feelings in that province, and at length the proceedings of the people became so alarming, that the general was compelled to adopt measures to put it out of their power to effect mischief.

EXPEDITION TO SEIZE STORES AT SALEM.

Having received intelligence that a _depôt_ of arms had been collected at Salem, on the 26th of February, General Gage ordered a small detachment of troops thither for the purpose of securing it. It was on the Sabbath when this order was given, and the detachment proceeded by water to Marble Head, whence they marched to Salem. Before they could arrive at the town, however, the artillery was removed into the country. On discovering this, the field-officer in command of the detachment, hoping to overtake it, marched on, up the country, till he was stopped by a river. There was a drawbridge over this river, but upon his approach it was hauled up by a number of people on the opposite bank. The officer desired them to let this bridge down, which was refused, and perceiving a boat in the river he was about to make use of it for transporting his troops across the river. Seeing this, some country people who were nearer to it, jumped into the boat, and began to cut holes in her bottom with axes. A scuffle ensued between them and some soldiers, which would have ended in loss of life, had not a clergyman judiciously interposed to prevent such a catastrophe. By his interference the Americans were induced to let down the drawbridge, and the officer and his men then passed over. The day, however, was now far spent, and the artillery had been carried too great a distance for him to overtake it, and the officer deemed it expedient to march his men back to Marble Head, whence they re-embarked for Boston-neck. They were not molested on their retreat, but the country people considered this as a triumph and victory over them, and it materially assisted in raising the courage of the colonists.

AFFAIR AT LEXINGTON, ETC.

The next attempt to seize the military stores of the Americans, was attended with more serious consequences. Having heard that a quantity was deposited at the town of Concord, about eighteen miles from Boston, in the night between the 18th and 19th of April, General Gage detached the grenadiers and light infantry under Lieutenant-Colonel Smith and Major Pitcairn, to seize them. The detachment was embarked in boats and conveyed up Charles River to Phipp’s Farm, where they landed, and proceeded in silence and haste towards Concord. But although this was done in the dead of the night, the New Englanders were not asleep. The detachment had not marched many miles when their ears were saluted with the firing of guns and the ringing of bells, the signals for alarm. When they arrived at Lexington they perceived the militia drawn up on a green on the high road, and Major Pitcairn riding

up commanded them as rebels to lay down their arms and disperse. The latter part of this order was obeyed, but as the Americans were retiring several guns were fired upon the king’s troops from behind a wall, and from some adjoining houses. One man was wounded, and Major Pitcairn’s horse was shot in two places. Orders were now given to fire, and eight men were killed and many others wounded. By this time the grenadiers had joined the light infantry, and both proceeded together towards Concord. As they drew near a large body of American militia was seen drawn up under arms on a gentle eminence, and the light infantry was sent to disperse them. In this they succeeded, and they kept them in check until the grenadiers had accomplished the object of their expedition. After this they commenced their march back to Boston; but their backs were scarcely turned when a loud shout was heard that the “lobsters” were afraid of them. The militia had, by this time, been reinforced from the country behind, and militiamen, minute-men, and volunteers of every description, were pouring in from all quarters, to post themselves behind trees and walls, and in houses, near which the troops were to pass. Presently the work of slaughter commenced: an incessant though irregular fire began in front and on both flanks, and the main body of the militia fired upon them from the rear. And what made the attack more discouraging was, that the most destructive fire proceeded from men whom they could not reach, and whose presence was only known by the smoke and effects of their rifles. This continued through all their route back to Lexington, and had not General Gage had the forethought of sending a second detachment to sustain the first, there can be but little doubt that the whole body would have been annihilated. This second detachment met the first at Lexington, and Lord Percy, who was at the head of it, having formed his troops into a hollow square, enclosed the pursued—who were driven before the Americans like a flock of sheep, and gave them time for rest. When they were somewhat refreshed, Lord Percy slowly moved the whole body towards Boston. But even now they were not wholly freed from danger. The militia, who had been treading on their rear, were no longer seen, but every house, every wall, and every tree the troops had to pass, sent forth upon them bullets and rifle shots; the Americans taking care not to expose their own persons to danger. When they reached Boston they had left behind them sixty killed, and forty-nine missing, in addition to which they had one hundred and thirty-six wounded. The provincials had about fifty killed, and thirty-eight wounded; but their loss was more than compensated by the encouragement which this affair tended to give the Americans in general. Elated with the result, they termed it “the glorious victory of Lexington;” and they talked of nothing less than driving the king’s troops from Boston, and restoring the liberty and trade of that town. Instead of an immediate assault, however, they formed themselves into a blockade. Twenty thousand men, under the command of Colonels Ward, Pribble, Heath, Prescot, and Thomas, officers who had served in the provincial regiments during the last war, put themselves in cantonment, and formed a line nearly twenty miles in extent, with their left leaning on the river Mystic, and their right on the town of Roxburghe, thus enclosing Boston in the centre. Their head-quarters were fixed at Cambridge, and they were soon joined by a strong detachment of troops from Connecticut, under the command of General Putnam, who, as soon as he heard of the battle of Lexington, like another Cincinnatus, left his plough in the middle of the field, in order to fight the battles of

his country. Putnam took up such a position with his detachment as to be able to support any part of the line that might be attacked; but General Gage remained perfectly inactive, neither attacking this line, which he might probably have done with effect, as it was without any military consistency, nor erecting any outworks to prevent any sudden advance upon Boston-neck.

MEETING OF THE ASSEMBLIES AND OF GENERAL CONGRESS.

While the Americans were thus in hostile array, the provincial congress of Massachusets adjourned from Concord to Water Town, about ten miles from Boston. It was resolved by this congress that an army of 30,000 men should be raised and established, whereof 13,600 should be of the province of Massachusets Bay. It was further resolved that a letter and delegates should be sent to the several colonies of Hampshire, Connecticut, and Rhode Island, for further assistance and co-operation. Despatches were also sent to Franklin, in England, containing an account of the Lexington battle, and enclosing an address to the people of Great Britain, complaining of the conduct of the troops, professing great loyalty, but appealing to Heaven for the justice of their cause, and declaring their determination to die rather than sacrifice their liberty. At the same time the provincial congress made great exertions to clothe and pay the besieging army, voting a large sum in paper currency, for the redemption of which the faith of the whole province was pledged. They also formally declared that General Gage, by the late transactions, had utterly disqualified himself from acting as governor, or in any other capacity, and that no obedience was due to him, but that he ought to be considered an inveterate enemy. A similar spirit was exhibited in other provinces. At New York military associations were formed, and a provincial congress called; in Jersey the populace took possession of the treasury; and in Philadelphia, the very Quakers renounced their principles of peace, and took up arms as volunteers, under the pretence of self-defence. It was in this state of affairs that Lord North’s conciliatory propositions arrived. These were read first in the assembly of Pennsylvania by governor Penn, who expressed an anxious wish that all due consideration should be given them, and that, if possible, they might become instruments of restoring tranquillity to the country. It was determined by the assembly of Pennsylvania, however, that the union of the colonies to which they were pledged should not be deserted. Similar results followed the reading of them in other provincial assemblies, and all concurred in referring them to the general congress, which was in itself a rejection, since its legality would never be acknowledged by the British parliament.

The general congress met on the 10th of May. Its first acts were to frame resolutions for organising an army, and the emission of a paper currency, guaranteed by the united colonies; to stop all exportation of provisions to the British fisheries, and to every colony or island subject to the British government; to resolve, that by violation of their charter, the people of Massachusets Bay were absolved from allegiance to the crown, and might lawfully establish a new government; and to prohibit the negociations of bills of exchange or any orders issued by the officers of army and navy-agents, or contractors. They also established a general post-office under the superintendence of Dr. Franklin, who arrived soon after the meeting of

congress, and who greatly helped forward the march of revolution. The congress, though still delaying their proclamation of absolute independence, pursued a course after the arrival of Franklin which no longer left their intentions doubtful to any man, by forming the plan of a confederation and perpetual union, the chief articles of which fully showed that such was their aim. After drawing up this plan the congress attended to the army, and they fixed upon Colonel George Washington to be their commander-in-chief. A committee was next appointed to prepare a declaration of the causes that induced them to take up arms against their mother country. After the adoption of this declaration, in which it was said “that they had counted the cost of the contest, and found nothing so dreadful as slavery,” Jefferson was placed on a committee with Dr. Franklin and others, to consider and report on Lord North’s pacificatory resolutions, which was denounced in the same spirit as it had been scouted previously by the provincial assemblies. Two days after this, and in the month of July, congress prepared a second address to the people of Great Britain, in which they vindicated themselves from the charge of aiming at independence—professed their willingness to submit to the acts of trade and navigation passed before 1763—recapitulated their reasons for rejecting Lord North’s proposals, and intimated the hazard the people of England would run of losing their own liberty if America should be overcome. Yet though this address breathed defiance to government, on the very same day another petition was drawn up to the king, which was more moderate than that of the preceding year, and even approached him in a supplicating tone. Addresses were also got up to the inhabitants of Canada, Jamaica, and Ireland, and finally to the lord mayor and livery of the city of London. It is difficult to reconcile the sentiments contained in these declarations, petitions, and addresses. While some passages breathed the spirit of bold and uncompromising defiance, others expressed loyalty of the most ardent nature to his majesty, and unalterable attachment to the mother country. The spirit by which congress was actuated is, however, clearly defined by their proceedings, and by the character of the men who composed it. There was one gentle Dickinson among the number, who still hoped for a reconciliation with Great Britain, but the majority of its members were akin in spirit to the fiery Jefferson, whose turbulency often showed itself during their deliberations. There was, however, no room to doubt as to the determination of the Americans to assert their independence, for, while this congress was sitting, events had occurred which proclaimed that determination to all the world in language which could not be misunderstood. Blood had again stained the soil of America.

[Illustration: 3–079–bunker-hill.jpg BATTLE OF BUNKER’S HILL]

BATTLE OF BUNKER’S HILL.

Towards the end of May 10,000 fresh troops arrived from Britain, under the command of Generals Howe, Burgoyne, and Clinton. As the gauntlet had been thrown down by America, and war had been resolved upon by the English, it might have been expected that active operations would have been commenced forthwith. Such was not the case. An English soldier remarked:—“We were kept on the Neck twisting our tails and powdering our heads, while the Yankees were gathering in our front and in our flanks like clouds.” It seems to be generally acknowledged that this inactivity was

fatal to the cause of the British arms in America, and that if General Gage had employed the troops, so soon as he received such valuable reinforcements, he might have scattered the militiamen and raw troops which hemmed him in, like chaff before the wind. Instead of that, time was given them to increase their force,—to perfect themselves in military evolutions,—to give consistency to their loose lines, and to render the blockade more effective. At length, however, this dreamy inactivity was broken. On the 8th of June, grown bold by impunity, the provincial congress of Massachusets Bay resolved that the compact between the crown of Great Britain and that colony was dissolved by the violation of their charter; and they recommended the people to establish a new and independent government. Four days after this General Gage, still hoping to restore tranquillity without proceeding to extremities, issued a proclamation, offering a full pardon in the king’s name to all who would forthwith lay down their arms, excepting only Samuel Adams and John Hancock, whose offences were described as “being too flagitious to admit of any other consideration than that of condign punishment.” The proclamation declared that all those who should not accept the proffered mercy, or who should protect, assist, supply, conceal, or correspond with such, were to be treated as rebels and traitors. It also imported that as a stop was put to the due course of justice, martial law should be established till tranquillity was restored. This proclamation was considered by the Americans a prelude to hostilities, and preparations were made by them for a final contest with their mother country. And strange to relate they were still allowed to act on the offensive. On the night of the 16th of June a strong detachment of the blockading army passed unchallenged and unobserved over Charlestown-neck, and occupied Bunker’s Hill, which was situate at the entrance of the peninsula on which that town stood, and overlooked every part of Boston. In the morning General Gage saw this important and formidable height, which he had entertained some thoughts of occupying himself, covered with works which seemed to have risen as it were by magic, and with troops that were beginning to fire on Boston-neck and the shipping. The general now awoke from his slumbers. A battery of six guns was opened upon the Americans from Copp’s-hill in Boston, and about the hour of noon a detachment from the English army was carried across Charles River, which is about the breadth of the Thames in London, and landed upon the peninsula of Charlestown. This detachment was under the command of General Howe and Brigadier Pigott, who had orders, at all risks, to drive the provincials from their works, and to occupy the hill. The troops marched slowly, formed in two lines, but, on approaching Bunker’s Hill, Howe perceived that the works were of more importance than had been imagined, and that fresh columns of Americans were arriving every minute, and he therefore halted, and sent to Gage for a reinforcement. New troops were sent, and the whole, amounting to more than two thousand men, proceeded to the attack. In doing so Howe seems to have adopted the very worst mode which could have ben devised for attacking the provincials. Instead of leading the troops in the rear of the intrenchment, where there was no cannon to bear upon them, he led them up the hill right in front, where the American artillery was placed full in their faces. This was a most disastrous step. The troops were formed in two lines, with the light infantry on the right wing, led by Howe, and the grenadiers on the left, led by Pigott. In their front were a few small field-pieces and howitzers, which began to fire at intervals, during which the troops

halted. In advancing the left wing was fired on from some houses in Charlestown, and in the conflict which ensued that town was set on fire and was soon burnt to the ground. The whole detachment now moved up the hill, and the Americans, secure behind their entrenchments reserved their fire till the British troops were almost close to the muzzle of their guns. They then opened a terrible discharge of cannon and musketry, and their volleys were so rapid and skilfully directed that the British troops recoiled, and many fled to the boats which had conveyed them, over the river. At this moment General Clinton crossed Charles River with a number of resolute officers, and having succeeded in rallying the fugitives he made them re-ascend the hill, and join in a general charge made on the Americans, with fixed bayonets. This time they succeeded. The provincials were driven from their works, and they ran for their lives down the hill in their rear. The troops took possession of Bunker's Hill, but it was purchased at a great cost: 1050, including eighty-nine commissioned officers, being either killed or wounded, while the Americans scarcely suffered a third part of that loss.

{GEORGE III. 1775–1776}

GENERAL WASHINGTON.

General Washington was great-grandson to John Washington, a gentleman of respectable family, who had emigrated from England about the middle of the preceding century, and had settled at Potomac, in Westmoreland county, in the colony of Virginia. At this place the general was born, and after receiving a plain education, he learned something of the business of land-surveying, and was in the eighteenth year of his age appointed surveyor of the western part of the territory of Virginia, by Lord Fairfax, the proprietor of that country. After this, however, he embraced the profession of arms, and distinguished himself in the Canadian war, and especially on the day of Braddock's defeat, when, at the head of the provincial militia, he covered the retreat of the British troops, and saved them from destruction. Subsequently, when the French were driven from Canada and the war was over, Washington quitted the army, and began his political life as a member of the general assembly, to which honour his valour had been the chief instrument of raising him. Shortly after his retirement he married a young lady, who brought him a large fortune, and for sixteen years his attention was principally divided between the management of his estates and his duties as a member of the provincial legislature. When the quarrel first commenced between America and the mother country he took no decided part, and when it became serious, he was one of those who still hoped to preserve the ties of allegiance which bound the colonies to the parent state unbroken. When the rupture became inevitable, however—when the sword had been drawn and blood had been shed, Washington stood forward as the champion of independence. Perhaps he was the more induced to take this step from an innate love of rank and power. He had joined the first congress at Philadelphia, and his high character and the conspicuous part he had borne in the Canadian war, caused him then to be appointed on all committees where military knowledge was requisite. Doubtless he foresaw that should matters be brought to extremities he would be called upon to

take a prominent part in the strife. And in this view he was not mistaken. As before related, at the second general congress, when it was necessary to select a commander, he was unanimously chosen by his colleagues to the high office. It is said that he accepted the command with great diffidence, and it is certain that he did so in the spirit of a true patriot, for he declined all compensation beyond his actual expenses.

The choice which congress made of a commander was favourable to the cause of American independence. At this time Washington was in the prime and vigour of life, and his fame and deportment were such that he could command reverence even from the most fanatical part of the American troops, who were disposed to own no other leader except “the Lord of Hosts.” His bravery was proverbial, and his after operations sustained his fame. It was immediately after the battle of Bunker’s Hill that he was appointed commander-in-chief, and when he arrived at head-quarters in Cambridge, he found the blockading army considerably discouraged by the defeat sustained, and otherwise in no very satisfactory condition. Much had been done, but still more remained to be done. Complaining of his numerous deficiences, he thus wrote to congress:—“We have no store of ammunition, no tools for intrenching, no engineers to direct the construction of military works; we have no money, and want clothing: there is a total laxity of discipline; and the majority is not to be depended on in another action.” If the English had, at this time, made a general assault, the Americans must inevitably have been driven from all their positions, and the war would soon have been over. After the battle of Bunker’s Hill, however, the same listless inactivity prevailed as before, as though the capture of that hill was a full and final triumph. Thus favoured, Washington set about remedying his defects in good earnest. During the summer and autumn, he was occupied in organising his troops, collecting his military stores, and concentrating his forces. Perceiving that it would be madness to attempt an assault on the positions of the British troops, as some advised, he directed the formation of entrenchments and works to defend his own from attack. In order to give consistency to his lines he contracted them: the centre, including the reserve, and under his own command, being at Cambridge; the right wing, commanded by General Ward, resting on Roxburghe; and the left, under General Lee, near the Mystic river. The British troops were thus completely blockaded by land, and cruisers being fitted out by congress for the purpose of intercepting military stores and supplies destined for the British forces, considerable distress soon began to prevail among them; yet nothing was done to rescue them from their perilous situation. During the rest of the year the bands played “God save the King,” and the Americans, as if in the spirit of mockery, responded to the national anthem, by playing “Yankee Doodle.” In the midst of this inactivity, on the 10th of October, General Gage was recalled, and the command of the British troops devolved on General Howe.

{GEORGE III. 1775—1776.}

[Illustration: 3–081–ticonderoga.jpg TICONDEROGA]

EXPEDITIONS AGAINST TICONDEROGA AND CROWN POINT, ETC.

Early in this year a party of Connecticut gentlemen, having procured a loan of money, concocted a scheme for surprising the important post of Ticonderoga, which was situate on a promontory near the junction of lakes George and Champlain, and the key of communication between New York and Canada. A few men were raised, which chiefly consisted of a hardy race called Green Mountain Boys, and Ethan Allen, a Presbyterian volunteer, was placed at their head. This force was unexpectedly joined by Colonel Arnold, who after the battle of Lexington had received a commission for the same purpose from the provincial congress of Massachusets Bay. Arnold agreed to act under Allen, and they proceeded together towards Ticonderoga. Captain Le Place, who commanded at this fort, was a friend of Ethan Allens, and taking advantage of this circumstance, Allen left his men in a wood hard by, and went to the captain, and induced him to lend twenty of his soldiers for the pretended purpose of assisting him in transporting some goods across the lake. Allen having obtained his request, next made the soldiers drunk, and then on the approach of night he drew his people from the woods, and hastened to the fort. There were yet about forty soldiers with the captain, but expecting no mischief there was not a single sentry on duty, and the followers of Allen rushed into the place undetected, and bade the soldiers lay down their arms. The captain asked by what authority they required him to surrender the king’s fort, to which Ethan Allen replied, like a Puritan of old times, “I demand it in the name of the Great Jehovah, and of the congress.” There was no alternative, and the captain responded to the demand: the place was captured with all its store of ammunition and provisions. Ethan Allen next turned his attention to the fort of Crown Point, which was reduced without any difficulty, as there were neither found guard nor garrison therein. Allen also surprised Skenesborough, a place occupied by Major Skene, with his son and a few negroes, who were all made prisoners. Intelligence of these events soon reached, congress; but though they rejoiced at the spirit of enterprise displayed by Allen and his men, they still feared that they might be charged with aggression at a time when they were expressing a desire of accommodation; and under these circumstances they recommended the committees of New York and Albany to remove the stores to the south of Lake George, in order that they might be restored when the breach was healed between Great Britain and her colonies.

EXPEDITION AGAINST CANADA.

On the return of Allen from this enterprise, Colonel Arnold consented to remain in garrison. Arnold, however, was not of a temperament to remain inactive. Seeing a small sloop of war lying at anchor, at St. John’s, at the north end of Lake Champlain, and feeling the importance of the possession of this vessel, which was the only armed vessel the English government then had in that water, he armed a little schooner, put some of the guns he had captured upon large flat-bottomed boats, embarked his men, and surprised and captured the sloop. Having begun his career with such success, Arnold projected more extensive operations. In the month of June he urged on congress the advantages of an expedition to Canada, and offered with 2000 men to reduce the whole province. His recommendations were adopted: 3000 men were sent, under the command of General Schuyler and Montgomery, to Crown Point and Lake Champlain.

This force embarked in flat-bottomed boats to cross the lake and descend the river Sorel, but when they landed they were attacked by a strong body of Indians, who obliged them to steer their way back and return to the Isle Aux Noix. Here Schuyler fell sick, and the command then devolved on Montgomery, a man full of courage and enterprise, and whom the Americans compare to Wolfe.

On the arrival of this invading force, General Carleton, governor of Canada, had only two regiments of about four hundred men each, at his disposal. These he ordered to Fort St. John, about twelve miles in advance of Montreal, where they were augmented by a few officers sent by General Gage. These officers arrived in July, and about the same time Colonel Johnstone arrived at the same place with seven hundred Indians of the Five Nations, all skilful in the use of the musket as well as the tomahawk. These Indians were ancient enemies to the frontier Americans, and they proposed an immediate attack on Ticonderoga and Crown Point. Carleton, however, thought proper not only to reject their offer, but to refuse their services in any shape. This was a sad oversight. Foregoing their enmity to the Americans, these seven hundred Indian warriors joined Montgomery, and he immediately resolved to lay siege to Fort St. John, the only place that covered Montreal. At the same time, Ethan Allen, who had now returned to the scene of action, conceived that he could take Montreal by a _coup de main_ in an easier direction. He attempted this with a hundred and fifty men in the dead of the night, but the adventurous Presbyterian was not only defeated, but captured, and put in irons as a felon and a traitor. In the mean time Montgomery had detached three hundred men with two six-pounders to reduce Fort Chamblée, situate on the tributary river Sorel, about five miles above Fort St. John. His principal object in advancing against this fort was to obtain sufficient ammunition wherewith to reduce that of St. John, and he succeeded to his utmost wishes. The fort was reduced, and Montgomery found plenty of ball, powder, cartridges, and arms in it, and he then pressed the siege of St. John’s with great vigour. The garrison offered a brave resistance, but it was all in vain: the fort was surrendered, and Montgomery dashed across the river and entered Montreal without opposition. As this town carried on an extensive trade, the American troops obtained a good supply of proper clothing, after which their commander, having secured the goodwill of the inhabitants by his liberal treatment of them, resolved to advance upon Quebec, the capital of the province. He carried out his resolution, although his volunteers, anxious to get back to their firesides, quitted his ranks by hundreds, and he had to leave a garrison in Montreal, so that when he put his men in marching order his force did not exceed four hundred men. But Montgomery hoped to meet Arnold under the walls of Quebec, and nothing daunted by the desertion of his soldiers, and the smallness of his force, he began to descend the St. Lawrence.

In the meantime Arnold had been entrusted with the execution of a daring plan of his own forming. At the head of 1200 men, consisting chiefly of New Englanders, he traversed the inhospitable deserts of the northern states into Canada; deserts which had never previously been trodden by the foot of a white man. Owing to the obstacles he encountered in his dreary journey, he did not reach the first Canadian settlements on the river Chaudière, which flows into the St. Lawrence, until the 3rd of November. On arriving there his troops were famished, having been long subjected to hunger,

and reduced even to the necessity of eating the leather of their shoes. The first step of Arnold was, therefore, to divide them into separate companies, each of which ran off as fast as it could to obtain food, shelter, and rest in the vicinity of the mouth of the Chaudière. Arnold himself rested for two or three days at a small village, in order to circulate the manifestoes he had brought with him, and to allow his rear and stragglers to arrive. Having rested a few days, on the 9th of November Arnold reached Point Levi, on the right bank of the St. Lawrence, and immediately opposite to the town of Quebec. It has been conjectured that if he could have crossed the river at once, Quebec would have been captured. The wind, however, was so strong at the time of his approach, that he could not venture, and this gave time to Colonel Maclean and his Highlanders, who had been falling back from Fort Chamblée, taken by Montgomery, to get into the menaced city. On the 14th, the wind having, abated, Arnold crossed the St. Lawrence and landed in safety. On reaching Quebec he formed his men on the Heights of Abraham. But they were ill provided for maintaining a siege, having no artillery, and therefore Arnold proposed nothing more than to cut off supplies from the garrison till the arrival of Montgomery. For this purpose he descended from the Heights of Abraham and retired to Point Aux Trembles, twenty miles above Quebec. At this place he was very near taking General Carleton and his staff prisoners, for they had only quitted that place a few hours before his arrival. Carleton, however, escaped, and arrived in safety at Quebec, where he instantly set about making every preparation for its defence. Soon after the two American corps joined, and they marched together to lay immediate seige to Quebec. Montgomery had brought a little artillery with him, and about the 20th of December they opened a six-gun battery within seven hundred yards of the walls. Their artillery, however, was too light to effect a breach, and they were all, moreover, soon dismounted by the town-guns, fired by some seamen under the direction of Colonel Maclean. The American commanders now removed their guns to a safer distance, still continuing their ineffectual fire, with the hope of amusing the garrison, and concealing their design of making an assault in another direction. They now, in fact, were contemplating a desperate enterprise, and one to which it was a long time before they could obtain the consent of the officers and men. It was not, indeed, till the New Englanders were promised the privilege of plundering the town, that they would accede to the wishes of their commanders. But this golden bait was swallowed, and the men promised to do all that was wished. Accordingly, on the last day of this year, between four and five o’clock in the morning, and in the midst of a violent storm of wind and snow, it was determined to storm the place. The force was divided into four small columns for this purpose: two of which, under Majors Livingston and Brown, were to make feigned attacks upon the upper town, while the other two, led by Montgomery and Arnold, were to make real attacks on opposite sides of the lower town, where all the wealth of Quebec was deposited. Montgomery had succeeded in passing the first barrier, that of the block-house, and had reached the Pot-ash battery, which he was on the point of attacking, when he was shot dead, with Captain Macpherson, his aide-de-camp, and several other officers, with a well-charged gun from that battery. The rest of the column which he led instantly fell back, and in the mean time Arnold himself had been severely wounded. He was passing through the narrow street of the Faubourg St. Roque towards the Saut de Matelot, where there

was a strong barrier with a battery of two twelve-pounders, one of which on his approach was fired, and shattered his leg in so fearful a manner that he was carried off the field to the rear in anguish. One Morgan now led the column, and he rushed forward and took this battery, and then pushed rapidly to another about forty paces distant. But here he was foiled. Guns loaded with-grape shot met him and his men in the teeth, while a fire of musketry was opened on both their flanks, so that they were compelled to retreat into some stone houses in the suburb of St. Roque. The attempt signally failed. In the end Morgan and his followers, to the number of 340 men, surrendered themselves prisoners of war, and nearly one hundred were slain. The rest still continued to blockade the city, encamping in the best manner they could behind the Heights of Abraham, and being still commanded by Arnold. They maintained their position for four long wintry months, and reduced the city to great distress, but they were finally compelled to give up the enterprise.

DISPOSITION AND REVOLT OF THE VIRGINIANS.

In the great southern state of Virginia Lord Dunmore, the governor, made a bold stand in support of the authority of the mother country. Knowing that it was about to be used against him, he seized all the gunpowder in the magazine at Williamsburgh, and put it on board a schooner then lying in James’s River. This, however, involved him in a quarrel with the corporation of that town, who demanded the powder back again. This was refused, and Patrick Henry, the orator, encouraged by the news of the victory at Lexington, excited some young Virginians to fly to arms, and placing himself at the head of them, set out on his march to recover the powder by force. He was prevented from making the attempt by some of the delegates to the general congress, who advised him to be satisfied with a sum of money offered in lieu of it by the king’s receiver-general. A few days after, however, Lord Dunmore was compelled to deliver up all the arms and powder that had been left on shore, and to take refuge with his family in the Fowey man-of-war then lying at York. At the same time, government-house was fortified and surrounded with artillery. A series of irritating messages and letters then passed between his lordship and the burgesses; the former declaring that his life was not safe among them, and the latter asserting that he had nothing to fear. Lord Dunmore, however, felt that he had cause for fear, and he resolved to defy the provincials. Having divested himself of all authority, he collected a small naval force, and carried on a sort of predatory warfare against the province. Previous to his taking refuge in the Fowey man-of-war he had stung the Virginians to the quick, by declaring that since they were so eager to abolish a fancied slavery, in a dependence on Great Britain, he would one day try how they liked an abolition of real slavery, by giving freedom to all their negroes and indentured servants, who were little better than white slaves. This plan he endeavoured also to put into operation. Having established his head-quarters at Norfolk, he proclaimed freedom to all slaves who would repair to his standard, and fight for the king. Most of the negroes who had the opportunity of escaping from their masters repaired to his standard; and if he could have opened a road to the slaves in the interior of the province, his measures would doubtless have been fatal to the planters. The Virginians, however, were on the alert, and they sent a force against him which compelled him to retire on-board again for safety. The Virginians then took possession of the town of Norfolk, but Lord

Dunmore, incensed at their conduct, set fire to the wharfs, and the flames spreading, the whole town was soon reduced to ashes, and property was consumed to the value of £300,000. This was an unfortunate occurrence, for it totally alienated the Virginians from the British government. Lord Dunmore lingered in the river, or on the coast, till the following summer, when, unable any longer to obtain provisions, he joined the English army under Lord Howe. The cause for his lingering thus long in the river appears to have been the hope he entertained of being able to restore the affairs of government in the province. He had some reasons for entertaining such a hope, for there were many Virginians averse to the revolution or to its leaders, and who anxiously desired that the cause of government might prevail. This was clearly manifested at his departure for the main army at Boston-neck, for many prepared to follow him by land, convinced that there was no safety for men who entertained notions of loyalty. The houses, indeed, of all those who wished to preserve their connection with England, on whatever principles their wish might be grounded, were burnt to the ground, while their estates were destroyed and their lives kept in constant danger.

CONDUCT OF CONGRESS TOWARDS NEW YORK, ETC.

Although the province of New York had sent delegates to congress, and had been among the very first to attack the British settlements in Canada, yet great uneasiness was felt with respect to that colony. It was well known that many zealous loyalists lived in the province, and it was also defenceless and open to the king’s troops by sea. Under these circumstances congress appointed a Committee of Safety, consisting of some of the most determined of the revolutionists, who were appointed to take especial charge of this province. General Wooster was also directed to march into New York, with some regiments of Connecticut men, With the double object of keeping down the royalists, and preventing, if possible, the landing of any British troops. The presence of the Connecticut men, who quartered themselves near Haerlem, five miles from New York, did more harm, however, to the cause of the revolution than it did good, for it led to some severe quarrels between them and the New Yorkers, as well as provoked the naval force in the neighbouring waters. Congress, in fact, had much difficulty in preserving their cause in New York. On one occasion they even issued an order that all such arms as were fit for the use of the troops raised in the colony of New York, and which should be found in the hands or custody of any person who had not signed the general association, should be seized for the use of the said troops. At a later period, congress even went a step further than this; for they intimated to the members of the revolutionary government, that they were to arrest and secure every person in their respective colonies, whose going at large might, in their opinion, endanger the safety of the colony or the liberties of America. Warned in time, Tryon, the governor of New York, whom congress before had talked of seizing, retired on board the Halifax packet, still communicating, however, with the royalists on shore. In other colonies there was still less difficulty in sweeping away the king’s governors. In North Carolina, Governor Martin, after seeing his proclamation burnt by the common hangman, sought shelter on board a ship-of-war that was lying off Cape Fear: in South Carolina, Lord William Campbell, after vainly seeking to rally the royalists, was obliged to follow his example; and

though in many of the other colonies the governors were not compelled to flee for their lives, yet their authority was eventually superseded, and they were compelled to bow to the storm by retiring from their seats of government. One common spirit pervaded the United Provinces of America, though it was more rampant in some colonies than others. The grand focus of rebellion was still at Massachusets Bay, where, towards the close of the year, in the course of predatory hostility, the town of Falmouth was cannonaded and totally destroyed, in revenge for some offence relative to supplies, and on the refusal of its inhabitants to deliver up its arms. In return for this injury congress passed an act, in November, granting letters of marque and reprisal, and establishing courts of admiralty for the trial and condemnation of British ships. Congress also determined to meet the force of Britain on her own element, and issued orders for building a fleet of thirteen ships. The garrison of Boston was supplied with provisions from England, a proportion of which was intercepted by the American cruizers and the troops suffered greatly, likewise, from the inclemency of the season. The inhabitants, also, shared in their calamities, and their sufferings were greatly increased by several edicts, issued by General Howe. Such was the state of America at the close of this eventful year.

PROCEEDINGS IN ENGLAND.

While America was in arms, England was in a state of agitation. It has been seen that soon after Wilkes had presented the violent address and remonstrance of the livery to the king, that his majesty informed him that he would receive no more petitions of the lord mayor and aldermen but in their corporate capacity. Wilkes converted this into a fresh wrong; and at the very next meeting of the common-hall another address, still more violent in its tone, was approved. The king resolved that he would not receive this petition sitting on the throne, and when this was reported to the livery they resolved that it was a direct denial of their rights; that the remonstrance should be printed in the newspapers; and that the city members should be instructed to move for an impeachment of the evil counsellors who had planted Popery in America, and were the advisers of a measure so dangerous to both the king and his people, as that of refusing to hear petitions. This latter resolution, however, was not founded in truth—the king had simply said that he would not receive it sitting on the throne, and the livery had resolved not to present it under any other circumstances. After all, the common-council thought proper to agree to a more moderate remonstrance, which his majesty received, and to which he replied, that, while the constitutional authority of this kingdom was openly resisted by a portion of his American subjects, he owed it to the rest of his people to continue to enforce those measures by which alone their rights and interests could be asserted and maintained. Irritated by these and other proceedings, government, on the 23rd of August, issued a proclamation for suppressing rebellion, preventing seditious correspondence, etc. Wilkes, as lord mayor, received orders to have this proclamation read in the usual manner at the Royal Exchange. This order was obeyed; but the patriot at the same time contrived to hold it up to the public contempt by causing it to be read by one of the city officers, attended only by the common-crier, contrary to the common rules of decency and to all precedent. Soon after this the petition of congress was laid before the king by Richard Penn and Arthur Lee, to whom the task

of presenting it had been deputed. It was well known to all the world that the Americans had lifted up the standard of revolt, and were assembled in hostile array against his majesty's forces. This petition, therefore, though it contained some loyal expressions, did not express the real sense of the body it proceeded from—the words of their mouths might be smoother than butter, but war was manifestly in their hearts. Hence his majesty very justly considered the whole thing to be an insulting mockery, and as congress likewise had neither been recognised by himself nor his parliament, he resolved to give it no answer. But it was the fate of the king, at this time, to have all his actions and words misinterpreted. Although no man in his senses, whether Whig or Tory, could have been so blind as not to see he was perfectly justified in adopting this resolution, since his troops in America had been slaughtered both at Lexington and Bunker's Hill, yet it was interpreted into harshness and obstinacy. A loud outcry was raised against it by a portion of the nation, including more especially the Whig portion of the city of London. An address, containing 1171 signatures, and purporting to emanate from "the gentlemen, merchants, and traders of London," was got up, which reiterated the sentiments contained in the city of London petitions, and predicting the most lasting and deadly consequences from the quarrel between England and America. Three days after this, however, a counter-address was presented to his majesty from another section of the merchants and traders of London, which was followed by others of a similar class from all parts of the United Kingdom. In fact, the great body of the nation was still on the side of the king and the government. Intelligence of the determined hostility of the colonists had the effect even of converting foes into friends. In the course of the autumn, the very liverymen of London, to the number of 1029, signed an ultra-loyal address, which contained stronger language than the counter petition of the merchants and traders of that great city, or of any other address presented on the same side of the question. It said:—"A malignant spirit of resistance to law and government has gone forth amongst the Americans, which we firmly believe has been excited and encouraged by selfish men, who hope to derive private emoluments from public calamities—from the councils, the persuasions, the influence of such men, may God protect your majesty! The interest, the honour, the sovereignty of your kingdom of Great Britain, are now at stake—as the guardian of those, we trust you will ever assist and preserve them." The petitioners pledged themselves to use all their exertions in support of the laws and government, and finally implored his majesty's clemency towards all those of the colonists who might return to their duty. There can be no doubt that ministers were active in procuring such addresses as these; but at the same time it is equally certain that the sentiments they contained proceeded from the hearts of the people. The outrages committed at Lexington and Bunker's Hill had, in truth, exasperated the people at large, and this exasperation was increased tenfold when, at a later period, news arrived of the invasion of Canada. They saw that it was a rude attempt to pluck a jewel from the British crown, and it excited feelings of resentment in their breasts deep and lasting. Not a few Englishmen who maintained that the Americans were justified in taking up arms to assert their own rights were converted by this step adopted by congress. In a word, the cause of the mother country was generally considered just, and was, therefore, popular.

PROSECUTION AND TRIAL OF HORNE TOOKE, ETC.

Government was so well supported by public opinion, that wonder is excited at the serious notice which it took of some attempts made by a few factious demagogues of creating popular commotion, and of raising themselves into an unenviable celebrity. Among this class John Horne Tooke stood pre-eminently forward. Horne Tooke was first the supporter, and then the rival of John Wilkes, but he had now completely succeeded him in the favour of a certain dubious class of patriots. This was the natural consequence of tilings. John Wilkes having been raised to the dignity of lord mayor, and having regained his seat in parliament, although he was still in some degree a thorn in the sides of ministers, had become more circumspect than heretofore. He no longer harangued at the public meetings of the populace, and was hence looked upon as a renegade, and Horne Tooke stepped into his place. The supplanter proved as bold as the man he had supplanted—stern “patriot” as Wilkes had been. This was seen in the midst of the agitation into which England was thrown by the events which had happened in America. At a meeting of the “Society for Constitutional Information,” which had been formed in the metropolis from the wreck of the “Bill of Rights Club,” Tooke moved, “that a subscription be raised for the relief of the widows, orphans, and aged parents of their American fellow-subjects, who, preferring death to slavery, were, for this reason only, murdered by the king’s troops at Lexington and Concord, on the 19th of April, 1775.” No mention was made of the widows and orphans of the British troops, which had been mown down by the rifles of the Americans from their hiding-places. That was altogether another question: they might or might not be supported by government, since it was clearly evident, from Horne Tooke’s motion, that they had no business to obey the orders of their superiors. Horne Tooke’s humane motion as it stood, therefore, was adopted—a vote of £100 was carried, and ordered to be transmitted to Dr. Franklin. The members, however, generally comprehended the peril of the case, and hesitated to sign the order. But Horne Tooke was as bold as he was humane, and he took all the responsibility on his own shoulders by affixing his name to it. The whole affair was clearly too ridiculous for the notice of government; but he was nevertheless prosecuted, sentenced to pay £200, to be imprisoned one year, and to find securities for good behaviour during three more. This was just the thing the patriot wanted. He had an opportunity of making a sarcastic speech, and his hopes were elated by the prospect of enjoying a still larger share of the popular favour. Probably he felt certain that he should one day carry the city mace, like his ancient friend John Wilkes. The best way to crush a demagogue is to let him pass unnoticed. Notwithstanding, the offence of Tooke was a direct challenge to government, and if it had refused to notice such an insult, its authority might have been despised by the section he headed, and therefore greatly diminished. Government, however, laid itself open to animadversion, by committing Mr. Sayre, an American merchant, to the Tower, on a charge of high-treason. It was declared on oath, by Mr. Richardson, an adjutant in the Guards, that Mr. Sayre had told him he intended to seize the king at noon-day, in his way to the house when it again met, to carry him out of the kingdom, occupy the Tower, and overturn the government. This would have been clearly the labour of “another Hercules,” and the information should have been treated with a sneer of

contempt; but Lord Rochford seems to have considered that the enterprise of this most magnanimous American was not impracticable, and he therefore committed him to the Tower. But whether Mr. Sayer proved the adjutant's statement to be false, or whether the king conceived that he was in no danger, does not appear, but certain it is that the American was set at liberty, after five days' incarceration, and Lord Rochford had to pay him £1000 damages, on a suit for illegal imprisonment.

MEETING OF PARLIAMENT.

Parliament met this year on the 26th of October. The speech from the throne, on this occasion, was unusually long and energetic, and, as might be expected, its chief topic was the revolt of the colonies. His majesty remarked:—"Those who have too long successfully laboured to inflame my people in America by gross misrepresentation, and to infuse into their minds a system of opinions repugnant to the true constitution of the colonies, and to their subordinate relation to Great Britain, now openly avow their revolt, hostility, and rebellion. They have raised troops, and are collecting a naval force; they have seized the public revenue, and assumed to themselves legislative, executive, and judicial powers, which they already exercise in a most arbitrary manner, over the persons and properties of their fellow-subjects; and although many of these unhappy people may still retain their loyalty, and may be too wise not to see the fatal consequences of this usurpation, and may wish to resist it; yet the torrent of violence has been strong enough to compel their acquiescence, till a sufficient force shall appear to support them. The authors and promoters of this desperate conspiracy have, in the conduct of it, derived great advantage from the difference of our intention and theirs. They only meant to amuse, by vague expressions of attachment to the parent state, and the strongest protestations of loyalty to me, whilst they were preparing for a general revolt. On our part, though it was declared in your last session that a rebellion existed within the province of Massachusets Bay, yet even that province we wished to reclaim, rather than subdue. The resolutions of parliament breathed a spirit of moderation and forbearance; conciliatory propositions accompanied the measures to enforce authority; and the coercive acts were adapted to cases of criminal combination among subjects not then in arms. I have acted with the same temper—anxious to prevent, if it had been possible, the effusion of the blood of my subjects, and the calamities which are inseparable from a state of war; still hoping that my people in America would have discerned the traitorous views of their leaders, and have been convinced, that to be a subject of Great Britain, with all its consequences, is to be the freest member of any civil society in the known world. The rebellious war now levied is become more general, and is manifestly carried on for the purpose of establishing an independent empire. I need not dwell upon the fatal effects of the success of such a plan. The object is too important—the spirit of the British nation too high—the resources with which God hath blessed her too numerous—to give up so many colonies, which she has planted with great industry, nursed with great tenderness, encouraged with many commercial advantages, and protected and defended at such expense of blood and treasure." His majesty continued, that it was now necessary to put a stop to these disorders, and that, for this purpose, he had greatly increased his naval establishment, and augmented his land-forces. He had sent, he said,

Hanoverian troops to Gibraltar and Port Mahon, to replace such British regiments as should be drawn from those garrisons for service in America; and he had received friendly offers of foreign assistance. His majesty also professed his readiness to forgive the colonists when they became sensible of their error; for which purpose, to prevent inconvenience, he would give, he said, a discretionary power to commissioners to grant general pardons, who might, he thought, be likewise entrusted with authority to restore the free exercise of its trade and commerce to any colony on making its submission. He concluded by informing both houses, that he saw no probability of any impediment to his measures from the hostility of foreign powers, since they had expressed their friendly assurances.

The address proposed by ministers was, as usual, a mere echo of the speech, and an amendment was proposed in the commons, by Lord John Cavendish, recommending that the whole should be expunged except the _pro forma_ introductory paragraph, and that the following should be substituted,—“That they beheld with the utmost concern the disorders and discontents in the colonies rather increased than diminished by the means that had been used to suppress and allay them; a circumstance alone sufficient to give them just reason to fear that those means were not originally well considered, or properly adapted to their ends. That they were satisfied by experience that the misfortune had, in a great measure, arisen from the want of full and perfect information of the true state and condition of the colonies being laid before parliament; by reason of which, measures injurious and inefficacious had been carried into execution, from whence no salutary end could have been reasonably expected; tending to tarnish the lustre of the British arms, to bring discredit on the wisdom of his majesty’s councils, and to nourish, without hope of end, a most unhappy civil war. That, deeply impressed with the melancholy state of public concerns, they would, in the fullest information they could obtain, and with the most mature deliberation they could employ, review the whole of the late proceedings, that they might be enabled to discover, as they would be most willing to apply, the most effectual means of restoring order to the distracted affairs of the British empire, confidence to his majesty’s government, obedience, by a prudent and temperate use of its powers, to the authority of parliament, and satisfaction and happiness to all his people. That by these means they trusted to avoid any occasion of having recourse to the alarming and dangerous expedient of calling in foreign forces to the support of his majesty’s authority within his own dominions, and the still more dreadful calamity of shedding British blood by British arms.” An acrimonious debate followed this proposal, in which the opposition vehemently arraigned the principle and conduct of the contest; assumed the facts contained in the speech to be untrue; condemned the confiding such important fortresses as Port Mahon and Gibraltar to foreigners; and exposed the idea of conquest to ridicule. In reply, Lord North urged the necessity of regaining the colonies, and exposed the extravagant pretensions of the colonial assemblies, as well as of the general congress, and the encroachments on all the rights of the parent state. He also defended the conduct of ministers, maintaining that they had tried conciliation, but that the attempt had signally failed: lenity on the part of government and parliament being construed by the Americans into weakness and fear. Parliament had, he said, during the last session obviated the

objections made to the right of taxing their colonies by permitting the Americans to tax themselves in their own assemblies; and yet not one assembly would offer a single shilling towards the common exigencies of the state. He observed, that to repeal every act passed relating to the colonies, since the year 1703, would indeed terminate the dispute, as from that moment America would be raised to independence: at the same time he vindicated those acts from the charge of being either ungenerous or unjust. The amendment was rejected by a majority of two hundred and seventy-eight against one hundred and eight, and the original question was then carried without a division.

A similar amendment was moved in the house of lords by the Marquess of Rockingham, and a debate equally warm ensued. Lord Gower frankly avowed that he with his brethren in office had been misled in their conduct with respect to American affairs. New York, he observed, had been forced into hostile measures by the insurgents of Connecticut, and he predicted that if the friends of government were well supported by a force from England, the colonies would be brought to a sense of their duty without the shedding of more blood. The Earl of Shelburne termed this prediction rash, and advanced it as an incontrovertible fact, “that the commerce of America was the vital stream of this empire.” At the same time, while he considered that the independence of the colonies would be the result of the contest, he confessed that this result would be the ruin of Great Britain. The house was next startled with the declarations made by the Duke of Grafton, now lord privy seal. His grace boldly condemned all the proceedings with regard to America during the last twelve months, asserting that he had been deceived and misled upon the whole subject, and that ministers had induced him to lend his countenance to those measures, by withholding information and misrepresenting facts. Grafton also declared that nothing less than a total repeal of all the American acts which had passed since the year 1763, could now restore peace and happiness, or prevent the most fatal consequences to this country: consequences, he said, which he could not think of without the utmost degree of grief and horror. He concluded by declaring that in his present ill state of health, nothing could have induced him to have left his house, but a conviction of his being right,—a knowledge of the dangerous state of the country, and a sense of what he owed to it, as well as to his conscience. The Bishop of Peterborough, who had spoken and voted for coercive measures in previous sessions, acknowledged a similar change in his sentiments to those of the Duke of Grafton, and imputed his previous views to misinformation, and deception on the part of the ministers. This defection, however, did not produce much effect in the house. Ministers descanted powerfully on the great question at issue,—using similar arguments to those which had been employed in the commons, and in the end the Marquess of Rockingham’s amendment was rejected by a majority of sixty-nine to twenty-nine, while the original address was carried by seventy-six to thirty-three, including proxies. A protest was signed by nineteen peers.

On the report of the address in the commons, the opposition took occasion to go over nearly the whole of the ground again. The main stand which they took, however, in this debate, was the measure of entrusting Gibraltar and Minorca, the keys of the Mediterranean, to Hanoverian troops. This they maintained was repugnant to the Bill

of Rights, and an alarming precedent of foreigners introduced, and armies raised by a British monarch without the consent of parliament. It was, in fact, loudly denounced as illegal, and in the highest degree unconstitutional. In answering this objection, Lord Thurlow reminded the house that the clause in the Bill of Rights embraced no part of the king's dominions beyond the limits of Great Britain; that it did not extend to the colonies; and that not a man had been brought, or was to be brought into the kingdom without the consent of parliament. Wedderburne urged similar arguments, and he, with others, represented the urgent necessity of the case, and the danger of delay. A precedent was also quoted for bringing troops into England at a critical period, inasmuch as Dutch troops had been brought over from Holland by George II. in 1745, during the rebellion in Scotland. In the midst of the storm by which he was assailed, Lord North acknowledged himself the adviser of this measure, and treated the opposition with much levity,—but he was obliged to yield to the representations of some of his friends, and to state in conclusion, that though he still considered he was right, yet as other gentlemen, for whom he had ever had the greatest deference, seemed to be of another opinion, he had no objection, notwithstanding any votes now given, that the question should be brought again, in a regular and parliamentary manner, before the house, when he would abide by their determination; and if the measure was found unconstitutional, he would rest a defence on the ground of necessity alone, and receive, as was usual in such cases, the protection of an act of indemnity. This was good parliamentary generalship. Many who would have voted against him, now veered round to his side, and upon a division, the address was passed as reported by a majority of one hundred and seventy-six against seventy-two.

On the 1st of November a similar conflict occurred in the house of lords. The Duke of Manchester moved in that house, "That bringing into any part of the dominion of Great Britain the electoral troops of his majesty, or any other foreign troops, without the previous consent of parliament is dangerous and unconstitutional." This motion was supported by arguments that the clause in the Bill of Rights ought to extend to the colonies; that the Hanoverian troops would not be under the control of our military law, etc.; that it was not by any means advisable to put them in possession of Gibraltar and Minorca; and that the king had no right to maintain even in a colony, or conquest, or in any part of the British dominions, any other troops than were consented to by parliament. To these arguments it was replied, that the clause in the Bill of Rights specified "within the kingdom," and also "in time of peace;" that the foreign troops were not "within the kingdom," and that it was a time of war, and not of peace: that the expression, "within the kingdom," did not include our colonies; and that should that latitude be given the expression, the rebellious state of America would justify the employment of British troops even upon the principles of the Bill of Rights. It was also argued that the king had at all times during actual war or rebellion, been competent to raise and keep up an army; that in such a case the Bill of Rights had made no distinction between an army of natives and an army of foreigners; that foreigners, since the revolution of 1688, had not only been hired, but even brought into the kingdom; and that there was an existing and paramount necessity at this time for the employment of such troops. Ministers prevailed: the previous question was moved and carried by a majority of 75 against 32. Two days

after, a similar resolution was made in the commons by Sir James Lowther, and was there disposed of in a similar manner. About the same time the Bill of Indemnity passed the lower house, but in the upper house it was rejected, on the grounds that it was alike unnecessary and dishonourable to the administration.

CHANGES IN THE MINISTRY.

During the debate which followed the motion of the Duke of Manchester in the house of lords, the Duke of Grafton had denounced the introduction of foreign troops into Gibraltar and Minorca, as inconsistent with the tenor of Magna Charta. This, coupled with his former declarations as to the conduct and the measures of his colleagues, had the effect of obtaining his dismissal from office. The privy seal, which his grace had held, was given to the Earl of Dartmouth, and, to the surprise of all men, Lord George Sackville, who had been subjected by the sentence of a court-martial to much obloquy, and had recently taken a decided part in all the coercive measures, was made secretary for the American department. At the same time the Earl of Rochford retired, and was succeeded as secretary for the southern department by Lord Weymouth. But what created most astonishment was, that the young and profligate Lord Lyttleton, who had distinguished himself by the severity of his attacks upon the administration at the opening of this session, and who had been connected with Chatham and Temple, was called to the privy-council, and appointed to the sinecure office of chief-justice in eyre beyond Trent. Thus “bought,” he agreed to defend the very measures he had so energetically attacked.

THE MILITIA BILL.

In conformity with a passage in the speech from the throne, Lord North, on the 30th of October, brought in a bill for enabling the king to assemble the militia in cases of actual rebellion. On the second reading, this bill was warmly opposed, on the supposition that it gave the monarch such prodigious additional power, as to render him totally independent of the people. It was said to be, in fact, “empowering the crown to draw the militia out whenever it thought fit, as a pretence could never be wanted for the purpose, while there was a black Caribb remaining in St. Vincent’s, a runaway negro in the mountains of Jamaica, or a Hindoo rajah left on the coast of Coromandel.” In the end, however, the second reading of the Militia Bill was carried by the large majority of two hundred and fifty-nine against fifty. On the third reading several amendments were moved, but were all rejected, and it was finally carried with a rider, proposed by Sir George Saville, limiting the duration of the bill to seven years. In the month of December a bill was brought into the house of commons by Lord Mountstuart for establishing a militia in Scotland; but the house was so thin at the time, that it was scarcely discussed. The bill was reproduced in the course of the session, and was eagerly patronized by the Scotch members; but it met with a strong opposition from the English country gentlemen, and was finally rejected by a majority of one hundred and twelve against ninety-five. By its opposers the bill was considered both as unnecessary, and as a dangerous innovation; but the opposition, it would appear, chiefly arose from national prejudices: Scotsmen might, it was said, as they were subservient to ministers, if they obtained a militia, employ it against the liberties and constitution of England. Lord North supported the bill; but he found

himself in the unusual predicament of voting in the minority.

{GEORGE III. 1775–1776}

THE NAVY AND LAND ESTIMATES.

The number of forces to be employed by sea and land in the ensuing year indicated great designs: 28,000 seamen, and 50,000 men for the land-service being voted. Yet great as this force was, it was not considered sufficient for the emergency even by the opposition, who said that the establishment was far too great for peace, and far too small for such a war as ministers were embarking in. This, indeed, was the opinion of Lord Barrington, secretary at war, who used his utmost endeavours, both with the ministers and the king, to obtain a force commensurate with the undertaking. He in particular urged the necessity of reducing America by means of a powerful fleet, stating it as his opinion that its reduction could never be accomplished by the army, which was the staff on which ministers rested. But it was in vain that Lord Barrington warned and advised his colleagues in office, and counselled the king. It was held, that at present the naval force must be accompanied with an army, and the estimates of ministers were made and carried accordingly. The sentiments of Lord Barrington on this subject are fully shown in a letter which he wrote at an earlier date to the Earl of Dartmouth, then secretary for America. In this letter he remarked:—“First, I doubt whether all the troops in North America, though probably sufficient for a pitched battle with the strength of the province, are enow to subdue it, being of great extent and full of men accustomed to fire-arms. If the Massachusets—with whom the inhabitants of Connecticut and Rhode Island are said to have made common cause—were conquered they must be kept under by large armies and fortresses, the expense of which would be ruinous and endless. Second, because the most successful conquest that can be imagined must produce the horrors and bloodshed of civil war. Third, because a conquest by land is unnecessary, when the country can be reduced, first, by distress, and then to obedience, by our marines totally interrupting all commerce and fishery, and even seizing all the ships in the ports, with very little expense and bloodshed. To this might be added the punishment of the factious chiefs by impeachment or bill, if their persons can be secured; but till then any judicial proceedings would provoke, not hurt, and confer the palm of martyrdom without the pain of it, which is the perfection of fanatical beatitude. In respect to the other colonies south of New England, a strict execution of the Act of Navigation, and other restrictive laws, would probably be sufficient at present; and a small addition of frigates and sloops would so execute those laws as to prevent all commerce with foreign states. Those colonies should also be left to deal with the Indians, the mother country withdrawing the establishments made since the beginning of the late war for the management of the Indian affairs, and kept up till this day at a great expense. Though we must depend on our smaller ships for the active part of this plan, I think a squadron of ships of the line should be stationed in North America, both to prevent the intervention of foreign powers, and any attempt of the colonies to attack our smaller vessels by sea.” Lord Barrington next advised the removal of the troops from Boston to Canada, Nova Scotia, and East Florida, till they

could be successfully employed, and then continued: “If these ideas are well-founded, the colonies will in a few months feel their distress; their spirits, not animated by any little successes on their part, or violence of persecution on ours, will sink; they will be consequently inclined to treat, probably to submit to a certain degree; and in my humble opinion, the whole is then over, for then, with dignity, we may make them concessions.” Had this system of blockade been adopted, there can be little doubt but America would have been preserved to England, for the Americans had then no fleet or any formidable fortifications on their coast. The advice, however, was rejected, and Lord Barrington was only prevented resigning office by the express desire of the king. But though Lord Barrington not only did not concur in the plans pursued by ministers, but sought to set them aside, yet as secretary of war, he obtained the chief odium of their failure. The principal blame, however, seems to be attached to the king: the plans were in reality his own, and he imposed them upon Lord North and the administration.

PETITION OF NOVA SCOTIA.

At the opening of this session, a petition was presented to both houses from Nova Scotia, which proposed to grant to his majesty in perpetuity a duty of poundage, _ad valorem_, on all commodities imported into the colony, not being the produce of the British dominions in Europe or America, bay-salt only excepted, by which means the amount of the revenue would keep pace with the wealth of the province. Ministers conceived that this loyal petition would serve as an example to the other colonies, and therefore gave it their support. They suggested a duty of eight per cent.; but objections were drawn from the unproductiveness compared with the old duties, and the small chance of other colonies following the example of a district which had always occasioned an expense to government, and ministers themselves finally abandoned it: nothing was heard of the petition after it went into committee.

PETITION OF CONGRESS.

On the 7th of November, a copy of the petition of congress alluded to in the king’s speech was laid before the lords. On its presentation, the Duke of Richmond seeing Mr. Penn below the bar, moved for his being examined before they entered upon the discussion of the petition. This was rejected by a majority of fifty-six against twenty-two, and the noble mover then made another motion, that Mr. Penn should be examined on the next day, which, after a long debate was conceded. The examination was conducted by the Duke himself, and the opinions elicited from it were, that the members of congress were men of character and intelligence; that the people considered themselves able to resist the arms of Great Britain employed to enforce the obnoxious acts; that the war was begun in defence of their liberties, and not with any desire of obtaining independence; that unless conciliatory measures were immediately pursued, it was probable connexions with foreign powers would be formed, which they would not be easily induced to renounce; and that they were dissatisfied with the reception of their petitions, though inclined to acknowledge the authority of Great Britain in all matters, except taxation. Penn was an honest man, and doubtless sincere in his sentiments, but he had certainly been deceived, like many others, and even some members of the congress itself. On this evidence,

however, the Duke of Richmond moved that this petition, hollow as it must have appeared to men of deep reflection, was sufficient ground for a conciliation of the differences existing between America and the mother country. He was supported by Lords Shelburne and Sandwich, but the refusal to answer the petition was defended by Lords Dartmouth and Lyttleton, and the motion was negatived by a majority of eighty-six against thirty-three. On the side of government the Americans were denounced by Lord Lyttleton as audacious rebels; their sentiments as insiduous and traitorous; and their expressions of loyalty, false and hollow. On the other hand, opposition justified their conduct, and patted them on the back by assurances, that their native courage and the nature of their country rendered them an invincible people. Indeed, it cannot be doubted, that the views taken by the opposition in the British parliament, and the sentiments which they uttered on every favourable occasion, had the effect of confirming the colonists in their opposition to government, and stimulating them to increased exertions in order to gain a free, full, and final triumph.

MOTIONS OF THE DUKE OF GRAFTON.

On the 15th of November the Duke of Grafton moved the following resolutions: “That ministers should lay before the house an account of the number of forces serving in America, with their several stations, etc., previous to the commencement of hostilities; that they should lay before the house the exact state of the army now in America; that they should produce all the plans that had been adopted for providing winter-quarters for those troops; that they should also produce an estimate of the forces now in Great Britain and Ireland; and that they should, finally, lay before the house an estimate of the military force necessary to be sent against America, with a precise account of the number of artillery, etc.” In opposing these motions, ministers argued that nothing would better please the Americans than a full disclosure of our measures and resources, and that such a disclosure would be contrary to every rule of office, as well as to every maxim of war and common sense. The debate wandered to the original causes of the dispute, and the real object and intention of congress; and after these grounds were again gone over—the opposition warmly contending that the Americans were not aiming at independence, and ministers as warmly contending, and indeed fully demonstrating that they were—the Duke of Grafton’s resolutions were negatived without a division. The chief speakers on the side of ministers were the new convert, Lord Lyttleton, who contended that everything proved the assertion; and Lord Mansfield, whose speech carried conviction to many minds which had before been perplexed with doubt upon the subject. Mansfield adduced historical facts to prove that the people of New England had been aiming at independence, almost from her earliest infancy; and he maintained that Great Britain could not concede any one claim which was demanded without relinquishing all, and admitting disseveration and independence. He concluded by warning the house that measures of conciliation would only furnish grounds for new claims, or produce terms of pretended obedience and submission.

THE LAND TAX INCREASED.

On the 13th of November Lord North moved in the commons that the land-tax should be raised to four shillings in the pound. An amendment was moved by the opposition that it should be three shillings instead of four; but this was negatived by a large majority, and the original motion was carried. War with America had been warmly advocated by the country gentlemen, and some of the opposition sarcastically congratulated them upon this enviable first-fruits of their coercive measures; while others attempted to gall them by declaring that it would prove a perpetual mortgage on their estates. To say the least of it, it was an ungracious return made by Lord North for their support, and it seems to have had the effect of considerably cooling their fiery ardour for war.

BURKE’S SECOND CONCILIATORY MOTION.

On the 16th of November, Burke again proposed measures of conciliation. After presenting a petition against the prosecution of the war, he moved “for leave to bring in a bill for composing the present; troubles, and quieting the minds of his majesty’s subjects in America.” This bill was formed on the model of the statute of Edward I., _de tallagio non concedendo_. He proposed in it the total renunciation of taxation; the repeal of all obnoxious laws and acts of parliament passed since the year 1706; a full amnesty for all offences; and a recognition of congress, in order to a final adjustment of the existing quarrel. In his speech, which occupied more than three hours, Burke did not conceal that his motion would involve a dissolution of the cabinet, and he justified this on the ground that ministers had brought the country to the very verge of ruin. He urged that delay was dangerous; that if the quarrel was continued the Bourbons would take it up; that this country was incapable of coping with America if thus seconded; and that America could be retained by her good inclinations alone. He observed, also, that three plans seemed to be afloat with regard, to America: the first, simple war with a view to complete conquest; the second, that of ministers, force mixed with negociations; and the third, peace grounded on concession. It was in the spirit of the last, he said, with which he made his motion. Burke’s principal opponent was Governor Pownall, who exposed many fallacies in his reasoning. Pownall denied that any renunciation, repeal, or amnesty would have any other effect than that of increasing the pride and resistance of the Americans. He also maintained that if repeal had any effect at all it must be extended as far back as to 1672, and asserted that the Americans themselves demanded a repeal up to 1763, of which Burke’s bill fell three years short. He remarked:—“They complain of the admiralty jurisdiction: now that is as old as the act of navigation. To my argument it is nothing how far this is right or wrong, grievous or otherwise; but the Americans complain of it; and, if the bill which is to afford redress and concede to their complaints must be effectual in order to gain their confidence, this bill does not go far enough.” The house, however, was of opinion that it went too far, for after all the best orators of opposition had contended for its principles, with vehement eloquence, it was rejected by a majority of two hundred and ten, against one hundred and five. But this was a nearer division than had taken place for a long time on these questions, and which was doubtless the effect of the recent increase of the land tax: there is much sympathy between men’s pockets and their opinions.

LORD NORTH’S PROHIBITORY BILL.

On the 20th of November, Lord North proposed a measure for the prohibition of all commercial intercourse with America. This bill authorized the commanders of his majesty’s navy to make prize of all American ships and goods, whether on the high-seas or in harbour; and a clause was inserted, which rendered every American taken in them liable to serve as a common sailor in our ships of war, and to be considered as a volunteer. As this prohibitory bill comprehended every species of commerce along the coast of the confederated states, all former acts, including the Boston Port Bill, were to be considered as repealed by it. A clause, however, provided for pardon to all revolters on their return to obedience, and commissioners were to be appointed to give effect to its terms, as well as to inquire into any real grievances of which the colonists might have to complain.

Lord North, in introducing this measure vindicated his own ministerial conduct. The dispute about taxation, he said, was not commenced by him, but by his predecessors in office; and, he asserted, that as he found the country and parliament determined not to surrender the right, he had embraced their cause. He added, that if the colonies, by appealing to arms, chose to make war the medium, he must pursue that medium, although he would constantly keep peace in view as the true point to be obtained. The minds of the opposition were inflamed by the bill and these declarations of the warlike minister. Fox especially declaimed against the bill, asserting that it tended to destroy all trade with America, and that it would cut off all hopes of future accommodation. In the course of his speech he accused the ministers of wishing to ruin our manufacturers in order that they might enlist in the army; and he concluded by moving as an amendment, that the whole body and title of the bill should be omitted, excepting only the portion which repealed the Boston Port Bill, and the restraining acts. The debate now grew hotter than before. It was argued that such a proposition would be a formal abdication of our government of the colonies, and might, with such omissions, be termed a bill for effectually carrying into execution the decrees of congress, by completing the union of Americans between themselves, and exciting them to make foreign alliances. The question being put, therefore, the amendment was rejected by one hundred and ninety-two to sixty-four. In the course of this debate, Lord Howe, who was soon to sail with the fleet for America, remarked feelingly that no struggle was so painful as that between his duty as an officer and as a man: if left to his own choice, he said, he would decline serving, but if commanded, he would perform his duty. To this General Conway replied, that a war with our fellow-subjects in America differed widely from, a war with a foreign nation; and that before an officer drew his sword against his fellow-subjects, he should first be convinced that the cause was just. Thurlow combated this notion with indignation, asserting that if such a doctrine was established, it must tend to a dissolution of government. In the course of the progress of this bill petitions from the West India merchants were presented, and council heard against it. It was also opposed in all its stages, and several amendments were moved in committee, but it finally passed as it was originally framed, by a majority of one hundred and twelve against sixteen only.

The debate on this bill in the house of lords was equally warm as that in the commons. In the face of all matter of fact, the opposition contended that the Americans were not in a state of rebellion: they had, it was conceded, taken up arms, but they were driven to it by violence, injustice, and oppression. Lord Lyttleton and Denbigh denounced these sentiments as an immoderate licence of language, and the latter peer asserted broadly, that those who defended rebellion were little better than rebels themselves, there being no wide difference between traitors and those who openly or covertly aided them! During the progress of the bill several amendments were proposed, but always ineffectually; and a petition was presented by the merchants of Bristol, praying that its operation might be suspended: the bill, however, was read a third time on the 21st of December, and was passed without a division. On the third reading it was defended, together with the whole conduct of government towards the Americans, by Lord Mansfield. Previous to this, intelligence had been received of the march of the two American armies to our Canadian frontiers, so that his lordship could now make a bolder stand against the arguments of the opposition. He remarked:—"We are now in such a situation, that we must either fight or be pursued;" and he illustrated his position by an anecdote related of a Swedish general, under Gustavus Adolphus, who, pointing to an advancing enemy, observed to his troops:—"My lads, you see those men; if you don't kill them they will kill you." His lordship then continued:—"If we do not get the better of America, America will get the better of us. They have begun to raise a navy; trade, if left free to them, will beget opulence, and enable them to hire ships from foreign powers. It is said, the present war is only defensive on the part of America. Is the attack on Canada a defensive war? Is their prohibiting all trade and commerce with every part of the British dominions, and starving our sugar-islands, acting on the defensive? No; though these people never offended us, we will distress them, say they, because that will be distressing Great Britain. Are we, in the midst of all outrages of hostility, of seizing our ships, entering our provinces at the head of numerous armies, and seizing our forts, to stand idle, because we are told this is an unjust war, and wait till the Americans have brought their arms to our very doors? The justice of the cause must give way to our present situation; and the consequences which must ensue, should we now recede, would, nay must, be infinitely worse than any we have to dread, by pursuing the present plan, or agreeing at once to a final separation." This speech of Lord Mansfield obtained a ready response in the house by the almost universal approval of the peers assembled.

CHAPTER VII.

{GEORGE III. 1776–1777}

Affairs of Ireland..... Debates on America, &c. Prorogation of Parliament..... Sentiments of Foreign Powers, &c. Evacuation of Boston by the British..... Mission of Indian Chiefs..... Affairs of Canada..... Unsuccessful Attack on Sullivan's Island..... Affairs in Virginia..... Declaration of Independence by Congress..... Expedition against New York..... Defeat of the Americans on Long Island..... Conference on Staten

Island..... Capture of New York..... Capture of Fort Washington..... Capture of Fort Lee, and Retreat of Washington..... Expedition against Rhode Island..... Successes of General Carleton..... Measures of Congress..... Defection of the Colonists, &c. Meeting of Parliament..... Debates on America..... Attempt to fire His Majesty's Dock-yard at Portsmouth.

AFFAIRS OF IRELAND.

After the Christinas recess, the first important measure of parliament related to Ireland. Addresses from America had been sent to the people of that country, and they soon produced their intended effects among them; especially among the people of Dublin, and the Protestant dissenters. This was first seen in the acts of the sheriffs and common-council of that city. After voting thanks to Lord Howard, on his resignation, and to those peers who had supported the constitution, and, in opposition to a weak and wicked administration, protested against the American restraining acts in imitation of the city of London, they sent over a strong petition and remonstrance to the king. This was opposed by the lord mayor and aldermen, and the common-council then resolved that whoever refused to consent to a dutiful petition, tending to undeceive the king, and by which the effusion of one drop of blood of the subjects of Great Britain might be prevented, was an enemy to the constitution. The Irish parliament was not behindhand with the common-council in exhibiting sympathy for the cause of the Americans. Soon after it assembled, which was on the 10th of October, the members rejected a money-bill transmitted from England, upon the plea that it had been altered in council. On the 23rd of November, still more unequivocal symptoms of a refractory spirit appeared in the Irish parliament. Lord Harcourt, the lord-lieutenant, having proposed to the commons to send out of the kingdom 4000 men, for the American service, and accept in their stead an equal number of foreign Protestant troops, to be maintained at the expense of the British crown, they reluctantly conceded to the first proposition, and absolutely refused to admit the foreign substitutes.

These embarrassing matters were brought before the English parliament. On the 15th of February, Mr. Thomas Townshend moved for a committee of inquiry, on the allegation that the lord-lieutenant had made an offer of the public money without consulting the British house of commons, and had thereby been guilty of a breach of privilege. Ministers were in a dilemma. Taken by surprise no two of them agreed in their modes of defence, or took the same ground in warding off the attack. Thus while one asserted that the Irish speaker had misunderstood the viceroy's message, which only meant that his majesty would pay the 4000 foreigners, another contended that when the Irish establishment was increased, the king had engaged to pay 12,000 troops in that country, except in case of invasion or rebellion in England, and that the present demand not being within these exceptions, his majesty should, therefore, be absolved from his promise. But whatever ground ministers took it was clear that they or the viceroy of Ireland had been at fault, and had not Lord Harcourt been popular both with "the king's friends" and the opposition, it is probable that he would have been censured by the house. The motion was, however, quashed by a large majority, and another motion on the same subject was equally unavailing.

DEBATES ON AMERICA, ETC.

On the 20th of February, Mr. Fox made a motion for a committee to inquire into the causes of the ill-success of our arms in North America, and the defection of the Canadians. In a speech of considerable power, Fox maintained that the ultimate design of government was to overthrow the constitution. He chiefly confined himself to an inquiry whether the proceedings of ministers had produced the desired effects. To this end he pursued a detail of ministerial operations beginning with the Boston Port Bill, in the course of which he endeavoured to show that folly existed in the cabinet, and that their plans were conceived in ignorance and executed in imbecility. At the same time he inveighed against the disgraceful servility of parliament, and concluded by remarking that none would object to inquiry but those who were culpable themselves. Unable to resist his reasoning, ministers attempted to elude it, but their arguments rather weakened than strengthened their cause. Lord North, indeed, candidly admitted that some of his plans had miscarried; arguing, in extenuation of their failure, that it was impossible to foresee every event. He concluded by saying that he was ready to resign, whenever the house should withdraw its confidence. There was no danger, however, of this extremity; for, though excited by the speech of the mover, several friends of government joined in calling for an inquiry, the motion was negatived by a majority of two hundred and forty against one hundred and four.

On the 29th of February, copies of treaties lately-entered into with the Landgrave of Hesse-Cassel, the Duke of Brunswick, and the Hereditary Prince of Hesse Darmstadt, for the hire of troops, to the amount of about 17,000 men, for the American service, were laid before the house of commons. Lord North moved to refer these compacts to a committee; on doing which he dilated on the fairness of the terms, and dwelt on the advantages of employing foreign troops. By the opposition, however, Great Britain was represented as disgraced in the sight of all Europe, by applying to the petty states of Germany for succours against her own subjects. They complained also, that the troops had been obtained at an immoderately high price; £7 10s. levy-money being paid for every man. The princes, likewise, it was said, who let them out like slaves, or beasts of draught, were to be subsidised besides; the Landgrave of Hesse-Cassel, who furnished 13,000 men, being guaranteed £10,281 per annum, and the Hereditary Prince of Hesse, who furnished 688 men, £6000 annually. Moreover, it was objected that the King of England had ensured the dominions of these princes against foreign attacks, while their troops were employed in America. Finally, the opposition argued that it was injudicious and dangerous to hire men who had nothing to do with the quarrel in question. Lord Irnham, in opposing ministers, made a good use of the weapons of ridicule. He remarked:—“I shall say little as to the feelings of those princes who can sell their subjects for such purposes. We have read of the humourist Sancho’s wish,—‘that, if he were a prince, all his subjects should be blackamoors, as he could, by the sale of them, easily turn them into ready money;’ but that wish, however it may appear ridiculous and unbecoming a sovereign, is much more innocent than a prince’s availing himself of his vassals for the purpose of sacrificing them in such destructive war, where he has the additional crime of making them destroy much better and nobler beings than

themselves.” Other members maintained that these German soldiers, on arriving in America, would be induced to accept lands from the colonists, join the banner of independence, and fight against the monarch who purchased their services. But argument was of no avail: the question for referring the treaties to a committee was carried by two hundred and forty-two to eighty-eight, and subsequently for agreeing to the report by one hundred and twenty to forty-eight. One amendment was carried on the motion of Colonel Barrè, namely, for an address to his majesty to equip the German troops with British manufactures.

In the house of lords the whole strength of the opposition was arrayed against the treaties. The Duke of Richmond moved an address not only to countermand all foreign troops, but to forego hostilities. His grace observed, in his speech, that ever since the year 1702, the German princes had been rising in their demands; that the present bargain was harder than any former one; and that the cost of the mercenaries engaged would not be less than one million and a half annually. He then animadverted on the large proportion of officers employed, and pointed out the danger of keeping so many foreigners under their own generals. He took occasion, also, to speak again of the unseen, overruling influence which had for so many years pervaded all our councils, though it was manifest to all that this influence proceeded from the king himself. After a long and animated speech, the Duke of Richmond was followed by other noble lords who enforced his sentiments. It was stated that neither Marlborough’s campaign of 1704, which saved the German empire, nor the campaign by which the Earl of Chatham had obtained Canada, had cost so much money as that of Boston during the last year. It was also urged that the nation was incapable of bearing new taxes or of supporting the war in America; and that, if to the American war were added a rupture with France and Spain, and the whole house of Bourbon, the ruin of England was inevitable. The population of America was likewise pompously displayed, and the termination of all connexion between England and her colonies predicted. On their part ministers supported their measures by tracing the history of the colonies, and exhibiting their uniform disposition to factious resistance. Lord Temple, who had again differed with his brother-in-law the Earl of Chatham, strongly reprobated the intemperance of the opposition. He remarked:—“The next easterly wind will convey to America every expression used in this debate; and I would not that the nakedness and weakness of my country should stand confirmed by the sanction and authority of such testimony. It is time to act, and not to talk; for the die is cast, the sword is drawn, and the scabbard thrown away. Past experience certainly will not justify confidence in ministers; but I would not, by declaring our utter inability to reduce the colonists, furnish a golden bridge for an ignominious, ruinous, and disgraceful peace. I have heard the war called unjust: but who in this house have a right to call it so? Not those who voted for the Declaratory Act: those only who denied our right of taxation; and how very few were they! I cannot approve of recalling troops, and publishing the terms to which you will yield, until there is reasonable assurance of their not being rejected. When the happy moment for conciliation shall arrive, I hope ministers will seize it: I wish them success: at least at such a crisis I will not hang on the wheels of government, rendering that which already is but too difficult more impracticable.” Upon a division, the Duke of

Richmond's motion was negatived by one hundred to thirty-two; but the proposed address was entered on the journals, with the names of ten peers protesting against its rejection.

Despite this "vast and invincible majority," as it was called by Burke, on the 14th of March the Duke of Grafton moved for an address beseeching his majesty that a proclamation might be issued, declaring that if the revolted colonies, within a reasonable time, before or after the arrival of the troops in America, should present a petition to the commander-in-chief, or to the commissioners appointed under the late act, setting forth what they considered to be their just rights and real grievances, hostilities should be suspended, and the said petition be referred to parliament for consideration. In making this motion, the Duke of Grafton asserted that both France and Spain were arming, and that two French gentlemen had already been to America, and had had conferences with Washington and with congress. These assertions, however, were treated by ministers as chimerical, and Lord Weymouth, secretary for foreign affairs, assured the house that there never was a time when Great Britain had less to fear from foreign powers, and that every courier brought assurances of the pacific intentions and friendly feelings from all the courts of Europe. After a long debate, in which old arguments were reiterated on both sides of the house, the duke's motion was negatived, by a majority of ninety-one against thirty-one. About a fortnight after this Mr. Hartley presented the form of another address in the commons, which was conceived in a better spirit, but it shared the same fate as that of the Duke of Grafton. On the 10th of May Mr. Sawbridge, who had succeeded Wilkes as lord mayor, made a similar motion, for placing the Americans in the same situation as the Irish.

During the debates on this motion, Mr. Temple Luttrel, a younger brother of the colonel, uttered very violent language; declaring that the king's speech was a sanguinary parole, and the ministry an infernal administration: quoting the well-known observation of the philosopher Thales; "that of all wild beasts, the worst was a tyrant, and of all tame ones, a flatterer." The motion was negatived, as was also a motion subsequently made by General Conway, for inspecting the powers vested in his majesty's commissioners proceeding to America.

PROROGATION OF PARLIAMENT.

On the 23rd of May, at the moment when his majesty was expected in the house of lords to prorogue parliament, Mr. Hartley moved in the commons, an address, praying that parliament might not be prorogued, but continue sitting by adjournments during the summer, in order that they might be ready to receive information concerning the proceedings in America, and to provide for contingencies. This motion was, however, negatived without a division, and soon after the commons were summoned to the upper house for the purpose of prorogation. In his speech the king said that no alteration had taken place, or was likely to take place, in his relations with foreign courts. He represented the country as engaged in a great national cause, attended with great difficulty and with much expense. As, however, the essential rights and interests of the empire were deeply concerned in the issue of it, and could have no safety or security but in that constitutional subordination for

which they were contending, he felt convinced, he said, that no price would be considered too high in order to obtain the wished-for objects. He still hoped his rebellious subjects might be awakened to a sense of their errors, and make a voluntary submission; but if not, he trusted to effect this object by a full exertion of the forces with which he had been entrusted by parliament.

SENTIMENTS OF FOREIGN POWERS, ETC.

Notwithstanding the declarations of the secretary of state for foreign affairs, and likewise of his majesty, that there was nothing to fear from foreign powers, it is evident that at this very period there was much to fear from those quarters. France and Spain both smarted under the disgrace of the late wars, and burned for revenge, whence there was every reason to apprehend that the armaments they were preparing, under various pretences, would ultimately be employed against England. Then again, Frederic of Prussia entertained strong feelings of resentment against us, for the manner in which he had been treated during the late war, and the Czarina of Russia had absolutely refused her promised aid. Moreover the naval superiority of Great Britain had excited the envy of almost every other state; and they longed to see it diminished. It does not appear, indeed, that any foreign potentate looked with an approving or an unjaundiced eye upon the part taken by Britain, except the Emperor of Austria, and as this part was in strict accordance with the monarchical principles of the Austrian court, his aid might fairly be expected. These well-known sentiments of foreign powers had doubtless the effect of stimulating the Americans in their factious opposition to their mother country, and England ought to have been warned by them. But England itself was like a divided house upon this subject. The Americans in fact were more encouraged by the people of England in their rebellion than by the hostile sentiments of foreign powers. Recent pages fully prove that they had their advocates in parliament,—men who not only justified their proceedings, but likewise exhibited to them in their speeches “the nakedness of the land,” in strange, unjustifiable, and hyperbolical language. Like the false spies among the Hebrews, they spread an evil report of their country’s resources, and hence held it forth to the contempt of the colonists. In this they were also aided by the political writers of the day. The press teemed with publications in favour of the colonists, and every breeze wafted them across the mighty waters to add fuel to the flames. One of the most conspicuous of these writers was Dr. Price, whose work entitled, “Observations on the Nature of Civil Liberty, &c.;” sought to depreciate the British government, and extolled the spirit which gave rise to the American revolution. Powerful pens, as that of Dr. Johnson, were, it is true, employed on the other side of the question,—but sentiments in accordance with the feelings of an individual or a whole people will ever maintain a preponderating influence. Moreover, it must be confessed that those writers who took the part of government often wrote in an illiberal and unenlightened spirit, so that their emanations had an equally powerful effect in confirming the Americans in their views and designs, as those which proceeded from the pens of their advocates. From every party, in truth, and on every hand, the colonists received encouragement in their hostility to the British crown.

EVACUATION OF BOSTON BY THE BRITISH.

While the British parliament was indulging in oratorical debate, and political writers were dipping their pens in gall, the Americans had been actively engaged with the sword. During the winter, both the British army in Boston, and the blockading army of the Americans, by which that town was surrounded, had undergone many miseries. Washington, however, was active in keeping up the flagging spirits of his troops, and they were further revived by the constant arrival of provision-waggons, ammunition, artillery, and reinforcements. At length Washington was induced to commence offensive operations. Ploughed Hill, Cobble Hill, and Lechemeres Point were successively occupied during the month of December, and the approaches of the American troops were carried within half-a-mile of the British works on Bunker's Hill. Congress recommended an immediate assault upon Boston; but Washington asked for more time, to complete his approaches and make his preparations. This was allowed him, and in the month of January a council of war was held in the camp—some of the members of congress being present—when it was resolved, that the British troops should be attacked before any reinforcements should arrive. At the same time it was resolved that thirteen regiments of militia should be required from Massachusets and the neighbouring colonies, that the attempt might be made with good prospect of success. These regiments were supplied early in February, but Washington was compelled to forego an immediate attack from the state of the weather. It was then exceedingly mild, and he wanted ice to enable him to pass the river. But this was not long wanting. About the middle of February the cold became intense, and the ice was sufficiently strong to bear the troops. Still the attack was delayed. Another council of war was held, and it was unanimously' resolved, that the attempt was too hazardous. Soon after, however, Washington received intelligence that a part of the British troops in the town was expected at New York, and from various appearances among them he conceived that there was an intention of evacuating Boston. He now resolved to commence the attack. On the 2nd of March he began a heavy bombardment and cannonade on the town and on the British lines, which was continued for two days. On the night of the 4th of March Washington took a more decisive step. The heights of Dorchester commanded the shipping in the harbour and nearly the whole town, and yet Lord Howe had taken no more care to occupy this hill than General Gage had taken to occupy Bunker's Hill. In the midst of the roar of artillery, therefore, Washington dispatched General Thomas, with 2000 troops and 300 labourers, to take possession of the heights of Dorchester; and at the break of day the British beheld the hill occupied and strongly fortified. They had scarcely recovered from their surprise when Thomas began to cannonade the town and the ships of war, his labourers still working with ardour, in order to render his position still more formidable. General Howe saw that he must either dislodge Thomas, or evacuate Boston, and he sent Lord Percy with 3000 men to effect his dislodgement. Percy embarked in transports, and fell down to the castle in order to proceed up the river to a low strip of land at the foot of Dorchester Hill; but a storm arose, and he was compelled to return to the harbour. It was providential for the British troops that this storm arose; for the heights of Dorchester are almost perpendicular, and the force was hence insufficient to accomplish the enterprise. And the task was soon rendered more difficult. While Washington still kept up a terrible fire, more men were sent to the heights; and Thomas, on the advice of Colonel Mifflin,

chained together a number of hogsheads filled with sand and stones, which were to be rolled down the hill, should General Howe renew the attempt, upon his advancing columns. The British commander, however, became sensible of the madness of such an attempt, and resolved to evacuate the town. An intimation was sent to Washington that Boston would be spared from the flames if the troops were suffered to embark without molestation. This notice determined Washington to refrain from hostilities, and in ten days, on the 17th of March, the British troops quitted the cradle of the revolution, and set sail for Halifax, in Nova Scotia. Before they departed the British troops destroyed Castle William, but they left their barracks uninjured, with a large quantity of cannon and ammunition, of which Washington was in want. This was a great blunder; for if they could not have been carried away they should have been destroyed. And this was not the only blunder committed. In sailing away, Howe left no cruizer in Boston Bay to warn the ships expected from England that the place was not in our possession; and a few days after, when Washington had taken up his quarters in the town, several of our store-ships sailed into the harbour, and fell into the hands of the Americans, before they discovered that Boston was lost to King George. Howe’s negligence was even still more disastrous in its consequences than this; for Lieutenant-colonel Archibald Campbell sailed into the harbour with seven hundred fresh troops from England, and he was taken, and became the subject for severe and brutal retaliation. The loyalists who remained in Boston became also the objects of vengeance; they were tried as the betrayers of their country, and their effects were confiscated, while the very estates of the emigrants were seized, and passed into the hands of the victors. It was a proud triumph for the Americans. Congress, elated by it, passed a vote of thanks to Washington and his army for their acquisition of Boston, and directed a gold medal to be struck in commemoration of the event.

{GEORGE III. 1776–1777}

MISSION OF INDIAN CHIEFS.

Untutored as the savage is, many a lesson may be gathered from his lips and his conduct. Before Boston was evacuated by the British troops, the Oneidas and some other Indian tribes had sent to the provincial assembly a deputation of their chiefs, on a mission which displayed much practical humanity and good feeling. The purport of this mission is disclosed in the address of these chiefs to the assembly. It reads thus:—“Brothers, we have heard of the unhappy differences and great contention between you and Old England. We wonder greatly and are troubled in our minds. Brothers, possess your minds in peace respecting us Indians. We cannot intermeddle in this dispute between brethren: the quarrel seems to us so unnatural; and we bear an equal affection to both. Should the great king apply to us for aid we shall deny him: if the colonies apply we shall refuse. We Indians cannot find or recollect, in the traditions of our ancestors, a case similar to this. Brothers, if it were an alien that had struck you we should look into the matter. We hope, through the wise government and good pleasure of the Great Spirit, your distresses may be soon removed, and the dark clouds dispersed. Brothers, as we have declared for peace, we desire you will

not apply to our Indian brethren for assistance. Let us Indians be all of one mind, and you white people settle the disputes between yourselves." But notwithstanding this wise policy of these Indian chiefs, many of the savage tribes bordering on the great lakes and rivers were induced by British agents to wield the tomahawk in behalf of "the great king," and committed ravages which brought a stain upon the fair fame of Great Britain.

AFFAIRS OF CANADA.

At the close of the session of the British parliament good news had arrived from Canada. Congress had voted nine regiments for service in that colony, and General Schuyler was ordered to prepare a number of batteaux to transport these troops down the lakes and the Sorel to the scene of action. At this juncture news arrived of the death of Montgomery, and the critical situation of Arnold. This news urged congress to renewed exertions. They did all they could to hasten their reinforcements, and called upon the provincial conventions to collect all the money they could for the use of the army in Canada. Men and specie were, however, not easily procured; and, moreover, had the troops been ready on the instant, they could not have marched during the winter, as the ground was covered with snow, and the lakes all frozen over. On the opening of spring, however, by the 1st of April, the force in Canada was raised to 1,800 men. But coined money was not forthcoming for their use, and Arnold issued a proclamation, making the paper-money of congress current, under promise of redeeming it with specie in four months, and threatening all who refused this paper in exchange for their commodities or labour with destruction. The French Canadians had no faith in the paper-money, or in the promises of Arnold, and the troops, therefore, were under the necessity of helping themselves to what they wanted. This was fatal to the American cause in Canada. The Canadians were told that the troops were come to liberate them from tyranny and oppression, but they concluded that they had only come to plunder them. Added to this, the New Englanders laughed at the Catholic church ceremonies, and insulted some of the priests, whence they insured universal hatred and vengeance. The situation of Arnold was a critical one, and it was rendered more so by the appearance of the small-pox among his troops, which greatly thinned his ranks. Still Arnold resolved to persevere. He again set up his battery before the walls of Quebec, hoping to take it before it should be relieved by reinforcements from England. Before, however, he could make any impression, General Wooster arrived as his superior in command; and, taking offence, he retired to Montreal, there to assume a separate command. Many of the Americans also left the army and returned home, under the pretence that the period of their engagement was expired. General Thomas arrived on the 1st of May, and the force then amounted to 2000 men. Had these troops been effective, and had the magazines been well stored, Thomas might have had some chance of success, but such was not the case; and to complete his dilemma, the river St. Lawrence began to open below, and intelligence arrived that English ships of war were daily expected. Thomas therefore resolved to make a precipitate retreat, and he began to remove the sick to the Three Rivers, and to embark his artillery and stores in boats and canoes. Before these operations were completed, however, three English ships which had forced their way through the ice arrived before Quebec, and these vessels instantly

threw on shore two companies of the 29th regiment, with some marines and sailors. Struck with consternation, the Americans began to fly in all directions, and General Carleton then sallied out in pursuit of them. Notwithstanding, the enemy retreated so precipitately that Carleton could do nothing more than capture their artillery and stores, about a hundred fugitives, and nearly all their sick, who had been left behind. Many, however, were afterwards found concealed and starving in the woods; and Carleton, as humane as he was brave, treated the whole of the prisoners with great humanity. The rest of the troops crossed the St. Lawrence, and formed at the forts of Chamblée and St. John, on the Sorel, where General Thomas died of the small-pox.

Thus successful, General Carleton dispatched Captain Forster to a strong fort, called the Cedars, situate thirty miles west of Montreal, and which was garrisoned by four hundred Americans. This fort surrendered, on condition that the garrison should be preserved from the ferocity of the Indians. In the attack on this fort one Indian, on the side of the English, was slain, and this excited the passions of the red men to revenge. On the day after the surrender of the Cedars Forster heard that a party of the enemy were marching from another point to secure the fort, and he ordered one hundred Indians to place themselves in ambush on both sides of the road in a wood through which the enemy must pass. This stratagem was completely successful. All the Americans were captured, and when the Indians had brought them to the front of the fort they prepared to put them to death, in atonement for the blood of their tribe which had been shed. This was an ancient custom, and it was with difficulty that Captain Forster induced them to dispense with it: it was only effected by conciliating them with presents. From the Cedars, Forster proceeded to Vaudreuil, about six miles northward. Arnold made an attempt to dislodge him, but was obliged to retreat, and return to St. Anne’s, on the island of Montreal. Being encumbered with prisoners, Forster judged it expedient to release them; Arnold promising to return an equal number of royal troops within two months. This compact, however, was shamefully violated by congress, under pretence that Forster had treated the prisoners taken at the Cedars in a barbarous manner—a pretence which was utterly unfounded. In the meantime General Carleton being reinforced by more troops from England, repaired to Three Rivers, about midway between Quebec and Montreal. Imagining that Carleton had only sent a detachment, General Sullivan, who had succeeded to the command of the troops on the death of Thomas, ordered General Thomson and Colonel St. Clair to cross the St. Lawrence, and to make a night attack on the forces of the English. These two officers did not arrive at Three Rivers till the day dawned, and as soon as they were seen the alarm was given all along the bank, and a fire was opened upon them from some ships. They landed from their boats, and in their confusion ran into a broad morass, where they were attacked in front by General Fraser, and in their rear by General Nesbit; while Major Grant took possession of a bridge, which rendered their escape over the river Des Loups impracticable. Many were killed and wounded, and General Thompson, with Colonel Irvine, and about two hundred men, were taken prisoners. The rest fell back in disorder across a bog into a wood on their left, and on the next day crossed the bridge which Major Grant had occupied, and which was by some mistake now left unguarded, whence they reached their boats, and escaped to their main body at Sorel. General Carleton embarked the

mass of his forces and pursued them by water; but when he arrived at Sorel he found that place evacuated, and the batteries dismantled. General Burgoyne, who had arrived with the last reinforcements from England, was charged with the pursuit of Sullivan, while Carleton himself recrossed the St. Lawrence to look after Arnold. That officer, however, glad to make his escape from Canada, embarked his men, crossed over the river at Long Isle, and joined Sullivan at Fort St. John, on the Sorel. The two American generals did not deem themselves safe at this fort, and they therefore set fire to it, as well as that of Chamblée, and continued their retreat up the river. They were followed by Burgoyne; but when that general reached the head of the Sorel, and saw the lake beyond it well supplied with armed vessels, he desisted from the pursuit, and rejoined General Carleton. By these events, Canada was entirely freed from the American arms; and General Carleton commenced preparations for the recovery of Ticonderoga, and the dominion of the lakes Champlain and St. George, now held by the enemy. The American generals, Sullivan and Arnold, threw themselves upon the isle Aux Noix, where they were secure from the enemy, but where many of their men perished of fever.

UNSUCCESSFUL ATTACK ON SULLIVAN’S ISLAND.

While success attended the British arms in Canada, an expedition sent against the southern states totally failed. Governor Martin had been strenuously exerting himself to recover his lost province of North Carolina, by means of a body of Highlanders, who had recently emigrated to America, and another body of resolute men, called “Regulators,” who lived principally by the chase. These two bodies were commanded by Colonels Mac Donald and Mac Leod. They were embodied at Cross Creek, but having attempted to open their way to Wilmington, where they expected some regular troops were to be landed, they were circumvented by a superior insurgent force, and beaten. Mac Leod, with most of his Highland followers, were slain, and Mac Donald, with some of the “Regulators,” were taken prisoners; while the rest fled, and returned to their old hunter life in the back country. The attempt which was made by Governor Martin, indeed, seems altogether to have been premature; but he appears to have been induced to make it from the delay of the arrival of General Clinton and his troops, who were destined for this service. No second attempt could be made to erect the royal standard in the Carolinas, till Clinton arrived from England, and then it was found to be too late. He reached Cape Fear in the month of May, and immediately took the command of some troops which had previously been conveyed to those coasts by Sir Robert Parker. The general’s instructions were to endeavour, by proclamations and other means, to induce the Carolinas to return to their allegiance; to gain information as to the temper and disposition of those provinces; and if he found the royalists sufficiently numerous to take up arms, to leave a part of his forces with them, and then to repair to New York to meet the commander-in-chief, General Howe. Clinton found no encouragement, and met with no signs of co-operation; and he, together with Parker, tired of doing nothing, resolved to go beyond their commission, by capturing or destroying Charleston, the capital of South Carolina, the trade of which town supplied the two colonies with the nerve of war. To this end they sailed from Cape Fear on the 4th of June, and arriving off Charleston they took possession of Long Island, where there were many royalists,

but who had previously been disarmed. Near Charleston, however, and covering-its harbour, was another island, called Sullivan’s Island, in which there were armed insurgents and formidable batteries. There was a projecting point of land, also, called Hadrell’s Point, which almost touched this island, and on which General Lee, an Englishman, and rival of Washington, in the American service, was posted with a large force of regular troops and militiamen, and some artillery. Notwithstanding these formidable appearances, however, Clinton persevered in his design of taking this island. He constructed two batteries on Long Island, answering to those of the enemy, and to co-operate with the floating-batteries destined to cover the landing of the troops. The event was most disastrous. On the 28th of June the fleet, under Parker, anchored in front of the American fort, and opened a tremendous fire upon it; while Clinton seconded the efforts of the admiral by firing from the batteries on Long Island. In the midst of the roar of cannon the troops embarked in the rear of some floating batteries in boats and some small craft; but they had scarcely left the beach when they were ordered to return to their encampment on Long Island. Meanwhile the ships continued their firing upon the fort, which was responded to with equal vigour by the Americans. The roar of cannon ceased not till long after night-fall, and then the British fleet exhibited a sad and desolating spectacle; for while the fire of the ships made but comparatively little impression upon the fort, the fire from the fort did fearful execution upon the fleet. The following description of this day of carnage is from the pen of Burke. He says:—“Whilst the continued thunder from the ships seemed sufficient to shake the firmness of the bravest enemy, and daunt the courage of the most veteran soldier, the return made by the fort could not fail of calling for the respect as well as of highly incommoding the British seamen. In the midst of that dreadful roar of artillery, they stuck with the greatest constancy and firmness to their guns; fired deliberately and slowly, and took a cool and effective aim. The ships suffered accordingly: they were torn to pieces, and the slaughter was dreadful. Never did British valour shine more conspicuous, nor never did our marine, in an engagement of the same nature with any foreign enemy, experience as rude an encounter. The springs of the Bristol’s cable being cut by the shot, she lay for some time exposed in such a manner as to be most dreadfully raked. The brave Captain Morris, after receiving a number of wounds, which would have sufficiently justified a gallant man in retiring from his station, still, with a noble obstinacy, disdained to quit his duty, until his arm, being at length shot off, he was carried away in a condition which did not afford a possibility of recovery. It is said, that the quarter-deck of the Bristol was at one time cleared of every person but the commodore, who stood alone, a spectacle of intrepidity and firmness, which has seldom been equalled, never exceeded.” When the firing ceased the Bristol and Experiment, ships of fifty guns each, were left almost wrecks upon the water, but the frigates had not suffered so severely. It was expected by the Americans that most of them would be unable to pass the bar; but, with the exception of the Actæon frigate, which got aground at the commencement of the action, all dropped down with the tide beyond the reach of the guns in the fort. It is clear that Admiral Parker did all that could have been done to effect his object, but skill and valour were of no avail. The fortress was built of palmetto-wood, and therefore it was little damaged; the shot which struck it being buried in its soft materials. Then again, the bombs that were thrown into the fort

were instantly swallowed up in a morass that was constructed in the middle, and therefore failed in their design. While the English ships, indeed, were swept of their men, the loss of the garrison did not exceed ten men killed and about twenty wounded. The Americans themselves accounted for their victory by the strength of the fort; the care they had taken to secure its approaches; the courage and skill displayed by Colonel Moultrie, who commanded in the fort; and the presence of Lee on the projecting point opposite the island. On the other hand, the English attributed their defeat to the non-co-operation of the army, which appears to have been declined by Parker, he having full confidence in the powers of the fleet. But whatever may have been the cause of the result, it is certain that by the repluse of this armament the southern states obtained a long respite from the horrors of war, and that it had the effect of raising the depressed spirits of the colonists: by it the spell which had long attached itself to the British navy was broken. After the disaster General Clinton set sail in the Solby frigate with his troops to join General Howe, but the rest of the ships remained at Long Island to refit.

AFFAIRS IN VIRGINIA.

During these events Lord Dunmore had been making a last effort to retrieve the king’s affairs in Virginia. With the consent of General Howe he sent Mr. Connelly, a native of Pennsylvania, to induce the people in the back and inland parts of the colony, together with several of the Indian tribes, to take up arms for government. Connelly had already reached the back-settlements, but soon after his arrival he was recognized by a tradesman to whom he was known, who denounced him to one of the nearest revolutionary committees. Connelly was seized with all his papers, and sent to Philadelphia, where he was put in irons and treated with the utmost severity. The scheme of Lord Dunmore was developed by his papers, and the whole was in consequence frustrated.

DECLARATION OF INDEPENDENCE BY CONGRESS.

It required no prophetic eye to foresee that at no very distant period, notwithstanding the sentiments of loyalty expressed in their papers by congress, they would, nevertheless, take one vast stride in the march of revolution and proclaim their independence. As early as the 15th of May the congress, in their sitting at Philadelphia, resolved:—“That it should be recommended to all the various assemblies and conventions in the United States of America, where no form of government adequate to the exigencies of affairs had yet been adopted, to establish such a constitution as should be most conducive to the public welfare and security.” This resolution was published in the newspapers, with a preamble, stating that as the king and parliament of Great Britain had excluded the inhabitants of the colonies from the protection of their mother country, it behoved them to abolish the power and constitution which had been derived from thence. By this measure of congress the mask was at length thrown off, and many Americans now stepped forward to claim the honour of having been the originator of the grand idea. The glory is, however, generally attributed by Americans to Benjamin Franklin;—the man who, while in England, strove with all his might, and in the depth of guile, to make the Earl of Chatham, and all the great orators of opposition, believe that the wish was furthest

from his thought;—that he earnestly desired to preserve the connexion of the colonies with his “dear old mother country.” While at the same time, however, that American writers attribute the origin of the grand idea to Benjamin Franklin, they admit that it was the pen of an English writer that rendered the most effective service in this particular—a pen that was wielded by the infidel, Thomas Paine! Originally a Quaker and stay-maker in Norfolk, Paine first made himself known as a political writer by the publication of a pamphlet. This pamphlet recommended him to the notice of Franklin, who advised the poor author to try his fortune in America, now affording a wide field for the talents of adventurers. Paine accordingly settled at Philadelphia in 1774, where he became first a contributor to newspapers and periodicals, and then editor of the “Philadelphia Magazine.” By this time the public mind had been prepared by various productions issued from the press, to entertain thoughts of independence. Paine turned his wit to this subject, and in 1776 he brought out his famous pamphlet, called “Common Sense,” which contained bolder sentiments than any written by all the other various pamphleteers. His production met with unparalleled success. Copies were distributed throughout the colonies, and “Common Sense” became literally the study of the whole American world. It was even read, admired, and eulogised in England by men of sense and talent: Burke calls it “that celebrated pamphlet which prepared the minds of the people for independence.” Its chief merit, however, seems to have consisted in rough, sarcastic wit, which was well calculated to flatter the prejudices as well as to inflame the resentment of the American people. The effects it produced were wonderful. Multitudes were brought over by it to the cause of independence, who but a few months before would have regarded the proposition with abhorrence. As for the writer he at once gained by it the topmost pinnacle of the temple of popularity. The legislature of Pennsylvania voted him £500; the university of the same province conferred on him the degree of Master of Arts; he was elected member of the American Philosophical Society, founded by Franklin; and he was subsequently made clerk to the committee of foreign affairs, while he was consulted by all members of government and congress as an oracle.

The recommendation of congress to the various assemblies and conventions in the United States of America met with all due attention, and many prepared for the organization of a new government. Thus the convention of New York appointed a committee to take the resolution into consideration, and on the 27th of May this committee presented a report, replete with democratic principle, and going the whole length which the recommendation involved. The men of the hot south, however, the Virginians, went to work in a less roundabout manner than those of the other states. The convention of that colony, which met at Williamsburg on the 6th of May, instructed their delegates at congress to propose to that body an immediate declaration of independence. Accordingly, on the 7th of June, Richard Henry Lee, one of their delegates, moved that the congress should forthwith declare:—“That these united colonies are, and of right ought to be, free and independent states; that they are absolved from all allegiance to the British crown, and that all political connexion between them and the state of Great Britain is and ought to be totally dissolved; and that measures should immediately be taken for procuring the assistance of foreign powers, and a confederation be formed for binding the colonies more closely

together." Vehement debates followed this proposition, its principal supporter being John Adams, and its chief opposer John Dickenson. On the question being put, six delegates voted in the affirmative, and an equal number in the negative; the delegates from Pennsylvania being equally divided. The debate, therefore, was resumed on the following day, when Dickenson relinquished his opposition, and by his vote decided the contest. Congress now assumed the title of "Representatives of the United States of America," and on the 4th of July they published a definite declaration, or act of independence. This declaration was drawn up by Jefferson, and slightly altered first by Franklin and Adams, and afterwards by the whole committee to whom it was submitted. As passed by congress it commenced with asserting that all men were originally equal, and that all people have an unalienable right to choose their own government. It then set forth that the history of the present King of Great Britain had been a history of injuries and usurpations, having for their direct object the establishment of an absolute tyranny over America. The sins of the monarch—for it was against the king himself that congress chiefly aimed their blows—were set forth in eighteen separate clauses, and it must be confessed that if the monarch was so great a sinner as he was represented to be in these clauses, then the summing up of the act of independence was justifiable. This summing up declared,—"That a prince marked by every act which may define a tyrant, is unfit to be the ruler of a free people: consequently, congress, in the name and by the authority of the good people of America, had solemnly published and declared that the colonies were free and independent states, absolved from allegiance to the British crown; that all political connexion between them and Great Britain was broken; and they, as free and independent states, had full power to levy war, conclude peace, contract alliances, and establish commerce." But though the people of England were not calumniated by congress in such bold and unwarrantable language as their monarch, they nevertheless were condemned by the act of independence. A clause in it with reference to the British people, reads thus:—"Nor have we been wanting in attentions to our British brethren. We have warned them from time to time of attempts made by their legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of an emigration and settlement here; we have appealed to their native justice and magnanimity; and we have conjured them by the ties of our common kindred to disavow those usurpations which interrupted our connexion and correspondence. But they have been deaf to the voice of justice and consanguinity. We must, therefore, acquiesce in the necessity which pronounces our separation, and hold them as we hold the rest of mankind, enemies in war, in peace, friends. We, therefore, the representatives of the United States of America, in general congress assembled, appealing to the Supreme Judge of the world for the rectitude of our intentional do, in the name and by the authority of the good people of these colonies, solemnly publish and declare, that these united colonies are, and of right ought to be, free and independent states; that they are absolved from all allegiance to the British crown, and that all political connexion between them and the state of Great Britain is and ought to be totally dissolved; and that as free and independent states, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent states may of right do. And for the support of this declaration, with a firm reliance on the protection of Divine

Providence, we mutually pledge to each other our lives, our fortunes, and our sacred honour."

This declaration went forth to the world as the unanimous act of congress and of the whole American people. Nevertheless, several delegates, among whom was Mr. Dickenson, refused to sign the paper, and it is well known that there were many among the American people, and men of great influence and talent, who dissented from the act. Washington himself conceived that congress was going too far, although he still continued at the head of their army to fight their battles. But there was now no alternative but to fight or be considered a renegade. The great body of the nation was in favour of the measure of congress, and were prepared to stand by its consequences. And in this they were encouraged by the inherent power which they possessed; by the physical advantages which their country presented; and by the difficulties which Great Britain, split into factions, and with a divided parliament, must encounter in carrying on a war in such a far distant country. The Americans also appear to have been encouraged, even at this early stage of their rebellion, by foreign powers. It is an indisputable fact, indeed, that their sole reliance was not upon "native swords and native ranks." Secret agents had been sent to America from powers clandestinely inimical to the British nation; and American agents had been sent secretly to the courts of Paris, Madrid, Naples, the Hague, and St. Petersburgh. The Americans, moreover, drew encouragement from the hope that there might be a rebellion in Ireland, if not in England itself. To ensure such a consummation in Ireland, they even sent addresses to the Irish people which were well calculated to lead to it. How artfully these addresses were worded may be seen from the following extract of one, in which the Americans expressed their regret that they had been compelled to include Ireland with Great Britain in their non-importation agreements. It states:—"Your parliament had done us no wrong. You had ever been friendly to the rights of mankind, and we acknowledge with pleasure and gratitude that your nation has produced patriots who have nobly distinguished themselves in the cause of humanity and America. On the other hand we were not ignorant that the labour and manufactures of Ireland, like those of the silkworm, were of little moment to herself, but served only to give luxury to those who neither toil nor spin. We perceived that if we continued our commerce with you, our agreement not to import from Britain must be fruitless. Compelled to behold thousands of our countrymen imprisoned; and men, women, and children in promiscuous and unmerited misery—when we found all faith at an end, and sacred treaties turned into tricks of state—when we perceived our friends and kinsmen massacred, our habitations plundered, our houses in flames, and their once happy inhabitants fed only by the hand of charity—who can blame us for endeavouring to restrain the progress of the desolation? Who can censure us for repelling the barbarous band? Who in such circumstances would not obey the great, the universal, the divine law of self-preservation? Though vilified as wanting spirit, we are determined to behave like men; though insulted and abused, we wish for reconciliation; though defamed as seditious, we are ready to obey the laws: and though charged with rebellion, we will cheerfully bleed in defence of our sovereign in a righteous cause. What more can we say? What more can we offer? We know that you are not without your grievances. We sympathize with you in your distress, and

are pleased to find that the design of subjugating us has persuaded the administration to dispense to Ireland some vagrant rays of ministerial sunshine. Even the tender mercies of government have long been cruel towards you. In the fat pastures of Ireland many hungry parricides have fed and grown strong to labour in her destruction. We hope the patient abiding of the meek may not always be forgotten." The Americans could scarcely have spoken plainer than this, and the Irish people could not fail rightly to interpret their language as an incitement to join in that sin which the sacred penman has likened to the sin of witchcraft—rebellion.

{GEORGE III. 1776–1777}

EXPEDITION AGAINST NEW YORK.

It has been seen that when General Howe evacuated Boston he set sail for Halifax. He remained at Halifax till the 11th of June, when he sailed for New York, and arrived near the end of the month offf Sandy Hook. He expected to meet his brother, Lord Howe, with the main body of the fleet and the new army, together with Sir Peter Parker with his squadron, and General Clinton with his troops. These parties, however, were still far away, and he therefore landed at Staten Island, where he was joined by Mr. Tryon, the expelled governor of New York, and a body of loyalists who had taken refuge with him in an armed vessel. Shortly after he was joined by his brother, Admiral Lord Howe, and subsequently by Sir Peter Parker and his squadron, when their united forces amounted to nearly 30,000 men, British and foreign.

Anterior to this, and as early as the month of April, General Washington had left Boston for New York, and at this moment his army were throwing up strong entrenchments at that city and on Long Island, to close the river Hudson against the English fleet. The main body of his forces were with Washington at New York; General Sullivan, with a strong force, was at the western extremity of Long Island, just opposite the city; while the rest of the forces mainly occupied different posts on York Island. The total number of Washington's army appears to have exceeded 30,000; but sickness prevailed in his camp to such an extent that at one time nearly a fourth part of his forces were unfit for action. Added to this embarrassment, many of the inhabitants were disaffected to the American cause, and even a part of his own guards entered into a conspiracy to seize his person, and deliver him to the enemy. This conspiracy, however, was discovered, and several engaged in it were executed, and Washington, thus relieved from danger, earnestly pressed forward the defences of the city. He had with him a large train of artillery and an abundant supply of military stores.

Before proceeding to extremities, Lord Howe sent ashore by a flag, circular letters, acquainting the Americans with his powers, both civil and military, and enclosing a declaration granting pardons to all such as were willing to return to their duty; promising that any colony, town, post, or place that submitted instantly should be exempted from the provisions of the acts of parliament prohibiting their trade, etc.; and giving assurances that the meritorious services of all persons who should aid and assist in restoring tranquillity would be duly rewarded. Washington forwarded these

papers to congress, by whom they were published in the newspapers, with a comment calculated to destroy their effects. At the same time Lord Howe opened a direct communication with Washington; but that general taking offence at the letter being simply directed to “George Washington, Esq.,” raised a cavil on that ground, to prevent a conference which would have been embarrassing to him at so critical a period. It was in vain that Adjutant-general Paterson, the bearer of the letter, protested that no disrespect was intended, and that Lord Howe and his brother, the general, could not depart from the rules laid down for them: Washington rejected the letter, and refused to let it lie on his table, which refusal was highly approved of by congress. As a last resource, the British admiral entered into a correspondence on the subject with Dr. Franklin, with whom he had been on intimate terms in England; but the first letter which his lordship received from that philosopher convinced him of the inutility of any further efforts at negociation, and he prepared for the decision of the sword.

{GEORGE III. 1776–1777}

DEFEAT OF THE AMERICANS ON LONG ISLAND.

Having at length been joined by Clinton and by nearly all the forces he expected, General Howe, on the morning of the 22nd of August, commenced operations. He first threw forward a division of 4000 men under Clinton, who landed in Gravesend Bay, Long Island, without opposition; their disembarkation being covered by three frigates and two bombs. This division was soon followed by the rest of the British army and the artillery; and upon their landing, Sullivan’s advanced guard set fire to all the houses and granaries and fled to the woody heights, through which the English must pass. Washington had previously reinforced the army of Sullivan, and calculating that Long Island must be held, he threw over more reinforcements from New York, until the mass of his army was concentrated on that spot. By his direction, the Americans to the number of 15,000 were posted on a peninsula towards that end of the island which faces the city of New York, and is not more than a mile from it. They were commanded by Generals Sullivan, Putnam, and Lord Stirling, and their object was to occupy these heights, and to defend the defiles which led through the hills against the English. A severe contest ensued; but the British right, under Sir Henry Clinton, having outflanked the left of the enemy, while the Hessians, under General De Heister, vigorously attacked the centre, the Americans were routed. Lord Stirling, who commanded the right wing, finding that the English had penetrated to the rear, gave orders for a retreat, and to secure it, boldly attacked the division under Lord Cornwallis; but being assailed in his course by General Grant, he was repulsed and taken prisoner. The dispersed troops fled to the fortified lines and camp at Brooklyn; but they left 2000 slain on the field, or drowned in a morass into which they were driven at Gowan’s Cove; and about half that number, with Generals Sullivan and Udell, with ten other field-officers were taken prisoners. The loss of the British was comparatively trifling: seventy were slain and about 200 wounded. The ardour of the British troops was such that they followed the fugitives almost to the foot of their works, and they were with difficulty prevented from making an assault on their lines.

Had they been permitted it seems clear that they might have easily carried them; but General Howe, conceiving that the lines must become his by regular approaches without much sacrifice of life, he ordered them back to a hollow out of the reach of the fire of the enemy. By this order the troops which had fled were saved. Washington, who had passed over from New York during the battle, in the midst of his extreme anguish at the fate of so many of his troops and the critical situation of the remainder, suddenly saw a gleam of hope bursting through the surrounding gloom. On that night the British army encamped in front of the American lines, and on the following morning the British general commenced his regular approaches; breaking ground about six hundred yards from one of the redoubts. But while the troops were digging their trenches on one side, Washington was smuggling his forces out on the other, and ferrying them over East River to the city of New York. His masterly retreat was effected by night in such order, secrecy, and silence that the English were not aware of it till the rising sun showed them that the enemy was out of the reach of danger: But for this the half of Washington’s army which he had exposed on Long Island would have been lost, and the war might have been virtually ended. But even after his escape Washington found himself in no very enviable position. A superior and victorious force was in front of him, while all around him the country was hostile to his cause. The success of the British arms indeed, caused the anti-revolutionists to lift up their heads on every hand, and in great numbers.

CONFERENCE ON STATEN ISLAND.

Almost immediately after the victory on Long Island, Lord Howe made another attempt to open a negociation. General Sullivan was despatched by him on parole with a verbal message to congress, importing that though he could not at present treat with them as an authorized body, he was desirous of conferring with them as private gentlemen at any place they would appoint. He had, he said, in conjunction with General Howe, full powers to compromise the dispute between Great Britain and America on terms mutually honourable and advantageous—that he wished a compact to be made when as yet no decisive blow was struck and neither party could allege being compelled to enter into an agreement—that in case congress were disposed to treat, many things yet unasked might be granted them—and that, if upon the conference there should arise good ground for an accommodation, this might lead to an acknowledgment of its authority, as otherwise the compact could not be settled. Congress was embarrassed by this message. They felt that the admiral could have no offers to make which they could accept; and yet if they declined the conference the people might entertain a different opinion, and they might incur their vengeance if they refused to hear the message. Under these circumstances, while in their reply to Lord Howe they remarked that they could not, as the representatives of the free and independent States of America, send any of their members to confer with his lordship in their private characters, they would nevertheless send a committee of their body to know whether he had any authority to treat with persons authorised by congress, and to hear such propositions as he might have to make. The members appointed for this conference were Franklin, Adams, and Routledge; three of the bitterest enemies of Great Britain. This trio waited upon his lordship in Staten Island, on the 11th of September, and they were received with true English politeness and urbanity. His

lordship commenced the conference by stating that though he could not treat with them as a committee of congress, yet as his powers enabled him to confer and consult with any private gentlemen of influence in the colonies, he would be glad, if they thought proper, to confer with them in such a character. As their business was only to hear what his lordship had to say, the trio replied, that he might consider them in what character he pleased, while they would only consider themselves in the character given them by congress. The admiral then said that he and his brother, as commissioners, had delegated power to grant pardons for the past, and that every favour might be expected from the British crown if the colonists would return to their allegiance. He also remarked that the king, ministry, and parliament were disposed to make government easy to them, and that the obnoxious acts would be revised in order to put an end to their grievances. These offers and assurances, however, were despised. The committee replied that if he had nothing else to propose he had come too late: the petitions of congress had been despised, independence was now proclaimed, and the new government formed. Lord Howe then simply expressed his regret at the evils which must be let loose upon the land, and the trio returned to Philadelphia.

CAPTURE OF NEW YORK, ETC.

After the victory on Long Island, and while the conference was going forward on Staten Island, General Howe was engaged in slowly enclosing Washington on all sides. Apprehensive of the consequences, therefore, the American general resolved to evacuate the city of New York, and retire on Kingsbridge, where some strong works had been erected. The British army had already effected a landing on New York Island without any loss or difficulty, and Washington retired so precipitately that he had not sufficient time to carry off all his artillery and stores. By his retreat General Howe not only took possession of New York, but also the best part of the island. He had scarcely, however, taken possession of New York when a dreadful fire broke out in several quarters of the town. Washington had previously proposed to congress that the city should be burned, rather than left in the hands of the English, which proposal had been negatived, but notwithstanding incendiaries were employed to execute the design. On the night of the 20th, therefore, when most of the citizens and troops were buried in sleep, these desperadoes began their work, and, despite the exertions of the soldiers and the citizens, nearly a third part of the city was consumed to ashes. A few incendiaries fell a sacrifice to the rage of the soldiers, and many individuals were arrested on suspicion, but no clue was found to unravel the mystery, though no doubt can exist that the fearful deed was committed by order of the American general. The act has been applauded as one emanating from stern patriotism and self-devotion, but it appears rather to have proceeded from sheer recklessness and bitter hatred to the English. The New Englanders were not destroying their own houses and property, but the houses and property of another people, and a rival colony, regardless of all the fearful consequences resulting from the act.

On the retirement of Washington to Kingsbridge, the British troops were put on board the vessels again, with a view of landing at West Chester, gaining the rear of the enemy’s encampment, and enclosing him on all sides within his fortresses.

Washington perceived the necessity of counteracting this project, and, immediately decamping with his whole force, he took up a strong position, and occupied lines and works which ran right across York Island; the strongest being at Kingsbridge and Fort Washington. General Howe, with the main body of his army, marched up York Island, and encamped in face of Washington's lines, his lines also extending quite across the island, and being covered on either flank by the British ships. While thus situate, on the 16th of September, there was some skirmishing in the plain that lay between the two camps, in which the Americans lost Colonel Knowlton and Major Leitch, two of their best officers. The ill-success of the American general, by this time, seems to have had a great effect upon the disposition of his troops. Desertions were frequent, and as the time was approaching when the period of service for which most of the Americans had engaged would expire, Washington conceived that he should soon be left without an army. He saw plainly that the boasts of the sons of liberty, about flying to arms and fighting for their country without pay or reward, were not to be depended upon; and he wrote to congress, urging them to offer the troops good pay, in order that they might be induced to remain in the camp to fight their battles. Congress voted, in accordance with his recommendation, a bounty of twenty dollars per man, and small portions of land to every officer and soldier who should serve during the whole war. This, however, was not deemed sufficient, and Washington again wrote to congress, asserting, not only that if the offer were not raised, both officers and soldiers would leave the service, but that they would universally, as many were already doing, join the royal army. Congress again acceded to his wishes: they voted an increase of pay and bounty-money, and offered other advantages, immediate or prospective, which made it more profitable for them to remain in the American service, than to join Lord Howe. By this means Washington's troops were kept together, and General Howe was therefore, compelled to exert himself for victory. Having thrown up intrenchments to defend his own lines, and the approaches to New York, on the 12th of October he embarked a considerable part of the royal army, and landed them at Frog's-neck, about nine miles in the rear of Washington's positions. Some of the ships of war went still higher up the North River, so as to cut off any retreat to the Jerseys. The only road open to escape, indeed, was one leading to the New England provinces, and this, it is thought, might have been secured. Washington now contemplated deciding the fate of America by a pitched battle, and had it not been for the remonstrances of General Lee, the deserter, who had come up from Sullivan Island and the Carolinas, he would thus have acted. A council of war was called, and it was decided that they must decamp immediately, and get towards the open country, called the White Plains. In their retreat there was some skirmishing, in which the British troops were victorious; but on the 22nd of October, Washington succeeded in gaining the edge of the White Plains, where he put the main body of his army in a long line of entrenched camps, extending from twelve to thirteen miles on different heights, and having the deep river Brunx in his front. In this position he was attacked by the royal army on the 28th of October: the troops being divided into two columns; the left, led by Howe, and the right by Clinton. As they advanced towards the White Plains Clinton's column fell in with several bodies of the enemy, and drove them back in great confusion to their lines. It was observed, as the troops approached the American lines, that they were strongest on the flanks,

and weakest in the centre. Had an assault been made on the centre, the absolute destruction of the American army would have been inevitable; but General Howe, neglecting that point, ordered a strong detachment of the left wing, under General Mac Dougal, to attack an eminence on which 4000 men were advantageously posted, probably for the purpose of covering a retreat, if necessary. This detachment succeeded in their enterprise; but it then became necessary to preserve the hill which the troops had gallantly taken possession of, and, in so doing, the left and right wing of our army were, in a great measure, severed from one another, so that they could not attack the main position of the Americans. That night the British troops slept on their arms, and the next day they encamped, with the left wing on one side of the Brunx, and the right on the other. On the 30th, having received some reinforcements, Howe made a disposition to attack the enemy's lines on the following morning; but during the night it rained in torrents, and the faces of the hills became, in consequence, so slippery, that the attack was postponed till the morrow. In the meantime, however, his intention was betrayed by a deserter, and before the break of day Washington evacuated the lines, set fire, in his retreat, to all the houses on White Plains, crossed the Croton River to North Castle, and took up a strong position, with the Croton stretching along his front, and having his rear well defended by woods and heights.

CAPTURE OF FORT WASHINGTON.

Perceiving from the nature of the country that he could not force the American commander to join battle, General Howe now made a retrograde movement. Washington had left considerable forces at Fort Washington and King's Bridge, in the hope that those positions might be secured, even though he retreated or were beaten. The force in Fort Washington, and in the extensive entrenchments round it, consisted of 3000 men, under the command of the gallant Colonel Macgaw. This post was important to the royal army, as it secured an intercourse with the Jersey shore, and as in the hands of the enemy it seriously obstructed the navigation of the North River. General Howe, therefore, resolved to take it, and on the 15th of November, the garrison was summoned to surrender, on pain of being put to death by the sword. This summons was unheeded, and on the following morning it was carried by a furious assault; and all the garrison who were not slain, were taken prisoners. On the side of the British, also, there was a great loss; eight hundred being either killed or wounded.

CAPTURE OF FORT LEE, AND RETREAT OF WASHINGTON.

Immediately after this success, Lord Cornwallis crossed the North River, and drove the Americans from Fort Lee, which was nearly opposite Fort Washington, and took all their artillery, provision, and stores. This advance induced the American general to quit his post on the Croton, and fall back upon the river Delaware. Cornwallis penetrated to the remotest parts of East and West Jersey, and on the 24th of November, having received some reinforcements, he marched for Brunswick. He was now within two or three marches of the Americans, who fled before him in dismay; but when he arrived at Brunswick he was ordered to halt. He did not receive orders to advance till the 16th of December, and then it was too late for him to overtake the

enemy. When he arrived at Princetown in the afternoon of that day, the last of the Americans had cleared out, and on pursuing them the next morning he reached Trenton only in time to see Washington’s last boats crossing the river. At that time the forces of the American general scarcely amounted to 3000 men, for numbers of them had deserted, and those that remained were chiefly unsteady militia. Beyond the Delaware, indeed, Washington’s force lost all appearance of an army; and the men still continued to desert, though often brought back forcibly to the camp. Lord Cornwallis now desisted from the pursuit, and put his division into winter-quarters, between the Delaware and the Hakensack.

EXPEDITION AGAINST RHODE ISLAND.

While Cornwallis had been advancing through the Jerseys, General Clinton had been sent, together with the squadron of Sir Peter Parker, to Rhode Island, where an American squadron had been collected under Commodore Hopkins. This island was taken without any difficulty, and Hopkins retired up Providence River, where he remained inactive and useless. The people of Rhode Island, however, were enthusiastic revolutionists, and it required a considerable force to keep them in awe; whence, during three years, a great body of men were left in perfect idleness.

SUCCESSES OF GENERAL CARLETON.

It has been seen that the American army which had been driven from Canada, took refuge on the Isle Aux Noix, and that General Carleton was preparing to follow up his successes. It required vessels to cope with the American flotilla, and to command the lakes St. George and Champlain, near which the Isle Aux Noix was situate, and of these the general was in want. The frame-work of vessels was, indeed, sent for from England, but it required time before they could arrive, and still further time to put them together. Still Carleton did not remain idle. In the emergency he sent detachments from the king’s ships stationed at Quebec, with volunteers from the transports, and a corps of artillery, to fell timber, and to occupy a favourable post on the Lake Champlain. The keel and floor-timbers, also, of the “Inflexible,” a ship of three hundred tons, which had been laid down at Quebec, were taken to pieces, carried over to St. John’s, and laid down again at a corner of the lake, where a little dock-yard was improvised. Moreover, thirty long-boats, many large batteaux, and a gondola of thirty tons were carried up to the spot, partly by land, and partly by being dragged up the shoals and rapids of the river Sorel. In a few weeks, indeed, General Carleton had a naval force—such as it was—to sweep the Lakes Champlain and St. George from end to end. But before these preparations were completed, the Americans had quitted the Isle Aux Noix, and had traversed the lake for Crown Point. Congress had voted that General Gates should take the command of these troops, and that Arnold, the hero of the Canada expedition, should command the squadron of fifteen vessels which were on the lake. When his preparations were completed, Carleton lost no time in seeking this squadron, and on the 11th of October he discovered it in a strong line across the passage between Isle Vallicour and the western shore of the lake. A warm but indecisive action ensued, which lasted till night-fall; but Arnold in the course of the night, though well watched, escaped from the passage, and attempted to make Fort Ticonderago. On the following morning his

squadron was out of sight, but before noon the British flotilla got up with it again, and brought it to action a few leagues below Crown-Point. After a running fight of two hours, Arnold’s headmost vessels succeeded in reaching Crown-Point, and the narrow part of the lake beyond that fort; but the “Washington” and “Jersey” were taken, and all the rest were run on shore, and there burnt by their crews. Crown-Point was immediately abandoned by the provincials, who ran for their lives to Ticonderoga. This fort was deemed too strong to be successfully attacked, at so advanced a season of the year, and Carleton, having strengthened the British fleet so as to ensure the command of Lake Champlain, evacuated Crown-Point of which he had taken possession, and returned to Quebec, where he exerted himself during the winter in making preparation for the next campaign. At the same time General Burgoyne returned to England.

MEASURES OF CONGRESS.

Although the confidence of many members of congress, that the contest would soon be over, was shaken, yet as a body they remained firm and hopeful. At the same time, on the advance of Lord Cornwallis through the Jerseys, they fled for safety from Philadelphia to Baltimore, in Maryland. On reassembling here, however, they betrayed no despondency or any lack of spirit. The hope of obtaining their grand object,—independence and separation from Great Britain,—seemed to sustain them in the midst of all their reverses. They now materially enlarged the powers of Washington. They authorised him to raise sixteen additional regiments; furnished him with all the money they could, and promised him a great deal more; and finally conferred upon him, for six months, a sort of dictatorship. They further voted a loan of 8,000,000 of dollars; they made more paper-money; they threatened all who would not receive it in payment for goods or labour; and they adopted all possible means, by force, intimidation, and enticement, to get money into the treasury, and to inspire courage into the hearts of the people. As for their committee of correspondence, they laboured ardently to induce France and Spain openly to espouse their quarrel, and to threaten England with an invasion, while the flower of its troops were engaged in America. It was proposed in congress that their commissioners at Versailles should be authorised to transfer to France the same monopoly of their trade which had been possessed by Great Britain. This, however, was relinquished as a measure which would strike a mortal blow at some of their leading arguments in favour of independence. It was next proposed that France should be offered a limited monopoly, and, this failing, it was suggested that France might be gained over by the offer of an alliance offensive and defensive. The more prudent among them represented that if France would venture into the war at all, it would not be by any treaty, or compact, or promises of congress, but out of her old rivalry and hatred of England. All the assurances she would want, they said, was an expression of their determination never again to submit to the mother country, but to persist in their present course, though all the world should be merely lookers-on. Resolutions were printed to this effect, and sent all over the union, and then to the principal courts of Europe, with agents appointed to impress upon those courts the sincerity of this declaration, and to solicit their friendship for the United States. The agents chosen for this mission were Dr. Franklin, Silas Deane, and Mr. Arthur Lee, and what success

attended their negotiations will soon be seen. Though appealing to the worst passions, and the most selfish feelings of foreign courts and cabinets, they were, nevertheless, not only listened to with complacency, but obtained present aid covertly, and had hopes held out to them of aid openly hereafter.

DEFECTION OF THE COLONISTS, ETC.

Towards the close of this year, clear proofs were given that the Americans were not wholly unanimous in the cause of independence. The inhabitants of the city and island of New York, and of Long Island, and various other places, presented petitions to Lord Howe, declaring that they acknowledged the supremacy of Great Britain, and praying to be received into the king’s peace and protection. On the removal of congress from Philadelphia to Baltimore, the majority of the Philadelphians also began openly to declare for the royal cause. Washington detached troops to that city to quell the anti-revolutionary spirit, but this did not prevent many of its leading men from going over to, and corresponding with the commissioners. Moreover, most of the towns of the Jerseys sent deputations to the king’s commissioners, and expressed their anxiety for a renewed allegiance to the British Crown. Possibly this may in part be attributed to the success of the royal arms, but it is evident that the feelings generally arose from genuine patriotism. Self-preservation may, also, in part, have dictated this line of policy, for in one particular the advice of Lord Barrington had been followed with respect to the Indians, and it had produced its natural consequences. Our establishments for the management of affairs with these tribes were withdrawn, and then the red men were left to act as they pleased; and they had a long account to settle with the Americans. From the earliest period of their emigration the colonists had laid it down as a principle that the red men were to be treated like beasts of prey, and they still hunted them down on every opportune occasion. Hence, as the Indians were accurate accountants in matters of blood, and held it as a sacred part of their religion, that they were bound to avenge the death of their kindred; no sooner were our agents withdrawn, than the Creek and Cherokee Indians resolved to ravage the back territories of Virginia and the Carolinas, and to carry, if possible, both fire and the spear into the heart of these colonies. They were repulsed by the militia of the colonies, but not before they had taken a terrible revenge for long-endured wrongs; and the day might not be far distant when they would return with other tribes to extend their devastations throughout America.

MEETING OF PARLIAMENT.

The British parliament assembled on the 31st of October. In his opening speech the king declared that nothing would have given him so much pleasure as to be able to state that the troubles in America were terminated, and that the colonists had returned to their duty. He continued:—“But so daring and desperate is the spirit of their leaders, whose object has always been dominion and power, that they have now openly renounced allegiance to the crown, and all political connexion with this country; they have rejected, with circumstances of indignity and insult, the means of conciliation held out under the authority of our commission; and have presumed to set up their rebellious confederacies for independent states. If their treason be suffered to take root much mischief must grow from it to the safety of my loyal

colonies, to the commerce of my kingdom, and, indeed, to the present system of all Europe. One great advantage, however, will be derived from the object of the rebels being openly avowed and clearly understood;—we shall have unanimity at home, founded in the general conviction of the justice and necessity of our measures." His majesty said that he was happy to inform them that Canada was recovered, and that the success in the province of New York had been such as to give the strongest hopes of the most decisive consequences. He then recapitulated, as usual, the pacific assurances of European powers, although he must himself have had some doubts at this time of the sincerity of their professions. It is manifest, indeed, that signs of a rupture had become evident to the British cabinet, for his majesty added to this part of his speech,—"That he indulged the hope that all misunderstanding might be removed, and Europe continue to enjoy the inestimable blessing of peace." He also recommended that England should be put in a respectable state of defence, and urged upon his "faithful commons," the necessity of granting ample supplies for the maintenance of the honour of his crown, and the vindication of the just rights of parliament. He concluded thus:—"In this arduous contest I can have no other object but to promote the true interests of all my subjects. No people ever enjoyed more happiness, or lived under a milder government than those now revolted in the provinces: the improvements in every art of which they boast declare it: their numbers, their wealth, their strength by sea and land, which they think sufficient to enable them to make head against the whole power of the mother country, are irrefragable proofs of it. My desire is to restore them to the blessings of law and liberty, equally enjoyed by every British subject, which they have fatally and desperately exchanged for all the calamities of war, and the arbitrary tyranny of their chiefs."

{GEORGE III. 1776–1777}

DEBATES ON AMERICA.

Addresses which were, as usual, echoes of the speech, were brought forward in both houses, and they elicited violent debates. In the commons Lord John Cavendish moved an amendment of greater length than even the proposed address. This amendment was seconded by the Marquess of Granby, and in it, and the debates that ensued, it was affirmed that the disaffection and revolt of the colonists could not have taken place, if there had not been great faults committed against them. The faults pointed out were, chiefly, the rejection of petitions and complaints; the improper instructions given to commissioners for the purpose of reconciliation; the endeavours made to break down the spirit and independence of the colonists, by the many acts of parliament passed during the recent sessions; and the project of extirpating the Americans by the sword. All these errors were imputed by the opposition to the want of information, and the too great confidence in ministers, who though in duty bound to ascertain the temper and disposition of the Americans, had totally failed for want of that knowledge. An appeal to the sword was denounced as a most dangerous precedent, and by a strange perversity of mind the leaders of the American revolution were described and especially by Wilkes, as men averse to a change of government,

and as being only driven to extremities by an accumulation of neglect, insult and injury, and by two years of a savage, piratical, and unjust war, carried on against them by the English people. Wilkes also, with others on the same side, took umbrage at the word “treason,” as applicable to the Americans, asserting that what ministers called “treason,” the Americans denominated “a just resistance and glorious revolution.” As for the pacific declarations of foreign powers, and especially the Bourbons, all reliance on them was exposed with sarcasm and ridicule. Colonel Barré, indeed, declared that a war of the most serious nature with France and Spain was impending over the country. The whole of his majesty’s speech was, in truth, denounced as false, insidious, hypocritical, and deceptive;—as holding out law and liberty, indeed, but holding it out at the point of the sword.

The speech and address were defended by Lord North and Lord George Germaine. Lord North denied the charge which had been alleged against him of withholding information; declared that he had always communicated to the house as much as he could divulge with safety; and indignantly repelled the charge of hypocrisy advanced against that part of the king’s speech which stated his desire to restore law and liberty to the colonists. In his own peculiar quiet way, Lord North hinted to the opposition, that if they were members of the new American legislature, they could not have ventured to make so free with the president and majority of congress, as they were now doing with their sovereign, his ministers, and the majority of the English parliament. In the defence, Lord George Germaine remarked that we had been anxious for reconciliation upon mild and fair terms, and that these terms had been rejected with scorn by the American leaders. According to their own statements, he said, of the propositions made by Lord Howe, and the conference that had taken place on Staten Island, his lordship was as eager for the restoration of peace, as Franklin, Washington, and the other leaders were for the continuance of hostilities. He then turned to the statements made by foreign powers, concerning their friendship for England. These statements of the princes of the House of Bourbon must be taken as proofs of their pacific intentions, but if they proved false, and should incur the folly and the guilt of assisting a rebellion, Great Britain was prepared to meet them in the field. He pertinently asked:—“Will the Bourbons, blind to their own interests, wish the spirit of independence to cross the Atlantic? Can they be exempt from fear, lest their own colonists should catch fire at the doctrine of the unlimited rights of mankind, and prefer them to slavery and digging of gold? And will not great danger arise from the vicinity of powerful states freed from European control?” Finally, it was urged in defence of the speech and address, that the only question which called for debate, was simple in its nature it was, only, whether we chose to resign all the benefits we derived from our colonies, and which had been purchased by our best blood and treasures, and by truckling to the defiance and insult hurled at us by the Americans, cut off those sources of power and opulence, and submit to a degradation from the rank we held in the political system of Europe; or, whether we should, by the full exertion of our power, preserve those advantages, assert our ancient supremacy, restore the authority of the British Parliament, and bring back our ungrateful subjects to a sense of their duty. A division on the amendment answered these questions; it was negatived by a majority of two hundred and

forty-two against eighty-seven, and the original address was therefore carried.

In the upper house, an amendment was moved by the Marquess of Rockingham, similar to that of Lord John Cavendish, and was followed by debates of equal violence. By the Earl of Shelburne the speech was denounced as a tissue of sophisms, and as a composition of unqualified absurdity, treachery, cruelty, hypocrisy, and deceit. He attempted to show, indeed, that all its paragraphs were false, differing only in this—that some of the falsehoods were fallacious, some specious, and some notorious. The Duke of Richmond maintained that America was lost for ever, and he thought that we had better sit down quiet and contented at the loss, consoling ourselves with the reflection that it had been no fault of our own, but, solely that of an unjust and imbecile administration. But even Lord Shelburne did not concur in this opinion: he never meant, he said, this country to give up its right of commercial control over America, which was the essential bond of connexion between the two countries; and he declared that as the national debt was truly and equitably the debt of every individual in the empire, whether at home, or in Asia, or America, the Americans ought in some way, to contribute to its discharge. Lord Sandwich, the first lord of the Admiralty, more warmly opposed the doctrine of quiescence propounded by the Duke of Richmond. It was, he said, derogatory to the honour and destructive to the interests of England; and he declared that he would hazard every drop of blood, and his last shilling, rather than see his country set at defiance, bullied, and dictated to, by her undutiful and ungrateful children; her disobedient and rebellious subjects. The amendment was negatived by a majority of ninety-one against twenty-six. Fourteen peers had it entered on the journals, at full length, as a protest signed by themselves.

On the 16th of November, Lord John Cavendish produced a copy of the proclamation issued by Lord Howe and his brother, as commissioners, and proposed that, in conformity to its tenor, the house should resolve itself into a committee for revising the acts by which the colonists felt themselves aggrieved. This proposition was seconded by Burke, and many of the opposition harangued in its favour. Ministers, however, opposed such a step, on the ground that this inquiry into grievances had been proffered only to those who should return to their duty, and hence a disavowal of independence, and an acknowledgment of British supremacy were requisite, before any measures of reconciliation could be adopted by Great Britain. On a division the motion was lost by a majority of one hundred and nine against forty-seven.

After the rejection of the proposition of Lord John Cavendish, many members of opposition, especially those of the Rockingham party, seceded from the business of parliament, alleging that it was useless to discuss or oppose ministerial measures. This conduct, however, was blamed by the majority of the opposition, who contended that no member of parliament could, consistently with his duty, desert the interests of his country, merely because he felt that his party would be outvoted. It was agreed that no one could infer from thence that his attendance would be useless, and that a respectable minority, though not able to carry measures of its own, might, nevertheless, modify injurious laws and counsels, by exposing their pernicious tendency. Some who held these opinions made efforts to bring the great orator,

Chatham, to the charge again; but his gout prevented him from coming to the house, and little could be elicited from him beyond a declaration that his sentiments with regard to America were the same which he had always professed, and which stood fully explained in his Provisional Act. At the same time he expressed his fears that, in a few years, France would set her foot on English ground. Thus, cleared of its members, the house of commons voted the army and navy estimates without any display of violent opposition. The number of seamen voted was 45,000, and £3,205,505 were voted for the expenses of the navy; exclusive of £4000 for the support of Greenwich Hospital, and £500,000 to go towards the discharge of the debts of the navy. The army estimates voted, were about £3,000,000 exclusive of extras, and some new contracts with German princes, for more German troops to serve in America. These supplies being granted, on the 13th of December, both houses adjourned for the Christmas recess.

ATTEMPT TO FIRE HIS MAJESTY'S DOCKYARD AT PORTSMOUTH.

During the recess of parliament, the public mind was agitated by acts of incendiarism, which seemed at one time to denote that a conspiracy had been entered into for the destruction of both our shipping and our arsenals. In 1764, Choiseul, the French minister, had concocted a plan for such a fearful catastrophe, but having divulged it to Grimaldi, then prime minister of Spain, through him it was discovered to Lord Rochford, our ambassador at Madrid, and the scheme therefore failed. Ministers might have taken warning from this circumstance, and have had the dock-yards and arsenals watched with sufficient vigilance, as to prevent so disastrous an event from ever taking place. By this time, however, they had returned to their old confidence, and on the 7th of December, a fire broke out in the dock-yard at Portsmouth, which threatened its total destruction. It was got under by great exertions, and it passed at first for an accident, but on the 15th of January, one of the under-clerks of the dock-yard having occasion to move some hemp in the hemp-room, discovered a machine and combustible materials, which had evidently been placed there by the hands of an incendiary. Some weeks before, a sullen, silent man, a painter by trade, and who was known by the name of John the Painter, had been seen loitering about the yard, and he was now suspected to be the delinquent. Suspicion fastened still stronger upon him because he was known to have recently come from America, and a cry of alarm instantly spread through the country that American incendiaries had arrived in England, and would spread fire and destruction on every hand. It was necessary that John the Painter should be taken, and soon after he was identified at Odiam in Hampshire, where he had been apprehended for a burglary. John was brought up to London for examination, but he was so taciturn, and so wise in keeping his own counsels, that neither the privy-council, nor the lords of the admiralty, nor other officers who interrogated him, could elicit anything from him that would tend to his crimination. What authority, however, failed to perform, that craft brought about. On the suggestion of Earl Temple, another painter, who had been also in America, was put into the same ward with John, in order to circumvent and entrap him. Fellow-feeling caused the taciturn prisoner to open his mouth. His brother painter pretended to sympathise in his misfortunes, descanted largely on his travels in America, and professed principles similar to his own. The travelled painter

did all this with such address, that he finally gathered from John that his real name was Aitken; that he had entered into many regiments from which he had deserted so soon as he had received the bounty-money; that he had traversed England through nearly all its parts, sometimes robbing on the highway, and sometimes filching and stealing in towns while he worked at his trade: that he went to America, where he commenced politician and reformer of abuses, and where he conceived the notion of serving the cause of liberty by burning our shipping and our principal trading cities and towns; that he then left America for France, where he had several interviews with Silas Deane, the agent of congress; that Silas Deane encouraged his project, by giving him money and promising him rewards commensurate with the service he should render the American cause; that he then procured a French passport and came over to Canterbury; and that on leaving Canterbury he proceeded to Portsmouth, where he began to compound and prepare his combustibles, after which he went into the dock-yard and made the attempt of which he was suspected. The manner in which this evidence was derived was certainly contrary to the spirit of the English law, and repugnant to the feeling and practice of the present day, but on this evidence vouched by the travelled painter, John the Painter was condemned and executed. There was no doubt left on any mind either as to the culprit’s guilt, or to his connexion with Silas Deane; but before his death he is said to have confessed to some naval officers, that most of what his accuser had testified against him, was true—that he had, indeed, applied to Deane, who had promised him a reward of great price when his work should be done. Nothing transpired which would inculpate Choiseul the French minister, but as he was still in office, and as his animus was well-known, he was thought to have been concerned in this plot likewise. But it failed; and the circumstance had the effect of still further exciting the enmity of the English people towards the Americans.

CHAPTER VIII.

{GEORGE III. 1777–1778}

Letters of Marque granted..... Bill for Detaining Persons in Prison charged with High-treason..... Miscellaneous Debates..... Spirited Address of the Speaker to the King..... Lord Chatham’s Motion for Concessions to America..... Parliament Prorogued..... Successes of Washington..... British Expedition up the Hudson River..... American Expedition to Long Island..... Capture of General Prescot, &c. Battle of the Brandywine, &c. Capture of Philadelphia..... Opening of the Delaware..... Close of Howe’s Campaign..... Expedition and Capture of Burgoyne..... Clinton’s Expedition up the Hudson..... Meeting of Parliament..... Debates on America..... Duke of Richmond’s Motion for Inquiring into the State of the Nation..... Fox’s Motion for Inquiring into the State of the Nation..... Army and Navy Estimates..... Intelligence of Burgoyne’s Defeat..... Royal Assent to Several Bills..... Parliament Adjourned.

{A.D. 1777}

LETTERS OF MARQUE GRANTED.

On the meeting of parliament, after the recess, a bill was brought into the commons for enabling the admiralty to grant letters of marque and reprisal to privateers against vessels belonging to the revolted colonies, which were now doing much mischief, not only among our West India Islands, but also in the narrow seas of Europe. This bill passed the commons without a debate, and it went through the lords without any amendment, except that the words “letters of permission” were substituted for “letters of marque.”

BILL FOR DETAINING PERSONS IN PRISON CHARGED WITH HIGH-TREASON.

On the 6th of February Lord North introduced a bill “For enabling His Majesty to detain and secure Persons charged with, or suspected of, the Crime of High-treason, committed in North America or on the High-seas, or the Crime of Piracy.” The bill provided, that all persons charged with or suspected of treason, committed in any of the colonies, or on the high-seas, or of piracy, should be liable to be committed to any place of confinement named by the king, under his sign-manual, within any part of his dominions, without bail or mainprize, and there detained, without trial, during the continuance of the act, unless his majesty’s privy-council granted an order for admitting any such prisoners to bail or to trial. This bill encountered a strong opposition. On the second reading Mr. Dunning declared that it struck directly at that great pillar of British liberty, the Habeas Corpus Act, and that it was disgraceful that it should be brought in without notice, and when the house was so thinly attended. He moved, that the bill should be printed, which was granted, and the second reading was therefore postponed. The alarm it excited brought back several of the seceders, and the debate became more animated. It was urged by the opposition that the bill would tend to create spies, informers, and false accusers; that it would furnish means of gratification, emolument, and safety to the most profligate of mankind; and that it would enable any revengeful minister or mercenary villain to satiate his revenge or replenish his purse at the expense of the virtuous. Charles Fox used some cogent arguments against the measure. He remarked:—“Who knows but ministers, in the fulness of their malice, may take into their heads that I have served on Long Island under General Washington? What would it avail me, in such an event, to plead an _alibi_—to assure my old friends that I was, during the whole of the campaign, in England—that I was never in America, or any other sea but between Dover and Calais, and that all my acts of piracy were committed on the mute creation? All this may be true, says a minister or a minister’s understrapper, but you are for the present suspected, and that is sufficient. I know that you are fond of Scotland:—this is not the time for proofs; you may be, and very probably are innocent, but this bill cares not whether you are guilty or innocent: I will send you, under the sign-manual, to study the Erse language in the isle of Bute; and as soon as the operation of the bill is over, you will be at liberty to return, or go whither you please. You may then call upon your accusers, to prove their charges of treason in America, or of piracy on the high-seas; but they will laugh in your face, and tell you they never charged, they only suspected; and the act of parliament will serve as a complete plea in bar. It will answer a double end—it will be at once your redress and our justification.” In reply,

Lord Thurlow ridiculed the idea that the bill was framed to reach disaffected persons within this realm; though, he added sarcastically, for his own part, if it did operate in this direction, he should scarcely consider it a fault. The commitment of the bill was carried by a majority of one hundred and ninety-five against forty-three; but as it was discovered that some of the clauses were opened to serious objections, several amendments were made in committee, one of which, moved by Sir Grey Cooper, secretary to the treasury, defined the places and the extent of the offence, subjecting persons to the operation of the act. This, however, by no means satisfied either the opposition or the country at large. A petition was presented from the city of London, praying that the bill might not pass, or if it did, that it might not extend to persons resident in Great Britain. A clause to this effect was adopted, principally by the efforts of Mr. Dunning, and another was also carried, which exempted certain minor acts of piracy from the operation of the bill. Thus amended, the bill passed both houses; and the opposition felicitated themselves, that, notwithstanding their numerical weakness, they had compelled ministers to accept their corrections of so reprehensible and dangerous a measure.

MISCELLANEOUS DEBATES.

A series of debates arose on abuses in the commissariat, in the chartering of transports, and in the contracts for supplying the troops in America with provisions, rum, &c. These abuses existed to an enormous extent, and they were laid at the doors of many members of the house of commons, who invariably voted with the treasury-bench. These members had been allowed to get profitable contracts, and they contrived to render them still more profitable, by supplying unwholesome provisions to the troops, and which was, therefore, deservedly condemned. Another violent debate took place on account of a new demand made by the Landgrave of Hesse for more money; and Lord North’s situation was rendered still more embarrassing by the necessity he was under of asking the faithful commons for an increase to the civil list, amounting to upwards of £600,000, in order to discharge a second debt incurred by his majesty. Violent debates followed these demands, but both the Landgrave of Hesse and his majesty were gratified eventually with having their desires granted. The sum of £618,340 was granted, to enable his majesty to pay his debts, and the further sum of £100,000 was voted in addition to the sum already fixed of £800,000 per annum, for the better support of his majesty’s household. The latter grant was warmly opposed in the house of lords by the Marquess of Rockingham and the Duke of Grafton, who endeavoured to enforce the necessity of economy, and to show that the sum which his majesty already received was sufficiently ample to sustain his dignity. They also argued, that this increase would furnish him with the means of obtaining corrupt influence, and an unbounded power and control over parliament. The opposition, however, were defeated by the usual large majority, and the amendment which the Marquess of Rockingham moved was entered as a protest on the journals, which was signed by fourteen peers.

SPIRITED ADDRESS OF THE SPEAKER TO THE KING.

In presenting this extraordinary grant to his majesty for the royal assent, Sir Fletcher Norton remarked:—“In a time of public distress, full of difficulty and danger,

their constituents labouring under difficulties almost too heavy to be borne, your faithful commons, postponing all other business, have not only granted to your majesty a large present supply, but also a very great additional revenue—great beyond example—great beyond your majesty's highest expense; but all this, sire, they have done in a well-grounded confidence that you apply wisely what they have granted liberally; and feeling that, under the direction of your majesty's wisdom, the affluence and grandeur of the sovereign will reflect dignity and honour on his people." It is said by some that this freedom of speech was unwelcome to the royal ears, and it is certain that his courtiers were highly indignant; and yet Lord North allowed the usual vote to pass, returning the thanks of the house to the speaker, and requesting him to allow his speech to be printed. Notwithstanding, his spirited conduct did not pass by unnoticed. In the course of a debate on an address to his majesty moved by Sir James Lowther, praying for an increase of income to the king's two brothers, which was negatived, the recent conduct of the speaker was violently arraigned by Mr. Rigby, In reply, Sir Fletcher Norton appealed to the vote of thanks which he had received, as a proof that the sentiments he had expressed were the sentiments of the house. The court party, however, retorted, and Lord North, uneasy at the altercation, wished that the subject might be dropped. But the opposition now stepped in to keep up the ball. Charles Fox declared, that a serious and direct charge having been made, the question was now at issue—either the speaker had misrepresented the house, or he had not, and the question must be decided by the house. Fox accordingly moved:—"That the speaker of this house, in his speech to his majesty at the bar of the house of peers, on Wednesday last, and which was desired by this house, _nem. con._, to be printed, _did_ express, with just and proper energy, the zeal of this house for the support of the honour and dignity of the crown, in circumstances of great public charge." The speaker now declared, "that he would sit no longer in that chair than while he was supported in the free exercise of his duty: he had discharged what he conceived that duty required of him, intending only to express the sense of the house; and from the vote of approbation with which he had been honoured, he had reason to believe that he was not chargeable with any misrepresentation." Lord North, perplexed at the dilemma to which the heat of the courtiers had brought him, besought the speaker to rest quiet, and the mover and supporters of the question to let it drop; asserting, that no censure had been intended, and that though the speaker might have made some mistake, it could only be attributed to the hurry of an extempore address, and not to his judgment. The withdrawal of the motion was refused, and then, still hoping to evade a division, ministers moved an adjournment.

Opposition, however, maintained, that if the motion were not carried, the speaker could not safely remain in the chair for another moment; that he would, on all future occasions, be liable to disgrace whenever he fulfilled his duty; that the dignity of the house would be at an end if the chair should be degraded; and that the step which the court-faction had taken was an attempt to render the representatives of the people despicable in the eyes of their constituents. Ministers and the court faction were compelled to bow before the storm. The motion for an adjournment was withdrawn. Mr. Rigby made some concession, by declaring that he meant no reflection on the

character of the speaker, and that he merely meant to express his own private opinion, according to the privilege possessed by every member; and then Fox’s motion was put and carried unanimously.

LORD CHATHAM’S MOTION FOR CONCESSIONS TO AMERICA.

Towards the close of the session there was a grand debate in the house of lords on the affairs of America. After a long absence, the Earl of Chatham moved for an address, advising his majesty to take speedy measures for terminating the war with America, by the removal of their grievances. The lords were summoned for the purpose of deliberating on this motion, and it was introduced on the 30th of May. Chatham commenced his speech by declaring the mother country unequal to the contest. He remarked:—“My lords, this is a flying moment; perhaps but six weeks are left to arrest the dangers that surround us. The gathering storm may break; it has already opened, and in part burst. It is difficult, after all that has passed, to shake hands with the defiers of the king—defiers of the parliament—defiers of the people. I am a defier of nobody; but if an end is not put to this war, there is an end to this country! I do not trust my judgment in my present state of health; this is the judgment of my better days—the result of forty years’ attention to America. The Americans are rebels; but for what? Surely not for defending their unquestionable rights. But their excesses have been great! I do not mean to pronounce their panegyric, but must observe, in extenuation, the erroneous and infatuated counsels which have prevailed here. The door to mercy and justice has been shut against them; but they may still be taken up upon the grounds of their former submissions and petitions. I state to you the importance of America: it is a double market—a market of consumption, and a market of supply. This double market for millions, with all its naval stores, you are giving to your hereditary rival. America has carried you through four wars; and will now carry you to your death, if you do not take things in time. In the sportsman’s phrase, when you have found yourselves at fault, you must try back. You have ransacked every corner of Lower Saxony; but 40,000 German boors never can conquer ten times the number of British freemen. You may ravage—you cannot conquer; it is impossible: you cannot conquer the Americans. You talk of your numerous friends to annihilate the congress, and of your powerful forces to disperse their army: I might as well talk of driving them before me with my crutch! But what would you conquer—the map of America? I am ready to meet any general officer on the subject, What will you do out of the protection of your fleet? In the winter, if together, they are starved—if dispersed, they are taken off in detail. I am experienced in spring hopes and vernal promises: I know what ministers throw out; but at last will come your equinoctial disappointment. You have got nothing in America but stations. You have been three years teaching them the art of war—they are apt scholars; and I will venture to tell your lordships that the American gentry will make officers enough fit to command the troops of all the European powers.

“What you have sent there are too many to make peace—too few to make war. If you conquer them, what then? You cannot make them respect you; you cannot make them wear your cloth; you will plant an invincible hatred in their breasts against you. Coming from the stock they do, they can never respect you. If ministers are founded

in saying there is no sort of treaty with France, there is still a moment left; the point of honour is still safe. France must be as self-destroying as England to make a treaty, while you are giving her America at the expense of twelve millions a year: the intercourse has produced everything to France; and England, Old England, must pay for all. I have, at different times, made different propositions, adapted to the circumstances in which they were offered. The plan contained in the former bill is now impracticable: the present will tell you where you are, and what you have now to depend upon. It may produce a respectable division in America, and unanimity at home: it will give America an option; she has yet had no option. You have said, 'Lay down your arms,' and she has given you the Spartan answer, 'Come, take.'" Lord Chatham here read his motion, which he afterwards said, if earned, would prove the herald of peace, and would open the way for treaty. In conclusion, he again urged the necessity of making peace with America before France should espouse the quarrel on behalf of the Americans. He observed, that the French court was too wise to lose the opportunity of separating America from Great Britain; that whenever that court, with that of Spain likewise, should enter into a treaty with America, we must declare war against them; and that he should be among the first to advise such a declaration, even though we had only five ships of the line in our ports. The Earl of Chatham was answered by Lords Gower, Mansfield, Lyttleton, and Weymouth, and by the Archbishop of York, who all maintained that the original aim of America was independence, and that concessions on our part now would be useless, ridiculous, degrading, and an acknowledgment of weakness, that would draw down upon England the contempt of her friends and the attacks of her foes. The motion was supported by the Dukes of Grafton and Manchester, Lords Camden and Shelburne, and the Bishop of Peterborough, who reiterated the arguments of the noble mover in its favour. In the course of the debates Lord Weymouth had expressed some doubt as to Chatham's real meaning, and later in the evening he thus explained it:—"I will tell your lordships very fairly what I wish for: I wish for a repeal of every oppressive act which your lordships have passed since 1673. I would put our American brethren on the same footing they stood at that period; and I should expect that, being left at liberty to tax themselves, they would in return contribute to our common burdens, according to their means and abilities. I will move your lordships for a bill of repeal, as the only means left to arrest that approaching destruction which threatens to overwhelm us. I shall no doubt hear it objected, Why should we submit or concede? Has America done anything on her part to induce us to agree to so large a ground of concession? But I will tell you, my lords, why I think you should concede—you have been the aggressors from the beginning; you have burned their towns, plundered their country, confiscated their property, and imprisoned their persons!" A murmur was heard through the house, that the Earl of Chatham was doing his best to encourage the Americans, and to discourage the people of England; and it must be confessed that the whole tenor of his speech was likely to produce such an untoward effect. Moreover, the sentiments which his speech contained were otherwise not founded in wisdom. Thus the belief which he expressed, that the Americans would, if left to tax themselves in their assemblies, contribute to our common burdens, according to their means and abilities was a fallacy which had been disproved by matters of fact; for, when in a previous year, and in the course of the quarrel, this had

been proposed to them, not one assembly would contribute a single shilling. All advances toward concession, indeed, were met by a louder appeal to arms; and there was at this time no alteration in their sentiments which could justify a hope that, even if a repeal of all the taxes were guaranteed to them, they would now lay down their arms, or cease the long and loud cry for independence. It was certainly now too late to offer any concession, and so the majority of the peers seems to have considered; for, on a division, the bill was lost by a majority of ninety-nine against twenty-eight.

{GEORGE III. 1777–1778}

PARLIAMENT PROROGUED.

During this session the other debates which took place related almost exclusively to East Indian affairs. These will be noticed hereafter in a continuous narrative. At the close of the session, the speaker, in presenting the bills relating to the supplies, again stated to his majesty the hope of the house that speedy means would be discovered to terminate the war, which otherwise might be attended with ruinous consequences to the prosperity, and perhaps dangerous to the safety, of the country. His majesty himself seems to have entertained a hope that the war would soon be ended; for on the 6th of June, when he prorogued parliament, after thanking the commons for the zeal and public spirit they had displayed in granting large and extraordinary supplies,—the whole amounted to £12,895,543,—he said, that he trusted Divine Providence would so bless the efforts of his forces that the war might be ended in the present campaign; that the constitutional obedience to the laws, which is due from all the subjects of a free state, would be speedily re-established.

SUCCESSES OF WASHINGTON.

Long before parliament was prorogued events had transpired which, if known, would have almost precluded the hope that the war in America would soon be successfully terminated. Notwithstanding his reverses, encouraged by congress, Washington exerted himself to raise a standing army. He met with great difficulties; and as the militia could not be stimulated to exertion, he had reason to fear that in a short time he should be left without any forces. In this emergency, Washington decided that something must be done to raise the drooping spirits of his followers. Circumstances favoured his decision. After the detachment which Lord Cornwallis had led through the Jerseys was put into winter-quarters, many of the officers had obtained leave of absence, and had repaired to New York, to enjoy themselves at head-quarters. The men who were left behind, also seem to have indulged themselves in Christmas festivities; being the more induced to lead a jovial life from their recent victories, and from the supposition that Washington’s army was completely disorganized. In all their cantonments, which were straggling and far apart, a careless confidence prevailed, and it happened unfortunately, likewise, that one of the most critical points was entrusted to a body of Hessians, and unprovided with any defence. But while they were slumbering in fancied security, Washington was marking them for his prey. He had spies everywhere, and having ascertained the situation of our forces, he resolved to try the effect of a sudden attack, which might

induce his enemy to fall back from the Delaware. Accordingly, on the 24th of December, he collected his forces on the opposite banks of the river, and on the next day he made his preparations for crossing it at night-fall. Difficulties which he had to surmount prevented him from gaining the left bank before three o'clock in the morning; but by that time his troops were collected a little above Trenton, where the Hessians were posted under the command of Colonel Rhalle. At the same time Generals Irving and Cadwallader were ordered to cross the river lower down, in order to cut off the retreat of the Hessians. These generals, however, could not get their artillery across the river, and they returned, leaving Washington with his division, which consisted of 2,500 of his best men, to perform his enterprise alone. It was four o'clock before he could get his troops into motion, and then he had to march eight or nine miles before he could reach Trenton, where the Hessians lay. But these mercenaries were buried in sleep and Christmas drink; and though it was daylight before the Americans arrived, they permitted themselves to be almost surrounded before they prepared for resistance. The event was disastrous. Colonel Rhalle assembled all that he could of his three regiments, and bravely charged Washington's main body; but at the very commencement of the attack he was mortally wounded by an American rifle, and the Hessians being encompassed on all sides with muskets and artillery, to the number of nearly a thousand, laid down their arms and surrendered. A troop of British light-horse, and about five hundred infantry, who were stationed at the lower end of Trenton, towards the bridge, escaped to Borden town; but Washington recrossed the Delaware in triumph, with his prisoners, six field-pieces, and a quantity of military stores.

This expedition had a surprising effect on the Americans. Hitherto the Hessians had been looked upon as invincible; but to show that this was a mere fiction Washington dispatched the prisoners to Philadelphia, and caused them to be paraded through the town. His troops were now soon augmented, and those whose time was expired agreed to remain a little longer, upon receiving a bounty of ten dollars per man. This success of Washington, however, made him rash. In a few days, the Delaware being frozen over, and the ice strong enough to bear his army and the artillery, he resolved to recover the Jerseys. On the last day of the year, 1776 therefore, he again crossed the Delaware, and took post at Trenton, where he had captured the Hessians. His reappearance alarmed the British general, and Lord Cornwallis, who had reached New York on his road to England, was ordered back to take the command in the Jerseys. Having effected a junction with Generals Grant and Leslie, at Princetown, on the 2nd of January, Lord Cornwallis descended from thence, drove the enemy's posts before him, and by four o'clock in the afternoon reached Trenton. A severe cannonade commenced, and Washington retired across the Assumpinck, a creek which runs through the town. He was followed by Cornwallis; but the British, finding the fords of the creek guarded by artillery, desisted from the attempt to pass over the fords, and night coming on, both armies kindled their fires, and spread their blankets whereon to rest. Cornwallis hoped to bring on a general engagement in the morning: but Washington, aware of this, and being prevented from recrossing the Delaware by a rapid and temporary thaw, he resolved to strike across the country, and get into the rear of Princetown, where no considerable

British force had been left, At two o’clock in the morning the Americans stole silently away; having first renewed their bivouac-fires, and left their advanced pickets and several small parties to guard for a time the fords of Assumpinck Creek. On his march, about sunrise, Washington fell in with two British regiments under Colonel Mawhood, in full march from Princetown, to join the forces at Trenton. At first, the morning being foggy, Mawhood mistook the Americans for Hessians; but soon discovering his error, he opened a heavy charge of artillery upon them, which threw their van into disorder. One of the regiments now rushed forward with fixed bayonets, and drove the Americans back to a ravine, which separated them from the rear; and in this attack General Mercer who was attempting to rally the rabble rout, was mortally wounded. Washington came up with the rear, and succeeded in getting his main body into order and passing the ravine, but in so doing he lost five more of his best officers, and was himself beset with danger. After several efforts, he succeeded in severing the two regiments under Mawhood, which success opened his way to Princetown. At the same time, part of the British force which he had encountered marched forward for Trenton, and part retreated towards New Brunswick. Washington entered Princetown, but as Lord Cornwallis had discovered his retreat, and was now in his rear, he left that town, and reached and crossed Millstone River; breaking down the bridge to prevent his being pursued. Cornwallis marched to New Brunswick, where he lay for many days, during which time Washington overran the greater part of East and West Jersey; made himself master of the coast opposite to Staten Island, by occupying Newark, Elizabeth Town, and Woodbridge; and fixed his head-quarters at Morris Town, a place situated among hills and difficult of access, with a fine country in its rear, abounding in supplies. By these events the whole of the Jerseys were for a time lost to England: and it was not only the success of Washington’s arms which led to this consummation. The inhabitants of the Jerseys had been harassed and plundered by the British, and more especially by the Hessian troops, whence, no sooner had Washington, who restrained the troops under him from committing acts of violence, issued a proclamation, absolving all those who had taken the oath of allegiance tendered by the king’s commissioners, and promising them friendship and protection on condition of taking another oath prescribed by congress, than the majority of them declared in his favour; and while not a few joined his army, others rendered him service by pretending still to be royalists, and acting as his spies in the English cantonments, and even in New York itself. Yet all the while Washington was thus acting—while he was issuing proclamations, recruiting his forces, strengthening his positions, erecting forts, mills, and magazines, reconciling the people of the country to the dominion of congress, and even cutting off the supplies of the British advanced posts at Brunswick and Amboy, the British commander was only a few miles distant, with a far superior force, and with a good fleet at command. True, it was winter; but it must be recollected that all the successes which had attended the arms of Washington were the results of a winter campaign. Still something was done by General Howe during this season of repose. Several thousand provincial troops, native Americans, and ardent royalists were enrolled and trained, and placed under the command of Governor Tryon, who was honoured with the rank of major-general of the provincials. And the good faith of these troops might be calculated upon, for the greater part had been losers by the

revolution, not only of property, but of the consideration which they had held in the colonies; and they hoped, therefore, to regain all that they had lost. Moreover, during the winter, an intercourse was kept up with the royalists in other parts of the continent; and both Washington and congress were frequently alarmed by rumours of movements and insurrections in various colonies. Congress, however, by means of the committees of safety, did what they could to remove all persons of influence and “desperate character” into some remote place, where they could effect no harm to the republican cause.

BRITISH EXPEDITION UP THE HUDSON RIVER.

In the course of the spring General Howe was assured that Washington’s main position, now among the Jersey hills, and called the Manor of Courland, was converted into a kind of citadel, and that the port to which his supplies were chiefly carried was Peekshill, about fifty mites up the Hudson River. Acting upon this information he sent a detachment of five hundred men, under the command of Colonel Bird, in a couple of transports, to drive the Americans away from Peekshill, and to capture their stores. As Bird approached the Americans fled from their position, but before they retreated they set fire to their store-houses, so that no booty was obtained. Shortly after this exploit Howe sent 2000 men, under the command of Governor Tryon, General Agnew, and Sir William Erskine, to seize a large quantity of stores which had been collected for Washington’s army at Danbury, on the borders of Connecticut. This detachment sailed up the east river in transports, and having landed at Camp’s Point, the troops marched to Danbury. On their approach, the Americans fled precipitately, and they entered the town, where they found a large quantity of stores; but having no carriages to carry them away, they were burned, together with the town of Danbury. Having completed their work of destruction, the detachment began to inarch back to their shipping; but while they had been thus employed the Connecticut men had been running in from all quarters, and had collected under the American generals, Wooster, Silliman, and Arnold. The latter general was posted at the little town of Bridgefield, and as there was no road but through the town, it was necessary to force his entrenchments. This was effected after a short but terrible conflict; and as it was now near night, and the British troops were fatigued, they formed themselves into an oblong square, and lay upon their arms till morning. In the morning, when they recommenced their march, they encountered fresh dangers. General Wooster had brought some field-artillery, and had placed it at the end of a bridge, over which he thought the British must of necessity pass; and when they arrived at the bridge they found him with his artillery and two strong columns drawn up on the bank of the river. Their guide, however, led them to a ford, three miles above the bridge, and there they crossed without opposition. But from this ford, nearly all the way to Camp’s Point, they were harassed in flank and rear by the American troops, who seemed resolved to cut them off. They paid dearly for their temerity. Just before the royal troops reached Camp’s Point Sir William Erskine, placing himself at the head of four hundred men, charged the two American columns, broke them, drove them back across the country, and General Wooster, with several field officers and a great many men, were left dead upon the field. The loss of the British, also, in killed and wounded, amounted to about two

hundred—the rest re-embarked and returned to New York.

AMERICAN EXPEDITION TO LONG ISLAND.

On both sides the contest at this time assumed the features of a predatory warfare. Having learned that the British had collected a large quantity of stores on Long Island, at a place called Sagg’s Harbour, the Americans resolved to destroy them by a night attack. This expedition was undertaken by Colonel Meigs, a Connecticut man, and he crossed the sound in whale-boats, reached the harbour before break of day, and though he met with some resistance, he succeeded in setting fire to the store-houses and to some of the shipping, and also in taking about ninety prisoners, with whom he returned triumphant to Connecticut.

CAPTURE OF GENERAL PRESCOT, ETC.

During the winter of the preceding year, while Washington was retreating before Lord Cornwallis Colonel Harcourt, who commanded our light-horse, took prisoner Charles Lee, who had deserted from the British service, in which he held the rank of colonel, and had gone over to the Americans, who conferred on him the rank of major-general. Lee was attempting to join Washington’s force with 3000 men, when he was captured, and his loss seems to have been considered a severe blow to the cause of the Americans. Washington, indeed, proposed giving six Hessian field-officers in exchange for him; which was refused, on the ground that Lee was a deserter from the king’s service, and therefore could not be considered as a prisoner of war, or be exchanged by cartel. Congress then took up the business, and directed that Washington should inform General Howe that five Hessian field-officers and Lieutenant-colonel Archibald Campbell, who had been captured at Boston after Howe had evacuated that city, should be thrown into confinement, and subjected to the same treatment which Lee should receive. This would have been no great hardship; for Lee was merely confined to a commodious house, and had every accommodation; but shutting their eyes to this well-known fact, congress threw Campbell into the common gaol of Concord, and decorated his loathsome dungeon with the ornaments of the gallows or gibbet. Washington himself represented the iniquity of such a proceeding, but to no purpose: the chagrin felt at the capture and retention of Lee forbade the exercise of a manly and liberal feeling. Congress had soon an opportunity of exhibiting their chagrin in a still stronger light. General Prescot, commanding-officer on Rhode Island, had imprudently fixed his head-quarters near the western shore, at a considerable distance from his troops. This was known to Colonel Barton, an American officer, and he, with several other militia officers and volunteers, chiefly Rhode Islanders, crossed over by night from Warwick-neck to Rhode Island, and took General Prescot in his bed, hurried him to their boats, and sailed away to the main land. It was announced that Prescot should be hanged if Lee were shot; and they treated him in the interval with great severity, in order to make General Howe consent to an exchange, to which he finally agreed.

{GEORGE III. 1777–1778}

BATTLE OF THE BRANDYWINE, ETC.

At length, in the month of June, General Howe took the field. At this time Washington, who had been greatly reinforced, had taken up a strong position at Middle Brook, having entrenchments and formidable batteries in his front. It was the object of Howe to tempt the American general to quit this position; and having failed in various expedients, on the 19th of June he ordered his main body to retire to Amboy. This succeeded. Washington abandoned what had cost him so much trouble to create, and advanced to Quibble Town. The mass of the British troops now moved back by different routes, in order to get on the American general's flank and rear, and by intervening between him and the hills, to force him to a conflict on open ground. Lord Cornwallis led the van, and he had not marched far before he fell in with Washington's advanced body, who were advantageously posted, and well provided with artillery. The British troops, however, attacked them with such impetuosity that the Americans fled, and were pursued as far as Westfield, leaving behind them some of their cannon, and two hundred men in killed and wounded. But by this time Washington had seen his error, and he quickly remedied it by regaining his station on the hills, and securing those passes which were the main object of Cornwallis's expedition. General Howe now altered his whole plan of operation. He called in all his detachments, concentrated his army at Amboy, and then passed over to Staten Island, leaving Washington in possession of the Jerseys. His men wondered what he meant to do; but they soon learned that his object was to take Philadelphia. To this end he set sail with his army on the 23rd of July, and on the 30th he rounded the coast to the capes of Delaware. His intention was to have sailed up the Delaware to Philadelphia; but discovering that the Americans had raised prodigious impediments on that river, he sailed to Chesapeake Bay, where he landed about the middle of August. By this time his men had become worn out by the long confinement on ship-board, and the horses had become almost useless; so that it was necessary for them to have rest before they proceeded on their enterprise. The van was put in motion on the 2nd of September, and on the day following, his advanced body fell in with some detachments of the enemy, scattered them, and took up their position, which was on Iron Hill, and which commanded a view of the Delaware river. It was now discovered that Washington had left the Jerseys and was in the field to oppose the advance of the British troops. He had taken possession of some heights on the eastern side of the river Brandywine, which falls into the Delaware below Philadelphia, with an intention of disputing the passage. Howe must necessarily cross this river in order to obtain the great object of the campaign, and he resolved to force his way over. The position of the enemy was formidable; but, notwithstanding, on the 11th of September, the attempt was made, and that successfully. General Knyphausen advanced with the second division of the army to Chad's Ford, as a feint; and while the Americans were defending that point, Lord Cornwallis had marched a few miles round, crossed the forks of the Brandywine, and came upon Washington's flank. On discovering this the Americans fell into great confusion, and Knyphausen then rushed with his division across Chad's Ford, and drove them from their batteries and entrenchments at the point of the bayonet. Later in the day the British forces attacked the Americans, under General Sullivan, who were strongly posted on the heights above Birmingham church, and drove them from thence in great confusion. In the whole they lost three hundred killed, about six hundred wounded, and four

hundred who were taken prisoners, besides several pieces of artillery; but Washington kept his corps together, and retired with his cannon and baggage to Chester, where he passed the night without molestation. On the following morning he marched by Derby to Philadelphia, where he collected his scattered troops, in order to defend the city.

CAPTURE OF PHILADELPHIA.

General Howe advanced towards, Philadelphia with caution. This was necessary, for the enemy hovered about him and threatened an attack. Washington, indeed, had not yet relinquished all hope of impeding the enemy's progress, and he made an attempt to repeat the stratagem which had been so successfully executed by Lord Cornwallis. When Howe put his army in motion he marched towards Chester, and took possession of Wilmington, where he lodged his sick and wounded. He was now about a day's march from Philadelphia; but there was the river Schuylkill intervening between him and that city, and on the bank of that river General Armstrong was posted to dispute the passage. At the same time Washington had struck away to the left of the British, by the Lancaster road, in the hope of getting on Howe's flank. Both Philadelphia and the inhabitants around, however, were friendly to the cause of Howe; and having gained timely information from some country-people, he extended his line, and presented such a front on the Lancaster-road that Washington was defeated in his design. A heavy fall of rain, also, had the effect of keeping the combatants asunder, for the ammunition on both sides was thereby rendered useless. Washington fell back to Warwick Furnace, on the south branch of the French Creek; and from thence he detached General Wayne, with 1,500 men, to cross a rough country and get, if possible, into the rear of the enemy. But here again he was foiled. Wayne's movement was discovered, and Major-general Gray, who was sent against him, attacked him suddenly by night in his bivouac, slew three hundred men, took one hundred prisoners, and captured all the baggage of those who fled. Washington now gave up his intention of defending the line of the Schuylkill and covering Philadelphia, and he retreated so as to leave the road open. Three days after, the British army passed that river, and took possession of German Town. By this time congress had fled from Philadelphia; and on the 26th of October, Lord Cornwallis, at the head of a strong detachment, took undisputed possession of the city. Congress had threatened to set fire to the place rather than let it fall into the hands of the British: but they abandoned this design, and no incendiaries were left, as at New York. Some loyal Quakers, and other royalists, had been put under arrest on Howe's approach, and about twenty of them had been sent close prisoners to Staunton, in Virginia; but the majority of the people remained at Philadelphia, and were well affected to the cause of the mother country.

OPENING OF THE DELAWARE.

By the capture of Philadelphia a communication was facilitated between the northern and south provinces, and nothing was required for an active co-operation between the army and the navy, but the opening of the Delaware. There was a great difficulty, however, in effecting this object. Franklin was now gone to Paris in his diplomatic capacity, but before he went he had caused some tremendous works to be

erected on that river. Three rows of _chevaux-de-frise_, composed of immense beams of timber, were sunk across its bed, a little below the confluence of the Schuylkill, and the lower line of the _chevaux-de-frise_ was protected by some works erected on the Jersey shore, at Billing’s Port, while the upper line was defended by a battery, mounting heavy cannon, and situated on a flat, marshy land, near the Pennsylvanian bank of the liver. On the opposite bank, also, there was a formidable redoubt and intrenchments, with floating batteries, armed galleys under cover, rafts, with guns upon them, and a great many fire-ships. Moreover, higher up the river, the Americans had two frigates, and several gondolas or gun-boats; while, lower down, there were various works to obstruct the navigation. At this time Lord Howe arrived with his fleet, and soon after commenced operations. Three batteries were erected on the Philadelphia side of the river, and Colonel Stirling was thrown across the river to the Jersey shore to sweep the works at Billing’s Port, which commanded the first line of _chevaux-de-frise_. The Americans fled at his approach, and Captain Hammond then sailed up the Delaware, broke the _chevaux-de-frise_, and made a gap wide enough to admit the largest of our ships of war. Two other rows of _chevaux-de-frise_, however, remained, with the forts on the bank of the river and the marshy island. Against these the British now directed their operations; but while they were making preparations, Washington, who had withdrawn to Skippack Creek, about sixteen miles from Philadelphia, and who had been reinforced by 2,500 men, resolved to attempt a surprise. Favoured by a thick fog, on the 3rd of October, he quitted his encampment, and by dawn of day arrived at German Town, where a body of the British troops were posted. Taken by surprise, these troops retreated; but Colonel Musgrave, by whom they were commanded, threw himself into a large stone house with five companies, and kept up such an incessant fire upon the assailants that their progress was impeded, till the troops rallied and got under arms and into line. Musgrave was summoned to surrender, but he defied the enemy; and General Grey with Brigadier Agnew coming up to his relief, the Americans were beaten out of the village, and Washington was compelled to retreat to Skippack Creek, leaving behind him eight hundred killed and wounded, and about four hundred prisoners. The opening of the navigation of the Delaware was now eagerly pursued. An attempt was made by the Hessians to storm the American redoubt and intrenchment at Red Bank, on the opposite side of the river; but after carrying the outer-works they were repulsed, and their commander, Count Dunnop, with four hundred of his men, were slain. At the same time two sloops-of-war, the Augusta and Merlin, which were sent to aid in the assault, ran aground while they endeavoured to avoid the _chevaux-de-frise_ and were burnt. Preparations, however, being made for attacking the fort on the marshy island, which was the chief defense of the river, an attack was made, and a breach was soon effected in the works, which ensured its capture. Two days after this Lord Cornwallis proceeded against the redoubt on Red Bank, and this was also captured. Franklin’s ingenious mechanism was then destroyed, and a full and free communication was established along the whole course of the Delaware.

CLOSE OF HOWE’S CAMPAIGN.

It was towards the end of November that the river Delaware was opened. By this time General Howe seems to have considered that his work was done for the year.

His supineness, and the slow movements of his army, seem at all times to have been favourable to the cause of the enemy; for though he was generally partially successful when he did act, yet he always gave Washington sufficient time to rectify his many blunders and to repair his losses. But though Howe thought of repose, Washington had no intention of letting him enjoy himself. Having received a reinforcement of 4000 men from the army of the North—which, as will be seen, had rendered important service to the American cause—he quitted Skippack Creek, and took post at White Marsh, only fourteen miles from Philadelphia. Howe felt called upon to make fresh exertions, for the proximity of the American forces shut him out from a fertile source of supplies. Accordingly he quitted Philadelphia, and took post on Chesnut Hill, in front of Washington's right wing. Here he remained for two days, with his troops drawn out in line of battle, hoping to tempt Washington to come to a general engagement. Nothing occurred, however, but a slight skirmish, in which the American militia ran like a rabble before some light-infantry; and Howe then removed to Edge Hill, about a mile from Washington's left wing. Here a decided advantage was gained by Lord Cornwallis, who drove a strong body of the American troops from the crest of that hill, and a favourable opportunity was afforded, from the dismay which their retreat occasioned, for attacking the main body with success. But Howe was still cautious, and seeing that Washington was not disposed to quit his camp, he returned to Philadelphia, there to spend the winter. But Washington was determined to keep the field, despite the winter's cold, which had now set in, and he selected a strong piece of ground, thickly covered with wood, at Valley Forge, on the west side of the Schuykill, and about twenty-five miles from Philadelphia. This position was chosen in order to keep Howe in check, and Philadelphia in great discomfort, and he was allowed to take possession of it without any molestation. The way in which Washington executed his plan does honour to his perseverance. He had but few tents, and, even if there had been an abundance, mere canvass would not have protected his men from the rigour of an American winter. Under these circumstances he imitated the backwoodsman's practice of hutting. Trees were felled, and log-huts wore erected, the interstices of which were filled up with earth, moss, and a rude kind of mortar, in order to render them warm and comfortable. Around them, for defence, two redoubts were erected and an intrenchment, drawn with a ditch six feet wide and three or four feet deep. His left was covered by the Schuylkill, and his rear, for the most part, by an abrupt precipice; but his right was somewhat accessible, and the centre of his front was weak, notwithstanding his intrenchments. There was, however, no cause for fear: Howe was in snug winter-quarters, and had no disposition to move till the flowers of the earth reappeared, and his men might be animated by the cheerfulness of the spring. He seemed to forget that there was such a place as Valley Forge, and such a resolute commander on that spot. For resolute indeed must have been the man who could thus defy the winter's cold, and resolute also must have been his troops to submit to the hardships which they had to encounter on Valley Forge. Hundreds of them, it is said, had not a blanket to cover them in the night season, while the winds blew, and the storm beat, and the snows drifted over and around their huts. There they lay, naked and shivering on the bare ground, none murmuring at their lot. Those that lived endured their miseries patiently; those that died expired with silent resignation. And hunger was added to their lingering

tortures; for congress failed to procure them needful supplies. Of this Washington bitterly complained; but as the evil could not be obviated without creating distress in other quarters, no effectual assistance could be rendered. The chief thing which congress did to afford the troops relief was to authorise Washington to seize all provisions which he could within seventy miles of Valley Forge; and such was his extremity, that he was compelled, at least on one occasion, to avail himself of this authority, though repugnant to his feelings. But this only afforded a temporary relief, and the army was, towards the close of the winter, on the very verge of total starvation. Washington stated to congress at this period, that there was not a single head of cattle in the camp; that he had only twenty-five barrels of flour; and that there were 3000 men unfit for duty, being bare-footed and naked, besides numbers who were confined by sickness in the hospitals and farm-houses. But even then congress was slow in affording relief, and enabling the army to make preparations for the ensuing campaign. Yet, sustained by hope, Washington and his army preserved their fortitude, and resolved to try once more their fortune on the field of battle.

[Illustration: 109.jpg GENERAL BURGOYNE ADDRESSING THE INDIANS]

EXPEDITION AND CAPTURE OF BURGOYNE.

Perhaps one cause which sustained the spirits of Washington and his troops in Valley Forge may be found in the success which had attended the American arms in the North. A plan had been formed by the British government to send an army by the Canadian Lakes to Hudson’s River, for the purpose of cutting off all communication between the northern and the southern colonies. For parliamentary reasons ministers thought proper to take the command from General Carleton, who had re-established our supremacy on these lakes, and to confer it on General Burgoyne. The plans which Burgoyne had to follow in his expedition were minutely and absolutely laid down by the ministry, they having concocted them from inaccurate maps and uncertain and contradictory reports. Nothing, however, was wanting to promote the success of the undertaking. Burgoyne’s force amounted to 7,200 men, rank and file, exclusive of the corps of artillery, and vast quantities of warlike stores were furnished for the use of those Canadians who might enter the British service. French Canadians, to the number of two or three thousand, joined Burgoyne; and as that general had been authorised to accept the services of the fierce Indians, several of those tribes willingly took up the hatchet against the Americans. The first thing Burgoyne was to do, was to take Ticonderago; and his preparations being made, he set out from Fort St, John, on the Sorel, on the 16th of June, for that purpose. Having detached Colonel St. Leger, with about eight hundred men, to make a diversion on the side of the Mohawk River. Burgoyne, preceded by the shipping, began his course, having columns of Indians on his right and left flank. At Crown Point there were a considerable number of Americans, but they retired at the approach of the flotilla, and the troops were safely landed. Here Burgoyne treated the Indians with a war-feast, in order to whet their appetites for slaughter; though, at the same time, he exhorted them to relinquish their old habits, and to fight like civilized men. But he might as well have attempted to change their natural colour by washing them with soap and water; and, moreover, the effects of his precepts must have been set aside

by the tenor of a proclamation, which he issued immediately after, and which threatened such of the insurgents as should continue in their obstinacy with destruction. This proclamation was unheeded, and in a few days, after erecting some magazines and slight defences at Crown Point, Burgoyne proceeded to Ticonderago. The Americans had greatly strengthened their works at this fort; but as they had not troops sufficient to man them, General St. Clair, who held the command there, evacuated it, and putting their baggage and provisions on board of batteaux, the Americans fled to Skenesborough. The batteaux sailed along the South River, and being pursued by a brigade of gun-boats, it was overtaken and captured, or destroyed near the falls of Skenesborough. General Burgoyne followed with one part of his army, in other gun-boats and two small frigates, while Generals Frazer and Reidesel marched after St. Clair by land. Skenesborough was captured with as much ease as Ticonderago; the Americans who had occupied the place retiring hastily to Fort Anne, and St. Clair marching with headlong haste to Castletown. The rear of the retreating army was overtaken by General Frazer, and Colonel Francis, with many officers, and two hundred men were slain, while a similar number were taken prisoners, and about five hundred wounded crawled away to perish in the woods, vainly hoping to escape to the inhabited country. St. Clair continued his route from Castletown, and after a fatiguing march arrived at Fort Edward, on the Hudson, where General Schuyler, the American commander-in-chief, was stationed with about 4,400 men under his command. And here the reverses of the British arms commenced. Being joined by St. Clair, and by Colonel Long, who was compelled to evacuate Fort Anne, General Schuyler commenced a series of active operations to baffle the advancing enemy. He broke up the roads and the bridges; blocked up creeks and rivers; swept the country bare of live-stock and all kinds of provisions; called up the militia and backwoodsmen of New England and New York; and having succeeded in collecting a numerous though motley force, he issued a proclamation in the name of the congress of the United States, threatening death and destruction to all who should send any deputation or afford any aid to the enemy. It would have been prudent in Burgoyne had he taken a different course to that which was laid down in his instructions, but he resolved to persevere in that course. Having sent General Philips with a strong detachment to proceed by Lake George with the artillery, provisions, and baggage, he struck across the country, with the mass of his force, towards Fort Edward. His progress was but slow, for his troops had to remove the impediments which Schuyler had caused to be thrown in his way; and, added to this, their inarch was rendered fatiguing by the sultry heat of the weather. Nevertheless, by the 30th of July, they reached the river Hudson, near Fort Edward, and Schuyler retired across the river at their approach. Burgoyne waited in the neighbourhood of Fort Edward for the arrival of General Philips with the artillery, provisions, and stores, and for the junction of Colonel St. Léger, who had from the first proceeded on a different line of march, and who was now descending from Oswego, the Onedia Lake, and Wood Creek, by the Mohawk River, which falls into the Hudson. St. Leger stopped at the upper end of Mohawk to lay siege to Stanwix Fort, and upon receiving this information General Burgoyne thought it his duty to support him. As a preparatory measure he detached Colonel Baum to surprise Bennington, a place between the forks of the Ilosick River, about twenty-four miles eastward of the Hudson, and where the American stores

were deposited. The troops employed by Burgoyne for this enterprise were Germans, always slow in their motions, and before they reached Bennington their design had become known, and the Americans were ready to receive them. Baum had only six hundred men with him, and he applied to Burgoyne for reinforcements; and another detachment of German soldiers, consisting of five hundred men, under Lieutenant-colonel Breyman, were sent to his assistance. Breyman, however, was as slow in his movements as Baum had been, and, before he could arrive, the first detachment of Germans were completely surrounded by a body of more than 1,500 Americans. Colonel Baum sustained the attack with great bravery; but he was at length slain by a rifle-shot, and then the Germans retreated into some woods in the direction of Fort Edward. It was at this critical moment that Breyman came up, and having succeeded in putting the fugitives of Baum's detachment into some order, he fought his way back to Burgoyne's encampment. Instead of taking Bennington and the military stores, Burgoyne lost five hundred men in killed and wounded in this expedition. in the meantime St. Leger was prosecuting the siege of Stanwix Fort. As he lay before this fort, he discovered that General Harkimer was advancing to its relief with 1000 men under his command. He had with him several tribes of savages, and St. Leger detached these, with a party of regulars under Sir John Johnson, into the woods to lie in ambush. Harkimer fell into the snare, and nearly four hundred of his men were either killed or wounded, while the rest fled back to the Hudson. Still Fort Stanwix held out, and the savages, growing weary of the siege, and being falsely informed by some Americans that Burgoyne's army had been cut to pieces, insisted upon retiring. Many deserted, and St. Leger, hearing that Arnold was approaching with 2000 men, and ten pieces of artillery, he was compelled to raise the siege and to retreat. These defeats, and the failure of St. Leger, contributed greatly to the ruin of Burgoyne's expedition. It has been seen, that on the arrival of that general near Fort Edward, the Americans under Schuyler had retreated across the Hudson. They had taken up their position at Saratoga, lower down the river, and soon after, General Gates, an Englishman by birth and education, took the chief command, and he was subsequently joined by General Arnold. On his arrival, Gates removed the troops to an island near the confluence of the Mohawk with the Hudson, about eight miles below Albany, and called "Still Water." Here he had a strong star-redoubt and other defences; and against him, as he lay in this position, Burgoyne having passed the Hudson by a bridge of boats, led his forces. About the middle of September Burgoyne encamped on the heights of Saratoga, in the face of the enemy. The mass of the British army formed, on the 19th, close in front of the American left; the right wing being commanded by Burgoyne, the left by Generals Philip and Reidesel, and the front and flanks being covered by Indians and Canadians. Without waiting to be attacked, General Gates threw out 5000 men to attempt turning the right of the British forces, and to attack General Burgoyne in his rear. In making this attempt, however, he lost between five hundred and six hundred men in killed and wounded, besides several officers; and at night he deemed it prudent to collect all his forces into and round the star-redoubt. The attack on the British right had been made by General Arnold, and Burgoyne's loss was scarcely inferior to that of his enemy. That night the British army lay on their arms in the field of battle; but as the day dawned, they began to erect works within cannon-shot of the enemy, with strong redoubts on

their right. The two armies lay in sight of each other, from the 20th of September till the 7th of October, during which time Burgoyne’s troops had nearly consumed all their provisions. Burgoyne’s situation was a critical one, and no time was lost in giving General Howe information of it, in the hope that he would either co-operate or cause a diversion to be made in his favour. Howe had just taken Philadelphia, and being wholly occupied with Washington, and in destroying the forts and strong works on the Delaware, could not spare a thought on the matter. Sir Henry Clinton, however, who had the command of the troops left at New York, informed Burgoyne that he would, on his own responsibility, attempt a diversion, by attacking Forts Montgomery and Clinton, on the lower part of the Hudson. Burgoyne agreed to remain in his position, therefore, till the 12th of October: but his Indian followers, in the meantime, disappointed in their hopes of plunder, annoyed at his endeavours to check their ferocity, and wishing to return, as their hunting-season had commenced, began to desert from him in great numbers. Still Burgoyne, hoping that Clinton’s diversion would effect his deliverance from clanger, would not think of retreating. On the other hand, the Americans were greatly favoured by this delay. Every day reinforcements arrived from the southern and northern provinces, while stores and provisions poured into their camp in great abundance. General Gates, indeed, having been joined by General Lincoln with 2000 men, at the suggestion of Arnold, now adopted a scheme likely to reduce Burgoyne to the stern necessity of an unconditional surrender. A considerable body of New England militia, who had assembled in the rear of Burgoyne’s forces, were sent to surprise Ticonderago, Mount Independence, and Fort George, and to cut Burgoyne off from all supplies, and even from a retreat to Canada. Colonel Brown, to whom this enterprise was entrusted, failed in his main designs; but he destroyed some vessels which were bringing provisions to Burgoyne, and then returned to his former station in the rear of the enemy. Other American forces also collected between the British army and the Lakes. Burgoyne’s difficulties increased daily. The red-men, who had hitherto remained with him, now deserted, while the Canadians and loyal Americans in his army lost all courage. But what was worse than all, his provisions began to fail, while his horses were perishing for want of forage. No tidings were yet heard of Clinton’s diversion; and rendered desperate by his situation, Burgoyne resolved to attempt dislodging Gates from his position. Accordingly, he advanced forward with 1,500 men and a considerable body of artillery; but this detachment had scarcely formed within half a mile of the American intrenchments when they were attacked by a superior force, under Arnold, and driven back to their camp, with the loss of six pieces of cannon. From being assailed, the Americans now became the assailants. A furious assault was made on the British lines; and though it was repulsed on the English side of the camp, and Arnold was wounded, yet the intrenchments on the German side of the camp were carried, and two hundred prisoners, with a large supply of ammunition, were captured. Night closed on the scene of carnage, and Lieutenant-colonel Brooks, who had defeated the Germans, kept the ground he had won within the line of the British intrenchments. In the engagement, General Frazer and Colonel Breyman were mortally wounded; and on the following morning Burgoyne, disheartened by this loss, removed his whole army, with their artillery and baggage, to some heights above the bank of the Hudson, extending his right up that

river. In doing so, he left his wounded to the humanity of General Gates and his army—a confidence which was not misplaced.

In his new position Burgoyne repeatedly offered battle to the enemy, but without effect. The design of Gates was to obtain an easier victory by turning the right of the British army and enclosing them on all sides; and seeing this, Burgoyne quitted his position and fell back to Saratoga, where he found the passes towards the Canadian frontiers all pre-occupied by the Americans, while the further banks of the river were lined with troops, which, together with numerous batteaux, commanded the navigation. No means of escape seemed left but by a rapid night-march to Fort Edward; but before preparations were made for this it was discovered that the fords at that place were occupied, and that the high grounds between that fort and Fort George were everywhere secured. Burgoyne's situation was now desperate. The 13th of October had arrived, and no tidings were heard of Clinton's diversion. Thus unsupported, deserted by his Indian allies, worn down by a series of incessant exertions, greatly reduced through repeated battles, and invested by an army three times their number, and which was hourly increasing, the British officers at length thought of capitulation. There was no alternative, for their provisions were nearly spent; and though the enemy declined battle, yet rifle and grape-shot were continually pouring into the British camp. All hope of relief or of extrication from danger fled; and a council-of-war being called, which comprehended field-officers and captains, it was unanimously resolved to capitulate, if it could be done on honourable terms. This was a bitter step to take, but no other could be taken, and this message was therefore sent by Major Kingston to General Gates:—"After having fought you twice, Lieutenant-general Burgoyne has waited some days in his present position, determined to try a third conflict against any force you could bring against him. He is apprised of the superiority of your numbers, and the disposition of your troops to impede his supplies, and render his retreat a scene of carnage on both sides. In this situation, he is impelled by humanity, and thinks himself justified, by established principles and precedents of state and war, to spare the lives of brave men upon honourable terms. Should Major-general Gates be inclined to treat upon that idea, General Burgoyne would propose a cessation of arms during the time necessary to communicate the preliminary terms, by which, in any extremity, he and his army mean to abide." In reply, Gates demanded that the British troops should ground their arms, and surrender themselves prisoners-of-war. To this Burgoyne answered:—"This article is inadmissible in every extremity: sooner than the army will consent to ground their aims in their encampment, they will rush on the enemy, with a determination to take no quarter." In the end, after much negotiation, a convention was settled, which imported, that Burgoyne's troops were to march out of the camp, with all the honours of war, to the verge of the Hudson River, where their arms and artillery were to be left; that a free passage should be granted the troops to Great Britain, on condition of their not serving again in America; that if any cartel should take place by which Burgoyne's army, or any part of it, should be exchanged, the foregoing article should be void, so far as that exchange extended; that care should be taken for the subsistence of the British troops till they should be embarked; that all officers should deliver up their carriages, bat-horses, &c., but that their baggage

should be free from molestation; that the officers should not be separated from the men, and should be quartered according to their rank; that all the troops, of whatever country they might be, should be included in the above articles; that all Canadians, and persons belonging to the Canadian establishment, should be permitted to return to Canada, should be conducted to the first British post on Lake George, should be treated in all respects like the rest of the army, and should be bound by the same condition of not serving during the present contest; that passports should be granted for three officers to carry despatches to Sir Guy Carleton, in Canada, and to the government of Great Britain by way of New York; that all officers, during their stay at Boston, should be admitted to parole, and to wear their side-arms; that the army might send to Canada for their clothing and other baggage; and that these articles should be signed and exchanged on the following morning, and the troops should march out of their intrenchments in the afternoon. These were more favourable terms than Burgoyne and his troops had a right to expect; and they appear to have been granted for a twofold reason—first, because Gates was fearful of provoking the despair of well-disciplined troops; and secondly, because he almost heard the roar of Clinton’s artillery lower down the Hudson. The convention was signed at the appointed time, and on the afternoon of the 17th of October the troops marched out of their encampment down to the edge of the river, where they deposited their arms. The delicacy with which this business was conducted reflected great credit on Gates. It is said, that he not only kept away from the spot himself, but that he would not suffer his own people to be present, that they might not exhibit the feelings of exultation over a fallen enemy. Nor did his urbanity end here. Burgoyne was received by him with great kindness, and every circumstance which could appear like a triumph in the lines of the Americans was withheld. As for the half-famished British troops, they now partook liberally of the plenty that reigned within the American camp, while the principal officers were often entertained at General Gates’s own quarters, Among the fruits of his victory were about forty pieces of artillery, 4,600 muskets, and a quantity of powder and ball. After the convention was signed, General Gates moved forward to stop the devastations committed by the British on the North River, but they had already retreated. About the same time, also, the troops which had been left at Ticonderago destroyed their cannon, and retreated to Canada. After being several months agitated by the tumults of war, the whole country was restored to complete tranquillity. The British army, shorn of their honours, went to Boston, while several thousands of the victorious Americans, as before recorded, joined the ranks of Washington.

CLINTON’S EXPEDITION UP THE HUDSON.

General Clinton was prevented from making his promised diversion in favour of Burgoyne by the non-arrival of some troops which he expected from Europe, and by the vicinity of General Putnam, who hovered in the neighbourhood of New York, until the 6th of October, ten days before the capitulation was signed. At that time, having received the expected reinforcements, he began a series of attacks, which, if they had been made only a few days earlier, would have rescued Burgoyne’s army from its perilous situation. He embarked about 3000 men on board of craft of all kinds, convoyed by Commander Hotham, and proceeded up the Hudson to Verplank’s Point,

about forty miles above New York. Clinton effected a landing without opposition, and General Putnam, conceiving that it was his intention to push through the islands on that side of the river, in order to join Burgoyne, collected about 2000 men, and hastened with them towards Verplank's Point to obstruct his march. Leaving a third portion of his troops, however, on that spot, Clinton passed over with the rest to Stony Point, on the western shore, where, in two simultaneous attacks, he carried Forts Montgomery and Clinton. This success obliged the Americans to burn their navy, consisting of five ships, which were lying in that part of the river, and which were defended by a _chevaux-de-frise_, and by an immense boom, stretching from Fort Montgomery, to an opposite point, called St. Anthony's Nose. A few miles higher up the river was another strong place, called Fort Constitution, and this was destroyed by the garrison, who fled as soon as they learned the fate of Forts Montgomery and Clinton. About the same time, a detachment of American loyalists, under Governor Tryon, destroyed a new settlement, called Continental Village, and in which were barracks and military stores. Having removed the boom, Sir James Wallace also, with a squadron of small frigates, ascended up the river, and burned many American vessels. Clinton was everywhere victorious; and on the 13th of October, the very day on which Burgoyne made his first overture for capitulation, General Vaughan landed a detachment at Esopus Creek, which was not more than thirty miles from Burgoyne's encampment at Saratoga. Vaughan carried fire and destruction before him: he reduced two batteries, and a row-galley, stationed at the mouth of Esopus Creek; and then ascending the creek about five miles, he destroyed the town of Esopus, together with a vast quantity of stores and provisions, collected for the use of General Gates's forces. Clinton, however, was still upwards of one hundred miles from Esopus Creek, and he was beset by General Putnam's forces, which had increased from 2000 to 6000 men. He was in this situation when Burgoyne capitulated, and then Gates was enabled to detach more troops to the aid of Putnam. The English general therefore recalled Vaughan; destroyed all the forts he had taken; re-embarked his men, and returned to New York. The main design of his diversion had failed, and it chiefly served to prove, that had Howe co-operated with Burgoyne, and have sailed up the Hudson during the summer months, the campaign in this quarter, instead of being disastrous, would have enhanced the glory of the British arms.

MEETING OF PARLIAMENT.

The British parliament assembled on the 18th of November. The all-engrossing topic of the king's speech was the war with America. In it he declared the necessity of continuing the war; and hinted, that there was a probability that the land-forces must not only be kept up to their full establishment, but even augmented by new contracts. Of the disposition of foreign powers, his majesty now spoke in a doubtful manner. They had given friendly assurances, he said, but as the armaments of France and Spain continued, he thought it necessary that his own naval force should be augmented. He had neither lost any of his firmness, nor abated any of his hope, as to the issue of this contest. He would always guard, he said, the honour of the British crown faithfully; and he hoped that the Americans would yet return to their allegiance; that the remembrance of their former happiness, and the sense of their

present misery, under the tyranny of their leaders, would rekindle their loyalty and attachment to their mother country; and that they would enable him, with the concurrence of parliament, to accomplish peace, order, and confidence in the colonies.

{GEORGE III. 1777–1778}

DEBATES ON AMERICA.

The usual addresses were moved on the king’s speech—addresses which were replete with panegyric on its wisdom, and likewise the wisdom of ministers. They were doomed, however, to meet with stern opposition. In the lower house, the Marquess of Granby, after lamenting the disastrous effects of the war, and expressing a desire of having the happiness to lay the groundwork of a reconciliation, moved an amendment, to the effect, that his majesty should be requested to adopt some measures for accommodating all differences with America; that he should be recommended to cease hostilities, as a preparatory step to that end; and that he should be assured that the commons were determined to co-operate with him in every measure tending to the re-establishment of peace. This motion was seconded by Lord John Cavendish, and it was supported by the opposition generally, on the grounds, that after three years’ war, with a heavy expenditure and a great loss of men, there was no prospect of success; that, notwithstanding the hopes held out in the king’s speeches, our progress exhibited a series of disappointments and losses; that trade was greatly affected by the contest; and that while the defenceless state of our coasts and commercial fleets demonstrated we were unable at this stage of the war to protect our national trade, we should be still less able when, involved in a war, as it was evident we should be, with the Bourbons. The opposition now attended the house in full force, but the amendment was nevertheless negatived by two hundred and forty-three to eighty-six.

In the lords the debate on the address was still more animated than in the commons. It was opposed by the Earl of Coventry, who, in the outset, gravely recommended that our armies and fleets should be recalled, and that the independence of America should be forthwith acknowledged. His lordship took extreme views of our position; even predicting, that should his advice be adopted, it, nevertheless, would not prevent the downfall of England; that it was a matter of certainty, as fixed and as immutable as any law of nature, that sooner or later the seat of empire would be removed beyond the Atlantic. One grand argument used by his lordship to establish his views, was the insignificant figure which Britain made in the map of the world compared with the more imposing figure of the American continent. The people, also, he argued, were more frugal, industrious, and wise on the other side of the Atlantic than they were in England; and that, while population increased and would increase in America, it would inevitably decline in the mother country! But such crotchets as these were only calculated to confirm ministers and the country at large in their determination of pursuing the contest. Lord Chatham, who next rose, still supported by his crutch, to move an amendment, spoke more wisely; though he also predicted ruin to England if the contest was not given up; or,

in other words, if peace between the two countries was not concluded. The noble lord commenced his speech by joining in the congratulation of the address on the birth of another princess, and the happy recovery of her majesty. Here, however, he said, his courtly complaisance must end; for he could not join in congratulation on misfortune and disgrace. He could not concur in a blind and servile address, which approved, and endeavoured to sanctify, the monstrous measures that had heaped disgrace upon us, and had brought ruin to our very doors. The present moment, he said, was a perilous and tremendous period, and therefore not a time for adulation. His lordship then pointed out the degrading situation to which this country was reduced, in being obliged to acknowledge as enemies those whom we had denominated rebels; and in seeing them encouraged and assisted by France, while ministers dared not interpose. He remarked:—“It is a shameful truth, that not only the power and strength of this country are wasting away and expiring, but her well-earned glories, her true honour and substantial dignity, are sacrificed. France, my lords, has insulted you; she has encouraged and sustained America; and whether America be wrong or right, the dignity of this country ought to spurn at the officious insult of French interference. The ministers and ambassadors of those who are called rebels and enemies are in Paris—in Paris they transact the reciprocal interests of America and France. Can there be a more mortifying insult? Can even our ministers sustain a more humiliating disgrace? Do they dare to resent it? Do they presume even to hint a vindication of their honour, and the dignity of the state, by requiring the dismissal of the plenipotentiaries of America? Such is the degradation to which they have reduced the glories of England! The people, whom they affect to call contemptible rebels, but whose growing power has at least obtained the name of enemies—the people with whom they have engaged this country in war, and against whom they now command our implicit support in every measure of desperate hostility—this people, despised as rebels or acknowledged as enemies, are abetted against you, supplied with military stores, their interests consulted, and their ambassadors entertained, by your inveterate enemy!—and our ministers dare not interpose with dignity or effect. Is this the honour of a great kingdom? Is this the indignant spirit of England, who, but yesterday gave law to the House of Bourbon?” Chatham next dwelt on the position of our armies in America, supposing that Burgoyne’s—for it was not yet known—was totally lost; and asserting that General Howe had been compelled to retire from the American lines. Judging, from the past, he then predicted a final and total failure, notwithstanding the exertions made to sustain the contest and gain the victory might prove gigantic. In this part of his speech he denounced the employment of German troops, and the tribes of wild Indians, in strong and unmeasured language; although, nineteen years before, he had himself employed Indians in the same manner against the French and Canadians. Chatham next touched on the great question of disseverance and independence. But this, unlike the Earl of Coventry who had preceded him, he utterly repudiated; avowing, as he had ever done, that our supremacy must be maintained, in order to avert our ruin. But this part of Chatham’s speech was replete with inconsistencies. While he maintained that our supremacy must be maintained at all hazards, he applauded both the spirit and intention of the Americans; and while he acknowledged that they had arms in their hands, he boldly asserted that they were still full of affection for their mother country—that they only

declared independence in moments of anguish and despair; and that they were still in heart inclined to return to their old political constitution. Again, while Chatham attributed every blame to the British government, he nevertheless would not admit that our power of regulating their trade ought either to be abolished or abridged; which were the very sentiments of the government on whom he cast odium. Chatham, also, denounced the war as unjust in its principle; and yet it had for its indisputable object, from beginning to end, that very independence and separate sovereignty which he had sworn he would never recognise. The great orator then attacked the ministers more personally than before, and recommended them to make haste and quit office, lest the punishment due to their crimes should speedily overtake them! He concluded thus:—“Since they have neither sagacity to foresee, nor justice and humanity to shun, these calamities—since not even severe experience can make them feel, nor the imminent ruin of their country awaken them from their stupefaction—the guardian care of parliament must interpose. I shall, therefore, propose an amendment to the address, to recommend an immediate cessation of hostilities, and the commencement of a treaty to restore peace and liberty to America, strength and happiness to England, security and permanent prosperity to both countries.” He added, that “this was still in our power;” but few or none who heard him believed that peace could be obtained but by a recognition of that independence which Chatham had so warmly denounced. The amendment which he proposed, however, was ably supported by the other peers in opposition. Lord Camden declared, that if the war were prosecuted to the issue of the alternative, whether America was subdued or rendered independent, he would still wish for independence; because the subjugation of that country by force of arms, would lead to the enslavement of England! Some of the opposition members, notwithstanding, were not for an instant cessation of arms, though they wished for a reconciliation. Thus Earl Temple said, that the war ought not to be abandoned until we had obtained decisive victories in America. The opposition, also, differed as to the propriety of offering terms of concession; and they were not all agreed as to what these terms should be. But on the odiousness of employing the wild Indians against a Christian people, the views of the whole of the opposition orators coincided. The Duke of Richmond said, that our employment of them would call down the vengeance of Heaven; and he argued, that our soldiers, acting with them, would become as ferocious as the Indians, and ready to commit any atrocity, or to make any attack on the liberties of the country that ministers might command! The unpleasant task of defending the employment of wild Indians fell upon Lord Suffolk, one of the secretaries of state, and he contended that the measure was allowable on principle; inasmuch as it was justifiable to use all the means that God and nature had put into our hands. This was an unfortunate argument; and the Earl of Chatham did not fail to take advantage of it. Forgetting that he had once employed the Indian tomahawk, he rose, and exclaimed, with an indignant burst of eloquence:—“I am astonished—shocked to hear such principles confessed—to hear them avowed in this house, or in this country—principles equally unconstitutional, inhuman, and unchristian. My lords, I did not intend to have trespassed again on your attention, but I cannot repress my indignation. I feel myself impelled by every duty. My lords, we are called upon, as members of this house, as men, as Christian men, to protest against such notions, standing near the throne, polluting the ear of majesty!

‘That God and nature put into our hands!’ I know not what idea that lord may entertain of God and nature; but I know that such abominable principles are equally abhorrent to religion and humanity. What! attribute the sacred sanction of God and nature to the massacres of the Indian scalping-knife—to the cannibal savage, torturing, murdering, roasting, and eating—literally, my lords, _eating_—the mangled victims of his barbarous battles—To send forth the merciless cannibal, thirsting for blood! Against whom?—Against your Protestant brethren; to lay waste their country, to desolate their dwellings, and extirpate their race and name with these horrible hell-hounds of savage war—hell-hounds, I say, of savage war! Spain armed herself with bloodhounds to extirpate the wretched natives of America, and we improve on the inhuman example of even Spanish cruelty—we turn loose these savage hell-hounds against our brethren and countrymen in America—of the same language, laws, liberties, and religion..... endeared to us by every tie that should sanctify humanity. My lords, this awful subject, so important to our honour, our constitution, and our religion, demands the most solemn and effectual inquiry; and I again call upon your lordships, and the united powers of the state, to examine it thoroughly and decisively, and to stamp upon it an indelible stigma of the public abhorrence. More particularly I implore those holy prelates of religion to do away these iniquities from among us:—let them perform a lustration; let them purify this house and this country from this sin!” These were noble sentiments, but the effect of them was in a great measure lost by the remembrance that Chatham had done the very same thing in the war with Canada; and that under his own immediate superintendence. But even if there had not been this drawback upon this fervent burst of indignation, uttered by the great orator, it was not in the power of eloquence to alter the determination of ministers. _They_ daily expected to hear of victories which would stop the mouths of their antagonists, and therefore resolved to brave the loud storms of opposition. Public sentiment was also still on their side; for Chatham’s amendment was rejected by a majority of eighty-four to twenty-eight, and only two peers signed a protest. Thus, in both houses, the original address was carried by an overwhelming majority.

DUKE OF RICHMOND’S MOTION FOR INQUIRING INTO THE STATE OF THE NATION.

On the 28th of November the Duke of Richmond moved for a committee of the house to inquire into the state of the nation. The debate on this question was postponed till the 2nd of December, and the Earl of Chatham was there to support it. In his speech, the Duke of Richmond once more asserted, that the nation was in a rapid process of decay, and that it could not support the burden of war. The inquiry, he said, should be as extensive as possible, and he proposed the 2nd of February for the discussion; and expressed a hope that all papers called for might be laid before parliament. Ministers assented to the committee; and the Duke of Richmond then moved for returns of the army and navy, both in America and Ireland. Chatham now made another speech, in which he expressed great alarm as to the actual state of those two important fortresses, Gibraltar and Minorca; contending that they were not secure from the grasp of France and Spain. He also took occasion again to extol the Americans, and to plead their cause, still justifying their opposition to the mother country. The motion was granted without opposition.

FOX’S MOTION FOR INQUIRING INTO THE STATE OF THE NATION.

On the same day Mr. Fox made a motion, similar to that of the Duke of Richmond, in the house of commons. The committee was at once agreed to by ministers; but when Fox made a call for papers, Lord North opposed it, as liable to make discoveries prejudicial to the interests of the country. This drew down upon him a series of odious comparisons. Burke compared him to the “pigmy physician,” who watched over the health of Sancho Panza, in the government of Barataria, and who snatched away every dish from his patient’s well-supplied table, on various pretences, before he could get one mouthful. The house was convulsed with laughter, but Lord North remained immoveable; nor could the intelligence that the lords had granted the papers, alter his determination to oppose their production. Fox again spoke when he discovered that the premier was resolute; and this time he fell upon the chief manager of American affairs,—Lord George Germaine. He remarked:—“For two years that a noble lord has presided over American affairs, the most violent, scalping, tomahawk measures have been pursued: bleeding has been his only prescription. If a people, deprived of their ancient rights, are grown tumultuous, bleed them!—if they are attacked with a spirit of insurrection, bleed them!—if their fever should rise into rebellion, bleed them!—cries this state-physician. More blood! more blood! still more blood! When Dr. Sangrado had persevered in a similar practice of bleeding his patients, killing by the very means he used for a cure, his man took the liberty to remonstrate on the necessity of relaxing in a practice to which thousands of their patients had fallen sacrifices, and which was beginning to bring their names into disrepute. The doctor answered, I believe, indeed, that we have carried the matter a little too far; but you must know I have written a book on the efficacy of this practice: therefore, though every patient should die by it, we must continue bleeding, for the credit of my book.” The debate assumed a new feature from a speech made by Governor Pownall, who argued, that the production of the papers called for could answer no end. Pownall declared that he was as uninfluenced by party spirit as he had been nine years ago, when he predicted the precise progress of American resistance. He added:—“I now tell the house and government, that the Americans will never return to their subjection. Sovereignty is abolished, and gone for ever: the Navigation Act is annihilated. Of what use, then, are these papers?—of what import our debates? Disputation and abuse may afford amusement; but neither America nor England can be benefited by such discussions in the present crisis. Until the house shall be disposed to treat with the United States as an independent, sovereign people, schemes or plans of conciliation, whoever may suggest them, will be found unimportant.” This was speaking like a man of business, and the arguments adduced were unanswerable. The papers were refused, by a majority of one hundred and seventy-eight to eighty-nine.

ARMY AND NAVY ESTIMATES.

On the 26th of November the army and navy estimates were considered. The number of seamen was fixed at 60,000, and the troops to be employed in America at 55,000. But these votes were not passed without severe strictures on the manner in which every branch of the service was conducted.

INTELLIGENCE OF BURGOYNES DEFEAT

The hope that ministers had entertained of soon hearing of some glorious victory in America, whereby the mouth of opposition might be stopped, was at length swept away. On the 3rd of December Colonel Barre rose in the house of commons, with a grave countenance, and asked Lord George Germaine what had become of Burgoyne's army? and whether he had not received intelligence from Quebec of their having surrendered to the enemy? Lord George, in reply, confessed that he had received the unhappy intelligence, by express, from Quebec; but as it was unauthenticated, he could not declare it officially. He expressed a hope, therefore, that the house would suspend their judgment; at the same time declaring, that if he had committed a fault in drawing out the plan of the expedition, he was ready to answer for it. He made this declaration in such a cold, self-satisfied tone, that it drew down upon his head the most bitter inventive from members of the opposition. Barre, Luttrell, Burke, Townshend, and Fox, all, in their turns, assailed the haughty secretary, and revelled in descriptions of the loss and disgrace which we had sustained—necessarily, from chagrin, heightening the effect of the picture by exaggeration. The solicitor-general, Wedderburne, endeavoured to reconcile the house to this loss, by appealing to British magnanimity under distress, which, he conceived, was the harbinger of victory. During the war of the succession, he said, General Stanhope was compelled to surrender himself, and his whole army, prisoners of war in Spain; but the disgrace only served to call forth an ardour which soon effaced the stigma, and achieved glorious successes. Lord North, having declared that he had from the beginning been desirous of peace; that if the surrender of his place and honours could obtain it he would resign them; and that while he remained in office he would support it to the best of his power, the conversation dropped.

In the house of lords, however, the subject was taken up more seriously. On the 5th of December, having previously arranged matters with the opposition peers, the Earl of Chatham moved, "that an address be presented to his majesty for copies of all orders and instructions issued to General Burgoyne, relative to the late expedition from Canada." Chatham commenced an able, though rambling speech, which he delivered on this occasion, by criticising the king's speech at the opening of the session; representing it as containing an unfaithful and delusive picture of the state of public affairs. He then lamented Burgoyne's fate, in pathetic terms. His character, he said, with the glory of the British arms, and the dearest interests of the country, had all been sacrificed to the ignorance, temerity, and impotence of ministers. Yet almost in the same breath, Chatham said that he would not condemn ministers without evidence! Burgoyne, he remarked, might or might not be an able officer; he might have received orders it was not in his power to execute; and those instructions might have been wisely given, and faithfully and judiciously executed, although the general had miscarried. Many events, he said, happened which no human foresight could prevent; but, as it was evident, a fault had been committed either by Burgoyne or the ministers, he was desirous of having the papers laid before the house, in order to ascertain to whom the blame was in reality attached. At the same time, he asserted that he already knew sufficient to justify him in affirming that the measures for that

campaign were founded in weakness, barbarity, and inhumanity. Here again he launched forth in bitter invective against the practice of employing the tomahawk and scalping-knife of the Indians in the war. Then, turning from the field of battle, he attacked the court. He remarked:—“Within the last fifteen years the system has been introduced at St. James’s of breaking all connexion,—of extinguishing all principle. A few men have got an ascendency, where no man should have a personal ascendency; by the executive powers of state being at their command, they have been furnished with the means of creating divisions. This has brought pliable men, not capable men, into the highest situations; and to such men is the government of this once-glorious empire now entrusted. The spirit of delusion has gone forth; the ministers have imposed on the people; parliament has been induced to sanctify the imposition; false lights have been held out to the country gentlemen, and they have been seduced into the support of a most destructive war, under the impression that the land-tax would be diminished by means of an American revenue. The visionary phantom, thus conjured up for the basest of purposes—that of deception—is now about to vanish.” Chatham had said that Burgoyne might or might not be an able officer; but he now eulogised his zeal, his bravery, and his abilities, and then, in defiance of his assertion that he would not condemn ministers without evidence, he laid the whole blame upon them, and said that they ought to submit to all the obloquy till the general had an opportunity of justifying himself. Chatham now again denounced the practice of employing the Indians; coupling the German bayonet with the scalping-knife and tomahawk. The only thing which could be done, he said, to preserve America in our dependence was to disband the Indians, recall the Germans, and withdraw our troops _in toto_. As for American independence, he could not endure the thought of such a consummation. While he abhorred the system of government attempted to be established in America, he as earnestly and zealously contended for a Whig government and a Whig connexion between the two countries, founded on a constitutional dependence and subordination of America upon England. Against Tory principles he entertained the most bitter hatred; and in the course of his speech he exhibited that feeling, by animadverting, in severe terms, on the high Tory doctrines maintained by Dr. Markham, Archbishop of York. The pernicious doctrines advanced by that prelate, he said, were the doctrines of Atterbury and Sacheverel; and as a Whig, he abjured and detested them, and hoped to see the day, not only when they should be deemed libels, but when the authors of such doctrines should be liable to punishment. Chatham concluded, by moving for the papers relative to the instructions given to Burgoyne, which was lost by a majority of forty to nineteen. But though the motion was negatived, the noble lord returned to the charge, by moving for copies of all instructions relative to the employment of Indians in conjunction with the British troops. In this, however, he made a whip for his own back. In opposing the motion, Lord Gower asserted, that the noble lord had himself employed, and acknowledged that he had employed, savages in the operation of the last war. This charge Chatham denied. Indians, he said, had crept into the service during that war; but he challenged ministers to produce any document of his sanctioning their employment. He appealed to Lord Amherst, who had commanded the troops in Canada, for a declaration of the truth, and that noble lord had the honesty to declare the truth. The Indians, he said, had been employed on both sides: the French engaged

their services first, and we had followed their example: but most certainly he should not have ventured to have done so if he had not received orders to that effect. Lord Shelburne suggested, that the orders might have proceeded from the Board of Trade: but Lord Denbigh, who called Chatham “the great oracle with a short memory,” said, that this was impossible, as Chatham, when in office under George II., had monopolised functions which did not belong to him, and had guided and directed everything relative to the war. In reply, Chatham said, that he was sure the order had not passed through his office, and that the humanity of his late majesty would not have permitted him to sanction so satanic a measure. But Chatham was now floundering in the mire, and the more he endeavoured to extricate himself, the deeper he got into it. The fallacy of this pretence was exposed by Lord Suffolk, who said, that all instructions to governors and commanders-in-chief necessarily passed through the office of the secretary-of-state, which office Chatham then held, and were countersigned by the king. Finding that Chatham’s veracity could not be established, the lords, in opposition, now turned the subject, and endeavoured to justify his employment of the Indians. There was a difference, they maintained, between the two wars—the one having been against our old enemies, the French, the other being against our fellow-subjects. They also argued, that the French having set the example, we were justified in following it. But this argument applied equally to the present war. Arnold took with him into Canada the very savages whose services we had refused; and one of the first cares of congress was to secure the alliance of the Six Nations. It was, moreover, understood by all, that the treaty was not to stop at neutrality, but to engage those Indians as auxiliaries in the war. Want of means, coupled with the animosities which existed between the Indian tribes and their American neighbours of the back settlements, and with a species of reverence which the red men entertained for the name of King George, had prevented the success of congress; but the Americans had, to all intents and purposes, set the deplorable example of using the tomahawk against their Protestant brethren of England. The Earl of Dunmore, indeed, declared that he had himself, while governor of Virginia, been attacked by a party of Indians who had been instigated by the Virginians. Evil examples should not be followed; but the present ministry had, at least, the same plea to offer for employing the Indians as Chatham and the opposition lords had for employing them in the war in Canada. The man who endeavours to blacken the characters of others should himself possess an untarnished reputation. Chatham’s motion was lost by a majority of forty to eighteen.

ROYAL ASSENT TO SEVERAL BILLS.

On the 10th of December the royal assent was given to a bill for continuing the suspension of the _Habeas Corpus_ Acts in certain cases of piracy, and also to the Land and Malt-tax Bills—those standing resources of government revenue. About the same time, likewise, the royal assent was given to a duty laid on goods sold by auction, as well as on inhabited houses.

PARLIAMENT ADJOURNED.

On the same clay, after the discussion of some unimportant motions, made with a design of embarrassing ministers, Lord Beauchamp proposed an adjournment to the

20th of January. Burke proposed an adjournment for one week only; but ministers represented that they had already transacted all business of importance, and that nothing was likely to occur during the recess which would demand instant attention, and their motion was carried by one hundred and fifty-five to sixty-eight. The next day a similar motion was made in the house of lords, on which occasion the Earl of Chatham, in opposing it, again endeavoured to fix blame and censure on ministers for their conduct relative to the American war. But the motion was carried by forty-seven to seventeen.

CHAPTER IX.

{GEORGE III. 1778–1779}

Demonstration of Public Spirit in England..... Meeting of Parliament..... Committee for taking the State of the Nation into Consideration..... Burke's Motion relative to the Employment of Indians..... Committee of Evidence in the House of Lords..... Lord North's Conciliatory Bills..... Intimation of the French Treaty with America..... Investigation of the State of the Navy..... Motion for excluding Contractors from Parliament..... Revision of the Trade of Ireland..... Bill for the Relief of the Roman Catholics..... Lord Chatham's last Appearance in the House of Lords..... Death of Lord Chatham, and posthumous Honours to his Memory..... The Duke of Richmond's Motion resumed..... The Session closed..... Proceedings in France..... Naval Operations in the British Channel..... Disgraceful Infraction of the Convention of Saratoga..... Lafayette's Expedition to Canada..... Unfortunate Action under Lafayette..... Sir Henry Clinton takes the Command of the British Troops..... Arrival of the Commissioners in America with the Conciliatory Bills..... Evacuation of Philadelphia by the British, &c. Disgrace of General Lee..... Unsuccessful Attack, by the Americans and French, on Rhode Island..... Operations of the British Army..... Attack of the Savages on the Settlement of Wyoming, &c. Arrival of the French Envoy at Philadelphia..... Movements of the British and French Fleets..... Capture of Dominica by the French..... Capture of St. Lucie by the British..... Re-capture of the Islands of St. Pierre and Miquelon..... French Plans regarding Canada counteracted by Washington..... Capture of Savannah by the British..... Meeting of Parliament..... Affair respecting Admiral Keppel and Sir Hugh Falliser.

DEMONSTRATION OF PUBLIC SPIRIT IN ENGLAND.

During the recess, the government party and the opposition were equally zealous in securing the public opinion, and, consequently, the success of its future schemes. The intelligence of Burgoyne's defeat seems to have had a momentary effect on the minds of the people, which favoured the views of opposition, but while a few politicians declaimed on the necessity of ending a ruinous war by recognising the independence of the United States, and others advised a cessation of arms and conciliation, the vast majority of the nation soon burned with ardour to blot out the recollection of Burgoyne's disgrace, by deeds of arms, and by reducing the colonies to their original subjection to the mother country. Not only did public meetings of

corporate bodies, towns, and counties, display their attachment to the cause of the crown by addresses, but some cities and towns as Liverpool, Manchester, Glasgow, and Edinburgh, raised each a regiment of 1000 men at their own expense. Private subscriptions were opened, large sums were given, and 15,000 soldiers were raised in England, Scotland, and Wales, without any cost or charge to government. Many of the maritime towns, also, armed ships to cruise in the Channel, where American privateers and Frenchmen with American colours were now becoming numerous. On the other hand, the opposition party represented that the American prisoners of war were treated with great cruelty in British prisons, and subscriptions were set on foot for their relief. Complaints had been made in the house of lords concerning the sufferings of the American prisoners, and the subject was investigated; but though it was found that their allowance in some instances had been slender, and that in others their keepers had treated them with severity, it could not be shown that this arose from any want of care on the part of government. Everything, however, was tried which could be tried by the opposition, in order to fix an indelible stigma of infamy on the members of Lord North’s administration.

MEETING OF PARLIAMENT.

The animus of opposition was exhibited in an unequivocal manner on the reassembling of parliament. On the 22nd of January, Sir Phillip Jennings Clarke moved for an account of the number of troops raised by private subscription, with the names of the commanding-officers. In the debate which followed this motion, ministers were accused of having incorporated 15,000 troops without consent of parliament, and represented their conduct in accepting their aid as most unconstitutional and inimical to the liberties of the country. Lord North, who agreed to the motion, in reply, argued that these spontaneous exertions proved that the people felt the insults and injuries offered to their king and country; and, also, that the country was not in that impoverished state which a jealous and impatient faction had asserted it was. Still the opposition hoped to obtain a vote of censure. In the house of lords the Earl of Abingdon moved that the twelve judges should be consulted as to the legality of raising troops without the authority of parliament. This motion was not pressed to a division; but, on the 4th of February, the same noble lord made another motion more specific, in order to cast blame upon government. He moved for a resolution that the grant of money in private aids or benevolences, without the sanction of parliament, for the purpose of raising armies, was against the spirit of the constitution and the letter of the law; and that, to obtain money by subscription was not only unconstitutional and illegal, but a direct infringement of the rights, and a breach of the privileges of parliament. This motion, after a warm debate, was negatived by ninety to thirty. On the same day in the commons, some money being demanded for the uniforms of these new troops, a still warmer discussion arose upon the subject. The new levies were treated with much discourtesy by the opposition; the two Scotch regiments, especially, being designated vile mercenaries, and willing tools of despotism. The opposition also maintained that such a practice of raising troops was contrary to the oath of coronation, and that all who subscribed were abettors of perjury. Lord North justified himself by precedents: he showed that independent regiments had been raised in 1745, and again in 1759, when Chatham

was minister. On the latter occasion, he said, that Chatham had publicly and solemnly thanked those who raised such troops for the honour and service of their country. Yet, “that great oracle with a short memory,” on the very night on which Lord North reminded the lower house of this notable fact, declaimed in the upper house in support of the Earl of Abingdon’s motion against the practice Later in the session Wilkes renewed this subject, but the motion which he made relative to it was negatived by seventy-two against forty.

COMMITTEE FOR TAKING THE STATE OF THE NATION INTO CONSIDERATION.

On the 2nd of February, on the order of the day being read, for the house to resolve itself into a committee to take the state of the nation into consideration, Fox moved that no more troops should be sent out of the kingdom. On the same day, the Duke of Richmond, also, made a similar motion in the house of lords. In both houses the opposition represented that war with France and Spain was inevitable; and that our means of defence were not sufficient in the whole to meet the contingency; and, therefore, it was not prudent to protract an impracticable contest. No answer was made in the commons, but in the lords the motion and the arguments adduced in support of it were denounced as amounting to a public acknowledgment of our inability to prosecute war; as inviting the house of Bourbon to attempt an invasion; and as attacking the prerogative of the crown to raise, direct, and employ the military force of the kingdom. The motions were rejected in the lords by ninety-one against thirty-four; and in the commons by two hundred and ninety-five against one hundred and sixty-five.

BURKE’S MOTION RELATIVE TO THE EMPLOYMENT OF INDIANS.

On the 6th of February, Burke introdued a motion for papers relative to the employment of Indians in America, from 1774 to 1778. On this occasion he made a speech three hours in length, during the whole of which time the attention of the house was fixed on the orator. This speech, however, which is represented as being one of the most splendid efforts of his oratory, is very inadequately reported. From it, notwithstanding, it may be gathered that he drew a striking and ghastly picture of Indian warfare, and of the horrors committed by these savage auxiliaries. It had a greater effect upon the house than Chatham’s denunciations of the practice of employing the Indian tribes in our army, arising from the fact that the orator handled the subject with clean hands. Colonel Barré, excited by it, declared that if it were printed and published he would nail it on every church-door by the side of the king’s proclamation for a general fast; and Governor Johnson said it was fortunate for Lord North and Germaine that the galleries had been cleared before the speech was uttered, as the indignation and enthusiasm of strangers might have excited the people to lay violent hands upon them on their return home. The secret of the excitement occasioned by the speech seems chiefly to have consisted in the fact that it abounded in touching stories and pathetic episodes. Burke especially elaborated the affecting fate of Miss Mac Crea, who was strongly attached to the royal cause, and who, being on her way to marry an officer in Burgoyne’s army, was barbarously murdered by two Indian chiefs sent for her protection. The two chiefs having disputed which of them should be her principal guard and obtain a larger reward, he,

from whose hands she was snatched, raised his tomahawk, and in a fit of rage cleft her head asunder. Such stories as these, founded in fact, were well calculated to produce excitement, especially as the murderer was left unscathed. Burke argued that these savage allies were too powerful, or their services too highly valued to run the risk of offending them; but it would rather appear that pardon was extended to the offender through an agreement with his tribe and the British general to abstain in future from indulging in such wanton cruelties, which Burgoyne considered of more importance than to take revenge on a wretch who scarcely knew that what he did was a sin either in the sight of God or man. Such stories as these, however, told upon the feelings of the house, and insured Burke strong-support. Governor Pownall, in taking the same side of the question, declared that there was not so unfair, so hellish an engine of war as savages mingled with civilized troops; and he recommended that terms should be proposed to congress whereby the two countries should mutually agree to break off all alliance with the Indians, and treat them as enemies whenever they should commit any act of hostility against a white person, American or European. He would answer for it, he said, that congress would embrace and execute such terms with good faith; and he suggested that the overture might occasion the happiest effects in producing mutual kind offices, and leading ultimately to a perfect reconciliation. He finally offered to go in person, without any pay or reward, and make the proposal to congress; asserting that he would answer with his life for the success of the negociation. But this noble proposal of Governor Pownall and Mr. Burke’s motion were alike rejected by a ministerial majority.

COMMITTEE OF EVIDENCE IN THE HOUSE OF LORDS, ETC.

On the same day that Burke made this motion in the commons, the lords in committee on the state of the nation were employed in examining witnesses to prove the ruinous consequences of the maritime war. Merchants were called as witnesses by the opposition peers, who proved that they had sustained heavy losses from the war; while, on the other hand, government were provided with other merchants, who showed that new sources of commerce had been opened since the commencement of hostilities; and, that considerable captures had been made. The Duke of Richmond opposed the arguments derived from the testimony of government witnesses. The prizes taken and distributed to British seamen, he said, so far from being a balance in our favour, added to our loss; for if we had not been at war with America, the value of all these cargoes in the circuitous course of trade, must have centred in Great Britain. The propositions were disposed of by the previous question, and other motions made by the Duke of Richmond for ascertaining the number of troops sent to America, as well as the expenses incurred by the war, though they occasioned long and warm debates, were equally unsuccessful. A similar motion was made in the commons by Fox, on the 11th of February, but it was evaded by a motion for leave to report progress. It was, perhaps, judicious in ministers to resist the production of papers called for by the opposition, for in almost every instance it would have let the enemy into dangerous secrets: secrets which they would have turned to their own advantage.

LORD NORTHS CONCILIATORY BILLS.

It is a singular fact that while Lord North sternly advocated war, he was at this time so adverse to a continuation of the contest that he had expressed a wish to the king to resign office. This appears from a letter addressed to him by his majesty on the 31st of January, in which, after appealing to Lord North's personal affection for him, he writes: —"You must remember that before the recess I strongly advised you not to bind yourself to bring forward any plan for restoring tranquillity to America; not from any absurd ideas of unconditional submission, which my mind never harboured; but from foreseeing that whatever can be proposed will be liable, not to bring America back to her attachment, but to dissatisfy this country, which so cheerfully and handsomely carries on the contest, and has a right to have the struggle continued, till convinced that it is vain. Perhaps this is the minute when you ought to be least in a hurry to produce a plan, from the probability of a declaration of war from France." It is evident from this letter that Lord North had proposed some plan of conciliation which did not meet with the monarch's views; and it seems clear, also, that his lordship, in expressing a wish to retire, had urged the impossibility of obtaining unconditional submission, which he erroneously thought was the only ground on which his majesty would listen to terms of peace. But though it was the king's opinion on the last day of January that no conciliatory measures should be adopted or proposed out of deference to the views of the people, yet his opinion soon changed. On the 9th of February, when a war with France had become inevitable, he wrote to his minister again, urging him not to "delay to bring in his proposition," before "the veil was drawn off by the court of France." Lord North lost no time in complying with this his majesty's command. On the 17th of February, he brought in two bills tending to reconciliation with the colonists: one was expressly designed to remove all apprehension from their minds concerning taxation by the British parliament, whilst it repealed the act imposing a duty on tea; and the other enabled his majesty to appoint commissioners to consult and agree on means of quieting the disorders subsisting in certain colonies, plantations, and provinces of North America. In introducing these bills, Lord North asserted that he had been uniformly disposed to pacific arrangements; that he had tried conciliatory measures before the sword was unsheathed, and would gladly try them again; that he had conceived his former propositions were equitable, and still thought so, though they had been misrepresented both at home and in America; that he never expected to derive any considerable revenue from the colonies; that he had originated none of the American taxes; that he found such as existed when, unfortunately for his own peace of mind, he came into office; and that, as for the act enabling the East India Company to send out teas with the drawback of the entire duty, which led to the Boston riots, it was a relief rather than oppression, since it actually gave the colonists their teas at a cheaper rate than before. Lord North then explained the principles of his two bills. The first, he said, was intended to quiet the minds of the Americans on the subject of taxation—to dispel all fears that parliament would ever tax them again, by a distinct renunciation of the right itself. The second bill, he remarked, would give the royal commissioners far more ample powers than those formerly entrusted to Lord Howe and his brother. They would be authorized to treat with congress as if it were a legal body, and competent by its acts and negociations to bind all the colonies; they would be empowered to treat with the conventions or provincial assemblies, or colonial

congresses, and with individuals in their actual civil capacities or military commands, without any cavil as to allowing them and addressing them by the rank they held under congress: and they would have the power of suspending hostilities, intermitting the operation of laws, granting pardons, rewards, and immunities, restoring charters and constitutions, and nominating governors, judges, magistrates, &c., till the king’s pleasure should be known. The stumblingblock of independence was removed very skilfully by Lord North. This act declared that should the Americans make this claim at the outset of the treaty, they would not be required to renounce it until it was ratified by the British legislature. The commissioners were to be instructed to negociate for a reasonable and moderate contribution toward the common defence of the empire when reunited, but they were not to insist even on this slight contribution as indispensable. In conclusion, Lord North contended that these concessions ought not to be deemed the results of defeat or weakness, since they were substantially the same as he should offer in the hour of victory. The events of the war, he frankly acknowledged, had not corresponded to his expectation, but he denied that there was any truth in the representations of a factious opposition. But for faction, England was as fertile in resources as ever: she was in circumstances to prosecute war, raise new armies, and to increase her navy, so as to be enabled to meet her accumulated foes.

Burke says that on hearing these proposals the whole house was overclouded with astonishment, dejection, and fear. This may be exaggeration, but it is certain that the ample concessions proposed by the minister—concessions far outstripping those which had been brought forward by Mr. Burke and Lord Chatham, and which were opposed by government—were highly distasteful to the country gentlemen, and to the whole Tory party. Expressions of loud disapprobation were heard on their side of the house, and some bitterly complained that deception had been practised against them relative to American taxation. On the other hand, while the opposition contended that the season was gone by when such a plan would have succeeded, it was generally approved by them. They yet hoped, they said, that there might be a chance of conciliation, and therefore they would give the minister their support. At the same time, Lord North was severely reprehended by some of the opposition members. Fox said his arguments “might be collected into one point, and his excuses comprised in one apology, or rather in one word, _ignorance_; a palpable and total ignorance of America: he had expected much, and had been disappointed in every thing; necessity alone had compelled him now to speak out.” In the course of his speech, Fox informed the house that there was a report abroad that within the last ten days France had signed a treaty with America, acknowledging their independence, and entering into a close alliance with the colonists. He called on Lord North to afford the house satisfaction on so important a point, and that minister reluctantly acknowledged that such a treaty was in agitation, though as it was not authenticated by our ambassador he could not say that it was concluded. The motion for bringing in the bill was carried by a majority of about two to one, and on the first reading some of the Tory members expressed their disapprobation of our wholly renouncing the right of taxing the colonists. In reply, Lord North declared that the not exacting the renunciation of independence by the Americans did not imply that we intended to yield that point;

that the commissioners would not be empowered to concede thus much; and that the Americans would be expected to treat as subjects, and not as a sovereign state. The bills were passed, and when brought up to the lords, the opposition was renewed. The Duke of Richmond read the American declaration of independence, and asked ministers whether they meant to subscribe to assertions such as these:—“That the king is a tyrant,”..... “that his majesty has lost the affection of his American subjects by the insolent, daring, perfidious and unconstitutional language of ministers, etc.” His grace said these bills, instead of regaining the affections of the Americans, would sound the trumpet of war to all nations; that they were at once ignominious and ineffectual; that they meant nothing or worse than nothing; that they were better calculated to divide than conciliate; and that they empowered commissioners to treat with America, and then called them back again to consult parliament. His grace also stated as a notorious fact that ministers had sent persons over to Paris to tamper with Dr. Franklin and Silas Deane, and that these American agents had rejected their offers, together with the terms of the new bills, in scorn. Lord Temple opposed the bills on different grounds. He denounced them as mean and truckling, and as tending to prostrate the king, the parliament, and the people of Great Britain at the feet of Franklin and Silas Deane, to whom ministers had paid homage in sackcloth and ashes. The people, he said, had recovered from the shock occasioned by Burgoyne’s reverses, and ministers were now going to depress their newly-awakened animation by succumbing to an arrogant enemy. Lord Shelborne also opposed the bills as tending to separate the two countries. He never would consent, he said, that America should be independent of England, and he represented that his idea of the connexion between the two countries was, that they should have one friend, one enemy, one purse, and one sword; that Britain, as the great controlling power, should superintend the whole; and that both the countries should have but one will, though the means of expressing it might be different. This, he said, might have been obtained long ago without bloodshed or animosity. The bills passed without a division: a protest was entered against them, but it was only signed by one solitary peer, Lord Abingdon.

INTIMATION OF THE FRENCH TREATY WITH AMERICA.

The conciliatory bills were scarcely passed when Lord North delivered a message from the throne to the commons, stating the receipt of information from the French king, that he had concluded a treaty of amity and commerce with his majesty’s revolted subjects in America, and that in consequence of this offensive communication, the British ambassador at Paris had been ordered home. His majesty, the minister said, fully relied on the zeal and affection of his people to repel the insult and maintain the honour of the country. The note of the French ambassador was laid before parliament, and it was to this effect:—“The United States of North America, who are in full possession of independence, as pronounced by them on the 4th of July, 1766, having proposed to the King of France to consolidate, by a formal convention, the connexion begun to be established between the two nations, the respective plenipotentiaries have signed a treaty of friendship and commerce, designed to serve as a foundation for their mutual good correspondence. His majesty, the French king, being resolved to cultivate the present good understanding subsisting between

France and Great Britain by every means compatible with his dignity and the good of his subjects, thinks it necessary to make his proceeding known to the court of London, and to declare at the same time that the contracting parties have paid great attention not to stipulate any exclusive advantages in favour of the French nation, and that the United States have reserved the liberty of treating with every nation whatever upon the same footing of equality and reciprocity. In making this communication to the court of London, the king is firmly persuaded it will find new proofs of his majesty's constant and sincere disposition for peace; and that his Britannic majesty, animated by the same friendly sentiments, will equally avoid every thing that may alter their good harmony, and that he will particularly take effectual pleasures to prevent his French majesty's subjects and the United States from being interrupted, and to cause all the usages received between commercial nations to be, in this respect, observed, and all those rules which can be said to subsist between the two courts of France and Great Britain. In this just confidence, the undersigned ambassador thinks it superfluous to acquaint the British minister that the king, his master, being determined to protect effectually the lawful commerce of his subjects, and to maintain the dignity of his flag, has, in consequence, taken effectual measures in concert with the Thirteen United and Independent States of America." In making this communication to the house, Lord North moved an appropriate address to the king, which again called forth the spirit of opposition. In discussing the motion, an amendment was proposed requesting his majesty to dismiss the ministers. Lord North was reproached with having suffered himself to be surprised by the notification of a treaty which appeared to have been two years under discussion, and with leaving the country on the eve of war destitute of adequate means for its internal security. Without designing to vindicate ministers, Governor Pownall detailed the circumstances and progress of the treaty. The account, however, which he gave was widely different from matter of fact. He said that the idea had not existed six months, and had not been in actual negociation more than half that time. But it is well known that the idea had been uppermost in the minds of the American leaders for full two years, and that Silas Deane had been attempting to negociate for nearly that period, and Benjamin Franklin had been at Paris with the same object in view for near twelve months. It appears indeed that the only reason the treaty was not signed long before, was that the French at first attempted to drive a hard bargain, conceiving that the Americans were in such a weak condition that they would agree to any terms rather than not obtain the co-operation of France. The news of ther surender of Burgoyne's army, as Governor Pownall observed, lowered the demands of the French, and this it was that made them hurry on such a treaty as congress desired. But even. now Pownall remarked, peace was yet practicable, if Great Britain would pursue the proper course. He said:—"The Americans are and must be independent. We acknowledge it in our acts, and have already, though we may try to cover our shame with words, resigned all dominion over them. They will never rescind their declaration; but if parliament will extend the powers of the commissioners so far as to acknowledge their independence, on conditions, they will, in return, form with us a federal treaty, offensive, defensive, and commercial. The compact, signed at Paris, is not yet ratified by congress: by a speedy and candid exertion this country may still be enabled to take advantage of the natural predilection of the Americans for the parent

state. If a federal treaty Were not adopted, and the Americans should ever be induced to treat on other terms, one of their first demands must be a reimbursement of expenses, and an indemnification for losses. A pecuniary remuneration was out of the question; but in lieu of it government must sacrifice Canada, Nova Scotia, and the Newfoundland fishery. This would be insisted on; but if independence were conceded America could only treat with England on the same ground as any other independent nation." General Conway and Mr. Dundas argued that it would be better policy to form a federal union with America, than to let her fall into the hands of France; but the vast majority of the house seemed to think that the entrance of France into the quarrel rendered all present thought of negociation an absurdity and a meanness; and that no future friendship could be hoped from a people who, though descended from us and bound to us by the strong ties of community of descent, language, and religion, had united themselves with the most ancient, inveterate, and most powerful of all our enemies. At the same time war was advocated, it was suggested that Chatham, the scourge of the house of Bourbon, was the proper man to occupy the post held by Lord North at such a crisis. But Lord North did not coincide in this opinion. He expressed a total disregard to office, but contended that the interest of the empire, as well as his own reputation, demanded that he should still sit at the helm of the state. The original address was carried by a large majority, and in the house of lords an amendment to the address was negatived by a majority of sixty-eight against twenty-five. Addresses were also returned from both houses to a royal message intimating his majesty's intention of calling out the militia.

INVESTIGATION OF THE STATE OF THE NAVY.

Previous pages show that there had already been debates on the state of the navy. Now that a war with France was inevitable the subject was brought prominently forward; especially in the house of lords. On the 13th of March, Lord Howard of Effingham moved a series of resolutions explaining the condition of the navy during the last eight years; the number of ships broken up, built, or repaired; and the precise condition and expense of the ordnance. In moving these resolutions, Lord Howard spoke of the necessity of economy, and accused the first lord of the admiralty with gross mismanagement. Lord Sandwich, who had been assailed on previous occasions when the same subject was introduced, now made a long and able defence. The British naval force, he said, at that moment consisted of three hundred and seventy-three ships of all rates, which was a force double to that which England had in her possession half a century before. In drawing the comparison or the present state of the navy with its condition in 1727, he adduced arguments highly favourable to his own administration; but notwithstanding this, the opposition were very violent in their language towards him. He was even threatened with the vengeance of the people, who, it was said, would rise and tear him to pieces, as the Dutch had treated De Witt. The debate was tumultous, but the motions were all negatived.

MOTION FOR EXCLUDING CONTRACTORS FROM PARLIAMENT.

After various debates on the iniquities practised by contractors, and the badness of the provisions which they supplied, Sir Philip Jennings Clarke introduced a bill for excluding contractors from parliament, unless their contracts were publicly obtained

by competition. In this debate ministers were coupled with the offenders, and Lord George Gordon, who afterwards rendered himself so notorious, declared that Lord North was the worst of all contractors—he was, he said, a contractor for men, a contractor for parliament, and a contractor for the representatives of the people! Lord George advised the minister to save his country and rescue his own life from popular vengeance by calling away his butchers from America, by retiring with all the rest of his majesty's evil advisers, and by turning away from his own wickedness. The first and second reading of the bill was carried, but the motion for committing the bill was negatived on the 5th of May, by a majority of two, and it was consequently lost.

REVISION OF THE TRADE OF IRELAND.

During the month of April a committee of the house of commons was formed for the revision of the trade laws which affected Ireland. In consequence of the American war, a stop had been put to exportations of manufactures, and a large body of the people deprived of employment. Lord Nugent therefore proposed that Ireland should be permitted to export all articles of Irish manufacture—woollen cloths and wool excepted—on board British vessels to the coast of Africa and other foreign settlements, and to import from the same all goods, except indigo and tobacco. He also proposed that they should be allowed to export Irish sailcloth, cotton-yarn, and cordage to England, free of duty. Two bills founded upon these propositions were introduced, and both sides of the house admitting the justice of the measures seemed to agree in the propriety of adopting them. The great commercial body of England, however, took the alarm, and during the Easter recess, a formidable opposition was entered into by the merchants in all quarters. Petitions flowed into parliament from every part of the country, and the different members of parliament were instructed by their constituents to oppose the measures. Many who had previously been disposed to give them their support, in compliance with these instructions now opposed them; but Mr. Burke, who was member for the great trading city of Bristol, manfully refused, and continued to co-operate with Lord Nugent in his task. In presenting a petition from Bristol against the measures, he ably advocated them, and declared that if from his conduct he should forfeit the suffrages of his constituents at the next election, it should stand on record, as an example to future representatives of the commons of England, that one man at least had dared to resist the desires of his constituents when his judgment assured him that they were wrong. Notwithstanding the petitions and the altered opinion of many members, the second reading of the two bills was carried by a large majority. The petitioners, however, were resolute in their opposition to the measures. They prayed to be heard by counsel, and this being granted, such was the weight of the pleadings of the close-trade interest, that the supporters of the bills were compelled to effect a sort of compromise by which the amount of the benefit conferred on Ireland was greatly diminished.

BILL FOR THE RELIEF OF THE ROMAN CATHOLICS.

While the measures for benefiting the trade of Ireland were under discussion, Sir George Saville brought in a bill for the relief of the Roman Catholics, by repealing certain penalties and disabilities created by the 10th and 11th of William III., entitled

an Act for preventing the Growth of Popery. The Roman Catholics had recently presented a very flattering address to his majesty, and the occurrences in America and the attempts made by the Americans to excite insurrection seem to have suggested to the minds of ministers the expediency of tranquillizing and securing the affections of the Irish people. This bill, therefore, was supported by ministers, and it was carried through the commons unanimously. The Bishop of Peterborough warmly opposed it in the house of lords, but the majority of the peers gave it their support, and the bill passed into a law. By it the subjects of Great Britain professing the Romish creed were permitted to perform their religious rites, and were rendered capable of inheriting or purchasing real estates, on subscribing an oath of allegiance to the king, and disclaiming the pope's authority over this realm, or his power of absolving its people from their obligations to the government as by law established. This dawn of religious freedom has been extolled as one of the greatest glories of the reign of George III.; but it must be recollected that this measure was one of expediency, which detracts materially from its glory.

{GEORGE III. 1778–1779}

MOTION OF CENSURE ON LORD GEORGE GERMAINE, ETC.

On the 19th of March, during the sitting of the committee of the whole house on the state of the nation, Mr. Fox moved a resolution of censure on Lord George Germaine, as the chief author of Burgoyne's disaster. This motion was rejected, and the solicitor-general then proposed that the house should exonerate the noble secretary from all blame. A vote to the effect that the failure of the expedition from Canada was not caused by any neglect of the secretary of state was carried, but the resolution was not reported. By this time Burgoyne, who was a member of parliament, and who had been permitted to return home upon parole, was in his place to speak for himself. He had an opportunity of explaining the whole matter on the 26th of May, when a motion was made for a select committee to consider the transactions of the northern army, the convention of Saratoga, and the means by which the general of that army had obtained his release. In supporting the motion, Burgoyne vindicated his conduct at great length, and complained bitterly of fabrications which injured his own honour and the honour of the army, as well as of his treatment in parliament during his absence, and his treatment generally since his return to England. He solicited a full inquiry, asserting that he put his fortune, his honour, and his head on the issue. The reply of Lord George Germaine was brief, and he concluded by saying that the house was not the proper tribunal to decide upon the campaign, and therefore he could not see the propriety of parliamentary interference. The motion was rejected.

In the course of the debate, Mr. Temple Luttrell adduced the story of the court-martial which had sat upon Lord George Germaine himself, after the battle of Minden, and made an insulting comparison between his conduct in that battle, and the conduct of the brave and enterprising Burgoyne. In a paroxysm of rage, Lord George asserted that he did not merit such an attack; that he would for once descend to a level with the wretched character and malice of his assailant; and that, old as he

was, he would meet the fighting gentleman and be revenged. The house called to order, and the speaker reprimanded both members, and insisted that the affair should proceed no further. Lord George immediately apologized for his warmth, but Luttrel escaped out of the house, and would neither apologize nor give the required assurances till the sergeant-at-arms was called in. He then said that he meant his reflections as public matter, and that they were not to be referred to private abuse or enmity, and there the matter ended.

[Illustration: 121.jpg DEATH OF CHATHAM]

LORD CHATHAM'S LAST APPEARANCE IN THE HOUSE OF LORDS.

About this time, some of the leaders of the opposition became convinced that the only possibility of detaching America from France and avoiding both wars was by acknowledging the independence of the American colonies. These sentiments were communicated to Chatham, and he was solicited by those who entertained them to honour a motion about to be made by the Duke of Richmond on this subject with his support. In reply, Chatham confessed his concern that he was under so wide a difference with his noble friends respecting the sovereignty and allegiance of America; but notwithstanding his increased infirmities, he expressed his determination to be in the house on the 7th of April, which was the day mentioned as that on which the subject was to be brought forward. On that day Chatham appeared in the house for the last time. He came wrapped up in flannel, supported by two friends, and looking like a dying man; and as he entered, the peers rose up and continued standing while he passed to his seat. The Duke of Richmond made his motion, which was for an address to the king, beseeching him to acknowledge the independence of America, by withdrawing all his forces from that country; and to dismiss his ministers. Lord Weymouth, one of the secretaries of state, opposed the motion, and Chatham followed on the same side against his own party. He was supported by his crutches and his two friends, and when he had gained his feet, he took one of his crutches from under his arm, and raising it cast his eyes toward heaven, and said:—"I thank God that I have been enabled to come here this day, to perform my duty and to speak on a subject which has so deeply impressed my mind. I am old and infirm; I have one foot—more than one foot in the grave; I am risen from my bed to stand up in the cause of my country, perhaps never again to speak in this house." This was delivered in a feeble tone, but as he grew warm, his voice rose and became as harmonious as ever. In the course of his speech, he entered into a full detail of the American war, dilating on all the measures which he had opposed, and evils which he had predicted; adding, at the close of each review, "and so it proved." Chatham then spoke more particularly on the subject of the motion. He remarked: "My lords, I rejoice that the grave has not closed upon me; that I am still alive to lift up my voice against the dismemberment of this ancient and most noble monarchy! Pressed down as I am by the hand of infirmity, I am little able to assist my country in this most perilous conjuncture; but, my lords, while I have sense and memory I will never consent to deprive the royal offspring of the House of Brunswick, the heirs of the Princess Sophia, of their fairest inheritance. Where is the man that will dare to advise such a measure? My lords, his majesty succeeded to an empire as great in

extent as its reputation was unsullied. Shall we tarnish the lustre of this nation by an ignominious surrender of its rights and fairest possessions? Shall this great kingdom, that has survived whole and entire the Danish depredations, the Scottish inroads, and the Norman conquest—that has stood the threatened invasion of the Spanish armada,—now fall prostrate before the house of Bourbon? Surely, my lords, this nation is no longer what it was! Shall a people, that fifteen years ago were the terror of the world, now stoop so low as to tell their ancient, inveterate enemy, 'Take all we have, only give us peace?' It is impossible! I wage war with no man, or set of men. I wish for none of their employments; nor would I co-operate with men who still persist in unretracted error; who, instead of acting on a firm, decisive line of conduct, halt between two opinions where there is no middle path. In God's name, if it is absolutely necessary to declare either for peace or war; and the former cannot be preserved with honour, why is not the latter commenced without hesitation? I am not, I confess, well informed of the resources of this kingdom, but I trust it has still sufficient to maintain its just rights, though I know them not. But, my lords, any state is better than despair. Let us at least make one effort; and if we must fall, let us fall like men!" When Chatham sat down, the Duke of Richmond rose again, and after replying to the arguments of Lord Weymouth, he attempted to answer the great orator. Although evidently disconcerted and irritated at the course he had taken, the Duke professed the greatest veneration for Chatham's name and person, and the greatest gratitude for the services he had rendered the country. The name of Chatham, however, he said, could not perform impossibilities, or restore the country to the state it was in when directed by his counsels. Our finances were then, through the abilities of that able financier, Mr. Pelham, in a flourishing condition; our fleet was then in an admirable condition, under the direction and care of that able naval officer, Lord Anson; and the influence of the crown then had not reached its present and alarming height. During the greater part of the war, he continued, we had only France to contend with, and when Spain commenced hostilities, France was reduced to the lowest ebb, having already lost her navy and the best of her colonies. Then also America fought for us, but now she would be allied with France and Spain against us. He added, "If the noble earl had pointed out the means of supporting this unequal contest, I should readily acquiesce in his sentiments; but since he has not only omitted to point out the means, but acknowledged that he knows them not, he will excuse me if I adhere to my former opinion. No person is more anxious for the dependence of America; but being convinced of its total impracticability, I would retain the colonists as allies, and thus prevent them from throwing themselves into the arms of France. The noble earl, as a reason for war, has mentioned the inherent rights of the heir apparent. To recover these possessions by force is now impossible; but I will readily join in calling to a severe account those who have caused the loss of his inheritance." During this harangue, the Earl of Chatham had frequently denoted by the motion of his hand that he had remarked and would reply to some observations which he deemed offensive, and when the Duke of Richmond sat down, he attempted to rise for that purpose. But his work was done: his strength failed him, and he would have fallen to the floor but for the prompt assistance of some noble peers. He was carried into an adjoining chamber, and the whole house, agitated by the event, adjourned in silence.

DEATH OF LORD CHATHAM, AND POSTHUMOUS HONOURS TO HIS MEMORY.

Lord Chatham so far recovered as to be able to be carried down to his favourite villa of Hayes, in Kent. These appearances of recovery, however, were soon found to be delusive. He expired on the 11th of May, in the seventieth year of his age. His death was announced in the house of commons late in the evening of that day by his friend Colonel Barré, who moved for an address to the king that his remains should be interred at the public expense in Westminster Abbey. The motion was seconded by Mr. T. Townshend, and seemed to meet with general approbation; but Mr. Rigby, who apprehended that a public funeral would not be agreeable to his majesty, as Chatham had not recently been looked upon with much favour at court, suggested that a public monument to his memory would be a better testimony of the public admiration and gratitude. The result of this suggestion, however, was very different from that which Townshend intended. Mr. Dunning said it would be better to have both the public funeral and the monument, and he combined both in a resolution, which was carried without one dissentient voice; Lord North giving it his warmest support. A funeral and a monument were therefore secured to the great orator, and as, notwithstanding his places, pensions, and legacies left him, Chatham had died in debt, on the recommendation of Lord John Cavendish, £20,000 was voted for the payment of his debts, and £4000 a-year was settled upon-his heirs. No opposition was made to these grants in the commons; but a motion made by the Earl of Shelburne in the lords, that the peers should attend his funeral was lost by a majority of one vote. The annuity bill was also opposed in the lords; but it was carried by a majority of forty-two to eleven. In all these votes his majesty concurred, although during the noble earl’s life he had opposed an application made to him to settle the pension he enjoyed in reversion to his second son, William Pitt, until, at least, decrepitude or death had put an end to him “as a trumpet of sedition.” His majesty, however, could not carry his resentment beyond the grave, and perhaps pleased with the last noble sounds of his trumpet, he gave his warm assent to the honours and rewards which parliament had voted to the great orator and his heirs. And the posthumous honours paid to Chatham were not confined to the king and the parliament. The Common-council petitioned to have his remains interred in the noblest edifice of Great Britain, St. Paul’s Cathedral, and when this was refused, they erected a monument in Guildhall to his memory. He was one of the greatest orators England ever produced; greater even than the garbled and defective reports of his speeches would denote him to have been. In his private life his character was both exemplary and amiable—his public character is defined in the preceding pages.

THE DUKE OF RICHMOND’S MOTION RESUMED.

The Duke of Richmond’s motion was resumed on the day after it had been interrupted by Chatham’s illness. The resumed debate, however, only served to place the difference of opinion which existed between the Rockingham and Chatham parties respecting America in a clearer light. The former contended for the independence of that country, without reserve or delay; while the latter as warmly contended that such a measure would prove one of the greatest political evils that could befall the nation. The Earl of Shelburne also maintained that the resources of

Great Britain, if properly managed, were sufficient to cope with our triple foes—America, France, and Spain—and that our navy would not fail of supporting the glory they had gained in so many conflicts. The motion was negatived by a majority of fifty-five against thirty-three.

THE SESSION CLOSED.

Although the season was now far advanced, motions were made in both houses to put off the prorogation. These motions were, however lost, and on the 3rd of June, the king terminated the session. In his speech, his majesty thanked his faithful commons for their zeal and attention to the interests of their country, and the honourable support they had made for the royal family; several annuities having been granted to his numerous family. Alluding to the one great question, he said, that his desire was to preserve the tranquillity of Europe; that the faith of treaties and the law of nations had been respected by him, and that he had anxiously avoided giving offence to any foreign power. He added:—“Let that power by whom this tranquillity shall be broken, answer to their subjects and to the world for all the fatal consequences of war!”

PROCEEDINGS IN FRANCE.

Having entered into a treaty with America, in which treaty it was stipulated that the Americans should never return to their allegiance to the British crown, and having thereby hurled a bold defiance to the power of England, the French made preparations for war. At this time France was by no means in a flourishing condition, but by oppressing the poverty-stricken people with imposts, duties, and _corvées_, and by taking the bread from half-famished mouths, means were found to raise armies and equip fleets. The coasts of Normandy and Britainy swarmed with soldiers, who threatened to invade England; arms, money, and men were sent to America; and the navy of France set out to contend with the navy of Great Britain, for the mastery of the seas between the two countries. On the 18th of March, the French king issued an edict to seize all British ships in the ports of France, and shortly after our government laid an embargo on all French ships in British ports. This, with the mutual withdrawal of ambassadors, and the interruption of all diplomatic intercourse, left the two countries in a state of open hostility, although no heralds or manifestoes were employed on either side to make a formal declaration of war. On their part, the French had in reality no materials for manifestoes, whence their silence; while on our part, ministers were too much employed to think of such a ridiculous solemnity. It was, moreover, too well understood on both sides that the only arguments likely to avail must proceed from the mouth of the cannon.

NAVAL OPERATIONS IN THE BRITISH CHANNEL.

The maritime defence of England was entrusted to Admiral Keppel, and he put to sea with twenty sail ot the line for that purpose. On the 17th of June, Keppel discovered two French frigates, the “La Licorne” and “La Belle Poule,” reconnoitring his fleet. The con duct of France seemed to call for and to justify extreme measures, and Keppel’s instructions being ample, he resolved to effect the capture of these two frigates. Accordingly they were chased, and the first, fired both with cannon and musketry, struck her colours and was captured; but the other having fiercely

encountered and dismasted a pursuing vessel, escaped among the rocks on the French shore. Shortly after a French schooner and another frigate were captured, and from papers found in these several vessels Keppel discovered that the enemy had thirty-two sail of the line and twelve frigates ready for sea in Brest harbour. This determined him to return to Portsmouth for reinforcements. These reinforcements, however, were either not ready or were not there, and while he was waiting for them the Brest fleet had put out to sea under the command of the Count d'Orvilliers, and had captured a frigate which Keppel had left to watch the movements of the enemy. This was on the 9th of July, and on the very same day, Keppel, whose fleet had been augmented to thirty sail of the line, departed in quest of d'Orvilliers. He fell in with the French admiral on the 23rd, but as the French, who had the advantage of the wind, showed no inclination for battle, the English continued chasing and manoeuvring to windward for four days. On the 27th, however, a dark squall brought the two fleets close together off Ushant. The signal was instantly made to engage. The fleets were then sailing in different directions, and on contrary tacks, and a furious cannonade was maintained for nearly three hours, at the end of which time they had passed each other, and the firing ceased. The loss in killed and wounded was greatest on the side of the French, but some of the British ships under Sir Hugh Palliser were so crippled that when Keppel wore round to renew the engagement they could not obey the signal, and he formed his line of battle ahead. On their part the French formed their line to leeward of their antagonists, and Keppel expected that they would try their force "handsomely with him in the morning;" but in the course of the night d'Orvilliers edged away for Brest, and claimed the victory, because he had not been thoroughly beaten. Keppel returned to England to get new masts and rigging, and on the 18th of August, d'Orvilliers again set sail to cruise off Cape Finisterre. A few days after, Keppel also again put to sea, but he stretched further to the westward, to protect the merchant-ships returning from the two Indies, and to prevent any portion of the French fleet from reaching America. Every ship sailing from the Indies arrived safely in England, and our privateers and cruisers captured many French trading-vessels; but the two fleets did not again come into collision, and popular indignation, excited by disappointment, attributed the blame to Keppel and Sir Hugh Palliser, who served under him. The journals of the day teemed with invectives against them for not pursuing the French admiral after the battle off' Ushant; and the opinion was very general that they had not acted with the required decision when the fleet of the enemy was in their power. By the court and the admiralty, however, their conduct was viewed with approbation; and Keppel, at least, would not deign to answer his anonymous accusers. Sir Hugh Palliser replied to an attack made upon him in a morning paper, and because Keppel refused to authenticate his answer or to contradict statements made by an anonymous accuser, Palliser published his own case, in which he charged his superior officer with inconsistency, for having approved his conduct in a public despatch, and now refusing to vindicate his character. Keppel, however, acted the more nobly: anonymous accusations are beneath the notice of a high-minded and honourable man, and he who replies to such, dignifies a character which is little superior to a midnight assassin, and should be treated with mortifying contempt. That accuser who will not face the accused, places himself out of the pale of the laws and usages of society.

DISGRACEFUL INFRACTION OF THE CONVENTION OF SARATOGA.

Although the Americans had given Burgoyne leave to return home upon parole, yet, in bold defiance of the convention signed by Gates, they still kept his troops as prisoners of war. As there was a difficulty in reaching the port of Boston early in the winter, Burgoyne had applied to Washington to change the place of embarkation, and to substitute for it some place on the Sound. Washington referred the matter to congress, and he was directed to inform Burgoyne, that no proposition for indulgence or for altering the terms of the convention would be listened to, unless directed to their own body. The truth is, congress had scarcely ceased rejoicings for the success of Gates, when they determined to break the compact. Measuring the faith and honour of the English officers by their own, they pretended a concern that the army which had surrendered, instead of sailing for England, would join the forces of General Howe; or, that if they did not do this, and if they sailed for England, their arrival there would enable the government to send out an equal number of troops employed in the home service to take their places in America. Hence, they set their wits to work in order to delay the return of the troops to England. The first thing they did was to pass a resolution directing General Heath to transmit to the board of war, a descriptive list of every person comprehended in the convention. Burgoyne and his officers bitterly resented the insinuations of congress, and raised objections to such a humiliating measure; but his army was, nevertheless, described man by man, with all the minuteness of a French commissary of police. After this was done, a number of British transports came round to take Burgoyne and his troops on board, but congress now attempted to find several flaws in the clauses of the convention of Saratoga. They pretended that the ships were not sufficient, or sufficiently furnished with provisions for a voyage to Europe, and that, therefore, General Howe contemplated the shorter voyage to Sandy Hook or Delaware; and they further pretended that some of the British soldiers had secreted their cartouch-boxes, which were, they said, comprehended in the technical term “arms,” and upon such futile and unfounded pretensions they gravely concluded that the convention was broken. The British officers denied these allegations, and the whole subject was referred to a committee of congress, who, in their report, substantiated them by fallacy, and thereupon it was resolved that “the embarkation of Lieutenant-General Burgoyne and the troops under his command, should be suspended until a distinct and explicit ratification of the convention of Saratoga should be properly notified by the court of Great Britain to congress.” The men were then thrown into prison, and the British transports were ordered to quit the neighbourhood of Boston without delay. Burgoyne addressed a letter of remonstrance to congress, and insisted on the embarkation of his army as stipulated in the convention; but a committee to whom this letter was referred, reported that it contained no arguments sufficient to induce congress to alter their resolutions, and the men were still kept in prison. Burgoyne then demanded that he, at least, should be permitted to return to England upon his parole, which request was readily granted, and it was in this manner that he had been allowed to come home, leaving his army behind him. The whole affair reflects the greatest disgrace upon the members of congress, and Washington and Gates share in that disgrace; the former for having joined hand-in-hand with congress in the

affair, and the latter for not preventing the act of perfidy, or throwing up his commission if he had not sufficient influence to prevent it. All the American leaders, however, seem to have parted company with faith and honour, and they rejoiced in the prospect of keeping Burgoyne’s troops prisoners of war till the war should be ended, being well convinced that the court of Great Britain would not make the required notification.

LAFAYETTE’S EXPEDITION TO CANADA.

During the preceding year, while the treaty between France and America was pending, the Marquess de Lafayette, a warm-hearted and warm-headed young Frenchman, who had imbibed the political notions of the new school of philosophy, which had for some time been sowing the seeds of revolution in France, resolved to embark in the cause of America. Accordingly he set sail for that country, accompanied by Baron Kalb, and a few other adventurers, and when he arrived he was received with open arms by Washington and by congress. On the 31st of July, indeed, the members of congress expressed their sense of his accession to their cause in warm terms, and conferred on him the rank and commission of major-general. He fought in the battle of the Brandywine, where he was shot in the leg, and where he narrowly escaped being taken prisoner. Nothing more is heard of him till the depth of the winter, when Washington still lay hutted in Valley Forge, contending against the horrors of sickness and famine, as previously narrated. At this time congress, who were sitting in York Town, at the instigation of a board of war, composed of Gates, Starke, and others, all personal enemies of Washington, resolved to make another irruption into Canada, and that the command should be given to Lafayette. It was supposed that the young French nobleman would have great influence with the French descendants in Canada, which was the chief reason of his being raised to the command. The plan was completed without a word of intimation to Washington; and when it was fully resolved upon he received a letter from Gates, now his rival, enclosing another for the young marquess, requiring his immediate attendance on congress to receive his instructions. At the same time, Washington was directed to send one of his best regiments to join the Canadian expedition. Lafayette repaired to congress, and Washington put the required regiment in motion for Albany, on the Hudson, where the invading force was to be assembled. According to his own account, Lafayette made large demands on congress in order to ensure the success of his expedition, which demands were all complied with. He soon, however, found that the word of congress could not be depended upon. He was told that 2500 men would be assembled at Albany; that he would be joined by a great body of militia further up the Hudson; that he should have a certain sum of money in specie, and 2,000,000 dollars in paper-money; and that he must proceed from the head of the Hudson to Lake Champlain, cross that water on the ice, burn the English fleet at the Isle Aux Noix, and then, descending the Sorel and crossing the St. Lawrence, repair to Montreal, to act as circumstances should permit him. Lafayette set out full of ardour and hope, but he had scarcely left congress when it crossed their minds that the young Frenchman might, instead of inducing the Canadians to join the thirteen United States, induce them to renew their connexion with their mother country—France. These misgivings were natural, and the result was that congress

resolved to neglect this long-cherished scheme of conquest. Accordingly, when Lafayette arrived at Albany, he did not find half of the promised regular troops, and as for the militia, it had either not received or attended to the summons. Even the troops he found there wanted clothing and provisions, and while he had little or no specie, the paper-dollars proved scarcely worth the carriage. Moreover, he had no sledges to carry his troops across the ice, and when the month of March arrived, the lakes began to thaw, and he received intelligence that the English were well prepared to receive him. Lafayette now gave up the enterprise, and after having made an attempt to engage some Mohawk Indians in the service of congress, in which he met with but little success, and having administered a new form of oath, devised by congress, to the population of Albany, he was permitted to return to the camp of Washington.

UNFORTUNATE ACTION UNDER LAFAYETTE.

During the winter and the commencement of the spring, while the great body of the British troops were quartered in Philadelphia, several excursions were made by detachments in different directions, chiefly for the purpose of obtaining provisions and clothing. These excursions were generally attended with success, and many American prisoners were brought into Philadelphia. Washington, however, was still permitted to rest securely in Valley Forge, where he omitted no opportunity of bettering the condition of his forces. His exertions were great, and he was now ably seconded by Baron Steuben, a Prussian officer, who had served for many years on the staff of Frederick the Great, and who, like Lafayette, had become an adventurer on this theatre of war. Steuben taught the raw troops of the republic the system of field-exercise which his Prussian majesty had introduced or improved; and when they next took the field, therefore, they presented a far more soldier-like appearance than they had presented in the previous campaigns. It was in the month of May that they again took the field. In that month the British had made an expedition by sea and land to destroy all the American shipping in the upper part of the Delaware between Philadelphia and Trenton. This may be considered the opening of the campaign, and the expedition was in a great measure successful.

More than forty American vessels were burnt; a considerable quantity of stores and provisions were destroyed; and some Americans were slain and wounded in the vain endeavour to defend them. Washington now began to act. On the 19th of May he detached Lafayette with nearly 3000 men to take post at Barren Hill, about seven miles in advance of Valley Forge, but on the opposite side of the Schuylkill. The object of this movement appears to have been the restraining of the British excursions, but the position was ill-chosen, as the communication between it and Valley Forge was difficult, and easy to be interrupted by an active enemy. Probably Washington calculated that General Howe would still continue his inactivity, and especially as it was now known that the British contemplated the abandonment of Philadelphia. But in this he was mistaken. On the night of the 20th, General Grant was detached with 5000 men to surprise Lafayette in this position, and he reached a point between his rear and Valley Forge without discovery. At the same time another detachment, under General Grey, marched along the western bank of the Schuylkill, and posted

themselves at a ford about three miles in front of Lafayette's right flank, while the rest of the British army advanced to Chesnut-hill. His retreat was utterly cut off, except by the way of Matson's-ford. As soon as Lafayette became aware of his danger he saw this, and he instantly fled, pell-mell, with his detachment to this ford, leaving on his way six field-pieces. There was a race between him and Grey which should get first to Matson's Ford, but fear quickened his steps and those of his followers, and Grey's men being fatigued with their long night-march, the Frenchmen won the race, and the ford was passed before Grey could reach it. General Grant also was slow in his pursuit from behind, and Lafayette was even allowed time to send back some of his men across the water to recover the artillery he had abandoned. He escaped with the loss of about fifty men killed and wounded, and a few more taken prisoners; but had this expedition, which had been well conceived, been executed with greater rapidity, the career of Lafayette would have terminated, and his followers must either have been captured or slain. Washington himself seems to have considered that his case was hopeless. By means of glasses he had discovered Lafayette's peril, and he caused his bridge across the Schuylkill to be broken down, lest the British, after annihilating this detachment, should fall upon himself at Valley Forge.

{GEORGE III. 1778–1779}

SIR HENRY CLINTON TAKES THE COMMAND OF THE BRITISH TROOPS.

The above wore the last military operations in America over which Sir William Howe presided. He had been for some time soliciting his recall, through feelings of resentment for want of confidence reposed in him, and inattention to his recommendations; and on the 24th of May, Sir Henry Clinton arrived at Philadelphia to supersede him in the command. How General Howe could imagine that any recommendations which he could make would be attended to, is matter of surprise, when his inglorious campaigns are considered. He had done nothing of consequence during the long time he had been in America, and at the very time he was superseded in the command, he was conscious that the army must soon evacuate Philadelphia. For the last seven months he had, indeed, been living a life of pleasure, which wholly unfitted both him and his army for active service. Hence, it is no wonder that before his departure both officers and men, expressed their warmest affection for him. On the 18th of May a grand fête was given to him as a proper leave-taking, which was celebrated in such bad taste that it reflected disgrace on those who got it up, and those who consented to be honoured by it. Even if the Howes had been uniformly victorious and had finished the war by brilliant exploits, the pageantry was of such a nature as would have been better fitted for some inglorious Eastern despot; how much more then was it misplaced when all the work they had been commissioned to execute was left undone. The enemy had still the sword in their hands, and were daily increasing in courage, in skill, in strength, and in numbers. Such was the state of America when Sir William Howe returned to England. His brother, Admiral Lord Howe, who was a man of ability, still retained the command of the fleet, although he also wished to return home, and to take no further part in the contest. The rumours of the French war first, and then the arrival of the French fleet on the coast of America,

alone induced him to retain his command.

ARRIVAL OF THE COMMISSIONERS IN AMERICA WITH THE CONCILIATORY BILLS.

Commissioners appointed under Lord North’s conciliatory bills, arrived in the Delaware on the 6th of June. These commissioners were Lord Carlisle, Governor Johnstone, and Mr. Eden, who lost no time in making known their commission. They applied to Washington for a passport for their secretary, Dr. Adam Ferguson, to enable him to lay some overtures of the commission before congress. Washington, however, refused to grant this passport, and he forwarded the letter of the commissioners to congress by the common military post. After deliberating on the communications for some days, congress replied to the king’s commissioners through their president, that the act of parliament, the commission, and the commissioners’ letter all supposed the people of the American states to be still subjects of the King of Great Britain, and were all founded upon an idea of dependence. This was represented as a mistake. The Americans, they said, were a free people, and congress were ready to enter upon the consideration of a treaty of peace and commerce, not inconsistent with treaties they had previously contracted, whenever the King of Great Britain should show a sincere disposition for that purpose; the only proof of which would be an explicit acknowledgment of their independence, and the withdrawal of all the troops and the fleets from the United States. The truth is, the commissioners arrived too late to effect any conciliation. Silas Deane had previously arrived from Paris with the French treaties ratified, and with abundant assurances of assistance and co-operation, and the Americans were thereby confirmed in their resolution to obtain their absolute independence. In addition to his public exertions as a commissioner, Governor Johnstone endeavoured to gain over some of the members of congress and other persons of influence, by opening a private correspondence with them. But this was discovered, and the result was, that his letters were laid before congress, and a resolution was passed to the effect that it was incompatible with the honour of congress to hold any further communication with that commissioner. The commissioners next attempted to separate the people from their leaders by a manifesto declaring pardons to all who should within forty days withdraw from the service of congress, and proffering peace with peculiar privileges to the colonies collectively or separately, which should return to their allegiance to the British monarch. But this was answered by counter manifestoes from congress, and the efforts of the commissioners were rendered signally abortive; and they were compelled to return home as they went. The whole body of colonists were resolute in their desire and purpose of obtaining their independence.

EVACUATION OF PHILADELPHIA BY THE BRITISH, ETC.

At this time it was known that Count d’Estaing was at sea with a considerable land force on board, to aid the Americans. This had doubtless the effect of making congress and the colonists more determined in their opposition to the British government. On the other hand, it had the effect of rendering the British general more cautious. As soon as the prospect of a French war opened on the British cabinet, as a more central situation was desirable for the army, the evacuation of

Philadelphia was contemplated, and as the French troops might arrive soon to the aid of Washington, Sir Henry Clinton, contrary to the wishes of the British officers, who burned with impatience to be led on to the Valley Forge, resolved to withdraw his troops from the capital of Pennsylvania. This was executed about the middle of June, and they were transported across the Delaware without molestation. The march, however, of the troops was encumbered by a long train of the inhabitants of Philadelphia, all royalists, who feared the vengeance cf congress, and their progress was consequently slow. Moreover, the country abounded with rough roads and difficult passes, while the British troops had to mend the bridges in their route which Washington had caused to be broken down. The passes were all occupied by the militia, but these were everywhere driven from their posts without difficulty. These measures were preliminary to a step which Washington contemplated, of crossing the Delaware and falling upon the rear of the retreating enemy. He crossed that river with this intent; but though he hung upon Clinton’s flank and rear, he did not venture to attack him, and carefully selected for himself such ground and such a line of march as prevented his being attacked by the British. Several days passed in this manner, councils of war being in the meantime held to deliberate upon the expediency of bringing on a general engagement. Washington himself was anxious to hazard an action, but of seventeen generals only two besides himself were in favour of hazarding either a general or partial engagement. In a council held on the 24th of June, however, a proposal was carried to strengthen the detachment which had got on the left flank of the British, and 1500 picked men were thrown in the direction specified. At the same time, Washington secretly determined to bring on a more general engagement, in spite of the majority of the council-of-war, if possible. He did this to his own cost on the 28th of June. On that day the British having arrived at a place called Freehold Court-house, near Monmouth, a vigorous attack was made on their baggage by a detachment under General Lee, the deserter, who had been previously exchanged, and was again actively employed in the American service. This attack, however, was expected, and the detachment was bravely repulsed. The British light troops impetuously pursued the fugitives, until they were met and rallied by Washington himself. The pursuers were now in danger, and to prevent their being cut off, Sir Henry Clinton was compelled to maintain his position under a severe cross-fire, after which he withdrew to his former position. His loss in killed and wounded was about three hundred and sixty men, many of whom had expired through excessive heat and fatigue without receiving a wound. The enemy’s loss was still greater, and as little more than half of Clinton’s army was with him, it seems to have convinced Washington that it would be folly to attack the British forces in a general engagement. It is said, indeed, that he lay that night in the midst of his soldiers, ready to renew the contest next morning, had not his opponents thought proper to retire. But it is evident that Washington was aware of the continued retreat of the British, and yet he did not venture to follow a step further. He had expected a triumph and had met with a check, and though he boasted to congress that he would have followed if Clinton had not moved off in silence and secresy, and before he had any idea of his departure, yet he had already determined to hasten to the Hudson by another route, in order to join an army collected by General Gates, and to give up the pursuit! Congress also acted as inconsistently as Washington. They celebrated the

affair of Freehold Court-house as a great and glorious victory, although it must have appeared clear to them that Washington had been checked, if not actually defeated. Clinton reached New York in safety on the 5th of July, where he found Lord Howe with his fleet. Washington took up his position on the borders of the Hudson, where he remained till late in the autumn.

DISGRACE OF GENERAL LEE.

When Washington met General Lee in full retreat, he assailed him with some bitter and reproachful words for his conduct. Suspicions were afterwards thrown out that Lee intended to cause the defeat of the army, for the purpose of disgracing the commander-in-chief. The whole conduct of Lee proves that these suspicions were groundless, and he wrote several letters to Washington in vindication of his character. These letters, however, contained language which placed him at the mercy of Washington, and being found guilty by a court-martial, he was sentenced to suspension from his rank for one year. Although a man of great abilities, and although he had rendered the American cause good service, both in the councils-of-war and in the field, he never, indeed, after this disgrace, attracted honourable notice. Yet he appears rather to have fallen from the effects of envy than from his misconduct, for it is a well-established fact, that Washington himself looked upon his abilities with a jealous eye. It was, in truth, the conduct of Washington towards him in the late affair which had betrayed him into the error which laid him beneath his rival’s feet. Gratitude should have taught Washington to have behaved more generously, for more than once Lee had corrected his rashness, and saved him from ruin. Yet before his failure in his attack on the British troops, Washington had attempted to place the raw and inexperienced Lafayette over his head, and he might have been warned by this, that no opportunity would be lost in securing his downfall.

UNSUCCESSFUL ATTACK BY THE AMERICANS AND FRENCH ON RHODE ISLAND.

Six days after General Clinton arrived at New York, the French fleet, under Count d’Estaign, who had lost many days by putting into the Delaware, appeared before that city. His force consisted of twelve sail of the line, and three or four heavy frigates. He had, indeed, collectively, eight hundred and fifty-four guns to oppose to Howe’s 614, and the weight of his metal and the size of his ships were still greater in proportion even than the number of his guns. It was expected that the count would immediately attack Lord Howe’s squadron, but he lay inactive outside the Hook for eleven days. All this time, the British admiral was preparing for a contest, and the sailors universally burned with impatience to engage the enemy. As a defeat would have been fatal to the troops on shore, Howe wisely forbore to respond to their wishes of attacking the enemy, and at length, on the 22nd of July d’Estaign weighed anchor, and instead of entering Sandy Hook, stood out to sea, and then shaped his course northward to attempt the reduction of Rhode Island. In his passage to America, the French admiral had been pursued by Vice-Admiral Byron whose fleet unfortunately had been dispersed and shattered by storms. The wreck of two or three of these ships joined Lord Howe a few days after d’Estaing had left his anchorage, and when these had been put in sailing and fighting trim, Lord Howe sailed in quest

of the French admiral. General Sullivan had been ordered to pass over from the continent with 10,000 men to attack the British lines at Newport, in which 6000 troops were intrenched, while d'Estaing with the French fleet assailed them on the other side. When near the coast, also, the French admiral was joined by Lafayette with 2000 American troops, and he entered the Sound and prepared to land near Newport. Four English frigates were lying at anchor there, and as the defence of these frigates was impracticable, the crews set fire to them and joined the troops on the island. The French admiral was on the point of landing when Howe hove in sight, he having been hitherto deterged from so doing by a quarrel with General Sullivan as to which of them should hold the supreme command. The appearance of Howe altered the operations of d'Estaing. Being superior in force he resolved to sail out of the harbour and meet the English. Both commanders prepared for battle; but while they were each exerting all their skill to gain the advantages of a position a furious storm arose, which dispersed the hostile fleets over the face of the ocean. Both fleets were greatly damaged, but Howe's fleet suffered least. Subsequently one of his ships fell in with the Languedoc, d'Estaign's flag-ship, and another with the Tonnant, both of superior size, and would have captured them had they not been rescued by other portions of the scattered fleet, Another isolated battle afterwards occurred between two ships, in which the French lost seventy killed and wounded, while the English lost only one man killed and had fifteen wounded. No captures, however, were made on either side, and while Howe returned to New York for the purpose of refitting his ships, d'Estaing came to anchor near Rhode Island. By this time, Sullivan, contrary to the wishes of Lafayette, had landed on the island with his 10,000 men, and had commenced the siege of Newport. He also had suffered by the storm, for it had blown down all his tents, damaged his ammunition, and caused the death of several of his soldiers. When it abated, Sullivan renewed the siege; but though the garrison of Newport amounted only to about 1200 men, he only ventured to proceed by regular approaches. Sullivan was not much encouraged by the reappearance of the French Admiral, and when d'Estaing announced his intention of retiring to Boston to refit, the besiegers lost all hope, and numbers of them deserted and crossed over to Connecticut. It was in vain that Sullivan remonstrated with the French admiral: he had received orders from his government to be very careful of his fleet, and having reasons to believe that Howe had received reinforcements, he adhered to his resolution of getting to a place of safety. Sullivan then implored him to leave the French forces he had on board, and the bearer of his letter was also charged with a protest, written in angry terms, and complaining of the desertion of the French. This protest was signed by all the general officers in Rhode Island, except Lafayette; but the French admiral considered it as insulting, and sailed away for Boston in an angry mood. Sullivan then abandoned the siege of Newport, and retired to the north of the island. He was pursued by Sir Robert Pigott, commander of the garrison of Newport, who brought him to battle on the 29th of August. The loss was about equal, but Sullivan found himself compelled to evacuate the island in haste. He retired just in time, for on the following day a reinforcement, commanded by Sir Henry Clinton, arrived at Rhode Island. The attempt on the island, therefore, signally failed, and Sullivan laid the blame of the failure on the French admiral. He even published some letters reflecting very severely on the conduct of d'Estaing, and asserted that the

Americans had been basely abandoned by their new allies. The public feeling was so strong against him, that when he arrived at Boston he met with a rude reception. The French were everywhere hooted by the Bostonians, and in a scuffle between them a French officer was killed. The French were also denounced by some of the hottest members in congress, and even the alliance with the French court was reprobated and reviled in bitter terms. About the same time, also, riots happened at Charlestown, in South Carolina, between American and French seamen, in which several lives were lost on both sides. But, at the same time that the Americans exhibited this feeling toward the French, they could not deny that the French alliance was still useful to them; and hence they had no thought of coming to an open rupture with their government.

OPERATIONS OF THE BRITISH ARMY.

After relieving Rhode Island, General Clinton returned to New York. On his voyage thither he detached Major-General Grey to Buzzard Bay, in Massachusets, a famous rendezvous of American privateers; and that officer destroyed seventy sail of ships there, with many store-houses and wharfs, and a fort mounting eleven pieces of heavy cannon. Grey then proceeded to an island called Martha’s Vineyard, where he took or destroyed several more vessels, destroyed a salt-work, and obliged the inhabitants to deliver up their arms, and furnish him with 10,000 sheep and 3000 oxen. With these supplies he returned to New York, and shortly after he made an incursion into New Jersey, where he surrounded an American detachment in the dead of the night, killed most of them, and took the rest, with Colonel Bajdor, their commander, prisoners. About the same time a small squadron, under the direction, of Captain Collins, with some troops, under the command of Captain Ferguson, destroyed a nest of privateers at Egg Harbour, and cut to pieces a part of the legion of the Polish Count Pulawski. On the return of this squadron to New York, the British army was placed in winter-quarters, and Washington moved his troops to Middlebrook, in New Jersey, where they hutted, as in Valley Forge.

ATTACK OF THE SAVAGES ON THE SETTLEMENT OF WYOMING, ETC.

The beautiful district of Wyoming was at this time dotted with eight new townships, each containing a territory of about five miles on both sides of the river Susquehanna. Poets and travellers have fondly fancied that it was inhabited by a peaceful population, in unison with the lovely scenery of the district. Such conceptions, however, are the very reverse of the fact. Greece was as the garden of Eden, and yet fierce warriors inhabited its soil. And so it was with Wyoming. By its geographical position the district seemed properly to belong to Pennsylvania, but the colony of Connecticut claimed it in virtue of an old grant; and it was first settled by the population of that colony. The Pennsylvanians, however, set up a counter claim, and, after many long and angry debates the two colonies went to war about the disputed district. These hostilities lasted till after the breaking out of the war with England; but a near approach of danger caused the belligerents to forego their quarrel. Several Pennsylvanian families by this time had obtained a settlement in Wyoming, and these were all royalists. So also were some of the Connecticut settlers, but there, as elsewhere, the revolutionary party gained the ascendency. They used

their power tyrannically, and faction and feuds raged through all the townships. “Fair Wyoming,” by the bad passions of its inhabitants, was converted into a very hell. In every house there was division of sentiment, and the sources of domestic happiness were all poisoned by the bitter waters of strife. At length the revolutionary party completely got the upper hand. Oppressed and persecuted indeed, the royalists for the most part left their homes and became fugitives in the back-settlements. After this the revolutionists sent a large reinforcement to serve in the army of congress. By so doing, however, they laid themselves open to attack from the savages and their fugitive brethren. Warnings of their danger were repeatedly given them; but although they built some little forts in order to protect the district, they had but indifferent garrisons to put into them, and it was easy to foresee that sooner or later they would reap the fruit of their conduct towards their brethren. They appear to have conceived that they were in no danger, and especially as some Indian tribes had promised them protection; but their dream of security was suddenly disturbed by the appearance of eight hundred men on the bank of the Susquehanna. These were in part savages and in part Anglo-Americans, disguised as Indian warriors. Some of them were in fact the outcasts of Wyoming, who burned to revenge their wrongs. They were led by Colonel Butler, the same who had offered General Carleton the service of the Indians in Canada four years before, On the appearance of this force there were only sixty American regulars in the district, and these were commanded by Colonel Zebulon Butler, said to be of the same family as the officer that was leading on the savages and exiles. There were, however, about three hundred militiamen under Colonel Dennison, and these with the regulars prepared to oppose the invaders. The Indians and their allies entered the valley near its northern boundary; and they quickly took one of the forts called Wintermoots, which they burned. The militiamen and regulars assembled at Forty-fort, a stronger place on the west side of the Susquehanna, and four miles below the camp of the invaders. Had Colonel Zebulon Butler remained in this fort he might have stemmed the onward progress of the invaders till assistance could have been obtained from Washington. Zebulon Butler, however, resolved to leave the fort and encounter the enemy. He found them posted in a plain, partially covered with pine trees, dwarf oaks, and underwood. He moved towards them in single column, but as he was passing along he was saluted by the fire of Indians, who lay concealed behind bushes and trees. Notwithstanding, Zebulon Butler formed into line and prepared for battle. His left flank, which was composed of militiamen, was quickly turned by a body of Indians, who poured a destructive fire on his rear, and he was compelled to command a retreat. All fled precipitately, but the enemy was in their front, while on one side was a marsh and a mountain, and the other a deep river. A dreadful scene ensued. Throwing away their rifles and muskets, the Indians and their enraged allies fell upon the fugitives with their tomahawks, and heeded not the loud cry which was raised for quarter and mercy. About sixty men, with Colonels Zebulon Butler and Dennison, escaped by swimming across the river, hiding in the marsh, or climbing the mountain; but the rest, amounting to nearly four hundred men, were butchered on the spot. Zebulon Butler fled from Wyoming with his few surviving men, and Dennison proposed terms of capitulation, which the enemy granted to the inhabitants. These unfortunate people, however, dreading the vengeance of their white brethren, generally, abandoned their homes, and in their

turn became outcasts and wanderers. The invaders then collected all the property of the district worth carriage; burned all the houses and levelled the forts; and then returned to the wilderness from whence they came. The troops of congress shortly after made some retaliation. Washington was at the very time of the invasion sending some troops to the defence of Wyoming, and these being reinforced by a great many riflemen of Morgan’s corps, they rushed upon the Indian settlements, burned their villages, exterminated all they could discover, and compelled the rest to retire further from the frontiers of the colonies. Those who escaped, however, awaited another opportunity for revenge.

ARRIVAL OF THE FRENCH ENVOY AT PHILADELPHIA.

After Sir Henry Clinton had evacuated Philadelphia, congress returned to that city. In the course of the autumn M. Gérard arrived there as envoy to the United States from the court of France. About the same time instructions were prepared and sent to Dr. Franklin, as minister plenipotentiary at the court of Versailles. The French minister and suite received very flattering attention from the majority of the members of congress, but beyond this they had reason for complaint. By the people they were looked upon with suspicion, and some considered them in the light of enemies. There was, indeed, a significant distinction drawn at this time between parties in America, which exists to this day: the moderates were called the English party, and the ultra-revolutionists, the French party. But it was soon found that even the French party could not always agree in the plans and schemes of the French ambassador and his government, and that, therefore, the alliance, though solemnly ratified by treaty, was not cemented by reciprocal affection.

MOVEMENTS OF THE BRITISH AND FRENCH FLEETS.

After refitting his ships Lord Howe went to Boston, with design to attack the French admiral in that water. He found the anchorage, however, so effectually protected by batteries, that he was compelled to forego this design, and return to New York. Soon after he received leave of absence, and he resigned the command of his squadron to Rear-admiral Gambier. Howe then proceeded to Rhode Island, where he met with Vice-admiral Byron, to whom he gave up the command of the American station as commander-in-chief, and then set sail for England. After his departure, Byron, with a part of his force, went back to Boston to look after the French; but his ships were driven off the coast by a violent hurricane, and he was obliged to seek a port in order to refit. While thus situated the French admiral put out to sea, in order to undertake operations for conquests in the West India Islands. On the same day, however, that he stole out of the harbour of Boston, Commodore Hotham sailed from Sandy Hook to escort Major-general Grant, with 5000 men, to protect these islands, and he joined Admiral Barrington at Barbadoes, on the 10th of December.

CAPTURE OF DOMINICA BY THE FRENCH.

It was not solely with a view of supporting the Americans, and vindicating the wrongs of humanity, that the French entered upon the arena of strife. On the contrary, the principal aim of the French cabinet was aggrandisement. A scheme had been devised for seizing all the sugar-plantations of Great Britain. And some time

before d’Estaing set sail for the West Indies the French had commenced putting this scheme into effect. On the 7th of September the Marquis de Bouille, governor-general of Martinique landed with about 2000 men on our island of Dominica, and proceeded to attack the different batteries and forts by land, while French and American frigates and privateers attacked them by sea. There were abundance of artillery and stores in Dominica, but unfortunately there were not sufficient men to defend the island; and, after a gallant defence of some outworks, Lieutenant-governor Stewart found himself compelled to capitulate:—the island fell into the hands of the French.

CAPTURE OF ST. LUCIE BY THE BRITISH.

The British commanders, on arriving at Barbadoes, being informed of the loss of Dominica, resolved to take another island from the French. Without suffering the troops to land, therefore, Major-general Grant proceeded to St. Lucie, attended by the joint squadrons of Hotham and Barrington. Five British regiments, with all the grenadiers and light-infantry, under the command of Brigadier-general Medows, first landed, and being ably seconded by Major Harris, he drove the French commandant, the Chevalier de Miccud, from a strong position which he had taken on the heights at the end of an inlet, called Grand Cul de Sac. While this was doing, Brigadier-general Prescott landed, with five other regiments, to secure the whole of the bay, and to establish posts in order to preserve a communication with Medows. General Medows pushed forward, and took possession of the important post of the Vigie, which commands the north side of the Carénage harbour; while Brigadier-general Sir Henry Calder occupied other posts upon the mountains which commanded the south side of the Grand Cul de Sac, and Major-general Grant lay on the heights, called Morne Fortune. The British troops were thus situate when d’Estaing arrived off the island, in order to relieve it. On discovering his approach, the British admirals immediately collected all their ships into the Grand Cul de Sac, and then formed a line close and compact right across the entrance of the bay. The fleet under the French admiral was by far the most powerful; but he was thrice defeated in his attacks upon the British squadron, and he then landed 5000 picked troops in a bay, between Gros Islet and the Carénage Bay. D’Estaing resolved, in the first instance, to direct his entire force against Medows, who was cut off, by his movement, from all support from the other divisions of the British. General Medows had only 1,300 men, with two twelve-pounders and four six-pounders, to defend his position; but his force chiefly consisted of veterans, and it was in vain that d’Estaing led his forces against, them. Three several charges were made upon them; but the French were repulsed, with the loss of four hundred men killed, and more than 1000 wounded. He was compelled to leave the island; and as his fleet disappeared, the Chevalier de Micoud descended from some heights to which he had retired, came into the British camp with the principal inhabitants, and signed a capitulation with General Grant, who granted such favourable terms as won for him the gratitude of the enemy. Thus, while the British lost Dominica, they won St. Lucie.

{GEORGE III. 1778–1779}

RE-CAPTURE OF THE ISLANDS OF ST. PIERRE AND MIQUELON.

Earlier in the year, in consequence of their aggression on the coast of America, the French were deprived of their privilege of fishing on the banks of Newfoundland. The little islands of St. Pierre and Miquelon had been ceded to them at the peace of 1763, but they were now recaptured by the British, and the garrisons conveyed to France.

FRENCH PLANS REGARDING CANADA COUNTERACTED BY WASHINGTON.

The ambitious views of the French cabinet were not confined to the West Indies. This was made manifest to the Americans before d'Estaing set sail from Boston. He published a proclamation to the Canadians, exhorting them to return to their former allegiance: and at the same time Washington, through the ascendency of a French party in congress, was urged to undertake the reduction of that province in conjunction with a French force. He was directed by the committee for foreign affairs to communicate with Lafayette on the subject; but instead of this, he wrote a long letter to congress, urging, in a forcible manner, the impolicy of the measure; and, in consequence of his representations, the plan proposed by congress for the emancipation of Canada, in co-operation with an army from France, was deferred "until circumstances rendered the co-operation of the United States more certain, practicable, and effectual." The truth is, the Americans, enlightened by Washington, saw through the designs of France, and they had no idea of thus aggrandising their allies. Moreover, they found no encouragement in Canada; for, notwithstanding the proclamation of the French admiral, the Canadians were determined to remain quiet under the British government, being fully satisfied with its mild rule, and confident that it was able to protect them in their obedience. Soon after this plan failed, Lafayette returned to France, as he himself reports, to offer his sword to his own sovereign, who was now engaged as a principal in the war, and to induce the French court to send more effectual succours to the aid of congress, without any reference to the conquest of Canada. It is well known, however, that both the Marquis and his court cast a longing eye upon Canada; and it cannot be doubted but that its conquest was the chief end which he had in view when he recommended an increase of French troops in America. On his arrival in France, Lafayette was enthusiastically welcomed by the war party; and although the French monarch pretended, at first, to be offended with him for joining the cause of America, before he himself had espoused it, he was almost immediately honoured with the command of the dragoons of the king's guard.

CAPTURE OF SAVANNAH BY THE BRITISH.

During this year, soon after the return of the commissioners to England, an important operation took place on the side of Georgia, and the complete success of which gave a hope that the war, if transferred to the south, might prove more successful than it had hitherto been. Some of the southern colonies were in a state of utter confusion—royalists being arrayed against revolutionists, and province against province. Thus, between the people of East Florida, who remained under the British government, and the people of Georgia, who had joined the cause of congress, there existed an irreconcilable hatred. These provinces had but recently been at war with

each other, when Georgia was successfully invaded by the British. Sir Henry Clinton despatched Colonel Campbell thither with 3500 men, by sea, under convoy of Admiral Parker, and on his arrival his first object was the reduction of the city of Savannah, the capital of Georgia, which was defended by the American General Robert How. The whole country between Savannah and the sea was impassable to troops, being low, marshy, and intersected by creeks and artificial watercourses. The city stood on the southern bank of the Savannah River, about fifteen miles from the sea; and Parker therefore conveyed the troops up that river, and after surmounting some difficulties he succeeded in landing them at a plantation about three miles below the city. Some Highlanders, commanded by a Cameron, first moved from the river bank along a narrow causeway, with some high ground at the end of it where the Americans were posted. As they approached the Americans opened a fire upon them, and Cameron and two of his company were slain. The loss of their leader, however, urged the clansmen on to desperate enterprise. They rushed upon the enemy with a fierce cry for revenge, and drove them back into some woods nearer the town. When Campbell arrived on the scene of action he found the American general posted outside the town, having swamps, woods, trenches, and deep rice-fields all around him. He discovered a private path leading through the swamp, which covered the enemy's right flank, and having sent some of his Highlanders' light infantry and New York volunteers round by that path, he surprised the enemy in the rear. They fled for their lives through the town of Savannah, four hundred and fifty of them being captured in their flight; and the town and fort, with an abundance of stores, became the prize of the conquerors. In a few days the remnant of How's army was driven across the Savannah River into South Carolina, and then the inhabitants flocked to Colonel Campbell to take the oath of allegiance to the British monarch. The provincials were greatly conciliated by his lenity and moderation; and even some of the hot preachers, who had excited the Georgians into insurrection and republicanism, now turned royalists. The whole of Georgia was in the hands of the royalists except the town of Sunbury, and this place was soon after reduced by General Prevost, who was sent to Savannah to take the chief command. He was joined here by many suffering royalists from South Carolina and Virginia, while others repaired to head-quarters at New York.

MEETING OF PARLIAMENT.

Parliament met on the 25th of November. Little notice was taken of the operations in America; but his majesty bitterly complained of the unprovoked hostility of the court of France. His majesty also alluded to preparations going on in Spain, and remarked that however friendly and seemingly sincere the professions made to us might be, it was a subject that must gain the attention of the house. The king noticed the complete failure of the commissioners and of the conciliatory measures passed during the last sitting of parliament, and urged the necessity of the most active exertions, in order to vindicate and maintain the honour of the crown and the interests of the people. He concluded with saying, that, according to the powers vested in him, he had called out the militia to assist in the defence of the country, and that he had with high satisfaction witnessed the public spirit, ardour, and love of their country which animated all classes of his subjects; and which could not fail of

ensuring safety at home and procuring respect abroad.

In both houses the address of his majesty was opposed. In the lords it was condemned in toto, with the king’s speech, and the opposition proposed putting an absolute negative upon the whole. It was argued in support of this proposition, that ministers were proceeding upon false principles, upheld by obstinacy, folly, and error, and tending to inevitable ruin; that new men and new measures must be adopted before we could hope for success in war, or honour and security in peace; that as ministers had shown themselves incompetent to the management of the war when they only had the Americans to contend with, it was not to be expected that they would be able to contend with the united arms of France and America; and that they would be still less able if Spain joined the contest. Ministers and their supporters argued that it would be monstrous to refuse addressing, especially as the speech dwelt solely on the dangers of the kingdom from the perfidy of France; and as the address was a simple declaration of supporting his majesty against the machinations of the French government. The address was carried by a majority of sixty-seven against thirty-five. In the commons the opposition moved an amendment “to assure his majesty that from zeal and affection that house was ready to give the most ample support to such measures as might be thought necessary for the defence of those kingdoms, or for frustrating the designs of that restless power which had so often disturbed the peace of Europe; but that they thought it their duty to inquire by what fatal councils and unhappy systems of policy this country had been reduced from that splendid situation which, in the early part or his majesty’s reign, made her the envy of all Europe, to her present dangerous state, which had of late called forth our utmost exertions without any adequate benefit.” The speakers in opposition, who supported this amendment, chiefly dwelt on the numerous blunders of administration in the management of the war; attributing every failure to their measures, and every successful operation to circumstances over which they had no control. It was argued, indeed, that ministers had only made such preparations as would ensure defeats; and that it was marvellous we were not involved in indiscriminate ruin and disgrace. The blunders of ministers were both numerous and palpable, but it cannot be denied that they were mightily magnified by the opposition, who looked at their every movement with a jealous and jaundiced eye. The amendment was rejected by a majority of two hundred and twenty-six against one hundred and seven.

AFFAIR RESPECTING ADMIRAL KEPPEL AND SIR HUGH PALLISER.

During the debate on the amendment in the commons, Charles Fox introduced the subject of the operations of the fleet commanded by Keppel and Palliser, and attributed all the blame of its failure to the conduct of ministers and the admiralty, who, he said, had not sent a sufficient fleet out, and that it was sent to sea too late to effect the objects for which it was fitted out. This subject was brought prominently before the house of commons on the 2nd of December. Mr. Temple Luttrel said, that the whole of that transaction demanded a particular and close inquiry, and that the two admirals, who were both in the house, were bound to give information for the sake of their own honour, and also for the sake of public tranquillity. Thus challenged, Keppel, who was a whig, stood up to defend his own conduct. He could

not consider, he remarked, that the British flag had been tarnished in his hands, or that the affair off Ushant was in any way disgraceful. He impeached no man; and was persuaded that Sir Hugh Palliser manifested no want of courage. He expressed a hope that he should not be compelled to answer any questions relative to the action or to individuals, at the same time asserting that he was ready to explain his own conduct in that house or elsewhere, Nothing, he said, was left untried to bring the French to a decisive action. He then adverted to Palliser's publication in the newspapers. He was surprised, he said, that he should have appealed to the public when no accusation was made against him, and have endeavoured to render his superior in command unpopular and odious; and he declared that he would never again embark in a fleet with an officer who could conduct himself in a manner so fatal to all obedience and discipline. Sir Hugh Palliser, who was a Tory, then rose and said, that it was his interest to obtain inquiry, and that he was as eager for it as his superior officer. He censured Keppel's reserve, and challenged him to deliver his opinions without disguise, that he might be able to give a full answer. He complained of the aspersions thrown upon his character by the newspapers, and said that while justice was rendered to his courage, insinuations were thrown out that he might have neglected or disobeyed the signals of his superior. He concluded by asserting that he had vainly sought an explanation from Keppel, before appealing to the public with a detail of facts, by which he would stand or fall; by denying that he had refused to obey signals; and by declaring that he feared neither a parliamentary inquiry nor a public trial. In reply, Admiral Keppel asserted that one of his signals was not obeyed though it was flying for five hours, but that he would not charge Vice-admiral Palliser with disobedience, as the condition of his ships might, as represented by him, have prevented his coming up. Palliser rejoined by charging Keppel with having neglected to arrange his ships in such a manner as to ensure a general engagement; with having neglected to tack and double on the French with his van and centre, after these had passed the enemy's rear, whereby he, the vice-admiral, was exposed to be cut off; with having permitted the enemy to rally, and to claim a victory by standing after the English ships; and with having, finally, led the British fleet in an opposite direction, instead of pursuing the enemy. The conversation here dropped, but the charges made by Sir Hugh Palliser were afterwards repeated to the Admiralty; and this led to the trial of both the accuser and the accused before a court-martial.

CHAPTER X.

{GEORGE III. 1779–1780}

Trial of Admiral Keppel and Vice-admiral Palliser..... Attacks on Lord Sandwich..... Investigation respecting the Conduct of General and Lord Howe..... Relief to Protestant Dissenters..... Debates on the Trade of Ireland..... War with Spain..... Debates on the Militia Bill..... Bill for the Impressment of Seamen..... Parliament prorogued..... The Causes of the Rupture with Spain..... Spanish Attempt upon Gibraltar..... French and English Fleets in the Channel..... Affairs in the West Indies..... Operations in Georgia..... Ineffectual Attempt of the Americans to reduce

Savannah..... British Incursions into Virginia..... Capture of Stony Point and Verplanks..... British Expedition against Connecticut..... Stony Point recaptured, but deserted at the Approach of the British..... British Garrison surprised at Paulus Hook..... American Disaster at Penobscot..... American Retaliation on the Indians, &c. Spanish Incursions..... Action between Paul Jones and Captain Pearson..... Changes in the Ministry..... Meeting of Parliament..... Lord Shelburne attacks Ministers in the case of Ireland..... Lord Ossory's Attack on Ministers respecting Ireland..... Lord Worth's Proposition for the Relief of Ireland..... Debates on Economical Reform.

{A.D. 1779}

TRIAL OF ADMIRAL KEPPEL AND VICE-ADMIRAL PALLISER.

The trial of Admiral Keppel commenced on the 7th of January, at the governor's house, Portsmouth. It lasted thirty-two days, and the unanimous sentence of the court-martial was:—"That it was their opinion the charge against Admiral Keppel was malicious and ill-founded; it having appeared that so far from having by misconduct or neglect of duty lost an opportunity of rendering essential service to the state, and therefore tarnished the honour of the British navy, he had behaved as became a judicious, brave, and experienced officer." The acquittal of Keppel was followed by illuminations and other demonstrations of joy on the part of the public, with whom he was in favour; and he also received the thanks of the city and the two houses of parliament. On the other hand, the house of Sir Hugh Palliser was broken open by a mob at midnight, and the whole of the furniture either destroyed or thrown out of the window, while effigies of the vice-admiral were carried about suspended by the neck and afterwards burnt. Work for the glaziers was also made by the destruction of the windows of the Admiralty, and of the houses of Lords George Germaine and North. The mob even took the great gate of the Admiralty from its hinges, and having collected all the sedan chairs in the neighbourhood made a great bonfire in the court-yard. Sixteen of the mob were afterwards captured by the soldiers, and the rest were dispersed. A day or two after this, as the acquittal of Keppel seemed to cast a stigma on the character of Sir Hugh Palliser he demanded a court-martial on himself; first giving up his seat in parliament and all his offices except that of vice-admiral. His trial was held on board the "Sandwich," in Portsmouth harbour and after the lapse of twenty-one days the sentence of the court was:—"That, though his conduct and behaviour in battle had been in many respects highly exemplary and meritorious; they, at the same time, could not help thinking it was incumbent upon him to have made known to his commander-in-chief the disabled state of his ship, to which he attributed his not joining; but that, notwithstanding his omission in this particular, they were of opinion that he was not in any other respect chargeable with misconduct or misbehaviour, and that, therefore, they fully acquitted him." Such was the termination of this ill-judged contest, which was rather a contest between the two parties of Whig and Tory than for personal honour and integrity of conduct. Though both were acquitted, their reputations were injured by their trials, for neither of them was ever afterwards employed in active service.

ATTACKS ON LORD SANDWICH.

That the trials of Keppel and Palliser were essentially party struggles is proved by after proceedings in both houses of parliament. After the Christmas recess, Mr. Fox moved a vote of censure upon Lord Sandwich for sending Admiral Keppel to sea in the first instance with only twenty ships of the line, and four frigates, at a time when a French fleet, consisting, as there was reason to believe, of thirty-two ships of the line, and certainly of twenty-seven with a great number of frigates, was at Brest, and ready to put to sea; thereby hazarding the safety of the kingdom. Fox also announced his intention of moving an address for the removal of the first lord of the admiralty; asserting that there were facts existing which would warrant his impeachment by the house. Keppel, who had determined to resign his command of the fleet, joined in this attack upon Sandwich, by declaring that on his first taking the command, the fleet was in no very good condition; that afterwards the admiralty-board had made some exertions, but even then had sent him to sea too weak; that he believed the French fleet was as strong as was represented in the papers which he found on board the frigates he had captured; and that, upon that conviction, he was for the first time obliged to turn his back upon the enemy. Lords North and Mulgrave defended Sandwich and the admiralty-board; imputing some blame to Keppel, and the motion was negatived by two hundred and four against one hundred and seventy. Subsequently, Mr. Fox moved that the state of the navy at the breaking out of the war was inadequate to the exigencies of the service. In his speech, Fox observed, that nothing but good fortune had saved the country from invasion and destruction; but Lord Mulgrave, in reply, said, that all the “good fortune” had been on the side of France—that nothing but “good fortune” had saved d’Orvilliers from Keppel, and d’Estaing from Lord Howe. The latter admiral, who was now in the house, showed that he was scarcely in a better temper with the administration than was Keppel. He declared that he had been deceived in accepting the command in America; that he had been ill-used while he held that command; and that he would never again accept active service under the existing ministry. On this occasion, Fox’s motion was lost, but a few days after he moved that the omission to reinforce Lord Howe in America before the month of June, and the not sending a fleet to the Mediterranean, were instances of gross misconduct and neglect. Fox was again outvoted, yet on the 19th of April he made his promised motion for dismissing Lord Sandwich from his majesty’s presence and councils for ever. This motion was likewise negatived, and a similar motion, made a few days after in the upper house by the Earl of Bristol, shared the same fate. Other motions hostile to Sandwich were made in both houses, but they were all lost by majorities of nearly two to one. But even these large majorities exhibited the waning influence and popularity of the administration; for in the earlier days of Lord North’s government the majorities were usually four to one.

INVESTIGATION RESPECTING THE CONDUCT OF GENERAL AND LORD HOWE.

The managers of the war-office were doomed to similar attacks as those of the admiralty. Early in the session General Burgoyne imputing his own misfortune and the failures of all other commanders, whether by land or sea, to the administration, had moved that all the letters written by himself and other commanders to government since the convention of Saratoga, should be laid before the house. Lord North readily granted these papers, and shortly after Sir William Howe, who was now

in the house of commons, as well as his brother the admiral, made a similar motion for copies of all letters that had passed during his command between him and the secretary of state for America. It was only against Lord George Germaine that Howe wished to impute blame, and him he charged with interfering on all occasions with the management of the army in America; and of imposing restraints and schemes of his own, which were conceived in utter ignorance of the country which was the scene of the war. These papers were, also, willingly granted, and Lord North further consented that the house should go into committee for inquiring into the whole conduct of the American war. At the same time, an application was made to the house of lords, to permit the attendance of Earl Cornwallis, as a material witness. After this, however, Lord North endeavoured to put a stop to this inquiry, by asserting that Sir William Howe's character was fully cleared by the letters produced, and that government approved in the warmest manner of his services. But this attempt was attended with great odium, and the examination of witnesses was proceeded with. This examination lasted for two months, and the officers examined were, Lord Cornwallis, Major-general Grey, Sir Andrew Snape Ham-mon, Major Montresor, and Sir George Osborne, whose evidence went to establish the facts that the force sent to America was not equal to the task of subjugating America; that the colonists were almost unanimous in their enmity and resistance to Great Britain; that the nature of the country was beyond all others difficult and impracticable for military operations; and that there was no fairer prospect of success in any future attempt at conquest, than in those which had already been made. On the other hand, Major-general Robertson, and Mr. Galloway, a member of congress who had turned royalist, gave contradictory evidence on all these points, and the latter was severe in his censures on the military conduct of Sir William Howe. At the request of Howe, this witness was directed to attend again for cross-examination; but, on the day appointed, which was the 29th of June, the general not being in the house, advantage was taken of this circumstance to dissolve the committee, and thus no resolution was passed upon this subject. Burgoyne was somewhat more fortunate than Howe, as witnesses were heard in his favour and none against him. His witnesses were Sir Guy Carleton, the Earls of Balcarras and Harrington, Major Forbes, and Captain Bloomfield, who deposed that no general could be braver or more beloved by his army. At the same time they could not make out a case of good generalship in Burgoyne's crossing the Hudson, after the expedition to Bennington, or even give a good colour to that expedition, so that their only evidence went to show that which all men knew; namely, that Burgoyne was brave, persevering, and humane, and that in advancing to and staying so long at Saratoga, he had acted according to the best of his judgment. In the course of the examination, some of the witnesses extolled the bravery of the Americans in action; but it was also shown that Gates's army were nearly six times as numerous as that of Burgoyne's, and that the latter were half-famished, so that it did not require any extraordinary bravery to accomplish a victory other them.

RELIEF TO PROTESTANT DISSENTERS.

The spirit of toleration which displayed itself during the last session in favour of Roman Catholics, was again exerted in the present session on behalf of Protestant Dissenting ministers and schoolmasters. A bill to relieve them from some painful and

absurd restrictions, was carried with great facility.

DEBATES ON THE TRADE OF IRELAND.

During the month of January, Lord Nugent, after drawing a forcible picture of the distress which existed in Ireland, gave notice of his intention to move for the establishment of a cotton-manufactory in Ireland, with a power of exportation to Great Britain, and a free trade to America, Africa, and the West Indies. Subsequently a committee was formed to consider the acts of parliament relating to the importation of sugars into Ireland. The intended relief, however, was as usual counteracted by commercial jealousy in England, and all that was done by the commons was to pass two acts, for the growth of tobacco and hemp, and the manufacture of linen in Ireland, and to make a pecuniary grant, in consequence of a message from the throne. But this boon was not sufficient to satisfy the desires of the Irish people, and possibly had it been a hundredfold greater, it would not have been deemed sufficient. It has always been the fate of that unhappy country to be disturbed by restless spirits—by men who, while they profess to seek the good of the country, seek only their own self-interests. On this occasion, many self-styled “patriots” resolved to follow the example of the colonists, and a non-importation agreement was set on foot in Dublin, Cork, Kilkenny, and other places; the subscribers pledging themselves neither to import nor to use any British goods which could be manufactured in Ireland, till the Irish trade was freed from its shackles. In the midst of this ferment, as rumours were afloat of a meditated invasion by France, and Ireland was drained of its troops for the American war, the maritime towns demanded protection. Government was told by the lord-lieutenant, that the exhausted state of the public revenues rendered it impracticable to embody a militia, whence the people were given to understand that they might take measures to protect themselves. This was an ill-omened step for ministers to take, when the people of Ireland were everywhere displaying the feelings of rebellion. By it the serpent’s teeth were sown, and they sprang up armed men. The Irish obeyed the call with alacrity. Volunteers were embodied, equipped, and disciplined at private expense, on every hand, and Ireland soon exhibited the animating spectacle of a nation in arms. Ministers appear to have been very early convinced of their error; for when they saw these armed associations in their full strength, they, with the people of England at large, prognosticated insurrection and civil war. Still there was little or no disposition displayed on the part of ministers to disarm the hostility of the Irish people by redress of grievances. After the discussion of Irish affairs had ceased in the commons, the subject was introduced in the Lords by the Marquess of Rockingham, who moved an address for documents which might enable parliament to pursue measures for promoting the common strength, wealth, and commerce of both nations. The marquess, who was well acquainted with the state of Ireland, took a severe review of the revenue, trade, and government, since the year 1755; and bitterly inveighed against ministers on the subject of the military associations. The necessity for these associations, he said, should have been prevented, or the people should have been legally commissioned to take up arms under officers named by the sovereign—the men who had taken up arms to repel invasion, might soon think of employing them in resisting injustice and oppression. To prevent such a consummation, in conclusion, he urged the necessity of

redressing the grievances, and of adopting some remedy to the deplorable distresses under which the Irish people were groaning. The Marquess of Rockingham was warmly supported by the Earl of Shelburne; and the only arguments urged against the address by ministers were, the late period of the session, and the necessity of proceeding with caution, and upon minute inquiry and investigation. The result was that there was a kind of compromise between the Marquess of Rockingham and the Earl of Gower, president of the council—the latter pledging himself that a proper plan for the relief of Ireland should be concocted by ministers during the recess, and be ready to be laid before parliament at the opening of the next session. Ireland, therefore, for the present, was obliged to put up with a promise.

WAR WITH SPAIN.

On the 15th of June Mr. Thomas Townshend moved for an address, praying his majesty not to prorogue parliament, until the inquiry into the conduct of affairs in America should be completed. This motion was negatived, but, on the next day, Lord North gave some information which necessarily prolonged the session. He acquainted the house that the Spanish ambassador, after delivering a hostile manifesto to the secretary of state, had suddenly quitted London. This manifesto, North said, together with a message from the king, would be laid before parliament on the morrow. On the 17th, therefore, the message and the manifesto were introduced. In the message, his majesty declared, in the most solemn manner, that he had done nothing to provoke the court of Spain; that his desire to preserve peace with that court was uniform and sincere; and that his conduct towards that power had been guided by the principles of good faith, honour, and justice. He was the more surprised, he said, at the declaration of Spain, as some of the grievances enumerated in that paper had never come to his knowledge, and as those which had been made known to him had been treated with the utmost attention, and put into a course of inquiry and redress. His majesty’s message concluded by expressing the firmest confidence in the zeal and public spirit of parliament, and the power and resources of the nation. His majesty’s declarations concerning his conduct towards Spain were fully borne out by the manifesto, which was a loose rigmarole, in which scarcely anything else was clear than that war with Great Britain was fully resolved upon. The opposition in both houses took credit to themselves for having prognosticated, in the spirit of true prophets, a war with Spain, and taunted ministers with folly and blindness in imagining that such an event would not take place. Both houses, however, were unanimous in their indignation against Spain, and in their determination of supporting the war against the Bourbons. Addresses to this effect were agreed to; but Lord John Cavendish moved for another address, to be presented at the same time, praying that his majesty would give immediate orders for the collecting of his fleets and armies, and to exert the whole national force against the House of Bourbon. As this motion involved the withdrawal of the troops from America, ministers opposed it, and the secretary at war having moved an adjournment, it was immediately carried by two to one. In the lords, an amendment to the address, moved by the protesting Earl of Abingdon, was also rejected by a large majority; as was also a motion made by the Duke of Richmond, similar in its nature to that made in the Commons by Lord John Cavendish.

DEBATES ON THE MILITIA BILL.

On the 21st of June Lord North proposed that the number of the militia should be doubled, and that individuals should be authorised to raise loyal corps to assist in the defence of the kingdom. This was agreed to in the commons; but in the lords the clause enabling the king to double the militia was rejected, thereby leaving the bill a mere skeleton. When it was brought back to the commons thus mutilated, Lord North was taunted by the opposition with having at length, after spreading the spirit of disunion and discord on every hand, seen it enter into the very cabinet itself. In reply, North, with wonderful equanimity of temper, observed, that he could not agree in their lordships' judgment in considering his proposition impracticable: that his own experience as lord-lieutenant of a county induced him to believe that the militia could easily be doubled; but that his experience could not control the opinions of the other house, where there were so many lord-lieutenants of counties. However, he said, he accepted the power of augmenting the home force as crumbs falling from their lordships' table. A debate subsequently occurred on the question which was mooted by a member of opposition, as to whether or no the Militia Bill was a money-bill. It was insisted by some that it was such to all intents and purposes; that no amendment of the lords could be admitted in such a bill, without a surrender of the most valuable privileges of the commons; and that, therefore, the bill must be totally rejected. It was decided by a majority, however, that it was not a money-bill, and consequently it passed.

BILL FOR THE IMPRESSMENT OF SEAMEN.

On the 23rd of June, at a late hour of the night, the attorney-general moved for leave to bring in a bill for manning the navy, by resuming protections granted to certain descriptions of seamen, watermen, and their apprentices, and by taking away the right of _habeas corpus_ from all persons of those classes impressed before the passing of this bill. The late hour at which this motion was made was purposely chosen, in order that the effect of the press-warrants might not be impeded by the disclosure which the newspapers would have made throughout the country, and in order that the fleet, on which the safety of the country depended, might be manned without impediment. The attorney-general admitted this, and the opposition could not deny the necessity of dispatch, or that there were no other means of manning the fleet; but they denounced the bill as a violation of sacred rights, and a treacherous irruption into the dwelling-houses of citizens. The bill, however—which was called the "Indemnity Bill," from its retrospective operation—was read twice on the same night, and when the house met again it was passed and sent up to the lords, who agreed to it, after inserting a clause in favour of colliers: it immediately received the royal assent.

{GEORGE III. 1779–1780}

PARLIAMENT PROROGUED.

Several attempts were made to bring about an address against a prorogation, but many members were now gone on their summer rambles, and those who remained

were chiefly impatient for repose, whence all these attempts failed. On the 3rd of July, therefore, the king prorogued parliament. In his speech the king returned his warmest thanks to both houses for their great services and their long attendance; and at the same time expressed his entire approbation of all they had done, particularly of their measures respecting Ireland. The events of the war, he said, had not given France cause for triumph, and he trusted that that ambitious power would be compelled to wish that she had not, without provocation or cause of complaint, insulted the honour and invaded the rights of his crown. As regarded the hostility of Spain, he repeated, that no blame could be attached to him. He then complimented the high national feeling of the people by observing, that he considered it as a happy omen of the success of his arms that the increase of difficulties served only to augment the courage and constancy of the nation. He concluded by remarking, that it was impossible to speak of the continuance of the rebellion in North America without concern, and that he had given such unquestionable proofs of his disposition to put an end to those troubles, which led him to hope that the designs of the enemies of Great Britain could not long prevail against the interests of the colonists.

THE CAUSES OF THE RUPTURE WITH SPAIN.

Although the opposition were correct in their conjectures as to a final war with Spain, ministers were by no means so blind as represented by them. It had, indeed, required all the family influence of the greater branch of the House of Bourbon, and all the activity and skill of French negotiators to lead Charles III. into this new and unprovoked contest. The Spanish monarch remembered how much he had suffered from his last short war with England; he was alarmed also for the tranquillity of his own colonies, if encouraged by the example of successful rebellion; and he moreover shrunk from the unkingly action of fomenting insurrection and allying himself with rebels. These were barriers which the King of France and his negotiators had to break down before they could procure the Spanish monarch’s aid in their designs. And in this they encountered a great difficulty. Charles III. assured Lord Grantham, that he knew nothing of the treaty between France and America until it was concluded; and his prime-minister, Count Florida Blanca, declared that he considered the independence of America as no less injurious to Spain than to Great Britain. Many overtures, he afterwards confessed, had been made, but his monarch had uniformly rejected the instances of France to acknowledge the independence of the United States. Subsequently, however, Charles III. was led to believe that revolution might flourish in North America without reaching the south; that the final hour of the British supremacy at sea, and consequently of the British empire was at hand; and that the united House of Bourborn would then have little else to do than to reach forth their hands and divide the spoils. The Spanish monarch then, with these visionary hopes in view, altered his line of conduct. On the first breaking out of a war with France he pretended great anxiety for maintaining his treaties with Great Britain, and expressed a compassionate interest for his brother the King of England, and his utter abhorrence of the proceedings of congress against so just and good a prince. He tendered his services as a mediator, and when it was hinted that the King of England could not submit a quarrel between him and his own subjects to another prince, he expressed his readiness to mediate in the French part of the quarrel alone,

and to reconcile the differences existing between the courts of St. James's and Versailles. To this latter proposal it was replied, that it was inconsistent with national honour to admit the interference of a third power, till the views of France were known; and then Charles expressed his readiness to open the negociation himself, so as to spare both parties the humiliation of making the first step towards a peace. He suggested, that each government should transmit its conditions to Madrid, and that he should be allowed to draw from both a plan for the conclusion of a treaty. To this the British ministers assented, and the conditions they sent were comprised in this one article—that, assuming the right of England to treat with her own colonies independently of foreign intervention, as an unquestionable principle, if France would cease her interference, and withdraw her troops from America, they would readily concur in establishing the harmony which had subsisted for fifteen years between the two crowns. On the other hand, the French ministers required that England should withdraw her forces from America; that she should acknowledge the independence of the United States; and that the French court should be granted the power of bringing forward additional demands for amending and explaining treaties. Such demands as these could not be conceded, and then the King of Spain offered these three different proposals of his own, as proper to produce a pacification—namely, that there should either be a truce between England and the colonies for twenty-five years, during which a peace might be negociated, and the separate articles in dispute with France amicably adjusted; or that there should be a truce with France, including the colonies; or that there should be an indefinite truce both with the colonies and with France, to determine only after a year's notice, during which plenipotentiaries of England, France, and America might form a congress at Madrid, with Spain as a fourth party. This latter convention was to be signed by the American agents at Paris, subject to the approval of congress, which France was to pledge herself should be obtained, and in the meantime the colonies were to enjoy freedom of trade and independence, and the British forces were to be either withdrawn from America, or greatly reduced. The British ministers replied, that any such plan seemed to proceed on every principle which had been disclaimed, and to contain every term which had been rejected; and they declared, that if compelled to grant such extreme conditions, it would be more consistent with the dignity of the British nation to grant them directly to America, without the intervention of any foreign power. Before this final reply reached Madrid, however, the Spanish monarch threw off the mask, and ordered his ambassador to quit London, leaving the manifesto behind him as a justification of war. This manifesto contained nearly one hundred grievances; and not the least of these was, that Great Britain had insulted Spain by rejecting her mediation—a mediation which was evidently commenced with the one design of inducing a rupture between the two nations.

SPANISH ATTEMPT UPON GIBRALTAR.

Before the rupture took place between England and Spain, the Spanish ambassador had delicately hinted to our ministers, that, if they would restore the rock of Gibraltar to his monarch, he would consent to remain neutral. This price, however, was deemed too high by our ministers for what must have been, after all, a doubtful neutrality; and hence, after war was declared, the first thoughts of the

Spaniards were directed to the siege of that wonderful rock. Before hostilities commenced, indeed, Florida Banca, in order to facilitate this grand object, had entered into a regular treaty with the Emperor of Morocco; he calculating that, by that act, the Moors would be prevented from supplying the garrison of Gibraltar with provisions, as they had hitherto done, and that Ceuta, the other pillar of Hercules on the African coast, belonging to Spain, would be left unmolested by them during the siege. Having done this, a large army was collected at St. Roque, Algeziras, and the Campo near Gibraltar, and immediately after the declaration of war, this force began its laborious operations for the reduction of Gibraltar. But many events demand notice before the results of these operations are recorded, for not a gleam of success attended their operations during this year.

FRENCH AND ENGLISH FLEETS IN THE CHANNEL, ETC.

One of the earliest measures after war was declared by Spain, was the junction of the fleets of the house of Bourbon. On a sudden d’Orvilliers sailed out of Brest, with thirty French sail of the line, and being joined by thirty-eight Spanish ships of the line, he made his way for the English coasts. At this time our fleet, which did not exceed thirty-eight sail of the line, was under the command of Admiral Hardy; and while he was cruizing in the soundings, the French and Spaniards appeared off Plymouth. One ship of sixty-four guns and a number of coasting-vessels were captured by them; but after parading two or three days before Plymouth, they were driven out of the Channel by a strong east wind. The same wind which drove the French and Spaniards out of the Channel had prevented Hardy from entering it; but at length the wind shifted to the westward, and he, in sight of the enemy, then gained its entrance, and England was safe. For, although d’Orvilliers, conscious of his superior strength, wished to engage Hardy out of the Channel, he would not hazard a battle in the narrow sea, where the advantage of numbers would have been lost for want of sea-room, and where the navigation would have been dangerous. Hardy, therefore, having outmanoeuvred the French admiral, proudly anchored at Spithead; and soon after the coast was covered with troops, volunteers, and militia, while fresh ships were fitted out, and cruizers at sea were recalled to the channel. Such a formidable front was shown, that the French and Spaniards were compelled to retire. They sailed for Brest where they lay for several months inactive and useless, and where thousands of them died from a terrible sickness which had broken out among them while laying off the English coast. Added to this misfortune, the Spaniards, who had sent their ships to sea in the hope of achieving high and mighty enterprises, soon found that this naval war with England was to follow the general rule, and to cost them ships and wealth, which they could not well spare. In the course of this year the British captured a large Spanish frigate off the Western Islands, and another off Cape Finisterre; a Spanish register-ship, carrying a considerable treasure from Lima to Cadiz; a rich Manilla ship, said to be the richest taken since the galleon captured by Lord Anson; another plate-ship with 200,000 dollars in specie and a quantity of bullion, &c.; and finally, a great variety of small Spanish craft. At the close of the year, therefore, the Spanish monarch had reason to deplore his rashness in entering into this war.

AFFAIRS IN THE WEST INDIES.

During the year the transatlantic war was carried on with various success. In the month of January, Vice-admiral Byron arrived at St. Lucie with nine sail of the line, and there joined Rear-admiral Barrington. This compelled the Count d’Estaing to act on the defensive. He took refuge in Martinique, where he remained five months, and nothing could induce him to issue from his safe retreat. While here he was joined by some ships under Count de Grasse, and fresh land-troops also arrived from France. On the other hand, Byron’s fleet was also reinforced by some ships under Admiral Rowley. Both fleets, however, remained inactive till Byron sailed away to escort our homeward-bound West India fleet to a certain latitude. The French admiral now detached a small force to St. Vincent, where the Caribs joined the French, and where the English garrison thus assailed capitulated. After this d’Estaing proceeded with his whole fleet and 9000 land-troops to Grenada. Lord Macartney, the governor, had only one hundred and fifty regulars, and about three hundred militia to oppose to him; but he made a brave resistance with this little force, and even repulsed the first assault of nearly 3000 French troops. His lines, however, were stormed, and after Macartney had retired into the fort he was compelled to surrender at discretion. Before he surrendered, however, Admiral Byron, who had returned from escorting the trade, appeared off the island, and attempted its relief. An engagement took place between the British and French fleets, in which some of the English ships were disabled, and the French lost 1200 men killed, and 2000 wounded. Night put an end to the action, and although in the course of the day the white flag was seen waving over the capital of Grenada, which was a proof that Lord Macartney had been compelled to surrender, Byron remained on the scene of action, hoping that the enemy would engage him again on the morrow. In the morning, however, he discovered that d’Estaing had gone back to Grenada and Byron bore away to St. Christopher. Great alarm prevailed among our remaining West India Islands, for d’Estaing had boasted that he would capture the whole during the summer; but he soon sailed away to Hispaniola, and then to the coasts of Georgia and Carolina to aid the Americans.

OPERATIONS IN GEORGIA.

After Lower Georgia had submitted to Colonel Campbell, he resolved to prosecute his success by an advance into Upper Georgia. In this expedition he met with few interruptions. On his approach to Augusta, the second city of the province, the American troops fled from the town, and the inhabitants took the oath of allegiance to the British monarch, and formed themselves into companies for their own defence. Campbell was now not far from a part of North Carolina where the majority of the population were known to be royalists, and he detached Lieutenant-colonel Hammond, with two hundred infantry mounted on horseback, to encourage them to take up arms. The progress of the royal arms in the Southern States was alarming, and the provincials resolved to arrest it. In the month of January, congress despatched General Lincoln to take the command of some regiments raised in North-Carolina, and to unite them with the remnant of the army of Georgia. Lincoln took post on the north bank of the river, about fifteen miles above the town of Savannah. He was thus posted and preparing for action when Colonel Campbell made

his expedition into Upper Georgia. Soon after this Campbell returned to England, and Augusta was evacuated, as being too distant a post to be supported. Lincoln now marched along the northern bank of the river, with a view of crossing it and reconquering Georgia. In the meantime General Prevost left Savannah, and marched for Charlestown, the capital of South Carolina, in the hope of taking it by surprise. He appeared before that city on the 11th of May, and on the following day it was summoned to surrender. The summons was unheeded, and Prevost having viewed the lines, which could not be forced without a great loss of men, and knowing that the garrison was more numerous than his troops, and that Lincoln was hastening to its relief, retired towards Georgia. He took possession of John's Island, which was separated from the continent by a small inlet of the sea, commonly called Stone River. His intention was to have remained in that island until ammunition should arrive from New York, but discovering that Lincoln was advancing to Lower Georgia, he departed for Savannah, to defend the fortress, leaving Colonel Maitland, with a garrison of eight hundred men, to protect St. John's. An attempt was made by General Lincoln to cut off this force, but his attack was bravely repulsed, and the American general, dispirited by his non-success, attempted no further operations until the arrival of the French fleet under d'Estaing.

INEFFECTUAL ATTEMPT OF THE AMERICANS TO REDUCE SAVANNAH.

It was at the beginning of September that the French fleet arrived off the mouth of the Savannah River. Its appearance was so sudden that an English fifty-gun ship, a small frigate, and two store-ships were surprised, and, after some severe fighting, captured. As soon as d'Estaing arrived, Lincoln directed his march from South Carolina to Savannah. Before his arrival d'Estaing landed about 3000 men at Beaulieu, and marching straight to Savannah, summoned General Prevost to surrender the town to the arms of France. Prevost, who had called in all his detachments and garrisons in Georgia, and had put the town in the best possible state of defence, declined answering a general summons, and requested a suspension of arms for twenty-four hours. Imagining that this period was required to draw up terms of capitulation, d'Estaing granted these terms, fully calculating that, at the expiration of the time, Savannah would be taken without the waste of a single shot. Prevost's motive, however, for requiring so many hours before he gave his answer to the summons was, to give Colonel Maitland time to reach the city to aid in its defence. Maitland arrived, after a laborious march, and threw himself into Savannah with his eight hundred veterans, and then Prevost informed d'Estaing that the place would be defended to the last extremity. General Lincoln joined the French on the 16th, and after spending a few days in quarrelling with d'Estaing for not waiting for him, and for not summoning the place in the name of congress, instead of the French king, having made up the quarrel they commenced the siege. Their batteries were ready to open on the 14th of October, and, in the meantime, the beseiged had not been idle. The defences had been daily improved, and two successful sorties were made, in which many of the allies were killed and wounded. The batteries were at length opened: fifty-three large cannon and fourteen mortars kept up an incessant fire upon the town. By this time the besieging army, reinforced by the militia of South Carolina, under Governor Rutledge, amounted to nearly 10,000 men, while General

Prevost’s whole force did not exceed a fourth part of that number. The batteries played upon the town for five days, during which time no visible impression was made upon the works, and but little injury was done to the houses. In the midst of this firing, indeed, Prevost had contrived to mount nearly one hundred guns, and all the open or weak parts of the town were strengthened with impalements, traverses, abattis, and redoubts, the last being constructed of green spongy wood and trunks of trees, with the interstices filled up with mud and sand. Perceiving that he made no progress, d’Estaing became impatient and alarmed, for he feared that while he was taking Savannah, the British fleet in the West Indies might capture all the French islands. His officers also suggested that if the British fleet were to follow them to the Savannah River, the effect might be fatal while so many were employed in the siege; and that if they remained at the stormy season of the year upon that insecure coast, the fleet might be scattered by storms, and destroyed piecemeal by the British ships. Under these circumstances, contrary to the advice of General Lincoln, the count resolved to try the effects of an assault by storm, and on the morning of the 9th of October he made the rash attempt. Before daybreak, after a heavy cannonade and bombardment, and an unsuccessful attempt to set fire to the abattis, the French and Americans, to the number of 5000, advanced to the right of the British lines. They advanced in two columns; one being led by d’Estaing and Lincoln, and the other by Count Dillon, an Irishman in the service of France. The column under Dillon, mistaking its way, became entangled in a morass near the fortress, and exposed to its fire; and while great numbers were slain, the rest were unable to form. The other column advanced against a redoubt, but as soon as it was discovered, the allies became exposed to a continual blaze of musketry from its guns, and to a murderous cross-fire from the adjoining batteries, which mowed down whole ranks, and threw the head of the column into confusion. Other men were urged on to fill up the gaps; and the column at length got to the foot of the redoubt. Here the conflict became more dreadful than ever. For a few minutes the French and American standards were planted on the parapet, but they were soon hurled from thence. The fire of the redoubt and the batteries being aided by a well-posted armed brig flanking the right of the British lines, made the whole column stagger and reel like drunken men; and Colonel Maitland, seizing the critical moment, issued forth with a mixed corps of grenadiers and marines, and charged them at the point of the bayonet. This charge decided the contest. The French and Americans were driven far beyond the ditch, leaving behind them about nine hundred killed and wounded; while, on the part of the English, there were only fifty-five killed, wounded, and missing. D’Estaing himself was wounded, as were also several French officers of rank, and the Polish Count Pulawski here finished his career. The issue of this battle determined the siege: the allies immediately separated, the provincials retiring to their homes, and the French setting sail for the West Indies. D’Estaing had scarcely embarked when his fleet was dispersed by a storm; and while some reached their destination, the rest, with the count himself, sailed for France.

BRITISH INCURSIONS INTO VIRGINIA.

During the operations in Georgia, the British fleet under Sir George Collier, who had succeeded Admiral Gambier, had been attacking Virginia, in which attack he was

aided by a detachment of soldiers under General Matthews. Their first attempt was an expedition to the Chesapeak, where they demolished Fort Nelson, the grand defence of the American dock-yard at Gos-port; and a similar scene of destruction was exhibited at the town of Suffolk, Kempe's Landing, Tanner's Creek, and other places in the lower part of the district. At the same time, the "Otter" sloop, and the privateers sailing far up the bay, took a great number of prizes, and burned, or caused the Americans themselves to burn, a great number of vessels. In the end, indeed, scarcely any American craft were left floating on these waters. The last exploit of this expedition was to demolish the fort and destroy the navy-yard of Portsmouth; when Collier and Matthews returned to New York, after an absence of only twenty-four days.

CAPTURE OF STONEY-POINT AND VERPLANKS.

A few days after the arrival of Collier and Matthews at New York, another detachment, under General Vaughan, and accompanied by Sir Henry Clinton himself, proceeded up the Hudson against Verplanks-neck, and Stoney-point, where Washington's people were erecting fortifications. A division of the army landed on the eastern side of the river on Verplank's-neck, while the commander-in-chief proceeded to the western side against Stoney-point. Both these posts, which commanded the Hudson, and by means of which Washington had kept up his communication between the middle and northern colonies, were captured, with the loss of only one man wounded. At Fort Lafayette, which was the main defence of Verplanks-point, all the garrison surrendered as prisoners of war; but, at Stoney-point, the garrison fled at the approach of the British troops. Sir Henry Clinton left considerable garrisons at these places, and then returned to New York.

{GEORGE III. 1779–1780}

BRITISH EXPEDITION AGAINST CONNECTICUT.

General Clinton, soon after his return to New York, proposed inflicting a severe chastisement on the Connecticut people, and tempting Washington down from the highlands to defend the sea-coast. For this purpose a detachment of land-troops under Major-general Tryon, supported by Admiral Collier, advanced on Connecticut. They first attacked Newhaven, where they destroyed the artillery, ammunition, and stores, with all the vessels in the harbour. Fairfield was next attacked, and having encountered a severe opposition by the inhabitants, when the place was captured it was reduced to ashes. The same fate awaited Norwalk and Greenfield; and Tryon then intended to make a descent at New London, the great rendezvous for the Connecticut privateers. As the militia of this state, however, were by this time joined by some regular troops detached from Washington's army, he deemed it expedient to return towards New York to obtain reinforcements. The fleet fell back, therefore, on Long Island, to wait for an additional supply of troops and ammunition. In this expedition much spoils were captured.

STONEY-POINT RE-CAPTURED, BUT DESERTED AT THE APPROACH OF THE BRITISH.

Washington, roused by these disasters, undertook operations which not only prevented Clinton from reinforcing Tryon, but compelled him to recall the whole of that devastating expedition. Before the garrison could put Stoney-point in any defensive order, he dispatched General Wayne to fall upon it by night, and the troops left there by Clinton were all either killed or taken prisoners. Wayne opened a fire across the river upon Fort Lafayette, expecting to see another strong detachment appear from the ranks of Washington on the land side of that fort. This detachment did not appear in time; for when Clinton discovered this reverse he sent a detachment up the river, in transports, to assist the garrison, and their arrival occurred almost simultaneously. On the arrival of the transports, the Americans gave up their brief siege of Fort Lafayette, and retreated, as did those likewise who had retaken Stoney-point. Clinton himself had followed the transports in full force, hoping that Washington would quit his position to defend Stoney-point; but when he found that his hope was fallacious he returned to New York.

BRITISH GARRISON SURPRISED AT PAULUS-HOOK.

The successful enterprise of General Wayne was followed by a similar enterprise against a British garrison at Paulus-hook on the Jersey coast. This was conducted by General Lee, who, on the 17th of July, fell suddenly upon that garrison, and killed about thirty and captured one hundred and sixty prisoners. The Americans, however, were speedily expelled from Paulus-hook, without having destroyed either the barracks or artillery. Their retreat was as disgraceful as their attack had been spirited and well conducted.

AMERICAN DISASTER AT PENOBSCOT.

During the month of June, General Francis Maclean, who commanded the British troops in Nova Scotia, proceeded with a detachment of six hundred and fifty men in transports, conveyed by three sloops of war, to the Bay of Penobscot, in order to form a settlement, and to establish a post which might serve the double purpose of checking the incursions of the people of Massachusets Bay into Nova Scotia; and to obtain ship-timber for the use of the king’s yards at Halifax and other ports in America, He had already commenced the construction of a fort on the Penobscot River, when a hostile armament, consisting of 3000 troops, which had been fitted out by the executive government of Massachusets, appeared in the bay to thwart his designs. Being prevented from entering the harbour by the presence of the three English sloops of war, which were anchored right across the mouth; on the night of the 28th of June, the American troops climbed up some steep precipices on the opposite side of that tongue of land; dragged up some artillery, and erected a battery within a few hundred yards of the unfinished fort. But Maclean was prepared for this manouvre. He had filled up his bastions with logs of timber; had carried a sort of _chevaux-de-frise_ round the fort; and had constructed platoons and mounted his artillery. He, therefore, returned fire for fire, and the American troops being chiefly militia, or undisciplined recruits, soon grew weary of the business, and longed to return. They were commanded by General Lovel, who perceiving that he could not effect his object with such lovers of home, applied to General Gates for a reinforcement of regular troops. A regiment was sent by Gates; but before this force

arrived Sir George Collier came to the assistance of Maclean with a squadron and some land-troops; and the Americans, leaving their works, ran to their ships, embarked, and endeavoured to make for Boston harbour. But this was now impracticable. Two of the largest vessels, in endeavouring to gain the open sea, were intercepted, and one was captured; while the other ran on shore and was blown up by her own crew. The other American ships entered the mouth of the Penobscot River, where they were abandoned by the Americans, both soldiers and sailors, who landed and fled for their lives. Nearly all the ships were captured or destroyed by the British sailors, who were close in their wake; while the fugitives who had landed in a wild country, had to traverse a pathless desert for upwards of a hundred miles, before they could reach any human habitation. On their route a quarrel took place between the seamen and landsmen, and a battle was fought in which fifty or sixty lives were lost, and a great many more perished from fatigue and famine. This exploit terminated Sir George Collier's career. When he returned to New York he found himself superseded by Admiral Arbuthnot, and he returned to England. The season for action was not yet over, but a rumour that d'Estaing intended to attack New York, compelled Sir Henry Clinton to forego all thoughts of further operations, and he even withdrew the garrison from Rhode Island, for the purpose of concentrating his force.

AMERICAN RETALIATION ON THE INDIANS, ETC.

During this year the Americans took a terrible revenge on their old enemies, the Indians. At the head of 5000 men General Sullivan undertook an expedition against the Indian tribes beyond the Mohawk River and upon the upper course of the Susquehanna. In the month of August he encountered a body of eight hundred savages and two hundred whites, under Brandt, Butler, and others acquainted with the art of war; whom, after a bloody conflict, he defeated. Sullivan then penetrated into the very heart of their country, where his followers destroyed houses, corn-fields, gardens, fruit-trees, and everything that would afford sustenance to man or beast. Such were the positive orders of congress, and Sullivan proved himself to be their willing agent in the evil work. Congress passed a vote approving his conduct, but Washington, whose exertions were crippled by the expedition, in consequence of the great force employed in it, inveighed bitterly against it, and in the end Sullivan retired from public service in disgust. While this terrible chastisement was inflicted on the tribes northward of Pennsylvania and New York, similar expeditions were Kent out from the southern provinces for the same purpose. On the other hand, whilst the Americans were spreading devastation and laying waste the towns of their savage enemies, the Indians, whose appetite for revenge was whetted by their disasters, made incursions into the provincial settlements, and made severe retaliation.

SPANISH INCURSIONS.

As Spain had concealed her hostile intentions towards England until preparations for war were completed, it was not a matter of surprise to see her commencing hostilities on the other side of the Atlantic, with all the advantages of early information and previous design. No sooner was war announced than Don Bernardo Galvez, Governor of Louisiana, made an incursion into West Florida, and invested and captured a British fort garrisoned with five hundred men, at the mouth of the

Ibbeville. The fate of almost the whole of the Mississippi was involved in the fall of this fort, for the Spaniards overran a district of 1200 miles in extent; and only left the eastern part of the province, with the strong fort of Mobile untouched. With equal alacrity the Spanish Governor of Honduras commenced hostilities against the British cutters of logwood in the Bay of Honduras, and plundered the principal establishment at St. George's Key. The logwood-cutters, who were chiefly sailors and men of a daring spirit, retreated before the Spaniards, and kept together in an inaccessible place, until the Governor of Jamaica dispatched Captain Dalrymple, with a small body of Irish volunteers, to convey to them a supply of arms. Sir Peter Parker dispatched a sloop of war to co-operate, and this sloop, having taken Dalrymple and his party on board, quickly drove the Spaniards from St. George's Key and all that part of the coast. The sloop was shortly after joined by a small squadron under Captain Luttrell, who had been cruizing to intercept two Spanish register-ships, which had taken refuge under the strong fortress of St. Fernando de Omoa. Dalrymple, Luttrell, and the chiefs of the British bay-men resolved to attack this fort, which was the key of the whole settlement of Honduras; and a motley force of log-wood-cutters, sailors, soldiers, and volunteers proceeded against it. They had no artillery available for the purpose, and therefore they resolved to take the fort by surprise and assault. As they approached they were discovered by the garrison, but the works were nevertheless carried by escalade; and the garrison were so panic-stricken at the bold movement, that the Spanish governor could not keep them to their guns. One hundred escaped by flight, and the rest, amounting to five hundred men, surrendered as prisoners of war. The assailants now made for the harbour in search of the register-ships; and although the greater part of the treasure had been removed to a place of safety, there was still a galleon in the harbour, and an immense quantity of quicksilver, which, with other objects that fell into the hands of the conquerors, were of the estimated value of 3,000,000 dollars. The loss of the quicksilver was severely felt by the Spaniards, and they offered to redeem it at any price. They also made liberal offers for ransoming the fort; but the captors, preferring the public good to private emolument, refused all terms. At the same time they restored the plate found in the churches, to procure the liberation of some logwood-cutters who had been taken at George's Key. A garrison was left to defend Fort Omoa, but the unhealthiness of the station led to its evacuation, and it was recovered by the Spaniards. They found the guns spiked, however, and the works for the most part demolished.

ACTION BETWEEN PAUL JONES AND CAPTAIN PEARSON.

One of the most active partisans in the American cause was the celebrated Paul Jones. This man was a native of Scotland, and the son of a gardener of Galloway. He had taken to the sea at a very early age, and had finally settled in Virginia. At the breaking out of the war he offered his services to congress, and a commission was given him, under which he cruised among our West India Islands, where he made many prizes. His nautical skill and his success were so great that he acquired the name of the best of all corsair captains. In 1777 he was appointed to the command of a French-built ship under American colours, and he then proceeded upon a cruise to the coast of Britain. Many were the exploits which he transacted. He took many prizes in places where the American flag had never before been seen; he made a

descent at the mouth of the Dee, near to Kirkcudbright, and plundered the house of the Earl of Selkirk; and he made another descent on the Cumberland coast, spiked the guns of the fort at Whitehaven, and burned one or two vessels. He also cruised up and down between the Solway and the Clyde; scaring the whole coast, after which he returned to Brest, boasting that he had kept the north-western coast of England and the southern coast of Scotland in a constant state or alarm. In the summer of the present year he returned to cruise along our eastern coasts, having at this time a squadron manned by desperadoes of various countries under his command. Alarm spread from Flamboroughhead to the Frith of Tay, for the name of Paul Jones had become synonymous with all that is terrible. His great object this year was to intercept the Baltic trade, which was under the convoy of Captain Pearson, in the ship “Serapis,” of forty guns, and Captain Piercy, in the “Countess of Scarborough,” of twenty guns. This fleet arrived safely off the Yorkshire coast, when Paul Jones appeared to encounter it. Captain Pearson made a signal for his convoy to bear down under his lee; and he himself made way to get between the enemy’s ships and the convoy. The “Countess of Scarborough” took a similar position, and while the enemy was advancing, the merchant-vessels made their way in haste to the shore. At length the squadron of Paul Jones, consisting of three large ships, a cutter, and a brig, reached the “Serapis” and the “Countess,” and a terrible conflict took place between the former and the “Bon Homme Richard,” a two-decker, carrying forty guns, and which was Paul Jones’s own ship. The two ships were brought into such a situation that the muzzles of their guns came in contact, and in this manner the action continued with the greatest fury for two hours, during which time Jones, who had far more men than his opponent, vainly attempted to board, and the “Serapis” was set on fire ten or twelve times. The fire each time was extinguished, and Captain Pearson had the best of the battle; but, in the meantime the “Countess of Scarborough” had been disabled by the other ships of the enemy, and then one of the frigates came to the assistance of the “Bon Homme Richard.” Almost every man on the quarter or main-decks of the “Serapis” was killed or wounded by the united fire of the enemy; and the calamity was increased by the accidental ignition of a cartridge of powder near one of the lower deck-ports, and the flames spreading from cartridge to cartridge all the way aft, blew up the whole of the officers and people that were quartered abaft the mainmast. In this state Captain Pearson was compelled to strike his colours, and Captain Piercy was under the necessity of following his example. The “Bon Homme Richard,” however, was in a still more pitiful condition than the “Serapis.” Her quarters and counter on the lower deck were driven in; all her guns on the deck were dismounted; her decks were strewed with killed and wounded; and she was on fire in two different places, and had seven feet of water in her hold. On the day after the battle Paul Jones was obliged to quit her, and she sank with a great number of her wounded on board. The prizes were carried by their captor into the Texel, and the French government gave Paul Jones thanks, in the name of Louis XVI., and conferred upon him the Order of Merit! Congress, also, at a later date, sent him a vote of thanks, and promoted him to the command of a new ship, called the “America!”

CHANGES IN THE MINISTRY.

During the recess, some partial changes occurred in the administration. Lord Stormont was made secretary of state, in the room of Lord Suffolk, deceased. Earl Bathurst was made lord president of the council, Earl Gower having resigned office in disgust; the Earl of Hillsborough succeeded the Earl of Weymouth as secretary of the southern department; and the Earl of Carlisle was nominated first lord of trade and plantations, which was an ancient office resuscitated. Mr. Thurlow had received the great seal, with a peerage, last session, and he was succeeded as attorney-general by Wedderburn, while Wallace took Wedderburn’s place of solicitor-general.

MEETING OF PARLIAMENT.

Parliament met on the 25th of November. In his speech the king called upon the two houses to exert their efforts along with him in defence of their country against the unprovoked attacks of their enemies; congratulated his hearers that the designs and attempts of France and Spain to invade this kingdom had been frustrated; exalted the exemplary conduct of the national militia; returned his cordial thanks to all loyal subjects who had stood forward in the present momentous trial; and recommended the state of Ireland to consideration. Nothing was said by his majesty concerning America or the Americans, but the commons were told that it was with extreme concern that his majesty saw the great and inevitable expenses which his naval and military forces would require. His majesty concluded by saying, that, trusting in Divine Providence, and in the justice of his cause, he was firmly resolved to prosecute the war with vigour.

The address was opposed in the house of lords by the Marquess of Rockingham, who moved an amendment, omitting every word which it contained except the title, and inserting a prayer instead, beseeching his majesty to reflect on the extent of territory, the power, the opulence, the reputation abroad, and the concord at home which distinguished the commencement of his reign; and now on the endangered, impoverished, enfeebled, distracted, and even dismembered state of his kingdom, after all the enormous grants of successive parliaments. The amendment concluded by requesting his majesty to resort to new counsels and new counsellors, without further loss of time, as the only remedy for the existing evils. In his speech, the Marquess of Rockingham censured the facility with which the two ambassadors, Lords Grantham and Stormont, had suffered themselves to be deceived by the craft of France and Spain; asserted that the clause in the speech which spoke of the blessings of living under his majesty’s happy government, was insulting to the common sense of the house, as all those blessings were turned into curses; attacked the first lord of the admiralty on various points connected with his administration; attributed all the discontents in Ireland to the folly and bad faith of ministers, who had made promises which they had not performed; and, finally, denounced the war in America as bloody, malignant, and diabolical. In reply, Lord Stormont imputed a great part of the misfortunes which surrounded us to the incautious and violent language used in parliament. Lord Mansfield expressed his conviction that nothing but a comprehensive union of all parties could effect the salvation of the country. How far the temper of the nation and the state of parties might admit of such a coalition he could not decide; but the event, he said, was devoutly to be wished. The amendment

was negatived by eighty-two against forty-one.

A similar amendment to that of the Marquess of Rockingham, was moved in the commons by Lord John Cavendish. In both houses, also, the arguments and invectives employed were allied in character. The ministers were accused of ruining both army and navy by their compliances with court predilections; by their fear and jealousy of every officer of merit; by their criminal tardiness; and by their want of a consistent plan of military operations. Charles Fox went a step further than most of the speakers in opposition. He declared that treachery and not ignorance must have prevailed in the national councils, to reduce the nation to so miserable a condition; and he warned ministers that when the nation was reduced to such a state of wretchedness and distraction that the laws of the land could afford no relief, the law of nature would put arms into the hands of the people, and then they, who had caused the evil, would suffer for their mal-administration. In reply, Lord North indignantly denied that any treachery was resorted to by ministers, and called upon the opposition to stand forth like men, and make good such vague accusations. Laws, he said, existed for the protection of the innocent; and if his accusers adhered to the laws, he had nothing to fear. Lord North, also, defended with considerable ingenuity the management of the war; asserting that, from its extensive nature, it was impossible to keep a force superior to the enemy at every point; and affirming that the fleets of France and Spain, which had been raised to the ruin of their finances, had gained neither honour nor advantage, and were already falling into weakness and decrepitude. The amendment was negatived by two hundred and thirty-three against one hundred and thirty-four.

LORD SHELBURNE ATTACKS MINISTERS IN THE CASE OF IRELAND.

Although Ireland had been misgoverned for centuries, yet opposition, in the course of these debates attributed every mischief in that country to the present ministers. In both houses assurances were given that satisfactory plans of relief were in contemplation, but even then opposition were not disarmed. Having procured a summons of the house, on the 1st of December the Earl of Shelburne moved a resolution, declaring ministers highly censurable for having neglected to take measures for the relief of Ireland, in conformity with the address of the lords to his majesty during the last session. In introducing this motion, the Earl of Shelburne declared that the government of Ireland had been abdicated, and that the people would be justified, by the principles of the constitution and the laws of self-preservation, in taking back its power into their own hands. In the course of his speech he read the address of both houses of the Irish parliament, which declared that nothing less than free trade would rescue that country from ruin; and he asserted that all classes of society concurred in this opinion. Ministers were defended by Lord Hillsborough, who maintained that no delay could be fairly imputed to them; that measures for the relief of Ireland must emanate from parliament, and were not to be entered upon without due information and consideration; and that ministers had been active in collecting such information and making arrangements, the result of which would shortly be laid before the house. The debate was chiefly rendered remarkable by some words uttered by Earl Gower, who had lately retired from the

administration. After stating that he must, in fairness, oppose the motion, as ministers required a few days for their exculpation, he remarked:—“I have presided for some years at the council-table, but have seen such things pass of late that no man of honour or conscience could any longer sit there.” The motion was rejected by eighty-two against thirty-seven.

LORD OSSORY’S ATTACK ON MINISTERS RESPECTING IRELAND.

On the same day that Shelburne made his motion, Lord North communicated some additional papers respecting Ireland, and gave notice, that he would, in about a week, move for a committee of the whole house to enter upon this subject. Opposition, however, seem to have considered Ireland a vulnerable point in the phalanx of the ministry; and before the time intimated by Lord North had expired, the Earl of Upper Ossory moved a vote of censure in the commons upon ministers for their neglect of the affairs of that country. This motion was seconded by Lord Middleton, and supported by Dunning, Burke, and Charles Fox, who, in general pursued the dangerous course of drawing parallels between the situation of Ireland and that of America. It was asserted, for instance, that ministers having failed in reducing the colonies by force, were ready to make large concessions to Ireland; but that the Irish people had suffered more from the loss of her share in the trade of America than from any other cause. It was also said, that if the thunders of the cabinet had not been hurled against Ireland; if Dublin had not been treated like Boston, and if Cork and Waterford had not been reduced to ashes like the towns of America, it was not through the enlightened policy of ministers, but from fear of the consequences of adopting stringent measures toward those refractory cities. These sentiments were exceedingly unwise, for at this very time armed associations and the non-importation agreements were in full force in Ireland, and a rebellious spirit displayed itself in the Irish parliament-house and throughout the whole length and breadth of the kingdom. In order to compel the British government to concede a free trade the Irish parliament had, indeed, according to the instructions received from their constituents, voted a money-bill for six months only, instead of two years, as usual; and the charges which opposition brought against ministers were as fallacious as they were unwise and unjust. This was fully proved by Lord North in his reply, who showed that the grievances complained of originated ages anterior to the existence of his ministry, and that the restrictions upon the trade and industry of the Irish people arose from our general system of trade; which, though conceived in ignorance and founded on prejudice, was so confirmed by habit that it seemed to become part and parcel of our very constitution. Lord North referred to the hostility which had been shown towards the attempts which had been made in the two preceding sessions to obtain a moderate relaxation of these restrictions, in proof of the truth of his assertions. Those who had undertaken the task, he observed, had been thwarted by their constituents, and by the people of England generally, as well as by the majority of the house. Something had been done, but more would have been done had it not been for the temper, prejudices, and habits of the people and the parliament. In conclusion, he contended that ministers had done more for Ireland than any other cabinet for the last century. They had enlarged the trade of that country; had given bounties to encourage the Irish Newfoundland fishery, and the growth of hemp and

tobacco; had permitted the exportation of woollen cloth, &c.; and had conferred many other benefits on the people. The motion was negatived by one hundred and seventy-three against one hundred.

LORD NORTH'S PROPOSITION FOR THE RELIEF OF IRELAND.

Lord North brought forward his promised scheme of relief for Ireland on the 13th of December. This scheme consisted of three propositions: to allow a free export of wool, woollens, and wool-flocks; to allow a free export of glass and all kinds of manufactured glass; and to allow a free trade with all the British plantations on certain conditions; the basis of which was an equality of taxes and customs. In supporting these propositions Lord North entered minutely into the natural and inherent rights of Ireland; combated many inveterate prejudices; declared that the benefits of the two countries must be reciprocal and their interests mutual; and in short collected into one point of view all the liberal notions of commerce and policy which Burke and others of his party had long laboured to impress upon parliament. If Lord North was actuated by fear in making these large concessions, so also were the majority of the members in the house, for the very men who had clamoured against commercial concessions to Ireland, and had frustrated all measures in favour of this line of policy by their votes, now consented to the three resolutions, without the least opposition. Bills founded on the two first propositions were brought in, and passed both houses, and received the royal assent before the Christmas recess. The third proposition was delayed till the sentiments of the Irish concerning it could be ascertained. These sentiments were found to be favourable, and it was therefore soon carried. A few other benefits were also conferred on the Irish; suck as enabling them to become members of the Turkey Company, and to engage in the Levant trade. The whole appeared to give great satisfaction to the Irish nation. The acts were received as a boon, and great loyalty and affection were expressed. Unfortunately, however, ministers cut short their popularity by altering some bills, which gave great umbrage to the Irish people, and taught them even to desire independence. On this subject Dr. Miller writes:—"The bills altered on this occasion were not, as in the former case, money-bills: that folly the ministers did not venture to repeat: but one of them was a bill involving the dearest interests of the people; and the alteration was such as gave to the public mind the only impulse which it then required for aspiring to constitutional independence. The Irish parliament, not choosing that its military establishment should be longer regulated by a British mutiny-law, transmitted a bill of similar import. The minister, as if eager to indemnify himself for commercial concession by constitutional spoliation, introduced an alteration by which the law was to be rendered perpetual; and the Irish parliament, though it passed the bill thus altered, was taught to look to freedom of constitution as the necessary safeguard to freedom of trade; to assert its own independence, while it unfettered the commerce of the country. When the minister had first, by the altered money-bills, alarmed the constitutional jealousy of the guardians of the public purse, he then, by another alteration, rendering the mutiny-law perpetual, manifested a desire of securing to government the uncontrolled direction of the military power. Language could not more forcibly exhort the people to be satisfied with no concessions merely commercial; but to insist that their country should be acknowledged as an

independent, though not a separate state.”

{GEORGE III. 1779–1780}

DEBATES ON ECONOMICAL REFORM.

While Lord North was endeavouring to allay the bad passions of the Irish people, a spirit of disaffection arose in England. The cause of this was the expenses of government: expenses which were for the most part unavoidable, but which in some cases may have arisen from lavish expenditure. But whatever was the cause, there was a long, loud, and universal cry in the country for economical reform, and it soon became the subject of debate in both houses of parliament. On the 7th of December the Duke of Richmond moved in the lords for an address to beseech his majesty to reflect on the manifold distresses and difficulties of the country; to represent that the waste of the public treasure required instant remedy, and that it was necessary to adopt that economy, which, by reforming all useless expenses, creates confidence in government, gives energy to its exertions, and provides the means for their continuance; to submit to his majesty that a reduction in the civil list would be an example worthy of his paternal affection for his people and his own dignity, and calculated to diffuse its influence through every department of the state; and to assure his majesty that the lords would readily concur in promoting so desirable a purpose, and that every one of its members would cheerfully submit to such reductions of emoluments as he might think proper to make. In support of this motion, the Duke of Richmond entered into a detailed statement of the existing vast military establishment; showed by a number of calculations the great increase of the national debt since the commencement of the American war; and urged the necessity of economical reform, suggesting that the king himself should set the example, that all classes of society might follow it. In the course of his speech, his grace contrasted the state of this country with the wise system of economy adopted by France under Neckar; asserting that our formidable neighbour was rising to wealth as fast as we were sinking in poverty. Yet with all his zeal for reform, the Duke of Richmond advocated the continuation of the pensions bestowed on the Pelhams, Walpoles, and Pitts, families of his own party, as being too sacred for the sacrilegious hand of parliament to touch. In reply, the lords in administration confessed that the expenditure was enormous, and that there had even been some want of economy; but while they made this confession, they opposed the motion, chiefly on the ground that it could not be of any great service, or at all adequate to the object proposed. It was insisted by them that the civil list could not bear any diminution; that it would be degrading to parliament, after having voted an augmentation, now to declare their inability to pay it; that the complaint of the waste of the public money was not substantiated by any kinds of proof; and that the nation was not so poor or reduced as the noble duke had represented. The motion was rejected by seventy-seven against thirty-six.

The subject of economical reform was introduced into the lower house by Mr. Burke on the 15th of December. Burke gave notice of his intention to propose some very important regulations after the Christmas recess, and in doing so, he also took

occasion to extol the financial system of Neckar, to which he attributed the re-production of the French marine out of the wrecks and fragments of the last war. He anticipated, he said, a cool reception of the propositions he should make, since they would have a tendency to weaken court influence. He could only, however, make an offer, and if it was rejected the people must effect their own salvation. All the grievances of the nation, he observed, arose from the overgrown influence of the crown, and this influence was the creature of the prodigality of the commons. The operation of this influence, he said, was not confined to the superior orders of the state; it had insinuated itself into every section of the community. Scarcely a family in all England was so hidden or lost in the obscure recesses of society, which did not feel that it had something' to hope or to fear from the favour or displeasure of the crown. Government, he argued, should have force adequate to its functions, but no more; for if it had enough to support itself in abusing or neglecting them, they must ever be abused or neglected. Men would rely on power for a justification of their want of order, vigilance, foresight, and every other virtue or qualification of statesmen. The minister then might exist, he said, but the government was gone. He continued:—"It is thus that you see the same men, in the same power, sitting undisturbed before you, although thirteen colonies are lost—thus the marine of France and Spain has grown and prospered under their eye, and been fostered by their neglect—thus all hope of alliance in Europe is abandoned—thus three of our West India islands have been torn from us in one summer, while Jamaica, the most important of all, has been neglected, and every inquiry into that neglect stifled—thus Ireland has been brought into a state of distraction which no one dares to discuss." The disease of government, Burke remarked, was a repletion; the over-feeding of the stomach had destroyed the vigour of the limbs. He continued, that he had long ascertained the nature of the disorder, and its proper remedy; but as he was not naturally an economist, and was averse to experiment, he had not made hitherto any attempt to apply that remedy. Now, however, he was assisted by the temper of the times, and though he would not at that time disclose all the particulars of his plan, he would, nevertheless, state its end, objects, and limits. He proposed a regulation which would give £200,000 per annum to the public service, and annihilate a portion of influence equal to the places of fifty members of parliament, which would effectually remove the sources of corruption. This was the end and objects of his resolution. As regarded its limits, nothing, he said, which was held by any individual under a legal tenure would be invaded. Equity and mercy would be remembered in those cases where innocent persons had been decoyed into particular situations through the prodigality of parliament: the alterations would chiefly affect those who held offices from which they might be removed by ministerial arrangements. No employment really useful to the public would either be abolished or abridged of its emoluments, A fund, also, fully adequate to the reward of merit, would be left, and an ample provision would be secured to the crown for personal satisfaction, and for as much magnificence as was compatible with the distressed state of the nation. These propositions, Burke added in conclusion, were made with humility and integrity: he hoped that they would give confidence to the people, and strength to the government; that they would render the war vigorous, and peace refreshing. Burke's plan received high commendation from several members on his own side of the house, and especially by his friend and

disciple, Charles Fox; but on the ministerial side of the house a profound and ominous silence prevailed. As Fox observed, it was evident there was not sufficient virtue in the house, or rather self-denial, to carry such a plan of economical reform.

CHAPTER XI.

{GEORGE III. 1780–1781}

Burke’s Plan of Economical Reform..... Rejection of Lord Shelburne’s Motion for a Commission of Accounts..... Ministerial Bill for Commission of Accounts..... Bill for excluding Contractors from Parliament rejected..... Motions regarding Places and Pensions..... Political Altercations..... Debates on the Increase of Crown Influence..... Lord North’s Proposal respecting the East India Company..... General Conway’s Plan of Reconciliation with America..... Popular Rage against the Catholics; Riots in London, etc..... Measures adopted by Parliament arising out of the London Riots..... Parliament Prorogued..... Trial of Lord George Gordon and the Rioters..... Admiral Rodney’s success against the Spaniards..... Armed Neutrality..... Rodney engages the French Fleet..... Expedition against South Carolina..... Battle of Camden, etc..... Affairs at New York..... Treason of Arnold and Fate of Major André..... Maritime Losses sustained by the British..... War with Holland..... General Election..... Meeting of Parliament.

{A.D. 1780}

BURKE’S PLAN OF ECONOMICAL REFORM.

Although from the silence of ministers Burke might have presaged he fate of his proposed plan of economical reform, yet he was greatly encouraged to proceed in his task by the voice of the nation. During the Christmas recess, petitions were got up in its favour in almost all the countries and great cities of England, and associations were formed in order to support a reform. Counter petitions were indeed framed, and in some instances protests were signed, but still it remained evident that the public feeling was with Burke. It was while the petitions in favour of his plan were pouring into the house that he brought it forward. After delivering an eloquent speech, which Gibbon says was heard with delight by all sides of the house, and even by those whose existence he proscribed, he detailed his scheme. This consisted of five bills, comprising the sale of forest-lands; the abolition of the royal jurisdictions of Wales, Cornwall, Cheshire, and Lancaster; the abolition, also, of treasurer, comptroller, and many other officers in the household, with the treasurer of the chamber, the wardrobe, etc., the boards of trade, green cloth, and works, the office of third secretary of state, the office of keepers of the royal hounds, and of many civil branches of the ordnance and the mint, with the patent offices of the exchequer; the regulation of the army, navy, and pension pay-offices, with some other departments not under due control; and finally a better arrangement of the civil list so as to prevent for the future any accumulation of debt, without any improper encroachment on the royal prerogative. Lord North passed very high encomiums on the author of

this plan, and assured the house that no member was more zealous for the establishment of a permanent system of economy than he was; but he intimated that subjects so numerous and various required time for reflection and as some of them affected the king’s patrimonial income, he thought the crown should be consulted. All the bills, except that which related to the crown-lands and to Wales, and the counties palatine of Chester and Lancaster, were brought in, however, and the portions of the plan submitted to deliberation occupied a considerable part of the months of March, April, and May, and gave rise to many animated debates, and several close divisions. But, in the end, all the clauses were negatived, except that for abolishing the board of trade, and the only saving to the country by this triumph of the opposition, was about £6000 per annum!

REJECTION OF LORD SHELBURNE’S MOTION FOR A COMMISSION OF ACCOUNTS.

On the same day that Burke gave notice of his plan of economical reform, the Earl of Shelburne gave notice that he would, after the Christmas recess, move for a commission of accounts. In accordance with this professed intention, on the 8th of February the noble earl, therefore, moved for the appointment of a committee, to consist of members of both houses, possessing neither employments nor pensions, to examine the public expenditure and the mode of accounting for the same, and especially to inquire into the manner of making all contracts; and at the same time to take into consideration, what saving could be made, consistent with public dignity, justice, and gratitude, by an abolition of old and newly created offices, etc. In support of his motion the Earl of Shelburne exposed the profusion pervading all branches of government, and declared that his main object was to destroy that undue influence which pervaded both houses of parliament. The motion was seconded by the Earl of Coventry, who described the country as being in very reduced circumstances: rents were fallen, he said, the value of land was sinking, and farmers were on the high road to ruin. The Duke of Grafton and the Marquess of Rockingham followed on the same side; the latter declaring that a system had been established at the accession of his present majesty, for governing the kingdom under the forms of law, but really to the immediate influence of the crown, which was the origin of all our national misfortunes. The motion was opposed by Lord Chancellor Thurlow, and Lords Mansfield and Chesterfield, with other peers, who urged that the motion was a violation of the inherent, exclusive privilege of the other house to control the public expenditure. When put to the vote it was lost by a majority of a hundred and one against fifty-five.

MINISTERIAL BILL FOR COMMISSION OF ACCOUNTS.

Immediately after Burke had introduced his plan of economical reform, Colonel Barré, after declaring that he did not consider that reform sufficiently extensive, gave notice that he should, on some early day, move for a committee of accounts, to consist of a few men only, who would act with the consciousness that the eyes of the public were fixed on them. To the surprise of all parties, Lord North applauded this proposal, expressed his surprise that a measure of such obvious utility had not been thought of sooner, and declared that he was anxious to adopt any plan that appeared

likely to promote economy, and reduce the public expenses to order and limit. The opposition congratulated the minister, and Colonel Barré said he would prepare a bill for that purpose; but while he was preparing it, Lord North himself brought in a bill on the 2nd of March, which proposed gentlemen who had no seat in parliament as commissioners of accounts. Barré complained of the underhand dealing of the minister, but said that he would concur in the measure, though he had been thus robbed of the honour of introducing it himself. Other members of the opposition were not so liberal. Although they were prepared to support the proposition, if left in the hands of the gallant colonel, they spoke against the whole measure; denounced it as a trick to create new places and salaries, and insisted that the commission would do no good. The bill, however, passed, and six independent gentlemen, among whom was Sir Guy Carleton, were appointed commissioners of accounts.

BILL FOR EXCLUDING CONTRACTORS FROM PARLIAMENT REJECTED.

Sir Philip Jennings Gierke again introduced his bill for excluding contractors from the house of commons. This time it was carried, and passed through all its stages with little opposition from the ministers; but it, was rejected in the upper house, as an illiberal stigma cast on a respectable body of men, and as a mean compliance with popular prejudices.

MOTIONS REGARDING PLACES AND PENSIONS.

On the 15th of February, Sir George Saville moved that an account of all places with salaries, and all pensions payable at the exchequer or out of the privy purse, with a list of the persons holding them, should be laid before the house. In making this motion, Sir George encountered a most violent opposition, and the debate was broken off by a sudden illness of the speaker. Subsequently it was revived, and Lord North then moved an amendment, restricting the account to such pensions only as were paid out of the exchequer, and excepting those paid out of the privy purse. This, however, gave such manifest dissatisfaction that the minister was obliged to qualify it by moving in addition, that the general amount of all pensions should be given, but without any specification of names, and without stating the sums paid, except in the case of those who were paid from the exchequer. But even with this qualification, though ably supported by the minister himself in a long and argumentative speech, and by Wedderburn, the attorney-general, and Mr. Dundas, lord-advocate for Scotland, the amendment was only carried by a majority of _two_, the numbers being one hundred and eighty-eight against one hundred and eighty-six. A similar motion was made in the upper house by Lord Howard of Effingham, but it was there negatived by fifty-one against twenty-four.

POLITICAL ALTERCATIONS.

In the early part of this session Mr. Adam left the ranks of opposition, and took his place under the ministerial standard. In doing so, he declared that he could not concur in the pretended necessity of new counsels, or new counsellors, since among those who stood candidates for office he was unable to single out one by whom the state was likely to be better served than by the present ministers. Charles Fox replied to Mr. Adam, and his reply, as reported in the newspapers, being thought to convey a

personal reflection on Mr. Adam, a duel was the consequence, in which Fox was slightly wounded. Duels appeared likely to become the order of the day among members of parliament. In consequence of the sudden removal of two lord-lieutenants, apparently on account of their conduct in regard to county petitions, associations, and votes given in parliament, Lord Shelburne moved for an address, to desire that his majesty would be graciously pleased to acquaint the house whether he had been advised, and by whom, to dismiss the said two noble lords for their conduct in parliament. In the course of the debates on this motion, which was negatived, Shelburne indulged in some personalities at the expense of Mr. Fullarton, member for Plympton, and late secretary to Lord Stormont in his embassy to the French court. Fullarton complained to the house of commons of the behaviour of the Earl of Shelburne, and shortly after a duel was fought between them in Hyde Park, in which the noble lord was wounded. These transactions induced Sir James Lowther to observe, in the house of commons, that this method of fighting, in consequence of parliamentary debate and hasty words, seemed growing into such a custom, that it behoved the house to interpose its authority, as otherwise all freedom of debate would be at an end, and the British parliament would be reduced to the condition of a Polish diet. The friends of Mr. Fullarton said, it would be indelicate to enter into a discussion on the subject in his absence; and the friends of Lord Shelburne contended, that the words spoken by him were strictly parliamentary, and contained nothing which could be interpreted in a private or personal manner. But the house was not disposed to put its ban on this false code of honour. The conversation ended in nothing, except the hope that duels and wounds would make honourable members speak with better manners. This hope, however, proved to be fallacious. An altercation occurred on the 13th of March, between the speaker and Lord North himself, in which much bitter language was used. Négociations were in progress for the promotion of the attorney-general to the office of chief-justice in the Court of Common Pleas, which office had been promised to the speaker by the Duke of Grafton. Sir Fletcher Norton expressed much dissatisfaction at his being set aside for another, and Lord North denied that he was responsible for the promise of his predecessors. The consequence was that the speaker, from this time, joined the ranks of opposition, and loudly repeated their cries of crown influence, abuse of prerogative, and rights of the people. Being dissatisfied at not having his unjustifiable demands allowed, he suddenly turned patriot, so that if he lost, the people might congratulate themselves at having an advocate for once sitting in the speaker’s chair of the house of commons.

DEBATES ON THE INCREASE OF CROWN INFLUENCE.

During the above debates county petitions were daily laid before the house, and by the month of April the speaker’s table was almost buried beneath them. They were ordered to be taken into consideration by a committee of the whole house, and on the 6th of April a great public meeting was held at Westminster, with the advice and concurrence of the corresponding committee in the other parts of the kingdom, and with the avowed intention of giving weight to these petitions. On the same evening the house resolved itself into a committee, and Mr. Dunning moved his celebrated resolution, “That the influence of the crown had increased, was increasing, and ought

to be diminished.” Dunning remarked, that all the petitions agreed in one great fundamental point; namely, that limits ought to be set to the alarming influence of the crown, and to the expenditure of the public money by means of which that influence had been obtained. He then exhibited, in a continued series, the history and philosophy of constitutional law, and animadverted on measures which endangered British rights and liberties in former years. Afterwards he drew a highly-coloured and exaggerated picture of the conduct of present ministers, and endeavoured to show that it tended to produce similar mischiefs to those which had been produced by the counsels of the House of Stuart. In particular, he criticised the conduct of ministers with regard to Burke’s economical plan of reform, which, he said, they were reducing to a nullity—to a thing naked and shorn, and useless to the country; and he expressed a hope that the people of England would resent the insults they had received from men who added mockery and contempt to oppression and neglect. Those who supported Dunning maintained that it was solely through the corrupt influence of the crown that Lord North had retained his office so long; that his sole occupation for years past had been to frame excuses and expedients, in order to procure supplies from year to year; and that he had neither method in his financial department, nor any comprehensive scheme of any kind. The speaker, less convinced by the eloquent pleadings of the petitions before him, than by his recent disappointment, took part with the opposition. He insisted strongly on the exorbitant power of the crown, and the increase of corrupt influence; and contended, that it was the duty of the house to attend to the demands of the petitioners. The effect which the arguments of the opposition had upon the country gentlemen was so great that ministers became alarmed. The lord-advocate of Scotland, Mr. Dundas, attempted therefore to stifle inquiry, by moving, that the speaker do leave the chair; and this failing, Lord North rose to defend his own conduct. He spoke at considerable length, and in the course of his speech declared that he was ready to retire from office whenever his sovereign and the people desired it; adding, that if he had continued so long in office, it was because the country had no faith in the wisdom and patriotism of his opponents. His speech seemed to be lost to the members of the house, and Mr. Dundas rose again to his rescue, proposing this time, as an amendment to the original proposition, the prefix of the words, “That it is now necessary to declare.” This was carried by a majority of eighteen; and Mr. Dunning, pursuing his success, proposed and carried a second proposition—namely, “That it was competent to the house to examine into and to correct abuses in the expenditure of the civil list revenues, as well as every other branch of the public revenue, whenever it should seem expedient to that house.” A third motion, strongly opposed to ministers, was also carried by Mr. Thomas Pitt, which set forth “that it was the duty of the house to provide immediate and effectual redress of the abuses complained of in the petitions.” Nor was the minister permitted yet to retire to his peaceful slumber. Fox moved, that the three resolutions should be immediately reported; and though Lord North contended that this was unusual, violent, and arbitrary, the resolutions and reports were severally reported and received, and were agreed to and passed by the house without a division.

Elated by success, on the 10th of April, the committee being reassembled, Mr. Dunning continued his attack. He moved, “That in order to secure the independence

of parliament and obviate all suspicion of its purity, the proper officer should lay before the house, within seven days after the meeting of parliament, every session, an account of all monies paid out of the civil list, or any part of the public revenue, to, or for the use of, or in trust for any member of parliament." This, though opposed by ministers, was carried; and Dunning then moved, "that the persons holding the offices of treasurer of the chamber, treasurer of the household, cofferer of the household, comptroller of the household, master of the household, clerks of the green cloth and their deputies, should be rendered incapable of sitting in the house of commons." This motion produced a long and earnest debate, but it was carried by a majority of two, the numbers being two hundred and fifteen against two hundred and thirteen. Thus far the opposition had been triumphant: three days after, however, they were doomed to receive a check. A bill, brought in by Mr. Crewe, for excluding all revenue-officers from voting at elections of members of parliament, was rejected by a considerable majority. Business was now interrupted for ten days, by the sudden illness of the speaker; and when the house reassembled the sentiments of members were found to have undergone a change. On the 24th of April, Dunning moved for an address to the king, deprecating "the dissolution or prorogation of parliament before proper measures were adopted to fulfil the objects of the petitions." This motion, which was warmly and eloquently supported by the mover, and Burke, and Fox, was rejected by a majority of fifty-one; the numbers being two hundred and fifty-four against two hundred and three. Enraged at this sudden and unexpected check, Mr. Fox rose to reprobate the conduct of those members who had receded from the solemn engagements into which they had so recently entered. A rude roar of voices was raised to put him down, but Fox would not be silenced; and his friends appealed to the chair to stop by its authority the disgraceful disorder. Silence being imposed on every tongue in the house by the speaker, Fox then delivered one of the severest philippics that was ever delivered within the walls of the house of commons. The vote of that night, said the impassioned orator, was scandalous, disgraceful, and treacherous: it was impossible to contemplate without surprise and indignation, the conduct of men, who, after resolving that the influence of the crown was increased, and ought to be diminished—that the grievances of the people ought to be redressed—and who had pledged themselves to that house, the nation, and their constituents, to redress the grievances complained of, now shamefully fled from their solemn engagement. It was not against ministers and their friends that he lodged this complaint, he remarked: it was against the men who sat on his side of the house, and who had voted with him on the 6th of April. As for the ministerial phalanx, he observed, he held them in the greatest contempt. They were slaves of the worst kind, because they had sold themselves to work mischief. Yet, base as they were, they had some virtues to pride themselves on. They were faithful to their leader, consistent in their conduct, and had not added to their other demerits the absurdity and treachery of one day resolving an opinion to be true, and the next day declaring it to be a falsehood. They had neither deceived their patrons, their friends, nor their country with false hopes and delusive promises. Dunning spoke after Fox, and declared that the division of that night was decisive as to the petitions of the people: it amounted to a total rejection of their general and ardent prayer, and that all hope of obtaining redress for the people from that house was at an end. Lord North replied in a long

speech, in which he endeavoured to throw a protecting shield over those who had subjected themselves to Fox’s reproaches, and to show that Dunning’s fears were unfounded. The resolutions of the 6th of April, he said, were still in existence, and that other measures might be proposed on them in which those who did not approve of the means of redress proposed this day might readily concur. Opposition, however, were evidently of opinion that their cause was lost. Yet, on the 19th of May, Sergeant Adair moved the withholding the grant of any further supplies till the grievances of the people were redressed; and this motion being negatived, a week later Dunning moved, “that the two resolutions passed on the 10th of April, be reported.” A motion, however, from the opposite side of the house, “that the chairman leave the chair,” which amounted to a dissolution of the committee, was carried by one hundred and seventy-seven to one hundred and thirty-four.

Such was the termination of one of the most critical struggles which had occurred in the house of commons during the reign of George III. Out of doors astonishment was expressed on the one hand at the encouragement which Mr. Dunning’s motion received from a large party who had so warmly taken up the American war; and on the other, at the sudden change of sentiment which had taken place among many who had supported that motion. By some historians this change is attributed to influence, corruption, and treachery. The charge, however, is not well founded, for none of these causes could have been at work when they quitted the ranks of ministers to vote with opposition. It seems, therefore, rather to have arisen from the peculiar temper of the times, and to the condition in which the nation was placed at this period. The violence of opposition, also, and their exultation on their triumphs may have had their effects on the minds of the more sober-thinking members of the house: they may have become convinced that the movements of the leaders of opposition, so far from being adopted from a love of their country, had their origin in that bad feeling of human nature—self-interest.

LORD NORTH’S PROPOSAL RESPECTING THE EAST INDIA COMPANY.

On the 23rd of March, Lord North informed the house that the East India Company had made no satisfactory proposals for the renewal of their charter, and he moved that the speaker should give them three years’ notice, as ordered by act of parliament, previous to the dissolution of their monopoly; and that the sum of £4,200,000 due from the public to the company should be paid on the 25th of April, 1783, agreeably to the tenor of the said act. Fox inveighed against this measure, as tending to deprive us of our East Indian as well as our American possessions; but Lord North having represented that a new corporation might be formed, if the company did not offer a fair bargain to the public, his motion was carried without a division.

GENERAL CONWAY’S PLAN OF RECONCILIATION WITH AMERICA.

On the 5th of May, General Conway offered a plan of reconciliation with the American provinces, by removing all just cause of complaint, without acknowledging their independence. This plan, however, neither pleased ministers nor the opposition, and it was rejected by passing to the order of the day.

{GEORGE III. 1780–1781}

POPULAR RAGE AGAINST THE CATHOLICS; RIOTS IN LONDON, ETC.

It has been seen that during the session of the year 1778, that an act was passed for relieving the Roman Catholics from some of the heavier penalties inflicted upon them in the preceding century. This measure did not extend to Scotland, but as the Papists in that country were more oppressed than those in England, and as they had claims upon government and the legislature of the United Kingdom, by their loyalty, &c., it was contemplated by ministers that they should be admitted into the benefits of the Repealing Act. The people of Scotland, however, were not so liberal in sentiment on this subject as the people of England. A cry that Popery was about to be re-established was heard throughout the country; and the Presbyterian preachers made their pulpits ring with warnings and comminations. Associations were formed in various parts of the kingdom to oppose the contemplated concessions, and the votes and resolutions of these associations being published in the newspapers, they gave rise to the spirit of persecution. In the month of January, 1779, copies of the following letter were dropped in every part of the city of Edinburgh:—"Men and brethren, whoever shall find this letter will take it as a warning to meet at Leith Wynd, on Wednesday next, in the evening, to pull down that pillar of Popery lately erected there. Signed, A Protestant. P. S. Please to read this carefully, keep it clean and drop it somewhere else. For king and country. Unity." In a great city, whatever mischief may be set on foot, there will always be found too many volunteers to put it into effect. Thus it was at Edinburgh. This summons was obeyed, and the pillar of Popery, which was the habitation of a Catholic priest with a chapel attached to it, was demolished. Similar scenes occurred in Blackfriars Wynd in Edinburgh, and even the magistrates of that city partook in a great measure of the mob-feeling. They failed to throw the shield of protection around those who were persecuted; and although they finally allayed the popular commotion, by telling the people that the bill for repealing the penal statutes against Papists in Scotland was thrown aside, yet the spirit of persecution was so rampant among them, that the objects of their hatred were obliged to conceal themselves from their view. A similar spirit was displayed at Glasgow, where the mob destroyed the property of a Mr. Bagnal, who was suspected of Popery, and drove him and his family from their houses. The popular violence in all parts of Scotland, indeed, was of such a nature as to compel ministers to forego their intention of bringing forth a bill for the relief of the Roman Catholics of that country, until at least it should have somewhat subsided. But this success of the Scotch associations and mobs, unfortunately led to a similar display of the spirit of persecution in England.

It was thought by some who were adverse to the measure passed in 1778, that by efforts equally vigorous on this side of the Tweed as on the other, its total repeal might be procured. Accordingly, a Protestant Association was formed, which, like the associations for economical reforms, had its ramifications, its committees, and its correspondents in all parts of England. The president of this association was Lord George Gordon, brother of the Duke of Gordon, who had effectually aided and abetted the riots in Scotland. Of all men in the world Lord George Gordon was the

most unfit to preside over a Protestant Association. He was a member of parliament it is true, but he was chiefly remarkable there for his eccentric habits, slovenly dress, and by a progressive insanity, which on some occasions partook of the nature of oratorical inspiration. He was, however, known to be firm in his hatred towards the Papists, and adverse to any relief being afforded to them. Thus, in May, 1779, when Burke presented his petition in favour of toleration, he moved that it should be thrown over the table! At the same time, he declared, that every man in Scotland, except a few Papists, was ripe for insurrection, and would die rather than submit. After he was made head of the Protestant Association his violence seems to have increased. Thus, in the beginning of the present session, he declared that the king was a Papist; and on one occasion he said that he would present a petition long enough to reach from the speaker's chair to the centre window at Whitehall, out of which Charles I. had walked to his execution! The grand aim of the Protestant Association was, indeed, to get up a monster petition, in order to procure the repeal of the late concessions to the Roman Catholics, This was the creature of Lord George Gordon's own brain. Having presented several anti-Catholic petitions from the county of Kent, he made it his business to get up a similar petition from the good citizens of London, which he considered might have the effect of overawing ministers; and procuring the repeal of the obnoxious act. Aided by the heads of the Protestant Association, he canvassed the capital and the neighbourhood; and by his exertions he quickly obtained 120,000 signatures to his petition. These signatures were chiefly the handwriting or _marks_ of men of the lower orders of society, and who were as far from being Protestants as they were from being Papists. And this may also be asserted of many members of the Protestant Association. Some well-meaning people may have enrolled their names as members, but it is certain that for the most part they were men regardless of the profession of religion. Moreover, it is clear that the principles of the Protestant Association were rather of a political than of a religious nature; or, at all events, it is certain that politics mingled themselves in the question. There is no doubt, however, that Lord George Gordon himself was a dangerous fanatic; the more so, because his station in life gave him influence among the rude and ignorant multitude. This was his character before he became president of the Protestant Association, and it became still more evident as his popularity increased. His inflammatory harangues were printed, published, and scattered far and wide; and the people were told by him, that if they were not content to run all hazards with him, they must look out for another leader. After he had succeeded in getting up his monster-petition he put them, indeed, to the test. In presenting it to the house of commons, he said he expected to be backed by a host of good Christians; and that he would not present it at all unless he was attended by at least 20,000 men. Having made this declaration, Lord George appointed St. George's Fields as the place of meeting, and pointed out the lines of march they were to pursue, in order to concentrate in front of the houses of parliament. Their distinctive badge was to be a blue cockade, and their cry, "No Popery!" The day appointed for them to meet was on the 2nd of June, on which day Lord George had previously informed the house that he meant to present a petition, and to come down to the house with all those who had signed it. Such a stouthearted champion could not be left in the field alone; so accordingly on the day appointed some 60,000 petitioners and associaters met

according to his directions. They were divided into four companies, one of them being entirely composed of Scotchmen; and after a stirring harangue from Lord George, the several columns struck off by different roads for Westminster. As they proceeded along they were joined by all the knaves and cut-purses of London; and when they assembled before the houses of parliament, and raised the long and loud cry of “No Popery!” the members of the fraternity of thieves picked every pocket into which they could insinuate their hands, and did all they could to create a riot, which would turn to their own advantage. Every avenue to the houses of parliament was blocked up, and as the peers and members of the house of commons arrived, they were compelled to join the cry of “No Popery!” or to submit to insult and ill treatment. Some of the bishops had their gowns torn off their backs, or were otherwise ill-treated; various temporal peers were treated with the greatest indignity; while those members of the commons who were known to have voted for the relief of the Papists, had to take their seats this day minus their outer garments. All this time there was a deafening and incessant roar of “Repeal the Bill!” “No Popery!” “Lord George Gordon!” When Lord George had been in the house some time the mob became more bold. On a sudden they began to thunder at the doors to break them open. Some members threatened Lord George with instant death if the sanctity of the house should be violated by the mob he had collected; and it is said that Mr. Henry Herbert followed him closely with that determination, and that General Murray, a relation to the mad lord, held his sword ready to pass it through him on the first irruption of the mob. None, however, made their appearance; and when something like order was restored, Lord George moved for bringing up and immediately considering the petition. This was seconded by Alderman Bull, and the first proposition was granted as a matter of course, but the second was met by an amendment to put off the consideration for four days. This gave rise to a discussion, during which Lord George went out several times into the lobby and harangued the multitude, encouraging them to persevere, inasmuch as terror would be sure to induce the king and his ministers to grant the prayer of their petition. On his return into the house, after one of these harangues, Colonel Holroyd took hold of his lordship, saying, that hitherto he had imputed his conduct to madness, but that he found there was more malice than madness in it; and that if he proceeded to the lobby again, he would immediately move for his commitment to Newgate. At the same time Holroyd called upon him to remove the blue cockade from his hat. Lord George timidly obeyed the order, and did not venture to go down into the lobby again; contenting himself with addressing the mob from the gallery stairs; denouncing in his harangues from thence the more Popishly inclined members of the house. Their yells and menaces continued, but undeterred by them the house adopted the amendment, six members only voting with Lord George. By this time Mr. Addington, an active Middlesex magistrate, arrived in Palace-yard, with a party of horse and foot guards, and induced the multitude to disperse. But mischief was afloat. In the course of his harangues in the lobby, Lord George had suggested that there was no remedy for them till they had pulled down all the Popish chapels. This was remembered; and as the multitude returned to their homes, the chapel of the Bavarian minister, in Warwick-street, Golden-square; and the chapel of the Sardinian ambassador, in Duke-street, Lincoln’s-inn-fields, were burnt to the ground. The military were ordered out and some rioters were apprehended, while the rest

went home to rest. The next day, Saturday, passed off quietly; but a discussion. took place in the lords, in which some sentiments were uttered by the Duke of Richmond and the Earl of Shelburne, on the subject of the concessions made to the Roman Catholics by a Protestant government, which were well calculated to rekindle the fanatic fire out of doors. These observations arose out of a motion made by Lord Bathurst, who had been roughly handled by the mob on Friday, for an address praying that his majesty would give immediate orders for prosecuting, in the most effectual manner, the authors, abettors, and instruments of the outrages committed both in the vicinity of the houses of parliament and upon the houses and chapels of the foreign ministers. This motion was agreed to, and the peers returned home in safety to their mansions. Late that night, however, or early on Sunday morning, a mob assembled in Moorfields, where they did much mischief to the Catholics living in that neighbourhood: a Popish chapel and several houses were pulled down. The military were called out, but as the mob knew that they did not dare fire without the command of the civil power, they were by no means disturbed by their presence. They still continued their work of destruction, while thieves and pick-pockets looked about for plunder. Nothing was done on the Monday for preventing mischief, except the issuing of a proclamation by a privy-council, offering a reward of £500 for those persons who had been concerned in destroying the Sardinian and Bavarian chapels; and the mob, grown bold by impunity, continued their devastations. One party stripped the house of Sir George Saville, in Leicester-fields, of its furniture, and made a bonfire of it before the door; another party regaled Lord George Gordon with a bonfire made of materials brought from Catholic chapels and houses in Moorfields, which they burnt before his house in Welbec-street; a third party went to Virginia-lane, Wapping; and a fourth to Nightingale-lane, East Smithfield, where they severally destroyed the Catholic chapels, and committed other outrages. That night London was in the hands of the mob, and fires were seen on every hand; while property to a large amount changed owners. On Tuesday, which was the day appointed for the consideration of the petition, the mob again concentrated before the houses of parliament. Westminster-hall and the avenues to the house were lined with military, horse and foot; but even this precaution was insufficient to protect the members who were bold enough to attend to their parliamentary duty from insult and outrage. Lord Sandwich was dragged from his carriage, which was broken to pieces, and would have been killed if he had not been rescued by a magistrate, at the head of a small party of light-horse. At this time most of the rabble had oaken sticks in their hands, as well as blue cockades in their hats; and some had even banners, on which were inscribed their watchword, “No Popery!” This was also chalked on the carriages of all the lords and members as they went down to the house. An attempt was made to disperse the rioters, and as the crowd gave way, one of the ringleaders called upon them to repair to the magistrate’s house who took the lead in dispersing them, and this was soon pulled down. By this time the members of the commons had taken into consideration the petition which was the forerunner of all these riots. Lord George Gordon, who, dreading the effects of his madness, had issued handbills in the name of the Protestant Association, to disavow the riots, was in the house, and some talk occurred about expelling him, and committing him to the Tower. All that was done, however, was to agree to a resolution, “That when the present tumults were

subsided, they would take into consideration the petitions from many of his majesty's Protestant subjects." This had been no sooner done than dreadful news arrived from the city, and the house adjourned in haste and confusion. The mob had proceeded from St. Martin's-street, where the house of the magistrate which they had demolished was situate, to Newgate, declaring that they would release their brother rioters. The prison was accordingly fired, and more than three hundred ruffians were liberated, and joined in the work of desolation. The houses of Sir John Fielding and Lord Mansfield were the next objects of their attack; and the furniture, the books, the paintings, the papers, and everything that was valuable therein were destroyed. And here the true character of the mob displayed itself. It is manifest, indeed, that none of the real members of the Association took part in these outrages, but that they were committed by men who cared more for a pot of good ale and a glass of gin than for the Protestant interest. Hence, their first object, when they had entered the houses of Sir John Fielding and Lord Mansfield, was the wine-cellars. They drank till they were raving mad! It was in this state that they were found by a detachment of foot-guards in and opposite the house of Lord Mansfield. The officer who commanded them was requested to enter the house with his men; but he replied, that the justices of the peace had all run away; and that consequently it was impossible for the military to act. The spirit of mischief, therefore, was permitted to work at its pleasure. The new prison at Clerkenwell next shared the fate of Newgate, and all the felons and other prisoners there let loose upon society; their first impulse being to join the mob, to increase the havock, and to plunder, burn, drink, and destroy. During the night many houses were plundered or destroyed; the madness of the mob increasing at every new success, by the liquors which they procured from the cellars. A magistrate was at length found who would act, but it was then too late, as drink had rendered the mob insensible to danger. A recent writer remarks:—"During the time that was lost in seeking for a magistrate who would act, the fury of the mob was increased to such a pitch by the liquor they had drank, that, when the soldiers at last fired, even the sight of their companions falling dead beside them produced little or no effect.... It was when they were in this state—careless of what befel them, and almost unconscious of what they were doing, that the authorities, hitherto so patient, for the first time determined to use force against them.... The scene here altogether appears to have been terrific in the extreme. The violence and ferocity of the ruffians, armed with sledge-hammers and other instruments of destruction, who burst into the houses—the savage shouts of the surrounding multitude—the wholesale desolation—the row of bonfires blazing in the street, heaped with the contents of the sacked mansion, with splendid furniture, books, pictures, and manuscripts which were irreparable—the drunken wretches staggering or reeling against each other, or rolling on the ground—the peeling of the musketry, followed the next instant by the screams of the wounded and the dying, and the roar of vengeance from ten thousand throats—soon after this, the fires lighted in every room, and finally, the flames rushing upwards from windows and roof in one magnificent conflagration:—all these may well be conceived to have formed a picture, or rather a succession of pictures, which thus exhibited under the dark sky of midnight, would seem hardly of this world." This has reference to a scene which occurred at the house of Lord Mansfield, where some of the mob were still collected, when a magistrate was found willing to

act. But no force was yet sufficient to quell the riot. On the following day the scenes which took place were still more dreadful. The mob were completely triumphant, and all householders who did not hang bits of blue silk out by way of flags, and omitted to chalk the words “No Popery” on the doors and shutters of their houses, were exposed to their vengeance. Some even who were not Papists were this day plundered and ill-treated; all distinctions being set aside by some of the rioters, which is another evidence of the character of the mob. Some fellows marched through the town extorting money from every one they met, whether Papist or Protestant; and one ruffian, mounted on a horse, would take nothing but gold. Other parties were employed in pulling down the prisons, and before night not a prison was left standing, except the Poultry Compter. An attack was made on the Bank of England by others, but here they were repulsed by a strong body of soldiers, who killed many and wounded others. But the great centre of mischief was Holborn. Here a Mr. Langdale was doubly exposed as a Papist and as a great distiller. His premises were fired, and everything was destroyed, except the liquors which were drunk by the rioters; many of whom literally killed themselves with drinking, while others too drunk to move out of the reach of danger perished in the flames which their own hands had kindled. A writer of the period says:—“Powder and ball do not seem to have been so fatal to them as their own inordinate appetites. Numbers, it is said, and at various places, died of inebriation; especially at the distilleries of the unfortunate Mr. Langdale. In the streets men were seen lying upon bulks and stalls and at the doors of empty houses, drunk to a state of insensibility and to a contempt of danger; boys and women were in the same condition, and many of the latter with infants in their arms.” Men, women, and children were at one time seen on their knees drinking ardent spirits, as they flowed down the kennel of the street in Holborn. Thus maddened, who can wonder at the excesses which followed? Thirty-six fires were seen on this night blazing in different quarters of the great metropolis, and nothing but the serenity of the night saved it from destruction. The panic was universal. Persons were seen on every hand removing their goods, as none could tell but that they might be destroyed by the merciless mob; or if a wind should suddenly spring up, by the devouring element. At the same time the dreadful reports of soldiers’ muskets were heard, mingled with the terrific cries of the infuriated and countless rabble. None could sleep in their beds on that night: the streets swarmed with people, and uproar, confusion, and terror reigned on every hand. Some of the citizens, however, possessing more nerve than others, formed themselves into associations and acted with the soldiers. And wherever the troops appeared there was nothing like a determined resistance made by the rabble. Thus, at Blackfriars-bridge, where the mob had set fire to the toll-gates, they were driven away like a scared flock of sheep by the soldiers, and some even threw themselves over the bridge into the Thames, in order to escape from the fire of their muskets. The only place in the morning where the mob was not dispersed was in the neighbourhood of the Fleet-prison, which was still in flames; and when the soldiers charged their muskets right into the crowd they fled in all directions. In the course of Thursday various encounters took place, and some lives were lost; but before night the rabble had melted away, and tranquillity was restored. Men had wondered whence the rabble came, and now they wondered whither they could be gone. The return of killed made to Lord Amherst,

commander-in-chief, amounted to two hundred and ten, and of wounded to two hundred and forty-eight, but many had been removed by their friends, so that the exact number could not be ascertained: moreover, it could never be known how many perished from drinking ardent and unrectified spirits, and in the flames, from which inebriety made it impossible for them to escape.

MEASURES ADOPTED BY PARLIAMENT, ARISING OUT OF THE LONDON RIOTS.

The house of commons met on Friday, the 9th of June, but as Westminster was thronged with troops, and the capital had the appearance of being under martial-law, the members adjourned till the 19th. On that day his majesty met both houses, and exhibited a general view of the measures which had been employed during the suspension of regular government. In his speech he stated that he had directed copies of the proclamations which had been issued to be laid before parliament; and he concluded by declaring that it was his first duty and chief glory to maintain and preserve the established religion. The common danger seems to have had the effect of procuring a greater unanimity in both houses than had been exhibited for many years before. Addresses were carried without opposition; though some members blamed ministers for negligence and delay, and for not employing the troops sooner. A question was moved in the lords respecting the legality of military interference; which point was accurately examined and constitutionally settled by Lord Mansfield. His lordship said that the late riots amounted to overt acts of high-treason, and were besides accompanied with felonies, as the burning of houses, property, &c., all of which was sufficient legal ground for the king’s proclamation calling out the military. Under such circumstances he said, the military must act with and under the civil power, and that if the soldiers exceeded the powers with which they were invested, they must be tried and punished, not by martial law, but by the laws of the realm. This being the law, he added, it was an ill-founded apprehension that the metropolis was under martial-law, or that the military had more power since the riots than before. The noble lord made one allusion to his own serious losses, which greatly affected all the peers present. He had been obliged, he said, to form his opinions without the aid of books; adding, “indeed I have now no books to consult.” On the following day the house of commons having resolved itself into a committee upon the petitions for repealing Sir George Saville’s tolerating act, which had been made an occasion of so much mischief, adopted five resolutions, on the motion of Mr. Burke, expressing satisfaction in the law as it now-existed, together with an abhorrence of the late tumults, and of the misrepresentations which led to them. Many members, however, thought it necessary to do something to quiet the minds of the petitioners and remove the dread of Popery; and a bill was brought in to deprive Roman Catholics of the right of keeping schools in which there were any Protestant scholars. This bill passed in the commons, but it was rejected by the lords, as carried by the fear of popular outrage, and therefore derogatory to the dignity and independence of parliament. All signs of popular rage had now, however, disappeared; and government had evidently derived an accession of strength out of doors as well as within the walls of parliament. The minds of the public had become impressed with the danger arising from popular assemblies for political purposes; and the associations of reform were therefore deserted by members who had hitherto

supported them. Men found that it was easy to raise the storm of human passion by exciting language; but that it was the most difficult thing in the world to allay it when once lashed into fury.

[Illustration: 147.jpg PORTRAIT OF LORD RODNEY]

PARLIAMENT PROROGUED.

Parliament was prorogued on the 8th of July. In his speech the king dwelt at some length on the recent riots, and thanked parliament for their magnanimity and perseverance for prosecuting the “just and necessary war,” in which the country was engaged. Their exertions, he said, had been attended with success by sea and land, and he trusted that the late important and prosperous turn of affairs in North America would lead to the return of loyalty in the colonists to his person, and to their re-union with their mother-country. The events of the war by this time had given some ground of hope, but in the end it proved illusory.

TRIAL OF LORD GEORGE GORDON AND THE RIOTERS.

Immediately after the riots had subsided, Lord George Gordon was apprehended upon a warrant from the secretary of state, and after a brief examination before several lords of the privy council, was committed to the Tower on a charge of high-treason. While he was immured within the walls of his prison, during the month of July, the vengeance of the law fell upon those of the rioters which had been captured in then lawless depredations. No less than fifty-nine were capitally convicted, and twenty were executed: the rest were transported for life. Lord George was not tried till the month of January, 1781, when he was acquitted; his counsel showing that he was insane, and the jury conceiving that his case did not amount to high-treason. He afterwards gave undoubted proof of his insanity by turning Jew! Finally, he died in Newgate, where he was imprisoned for various libels on foreign potentates.

ADMIRAL RODNEY’S SUCCESS AGAINST THE SPANIARDS.

The opening of this year added to the naval renown of England. As the Spanish persevered in their siege of Gibraltar, and as their treaty with the Barbary States stopped the supplies of provisions, the garrison began to feel the effects of famine, and it was necessary to send them supplies from England. Admiral Rodney, who had recently been appointed to the chief command in the West Indies, was therefore ordered to relieve Gibraltar on his way thither. He had only been a few days at sea when he fell in with a rich Spanish convoy, going from St. Sebastian to Cadiz, and consisting of fifteen merchantmen, four frigates, and three armed vessels; one being a fine new ship of sixty-four guns. These were all captured, and while he took those with him which were laden with wheat, flour, and other provisions, the rest were sent to England. It was expected by the Bourbon cabinets that Rodney would leave his transports in a certain latitude, to make their own way to Gibraltar, and accordingly they ordered Admiral Don Juan de Langara to proceed, with eleven men of war and two frigates, to intercept the supply. Rodney, however, accompanied the transports, and on the 16th of January he encountered the Spanish admiral near Cape St. Vincent. The Don, when he discovered the superior force of the English, endeavoured

to make his escape, but Rodney got between him and the shore, and compelled him to engage. The action commenced in the midst of a rough gale, at four in the afternoon, and in the first hour of the engagement a Spanish ship of the line blew up, and all on board perished. At six in the evening another struck her colours, and by two the next morning the Phoenix of eighty guns, the Spanish admiral's own ship, and three of seventy guns each were taken and secured. Two more, of seventy guns each, struck their colours, but were driven on shore by the violence of the tempest and lost. The rest of the squadron escaped in a shattered condition to Cadiz. Rodney now proceeded triumphantly to the relief of Gibraltar, and after lying there for some weeks, he proceeded with a part of his fleet to the West Indies, while the remainder, under the command of Admiral Digby, returned to the Channel. On his way home, Digby captured a French ship of the line, and two or three vessels laden with military stores. These successes raised the spirit of the nation, and the name of Rodney especially filled every breast with hope and confidence. The very ministers began to look upon him as the main stay of their power; well knowing that his success would silence the clamours which had so long been raised against them on the ground of incompetency.

{GEORGE III. 1780–1781}

ARMED NEUTRALITY.

The high hopes entertained by the people of England were soon doomed to be modified by the prospect of new enemies, some of whom were more powerful than those already arrayed against their country. At this time a strong combination was formed against England by several powers constituting what is called in history "The Armed Neutrality." The Spanish cabinet claimed the merit of this system; but it would rather appear to have originated with the court of Petersburg, which had been regarded by the ministers as their best ally in this momentous crisis. In consequence of the large shipments of ammunition, and other materials of war, made to the colonies of America by neutral states, England had, from the commencement of the war, exercised the right of stopping and searching all neutral vessels wherever they could be found. England also had acted upon another established principle; namely, that a neutral flag could not cover or protect the cargoes and property of a state with which she was at war, and her cruizers had therefore stopped many vessels having French and American property on board. This, however, involved her in many quarrels with neutral powers, and Russia, Prussia, Denmark, Holland, Sweden, etc. entered into a league, pledging themselves to maintain the principle, "that free ships make free goods, with the exception of arms and munitions of war." About this time, also, the native powers of India entered into a formidable coalition, under French influence, for driving the British from their territories. England had, therefore, almost the whole world arrayed in arms against her, or entertaining hostile intentions towards her, while within her own bosom she was destined to suffer from faction. Never, indeed, was there a period in her history when she so much needed the unanimity and undivided strength of her brave family.

RODNEY ENGAGES THE FRENCH FLEET.

Admiral Rodney arrived at St. Lucie, in the West Indies, on the 27th of March. Here he joined Admiral Hyde Parker, and his fleet then consisted of twenty-two sail of the line and six frigates. Parker had been menaced for several days by the French Admiral de Guichen, who had only quitted that water a few hours before Rodney's arrival. Admiral de Guichen retired to Fort Royal Bay, Martinique, and on the 2nd of April Rodney appeared off that fort, and offered him battle. Finding that the challenge would not be accepted, Rodney, after two days, returned to St, Lucie, leaving some fast-sailing vessels to watch the motions of the French. On the night of the 15th de Guichen put to sea, and Rodney, warned of the fact, went in search of him with twenty sail of the line. The two fleets came in contact on the 17th, and Rodney threw out his signal for every ship to bear down and attack the rear of the French as closely as they could, in order to break their line, and fight their detached ships. The spirit of political party, however, reigned in the fleet, and his signal was not obeyed as it ought to have been, several ships continuing at a cautious distance from the enemy. In the meantime, Rodney in the Sandwich came to close quarters with the French, and having beaten de Guichen's own ship fairly out of the line, and compelled two others to bear away, he succeeded in separating his enemy's fleet into two unequal parts. He was, however, only aided by five or six captains, and the French were allowed time to haul off after their admiral and reform their line; after which de Guichen stood away with the whole fleet under a press of sail, in order to make his escape. The great distance between the British van and rear, and the crippled state of his own ship, prevented Rodney from following; and he was thus stopped short in the career of victory. One of the delinquent captains—Bateman, of the Yarmouth—whose disobedience was more notorious than the rest, was put under arrest, tried by a court-martial, and dismissed the service. This example had the effect of restoring discipline, and Rodney again sought the enemy. On the 20th he again got sight of the French admiral, whose object was to make Fort Royal Bay in Martinique, in order to repair his ships. Rodney cut him off from this port, and de Guichen took shelter under Guadaloupe; when the British fleet returned to St. Lucie to refit and to land the wounded. The hostile fleets again came in sight of each other on the 10th of May, between St. Lucie and Martinique. But it was in vain that Rodney sought to bring the French admiral to an engagement; and the latter having at length got into the long-desired harbour of Fort Royal, the British fleet ran into Barbadoes. At this time the Spanish fleet was expected to join the French; and though Rodney soon sailed from Barbadoes in order to prevent the junction, the cautious Spanish admiral, Don Joseph Solano, contrived to elude his vigilance, and to unite his fleet, consisting of twelve sail of the line, several frigates, and a swarm of transports, with that of de Guichen. Before their united force Rodney was obliged to retire; and he retreated with the sad conviction that the enemy was strong-enough to capture every British island in those seas. The storm, however, which seemed to threaten these islands blew over without pouring its fury upon one of them. The Spaniards had so over-crowded their transports with men, that a terrible sickness broke out among them, destroying first its scores, and then its hundreds daily. The pestilence extended its ravages to the French fleet; and in order to check it, it was agreed to land the troops and part of the seamen at Martinique. Its ravages were arrested; but while at Martinique, hostilities broke out between the French and the Spaniards, and the two

commanders could not agree as to the line of operations to be pursued. Their combined fleets set sail again on the 5th of July, and directed their course to St. Domingo, where they separated; de Guichen returning to Europe with the homeward-bound convoy from the French sugar islands, and Solano proceeding to the Havanah, to assist in the military operations which the Spaniards were carrying on in Florida. All these circumstances saved Jamaica and the other islands in the West Indies; and conscious that they were safe, after detaching a part of his force to Jamaica, Rodney set sail for New York.

EXPEDITION AGAINST SOUTH CAROLINA.

While Rodney was bravely supporting the honour of the British flag on the ocean, the British arms were equally successful on the continent. During the last days of December, Sir Henry Clinton, leaving New York under the care of General Knyphausen, sailed away from Sandy Hook for Charlestown in South Carolina. The ships in which he sailed, however, were driven from their course by a long and terrible storm, so that it was not till the 11th of February that he was enabled to disembark on John’s Island, about thirty miles from Charlestown. Other delays took place; and it was the 29th of March when Clinton’s army crossed Ashby River and landed on Charlestown-neck. Ground was broken in front of the American lines on the 11th of April; but as these lines were formidable, it was evident that some time must elapse before the town could be taken. Thus the Americans had built a chain of redoubts, lines, and batteries right across the peninusular, from Ashby River to Cooper River, on which were mounted eighty cannons and mortars; they had dug a deep canal in front of this line, which was filled with water, and had thrown two rows of abattis, and made a double picketed ditch; in the centre of their works they had erected a kind of citadel, which was bomb-proof; they had erected numerous batteries on the waterside, to prevent the approach of ships; and they had raised a bar or sand-bank, that rendered the approach of our largest ships of war impracticable, and of the smaller craft difficult and dangerous. Within the bar, however, there was a place called Five Fathom Hole, with a sufficient depth of water to float second-rate ships; and here nine American ships were moored, under the American commodore Whipple. Behind the bar and Whipple’s squadron there was Fort Moultrie, upon Sullivan’s Island, which was now much stronger than when, in a previous year, it repulsed Clinton, and cut up Sir Peter Parker’s squadron. Such were the formidable obstacles which Clinton had to surmount before he could hope to capture Charlestown; and, moreover, within the town was the American General Lincoln, at the head of about 7000 men. It was necessary first to take possession of Five Fathom Hole; and accordingly Admiral Arbuthnot, who had escorted Clinton to Charlestown, made the attempt. The American commodore retired before Arbuthnot to Sullivan Island, and then the English were permitted to pass the bar at their leisure. This was effected with great labour, and on the 9th of April Arbuthnot was in full possession of the harbour. Soon after Clinton finished his first parallel, and began to erect his batteries; and then Arbuthnot sailed, passed Fort Moultrie under a heavy fire, and anchoring just without range of the shot from the town batteries, summoned Lincoln to surrender. The American general having replied that he would defend the place to the last extremity, the English batteries were opened, and they soon made a

visible impression. In the meantime Clinton detached Colonel Tarleton against Lincoln’s cavalry, which were placed outside the lines in order to keep the country open beyond Cooper Hiver. Tarleton was successful: the cavalry were surprised at a place called Biggin’s Bridge, and completely routed, leaving behind them all their stores, camp-equipage, and baggage, with some two or three hundred horses. By this victory a passage was opened across the head of Cooper River, and a detachment was sent under the command of Earl Cornwallis to scour the country beyond that river. All supplies were thus cut off from Charlestown, as well as all hope of retreat for Lincoln and his garrison. A council of war was called, and Lincoln offered to surrender upon certain conditions; but as Clinton considered them too favourable, they were rejected. The British now continued their approaches; a second parallel was completed by the 20th of April, and a third by the 6th of May. On this latter day the garrison of Fort Moultrie, on Sullivan Island, surrendered to Captain Hudson of the navy; and on the same day the broken remains of Lincoln’s cavalry, which had been recollected, were again routed by Tarleton. Clinton’s third parallel was erected close to the canal; and this canal was drained by means of another excavation. Consternation and despair seized upon the inhabitants of the town, but still Lincoln and the garrison resolved to hold out. Hostilities were recommenced with additional fury, and an incessant fire was kept up for two days, in the midst of which the besiegers advanced to the very ditch, and drove the Americans from several of their guns. At length, at the prayer of the terrified inhabitants, Lincoln resolved to accept the terms which Clinton had offered before the last assault. A flag of truce was sent out by him, and Clinton instantly signed the capitulation. Between 6000 and 7000 men, consisting of regular troops, militia, and sailors became prisoners of war; and four hundred pieces of ordnance, and a large quantity of naval stores fell into the hands of the victors. The garrison were allowed some of the honours of war: they were to march out and deposit their arms between the canal and the lines; but the drums were not to beat a British march, nor were the colours to be reversed. The militia were to return home upon parole, and the citizens were to be considered prisoners on parole; but their property was to be respected so long as they kept their word. As for the officers of both army and navy they were to retain their swords, pistols, servants, and baggage, the latter of which was not to be searched. The town was taken possession of by the British on the 12th of May; and General Clinton set on foot several expeditions, calculated to extinguish every idea of resistance in the interior of the province. At the same time he issued proclamations for the purpose of conciliating the inhabitants. These measures seemed to produce the desired effect. The only body of troops that still held out was defeated by Colonel Tarleton, and the people in every part of South Carolina seemed to submit to King George. In this happy state of affairs, Clinton, on the 5th of June, embarked for New York, leaving Lord Cornwallis behind him with 4000 men, to maintain the acquisition, and to penetrate into North Carolina, so soon as the intense heat of the season and other circumstances should admit of such an enterprise.

BATTLE OF CAMDEN, ETC.

The loyalty of the people of South Carolina was like a morning cloud; it soon passed away. It was not long before they began to manifest a change of disposition.

Those who had accepted protection, because they could not help themselves, manifested their antipathy to the British government; while those who were in heart favourable to the cause of King George, were indignant at seeing the disloyal part of the community enjoying immunities and advantages, which they would employ against the English on the first opportunity. The disaffected were encouraged by the hope of speedy aid from Virginia and by congress, who were resolved to make the most strenuous efforts to recover South Carolina. At length, therefore, treachery began openly to show itself. One Lisle, who had taken the oath of allegiance, and obtained rank and command, went over to the republicans with a battalion of militia, well equipped with arms and ammunition. A similar instance of treachery also occurred in another part of the province, where a colonel of militia, who was entrusted with the escort of some sick and wounded soldiers, carried them into North Carolina, and gave them up to Baron de Kalb, a German, who was at the head of some regular troops, and of 3000 militia. Kalb was appointed to drive the royalists out of the country in North Carolina, and to encourage the disaffected in South Carolina. He was soon joined by General Gates, whom congress sent to take the supreme command of the American forces. On his arrival, Gates having 6000 men under his command, prepared at once to drive the British from their line of posts across the state of South Carolina, and carry the war up to the very walls of Charlestown. Intelligence of these preparations induced Lord Cornwallis to repair to Camden, though his effective force did not exceed 2000 men. After some skirmishing, and two attacks on detached positions, conducted by Colonel Sumter, and both unsuccessful, Gates moved forward to Camden, in the full assurance of victory. Having received intelligence of this, Lord Cornwallis, instead of retreating or waiting to receive Gates, set out in the dead of the night to meet him. The advanced parties met in the woods at two o’clock in the morning, and a Maryland regiment was defeated; but after this temporary conflict both armies betook themselves to rest, and waited for the morning light. When the morning dawned, Cornwallis discovered that the ground which he occupied was exceedingly favourable for an action; his flanks being secured by two swamps, which narrowed the ground in his front by which Gates must advance. He formed in two lines: the first consisting of two divisions under Lord Rawdon and Colonel Webster, and the second consisting of the seventy-first regiment, and some squadrons of horse under his Own command. The arrangement of the enemy was similar; but Gates made some disposition on the left, as if intending to change his position, and Lord Cornwallis seizing the critical moment, ordered Webster to advance and charge the enemy on their left. This division was chiefly composed of Virginia militia, and as Webster advanced they threw down their loaded muskets and fled from the field. Their example was soon followed by the North Carolina division, which formed the centre of Gates’s army. Gates now brought up his second line, or reserve, and endeavoured to rally his militia. It was all in vain; the reserve corps were utterly routed, and the militiamen ran for their lives into the woods. Gates, aware that all was lost, fled with a few friends to Charlotte, about eighty miles off; and in this battle he lost nearly nine hundred slain, among whom was Baron de Kalb, and about 1000 were taken prisoners, he also lost all his baggage and camp-equipage, many stands of colours, seven pieces of cannon, and one hundred and fifty waggons, containing a large quantity of military stores and provisions. The English lost about

three hundred and fifty men in killed and wounded, nearly all belonging to the regiment under Webster, and the Irish volunteers under Lord Rawdon, who had borne the chief weight of the action. This victory was followed by another. At this time Colonel Sumter was on the other side of the Wateree, with the intention of striking into the heart of South Carolina, and Tarleton, with some cavalry and mounted infantry, was dispatched against him. Sumter, warned of Gates's disaster, had already began a retreat towards North Carolina, when he was overtaken by Tarleton near the Catawba Fords, where his corps were almost annihilated. He lost one hundred and fifty men killed, three hundred prisoners, and an immense quantity of arms and military stores: two hundred and fifty British prisoners were also recaptured. Thus victorious, Lord Cornwallis again sent emissaries into North Carolina, to assure the royalists there, that he would march into their country as soon as he received necessary supplies from Charlestown. In the meantime, as lenity had not disarmed the hostility of the disloyal, he gave some examples of severity. He sequestered the estates of all those who had broken their parole or their oath, and who had left the province; denounced death against those who, after receiving British protection, should desert; and executed some of the South Carolina militia, whom he had taken in arms near Camden, with British protection in their pockets. Cornwallis then marched into North Carolina, and he took possession of Charlottetown; but hearing of the defeat of a body of loyal militia, under Major Ferguson, who were attacked at King's Mountain by 1000 backwoodsmen, he retreated to South Carolina, and deferred the prosecution of his enterprise till reinforcements should arrive from New York. He took up a position between Camden and the district of Ninety-Six, where he waited for the arrival of General Leslie, who had been detached by Sir Henry Clinton to penetrate into Virginia, in order to co-operate with Cornwallis. Leslie was afterwards ordered round by sea to Charlestown; and while Cornwallis was waiting for him, Tarleton with his flying column drove back an enterprising partizan, named Marion, and again defeated his old adversary, Sumter. Meanwhile congress, though greatly dejected by these reverses, had appointed General Greene to supersede Gates, Greene arrived at Charlottetown on the 2nd of December; but he found himself in no condition to advance into South Carolina; and as Cornwallis had not yet been reinforced, no further events transpired in the south during this campaign.

AFFAIRS AT NEW YORK.

On the side of New York, during this year, a variety of petty enterprises were undertaken. While Sir Henry Clinton was absent, Knyphausen was at first occupied in making preparations for the defence of that city? for, by the extreme severity of the winter, New York was deprived of that natural defence which arises from its insular situation. The Hudson, called the North River, was so completely covered with thick ice that a large army, with heavy artillery and baggage, might have crossed it with ease, and by that means have approached the very walls of the city. Knyphausen expected that Washington would avail himself of this circumstance to attack with his whole force, and therefore he adopted judicious measures for the city's protection. Washington, however, was not in a condition to attempt anything so bold and important. His army had been weakened by draughts made upon it for the service of

the south; he had scarcely any provisions or clothing for his men in the camp; and not only discontent but open mutiny had begun to manifest itself. Hence Knyphausen was secure from danger, though, in the month of January, Washington detached Lord Stirling to Staten Island, to act on the offensive. Stirling crossed over the ice from the Jersey shore, surprised a small post, and took some prisoners; but he was obliged to quit the island, and in his retreat lost some of his own men, who served to exchange for the prisoners he had taken. This expedition was followed by another on the part of the British, to drive the Americans from a post at Young's House, in the neighbourhood of the White Plains, which was attended with greater success. The post was stormed and carried; forty of the enemy were killed, and about one hundred taken prisoners. Nothing further was attempted by Knyphausen during the continuance of the frost; but in the month of June, encouraged by the weakness and distress which still prevailed in Washington's camp, he detached a considerable force, under Brigadiers Mathew and Stirling, to make an attempt to re-establish the ancient government in New Jersey. Mathew and Stirling marched up the country towards Springfield, but they were disappointed in their expectation of the people joining them, and were obliged to retreat to Elizabethtown. A few days after this Sir Henry Clinton arrived from Charlestown, and though he did not approve of the movement which Knyphausen had ordered, as the soldiers were at Elizabethtown, and as Washington had come down to the hills near Springfield to protect the Jerseys, he resolved to attempt to bring him to action. Mistaking some of the movements made by the British, Washington marched towards Pompton to defend West Point, and in his absence Sir Henry Clinton defeated General Greene, who was left at Springfield for its protection, and reduced the town to ashes. Washington, however, could not be brought to action, and Clinton, expecting the arrival of the French armament, returned in haste to New York. In the meantime, Lafayette, who had returned to France to quicken the exertions of his countrymen, presented himself in the American camp, with a promise from his sovereign of speedy assistance. Encouraged by this promise, congress, who had recently neglected Washington's army, probably from the feelings of despair, made an extraordinary effort to give his troops some appearance of respectability before the arrival of their French allies. These allies arrived in July at Rhode Island, and they amounted to 6000 veteran troops. They were commanded by the Count de Rochambeau, an experienced officer, who had fought in the battle of Minden; but in order to obviate all quarrels about rank and precedence, Washington received a commission from the French monarch, appointing him lieutenant-general in the French armies, and investing him with the chief command in America. No precaution, however, could prevent the French and Americans from quarrelling with each other. The Americans complained that the French had come too late in the season to do any good, and the French complained, that on their arrival the American army were not ready to co-operate. Washington suggested an immediate attack upon New York; but this could not be attempted without a decided superiority at sea, and before any thing could be done, the arrival of Admiral Graves at Sanely Hook gave the superiority to the British. This determined Sir Henry Clinton to act upon the offensive. The French fleet which had brought the troops from France lay at Newport, and Sir Henry proposed to Admiral Arbuthnot a plan for attacking this fleet, while the troops proceeded up to the Sound to co-operate

by land. Hoping to meet the enemy at sea, Arbuthnot deferred his co-operation till the enemy had strongly fortified their position, and then it was too late. Clinton proceeded with 8000 men to Huntingdon Bay, on Long Island; but Washington, having received reinforcements, crossed the North River, and rapidly advancing towards Kingsbridge, put a stop to their enterprise.

TREASON OF ARNOLD, AND FATE OF MAJOR ANDRE.

It had been expected by the French and American commanders that they would soon be joined by de Guichen, with a land-force and twenty ships of the line from the West Indies. Had their expectations been realized, it was resolved to attack New York in every direction, with irresistible fury. About this time however, intelligence arrived of de Guichen's departure for Europe, and of the consequent naval superiority of the British. Thus frustrated in their designs, Washington and Rochambeau held a meeting midway between their respective camps, to concert new measures. While Washington was absent upon this service, General Arnold, who commanded a considerable body of troops at West Point, on the New River, and who had recently entered into a secret correspondence with Sir Henry Clinton for delivering up that important post to the British, requested that a confidential person might be sent to him, in order to adjust the business, and to carry it into effect without delay. The officer charged with this commission was Major André, a young man of spirit and undaunted courage, and in whom General Clinton reposed unlimited confidence. Major Andre had a secret interview with Arnold, and matters were arranged by them for the defection, but as he was returning in disguise he was taken by three men of the New York militia, and on examination the papers found upon him discovered all the particulars of the conspiracy. By some means or other—but how is not sufficiently clear—Arnold received intelligence of Andre's capture in time to make his escape to New York, where, on his arrival, he received the commission of a brigadier-general in the British service. Major André had hitherto passed himself off as one John Anderson, but when he found that Arnold was safe, he announced his name and rank; and with more anxiety for his military honour than for his life, he wrote a letter to Washington, to secure himself from the imputation of having assumed the character of a spy for treacherous purposes or self-interest. His letter concluded with expressions of confidence in the generosity of Washington's mind; but he soon found that his confidence was misplaced; that Washington was an implacable judge. A board of general officers was appointed to inquire into his case, and notwithstanding the solicitations and menaces of Sir Henry Clinton, who anxiously sought to save him, he was condemned to die an ignominious death. He died on a gibbet on the 2nd of October! His death is one of the blackest stains on the character of Washington; for his obduracy alone prevented the mitigation of the punishment. In vain was it represented to him that Sir Henry Clinton, and his predecessor Sir William Howe, had never put to death any person for a breach of the rules of war: in vain was it shown that Captain Robinson of the American army, who had been taken as a spy by the British, had recently been exchanged as a prisoner of war; and in vain did Arnold, through whose plots he had been captured, plead by letter for his life—Washington was obdurate still, and left his victim to perish by the hands of the common hangman! And yet this obdurate commander-in-chief of the Americans professed to commiserate

his victim's fate; and applauded the fortitude with which he met his death: but so did others of the American generals, and yet all the while kept twisting the rope that was to hang him! The same may be said of Lafayette. He also praised his courage, frankness, and delicacy, and "lamented his fate," and yet did nothing to avert his doom. How much more nobly did Sir Henry Clinton act on this trying occasion. Although he had yet many Americans in his power, and although he had held out a threat that if André should perish, they should perish likewise, yet no reprisals were made; not one in his power was condemned by a military tribunal for their flagrant, and in some instances repeated breaches of the rules of war. Yet Washington seems to have considered that he had only acted in the character of a just judge. He could imagine that Arnold was undergoing "the torments of a mental hell," for the part he had acted in this transaction, but he felt no compunction for his own unjust and uncalled-for severity—he could see the mote in Arnold's eye, but could not discover the beam which was in his own. As regards Arnold he was probably correct. After the death of André that renegade issued addresses to the Americans, but he was scorned and unheeded; and he was employed during the remainder of the war, but he was shunned by the British officers, and although the British soldiers on guard were bound to salute his uniform and respect his rank, yet they whispered as he passed along, "There goes the traitor Arnold!" The death of André is the last recorded act in this campaign. All the belligerents went early into winter-quarters; and with the exception of a few foraging expeditions, Clinton's army remained at New York and its dependencies during winter doing nothing; while Washington continued to occupy his old station on the high lands above the Hudson, and the French troops under Rochambeau, staid at Rhode Island, all being equally inactive. About the same time that the troops went into winter-quarters. Admiral Rodney left the American shores, and returned to his old station in the West Indies.

{GEORGE III. 1780–1781}

MARITIME LOSSES SUSTAINED BY THE BRITISH.

In the European seas British commerce suffered some blows during this year, which spread a gloom over the whole nation. Admiral Geary, who on the death of Sir Charles Hardy in May, had been appointed to the command of the fleet in the Channel, captured, in the beginning of July, twelve French merchantmen from Port-au-Prince; but while he proceeded southward, in hopes of falling in with a detached squadron of French and Spanish ships, of which he had received intelligence, and was cruizing off Cape Finisterre, a rich convoy for the East and West Indies, attended by the Ramillies and two frigates, were intercepted by the combined fleets of the enemy, and nearly fifty merchant ships were captured and carried into Cadiz. Many of these ships were laden with naval and military stores for the different settlements to which they were destined; and the loss of these, together with that of 3000 men taken prisoners on board, so increased public dissatisfaction at the mode of employing the Channel-fleet, that Geary soon afterwards resigned the command. But this was not the only disaster which the English met with on the seas during this year. About the same time, fourteen ships of the outward-bound Quebec fleet were

captured by some American privateers off the banks of Newfoundland. These concurrent losses, in their nearer or more remote consequences, affected all classes of society.

WAR WITH HOLLAND.

It has been seen that Holland was one of those states which entered into the league called “The Armed Neutrality.” From the very commencement of the American war, the Dutch had secretely favoured the cause of the colonists; or at least had sought a commercial advantage in supplying some of their wants at the expense of the commerce and interests of England. Then again, after the interference of France and Spain in the quarrel, the ports of Holland were open equally to all the enemies of Great Britain; the advantages of a contraband trade making the Dutch regardless of the faith of treaties, and of every other consideration. Remonstrances were made on this subject by the British ambassador at the Hague, but without effect. The States General were determined to follow their own line of policy, and the breach thus made between the two countries gradually widened as the war with America progressed. It was easy to foresee, indeed, that sooner or later Holland would be joined to the long list of our open enemies. An event which occurred early in September of this year, led to such a consummation. At that time a congress packet was taken by the Vestal frigate off the banks of Newfoundland, as it was steering its course towards Holland. On board this packet was Henry Laurens, the late president of congress; who, as soon as he perceived that he should be captured, threw a box containing papers overboard. The lead which was attached to this box was not sufficiently heavy to sink it immediately, and a British sailor leaped into the sea and caught it as it was sinking. The papers which it contained were found to contain a treaty of amity and commerce between the republic of Holland and the States of America, some articles of which had been provisionally agreed to and signed two years before at Aix-la-Chapelle, by William Lee, agent for congress, and John de Neufville, a merchant of Amsterdam, acting under powers delegated to him by Van Berkel, the grand pensionary of that city. Laurens, the bearer of these papers, was brought to England, and committed to the Tower on a charge of high-treason; and our government transmitted the papers to their ambassador at the Hague, and instructed him to present a memorial to the States General, requiring them to disavow the proceedings of Van Berkel and his accomplices, and to punish them for their offence. No answer was returned to this memorial on the 12th of December, and Sir Joseph Yorke sent in another, expressing, in diplomatic language, his astonishment at the silence of the States General. The truth was, that although the Statholder neither approved of the treaty with the United States nor of war with England, the great trading interest of Amsterdam and the whole French party in Holland were eager for the completion of the treaty, and fondly imagined that Great Britain, through the number and power of her enemies and the Armed Neutrality, must succumb. Hence the memorial of the British ambassador was still treated with silent contempt, and there was no alternative left for our government but to declare war against Holland. Sir Joseph Yorke was recalled, and a royal manifesto was issued, declaring that Great Britain had issued letters of reprisals against the Dutch, and justifying her conduct in taking this hostile step. This manifesto was issued, on the 20th of December, and it would appear that

the States General were alarmed at this firmness of the British government, for they did not put forth their answer to the manifesto of his Britannic majesty till the March following. The States General were, in truth, ill prepared for war with England, and they had soon reason to repent that they had even provoked it: it brought them only loss and degradation.

GENERAL ELECTION.

Parliament was unexpectedly dissolved, on the 1st of September, by royal proclamation. The elections proved to be much in favour of the court, for in several places the most popular members of the opposition side of the house lost their seats. In the whole, one hundred and thirteen new members were elected. Burke was returned, but in consequence of his support to the Irish Trade Acts, to the Roman Catholic Relief Bill, and to other measures of a liberal nature, he lost his seat for Bristol, and was compelled to be contented with the more humble one of the borough of Malton. Mr. Fox, after a hard struggle, was returned for Westminster.

MEETING OF PARLIAMENT.

The new parliament met on the 31st of October. The first debate was occasioned by the election of a speaker. Sir Fletcher Norton had given offence to ministers during the last session, and Lord George Germaine, urging the precarious state of Sir Fletcher’s health, moved that Mr. Cornwall should fill the chair. Sir Fletcher and his friends replied, that his health was now re-established, and that Lord George Germaine’s condolence was a mockery of the house; and Dunning moved that he should be continued speaker. The house was divided on his re-election, but opposition were left in a minority of one hundred and thirty-four to two hundred and three: Mr. Cornwall was therefore elected speaker. His majesty delivered his opening speech on the following day. In it he declared his satisfaction in having an opportunity, by the recent election, of receiving the most certain information of the disposition and wishes of his people; and again complained of the unprovoked aggression of France and Spain, who were exerting all their power to support the rebellion of his colonies, to destroy the commerce of Great Britain, and to give a final blow to her power. He added, that the bravery of his fleets and armies had enabled him to withstand their hostility; and that he hoped the late successes in Georgia and Carolina would have important consequences in bringing the war to a happy conclusion. The opposition denied that the successes obtained in America were likely to be decisive, and an amendment was moved in the house of commons by Mr. Thomas Grenvilie, consisting in the omission of several complimentary paragraphs, but it was negatived by two hundred and twelve against one hundred and thirty. In the upper house there was but little debate, and the original address was carried by an equally large majority. The same success attended ministers with reference to the army and navy estimates, which were carried by such large majorities as served to remind Lord North of the earlier years of his administration, and to efface the recollection of the narrow divisions and minorities of the last session. In the course of the debates on the estimates, Fox pledged himself to move, after the Christmas holidays, for the dismissal of the Earl of Sandwich, and afterwards to bring him to condign punishment. He should found these motions, he said, on two different causes: first,

for Sandwich’s having advised his majesty to promote Sir Hugh Palliser to the government of Greenwich Hospital; and, secondly, for his having shamefully neglected the navy. This led to a display of fierce party spirit, which was subsequently renewed from a remark made by Mr. Thomas Townshend; namely, that he thought it was highly necessary that the house should inquire why, in this season of public danger, the nation was deprived of the services and abilities of such men as Admiral Keppel, Lord Howe, Sir Robert Harland, Pigot, Campbell, and Barrington. This remark was made on the 4th of December, and in the course of the debate which ensued, Mr. Fox having again censured the promotion of Sir Hugh Palliser, Lord North defended the unpopular admiral in one of his most ready and effective speeches. Two days after this the two houses of parliament adjourned to the 23rd of January.

CHAPTER XII.

{GEORGE III. 1781–1782}

Notice of the Rupture with Holland..... Burke re-introduces the Subject of Economical Reform, &c. Debates on the Supplies..... Motion on the Employment of the Military in the late Riots..... Petition of the Delegates of the County Associations..... The Marriage Act corrected..... Motion of Fox respecting the American War..... Parliament prorogued..... Attack on Jersey..... The Garrison of Gibraltar relieved..... Revolt in Washington’s Camp..... Arnold’s Expedition to Virginia, &c. Lord Cornwallis’s Expedition to Virginia..... Siege of Lord Cornwallis in York Town..... Loss of the British Dominion in Florida..... Attack on Minorca..... French and Spanish Fleets in the English Channel..... Naval Action with the Dutch..... Capture of St. Eustatius..... Commodore Johnstone attacked by de Suffrein, &c. Further Operations in the West Indies..... Sentiments of Foreign Powers toward England..... Meeting of Parliament..... Censures on Rodney and Hauffman..... debate on the Navy..... Motions of Sir James Lowther for Peace, &c.

{A.D. 1781}

NOTICE OF THE RUPTURE WITH HOLLAND.

On the 25th of January Lord North delivered a message from the king, in which his majesty acquainted the house, that during the recess he had been compelled to direct letters of marque and general reprisal to be issued against the States General of the United Provinces. A copy of the manifesto and sundry other papers were laid before the house, in order that the members might be fully acquainted with the causes and motives of his majesty in directing these letters. Having delivered his message, Lord North moved, “That an address be presented to his majesty, assuring him that the house would, with a firm and determined resolution, support the just and necessary war against Holland, for the maintenance of the honour of his crown, and the lights and interests of his people.” This motion was opposed by the opposition, Burke taking the lead in the debate. In his speech, Burke declared that ministers had been in fault

rather than the Dutch, and that the paper found in the box of the captured American packet, was nothing more than a project or draft of a treaty, which possibly the Dutch would never have completed. So far as they knew, he said, it might be merely a “speculative essay,” or a “contemplative prospect;” and therefore it was no justifiable or assignable ground for going to war with them. These were arguments, however, for party purposes; opposition conceived that the declaration of war between England and Holland was setting the seal to Lord North’s political embarrassments, and therefore they adopted this line of argument in order to suit their own views. It was, indeed, notorious that government had strenuously endeavoured to avoid an open rupture with Holland, and that it was not till the British honour was at stake that war was declared. But ministers were in no danger from the arguments of opposition on this question. A majority of nearly two to one agreed with Lord North and the manifesto, and exclaimed against the insolence, the selfishness, and the ingratitude of the States General. In the house of lords, also, the address was carried by a large majority; but two protests were recorded by the dissentient peers against this new war “with the ancient and natural allies of the kingdom.”

BURKE RE-INTRODUCES THE SUBJECT OF ECONOMICAL REFORM, ETC.

On the 15th of February, after some debates on the affairs of India, Mr. Burke reproduced his scheme of economical reform which had been rejected in the last session. He opened his proposition by stating the powerful motives that called upon him to resume that subject. These motives were the celebrated resolutions of the late parliament, respecting the alarming increase of the influence of the crown; the general wish and expectation of the people; and the direct application made to himself and others from several counties and associations. It seems probable that he was chiefly induced to renew the subject through the influence of the associations, which, notwithstanding the scenes which had occurred through them in the metropolis during the last year, still endeavoured to stimulate opposition by inflammatory resolutions, not only against fancied invasions of public rights, but against the license supposed to be now granted to military authority. At this period, indeed, political associations had acquired considerable strength and consistency, and their danger was increased by the new and unconstitutional measure of appointing delegates to transact their business in the capital, and to promote the objects of their petitions. Their chief object was a reduction of expenditure, but with this they coupled what was afterwards called a “Radical Reform” of the house of commons. It was notorious that Burke received from these associations many complimentary addresses, for his efforts in the cause of reform, and he seems from hence to have been stimulated to renew the subject in the house. This, indeed, is indicated by his allusion to the associations. After making this allusion, Burke, in continuing his speech, said that the nation was involved in expenses which reached the utmost limits of the public ability, and that as it was originally the duty of ministers to have framed and carried into execution such a scheme of economy as he now brought forward, so it was their interest to secure themselves from punishment by making some amends for their former neglect. Burke displayed considerable address in his appeal to this new house. The three resolutions of the late parliament, he said, were a valuable legacy bequeathed to the public, and an atonement for

previous servility; adding, that they formed a body of maxims, authorizing the people to expect from their present representatives, that which was declared to be necessary by their predecessors: if the present parliament neglected to accomplish what the previous parliament had designed, all the evil consequences would be charged upon them; and while the resolutions of the 6th of April would stand upon their journals as public monuments of exculpation to their predecessors, they would likewise stand as public monuments of disgrace to them. The fallacy of M. Neckar's financial measures in France was not yet made manifest, and Burke again applauded the economical achievements of that statesman, and held up the example of France, both as a warning and an encouragement. In conclusion he moved, "That leave be given to bring in a bill for the better regulation of his majesty's civil establishments and of certain public offices; for the limitation of pensions and the suppression of sundry useless expenses and inconvenient places, and for applying the monies saved thereby to the public service." This motion was seconded by Mr. Duncombe, and leave was given to bring in the bill without opposition; Lord North declaring that he would reserve his objections to the second reading. The second reading took place on the 26th of February, when there was a long and animated debate on the measure. One of the most remarkable speeches on this occasion was delivered by the Hon. William Pitt, second son of the late Earl of Chatham, who now spoke for the first time in the house of commons. William Pitt, on whom the mantle of his father seems to have fallen, announced himself as an ardent reformer and lover of strict economy. One great object, he said, of all the petitions which had been presented, was a recommendation of economy in the public expenditure, and the design of the present bill was to carry these wishes into effect. The bill had still another object more important in view, and that was the reduction of the influence of the crown; an influence which was the more to be dreaded, because more secret in its attacks, and more concealed in its operations than the power of prerogative. Pitt then adverted to the objections which had been made to the bill, and which he termed extraordinary, inasmuch as it only proposed to bring about £200,000 into the public coffers; an insignificant sum when compared with the millions annually expended. He continued:—"What then is the conclusion we are left to deduce? The calamities of the present crisis are too great to be benefited by economy. Our expenses are so enormous, that it is useless to give ourselves any concern about them: we have spent and are spending so much, that it is foolish to think of saving anything. Such is the language which the opponents of this bill have virtually employed. It has also been said that the king's civil list was an irresumable parliamentary grant, and it had even been compared to a private freehold. The weakness of such arguments was their best refutation. The civil list revenue was granted to his majesty, not for his private use, but for the support of the executive government of the state. It was granted to support the dignity and interests of the empire, to maintain its grandeur, to pay the judges, and foreign ministers, to maintain justice and support respect, to pay the great officers necessary to the lustre of the crown; and it was proportioned to the dignity and opulence of the people. The parliament made the grant, and undoubtedly had a right to resume it when the pressure of the times rendered such resumption necessary." The youthful orator, who was listened to with deep attention by both sides of the house, declared, in conclusion, that he considered the present bill as

essential to the well-being and independence of the country, and he would therefore give it his most determined support. Opposition, however, were outvoted by a majority of forty-three; the motion for the second reading being negatived by two hundred and thirty-three against one hundred and ninety. By a subsequent resolution the further consideration of Burke’s bill was put off for six months. About the same time several other popular measures proposed in the last session were revived, as the bills against contractors and revenue-officers, and for imposing a tax on places and pensions, but they were all defeated by considerable majorities.

DEBATES ON THE SUPPLIES.

Lord North had soon another contest to sustain. On the 7th of March he brought forward his annual statement of the supplies and resources for the current service. The sum demanded for the year was £22,458,337, twelve of which, he stated it would be necessary to raise by a loan. The terms were unusually high. A contract had been entered into with the subscribers to grant £150 stock at three per cent., and twenty-five at four per cent, for every £100 in money, being £9,000,000 more than the sum paid into the exchequer. To defray the interest of this loan new taxes would be required to the amount of £660,000 annually; that is £60,000 more than the legal interest of five per cent., exclusive of which, as the subscription to the loan bore a premium of ten per cent., the further sum of £1,200,000 appeared to be lost to the nation. Mr. Fox reprobated this bargain, as the most corrupt in its origin, the most shameful in its progress, and the most injurious in its consequences that ever came under the notice of the house. The profits of the loan were estimated by him at about £1,000,000, and this sum, he said, was entirely at the disposal, and in the hands of the minister, to be granted in douceurs to the members of that house, either as compensations for the expenses of their late elections, or as bribes for future services. Fox also strongly objected to a proposed lottery, which was a part of the loan scheme, as a means of raising money for the public service. Taught by experience—for Fox was at this time reduced to a miserable state of embarrassment and dependence, from his love of the gambling table—he delivered an impressive harangue on the vice of gambling, and declared that lotteries were the most pernicious of all species of gaming inasmuch as they immediately affected the morals, habits, and circumstances of the lower orders of society. Lord North defended both the loan and the lottery, and asserted that the £12,000,000 could not have been obtained upon easier conditions. Fox had moved that the clause respecting the lottery should be omitted; but this was rejected by one hundred and sixty-nine against one hundred and eleven, and the minister’s measures were all passed. The matter, however, did not end here. Opposition to the loan bill was renewed under a variety of forms while passing through the lower house; and when carried to the Lords, it encountered the severe censure of the Marquess of Buckingham, and others of his party. Eight peers entered a protest against the bill on the journals. Subsequently the subject was revived in the commons, by a motion of Sir George Saville for the appointment of a committee to inquire into the circumstances of the loan. Sir George argued, that though the bargain had been ratified, it was yet not too late to pass a vote of censure, or even of impeachment, on the minister who had thus grossly and daringly sacrificed the interests of the public. A vehement debate followed this

motion; but it was lost by a majority of two hundred and nine against one hundred and sixty-three.

MOTION ON THE EMPLOYMENT OF THE MILITARY IN THE LATE RIOTS.

It must have been very clear to any unprejudiced mind, that the employment of the military in the suppression of the London riots of the preceding summer, so far from being premature, had not been resorted to in time to save the city from the ravages of a lawless mob. At this time, however, as in many preceding years, no stone was left unturned by opposition whereby there was the remotest chance of bringing ministers into public contempt. They were assailed at every point wherein they were considered vulnerable; and one attack was but the precursor of another. Mr. Brinsley Sheridan, who had made his first speech during last November, and had won golden opinions by his oratory on that occasion, moved three propositions: the first declaring that the military force could not justifiably be applied in dispersing tumultuous assemblies, without waiting for directions from civil magistrates, unless outrages had broken out with such violence as to overcome civil authority, and threaten the subversion of legal government; the second affirming that the unprecedented order to the military on the 7th of June last, afforded strong presumption of the defective state of the police; and the third for the appointment cf a committee to inquire into the conduct of the magistracy and civil power during the riots. Sheridan delivered a severe philippic against the administration, which was adorned with glowing periods, and abounded in bitter invectives; but after a long debate, in which the government were fully vindicated from all blame, all the motions were negatived. On this occasion, however, Sheridan obtained the reputation of a first-rate orator, which probably pleased him more than he would have been had his propositions received the sanction of the house.

PETITION OF THE DELEGATES OF THE COUNTY ASSOCIATIONS.

During the stay of the delegates of the county associations in London, they were busied in getting up meetings of their own, and in preparing a petition to the house of commons, in which they attempted to combine all the complaints of the nation, and all the prayers for economical and parliamentary reform. These delegates, however, were compelled to sign their petition merely as individual freeholders, and not in their delegated character, inasmuch as the general sense of the house was known to be against them. Their exertions, indeed, had been matter of frequent allusion during this session; and while the few applauded them as enlightened and devoted patriots, the many denounced them as factious demagogues. Their petition was presented on the 2nd of April by Mr. Buncombe; but it was suffered to lie on the table until the recovery of Sir George Saville, who had undertaken to move for referring the petition to a committee. Sir George made this motion on the 8th of May; but the contents of the petition, and the unconstitutional character of the delegates, were severely reprobated; and the motion was lost by a majority of two hundred and twelve against one hundred and thirty-five.

THE MARRIAGE ACT CORRECTED.

It had been found, by a late decision in the court of king’s bench, that a clause in the Marriage Act of 1751 rendered all marriages unlawful whereof the banns had been published in churches or chapels erected since the passing of the act. This decision would have dissolved thousands of marriages hitherto supposed to be valid, and would also have rendered their offspring illegitimate, had not the legislature interfered. A bill was brought in by Lord Beauchamp, which had a retrospective operation, in order to render such marriages valid and their issue legitimate. This bill was adopted by both houses unanimously; and it received the royal assent early in June. After it had passed, Fox, who inherited his father’s dislike to the whole of the marriage Act, brought in a bill for amending or rather repealing it _in toto_. Fox’s motion, which was rejected without a division, excited much notice from the circumstance that it brought him into collision for the first time with Burke, his bosom friend. Burke as strenuously supported the original act, as Fox opposed it; considering that “it hit the just mean between a mischievous restraint and that laxity which formerly occasioned so much disorder.” Each supported their own views with their known abilities.

MOTION OF FOX RESPECTING THE AMERICAN WAR.

On the 30th of May, Colonel Hartley moved for leave to bring in a bill vesting the crown with sufficient powers to treat, consult, and finally agree upon the means of restoring peace with the provinces of North America. This motion was rejected by a large majority, but a few days afterwards intelligence arrived of reverses in North Carolina, which emboldened the opposition to recur to the subject. On the 12th of June, Fox moved that the house should resolve itself into a committee to consider of the American war; and at the same time he gave notice that he intended to move in committee “That his majesty’s ministers ought immediately to take every possible measure for concluding peace with our American colonies.” In his speech, Fox contended that success by force of arms was impossible, and expressed his belief that the Americans would have treated upon far more moderate and honourable conditions than they ever entertained a notion of admitting. The orators on both sides went over the whole history of the war; but their oratory was chiefly remarkable for its mutual recrimination: each party endeavouring to throw the blame upon the other. In the course of the debate the memory of Chatham was treated with disrespect. It was urged by some, that he had been one cause of the dispute, or of the ill-success which had attended its management; that his notions were contradictory; and that if one of his leading principles was to be followed the war would never end. William Pitt rose to defend the character of his father; but his eloquence failed to reconcile the manifest contradictions which had appeared in the proceedings of that great statesman. When he had performed this duty, Pitt proceeded to state his own opinion on the subject of the American war. He remarked:—“The war was conceived in injustice, nurtured in folly, and its footsteps are marked with slaughter and devastation. It exhibits the height of moral depravity and human turpitude. The nation is drained of its best blood and its vital resources, for which nothing is received in return but a series of inefficient victories or disgraceful retreats; victories obtained over men struggling in the holy cause of liberty, or defeats which filled the land with mourning for the loss of dear and valuable relatives, slain in a detested and

impious quarrel." Some members, however, argued that the Americans might yet be subdued; while others doubted whether at this moment, when they were backed by France, Spain, and Holland, they would not treat all overtures with contumely. It was also questioned whether the house could, or ought to interfere with the prerogative of the crown; in which was vested the power of peace and war, and whether they could bind the sovereign by their resolution, which was not likely to be adopted by the lords. Moreover, on both sides of the house there were men who still shrunk from the idea of recognizing the independence of America, and hence, when the house divided the motion was rejected by one hundred and seventy-two against ninety-nine.

PARLIAMENT PROROGUED.

This session terminated on the 18th of July. In his speech the king thanked the members for their long attendance, their loyalty, and their affection. At this time a prospect of brilliant successes had opened in India, and that the British would build up an empire more vast in its extent than that for which they were contending in the West. His majesty dwelt at some length upon this subject, and warmly applauded measures adopted, or in progress, for checking abuses in these possessions, and for making our conquests mutually advantageous to the natives and ourselves. On the subject of America he remarked:—"While I lament the continuance of the present troubles, and the extension of the war, I have the conscious satisfaction to reflect, that the constant aim of my councils has been to bring back my deluded subjects in America to the happiness and liberty they formerly enjoyed, and see the tranquillity of Europe restored. To defend the dominion and to maintain the rights of this country was on my part the sole cause, and was the only object of the war. Peace is the earnest wish of my heart; but I have too firm a reliance on the spirit and resources of the nation, and the powerful assistance of my parliament, and the protection of a just and all-ruling Providence, to accept it upon any other terms than such as may consist with the honour and dignity of my crown, and the permanent interests and security of my people." At the time when his majesty delivered this speech there was indeed no prospect of peace: war raged on every hand.

{GEORGE III. 1781–1782}

ATTACK ON JERSEY.

Early in this year the French, under the Baron de Rullecourt, made another attempt upon the island of Jersey. Its little capital was captured by night, and Major Corbet, the lieutenant-governor, signed a capitulation for the surrender of the whole island. Major Pierson, however, was not so pusillanimous. Collecting all the force he could, he fell upon the French invaders in the market-place of St. Heliers, and, being-assisted by the townspeople, killed a great many of them, and captured the rest. But unfortunately Pierson was himself killed by almost the last shot fired by the French. At the commencement of the action the Baron de Rullecourt received several wounds, of which he died immediately after the surrender. In the whole, nearly eight hundred French were either killed or taken, and they had previously lost two hundred men in a terrible storm which overtook them at the commencement of their

expedition, and which drove back many of their vessels to their own ports. This affair cost Major Corbet his honour: he was tried by a court-martial, and deprived of his commission of lieutenant-governor. The states erected a splendid monument in the town-church to the memory of the gallant Major Pierson.

THE GARRISON OF GIBRALTAR RELIEVED.

The garrison of Gibraltar, at the commencement of this year, were again reduced to great straits by the persevering Spaniards. The supplies which Rodney had thrown in the year before were nearly exhausted; and some vessels which had been accustomed to run down from Minorca and some of the Italian ports were captured by the French and Spanish cruisers. Under these circumstances, one of the first efforts of the campaign was the relief of this important place. Admiral Darby was appointed to this important service. After escorting the East and West India trade to a certain latitude, Darby arrived off Cadiz, where he saw the Spanish fleet at anchor. While, therefore, he forwarded the convoy with provision!, stores, etc., to Gibraltar, with some ships of the line and frigates to cover them, Darby remained with the rest of his fleet, cruizing between Cadiz Bay and the mouth of the Straits of Gibraltar, watching the enemy. The Spanish admiral, Cordova, had boasted that he would meet the English at sea; but upon second thought, he considered himself safer where he was, and still remained at anchor. The convoy got safe into the harbour, where it was hailed with transports of joy by the half-famished soldiers on the rocky heights of Gibraltar; and their cheers were responded to by those below. The succours were landed with very little difficulty, and Darby then returned to the Channel station. The Spaniards were disheartened by this success of the British, and were mortified by the circumstance that their grand fleet had cowered before an inferior force; but they were again encouraged by promises of co-operation from France, and therefore still continued the siege.

REVOLT IN WASHINGTON’S CAMP.

The earliest events of this year were unfavourable to the American cause. For some months all discipline had been relaxed in Washington’s camp; the officers and men alike being dissatisfied with the treatment which they received from congress. They were on the point of starvation; and though they had long endured their hardships, on the night of the 1st of January, the Pennsylvania line, which was hutted at Morris Town in the Jerseys, turned out to the number of 1300 men, and declared that they would march to the seat of congress, and either obtain redress or return to their homes. After committing some excesses on those officers who opposed their movement, the men marched to Princeton. They were followed on the next day by General Wayne and his staff, with many officers who were supposed to possess their confidence, in the hope that they would be able either to bring them back to their duty, or to sow dissensions among them. Wayne came up with them near Middle Brook; but the demands of the revolted troops were such as he could not grant; and he therefore referred them to congress. The men continued their march to Princeton for that purpose; and while there, emissaries arrived from Sir Henry Clinton, with tempting offers to them, and with the suggestion that they should take up a position behind the South River, when he would soon cover them with detachments from the

royal army in New York. The mutineers, however, showed themselves true to the cause of liberty, for they not only rejected Clinton's tempting offers, but communicated them to General Wayne, with assurances that, though they had left the American camp, they would never go over to the British. At the same time they seized Clinton's emissaries, and kept them in their own hands; they refused to leave Princeton; resolved that none of their former officers should enter their camp; and ordered Lafayette and others, who had presented themselves as mediators, to return immediately. Soon after, a committee of congress, the governor of Pennsylvania, and a part of his council came into the neighbourhood of Princeton to negociate with the revolters. A conference took place between the sergeants of the revolted troops and the committee; when the latter offered these propositions:—That congress would discharge all those who had enlisted for three years; and that they would give immediate certificates for the depreciation on their pay, settle their arrears as soon as they were able, and furnish the men with such clothing as they required forthwith, The sergeants agreed to distribute these propositions among the troops for consideration; and after due deliberation the mutineers agreed to march to Trenton, to meet their officers and commanders. At Trenton, the terms offered by congress were accepted; and then the mutineers gave up Sir Henry Clinton's emissaries, who were all hanged as spies. But mutiny did not end here. Encouraged by the success of the Pennsylvania line, a part of the Jersey brigade, stationed at Pompton, flew to arms, and marched to Chatham to join another part of the same brigade; and these all demanded the same terms which had been granted to the Pennsylvanian mutineers. In the former instance, Washington, probably wishing that congress should be made to feel that the grievances of the troops must be redressed, and that the army must be treated with greater respect, had not taken any measures for bringing back the mutineers to their duty. On this occasion, however, foreseeing that continued revolts would tend to the disorganization of his army, he sent General How to Chatham with a considerable force, and with orders to make no terms with the revolted brigade while in a state of resistance. He even instructed How, after the brigade should surrender, to seize a few of the ringleaders and put them to death on the spot. How's task was not a very arduous one, for the mutineers at Chatham scarcely amounted to more than two hundred men; and he surrounded them in their quarters, seized a few of the ringleaders, and executed them according to Washington's orders, and reduced the rest to submission. These revolts alarmed congress; and they contrived to raise three months' pay in specie, and to obtain a quantity of clothes, which they forwarded to the camp, in order to prevent further defection. But this was only a temporary remedy for the evil; and as the inhabitants were distressed in order to satisfy the soldiers, congress resolved to seek a loan from France. Lieutenant-colonel Laurens, son of the prisoner in the Tower, was sent on this commission to the court of Versailles; and at the same time, Mr. Jay, the young lawyer, who was now installed as minister plenipotentiary to the court of Madrid, was instructed to press the court of Spain for co-operation and direct assistance. It is evident, indeed, that congress and the general officers of the army, all thought that the affairs of the Americans were in a desperate condition; and that if they did not speedily obtain assistance in money and troops from the Bourbons, the sun of liberty would be set for ever. Lafayette exerted his influence with M. de Vergennes, the French minister on this occasion. He

furnished Laurens with a letter to him, in which he stated, that with a naval inferiority it was impossible to continue the war; that the resources of the country, great as they were, would be ineffectual unless money were sent; that the last campaign had been conducted without a single dollar; and that all that credit, persuasion, and force could do in the way of obtaining supplies had been done. In conclusion, he demanded clothes, arms, and ammunition, and represented that a great fleet, and a new division of 10,000 troops ought to be sent from France to New York, in order to destroy the power of the British on the continent.

ARNOLD’S EXPEDITION TO VIRGINIA, ETC.

On the very day that the Pennsylvanian line revolted, General Arnold appeared in Hampton Road on the Chesapeak, to carry devastation into Virginia. Arnold had with him about 1200 men, part of whom were American royalists; and with this force he proceeded up James’s River, and landed at Westover, about twenty-five miles distance from Richmond, the capital of Virginia. There were 50,000 enrolled militiamen in that province; but Jefferson, its governor, could only collect a few hundred, and therefore he was obliged to relinquish all hopes of defending the city Knowing the rapidity of Arnold’s movements, he caused some of the public property to be removed to the country above, and then fled with his council, secretaries, and officers, with the greatest precipitation. Arnold entered Richmond the morning after his flight, the troops evacuating the town at his approach. On his arrival he sent some of the citizens of Richmond to Jefferson, offering to spare the town if British vessels were permitted to come to it, and take off the tobacco there deposited, unmolested. This offer was rejected; and Arnold then detached Colonel Simcoe, with nearly half of his force, to Westham, to burn and destroy all the buildings there which contained arms, ammunition, and military stores; and when Simcoe had completed this work of destruction, and had returned, Arnold set fire to all the public buildings and tobacco-stores at Richmond. He then quitted the capital of Virginia, and encamped at Four-mile Creek, whence he returned to his shipping at Westover. From Westover he detached a party of horse to Charles City Court-house, where one hundred and fifty militiamen were surprised and routed; after which Arnold re-embarked his army, and began to descend James’s River. He returned to Portsmouth, where he was joined by more men, who raised his force to nearly 2000 men, and where he established a permanent station, in order to co-operate with Lord Cornwallis. While at Portsmouth, it was suggested by the American leaders, that a few individuals should make a sudden incursion into his camp, and carry him off, in order to bring him to the gallows. The capture of Arnold was, indeed, a cherished object with the Americans, ever since his defection from their cause; but he was aware that he was in danger, and was therefore vigilant, so that if any attempt had been made, it would doubtless have failed. It would appear, in fact, that though 5000 guineas were offered in the event of success, none could be found hardy enough to make such a daring attempt. Washington, however, was resolved to capture the arch-traitor if possible; and with this view he sent Lafayette to blockade him on the land side, while a French squadron blockaded him by sea. Washington wished Destouches to employ nearly the whole of his fleet in this service; but the French admiral was apprehensive that Admiral Arbuthnot might have collected and repaired his scattered ships; and he therefore

refused to risk more than one sixty-four-gun ship and two frigates. These were put under the command of Commodore de Tilley; and they sailed for the Chesapeak on the 9th of February. De Tilley, however, found Arnold so well posted as to defy attack, and he returned to Rhode Island. As he was returning, near the Capes of Virginia he fell in with and captured the Romulus, a fifty-gun ship, which was sailing from Charlestown to the Chesapeak. Washington now held a conference at Newport, Rhode Island, with Rochambeau, Destouches, and other officers, in which it was resolved to embark part of the French army, under the command of Count de Viominil, and to risk the whole of the French fleet to escort it, in order to capture Arnold. Destouches, the French admiral, set sail on the 8th of March; but he was followed by Admiral Arbuthnot, and brought to action off Cape Henry. After fighting for about an hour, the French bore up and ran to leeward; and Destouches then resolved to return to Rhode Island. In a few days General Phillips arrived at Portsmouth to take the command over Arnold; and the defence of Virginia was entrusted to Lafayette, who collected his forces on the Elk River, and then marched into that province. In the meantime Generals Phillips and Arnold were engaged in the work of destruction. Williamsburg, York Town, Petersburg, and Chesterfield Court-house were all captured, and public property, with a quantity of vessels found in the different harbours, etc., were destroyed by them. After the capture of Chesterfield Court-house, Arnold marched through Osbornes—where he destroyed the tobacco—to Warwick; just above which place, and between it and Richmond, an American flotilla had been collected. On his approach the crews set fire to these vessels or scuttled them; and escaping to the opposite shore, there joined a body of militia and fled with them. Generals Phillips and Arnold now again united their forces and marched to Manchester, a town on the southern bank of James’s River, where they burned all the tobacco and stores. They contemplated crossing the river to Richmond; but Lafayette had reached that place in the course of the preceding evening, and they therefore retraced their steps by the way of Warwick, and retired to Bermuda Hundred. Soon afterwards they re-embarked their troops, and fell down the river to Hog Island, where they remained till they received notice from Lord Cornwallis that he was about marching into Virginia from the Carolinas, and expected their co-operation.

LORD CORNWALLIS’S EXPEDITION TO VIRGINIA.

This was the last year in which any grand efforts were made for the recovery of the colonies, and the plan of the campaign was thus arranged. Lord Cornwallis was directed to penetrate through the intervening provinces into Virginia, there to attack Lafayette, while Sir Henry Clinton himself engaged to keep Washington and Rochambeau in check. Cornwallis took the field early in this year, and having left a considerable force under Lord Rawdon for the defence of South Carolina, advanced towards the frontiers, and took a position at Winnsborough; General Leslie proceeding towards Camden. About the same time the American general, Greene, marched with the main body of his forces to the Cheraw-hills, on the Pedee, having detached General Morgan to act on the left of Lord Cornwallis. This movement alarmed the British commander from some of his posts, and he despatched Colonel Tarleton, with a force of about 1100 men, to counteract the designs of Morgan. This

time Tarleton was unsuccessful. Meeting with the enemy at a place called the Cow-pens, although their force was greatly superior, he immediately engaged them, and was defeated with considerable less. Soon after this affair General Greene took the field in person, and Lord Cornwallis, being joined by General Leslie, resolved to cross the Catawba and give him battle. Cornwallis forced a passage over that river on the 1st of February, and his troops scattered the North Carolina militia that were stationed on the opposite bank to defend the ford, and killed many of them, with General Davidson, their commander. Greene retreated to the Yadkin, closely followed by Cornwallis, and both armies crossed that river. Cornwallis took up a position between Greene and the frontiers of Virginia, and a variety of manouvres and rapid marches ensued. In the end, however, Greene succeeded in placing the river Dan between him and the enemy, and getting on a line of march which would lead him into Virginia, without being compelled to risk a battle. Desisting from the pursuit, Cornwallis proceeded to Hillsborough, the capital of North Carolina, where he raised the royal standard, and issued proclamations to the people. All North Carolina appeared to be at his feet, for there was no army to resist him, and the royalists soon began to form themselves into independent companies, to serve with Tarleton’s legion. Greene, however, who had been recruited on the Virginian frontier, soon returned, resolving to keep the field, though he wished to avoid a general engagement. Soon after his return he sent Lieutenant-colonel Lee, with a detachment, against a body of nearly three hundred loyalists, who had been collected by Colonel Pyle, and were marching to join the British army. These unfortunate men mistook Lee’s troops for their British allies, and being suddenly surrounded by them, were butchered on the spot, in the act of imploring mercy. The disaster was rendered still more dreadful by a mistake made by Colonel Tarleton. Happening to be within a mile of this scene of slaughter, and hearing the alarm, he recrossed the Haw, and meeting in his retreat with another body of loyalists, he conceived that they were militiamen, and put them to the sword. All these circumstances combined wholly disconcerted the schemes of Lord Cornwallis in North Carolina, and he crossed the river Haw, and encamped on Allamance Creek, in order to afford protection to the great body of the royalists who resided between the Haw and the Deep Rivers. Greene now advanced a little, and having crossed the Haw near its source, took post between Troublesome Creek and Reedy Fork. Discovering this movement, Cornwallis carried his army across Allamance Creek and marched towards Reedy Fork, hoping to beat up the quarters of Greene’s light troops, and to tempt Greene into a general engagement. Cornwallis attacked Reedy Fork, and some light troops made a slight stand upon the creek, but they were defeated with considerable slaughter; and then Cornwallis found that Greene was retreating as fast as he could across the Haw. Soon after, however, Greene received considerable reinforcements, and considering himself strong enough to face Cornwallis, he recrossed the Haw, and moved forward to Guildford Court-house. Cornwallis instantly prepared to meet him, and a battle was fought at that place on the 15th of March. The engagement, which was maintained with determined valour on both sides, terminated honourably to the British arms. Greene was compelled to retreat, and to leave the field of battle, with his artillery, consisting of four pieces, in the hands of Lord Cornwallis. The victory, however, was dearly purchased, as about one hundred were killed and above four hundred

wounded, which amounted to nearly one-third of all the British troops engaged. The loss was rendered more severe on the following night, when many of the wounded expired from want of covering to shelter them from the rain, which poured down in torrents on the field of battle. On discovering the extent of his loss, Cornwallis felt that he was not in a condition to follow up his victory, and as he could obtain no provisions where he was, he was under the necessity of retreating. He left about seventy of his wounded, who could not be removed, under a flag of truce, at a Friends' meeting-house, and on the third day after the battle, directed his march towards Wilmington, near the mouth of Cape Fear River, a post already occupied by the British troops, under the command of Major Craig, and where he arrived on the 7th of April. In the meantime General Greene, who had slowly moved in the rear of Cornwallis till he descended towards the sea-coast, carried the war into South Carolina. Aware of his movements, Cornwallis sent an express to Lord Rawdon, whom he had left in that state, warning him of his danger. Rawdon occupied cantonments, with the town of Camden for his centre, and against this position the efforts of Greene were directed. The American general reached Camden before the express, but Rawdon was apprised of his approach in sufficient time to call in all his detachments, and to prepare for the struggle. Rawdon had about 900 men under his command, and Greene about 1500 regular troops, and some corps of militia. Yet, although his force was greatly superior, the American general did not venture to storm or to invest Camden, but took up a position on Hobkirk's-hill, about two miles off, designing to remain there till he should be joined by Lee and the independent partisan, Marion, each with a considerable force. Lord Rawdon seems to have been aware of his expectations, and he resolved to attack him on Hobkirk's-hill before they could be realised. Rawdon was successful. He charged the enemy with such impetuosity that they were utterly routed, leaving behind them between two hundred to three hundred killed or wounded, and about one hundred prisoners. Greene retreated to a creek about twelve miles off, where he encamped to wait for reinforcements, to attend to his sick and wounded, and to levy supplies for his half-famished men. Lord Rawdou's loss amounted, in killed, wounded, and missing, to two hundred and fifty-eight, and as this number could be ill spared out of so weak, a force, and some reinforcements which he expected had not yet joined, he was obliged to retire from the scene of his victory, and to act on the defensive. A portion of the troops he expected arrived soon after at Charlestown, and Rawdon marched thither to effect a junction. In his absence, Greene captured Orangeburg, Fort Motte, Granby, and several other places, after which he invested the strong post of Ninety-six, which was considered as commanding the whole of the back country. Before this post could be reduced, however, Lord Rawdon was enabled to bring up his forces, and he retired into North Carolina, with his enemy in full pursuit. The British general soon perceived that it was in vain to pursue the American force, and he returned to Ninety-six, and from thence to Charlestown, taking with him all the loyalists in that district. Greene now returned to South Carolina, and being joined by detachments, under Lee, Sumpter, and Marion, he encamped on the hills of Santee. Lord Rawdon retired soon after to Orangeburg, from whence, on account of ill-health, he was compelled to return to England. His troops were left under the command of Colonel Stewart, who was attacked by the enemy at Eutaw Springs, having previously

suffered a loss of above three hundred men, who were surprised in foraging. A desperate battle took place, during which the artillery on both sides was several times taken and retakers Vast numbers fell on both sides, and each claimed the victory; but it would appear that it rather belonged to the British; for Greene retreated, and they remained upon the ground the night after the action and all the following day without molestation. Notwithstanding the result was favourable to the Americans; for the British were compelled to retire, and thenceforward confined their operations to the vicinity of Charlestown. Hence it was that congress proclaimed the affair as a great and glorious victory; and they likewise passed a resolution, for presenting to Greene a golden medal and a British standard.

In the meantime Lord Cornwallis had been engaged in operations in the heart of Virginia. He advanced from Wilmington right through North Carolina, the whole of which he traversed without encountering opposition, and on the 20th of May he reached Petersburg, where the British forces were waiting for him. Before his arrival, General Phillips had died of sickness, so that the chief command of the troops had again devolved upon Arnold. Cornwallis found that Arnold had driven Jefferson and the assembly of Virginia from Richmond to the village of Charlottesville, and had compelled Lafayette to take up a post a few miles below Richmond. Allowing himself but three days' rest, Lord Cornwallis marched from Petersburg in search of Lafayette. He crossed James's River at Westover, about thirty miles below the enemy's encampment; but on his approach, Lafayette retired towards the back country, in order to effect a junction with eight hundred of the Pennsylvanian line, under General Wayne. No pursuit was attempted by Lord Cornwallis, who now directed his attention to various expeditions. As the Virginian planters possessed excellent horses, he was enabled, by seizures, not only to remount his cavalry in a superior manner, but also to have horses for mounting his infantry destined for rapid movements. With such a force Tarleton was detached to beat up Jefferson and the assembly at Charlottesville, where they were busy in voting taxes, making paper-money, draughting the militia, and recruiting for the Virginian line. Tarleton came upon the assembly so suddenly that seven members were taken prisoners, and he captured and destroyed large Quantities of military stores and tobacco. Jefferson and the rest of the assembly made their escape by getting upon fresher horses. Lieutenant Simcoe had been detached, with five hundred infantry, to destroy the military stores deposited at the Point of Fork, fifty miles below Richmond; and Tarleton now proceeded to join him in this enterprise. Simcoe found that these stores had been removed by Baron Steuben to the other side of the river Fluvanna, and that Steuben's whole force had followed in the same direction. Simcoe followed the baron, and by some ingenious stratagems, made him believe that the whole army of Lord Cornwallis was advancing against him. Acting upon this impression, Steuben fled in disorder, and abandoned his stores, which were destroyed by the British. Steuben joined Lafayette; and soon after, the Pennsylvanian line, under General Wayne, joined his forces likewise. At this time Lord Cornwallis was advancing with his main body upon Albemarle Old Court-house, where there was a great deposit of military stores. Lafayette resolved to protect these, and by a rapid movement he was enabled to take up a strong position in front, of Albemarle Old Court-house some hours before

Cornwallis arrived. Cornwallis had just received orders from Sir Henry Clinton to send part of his troops back to New York, in order to defend that city from a contemplated attack by the joint forces of the French and Americans. Avoiding a battle, therefore, Cornwallis slowly retired to Richmond, followed in his rear by Lafayette, who had, however, no intention of risking an action. From Richmond, the British general proceeded to Williamsburg, which he captured without opposition. From Williamsburg, he marched to a ford across James's River, and sent part of his army, with his baggage and stores, to the opposite bank, in the direction of Portsmouth. Lafayette, who was still timidly following, conceived that nothing was left on his side of the river but the rear-guard of the British, and he then quickened his pace to strike a blow. A battle ensued, in which Lafayette was routed, and his cannon taken, while he lost about three hundred in killed and wounded. Lafayette retired up the river to repose his harassed forces, and Lord Cornwallis then crossed the river, and marched to Portsmouth. While here, he embarked the troops that were required at New York; but before they sailed, he received fresh orders from Clinton to retain them, as he had no longer any fear of Washington and Rochambeau. Under these circumstances, as Portsmouth was not proper for the reception and defence of ships of the line, and as it was not such a post as was desired by Sir Henry Clinton, he resolved to proceed to, and to fortify York Town, on York River. Part of his army was therefore sent up the Chesapeak to take possession of this town, and by the 22nd of August his whole force was concentrated there and at Gloucester Point.

{GEORGE III. 1781–1782}

SIEGE OF LORD CORNWALLIS IN YORK-TOWN.

By intercepted letters, written by Washington to congress, Sir Henry Clinton discovered that an attack on New York was intended as soon as Count de Grasse, the French admiral, should arrive with a new fleet. Discovering this, great preparations were made to sustain a siege, and it was when they were completed that Sir Henry Clinton countermanded the troops which he had ordered Cornwallis to send him. Cornwallis was in greater need of them than Sir Henry himself; for, although New York was still threatened, it was against him that Washington now resolved to direct his operations. Count de Grasse had avoided Admiral Rodney in his passage, and he arrived in the Chesapeak on the 30th of August, with a French fleet, consisting of twenty-eight sail of the line, and several frigates, and having on board with him 3200 land troops. De Grasse was here, also, joined by Count de Barras, with a French squadron, consisting of eight ships of the line, which had been stationed at Rhode Island. Having failed to intercept or to meet de Grasse in his passage to America, Admiral Rodney despatched Sir Samuel Hood to New York, with fourteen ships of the line, which, with the fleet at New York, it was conceived would be a match for the French fleet. Admiral Graves commanded the fleet at New York, but when Hood arrived he had only seven ships of the line, and five of these only were ready for sea. Nevertheless, as it was ascertained that de Grasse was either in the Chesapeak or making for it, Graves, taking the command as senior officer, on Hood's arrival set sail in hopes of first cutting off the French Rhode Island squadron, and then beating the

larger fleet. Graves found de Grasse, who had landed his troops to join Lafayette, just within the Capes. The French admiral had not been yet joined by de Barras, and, as soon as he found that the ships advancing were British, he issued orders for them to put out to sea in line of battle, in order to protect the squadron which he expected from Rhode Island. Graves gave the signal for battle, and a warm engagement ensued, which was in favour of the British. At night-fall, however, the two fleets separated without any decisive issue on either side; and they remained within sight of each other five days without renewing the engagement. At the end of that period, on the 10th of September, de Grasse returned to his old anchorage within the Capes, where he now found the Rhode Island squadron. In the meantime Washington had put his forces in motion. Leaving General Heath to defend the Hudson, he led his army down the western side of that river, as though New York was still the point of attack. This was fully expected by Sir Henry Clinton, and it was not till Washington had passed the Delaware that his intention was suspected. When he became aware of his real intentions—when he saw that the efforts of the combined forces of the French and Americans were directed against Lord Cornwallis, at York Town, he sought to recall Washington to the north, by an expedition which he sent, under Arnold, into Connecticut. Arnold took and reduced New London to ashes; but Washington’s attention was nevertheless not diverted by this terrible blow, from his main design. He proceeded southward to the Elk River, which falls into the Chesapeak, where transports from the French fleet were waiting to receive his forces; and, having seen them embarked, he and Rochambeau proceeded by land to join Lafayette at Williamsburg. A council of war was immediately held on board Count de Grasse’s ship, wherein it was resolved that so soon as Washington’s and Rochambeau’s forces arrived, their united efforts should be directed against York Town. Lord Cornwallis, aware of his danger, as the hostile fleets and armies were gathering thick around him, fortified his positions as well as he could, hoping that he might be able to hold out till Sir Henry Clinton could send him assistance. His hopes were the more bright because the fleet at New York was about to be reinforced by six ships of the line, under Admiral Digby. It was on the 28th of September that the combined army of French and Americans appeared in sight of York Town; and at the same time the French fleet advanced to the mouth of York River, so as to prevent Cornwallis from retreating or receiving succours by sea. On the same evening Lord Cornwallis received intelligence from New York, that Admiral Digby had arrived with three instead of six ships of the line, and that Sir Henry Clinton would embark on the 5th of October, with 5000 men for his relief. After receiving this intelligence, Cornwallis, under cover of the night, withdrew his army from the outer works which he had erected on the open grounds round about York Town, and concentrated them within the works close to it. Those which he abandoned were occupied by detachments from the combined army; and 2000 men took up a position in front of the British at Gloucester Point. A part of the latter were commanded by the Duke de Lauzun; against whom Colonel Dundas sallied out as he approached the lines, and killed a great number of his men. Dundas was reinforced by Colonel Tarleton and his legion, but the British then retired within the lines, and the French and Americans gave up all thought of assault and storm, and converted their operations into a blockade. The first parallel was begun within six hundred yards of the British lines, on the 6th of

October, and by the 9th their well-garnished batteries were completed; and an incessant cannonade was commenced against the town, while showers of shells, thrown from many mortars, fell among the besieged. More batteries were opened on the following clay, and the shells and the red-hot balls set fire to a British ship of forty-four guns and three transports, which were all destroyed. On the night of the 11th, the combined army, which amounted to 14,000 men, commenced their second parallel within three hundred yards of the British lines. This occupied their attention three days, during which time they suffered severe loss from an incessant fire kept up upon them from York Town. They particularly suffered from two advanced redoubts; and it became necessary either to storm these or to abandon the approach. Accordingly a body of Americans were employed against one of these redoubts, under Lafayette, and a body of French against the other, under the Baron de Viominil. There were only forty-five men in the redoubt, against which Lafayette led his strong American column; yet before he could carry it, more than forty of the assailants were either killed or wounded. The other redoubt had more defenders, and caused greater mischief to the enemy; but it was carried, and then both of them were included in the second parallel of the besiegers, and the artillery that was taken in them was directed against the town. The situation of Lord Cornwallis was now becoming critical, for his works were sinking and crumbling, and nearly all his guns were silenced. To retard the completion of the second parallel, therefore, Cornwallis directed a sortie, under the command of Lieutenant-colonel Abercrombie, against two of the enemy’s batteries that were guarded by veteran French troops. The assault was made on the 16th of October, and the French were driven from both batteries, with the loss of more than one hundred in killed and wounded; and having spiked the gnus, Abercrombie returned within the lines. The spiked cannons, however, were soon made again fit for use, and the batteries opened upon the town. Lord Cornwallis had reason to expect that before this time Sir Henry Clinton would have arrived with his promised relief. Still, though he was disappointed, he did not despair. He saw, indeed, that he could not defend the town, but he I still hoped to save at least a part of his army by a bold manouvre and a rapid movement. The French blockading force, on the Gloucester side, was now commanded by de Choisi; and Cornwallis conceived the idea of attacking them, by night, and after dispersing this force, to mount his infantry on the horses of the enemy’s cavalry, and then, by a rapid march, to gain the fords of the great rivers, and force his way through Maryland, Pennsylvania, and Jersey to New York. To this end the greater part of the guards and part of the twenty-third regiment were embarked in boats, and transported to Gloucester-point without being discovered; but they were scarcely landed when a violent storm arose, which prevented the return of the boats, and the whole scheme was frustrated. The troops transported to Gloucester-point returned in the morning without great loss, although the passage of the river was now exposed to the fire of the enemy. All hope was now lost, for by this time the British works were so demolished by the incessant fire of the enemy, that not a gun could be fired from them; and when the bombs were counted, they were found not to exceed one hundred. Under these circumstances, Lord Cornwallis proposed a cessation of hostilities for twenty-four hours, to settle terms for capitulation. Washington replied, that it was his wish to save the effusion of blood, and to accept such terms as were admissible; and a negociation commenced,

which ended in a treaty, by which, on the 19th of October, York Town and Gloucester-point were given up; the troops and stores being surrendered to Washington, and the ships and seamen to Count de Grasse. As Lincoln had been refused the honour of marching out of Charlestown with flying colours, this honour was refused, by way of retaliation, to Lord Cornwallis; and Lincoln was also appointed to receive the submission of the royal army in the same manner as his own had been conducted. When the British surrendered, they amounted to 5950 men, but of these only 4017 were fit for duty. On the other hand, at the termination of the siege, the French and Americans, owing to the constant arrival of recruits, volunteers, and militiamen, had 18,000 men under arms. On both sides about five hundred were killed and wounded during the siege. During the negociations Lord Cornwallis endeavoured to obtain an indemnity for those of the inhabitants who had joined his ranks; but he was obliged to consent that they should be given up to the unconditional mercy of their countrymen: Washington affirming that the matter of their forgiveness or punishment belonged to the civil power. As, however, his lordship obtained permission for the Bonetta sloop of war to pass unexamined to New York, he embarked as many as he could on board that vessel, in order to screen them from the vengeance of their countrymen. On the whole the terms of capitulation were easier than might have been expected, considering what a scourge Lord Cornwallis had been to the Americans. The whole of the south had smarted from his operations, and it was calculated that in Virginia alone 30,000 slaves were taken from their masters; and property to the value of £3,000,000 sterling was destroyed during this summer. But Washington felt that there was no time for driving a hard bargain, for he expected that the British fleet and the land force from New York would arrive on the scene of action, and he could not tell how soon they might appear. Had Sir Henry Clinton sailed on the day he mentioned, indeed, Lord Cornwallis would have been spared the anguish of a surrender; but, unfortunately, he did not leave Sandy Hook till the very day when the terms were signed, and it was the 24th before he reached the Capes of Virginia. On arriving here, Clinton received some vague accounts of the sad truth, and Admiral Graves did not venture up the Chesapeak to attack the French fleet, but lay off’ the mouth five days, and then he and Clinton agreed to return to New York. Such were the events of the war in America during this campaign. It commenced with bright hopes of success on the side of the British; it closed by those hopes being dashed to the ground. The fall of York Town was but a prelude to the emancipation of North America.

[Illustration: 160.jpg THE BRITISH SURRENDERING TO GENERAL WASHINGTON]

LOSS OF THE BRITISH DOMINION IN FLORIDA.

Further south the British dominion was already diminished. Early in this year Don Bernardo Galvez arrived in the Gulf of Mexico with a considerable squadron, and a land force of 8000 Spanish troops. Before he could reach Pensacola he was overtaken by a hurricane, in which four of his ships were lost, with 2000 men on board; and he was obliged to run back to the Havanna. Solano, the chief admiral, had previously arrived at the Havanna, and being supplied with more ships and troops Galvez again

put to sea. This time he succeeded in his designs. Pensacola, the last of the British fortresses, was reduced by him, and its fall completed the conquest of all Florida. The fortress was defended by General Campbell, who had a motley group of negroes, red Indians, foreign adventurers, and a few British regulars under his command; but, on the 9th of May, after his principal powder-magazine had been blown up, Campbell found himself under the necessity of capitulating. He had gallantly defended the place for two months, although he had not more than nine hundred and fifty men under his command, and had to sustain the siege against a fleet of fifteen sail of the line, and a land force almost ten times the number of his own troops. Thus Florida, which was one of the principal acquisitions made by the British during the last war, remained to the Spaniards.

ATTACK ON MINORCA.

In Europe the Spaniards not only continued the siege of Gibraltar, but also undertook the reduction of Minorca. This island had recently been offered to the Empress of Russia, as a bait to secure her friendship to Great Britain, and to induce her to become mediatrix for a peace, on the basis of the last treaty of Fontainbleau. At first the lure seemed to be acceptable, and Potemkin, the minister of Catherine, was anxious to obtain the acquisition; but subsequently the empress seemed to think that the British empire must soon become dismembered, when probably she might obtain more; and she therefore declined accepting it under the conditions offered. This secret negociation became known to Florida Blanca, the Spanish minister, and it became a pressing motive for an attack on Minorca. Accordingly, having obtained the consent of the court of Versailles to co-operate, this became one of the principal objects of Spanish ambition. An expedition was fitted out with great skill and caution, and the Duke of Crillon was appointed to the command. The united fleets of France and Spain sailed out of Cadiz Bay on the 22nd of July, and while the mass of the force stretched out into the ocean as if with the intention of making a descent upon England, 8000 land troops were transported through the straits to Minorca. A landing was effected on the 19th of August, and General Murray, with his weak garrison of two British and Hanoverian regiments, retired into Fort St. Philip, the principal defence of the island. Crillon commenced operations by an act which would have made the blood of his brave ancestor boil within his veins: he offered General Murray a bribe of £100,000 sterling, and rank and employment in the French or Spanish service, if he would surrender and save him the trouble of a siege or blockade! This offer was indignantly refused, and Crillon then laid siege to Fort St. Philip. Yet, though he was reinforced in the course of the autumn by 4000 French troops, with good artillery and engineer officers, with more ordnance and other requisites for the siege, and though disease thinned the originally weak ranks of the besieged, at the close of the year the fort still remained in the hands of the British.

FRENCH AND SPANISH FLEETS IN THE ENGLISH CHANNEL.

In the meantime the French and Spanish fleets advanced towards the British coasts, and for some time rode triumphant in the Channel. At this time Admiral Darby had sailed from Spithead on a cruise to the Westward; but on the 26th of August he returned and got safely into Torbay. He had with him only twenty-three sail of the

line, twelve frigates, and six fire-ships; while the united fleets amounted to seventy sail, the greater number of which were ships of the line. The French and Spanish commanders held a council of war, to consider whether they should attack Darby in the harbour; but fear prevented them; and after some unavailing attempts to intercept our homeward-bound traders, this mighty armament, by the wretched state of its ships and crews, caused by sickness and dissension, was compelled to return to port, in the month of September, without performing any deed worthy of notice. All that the French and Spanish admirals did was to pick up some English vessels, which were bringing home part of the money and property which the British had seized, as hereafter noticed, at St. Eustatius.

NAVAL ACTION WITH THE DUTCH.

While the French and Spanish fleets were menacing the English coasts, a dreadful sea-fight took place between the British and the Dutch. On returning from the Baltic with a convoy of merchant vessels, Rear Admiral Sir Hyde Parker, in the beginning of August, fell in with Admiral Zouttman, with a convoy of Dutch traders, off Dogger Bank. Parker’s fleet consisted of six line-of-battle ships and several frigates; and Zouttman’s, of ten ships of the line, eight large frigates, and five sloops. On discovering each other both commanders prepared for battle, and advanced in gloomy silence until the hostile fleets were within pistol-shot. Never, perhaps, was more determined valour exhibited than on this occasion. Ranged abreast of each other, the hostile squadrons fought without intermission for nearly four hours. The slaughter on each side was terrible: the English losing about five hundred, and the Dutch about 1200 in killed and wounded. The action did not cease till the fleets on both sides were disabled; and then they lay-to for some time repairing damages, and apparently with the intention of renewing the struggle. As soon as Zouttman’s ships were made manageable, however, he wore round, and with all the sail he could carry, bore away for the Texel. Parker could not pursue him with any hope of overtaking him; but on the next day his frigates discovered the Hollandia, a sixty-eight gun-ship, which had been ruined in the battle, sunk in twenty-two fathoms of water; and it is said that most of the crew were in her when she went down. By this victory the voyage of the Dutch to the Baltic was abandoned; their means of procuring naval stores were cut off; and their valuable carrying-trade was, for this year at least, annihilated. On his arrival at the Nore, Parker was visited by the King and the Prince of Wales; and every captain that had been engaged in the action, and had escaped death, was presented to his majesty on board the Fortitude. Notwithstanding, Sir Hyde Parker was so indignant at the insufficiency of his fleet to effect any great enterprise, that he resigned; and his son, Sir Peter Parker, was appointed to the command of a squadron of frigates to block up the Dutch ports.

CAPTURE OF ST. EUSTATIUS.

The Dutch met with a severe punishment for their perfidious conduct at the hands of Admiral Rodney. Early intelligence of hostilities between the two countries had been communicated to Rodney; and in conjunction with General Vaughan he blockaded the island of St. Eustatius with his whole fleet. Eustatius was a free port, and general depot of West Indian and American produce, the property of nations both

neutral and belligerent. It was, however, a Dutch island, and that was sufficient to warrant the seizure. And this was done without any difficulty. De Graaf, the governor, incapable of making any defence, surrendered at discretion; and merchandise of all descriptions, at the estimated value of more than £3,000,000 sterling, which was stored up in the island, fell into the hands of the British. About two hundred and fifty vessels also, with much valuable property on board, were captured in the port; and a fleet of thirty Dutch West Indiamen, that had just sailed for Europe, was pursued by two ships of the line and a frigate, and every vessel was taken. Moreover, as General Vaughan kept the Dutch colours flying at St. Eustatius, a considerable number of Dutch, French, and American vessels were subsequently decoyed into the harbour, where they fell into the hands of the conquerors. Finally, the neighbouring small islands of St. Martin and Saba, Dutch settlements, were reduced; and about the same time others of their settlements on the rivers of Demarara and Essequibo, in Guiana, after losing all their shipping and most of their property, submitted to the governor of Barbadpes. Among the sufferers by the capture of St. Eustatius were many British merchants, who, confiding in its neutrality, had there accumulated large quantities of West Indian produce and European goods. These merchants stated the hardship of their case to Rodney and Vaughan; but the reply given them was, that “the island of Eustatius was Dutch, everything in it was Dutch, everything was under the protection of the Dutch flag, and as Dutch it should be treated.” But this was only the law of the sword. Suits at law ware subsequently instituted in the British courts, which decided otherwise; for large sums were recovered by the British merchants from the admiral. Notwithstanding, though Rodney erred against strict legal right, he had a powerful argument on his side—namely, that he considered himself justified in confiscating the property of British subjects, who, for their own private gain, had sacrificed the interests of their country. This argument was founded in strict truth. Eustatius had long been the chief magazine whence the Americans had procured supplies; and in that commerce British merchants, more selfish than patriotic, had anticipated. But the largest portion of the property seized belonged to the Dutch West India Company, the Amsterdam merchants, and Americans, and these had no courts to which they could appeal for its restoration. Notwithstanding, as before seen, England did not reap the full advantages of these seizures, as some of the ships in which the treasures were stored, were captured by the French and Spanish fleets in the English Channel. The island itself also was surrendered to the French, towards the end of the year, by Colonel Cockburn, in a manner that reflects no great honour on his valour.

COMMODORE JOHNSTONE ATTACKED BY DE SUFFREIN, ETC.

During this year the British Cabinet aimed at dispossessing the Dutch of the Cape of Good Hope. Commodore Johnstone was appointed to this enterprise; and he sailed with five ships of the line, some frigates, and smaller vessels, having on board three regiments, under the command of General Meadows. At the solicitation of their ally, the court of Versailles despatched a superior force, under M. de Suffrein, to counteract this design. De Suffrein found Johnstone in the neutral part of Praya, in the island of St. Jago, and proceeded to attack him. He advanced as to certain victory; but though the British force was at first thrown into some confusion, de Suffrein was in the end defeated. Failing in his attempt, the French admiral sailed to the Cape,

which he succeeded in reaching before his enemy, and where he landed some troops for the defence of Cape Town. In following de Suffrein, the British commodore met with five Dutch East Indiamen, richly laden, and he succeeded in capturing four of them, and in burning the other. Perceiving, however, that he could not compass the original object of his expedition, he returned to England. When he first set sail, Johnson was accompanied by some outward-bound East Indiamen, which, on his return, he intrusted to Captain Christie, with whom he left a squadron for their defence. Christie captured a French frigate, and convoyed the East Indiamen safely to their place of destination. In the meantime de Suffrein sailed to Pondicherry; but he could not prevent the triumph of British arms on the coast of Coromandel and the island of Sumatra. During the autumn, Negapatnam, Pedang, and other places belonging to the French and Dutch, were captured.

FURTHER OPERATIONS IN THE WEST INDIES.

It was while Admiral Rodney was employed at St. Eustatius, that de Grasse spread his sails for the Chesapeake. Rodney detached Hood and Drake, with seventeen sail of the line, to intercept his course off Fort Royal Bay, and a partial engagement took place, but de Grasse was nevertheless able to hold on his way.

While he proceeded onwards for America, the Marquis de Bouille suddenly appeared off the island of St. Lucie, and landed some troops; but he was foiled in his designs, and he then turned his attention to the reduction of Tobago. This island, though bravely and ably defended by Governor Ferguson, was captured; and this conquest terminated all naval operations for the year in the West Indies. Soon after, Rodney returned to England on account of his health, and Sir Samuel Hood was left in command of the fleet.

SENTIMENTS OF FOREIGN POWERS TOWARD ENGLAND.

The British cabinet were everywhere frustrated in their endeavours to gain friends and allies. After the failure of their negociations with Spain, they sought to purchase the friendship of the emperor Joseph II., by offering to him the navigation of the Scheldt, and other advantages, both commercial and political. Joseph, however, still retained all his ancient resentment against George III. and his ministers, and their overtures were unheeded. The offers of the British cabinet, indeed, appear to have been construed by him into a confession of weakness; for he even ordered his subjects to withdraw their money from the English funds, under the plea that a national bankruptcy was inevitable. Probably, the long and loud cry of the opposition, concerning the weakness and poverty of England, had reached his ears, which may have led him into the belief that such a consummation was at hand. It would have been well for Joseph’s honour had he stopped here. Although England was surrounded by enemies, and not a friend held forth a helping hand, he sought to arm the Empress of Russia against her; asserting, that as Great Britain had commenced hostilities against the Dutch, on account of the Armed Neutrality, she was called on to assist them by treaty. Joseph failed in his attempt to put the sword into the hands of the empress, but he diminished her attachment to the English, and increased her desire to extend that confederacy. As for Joseph himself, he now openly declared his

accession to the Armed Neutrality, and thereby testified a desire for the triumph of the Americans, so that ministers plainly saw that they had nothing to hope from his mediation. This he continued to offer, while binding himself to the most active enemies of Great Britain; but “all was false and hollow.”

MEETING OF PARLIAMENT.

Parliament reassembled on the 27th of November. Two days before this, intelligence had arrived of the surrender of Lord Cornwallis—intelligence which had caused great consternation in the British cabinet. His majesty, however, had heard the news with calmness, dignity, and self-command; and his speech from the throne was in the same determined language as at the close of the last session, when the prospects of the nation were radiant with hope. After expressing his concern at the sad reverse, he declared that he could not consent to sacrifice, either to his own desire of peace, or to the temporary ease and relief of his subjects, those essential rights and permanent interests on which the strength and security of this country must ever principally depend. He retained, he said, a firm confidence in the protection of Divine Providence, and a perfect conviction of the justice of his cause; and he called for the concurrence and support of parliament, together with a vigorous, animated, and united exertion of the faculties and resources of the people. In the course of his speech he remarked, that the favourable appearance of our affairs in the East Indies, and of the safe arrival of our numerous commercial fleets, were matters for congratulation: evidently designing these as a kind of set-off for our reverses in the West, and as encouragements to persevere in the struggle.

In the commons, an amendment to the address was moved by Mr. Fox, who declared, “that any one unacquainted with the British constitution, and not knowing that the speech was contrived by a cabinet-council, would pronounce it that of an arbitrary and unfeeling monarch, who, having involved the slaves, his subjects, in a ruinous and unnatural war, to glut his enmity or satiate his revenge, was determined to persevere, in spite of calamity or fate itself.” In the burden of the speech, and the address, opposition had a fine theme for declamation. The mover of the address complained, in strong terms, that certain members were so lost to honour and duty, as to glory in the success of the enemy. Fox replied to this invective in the words which Lord Chatham had used at the commencement of the dispute: he “thanked God that America had resisted the claims of the mother country!” He then continued:—“All the calamities of the nation are ascribed to the wishes, the joy, and the speeches of the opposition. O, miserable and unfortunate ministers! Blind and incapable men!—whose measures are framed with so little foresight, and executed with so little firmness, that they crumble to pieces, and bring ruin on the country merely because a rash, weak, or wicked man in the house of commons makes a speech against them! Retrospective measures are deprecated; but ministers must bear to hear them from the representatives of an abused people. He even trusted that they would hear them at the tribunal of justice, and expiate them on the public scaffold! He would not say they were actually in the pay of France, for he could not prove the fact; but he would venture to say, that they had worked for the aggrandisement of the Grand Monarque more faithfully and successfully than any

ministers of his own had ever done." Fox then reviewed the origin and conduct of the war, ascribing our loss to the undue influence of the crown, and connecting the calamities of the nation with the system of government, and to every one in power, and particularly to Lord Sandwich, as first lord of the admiralty He concluded by saying, that there was no hope of better things until the whole cabinet was changed; and by moving, as an amendment, a clause, binding the house to apply themselves with united hearts, to propose and adjust such counsels as might, in this crisis, excite the efforts, point the arms, and, by a total change of system, command the confidence of all his majesty's subjects. Mr. Thomas Pitt followed on the same side, reiterating the oft-repeated cry of secret influence, and expressing a hope that ministers would not be displaced till they had brought the nation to such a crisis as must draw down on their heads their just reward! Other members spoke in reproachful terms of the condition of the navy, and were answered by Lord Mulgrave, who proved that their accusations were unjust and unfounded. Lord North replied to Fox, and expressed great indignation at the insinuation, that ministers were in the pay of France. There was no man in the kingdom, he said, that would believe such a monstrous absurdity; and he vindicated their zeal in the service of their country, and ascribed any errors that had been committed to the head rather than to the heart. The American war, he continued, was prosecuted, not with the design of aggrandising the crown at the expense of the constitution, but of preserving, unbroken, that venerable fabric for which our forefathers had bled, and which all Europe envied. He then reminded the house, that the quarrel had been begun by parliament, and not by the king—not under the present ministry, but by that formed out of the ranks of the members of the existing opposition. A disaster had occurred in Virginia, but were we, he asked, on that account to lie down and die? For his own part, he thought, that it should rather animate us to increased exertions: by dejection and despair everything might be lost. As for himself, he declared, that he would not be deterred by menaces of impeachment from striving to preserve the rights and legislative authority of parliament. The war had been unfortunate, but not unjust: it was founded in right, and dictated by necessity. He had always thought so, he added, and if the share he had taken in it should bring him to the scaffold, his opinions would remain unaltered. Burke replied to the premier in a speech of great power. North's speech, he said, was not only imprudent but audacious. "The war," he "continued, was not unfortunate, but disgraceful; for the former epithet could only apply to occurrences in which fortune alone was concerned, whereas the present war exhibited neither plan nor foresight. Victory and defeat, in this case, were each equally calamitous, for each instigated us to go on; but the king's speech was the greatest of all calamities, for it showed the determination of ministers to consummate our ruin." Burke spoke largely on the "rights" for which it was said that the war was begun, and for which it was continued. He asked, whether we ought to risk everything, and think of no consequences for the sake of a right? Whether ministers did not know that right without might was of little worth? and whether a claim, without the power of enforcing it, was not nugatory in the copyhold of rival states? He compared the reasonings of ministers to a man, who, full of his prerogative of dominion over a few beasts of the field, should assert his right to shear a wolf, because it had wool upon its back, without considering whether he had the power of using the shears, or

whether the animal would submit to the operation of shearing. He remarked:—“Are we yet to be told of the rights for which we went to war? Oh, excellent rights! Oh, valuable rights! Valuable you should be, for we have paid dear at parting with you. Oh, valuable rights! that have cost Britain thirteen provinces, four islands, 100,000 men, and more than £70,000,000 of money! Oh, wonderful rights! that have lost to Great Britain her empire on the ocean,—her boasted, grand, and substantial superiority,—which made the world bend before her! Oh, inestimable rights! that have taken from us our rank among nations—our importance abroad, and our happiness at home; that have taken from us our trade, our manufactures, and our commerce; that have reduced us from the most flourishing empire in the world, to be one of the most compact and unenviable powers on the globe! Oh, wonderful rights! that are likely to take from us all that yet remains!” This picture of the nation’s misery, however, was greatly overwrought. England was not yet reduced to the abject state in which Burke would have had the house believe she was in. Her empire on the seas was not yet lost, nor was she shorn of her rank among the nations. Provinces, islands, men, money, and trade had been lost in the struggle, but she was still able to lift up her head among the nations of the earth. Opposition, in truth, in uttering this language, must have felt that it partook of the nature of Oriental hyperbole; and all men could see that it was adopted for party purposes. Fox’s amendment was negatived by two hundred and eighteen against one hundred and twenty-nine.

A similar amendment to that of Fox was moved in the house of lords by the Earl of Shelburne, who decried the whole conduct of the war, imputing its disasters to a want of system, combination, and intelligence; expressed his fears that we might find another Chesapeak at Plymouth, or in the Thames; declaimed against the war with Holland, as a perfidious measure; and asserted, in the language of Chatham, that if the present system were pursued, “his majesty’s crown would soon be not worth his wearing.” The Duke of Richmond, the Marquess of Rockingham, and Lord Camden likewise censured the conduct of ministers: the former ascribing all the faults of government to an interior cabinet. In support of this, Richmond quoted Chatham’s declaration, “that when he entered the king’s closet, he found the ground rotten, and himself duped and deceived.” The measures of government were defended by the lord-chancellor, Lord Stormont, and the Earl of Hillsborough, and the amendment was rejected by seventy-five against thirty-one.

On bringing up the report of the address, the debate was renewed, in the course of which William Pitt delivered a speech which was applauded by both sides of the house. In his speech Pitt protested against the house pledging itself by the address to continue the American war; asserted, that no two members on the treasury-bench agreed in sentiment, or were in heart sincere friends; denied that the war was either just or necessary; spoke with horror of the fate which awaited the American royalists by the capitulation of Lord Cornwallis; and expressed a hope, that if ministers persevered in their present course, they might meet with a fate equally severe. Burke also animadverted in glowing terms on the capitulation of Lord Cornwallis, and the omission of any article which would secure the American loyalists from the vengeance of their countrymen. He remarked:—“It is a horrid spectacle which must meet the eyes of a prince of the blood, (Prince William Duke of Clarence,) who cannot

sail along the American coast without beholding the faithful adherents of his father hanging in quarters on every headland." This was literally true; but the fact is, the headlands of America had been decorated with gibbets from the very commencement of the war, and the surrender of Lord Cornwallis had nothing to do with the matter. As for the fall of Cornwallis, it was not an ignoble one; for his handfull of men could scarcely have been expected to hold out against the united arms of France and America. One member, Mr. Courtenay, in reply, justly observed that his chains were wreathed with laurels; that he was an ornament to his profession; and that he was entitled to the highest dignities that could be conferred upon him by his sovereign. The report was adopted by one hundred and thirty-one against fifty-four.

{GEORGE III. 1781–1782}

CENSURES ON RODNEY AND VAUGHAN.

On the 4th of December Burke moved for a committee of the whole house, "to inquire into the confiscation of the effects, wares, and merchandise belonging to his majesty's new subjects of St. Eustatius, and further to inquire into the sale and distribution of a great part of the said effects to the islands belonging to France, and to other parts of the dominions of his majesty's enemies." In making this motion, Burke represented the attack on Eustatius as wanton; maintained, that by means of the effects and stores which had been sold there, the enemy had been supplied with what they otherwise could not have obtained; and accused Rodney of promoting the success of the French by lingering at the island while their fleet was reinforced, so as to enable them to take Tobago. Rodney and Vaughan were both in the house, and the former replied to this attack. The residents, who called themselves Englishmen, he said, were chiefly Jews of the worst character, who had been in the habit of supplying the enemies of England with warlike stores, and therefore were unworthy of favour. As to the charge of neglect, he remarked, that he had taken every care to see the stores found at St. Eustatius safely conveyed to his majesty's store-houses at Antigua, and that he had, under every circumstance, made the best use of the inferior fleet at his disposal: this he proved by narrating how he was situated at the time. Vaughan, in his defence, declared that he had not been benefited to the amount of a single shilling by the capture of St. Eustatius; that he had treated the enemy with great lenity; and that he had acted to the best of his judgment for his country's welfare. The motion was negatived by one hundred and sixty-three again st eighty-nine.

DEBATE ON THE NAVY.

On the 5th of December Lord Lisburne moved, that

100,000 seamen should be granted for the ensuing year. Mr. Hussey, a member of opposition, moved an amendment, substituting 110,000, which brought on a stormy debate on the state of the navy, in the course of which ministers were taunted with delay and neglect in fitting out ships. It was asserted, that if ministers refused the additional supply offered, they must be suspected of some dark and sinister design; but they nevertheless did refuse the offer, and the amendment was rejected by one hundred and forty-three against seventy-seven.

MOTION OF SIR JAMES LOWTHER FOR PEACE, ETC.

Previous to the debate on the navy, when the army estimates were laid before the house, a motion was made, that no supplies should be granted until the ministers had given proof of repentance and amendment—in other words, that war with America should be discontinued. This was negatived by an overwhelming majority; but nothing daunted by this defeat, on the 12th of December Sir James Lowther moved these two resolutions:—“To declare that the war carried on in the colonies and plantations of North America had been ineffectual to the purposes for which it had been undertaken; and that it was also the opinion of the house, that all further attempts to reduce the Americans to obedience by force must be injurious to this country, by weakening her powers to resist her ancient and confederated enemies.” The motion was seconded by Mr. Powys, in a long and able speech, in which he declared that, as no idea of revenue remained, and that as there was no idea of alleviating the burdens of Great Britain by carrying on the war, the country gentlemen, long deceived, could be deceived no longer. Some of the supporters of government seem either to have been convinced of their error, or to have perceived that a change was coming, for more than twenty spoke or voted in favour of the motion. It was, however, opposed by Lords North and Germaine, and, on a division, was negatived by two hundred and twenty to one hundred and seventy-nine. War, therefore, was to be continued. At the same time it was evident, from Lord North’s speech, that the plan of operations would, in the next campaign, be materially altered. It would not, he said, be wise or right to prosecute the war in America on a continental plan; that is, by sending fresh armies through the colonies. North, however, argued that the posts held in America must be defended, and that the British trade must be protected against American privateers. The subject of war was renewed on the 14th, when Mr. Pitt reviewed the whole of the operations, and asserted, that the ministry were intent only upon one thing, and that was the destruction of the empire. He added:—“God grant that their punishment be not so long delayed as to involve a great and innocent family, who, though they share not the guilt, will most likely participate in the atonement.” Sir George Saville followed, and in his speech likened the crown and parliament to dancers in a minuet, to a tune composed by the cabinet—the crown led off one way, the parliament to the opposite corner; and they then joined hands, when the dance ended as it began. He also compared ministers to the Spartan, (it was an Athenian,) who, in an engagement by sea, seized the stern with his right hand, which was instantly chopped off; and who then renewed the effort with his left, which shared the same fate, whereupon he seized the galley with his teeth. The ministry had lost two armies in attempts on America, yet they were determined to proceed; but he warned them, that when the Spartan seized the vessel with his teeth, he forfeited his head. This debate was intended to delay the supplies; but on a division, the majority was one hundred and sixty-six to eighty-four. Subsequently a debate occurred on the subject of the ex-president Lauren’s imprisonment in the Tower, and Mr. Burke gave notice of a motion on his behalf; but this was rendered unnecessary, as Laurens was soon after discharged in exchange for General Burgoyne. In the upper house an attempt was made by the Marquess of Rockingham to prevent the third reading of the Malt and Land-tax Bills before the recess, but it was unavailing. Such were the

proceedings of parliament before the adjournment.

CHAPTER XIII.

{GEORGE III. 1782–1784}

Recent events on the Theatre of War..... Fox’s Motion for Inquiring into the Navy..... Motions of Inquiry in the House of Lords..... Debates on Lord George Germaine’s Elevation to the Peerage..... Renewed Attacks on Lord Sandwich: Resignation of Lord North..... The New Ministry..... Affairs of Ireland..... Bill for excluding Contractors, &c. Resolutions respecting Wilkes expunged from the Journals..... Disfranchisement of Cricklade, &c. Debates on Parliamentary Reform..... East India Affairs..... Change in the Ministry..... Prorogation of Parliament..... Victory of Rodney..... Affairs of the War in America..... State of the War in the West Indies, &c. Maritime Events..... Siege and Relief of Gibraltar..... Prospect of general Pacification..... Meeting of Parliament..... Preliminaries of Peace..... Re-assembling of Parliament..... The Coalition Ministry..... Re-establishment of Commercial Intercourse with America, &c. Pitt’s Plan for Reforming the Treasury, &c. East India Affairs..... Petition of the Quakers against the Slave Trade..... Settlement on the Prince of Wales..... Parliament Prorogued..... Execution of Treaties, &c. Meeting of Parliament..... Fox’s India Bill..... Dissolution of the Coalition Ministry: Pitt made Prime Minister..... Efforts of the Opposition against the New Ministry.

{A.D. 1782}

RECENT EVENTS ON THE THEATRE OF WAR.

It having been ascertained that the French government had sent out a naval armament with large supplies for the East and West Indies, Admiral Kempenfelt was despatched for the purpose of intercepting them. The squadron with which Kempenfelt was intrusted was not sufficiently powerful for the object of his expedition; but having met the enemy’s ships dispersed by a gale of wind off Ushant, he succeeded in capturing twenty transports laden with ordnance, stores, and troops, with which he returned to port. This success, however, was quickly followed by news of sad reverses, and increased dangers and difficulties. St. Eustatius was taken by the French; Gibraltar was hard pressed by the Spaniards; the British possessions in the West Indies were in imminent peril from the French arms; and finally Minorca was lost. This latter event took place on the 5th of February, when General Murray, from want of sufficient force to withstand the besiegers, and from the sickness which prevailed among the few troops he had under his command, was obliged to capitulate. His real position may be gathered from a letter which he wrote a few days after. “Perhaps,” said he, “a more noble, or a more tragical scene was never exhibited, than that of the march of the garrison of St. Philip’s through the Spanish and French armies. It consisted of no more than six hundred old decrepit soldiers, two hundred seamen, one hundred and twenty-five of the royal artillery, twenty Corsicans, and twenty-five Greeks, Turks, Moors, Jews, &c. The two armies were

drawn up in two lines, the battalions fronting each other, forming a way for us to march through: they consisted of 14,000 men, and reached from the glacis to George Town, where our battalions laid down their arms, declaring they had surrendered them to God alone, having the consolation to know the victors could not plume themselves in taking an hospital. Such were the distressing features of our men, that many of the Spanish and French troops shed tears as they passed them." Crillon himself was touched with pity and admiration; and he atoned for his previous fault in endeavouring to bribe General Murray, by treating the vanquished with great humanity; causing them to be attended by his surgeons, and providing for their comfort. These reverses had a great effect upon the nation. Petitions were voted in the city of London, and in several counties, to his majesty, reprobating the whole conduct of the war, and praying the dismissal of all his advisers, both public and private. Still, though the warlike tone of the people was lowered, the principle of the war was not generally unpopular, nor the public indignation against our many enemies abated. It was the improbability of success alone that called forth the petitions.

FOX'S MOTIONS FOR INQUIRY INTO THE NAVY.

Encouraged by the recent reverses, during the recess the opponents of administration had been employed in forming and maturing a general plan of attack. The chief conduct of this was intrusted to Mr. Fox, who, on the reassembling of parliament, moved for an inquiry into the causes of the constant ill-success of the naval forces, and more especially during the preceding year. This inquiry, it was stated, would resolve itself into two distinct parts: whether Lord Sandwich, the first lord of the admiralty, had the means of procuring a navy equal to the exigencies of the state; and whether he employed the force which he possessed with wisdom and ability? Lord Sandwich was defended by Captain Luttrel and Lord Mulgrave; but Lord North declared that both himself and the object of the attack were anxious that the subject should undergo a complete investigation; and the motion passed without a division. An animated debate took place respecting the papers to be produced; and finally a suggestion of Mr. Pitt was adopted: namely, that the substance of letters and documents relating to the subject, and not the letters and documents themselves, should be laid before the house. The debate was then postponed till the 7th of February, when, after the reading of the papers which ministers consented to produce, Fox brought forward several distinct charges against the board of admiralty. These were:—That de Grasse was suffered to depart for the West Indies without any effort to intercept his fleet; that the loss of the convoy sent home with the booty captured at St. Eustatius might have been prevented, had a squadron been sent out for its protection; that a letter sent by the admiralty to the merchants of Bristol, had misled them with reference to the presence of the French fleet in the Channel, whereby the trade of their port was endangered; and that the fleets sent out with Admiral Kempenfelt and against the Dutch, were insufficient for the object of their expedition. Fox concluded by moving, that there had been gross mismanagement of naval affairs during the year 1781. This motion was supported by Lord Howe and Mr. Pitt; but Lord Sandwich was again defended by Lord Mulgrave; and on a division, it was lost by a majority of twenty-two: a majority, however, which showed that there

was a change of opinion in the house.

MOTIONS OF INQUIRY IN THE HOUSE OF LORDS.

In the house of Lords, after parliament had reassembled, the Duke of Richmond moved for an inquiry into the execution of Colonel Hayne, at Charlestown; but his grace was outvoted by seventy-three against twenty-five. Subsequently, the Duke of Chandos moved for an inquiry into the cause which led to the surrender of Lord Cornwallis, and also for all copies of the correspondence between ministers and Sir Henry Clinton, during the preceding year. These propositions were agreed to, but no results arose therefrom.

DEBATES ON LORD GEORGE GERMAINE'S ELEVATION TO THE PEERAGE.

About this time, Lord George Germaine resigned office, and undeterred by his unpopularity, his majesty created him Viscount Sackville. On the report of this proceeding, the Marquess of Carmarthen brought the subject before the Lords, and moved a resolution, "that it was derogatory to the honour of that house; that any person labouring under the censure of a court-martial, should be recommended to the crown to be raised to the dignity of a peerage." In moving this resolution, the marquess read the sentence of the court-martial, which had been passed upon Lord George Germaine, together with the public orders issued upon it by George II. Several speeches were made, reflecting on the character of the embryo peer, and threatening him with impeachment; but the motion was objected to on the part of the ministers, as interfering with the prerogative of the crown; and the question of adjournment was carried by a large majority. On the 18th of February, Lord George, as Viscount Sackville, took his seat among the peers, when the Marquess of Carmarthen repeated his motion. The new-made peer defended himself with great spirit and dignity; and he was also defended by the lord chancellor and several other peers, so that, when the motion was put to the vote, it was lost by a majority of ninety-three against twenty-eight. Nine peers entered a protest on the journals, repeating the motion, sentence, and public orders, and declaring "that the elevation of Lord Sackville was a measure fatal to the interests and glory of the crown, as well as the dignity of parliament; an insult on the memory of the late sovereign, and every survivor of the illustrious house of Brunswick." The seals which Sackville had resigned were given to Mr. Welbore Ellis, whose appointment gave great umbrage to the members of opposition.

RENEWED ATTACKS ON LORD SANDWICH: RESIGNATION OF LORD NORTH.

Viscount Sackville had retired from the thickest of the battle, but Lord Sandwich was still exposed to the fire of the enemy. On the 20th of February, Fox renewed his attack upon him, by moving a resolution similar to that which he had already lost in committee. His censure was extended this time to the whole board of admiralty, and he was ably seconded by Mr. Pitt, who went through an accurate detail of naval events in the preceding year, and commented on each with remarkable acuteness and great force of reasoning. His speech appears to have had a great effect upon the house, for on a division the motion was lost by a majority on the part of ministers, of nineteen only. Encouraged by the decreasing majorities of administration, opposition

continued their attacks. On the 27th of February, General Conway moved:—“That the further prosecution of offensive hostilities for the purpose of reducing the revolted colonies to obedience by force, would weaken the efforts of Great Britain against her European enemies; increase the mutual enmity so fatal both to Great Britain and America; and, by preventing a happy reconciliation with that country, frustrate the desire expressed by his majesty, of restoring the blessings of peace and tranquillity.” The storm in the house was so loud on this occasion, that Lord North could scarcely obtain a healing. When he did, he objected to the motion as dangerous, on account of the information it would convey to our enemies, and as tending to retard the attainment of peace, which he said was now the wish on both sides of the house. He added, that if the house should show that they had wholly withdrawn their confidence from him, it would then be his duty to resign office. Mr. Wallace, the attorney-general, endeavoured to ward off the blow, by stating his intention to bring in a bill which would enable ministers to treat on the basis of a truce, for which reason he moved an adjournment of the debate. But opposition were now satisfied that they should obtain a victory, and were resolved to push the matter forward vigorously. The motion for adjournment was lost by a majority of nineteen; and the original question and an address to the king were then carried without a division. The answer of his majesty, which was very vague, was reported to the house on Monday, and thanks were voted unanimously. But opposition had no idea of being satisfied with a half-triumph. As soon as they had paid this compliment to his majesty, General Conway moved:—“That the house would consider as enemies to his majesty and the country all those who should advise, or by any means attempt, the further prosecution of offensive war on the continent of North America;” a motion which was agreed to without a division. It was hoped that ministers would now resign, but Lord North still kept his seat on the treasury-bench, and the attorney-general, on the next day introduced his plan of a truce with America. His scheme was denounced as a farce by Fox, but it was nevertheless agreed to without a division. On this occasion Lord North told Fox in plain terms, that he would not quit office to gratify his impatience; and that he would not retire till the king ordered him, or until the house clearly proved that he must retire. He retained office, he said, in order to prevent confusion, and the introduction of mischievous and unconstitutional principles. Opposition, however, were intent upon driving him from office, and would not be satisfied till they had achieved a full and final triumph. On the 8th of March, Lord John Cavendish, at the close of a series of resolutions, moved this direct vote of censure upon ministers:—“That the chief cause of all the national misfortunes is want of foresight and ability in the members of administration.” A debate ensued which lasted till two o’clock in the morning, when the house divided on the order of the day, moved by ministers, and which was carried by a majority of eight, so that the motion of Lord John Cavendish was lost. Nothing daunted, however, opposition returned to the charge. On the 15th Sir John Rous moved:—“That the house could no longer repose confidence in ministers.” This motion was also lost by a majority of nine; but Lord Surrey gave notice that he would make a motion to the same effect on the 20th, so that there was a prospect of the struggle being continued. But the work of the opposition was now done—their long-wished-for and ardently-sought triumph achieved. On the 19th of March, Lord North sent a message to the king, intimating

the necessity of his immediately resigning. His majesty replied, that he should be at St. James's Palace on the following day, when he would see him, and in that interview Lord North tendered his resignation. He rode direct from his majesty to the house of commons, where Lord Surrey was waiting to make his motion. On his arrival it was moved:—"That the Earl of Surrey be now heard;" on which Lord North rose and calmly told the house, that as the object of the intended motion was the removal of his majesty's ministers, such a motion was become unnecessary, as the present administration was no more! He moved an adjournment of five days to allow time for new arrangements, to which the house agreed, and Lord North then left the treasury-bench, where he had presided for twelve years as the supreme personage in the house of commons. He retired from office a poorer man than he came into it: a noble proof of his integrity of conduct. His income would have been insufficient for the education and maintenance of his numerous children, had not his majesty been pleased to secure him in the office of lord warden of the cinque ports. On his retirement he received flattering compliments from his adherents, while opposition were not ashamed of exhibiting a glowing exultation at their triumph. So marked was this exultation in several of his opponents, that Burke, more generous, and more noble, exhorted them to guard against those passions which distort the human mind, and severely censured them for their ill-timed and misplaced joy. He also pointed out to them the great expectations which the nation had aright to expect from them after their manifold declarations, and set before them the difficulty of the task which they had to accomplish. Wise men there were among them: but it is a question whether under the circumstances in which Lord North was placed, they could have guided the helm of the state with greater steadiness or greater skill.

THE NEW MINISTRY.

In the ranks of the opposition there were two parties: one which contended for the complete emancipation of the colonies; and the other, though opposed to the principle of taxation and the continuance of hostilities, which still wished to maintain the principle of supremacy over the colonies. At the head of the first of these parties was the Marquess of Rockingham, and of the second, the Earl of Shelburne. His majesty was still reluctant to acknowledge the independence of the colonists, and he, therefore, naturally looked to Lord Shelburne as the successor of Lord North. Accordingly Shelburne was sent for, and had the first post offered him; but his lordship informed his majesty that, in his opinion, no one could at present fill that situation except Lord Rockingham. A negociation was therefore set on foot with the Marquess, whose appointment was soon afterwards announced, with Lord Shelburne and Mr. Fox as secretaries of state. The other new ministers were Lord Camden, as president of the council; the Duke of Grafton, as keeper of the seal; Admiral Keppel, created viscount, as first lord of the admiralty; Lord John Cavendish, as chancellor of the exchequer; General Conway, as commander-in-chief; Mr. Dunning, created Lord Ashburton, as chancellor of the Duchy of Lancaster; and the Duke of Richmond, as master-general of the ordnance. Lord Thurlow retained the great seal. The other departments of the state were filled by persons eminent for rank or talent. The Duke of Portland was sent out as lord-lieutenant of Ireland; Mr. Burke was made paymaster of the forces; Mr. T. Townshend became secretary at war, and Colonel Barré

treasurer of the navy; Mr. Sheridan was under-secretary of state; Lord Howe, created viscount, was appointed to the command of the grand fleet; Mr. Kenyon and Mr. John Lee were made attorney and solicitor-general; and Sir William Howe was made lieutenant-general of the ordnance. The usual changes, also, took place in the royal household; at which the king was far more affected than he was by the total change in the ministry. It is said that William Pitt was offered the place of a lord of the treasury, which office he rejected with disdain. Be this as it may, Pitt, who had largely contributed to the overthrow of Lord North's cabinet, remained without post or situation. Pitt, however, probably consoled himself with the idea that the new ministry would not retain the reins of government for any length of period, and that on their ruin he might rise to the highest office in the state. From the very conditions, indeed, upon which the Marquess of Rockingham consented to form the new ministry, and to place himself at the head, it was clear that his administration would not be of long duration. These conditions were:—"Peace with the Americans, and the acknowledgment of their independence not to be a bar to the attainment of that object. A substantial reform in the several branches of the civil list expenditure, on the plan proposed by Mr. Burke. The diminution of the influence of the crown, under which article the bills for excluding contractors from seats in parliament, and disqualifying the revenue-officers from voting in the election of members, were included." These were arbitrary measures to impose upon a monarch holding-such sentiments as George III., and it was manifest to all men of discernment that the men who imposed them upon him could not hope to possess his confidence. Moreover, there were wide disagreements in the cabinet, as to the means of pursuing the first of these objects, and as to the lengths to which the others should be carried. Finally, mutual jealousies and dislikes existed between the members of the confederated parties; and it required no prophetic eye to foresee that they would never act with that unanimity requisite for the establishment of their power. The issue was, that "every day brought forth a new proof of that hatred which the parties composing this administration bore towards each other; the Rockinghams abused Lord Shelburne for want of good faith; and the reply of the Shelburnes was, that they were in no ways pledged to Lord Rockingham."

AFFAIRS OF IRELAND.

In consequence of writs having to be issued for new elections, to replace such members as had vacated their seats by accepting office, parliament did not re-assemble until the 8th of April, on which day the new administration commenced the trial of their strength. The first measure of national importance which they brought forward, was the repeal of an act passed in the reign of George I., for securing the dependency of Ireland; and against which a loud clamour had been long raised in that country. This repeal, which was carried through both houses of parliament without a division, was virtually a renunciation of legislating for Ireland; and therefore gave great satisfaction to the whole body of the Irish people. This satisfaction was increased by the abolition of the power of suppressing or altering bills in the privy-council, and the limitation of the duration of the Mutiny Act to the term of two years. So gratified were the Irish with these concessions, that a vote of the house of commons in that kingdom passed unanimously for raising 20,000

seamen for the service of the British navy. The subject of Irish discontent was introduced into the British parliament by Mr. Luttrell, but it was the eloquence of Mr. Grattan which moved ministers to make these large concessions to Ireland. While they were hesitating as to the extent of the gifts which they should offer to allay the angry feelings that existed in that country, he set forth in a lofty tone of eloquence the rights of Ireland, and ministers wavered no more. The spirit of the Irish nation may be seen in the following portion of his speech. He remarked:—"I remember Ireland when she was a child, and have beheld her progress from injuries to arms—from arms to liberty. The Irish are no longer afraid of the French, nor of any nation; nor of any minister. If men turned their eyes to the rest of Europe, they would find the ancient spirit expired, liberty ceded, and empire lost: nations subsisting on the memory of past glory, and guarded by mercenary armies. But Ireland, quitting such examples, had become a model to them: she had excelled modern, and equalled ancient Europe. The meeting of delegates at Dungannon was a great event; and like all original measures, matter of surprise till it became matter of admiration. It may be compared to the English convention parliament, or the assembly of barons at Runnymede; all were original transactions, not flowing from precedent, but containing in themselves precedent and principle. Every great constitutional question would have been lost, the public would have been lost, had they depended only on parliament; but they had fallen into the hands of the people, and by the people they would be preserved. The Irish volunteers are associated for the preservation of the laws, but the claims of the British parliament are subversive of all law. The volunteers had supported the rights of the Irish parliament against those temporary trustees who would have relinquished them? but England had no reason to fear the Irish volunteers: they would die for England and her majestic race of men. Allied by liberty as well as allegiance, the two nations formed a constitutional confederacy: the perpetual annexation of the crown was one great bond, but liberty was a still greater. It would be easy to find a king, but impossible for Ireland to find a nation which could communicate to them a great charter, save only England. This made England a natural connexion; and every true Irishman would exclaim, 'Liberty with England; but at all events, Liberty.'"

{GEORGE III. 1782–1784}

BILL FOR EXCLUDING CONTRACTORS, ETC.

It has been seen that bills for disabling revenue-officers from voting at elections, and excluding contractors from the house of commons, had been repeatedly brought into parliament, and as repeatedly negatived. In order to acquire popularity ministers revived these bills, and they now passed with approbation and applause. And it seems to have been high time that such measures should have been adopted. In support of the former bill, the Marquess of Rockingham declared that the election chiefly depended on officers of the revenue in seventy boroughs, and that nearly 12,000 officers, created by the recent administration, possessed votes in other places. He argued that his situation, as first lord of the treasury, would be extremely uneasy if the bill were rejected, for he could not without remorse subject them through his

influence to the necessity of voting against the dictates of gratitude and conscience. This was a curious argument, but it terminated the debate, and the bill passed. About the same time, also, Mr. Burke’s Reform Bill was again brought forward, and after some warm opposition in the house of lords was adopted. By this bill the board of trade, the board of works, the great wardrobe, the office of American secretary of state, and many sinecure appointments were abolished.

RESOLUTIONS RESPECTING WILKES EXPUNGED FROM THE JOURNALS.

During this session, Wilkes was successful in obtaining the erasure of the resolutions concerning the celebrated Middlesex election from the journals. The motion was made by himself and was seconded by Mr. Byng. It was opposed by Fox, the “man of the people,” on the principle that the house of commons ought, for the advantage of electors, to have the privilege of expelling those whom they as representatives deemed unworthy of a seat. Elated with his triumph, Wilkes published a letter expressive of delight, but the people generally did not participate in his triumph. The sun of Wilkes’s popularity had long gone down, and the people read his letter with indifference.

DISFRANCHISEMENT OF CRICKLADE, ETC.

A few days after the success of Wilkes an act was passed, by large majorities in both houses, for disfranchising many corrupt voters of the borough of Cricklade, and extending the right of suffrage to the freeholders of the hundred. This bill was strenuously opposed in the upper house by Lords Thurlow, Mansfield, and Loughborough. In the course of the debate the Duke of Richmond accused the lord-chancellor Thurlow, not without justice, of opposing every reform; and Lord Fortescue attacked the law lords in general, declaring that the dignity of the house was lowered and tarnished by their presence. All the above bills originated with the Rockingham party. Soon after, Lord Shelburne introduced a bill of his own, for compelling persons holding patent places in the colonies and foreign possessions to reside, and do something for their money, which was adopted.

DEBATES ON PARLIAMENTARY REFORM.

Encouraged by the fate of Criclade, and by petitions for parliamentary reform from the Livery of London, and the still existing county associations, on the 7th of May, Mr. William Pitt moved for a committee to inquire into the state of the representation in parliament, and to report their observations thereon to the house. The petitions which had been presented prayed for the abolition of the Septennial Act. Pitt did not adopt this prayer, but demanded the sweeping away of all rotten boroughs, and the establishment of an equal representation. His motion was seconded by Alderman Sawbridge, and was warmly supported by Sir George Saville, Mr. Fox, and other Whig orators. It was opposed by Thomas Pitt, who declared rotten boroughs to be an essential working part of the constitution—a sentiment suggested by his being proprietor of the borough of Old Sarum. Mr. Powys also could not see any utility in the revisal of a system which had stood the test of ages; and Mr. Dundas thought that the inquiry promised no benefit, that it would lead to evil, and that it would be wiser to submit to certain irregularities in an established form of government, than by

attempting the correction to hazard the safety of the whole fabric. The debate manifested that the Whig aristocracy, now in power, were as anxious to quash this inquiry as the Tories themselves could have been; and it is remarkable, that Burke, Townshend, and others were also adverse to the motion. On a division, however, the motion was rejected by a majority of twenty only; the numbers being one hundred and sixty-one against one hundred and forty-one.

EAST INDIA AFFAIRS.

A secret committee had been appointed to investigate the abuses of the Indian government. During this session several reports were presented to the house, when Mr. Dundas reviewed the state of the company and its servants, in the course of which he reprobated the spirit of ambition which provoked the native powers, in the hope of profiting by their conquest; the perfidy which produced violations of treaty; the prodigality which had induced embarrassment and distress; and the misgovernment which generally prevailed in our Asiatic establishments. The reports led to a bill of pains and penalties against Sir Thomas Rumbold, for high crimes and misdemeanours committed in the Carnatic; to a vote of censure on Warren Hastings and Mr. Hornsby, president of Bombay; and to an address to his majesty, praying the removal of Sir Elijah Impey from the office of chief-justice at Bengal.

CHANGE IN THE MINISTRY.

During these proceedings in parliament Mr. Fox, who, before he became foreign secretary, had insinuated in the commons that he possessed the means of detaching the Dutch from the French, offered to Holland a renewal of amity on the terms of the treaty of 1674. Mr. Fox had also been endeavouring to conclude a peace with the Americans, the chief terms of which were the recognition of the independence of the thirteen American colonies, and for the rest _a status quo ante bellum_. No progress had been made in these negociations—for they were obstructed by the great powers of Europe—when the Marquess of Rockingham died, which put an end to the cabinet. Immediately after his decease the king sent for Lord Shelburne, and placed him at the head of the cabinet, which so deeply offended the Rockingham party that they resigned: Fox, Burke, Lord John Cavendish, John Townshend, the Duke of Portland, as governor of Ireland, and others at the boards of treasury and admiralty instantly threw up office in disgust. In consequence of their resignations, Mr. Thomas Townshend was made foreign secretary; Lord Grantham obtained the secretaryship, which had been held by Lord Shelburne; William Pitt was raised to the post of chancellor of the exchequer; Colonel Barré was made paymaster of the forces, while Mr. Dundas was appointed treasurer of the navy in his room; Sir George Yonge succeeded Mr. Townshend as secretary of war; Lord Temple undertook the lieutenancy of Ireland; and Mr. Pepper Arden was made solicitor-general. The promotion which attracted most attention was that of William Pitt, who was only twenty-three years of age, and wild, by his promotion to the post of the chancellor of the exchequer, became leader of the house of commons; and that at a time when the pecuniary concerns of the country were, from the long and expensive war which still raged, in a state of great embarrassment. Fox and his associates were accused of heat and precipitancy, and of having committed the whole Whig cause by their

sudden resignation, whence, on the 9th of July, Fox thought proper to defend his conduct in the house of commons; maintaining, that he and his colleagues could not act with honour and benefit to the country, either under or in conjunction with Lord Shelburne. In his speech, he arraigned the conduct of the new first-minister, and General Conway rose in his defence. While he lamented the retirement of Fox, Conway said, that in a cabinet of eleven ministers, there must be some shades of difference; but he denied that these were sufficient to justify the resignation of Fox and the other friends of the deceased marquess. Mr. Pitt was more severe in his remarks upon Fox than General Conway. He accused him of being more at variance with men than their measures, and of having resigned in pique and from disappointed ambition, rather than on any public ground. This language might have been just to a certain extent, but there were doubtless other reasons more cogent than pique and animosity for the retirement of Fox, as he was at this time in a desperate state of poverty. Be this as it may, the severity of Pitt was the commencement of a long conflict between him and Fox.

{GEORGE III. 1782—1784}

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 11th of July. News had been recently received of a victory gained by Rodney, which restored the naval supremacy of England in the western world; of the relief of Gibraltar, and of the poverty and embarrassment of France and Spain, as well as the absolute pauperism of the American congress. Although, therefore, overtures had been made for peace with the Americans, on the basis of independence, yet, in his speech, the king did not show himself disposed to go thus far if it could be avoided. He remarked:—“Nothing can be more repugnant to my feelings than the long continuance of so complicated a war; but should the want of a corresponding disposition on the part of the enemy disappoint the hopes of terminating that calamity, I shall still rely on the spirit, affection, and unanimity of my parliament and people to support the honour of my crown and the interests of the nation. The most triumphant career of victory would not excite me to aim at more than reasonable terms of pacification; and I have the satisfaction to add, that I see no reason which should induce me to think of accepting less.” Recent pages indeed show, that his majesty was always averse to a recognition of the independence of America, and if ever he had given his consent to the proposals Fox had made, it must have been wrung from him under a consciousness that his cause was hopeless. As for Lord Shelburne he still adhered to the dogma of Chatham, and was as averse to the independence of America as the king himself, whence there is a stronger reason than private pique and animosity that Fox should have resigned. Had he not done so he must have acted against his own conscience, which should ever be consulted by man, whether acting in a private or public capacity. He who acts against the dictates of his own conscience is unworthy of the public esteem or confidence.

VICTORY OF RODNEY.

All our leeward islands, except Barbadoes and Antigua, had been conquered by the enemy, after which the fleets of France and Spain projected an expedition against Jamaica, A reinforcement was despatched under de Guichen, and Admiral Kempenfelt was too weak to intercept his progress. In the meantime Rodney arrived at Barbadoes, and soon after put to sea with the intention of joining Sir Samuel Hood, who had been vainly endeavouring to relieve the island of St. Christopher, which was assailed by the Count de Grasse, and a land force under the Marquis de Bouille. Rodney met Hood returning from St. Christopher's, which had been captured in spite of his exertions to save it; and upon his information that de Grasse had proceeded to Martinique in order to prepare for a grand attack on Jamaica, Rodney sailed with the whole British fleet to St. Lucie, in order to watch his movements. On the 8th of April a signal announced that de Grasse was coming out from Fort Royal Hay, upon which Rodney weighed anchor, and set sail in pursuit of him. At daybreak on the following morning the enemy was discovered at Dominique, but continued calms prevented a close action. The van of the English, indeed, engaged the rear of the French; but a breeze springing up, de Grasse took advantage of it, and sailed away. Rodney, however, still pursued, and towards the evening of the 11th the headmost ships of the van gained so much on one or two of the enemy's ships, which had been damaged in the recent engagement, that de Grasse thought it necessary to bear down for the purpose of protecting them. Rodney now hoped to force him to battle; but as it was evening, he called in the foremost ships, and forming a close line of battle, he plied to windward all night. By this movement, however, he prevented the retreat of the enemy, and on the morning of the 12th the two fleets, ranged in opposite lines, engaged with the greatest fury. The fleets were about of an equal number, but the ships of de Grasse were of higher rates than the British, and had superior weight of metal. Victory was long held in suspense, but about noon Rodney executed a manouvre, which had never before been practised in naval tactics, and which was attended with complete success. Taking advantage of a freshening breeze which sprung up, his own ship, the Formidable, supported by the Namur, the Duke, and the Canada, bore down with all sail set on the enemy's line, within three ships of the centre, and succeeded in breaking it. By this manouvre the French line was broken and thrown into confusion, and the rest of the division following, Rodney wore round and doubled on the enemy, by which those ships which had been separated from the others were placed between two fires, without hope of assistance. The battle, notwithstanding, lasted till sunset, at which time Rodney's exertions were crowned with complete success. Six of the enemy's ships, among which was the Ville de Paris, de Grasse's own ship, were captured; one was sunk, and another blew up; and the shattered remains crowded all the sail they could make for Cape François, and in the morning were out of sight. Sir Samuel Hood was despatched in pursuit of the fugitive ships, and coming up with five sail off Porto Rico, he captured two ships of the line and two frigates. Thus, in the whole, the French lost ten ships of the line and two frigates, and the victory was considered as one of the most decisive ever obtained by the naval prowess of Britain. The loss of the French, in killed and wounded, was terrible. Their ships were crowded with land-troops, who only served to swell the carnage: their killed alone is estimated at 3000 men, and their wounded at double that number; so that, taking the prisoners on board the captured ships into

computation, they must have sustained a loss of nearly 12,000 men. On the side of the British the loss, in killed, was less, than two hundred and fifty, and in wounded about 700. By the victory Jamaica was saved, and the dominion of the ocean recovered, and the intelligence of it excited great exultation among all ranks of people. Sir George Rodney received the unanimous thanks of parliament, with a peerage, and a perpetual annuity of £2000 was annexed to his title. Sir Samuel Hood was also made a baron in the peerage of Ireland, and Admiral Drake and Commodore Affleck, who had distinguished themselves in the engagement, were made baronets. The news of Rodney's victory reached London about the middle of May, and it is probable that if it had happened two months earlier, Lord North's administration would still have been in existence. So great was the impression which the success made on the people, that Rodney's praise resounded from one end of the kingdom to the other; and many a "Rodney's head" met the gaze of travellers both in the towns and villages of all England. But although ministers were compelled to give their meed of praise to North's favourite admiral, yet it was evident that they did not look upon his newly-gained honours with an unjaundiced eye. The Rockingham administration had previously superseded him by naming the Whig Admiral Pigott to the command in the West Indies, and the order for recalling him was never cancelled. This conduct, which was as unwise as it was unjust, produced the deep indignation of the people, and created a bad impression of his ministers' integrity on the mind of the monarch. It was probably from this cause that the king is said to have received the resignation of Fox with marked satisfaction. True patriotism knows nothing of party, but rejoices in the welfare of the country, be it promoted by either Whig or Tory.

AFFAIRS OF THE WAR IN AMERICA.

The surrender of Lord Cornwallis virtually terminated the war in America; but peace was not yet restored to that country. On hearing of the defeat of de Grasse, indeed, the whole republican party were filled with dismay; and some confessed that unless France sent them more men and money they were as far off from peace and independence as ever. On the other hand, the royalists took heart on hearing the news, and retaliated on the republicans for the wrongs they had endured at their hands since their recent successes. Thus they hanged one Joshua Huddy, a captain in Washington's army, leaving a label on the tree, which set forth that it was in retaliation for the murder of one White, a royalist, whom the republicans had put to death. The perpetrators of this deed were arrested by Sir Henry Clinton; and the leader in the affair, Captain Lippincot, was tried by a court-martial, who returned a verdict of not guilty. This affair, however, had the effect of retarding that peace which was now so much desired on both sides of the Atlantic. Washington demanded that Lippincot should be given up to him to be tried and executed by republican law; and when this was refused by Sir Henry Clinton, he declared that he would hang a young English officer, a prisoner taken at York Town, in retaliation, if his demand was not satisfied. The day for this execution was fixed by Washington; and in the meantime Sir Henry Clinton was superseded by Sir Guy Carleton, who arrived at New York with instructions from the Rockingham administration, to open negociations with congress for peace on the basis of independence. Overtures were made to Washington by Carleton for a truce; and a passport was solicited of him for a person to carry a letter

to congress with offers of peace. These overtures and the passport, however, were sternly refused by Washington; and he again recurred to the subject of Huddy, declaring that he would hang the British officer if Lippincot was not delivered up to him. His violence met the approval of congress; and a vote was passed on the 21st of May, binding themselves to make no separate treaty, and to entertain no overtures of negociation, except in common with their allies. All that could be effected was a partial exchange of prisoners, and a suspension of hostilities, which were rather conceded from the weakness of the American army, and the formidable position of the British, than from the friendly advances of the British cabinet. The suspension of hostilities, however, that was obtained by Carleton was only partial, for a war of posts was still continued in Carolina and Georgia. In the meantime, negociations still continued concerning the young officer whom Washington had selected for the gibbet. There can be no doubt that he would have shared the fate of Major André, had not his parents possessed influence, for Washington still sternly demanded the person of Captain Lippincot as the price of his redemption. The devoted victim, however, was the son of Sir Charles Asgill; and his mother, Lady Asgill, wrote to the King and Queen of Fiance, soliciting their intercession on her son’s behalf. This letter was sent to Washington, accompanied by one from the Count de Vergennes, in which the French minister stated, that the King and Queen of France had been extremely affected by Lady Asgil’s letter, and that they desired that the inquietudes of an unfortunate mother might be calmed, and her tenderness reassured. It would have been bad policy had Washington not relented on the receipt of these letters; and he, therefore, forwarded them to congress with one of his own, and Captain Asgill was forthwith set at liberty. But although Washington put on so bold a front towards the English, treating them with a contempt which would seem to indicate that he was their perfect master, his situation was one which would have justified the language of humiliation and supplication, rather than of contempt and dictation. During these negociations, and only a few days after he had refused to grant a passport to congress, he stated to that assembly, that his army on the Hudson was destitute of provisions, and in a state of disorder bordering on mutiny; and that if the British were aware of his situation, and were to make a sudden attempt, he could not withstand them. Subsequently, as the condition of his army did not improve, the haughty Washington wrote in plain language to congress, “that it was high time for peace.” Nor was the army under General Greene, in the south, in a better condition. A large part of it were occasionally as naked as they were born. The very loins of the brave men who fought at Eutaw Springs were galled by their cartouch-boxes, while their shoulders were protected only by a piece of rug or a tuft of moss. In writing to congress, Greene remarked: “The troops have received no pay for two years; they are nearly naked, and often without meat or bread; and the sick and wounded are perishing for want of medicines and proper nourishment.” Disaffection prevailed even among the officers; and upon one occasion, on the appointment of Colonel Laurens to the command of the legion, they one and all tendered their resignation, and were only induced to return to their posts by their general’s prudent and conciliatory conduct. And this was not the only danger which Greene had to encounter. A portion of his army entered into a secret correspondence with the British, for the purpose of delivering him into their power; but the conspiracy was detected, and while the

ringleader was shot, the chief of the conspirators deserted. Yet while the American forces in the south were in this desperate condition, the British troops undertook no new expedition, except for the purpose of procuring provisions. Under the impression, indeed, that with their diminished forces it would have been folly to have renewed the strife, or even to have maintained their position, they determined to leave Charlestown. Accordingly, having agreed to leave it uninjured, on condition of their retreat being unmolested, they evacuated that town on the 14th of December; the American army entering it as the British rear-guard departed from it On their departure solemn thanks were offered to the Almighty in the different places of worship, by the citizens and soldiers, and the whole city presented a scene of joy and festivity; but even after this period; Greene experienced much difficulty in obtaining provision for his troops; and it was only by his becoming responsible as an endorser of the contractor’s bills, that the evil was removed. By this measure the troops were fed; but it was the cause of much subsequent embarrassment, not only to Greene himself while living, but to his family after his death.

STATE OF THE WAR IN THE WEST INDIES, ETC.

After Rodney’s victory the war still languished in West Indies. The Spanish governor of Cuba effected the conquest of the Bahama islands; and la Perouse destroyed some defenceless settlements on Hudson’s, Haye’s and Nelson’s Rivers. On the other hand, the British captured some forts on the Mosquito shore from the Spaniards, and took Aera, on the coast of Africa, from the Dutch. In the East Indies the affairs of the Dutch and the French were in a desperate condition. They had made extraordinary exertions to expel the English by means of Hyder Ally; but these were all defeated by Sir Eyre Coote and Commodore Hughes, as will be seen in a future page. These events contributed materially to make the court of Versailles desirous of peace.

{GEORGE III. 1782–1784}

MARITIME EVENTS.

During this year, France, Spain, and Holland equipped seventy ships of the line for active service, in order to reduce the maritime superiority of Britain. As the forces of the British were inferior on her own coasts to those of the enemy if united, the plan adopted, was to prevent their junction, and to weaken them by separate attacks; to protect our convoys; and to relieve the important post of Gibraltar. To effect the first of these objects Admiral Barrington sailed from Portsmouth with twelve sail of the line, and on the 20th of April he discovered seventeen or eighteen sail of large merchantmen and transports, under convoy of two French ships of the line and a frigate. Barrington gave chase, and in the course of two days the two ships of the line, ten large transports, and a schooner were captured. The victors found on board the prizes a. great quantity of ordnance and ammunition, anchors and masts for ships, and other materials needed by the French in the East Indies, besides eleven chests of Dutch silver, and about 1400 troops. After this successful cruise, Barrington returned to port in consequence of boisterous weather, and Admiral Kempenfelt, with nine sail

of the line, took the station which he had quitted. In the mean time the British suffered a reverse, for de Guichen having formed a junction with the Spanish fleet at Cadiz, captured eighteen sail of British merchantmen and transports, bound to Canada and Newfoundland. Great apprehensions were entertained for the Jamaica fleet, but Lord Howe, with a squadron of twelve sail, effectually covered them, and the combined squadrons, being unable to effect a junction with the Dutch, and finding that no advantage could be derived from remaining in the Channel, retired from the British coasts. Lord Howe, indeed, terrified the Dutch into a relinquishment of their designs on the trade of Great Britain to the Baltic, and the whole scheme of the enemy proved abortive. Storms, however, in part accomplished what the enemy failed to perform. In various latitudes the summer and autumn of this year were remarkable for storms and hurricanes, and a terrible catastrophe befell a fleet under Admiral Graves, which sailed, with the great prizes taken by Rodney and Hood, to convoy the great fleet of West-Indiamen. All these ships, except the “Ardent,” foundered at sea, as well as two line-of-battle ships, and a great number of merchantmen; three thousand lives were lost. This calamity was aggravated by the loss of the Royal George at Portsmouth, which was the finest ship in our navy. The Royal George was inclined on her side to undergo a slight species of careening, without the delay of going into dock, and on the 29th of August a sudden squall of wind threw her on her side, and the gun-ports being open she instantly filled and went to the bottom. Admiral Kempenfelt was writing in his cabin at the moment, and he, together with nearly one thousand men, women, and children, were thus suddenly buried in the ocean. These calamities excited a deep concern throughout the whole nation, and the fate of the brave Kemperjfelt was deeply deplored.

[Illustration: 171.jpg SIEGE OF GIBRALTER]

SIEGE AND RELIEF OF GIBRALTAR.

At this time the siege of Gibraltar, and the resolute defence of its garrison attracted the attention of all Europe. After the relief afforded to the garrison in the preceding year by Admiral Darby, the Spaniards opened a dreadful cannonade and bombardment, from batteries on land and from large gun-boats in the bay. Under cover of this fire they continued their approaches and nearly completed their fourth line; but on the night of the 26th of November, a detachment under the orders of Brigadier General Ross, and accompanied by General Elliot, the governor, made a sortie, succeeded in spiking all the artillery, and then having dug mines and laid trains, they blew the fourth line of the Spaniards into the air. Previous to this, General Elliot had so improved his own formidable works that they were stronger than they were at the commencement of the siege, and the Spaniards for a time were lost in amazement, and relaxed their exertions against the wonderful rock. In the month of April, however, the Duke of Grillon, the conqueror of Minorca, arrived to take the chief command of the besieging army and their efforts were renewed. The Duke brought with him a numerous body of skilful artillery and engineer officers, and he was likewise joined by about 20,000 French and Spanish troops to aid him in the enterprise. The whole besieging force on land now amounted to full 40,000 men, and de Crillon had more artillery with him than had ever been collected on so narrow a

point. Success seemed certain, and princes of the House of Bourbon, with along retinue of French and Spanish nobles, were present to witness the final triumph. Some time was spent in deliberating upon the plan of attack. A thousand projects were proposed and some were adopted and failed. At length the Chevalier d'Arcon, a French engineer, proposed a plan which seemed to ensure a complete triumph. This was the employment of floating batteries so constructed as to be impervious to shot and indestructible by fire. The bottoms of these batteries were made of massive timber, and their sides were secured with a rampart or wall composed of timber and cork, with an interstice between, filled up with wet sand. Raw hides were fastened on the outside, and to prevent the effect of red-hot balls a number of pipes were laid to convey water through every part, and pumps were provided to keep these constantly supplied. As the garrison had an opportunity for maintaining a fire right on the heads of their assailants, the besiegers contrived hanging roofs of strong rope-work netting, laid over with a thick covering of raw hides. These roofs were to be worked up and down by mechanism, and it was calculated that by their sloping position they would throw off the shot and shell of the garrison into the sea. Above eighty gun-boats and bomb-ketches were to second the operations of the floating batteries, together with a multitude of frigates and smaller vessels, while the combined fleets of France and Spain amounting to fifty sail of the line, were to cover and support the attack. On the isthmus also there were stupendous works, mounting two hundred pieces of heavy ordnance, and protected by 40,000 troops. In the whole the numbers employed by land and sea against the fortress were estimated at nearly 100,000 men. Time was required to complete the preparations, but at length they were completed, and the 13th of September was named for the grand attack. In the meantime General Elliot, aware that inventions of a peculiar nature were in preparation provided against every circumstance of danger that could be foreseen, and his vigilance had the effect of increasing the confidence of the garrison. General Elliot, however, was ignorant of the construction of the batteries until he saw them ranged before the fortress. It was intended to make one simultaneous attack on every part of the British fortifications, and on the appointed day, showers of shot and shells from the land-batteries and ships of the besiegers were directed against them. But the besieged were as much in earnest as the besiegers: shot was given for shot, and shell for shell. At one moment four hundred pieces of the heaviest artillery were playing on the garrison, and the fire was returned by incessant showers of red-hot balls and shells from the rock. The whole peninsula was involved in one terrible blaze, and the surrounding hills were covered with people, who assembled to behold the awful spectacle. The besiegers were sanguine of success, but their hopes were disappointed. For a time the floating batteries seemed to answer their expectations, for the heaviest shells rebounded from their tops, while the red-hot balls, just taken from old Elliot's furnaces, made no visible impression on their hulls. By two o'clock, however, the effects of these fiery globes became visible. The floating battery commanded by the Prince of Nassau, and on board of which was the Chevalier d'Arcon, began to smoke on the side exposed to the garrison, and it was apprehended it had taken fire. Notwithstanding, the firing continued with unabated fury, and the fortification sustained some damage from the besiegers. At seven o'clock, however, all hope of taking the fortress vanished. By that time the red-hot balls from the garrison had taken such good effect, that the firing

from the batteries ceased, rockets were thrown up as signals of distress, and nothing was thought of but saving the crews. The boats of the combined fleet were sent on that service, but it was found to be no easy matter to move the batteries from their moorings, and to have approached them within the range of the British batteries, and when they were expected every moment to blow up, was like rushing into the jaws of death. For five hours they continued in their original position, and in the mean time, the smoke of the batteries had burst into flames, and the fire from the rock was increased with terrific vengeance. At midnight the only flashes from the batteries were the flames that were consuming them, and the only sounds on board were the shrieks of the crew. Their danger was increased by a brigade of gun-boats, under the command of Captain Curtis, which sailed out, and by their low fire swept the batteries in the whole extent of their line, and effectually prevented the approach of the French and Spanish boats from coming to their aid. From the evening till the morning the sky was illuminated by the ascending flames of the batteries, and by the fire of the garrison and gun-boats. At five o’clock in the morning, one of the batteries blew up, and soon after, the whole of them were one vast conflagration. Many of their crows now threw themselves into the sea; and touched by the sight, the British showed themselves to be as humane as they were brave. The guns in the fortification ceased, and Curtis and his gallant crew exerted themselves in saving the shrieking and despairing Spaniards. Fearless of danger they dashed among the burning wrecks, snatched many from the fury of the flames, and others from a watery grave: about three hundred and fifty were saved by them from inevitable death. Captain Curtis himself was often in the most imminent danger, while thus showing mercy to the enemy, and, at one time, a pinnace in which he had thrown himself, was close to one of the batteries when it blew up. The pinnace was involved in one vast cloud of fire and smoke, and masses of flaming wood, and it was expected that the brave crew had perished. It was not so: as the smoke cleared away, the pinnace was seen still proudly riding on the waves. Her coxswain was killed, several of her crew were wounded, and one of the burning masses of timber had fallen into her, and had gone through her bottom, but the sailors saved her from sinking by stuffing their jackets into the cavity! In the end all the floating batteries were consumed, and the loss of the enemy, exclusive of that sustained by the troops on the isthmus, was computed at 1500 men, while the garrison lost only sixteen killed, and had sixty-eight wounded. It was a blow severely felt by the enemy; but a gleam of hope burst through the gloom which surrounded them, so that the siege was not immediately abandoned. It was known that Elliot’s stock of ammunition and provisions was greatly reduced, and it was hoped that the combined fleet collected in the narrow bay might be able to prevent any relief. That hope also proved vain. Lord Howe had set sail with thirty-four ships of the line, three fire-ships, and six frigates, having under his protection an immense convoy of transports and trading vessels, with all which, on the 11th of October, he passed between the shores of Europe and Africa, and through the Straits of Gibraltar. On the same day he succeeded in landing the cargoes of four of the transports without meeting with any interruption from the combined fleet; and, subsequently, a violent hurricane having driven the French and Spaniards on the Barbary coast, he landed all the stores and fresh troops which he had brought for the relief of the garrison. His task was completed by the 19th, on which day he repassed

the Straits, and spread his sails for England. He was followed by the enemy, and on the 20th as they gained upon him off Cape St. Vincent, he lay in order to receive them. A partial engagement took place, but the French and Spaniards testified no anxiety to come to close quarters; and towards the evening they hauled their wind, and gave up all idea of battle or pursuit. Thus perished the hopes of Spain to recover a barren rock; but a rock, the price of which is above all value to a commercial country like England. For his heroic defence, General Elliot was raised to the peerage by the title of Baron Heath field, with a pension annexed to the title similar to that bestowed on Rodney.

PROSPECT OF GENERAL PACIFICATION.

This final attempt upon Gibraltar was the last action of importance during the war. Every nation which had been engaged in the fatal struggle now sighed for peace, and admitted the policy of putting up the sword into its scabbard. Each found, by a review of past events, that, although their gains were great, then-losses greatly preponderated. Négociations were entered into, and the Empress of Russia, finding that England was not so near the verge of destruction as she imagined, now began to act as a fair and anxious mediatrix. Spain had not yet raised the siege of Gibraltar, and demanded the wonderful rock as the price of a treaty; but the empress told its monarch that he must give up all idea of obtaining it either by arms or treaty. France, Holland, and the United States were also told by her that they ought to moderate their pretensions. But the grand obstacle that stood in the way of peace, was removed by Great Britain herself; namely, the recognition of the independence of America. During the negociations with France and Spain, provisional articles between England and America were signed on the 30th of November, at Paris, by Mr. Fitzherbert and Mr. Oswald, on the one hand, and Dr. Franklin, Adams, Jay, and Laurens, on the other. This was contrary to the letter and spirit of their treaty with France, and was brought about by the treachery of the French minister, Vergennes. While he was urging the Americans to claim a share in the Newfoundland fishery, he was instigating the British government to refuse the concession! This double-dealing was detected; and in an interview with the American negotiators, Mr. Fitzherbert assured them that a share in that fishery would be allowed them, which had the effect of bringing the treaty between England and America to a conclusion. Vergennes complained of American chicanery, and still sought to set aside the treaty, by advising the English government not to make too ample concessions as regarded the boundaries to be assigned to the United States; but his character had become manifest, and his advice was not heeded. The British cabinet was, indeed, too desirous of peace to raise any undue obstacle against its attainment. Eight days before the separate preliminaries were signed, Lord Shelburne wrote to the lord mayor, acquainting him that the negociations promised a speedy conclusion; on which account parliament would be prorogued from the 26th of November to the 5th of December. At this time it was, indeed, considered that America was wholly detached from the league, and there was no anxiety about the prolongation of a naval war with the rest of our enemies. There was in truth, no fear of this, for France, Spain, and Holland had all suffered too much on the ocean to make them desirous of continuing hostilities. Pride might dictate haughty demands, but it was clear that they

would rather abate them than renew the struggle.

MEETING OF PARLIAMENT.

Parliament met on the 5th of December, when the king announced from the throne, that in pursuit of a general pacification, he had offered to declare the American colonies free and independent states, by an article to be inserted in the definite treaty. This was against his majesty’s wishes as is evident from the following remarks which he made in continuation. He said:—“In thus admitting their separation from the crown of Great Britain, I have sacrificed every consideration of my own to the wishes and opinion of my people. I make it my humble and earnest prayer to Almighty God, that Great Britain may not feel the evils which might result from so great a dismemberment of the empire; and that America may be free from those calamities which have formerly proved in the mother country how essential monarchy is to the enjoyment of constitutional liberty. Religion, language, interest, affections, may, and I hope will, yet prove a bond of permanent union between the two countries: to this end neither attention nor disposition shall be wanting on my part.” Among other topics in his speech, his majesty alluded to the valiant exertions of the army and navy; the economical reforms which would be necessary after so expensive a war; and the attention which the concerns of Ireland and India demanded. There was no regular opposition to the address in either house, but in the commons Fox suggested that it would be better to recognize the independence of America at once, and not to reserve it as one of the conditions of peace. Some severe remarks were also made in the house of lords, on the inconsistency of the minister, who, at a former period, had so strongly opposed the recognition of American independence; but who had now expressed his readiness to acknowledge it. In reply, Lord Shelburne said that he yielded to necessity, and that the full recognition of independence was still dependent on the conduct of France; if France did not consent to peace, it would be withheld. Several warm debates followed on the subject; and on the 18th of December, a division took place on a motion made by Fox, for copies of all the parts of the provisional treaty that related to American independence; which was lost by an overwhelming majority. After voting 100,000 seamen and marines for the service of the ensuing year, on the 23rd of December, the house adjourned for the Christmass recess.

{A.D. 1783}

PRELIMINARIES OF PEACE.

It was a prevailing opinion that negociations with France, Spain, and Holland would yet fail, and that a general peace was yet a distant event.

Nevertheless, during the recess, negociations came to a pacific conclusion. Preliminary articles of peace were signed at Versailles on the 20th of January; and the arrangements of the whole were as follow:—Great Britain acknowledged the thirteen United States as free, sovereign, and independent States, with advantageous boundaries, comprehending the countries on both sides of the Ohio, and on the east of the Mississippi. The right of fishing on the banks of Newfoundland and in the Gulf

of St. Lawrence was also granted to the Americans. The right of navigation on the Mississippi, from its source to the ocean, was declared common to both powers. In the treaty, the loyalists were merely recommended to congress; but it was agreed that no new confiscations or persecutions were to take place. The right of fishing on the coast of Newfoundland, from Cape St. John on the east, round the north of the island to Cape Bay on the west, was likewise ceded to France. That power also obtained the islands of St. Pierre and Miquelon and St. Lucie and Tobago in the West Indies; Senegal and Goree in Africa; Pondicherry, with other districts in the East Indies, were in part restored, and in part ceded, to France. The article of the peace of Utrecht, relative to the fortifications of Dunkirk, were moreover abrogated. On her part, France restored to Great Britain the islands of Grenada and the Grenadines, St. Vincent, Dominica, St. Christopher's, Nevis, and Montserrat. In Africa, she likewise ceded the possession of Fort James and the River Gambia. Spain obtained the island of Minorca and the two Floridas, as the price of her exertions; but she gave up Providence and the Bahama islands to Great Britain: his catholic majesty, also, guaranteed to English subjects the right of cutting logwood in the bay of Honduras. Holland agreed to a truce, with the understanding that there should be a mutual restoration of conquests between her and Great Britain; but the exact terms of pacification were not yet arranged.

REASSEMBLING OF PARLIAMENT.

Parliament reassembled on the day appointed, and for a day or two was occupied in debates on the affairs of Ireland. The preliminaries of peace were laid before the house on the 24th of January and the debates which followed led to the overthrow of the ministry. This had been indeed determined upon beforehand; for Fox and Lord North, whose sentiments were as opposite as the poles, had previously entered into a coalition for that express purpose, to the astonishment of the whole nation. The struggle commenced on a motion made by Mr. Thomas Pitt, for an address of thanks to his majesty for ordering the preliminary articles of peace to be laid before the house. This motion, which was made on the 17th of February, the day fixed for the debate, was seconded by Mr. Wilberforce, and called forth all the rancour of contending parties. An amendment, withholding such approbation, yet assuring his majesty of their firm determination to adhere to the several articles for which the public faith had been pledged, was moved and supported by the combined adherents of Lord North and Mr. Fox; and, after a stormy debate, was carried by a majority of sixteen; the numbers being two hundred and twenty-four to two hundred and eight. An amendment, similar in principle, was moved in the house of lords, which was rejected by a majority of thirteen; the numbers being seventy-two to fifty-nine. Debates on the advantages and disadvantages of peace still continued; and on the 21st of February, Lord John Cavendish, among other resolutions, moved, "That the concessions made to the adversaries of Great Britain by the provisional treaty, and the preliminary articles, are greater than they were entitled to, either from the actual situation of their respective possessions, or from their comparative strength." It was well known that Fox, with all his abilities, could not have succeeded in obtaining better terms of peace; and that he had expressed a readiness to make concessions equally ample as those made by Lord Shelburne. His whole party, also, had

repeatedly declared that a high price must be paid for the inestimable blessing of peace. Yet now, he with others, men who had threatened Lord North with the block for persevering in the war, endeavoured, by all the means in their power, to depreciate the treaty which would bring harmony to the world. In the debate on the amendment he had condemned nearly every concession made; and he now set forth the desperate condition to which France, Spain, Holland, and even America, had been reduced by the war, as an argument why such ample concessions should not have been granted. He was answered by Pitt, who defended the treaty article by article; and vehemently condemned the “ill-omened and baneful alliance” which had been formed between the parties of Fox and Lord North. The chief subject of the debate was, in truth, the coalition of these parties; some condemning it, and others defending it from the hot attacks made upon it. There was full evidence that there existed no patriotism or principle in the matter: and that the sole object of those in power was to retain their places, and of those out of office to obtain power. The latter were successful: on a division, Lord John Cavendish’s resolutions were carried by a majority of seventeen, and Lord Shelburne instantly resigned.

THE COALITION MINISTRY.

Although Lord Shelburne resigned, yet the rest of the administration still clung to office. Mis majesty, it is said, sent for Pitt, and requested him to form a cabinet of his own. Pitt, however, probably conscious that he could not withstand the power of the coalition, declined; and day after day elapsed without any new ministry being formed. The house of commons adjourned from time to time, with the view of forwarding a new arrangement; but none could be made. Twice the king sent for Lord North, hoping to induce him to undertake the formation of a new administration; but as his majesty required that Fox should be given up, he was twice refused. In the meantime the business of the nation was suspended, and great confusion was created by this ministerial interregnum. At no time, in truth, was an able administration more necessary than at this time. Tumults were spreading throughout the kingdom, from the disembodying of the militia, and the discharge of seamen and sailors without pay; the treaty with France and Spain was not ratified; no commercial alliance was adjusted with America; and the affairs of the East India Company demanded instant attention. Seeing that there was no prospect of a new ministry being formed, on the 24th of March, Mr. Coke, one of the members for Norfolk, moved an address to the king, “that he would be graciously pleased to take into consideration the unsettled state of the empire, and condescend to comply with the wishes of this house, in forming an administration entitled to the confidence of the people.” Coke’s motion was carried with only four dissentient voices; and his majesty replied to the address, that it was his “earnest desire to comply with the wishes of his faithful commons.” Still nothing was done; and on the 31st of March, Lord Surrey moved another address, “assuring his majesty that all delays in a matter of such moment have an inevitable tendency to weaken the authority of government; and most humbly entreating his majesty, that he will take such measures towards this object as might quiet the apprehensions of his faithful subjects.” This motion was, however, withdrawn, on the assurance of Mr. Pitt, that he had that day resigned as the chancellor of the exchequer. The king was now obliged to yield: two days after this a

new ministry was formed from the ranks of the coalition. In its arrangement the Duke of Portland became first lord of the treasury; Lord North secretary for home affairs; Mr. Fox secretary for foreign affairs; the Earl of Carlisle obtained the privy seal; Lord John Cavendish was re-appointed chancellor of the exchequer; Admiral Keppel was again placed at the head of the admiralty; Lord Stormont became president of the council; the great seal was given in commission to Lord Loughborough, Mr. Justice Ashurst, and Mr. Baron Hotham: while Lord Mansfield accepted the temporary office of speaker of the house of Lords; Lord Townshend became master-general of the ordnance; Burke was reinstated as paymaster of the forces; Charles Townshend became treasurer of the navy; Colonel Fitzpatric was made secretary at war; and Lord Northington was appointed to the government of Ireland. The usual changes took place likewise in his majesty's household. The seven ministers who formed the new cabinet were, Portland, North, Fox, Cavendish, Keppel, Carlisle, and Stormont, the majority of whom were of the old Whig or Rockingham party. But, although the king had consented to this heterogeneous ministry, no pains were taken at court to conceal the dislike which was borne towards it; nor was this ministry looked upon with greater favour by the nation at large. They had obtained power by unworthy means; and this operated to diminish public confidence in their measures, whence it was not long before it was seen that this administration would share the fate of Lord Shelburne's. It was an unnatural union of parties; and therefore its integral parts could never be so cemented together as to prevent their final separation.

RE-ESTABLISHMENT OF COMMERCIAL INTERCOURSE WITH AMERICA, ETC.

After a long debate on the subject of parliamentary reform, which subject was brought into the house by Mr. Pitt, and was attended with no beneficial results, some important debates took place on the modes or arranging our commercial intercourse with the United States. A bill was passed in order to its promotion, repealing the restraining act; and other obstacles were removed by a temporary bill, vesting the power of making future regulations in the crown. Another subject which claimed the attention of the house, was the case of the American loyalists. Few believed that congress or the provincial assemblies would pay any attention to the recommendations of England, or that these loyalists would be allowed to recover their confiscated property. The care of providing for them, therefore, devolved on parliament. An act was passed appointing commissioners to inquire into their losses and services; and it was agreed in a committee of supply, that all American officers who had borne arms for the king should be allowed half-pay. As foreseen, congress, although they fulfilled the terms of the provisional articles on behalf of the loyalists to the very letter, paid no attention to the cold and formal recommendation of restoring their property; and subsequently a host of them soon found themselves compelled to quit their native country for ever. So numerous were the claims made upon the parliament, that in the whole they received more than twelve millions of money. This was noble generosity on the part of Great Britain, for at this time she had no money to spare. One of the first measures, indeed, or the new ministry, was to obtain a loan of twelve millions, and to put a stamp-duty on receipts, in order to meet, the expenses of the state—expenses which had chiefly been incurred by the recent war. During this war, in truth, England had increased her national debt by more then £130,000,000

sterling.

PITT’S PLAN FOR REFORMING THE TREASURY ETC.

In the course of this session, Mr. Pitt brought in a bill for making some economical reforms in the treasury. In his speech on this subject, he demonstrated that extravagant abuses existed; and his bill was carried in the commons, but lost in the lords. But though ministers could not countenance Pitt’s plan, they were under the necessity of producing one of their own. At the end of June, Lord John Cavendish carried a bill through the house, for abolishing certain offices in the exchequer, and limiting the salaries of others after the death of the present possessors. In consequence of a motion made by Pitt five months before, Lord John Cavendish also presented to the house a book, containing a list of accountants, who having received public money by way of imprest, had not yet accounted for it; and of those persons from whom balances of declared accounts were still due. By this book it appeared that a sum of about £44,000,000 sterling was still unaccounted for; and this induced Mr. Pitt to move an address to the king, requesting him to take measures for the recovery of this sum, and to prevent similar delinquencies for the future. This was objected to by ministers; but it was allowed to pass with a few trifling amendments. About the same time, Lord Mali on introduced a bill for preventing bribery at elections; and Alderman Sawbridge made his annual motion for a reform in parliament, both of which were negatived.

{GEORGE III. 1782–1784}

EAST INDIA AFFAIRS.

It has been seen that a select committee had been appointed to consider the state of the British dominions. This committee, in the prosecution of this inquiry, not only discovered corruption, fraud, and injustice in every department of the Indian government, but that the company’s finances were in a ruinous condition. In order, therefore, to rescue the British name from disgrace, and to secure our territorial possessions in India, Sir Henry Fletcher introduced a bill for “suspending the payments of the company due to the exchequer, and enabling them to borrow the sum of £300,000 for their relief.” This bill, which was declared to be only a branch of a larger plan, passed both houses with very little opposition; an impression generally prevailing among peers and commoners, that unless relief was afforded, bankruptcy was inevitable. Thus works profusion.

PETITION OF THE QUAKERS AGAINST THE SLAVE TRADE.

Towards the end of the session, a bill was introduced for regulating the trade of the African Company, in which there was a clause prohibiting its officers from exporting negroes. This encouraged the Quakers to present a petition for the total abolition of the slave trade: a petition that may be said to have laid the foundation of those generous and persevering exertions of gifted individuals, as Clarkson and Wilberforce, which finally succeeded in effecting the abolition of that loathsome traffic in the bones and sinews of man; which had for centuries been carried on

without compunction.

SETTLEMENT ON THE PRINCE OF WALES.

On the 23rd of June, a message was delivered from the king to the house of commons, requesting means for a separate establishment for the Prince of Wales. The young prince had now attained his twenty-first year, and was of such extravagant habits, that his profusion was the talk of the nation. He was particularly intimate with Fox, and was linked in with the coalition ministry; and the Duke of Portland suggested to his majesty that a demand should be made of a hundred thousand a-year for his maintenance. The king, however, disliked the prince’s connexion with his present ministers, and therefore, he put his decided negative upon this proposal; asserting that he could not think of burthening his people with so large a grant, and encouraging his son in his extravagant habits. Ministers had bound themselves to procure this sum for their royal friend, but were obliged to submit to the king’s will; namely, that fifty thousand a-year should be allotted by himself out of the civil list, and that parliament should merely grant sixty thousand as an outfit. A vote to this effect was carried without opposition: the young prince giving a proof of his filial duty and public spirit, by signifying his desire that the king’s wish should be consulted, and his readiness to accept whatever he might think proper in his wisdom and goodness to grant. At the same time he continued his close intimacy with Fox, and gave all the countenance he could to a ministry which his majesty abhorred.

PARLIAMENT PROROGUED.

Parliament was prorogued on the 16th of July, his majesty intimating his intention to call the members together at an early period, in order to resume the consideration of the affairs of India. In his speech he expressed regret that he could not announce the completion of the definitive treaties.

EXECUTION OF TREATIES, ETC.

The greatest difficulty in the way of the settlement of the definitive treaties arose from Holland. On the 2nd of September, however, through the influence of France, Holland acceded to preliminaries of peace, by which all conquests on both sides were to be restored, except the town of Negapatam, in the East Indies, which was to remain in the possession of Great Britain. On the next day the definitive treaties with France, Spain, and America were signed, and that under the auspices of the men who had condemned the articles _in toto_. Soon after Mr. Adams arrived in London as ambassador from the United States. On his first audience at St. James’s, the king received Mr. Adams with much courtesy and kindness. He remarked to him:—“I was the last man in the kingdom, sir, to consent to the independence of America; but, now it is granted, I shall be the last man in the world to sanction its violation.” It is said that Adams retired from the monarch’s presence with altered sentiments as to his real character; and when at a later period Jay came into contact with the king, he was obliged to confess that in his representations of George III. in the American manifestoes and revolutionary documents, which had been chiefly written by him, he had overcharged the picture. Instead of being an unfeeling and savage tyrant, thirsting for the blood of his subjects, as he had set forth, he found that his majesty

possessed many virtues, and that he was beloved by his subjects.

MEETING OF PARLIAMENT.

Parliament reassembled on the 11th of November. The king’s speech on this occasion was brief but comprehensive. After noticing the conclusion of peace with France, Spain, and America, he urged attention to every possible means of recruiting the strength and resources of the nation; of rendering the necessary revenue as little burthensome as possible to his subjects; and of adopting new measures to prevent the numerous frauds which had been committed in the collection of the revenue. He particularly directed their attention to the affairs of India, remarking that their utmost exertions would be required to maintain and improve the valuable advantages derived from our Indian possessions, and to promote and secure the happiness of the native inhabitants. The address passed without opposition; Pitt himself expressing approbation of the ends of government, and promising his support.

FOX’S INDIA BILL.

Although in office, Fox was still unreconciled to the monarch. He felt, moreover, that by his ill-fated coalition he had forfeited the confidence of the people. Under these circumstances, he resolved to seek the restoration of his popularity, and to consolidate his power, by producing some great measure, which should at once charm and profit the nation. India afforded him a fine field for legislating, and with the assistance of Burke he concocted a bill for its government. He gave notice on the day when parliament reassembled, that he would produce this bill on the 18th of November, and when that day arrived he was in his place for that purpose. He moved for leave to bring in a bill for vesting the affairs of the East India Company in the hands of certain commissioners, for the benefit of the proprietary and the public. This memorable bill proposed to take the entire administration both of their territorial and commercial affairs from the directors and proprietors, and to vest it in the hands of seven commissioners, named in the bill, who were to be irremovable by the crown, except in consequence of an address of either house of parliament. These commissioners were to be assisted by a subordinate board of nine directors, to be chosen in the first instance by parliament, and afterwards by the proprietors. The bill empowered these commissioners and directors to enter immediately into possession of all lands, tenements, books, records, vessels, goods, merchandize, and securities in trust for the company. They were required to decide on every question within a certain time, or to assign sufficient reason for delay. They were never to vote by ballot, and were generally required to enter on their journals the reasons of their vote. Every six months they were to submit an exact schedule of accounts to the court of proprietors; and at the commencement of every session were to present a statement of their affairs to both houses of parliament. This act was to continue in force four years: that is, till the year after the next general election. It was accompanied by another bill, enacting regulations for the future government of the British territories in India. This second bill took from the governor-general all power of acting independently of his council; declared every existing British power in India incompetent to the acquisition or exchange of any territory in behalf of the company; to the acceding to any treaty of partition; to let out the company’s troops; to the

appointment of any person removed for misdemeanour to office; and to the hiring out any property to any civil servant of the company. It also prohibited all monopolies; declared every illegal present recoverable by any person for his own benefit; and employed effectual means to secure the zemindars, or native landholders, in the possession of their inheritances, aiming particularly at the abolition of all vexatious or usurious claims that might be made upon them, by prohibiting mortgages, and subjecting every doubtful claim to the examination of the commissioners.

The disclosure of this scheme excited the greatest sensation in the house. By the friends of Fox it was espoused with zeal and enthusiasm, while it was attacked by his opponents with vehement indignation and energetic invective. On the one hand it was extolled as a master-piece of genius, virtue, and ability; on the other, it was denounced as a dangerous design, fraught with mischief and ruin. Pitt had promised his support in settling the affairs of India; but though he acknowledged that reform was wanted, it was, he said, not such a reform as this. He remarked:—“The bill under consideration included a confiscation of the property, and a disfranchisement of the members of the East India Company; all the several articles of whose effects were transferred by violence to strangers. Imagination was at a loss to guess at the most insignificant trifle that had escaped the harpy jaws of a ravenous coalition. The power was pretended, indeed, to be given in trust for the benefit of the proprietors; but, in case of the grossest abuses of trust, to whom was the appeal? To the proprietors? No; to the majority of either house of parliament, which the most contemptible minister could not fail to secure, with the patronage of above two millions sterling given by this bill. The influence which would accrue from this bill—a new, enormous, and unexampled influence—was indeed in the highest degree alarming. Seven commissioners, chosen ostensibly by parliament, but really by administration, were to involve in the vortex of their authority the patronage and treasures of India. The right honourable mover had acknowledged himself to be a man of ambition, and it now appeared that he was prepared to sacrifice the king, the parliament, and the people at the shrine of his ambition. He desired to elevate his present connexions to a situation in which no political convulsions, and no variations of power, might be able to destroy their importance and terminate their ascendency.” Other members resisted the bill with similar arguments, and Fox was compelled to call all his powers into action for its defence. After defending himself from the charge of violating the company’s charters, and observing that the arguments of his opponents might have been adopted with great propriety by King James the Second, he remarked:—“I am also charged with increasing the influence, and giving an immense accession of power to the crown. Certainly this bill as little augments the influence of the crown, as any measure that can be devised for the government of India, with the slightest promise of success. The very genius of influence consists in hope or fear—fear of losing what we have, or hope of gaining more. Make the commissioners removable at will, and you set all the little passions of human nature afloat. Invest them with power upon the same tenure as the British judges hold their station, removable upon delinquency, punishable upon guilt, but fearless of danger if they discharge their trust, and they will be liable to no seducement, and will execute their functions with glory to themselves, and for the common good of the country and mankind. This bill

presumes the possibility of mal-administration; for every word in it breathes suspicion. It supposes that men are but men; it confides in no integrity; it trusts to no character. It annexes responsibility, not only to every action, but even to the inaction of the powers it has created. I will risk my all upon the excellence of this bill. I will risk upon it whatever is most dear to me—whatever men most value—the character of integrity, of present reputation, and future fame; these will I stake upon the constitutional safety, the enlarged policy, the equity and wisdom of the measure. Whatever, therefore, may be the fate of its authors, I have no fear that it will produce to this country every blessing of commerce and revenue; and by extending a generous and humane government over those millions whom the inscrutable dispensations of Providence have placed under us, in the remotest regions of the earth, it will consecrate the name of England among the noblest of the nations." While this bill was pending in the commons, the East India Company and the city of London presented strong petitions against it; but it was carried rapidly through all its stages with large majorities, and Fox presented it at the bar of the lords on the 9th of December.

Fox had recommended his majesty to create several new Whig peers, in order to ensure the success of his measure in the house of lords. The king, however, declared, that he would not create any British peers on the recommendation of the present cabinet, and therefore he was obliged to commit his bill to that house as it now existed. It appears that he had still hopes of the concurrence of the lords; and although it was, on the first reading, reprobated by the Duke of Richmond, Lord Thurlow, and Lord Temple, yet still a division was favourable to its progress. It also passed on the second reading, which took place on the 15th; but on the following day counsel was heard on behalf of the company, and on the 17th it was moved that the bill be rejected. On this occasion Lord Camden spoke with great vehemence against the bill; declaring, that if it passed into a law, we should soon see the King of England and the King of Bengal contending for superiority in the British parliament. Ministers had been defeated by a majority of eight on the evening of the second reading, when the opposition moved for an adjournment till the next day, in order to give an opportunity of hearing counsel; but they were now doomed to suffer a more signal defeat. The bill was rejected by ninety-five against seventy-six.

There was a cause for this change of sentiment in the lords. On the 11th of December Earl Temple had a conference with the king, in which, having explained his ideas on the nature and tendency of the bill, his majesty became a convert to the views of opposition. By his explanation the royal indignation was greatly excited; the monarch considering himself as having been deceived by his ministers. Accordingly, a card was written, stating that "his majesty allowed Earl Temple to say, that whoever voted for the bill was not only not his friend, but would be considered by him as his enemy; and that, if these words were not strong enough, Earl Temple might use still stronger language." The rumour of this soon spread, and on the evening of the 15th a conversation concerning it took place in the house of lords, in which Earl Temple declared, that he was not ashamed to avow the advice which he had given to his majesty, and would publish what he was empowered to communicate, when he should be properly called upon to do so. It was evident, therefore, to ministers and to all

men, that the rumour was substantially correct, and on the 17th the subject was brought prominently before the members of the house of commons. Mr. Baker moved these two resolutions:—“1. That it is now necessary to declare that, to report any opinion, or pretended opinion of his majesty, upon any bill, or other proceeding, depending in either house of parliament, with a view to influence the votes of the members, is a high crime and misdemeanor, derogatory to the honour of the crown, a breach of the fundamental privileges of parliament, and subversive of the constitution of this country. 2. That this house will, on Monday next, resolve itself into a committee of the whole house, to consider the state of the nation.” After an animated debate, these resolutions were carried by a majority of nearly two to one, the numbers being one hundred and fifty-three against eighty. A dissolution of parliament being now apprehended, Mr. Erskine moved, that whoever should prevent that house from discharging their duty in remedying the abuses which prevailed in the government of the British dominions in the East Indies, should be considered by them as an enemy to his country. This resolution was attacked as an invasion of the king’s prerogative, but it was nevertheless carried, by one hundred and forty-seven against seventy-three.

DISSOLUTION OF THE COALITION MINISTRY—PITT MADE PRIME MINISTER.

The above resolutions were designed as props to support the government, but they were swept away by his majesty. On the 18th he was employed in making dispositions for the formation of a new cabinet, and at twelve o’clock that night a messenger delivered orders to Fox and Lord North, that they should deliver up the seals of their offices without delay. The seals were sent, and, on the following day, Earl Temple was directed to send letters of dismission to all the other members of the cabinet. At the same time Pitt was appointed first lord of the treasury and chancellor of the exchequer; the Marquess of Carmarthen and Mr. Thomas Townshend (created Lord Sydney) were nominated secretaries of state; Lord Thurlow was reinstated as lord-chancellor; Earl Gower became president of the council; the Duke of Rutland was constituted lord privy-seal; Lord Howe was placed at the head of the admiralty; the Duke of Richmond was made master-general of the ordnance; and Lord Temple was again appointed to the government of Ireland. Mr. W. Grenville and Lord Mulgrave became joint paymasters of the forces; Mr. Dundas, treasurer of the navy; Mr. George Rose and Mr. Steele, secretaries of the treasury; Mr. Lloyd, attorney-general; and Mr. R. P. Arden, solicitor-general. In the first instance Lord Temple had been made one of the secretaries of state, but he resigned this post under pretence of meeting the charge of tampering with the royal confidence, which was laid against him by the recent cabinet, more freely. It was predicted, that the new ministry would not exist one month; and looking at the formidable array of opponents which sat on the opposition benches on the evening of their acceptance of office, this prediction seemed certain of fulfilment. Pitt himself was conscious of his weakness, and doubtful of the result; but his administration, though commenced under such unfavourable circumstances, proved in the end one of the most memorable in the British annals.

EFFORTS OF THE OPPOSITION AGAINST THE NEW MINISTRY.

The first measure after the change in the cabinet was to issue a new writ for the borough of Appleby. This done, Mr. Dundas, treasurer of the navy, moved, that in order to carry the Land-tax Bill through the house in time to meet large payments that were to be made by the treasury on the 5th of January, the house should meet on the next day, Saturday, instead of being adjourned till Monday. As it was imagined that government meant to hurry over the voting of supplies, that it might proceed to a dissolution, this was opposed by Fox, and rejected without a division. On the Monday no opposition was made to the land-tax, but on the same evening Mr. Erskine moved an address to his majesty, not to dissolve the present parliament, but to be graciously pleased to hearken to the advice of his faithful commons, and not to the secret advices of particular persons, who might have private interests of their own, separate from the true interests of the king and his people. The house was assured that Pitt would resign if either a dissolution or a prorogation took place; but the motion was pressed and agreed to without a division. The answer of his majesty to this address was reported on the 24th, and it contained an assurance that he would not interrupt their meeting by any exercise of his prerogative, either by prorogation or dissolution. Opposition now seemed certain of the fall of Pitt and his coadjutors; and, as if impatient for their overthrow, Fox suggested that the recess should be a very short one, and it was resolved to adjourn only till the 12th of January.

CHAPTER XIV.

{GEORGE III. 1784–1786}

The Trial of Parties and Triumph of Pitt..... A General Election..... Meeting of the New Parliament ..... Acts to prevent Smuggling, etc..... The Budget of 1784..... Pitt’s India Bill..... Bill for the Restoration of Forfeited Estates in Scotland..... Prorogation of Parliament..... The State of Ireland..... Meeting of Parliament..... The Westminster Scrutiny..... Pitt’s Reform Bill..... Pitt’s Financial Measures..... The Affairs of Ireland..... Continental Affairs.

{A.D. 1784}

THE TRIAL OF PARTIES, AND TRIUMPH OF PITT.

On the reassembling of parliament, opposition hoped to show that no power in the constitution could withstand the will of the commons. Fox commenced the trial by moving the order of the day for the committee on the state of the nation. This motion was carried, but it was only by a majority of thirty-nine against ministers, and imputations were thrown out that the support given them was obtained by unfair means. Still Fox and his party consoled themselves with the idea that Pitt would be hurled from his eminence in a few hours. The contest was therefore continued. The house having resolved itself into a committee, Fox moved a resolution, declaring “the payment of any public money for services voted in the present session, after parliament should be prorogued or dissolved, if such events should take place before an act should have passed appropriating supplies to such services, to be a high crime

and misdemeanor." This was carried without a division, and, following up his attack, Fox moved and carried, in the same manner, another resolution, deferring the second reading of the Mutiny Bill till the 23rd of February. Fox now paused, and Lord Surrey stood forward, in order to strike a more decisive blow. He moved, "That, in the opinion of the committee it was peculiarly necessary that, in the present situation of his majesty's dominions, there should be an administration which has the confidence of this house and the public." This resolution was also carried without a division; and Lord Surrey then moved, "That it was the opinion of the committee that the late changes in his majesty's councils were immediately preceded by dangerous and universal reports that his majesty's sacred name had been unconstitutionally abused to affect the deliberations of parliament, and that the appointments made were accompanied by circumstances new and extraordinary, and such as did not conciliate or engage the confidence of the house." A warm debate followed this motion, which continued till past six in the morning, when Dundas moved an adjournment, which, on a division, was lost by a majority of fifty-four—the numbers being one hundred and ninety-six to one hundred and forty-two. Nothing further, however, was done on this occasion, and the house at length adjourned at half-past seven in the morning. It met again on the 14th, when Pitt moved for leave to bring in a new bill, for the better government and management of the affairs of the East India Company. In the previous debates Pitt had declared that he had accepted office upon one single, plain, intelligible principle, by which he desired to stand or fall with the people; namely, to save the country from Fox's India Bill, which threatened destruction to its liberties. His own bill, which he explained at great length, was in its turn severely criticised by Fox. No opposition, however, was made to Pitt's motion, and it was read a first time on the 16th, with very little debate on its merits. After this, on the same night, the committee on the state of the nation resumed its functions; and Lord Charles Spencer moved a resolution, expressive of "the necessity of an administration that should have the confidence both of the house and of the country, which, as the present ministers have not, their continuance in office is contrary to constitutional principles, and injurious to the interests of the king and people." Mr. Powys, though himself in opposition, denounced this motion as premature, unprecedented, and unjust; but it was carried by a majority of twenty-one, the numbers being two hundred and six against one hundred and eighty-five. During this debate Mr. Powys expressed a wish that there should be a coalition between Fox and Pitt, and when the house met on the 20th, other members joined in this wish. Fox, himself seemed to think that their union was feasible, but Pitt repeated a declaration which had been made by his opponent on a previous evening; namely, that a union not founded on principle would be fallacious and dangerous. Pitt, indeed, was still resolved to brave the storm; for, in answer to an assertion of Fox that his majesty's ministers held their places in defiance of the opinion of parliament, he declared, "that nothing but a sense of his duty to the public kept him in office, and that he could not quit it with so much honour as attended his coming into it." Fox now altered his mode of attack. Conceiving that he should lose ground by making any more motions of a personal nature, especially before the fate of Pitt's India Bill should be decided, he set himself to work to defeat that bill. A long debate took place upon its second reading, which was on Friday, the 23rd, and on the motion for its commitment, it was rejected by two hundred and twenty-two against

two hundred and fourteen. Exulting in his victory, Fox then moved for leave to bring in another bill, similar in its principles to his former one, and this being given, he called on Pitt to state explicitly whether he intended to prevent its progress by a dissolution of parliament. For a long time Pitt sat silent as a statue, nor would he have spoken at all had not General Conway rose, and, with great warmth, called upon him to explain his conduct for his own honour. But even then Pitt gave no answer to Fox's question; only rising to call General Conway to order, for asserting that the ministry, "originated in darkness and secrecy, maintained themselves by artifice and reserve, and existed by corruption;" and that they were "about to dissolve parliament, and to send their agents round the country to bribe the electors." The same question was put to Pitt on a future day, and he preserved the same haughty silence; whence, on the 26th, Mr. Eden moved a resolution, declaring the firm reliance of the house on his majesty's promise, that they should not be interrupted either by a prorogation or dissolution, from taking into consideration the regulation of the East India Company, and for supporting the public credit. In reply, Pitt observed, that he did not see how the royal word could be considered pledged to the extent of the motion; but, he added, that as a dissolution would be attended with great disadvantage, he would not advise any such exercise of the royal prerogative. Opposition might have been satisfied with this explicit declaration, but nevertheless Mr. Eden's motion was pressed and agreed to without a division. The house then adjourned to the 29th, and in the meantime a meeting of some of the leading men of both parties met at the St. Albans-tavern, in order, if possible, to bring about a coalition. At this meeting am address was agreed upon, and sent, by a deputation, to the Duke of Portland and Mr. Pitt, entreating them to communicate with each other, and expressing a hope that this would lead to a cordial co-operation. All the exertions of the St. Albans-tavern meeting, however, were unavailing. The Duke of Portland and Mr. Pitt communicated with each other, but as the former made the resignation of the latter a _sine qua non_, no union could be formed.

The house reassembled on the 29th, but on the motion of Fox, it was again adjourned till the 2nd of February. This adjournment was moved in order to give more time for the consideration of a union of parties; but when the house met again they were still as far from a coalition as ever. Under these circumstances Mr. Grosvenor, member for Chester, who had presided at the St. Albans-tavern meeting, moved a resolution, to the effect that the situation of public affairs required the exertions of an united administration—an administration entitled to the confidence of the people, and such as might tend to put an end to the divisions and distractions of the country. In the debate which this motion occasioned, Fox charged Pitt with preferring his own understanding to the collected wisdom of the house, and of causing a breach between the legislative and executive government. In reply, after alluding to the fact that the people were in favour of the late ministerial changes, Pitt expressed his determination not to quit office, inasmuch as he saw that nothing but evil would come from his resignation. At the same time he added, that he was but little attached to office, and that, if he could see a strong and well-connected government ready to succeed him, he would cheerfully retire. Mr. Grosvenor's motion was carried, and Mr. Coke then moved, "that it was the opinion of the house that the

continuance of the present ministers in office is an obstacle to the formation of such an administration as may enjoy the confidence of the house, and tend to pacify the country." This motion was also carried, and on the next day Mr. Coke, after expressing his regret at seeing Pitt still in office, moved that these two resolutions should be laid before his majesty by those members who were of the privy-council, which motion was likewise affirmed. In order to give time for knowing what effect this communication to his majesty would produce, the committee on the state of the nation was postponed till Monday, the 9th of February; and in the meantime the house was informed by Lord Hinchingbrook, that he had laid the resolutions before the king, and that his majesty had signified his intention of taking them into consideration. But no communication was made from his majesty on this subject before the 18th, and in the interval its members were occupied in canvassing the proceedings of the upper house, and in measures of revenue and finance.

Up to this time the lords had taken no share in the struggle between the king and his "faithful commons." Pitt, however, had already commenced his career of making peers, and these, with others, now began to exhibit their zeal for his cause. Lord Howard of Effingham moved two resolutions in direct opposition to, and levelled at, those which had recently been passed by the commons. The first of these declared, that an attempt in any one branch of the legislature to suspend the course of the law was unconstitutional; and the second asserted, that the authority of appointing the great officers of the executive government was solely vested in the crown. Both these resolutions were carried by a majority of nearly two to one; and the commons thought it necessary to pass a counter-resolution, which asserted that the house had not assumed any right to suspend the execution of law, or done any thing which could be deemed unconstitutional.

On the 11th of February the subject of a union of parties was once more discussed in the commons. Fox made a conciliatory and even complimentary speech, but Pitt was still firm in his intentions. He observed, that whatever might be his disposition to coalesce with Fox, there were other persons of the same party with whom he would never act. As this observation referred chiefly to Lord North, that nobleman rose, and declared with great frankness, "that although averse from yielding to the prejudices or caprice of any individual, he would not be an obstacle to the formation of such a firm, extended, and united administration as the present state of the country required." After this the house resolved itself into a committee of supply, and the ordnance estimates were voted without a division. On the next day Lord John Cavendish moved, that the house should resolve itself into a committee on the Receipt Tax Act, and Pitt himself voted in the majority, thereby declaring his approbation of the principles of the bill.

Before his majesty made any reply to the resolutions presented to him, the St. Albans-tavern association prevailed upon Pitt to agree that a message should be sent in the king's name to the Duke of Portland, expressing a desire that his grace should hold a conference with Mr. Pitt for the purpose of forming an administration, "on a wide basis, and on fair and equal terms." This message was sent, but the Duke of Portland still required Pitt to resign before he negociated; and this attempt to form a

coalition of parties proved, like the former, to be of no avail. Open war, therefore, continued between the two parties, and its violence increased when, on the 18th of February, after the order of the day had been read for taking the supplies into consideration, Pitt intimated, that his majesty had not thought proper to dismiss his ministers, in compliance with the resolution of that house, and that they had not resigned. Fox, in reply, expressed his astonishment at this declaration, and declared that such language had not been heard in the house since the revolution; and that the commons had never before received such a reply from a prince of the House of Hanover. Enraged thereby, Fox moved, that the report of the committee of supply should not be received till the 20th, which motion was carried by a majority of twelve only. The friends of Pitt saw in this small majority a ray of hope that he would ultimately triumph, and the opposition seemed to think so likewise, for some eagerly desired a compromise. Pitt, however, declared, that he would enter into no compromise or stipulation for passing the vote of supplies, and therefore he still stood upon his own grounds. On the 20th Mr. Powys moved a resolution, humbly requesting his majesty “to take such measures as might tend to give effect to the wishes of his faithful commons.” This mild resolution did not please Fox and his party, and an amendment was moved to insert the following words—“by removing any obstacle to the formation of such an administration as this house has declared to be requisite in the present critical situation of affairs.” As this amendment aimed at the dismissal of ministers, a long and stormy debate ensued, in the course of which Pitt delivered one of the most eloquent speeches ever uttered within the walls of the house of commons. But no eloquence could break down the obstinacy of the house; for the motion, with the amendment, was carried by a majority of twenty; and Fox, pursuing his triumph, moved and carried an address., to be presented to his majesty on his throne by the whole house, praying him to dismiss his ministers. The report of the ordnance estimates was then brought up and agreed to without a division, after which, between five and six in the morning, the house adjourned.

The address voted by the commons was presented on the 25th, when his majesty in reply, stated that he had heard no valid charge against the ministers of his appointment; that all proposals for a coalition, though seconded by himself, had proved abortive; and that he could not see in what way the public interest was likely to be promoted by the dismissal of his cabinet. He added:—“Under these circumstances, I trust my faithful commons will not wish that the essential offices of executive government should be vacated until I see a prospect that such a plan of union as I have called for, and they have pointed out, may be carried into effect.” The efforts of the opposition now grew more violent. The house met on the 27th to hear the report of the king’s answer; and on that occasion Lord Beaumont moved, first, that the report should be taken into consideration on the 1st of March, and then that the house should adjourn to that day. To the first of these propositions Pitt made no objection, but as the object of the second was to delay the supplies, and this delay would cause serious evils, inasmuch as they related to the navy, he strongly resisted such a hazardous measure. His arguments told even upon the opposition, for though the motion was carried, it was only by the small majority of seven; the numbers being one hundred and seventy-five to one hundred and sixty-eight. But the struggle was

not yet over. On the 1st of March, Fox moved and carried another address to the king, which directly asserted the right of the commons to advise his majesty on the exercise of his prerogative, and by virtue of that right, specifically requesting him to dismiss his ministers. The commons carried this address to the king on the 4th of March, and were told in reply that his majesty still entertained the same sentiments he had formerly expressed. On the same evening it was agreed, upon the motion of Fox, that this reply should be taken into consideration on Monday, the 8th of March. In the meantime Pitt was once more defeated. On the 5th, Fox moved that the committee on the Mutiny Bill, which stood for that day, should be adjourned till Monday, which was carried by a majority of nine; the numbers being one hundred and seventy-one against one hundred and sixty-two. But this was Fox’s last triumph in this memorable struggle. On Monday the house was crowded to excess. Strangers had even taken their seats in the gallery as early as ten o’clock in the morning, in expectation of witnessing this last struggle in the trial of the two great parties in the house of commons. Before the debates commenced, however, Sir James Lowther, after complaining that he had not been able to find room for a friend, and stating that he had reason to believe there were strangers there not introduced by members, insisted upon the standing order of the house for excluding all strangers being carried into execution; and the gallery was forthwith cleared. When this was done, Fox, after accusing his sturdy opponent with insolent and unconstitutional conduct, declaring that a union of parties was now impracticable, and lamenting the disgrace and ruin which this struggle had brought upon the country, moved, as a last measure, another address to the throne, which repeated at greater length the prayer for the removal of ministers; expressing the surprise and affliction of the house at receiving the answer to its former address, and vindicating the loyalty of the commons, who were said to be incapable of desiring to lessen the prerogative of the crown. Pitt sat silent, and the task of defending the conduct of ministers fell upon Dundas, who did so with great ability. The debate lasted till midnight, when the house became impatient to divide. It was an anxious moment for both parties, and loud and vociferous were the cheers on the ministerial benches, when it was found that Fox had this time only a majority of _one_ in his favour; the numbers being one hundred and ninety-one against one hundred and ninety. The struggle was, indeed, now over; for the opposition acknowledged the majority of one only as a defeat. Henceforth they tried no more divisions: the Mutiny Bill and supplies were voted readily, and the Appropriation Act was no more brought forward. Pitt’s triumph was complete: and yet he deemed it prudent to strengthen his cause by a new election; lest the opposition should again rally and retard his measures. Reports to this effect were soon spread abroad, and the subject was brought before parliament on the 22nd of March, by Sir Grey Cooper, who declared that such a step would be both daring and unwarrantable under present circumstances. The subject was renewed on the next day, when the report of the committee of supply was to be brought up, but though Pitt was eagerly questioned on the subject by Lord North and other members of the house, he still preserved silence. The house, however, did not have to wait long for the confirmation of the report. On the 24th, the king went down to the house of lords, and put an end to the session by prorogation; at the same time declaring that he felt it to be a duty which he owed to the constitution and the country, to recur to the

sense of his people, by convoking a new parliament. The sentence of dissolution was soon pronounced, for it appeared in the next day's _Gazette_.

A GENERAL ELECTION.

Pitt had good reasons to believe that a general election would result greatly in his favour. There can be no doubt, indeed, that if he had adopted such a measure at the first, that he would have been spared the trouble of contending with the opposition. At the same time if parliament had been dissolved on an earlier day, it is probable that he might not have had such bright prospects for the future. Every day his conduct seemed to gain him friends among the people; while on the other hand the popularity of his rival rapidly decreased. There were two grand causes which led to the decay of the popularity of Fox; namely, his coalition with Lord North and his party; and his India Bill, which arrayed against him not only the influence of the East India Company, but also of almost all the good citizens of London. The city of London had, indeed, showed much sympathy with the youthful premier, Pitt, in this memorable struggle. At the latter end of February, they voted him the freedom of the city, which they presented to him in great state at the house of Lord Chatham, in Berkeley-square, whence he was conducted by the committee to a grand dinner at the Grocers'-hall. What sentiments were entertained towards him may be gathered from the speech which Wilkes, the chamberlain of the city, made on this occasion. After lavishing much praise on Pitt, he thus alluded to the parliamentary contest, which was then at its height:—"I know, sir, how high you stand in the confidence of the public: much is to be done, but you have youth, capacity, and firmness; it is the characteristic of a true patriot never to despair. Your noble father, sir, annihilated party; and, I hope you will, in the end, bear down and conquer the hydra of faction, which now rears its hundred heads against you. I remember his saying, that for the good of the people he dared to look the proudest connexions of this country in the face: I trust that the same spirit animates his son: and as he has the same support of the crown, and of the people, I am firmly persuaded that the same success will follow." But the sentiments which the people of England entertained towards Pitt and his rival were more fully manifested, during, and by, the results of the election. The Pitt candidates were returned on every hand by triumphant majorities, and not less than one hundred and sixty of the old members of opposition lost their seats, and were sent back to private life with the ludicrous appellation of "Fox's Martyrs." But it must not be supposed that this result was entirely owing to the popularity of the young premier. The press, that mighty engine for good or evil, had been set to work to undermine the power of the coalition, and lampoons and satires on Fox and North had been printed daily and scattered throughout the country. Moreover, as Pitt had from the first contemplated a dissolution of parliament, every influence which a government could command had been employed in his favour. Finally, the youth of Pitt, and the bold stand he had made against his opponents, had a powerful tendency to gain him the support of the nation. Though inexperienced, men saw in him the future champion of parliamentary reform; and the powerful antagonist of that aristocratic confederacy, against which his father had exerted his talents. The star of Pitt was, in truth, in the ascendant; while that of his rival set in gloom. Fox was returned to parliament, but it was with some difficulty that he obtained a seat. He

was a candidate for Westminster, and had a majority on the poll over Sir Cecil Wray, but the high-bailiff, by a scandalous partiality, refused to make a return in his favour. Fox brought an action against the bailiff in the court of king’s bench, and obtained considerable damages; and in the meantime, he secured a seat for the borough of Kirkwall, in Orkney, by which he exposed himself to the ridicule of his enemies as a person banished to the “Ultima Thule.”

{GEORGE III. 1784–1786}

MEETING OF THE NEW PARLIAMENT.

The meeting of the new parliament took place on the 18th of May. In his speech, the king expressed great satisfaction at meeting the house at this time, after having recurred, in so important a moment, to the sense of his people; and recommended to their most serious consideration the framing of suitable provisions for the good government of our possessions in the East Indies. The addresses in both houses contained strong expressions of gratitude to the king for having dissolved the late parliament; and amendments to omit these expressions, on the ground of unanimity, were negatived by large majorities. The attention of the house was first directed to the conduct of the high-bailiff of Westminister, in refusing to make the return in favour of Fox; and he was directed to attend at the bar of the house to defend his conduct. In his defence, he said, that having ground to suspect the validity of many votes, taken in the course of a poll of six weeks’ duration, he had granted a scrutiny, and that he could not make the return till this scrutiny terminated. Counsel was heard on both sides as to the legality of his conduct; and after long pleadings, it was moved and carried, that “the high-bailiff do proceed in the scrutiny with all possible dispatch,” thereby justifying the unwarrantable step he had taken. The principle of party spirit prevailed over a sense of justice, for the scrutiny of an election is nothing more than a revision of the poll itself, and if such revision cannot be completed before the period at which the writ is returnable, he is bound by his office and oath to make the return agreeably to the poll as actually taken. So the counsel on the side of Fox argued; but the justice of the house was set aside by the spirit of party, if not revenge.

ACTS TO PREVENT SMUGGLING, ETC.

At this time there was a deficiency of three millions a year in the revenue of the country. This was principally owing to a failure in the estimated produce of taxes imposed by Lord North during the war with America. There were, however, other causes at work to produce this deficiency, and not the least among them was the universal practice of smuggling. This practice was, indeed, at the close of the American war, carried on to an almost incredible extent; government being too much employed to keep a strict watch over the trade of the country. It is calculated that forty thousand persons were thus engaged; and Pitt deemed it expedient to bring in a bill for the prevention of smuggling in general, and then to propose regulations applicable to those articles which formed its principle support. By the bill for the prevention of smuggling, the right of seizing certain vessels with their cargoes, under

particular circumstances, was greatly extended; the building of such vessels was prohibited; the owners of armed vessels were obliged to procure licences; the rules respecting clearance were enlarged; and the act of resisting his majesty's ships and officers was made a capital felony. In order to aid this bill, Pitt brought forward two others: one directed against contraband trade in tea, and the other against that in spirits. That with reference to tea was of great importance, for it was at this time considered a staple commodity of the smuggler. In fact, more than seven million pounds of that article were smuggled into the country annually; while only about five millions were sold by the East India Company. To prevent this evil, Pitt proposed to reduce the duty upon tea from fifty to twelve and a half per cent., which was not more than equal to the expense of smuggling. The same principle was maintained in the bill directed against the contraband trade in spirits. Great frauds had been committed on the distilleries at home; and Pitt proposed a bill by which the duties payable on British spirits were regulated and enforced; while those on foreign duties were considerably reduced. As these reductions, and especially on the article of tea, would occasion a great loss to the revenue, Pitt proposed to increase the tax on windows in proportion. All these resolutions were passed, after much debate in the commons, by large majorities; and they met with little or no opposition in the house of lords.

THE BUDGET OF 1784.

On the 30th of June, Pitt produced what is called the budget, which included the subject of taxation. In his speech he discussed the ways and means for defraying the expenses of the services of the present year; the loan; the funding a portion of the unfunded debt; and new taxes. A loan of six millions was found requisite for the current services of the year, besides the ordinary sources of income; and this he proposed to throw open to public competition; the biddings being sent in, sealed up, and afterwards opened in the presence of the governor and deputy governor of the Bank of England. At this time the navy and victualling bills, with the ordnance debentures, which formed a considerable part of the unfunded debt, amounted to about fourteen millions; nearly the half of which he proposed to fund at five per cent, stock, and to make irredeemable for thirty years, or until twenty-five millions of the existing funds should be extinguished. Beyond this, there was in the market about seven millions in bills and debentures, which bore an interest of four per cent. These bills, with the new fund and the new loan, required an interest of nearly one million pounds sterling; and Pitt undertook to find taxes which should produce that sum. He proposed duties on hats, ribands, coals, gauzes, horses, linens and calicoes, candles, bricks and tiles, paper, and hackney-coaches; and he also proposed licences to dealers in exciseable articles, and certificates to kill game. In commenting upon these taxes, the young premier observed:—"It would be idle to suppose that all the taxes in this long catalogue were unexceptionable; but the necessities of the public leave us no option to deal otherwise than openly and fairly. The wants of government are many; the finances of the country have been much reduced; and it is proper to look our real situation manfully in the face." Pitt could speak and act the more boldly because the necessities of the government were not of his own creation; and his manliness, together with the ability he displayed in his financial detail, gained for him the applause even of his most determined opponents. Fox said, with reference to his

management of the unfunded debt, that “too much praise could not be given him.” The only tax, indeed, which met with decided opposition, was that on coals, which was justly represented as oppressive to the poor, and injurious to our manufactures. This he relinquished, as he did also that on hops, which was to have been included in the exciseable articles, introducing in their stead, taxes on gold and silver plate, lead exported, race-horses, licences to sell ale, and postage of letters. Pitt also introduced regulations regarding the privilege of franking, which were calculated to increase the revenue of the post-office. On the whole, the introduction of this budget, though the nation was already exhausted by taxes, had the effect of greatly increasing the youthful premier’s popularity.

PITT’S INDIA BILL.

In the midst of this popularity, Pitt brought forward his celebrated India Bill. This may be considered under three separate heads. 1. A new establishment at home, with powers extending over the affairs of the East India Company. 2. Regulations to be applied to India. 3. The erection of a court in England for the trial of offences committed in India.

The first of these heads consisted of a board of control, which was to be composed of six commissioners, holding the rank of privy-counsellors, and comprising the chancellor of the exchequer and one secretary of state; and four others holding offices of such emolument as precluded the necessity of a salary. The members of this board were to be appointed by the king, and removable at his pleasure; and they were authorised to check, superintend, and control the civil and military government, as well as the revenues of the company. It was their duty also to inspect and countersign all the despatches transmitted by the court of directors to the different presidencies. The directors were enjoined to pay all due obedience to the orders of this board, touching the civil and military government and revenues; but in case such orders should at any time in the opinion of the directors, relate to matters not connected with these points, they were left at liberty to appeal to his majesty in council, whose decision was to be final. In all cases of secrecy, and particularly such as related to peace or war with the native powers of India, the commissioners were to have the power of sending their orders to the local government of India, through a secret committee of the court of directors, which committee could in this case only be considered as the vehicle of instruction to the local authorities of India.

The regulations applicable to India related to the government. Pitt proposed that the government in each of the three stations should consist of a president and counsellors; that the president of Bengal should be governor-general; that the commander-in-chief should be one of the council, and next to the governor-general; and that the commander-in-chief at Madras and Bombay should take similar rank at each of those stations. The government of Bengal was to have control over the other presidencies, and the appointment of governors, commanders-in-chief, and other members of the council, was to be vested in the directors; they, together with the king, having the power of recalling the governor-general, as well as every other person employed by the company. All promotions, whether civil or military, were to be made according to seniority, and in progressive succession, unless for some

urgent case to be transmitted to the directors; and each government was empowered to apprehend all persons guilty of carrying on an illicit correspondence, and either bring them to trial in India or send them to England. In order to prevent ambitious projects, the supreme government was not permitted to enter into an offensive treaty, or to make war, without the command of the directors, against any power which had not commenced, or given full proof of its intention to commence hostilities. Provisions were also inserted in this bill relative to the settlement of disputes with the Nabob of Arcot, and the redress of complaints of injustice and oppression, exercised against the Zemindars, or great hereditary landholders of India, who had either been dispossessed of their lands, or subjected to exorbitant demands, by the officers of the East India Company. This part of Pitt's bill also regulated the ages at which writers and cadets should be appointed, as well as the number proper to be sent out; prohibited the acceptance of presents; and required that all servants of the company should, after the 1st of January, 1787, deliver an oath within two months after their arrival in England, respecting what part of their property was, and what was not, acquired in India.

In the third part of Pitt's bill, he proposed that a high tribunal should be created for the trial of Indian delinquents, which tribunal was to consist of three judges, one from each court; of four peers, and six members of the House of Commons, who were authorised to act without appeal; to award, in case of conviction, fine or imprisonment; and to declare the party convicted incapable of again serving the company. No person, holding any office under the crown during pleasure, or who had ever been in the Indian service could become a member of this court.

Such were the three grand features of Pitt's India Bill. As might have been expected, his opponents were sedulous in pointing out its defects. Burke, who had no mean share in the composition of Fox's India Bill, the great outcry against which had been that it went to increase, in a most dangerous degree, the influence of the minister, said, that Pitt's bill, in reality, vested in the crown an influence paramount to any that had been proposed by the bill of his opponent. On this subject, also, Fox remarked:—"By whom is this board of superintendants to be appointed? Is it not by his majesty? And is not this giving power to the sovereign for the ends of influence, and for the extension of that system of corruption which has been so justly reprobated? The last parliament, to their immortal honour, voted the increasing influence of the crown to be inconsistent with public liberty. The right honourable gentleman, in consequence of that vote, finds the influence probably unequal to the great objects of his administration. He is therefore willing to take the present opportunity of making his court where he knows our late doctrine will never be acceptable; and the plain language of the whole matter now is, that the patronage of India must be appended to the executive power of this country, which otherwise will not be able to cany on schemes hostile to the constitution, in opposition to the house of commons." Fox objected to the bill on other grounds. He remarked, that the bill established a weak and inefficient government, by dividing its powers—to the one board belonged the privilege of ordering and contriving measures; to the other, that of carrying them into execution. Theories, he said, which did not connect men with measures, were not theories for this world: they were chimeras with which a recluse

might divert his fancy, but they were not principles en which a statesman would found his system. He maintained, that by the negative vested in the commissioners, the chartered rights of the company, on which stress had been laid, were insidiously undermined and virtually annihilated. Founded on such heterogeneous principles, how, he asked, could such a government be other than the constant victim of internal distraction? As for the appeal allowed from the decisions of the board of control to the privy-council, that was only the appeal from the aggressor transformed into the character of a judge, and was therefore in the highest degree nugatory and ridiculous. Against the clauses of the bill respecting the Zemindars, Fox entered his strong protest. In his opinion they ought to be rated by a fixed rule of past periods, and not of a vague and indefinite future inquiry. He stigmatized the new tribunal as a screen for delinquents, and as a palpable and unconstitutional violation of the sacred right of a trial by jury. As no man was to be tried but on the accusation of the company or the attorney-general, he contended, that the delinquent had only to conciliate government in order to his remaining in perfect security. He would venture, he said, to pronounce this part of the general system of deception and delusion, a “bed of justice,” where justice would for ever sleep. With regard to the East India charter, Fox insisted that it was as much violated by this bill as by his own; but on this important point, at least, the difference was palpable and striking; for while Fox’s bill took away commerce from the company, the other left it solely in their hands. By Pitt’s bill, indeed, the management of their commercial concerns was guaranteed to them, and they were only divested of that political power which they had abused, and of that civil authority which for a series of years they had shown themselves to be incompetent to exercise, Many other objections were started, and during the progress of the bill through the house, several amendments were moved and adopted, but its main features were preserved, and the bill finally passed both houses with triumphant majorities. In the whole, twenty-one new clauses were added to the bill, which were distinguished by the letters of the alphabet; and Sheridan humourously suggested that three other clauses should be affixed, in order, as he observed, “to complete the horn-book of the present ministry;” The minority in the lords, in a protest, branded the bill as a measure ineffectual in its provisions, unconstitutional in its partial abolition of the trial by jury, and unjust in its inquisitorial spirit. But though Pitt’s scheme was not perfect, yet in many points of view it was preferable to that of Fox; and even its errors were magnified by the prejudice of party spirit.

BILL FOR THE RESTORATION OF FORFEITED ESTATES IN SCOTLAND.

The last measure which came before parliament during the present session was a bill introduced by Mr. Dundas, for the restoration of estates in Scotland to the heirs of those who had forfeited them in the rebellions of 1715 and 1745. In making this proposition, Mr. Dundas declared that it was, in his opinion, worthy of the justice and generosity of the house. There was not one of the families comprehended in the scope of it, he said, in which some person had not atoned for the crimes and errors of his ancestors, by sacrificing his blood in the cause of his country; and he declared that the sovereign had not, for a long series of years past, a more loyal set of subjects than the Highlanders and their chieftains. He did not, however, propose that the estates

should be freed from the claims existing against them at the time of their forfeiture, as this, he argued, would be establishing a premium for rebellion. Such sums, amounting to about £80,000, he suggested, should be appropriated to public purposes; £50,000 of which he recommended should be employed in the completion of the grand canal reaching from the Frith of Forth to that of Clyde. This liberal measure was received in a manner that did honour to the feelings of the house; the leaders of both parties joining in eulogising it. The bill passed the commons without any opposition; but when sent to the lords it met with a most determined resistance from the restored chancellor Thurlow, who expatiated on the ancient maxim that treason was of so deep a dye that nothing but the total eradication of the person, name, and family out of the community was adequate to its punishment. On a division, however, Thurlow was left in a great minority, and the bill passed, much to the satisfaction of the public.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 20th of August, the king expressing his warmest thanks to both houses for their zealous and diligent attention to the public service. His majesty dismissed his parliament with the satisfactory conviction that he had established a ministry to his own mind, and that he had nothing more to fear from the coalition which had so long disturbed his peace. At the close of the session, indeed, the popularity of Pitt was at its height, and his power was established—a power which remained unbroken for seventeen long and eventful years.

{GEORGE III. 1784–1786}

THE STATE OF IRELAND.

At this period Ireland was in a very disturbed state. During the year 1783, an assembly of delegates, from the volunteer corps, assembled in the provinces of Antrim, Ulster, Leinster, and Munster, for the purpose of consulting on measures proper to be adopted to effect a reform in parliament, and a national convention was appointed to be held at Dublin on the 10th of November. Such was the posture of affairs when the Irish parliament, which had been recently elected, met on the 14th of October. The first measure of this parliament was to vote thanks to the different volunteer corps for their public services; after which, a resolution, proposed by Lord Mountmorres, “that, in the present state of the kingdom, it was expedient that there should be a session of parliament held every year,” received the sanction of both houses.

The national convention assembled on the day appointed; and the Earl of Charlemont, generalissimo of the volunteer corps throughout the kingdom, was elected president. At this meeting the Bishop of Deny moved that a committee should be appointed to digest a plan of reform. This motion was adopted; and in a short time the committee thus reported their opinion:—‘“That every protestant freeholder or leaseholder, possessing a freehold or leasehold for a certain term of years, of forty shillings value, resident in any city or borough, should be entitled to vote in the election of member for the same that decayed boroughs should be enabled to return

representatives by an extension of franchise to the neighbouring parishes; that the suffrages of the electors should be taken by the sheriff or his deputies on the same day, at the respective places of election; that pensioners of the crown, receiving their pensions during pleasure, should be incapacitated from sitting in parliament; that every member of parliament accepting a pension for life, or any place under the crown, should vacate his seat; that each member should subscribe an oath that he had, neither directly nor indirectly, given any pecuniary or other consideration, with a view of obtaining the suffrage of any elector; and that the duration of parliament should not exceed the term of three years." This report was received with applause, and resolutions to the effect were passed unanimously.

On the next day Mr. Flood moved, in the Irish house of commons, for leave to bring in a bill for the more equal representation of the people in parliament; a motion which was rejected by a large majority, as the proposal was made at the point of the bayonet. After this an address to the king was voted in both houses, expressive of the sense of the blessings they enjoyed under his auspices, and assuring him that they were determined to support inviolate the present constitution with their lives and their fortunes.

The conduct of the Irish parliament was reported to the national convention by Mr. Flood on the 1st of December, when a resolution was simply passed to the effect, that they would individually carry on such investigations as might be necessary to complete the plan of parliamentary reform. The convention seems to have thought that they were going too far, and that it would be better somewhat to retrace their steps, for on the next day an address was voted to the king, on the motion of Mr. Flood, in the name of the delegates of all the volunteers of Ireland, expressive of their loyalty and duty; claiming the merits of their past exertions, and imploring his majesty, that their humble wish to have certain manifest perversions of the parliamentary representation of that kingdom remedied by the legislature, in some reasonable degree, might not be attributed to any spirit of innovation, but to a sober and laudable desire to uphold the constitution, to confirm the satisfaction of their fellow-subjects, and to perpetuate the union of both kingdoms. On the 13th of March, in the following year, Mr. Flood renewed his motion for parliamentary reform, which was again rejected; and then the object was relinquished in despair.

The people of Ireland, however, were not yet quiet. They had many grievances which required redress; and it can form no matter of wonder that they lifted up the voice of complaint. Their next call was for protecting duties, to foster the infant manufactures of that country, and to compel the inhabitants to consume the produce of native ingenuity and industry. This subject was brought before the Irish house of commons on the 31st of March, by Mr. Gardiner, who implored the house to copy the conduct of England, France, and other countries in this respect; and moved for a high duty on woollens imported into the kingdom. This motion was rejected by a large majority; and the disappointment of the people was now kindled into rage. So critical was the state of Dublin at this period, that it was deemed necessary to countermand the embarkation of several regiments destined for the East Indies, and to furnish the garrison in that city with an extraordinary supply of powder and ball. Before the

session was closed, the people were somewhat appeased by an address which was voted to the king, and which represented the distressed state of the kingdom, and prayed for the establishment of a more advantageous system of commerce between Ireland and Great Britain; but there were still restless spirits in that unhappy country, and these sought again to disturb the public mind. On the 7th of June, a meeting of the aggregate body of the citizens of Dublin was convened by the sheriffs, and in which resolutions were passed declaratory of the right of the people of Ireland to a frequent election and an equal representation. In an address to the people of Ireland, this meeting proposed the election of five delegates from each county, city, and considerable town, to meet in Dublin on the 25th of October, in national congress. Resolutions similar to those passed by this meeting were agreed to at a general meeting of the freeholders of the county of Dublin, which was held on the 9th of August; and a petition was also voted by these freeholders, praying a dissolution of parliament. These measures met with decided opposition from the government of Ireland. The 20th of September having been fixed upon as the day for electing five delegates to represent the city of Dublin in national congress; before that day arrived, Mr. Fitzgibbon, the attorney-general, wrote a letter to the sheriffs, threatening them with a prosecution if they should take any part in the election. This menace alarmed the sheriffs, and prevented their interference; but the delegates were chosen, and a resolution was passed, declaring the conduct of the attorney-general to be a violation of Magna Charta. The attorney-general filed informations against the high-sheriffs of various counties for convening and presiding at similar meetings; but the national congress met, and passed several resolutions, importing that the appointment of that assembly, and the steps that had been taken, were in conformity with the constitution of Ireland; after which this congress adjourned to the 25th of January. On the same day that the Irish congress met, the second session of the parliament of Ireland commenced, when Mr. Orde, secretary to the lord-lieutenant, laid before the house a series of commercial regulations, which had been digested during the recess into a regular system. Two plans were formed; one of which was a system of mutual prohibition, and the other a system of mutual admission. Mr. Orde moved eleven propositions in conformity to the latter, which were all ratified by a decisive majority, after much violent discussion.

MEETING OF PARLIAMENT.

{A.D. 1785}

Parliament reassembled on the 25th of January. In his speech, the king alluded to the success which had attended the financial measures of the last session, as an encouragement for parliament to renew the consideration of such salutary objects; and he recommended the two houses to apply their utmost attention to the adjustment of such points in the commercial intercourse between this country and Ireland, as were not yet finally arranged. In both houses the addresses were carried without a division.

THE WESTMINSTER SCRUTINY.

The first business which engaged the attention of the house, was the state of the Westminster scrutiny, which had now continued for eight months, at a great expense, and only two parishes out of seven had been gone through. It was calculated that as one of the parishes scrutinized was a small one, it would take three years to scrutinise the whole. Under these circumstances, the electors petitioned the house on the subject, and the high-bailiff and his counsel were in consequence examined at the bar of the house, touching the practicability of proceeding with greater dispatch. The high-bailiff frankly confessed that it would not take less than two years to finish the scrutiny; and Mr. Welbore Ellis, now in opposition, moved that he should obey the writ, and make a return of the precept; that is, that he should declare those elected who stood highest on the poll. This was negatived by one hundred and seventy-four against one hundred and thirty-five; and another motion, of a similar tendency, moved by Colonel Fitzpatrick, at a subsequent date, was likewise rejected, though only by a majority of nine, the numbers being one hundred and forty-five against one hundred and thirty-six. This small majority was ominous, inasmuch as it indicated that there was a change in public opinion upon the subject; and encouraged by it, on the 3rd of March, Alderman Sawbridge brought forward the motion for the third time. Pitt, whose proceedings on this subject reflect no credit on his feelings, moved the question of adjournment upon this repeated motion, and had the mortification of being left in a minority of thirty-eight; the numbers being for the adjournment one hundred and twenty-four, and against it, one hundred and sixty-two. After this the main question was put and carried without a division; and on the next day Lord Hood and Mr. Fox were declared duly returned. Yet the house, while it condemned the scrutiny as inexpedient, still maintained its legality; for when, on the 9th of March, Mr. Francis moved a resolution for expunging that of the 8th of June preceding, by which it was authorised, he was left in a minority of one hundred and thirty-seven against one hundred and forty-two. It is said that Mr. Pitt engaged in this discreditable affair from the conviction, that, within a reasonable time, a decided majority of legal votes would be substantiated in favour of Sir Cecil Wray; but it would rather appear that it was from the enmity which he bore to his rival, Fox. This, indeed, is borne out by the debates on the subject, for the speeches of Pitt teem with bitter invective against his opponent; which, perhaps, may have been a leading cause in the change of sentiments that took place among the young premier’s friends. There is in the nature of man, enlightened by education, an utter abhorrence to the spirit of persecution; and it must be confessed that Pitt exhibited much of that spirit in this affair of the Westminster scrutiny. And that Fox was looked upon in the light of a martyr is evident from the words of Pitt himself. In one of his speeches, having accused his rival of filling his speech with everything that was personal, inflammatory, and invidious, he remarked:—“I am not surprised if he should pretend to be the butt of ministerial persecution; and if, by striving to excite the public compassion, he should seek to reinstate himself in that popularity which he once enjoyed, but which he so unhappily has forfeited. For it is the best and most ordinary resource of these political apostates to court, to offer themselves to persecution for the sake of the popular predilection and pity which usually fall upon persecuted men; it becomes worth their while to suffer, for a time, political martyrdom, for the sake of the canonization that awaits the suffering martyr; and I make no doubt the right

honourable gentleman has so much penetration, and at the same time so much passive virtue about him, that he would be glad not only to seem a poor, injured, persecuted man, but he would gladly seek an opportunity of even really suffering a little persecution, if it be possible to find such an opportunity." In this extract is at once seen the animus by which Pitt was actuated in this contest; and the light in which the house and the public were disposed to look upon the object of his unseeming vindictiveness. A generous conqueror never persecutes, or exults over a fallen enemy.

PITT'S REFORM BILL.

These petty and unworthy proceedings were followed by a subject more worthy the attention of the statesman. Pitt had twice failed in his attempts to reform the house of commons, but, notwithstanding, he still determined to persevere, having pledged himself "as a man and a minister," to promote this great cause. He renewed the subject on the 18th of April, when he brought forward a plan of reform: the specific proposition of which was to transfer the right of election from thirty-six rotten boroughs to the counties and great unrepresented towns; giving a compensation in money to the owners and holders of the rotten boroughs so disfranchised; the bill also proposed to extend the right of voting in county elections to copyholders. It has been doubted whether Pitt, at this time, had any sincere desire for parliamentary reform, although he had pledged himself to exert his influence to the utmost for securing the measure. There does not seem, however, to be any good reason for this doubt; for it is a well-known fact that he brought it forward, if not in direct opposition to the wishes of the king, yet at least without his expressed approbation. Knowing the aversion which his majesty felt to disturb this part of the constitution, he laid the heads of his plan before his royal master, from whom he received this honest and candid reply;—"Mr. Pitt must recollect that though I have ever thought it unfortunate that he had early engaged in this measure, yet I have always said, that as he was clear of its propriety, he ought to lay his thoughts before the house; that out of personal regard to him, I would avoid giving an opinion to any one, on the opening of the door of parliamentary reform, except to him: therefore I am certain Mr. Pitt cannot suspect me of influencing any person on this occasion. If others choose, for base ends, to impute such a conduct to me, I must bear it, as former false suggestions." Yet, notwithstanding the king was so cold upon the subject, Pitt brought it forward with great energy in the house. At the same time, his speech seemed to indicate that he was not sanguine of success, although he felt assured that the minds of men were more enlightened upon the subject than at any former period. He remarked:—"The number of gentlemen who are hostile to reform, are a phalanx which ought to give alarm to any individual upon rising to suggest such a measure. Those who, with a sort of superstitious awe, reverence the constitution so much as to be fearful of touching even its defects; have always reprobated every attempt to purify the representation. They acknowledge its inequality and corruption, but in their enthusaism for the grand fabric, they would not suffer a reformer, with unhallowed hands, to repair the injuries which it has suffered from time. Others, who, perceiving the deficiencies that have arisen from circumstances, are solicitous for their amendment, yet resist the attempt; under the argument that, when once we have presumed to touch the constitution in

one point, the awe which had heretofore kept us back from the daring enterprise of innovation might abate, and there was no foreseeing to what alarming lengths we might progressively go under the mask of reformation." In support of his bill, Pitt argued that the plan which he proposed was coincident with the spirit of those changes which had taken place in the exercise of the elective franchise from the earliest ages, and not in the least allied to the spirit of innovation; that so far back as the reign of Edward the First the franchise of election had been constantly fluctuating; that as one borough decayed and another flourished, the first was abolished and the second was invested with the right; that even the representation of counties had not been uniform; and that James the First in his proclamation for calling his first parliament, directed that the sheriffs should not call upon such boroughs as were ruined and decayed, to send members to parliament. But no arguments could prevail; and Pitt, having made no use of his ministerial influence to bring over converts to his scheme, was doomed to suffer a signal defeat; the bill was thrown out by two hundred and forty-eight against one hundred and seventy-four; and the premier never ventured to bring the subject before the house again. Nay, in a few years he even became a determined opponent of all change or amendment in the representation. It is from this cause, chiefly, that he is suspected of insincerity at this period: but his bosom friend, Wilberforce, at least deemed him sincere upon the subject, for he writes with reference to it in his diary, that Pitt had a "noble patriotic heart;" a sentiment to which a previous private conversation gave rise. It is in the closet, when man unbosoms himself to a friend, that his real intentions are best discovered. No conclusion can, indeed, be drawn upon the matter of Pitt's sincerity from his subsequent opposition to parliamentary reform, for many causes may have operated upon his mind to lead him to change his line of conduct. He may have opposed it out of deference to his majesty, or he may, after some years' experience, have seen that the machine, as then constituted, worked better under his auspices than he had anticipated. Man is a creature of change: to-morrow he may hold opinions from conviction, the very reverse of those which he holds to-day.

PITT'S FINANCIAL MEASURES.

Early in this session, Pitt brought in three several bills for the better auditing and examining the public accounts, and for the regulation and reform of the public offices, all which bills passed with great applause; though not without some stern opposition. In connexion with this subject he mentioned, that, from an inquiry which had been instituted into the accounts of different persons from whom the sum of £40,000,000 was due to the exchequer, £257,000 was ready to be paid: he also mentioned that further sums would be recovered still, as the examination of accounts proceeded. On the 11th of April, Pitt likewise made a communication which was at once satisfactory to the house, and creditable to his financial abilities. In moving for an account of the net produce of the taxes in the quarters ending January 5th and April 5th, for the two last years, he said, that the bills passed last session for the prevention of smuggling, and the regulations adopted for the collection and management of the different branches of revenue, had worked so well that, together with the extension of trade and commerce, they had already produced such an increase in the produce of the taxes as to justify a hope that the income of the

country, would, in the next year, not only equal the expenditure, but afford a surplus, which might be applied to the gradual liquidation of the debt. Yet with such a prospect Pitt found himself compelled to call for more taxes from the house. He opened the budget on the 9th of May, and in doing so he said that the supplies which had been voted amounted to £9,737,868; and that the ways and means fell short of that sum by about £1,000,000, which deficiency must be made good by new taxes. Accordingly, several new taxes were proposed; among which was a tax upon female servants, calculated to produce £140,000, and an additional tax upon servants, calculated to produce, in addition to the former one, about £35,000. Pitt also proposed a tax on retail shops, calculated at £120,000 per annum; a tax which proved particularly obnoxious, as was also that on servants. Most of the taxes which Pitt proposed, indeed, encountered much opposition; but the bills enacting them were carried after several divisions, with, however, some modifications, in order to obviate some of the principal objections. The modifications introduced were likely to render them less productive than Pitt originally expected; and to supply this deficiency, taxes on attorneys and on warrants were imposed; the game duty was increased, and coach-makers were obliged to take out a license. One great cause which led to these new imposts proceeded from the remaining part of the floating arrear of debt, consisting of navy bills and ordnance debentures, at five per cent, stock, the interest of which amounted to about £400,000 per annum. Pitt was led to the adoption of this measure because it was found that these bills and debentures had a great effect in depressing the public securities.

THE AFFAIRS OF IRELAND.

From the time that Pitt first became prime minister, the state of Ireland had occupied his anxious attention. In 1784 the Duke of Rutland had been appointed lord-lieutenant of that country, and no important step was taken by him in his government without Pitt’s advice and direction. Under the guidance of the youthful premier, the duke had been enabled to check the formidable spirit of turbulence and innovation which had recently exhibited itself, and the Irish people were apparently satisfied with his government. It was manifest, however, that there was still an under-current of disaffection, and that nothing but a complete change in the commercial relations of the country could afford effectual relief to the people, and render them permanently tranquil. Under these circumstances, therefore, Pitt spent a considerable time in deliberation with influential and intelligent persons respecting a new plan of commercial intercourse between the two kingdoms; and notice of his intention was given to the large trading or manufacturing towns, and a committee of privy-counsellors was appointed to receive their information or suggestions relative to such an object. The resolutions which Mr. Orde moved in the Irish parliament, as noticed in a previous page, were the result of these conferences, and these resolutions being transmitted to the king, accompanied with an address, Pitt brought them before the British parliament. In doing so, he observed, that from the revolution up to a recent period, the system of commerce established between the two countries, had been to make Ireland subservient to the interests and opulence of England. Ireland, he said, had not been suffered to profit either by the bounties of nature or the skill of her own inhabitants. Some relaxation of this system, he

admitted, had taken place at an early period of the present century; more had been done in the reign of George the Second; and within a few years, Ireland had been permitted to export her produce and manufactures, and to have a share of the colonial trade. At this moment, however, he remarked, the intercourse between England and Ireland remained on the old footing, except on trivial points; no material alteration having been made in the exportation of British manufactures to Ireland, or the importation of Irish manufactures into Great Britain. To this he attributed the dissatisfaction which existed in Ireland; suggestions having been made for subjecting our produce and manufactures to what were termed “protecting duties,” for the purpose of preventing their introduction into the country. He continued, that having abandoned the old system of commercial domination, and having wisely and justly put the Irish people into a position of profiting by the gifts of nature and the productions of skill, no one could wish or expect that the commerce between the two kingdoms should remain in its original condition. There were, indeed, he argued, but two possible systems for countries situated in relation to each other, like England and Ireland: one of these was to render the smaller completely subordinate and subservient to the greater; and the other was to allow to each a just participation of advantages. This system of equality, however, in which there was to be a community of benefits, he said, demanded likewise a community of burdens. Hitherto there had been gratuitous surrenders of advantages, without looking to the slightest compensation; in which respect his system differed from those of his predecessors, his being founded on a plan of reciprocal benefits. Pitt then proceeded to explain his system, as contained in the resolutions transmitted from Ireland, and which consisted of these three general heads; first, he proposed that all foreign articles imported directly into Great Britain, should hereafter be importable under suitable provisions through the medium of Ireland; secondly, that the produce or manufacture of either country should be importable into the other, under a proper regulation of countervailing duties, drawbacks, and bounties; and thirdly, that Ireland, in return for these bounties, should contribute to the expense of maintaining the colonies, and protecting the commerce of the empire; her contribution being of such a nature as to keep pace with the gain derived from the new system. Having thus stated the nature of his plan, Pitt moved a preliminary resolution “for finally adjusting the commercial intercourse between the two kingdoms; admitting Ireland to a participation in the commercial advantages of England, and securing in return a permanent aid from that country, in the protection of the commercial interests of the empire.” The consideration of this subject was deferred for a week, in order to give time for the reception of accounts and estimates; and it was intimated that a further delay would be acceded to if there should be a sufficient reason for its proposal.

At first, the vastness of this plan seemed to keep the public mind in a state of suspense. For nearly a month, indeed, after its introduction, no indications of serious or determined opposition were discernible, although Fox, when the subject was first started, pointed out many objections to its provisions. Endeavours, however, were soon made by the opponents of Pitt’s administration to convince the public that the mercantile and manufacturing interests of England were intended to be sacrificed to those of Ireland; and at length great apprehensions and jealousies were created in

the commercial world. Petition after petition was presented against it; every one being led into the belief that Pitt's bill would ruin his own particular branch of trade. So great was the outcry raised against it, that the house resolved to examine the merchants and manufacturers at their own bar; and two months were occupied in hearing evidence on the subject. In the end, the anti-liberal feeling which prevailed compelled Pitt to subjoin a variety of restrictive clauses, binding Ireland to adopt whatever navigation laws might be hereafter enacted by the British parliament; prohibiting the importation of any West Indian commodities, not the produce of our own colonies, into Ireland, or thence into Great Britain; and forbidding Ireland to trade to any country beyond the Cape of Good Hope and the Straits of Magellen, so long as the charter of the East India Company should be in existence. The bill, with even these restrictions, did not pass without great opposition and warm discussions; some members maintaining that Pitt was giving too little, and others too much to the sister kingdom. It was carried up to the lords on the 30th of May, and various amendments were there made, which were subsequently adopted by the commons; and on the 29th of July an address was presented to the king by both houses, acquainting his majesty with the steps which had been taken in this affair: adding, that "it remained for the parliament of Ireland to judge of the conditions, according to their wisdom and discretion, as well as of all other parts of the settlement proposed to be established by mutual consent." Parliament now adjourned to a distant period; and on the 30th of September it was prorogued by royal proclamation.

In Ireland, Pitt's bill was doomed to meet with a more powerful opposition than it had met with in England. This opposition arose from the restrictive clauses which the minister had been compelled, by the clamour of the merchants and manufacturers, to introduce. Thus the provision respecting the navigation laws was considered an infringement on the legislative independence of Ireland; while the appropriation of the surplus hereditary revenue, and the prohibition of trade to the East Indies, were represented as reducing the country to a state of slavery. All the alterations and additions were, indeed, denounced by the Irish people; and numerous petitions were presented against the bill. The strong feeling which existed against it was exhibited in the Irish parliament, when, on the 12th of August, Mr. Orde, the secretary of the lord-lieutenant, moved for leave to bring in a corresponding bill. This motion was carried; but it was only by am majority of nineteen, which was equivalent to a defeat; and a few days afterwards, when the secretary moved the first reading and printing of the bill, he declared that he should proceed no further with it during the present session. The failure of this plan was a severe mortification to Pitt, who had laboured for nearly twelve months in perfecting it as far as its complicated nature would allow; but he looked forward with great confidence to a change of sentiment, which he anticipated would take place at no very distant period. Had Ireland accepted it, she might have avoided many of those evils which she was subsequently called upon to endure; for it would have prepared the way for the great measure of the union, which, when it took place, was attended with much corruption and violence. But it was the tendency which the bill had to effect or bring about this consummation, that chiefly gave rise to the long and loud outcry against it. Grattan denominated it "an incipient and creeping union," in which light it was looked upon, and hence abhorred,

by the Irish people. On its abandonment great joy was exhibited in Ireland; public illuminations were held in all the populous towns, as though the people had obtained some great victory. Thus this bill, which was originally intended to communicate solid and lasting advantages to both countries, had the effect of rousing commercial jealousies, awakening national prejudices, and of greatly disturbing the public tranquillity; a singular fate, and one which shows the folly and the madness of the bad passions of human nature.

{GEORGE III. 1784–1786}

CONTINENTAL AFFAIRS.

At this time Holland was suffering greatly from the effects of the American war. Its finances were embarrassed; its colonies were, for the most part, in the hands of the French; and the country was torn to pieces by intestine divisions. Encouraged by these circumstances, their neighbours and rivals, the Belgians, sought to make Ostend the centre of a great trade, and a place of export and import to and from the East Indies. Seeing their helpless condition, indeed, the Emperor Joseph threatened the very existence of the United Provinces as an independent nation. Ever since the conclusion of the war of succession, the fortresses of the Austrian Netherlands had been deposited in the hands of the Dutch, and garrisoned by them, for the double purpose of defending the Netherlands and Holland, and of forming a bulwark against the inroads of the French. These were secured to them by the barrier treaty; but as early as the year 1781, the Emperor Joseph had determined to do away with this treaty, and to take possession of these fortresses; alleging that the Dutch misapplied the money which he was bound to pay for their support; that they had shamefully surrendered some in the war of 1741, and were allowing the rest to fall into decay; and that they left thin and defective garrisons in them. Accordingly, when the Dutch had committed a sort of political suicide, by sacrificing their old alliance with England, and uniting their forces with those of the House of Bourbon in defence of the Americans, the Emperor Joseph, who was the only real guardian of the barrier treaty, demanded precise accounts of the revenues of the barrier, and of the sums expended on the fortifications. This demand was accompanied with threats; and the States-general, yielding to necessity, withdrew the Dutch garrisons from the barrier; and Joseph began to dismantle the fortresses and sell the materials. He had scarcely begun this work, when the States-general felt great apprehensions for the frontiers of their own provinces; and measures were adopted for putting their own fortresses along the Scheldt into a state of defence. At the same time, the people of Holland were furiously excited by these events; and the Orange party pointed to the open barrier and the rising port of Ostend, as proofs of the mischiefs brought by the French party upon the country in renouncing the alliance with Great Britain. Neither the return of peace with England nor the mediation of Frederic the Great of Prussia could allay the animosities existing between the two parties; and encouraged by them, the Emperor Joseph advanced sundry new claims, and assumed a tone of haughty dictation towards the States-general. Thus he claimed possession and sovereignty to the city and country of Maestricht, and the free navigation of the

Scheldt; the latter of which claims was made in order to re-elevate Antwerp to her ancient commercial importance. The States-general, alarmed at his menacing attitude, during the year 1784, sent two plenipotentiaries to Brussels, in order to treat with the emperor's agents for an amicable arrangement; but the very night after their arrival some Austrian troops entered the territories of the Dutch republic, and took possession of Fort Lillo; while others crossed the frontiers at another point, and pulled down the Dutch flag from the custom-house. The Dutch were alarmed and enraged at these aggressions; and troops were ordered to Maestricht and to the different garrisons of the Scheldt, in order to protect them from the enemy. Fresh disputes, however, arose between the states and the stadtholder concerning the rights, or the limits of their respective powers, so that the movement of these troops was greatly retarded. The only refuge which the Dutch had seemed to be in the French; and they implored the mediation of Louis XVI. between them and the emperor, who was his wife's brother. Louis made a favourable reply to this request, but in the mean time the breach had become wider. Finding that the navigation of the Scheldt was not readily conceded, the emperor Joseph was resolved to bring the question to issue. A vessel, manned by Flemings, was dispatched by him down that river, with orders to pass the Dutch fort at New Lillo, and not to lower its flag or submit to the search of the guard-ship stationed there, except by compulsion. This vessel was allowed to pass, but a similar experiment was afterwards made, and the Dutch this time fired a gun over her, and sent officers on board to make the search. The emperor now insisted upon his right to the sovereignty of the whole of the Scheldt, from Antwerp to the sea, and he further claimed a free navigation and uninterrupted commerce to and in both the East and West Indies. At the same time, Joseph prepared two armed vessels to assert the right claimed in the Scheldt, and to provoke an open act of hostility. These vessels were to proceed, one from Antwerp to the sea, and the other from the sea to Antwerp, and the vessel that descended was attacked by a Dutch armed cutter, and fell into the hands of the Dutch. War now seemed inevitable. On hearing of this event, the emperor recalled his ambassador from the Hague, broke up the negociations at Brussels, and marched an army of 60,000 men from the Austrian dominions to the Netherlands This army did not arrive at its place of destination however, till it was winter, and as the Dutch had broken down a dyke, in order to prevent its advance, instead of beginning hostilities on their arrival, the Austrians went into winter-quarters. During the winter, little or nothing was done, either in war or negociation, and when the spring arrived, it became known that the emperor was negociating for the exchange of the sovereignty of the Low Countries for the electorate of Bavaria. In this scheme he was favoured by his great ally, the Czarina Catherine, but Frederic the Great of Prussia immediately formed a confederation among the princes of Germany, including the King of England, as elector of Hanover, to oppose, and defeat it. For some time the emperor seemed resolved to persevere in his designs, and to brave this hostile league; but he soon formed other projects, and finding that he could not rely on the assistance of the Czarina of Russia, and that the Bavarians were hostile to his rule, he forewent his intention. In the meantime, the Dutch had concluded a commercial league and close alliance with France, and, soon after, the French ministers went actively to work as mediators between them and the emperor. Négociations were carried on during the

summer, and in September, after the deputies of the States-General had apologised for the insult offered to the emperor’s flag, when he attempted to force the navigation of the Scheldt, preliminary articles were signed at Paris. A definitive treaty was signed in November, by which the emperor’s sovereignty over that river, from Antwerp to the limits of Saftingen in Flanders was recognized; but from that point to the sea, it was guaranteed to the States. The free navigation of Antwerp was thus frustrated. The emperor also renounced his claims to Maestricht, but the States agreed to surrender the forts Lillo and Liefkenshoek, and to make compensation in money to his imperial majesty for giving up Maestricht, and to his Netherland subjects for the damages they had sustained by the defensive inundations. Several mutual concessions were also made of villages and districts, so as to give each party a better frontier, and it was agreed that neither of them should possess forts or batteries within cannon shot of the limits of each other’s territories. Two days after this treaty was signed, the compact between the French and Dutch was concluded, and it was ratified on Christmas day. Thus this quarrel, which threatened at one time to lead to another European war, was happily settled; but Holland was still rent to pieces by faction.

CHAPTER XV.

{GEORGE III. 1786–1787}

Meeting of Parliament..... Bill for the Fortification of the Dock-yards it Portsmouth and Plymouth..... Pitt’s Financial Measures..... Debates on India, etc..... A retrospective View of Indian Affairs..... Attempt on the King’s Life..... Treaties with France and Spain..... Affairs of the Prince of Wales.

{A.D. 1786}

MEETING OF PARLIAMENT.

Parliament reassembled on the 24th of January. In his speech, the king expressed great satisfaction at the prosperous condition of the country, in the extension of trade, the improvement of revenue, and the increase of public credit, and said that he relied on their continued zeal and industry for the further advancement of these important interests. His majesty also informed the houses that the disputes which had threatened the peace of Europe, had been brought to an amicable conclusion, and that he continued to receive friendly assurances from foreign powers; but at the same time, he recommended particular attention to our naval strength. He added,—“But above all let me recommend to your attention the reduction of the national debt.”

In the debate which followed upon the address, Fox condemned the whole of our recent foreign policy. Ministers were reproached by him for not cultivating continental alliances, and for their negligence in all their foreign negociations. It was owing, he said, to their criminal misconduct, that the House of Bourbon had been

enabled to conclude their advantageous compact with Holland, and he maintained that great danger was to be apprehended from the union of three such maritime powers as France, Spain, and Holland, in a confederacy against England. Fox also attempted to prove that the accession of his majesty to the Germanic confederation, as Elector of Hanover, would give mortal offence to the Emperor Joseph, and would indispose him to an alliance with Great Britain in the event of a future war. He argued, that it was our interest to conciliate and captivate Austria, as the only power in Europe able to keep France in awe. Fox next adverted to a favourable opportunity for an alliance with Russia, which had been lost, and then condemned a commercial treaty, which government had begun to negociate with France. The experience of past ages, he said, proved that England always prospered in proportion as she had relinquished her commercial connexions with that country. He concluded his speech with making some strictures on the Irish propositions and the India Bill. Pitt replied in a cold sarcastic tone, and the address was carried without a division.

BILL FOR THE FORTIFICATION OF THE DOCK-YARDS AT PORTSMOUTH AND PLYMOUTH.

On the 27th of February, Pitt called the attention of the house to a plan, which originated with the Duke of Richmond, for the fortification of the dock-yards at Portsmouth and Plymouth. In the preceding session, the commons had expressed their unwillingness to vote any money for these objects, until they were made acquainted with the merits of the plan by some competent persons; and in consequence of this intimation, his majesty had appointed a committee of military and naval officers, with the Duke of Richmond at then head, to investigate the plan, and to send in a report upon it, with an estimate of the cost. Pitt had laid this estimate, which amounted to £760,000 before the house on the 10th of February, with the ordinary ordnance estimates, thinking that the house would be disposed to consider it as a mere collateral question. The report was kept out of sight, but General Burgoyne, who had been one of the board of officers to investigate the plan, called for it; alleging that it did not wholly sanction the measure. On a subsequent day, Sheridan, in addition to the demand made by Burgoyne, moved “for a copy of the appointment of the board of naval officers, and of such parts of their instructions, and of their report, as his majesty’s discretion might deem proper to be made public with perfect consistency to the safety of the state.” In consequence of these demands, Pitt found himself compelled to produce the papers, and in laying them upon the table, he introduced the Duke of Richmond’s measure in the form of a general resolution. He moved, that “it appeared to the house, that to provide for securing the dock-yards at Portsmouth and Plymouth, by a system of fortification, founded on the most economical principles, was an essential object for the safety of the state; intimately connected with the general defence of the kingdom; and necessary for enabling the fleet to act with full vigour and effect for the protection of commerce, the support of our distant possessions, and the prosecution of offensive operations in any future war.” In his speech Pitt attempted to prove that the fortification of Portsmouth and Plymouth was a measure of absolute necessity; that the duke’s plan was the best that could be devised; and that these fortifications would give a greater scope to the operations of our fleets, and have a direct tendency to diminish the standing army.

The arguments were powerfully controverted by members in opposition, among the most distinguished of which was Sheridan, who argued, that the plan was, in itself and its consequences, both dangerous and unconstitutional, and that the report itself did not authorise or favour the plan. Sheridan remarked:—“These strongholds maintained by numerous and disciplined garrisons, will afford tenfold means of curbing and subduing the country more than would arise from doubling the present army establishment. Can any one imagine that the system now recommended will end with Portsmouth and Plymouth? May we not figure to ourselves the same board of officers, acting under the same instructions, and deliberating with the same data, while they take a circuit round the coasts. The reasons which justify this measure in the present instance, will apply to every port in the kingdom, which is sufficiently important to require defence. But the whole plan proceeds on two suppositions extremely improbable; first, that we shall be so inferior on our own seas, as to permit an enemy to land; secondly, that if they do land, they will choose to attack the only places which we have fortified. If such be our defence, there must be a circle of fortresses round our shores; but the safety of England rests on the courage and enterprise of its people, not on ramparts and fortifications. And after all the plan is unauthorised by the report of the board; the opinion of naval officers has been withheld; and the opinion of military officers is founded on hypothetical or conditional suggestions, and on such data as were proposed to them, for the truth or probability of which they refuse to make themselves responsible.” In the debates, both Sheridan and all the orators on his side, treated the Duke of Richmond as a renegade, and made the whole matter a mere party question, and from this cause Pitt was doomed to suffer a defeat. Upon a division there was an equal number of ayes and noes, and when the speaker was called upon to give his vote, he gave it on the side of opposition; the project therefore fell to the ground.

PITT’S FINANCIAL MEASURES.

On the 7th of March, Pitt moved for the appointment of a select committee of nine persons, for the purpose of reporting on the state of the public revenue and expenditure. The report of this committee was highly satisfactory. The amount of the revenue for the current year was estimated at £15,397,000, while the permanent expenditure and the expences of the peace establishment would only require £14,478,000, thereby leaving a surplus of more than £900,000. In consequence of this, Pitt, on the 29th of March, brought under consideration the national debt and his new sinking-fund. He thought that the surplus might be increased to one million, without burthening the people, and he moved that such a sum should be annually granted to commissioners, to be by them applied to the purchase of stock towards discharging the public debt of the country. The new taxes which he proposed, in order to raise the surplus to one million, were an additional duty on ardent spirits, and new duties on certain kinds of timber and perfumery. In making this proposition Pitt showed that he was full of hope for the future. He calculated that the accumulated compound interest of the one million so appropriated, added to the annuities which would fall into the fund, would, in the course of twenty-eight years, leave a surplus of four millions per annum, to be applied, if necessary, to the exigencies of the state. His entire conviction was, indeed, that this new sinking-fund

would rapidly reduce and eventually discharge the whole of our enormous national debt! The commissioners he proposed under this act, were the speaker of the house of commons, the chancellor of the exchequer, the master of the rolls, the governor and deputy-governor of the bank of England, and the accountant-general in chancery. The speech which Pitt uttered upon this occasion was so convincing to the house, that all but a few members ventured to enter the fairy car with him, and those who dissented from his views were looked upon as little better than madmen. Among those who dissented were Burke, Fox, Sheridan, and Sir Grey Cooper, who endeavoured to show that the premier's hopes were visionary. Sheridan, indeed, asserted that there neither was nor could be any surplus, and he said, that the only means which suggested themselves to him were a loan of a million every year. "The right honourable gentleman," he wittily remarked, "might say with the person in the comedy, 'If you wont lend me the money, how can I pay you?'" In conclusion, Sheridan moved a long string of objections, which were all negatived without a division; but on the day for reconsidering the report of the committee on the bill, an amendment, as moved by Fox, was adopted, to the effect, "that whenever a new loan should hereafter be made, the commissioners should be empowered to accept the loan, or such proportion of it as should be equal to the cash in their hands; the interest and douceur annexed to which should be applied to the purposes of the sinking-fund." Pitt declared this amendment to be an auspicious omen of the ultimate success of the plan; and that its propriety and necessity were so obvious as to overcome the spirit, and prejudice of party, and to create an unanimity in persons, who, more from accident than inclination, were so frequently of different-opinions. With Fox's amendment the bill passed both houses without a dissentient voice, and on the 26th of May his majesty gave his assent to it in person.

In pursuit of his great plan of financial reform, Pitt next turned his attention to the frauds committed on the revenue, in the article of wine. At this time large quantities of wine were smuggled into the country, and a spurious liquor was made and sold at home under that name. To prevent these evils, on the 22nd of May, Pitt presented a bill for transferring certain duties on wines from the customs to the excise. This transfer was made, after several divisions, despite the exertions of Fox to render the measure unpopular, and the obstruction given to it by those in the trade, as well as by others, who urged the difficulty of applying the excise laws to wine, and the impolicy of extending those laws beyond their existing limits. It is probable that there were some who conceived that this measure would tend to render the minister very unpopular; and it must be confessed that the step was a very hazardous one for him to take. Englishmen had never looked with complacency upon the intrusions and interference of excisemen, and there was still a strong national feeling against any extension of the excise laws. When Sir Robert Walpole, indeed, brought in a bill which had a tendency to extend these laws, although he was at the time he introduced it at the very height of his power, it nearly cost him his place. But the principles of commerce and taxation were now better understood, than they were in the days of Walpole, and the well-disposed among the people felt convinced that the state of the revenue required the adoption of every measure tending to its improvement, whence Pitt triumphed. The bill was followed by another, which had

reference to frauds committed on the customs, by false accounts of imported goods, and the re-landing clandestinely such as had received drawbacks at their exportation. To prevent such practices, Pitt brought in, and carried through parliament, M'hat was called "The Manifest Act," which enacted that no article should be imported into Great Britain before the master of the vessel had delivered to the custom-house officer a manifest, or declaration, stating the place where they were laden, with a full description of them, verified on oath; that no vessel should sail from any British port, till the owner of the vessel had given a bond for two hundred pounds, that he would not re-land any part of its cargo illegally; and that no goods, entitled to drawback, should be put on board for exportation, except by duly licensed persons.

At a subsequent date Pitt endeavoured to ascertain whether the crown-lands could not be rendered more productive. To this end, and in consequence of a message from the king, he moved, in the house of commons, for the appointment of commissioners to inquire into the state of woods, forests, and land revenues belonging to the crown, as well as to sell or alienate fee-farm and other unimprovable rents. This bill passed the commons, _netn. con._, after the adoption of certain amendments, moved by Mr. Jollife, to protect title-deeds, and to bind the commissioners to report their proceedings in parliament. In the house of lords, however, it met with the stern opposition of Lord Loughborough, who objected to the bill because it did not agree with the king's message; because it repealed two old acts, and created a new power for the sale of those lands, without any exception of the rents reserved in the former acts, for divers persons, and for other purposes mentioned in those acts; and because the powers granted to the commissioners were dangerous to the people and derogatory to the honour of the crown. Notwithstanding this opposition, the bill was ultimately carried and received the royal assent.

In the midst of his exertions for financial reform, and before the Sinking-fund Bill passed into a law, a message was delivered to the house from the king, by the minister, stating, that it gave him great concern to inform the commons that it had not been possible to confine the expenses of the civil list within the annual sum of £850,000, now applicable to that purpose. This message was the more remarkable as, in 1782, when Pitt was chancellor of the exchequer, the king, in his speech from the throne, had stated that he had so regulated his establishments, that his expenses should not in future exceed his income. The sum now required to free his majesty from debt, contracted partly before and partly since that period, was £210,000; which sum, after considerable opposition, in the course of which the necessity of economy was strongly enforced, was ultimately voted.

DEBATES ON INDIA, ETC.

In consequence of the commutation tax, and the preventive measures taken against smuggling, the sale of tea at the East India-house had by this time increased nearly threefold. This enlarged trade, connected with other circumstances, induced the company to apply to parliament for an act, empowering them to make an addition to their funds. A petition to this effect was presented on the 25th of May, and Pitt proposed and carried a bill, which enabled the company to add £800,000 to their stock, and also to sell a surplus of £36,000 a year, received from the exchequer, over

and above the annuities which they paid to their creditors, which would produce a sum equal to that which they were empowered to add to their stock. Previous to this, in consequence of intelligence from India, Pitt felt called upon to adopt some plan for amending the act of 1784. A bill was brought in for this purpose by Mr. Dundas, which bill conferred on the governor-general a privilege of acting in cases of importance, without the consent of the other members of the council; enabled the directors to unite the offices of commander-in-chief and governor-general in the same person; rendered not only the present, but the farmer servants of the company, whether resident in India or not, capable of being appointed to seats in the respective councils; empowered the governors of presidencies to nominate temporary successors to members of council who might die or vacate their office; altered a clause in the former bill, which compelled the company's servants to rise by gradation; repealed another, which required from them a disclosure of their property, on oath; and made several changes in the court of judicature and mode of trial for crimes and misdemeanors in India. This bill was strongly opposed by Fox and Burke, with other members of opposition; but, after several debates and divisions, it passed both houses, and received the royal assent.

The only other business of importance brought under notice during this session, was the impeachment of Warren Hastings. This will be noticed in the following section, where we propose to take a retrospective view of the progress of the English arms, and our policy in that part of the world. After much discussion on this subject which was left undecided, on the 11th of July parliament was prorogued.

{GEORGE III. 1786–1787}

A RETROSPECTIVE VIEW OF INDIAN AFFAIRS.

Hitherto, to avoid embarrassing the narrative of the American war, no notice has been taken in this "Continuation" of the progress of the British arms in India. The last event recorded in the history, was the capture of Pondicherry by Colonel Coote, by which event the French power in India was destroyed. An attempt, however, was made to revive this power in the province of Bengal, About the middle of the year 1760, the year in which Pondicherry was captured, an adventurer, named Law, nephew of the celebrated projector, at the head of some French fugitives, persuaded the Mogul, Shah Zada, who had lately sealed himself on his father's throne, to invade this province. Law had previously rendered some important services to the mogul against some native princes who had opposed his elevation; and it was thought that nothing could resist the progress of his arms. With his French fugitives and 80,000 natives, Law made incursions into the province of Bahar, which province suffered so severely that Major Carnac was sent by the council of the East India Company to assist the rajah Ramnarrain in restraining his ravages. It was in January, 1761, when Carnac advanced with 20,000 Asiatic allies on this service, and in three days he arrived at Gyah Maunpore, where the enemy was encamped. An engagement took place soon after his arrival, and both the mogul and his rash adviser, Law, were taken prisoners. Law was treated by his captors in a manner which his bravery on the field of battle demanded, and which greatly exalted them in the estimation of the Asiatics.

The fate of Count Lally, who had bravely defended Pondicherry against Colonel Coote, was very different from that of Law. Though he had been the most active partisan that ever attached himself to the French cause in India, yet he was doomed, on his arrival in France, to suffer both indignities and death. His sufferings are thus described by Mr. Mill:— “By the feeble measures of a weak and defective government, a series of disasters, during some preceding years, had fallen on France; and a strong sentiment of disapprobation prevailed in the nation against the hands by which the machine of government was conducted. When the loss of the boasted acquisitions of the nation in India was reported, the public discontent was fanned into a flame, and the ministry were far from easy with regard to the shock which it might give to the structure of their power. Anything, therefore, was to be done which might have the effect of averting their danger; and, fortunately for them, many persons arrived from India, boiling with resentment against Lally, and pouring out the most bitter accusations. Fortunately for them, likewise, the public, swayed as usual by first appearances, and attaching the blame to the man who had the more immediate guidance of the affairs on which ruin had come, appeared abundantly disposed to overlook the ministry in their condemnation of Lally. The popular indignation was carefully cultivated; and by one of those acts of imposture and villany, of which the history of ministers in all the countries of Europe affords no lack of examples, it was resolved to raise a screen between the ministry and popular hatred by the cruel and disgraceful destruction of Lally. On his arrival in France he was thrown into the Bastille, and this place being deemed too honourable for him, he was subsequently thrown into a common prison. An accusation, consisting of vague or frivolous imputations, was preferred against him; and nothing whatever was proved, except that his conduct did not come up to the very perfection of prudence and wisdom, and that he had displayed the greatest ardour in the service, the greatest disinterestedness, fidelity, and perseverance, with no common share of military talent and of mental resources. The grand tribunal of the nation, the parliament of Paris, found no difficulty in seconding the wishes of the ministry, and the artificial cry of the day, by condemning him to an ignominious death. Lally, confident in his innocence, had never once anticipated the possibility of any other sentence than that of an honourable acquittal; and when it was read to him in his dungeon, he was thrown into an agony of surprise and indignation, and taking up a pair of compasses with which he had been sketching a chart of the Coromandel coast, he struck at his proud, indignant heart; but his arm was held by one of the functionaries in attendance. With indecent precipitation he was executed on that very day. He was dragged through the streets of Paris in a dung-cart, and, lest he should address the people, a gag was stuffed into his mouth, so large as to project beyond his lips. Voltaire, who had already signalized his pen by some memorable interpositions in favour of justice and the oppressed, exerted himself to expose, in a clear light, the real circumstances of this fearful transaction, which Mr. Orme scruples not to call ‘a murder committed by the sword of justice.’”

In the meantime Colonel Clive, who had deposed the Surajah Dowla, Nabob of Bengal, Bahar, and Orissa, and had raised Meer Jaffier Ali Khan to that dignity, as recorded in a previous page in Smollet’s division of this history, and who had

rendered other important services to the British cause in India, had arrived in England, where he was received with all honour. He was raised to the Irish peerage by the title of Baron Clive of Plaissey—the name of the place where he had defeated the nabob—and was flattered by the prospect of a speedy elevation to the English peerage, which would give him a seat in the British house of peers. While in England he was involved in a dispute with the company on the Jaghire rents, which had been conferred on him by Meer Jaffier, whom he had raised to the throne of Bengal, Bahar, and Orissa. His most active opponent was Mr. Sulivan, but Clive eventually gained his point; and not only were the Jaghire rents confirmed to him for ten years, if he should live that period, but he was nominated governor and commander-in-chief of the British possessions in Bengal, with the express understanding that no other officer, of whatever rank, should have the power of interfering with his command.

Clive returned to India, where he arrived in May, 1705. On his return he found everything in a complete state of confusion and disorganization. Before his departure for Calcutta, the seat of his government, it was rumoured that the Shah Zada had collected an army, and was advancing against Patna, which was under the jurisdiction of the Hindu governor, Itamnarrain. The Shah Zada pretended to take up arms against Ghazee-u-Deen, the vizier and master at Delhi, and Ghazee-u-Deen, enraged thereat, in a fit of desperation murdered the Great Mogul. After this tragical event the Shah Zada took the state and title of emperor, and conferred the office of vizier upon Soujah-Dowla, the powerful ruler of Oude. The new emperor assumed the name of Shah-Alum, or “King of the World,” and he had no sooner ascended the throne than he advanced against Patna. Ramnarrain was defeated, but Colonel Calliaud soon after arrived on the scene of action, with about three hundred English and one thousand sepoys, and Shah-Alum was routed, and compelled to take refuge in flight. The young emperor, however, being joined by Mr. Law, with his small body of French, and by the sub-governor of Purneah, soon returned to Patna; and the town being almost wholly destitute of troops, he would have captured it, had not Captain Knox appeared to its relief. The besiegers were driven, by the gallantry of Knox, from their works, and a few days after he completely defeated the sub-governor of Purneah, who fled northwards for his life. He was followed by Colonel Calliaud, with his English soldiers and sepoys; the latter of whom were commanded by Meeran Calliaud, under the belief that he was carrying all the treasures of Purneah with him, pursued the sub-governor hotly; but on the fourth day of the pursuit a tremendous storm occurred, in which Meeran was struck dead with lightning, and the sepoys, from this cause, becoming unmanageable, he was obliged to return to Patna. Meeran’s people hastened to Moorshedabad, where, in order to obtain payment of their arrears, they surrounded the palace, and threatened the life of the nabob Meer Jaffier. Other bodies of men, also, about the same time, took up arms against Meer Jaffier: and to complete his misfortunes, as Mr. Vansittart, the new governor at Calcutta, found the treasury empty, and the English troops and sepoys almost mutinous for want of pay, he concluded a treaty with Meer Cassim Ali, son-in-law to Meer Jaffier and general of his army, engaging that he should be invested with full power as Nabob of Bengal, Bahar, and Orissa, on condition that he made over the fruitful provinces of Burdwan, Midnapore, and Chittagong to the company. Meer

Jaffier was compelled to resign, with permission to retire to Calcutta, and Meer Cossim Ali was forthwith proclaimed nabob. Meer Cossim procured six or seven lacs of rupees, which he sent to Calcutta, and made professions of dependence on the council; but he soon exhibited signs of a refractory spirit; and Mr. Vansittart, with the other members of the council, found that they had made a mistake, when they imagined that he would suit their purpose better than Meer Jaffier.

It has been seen, that in the month of January, 1761, Major Carnac, who had succeeded Colonel Calliaud in the command of the company's troops in Bahar, defeated the emperor Shah Alum, and took Law, on whom he placed his chief hopes, prisoner. The young emperor retreated towards Delhi, whence he sent Meer Cossim Ali his investiture as Nabob of Bengal, Bahar, and Orissa; and likewise offers to the English of the dewannee, or receivership of these provinces, if they would send an army into central India to secure him in possession of Delhi, and of a throne that had been tottering for generations. Want of money prevented the council from accepting these offers, and Meer Cossim had no more to give them. Meer Cossim had, indeed, become as poor as Meer Jaffier had been when he was deposed, and he cast his eyes on the wealth of Ramnarrain, the celebrated Governor of Patna, At first, Mr. Vansittart instructed Major Carnac to protect Ramnarrain, but he soon after listened to the suggestions and promises of Meer Cossim; and in order to aid his rapacious designs, Colonel Coote, the conqueror of Pondicherry, was sent to supersede Major Carnac, at Patna; he being averse to the desertion of a governor who had received so many pledges from, and had rendered many services to, the English. Colonel Coote, however, had as high a sense of honour as Major Carnac, and Mr. Vansittart, discovering this, recalled him, and thus left Ramnarrain to the mercy of Meer Cossim. Ramnarrain was in consequence thrown into prison, and his house was broken open and plundered, while his servants were put to the torture, in order to make them confess where his treasures, which chiefly existed in the imagination of his enemies, were deposited. This base act on the part of the council of the company met with its reward. All friendly correspondence between the English and native nobility now ceased, and Meer Cossim had offers of services and money made him on every hand, if he would consent to resist the foreigners. Encouraged by this circumstance, and conceiving that he would soon be able to defy the English authority, Meer Cossim complained of the abuses of the dustucks, or permits, by which he had been recently impoverished; and when no notice was taken of his complaints, he ventured to stop and search the company's boats, as they sailed up the Ganges. Nothing was done to prevent his conduct; and growing more bold by impunity, Meer Cossim at length seized two boats that were proceeding to Patna with arms, and made preparation for getting that place into his own hands. Apprised of this, the council gave directions to Mr. Ellis, the chief at Patna, to anticipate Meer Cossim's designs by seizing upon the citadel. This was done, and Meer Cossim, enraged thereat, murdered Mr. Amyatt, who had formerly been chief at Patna, with two Hindu bankers attached to the English interests, and then marched upon the town with a great army, of which he took possession. The English troops at Patna fled by boats up the Ganges to Chuprah, where they were surrounded, and taken prisoners. About the same time, also, the troops of Meer Cossim attacked and plundered the factory of Cossimbuzar, where

likewise he captured many English.

While these events were transpiring, the council at Calcutta entered into new arrangements with Meer Jaffier, in order to restore him to the musuud or throne of Bengal. Meer Jaffier not only confirmed the grants of territory made by Meer Cossim, but also granted an exemption to the company's servants from all search, and from all duties, except upon salt, and engaged to pay to the company thirty lacs of rupees for the expenses of the war, and to maintain an army of 24,000 men at his own charge. Having done this Meer Jaffier issued his mandates to the chiefs, and to the cities of the three provinces, and then joined the English, who were advancing upon Moorshedabad. In their route they were met by three of Meer Cossim's generals, whom they defeated, and arriving at Moorshedabad they took possession of it without opposition. Another battle was soon after fought with the troops of Meer Cossim, on the plain of Geriah, when Meer Jaffier and his English allies were again victorious. Those of Meer Cossim's troops, who escaped the slaughter, fled to an intrenched camp at Odowa, which, after three weeks, was carried, and then the whole army of the nabob was scattered. Meer Cossim fled with a few troops towards Patna, and the English laid siege to and captured Monghir, recently made his capital in preference to Moorshedabad, the old residence of the nabobs of Bengal. On hearing of the capture of Monghir, Meer Cossim ordered the execution of all the English who had been taken at Patna, and one hundred and fifty, with Mr. Ellis their chief, were massacred in cold blood. Patna was soon after taken by the English, and in the meantime Meer Cossim had taken refuge at Allahabad, with Soujah Dowla, the powerful ruler of Oude. On his arrival at Allahabad, Shah Alum was with his vizier, and the three Indian rulers marched with a large army to Benares, and encamped not many miles from the English. Major Carnac, who had by this time arrived to take the command, thought it prudent to retreat to Patna; the more so, because a mutiny had broken out in his own camp. The major was attacked under the walls of Patna by the confederated Indians; but after a severe contest, he defeated his assailants with great loss. Soujah Dowla now opened a correspondence with Meer Jaffier, and offered to support him in Bengal and Orissa, if he would cede the country of Bahar to Oude; and about the same time Shah Alum offered to abandon both Soujah Dowla and Meer Cossim, for English protection and alliance. These negociations, however, were broken off; and in the month of October, 1764, Major Munro, who had recently assumed the command of the army at Patna, led his forces against the enemy, which entirely broke the power of Soujah Dowla, the only Indian ruler that the English had to fear. Major Munro was now empowered to treat with Shah Alum; and a treaty was concluded with him, by which it was agreed that the English should be put into the possession of the country of Gazzipore, with all the rest of the territory of Bui want Sing, and that Shah Alum should be put into possession of the city of Allahabad, and the whole of the dominions of Soujah Dowla. Thus deserted by the emperor, Soujah Dowla applied to Ghazee-u-Deen, vizier and murderer of Shah Alum's father, and this chief descended into Oude with a great army of Mahratta horse. A battle was fought in the month of May, 1765, near Corah, when Major, now General Carnac, who again commanded the English forces, gained a great victory over the confederate army, and chased them across the river Jumna.

On the very day that General Carnac gained this victory, Clive arrived at Calcutta, with full powers to settle all disputes. Meer Jaffier had recently died, and one difficulty in the way was thereby removed. Clive set about his work in right good earnest. A few days after Soujah Dowla's defeat at Corah, that nabob having announced his intention of throwing himself upon the mercy of the English, repaired to the camp of General Carnac, by whom he was received with much distinction. On hearing of these events, Clive set off for Allahabad, to settle all disputes; and when he arrived, he decided that Shah Alum should rest satisfied with the possession of Allahabad and Corah, and that all the rest of Oude should be restored to Soujah Dowla, on conditions that he should oppose the Mahrattas and defend the frontiers of Bengal. On his part, Shah Alum, for the possession of Allahabad and Corah, granted the collection of the revenues in Bengal, Bahar, and Orissa to the English, in return for which he was to receive twenty-six lacs of rupees per annum, in addition to the revenues of Allahabad and Corah. The young emperor, moreover, confirmed the right of the company to all the territory which they possessed in any other part of India.

On the death of Meer Jaffier, the supreme council at Calcutta conferred the sovereignty on his youthful son, Nujeem-ul-Dowlah; at the same time appointing Mohammed Reza Khan, a naib subah, or sub-nabob, to manage the revenues and all other matters of government. On his arrival, however, Clive decided that Nujeem was not fit to rule, and he was soon compelled to retire on a pension of thirty-two lacs of rupees per annum. Having restored peace, Clive turned his attention to the correction of abuses; and for which he had full powers given him by the court of directors before he left England. But this was no easy task. Most of the members of the council at Calcutta had been partakers in the spoils and profits of the nefarious system which had been adopted in India; many of those servants who had been most oppressive and rapacious, were strong in their patronage in Leadenhall-street; and nearly every European in the country looked to India as prey, which they were to make the most of for themselves, without regarding the interests of those who should come after them, or of the company by whom they were employed. On commencing his reforms, many of the company's agents threatened and protested; and several, confident in their patronage at home, refused to act with or under him. But none of these things daunted Clive. He declared that if he could not find support at Calcutta, he would procure it elsewhere; and he actually sent for some civil servants from Madras, and turned the refractory out of their offices. Seeing his resolution, recourse was next had to flattery, entreaty, persuasion, and arguments, but all this failed to turn him aside from his purpose. By one fell stroke he put down the private trade and dangerous privileges of the company's servants, and he prohibited the extorting or receiving presents from the natives. At the same time Clive adopted measures, which might give the servants of the company a proper maintenance, and also an opportunity of acquiring fortunes by application and perseverance. The pay of the company's servants being miserably low, and altogether insufficient for their proper maintenance—a circumstance which doubtless had the effect of increasing their rapacity—as the monopoly of salt was now, by the pensioning off the young nabob, in the hands of the company, he appropriated it to the proper pay and support of the servants of all kinds, carefully dividing the proceeds according to a scale; and thus

gave every British functionary employed in the East the means of slowly but surely acquiring a competence. Having disposed of the affairs of the civil servants, Clive turned his attention to those of the military, his old companions in arms. And here he had greater difficulties than ever to contend with, for they were men who held the power of the sword in their hands.

Notwithstanding, the reduction of military expenses, which were rapidly absorbing the whole revenue of the country, required his attention, and he gave it without fear of the consequences. As long as the troops were employed by Meer Jaffier and Meer Cossim, these potentates, in order to cherish the goodwill of the officers, allowed them “double batta,” or double pay. The court of directors had long ago issued that “double batta” should be abolished, but Vansittart and his council had listened to the remonstrances of the army, and the order was left unregarded. But Clive was a bolder man than Vansittart, and he resolved that “double batta” should cease forthwith, except at Allahabad, where the troops were considered as being actually in the field. An order was issued to this effect, and the troops in Bengal were put upon the same footing as the troops on the Coromandel Coast, by whom no batta was drawn, except when actually marching or serving on the field of battle. The officers remonstrated, but it was to no purpose: the order was given, and it must be obeyed. On the appointed day the reduction took place, and, enraged thereby, two hundred English officers engaged in a conspiracy, binding themselves by an oath to secrecy, and to preserve, at the hazard of their lives, the life of any comrade that might be condemned by a court-martial. These officers, indeed, each bound themselves in a bond of £500 to throw up their commissions, unless “double batta” were restored; and finding that Clive was inexorable, they resigned. To increase the danger this conspiracy was formed at a time when the country was threatened with a new invasion by a Mahratta army. The officers, doubtless, supposed that Clive would be frightened out of his resolution, but they soon found that they had mistaken the force of his character. On hearing of the conspiracy, he exclaimed, “Such a spirit must, at all hazards, be suppressed at the birth,” and he wrote to the council, desiring them to write to Madras, in order that every officer and cadet that could be spared from that presidency should be held in readiness to embark for Bengal; and directing them to acquaint the presidency of Fort St. George with the mutiny, and with the approach of the Mahrattas. In his letter to the council he stated that the committee at Calcutta must adopt a resolution, that no officer now resigning should ever again hold a commission in the company’s service. At the same time, Clive sent directions to the commanding officers of all the divisions to find, if possible, the leaders; to arrest those who appeared most dangerous; and above all to secure the obedience of the sepoys and native commanders. He also gave commissions to several young men in the mercantile service; and when informed that a large sum of money was subscribed for the mutinous officers by gentlemen at Calcutta, in the civil service, he requested the council to take immediate steps for discovering and punishing those gentlemen. Having taken these preliminary steps, Clive quitted Moorshedabad, where he had been arranging matters of trade and finance, and fearlessly advanced with a small escort to Monghir, the scene of the mutiny. Before his arrival, the council had resolved that all resignations tendered should be accepted, and the officers tendering

them immediately sent down to Calcutta. Clive was the more incensed against them because he had recently given up £70,000 to form a fund for their invalids and widows; a gift which showed him to be their friend. He arrived at Monghir full of wrath against them, and having secured the attachment of the sepoys, by ordering them double pay for two months, in a short time the ringleaders were all arrested, tried, and cashiered. In the first heat of his passion he had threatened to have them all shot, but as legal doubts were entertained as to the powers granted by the Mutiny Act for the company's service, not one was sentenced to death. After they had been cashiered, nearly all who had joined in the conspiracy, begged with tears in their eyes, to be permitted to re-enter the service, and some were restored on condition of signing a contract to serve the company on its own terms for three years, and to give a year's notice of any intention to quit the service. The young officers were treated with great lenity, and when his indignation was cooled and the danger over, he scorned to take any revenge for personal wrongs and insults. The main cause of the mutiny was the gambling and dissipation which prevailed among the English officers, and Clive adopted several wise regulations to check these evils, and to restore the strictest discipline and subordination.

Lord Clive having completed his work of reformation, and restored peace to India, in January, 1767, left Calcutta for England. On accepting his commission he had declared that he wanted no more money, and that all he wished for was a thorough reform; which in the end would prove equally beneficial to the oppressed and the oppressor. And, notwithstanding the temptations to enrich himself, by which he was surrounded, Clive adhered to this resolution of self-abnegation. The servants of the company would have enabled him to treble his wealth, if he would have consented to connive at their misdoings; and the princes of India offered him money, and jewels, and diamonds in abundance, as the price of his assistance on their behalf; but, steady to his purpose, he refused the tempting offers. He returned a poorer man than when he went to India. And yet, notwithstanding his integrity of purpose, and although on his arrival he was hailed with acclamations by the court of directors, and was received with unusual regard by George III. and his consort Queen Charlotte, at a subsequent date, he was charged in the house of commons with mal-administration; and when this failed, his enemies brought him to trial before that tribunal for the events and deeds of his early life. So persecuted was he, and so maligned, that, though finally acquitted by the commons, his spirits sunk under it, and he died by his own hand in the forty-ninth year of his age.

The court of directors had left the abolition or confirmation of the select committee to Lord Clive's discretion, and before he returned to England he declared for its continuance; naming as members, Mr. Verelst, Mr. Cartier, Colonel Smyth, Mr. Sykes, and Mr. Beecher. Shortly after his return the court of directors resolved to send out to Calcutta three supervisors, to complete the work of reformation, and to put the revenues of Bengal under better management. These supervisors were Messrs. Vansittart, and Scrafton, and Colonel Forde, who took their departure in the Aurora, which is supposed to have foundered at sea with every soul on board, for it was never heard of after leaving the Cape of Good Hope. Subsequently the government of Bengal was left in the hands of Mr. Cartier; but in less than two years

it was notified, by the court of directors, to Mr. Warren Hastings, who had long been rising in their estimation, that he was nominated to the second council at Calcutta, and that as soon as Mr. Cartier retired, it was their wish that he should take upon himself the charge of the government of that presidency.

In the meantime the flames of war had been rekindled in the Carnatic by Hyder Ali, who became one of the most formidable opponents of the English in all India. Since his expedition to the neighbourhood of Pondicherry, as the ally of Mr. Lally, Hyder Ali had greatly increased his army. He had, in fact, deposed his benefactor and nominal master, the Rajah of Mysore, and had established himself on his throne. Moreover, Hyder Ali had conquered the rajahs and polygars of Sera, Balapoor, Gooty, Harponelly, Chitteldroog, Bednore, and Soonda, with other districts, and had extended his dominion almost to the banks of Kistna. At this point of his conquests Hyder Ali was checked by Madhoo Row, the Peishwa of the Mahrattas, who crossed the Kistna with an immense body of cavalry, and not only deprived him of some of his recent acquisitions, but compelled him to pay thirty two lacs of rupees. But Ilyder Ali, though checked, was not destroyed. At a subsequent date he undertook and achieved the conquest of Malabar; and he kept that country quiet by cutting off all the Hindoo chiefs. His conquests induced the English, the Mahrattas, and Nizam Ali, the ruler of Deccan, to form a league against him. The Peishwa of the Mahrattas was the first to take the field against him; and he was subsequently followed by Colonel Smith at the head of a small English corps, and a large army of the Nabob of the Carnatic, and by another large army under the Nizam of the Deccan. Before Colonel Smith and the nizam, however, could join their forces to those of the peishwa, he had consented, on the payment of thirty-five lacs of rupees, to retire from the confederacy, and to quit Mysore. The nizam himself was soon after discovered to be negociating a treaty with Hyder Ali, the chief end of which was to expel the company from the Carnatic; and Colonel Smith separated from him, and hastened to take possession of the passes which led into that country. He was joined by some reinforcements from Mohammed Ali, the Nabob of the Carnatic; but he was soon compelled to retreat for Changama, a town about sixty miles from Madras. In his route he was attacked by the three armies of Hyder Ali, the peishwa, and the nizam, whom he bravely repulsed; but want of provisions compelled him to continue his retreat till he reached Trinomalee. He was still followed by the enemy, who plundered, burned, and destroyed all the open country through which they passed. While at Trinomalee, Colonel Smith made an unsuccessful attempt to stop the ravages of the enemy; an attempt which chiefly failed from want of cavalry. In the meantime, Hyder Ali sent his son Tippoo, with five thousand horse, to Madras; and the fortress only escaped his ravages. Grown bold by success, the allies resolved upon a pitched battle with Colonel Smith; and a conflict took place near Trinomalee, in which they were routed. The nizam now again changed sides, and came over to the English; and in the month of December, Colonel Smith once more defeated Hyder Ali and the Peishwa, who fled to Caverypatum, on the river Panaur. On hearing of his successes, the presidency at Madras resolved to carry the war into the very heart of Hyder Ali’s dominions; and Colonel Smith received orders to march upon Bangalore, while Colonel Wood, who was detached from Smith’s force, was directed to operate on the frontiers. As the territory around

Bangalore was barren, Colonel Smith represented to the presidency that his army could not subsist in that country; but his representation was unheeded, and he was compelled to set forward on his march. This proved a fatal step. Colonel Smith arrived in the neighbourhood of Bangalore, and Colonel Wood overran the fruitful country on the frontiers; but Hyder Ali, flushed with a recent victory which he had gained over some English troops, which the presidency of Bombay had sent into Malabar and Canara, returned to Mysore, and by the end of the year 1768 recovered every inch of territory he had lost. Early in the year following Hyder Ali again poured down into the Carnatic; and so irresistible were his movements that the presidency of Madras proposed terms of peace. Hyder Ali could not hope to conquer the English, and he readily listened to the proposal; and a treaty was concluded, by which it was agreed that a mutual restitution of territory should take place, and that there should be a mutual co-operation against all enemies. But this treaty was not kept in good faith by the English; for soon after, when Hyder Ali applied to the presidency of Madras for assistance against the Peishwa of the Mahrattas, who again invaded Mysore, and swept everything before him, it was refused, on the plea that Hyder had brought the war upon himself, by leaguing with some Mahratta chiefs.

In the year 1770 the English ministry sent out Sir John Lindsay, with some frigates, to protect the company’s settlements and affairs. Soon after his arrival., the Peishwa of the Mahrattas, who had long boldly defied the English, courted a new alliance with them, and intimated to the Nabob of the Carnatic, that his country should be swept by his cavalry from end to end if a treaty was not agreed upon. The nabob and Sir John Lindsay were of opinion that the peishwa’s wishes should be gratified; but the presidency of Madras refused the alliance, and left the Mahrattas and the Mysoreans to fight their own battles. Hyder Ali was defeated in several encounters, and Seringapatam, his capital, was besieged. Such was his situation when Sir Robert Hariand arrived to supersede Sir John Lindsay in the command; he being removed on the complaints of the presidency of Madras and the directors in Leadenhall-street. Sir Robert followed the plans and notions of his predecessor, strongly insisting that the presidency ought to conclude the alliance which the peishwa demanded. The presidency of Madras, however, supported by the other presidencies, refused to take part in the war, either for or against Hyder Ali; and at the same time sent some forces to protect the Carnatic from the Mahrattas. The peishwa at length became fearful that if he entered the Carnatic he should bring the English upon him; and being distressed for want of provisions in the country of the Mysore, which he had overrun, he listened to the voice of Mohammed Ali, accepted some money from him, and agreed to make peace with Ilyder Ali. A treaty was concluded in 1772, by which the Mahratta chief obtained a large portion of the more northern and inland provinces of Mysore, together with thirty lacs of rupees.

During this war between Hyder Ali and the Mahrattas, the Rajah of Tanjore attempted to seize upon some territory belonging to the Nabob of the Carnatic. Mohammed Ali called upon his English allies for assistance, but after inducing them to make some hostile demonstrations near the Tanjore frontier, he became apprehensive that they might conquer it for themselves, and not for him. To avoid this he had recourse to intrigue, and finally signed a peace with the Rajah of Tanjore, who

engaged to surrender all the disputed districts to the nabob, pay him a large sum of money, defray all the expenses of the expedition, and to aid the nabob with his troops in all future wars. Enraged thereat, the presidency of Madras sent orders to the troops not to evacuate the fortress of Vellum, which they had captured, or withdraw their batteries from Tanjore, which they had invested, until the rajah should have made good one of his promised payments. This money was not forthcoming, and to prevent further hostilities, the rajah consented to give up the fort of Vellum to the English, and to cede to them two districts in the neighbourhood of Mandura. But this did not prevent the ravages of the English. In the year 1772 another army was sent to reduce the polygars of the Mara wars, who paid the Rajah of Tanjore a doubtful alliance, and the whole of the Marawars were put into the possession of the Nabob of the Carnatic. Nor did this satisfy the rapacity of Mohammed Ali and the English. Before this war was finished, the Nabob of the Carnatic complained to the presidency of Madras that the Rajah of Tanjore had violated the recent treaty, by delaying payment of money, and by seeking the aid of the Mahrattas and Hyder Ali, and although the company, by a treaty in 1762, had given the rajah security for his throne, he was hunted down by the English, taken prisoner with all his family, and his territories were annexed to the dominions of the Nabob of the Carnatic.

In this foul act the presidency of Madras had acted upon their own responsibility, without any reference to the court of directors in Leadenhall-street. Their act seemed, however, to meet with the approval of these directors; but in the year 1775 Lord Pigot was nominated Governor of Madras, and had full powers given him to reform the presidency of Madras, and to restore the rajah to his throne. Lord Pigot arrived at Madras, at the close of the year, and he immediately repaired to Tanjore, when the rajah was re-proclaimed in his capital. Fierce quarrels now arose among the civil authorities at Madras, and the council went so far as to arrest Lord Pigot, and place him in confinement. These proceedings excited great indignation in England, and though some of the directors in Leadenhall-street approved of them, or at least disapproved of Lord Pigot’s policy, he was restored to his office, and the members of the council were recalled. At the same time Lord Pigot was ordered to return home, and his old opponent, a Mr. Rumbold, was nominated his successor. Mr. Rumbold arrived at Madras early in the year 1773, when he found that Lord Pigot had been brought to his grave by the violence offered to his person. At that time Hyder Ali, who had formed an alliance with the French, again threatened the Carnatic, but before narrating his operations it is necessary to notice some important proceedings in other parts of India.

{GEORGE III. 1786–1787}

It has been seen that the government of Bengal was left in the hands of Mr. Cartier, and that it was notified by the court of directors to Mr. Warren Hastings, that it was their wish he should take upon himself the charge of the government on Mr. Cartier’s retirement. During Cartier’s administration, in the year 1770, a dreadful famine occurred in the province of Bengal; a famine which swept away the Hindu population by thousands. About the same time Syef-al-Dowla, the son and successor of Meer

Jaffier, died of the small-pox, and his brother, Muharek-al-Dowla, was appointed musnud. Muharek-al-Dowla was a mere boy, and as soon as the court of directors heard of his appointment, they issued orders that the annual stipend of the young nabob should be reduced to sixteen lacs of rupees. When these orders arrived in India, Warren Hastings, who had now succeeded Mr. Cartier, immediately put them into execution: an act for which he was afterwards condemned, as though it had originated with himself. The reduction was made in order to effect a saving in the government, but it had no visible effect on the treasury at Calcutta. The exchequer was empty, debt was daily increasing, and every ship brought orders from the court of directors for money. In the midst of this dilemma, the Hindu Nuncomar, the rival of Mohammed Reza Khan, who had been appointed by English influence to administer both the civil list of the nabob and the revenues of Bengal, industriously propagated stories of the minister's corruptibility. Mohammed Reza Khan was accused of acquiring enormous wealth; of having increased the calamities of the famine, by monoply of rice and other necessaries of life; and of entertaining an idea of turning his power against the English. These rumours, first spread in India, were at length carried to the ears of the magnates in Leadenhall-street, by the agency of one of Nuncomar's creatures, and inflamed with cupidity, they resolved upon the minister's ruin. A letter was sent to Hastings, directing him to take measures, and to issue his "private orders" for securing the person of Mohammed Reza Khan, together with his whole family, partizans, and adherents. Hastings had no choice left him, but implicit obedience to these commands, or dismissal from office; and unfortunately for his honour—for he was aware of the innocence of Mohammed Reza Khan—he chose to obey them. Mohammed Reza Khan was brought without delay to Calcutta, where he was placed in confinement, and the Rajah Shitab Roy, who had exercised in Bahar the same authority as Mohammed Reza Khan had exercised in Bengal, shared the same fate. Before giving directions for these arrests, the company had come to the determination, that, whether innocent or guilty, there should be no more in their offices, and that the departments of revenue and finance, together with the department of law and justice, should be placed in the hands of their own English servants. Accordingly, Hastings swept the treasury, and the courts of law clean of their old occupants, and the secondary direction of affairs was placed in the hands of men who were enemies to Mohammed Reza Khan, and creatures attached to his rival, Nuncomar. The clearance extended to the young nabob's household, which was completely revolutionised and changed. Ahteram-ul-Dowlah, his uncle, and the eldest existing male of the family, petitioned to become his naib, or guardian, but this office was conferred on the nabob's mother, Minnee Begum, who was originally a dancing-girl, and who had been Meer Jaffier's concubine. At the same time, Rajah Goordass, son of Nuncomar, was appointed dewan to the nabob, whose duties were strictly to be confined to the household, and who was to have nothing to do with the public business or public revenues of Bengal. All these changes were effected without tumult, and the board of directors expressed their entire approbation of all the appointments which Hastings had made. After he had completed his reformation, Mohammed Reza Khan and the Rajah Shitab Roy were brought to trial in Calcutta, and although the court was of Hastings' own forming, and extraordinary means had been adopted to prove their guilt, they were both honourably acquitted: a proof that

the motives of the board of directors in ordering the arrest of Mohammed Reza Khan, and sanctioning that of the Rajah Shitab Roy, were to get the whole power and the government of the province into their own hands. From this time, indeed, the public treasury and the superior courts of justice were placed under English management, and the Nabob of Bengal was no longer nabob, except in name. He resided at Moorshedabad, where he lived upon his annual stipend, but the government of Bengal was conducted at Calcutta, which Hastings considered now to be the capital of the province.

In his treaty with the Emperor Shah Alum, Clive had guaranteed that potentate the quiet possession of Allahabad and Corah, with the annual stipend of twenty-six lacs of rupees. This sum from the first was not punctually paid, and for the last two years it had been withheld altogether. The ostensible reason for this was as follows: In the year 17713 Shah Alum, at the instigation it is said of Sujah Dowla, Vizier and Nabob of Oude, who wished to recover possession of Allahabad and Corah, threw himself into the arms of the Mahrattas. Towards the close of the year 1771 the Mahratta chief carried the poor Mogul in triumph to Delhi, and soon after he was hurried by them into the field of battle. Supported by them he invaded Rohilcund, a country which was equally coveted by the Nabob of Oude, to whom the Rohillas applied for assistance. Sujah Dowla not only promised to assist them himself, but likewise to gain for them the more potent co-operation of the company. Accordingly he intimated to Sir Robert Barker, the general who commanded the company’s forces, and to the governor and council at Calcutta, that to allow Shah Alum any stipend would be only furnishing the means of war to the rapacious and turbulent Mahrattas. Previous to this the payment of the stipend had been suspended upon various pleas, but this afforded ground for stopping it altogether. Shah Alum and the English were therefore brought into direct collision. At this moment Major John Morrison, who had previously resigned his commission in the company’s service, repaired to Allahabad to try his fortune with Shah Alum. Morrison was at once raised to the rank of general, and he soon persuaded the Great Mogul to appoint him his ambassador and plenipotentiary to his Britannic Majesty, George III., under the promise of obtaining him a larger sum from the King of England than that which the company had withheld from him. Morrison was furnished with proposals, the chief of which were these:—“The Great Mogul, Shah Alum, as undoubted lord and sovereign of Hindustan, &c., and as having full right so to do, would transfer to his Britannic majesty, Bengal, Bahar, and Orissa, with all that the company possessed in those parts, and which was all forfeited by them, upon condition that his Britannic majesty would pay the pecuniary homage of thirty-two lacs, and aid the Great Mogul with troops and arms.” At this time the British parliament were calling the territorial rights of the company in question, and was even meditating the taking those rights to itself, and the reduction of the company to a mere trading body. Had Morrison, indeed, arrived in England with these offers, it is probable that parliament would have taken such a step. Hastings seems to have been under this impression, for when the adventurous officer arrived at the Dutch settlement of Chinchura, on the Hooghly, and demanded a passage to England in one of the company’s ships, he wrote in reply, that he would not allow him a passage in any ship sailing from the port of Calcutta.

Nor did his opposition end here. Having heard that the major had engaged a passage in a Danish ship, he successfully exerted his influence to prevent it; and as no other ship sailed for Europe that season, Morrison's diplomatic career was brought to a premature close. Shortly after, indeed, Shah Alum ceded both Corah and Allahabad to the Mahrattas, which was considered as equivalent to a complete discharge from all the obligations of Clive's treaty. The Mahrattas signified their intention of taking immediate possession of Allahabad and Corah, and the Nabob of Oude claimed the assistance of the English against them, and a garrison was placed in Allahabad for its protection. This, for a brief season, checked the rapacious Mahrattas; and the attention of Hastings was next directed to the inroads which the Bootans had made in Cooch-Bahar, and the devastations of the Senassie fakeers in the country round Bengal. Both the Bootans and Senassies were checked, and soon after Hastings set out on a visit to the Nabob of Oude, who had solicited a personal conference at Benares, in order to arrange new bargains and treaties with the English. This conference had reference chiefly to the annexation of the Rohilla country, which was threatened by the Mahrattas, to the province of Oude, which was at first agreed upon, but subsequently postponed; the nabob fearing that the price he had agreed to pay for it was beyond his present ability, and Hastings conceiving that such an enterprise would be open to severe animadversion in England. During this conference, however, Hastings committed as glaring an act of injustice as the conquest of Rohilcund would have been. This was the sale of Allahabad and Corah, to Sujah Dowla, for fifty lacs of rupees—twenty of which were paid down on the spot, and the other of which were to be paid in two years. By this act Shah Alum was deprived of his rightful patrimony.

The negociations between Hastings and the Nabob of Oude occupied three weeks, and on his return to Calcutta, Hastings applied himself to the administration of the province of Bengal. His chief attention was directed to the establishment of a police; to the posting detachments so as to prevent the incursions of the Senassie fakeers, and other marauders; to the formation of local courts throughout the province; to the regulation of taxes and collection of the revenue; to the removal of impolitic taxes, duties, and fees upon native marriages; to the suppression of the peculation and rapacity of the company's servants; and to other important objects, too numerous for detail. Although some of the means employed by Hastings were not of the purest kind, and others were inconsistent with more modern notions of political economy and justice, yet it is certain that his measures were productive of much benefit to the country, and that all classes of the community of Bengal, Bahar, and Orissa were satisfied with their results, and were led to look upon him in the light of a benefactor. It seems to have been to this period that he alluded, when, in after years, nearly all England was accusing him of cruelty and oppression, he remarked:—"I could have gone from Calcutta to Moorshedabad, and from Moorshedabad to Patna and Benares, without a guard, without a sepoy, without any protection but what was to be found in the goodwill and affection of the natives."

The Nabob of Oude was earnest in his desire to annex the Rohilcund country to his own, and early in the year 1774 he applied to Hastings for the troops with which he had engaged to furnish him for the enterprise. Hastings was somewhat disconcerted

at his request, but as the nabob had on his part engaged to pay 210,000 rupees per month for their services, and he wanted money, a brigade, under the command of Colonel Champion, received orders to march into the country of Oude, with the declared purpose of invading Rohilcund. Operations commenced in April, and Colonel Champion gained a great victory over the Rohilla chiefs, on the side of Babul Nulla, which placed the whole country at the mercy of the conquerors. The Nabob of Oude made a cruel use of the victory, by plundering and burning towns and villages which belonged to the quiet Hindu inhabitants; and who, so far from making common cause with the Rohillas, were ready to render all the services they were capable of rendering against them. In this destruction, neither Colonel Champion nor Hastings participated, but as it was by their means that the conquest of the country was effected they shared in the odium of the enterprise. That Hastings did not concur in the nabob's cruelties is clear from the directions which he wrote to Colonel Champion with reference to the captive family of Hafez Ramet, one of the Rohilla chiefs. He remarked:—"Tell the vizier that the English manners are abhorrent of every species of inhumanity and oppression, and enjoin the gentlest treatment of a vanquished enemy. Require and entreat his observance of this principle towards the family of Hafez. Tell him my instructions to you generally; but urgently enforce the same maxims; and that no part of his conduct will operate so powerfully in winning the affections of the English as instances of benevolence and feeling for others. If these arguments do not prevail, you may inform him directly that you have my orders to insist upon a proper treatment of the family of Hafez Ramet; since in our alliance with him, our national character is involved in every act which subjects his own to reproach; that I shall publicly exculpate this government from the imputation of assenting to such a procedure, and shall reserve it as an objection to any future engagements with him when the present service shall have been accomplished." There can be no doubt that Colonel Champion complied with these directions, for during the war a strife was kindled between him and the nabob, partly on account of the nabob's non-assistance in the battle at Babul Nulla, and partly because he resolutely kept all the plunder to himself. Still nothing can justify this war with the Rohillas, and the annexation of the Rohilcund to the country of Oude. It is the more unjustifiable, because money was evidently the chief motive which induced Hastings to assist the rapacious nabob in his enterprise. By it the Afghan race was almost rooted out of the country, for while a few chiefs lingered on the frontiers, the majority, with their followers, sought new settlements in other countries. The Hindu population remained under the rule of the Nabob of Oude.

Soon after this Rohilla war was concluded, the new constitution, as framed by parliament, came into operation. The new council appointed at Calcutta were General Clavering, and Messrs. Monson, Francis, and Barwell; and Hastings was at their head with the rank of Governor-general of Bengal. At the first meeting of this new council a letter was read from the court of directors, which inculcated unanimity and concord among its members; required them to do all in their power to preserve peace in India; committed to Hastings the charge of carrying on all correspondence with the native powers, the council at the same time being privileged to peruse all letters; recommended a careful revision of all the company's affairs, alliances, connexions,

&c., with the Indian states in the neighbourhood of the three presidencies; and exhorted them to be careful and cautious in the extreme in committing themselves by any alliances or compacts with either the Indians or the European settlers. This council was composed of such discordant materials that the injunction to preserve unanimity and concord had no weight on its members. From the first, indeed, Francis, Clavering, and Monson seem to have been resolved to gain all power in India for themselves. Their design was soon made manifest. In his political negociations, Hastings had assumed a high and almost single authority; and in conformity with this plan, at the close of the Rohilla war, he had appointed his friend Middleton to be resident and agent at the court of the Nabob of Oude, giving him instructions to confer with him alone on all matters of importance. This gave offence to Francis, Clavering, and Monson, who demanded that the correspondence of Middleton, from first to last, should be laid before the council. Hastings objected to this, on the ground that much of it related to merely private matters and opinions; upon which they hinted that his war with the Rohillas arose from sordid motives, and that his whole connexion with the Nabob of Oude had been a series of bad actions, fraud, and selfishness. This language was as unjustifiable as the Rohilla war, for Hastings had not profited in the least by his connexion with the nabob, and was at the time, in fact, a poorer man than when he quitted his inferior employment at Madras: he had sought money, it is true, but it was for the company, and not for himself. This charge was followed by action, equally unjust. As Francis, Clavering, and Monson constituted the majority in the council, they voted the immediate recall of Middleton; regardless of the remonstrance of Hastings, who declared that such a measure would be attended with pernicious consequences, inasmuch as the natives would be taught by such an act that the English authorities were disunited in sentiment, and that the government of Calcutta was falling into a state of revolution. The power of Hastings was, by the confederation of these three members against him, almost annihilated; and towards the close of the year he wrote to the board of directors, complaining of their precipitancy and violence, and to the English premier, vindicating his own conduct. Hastings, however, was subject to the control of this trio, until the 25th of September, 1776, when the majority was reduced to an equality by the death of Colonel Monson, By this event, indeed, Hastings by his casting-vote as governor-general, obtained the superiority, and he at once re-assumed his ancient authority, despite the protestations of Clavering and Francis. On the recall of Middleton the trio had sent Mr. Bristow to reside at Oude, but no sooner had Hastings regained power than he reinstated his friend Middleton in his office. The use which he made of his power seems to have given offence to the board of directors, for while they reprimanded him by letter, they supplied Colonel Monson’s place by Mr. Wheler, who took the part of Francis and Clavering. Before this party, however, could act offensively, it was again reduced to a minority by the death of General Clavering, so that Hastings once more ruled dominant.

It was time that all the divisions in the council of Calcutta were brought to a close; for at this period, 1777, danger was gathering round the Anglo Indian government on various sides. During the period of the control of Francis, Monson, and Clavering in the council of Calcutta, the presidency of Bombay dispatched some troops, under

Colonel Keating, to aid Ragoba—who set himself up for the Peishwa of the Mahrattas—against the confederated Mahratta chiefs, with whom he was at war. The presidency of Bombay were induced to take part in this war by the grant which Ragoba made them of Salsette, Bassein, and other places in the territory of the Mahrattas. At first, Colonel Keating was successful in his war with the Mahratta confederacy; but subsequently his movements were impeded by the discontents of the peishwa's troops, who refused to cross the Nerbuddah until they should be paid their arrears. Ragoba, however, found means not only to pay his troops, but to buy off some of the chiefs of the hostile confederacy; and then he and his English allies marched upon Poona, which was a kind of Mahratta capital. But the assistance which the presidency of Bombay had given displeased the supreme council of Calcutta; and at this point they issued orders for the recall of the troops from Poona. After this the council of Calcutta sent an agent of their own, Colonel Upton, to undertake treaties, and to pursue a different line of policy to that which the presidency of Bombay had adopted—he being instructed to treat, not with Ragoba, but with the chiefs of the Mahratta confederacy. A treaty was concluded, by which the Mahratta chiefs agreed to yield Salsette and the small islands near it to the supreme council at Calcutta, upon condition that aid should be afforded them against Ragoba. This treaty, for a time, put an end to war; for Ragoba, being deprived of English assistance, had no power to withstand his enemies; and therefore he was compelled to lay down his arms and flee for his life. By the year 1778, however, the Mahratta chiefs who had been parties to the treaty with Colonel Upton became weary of their bargain. Fresh intrigues were formed at Poona; intrigues which were supported by French influence, agents from that nation being at this period at work in India, as well as in America, to sap the foundation of the English power. As the presidency of Bombay were nearest to this scene of Mahratta intrigue, and were likely to be the most affected by it, they wrote letters to the supreme council at Calcutta, recommending a new alliance with Ragoba, in order to anticipate the designs of the French and the Mahratta chiefs. Soon after Hastings received this letter, he heard that a fresh quarrel had arisen among the Mahratta chiefs at Poona, and that Baboo, at the head of a powerful faction, had declared for Ragoba, and had applied to the presidency of Bombay for assistance. Hastings, conceiving that if the faction opposed to Baboo and Ragoba should prevail, the territories of Bombay would be in danger, proposed in council that every assistance should be given, and that an army should be forthwith sent from Calcutta and Bombay. He was the more induced to make this proposition because he always had disapproved of the treaty, and because he was of opinion that great danger would arise to the Anglo-Indian government from a union of the French with Mahrattas, if not checked on the instant. Hastings carried his proposition by means of his casting vote; and orders were issued for assembling an army at Culpee, on the east of the Hooghly river, and about thirty-three miles below Calcutta. The command of this army was given to Colonel Leslie, and it began its march in the month of June, almost simultaneously with the receipt of a letter, containing the information that war had been declared between England and France. This news quickened the operations of Hastings. It was represented by his opponents, Francis and Wheler, that the army should be recalled, as Bengal was as likely to be attacked as Bombay; but Hastings insisted that the army should proceed, as Bengal could be well defended without it.

Hastings then commenced a series of measures of defence against French aggression. He seized Chandernagore and all the French factories in Bengal; sent orders to the presidency of Madras to occupy Pondicherry; threw up strong works near Calcutta; collected a vast number of vessels of all kinds, and improvised a regular marine establishment; and raised nine new battalions of sepoys, and a numerous corps of native artillery. In the meantime the army under Colonel Leslie was marching towards the acme of action. In his progress he was directed to conciliate and captivate the goodwill of the rulers and people in every district through which his line of inarch lay; but at the same time he was to fight his way where he could not win it by conciliation. Leslie had to engage with a Mahratta chief, called Ballajee, and with the young Rajah of Bondilcund; but these were overcome without great difficulty; and having reached Rajaghur, a principal city of Bondilcund, on the 17th of August, he halted there, for the purpose of entering into private negociations with the pretenders and chiefs of that country. Colonel Leslie remained so long at Rajaghur, that Hastings thought it necessary to recall him to Bengal, and to confide the command of the army to Lieutenant-Colonel Goddard; at the same time declaring by letters to the Rajah of Bondilcund and his competitors, that all Leslie’s treaties and agreements were invalid. Goddard proved to be a much more active officer than his predecessor. On receiving his command he quitted Bondilcund, and crossing the Nerbudda came to the city of Nagpoor, where he established a friendly relation with the Mahrattas of Berar, and where he received dispatches from Bombay, acquainting him that the presidency had put an army in motion for Poona, under the command of Colonel Egerton, and that the two armies were to meet in the neighbourhood of that city. Egerton arrived at the destined point first; and disastrous consequences ensued to his army. In his camp were two civil commissioners, whom the Bombay government had sent to share the authority and direct the movements of Egerton. These civilians, seeing a large body of Mahratta horse before them, overcome by fear, ordered a retreat; and the Mahrattas following them, cut to pieces nearly four hundred men, and carried away the greater part of their baggage and provisions. Alarmed at their position, the civilians now sent a deputation to the Mahrattas, to know upon what terras they would permit them to march back to Bombay without molestation. The Mahrattas demanded that Ragoba should be delivered to them; and Ragoba was forthwith sent to their camp. But this weak compliance had the effect of emboldening the Mahratta chiefs. They demanded a second price for permitting the retreat; and this price was a treaty by which the English should agree to give up all the acquisitions they had made in that part of India since 1756, and send orders to Colonel Goddard to return to Bengal. A treaty was signed to this effect; and having delivered up two hostages as sureties for its fulfilment, the dishonoured army was permitted to march back to Bombay. When Colonel Goddard heard of these reverses he was at Boorhampoor, the ancient capital of Candeish, and nearly a thousand miles, by the route he had taken, from Calcutta. He had been detained in this city by perplexing letters and advices from the field-commissioners; and on receiving the intelligence, he resolved to march to Surat on the western coast, where he would be in an English settlement, with the sea open to Bombay, and ready to act as occasion might require or orders from Calcutta might direct. Favoured by the natives, whose goodwill he had gained by the strict discipline

which he maintained among his troops during his march from Rajaghur to Boorhampoor, he reached Surat, a distance of two hundred and fifty miles, in nineteen days. On his arrival Goddard was promoted to the rank of general; and shortly after he received the commands of the supreme council at Calcutta, to take upon himself all future wars or negociations with the Mahrattas. He proposed an amicable treaty with the Mahratta confederated chiefs, on condition that they would annul the recent treaty with Colonel Egerton, and give up all connexion with the French. At the time he proposed this treaty, Ragoba, who had escaped from Poona, was at Surat; and the chiefs replied that they would listen to no negociation until he was given up, and until Salsette was restored to them. Goddard now took the field; and in a few days the fortress of Dubhoy was reduced, and the city of Ahmedabad, the capital of Guzerat, carried by storm. His progress was arrested by the intelligence that a large Mahratta army, under the chiefs Scindia and Holkar, was marching upon Surat. Goddard resolved to attack that army, and he marched back for that purpose. At first he was prevented by a desire which the chiefs expressed for peace, and negociations were entered into; but it was soon found that they were not sincere, and that their chief motive was to delay the time until the setting in of the rains should interrupt the campaign. Négociations were broken off, and the chiefs hastily retreated; but Goddard followed them, surprised and defeated them in their very camp; and by that victory obtained possession of all the country between the mountains and the sea. The Mahrattas fled in all directions; and Goddard having taken possession of all the towns, put his army into cantonments.

During these events Hastings had formed an alliance with the Ranna of Gohud, who ruled over a hilly country between the territories of Scindia the Mahratta chief, and those of the Nabob of Oude. At the time this alliance was made the territories of the Ranna of Gohud were invaded by the Mahrattas, and Captain Popham was sent to assist him in repelling the invaders. Popham not only drove out the Mahrattas from the dominions of the Ranna, but followed them into their own territories, where he stormed the fortress of Labor, and took that of Gualior, winch the natives deemed impregnable, by escalade. Gualior was not more than fifty miles from Agra, which was Scindia’s capital; and alarmed at his progress, the Mahrattas abandoned all the neighbouring country, and took refuge in that city. The Mahratta war, as conducted by Goddard and Popham, promised a complete triumph; but the victors were stopped at this point by another Mysorean war, which threatened to ruin the English power and possessions on the Coromandel coast.

Although nominally at peace with the English, Hyder Ali held them in utter abhorrence. During the last seven years, indeed, he had been concerting schemes with the French at Pondicherry, and improving and increasing his army, with a design of overturning the Anglo-Indian government at Madras, if not in all India. To enable him to raise forces, he had recourse to a system of extortion from his subjects, and plunder from his neighbours, by which means the treasury of Mysore was full even to overflowing. The Madras government was warned of its danger by Mohammed Ali, the Nabob of the Carnatic; but his voice was disregarded, and no preparations were made to ward off the blow. But the presidency of Madras were soon aroused from their slumbers. In the summer of 1780 Hyder Ali suddenly quitted

Seringapatam, with one of the finest armies ever seen in Southern India. This army consisted of 30,000 cavalry, 15.,000 drilled infantry, 40,000 irregular troops, 2000 artillery and rocket men, and 400 Europeans, many of whom were Frenchmen. With this force Hyder poured through the ghauts or passes, and burst like a mountain-torrent into the Carnatic. His arms were irresistible. Porto Novo, on the coast, and Conjeveram, close to Trichinopoly, were captured and plundered; almost every fortress opened their gates at his approach; and the whole country north of the Coleroon submitted to his sway. At his approach the people fled in all directions from the fire and the sword towards the English presidency; and the flames kindled by him were seen at night from the top of Mount St. Thomas, which was only nine miles distant from Madras. Alarmed at his progress, the presidency was at first unnerved; but fear having subsided, orders were given to secure some of the strong places held by Mohammed Ali's troops, on whom no reliance could be placed. Two were thus preserved; but the rest fell into the hands of the victor. The next object of the presidency was to call in a strong force of 3000 men, under Colonel Baillie, from the Northern Circars; and Sir Hector Munro, the commander-in-chief, undertook to meet them at Conjeveram, about fifty miles from the capital. In his route Colonel Baillie was attacked by Hyder Ali's eldest son, Tippoo, with a large detachment; while Hyder himself interposed his main force between the two divisions of the English forces. Colonel Baillie defeated Tippoo; and soon after he was joined by a reinforcement under Colonel Fletcher and Captain Baird, which raised his corps to 3700 men. Against these Hyder now turned his chief attention; and he succeeded in surrounding them near Conjeveram with his whole host, and upwards of sixty cannon. A dreadful battle took place; and the English, and the sepoys who fought with them, struggled so manfully, that, after a contest of three hours, victory began to declare on their side. Hyder Ali was about to give orders for a retreat, and the French officers, who commanded the artillery, began to draw off their guns; but at that instant, by some accident, the tumbrils containing the ammunition blew up in the centre of the British, lines, and their artillery was rendered useless. This accident changed the fortune of the day; and the conquerors were left at the mercy of the vanquished. Still they long kept their ground; and it was not till all the sepoys were broken and cut to pieces that the British gave way. Even then they rallied for one more desperate effort; and under fire of the enemy's cannon they gained the ridge of a hill, in which position they formed a square, and defended themselves against thirteen successive attacks; the soldiers fighting with their bayonets, and the officers with their swords. The troops would still have resisted the enemy, had not Colonel Baillie directed them to lay down their arms, and stepping forward, asked for quarter. It is said that even then many would not lay down their arms, and continued to fight under the legs of the elephants and horses. But the struggle was now of no avail; one half of the survivors were cowardly butchered, and the rest were made prisoners, and reserved for a horrible captivity. In this conflict four thousand sepoys and six hundred Europeans were slain, among whom was Colonel Fletcher.

At the time when this battle took place, Sir Hector Munro, who commanded the other main division of the Madras army, was within a short distance of Hyder's rear, and on discovering the catastrophe, he abandoned his tents and baggage, threw his

heavier guns into a tank, and fled to Madras. The country was now at the mercy of Hyder; and Wandewash, Chingleput, Vellore, and Arcot were in a short time either captured or closely besieged. Had it not been for Hastings, the power of the British would have been broken, not only in the Carnatic, but also in the northern Circars. On first discovering the irruption of Hyder Ali, the presidency of Madras despatched a fast-sailing ship to Calcutta, with letters and agents, urging him to send them aid in men and money. The treasury of Calcutta was empty, but Hastings procured fifteen lacs of rupees, which were sent off to Madras as a present supply for the army, and the governor-general immediately set to work to obtain more. Missives and agents were soon seen flying through the country to procure supplies; and Moorshedabad, Patna, Lucknow, and Benares, with all other places where Hastings could put in a claim, whether real or fictitious, were called upon for their contributions. But money would have been of little service in this war without active measures on the part of Hastings. This he saw, and he immediately concluded a peace with Scindia, recalled Popham from the Jumna, and adjusted amicable arrangements with the other Mahratta powers, under the guarantee of the Rajah of Berar He also recalled the inept Governor of Madras, and invited Sir Eyre Coote to take the command of Fort St. George, and the entire management cf the war with Hyder Ali. Sir Eyre Coote had recently returned to India, as commander-in-chief of the Bengal forces, and a member of the supreme council; and although he did not always agree with Hastings at the council-table, he readily fell in with his plans, and undertook the command. Coote set sail with five hundred choice British troops, and six hundred Lascars, with between forty and fifty gentlemen volunteers; and soon after his arrival at Madras, he commenced operations, with 1700 Europeans, and about 5000 native troops, by marching to recover Wandewash, the scene of his great exploit in a previous year. Wandewash was recaptured, and Hyder Ali, terrified at his name, abandoned other sieges, and seemed inclined to fly from, or to treat with the conqueror. At this juncture, however, a French fleet appeared off the coast; and encouraged by it, and also by a repulse which Coote shortly after sustained at the fortified pagoda of Chillambram, he intrenched his army in a strong position, near Cuddalore, where he determined to risk a battle rather than permit the British commander to advance upon Trinchinopoly and Tanjore. His post was exceedingly strong; but Sir Eyre Coote, who had recently been reinforced by some sepoys, sent by Hastings, under the command of Colonel Pearse, advanced from Porto Novo, attacked him in his lines, and completely defeated him. It is said that Hyder Ali now bitterly regretted having allowed himself to be drawn into war by French counsels, and that he as bitterly complained of having been amused by the promises of the assistance of a great French force from Europe. Notwithstanding he risked another battle for the defence of Arcot, on the very spot where Colonel Baillie had suffered his defeat, but where he was this time defeated. Hyder retreated to, and took up his position at, Sholingur; and though Sir Eyre Coote had suffered severe loss in his recent battle, he resolved to seek the enemy, and he pushed forward with such vigour that he nearly surprised the Indians before they could form their ranks. Hyder was again routed, with terrible loss, and Coote was enabled by this victory to march on the fortress of Vellore, one of the keys of the Carnatic, which was besieged by Hyder’s troops, and which he relieved and saved. After this, Coote recovered Chittore, Palipett, and other places,

and then, as the rains, the monsoons, and the rising of the rivers put an end to further extensive operations, he went into cantonments.

{GEORGE III. 1786–1787}

In the meantime Lord Macartney arrived from England as Governor of Madras, His lordship brought intelligence of the declaration of war between England and Holland, and his first care was to make himself master of all the Dutch factories on that coast. Sadras surrendered upon summons; Poulicat submitted on his approach, at the head of some gentlemen volunteers and Madras militiamen; Negapatam was captured; all the other Dutch settlements on the same coast fell into the hands of the British; and Trin-comalee, their principal station in Ceylon, was taken by storm.

Colonel Braithwaite had assisted in the reduction of Negapatam, and when this was effected he marched into Tanjore, with the view of recovering some of the fortresses of that country, which had been captured by Hyder and his son Tippoo. Braithwaite was deceived and misled by the Tanjoreans, and while encamped on the left bank of the river Cavery, on the 18th of February, 1782, he was surprised by Tippoo and a French corps; and after maintaining an unequal contest from sunrise to sunset, his whole force were either killed or taken prisoners. This blow was almost immediately followed by the arrival off the coast of Admiral de Suffrein, with 2000 French and 1000 Caffres on board, to aid Hyder Ali in his struggle. De Suffrein had been encountered in his voyage by the squadron of Commodore Johnstone, and had been pursued by Admiral Hughes; but he had escaped all dangers, and he now succeeded in landing the forces which he brought with him at Porto Novo. These forces were under the command of M. Bussy, and they united with the army of Tippoo, and besieged and took Cuddalore, after which they advanced against Wandewash. Coote marched rapidly to the relief of that place, and on the 24th of April he encamped on the very spot where he had defeated Lally and Bussy twenty-two years before. Bussy and Tippoo retreated before Coote, and-he then threatened the strong fort of Arnee, where Hyder had deposited plunder and provisions. Hyder advanced in person for the defence of this place, and while he engaged in a loose, irregular battle, Tippoo succeeded in carrying off his stores from Arnee. Bussy now retreated towards Cuddalore and Pondicherry; Hyder put himself in quarters near the coast; and Tippoo, with some strong French detachments, hastened to Calicut, to quell a rebellion which had manifested itself among his father’s oppressed subjects—the Nairs, or Hindu chiefs of the Malabar coast. At the same time Sir Eyre Coote threw supplies into Vellore, and undertook an expedition against Cuddalore, which failed for want of co-operation.

About this time Hyder Ali was thrown into dismay by learning that Hastings had concluded a treaty with the Mahrattas. He expected that the Mahratta confederacy would invade the country of Mysore, and he intimated his intention of returning for its defence. Bussy, however, persuaded him that the war in the Carnatic was not altogether hopeless, and that means might be found to counteract the negociations of the Governor-general of Bengal, and to win back the Mahrattas, not merely to a neutrality, but to a close alliance. Accordingly he resolved to remain in the Carnatic,

and he prepared to co-operate with Bussy in an attack upon Negapatam; at the same time amusing-Sir Eyre Coote, with an intimation that he might become a party to the treaty with the Mahrattas, by which Coote was rendered inactive.

During this summer Madras suffered under accumulated evils. The ravages of Hyder Ali had driven crowds from all quarters to seek refuge in the capital, and multitudes daily perished for want. Ships of rice were sent in October for their sustenance while in this condition; but the monsoon arose, and the whole were lost. An absolute famine now ensued, and it is said that ten thousand perished before any relief could be afforded from Bengal and other parts. The roads that led to the town, and the streets of the town itself, were strewed with the dead and the dying; and nothing-was heard but cries, and moans, and unavailing prayers for assistance.

In the meantime success attended the British arms on the Malabar coast. Colonel Mackenzie, who was aided by the Nairs, or Hindu chiefs, was preparing for the siege of Palagatcherry, not many marches from Seringapatam, when Tippoo arrived in that country. As Tippoo had an army of more than 20,000 men, Mackenzie was constrained to retreat towards the coast; but he halted at Paniany, a sea-port town about thirty-five miles from Calicut, where he resolved to make a stand against the enemy, who were pressing on his rear. Tippoo attacked him, but after a severe struggle he was compelled to withdraw, leaving behind him a great number dead and wounded. Whether Tippoo would have ventured another battle is very doubtful; but at this juncture he received intelligence of his father’s death, and as he had brothers and cousins, it was his interest to look after the throne and the treasures of Mysore. Accordingly Tippoo left the Malabar coast, and hastened to the camp of Plyder Ali, when, after the usual distribution of pay and donatives, he was recognised as commander of the army and sovereign of Mysore. It seems probable that had Hyder lived a few months longer, he would have made peace with the English; for he had long had his suspicions of the fidelity and the just designs of the French. Tippoo, however, scorned all overtures of peace with the English, and on the 4th of January, 1783, General Stuart, who succeeded Sir Eyre Coote in command, took the field against him. Tippoo was surrounded by dangers; for after his retirement from the Malabar coast, Colonel Mackenzie marched his sepoys by land, and sent his Highlanders and other British by sea, northward to the coast of Canara, to co-operate with a part of the army from Bombay in reducing some of the richest provinces of Mysore. The junction of these forces was effected in January, when General Mathews, who had arrived at Bombay with some royal troops, took the command of the whole. Mathews took the fort of Onore by storm, and having scaled the range of rocks which runs between the coast and Bednore, and cleared the passes at the point of the bayonet, he came upon the rich capital of Bednore, which surrendered to him without firing a gun. Other forts also surrendered at or before a summons, and Ananpore and Mangalore were carried by storm. Thus assailed before and behind, Tippoo recalled his garrison from Arcot and other places, and evacuated the Carnatic in order to defend Mysore. On his arrival in his own dominions he found that Mathews had scattered his army all over the country, in contemptible mud forts and open towns, and had fixed his head-quarters in the city of Bednore. Mathews had been further weakened by desertion. He had quarrelled with Colonel Mackenzie, Colonel Mac

Leod, and Major Shaw, and these officers had repaired to Bombay to lay their complaints before that presidency. Tippoo saw that he was his prey, and he hastened to Bednore to seize him. Mathews threw himself into the fort of Bednore, but resistance was hopeless, and Tippoo, having offered very honourable terms, he capitulated. According to the terms of this capitulation, the general and his troops were to be allowed to withdraw to the coast; but instead of this, they were bound with chains and ropes, and thrown into horrible dungeons. After this success Tippoo passed the Ghauts, and went down to the sea-port town of Mangalore, into which the 42nd regiment, which Mathews had previously sent down to the coast, with some fragments of the army who had escaped, had thrown themselves. Tippoo and his French allies invested Mangalore, and counted on a short and easy conquest; but they were detained before its walls for months, and were thereby prevented from engaging in more important operations.

On the departure of Tippoo from the Carnatic, General Stuart had only the French and some sepoys to contend with, and these were posted behind their fortified lines at Cuddalore. Against these he directed his operations, while Admiral Hughes was to co-operate with him, and to prevent Admiral de Suffrein from aiding in the contest. Several encounters took place both by sea and land, but nothing decisive had occurred, when news reached Madras that a treaty of peace had been concluded between France and England. On receiving this intelligence a flag of truce was dispatched to M. Bussey, who agreed to a cessation of hostilities by sea and land, and also to invite Tippoo to be a party in these pacific arrangements. Tippoo was alarmed at the prospect of being left alone in the war, but at the same time he did not show himself to be anxious for peace. In his reply, he intimated, by his vakeels, that everything the English had taken from him must be restored, while he made scarcely any mention of restitutions to the English. At the same time he continued the siege of Mangalore, and made desperate efforts to get possession of it. Nor were military operations suspended by the English, for while Lord Macartney sent three commissioners with Tippoo’s vakeels to Seringapatam to treat there, a series of operations were carried on by the British troops in the very heart of the obdurate nabob’s dominions.

While General Stuart was carrying on operations against the French at Cuddalore, Colonel Fullarton, who had arrived from England with some of the reinforcements at the end of the preceding year, was making a rapid progress in the country beyond Tanjore. Fullarton had taken the fortress of Dindigul by storm, and had captured the fortress of Daraporam, in the province of Coimbntoor, which opened one of the roads to Soringapatam, and was only about one hundred and forty miles from that city. At this point he was recalled to the aid of General Stuart at Cuddalore; but when the news of peace between France and England arrived, and when it was found Tippoo showed no signs of a desire for a cessation of arms, Lord Macartney reinforced him with 1000 sepoys, and directed him to resume his campaign. Fullarton first turned his arms against the numerous polygars of Tinevelly, who had thrown off all allegiance to the company at the commencement of Hyder’s invasion; and having reduced them to complete submission, he continued his march to Dindigul and Daraporam. He had neither money nor supplies with him; but his wants were well supplied by the Rajah

of Travancore, and by other rajahs on the Malabar coast, who were all interested in the overthrow of Tippoo. On arriving in the neighbourhood of Daraporam, Fullarton halted for a short period, in order to receive intelligence from the three commissioners sent to Seringapatam. On the receipt of a letter, however, from the residency of Tellichery, informing him that Tippoo had recommenced hostilities at Mangalore, Fullarton took immediate measures to resent the insult. His first operations were against the fortress of Palagatcherry, which was considered one of the strongest in all India. This fortress was captured, and the English found therein 50,000 pagodas in money, together with a large supply of grain, ammunition, and military stores. Fullarton next directed his operations against the fort of Coimbatoor, which likewise fell into his hands. All the strongest fortresses in the country were now captured, and another ten days of march would have brought him before the walls of Seringapatam. This would have been accomplished without any difficulty, for there was no Mysorean army in the neighbourhood capable of withstanding his forces; and every rajah bordering on the territories of Mysore was favourable to his cause. It is evident, indeed, that the power of the British might have been established in the whole of Southern India, and Fullarton rejoiced in the bright prospect. Just as he was setting forwards on his inarch to Seringapatam, however, to secure the golden prize, he received orders from the government of Madras to restore his recent conquests. At Tippoo's request, two English commissioners had been sent to his camp to treat for peace, and this unqualified restitution was enjoined by the commissioners as the preliminary of negociation with the artful nabob. Yet all the while Tippoo continued the siege of Mangalore, and while Fullarton was retracing his steps towards Tanjore and Trichinopoly, that fortress, after sustaining a siege of nine months, was captured; Colonel Campbell, who had bravely defended it, being allowed to march with his troops unmolested to Tellicherry. The continued siege of Mangalore and its capture exhibited the bad faith of Tippoo; and it was scarcely evacuated when Fullarton, who had not reached the old boundaries, received orders from Madras to renew operations, and to regain, if possible, the possession of Palagatcherry. Fullarton again advanced with the main body of his army, and was again flattering himself with the hope of being the conqueror of Seringapatam, when he received fresh orders to return. Preliminaries of a peace had been exchanged between the commissioners, and he was directed to restore the forts and countries of Carroor and Daraporam, but to keep possession of Dindigul, and station a garrison there till all the English prisoners in Mysore should be liberated from their horrible captivity. The treaty between the English and Tippoo was finally concluded on the 11th of March, upon the condition of a restitution by both parties of all that they had gained during the war. All the prisoners in Mysore, who had survived their horrible captivity, were released; and the tales told by them excited such horror and indignation, that it became evident peace would not be of long continuance. Peace, indeed, was not wholly restored in India by this treaty; for, unfortunately, no stipulation had been made in favour of the native chiefs, who had favoured the English cause, although the bloodshed and devastation which awaited them must have been foreseen On the return of Tippoo's army, therefore, its services were employed in scourging the wretched Hindu population of Coorg, Canara, and Mysore, thousands of whom he compelled to embrace the faith of Islamism. Nor was it against the natives alone that

he turned his arms; for one of the first acts by which the tyrant signalised his reign, was the deportation, and forcible conversion to Islamism of 30,000 Christians, from Portuguese settlements on the coast of Canara. Soon after his return to Seringapatam his name was changed, from Tippoo Sultaun, to that of Shah Allum, and he also assumed the regal title of Padisha, and ordered his court to observe all the forms and ceremonies which were in use at Delhi.

Although Tippoo was a gainer by this untoward treaty, yet the grand result of the war was, that our Indian empire was saved. The expenses of this war, however, had been great; and as the greater part of the money could only come from Bengal, Hastings had, during its progress, been carrying on a system of exaction, which reflects no honour on the English name. The only excuse that can be offered on his behalf, is, that he felt that the Carnatic must be rescued and India saved, be the cost what it might. It was known to Hastings that many of the neighbouring princes, who owed their political existence to the power of the English arms, and were dependent upon the government of Calcutta, possessed hidden treasures of vast amount; and as he had no other means of obtaining the requisite supplies for the maintenance of the war, he determined that they should disgorge. Cheyte Sing, the Rajah of Benares, was the first to whom he applied the pressure. Demand after demand was made and supplied; and when no more could be obtained, the rajah, who was one of the most faithful allies of the English in all India, was driven from his throne. A nephew of Cheyte Sing was selected to fill his post; but every vestige of sovereignty was taken from him and placed under the control of the company’s resident at Benares. By this revolution an addition of £200,000 was made to the revenues of the company; but as there was no more ready money in Benares, and as this was a _sine qua non_, Hastings determined to apply the screw on other chiefs. His next victim was Asoff-ul-Dowla, Nabob of Oude, and master of Rohilcund, one of the most extravagant and debauched of all the Indian princes. Asoff-ul-Dowla proved to demonstration that he had no money, and that he could not even defend himself against the Mahrattas and the Rohillas, or even against the discontents and insurrections of his own subjects, if he was not supported by the company’s servants. But if the Nabob of Oude had no money, his mother and grandmother had; for Sujah Dowla had left a considerable part of the treasures which he had in hand to these two ladies, and had bequeathed them, in addition, certain jaghires. In an interview, therefore, with Asoff-ul-Dowla, in the fortress of Chunar, Hastings consented that some of the company’s troops should remain in Oude for his defence against his enemies; but only on this condition, that he should rob his mother and grandmother. The undutiful nabob had before endeavoured to gain their treasures for himself, and had, in fact, obtained large contributions from their purses; but though he showed himself a true robber, yet when he found that the money was to go into the hands of the company, he was reluctant to rob any more. He consented, indeed, to seize the treasures for the use of the company, on condition that he should possess the ladies’ jaghires himself; but when he returned to Lucknow his heart misgave him. Hastings, however, was not to be disappointed. On discovering the nabob’s reluctance, he wrote to him and to Middleton, the British agent at that place, urging him to fulfil his agreement, and ordering Middleton to do the work himself if Asoff-ul-Dowla still delayed. To save his

authority the nabob now seized the jaghires, but he still spared the treasures; and Middleton took this work into his own hands, or, at least, acted in conjunction with the nabob. The victims lived at Fyzabad; or, the “Beautiful Residence,” about eighty miles to the east of Lucknow; and the robbers, accompanied by some sepoys, repaired thither; and by throwing two old eunuchs in the palace, who had been the confidential servants of Sujah Dowla, into a dungeon, they succeeded in extorting from the ladies treasures to the amount of more than £500,000 sterling. But this was not sufficient for the support of the ruinous war in the Carnatic; and Hastings laid claim to the revenues of the jaghires which the nabob had seized as his portion of the robbery. But Hastings, in his transactions with the Nabob of Oude, did not seek money for the company alone; for, during the conferences at Chunar, he accepted a present of £100,000, which, on the part of the governor-general, was altogether illegal, and therefore subjected him to the charge of venality In the conferences of Chunar, it was agreed that the Nabob of Oude should, “when time should suit,” take possession of the territories of Fyzoola Khan, the last of the great Rohilla chiefs that remained in Rohilcund, under pretence that by his independence he caused alarm to Asoff-ul-Dowla. The chief design of Hastings, however, was to extort money from Fyzoola Khan; and when he found that there was no money in the country, he put his interdict on any hostile proceedings by the Nabob of Oude; poverty therefore was his protection.

It must not be supposed, however, that Hastings ventured to rob the palace of Fyzabad as a robber of the Robin Hood order. Up to the time of his wanting money for the Carnatic war, he had protected the mother and wife of Sujah Dowla, and had even written to Middleton, commanding him to take active measures for preventing Asoff-ul-Dowla from plundering them; asserting that they were entitled to English protection. But now, when it was determined to despoil them of their jaghires and their money, it was thought expedient to devise some means of colouring over the transaction, so as to save his honour and reputation. Doubts were now thrown out as to the validity of Sujah Dowla’s testamentary bequests; and the ladies were represented as dangerous rebels and traitors to the company. His violence to Cheyte Sing had created an insurrection at Benares, which could only be quelled by bloodshed; and this was followed by some slight disturbances in the province of Oude. Nothing, however, could be further from the truth than that these old ladies had taken any part in the tumult. They were, indeed, too fond of their money to spend it in exciting insurrection. Nevertheless, this was made the plea for robbing them; and to carry out the farce, after they had been plundered of their wealth, they were tried for the imputed offence at Lucknow, by the chief-justice, Sir Elijah Impey, an old schoolfellow and bosom-friend of the govern or-general. Impey had not the slightest authority at Oude; but it was thought that the presence of the head of the supreme court at Calcutta would impart a dignity to the proceedings, and give a fair colouring to the act. It was not difficult in India to obtain a conviction; for men who would perjure themselves by giving false witness were to be met with on every hand. A host of such were brought forward, therefore, with affidavits ready drawn in their hands, to testify against the victims. The result was certain: a partial judge and false swearing convicted the accused, and by their deaths justified the deed which stripped

them of their jaghires and money. The services which Sir Elijah Impey rendered Hastings, in this and many other transactions in India, were rewarded by his appointment to the office of judge of the Sudder Dewannee Adaulut, or Court of Appeal, which Hastings separated from the supreme council at Calcutta for that purpose. This new office added £7800 a year to the £8000 which he already enjoyed, as king's chief justice. This, in effect, made him a servant of the company; and subsequently some of his juniors received company's places or gratifications: as Sir Robert Chambers, who was made company's judge at Chinchura. But this was contrary to the spirit, if not to the letter of the regulating act of 1773; and in a committee of the house of commons on Indian affairs, it was declared that the power conferred upon Sir Elijah Impey in his new capacity was exorbitant, dangerous, irregular, and illegal, and a bargain between Hastings and him not to be permitted: that by selling his independence to the governor-general, he sold the administration of justice and vitiated his tribunal. This was during Lord North's administration; and soon after, on the 20th of March, 1782, the Shelbourne and Rockingham administration was formed. Reform under this short-lived government became the order of the day; and on the 3rd of May, an address was carried in the house of Commons, by a large majority, for the recall of Sir Elijah Impey, to answer to the charge of having "accepted an office not agreeable to the true intent and meaning of the act 13 George III." About the same time Hastings himself had a narrow chance of being recalled as a criminal, to answer for his conduct at Benares; but as the danger of India was at its height when the last news arrived, and as it was supposed that he alone was capable of protecting the British interests in that country, he was permitted at present to go unscathed.

Hastings retained his station till February, 1785, when, without any previous notice, he resolved to quit his government and return to England. The last years of his administration had been marked by judicious measures; measures by which India was restored to a state of tranquillity, which had not been known for ages. He had also made some atonement for the crime committed against the wife and mother of Sujah Dowla by ordering the jaghires—not the money, for that was all spent—which had been unjustly seized, to be restored to Asoff-ul-Dowla. His last actions seemed to have wiped out the remembrance of the deeds for which he had been loudly condemned, for on his arrival in England, the board of directors voted him thanks for his long and meritorious services, and Mr. Dundas, who had moved for his recall in 1782, and who had declared, that "he could scarcely leave the walls of Calcutta, that his steps were not followed by the deposition of some prince, the desertion of some ally, or the depopulation of some country," now asserted in the house of commons, that had he been one of the directors, he would have concurred in their vote, and that he was glad that the resolution, which he himself had moved for his recall, had not been carried into effect. At court also Hastings was received with favour and treated with distinction, and though on his arrival, Burke had menaced him with impeachment, yet, months rolled on, in which he was left undisturbed; and he was still unmolested when the parliament reassembled in January, 1786. But this calm was only the prelude to a storm, which suddenly broke over the head of Hastings, and disturbed his peace.

This storm arose at the bidding of one of the ex-governor's private friends. On the first day of the meeting of parliament, Major John Scott, whom Hastings had indiscreetly chosen to be his champion in parliament, and his advocate by the press, stood up in the house of commons, and demanded of Burke, whether he intended to produce his charges against the late Governor-general of India. It is probable that neither Burke nor his friends would have troubled their heads any more about the matter, but being thus braved, he could do no other than accept the challenge, and his whole party were bound to give him their support. Accordingly, on the 17th of February, Burke commenced operations, by making a call for papers and correspondence deposited in the India house. As a notion had got abroad that the king, his court, and his ministers were all devoted to Hastings, Burke opened his speech by desiring that two of the resolutions which had been moved and carried in the month of May, 1782, by Mr. Dundas, and which contained an unmitigated censure on the conduct of Hastings, should be read. This being done, Burke expressed his deep regret that the solemn and important business of the day had not been brought forward, in the plenitude and weight of efficiency, by the original mover of these resolutions. The task, he said, would better have become ministers, as the authors of those extreme resolutions against the governor-general, and that it would particularly become Dundas, who had now all the powers and resources necessary for a complete examination, as an influential member of the board of control. Burke then uttered a terrible philippic against men whose notions of right and wrong varied according to circumstances, and depended on their being out of, or in office—men who could find every thing wrong in India in 1782, when they wanted places, but who would make no attempt to punish or correct those whom they then condemned, in 1784, when they had obtained what they wanted. Acting under their sanction, however, he asserted a claim to their protection, and after giving a detailed historical account of parliamentary proceedings with regard to British India, he remarked that there were three species of inquisition which might be adopted against a state culprit; the house might order a prosecution by the attorney-general; or it might proceed by a bill of pains and penalties; or it might act upon the ancient and constitutional mode of impeachment. As the attorney-general was evidently unfriendly to the prosecution, and as he considered that to proceed by a bill of pains and penalties would be unjust towards the accused, inasmuch as it would compel him to anticipate his defence, and impose on the house the twofold character of accuser and judge, he would advise the house to proceed by impeachment, being careful at the same time to do so with all possible caution and prudence. The first-step in such a proceeding was, he said, a general review of the evidence, in order that they might determine whether the person charged, ought to be impeached or not. To this end he proposed that the house should resolve itself into a committee, and that such papers as were necessary for substantiating the guilt of Mr. Hastings, if he was guilty, should be laid before that committee. Then, he said, if the charges should appear to be what he believed them to be, charges of the blackest nature, and supported by competent evidence, the house might proceed with confidence and dignity to the bar of the lords. Burke concluded by justifying his motives, in taking on himself the duties of a public

accuser, and by expressing his conviction that Hastings had been guilty of gross corruption, and that his administration had been marked by violence, oppression, and cruelty.

In reply, Dundas acknowledged that he had suggested and moved the resolutions which had been read; and that he entertained the same sentiments respecting Hastings now, as he did when he moved them in the house; but these resolutions, he said, only went to recall, and not to impeach him. Yet, though he thus virtually condemned Hastings in the opening of his speech, before he concluded he applauded his administration. The more, he said, he examined the conduct of the late governor-general, the more difficult he found it to fix any criminal intention, or to separate it from the conduct of the directors at home, who had expressly commanded or urged him on in so many particulars. Mutual recrimination between Fox and Pitt followed this speech of Dundas, in which the deadly sin of the coalition was used with great effect. The papers which Burke called for, however, were not opposed until the following day, when he asked for those relating to Oude, in the latter part of the administration, of the accused governor-general, the part which ministers maintained was without spot, and blameless. Pitt said that this would be producing new and endless matter, and that the inquiry for the present ought to be confined to the period embraced in the reports of 1781. Major Scott, however, said that the Oude papers would establish the reputation of Hastings, and that they ought to be produced; whence the motion was carried. Subsequently motions were made for papers relating to the Mahratta peace, to the negociations which Hastings had carried on at Lucknow with the son of the Great Mogul, and to the mission of Major Brown to Delhi. These papers were all refused, and Burke having got all he could, on the 3rd of April, proposed calling to the bar some of the gentlemen who had been ordered to attend as witnesses. In this he was opposed by all the crown lawyers, who represented that he ought to produce his charges first, and that no proofs ought to be admitted, except such as were applicable to the charges; a mode of proceeding adopted in the courts of law, and which, they contended, ought to regulate the proceedings of the house of commons. Burke and his friends argued, in reply, that the house had already-sanctioned a different mode of proceeding, by gran ting the power of taking evidence, by forming itself into a committee, to receive evidence, and by summoning the witnesses who were in attendance. The lawyers, however, carried their point, and Burke was compelled to bring forward specific charges against the accused. On the 4th of April, therefore, Burke rose to charge Warren Hastings, Esq., late Governor-general of Bengal, with high crimes and misdemeanors in the execution of his office. On this occasion he laid on the table nine distinct articles of accusation, and in the course of the following week, he added thirteen others to the list. The principal charges related to the affairs of Benares; the Rohilla war; the various transactions in Oude; the Mahratta war, and the Mahratta peace; the depriving the Mogul of Corah and Allahabad; the hard treatment of Mohammed Reza Khan; the death of Nuncomar, who had been tried and executed for forgery; the treatment of Fyzoola Khan, the Rohilla chief; disobedience of orders; extravagant expenditure; the enriching of dependents and favourites; and the acceptance of presents, or bribes, by the governor-general himself. Before the whole of these articles were laid on the

table, Hastings had petitioned the house to be heard at its bar, and to be allowed a copy of the several charges. These requests were opposed by opposition, but were granted; and on the 1st of May Hastings came to the house to make his defence. He was no orator, and having been supplied with copies of the articles, he brought with him a written defence, which he was allowed to read like a dry sermon. In it, he first referred to the vote of thanks which he had received from the court of directors, his employers, expressing astonishment that any one else should venture to prefer accusations against him. After this, he took a general view of the accusations, and began to read answers, separately to each of the charges. His defence occupied two or three days in the reading, and when it was closed, Hastings requested that it should be laid on the table, and printed for the use of the members, which was ordered. The examination of witnesses now took place, which lasted three weeks; and when all had been examined, on the 1st of June, Burke brought forward the first charge, that of the Rohilla war. Burke commenced his speech by a solemn invocation to British justice, and disclaiming any personal motive or private malevolence. After this he drew a vivid, but overwrought picture of the character and condition of the Rohillas, both before and after the invasion of their territories, by the troops of the Nabob of Oude and the company. This question was debated two nights, and when a division took place, Burke’s motion, declaring that there was ground for charging Warren Hastings with high crimes and misdemeanors, on the matter of the Rohilla war was negatived by a majority of one hundred and nineteen, to sixty-seven. The friends of Hastings hailed this result on the first charge as a triumph; expecting that the next would undergo a like defeat, and that then, Burke would give up the prosecution in despair. But the prospects of the late governor-general were soon overclouded. The second charge was brought forward by Fox on the 13th of June, which charge related to the treatment of Cheyte Sing, Zemindar of Benares. On the previous occasion, Pitt had given a silent vote in favour of Hastings, and it was anticipated that he would act in the same maimer on the present. Popular opinion, however, was with Burke, and the minister seems to have had an idea that he should incur popular odium, if he persevered in crushing all his charges. After Fox, and Francis, the old enemy of Hastings, had spoken, therefore, he rose to state his views on the subject. In his speech, Burke, Fox, and Francis, all came in for a share of his reprobation; he accusing the two former of oratorical exaggeration and party misrepresentation, and the latter, with whom Hastings had fought a duel before their return to England, in which, Francis was dangerously wounded, of dishonesty and malignancy. This would seem to have indicated that Pitt would still take the side of Hastings, and the more so, because in the opening of his speech Pitt had declared that the late governor-general was justified in calling on Cheyte Sing for aid, both in money and men; that he was equally justified in fining him for his contumacy; and that his whole conduct during the insurrection at Benares called for the highest admiration and praise. So far, all was well; but he went on to say, that he thought the fines imposed were too great in amount, and that the conduct of Hastings had been too severe; and he concluded by asserting broadly, that the fine imposed on Cheyte Sing was exorbitant, unjust, and tyrannical, and that, therefore, he should agree to the motion before the house; although he did not thence consider himself pledged to a final vote of impeachment. Not one on the treasury-benches knew when Pitt

commenced, how he would vote, or what sentiments he would deliver, but they had fully expected that he would put his negative upon the motion, and were prepared to follow the same course. Mur-murings and whisperings were heard in some parts of the ministerial benches, and Mr. William Grenville, his bosom friend, Arden, the attorney-general, and Lord Mulgrave, ventured openly to differ from him; stating, that they could not, as honest men, think Hastings deserving of impeachment on this charge, or concur in the vote. Other members, however, were more pliant than these, and were prepared “to follow the great bell-wether,” lead he where he might, through flowery meads, or thickets and brakes. Even the amiable Wilberforce, who had hitherto thought that the conduct of Hastings was in part justifiable, and in part excusable; and Dundas, who had recently asserted that it was highly meritorious, and deserving the thanks of the court of Directors, now voted against him; and the motion was carried by one hundred and nineteen against seventy-nine. At this point, the prosecution of Hastings was stopped by the prorogation of parliament; it being found impracticable to go through the rest of the charges during the session.

As might be expected, the motives of the accuser of Hastings were canvassed by a discerning public; some condemning them as unjust, and others applauding them as immaculate. There is every reason to believe, however, that though Burke over-coloured his picture of the guilt of the arraigned governor-general, yet his motives were honest and pure. From the stories related of him, Burke had been led to believe that Hastings was little better than an incarnate fiend; and he seemed to fancy that he had a mission from heaven to redress the wrongs, and prevent the miseries of a large, but weak and oppressed portion of his fellow-creatures. The motives of Pitt, also, in voting against Hastings, on the second charge, were brought before the bar of the public. By the friends of the late governor-general, both in and out of the house, he was accused of a jealousy and fear of him, although it does not appear what he had to fear, or of what he had to be jealous, except it was of his official prerogative: Thurlow, the advocate of Hastings, having indiscreetly stated that he might have a peerage without the minister’s interference. But it would rather seem that Pitt was influenced in his conduct by apprehensions, that, if he supported Hastings indiscriminately, he should forfeit the popular favour, the general voice being against the accused. Nor did his majesty escape public censure on this occasion. While the Rohilla charge was pending, a packet arrived from India, which brought Hastings a diamond of great size and value, as a present from the Nizam of the Decean, who had acted a neutral part during the last war in the Carnatic, but who, as the company were victorious, was now anxious for British friendship. This diamond was presented to the king at a levee on the 14th of June, which was the very day after the decision of the house on the charge relative to the imposition of the fine on Cheyte Sing. This presentation was made at an unlucky moment, for it was interpreted by the public as a bribe to check the “impending vote.” Two nights after, when Major Scott called the attention of the house to some alarming intelligence which had been reported concerning Benares, and to some suspicious preparations which the French were making in the Mauritius, the witty Sheridan said that the only extraordinary news that had come to his ears, was the arrival of an extraordinary large diamond, which diamond was said to have been presented to his majesty at an

extraordinary period; and, which was also extraordinary, presented by an individual charged, by that house with high crimes and misdemeanors! The story of the diamond soon got abroad, and it formed the subject not only of public conversation, but of songs, pamphlets, epigrams, and caricatures. In one caricature, the king was represented with crown and sceptre huddled in a wheelbarrow, and Hastings wheeling him about, with a label from his mouth, saying, “What a man buys he may sell;” while in another the king was depicted on his knees, with his mouth wide open, and Hastings pitching diamonds into it. It seems to have been very generally believed at the time that there was no end to the diamonds possessed by Hastings, and that his majesty showed him favour for what he could obtain. And this belief was further strengthened by the fact that the queen, notwithstanding her known severity towards ladies whose virtue would not bear the test of examination, had yet received Mrs. Hastings—who had lived with the late governor-general before her marriage with him, and had been divorced from her former husband in consequence—at court most graciously. To account for this phenomenon, people fancied that the wife or the accused was a “congeries of diamonds and jewels:” and in truth Queen Charlotte did receive from her hands some few diamonds, and a splendid ivory bedstead, which seemed to justify their explanation of her conduct. Yet, after all, Hastings was no Sindbad: he did not roll in diamonds. On his return to England he did not bring home with him more than £130,000 sterling; a sum much less than the fortunes which had been made by other members of the council, and even by the patriotic Francis himself! Moreover, it is said, that he would not have had what he did in reality possess, had his wife not accepted presents which he refused, and saved money unknown to him, which he would have spent in the public service, or in support of his almost regal establishment.

ATTEMPT ON THE KING’S LIFE.

On the 2nd of August, an incident occurred which for a short time engrossed the attention of the public. As the king was alighting from his chariot at the garden-entrance of St. James’s palace, a decently dressed woman presented a paper to his majesty, and while he was in the act of receiving it, she struck at his breast with a knife. The king avoided the blow by drawing back, and as she was preparing to make a second thrust one of the yeomen arrested her, and wrenched the weapon from her hand. His majesty on recovering from his alarm, humanely remarked:—“I am not injured; take care of the poor woman, and do not hurt her.” On examination before the privy-council, it immediately appeared that she was insane. Being asked where she had lately resided, she answered in a frantic manner that “she had been all abroad since the matter of the crown broke out;” and when interrogated, What matter? she replied, “that the crown was hers, and that if she had not her right, England would be deluged in blood for a thousand generations.” The poor woman’s name was Margaret Nicholson, and ten days before she had presented a petition which was full of incoherent nonsense; and from which, if it had been read, the person of the petitioner would probably have been secured. The idea of prosecution was of course abandoned, and she was consigned to Bethlehem Hospital for life. But though it was evident that the woman was a maniac, her attempt led to a display of the affection which the nation entertained towards his majesty. A public thanksgiving

was ordered, and addresses of congratulation flowed in from all parts of the kingdom. His majesty felt this so deeply that he distributed the honour of knighthood, on the presentation of these addresses, with such a liberal hand, as to give rise to the bye-word of a “A knight of Peg Nicholson’s order!”

{GEORGE III. 1786–1787}

TREATIES WITH FRANCE AND SPAIN.

In the month of September his majesty appointed a new committee of council, for the consideration of all matters relating to trade and plantations, of which board Mr. Charles Jenkinson, now created Lord Hawkesbury, was appointed president. Under the auspices of this commission, a treaty of commerce was signed between the courts of England and France, on the 29 th of September, on the principle of admitting the commodities of each country to be freely exported and imported at a low _ad valorem_ duty. The chief negociator of this treaty was Mr. Eden, afterwards Baron Auckland, who, under the coalition administration, had filled the office of vice-treasurer of Ireland. This was the first memorable defection from that inauspicious alliance, and it was considered the more so because Mr. Eden was considered its original projector.

About the same time a convention was signed with Spain, which terminated the long-subsisting disputes respecting the British settlements on the Mosquito shore and the Bay of Honduras. By this treaty the Mosquito settlements were formally relinquished; and, in return, the boundaries of those on the coast and Bay of Honduras were somewhat extended. In a political point of view this convention answered a valuable purpose, by removing a source of national disputes; but it is to be regretted that the claims of humanity and justice were overlooked. The Mosquito settlers, who amounted to many hundred families, and who had from time immemorial occupied their lands, under British protection, were ordered to evacuate the country in eighteen months; nothing further being stipulated in their favour, than that the king of Spain should “order his governors to grant to the said settlers all possible facilities for their removal to the settlements agreed on by the present convention.” In all measures for the public good, the rights of private individuals should be regarded, but, by this treaty, they were manifestly sacrificed.

AFFAIRS OF THE PRINCE OF WALES.

During this year the affairs of the Prince of Wales attracted much notice. At its commencement he had formed an acquaintance with a widow lady of the name of Fitzherbert: a lady several years older than himself, but still possessing many personal attractions. They resided together at Brighton, and it was first supposed, and then asserted, that they were married according to the Romish ritual, and the story gained sufficient credence as to be subsequently noticed in the house of commons. The money spent in her support, and in orgies, and gambling, rendered the income which he possessed from the civil list, and the Duchy of Cornwall revenues, &c., amounting to £64,000 per annum, wholly inadequate to meet his expenditure, and the consequence was, that he had contracted debts to the amount of more than

£100,000, beside £50,000 expended on Carleton-house. The young prince had long incurred his majesty's displeasure for the countenance which he gave to the leaders of opposition, and to the Whigs in general; and this displeasure was deepened by his connexion with Mrs. Fitzherbert, and his extravagances. His majesty, indeed, was deeply afflicted by the conduct of the heir apparent, and his orgies were more particularly distressing to him, from the circumstance that they were carried on at a period when, at the prayer of Mr. Wilberforce and other pious gentlemen, he had issued a royal proclamation against vice and immorality, and all kinds of Swearing, drunkenness, and licentiousness. It is said that both the king and queen had many conversations with him on his dissipated conduct, and that the latter exerted a mother's influence to detach him from the Whigs, and especially from Fox, who stood the highest in his favour. All their exertions, however, were unavailing: he still drank and gambled, and still retained his connexion with Mrs. Fitzherbert and the Whigs. It is probable that had he listened to the advice and remonstrances of their majesties, that provision would have been made for the payment of his debts; but when it was found that he resolved to follow his own course, the king resolved that no assistance should be afforded him, either out of his own private purse, or by a vote in parliament. In the preceding session, when Pitt called the attention of the house to the civil list, Sheridan, who was the most constant companion of the prince, and was wont by his wit to set his table in a roar, took an opportunity of mentioning his patron's embarrassments, and Pitt replied that he had received no commands from his majesty on the subject, and therefore could not interfere. This was of bad omen to any application that might be made to his majesty on the subject, for Pitt doubtless knew that his majesty had resolved not to recommend its attention to the members of parliament. Nevertheless, though the prince knew of his father's estrangement from him, he afterwards sent Lord Southampton, his groom of the stole, to lay the state of his affairs before his majesty. Lord Southampton was graciously received; but the schedule of his royal highness's debts was too long to admit of a prompt reply, and he did not obtain any definite answer to his application. A month elapsed, and then the king informed his son by letter, that he could sanction neither a motion in the commons for the increase of his income, nor a motion for a grant to discharge his debts. For some time a plan had been recommended by his friends, the Whigs, for the dismissal of the officers of his court, and the reduction of the establishment of his household to that of a private gentleman; and this the prince now resolved to carry into effect. Coach-horses, race-horses, and saddle-horses were all sold; a stop was put to the works at Carleton-house; the state-apartments were shut up; the prince dismissed his officers; and he descended so low as to live like a private gentleman. By this step his estimated savings were £40,000 per annum; and this was to be set apart, and vested in trustees, for the payment of his debts. The act was a noble one if the motive was pure; but that demands a doubt. His majesty had before been declaimed against as parsimonious and harsh; and he was now represented as an unnatural parent and a merciless miser, who was hording up millions, which he had neither the taste nor the spirit to employ; while, on the other hand, the prince was held up as a living miracle of honour, and a martyr to his high principles and delicate feelings. The advisers of the young prince, doubtless, foresaw that this would be the consequence if he was compelled to make the sacrifice; and the prince himself could scarcely be a

stranger to their expectations. But though, for the honour of natural affection, he may be acquitted of the charge of wishing to bring his father into contempt, yet it seems clear he had an idea that by sinking into obscurity, and, by consequence, lowering the dignity of the high rank to which he belonged, he should obtain both an increase of income and a grant for the payment of his debts. But the event did not justify such an anticipation. All the members of his father's court attributed his act to childish spite and spleen, or to a malicious design of injuring the popularity of his majesty and his ministers; and when he wrote to the king, explaining his motives, it was replied, that if he chose to take a rash step, he must likewise take the consequences. His conduct, indeed, seems to have increased the distance which had too long subsisted between the prince and his father; for when he hastened to Windsor, on occasion of his majesty's escape from the attempt made upon his life by Margaret Nicholson, although he was received by the queen, the king refused to see him. But this may have arisen chiefly from his profligate connexions, which must have been exceedingly offensive to a mind of such moral and religious mould as his majesty possessed: a sacrifice made for the payment of debts could scarcely thus have acted upon honourable feelings, unless, indeed, the king looked upon it in connexion with his dissipated and gambling habits. This subject, however, in the dearth of more important, together with that of the impeachment of Hastings, formed the staple of public and private discussion; some taking part with the king, and some with the prince, as best suited their respective views or passions. It would appear that both Fox and Sheridan assured the prince that his popularity was so great, as to hold out a certain hope that a money-vote might be carried, despite his father and the chancellor of the exchequer; and that having gained his assent to the plan, great exertions were made to gain the support of the independent members of parliament, although they lacked the means of purchasing the votes of these said "independent members." In the meantime the Duke of Orleans, Philippe Egalité, who was one of the most intimate friends of the Prince of Wales, and had betted large sums of money with him this year at Newmarket and Epsom, offered to relieve his necessities by a loan of French money. The prince appears to have been inclined to accept the offer; but his Whig friends discovered it, and convinced him of its impropriety, as it had a perilous tendency of placing the future sovereign of England in a state of dependence on the House of Bourbon. But the Whigs in thus advising the prince, had a care for their own honour as well as his future interests: had they allowed him to take the money, no matter upon what conditions, an ill savour would have been brought upon their names as a party; a savour more odious than that which attaches itself to the memory of those patriots, in the days of Charles II., who touched the gold of Louis XIV.

CHAPTER XVI.

{GEORGE III. 1787–1789}

Meeting of Parliament..... Debate on the Treaty of Commerce between England and France..... Pitt's Plan of Financial Reform..... Motion for the Repeal of the Corporation

and Test Acts..... Affairs of the Prince of Wales..... Motion for Inquiry into the Abuses of the Post-Office..... Impeachment of Warren Hastings..... Parliament Prorogued..... Continental Affairs..... Meeting of Parliament..... Dispute between Government and the East India Company..... Pitt's Financial Measures—Additions made to the Bill for trying Controverted Elections..... Claims of the American Royalists, &c. The Slave-Trade Question..... Charge against Sir Elijah Impey..... Impeachment of Warren Hastings..... Parliament Prorogued..... Continental Alliances..... Derangement of His Majesty..... Meeting of Parliament..... Debates on the regency

{A.D. 1787}

MEETING OF PARLIAMENT.

Parliament met on the 23rd of January. During the preceding year Fredrick the Great passed off the stage of life, having previously involved the French and English governments in disagreements, concerning the troubles which still existed in the Netherlands. No mention was made of these disagreements and troubles in the king's speech; but his majesty dwelt much upon the treaty of navigation and commerce which, as before related, had been concluded with the French monarch. Against this treaty and its negociator, Mr. Eden, who had quitted their ranks, and now supported Pitt, the Whig opposition had a rooted aversion; and in the debate upon the address, Fox, whose professions of friendship towards the French were proverbial, not only censured the arrangements, but sounded the old trumpet of war and national hatred. He denounced Louis XVI. as a dangerous monarch; dwelt on the ambitious designs and encroaching spirit of France; blamed ministers for laying aside all jealousy of that power; and asserted that the court of Versailles was at that very moment labouring to counteract Pitt's diplomatists. But though Fox censured the French treaty, which formed the leading topic of the king's speech, he voted for the address, a circumstance for which he received a little banter from the lips of the minister. Pitt remarked:—"I am happy that, notwithstanding the vehemence with which the right honourable gentleman has argued against the address, he is ready to vote for it. I hope he will continue the same line of conduct throughout the session; for, if he makes a practice of voting in direct opposition to his own speeches and arguments, we may look for a greater degree of unanimity than could otherwise be expected."

DEBATE ON THE TREATY OF COMMERCE BETWEEN ENGLAND AND FRANCE.

In his speech his majesty promised that a copy of the treaty of commerce between England and France should be laid before the two houses; and recommended the members to take measures for carrying it into effect. In accordance with this promise and recommendation, on the 5th of February, Pitt moved that the house should resolve itself into a committee, to take into consideration that part of his majesty's speech which related to this treaty. This motion was carried; and on the 12th Pitt brought the subject before the house, and moved these three resolutions:—That all articles not enumerated and specified in the tariff should be importable into this country, on terms as favourable to France as to the most favoured of all other nations; that if any future treaty should be made with any other foreign power, in any

articles either mentioned or not mentioned in the present treaty, France should be permitted to enjoy the same terms as that power; and that all the articles specified in the tariff should be admitted into this country on payment of the duties, and with the stipulations stated in the treaty. In moving these resolutions Pitt entered into an eloquent vindication of the measure, enforcing its object, spirit, and provisions. He expressed his abhorrence of the maxim, that any nation was destined to be the natural and unalterable enemy of the other; it was a libel on the constitution of political societies, and supposed the existence of infernal malignity in human nature. In most of our wars, he said, France had been the aggressor; but her assurances and frankness in the present negociations were such as to entitle her to a return of confidence. Even from the recent American war Pitt deduced arguments in favour of the treaty with France; reflecting that though she had gained her object in dismembering our empire, she had done it at an expense which had sunk herself in extreme embarrassment, he thought that she was sincere in her wish for the benefits of a mutual connexion. These benefits were represented by opposition to preponderate on the side of France; but Pitt endeavoured to show that if the scales were held with an even hand, the weightiest would be on our side. He remarked, “It would be ridiculous to imagine that the French would consent to yield advantages without any idea of compensation. The treaty would undoubtedly benefit them, but it would be still more profitable to us. France might gain, for her wines and other articles, a large and opulent market; but we should procure the same to a much greater extent for our manufactures. Both nations are prepared and disposed for such a connexion. France, by the peculiar dispensation of Providence, was gifted, perhaps, more than any country on earth, with what made life desirable, in point of soil, climate, and natural productions: Britain, on the contrary, possessing these advantages in a less degree, had, from the happy freedom of its constitution and the equal security of its laws, risen to a state of great commercial grandeur, and acquired the ability of supplying France with the artificial conveniences of life in return for her natural luxuries.” Many objections were brought against this treaty by the opposition; Fox distinguishing himself on this occasion by his hostility to its several provisions. In his speech Fox re-asserted that France was the natural and unalterable enemy of England; and that she ought to be considered, not only as a rival, but as a nation with whom there ought never to be any political or commercial connexion whatever. Fox, also, again spoke of the restless ambition of France, and denounced the character of the French monarch with great bitterness. Like Pitt, he alluded to the American war; but it was only to heap coals of fire on the heads of Louis XVI. and his subjects. He accused them of treachery and duplicity; pointed out the mean way in which they had taken advantage of our difficulties, and to revive the national animosity existing between the two nations; and he reaffirmed that no doubt could be left on the mind of any thinking man, but that the French nation was actuated by a regular, fixed, and systematic enmity to this country: she might have changed her policy, but there was no proof that she had changed her sentiments. But though some plausible objections were suggested by members of opposition against this measure, the only topic on which they insisted with any advantage, and, in truth, the only real difficulty respecting the execution of the treaty, arose from its inconsistency with the celebrated Methuen treaty, concluded between Great Britain and Portugal, by which

the duties of Portuguese wines imported into England were in future to be only two-thirds of those imported from France or any other country. This point, however, was conceded by France during the progress of the measure, the duty on French wines being lowered to that existing on the wines of Portugal, which latter it became necessary to reduce. After several discussions, in which some young members distinguished themselves, the measure received the concurrence and sanction of parliament. On the 8th of March both houses presented a joint address to his majesty, for concluding a treaty calculated to promote a beneficial intercourse between the two countries, as well as the permanent blessings of peace. On the whole, the measure tended to increase Pitt's popularity; many great commercial towns, which had hitherto been hostile to him, declared their entire approval of the treaty, and expressed a conviction that he was seeking the good of his country.

PITT'S PLAN OF FINANCIAL REFORM.

Encouraged by his success and increased popularity, on the 26th of February, Pitt introduced a plan for consolidating the various duties upon articles in the customs and excise, so as to convert them into single duties upon each article, and thereby get rid of multiplied grievances to the people, and of a perplexing confusion of accounts, and wasting expenses of collection to the government, an operation by which the revenue would gain about £20,000 per annum. At the same time Pitt proposed to lower the duties on foreign spirits, with a view of annihilating the smuggling trade, which he stated amounted to 4,000,000 of gallons annually; whilst that which was legally imported and paid duty did not exceed the sixth part of that quantity. The whole of Pitt's plan obtained a large majority in both houses; the leading members of opposition expressing their approbation of it, as well as the clearness and perspicuity with which it had been unfolded. On a subsequent day, the 29th of April, when Pitt opened his budget, he informed the house that the state of the revenue would enable him to provide for all services of the current year, and apply the stated surplus to a sinking-fund, without the necessity of any loan or new tax. Fox and Sheridan contended that the finances were not in so prosperous a condition as he had represented; and after specifying certain supposed errors and fallacies, they called on the minister to supply the alleged deficiency by the imposition of new taxes. Pitt, however, defended his own estimates; contending that it was his duty to render, by every possible means, the taxes already established more productive, rather than increase the burdens of the people. In following out this judicious line of policy, he afterwards proposed a measure for enabling the board of treasury to divide the country into districts, and to farm the duty on post-horses, the greater part of which was now lost to the exchequer by collusion between innkeepers and collectors. To make it certain that the revenue would not suffer by this experiment, he suggested that the tax for each district should be put up at the highest point it had ever reached. This was opposed as contrary to the principles of the constitution, and as tending to oppression, like that exercised in France, where the taxes were generally farmed. Pitt, however, defended the measure by the analogy of turnpike-tolls and cross-posts, and by showing that the oppression alluded to arose, not from the system of farming, but from an arbitrary form of government, which naturally led to oppressive modes of collection. The bill passed the commons by a large majority, and was carried in the

upper house without a division.

MOTION FOR THE REPEAL OF THE CORPORATION AND TEST ACTS.

Great exertions had recently been made by the Protestant dissenters, to show the public the injustice of that policy which restricted eligibility to office by a religious test. Pamphlets had been written by able pens, and when it was found that they had produced their intended effect, delegates were appointed to arrange a plan, and it was determined to bring the subject before parliament. The dissenters, moreover, thought the present a favourable opportunity for seeking relief from their disabilities, because in the late general election they had, as a body, warmly espoused the ministerial cause. On the 28th of March, therefore, Mr. Beaufoy, member for Great Yarmouth, himself a dissenter, and a friend of the minister, made a motion for taking into consideration the repeal of the Corporation and Test Acts, as things grievous to a large and respectable portion of Society. His general arguments, with those of Fox, who ably supported the motion, were, that the Test Act was not originally intended to operate against Protestant Dissenters, but to prevent the intrigues and influence of the popish party; that the dissenters deserved well of the nation, and especially of his majesty’s family, of whom from the Revolution, they had been the most zealous supporters; that every man having a right to judge for himself in matters of religion, he ought not, on account of the exercise of that right, to incur any punishment, or be branded with any marks of infamy; and that the exclusion from military service and civil trusts was both a punishment and an opprobrious distinction. The house, however, was not disposed to take a liberal view of this great question. Lord North and Pitt, who took the lead in opposing the motion, argued, that the acts in question were meant to include both Papist and Protestant dissenters, and that the Corporation Act in particular was professedly made against dissenters, and not against Papists, though it eventually included both. The preservation of the Corporation and Test Acts, they further argued, was essential to the preservation of the constitution. Yet, by a strange anomaly of sentiment, Pitt declared, in flattering and explicit terms, the esteem and regard which he felt for the Protestant dissenters, who had ever approved themselves genuine and zealous friends of constitutional liberty, of which their conduct during the late political conflicts had given a memorable proof. Pitt, however, was resolved to preserve the union, of church and state inviolate, and it was on this ground chiefly that he opposed the motion, which was lost on a division, by one hundred and seventy-eight against one hundred. The dissenters were much disappointed and chagrined at the conduct of Pitt on this occasion, for it was generally supposed by them, that if he did not support them, he at least would not have discountenanced their efforts. It is probable, however, that Pitt himself was in reality in their favour, but at court a conscientious, and therefore insuperable hostility existed against such a measure, and a determination on his part to force it through parliament, would doubtless have led to his dismissal. Moreover, as there were many important interests involved in his administration, he may have been led to conclude that the time was not yet arrived for so bold an enactment.

AFFAIRS OF THE PRINCE OF WALES.

On the 20th of April, Alderman Newnham rose to ask the chancellor of the exchequer whether he intended to bring forward any proposition, for extricating the Prince of Wales from his embarrassing situation; and having received a reply in the negative, he gave notice of his intention to bring the subject before the house on the 4th of May. On a subsequent evening, Pitt requested the alderman to inform the house more particularly of the nature of the motion he intended to make; at the same time holding out a threat, apparently with the object of preventing it being brought forward. Nothing daunted, however, on the 27th of April, Alderman Newnham stated, that the motion he intended to make would be to this effect:—"That an humble address be presented to his majesty, praying him to take into consideration the present embarrassed state of the affairs of the Prince of Wales, and to grant him such relief as his royal wisdom should think fit, and that the house would make good the same." An interesting conversation followed this announcement, in which Alderman Newnham was entreated to withdraw his motion, as being pregnant with inconvenience and mischief. Pitt observed, that by his perseverance he should be driven to the disclosure of circumstances which he should have otherwise thought it his duty to conceal; and Mr. Rolle, member for Devonshire, asserted that the investigation of the question involved matter by which the constitution both in church and state might be essentially affected. Fox, Sheridan, and other members in the confidence of the prince, declared that he wished for a full and impartial investigation of his conduct, and Mr. Rolle was called upon to explain the extraordinary language he had used. Rolle was silent on this occasion; and on the 30th of the month, when Alderman Newnham again brought the subject before the house, by stating that his royal highness wished him to persevere in his design, Fox called the attention of the members to his mysterious declaration. Looking Rolle full in the face, he said that he wished he had spoken more explicitly; but he supposed he alluded to a certain low and malicious rumour, a supposed marriage; a thing which not only had not happened, but which was even impossible. Rolle acknowledged that his allusions had reference to this rumour, and Fox then contradicted the report in the most unqualified language: the fact, he said, not only never could have happened legally, but never did happen in any way whatsoever, and had, from the beginning, been a base and malicious falsehood. Fox said, that he had direct authority from his royal highness for his declaration; and then another of the prince's friends called upon Rolle to declare to the house that he was satisfied with these explanations. This he refused to do, and Sheridan rose and observed, that such a line of conduct was neither candid nor manly, and that the house ought to come to a resolution, that it was seditious and disloyal to propagate reports injurious to the character of the Prince of Wales. At this point Pitt interposed, by declaring that Sheridan's, and not Rolle's conduct was unparliamentary: adding, that those who exhibited such warmth ought rather to acknowledge their obligation to a gentleman who suggested a question which produced such an explicit declaration on such an interesting subject; a declaration which must give entire satisfaction not only to him, but to the whole house. Alderman Newnham still persisted in his intention to bring forward his motion, but Pitt seems to have considered that after such a declaration he had no further pretext for refusing the relief which the prince required. The result was, that an interview took place at Carlton-house between the premier and the prince, and the

motion was withdrawn. Subsequently a message was delivered from the king to the house on the subject, which was followed by an addition to his annual income of £10,000 out of the civil list; an issue of £161,000 from the same source, for the payment of his debts; and £20,000 more on account of the works at Carlton-house. In making the declaration, however, which led to this result, Fox appears to have gone beyond the strict limits of his commission. Mrs. Fitzherbert continued to live with the prince, and she alleged, and her friends also alleged for her, that he knew that there had been a private marriage that was good and binding, _in foro conscientiæ_, whatever it might be by act of parliament. The lady would never speak to Fox again, and it is said, that she was only reconciled to the prince by his assurance that something should be done or said in parliament to save her reputation, by those very friends who had emphatically denied the marriage. Something was said by Sheridan, but he did not venture to unsay what had been said, or to affirm more than that another person who had been alluded to was without reproach, and was entitled to the truest and most general respect. With this Mrs. Fitzherbert seems to have been satisfied; and the society in which she moved, which was composed of persons that had great influence and almost absolute dominion over the world of fashion, seems to have considered her character and reputation as spotless as they were before. But thus much is certain, that, if the prince and Mrs. Fitzherbert were married, it was not legally. It is said that a ceremony was performed _more Catholico_ in the town-house of her uncle, Lord Sefton; but if this report is true, such a marriage was expressly declared to be null and void by the law of the country. The terms of the Royal Marriage Act, moreover, “is explicit against such a marriage, and it is a matter of wonder how Mrs. Fitzherbert, who was not an inexperienced boarding-school girl, but a woman of experience, having been twice married before ever she met the prince, could have been led into the belief that her union with the prince was legal. Neither a Catholic priest, nor a Protestant clergyman, nor the functionary at Gretna Green, could make such a union binding, for the laws of the country could not be thus set aside. Conscience may have been satisfied, but after all, the marriage—if marriage there was—was both irregular and illegal.

MOTION FOR INQUIRY INTO THE ABUSES OF THE POST-OFFICE.

On the 15th of May, Mr. Grey called the attention of the house to certain abuses and corrupt practices in the post-office, which, he said, had come to his knowledge, in consequence of the dismissal of his noble relative, the Earl of Tankerville, from the office of joint-postmaster-general. After stating some very extraordinary circumstances which had been brought to light by this dismissal, and charging Lord Carteret, the present postmaster-general, the Earl of Tankerville’s late colleague in office, with sanctioning the abuses which existed, and refusing to reform them, Grey moved, “that a committee be appointed to inquire into certain abuses in the post-office.” Pitt gave his assent to this motion, which was carried without a division: a committee was appointed, and a report was brought up from that committee on the 23rd of May. The report contained some startling matter, and it was ordered to be taken into consideration on the 28th of the above month. On that day Mr. Grey accordingly introduced the consideration of the report, in doing which he strongly reprobated the conduct of Lord Carteret, and blamed Pitt himself. He concluded his

speech with moving, ‘“That it appears to this house that great abuses have prevailed in the post-office, and that, the same being made known to his majesty’s ministers, it is their duty, without loss of time, to make use of such measures as are in their power to reform them.” The post-office was defended by Pitt and Lord Maitland, the latter of whom moved, first, the previous question, and then that the report should be put off for three months, both of which motions were carried without a division. The debate on this question was not only remarkable for the awkward disclosures concerning the practices in the post-office which were thereby elicited, but for the personalities in which honourable members indulged; especially Pitt, Fox, Grey, and Sheridan. The effect produced out of doors by it were very prejudicial to Pitt and his party, for the report of the committee went to show that great abuses existed, and yet all inquiry was nipped in the bud by a ministerial majority. To have sustained his character as a reformer of abuses, Pitt ought, certainly, to have acted firmly in the matter; but instead of this he chose to attribute the part which Mr. Grey had taken to his youth and inexperience. Pitt himself was only twenty-eight years of age, and after he sat down, Sheridan rose, and in a merry mood ridiculed the gravity with which an unmerited reproof had been bestowed upon his friend, by “the veteran statesman of four years’ experience; the Nestor of twenty-eight!”

IMPEACHMENT OF WARREN HASTINGS.

During the previous debates, Burke had not been idle with his impeachment of Hastings. On the first day of the session he gave notice that he should resume proceedings on the 1st of February. It was not, however, till the 7th of that month that any other direct charge was entered into; and then Sheridan brought forward that which related to the resumption of the jaghires, and the confiscation of the treasures of the Begums, or Princesses of Oude, the mother and grandmother of the reigning nabob. Imperfect records of the brilliant speech which Sheridan uttered on this occasion, and which occupied five hours in the delivery, now remain, but of its force some faint idea may be formed, by the following brief extract. The orator remarked:—“The conduct of Mr. Hastings, respecting the Nabob and Begums of Oude, comprehends in it every species of human offence. He has been guilty of rapacity, at once violent and insatiable; of treachery, cool and premeditated; of oppression, unprovoked; off barbarity, wanton and unmanly. So long since as the year 1775, the Begum princess, wife of Sujah-ul-Dowla, wrote to him in the following terms:—‘If it be your pleasure that the mother of the late nabob, that myself, his other women, and his infant children, should be reduced to a state of dishonour and distress, we must submit: but if, on the contrary, you call to mind the friendship of the late blessed nabob, you will exert yourself effectually in favour of us, who are helpless.’ But inflamed by disappointment at Benares, he hastened to the fortress of Chanar, to put in execution the atrocious design of instigating the nabob, son of this princess, to matricide and plunder. No sooner had Mr. Hastings determined to invade the substance of justice than he resolved to avail himself of her judicial forms, and despatched a messenger for the chief-justice of India to assist him in perpetrating the violence which he meditated. Without a moment’s pause, or the shadow of process instituted, sentence was pronounced; and thus at the same time, when the sword of government was converted into an assassin’s dagger, the pure ermine of justice was

stained and soiled with the basest contamination. It was clear to demonstration that the Begums were not concerned in the insurrection of Benares. No: their treasures were their treason. If the mind of Mr. Hastings were susceptible of superstition, he might image the proud spirit of Sujah-ul-Dowla looking down on the ruin and devastation of his family; beholding the palace which he had adorned with the spoils of the devoted Rohillas, plundered by his base and perfidious ally; and viewing the man whom on his death-bed he had constituted the guardian of his wife, his mother, and his family, forcibly exposing those dear relations, the objects of his solemn trust, to the rigour of the merciless seasons, or the violence of the more merciless soldiery. Such were the awful dispensations of retributive justice. It was not given to that house to witness the tremulous joys of the millions whom the vote of that night would save from the cruelty of corrupted power. But the blessing of the people thus delivered would not be dissipated in empty air. No: they would lift up their prayers to heaven, in gratitude to the power, which, by stretching its mighty arm across the deep, bad saved them from ruin and destruction." This subject was peculiarly favourable to a display of that impassioned eloquence in which the orators of antiquity so much excelled, when acting as public accusers; and it is universally agreed that Sheridan's speech was incomparably the best of its class that had ever been delivered in the British senate. Its power was seen in its effects. When the orator sat down, all, or nearly all in the house, both members, peers, and strangers, joined in a tumult of applause, and clapped their hands as though they were in a theatre. This was exceedingly irregular and indecorous, but it shows that Sheridan had enlisted the feelings of his audience on his side. So manifest were the effects which it produced, that Sir William Dolben, a friend of Hastings, foreseeing a conviction if the house divided in the midst of such excitement, moved that there should be an adjournment. Pitt was in favour of this motion; but Fox, who wished for a division as much as Sir William Dolben feared it, objected, and reminded gentlemen that it was still "only midnight." He remarked:—"It is obvious that the speech just delivered has made no ordinary impression; and I see no reason why we may not come to the question. If any friend of Mr. Hastings should wish to attempt effacing the impression, this appears to be the proper time for doing it." Major Scott, in reply, stated that he could convict Sheridan of gross misrepresentation of facts, and professed his willingness to proceed if it was the pleasure of the house; but Pitt interposed, and an adjournment took place at one o'clock in the morning. The debate was resumed on the morrow by Francis, the most bitter enemy Hastings had in the house, and who heightened the picture which Sheridan had so forcibly drawn. Major Scott replied, and used some powerful arguments on behalf of the accused. The most powerful was that with which he concluded his speech. He observed:—"One fact no man can doubt; namely, that the sum procured from the princesses of Oude could not have been raised from any other source. And, without that supply, we might now have been debating here how Mr. Hastings should be impeached—not for saving, but for losing India." Scott's speech made some impression on the house, but it was of no avail, inasmuch as Sheridan had succeeded in convincing Pitt that Hastings was guilty. Pitt said that he had compared the charge minutely with the evidence; that he was ready to concur with the motion; and that he thought himself bound to vote with Sheridan. The conduct of Hastings in authorising the resumption of the jaghires, and

seizure of the treasures of the princesses was, in his opinion, unjustifiable; and the crime was aggravated by making the son the instrument of robbing his mother, and by refusing to revise his proceedings, in obedience to the orders of the directors. Pitt's explicit declarations made conviction certain, and though some members of administration looked blank and disappointed, upon a division Sheridan's proposition was carried by one hundred and seventy-five against sixty-eight.

Some days were again employed in the examination of witnesses touching affairs with the Nabob of Ferruckabad; after which, on the 2nd of March, this fourth charge was opened by Mr. Pelham. In it Hastings was accused of withdrawing his protection from that prince, in consequence of having received a present of £100,000 from the Vizier of Oude; and of being the primary cause of that cruel oppression, which the nabob for many years had suffered from the vizier, under whom he held his dominion. The debate on this subject was very dry, but it was rendered remarkable by a new advocate of the accused, in the person of the veteran sailor, Admiral Hood, who had maintained the honour of the British flag in the late war. Hood argued that great allowance ought to be made for persons in high and responsible situations; they frequently finding themselves compelled to act in a manner not strictly consonant with the rules of equity and justice. With honest simplicity Hood illustrated his argument by his own delinquency. When in the West Indies, he said, his fleet was in extreme distress for want of bread, and he obtained a supply by resorting to means which the law did not authorize. "Those acts," he continued, "were indispensable to the preservation of my ships and my men; yet, if the government had not stood between me and legal prosecutions, I should in all probability have been condemned to linger out the remainder of my days in prison." Hood said that he considered the eminent services and merits of Hastings outweighed his errors and delinquencies, and expressed his fears lest any censure or punishment of him, might operate as a check on the exertions of future governors and commanders. He added:—"I am an old man: at my time of life I can entertain no expectation of being again employed on active foreign service; but I speak for those who come after me. My regard for my country makes me anxious to prevent a precedent by which all her services for the future would be greatly impeded; this I am confident will be the effect of punishing any harsh and severe, but perhaps necessary, stretches of power, which the saviour of India may have been found to have committed." It was thought that if Hood had advocated the cause of Hastings at on earlier stage of the proceedings, he might have stopped them with such arguments altogether; but, as it was, it only served to draw declarations from Pitt which left Hastings no other hope than that of an acquittal in Westminster-hall. Pitt said that he should have given a silent vote on the question before the house, but he felt himself called upon to answer the argument used, lest the weight of his lordship's authority on such subjects might mislead the judgment of the committee. For himself he must ever prefer what was right to what was expedient. At the same time Pitt admitted, that if a servant of the public should carry his exertions beyond the strict line of right, or even of necessity, all due merit should be allowed him, and the abundance of his zeal should be allowed as an atonement for the irregularity of his actions and the error of his judgment. But, he asked, was the conduct of Hastings correspondent to such a principle? Was the crime that day

alleged against him justified by necessity? Was it of such a size and complexion as could be justified by any necessity? Wherever a departure was made from justice and right, it was not sufficient to say that such a step was necessary; the party must prove the necessity, and this, in his opinion, had not been done. With regard to the merits of Hastings, he confessed, there had been a period in which such an argument might have been urged with effect. At the commencement of the proceedings, the house might have weighed his crimes against his virtues, and considered whether the latter were of sufficient excellence to counterbalance the former. Such a consideration, however, could not with any propriety be entertained after the inquiry had once been instituted: the committee were not then required to determine on a general view of facts, the general merits or demerits of the accused, but on the investigation of a particular transaction, on the criminality or innocence of that single transaction. Still Pitt admitted that there remained a stage, in which the merits of the accused might and ought to be weighed against his failings; which time, he said, was, when in case of conviction on the charges alleged against him, he came to receive sentence. Pitt concluded by saying, that, with respect to the particular charge under discussion, Hastings had clearly convicted himself of criminality, and by contending that the deed admitted of no plea of necessity. Upon a division the motion was carried by a majority of one hundred and twelve against fifty.

The charge relating to abuses, for selfish purposes, in contracts and salaries, was opened on the 15th of March, by Sir James Erskine, who endeavoured to show that Hastings had made both corrupt and improvident bargains for providing bullocks, elephants, &c.; that he had grossly favoured individuals that were devoted to his will, and useful in his designs, at the expense of the company; and that he had been guilty of abuses in the opium contracts. As usual, Major Scott defended the accused, and entered with great minuteness into the particulars of the charge; but on a division the motion was carried by sixty against twenty-six.

The affair relative to Fyzoola Khan, the Rohilla chief, who retained possession of Rampore in Rohilicund, was brought forward on the 22nd of March, by Mr. Wyndham. The eloquence and nice metaphysics of Wyndham’s speech were much admired, but he evidently misstated some of the facts and bearings of the case. Major Scott proved this to demonstration; but on a division, the motion was carried by ninety-six against thirty-seven.

The seventh charge, relating to the corrupt receiving of bribes and presents, was opened by Mr. Sheridan on the 2nd of April. It was clear that Hastings had been singularly indifferent as to riches for his own use yet the orator imputed to him the grossest corruption and most ravenous greed for money. He remarked:—“He is changeable in every thing but corruption; there, and only there he is systematic, methodical, immutable. His revenge is furious as a tempest, or a tornado; but his corruption is a monsoon; a trade-wind, blowing uniformly from one point of the compass, and wafting the wealth of India to the same port, in one certain direction.” In his speech, however, in indulging his wit and irony, Sheridan gave vent to some sallies, which showed that he was convinced that Hastings had not received the presents for himself, but for his employers. Describing the accommodating morality

of the court of directors, and their correspondence with the governor-general, he remarked that it might be thus condensed:—“Forasmuch as you have accepted presents, we highly disapprove of your conduct; but inasmuch as you have applied them to the credit side of our account, we exceedingly approve your conduct.” Major Scott again defended Hastings; but on this occasion Lord Mulgrave and Mr. William Grenvilie, who had before differed from Pitt, spoke very strongly against the accused, and condemned his conduct as highly criminal, and Scott himself conld not deny the facts alleged against him. Many members, indeed, who had supported Hastings on the other charges, voted against him in this, and on a division the motion was carried by one hundred and sixty-five against fifty-four.

Though two charges remained to be discussed, the house now resumed, and the report of the committee was brought up by the chairman. It was moved that the report “be now read the first time;” but it was suggested by Pitt that the charges considered should be referred to a committee, in order that they might select the criminal matter out of them, and frame it into articles of impeachment. Pitt suggested this plan, that he, with other members, might be left to deliver their votes freely on the grand question. He wished it to be understood, he said, that he only went to a certain length, and that he could not join in a vote of impeachment, which might seem to countenance the whole of each several accusation. After some objections on the part of Fox, this suggestion was agreed to, and the report was then turned over to a committee, for the purpose which Pitt proposed. In the meantime, on the 19th of April, Francis opened the eighth charge, which related to the management of the revenues of Bengal. Much had been recently said of the personal hostility which Francis entertained towards Hastings, and he commenced his speech by disclaiming such a feeling, and by asserting that his animosities were all of a public, and not of a private nature; after which he entered into an elaborate discussion of the charge, enumerating the different modes which Hastings had adopted of managing the revenues in question. Major Scott replied to Francis, and on this occasion Pitt defended the accused; but upon a division the motion was carried by seventy-one against fifty-five. The committee appointed to frame articles of impeachment from the first seven resolutions of the house were..... Burke, Fox, Sheridan, Sir James Erskine, T. Pelliam, Wyndham, St. John, J. Ansturther, Welbore Ellis, Michael Angelo Taylor, W. Adam, Sir Grey Cooper, Philip Francis, F. Montague, Mr. Grey, Sir Gilbert Elliot, Dudley Long, Lord Maitland, Colonel North, and General Burgoyne. On the 25th of April, Burke, as chairman of this committe, presented six articles of impeachment, which were forthwith read for the first time, and ordered to be printed, and to be taken into consideration on the 9th of May. On that day, accordingly, it was moved that the articles of impeachment should be read a second time, which motion gave rise to a long debate. Hastings was again warmly defended by Lord Hood, who went over his previous arguments, and implored the house to recollect that whatever errors the accused had committed, he had, notwithstanding, saved the most valuable possessions of the British empire. On this occasion, also, Hastings was defended by Wilkes, who had almost veered round to the opposite point of the political compass from that at which he had started in early life, and who made one of the most effective speeches that had been delivered on the subject. Wilkes moved an

amendment that the report should be read a second time that day three months; and he was followed and supported by Nathaniel Smith, chief secretary to the court of directors, Alderman Thompson, and Islay Campbell, lord advocate, the latter of whom reviewed the whole subject, both as a lawyer and a statesman. Other members, also, expressed their dissent to an impeachment; and Mr. Burgess produced an address, just received from the British officers now commanding in India, in which they all bore testimony to the excellent character, high abilities, and important services of the late governor-general. All the exertions of the friends of Hastings, however, proved unavailing. At a late hour Pitt delivered his authoritative opinion; and he having declared that it was impossible for him to vote against the motion, and that the house could no otherwise consult its own honour, its duty to the country, and the ends of public justice than by sending the impeachment to the lords; the motion was carried by a majority of one hundred and seventy-five to eighty-nine. The first article was then read, and agreed to without a division, and the rest were all passed with some trifling amendments on the following day. Burke then rose and moved, “that Warren Hastings, Esq., be impeached of high crimes and misdemeanors upon the said articles.” This, after some observations made by Mr. Sumner—who had been in the company’s service in India—complaining of the virulence with which the house prosecuted Hastings, was carried without a division; and Mr. F. Montague, one of the committee of managers, next moved, “that Mr. Burke, in the name of the house of commons, and of all the commons of Great Britain, do go to the bar of the house of lords, and impeach Warren Hastings, Esq., late Governor-general of Bengal, of high crimes and misdemeanors, and do acquaint the lords that the commons will, with all convenient speed, exhibit articles against him, and make good the same.” This motion was also agreed to without a division, and Burke forthwith performed his commission; and on the next day, the 11th of May, he reported to the house what he had done, and proposed that Messrs. Wallis and Troward should be retained, to act as solicitors for the impeachment on the part of the commons. Nothing further was done till the 14th of May, when Burke brought forward the last charge, in which he accused Hastings of being the cause of all the distresses which had afflicted the province of Oude, a charge that was voted unanimously. It was expected that Burke would rest here for the present session; but on the 21st he moved, “that Warren Hastings, Esq., be taken into the custody of the sergeant-at-arms of this house.” This was agreed to and done; and the sergeant-at-arms delivered him into the custody of the gentleman-usher of the black rod, by whom he was conducted to the bar of the lords. On the motion of the lord chancellor, however, he was admitted to bail—himself in £20,000, and two sureties, Mr. Sullivan and Mr. Sumner, in £10,000 each—and he was ordered to deliver in an answer to the articles of impeachment in one month from that time, or upon the second day of the next session of parliament. On the same day, the seventh article of impeachment being presented to the house by Burke, was ordered to be carried up to the lords; and on the 23rd, thirteen more articles were presented to the commons, which were subsequently carried to the upper house.

{GEORGE III. 1787–1789}

PARLIAMENT PROROGUED.

The session was closed on the 30th of May, when the king, in his speech, commended the measures taken by parliament respecting the reduction of the national debt, and the treaty of navigation and commerce with the most christian king. His majesty spoke of the general tranquillity of Europe; but lamented the unhappy dissensions which prevailed in the United Provinces.

CONTINENTAL AFFAIRS.

At this time the attention of government was particularly called to the troubled state of Holland. The dissensions which had long subsisted between the stadtholder and the states had arisen to an alarming height, and demanded the interposition of foreign powers. The French were favourable to the States of Holland; but, on the other hand, the cause of the stadtholder was warmly espoused by the King of Prussia in conjunction with Great Britain. Frequent skirmishes took place between the Orangists and the democrats ef Utrecht; and in the midst of these contests, the Princess of Orange, who had more courage than her husband, the stadtholder, set eff from Nimeguen for the Hague, accompanied by only a few domestics, with a view of negociating with the States-general. It is thought that the King of Prussia recommended this journey, with a view of drawing from it some plausible ground of interfering in behalf of the House of Orange, and if he did, it fully answered his purpose. The princess, who was of the royal house of Prussia, advanced as far as Schoonhoven where she was surrounded by a party of armed burghers, who conducted her to a small town, there to await the further will of those who governed the democrats. Commissioners soon arrived from head-quarters; and they not only refused her permission to proceed to the Hague, but conducted her back to Schoonhoven as a prisoner. She remained there two nights and a day, when, after experiencing insolent treatment from the soldiers who had her in custody, she was directed to return to Nimeguen. While a prisoner the princess had written letters to her brother, the King of Prussia; and on hearing of the insult offered to her, his rage knew no bounds. He insisted that immediate satisfaction should be made, and exemplary punishment inflicted on those who had committed the outrage; declaring at the same time, in some public manifestoes, that this cause was in itself sufficient to justify an armed intervention. The States of Holland, however, cherishing a hope that the French, who had led them on, would not abandon their cause, passed a resolution, justifying and approving the conduct of their commissioners in the arrest of the Princess of Orange; and plainly told Frederic William, in their reply to his demand, that the object of the princess in going to the Hague was to create a civil war, and that there had not been any real insult or injury. At the same time the States-general acknowledged the justice of the King of Prussia’s complaint, and stated that they had made repeated applications to the States of Holland upon the subject, but which had been disregarded. Still determined upon obtaining satisfaction, Fredric William, by his ambassador at the Hague, now demanded that the States of Holland should write a letter of apology to the princess; should punish, at her requisition, those who had been guilty of the offences offered to her august person; should declare that their suspicions about her object in going to the Hague were unfounded; should revoke the resolutions which they had voted; and should accompany this revocation of the resolutions with an invitation of her royal highness

to come to the Hague, for the purpose of entering into negociations in the name of the stadtholder, her husband, for the adjustment of all differences. The States of Holland were not in a condition to withstand a Prussian army, but still hoping for aid from the court of Versailles, they refused to accede to these humiliating terms, and issued their orders for laying the country under water, so soon as any Prussian troops should make their appearance on the frontiers. Thus braved, the king of Prussia issued his mandate for war with the refractory states. And in this he was countenanced by the English government. Although nothing at this time could have been less agreeable to Pitt than the prospect of a war, his heart being set on economical reforms and financial arrangements, yet the reduction of the United Provinces to a state of dependence on France, as was menaced by the French court, was not to be endured, and he therefore entered cordially into the policy of the Prussian monarch. As the friends of the house of Orange were in want of money, Pitt supplied them with a loan, without the authority of parliament; and he offered to the States-general, through our ambassador at the Hague, the mediation of the British government, for the restoration of their legitimate government under the authority of the stadtholder. But Pitt’s offers of mediation were rejected, and the oligarchical party applied for assistance to France. The court of Versailles made a regular notification to that of St. James’s of its intention to aid the States-general, and the British minister replied that in such a case England would take an active part in favour of the stadtholder. Pitt, indeed, engaged the Landgrave of Hesse Cassel to furnish 12,000 troops, if they should be required, and at the same time sent dispatches, both by sea and land, to Bengal and Madras, directing the governors of those provinces, in case of war, to attack the French possessions in India and to seize the Dutch settlements in the name of the stadtholder. His prompt measures had the effect of overawing the court of Versailles, and being likewise distracted by its own financial embarrassments, it was under the mortifying necessity of abandoning those designs on the United Provinces, which had long been among its most cherished projects. In the meantime, on the 13th of September, the Duke of Brunswick, who commanded the Prussian forces in the contiguous duchy of Cleves, entered Holland at the head of 20,000 troops. The Dutch had boldly defied the King of Prussia, but their consternation at this event was extreme, and the country seemed everywhere unprepared for resistance. Utrecht surrendered to the Duke almost as soon as summoned; Gorcum, Dordt, Schoonhoven, and other towns in his route, tamely submitted to him; and Amsterdam, which alone made any show of resistance, after a fortnight’s siege, was captured. So rapid were his successes, that the proud republic of Holland, which had maintained a contest of eighty years against the power of Spain, and which repulsed the attacks of Louis XIV., when in the zenith of his glory, was in the course of one month overrun by the troops of the conqueror. The result was, that the stadtholder was not only reinstated in his former privileges, but gratified with new, and that the ancient forms of government were re-established. Tranquillity being restored, the Duke of Brunswick withdrew the main body of his forces from Holland, leaving 4,000 only for the security of peace, and the protection of the stadtholder. About the same time an amicable arrangement was effected between the courts of England and France, by which it was agreed to discontinue warlike preparations on both sides, and to place the navy of each kingdom on the

peace establishment. War, therefore, was averted; Pitt was left to pursue his measures of reform undisturbed, and the court of Versailles to consider its financial embarrassments. But in Holland this triumph of the Orangists did not put an end to the disaffection that prevailed throughout the country; on the contrary, it facilitated the conquest of the United Provinces by the revolutionary army of France.

MEETING OF PARLIAMENT.

Notwithstanding the affairs on the continent were brought to a happy termination, it was deemed expedient to re-assemble parliament much earlier than had been usual for some months past. It met on the 27th of November, and the speech from the throne expressed great satisfaction that the disputes in the United Provinces, which not only threatened their constitution but affected the security and interests of the British dominions, had been so happily arranged. His majesty entered into a detail of the negociations which had taken place; after which he made some remarks on the flourishing state of the revenue, and the advantages that might be expected from the continuance of peace. The addresses were agreed to _nem. con._, in both houses. Fox acknowledged that if it were possible for him on the present occasion to refuse his concurrence with the sentiments conveyed by his majesty’s speech, or to oppose the motion, he should commit an outrage against all those principles and opinions by which his political career had been uniformly marked. Fox also expressed his warmest approbation of the energetic conduct of ministers in preventing France from interfering in the affairs of Holland, and said, that it was his unalterable opinion, that this country ought, whenever occasion required, to take a vigorous part in preserving the balance of power in Europe. Yet, though Fox might be sincere when he uttered these sentiments, he soon showed that he was still as hostile as ever to ministers. Two nights after he moved for an address to his majesty, that he would direct copies, or extracts from any notification made by the court of France of the intention of the most Christian king to interfere in the affairs of Holland, to be laid before the house; and he now contended that ministers had incurred unnecessary expenses, as the King of France never had any intention of an armed interference. This motion was negatived without a division, but on the 5th of December, when Pitt moved that a sum not exceeding £36,093 should be granted to the Prince of Hesse Cassel for the year 1788, Fox again cavilled, by insisting that further information was necessary, and that it was essential to show how these Hessian troops were to be employed. Burke showed himself more noble than his friend Fox on this occasion, for though he expressed a hope that no notion was entertained of introducing foreign troops into this island, he made no strong objection to the subsidy proposed, and he warmly commended the measures which had been pursued with respect to Holland, and congratulated ministers on their having renewed our connexions with that country. Pitt’s motion was agreed to unanimously. On the 10th of December a long debate took place on the subject of an augmentation of forces, which was proposed by the secretary-at-war, but the views of ministers were adopted by a large majority, and 3064 additional land-troops were voted. Money was also voted for erecting fortifications in some of the West Indian islands, which had seriously felt the want of them during the late war. These measures were followed by a debate on the numerous promotions which had recently been made in the navy. Sixteen captains

had been created admirals during the summer, while a much greater number had been passed over in silence and neglect. This excited great discontent, and opposition endeavoured to show that great partiality had been displayed, and a motion was made in the house of commons, “That the house should resolve itself into a committee to inquire into the conduct of the admiralty in the business of the promotion.” This motion was negatived; but subsequently, after the Christmas recess, the subject was renewed in both houses, in the course of the debates on which the conduct of Lord Howe, the first lord of the admiralty, became the subject of severe censure, and he resigned in disgust both with ministers and parliament. He was succeeded by Pitt’s elder brother, the Earl of Chatham.

DISPUTES BETWEEN GOVERNMENT, AND THE EAST INDIA COMPANY.

{A.D. 1788}

During the late disputes, when a rupture with. France was anticipated, government had dispatched four regiments of soldiers for the protection of our East India territories; and when the disputes were settled, it was determined to render this addition to the military establishment a permanent measure. The court of directors had acceded to the proposal when originally made by the board of control, and had consented that the troops should be conveyed in their ships and maintained at their expense. When, however, an amicable arrangement had taken place with France, and all danger was over, the directors changed their sentiments, and contended that unless they themselves made the requisition, they were by Lord North’s bill of 1781, relieved from the obligation-of maintaining any troops that might be sent to India. In this opinion several eminent lawyers, whom they had consulted, appeared to coincide. On the other hand, Pitt, supported by the crown lawyers, asserted that the act of 1784 transferred to the board of control all powers formerly vested in the court of directors, relative to military and political concerns, as well as the collection and application of the revenues. It was contended on the part of government, indeed, that those parts of the act of 1781 which were inconsistent with those of the act of 1784, were, by the latter, virtually, if not actually repealed. Inconsequence of these disputes, on the 25th of February Pitt moved for leave to bring in a bill for removing the doubts in question, and for declaring that the intention of the legislature, in the act of 1784, was agreeable to the construction put upon it by the board of control. In support of his motion Pitt said, that “in his mind nothing could be more clear than that there was no one step that could have been taken previous to passing the act of 1784, by the court of directors, touching the military and political concerns of India, and also the collection, management, and application of thes revenues of the territorial possessions, that the commissioners of the board of control had not now a right to take, by virtue of the powers and authority vested in them by the act of 1784.” Dundas went even further than Pitt in support of the motion, for he declared, that the board of control might, if it chose, devote the whole revenue of India to the purpose of its defence, without leaving the company a single rupee. Leave was given to bring in the bill, without a division, but in all its stages, when introduced, it met with a formidable opposition. Among the objections raised against it, it was stated,

that if passed, an army might be established in India without the knowledge or consent of parliament. In order to obviate this, Pitt proposed to add a clause, limiting the number of troops for the payment of which the board of control were empowered to issue orders. It was further urged as an objection, that the board might apply the revenues of India for the creation of undue influence, to the prejudice of the company's interests, by the increase of salaries or perquisites, to prevent which Pitt proposed two other clauses, prohibiting gratuities, unless recommended by the directors; and stopping all increase of salary, unless proposed by the directors, and submitted to parliament. Pitt added a fourth clause, directing that the directors should lay annually before Parliament an account of the produce of all their revenues, and of all their disbursements. By these clauses every real objection to the bill was obviated; but resistance was still made to it, and the third reading was only carried by a majority of fifty-four, which, at this period, was considered a very small majority. The bill encountered a violent opposition in the house of lords, also; but it was finally carried by a majority of seventy-one against twenty-eight. Sixteen peers signed a long and powerfully-expressed protest, representing the bill as friendly to corrupt intrigue and cabal, hostile to all good government, and abhorrent to the principles of our constitution.

PITT'S FINANCIAL MEASURES.

Pitt proposed his budget for the year, on the 6th of May. In doing so he expressed great satisfaction at the flourishing state of our finances; stating, that although some extraordinary expenses had been incurred by the events of last year, yet, such was the improved condition of the revenue, that it afforded means of providing for all the services which had been voted, without any loan or new taxes, and without the slightest interruption to the action of the sinking-fund. This he proved by a statement of figures, and although Sheridan attempted to controvert his statements, they could not be proved fallacious. Of all men in the house, indeed, Sheridan was the most unfit to enter into financial computations, for his genius rather lay in rhetoric than in figures. In the supplies, 18,000 seamen were voted, and about 29,000 land-forces, beside those that were on foreign service.

ADDITIONS MADE TO THE BILL FOR TRYING CONTROVERTED ELECTIONS.

During this session Mr. Grenville proposed and carried certain amendments and additions to his father's hill, for better regulating the trial of controverted elections. The principal of these related to the interruption of public business, by frivolous petitions, to obviate which the election committee were empowered to adjudge that a party prosecuting or supporting any such petition should pay reasonable costs. By these amendments, also, a rule was laid down for re-establishing the rights of election, and rendering them immutable.

CLAIMS OF THE AMERICAN ROYALISTS, ETC.

At the conclusion of peace, commissioners had been appointed to inquire into the losses of the American loyalists, and during this session Pitt submitted to the house a plan of liquidation. The loyalists were divided by him into three classes: those who resided in America at the beginning of the war, and from motives of duty to their

sovereign had abandoned their estates and property; those who at the commencement of the war had been resident in England, and consequently had not been driven from America; and those who having enjoyed places or exercised professions in America, were compelled to leave that country by the war. Pitt rested their claims on the ground of national generosity and compassion, rather than of strict justice; and he proposed to pay to the two first classes the whole of their claims, if they did not exceed £10,000 and beyond that sum, to deduct from them a _per centage_, greater in the case of the second class than in the first; and to the third class he proposed to allow pensions, proportionate to the incomes which they had relinquished; those whose incomes had not exceeded four hundred pounds, receiving one half, by way of annuity. A sum amounting to about £1,340,000 was voted for this purpose. Pitt also, with the entire concurrence of the house, settled the case of the East Florida claimants, who had been obliged to quit their habitations and property, when their country was ceded to Spain. As their losses had arisen from the voluntary act of government, Pitt thought that they should be indemnified for their losses, and the sum of £113,952 was voted to them. Another measure of mercy was a bill for granting to the Earl of Newburgh, grandson of Charles Radcliffe, beheaded in 1746, for his share in the rebellion of 1715, a clear rent-charge of £2,500 out of the estates forfeited by the said Charles Radcliffe, and his brother James, third Earl of Derwentwater, who forfeited his life on the same account in 1710, which estates had been settled upon Greenwich Hospital. This bill afforded great relief to an amiable and deserving nobleman.

THE SLAVE-TRADE QUESTION.

During the present reign several petitions had been presented to parliament on the subject of the slave-trade; some praying for its total abolition, and others for a more humane treatment of the African slaves in the West Indian islands. The honour of first taking up this cause of humanity in England, as well as in America, belongs to the Society of Friends, a society which is ever ready to exert its influence for the good of mankind. By degrees, however, the subject was taken up by men of all creeds and classes; orators, poets, and prose writers exposed the iniquity of trafficking in the bones and sinews of men, and by this time a general feeling existed in favour of the oppressed sons of Africa. A society was now formed, indeed, and a considerable sum of money raised, with a view to collect information on the subject, and to support the expense of an application to parliament for the total abolition of the slave-trade; great exertions being necessary to insure success, because it was foreseen that self-interest would oppose a powerful barrier to the proposed emancipation. Among those who exerted themselves in this holy cause were Mr. Thomas Clarkson, Mr. Ramsy, Mr. Thornton, Mr. Granville Sharpe, Lady Middleton, and Mrs. Bouverie, the two former as writers on the subject, and the remainder as labourers in procuring converts and subscriptions in the principal towns of England. The great champion of the cause, however, was the philanthropic and warm-hearted Wilberforce, the bosom-friend of the premier. Mr. Wilberforce seems to have been impressed with the idea that this work, with the reformation of manners, were the two great objects of his life; and to the suppression of the slave-trade he resolved to devote his whole parliamentary career. As might be expected, Wilberforce endeavoured to bring Pitt over to his

cause; and he so far succeeded—his persuasions also being aided by thirty petitions which had, during this session, been laid on the table—as to induce the minister to issue a summons to certain members of the privy-council, to examine, as a board of trade, the state of our commercial intercourse with Africa. This privy-council was soon engaged in hearing witnesses; some on the part of the African merchants, who endeavoured to prove the necessity and humanity of the slave-trade; and others on the part of the London committee, who as earnestly laboured to show its abomination and iniquity. In the meantime Mr. Wilberforce undertook to bring forward a motion in the house of commons on the subject; and as he was a member for one of the greatest counties in the kingdom (Yorkshire) and an admirable speaker, his party were sanguine as to his success. Before Wilberforce could carry out his intentions, however, he fell ill, and was obliged to retire to Bath. The question stood thus; when, on the 9th of May, Pitt, being solicited by his friends, and by Granville Sharpe, and the London committe, moved the following resolution:—“That this house will, early in the next session of parliament, proceed to take into consideration the circumstances of the slave-trade complained of in the petitions presented to the house, and what may be fit to be done thereupon.” Pitt added, that before the next session the inquiry instituted by the privy-council would be brought to a conclusion, the result of which might facilitate their investigation; and he pledged himself to submit the question to the house, if his friend should still be unable to undertake the task. Burke and Fox, in reply, expressed great concern at the delay, and severely reprobated the inquiry carried on before the privy-council, contending that it ought to have taken place before the house, whose duty it was rather to advise the king than to ask or wait for his advice. Both declared that they were willing and prepared to have taken up the question themselves; and stated that they had given way to Wilberforce from deference to his abilities and known humanity, and on account of the influence he possessed with Pitt and the rest of the ministry. Pitt’s motion was carried unanimously; but Sir William Dolben, in the course of the debate, urged that the sufferings of slaves on their voyage from Africa to the West Indies required immediate attention; and on the 21st of May he moved for leave to bring in a bill for the better regulation of their transportation. The picture which Sir William Dolben drew of the sufferings of the slaves on ship-board forcibly exhibited the horrid nature of the traffic. He represented them as chained together hand and foot, with only a space of five feet and a half in length, and sixteen inches in breadth, allotted for each slave; and being thus crammed together, putrid disorders and other dangerous diseases were generated, so that when the overseers came in the morning to examine the freight of human misery, he had to unchain the carcases of the dead from the living. To prevent this, Sir William proposed that no ship should be allowed to carry more than one slave to each ton of her burthen or register, or that a ship of three hundred tons should carry as many slaves and no more. This was, in point of fact, legislating for the slave-owners, inasmuch as the regulations would have the effect of decreasing the rate of mortality; yet as blind to their own interest as they were hardened in cruelty, petitions were presented against the proposed measure by the merchants of Liverpool, Bristol, and London, who stated that it would inflict upon themselves great injuries. They prayed to be heard at the bar of the house, which prayer was granted; but the facts reluctantly drawn from those who were brought

forward in support of the present system, were so decisive against it, that the friends of the bill declined calling any counter-evidence. Indignant at the disclosures which were made, indeed. Pitt proposed a clause, rendering every slave-ship which had already sailed from England, subject to the regulations of the bill; and stated that he should think it proper to despatch a quick-sailing vessel, with copies of the act, to the coast of Africa, that they might not have a plea of ignorance to offer for the infringement of its rules. At the same time Pitt said, he trusted the house would make compensation to the merchants who might receive any pecuniary loss by the bill; an object which he thought was of no consideration when the interests of humanity were so intimately concerned. Pitt also proposed another clause, granting certain bounties to owners and surgeons of ships in which the mortality should not exceed two or three during the voyage; a clause which was intended to excite greater attention to the preservation of the slaves. With these additions the bill was carried through the commons in all its stages by considerable majorities. It also passed the lords; but it was there strenuously opposed by Admiral Lord Rodney, Lord Chancellor Thurlow, Lord Sidney, and the Duke of Chandos. The bill, which was to continue in force till August, 1783, by which time it was hoped something more would be done in favour of the slaves, received the royal assent on the 11th of July. The triumph served as an encouragement to the philanthropists to persevere in the cause of humanity; and from this time the number of their converts and their means daily increased.

{GEORGE III. 1787–1789}

CHARGE AGAINST SIR ELIJAH IMPEY.

Early in this session it was determined to impeach Sir Elijah Impey, chief-justice of the supreme court established at Calcutta, by the Regulating Act of 1773, Six articles of impeachment were accordingly exhibited to the house by Sir Gilbert Elliot, who supported them by a long and impressive speech, in which he professed to describe the career of the accused from his first arrival at Calcutta, down to his recall by a resolution of the house of commons. The articles which he produced related to the trial and execution of Nuncomar; to the conduct of Impey in a cause called the Patna cause; to an extension of jurisdiction, illegally and oppressively, beyond the intention of the act and charter; to the Cossijurah cause, in which this extension of jurisdiction had been carried out with great violence; to the acceptance of the office of judge of the Sudder Dewannee Adaulut, which was affirmed to be contrary to law, repugnant to the spirit and act of the charter, and subversive of all its material purposes; and to the affairs in Oude and Benares, where it was declared the chief-justice became the agent and tool of Hastings. At the suggestion of Pitt, these charges were ordered to be printed, and then referred to a committee of the whole house; which committee was to take them into consideration on the 4th of February. When that day arrived, a petition was presented from Sir Elijah Impey, praying to be heard in answer to the charges, before the house proceeded any further; and the prayer being granted, he was called to the bar for that purpose. His defence was very long and conducted with great ability, embracing every point on which he was charged. It produced a deep and lasting impression on the house, and Pitt was heard to declare that had he been

placed in the same situation, he could not say but that he should have acted precisely as the accused had done. It was evident that the prosecution would soon be dropped, and it was rendered still more clear by the evidence taken at the bar of the house. This evidence was all taken by the 28th of April, on which clay Sir Gilbert Elliot began his reply to the defence, which was not finished before the 9th of May. Sir Gilbert moved, in conclusion, a resolution importing that the first charge had been made good, which was supported by Fox, Burke, and Colonel Fuliarton, and controverted by Sir Richard Sutton, Mr. D. Pulteney, the attorney and solicitor-general, and the chancellor of the exchequer. Upon a division, the motion was lost by a majority of seventy-three against fifty-five; and on the 27th of May, the day appointed for the committee to sit again, upon the usual motion that the speaker do now leave the chair, it was opposed by the attorney-general, and negatived without a division; and the further consideration of the charges was adjourned to that day three months. The prosecution of Sir Elijah Impey was now closed, for the other charges were never taken into consideration.

IMPEACHMENT OF WARREN HASTINGS.

In the meantime the impeachment of Hastings had been carried on with great activity. In the early part of this session the commons had appointed a committee of management for his impeachment, and on the 13th of February his trial commenced with every solemnity that the forms of official dignity could impart. The trial took place in Westminster-hall, which was fitted up with great magnificence for the occasion; benches, stages, and boxes were erected, and the old grey walls were hung with scarlet. All the magnates of the land were assembled at this trial; either to take part in the proceedings, or to act as mere spectators.

The first two days of the trial were occupied in the arrangement of ceremonials. When all were seated the sergeant-at-arms made proclamation, and called upon Warren Hastings, Esquire, to appear in court. Hastings advanced, accompanied by his two bail, Sullivan and Sumner, and the sergeant-at-arms again made proclamation, that whereas charges of high crimes and misdemeanors had been exhibited by the house of commons, in the name of themselves, and of all the commons of Great Britain, against Warren Hastings, Esq., all persons were to take notice that he now stood upon his trial, that they might come forth and make good the said charges. Hastings was then addressed by the Lord Chancellor Thurlow in the following terms:—“Warren Hastings, you stand at the bar of this court charged with high crimes and misdemeanors, a copy of which has been delivered to you: you have been allowed counsel, and a long time has been given you for your defence; but this is not to be considered as a particular indulgence to you, as it arose from the necessity of the case; the crimes with which you are charged being stated to have been committed in a distant place. These charges contain the most weighty allegations, and they come from the highest authority. This circumstance, however, though it carries with it the most serious importance, is not to prevent you from making your defence in a firm and collected manner, in the confidence that, as a British subject, you are entitled to, and will receive full justice from a British court.” To this address Hastings replied:—“My lords, I am come to this high tribunal equally impressed with

a confidence in my own integrity and in the justice of the court before which I stand." After this the clerks of the court proceeded to read the charges and answers, which occupied the remainder of this day and the whole of the next; and when this was completed, Burke, on the 15th of February, as the head of the committee of managers, opened the impeachment by a speech which lasted four days. He commenced by the following observations:—"My lords, the gentlemen who have it in command to support this impeachment of Mr. Hastings, have directed me to open the cause with a general view of the grounds on which the commons have proceeded in their charge against him. They have directed me to accompany this with another general view of the extent, the magnitude, the nature, and the effect of the crimes which they allege to have been committed. They have also directed me to give an explanation of such circumstances preceding those crimes, or concomitant with them, as may tend to elucidate whatever is obscure in the articles. To those they have wished me to add a few illustrative remarks on the laws, customs, opinions, and manners of the people who are the objects of the crimes which we charge on Mr. Hastings." In following out the course prescribed him, Burke in turns charmed, excited, and terrified his audience, and produced all the effects attributed to the most successful orators in the days of antiquity. His appeals to the feelings and passions of his auditory were much too frequent, especially as those parts of his speech were derived from the tales of the enemies of Hastings; tales that were amplified and exaggerated, either by private malevolence or by oriental hyperbole. Apart from this grand error, however, Burke's speech was one of the finest that was ever delivered in the English language. Parts of it were "soberly sublime," exhibiting a wonderful range of knowledge, a high statesman-like philosophy, and a fine spirit of Christian philanthropy. His arguments were enforced with great acuteness, and were so powerful as almost to convince Hastings himself that he was a guilty man. "For half an hour," said the accused, "I looked up at the orator in a reverie of wonder; and, during that space, I actually felt myself the most culpable man on earth; but I recurred to my own bosom, and there found a consciousness that consoled me under all I heard and all I suffered." The excitement which was produced by Burke's speech operated upon all that heard him; ladies fainted in the galleries, and the inflexible face of the Lord Chancellor Thurlow was several times seen to quiver with emotion. In pronouncing his preoration on the fourth day, the orator raised his voice to such a pitch as seemed to shake the walls and roof of Westminster Hall. He exclaimed,—"Therefore it is with confidence that, ordered by the commons, I impeach Warren Hastings Esq., of high crimes and misdemeanors. I impeach him in the name of the commons of Great Britain, in parliament assembled, whose trust he has betrayed. I impeach him in the name of all the commons of Great Britain, whose national character he has dishonoured. I impeach him in the name of the people of India, whose laws, rights, and liberties he has subverted, whose properties he has destroyed, whose country he has laid waste and desolate. I impeach him in the name of human nature itself, which he has cruelly outraged, injured, and oppressed in both sexes, in every age, rank, situation, and condition of life. And I conjure this high and sacred court to let not these pleadings be heard in vain." As soon as the agitation, which Burke's speech and accusation gave rise to, had subsided, a debate ensued respecting the manner in which the defence should be conducted. It was finally

decided, in opposition to the wish of the managing committee and the opinions of their counsel, that, according to the usual practice in trials, the prosecutor should complete his case before the accused commenced his defence. Accordingly, Fox, after making some complaints against this decision, opened the Benares charge down to the expulsion of Cheyte Sing, which was followed up and completed by Mr. Gray. After this the evidence was brought forward, and the whole was summed up by Mr. Anstruther on the 11th of April. The court did not meet again till the 15th of April; when Mr. Adam opened the next charge, relating to the Begums of Oude, which was continued and completed by Mr. Pelham. The evidence on this charge was summed up by Sheridan; on which occasion he made another grand display, though, it is said, not equal to that which he made on the same subject in the house of commons. As on the former occasion, his speech abounded with tropes and figures; and his performance attracted a fuller audience than had yet assembled in the hall. It lasted three whole days; but only a few fragments of his speech are extant, and scarcely any one of those in existence convey any notion of the fascination which, it is said, that his oratory exercised over those who heard him. One of the most beautiful portions of his speech related to the correspondence of the governor and his agent. It reads thus:—“When I see in many of these letters the infirmities of age made a subject of mockery and ridicule; when I see the feelings of a son treated by Mr. Middleton as puerile and contemptible; when I see an order given from Mr. Hastings to harden that son’s heart, and to choke the struggles of nature in his bosom; when I see them pointing to the son’s name and to his standard, while marching to oppress the mother, as to a banner that gives dignity—that gives a holy sanction and reverence to their enterprise; when I see and hear these things done; when I hear them brought into three deliberate defences set up against the charges of the commons, my lords, I own I grow puzzled and confounded, and almost begin to doubt whether, where such a defence can be offered, it may not be tolerated. And yet, my lords, how can I support the claim of filial love by argument? much less the affections of a son to a mother, where love loses its awe, and veneration is mixed with tenderness. What can I say on such a subject? What can I do but repeat the ready truths which, with the quick impulse of the mind, must spring to the lips of every man on such a theme? Filial love! the moral of instinct, the sacrament of nature and duty, or rather let me say, it is miscalled a duty, for it flows from the heart without effort, and is its delight, its indulgence, its enjoyment. It is guided, not by the slow dictates of reason; it awaits not encouragement from reflection or from thought; it asks no aid of memory; it is an innate, but active consciousness of having been the object of a thousand tender solicitudes, a thousand waking, watchful cares of meek anxiety and patient sacrifices, unremarked and unrequited by the object; it is a gratitude founded on a conviction of obligations, not remembered, but more binding because not remembered—because conferred before the tender reason could acknowledge, or the infant memory record them; a gratitude and affection which no circumstances should subdue, and which few can strengthen; a gratitude in which injury from the object, though it may blend regret, should never breed resentment; an affection which can be in creased only by the decay of those to whom we owe it, and which is then most fervent, when the tremulous voice of age, resistless in its feebleness, inquires for the natural protector of its cold decline. If these are the general sentiments of man, what must be their

depravity—what must be their degeneracy—who can blot out and erase from the bosom the virtue that is most deeply rooted in the human heart, and twined, within the cords of life itself? Aliens from nature! Apostates from humanity! And yet, if there be a crime more fell, more foul; if there be anything worse than a wilful persecutor of his mother, it is that of a deliberate instigator and abettor to the deed; this it is that shocks, disgusts, and appals the mind more than the other; to view, not a wilful parricide, but a parricide by compulsion; a miserable wretch, not actuated by the stubborn evils of his own worthless heart, not driven by the fury of his own distracted brain, but lending his sacrilegious hand, without any malice of his own, to answer the abandoned purposes of the human fiends that have subdued his will. To condemn crimes like these we need not talk of laws or of human rules; their foulness, their deformity does not depend on local constitutions, on human institutes, or religious creeds; they are crimes, and the persons who perpetrate them are monsters, who violate the primitive condition on which the earth was given to man; they are guilty by the general verdict of human-kind." Sheridan concluded his speech by an appeal to British justice, which, as it is preserved to us, is a mere sonorous roll of words, with a common-place meaning; after which he acted a stage-trick; as if fainting, he fell back into the arms of his friend Burke.

This was the last charge against Hastings that came before the court in Westminster Hall during the present session. In the house of commons, however, there was much discussion concerning the money issued from the exchequer, for the discharge of the expenses incurred in the impeachment. Mr. Burgess moved that an account of all the money expended should be laid before the house; and, though opposed by the managing committee, who said they considered the motion as made merely as an attempt by the friends of Hastings to vex and impede the committee in the prosecution, it was carried, and an account of the expenses was laid upon the table. But this account was incomplete; and Mr. Burgess had to make three other motions before the particulars of the expenditure were clearly brought before the house. In all these motions he was supported by Pitt, who declared he thought it necessary that the house should know how the money was spent, and have the power of checking the expenditure if they thought it in any case unnecessary. It seems to have been suspected that many men were making a profitable affair of the impeachment; and it must be confessed that the conduct of the managers, in resisting the inquiries, seemed to justify that suspicion. Their grand argument against the motion was, that such a measure as giving an account of the expenditure, was unprecedented, and had never been attempted nor dreamed of in any great prosecution. They stated that the charges already incurred in employing counsel were remarkably moderate, and that the fees were, in fact, inadequate to the services performed. They even argued, that if more money had been spent, more good would have been done, as they could then have procured "secret services," which they thought very necessary in such a case. These were unfortunate arguments, as they left an impression on the minds of many, that some, at least, engaged in the prosecution for what they could get by it. On the other hand, it is possible that some members wished to impede the operations of the committee, and to favour Hastings by cutting off, or, at least, greatly reducing their resources. Even after all his motions

were carried, Mr. Burgess expressed a doubt whether the house had really authorised the managers to employ counsel; whether there was any precedent for it; and whether the assistance of counsel was necessary. Pitt did not go thus far; but he questioned whether two civilians, besides ordinary counsel, were required. The whole debate, indeed, seems to show that there was an anxiety among certain members in the house to benefit Hastings, by encouraging doubts and insinuations against his prosecutors; which doubts and insinuations were the more regarded, because two of them, at least—Fox and Sheridan—did not enjoy any high reputation as regards money matters. It would have been very ungracious of the house, however, if, after giving the managing committee a commission to conduct the prosecution, it had left them to pay the expenses of that prosecution out of their own pockets. This was not done; but the discussions which took place on the subject of the expenditure had the effect of keeping down the growth of the law expenses, by drawing public attention to them, and by establishing the rule, that the solicitors should continue to present, from time to time, an account of all money spent in the prosecution. Had this rule not been laid down, the cost of this prosecution would probably have been enormous; and, as it was, they must have been great, for the expenses already amounted to £4300, exclusive of the erections in and decorations of Westminster Hall. The expenses which Hastings had incurred was much greater; and yet of twenty charges only two had been heard; and he then had to make his defence.

PARLIAMENT PROROGUED.

Parliament was prorogued on the 11th of July, by a speech from the throne, in which his majesty complimented the two houses on their attention and liberality. The king mentioned that the Emperor of Germany had joined the Empress of Russia in a war against the sultan; and he referred to treaties into which he had entered with the King of Prussia and with the States-general of the United Provinces, which he trusted would be productive of the happiest results both to England and to all Europe.

CONTINENTAL ALLIANCES.

The treaties to which his majesty alluded had been concluded early in this year. That between England and Holland embraced a mutual guarantee of dominions; a security for the existing form of government in the United Provinces; and regulations by which the commerce of each country was placed on the footing of the most favoured nations. The treaty between the kings of Great Britain and Prussia was one of defensive alliance; in which, besides the usual articles of mutual agreement, the contracting parties bound themselves to act at all times in concert, for the maintenance of the security, independence, and government of the United Provinces. The object of these treaties was not so much to preserve the balance of power in Holland against the influence of France, as to secure that country from any attempts which might be made against it by the Emperor of Germany and the Empress of Russia, whose forces were now banded together. It was supposed that the object of the alliance of the Austrian and Russian courts was conquest and aggrandizement; a supposition which seemed confirmed by their known characters, and by the war which they were carrying on against the Ottoman empire. From France, at this period, there was now nothing to fear, for it was a house divided against itself, and

was, therefore, incapable of either disturbing the peace of her neighbours, or of rendering them any assistance in case of attack from any other quarter. But out of the weakness of France arose the necessity of opposing a barrier against the dangerous alliance which had been formed between the two imperial courts; for it was imagined, that if successful in their war with the sultan, they would afterwards direct their hostile and ambitious views to other parts of Europe.

DERANGEMENT OF HIS MAJESTY: DEBATES ON THE REGENCY.

When the king prorogued parliament he appeared to be in his usual good state of health, but shortly after he became indisposed, and was advised by his physicians to try the mineral waters of Cheltenham. During his residence at Cheltenham his health greatly improved, but in the month of August, when he returned to Windsor, his disorder took an unfortunate turn, for symptoms of mental derangement appeared, which gradually increased, till he was no longer capable of attending to public business. His madness was also accompanied by a bilious fever, from which, for several days, his life was despaired of, as well as his reason. This event affected all classes, and caused great consternation at court and in the cabinet; it also gave rise to intrigue and strife among contending parties.

MEETING OF PARLIAMENT.

Parliament stood prorogued to the 20th of November, and six days before, circular letters were issued, requesting the attendance of members on that day. The peers and members being assembled, the state of the king’s health was formally notified to them, in the upper house by the lord chancellor, and in the commons by Pitt. In both houses a motion of adjournment to the 4th of December was made, in order to see whether his majesty’s disorder was likely to be of long continuance, which motion was carried _nem. con._

In the mean time the leaders of both parties busied themselves in intrigue and deliberation. Neither party, however, were yet clear as to the steps they should pursue, for the varying opinions of the physicians were calculated to perplex their minds, rather than to serve as a guide to their conduct. It was necessary that some decisive information should be obtained before the meeting of parliament, and therefore, on the 3rd of December, a privy-council was held at Whitehall, for the purpose of examining the physicians. The result of the opinion of the physicians was, that his majesty was incapable of attending to business; that, judging from experience in similar cases, there was a fair prospect of his recovery; but that the time when that event would take place was uncertain. Parliament reassembled on the following day, when this report was presented to the lords by Earl Camden, and to the commons by Pitt. In both houses it was represented by ministers that the functions of government were suspended; that in this dismembered state of the legislature the right devolved on the two houses of parliament, to make such provision as should be adequate to meet the case; but that it was necessary, before any step could be taken in such a delicate business, that the extent of the deficiency should be fully ascertained. It was moved by Lord Camden in the lords, and by Pitt in the commons, that the report should be taken into consideration on Monday, the 8th

of December, which was agreed to; but doubts were expressed in the commons, whether the house could proceed upon a mere report, and whether they ought not rather to examine the physicians themselves at their own bar, or by means of a committee. Pitt replied, that the case required great delicacy, and that the report of the physicians was made upon oath, which the house of commons had not the power to administer. Fox agreed with Pitt, in the propriety of proceeding with delicacy; but, he added, “if delicacy and duty should happen to clash, the latter ought not to be sacrificed to the former.” Nothing further, however, was said at this time on the subject, and after deciding that the speaker was competent to issue writs for new elections, to supply the places of some members who had died during the recess, the house adjourned to the time above mentioned.

About this time the royal family removed to Kew, for the greater convenience of the king’s medical attendants, and as the malady continued without abatement, the Rev. Dr. Willis, who had quitted his clerical functions, and devoted himself with great success to the cure of insanity, was called in to undertake the principal and constant charge of his majesty. When parliament reassembled on the 8th of December, Pitt related these circumstances, and conceiving that it would materially serve his cause, he himself now moved for a committee to examine the physicians who had attended the king during his illness. This motion was carried without a division, and a committee of twenty-one was appointed, Pitt, himself, being their chairman. A similar motion was made and carried in the upper house, and a committee of peers was appointed for the same purpose. The report of the committee was presented by Pitt in the commons on the 10th of December, which was favourable to the king’s ultimate recovery; and after it was ordered to be printed, the premier, whose object it was to delay decision on the subject of the regency, moved that another committee should be appointed, to inspect the journals for precedents of such proceedings as had been adopted in former instances, when the sovereign authority was suspended by sickness, infirmity, or any other cause. This called forth the opposition of Fox, who objected to the motion as nugatory and productive of unnecessary delay. Pitt knew well, he said, that there were no precedents which applied to the present case. He contended that all that was requisite for their decision had been done by the report just laid on the table; a report by which the incapacity of the sovereign had been fully ascertained. Fox then advanced, as a proposition deducible from the principles of the constitution and the laws of hereditary succession, that whenever the sovereign was incapable of exercising the functions of his high office, the heir-apparent, if arrived at maturity, had as indisputable a claim to the exercise of the executive authority, in the name and on the behalf of the sovereign, during his incapacity, as in the case of his natural demise. In advancing such a proposition as this Fox committed a great blunder, for by it he became the advocate of prerogative, in opposition to the rights of the people. Pitt instantly perceived his error, and he took the utmost advantage of it, by taking up the cause which Fox had suddenly deserted. With an appearance of patriotic indignation, Pitt declared that the assertion which Fox had made was little short of treason against the constitution; insisted that the heir-apparent had no more right, in the case alleged, to the exercise of the executive power than any other person in the realm; and asserted that it belonged to the two remaining branches of

the legislature to make such provision for supplying the temporary deficiency as they should think proper. He asked, when the regular exercise of the powers of government was from any cause suspended, to whom could the right of providing a remedy for the existing defect devolve, but to the people, from whom the powers of government originated? Kings and princes, he said, derived their power from the people; and to the people alone, by means of their representatives, did it belong to decide in cases for which the constitution had made no specific provisions. On these grounds Pitt insisted that the Prince of Wales had no more right to supply the existing deficiency than any other subject, though he admitted that it was expedient for parliament to offer him the regency. Fox and Burke replied to Pitt, but they were unable to refute his arguments, and his motion was carried without a division, and a committee of twenty-one was appointed to look for precedents, which all men knew were not to be found. On the following day Lord Camden made a similar motion in the lords, in doing which he strongly condemned the doctrine which Fox had advanced, and contended, with Pitt, that the light and duty of naming the regent, and limiting his power, belonged exclusively to the houses of parliament. The motion of Fox was supported by Lords Loughborough, Stormont, and Porchester, and controverted by Lord Stanhope and the lord chancellor, the latter of whom declared that the doctrine was a new one to him. Thurlow seems to have been induced to speak on this occasion, in order to throw discredit on his rival, Lord Loughborough, who was a friend of the Prince of Wales, and was looking for the chancellorship. Recently the lord chancellor had been silent as a statue on the subject in question, and from his conduct it appeared evident that he was waiting to see how the malady of the monarch terminated, before he decided upon what part he should take. It was more than suspected, indeed, that Thurlow had, from the commencement of his majesty’s illness, been in correspondence with the prince and his friends, while at the council-table, and on the woolsack, he seemed to agree with his colleagues in office.

The report of the committee appointed to search for precedents was brought up and ordered to be printed, on the 12th of December. On this occasion Fox, aware that his doctrine was repudiated by the house, and by the nation at large, relinquished the idea of pressing the claims of the prince as a right, and only expressed his anxiety to procure for him a full enjoyment of royalty, under the appointment of the two houses. He was still ready, he said, to maintain, that while parliament had the right to determine on the incapacity, the heir-apparent, after such a determination, had the right of government, so long as that incapacity existed; but at the same time he remarked, as Pitt agreed with him that under present circumstances the prince was the person who ought to be invested with the regency, he thought it would be better to abstain from any discussion of such nice and subtle distinctions. Fox concluded, by expressing a hope that the chancellor of the exchequer would inform the house what course he meant to pursue, and by suggesting that a declaration or address should be sent to the prince from parliament, stating the fact of his majesty’s present incapacity, and investing his royal highness, during that incapacity, with the full exercise of regal powers. In reply, Pitt declared that he still differed as much as ever from Fox on the question of right: the Prince of Wales, he said, had no right whatever to the regency. Upon this point they were at issue, nor would he move a step further

till the question was decided. Fox pressed him to state what proposition he meant to make respecting the regency, but he declared that he would not offer any point for discussion, until the house knew whether they were sitting as judges, merely to pronounce on the king’s incapacity, or as an assembly possessing a power of deliberation, and capable of exercising their own discretion—whether that which should be vested in the prince was a matter of adjudication on their part, or a trust on behalf, and in the name of his majesty. An attempt was made in the house of lords to turn Pitt aside from his purpose, by recommending that all discussions on the rights of the Prince of Wales should be avoided, but Pitt, aware that a great constitutional question was involved in the subject, still persevered in his determination. On the 16th of December, therefore, he moved three resolutions, the object of which was to declare that his majesty being-prevented by indisposition from public business, it was the right and duty of the lords, spiritual and temporal, and commons of Great Britain, to provide the means of supplying the defect of the personal exercise of the royal authority. In the debates which followed these resolutions both parties put forth their whole strength. There was a motive for this on either side. The Whigs knew, that if their adversaries triumphed, such restrictions would be laid on the power and patronage of the regent, as would render it impossible for them to carry on the administration, and would render all the business of government unprofitable and uncertain; while, on the other hand, the Tories knew that by their success they should secure the favour of the king more firmly than ever, if he should be able to resume his functions. The contest was a curious one, because parties had completely changed opinions: the Whigs, those staunch advocates for the rights of the parliament and the people, now clamoured for prerogative and the hereditary rights of princes; and the Tories, those old sticklers for prerogative and hereditary rights, now as loudly clamoured for the rights of the parliament and the people. Pitt was endeavouring to show that the assertion of the inherent rights of the Prince of Wales, was one of those exploded ideas of indefeasible right which had fallen into contempt, and Fox had to persuade the house that the primary axioms of government and the abstract rights of the people were things unworthy their notice. The propositions moved by Pitt were warmly supported by the master of the rolls, the lord advocate of Scotland, the attorney and solicitor general, and the solicitor general to the queen. They were opposed by Lord North and Fox, the latter of whom combated the arguments of his opponents with an earnestness worthy of a better cause: fighting like a man whose very existence depended on the issue of the debate. Fox himself seems to have felt that his cause was not a good one, for after replying to the arguments adduced in favour of the propositions, by Pitt and his supporters, and vindicating himself from the notion of being influenced in his opinion by the favour of the prince, he made a personal attack on the minister, accusing him with sacrificing the principles of the constitution to his lust of power. Pitt replied to this attack, and enforced his former arguments; after which a motion made by Lord North for the speaker to leave the chair, was negatived by a majority of two hundred and sixty-eight against two hundred and four, and then the resolutions passed without a division. They were reported on the 19th, when another stormy debate took place, and in the end two amendments—one moved by Mr. Powys and one by Mr. Dempster—were negatived without a division, and the two first resolutions were received. Dempster moved an

amendment on the third resolution, but as the house was exhausted, the consideration of it was deferred till the 22nd of December, when it was negatived by two hundred and fifty-one against one hundred and seventy-eight. The three resolutions were now received, and ordered to be communicated to the lords at a conference, wherein the commons were to desire their lordships' concurrence in them. This conference took place on the 23rd of December, and the lords agreed to the resolutions, after two long debates and one division, in which there was a majority of ninety-nine against sixty-six. Among the lords no one more heartily concurred in these resolutions than Thurlow, who seems to have been convinced at this time that it was his interest to take a decided part with his colleagues. He had, in fact, been recently assured by Willis and others of the king's physicians, that his majesty's malady could not be of long duration, and that the king's temperate mode of living gave promise of health and long life. Thurlow also seems to have been convinced that if the king did not recover, he could place no permanent reliance on the Whigs, who were bound to prefer his rival, Loughborough. Hence, my lord chancellor had broken off all correspondence with the enemy, and when the questions involved in the three resolutions were taken into consideration, he defended them with all his might. As before stated, the resolutions were agreed to: a committee was also appointed to acquaint the commons at a conference that they concurred with them. A strong protest was entered and signed by forty-eight peers, among whom were the Dukes of York and Cumberland.

CHAPTER XVII.

{GEORGE III. 1789–1791}

The Election of Speaker..... The Question of the Regency resumed..... Recovery of his Majesty..... Adoption of a Plan for fortifying the West India Islands..... Bill for the Commemoration of the People's Rights, etc..... Shop Tax repealed, etc..... Motion respecting the Corporation and Test Acts, etc..... Slave-trade Question..... Election of Speaker..... Pitt's financial Measures..... Impeachment of Warren Hastings..... Parliament prorogued..... Continental Affairs..... State of Parties in England..... Meeting of Parliament..... Debates on the Test and Corporation Acts..... Mr. Flood's Motion for Reform in Parliament..... East India Affairs..... Pitt's financial Statement, etc..... The Slave-Trade Question..... Disputes with Spain..... Impeachment of Warren Hastings..... Parliament prorogued and dissolved..... Settlement of Disputes with Spain..... Continental Affairs..... Progress of revolutionary Principles in England..... War in India..... Meeting of Parliament.

{A.D. 1789}

ELECTION OF SPEAKER.

Mr. Cornwall, the speaker of the house, having expired on the 2nd of January, business received a temporary interruption. On the 5th of that month William Wyndham Grenville was proposed as his successor by the friends of administration,

and Sir Gilbert Elliot, by the Whigs. The former was chosen by a majority of two hundred and fifteen against one hundred and forty-four.

THE QUESTION OF THE REGENCY RESUMED.

On the day that the election of speaker took place, Pitt gave notice that he should, on the morrow, lay before the house the restrictions which he considered necessary to be annexed to the regency. Hitherto Fox had complained of Pitt's tardiness in proposing a regency, but he now seemed resolved to impede the progress of the minister. He was well aware that Pitt was averse to bring the royal physicians to the bar of the house to give evidence, yet notwithstanding he resolved that they should be again there examined. On the very day that Pitt was to introduce the subject of the restrictions, therefore, urged by Fox, the member for Abingdon, Mr. Loveden, made a motion to that effect. In support of his motion, Mr. Loveden said, that before the house proceeded any further, they ought to know how the case now stood; what was the present state of his majesty's health, what the degrees of alteration it had undergone since the physicians were last examined, and whether the probability of recovery was increasing or diminishing. This was the more necessary he said, because contradictory reports were in circulation, which were said to be supported by the different royal physicians. The reports unfavourable to the king's recovery had been put forth by, or at least was imputed to Dr. Warren, whom Pitt, in reply, treated as a violent Whig and party man, whose wishes suggested his predictions. Pitt also plainly intimated that he conceived gentlemen on the opposite side, who were to form the new administration under the regency, wished the doctor's opinion to be true. This insinuation was repelled by the opposition as unjust and illiberal, but in the same breath they acted as unjustly and illiberally, by falling upon Willis, the Tory doctor, and accusing him with uttering false oracles and predictions of amendment, which were merely meant to serve the purposes of Pitt and his party. But though Pitt at first opposed this measure, he ultimately acquiesced in its course, and a new committee of the house was appointed to re-examine all the physicians. This examination, which ought to have been brief, was prolonged by the frivolous questions of opposition members, and by frequent altercations, so that the report was not brought up before the 13th of January. As the committee had not examined into the grounds of the different opinions held by the physicians, Burke moved that the report should be recommitted; but this was negatived without a division, and it was ordered that it should be printed, and be taken into consideration, in a committee of the whole house, on the 16th of the month. On that day Pitt introduced his plan of a restricted regency. On the 30th of December Pitt had, in a letter, submitted to the Prince of Wales the heads of a plan arranged by the cabinet, and though the prince, acting under the influence of his advisers, had expressed his entire disapprobation of the plan, he nevertheless consented to undertake the regency with the proposed restrictions. What these restrictions were, Pitt now explained to the house. After expressing his great satisfaction at having consented to the re-examination of the physicians, the event of which had justified his sanguine expectations of the king's recovery, he observed, that under these circumstances, what parliament had to provide for was, a deficiency in the executive government for an interval which he trusted would be brief, and against any embarrassment in the resumption of the royal

authority, when his majesty should be able to resume that authority. This was all that was required, he said, for the present; but if contrary to expectations his majesty's illness should be protracted, then a more permanent plan of government might be arranged. He moved, therefore, that the Prince of Wales should be invested with the whole regal authority, subject to certain necessary limitations. These limitations were, that his authority should not extend to the creation of new peers; that he should not grant any pension or place for life, other than such place as, from its nature, must by law be held for life, or during good behaviour: that he should not have any power over the personal property of the king; and that he should have nothing to do with his majesty's person or household, which were to be left entirely to the guardianship of the queen. Pitt proposed that the queen should be assisted in the discharge of her duties by a council, which council were to have no power of control, but only that of giving advice, and satisfying themselves daily of the state of the king's health. Pitt also proposed that they, the said council, or some others, should be appointed to manage the real and personal estate of the king, being bound at the same time not to alienate or dispose or any part of it, except by lease. These propositions were warmly advocated by Pitt and others on the same side of the house, and as warmly opposed by members on the opposite benches. Mr. Powys, after condemning the whole of Pitt's plan, as tending to mutilate the constitutional authority, and after asserting that the heir-apparent ought to be invested with the full powers and prerogatives of the crown, moved an amendment to the first resolution, by which his royal highness would be appointed regent, "subject to such limitations and exceptions as might be provided." This motion was seconded by Lord North, who endeavoured to show that the bestowing of the whole power and patronage of the household upon the queen, would be setting up a party at court in opposition to the administration of the regent. Sheridan followed on the same side, and was both witty and severe upon the abstraction of the household patronage from the regency, and endeavoured to show that Pitt wanted it for himself, when he could no longer hold his present high office! Colonel Fullarton also argued against the mutilation of the executive government, and not only attacked Pitt, but the queen herself. Pitt's resolutions, however, were ably defended by the new speaker, Grenville, and on a division the amendment moved by Powys was lost by a majority of two hundred and twenty-seven against one hundred and fifty-four. All the resolutions were now carried except the last, and this, which referred to the care of the king's person and household, was debated on the 19th of January, with, if possible, increased animosity. Two amendments were moved—one by Lord North and the other by Mr. Bouverie—but both were negatived by considerable majorities, and on the 22nd the resolutions were taken into consideration by the lords. The contest in the lords was even more obstinate than it had been in the commons, but an amendment, moved by Lord Sandwich, for limiting the time during which the regent should be restrained from creating peers, and another moved by Viscount Stormont, on the restriction placed upon the regent in regard to the granting of places, were negatived, and then all opposition ceased. A protest was signed by fifty-seven peers, among whom the Dukes of York and Cumberland were again numbered. But the storm was not yet over. Both the prince and his friends were irritated in the highest degree by the restrictions which Pitt imposed upon the regency; and though the former had

privately expressed his acceptation of, or submission to the limitations, yet the latter were still resolutely bent upon opposing the premier. On the 27th of January, after recapitulating all the steps which had been taken, Pitt suggested that it would be respectful to the Prince of Wales, and expedient in the order of their proceedings, to know parliamentarily, whether he was willing to accept the regency upon the terms imposed by that house. Pitt moved that a committee should be appointed to wait upon his royal highness for that purpose, with the resolutions to which both lords and commons had agreed. On this occasion, the minister was accused by Mr. Gray and Burke, with treating the prince with marked disrespect; and the latter likewise taxed him with the design of converting the monarchy into a republic, with a regent, annually elected, nominally at its head. Against the regency bill he burst into a paroxysm of rage. He exclaimed, “It is a mere mummery, a piece of masquerade buffoonery, formed to burlesque every species of government. A hideous spectre, to which, with Macbeth, we may exclaim,—

‘Avaunt and quit my sight! Let the earth hide thee. Thy bones are marrowless, thy blood is cold: Thou hast no speculation in those eyes That thou dost glare withal.’

“So it is with this ministerial, political spectre. ‘Its bones are marrowless, its blood is cold, and it has no speculation in its eyes.’ I reprobate it as a chimera, a monster summoned up from the depth of hell!” But all the arguments, and accusations, and rage of the opposition proved fruitless: Pitt’s motion was carried without a division, and ordered to be sent up to the lords for their concurrence. Pitt also moved for a similar committee to wait upon the queen, in order to ascertain whether her majesty would undertake the care of his majesty’s person, and the management and control of the household; and this likewise was carried _nem. con._, and ordered to be carried to the lords. The motion for the concurrence of their lordships to these resolutions was made by Lord Camden; and this being voted, committees were forthwith appointed for the purposes therein specified. One of the joint committees of lords and commons waited upon the Prince of Wales, at Carlton-house, on the 30th of January, the anniversary of the execution of Charles I., a day on which parliament never met for the despatch of business, but which was not considered too sacred for the execution of such an important commission. The reply of the prince was brief, and to the point. He thanked the lords and gentlemen for the communication of the resolutions agreed upon, and requested them to assure their respective houses, that his duty to the king, his father, and his concern for the safety and interests of the people, together with his respect for the united desires of the two houses, outweighed in his mind every other consideration, and determined him upon undertaking the weighty and important trust proposed to him. At the same time, while he accepted this trust, his royal highness took care to record what his opinions were respecting the restrictions imposed upon his regency. He remarked:—“I am sensible of the difficulties that must attend the execution of this trust, in the peculiar circumstances in which it is committed to my charge, of which, as I am acquainted with no former example, my hopes of a successful administration cannot be founded on any past experience. But confiding that the limitations on the exercise of the royal authority, deemed necessary for the present, have been approved by the two houses only as a temporary measure, founded on the loyal hope, in which I ardently anticipate, that his majesty’s disorder

may not be of long duration; and trusting, in the meanwhile, that I shall receive a zealous and united support in the two houses and in the nation, proportioned to the difficulty attending the discharge of my trust; in the interval, I will entertain the pleasing hope that my faithful endeavours to preserve the interests of the king, his crown, and people, may be successful." On the same day, a joint committee of lords and commons waited upon the queen at Kew Palace, and were assured by her majesty, that out of her duty and gratitude to the king, and from a sense of the great obligations she owed to this country, she would accept of the trust proposed to her by parliament, together with the council to aid her in the discharge of an office with which was connected, not only her own happiness, but also the happiness of a great, loyal, and affectionate people. The answers received from the Prince of Wales and the queen were read in the house of lords on the 31st; and after they were ordered to be printed, Lord Camden moved, in a committee of the house on the state of the nation, that letters patent should be issued, under the great seal, empowering certain commissioners to open and hold the king's parliament at Westminister. Among the commissioners proposed by ministers were the names of the Prince of Wales, his brother, the Duke of York, and his uncles, the Dukes of Cumberland and Gloucester. The duke of York, however, whose views entirely coincided with those of opposition, rose and said, that from want of knowledge, he had been unable to take any steps to prevent his nomination; and that, as he could not sanction such unconstitutional and illegal proceedings with his name, he desired that it might be omitted: he added, "and I am requested to make the same request on the part of my brother, the Prince of Wales." The Duke of Cumberland, also, on the same grounds, desired that his own name, and the name of his brother, the Duke of Gloucester, should be struck out of the commission. A debate took place on the proper mode of withdrawing the names of these four personages, so as to convey no disrespect either to the house or to their royal highnesses; but it was finally settled that the names should still stand on the transcript, and that when the resolution was reported to the house, an amendment should be moved, to make it appear on the journals, that it was at the express desire of the several princes that their names were omitted. Camden's motion was now passed without a division; and the resolution being communicated to the commons, at a conference on the 2nd of February, Pitt moved the concurrence of the house therein. Another stormy debate took place, in which Lord North and Burke strongly insisted on the right of the Prince of Wales to the regency, and in which Pitt as strongly denied that right; but no division took place, and the resolution of the lords was therefore carried. The session was now opened on the 3rd of February, and the bill founded on the propositions already agreed upon was brought in, and by the 13th of February passed the house. Every article of it was warmly contested on the same grounds as when the resolutions were discussed, and some amendments and variations were introduced; the peerage clause, in particular, being limited to three years. Thus altered, the bill was sent up to the lords; and on the 17th, their lordships, in committee, made two important additions to it: one placing all the palaces, parks, houses, gardens, &c., under the control and management of the queen; and the other committing to her the care of all the royal offspring under the age of twenty-one.

RECOVERY OF HIS MAJESTY.

The hopes of power and place which opposition had formed, and for the realization of which they had so stoutly contended, were suddenly dashed to the ground. While thus contending, it had been rumoured abroad that his majesty was fast recovering. This was essentially true; and Pitt had for some days been halting between two opinions, namely: whether he should proceed with, the regency-bill, or whether he should stop the proceedings. His opponents also had been perplexed as to the proper mode of procedure; whether to let the bill pass at once without opposition, and accept office, or to wait a little longer, and see whether there was any chance of retaining it. At length, however, all the perplexities by which both parties were surrounded were clean swept away. On the very day that the lords committed the bill, as sent up to them by the commons, it was publicly declared that the king was convalescent. This, no doubt, was a grievous disappointment to the Whig leaders, for it brought all their hopes and designs to a sudden termination. They had, however, only themselves to blame for this disappointment, inasmuch as they might, but for their opposition, have taken the reins of government into their hands two months ago. But hope now fled, and desire failed. On the 19th of February, Lord Chancellor Thurlow announced from the woolsack, in his peculiar sonorous tone of voice, that from the reports of the physicians, his majesty had been for some time in a state of convalescence; that the accounts just received conveyed the happy news that the improvement in his health was still progressive; and that, therefore, it would be indecorous to proceed in the present measures, he had no doubt, he said, that the house, participating in the general happiness of every man in the kingdom, would consider it necessary to wait a few days before they went further with the bill; and he therefore moved that their lordships should immediately adjourn to Tuesday next. In reply to Thurlow, the Duke of York remarked,—“I trust your lordships will do me the justice to believe that no person in the house could feel equal pleasure with myself from the favourable account which the noble lord on the woolsack has given, and the motion he has made to the house, in which I heartily concur. I should have had great satisfaction in making the same communication to the house, if I had been able to do it from certain information. I thought it my duty yesterday, upon the favourable reports given to the public, to request to be admitted to his majesty’s presence. From reasons very justifiable, no doubt, it was not thought proper that I should have that satisfaction. From the knowledge I have of my brother’s sentiments, though I have had no immediate communication with him upon the subject of this motion, I am convinced he will feel equal, if not greater, pleasure than myself at the hopes of his majesty’s recovery, as it must relieve him from the embarrassment of the situation in which this bill would have placed him, which nothing but a strong sense of his duty to the public would have induced him to undertake.” Thurlow’s proposed adjournment was agreed to, and the regency bill there stopped.

The conduct of the Irish parliament in this matter formed a striking contrast to that of the English. On receiving the intelligence of his majesty’s illness, a motion was made in the commons for presenting to the Prince of Wales an address, requesting him to assume the government of Ireland during the king’s incapacity, with the full powers of the executive branch. This motion, which was moved by Mr. Conolly and supported by Grattan, passed without a division, and was confirmed by the lords. The

lord-lieutenant, the Marquess of Buckingham, late Earl Temple, refused to transmit this address to England; and commissioners were therefore appointed by both houses to present it in person to the Prince of Wales. These delegates arrived in England on the 25th of February, and on the following day they presented their address to the prince at Carlton-house. The recovery of his majesty, however, rendered the object of their commission nugatory: the prince returned his warmest thanks to the delegates, but acquainted them with the change which had taken place in the king’s health, and which, he said, he hoped, within a few days, would enable his majesty to resume the government. All that the commissioners, therefore, obtained for their pains and their loyalty were thanks and a splendid entertainment, at which the leaders of the prince’s party were present. Entertainments had, indeed, from the commencement of his majesty’s illness, been the order of the day at Carlton-house; the Saturday and Sunday of every week being set aside for that purpose; a mode of proceeding which brought great scandal on the prince and his party. The Whigs, by their recent conduct, in fact, rendered themselves unpopular in the eyes of the soberer part of the nation; and it may be questioned whether, if they had gained office under the regency-bill, they could have retained it for any lengthened period, even if his majesty had still been confined to Kew Palace as a maniac. The very city of London, which had once been the centre of opposition, was now on the side of Pitt and the king, and the feeling was universal throughout all England.

As the regency-bill had not passed, it was not deemed necessary to adhere to the method prescribed by it for announcing the king’s recovery and restoration to his royal capacity; the declaration in parliament, the bulletins of the physicians, and the suspension of those bulletins by royal order, were considered sufficient ground to enable his majesty to resume the functions of his office. Several adjournments of both houses took place subsequent to Lord Chancellor Thurlow’s announcement of his majesty’s recovery; but at length, on the 10th of March, a commission, under the great seal, was read to lords and commons, authorising the commissioners, previously appointed by letters patent for opening the parliament, to declare certain additional causes for holding the same. After the commission had been read, the lord chancellor observed, that his majesty being, by the blessing of Providence, recovered from his malady, had commanded the commissioners to convey to them his warmest acknowledgments for the proofs they had given of affection to his person, of zeal for the honour of his crown, and concern for the security and good government of his dominions. The commissioners were also ordered, he said, to acquaint the two houses that, since the close of the last session, his majesty had concluded a treaty of defensive alliance with the King of Prussia, and that he had endeavoured, during the last summer, to prevent the extension of hostilities in Europe. The house of commons was further informed, that the estimates of the current year would be forthwith laid before them. Addresses of congratulation were then passed both to the king and queen without a dissentient voice. On that night all London seemed one blaze of light; an illumination took place, such as that great capital had never witnessed before. This scene was renewed on the 23rd of April, which was appointed to be held as a day of public thanksgiving throughout the kingdom; and when his majesty went in grand procession to St. Paul’s Church, to return thanks to almighty God for his recovery.

His majesty was attended on this occasion by the queen and royal family, the two houses of parliament, and all the great officers of state, judges, and foreign ambassadors. The procession entered the cathedral amidst the peal of organs and the voices of five thousand children of the city charity schools, who were placed between the pillars on both sides, and singing that old melody, the hundredth psalm. The king was much affected; and turning to the dean, near whom he was walking, he said with great emotion, “I now feel that I have been ill.” His emotion almost overpowered him; but recovering himself be proceeded to the chair, where the humility with which he at first knelt down, and the fervour with which he appeared to pour forth the feelings of a grateful heart, made a deep impression on all within the cathedral. By this affliction the personal popularity of the king greatly increased. It became the fashion to call him “the good old king,” and men loved to dwell upon his morals and his virtues. It would be difficult, indeed, to point out any period in the annals of English history when any monarch was so universally revered by his subjects. Nor did the steady, consistent, and constitutional conduct of the prime-minister remain unacknowledged. While his opponents, by the sentiments which they had uttered in the heat of debate on the regency-bill, had given great offence to the people at large, Pitt had risen greatly in their estimation. He had, also, the warmest approbation of his majesty for the part he had taken; for on more than one occasion he expressed the highest satisfaction of his conduct, and that of the majority in parliament, in regard to the regency question. His majesty also remarked, that his illness had eventually become a source of happiness to him, inasmuch as it proved how nobly the people would support him when he was in trouble.

ADOPTION OF A PLAN OF FORTIFYING THE WEST INDIAN ISLANDS.

The first subject that engaged the attention of parliament after his majesty’s recovery, was a plan, formed by the master-general of the ordnance, for the fortification of the West Indian Islands. This scheme was condemned by General Burgoyne, Sheridan, and other members of opposition; but on the 18th of March £218,000 was granted for that purpose.

BILL FOR THE COMMEMORATION OF THE PEOPLE’S RIGHTS, ETC.

On the 24th of March Mr. Beaufoy moved for leave to bring in a bill “to establish a perpetual anniversary thanksgiving to Almighty God, for having, by the glorious revolution, delivered this nation from arbitrary power, and to commemorate annually the confirmation of the people’s rights.” It was argued in opposition to this bill, that the event was sufficiently commemorated in the form of prayer appointed for the 5th of November; but the house seemed to think otherwise, for the bill was not only brought in, but carried through all its stages, and sent up to the lords. In the lords, however, it met with a more successful opposition; for, on the motion of Bishop Bangor, who pointed out the several parts of the service of the 5th of November, which had been added and altered, for the purpose of commemorating the revolution, the bill was thrown out without being once read; a ceremony to which a bill proposed by a peer is considered as a matter of right, and which is usually accorded to any measure sent up to the lords by the commons, as a matter of courtesy.

SHOP-TAX REPEALED, ETC.

On the 3rd of April Fox renewed the attempts he had made, in several successive years, for the repeal of the shop-tax; and as Pitt did not now oppose him he was this time successful. Mr. Dempster also proposed and carried the abolition of the additional tax and restrictions which had been laid upon the hawkers and pedlars.

{GEORGE III. 1789–1791}

MOTION RESPECTING THE CORPORATION AND TEST ACTS, ETC.

On the 8th of May Mr. Beaufoy again moved the repeal of the corporation and test acts; being prompted thereto, he said, by the confidence which the dissenters reposed in the disposition of the house to do justice to the injured, and to afford relief to the oppressed. This motion was warmly supported by Fox, who laid it down as an axiom of policy, that no human government had any jurisdiction over opinions as such, and more especially over religious opinions. Fox supported this view by weighty arguments; but the motion was opposed by Pitt on the same ground as before; and on a division it was lost by one hundred and twenty-two against one hundred and two. On a subsequent clay, Lord Stanhope introduced a bill into the house of peers for relieving all nonconformists from the operation of the penal laws, and allowing them free exercise of their faith in preaching and writing; papists only being excepted on account of their persecuting spirit. Lord Stanhope denounced these penal laws as a disgrace to our statute-books; but the motion was opposed by Dr. Moore, Archbishop of Canterbury, and the whole bench of bishops, as tending to unloose the bonds of society, by substituting fanaticism for religious order and subordination, by opening a door to licentiousness and contempt of Christianity, under pretence of religious liberty; and as destructive to the Church of England and the constitution, of which that church was a firm support. The bill was rejected on the second reading; and another, which was shortly after brought in by the same noble lord, to prevent suits in the ecclesiastical courts for the recovery of tithes, shared the same fate.

SLAVE-TRADE QUESTION.

Since the last session the privy-council had been employed in investigating facts concerning the slave-trade; and on the 12th of May an elaborate report was laid upon the table of the house of commons, together with petitions for and against that traffic. Mr. Wilberforce had recovered from his illness; and on his motion it was voted that the report, with the petitions, should immediately be taken into consideration by a committee of the whole house. In committee, Wilberforce moved twelve resolutions, condemnatory of the traffic and the barbarous treatment of the African slaves, which he enforced by a long and excellent speech; in which he considered the subject, first, on the question of humanity, and next, on that of policy. From the evidence before the council, it appeared that the number of slaves carried away annually from Africa, on an average of four years, amounted 38,000. These were chiefly brought from the interior of the country; and they consisted of four classes: prisoners taken in war; persons seized for debt or imputed crimes; domestic slaves, sold for the emolument of their masters; and persons seized by violence or fraud. Mr. Wilberforce showed that

the trade thus carried on had a natural tendency to cause frequent and cruel wars; to produce unjust convictions and aggravated punishments for pretended crimes; to encourage fraud and oppression; and to obstruct the natural course of civilization and improvement. He also showed that an extensive commerce in articles peculiar to Africa and important to our manufactures, might be substituted for this inhuman traffic; a commerce which would at once equal the profits of the slave-trade, and would probably increase with the civilization that would follow its abolition. The orator dwelt very forcibly on the grievous sufferings which the slaves endured on the passage from Africa to the West Indies, and the horrid treatment they received on their arrival. He also dwelt emphatically on the dissoluteness and other causes which prevailed among them in the West Indies, and which prevented the natural increase of population among them; arguing, that if the causes which had hitherto obstructed the natural increase of negroes in our plantations, and if good regulations were established among them, there would be no need of an annual importation from Africa. At all events, he said, a trade founded in iniquity, and carried on with so many circumstances of horror, must be abolished, let its policy be what it will. The wickedness of the trade was so enormous, so dreadful, and irremediable; that he could stop at no alternative short of its abolition. His mind had been harassed with the objections of the West India planters, who had asserted that the ruin of their property would be involved in such a step; but he could not help distrusting their arguments; he could not believe that the Almighty, who forbade the practice of rapine and blood, had made rapine and blood necessary to any part of his creation. He felt a confidence in that persuasion; he took the resolution to act on it, and light soon broke in upon his mind; his suspicion was daily confirmed by increasing information; and the evidence he had now to offer on this point was decisive and complete. He was prepared to prove that the number of negroes in our colonies might be kept up without the introduction of slaves from Africa. He added, in a fine spirit of Christian philanthropy:—“Let us then make such amends as we can for the mischief we have clone to that unhappy continent; let us put an end at once to this inhuman traffic, and stop this effusion of human blood. The true way to virtue is to avoid temptation; let us, therefore, withdraw from these wretched Africans those temptations to fraud, violence, cruelty, and injustice which the slave-trade furnishes. Wherever the sun shines let us go round the world with him, diffusing our beneficence; but let us not traffic only that we may set kings against their subjects, and subjects against their kings, sowing discord in every village, fear and terror in every family, urging millions of our fellow-creatures to hunt each other for slaves, creating fairs and markets for human flesh through one whole continent of the world, and, under the name of policy, concealing from ourselves all the base iniquity of such a traffic.” Mr. Pitt expressed his warm approbation of the manner in which the subject had been brought before the house, and confessed that the slave-trade must be abolished: and he consented that the resolutions should be entered on the journals; conceiving that such a step might produce the effect of causing foreign nations to concur with England in the proposed abolition. Fox and Burke also applauded the orator; the latter declaring that not only England, but all Europe was indebted to him for exposing the iniquity of a trade “which began with savage war, was prosecuted with unheard-of cruelty, continued, during the middle passage, with the most loathsome imprisonment, and

ended in perpetual exile and unremitting slavery." The feeling of the house and the nation at large was so manifestly, at this period, in favour of the abolition of the slave-trade, that Lord Penryn, one of its advocates, asserted that, to his knowledge, the planters were now willing to assent to any regulation of the trade short of its abolition; to which remark Fox replied, with much animation, that he knew nothing of such a thing as a regulation of robbery and restriction of murder; there was no medium; the legislature must either abolish the trade, or plead guilty to all the iniquity with which it was attended. Finally, Pitt conceded, with the consent of Mr. Wilberforce, to the examination of witnesses on the part of the slave-merchants and planters, trusting that unnecessary delays would not be introduced, as he could not submit to the ultimate procrastination of so important a measure. Evidence was heard at the bar for several successive weeks; and the session being far advanced, the friends of abolition consented, on the 23rd of June, to an adjournment of the question to the succeeding session of parliament. Before this session was closed, however, the temporary regulation act of Sir William Dolben was renewed till August, 1790.

ELECTION OF SPEAKER.

Early in June Lord Sidney resigned the office of secretary of state for the home department; and Mr. Grenville, who had so recently been nominated speaker of the house of commons, obtained the appointment. Sir Gilbert Elliot again became a candidate for the vacant chair; but the ministerial nominee, Mr. Henry Addington, was elected by a majority of two hundred and fifteen against one hundred and forty-two.

PITTS FINANCIAL MEASURES.

On the 10th of June, Pitt opened his financial scheme for the year. In doing so, he congratulated the house and the country on the fact, that his hopes of the efficacy of the sinking-fund, etc. had been well founded. The permanent income declared necessary by the committee of 1786 to defray the annual demands, was £15,500,000; and for the last two years it had exceeded that sum by £78,000. As, however, there had been several extraordinary expenses, such as paying the debts of the Prince of Wales, fitting out the armament of the summer of 1787, &c., he stated that it was necessary to raise one million by loan, and to increase some taxes or duties to pay the interest of this loan. The new duties which he proposed were laid upon newspapers, advertisements, cards, dice, probates of wills, and horses and carriages, none of which, he conceived, would press at all on the poor, or heavily upon the rich. To increase the revenue by further prevention of fraud, Pitt introduced and carried a bill for transferring the duties on tobacco from the customs to the excise; it having appeared, on inquiry, that one half of this article, which would have produced a revenue of nearly £300,000, was obtained by smuggling. Sheridan again controverted the statements of Pitt; and on the 10th of July he moved, "that a committee be appointed to inquire into the state of the public income and expenditure; into the progress actually made in the reduction of the national debt since the year 1786; and into the grounds on which a reduction of the same may be expected in future, and to report the same, with their observations thereon, to the house." Sheridan pledged

himself to prove that the report of the committee of 1786 was not founded in fact; and that for the last three years the expenditure had increased to the amount of £200,000. A long debate took place on this motion; but it was negatived without a division, as was also a motion to the same effect, moved in the upper house by Lord Rawdon.

IMPEACHMENT OF WARREN HASTINGS.

The trial of Warren Hastings was revived early in this session; but from the occupation produced by the regency-bill and by the recovery of the king, it proceeded but slowly. It was, in fact, the 20th of April before their lordships resumed their sitting in the hall; and from the nature of the business which subsequently occupied their attention, they could then only sit seventeen days. The third article was opened on the 21st by Burke, which article related to the corrupt receipt of money. In his speech Burke alluded to Nuncomar, and indiscreetly said, that Hastings had murdered him by the hands of Sir Elijah Impey. As Impey had been acquitted by the house of commons, and as the transaction respecting Nuncomar made no part of the charges contained in the articles, Hastings thought proper to present a petition to the commons, in which he entreated them either to cause this, and similar allegations made by his accuser, to be prosecuted in distinct articles, or to afford him such redress as they should think proper. This petition was strongly supported by Major Scott, who presented it, and who accused Burke of being guilty of cool, deliberate, systematic, and intentional misrepresentation, and of imputing to Hastings crimes of which he knew him to be innocent. In reply, Burke called Major Scott the systematic libeller of the house of commons; and he, with his friends, endeavoured to prevent the petition from being received; contending that it was irregular and unprecedented, and that if every expression, not agreeable to the feelings of the party accused, were not fit to be used in a criminal prosecution, there must be an end to such prosecution. Pitt, on the other hand, gave his cordial support to the petition, as far as regarded the business of Nuncomar; and after a long debate, the house resolved “that no authority had been given by the house for the purpose of making any criminal charge respecting Nuncomar; and that the words complained of ought not to have been spoken.” Subsequently, a resolution of censure on the conduct of Burke was moved by the Marquess Of Graham; and, though strenuously opposed by Fox and the other managers, it was carried by a majority of one hundred and thirty-live against sixty-six. In the meantime the trial went on languidly. Legal doubts and difficulties were constantly suggested by the counsel for the prisoner, and time was frittered away in their consideration by the peers; and before this single charge could be settled, their lordships decided to postpone the trial to the first Tuesday in the next session of parliament. These delays caused great vexation both to the accused and the accusers. Hastings, indeed, declared that if he had foreseen such an interminable process, he would rather have pleaded guilty at the commencement of the process; and that, if he had done so, he should have been a gainer as regards money. Early in the session, in fact, Hastings had presented a petition to the lords, complaining of the great hardship to which the duration of the trial subjected him; mentioning the death of several of his judges, the long detention of witnesses necessary for his defence, the probability of his being deprived of many of them by various accidents; and

reminding their lordships of the shattered state of his own health, and that his cost had been so great, that, even if his life should be spared to the end of the trial, he might become destitute of the means of defence, and thereby run the fearful chance of having his character blasted by unrefuted criminations; there being no hope of defending himself effectually without money. On the other hand, Burke and the managers complained of the delays as tending to favour the accused. On one occasion, when their lordships, after long consideration in their own chamber—whither they almost invariably retired to solve all doubt and difficulties—decided that certain evidence taken out of the minutes at Calcutta should not be admitted, he exclaimed, with impassioned vehemence:—“Plunder on; the laws intended to restrain you are mere scarecrows. Accumulate wealth by any means, however illegal, profligate, infamous. You are sure of impunity; for the natives of India are, by their religion, debarred from appearing against you out of their own country; and circumstantial evidence will not be received.” But neither the complaints of the accused nor the accusers quickened the proceedings of the peers. They still walked leisurely from the hall to their chamber, and from their chamber to the hall, whence it was jocosely said by Lord Stanhope, that “the judges walked, but the trial stood still.”

PARLIAMENT PROROGUED.

Parliament was prorogued by commission—the king-having gone to Weymouth for his health—on the 11th of August. The speech was delivered by the lord chancellor, in his majesty’s name; and in it his lordship observed, that, although the good offices of the king and his allies had not been effectual for the restoration of general tranquillity, yet the situation of affairs abroad continued to promise to this country the uninterrupted enjoyment of the blessing of peace. But this view of the state of Europe was superficial: in reality it promised nothing but strife and bloodshed. This will be manifested in the next section.

CONTINENTAL AFFAIRS.

At this period war and anarchy were disturbing a large portion of the continent. In the preceding year, Gustavus, King of Sweden, offended at the intrigues of Russian emissaries; jealous of the extended power of the Czarina Catherine; and anxious to recover the territories which had been wrested from his predecessors, had commenced a war with Russia. Gustavus was aided by a subsidy from the Turkish Sultan, who was at war with Russia, and he entertained hopes of assistance from Great Britain and Prussia. The Danes were engaged by treaty to assist the Russians, and fearing the result of this alliance, the courts of Great Britain and Prussia, without engaging directly in the contest, encouraged diversions both in Poland and Sweden. But Gustavus had enemies in his own dominions. His nobles had never forgiven him for overthrowing their unbounded power, in 1772, and the war against Russia, which he began without the assent of the states, was the signal for revolt. Many of these nobles were superior officers in the Swedish army, and they conspired against the king; and, declaring that the war undertaken was contrary to the constitution, they sent deputies to St. Petersburgh, in order to negociate an armistice, which was effected. At the same time a Danish army invaded Sweden and menaced Gothenburg.

The situation of Gustavus was a critical one, but he was delivered from all danger by his high courage, and the good offices of the courts of England and Prussia. These courts, having in vain offered their mediation between those of Petersburg and Stockholm, so effectually intimidated the Prince of Denmark, who governed the state for his incapable father, that he promised to abstain from all hostilities. Gustavus now convoked a diet at Stockholm, in which an act of union and security was proposed and adopted by the three lower orders of the assembly; which act gave him unlimited power, and invested him with the right of waging war without the consent of the states; made all classes of society equal in rights of property and security, and all places and offices accessible to the citizens; and established colleges of government, responsible to the king, instead of the senate of the kingdom, whose authority had been independent. The aristocratic senate of Stockholm, which had been abridged of its powers in the revolution of 1772, was now entirely suppressed, and while many of the members were arrested and thrown into prison, others fled to St. Petersburgh, where they lived under the protection of the czarina. Gustavus now hastened back to his banners on the Russian boundary, and in the course of this year, 1789, several severe and bloody actions took place, in most of which he was victorious. Towards the close of the campaign, however, while in Russian Finland, his galley-fleet, which moved along shore and co-operated with his army, was defeated by a more numerous galley-fleet belonging to the czarina, and having lost many of his best troops, he was compelled to evacuate the Russian territories and retreat across his own frontier. After this both armies went into winter-quarters.

In the meantime, notwithstanding the exertions made both by England and Prussia to restore peace, war continued between the imperial courts of Austria, Russia, and the Porte. Early in this year’s campaign, the Austrians overran the greater part of Wallachia, and Moldavia, and the Prince of Saxe Cobourg, who commanded them, being joined by the Russians under Suvaroff, gained a great victory over the grand army of the Turks at Martinitzi. Subsequently, Belgrade was captured by the Austrians, and on the northern frontier the Russian General Potemkin defeated another Turkish army, at a place called Tabac, not far from the town of Bender. Flushed with victory Potemkin sat down before Bender, but though the garrison was a small one, and the fortifications contemptible, it was not captured till its walls were utterly demolished. Before winter set in the Russians captured several places on the shores of the Black Sea, and others on the Dniester and the Danube. They had, indeed, reduced almost every important place between the Danube and the Bog and Dnieper. On the other hand, the Turkish fleet defeated the czarina’s flotilla or flotillas, on the Black Sea, and successfully checked the Austrians, who after the reduction of Belgrade, undertook the siege of Orsova.

Commotions every where prevailed. While the Austrian emperor was prosecuting victories and conquests from which he could not hope to derive any permanent advantages, he contrived to alienate from himself the affections of the people of the Netherlands. This people consisted of independent states, resembling each other in manner, character, and constitution of government; their polity being composed of three orders, clergy, nobles, and people, under the limited principality of one personage, denominated Count. The Netherlander had shown an heroic devotion to

his mother, Maria Theresa, and were warmly attached to his own person. Animated, however, by a restless spirit of innovation, he dared to interfere with their ancient privileges and religion—two objects of which they were particularly tenacious—and thus created a spirit of disaffection throughout all the Low Countries. Under the plea of reform he made innovations in their ecclesiastical establishments; suppressed the most venerated judicial institutions; appointed new and despotic tribunals; subverted the legislature, by abrogating the power of the assembly of states, and instituted a general government, with a court minister at its head; and finally attacked the clerical order, by overthrowing those institutions which were the very nursery of its priesthood. These sacrilegious acts roused the choler of the people; open rebellion was the natural result; and the people were victorious. The imperial troops committed many excesses throughout the Low Countries, and dyed their swords in blood; but the Netherlander, strong in the justice of their cause, finally triumphed. By the close of this year the Flemings, the States of Brabant, and all the other provinces, with the exception of Luxembourg, completely established their independence.

It seems clear that the revolt of the Netherlander did not arise from that democratic spirit which everywhere prevailed at this period, but from the rapacity and usurpations of the Austrian emperor. It is dangerous to touch ancient constitutions, and still more dangerous to lay violent hands upon venerated religious establishments. But while the Netherlander may be acquitted of being inflamed with the fierce passions of democracy in their struggle with the Emperor of Austria, as much cannot be said of other people and nations. At this time, indeed, a party existed in most countries, whose aim was to overturn the existing order of things, of which the efforts at revolution in several small states, such as Aix-la-Chapelle and Geneva may be cited as examples. These were so many instances of the democratic spirit which now prevailed; but they sink into insignificance when compared with the commotion which had commenced in France.

Incidental mention has been made of the financial embarrassments of the court of France; embarrassments which were in a great measure induced by the impolitic interference of that court in the dispute between England and her American colonies. Such was the deplorable condition of the French treasury in 1780, that a national bankruptcy was only avoided by the issue of paper money, which by a royal edict was enforced on the people, who were enjoined to receive it as gold or silver. Added to this a scarcity was threatened, and many of the people were actually perishing for want of bread. The prime minister, Necker, who was at the head of the French government during the American war, had incurred the hatred of the court party, and had been compelled, in 1781, to leave the kingdom. His successors were first Calonne, and then Brienne, both of whom failed to deliver the nation from its distresses. In 1788, therefore, Necker was recalled, and placed anew at the head of the finances, and also admitted to the council of state. Necker was at this time the hope of the nation, but there was no man in existence who could effect its salvation. Urged by the people, one of the first measures of Necker was to procure an order of council for the assembling of the States-general, which it was thought, could alone rescue the nation from impending ruin. The meeting of the States-general would probably have been attended with no ill effects, had it been constituted as in ancient

times. Instead, however, of there being an equal number of nobles, clergy, and commons convoked, Necker unfortunately prevailed upon the king to summon six hundred of the commons, making that body numerically equal to the other two estates, and therefore capable of successfully opposing their measures. This was fatal to the peace of the nation, for the mass of the people of France, from among whom the commons were convoked, were rampant for a change in the existing order of things—were revolutionists at heart. The factious spirit which prevailed among them was discovered at the very opening of the States-general, which took place on the 5th of May, 1789, at Versailles. After the king had delivered a speech, in which he expressed a hope that it would communicate new vigour to the nation, re-establish public credit, and open additional sources of happiness, a question arose, “Should votes be taken by order, as heretofore, or by head?” This provoked the parties to combat, and the commons prevailed: the votes were to be taken by head. This clearly gave the preponderance to the commons, or third estate, since their number was equal to that of the nobles and clergy and they might expect some adherents from both those parties. Within six weeks, indeed, the third estate being strengthened by a part of the lower clergy, upon the motion of the Abbé Sieyes, declared themselves the national assembly. This was a great step, and the first imposing phenomenon of the new order of things. It caused great joy among the people, great movements among the nobility and the clergy, and great consternation at court.

To stem the onward tide of revolution which threatened to overwhelm the nation, the king, by a herald at arms, declared that the debates of the assembly were suspended, and that it was his majesty’s intention to hold a royal session. The hall of the states was now closed, but the deputies, under their first president, Bailly, assembled at one time in the Tennis Court, and at another in the Church of St. Louis, and took an oath to remain united until the regeneration of the state was accomplished. The royal session took place on the 23rd of June, and the king having pronounced the previous resolutions of the assembly to be illegal, ordered the estates to leave the hall, and withdraw each to their chamber, to deliberate there upon certain subjects which he laid before them. He would consider himself, and himself alone, he said, as the representative of the nation, and threatened to take all necessary measures into his own hands, if the national assembly acted contrary to his wishes. But the words of the monarch fell upon the ears of men who hated royalty, and who were resolved upon stripping the diadem from his brow. Being by this time joined by the greater part of the clergy, who seem to have considered that their interests were blended with those of the people, the commons resolved not to stir from the hall. The command of the king was repeated by a royal messenger, and then was seen the determined hostility which prevailed in the assembly towards the courts. “Only the force of bayonets,” said Mirabeau, “can drive the deputies of the people from their seats.” The assembly, therefore, still remained, and on the following day was reinforced by some members of the nobility, with the Duke of Orleans at their head. The king was perplexed; but hoping still to counteract their measures, he ordered the majority of the nobles, and the minority of the clergy to unite with the third estate, whereby the national assembly was finally completed. But there was still no reconciliation. Thirty thousand armed men, foreigners, were

assembled in the vicinity of the capital, under the command of Marshal de Broglio, and these hostile preparations excited the people to revolt, engaged the representatives of the nation in a struggle between opposite duties, and alarmed the friends of liberty. All Paris—all France, became agitated and excited to action. Patriotic societies were formed as guides of the wild-fermenting masses of the people, and means of resistance were debated upon and adopted. In the midst of the commotion, a report was spread that Necker and Montmarin, the two popular ministers, had been dismissed and banished the kingdom, and that they and their colleagues were succeeded in office by men who were decided advocates of the ancient _régime_. Now commenced insurrection. On the 14th of July the people rose _en masse_, and being joined by the French guards, they stormed and captured the Bastille. Alarmed at these proceedings the king discharged his new ministers; recalled Necker; sent away the foreign troops, and threw himself into the arms of the nation. Joy and acclamation succeeded, and a festival of reconciliation was celebrated at Paris, between king and people, which seemed to presage the return of harmony. But there were two parties in the state who were far from being satisfied with the reconciliation thus brought about—the aristocrats and the democrats. The former saw their downfall therein, and rather than submit to such a state of things, great numbers went into voluntary exile. By their departure, the king was left without defence and counsel in the midst of the roaring storm—was left to the mercy of men who were in heart his most deadly enemies. He assumed the tri-coloured cockade, and sanctioned the decrees of the assembly, which aimed at the overthrow of the old, and the establishment of a new government; but still, though he complied with their every wish, it was evident, to all men of discernment, that he had not the affections of his subjects, and that his life was not safe in their hands. After his apparent reconciliation with the Parisians, Louis hastened to Versailles, where he hoped to remain in peace. But it was scarcely to be expected that a people, and especially the people of a corrupt capital, after they had broken the bonds of obedience, would immediately return to social order. Despite the exertions of Bailly, the recently elected mayor of Paris, and of Lafayette, the head of the newly created citizen militia, tumults were the order of the day. Famine raged in the city, and urged by it, as well as by a desire of revenge, many fell victims to the fury of the multitude. Thus Foulon, counsellor of state, and thus Berthier, his son-in-law, hitherto intendant of Paris, perished. Accumulated murders were committed in the capital, and similar scenes occurred in the provinces. Several cities followed the example of Paris, and in the country the peasants armed themselves against the nobles: the times of King John seemed to return. These crimes are in a great measure to be imputed to some members of the national assembly; but in the month of August the better part got a resolution passed, whereby the disturbers of the tranquillity were reminded of their duty, and the national guards, which were promptly raised in the whole kingdom, charged with the maintenance of order and security. But resolutions and decrees, and even the sword, were still impotent to allay the rash fury of the populace. It was suspected by them that the higher orders were not sincere in the sacrifices to which they had assented, and a rumour was industriously spread abroad that preparations were making for the retreat of the king to Metz, in Lorraine, where the royal standard was to be raised in opposition to the national assembly. Nor does it appear that the

king was sincere in the concessions which had been wrung from him, or that he intended their perpetuation. At all events, if the king himself was sincere, it is certain that the queen and her counsellors turned their thoughts towards the restoration of the monarchy. Full of warlike sentiments, the court brought the regiment of Flanders to Versailles, and surrounded itself with soldiers, whence not only the populace suspected its movements, but the municipality of Paris became alarmed, and Lafayette himself spoke openly of a plot against liberty. A fresh insurrection now took place. Urged in part by famine, in part by wild cannibal passions, and in part by objects of treason and ambition, on the 5th of October, several thousand furious women, intermixed with a number of men of the most abandoned characters, assembled together, and after having committed some outrages, set up a long and hideous cry “To Versailles!” And the cry was not long confined to them. It resounded also among the citizen-militia, and among the great mass of the population of Paris, and Lafayette placed himself at the head of the insurrection. On the night of the 6th of October the palace of Versailles was attacked; many of its defenders were slain; and the king and the royal family, being rescued from the hands of the infuriated mob by Lafayette at the head of the national guard, were carried in triumph to Paris. The heads of the unfortunate defenders of the monarch, fixed on pikes, adorned the procession as it passed through the streets of the city. This new triumph of the populace occasioned another change in the constitution by the national assembly: the king being compelled to accede to every thing which they chose to establish. But France was not yet tranquil. The king and the people—except the factionists—became again, in appearance, if not in reality, reconciled; but there was still an under-current of mischief at work, which finally involved the monarch in ruin, Paris in bloodshed, and all Europe in war!

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STATE OF PARTIES IN ENGLAND.

The events which had taken place in France during this year, naturally attracted the anxious notice of other European states. In England many persons read of them with pleasure, others with suspicion and jealousy, and others with anxiety and alarm. The general opinion was favourable to the revolution, arising from the natural abhorrence with which Englishmen look upon despotism under every possible form and shape. Even Fox and Pitt at first united in a tribute of admiration of the great movement; they, with others, overlooking its most criminal excesses, on the presumption that it would tend to establish the liberty and the happiness of the French people. All parties, indeed, agreed in believing, or at least hoping, that the states being properly modelled would by degrees effect the most important reforms, and produce the most valuable results, not only to the French themselves, but to all the world. Poets sang the destruction of the Bastille; orators applauded the asserters of liberty; statesmen contemplated the revolution with pleasure; and even divines from their pulpits did not blush to extol the character of the French regenerators. Among the most ardent admirers of the French revolution was an assemblage of persons, with Lord Stanhope at their head, who had associated for many years for the

purpose of commemorating the British revolution of 1888. These revolutions were totally different in character, but losing sight of this, the society even went so far as to offer a formal address of “congratulation to the national assembly on the event of the late glorious revolution in France.” It must be in charity supposed, that a great deal of ignorance existed as to the real character of the movement in France, otherwise it could only be concluded that a similar spirit existed in England as in that country. It must not be disguised, however, that England contained a certain class of discontented speculative men, who considered their own country deficient in the liberty which, they imagined as agreeable to man’s natural rights; and who therefore looked upon the French revolution as the precursor to a similar movement among ourselves: men who, from a revolutionary ardour and a fondness for innovation, looked on all resistance to power as commendable, confounded revolt with liberty, and identified conspiracy with patriotism. But this section of the community happily was not extensive: the many who admired the French revolution did so from a generous sympathy, and while they lamented the excesses committed, they attributed it to the old tyranny, which had brutalized the people, and which they considered as not likely to continue. They concluded, erroneously indeed, that a change from the old system of despotism must be an improvement, and fondly hoped that the alterations would produce a government in France, similar to that which they themselves enjoyed. Others there were, however, who viewed the new politics of France with horror. Looking from the present to the future, they foresaw that the events which had taken place in that country, instead of producing such a change in the condition of the French people as every friend to rational and well-regulated freedom must desire, would only produce the most lamentable consequences—would either terminate in anarchy, or in the establishment of despotism. Of the great public men of the day, Burke was perhaps the first to discern the true character of this movement in France. The letters which he wrote during its progress all show that he looked upon it with the utmost suspicion: arguing from the bloody deeds with which it was consummated, deeds still more bloody and fearful. But the keen insight into the French character which Burke possessed was not common to the public at large, or even to his own party and the friends of his bosom: the general impression was, that the French people, after the first ebullitions of vengeance, would return to their senses; and that then they would build up a fabric of freedom on the ruins of tyranny, which might serve for a model to all Europe: a bulwark of liberty which the iron foot of despotism should never be able to throw down.

“But history, time’s slavish scribe, will tell How rapidly the zealots of the cause Disbanded—or in hostile ranks appeared: Some, tired of honest service; these outdone, Disgusted, therefore, or appalled, by aims Of fiercer zealots—so confusion reigned, And the more faithful were compelled to exclaim, As Brutus did to virtue: ‘Liberty, I worshipped thee, and find thee but a shade.’” —Wordsworth.

MEETING OF PARLIAMENT.

{A.D. 1790}

The British parliament met on the 21st of January. The king, who had now recovered from his malady, attended in person, and in his speech he slightly glanced at the affairs of the continent, by observing that they had engaged his most serious attention; paid an appropriate tribute to the excellence of the British constitution; and congratulated the country on the increase of the public revenue, the extension of commerce and manufactures, and the general prosperity. The addresses in both houses were voted without opposition or division. In moving that in the commons, Lord Valletort took occasion to contrast the tranquil and prosperous situation of England with the anarchy and licentiousness prevailing in France, and to stigmatize the revolution as an event the most disastrous and the most fatal that had ever taken place since the foundation of the French monarchy. Nearly all who followed Lord Valletort coincided in his sentiments, attributing the prosperity and tranquillity of England to the superior excellence of its constitution, and to the prudent administration of the executive government. The subject was resumed in the debates which took place on the 5th and 9th of February, in both of which Fox spoke in a laudatory manner of the French military, and in the latter of which he extended his eulogiums to the French revolution itself. It has been seen before that Burke’s sentiments on this subject were foreign to those of his party, and notwithstanding his political connection _with_, and friendship _for_ Fox, he rose from his seat greatly agitated, and denounced the revolution as “an irrational, unprincipled, proscribing, confiscating, plundering, ferocious, bloody, tyrannical democracy.” In his speech, Burke, after paying some high compliments to the genius and character of Fox, and adverting to the danger of his opinions as sanctioned by the authority of so great a name, entered at large into the subject. He remarked:—“The French have shown themselves the ablest architects of ruin that have hitherto appeared in the world. In one short summer they have completely pulled down their monarchy, their church, their nobility, their law, their army, and their revenue. Were we absolute conquerors, with France prostrate at our feet, we should blush to impose on them terms so destructive to their national consequence, as the durance they have imposed on themselves. Our present clanger is that of being led, from admiration, to imitate the excesses of a people whose government is anarchy, and whose religion is atheism.” Burke expressed his concern at hearing this strange thing called a revolution in France, compared with the glorious event called the revolution in England. He instituted a parallel between the two, and showed how widely they differed from each other, and how Great Britain had risen beyond the standard of her former self, because she had commenced with reparation, and not with ruin. The French, he said, had made their way through the destruction of their country to a bad constitution, when they were absolutely in possession of a good one. Instead of redressing grievances and improving the fabric of their state, to which they were called by their monarch and sent by their country, they had first destroyed all the balances and counterpoises which served to fix the state and to give it a steady direction, melting down the whole into one incongruous, ill-connected mass; and then, with the most atrocious perfidy and breach of all faith, they laid the axe to the root of all property, and consequently of all national prosperity, by the principles they established and the example they set in confiscating all the possessions of the church. They had made and recorded a sort of institute and digest of anarchy, called “A Declaration of the Rights

of Man;” thus systematically destroying every hold of authority by opinion, religious or civil, on the minds of the people. By this mad declaration they had subverted the state, and brought on such calamities as no country, without a long war, had been known to suffer. Burke expressed himself astonished and troubled at the movements in France beyond measure, and denounced it as so far from being worthy of imitation, that it ought to have our utter abhorrence He would spend the last drop of his blood—would quit his best friends, and join his bitterest enemies, to oppose the least influence of such a spirit in England. Burke concluded his noble harangue by saying that he was now near the end of his natural, and probably still nearer the end of his political, career; that he was weak and weary, and wished for rest; that at his time of life, if he could not do something by weight of opinion, it would be useless to attempt anything by mere struggle; and that, with respect to the British constitution, he wished but few alterations in it, adding, that he should be happy if he left it not the worse for any share he had taken in its service. This speech, so full of patriotism and unanswerable argument, gave rise to a grand schism among the Whigs. As soon as Burke had concluded, Fox rose and declared his total dissent from opinions “so hostile to the general principles of liberty,” and which, he said, he was grieved to hear from the lips of a man whom he loved and revered; a man by whose precepts he had been taught, and from whom he had learned more than from all the men with whom he had ever conversed. His speech on that day, he remarked, some arguments and observations excepted, was among the wisest and most brilliant that had ever been delivered in the house; but still, with all these admissions, his opinion on the general subject remained unaltered. Fox entered into a vindication of the conduct of the French army, in refusing to act against their fellow-citizens, and excused the scenes of bloodshed and cruelty which had been committed by the citizens, on the ground of their long-suffering from tyranny. At the same time Fox declared, that he never would lend himself to support any cabal or scheme to introduce any dangerous innovation into our excellent constitution; and that Burke might rest assured they could never differ in principles, although they might disagree in the application of principles. Burke rejoined, and expressed himself satisfied with the explanation of his right-honourable friend; and the discussion might have ended for the present, had it not been for Sheridan, who wished to make a speech on this grand subject. Sheridan, in rising, said, that he felt it his duty to declare that he differed from Burke in almost every word respecting the French revolution. In his opinion it was as just as our own, proceeding upon as sound a principle, and a greater provocation. Sheridan then eulogised Lafayette, Bailly, and other patriots of that stamp, and vehemently defended the general views and conduct of the national assembly. He concluded his harangue by charging Burke with being an advocate for despotism, and with having spoken of the national assembly with an unwarrantable freedom of speech. Burke instantly rose to reply; and in doing so he expressed his indignation at the language which Sheridan had used, and declared that henceforth his honourable friend and he were separated in politics. Sheridan’s language, he said, was not new, since it was only a repetition of what was to be heard at the reforming clubs and societies with which the honourable gentleman had recently become entangled, and for whose plaudits he had chosen to sacrifice his friends. He added, that his argument was chiefly an argument _ad invidiam_, and that all the applause he could hope for from

clubs was scarcely worth the sacrifice which he had chosen to make. The Whig party were alarmed at this breach in their camp; and attempts were instantly made to bring about a reconciliation by means of mutual explanations. But these attempts were fruitless; the bond of union was for ever broken. The Whig party were rendered still more uneasy by the conduct of Pitt, who declared that Burke had that day conferred a great obligation upon the country, and warmly applauded the zealous and seasonable attachment which he had displayed to the principles of the British constitution. No man, in truth, rendered more service to the cause of constitutional liberty than did Burke at this period. This was but the first of a series of splendid harangues which he uttered upon the subject of the French revolution, and which were as the sound of a trumpet to the hearts of the English people. The contagion of its principles were also arrested by the weighty productions of his pen; in which productions “his fancy laid all nature under tribute, collecting treasures from scenes of creation, and from every walk of art to adorn his pages.” His sentiments had the more weight because they proceeded from a mind which had ever been active in the great business of reform; some traces of which activity were manifest in the statute-book. But the reforms which Burke had ever advocated were founded in justice; those which the French regenerators had adopted were subversive of all order, and tended only to anarchy and desolation.

DEBATES ON THE TEST AND CORPORATION ACTS.

Since the decision of the last session relative to the test and corporation acts, the Protestant dissenters had not relaxed in their efforts to increase the number of their friends in the house of commons. Moreover, they had held provincial meetings in all parts of the kingdom, and by their public resolutions, in contemplation of a general election, earnestly recommended the friends of equal and universal liberty to the choice of electors. Unfortunately at these meetings, in their speeches and resolutions, they warmly applauded the principles of the French revolution; and they appear to have thought that this season of change was favourable for pressing their old claims upon parliament. Under this impression they resolved to bring the subject before the commons; and instead of Mr. Beaufoy, the friend of Pitt, Fox, the tried friend of liberty, was requested by them to become their advocate. Fox moved for the repeal of the two acts in question, and supported his motion by a long and able speech, in which he showed himself anxious to prove that the application of his clients had nothing whatever to do with the principles of the French revolution. It certainly did not emanate from that movement, for the first application had been made three years ago, when the keenest sagacity could not have formed anything like a conjecture of the events which had taken place in France. It is most certain, however, that the Protestant Dissenters, in seeking their claims, had uttered language which savoured of a spirit of innovation. It may have been only out of generous sympathy, but they had been among the warmest approvers of the French revolution; and this gave offence in high places. Hitherto, Pitt, although he opposed the repeal of the corporation and test acts, had done so with temper and moderation; but now, in opposing the motion, he spoke of their conduct with the utmost indignation. At the very moment, he said, when they were reprobating the test laws, they discovered their intention of forming associations to impose a test on members of the house of

commons. Pitt also vindicated the necessity of a church establishment for the good of the state; and endeavoured to show that such an institution could not exist if toleration were extended to equality of privileges. Burke was more emphatic in his opposition to the motion than Pitt. A wild spirit of innovation was abroad, he said, which required not indulgence, but restraint; and he asserted that the avowed leaders of the dissenters had, in their speeches, resolutions, writings, and sermons, given countenance to the revolutionary spirit which everywhere prevailed. Burke read some extracts from dissenting divines in proof of his assertions; and he adjured the house to let the events which had taken place in France, and the sudden downfall of the church in that kingdom, awaken their zeal for the preservation of our own establishment. Fox rejoined, and urged the injustice of deciding a general question of right upon the conduct of a few individuals; but the motion was rejected by a majority of two hundred and ninety-four against one hundred and five. This decided hostility to the measure chiefly arose from the time at which it was brought forward, and the means which had been employed to ensure success. Many members, and among them the amiable Wilberforce, who had before voted for the repeal of these laws, now voted against it, from a conviction that it would give an impetus to the innovating spirit which so universally prevailed.

FLOOD’S MOTION FOR REFORM OF PARLIAMENT.

On the 4th of March, Mr. Flood, a celebrated Irish orator, moved for leave to bring in a bill to amend the representation of the people in parliament. This bill proposed to add one hundred members to the present house of commons, in a proportionate ratio to the population of each county, to be elected by resident householders. In his speech Mr. Flood boldly asserted that the members who sat in the house were not the adequate representatives of the people. He would not deny that they were the legal representatives, and he acknowledged that they were a useful and honourable council; but, to the honour of the British constitution, we were entitled to something better. Although Mr. Flood avowed that he was no friend to revolutions, and that he considered them an evil, yet it was evident that his motion arose from an innovating spirit; and as such it was opposed. Mr. Wyndham, member for Norwich, and the professed admirer of Burke, said, that if he had approved of the measure, he should still have objected to its being brought forward or adopted at the present time. Where was the man, he asked, who would advise them to repair their house in the hurricane season? Speculatists and visionaries were at work in a neighbouring country, and that, he thought, was sufficient. There was project against project, theory against theory, _frontibus adversis pug-nantia_. He entreated the house to wait for the event, and to guard with all possible care against catching the French infection. Pitt followed Wyndham, and he declared, “that if the motion before them were the precise resolution which he himself had formerly proposed, he should now vote against it, from a thorough conviction of its impropriety.” He recommended its withdrawal, promising, on some future day, to make the subject of parliamentary reform a ministerial measure. Fox rose to support the motion; and he affirmed, in the course of his speech, “that no season could be more proper for the commencement of repairs than when a hurricane was near and ready to burst forth.” At the same time he acknowledged that he felt convinced the opinion which he supported was neither that

of the majority of the house nor of the people. Burke combated the whole scheme and all the arguments that had been adduced in support of it; and asserted that these attempts at parliamentary reform were not countenanced by the people. Other members, as Wilberforce, Granville, and Powys, spoke on the same side, and the motion was at length withdrawn. These were the only great political questions which engaged the attention of the commons during this session. All change met with such an unyielding and decided opposition, that its advocates deemed it their wisdom to remain silent. In this line of conduct they were confirmed by the good temper of the people, who wisely exhibited a disposition to submit to any little wrongs they might be called upon to endure, rather than by a refractory spirit to run the risk of incurring greater.

EAST INDIA AFFAIRS.

On the 31st of March Mr. Dundas presented to the house an account of the financial state of India. He announced a great increase of revenue in Bengal; which he looked upon as the strongest proof of the prosperity and good government of the country. Dundas said, that in a few years he trusted the company would be enabled to pay off the whole of their arrears, and that the British possessions in India would be more flourishing in wealth, commerce, and manufactures, than any other part of Hindustan. In the present state of things, he remarked, we had nothing to fear from any European nation: Holland was our ally, and France was in no condition to disturb our foreign possessions. Tippoo Saib, he acknowledged, was an enemy; but without European auxiliaries, and the support of other native powers, he could never become formidable to the British empire. Dundas, indeed, indulged himself in the pleasing vision that this country was likely long to enjoy an undisturbed peace at home and abroad.

PITT’S FINANCIAL STATEMENT, ETC.

Pitt opened the budget for the year on the 15th of April; and in doing so he congratulated the house upon the prosperous state of the finances. He regarded the increase of revenue as progressive, and spoke with triumph of the growing greatness of England. Like Dundas, he spoke of the continuance of peace as certain; and he concluded his speech with an encomium upon the British constitution, to which, under Providence, the prosperity of the nation was to be ascribed. About the same time that the budget was opened, the house voted several sums as a recompense for services or indemnification for losses in the cause of the country. Thus an annuity of £1000 per annum was granted to the Rev. Dr. Willis, who had been instrumental in restoring his majesty’s intellects; the speakers salary was increased from £3000 to £6000; and the family of Penn had a perpetual grant of £4000 per annum bestowed upon them out of the consolidated fund, for the losses they had sustained during the revolt of the American colonies.

THE SLAVE-TRADE QUESTION.

Early in this session, Mr. Wilberforce, who had continued to devote time, life, fortune, and talent to the great subject of the slave-trade, moved that the house would resolve itself into a committee of the whole house, to take that trade into

consideration. This motion was agreed to; and on a subsequent day he moved and carried the appointment of a special committee for the examination of witnesses. Wilberforce was himself one of the most active members of this special committee; but nothing further was done during this session beyond hearing of evidence; every mode of procrastination being resorted to on the part of the slave-merchants and planters. The bill of Sir William Dolben, for limiting the number of slaves to be transported in each slave-ship, was renewed for another year; and the further consideration of the subject was adjourned till next session.

DISPUTES WITH SPAIN.

Although both Pitt and Dundas had so recently spoken confidently of the long continuance of peace, yet, on the 5th of May, a royal message was delivered, announcing circumstances which indicated the approach of war. The circumstances from whence this message originated were briefly these:—In his last voyage of discovery, the celebrated navigator, Captain Cook, had touched at Nootka, or Prince William, on the Western coast of North America, where his crew purchased some valuable furs, which they disposed of to great advantage in China. In consequence of the recommendation of Captain King, who published the last volume of “Cook’s Voyages,” some mercantile adventurers from the East Indies, with the consent of the governor-general, undertook to supply the Chinese with fur from these regions. For this purpose they fitted out two small vessels; and the trade proved so advantageous, that, in 1788, the adventurers resolved to form a permanent settlement. A spot of ground was accordingly procured from the natives at Nootka Sound, and a regular establishment was formed, which was defended by a slight fortification. This was, however, regarded by the Spaniards as an encroachment of their exclusive right of sovereignty; and two Spanish ships of war arrived in the sound, seized two English vessels with the crews, and then took possession of the settlement. The British flag was removed; the Spanish commandant declaring, that the whole line of coast from Cape Horn to the 60th degree of north latitude, belonged to the King of Spain. These incidents were notified to the court of Great Britain by the Spanish ambassador; who, at the same time, requested that measures might be taken for preventing his Britannic majesty’s subjects from frequenting those coasts, and from carrying on their fisheries in the seas contiguous to the Spanish continent, they being, it was stated, the rights of the Spanish crown. The claims of Spain, in reference to her right of dominion and sovereignty in America, were wholly chimerical; and the notification and request of the Spanish ambassador, therefore, were met by a demand of satisfaction for the insults offered to the British nation, and reparation to the individuals who had suffered in property and person. This satisfaction had not been given; and intelligence having also been received that armaments were fitting out in the Spanish ports, his Britannic majesty judged it right to prepare on his side for supporting the rights and interests of his kingdom. Such were the circumstances related in his majesty’s message to the house of commons; and he requested that they would enable him to make such an augmentation of force as necessity seemed to require. At the same time the king expressed an earnest wish that the satisfaction due might yet be given, and that the affair might terminate without recourse to arms, or any interruption of the friendship and harmony which subsisted between the two

nations. The message being taken into consideration, the commons unanimously voted an address to the king, assuring his majesty of their determination to afford the most zealous and effectual support in maintaining the dignity of his crown, and the essential interests of his dominions. This was followed by a vote of credit for £1,000,000, for the purpose of making the necessary warlike preparations. Fox gave his warm support to the address and vote of credit, but he blamed ministers for their exultation on the prospect of peace, when a war with Spain had so long been threatened: though from Pitt's explanation it did not appear that they knew anything of the preparations in the Spanish ports till a very few days since. Subsequently, motions were made in both houses, by opposition, for the production of papers to illustrate the grounds of this dispute; but these were successfully resisted, on an established rule of policy, prohibiting all documents relating to a negociation with a foreign power from being produced while such negociation was still pending.

{GEORGE III. 1789–1791}

IMPEACHMENT OF WARREN HASTINGS.

The trial of Warren Hastings recommenced on the 10th of February, on which day Mr. Anstruther went through the charge relating to the corrupt receipt of presents. Disputes instantly arose about the evidence proper to be admitted, and their lordships took another walk to their chamber in order to debate and consult. Fresh objections were then made by the counsel acting for Hastings, who said that the matter which, the managers brought forward was neither set down nor made a charge of in the articles of impeachment. On this their lordships adjourned again, and after long consultation, the objections made on the part of the defendant were held to be valid. The managers and the public by this time seemed to consider that the trial would never be finished, and Burke, on the 11th of May, called the attention of the house of commons to its protracted continuance; and moved the two following resolutions:—1. "That this house, taking into consideration the interruptions occasioned by the occupations of the judges and the house of lords, as also the impediments which have occurred, or may occur, in the course of the trial of the impeachment of Warren Hastings, Esq., doth, without meaning to abandon the truth or importance of the charges, authorize the managers of their said impeachment, to insist only upon such and so many of the said charges as shall appear to them the most conducive to the obtaining speedy and effectual justice against the said Warren Hastings. 2. That the commons of Great Britain in parliament assembled, from a regard to their own honour, and from the duty which they owe to all the commons of Great Britain, in whose name, as well as in their own, they act in the public prosecutions by them carried on before the house of lords, are bound to persevere in their impeachment against Warren Hastings, Esq., late governor-general of Bengal, until judgment may be obtained upon the most important articles in the same." The first of these resolutions was adopted, but the latter was dropped as unnecessary. In supporting them the managers attributed the delay to Hastings himself, to his counsel, and to the house of lords. A day or two after, however, Major Scott, published a letter containing a review of the trial, and strictures upon the managers,

whom he accused of being guilty of a great crime in instituting the prosecution, and of a still greater crime in not having brought it to a close long ago. Long and angry debates took place on the publication of this document, the result of which was that Major Scott was reprimanded, sitting in his place, for the violation of his duty as a member of the house of commons. In the meantime the impeachment still went but slowly forward. The court of peers only sat thirteen days during the session, and did not get beyond the charge which Anstruther had opened. After Fox had summed up and commented upon the evidence, on the 9th of June their lordships agreed to postpone the trial till the first sitting in the next session of parliament.

PARLIAMENT PROROGUED, AND DISSOLVED.

On the 10th of June his majesty closed the session by a speech from the throne, in which he informed the two houses of his intention of dissolving the present and calling a new parliament. In his speech the king said that he had as yet received no satisfactory answer from the court of Madrid, and that he was therefore under the necessity of continuing his preparations for war. He acknowledged their affectionate and unshaken loyalty to his person; their uniform and zealous regard for the true principles of the constitution; and their unremitting attention to the happiness and prosperity of his people. His majesty then dwelt upon the rapid increase of manufactures, commerce, and navigation; the security given to our most distant possessions; and the improvement of the public revenue. He added, after thus enumerating the salutary effects of their counsels:—“The loyalty and public spirit, the industry and enterprise of my subjects have well seconded your exertions. On their sense of the advantages which they at present experience, and their uniform attachment to my person and government, I rely for a continuance of that harmony and confidence, which must at all times afford the surest means of meeting the exigencies of war, or of cultivating with increasing benefit the blessing of peace.” On the next day parliament was dissolved by proclamation: it had existed seven sessions.

SETTLEMENT OF DISPUTES WITH SPAIN.

The British government, desirous of avoiding hostilities, dispatched Mr. Fitzherbert to Madrid, with full powers to settle all disputes between the two nations. At first the Spanish court showed itself adverse to negociation, and applied to that of France for aid. The court of France, however, though willing to support the Bourbon compact, had lost the power, for the people, by whom it was now kept in awe, were averse at this time to a war with England. Unable to contend with the British arms alone, Spain was therefore compelled to comply with the demand of restitution and indemnification: on the 2nd of October a convention was signed at the Escurial, by which every point in dispute was conceded. The settlement at Nootka-Sound was restored; the free navigation and right of fishery in the Southern Pacific were confirmed to Britain; and a full liberty of trade and even of settlement was granted to all the north-west coasts of America, beyond the most northerly of the Spanish territories, though unaccompanied by any formal renunciation of their right of sovereignty. Both nations were equally restricted from attempting to form any settlement nearer to Cape Horn than the most southerly plantations already established by Spain. It was also agreed, that, in case of any future complaint, no

violence should be committed, but recourse had to an amicable adjustment between the respective courts. This convention was generally applauded in England, though £3,000,000 had been expended in warlike preparations.

CONTINENTAL AFFAIRS.

Early in this year the Emperor Joseph of Austria died, and was succeeded by his brother Leopold, Grand Duke of Tuscany. On his death-bed, Joseph, who had during his life shown himself an ambition & warrior, recommended peace, and the first care of his successor was to free himself from the Turkish war. Under the mediation of England, Prussia, and Holland, negociations for peace were opened at Reichenbach, in Silesia, on the 4th of June, and a treaty of peace was settled on the _status quo_ principle, that each party should retain what it possessed previous to the war, restoring all that it had conquered, and recovering all that it had lost. The Czarina of Russia was invited to be a party to this treaty, but she refused, and still carried on war with the Turks on the one side, and the Swedes on the other.

The congress at Reichenbach interfered likewise in the affairs of the Netherlands: England, Prussia, and Holland guaranteed to the Emperor Leopold all the possessions of the House of Austria in Flanders, Brabant, &c., on the condition that he acknowledged and re-established the ancient privileges and constitution of those provinces. On the accession of Leopold, and before the meeting at Reichenbach, or before any kind of measure was attempted, either diplomatically or otherwise, he had sent a memorial to the Netherlanders, in which he expressed sincere regret for the despotic proceedings of the Austrian government, and declared his anxiety to redress all grievances; at the same time vindicating his claim to the sovereignty, and announcing his resolution to maintain it with all his might. Although the Netherlanders had established their independence, there was still among them a strong loyal imperial party, and this address and the situation of Belgian affairs revived the spirits of these loyalists, and they soon began to declare themselves in favour of Leopold, and to wear the old cockade, instead of the new patriotic ribands. By degrees, great numbers of the populace, also, embraced their opinions, and the party soon acquired a very imposing force. Such was the situation of affairs when Leopold issued a second manifesto, after the meeting at Reichenbach, engaging himself, under an inaugural oath, and the guarantee of Great Britain, Prussia, and Holland, to govern the Belgic Netherlands according to the constitution that was in force under Maria Theresa, and offering an amnesty to all who should return to their duty before the 1st of November. The mediating powers notified to the Belgian states the approval of these terms, but that body, who had exercised sovereign authority ever since the revolt, were loth to relinquish it; and under these circumstances, Austrian troops entered their territory. Various engagements took place, but resistance was vain: the arms of the emperor were uniformly successful, and the people generally acknowledged the heir of their ancient rulers. The leading members of opposition now took refuge in flight, and in a convention, guaranteed by the defensive alliance and executed on the 10th of December, the constitution of Maria Theresa was restored to the Belgic provinces, with some additional rights and privileges.

In the meantime the war between Russia and the Porte went on but slowly. Early in the year the czarina made some attempts to detach the Greek subjects of the sultan from their obedience, and a rebellion was fomented by her means in Albania, and an extensive plan was arranged by the Greeks for emancipating themselves from the Ottoman yoke. A memorial, offering the sovereignty of Greece to Constantine her son, was laid before the czarina, but before the plan could be matured she was induced to postpone her attempts upon Turkey. It was late in the autumn before Suvaroff received reinforcements, supplies, and positive orders to commence operations, and he then invested Ismael, which he captured; slaying 24,000 Turkish soldiers, and destroying 7,000 of the inhabitants. The loss of the Russians themselves was estimated at 10,000 men, including a great number of officers, some of whom were of the highest rank.

The King of Sweden opened the campaign early in this year, and penetrated within one hundred miles of St. Petersburg. Alarmed at the approach of her enemies, the czarina sent 10,000 Russians, under the command of General Ingelstrom, to obstruct their progress. Ingelstrom attacked the Swedes in their lines at Karnomkoksi, on the Saima Lake, but he was defeated with the loss of 2000 men. Gustavus still advanced, while his fleet, under the Duke of Suclermania, sailed up the Gulf of Finland, penetrated into the harbour of Revel, in the hope of demolishing that great naval arsenal, and a division of the Russian fleet which lay at anchor in that harbour. He was frustrated by a storm, and, subsequently, he was twice attacked by Russian squadrons, which on both occasions enclosed his fleet; but each time he extricated himself from danger, though with great loss cf ships and men. Having recruited his shattered forces, Gustavus took the command of the fleet himself, and having encountered a large Russian fleet, after a bloody battle, which lasted two days, he gained a decisive victory. This defeat alarmed the czarina, and being abandoned by Austria and threatened by England and Prussia, she entered into negociation with Gustavus, and by the month of August a treaty of peace was concluded between them. By this treaty those of Abo and Nystad were confirmed; each power was to retain what it possessed before the war; and Sweden renounced all claim to the possessions which had once belonged to it, and which it had overrun during the present war. Russia also granted permission to export grain from Livonia; and it was mutually agreed to appoint commissioners to settle in an amicable manner the line of frontier between the two countries: the two courts further promised themselves that they should strengthen their connexion by a close alliance, and agreed to forget what was past.

In Paris, during this year, the national assembly pursued its legislative labours. All ecclesiastical possessions had, at the close of the preceding year, been declared national property, and the reformers soon after laid their hands on the domains of the crown: with the exception of some castles, which were to be left to the king, the rest were transferred to the state. To facilitate the sale of the possessions of the crown and the church, paper money was created, which was at first ordered to last only six years, but which was subsequently declared current money—as good as gold. These measures were followed by the suppression of all orders and cloisters; by the suppression of the parliaments; by an entire change of the judicial system; by the

admission of Jews to the rights of citizens; by the abolition of all the titles of the noblesse, coats of arms, and decorations of the order of chivalry; by an order that the estates of Protestants who fled from France on the iniquitous repeal of the edict of Nantz, should be restored; by a division of France into eighty-three departments, subdivided into two hundred and forty-nine districts, each of which was composed of from three to five cantons; and by a change in the national representation, which was made to harmonize with this new division. To all these decrees the king, who had no alternative, gave his unqualified sanction, and in return the national assembly fixed the civil list of the king at 25,000,000 of livres, besides the possession of castles of pleasure. Harmony seemed to be restored, and to establish it a festival of confederation was ordained, which, on the first anniversary of the capture of the Bastille, was held in the field of Mars, when the king and 500,000 Frenchmen swore on the altar of the country to observe the new constitution. But notwithstanding all this show of harmony, a secret fermentation remained. The abolition of titles and the insignia of rank inflamed the anger of the aristocrats, and the manifestations of their wrath increased the hatred of the commons. A new emigration took place, and officers, as well as nobles, fled for their lives. The emigrants assembled in arms at Coblentz, Worms, and Ettenheim, from whence, maintaining a close connexion with their friends or dependants at home, they cast firebrands into the interior of the kingdom. Nor did the priesthood quietly submit to the civil constitution which the national assembly imposed upon them: they refused to take the oath, and stirred up many against public authority and the new constitution. The friends of liberty were alarmed and exasperated at the open and secret preparations of this twofold and implacable opposition. In this state of irritation all that was known was friend and enemy; and these relations effected the triumph of the fanatic and the fall of the moderate. One of the first who fell was Necker, to whose counsels the nation was indebted for most of the concessions of the king, and consequently for its success: Necker lost all his popularity, and fled from a country which he had contributed to ruin. The king, also, soon again declined in popular favour; the sentiments of his heart did not accord with his public declarations, and this becoming manifest, the popular party was disquieted and enraged. Mirabeau, whose ardour for revolution had begun to cool, and who now saw that the constitution was far too democratic for a monarchy, leagued secretly with the fallen court, and laboured with all the force of his popularity to raise it from its degraded state, and to recover for the crown a portion of strength necessary for its existence. But it was too late. Before this, clubs had been formed among the members of the national assembly, in order that better directed and more energetic efforts might be made in securing the objects of the revolution. Pre-eminent among these clubs was that of the deputies from Bretagne, which held its sessions in the suppressed cloister of the Jacobins, from which cloister the members of the club received the name of Jacobins; a name which finally obtained a bad celebrity in the world’s history. Similar clubs were also formed in most of the important cities of the kingdom, which maintained, with that at Paris, the closest union of sentiments and efforts. The bonds of society in France were, in truth, loosened, and no human skill could restore them: the bridle had been taken from the mouth of the fiery steed, and no human arm could arrest his headlong course. Marat, Danton, and Robespierre-men of blood—with others of the same stamp, had already

made their execrable names known in the clubs of the Cordeliers and Jacobins, which finally united, and these were the men who were, for a brief period, to rule the destinies of France.

PROGRESS OF REVOLUTIONARY PRINCIPLES IN ENGLAND.

It has been well said that the season of hope and delusion ought now to have been over—that whatever right-hearted and right-headed Englishmen might have thought of the French revolution at the opening of the States-general in May, 1789, they ought not at the close of this year to have regarded it with any other sentiments than those of horror, disgust, and pity. But “rebellion is as the sin of witchcraft.” Although it was as clear as the sun at noon-day, that the events which had taken place in France were but the precursors of some horrible catastrophe—that the French regenerators sought not wholesome and legitimate reformations, but the ruin of their country, yet it is a lamentable fact that their admirers in England were now greatly on the increase. On the very day that the festival of confederation took place in Paris, six hundred gentlemen in England assembled to celebrate the event which it commemorated. The chairman of this assembly was Earl Stanhope, who acted as president of the Revolution Society in London: a society which, after extending its ramifications throughout the country, entered into an active correspondence not only with the National Assembly, but with the societies in all parts of France, instituted for the promotion of revolutionary principles. Among the associates of this society were men of all ranks and professions—men who could lay no claim to a practical acquaintance with politics, or the working of governments, and who knew little or nothing of human nature. Happily for the country, however. Burke and other writers put forth all their strength to show the danger which lurked in the Revolution Societies of England, and government opposed a mighty barrier to the progress of their dangerous principles. These wrought the salvation of the country. The most powerful antagonist to these societies, who worked by means of the press, was Burke, who, toward the end of this year, published his great work on the subject, entitled “Reflections on the Revolution, &c.” a work which sounded the knell of the old Whig confederacy. Some of this party yielded at once to the force of his arguments, while others retreated as they saw the development of the principles against which they were directed. In fact, the result of this work was to make the old appellations of Whig and Tory assume a widely different meaning from that which had hitherto been attached to them: by the term Whig was now understood the favourers of such democratic principles as existed in France; by that of Tory, those who were alarmed at the progress of the French revolution. The bold and uncompromising stand which Burke made against these principles led to a final rupture between him and his old friend Fox, and consequently to the permanent separation of the great Whig party: from this time there was a division in the camp; a breach which could not be healed.

WAR IN INDIA.

During this state of affairs in Europe, a war which directly concerned England broke out in India. Tippoo Sultaun, whose hatred towards the English was mortal, in the year 1789 sent a secret messenger to France, to invite the French government to send six thousand of their best troops to the Carnatic, with which he engaged to drive

the British forces out of every part of Hindustan. This messenger was favourably received by the people, and even some of the king's ministers were in favour of the project. Louis, however, had not forgotten the lesson he had been taught by interfering in the American war—an act for which he was still indeed suffering—and he turned a deaf ear to the plausible representations which were made to him in order to obtain his consent. But before Tippoo received an answer from the French monarch, he had commenced operations, by attacking the Rajah of Travancore, who had long been the close ally of the English. Before the end of the year 1789 Tippoo had overrun and took possession of the greater part of the rajah's dominions, and subsequently he defeated a detachment of the company's army, under Lieutenant-Colonel Floyd. His progress, however, was soon stopped. The Bengal government, having formed a close alliance with the Mahrattas, the Nizam of the Deccan, and other native powers, raised two armies; one in the Carnatic of 15,000 men, under General Medows, and another of 7,500 men, in the presidency of Bombay, under General Abercrombie. Thus threatened, Tippoo evacuated the Travancore country, and retreated to his strong capital, Seringapatam. But he had provoked the war, and it was not to close with his retreat. In June, 1790, Medows, with the Carnatic army, marched towards Seringapatam, and took several important fortresses in his route. Medows, however, was obliged to retrace his steps by intelligence that Tippoo had again burst into the Carnatic, and was carrying fire and sword to the walls of Madras. Tippoo was soon obliged to retire beyond the mountains; and in the meantime General Abercrombie, with the Bombay army, landed at Tellicherry, and reduced all the places which the enemy possessed on the Malabar coast, in which he was aided by the Nairs, and the other petty Hindu rajahs, who were glad of an opportunity of rescuing themselves from Tippoo Sultaun's rule. In the end the Rajah of Travancore was re-established in his dominions, and then the campaign closed: but the war was not yet over.

MEETING OF PARLIAMENT.

The new parliament assembled on the 25th of November. In his speech his majesty expressed great satisfaction at the amicable adjustment of the late disputes with Spain about Nootka Sound; observed that since the last session of Parliament a foundation had been laid for a pacification between Austria and the Porte, and that a separate peace had been concluded between Russia and Sweden; noticed the hostilities which had broken out in India; acquainted the house of commons that the expenses of the armament, together with the estimates for the ensuing year would be laid before them; and called particular attention to the state of the province of Quebec. The address was carried in both houses with large majorities; though ministers were censured by opposition, in the lords and in the commons, for the convention which they had made with Spain. On the 3rd of December, when copies of this convention were laid before the two houses of parliament, it was urged in the commons that more papers ought to be produced, and on the 13th of the same month Mr. Grey made a motion for all that related to the affair of Nootka Sound. This motion was negatived by a majority of nearly two to one; and on the following day Mr. Duncombe, one of the members for Yorkshire, after mentioning that trade and manufactures had suffered but little during the late dispute with Spain, moved an

address to his majesty on the late successful negociations with the court of Madrid, which was carried by a still larger majority. A similar address was moved in the lords by the Duke of Montrose, when the Marquess of Lansclowne took occasion to reprobate the convention in very strong language. The marquess contended that the Spanish nation had an indisputable right to the whole of the American coast on which Nootka Sound is situated; a right which was acknowledged in the reign of Queen Elizabeth. Overlooking the provocation which Spain had given, and her previously concerted plan to enter upon a war in conjunction with France, he said that ministers had, in the arrogance of power, insulted the present weakness of that country, and inflicted a wound which would rankle in the heart of the Spanish people. The marquess also argued that they had alienated and made enemies of Prance, Russia, Denmark, and Sweden, as well as of Spain. He also argued, that by the late treaty of France, which was an infringement of the old Methuen treaty with Portugal, ministers, had alienated the court of Lisbon, and that had war taken place, the Portuguese, Venetians, and Neapolitans, would have joined the Spaniards against England. Lord Rawdon spoke on the same side; hinting a suspicion that our fleet had been destined for the Baltic, while we were bullying Spain, which had not offered any insult to this country; and that this farce had been carried on until the King of Sweden had made peace with Russia. The convention was defended by Lord Grenville, and the address was carried by a majority of forty-three. Another debate took place on this subject on the 15th of December, when Pitt gave in, in a separate account, the expenses of the late armament; intimating at the same time that some of those expenses, which arose out of the engaging an additional number of seamen, must be continued, as these seamen could not be all disbanded at once. The expenses incurred by the late armament, and the funds necessary to keep up the additional number of seamen, he said, was £3,133,000, which he thought might be defrayed without entailing any permanent charge upon the revenue. He proposed to defray it by temporary taxes, assisted by £500,000, which he contemplated taking from the unclaimed dividends lying in the Bank of England, the total amount of which he estimated at £680,000. This latter proposition, however, excited such alarm in the great chartered companies and to the mercantile world in general, that Pitt was obliged to abandon it, and to accept of a loan of £500,000 from the Bank without interest, so long as a floating balance to that amount should remain in the hands of the cashier. The bulk of the money required was raised by an increase of the duties upon sugar, British and foreign spirits, malt, game licences, and by an increase of the assessed taxes, except the commutation and land-taxes, part of which were to continue for two years, and the rest for four only. Pitt also introduced, in aid of the expenses of the armament, a variety of new regulations, to prevent the evasions and frauds practised in the taxes upon receipts and bills of exchange: these were to be permanent.

CHAPTER XVIII.

{GEORGE III. 1791–1792}

Debate on the War in India..... Dispute with Russia..... Bill for the Regulation of Canada..... Slave-trade Abolition bill..... Catholic Relief Bill, etc..... Bill to amend the Law on Libels..... Financial Measures..... Impeachment of Warren Hastings..... Parliament prorogued..... Progress of the Revolution in France..... State of Public Opinion in England, etc.

{A.D. 1791}

DEBATE ON THE WAR IN INDIA.

Soon after the Christmas recess, Mr. Francis, having first eulogised Tippoo Sultaun, and contended that it was both impolitic and unjust to think of extending our territories in Hindustan, moved thirteen resolutions for the purpose of censuring the origin and preventing the continuance of the war, which he represented as having been begun without provocation, as being ruinously expensive, and as not likely to be productive of any great advantage. Pitt and Dundas vindicated the war, and showed to demonstration that the war originated in Tippoo's restless ambition, hostility to the British, and long-premeditated design of subduing Travancore, which would open to him an easy entrance into the Carnatic, and thus enable him to attack Madras and all our possessions in that part of the East Indies. A war on our part, it was argued, was therefore necessary, unless we wished to sacrifice both our honour and interest, and to forfeit all respect among the native powers. The feelings of the house were with Pitt and Dundas, especially as great confidence was placed in the moderation and justice of Lord Cornwallis, the present Governor-general of India, and hence Francis let his thirteen resolutions drop without a division. Seconded by the feelings of the house, a few days after, Dundas moved three counter resolutions; namely, that it appeared to the house that the attacks made by Tippoo Sultaun on the lines of Travancore were unwarranted and unprovoked infractions of the treaty of Maugalore, concluded in 1784; that the conduct of the governor-general, in determining to prosecute the war against Tippoo for these attacks on Travancore, was highly meritorious; and that the treaties entered into with the Nizam and with the Mahrattas were calculated to add vigour to the operations of the war, and to promote the future tranquillity of India, and that the faith of the British nation stood pledged for the performance of the engagements contained in the said treaties. These resolutions were adopted by the house without a division.

DISPUTE WITH RUSSIA.

In proposing to continue the additional number of seamen which had been engaged for the expected war with Spain, Pitt had said that there were circumstances in the present situation of Europe, which made it necessary to keep up a naval armament, for a time, of more than ordinary extent. This had reference to the warlike attitude of Russia. At the congress of Reichenbach, the defensive alliance had proposed to the Czarina that she should accede to the peace which they were negociating with Austria, and that all conquests should be restored. This she flatly refused; but subsequently, being deprived of lier ally, and seeing that it was at present impossible for her to subjugate Turkey to her sway, she offered to restore all

her acquisitions, except the city and dependencies of Oczakow, an important place, commanding the mouth of the Dnieper, at a distance of less than two hundred miles off the Turkish capital. As this offer exhibited an inclination on the part of the Czarina to recommence the war at some future period, the allies projected a more effectual interference, and on the 28th of March Pitt delivered a message from the king on the subject. His majesty acquainted his faithful commons, that his endeavours, in conjunction with his allies, to accomplish a pacification with Russia and the Porte had proved abortive; and that the consequences which might arise from the continuance of the war being important to his own interests, as well as those of his allies and to Europe in general, he judged it requisite, in order to add weight to his representations, to augment his naval forces, relying on the zeal and affection of the house of commons to make good such expenses as might be incurred. After delivering this message, Pitt moved an address to the king, thanking him for it, and promising him the support of the house. In doing so the minister represented, that, if Russia should be allowed to gather any material strength at the expense of Turkey, the effect would be injurious to the interests of all Europe; and that the interference of England was indispensable for the preservation of that balance of power, which all statesmen and men of all parties held to be essential for the security of Europe. This doctrine was very ancient, and had long been the doctrine of both Whig and Tory, but it was now despised by the opposition, who, to a man, became the champions of the Czarina. It was argued that it would be folly to sacrifice all the advantages of our immense trade with Russia for the sake of a Turkish fortress; that neither wisdom nor policy could justify Great Britain in going to war to preserve a barbarian power, which for the sake of religion, justice, and humanity ought to be utterly extirpated; and that, as we had received no injury from Russia, all hostile interference on our part was wholly unnecessary. On the other hand, it was argued by ministers that the aggrandisement of Russia at the expense of Turkey would injure both our commercial and political interests; and that the possession of Oczakow would facilitate the acquisition, not only of Constantinople, but of Alexandria and Lower Egypt. The address was carried, and several resolutions afterwards moved against the armament were rejected by large majorities. The armament therefore continued, and the Czarina was soon compelled to give up Oczakow with all her other acquisitions in Turkey, acquisitions which had cost her many thousand men to obtain.

BILL FOR THE REGULATION OF CANADA.

When Canada became a British colony the king had promised its inhabitants the benefits of the British constitution. Since that time the French settlers in that country, and the Canadians, had been joined by many British subjects, and by loyal emigrants from America, who were anxious to secure the advantages which the royal promise held out to them. Ministers had for some time directed their attention to the subject, and on the 4th of March Pitt moved for leave to bring in a bill for regulating the government of Canada, and entered into a minute detail of every provision which he meant to propose. He proposed to divide Canada into two provinces, Upper and Lower, and to establish distinct legislatures; the division being meant to separate the parts which were chiefly inhabited by French Canadians, from those inhabited by more recent settlers. The legislature of each province was to consist of a council and

house of assembly. The members of the council were to hold their seats for life, with a reservation of power to the crown for annexing to certain honours an hereditary right of sitting in the council; and the members of the assembly were to be chosen by freeholders possessing landed property to the amount of forty shillings, or occupiers of houses worth twenty pounds per annum. The _habeas corpus_ act was to be rendered a permanent law of the colony; and a provision was to be made for the Protestant clergy by an allotment of lands. Appeals were to be made to the privy-council in the first instance, and from thence to the house of lords. The British government gave up the right of taxation, asserting only that of regulating external commerce: no taxes were to be imposed except such as were necessary for this regulation. This bill was read twice; it passed the committee, and the report was received by the house, before any disapprobation of it was expressed. On the second consideration of the report, however, Fox condemned its every principle. He observed, that the object of all popular assemblies was that the people should be fully and fairly represented, but as the assembly of one province was to consist of sixteen, and the other of thirty, the people were deluded by a mockery of representation. Fox also objected to the representatives being elected for the term of seven years, and contended that there should be annual, or at most triennial elections. Even in England, he said, where the frequent return of elections was attended with great inconvenience, the propriety of the septennial bill might justly be doubted. Fox further objected, that the legislative councils were unlimited as to numbers by any other restriction than the pleasure of the king, to whom a power was reserved of annexing to certain honorary and titular distinctions an hereditary right of sitting in council. As to hereditary honours, he remarked, as a general proposition, it was difficult to say whether they were good or not, but he saw no good in their being introduced into a country where they had hitherto been unknown. It might not be wise to destroy them where they existed, but it was unwise to create them where they did not exist. He could not account for this step, unless it was that Canada having formerly been a French colony, there might be an opportunity of reviving those distinctions, the loss of which some gentlemen so deplored, and to revive in the west that spirit of chivalry which had fallen into so much disgrace in a neighbouring country. In the course of his speech Fox made one unhappy allusion to the extinction of nobility in France, and its forced revival by us in Canada: “nobility,” he said, “stunk in the nostrils of the people of America.” At this time, indeed, Fox and his party embraced every opportunity of extolling the “glorious revolution” in France, whence, on the re-commitment of the bill, Burke again sounded the trumpet of alarm at that event. In enlarging upon the importance of the act which they were now about to perform, he said, “The first consideration was the competency of the house to such an act.” “A body of rights,” he continued, “commonly called the Rights of Man, had been lately imported from a neighbouring kingdom; the principle of which code was, that all men were, by nature, free and equal in respect of those rights. Now, if this code were admitted, he argued, the power of the house could extend no further than to call the Canadians together to choose a constitution for themselves. But the practical effects of such a system might be seen in St. Domingo and the other French islands. Until they heard of the Rights of Man they were flourishing and happy, but as soon as this system arrived among them, Pandora’s box, replete with every mortal evil,

seemed to fly open; hell itself to yawn; and every demon of mischief to overspread the country. Blacks rose against blacks, whites against blacks—and each against the other in murderous hostility: subordination was destroyed, the cords of society snapped asunder, and every man appeared to thirst for the blood of his neighbour. The mother country, France, not receiving any pleasure in contemplating this image of herself reflected in her child, sent out a body of troops to restore order and tranquillity. But these troops, well instructed in the new principles, immediately upon their arrival felt themselves bound to become parties in the universal rebellion; and, like most of their brethren at home, began the assertion of their freeborn rights by murdering their own general! Should such an example induce us to ship off for Canada a cargo of the Rights of Man?" Burke next proceeded to describe the deplorable condition of France itself, and to comment on the conduct of the national assembly towards their monarch. In the midst of his speech he was called to order by Mr. Baker, and a scene of indescribable confusion ensued, and much time was wasted in violent altercation: one side of the house contending that Burke was in order, and the other that he was out of order. In the midst of this discord Fox sarcastically said, that he conceived his honourable friend could hardly be said to be out of order, since it seemed to him that this was a day of privilege, upon which any gentleman might abuse any government he chose, whether it had any reference or not to the question before the house. Nobody had said a word about the French revolution, but nevertheless his right honourable friend had risen up and abused that event. Burke had certainly as much right to abase the revolution, as Fox and his party had to extol it; and he attempted to explain why he thought that he was in order, but the roar of voices which was raised from the opposition benches drowned his voice, so that he was compelled to sit down. Lord Sheffield now rose and moved, "That dissertations on the French constitution, and to read a narrative of transactions in France, are not regular or orderly on the question before the house." Fox seconded this motion, and this gave rise to the utter disruption of the friendship which had subsisted between him and Burke:—there had been heart-burnings before, arising from a difference of opinion on the subject of the French revolution, but now their political union was brought to a close. After Pitt had defended Burke, and declared that he should give his negative to the motion, Fox rose to defend his former sentiments respecting the French revolution, and repeated that he thought it, upon the whole, one of the most glorious events in the history of mankind. As for the Rights of Man, which his right honourable friend had ridiculed as visionary, he contended that they were the basis and foundation of every rational constitution. The rights of the people, he said, were recognized in our statute-book, and no prescription could supersede, no accident could remove or obliterate them. This at one time had been the doctrine of his friend, who had said, with great energy and emphasis, that he could not draw a bill of indictment against a whole people. He was sorry to find, however, that his right honourable friend had learned to draw such a bill of indictment, and moreover to crowd it with all the technical epithets which disgraced our statute-book: such as false, malicious, wicked, by the instigation of the devil, and the like. He added, that having been taught by his right honourable friend that no revolt of a nation was caused without provocation, he could not help rejoicing at the success of a revolution resting upon the same basis with our own—the Rights of Man: no book his friend

could write, no words he could utter, could ever induce him to change or abandon his opinion; he must differ with his friend upon that subject _toto colo_. Throughout the whole of his speech Fox alternately rebuked and complimented Burke, and while he vindicated his own opinion he questioned the consistency of his friend. Fox even ventured to speak contemptuously of Burke’s book on the subject of the French revolution, and to assert that he had written it in haste, and without due information. His whole speech, in fact was ungenerous in the highest degree, whence it is no wonder that when Burke rose to reply it was under the influence of strongly excited feelings. Having touched upon the main question, and vindicated his conduct in putting the country on its guard against the dangerous doctrines which prevailed in France, and which had found many advocates in England, he complained of being treated with harshness and malignity—of being personally attacked from a quarter where he least expected it, and that after a close intimacy of twenty-two years. His whole conduct, words, and writings, he said, had not only been misrepresented and arraigned in the severest terms, but confidential conversations had been brought forward in order to prove his political inconsistency. He had been accused of writing and speaking on the subject of the French revolution without due information, but nevertheless he was ready to meet Fox, hand to hand, and foot to foot, in a fair and temperate discussion relative to that event. It was his imperative duty, he exclaimed, to speak upon French affairs, and to point out the danger of extolling, upon all occasions, that preposterous edifice, the French constitution; an edifice which the right honourable gentleman had termed the most stupendous and glorious which had been erected on the foundation of human integrity in any time or country. Our own government, he continued, was in danger, for there were political clubs in every quarter, meeting and voting resolutions of an alarming tendency. Dangerous doctrines were also promulgated from the pulpit, and infamous libels on the British constitution were everywhere circulated. There might not, indeed, be any immediate clanger, since we had a king in full power, ministers responsible for their conduct, a country blessed with an opposition of great strength, and a common people that seemed to be united with the gentlemen; but, nevertheless, there was cause for circumspection, as in France there were 300,000 men up in arms, who would be glad to intermeddle, and as a season of scarcity might arrive, when the low intriguers and contemptible clubbists, which abounded on every hand, might rise in revolt against the government. Burke again adverted to the unkindness with which he had been treated by his old associate, and remarked, that though he had frequently differed with him there had still been no interruption of personal friendship. But, he added, although at his time of life it might not be discreet to provoke enemies or to lose friends, yet if his steady adherence to the British constitution placed him in such a dilemma, he would risk all, and, as public duty required, would exclaim with his last breath, “Fly from the French constitution!” Fox here whispered that there was no loss of friendship, but Burke rejoined—“Yes there is: I know the price of my conduct; I have done my duty at the price of my friend; our friendship is at an end!” Burke then addressing himself to the two great rivals, Pitt and Fox, expressed a hope that whether they hereafter moved in the political hemisphere, as two flaming antagonist meteors, or walked like brethren hand-in-hand, they would preserve and cherish the British constitution against innovation and new-fangled theories. Fox rose to reply,

but the tears trickled down his cheeks, and emotion for some time impeded his utterance. He felt the loss of his friend: yet, on recovering himself, while he made an eloquent appeal to the remembrance of the past, and to the reciprocal affection which had subsisted between them, as dear as that between father and son, he still gave utterance to some bitter sarcasms, and repeated some of his objectionable remarks. Rejoinders on both sides followed, and the dispute was renewed on the 11th of May, the house being again in committee on the Quebec Bill, but no concessions were made on either side, and the connexion between these illustrious men were dissolved for ever.

They stood aloof; the scars remaining— Like cliffs which had been rent asunder.

The Quebec Bill, which had given rise to this dispute, was finally carried through the house of commons, with some amendments, on the 18th of May; and it subsequently passed the lords, though not without much opposition, and obtained the royal assent at the close of the session.

SLAVE-TRADE ABOLITION BILL.

On the 18th of April, the evidence on the slave-trade being closed, Mr. Wilberforce moved “for a bill to prevent the further importation of African negroes into the British colonies.” He introduced this motion with a copious and convincing display of arguments in its favour, grounded on the principles of justice, humanity, and Christianity, but though it was supported by Pitt and Fox, self-interest prevailed: the motion was negatived by one hundred and sixty-three against eighty-eight. The advocates of humanity, however, completed at this time the establishment of the Sierra Leone Company, by which they proposed to introduce free labour and Christianity into Africa. A bill was brought in for this purpose by the excellent Henry Thornton, and it passed through both houses without opposition.

CATHOLIC RELIEF BILL, ETC.

During this session Mr. Mitford moved for a committee of the whole house, to enable him to bring in “a bill to relieve, upon conditions, and under restrictions, persons called Protestant Catholic Dissenters, from certain penalties, to which Papists are by law subject.” A reform in the penal statutes was at this time peculiarly called for, since a large body of Catholic Dissenters had recently formally protested against the temporal power of the pope, and his right to excommunicate princes, or to absolve subjects from their oath of allegiance; and had likewise disavowed the lawfulness of breaking faith with heretics, and the power claimed by their priests, of exempting men from moral obligations. The principles of the bill were generally approved, and it passed both houses without opposition: the bishops themselves expressing sentiments in its favour. Encouraged by this liberality of parliament, the church of Scotland transmitted from the general assembly a petition praying for the relief of the Test Act, as far as it applied to that country; and subsequently Sir Gilbert Elliot made a motion on the subject, but it was rejected by a large majority.

BILL TO AMEND THE LAW ON LIBELS.

On the 20th of May, Fox brought in a bill for empowering juries to try the question of law as well as fact, in prosecutions for libel. This subject was debated as a constitutional right, and not as a party question, and having obtained the support of Pitt, it passed the commons with very little opposition. In the lords, however, it was objected to as an innovation on the laws of the kingdom, and though warmly supported by Lords Camden, Grenville, and Loughborough, the motion for the second reading was negatived.

FINANCIAL MEASURES.

Previous to the introduction of his financial measures, Pitt proposed the appointment of a committee to inquire what had been the amount of the income and expenditure during the last five years, and what they might be expected to be in future; and also what alterations had occurred in the amount of the national debt since the 5th of January, 1786. This committee made its report on the 10th of May, when it appeared that the annual income had been £16,030,285, and the expenditure, including £1,000,000 for liquidating the national debt, £15,909,178, thereby leaving an excess of the income over the expenditure to the amount of £61,107. In his account of the state of finances on the 18th of May, Pitt referred to this report as a proof of their flourishing condition. Sheridan, however, still questioned the correctness of the figures; and on the 3rd of June he moved forty resolutions, calculated to discredit the management of the finances, and to show that he could have taken—spendthrift as he was—better care of the public money. These resolutions were all rejected; and ministers brought forward sixteen counter resolutions, which went to prove that the finances had never been so well managed before, and that there was every prospect, not only of keeping the expenditure within the limits of the income, but of reducing the national debt. This was visionary; but, at all events, Pitt was enabled to provide for the services of the year without a loan or any additional taxes. On a subsequent day, Dundas laid a flattering account of the finances in India before the commons; the revenues there, he stated, amounted to £7,000,000, and after defraying all expenses, there was left a clear surplus of nearly £1,500,000. His statement was questioned by Paul Benfield who had recently returned from India, and who asserted that he could prove it to be erroneous, but for the late period of the session.

IMPEACHMENT OF WARREN HASTINGS.

Early in this session a question arose, whether an impeachment by the house of commons did not remain _in statu quo_, notwithstanding the intervention of a dissolution of parliament. Upon the solution of this question it depended whether the present parliament could take up the proceedings against Hastings where they had been left by the last, or whether they must be commenced anew. Much discussion arose upon the question; lawyers and members of parliament alike being at issue upon it; but Burke finally succeeded in carrying this motion:—“That it appears that an impeachment by this house, &c., against Warren Hastings, Esq., late Governor-general of Bengal, for sundry high crimes and misdemeanors, is now depending.” The trial, therefore, was to be resumed at the point where it was left by the recent parliament; and in order to shorten it, on the 14th of February, Burke

moved “that, in consideration of the length of time which has already elapsed since carrying up the impeachment against Warren Hastings, Esq., it appears to this house to be proper, for the purpose of obtaining substantial justice with as little delay as possible, to proceed to no other parts of the said impeachment than those on which the managers of the prosecution have already closed their evidence; excepting only such parts of the impeachment as relate to the contracts, pensions, and allowances.” This motion was carried without a division; but the resolution of the commons, that an impeachment did not cease with the dissolution of parliament, was strongly contested in the house of lords; and it was not till the 16th of May that their lordships agreed to proceed with the trial. On that day Lord Porchester moved, “that their lordships do now proceed with the trial;” and this motion being carried by a large majority, a message was sent to the house of commons that they were ready to resume proceedings. The charge respecting contracts, pensions, allowances, frauds, and extortions, was opened by Mr. St. John on the 23rd of May, and was gone through in three days. The prosecution closed its evidence on the 30th of May; and when the court broke up, the managers proposed an address to the king, praying him not to prorogue parliament until the trial was finished. This was negatived; and Hastings seeing that he could not expect to bring his defence before the court during the present session, begged to be allowed one day for stating what he deemed of importance respecting the further progress of the trial. This request was readily granted; and on the 2nd of June he delivered a long and able discourse, vindicating his administration in India, and entering at large into the principles which had actuated his conduct. He finally appealed to his accusers in the following energetic peroration:—“To the commons of England, in whose name I am arraigned for desolating the provinces of their dominion in India, I dare to reply, that they are, and their representatives annually tell them so, the most flourishing of all the states in India. It was I who made them so! The valour of others acquired—I enlarged, giving shape and consistency to the dominion which you hold there. I preserved it. I sent forth its armies with an effectual but economical hand, through unknown and hostile regions, to the support of your other possessions; to the retrieval of one from dishonour and degradation, and of another from utter loss and subjection. I maintained the wars which were of your formation or that of others, not of mine. I won one member of the great Indian confederacy from it by an act of seasonable restitution; with another I maintained a secret intercourse, and converted him into a friend; a third I drew off by diversion and negociation, and employed him as an instrument of peace. When you cried out for peace, and your cries were heard by those who were the object of it, I resisted this and every other species of counteraction by rising in my demands, and accomplished a peace, a lasting and I hope an everlasting one, with one great state; and I, at least, afforded the efficient means by which a peace, if not so durable, more seasonable at least, was accomplished with another. I gave you all, and you have rewarded me with confiscation, disgrace, and a life of impeachment. I am, above all things, desirous that your lordships should come to an immediate decision upon the evidence before you. But if the shortness of time should prevent you from complying with this, my earnest desire, and the trial must, of necessity, and to my unspeakable sorrow, be prolonged to another session, then, my lords, I trust you will not consider me, by anything I have

said, as precluded from adopting such means of defence as my counsel may judge most advisable for my interest. I am so confident of my own innocence, and have such a perfect reliance upon the honour of your lordships, that I am not afraid to submit to judgment upon the evidence which has been adduced on the part of the prosecution." After this plea of general merit, in extenuation of specific charges, their lordships passed a resolution to proceed with the trial on the first Tuesday in the next session of parliament.

PARLIAMENT PROROGUED.

Parliament was prorogued by the king in person on the 10th of June. His majesty expressed great satisfaction at the zeal with which the two houses had applied themselves to the consideration of the different objects which he had recommended to their attention; and said, that he regretted he was not yet able to inform them of the result of the steps which had been taken with a view to the re-establishment of peace between Russia and the Porte.

PROGRESS OF THE REVOLUTION IN FRANCE.

The notes of alarm sounded by Burke in the British house of commons at the progress of the French revolution, did not proceed from an overheated imagination; for, during this year, events transpired which showed in a clearer light than ever that there was cause for alarm. The audacity of the Jacobins daily increased; and in order to oppose a barrier to it, the wiser of the national assembly had recourse to royalty. Lafayette, Mirabeau, the two Lameths, and others, foreseeing the danger in which the new constitution was placed from their proceedings, acted thus, though it proved all to no purpose. In the midst of his exertions to stem the coming ruin of the country, Mirabeau, who was of all men in France the most able to effect such a work, died. It was proposed in the assembly, on the 28th of February, that the tide of emigration should be stopped, by entrusting the power of granting passports to a committee of three persons. Against this iniquitous measure Mirabeau loudly exclaimed; and his opposition to the measure raised such a clamour against him, that, in his exertions to silence their voices, he was so overcome, that he returned thence to a bed of sickness, from which he never arose. His last words were—"After my death the factions will soon tear the last shreds of the monarchy."

Before Mirabeau had closed his mortal career, he had counselled the king to retire to Metz, beyond the power of the Parisians; and there, at the head of an independent force, to treat with the nation, if he could not with the assembly, and obtain a more equitable adjustment between the rights of the crown and those of the people. Exposed to daily renewed mortifications, Louis finally resolved upon flight; and a plan was concerted with the Marquis de Bouille, who formed a camp of some faithful regiments near Montmedy, for his escape thither. The king and his family left the Tuilleries and the capital on the night of the 20th of June, and arrived undisturbed as far as St. Menehauld; but here he was recognized by the postmaster Drouet, who, by taking prompt measures, had him arrested at Varennes. On the fifth day of his flight he was conducted back to Paris as a prisoner, surrounded by an angry populace and the national guards. He had left behind him, on his departure from the Tuilleries, a

declaration, in which he protested against the decrees of the national assembly which he had sanctioned, and manifested his intention of overthrowing the new order of things. Had he succeeded, therefore, France was threatened with civil war and executors; and now that he had failed, vengeance was to fall upon his own head. On his return the national assembly suspended him provisionally from his functions, and appointed commissioners to interrogate him. Louis, however, supported by the moderate party, was silently reinstated in his authority, and the national assembly went on as before. But this only tended to increase the rage of the Jacobins. They wanted at once to proclaim the republic; and, being defeated in their designs, they turned to the people. They caused a petition to be prepared for dethroning the monarch, and made an attempt to lay it on “the altar of the country,” in the field of Mars, for universal signature. A violent tumult ensued, which Lafayette quelled at the edge of the sword: much blood was shed. But this triumph of the assembly only served to render them unpopular. The people became as weary of them as of the monarch; so having collected their constitutional decrees into one code, and having presented this constitution to the king, and received his solemn acceptance of it, on the 30th of December the national assembly declared itself dissolved. This was a fatal step to both king and country. Before the dissolution of this assembly, on the motion of Robespierre, a measure was passed, declaring that none of the members should be capable of re-election. Now, although few among them were capable of legislating for a great country, as most of their acts had proved, yet it was manifest that the members, generally, were wiser, and even more moderate than the people at large. The consequence of this fatal step was, in fact, to sink the representation of the people into a still lower grade of society; to exalt the dregs of the people into the responsible office of legislators. This was soon made manifest; of seven hundred and fifty-eight members who were elected for the legislative assembly, which arose on the ruins of the national assembly, not more than fifty were possessed of one hundred pounds per annum. Those who were elected, indeed, were chiefly men whose zeal had distinguished them in the clubs; men whose sole aim was the subversion of all religion, and of that order which is so necessary to the well-being of a state. There were three classes of persons in this new assembly; the Feuillans, so called from the name of their club, who advocated a mitigated aristocracy; the Girondins, or professed republicans, who had a fixed aversion to even the shadow of royalty which had been preserved; and the Jacobins, whose aim was to sweep away rank, wealth, and talent from the land. The two former of these divisions represented the middle classes, and the latter the rabble; but the Girondins were the most powerful and popular. Such was the nature of this assembly. Compared with it the “rump parliament” of Oliver Cromwell was the perfection of wisdom and moderation. Ignorance, passion, and inexperience became united; and those who looked for great things at the hands of its members—and there were those even in England who looked for such things—must have been grossly infatuated with the principles of the revolution. What the monarch might expect from them was seen on the first meeting of the assembly, when they took an oath upon the constitutional act to live freemen or die. Their next measures were in accordance with this oath. At this time, the emigrants, who had greatly increased since the king had failed in his attempt at flight, had begun to arm foreign courts in their own favour and for the support of the

tottering throne of France. Austria, Russia, and Prussia had definitely promised their aid; the King of Sweden, Gustavus III., had offered to be the commander of the allies; and other European courts, though they had not yet resolved to resort to arms, shared in their sentiments. At this time, also, the discontented priesthood, who were scattered through the realm, were stirring and preparing the peasantry universally to revolt. There was, in fact, a tempest gathering round the heads of the patriots; and alarmed at it, and in order to counteract the danger, during the months of October and November, the legislative assembly declared all emigrants who continued hostile on the frontiers beyond the month of January, 1792, civilly dead, and their properties confiscated; and similar rigorous measures were ordained against those priests who should refuse the oath binding them to the constitution, and continue to excite agitation. The king refused to sanction these decrees; and then was seen the absurd balance of power provided against the constitution. The rage of the revolutionists knew no bounds; and unable to attack the monarch directly, they turned their rage against the ministers and the constitutionalists from whose ranks they had been chosen. To effect their overthrow the Girondins and Jacobins united, and were successful. Such of the constitutionalists as were in the ministry were compelled to resign, and the whole party lost its influence in the senate. Nor had this party any power now in the municipality, for Bailly had been superseded in his mayoralty, and Lafayette had resigned his command of the national guard; and these important offices had fallen into the hands of the Jacobins, and by their influence democracy gained the ascendency in the capital, and, by a natural consequence, throughout the whole kingdom. The monarch was even compelled to choose his ministers out of the fiery Jacobin party; for neither royalist nor constitutionalist dared to sit in the council. At the close of this year it was manifest that the king was on the high-road to the scaffold. Red-caps were worn in public by the victorious Jacobins as a party badge, and as a declaration of war against all the moderate and all the friends of right; and the guillotine, beneath which thousands of victims were to bleed, was introduced. France had already assumed the aspect of an arena of wild beasts: Danton, Robespierre, and Marat were already licking their jaws in anticipation of the prey.

{GEORGE III. 1791–1792}

STATE OF PUBLIC OPINION IN ENGLAND, ETC.

As every day manifested more and more that the principles of the revolution in France were fraught with mischief, and as great exertions were made by Burke and others to enlighten the public mind on their evil tendency, it might have been expected that Englishmen, who enjoyed a free constitution, although they had generously sympathised with the French people at the outset of their work of regeneration, from a conviction that it would tend to their benefit and happiness, would, by this year, have seen that they were in error, and would, therefore, have somewhat abated in their admiration of that work. This might have been the case to a certain extent; but, nevertheless, those who professed republican principles in England were still very numerous, and had become bolder in their advocacy of such principles. A fierce war was carried on by the newspapers of the day against Burke’s

“Reflections,” and pamphlets and volumes of all sizes were published, in order to show that it was a mere flimsy piece of rhetoric and fine writing. The most conspicuous of these volumes were the “_Vindictæ Gallicæ_;” or “Defence of the French Revolution,” written by Sir James Mackintosh; the “Rights of Man,” written by that fierce democrat, Tom Paine; and “Letters to the Right Honourable Mr. Burke, on his Reflections on the Revolution of France,” written by the celebrated Unitarian preacher, Dr. Priestley. Perhaps, the most popular of these books was the “Rights of Man,” which, crude and undigested as the arguments it contained were, was extolled by the republican party in England as a master-piece of human intelligence and genius, and as a complete refutation of all the arguments of Burke’s “Reflections.” This may have arisen from the fact that Paine’s doctrine was much more plain and intelligible to the common people: it was operatical and proposed immediate excision; that is, it advocated the total overthrow of monarchy, and the establishment of republicanism. To the honour of Sir James Mackintosh it must be mentioned, that he, subsequently, when he read of the massacres and atrocities committed in Paris, retracted the bold assertions he had made in the _Vindicio Gallico_, and, finally, declared that democracy was “the most monstrous of all governments, because it is impossible at once to act and to control; and, consequently, the sovereign power in such a constitution must be left without any check whatsoever.” Sir James Mackintosh, indeed, lived to regret that he had written his essay; nor does it appear that when he wrote he had any idea of the fatal consequences that would result from the principles he defended: like many others he indulged the hope that the revolution would correct its own vices. His essay, like those of Paine’s and Priestley’s, however, had an evil tendency at this period of public excitement. At the same time the _Vindicio Gallicio_ was not calculated to work such mischief as the “Rights of Man,” and the “Letters to the Right Honourable Mr. Burke,” since the one was addressed to the educated, and the others to the uneducated classes of the public. Cheap editions of the two latter works were, in truth, industriously circulated throughout the country, by the various clubs which abounded on every hand. But notwithstanding the exertions of the press to promulgate revolutionary principles, there was still a sound conservative principle abroad: the main body of the people were loyal to their king, and few comparatively among the upper ranks were found to countenance the efforts of sedition. This was manifested in an unequivocal manner at Birmingham, where Dr. Priestley acted as a Socinian or Unitarian minister: a manner, indeed, which must be condemned, inasmuch as it was unworthy of the friends of order, and as it set an example of ungovernable fury to those who were represented as the foes of all established institutions. In most of the large towns of England associations were formed for the celebration of the French revolution on the 14th of July, the anniversary of the taking of the Bastille. Such an association was formed at Birmingham, and a few days before the appointed feast a printed handbill was circulated throughout the town, which seemed to be intended as a direct challenge and defiance to the anti-revolutionists; to those who were advocates for church and state. This handbill was without signature, and it read thus:—“My countrymen, the second year of Gallic liberty is nearly expired. At the commencement of the third, on the 14th of this month, it is devoutly to be wished that every enemy to civil and religious despotism, would give his sanction to the majestic common cause by a

public celebration of the anniversary. Remember that on the 14th of July the Bastille, that ‘High Altar and Castle of Despotism,’ fell! Remember the enthusaism peculiar to the cause of liberty with which it was attacked! Remember that generous humanity that taught the oppressed, groaning under the weight of insulted rights, to save the lives of oppressors! Extinguish the mean prejudices of nations, and let your numbers be collected and sent as a freewill offering to the national assembly! But is it possible to forget that your own parliament is venal? Your ministers hypocritical? Your clergy legal oppressors? The reigning family extravagant? The crown of a certain great personage becoming every day too weighty for the head that wears it? Too weighty for the people who gave it? Your taxes partial and excessive? Your representation a cruel insult upon the sacred rights of property, religion, and freedom? But on the 14th of this month prove to the political sycophants of the day that you reverence the Olive Branch; that you will sacrifice to public tranquillity till the majority shall exclaim ‘The peace of slavery is worse than the War of Freedom’! Of this moment let tyrants beware!” This paper occasioned a great ferment in the good town of Birmingham. It was considered generally by the people to have proceeded from the republicans that had appointed to feast at the tavern on the 14th of July; while, on the other hand, it was affirmed by the republicans that it had been written, printed, and distributed by the opposite party for the purpose of disturbing their convivial meeting. It was thought advisable to give up the feast, and notice was given to that effect; but mine host of the tavern represented that he had prepared the viands, and that they might feast without danger if they did not sit too long at the table, and so the company, to the number of eighty or ninety, met at the appointed time. One Keir, a man well known for his attainments in several branches of science, and a member of the Established Church, was in the chair; but the party had scarcely assembled, before the tavern was surrounded by a tumultous crowd, who shouted long and loudly, “Church and King!” “Church and King!” Strange rumours soon got abroad of the doings within the tavern. It was said that mine host had set three figures upon the table: one a medallion of the king encircled with glory; another an emblematical figure of British liberty; and a third an emblematical figure of Gallic slavery breaking its chains. It was likewise said, that the patriots within doors had cut off the king’s head and placed it on the table! Finally it was reported that the very first toast of the assembly was, “Destruction to the present government, and the king’s head upon a charger.” This was too much for the feelings of the loyal people of Birmingham to endure. No sooner had this toast been made known, than loyalty “swift as lightning shot through their minds, and a kind of electrical patriotism animated them to instant vengeance.” Before the second course was well on the table, they rushed into the tavern, broke windows and glasses, and compelled the carousers to take refuge in flight. So writes one authority; but another more authentic states, that it was some hours after, when most of the company had departed, that the mob broke in, and that the peculiar object of their search was Dr. Priestley, from whose wig they wanted to knock out the powder. Dr. Priestley had long been offensive to the townspeople of Birmingham for his bold advocacy of the principles of the French revolution; and now that their passions were excited, when they could not discover him at the tavern, and after they had smashed all the windows, they resolved to seek him elsewhere—at his dwelling-house on Fair Hill. Had they proceeded direct to his residence, they might

have tried their skill in knocking the powder out of his wig, and, had they done nothing further, they would not have committed much mischief, inasmuch as the doctor could soon have had it re-powdered. A hint had been given them, however, that they had done sufficient mischief at the tavern, and that they had better go to the meetings. In a brief hour, therefore, the new meeting-house where Dr. Priestley preached was broken into, and set on fire; and in another brief hour the old meeting-house sent up its flame towards heaven likewise. The mob now sought the doctor at his house on Fair Hill, but, timely warned, he and his family had taken refuge in flight. His house now shared the fate of the meeting-houses: together with the whole of his valuable library, his still more valuable apparatus for philosophical experiments, and the furniture; it was destroyed by fire. All this was done on the 14th of July, and it was hoped that the mob would go no further. But, unfortunately, they had in part been stimulated to these violences by strong drink, which had been given them by some of the more respectable loyalists of the town. On the morrow, therefore, the rabble of the town again sounded the cry of “Church and King,” and being joined by the rabble of the mining and foundery districts in the neighbourhood, they resumed their dreadful avocation. On that day the houses of Messrs. John Ryland, Taylor, and Hutton, were destroyed; the magistrates making no effectual preparations to stop the ravages. It does not appear that the mob had been furnished with any drink on this day by the loyalist magnates of the town; but they had extorted whole hogsheads of ale from Mr. Hutton to save his house—though they afterwards destroyed it—and had moreover found plenty of good wine in the cellars, and this incited them again to action. On the following day no less than eight houses within the town, and in its vicinity, wore destroyed, exclusive of the residence of Mr. Coates, a Unitarian minister, which was plundered and damaged, but not demolished. The following clay was Sunday, but it was no day of rest for the rioters, except those who were too drunk to move; they went into the country, it is true, but it was only to destroy chapels, and to plunder, and burn clown houses. On this day, however, their work of destruction was stopped. By the evening of the day, probably not finding sufficient drink in the cellars of the Dissenters, they had begun to break open and to destroy the houses of churchmen. They were busy in breaking open the house of Dr. Withering, at some distance from the town, when the words “light horse” sounded in their ears, and the whole mob melted away as if by magic; when the light-horse appeared, not a shadow of them could be found. In fact, the mob of Birmingham was the very counterpart of that which had been engaged in Lord George Gordon’s riots. Throughout their whole career they had not shown any disposition for fighting, except with fists and sticks, and on one occasion they fled when resisted by a single pistol. The riots had, doubtless, been raised by men of a better stamp than those engaged in it; but who, like the prime movers of the riots in London, kept in the background. At the same time it manifested that the great body of the people of Birmingham had no fellow-feeling with those who advocated the principle of the French revolution. It was from this cause, perhaps, that government was backward in exhibiting sympathy for the sufferers, and a disposition for punishing the offenders. Troops were, indeed, sent to restore peace, but no proclamations were issued from the secretary of state’s office until some days elapsed, and then the reward offered for discovering and apprehending a chief rioter was a mere bagatelle. In the whole,

seventeen were arrested and tried, five of whom only were found guilty; three were executed. The losses sustained by the sufferers were made good by the hundred, in the way which the law directs; and Dr. Priestley at least was a gainer in point of money, for in addition to the compensation awarded by law, his friends and admirers opened their purses freely on his behalf. He gained by the event, also, in point of popularity, and more especially in France and America. Testimonials, condolences, and flattering compliments were sent to him from all quarters, and he was even compared to Galileo and Socrates! The event, in truth, had the effect of making him more bold in his advocacy of revolutionary principles. Both from the pulpit and the press he loudly denounced the bigotry of England, and as loudly applauded the enlightened toleration of France. In this he was encouraged by those who entertained similar views to his own, and who in their addresses extolled him as a martyr. On the other hand, those who supported “church and state,” and various bodies of Dissenters, who could not tolerate either his extreme views of republicanism or his attacks on the mystery of the Trinity, assailed him in the most bitter manner. England, in fact, became too hot to hold him, for, in 1794, he expatriated to America. The national convention had nominated him a citizen of the French Republic, but by that time he had, doubtless, become convinced that there was no safety for him in France, whence he wisely forbore entering that wide arena of strife and bloodshed. So ended the Birmingham riot: it reflects no honour on our annals, but it shows that the mass of the population were satisfied with the English constitution, and it may serve as a warning to deter men from the exhibition of that malignant party-spirit which reflects disgrace on the best cause. “Let your moderation be known unto all men.”

CHAPTER XIX.

{GEORGE III. 1792–1793}

Meeting of Parliament..... Debates on the Russian Armament..... Debate on the Affairs of India..... Pitt’s Financial Statement..... The Slave-Trade Question..... London Police Act..... Act to relieve the Scotch Episcopalians, &c. Sheridan’s motion respecting the Royal Burghs of Scotland..... Debates on Parliamentary Reform, &c. Trial of Hastings, &e..... Bill respecting the New Forest and Timber for the Navy..... Prorogation of Parliament..... Changes in the Ministry..... East India Affairs..... Progress of the French Revolution..... Affairs of Poland..... State of the Public Mind in England..... Meeting of Parliament..... The Alien Bill, &c. Execution of the French King.

{A.D. 1792}

MEETING OF PARLIAMENT.

The British parliament did not assemble until the 31st of January. The first topic mentioned in the king’s speech was the marriage of his second son, the Duke of York, with the Princess Frederica, daughter of the King of Prussia. His majesty then informed the two houses that a treaty had been concluded, under his mediation and

that of his allies, between the Emperor of Austria and the Porte, and that preliminaries had been agreed upon between the latter of those powers and Russia. The king next expressed his regret that he was not yet enabled to inform parliament of the termination of the war in India with Tippoo Sultaun, but the success which had already attended the British arms afforded, reasonable ground to hope that the war would speedily be concluded. Although events in Europe at this time cast their dark shadows before them, yet his majesty affirmed that the general state of affairs appeared to promise to Great Britain the continuance of her present tranquillity; and he even suggested that some immediate reduction might safely be made in our naval and military establishments. He concluded by recommending the house of commons to consider of such measures as the flourishing state of the funds and of public credit might render practicable and expedient, for a reduction in the rate of interest of such of the annuities as were now redeemable; by stating that he entertained the pleasing hope of their being enabled to enter upon a gradual reduction of taxes, giving at the same time additional efficacy to the plan for the reduction of the national debt; and by recommending a steady, zealous, and confirmed attachment to the British constitution.

The debates on the address principally turned upon the line of policy pursued by the ministry in their interference in the quarrel between Turkey and Prussia, and in the hostility they had displayed towards the latter power. Ministers were loudly condemned for this interference by the opposition; Mr. Grey and Fox taking the most prominent part in the attack. Fox, as usual, introdued France and her revolution and constitution into his speech. The frequent eulogiums on the British constitution which had been introduced into parliament, he said, had been introduced in order to reproach him and his friends for their admiration of what had been done in France, and to suggest the suspicion that he and his friends were hostile to our own form of government. The French, he contended, had done perfectly right in overturning a constitution so radically bad as that of France; but that of Great Britain was so good, though not absolutely perfect, that it merited the efforts of all honest subjects to preserve it. It was hence most unjust to insinuate that those who approved of the destruction of despotism in France, would rejoice in the downfall of the British constitution. Fox concluded by condemning the Birmingham riots; asserting that the outrages had been committed through the laxity or tacit approbation of the magistrates. He remarked:—“It would have been well if his majesty in his speech had spoken of those riots in the terms they merited. They were not riots for bread; they were not riots in the cause of liberty, which, however highly to be reprobated, had yet some excuse in their principle; they were riots of men neither aggrieved nor complaining—of men who had set on foot an indiscriminate persecution of an entire description of their fellow-citizens, including persons as eminent for their ability, as blameless in their conduct, and as faithful in their allegiance as this or any other country could boast.” In reply, Pitt said that the Birmingham riots had better be consigned to oblivion, especially as sufficient had been done for their atonement; and he broadly hinted that Fox revived the subject for party purposes. He warmly defended the conduct of the cabinet in the interference between Turkey and Russia; asserting that the object of it was to prevent the ruin of the Turkish empire, and to

preserve that balance of power in Europe which was essential to the interests of Great Britain. Pitt concluded by adverting to the more pleasing topic of financial improvement; stating that the last year's revenue amounted to £16,790,000, which, after all the expenditure and the annual million devoted to the reduction of the national debt, left a surplus of £900,000; and that, encouraged by this prosperous condition of the finances, he contemplated taking off some of those taxes which pressed most heavily upon the poor.

DEBATES ON THE RUSSIAN ARMAMENT.

Papers relative to the apprehended rupture between Great Britain and Russia were laid before the house on the 6th of February. This gave rise to several debates, in which the spirit of party was strongly displayed. On the 13th of February Mr. Grey loudly complained that ministers had not produced the preliminaries said to have been adjusted between the Russian and Turkish negociators; and that large sums had been unnecessarily spent in fitting out the armament. A week later Mr. Grey moved for a more ample production of papers regarding various portions of the recent diplomacy of ministers; arguing that the whole of the correspondence was necessary, if they wished to justify the steps they had taken. Pitt resisted the demand, conceiving that sufficient had been disclosed to make the house master of all the essential parts of the business, and asserting that confidence was due to the administration, until their capacity or integrity was impeached. The motion was negatived, but on the 29th of February the subject was revived by Mr. Whitbread, who moved the following resolutions:—"That no arrangement respecting Oczakow and its district appears to have been capable of affecting the political or commercial interests of this country, so as to justify any hostile interference on the part of Great Britain between. Russia and the Porte: that the interference for the purpose of preventing the cession of the said fortress and its district to the Empress of Russia has been wholly unsuccessful; and that his majesty's ministers, in endeavouring, by means of an armed force, to compel the Empress of Russia to abandon her claim to Oczakow, and in continuing an armament after the object for which it was proposed had been relinquished, have been guilty of gross misconduct, tending to incur unnecessary expenses, and to diminish the influence of the British nation." Many members took part in the debate which followed this motion, but the most remarkable speeches were delivered by those two great rivals, Pitt and Fox. After reviewing our foreign policy from the time of our joining Prussia, in order to prevent Holland becoming the prey of France, Fox said that we were standing forward the principals of every quarrel, the Quixotes of every enterprise, and the agitators in all the plots and disturbances that were every day arising in Europe. He said, if Oczakow was a place of no importance, ministers ought to be censured for having armed and protracted war on its account; and if it was an important place, they ought to be censured for disarming without having obtained repossession of it from the Turks. Fox argued that the Empress of Russia weald have granted better terms to the Turks if England had not interfered; and bitterly complained of Pitt's reserve and secrecy with parliament. On the latter subject he remarked:—"This is what puts our constitution in danger. That the pride, the folly, the presumption of a single person shall be able to involve a whole people in disgrace is more than philosophy can teach mortal patience to endure. Here are the

true weapons of the enemies of our constitution! Here may we search for the source of the present outpourings of seditious writings, meant either to weaken our attachment to the constitution by depreciating its value, or that loudly tell us we have no constitution at all. We may blame, we may reprobate such doctrines; but while we furnish those who circulate them with argumenta such as these, while the example of this day shows us to what degree the fact is true, we must not wonder that the purposes the seditious writings are meant to answer be but too successful. They argue that a constitution cannot be right where such things are possible; much less so when they are practised without punishment. Against the vain theories of men who project fundamental alterations upon grounds of mere speculative objection I can easily defend the constitution; but when they recur to these facts, and show me how we may be doomed to all the horrors of war by the caprice of an individual, who will not even condescend to explain his reasons, I can only fly to this house, and exhort you to rouse from your lethargy of confidence, into the active mistrust and vigilant control which your duty and your office point out to you." But Fox had by his intrigues brought the country into danger from a war with Russia, more than Pitt had by his armament. Although the laws and constitution of this country entrust the exclusive right of treating with foreign potentates to the king, yet without the knowledge or participation of a single member in the house, Fox had sent an agent to St. Petersburgh to frustrate the objects for which a plenipotentiary from the crown was authorised to treat. And Fox succeeded in his design: it was through his influence that the czarina still obstinately refused to give up Oczakow, And yet Fox condemned ministers for not having succeeded in their negociations! On this subject Pitt's biographer, Tomline, writes:—"It is to be presumed that Mr. Fox never would have had recourse to such a measure, if he had not entertained a confident hope, that, having already succeeded in rendering the Russian armament unpopular, he should overset Mr. Pitt's administration, provided the empress could be prevailed on to persevere in her demands. That point he accomplished without difficulty, yet the result did not turn out as he expected—he defeated Mr. Pitt's plan, and brought a certain degree of discredit and danger on his country, by effecting the aggrandisment of an unfriendly and powerful court, but his own personal ambition remained ungratified." In his reply to Fox the minister exhibited a noble mind, in not making any use of his rival's unjustifiable conduct: conduct which was more unconstitutional than Pitt's rigid reserve, and which was to a certain extent, treasonable. In his reply Pitt defended his policy with great spirit. He asked whether any one conversant in politics could admit that the Turkish empire, being unable to defend itself against Russia and Austria, should be abandoned by the other European powers, every one of which was so visibly interested in the preservation of its independence: whether, if other European powers were indolent, or hindered by untoward circumstances from interfering. Great Britain could coolly leave Turkey to its fate? and whether a British ministry could look on with indifference, while her commerce in the Levant was threatened, and the maritime power of England, not only in the Mediterranean and Archipelago, but in every other sea, must receive a blow from the increase of shipping that would accrue to Russia and Austria, were they to become masters of European Turkey? The interest and honour of this country, he said, required us to pay vigilant attention to the political situation of the continental powers, lest the

predominance of any one should destroy that equipoise which was essential to the safety of the whole. And it was evident, he remarked, that the ruin or depression of the Turkish empire would materially affect the balance of power in Europe. All the world knew that the object of Russia had long been to acquire exclusive authority in the Black Sea; and were the Russians to gain possession of its ports, a new naval power would arise, dangerous to all Europe, but especially so to Great Britain, whose safety and prosperity chiefly depended on the superiority of her fleets. It was certain, also, he said, that if Great Britain had not assumed a hostile disposition, the original demands of the court of Petersburgh would have been insisted on to the last, and Turkey would have been forced to submit to a dismemberment. As for Oczakow, he acknowledged that it was not a place of great importance, but as a fortress commanding the navigation of the Dniester, and a point to be gained by the empress in her system of ambition, it was worth some risks, and he conceived that he had done his duty by first attempting to secure this object to Turkey, and afterwards relinquishing it when it could only be obtained at the price of war. At the same time Pitt remarked, Oczakow might have been secured had it not been for the division and opposition in this kingdom; it was chiefly through Fox and his party that what had been done well, had not been done better. Party divisions in this country had encouraged the ambitious designs of Russia; and yet opposition now took merit to themselves for rendering negociations useless; which, but for their efforts, would have been attended with complete success. But he did not envy them their triumph: it was not a triumph over an enemy, but over the council of their king. Pitt concluded by a sarcastic reflection on Fox, which must have been keenly felt by him. In the summer of 1791, the czarina finding that the Whig party was averse to the Russian armament, directed her ambassador to request Fox to sit to Nollekens for a bust in white marble, in order that she might place it between the statues of Demosthenes and Cicero. In allusion to this Pitt said, that if he and his honourable friend Dundas were to go to St. Petersburg, he felt certain that neither of them should be found in any place of glory between two orators of antiquity! Fox replied, vindicating his conduct, and condemning the policy of ministers in the same unmeasured terms as before. But the sentiments of the house were against him and his party: Whitbread’s resolutions were all rejected, either without a division or by very large majorities. During these debates the same question was agitated in the house of lords; but Lord Fitzwilliam, who moved a similar resolution to that of Mr. Grey in the commons, was outvoted by a majority of eighty-nine against nineteen.

DEBATES ON THE AFFAIRS OF INDIA.

It was not on the subject of the Russian armament alone that opposition sought to bring ministers into contempt, and to overthrow their administration. In their plan of campaign they had determined to attack them on the subject of the Indian war, and accordingly, on the 9th of February, Major Maitland moved for all papers necessary to throw light upon the subject. It was the chief object of the opposition to prove that the war with Tippoo Sultaun was unnecessary, and that it had been conducted by Lord Cornwallis without spirit or talent. Such was the substance of the arguments employed by Colonel Maitland in support of his motion, and in which he was supported by Francis, the antagonist of Hastings and Tupey. The motion was on the

whole agreed to; Dundas consenting to produce all the papers called for, except copys of any proposals of peace which had been made by Tippoo Sultaun. But this did not satisfy opposition. On the 15th of March Major Maitland moved various resolutions on the Indian war, all tending to reprobate it as unjustifiable, and as the result of a plan laid down by ministers for Tippoo's destruction. These resolutions were negatived; but on a subsequent day the major renewed the subject, declaring that the papers proved the correctness of his views—that a plan of conquest had been formed, and that the war had been sought for that purpose. In order to settle the matter, after showing the warlike character of Tippoo, and defending the honour of Lord Cornwallis, ministers moved a resolution declaring that the conduct of the governor-general accorded with the true spirit and intent of the rules of government established by the British parliament for the affairs of India, which resolution was adopted.

PITT'S FINANCIAL STATEMENT.

The house went into committee to consider the financial affairs of the country, on the 17th of February, when Pitt made a speech representing the country as in a nourishing condition, almost unprecedented. The revenue had increased so much, he said, that government would be enabled to take off taxes, bearing chiefly upon the poor, to the amount of £200,000, and to apply an equal sum more to increase the sinking-fund for paying off the national debt. He proposed to take off the additional duty on malt; the new duties on male and female servants; the duties upon waggons, wains, carts, and other such carriages; the taxes on houses containing less than seven windows; and a halfpenny in the pound of the duty upon all candles, except wax and spermaceti. These propositions were agreed to without a division. Sheridan only questioning the truth of Pitt's financial statement, which he did more from the force of habit, and by way of opposition, than from any just cause. On the same day, in a committee of supply, the house granted £400,000 to his majesty, to be issued and paid to the governor and company of the Bank of England, to be by them placed to the account of the commissioners for the reduction of the national debt. So far as Pitt's statements on this occasion related to the actual condition of the finances of the country they were doubtless correct; but his sentiments on the future were too soon proved to be fallacious. He remarked:—"From the result of the whole, I trust I am entitled to conclude that the scene which we are now contemplating, is not the transient effect of accident, not the short-lived prosperity of a day, but the general and natural result of regular and permanent causes. Though we may yet be subject to those fluctuations which often occur in the affairs of a mighty nation, and which it is impossible to calculate or foresee, yet, as far as reliance can be placed on human speculations, we have the best ground, from experience of the past, for looking with satisfaction on the present, and with confidence toward the future." Pitt, indeed, expressed his deep conviction that there never was a time when a durable peace might more reasonably be expected than at the present moment. And yet there never was a time when war was manifestly more imminent. England was, in truth, on the verge of a war which was to increase the national debt more than any in which she had been yet engaged. The nation was taught to entertain brilliant hopes at the opening of this year, but at its close those hopes were dashed to the ground. They

were called upon to indulge in visions of a total release from national debt; but it was soon found that this debt was to increase by a sure and rapid process. Pitt himself soon discovered that he might be wrong; and hence, being apprehensive that in the case of a new and protracted war, requiring large additions to the public debt, the sinking fund might not operate with sufficient effect to prevent a national bankruptcy, he subsequently proposed, that, whenever a loan should be hereafter made, one per cent on the new stock thus created, besides the dividends, should be raised and applied in the same manner, and under the same regulations as the original £1,000,000. This bill passed the commons without any particular opposition; but in the upper house it was violently reprobated by Lord Chancellor Thurlow as a provision likely to answer no good purpose, and as exhibiting an extraordinary degree of arrogance, by dictating to future parliaments, and prescribing to future ministers a mode of action to be adopted some thirty years hence. He remarked:—"None but a novice, a sycophant, a mere reptile of a minister, would allow this act to prevent him doing what, in his own judgment, circumstances might require at the time; and a change in the situation of the country might render that which is proper at one time inapplicable at another. In short, the scheme is nugatory and impracticable; the inaptness of the project is only equalled by the vanity of the attempt." This bill, however, passed into a law, and was adhered to in the numerous loans advanced during the whole of the revolutionary contest. About the same time Pitt brought another measure into the house, which indicated that his views were undergoing a change as to the long continuance of peace; this was a proposition to raise £812,500 by means of a lottery. But in this he met with decided opposition. Great surprise was expressed that, in a time of profound peace, he should have recourse to a method of levying money so extremely injurious to the morals and habits of the people. Instances were adduced in which state-lotteries had led to robbery and suicide; and a petition was presented from the grand jury of Middlesex, earnestly praying the house to take the subject into consideration. These representations produced such an impression, that a motion was forthwith carried for a committee to inquire into the evils arising from lotteries.

{GEORGE III. 1792–1793}

THE SLAVE-TRADE QUESTION.

Although defeated in his humane endeavours to effect the abolition of the slave-trade during the last session, yet Mr. Wilberforce resolved to persevere in the great cause which he had undertaken. And in this he was now supported by popular opinion; not less than five hundred and eight petitions having been presented, in the early part of the sessions, praying for the abolition of that abominable traffic. Thus encouraged, on the 2nd of April, Wilberforce moved, in a committee of the whole house, "that it is the opinion of this committee, that the trade carried on by British subjects, for the purpose of procuring slaves from Africa, ought to be entirely abolished." In his speech, which was very able and eloquent, the mover declared that he would never abandon this business till he had obtained his object; and he intimated that if he carried his present motion, he would follow it up by another to

this effect:—“That the chairman be directed to move the house for leave to bring in a bill for the abolition of the slave-trade.” Wilberforce was opposed by Jenkinson, Colonel Tarleton, and other members interested in the slave-trade, who endeavoured to show that our West India islands would be useless without such a traffic, and who treated the petitions on the table with contempt, as signed by raw youths, inexperienced persons, or needy individuals, who wrote their names for money. On the other hand, the motion was eloquently supported by Thornton, Montague, Whitbread, Pitt, and Fox. One of the most powerful speeches was that delivered by the prime-minister. The subject was not made a cabinet question; but every member of administration was left to follow that line of conduct which their own notions of policy, expediency, or right might dictate. Dundas, who had recently become secretary of state, by the resignation of the Duke of Leeds, was averse to instant abolition; and he recommended a middle course, which he thought might reconcile the interests of the West India islands with the eventual abolition of the trade; and he concluded by moving, that the word “gradual” should be inserted before the word “abolition.” In reply, Pitt asked why injustice was to be suffered to remain for a single hour? “Reflect,” said he, “on the eighty thousand persons annually torn from their native land; on the connexions which are broken; on the friendships, attachments, and relationships that are rent asunder! There is something in the horror of it that surpasses all the bounds of imagination. How shall we repair the mischiefs we have brought upon that continent? If, knowing the miseries we have caused, we refuse, even now, to put a stop to them, how greatly aggravated will be the guilt of Britain! Shall we not rather count the days and hours that are suffered to intervene, than to delay the accomplishment of such a work? If we listen to the voice of reason and duty, and pursue this night the line of conduct which they prescribe, some of us may live to see the reverse of that picture from which we now turn our eyes with shame and regret. We may live to behold the natives of Africa engaged in the calm occupations of industry; in the pursuits of a just and legitimate commerce. We may behold the beams of science and philosophy breaking in upon their land, which, at some happy period, in still later times, may blaze with full lustre; and, joining their influence to that of pure religion, may illuminate and invigorate the most distant extremities of that immense continent.” It was argued by some of its supporters, that slavery was a necessary evil. On this argument Pitt remarked:—“The origin of the evil is indeed beyond the reach of human understanding; and the permission of it by the Supreme Being is a subject into which we are not concerned to inquire. But where the evil in question is a moral evil, which a man can scrutinise, and where that moral evil has its origin within ourselves, let us not imagine that we can clear our consciences by this general, not to say irreligious, way of putting aside the question.” Pitt concluded by urging on the house the influence which their decision would produce in other countries, and that the divine blessing was to be expected on their own, by exertions in such a righteous cause. His speech was rapturously applauded, but he failed in obtaining total and immediate abolition; the amendment which Dundas proposed being adopted by one hundred and ninety-three against one hundred and twenty-five. Wilberforce was now asked whether he meant to bring in a gradual abolition bill; but he declared that he could not do any such thing; he could not sanction for a time that which ought not to endure for one moment longer. It was for Dundas, or some one of

his supporters, he said, to bring in such a bill; and though Dundas exhibited much unwillingness to take up the matter, he felt called upon to do so; and on the 23rd of April, therefore, he produced twelve resolutions, to the effect that all that branch of the trade which did not refer to the supply of the British West India islands, should cease forthwith; that no male slaves above the age of twenty-five, or female slaves above the age of twenty, should henceforth be exported from Africa in British ships; that the tonnage employed in the slave-trade should be limited and strictly ascertained; that the duties on slaves imported into the colonies should be increased; that laws should be enacted against those who maltreated their slaves; that the colonial legislatures should be invited to concur in these measures; and that the trade should be finally abolished in the year 1800. Wilberforce, Pitt, and Fox warmly opposed these resolutions; and amendments were made, first, that the trade should cease in 1793, and then 1795, both of which were lost; but it was finally agreed, on the motion of Sir Edward Knatchbull, that the final abolition should take place on the 1st of January, 1796. The resolutions, as thus amended, were carried up to the lords on the 2nd of May; on which occasion Prince William, Duke of Clarence, who, in the course of his naval training, had visited the West India islands, and who, conceiving that the state of society there did not justify the pictures drawn of it by the abolitionists, opposed the abolition with great facility of elocution. The friends of immediate abolition were very few in the house of lords; and in order to retard the business, a committee for the hearing of evidence at the bar of the house was proposed. This was objected to by Lords Grenville, Porchester, Stanhope, and Rawdon, and by Bishop Beilby Porteus; but it was carried by a large majority. The examination of witnesses at the bar commenced forthwith; but little progress was made in it before the prorogation, so that the business was virtually postponed till the next session. Wilberforce complained that it was owing to the appeal made by Dundas to the gradual abolition of this horrid traffic, that he was defeated; but it may fairly be questioned whether he could have carried an immediate abolition at the present time, if this appeal had not been made; for, at this period, there were many circumstances which operated to the injury of his cause. Thus the abolitionists had recently determined to use no sugar which came from the West Indies; a determination that would materially interfere with the revenue. Then again, the massacres and burnings in the French division of the island of St. Domingo, where the negro slaves had been set free from their chains, gave rise to a fear that, if a total abolition took place, these troubles might extend to Jamaica and our other West India islands, and hence indisposed the king and many members of parliament to support the measure. Moreover, Clarkson, one of the most active abolitionists, and the bosom friend of Wilberforce, openly advocated the principles of the French revolution, whence occasion was offered of representing the friends of abolition as levellers. Finally, the knowledge that Brissot and the other friends of the blacks in France were fierce revolutionists, and that the redoubtable Tom Paine ranged on the side of Wilberforce in the cause of humanity, had the effect of depriving him of many votes. All these circumstances, combined with the powerful motive of self-interest, would, doubtless have ensured his defeat, had not Dundas interposed his scheme of gradual abolition. So the murderous traffic was to be continued unmitigated; and, as it proved, for another long twenty years.

LONDON POLICE ACT.

Complaints had long been made of the disgraceful state of the police of the metropolis, and especially of the largest portion of it, not included in the jurisdiction of the city of London. Every one felt that the unpaid magistracy were altogether inadequate to the discharge of their onerous duties; and many rules and ordinances had been enacted at various periods, for the preservation of the public peace, which had been nullified by their want of power and incompetency. To rectify this defect, early in March a bill was introduced into the commons, with the countenance and approbation of government, the plan of which was to open five different police-offices in the metropolis, for the prompt administration of those parts of justice which were in the hands of magistrates. Hitherto magistrates, though nominally unpaid, had driven a handsome trade in fees; but by this bill three were to sit in each office, with a salary of three hundred pounds per annum, and all fees were to be applied to the disbursement of salaries and official expenses. The bill provided that constables should possess authority to apprehend persons who could not give a satisfactory account of themselves, and that magistrates should have the power of committing such persons as rogues and vagabonds. Strong objections were made against the bill; opposition arguing that the vesting the appointment of these new magistrates in the crown, would give an unconstitutional increase of strength to government; and that the summary arrest and commitment of any individual, was an infringement on the liberty of the subject, and contrary to the spirit of the constitution. The arguments of its opponents, however, were overruled, and it was passed by a considerable majority. The bill met with a warm opposition in the upper house, by lords Rawdon and Loughborough; but it passed there likewise, and became law.

ACT TO RELIEVE THE SCOTCH EPISCOPALIANS, ETC.

During this session, a bill was introduced in the lords for the relief of the Scottish Episcopalians, who had long been subject to heavy penalties, on the ground of disaffection to the revolution establishment. The bill was opposed by Lord Chancellor Thurlow, who ventured to intimate doubts whether bishops could exist in any Christian country not authorised by the state; but being assured by the bishop of St. David’s, that Christian bishops existed three hundred years before the alliance between church and state took place under the Emperor Constantine, his lordship expressed himself satisfied, and the bill passed. Encouraged by this concession to the Scotch church, the Unitarians applied for a repeal of the statutes affecting them; but their recent advocacy of revolutionary principles made their cause more hopeless than ever: their application was rejected.

SHERIDAN’S MOTION RESPECTING THE ROYAL BURGHS OF SCOTLAND.

Petitions had recently been presented to parliament, setting forth the general mismanagement, misapplication of money, dilapidation of property, and various grievances sustained in consequence of the usurped authority of certain self-elected magistrates in the royal burgs of Scotland. On the 18th of April Mr. Sheridan made a motion for an inquiry into the grievances thus complained of and petitioned against. The main grievance was considered to lie in the self-election of the magistrates; and

Sheridan required that this practice should be abolished. He remarked, it was urged that abuses of a similar nature existed in England; but he did not consider that this was an argument to justify abuses in either country. Was justice, he asked, to be defeated by a community of oppression? As there was a dread of innovation at this period, Sheridan endeavoured to disarm this principle. Some persons, he observed, think that the French revolution should deter us from thinking of reform. Whatever might be the conduct of the parties engaged in it, with regard to the event itself, there could but be one feeling upon the subject; exultation and joy at the downfall of despotism in France, which had been the greatest enemy England ever had. Its ambitious, restless, and turbulent spirit, he said, had cost England thousands of subjects and millions of money; but now that which had long disturbed the happiness of the human race was completely destroyed. Could Sheridan have seen into futurity, he would not thus exultingly have triumphed over the downfall of the despotic government of France; for the revolution was to cost England much more blood and treasures than the monarchs of France had cost her at any period of history. Sheridan's speech had the very reverse effect of that which he intended; it rather exasperated than allayed the general fear. His motion was opposed by the Lord-advocate for Scotland, who defended the corporations and magistrates of the royal burghs from the charges brought against them; and asserted that the power of self-election had worked well, and was held in sufficient restraint by public opinion. Sheridan was ably supported by Fox; but his motion was lost by sixty-nine against twenty-seven.

DEBATES ON PARLIAMENTARY REFORM, ETC.

The subject of parliamentary reform had many times been debated in the house of commons, though uniformly to very little purpose. The debates in parliament, however, on this subject, if void of any immediate result, had their effects. From them, and from the knowledge conveyed through the medium of the press, the nature of our representative system became well understood by the mass of the people, and about this period a society was instituted for the alleged purpose of effecting a reform in parliament, on the principles formerly advocated by the prime-minister. This society assumed the name of the "Friends of the People," and about thirty members of parliament, besides other persons of note, enrolled their names as members. Frequent meetings were held by the society, and the resolutions adopted on these occasions were uniformly published, together with the sentiments which were entertained by the members upon this subject. These resolutions and sentiments were often violent and unconstitutional, whence a strong feeling was created at court and in parliament against all parliamentary reform. This was seen on the 30th of April, when, conformably to the plan of the society, Mr. Gray rose to make a speech on the subject, and to give notice of his intention to move, in the course of the ensuing session, for an inquiry into the state of the representation. Mr. Grey said, that both Fox and Pitt had declared themselves to be parliamentary reformers, and that the majority of the nation were of an opinion that parliamentary reform was required. But Pitt at least had now altered his opinion upon this subject. In reply to Mr. Grey he remarked, that this was no time for. moving questions that involved the peace and safety, and endangered the constitution of the kingdom. He was, indeed,

no enemy to reform if it could be obtained peaceably and by a general concurrence, but the present time was not proper for, and the national sentiment was decidedly hostile to any such attempt. The present was not a season for experiments, and he would resist every attempt of the nature to his last hour; if he was called on either to hazard our safety, or abandon all hopes of reform for ever, he would say that he had no hesitation in preferring the latter alternative. It was true, that at the conclusion of the American war he had thought a parliamentary reform necessary, in order to quiet the clamour and confusion which had arisen from the dread of an approaching bankruptcy; but however much he might in early life have promoted schemes of reform, experience had taught him the danger of tampering with the established forms of government. Pitt noticed the society of the “Friends of the People,” and its advertisements, which invited the public to join the standard of reform: stating that he saw with concern the gentlemen to whom he alluded, united with others who professed not reform only, but direct hostility to the nature of our government, and who threatened the extinction of monarchy, hereditary succession, and everything which promoted order and subordination in a state. Against the whole class of revolutionary writers Pitt inveighed in the most bitter terms; asserting that they were labouring might and main to bring about an imitation of the revolution in France. Fox replied to Pitt, and in allusion to the applause which the minister’s speech had gained, he observed that he felt additional difficulty in delivering his sentiments. He knew, he said, that the words “parliamentary reform” were very unpopular in the house of commons, but he believed that the public regarded them in a very different light, and that unless something were done to quiet the minds of the people there would be a difficulty in preserving the public tranquillity for any length of time. He had never, he continued, been so sanguine on the subject as the right honourable gentleman who had just spoken, but he was more consistent, for early in life he had formed an opinion of the necessity of some parliamentary reform, and he was still convinced of that necessity. The danger which then existed to the liberty of the people existed still, and the necessity for reform in Parliament, so far from diminishing had increased more than ever since the last session of parliament. Fox said that the opinions of that house were often at variance with those of the people; instancing, by way of illustration, the Russian armament, which had been carried by a ministerial majority, notwithstanding the public voice was hostile to such a measure. The people of England, he remarked, were at this moment paying the expenses of an armament for which they never gave their consent, and as far as that went, they were paying their money for not being represented in parliament. Fox, in conclusion, made some indefinite remarks on the books recently published upon principles of government; ridiculed the idea of danger from innovation in the constitution of England, and warmly applauded the principles of the French revolution, expressing his belief that the accounts received of the calamities of the French and of the defectiveness of their present form of government were maliciously exaggerated. Burke rose to reply to Fox, and in doing so he loudly declaimed against the political societies of the day. The object at which some of them aimed, he said, might not be altogether bad, and the motives of many individuals might be innocent, but the way they went to work was decidedly wrong. The sense of the people had not been taken on the subject, nor had any specific grievance been pointed out, or any specific

remedy assigned, without which innovation might be made, but it would not be reform. The house of commons, he said, was not perfect, but he believed it was as perfect as human nature would permit it to be. He added:—“At any rate, while I can raise a voice or arm to prevent it, it shall never assimilate to the national assembly. In that body there are seven hundred members, four hundred of whom are lawyers, and three hundred out of no description that I could name: and, out of the whole, there are not a dozen who possess, in any way, one hundred pounds per annum.

“Such might be the perfection of representation in the eyes of some, and I understand it to be the opinion of many of the new sect of politics; but I trust to the good sense of the people of England never to permit such a mob, nor any thing resembling it, to usurp the sacred office of their legislature.” Windham, one of the most eloquent and accomplished men of the Whig party, warmly seconded Burke, and after a few words from Sheridan and Fox, the conversation dropped. The subject, however, was one of intense interest and not easily to be forgotten. Government by this time, indeed, had become alarmed at the proceedings of its opponents, which alarm was made manifest by a royal proclamation issued against seditious meetings and seditious writings; and exhorting the magistrates to vigilance, and the people to submission and obedience. This proclamation was laid before the house on the 2nth of May, when the master of the rolls moved an address of approbation and support to his majesty. Both in and out of the house opinions varied as to the propriety of this proclamation: some contending that public opinion was not to be directed by such a measure, and others arguing that it was a timely exertion of authority in a turbulent season, and which was indispensably requisite to restrain that lawless spirit which threatened to subvert the established government. The address was warmly opposed by Mr. Grey, who denounced the proclamation in severe terms, as an insidious and pernicious measure, and who moved a counter address, which declared that government was already vested with sufficient power to punish any open violation of the laws; that if seditious writings had been published, ministers had been guilty of neglect in not instituting prosecutions against the authors; that the proclamation was not necessary, and was calculated to create groundless alarms and suspicions; that the house of commons was ever ready to concur with his majesty in the suppression of all riots, tumults, or other disorders, on whatever pretexts they might be formed; that they deeply regretted the tumults and disorders which took place at Birmingham in the course of last summer, to the disgrace of all good government, etc.; and that the surest means of averting the like calamities would be to proceed with all the severity of the law against such persons as might have been instrumental in aiding and abetting those tumults and disorders, and particularly to prosecute and punish such magistrates as appeared to have been guilty of neglect in their duty. It was argued by Grey, and others of the opposition, as Fox, Francis, Whitbread, Lambton, and Lord John Russell, all of whom vehemently supported the counter address, that the diligent inquiry enjoined by the proclamation after the authors and distributors of wicked and seditious writings, tended to establish an odious system of espionage; a system which had made the old government of France an object of general detestation, and which was unworthy of the sovereign of a free people. Grey, and those who supported his amendment, uttered many bitter invectives against Pitt in

their speeches, but he declared in reply that such language should not deter him from pursuing that line of conduct which he deemed most conducive to public tranquillity, and the preservation of constitutional freedom. Pitt expressed his high respect for many of the members of the society of “the Friends of the People,” and said that they need not come—as the opposition had presumed they would—within the scope of the proclamation. It was, he remarked, directed against those daring and seditious principles that had been so insidiously propagated amongst the people, under the plausible and delusive appellation of “The Rights of Man.” Pitt expressed his astonishment that the existence of a republican spirit in England had been denied, when it was openly avowed and industriously propagated, both by individuals and by societies. He charged Fox with being the only person who saw no danger in the writings and doctrines so widely promulgated; proclaimed him a friend, if not an advocate, of Paine and his doctrines; and asserted that such conduct could not be reconciled with any spark of patriotism. Fox indignantly rejoined, and disclaimed all sympathy with Paine. At the same time, he avowed that he saw no danger in his writings and doctrines, or of any other writer of his class, because the good sense and constitutional spirit of the people at large were a sure protection against them. Fox intimated that these were once the opinions of Pitt, and that he had only altered them when he saw, or thought he saw, the means of stirring up division among the friends of freedom. Whether a division in the camp of the Whigs was stirred up by Pitt or no, it is certain that such existed at the present time, for several opposition members, as the Marquess of Titchfield, Lord North, Windham, Grenville, with others, spoke in favour of the address; acknowledging their conviction that the doctrines promulgated by the press, and the conduct lately pursued by clubs and societies demanded the vigorous interposition of government, lest they should lead to the evils experienced in France. The address was carried without a division, and it was then communicated to the house of lords, and their lordships’ concurrence requested, in order that it might be presented to the king as the address of both houses. At this time the Prince of Wales was as closely connected as ever with Fox and Sheridan, and it was supposed that he might share their opinions with reference to the French revolution. On this occasion, however, he put the public in possession of his sentiments upon this subject. As soon as the motion for an address was made and seconded, the prince rose for the first time, and said that he should be deficient in his duty as a member of their lordships’ house, unmindful of the respect he owed to the constitution, and inattentive to the peace and welfare of the country, if he did not state openly what was his opinion upon a subject of such magnitude, as that on which their lordships were then deliberating. He continued:—“Having been educated in principles which taught me to revere that constitutional liberty of the people on which their happiness depends, to those principles I will give my firm and constant support. The matter at issue appears to be, whether the constitution was or was not to be maintained—whether the wild notions of untried theory are to conquer the wholesome maxims of established practice; and whether those laws, under which we have flourished for so long a series of years, are to be subverted by a pretended reform, which the people will not sanction. As a person nearly and dearly interested in the happiness of the people, I should feel it treason against my own principles if I did not declare my disapprobation of those seditious publications which have

occasioned the present motion. On this great and solid basis I will vote for a concurrence with the commons in their wise and salutary address." In the course of the debate Lord Grenville observed that such sentiments as those delivered by the Prince of Wales must warm the breast of every Englishman who heard them, and would convey the greatest satisfaction to the people at large, inasmuch as they might expect a continuance of those essential blessings which they had enjoyed since the accession of the present illustrious family to the throne of these realms. The address was supported by several opposition peers, and an amendment moved by Lord Lauderdale and seconded by Lord Lansdowne was rejected without a division. Having received the concurrence of the lords, the address was presented in form to the throne, and it was followed by addresses from all parts of the kingdom. Encouraged by the public sentiment, the ministry commenced prosecutions against many offenders, amongst whom Paine, the author of the "The Rights of Man," was the most conspicuous. Paine was found guilty, but foreseeing the event, he eluded punishment by absconding to France, where he was elected member of the national convention. It is a question whether it was judicious to prosecute the demagogue, for his prosecution only served as an advertisement to his production, the sale of which became more rapid and more extensive than ever it had been before.

{GEORGE III. 1792–1793}

TRIAL OF HASTINGS, ETC.

During this session the trial of Hastings occupied twenty-two days but no decision took place. Towards the close of the session the attention of parliament was also drawn to the situation of India. In presenting his annual statement of the income and expenditure of British India, Dundas drew a flattering picture of its happiness and prosperity; stating that the surplus of the Bengal revenue for the preceding year was more than one million pounds sterling. Francis denied every thing that Dundas said; asserted that one-third of the company's territory was inhabited only by wild beasts; and prognosticated nothing but disgrace, defeat, and ruin from the war which was still carried on against Tippoo. Francis said that the seizures for non-payment of the land-revenue were notorious, and that he held in his hand two advertisements, one of which announced the sale of seventeen, and the other of forty-two villages.

BILL RESPECTING THE NEW FOREST AND TIMBER FOR THE NAVY.

In the course of this session Pitt introduced a bill for encouraging the growth of timber for the navy, and improving the royal revenue raising out of the New Forest, by the sale of certain parts, and the enfranchisement of copyholds. This bill passed the commons without much opposition, but on the second reading in the upper house it was strenuously opposed by Lord Chancellor Thurlow. His lordship objected to the principle of the bill as favouring the alienation of the crown lands, and he asserted that it was essential to the safety of the constitution that his majesty should have his interests blended with those of the landed property in the country. Thurlow's arguments seem to have had great weight, for though the bill was committed by a majority of forty one against twenty-nine, it was postponed and never afterwards

resumed.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 15th of June, when his majesty expressed great concern at the commencement of hostilities in Europe, and stated that his principal care would be to preserve to his people the blessings of peace. His majesty applauded the measures which had been adopted for the diminution of taxation, and the additional provision made for the reduction of the existing national debt; and for the prevention of the accumulation of debt in future. But no prudential measures could lessen the existing debt, or prevent its accumulation, for in a few months England was involved in the most expensive war that had ever called forth her energies.

CHANGES IN THE MINISTRY.

From the period of the king’s malady, and the lord chancellor’s double-dealing in the matter of the Regency Bill, a misunderstanding had existed between him and Pitt. Lord Thurlow, in fact, was the aggressor, and the more inclined to continue the quarrel, for on no occasion did Pitt exhibit his hostility, while my lord chancellor was continually manifesting it both in the council and in parliament. In private society also Thurlow was often heard to speak contemptuously of the chancellor of the exchequer, and no remonstrance on the part of their mutual friends could check his display of ill-feeling. In parliament, on some occasions when the assistance of Thurlow was necessary, he would-preserve a dogged silence; while at other times he would oppose measures to which Pitt attached the highest importance. At length his rough temper brought matters to a crisis. Early in this session Thurlow severely condemned Pitt’s bill for liquidating future loans, and irritated thereby the chancellor of the exchequer wrote to the king stating the impossibility of his remaining in office with his lordship, and that it was necessary for his majesty to choose between them. In consequence of this communication, the king informed Thurlow that he must resign; but as a change was not desirable during the session, and as it was wished that the lord chancellor should terminate some chancery business, it was agreed that he should hold the seals until the prorogation of parliament, on which day the great seal was placed in the hands of three commissioners; an event which was not followed by a single resignation or change in any political or legal department. There is no doubt that Pitt knew, when he wrote to his majesty, that the choice of dismissal would fall on his rough-minded colleague, for the chancellor of the exchequer was well aware that he stood high in his royal master’s favour. His majesty, indeed, had often expressed his high sense of his minister’s services in words, and soon after this he testified it in a more tangible manner. By the death of Lord Guildford on the 5th of August, the wardenship of the cinque ports, worth about £3000 a-year, became vacant, and his majesty offered it to Pitt in such pressing terms, that even if he had been inclined to refuse the boon it would scarcely have been possible. The royal letter by which it was offered to him was in fact imperative, and Pitt had only to obey—no very difficult task, as the chancellor of the exchequer, though he could guide the helm of the state with a skilful hand, nevertheless could not manage his own affairs with sufficient skill to keep himself out of debt.

EAST INDIA AFFAIRS.

During this year the war in India was brought to a close. The events of that war had been various. After the re-establishment of the Rajah of Travancore in his dominions, as recorded in a previous page, Lord Cornwallis, the governor-general, took the command of the army upon himself, and laid siege to Bangalore. This important place was taken by storm, and his lordship then determined to penetrate into the heart of Mysore, to dictate his own terms of peace to Tippoo Sultaun at his capital. His army burned with impatience to revenge the cruelties which Tippoo had inflicted on their unfortunate countrymen who had fallen into his hands by the chances of war. Lord Cornwallis began his march early in May, 1731, and General Abercrornbie moved towards the same destination, though by a different line. The forces under his lordship reached Arikera, on the Cavery, and about nine miles from Seringapatam, on the 13th of May, and Tippoo having ventured to oppose him, the Mysorean army was defeated and obliged to seek shelter under the guns of the capital. The road to Seringapatam was now open to the English, and the prize seemed to be within their reach, but at this time General Abercrornbie had not arrived, and Lord Cornwallis convinced that his force was not sufficient to invest the city, his camp being half-filled with the sick and dying, was compelled to retreat. He sent orders to General Abercrornbie, who had reached Periapatam, about three marches from Seringapatam, to retire towards the coast, while he himself retreated towards Bangalore. He had scarcely left the scene of his victory, having first demolished his heavy artillery, when he was joined by the Mahratta army, under the command of Purseram Bhow, a celebrated Mahratta warrior, and Harry Punt, a Brahmin of the highest rank, who was likewise charged to act as minister plenipotentiary to the whole Mahratta league. Had these chiefs arrived before the recent battle, Tippoo Sultaun would have been besieged in his capital, but the swelling of the rivers, the sickly state of his soldiers, and the loss of his artillery forbade all thoughts of returning, and Lord Cornwallis therefore continued his march towards Bangalore. Tippoo boasted that he had gained a great victory, though at the same time he made some fruitless attempts at negociation. During the following autumn great preparations were made for renewing the war in Mysore. The ensuing campaign opened early in February, 1792, the forces under Lord Cornwallis and General Abercrornbie resuming their former plan of operations. This time both armies met under the walls of Seringapatam; while the forces of the Peishwa and of the Nizam encamped at a little distance from the city, and furnished to the British army a plentiful supply of stores and provisions. Tippoo’s forces awaited the approach of Lord Cornwallis under the walls of his capital, but they were defeated, and Seringapatam was in consequence closely and completely invested. The first parallel, with a large redoubt in the rear, was finished by the 21st of February, and two days afterwards the second parallel was completed, and breaching-batteries were commenced and furnaces prepared for heating shot. In a few days Seringapatam would have been taken by storm, but Tippoo seeing his situation hopeless sent a _vakeel_ to sue for peace. The treaty which Tippoo was forced to accept contained the following articles:—That he should cede one-half of his territories to the allies: that he should pay three crores and thirty lacs of rupees to indemnify them for the expenses

of the war; that he should release all his prisoners; and that he should deliver two of his sons as hostages for the due execution of the treaty. The young princes were conducted to the camp of Lord Cornwallis with great ceremony on the 26th of February, and were received by him with all possible demonstrations of kindness and affection. But though Tippoo had delivered his sons into the hands of Lord Cornwallis as pledges of his good faith, he still reluctantly fulfilled the articles of the treaty. His chief objection was the cession of the principality of Coorg, nor would he consent to it until Lord Cornwallis had sent off his hostages in the direction of the Carnatic, ordered his guns to be replaced in the batteries, and made preparations for renewing the siege. Then, when he saw that there was no alternative, on the 19th of March Tippoo signed the definitive treaty which was delivered to Lord Cornwallis by the young princes, his hostages, with great solemnity. By this treaty the English obtained all the dominions of Tippoo on the coast of Malabar, a district surrounding Dindigul and some territory on the western frontier of the Carnatic; the Mahrattas recovered possession of the country as far as the river of Toombuddra, which had once been their frontier line; and the Nizam had for his share all the country from the river Kistna to the Pennar, including the forts of Gunjecottah and Cudapa. When the princes were delivered into the hands of Lord Cornwallis some of the money exacted from Tippoo was paid, but the whole not being forthcoming they remained under the safeguard of his lordship for sometime longer. Out of the money paid by Tippoo the commander-in-chief made a spontaneous gift to his troops, equal to six months batta, in order to soothe them for the disappointment of their expectations of booty in the storming of Seringapatam, and for their good conduct during the war. His lordship and General Meadows even resigned their own share, in order that the soldiers might have the more. Their conduct deserved reward, for though they burned with impatience to revenge the wrongs which their countrymen had received at the hands of Tippoo, yet when they found that Lord Cornwallis had agreed to a treaty of peace, they rendered all due obedience to his injunctions not to commit any violence, and to abstain from making use of any kind of insulting expression towards a fallen enemy. Even though fired upon by the Mysoreans after their own fire had been suspended, the troops obeyed his commands to the very letter: a proof of their admirable discipline, and their devotedness to their general. As for Tippoo Sultaun, although humbled, he still remained the same inveterate foe to the English as before. No act of kindness shown to himself, or his captive sons, by Lord Cornwallis, could soften his bitter resentment: every generous action shown towards him by the conqueror was considered rather as an insult than as a proof of friendship, and nothing in his conduct could justify the hope that peace would be permanent.

PROGRESS OF THE FRENCH REVOLUTION.

During this year the principles of the French revolution were more clearly manifested to the world. Early in the year the state of foreign affairs assumed a more menacing aspect. Austria was collecting troops, and the only ultimatum on which the emperor would agree to discontinue preparations, was the re-establishment of the French constitution on the basis of the declaration of June, 1789; the restitution of their property to the clergy; and the cession of Alsace to the German princes, and of Avignon to the pope. But these terms were “like a summons directed to the torrent,

or a command to the whirlwind:" the assembly replied to them by a declaration of war, to which Louis was compelled to assent. Nor was this the only effect produced by the demands of the Emperor of Austria. The assembly required of Louis that he should freely resign himself to the current of the revolution, or be dethroned. Influenced, however, by the queen and by Dumouriez, who finding himself in office broke with the Girondists as he had previously with the Constitutionalists, he fearlessly resisted their counsels. The friendship of Dumouriez raised the drooping spirits of the old royalist party, and Louis was once more induced to listen to their plans for the restoration of the former government. But this party was now a broken reed, on which no hope of support could be placed. Events on the frontiers conduced likewise to render the cause of Louis and the Royalists more hopeless. In their first action the revolutionary soldiers were defeated, and on the news of this reverse the populace turned their rage against the monarch. Orders were issued by the assembly for the disbanding of his guard, by which he was at all times exposed to the irruptions of the rabble; and two decrees were likewise issued in opposition to the royal will: one for the exile of the refractory priests, and another for the establishment of a camp of 20,000 men under the walls of Paris. This was another crisis in the reign of Louis, and had he made proper use of it he might have prevented the supremacy of the populace. Aroused by a sense of danger from this federal camp, thousands of the national guards and of the respectable citizens petitioned against it; at the same time exhibiting an inclination to rally round the throne. Dumouriez advised the monarch to throw his whole influence into the scale of this party, and he was about to act upon this advice, when he was prevented by a deep laid stratagem of the Girondists. Being assured that he would resist the decree relative to the nonjuring and seditious priesthood, they sent it to him for the purpose of provoking his resistance, that the citizens might see his lack of cordiality towards the revolution. This scheme succeeded. Exasperated by the insults daily heaped upon him and his family, he defied the Girondists, and yet at the same time neglected to rally round him either the national guards or the citizens. The Girondist ministers were now dismissed, and both their decrees were rejected, all which tended to accelerate the fearful catastrophe which had been long hovering over the throne of France, and the nation at large. The new administration was chosen from among the Feuillants, but it possessed no weight either with their own party or the people. The Feuillants joined with the royalists to repress the growing spirit of insubordination, but all their exertions were vain. Lafayette also wrote an energetic letter to the assembly, denouncing the Jacobin faction, and demanding the dissolution of the clubs, but he only stirred up the rage of the populace against himself, without curbing their evil passions. The Girondists, moreover, became as dangerous a set of men as were the hot-headed and coldblooded Jacobins. Chagrined at the loss of place and power, they allied themselves with the mob, and inflamed them by petitions and harangues. Nay more: by direction of the Girondists, a general insurrection was prepared in the fauxbourgs, and a body of ten thousand men organised in the quarter of St. Antoine. A pretext for arming was found in the non-success already mentioned, of the revolutionary forces on the frontier. Under the pretence of fear of the Austrians and Prussians, pikes were forged, and distributed among men who thirsted to commit outrage and wrong on their monarch and their fellow-citizens. Revolt broke out on

the 20th of June: pikemen from the suburbs of St. Antoine and St. Marceau marched from the place of the Bastille towards the Tuilleries. At their head was the ferocious Santerre, a brewer, who proved himself to be the worthy hero of this horrible day. Their approach was made known by shouts of “Down with the Veto,” and by the revolutionary chorus of _Caira_. The “Tree of Liberty,” and the “Rights of Man” were borne before them as banners, and in this manner they forced an entrance into the palace. On discovering the monarch, some of them exclaimed that they had a petition, and Louis led the way to the largest saloon of the suite. The petition was not forthcoming, but placing the “Rights of Man” before the king they demanded his assent to the decrees for the federal camp and the transportation of the priests. Never did the unhappy Louis exhibit so much fortitude as on this trying occasion. He bore all their insults with calmness, and to their reiterated demands, merely replied; “This is neither the time nor the way to obtain them from me.” This storm passed by: the Girondists, on hearing that the insurrection was likely to prove serious, persuaded the rabble to retire. All good citizens manifested abhorrence at the outrage committed, and indignation was exhibited in the provinces and among the armies. His admirable coolness extorted admiration even from his enemies. The Duke de la Rochefaucault, who commanded at Rouen, offered him an asylum there; Lafayette implored him to throw himself into the arms of the constitutional forces; and the national guard offered to protect his person. Louis, however, declined all these proposals, for he still hoped that the allied powers would deliver him from his rebellious subjects. Lafayette made a last effort to save the throne, by appearing in person before the legislative assembly, and demanding, in his own name and in that of the army, the rights of constitutional royalty; but the Jacobins threatened him with destruction, and Louis refused to be saved by a person whom he considered as the author of his misfortunes, and Lafayette returned to his troops with the loss of both influence and popularity. The situation of Louis became daily and hourly more critical. Emboldened by Lafayette’s failure, the Girondists and Jacobins aimed at the monarch’s dethronement. The minds of men were inflamed by the harangues of demagogues, and it was proclaimed that the country was in danger. The contest of parties was fierce in the extreme; their madness being heightened by the collection of formidable masses of hostile armies on the frontiers. The approach of a crisis became evident on the 14th of July, when a _fête_ was held in commemoration of the destruction of the Bastille. On that day the king with the queen and dauphin went to the Champ de Mars, and it was with difficulty that the soldiers saved them from the rage of the rabble. The fermentation of the public mind received a fearful acceleration, when it was discovered that the Prussians and Austrians were advancing upon the capital, under the command of the Duke of Brunswick. All France was put in motion thereby, and thousands of hot-brained youth resorted to the capital to join the already overwhelming rabble there. Thus supported the legislative assembly determined on the deposition of the king, having first appointed a commission to examine what grounds could justify such a step, and whether such grounds existed. The blow was struck on the 10th of August. On the preceding day the popular excitement was extreme, and at midnight the tocsin for a scene of wild fury was sounded throughout Paris. Obeying its horrid summons, the self-called patriots poured into the fauxbourg Saint Antoine, the centre of the insurrection, from

the different rallying points; and by the dawn of day their columns, which had been organized under the direction of the assembly, were ready for the work of destruction. The palace of the Tuilleries was in vain defended by some Swiss and royalist troops; after a great slaughter on both sides it fell into the hands of the rabble. Before the combat took place the king had fled to the legislative assembly, to place himself under their protection. He imagined that he would there be safe, but the first act of the assembly told him that his hopes were fallacious: under the plea that his presence marred the freedom of debate, he was removed from the side of Vergniaud, the president of the chamber, where he instinctively took his seat, to the box reserved for the reporters. This was the last day of the monarchy. The assembly concluded the crimes of that day by a decree suspending Louis from his kingly functions, by ordering the formation of a national convention, and by the appointment of a new ministry, the members of which were taken conjointly from the ranks of the Girondists and Jacobins. The national convention was to have unlimited authority to decide in the name of the people upon all the interests of the country, and its session was to commence on the 20th of September. In the meantime several important events took place. Lafayette, having in vain endeavoured to re-establish the constitutional throne, fled with his staff over the frontier, and was arrested in Liege by an Austrian general, and thrown into prison. The allied armies had taken Longwy and Verdun, and a report was spread that they were advancing upon the capital. These successes alarmed the patriots, and made them turn their rage upon each other. The Girondists conceived the plan of abandoning the capital and defending the country behind the Loire; but the Jacobins opposed this, and it was resolved that, rather than surrender the capital, the population should be buried beneath its ruins. Division was in the camp, and bloodthirsty men were now to rule. Thousands suspected of being unfavourable to the principles of the revolution were thrown into prison, and thousands were barbarously massacred. The Jacobin faction of Paris ruled France; and such sanginuary fanatics as Robespierre and Marat carried the sway. The guillotine was declared permanent, and many members of the legislative assembly were themselves menaced by the fatal axe. At length this assembly, after having passed a great many decrees—decrees which were partly fanatical and partly inefficacious—closed its session, and the national convention rose upon its ruins. This new assembly was principally composed of the Jacobin or republican party; the elections preponderating in their favour. This spirit was manifested almost in the first hour of its session; the legislative assembly had transferred the king and his family to the prison of the Temple; the national convention came to a speedy and unanimous resolution that royalty should be for ever abolished, and that France should henceforth be a republic. But, although united in this principle tendency, this assembly, like the one which preceded it, was divided into two hostile parties; the moderates, or Girondists, and the Republicans, or Jacobins. In the national convention these two parties took the names of the Mountain and the Plain; and from the very commencement of its sitting the assembly was threatened with new convulsions, through the struggles of these parties. But the populace now, in reality, possessed the power, and they naturally permitted themselves to be led only by men whose character and principles were in accordance with their own; hence the triumph of the Mountain, or the Jacobins. On one point, however, both parties came

to a perfect agreement. Encouraged by recent successes over the allied armies—for the French generals had everywhere defeated them—the Parisian populace loudly demanded the blood of their monarch; and, after violent contests, it was resolved that the inviolability of Louis was forfeited, and that the convention had power to decide on his life or death. These resolutions were passed on the 3rd of December, and on the 11th of that month, an act of accusation was drawn up, and the King of France was brought before the bar of his revolutionary subjects. His trial and death will be noticed in a future page.

{GEORGE III. 1792–1793}

AFFAIRS OF POLAND.

France was not the only European state now in commotion. It has been seen that the two imperial courts of Austria and Russia had seized a great portion of Poland as their prey, and that they had imposed their yoke upon the nation. This ignominious situation of Poland remained unchanged until the year 1788, when, encouraged by the war which had broken out between their oppressors and the Porte, and by the secret promises of Prussia, the Poles meditated the means of effecting their salvation. The Russians had requested them to conclude a defensive alliance against the Porte; and, under these circumstances, a diet assembled in Warsaw, which immediately declared itself a confederated diet, in order that it might not be dissolved by the right of veto, which, under the old constitution, belonged to every deputy individually. Those who were in the interests of Russia were completely overpowered by the patriotic party, and the proposed alliance was rejected. The confederative diet further decreed the increase of the army, granted imposts on the property of the nobility and clergy, and established a commission of war dependent on the diet only, in order to check the influence of the permanent council of state, which their spoliators had created, for the purpose of destroying the national power. All these regulations were expressly sanctioned by Prussia, and that power solemnly promised to respect and protect the independence of Poland. Thus supported, the Polish diet demanded the removal of the Russian troops from their territory; and Catherine, alarmed at the terrible energy with which the demand was made, felt herself compelled to recall her soldiers. The diet now commenced the work of remodelling the constitution of Poland. The new constitution was finished in the space of a year; and though it was opposed by some aristocrats it was adopted by the majority, and solemnly sworn to and proclaimed. By this constitution the Catholic religion was fixed as the dominant religion of the kingdom, though liberty was granted to other confessions; the Polish throne was declared hereditary; Frederic Augustus of Saxony was appointed the successor of Stanislaus, the reigning king, with right of succession for his descendants; the king, with his council of state, was to exercise the executive power, and was to have some influence on the legislative; the diet, which was composed of two chambers, one of the deputies, and the other of the senators, was to assemble every two years, and was to possess the right of making war or peace; independent judges were to administer justice in the name of the king; the ministers of the crown were to be responsible, and the person of the king inviolable; the

prerogatives of the nobility were to remain untouched; the royal cities were to be endowed with the right of personal liberty for their citizens; the citizens of these cities were to possess the right of electing their magistrates, as well as the right of acquiring titles of nobility, and the estates of nobles; at every diet a number of citizens were to be elevated to the rank of nobles; the cities in which were courts of appeal were to have the privilege of sending a deputy to the diet; the peasantry were to be protected from an aggravation of their hard lot by the laws; and personal liberty was to be possessed by foreign settlers. By the mass of the nation this constitution was received with gratitude and joy; but some of the aristocracy protested against it, and their resistance was encouraged by Russian gold. At first, however, their opposition was fruitless, and everything promised well for the establishment of this new order of things. Russia, it is true, threatened to subvert them; but the Porte, Sweden, and Prussia, with other European powers, looked upon them in a friendly manner. Prussia, indeed, solemnly promised assistance; and in the month of March, 1790, Frederic William even concluded a defensive alliance with Poland. But the friendship of courts is variable, and the favour of monarchs fickle. The King of Prussia had attached himself to the cause of Poland, not from any respect for her rights, but from a spirit of jealousy towards Russia, and in the hopes of obtaining something for himself. He was to have Dantzic and Thorn for his support; and when the republic refused to cede these cities, his ardour on the behalf of the Poles underwent a great change. He grew cool, and when peace was concluded between Russia and the Porte, Frederic William withdrew from the cause of Poland altogether, and even joined with her old and inveterate enemy. When the Russian hordes entered the Polish territory, under the pretext of assisting those aristocrats who protested against the new constitution, he not only refused his promised assistance, but took a menacing attitude. But the Poles were not discouraged by his perfidy. The diet summoned the nation to its defence; and the army fought valiantly, under the command of the celebrated Kosciusko. The enemy, however, proved too strong for Poland. The king was not in heart on the side of the patriots; and Kosciusko himself deserted them and went over to the aristocratic party. The patriots now fled; and the Russians having advanced to within three days march of the capital, compelled the king to save his throne by consenting to the abolition of the new constitution. On the 23rd of July, 1732, an armistice was concluded, and the command of the Polish troops consigned to a Russian general. Vengeance soon followed. On the 29th of October a diet assembled in Grodno, to which diet it was declared, on the part of Russia and Prussia, that a second division of Poland was necessary, and that its members would be called upon to comply with this measure. There was no alternative; for, at this time, Prussian as well as Russian troops had entered Poland, and there was no means of defence against their combined operations. So that whatever Russia and Prussia chose to demand, that they were sure of obtaining; for what, it has been asked, can feeble justice do against exorbitant power? But it was not till the spring of the succeeding year that the diet were called upon to give their consent to this second spoliation of their fatherland.

STATE OF THE PUBLIC MIND IN ENGLAND.

At the commencement of this year, and even as late as the month of August, when it was known that the French monarch was deposed, there appears to have been no disposition on the part of government to take part in the war against France. On the contrary, in pursuance of a recommendation from the throne, the army and navy were reduced; and when our ambassador was ordered to leave Paris, on the virtual extinction of monarchy, he was directed to renew his assurances of British neutrality. But there were many causes at work which, before the year closed, induced the government to exhibit signs of a change of policy. Although the generality of the people were struck with terror at the deposition of the monarch, and the horrid massacres which preceded and followed that event, yet the revolutionary societies in England, grew daily bolder and bolder in their proceedings. Some there were, it is true, who were convinced of their evil tendency, and who, in consequence, gave up all connexion with them; but still they existed in all their original vigour. So enthusiastic were these societies in their admiration of the French revolution, all stained with blood as it was, that they even transmitted addresses of applause to the national convention. The London Corresponding Society, the Manchester Constitutional Society, the Norwich Revolution Society, the Society for Constitutional Information in London, and the London Constitutional Whigs, these all joined in addresses of congratulation on the victory which the French people had gained over their hapless and ill-fated monarch. All these addresses received a warm response from those to whom they were addressed. For once in the annals of history the French hailed Englishmen as brethren; and a hope was expressed that the day would soon arrive when they might join the hands of fraternity. But these addresses and responses contained something more than mere compliments; they breathed destruction to the English constitution. It was evident, indeed, that, unless checked by the popular voice or by government, the revolutionary societies in England would one day produce corresponding fruits to those of France. Happily the nation at large and the government joined in stemming the onward tide of revolutionary principles. Among the first to take the alarm at the political societies and publications, were the established clergy, who sent up addresses from all parts to his majesty, thanking him for his late wise and provident proclamation. Towards the close of the year the alarm became general; and clubs and associations began to be formed with the avowed object of counteracting the baneful influence of those which were founded upon revolutionary principles. These societies came to certain resolutions, and made certain declarations, which they caused to be published both in the newspapers and in the form of pamphlets. One grand end at which they aimed was to expose the fallacy that all men are born equal and must remain so; an argument which the revolutionists had ever on their lips, and which was the very root and life of their factious disposition. Nor did these societies labour in vain. Their spirit spread rapidly throughout the kingdom, and in every county, and almost every town and village resolutions were subscribed, expressive of loyalty and attachment to the king and constitution. It became manifest that though the French had some few thousands of admirers in England, yet the great mass of the people abhorred their proceedings; that, though there were many who wished to bring about a revolution in their own country, yet there were more who were ready to maintain the constitution as it existed, against all its enemies, native or foreign. The public feeling encouraged

government, at the close of the year, to assume a hostile appearance towards the French. Alarmed at the circumstances that the national convention held out the hand of fraternity to other countries, and especially to England; that Savoy was now incorporated with France, in contradiction to the formal renunciation of all plans of conquest, that Belgium was declared independent, under the protection of France; that the navigation of the Scheldt was opened, in disregard of all existing relations between European states; and that a decree of the 16th of November ordered the French troops to pursue the Austrians, whom they had recently defeated, into the Dutch territories, the British government placed the country in a state of defence. The militia were called out; the Tower was strengthened; a second royal proclamation was issued; and parliament summoned to meet on the 13th of December.

MEETING OF PARLIAMENT.

When parliament met, the speech from the throne was full of alarm. All the expressions of the first proclamation were repeated in it; and, towards the conclusion, the king remarked:—"I have carefully observed a strict neutrality in the present war on the continent, and have uniformly abstained from interference in the internal affairs of France; but it is impossible to see, without serious uneasiness, the strong and increasing indications which have there appeared, of an intention to excite disturbances in other countries, to disregard, the rights of neutral nations, and pursue views of conquest and aggrandisement; as well as to adopt towards my allies, the States-general, measures which were neither conformable to the laws of nations, nor to the positive stipulations of existing treaties." Under all these circumstances, his majesty added, he had thought it right to adopt precautionary measures, and to make some augmentation of his naval and military force.

The address was moved by Sir James Sanderson, lord-mayor of London, who affirmed that seditious practices were prevalent; that various political societies were established in London, which corresponded and confederated with other societies in different parts of the United Kingdom; and that these societies, whose aim was to subvert the constitution and to destroy monarchy, root and branch, were circulating a vast number of pernicious pamphlets and publications among the lower orders of people. A memorable debate arose on the address. Fox, who was yet enchanted with French liberty, condemned every part of the speech and of the address. It was his firm conviction, he said, that every fact asserted in the king's speech was false; that no insurrection existed; and that the alarm was occasioned by the artful designs and practices of ministers. Fox reprehended the system of intellectual oppression, which induced ministers to represent the tumults and disorders that had taken place, as designed to overthrow the constitution; and that the various societies instituted for discussing questions relative to the constitution, were so many schemes for propagating seditious doctrines. He was aware that he was advancing opinions not likely to become popular; but he was as ready to meet the current of popular opinion, which was running high in favour of the high lay doctrines now existing, as he was, in times past, to meet the opposite torrent, when it was said that he wished to sacrifice the people to the crown. He remarked:—"One extreme naturally leads to another. Those who dread republicanism fly for shelter to the crown; those who desire reform,

and are calumniated, are driven by despair to republicanism. And this is the evil I dread. These are the extremes into which these violent agitations hurry the people, to the gradual decrease of that middle order of men, who dread republicanism as much on the one hand, as they do despotism on the other. That middle order of men, who have hitherto preserved to this country all that is dear in life, I am sorry to say, is daily lessening; but while my feeble voice continues, it shall not be totally extinct; there shall be at least one who will, in this ferment of extremes, preserve the centre point." In adverting to the affairs of France, Fox said that he rejoiced in the triumph of men, fighting for liberty, over the armies of despots. He bitterly condemned the calling out of the militia, and as bitterly condemned ministers for not sending a new ambassador to treat with the present executive government of France. As for England, he did not think that it was in a state to go to war; nor did he think that we should be justified in taking such a step for anything which had occurred in France, or in Belgium, or in Savoy, or anywhere else. In conclusion, Fox praised the English constitution as the best adapted to England, because the people loved it best; and moved an amendment, pledging the house that inquiry should be made into the facts stated in his majesty's speech. Pitt was not in the house on this occasion; but Fox was effectively answered by one of his own party one who had figured for many years as one of the leaders and most eloquent chiefs of the Whig opposition, and who had been linked in close friendship with the man whom he now opposed. Mr. Windham said that he felt himself constrained to vote on this occasion with those whose measures he had uniformly and conscientiously reprobated. The alarm, he said, which existed in the country, was not, he believed, greater than the existing danger. It was well known that constant communication was maintained between persons in Paris and persons in London; and that the object of this communication was the destruction of our present form of government. These worthy gentlemen, he said, had their agents throughout the country, in order to disseminate their pamphlets; which, as these agents were poor men, was at once a proof that there must be a society somewhere who defrayed the expense. In adverting to France, Windham said, he believed that the motives of the combined armies, that had attempted to march to Paris were good; and he justified their interference by demonstrating that France herself had intermeddled with the affairs of neighbouring countries. The amendment was supported by Mr. Grey, who said that he was no friend to Paine's doctrines; but he would not be deterred by a name from acknowledging that he considered the rights of man as the foundation of every government, and those who opposed these said rights as traitors against the people. Dundas replied to Grey, and justified the measures which government had adopted. A universal and serious alarm, he said, pervaded the country gentlemen, farmers, and others, and this had rendered some active steps absolutely necessary on the part of government, in order to restore confidence. Dundas remarked, that the national convention had been eager to countenance every complaint of grievance from the factious and discontented in this country; and in proof of it he read some of the addresses which the convention had received with applause from the political societies of England. He asked, "Was not this, on the part of the French, an unjustifiable interference in the internal affairs of another country? And had not the leading members of the convention declared that they would not look to the sovereign, but to the people of Great Britain; that they

would appeal from the government to the republicans of England." He maintained that, under all the circumstances, government were fully justified in all they had done, and would have merited impeachment if they had remained inactive at such a critical juncture. Sheridan, in a flippant manner, endeavoured to show that the alarm was ridiculous, and had been created by ministers for their own selfish and wicked purposes. The republicans said to exist in England, were, he said, men of buckram; and should any French army attempt to invade England, with the idea of effecting any change in our government, every hand and heart in the country would be united to resist them. He condemned a war with France, and asserted that he would vote for the impeachment of that minister who should enter into such a war, for the purpose of re-establishing the old despotism of the Bourbons. The deep earnestness of Burke, who next spoke, contrasted strangely with the flippancy of Sheridan. Burke said that this day was indeed a trial of the constitution. He agreed with an honourable gentleman, in regarding the present as a momentous crisis; but for reasons different from those which he had assigned. Liberty and monarchy, he continued, are connected in this country; they were never found asunder; they have flourished together for a thousand years; and from this union has sprung the prosperity and glory of the nation. With impassioned eloquence Burke affirmed, that there was a faction in this country who wished to submit it to France, that our government might be reformed upon the French system; and that the French rulers, cherishing views on this country encouraged that faction, and were disposed to aid it in overturning our constitution. As a proof of this, Burke read an address, which men, calling themselves Englishmen, presented at the bar of the convention on the very day in which there had been a discussion respecting the union of Savoy with France; and to which address the president, in his reply, remarked:—"That royalty in Europe was in the agonies of death; that the declaration of right, now placed by the side of thrones, was a fire which, in the end, would consume them; and he even hoped that the time was not far distant when France, England, Scotland, Ireland, all Europe! all mankind! would form but one peaceful family." Burke asked, whether, if Englishmen had applied to Louis XVI. to reform our government, such language would not have been considered as an aggression? Burke declared that the question now was, not whether we should present an address to the throne, but whether there should be a throne at all; and he concluded with recommending unanimity, and representing the danger which might arise from the progress of French armies, if not speedily resisted. Mr. Erskine, who was a member of the Society for Parliamentary Reform, justified that society and himself, and blamed ministers for delaying to prosecute the author of the "Rights of Man" till nearly two years after its publication. Erskine charged Burke with inconsistency; and concluded with recommending the house to meet the complaints of the people, not with abuse, but by removing the grounds of their dissatisfaction; by reforming parliament, and granting them a fair representation. The people, he said, were already taxed to an enormous extent; and should a war be the consequence, when it appeared every precaution had not been taken to prevent it, ministers would incur a heavy responsibility, both to the public and to that house, for having precipitated the nation into so great a calamity. The debate lasted till midnight; and when the house divided there was a majority in favour of the address of two hundred and ninety against fifty.

This large majority snowed that a great portion of the Whigs had parted company with Fox. Nothing daunted, however, at this desertion, he gave notice that to-morrow he would move an amendment upon the report. The object of this amendment was to induce his majesty to open a negociation with France, for the purpose of preventing the calamities of war. In the speech which Fox made in support of it, he threw the whole blame of the horrid scenes which had occurred in France upon the coalition; and he eulogised the spirit and valour of the French republicans in the warmest strains of panegyric, he thanked God, he said, that nature had been true to herself; that tyranny had been defeated; and that those who fought for freedom were triumphant. All the inhabitants of Europe, he said, sympathised with the French and wished them success, regarding them as men struggling with tyranny and despotism. Sheridan seconded this amendment, and Burke opposed it, affirming “that to send an ambassador to France would be a prelude to the murder of our own sovereign.” Fox had said, in the course of his speech, that the republic of this country was readily acknowledged by European courts in the time of Cromwell, after the execution of Charles I.; but Burke shattered this argument, in favour of acknowledging the French republic, at a blow. He remarked: “The French republic is _sui generis_ and bears no analogy to any other republic or system of government that has ever existed in the known world. The English commonwealth did not attempt to turn all the states of Christendom into republics. It did not wage war with kings, merely because they were not democrats; it professed no principles of proselytism. The same might be said, of the republic of the United States of America. But France wanted to make all the world proselytes to her opinions and dogmas: France was for turning every government in the world into a democratic republic. If every government was against her, it was, because she had declared herself hostile to every government. This strange republic may be compared to the system of Mahomet, who, with the Koran in one hand and a sword in the other, compelled men to adopt his creed. The Koran which France held out was the declaration of the Rights of Man and universal fraternity; and with the sword she was determined to propagate her doctrine, and conquer those whom she could not convince.” Burke said that he did not wish to hurry the nation into a war, but only to make the people of England see that France had in reality declared war against them. The national convention had passed a variety of decrees, every one of which might be considered as a declaration of war against every government in Europe; and the people of France had resolved to wage an eternal war against kings, and all kinds of kingly government. Moreover, in contempt of the king and parliament, the convention had received Englishmen at its bar, as the representatives of the people of England. In the absence of Pitt, his colleague, Dundas, entered into a long and elaborate vindication of the measures of administration; concluding with a confident prediction that, “if we were forced into a war, it would prove successful and glorious.” The amendment was rejected without a division.

Still undismayed, Fox, on the 15th of December—which was a Saturday—a day when parliament did not usually meet—moved, “that a minister be sent to Paris, to treat with those persons who exercise provisionally the executive government of France.” Fox contended that this measure would neither imply approbation nor

disapprobation of the conduct of the existing government; and that it was the policy and practice of every nation to treat with the existing government of every other nation with which it had relative interests, without inquiring how that government was constituted, or by what means it acquired possession of power. He illustrated his argument by asserting that we had more then once sent embassies to the government of Morocco, when men sat upon that throne who had waded to it through blood. We had, likewise, he said, ministers at the German courts at the time of the infamous partition of Poland; and we had a minister at Versailles when Corsica was bought and enslaved. Yet, he argued, in none of these instances was any sanction given, directly or indirectly, by Great Britain to these nefarious transactions. But this line of argument was more specious than sound; for, although there was nominally a government in France, it was self-constituted, and founded in anarchy. This motion was seconded by Mr. Grey, who declared that an immediate embassy to Paris was the only means of averting war; a war which he deemed the most dangerous that had overtaken this country. Lord Sheffield, who had been an ardent admirer of Fox, reprobated the object of this motion, and, with many others, censured him for his conduct during the last three days. Fox, however, was resolute, and the debate continued. In combating his arguments, Mr. Jenkinson asked, what government we could acknowledge where there was virtually no government? and how England could recognize a constitution which the French themselves were every day violating? and how we could negociate with men who had declared a universal war against all governments? He added,—“On this very day, while we are here debating about sending an ambassador to the French republic; on this very day is the king to receive sentence, and, in all probability, it is the day of his murder. What is it, then, that gentlemen would propose to their sovereign? To bow his neck to a band of sanguinary ruffians, and address an ambassador to a set of regicides, whose hands are still reeking with the blood of a slaughtered monarch? No, sir, the British character is too noble to run a race of infamy; nor shall we be the first to compliment a set of monsters who, while we are agitating the subject, are probably bearing through the streets of Paris—horrid spectacle—the bloody victim of their fury.” The master of the rolls, Sheridan, Windham, Burke, Sir William Young, and others took part in this debate; but the motion was negatived without a division.

In the meantime the address had been carried in the lords almost unanimously; the Duke of Norfolk, and lords Lansdowne, Hawdon, and Stanhope only speaking against it. In both houses the opposition had, at this time, suffered a severe defection. At the head of the seceders in the lords were the Prince of Wales, the Duke of Portland, Lords Fitzwilliam, Spencer, Mansfield, and Loughborough, the last of whom, on the resignation of Lord Thurlow, had been created chancellor; the chief seceders in the commons, besides Burke, were Mr. Windham, Sir Gilbert Elliot, Mr. Anstruther, Lord Sheffield, &c., who by their secession acquired the appellation of alarmists.

Yet, though Fox was thus deserted, on the 17th of December he returned to the charge. On that day Mr. Grey complained that the loyalists and high churchmen had been committing riots in Manchester and other towns in the kingdom. The Manchester riots, he said, had risen out of a loyal meeting held in that town, at which meeting he represented that Mr. Peel—the father of Sir Robert—declared that it was

time for the people to rouse from their lethargy, as there were incendiaries in the country. He called upon Mr. Peel to name these incendiaries; and then called the attention of the house to a paper issued by the association against republicans and levellers, which was entitled “One Penny-worth of Truth from Thomas Bull to his Brother John.” Mr. Grey said, that this pamphlet contained some unfounded and libellous invectives against the dissenters; and that it was calculated to produce alarming effects, by exciting the people against them. He moved, that the said libellous paper should be delivered in at the table and read. In reply to his demand of Mr. Peel, that gentleman said that there was no truth in any part of the report to which Mr. Grey had alluded, except that “God Save the King” had been sung at the meeting: and he proved that, so far from exciting the people against their fellow-subjects, the resolutions of the committee of the Manchester Society were calculated to dissuade the populace from outrage and wrong. Many members opposed the motion; but Fox strenuously supported it. In the course of his speech, Fox criticised the loyal associations and subscriptions which had been set on foot, for the purpose of aiding in the prosecution of affected persons. He treated the associations as tending to hinder the improvement of the mind, and as a mobbish tyranny; and he compared them with Lord George Gordon’s mob; declaring, at the same time, that he had advised his friends in Westminister to sign the said associations, whether they agreed with them or not, in order that they might avoid destruction to their persons or their houses, or a desertion of their shops. Burke was very severe in his remarks upon this last assertion. He observed:—“This insidiuous advice will tend to confound those, who wish well to the object of the association, with the seditious against whom the association is directed. By this stratagem the confederacy intended for preserving the British constitution and the public peace, will be wholly defeated. The magistrates, utterly incapable of distinguishing the friends from the enemies of order, will in vain look for support when they stand in the greatest need of it.” Mr. Grey’s motion was negatived without a division.

Pitt was not in the house when these debates occurred; but on the 18th, having been re-elected for the university of Cambridge, he resumed his seat; and in doing so he referred to the recent discussions, by declaring his conviction of the facts stated, and his approbation of the arguments used in support of the address. To send an ambassador to France, he said, under present circumstances, would be incompatible with the dignity of the crown, and contrary to the interests of the public; counteracting and disclaiming those very principles on which the whole of our conduct was founded. The decided opinion expressed by all parties, that if war was necessary, it should be prosecuted with vigour, gave him pleasure; but, at the same time, he assured the house, that nothing consistent with the dignity of the crown, the safety of the country, and the security of Europe should be omitted by government to preserve the blessings of peace.

THE ALIEN BILL, ETC.

At this period many of our provincial towns were filled with Frenchmen. Most of these were royalists; but there were some who mixed with the royalists in order to serve the cause of the republic; and there were others who were professed

republicans, and who were using their utmost efforts to seduce the people. As the English laws were not made for foreigners, on the 19th of December, Lord Grenville brought forward a bill in the house of lords, for subjecting aliens to certain regulations. Thus the bill proposed that all foreigners arriving in the kingdom, should give an account of themselves, and surrender such arms as they might have in their possession; that they should be obliged, in their removals from one part of the country to another, to use passports; that all emigrants, who received allowances from the British government, should be distributed in certain districts, where they would be more under the cognizance of the civil power; and that particular attention should be paid to such foreigners as had arrived within the present year, or as might afterwards arrive without obvious reasons. This bill, though opposed by several lords, passed the three readings in the upper house without a division, and was then sent down to the commons. It was there treated by Fox and his party as a measure contrary to the existing treaties between Great Britain and France; as a violation of the law of nations; and as an outrage on Magna Charta. Burke supported the measure as strenuously as Fox opposed it. Having commented in severe terms on the exultation which Fox had manifested on the success of the French, he then expatiated on the nature of French fraternization, and of that liberty which the revolutionists were so anxious to propagate throughout Europe, and which he denounced as a liberty without property, morals, order, government, and security. The apostles of liberty in France, he said, had destroyed the Bastille, while they had converted every man’s house in Paris into such a prison. He quoted the speech of M. Dupont in the convention, to show that Atheism was the first-fruits of French liberty: that fierce demagogue had declared that the religion of Jesus Christ was unfit to be tolerated in a republic, because it was a monarchical religion, and preached subjection and obedience to God; a declaration which was received by the convention with shouts of impious applause. Burke feelingly deplored the natural effects of a profligacy, which went to deprive man of happiness in life, and consolation in the hour of death. On the subject of the Alien Bill, Burke remarked, that he thought it calculated to save the country, for although the number of suspicious aliens might be small, it should be remembered that the horrid massacres in Paris in the preceding autumn had been perpetrated by a body of men not exceeding two hundred. Burke alluded to the fact that three thousand daggers had been ordered and manufactured in Birmingham, and it was on this occasion that he had recourse to a stroke of oratorical acting which has been often commented upon. Drawing a concealed dagger from his bosom, and throwing it down upon the floor of the house, he exclaimed:—“This is what you are to gain by an alliance with the French! Wherever their principles are introduced, their practice must follow. You must equally proscribe their tenets and their persons! You must keep their principles from our minds, and their daggers from our hearts.” The debates on the bill were renewed in its different stages: on the third reading Fox endeavoured to prove that the anxiety about a few French aliens in England was ridiculous; that no Alien Act could guard against the introduction of opinions; and that if dangerous principles were propagated in this country it must be by the English themselves, and not by foreigners. But all opposition was vain. The bill was carried by a great majority, as was also another bill to prevent the circulation in England of French assignats, bonds, and promissory notes. A third bill was passed to enable his

majesty to restrain the exportation of naval stores, saltpetre, arms, and ammunition, after which Mr. Pitt moved an adjournment to the 23rd of January, which was unanimously accorded.

{GEORGE III. 1792–1793}

EXECUTION OF THE FRENCH KING.

At length Louis fell a prey to the fury of his subjects. In order to fortify the new-born republic it seemed necessary to the republicans that all institutions and usages that reminded them of royalty and the ancient order should be abolished. The convention applied itself to this work with fanatical zeal, but first of all the Jacobins demanded the blood of the fallen monarch. Fierce contests arose between them and the Girondists on this demand, but the Jacobins were sustained by the Parisian populace, and their opponents were compelled to yield: a resolution was carried that Louis had forfeited his inviolability, and that the convention was authorised to judge him. The unfortunate monarch was brought before the bar of his subjects on the 11th of December, and he was nobly defended by Tronchet, Malesherbes, and Deseze; but after having heard their defence, and after a stormy deliberation that lasted some days, the convention resolved that the yeas and nays should be taken upon the following questions: First, Is Louis Capet guilty of conspiracy against the liberty or safety of the state? Second; Shall the judgment to be pronounced upon him be submitted to the sanction of the people in the primary assemblies? Third: What punishment ought to be inflicted upon Louis? The first of these questions was decided in the affirmative; the second was negatived; and as to the third question, five votes over half demanded death unconditionally. And such a small majority was deemed sufficient for pronouncing the sentence of death. The monarch was executed on the 21st of January, 1793, under circumstances that augmented the horror of the deed, and no nation in Europe endeavoured to save him from his fate. The King of Spain pleaded for his life, but the plea of a crowned head was not likely to be heard by men who had sworn eternal war against royalty.

CHAPTER XX.

{GEORGE III. 1793–1794}

Hostile Message of the King to Parliament..... Declaration of War by the French, &c. Pitt’s Financial Statement..... The Traitorous Correspondence Bill..... Preparations for War..... Relief granted to Mercantile Men..... Renewal of the East India Company’s Charier..... Relief of the Roman Catholics of Scotland, &c. Trial of Warren Hastings..... Discussion on a Memorial presented to the States-General..... Fox’s Motion for Peace ..... Mr. Grey’s Measure of Parliamentary Reform..... Prorogation of Parliament..... Affairs of Ireland..... Prospects of the French Republic, &c.

{A.D. 1793}

HOSTILE MESSAGE OF THE KING TO PARLIAMENT.

The news of the death of the King of France incited our government to active measures. On the 27th of December a memorial had been presented by the French ambassador, M. Chauvelin, to Lord Grenville, demanding to know whether France ought to consider England as a neutral or hostile power. In reply Lord Grenville acquainted M. Chauvelin that, as all official communication had been suspended since the unhappy events of the 10th of August, he could only be treated with under a form neither regular nor official. On the 4th of January a letter was received by his lordship from M. le Brun, minister of foreign affairs, together with a memorial in the name of the executive council, stating that they desired peace and harmony, and that they had sent credential letters to M. Chauvelin, to enable him to treat in the usual diplomatic forms. But peace and harmony were now out of the question. Three days after the death of the French monarch M. Chauvelin was ordered to quit the kingdom, and a war with the republic became no longer a matter of choice. On the 30th of January, Dundas presented a royal message to the commons, alluding to the execution of Louis XVI.; importing that his majesty had given directions for copies of a correspondence, &c., between the late minister of his most Christian majesty and our foreign secretary, to be laid before them; and stating the necessity that existed of a further augmentation of forces by sea and land. The house took this message into consideration on the 2nd of February, on which occasion there was an animated debate. Pitt commenced it by describing the execution of the King of France as an event which outraged every sentiment of religion, justice, and humanity; and as the effect of principles which started by dissolving all the bonds of society, and which, relying on fanciful theories, rejected not only the experience of past ages, but likewise the sacred instructions of revelation. Pitt stated that the British government had from the commencement adopted a system of neutrality; that they had declined taking any part in the internal affairs of France; and that in return for a declaration made to that effect the French had entered into a positive contract to abstain from those very deeds by which they had since provoked the indignation of the country. In a paper, he said, which was then on the table, they had disclaimed all views of conquest; had given assurances of friendship to all neutral nations, and had protested that they entertained no idea of interfering with the government of other countries. But what, he asked, had been the conduct of the French? They had annexed Savoy to their dominions, had rendered the Netherlands a province; and had exhibited a resolution to pursue the same course wherever they could carry their arms. As an illustration of the sentiments and designs of the French rulers, he read a letter from one of them, which was addressed to the friends of liberty in the different sea-ports of France, and which was written only four days after M. Chauvelin had complained to Lord Grenville that a harsh construction had been put by the British ministry on the conduct of France, and professed the warmest friendship for Great Britain. In this letter there was the following passage;—“The king and his parliament mean to make war against us. Will the English republicans suffer it? Already these free men show their discontent and the repugnance they have to bear arms against their brothers, the French. Well! we will fly to their succour—we will make a descent on the island—we will lodge there fifty thousand caps of liberty—we will plant there the

sacred tree—we will stretch our arms to our republican brethren, and the tyranny of their government shall soon be destroyed." Under all these circumstances Pitt declared that war was preferable to a peace which could not be consistent either with the internal tranquillity or external safety of England, and he moved an address to his majesty to that effect. The motion was seconded by Lord Beauchamp and supported by Windham, the latter of whom said that we must go to war for the security of the country, and that it would truly be a war _pro aris et focis_. Fox, and some of his friends deprecated such a measure, and endeavoured to show that war was not necessary, and might be avoided; but Pitt's motion was carried without a division, An address to the same effect was also voted by the lords.

DECLARATION OF WAR BY THE FRENCH, ETC.

A few days after the above proceedings of parliament, intelligence was received that France had declared war against Great Britain and Ireland. On the 11th of February, indeed, his majesty sent a royal message to the two houses, announcing that the national convention, had, without previous notice, directed acts of hostility to be committed against the persons and property of his majesty's subjects, in breach of the law of nations, and of the positive stipulations of treaty; and that since they had given these directions, they had actually declared war against his majesty and the United Provinces. The message continued—"Under the circumstances of this wanton and unprovoked aggression, his majesty has taken the necessary steps to maintain the honour of his crown, and to vindicate the rights of his people; and his majesty relies with confidence on the firm and effectual support of the house of commons, and on the zealous exertions of a brave and loyal people, in prosecuting a just and necessary war; and in endeavouring, under the blessing of Providence, to oppose an effectual barrier to the progress of a system which strikes at the security and peace of all independent nations, and is pursued in open defiance of every principle of moderation, good faith, humanity, and justice. In a cause of such general concern, his majesty has every reason to hope for the cordial co-operation of those powers who are united with his majesty by the ties of alliance, or who feel an interest in preventing the extension of anarchy and confusion, and in contributing to the security and tranquillity of Europe." This message was taken into consideration on the next day, when Pitt gave a detailed statement of our transactions with France, and of our endeavours to preserve a strict neutrality as long as it was possible. In adverting to those insults which the French supposed they had received from England, and which they stated as grounds for their declaration of war, he said that he found in them nothing but pretexts and allegations too weak to require refutation. These insults were, that the King of England had not ceased, especially since the revolution of the 10th of August, to give proofs of his dislike to the French nation, and of his attachment to the coalition of crowned heads; that the English government had ceased since that period to correspond with the French ambassador at London, on pretext of the suspension of the heretofore King of France: that since the opening of the national convention, the said government had refused to resume the usual correspondence between the two states, and to acknowledge the power of the convention; that it had refused to acknowledge the ambassador of the French republic, although provided with letters of credit in its name, and that the said court

had caused to be stopped several boats and ships laden with grain for France, contrary to the treaty of 1786, while exportations to other countries were free. Pitt concluded by moving an address in answer to his majesty's message, which was seconded by Mr. Powys, who said that under present circumstances war was preferable to peace with France. On the contrary Fox still contended that war with France was both impolitic and unnecessary. If any necessity existed, he said, that necessity arose from the unwise, arrogant, and provoking conduct of ministers. He moved an amendment, promising effectual support to his majesty in repelling every hostile attempt upon this country, and in such other exertions as might be necessary to induce France to consent to such terms of peace as should be consistent with the honour of his majesty's crown, the security of his allies, and the interests of his people. The conduct of government was defended by Dundas, while Burke, also, showed to demonstration that ministers had not precipitated the nation into this war, but were brought into it by overruling necessity. The amendment was negatived, and the address, as moved by Pitt, carried without a division; as was also an address moved by Lord Grenville in the house of lords.

In all these proceedings ministers were encouraged by the voice of the people, for the prevailing opinion was for war. Yet, on the 18th of February, Fox moved a string of resolutions the effect of which was that the two houses should load themselves with reproaches for having voted the addresses which they had just carried up to the throne. These resolutions were, that war with France on the grounds alleged, was neither for the honour nor the interests of this country; that ministers in their late negociations with the French government had not taken the means for procuring an amicable redress of the grievances complained of; and that it was their duty to advise his majesty against entering into engagements which might prevent a separate peace. Fox alleged that his object in making these motions was to pronounce a declaration of the precise grounds upon which gentlemen had voted for the war, for from many circumstances, he was persuaded that the object of ministers in going to war were those which they disclaimed, and that those they avowed were only pretexts. Fox pressed these resolutions to a division, and they were rejected by two hundred and seventy against forty-four: a majority which sensibly marked the feeling of the house. Yet, notwithstanding this decided victory of ministers, Mr. Grey, encouraged by Fox, produced the same string of resolutions three days after in a new form, which, however, were negatived without a division. A motion moved by Mr. M. A. Taylor, on the 22nd of February, against the erection of barracks or inland fortresses in our free country, shared the same fate; as did likewise another, moved by Sheridan, on the 4th of March, to the effect that the house should resolve itself into a committee to consider of the seditious practices, &c., referred to in his majesty's speech. All the efforts of the opposition to thwart the measures of government were, indeed, futile: the propriety and necessity of war were acknowledged by the great majority of the nation, as well as of the members of parliament. All the old Whigs ranged themselves on the side of government, by which Fox and his party lost much both of moral and numerical strength.

PITT'S FINANCIAL STATEMENT.

On the 11th of March Pitt brought forward his budget for the current year: estimating the expenses at £11,182,213, and that of the ways and means at £8,299,696. He proposed to raise the deficiency by loan, and to defray the interest by rendering permanent some of the temporary taxes imposed on account of the Spanish armament. In his speech Pitt made some remarks which show that he had then no idea of the subsequent enormous increase of the national debt and national taxation. He observed:—“I do not think it useless to suggest some observations with respect to this war in which we are engaged. The excess of the permanent revenue, if kept up, is not less than £900,000 above the peace establishment; which, even if destroyed by war, will leave the country in possession of all its ordinary revenue. This £900,000 I am desirous to leave as a security against those contingencies to which war is liable.” The sum borrowed was £4,500,000, and the terms were that for every seventy-two pounds advanced, the lender should be entitled to one hundred pound stock, bearing interest at three per cent. Pitt said that he expected to have made better terms for the loan, but he had not received two offers for it. Among other resources, the sum of £675,000 was to be raised by lottery, which was warmly opposed, but which, after a debate wherein several regulations were laid down to diminish the practice of insurance, received the consent of the house.

THE TRAITOROUS CORRESPONDENCE BILL.

As it was expedient, after a declaration of war, to prevent all correspondence between British subjects and the French, Sir John Scott, the attorney-general, brought in a bill called the “Traitorous Correspondence Bill,” by which it was declared high-treason to supply the existing government of France with, military stores; to purchase lands of inheritance in France; to invest money in the French funds; to underwrite insurances upon ships and goods bound from France to any part of the world; and to go from this country to France without a license under the privy-seal; it likewise prohibited the return of British subjects from that country to England without giving security. This bill was opposed as inconsistent with the treason laws of Edward III., and several of its obnoxious clauses were modified in the course of its progress. It received several alterations, also, in the lords, which were finally agreed to by the commons, and the bill passed into a law.

PREPARATIONS FOR WAR.

A royal message was presented to parliament on the 6th of March, stating that his majesty had engaged a body of his electoral troops in the service of Great Britain to assist his allies, the States-general; and that he had directed an estimate of the charge to be laid before the house of commons. A few days after M. le Brun, minister of foreign affairs in France, addressed a letter to Lord Grenville, stating that the French republic was desirous to terminate all differences with Great Britain, and requesting a passport for a person vested with full powers for that purpose. He named M. Maret as the proposed plenipotentiary of France; but the present state of affairs did not permit the British government to accede to such an overture, and no notice was taken of the application. On the contrary, a treaty, about this time, was concluded with the King of Sardinia, by which England bound herself to furnish a subsidy of £200,000 annually, to be paid three months in advance; and not to

conclude peace with France without comprehending in it the restitution of all territories belonging to that monarch when he engaged in war.

RELIEF GRANTED TO MERCANTILE MEN.

At this period, through the spirit of commercial speculation, there occurred an unusual number of bankruptcies. A select committee was appointed by the commons to investigate this subject, and it was discovered that large issues of paper money and a scarcity of coin had induced bankers to suspend their usual discounts, in expectation of which merchants had formed engagements they could not meet. As a remedy for this evil an issue of exchequer-bills to the amount of £5,000,000 was recommended, under commissioners to be nominated for the purpose of lending portions to those merchants in distress who could give security. This bill was objected to as ineffectual against failures, and as opening a way to the exercise of improper patronage by government, but it was carried, and the relief proved beneficial.

RENEWAL OF THE EAST INDIA COMPANY'S CHARTER.

It was generally supposed at this time that the charter of the East India Company, which was on the eve of expiration, would be abolished, and that the whole Indian trade would be thereby thrown open to British enterprise. The public expectation however, was doomed to be disappointed. On the 23rd of April Mr. Dundas brought the question before the house, in consequence of a petition from the company, and after taking a view of the prosperous state of India under the present system, he brought in a bill for the renewal of the charter for twenty years, which passed without a division. At the same time Dundas proposed certain regulations, tending to promote a free trade, but not interfering with the company's charter.

RELIEF OF THE ROMAN CATHOLICS OF SCOTLAND, ETC.

In the course of this session a bill was passed for the relief of the Roman Catholics of Scotland from certain penalties and disabilities imposed upon them by acts which incapacitated them from holding or transmitting landed property. Towards the close of the session, at the suggestion of Sir John Sinclair, a board of agriculture was established, and £3000 per annum were voted for the encouragement of that science.

TRIAL OF WARREN HASTINGS.

The trial of Warren Hastings was resumed on the 15th of February, and during the session the court sat twenty-two days, in which time the counsel for the prisoner completed the defence set up by them on the last three articles; namely, those relating to the Begums, to presents, and to contracts. After this Hastings addressed the court, praying that their lordships would order the trial to continue to its final conclusion, but all further proceedings were adjourned till the next session.

DISCUSSION ON A MEMORIAL PRESENTED TO THE STATES-GENERAL.

During this session some violent debates took place on a memorial presented to the States-general, by the British and imperial ministers at the Hague, on the 5th of April. In this memorial their high mightinesses were called upon to prevent any of the French regicides from finding an asylum in their states in Europe, or in any of their

colonies. The language which was used was very strong; and Earl Stanhope moved that the British envoy, Lord Auckland, should not only be recalled, but impeached for putting his signature to such a paper. In the commons, also, Sheridan moved an address to his majesty, expressive of the displeasure of the house at the said memorial; and stating that the minister who presented it had departed from the principles on which the house had concurred in the measures for the support of the war. In the course of his speech, Sheridan held up to detestation the conduct of the Empress of Russia, the Emperor of Germany, and the King of Prussia, in the new partition of Poland, which they had just completed. Sheridan said, that no robbery committed by the most desperate of the French, and no crimes that had been perpetrated in France, exceeded in infamy the injustice and tyranny of those sovereigns. Sheridan's motion was negatived by two hundred and eleven, against thirty-six. In the upper house Lord Grenville made a motion for approving the conduct of Lord Auckland, which was carried without a division.

FOX'S MOTION FOR PEACE.

Burke remarks:—"After it had been generally supposed that all public business was over for the session, and that Mr. Fox had exhausted all the modes of pressing his French scheme, he thought proper to take a step beyond every expectation, and which demonstrated his wonderful eagerness and perseverance in his cause, as well as the nature and true character of the cause itself." This step was taken by Mr. Fox immediately after giving his assent to the grant of supply, voted to him by Mr. Sergeant Adair and a committee of gentlemen, who assumed to themselves to act in the name of the public. In the instrument of his acceptance of this grant, Mr. Fox took occasion to assure them that he would always persevere in the same conduct which had procured to him so honourable a mark of the public approbation. He was as good as his word. On Monday, the 17th of June, Fox, in accordance with his resolution, moved an address to the throne, importing that, having obtained the only avowed object of the war—the evacuation of Holland by the French—peace ought to be concluded. In support of his motion Fox declaimed, in an impassioned manner, against the partitioners of Poland, and against all the powers in alliance with England. In the debate on this motion, Windham observed, that it was an avowed purpose of the war to endeavour to bring about the establishment of a government in France with which we could safely treat; and that, therefore, the war must be prosecuted till we could make peace with safety. Burke said that the motion involved this serious question—whether we should make war with all Europe in order to make peace with France. He continued:—"And with whom can we now treat in France? M. Lebrun, with whom we were so lately called on to treat, is in gaol. Clavière, another minister, is nowhere to be found. Or shall we treat with M. Egalité, who is now in the dungeons of Marseilles? And what are the principles upon which this negociation is to be carried on? Brissot himself has told us what the French think on this subject. In the report of a committee, upon the subject of a treaty with Geneva, he has affirmed that treaties are useless and cannot bind the people, who are to be united by principles alone, and that, therefore, to make treaties with any other sovereign power, is disgraceful to a free people." Pitt added to the string of questions which Burke had put, by asking Fox, whether he would enter into negociations with Marat;

that monster and his party being now lords of the ascendant, and the arbiters and rulers of France. He added,—“But it is not merely to the character of Marat, with whom we would now have to treat, that I object; it is not to the horror of those crimes which have stained their legislators—crimes in every stage rising above another in enormity—but I object to the consequences of that character, and to the effect of those crimes. They are such as to render a negociation useless, and must entirely deprive of stability any peace which could be concluded in such circumstances. Where is our security for the performance of a treaty, where we have neither the good faith of a nation, nor the responsibility of a monarch? The moment that the mob of Parrs comes under the influence of a new leader, mature deliberations are reversed, the most solemn engagements are retracted, or free will is altogether controlled by force. In every one of their stages of repeated revolutions, we have said, ‘Now we have seen the worst, the measure of iniquity is complete, we shall no longer be shocked by added crimes and increasing enormities.’ The next mail gave us reason to reproach ourselves with our credulity, and by presenting us with fresh crimes, and enormities still more dreadful, excited impressions of new astonishment and accumulated horror. All the crimes which disgrace history have occured in one country, in a space so short, and with circumstances so aggravated, as to outrun thought and exceed imagination.” Fox replied; but his motion was lost by one hundred and eighty-seven against forty-seven.

MR. GREY’S MEASURE OF PARLIAMENTARY REFORM.

During this session Mr. Grey brought forward a motion for parliamentary reform. He observed, in reply to the objection, that this was not the proper time for reform, that it would be equally rational in times of prosperity and adversity, in times of peace and war. He remarked:—“Whatever evils did, or might threaten the nation, there was no preventive so certain, no safeguard so powerful, as an uninterrupted house of commons, emanating fairly and freely from the people. To the want of this we owed the American war, and the vast accumulation of national debt; and if this had been done last year, it would probably have saved us from our present distresses. No set of Britons, unless bereft of their senses, could, after recent events, propose the French revolution as a model for our imitation. But were such principles even likely to threaten danger, the surest way of preventing it was to promote the happiness and comfort of the people, to gratify their reasonable wishes, and to grant that reform which was so earnestly desired.” Grey’s arguments were enforced by Fox, Whitbread, and others; and opposed by Pitt, Jenkinson, and Powys. Pitt explained his former motives for being friendly to a parliamentary reform, and his objections against it at the present moment. Many petitions had been presented in favour of reform; and Pitt said, that if the principle of individual suffrage, pointed at in some of these petitions, was to be carried out, the peerage would be extinguished, the king deposed, every hereditary distinction and every privileged order swept away, and there would be established that system of equalizing anarchy announced in the code of French legislation, and attested in the blood of the massacres at Paris. Fox attacked Pitt on the score of inconsistency. He observed, that as Lord Foppington said in the play, “I begin to think that when I was a commoner, I was a very nauseous fellow; so Pitt began to think, that when he was a reformer, he must have been a very

foolish fellow." Fox called the objection to the time for reform a fallacy; a mere pretext for putting off what the house knew was necessary, but felt unwilling to grant. The debate lasted two days; when the motion for referring the petitions to a committee were negatived by two hundred and eighty two, against forty-one.

{GEORGE III. 1793–1794}

PROROGATION OF PARLIAMENT.

The king prorogued parliament on the 21st of June. In his speech his majesty noticed the rapid and signal successes which, in an early period of the campaign, had attended the operations of the combined armies; the respectable force which he had been enabled to employ by sea and land, and the measures which he had concerted with the other powers for the effectual prosecution of the war. From all this his majesty augured a happy issue to the important contest in which we were engaged.

AFFAIRS OF IRELAND.

During this year an important concession was made to the Roman Catholics of Ireland. Many events led to this measure. On the failure of Pitt's attempt, in 1785, to reconcile the commercial interests of the two countries, resolutions were made in Ireland to abstain from the importation of English manufactures, and efforts were made by the populace to enforce these resolutions on all who disapproved of them. The tumults and alarms which followed these proceedings, gave rise, in the session of 1786, for an act, establishing a police in the city of Dublin, which, as the inhabitants were taxed for the support of the officers appointed by the crown, gave great offence. In the south, also, there existed serious disturbances. Men, called "Right Boys" banded together in order to defraud the Protestant clergy of their incomes. For this purpose the farmers entered into a combination, under the sanction of an oath, neither to compound for tithes, nor to assist any clergyman drawing them. This insurrection commenced in Kerry and the combination soon extended to Cork and other neighbouring counties, where the insurgents marched in large bodies, administering their oath in the name of Captain Right, giving out their laws, and punishing those who broke their faith. In these proceedings they were secretly encouraged by many gentlemen of landed property, who hoped from their violence that their estates might be exonerated from tithes; but when the insurgents proceeded to limit the rents of land, to increase the price of labour, and to oppose the collection of hearth-money, then an outcry was raised by these landlords against their designs, and an act was passed in 1787 for preventing tumultuous and illegal assemblies. Upon inquiry it was discovered that the clergy instead of receiving one-tenth scarcely received one-twentieth of the produce, and that the insurrection was owing to the avarice of the landlords, who charged the peasantry six pounds an acre for their land, and yet made them work for fivepence per day. It was also found that some landlords had excited their tenants to rob the clergy, for the purpose of adding the value of the tithes to their rack-rents, and that the magistrates had in several instances connived at the outrages. These troubles passed over, but the same spirit of disaffection towards the government still existed in Ireland. And this,

perhaps, was increased by the contests which took place in the Irish parliament between the patriotic band, headed by Mr. Grattan, and those who adhered to government. It has been seen that at the time the regency bill was discussed in the British parliament, the Irish were in favour of the Prince of Wales. An address to him was carried by a large majority in the Irish parliament, and when the lord-lieutenant refused to forward it, commissioners were deputed to present it, as before narrated. Encouraged by his success in the matter of the address Mr. Grattan proposed several bills of a popular description, which were carried. But this patriotic bias did not long continue. When his majesty recovered, then many who had voted against government changed their sentiments, and again supported it. The very men who had voted for the introduction of the popular bills proposed by Grattan, on the committal of them gave their votes against them, and they were rejected. Hitherto the professed principles of the Marquess of Buckingham’s government had been strict economy, but when this struggle terminated every source of influence was thrown open in order to prevent future opposition to its measures. This system of corrupt influence was continued after the Earl of Westmoreland was appointed lord-lieutenant, in 1730, notwithstanding strenuous opposition had been made to it by the patriotic party. In order to render their opposition more systematic and strong, this party formed themselves into a Whig club, similar to that in London, and at their meeting arranged plans of parliamentary tactics, assigning to each member his particular post. The declared objects for which this association was pledged were bills for the limitations of places and pensions; for excluding certain descriptions of placemen, &c., from parliament; to disqualify revenue-officers from voting; to repeal the Dublin Police Bill; and to secure the responsibility of public officers in regard to payments from the treasury. But the efforts of the patriotic party were vain. When they banded together for these purposes they were unable to oppose government effectually, and when a new election took place in 1791, they rather lost strength than otherwise. Such was the state of affairs in Ireland when the French revolution took place. This event was looked upon by the mass of the Irish with strong sensations of joy. Ever disposed to revolt, they looked upon it as the harbinger of their own liberty. Meetings were held to celebrate its anniversary in different places, and also for the discussion of politics. The chief topics at these meetings were parliamentary reform and Catholic emancipation, in favour of which strong resolutions were entered into with a view of intimidating government to concede them. In Dublin a society was formed, under the title of “United Irishmen,” and which declared itself to be “a union of Irishmen of every religious persuasion, in order to obtain a complete reform of the legislature, founded on the principles of civil, political, and religious liberty.” Against this and similar associations government issued a proclamation, interdicting all seditious assemblies, and commanding the magistrates, if necessary, to disperse them by military force. Still the society of United Irishmen resolved to persevere. It issued a counter proclamation, exhorting the volunteer companies which had been formed in Dublin to take up arms for the maintenance of public tranquillity against domestic and foreign foes, and recommending the Protestants to unite cordially with the Papists for the purpose of obtaining universal emancipation and a representative legislature. This agitation led government, in the session of 1792, to grant some new indulgences to the Papists, but these by no means satisfied them. They still

persevered in seeking a redress of grievances, and in order to lay before government the sentiments of the collective body of Catholics, a secret committee for managing the political concerns of the Irish Catholics, which had long subsisted in Dublin, fixed on the plan of a convention of delegates from the several towns and counties, to be elected by persons deputed, two from each parish. At the same time this committee thought proper to disavow all dangerous tenets respecting the excommunication of princes, the persecution of heretics, the violation of oaths, the infallibility of the pope, &c., and to renounce all claims to forfeited estates, and all designs of subverting the present establishment. The convention met in December, 1792, and after various displays of eloquence, voted a petition to the king, stating the grievances, patience, and long-tried loyalty of his Catholic subjects, and dwelling particularly on the deprivation of the elective franchise. This petition was presented by deputation, and received graciously by his majesty, who, when the Irish parliament met on the 10th of January, 1793, pressed on its attention such measures as might be most likely to strengthen and cement a general union of sentiment among all classes and descriptions of his Catholic subjects, in support of the established constitution. In consequence of this recommendation Mr. Secretary Hobart brought the bill of relief into the house of commons; the chief enacting clause of which enabled the Catholics to exercise and enjoy all civil and military offices, and places of trust or profit under the crown, under certain restrictions. This privilege was not to extend so far as to enable any Roman Catholic to sit or vote in either house of parliament, or to fill the office of lord-lieutenant or lord chancellor, or judge in either of the three courts of record or admiralty, or keeper of the privy-seal, secretary of state, lieutenant or _custos rotulorum_ of counties, or privy-counsellor, or master in chancery, or a general on the staff, or sheriff of any county, &c. This bill passed with few dissentient voices, and though it fell short of complete emancipation, it was supposed to contain all that the executive government, could, at this time, without too violent an exertion, effect; upon which account it was received with gratitude. As a further concession to Ireland, a libel bill, similar to that of England, was passed; the power of the crown to grant pensions on the Irish establishment was limited to the sum of £80,000; and certain descriptions of placemen and pensioners were excluded from the privilege of sitting in the house of commons. His majesty also declared his acceptance of a limited sum, fixed at £225,000 for the expenses of his civil list, in lieu of the hereditary revenues of the crown. Having thus conciliated opposition, government carried several bills for the safety of the country. Among these were the alien and traitorous correspondence bills, analogous to those of England; a bill to prevent arms and ammunition from being imported, or kept without license; and another “to prevent the election or appointment of assemblies,” purporting to represent the people or any number of the people, under pretence of preparing or presenting petitions, &c., to the king or either house of parliament, for alteration of matters established by law, or redress of alleged grievances in church or state. As a further measure for securing the safety of the country, a bill was passed for raising a body of militia by ballot, to serve the period of four years. This measure, how-over, gave rise to discontent and outrage. As each person, on whom the lot fell, was obliged to serve unless he could procure a substitute or pay a large fine, it was considered a heavy grievance. To alleviate the burden, subscriptions for raising recruits were adopted, and insurance

offices established to indemnify individuals on the payment of a stated sum. It was not, however, without great difficulty that recruits could be raised; the peasantry imagining, that, as was the case in the American war, if they joined the militia, they should be sent out of the kingdom. This caused discontents and riots, which cost the lives of many persons. But apart from this, there were other causes which produced disturbances in this unhappy country. About the year 1784, a set of insurgents, called “Defenders,” succeeded the White Boys. These arose from a quarrel between some Catholics and Protestants, in the county of Armagh, the former of whom, being possessed of arms, overcame their opponents. Enraged at this defeat the Protestants began to take arms from the Catholics; styling themselves “Peep-of-day Boys,” from their breaking into the houses of their opponents at break of day. On the contrary, those who strove to prevent them called themselves “Defenders;” but these, in 1789, seem to have been regularly organised, prepared for assault as well as defence, and, becoming private aggressors, committed some atrocious murders. Their outrages attracted the notice of parliament, and a secret committee of the lords in this session was appointed to make a report of their proceedings and also of the “United Irishmen.” At the time when this committee made their report, they had extended their associations through several counties, which associations assembled by night to learn the use of arms, and also for the purpose of plundering houses and murdering the protestants, and especially the established clergy. In many parts of the country, indeed, gentlemen were obliged to quit their houses, or to place soldiers therein for defence. It was hoped that the Catholic Relief Bill would have the effect of conciliating the marauders, but it failed to produce this effect. The principle of contention, in fact, still remained in full force. By this bill the Catholics were vested with the elective franchise; and now the question between them and the Protestants was, whether they should form a part of the government. They had gained much, but they wanted more, and so the system of agitation and outrage was still continued.

PROSPECTS OF THE FRENCH REPUBLIC, &c.

At the commencement of this campaign, France had to combat 55,000 Austro-Sardinians from the Alps; 50,000 Spaniards from the Pyrenees; 66,000 Austrians, reinforced by 38,000 Anglo-Batavians, on the Lower Rhine and in Belgium; 33,000 Austrians, between the Meuse and the Moselle; and 112,000 Russians, Austrians, Prussians, and Imperialists, of the Middle and Upper Rhine. Against these formidable enemies the convention ordered a levy of 300,000 troops, and at the same time established a committee of public safety, with dictatorial power over persons and property. Meanwhile Dumouriez was occupied with an ambitious plan of reaction. Instead of remaining neutral between the contending factions composing the national convention, as was the duty of a general, he proposed to establish the constitutional monarchy of 1791. But first he intended to deliver Belgium from the rule of the Jacobins, to secure Holland by aid of the Batavian republicans, and to unite those two countries into a single state. With this end in view, Durnouriez moved from Antwerp and attacked the Dutch towns of Breda, Kiundert, and Gerbruydenberg, all which capitulated, after little more than a show of resistance from the garrisons. His plan was to penetrate into the heart of the United Provinces; but he was brought to a pause at the fortress of Williamstadt, That fort was occupied

by the Dutch general Botzlarr, with some Dutch troops, who held no Jacobin principles, and by a strong detachment of English guards, who made an obstinate resistance; and while the French troops were still engaged in the siege of this fortress, intelligence arrived from the eastern frontier of the Netherlands, which materially changed the aspect of the war. Durnouriez had sent General Miranda, his second in command, to reduce the important town of Maestrecht, on the Maes or Meuse. On the 1st of March General Clairfait having suddenly passed the Roer in the night, attacked the French posts on that side, and compelled them to retreat, with the loss of 2,000 men; and this was followed by two successive victories over the French, on the 2nd and 8th of March; the one gained by the Archduke Albert, brother to the Emperor of Germany, and the other by the Prince of Saxe-Cobourg, who obtained a singular advantage over the main body of the French, in front of Aix-la-Chapelle, driving them from thence with the loss of 5,000 men, and twenty pieces of cannon. On hearing of these events, General Miranda gave orders for retreating to Tongres, whence the French armies were again compelled to fall back to Saint Tron. At Saint Tron Miranda was joined by General Valence, who had evacuated Liege and its territory, and they then moved towards Tirlemont, where Durnouriez soon after arrived to take the command in person, leaving the conduct of affairs on the northern frontier to General de Fluers. Dumouriez was attacked by the Prince of Saxe-Cobourg, at Tirlemont, with great spirit; but he kept his ground, and obliged the Austrians to fall back upon Neerwinden. This was on the 16th of March, and two days after Durnouriez moved to attack the Prince, but received a signal defeat; 4,000 killed and wounded remained on the field of battle, and ten thousand deserted, and scarcely paused in their flight until they reached the other side of the French frontier. Durnouriez attributed the origin of all his misfortunes to the Jacobin Club of Paris, and to the Mountain, which at this time was preparing to crush the Gironde. Half-crazed, he retreated towards Louvaine and Brussels, and in his route he was met by Danton and Lacroix, who came as commissioners from the convention to draw up a report on his conduct, both civil and military. He was devoted to destruction by the Jacobins, if they could get hold of him, for he had long ago offended Marat and Camus, two of the prime leaders of that fraternity. Dumouriez knew this, and the commissioners had scarcely left him, when he sent an officer of his staff to the head-quarters of the Prince of Saxe-Cobourg, to make some arrangements relative to the wounded and prisoners. This officer was referred to General Mack, who was considered to be a consummate politician, and it was agreed that Mack and Durnouriez should meet and confer together. When they met it was agreed that the Imperialists should not again attack the French army in force; that Durnouriez should be allowed to retire to Brussels; and that after the French should have evacuated Brussels the two generals should have another interview. All this was done, and at the future meeting, which took place at Ath, Durnouriez, knowing that there was nothing for him but a counter-revolution, or death, or flight, agreed with Mack to co-operate with the Imperialists against the Republicans; to give up to them the whole of Belgium; to march with his own army to Paris; and to call in the aid of the Austrians, if he should not prove strong enough to disperse the Jacobin rulers of France, and dictate the law at Paris. It is supposed that Dumouriez intended setting the Duke of Chartres on the throne of France, and that the Duke of Saxe-Cobourg

assented to his project, hoping that if a counter-revolution could be effected, the young dauphin might be liberated from the Temple, and the regular line of the monarchy restored in him. The project seemed the more practicable, because the Prussians were preparing to invade France from the Moselle; the Spaniards, against whom the convention had declared war, were descending through the passes of the Pyrenees; an English army was collected in Holland to co-operate with the Duke of Saxe-Cobourg; and the royalists in the Vendee had gained several victories over the troops of the republican government. Dumouriez evacuated all the places he held in the Netherlands, and slowly retired towards the French frontier. In his route he met a great number of persons who were flying from Paris to escape the guillotine, many of whom encouraged him to persevere in the enterprise. The designs of Dumouriez, however, did not pass unsuspected at Paris, and three commissioners, friends of his mortal foe, Marat, were dispatched to watch his movements, under the pretence of conferring with him concerning the affairs of Belgium. In an interview with these commissioners, Dumouriez expressed himself with great violence against the Jacobins, and denounced the republican constitution as too silly a thing to last. “Ever since the battle of Jemappe,” he observed “I have regretted every advantage I have gained in the field for so bad a cause.” Growing warm in conversation, he likewise remarked:—“The convention is composed of two hundred brigands and five hundred fools. As long as I have three inches of steel at my side, I will never suffer it to reign or to shed blood by means of the revolutionary tribunals they have just established.” All Dumouriez said was carefully treasured up in the minds of these commissioners, and, on their return, reported to the Jacobins. In the mean time, Dumouriez attempted to gain possession of the three important frontier fortresses of Lille, Condé, and Valenciennes. Some secret communication with friends was opened by him in these fortresses, but the convention had sent commissioners to each of them, and both the populace and the troops were declared republicans, so that his designs were frustrated. Thus unsuccessful, Dumouriez removed his head-quarters to the baths of Saint Arnaud. Meanwhile the convention had summoned him to their bar, and imagining that he would not come without compulsion, had despatched four of their members to bring him and win over his army. The commissioners transmitted their orders to Dumouriez, while they remained at Lille; and finding that he did not obey them, they resolved to proceed to the camp. Dumouriez received the commissioners at the head of his staff, but refused to quit his troops; at the same time he promised, at a calmer time, he would demand an investigation of his conduct, and give an explanation both of his actions and designs. In order to gain their point, the commissioners replied that no harm was meant to his person, and alleging the example of the ancient Roman generals, they contended that it was his duty to submit to the republic. To this Dumouriez rejoined, “Gentlemen, we are constantly committing mistakes in our quotations from the classics; we parody and disfigure Roman history in citing their virtues to excuse our crimes. The Romans did not kill Tarquin: the Romans had a well-regulated republic and good laws; and they had neither a Jacobin Club nor a revolutionary tribunal. We are plunged in anarchy; we are wading in blood.” “Citizen general,” said Camus, one of the commissioners, “will you obey the decree of the National Convention or not?” “Not exactly at this moment,” replied Dumouriez. “Well then,” continued Camus, “I declare, in the name

of the convention, that you are no longer general of this army, and I order that your papers be seized, and that you be arrested," "This is very strong," replied Dumouriez, and calling for his German hussars, he ordered them to seize the commissioners, and to convey them to General Clairfait's head-quarters at Tournay, as hostages for the safety of the royal family of France. During that night Dumouriez drew up a proclamation to his army and to all France, in which he called upon all true Frenchmen to rise and rally round him and the monarchical constitution of 1791. His troops were informed of all that had happened on the following morning, and the measure was enthusiastically approved by those of the line and the artillery. Dumouriez, however, had enemies in his camp. He had an appointment with Colonel Mack, the Archduke Charles, and the Prince of Saxe-Cobourg on the 4th of April, in order to regulate future operations; and at an early hour on the morning of that day he set off with his staff; but he and his party had scarcely got upon the road which led to Condé, when they met two battalions of volunteers who were marching without order, and apparently without instructions. The design of these volunteers was to arrest Dumouriez and his party; and on discovering this they quitted the high-road and struck across the country, towards the Austrian lines, for protection. They reached Rury in the evening, where they were soon after joined by Saxe-Cobourg and Mack, who, with Dumouriez, passed the night in preparing a proclamation to be issued in the name of the Austrians, and in further explaining and settling the treaty between the French army and that of the emperor. But Dumourez was doomed to be disappointed. He still imagined that his regular troops were faithful to his person, and on the morrow he resolved to throw himself among them. His army, however, was now no more. Instigated by some emissaries from Valenciennes, who told them that Dumouriez was either killed or drowned, the artillery had risen upon their officers in the night, and had marched, with all their guns, baggage, and ammunition, for Valenciennes, whither they were soon followed by the troops of the line. When, therefore, Dumouriez returned in the morning to Saint Arnaud, his army was no more; and he with the Duke of Chartres, the Duke of Montpensier, Colonel Thouvenot, and the rest of his numerous staff', joined the Austrians. They were followed by the entire regiment of Berchingy, 1,500 strong, and some fragments of some French regiments, and the sons of Orleans. The rest of his army joined the camp at Famars, under Dampierre, who was now invested with the chief command. On the following day, Dumouriez issued a proclamation, which contained a recapitulation of his services to the French republic, and an animated picture of the outrages of the Jacobins and of the mischiefs to be apprehended from a continuation of anarchy in France; concluding with an exhortation to the French to restore the constitution of 1791, and a declaration on oath that he bore arms only for that purpose. This proclamation was accompanied by a manifesto on the part of Saxe Cobourg, now commander-in-chief of the armies of Austria, announcing that the allied powers were no longer to be considered as principals, but merely as auxiliaries of France; that they had no other object than to co-operate with the general in giving to France her constitutional king, and the constitution she formed for herself. These proceedings were no sooner known at Paris than the convention declared its sittings permanent, denounced Dumouriez as a traitor, and fixed a price on his head; banished all the Bourbons, and established that "committee of public safety," which

was destined to complete the crimes and destroy the chief authors of the revolution.

This defection of Dumouriez gave great advantage to the Jacobins. They exclaimed that he was leagued with the Girondists, and that all were loyalists and traitors. Robespierre attacked many of them by name in the convention, and Marat denounced them in the popular assemblies. The committee of public safety, to which the plots of their enemies gave rise, seemed to promise advantage to the Girondists; but it served only to excite their adversaries more violently against them. The struggle between these contending parties at length approached a crisis. At this time Lyons, Orleans, Bordeaux, Marseilles, and La Vendee, indignant against the anarchists, were all declaring themselves for the party of moderation and the Girondists. These were startling events to the Jacobins, and they prepared to strike a blow which should prostrate their antagonists. A plot had been devised for their destruction, but it was discovered, and the infamous Hébert, who was at the head of it, was thrown into prison. Tumults in the assembly and commotion in the city now became the order of the day; and at length, on the 25th of May, a furious multitude assembled at the hall of the convention, and loudly demanded the suppression of the committee of public safety and the liberation of Hébert. These proposals were resisted, but the Girondists could not long sustain the conflict with the Jacobins. On the 27th, the Sans-culotte bands of the anarchists appeared in a body at the door of the convention, bearing a general petition of the sections, and despite the expostulations of the assembly, they took their seats with the members, and, under the influence of terror, the commission of twelve was broken, and Hébert set at liberty. On the morrow, however, the convention boldly reversed this compulsory vote; at the same time seeking a compromise with the populace. But it was in vain that the Girondists sought to conciliate an enraged populace. On the 2nd of June, the mob, under the command of Henriot, surrounded the hall of the convention, and thirty of the leaders of the Girondists were arrested. The political career of the Girondists, indeed, was now over: henceforth they were known only as individuals by their courage in the midst of calamity and death. Many of them saved themselves by concealment, others by flight, while many fell by their own hands, or were cut off by the axe of the executioner. Twenty-one of them languished in long imprisonment, until a decree of accusation was issued against them, and the guillotine ended their sufferings.

With the Girondists, the last bulwark against the inbreaking tyranny fell. All the good lamented their fall, while the evil-disposed rejoiced. On their ruin the revolutionary government was formed. Robespierre, who directed all acts in the committee of public safety, became dictator, while his associates divided the departments among themselves, and the superintendence of the police was vested in a committee of general safety, possessed of formidable authority. One of the first results of this new order of things was a change in the divisions of the year, and the names of the months and of the days, which republican calendar soon led to the abolition of public worship. One of the prime leaders of this new movement was Marat, who did not long enjoy his triumph over the Girondists. He was assassinated by a young Norman girl, named Charlotte Corday, who fancied that by cutting him off she could destroy his party.

The tyranny displayed in the capital, and the appearance of some of the proscribed Girondist deputies, stirred up the spirit of war in the provinces. The people of Normandy at once declared against the anarchists, and raised an army which, under General Wimpfen, pushed forward to Evreux, within a day's journey of Paris. The victorious insurgents of La Vendee also marched upon Nantes, in order to procure themselves a stronghold and a sea-port. Moreover, Bordeaux, indignant at the arrest of the deputies, despatched a remonstrance to Paris, and began to levy an army to second it; and Toulouse, Lyons, and Marseilles all arrayed themselves against the Jacobins. Their fall seemed inevitable, and they themselves anticipated such a consummation. Rendered desperate, thereby, they prepared to ward off the blow. In a brief period the republicans had on foot fourteen armies, consisting in the whole of 1,200,000 soldiers and the whole of the hostile provinces cowered before their arms.

In the meantime several engagements had taken place between the republican forces of France and those of the allied powers. After succeeding to the command, General Dampierre threw himself into the fortified camp of Famars, which covered Valenciennes, He made some attempts to cover Condé also, but that important fortress was securely invested by a part of the Austrian army; and the Duke of York soon after arriving with some English troops, it was resolved to make a vigorous attack along all that part of the French frontier, and to reduce Valenciennes, Condé, and Lisle. The supreme command of the armies, which consisted of. Austrians, Prussians, English, and Dutch, was held by General Clairfait. Against these Dampierre issued from his camp at Famars, on the eighth of April, but his best troops were beaten at all points, and he himself received a mortal wound. After this defeat the republicans fell into a lamentable state of discouragement and disorganization; General Lamarche, who had succeeded to the command, being a man of neither skill nor energy. Had the allied powers pushed forward, they might have carried the fortified camp of Famars without any difficulty; but they allowed a whole fortnight to elapse before they made the attempt; and then, reinforcements having been received, it was not carried before many lives were lost on both sides, and after all Lamarche was allowed to retire and occupy another fortified camp between Valenciennes and Bouehain. The allied armies now laid siege to Valenciennes, and it was in vain that General Custine, who had arrived to take the command of the French army, sought to relieve the place; it was captured towards the end of July, and the Duke of York took possession of it in the name of the Emperor of Germany. About the same time the garrison of Condé yielded themselves prisoners of war, and Mayence submitted to the Prussian arms. A few days later the French were driven from a strong position near the Scheldt, called Caesar's Camp.

At this point the success of the allied armies during this campaign closed. Jealousies and dissensions had long existed in their camp; and after the French were driven from their position behind the Scheldt, a grand council of war was held, wherein it was determined that the British, Hanoverians, Dutch, and Hessians should form a distinct army, not dependent upon the co-operation of the Austrians. This was the origin of sad disasters; had they held together, and had they acted vigorously against the enemy's masses, which were weakened and depressed by defeat, it is probable that the object of the war would have been gained. The Prince of

Saxe-Coburg and General Clairfait strongly opposed the fatal step; but the British army, conducted by the Duke of York, decamped, and moved towards Dunkirk, while the Imperialists sat down before Quesnoy. The Austrians were successful in their enterprise: after fifteen days the garrison of Quesnoy capitulated. A different fate awaited the British army. The Duke of York arrived in the vicinity of Menin on the 18th of August, where several severe contests took place, and the post of Lincelles, lost by the Dutch, was recovered by a gallant charge of the English guards, led on by General Sir John Lake. His royal highness now laid siege to Dunkirk, where he was attacked by Houchard and Jourdan, and from whence, after losing a great number of his forces, he was compelled to make a precipitate retreat. This victory excited great joy at Paris, and changed the aspect of the war from the German Ocean to the Mediterranean Sea. Relieved from the immediate danger of invasion, the convention had now time to mature its plans of conquest, and to organise its numerous troops. Houchard, however, did not follow up his success as a skilful general would have done. He neglected to concentrate his forces and to attack the English, and after a series of actions against detached corps and gaining a victory over the Dutch, he was defeated at Courtray by General Beaulieu, and driven behind the Lys. His army sought shelter under the cannon of Lisle, but he was exposed to the fury of the convention; he was accused by his own officers, brought before the revolutionary tribunal, condemned, and executed.

By this time the French had formed an overwhelming force on the Belgian frontier. Had they made a series of single concentrated attacks on the divided forces of the allies, they could scarcely have failed of crushing them in detail. Instead of acting thus, however, a scattered enemy was attacked by separate corps, and there was fighting from Dunkirk to Maubeuge, and from Maubeuge to Luxembourg.

After the retreat of the Duke of York, the French attacked every post on that long frontier line, but were everywhere repulsed. They were more successful at Maubeuge. The Austrians, after the capture of Quesnoy, laid siege to this place, but the French under General Jourdan, attacked them in their trenches on the 15th of October, and after sustaining a great loss, forced them to raise the siege. Nothing more of importance was undertaken in Flanders, and both parties went into winter-quarters: the Austrians at Bavay, and the French at Guice. Jourdan was removed from the chief command, and it was conferred on Pichegru, who had all the talent, energy, and enterprise which the situation of the republicans demanded.

After the capture of Mayence, and after having gained some trifling advantages in skirmishes on the Rhine, the King of Prussia, impatient to secure his iniquitous acquisitions in Poland, travelled with all speed into that country. The command of his army was given to the Duke of Brunswick, who was to act in concert with a small Austrian army under Wnrihser. These two generals drove the French from several strong posts, and expelled them from their fortified lines at Weissumberg, and from the fortified camp and triple lines a Lauter. The Prussians then laid siege to Landau, while the Austrians invested Strasburg, the capital of the province of Alsace. The Austrians had been invited by the noblesse of Strasburg, and the convention in consequence despatched thither Saint Just and Lebas, who introduced the reign of

terror, not only into the town, but also into the whole of Alsace, except where the Austrians were located. General Oustine was sent to Paris to be beheaded, and Saint-Just called young Hoche from Dunkirk and gave him the command of that army, which was now reinforced by nearly the whole of the army of the Moselle. Wurmser was obliged to retreat, and Strasburg was left to the mercy of the two commissioners of the convention. General Hoche sought to get between Wurmser and the Duke of Brunswick, but he was repulsed and put to flight with the loss of three or four thousand men. The republican general then effected a junction with the French army of the Rhine, and with some troops collected by the commissioners in Alsace, and taking Wurmser by surprise, he defeated the Austrians, making many prisoners. On the 26th of December, aided by Desaix, Pichegru, and Michaud, General Hoche made an attack upon the lines of Weissemberg, and was on the point of driving the Austrians from thence, when he was checked by the Duke of Brunswick, who broke up the siege of Landau, in order to assist his allies. The Duke of Brunswick wished Wurmser, who, on the morrow, withdrew his army from the lines of Weissemberg, to remain on the left bank of the Rhine, until all his artillery and stores should be well advanced on the road towards Mayence; but the Austrian general would not consent to remain a single day, but crossed the Rhine, and left the duke to shift for himself. The duke conducted his army safely to Mayence, but he soon after resigned his command, with many bitter accusations against the Austrians. By the end of this year the French had not only recovered their old frontier lines in this direction, but had the whole of the Palatinate at their mercy. They soon appeared before Manheim, and Germany began to tremble for the safety of its own frontier.

The most energetic opponents with whom the republicans had to contend in this campaign were the Spaniards. Two armies were formed in Spain; one of 30,000 men to invade Rousillon; the other of 25,000, to penetrate France on the side of Bayonne. The former of these two armies, under Don Ricardos, gained several important victories, passed Perpignan, and interrupted the communication between Rousillon and Languedoc. Alarmed at the progress of this, formidable foe, the convention took energetic measures to reinforce their armies. Two divisions were ordered to advance against a corps of Spaniards under Don Juan Courten; and this being defeated, the republicans determined to assault the camp of the Spaniards at Truellas. The intrenchments were carried, and they were on the point of gaining a victory, when Don Ricardos arrived with his cavalry, and turned the fortune of the day: three French battalions laid down their arms, and 4,000 were slain. The French general Davoust, however, having been reinforced by 15,000 men, compelled Don Ricardos to act on the defensive, and to retire to a strongly intrenched camp near Boulon. But Ricardos still showed himself to be a formidable foe. Having received reinforcements in the beginning of December, he attacked and routed the republican army with a loss of 2,500 men, and this success was followed by the capture of Port Vendre and Collioure. Davoust’s army was so much discouraged that whole battalions disbanded and returned home, and the national guards deserted their colours. The general announced to the convention that he was left with only 8,000 men; but Don Ricardos, ignorant of his opponent’s condition, did not follow up his successes, and the arrival of reinforcements, sent from Toulon in the beginning of the next month, rescued

France from peril in this quarter. The other force of the Spaniards, under Don Ventura Caro, crossed the Bidassoa, and on the 1st of May drove the republicans from one of their intrenched camps, taking fifteen pieces of cannon; and on the 6th of June, after storming another camp and taking all its cannon and ammunition, forced the French troops into Saint Pied de Port. Having fortified some posts in the country, they repulsed a vigorous attack made by the Republican forces, and so crippled them that no movement of consequence could be undertaken during the rest of the campaign.

On the side of the Alps, the King of Sardinia, having received some money from England, commenced the campaign with considerable vigour. He was reinforced by some fresh Austrian regiments, under the command of General Devins, and having collected the mass of their forces on the maritime Alps, they resolved to make a descent into the country of Nice, in order to wrest it from the French republicans, it being wholly in their hands. Before they descended, fortified camps were to be made, and sundry fortresses improved or reconstructed, to render it impossible, even in case of a reverse, that the French should force the passes of the mountain, and get into Piedmont on that side. Kellerman held the command in chief of the French army of the Alps, and towards the end of May he ordered Brunet, who commanded in Nice, to push forward to the crests of the maritime Alps, and dislodge the Piedmontese and Austrians, before they should have time to complete their fortifications. Brunet divided his army into four columns, giving them instructions to attack three of the more important points at once, and then to unite and fall upon Fort Raus, which was the strongest of all, and the key to all the country behind. The French columns ascended the steep heights on the 8th of June, and the Piedmontese were driven from every position except Fort Hans; but when they had ascended that loftier mountain, they were repulsed and, finally, driven down the mountain with great loss. The attack was renewed on the 12th; but they were again repulsed from Fort Rtaus, and driven down the mountain, with a loss more dreadful than the first. The French, disheartened by these reverses, were obliged to confine themselves to the low country of Nice, and fearing the descent of the enemy, Kellerman placed strong detachments in the gorges through which they must have descended, and caused trenches to be dug and redoubts raised to impede their progress. But the King of Sardinia did not adhere to his purpose. General Devins was of opinion that while a part of the army should be left on the maritime Alps to keep the French forces in check, the greater part of the army, composed of the Austrians and of the best Piedmontese and Sardinian troops, should march through Savoy, drive the French out of that country, chastise the Savoyard Jacobins, and thence march straight on the populous city of Lyons. The King of Sardinia finally resolved to unite this plan with his own, and to pursue them both at the same time. His son, the Duke of Montferrat, was sent to drive the republicans out of Savoy and the Tarantaise; and though the duke took the field several weeks too late, he drove the French before him, took possession of the Tarantaise, and became master of the whole of Upper Savoy and of a great part of the low country. Instead of advancing rapidly upon Lyons, however, the Duke halted at Aigur Belle; and Kellerman, hearing of his successes, rushed from his camp at Tornns with reinforcements for the French camp at Conflans, and being joined by

other republicans from Annecy and the country round Geneva, the Duke of Montferrat was obliged to retrace his steps, and to abandon everything he had gained on the eastern side of the Alps. The King of Sardinia had remained on the maritime Alps, and, like his son, began operations by driving the republicans before him. Descending from the crests of his mountain station, he made himself master of all the advanced posts and works of the French; but on the 18th of October he was repulsed with great loss at the bridge of Giletta, and then he retreated by the roads through which he had come, leaving Nice to the French, and depriving the English and Spaniards, with his other allies at Toulon, of any hope they might have entertained of future assistance from him.

Before war was declared against Great Britain, the French resolved to make use of their sovereignty over the Mediterranean sea. Admiral Truguet was sent with nineteen ships of the line and some frigates to make the conquest of Sardinia, chiefly, it would appear, for the purpose of obtaining corn from that exuberantly fertile island. It was imagined by the French that the Sardinians, who were an unruly and turbulent people, were ripe for revolt, and that, therefore, with their aid, they would throw off the yoke of monarchy. But if the Sardinians were turbulent they were not disaffected; and, moreover, they had a mortal aversion for all changes, all projects, all foreigners, and all interlopers. Truguet soon discovered their temper. He sailed into the bay of Cagliari on the 24th of January; and as soon as he had anchored his great ships in front of the town, he sent an officer and twenty soldiers to summon the place, and to represent the advantages which the islanders would derive from a union with the French republic. No sooner, however, had the boat got within the range of their guns, than the Sardinians opened a fire upon it, and killed the officer and fourteen of his men, and wounding nearly all the rest. Truguet, enraged at such a reception, commanded a bombardment on the town, which lasted three days without any visible effect on its walls; and having suffered great loss from the red-hot shot of the garrison, he was compelled to haul off, and come to anchor at the mouth of the Gulf. About the same time an attack was made with the same ill-success on La Madalena, a small island belonging to the Sardinians in the Straits of Bonifacio, by a small republican force from Corsica, among which was Napoleon Buonaparte, It was months after Truguet’s Sardinian adventure, when the English put to sea for the purpose of encountering the French fleet. On the 14th of July Lord Howe took the command of the channel-fleet; and though he kept cruizing till the 10th of December, and several times descried the French fleet, the services he rendered did not much exceed that of securing the safe arrival of our West-India convoys. The first encounter between two frigates of the hostile nations took place in the Channel; when the Nymph, of thirty-two guns, commanded by Captain Edward Pellew, captured the Cleopatra, of forty guns, commanded by one of the ablest officers in the French service. In the West Indies the French island of Tobago, St. Pierre, Miquelon, and Domingo were reduced; but at Martinique the English met with a repulse. In the East Indies all the small French factories were seized, and Pondicherry, which had been restored at the last peace, surrendered to General Brathwaite.

{GEORGE III. 1793–1794}

During the month of July Vice Admiral Lord Hood entered the Mediterranean with a small fleet, and presented himself before Toulon. Many old officers of the French navy were in this city, and they entered into a correspondence with Lord Hood suggesting the separate measures, of surrendering their fleet to him, and putting him in possession of the ports and forts. As a proof of their loyalty and sincerity, Hood called upon them to acknowledge Louis the Seventeenth, and upon that condition he promised the people of Toulon, together with those of Marseilles and other towns, all the support in his power. The sections met to deliberate upon this proposal; and notwithstanding the fierce opposition of the Jacobins, it was carried. Thus victorious, the majority put to death the president of the Jacobin club; persecuted and imprisoned many of their persecutors; and re-revolutionized everything. They committed themselves so deeply that they felt they had nothing to expect from the republicans but destruction; and as they were victorious at Marseilles, the counter-revolutionists concluded their treaty with Lord Hood; and thus the most important maritime place of the kingdom, with immense magazines, and with a fleet of seventeen ships of the line and five frigates, fell, without a stroke of the sword, into the hands of the English. Lord Hood, however, had scarcely put the port in order and taken possession of the town, before General Cartaux arrived with his victorious army from Marseilles, and cantoned himself in the surrounding villages and bastides. He was subsequently joined by volunteers and other corps; and Lord Hood, sensible that the most desperate efforts would be made to recover the place, and that his sailors and the French royalists would be unequal to its defence, applied in all directions for assistance. He was joined by the Spanish Admiral Langara, by some Neapolitan and Sardinian troops, and by other ships of the line and frigates from England, and subsequently by some troops from Gibraltar. Before active operations commenced General Cartaux was succeeded in the command of the republican forces by General Dugommier. But there was one in his army who was more skilful than Dugommier himself. This was Napoleon Buonaparte, who had served at Nice during the summer as a young officer of artillery, and in whom Dugommier placed the greatest confidence. Buonaparte was also in favour with the Jacobin commissioners of the convention; and though but a youth, he obtained the command of the whole besieging artillery. The executive at Paris sent a plan of attack to Dugommier, and the commander-in-chief assembled a council upon it. Dugommier thought the plan a good one, but Buonaparte suggested a better. He remarked: “All that you want is to force the English to evacuate Toulon. Instead of attacking them in the town, which must involve a long series of operations, try and establish batteries which shall sweep the harbour and the roadstead. If you can only drive away the ships, the troops will not remain.” Buonaparte contrived to conduct the works according to his own plan, and his genius decided the fate of Toulon. After a series of operations, Lord Hood was compelled to evacuate the town, and its wretched inhabitants were left to the mercy of their furious republican conquerors. Dugommier subsequently strongly recommended Buonaparte to the notice of the convention, remarking, “that, if neglected, he would assuredly force his own way up.” On this recommendation he was placed on the list for promotion, and confirmed in a provisional appointment of chef-de-battaillon in the army of Italy.

The capture of Toulon crushed all hope of resistance to the Jacobins in the south of France. Every danger to the republican government of Paris, indeed, arising from an ill-converted and ill-directed confederacy, had been warded off in all quarters. At the commencement of the contest the allies had the advantage both in numbers and discipline; but this advantage was no match for that spirit which the revolution had infused into their opponents. Moreover, their adherence to the old system of warfare, and the policy of merely keeping up their contingents, soon exposed them to dispersion or annihilation, as the overthrow of all pacific employments in France enabled the convention to send out armies in large masses wherever danger was discovered.

Revolutionized France, therefore, was left free to act and to conquer. And how fearfully the republicans acted, how cruelly they treated their vanquished foes, the pages of history unfolds. It has before been stated that in all the revolted provinces their arms during the year were finally victorious—wherever they conquered there followed vengeance. The most fearful scenes wore enacted in the Vendée. The inhabitants of this department, which is situated in the old province of Poitou, were terrified at the idea of liberty, which had never come before their understanding, and they repeated the execrations that priests and nobles threw out against the revolution and its leaders. From small beginnings a terrible storm arose: the insurrection which began in Lower Poitou extended the whole length of the Loire, both north and south of that river. In the space of one month there were forty thousand men under arms, and two months later, thrice that number threatened death to the republicans. In many bloody engagements the republican troops were defeated by them. During the battle-cry, “Vive Louis XVII! Vive Jesus Christ!” they rushed upon the soldiers of the republic, and in their native country appeared invincible. Alarmed at their valour and success, the convention, upon the proposal of Barrère, decreed the extermination of the Vendée within twenty-one days; and in order to carry this decree into execution they poured their troops from all sides into that doomed country. The decisive battle was won near Chollet: D Elbée and Beauchamp, two of their most noble leaders, fell, and then their soldiers, seized with terror, fled, and the republic celebrated the most bloody triumph. Humanity shudders at the atrocities which then ensued. The convention had proscribed the whole population of the Vendée, and its generals executed the dreadful proscription with tiger rage;—children, old men, and women were pitilessly massacred, and ruin marked the path of the victors. The bulk of the Vendee army had passed the Loire, where it was reinforced by many malcontents arriving from Bretagne, and after several victories intended to march upon Paris; whilst Charette with a small force occupied the most inaccessible parts of the Vendée, and conquered the islands of Boccin and Noirmoutier. But it was in vain that they struggled against the masses which the convention soon poured forth against them.

After changing results, the death-blow was given to them at Maus, in the month of December: 20,000 then fell in the field of battle, and, soon after, the remnant of their army was annihilated. Again vengeance fell upon the inhabitants of the Vendée: columns sur-named “Infernal” inarched through the country in all directions, destroying thousands of its inhabitants, and carrying thousands more as prisoners to

Nantes, where they were delivered over to the tiger-fangs of the monster Carrier. Doomed to death, they were there either crushed in bodies by the cannon's thunder, slain with the sword, or drowned by hundreds in the Loire. Similar atrocities filled Lyons, the ornament of the south of France; and Bordeaux and Marseilles suffered the like hard fate.

Nor was Paris, the seat of the revolution, free from scenes of slaughter. As it has been said of Rome, she did "fearful execution on herself." After the fall of the Girondists, their mortal foes, the Jacobins, proceeded to establish the most democratic constitution that ever existed. From that time the committee of public safety, now composed of decimvirs under the infamous, Robespierre, exercised all the powers of government, ruling the provinces, generals, and armies, with despotic sway, by means of its commissioners, and exercising, by the revolutionary tribunal, supreme authority over both property and life. Every section of the community was held in terror by this miscalled "committee of public safety." Even the representatives of the people, which thought itself called to liberate the world, and with them the whole people, trembled before these few tyrants, who, elevated from the dust by the power of accidents more than by that of genius, displayed a hideousness never yet beheld. "The whole people was in fearful excitement by anger, by fear, and love of liberty; and the terrorists, grasping at the terrible as the only means of salvation, manifested hereby the fever convulsions of the nation." The prisons in Paris were, during this year, filled with all that yet remained of dignity or virtue in the republic; while thousands upon thousands perished by the blood-stained guillotine. The "committee of public safety," consisting of Robespierre, Barrère, Billaud, Varennes, Callot d'Herbois, Carnott, Prieux, Lindet, Couthon, Saint Just, and Jean Bon Saint André, sat almost uninterruptedly, dealing destruction to all around. A law, to the application of which an unlimited extension was given, exposed even the suspicious to the mercy of this revolutionary tribunal. Every day new victims, both in Paris and in the provinces, were sent to the guillotine. Among the more afflicting tragic scenes of these fearful times was the execution of Marie Antoinette. She,—the once all-powerful queen of France, she,—the daughter of Maria Theresa, sister of three emperors, and aunt of one emperor still living,—after she had languished many months in prison, was finally dragged before the criminal tribunal, condemned, and carried in a cart to the place of execution. So perished the innocent Princess Elizabeth, the sister of the slain monarch; and so fell the criminal Duke of Orleans. But the terrorists murdered not only princes and royalists, but also acknowledged friends of the revolution. The "Mountain" party even turned its rage against itself: Chaumette, Hébert, and Anarcharsis Cloots, all fierce demagogues and heads of the common-council of Paris, were arrested by order of the "committee of public safety," and executed with sixteen of their partisans. Thus perished also their violent enemies the Cordeliers, among whom were Danton and Desmoulins; and thus fell several of the most successful generals of the republic. This unheard-of tyranny continued for eighteen months, during which space of time one million of persons perished, as is proved by detailed calculations, by the hand of the assassin and the executioner: others died of grief and misery. Many of these perished in the provinces, for the furious "Sansculottes" were commissioned to march through the bleeding kingdoms

carrying along with them a movable guillotine, beneath which thousands perished. And these made war, not only upon their species, but upon the arts and sciences, which they regarded as allies of the aristocracy. Scenes of folly alternated with those of rage and brutality: Vandalism obtained the possession of the beautiful country of France. The fine tone of society was superseded by the rudest manners; and even the better sort affected them that they might not be suspected of favouring aristocracy. As a climax to their folly and madness, the republicans even assailed religion. First, the republican calendar was substituted for the Christian calendar; then, the celebration of the Christian festivals was restricted; and, finally, the ordinary worship gave place to the so-named "service of reason," as the emblem of which prostitutes were placed upon the altar. Such was the liberty for which the French had contended—such the liberty for which some in England would even at the close of this year have obtained, at the price of the blessings which they enjoyed under a monarchical and free constitution.

"Scorn and contempt forbid me to proceed! But history, time's slavish scribe, will tell, How rapidly the zealots of the cause Disbanded—or in hostile ranks appeared; Some tired of honest service; these, outdone, Disgusted, therefore, or appalled by aims Of fiercer zealots—so confusion reigned, And the more faithful were compelled to exclaim As Brutus did to virtue— 'Liberty, worshipped thee, and find thee but a shade.' —Wordsworth."

CHAPTER XXI.

{GEORGE III. 1794–1795}

Meeting of Parliament..... The Militia augmented..... Suspension of the Habeas Corpus Act..... Agitation in England and Scotland..... introduction of Foreign Troops..... The Slave-trade Question..... Motion on behalf of La Fayette..... Motion of Inquiry into the recent Failures of our Armies..... The Trial of Warren Hastings..... The Prorogation of Parliament..... Ministerial Appointments..... Embassy to China, &e..... Corsica annexed to the Crown of England..... Lord Howe's Naval Victory..... British Conquests in the West Indies..... Disputes in America..... Military Operations on the Continent..... The internal Condition of France..... Convention with Sweden and Denmark..... The State of Poland..... Meeting of Parliament.

{A.D. 1794}

MEETING OF PARLIAMENT.

THE British parliament assembled on the 21st of January. In his opening speech, the king observed, that he and his subjects were engaged in a momentous contest, on the issue of which depended the maintenance of the constitution, laws, and religion of the country, and the security of all civil society. Having mentioned the advantages obtained by the confederated powers, he added, that the circumstances by which their progress had been impeded not only proved the necessity of vigour and

perseverance, but confirmed the expectation of ultimate success. Their enemies, he said, had derived the means of temporary exertion from a system which enabled them to dispose of the lives and property of the people; but these efforts, which were productive of internal discontent and confusion, would tend to exhaust the national and real strength of the country. His majesty regretted the necessity of continuing the war; but he thought that he should ill consult the interests of his people, if he desired peace on any grounds exclusive of a due provision for their permanent safety, and for the independence and security of Europe. An attack had been made on him and his allies, founded on principles tending to the destruction of all property, to the subversion of the laws and religion of every civilized nation, and to the general introduction of a horrible system of rapine, anarchy, and impiety. Amendments to the address were moved in both houses, but they were rejected by large majorities; in the lords, by ninety-seven against twelve, and in the commons, by two hundred and seventy-seven against fifty-nine. Fox, Sheridan, Lords Lansdowne and Lauderdale, and others, persevered in maintaining the inexpediency of war, as well as the improbability of success; they denied that France had been hostile to England; they foretold her career of conquests, and predicted disappointment to the nation, similar to that which had been experienced at the close of the American war; they repeated all their arguments in favour of peace: but it was all to no purpose; the majority in both houses were convinced that there could be no radical peace, except France was humbled. On every occasion, though sure of exhibiting their numerical weakness at every division, Fox and his friends attacked the war measures of government. On the vote for augmenting the navy to 85,000 men, they agreed with ministers, but when it was proposed to raise the regular army to 60,000, they renewed their opposition with all their vigour. At a subsequent date, the 17th of February, the Marquess of Lansdowne moved an address to “represent to his majesty the extreme improbability of conquering France; that the dismemberment of France, if attainable, would augment the strength of the powers most to be dreaded; that opinions cannot be controlled by arms; that experience has demonstrated the futility of every attempt to interfere in the internal government of France, even if the justice were problematical; and that we must incur the keenest reproaches, if we encouraged further revolts in a country where we had been unable to save those who put confidence in us from extermination and ruin—therefore to implore his majesty to declare, without delay, his disposition to make peace upon such just, disinterested, and liberal terms as were calculated to render the peace lasting, and that he would signify this intention to his allies, that a stop might be put to the effusion of human blood.” This motion was seconded by the Duke of Grafton, but it was negatived by one hundred and three against thirteen. Every effort of the opposition, indeed, to stem the tide of war proved fruitless. It was resolved to carry it on with vigour; and, to meet the extraordinary exertions, a loan of £11,000,000 was voted by parliament, and some new taxes granted.

THE MILITIA AUGMENTED, ETC.

On the 6th of March Pitt moved for an augmentation of the militia, and for the levy of a volunteer force of horse and foot; intimating that the chances of war might expose Britain to an invasion. During the debate which followed this motion, Fox and

his party taunted ministers with having produced such a prospect by their war measures; and strong objections were taken to a requisition circulated by ministers, and to a subscription entered into by country gentlemen and others, for the purpose of providing arms and other necessaries for the volunteer corps. Sheridan moved “That it was dangerous and unconstitutional for the people of this country to make any loan of money to the crown without consent of parliament;” but the previous question was carried by a large majority. Subsequently, Pitt brought in a bill to enable French royalists and emigrants to enlist in the service of the king of Great Britain on the continent of Europe, and to employ French officers as engineers, under certain restrictions. Two amendments were offered: one by the attorney-general, to exact the oath of allegiance from those who enlisted; the other by Sheridan, to limit the number of such French troops at any time stationed in the kingdom, to 5,000. Both these amendments were adopted; and, notwithstanding the opposition of Fox and his party, the bill was carried in the commons by the usual majority, and it subsequently passed the Lords. About this time, parliament was informed, by royal message, that a large subsidy had been granted to the King of Prussia. This was criticised and condemned by opposition in the severest manner, as were all the subsidiary treaties concluded with some of the powers of the coalition, who were too poor to maintain the expenses of the war without English money. But every motion on these subjects was carried by a large majority. On the other hand, every motion tending to put an end to the war was negatived by overwhelming numbers. Thus, when, on the 30th of May, the Duke of Bedford moved a series of resolutions to this end, in the lords, and Fox in the commons, the former was defeated by one hundred and thirteen against twelve, and the latter, by two hundred and eight against fifty-five. By this time opposition had still further reverses on the theatre of war to urge against its continuance, but these arguments were rendered futile by the intelligence which came, at the same time, of the augmented and still augmenting atrocities in France, which encouraged members of parliament to believe that such a system could not sustain itself for any length of time. And this feeling was prevalent among the people. On hearing of the reverses, opposition, and men of the same principles in private life, made great efforts to get up popular petitions for a peace; but the majority of the people had conceived a horror of the French republicans, and, except among some political clubs, no progress was made in this business; and the petitions got up among such clubs were, of course, unheeded.

SUSPENSION OF THE HABEAS CORPUS ACT.

On the 12th of May a royal message was delivered, referring to the seditious practices of democratic societies, and intimating the necessity of taking measures for baffling their dangerous designs. The message stated that seditious practices had been carried on by societies in London in correspondence with other societies, for the purpose of assembling a convention to represent the people, in defiance of and in opposition to parliament, and on principles subversive of our constitution, and calculated to introduce anarchy similar to that in France; that the papers of these societies had been seized, and would be laid before parliament; and that his majesty recommended them carefully to examine these papers, and to adopt such measures as might appear necessary. These papers were produced on the next day, and Pitt

moved an address of thanks to the king, and proposed that the papers should be referred to a committee of secrecy, consisting of twenty-one persons, who should be chosen by ballot. This was agreed to, and on the 16th of May Pitt produced the report of this committee of secrecy. This report did not reveal anything very mysterious, for it merely contained the report of the two London societies from the year 1731, most of which had been already published, by the societies themselves, in the public papers. Yet Pitt, on the strength of this report, demanded the immediate suspension of the Habeas Corpus Act, as necessary to the salvation of the country. In this demand he was supported by Burke, who said that it was the best means of preventing the vast and imminent dangers with which we were menaced; and by Windham, who observed that if these evils could not be averted by the laws in being, other laws, more stringent, must be framed. The bill was carried, through all its stages, by overwhelming majorities, and it also passed the lords, though not without a strong-protest from the Duke of Bedford, and the Earls Stanhope, Lauderdale, and Albemarle. An address was moved in the upper house, on the 13th of June, by Lord Grenville, to assure the king of their lordships' loyalty and determination to punish the participators in the conspiracy which had been laid before them, and to invest his majesty, if needful, with additional power for the suppression of attempts against government. This was warmly opposed by Lord Lauderdale; but the address was carried, and sent to the commons for their approval. Fox—after endeavouring to show that there was no ground for apprehension; that though seditious language might have been uttered, it would be imprudent to notice it;—moved to omit that part of the address which expressed the conviction that a conspiracy had been carried on against the constitution, but his amendment was rejected, and the house concurred in the address as sent down by the lords.

AGITATION IN ENGLAND AND SCOTLAND.

Although government had scarcely so much cause of alarm at the movements of political bodies as it exhibited, yet that there was some cause for fear there can be no reasonable doubt. This is manifest from the state trials which occurred at this period. One of the first of these trials took place at the Lancaster spring assizes. Mr. Thomas Walker, of Manchester, a strenuous advocate for parliamentary reform, at whose house meetings for political purposes were occasionally held, was indicted, with nine other persons, for conspiracy to overturn the constitution by arms, and to assist the French in case of an invasion. The principal evidence adduced was a person of the name of Dunn; but his testimony was so contradictory that the prosecution was abandoned, and Dunn was committed to prison to take his trial for perjury. Soon after this a rumour was raised of a design to assassinate the king, and some persons were arrested and committed for trial; but they were soon after liberated, and the story fell into contempt under the popular designation of the "Pop-gun Plot;" it being averred that the king's death was to be encompassed by shooting him with an instrument resembling a walking-stick. More important proceedings subsequently took place in the Sessions-House at Clerkenwell. At this time the London Corresponding Society counted more than 30,000 members in its association, and it fully justified its title by entering into correspondence with every seditious club in the kingdom. According to a Jacobinical expression, it soon affiliated itself with the Constitutional Society; their

respective secretaries—Thomas Hardy, a shoemaker, and Daniel Adams, an under-clerk—making known to the world the results of their deliberations, signed and sanctioned by their names and authorities. Hardy's club, that of the London Corresponding Society, however, exercised a species of metropolitan jurisdiction over all. By means of the handbills and pamphlets which this club circulated, and by means of its lecturers and the meetings it concocted, a union of all the clubs was formed; and this union finally arrived at a complete organization, with a central board in London, a division into provinces and districts, and a list of members, approaching to half a million, in correspondence or direct connexion. Government thought it high time now to interfere; and, suspecting the machinations of the ringleaders, they adopted the usual policy under such circumstances, of employing spies to become members, in order to betray the secrets with which they may be entrusted. The morality of such a practice may be questioned; but policy, and not morality, is too frequently the doctrine of even the best-regulated states. The scheme, however, succeeded. In consequence of the discoveries of these spies, Hardy, Adams, Martin, an attorney, Loveit, a hair-dresser, the Rev. Jeremiah Joyce, preceptor to Lord Mahon, John Thelwall, the political lecturer, John Home Tooke, the philologist, Thomas Holcroft, the dramatist, Steward Kydd, a barrister, with several others, were all arraigned at the Old Bailey. The papers of Hardy and Adams had been seized, and an indictment was made out, which contained no less than nine overt acts of high-treason, all resolving themselves into the general charge, that the prisoners conspired to summon delegates to a national convention, with a view to subvert the government, to levy war against the existing authorities of the country, and to depose the king. The evidence adduced, however, did not bear out this strong indictment. Hardy, Home Tooke, and Thelwall were tried and acquitted; and then the crown lawyers abandoned all the other prosecutions, and those who had been indicted were liberated.

In the mean time some trials had taken place in Scotland which resulted in a different manner to those which had occurred in the Old Bailey. Thomas Muir, a Scotch barrister, and the Rev. Fysche Palmer, a Unitarian preacher at Dundee, had been tried for sedition, convicted, and sentenced to transportation. This excited considerable alarm among their friends and associates in England, and attracted the attention of some members of parliament. Early in the session Mr. Adams moved, in the house of commons, for leave to bring in a bill for making some important alterations in the criminal law of Scotland; and this being refused, he gave notice that he would bring forward a motion for the relief of Muir and Palmer, in another form. In the meantime Sheridan presented a petition from Palmer, representing that he conceived the sentence passed upon him by the high-court of justiciary, from which there was no appeal, to be unjust. Dundas startled those who were about to plead for the prisoners, by intimating that the sentence was already executed, and that the warrant for the transportation of Palmer was both signed and issued. Nevertheless Pitt found himself compelled to allow the reception of the petition. But petitions on the table of the house of commons are not always successful in their prayer. On the 10th of March Mr. Adams moved for a copy of the record to be laid before the house, upon the ground of which he meant to question the legality of the sentence. He

undertook to prove that, by the law of Scotland, the crime imputed to them, of “lease-making,” was only subject to fine, imprisonment, or banishment, and not to transportation; and that the acts attributed to Muir and Palmer did not even amount to that crime. Adams supported his legal positions with extensive knowledge, both judicial and historical; endeavouring to establish them by statute, analogy, and precedent, as well as by civil and political reasons. He showed that the acts, cases, and decisions which he brought forward were not detached and isolated, but all resulting from the same spirit and principles, established in the best times and by the highest authorities. He also contended that transportation was not a part of the Scottish law before the union, and that since the union no act had been passed allowing Scotch courts to transport in cases of sedition. Finally, he forcibly stated the evils, moral and political, which must result from a perversion of the law. The Scottish court and its sentence were defended by the lord-advocate, who had officially acted against Muir and Palmer, and by Pitt and Windham, while Fox supported Mr. Adams. The lord-advocate contended that the Scotch laws were better than the English for the punishment of libels and the suppression of seditious practices; and the majority of the house seemed to agree with him, for the motion was negatived by one hundred and seventy-one against thirty-two. Motions made in favour of the two convicts in the upper house, by Earls Lauderdale and Stanhope, were not more successful; and the lord-chancellor afterwards carried a resolution that “there were no grounds for interfering with any of the criminal courts as administered under the constitution, and by which the rights, liberties, and properties of all ranks of subjects were protected.”

INTRODUCTION OF FOREIGN TROOPS.

On the 27th of March a message from his majesty informed the house of commons that a body of Hessians was placed in temporary winter-quarters at Portsmouth and the Isle of Wight, with a view to co-operate with the royalists in Brittany and the neighbouring districts. As similar cases had occurred at different periods, and as the cause and necessity of such a measure were obvious, it was concluded by government that the usual communication of the fact to parliament would be satisfactory; but opposition contended that Pitt ought to have moved for a bill of indemnity; and he was charged with having violated the Bill of Rights and the Act of Settlement. Mr. Grey moved, as a resolution of the house, that to employ foreigners in any situation of military trust, or to bring foreign troops into the kingdom, without the consent of parliament first had and obtained, is contrary to law. This motion, however, was negatived; and propositions made in both houses, at a subsequent date, for a bill of indemnity, met with no better success, ministers contending that it would be absurd to indemnify measures which were in themselves both justifiable and constitutional.

THE SLAVE-TRADE QUESTION.

In the course of this session, a bill, brought forward by Wilberforce and supported by Pitt, for the abolition of that branch of the slave-trade by which we had supplied the islands, was passed by the commons, despite the strenuous opposition of the West Indian interest. It was, however, thrown out in the house of lords, and a motion for

referring to a committee the further hearing of evidence concerning the slave-trade was likewise negatived.

MOTION ON BEHALF OF LA FAYETTE.

On the 17th of March General Fitzpatrick moved for an addresss to his majesty, beseeching him to intercede with the King of Prussia for the release of La Fayette, who was confined in one of his prisons. The situation of La Fayette and his companions excited the sympathy of many persons; but there were others who had no fellow-feeling for them. Burke said, that La Fayette, instead of being termed an “illustrious exile,” was then, and ought always to be, an outcast of the world; who, having no talents to guide or influence the storm which he had laboured to raise, fled like a coward from the bloodshed and massacre in which he had involved so many thousands of unoffending persons and families. Pitt denied that La Fayette’s conduct had ever been friendly to the genuine cause of liberty; and affirmed that the interference required would be setting up ourselves as guardians of the consciences of foreign potentates. The motion was negatived by a large majority.

MOTION FOR INQUIRY INTO THE RECENT FAILURES OF OUR ARMIES.

As all the efforts of opposition to procure a termination of the war, or a dissolution of alliances with foreign potentates, had failed, they now proceeded to inquire how far the objects proposed had been obtained, and what was the probability of ultimate success. After reviewing the measures and events of the last campaign, in a speech of considerable ability, Major Maitland moved for a committee to inquire into the causes which led to the failure of the army under the Duke of York, and to the evacuation of Toulon. In reply it was urged, that though the possession of Dunkirk would have been a valuable acquisition, its conquest was impracticable, from the enormous efforts of the French; and that the same cause occasioned the evacuation of Toulon. On a general view of the campaign it was stated that the British arms had acquired great glory; and the house seemed to be of this opinion, for the motion was negatived by a great majority.

THE TRIAL OF WARREN HASTINGS.

On the 5th of March, Burke moved for a committee to inspect the journals of the lords relative to the proceedings of the trial of Warren Hastings; and to report the facts and observations on them to the house. Leave being given, he diligently set to work, and the report, occupying nearly two hundred pages, was made on the 17th of April; and it is said, by competent judges, to be one of the most able and elaborate papers that have come from his pen. It was published, without authority, in form of a pamphlet; and Lord Thurlow embraced an early opportunity of venting his indignation against both its publication and its contents. He characterised it as “disgraceful and indecent, tending to misrepresent and vilify the conduct of judges and magistrates intrusted with the administration of justice and the laws of the country.” Burke made a pointed reply to this charge on the following day, in his seat in the house of commons. He remarked:—“It accuses the judges neither of ignorance nor corruption: whatever it says, it does not say it calumniously; that kind of language belongs to persons whose eloquence entitles them to a free use of epithets. The

report states that the judges had given their opinion secretly, contrary to the almost uninterrupted tenor of parliamentary usage. It states that the opinions were given, not on the law, but on the case. It states that the mode of giving opinions was unprecedented, and contrary to the privileges of the house of commons. It states that the committee did not know on what rules and principles the judges had decided in those cases, as they neither heard them, nor are they entered on the journals. It is very true that we were and are extremely dissatisfied with those opinions, and the consequent determination of the lords; and we do not think such a mode of proceeding at all justified by the most numerous and best precedents. The report speaks for itself: whenever an occasion shall be regularly given to maintain everything of substance in that paper, I shall be ready to meet the proudest name for ability, learning, or rank, which this kingdom contains on that subject." This reply of Burke contains an allusion to the result of this long-pending trial, as will be seen. Hastings was acquitted. As for the gauntlet which Burke threw down, no one seemed inclined to take it up; and Burke soon after quitted the house of commons for ever, he accepting the Chiltern Hundreds. But before Burke left the house, Pitt moved the thanks of the commons to him and the other managers, "for their faithful management in discharge of the trust reposed in them." This motion was carried; and Burke in his reply observed, that prejudices against himself, arising from personal friendship or obligations to the accused, were too laudable for him to be discomposed at them. He had thrown out no general reflections on the Company's servants; he had merely-repeated what Mr. Hastings himself had said of the troops serving in Oude, and the house had marked their opinion of the officers in the very terms he used. As for other expressions attributed to him, they had been much exaggerated and misrepresented. This was the last day that this philosophical statesman took his seat in the house of commons. Among his last words were a warning to the country to beware of the fate of France. But this warning was now scarcely needed. He had sounded the trumpet of alarm with such effect for several sessions, that the nation was roused to a sense of danger, and was prepared to ward off the blow by its most vigorous efforts. He had rendered a noble service, not only to his own generation, but to posterity—not only to his own country, but to every nation in Europe.

THE PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 11th of July. In his speech his majesty congratulated the lords and commons on the victory obtained over the French at sea on the 1st of June, and the acquisitions made in the East and West Indies. He also took occasion again to urge the two houses to persevere with increased vigour and exertion in the present contest, against a power irreconcilably hostile in its principles and spirit to all regular and established governments.

MINISTERIAL APPOINTMENTS.

At the conclusion of the session, the Portland party joined the ministerial ranks. The Duke of Portland received a blue riband, with the office of third secretary of state; Earl Spencer accepted the privy seal, which he soon laid aside to preside over the admiralty; and Mr. Windham, was made secretary at war. Before the close of the year, Lord Fitzwilliam was promoted to the vice-royalty of Ireland, in the place of

Lord Westmoreland; the Earl of Mansfield succeeded to the presidency of the council; and Lord Chatham, brother to the premier, was made lord privy-seal. About the same time ten new peers were created. These measures greatly strengthened the administration; and at the same time confirmed the existing disunion of the old whig party.

EMBASSY TO CHINA, ETC.

Government had some time ago despatched Lord, Macartney on an embassy to China, and about this time the result of his mission became known. The embassy had been fitted out without any reasonable ground of success; but it was still expected that it might be the means of establishing a communication with that great empire. But the event did not answer these expectations. His lordship was received with suspicion, and ordered to depart as soon as he had made some costly presents, and received some trifling ones in return, being refused even a few days' delay. As one of the ambassador's suite observed, "They entered Pekin like paupers, remained in it like prisoners, and quitted it like vagrants."

CORSICA ANNEXED TO THE CROWN OF ENGLAND.

The nation was somewhat consoled for this failure by the annexation of Corsica to the crown of Great Britain; an event which, from its political importance, was a topic of ministerial exultation. After the disaster at Toulon, Lord Hood sailed to this island, which was in a state of revolt against the government. He landed three thousand soldiers and marines, and these nearly effected the reduction of the island by the capture of Bastia, which capitulated on honourable terms. Calvi, the only remaining-stronghold of the republicans, was then besieged, and on the 1st of August it surrendered to the British arms. Paoli and the aristocratical party then offered the cession of the island to the King of Great Britain, which was accepted. Efforts were made to confer the blessings of the British constitution on the rude islanders, but they were not successful; while one party looked to England, the other cast their eyes on France.

LORD HOWE'S NAVAL VICTORY, ETC.

About the middle of April, the ships composing the Channel fleet, commanded by Lord Howe, assembled at St. Helen's. It consisted of thirty-two sail of the line and nine frigates; but six of the ships of the line and four frigates were detached under Rear Admiral Montague, to escort some outward-bound convoys off Cape Finisterre. With the remainder of the fleet Lord Howe proceeded to Ushant, to look after the Brest fleet and a French convoy which were expected to arrive from America and the West Indian Islands. The French convoy escaped Howe's vigilance, and arrived safely in the French ports; but he caught sight of the French fleet on the 28th of May, and on the evening of that day he attacked a part of their line. As it grew dark the firing ceased; but the two fleets kept within sight of each other until the 1st of June, when they came to a regular engagement. In the size of their vessels, in the aggregate number of their guns, and in the weight of metal, the French had a considerable superiority; and they had also twenty-six ships of the line, while, at the time of the engagement, Lord Howe had twenty-five—one, the "Audacious," having separated, on

the 28th, in a shattered condition. Lord Howe, however, having discovered the French early on the morning of the 1st of June, about three or four miles to leeward, in order of battle, immediately stood towards them. At about seven in the morning, he was abreast of them, and then he wore to the larboard tack, the French awaiting his approach in the same position. The signal for action was made about half-past eight o'clock, orders having previously been given for the fleet to close, to pass through the French line, and engage them to leeward, van to van, rear to roar, every ship engaging her opposite in the enemy's line. Some of the ships, as the "Defence," the "Marlborough," the "Royal George," the "Queen," the "Brunswick," and the "Nott," were enabled thus to engage the enemy; but the far greater part of them engaged their adversaries to windward, thus enabling the French, when defeated, to get off before the wind. Howe's own ship engaged that of Villaret Joyeuse, the French admiral; and these two opened their fire a little after nine o'clock, and at nearly the same time the action became general in the centre. Villaret Joyeuse's ship mounted 120 guns, and it was so lofty that it frequently waved its ensign over the quarter-deck of the "Queen Charlotte." But it was soon discovered that the French could not withstand that close fighting; after having manfully fought for about an hour, Villaret Joyeuse gave way, and stood off to the northward, followed by all his ships that could carry sail. Ten of them were left behind almost totally dismasted, and nearly surrounded by the English; and seven of these fell into the hands of the victors. One of them had received so many shots between wind and water, that she filled and went down almost as soon as the English flag was hoisted on her. After securing the other six, Lord Howe made the signal for his fleet to close round him, with the intention of again attacking Villaret Joyeuse, if he should attempt to retrieve the fortune of the day; but the French admiral thought of nothing but of securing his retreat. On the side of the English the number of killed was 279, and of wounded 877; while in the six captured ships alone the killed were 690, and the wounded 580. More than 300 were supposed to have gone clown in the ship which sunk, and the number of prisoners removed is stated at 2,300. On board the French fleet was Jean Bon Saint André, the friend and creature of Robespierre; and he was there on commission, to remind every officer and man of the guillotine, and of the duty he owed to the republic. Jean Bon Saint André wished himself ashore as soon as the battle commenced; and, in bold defiance of facts which had been witnessed by many thousands of individuals, he declared, in his report to the convention, that the English had thirty-six ships of the line; that the battle lasted from ten in the morning to three in the afternoon; and that the English, after having seen several of their ships sunk, finally sheered off with all the sail they could carry. Barrère, the reporter and oracle of the committee of public safety, even outstripped Bon Saint André in the strength of lying and power of invention: he amused the national convention with an account of the victory of the republican fleet, far more fabulous than the commissioner's. Some of his statements, gross and unfounded as they were, have even been adopted by historians; especially by those who give credit to French writers. Thus Barrère asserted, that the republicans on board the ship which sunk soon after the English flag was hoisted on her, refused, to a man, to seek safety by surrendering, fought their lower-deck guns till the water reached them, and, having hoisted every flag, pennant, and streamer, went down with her, shouting _Vive la Republique! Vive la France!_ and that the last

thing which disappeared beneath the waves was the tri-coloured flag. This splendid fiction, or, more properly speaking, gross falsehood, was seized upon by poets and painters of every grade of genius; poems and pictures on it appearing in great abundance. But the very reverse of all this was the fact. Instead of challenging certain death and glorying in their fate, the crew of the ship in question, the "Vengeur," who had fought bravely, substituted the British union-jack for the republican ensign, and spread themselves over the sides and rigging of the ship, stretching out their hands to their enemies, and imploring assistance. Some of them were saved; but the crowds which attempted to spring into each boat threatening those who came to their assistance, as well as themselves, with destruction, checked the compassionate zeal of their conquerors, and compelled them to leave the poor wretches to their fate. Yet there were two exceptions: two French officers betrayed no anxiety to avail themselves of any means of safety, but continued walking up and down the stern-gallery, apparently engaged in conversation, until the ship, having admitted the water into her ports, was engulfed.

Lord Howe's fleet put to sea again on the 3rd of September. It then consisted of thirty-seven sail of the line and seven frigates; added to which were five ships of the line, and three frigates furnished by the king of Portugal. The French fleet was then in Brest harbour, out of which it did not venture to appear till Howe had returned to port; and then it commenced a cruise, which ended in the loss of five of their ships of line, by storms and accidents. During this year and the preceding there were numerous contests between small squadrons and frigates, and, in general, the superiority of the English, as sailors and combatants on their own element, was maintained. These engagements took place in the Channel, on the coast of France, in the Mediterranean and Archipelago, and in the East and West Indies. In the whole of this year the British lost only one ship of the line; and this ship, the "Alexander," did not surrender, until she had sustained the assault of three French ships of the line for two hours. The spirit which the British seamen displayed, indeed, at the commencement of this momentous struggle, gave fair hopes of a successful issue.

{GEORGE III. 1794–1795}

BRITISH CONQUESTS IN THE WEST INDIES.

The superiority of the British navy soon began to excite public exultation, and to produce its wonted effects on the colonial possessions of our enemies. Tobago had been taken by a British squadron soon after, the commencement of hostilities; and early in this year, a fleet, under Sir John Jervis and General Sir Charles Grey, was dispatched against Martinique, which, after a vigorous resistance, was captured. The reduction of Martinique was followed by the conquest of the islands of Saint Lucie and Guadaloupe. After these successes, Sir Charles Grey returned to Martinique, leaving General Dundas to command at Guadaloupe; but before the close of the year that island was regained by the French.

DISPUTES WITH AMERICA.

About this time the British government became involved in a contention with the United States of America. Soon after the commencement of hostilities with France, orders were issued for detaining American vessels freighted with corn for that country, and confiscating their cargoes, though at the same time paying both for them and their freight. The Americans were indignant at these orders, considering them to be an attack on their independence. Their complaints, however, were not only disregarded, but an order was afterwards issued to seize all American vessels carrying provisions and stores to the French colonies, and also to compel their ships sailing from the British islands to give security for landing their cargoes in British or neutral ports. In consequence of this measure,—vigorous, but necessary under existing circumstances,—more than six hundred American vessels were seized in the space of five months. Added to these causes of complaint there were others given to the United States by the occupation of some ceded forts on the frontiers of Canada, and by a conference which the governor, Lord Dorchester, held with some Indian tribes. By way of retaliation, the American government laid an embargo of thirty days on the British shipping in their ports, and appointed Mr. Jay, its minister, to compose the difference between the two countries. Mr. Jay delivered a memorial on the subject, and Pitt having tendered a conciliatory answer, and both parties being inclined to peace, the dispute was, for the time being, compromised. But on a future day it was productive of serious effects.

MILITARY OPERATIONS ON THE CONTINENT.

While the English were in general victorious on the sea during this year, on land, they, in common with their allies, were generally unsuccessful. This arose from two causes: from the division of sentiment which existed among the officers of the coalition, and from the continued extraordinary efforts of the French republicans. Resolved to extend their sway over the neighbouring countries, to enlarge their own boundaries, and to obtain by plunder the means of supporting their gigantic efforts, at the close of the year 1783 the French had nearly one million armed men in the field, three hundred thousand of whom were on the northern frontier of the republic. To oppose these masses, the allies had not more than 140,000 men. And what rendered the immense force of the French particularly formidable, was the ability, as well as the unanimity, with which it was managed, and the military talent which was rising up among its ranks. On the other hand, the allies, composed of different nations, were commanded by leaders who were jealous of each other, and were far from acting with that cordial co-operation which was necessary, not merely to ensure success, but to prevent defeat. The rivalry of Austria and Prussia, and the jealousy which each had conceived of the other, became so visible, that, early in January, the Duke of Brunswick addressed a letter to the king of Prussia, in which he announced the resignation of his command; stating, as his motive, the unhappy experience that want of connexion, distrust, and cabal had disconcerted the measures adopted during the two last campaigns. After alluding to the unanimity which existed among the French republicans, he said: “If, instead of co-operating with similar principles, each army acts separately and without concert with the others, without fixed plans and without concord, the consequences to be expected are such as have been seen at Dunkirk, at Maubeuge, at the capture of Lyons, at the destruction of Toulon, and at

the siege of Landau." He added, in conclusion:—"The same causes which divided the allied powers divide them still; the movements of the armies will again suffer as they have suffered; they will experience delay and embarrassment, and these will prove the source of a train of misfortunes the consequences of which are incalculable." The Duke was succeeded in command of the Prussian army by Field Marshal Mollendorf; but, in the month of March, a proclamation announced that the King of Prussia had seceded from the coalition. But this was only a _ruse_ on the part of his Prussian majesty: he wanted English money, and when he had extracted the subsidy from Great Britain, he again joined his allies. Great part of this subsidy, however, was diverted from its original purpose, to forward designs on Poland, to secure the territories which had been allotted to the King of Prussia in the last partition, and to set up a pretension to more. His conduct on this occasion has been well pronounced loose and spiritless; for the troops which he furnished fell far short of the stipulated number, and yet he pocketed more than two millions of English money. The Emperor of Austria was equally slow in providing contingencies: he recommended the Germanic confederation to oppose the republic by a levy _en masse_; but he neglected to set them an example.

The campaign did not open under better auspices in the Netherlands. Austrians, English, Dutch, and Hanoverians were to fight together there; but a great number of the Dutch were inclined to democracy, and the Duke of York quarrelled with the Austrian commanders, and refused to serve under General Clairfait. At a general council of war held at Ath, it was proposed that the Prince of Saxe Cobourg should continue at the head of the grand imperial army, and that General Clairfait should command the auxiliary forces, the Duke of York acting under his orders. This his royal highness refused with disdain; and the dispute was only settled by the determination that the emperor should take the field in person, and that the supreme command should be vested in him. This ill-timed quarrel has been generally attributed to the pride, petulance, and jealousy of rank of the Duke of York. It would appear, however, that the young prince had nobler reasons for objecting to the supreme command of General Clairfait; he having evinced, on several occasions, his indifference to the common interests of the coalition, and even a readiness to sacrifice that interest to the views of his own government. When the quarrel was settled it was agreed that the campaign should be opened with vigour on the French frontier; that the heads of the columns should be again turned towards Paris; that the army of the King of Prussia should move from the Rhine by the valley of the Moselle, traverse Luxembourg, and join the allies on the Sambre, or co-operate with them on their advance; and that England should send 10,000 men, under Lord Moira, to the coast of Brittany, in order to assist the Vendeans, and to advance with them from the west towards Paris. It was hoped also that the Spaniards might advance from the Pyrenees, and that the King of Sardinia might repossess himself of Savoy, and once more open the road to Lyons.

His imperial majesty arrived at Brussels early in April; and after reviewing the whole army on the heights above Cateau, it marched in eight columns to invest Landrecies. As the allies were already in possession, on the same frontier, of Valenciennes, Coudé, and Quesnoy, this place was not worth the trouble and time it

cost to take it. The fortress fell, after a short siege, into the hands of the Prince of Saxe Cobourg; but while the allies were engaged here, Pichegru had penetrated into West Flanders, where General Clairfait was stationed with a division of the imperial army, and had captured Courtrai and Menin. Jourdan, another republican general also, who was already stationed in the country of Luxembourg, had, in the meantime, increased his army to a prodigious extent; after which he fell upon the Austrian general Beaulieu, who attempted to check his progress, and drove him from his lines with great loss. After his conquest of Courtrai and Menin, Pichegru wheeled round upon the Duke of York, who with about 30,000 men, English and Hanoverians, were stationed at Tournay; but here the republican general was signally defeated. Yet, on the next day, Pichegru attacked Clairfait, who was advancing to retake Courtrai, and compelled him to retreat to Flanders. A few days after this Pichegru threw his right wing under Kleber and Marceau, across the Sambre, to attack the Austrian general Kaunitz; but he was defeated with the loss of 4.000 men.

These victories revived the spirits of the allies, and, without waiting for the Prussians, who were not inclined to move, in a grand council of war, they determined to envelope the left, or chief and victorious part of the French army on the Maine, by moving upon it in five attacking columns, from the various points they occupied. The success of these movements depended upon the celerity and good understanding among the commanders; and in these requisites they were sadly deficient. The Duke of York pushed forward towards the appointed centre round which all the columns were to meet, but when he arrived at Turcoing, where he expected to meet General Clairfait, he was surrounded by the republican forces, under Souham and Bonnaud, and completely defeated. The other columns now fell into confusion, and, from the heights of Templenor, the Emperor of Austria had the mortification of witnessing the retreat of the entire army of the allies; after which he returned, first to Brussels, and then to Vienna, leaving the Prince of Saxe Cobourg to command in his inline.

Although the English and Hanoverian column had suffered great loss in the battle of Turcoing, it soon rallied, and even foiled Pichegru in an attempt to seize upon Tournay. The Austrian general, Kaunitz, also gained another victory over the republicans, on nearly the same ground, and drove them across the Sambre. But these victories only served to allure the allies on to their ruin. Every day fresh masses of men from the armed hive of France advanced towards the Sambre, now the theatre of war. Even Jourdan, who had been watching the Prussians on the Moselle, finding that they would not move, repaired thither. At the same time the reinforcements of the allies, having to be brought from great distances, and being difficult to raise, arrived but slowly and in few numbers. Such was the situation of the belligerents when Pichegru, after some manouvres which perplexed the allies, struck off to the left and laid siege to Ypres. General Clairfait marched to the relief of the besieged town and defeated Pichegru; but he recovered the ground he had lost, drove back his opponent, and took the town; the strong garrison therein opening the gates to him, as so many traitors or cowards. In the meantime Jourdan laid siege to and captured Charleroi; although in the route thither he had been defeated in a pitched battle and driven across the Sambre, by the hereditary Prince of Orange, who had been dispatched with a part of the army of the coalition to oppose his designs upon that

place. The Prince of Saxe Cobourg was expected to relieve Charleroi; but he did not arrive until after the place was reduced; and then he was attacked by Jourdan on the plains of Fleurus, and, after an obstinate battle, which lasted the whole day, was compelled to order a general retreat. The prince retired in good order to Halle, and again prepared to fight for the preservation of what remained to Austria in the Netherlands; but the Sans-culotte portion of the Belgians now again declared for the French. Bruges opened its gates to them; Pichegru, aided by General Moreau, compelled the Duke of York to retreat to Antwerp; and then the places which the English left in their rear followed the example of Bruges. The Duke of York was joined at Antwerp by Lord Moira with the 10,000 troops originally intended for the war in the Vendée, but who was not ready till that war was over and the Vendeans crushed. The two armies of the Duke of York and General Clairfait occupied the country between Antwerp and Louvain, holding both those towns and Mechlin which lay between them. In the meantime part of the army of Pichegru invested Valenciennes, Condé. Quesnoy, and Landrecies, the garrisons of all of which fortresses, overawed by the threats of the convention, almost immediately capitulated. Pichegru and Jourdan, about the same time, effected a junction, and marched upon Brussels; and, after defeating the Prince of Saxe Cobourg in their route, they entered that city amidst the welcomes of the Jacobin party. The ancient town of Ghent also submitted to the republicans; and, on the 12th of July, the Duke of York and Lord Moira were attacked by the enemy in great force, and compelled to take shelter in Mechlin. Three days after he was compelled to leave Mechlin, and Clairfait was overwhelmed near Louvain, and obliged to abandon both that city and Liege. General Beaulieu was likewise compelled to evacuate Namur, and the citadel of Antwerp, to which the Duke of York had repaired, was not considered a safe retreat. After staying there a week, indeed, the English crossed the Scheldt, and abandoned both the city and citadel to the French. The Duke of York concentrated his forces in the neighbourhood of Breda for the defence of Holland, while General Clairfait retired behind the Meuse. Thus the whole of Austrian Flanders and Brabant, fell under the dominion of the French in one brief campaign. Disheartened by the reverses of the allies, the Prince of Saxe Cobourg, after some altercations with the Dutch generals, who refused to risk another battle, and after making a powerful but vain appeal to his German countrymen on the Rhine and the Moselle, to rise _en masse_, for the defence of all that was dear to them—of their altars and firesides, of their emperor, their liberty, and their old Germanic honour,—retired from the command of the imperial army. As for the emperor himself, he was so irritated by the want of energy and disaffection of the people, and so discouraged by the events of the war, that a notion got abroad of his intention to abandon the coalition, and seek a separate peace with the republicans. This report of secession, however, was probably circulated for the same purpose as the previous report of the secession of the King of Prussia; namely, to obtain money from England. At all events this was the effect produced: alarmed at it, Pitt dispatched Earl Spencer and Mr. Thomas Grenville to Vienna, and the result was, that the emperor accepted a large subsidy, in the shape of a guarantee of four millions, as the price of his adherence to the coalition. As for the report that the emperor evacuated Flanders, in order that his subjects might experience the difference between his mild government and that of the republicans of France, it

seems to be wholly without foundation. But if it afforded him any consolation to know that the Netherlands smarted under the republican rule, his feelings must have been gratified to the utmost. Every young man capable of bearing arms was called into the field of battle; the coin of the country was called in and exchanged for assignats at par; merchandise and property of all descriptions were seized by the freebooting republicans; and the guillotine was kept in constant motion by commissioners sent to fraternise and unite Belgium with France. Moreover, Ghent, Bruges, Ostend, and other towns, with the villages, were heavily taxed, and the plunder derived from the whole country was conveyed to Lisle and Dunkirk, for the use and service of republican France.

During this campaign, a new treaty was concluded with the Duke of Brunswick, who engaged to furnish his Britannic majesty with a body of 2,289 troops, upon condition of receiving the same liberal remuneration as the Hessians, and granting over and above to the noble duke an annual subsidy of £16,000 sterling. This treaty, however, was made too late in the year for the troops to be of any service, and they were, moreover, contemptible in number, compared with the hundreds of thousands which the French poured forth against their enemies. But the King of Prussia appears to have been the grand obstacle in the way of the success of the allied armies. Early in the year, the Germanic diet had agreed to a _conclusum_ for a general armament of the people of the empire—of the burghers and peasantry of all the circles, states, principalities, and electorates comprised in the league; but Frederick William declared that if this _conclusum_ were not withdrawn, he would withdraw his troops; as he could not expose them to the danger which would result from such a measure. The reasons he gave in a declaration for his opposition were, that, by employing the peasantry against the enemy, agriculture would suffer; that arms were wanting for such a mass of people that it was impossible to teach the manual exercise to the inhabitants in so short a time; that, to be victorious, the soldiers exposed to the French must be perfectly exercised; and that it was dangerous, at a time like the present, when the French were watching their opportunity to insinuate their principles, to assemble such a mass of men, whose ideas of government must be various, and among whom, from that cause, dissensions might arise, disastrous in their consequences, not only to the armies, but to the empire. These were Frederick William’s promulgated reasons; but it would rather appear, that, as many parts of his kingdom were dissaffected to the house of Brandenberg, he feared that if the population were armed they might assert their independence, or struggle to be restored to the states to which they formerly belonged. Be that as it may, the opposition of Frederick William to this measure was successful, for the _conclusum_ of the diet was not carried into effect. And yet it was manifestly the only measure which, if it could have been accomplished, could have successfully stemmed the torrent of French conquests.

Although the Prussians were not wholly inactive during this campaign, yet they did not act with much vigour. Early in the year the French army on the Rhine advanced and took the fort of Kaiserslautern, the town of Spires, and several other towns and fortresses. They intrenched themselves at Kaiserslautern; and early in May the Prussian general Mollendorf drove them from thence with great slaughter. But from

this time, the French having been shortly after reinforced, the Prussians and their allies did nothing of any consequence. A battle was fought in July, which was maintained, at different points, four whole days; but after both sides had suffered greatly, the imperialists crossed the Rhine, and the Prussians retreated down the left bank of the river to Mayence, leaving the republicans in the possession of territory sixty miles in length. Thus successful, the French marched to the reduction of Treves, and then poured down in great numbers to the Netherlands, first, to assist in the war there, and after that to conquer Holland.

The armies of the republic were also successful in Spain and Italy. In Spain, early in the year, the French having penetrated into the province of Catalonia, a battle was fought near Saint Jean de Luz, in which they were victorious. In May, also, another victory was gained near Ceret; and soon afterwards a third, of still greater importance, over the principal Spanish army posted in the vicinity of Collioure. On the western side, moreover, the towns of Fontarabia and Saint Sebastian fell into the hands of the republicans: the latter, partly by feat of arms, and partly by the treachery of some of the notabilities of that place. By these successes the French had obtained a good basis of operations; but they still had to fight desperately for every foot of ground. During the month of October the French general Moncey received the orders of the convention to overrun the whole of the Basque provinces, occupy Navarre, seize Pampeluna, and transfer his camp to the banks of the Ebro. In compliance with these orders, Moncey led his columns into Roncesvalles, that deep valley, formed by the Pyrenees of Navarre, between Pampeluna and Saint Jean Pié-de-Port, on the French frontier, and after sustaining a loss of 3,000 men, he gained possession of it. But winter was fast approaching, provisions were falling short, and unless he could force his way to Pampeluna, he saw that he must retreat to Saint Jean Pié-de-Port. The Spaniards now occupied excellent ground at the head of the pass between the French army and Pampeluna; and here Moncey attacked them in vain: his left wing was completely defeated, and he was compelled to leave Roncesvalles and to winter his army; some in that part of Guipuscoa of which he had obtained possession in the valley of Bastan, and some at Saint Jean Pié-de-Port.

In Italy the Piedmontese had, at the command of the King of Sardinia, risen _en masse_, but being destitute of the enthusiasm of liberty, they constituted a body without a soul. Before the middle of April, the army of the Alps amounted to 75,000 men, opposed to which were only 40,000 Piedmontese and 10,000 Austrian auxiliaries. The committee of public safety enjoined their commanders to drive the enemy over the mountains and to seize the passes; and by the middle of May the whole ridge of the Alps between Savoy and Piedmont, and the key of Italy, fell into the hands of the republicans. On the frontier of Nice, the operations of the French leaders were directed by Napoleon Buonaparte, whose design was to turn Saorgio by its left, and cut off the retreat of its garrison by the great road from over the Col di-Tende. The attacking army was divided into three columns: the first, of 20,000 men, under Massena, advanced on the first of April, intending to pass between Saorgio and the sea; the second, under Dumerbion, of 10,000 men, remained in front of the enemy; while the third, of equal force, directed its course to the upper extremities of the valleys of the Vesabia, to communicate with the army of Savoy by

Isola. These movements were eminently successful: the rocky citadel of Saorgio, surrounded by the French, surrendered at the first summons; while the French, who ascended the Vesabia, drove the allies back to the Col de Finisterre, and General Serurier cleared the valley of the Tinea and established a communication with the army of Savoy by Isola. Subsequently, the republicans became masters of all the passes in the maritime Alps; and while from the summit of Mont Cenis they threatened a descent on the valley of Susa and Turin from the Col di Tende, they could advance to the siege of the fortress of Coni. It was Napoleon's wish to push on to the conquest of Italy; but the convention withdrew 10,000 men from the army of the Alps, in order to support that of the Rhine, and the remainder were left to repose in their aerial citadels.

In the meantime the Duke of York had been assisting the hereditary Prince of Orange to cover the United Provinces; but their forces were miserably insufficient, while the democratic party was again corresponding with the French republicans, and giving them every assistance. In Dutch Flanders, Cadsandt and Sluys were reduced before the end of August, and by the beginning of October, after defeating the imperialist general Clairfait, with the exception of Mayence, the French became masters of every place on the left bank of the Rhine between Landau and Nimeguen. On the Maes the strong fortress of Venloo had been allowed to be captured by a _coup-de-main_, and Bois-le-Duc surrendered after a short siege. The Duke of York, who was stationed at Nimeguen, was now cut off from all hope of reinforcement from Germany; but he, nevertheless, resolved to cover that place, the possession of which would greatly facilitate the advance of the French into the heart of Holland. But his force was insufficient for that purpose: after sustaining two severe assaults, he was compelled to withdraw his troops; and then Nimeguen fell into the hands of the republicans. The Duke retreated across the Waal and the Rhine, and stationed himself at Arnheim in the province of Guelderland, still hoping to arrest the progress of the French arms in Holland. About the same time, Kléber, after a siege of five weeks' duration, obtained possession of the fortress of Maestricht, although it was garrisoned by 8,000 Dutchmen and Germans in the pay of the States-general, and was, moreover, well stored with provisions and everything necessary for sustaining a long siege. But the Dutch generally fraternized with the republicans, and even the Dutch troops would, in the main, rather have fought against their allies than with the French. Disaffection, treachery, and corruption everywhere prevailed; which sufficiently accounts for the ease and rapidity with which the republicans made conquests in Holland. Early in December, the Duke of York, conceiving that the campaign was finished, set out for England; leaving to General Walmoden the perilous task of protecting the country against superior troops who were already flushed with victory. The elements, also, assisted the French. After several attempts to cross the Waal, about the middle of December a hard frost set in, which enabled them to cross that river, and the Dutch were driven from their posts, while sixty pieces of cannon and nearly 2,000 prisoners, fell into the hands of the republicans. They made themselves masters of several posts on the Waal; but as the ice did not permit the passage of heavy artillery, Pichegru, who was charged by the convention with the conquest of Holland, withdrew his forces again to the left bank, where Grave

was captured and Breda invested. Thus threatened, the States-general, imagining that it was possible for them to negociate a separate peace, sent ambassadors to request the ruling faction at Paris to grant such terms as their _known good faith and generosity_ should dictate. The convention flattered the ambassadors with hopes of peace, while at the same time they sent their orders to Pichegru to force his way to Amsterdam. They depended on the disaffection of the people to accelerate their advances, more than the most formidable inundations could check them; in which opinion they were confirmed by frequent invitations sent from the principal towns in every part of the United States, with promises of a cordial reception. It is a notorious fact, indeed, that the English who were defending them were considered by the Dutch people in general to be their enemies, rather than the French who invaded their country; and their antipathy to their defenders was seen in the total inattention paid to their comforts. At this time, from the increasing severity of the weather, sickness greatly prevailed in the English camp; but scarcely any accommodations were prepared for the sick in the hospitals, a scanty allowance of straw only being obtained for a covering. It is said that hundreds were found dead on the banks of the rivers and canals, and that a straggling Englishman, finally, at the close of this campaign, became an object, not only of ill treatment, but of frequent assassination.

THE INTERNAL CONDITION OF FRANCE.

It has been seen that the French had decreed that there was no God: a day soon arrived which demonstrated, not only to France, but to all Europe, that there is a God, and that He is “the Judge of all the earth.” Hitherto the Jacobins had been one and indivisible as regards crime; but shortly after this display of madness, they split into two contending parties. Danton, the cruel Danton, became sated with blood, and wished to stop its effusion. But not so did his colleague Robespierre; and, fearing his vengeance, Danton retired into the country, and left his colleague to rule in cruelty alone. His vengeance first fell upon the heads of Rousin, Vincent, Chaumette, the apostle of reason, Hébert, the apostate archbishop of Paris, and Anacharisis Clootz; these were arrested on a charge of conspiring to overturn the government, and were hurried from the bar of the tribunal of the Jacobins, Robespierre being at their head, to the scaffold. Then fell Hérault-d-Séchelles, the friend of Danton, who was guillotined for sheltering a suspected person. Danton was then hunted down, with Desmoulins, editor of the _Vieux Cordelier_, Phelippean, Lacroix, Chabot, Baziere, and Fabre d’Eglantine: he was brought before the tribunal, and all perished on the scaffold. The death of these leaders of the revolution was followed by that of the innocent. The massacres which daily took place are too numerous for recital: the rage of the terrorists spared neither rank, nor age, nor sex. Nobles, magistrates, generals, ladies, and peasants, all in their turns, were guillotined without mercy. Nor was it in the capital alone that such scenes were committed. At Arras, Orange, and Nantes, the tribunals were equally guilty. At Nantes, Carrier still seemed to outrival Robespierre: the very fish of the river became unfit for food, from feeding on the carcases of his victims. Thus Robespierre and his party triumphed over all who dared oppose them. But, by a righteous retribution, they were soon made the instruments of their own punishment. Like Danton, it would appear that Robespierre became sated with blood; that he saw there was necessity for the cessation of these tragical scenes, and the

establishment of order in the republic. He devised a plan for making the convention decree the existence of a Supreme Being, he deeming atheism the natural religion of the lazy and the rich. By his efforts, a fêté was ordained in honour of that Deity whom they had so long and so flagrantly despised. Robespierre was president of the convention for that day, and hence high-priest of the ceremonial. It was a proud day for him, but his career was to end in blood. Mad with envy, there were those who, in lieu of incense, saluted his ears with this ominous allusion: “The capitol is near the Tarpeian rock.” Robespierre thought, that by denouncing atheism, men might be disposed to become more orderly; in other words, that the Parisians and the nation at large would quietly submit to his rule. But he had accustomed the people to scenes of horror and bloodshed, so that their minds had become familiarised with them. There was danger in his own camp. At this time there was a committee of “general surety,” subordinate to the committee of “public safety:” and from this committee went forth all accusations and arrests which were tantamount to condemnation.. Against these Robespierre now turned his power, but as they had been accustomed to act as they pleased, as they had been allowed to send victims to the scaffold even out of mere wanton cruelty, this act of Robespierre gave them offence, and they resolved upon his overthrow. It was reported by them, that Robespierre had demanded the heads of half the assembly, and this alarmed the major part into resistance. Foreboding the approaching storm, Robespierre, with his confidants, especially Saint Just and Couthon, made out new lists of proscription. But it was too late. In a session of the convention, Tallien suddenly fell upon him with denunciations, and a fierce cry of “Down with the tyrant,” arose on every hand. Robespierre and his friends made impotent attempts to defend themselves, but their voices were drowned in the cry of “Down with the tyrant.” A decree for their arrest was passed and executed; but Robespierre, with the aid of the Jacobins, escaped from custody, and proceeded to the Hotel de Ville, where his adherents assembled around him. The municipality, the populace, and Henriot, the furious commandant of the citizen guards, were all on his side. Had Robespierre acted vigorously, the convention would have been lost. Henriot, indeed, caused the hall of assembly to be surrounded, and pointed the cannon against it; but, before this, the assembly decreed Robespierre, Henriot, and their adherents to be “out of the law,” and this vigorous proceeding decided the fate of the day. The cannoneers refused to fire; the convention resumed the offensive; and the armed sections, under the command of Barras, surrounded the Hotel de Ville, intent upon the destruction of the Jacobins. Robespierre discharged a pistol at his own head and fractured his jaw; the younger Robespierre threw himself out from a window, but survived the fall; Lebon stabbed himself; Couthon did the same, but without fatal effect; and Henriot was flung from a window into a drain and mutilated: all the rest were taken unhurt; and on the morrow, Robespierre, and all that survived, were all executed amidst the acclamations and applause of the citizens. On the two following days, likewise, eighty-three heads, mostly of municipal councillors and revolutionary judges, were decapitated. All Paris and France resounded with triumph. But the victory was not yet complete: the partisans of the system of terror were still numerous, both in the convention itself and throughout the city and the country. Their present leaders, indeed, Billaud-Varennes and Collot d’ Herbois, were no less sanguinary than the ferocious Robespierre himself. Hence the storm of passion and

the work of strife did not cease with that tyrant’s fall. There was a cessation of strife, but the parties composing the convention soon came again into collision. These parties are known in history as the Thermidorians and the Jacobins. In one thing, both these parties were agreed; that since death was sworn to liberty by foreign and intestine enemies, terror only promised salvation. But the motives for this resolution were very dissimilar. The Thermidorians adhered with pure zeal to the republic, and regarded it as a duty to sacrifice all other interests to those of liberty; while the Jacobins sought only their own interests and paramount influence. From the opposition of these parties arose an undecided, and often contradictory course by the members of the convention. On the one hand, many prisoners were liberated, a milder form given to the revolutionary tribunal, and the power of the committee of safety restricted; while, on the other hand, the Jacobin club, which had been closed at the fall of Robespierre, was opened anew, executions were continued, the forms of the revolutionary government retained, and every assault averted from the leaders of the terrorists. Gradually, however, moderation got the upper hand; or, in other words, the Thermidorians triumphed. Their power was manifested by the execution of the monster Carrier, together with some of his infamous accomplices, and by a decree of investigation which finally passed against the highest heads—against Billaud-Varennes, Collot d’Herbois, and Rarrère, with some of their assistants. In the meantime their predominence was also shown in many beneficial decrees, as in those which abolished the _maximum_ and arbitrary requisitions, put the relatives of the executed in the possession of their property, and prevented Vandalism in arts and sciences, and the profanation of churches. The provinces, also, felt the powerful influence of this new system. The Vendée again rose out of its ashes; bands of soldiers were again collected there to resist the republicans, as well as in Upper Poitou, and among the Chouans. Such were the results of this year of the revolution. At its close sentiments of humanity, long unknown, began to appear in the French government; but there was no relaxation in that energy and spirit which pushed its armies on to conquest. Revolutionary France still defied all Europe.

{GEORGE III. 1794–1795}

CONVENTION WITH SWEDEN AND DENMARK.

Sweden and Denmark still persevered in their determination to preserve a strict neutrality in this eventful contest. A convention was concluded between them on the 27th of March, by which they agreed to protect the freedom of commerce on the Baltic, on the principles of the avowed neutrality of 1780. Each were to equip a fleet of sixteen ships of the line for that service; and by the tenth article the Baltic was declared to be a neutral sea, absolutely inaccessible to the armed vessels of the belligerent powers.

THE STATE OF POLAND.

During this year the fate of Poland was sealed. The Czarina having demanded that its army should be reduced to 16,000 men, the Poles resolved to resist her will, and to try once more the fate of arms. The celebrated Kosciusko was placed at their head;

but their struggle was to no purpose; Kosciusko was defeated by the Russians, wounded, and taken prisoner. On the refusal of the king to give up Warsaw, the capital, it was stormed by Suwarrow, who brutally gave orders to allow no quarter. Poland was now partitioned between the plunderers—Russia, Austria, and Prussia—and ceased to be a kingdom; the patriots being proscribed, their property confiscated, and Stanislaus compelled to live in Russia, where he ended his days. “Poland fell,” says an eminent writer, “the victim of her own dissensions; of the chimera of equality insanely pursued, and the rigour of aristocracy unceasingly maintained; of extravagant jealousy of every superior, and merciless oppression of every inferior, rank. The eldest born of the European family was the first to perish, because she had thwarted all the ends of social union; because she had united the turbulence of democratic to the exclusiveness of aristocratical societies; because she had the vacillation of a republic without its energy, and the oppression of a monarchy without its stability. Such a system neither could nor ought to be maintained; the internal feuds of Poland were more fatal to human happiness than the despotism of Russia; and the growth of improvement among its people was as slow as among the ryots of Hindostan.” These are just remarks; but the causes of Poland’s overthrow do not extenuate the guilt of the spoliators: the dismemberment of the country is a foul blot upon the historic page of Russia, Austria, and Prussia—a blot which can never be wiped out.

MEETING OF PARLIAMENT.

The British parliament assembled on the 30th of December. In the speech from the throne his majesty admitted the disasters of the last campaign; but he urged the necessity of continuing the war, and recommended additional efforts and vigour as the only means of producing successful results. His majesty also admitted the desperate condition of Holland and the United Provinces, which the Duke of York had vainly endeavoured to defend; and he informed the houses that the States-general had been led by a sense of present difficulties to enter into negociations with the republicans for peace; but he added, that no established government or independent state could, under the present circumstances, derive real security from negociations; and that, on our part, no negociations could be entered into without sacrificing both honour and safety to an enemy whose chief animosity was avowedly directed against these kingdoms. The king mentioned his acceptance of the crown and sovereignty of Corsica, and announced the happy conclusion of a treaty of amity, commerce, and navigation with the United States of America. He also announced the conclusion of a treaty for the marriage of the Prince of Wales with the Princess Caroline of Brunswick, and called upon his faithful commons to make such provision for the heir apparent as they might deem suitable to his rank and dignity. In the lords, the Earl of Guildford moved an amendment to the address, and urged the impracticability of attaining the object of the war; namely, the dictating of a government with France. He was supported by the Marquis of Lansdowne, who said, that he saw no difficulty in treating with France at the present period. But the amendment was rejected by a majority of one hundred and seven against twelve. The strength of ministers in the commons was manifested, likewise, on this occasion, in an unequivocal manner. The address was moved by Mr. Knatchbull, and seconded by Mr. Canning, who was fast

rising into reputation, and who particularly distinguished himself in these debates. Mr. Canning defended ministers against every imputation of the calamities and disasters of the war being the result of their ignorance and mismanagement, and ridiculed the warnings and predictions of opposition. He observed,—"It is true they have often foretold the desertion of our allies, as well as the astonishing exertions of the enemy; and I cannot but confess that such is unfortunately the result. It is not, however, any difficult matter to prophesy disappointment and ill-success: if the prediction proved false, gentlemen would feel too much satisfaction in the success of their country to think of it; if it proved true, those who made it would triumph, as they would certainly feel some satisfaction for their superior sagacity. But while I thus give credit to the opposition for their predictions, I also claim some credit for those on my own side of the question; for when Jacobinism was at its greatest height, when its influence circulated through every part of the French government, and when Robespierre governed the country with the most absolute sway, even then its fall was foretold in that house, and happily with truth. But let me not be misunderstood. I do not mean that by the accession of the moderates to the sovereign power in France, the possibility of our treating with them has become greater. The only difference between them and the Jacobins is, that they professed the intentions, though they had not the power of the latter. Their hostility to this country is equal to that of the Jacobins; and the house will have an opportunity of judging what reliance can be placed on their moderation by the terms they may give to the Dutch, who were not instigators of the war, but compelled to join in it; and if the terms they give to the Dutch prove hard, what might this country expect? If we could even have a peace now with France, it would be an insecure one. It must be a peace with all the inconveniences and expenses of a war establishment; such a peace as this country would never assent to." On this occasion Pitt was mortified by the opposition of his friend Wilberforce, who objected that the obvious tendency of the address was to pledge the house to a prosecution of the war till there should be a counter revolution in France. He expressed himself alarmed at the terrible doctrines which had been promulgated from the throne and reiterated from the ministerial side of the house. A perpetual war, which could only cease with the restoration of the French monarchy, was to him a startling proposition, calculated to shock his principles and appal his feelings. Wilberforce deprecated both the speech and address, and took an extensive view of the comparative state of both countries after a long and sanguinary conflict, in which both had intensely suffered; and he concluded with moving an amendment, embracing the principal topics in the speech. Several members spoke in favour of the amendment; and Pitt rose with excited feelings to reply. He remarked:—"The reasons that have induced gentlemen to dissent from the prosecution of the war, seem to have possessed a considerable influence on the manner in which they speak of its justice and necessity at the commencement; and their language is fainter and feebler than I had reason to expect. Contending as these gentlemen and I did with the new and monstrous system of cruelty, anarchy, and impiety, against those whose principles trampled on civilised society, religion, and law;—contending, I say, with such a system, I could not have entertained the slightest expectation that from them would have proceeded such an amendment. It has pleased an inscrutable Providence that this power ef France should trample over everything that has been opposed to it: but

let us not therefore fall without any efforts to resist it; let us not sink without measuring its strength." Pitt affirmed that neither the speech nor the address pledged the house never to make peace with the republican government of France, though he confessed that he had no idea of a secure peace till the return of the monarchy. The change which had taken place in that government was a change merely in the name, and not in substance; it no more deserved the name of moderate than that under Brissot, which had provoked this country to war. If peace could be obtained it would not place us, he said, in a situation of confidence, and therefore precautions must be increased. Even if disposed to peace, fear would compel the French rulers to give their troops employment; and if we dissolved the continental confederacy, we could not hope to see it again restored; and then we should be exposed alone to the fury of France. In conclusion, Pitt entered into a variety of details, showing that the French finances were on the gulf of bankruptcy, and auguring from thence their final overthrow, gold ever being the sinews of war. Pitt's sentiments prevailed the amendment was negatived by two hundred and forty-six against seventy-three.

CHAPTER XXII.

{GEORGE III. 1795–1796}

Bill for the Suspension of the Habeas Corpus Act (continued)..... Subsidy to Austria..... Supplies, &c. Pitt's Plan to man the Navy, &c. The Slave-Trade Question..... Termination of the Trial of Warren Hastings..... Motion for Inquiry into the State of the Nation rejected..... Marriage of the Prince of Wales..... Parliament Prorogued..... The Affairs of Ireland..... Naval Affairs in the Mediterranean, &c. French Operations in Holland, &c. Treaties between France and Prussia, &c. Treaty between England and Russia, &c. The Campaign of the Alps..... Affairs of La Vendee..... Armies on the Rhine..... Affairs at Paris..... Meeting of Parliament..... Bill to prevent Seditious Meetings, &c.

{A.D. 1795}

BILL FOR THE SUSPENSION OF THE HABEAS CORPUS ACT (CONTINUED.)

On the 5th of January, Sheridan rose to move for leave to bring in a bill for the repeal of the suspension of the Habeas Corpus act. This motion was unsuccessful; and on the 15th the attorney-general moved for, and obtained leave to bring in a bill for continuing the suspension for a limited time. The second reading of this bill was carried on the 23rd, after a long debate, by a majority of two hundred and thirty-nine against fifty-three, when it was transmitted to the lords. It passed the house of peers without a division; but the Dukes of Norfolk and Bedford, the Marquis of Lansdowne, and the Earls of Lauderdale and Guildford entered a spirited protest against the measure. It was argued by the opposition that the preamble of the suspension act,

which stated that a dangerous conspiracy existed in the country, was not true; that a verdict in court—on the trial of Walker, Hardy, Home Tooke, and others—had shown this conspiracy to be a fabrication; and that, as no treason had been brought to light, and the alleged ground of the suspension act did not exist, if was unnecessary. On the other hand it was argued, that the determination of the jury was no proof of the existence of a conspiracy; that the guilty were often acquitted in courts of justice, not because they were innocent, or considered innocent, but merely because there was no strictly legal evidence to confirm the truth; and that, therefore, a verdict in their favour could not operate as a motive for repealing the act, even if it were admitted that their indictment for high treason had not been supported by legal proof.

SUBSIDY TO AUSTRIA.

Early in this year it became evident that, besides the United Provinces, both Prussia and Spain were on the point of breaking with the coalition, and concluding separate treaties with France: Prussia, from the mutual distrust which existed between her and Austria, and from her exhausted finances; and Spain from the recent defeats in Biscay and Catalonia. Austria remained our steadfast ally; but Austria too wanted money, and thought herself entitled to call upon England for a subsidy. On the 4th of February Pitt delivered a message from the king, intimating that a loan of nearly five millions sterling would be wanted to aid the exertions of his imperial majesty in the ensuing campaign, on the credit of the revenues arising from his hereditary dominions. Much discussion arose upon this subject. Fox said, that the recent defalcation of the King of Prussia, after he had obtained our gold, ought to operate as a caution against all advances to German princes. This was just; for the subsidy granted to the King of Prussia had been most foully applied; it had not been employed on the Rhine, or the Moselle, but on the Vistula; not against republican France, but against the Poles. Even Pitt and his supporters were forced to admit that the conduct of Prussia was bad; but they insisted that there was a wide difference in the case and conduct of Austria, whose own vital interests were dependent on the issue of this war. Austria also had shown herself sincere in the cause; her generals might have made mistakes, but she had made great and costly exertions in the common cause, and, notwithstanding failures, still remained firm. The motion for complying with the emperor’s demands was agreed to by large majorities.

SUPPLIES, ETC.

After previous discussions on the navy and army estimates, on the 23rd of February Pitt submitted his annual statement on the supplies to the consideration of the house. The force required for the service of the year was 85,000 seamen, and 15,000 marines; 120,000 regulars for guards and garrisons; 56,000 militia; 40,000 regulars for Ireland, and the West Indies, and other colonies; besides fencibles and volunteers, foreign troops in British pay, and embodied French emigrants. The supplies demanded for the support of these forces were £16,027,000, to which sum was to be added £200,000, annual subsidy to the King of Sardinia. The whole expenditure amounted to £27,540.000, and the loan proposed was £18,000,000, the largest, up to this period, ever voted by parliament. In order to make up the remainder, new duties were imposed upon tea, coffee, raisins, foreign grocery and

fruits, foreign timber, insurances, writs, and affidavits, hair-powder, licenses, &c.; and to increase the receipts of the post-office, the privilege of franking letters was somewhat abridged. As a counterpoise for these additional burdens, Pitt mentioned the extraordinary increase of commerce, which, in the preceding year, had exceeded that of the most flourishing period of peace. The ways and means were voted as Pitt desired; but some of his adherents were not very favourable to some of the new duties, and especially to the powder-tax.

PITT'S PLAN TO MAN THE NAVY, ETC.

As it became expedient to devise some method for the levying of soldiers and sailors, Pitt brought forward a new plan for manning the navy without throwing the burden so heavily on a particular class of persons by press warrants. He proposed that the proprietors of merchantmen, who were deeply interested in our naval superiority, should, on clearing out their ships, furnish a certain number of men according to the tonnage of each ship; and that every parish in the kingdom should furnish one man. This proposition, with a few modifications, passed into a law, and officers were appointed to superintend the levies. Subsequently, Mr. Windham, as secretary at war, proposed the improvement of the discipline, and the augmentation of the numbers of the militia, as a means of internal defence. This was objected to by Fox and Sheridan, as tending to increase the influence of ministers, and as preparatory to the establishment of arbitrary power; but it was carried with the usual ministerial majority. At this time provisions were so expensive, arising from the war and from scarcity, that the pay of the military was wholly insufficient for their support; and government, without applying to parliament, granted them an extraordinary allowance. This was properly objected to by the opposition, as tending to impress the recipients with the false idea that the bounty proceeded from the crown, and not from the pockets of the people, and as being an insult offered to the legislature, which was sitting at the time. General Macleod moved that a committee should be appointed to take the matter into consideration; and so strong were the feelings of the house upon the subject, that, though Pitt endeavoured to exculpate the ministry by representing the relief as temporary and arising out of the circumstances of the moment, &c.; this motion was only got rid of by the previous question, which was carried by a majority of sixty-seven against twenty-three.

THE SLAVE-TRADE QUESTION.

On the 26th of February, Mr. Wilberforce brought the question of the slave-trade before the house of commons again, by moving for its total abolition. But this was opposed as before by the West Indian, or rather self-interest; and on a division, the motion was postponed for six months, by a majority of seventeen.

TERMINATION OF THE TRIAL OF WARREN HASTINGS.

The trial of Warren Hastings terminated on the 23rd of April. The public interest in this trial had been much diminished by its prolongation; and at this time it seems to have been superseded by other matters of overwhelming importance. Only twenty-nine peers assembled at the final judgment; to each of whom every one of the sixteen articles was put separately, with the question of guilty or not guilty. On two

charges he was unanimously acquitted; and with respect to the others the votes varied from three to six “guilty,” against the remainder “not guilty.” The lord chancellor then pronounced Warren Hastings acquitted of all the charges, and the ex-governor bowing to the court retired in silence. The propriety of his sentence was chiefly disputed by the advocates of strict justice; the public in general seemed satisfied with the result of the trial. The East India Company paid him the cost of his trial, amounting to more than seventy thousand pounds sterling, and conferred upon him a pecuniary donation. This was nothing but just; for Hastings had attended more to their interests in his government than his own: if he was cruel, it was for them; and if he exacted money from tributaries beyond that which was due, it was for them likewise. It must be confessed that the conduct of Hastings was, in some instances, inconsistent with the rules or British justice and the sentiments of humanity; but, at the same time, it must be confessed that his abilities secured the authority and established the dominion of this country over the east.

MOTION FOR INQUIRY INTO THE STATE OF THE NATION REJECTED.

On the 24th of March Fox moved that a committee of the whole house should inquire into the state of the nation. His speech on this occasion is characterized by Burke as one of the most eloquent ever delivered in the house of commons. In it he showed the necessity for inquiry, from the rapid progress of the enemy and their acquired superiority; from the losses sustained by our armies, and from the vast expenditure and increased taxation. Fox then adverted to the affairs of Ireland; the recall of its lord-lieutenant, which had recently taken place; and to the general irritation of its inhabitants. He then alluded to the dissatisfaction which prevailed in England, asserting that an opinion was gaining ground among the people, that, since the commons complied with every measure proposed by ministers, they could not fairly represent the nation. He asked what were the grounds for confidence in men whose schemes continually miscarried? And, supposing the war to be just, did the succession of plans and events afford any reason for reposing unlimited confidence in his majesty’s present counsellors, as wise, energetic, and effective war ministers? In conclusion, he said, that if ministers really deserved confidence, they would not resist inquiry, as no man, conscious of an able and upright discharge of his duty, would shrink from an investigation into his actions. Pitt allowed that some of the subjects proposed by Fox were of the highest importance; but he objected to inquiry as being incompatible with other parliamentary business. Part of the proposer’s objects, also, he said, were inexpedient and unreasonable; he had exaggerated our losses, detracted from our advantages, and on the whole exhibited an unfair statement of our situation. Mr. Canning followed on the same side as Pitt, and argued with reference to Ireland, that its turbulent situation was a sufficient excuse for declining all such discussions at present. Fox and Sheridan replied, that the minister, instead of meeting, had only shifted the question; that if the state of the country had been misrepresented, the means of refuting this misrepresentation lay in a fair investigation of conduct. The motion was rejected by two hundred and nineteen against sixty-three; and a similar motion made six days after in the lords, by the Earl of Guildford, was negatived likewise by a large majority. Motions were subsequently made in both houses for an inquiry respecting Irish affairs, but with the same

ill-success.

MARRIAGE OF THE PRINCE OF WALES.

The marriage of the Prince of Wales with the Princess Caroline of Brunswick took place on the 8th of April. At the time it was generally supposed that his royal highness was influenced in forming this connexion by the promise of an ample provision to pay his debts, now amounting to the enormous sum of £600,000. Be that as it may, on the 27th of April, his majesty sent a message to the house announcing the marriage; and at the same time expressing deep regret in being obliged to declare, that the benefit of any settlement which might then be made could not be effectually secured to his royal highness, except he were provided with the means of liberating himself from the large encumbrances to which he was liable. At the same time his majesty disclaimed all idea of proposing that parliament should make any specific provision for that object: rather, he requested the house to consider the propriety of providing for the gradual discharge of those encumbrances by the reservation for a time of the revenues of the Duchy of Cornwall, as well as of a proportion of his royal highness's annual income. After some discussion, the house, on the suggestion of Pitt, determined that £125,000, together with the rents of the Duchy of Cornwall, estimated at £13,000, should be settled upon the prince, and that £78,000 should be applied annually out of his total income for the liquidation of his debts. A law was also passed to prevent the heir-apparent in future from being involved in similar difficulties; and a jointure of £50,000 per annum was settled on the Princess of Wales, in case she survived her royal consort. All this was carried by large majorities, but there were few who imagined that this settlement was a final one.

PARLIAMENT PROROGUED.

The king prorogued parliament in person on the 27th of June. In his speech his majesty expressed a hope "that the present circumstances of France might, in their effects, hasten the return of such a state of order and regular government, as might be capable of maintaining the accustomed relations of peace and amity with other powers." He also remarked that our main reliance for success must be on our naval and military forces: thereby indicating the continuance of the war.

THE AFFAIRS OF IRELAND.

Allusion has been made to the agitated state of Ireland. That country was, indeed, at this period, every day approaching nearer to the verge of open rebellion.

The progress of the United Irishmen had not been stopped by the conciliatory measures of 1793; for early in the following year they published a plan of equal representation on the principle of universal suffrage. Before the close of that year their association in truth became so manifestly revolutionary that it demanded the interposition of government. A charge of treasonable correspondence with the French rulers was brought against Archibald Hamilton Rowan; but he with others of the association fled to the continent. In the following year the Rev. William Jackson, a Protestant clergyman, was tried and found guilty, and in order to avoid the shame of a public execution he swallowed a dose of poison at the bar of the court. All this

tended to prove that Catholic emancipation, however extensive it might be in its principles, would never satisfy the people of Ireland. Nevertheless, Earl Fitzwilliam, the then lord-lieutenant, resolved to try the efficacy of that measure. That nobleman, indeed, imagined that he was authorised to carry such a measure into effect when he accepted the office of viceroy. Acting under this supposition, his first step was to remove from their places such servants of the government as he knew would be hostile to his proceedings. Among those he removed was the right lion. John Beresford, first commissioner of the revenue, whose family had always been ardent supporters of ministerial measures. But this act gave great offence to the English cabinet; and as Earl Fitzwilliam refused to alter his arrangements, it was resolved to recall him. In the meantime Mr. Henry Grattan brought in a bill into the Irish house of commons for the repeal of all the remaining disqualifications of the Roman Catholics. This bill was received so favourably that only three dissentient voices were heard against it: and, encouraged by it, the Catholics sent a deputation to the king deprecating the removal of a viceroy who had gained the confidence of the people. These deputies were graciously received; but the burden of their petition was not granted: Earl Fitzwilliam resigned, and Lord Camden was appointed his successor. Lord Camden commenced his administration under ominous circumstances; for on the 31st of March, when he was sworn into office, the primate and Lord Chancellor Fitzgibbon were attacked by a mob on their return from the Castle, and narrowly escaped with their lives. His unpopularity increased, chiefly because he as strenuously opposed Catholic emancipation as Lord Fitzwilliam had supported it. On the 4th of May a bill was brought in for that purpose, but after a violent debate it was rejected by a large majority. In order, however, to soothe the chafed minds of the people, a motion was carried this session for the establishment of a college at Maynooth for the education of young Irishmen destined for the priesthood, and who were at this time deprived of the advantages of foreign universities from the disordered state of the continent; and the Catholics also obtained permission to study at the university of Dublin. But these indulgences were not duly appreciated. From this time the society of United Irishmen rapidly extended itself over the whole kingdom. They formed, indeed, a new system, combining malcontents of every class and of all religious persuasions against the government. The leaders of the society began, in fact, to entertain dangerous designs, and to form illegal and treasonable connexions with the government of France. Towards the close of the year, disaffection became so general that the existing laws were deemed insufficient to repress popular violences, and the Habeas Corpus Act was suspended, by which the agents of government were enabled to imprison obnoxious or suspected persons without any cause assigned, or any time of trial appointed. In the western counties, government resorted to a measure which nothing but stern necessity could justify. By an act which passed in January, the lord-lieutenant and council were authorised, on a petition from seven magistrates of a county assembled at a session of the peace, to proclaim that county, or any section of it, to be in a state of disturbance, and to empower the magistrates to treat all suspected persons as culprits, and in default of bail to send them on board the fleet. This act also, which was called the Insurrection Act, enacted that the administering of treasonable oaths, which was a practice in the society of United Irishmen, was a capital offence; and that in case a witness was

murdered, which frequently happened, before a trial, his written testimony should be considered sufficient evidence. While government was thus grappling with the disaffection which prevailed, a body of men united under the name of Orangemen, for the purposes of security. This was natural; but, unfortunately, it only increased the religious animosities which already existed between the two parties. Government, moreover, began to embody an armed yeomanry to assist the regular troops and the militia. In the course of six months this force amounted to 37,000 men, and it was still increasing. But nothing could allay the fury of the storm that was gathering over the country. The leaders of the United Irishmen were as active as government; and in a short time the plan of an invasion was settled between them and the French rulers. This invasion was the subject of familiar conversation both in England and Ireland; yet the British government, either doubting or disregarding the intelligence, neglected to take suitable measures for defence. In the meantime mutual injuries between the society of United Irishmen and the Orangemen, many of whom on both sides were desperate and abandoned characters, engendered a fixed hatred between them; and these dissensions rapidly increased, till the whole country exhibited a scene of terror, consternation, and blood. In their encounters the Orangemen were generally victorious; and in the end, in the county of Armagh, where the Association was first formed, they succeeded in expelling several thousands of Catholics from the county. During the latter part of this year and the commencement of the next, the roads leading from the city of Armagh presented the most heart-rending scenes: groups of miserable families were seen endeavouring to escape from their persecutors into the south and western districts of the country. So strife and tumult prevailed among brethren.

NAVAL AFFAIRS IN THE MEDITERRANEAN, ETC.

The French government made great exertions to put their navy on a respectable footing; but all their efforts on the ocean led only to disaster. On the 28th of February their commander, Rear-Admiral Pierre Martin, sailed out of the harbour of Toulon with fifteen sail of the line, six frigates, and three corvettes, having positive orders to engage the English fleet under Vice-Admiral Hotham, if he met it, and to drive the English out of Corsica. At that time the Mediterranean fleet under Hotham, which consisted of thirteen sail of the line, four frigates, and two sloops, with two or three Neapolitan ships, was at Leghorn; and the enemy succeeded in capturing the Berwick, of seventy-four guns, which found itself suddenly surrounded by the enemy. On discovering the intentions of the enemy, Admiral Hotham instantly unmoored and went in search of them. The two fleets came in sight of each other on the 12th of March, between Corsica and Genoa, and a partial engagement ensued, in which two French ships of the line, the Ca Ira and the Censeur, fell into the hands of the British, principally through the skill and courage of Nelson, who commanded the Agamemnon. This action saved Corsica for the time; but the victory was incomplete; and soon after, the arrival of six ships of the line at Toulon from Brest gave the French a decided superiority as regards numbers of ships. Had they known how to have used it, they might have made themselves masters of the Mediterranean; for the British navy, though manned by brave sailors, was not in a condition to withstand a superior force. On this subject, Southey remarks:—“The British navy had been much

neglected during Lord Chatham's administration at the admiralty; and it did not for some time feel the beneficial effects of his removal. Lord Hood had gone home to represent the real state of affairs, and solicit reinforcements adequate to the exigencies of the times, and the importance of the scene of action; but that fatal error of under-proportioning the force to the service, that ruinous economy which, by sparing a little, renders all that is spent useless, infected the British councils; and Lord Hood, not being able to obtain such reinforcements as he knew were necessary, resigned." For three long months the Mediterranean fleet was left in its state of inferiority; but at length, on the 13th of June, it was joined by eleven sail of the line and several frigates. Since the recent battle the French admiral had avoided an encounter, although superior in force; but he now shunned it more cautiously than ever. Hotham, however, got sight of the French fleet near Cape Roux; and in a chase which he gave it, succeeded in capturing the Alcide; the rest of the ships got safely into Frejas Bay. These were the chief events on the ocean during this year; except by Nelson, who was detached on some coast service, scarcely another gun was fired in the Mediterranean. Many encounters of detached ships took place, generally to the advantage of the English; but the only other action which occurred was between the Channel fleet, of fourteen sail of the line, under Admiral Lord Bridport, and a part of the Brest fleet, consisting of twelve ships of the line and eleven frigates, under Vice-Admiral Villaret. In this action three French ships were taken; the rest fled for protection to their own port and their own land batteries. In the West Indies the English cruizers and squadrons were not so successful; all their vigilance was not sufficient to foil the daring projects of Victor Hugues. The French, indeed, recovered the whole of Guadaloupe, attacked with success the fort of Tiburon, in St. Domingo; and made themselves masters of St. Lucia; Grenada, Dominico, and St. Vincent's were with difficulty preserved. But in these victories the French revolutionists were aided by the negro population. Victor Hugues flew from island to island, preaching liberty and equality to the negroes and all people of colour, and a crusade against the English and French royalists; and it was chiefly by this means that, the French were victorious. The African slave learned to adopt the tri-colour flag and the red cap of liberty, and the British were either butchered, or forced to flee from the recaptured islands. Under the same auspices, the Maroons, of Jamaica, likewise commenced a sanguinary conflict with the English, and did not lay down their arms till they were nearly exterminated; those who escaped the slaughter consented to be removed to Canada, where a portion of land was allotted to them.

FRENCH OPERATIONS IN HOLLAND, ETC.

It has been seen that when the Duke of York returned to London, he left the command of the British troops to Count Walmoden, and that Walmoden was attacked by the French army on the Waal, under Pichegru. It became evident that nothing but a hasty retreat could save the British army from destruction; and, after spiking their guns, and destroying all the ammunition they could not carry away, on the 16th of January they retired towards Leek. In his retreat Walmoden was pursued by Pichegru; but Walmoden, after sustaining several assaults, and after a march of nearly two months through countries inimical to the British, finally reached the mouth of the Elbe, when the Duke of York's army embarked at Bremen for England.

Throughout their whole route it was manifest that the population of Holland were, in the main, revolutionists; in every Dutch town and village through which they passed, the majority of the inhabitants looked upon them as the original cause of the calamities inflicted upon their country, and took every opportunity of insulting them in their misery and adding to their sufferings. Now that the British were departed the feelings of the Dutch were manifested in a clearer light. Before this, our ally, the stadtholder, and his son, the hereditary Prince of Orange, had fled for refuge to England, so that the democrats, which everywhere abounded, had no check in a display of their principles. Those of Amsterdam planted the tree of liberty in the chief places of the city, mounted the French cockade, and gave an enthusiastic reception to Pichegru. Utrecht, Rotterdam, Haerlam, Leyden, Flushing, Middlebourg, and Bergen-op-Zoom, one of the strongest fortresses in the world—these all fell into the hands of the French, either by conquest or by treachery. The States-general, indeed, or as many of them as chose to assemble at the Hague, issued proclamations, calling upon the people to admit the friendly troops of the republic; so that scarcely one of the many fortresses which studded the country, made more than a show of resistance. Many of them had opened their gates to the republican troops of France before the Duke of York left the country, and those which remained in the occupation of the Dutch, or of German troops in the pay of the stadtholder, for the most part now followed their example. Holland fraternised with France. A requisition of clothes and provisions for the use of the republican army, to the amount of one million and a half sterling, cooled the ardour of the thrifty Dutchmen for a moment; but it soon returned, on considering the blessings they were to obtain for their money. They were flattered by a convocation of a representative assembly, on the principles of equality and liberty: an assembly which abolished the hereditary stadtholderate, with all the forms of the preceding constitution, published the declaration of the rights of man, reversed the sentences passed in a previous year against democrats, and recalled all those who had been exiled for their democratical principles. On discovering this movement in Holland, the English government immediately laid an embargo upon all Dutch ships and goods in the ports of Great Britain, Ireland, and our colonies; and the ministry soon took into consideration the important subject of the Dutch colonies. An expedition was sent out on the 14th of July, under Vice-Admiral Sir G. Keith Elphinstone and Major-General Craig, who took possession of the Cape of Good Hope. Instructions were also sent to our naval and military commanders in the East Indies, to prepare for the reduction and occupation of the Dutch settlements in that part of the world; and about the close of the year all the places which the Dutch held in Ceylon, with Malacca, Cochin, Chinsura, Amboyna, and Banda, fell into the hands of the British. Other plans were also arranged for the seizure of the Dutch colonies in the West Indies, and on the coast of South America. Holland was, therefore, now reckoned among the enemies of England.

{GEORGE III. 1795–1796}

TREATIES BETWEEN FRANCE AND PRUSSIA, ETC.

Although the King of Prussia had been the first of all the coalition to assail republican France, yet, in the spring of this year, he concluded a separate treaty with its democratic rulers. This treaty was settled at Basle on the fifth of April; and by it the king ceded to France all the Prussian territory on the left bank of the Rhine, and France restored to Prussia the territories that her armies had overrun on the right bank of that river. Both the contracting parties pledged themselves not to grant a passage to the enemies of the other through their territories; and all prisoners taken respectively since the war commenced were restored. All the commercial communications and relations between France and the Prussian states were re-established by this treaty on the same footing upon which they stood before the war. At a later date, on the 17th of May, a supplementary treaty was concluded at Basle, for the purpose of establishing a line of demarcation and neutrality, in order to remove the war from all the north of Germany. One link cf the chain being thus broken, others soon snapped asunder. In the early part of this year the French met with great success over the Spanish troops, and again threatened to advance even to the gates of Madrid. Dismayed and discouraged, and, moreover, urged on by a strong French party, Godoy, the prime minister, humbly sued for peace. This was granted at the price of that part of the island of Saint Domingo which the Spaniards had possessed since the time of Columbus; and the proud monarchy of Spain with its Bourbon monarch, recognised the French republic, and engaged to a reciprocity of friendship and good understanding. As a testimony of amity to his Catholic majesty, the French government agreed to accept his mediation in favour of the King of Portugal, his relatives and allies, the King of Naples, the Infanta Duke of Parma, the King of Sardinia, and the other states of Italy; and to accept his good offices in favour of other belligerent powers that should apply to him in order to enter into negociations with the French government. This example of the kings of Prussia and Spain was followed by the Grand Duke of Tuscany; and even George III., in his quality of Elector of Hanover, though he remained the most active member of the confederacy in his capacity of King of Great Britain, ordered a treaty of peace to be signed, as far as related to the electorate, as did also the Landgrave of Hesse Cassel. Moreover, the court of Sweden, and the Protestant cantons of Switzerland, recognised the French republic, as well as its dependency the Batavian republic, that is, the United States of Holland.

TREATY BETWEEN ENGLAND AND RUSSIA, ETC.

Ever since the commencement of the war, great exertions had been made to bring the Empress of Russia into the coalition. That sovereign had an instinctive dread of the French revolution and its principles; but imagining that she had but little to gain by becoming a party to the war in the west of Europe, she constantly declined joining the allies. At length, however, on the 18th of February, she was induced to consent to a treaty of defensive alliance with Great Britain; in which treaty, the contracting parties guaranteed to each other all their dominions, territories, &c., as well such as they actually possessed, or might hereafter acquire, by treaty; and agreed, that in case of one of them being attacked by sea or land, the other was immediately to send succour: Russia was to send land troops to the aid of Great Britain, to the number of 10,000 infantry and 2,000 horse, and Great Britain was to send a squadron of twelve

ships of the line to the aid of Russia. A treaty of defensive alliance, upon the same principles, was also concluded between the Emperor of Germany and England, the succours on either side, in case of attack made, being 20,000 foot and 6,000 horse. But these treaties meant little more than that Russia might, at some time, require the assistance of an English fleet, and that Austria would require an English subsidy. Equally unprofitable to England was a treaty, or agreement, entered into at the close of this year, with the infidel and piratic Dey of Algiers. This last treaty originated with Sir Gilbert Elliot, the viceroy of George III. at Corsica. There had been for a long time a mortal hatred existing between the Corsicans and the Algerines; and Sir Gilbert Elliot wished to conciliate the latter. By this treaty, the Algerines were to be permitted to carry their prizes into the forts of Corsica, and to sell them there; whilst the Corsicans were to be permitted to frequent the African coast for the coral fishery, &c., on condition that the Viceroy of Corsica should pay to the Dey of Algiers 179,000 piastres, and a further sum of 24,000 piastres for a cargo of grain which had been taken by the English from the Algerines.

THE CAMPAIGN OF THE ALPS.

During the severity of the winter, the French, who had taken possession of the Alps, were in a state of miserable destitution from desertion and sickness, and no measures were taken by the convention to reinforce them. On the other hand, the courts of Vienna and Turin were making vigorous efforts for prosecuting the war on the Piedmontese frontier. All that the republicans aimed at, was to retain possession of the posts they had gained on the Alps; but, after various actions, they were obliged to evacuate every position on the maritime Alps, and the allied armies threatened the country of Nice and the territory of the republic. If the allies had pushed their advantages with vigour, the republicans must have lost more; but they, as was their general rule, were sluggish and irresolute. Nelson, who had been detached with a small squadron to co-operate with the Austrian general, Devins, and who served on the coast of Nice, was almost frantic at his sluggishness. A plan had been formed for getting between the French divisions that occupied the Nissard territory and a part of the Western Riviera, or coast of the republic of Genoa, for taking the first of these divisions in the rear, and for blockading the port and city of Nice. But planning and executing were two different things. To carry out the plan proposed it was necessary that the allies should occupy the town and bay of St. Remo; but when Nelson suggested its capture, Devins, imagining that Nelson wanted possession of St. Remo for its harbour, argued that the bay of Valdo, which could be of no service in reducing Nice, was a much better and safer anchorage. He finally agreed to send 10,000 men to St. Remo, if Admiral Hotham would send him ten ships of war, and transports sufficient to carry them; but Hotham declined sending any more ships, and the plan therefore failed, the old German attributing its failure to the British admiral. While these divisions paralysed the movements of the allies, the Alpine legions of the republicans were re-enforced by 7000 men from the Eastern Pyrenees, and 10,000 from the army on the Rhine. Moreover, the neutral powers and states assisted France more effectually than the allies assisted each other. Great as had been the insults and wrongs which the Genoese republic had suffered from the French republic in 1794, yet privateers carried abundant supplies of provision from Genoa to the French

armies. Moreover, while the Genoese senate presumed to claim from the British fleet all the rights of a neutral state, they allowed all their roadsteads, bays, harbours, and even the well-defended port of the city of Genoa itself, to be crowded with French privateers, and men were enlisted in the city for the French army. Thus re-enforced and supported, Massena, who commanded the republicans, at length made a general attack on the confederates, assisted by Generals Scherer and Serrurier. The allies were so supine that they were not aware of his movements till a cannon-ball, at sunrise of the 23rd of November, aroused them from their lethargy. The French general's great object was to get between the Austrians and Piedmontese, to cut them off from one another, and then to defeat them in detail: no very difficult task, as both armies were indiscreetly scattered over a wide extent of mountainous country. The battle took place among rocks and precipices, and in the midst of a storm of hail and snow. The republicans were everywhere successful: the centre and the right wing were beaten from post to post, and at last put to flight; and the left wing, though it withstood the shock of assault bravely, was compelled to flee likewise. It is said that many thousands took to flight who had never seen the enemy, and some of whom were thirty miles from the advanced posts. The retreat, indeed, became a rout, and the republicans captured 5000 prisoners, all the artillery of the allies, and an immense store of ammunition. This terminated "the campaign of the Alps," for the Austrians and the Piedmontese were driven from all that coast, and the French triumphantly wintered in Vado and Savone.

AFFAIRS OF LA VENDEE.

During this year the pacification of the Vendee was effected. Charette with a few thousand royalists had, in the winter of 1794, maintained the contest there, and the princes of Europe looked up to him as the only man capable of restoring the royal cause. After some slight reverses, however, Charette listened to overtures made by secret agents of the convention; and at the end of February, 1795, a treaty of peace was concluded and signed. It seems probable that Charette was the more induced to take this step from the moderation recently displayed by the French government. It soon became evident, however, that neither party was sincere, that each suspected the other, and that both were preparing for another struggle. The seeds of inextinguishable discord prevailed between them, and this promised a future outbreak. Charette, indeed, seemed, after he had signed the treaty, to be living the life of a country gentleman; but all the while he was carrying on a secret correspondence with the Bourbon princes, and receiving supplies from England to aid him in his future operations. It would have been well for Charette if money had been all that he obtained from England; but, unfortunately, a number of emigrants crossed the Channel, and led him and the rest of the Vendean chiefs on to their ruin. The English ministry, indeed, embarked 6000 of these exiles in our pay, and a regiment of artillery from Toulon, as well as arms and accoutrements for 80,000 men. These were separated into two divisions; and a third, composed of British troops, was destined to support the whole when they had landed on the coast of France. The chief command of the expedition was given to the Count d'Artois, and great hopes were entertained of success, as the Chouans and Vendeans had engaged, on his landing, to place 80,000 men at his disposal. Subsequently, however, the Count d'Artois gave up

the command to Puissaye, together with some £10,000 in gold, and several millions of livres in assignats. In expectation of being joined by numerous bands of royalists, Puissaye took with him 27,000 muskets, powder in abundance, and complete uniforms for more than 20,000 soldiers. All obstacles in the way of transporting his troops to France were removed by the defeat of the French fleet, from Brest, by the Channel fleet under Lord Bridport, in which the French lost three ships of the line, and were obliged to seek shelter with those that remained in the harbour of L'Orient. Under these auspicious circumstances, the expedition set sail; and on the 27th of June appeared in Quiberon Bay, where the troops immediately landed, and took Fort Penthièvre, situated on a small peninsula, or promontory, which encloses Quiberon Bay on one side, and which is joined to the main land by a low sandy isthmus, called La Falaise. The news of the disembarkation of these troops caused great sensation through all France; the bravery of the Vendean peasants in their recent conflicts had been deeply remembered. But by the time they had landed, the whole of Brittany was enveloped by three or four armies under the command of Hoche, while General Canclaux, who had collected a large force to watch Charette, prevented the arrival of any succour from the Vendée. Hoche took immediate measures to avert the danger. Having disposed a part of his forces so as to overawe Brittany, he proceeded with 7000 men to the peninsula of Quiberon, and drove back the royalists to their intrenched camp near Fort Penthièvre. Here the royalist troops were shut up by the forces of Hoche; and while in this situation an open rapture took place between the emigrants and Chouans. Desertions became frequent, no new royalist troops arrived, and nothing was heard of the forces that had been promised from Jersey, the Elbe, and the English coast. But had all these forces arrived simultaneously it would have been to no purpose, as Hoche and Caudaux had collected such immense forces, and had cast, up such strong intrenchments on the heights of St. Barbe, which commanded the sandy isthmus of La Falaise, that no hope could be entertained of dislodging them. On the 15th of July the English convoy arrived with some royalist troops from the mouth of the Elbe, under the Count de Sombreuill; but their total number did not exceed 1100 men, which did not make up for the recent losses by desertion. Yet, encouraged by their arrival, before they had well landed, Puissaye detached Vauban with 12,000 Chouans to make a diversion on the right of Hoche's camp, to effect a junction with some other insurgents, said to have been gathered behind the heights of St. Barbe; while Puissaye himself marched from the narrow promontory, crossed the sandy desert, and boldly attacked the republicans in front. But all their efforts were fruitless: after some desperate fighting the royalists once more were compelled to retreat to their intrenched camp on the isthmus of La Falaise. There was treachery in that camp. In Puissaye's army there were Frenchmen who had enrolled in it merely for the chance of escaping from England, and these now settled with the republicans, to desert and put them in possession of Fort Penthièvre. This dark deed was done on the dark and stormy night of the 20th of July, when a detachment of republican grenadiers having approached near to the spot, some of these sham royalists who were on guard betrayed the fort, and assisted in slaughtering their own comrades. All was lost; the storm prevented the British fleet from approaching the coast; hundreds perished in the waves, and thousands by the sword of their own countrymen. Early on the morning of the 21st, the British frigates

worked up to the south-east point of the peninsula, and received on board, by means of boats, about 2500 men; the rest were made prisoners or perished, and nearly all the arms and uniforms, with the ammunition and stores, were left behind for the benefit of the republicans. Those royalists who were taken prisoners were all marched off to Vannes, where a sort of military tribunal condemned the Count de Sombreuill, the Bishop of Dôl, and all the officers and gentlemen taken; and these being-all shot, the common men enrolled themselves in the republican army. The broken remains of this expedition were landed in the isle of Plouat, where they were soon afterwards joined by 2500 men from England, who gained possession of the Isle d'Yeu; but at the close of this year the English troops were re-embarked, and both ships and men returned to England.

In the meantime, as soon as Canclaux weakened his army to strengthen that of Hoche, and crush the royalist expedition at Quiberon Bay, Charette resumed the offensive, and had gained several advantages over the republicans. He looked eagerly for the promised arrival of Count d'Artois; and on the 10th of October the count disembarked at Isle d'Yeu. While here a place of rendezvous was appointed, and Charette, fully assured that the prince would land at the port of La Tranche, united his forces, dispersed some republican detachments, and cut his way to within a day's march of the appointed place. But Charette was doomed to be disappointed; the count's aide-de-camp here met him, with the intelligence that his highness had changed his mind, and would choose a more opportune moment and a better place for landing. The Count d'Artois returned to England; and from this time the affairs of the royalists in the western provinces rapidly declined. The efforts of the Chouans and Vendeans were, indeed, confined to a species of guerilla warfare, which, as will be seen, was completely extinguished in the following year, by the republicans under Hoche. On discovering the determination of the Count d'Artois the brave Charette saw the extent of his fate. "My friends," he exclaimed to those around him, "we are lost; this is my death sentence! To-day I have fifteen thousand troops around me, to-morrow I shall not have three hundred." Charette fell back immediately from the coast; and he soon had the mortification of seeing his troops dispersing, and his enemies gathering around him on all sides. Such was his situation at the close of this year.

ARMIES ON THE RHINE.

During this campaign Moreau commanded the army of the north, encamped in Holland; Jourdan that of the Sambre and Meuse, stationed near Cologne; and Pichegru that of the Rhine, cantoned from Mayence to Strasburg. The contending armies were separated by the Rhine, from the Alps to the sea, at the commencement of the year; and nothing was done on either side till the end of June. At that time the old Austrian general, Bender, who, on the retreat and dissolution of the grand army of the coalition, threw himself into Luxembourg, was reduced by the republicans to capitulate; himself and numerous garrison being allowed to retire to Germany, upon condition or not serving against the French till exchanged. With the exception of Mayence, the republicans were now masters of the whole left bank of the Rhine, and of the estuaries through which the Rhine flows into the North Sea, from Holland to

Strasburg. After the conquest of Holland, as before related, Pichegru undertook the reduction of Mayence, which was occupied by imperial and Austrian troops; and, as preparatory steps, he crossed the Rhine, captured Dusseldorf, and occupied Manheim. At this time Wurmser, one of the most active and skilful Austrian generals, was advancing with a good army to effect a junction with Clairfait, succour Mayence, and drive the French from the left bank of the Rhine. Pichegru endeavoured to prevent this junction by detaching a division against him; but Wurmser drove this division back with great loss to Manheim. Soon after this Pichegru was joined by Jourdan; crossing the Rhine he established himself on the right bank, opposite the town, to cover the siege and assist in it. But at this period the balance of fortune suddenly turned in favour of the Austrians. Being reinforced by 15,000 Hungarians, General Clairfait made a rapid and skilful advance, took Jourdan by surprise, obliged him to decamp hastily, and leave part of his artillery behind him, and harrassed him during the whole of his route to Dusseldorf, and there compelled him to re-cross the Rhine. Clairfait now threw a considerable part of his army across the Rhine into Mayence, in spite of the French lines drawn around it; and on the 29th of October he took those lines, which had cost the French a year’s labour to construct, by storm; the republicans were driven from them with a terrible loss, and their battering train, with most of their field-pieces, were captured. About the same time Wurmser gained the bridge of the Necker, and drove Pichegru within the walls of Manheim. Pichegru, having strengthened the garrison, soon after quitted Manheim, recrossed the Rhine, and effected a junction with jourdan. During the month of November, Manheim, with a garrison of 9000 men, capitulated to Wurmser, who then formed a junction with Clairfait, and the two quickly recovered the whole of the Palatinate, and of the country between the Rhine and the Moselle. The Austrian generals formed a project of penetrating once more into Luxembourg; but their movements were slow, and Jourdan and Pichegru advanced along the Rhine by forced marches, and kept them in check. Several obstinate encounters took place; but the winter was fast approaching, and as both imperialists and republicans were exhausted by the campaign, it was deemed expedient to agree to an armistice, which was not to be broken on either side without ten days’ notice, and during which, each were to remain in the same position they then occupied.

AFFAIRS AT PARIS.

This year witnessed the close of the empire of the Jacobins. When the reign of terror was overthrown, there still remained two parties in Paris to contend for superiority; that of the committees of Jacobins, which endeavoured to retain the remnant of their power, and that of the Thermidorians. The Jacobins were still formidable enemies: for four days after the death of Robespierre they resumed the sittings of their club; and as they possessed a strong hold on the feelings of the populace, the Thermidorians saw that it was necessary to rouse themselves into action. For a long time, however, they found themselves compelled to proceed with great caution against their antagonists; and had they not been supported by the _Jeunesse Dorée_, it is probable that the Jacobins would have been more than a match for them. These young men, after several encounters, attacked the club at one of its sittings and dispersed them; and then the commissioners of the convention put

a seal on its papers, by which its existence, and with it the union of the democratic party, was destroyed. It was immediately after this victory over the club of Jacobins that the monster Carrier was executed; and the convention was soon able to effect more humane designs, and to abridge the power of the revolutionary tribunals. Gradually it proceeded to abolish unconstitutional measures; and at length, strengthened by the increasing force of public opinion, which appears to have undergone considerable reaction, it ventured on the impeachment of Billaud de Varennes, Collot d'Herbois, Barrère, and Vadier. These were arrested on the 2nd of March; but their arrest alarmed the other leaders of the Jacobins, and they prepared to avert the storm gathering over them. Their plan was to rouse the populace; and their design was aided by a famine which then prevailed, and by the extreme depreciation of assignats, which threatened the whole population with ruin. The revolt was organized in the fauxbourgs, and it broke out on the 1st of April. The cry of the insurgents was "Bread;—the constitution of 1783, and the freedom of the patriots." Uttering this cry a crowd rushed into the hall of the convention. Everything indicated the approach of a crisis, and the Jacobins were recovering their former audacity, when, on a sudden, a large body of the _Jeunesse Dorée_ entered the hall under Pichegru, and the power of the insurgents was restrained. The convention now proceeded to energetic measures; the accused leaders were condemned to transportation, and seven of the Jacobin members were arrested, and sent to the castle of Ham, in Picardy. But the malcontents were not yet tranquillized; they organized, indeed, a more formidable insurrection. This broke out on the 1st Prairial, or the 20th of May, when the populace of the fauxbourgs, amounting to 30,000, again surrounded the hall of the convention. This time they committed mischief; the hall was broken open, the deputy Ferand killed, and his head put upon a pike. Boissy d'Anglas, who was president, for a long time braved the violence of the mob; but he was finally compelled to quit the chair. Vernier took it when he retired, and several decrees, demanded by the populace, were then passed, These decrees were the liberation and recall of the deputies lately transported and arrested, the restoration of arms to the fauxbourgs, the arrest of emigrants and Parisian journalists, the re-establishment of the communes and sections, and the suspension of the existing committees of government, which were to be superseded by a sovereign commission. On obtaining these demands, many of the insurgents retired; and soon after the hall of convention was surrounded by the armed sections, who, after a brief struggle, obtained possession of it. Those deputies who had fled now returned, and annulled the decrees so recently passed by the minority, and ordered the arrest of some of their colleagues. The storm lasted several days; but finally the convention forced the fauxbourgs to submit; some leaders and six deputies of the "Mountain" were put to death, and the dominion of the populace was destroyed. Similar scenes were also witnessed in the provinces; everywhere the Jacobins were hunted down, and those who had practised or even favoured terrorism, were massacred. The mischief they had brought upon others, by a righteous retribution, returned upon their own heads. After their fury had subsided, and their enemies were destroyed or subdued, the Thermidorians, or the convention, proceeded to form a new constitution, widely differing from the institutions of 1793. A commission of eleven had previously been appointed to consider this subject, and the decision they arrived at was, that two

chambers were necessary: one called the lower chamber, which was to consist of five hundred members; and the other denominated the upper chamber, which was to consist of half their number. Both of these were to be elected by the people, and there were to be five directors, chosen by the two councils, one of whom was to go out of office every year. The convention saw that their fate was sealed, for all France had become weary of their sway; and therefore this directorial constitution was forthwith voted. A display of public opinion, however, was fatal to its establishment. At this time the middle class, fearing the return of ochlocracy, and the noblest patriots of 1739 and 1791, had become re-inclined to monarchy; and finding themselves the majority of the sections of Paris, they looked forward to the elections with exultation. This alarmed the members of the convention; and in order to avert the danger which might arise to themselves, they decreed that two two-thirds of the members should be re-elected, and that the convention itself should make choice of those members. But this dictatorial act met with stern opposition from the sections; with one voice they declaimed against it, and petitions and remonstrances were poured in from them to the convention. The reply made to the sections by the convention was by bringing the army to its aid; and thus supported, the new constitution and decrees were declared law. Civil war was now inevitable. The sections rose in arms to the number of 40,000 men, and prepared to resist the convention. Thus menaced, the convention assembled several thousand regular troops, and they also formed out of the republicans a battalion on whom they could depend in the contest against the royalists. The command of these forces was given to Napoleon Buonaparte, who, for his exploits at Toulon, had been appointed brigadier-general of the army in Italy. The decisive contest took place on the 5th of October, when Buonaparte, by his artillery, swept the ranks of the armed sections at every point, so that they were soon utterly routed. In one brief hour two thousand perished; and some arrests and executions confirmed the victory. By it the convention was enabled to form the two-thirds of the councils from their own body, as proposed; and having effected this, on the 26th of October, it declared its session terminated. It commenced and ended its career in blood.

{GEORGE III. 1795–1796}

MEETING OF PARLIAMENT.

During this year the public mind was in such an agitated state, arising chiefly from the dearness of bread and general scarcity of provision, and from the successes of the French, which made the war to some extent unpopular, that ministers convoked parliament for an unusually early day. It met on the 29th of October; and as the king was going down to the house of lords to open the session, he was surrounded by a numerous mob, who with loud voices demanded peace, cheap bread, and Pitt’s dismissal. Some voices assumed a menacing tone; and when the state-coach came opposite to the ordnance-office, then in St. Margaret-street, a bullet, supposed to have been discharged from an air-gun, passed through the window. His majesty behaved on this occasion with all his natural coolness and intrepidity; on arriving at the house of lords he merely said to the chancellor, “My lord, I have been shot at.” A

number of persons were immediately arrested, and carried for examination into the Duke of Portland's office; and, waiting the result of these examinations, no business was done for some hours. At length, having previously moved that strangers should withdraw, Lord Westmoreland related in a formal manner the insult and outrage with which the king had been treated; adding that his majesty, and those who were with him, were of opinion that the bullet had been discharged from an air-gun, from a bow-window of a house adjoining the ordnance-office, with a view to assassinate the king. The rage of the populace was not yet exhausted. On his return his majesty was again assaulted and insulted; stones were thrown at him, and there was a good deal of hooting and shouting, and loud cries of "Bread," "Peace," and "No Pitt!" But while one part of the mob thus assailed him, another part cheered and applauded him, and a detachment of horse-guards, which arrived as he was passing through the park, presently dispersed them all. So gross an outrage as this had not been offered to any other monarch of Great Britain since the days of Charles the First. A reward of £ 1,000 was offered, to be paid on conviction of any person concerned in the assault; and one Kidd Wake, a journeyman printer, was convicted, and sentenced to five years' imprisonment in Gloucester goal. But his majesty received much consolation from the assurances of loyalty to his person contained in the numerous addresses which were presented to him from all parts of the kingdom.

His majesty's speech on this occasion made the most of the check which the French had received from the Austrians on the Rhine. It said likewise, that the ruin of their commerce, the diminution of their maritime power, and the unparalleled embarrassments of the French, induced them to exhibit some desire for peace, and gave assurance that any disposition on their part to negociate for a general peace, on just and suitable terms, would be met, on the part of his majesty, with a full desire to give it speedy effect. At the same time the king recommended energy, in order to meet the possible continuance of the war, and the improvement of our naval superiority. An amendment, proposed by Fox, to the address was negatived.

BILL TO PREVENT SEDITIOUS MEETINGS, ETC.

On the 6th of November Lord Grenville introduced a bill in the house of lords "for the safety and preservation of his majesty's person and government against treasonable and seditious practices and attempts." On the same day a bill was introduced into the commons by Pitt "for the prevention of seditious meetings." These bills, which went to restrict the right of the people to assemble for petitioning the crown and the legislature, and for discussing political subjects, and which were therefore almost sufficient to provoke and create the evils they were intended to prevent, met with a warm opposition in all their stages and in both houses; but they were carried by very large majorities. Many members at this time connected a meeting which had taken place in June, in Copenhagen-fields, with the outrages offered to his majesty; while others were of opinion that the unchecked harangues of demagogues were calculated to lead the people into excesses; and therefore ministers met with more than usual support in these measures.

Beyond this, little was done in parliament before the recess, except the voting of supplies and receiving information relative to the failure of the last year's crop. The

number of seamen voted was 110,000, and the number of land-forces 207,000; and a loan of twenty millions and a half, including a vote of credit, was granted. On the 8th of December, a message from the king was delivered to both houses, announcing, not only the regular formation of a government in France, but a readiness to meet any disposition for pacific negociations, and to give them full effect. His majesty expressed a hope, that the spirit and determination of parliament, added to the recent successes of the Austrian arms, and to the continued and growing embarrassments of the enemy, might speedily conduce to the attainment of this object. Motions were afterwards made in both houses for addresses in reply to his majesty's message; and, in the debates, opposition argued that the recent changes in the French government rendered that nation no more fit to be treated with now, than it had been at any period of the revolution. The addresses, however, were carried in both houses by large majorities; and thus a delusive hope was held out to the people that the war was about to be terminated. Yet, had they reflected upon the temper of parliament, they could scarcely have entertained such a hope; for motions made by opposition for addresses requesting the king to open negociations with the French government, were sternly objected to by ministers, and negatived. It was left for the French to make the first advances for peace, and they were not sufficiently humbled to take such a step; so war continued.

CHAPTER XXIII.

{GEORGE III. 1796–1798}

Grey's Motion for Peace, &c. Pitt's Financial Measures..... Prorogation of Parliament..... Negociations of Peace..... Military Affairs on the Continent..... Surrender of Corsica and the Isle of Elba..... Dutch Attempt to retake the Cape of Good Hope..... French Expedition to Ireland..... . Disputes between France and America..... Meeting of Parliament..... Pitt's Financial Statement..... Mission of Lord Malmesbury to Paris..... Stoppage of Cash- payments at the Bank..... Meeting in the Fleets..... . Grey's Motion for Reform, &c. French Descent on Wales..... Battle of Cape St. Vincent..... Battle of Camperdown..... The Blockade of Cadiz, &c. War on the Continent..... Internal History of France..... Meeting of Parliament

{A.D. 1796}

GREY'S MOTION FOR PEACE, ETC.

After the Christmas recess, on the 15th of February, Mr. Grey moved an address to the king, praying him to communicate to the executive government of France his readiness to meet any disposition to negociate a general peace. Pitt in reply said that there was a sincere desire for peace, if it could be obtained on honourable terms; but that the country could not break her faith with her allies that remained true to her, or consent to any arrangement which should leave the French in possession of Belgium, Holland, Savoy, Nice, &c. The motion was negatived by one hundred and ninety against fifty. On the 10th of March the same honourable gentleman moved that the

house should resolve itself into a committee, to inquire into the state of the nation; in his speech on which he dwelt upon the enormous expenses and hopeless prospects of the war, and represented our commerce as declining, and the country as reduced to a state in which it could not bear any more taxes. Pitt and his friends insisted, however, that the commerce of the country had increased, and was increasing, and justified the lavish expenditure, though much of it was unjustifiable. This motion was also negatived; but a few weeks later Mr. Grey moved a long series of resolutions, charging ministers with numerous acts of misappropriation of the public money, in flagrant violation of various acts of parliament, and of presenting false accounts, calculated to mislead the judgment of the house. The order of the day was likewise carried against this motion, by a majority of two hundred and nine to thirty-eight. On the 10th of May an address to the king was moved in the upper house by the Earl of Guildford, and in the lower house by Mr. Fox, declaring that the duty incumbent on parliament no longer permitted them to dissemble their deliberate opinion, that the distress, difficulty, and peril, to which this country was then subjected, had arisen from the misconduct of the king’s ministers and was likely to increase as long as the same principles which had hitherto guided these ministers should continue to prevail in the councils of Great Britain. Fox enlarged much on “that most fatal of all the innumerable errors of ministers,” their rushing into a ruinous and unnecessary war, instead of mediating between France and the allied powers. He contended that his majesty, by undertaking the office of mediator, would have added lustre to the national character, and have placed Britain in the exalted situation of arbitress of the world. On the other hand, Pitt insisted that the king could not have interposed his mediation without incurring the hazard of involving himself in a war with that power which should have refused his terms. Pitt enlarged on the danger arising to all Europe from the revolutionary decree of the 19th of November, and the insult offered to this country in particular, in the encouragement given to the seditious and treasonable addresses presented to the convention. He contended, that while negociations were pending, war was actually declared by France, and that France, and not England, was therefore the aggressor. This nation, he said, had no alternative; and he asked if the house, after a war of three years, which they had sanctioned by repeated votes and declarations, would now acknowledge themselves in a delusion? whether they would submit to the humiliation and degradation of falsely arraigning themselves, and of passing on their own acts a sentence of condemnation? Pitt said that it was a war of which the necessity and policy were manifest; and that if the country should at any time suffer a reverse of fortune, he should still exhort them to surmount all difficulties by perseverance, until they could obtain safe and honourable conditions of peace. On the other hand, he added, if success should attend our arms, the prospect of obtaining further advantages should not be relinquished by a premature readiness to make peace. These arguments were deemed conclusive: the motions both of Fox and Lord Guildford were lost by immense majorities.

PITT’S FINANCIAL MEASURES.

In the course of this session two budgets were produced, and two loans contracted, amounting in the whole to £25,000,000. The total supplies granted for the year were

£13,821,430. In order to meet the expenditure many taxes were augmented, as those on wine, spirits, tea, coffee, silk, fruit, tobacco, salt, horses, dogs, hats, and legacies to collateral relatives; the assessed taxes were also increased by ten per cent.

PROROGATION OF PARLIAMENT.

This session, in which little appears to have been done, terminated on the 19th of May. In his speech from the throne his majesty expressed the happy effects experienced from the provisions adopted for suppressing sedition, and restraining the progress of principles subversive of all established government; and the highest approbation of the uniform wisdom, temper, and firmness which had appeared in all then-proceedings since their first meeting. A few days afterwards parliament was dissolved.

NEGOCIATIONS FOR PEACE.

In the course of the debate on Fox’s motion, for an address to the crown, it was stated by ministers that Mr. Wickham, our envoy to the Swiss cantons, had already had some communication with Barthélémy, the French negociator in chief, and they urged that these communications were quite sufficient to induce the republic to treat, if it really had any pacific intention. Opposition, however, urged that Mr. Wickham had not done enough to conciliate the French; and thus urged on, Pitt considered himself obliged to continue the overtures which had been made. Mr. Wickham asked Barthélémy whether the directory were desirous to negociate with Great Britain and her allies on moderate and honourable conditions, and would agree to a meeting of a congress for this purpose. Barthélémy replied, that the directory sincerely desired peace, but that they would insist on keeping Belgium, or all the Austrian dominions in the Low Countries, as they had been annexed to the French republic by a constitutional decree that could not be revoked. It was, however, as clear as the sun at noon-day that the directory did not desire peace at all; or that, if they did, it would be on terms that could not be accepted. At this very time they were not only meditating a blow at the commerce of England, by preventing the admission of English goods into any port of France and Belgium, and into any of the French dependencies, but they were fostering and entertaining a number of Irish revolutionists at Paris, and were contemplating a grand expedition to Ireland, in order to co-operate with the rebellious there, and to convert that country, as they had done Holland, Belgium, &c., into a French dependency. Yet, though it was manifest that the French directory had no desire for peace, in the autumn of this year, Pitt was induced to renew his overtures. Government applied for passports for an ambassador to go to Paris; and Lord Malmesbury arrived there on the 22nd of October. But all negociation for peace was vain. It-lasted for several weeks; and then, the directors having required Lord Malinesbury to define what compensation would be demanded for the restoration of the French colonies, and to state all his demands within four and twenty hours, his lordship replied that their requisition precluded all further negociation; and on the next day his lordship was told that he must quit Paris within forty-eight hours.

In the meantime Pitt had prepared for a vigorous prosecution of the war. In order to confirm the cabinet in the warlike disposition displayed, to rouse the national spirit for renewed exertions, and to point out the dishonour of forming treaties with men notorious for their bad faith, in the course of this summer Mr. Burke published his celebrated “Letters on a Regicide Peace.” These letters, and the two others that were published after his death, are among the most splendid efforts of his mind. In them he took a different view of the war from Pitt; he thought that it would be both violent and protracted. At the same time he did not despair of the final result, provided only a check could be given to that despondence which had seized upon many minds, and which the opposition were inculcating and promoting. It was his opinion that it was essential to success to disclaim all partition of the soil of France, to distinguish between the government and the nation, and to declare against the Jacobins, as distinct from the people; that France ought to be attacked in her own territory, and, in the first instance, by a British army sent into the Vendée; that it was impolitic to employ troops and fleets in reducing West Indian islands while the French armies were overrunning the Continent; and that England, with a force of nearly 300,000 men, with a navy of 500 ships of war, might make an irresistible impression on any part of the French territory. This was the last effort which Burke made to stem the onward torrent of the progress of the French revolutionists. He had recently endured a severe calamity in the death of his only son, of whose talents he had formed the highest expectations, and for whose advancement he had vacated his seat in parliament; and in the next year he himself was brought to the grave. He was one of the greatest men of his age; and his views of political philosophy will go down to posterity as the most enlightened that ever flowed from a human mind.

MILITARY AFFAIRS ON THE CONTINENT.

During this year France had three objects in contemplation: an invasion of Germany, another of Italy, and the subjugation of La Vendée.

In Germany the Austrian army was headed by the Archduke Charles of Austria, with whom was joined the veteran Wurmser. Under them were 175,000 troops, of which 40,000 were the finest cavalry in Europe. They defended the entrance of Germany on the side of the Rhine; and Jourdan and Moreau were despatched with 150,000 men against them; the former approaching the empire by the Upper Rhine, and the latter directing his course through Suabia. At first the French were eminently successful. They drove all the Austrian corps back from the frontiers; deprived them of their magazines, cannon, and arms; and threatened the hereditary states. Within six weeks the Austrians were reduced by a third of their original force—partly by loss and partly by drafts out of it for the service in Italy; and the French armies covered the country from Stutgard to the Lake of Constance, a line of one hundred and fifty miles. But at this point their successes ended. Perceiving their error in thus extending their front, the Archduke Charles narrowed his own, and gradually bringing nearer to a converging point the separate forces of Wartensleben and Wurmser, he slowly retreated; watching his opportunity for striking a blow. At length, when Moreau had captured Ulm and Donawert, on the Danube, and was preparing to cross the river Leek into Bavaria, and thence to move onward to the defiles of the

Tyrol, the Archduke Charles fell upon Jourdan at Amberg, and completely defeated him. This occurred on the 24th of August; and on the 3rd of September the archduke overtook the republicans again at Maine, where he once more thinned their ranks. Still pressing on their rear, the republicans fell into a miserably disorganized state; and on the 16th of September the archduke came up with them at Aschaffenburg, and drove them with terrible loss to the opposite side of the Rhine. In the whole, Jourdan lost 20,000 men, and nearly all his artillery and baggage. Moreau was too far off to render him any assistance; and he could neither advance nor maintain himself where he was without him. Under these circumstances he commenced his retreat with 70,000 men, followed by the imperial general, Latour, who had not above 24,000 men. Latour, pressing on Moreau's rear too closely, suffered a defeat; and the French reached the banks of the Rhine in safety. Here, however, the Archduke Charles was ready to meet them with a force equal, or, perhaps, superior to their own. Moreau was compelled to fight two battles, in both of which he was defeated; and nothing but a violent storm saved the wreck of his army. This, and the pitchy darkness of the night, prevented the Austrian cavalry from acting, and enabled him to get his broken columns on the safe side of the Rhine. The archduke Charles had therefore saved Germany.

In Italy the republicans were more successful. The command of the army there was given to Napoleon Buonaparte; and he arrived at his head-quarters at Nice on the 26th of March. His army, which was in a wretched state of discipline, amounted to about 50,000 men, while that of the Austrians and Piedmontese amounted to about 60,000 men. The imperial army was under the command of Beaulieu, and was stretched along the ridge of the Apennines, at the foot of which the French were advancing. On leading his troops to the Alpine frontier, Napoleon made the first of his remarkable appeals to his troops:—"Soldiers" said he, "you are almost naked and half-starved; the government owes you much, and can give you nothing. Your patience and courage in the midst of these rocks are admirable; but they reflect no honour on your arms. I am about to conduct you into the finest plains on earth; fertile provinces, opulent cities, will soon be in your power; there you will find rich harvests, honour, and glory. Soldiers of Italy, will you fail in courage?" Without waiting to be attacked Beaulieu descended from the heights, and met the advanced guard of the French at Voltri, near Genoa, which he repulsed. D'Argenteau, who commanded Beaulieu's centre, at the same time traversed the mountains of Montenotte, in the hope of descending upon Savona, and thus take the French in flank; but, when more than half of his march was completed, he met a French division of 1500 men, who threw themselves into the redoubt of Montelegino, and thus shut up the road of Montenotte. D'Argenteau attacked this post, but he was unable to take it; and in the meantime Buonaparte marched round by an unguarded road to his rear, and attacked and defeated him. This was the first of a series of victories on the part of the French. Before the end of April, besides this battle of Montenotte, Buonaparte had gained those of Millesimo, Dego, and Mondovi, by which he effected a separation of the Austrian and Piedmontese armies. The King of Sardinia was so discouraged by his losses, that to procure a cessation of hostilities he delivered up some of his principal fortresses to the French; and a peace was shortly concluded, by which he ceded the

Duchy of Savoy and the county of Nice to the conquerors for ever. The reply of Buonaparte to his negociators was characteristic. He remarked:—“It is for me to impose conditions: unless you obey, my batteries are erected by to-morrow, and Turin is in flames.” Having imposed his conditions on the king of Sardinia, Buonaparte, on the 10th of May, advanced to Lodi, where he encountered and, after a fierce conflict, defeated Beaulieu. It was after gaining this victory, as he himself said many years afterwards, that the idea first flashed across his mind that he might become a great actor in the world’s drama. In order to obtain the ends of his ambition, Buonaparte now stretched every nerve. In five days after the action at Lodi he made his triumphant entry into Milan; and all Lombardy was at the feet of the conqueror, except Mantua. At Milan the French had many converts and partisans, and Napoleon received an enthusiastic welcome; but, notwithstanding all this, he levied immense contributions, not only on the Milanese, but on Parma and Modena, as the price of an armistice. Thus the Milanese were compelled to contribute 20,000,000 francs; the Duke of Parma was made to pay 1,500,000 francs; and the Duke of Modena 6,000,000 francs in cash, 2,000,000 more in provisions, cattle, horses, etc., and to deliver up some of his choicest paintings. This regular plunder was called for by the five directors at the Luxembourg, who were perpetually demanding of Napoleon, money, more money. How effectually he responded to their demand is shown by his own statements; for he says, that besides clothing, feeding, and paying the army during the first Italian campaign, he remitted 50,000,000 of francs to the Luxembourg. But these harsh terms of the French fraternisation produced their fruits in an extensive revolt in Lombardy; and at Pavia, whither Napoleon was compelled to return, it could only be quelled by energetic measures. With the artillery he battered down the gates and cleared the streets; after which he gave up the city to plunder, debauchery, and every species of violence and crime which his republican army were capable of committing.

Napoleon advancing southward now overran Tuscany, where he showed how the French directory respected neutrality by taking possession of Leghorn, and seizing all the goods belonging to the English, Portuguese, and others, in the warehouses of that great free port. Subsequently he plundered the states and possessions of the pope; and when Pius VI. dispatched envoys to sue for terms, he granted an armistice only at the following price:—15,000,000 francs in cash, and 6,000,000 in provisions, horses, &c.; a number of paintings, ancient statues and vases, and five hundred manuscripts from the Vatican; the cession of the provinces of Bologna and Ferrara; the cession of the port and citadel of Ancona; and the closing of all the papal ports to the English and their allies. The spoiler was recalled from this work by intelligence that old Wurmser was marching against him from the Valley of Trento, with an army consisting of nearly 60,000 men. Napoleon was besieging Mantua when he heard of the approach of the German veteran; and drawing his army from thence, he hastened to meet his enemy. Unhappily for Wurmser’s success, he had divided his forces; while he himself moved with the larger portion along the eastern shore of the lake of Guarda, he sent Quosnadowich with the other division along the western bank. This was a fatal error. Buonaparte instantly threw the entire weight of his concentrated forces upon Quosnadowich and crushed him at Lonato; and then sought Wurmser

with a force nearly double to that of the Austrians; and in two battles, fought on the 3rd and 5th of August, near Castiglione, defeated him, and drove him back into the Tyrol, with the loss of his artillery and several thousand men. But though defeated, the Austrian general was not subdued. Striking across the mountains to the east of Trento, and descending the valley of the Brente, the old general again entered Italy, and advanced to Bassano. Here he was joined by some reinforcements from Carinthia; but Napoleon followed hard after him, and he was compelled to throw himself into the fortress of Mantua. It was on the 14th of September that Wurmser shut himself up in Mantua; and shortly after two fresh Austrian armies, raised chiefly through another subsidy from England, descended into Italy; one of which, under Marshal Alvinzi, descended from Carinthia upon Belluno, and the other, under Davidowich, moved down from the Tyrol. Had these forces been united they would scarcely have been a match for Buonaparte, whence there cannot be any wonder that the result was disastrous to the Austrian arms. Taking advantage of this error, Napoleon, with the mass of his forces, rushed to meet Alvinzi; and after a series of battles, in which the French suffered great loss, he finally succeeded in defeating the Austrian general at Areola. Alvinzi made his retreat upon Vicenza and Bassano; and on the same day that he commenced this retreat on the left side of the Adige, Davidowich came down on the right side of that river, and entered the plains between Pescheira and Verona. His defeat was inevitable: Napoleon turned against him with forces flushed with victory; and he was driven back to Ala, Reverodo, and the steep hills that hang over the pass of the Tyrol. This action concluded what has been aptly called “the third Italian campaign of the year 1796.”

SURRENDER OF CORSICA AND THE ISLE OF ELBA.

At this time Napoleon felt that the conquest of all Italy was within his reach. Treaties and the rights of foreign powers, whether neutral or friendly, were little regarded by him. Thus, in open contempt of both, he had invaded Tuscany, and had taken possession of Leghorn, his excuse being the dislodgement of the English. In consequence of this movement Nelson blockaded that port, and landed a force in the isle of Elba, in order to secure Porto Ferrajo. Moreover, as Genoa, taking the part of France, had excluded the English from its ports, Nelson seized on the island of Capraia, which had formerly belonged to Corsica. But the British admiral’s vigour was not seconded by the British government; orders were given for even the evacuation of Corsica itself; and soon after the British fleet, in consequence of peace being made between Naples and France, left the Mediterranean station, and proceeded to the support of Portugal.

DUTCH ATTEMPT TO RETAKE THE CAPE OF GOOD HOPE.

The Dutch government having determined not to suffer the loss of the Cape of Good Hope without a struggle to regain it, fitted out an expedition for that purpose. This expedition anchored on the 2nd of August in the bay of Saldanha; and at the moment when General Craig was marching down the coast to meet the invaders, a British fleet was seen advancing, with a fair wind, to the mouth of the harbour. The English admiral, Elphinstone, anchored within gunshot of the enemy, and sent a summons to the Dutch admiral; and seeing that resistance was useless, he delivered

up his squadron without having fired a gun. The prizes were two sail of the line, three smaller ships of war, and three armed vessels.

FRENCH EXPEDITION TO IRELAND.

In Ireland the Papists had long sought to overthrow the Protestant supremacy, while the liberals were anxiously seeking the triumph of their principles. The disposition which prevailed among these two powerful parties was known to the French directory; and they were encouraged thereby to attempt the striking of a blow of no common magnitude in that quarter. On the 20th of December General Hoche embarked at Brest with 15,000 troops, to co-operate with the Irish insurgents; but the fleet, which was under the command of Vice-admiral Morard de Galles, had scarcely left the harbour when it was dispersed by a storm. Only eight sail out of eighteen ships of the line reached the Irish coast, and the weather was so stormy that the French could not land; and the whole expedition, after having suffered great loss, was obliged to return to France. One of the line-of-battle ships was attacked, before she could reach a port, by two English frigates, and was finally driven on shore, where she went to pieces, and many of the crew perished in the sea. In the whole, the French lost three ships of the line and three frigates from the adverse elements; and they narrowly escaped the attack of a British fleet, under Lord Bridport, who arrived off the Irish coast immediately after their departure. During the whole of this year, indeed, the maritime power of France suffered greatly; and her remaining commerce was much diminished by the exertions of the British cruisers. Upwards of seventy sail of armed vessels belonging to the enemy were captured; among which were five ships of the line and twelve frigates. On the other hand, the French made a successful expedition to Newfoundland, where shipping and merchandise to a large amount were captured or destroyed.

DISPUTES BETWEEN FRANCE AND AMERICA.

The new government of France had scarcely commenced operations when it became involved in a quarrel with America. This dispute arose from the treaty recently executed between America and Great Britain; which treaty the directory supposed was inimical to France, and incompatible with the idea of neutrality. By the treaty of 1778, which was still in force, the Americans had guaranteed to France their West Indian colonies; but by the treaty of 1795 they consented that even supplies of provisions sent to those islands should be treated as illegal commerce. In consequence of this, the directory affected to regard the Americans as enemies, and made such depredations on their commerce as amounted to almost open war. An _arrêt_ also was issued, on the third of July, ordering French ships of war to observe such conduct towards the vessels of neutral nations as they had hitherto suffered from the English. Thus began that oppressive system by which neutral powers were doomed to be persecuted in the future progress of the war. Towards the close of this summer, Mr. Monroe, the American ambassador at Paris, was recalled; and the directory not only refused to receive a successor, but suspended M. Adet, French resident at Philadelphia, from his functions. Such was the situation of the foreign relations of the United States in the year when Washington finally retired from the cares of government, to enjoy repose in the shades of Mount Vernon, on the banks of

the Potowmac.

MEETING OF PARLIAMENT.

The British parliament had been dissolved by proclamation soon after the close of the last session; and ministers had, in consequence, been chiefly occupied by the elections. The new parliament was opened by the king in person on the 6th of October. In his speech, his majesty repeated his anxious wish for an honourable peace; announced the intended mission of Lord Malmesbury to Paris for that purpose; and made allusion to the success of our arms in the East and West Indies, and to the brilliant campaign of Archduke Charles. Some difference of opinion existed between ministers and their supporters, on the propriety of entering upon a negociation with republican France; but, nevertheless, the usual addresses passed without a division. A clause in his majesty's speech declared apprehension of an invasion; and therefore Pitt recommended the adoption of measures to repel the attempt. He proposed a plan for augmenting the national force by a levy of 15,000 men from the parishes, to be divided between the sea and land service; and by a supplementary levy of 60,000 men for the militia, and 20,000 men for irregular service, not to be called out immediately, but enrolled and gradually trained. This plan, after some bitter remarks made by the habitual opponents of government, and after the alteration of a clause which proposed to convert gamekeepers into soldiers, passed without a division. A bill was also brought in and carried by Mr. Dundas, to raise a militia in Scotland. The total number of land-forces voted for the year 1797 was 195,694; that of seamen, 120,000.

PITT'S FINANCIAL STATEMENT.

Pitt opened the budget on the 7th of November. The money he required was £27,945,000; and among the ways and means which he proposed was a loan of £18,000,000. There seems to have been a universal spirit of loyalty in the house, for all that was said by Pitt as to the courage and resources of the nation, and our capability of withstanding the power of France and our various enemies, was loudly cheered, while Fox, who opposed him, was heard in dead silence. The propositions were agreed to, and this loan was soon followed by a second of equal amount, and including a vote of three millions for the Emperor of Austria. On opening the budget, Pitt stated that ministers had made an advance of £1,200,000 to the emperor; and on the 13th of November, Fox moved "That his Majesty's ministers, having authorised and directed at different times, and without the consent and during the sitting of parliament, the issue of various sums for the services of his Imperial Majesty, and also for the service of the army under the Prince of Condé, have acted contrary to their duty, and to the trust reposed in them, and have thereby violated the constitutional privileges of this house." At first Pitt admitted that it was an irregular act, but afterwards he attempted to bring what he had done within the authority of the ordinary vote of credit, and endeavoured to find a principle in other discretionary and indefinite expenditures. Pitt was manifestly in a dilemma; but he was rescued by the Hon. Charles Bathurst Bragge, who moved as an amendment to Fox's resolution, to the effect that the advance made to the Emperor, "Though not to be drawn into precedent but upon occasions of special necessity, was, under the peculiar

circumstances of the case, a justifiable and proper exercise of the discretion vested in his Majesty's ministers by the vote of credit, and calculated to produce consequences which have proved highly advantageous to the common cause, and to the general interests of Europe." This amendment was carried by a majority of two hundred and eighty-five to eighty-one.

MISSION OF LORD MALMESBURY TO PARIS.

As intimated by the King in his speech on opening the new parliament, during the course of the autumn. Lord Malmesbury was sent to Paris to treat for peace. At this time, however, peace was not easily obtained; the republicans were too much elated by their success in Italy and their hopes from Ireland to listen to any pacific overtures with complacency; and moreover an envoy, despatched about the same time to the court of Berlin, with an intent, as was supposed, of drawing Prussia again into a coalition, excited considerable jealousy in the minds of the directors. Lord Malmesbury's mission was in fact a complete failure. On his return his Majesty sent a message to parliament, declaring that the rupture of the negociation did not proceed from the want of a sincere desire on his part for the restoration of peace, but from the excessive pretensions of the enemy—pretensions which were incompatible with the permanent interests of this country and the general security of Europe. On the next day the British ministry also published a manifesto, enlarging on their own pacific dispositions, and setting forth the malignant hostility of the French republicans. Copies of all the memorials and other papers relating to the negociation were likewise laid before parliament, and on the 30th of December the King's massage was taken into consideration in both houses. In the commons, Pitt asserted that the rupture of the negociations was wholly due to the directory, who demanded, not as an ultimatum, but as a preliminary, to retain all territories of which the war had given them possession; and respecting which they had thought proper to pass a decree, annexing them unalienably to the republic. He continued, "And not content with thus abrogating the law of nations, as well as previous treaties, they have offered a studied insult to his majesty by ordering his ambassador to quit Paris, and proposing to carry on the negociation by reciprocal couriers. The question then is, not how much you will give for peace, but how much disgrace you will suffer at the outset; how much degradation you will submit to as a preliminary? Shall we then persevere in the war with a spirit and energy worthy of the British name and character; or shall we, by sending couriers to Paris, prostrate ourselves at the feet of a stubborn, supercilious government? I hope there is not a hand in his majesty's council that would sign the proposal; that there is not a heart in this house which would sanction the measure; and that there is not an individual in this realm that would act as courier." In private, Fox confessed that this would be the very worst moment for making a peace with France; but, nevertheless, he moved an amendment to the address to be returned to the king's message, replete with inculpations of ministers for not having concluded a treaty with the French republic. His friend, Lord Guildford, moved a similar amendment in the Lords; but both were negatived by large majorities.

{A.D. 1797}

STOPPAGE OF CASH PAYMENTS AT THE BANK.

At the commencement of this year the aspect of public affairs wore a gloomy appearance. The directors of the Bank of England had recently, on several occasions, represented to the chancellor of the exchequer their inability of supplying his increasing demands; and the dread of an invasion had produced a run upon the bank for specie; so that when Pitt requested a further advance, early in this year, of £1,500,000 as a loan to Ireland, he was informed that a compliance with this request would most likely cause the directors to shut their doors. In this state of affairs the privy council, on the 26th* of February, sent an order, prohibiting the directors of the Bank from issuing any cash or specie in payment till the sense of parliament could be taken, and measures be adopted for supporting public credit.

*This was on a Sunday; and it was the first time, during the reign of the present monarch that business had been transacted on that day.

This decisive step was announced by a royal message to parliament on the next day; and the subject was immediately taken into consideration. It was thought by the opposition that this would crush Pitt; and Fox exultingly gave notice that he would move for an inquiry into all the past transactions between the Bank and the minister; and Sheridan, Whitbread, and others made motions all having one end in view—Pitt’s overthrow. But Pitt was too firmly seated to be overthrown by his opponents, however ardently they might seek his downfall. The first step taken was to appoint two secret committees for ascertaining the assets of the Bank beyond its debts; and their reports stated that these amounted to the sum of £3,826.890, exclusive of a permanent debt of £11,666,800 in the three per cent, stock, due from government; and also that the demands which occasioned this drain of cash had of late increased, and that they were likely to go on increasing until the Bank would be deprived of its means of supplying that cash to government which it might require. The committees added, that it, was proper to continue the measures already taken for such time and under such limitations as should seem expedient to parliament. This report was taken into consideration by a committee of the whole house; and Pitt moved for leave to bring in a bill to continue and confirm for a limited time the restriction of the issue of specie by the Bank of England; and after various clauses, added by the ministers themselves, this bill passed. The Bank was authorized to issue specie to the amount of £100,000, for the accommodation of private bankers and traders; and bank-notes were to be a legal tender to all, except to the army and navy, who were to be paid in cash. From this time till 1819 the circulation of gold coin in a great measure ceased, and notes of one pound and upwards became the general medium of commercial intercourse. Pitt’s bill was, indeed, limited in its operation to the 24th of June; but the restriction was afterwards continued from time to time by a succession of new acts, so that the return to cash payments did not take place till the above date, when Sir Robert Peel carried his well-known bill on that subject.

{GEORGE III. 1796–1798}

MUTINY IN THE FLEETS.

During the sitting of parliament mutinies broke out in the fleet, which gave far greater alarm than the suspension of cash payments by the Bank. For some time great dissatisfaction had prevailed among the seamen respecting their pay and provisions; and in the month of February Lord Howe received several anonymous letters, praying for his lordship's influence towards obtaining an increase of pay, and an improvement in the quality and quantity of food. At the same time a correspondence was established between the crews of the different ships, and a committee of delegates was appointed to obtain a redress of grievances. These proceedings were conducted with great secrecy; and it was not till Lord Bridport made a signal to prepare for sea, in April, that they became known. Then, instead of weighing anchor as the signal imported, the seamen of the admiral's ship ran up the shrouds, and saluted the surrounding ships' crews with three cheers, to which a long and loud response was given. It became manifest that the spirit of disobedience was general; and this was soon shown by action as well as by the voice. The next step of the delegates was to assemble in the cabin of the admiral's ship, and to place the officers in custody, in order to prevent them from going on shore. A petition to the admiral was drawn up, and presented on the spot; accompanied with a declaration that, till the prayer of the petition was granted, till their pay was increased and their provisions altered, they should not quit their present station, "unless the enemy was known to be at sea." On discovering this mutinous spirit, a committee of the admiralty, with Earl Spencer at their head, repaired to Portsmouth, with a view of inducing the seamen to return to their duty. This was on the 18th of April; and five days later the admiral returned to his ship, when, after hoisting his flag, he informed the crew that he had brought with him a redress of all their grievances, accompanied by his majesty's pardon for their offence. These offers were cheerfully accepted, and every man returned to his duty. There was reason for believing that all cause of dissatisfaction was removed; but there was still mischief lurking behind. On the 7th of May, when Lord Bridport again made the signal to put to sea, every ship at St. Helen's refused to obey, the seamen being under the impression that government would not fulfil its promises. A meeting of delegates was convened to be held on board the "London;" but Vice-admiral Colpoys, having determined to prevent the illegal assembly from being held on board his ship, ordered the marines to fire upon the boats as they approached; and five seamen were killed. Irritated by this resistance on the part of the admiral, the crew of the "London" now turned their guns towards the stern, and threatened to blow all aft into the water, unless the commander submitted; and Admiral Colpoys and Captain Griffiths were both taken into custody by their crew, and confined for several hours in separate cabins. Such was the state of affairs on the 14th of May, when Lord Howe arrived from the admiralty with plenary powers to settle all differences; and as his lordship was the bearer of an act of parliament, which had passed on the 9th, granting an additional allowance of pay to the seamen, and also of his majesty's proclamation of pardon, the flag of insurrection was struck, and the fleet prepared to put out to sea. The dangerous spirit of disaffection, however, was not yet subdued. While these things were transacting at Portsmouth, a fresh mutiny broke out at Sheerness. This gave little alarm at first, it being supposed that the terms which had been offered Lord Bridport's ships, and which were to be extended to all ships and fleets whatsoever,

would satisfy those fresh mutineers. It was not so. On the 20th of May, many of the ships lying at the Nore, and soon afterwards nearly all those belonging to the North Sea fleet, hoisted the red flag, chose two delegates from every ship, and elected a president, who styled himself “President of the floating republic.” The demands made by these mutineers were a greater freedom of absence from ships in harbour; a more punctual discharge of arrears of pay; a more equal distribution of prize-money; and a general abatement of the rigours of discipline. Compliance to these concessions was demanded as the only condition upon which they would return to their duty. The admiralty, however, gave a decided negative to their demands; and, with a promise of pardon, insisted that they should return to their duty and proceed to sea in search of the enemy. The delegates now demanded that some of the board of admiralty should come down to Sheerness to negociate with them; and the mutineers of the “Sandwich,” of ninety guns, Vice-admiral Buckner’s ship, in which “President Parker” was serving, struck the admiral’s flag, and hoisted the red flag in its stead; and then all the ships of war which lay near Sheerness dropped down to the great Nore. Pardon was again offered them and again rejected on the 24th; and on the 29th a committee of the admiralty went down to Sheerness, and sent for the delegates, and tried to conciliate them without yielding to any of their new demands. But all their endeavours were fruitless. The delegates behaved with great insolence to the commissioners; and as soon as they returned to the fleet, the mutineers moored their ships in a line across the river, and detained every merchant vessel bound up or down the Thames. This was in effect blockading the port of London; and two vessels, laden with stores and provisions, were seized and appropriated to the use of the mutineers. On the 4th of June the whole fleet celebrated the king’s birthday by a royal salute; and on the 6th they were joined by four ships of the line from Admiral Duncan’s squadron, making in the whole twenty-four sail, consisting of eleven ships of the line and thirteen frigates in a state of mutiny.

In the meantime government was not inattentive to the perilous state of the country. His majesty’s pardon was offered to such of the mutineers as should immediatety return to their duty; two acts of parliament were passed for restraining the intercourse between the revolted crews and the shore, and for the punishment of any attempt to seduce seamen or soldiers into mutinous conduct; all the buoys at the mouth of the Thames were removed; and batteries were erected along shore for firing red-hot shot. Government was assisted in their efforts to quell the rebellion by the two divisions of the fleet lying at Portsmouth and Plymouth, each of which addressed an exhortation to the mutineers, urging them to be content with the indulgences granted, and to return to their duty. But their warnings were all ineffectual. The mutineers sent Lord Northesk, who had been confined on board his ship, the “Monmouth,” with conditions to his majesty, on which alone, they said, they were willing to surrender the ships. The terms they demanded were submitted to the king in council, and were instantly rejected; and all hopes of accommodation being thus at an end, preparations were made to enforce obedience to the laws. The bold tone which government assumed, being seconded by the voice of the people, at length had its effect. Several of the ships deserted the rebels; in those that remained the well-disposed rose upon the refractory, and some lives were lost; and by the 13th of

June every red flag had disappeared. President Parker and some of the delegates were executed, some were flogged through the fleet, and others left under sentence on board prison-ships, while the mass received his majesty's free pardon. This general pardon was proclaimed in October, after Admiral Duncan's victory off Camperdown, which will be noticed in a subsequent article.

GREY'S MOTION FOR REFORM, ETC.

While the country was agitated by the mutiny of the fleets, Mr. Grey rose in the house of commons to move "for a sweeping reform in parliament." This motion was seconded by Fox and others of his party; but it was lost by a majority of two hundred and fifty-eight against ninety-three. Not one of the Foxites could have expected that the motion would pass; but pretending to despair of succeeding in their plan of reform, Fox and most of his friends seceded from parliament, declaring that their attendance there was useless. Some of them returned subsequently to their seats, but none of them attended during Parker's mutiny; and from this time till the year 1800 Fox spoke only three or four times in the house. Sheridan refused to secede; and when the debate took place concerning the rebellion at the Nore, in defiance of his party he strengthened the hands of government. The Foxites asserted that he was acting under selfish motives, and that he was seeking a seat on the treasury bench with some well-paid place. They might be correct; for all history shows that the true and disinterested patriot, is of rare occurrence; all have their own self-interest at heart. No other business worthy of historical note occurred till the 20th of July, when his majesty prorogued parliament by a speech from the throne, in which he declared that he was again engaged in a negociation for peace, and that nothing should be wanting on his part to bring it to a successful termination.

FRENCH DESCENT ON WALES.

Early in this year the French sent an expedition of about 1500 men, mostly criminals and vagabonds, attired as French troops, who landed in Cardigan Bay. The Welsh peasantry, animated by the gentry, armed with scythes, sickles, and pitchforks, marched forth to meet the invaders; and Lord Cawdor assembled a mixed force of seven hundred militia, fencibles, and yeoman cavalry. This was sufficient. The French commander, after a short negociation, capitulated to Lord Cawdor; while the two frigates which accompanied the expedition, were captured on their return to Brest. Such was the result of this long-menaced invasion; but in other quarters preparations were made on a more formidable scale.

BATTLE OFF CAPE ST. VINCENT.

"The year of mutinies" was not altogether inglorious to the British navy. It was proposed by the republic that the fleets of Holland and Spain should join the French fleet at Brest, and that the whole armada should bear down for the coast of England. In order to frustrate this design, Sir John Jervis was directed to blockade the port of Cadiz, while Admiral Duncan was sent to watch the Dutch in the Texel. Sir John Jervis fell in with the great Spanish fleet, under the command of Don José de Cordova, off Cape St. Vincent, The Spanish fleet consisted of twenty-seven sail of the line, and the English of only fifteen; but the greater part of the Spanish crews were inexperienced,

and Nelson was with the English admiral, so that there was no hesitation in engaging. Four Spanish ships of the line were captured, and all the rest were driven into Cadiz, and there blockaded. Intelligence of this victory occasioned great joy throughout the nation; and while the fleet was honoured with the thanks of both houses of parliament, Sir John Jervis was created Earl St. Vincent; Nelson was invested with the order of the Bath; Captain Robert Calder was knighted; and gold medals and chains were presented to all the captains. The victory was due to the prompt and daring conduct of Nelson, whose watchword, as he went into the battle, was “Westminster Abbey or victory.”

BATTLE OFF CAMPERDOWN.

The most complete naval action of this year happened off Camperdown. On the 11th of October Admiral Duncan, with sixteen sail of the line, attacked a Dutch fleet, commanded by Admiral De Winter, of eleven sail of the line and four fifty-six gun ships. The Dutch fought in a very different style from the Spaniards, ardently contending for the victory. Admiral De Winter, whose ship was attacked by Admiral Duncan’s, did not strike his flag before all his masts fell overboard, and half his crew were either killed or wounded; and when the battle terminated, almost every Dutch ship was found to be in a disabled state. Eight ships of the line, two fifty-six gun ships, and two frigates remained as trophies of victory to the English. This action excited great joy at home; and Duncan was elevated to the peerage, by the title of Viscount Duncan of Camperdown. In consideration of this and the other signal victories that had crowned our fleets, his majesty ordered a general thanksgiving throughout the kingdom, which took place on the 19th of December.

THE BLOCKADE OF CADIZ, ETC.

After the battle off Cape St. Vincent, Nelson was employed in the blockade of Cadiz, which he bombarded on the 23rd of June and 3rd of July. This bombardment, however, produced but little effect; and soon afterward, owing to an unfounded report that the viceroy of Mexico had arrived at Teneriffe with treasure ships, Nelson proceeded thither in search of them. He made an unfortunate attack on Santa Cruz in that island, which ended in the loss of his own right arm, and also of about two hundred men. Previous to this, the Spanish island of Trinidad capitulated to an expedition of six sail of the line, with troops on board, under the command of Sir Ralph Abercrombie and Admiral Harvey; but the same commanders were subsequently defeated in an attempt to take Porto Rico.

WAR ON THE CONTINENT.

At the commencement of this year, Alvinzi, the Austrian general, re-enforced with 50,000 troops, made great efforts to recover the fortune of the war. In this he was aided by the pope, who raised troops for his support. But again Alvinzi had the temerity to divide his forces; the principal division marching, under his own command, by the old route from the Tyrol, and the other taking a circuit down the Brenta, to relieve Mantua. In order to impede his progress Napoleon posted himself at Rivoli, on a lofty plain above the Adige, between that river and the Alpine Montebaldo. In this position he was attacked by Alvinzi; but the Austrian general was

repulsed on all sides, and compelled to take refuge in flight. The other division of the Austrian army fought its way to the walls of Mantua, but Wurmser sought in vain to form a junction with it; and in February Mantua was captured by Napoleon. The conqueror's vengeance next fell upon his holiness the pope. Not tarrying even to receive the sword of Wurmser, Napoleon headed his legions and marched towards Rome. Within eight days one half of the states of the church were conquered, and the pope had no hope but in submission. The conqueror granted him political existence, on condition that he should cede to the republic Wignon, Venaissin, and the legations of Bologna, Ferrara, and Romagna: he was compelled to pay, also, a contribution of thirty millions, and to give up more works of art.

The directory saw that another victory would place Austria at its feet; and in order to ensure this consummation, Bernadotte was dispatched with 30,000 men to re-enforce Napoleon, while Hoche was sent to supersede Pichegru, on the lower Rhine. Napoleon crossed the Alps early in March; and he was opposed by the Archduke Charles. But opposition was vain; for his legions were yet incomplete, and unable to withstand his victorious enemy. The French penetrated on the one side into Tyrol, and on the other over the Paive, towards the Carinthian passes. Victory followed victory; and the conquerors entered Klagenfurt and Laubach, and stood in Tyrol, at the foot of the Brenner mountains. The main army, driving the Austrians before them, finally marched into Leoben; and the archduke retreated as far as Styria. The enemy was now only thirty-six leagues from the Austrian capital; and the inhabitants were seized with terror and consternation. But here the victories of Napoleon were stopped for a season. Jealous of his success, or deterred by dissensions which raged in Paris, the directory stayed the progress of the armies of the Rhine, without whose co-operation it would have been imprudent in that of Italy to advance. Under these circumstances Napoleon sent to the archduke proposals of peace; and after some delay a preliminary treaty was signed at Leoben, on the 18th of April. By this treaty Austria ceded to the republic Belgium and the countries of Italy as far as the Oglio; for which she was to receive in return the Venetian territory from the Oglio to the Po and the Adriatic Sea, Venetian Istria, and Daimatia; and when general peace should be re-established, Mantua and Peschiera. "This peace," says Rotteck, "concluded when the hour of great decision was approaching: more yet, its conditions, unexpectedly favourable to the vanquished, proved the mutual fear of those that made peace. For Austria, the fall of Vienna would have been a severe and humiliating blow. But could Buonaparte advance so far after he actually stood in danger of being surrounded, and, perhaps, annihilated by the swelling masses of the enemy? On the one side approached the Hungarian insurrection army, on the other and around, the Austrian land-storm. But in Venice a general revolt had broken out against the French, which the aristocratic government had excited out of hatred towards the democratic revolutionary system. In this situation a reverse might be ruinous to Buonaparte: he therefore concluded peace."

The insurrection in Venice had not been commenced by the aristocracy, but by the democracy. It broke out in the towns of Brescia and Bergamo, and the senate, in its turn, raised the mountaineers and the anti-revolutionary peasants, who proceeded to every species of atrocity: their watchword being "Death to Frenchmen and Jacobins."

On Easter Monday more than four hundred Frenchmen are said to have been massacred at Verona. But the knell of Venice itself was rung. Napoleon having made peace at Leoben, brought his cannon to the edge of the lagoons, and the panic-stricken senate and cowardly doge, passed a decree to dissolve their ancient constitution, and to establish a species of democracy. Venice fell after a political existence of more than one thousand years. The aristocracy of Genoa, also, succumbed to the same storm; but they were permitted to retain an independent government, under the name of “the Ligurian republic.”

The definitive treaty between the Emperor of Austria and the French republic was signed on the 17th of October, at Campio Formio, near Udina. Its conditions were somewhat different from those of the first treaty: Austria, in recompense for the Netherlands, receiving the Venetian provinces to the Adige, and not to the Oglio; and Mantua being retained by the French. In return for these possessions, France obtained the Netherlands; the Greek islands belonging to Venice in the Adriatic; an acknowledgment of the Cisalpine republic; and an indemnification for the Duke of Modena in Brisgau. Some secret conditions were annexed to this treaty; and it was agreed that a congress should be held at Radstadt, for settling the peace of the empire.

By these victories France remained in possession of Savoy, Nice, Avignon, and Belgium. She was also mistress of Italy and Holland, and could reckon on the dependence of the German empire, owing to the cession of the left bank of the Rhine. The German empire, abandoned by Austria, likewise was at her mercy, and tremblingly expected its fate; while the government of the church and the kingdom of Naples were tottering to their very foundations. Spain, moreover, with all its resources, was wholly in the hands of the French. England now stood alone in the contest; and though she remained mistress of the ocean, it was deemed advisable to renew pacific negociations with France. Lord Malmesbury was again sent on this mission; and the city of Lisle was fixed on by the directory for a conference. But the directory were not inclined for peace; after continuing at Lisle until September, exchanging useless notes and receiving many insults, Lord Malmesbury was ordered to quit the place within four and twenty hours. It was demanded by the French negotiators that the Cape of Good Hope, and every island or settlement, French, Dutch, or Spanish, in the possession of Great Britain, should be given up without receiving any compensation. Such terms as these were incompatible with the nation’s interests and safety; whence the failure of this mission. Moreover, there was a belief existing in France that England was on the verge of ruin; and the directory fondly imagined that they would one day triumph over her as they had done over the nations on the Continent.

INTERNAL HISTORY OF FRANCE.

During this year the harmony between the directory and the legislative councils vanished. The new elections produced this change; for men of a different spirit were returned by the communes. The royalist party had, indeed, obtained the control of elections; and the newly elected third entered the chambers of the representatives with plans of counter-revolution. The directory had the mortification of seeing the

emigrants allowed to return, the re-establishment of priests, and a vote of censure passed upon the conduct of their emissaries in the colonies. The directory were, in fact, shorn of power, and there was a faint prospect of the whole work of the revolution being set aside. But the nation was not yet prepared for such a step. As the plans of the royalists, which were concocted in the club of Clichy, became disclosed, the government regained strength. From fear of the return of the old order of things, the patriots of 1791 united with the party of the convention; and the club of Salm was got up in opposition to that of Clichy. A contest soon followed. The directory relied upon the armies, and they assembled some troops in the neighbourhood of Paris; while the councils decreed the restoration of the national guards. The directory, however, by one fell blow, annihilated the hopes of their enemies. On the 10th Fructidor, answering to the 4th of September, troops were brought to the capital under pretence of a review, and placed under the disposal of Augereau. These troops surrounded the Tuileries, which was protected by the guards of the legislative body, which, upon the question of Augereau, “Are you republicans?” immediately laid down their arms. The contest was then decided. Augereau took possession of the palace, and arrested the opposition deputies. Barthélémy and Carnot, with forty members of the “Council of Five Hundred,” eleven of the “Council of the Ancients,” and ten other persons of note were condemned to be deported to Cayenne. Most of these underwent their punishment; but some escaped, and others were pardoned. Thirty-five journalists were likewise sentenced to deportation; and the elections of forty-eight departments were declared null. In the whole one hundred and forty-nine members were excluded, and the vacancies were filled up by the directory, with men willing to give them their support. The laws enacted in favour of priests and emigrants were revoked, and the oath of hatred to royalty renewed. Thus a revolutionary government returned; and the constitution was trodden underfoot by men who ostensibly were its supporters. And all this they called “Liberty.”

MEETING OF PARLIAMENT.

The British parliament met on the 2nd of November. In his speech his majesty dwelt on the excessive pretensions of the French; the failure of the negociations at Lisle; the flourishing state of trade and the revenue; our naval victories, and our new conquests in the West Indies: and recommended those exertions which could alone ensure peace. As Fox and the other great orators of the opposition still absented themselves from parliament, there was little interest in the debate which followed, or in any of the debates during this session. The army and navy estimates were readily passed, and supplies were early voted, to the amount of £25,000,000. Among the ways and means adopted was the trebling of all the assessed taxes. This measure met with strenuous opposition from a few members; but the bill passed by a large majority.

CHAPTER XXIV.

{GEORGE III. 1798–1801}

Redemption of the Land-Tax, &c. Irish Rebellion..... Invasion of Belgium..... Expedition to Minorca..... Battle of the Nile, &c. Meeting of Parliament..... Income Tax sanctioned, &c. Treaty with Russia..... Union with Ireland considered..... Prorogation of Parliament..... Campaign in Italy..... Campaign in Egypt..... Establishment of the Consular Government in France..... Affairs of India..... Meeting of Parliament..... Parliamentary Discussions..... Union with Ireland completed..... Prorogation of Parliament..... Campaign in Italy..... Capture of Malta..... Naval Operations..... Meeting of Parliament..... Motions for Peace, &c.

{A. D. 1798}

REDEMPTION OF THE LAND-TAX, ETC.

Early this session Pitt proposed and carried a bill for the redemption of the land-tax. This was followed by a bill, proposed by Mr. Dundas, for enabling his majesty to call out a portion of the supplementary militia. A second bill was also carried, to encourage voluntary armed associations for the protection of the country, it being now considered as menaced with invasion. Another bill was brought into the house by Dundas, by which the suspension of the _habeas corpus_ act was revived. The alien bill also was renewed; and Pitt proposed and carried a measure for more effectually manning the navy. As in the last session, so likewise in this, the chancellor of the exchequer found himself compelled to lay before the house a second estimate of supplies, and to make a further demand of more than £3,000,000, which was readily voted, as were also a new increase of taxes on salt, tea, dogs, horses and carriages, &c. to meet it. Late in the session Mr. Wilberforce renewed his motion for the abolition of the slave-trade; and though his proposition was rejected, several regulations were enacted for alleviating the sufferings of the wretched Africans on their passage. These were the principal measures taken into consideration during this session. Parliament was prorogued on the 29th of June.

IRISH REBELLION.

During the sitting of parliament a rebellion had broken out in Ireland. Discussions on this subject had been entered into with closed doors; and in the month of June, when the Irish insurgents had attacked and beaten several detachments of the king’s troops, a message was delivered to parliament from the king, desiring that he might be enabled to take all such measures as might be necessary to defeat any enterprise of his enemies. The chief object of this message was to allow the officers and privates of different militia regiments, who had made a voluntary tender of their services to assist in the suppression of the rebellion, to go to that country and act with the royal troops; and a bill was brought in and carried for that purpose. The rebellion, which was one of a formidable nature, had its origin in the association of United Irishmen, first instituted for obtaining universal suffrage. This association was afterwards re-organized for the accomplishment of a revolution and a separation from Great Britain: parliamentary reform and catholic emancipation being demanded only as pretexts to cover ulterior designs. A correspondence had long been maintained between the leaders of this association and the French directory, and

notwithstanding the failure of Hoché, and likewise of a design of another armament, an agent was still resident in Paris. Application was made to the directory for a loan to assist the revolutionists; but the French rulers refused to grant it, unless they were permitted to send sufficient forces to effect the conquest of the country. It was evident that they wanted Ireland for themselves; but the Irish “patriots” wanted to rule themselves, and not to exchange masters; whence they expressed themselves averse to this plan of invasion. The Irish indeed prepared for an insurrection without waiting for continental assistance. They had been ripe for rebellion through a long succession of ages, and no concessions made to them soothed their chafed minds. Their turbulence had manifestly increased from the time of the American war, when the Irish volunteers had been allowed to arm themselves; and, “whether acting wisely or unwisely, liberally or illiberally—whether granting concessions or withholding them, nearly every act of government had tended to augment the disaffection.” For the last ten years concessions had been made to the Irish catholics, who formed about seven-tenths of the population: but it was all to no purpose—the more they obtained, the more they wanted. At length the smouldering embers of disaffection burst forth into a flame. Early in this year a military commission was appointed by the executive council of the United Irish, and nocturnal assemblies were held in various parts of the kingdom. People were, indeed, everywhere sworn in, and it was finally settled that they should take up arms. Rebellion commenced by midnight outrages. The most savage atrocities were committed on those whom the associates were taught to consider as enemies and interlopers in their domains, which outrages were severely retaliated by the Orangemen and military. In February, a pressing letter was addressed by the Irish executive to the French directory, urging them to send immediate succour, and stating that the people of all classes throughout Ireland ready to take up arms amounted to 300,000 men. It was soon discovered that mischief was afloat; and on the 28th of February, Mr. Arthur O’Conner, said to be lineally descended from Roderic O’Conner, King of Connaught, Binns, an active member of the London Correspondent Society, and Coigley, an Irish priest, were arrested at Margate, as they were on their route to France. A paper was found on the priest, addressed “To the French directory;” and this paper and the trial which followed put government in possession of many important secrets. Coigley was executed on Pennenden Heath; O’Conner was remanded on another charge of high-treason; and Binns was acquitted. Several arrests took place in consequence of the information thus gained, and some more papers were discovered in the printing-office where O’Conner had been publishing the revolutionary journal called, “The Press.” But the most complete information obtained by government was from Thomas Reynolds, who was deep in the secrets of the association of United Irishmen. On his information, warrants were issued against several of the principal conspirators: as, Messrs. Emmet, Sampson, and McNevin, and Lord Edward Fitzgerald. The three former of these were soon apprehended; but Lord Fitzgerald concealed himself for some time; and when discovered he made such a desperate resistance, killing a magistrate and wounding others sent to apprehend him, that Major Sirr lodged the contents of a pistol in his shoulder, from the effects of which he soon after died. He was the leader of the conspirators. But notwithstanding his fall, and in spite of the flight or arrest of every member of the “executive.” the Irish flew

to arms on the 23rd of May: that being the day appointed for their muster. A body of pikemen, amounting to 14,000, and headed by Father John Murphy, soon made themselves masters of Wexford and Enniscorthy; and having procured some artillery, they fortified a position on Vinegar Hill. Colonel Walpole with a small detachment of Cork Militia fell into an ambuscade, and was slaughtered, together with nearly all his men, by the insurgents; and encouraged by these and other successes they made a rush at Newross, where they began to plunder the inhabitants. But here they received a check. Like the London rioters, they soon became mad with drink; and being attacked by General Johnson, nearly three thousand were either slain or captured. This victory over them was followed by another more decisive: on the 21st of June General Lake attacked the fortified position at Vinegar Hill, and carried it with a frightful loss to the insurgents. The rebels, indeed, never rallied again; and though some fearful atrocities were committed by isolated bands of them, they were, in effect, from that time subdued. Soon after, Lord Camden was recalled from the lieutenancy of Ireland, and he was succeeded by Lord Cornwallis, who brought with him a general pardon to all who submitted. Four of the leading conspirators were executed; O'Conner, McNevin, Emmet, and Sampson were banished; and others were pardoned. The rebellion was somewhat revived in August, when three French frigates reached Killola, and threw on shore nine hundred troops of the line, commanded by General Humbert; but though these troops were joined by some catholics, and though Humbert defeated General Lake, and advanced into the heart of the country, he was eventually beaten by the advanced guard of General Cornwallis, who was marching against him with troops of the line, and on the 8th of September, the French laid down their arms, and became prisoners of war. Subsequently, another French armament reached the western coast of Ireland; but Sir John Borlase Warren met it there with his squadron, and captured one ship of the line, and three frigates; and the rest of the armament, consisting of five frigates, returned to France. On board the French ship of the line was Wolfe Tone, one of the Irish leaders of the rebellion: his execution was the last on account of this outbreak. Ireland was again quieted, but it was only for a brief season. It has ever been its fate to be disturbed by agitation, and to this hour it remains the same. It is, in fact, a fine field for the agitator: the ardent passions of the people are easily worked upon; and he who is bold or artful enough to address himself to those passions, is ever sure of obtaining a listening and an admiring audience.

INVASION OF BELGIUM.

In the month of May, after due preparations, Captain Home Popham, with a small squadron, having on board a body of troops commanded by Colonel Coote, set sail for the purpose of destroying the sluices, gates, and basin of the Bruges canal at Ostend. This town was bombarded, and the sluices were blown up; but on returning to the beach to re-embark, the soldiers were hemmed in by a superior force, and Coote found himself under the necessity of surrendering.

EXPEDITION TO MINORCA.

An expedition to Minorca was more successful. In the autumn Admiral Duckworth's squadron landed in Addaya Bay in that island a land-force of about eight

hundred men, under General Sir Charles Stuart, which compelled the Spanish governor to surrender the whole of the island by capitulation.

BATTLE OF THE NILE, ETC.

The grand aim of the French directory this year was the seizing and colonizing of Egypt. This idea had been suggested by Vergennes to the French government during the monarchy, and it had for some time been entertained by Napoleon. The blow was chiefly aimed at England; for the project was to gain possession of Egypt, with a twofold design of obtaining the riches of the Nile, and extending their sway to the banks of the Ganges, so that the empires of Turkey and Hindustan might become annexed to the French republic. It was to these ends that Napoleon proposed an expedition to Egypt; and the directory were well pleased with it, because if its great object should fail, they hoped thereby to rid themselves of a dangerous and troublesome rival. But funds were wanting to carry this design into effect; for though Italy and other countries had been pillaged by the French soldiery, with a defiance of all principle or political honesty, yet was the government poverty-stricken: however, the French directory looked around for some weak ally or neutral to plunder, and their cupidity was directed towards free Switzerland. Berne had a well-replenished treasury; and on the flimsy pretext of its having publicly enrolled emigrants and given shelter to deserters, a French army, under General Breme, was sent on the marauding errand of demanding the public purse of its citizens. Success attended this armed banditti; the ruling families of Berne were displaced; the government changed; the most respectable senators were banished; the treasury was confiscated; and large contributions likewise exacted for the supply of the invading army. The money thus fraudulently obtained enabled Napoleon to set sail for Egypt. His expedition counted thirteen ships of the line, with seven frigates and smaller vessels, making in the whole forty-four sail. The fleet was commanded by Bear-admiral Brueys, and the transports had on board about 20,000 men, with a proportionable number of horses and artillery, provisions and military stores, as well as a lai-ge body of scientific men, who joined the armament in order to make researches into the antiquities and productions of Egypt. The capture of Malta was included in the plan of the French directory, and Napoleon arrived there on the 9th of June; and Hompesch, the Grand Master, terrified by the threats of some of the Knights of the Order of St. John of Jerusalem in the French interest, capitulated on a summons to surrender. Having plundered the churches, and the Alberghi, and other establishments of the order, and having left General Vaubois to take care of the island, Buonaparte re-embarked for Egypt. He came in sight of Alexandria on the 29th of June, and on the next day the troops landed within three miles of that city. Alexandria was captured, and from its walls Napoleon issued a proclamation, telling the inhabitants that he came as the friend of the Sultan, to deliver them from the Mamelukes, and that he and his soldiers respected God, his prophet Mohammed, and the Koran. On the 7th of July Napoleon moved from Alexandria to Cairo, and on the 21st, on arriving in sight of the great pyramids, he discovered the whole Mameluke force, under Murad Bey and Ibraham Bey, ready to meet him. Battle was soon joined, and was easily won by the French. Such of the Mamelukes as escaped destruction retreated towards Egypt. The conqueror took possession of Grand Cairo, sending Desaix

against Murad Bey in Upper Egypt.

As the French fleet was sailing towards Egypt, it passed near an English squadron, under Nelson: a thick haze sheltered it from his observation, and favoured its progress. Nelson had been despatched by Lord St. Vincent to watch the preparations at Toulon, having under him three ships of seventy-four guns and four frigates. At the time of the French fleet's sailing he had put into the Sardinian port of San Pietro, to relit his squadron, it having been damaged by a storm. While here, he received a re-enforcement of ten line-of-battle ships, and one of fifty guns; and with this force—except the frigates, which had been separated from him during the storm, he finally set sail towards Naples. Here he learned that the enemy's fleet had visited Malta; and being left by his commander to act upon his own judgment, he formed a plan of attacking it there. On his arrival, however, he discovered that the French had already departed eastward, and rightly judging that Alexandria was their destination, he steered thither. He arrived at Alexandria on the 28th of June, and gaining no intelligence of the enemy, he returned to Sicily. By the public voice of England, he was declared for this failure worthy of impeachment; and Earl St. Vincent was censured for sending so young an officer on so important a service. On arriving at Sicily, the Neapolitan ministry, anxious to avoid everything which could endanger their peace with the French directory, declared openly to aid him; but through Lady Hamilton's influence at court, Nelson procured secret orders to the Sicilian governors, under which he obtained all necessary supplies from Syracuse. As soon as he had re-victualled and taken in fresh water, he turned his power again toward Egypt, asserting in a letter to his commander, that if the French were bound to the Antipodes, or if they were anywhere above water, he would discover them and bring them to action. He searched for them in vain along the coast of the Morea, and he took the resolution of again sailing towards Alexandria; and on the 1st of August, Captain Flood in the "Zealous" signalized the enemy's fleet at anchor in Aboukir Bay. No time was lost by Nelson in preparing for action: he had sought them with eagerness, and he determined to conquer them now that they were discovered. Signals were given for battle: to attack the enemy's van and centre, as they lay at anchor. Nelson had scarcely taken rest or food for some days, but he now ordered dinner to be served up; and he observed to his officers as they rose from the table: "Before this time to-morrow I shall have gained a peerage or Westminster Abbey." The enemy's ships were moored in compact line of battle, describing an obtuse angle, close in with the shore, flanked by gun-boats, four frigates, and a battery of guns and mortars on an island in their van. This was a formidable position, and to some commanders one which would have deterred from an attack. But it was not so with Nelson. As soon as he discovered the enemy's position, his genius dictated what should be done. Where an enemy's ship could swing, he reasoned, there was room for a British ship to anchor. Acting upon this thought, therefore, he determined to station his ships on the inner side of the French line. In this way the two fleets joined battle. Minutely to describe this great sea-fight would require many pages, it will be sufficient therefore to say, that the victory on the part of the English was complete. Of the thirteen French ships of the line, eight surrendered, two struck on the shore and were afterwards captured, one blew up, and two only escaped. Had Nelson not

received a severe wound in the head in the very hottest of the battle, it is probable that not one of the enemy's fleet would have left Aboukir Bay. The British loss in killed and wounded was 895; the French, 8330 in killed, wounded, and captured. "Victory," said Nelson, "is not a word strong enough for such a scene: it is a conquest."

The effects of this battle were soon seen in Egypt. The Sultan issued an indignant manifesto, declaring war against France for invading one of his provinces in a time of peace and amity; and called upon the Pashas of Syria to collect their forces. The destruction of the French fleet was announced far and wide by fires kindled by the Arabs; and on the 22nd of September, the people of Cairo killed a great number of the French in the streets. This insurrection was put down by a dreadful massacre of the inhabitants; but the blood of the Moslems thus slain, and many of them in the great mosque of the prophet, called for vengeance, and it was easy to forsee that Napoleon, albeit he proclaimed himself to be the man of destiny foretold in the Koran, would soon be compelled to retire from Egypt.

In Europe, the effects of this battle were instantaneous and surprising. It raised the drooping spirits of the Anti-Gallican party in every country; and it filled all England with transports of joy and triumph. Nelson was raised to the peerage with the title of Baron Nelson of the Nile, and many other honours were heaped upon him. He returned to Naples, where he found that the king was collecting a numerous army, with a view of driving the French from Rome and Tuscany; that the congress at Radstadt had been virtually broken up; that the Emperor of Austria was again arming; and that a new coalition was forming against the French; their conduct at Rome, in Switzerland, and other countries, being in direct opposition to the conditions of the treaty at Oampo Formio. In November the island of Gozo, separated from Malta by a narrow channel, capitulated to a detachment of Nelson's squadron, and Malta itself was closely blockaded.

[Illustration: 294.jpg PORTRAIT OF LORD NELSON]

MEETING OF PARLIAMENT.

Parliament assembled on the 20th of November. In his speech from the throne his majesty spoke with exultation of the victory gained by Nelson; and after alluding to other successes, and to the suppression of the Irish rebellion, congratulated the country on the prospect of new alliances, by which it might be anticipated that the power of France would be humbled. This alluded more especially to Russia, where the Czarina Catherine had recently been succeeded by her son Paul, whose line of policy was different from that of his mother. The address was animadverted upon in both houses by some members of opposition; but it was, nevertheless, carried without a division.

INCOME TAX SANCTIONED, ETC.

During this session the primary objects of parliamentary Consideration were, financial propositions, with measures for internal defence, for invigorating the European confederacy now forming, and for effecting a permanent union between Great Britain and Ireland. The estimated supplies for the ensuing year were put at

£29,272,000; and Pitt proposed a new plan for raising a considerable part of them—by an income tax. A series of resolutions to this new and bold plan were passed in the house of commons before the close of the year; and the bill finally passed into a law on the 18th of March ensuing, the 5th of April being the day fixed upon for making the returns of personal property. Pitt's resolutions in substance were, that the augmentation of the assessed taxes made in the last session should be repealed, and have its place supplied by a duty upon all incomes above sixty pounds a year. If a man's income exceeded two hundred pounds a year, he was to pay ten per cent, upon it; if it exceeded one hundred pounds, he was to pay considerably less upon it; and if between sixty pounds and one hundred pounds, he was to be taxed in a diminished proportion. This bill, after undergoing some amendments of detail, passed; and Pitt anticipated a revenue from it of £10,000,000, the yearly income of the whole nation being about £102,000,000. Early in the session 120,000 men were voted for the navy, and an increase of the yeomanry and militia was sanctioned.

TREATY WITH RUSSIA.

On the 18th of December a provisional treaty was concluded between Great Britain and Russia; the general object of which was to oppose the progress of the French arms. In allusion to this, on the 18th of December, Mr. Tierney moved, "That it was the duty of ministers to advise his majesty against entering into engagements which might prevent or impede negociations for peace with the French republic." On this occasion Mr. Canning delivered a master-piece of eloquence, which inspired the country at large with admiration of his talents. Mr. Canning entered into a full investigation of our foreign policy, and vindicated the treaties and alliances made by government. He remarked:—"It is justly contended that the deliverance of Europe cannot be effected by our exertions alone, and that, unless other powers are sincerely disposed to co-operate, we are setting out on a romantic and absurd enterprise, which we have no chance of accomplishing, no duty or call to undertake. I perfectly agree, that if other powers are not disposed to co-operate, we have no chance of success; but I cannot help asking at the same time, if there be no such disposition on the part of other powers, where is the use, or what is the necessity of the honourable gentleman's motion? Why need parliament interfere to prevent his majesty's ministers from taking advantage of dispositions which do not exist, and from accepting co-operation which will not be offered? But if the powers of Europe, or any of them, are ready to do their part toward the common salvation, and want only our countenance and encouragement to begin; if the train is laid, if the sparks of resentment, which the aggressions of France have kindled in every nation throughout Europe, want but our breath to blow them into a conflagration, it is the dictate of our duty, our interest, our feeling, to save France from destruction, and not by a coarse and hasty proceeding, like that now recommended to us, to throw a wet blanket on the flames." Mr. Canning proceeded to show how an alliance with Russia and Turkey might enable us to sweep the remains of the French armament from the Levant and the Mediterranean, and how the probable accession of other allies might wrest from the republic both Italy and the Netherlands, Pitt followed in the same strain, eloquently unfolding the favourable prospects of another coalition. The picture he drew made a favourable impression on the house; and Mr. Tierney's motion was lost.

Moreover, all sums required for Russia were voted, and three millions more also were granted to his majesty, for making good such other engagements as he might contract. Soon after this the Porte, Russia, and Naples signed a treaty of union with England, the duration of which was fixed for eight years. Their conditions were generally a mutual guarantee of all possessions, including Egypt in the case of the Porte; a common prosecution and termination of the war; the closing of all harbours, and especially those in the Mediterranean, against the French; with British subsidies to other states. Italy was to be the first field of action for the allied powers, the design being to save the King of Naples from French domination.

UNION WITH IRELAND CONSIDERED

{A.D. 1799}

A plan for uniting Ireland under one legislature with Great Britain, as Scotland, had been discussed and seriously entertained before the breaking out of the recent rebellion; but that event had made the necessity of such a union more apparent. The union of England and Ireland, indeed, was a favourite measure at this time with Pitt; and a pamphlet was published, under his auspices, by the under-secretary, Mr. Cooke, setting forth its advantages. The public mind was therefore prepared to discuss the question; and parliament was soon called upon to take it into consideration. On the 22nd of January a message was received from his majesty, recommending the consideration of the most effectual means of defeating the designs of our enemies to promote a separation between the two kingdoms, by settling such a complete and final adjustment as might perpetuate a connexion essential for the common security, and consolidate the power and resources of the British empire. This message was reported next day, when Mr. Duudas moved and carried an address, importing that the house would proceed with all speed to a consideration of the several interests submitted to their attention. It was agreed that the question should be considered on the 31st of January; and on that day Pitt, after explaining the grounds which would make the union as beneficial to Ireland as to England, proposed certain resolutions as the basis of the measure. Those resolutions were, that the two islands should be united into one kingdom, by the name of the United Kingdom of Great Britain and Ireland; that the succession to the crown should be limited and settled as at present; that the united realm should be represented by one parliament, in which a certain number of Irish lords and commons, hereafter to be defined, should have a seat; that the churches of England and Ireland should be preserved as by law established; that the Irish should be entitled to the same privileges, in point of navigation and trade, with the English, subject to certain regulations relative to equality of duties; that the charge for payment of the interest of the debt of each kingdom before the union, should be continued to be paid by the respective countries; and that all laws in force at the time of the union, and all the courts, civil or ecclesiastical, should remain as already established, subject only to such alterations as circumstances might recommend to the united parliament. After some long and warm debates these resolutions, with some slight amendments, were agreed to, and

sent up to the peers; and after another warm debate in the upper house, a joint address to the king was agreed to, presenting the resolutions as a proper basis for the union. But here, as regarded England, the matter rested for the present year.

PROROGATION OF PARLIAMENT.

During the remainder of this session no subject of vital interest was discussed. Parliament was prorogued on the 12th of July, when his majesty declared that the decision and energy of his ally, the Emperor of Russia, and the intimate union established between them, would enable him to employ the means intrusted to him advantageously, both for the safety and honour of this country, as well as the independence of Europe. His majesty also adverted with satisfaction to the restored tranquillity of Ireland and its future security, intimating that it could only be insured by a complete union with Great Britain.

{GEORGE III. 1798–1801}

CAMPAIGN IN ITALY.

Before the subsidiary treaty was signed between England and the Emperor Paul, the court of Vienna had formed a close alliance with the czar; and Russian troops had begun to assemble on the frontiers of Austria, while a large German army was collecting between the rivers Inn and Lech. The great object proposed was to drive the French out of Italy, where their arms were still making great progress. In November of the last year the liberation of the states of Italy was undertaken by the King of Naples, who placed General Mack at the head of his forces. Mack succeeded in making himself master of Rome; while 5000 troops, conveyed by British ships, took possession of Leghorn. But this success was of short duration. In the month of December the Neapolitan troops suffered a signal defeat at Civita Castellana; and this disaster was followed by the evacuation of Rome. Nor did the French successes stop here. Following up their victory, under General Championnet, by the middle of January they obtained possession of Naples; and the King of Sardinia was obliged to take refuge on board the British fleet. He afterwards went to Palermo under British protection, resigning all his continental territories to his conquerors, who also soon occupied all Tuscany; Sicily was preserved from their domination by the energy of Nelson, assisted by Sir Charles Stuart, who hastened from Minorca with 1000 troops, in order to assist him in measures for its defence.

While Naples was thus falling a prey to the French, Austrian and Russian troops were collecting on the other side of the Alps. After demanding from the Emperor of Germany the dismissal of all the Russian troops, the French negociators declared the congress at Radstadt dissolved. War, therefore, commenced anew with Austria; and Jourdan once more crossed the Rhine, and established himself in Suabia. In the month of March he advanced towards the Danube; but he was again met by the Archduke Charles, who drove him back over the Rhine. About the same time, also, the Austrian generals, Bellegarde and Hotze, recovered the Grison country, and poured into Switzerland, driving the French, under Massena, before them. In the meantime another Austrian army, commanded by General Melas, poured through the Tyrol,

driving all the French outposts before him, and entered Upper Italy, where he obliged the French general, Scherer, to retire beyond the Mincio. Moreau subsequently took the command of Scherer's forces; but he was likewise defeated by Melas. It was while Melas was giving chase to Moreau that Suvaroff came up with 50,000 Russians, and assumed the chief command of both armies. A great battle was gained by Suvaroff at Cassano, on the 27th of April, and by that victory the fate of the Cisalpine republic was sealed; everywhere the people rose in arms against the French; and the native democrats whom the French had set up as a government, Brescia and Peschiera, surrendered; Mantua was invested; and Suvaroff entered Milan in triumph. Moreau continued his retreat towards Genoa, hoping to be joined there by the army of Macdonald from Naples. But Macdonald was already on his route to meet the Russo-Austrian army, which he found by the river Trebia. In his route he had been joined by General Victor; but after three days' hard fighting on the banks of the Trebia, he was defeated by Suvaroff; and flying thence towards the pass of Bochetta, he joined Moreau, who had recently received some re-enforcements from Nice and Genoa. Moreau had made some entrenchments on the declivities of the Apeu nines, and in the entrance of the Bochetta pass, behind the Piedmontese town of Novi. While here he was superseded in command by Jourdan, who stationed himself on the same heights behind Novi, and improved and extended his field-works. He was attacked in this formidable position by Suvaroff; and his army was defeated and himself slain. Shortly after this victory Suvaroff struck across the Alps to make head against Massena, who had recently defeated a Russian corps under General Korsakoff, who had arrived in Switzerland to co-operate with General Bellegarde and the Austrians. There was some fearful fighting in the ravines of St. Gothard, and Suvaroff opened a way into the heart of Switzerland; but not being assisted by either the Russian general, Korsakoff, or the Austrian general, Bellegarde, he turned aside towards the lake of Constance and Germany. He was interrupted in his march by Massena; but he attained his object, and effected a junction with Korsakoff; and then the two Russian generals marched to Augsburg, leaving the French once more absolute masters of Switzerland.

The Neapolitan kingdom was recovered in the course of the months of June and July by Cardinal Ruffo, assisted by Lord Nelson. A sanguinary vengeance was taken on the republicans by the Neapolitan government; and Nelson himself tarnished his fair fame by deeds at which a right-minded Englishman must shudder, and which no one will venture to palliate. It had been guaranteed to the republican garrisons that their persons and property should be respected; but these garrisons were delivered over to the vengeance of the Sicilian court, and that by the brave Nelson. "A deplorable transaction," says his biographer, "a stain on his memory and on the honour of England! to palliate it would be vain; to justify it wicked." Nelson conceived that nothing more was essential to the tranquillity of Naples than the recovery of Rome; and this he effected by a small detachment of his fleet, under the able conduct of captains Trowbridge, Hallowel, and Louis. The French having no longer any hope in arms soon concluded a capitulation for all the Roman states; and Captain Louis, rowing up the Tiber in his barge, hoisted the British standard on the capitol, and acted for a time as governor of Rome.

While the arms of France were thus occupied in Germany and Italy, a favourable opportunity seemed to offer itself for the liberation of Holland. A treaty was effected with the Emperor Paul, by which 17,000 Russian troops were engaged to co-operate with 20,000 English troops in that country. Troops set sail from England in the month of August; find the fleet, under Sir Ralph Abercrombie, after encountering much bad weather, came to anchor off the Helder, a point which commands the entrance of the Zuyder Zee. The troops were disembarked on the 27th, and on the next day took possession of Helder, the French and Dutch republicans having abandoned it in the night; and the Dutch fleet in the Texel surrendered to the British admiral without firing a shot. The main part of the army destined for this enterprise was still in England, and the Russian auxiliaries had not yet arrived. Before they received re-enforcements the invaders were attacked by about 12,000 men; but so strong was their position on the Zuyp, and so bravely was it defended, that the assailants were defeated, with the loss of nearly one thousand men. The Duke of York, with the main force from England, arrived on the day after this battle; and as the allied troops now amounted to 35,000 men, his royal highness, who superseded Abercrombie in the chief command, ventured on active operations. The army advanced, on the 19th, in four columns. That on the extreme right, consisting chiefly of Russian troops, under General De Hermaun, made an unsuccessful attack upon Bergen. Abercrombie with a column penetrated to the city of Hoorn, which surrendered; and the two other columns under Generals Dundas and Pulteney, also forced their way through great difficulties, in a tract of country intersected with deep ditches and canals. The rash confidence of the Russians, however, soon exposed the whole army to such danger that it was compelled to retire to its original position. For some time, in consequence of tempestuous weather, the invading force was blocked up by inferior numbers; but on the 2nd of October the British army resumed the offensive, and commenced an attack on the enemy’s whole line. A battle was fought at Egmont, which was favourable to the British; for, although it was indecisive, yet the retreat of the enemy in consequence gave them an opportunity of occupying several strong positions. The republican soldiers took up a strong post between Beverwyck and the Zuyder Zee; and the Duke of York resolved to attack them there, before their position could be strengthened by fresh works or re-enforcements. An action took place on the 6th of October, and it terminated so far in favour of the British and the allies, that they were left masters of the field; but the loss on both sides was very severe; and the enemy, who soon afterwards received a re-enforcement, maintained their position. The allied army, indeed, soon found itself in so critical a situation from the strength of the enemy, the severity of the weather, and the indifference of the party of the stadtholder, that the Duke of York suddenly issued an order for the troops to assemble; and they commenced a retreat toward Pelleu and Alkmaer. Before the troops could re-embark, however, the Duke of York was compelled to conclude a convention, by which it was agreed that the English and Russians should be allowed to leave Holland without molestation, on condition that 8000 prisoners of war, French and Batavians, then detained in England, should be released.

{GEORGE III. 1798—1801}

CAMPAIGN IN EGYPT.

It has been seen that Napoleon had entered Cairo, and that his fleet while there was annihilated in Aboukir Bay. In the month of February he quitted Cairo, with the intention of dispersing the Turkish forces that were collecting near the Syrian frontier, and then of conquering all Syria. Gaza and Jaffa were stormed; the man of destiny, as Napoleon styled himself in Egypt, swept everything before him until he came to the walls of Acre. This place, which is the key of Syria, was defended by the Pasha Djezzar; by Colonel Philippeaux, an emigrant royalist; and by Sir Sidney Smith, with some of his sailors and marines. It was in vain that Napoleon attempted to breakthrough the crumbling walls of this ancient place: sixty days were spent before them, and seven or eight assaults made; but he was every time repulsed, and after losing three thousand men, he was compelled to raise the siege and return to Cairo. During his absence General Desaix had ascended the Nile, and had driven the remnant of the Mamelukes from Upper Egypt and beyond the cataracts of Assonau; and soon after his return he was called down to the coast, where Nelson had annihilated the French fleet, by the arrival of a Turkish army, amounting to 18,000 men. A terrible battle was fought on the 25th of July; but the French were victorious—10,000 Turks perished. Napoleon now began to make secret preparations for returning to France; and on the 23rd of August he embarked secretly in a frigate, leaving his army, which was reduced to 20,000 men, behind him.

ESTABLISHMENT OF THE CONSULAR GOVERNMENT IN FRANCE.

The return of Napoleon agitated all France and all Europe. The character of this bold soldier was, indeed, now well known, and none could tell what game fraught with blood he next might play. Suspicion was well founded: Napoleon had designs in view when he returned from Egypt which time alone could unfold. The fact is, when in Egypt, letters from his brothers Joseph and Lucien, and from some of his admiring friends, informed him that Italy was lost; that the French armies were everywhere defeated; that the directory were quarrelling among themselves; and that the people, sick of the present state of affairs, were ripe for another revolution. Here then was another field for the ambitious to play their part; and Napoleon resolved to return to it. He had arrived in Paris two days before the directory knew anything about it; and in the meantime he had been consulting with chiefs of parties and officers of the army as to what step should be taken. Talleyrand and the Abbé Sieyes gave his councils the benefit of all their abilities; and a plan of attack upon the constitution was soon agreed upon. The Council of Ancients were easily persuaded that a new constitution was wanting; but the Council of Five Hundred vowed that they would die for that which they had already got. On the 9th of November it was agreed in the Council of Ancients that the assembly should adjourn to St. Cloud, and that Napoleon should put this into execution, being made supreme commander of all the forces for that purpose. The sitting was then dissolved; and Napoleon instantly issued two proclamations, announcing his command, and inviting the army and national guard to aid him in restoring liberty, victory, and peace to France. In this state of affairs, Barras, Sieyes, and Ducos, three of the directory, resigned; Moulins and Gohier remained to support the present constitution. These, however, by the orders of

Napoleon, were guarded in the Luxembourg, so that the directory was in point of fact dissolved. It remained now for the councils to form a new executive; and to this end they met at St. Cloud, surrounded by troops. The Council of Five Hundred swore fidelity to the constitution; and Napoleon resolved to crush them. At his command the troops entered the Orangery with fixed bayonets, and the deputies were glad to make their escape by the windows and through the adjacent woods. On that evening the Council of the Ancients and about fifty of the scattered Five Hundred abolished the directory, and established in its place three consuls, who, with two committees chosen from each council, were charged with the task of preparing a new constitution. These consuls were Napoleon, Sieyes, and Ducos, the men who concerted together to bring about this new revolution. “Thus the French revolution closed its agitated career almost in the point from whence it set out—in despotism.” All their hopes of the blessings of liberty were with one fell blow dashed to the ground by the conqueror of Egypt and Italy—by one man, and he of men one of the meanest.

[Illustration: 298.jpg LAST EFFORT OF TIPPOO SAIB]

AFFAIRS OF INDIA.

During this year the power of Tippoo Sultaun was destroyed. Recently he had been encouraged in his hostility by the French, who eagerly sought to strike a blow at the commercial prosperity of Great Britain. It was for this purpose that the Egyptian expedition had been undertaken, and for this purpose likewise alliances were formed with the native powers of India. In Tippoo Sultaun the French found an implacable foe to the English—a foe which was ever ready to unsheathe his sword to destroy them. In order to crush their power and to regain what he had lost in the late war, Tippoo Sultaun had sent an embassy to Cabul, to bring the Affghan tribes down into India; he had negociated with the Nizam of the Deccan and with other native princes; and in 1797 he had sent two ambassadors to the Isle of France to propose an alliance with the French republic, and to request a supply of troops sufficient to enable him to expel the English from every part of Hindustan. The governor of the Isle of France had no troops to spare; but he forwarded Tippoo’s letters to France, and allowed his ambassadors to enrol some Frenchmen for his aid. Some sixty or seventy of these volunteers proceeded to Tippoo’s capital, where they first set up a tree of liberty, and next proceeded to organize a Jacobin club. These proceedings soon became known to the government at Calcutta; and the Earl of Mornington, then Governor-general of India, determined to anticipate Tippoo. Troops were sent under Generals Harris and Stuart; and the sultan was defeated in the route, and compelled to take refuge in his fortified capital. Seringapatam was besieged, and on the 4th of May was stormed and captured. Two of his sons were taken alive; but Tippoo fell near one of the gates, and was found buried under a heap of dead bodies. His territories were divided among his enemies; the English kept Seringapatam with the island on which it is situated, the whole of his territories on the Malabar coast, the district of Coimbatoor, and all the country that intervened between the company’s possessions on the western and those on the eastern coast; the Nizam of the Deccan obtained a more inland country; and another great tract of country was conferred upon a descendant of the ancient

Hindoo rajahs, who had been dispossessed by Hyder Ali. Thus ended a dynasty which was founded by a daring adventurer on the ruins of the Hindoo house of Mysor. It began and ended its career in spoliation and the shedding of blood.

MEETING OF PARLIAMENT.

The British parliament assembled on the 24th of September. The chief object of this early meeting Was the introduction of a bill for facilitating the re-enforcement of our regular army, by allowing three-fifths of the militia of each county to enlist in the regulars, for service within Europe. This bill passed into a law on the 4th of October; the remainder of the session, previous to the Christmas recess, was occupied by commercial and financial matters. The supplies granted were between six and seven millions; but these were only for the time being: parliament again separated on the 12th of October.

PARLIAMENTARY DISCUSSIONS.

{A.D. 1800}

On Christmas day of the preceding year, the first consul, Napoleon, addressed a letter from the ancient palace of the Bourbons to the King of Great Britain, indicating a desire of peace in these terms:—“How can the two most enlightened nations of Europe, powerful and strong beyond what their safety and independence require, sacrifice to ideas of vain greatness, the benefits of commerce, internal prosperity, and domestic happiness? How is it that they do not feel that peace is of the first importance as well as the first glory? These sentiments cannot be foreign to the heart of your majesty, who reign over a free people, and with the sole view of rendering them happy. France and England, by the abuse of their strength, may still, for the misfortune of all nations, long retard the period of their exhaustion, but I will venture to say, that the fate of all civilized nations is attached to the termination of a war which involves the whole world.” The answer given to this letter intimated, that the French government afforded no ground for trust; but notwithstanding this repulse, Napoleon made another attempt at negociation. Talleyrand, in a letter to the British secretary, vindicated France from the censures contained in this reply; throwing the blame of war on the league of European powers, and offering a suspension of arms, that plenipotentiaries might meet at Dunkirk or elsewhere, as might be agreed upon, for the purpose of making a treaty of peace. The reply to this communication was equally unsatisfactory as that made to the letter of the first consul. His majesty expressed his concern that the unprovoked aggressions of France were defended by her present ruler; and refused to enter into a refutation of allegations universally exploded, and, as far as his own conduct was concerned, utterly groundless. This correspondence was the first subject of importance which engaged the attention of parliament after its adjournment; and while the minority animadverted on the precipitancy by which the door was closed against all hopes of pacification, the majority approved of what had been done, and it was determined to prosecute the war with vigour.

On the 17th of February a debate took place on a royal message, in which his majesty, after stating that he was concerting such engagements with the Emperor of Germany, the Elector of Bavaria, and other powers of the empire as might be conducive to the advantage of the common cause in the course of the ensuing campaign, informed the house that he was desirous of authorising his minister to make provisionally such advances of money as might be necessary for this purpose. Pitt declared that £500,000 was all that he required at the commencement; and after some little opposition, his motion for the grant was carried by a large majority. Ministers were also equally well supported in a proposal, made by opposition, for an inquiry into the causes of the disgraces which had attended the British arms in Holland: it was quashed at once.

The total supplies voted for this year was £47,900,739. The income-tax was continued; and there was a loan of £21,000,000, including a vote of credit. For two months 120,000 seamen and 90,000 soldiers were granted, exclusive of subsidiaries; but for the rest of the year 10,000 were deducted from each number. On the annual motion for renewing the act for suspending the _Habeas Corpus_ bill, there was a stormy debate; but the measure was carried with the usual majorities. An attempt made by a maniac named Hadfield to shoot the king in Drury-lane theatre, led to the insertion of two additional clauses in the insanity bill, by which the privilege of bail to alleged lunatics was abridged, and the personal safety of the sovereign thereby consulted. Subsequently a committee of each house was appointed to consider of the most effectual means for remedying the distress which prevailed at this time, from a scarcity of corn; and a bill was brought in and passed, prohibiting the sale of bread which had not been baked twenty-four hours, it being generally admitted that stale bread satisfied the appetite sooner than new bread. The Archbishop of Canterbury recommended a series of resolutions in the upper house, and a voluntary association, by which each of their lordships should bind himself to lessen the consumption of bread and flour in his family, by using such articles as might be conveniently substituted in the place thereof. These resolutions were passed unanimously in the upper house; and the commons, from a message sent them from the lords, fully concurred with their lordships. This example of the lords and commons was followed very generally by the upper classes throughout the kingdom; and thus effectual relief was afforded by the simple means of self-denial.

Another measure taken into consideration this session tended to morality of conduct. Of late the crime of adultery had become very prevalent; and it was thought by political moralists that intermarriage, permitted to the offending parties after a divorce, was one fertile source of crime. A bill was proposed by Lord Auckland to prevent such intermarriage; but it was rejected by a considerable majority, it being doubted whether it would prove effectual to the diminishing of the crime to which it referred.

Among other parliamentary topics discussed this session was that of the affairs of the East Indies. Mr. Dundas having investigated the state of its finances, detailed them to the commons; and on the whole, from his statements, the company’s affairs appeared to be in a flourishing condition. An act was passed, instituting a high court

of judicature for that of the recorder of Madras.

UNION WITH IRELAND COMPLETED.

The most important act of this session was the completion of the union between Great Britain and Ireland. At first the resolutions which had passed the British parliament excited much opposition in the Irish parliament and throughout the country. When the Irish commons debated on an address proposed by ministers, in answer to the speech from the throne in January, 1799, it was carried only by one vote; but on the 15th of January, 1800, a motion made in the same house to declare their disapprobation of the union, was negatived by one hundred and thirty-eight against ninety-six. Subsequently the measure of the union was agreed to by a large majority in the Irish parliament, both in the lords and the commons. On the 27th of March, indeed, the two Irish houses agreed in a joint address, informing his majesty that they considered the resolutions of the British parliament as wisely calculated to form the basis of an incorporation of Great Britain and Ireland into one kingdom; that they adopted them as their guide; and that they now laid before his majesty certain resolutions which they had agreed to, and which, if they should be approved by the two houses of parliament of Great Britain, they were ready to confirm and ratify, in order that the same might be established for ever, by mutual consent of both parliaments. On the 2nd of April this address was made the subject of a message from his majesty to the British parliament. In addition to the resolutions adopted by the British parliament, it was proposed by the Irish parliament, that the number of Irish peers to be admitted to the house of lords of the United Kingdom should be four lords spiritual, by rotation of sessions, and twenty-eight lords temporal, elected for life by the peers of Ireland; and that the number of representatives to be admitted into the house of commons should be one hundred. Such a union as this was opposed in the upper house by Lord Holland, on the grounds that it would not remedy the discontents of the various classes of society in Ireland; that it would not insure a redress of their grievances, but would increase the influence of which they now loudly complained; that it was offensive to the great body of the Irish people; and that, if carried into effect, it would endanger the connexion between the two countries, and probably produce mischief. The measure was defended in the upper house by Lord Grenville; and on a division eighty-one peers voted with him, and only two with Lord Holland. In the commons the union was opposed from the supposition that it would injure our constitution, inasmuch as the influence of the crown, arising from places in Ireland being to be concentrated upon only one hundred members instead of three hundred, it must necessarily be augmented. Pitt denied that the union would, or that he wished it to have such an effect; and he contended that the system proposed was calculated to favour the popular interest. The members for Irish counties and principal cities, he said, would be sixty-eight, the remaning thirty-two members being to be elected by towns the most considerable in population and wealth; and that, as the proposed addition would not make any change in the internal form of representation, it would entail none of those dangers incident to innovation. If anything could counterbalance the advantages that must result from the union, he remarked, it would be the necessity of disturbing in anyway the representation of England; a necessity which happily did not exist. He continued:—“In stating this I

have not forgotten what I have myself formerly said and sincerely felt upon the subject of parliamentary reform; but I know that all opinions must necessarily be subservient to times and circumstances; and that man who talks of his consistency merely because he holds the same opinion for ten or fifteen years, when the circumstances under which that opinion was originally formed are totally changed, is a slave to the most idle vanity. Seeing all that I have seen since the period to which I allude, considering how little chance there is of that species of reform to which alone I looked, and which is as different from the modern schemes of reform as the latter are from the constitution;—seeing that where the greatest changes have taken place the most dreadful consequences have ensued, and which have not been confined to the country where they originated, but have spread their malignant influence to almost every part of the globe, shaking the fabric of every government;—seeing that in this general shock the constitution of Great Britain has alone remained pure and untouched in its vital principles;—I say, when I consider all these circumstances, I should be ashamed of myself if any former opinions of mine could now induce me to think that the form of representation which, in such times as the present, has been found amply sufficient for the purpose of protecting the interests and securing the happiness of the people, should be idly and wantonly disturbed from any love of experiment or any predilection for theory. Upon this subject I think it right to state the inmost thoughts of my mind; I think it right to declare my most decided opinion that, even if the times were proper for experiments, any, even the slightest, change in such a constitution must be considered as an evil." Pitt proposed the adoption of the resolutions voted by the Irish house of parliament; and after some opposition, especially from Mr. Grey, who moved an amendment, which was lost, they were carried without further delay. All proceedings both in England and Ireland relative to this great measure were concluded in the month of June; and on the 2nd of July the act of union received the royal assent. His majesty declared that he ever should consider this measure as the happiest of his reign. The Irish session, which had been prolonged till the bill passed in England for the purpose of ratifying it was dissolved on the 2nd of August, and with it the existence of the Irish parliament. On the subject of this union Dr. Miller remarks:—"The whole history of Ireland up to the union presents a series of events most curiously combined. Its early period, unhappy as it was, prepared that party of Roman Catholics which, in the struggles terminated by the English revolution, was opposed as an antagonist force to the Scottish Presbyterians, and thus assisted in effecting the adjustment of the English government. When this important function had been discharged, Ireland had to prepare itself for entering with advantage into the general incorporation of a united empire; the preceding period of its history, however beneficial in assisting to adjust the balance of the English constitution, having been inauspicious to the domestic interests of the country. Of that preparation it was a necessary condition that one of the two parties by which it was distracted should suffer a temporary depression, so entire that the other should not be embarrassed or obstructed in its efforts to obtain national independence. The prosperity, however, thus acquired extended its influence even to the party by whose depression it had been obtained; and the Roman Catholics, participating in the advantages of Protestants, rose again to a political importance, in which they were opposed to the ascendancy of the prevailing party. A

short struggle of rebellion, the natural result of an ungoverned desire of independence among a portion of the Protestants, aided by the ancient disaffection of the adverse party, brought the country into a situation in which the minister was able to consolidate the empire by the union of Ireland." It was hoped that this great measure would have the effect of conciliating the Irish Catholics; but experience has proved that they are still dissatisfied with the rule of England. It is evident, in fact, that ages will elapse before the Irish consider themselves to be "one and indivisible" with the English—before they are satisfied with the sway of the house of Brunswick.

{GEORGE III. 1798—1801}

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 29th of July. His majesty's speech expressed peculiar satisfaction at the effecting of an entire union between England and Ireland, he being persuaded that it would tend to their mutual interests. There were other less cheerful notes in the royal speech; for the campaign of this year, which had been commenced with success, had by a sudden reverse ended in defeat.

CAMPAIGN IN ITALY.

It has been seen that the Russian troops had plucked the laurels which the French had gained in Italy from their brows. Thus situated the French government sent Massena across the Alps, together with generals Soult, Oudinot, and Brune, to refix the national banners on the banks of the Po. Their efforts were vain; Massena was finally driven by the Austrians within the ramparts of Genoa. Assisted by a British squadron the Austrians formed the siege of Genoa; and Massena had in a little time no other alternative but to force his way through the enemy or to surrender. In this emergency Soult attempted to open the blockade, and leading on his division he attacked their fortified post of Monte Creto, and penetrated into the enemy's camp. But his career was checked. Recovering from their surprise, the Austrians met the French with firmness, and they were put to flight. Massena was obliged to capitulate, and Genoa was evacuated. But here the success of the allied armies was checked. Giving the command of the Rhine to Moreau, Napoleon assumed the direction of the army of Italy. A battle was fought in the plain of Marengo, which annihilated the fruit of all the Austrian victories in the preceding campaign, and put Italy again under the power of France. Melas saw himself forced, by the hopelessness of his position, to the proposal of an armistice as the only means of deliverance; and it was granted upon these conditions:—that the Austrians should retreat beyond the Mincio; and that Genoa, Tortona, Alessandria, Turin, Arona, Coni, Ceva, Savona, Milan, and several other-cities, with all Piedmont and Liguria, and nearly all Cis-alpinia should be given up to the French government. The star of Napoleon shone more brilliant than ever; and leaving the Italian army under Massena, he returned to Paris to reap the fruit of his conquest.

In the meantime the Austrians had been likewise defeated in Germany. On the 25th of April Moreau crossed the Rhine upon six points; and in several battles at Enger, Stockach, and Moesskirch, defeated Field-marshal Kray, who was now at the head of

the Austrian troops. Kray was compelled to retreat before him; and Moreau finally occupied a large part of Bavaria as well as Munich. Lecourbe also drove the Austrians from the Grisons and entered the Tyrol; while on the left another army of French and Batavians were preparing to penetrate into Franconia and Bohemia. The court of Vienna now sued for an armistice, which was granted; and on the 28th of July preliminaries of peace, on the basis of that of Campo Formio, were signed at Paris. The world now expected peace. The emperor, however, having received his subsidy from England, and concluded a new treaty with that power, again unsheathed his sword. He declared the truce at an end; and both sides prepared again for the strife. The emperor putting himself at the head of his army, endeavoured to rouse the whole force of Germany; but the north was kept inactive by the neutrality of Prussia, and other princes were overawed by the invaders. Another armistice was purchased by him for the short space of forty-five days, by the delivery of Philipsburg, Ulm, and Ingoldstadt; and when this period expired, late as the season was, both parties took the field. The contest was soon decided. On the 2nd of December a battle was fought at Hohenlinden, between the rivers Iser and Inn, in which the Austrians, under Archduke John, were utterly defeated. Moreau advancing occupied Saltzburg; and the road to Vienna was not only open to his army, but also to the armies of Brune and Macdonald. In this emergency the Emperor Francis was compelled to sue for a separate peace, and the British government obliged to release him from the terms of his alliance. A treaty was signed in the ensuing February, which ratified all the conditions of the treaty of Campo Formio, and included several new articles of an humiliating nature to the house of Austria. Tuscany was taken away from the Grand Duke Ferdinand and bestowed upon Louis, son of the Duke of Parma; and the emperor again acknowledged the independence of the Cisalpine and Ligurian republics, renouncing all right or pretension to any of those Italian territories, A new and extended frontier also was drawn for the Cisalpines, the line of the Adige being taken from where that river issues from the Tyrol down to its mouth on the Adriatic. Piedmont was for the present left to the King of Sardinia; and shortly after this monarch, through the mediation of the Czar Paul, obtained a peace, agreeing on his part to close his ports against the English, withdraw some troops sent into the Roman states, and to give up the principality of Piombino, with some other detached territories on the Tuscan coast. Through the same mediation Italy was treated by Napoleon with leniency; and Pope Pius VII., recently elected to the Pontificate, was allowed to retain the reins of government.

CAPTURE OF MALTA.

During this year the island of Malta, which had been blockaded for more than two years, was surrendered to Major-general Pigot. The French troops who had defended it were permitted to return to France, on condition of not serving till regularly exchanged. This was a great prize, for Malta is the citadel of the Mediterranean, as Gibralter is its key: from this time it became a pillar of the British throne.

NAVAL OPERATIONS.

The naval operations of England this year were various, though no very important results accrued therefrom. The small island of Goree on the western coast of Africa

surrendered to Sir Charles Hamilton; and the British captured the Dutch island of Curaçoa. A squadron was sent under Sir Edward Pellew to the peninsula of Quiberon; but all that was done was to destroy some brigs, sloops, gun-boats, and a few trading vessels. This armament proceeded to the coast of Spain to destroy the arsenal and the shipping at Ferrol; but it was attended with the same ill-success. The land forces accompanying it under Sir James Pulteney then joined to those of Sir Ralph Abercrombie, who, with the Mediterranean fleet under Lord Keith, was to make an attack upon Cadiz, and to capture or destroy the Spanish fleet. But this enterprise was given up as impracticable; and soon after General Pulteney was sent to Lisbon for the defence of Portugal, now threatened by Spain; and General Abercrombie received information that his troops were to be employed in Egypt. The year, however, was now far spent, and it was the middle of December before the armament arrived as far as Malta.

MEETING OF PARLIAMENT.

In the midst of these foreign reverses—for such many of the events may be termed—the scarcity of grain still continued in England. The national spirit was greatly depressed by these circumstances, and notwithstanding the hand of charity was active in the alleviation of distress, several riots took place throughout the kingdom. London was much agitated: but the Lord Mayor, Mr. Combe, by the aid of volunteers, succeeded in repressing the commotion without bloodshed. In order to obtain relief, the city of London and other places petitioned the King to convene parliament; and it assembled in the month of October, and passed in rapid succession a number of acts, granting bounties on the importation of foreign corn, enjoining the baking of mixed and inferior flour, &c. The distillation of spirits from grain was also suspended. But the hand of private charity did more good than all this legislation: it was opened wide, and the sufferings of the poor were thereby greatly alleviated.

MOTIONS FOR PEACE, ETC.

On the 1st of December, after sundry attacks on the foreign policy of the ministers, Sheridan moved for an address to his Majesty, praying him to enter into a separate négociation with France, for a speedy and honourable peace. This was negatived; and on the 4th of December, Mr. T. Jones moved another address, imploring his Majesty to dismiss his present ministers; but this was likewise rejected. The supplies voted were for three lunar months only; 120,000 men were granted for the service of the navy, from the 1st of January to the 1st of April, 1801. The king closed the session of parliament on the last day of the year. His majesty said that the time fixed for the commencement of the union of Great Britain and Ireland necessarily terminated their proceedings, and that the Imperial Parliament—as the united parliament was to be denominated—was appointed to meet on the 22nd of January, 1801. Before he retired, his majesty ordered the chancellor to read a proclamation, declaring that the individuals who composed the expiring parliament, should be members on the part of Great Britain, of the New or Imperial Parliament.

CHAPTER XXV.

{GEORGE III. 1801–1806}

Commencement of the Union with Ireland..... Meeting of Parliament..... Resignation of Mr. Pitt, &c. The New Ministry..... Motion for an Inquiry into the State of the Nation..... Parliamentary Measures..... War with the Northern Powers..... Dissolution of the Northern Confederacy..... Expedition to Egypt..... Affairs on the Continent..... Naval Operations..... Treaty of Amiens..... Meeting of Parliament..... Parliamentary Measures..... Preparations for Hostility..... Meeting of the New Parliament..... Trial of Colonel Despard..... Parliamentary Proceedings..... Act to Relieve Catholics, &c. War Proclaimed with France..... The Causes for the renewal of War with France..... War with Holland..... Militia Bill, &c. Financial Measures..... Prorogation of Parliament..... Insurrection in Ireland..... Letter of the Prince of Wales..... Movements of the French..... Naval Conquests..... East India Affairs..... Meeting of Parliament.

COMMENCEMENT OF THE UNION WITH IRELAND.

{A.D. 1801}

On the 1st of January a royal proclamation was issued, concerning the style and titles appertaining to the imperial crown of Great Britain and Ireland; and also to the ensigns, armorial flags, and banners thereof. The regal title was thus expressed:—“George the Third, by the Grace of God, of the United Kingdom of Great Britain and Ireland King, Defender of the Faith.” The great seal was made in conformity with the alterations made in the titles and arms. In the new heraldic arrangement the _fleur de lis_ was omitted, and the title of the King of France wisely expunged. The arms or ensigns armorial were ordered to be quarterly:—first and fourth England, second Scotland, third Ireland. In honour of the union, many new titles were conferred on the Irish nobility, and several of them were created peers of the United Kingdom.

MEETING OF PARLIAMENT.

The first imperial parliament was opened by commission on the 22nd of January. The king did not meet his parliament till the 2nd of February, when, in his speech from the throne, after adverting to the happy accomplishment of the union, and to the adverse course of events on the continent, he announced a fresh storm in the north. The court of Petersburgh, he said, had proceeded to commit outrages against the ships, property, and persons of his subjects; and a convention had been concluded by that court with those of Copenhagen and Stockholm, by which they were engaged to re-establish a new code of maritime law, inconsistent with the rights and hostile to the best interests of the country. His majesty stated that he had taken the earliest measures to repel the aggressions of this confederacy, and he called upon both houses of parliament to afford him the aid required in the emergency. The debates which ensued were of an interesting character. In both houses opposition recommended conciliatory measures; and some even proposed the suspension of the right of search we claimed at sea, or a tacit assent to the principles of the armed neutrality, on the ground that terrible consequences would attend the closing of the

corn-ports on the Baltic in this season of scarcity. In the upper house an amendment to the address was moved by Earl Fitzwilliam; but on a division the address was carried. Mr. Grey was the chief opposer of the address in the commons; he likewise moved an amendment; but the address was there carried by a majority of one hundred and eighty-two. Preparations were, therefore, now made for sending the British fleet into the Baltic; and this, it will be seen, together with the death of the Czar Paul, soon put an end to this coalition.

RESIGNATION OF MR. PITT, ETC.

In bringing about the union of England and Ireland, Pitt had given assurances to the Irish Catholics of a complete participation in political privileges, as soon as that union should take place. This proposition was submitted to the cabinet-council, some of the members of which expressed their dissent to the measure. But its chief opposer was the king, who alleged that the coronation oath precluded his compliance with a scheme which might endanger the ecclesiastical establishment. Under these circumstances Pitt felt bound to retire from the administration; for although his majesty promised not to use his influence in obstructing the progress of the measure through parliament, it was manifest, that as he was known to be adverse to it, there would be no chance of success. On the resignation of Mr. Pitt, his majesty entrusted the formation of a new cabinet to Mr. Addington, who resigned his post for that purpose. On account of financial arrangements, however, and the difficulty of settling the new appointments, Mr. Pitt consented to remain at his post a little longer. His majesty a few days after was taken ill; and it appears that his indisposition was a return of his former malady, brought on by the Catholic question and the resignation of the premier. This caused him to remain at his post still longer, and then further delay was occasioned. On the 18th of February the house resolved itself into a committee of supply. The sum required was £42,197,000 of which Ireland was to pay £4,324,000, and England the remainder. To raise this, recourse was had to the old system: £25,000,000 was borrowed, and the rest was raised by taxes, some of which were newly imposed. Besides the money borrowed for England, it was found necessary to borrow about £2,500,000 for Ireland. These resolutions being agreed to, with some slight alterations, Pitt, on the 14th of March, resigned office; and he was accompanied in his resignation by Dunclas, Earl Spencer, Lord Grenville, and Windham; and other changes took place shortly after. In the lords, the reasons of their resignation were thuss given by Lord Grenville:—“We wished that the benefits of the union should be rendered as great and extensive as possible, by the removal of certain disabilities under which a great portion of the inhabitants of Ireland laboured. Imagining that this measure could only be effectual by coming from the executive government, we felt it our duty to propose it to those who direct his majesty’s councils: it was not deemed eligible, and we were unable to prevail. As our opinion of its policy remained unaltered, and we still think this measure alone capable of establishing the tranquillity and prosperity of the empire on a permanent basis, we consider ourselves bound to retire. Accordingly we have tendered to his majesty the resignation of our several employments, and he has been graciously pleased to dispense with our services.” By Pitt’s enemies it was said, that his delicacy about his pledged faith to the Irish, and his sense of the justice and expediency of granting

Catholic emancipation were but pretexts; and that the real cause of his resignation was the tardy conviction that he had involved the country in a labyrinth from which he had not the power to extricate it—being too weak to carry on the war, and too proud to make peace with the French. These imaginings were not founded in justice. Pitt, up to the period of the union, had uniformly opposed Catholic emancipation; but he now thought conscientiously that it ought to be carried into effect, in order to make the union complete. As for being dismayed at the hostile array in the north or in any part of Europe, it does not appear at all probable. Almost the last words of Pitt before he resigned office were full of hope and confidence: “he was convinced,” he said, “that the British fleet would, with one blow, shatter the coalition of the north.” There is no reason, in truth, for doubting the word of Pitt that the question of Catholic emancipation was the real cause of his resignation. How far he was implicated in the question, and to what extent he stood pledged, is not fully known; but that was the rock on which Pitt’s ministry foundered their bark.

THE NEW MINISTRY.

The new ministry when formed consisted of Mr. Addington, first lord of the treasury and chancellor of the exchequer, the Duke of Portland, president of the council; Lord Eldon, chancellor; Earl St. Vincent, first lord of the admiralty; the Earl of Chatham, master general of the ordnance; Lord Pelham, secretary for the home department; Lord Hawkesbury, secretary for foreign affairs; Lord Hobart, secretary for the colonies; Viscount Lewisham, president of the board of control for the affairs of India; Mr. Yorke, secretary of war, &c. In this general change, indeed, the Duke of Portland and Lord Westmoreland alone retained their seats in the cabinet, the former as president of the council, the latter as lord privy seal. The sentiments which the new ministry maintained were made known by Lord Grenville in his explanation before mentioned. After commenting on the effect of past exertions, his lordship remarked:—“It is our consolation to reflect, that the same vigorous line of conduct will be still pursued; no change of measure will take place; but the system which has already proved so salutary will be maintained by our successors.” This proved true; although some supposed that they would seek peace, it was soon discovered that war was to be continued. Addington professed anti-warlike sentiments, but he found there was no alternative but to continue the contest.

MOTION FOR AN INQUIRY INTO THE STATE OF THE NATION.

A motion was made both in the lords and the commons, soon after the reassembling of parliament, for instituting an inquiry into the state of the nation. In the upper house it was moved by Lord Darnley, who proposed such an inquiry as might point out remedies for the disorders of the state. He was supported by the Earl of Carlisle, the Marquis of Lansdowne, and Earl Fitzwilliam; but his motion was lost by a considerable majority. In the commons the necessity of inquiry was strongly urged by Mr. Grey, and ably supported by Sir William Young and Lord Temple, but his motion shared the fate of its counterpart in the upper house. The debate was chiefly remarkable in the commons for calling up Pitt to defend himself and the system which he had pursued, which he did with unanswerable argument. It was on this occasion that he made explicit declaration of the motives which induced him to

resign.

PARLIAMENTARY MEASURES.

During the sitting of this new parliament acts were passed for the suppression of rebellion, and for the suspension of the _Habeas Corpus_ Act in Ireland, that country still remaining in a turbulent state. The suspension of the _Habeas Corpus_ Act was continued also for England and Scotland, and an act for preventing seditious meetings was revived. Acts of indemnity were likewise passed in favour of all persons concerned in the securing, imprisoning, and detaining individuals under the suspension of the Habeas Corpus Act, both in Great Britain and Ireland, from the period when that suspension took place in the respective countries. Various motions to the miscarriage of expeditions—to the conduct of Admiral Lord Keith in breaking the convention of El Arish, &c.—were made during the session, but were all negatived. Additional supplies were demanded by Mr. Addington, and sanctioned by the house. The session was prorogued by commission on the 3rd of July.

WAR WITH THE NORTHERN POWERS.

The late ministry had issued an order in council, dated the 14th of January, imposing an embargo on all Russian, Swedish, and Danish vessels in the ports of Great Britain; and preparations were also made to send a fleet into the Sound, and to hazard all the evils likely to result from a war, which threatened to exclude the British flag from the navigation of the Baltic, and her commerce from the shores of the Elbe, the Embs, the Vistula, and the Weser. On the other band, preparations were also made by the governments of Russia, Denmark, and Sweden for the coming strife. In the course of the spring the Danes took possession of Hamburgh, for the alleged purpose of stopping the British trade to that port. The King of Denmark was now likewise joined by the King of Prussia, who seized this occasion to invade Hanover, and to reduce it to his own dominion. As no hopes, therefore, could be entertained of the pacification of Europe on terms honourable to Great Britain, a British fleet, consisting of eighteen ships of the line, and four frigates, with a number of gun-boats and bomb-vessels, were dispatched against her enemies. This fleet proceeded from Yarmouth Roads for the Baltic, under the command of Admiral Sir Hyde Parker, assisted by Vice-admiral Lord Nelson and Rear-admiral Tolly. It sailed on the 12th of March, and as it was supposed that Denmark, whose prosperity had increased considerably during the war, might be prevailed upon to sue for forbearance; the first efforts of the armament were directed against her capital. On board was Mr. Vansittart, who, as minister plenipotentiary, was to seek to detach the court of Copenhagen from the northern alliance before proceeding to extremities. His mission, however, failed; he returned with a report that he had left the Danish government hostile in the highest degree to the court of Great Britain, and in a state of preparation far exceeding what our cabinet had considered possible. Nelson advised that no time should be lost in attacking the enemy; and Sir Hyde Parker, who was “nervous about dark nights and fields of ice,” having yielded to his persuasions, it was determined to force the passage of the Sound. This was done without great loss: on the 31st of March the fleet anchored between the isle of Huen and Copenhagen. Sir Hyde Parker, Lord Nelson, and other officers proceeded in a lugger

to reconnoitre the enemy's preparations, which they found to be of a very formidable nature. Undaunted, however, by any fear of danger, Nelson offered to lead the attack, requiring for the service ten ships of the line, with all the smaller craft. Sir Hyde acceeded to his proposal, adding two other ships of the line to the number demanded, and leaving the whole business to his management. It was on the 2nd of April that Nelson made the signal to weigh and engage the Danish line of defence. The difficulty of the navigation and the ignorance of the pilots were so great, that three of the ships grounded, and others were unable to take their proper station in the line. With those, however, that could approach the enemy, Nelson ventured an action. It commenced soon after ten o'clock; and at one, few, if any, of the enemy's ships had ceased to fire, while some of the English ships had sustained much injury. Under these circumstances, therefore, Sir Hyde Parker made a signal for retreat. But Nelson had no idea of retreating. All the notice he took of the signal was to give strict orders that his own signal for close action should be kept flying, and, if necessary, nailed to the mast; and turning to Captain Foley, he jocosely remarked: "You know I have only one eye; I have a right sometimes to be blind:" and putting his glass to the blind eye, he added, "Really, I don't see the signal for recall." The action continued unabated for another hour; but at that time the greater part of the enemy's ships ceased to fire; some of the lighter vessels were adrift, and the carnage on board their ships was dreadful the crews having been continually re-enforced. Soon after this, the Danish commodore's ship took fire, and drifting in flames before the wind, spread terror and dismay throughout their line. The ships ahead, however, with the crown-batteries, as well as the prizes made by the British, still continued to lire, and Nelson, humane as he was brave, being shocked at the slaughter which their bold resistance caused him to make in their ranks, retired into the stern gallery to write a letter to the crown prince. This letter stated, "that he had been commanded to spare Denmark when she no longer resisted; that her line of defence had struck to the British flag; and that, if the fire were continued, he should be obliged to destroy all the floating batteries which he had taken, without having the power of saving their brave defenders, who were the brothers, and ought not to be the enemies, of Englishmen." This letter, with a flag of truce, was sent by Captain Sir Frederic Thesiger; and in about half-an-hour he brought an inquiry from the prince: What was the object of Nelson's note? Nelson's reply was, that he sent the flag of truce out of humanity; and that he consented that hostilities should cease, and that the wounded Danes might be taken on shore. He added: "Lord Nelson, with humble duty to his royal highness the prince, will consider this the greatest victory he has ever gained, if it may be the cause of a happy reconciliation and union between his own most gracious sovereign and his majesty the King of Denmark." Sir F. Thesiger was dispatched a second time with the reply, and the Danish adjutant-general was referred to the commander-in-chief for a conference upon this overture. Nelson availed himself of this critical moment to get his crippled ships under weigh, and the imminent danger from which he had extricated them soon became apparent. His own ship, the Elephant, and three others remained fixed upon the shoal for many hours. Nelson left the Elephant soon after she took the ground, observing as he left her: "I have fought contrary to my orders, and I shall perhaps be hanged. Never mind, let them." It was soon agreed that there should be a suspension of hostilities for twenty-four hours; that all the prizes should

be surrendered; and that the wounded Danes should be carried on shore. Nelson landed on the day after the battle, and had an interview with the crown prince for the purpose of arranging preliminaries. The négociation lasted some time, and on one occasion was on the point of breaking off; but Nelson’s firm conduct overawed the Danish negociators, and it was agreed that there should be an armistice of fourteen weeks. Nelson’s own account of the battle of Copenhagen was, that it was the most dreadful he had ever witnessed. Several British officers fell in the action, and among the rest “the gallan, good Rion.” For this victory Nelson was raised to the rank of Viscount; a reward which, his biographer, Southey, justly observes, was inadequate for services of such paramount importance to the interests of England.

DISSOLUTION OF THE NORTHERN CONFEDERACY.

After the battle of Copenhagen it was intended to act against the Russians before the breaking up of the frost should enable them, to leave Revel. Sir Hyde Parker, however, having heard that the Swedes had put to sea to effect a junction with their allies, altered his course, hoping to intercept that part of the force of the confederacy. The Swedish fleet was discovered on the 19th of April; but on perceiving the English, it took shelter behind the batteries of Carlscrona. Sir Hyde Parker lost no time in acquainting the governor with the armistice that had been concluded between Great Britain and Denmark; and he called on the Swedish government to renounce the northern confederacy. At this critical juncture news was received of the assassination of the Czar Paul, and the accession of his son, Alexander, who commenced his reign by the abolition of the innovations of his predecessor, and by ordering all British sailors in confinement to be conveyed to the ports where their ships were stationed. Hostilities now ceased; Lord St. Helens was sent to Petersburgh, as minister plenipotentiary, and a convention was concluded between Russia and Great Britain, which subsequently comprehended Sweden and Denmark, recognising the principle contended for by England, and imposing such restrictions on the right of search as might prevent any unwarrantable exercise of it on neutral vessels. Thus the northern confederacy was dissolved.

EXPEDITION TO EGYPT.

The fate of the French army in Egypt was sealed about a fortnight before the battle of Copenhagen. The British troops destined against Egypt in the preceding year were sent to Marmorica, on the coast of Caramania, under an expectation of receiving assistance from the Turks. This expectation was not realized; but Sir Ralph Abercrombie resolved at all hazards to attempt the dislodgement of the French from Egypt. He landed in Aboutir Bay on the 8th of March, in the very face of the French, and under a heavy fire of grape-shot from artillery, as well as from the cannon of Aboukir castle. The French, however, were dispersed at the point of the bayonet; and on the 12th the British army moved forward, and came within sight of the enemy, advantageously posted on a ridge between the canal of Alexandria and the sea. In point of numbers the British were far inferior to the French, but Sir Ralph Abercrombie proceeded to the attack next day. This failed; but on the 21st of March a general battle took place, which resulted in the complete success of the British arms. The triumph of our troops was dearly purchased by the death of Abercrombie, who

received his mortal wound by a musket-ball in the thigh during the heat of the battle, but who sustained himself till the victory was gained, when he died, universally lamented for his great and good qualities, both of head and heart. The loss of the English in killed, wounded, and missing was computed at two thousand, and that of the French at double that number. The command of the British army devolved on General Hutchinson, who perfected the work which his predecessor had commenced; for although the French were defeated, they were still powerful both at Alexandria and Cairo. Menou, the French commander, had retired into Alexandria; and this was almost insulated by General Hutchinson, by cutting through the embankments which served to retain the waters of the Aboukir lake, and by inundating a dry bed of the ancient lake Mareotis. Leaving General Coote with 6500 men to maintain the lines before Alexandria, General Hutchinson proceeded to Ramani Eh, and having driven the French from this post, he advanced still further up the Nile, towards Cairo. He was joined near Cairo by some Mamelukes, Turks, Arabs, Syrians, and Copts, who now all offered their aid to expel the French from Egypt. Cairo was invested, and on the 27th of June, the French General, Belliarde, capitulated, on condition that his troops should be embarked and conveyed to the French ports of the Mediterranean at the expense of the allied powers. At this moment Major General Baird was ascending the Red Sea with an army of British and Sepoys, and some of the East India Company’s artillery. But before he could unite his forces at Cairo, Menou capitulated on the same conditions as Belliarde, and Egypt was now cleared of the French. The expedition which had been commenced with a series of victories, ended in defeat and disgrace. With an inferior force, the British army wrested an important country from the enemy, and restored it to their allies.

{GEORGE III. 1801–1806}

AFFAIRS ON THE CONTINENT.

In the month of March, the court of Madrid, hoping to stop a French invasion of Spain by submission to the will of the first consul, declared war against Portugal. A Spanish army invaded the Portuguese provinces in April; and in the month of June Lisbon purchased peace by yielding some territory to Spain, and by engaging to shut their ports against the English. In this treaty, however, Napoleon refused to concur; and he sent a French army through Spain to attack Portugal. Almeida was invested, and Lisbon and Oporto menaced, when the court of Lisbon consented to a treaty, by which Buonaparte agreed to withdraw his troops, and respect the integrity and independence of Portugal, on condition that they, on their part, should confirm to Spain all the territory which had recently been ceded; should make one-half of Portuguese Guiana over to the French; should shut all the ports and roads of Portugal in Europe against all English vessels, until peace was concluded with England; should nullify all preceding treaties and conventions with England; should treat France in all matters of commerce as the most favoured nation; and should admit all French commodities and merchandise whatsoever. The Portuguese court likewise paid twenty millions of francs to the French republic. In their distress, the Portuguese court had solicited the aid of England; but our government could do nothing more

than to send an expedition to take possession of the island of Madeira, in order to secure it for Portugal.

NAVAL OPERATIONS.

The naval war this year was very languid. The French and Spanish fleets did not venture out of port, and their detached squadrons put to sea only in the absence of the English. On the 6th of July a French squadron was attacked by Sir James Saumerez in the road of Algeiras; but after a hard struggle he was induced to retire. This disappointment, however, only served to stimulate the British to another action. The ships which had been damaged in the late contest were repaired with all possible expedition, and when the French, joined by a Spanish squadron, were sailing towards Cadiz, he attacked them, and one line-of-battle ship, of seventy-four guns, was captured, and two others blew up with the loss of about two thousand men. On the 1st of August Admiral Lord Nelson, with a flotilla of gun-boats and other vessels, stood over to the coast of France to reconnoitre the preparations said to be making for the invasion of England. On the 4th of the same month he sunk two floating batteries and destroyed some gun-boats; but a subsequent attack on the flotilla in the harbour failed. During this year the islands of St. Martin and St. Eustatius were reduced; while in the east, the Batavian settlement of Ternate, the principal of the Molucca islands, surrendered to the British, under Captain Haynes.

TREATY OF AMIENS.

Many circumstances rendered the first consul at this time really desirous for some short suspension of hostilities with England. Preliminaries were agreed to on the 1st of October, and in the month of November the Marquis Cornwallis went over to France as ambassador plenipotentiary. He was received with great joy by many of the Parisians, who were equally desirous of peace, as were many of the English nation. From Paris, his lordship repaired to Amiens, the place appointed for holding the conferences; and, after much angry discussion, on the 2nd of March, 1802, a definitive treaty of peace was signed. By this treaty, England agreed to restore all the acquisitions made during the war, except the island of Trinidad, and the Dutch possessions in Ceylon: the Cape of Good Hope was to be given back to the Dutch as a free port: the Porte was to be preserved in its integrity; France was to recognise the republic of the seven islands; apart of Portuguese Guiana was given up to France by a new adjustment of boundaries; and the Prince of Orange was to receive compensation for the loss of property and power. “Thus,” it has been remarked, “ended the first act of the revolutionary war, though most persons thought the whole concluded, fancying that the chief ruler of France would find his real interest in the preservation of peace; and relying on his repeated declaration of regret, that the two first nations of the world should waste their resources and the blood of their people in enmity. Some persons, however, took a different view of the subject, seeing neither indemnity for the past, nor security for the future in the restitution of all our colonial conquest, and in the recognition of that gigantic plan of continental sovereignty which had been conceived by the first founders of the French republic, and pursued with unremitting diligence by its successive rulers.”

{A.D. 1802}

Parliament met in the autumn of 1801; but the chief business done before the Christmas recess was to debate on the preliminaries of the peace of Amiens; some defending—and among them Pitt himself—what the Addington administration were doing, and others condemning their line of policy. Conspicuous among those who condemned their measures was Windham, who said that the preliminaries were disgraceful, and that war was to be preferred to a peace bought on such conditions. This debate continued after the Christmas recess, up to the 13th of May, when the last struggle took place on the subject. In the upper house the opponents of the treaty were headed by Lord Grenville, who made the cession of Malta the principal point of his attack. It was absurd, he said, to place that island under the guarantee of six powers, who could not be expected to agree on any one point relating to it; and it was still more absurd to restore it to the Knights of St. John, whose funds had been confiscated, and whose existence thereby might be said to be ended. In adverting to other parts of the treaty he observed, that our rights in India had not been recognised, and that the Cape of Good Hope, a most important station to the maintenance of British sovereignty, was given up. Lord Grenville concluded his strictures with proposing an address to the throne, recommending every practicable economy, but such as would still leave the country in a state of proper defence for the suppression of any danger; acknowledging that the national faith was pledged to the observance of the treaty, but pointing out the danger to which this country was exposed on account of the great sacrifices she had made without any adequate compensation on the part of France; and finally praying his majesty to endeavour to arrange speedily, by amicable adjustment, those various points which were left unsettled by the definitive treaty of Amiens. His lordship was ably supported by some who entertained Pitt’s general views and others of his own party; but a counter address, moved by Lord Pelham, was carried without a division. A counterpart to Lord Grenville’s motion was made in the lower house on the same day, by Windham, who, in a speech of three hours, bitterly condemned the treaty. In the course of his speech he remarked:—“It is impossible to have seen, without the utmost anxiety and alarm, the unexampled circumstances that have attended the final conclusion of the present peace; the extensive and important sacrifices which, without any corresponding-concession, this treaty had added to those already made by the preliminary articles; the unlooked-for and immense accession of territory, influence, and power which it has tacitly confirmed to France; the numerous subjects of clashing interests and unavoidable dispute which it has left entirely unadjusted; and, above all, those continued and systematic projects of aggrandizement of which, in the very moment of peace, we have seen such undeniable and convincing evidence.” Mr. Windham was supported by Lord Folkstone, Sheridan, Grey, and Whitbread; but a counter address, moved by Lord Hawkesbury, similar to that which had been moved in the upper house by Lord Pelham, was carried by a majority of two hundred and seventy-six against twenty. But these long discussions forbade the hope that peace would be durable.

PARLIAMENTARY MEASURES.

Early in this session Mr. Canning moved the house on the subject of the slave-trade. He made two motions: the first being a preliminary relating to the cultivation of the land in the island of Trinidad, lately ceded to England, which, some contended, should be performed by negro slaves; and the second a distinct motion on this subject. In his second speech he remarked, “In considering the acquisition of Trinidad, it seems as if Providence had determined to submit to the trial our boast of speculative benevolence and intended humanity, by placing in our power a colony where, if we pursue our old course, it must be purely for its own sake, without the old inducements or the usual apologies. This is a day of tests; I trust we shall abide the trial.” During this session an important act was passed for consolidating the existing militia laws, and for augmenting that force: it was agreed that the militia should remain permanently 60,000 strong, and that 40,000 should be called out in the first instance, and the remainder when the king deemed necessary. In announcing his budget, on the 5th of April, Mr. Addington stated the intention of government to abolish the income-tax, and fund the £56,000,000 with the payments of which it was charged. This announcement gave great satisfaction, and the resolutions upon the budget were agreed to without a division. Provision was made during this session for their royal highnesses the Dukes of Sussex and Cambridge, and the Prince of Wales’s embarrassments were taken into consideration; the magnificent sum of £60,000 annually was granted him for three years and a half, commencing from the 5th of January, 1803, and ending the 5th of July, 1806. Sums of money were voted to Dr. Jenner for the promulgation of his valuable discovery of vaccine inoculation; to Mr. Greathead for his invention of the life-boat; and to Dr. Carmichael Smith for a discovery of nitrous fumigation, for preventing the progress of infectious disorders. Parliament was prorogued on the 28th of June by the king in person, who congratulated the country on the peace and prosperity it was enjoying; and on the next day it was dissolved by proclamation.

PREPARATIONS FOR HOSTILITY.

Peace had scarcely been proclaimed when the note of war was again heard in the distance; when a little cloud in the horizon betokened the rising of another furious storm. In the month of December the French government had sent a naval force, under General Le Clerc, for the purpose of recovering St. Domingo and Guadaloupe from the revolted negroes; and the English government sent Admiral Mitchell with seven sail of the line to watch his motions. But England had more cogent reasons for displeasure in the following year. At that time the interference and intrigues of the first consul were manifested in various parts of Europe. Thus, in the month of March, he presided over a meeting at which a treaty was signed with the Cisalpine republic, preparatory to his assuming the iron crown, in imitation of Charlemagne; and he not only procured the cession of Louisiana, but the duchy of Parma, from Spain. Disputes likewise having arisen respecting the formation of a new constitution in Switzerland, and the mediation of the first consul being solicited, the diet was dissolved by his troops, the Swiss patriots were arrested, and the independence of the country annihilated by the power on which it relied for protection. In the course of the year,

moreover, Piedmont was turned into a provincial appendage to France; and in October the Spanish king, at the suggestion of the French government, annexed all the property of the Maltese knights in his dominion to his royal domains, by which act the treaty of Amiens was to a certain degree violated. All these events were indications of a future rupture; and another grand provocative to the rupture was the fierce and systematic hostility displayed by Napoleon against the commerce of Great Britain. Instead of being allowed, through the return of peace, to flow into its old channels, it was still more impeded in France and in the countries where the French held sway than it had been during the war. Every month, or week, indeed, the first consul made some new encroachment or advanced some new claim; while on the other hand he pretended to bind England to the strict observance of every article in the treaty of Amiens which was against her, and insisted on the immediate evacuation of Malta, the Cape of Good Hope, and of every place she had agreed to restore. It was, in truth, fully manifested, before the close of the year, that the treaty of Amiens was an experiment that had signally failed, and that recourse, at no distant day, would be again had to the sword to decide the contest for superiority between the two countries of France and England.

Nor was the conduct of Napoleon in Paris less indicative of war; ambition being conspicuous in every movement. Some of his measures were prudent and salutary, but many of them were unprincipled, unjust, and even criminal. His aim was to be the despot and sole ruler of France; not to be the venerated head of a great and free people. His first act exhibited the despot in lively characters. This was to put the press in chains: Fouche, with an army of “Arguses and police servants, mastered the domain of thought itself;” and when conspiracies arose from this arbitrary measure, then the executioner was called in to do his fearful work. At the same time Napoleon established special tribunals throughout the kingdom, composed of judges of his own appointment. His despotism extended itself to the civil code, and even to religion and the church. By his fiat, there was to be but one liturgy and one catechism in all France! During this year, indeed, Napoleon was approaching his object at a rapid pace. He already ventured to attack the idol of the revolutionary French, the fundamental principle of the revolution, that of equality, by proposing and carrying a law for the creation of a legion of honour—that is, for establishing a new nobility in the place of that which the revolutionists had destroyed, from the one end of France to the other. Public opinion declared loudly against this institution, but Napoleon was sufficiently strong to defy public opinion. Nay, about the same time, soon after the peace of Amiens, Chabot proposed that a signal national acknowledgment should be made to him, and he was created consul for life. The throne was, therefore, visibly rising over the grave of the republic—one step more, and Napoleon would be sitting thereon in all the pride and pomp of Imperial majesty. That step, as will be hereafter seen, was taken boldly and successfully. France again submitted to the rule of one man, a man whose little finger proved to be thicker than the loins of the monarchs of the house of Bourbon.

MEETING OF THE NEW PARLIAMENT.

The newly returned parliament met on the 16th of November. The speech from the throne seemed to intimate that the renewal of war was probable, by his majesty saying, “that notwithstanding his desire for peace, it was impossible for him to lose sight of that system of policy by which the interests of other states were connected with our own welfare; and by which he was obliged not to be indifferent to any material change in the relative condition and strength of the European powers.” His majesty also recommended the adoption of all those means of security which were best calculated to preserve the blessings of peace. The responsive addresses, both in the lords and commons, were carried without a division; Fox at the same time expressing a hope, that ministers would not be influenced by those politicians who would rush into a war without necessity.

Augmentations both of the navy and of the army were proposed by ministers a few days after the commencement of the session: 50,000 seamen were voted, and 128,000 men for the army. On this occasion, Sheridan, who was fast falling away from the Foxite party, made a notable patriotic speech, declaring that the time had arrived when it was necessary for England to adopt vigorous measures of defence. He concluded his speech in the following language: “I wish Buonaparte not to mistake the cause of the people’s joy; he should know, that if he commits any act of aggression against them, they are ready to enter singly into the contest, rather than suffer any attack on their honour and independence, I shall proceed no further; I perfectly agree with my honourable friend, that war ought to be avoided, though he does not agree with me on the means best calculated to produce that effect. From any opinion which he may express, I never differ but with the greatest reluctance; for him my affection, my esteem, and my attachment are unbounded; and they will only end with death; but I think an important lesson is to be learned from the arrogance of Buonaparte. He says, he is an instrument in the hands of Providence, an envoy of God; he says, he is an instrument in the hands of Providence, to restore Switzerland to happiness, and to elevate Italy to splendour and importance. Sir, I think he is an instrument in the hands of Providence to make the English love their constitution better, to cling to it with more fondness, to hang round it with truer tenderness. Every man feels, when he returns from France, that he is coming from a dungeon, to enjoy the light and life of British independence. Whatever abuses exist we shall look with pride and pleasure on the substantial blessings we still enjoy. I believe, also, that he is an instrument in the hands of Providence to make us more liberal in our political differences, and to render us determined, with one hand and heart, to oppose any aggression there may be made on us. If that aggression be made, my honourable friend will, I am sure, agree with me, that we ought to meet it with a spirit worthy of these islands; that we ought to meet it with a conviction of the truth of this assertion—that the country which has achieved such greatness, has no retreat in littleness; that, if we should be content to abandon everything, we should find no safety in poverty, no security in abject submission; finally, that we ought to meet it with a firm determination to perish in the same grave with the honour and independence of our country.”

On the 21st of December, a bill was passed for appointing commissioners to inquire into frauds and abuses in the several naval departments, and for the better

conducting the business of those departments. No other business of importance was transacted before the Christmas recess.

TRIAL OF COLONEL DESPARD.

{A.D. 1803}

During the month of November in the preceding year, a conspiracy against the king and government was discovered. This originated with Colonel Despard, an officer of courage and ability, who, having been reduced in circumstances, on account of the abolition of an office held by him on the coast of Honduras, organized a society in London for the subversion of that tyranny which he attributed to the ministers of his sovereign. In the scheme proposed by him, his objects were the constitutional independence of Great Britain and Ireland; an equalization and extension of rights; a liberal reward to all who would exert themselves in the cause of the people; and an ample provision for the families of those who might fall in the cause. Despard, however, with twenty-nine of his followers were arrested in the act of deliberating on the execution of their designs; and in the month of February of this year were tried by a special commission. The colonel himself was found guilty, and executed, as were also six of his associates; the rest were either acquitted by the jury, or were pardoned on their recommendation.

PARLIAMENTARY PROCEEDINGS.

Parliament reassembled on the 23rd of February, but no debate of importance occurred until the 8th of March. On that day a message from the king to both houses represented the preparations made in the French and Dutch ports as grounds for defensive arrangements. The message stated that discussions of great importance were carrying on between his majesty and the French government, the result of which was uncertain. His majesty said that he relied with confidence on parliament to enable him to take such measures as circumstances might require, for supporting the honour of his crown, and the essential interests of his people. Lord Hobart moved the responsive address in the lords, and it was carried _nem. con_.; but in the commons, many members wished for further information before the ministerial recommendations received attention. Fox, in particular, wished to know the precise reasons for putting the country into a warlike attitude; he still thought peace might be preserved. But in the commons, likewise, the address was voted unanimously; and, in compliance with the ministerial demands, on the 11th of March, 10,000 seamen were added to the existing number. A motion to that effect was agreed to without a division.

ACT TO RELIEVE CATHOLICS, ETC.

Before the Easter recess, an act was passed to relieve Roman Catholics from certain penalties and disabilities, on subscribing the declaration and oaths contained in the act of the 31st of George III. A bill was also introduced into the upper house by Lord Ellenborough, which made the maliciously maiming, wounding, and disfiguring of any of his majesty’s subjects, a capital felony; attempts also to discharge loaded

fire-arms, with intent to kill or wound, were made subject to the penalty of death. The attention of both houses was also occupied by a clergy residence bill, the coroner’s bill, debates on the Paneras workhouse, &c. After the Easter holidays, a bill was unanimously carried which was intended to put down the rioting which had occurred among the electors of Nottingham, by allowing the magistrates of the county a concurrent jurisdiction in the town of Nottingham with the magistrates residing in that town. A bill was likewise passed for continuing the militia in Ireland, as well as in England and Scotland, but which substituted in that country the giving of bounties for the system of ballot.

WAR PROCLAIMED WITH FRANCE.

On the 6th of May Lord Pelham communicated to the lords, and Mr. Addington to the commons, another message from his majesty, stating that orders had been given to Lord Whitworth, our ambassador, to quit Paris immediately, unless he found a certainty of bringing the pending négociations to a close against a certain period; and that the French ambassador had applied for a passport to be ready to leave London so soon as he should be informed of Lord Whitworth having quitted Paris. Both houses adjourned till the Monday following; and after they again met, on the 16th of May, they were informed by another royal message, that Lord Whitworth was recalled, and that the French ambassador had departed. On the next day after the message was delivered, an Order of Council was published, directing that reprisals be granted against the ships, goods, and subjects of the French republic; and a proclamation was issued for an embargo belonging either to the French and Batavian republics, or to any countries occupied by French arms. Papers relating to the correspondence between France and Great Britain, were laid before both houses on the 18th of May and on the 23rd the subject was taken into consideration. In each house an address was moved, reechoing the sentiments of the king’s message and declaration; and though stern opposition was made by some members and peers, they were carried by large majorities. Recently Pitt had absented himself from the commons, but on this occasion he was present to defend the approaching contest. His speech produced a great impression on the house, and was greatly admired; Fox himself said, that if Demosthenes himself had been present, he must have admired, and might have envied. Notwithstanding, Fox placed himself at the head of those few who opposed the address; and ventured to palliate the conduct of Napoleon’s haughtiness and insolent language to Lord Whitworth. Buonaparte, he said, had as much right to complain of our aggrandizement in India, as we had to complain of his encroachments in Europe; that his expressed determination to take possession of Egypt on some future day, was not a sufficient cause for war; and that we were going to war on a sordid principle, which would deprive us of the possibility of obtaining any allies. The tendency of Fox’s speech was severely reprehended by several members, but he nevertheless continued his opposition. On the 27th he even moved an address, to advise his majesty to accept the proffered mediation of the Emperor of Russia; but this he was induced to withdraw, on a declaration from Lord Hawkesbury, secretary for foreign affairs, that the government, though it could not suspend the preparations for pursuing the war, would be ready to accept the mediation of Russia, if the first counsul would accept it, and accede to reasonable terms. In both houses

censures were moved on the conduct of the Addington administration, but they were negatived by large majorities.

THE CAUSES FOR THE RENEWAL OF WAR WITH FRANCE.

The causes of the renewal of hostilities between France and England were manifold. Some of the remote causes have before been noticed; and it has been remarked in a previous page, that while the first consul required England to fulfil every stipulation in the treaty of Amiens, he denied our right of interference in his own political arrangements. This naturally gave rise to disputes between the two governments; disputes which soon became warm and acrimonious, and which finally ended in an open rupture. The first remonstrance of the British cabinet against the unjustifiable encroachments of the first consul related to his conduct with reference to Switzerland. This remonstrance was vain; and expostulation, as regards usurpations in Holland and Italy, were equally fruitless. The British government also complained that numerous persons were sent to reside in our maritime towns on pretence of trade, but in reality to procure such intelligence as might be useful in the event of war; and that while this scheme was put in practice, restrictions on British commerce were enforced in France with extraordinary vigour. Moreover, the British cabinet complained of insults: such as, that Great Britain could not contend alone with France; an insult which should have been treated only with contempt. On the other hand, Napoleon complained of the freedom with which the British press handled his character, and of the protection given to discontented emigrants. But the chief object of his complaint was the retention of Malta. He remarked:—“My pretended encroachments are mere trifles; and even if they were highly important, you have no concern with them: but in refusing to surrender Malta, you are openly violating the treaty of Amiens, which I will not tamely suffer to be infringed.” Dissension increased. Napoleon demanded that the Bourbons and their partisans should be expelled from England, which met with a firm and generous denial. Thus baffled, the first consul directed his political agents to circulate outrageous libels against the highest characters in the kingdom; they plotted, he averred, conspiracies against his life. At length Napoleon demanded, why the British government had not evacuated Malta, according to stipulation? The reply was, “because he had increased his European territories and threatened Egypt.” To demand Malta of the first consul was in reality to declare war; he declared that harmony could not be restored, unless that island was restored to the knights, or put into the possession of some continental power; and that he would as soon see Paris in the hands of the English as Malta. The Russian emperor now offered his mediation, but as he proposed no scheme of accommodation, his offer was politely refused. Finally, Lord Whitworth suggested the following terms of an amicable arrangement:—If the cession of Lampedosa could be procured from the King of Naples, it should serve as a naval station for the English in lieu of Malta, which should then be left to the natives on the basis of independence. At the same time Holland was to be evacuated by the French troops, while Switzerland was to be freed from all encumbrance. His Britannic majesty promised to recognize the Spanish prince who had been made King of Etruria, as well as the Cisalpine and Ligurian republics; in return for which France was required to cede some valuable territory to the King of Sardinia. By a secret article, Malta was to

remain ten years under British government before the exchange took place. On the acceptation or refusal of these terms, peace or war was to be determined. A week only was allowed for a reply; and at the lapse of that time, no reply being given—Napoleon wishing still to prolong the discussion—the British ambassador, in compliance with his instructions, declined all further négociations, and prepared to quit Paris, which he did on the 12th of May. Orders were immediately issued for seizing the ships of France, and of the states subject to her power, in British ports; and Napoleon detained all British subjects who remained in the French territories after Lord Whitworth, our ambassador, had taken his departure. Thus recommenced the struggle betwixt the two rival nations of England and France: a struggle which, for the inveteracy of its spirit and the variety of its fortunes, stands unrivalled in the history of the world. Vast were the treasures spent, and still more vast was the blood shed, before the sword thus drawn was again sheathed.

{GEORGE III. 1801–1806}

WAR WITH HOLLAND.

As the proposal that French troops should be withdrawn from Holland was refused, war was accordingly denounced against that unfortunate State. On the 17th of June, the king announced by message, that he had communicated to the Batavian republic his disposition to respect its neutrality, provided only the French government would respect it, and withdraw its forces from that country; but that, this proposition not having been acceded to by France, his majesty judged it necessary to recall his minister from the Hague, and to give order for the issuing of letters of marque and reprisals against the Batavian republic. Subsequently, the sum of £80,000, and a pension of £16,000 per annum was granted to the ex-stadtholder of Holland, our late ally, the Prince of Orange, who had by this event been despoiled, and left without a home, and without any reliance, except on the generosity of this country.

MILITIA BILL, ETC.

A bill for rendering the militia as effective as possible was passed on the 20th of May; but in consequence of a message from his majesty on the 18th of June, recommending more extensive measures, a proposition was carried for embodying a new species of Militia, to be denominated “the army of reserve.” This body was to consist of 50,000 men for England, and 10,000 for Ireland, and they were to be raised by ballot, but allowed to volunteer into the regular army. This bill, however, was only the precursor of one of greater magnitude—a bill which comprehended the arming and training of the whole effective male population, and which passed into a law on the 27th of July. This measure was proposed in case of an invasion; and as the opposite coasts of France and Belgium were lined with troops, and the French and Brussels papers were calculating how many days it would take Napoleon to reach London, it met with very general support. Fox himself offered his hearty concurrence to it, because it was for the defence of the country, rather than for any project of offensive war. It passed in the commons _nem. con_.; and the lords adopted it unanimously, one or two peers only censuring ministers, as Pitt had done in, the

lower house, for not producing it sooner. This scheme, however, was not generally acceptable to the nation at large, nor was the danger so great as to justify its adoption. Nevertheless a large body of volunteers started up in every part of the realm, and a force of 400,000 men wore soon collected on the coasts to defend their beloved country. The whole population of England, under the impression that their altars and firesides were endangered by the menace of the first consul of France, rose

“Like one man, to combat in the sight Of a just God, for liberty and right.”

FINANCIAL MEASURES.

In discussing the military estimates during this session, an addition of 30,000 men was proposed and agreed to. Supplies were demanded in June to the amount of £33,730,000, but the whole granted during the year exceeded £41,000,000. In order to raise this sum, the custom and excise duties were increased, and the income-tax was renewed, though not to its former extent; a duty of one shilling in the pound was imposed on land, to be paid by the landlord, and nine-pence by the tenant. The war taxes were estimated at £12,700,000 annually, but they were to cease at the end of six months after the return of peace, Some of the new taxes imposed were extended to Ireland, and the lord-lieutenant of that country was authorised to raise £1,000,000, by loan.

PROROGATION OF PARLIAMENT.

This session closed on the 12th of August, by a speech from the throne. In his speech, his majesty expressed his reliance that, under the continuance of the Divine protection, the exertions of his brave and loyal subjects would prove to the enemy and to the world, that an attempt to subvert the independence of the United Kingdom would terminate in the ruin of that people by whom it was sought. He assured his parliament that economy in the public expenditure should be carried as far as was consistent with the necessary exertions to frustrate the designs of the enemy.

INSURRECTION IN IRELAND.

During this summer an insurrection, headed by one Robert Emmett, a brother to the barrister of that name who took part in the recent rebellion, broke out in Ireland. Emmett had been expelled from the university of Dublin, and had resided abroad so long as the _Habeas Corpus_ act was suspended, but on the removal of that obstacle, he returned to Ireland. On his return, as rebellious spirits still abounded in every part of that unhappy country, he formed a party for the purpose of endeavouring to overturn the existing system of government. The stoppage of the coaches was to be the signal for revolt in the country, while the grand object of the insurgents in the metropolis was to secure the seat and ministers of government, and to proclaim a new constitution. There were scarcely above one hundred immediately connected with the plot; but these were so sanguine of success, that they supposed the spirit of rebellion would, at their bidding, pervade the whole kingdom. It was on the 23rd of July that the spirit of revolt began to manifest itself. On the evening of that day, a mob assembled in St. James’s-street and its vicinity, and about nine o’clock the concerted signal was given by a number of men riding furiously through various parts

of the city. Outrage followed; the chief justice of Ireland, Lord Kilwarden, was stabbed to death with pikes, Colonel Brown was shot, and others were wounded. But this conspiracy was soon quelled; about half-past ten, a small body of regular troops approached the insurgents, and they fled in every direction; nothing more was heard of Emmett or his associates till they were brought to justice. A special commission was issued for the trial of those rebels who were captured, and Emmett and several others were executed. On this occasion, the Roman Catholics, with Lord Fingal at their head, came forward and rendered government important services in quelling the rebellion.

LETTER OF THE PRINCE OF WALES.

While parliament was sitting, and when the country was preparing for war, the Prince of Wales repeated a claim, which he had often made before, for military promotion, requiring to be placed in a situation where his example might contribute to excite the loyalty of the people. This was a natural request; for the Duke of York had for some years been captain-general and commander-in-chief of the forces, and the Dukes of Kent, Cumberland, and Cambridge were lieutenant-generals, but the prince himself was simply a colonel of dragoons. No notice, however, was taken of this letter, and it was only by repeated applications that a reply was elicited. That reply was, that should the enemy succeed in landing, he, the prince, would have an opportunity of manifesting his zeal at the head of his regiment. Thus disappointed in his views, six days before the prorogation of parliament, he addressed a letter on the subject to the king himself; and from him likewise received a similar reply. The prince now exhibited a very unfriendly spirit both towards his majesty and Mr. Addington. In a letter to the Duke of York, he called “the opportunity of displaying his zeal at the head of his regiment,” which was intended to be consolatory to his feelings, “a degrading mockery.” The whole correspondence, in truth, brought great discredit, both on the heir-apparent and his advisers. It ended, however, in the prince joining his regiment at Brighton, in opposition to the expressed wish of Addington; he being bound to do so, he remarked, “by the king’s precise order, and by that honest zeal which was not allowed any fitter sphere for its action.”

MOVEMENTS OF THE FRENCH

A few days after the king’s message had been sent to parliament, the French admiral, Linois, was despatched with a strong squadron for the East Indies. The armies of the republic were increased to 480,000 men; that of Holland being destined to occupy Hanover; and that of Lombardy to invade Naples, garrison Tarentum, and other parts of the Adriatic. The first consul was resolved to occupy Hanover, as a pledge for the restitution of Malta. The electorate was summoned by Mortier on the 25th of May, and the Hanoverians being unable to resist, soon capitulated possession was taken of the country, and Mortier was enabled to control the navigation of the Elbe, and the Weser, as well as to levy contributions on the rich towns of Hamburg and Bremen. A British squadron, however, blockaded the mouths of those rivers, which measure caused such distress to Hamburg and Bremen, that they appealed to the King of

Prussia for protection, as one of those sovereigns who guarded the neutrality of the empire. The King of Prussia, however, declined to interfere, and the French were left to continue their exactions with impunity. Napoleon, also, made severe exactions on the Batavian and Italian republics; drew pecuniary assistance from Spain and Portugal; and augmented the supplies of the French treasury, by the sale of Louisiana to the United States, for three millions of dollars. His grand objects, however, at this time, were the army and flotilla for the invasion of England. His army was swelled by contingents of allied states, and the command of it was given to Soult, Davoust, and Ney; the familiarity of his old generals having by this time offended his pride. It was for this invasion chiefly that he drew his contributions from the neighbouring countries. Rome and Naples were plundered on base pretexts, and the latter was obliged to let the French occupy a part of its territories and ports.

NAVAL CONQUESTS.

The naval campaign of this year in Europe, was of a comparatively trifling character. The port and town of Granville were attacked by Sir James Saumarez, on which occasion the pier was demolished, and a number of vessels destroyed; the town and fort of Dieppe were bombarded by Captain Owen; and the Dutch ports, from the Zandvoort, in the vicinity of Haarlem, to Scheveningen, were also severally bombarded, and many vessels destroyed.

In June, an expedition under General Grinfield and Commodore Hood, captured the islands of St. Lucie and Tobago; and in September, the Dutch colonies of Demerara, Essequibo, and Berbice surrendered to the British arms. The islands of St. Pierre and Miquelon, likewise, were captured, and the French were compelled to abandon the colony of St. Domingo.

EAST INDIA AFFAIRS.

In the East Indies, war was carried on by land on a large scale, and with great success. Since the death of Tippoo, and the capture of Seringapatam, a new enemy had appeared in the Mahratta confederacy, and Perron, a clever Frenchman, was lending his aid in the strife. M. Perron had first appeared in India, when the government of Louis XVI. were struggling with the genius and resources of Warren Hastings for the supremacy in Hindustan. In the course of events he was raised to the rank of a general, and to the command in chief of the forces of Scindiah, in whose ranks he had entered against the British. His honours, wealth, and authority, all given him by his grateful master, excited the envy and malice of the Mahratta chiefs, for they were eclipsed by this foreigner. In 1802, when the Scindiah made war upon the Mahratta sovereign of Poonah, and expelled him from his territories, Perron, who had recently had a large portion of the Jumna region assigned him, lent his valuable assistance. This event led to a war with the British. The dispossessed chief applied for assistance to the English, and a subsidiary treaty was concluded with him at Bassein. Lord Wellesley, the governor-general, had two great objects in view—to restore the Peishwa, and to crush the forces which Perron had raised, and which had long given him uneasiness. He was joined by the Nizam of the Deccan, while the Rajah of Berar united his forces to those of Scindiah. Lord Wellesley calculated that he might detach

Perron from his old Indian master by bribery; for when General Lake took the field with an army of 10,000 men, he instructed him to make every possible effort to destroy, scatter, or win over Perron and his officers. Proclamations were made to this end, but without effect; Perron took the field with about 17,000 infantry, disciplined in the usual European manner, besides a large body of irregular infantry, about 20,000 Mahratta horse, and a numerous and well-appointed train of artillery. In the mean time a younger brother of the governor-general had rescued Poonah from the Mahratta troops of Holkar, and had re-established the Peishwa in his capital. Holkar joined Scindiah and the Rajah of Berar; and this confederacy was the more dangerous, as Scindiah possessed several sea-ports from whence he could receive assistance from the French. This confederacy, however, was soon dissolved. General Lake defeated, routed, and annihilated that army of Perron which caused the governor-general such great and reasonable alarm; and, between him and General Wellesley, all the perilous portion of the Mahratta confederacy was shaken, and the power of Scindiah broken. Both the Rajah of Berar and Scindiah were compelled to sue for peace, which was granted; the Rajah agreeing to add the important province of Cuttack, with the district of Balasore, to the company; and Scindiah to yield to them all the country between the Jumna and the Ganges, besides numerous forts, territories, rights, and interests. Both the Rajah of Berar and Scindiah likewise agreed to dismiss all the French or other European officers in their service, and the latter was never to take them into his service again, without consent of the British government. In the course of the same year, two other armies were sent into the Mahratta dominions, which resulted in the conquest of much Indian territory. The varied successes of this year, indeed, gave to the British empire, not only the Mahratta dominions between the Jumna and the Ganges, but other and still more important advantages. By them the British secured the possession of Delhi, Agra, and Calpee, which gave them the mastery and free navigation of the Jumna, with an important tract of country along the right bank of the river. They secured, likewise, the greater part of the rich province of Bundelcund, the whole of Cuttack in Orissa, and the most valuable territory in Guzerat, with ports which were before accessible to our mortal enemy, France. Finally, they gave to the company a stronger frontier in the Deccan, and to our allies, the Nizan and the Peishwa, an important accession of strength. Subsequently a war ensued with Holkar; but his forces were rapidly dispersed by General Wellesley, and peace again prevailed in India; and in 1805 the victorious general returned to Europe.

MEETING OF PARLIAMENT.

Parliament reassembled on the 22nd of November. In his speech, the king enlarged upon the successes in the West Indies, and upon the early suppression of the Irish insurrection. He alluded, also, to the conclusion of a friendly convention with Sweden, for the purpose of adjusting certain differences about maritime rights, arising out of an article in an old treaty concluded by Charles II. Mention was made of the measures adopted for a vigorous prosecution of the war; and his majesty declared, in reference to the menaces of an invasion, that as he and his people were embarked in a common cause, it was his determination, should occasion arise, to share their exertions and dangers in defence of the constitution. The usual addresses

were agreed to without a division, and without opposition; and the houses occupied themselves up to the Christmas holidays with passing acts to continue the Habeas Corpus Act, and the prolongation of martial law in Ireland, and to grant certain exemptions in favour of the volunteers of Great Britain. The regular force proposed for the public service amounted to 167,000 men the embodied militia of Great Britain and Ireland, were 110,000, and the volunteer corps about 400,000. According to the statement of Lord Castlereagh, indeed, the effective force of this country, in rank and file, amounted to 615,000 men, or reckoning the non-commissioned officers, 700,000. The number of ships of war, amounted to four hundred and sixty-nine.

CHAPTER XXVI.

{GEORGE III. 1804—1807}

His Majesty’s Indisposition..... Change in the Ministry: Pitt Resumes Office..... The Slave-Trade Question..... Additional Force Act..... Debate on the Corn Laws..... The Budget: Parliament Prorogued..... Affairs of France: Napoleon created Emperor..... Naval Affairs..... Coalition between Pitt and Addington..... Meeting of Parliament..... Army and Navy Estimates, &c. Debate on the Rupture with Spain..... Claims of the Catholics..... The Slave Trade Question..... Impeachment of Lord Melville..... Parliament Prorogued..... Dissensions in the Cabinet..... Napoleon crowned King of Italy..... Conquests of Napoleon in Bavaria..... The Battle of Trafalgar, &c. Meeting of Parliament..... Death of Mr. Pitt..... The Grenville Administration..... Negociations for Peace..... Windham’s Military Plan..... The Budget..... Trial of Lord Melville..... The Slave-Trade Question..... Parliament Prorogued, &c. Death of Fox..... Naval Successes..... Disputes with America..... Affairs of Sicily..... War between France and Prussia, &c.,..... Meeting of Parliament.

HIS MAJESTY’S INDISPOSITION.

Parliament had scarcely reassembled after the Christmas recess, before it became known that the king was suffering from an attack of his old malady. It was announced by a bulletin on the 14th of February, that his majesty was much indisposed, and a succession of similar notices left little doubt as to the nature of the complaint. The attack, however, was not so serious as to render a suspension of the royal functions necessary; and on the 14th of March the lord chancellor declared that “the king was in such a state, as to warrant the lords commissioners in giving the royal assent to several bills.”

CHANGE IN THE MINISTRY—PITT RESUMES OFFICE.

At this time a systematic attack on ministers was pursued by all parties in opposition, through the medium of investigations into the military and naval affairs of the empire. Pitt himself at length appeared in the character of a direct antagonist to Addington. On the 15th of March he moved for an address, requesting that his majesty would order to be laid before parliament an account of the number of ships in commision on the 31st of December, 1793, on the 30th of September, 1801, and on the 31st of December, 1803, specifying the service in which they were respectively

employed. The debate on this motion lasted several hours, but it was lost on a division, by a majority of two hundred and one votes against one hundred and thirty. Addington was next attacked by Fox, who, on the 23rd of April, moved for a committee to revise the several bills that had been proposed for the defence of the country. Fox had supported Pitt in his motion, and Pitt now stood forward to support his ancient rival. There was, indeed, but one point on which these two eminent men differed on this occasion, and that was, the power vested in the sovereign of calling all his subjects out to defend the country in case of an invasion. Fox questioned the royal prerogative in this particular, while Pitt asserted and maintained the principle. The concurrence of opinions, on all other points between the two rivals, however, produced a division, in which ministers had a majority of only fifty-two in a full house. Two days after the attack was renewed in a more effective manner; Mr. Yorke moved for the house to resolve itself into a committee on a bill for suspending the army of reserve act, and though Pitt resisted this, ministers had a majority of only thirty-seven. Mr. Addington now resolved, as soon as the financial concerns of the year could be adjusted, to retire from office. This was effected on the 12th of May; the supplies granted, being £36,000,000 for Great Britain alone; and on that day it was announced that Addington had resigned the office of chancellor of the exchequer, and that Pitt had been appointed to succeed him. Those of the Addington ministry retained were the Duke of Portland, president of the council; Lord Eldon, chancellor; the Earl of Westmoreland, lord privy seal; the Earl of Chatham, master-general of the ordnance; and Lord Castlereagh, president, at that time, of the board of control. The new members were Lord Melville, first lord of the admiralty; Lord Harrowby, secretary for foreign affairs; Lord Camden, secretary for the department of war and colonies; and Lord Mulgrave, chancellor of the Duchy of Lancaster, with a seat in the cabinet. The government of Ireland was left unchanged, except that Mr. Wickham, chief secretary, retired on account of ill health, and was succeeded by Sir Evan Nepean. The appointments made in the subordinate offices of state, were, Mr. William Dundas, secretary at war; George Rose and Lord Charles Somerset, joint paymasters of the forces; the Duke of Montrose and Lord Charles Spencer, joint paymasters general; Messrs. Huskisson and Sturges Bourne, secretaries to the treasury; and Mr. Canning, treasurer to the navy. No changes were made in the law departments of the country, and very few in the household offices; the most important in the latter was the appointment of the Marquis of Hertford to be master of the horse.

THE SLAVE-TRADE QUESTION.

On the 30th of May Mr. Wilberforce, who had been labouring in his vocation session after session, without making any visible progress in the noble cause he had espoused, moved for the appointment of a committee to consider the propriety of introducing a bill for the abolition of the slave-trade, after a time to be limited. Both Pitt and Fox supported the philanthropist, and his motion was carried by a majority of seventy-five against forty-nine. A bill was now brought in for the abolition, and the third reading was carried on the 28th of June, by a majority of sixty-nine voices against thirty-three. Mr. Wilberforce began to have hope that his long labour was about to be rewarded—that the one grand object of his life was now about to be

accomplished. But he was doomed to be disappointed. It was rejected in the upper house, on the ground, that having been introduced at so late a period of the session, interested parties would be unable to obtain substantial justice.

ADDITIONAL FORCE ACT

On the 5th of June Pitt introduced a bill for raising and supporting a military force, and for a general reduction of the additional militia, and which was denominated, “The additional force act.” The essential part of his plan was to increase the permanent strength of the regular army, to which end he proposed limiting the militia to its usual amount of 40,000 for England, and 8000 for Scotland, and removing the difficulties which now stood in the way of recruiting for the regular army, by destroying the competition existing between those who recruited for the regular service, and those who recruited for limited service only. He likewise proposed that the army of reserve should be raised for five years, and that while it was not to be called out for foreign service, it should serve both as an auxiliary force to the regular army, and as a stock from which that army might be recruited. According to his plan, it was to be joined to the regular army in the way of second battalions; and he considered that from so close a connexion, a considerable number of the reserve might be induced to volunteer for the regular army, Pitt’s bill was opposed by Windham, Fox, Addington, and others, but it was carried through the commons with small majorities, and in the lords, by one hundred and fifty against sixty-nine.

DEBATE ON THE CORN-LAWS.

In consequence of a report of the commons, it was thought expedient, at the close of this session to adopt some new legislative regulations concerning the corn-laws. From that report, it appeared that though yielding, on an average, a fair remuneration to the grower, the price of corn from 1791 to 1803 had been irregular. It was also found that the effect of high prices had begun to stimulate industry, and to bring-large tracts of waste land into cultivation. This added to the last two favourable seasons had occasioned a great depreciation in the value of grain, and it was thought agriculture would be discouraged unless immediate relief were afforded. Under this impression, although £30,000,000 had been paid to foreign countries for the supplies of corn, it was proposed to annex a bounty to exportation. A bill was introduced allowing exportation when the price of wheat was at or below forty-eight shillings a quarter, and importation when the price, in the twelve maritime counties of England, should exceed sixty-six shillings. This “bill to starve the poor” passed, and became the law of the land.

THE BUDGET—PARLIAMENT PROROGUED.

The budget had been discussed before Pitt’s return to office; but on the 2nd of July, the house of commons resolved itself into a committee of supply, to which several accounts were referred relative to the augmentation of the civil list, which was now greatly in arrears. During the session the total supplies granted were £12,350,600 for the navy; £6,159,114 for the militia and fencible corps; £3,737,091 for the ordnance; £4,217,295 for miscellaneous services in Great Britain; £2,500,000 for miscellaneous

services relating to Ireland; £591,842 for discharging arrears and debts on the civil list; and £60,000 for an additional sum for the better support of his majesty's household. The sum total granted was, £53,609,574; to raise which recourse was had to new taxes and duties, loans, annuities, and to three lotteries. Little other business of importance was transacted during this session. The session closed on the 31st of July, when the king expressed a hope that the exertions of the country might, by their influence on other states, lead to the re-establishment of a system which would oppose a barrier against those schemes of ambition which threatened the ancient monarchies of Europe.

AFFAIRS OF FRANCE: NAPOLEON CREATED EMPEROR.

In the midst of this prosperity Napoleon was not without his enemies; about this time, indeed; a formidable conspiracy was formed against him in the heart of France. At the head of this conspiracy was Pichegru, a French refugee in England. Pichegru, acting with the royalist agents, corresponded with Moreau, whom Buonaparte had recently slighted, and entered into a plot with him for overthrowing the consular government. With them the Chouan leader, George Cadoudal, was also associated. Pichegru, left England early in the year 1804, to assist in carrying their plan into effect; but the conspiracy was discovered in February, and Pichegru and Cadoudal suffered death, while Moreau was banished. Others of less note were likewise executed for this conspiracy. Coupled with it stands a fearful deed in the page of Napoleon's history—the foul murder of the Duke D'Enghein. This noble youth, who was the last scion of the house of Condé, inhabited a place called Ettenheim, in the duchy of Baden. As he was an emigrant, and naturally attached to the fortunes of his house, it was resolved that he should be sacrificed, in order to strike terror into the heart of the Bourbons. By Napoleon's order he was surprised in his castle, which stood on neutral ground, conducted to Vincennes, tried by a military commission, and shot in the fosse of the château, with the grave in which he was to be buried full in his view. Yet it was immediately after this execrable deed that Napoleon ascended the summit of his desires—the throne of France. By it he endeared himself to the old regicidal Jacobin party; and they promised to support him in his attempt to mount the imperial throne. The blood of the Duke D'Enghein, indeed, cemented the steps of the adventurer's throne. Immediately after the senate prayed him that he would govern France under the name of Napoleon Buonaparte and with the title of "emperor;" and on the 18th of May they passed a decree styling him "Napoleon Buonaparte, Emperor of the French." The remainder of this year was spent by Napoleon in making arrangements on assuming his new title. Excepting England, all the states of Europe were consulted; and even Austria, his ancient foe, recognised his title. Finally the pontiff was brought to Paris from Rome in order to consecrate the new dynasty. He was crowned on the 2nd of December, 1804, on which occasion Pope Pius VII. in his homily compared himself to Elias and Samuel, and Napoleon to Hazael, Jehu, David, and Saul.

"Look now on that adventurer who hath paid His vows to fortune; who, in cruel slight Of virtuous hope, of liberty, and right, Hath followed wheresoe'er a way was made By the Wind goddess—ruthless, undismayed; And so hath gained at length a

prosperous height, Round which the elements of worldly might Beneath his haughty feet like clouds are laid. Oh, joyless power that stands by lawless force Curses are his dire portion, scorn, and hate, Internal darkness and unquiet breath; And if old judgments keep their sacred course, Him from that height shall heaven precipitate By violent or ignominious death." —WORDSWORTH.

On ascending the throne of France Napoleon surrounded himself with all the array of courts. His brothers Louis and Joseph were created princes, and many of his officers dignified with the title of marshals. Dignitaries of the crown were also appointed, and pages and chamberlains swarmed in his palace. His court vied with that of the Bourbons in their most palmy days for its magnificence. "Princes of the house," it has been observed, "grand dignitaries without emoluments, without other functions than the ceremonial of presentation; grand officers of the empire, officers of the court in manifold gradation, with all the oriental pageantry, formed a barrier between the sultan and his people." Then, indeed, was the proud nation of France humbled. From a nation of kings they became a nation of slaves to one man, and that one man of men the meanest. Their one cry had been "Equality and liberty," and now they saw themselves under the feet of one of their own order; of one who was able to keep them in a state of utter and abject subjection.

NAVAL AFFAIRS.

During this year Napoleon made great efforts to acquire the means of meeting the British navy on equal terms. By a convention with Genoa he obtained the service of 6000 seamen, with the use of its harbours, arsenals, and dock-yards; while the Ligurian republic engaged to enlarge the basin for the reception of ten sail of the line at its own expense. The fleet of Spain also was now at his own disposal, the Spanish government being compelled by France to make preparations for the resumption of hostilities. A Spanish squadron was preparing for action in the port of Ferrol; and Captain Moore was sent with four frigates in order to intercept such Spanish vessels of war homeward bound as contained Dullion or treasure; it being supposed that the Spanish government waited only for their arrival before they commenced war. In the month of October Captain Moore fell in with four large frigates, and an engagement took place, in which one of the Spanish ships blew up, and the others struck in succession after sustaining considerable loss. This squadron was from the Rio de la Plata, and it contained about four millions of dollars, besides merchandise of great value.

Early in this year a gallant action was sustained by the British off the straits of Malacca. When Admiral Linois, whose departure for the East Indies has before been noticed, withdrew from the road of Pondicherry, he captured several East India ships, made a successful descent on Bencoolen, and then, collecting his whole force, he cruised off the Straits of Malacca, in expectation of the British homeward-bound fleet from Canton. As he had with him one ship of the line, three frigates, and a brig, and as our merchant-vessels had no men-of-war to convoy them, he made sure of a rich prize. On the 14th of February he fell in with his expected prey. But by this time the company's ships were generally armed and well officered, and Captain Dance, who was acting as commodore to the fleet of traders, gallantly hoisted his colours and

offered him battle. The French admiral, however, stood aloof; and Dance formed in order of sailing and pursued his course. Linois now followed him; and on the 15th Dance finding that the enemy's intention was to cut off his rear, made the signal to tack, and bear down on them, and engage in succession. The "Royal George" bore the brunt of the action, being ably seconded as they came up by the "Ganges," "Warley," "Alfred," and the "Earl Camden." The action lasted nearly one hour, and then, before any of the other ships could come up, the enemy hauled away to the eastward with all the sail they could set. This was two o'clock in the day, and Dance pursued Linois till four in the afternoon; when fearing that a longer pursuit would carry him too far from the Straits of Malacca, he made the signal to tack, and by eight in the evening they all anchored safely in a situation to enter the strait next morning. Nothing more was seen of Linois; and the squadron returned safely to England, when Dance was knighted by the king, and with his brave crew rewarded by the East India Company. Liberal sums were also given him and to the officers and crews by the committee of the "Patriotic Fund."

During the autumn of this year, after various attempts to destroy the French flotillas in their own harbours had failed, Lord Keith was directed to make an experiment with the catamaran flotilla. The catamaran's were copper vessels filled with combustibles, and so constructed as to explode at a given time by clock-work. They were to be fastened to the bows of the vessels by the aid of a small raft rowed by one man who, being up to the chin in water, was expected in the darkness of the night to escape discovery. Sir Sidney Smith with other able officers were selected for this perilous enterprise; and the attack was to be covered by Lord Keith's squadron. The expedition anchored about a league and a half from Boulogne on the 2nd of October; and soon after nine at night a detachment of fire-ships was launched. But this enterprise proved signally abortive. The catamarans sent exploded with an awful noise, and created a great alarm, not only in the French flotilla, but also in the shore batteries; but the explosion only wounded some half-dozen Frenchmen, while they blew up nothing but themselves. In the whole affair, which lasted till four o'clock in the morning, the French had only fourteen killed and seven wounded, while the English had not a single man hurt. This catamaran expedition, indeed, from which mighty things were expected by the whole nation, ended only in laughter and derision. It brought disgrace not only on the projectors, but to our national character, it being a plan unworthy OF men of valour. It had been projected by the Addington administration; but as it was tried under the present cabinet, the admiralty won for themselves the dishonourable appellation of "The Catamaran Admiralty." As for Napoleon, it served him for a pretext for disseminating the most bitter invectives against the English throughout the continent; and many, even in England, were induced to believe that he had not adopted his own violent measures without the means of justification.

{GEORGE III. 1804—1807}

COALITION BETWEEN PITT AND ADDINGTON.

At the close of this year Pitt felt his ministerial condition to be one of extreme difficulty. Under these circumstances he was compelled to make peace with Addington, who had carried with him a considerable force to the mixed opposition. It is said that the king insisted upon this reconciliation; and it appears to be proved, not only by expressions used by Pitt himself in hisletters to Wilberforce, but from the fact that Addington was raised to the peerage as Viscount Sidmouth of Sidmouth. He was brought into the cabinet as president of the council, in the room of the Duke of Portland, who resigned office on account of age and infirmity. At the same time Lord Mulgrave was appointed secretary of state for the foreign department, in the place of Lord Harrowby, who was suffering from a severe illness; and the Earl of Buckinghamshire took Lord Mulgrave's post, as chancellor of the Duchy of Lancaster.

MEETING OF PARLIAMENT.

{A.D. 1805}

Parliament was opened by the king in person on the 15th of January. In his speech the king announced that preparations for invasion were still carried on by France with unceasing activity; and that Spain, under French control, had declared war against this country. But his majesty was still confident of ultimate success; for after referring to the skill and intrepidity of the British navy, the formidable state of the army, and the general ardour manifested by all classes of his subjects, he characterized the intended invasion as "presumptuous and desperate." The usual addresses were passed unanimously in both houses.

ARMY AND NAVY ESTIMATES, ETC.

On the 23rd of January the commons voted 120,000 men, including marines, for the service of the navy during the present year. A few days after the secretary at war moved the army estimates, which amounted to £12,395,490 for 312,000 men under various heads of service; on which occasion lie stated that in the United Kingdom there were 600,000 men in arms, including volunteers, of whom 240,000 were fit for active and immediate service. The budget was opened on the 13th of February, when the supplies stated amounted to £44,500,000 for Great Britain and Ireland. The ways and means comprised a loan of £20,000,000 for Great Britain, and £2,500,000 for Ireland; and a considerable addition was made to the war-taxes. Thus the income-tax was raised to six and a quarter per cent., and the salt-duty was augmented by one-half. The new taxes were estimated at £1,000,000; yet Pitt, while thus adding to the public burden, and while war menaced England on every hand, congratulated the house on the increasing prosperity of the country. At this time, however, the prime minister had lost much of his usual confidence, arising partly from his declining health. Although in the prime of life, Pitt, from the task which he had undertaken, and which he so energetically performed, was now in constitution a worn-out man. The burden of office was too great for his strength; and it had become manifest that he would never arrive at the allotted age of man.

DEBATE ON THE RUPTURE WITH SPAIN.

In the month of February a debate took place on the rupture with Spain. Opposition endeavoured to prove that it arose from our attack on its frigates, before recorded. Ministers, they said, had rushed into this war unnecessarily; and Lord Grenville reprobated the act of attacking the frigates of Spain, as contrary to all the laws of civilized warfare. “No capture of treasure,” he remarked, “could wash away the stain of innocent blood thus brought on our arms.” Ministers replied that Spain, by her treaties with France, in which she bound herself to furnish, on demand and without demur or inquiry into the justice or policy of the war, a certain aid of ships and men to France, became a principal in the war—an argument which could not be refuted. It was plain to all the world, indeed, that Spain intended to declare war as soon as her treasure-ships arrived at Cadiz; she had, in truth, no alternative, for the Spanish government was under the vassalage and dictation of the ruler of France.

CLAIMS OF THE CATHOLICS.

In the debate on the address in the commons, Pitt had been reminded that he had done nothing to redeem the pledge which he was understood to have given to the Roman Catholics. In his reply the prime minister stated, that on a future occasion he should have an opportunity of explaining what had induced him to let their claims remain unsatisfied, and that he had no doubt the house would then, for the reasons he should give, give him credit for consistency. Notwithstanding this assurance, petitions, praying relief from civil disabilities, were presented by Lord Grenville in the lords, and by Fox in the commons. Pitt, however, declared that existing circumstances were unfavourable to their request; and it was accordingly rejected by large majorities. As he resigned office because he could not compel the king to grant the claims of the Roman Catholics, and as he resumed it with an acquiescence in their disabilities, Pitt’s character has been vehemently attacked on this question—he stands charged with sacrificing principle to ambition. There is no good reason for such a charge: it is evident that Pitt did intend bringing this question before the house whenever a favourable moment should arrive. That moment did not arrive during the present session; and before the next was two days old Pitt was dead. It is unreasonable therefore to stigmatize his memory as unprincipled, on a subject which he had no opportunity of bringing forward; for, from the time of his resuming office till the day on which he died, his mind was wholly occupied in providing for the safety of his country.

THE SLAVE-TRADE QUESTION.

During this session, contrary to the advice of Pitt, the question of the slave-trade was again brought forward by Wilberforce. His bill was read the first time on the 10th of February, and the second reading was fixed for the 28th. He seemed to have nothing to fear in the house of commons; but on the 28th his constancy in the righteous cause he had undertaken was severely tried. On “that fatal night,” as he called it, not one of his usual supporters, excepting Fox, spoke in its favour; and several who had been neutral in the last session now voted against him. The Irish members also were either absent or hostile, although they had hitherto been warm in his favour. His bill was lost by seventy-seven against seventy.

IMPEACHMENT OF LORD MELVILLE.

Early in this session Lord Melville was threatened with impeachment. In February Wilberforce wrote, “Rumour has for some time impeached Lord Melville’s integrity. I have had much talk with George Rose about him. Rose is confident that Pitt will defend him, though he tells me some stories, and strong ones, of jobs which have fallen under his own view.” The storm which menaced Melville fell upon his head in April. In 1803 a bill had been passed, appointing commissioners to make inquiries into the abuses of the naval department. These commissioners produced many reports, the truth of which appeared to implicate Lord Melville, who, while he filled the office of treasurer of the navy, had illegally retained balances of the public money. This report was brought under the consideration of the commons by Mr. Whitbread, who exhibited three charges against Lord Melville:—first, his application of the public money to other uses than those of the naval department, in express contempt of an act of parliament;—secondly, his connivance at a system of peculation in an individual, for whose conduct he was officially responsible;—and, thirdly, his own participation in that system. This second charge had reference to Mr. Trotter, who, it was said, appropriated the public money to private purposes, at the express connivance of Lord Melville. In making these charges Whitbread remarked:—“To the honour of public men, charges like the present have seldom been exhibited; and it is a remarkable circumstance that the only instance, for a long-period, is one that was preferred against Sir Thomas Rumbold by this noble lord himself, on the ground of malversations in India.” With respect to the first point of accusation, it appeared from the report that there had been for several years deficiencies in the accounts of the treasurer of the navy, to the amount of £600,000 a year and upwards. When Lord Melville was asked a plain question respecting the appropriation of this money, he, as well as Trotter, professed total ignorance of the deficiencies; but presently, beginning to recover his recollection, he confessed that from the year 1788 down to the period of his examination, he had been in the habit of drawing out public money, and placing it in the hands of his own bankers. When the commissioners extended their inquiries a little further, he had the assurance to declare that they had no right to interfere in his private affairs. In a letter to the commissioners he acknowledged the fact of advances having been made to him, but said that he could not give the other information required, because he could not disclose state secrets, and because he was not in possession of the accounts of advances made to other departments, having himself committed them to the flames. And not only had the noble lord destroyed the papers, but he had actually lost all recollection of the whole transaction. This was the principal charge against the noble lord; and Mr. Whitbread concluded by moving thirteen resolutions, founded on the circumstances which he developed in making the whole of his charges. Lord Melville was defended by Pitt, who observed that neither the report nor Mr. Whitbread himself alleged that any loss had proceeded from the transactions set forth to the public. The subject, he said, was of a grave and solemn nature; and that if, in a great pecuniary department, irregularities had been committed, though unattended with loss, the house might justly set a mark on such proceedings. As, however, all the circumstances of the case were not before them in the report, he contended that till they were the house could not be in a situation to

come to any vote. Pitt moved the previous question; and after some observations from the attorney-general, Mr. Canning, the master of the rolls, and Lord Castlereagh, in support of Pitt's views,—and from Lord Henry Petty, Messrs. Ponsonby, Fox, and Wilberforce in support of Whitbread's resolutions, the house divided. On a division there were two hundred and sixteen votes for, and an equal number against Mr. Whitbread's motion, and the speaker gave a casting vote in its favour. This led to Lord Melville's retirement from office. On the 10th of April the house was informed that he had tendered his resignation to the king, and that it had been accepted. On the 6th of May Mr. Whitbread proposed the erasure of the delinquent's name from the list of the privy-councillors; but as Pitt observed that the measure was generally considered expedient, no motion was made on that subject. Later in the session, after a long and able speech, he moved that "Lord Viscount Melville be impeached of high crimes and misdemeanors;" and this measure was adopted on the 25th of June, Mr. Whitbread being appointed manager. On the next day, in company with a great number of members, Whitbread impeached Lord Melville at the bar of the house of lords; and subsequently he brought a bill into the commons to avoid those differences of opinion which had arisen in the case of Warren Hastings, or to prevent the proceedings in the impeachment of Lord Melville from being affected by any prorogation or dissolution of parliament. This bill was carried without a division; but here the proceedings rested for the present. Before any further progress could be made in them, Pitt, on whose health and strength they had operated unfavourably, was laid in Westminster Abbey.

PARLIAMENT PROROGUED.

Parliament was prorogued by commission on the 12th of July. On that occasion, his majesty sent a message to the lords and commons, stating that the communications which had taken place, and were still depending between him and some of the powers on the continent, had not yet been brought to such a point, as to enable him to lay the result of them before the house, or to enter into any further explanation with the French government consistently with the sentiments he uttered at the opening of the session. At the same time he recommended parliament to consider the propriety of making provision for enabling him to take such measures, and entering into such engagements, as the exigencies of affairs might require. A sum, not to exceed £3,500,000 was instantly voted by the commons, for the purposes stated in the message.

DISSENSIONS IN THE CABINET.

Soon after the Easter recess, Lord Sidmouth had suggested the propriety of removing Lord Melville from the privy-council, but Pitt imagined that the country would be satisfied with the resignation of his office, and therefore refused to comply. Lord Sidmouth was also offended by the premier's refusal to place his friend, the Earl of Buckinghamshire, at the head of the admiralty; and expressed his intention of retiring from office, together with the Earl and Mr. Vansittart. This intention was delayed by the erasure of Lord Melville's name from the list of privy-councillors, and the vote of impeachment which followed; but the breach made was too wide to be thus healed. Two days before the prorogation, Lord Sidmouth and the Earl of

Buckinghamshire resigned, and were succeeded by Lords Camden and Harrowby, while Lord Castlereagh obtained Earl Camden's place of secretary for foreign affairs. These dissensions, as well as the loss of so able a colleague as Lord Melville, occasioned deep anxiety to Pitt, and contributed to oppress and wear down a constitution already on the decline. His anxiety was further increased by the uncertain state of affairs on the continent.

NAPOLEON CROWNED KING OF ITALY

An Italian historian, writing of Napoleon's character at this period, says: "The nature of Napoleon was restless, disordered: constant only in ambition. He never remained long at the same point, changing continually to rise the higher. It appeared, and it was even solemnly, and with magnificent words, said by him, and by Melzi, the vice-president of the Cisalpine republic, that the regulations made at Lyons with the Italian consulta, were to be unchangeable and eternal; but before two years those regulations were described as defective, insufficient, and not conducive to anything good or lasting. All this signified, that he who had made himself an emperor in France, must be made a king in Italy. It was not without a design that so many Italians of note had been invited to Paris, to attend, in the name of the Cisalpine republic, the imperial coronation and ceremonies. Melzi, the vice-president, the councillors of state, together with deputies from colleges, &c., obeyed the summons, and remained some considerable time in France. They were given to understand, that the emperor must be king on the other side of the Alps; that the Italian republic was an anomaly; and that the proceedings at Lyons must be condemned and reversed." This plain language was understood by the state consulta of the Italian republic, and they chose the powerful monarch of France King of Italy. On the 26th of May in this year Napoleon placed the iron crown of Charlemagne upon his head in Milan, and appointed Eugene Beauharnois, his step-son, viceroy. By a stroke of his pen he also annulled the constitution of the Ligurian republic, and incorporated Genoa with the French empire. Three departments, Genoa, Moulenotte, and the Apennines were formed out of this republic; and the incorporation of Parma and Piacenza was subsequently formed by an imperial decree. About the same time, the people of Lucca having expressed a wish to be governed by a prince of the house of Napoleon, the emperor gave them his brother-in-law, Pascal Felix Bacciochi, for hereditary prince. Moreover, in Batavia the republican principle became incompatible with the interest of the new imperial state, and that country had to accommodate itself to the monarchic form; its government was dissolved, and superseded by a grand pensioner, elected for five years, and invested with almost unlimited power. By incorporating Genoa with the empire, Napoleon said that he had only one end in view—that of obtaining 15,000 seamen, for the purpose of venturing a great naval struggle, in which, if he proved victorious, he should then invade England. His plan was to distract the British government; to scatter its fleets, by despatching his own squadrons, some to the West Indies, and others to the Spanish ports; and then to effect a junction of all, and collect such a force as would ensure success in a naval combat. This, however, could not have been his principal object. At this time he could not have been ignorant of the coalition forming against him, which it was his interest

to provide against. So many violations of treaties, and such unbounded desire of aggrandizement this year promoted the formation of a third coalition against him, of which England was the centre. Sweden first, then Russia, and next Austria, joined themselves with the British government in a league against France; and though Prussia stood neutral, yet she secretly approved the spirit of this coalition. But its ruin was nevertheless induced by the policy of Russia. Austria was exposed alone to the blows of the enemy; the aid of Russia was too remote, and England fought only with money and vessels. The treaty aimed at nothing less than a league of all the European states against France, and the re-establishment of all the relations that existed before the war of the revolution. But these designs were frustrated, and that chiefly by Prussia's remaining neutral; without the accession of this power, it was scarcely possible to make an effectual attack on the enemy. Its neutrality was, in fact, a protection to the northern half of the French empire.

CONQUESTS OF NAPOLEON IN BAVARIA.

Certified of the nature and extent of the coalition formed against him, Napoleon hastened to secure Bavaria to himself, by the promise of a large aggrandizement of territory. In consequence of this, Austria advanced her troops, peremptorily requiring the elector to join the imperial standard. This he refused to do, and then the Austrian army was ordered to occupy Munich. On his return from Italy, Napoleon had spoken of the invasion of England as an enterprise fully determined upon; but on the 28th of August he announced that "the army of England" was to become "the army of Germany." Forthwith, the 150,000 men collected at Boulogne, and along that coast, struck their tents, and forming into five separate corps, marched for the Rhine. He affected great disappointment in abandoning his scheme of invasion; but it is doubtful whether he ever really intended to take such a step. The readiness, indeed, with which he dictated his masterly plan for a continental campaign, proves that it had been the subject of a long and mature reflection, and would indicate that this was in reality his grand design. At the same time, such was his mortal hatred to England, that, if he had discerned the remotest chance of success, there is little doubt but that he would have engaged in the desperate enterprise. But England was freed from all fears, and the armies destined to act against her took another route. The five great columns which marched from Boulogne were led by Marshals Soult, Davoust, Ney, Lannes, and Murat; but in the month of September Napoleon took the command of the whole in person. He prefaced his departure for the "Grand Army" by going in state to the senate, and there delivering a speech on the causes of the present war. He remarked: "The wishes of the eternal enemies of the continent are at-last fulfilled; war is begun in the middle of Germany. Austria and Russia have joined England; and our generation is again plunged into the calamities of war. The Austrian army has crossed the Inn; the elector of Bavaria has been driven away from his capital: all my hopes of the preservation of peace have vanished. In this instance, the wickedness of the enemies of the continent has fully revealed itself. They feared the manifestations of my deep love for peace—they feared that Austria, at the sight of the abyss they have dug under her feet, might return to sentiments of justice and moderation, and they have hurried her into war. I sigh in thinking of the blood that this will cost Europe; but the French name shall derive a lustre from it. Senators, when, at your

request, at the voice of the whole French people, I assumed the imperial crown, I received of you, and of all citizens, a solemn engagement to preserve it pure and without stain. My people will rush to the standard of their emperor and of his army, which in a few days will have crossed the frontiers. Magistrates, soldiers, citizens, are all determined to keep our country free from the influence of England, who, if she should prevail, would grant us none but an ignominious peace, the principal conditions of which would be, the burning of our fleets, the filling up of our harbours, and the annihilation of our industry." At the time Napoleon joined his "Grand Army" at Mayence, and when the Austrians commenced operations, the Russians had scarcely arrived in Gallicia. The Austrian army was commanded by Field-marshal Mack, who, notwithstanding his shameful discomfiture in the south of Italy, in the year 1799, still passed with the Aulic Council as a great military genius. Under him were 80,000 men, with which army he took post at Ulm, thinking that Napoleon must of necessity take the same route which Moreau had formerly taken. The French emperor, however, finally divided his immense army into seven corps; and before Mack was aware, an overwhelming force was in his rear. Retreat was impossible; Mack was defeated on every hand, and he shut himself up in Ulm, where he was soon compelled to capitulate. An imperial bulletin announced the capture of 60,000 prisoners, two hundred pieces of cannon, and eighty stand of colours, in a campaign of fifteen days. Nothing now arrested the onward march of the French. Although the Russians, commanded by Kutosow, had finally arrived on the banks of the Ister, they were unable to arrest the enemy's progress. The French, attended by continual victory, arrived at Vienna on the 13th of November; and on the same day they crossed the Danube, on the left bank of which the Russians were marching to Moravia. Napoleon concentrated his forces at Bruma; and on the 27th of November the forces of Austria and Russia, under the command of their respective emperors, who had united at Olmutz, marched against him. The battle of Austerlitz was now fought and lost. On the 1st of December Francis and Alexander saw the destruction of thirty thousand of their soldiers, the capture of fifteen thousand more, and the wild flight of those who escaped the slaughter; one hundred cannon and a rich booty fell likewise into the hands of the French. In the meantime the Austrian army in Italy, under Archduke Charles, and another in the Tyrol, under the Archduke John, had been compelled by the French to retreat; and having united, they marched towards Vienna. But the Emperor of Austria had now lost all heart. Prussia had recently made peace with France; and two days after the battle of Austerlitz Francis repaired in person to the camp of Napoleon, near Saroschuez, and entered into a preliminary convention relative to an armistice and peace. Finally, a treaty was signed at Presburg, on December the 26th, which broke the power of Austria, and gave the continent into the hands of France. By this treaty, all the countries usurped by Napoleon before the war were ratified to him, and Austria likewise ceded the Venetian territory on both sides of the sea to his "Kingdom of Italy;" to Bavaria, Tyrol, Vorarlberg, Eichstaedt, and a part of Passau; and to Bavaria, Wurtemburg, Baden, the Suabian territories, and the Breisgau. In return, Austria received Salzburg, and Berchtesgaden; and the dignity of Grand Master of the Teutonic order was to be assigned, hereditarily, to an Austrian prince. By this treaty, likewise, the electors of Bavaria and Wurtemburg were acknowledged as kings, and the elector of Baden as independent. The Emperor

of Russia was invited to become a party in this treaty, but he disdained it, and led his forces into his own dominions. It was not merely the loss of territory that made the peace of Presburg, humiliating to Austria: the moral effects of a fall of such unexampled rapidity, and the complete change of all relations in Germany, made it still more depressing. South Germany, hitherto the vassal realm of Austria, now acknowledged the rule of France. The German imperial dignity no longer possessed importance; and the whole system of the European states was overthrown. The smaller German States of the Rhine, were formed by the conqueror into what was called “the Confederation of the Rhine;” the old Germanic empire was therefore dissolved, and the influence of the French fully established over a great part of Germany. Very soon after this treaty, indeed, the Emperor Francis formally renounced his title of Elective Emperor of Germany, and assumed that of Hereditary Emperor of Austria. The conquests of Napoleon were followed by the aggrandizement of his house. Less than three weeks after signing the treaty of Presburg, Eugene Beauharnois married the daughter of the King of Bavaria, and shortly after, Princess Stephanie Beauharnois, Eugene’s cousin, was given in marriage to the son and heir of the Grand Duke of Baden. Another matrimonial alliance was also contemplated with the family of the King of Wurtemburg.

{GEORGE III. 1804—1807}

THE BATTLE OF TRAFALGAR, ETC.

Though successful on the Continent, the power of Napoleon by sea was this year broken. Nelson had been appointed to the command of the Mediterranean fleet in the autumn of the year 1803. In the first month of the present year, while at anchor off Sardinia, he received intelligence that the Toulon fleet had put to sea. Nelson instantly weighed, and after beating about the Sicilian seas for ten days, he ran for Egypt, under the impression that they were bound for that country. Subsequently he discovered that the enemy had put back to Toulon; and, in the hope of tempting it out to sea, he bore away for the coast of Spain, and ran down as far as Barcelona. This stratagem failed of effect; but on the last day of March he received intelligence that Villeneuve had put to sea, with eleven ships of the line and seven frigates, and when last seen was steering towards the coast of Africa. Under the impression that the enemy was bound for Egypt, Nelson covered the channel between Sardinia and Barbary, and when he found that he was mistaken, he bore up for Palermo, and despatched cruizers in all directions, lest it should pass to the north of Corsica. At length, feeling that Villeneuve was not gone toward the Levant, he despatched frigates to Gibraltar, to Lisbon, and to Admiral Cornwallis, off Brest, beat up against contrary winds, and arrived in sight of Gibraltar, on the 30th or April; but being unable to pass through the Straits, by reason of a strong westerly gale, he anchored off the coast of Barbary. In the mean time the French admiral had hastened on to Cadiz, and Sir John Orde, who commanded the blockading squadron, retired at his approach. Villeneuve was joined at Cadiz by six Spanish, and two French ships of the line; making his whole force, eighteen line-of-battle ships, six frigates of forty guns each, and four smaller vessels. The united squadrons now sailed for the West Indies,

and Nelson having discovered their place of destination, set sail with ten ships of the line, and three frigates, in pursuit of them. It has been supposed that Nelson would not have engaged his enemy, had he met with them, his force being so disproportionate: but it is clear from his own words that he would have fought had he come up with them. “Take you each a Frenchman,” he observed to his officers, “and leave the Spaniards to me: when I haul down my colours, I expect you to do the same.” But Nelson was again doomed to be disappointed in his search. He sought the enemy at Tobago, Trinidad, and Grenada, but not being able to discover or to gain any certain intelligence of them, he came to Gibraltar, where he went on shore for the first time since June, 1803. While at Gibraltar, he communicated with Admiral Collingwood, who, with a detached squadron, had taken his station off Cadiz, to prevent any progress of the Spaniards, and who had divined that the enemy’s intention, or at least a part of it, was to invade Ireland. Subsequently Nelson sought the enemy off Cape St. Vincent, at Cadiz, in the Bay of Biscay, and on the north-west coast of Ireland. Frustrated in all his hopes, after a pursuit which exhibited the most indomitable ardour, and which scarcely has its parallel in history, he judged it best to re-enforce the Channel-fleet, and accordingly, on the 15th of August, he joined Admiral Cornwallis, off Ushant. While off Ushant, Nelson received orders to proceed with the “Victory,” his own ship, and the “Superb,” to Portsmouth. It was at Portsmouth that he first received certain intelligence of the enemy’s movements. Sir Robert Calder, who had been sent out to intercept their return, fell in with them on the 22d of July, sixty leagues west of Cape Finisterre; and though his force consisted only of fifteen ships of the line, and two frigates, he boldly attacked the enemy, who now numbered twenty-seven of the line, three of fifty guns, and two frigates; and after a combat of four hours succeeded in capturing two ships of the line, and defeated the greatest and best combined project ever formed by the genius of Napoleon. The French admiral sought refuge in Ferrol, and then threw himself into Cadiz. Nelson was now once more appointed to the command of the fleet, and once more he went in search of the enemy. He considered the enemy’s fleet, which he had so long pursued, his own proper game, the price and reward of his long and anxious search. In this feeling, also, his country joined.

Describing his departure from Portsmouth, his biographer remarks:—“Many were in tears, and many knelt down before him, to bless him as he passed. All men knew that his heart was as humane as it was fearless; that there was not in his nature an alloy of selfishness or cupidity, but that he served his country with a perfect and entire devotion; therefore they loved him as truly and fervently as he loved England.” Nelson arrived off Cadiz on the 29th of September, the very day on which the French admiral received orders to put to sea the first opportunity. That it might not be known to the enemy that the hero of the Nile was watching them, Nelson did not suffer his flag to be saluted, and took every precaution of keeping his arrival secret, as well as the numerical force of his fleet. He took his station fifty miles westward of Cadiz, near Cape St. Mary, where he prepared his plan of attack, which he sent to Admiral Collingwood, who was blockading all the small ports between Cadiz and Algesiras, in order that Villeneuve might finally be compelled for want of provision to set sail. Nelson’s plan was to be nearly that of sailing, which was in two lines, with an

advanced squadron of eight fast-sailing two-deckers: the second in command, having the direction of his line, was to break through the enemy about twelve ships from their rear, and Nelson himself was to lead through the centre, while the advanced squadron was to cut off three or four ahead of it. This plan received Collingwood's cordial approbation; and Nelson then called his admirals and captains together, and thus addressed them:—"The enemy's fleet is supposed to consist of forty-six sail of the line, the British forty; if either is less only a proportionate number of the ships are to be cut off. British to be one fourth superior to the enemy they cut off. Something must be left to chance. Nothing is sure in a sea-fight; shot will carry away the masts and yards of friends as well as of foes; but I look with confidence to a victory before the van of the enemy could succour their rear; and then that the British fleet would most of them be ready to receive their twenty sail of the line, or to pursue them should they endeavour to make off. If the van of the enemy tack, the captured ships must run to leeward of the British fleet; if the enemy wear, the British place themselves between the enemy and the captured and disabled British ships; and should the enemy close I have no fear for the result. The second in command will, in all possible things, direct the movements of his line by keeping them as compact as the nature of the circumstances will admit. Captains are to look to their particular line as their rallying point; but in case signals cannot be seen clearly or understood, no captain can do very wrong if he places his ship alongside that of an enemy."

[Illustration: 317.jpg YARMOUTH: NELSON'S MONUMENT]

At length the day which Nelson had long looked for arrived. On the 19th, signal was made by the "Mars," first, that the enemy were coming out of port, and then that their fleet was at sea. On that day they were narrowly watched by the British fleet, as they were through the night; and on the morning of the 20th the combined fleets, consisting of thirty-three sail of the line and seven large frigates, were seen ahead in a close line of battle, on the starboard tack, about twelve miles to leeward, and standing to the south. On board the enemy had four thousand troops, and numerous Tyrolese riflemen were dispersed through the ships. The British admiral had with him only twenty-seven sail of the line and four frigates; six ships of the line having been dispatched to Gibraltar for provisions and water. With this force he resolved to attack the enemy on the next day; and soon after daylight he called Captain Blackwood on board the "Victory," the last words he uttered to whom were:—"God bless you, Blackwood; I shall never see you more." He had a presentiment that, while he was certain of victory, it would, nevertheless, be gained at the price of his own life. Yet, with this prospect before him, appalling as it must have been to his mind, he was calm and serene. His whole attention was fixed on Villeneuve, who was wearing to form the line in close order upon the larboard tack, thereby to bring Cadiz under his lee, and to facilitate, if necessary, his escape into that port. This induced Nelson to steer somewhat more to the north, and telegraph Collingwood, "I intend to pass through the van of the enemy's line, to prevent his getting into Cadiz." Villeneuve's movements had also produced another danger, for they had brought the shoals of San Pedro and Trafalgar under the lee of both fleets; and to guard against this danger Nelson made a signal for the British fleet to anchor at the close of day. All things prepared, the hero of the Nile gave his last signal:—"England expects every man to

do his duty!" which was greeted with three cheers on board of every ship in the fleet. "Now," said Nelson, "I can do no more; we must trust to the Great Disposer of all events and to the justice of our cause: I thank God for this grand opportunity of doing my duty." While gradually approaching the enemy, whose ships had fallen into a crescent form, Nelson dressed himself, putting on the coat which he had usually worn for weeks, and on which the order of the Bath was embroidered. The captain of the "Victory," Hardy, suggested that this might become a mark for the enemy; to which Nelson replied, "He was aware of it; but that, as in honour he had gained his orders, so in honour he would die with them." The battle commenced about ten minutes after the hour of noon, when Admiral Collingwood, in the "Royal Sovereign" engaged the "Santa Anna," the flag-ship of Vice-Admiral Alava, the second in command. Ship after ship followed his example, and the battle waged fiercely on every hand. The "Victory," in which Nelson was, singled out the "Santissima Trinidad," a huge four-decker, which he had encountered before, and which he was wont to call his old acquaintance. At the same time seven or eight French and Spanish ships opened a fire on the "Victory." Mr. Scott, his secretary, was killed, Captain Hardy was wounded in the foot, and fifty sailors perished before the "Victory" returned a shot. At length orders were given to fire; and as it had been discovered that the French admiral, who hoisted no colours, was in the "Bucentaure," of eighty guns, Nelson's terrible sixty-eight pounder carronade from the "Victory's" forecastle was turned chiefly against that ship. In two minutes nearly four hundred men were killed or wounded in this ship; twenty of her guns were dismounted, and she was almost disabled. The next ship which the "Victory" encountered was the "Redoubtable," against which she ran foul, the anchor of the one striking the spare anchor of the other, and the hooks and boom-irons getting intermixed or catching in the leash of the sails, holding the two ships together. Again the starboard carronade was fired, which cleared the French ship's gangway in a moment. At the same time the "Victory's" larboard guns did fatal execution in the "Santissima Trinidad," now engaged likewise. At length the "Redoubtable" took fire, and the flames spread to the "Victory." The English sailors put out their own fire, and threw buckets of water into the "Redoubtable" to help the French to extinguish theirs. In the midst of this terrific scene Nelson—the brave, undaunted Nelson—fell: a rifle or musket-ball from the mizen-top of the "Redoubtable" passed through him, and he fell on his knees on the very spot where his secretary had before him breathed his last. "They have done for me at last," said he to Hardy, who was anxiously bending over him, "my backbone is shot through." He was carried down to the cockpit, which was crowded with the wounded and the dying, and where it was too soon discovered that his wound was mortal, the ball had entered his left shoulder, through the forepart of the epaulette, and had lodged in his spine. In the meantime the battle raged with fury. In the midst of the roar of cannon and the shrieks of the wounded and the dying, the crew of the "Victory" ever and anon by their shoutings announced that some ship of the enemy had struck. On hearing their shouts, joy sparkled in the eyes of the dying Nelson; and he sent for Captain Hardy to inquire how the battle proceeded. It was some time before Hardy could leave the scene of carnage on the quarter-deck; but on reaching the side of the dying Nelson he informed him that twelve or fourteen of the enemy's ships had struck, but that five of their van had tacked and shown an intention of

bearing down upon the “Victory,” and that he had called two or three ships round it to guard against the clanger. Hardy then returned to the quarter-deck; but in less than an hour he returned, and congratulated his dying friend on having obtained a brilliant and complete victory: fourteen or fifteen of the enemy’s ships, he said, were captured. “That’s well,” replied Nelson; “but I bargained for twenty;” then in a louder tone he exclaimed, “Anchor, Hardy, anchor!” Hardy suggested that Admiral Collingwood would now take upon himself the direction of affairs: but Nelson, endeavouring to raise himself from his bed, replied that he would command while he lived, and gave imperative orders to anchor. It is supposed that he meant, in case of his surviving until all resistance was over, he would anchor the ships and prizes, as the surest means of saving them, should a gale of wind arise. Soon after this the hero’s gallant spirit fled: his last words, thrice repeated, were, “Thank God, I have done my duty.” The victory was complete; and Admiral Collingwood, who now succeeded to the command of the fleet, and who had largely contributed to gain the battle, distinguished himself no less by his skill after it was gained, than by his undaunted bravery in the action. The number of ships captured was nineteen; and Villeneuve and two Spanish admirals fell into the hands of the British. One French ship blew up after her surrender, two hundred of the crew of which were saved by our tenders. The total number of prisoners taken amounted to nearly 12,000 men; the total British loss was 1,587, including many officers and the gallant Nelson. Out of eighteen sail of the line the French only preserved nine; and out of fifteen sail of the line the Spaniards preserved only six. Most of the captured vessels, however, were subsequently lost at sea through stress of weather; four only were saved and carried to Gibraltar. “Our own infirm ships,” says Collingwood, “could scarce keep off the shore: the prizes were left to their fate; and as they were driven very near the port, I ordered them to be destroyed, that there might be no risk of their again falling into the hands of the enemy.” Thus ended the greatest naval victory recorded in history, whether in ancient or modern times. By it England was rescued from all chances of invasion, and left sole mistress of the seas. And the moral effect of the victory was as great as the physical one; the marine force of Napoleon might be said to be annihilated. It was, in fact, a glorious set off to his successes on the continent; and deep must have been his chagrin on hearing the news. In England the joy was great, and was only damped by the consideration that posthumous honours alone could be awarded to him who was instrumental in gaining the victory. These honours were with gratitude heaped on his memory. His brother was made an earl, with a grant of £6000 per annum; £10,000 were voted to each of his sisters; and £100,000 for the purchase of an estate. As for the hero himself, a public funeral and a public monument in St. Paul’s was decreed to him, and statues, columns, and other monuments were voted in most of our principal cities. Nor did the gratitude of the nation stop at the moment. Recently a noble monument has been erected to his memory in Trafalgar Square, chiefly by private contributions. His name will live in the history of England and the memories of his grateful countrymen down to the latest period of time. Faults and errors in private life may have stained his character; but his memory will nevertheless be precious in the sight of admiring posterity.

MEETING OF PARLIAMENT.

Parliament met on the 21st of January. The speech was delivered by commission, and it dwelt upon our great naval successes, and attempted to alleviate regret for the disasters of our allies on the continent, with the assurances the Russian emperor had given that he would still aid us in the strife. It mentioned also that £1,000,000 accruing to the crown from the droits of admiralty should be applied to the public service; and concluded with a strong recommendation of vigilance and exertion against the common enemy. Amendments were read in both houses; but they were not moved in consequence of the intelligence that Pitt was at the point of death.

DEATH OF MR. PITT.

When parliament reassembled, Pitt, who at the close of last session was obliged to relinquish all exertions and retire to Bath, was lying in a state of debility and exhaustion at Putney, whither he had recently returned. Two days after the meeting of parliament, on the 23rd of January, he expired, in the forty-seventh year of his age; a young man in years, but aged in constitution from incessant toil and mental anxiety. On the motion of Mr. Henry Lascelles he was buried in Westminster Abbey, at the public expense, and a monument, with a suitable inscription, was erected to his memory. As he had died in debt, a sum not exceeding £40,000 was voted for the payment of his creditors, without any opposition. “Never had a minister that ruled the country for twenty long years, or for half or fourth of that time, done so little to enrich himself and family—never had statesman and dispenser of patronage and places been more indifferent to his private interests.” These sentences speak volumes as to the character of this eminent statesman. In politics he may often have erred; but not even his bitterest foe can impeach his integrity. “I allow,” said his inveterate opponent, Fox, “I allow that a minister is not to be considered as moderate and disinterested, merely because he is poor during his life or at his death; but when I see a minister who has been in office above twenty years, with the full command of places and public money, without any peculiar extravagance and waste, except what might be expected from the carelessness that perhaps necessarily arose from the multiplicity of duties to which the attention of a man in such a situation must be directed,—when I see a minister under such circumstances using his influence neither to enrich himself nor those with whom he is by family ties more particularly connected, it is impossible for me not to conclude that this man is disinterested.”

THE GRENVILLE ADMINISTRATION.

The death of Pitt, at the particular crisis in which it took place, was considered a virtual dissolution of the administration. The post of premier was offered to Lord Hawkesbury; but he deemed it too arduous, and chose rather to retire from office with the sinecure of the cinqueports. Lord Sidmouth also declined the task; and his majesty was compelled to repress his personal antipathies, and to seek the aid of Lord Grenville. The new arrangements were completed on the 3rd of February; and the ministry embraced the leading members of two parties, known as the old and new opposition, together with the party led by Lord Sidmouth. The arrangement stood thus:—Lord Grenville, first lord of the treasury; Fox, secretary of state for foreign

affairs; Viscount Sidmouth, lord privy seal; Earl Fitzwilliam, lord resident of the council; Lord Howick, first lord of the admiralty; Earl of Moira, master-general of the ordnance; Earl Spencer, secretary of state for the home department; Windham, secretary for the colonies; Lord Henry Petty, chancellor of the exchequer; Erskine, lord high chancellor; and Lord Minto, president of the board of control. Among the minor appointments, Sheridan obtained that of the treasurer of the navy; Lord Auckland, the presidency of the board of trade; Earl Temple and Lord John Townshend, the joint paymastership of the forces; General Fitzpatrick, the secretaryship of war; and Sir Arthur Pigott and Sir Samuel Romilly, the posts of attorney and solicitor-general. As Lord Grenville's office of auditor of the exchequer was thought incompatible with that of first lord of the treasury, and as his lordship was unwilling to resign that lucrative office, a bill was subsequently brought into parliament empowering him to name a responsible trustee for holding auditorship so long as he should continue premier. Law, who had been created Baron Ellenborough in 1802, was appointed to this place, with a seat in the cabinet; an act which created strong prejudices in the minds of the people at large against the new administration. But his lordship's parliamentary interest was considered essential to the support of the new ministry, and the murmurs of the people were hence not regarded. Such a sweeping ministerial change as this had not taken place for years; all places were swept clean and new men put into them. The administration, however, was made of discordant materials. In it were Grenvillites, Foxites, Wind-hamites, Lansdownites, Addingtonians or Sidmouthites, &c. and this division brought so many expectations, hopes, and pretensions in their several trains, that it was easy to foresee that there would soon be quarrelling, and strife, and splittings among them. They had no general political creed; and their interests, like their theories, lay wide asunder. Moreover, it was soon found that it was on very few questions they could command anything like a respectable majority. They were triumphant, indeed, when it was moved in the lords and commons "that it was highly inexpedient, and tended to weaken the administration of justice, to summon to any committee or assembly of the privy council any of the judges of his majesty's courts of common law," in allusion to the recent appointment of Baron Ellenborough; but beyond this the present motley ministry could only command majorities of the narrowest kind; and sometimes during this session they were even left in a minority. Wearying and worrying debates, and all to little or no purpose, became the order of the day. Sheridan on one occasion, indeed, suggested that ministerial members, distributed in parties of twenty, should go home to rest in the midst of debate, and then come back to rest after they had slept and breakfasted. The house sometimes sat till seven o'clock in the morning, and then separated without having effected anything of importance.

NEGOCIATIONS FOR PEACE.

At the death of Mr. Pitt the state of Europe rendered it difficult for Great Britain to negociate with France for a safe and honourable peace. As Mr. Fox, however, had succeeded to power, there were some who entertained expectations of peace, and he was thought to have undertaken the foreign department with that end in view. France manifestly desired peace; and but a short time elapsed before the government contrived to bring about some negociations, in order to ascertain what terms of peace

the new ministry would be likely to allow. Before ten days elapsed from the appointment of the new administration an agent of that government arrived at Gravesend without a passport, and acquainted Fox by letter, that he had a very important communication to make. Fox sent him a passport, and admitted him to an interview; but indignantly repelled his disclosure, true or false, of a plot to assassinate Napoleon. Fox detained his man in custody, and communicated his designs, if they were really entertained by him, to the French government; and this led to a communication between him and Talleyrand. It appeared, from the negociations which took place, that the greatest obstacle was the determination of Napoleon to obtain Sicily for his brother Joseph, in addition to Naples. Fox, however, had sufficient penetration to discover that he had other ambitious demands to be satisfied, should this be complied with—that he would demand Holland for his brother Louis, etc.; and therefore he determined to break off the negociations, and to continue the war. He made this determination fully known, when he rejected the treaty of Amiens as a basis, and insisted on the Emperor of Russia being admitted as a party. Yet the French Government seem to have considered that England would one day soon consent to peace, even on the hard terms proposed. Negociation was renewed in June, when Lord Yarmouth, who had been released from prison at Fox's intercession, was invited to a conference with Talleyrand. At this interview it was said that the Emperor was willing to restore Hanover, as well as to gratify the British court in other respects, while France asked for nothing. Pleased with this intelligence, the King sent a commission to Lord Yarmouth, but desired him to withhold the communication of his full powers, until it was promised that Sicily should not be alienated from the house of Bourbon. It was replied that Napoleon was anxious to obtain Sicily for his brother Joseph, and would procure the Hanstowns for Ferdinand; but this answer was not deemed satisfactory, and the negociations were still held in abeyance. The Russian Government, at this time, having become acquainted with the negociations in progress, sent an agent to act on Russia's behalf, and to watch proceedings. The arrival of this agent was what the French desired, for they knew that they could soon cause a rupture between England and Russia. In a short time, indeed, through French intrigue, D'Oubril, the Russian agent, suspected the good faith, of Lord Yarmouth, and Lord Yarmouth suspected the good faith of D'Oubril. A quarrel ensued between them, and then Talleyrand raised his demands and abated his proffered concessions. D'Oubril returned to Petersburgh, but Fox still persevered in seeking peace. An accredited agent, in the person of Lord Lauderdale, was now sent over to Paris, and negociations lasted from the 9th of August to the 6th of October; when they were broken off by a demand for passports. France still insisted that Sicily should be given up to Joseph Buonaparte; and this could not be conceded, so the negociations finally failed. About that time Fox died, and the French government attributed publicly the failure of these negociations to his death. But the truth was, Fox had long ago expressed his convictions that peace would be unattainable; and after he had commenced the negociations, he had said in the house of commons:—"My wish, the first wish of my heart, is peace; but such a peace as shall preserve our connexions and influence on the continent, as shall not abate one jot of the national honour,—and such only:" how then could his death have been an obstacle to peace? Fox, with all his faults, had a heart glowing with love for his country, and

he would not have lightly sacrificed her honour and her interest at the shrine of French ambition.

{GEORGE III. 1804—1807}

WINDHAM’S MILITARY PLAN.

On the 3rd of April Windham brought forward a plan for altering the military system, and particularly the mode of recruiting the army. His plan was that the soldier should enlist for a certain term of years; that this term should be divided for the infantry into three periods of seven years each; and for the cavalry and artillery, the first period to be ten years, the second six, and the third live years; and that at the end of each of these periods a man might have a right to claim his discharge, and that his privileges, pensions, etc., should be augmented in proportion to the length of his services. As a preliminary step to the introduction of this bill he moved for a bill to repeal Pitt’s Additional Force bill, which raised a storm of opposition from the friends and admirers of the deceased minister. His views were especially combated by Lord Castlereagh and Mr. Canning; but the repeal bill was finally carried, and then Windham’s plan was adopted: it was introduced and carried as a clause in the Annual Mutiny bill. A bill for the training of a certain number of persons, not exceeding 200,000, out of those that were liable to be drawn for the militia; a bill to suspend the ballot for the militia in England for two years, with a reserved power to government for recurring to it in order to supply the vacancies of any corps which should be reduced below its quota; a bill called the Chelsea Hospital bill, to give security to invalid, disabled, and discharged soldiers, for such pensions as they were entitled to; and a bill for settling the relative rank officers of yeomanry, volunteers, militia forces, and troops of the line, completed Windham’s system, and were all carried, though not without much opposition. An increase was also voted to the pay of sergeants, corporals, privates of the line, to the Chelsea pensions, and to the pensions of officers’ widows: similar benefits were also voted to the navy, and the Greenwich Hospital allowances to out-pensioners were increased.

THE BUDGET.

The budget was opened by Lord Henry Petty on the 28th of March. From his statement it appeared that the unredeemed debt of Great Britain and Ireland was about £566,000,000, of which the annual interest was about £27,500,000. The supplies of England and Ireland for the year were estimated at £62,187,465; and among the ways and means, were a loan of £18,000,000 and an augmentation of the new taxes to £19,500,000, to be effected principally by raising the income-tax from six and a half to ten per cent. The new Chancellor of the Exchequer also imposed a duty of forty shillings a ton on pig-iron; an additional duty on beer and spirits, in Ireland; and a paltry tax on appraisements. The duty on pig-iron and the increase of the income-tax raised a storm of opposition; but they were nevertheless decreed. As the burdens of the people were so increased, it was deemed expedient that some attempt should be made to prevent the misapplication of the money raised from the public. It was proposed by the Chancellor of the Exchequer, that, beside the five

commissioners to whom the task of general investigation had hitherto been confided, particular auditors should be appointed; and though this new arrangement was to cost from £28,000 to £42,000 per annum, his proposition was agreed to. Some slight improvements were likewise made in the acts regulating commercial intercourse between Great Britain and Ireland; and a law was passed for permitting the free interchange of grain of every kind between the two islands. By the burdensome imposts of this year the new ministry obtained much odium, the friends of Pitt taking care to enhance their disgrace in the sight of the nation by ridicule and reproach. Mr. Canning, in particular, assailed them both by his oratory and his pen, impugning even their motives. “All the talents,” as this ministry was called, indeed, stood in no very enviable position in the sight of the country at large.

TRIAL OF LORD MELVILLE.

The trial of Lord Melville commenced in Westminster-hall, on the 29th of April, before the lords, the members of the house of commons being present in a committee of the whole house. Although there were ten charges preferred against him, there were only three in substance. These were:—“That as treasurer of the navy, Lord Melville had applied divers sums of public money to his private use and profit. That he had permitted his paymaster, Trotter, to take large sums of money from the Bank of England, issued to it on account of the treasurer of the navy, and to place it in his own name, with his private banker; and that he had permitted Trotter to apply the money so abstracted to purposes of private emolument, and had himself derived profit therefrom.” Lord Melville pleaded “not guilty” to these charges, and then Whitbread produced his evidence to prove his guilt. In this, however, he failed as regard’s Melville’s personal delinquency. All that was made clear in the course of the trial was that Mr. Trotter had increased his salary by deriving profit from the banking-house of Coutts, on the deposits; and that while Lord Melville had made use of some sums of money, he had nevertheless repaid those sums with interest. The trial lasted sixteen days, and then the lords voted on the several charges, acquitting the accused of every charge. “Henry Viscount Melville,” said the Lord Chancellor to him, “I am to acquaint your lordship, that you are acquitted of the articles of impeachment exhibited against you by the commons, for high crimes and misdemeanours, and of all things contained therein.” Melville made a low bow, and then retired; and the Chancellor having announced that the impeachment was dismissed, the lords and commons retired to their respective chambers. A motion of thanks to the managers was subsequently voted in the commons, and thus this business, which had cost the country some thousands of pounds, ended. This impeachment, however, was not without its moral effects: while the impeachment of Hastings set limits to the exercise of a too arbitrary power in India, that of Melville taught ministers to be more careful of their public accounts at home.

THE SLAVE-TRADE QUESTION.

The glory of this session and this ministry was a blow struck at the slave-trade. A bill was introduced by the attorney-general prohibiting, under a strict penalty, the exportation of slaves from the British colonies, after the 1st of January, 1807. This bill was carried, and then Mr. Fox proposed that, as it was contrary to the principles of

justice, humanity, and sound policy, effectual measures should be taken for putting an end to the slave-trade, in such a manner and at such a period as might be deemed advisable. The mover of this motion remarked:—“If during almost forty years I have enjoyed a seat in parliament, I had been so fortunate as to accomplish this, and this only, I should think I had done enough, and should retire from public life with comfort, and conscious satisfaction that I had clone my duty.” This motion was carried by one hundred and fourteen votes against fifteen; and a similar motion, made by Lord Grenville in the upper house, was adopted by forty-one against twenty. The last step taken on this subject during the present year was a joint address from both houses, beseeching his majesty that he would take measures for obtaining the concurrence of foreign powers, in the abolition of this abominable traffic. That amiable philanthropist, Wilberforce, was delighted at the success of his labours; and he expressed a hope that during next year he and his coadjutors in this noble work would witness the termination of all their toils and anxieties. On the fact that Fox was mainly instrumental in carrying his wishes into effect, he writes:—“How wonderful are the ways of God! Though intimate with Pitt all my life, since earliest manhood, and he most warm for abolition, and really honest, yet now my whole dependence is placed on Fox, to whom this life has been opposed, and on Grenville to whom I have always been rather hostile till of late years, when I heard he was more religious.” It has been assumed, because Pitt did not make this a cabinet question, that he was lukewarm in the cause of abolition; but it is clear if he had done so, he could not have carried it before parliament, and the country were prepared for it. Up to this period the temper of the public mind may be discovered in these noble sentiments of the poet Cowper:—

“Canst thou, and honoured with a Christian name, Buy what is woman born, and feel no shame? Trade in the blood of innocence, and plead Experience as a warrant for the deed? So may the wolf whom famine has made bold, To quit the forest and invade the fold: So may the ruffian, who, with ghostly glide, Dagger in hand, steals close to your bedside; Not he, but his emergence forced the door— He found it inconvenient to be poor. Has God then given its sweetness to the cane— Unless his laws be trampled on—in vain? Built a brave world, which cannot yet subsist, Unless his right to rule it be dismissed? Impudent blasphemy! so Folly pleads, And, avarice being judge, with case succeeds.”

At this time, however, the labours of Wilberforce, Clarkson, and their friends had prepared the majority of the country and of parliament for alleviating the sufferings of the human race; some there were still whose avarice led them to defend the inhuman system of trafficking in the blood, bones, and sinews of man; but the many now saw its iniquity, and were prepared to wipe the foul stain from the annals of England.

PARLIAMENT PROROGUED, ETC.

Various discussions arose during this session, financial and general, respecting the affairs of India. Mr. Paul, with the assistance of Sir Philip Francis, “that adventurous knight” prepared charges against the administration of the Marquis Wellesley; but on the 4th of July he declared that he was not ready to go into these charges, and it was

agreed that this business should stand over till next session. Parliament was prorogued on the 23rd of July.

[Illustration: 321.jpg PORTRAIT OF CHARLES JAMES FOX]

DEATH OF FOX.

This session had been a harassing one to Fox. Canning, bound by the chains of party, assailed him and his colleagues on every measure brought forward, whether excellent or otherwise. Ministers, moreover, were not only harassed by his bitter sarcasms, but also by Percival's legal knowledge, and by Lord Castlereagh's prolixity. These were thorns in their sides; and as this active opposition had rendered Mr. Fox's appearance in his place necessary, it told with great effect upon his constitution at this time: indeed, Fox was dying from the effects of disease augmented by the cares of office, and a laborious attendance on the house; and though this was visible, no mercy was shown him by his opponents. He did not long survive after the session was closed: he died on the 13th of September, and was buried by the side of his great rival, Pitt, in Westminster Abbey. His character as a politician has been seen in previous pages; as a man, he seems to have been loved in life and lamented in his death. Unhappily, however, a large portion of the affection with which he was regarded by his contemporaries, was bestowed on qualities which impaired the dignity of his moral character, and rendered his talents less acceptable to the public. He was what is called "the delight of society;" but his fascinating manners by no means made up for his unsteady principles, and inconsistency of opinion. The death of Fox involved some changes in the ministry. His nephew and pupil, Lord Holland, was brought into the cabinet as privy seal, and Fox was succeeded in the foreign department by his friend Lord Howick. The other ministerial changes were simply these:—Mr. T. Grenville became first lord of the admiralty, instead of Lord Howick; Tierney, president of the board of control, instead of Grenville; and Sidmouth became president of the council, in lieu of Earl Fitzwilliam, who resigned. Lord Holland, therefore, was the only new member brought into the cabinet.

NAVAL SUCCESSES.

The successes of the British fleets during this year were various, and very encouraging to the nation to persevere in the struggle. Operations were, indeed, naval and military, extended to the south of Italy and Sicily, Portugal, the Cape of Good Hope, the East and West Indies, and South America. At the close of the preceding year Admiral Villauruez, accompanied by Joseph Buonaparte, succeeded in escaping from port with eleven sail of the line, and a number of frigates. This fleet subsequently separated: five ships of the line, two frigates, and a corvette steered, under the command of Admiral Le Seigle, for St. Domingo; but they were attacked off Ocoa Bay by Admiral Sir T. Duckworth, and after a furious action three ships struck, while the other two were driven on shore and burnt; the smaller vessels escaped. The other squadron, under Villauruez, steered first to the coast of Brazil, and afterwards to the West Indies: but it was driven from thence by the fury of the elements; and, finally, three ships were destroyed on the American coast, one reached the Havannah, and then escaped into Brest, and a third, which was commanded by

Jerome Buonaparte, was stranded on the coast of Brittany. A third squadron of French ships, under Admiral Linois, had long been carrying on a predatory warfare in the Indian Seas, and the Isle of France had been the grand depot of his plunder; but this year he was overtaken by Sir J. B. Warren, who had been sent in pursuit of Jerome Buonaparte, and after a running fight of three hours the French were compelled to strike. Another squadron of five French frigates and two corvettes was encountered at sea by Sir Samuel Romilly, and four of the frigates were captured; Romilly lost his arm in the action. During this year, also, an expedition was sent, under the command of Sir David Baird, with a naval force commanded by Sir Home Popham, against the Cape of Good Hope, and that country was added to the English possessions; the enemy was compelled to retreat, and the governor-general, Janseus, surrendered, on condition of his forces being conveyed to Holland at the expense of the British government, and not considered as prisoners of war. Finally, in the course of this year, Sir Home Popham undertook an expedition against Buenos Ayres, which he took from the Spaniards: but it was afterwards recaptured; and as Sir Home undertook this enterprise without orders, he was recalled by government and tried by a court-martial, which adjudged him to be severely reprimanded. It is clear, however, that if Popham had been successful he would have been acquitted of all blame; for on hearing that Buenos Ayres was taken, the nation was intoxicated with joy; and it was not till the news arrived that the Spaniards had recaptured it that the voice of censure was heard against him. So fickle is public favour: the man who is held in high estimation to-day, may, by one unfortunate action, become the object of contempt to-morrow.

DISPUTES WITH AMERICA.

At this time disputes, which threatened war, arose between England and America. The Americans complained of impressing British seamen on board their merchant vessels on the high seas; of their violation of their right as neutrals, in seizing and condemning their merchantmen, though engaged in lawful commerce; and of the infringement of their maritime jurisdiction on their own coasts. As an amicable arrangement of these differences was desirable, a special mission was despatched to England, and the disputes were finally settled by an assurance, on the first point, that the right of impression should be exercised with caution, and redress afforded for any act of injustice; and by establishing a rule defining the difference between a continuous and an interrupted voyage to the colonies of the enemy, and stipulating that on re-exportation there should remain, after the drawback, a duty to be paid of one per cent., _ad valorem_, on all European articles, and not less than two per cent, on colonial produce. The maritime jurisdiction of the United States was guaranteed, and some commercial stipulations framed for the reciprocal advantage of the two countries.

AFFAIRS OF SICILY.

It has been seen that Napoleon coveted Sicily for his brother Joseph, and that England would not consent to the overtures made on this subject. This, however, did not prevent him from adding it to his numerous conquests. Whilst yet at Schoenbrunn in December. 1805, Napoleon declared war against Naples; his grand plea being, that

the king of that country had, in contempt of the treaty of neutrality, recently received an English-Russian army landing there with friendship. His decree was, “the royal house of Naples had ceased to reign;” and he immediately sent his troops to put it into execution. The army sent was commanded by Massena and Joseph Buonaparte; and by the month of February, this year, it marched into the capital, and Joseph was appointed by Napoleon hereditary King of Naples and Sicily. The new king was to remain a French prince, and retain his rights of inheritance in France; but this was only a preliminary step to future operations. The two crowns were, however, never to be united upon one head. By the reduction of Gaeta, in July, this revolution was consolidated. Soon after this, a Batavian deputation appeared at Paris, and implored Louis Napoleon for Regent, and that prince was proclaimed King of Holland, upon the same conditions as his brother Joseph, King of Naples. Moreover, Prince Eugene Beauharnois was appointed to the throne of Italy, which kingdom was increased by the incorporation of the rich countries once forming the State of Venice. Finally, Napoleon gave Cleves with Berg, purchased of Bavaria, to Joachim Murat, the husband of his sister, Caroline Annunciade, upon the same conditions as those upon which he had given Naples and Holland to his two brothers.

WAR BETWEEN FRANCE AND PRUSSIA, ETC.

This year Prussia awoke from her fatal blindness. That country resolved upon war with France; and England and Sweden became reconciled with her king, while Russia promised him powerful aid. It was in October that a mutual declaration of war took place, and hostilities commenced immediately. A Prussian army, 120,000 strong, was assembled round Erfurt; but though it was composed of valiant soldiers, it was ill commanded, and, therefore, unfit to meet such a master of war as Napoleon. Two battles were fought at Jena and Auerstadt, by which the Prussian power was overthrown; more than 50,000 men were slain. These battles were followed by the capture of Erfurt, Span-dau, Potsdam, Berlin, Luben, Stettin, Kuestrin, Hameln, Nienburg, and Magdeburg; and by victories over Prince Hohenlohe, near Prenzlow; and over the reserve army of Brucher, towards the lower Elbe. Within six weeks after the battle of Jena, all the country, from the Rhine to the other side of the Oder, with a population of nine millions, fell into the hands of Napoleon. The French troops occupied Brunswick and Hesse Cassel, the Hanseatic cities, and finally Mecklenburg and Oldenburg. North Germany groaned under the scourge of the victor; and South Germany paid him homage, and gave him troops and gold. The houses of Brunswick and Hesse Cassel ceased to reign; the electors were dispossessed. The King of Prussia sought refuge with his Russian ally: his sudden fall was an object of terror and grief. With Prussia, the grand bulwark of Russia fell; Napoleon entertained, indeed, a project of raising up an independent throne on the very frontiers of the northern power. The injured Poles were summoned to insurrection, and an auxiliary army was formed in Prussia-Poland. Hopes of success in this enterprise were well founded, because at this time war broke out, through the intrigues of the French ruler, between Russia and the Porte. Operations followed on the Danube, which caused a powerful diversion of the Russian force, which might otherwise have extended a more efficient aid to the Prussian monarch.

MEETING OF PARLIAMENT.

The new session of parliament was opened by commission, on the 19th of December. The speech dwelt on the calamities of war; the progress of the arms of France; the failure of pacific negociations through the ambition of the French ruler; and the necessity of union, firmness, and courageous endurance in the nation, to meet the peculiar exigencies of the crisis. In the debates on the address, Lord Hawkesbury in the lords, and Mr. Canning in the commons, took a very active part, censuring the actions of the cabinet ever since it had been in office. No amendment, however, was moved in either house, so that the addresses passed without a division. Canning's speech on this occasion, though in some parts it exhibited a show of candour, was, nevertheless, one of unrelenting hostility to the government. Thus, after strongly condemning the policy of breaking with Prussia for Hanover, he remarked: "Prussia, unable to resist France, encroached on us; we had, however, the option to pass over a just cause of complaint, and to leave untouched the only state in Europe which appeared capable of forming the germ of an alliance hostile to the ambitious views of France; but the conduct of ministers was the converse of their policy. By that conduct Prussia had been compelled to act without our advice or assistance, and to plunge into a war, of which, if our advice could not have prevented it, our assistance might at least have meliorated the termination. Would any man of common reflection say, that, for the restoration of Hanover, it was worth while to make war on Prussia? The British government, however, continued at war with her as long as the resources of Prussia were unimpaired, and her strength unexhausted; but as soon as there seemed a prospect of war between Prussia and France, an ambassador was sent to Berlin, with instructions adapted to all possibilities, except that which was most probable; namely, the actual commencement of war: for that no provision had been made. As soon, however, as Lord Morpeth returned, our government began to see their error, and to think that there really was something like war between the two powers, from the trifling circumstance, that the Prussian army was annihilated: and when the Prussian monarchy shall be destroyed, they will perhaps send an army." In equally bitter terms Mr. Canning censured the foreign diplomacy of the country, instancing the case of one minister being at Paris to negociate peace, while another at Berlin was instigating war for the same object. Canning also adverted to the letter which Fox had sent to Talleyrand, observing that the insertion in it, that the British government were beginning a new cause, as illustrated by the transaction alluded to, was false, since the British government had never been stimulators of assassination. The character of Fox was powerfully vindicated by Lord Howick, who endeavoured to prove that the deceased statesman was wholly free from any imputation on his integrity or his political wisdom. Three days after this Lord Grenville presented to the house of lords papers relative to the late negociations with Buonaparte; and on the same day the thanks of both houses were voted to the British officers who had commanded in the plains of Maida, in Calabria, where, though inferior in numbers, they had defeated the French with great slaughter. But, notwithstanding this defeat, as before seen, the French made the conquest of the kingdom of Naples.

CHAPTER XXVII.

{GEORGE III. 1807—1809}

Debate on the negociation with France..... Financial Arrangements..... The Slave-Trade Question..... Bill for Removing the Disabilities of the Roman Catholics..... Dismissal of Ministers..... New Cabinet..... Trial of Strength between the two Parties..... Dissolution of Parliament..... The New Parliament—Campaign of Napoleon..... The Peace of Tilsit..... Expedition to Copenhagen..... Hostilities against Turkey..... Expedition to Egypt..... Disasters in South America..... War with Russia..... French invasion of Portugal..... Milan Decree, &c. Disputes with America..... Meeting of Parliament..... Debates on the Orders in Council..... Financial Measures..... Debate on Ireland..... Motion respecting the Droits of Admiralty, &c. Prorogation of Parliament..... Rising of the Spanish Nation, &c. Affairs of Portugal..... Confederation of France and Russia..... Operations in Spain..... Naval Affairs in the Mediterranean..... State of the Continent.

DEBATE ON THE NEGOCIATION WITH FRANCE.

{A.D. 1807}

The papers which Lord Grenville had laid on the table relative to the negociations with France, were taken into consideration on the 5th of January. In both houses addresses were moved to express to his majesty approbation of his attempts to restore the blessings of peace, and determination to support him in such measures as might yet be necessary, either for the restoration of peace or the prosecution of war. In both houses the motion was carried unanimously, though there were long debates in which the comparative merits or demerits of the late and present ministries were canvassed. All parties, however, agreed that the continuation of war, and that an increase of power and a proper direction to our military forces were necessary. An augmentation of sea and land forces was voted; the total sum devoted to the navy alone being £17,400,337. The number of seamen including marines was 130,000, and the number of men under arms about 300,000; while the volunteers actually armed and regimented nearly amounted to the same.

FINANCIAL ARRANGEMENTS.

On the 29th of January Lord Henry Petty, as chancellor of the exchequer, submitted to the house an estimate of the supplies required for the year, and of the ways and means by which he proposed to meet them. The expenditure was calculated at a grand total of £45,841,340, being £40,527,065 for Great Britain, and £5,314,275 for Ireland. Lord Petty’s plan of finance, in order to meet this expenditure, assumed that the annual produce of the permanent and temporary revenue would continue equal to the produce of the preceding year; keeping these premises in view, Lord Petty proposed that the war-loans for this year and the two next should be £12,000,000 annually; for 1810, £14,000,000, and for the next ten years £16,000,000. These loans were to be made a charge on the war-taxes, which were estimated to

produce £21,000,000 annually, and this charge was to be at the rate of ten per cent, on each loan, five per cent, interest, and the remainder as a sinking-fund, which at compound interest would redeem any sum of capital debt in fourteen years. Lord Petty said that the portion of war-taxes thus liberated successively might, if war continued, become applicable in a revolving series, and be again pledged for new loans. It was material, however, he explained that the property-tax should cease on the sixth of April next, after peace was ratified, and that on the result of the whole measure there would not be any new taxes imposed for the first three years from this time. All that was necessary would be new taxes, of less than £300, 000, on an average of seven years from 1810 to 1816, inclusive. This, he continued, would procure for the country the full benefit of the plan proposed, which plan would be continued for twenty years, during the last ten of which no additional taxes would be required. This plan after repeated discussions was agreed to, and the funds rose so high in consequence, that the chancellor of the exchequer was able to negociate a loan on advantageous terms to the public.

THE SLAVE-TRADE QUESTION.

Wilberforce seems to have placed his main dependence upon Fox, in the great question of the abolition of the slave-trade; but on the death of that minister, Lord Grenville took up the matter with greater zeal than he had manifested. On the 2d of January he introduced a bill for the total abolition of that inhuman traffic, and this bill was read a first time and printed. Counsel was heard at the bar of the house against it on the 4th of February; and next day, after an elaborate speech, Lord Grenville moved the second reading. He was warmly supported by the Duke of Gloucester, the Earl of Selkirk, Lord King, the Earl of Rosslyn, Lord Northesk, the Bishop of Durham, Lord Holland, the Earl of Suffolk, and Lord Moira; and as warmly opposed by the Duke of Clarence, the Earl of Morton, the Earl of Westmoreland, and Lords Sidmouth, Eldon, Hawkesbury, and St. Vincent. On a division, the bill was read a second time by one hundred against thirty-six; and on the 10th of February it was read a third time, and ordered to be sent to the commons for their concurrence. In the commons the reading was moved by Lord Howick; and so great had been the progress of philanthropic sentiments among British legislators that only sixteen ventured to oppose it; two hundred and eighty-three raised their voices in favour of it. The bill was read a third time on the 16th of March, and on the 18th it was carried back to the lords. Some amendments had been made in the commons, and these were assented to by the lords; and on the 25th the bill received the royal assent by commission. The bill enacted that no vessel should clear out for slaves from any port within the British dominions after the 14th of May, 1807; and that no slave should be landed in the colonies after the 1st of March, 1808. Thus this dark spot in the English annals was wiped out, and a noble example was set to the nations around who still trafficked in human flesh. It has, indeed, been justly observed that “almost all the mild and benignant laws, enacted for the benefit and protection of the negro slave, were of subsequent date to the first agitation of the question by the British parliament; and may, therefore, be fairly presumed to have been suggested by that movement.”

“Quick at the call of virtue, freedom, truth, Weak withering age, and strong aspiring youth, Alike the expanding power of pity felt; The coldest, hardest hearts began to melt; From breast to breast the flame of justice glowed— Wide o’er its banks the Nile of mercy flowed; Through all the isle, the gradual waters swelled, Mammon in vain the encircling flood repelled O’erthrown at length, like Pharaoh and his host, His shipwrecked hopes lay scattered round the coast.”

Through the labours of Wilberforce, Clarkson, and other philanthropists, the slave-trade was therefore abolished: it remained for future philanthropists to emancipate those on whose naked limbs the shackles were fastened. On the day after the abolition bill had been carried, Lord Percy moved to bring in a bill for the gradual abolition of slavery in the West Indies. This motion was negatived; but it showed that the subject of their entire freedom would one day or other follow that of the abolition of the slave-trade.

BILL FOR REMOVING THE DISABILITIES OF THE ROMAN CATHOLICS.

With the present administration, the catholic question was made a subject of paramount importance. It was made a matter of discussion in the cabinet; and although, in consequence of Lord Sidmouth’s aversion to the measure, and some interviews held by Lords Grenville and Howick with his majesty, the subject was for a time abandoned, yet about this time it was partially renewed by a bill for allowing promotion in the army and navy to Roman Catholics, as well as to other dissenters from the protestant establishment. This bill which had received the reluctant acquiescence of his majesty, was read a first time on the 5th of March, and was ordered to be read on the twelfth of the same month. In the meantime the king’s sentiments underwent a material change; his coronation-oath would not, he said, allow him to give his royal assent to such a measure. The bill was postponed from the 12th, in consequence of this communication, to the 18th, during which time ministers sought to remove the king’s scruples. This, however, was a task which they were not able to perform, and they were at length compelled to consent to withdraw the bill altogether.

DISMISSAL OF MINISTERS.

The introduction of the bill described above caused a breach between his majesty and his ministers; a breach which admitted of no reparation. Confidence, indeed, between his majesty and his cabinet had never existed; for the king had accepted his ministers, not by choice, but by necessity. This was well known; and it is easy to believe, as some have represented, that his suspicion of them was increased by the whispers of men who were in search of place and power. Secret advisers, it is said, encouraged his majesty’s scruples on the subject of the catholic question, while on the other hand it is asserted that the cabinet sought to impose the bill on his majesty by unfair means. Be this as it may, it led to their dismissal. On the 24th of March, Lord Grenville received a letter from his majesty, directing him and his colleagues to appear at the Queen’s palace on the morrow, at half-past eleven o’clock, for the purpose of delivering up their seals of office. This mandate was obeyed; and “all the talents” ministry was thus dissolved.

NEW CABINET.

Previous to the dismissal of “all the talents” ministry, the king had been engaging successors. Between the 26th and the 31st of March the following appointments were announced:—the Duke of Portland, first lord of the treasury; Lord Hawkesbury, secretary for the home department; Canning, secretary for foreign affairs; Lord Castlereagh, secretary for war and the colonies; the Earl of Chatham, master of the ordnance; Spencer Perceval, chancellor of the exchequer and under-treasurer of the exchequer; Earl Camden, lord-president of the council; Earl Bathurst, president of the board of trade, with George Rose for his vice; and the Earl of Westmoreland, keeper of the privy-seal. Lord Erskine had been permitted to retain the great seal for a week, in order that he might have time to pronounce his decrees on some chancery-suits which had been argued before him; but on the 1st of April, Lord Eldon was appointed, and sworn in in his stead. On the same day the Duke of Richmond was made lord-lieutenant of Ireland; and on the 3rd of April Lord Mulgrave was named first lord of the admiralty, and the honourable Dundas, president of the board of control. The remaining offices were filled up a few days after; and, among other appointments, George Rose became treasurer of the navy. The late ministry seems to have obtained not only the displeasure of his majesty, but of the country, by their introduction of the catholic question into the cabinet. A loud cry of “No popery!” was indeed heard at this time, and when they were dismissed, the public voice applauded his majesty’s decision. Addresses poured in from all quarters, expressive of approbation, the terms of which may be seen from his majesty’s reply to the address of the corporation of the city of London: “I receive with the greatest satisfaction the assurances you give me of your concurrence in those principles which have governed my conduct on the late important occasion. It has ever been my object to secure to all descriptions of my subjects the benefits of religions toleration; and it affords me particular gratification to reflect, that during my reign these advantages have been more generally and extensively engaged than at any former period; but at the same time I never can forget what is clue to the security of the ecclesiastical establishment of my dominions, connected as it is with our civil constitution and with all those blessings which, by the favour of Providence, have hitherto so eminently distinguished us among the nations of the world.”

TRIAL OF STRENGTH BETWEEN THE TWO PARTIES.

On the first meeting of Parliament, after the new appointments, there was a great trial of strength. In the course of negociation with the late ministers, his majesty had been advised to exact a written pledge from them, not only to abandon the catholic question, but never to resume it. His majesty could scarcely have found it necessary to demand of his new ministers such a pledge; yet, on the 9th of April, Mr. Brand moved in the commons, “that it is contrary to the first duties of the confidential servants of the crown to restrain themselves by any pledge, expressed or implied, from offering to the king any advice that the course of circumstances might render necessary for the welfare and security of any part of his majesty’s extensive empire.” As it has been observed, this was a constitutional truism, a principle not to be denied without attacking the constitution itself. As, however, this motion, if carried, would

have been followed by other resolutions, implying a want of confidence in men who had given such advice to his majesty, &c., the new cabinet determined to try their strength on Brand’s first motion. It was warmly supported by Mr. Fawkes, Sir Samuel Romilly, and others; and as warmly opposed by Perceval and Canning. The friends of the late administration were sanguine of success; but the Prince of Wales, having declared that the motion was of a nature which must affect the king personally, the prince’s friends, including Sheridan, absented themselves, so that on a division it was rejected by two hundred and fifty-eight against two hundred and twenty-six. A similar motion was made in the lords, by the Marquis of Stafford; but it was there defeated by a large majority, chiefly through the same means and agencies by which it was lost in the commons. Lord Sidmouth on this occasion spoke and voted against his late colleagues. Moreover, a motion made in the commons, by Mr. Littleton, to express regret at the late change of administration, was defeated by a majority of two hundred and forty-four against ninety, so that ministers were triumphant.

DISSOLUTION OF PARLIAMENT.

Yet, notwithstanding their victory, ministers seem to have considered that they stood on very unsafe ground; for they advised his majesty to dissolve parliament, in order that a general election might take place. Canning had threatened this in opposing Brand’s motion; but it was not supposed that a dissolution would take place before the end of May, and the regular close of the session. On the 27th of April, however, parliament was prorogued by commission, and on the 29th the king dissolved it by royal proclamation. Great efforts were made by both parties at the new general election; but so effectual were the exertions of the ministry,—so potent the cry of “No popery!” and, “The church is in danger!” &c., raised by their partisans, both from the pulpit, by the press, and in society at large, that of all the members of the late cabinet, only Mr. Thomas Grenville resumed his seat in the commons for the place which he had before represented. Bribery, also, did its work effectually on this occasion: boroughs were sold at a price beyond all precedent; Tierney offered £10,000, for two seats, but his offer was refused, as too small for acceptance.

THE NEW PARLIAMENT.

The new parliament was opened on the 22nd of June, and the king’s speech delivered by commission on the 20th of the same month. The result of the elections soon became manifest. An amendment to the address, censuring the late dissolution of parliament, was rejected in the lords by one hundred and sixty against sixty-seven, and in the commons by three hundred and fifty against one hundred and fifty-five. The business transacted by the new ministry during this session was of little importance. A new military plan was introduced by Lord Castlereagh for increasing the regular army from the militia regiments, and supplying the deficiencies so occasioned by a supplementary militia. A bill was also introduced by Sir Arthur Wellesley for suppressing insurrection in Ireland, and another was passed to prevent improper persons from keeping arms. A bill was brought in by Whitbread for the education of the poor, by establishing schools in all the parishes of England. This bill passed the commons, but it was rejected by the lords. An address was carried in the commons, on the motion of Mr. Bankes, praying his majesty not to make any grant of

an office in reversion till six weeks after the commencement of the session. In all these measures ministers had a large majority, and they had a fair prospect of being established in office. Parliament was prorogued on the 14th of August, when the king’s speech, which was again delivered by commission, breathed hope and cheerfulness.

CAMPAIGN OF NAPOLEON.

Although the King of Prussia at the close of the last year seemed to be ruined, yet his spirit was not subdued. When Napoleon advanced in the hope of crushing him, Frederic William was at Memel, and his Russian allies were at Prussian-Eylau, A battle took place at Eylau on the 8th of February, between the Russians and the main body of Napoleon’s army. A fearful slaughter took place on both sides, and neither could claim the victory. The Russians, indeed, still kept their ground, but as they had lost thousands, and there was no prospect of succours, and as Napoleon on the other hand would soon be joined by Bernadotte’s fresh division, Beningsen, the Russian general, thought it prudent on the next day to retreat. Having remained one week at Eylau, Napoleon moved onwards to the river Passarge, his head-quarters being at Osterode. From Osterode he sent offers of peace to the King of Prussia, while at the same time he took measures for recruiting his army and reducing Dantzic. The important city of Dantzic surrendered in May to Léfêbvre, and in the meantime re-enforcements had reached both armies. Then followed the battle of Friedland, in which Napoleon was again victorious; the Russians were utterly defeated, and while thousands fell on the field of battle, thousands more perished in the river Passarge, into which they plunged in order to escape from their pursuing enemies. Konigs-burg now surrendered to the French ruler. Beningsen retreated beyond the Niémen; but the French soon reached that river in the pursuit. The Russians now demanded an armistice, and this was conceded, and preparations made for an interview between the emperors on a raft moored in the middle of the river. There they met and embraced, conversing for a considerable time in sight of their armies on the opposite banks. In the course of their conversation, Alexander having expressed resentment against the British ministry—his reason being that they had departed from Pitt’s system of subsidies—Napoleon replied, “In that case, the conditions of a treaty will be easily settled.” On the following day Alexander crossed the river to Tilsit, where the two emperors where soon on terms of equality and friendship. But not so was the fallen monarch of Prussia: he was treated by his conqueror with harshness and disrespect, and even Alexander became cold in his manners towards his late ally.

THE PEACE OF TILSIT.

A peace was concluded between France and Russia on the 7th of July. The conditions of this peace were various. The King of Prussia was restored to about one half of his dominions as far as the Elbe, but all the Prussian fortresses and sea-port towns were to remain in the hands of the French until England should be compelled to sign a treaty of peace. All the Polish provinces which Frederic William had acquired in the partition of 1772 were disunited from his kingdom, and erected into a separate territory, to be called the Duchy of Warsaw, and were placed under the rule of the King of Saxony, who was to be allowed an open road through the Prussian

province of Silesia. The circle of Cotbuss, also, was taken from Prussia and annexed to Saxony, and Dantzic was to be under the control of both kingdoms, only until a general peace it was to be garrisoned by the French. As a matter of course, the czar was not called upon to make any sacrifice. On the contrary, he was gratified with the cession of a part of Prussian-Poland, which materially strengthened his own frontier. France allowed Russia also to take Finland from Sweden; and Russia on her part engaged to close her ports against British ships, and to place herself at the head of a new northern coalition. Both Russia and Prussia acknowledged the thrones which Napoleon had erected, and recognised the confederation of the Rhine, and every other league which he had formed. Nay, they even sanctioned future spoliation and wrong. They recognised a throne which Buonaparte was about to erect for his brother Jerome—the throne of Westphalia. It was declared that this kingdom should consist of the provinces ceded by the King of Prussia, on the left bank of the Elbe, and of other states at present in the possession of his majesty, the Emperor Napoleon. In return for this courtesy, it was agreed that the relatives or connexions of Alexander, namely, the Dukes of Saxe Cobourg, Oldenburg, Mecklenburg-Schwerin, should be restored to their states, but only upon conditions that their sea-ports should be garrisoned by French soldiers till a treaty of peace should be signed between France and England. By the treaty of Tilsit, Russia agreed to make peace with the Porte, and to abandon Moldavia and Wallachia. Russia, likewise, ceded the Ionian Isles to France, and promised the evacuation of Cattaro, which as well as Ragusa was united with the kingdom of Italy. Although Russia promised to make peace with the Porte, a scheme was concocted for the future dismemberment of the empire, and for the distribution of its spoils to Russia, France, and Austria. Plots were also devised against Sweden and Spain, although the latter country had recently sacrificed its whole navy in Napoleon’s cause, and whose army was still engaged for him in the north. The treaty of Tilsit was, in fact, nothing less than a league, avowed or secret, to enchain the world; most of the European countries were already enslaved, and those that were not were threatened. Even England was menaced; but England was still destined to be the avenger of humiliated thrones.

EXPEDITION TO COPENHAGEN.

The naval force of England during this year maintained its supremacy. It was manifest to all the world, from the terms of the treaty of Tilsit, that Napoleon would, whenever it suited his purpose, occupy Denmark. Nay, it has been seen that a new northern confederation was to be formed, with Alexander the Emperor of Russia at its head. It was determined, therefore, by the British cabinet, that the confederated emperors should be anticipated: an armament of 20,000 men under Lord Cathcart, accompanied by a powerful fleet under Admiral Lord Gambier, was sent against Denmark. Before the expedition commenced operations, a British envoy required that the Danish fleet should be delivered into the hands of the British admiral, under a solemn agreement for its restoration whenever peace should be concluded between England and France. In case of refusal, the prince-royal was informed that the British commanders would proceed to hostilities; and as a direct refusal was given, operations soon commenced. The English army landed on the 16th of August without opposition; and Copenhagen was closely invested on the land side, while the fleet

formed an impenetrable blockade by sea. A proclamation was issued by Lord Cathcart, notifying to the inhabitants of Zealand the motives of the expedition, and the conduct that would be observed towards them, with an assurance, that whenever his Britannic majesty's commands should be complied with hostilities would cease. Copenhagen was bombarded on the 2nd of September, and the firing continued, more or less actively, for four days, when a flag of truce was sent to the British commanders by the commandant of the garrison. A capitulation was settled on the 8th of September, and the British army took possession of the citadel, dock-yards, and batteries; engaging to restore them, and to evacuate Zealand, if possible, within six weeks. All the ships laid up in ordinary were rigged out and fitted by the British Admiral; and at the expiration of the term, they, together with the stores, timber, and other articles of naval equipment found in the arsenal, were conveyed to England. In the whole there were seventeen ships of the line, eight frigates, besides sloops, brigs, schooners, and gun-boats captured by the British admiral. But the most valuable part of the seizure consisted of the masts, spars, timber, sails, cordage, and other naval stores. They were so immense, that, exclusive of the quantity shipped on board of the British and Danish men-of-war, ninety transports brought away full cargoes. The expedition reached the Yarmouth-Roads and the Downs in safety on the 21 st of October.

As soon as the British fleet had passed the Sound, the Danes fitted out a number of small armed vessels, which made successful depredations on the English merchantmen in the Baltic. Soon after a declaration of war followed on the part of the Crown-Prince, being instigated thereto by having a formidable French army near at hand for his aid, and by having an alliance with the Emperor of Russia in perspective. This was followed by an order of reprisals from the British government against the ships, goods, and subjects of Denmark. But even before the capitulation of Copenhagen Vice-admiral T. Macnamara Russell and Captain Lord Falkland captured the small Danish island of Heligoland. All Europe exclaimed loudly against the apparent outrage that had been committed, whence his Britannic majesty ordered a declaration to be published, in justification of the motives which induced this expedition. In this declaration it was stated, "that the king had received positive information of the determination made by the ruler of France to occupy with a military force the territory of Holland, for the purpose of excluding Great Britain from her accustomed channels of continental communication; of inducing or compelling the court of Denmark to close the passage of the Sound against British navigation; and availing himself of the aid of the Danish marine for the invasion of Great Britain and Ireland." Further, that Holstein once occupied, Zealand would be at the mercy of France, and the navy of Denmark at her disposal. Looking on the surface of the matter, the justice of the expedition appears to be of an equivocal nature; but when it is recollected that Denmark would have formed one of the most formidable sections of the projected northern confederation, it must be confessed that it was a justifiable precaution on the part of the British government.

During the month of December the Danish West India islands of St. Thomas, St. John's, and Santa Croce surrendered to a squadron commanded by Sir Alexander Cochrane, and a small military force under General Bowyer. A great many merchant

vessels carrying the Danish flag were also captured.

HOSTILITIES AGAINST TURKEY.

Another armament dispatched by the Grenville administration led to no very honourable result. Towards the end of November, 1806, when our diplomatists at the Ottoman Porte had been circumvented by the French, and had failed in their endeavours to prevent the sultan from engaging in a war with the czar Admiral Louis appeared off Tenedos and the coast of Troy with three line-of-battle ships and four frigates. It was an ancient rule, that no ships of war were to pass either the straits of the Dardanelles or the straits of the Bosphorus; but, nevertheless, Admiral Louis sent a ship of the line and a frigate through the former, and the Turks, wishing to avoid hostilities with the English, let them pass their tremendous batteries without firing at them. They came to anchor off Constantinople, and while there some attempts at negociation were renewed on shore. These negociations, however, were all rendered abortive, partly by the skill of the French envoy, Sebastiani; partly by the lack of ability in our ambassador, Mr. Arbuthnot; partly by the victories that Napoleon was gaining over the Austrians and Russians; and partly by the neutral ground which the Austrian envoy took, and the shuffling and tergiversation of the ministers of Spain and Holland. Evil reports, also, had their effect on the sultan. It was told him that a large English fleet was on its way to the Dardanelles and Constantinople, and that his capital would soon be bombarded. In such an unenviable position did the British envoy stand, that he thought it prudent to take his departure from Turkey. Secret preparations were made for this purpose, and a scheme was also devised for carrying off with him the persons attached to his embassy, and the British merchants settled at Constantinople. After disclosing his project to two or three persons, he requested the captain of the English frigate, “Endymion,” which remained at anchor near the mouth of the Golden-Horn, to invite him, his legation, and the merchants, to a grand dinner on board. All were invited, and all went to partake of the captain’s good cheer, not dreaming that there was anything in the wind beyond a good dinner and a few patriotic toasts. While yet round the festive board, however, Mr. Arbuthnot gravely informed the merchants that they must go with him to England; and it was in vain that they pleaded their wives and numerous families were left on shore: it was answered, the Turks would not hurt their wives and families, and that they must go away with him as they were. The guests lost their appetites by this announcement; and at eight o’clock in the evening the “Endymion” cut her cables, and got under weigh; subsequently joining Admiral Louis’s squadron, off the island of Tenedos. Mr. Arbuthnot now finding himself in safety, wrote to the divan to explain the motives of his sudden departure, and to propose the renewal of negociations. Feyzi Effendi, a Mussulman of high rank, was ordered to open a conference with the British ambassador; and day after day passed in negociations, but all to no purpose. At length, on the 10th of February, Sir John Duckworth arrived off Tenedos, with some more ships of the line and two bomb-vessels; and this force being united to that of Admiral Louis, made up a squadron of eight line-of-battle ships, two frigates, and two bombs. The French envoy, by his agent, M. de Lascours, had endeavoured to impress the necessity of exertion on the mind of the Turkish negociator; but he had a predilection for the English, and would not believe that they would commence

hostilities with the divan. It was not written in the book of destiny that the English should come; and if they did, there were guns enough to sink them all: the expenses which the French recommended, were, in fact, unnecessary: God was great. Nor did the arrival of the squadron of Sir John Duckworth interrupt the conference between the British envoy and the Turkish negociator, or incite him to greater exertion; he still smoked his pipe, and hoped that all things would end well. His confidence was possibly increased by a terrible disaster which befell the “Ajax,” one of Sir J. Duckworth’s squadron. While at anchor off Tenedos, she took fire, and about two hundred and fifty men and women perished in the flames; the rest, including the Captain, Blackwood, escaped by leaping into the sea, where they were picked up by boats sent for their relief.

Sir John Duckworth had orders to force the passage of the Dardanelles, anchor before Constantinople, and bombard the city, unless certain conditions were complied with. The passage of the straits was effected in the midst of a fire from the forts of Sestos and Abydos. At the same time Sir Sidney Smith directed his efforts against a squadron; and a battery, which, if completed, might have defended the Turkish vessels, was stormed by a party of the British. The Turkish squadron and bastion were destroyed, in which enterprise Sir Sidney Smith lost only four men killed and twenty-six wounded. Sir John Duckworth now passed in apparent triumph into the Bosphorus, whence he sent a letter to the Reis Effendi, demanding a declaration of the sultan’s views—whether he was determined to espouse the cause of France, or renew his alliance with England, and second her efforts in opposing the tyranny of Napoleon. The British were again overreached by French subtilty. Sebastiani, the French envoy, inspired the Sultan with confidence, and persuaded him to enter into a negociation, while in the mean time all the approaches to Constantinople should be fortified. All this was done, and when the proposals of the British government were rejected, the wind and current, as Sebastiani had foreseen, prevented the hostile fleet from taking such a position as would enable it effectually to bombard the city. Sir John Duckworth, therefore, was obliged to hasten his departure; and in repassing the Dardanelles, he sustained considerable loss from the fire of the castles. A new enemy was added to the list already in battle array against England. In Turkey, her agents and settlers were exposed to considerable annoyance, and a sequestration of British property to a large amount was promptly executed in various quarters. The fate which awaited the Mussulman negociator was a lamentable one: he was accused of imbecility or treachery; and his head was taken off his shoulders to decorate the niche over the Seraglio gate: he paid dear for his friendly feelings towards the English. So ended the famed expedition to the Hellespont and the Bosphorus. It broke the spell by which the passage of the Dardanelles had for ages been guarded; but beyond this it was little more than a brilliant bravado, followed by a series of humiliating blunders. And yet no investigation was instituted into the causes of the failure, Sir John Duckworth being a favourite admiral of the “all talents” ministry; and subsequently, after their dismissal, he being sheltered from censure by the strife of parties.

{GEORGE III. 1807—1809}

EXPEDITION TO EGYPT.

A still more imbecile expedition was sent by the “all talents,” ministry against Egypt. In the hope of subduing that country, and thus opposing a barrier to the design which Napoleon meditated against our oriental possessions, a force of 5,000 men, under the command of Major-general Mackenzie Fraser, was ordered to invade it. These troops effected a landing on the coast of Alexandria, and a detachment seized and occupied the fort of Aboukir. Alexander also surrendered to the British arms, and its easy conquest induced General Fraser to attempt the reduction of Rosetta. The inhabitants of that town, however, were more courageous than the Alexandrians: every house therein was used as a fortress, whence a constant fire was directed against the assailants. The attempt to take it was a complete failure: the British were obliged to retreat with loss. A second attempt was made with about half the army; but it was fruitless: a retreat again became necessary, and the troops were obliged to fight their way back to Alexandria. General Fraser remained at Alexandria till September, when, finding that its retention was impracticable, he obtained the release of every British prisoner by consenting to evacuate Egypt.

DISASTERS IN SOUTH AMERICA.

It is an old proverb that “misfortunes never come alone.” Thus it was with the expeditions planned by the “all talents” ministry—t was hoped that the reverses in the Mediterranean might be compensated in the South Atlantic Oceans; but this hope was illusive. In October 1806, a re-enforcement had been sent to the Rio de la Plata, under Sir Samuel Auchmuty, who, on arriving at Maldonado, resolved to attack the strong post of Monte Video, the key to the navigation of that river. His efforts were at first successful,—the town and castle with fifty-seven vessels of war and trade were captured. This success, however, was followed by a series of reverses, induced by rashness and misconduct. When intelligence arrived in England of the recapture of Buenos Ayres by the Spaniards, orders were transmitted to General Crauford, who had been sent against Chili with 4,200 men, accompanied by a naval force, under Admiral Murray, to proceed with his army to the river Plate. He reached Monte Video on the 14th of June, where he found General Whitelocke, with a re-enforcement from England of 1,600 men. The chief command of the British forces was entrusted to General Whitelocke, and he had orders to reduce the whole province of Buenos Ayres. A general attack on the town was ordered to be made on the 5th of July, each corps being directed to enter the streets opposite to it, and all with unloaded muskets. No mode of attack could have been so ill-adapted against a town consisting of flat-roofed houses, disposed in regular streets, intersecting each other at right angles. Volleys of grape-shot were poured on our columns in front and flank as they advanced, and they were equally assailed from the house-tops. The service was executed, but it was with the frightful loss of 2,500 men in killed, wounded, and prisoners. Sir Samuel Auchmuty succeeded in making himself master of the Plaza de Toros, where he took eighty-two pieces of cannon, and an immense quantity of ammunition; but General Crauford, with his brigade, and Lieutenant Colonel Duff, with a detachment under his command, were obliged to surrender. Surrounded with foes, General Whitelocke, who had arrogantly refused to treat before the attack, now

consented to a negociation with the Spanish commandant; and he not only agreed to evacuate the town, on condition of recovering his own prisoners, and those taken from General Beresford, but to give up Monte Video, with every other place on the Rio de la Plata held by British troops, within the space of two months. The result of this expedition brought General Whitelocke before a court-martial, and he was sentenced to be cashiered for lack of zeal, judgment, and personal exertion. Against the ill-success of these expeditions, the solitary capture of the Dutch colony of Curacoa only can be recorded: this island surrendered, on the 1st of January, to a squadron of our frigates under Commodore Brisbane.

WAR WITH RUSSIA.

The Emperor of Russia strongly resented the conduct of England towards Denmark; and as the treaty of Tilsit had tended to relax the bond of union between England and Russia, it was feared that Alexander might soon combine against that power with which he had so long co-operated. These fears were soon realized. A manifesto soon issued from the imperial palace of Petersburgh, in which this country was not only accused of provoking a war by the enterprise against Denmark, but as "cooly contemplating a bloody war, which had been kindled at her will, while she sent troops to attack Buenos Ayres; and as despatching from Sicily another army, which appeared destined to make a diversion in Italy, to the African coast, for the purpose of seizing and appropriating Egypt to herself." This declaration was followed by a spirited reply on the part of the British government, by the British ambassador's leaving Petersburgh, and by a grant of letters of marque and reprisals against Russian vessels. The Emperor of Russia now issued a declaration of war against England, and proclaimed anew the principles of the armed neutrality, and engaged that there should be no peace between Russia and England until satisfaction should have been given to Denmark. Such were his pretexts for declaring war against his late powerful ally; but it is clear from the treaty of Tilsit, that war was in his heart before England had committed the aggressions, if aggressions they were, of which he so loudly complained. Moreover, had English subsidies still been forthcoming, Alexander had yet been the friend of King George.

FRENCH INVASION OF PORTUGAL.

Napoleon was equally clamorous against England as was Alexander for her conduct towards Denmark. While, however, he was making Europe ring with his maledictions against her, for violating the neutrality of Denmark, he was devising schemes and giving positive orders for falling upon Portugal in a time of peace. On the 27th of October it was agreed between France and Spain—That Spain should grant a free passage through her territories, and supply with provisions a French army to invade Portugal; that she should also furnish a body of troops to co-operate with the said French army; and that as soon as the conquest should be completed, the provinces which now composed the kingdom of Portugal should be divided between the King of Etruria, the King of Spain's grandson, and Manuel Godoy, who was the Queen of Spain's infamous favourite. Thus the province of Jutra Douro, and Minho, with the city of Oporto, was to fall to the lot of the King of Etruria, and was to be erected into a kingdom, under the name of Northern Lusitania; and the sovereignty of

the Alentejo and Algarves was to be given to Godoy, who was to assume the title of the Sovereign Prince of the Algarves. These two principalities were to own the King of Spain as their protector; but France was to keep the city of Lisbon, and the provinces of Tras-os-Montes, Beira, and Estremadura until the period of a general peace. In consideration of obtaining this new kingdom, the Queen of Etruria, acting as regent for her son, was to abdicate and give to Napoleon those districts in Italy which he had previously annexed to the King of Etruria's kingdom. This treaty was not signed, as before seen, until the 27th of October; but nine days before this a French army had crossed the Bidaso, and had commenced its march through Spain for the Portuguese frontier. This army was commanded by Junot; and on the 26th of November that commander advanced to Abrantes, within three days' march from Lisbon. The Moniteur had already announced that "the house of Braganza had ceased to reign;" and as if to fulfil this imperial edict, the royal family embarked on board a British fleet and set sail for the Brazils, leaving the country in the hands of the enemy. In the whole, about 18,000 Portuguese abandoned their homes and their country with their sovereign. They were accompanied a part of their voyage by a strong British squadron, under the command of Admiral Sir Sidney Smith; and when that commander left them, he returned to blockade the Tagus. Junot's first measure was, on entering Lisbon, to disarm the inhabitants: and this done he commenced the levy of contributions. In every respect he treated the country as a conquest of France, and his Spanish auxiliaries followed the example of his rapacity. The Portuguese, indeed, were so oppressed by the French and Spanish, that they everywhere cherished the intention of rising upon the invaders, and they looked to England, whose flag was never out of sight of their coasts, for aid in their extremity.

MILAN DECREE, ETC.

The British order in council of the 7th of January, prohibiting neutrals from trading to any port in the possession or under the control of the enemy not being efficient, additional orders were issued, on the 11th of November, declaring every port from which England was excluded to be in a state of blockade, and all trade in its produce illegal, and liable therefore to be captured. The Americans were allowed still to trade with the enemy's colonies for articles of their own consumption; but the double restriction was imposed on their intercourse between France and her colonies, of calling at a British port and paying a British duty. To avoid the losses and hostilities apprehended from the measures of the two great belligerent powers, the British council likewise laid a strict embargo on all American vessels, by which they were prohibited from leaving their ports, while the ships of all other nations were ordered to quit the harbours of the United States, with or without cargoes, so soon as they should receive notification of the act. These directions were responded to by Napoleon, by his celebrated Milan decree, which enacted "that all vessels entering a port of France after having touched England should be seized and confiscated, with their cargoes, without exception or distinction." This decree was succeeded by another on the 19th of December, which had more explicit reference to our late orders in council, and which declared "that every neutral which submitted to be searched by an English ship, or which paid any duty to the British Government, should, in consequence, become liable to seizure, as a lawful prize, by French ships of

war.” Neutral powers, as it has been observed, were thus placed between two fires: if they entered a French port without paying a duty on their cargoes in England, they were subjected to capture by British cruizers; and if they touched at England for that purpose, they became subject to confiscation in the ports of France. The system, however, which Napoleon had adopted towards British commerce, and which gave rise to these perplexities among nations, was the means by which he was hurled from his throne.

DISPUTES WITH AMERICA.

The orders in council described above gave rise to much irritation in the United States. Another unfortunate subject of dispute also rose between the two countries: an American vessel was seized by Captain Humphries, because the commandant refused to admit a search for some deserters which were supposed to be on board. In consequence of this a proclamation was issued by the president, ordering all British ships of war to quit the harbours of the United States. Satisfaction for the outrage was demanded of Great Britain; and although the British ministry expressed their readiness to make reparation for the act of unauthorized aggression which had been committed; disavowed the conduct of Admiral Berkley, under whose orders Captain Humphries had acted; and sent a special envoy to America, with overtures of conciliation, as will be seen in a future page, the breach was not healed.

MEETING OF PARLIAMENT.

{A.D. 1808}

Parliament met on the 31st of January, when the speech, which was delivered by commission, dwelt at great length upon foreign affairs, and mentioned nearly every country in Europe as in a state of hostility to England. Some light was thrown by it upon the system conceived by Napoleon for uniting all the navies of Europe against us: it was shown that he had counted upon obtaining the fleets of Portugal and Denmark; and regret was expressed that, in the latter case, we had been compelled to resort to force. The Hostility of Russia was attributed to the military successes and machinations of France. Allusion was made to the differences existing between England and the United States of America. Greater exertions were inculcated, and the determination was announced of never yielding to pretensions inconsistent with the maritime rights of Great Britain. Commerce, notwithstanding Napoleon’s Berlin and Milan decrees, was still in a flourishing state; for the produce of the taxes and duties was considered to demand his majesty’s congratulation to parliament. The speech concluded with asserting that the sole object of the war was to attain a lasting and honourable peace; that there never was a more just and national war waged than the present; that the eyes of all Europe and the world were fixed upon the British parliament; that his majesty felt confident that they would display the characteristic spirit of the British nation, and boldly face the combination which had gathered around us; and that his majesty was firmly persuaded that, under the blessings of Providence, Great Britain would ultimately triumph. The addresses were carried in both houses without a division.

The attention of parliament was early called to the expedition to Copenhagen; which was, by a large party, both in parliament and the kingdom at large, considered a disgrace to the administration from whom the plan emanated. The act was chiefly defended on the plea of necessity, arising from the powerful combination of European states formed against us after the treaty of Tilsit. Several motions were made on this subject by opposition; but in every instance they were outvoted by immense majorities. In these debates Mr. Canning was the great champion of the ministry; and his eloquence was such that he bore away the palm from every competitor, and carried conviction to every unprejudiced and candid mind. It has been well remarked, "A capital part of the case reduced itself simply to this:—if we did not make sure of the Danish fleet, Buonaparte was sure to get it, a little sooner or later. The justification adopted by our government may be explained with almost equal brevity: a man knows that his next-door neighbour has in his possession a large barrel of gunpowder; he may believe that his neighbour will not set fire to this powder so as to endanger his house and property, but he knows that there is an evil-disposed person living over the way, who has a design upon the powder, and the intention of blowing up his house with it; and knowing at the same time that the owner of the powder cannot defend it or keep it out of the way of the evil-disposed person, he demands that it should be put into his hands, which are strong enough to keep it, and which can put it beyond the reach of the evil-disposed party; offering to restore it when the danger shall be passed, or to pay the price of it: and when the weak neighbour rejects this proposition, he takes the powder by force, to prevent its being seized and employed against his own house and property." Just so it was in the matter of Denmark. That country had a powerful navy which she would not have used against England herself, but Napoleon wanted it for that purpose; and to prevent his designs, England demanded it for a time till the danger was over; and this being refused, seized it _sans cérémonie_. It was the law of self-preservation which dictated this act of our government; and Grotius, a great writer on the law of nations, has remarked:—"I may, without considering whether it is merited or not, take possession of that which belongs to another man, if I have any reason to apprehend any evil to myself from his holding it. I cannot make myself master or proprietor of it, the property having nothing to do with the end which I propose; but I can keep possession of the thing seized till my safety be sufficiently provided for." The instinct of duty and self-preservation suggests this course. And thus it was that our government was induced to seize the navy of Denmark. And it was seized without any declaration of war on our part, for the simple reason that dispatch was necessary. If we had delayed, the Danish fleet would soon have been in the hands of the enemy; hence his maledictions against what he termed our "aggressions:" we had anticipated him, and he was mortified with the bitter disappointment he thereby sustained.

DEBATES ON THE ORDERS IN COUNCIL.

On the 5th of February Mr. Perceval, the chancellor of the exchequer, moved that the orders in council should be referred to the committee of ways and means. The opposition took this opportunity of declaring that we ought not to retaliate by such measures; that these orders were unjust, and would do as much mischief as the Berlin and Milan decrees; that they were as contrary to justice as to policy; and that

they went to violate both the law of nations and the municipal law of England. On the other hand it was argued, that we had a right to retaliate upon the enemy his own measures; that if he declared we should have no trade, we had equal right to declare he should have none; and that if he proclaimed British manufactures and colonial produce good prize, we were justified in doing the same with respect to France. This was inculcating the old worldy maxim of “an eye for an eye and a tooth for a tooth;” and ministers were supported in their line of policy by a large majority. Subsequently, a bill, brought in by the chancellor of the exchequer, for regulating the orders in council, as they affected neutrals, was carried through both houses. This had reference to the differences between England and America; and it was followed by a bill for regulating commercial intercourse with the United States, which was intended to give time for making some amicable arrangements with the Americans; continuing at the same time another act without which trade could not have been carried on with England in American vessels.

FINANCIAL MEASURES.

In opening the budget for this year the chancellor of the exchequer stated the amount of supplies at about £43,000,000 for England, and £5,700,000 for Ireland. The produce of the war-taxes was estimated at £20,000,000, and among the ways and means was a loan of £8,000,000, and more than £300,000 additional taxes. As Portugal was occupied, Sicily threatened, and Sweden brought to the brink of ruin by its alliance with England, an increase of soldiers and sailors was demanded. The number of seamen voted for the year was 130,000; and the total number of soldiers, cavalry and infantry, was 300,000. All the corps were represented as being in a higher state of discipline than heretofore; and although 24,000 men had been drafted from the militia into the regular army, it was stated that it was nearer to its establishment than it had been last year. On the motion of Lord Castlereagh a bill was introduced for establishing a local militia of 200,000 men, to be trained for twenty-eight days every year; and this bill, which passed into a law, extended to Scotland. Lord Castlereagh moved, likewise, for the insertion of a clause in the mutiny bill, to permit soldiers to enlist for life; and this was carried in spite of the stern opposition of Windham, whose system it affected. Early in the session Mr. Bankes reproduced his bill for preventing the grant of offices in reversion, or for joint lives with benefit of survivorship; but though it passed the commons, it was rejected by the lords. Subsequently he brought forward a new bill, limited to one year’s duration, which passed into a law.

DEBATE ON IRELAND.

In the course of this session there was a vehement debate on Ireland. The late ministry and their friends attributed the disaffection which still prevailed in that unhappy country to the coercive policy of the present administration. The appointment of Dr. Duigenau, to a seat in the privy-council, which took place about this time, was considered as a wanton insult to the feelings of the Irish people; and as Mr. Canning was mainly instrumental in making that appointment, he was unsparingly condemned for the act. Mr. Tierney asked how ministers could suppose, that in recommending such an appointment, they were cherishing that unity and

harmony which it appeared to be his majesty's earnest desire to cultivate. It was the boast of Mr. Canning, he said, to be the representative of Mr. Pitt's opinions; but, he would venture to say, that if Mr. Pitt were living, he would be ashamed of such an appointment; and that he never would have lent himself to the contemptible system of irritation which the present administration seemed to have adopted. This debate took place on the presentation of the Roman Catholic petition, on which occasion ministers were anxious to elude the question. Opposition, however, not only pressed it upon them in this debate, but also in others, when it was wholly out of place; going occasionally to some unjustifiable lengths, in the way of assertion. Thus Lord Hawkesbury affirmed, that ministers and the country had learned from the disaffected in Ireland, that there were secret engagements in the treaty of Tilsit, which secret engagements he declared in his speech. All the powers of Europe, he said, were to be confederated to engage or seize on the fleets of Denmark and Portugal; and then Ireland was to be attacked from two points, i.e. from Lisbon and Copenhagen. This ministers, he added, had learned from the disaffected in Ireland, and they had never yet found the information of these parties false!

MOTION RESPECTING THE DROITS OF ADMIRALTY, ETC.

Sir Francis Burdett, considering that the proceeds from the droits of admiralty were so large as to become dangerous to public liberty, moved, with a view to ulterior inquiry, that an account of the net proceeds paid out of the court of admiralty since the 1st of January, 1793, with the balances now remaining, be laid before the house, which motion was agreed to. This year witnessed a diminution of rigour in our criminal code. Sir Samuel Romilly introduced a bill to repeal so much of an act of Elizabeth as tended to take away the benefit of the clergy from offenders convicted of stealing privately from the person. A clause was introduced by the solicitor-general, providing that the act, instead of being punished by death, should be punished by transportation for life, or for a term of years, according to the discretion of the judge. During this session a bill was also passed for the better administration of justice in Scotland; its object being to divide the court of session into two chambers of seven or eight judges; to give those courts certain powers for making regulations with respect to proceedings, and to executions in pending appeals, and also for issuing commissions to ascertain those cases in which it might be proper to establish a trial by jury. In the course of this session the charges against the Indian administration of the Marquess Wellesley were fully disposed of by his full and entire acquittal. Sir John Anstruther's motion, that the noble marquess had been actuated by an ardent zeal for the service of his country, and by an ardent desire to promote the interests, safety, and prosperity of the British empire, was carried by one hundred and eighty-nine against twenty-nine. Subsequently a vote of thanks was given to the noble marquess for his services in the Copenhagen expedition; and in communicating this, the speaker of the house of commons dilated on his Indian exploits, and pointed him out as the officer best fitted to command in chief a great expedition. While parliament was sitting, a grand movement had begun in Spain against the French nation; and Sheridan called the attention of the house to this subject, and demanded its exertions in favour of the Spanish cause. But ministers seemed to think, that though they fully sympathized with the patriots who had taken up arms in that country, the time had

not arrived for the interference of England.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by commission on the 4th of July. By this time ministers had become convinced that it was their duty to aid the Spaniards in their struggle against Napoleon; for the commissioners stated, in his majesty's name, that the Spanish nation must now be considered as the ally of Great Britain, and that it was his majesty's intention to make every exertion in his power for the support of their cause.

RISING OF THE SPANISH NATION, ETC.

It has been seen that a compact had been entered into between Napoleon and the Spanish court for a division of Portugal, when the conquest of that country should be made. Napoleon, however, never intended that Spain should share in the spoils of his conquests. Contrary to the treaty, the Spaniards were almost wholly excluded from the occupation of the country; and added to this, French troops suddenly marched by different routes into the very heart of the Spanish kingdom. The Spaniards saw their soil in the hands of a foreigner, and their proud hearts beat high with indignation at the outrage committed. Godoy, the "Prince of Peace," saw that he had been overreached, and that his empire, as well as that of his master, was at an end. He advised the royal family to take refuge in flight; but the people seeing that this was determined upon, resolved upon a desperate resistance. One voice alone was heard throughout the provinces, and that one voice loudly accused Godoy of imbecility or treason. A terrible sedition broke out at Aranguez, in March of the present year. Summoned to arms by Ferdinand, the Prince of Austria, an avowed foe to Godoy, the whole population rose, stormed the palace in which the favourite dwelt, abused him, and would have murdered him, but for the intercession of the queen. Covered with wounds, he was, however, conducted to prison, and then they compelled the king to resign, and placed the sceptre of power in the hands of his son Ferdinand, who had incited the revolt. Ferdinand entered Madrid in the character of King of the two Spains; but the French troops, under Murat, entered that city on the next day, and the newly-created king soon discovered who was to be master. Murat refused to acknowledge the Prince of Austria as king, and announced the near arrival of Napoleon in Madrid. He was advised to go to meet Napoleon, in order to secure his favour; but when he met him at Bayonne, he was informed that the French emperor's determination was to remove the Bourbon house from the Spanish throne. He was compelled to declare the unconditional restoration of the crown to his father, who was called to Bayonne for the purpose of receiving it; and then the old monarch ceded to Napoleon by treaty all his rights to the throne of Spain and India, with the single condition, that the prince whom the emperor intended to place thereon should be independent, and that the Roman Catholic religion should continue to be the only religion in Spain. The king, the queen the royal family, and Godoy received in return an assured abode in France, with certain pensions; and the whole court went immediately to the castle of Compeigne, which the conqueror allotted them. Napoleon now gave the throne of Spain to his brother Joseph, who reigned at Naples, giving the latter throne to Joachim Murat, Grand Duke of Bergand Cleves. The

members of the national junta were now convoked to Bayonne from all parts of the kingdom, and anew constitution was formed, after which Joseph set out for his kingdom in Spain. Napoleon thought his work consummated; but events proved that it was only now commenced. The royal house of the Bourbons had vanished, but the nation still lived. The news of what had passed at Bayonne filled all Spain with fury: the national pride revolted against the yoke of the foreigner, and a contest was roused, the flames of which raged over all the provinces of the kingdom. In the very day that Napoleon declared his brother King of Spain, the junta of Seville proclaimed war against the oppressor; and on the day of the entrance of King-Joseph into Madrid, the French were repulsed from Saragossa, and compelled to lay down their arms at Baylen, to the number of 26,000 men. So furious was the storm of war which Napoleon had thus called up throughout the whole country, that his brother Joseph was obliged to quit Madrid one week after his entry therein. In every part the population rose to arms and massacred the French: the very clergy aiding the people and the army to root them from their soil. From this time for six long years Spain fought against the formidable forces of the world’s tyrant; and, as will be seen in a future page, she came off victorious. At the very first onset, indeed, by the capitulation at Baylen, the charm of French invincibility was broken, and the star of Napoleon was covered with an opaque cloud. It was this battle, fought in July, which induced England to assist the Spaniards. Money, arms, munitions of every sort, and troops were sent to both Spain and Portugal; and, as regards the latter country, their power was soon rendered effective.

{GEORGE III. 1807—1809}

AFFAIRS OF PORTUGAL. CONFEDERATION OF FRANCE AND RUSSIA.

Upon receiving the intelligence of these reverses, Napoleon assembled a far more powerful army, and resolved to crush the insurrection of Spain at least in person. Other dangers, however, awaited him. Alarmed at the treaty of Tilsit, and invigorated by its consequences, Austria had increased her regular force, and organized a militia; and the French reverses in Spain and Portugal gave a new impulse to her evident preparations for war. Napoleon saw this with alarm, and he resolved at once to menace and insult that country, by arranging the co-operation of Russia and the confederated states of the Rhine against the Emperor of Austria, should he attempt to take advantage of the Spanish war. A meeting between Napoleon and Alexander of Russia took place at Erfurt in September and October; and although the sovereigns of the confederation of the Rhine were permitted to pay their court there, Austria was excluded as a secondary power. Thus insulted afresh, the Emperor of Austria resolved in the course of the next year to renew the struggle with France, though he should find himself opposed to Russia likewise. A mysterious veil covered for a time the transactions of Erfurt; but what transpired in relation to them and what ensued justified the conjecture that they confirmed the conventions of the treaty of Tilsit; and that the new dynasty in Spain was acknowledged by Russia for permitting her to aggrandize herself in the north and the east. From Erfurt the two emperors directed a common proposal of peace to the King of England, accompanied by the declaration,

that this step was the consequence of the most intimate connexion of the two greatest monarchs of the continent for war as well as for peace; but this proposal was without effect. They were answered that, however desirous both the government and the people might be to put an end to the miseries of war, they were prepared to endure any extremity before they sacrificed the interest of their allies by negociating a separate peace, and leaving Sicily, Sweden, Portugal, and Spain to the tender mercies of Napoleoa. “The hideous presence of the British leopards” was still to prove a terror to Frenchmen.

OPERATIONS IN SPAIN.

Having strengthened his alliance with the Emperor of Russia, Napoleon recalled his legions from the banks of the Niémen, the Spree, the Elbe, and the Danube, in order to reduce Spain. Placing himself at the head of them, he crossed the Pyrenees early in November, and the battles of Burgos, Espinosa, and Tudela, fought under his auspices, once more placed his brother Joseph on the throne of Spain. Napoleon, accompanied by Joseph, again occupied Madrid; and he now sought to appease the fury of its inhabitants and of the people in the provinces by conciliatory measures. The promises made to the Spanish people were ample; but he spoke to men who had no ears for his offers, On every hand the population flew to arms, and all vowed to drive him from their land. Even conflicting parties agreed to shake off their natural enmity to each other, in order to effect this triumph. A guerilla warfare was now pursued: agile bands of men appeared, and having cut off some of their enemies, retired with equal rapidity. In the meantime a British army, under General Moore, was marching to their aid from Portugal. When this army had arrived at Salamanca, however, the Spaniards had already experienced successive defeats, so that when Napoleon advanced against him, General Moore deemed it prudent to retreat. The French emperor expressed his joy aloud at seeing the “British leopards” fly before him; but while pursuing them he received fresh accounts of the preparation of Austria, and suddenly turning his horse, he returned to Burgos, and from thence hurried to Paris. Soult was left to combat with the English; and that general, overtaking them at Corunna, was defeated by them, though inferior in numbers. The greatest loss on the side of the English was that of their commander, Sir John Moore, who was mortally wounded by a cannon-ball. So great was the bravery displayed by General Moore on this occasion, that his very antagonists erected a monument to his memory. After his death the command of the army devolved on Sir John Hope, who pursued a plan devised by General Moore, that of embarkation during the night, and who carried this plan into effect with complete success. The British quitted Spain in January, 1800, leaving the Spaniards to struggle with the French by their own prowess.

The flame of patriotism enkindled in Spain soon spread to Portugal. The Portuguese arose against Junofc, and they were quickly aided in their struggle by the English. A small army, collected for a distant enterprise, was ordered thither, under the command of Sir Arthur Wellesley. This army landed in August at the mouth of the river Mondego, north of Lisbon; and soon after Sir Arthur defeated the French forces, under de la Borde, at Rohia, and the main army, under Junot, at Vimiera. The result of

this last victory was the capitulation of Cintra, in virtue of which Junot's army was conveyed to France upon English vessels; and all Portugal was left in the power of the British. From this time the English had a firm, foundation for their campaigns in the Peninsula. Subsequently a Russian fleet of nine ships of the line, which lay in the Tagus, under Admiral Siniavin, surrendered by convention: it was to be held with all its stores by England as a deposit, till six months after the conclusion of a peace; the admiral, officers, and seamen being sent to Russia at the expense of England. After the evacuation of Portugal by the French troops, a regency was established; which, by restoring comparative tranquillity, taught the people to estimate the advantages they had obtained from their British allies. It was not long, indeed, before the Portuguese, laying aside their characteristic pride and vain boasting, clung to their ancient protectors, and submitted to their direction with a docility and patience that produced the happiest result.

NAVAL AFFAIRS IN THE MEDITERRANEAN.

Napoleon had not yet abandoned all hopes of assistance from his navy, or relinquished the fond wish he had entertained of diminishing the power of the British on the sea. Nay, he had recently declared that a true Frenchman could not rest till the sea was open and free. This year he had collected a large squadron at Toulon, to co-operate with his troops on the side of Calabria, in an attack on Sicily. Possessed of that island, he would have been able to injure our commerce effectually; and in order, therefore, to counteract his views, measures were taken to fortify that part of the Sicilian coast where a landing could be effected; while Lord Collingwood blockaded the port of Toulon as closely as he could consistently with his efforts to second the Spanish patriots in their noble cause, which double duty was imposed upon him by the British Government. A considerable French fleet, stationed at Cadiz, surrendered in June to that people who had experienced so many insults and injuries from its flag. Collingwood wished these men-of-war to join his squadron, for the purpose of intercepting any French fleet that might be sent against the Spanish dominions in South America; but the supreme junta of Seville, instead of complying with his request, began to dismantle them. A want of confidence in the British government, and an overweening trust in their own internal resources, notwithstanding the serious reverses they had recently met with; still pervaded the Spanish nation.

STATE OF THE CONTINENT.

During this year the Russian autocrat and the Emperor Napoleon pursued that system of aggrandizement, which they had contemplated in making the treaty of Tilsit. In February a Russian army entered Finland, which province had always been an object of cupidity to the court of St, Petersburgh, and on the accession of Frederic VI. to the crown of Denmark, that monarch declared war against Sweden. After several bloody battles, the fate of Gustavus Adolphus appeared inevitable; when, to avoid falling under the yoke of Russia, he entered into a convention which virtually left the granary of Sweden in the hands of his conqueror.

This year Napoleon affected great changes in the affairs of Italy. Having adopted his son-in-law, Eugene Beauharnois, as his own son, he settled that kingdom upon

him in tail male, and incorporated with the legations of Ancona, Urbino, Macerata, and Camerino, which were the pope's dominions; stating in a decree as the sole reason for this act of undisguised despotism, "that the sovereign of Rome had refused to make war against England." Parma, Placentia, and Guastalla, were also annexed to the kingdom of Italy, as were Kehl, Wesel, Cassel, and Flushing to France. To complete his domestic policy, Napoleon now instituted an hereditary nobility; princes, dukes, counts, barons, and knights of the empire sprung up like mushrooms on every hand, in order to ennoble his newly created empire. Napoleon likewise instituted an imperial university; but his school was rather calculated to train up agents of imperial despotism, than men of learning and enlightened minds. As the sworn enemy of liberty, he declared himself the head of this university, and decreed that all schools or seminaries should be under its control.

CHAPTER XXVIII.

{GEORGE III. 1809—1812}

Meeting of Parliament..... The Supplies, &c. Charges against the Duke of York..... Parliamentary Corruption..... Motion for Reform..... Prorogation of Parliament..... Affairs of Spain..... Further Operations in Spain..... Campaign of Napoleon in Italy..... British Expedition against Naples and Walcheren..... Dissensions in the Cabinet..... Meeting of Parliament..... Debate on the Walcheren Expedition..... Proceedings against Sir Francis Burdett..... The Supplies..... The Slave-Trade Question..... Petition of the Irish Catholics. &c. Prorogation of Parliament &c. . Campaign in Portugal..... Affairs of Spain..... Foreign Conquests, &c. The Marriage of Napoleon, &c. Illness of His Majesty: Opening of Parliament, &c. Opening of Parliament by the Regent..... Debate on the Re-appointment of the Duke of York to the War-office..... The Supplies..... The Bullion Committee, &c. Subject of Military Discipline..... Lord Sidmouth's Motion respecting Dissenting Preachers..... Affairs of the Irish Catholics..... Amendment of the Criminal law..... . Prorogation of Parliament..... Disputes with America..... Capture of Java..... Affairs of Portugal..... Affairs of Spain; Capture of Badajoz, &c. Naval Affairs..... Affairs of France.

MEETING OF PARLIAMENT.

{A.D. 1809}

Parliament was opened by commission on the 19th of January. The royal speech stated his majesty's reasons for rejecting the proposals made for a negociation with France and Russia, and spoke of the perseverance of the Spaniards in the cause of their legitimate monarchy and national independence, which would induce his majesty to support them so long as they should prove true to themselves. Satisfaction was expressed at the liberation of Portugal; a continuance of aid to the King of Sweden was recommended; and a speedy augmentation of our regular army inculcated. The addresses were voted without a division, but opposition at the same time were not wholly silent. They seem indeed to have hoped that the misfortunes in

Spain, and some mistakes which had been made in the Portuguese convention, would lead to the dissolution of the cabinet. A motion, however, moved in the Commons by Lord Petty, for directly censuring the convention in Portugal, and for attributing the whole blame of it to government, was negatived by two hundred and eight against one hundred and fifty-eight. A motion also, made by Mr. Ponsonby, for an inquiry into the conduct of the late campaign in Spain, was rejected by two hundred and twenty against one hundred and twenty-seven. In reviewing the principal incidents connected with this campaign, Mr. Ponsonby drew no very favourable picture of the capacity and judgment of the cabinet. He remarked:—"With so many opportunities and resources at command, they had instituted no proper inquiry into the state of the Peninsula, the bent of the public mind, the inclinations of the higher ranks, the views of the middle classes, and the probability that effective resistance would be made to a vigorous and mighty foe. Extraordinary indecision and unnecessary delays had injured the cause which the king pretended to support. Several Spanish armies were routed before the British troops were prepared to act, and when they became engaged in the contest, they were in danger of total ruin." The character of Sir John Moore, however, does not seem to have been called into question by any member of opposition. Almost his last words were, "I hope the country will do me justice;" and the general feeling of the public mind from that day to this is, that he exhibited great skill and bravery, although circumstances compelled him to retreat before his enemy.

THE SUPPLIES, ETC.

No time was lost in taking that part of his majesty's speech into consideration which had reference to the augmentation of our military force. By two acts greater activity was given to enlistment into the militia, and that force was carried to its full number. The vacancies also, left by the bill of last session, for allowing the militia soldiers into the line were filled up, and from 20,000 to 30,000 regular troops were added to the corps disposable for foreign service. Additions were also made to the navy. Above £27,000,000 were voted for the army and ordnance, and about £19,000,000 for the navy: the total amount of supplies for the year for Great Britain and Ireland was £53,802,000. Among the ways and means was a loan of £11,000,000; which loan was contracted for at a lower rate of interest than money had even been borrowed for on the public account. Ministers quoted this as an instance of prosperity; but the opposition contended that money was lent to government at a low rate of interest because capitalists could not employ it in any other way, foreign trade being almost annihilated by the Berlin and Milan decrees, and by our own orders in council.

CHARGES AGAINST THE DUKE OF YORK.

Early in this session a subject was introduced which excited extraordinary interest throughout the whole nation. This subject was, that a paramour of the Duke of York had made military patronage a medium of infamous traffic. On the 27th of January, Mr. Wardle, a Welsh gentleman, and colonel of militia, affirmed in the house of commons that everything was wrong and rotten at the Horse-guards; that the Duke of York, the commander-in-chief, suffered himself to be swayed by a low-born mistress, one Mary Ann Clarke, who had been carrying on a traffic in commissions and

promotions. Several cases were instanced in which money had been paid to the said Mary Ann Clarke, and Colonel Wardle insisted that the duke was a partaker in the benefit of her traffic. He concluded with moving for the appointment of a committee to investigate the charges, and it was finally agreed that the inquiry should be carried on by a committee of the whole house. This committee sat for the first time on the 1st of February, and the inquiry occupied the undivided time and attention of parliament for seven weeks. In the course of the investigation Mary Ann Clarke and one or two others of the same class of females were examined; but though it seemed clear from the evidence adduced that Mrs. Clarke was guilty of taking money from expectants, it was not proved that the duke had any knowledge of her practices. Mrs. Clarke herself sought to involve the duke in her guilt; but that he had participated in her gains, or had even any knowledge of her transactions, were circumstances which depended on her veracity alone. And her credibility was somewhat shaken, because the duke quarrelled with her and parted from her, and she was at the time of her examination living under the protection of Wardle, the duke's accuser. Some there were, however, who believed her testimony, which was made manifest in the several divisions that took place on this subject. Colonel Wardle moved for an address to his majesty, praying that he would be graciously pleased to dismiss the Duke of York from the command of the army, on account of the corrupt practices which had been proved against him: this was rejected by three hundred and sixty-four against one hundred and twenty-three. Mr. Bankes moved an amendment to the effect that abuses had existed, which could scarcely have existed without exciting suspicion in the mind of the commander-in-chief, and suggesting the propriety of his removal from office: this was negatived by a majority of only ninety-five. Afterwards a resolution, proposed by Sir T. Turton, declaring that grounds for charging the duke with a knowledge of the corrupt practices of Mrs. Clarke rested on good evidence, was thrown out by three hundred and thirty-four against one hundred and thirty-five. Subsequently Mr. Percival made a motion declaratory of the duke's innocence, and this was carried by a majority of only eighty-two. It is evident, therefore, that many members deemed him not wholly innocent of the charges against him; and the duke seems to have felt this, for he soon after took the opportunity of resigning his official situation. The subject seems to have engrossed the attention of the public for a long time, and this too at a period when more important events were taking place daily: events big with importance to all Europe. From the highest to the lowest members of the community, these transactions formed the leading topic of conversation.

It has been well observed that "this affair was not without its beneficial results. A striking proof was given to the world, that under our constitution, no rank, however elevated, could shelter abuses from detection, or screen those concerned in them from the effects of public displeasure. The king's second and favourite son, a prince so near the throne himself, had been driven from office by a member of the house of commons, who was unheard of before this transaction, and who possessed neither the influence of character nor the influence of talent. It had been proved to the conviction of the country that the Duke of York was so far culpable as to render his resignation proper; that resignation had taken place in consequence, and public opinion had thus obtained a most signal triumph. When the duke had thus incurred

punishment and disgrace, individuals of less rank and influence could not expect that their official delinquencies or irregularities should escape: the fate of the prince was an example and an admonition not easily to be forgotten. Until the time when there will be no more war, and when men will no more want commissions in armies, or profitable places under government, it will be in vain to expect perfection in anything, vain to hope that the distributors of patronage will not occasionally yield to favouritism and other influences, besides that great parliamentary influence over appointments, which—fatal as it often is—can hardly be destroyed without destroying the constitution. But notwithstanding the occasional interference of friends, wives, sisters, cousins, and other connexions, which may possibly be as mischievous though less indecorous than that of a mistress, we believe it is admitted by all candid and properly informed persons, that since the investigation in 1809, patronage at the Horse-guards, as well as in the other offices of government, has been distributed with more attention to the public service than any time preceding that inquiry."

It had been hoped, on the resignation of the Duke of York, that the office of commander-in-chief would be put in commission; but General Sir David Dundas was appointed successor to his royal highness. One of the early consequences of this investigation to the country, was the enactment of a law declaring the brokerage of offices in the army, church, or state to be a crime highly penal. This bill was brought in by the chancellor of the exchequer, who observed that the practices lately disclosed consisted not in the sale of offices by those who had the power to give them, but in the arts of those who had pretended to possess influence over such persons. In the case of Mary Ann Clarke, however, there was no pretension in the matter; for there can be no question that she did possess too much influence over the mind of the duke, and that she obtained promotion for several of whom she took money. On the other hand it was proved that she had successfully exerted herself on behalf of meritorious individuals who did honour to the service, and who, being in distressed circumstances at the time, could not have paid her for the commissions which by her influence she procured them. Guilt, therefore, was attached to the duke in suffering this woman to gain an unbounded influence over his mind: public men should hold themselves free from favour or prejudice.

PARLIAMENTARY CORRUPTION.

"Examine well His milk-white hand; the palm is hardly clean— But here and there an ugly smutch appears. Foh! 'twas a bribe that left it: he has touched Corruption. Whoso seeks an audit here Propitious, pays his tribute, game or fish, Wild fowl or venison; and his errand speeds." —COWPER.

It had been for some time reported by opposition that government had made, and was making, a regular traffic in East India appointments. A select committee of the house of commons was appointed to inquire into this matter; which committee reported that it appeared many places had been disposed of in an illegal manner. One source of corruption brought another to light. In the course of the examinations it was discovered that Lord Castlereagh, as president of the board of control, had placed a writership at the disposal of Lord Clancarty, which writership Clancarty was to give to one Mr. Reding, as the price of a seat in parliament for himself, the said Mr.

Reding meaning to sell the said writership for 3000 guineas. Lord Archibald moved that Lord Castlereagh had been guilty of a violation of his duty, of an abuse of his influence and authority as president of the board of control, and also of an attack upon the purity and constitution of parliament. The noble lord's defence was that when this transaction took place he had no notion that such a person existed as a trafficking-broker for places; that Reding had represented to him that a member of the house of commons, who intended to vacate his seat, had a nephew whom he wished to send out to India as a writer, and would favour the election of any friend of his. His lordship remarked:—"I perceived no impropriety in the case, considering it perfectly fair for one friend to serve another at an election." The house acquitted Lord Castlereagh of any intention to do wrong; but this exposure enabled Mr. Curwen to carry a bill for better securing the purity and independence of parliament, by preventing the obtaining of seats through corrupt practices, and also for the more effectual prevention of bribery. While this bill was pending, Mr. Maddocks brought forward a charge against the treasury of corrupt conduct in the purchase of parliamentary seats, which were filled by members attached to the interests of ministers, and bound to support all their measures; but a motion for a committee of inquiry was negatived by three hundred and ten against eighty-five. During this year, also, the commissioners of naval inquiry and revision presented another report, which brought to light many more abuses in that department. Moreover, the commissioners of military inquiry, who still continued their labours, presented several reports, showing that large sums of money, and large powers in money transactions, had often been entrusted to various persons, without the necessary securities, checks, and precautions; that in the West Indies a regular and unchecked system of peculation had been carried on in the most unblushing manner; that the paymasters, the agents of the commissary-general, and others in our West India islands, had been in the habit of committing great frauds, &c., for a series of years. Corruption, in fact, pervaded at this time all orders of public men, and this was the more inexcusable, because the war necessarily imposed heavy burdens on the people. These burdens were made heavier by the extravagance which prevailed in the expenditure of the country, and which had been augmented since last year by the enormous sum of nearly eight million pounds sterling. The extravagance of government was attacked in the month of June by Colonel Wardle, who seems to have set himself up for a reformer of abuses; but, though from his statements many came to the conclusion that great saving might be effected, there were few who thought that he had pointed out a proper mode of retrenchment. Moreover, many of his statements were incorrect or unfounded, so that he failed to sustain the character he had assumed. He who wishes to reform public abuses should prove their existence to all the world, and be able to point out how they may be remedied.

MOTION FOR REFORM.

On the 15th of June Sir Francis Burdett made a motion for a sweeping parliamentary reform. Nearly all the country gentlemen had left town, and those that remained were generally disinclined to enter upon this momentous question. On a division, therefore, Sir Francis was outvoted by seventy-four against fifteen. His scheme of reform divided itself into three parts: by the first article it was proposed

that all freeholders, householders, and others, who paid direct taxes to the state, the church, or the poor, should have votes; by the second, that a convenient division of places entitled to send representatives to parliament should be marked out, each division be again subdivided, and each subdivision to return one member, the elections being conducted in the several parishes in one day; and by the third, that the duration of parliaments should be reduced to the period of time most agreeable to the British constitution. The merits of this scheme may have been great; but one thing is certain, that the period at which it was introduced was not the proper one for its consideration. This forms the best excuse which can be made for the defence of manifest abuses made by such men as Perceval and Canning, and who said they saw no reason whatever to enter upon the subject of reform. There was evident reason for taking this subject into consideration; but while the nation was engaged in a contest for its national existence, it would have been unwise to have tampered with the machinery of government; especially as that machinery was acknowledged by all parties to work well for the prosecution of the arduous contests in which we were engaged with Napoleon and his allies.

PROROGATION OF PARLIAMENT.

The session closed on the 21st of June, when the speech from the throne was again delivered by commission. It dwelt chiefly upon the resistance of Spain against the tyranny of the French government, and upon the successes which had recently crowned the arms of the Emperor of Austria, under the conduct of the Archduke Charles.

AFFAIRS OF SPAIN.

After the battle of Corunna, the cause of Spain seemed wholly lost. The Austrian war, however, which broke out when Napoleon was in pursuit of Sir John Moore, operated as a grand diversion, favourable for the Peninsula, inasmuch as it distracted his attention, and obliged him to withdraw his imperial guards from Spain, and prevented him from sending re-enforcements to that country so quickly as he otherwise would have done. In the meantime King Joseph had, on the 23rd of January, re-entered Madrid. His party was increased by a considerable number of the Spanish people, who thought that a new order of things was necessary to resuscitate the Spanish monarchy. After the departure of Napoleon seven divisions of the French forces remained in Spain; Marshal Jourdan having the chief command, under the auspices of King Joseph. The war was continued with success, although with less vigour; but the Spanish nation only became more exasperated by every defeat, so that it was not subdued. On the other hand, the French, enraged by obstinate resistance, and more yet by the stratagems and assassinations compassed by the Spaniards, became daily more severe and cruel.

The spirit of the Spanish people is well exemplified in the siege of Saragossa. This siege had been formed anew before Napoleon returned to Paris, and it was carried on by the third and fifth corps, under Marshals Moncey and Mortier. The citizens of Saragossa prepared an internal system of defence, far more effectual than that of external fortification; transforming the city itself into one huge fortress, and

coalescing with the troops in one energetic garrison. The French made but little progress until Marshal Lasnes took the command, and then the external defences of the city were quickly demolished. Saragossa itself, however, still defied all the efforts of the French. The war-cry was heard in all her streets, and every house became a fortress, and every church and convent a citadel, garrisoned by heroic men, resolved to die for its defence. The French had laboured and fought without intermission fifty days; they had crumbled the walls with their bullets, burst the convents with their mines, and carried the breaches with their bayonets; fighting above and beneath the surface of the earth, they had spared neither fire nor sword; their bravest men were falling in the obscurity of a subterranean warfare; famine pinched them; and Saragossa was still unconquered. Lasnes, however, persevered in his attempts to take the city, and at length he was successful. Discovering that a pestilence raged within the devoted city, that the living were unable to bury the dead, he ordered a general assault; and then, when one quarter of the city was laid waste, Saragossa was captured. The garrison were allowed to “march out with the honours of war,” to be sent prisoners to France, while the possession of their property and the exercise of their religion were guaranteed to the inhabitants.

The first burst of popular enthusiasm in Spain, however, was followed by a withering lethargy. Even with the assistance of Lord Collingwood and his fleet, with arms from Malta and Sicily, and with the regiments that had been released by the convention of Cintra, and which had by this time joined the patriots, the Spaniards were unable to prevent the capture of Rosas. After the fall of this place everything seemed to go wrong. Though in considerable force, the Spaniards dispersed whenever the enemy appeared, and although they were continually making application to the English for money, arms, and ammunition, they made no use of them when they were supplied. Their very navy was left to rot in the harbours of Cadiz and Carthagena, although money was advanced by the British government, and the assistance of its seamen offered to fit them out for sea. But for the co-operation of the British fleet Spain would have been, after the capture of Saragossa, easily conquered, for the Spaniards, though lions in their fortresses, acted like women in the field.

It was not the English fleet alone that defended Spain from the arms of the French. While that nation was thus on the verge of ruin, Sir Arthur Wellesley arrived in Portugal to take the command of the British army, which by re-enforcements amounted to 30,000 men. At this time, in April, the French had obtained possession of Ferrol, Bilboa, and all the most important places on the northern coast of Spain. Soult had even advanced into Portugal, and had taken possession of the city of Oporto. Sir Arthur Wellesley’s first business was to dislodge the French general from this place, and on the 11th of May Oporto fell into his hands. Soult retired by Amarante, with the intention of passing through Tras-os-Montes into Spain. He left behind him all his sick and wounded, with many prisoners, and much artillery and ammunition. Sir Arthur wrote to him, requesting that he would send some French medical officers to take care of his sick and wounded, as he could not spare his own army-surgeons, and as he did not wish to trust to the practitioners of the town of Oporto. It does not appear, however, that Soult was able to respond to his request, for there was murmurings

and discontents, arising from defeat, among his troops; and besides this, the Portuguese peasantry mercilessly attacked the French in their retreat, cutting off great numbers of them. He was followed in his retreat by Sir Arthur Wellesley, and on the 16th of May he was overtaken at Salmonde, and a great many of his rear-guard were either killed or taken prisoners. More would have been lost, but night favoured the retreat of the fugitives, and Soult finally gained the frontier of Spain. Sir Arthur Wellesley stopped his pursuit at Montealegre, a few miles from the frontier, and returned by Renairs, Braga, and S. Terso to Oporto. According to his letters, the rout of Soult was complete. He had lost everything, cannon, ammunition, baggage, and military-chest. The mountainous road through which he passed was indeed covered with dead horses and mules, and with the bodies of French soldiers, who were put to death by the peasantry before the British could come up to their rescue. The cruelty of the Portuguese peasantry, however, was provoked by the conduct of the French themselves. Sir Arthur Wellesley writes:—"Their soldiers have plundered and murdered the peasantry at their pleasure; and I have seen many persons hanging in the trees by the sides of the road, executed for no other reason, that I could learn, excepting that they have not been friendly to the French invasion and usurpation of the government of their country; and the route of their column on their retreat could be traced by the smoke of the villages to which they set fire." These horrible scenes occurred in all the subsequent retrograde movements of the French: before them, the countries through which they passed were lovely as the garden of Eden—behind them they were desolate as the wilderness.

{GEORGE III. 1809—1812}

FURTHER OPERATIONS IN SPAIN.

On the departure of Soult for Oporto the Spaniards again rose in arms, and several places in the Asturias and in the Biscayan provinces had been recaptured. After his return, urged by the importunities of the Spanish government and generals, Sir Arthur Wellesley determined to advance into that country against the French. His projected route was by the way of Plasencia and Almaraz, and his design was to co-operate with the Spanish general Cuesta, who commanded the army of Estramadura. A junction was formed between the two armies at Orepesa on the 20th of July; Sir Arthur's army amounting to about 23,000, and Cuesta's to 30,000 men. At this time the French forces were thus disposed:—Marshal Victor was in Estramadura with the first corps, amounting to 35,000 men; General Sebastiani, with the fourth corps, consisting of 20,000 men, was in La Mancha; General Bessolles, with a division of reserve and Joseph's guards, amounting in the whole to 15,000 men, was in Madrid; Kellermann and Bonnet, with two divisions of 10,000 men, were in Old Castile; Soult had collected the second corps of 20,000 men in the northern provinces; and immediately dependent upon Soult were Marshal Mortier, with the fifth corps of 16,000 strong, and Ney, with the sixth corps of about 10,000 men under arms. Besides all these forces there were 50,000 Frenchmen in Aragon and Catalonia, under Suchet and Augereau; and 35,000 more were scattered over the surface of Spain, to maintain the many posts and fortresses the French had captured

in Spain, and to keep open the various lines of communication. It was agreed upon by the British and Spanish commanders to march themselves against the French under Marshal Victor, while at the same time Vinegas advanced against Fuente Duenna on the Upper Tagus, in order to draw Sebastiani thither, that he might not aid Victor; or if that general refused to move, Vineeas was to march on Madrid from the south-east, while Sir Robert Wilson menaced it from the opposite quarter. The combined armies of Sir Arthur Wellesley and Cuesta attacked Marshal Victor's outposts at Talavera on the 22nd of July, and drove them in. Oh the 23rd, the British again formed for the attack of the French position; but Cuesta "contrived to lose the whole of the day, owing to the whimsical perverseness of his disposition." Sir Arthur wished to defeat Victor before he could be joined by Sebastiani, and his disappointment was great when, on the 24th, he discovered that the enemy had retreated towards Torrijos, in order to form a junction with that general. After Victor's departure, Sir Arthur occupied Talavera; and finding that the Spanish general did not cordially co-operate with him, he resolved to return into Portugal. He writes with reference to this, and to the privations his soldiers were enduring,—"His majesty's troops have been engaged in very active operations, the success of which depended no less upon their bravery and exertions, than upon the example they should hold out, and the countenance they should give to the Spanish troops; and yet they have been in actual want of provisions for the last two days. Even if I should have been willing, under such circumstances, to continue my co-operation with General Ouesta, I am unable to do so with justice to my troops." Sir Arthur, however, was soon compelled to recommence active operations. While he halted at Talavera, on a sudden, Cuesta was seized with an irrepressible energy and activity. His columns dashed forwards, with him at their head, to Torrijos; but on the 26th he returned with the French in full pursuit of him. The French halted before they came upon Talavera; but it became evident to Sir Arthur that he would not be permitted to enjoy long repose, and therefore he busily employed himself in examining and strengthening his position at Talavera. While thus employed, a great army was collecting in his front, under Victor, while his old enemy, Soult, supported by Marshal Mortier, was unknowingly rapidly advancing from Salamanca against his rear; and Marshal Ney was hurrying from Astorga, with the hope of falling upon his flank. His front was threatened by 50,000 men, and an equal number was ready to fall upon his flank and rear, while he had only 20,000 British to withstand them, save Cuesta's army, on which he could not place much reliance. It was under these disadvantageous circumstances that the battle of Talavera was fought. But, notwithstanding their superior force, the French were utterly defeated: out of the 50,000 men which Victor headed against the British, 7,000 were either killed or wounded, and among them an immense number of officers and two generals. On the side of the British 857 were killed, 3,913 wounded, and 653 were reported missing: the Spaniards returned about 1,200 killed and wounded; but the correctness of their report was much doubted. This great battle was fought on the 27th and 28th of July; and by the 1st of August Sebastiani's corps and the reserve retreated to Illescas, on the road between Madrid and Toledo, while Victor entrenched himself behind the Alberche. By this time Soult had entered Plasencia, whence he designed joining the forces of Victor. Sir Arthur Wellesley determined to prevent this junction; and on the 3rd of August he marched forward to Orepesa, leaving Cuesta at Talavera

to take care of the hospitals. On that day Sir Arthur learned that Soult's advanced posts were at Naval Moral, and consequently between him and Portugal, and soon after he received intelligence that the forces which he had defeated were recollecting and again threatening Talavera. General Cuesta was so alarmed at his position that he sent word to Sir Arthur he intended to leave Talavera that evening, and join the British army at Orepesa, in order to assist it in repelling Soult. Cuesta rejoined Sir Arthur on the next morning, leaving 1,500 in the hospitals unprotected. Sir Arthur was now placed between the mountains and the Tagus, with a French army advancing upon each flank, and with his retreat by the bridge at Almaraz completely cut off. As, therefore, he could place no confidence in Cuesta and the Spanish army, and as with 17,000 British forces fatigued and famishing, he could not hope successfully to fight with two French armies each about three times stronger than his own, he resolved to retire to Portugal. One way was happily still left open for him a little below Talavera, where the Tagus was crossed by the bridge of Arzobispo, and by this route he retreated. Cuesta followed in his route, halting his troops at the bridge of Arzobispo, in order that they might be ready to pass the Tagus at any moment. While here Cuesta was attacked by the French, and lost nearly 2,000 men, and the rest only escaped by taking refuge in the mountains. In the meantime the British army was advancing unmolested towards the frontiers of Portugal. Sir Arthur had his head-quarters at Badajoz, close to those frontiers, on the 2nd of September, and in a day or two a part of his army with the sick and wounded re-entered that country. About six days after his arrival at Badajoz, Sir Robert Wilson arrived on the frontier, having successfully eluded the vigour of Marshal Ney, who was in pursuit of him. The other corps, which had advanced upon Madrid under General Vinegas, had been defeated at Alinoracid by General Sebastiani, who drove it back upon the Sierra Morena and the Andalusian frontier, from which it had advanced. On the arrival of Sir Arthur Wellesley at Badajoz, the French armies again separated. Soult with his forces went into cantonments at Estramadura and Leon, near the borders of Portugal; Joseph Buonaparte, who accompanied Marshal Mortier in this campaign, returned with that General to Madrid; while some French moveable columns traversed various parts of Spain in order to subjugate the country. From this time until the month of November no events of importance, however, took place in Spain. A guerilla warfare was carried on in many distant provinces and districts, and some towns on the eastern coast in Catalonia and Valencia were captured by the French, but the French masses remained inactive. The manner in which this campaign had been conducted by the British army received all due applause in England: the thanks of parliament were voted to officers and men, and Sir Arthur Wellesley was created Viscount Wellington of Talavera. By this time Viscount Wellington had placed his army in cantonments on the line of the Guadiana, in order to cover Portugal from Soult, whose cantonments, as before mentioned, were in Estramadura and Leon. While thus stationed, he heard in November of the defeat of the Spanish troops under General Areizga at Ocana, and of the Duque del Parque at Alba de Tonnes. These events caused Lord Wellington much mortification; and feeling convinced that he could no longer afford assistance to Spain, he marched from the lines of Guadiana into Portugal, in order to defend it against the enemy. Here he laid the foundation of those measures which finally carried him triumphant through the Peninsula. The Spanish

junta exclaimed loudly against him for deserting their cause; but it was evident that if neither Soult nor any other French forces had threatened the Portuguese frontier, it would have been impossible for him to have tried another advance into Spain. It was only by drawing on his magazines in Portugal, which were chiefly filled by England, that he could preserve his troops from starvation, and it was impossible for him to co-operate with undisciplined Spanish troops, and proud, obstinate, and incapable Spanish generals. It was in vain that his brother, the Marquis Wellesley, who resided with the junta at Seville as British envoy, laboured to convince the Spanish authorities of the fatal consequences which, must arise from their wretched military system: the dons were all wiser than the marquis, and not satisfied with neglecting his advice, they cast reproaches on his brother. There was a want of vigour and capacity in the members of the junta, and in the Spanish military, and this being coupled with an overweening confidence in their own powers, it was clear that no British force could successfully co-operate with them. In the event of another British army acting again in Spain it would be necessary, as Lord Wellington observed in one of his dispatches to his brother, that the chief command of the Spanish forces should be vested in the commander-in-chief of the English.

CAMPAIGN OF NAPOLEON IN ITALY.

In the meantime Napoleon was carrying on war with Austria. The battles of Eckmuhl, Ratisbon, and Ebersberb, opened the gates of Vienna to him, and he entered that city about a month after the Austrians had commenced hostilities. From Vienna he issued a decree revoking the grant of territory made to the pope by Charlemagne, “his illustrious predecessor,” and annexing Rome to the French empire; the pontiff being allowed to remain there as bishop, with a certain revenue. Pius VII. opposed this decree by a bull of excommunication; and it is said that Napoleon received this intelligence with a considerable degree of anxiety. Orders, however, were issued by him, under which the pope was seized in his palace, and transported over Mount Cenis to Savona, where he lived three years, partly on a prison allowance and partly on alms. On the defeat of the Austrians, who were commanded by the Archduke Charles, that commander took a circuitous route through Bohemia, and finally occupied the bank of the Danube opposite Vienna, over against the proud victor Napoleon, who, selecting for the passage of the river the place where two islands divide the Danube into three arms, conducted his battalions to the left bank, occupied Aspern, Engesdorf, and Esslingen, and offered battle. In this position the archduke fell upon him with his army, glowing with anger and exalted by the sight of the imperial city, and gained a great victory. The French army retreated to the island of Lobau, leaving 11,000 dead on the field, while 30,000 were wounded. The world saw now that Napoleon was not invincible: but this victory was not attended with the expected results. An armistice of six weeks followed, during which time Napoleon was making preparations for a second attack; and at the lapse of that time he again passed the river with 150,000 men, and six hundred cannon, fully resolved to crush the house of Austria. The terrible battle of Wagram, which lasted two whole days, followed, and Napoleon was once more victorious: the archduke, after sustaining a fearful loss, retreated into Moravia. He might still have contested the palm of victory, for his army was still formidable, and Napoleon in the

battle of Wagram had lost more in dead and wounded than the vanquished. An armistice, however, was concluded about the middle of July, and after negociations which lasted for three months, a treaty called the “peace of Vienna” was concluded. The articles of this treaty were the cession of Saltzburg and other territories of the Rhenish confederation to France; Cracow, and part of the Austrian spoil of Poland, to the duchy of Warsaw; and another small portion of it to Russia, Napoleon did not stop here in his attempts to ally himself with Austria: regardless of his union with the faithful Josephine, he stipulated for the hand of an Austrian princess; and the Austrian emperor sold him his daughter. He was married early in the next year to the Archduchess Maria Louisa.

BRITISH EXPEDITION AGAINST NAPLES AND WALCHEREN.

During this year the British cabinet prepared two expeditions: the first against Naples, under Sir John Stuart; and the second against Antwerp, for the purpose of destroying Napoleon’s maritime preparations in the Scheldt. Each, also, had a secondary object in view: that of creating a diversion in favour of the Austrian emperor. Both, however, failed, from being too long in preparation: Murat had ample notice of the Sicilian expedition, and he defeated every attempt to obtain a footing, or to excite insurrection in his kingdom. As for the armament destined for the Scheldt, the chief command of which was given to Admiral Sir Richard Strachan, it was so long getting ready that news arrived of the Austrian defeat at Wagram, some days before it sailed. It was the largest and most complete armament that ever left the British shores; and consisted of thirty-nine sail of the line, thirty-six frigates, and a proportionable accompaniment of gun-boats, bomb-vessels, and small craft. The troops which it was intended to convey amounted to about 40,000 men, making together with seamen and marines a sum total of 100,000 men. The expedition was intended to be secret; but long before it sailed its destination was disclosed to the enemy, who took all possible means to frustrate its designs. It sailed on the 29th of July, and at first it was successful: Flushing was captured after having sustained a severe bombardment. But here the British successes ended. Antwerp was by this time placed in such a posture of defence that it would have been in vain to have made an attack upon it; while the forts on the Scheldt were well manned, and preparations had been made for carrying the fleet of the enemy still higher up the river, in case the British should succeed in forcing a passage. Immediately after the capture of Flushing, with a view of pursuing ulterior measures, three thousand men were transported to the isle of Walcheren; but while here they were attacked by an enemy more fatal than the sword—disease. The British troops were soon seized with the dreadful endemic fever of the country; nearly one half of them were swept away by it, and the greater part of the remainder carried its effects with them to the grave. At length, about one month after the treaty of Vienna, the few remaining troops that were still left alive were directed to demolish the defences and basin of Flushing; and this done they were ordered to re-embark. This expedition, which had originated with Lord Castlereagh, cost England 10,000 men, with not a little money, and not a little credit. It brought disgrace on his memory, in which Lord Chatham, who had the chief military command, and Admiral Sir Richard Strachan largely partakes. It was conceived in imbecility, and with imbecility carried forward, whence its signal failure.

It was soon after the British had evacuated Walcheren that Napoleon returned to Paris; when, in a speech before the submissive and admiring _corps législatif_, he told them that, except Spain and Portugal, the continent of Europe was in a happy peace.

DISSENSIONS IN THE CABINET.

The untoward course of events on the continent, the disastrous issue of the British war, and various other causes, produced violent dissensions in the British cabinet. So violent was the strife between Lord Castlereagh and Mr. Canning, that it led to a duel on Putney Heath, when the latter was severely wounded Before this duel took place they had resigned office; and the Duke of Portland followed their example, on account of age and infirmity. The ministers that remained in office after these three resignations were reduced almost to despair, scarcely knowing where to look for a new leader, and for two new colleagues. At length, however, after negociations with Earl Grey and others, which failed, Mr. Perceval took the place of the Duke of Portland—who by this time was dead—adding thereby the office of first lord of the treasury to that which he held as chancellor of the exchequer. The Marquess Wellesley was recalled from his Spanish embassy to take charge of the foreign department; while Lord Liverpool was transferred from the home department to that of war and the colonies, Mr. Ryder being appointed his successor. Finally, Lord Palmerston was appointed under-secretary at war, in the room of Sir James Pulteney.

MEETING OF PARLIAMENT.

{A.D. 1810}

The session opened on the 23rd of January, when the king’s speech was again delivered by commission. It contained but little except the late disasters and the necessity of granting further assistance to Portugal and Spain. Amendments strongly condemning the ministerial direction of the whole war, and particularly the Walcheren expedition were moved in both houses, but were rejected by considerable majorities.

DEBATE ON THE WALCHEREN EXPEDITION.

On the 26th of January Lord Porchester, in the commons, moved for a committee of the whole house, which might inquire into the conduct of the late expedition to Walcheren, by examining oral evidence as well as written documents. This motion was seconded by Mr. Windham, and opposed by Mr. Croker, who moved the previous question; but the proposition was carried by a majority of one hundred and ninety-five against one hundred and eighty-six. After the examination of evidence on this ill-fated expedition was concluded, Lord Porchester proceeded further in the matter, by moving two sets of resolutions, to the effect that the enterprise was undertaken under circumstances which afforded no rational hope of adequate success, and at the precise season of the year when the disease which had proved so fatal was known to be most prevalent; that its advisers were therefore highly reprehensible; and that their conduct in delaying the expedition called for the severest censure. The first set of these resolutions, after four nights’ debate, was lost

by a majority of two hundred and twenty-seven against two hundred and seventy-five; and the second set by two hundred and seventy-five against two hundred and twenty-four. Subsequently a resolution approving their conduct in retaining the island till the time when it was abandoned, was carried by a similar majority; but “the indignant nation plainly perceived that the house felt unwilling to sanction the disgraceful measures of the principals concerned in this expedition; while it was too courtly to visit the commander with any severity of punishment, and too dependent to condemn the acts of a cabinet which did not seem likely to be dissolved.” Lord Chatham, however, quailed before the storm raised against him; for, to avoid the consequences of an address for his removal, he resigned the office of master-general of the ordnance.

{GEORGE III. 1809—1812}

PROCEEDINGS AGAINST SIR FRANCIS BURDETT.

During these proceedings the standing order of the house for the exclusion of strangers was enforced, chiefly by the instrumentality of Mr. Charles Yorke. This exclusion of strangers, however, not only failed in the object, for which it was intended—that of keeping the public ignorant of what passed within the walls of St. Stephens—but led to new troubles and disgraceful scenes. At this time there was a debating society in London, called the “British Forum,” the president and chief orator of which was one Gale Jones, who, though an obscure individual, was suddenly raised into the dignity of a patriot and martyr. Gale Jones proposed the subject of the exclusion of strangers from the house of commons, as a proper subject of discussion in the British Forum; and in this debate the conduct of Mr. Yorke was so freely censured, that he was resolved to punish the delinquent. He complained of a breach of privilege, and Gale Jones was brought to the bar of the commons; and notwithstanding a humble apology made by him, he was committed to Newgate. Sir Francis Burdett was not in the house when a vote for his committal passed; but on the 12th of March he loudly condemned the measure as a violation of the common law, of Magna Charta, and of the trial by jury, in a case where the offence was punishable by the ordinary course of justice; and concluded by moving that Gale Jones be forthwith discharged. Sir Francis was outvoted by a large majority; and in consequence of this decision he printed his speech in an enlarged form, and with stronger language than he had used in the house. It was published in Cobbett’s Register, with his own name appended to it, and accompanied with a letter to his constituents. The paper was a libel from beginning to end; but the question which gave most offence was that in which Sir Francis denied the right of the house to commit for breach of privilege. The house determined to assert their privilege; and they replied to Sir Francis by a vote that he should be committed to the Tower, on the speaker’s warrant, for a libel on the commons. This warrant was issued; but Sir Francis shut himself up in his mansion in Piccadilly, barring his doors and windows, and declaring that he would yield only to force, A letter was sent to the speaker expressive of this resolution, of his contempt for the house, and his conviction that the warrant was illegal, On the receipt of this letter the opinion of the attorney-general was taken; in consequence of which the

ser-geant-at-arms, accompanied by a number of police-officers and a detachment of troops, proceeded to his mansion, and, after some altercation, conveyed Sir Francis to the Tower. Before this the mob had collected round the house of the right honourable baronet, in token of their admiration of his patriotism, while they had broken the windows of many of his known opponents in token of their displeasure. They accompanied him to the Tower; and in the way they so grossly insulted his escort, that the soldiers fired in self-defence, and two individuals were killed, while several more were wounded. Petitions were presented by some public bodies, particularly the electors of Westminster and London, praying for the release of Sir Francis; but he continued in confinement to the end of the session, when he was released. Subsequently Sir Francis commenced actions against the speaker of the house of commons, who issued the warrant; against the ser-geant-at-arms, for executing it; and against Earl Moira, governor of the Tower, for illegal imprisonment. His object was to ascertain whether an appeal lay to a court of law against the house, acting as accuser and judge, in proceedings that affected the liberty of the subject. The judges, however, would not admit that any unlawful measure had been adopted in his case, or that the warrant issued by the speaker was an illegal instrument. The privilege, therefore, of the house was confirmed, and its claims solemnly recognised by the courts of law. Since the “No-popery” riots of Lord George Gordon, there had not been a commotion in London equal to that which attended this question of privilege: in the sight of the public at large, he was “a martyr of liberty.” Gale Jones, also, who was liberated with him at the close of the session, shared the popular favour. The mob were waiting at the Tower-gates on the day of his release, in order to escort him with popular applause to his residence; and great was their disappointment when it was discovered, that with one or two friends he had retreated from the Tower by water. Gale Jones, however, gratified them by allowing them not only to surround the hackney coach in which he departed from Newgate, but also to chalk his name upon the panels. As he went along, he stopped from time to time to harangue his admiring attendants: and one of the leading topics of complaint which fell from the patriot’s lips was, that he had been turned out of Newgate at two minutes’ notice! Many left behind within the dreary walls of that prison would have congratulated themselves on their escape, had they been turned out with even less ceremony than Gale Jones.

THE SUPPLIES.

The supplies voted for this year were, for England and Ireland £52,185,000. The ways and means included a loan of £8,000,000, which was negociated on terms even more moderate than those of the preceding year. No new taxes were proposed, and a very favourable picture was drawn of the general prosperity of the country. Of the money voted, £1,380,000 was devoted to foreign subsidies; nearly £20,000.000 was appropriated to naval services; and nearly £25,000,000 to the land forces and ordnance. A vote of credit was passed for £3,000,009. Mr. Perceval contrasted the state of commercial affairs in England to those of France. Our orders in council, he said, had already reduced the receipts of customs in that country from £2,590,000 to that of £500,000. But these orders had not in reality done all this mischief to the enemy; for a large portion of it must be attributed to Napoleon’s war-system, and the

working out of his continental system.

THE SLAVE-TRADE QUESTION.

During this session the question of the slave-trade was renewed in the lords by Lord Holland, and in the commons by Mr. Brougham. They moved for addresses requesting the king to persevere in his measures to induce other nations to co-operate in the abolition of slavery, and to take such further steps as might be necessary. By this time it was discovered that persons in this country carried on a clandestine trade in slaves; and the address in the commons prayed that orders for checking such practices might be given to the commanders of his majesty's ships, and to the officers of the customs. Both addresses were agreed to, and a resolution, moved by Mr. Brougham, for taking-measures early in the next session to prevent evasions of Wilberforce's slave-trade act, likewise received the sanction of the house.

PETITION OF THE IRISH CATHOLICS, ETC.

During this session, a petition was presented from the Irish Catholics by Mr. Grattan; but after a long and animated debate it was rejected by a large majority. A motion by Mr. Brande on the subject of parliamentary reform was also negatived by a large majority; as was likewise a resolution, moved in the upper house by Lord Grey, "to take into consideration the state of the nation." Lord Grey prefaced his motion by an eloquent and argumentative speech, in which he dwelt upon the power of Napoleon; the mismanagement of our internal resources; the expediency of conciliating the Roman Catholics; the subjects of parliamentary privileges and reform, &c. On the subject of parliamentary reform he remarked:—"This question has long been one of my most serious contemplation. I took an active part in it at an early age: I pursued my object with all that eager hope and sanguine expectation so natural to the ardour of youth. I will not say that in subsequent times there have not been some differences from my former impressions; but of this I assure your lordships, that on its great grounds it has never been abandoned by me. To the temperate and judicious reformation of abuses I am now a decided friend; and whenever it shall be brought forward, it shall receive from me my most anxious assistance. I never did, nor ever will, rest my views of salutary reform on the ground of theoretic perfection; though I am always ready to correct by the constitution a practical inconvenience when it is practically felt. On this point I was formerly misrepresented by that description of persons who at this day continue the same course. The folly and presumption of the present day have taken up a new doctrine—that every branch and exercise of our constitution was defined by law, and only to be found in the statute-book: but I have understood from the most able men, that the great and fundamental blessing of the British constitution was fixed in the co-operation and harmony of its powers, all leading to free and efficient government."

PROROGATION OF PARLIAMENT.

During this session motions were made by Mr. Parnell on the subject of Irish tithes; by Mr. Grattan and Lord Donoughmore on Catholic emancipation; and by Sir Samuel Romilly on the reform of our sanguinary criminal laws. These subjects will receive attention in a future page. Beyond this there was nothing of importance taken

into consideration this session, which terminated on the 21st of June. The royal speech was again delivered by commission: and it affirmed that Portugal was exerting herself with vigour and energy; and that in Spain, though the French were victorious, the spirit of resistance was unsubdued.

CAMPAIGN IN PORTUGAL.

When Lord Wellington moved his troops from the banks of the Guadiana, he placed them in quarters along the valley of the Mondego. His head-quarters in January were at Viseu; General Hill being left with 10,000 men, half British and half Portuguese, at Abrantes, in order to watch Badajoz and protect Lisbon; while Marshal Beresford was stationed at Thomar. In the meantime the French armies had fully established themselves in Spain. Cadiz indeed defied the proud enemy, and the highest junta retired to the island of Leon, while the wild Sierra Morena carried on a guerilla warfare against the French; but there was no real army to oppose them, and the country might therefore be considered for the time being as conquered. Lord Wellington foresaw that the conquest of this country would lead to the invasion of Portugal; and he turned his whole attention to the defence of that country. And what the English general foresaw soon came to pass. The peace with Austria had enabled Napoleon to send large re-enforcements from Germany into Spain, audit was rumoured that he himself was coming. By the beginning of the month of April, Ney, Kellermann, and Loison, with about 60,000 men, were in Old Castile and Leon, threatening the Portuguese frontier in that direction: as a preliminary step they had captured Astorga, and had made preparations for the siege of Ciudad Rodrigo. General Meigner was also at this time on the borders of Spanish Estramadura, menacing the frontier of Portugal on that side. Subsequently, as Napoleon was now engaged with his bride of Austria, he sent Massena to take the command of the forces in Old Castile and Leon, which now assumed the name of “The army of Portugal,” thereby declaring its destination. Massena arrived at Valladolid about the middle of May; and he not only assumed the command over the forces of Ney, Kellermann, and Loison, but also over those of Junot and Drouet, which had recently crossed the Pyrenees from German. In the whole, Massena had a force of 80,000 men under arms for the field; but the corps of Drouet, about 18,000 strong, and the forces of Régnier in Estramadura did not immediately join him in his expedition into Portugal. As it was, however, Massena had a force of about 62,000 men when he first put himself in motion against Lord Wellington. Against these Wellington could only bring about 24,000 British troops, and from 28,000 to 30,000 Portuguese regulars; a part of which he was compelled to leave south of the Tagus, in order to guard against any sudden movement of Soult’s army of Andalusia. Moreover, Lord Wellington could only confidently rely on the British forces, as the Portuguese soldiers, whether regulars or militia men, were as yet untried. On the other hand, Massena’s soldiers were skilled in the dreadful art of war, and flushed with recent success; so that the odds against Wellington were alarmingly great. The campaign commenced in earnest early in June, when Massena invested Ciudad Rodrigo, which was defended by a Spanish garrison, but which was almost within sight of the British advanced posts on the Azava. The Spaniards made a brave defence; but on the 10th of July Massena made himself master of the place by capitulation. Lord Wellington was taunted by the French, by

the Spaniards, and by many of his own officers, for suffering the siege to proceed without making an attempt to relieve the place. His lordship, however, knew his business better than to take any false step by a rash movement: his object and paramount duty was to defend Portugal, and above all Lisbon. He had, in fact, pledged himself to do this; and hence, while the French were taking Ciudad Rodrigo, he calmly retained, his position on the Coa, having his light division advanced a little beyond that river. Subsequent events justified Wellington's line of policy. After the fall of Ciudad Rodrigo, Ney went thundering on till he came in contact with the light division, which was commanded by General Crawford; and though he succeeded in causing the English general to retreat, it cost him 1000 men in killed and wounded. Massena now crossed the frontiers of Portugal; but although he had boasted he would drive Lord Wellington out of that country in three months; he passed nearly one month on the line of the Coa in total inactivity. In the meantime General Régnier quitted Estramadura, crossed the Tagus, and established himself at Coria and Plasencia, while General Hill, making a corresponding movement, took post at Atalaya, from whence he could either join Wellington, or could be again thrown in front of Régnier. At length, on the 15th of August, the French broke ground before Almeida, which was captured on the 27th of the same month, Lord Wellington had brought his army nearer, in order to strike a blow if the enemy should afford an opportunity; but Massena let three weeks pass after the reduction of Almeida before he moved forward; and then, as the rainy season had come on, Wellington moved his army to the valley of the Mondego, and fixed his head-quarters at Gouvea. The French army commenced its march down this valley on the 15th of September, taking its route along the right bank of the river, in the direction of Coimbra, through Viseu. This was the very worst road Massena could have taken; and Wellington, perceiving his error, crossed the river and took up a strong position in front of Coimbra. On the 24th, his whole army, including the Portuguese, and the corps of Generals Hill and Leith, which he had called up for the purpose of assisting in the coming struggle, were collected upon the Serra de Busaco, a lofty mountain-ridge extending from the Mondego to the northward. From these heights, on the 26th, the French army was seen advancing. One of the spectators of the imposing sight says:—"Rising grounds were covered with troops, cannon, or equipages: the widely extended country seemed to contain a host moving forward, or gradually condensing into numerous masses, checked in their progress by the grand natural barrier on which we were placed, at the base of which it became necessary to pause. In imposing appearances, as to numerical strength, I have never seen anything comparable to that of the enemy's army from Busaco: it was not alone an army encamped before us, but a multitude—cavalry, infantry, artillery, cars of the country, horses, tribes of mules with their attendants, suttlers, followers of every description, formed the moving scene upon which Lord Wellington and his army looked down." By the evening of the 26th this army encamped in the plains below Busaco; and on the next morning, as the mist and the gray clouds rolled away, they made two desperate simultaneous attacks on the English, the one on the right and the other on the left of Wellington's position. These attacks were vain: the enemy was repulsed, leaving 2000 killed upon the field of battle, and having from 3000 to 4000 wounded, and several hundreds taken prisoners. Both the British and the Portuguese alike fought valorously; the latter,

according to Wellington’s own statement, proving themselves on this their first trial to be worthy of contending in the same ranks with the former. Thus checked in his career, on the 28th, the day after the battle, Massena moved a large body of infantry and cavalry from the left of his centre to the rear, and his cavalry was seen marching over the mountains by another road to Oporto Colonel Trant with his Portuguese division was ordered to occupy the pass of Boyalva to the north of Busaco, through which this cavalry must pass; but a Portuguese general had previously ordered this division to inarch elsewhere; and before this could be countermanded, the French descended into the plains that lie open to the sea-coast, and seized on the road leading from Oporto to Coimbra, in the rear of the British. Massena, however, had only made the march which Wellington foresaw he would make, and he now commenced a retreat towards Lisbon. Both the British and the Portuguese effected their retreat with ease and regularity. They were followed by the French, whose van caught sight of the chain of hills behind which lay the city of Lisbon on the 7th of October:

“But in the middle path a lion lay.”

Wellington by this time occupied the lines of Torres Vedras, the formation of which have conferred as much honour on him as any of the great victories which he achieved. A recent writer gives this outline sketch of these lines:—“The peninsula, or promontory, at whose south-eastern extremity Lisbon is situated, is crossed rather obliquely by two serras, or chains of mountains, which extend with various altitudes and various degrees of steepness, but with partial interruptions or openings, from the shore of the Atlantic to the right bank of the Tagus. These two serras run nearly parallel with each other, at a distance of from six to eight miles; the point of the line nearest to Lisbon being close to the Tagus, between Via Longa and Quintilla. Through the passes in these serras and the low ground bordering the Tagus four roads from the interior of the country led to the capital. The hand of nature had marked out these two lines of defence, and British science and engineering had been employed for a whole year in strengthening them, and in blocking up the openings which seemed the most accessible. Here redoubts were erected; here the whole face of a mountain was scarped and hewn into the appearance of the facet of some Titanic fortress; here the threads of mountain-rivulets—which would be something more than rivulets at the end of October and in November—were collected and brought together into one bed; and here rivers, tributaries of the great Tagus, were dammed up, or were provided with dams which could be used, and with flood-gates which could be shut, so as to inundate the country at the foot of the hills, on the approach of the invader. The line of defence was everywhere double, while in some parts there was a treble range of batteries and redoubts. The first line, which was twenty-nine English miles in length, began at Alhendra on the Tagus, crossed the valley of Aruda, and passed along the skirts of Monte Agraca, where there was a large and strong redoubt. It then ran across the valley of Zibreira, skirted the deep ravine of Ruda, to the heights of Torres Vedras, and thence followed the course of the little river Zizandre to its mouth on the Atlantic. The second or inner line, at a distance varying from six to eight, and in some parts to ten miles, extended from Quintilla on the Tagus by Bucellas, Monte Chique, and Mafra, to the mouth of the little river St. Lourenço, on the sea-coast, a distance of

about twenty-four miles. This was by far the stronger line of the two, both by nature and by art; and if the first line were forced by an enemy, the retreat of the army upon the second was secure at all times. Both these lines were secured by breast-works, abattis, and stone walls, with banquettes and scarps: not an opening nor interstice through which a mountain goat could pass but was blocked up or guarded. Down the hollows in which the roads ran were pointed the black muzzles of numerous guns, projecting from batteries which could maintain a fire in front, and a crossing fire from the flanks. And, to provide for every occurrence, to make sure of a safe and easy passage to our ships of war in the Tagus, there was in the rear of the second line a shorter, closer line, to protect the embarkation of our troops. This innermost line of all was strong enough to check even a brave enemy, had there been no other lines before it: it rested at one extremity on a tremendous redoubt, and at the other on the broad ditch and lofty walls of the castle of S. Julian. About one hundred redoubts or forts, containing altogether more than six hundred pieces of artillery, were scattered along these lines."

Lord Wellington and the allied army entered within the foremost of these lines on the 8th of October. On arriving each division took up its assigned quarters, and the defences, which were strong enough before, were made still stronger. In the whole the troops which manned them amounted to about 130,000; of which 70,000 were regulars, and half of them British. Massena arrived in the plains below Torres Vedras on the 11th: he appears to have been taken by surprise at the sight of Wellington's lines; and he employed several days in examining their nature, and in endeavouring to discover a spot through which he might force a passage. Some demonstrations were made in order to compel the British divisions to exhibit their force; and on the 14th there was some fighting between the town of Sobral and the lines, in which the French were defeated by the English bayonet. The war was now reduced to a species of blockade. The heart of Massena was smitten with despair at the sight of the scarped rocks, and the cannon on the eminences; and the object he had in view now was to support his army till re-enforcements should arrive. In the meantime re-enforceinents had arrived in Wellington's camp from England and Gibraltar, so that he had a force numerically equal to that of the enemy. Massena's situation soon, however, became desperate. In order to starve his opponents Lord Wellington brought down the Portuguese militia from the north, and persuaded Carlos d'Espaua to pass the Tagus with a considerable corps of Spaniards, to co-operate in cutting off all communication with the French rear and, as it were, enclosing the blockades. Massena was reduced to such straits for provisions that he was obliged to send movable columns to scour the country; and, on these columns the independent corps of Portuguese Spaniards sought revenge for desolated homes and slaughtered kindred: they were attacked and slain with as little mercy as they had shown to others. Losses by the sword, by sickness, and by privation, amounting to about 15,000 men since the battle of Busaco, at length induced Massena, on the 15th of November, to make a retrograde movement. He withdrew his army from the low wet grounds in front of Torres Vedras, and placed it in cantonments for the winter: the second, or Itegnier's corps, being placed in and near Santarem; the eighth in Perns; the sixth corps further back, in Thomar; while his head-quarters were at Torres

Novas. Before Massena could reach these safe positions, his soldiers were molested by the British light division and cavalry, who took some prisoners. Lord Wellington did not deem it prudent to attack them in these several positions, but leaving part of his army in the lines, he moved forward with the remainder; and having placed Hill's division on the banks of the Tagus, he fixed his head-quarters at Cartaxo. Such were the positions of the belligerent forces during the winter. By his movements Lord Wellington had saved the capital of Portugal, and reduced the enemy to a state of inactivity. The sequel of Massena's invasion of that country belongs to the history of the next year.

AFFAIRS OF SPAIN.

These events in Portugal had the effect of counteracting some of the designs of the French in Spain. During their transaction Soult had been devising measures for the capture of Cadiz; but towards the end of December, instructions arrived requiring him to co-operate with Massena. He repaired to Seville, taking with him Latour Maubourg's cavalry, and 5000 infantry; but such was Lord Wellington's precaution, and such the activity of the partidas, that he could not effect any communication with Massena, as directed. Under these circumstances, Soult represented that as his force was weakened by the blockade of Cadiz, and the protection of Seville, he dared not penetrate into the Alemtejo. This movement, he said, would oblige him to leave Olivenza and Badajoz in his rear, with two Spanish corps under Ballasteros and Mendizabel; and he requested permission to besiege these two places. Napoleon consented to his request, and Soult prepared for a siege of these cities. At this time General Hill was obliged to return home on account of ill health; and the command of the troops, British, Spanish, and Portuguese, on the Tagus, was given to Marshal Beresford. The Marshal's instructions were to prevent the passage of the river; to intercept all communication between Massena and Soult; and to join the main army by Vellada if in retreat, and by Abrantes if in advance. His head-quarters were fixed at Chamusea, and his troops dispersed along the Tagus, from Almey-rim to the mouth of the Zezere. During the winter several attacks were made by the irregular forces and Portuguese militia on the French detachments; but each commander waited for re-enforcements before they assumed offensive operations.

FOREIGN CONQUESTS, ETC.

In other quarters of the world our operations this year were of considerable importance. In the lists of our conquests was that of Santa Maura, added to the other Ionian Islands rescued from the French dominion; the Dutch settlement of Amboyna, with its dependent islands; the Dutch settlement of Banda, the principal of the Spice Islands; and the islands of Bourbon and Mauritius. In the latter island a large quantity-of stores and valuable merchandise, five large frigates, some smaller ships of war, twenty-eight merchantmen, and two British captured East Indiamen were taken by the conquerors. In the West Indies a combined naval and military force, under Admiral Sir Alexander Cochrane and Lieutenant-General Beckwith, made the important conquest of the island of Guadaloupe, the last colonial possession of France. Nearer home the arms of the British were also successful. In the month of July Murat collected a large armament on the coast of Calabria, for the invasion of

Sicily; but 900 of his troops were taken prisoners by General Campbell, and the rest were driven for shelter to their vessels. With similar success the island of Anholt, in the Baltic, was defended by Captain Maurice with 380 men, against a Danish force of eight times the number.

THE MARRIAGE OF NAPOLEON, ETC.

In Paris this year “all went merry as a marriage bell.” After the treaty of Vienna at the close of 1809, Napoleon caused it to be intimated to Josephine that she must be supplanted by an imperial bride; and she submitted to his will. His divorce with the faithful Josephine was soon followed by his marriage with the daughter of the Emperor of Austria. On the 11th of March Berthier, acting as his proxy, received, in the palace of Schonbrunn, the hand of the Archduchess Maria Louisa, who soon left the home of her fathers for France. The act of divorcement from Josephine and Napoleon’s marriage with the Austrian Princess received the sanction of the senate, who in an address expressed their gratitude for the steps he had taken, and predicted that this “child and champion of democracy” would live to see children and grandchildren, who would perpetuate his empire and the glory of France. Yet it was manifest, even to Napoleon himself, that his marriage was looked upon by the nation at large with dislike. His own clergy, in fact, were ashamed of the scene of the celebration of the marriage at St. Cloud, deeming it neither more nor less than an act of bigamy, while very few of the cardinals or prelates would sanction it by their presence, As for the mass of the people, among them there was a great party that still loathed the name of hereditary monarchy, and that thought it monstrous that a son of the revolution should ally himself with a branch of the “corporation of tyrants.” His marriage, in a word, was universally admitted to be a capital error in his political career. Mignet says:—“Napoleon quitted his position and part as a parvenu and revolutionary monarch, who had been acting in Europe against the ancient courts, as the republic had acted against the ancient governments; he placed himself in a bad situation with respect to Austria, which he ought to have crushed after his victory of Wagram, or to have re-established in her possessions after his marriage with the Archduchess. Solid alliances repose only upon real interests, and Napoleon could deprive the cabinet of Vienna neither of the will nor the power to fight him again. This marriage changed also the character of his empire, and separated it still more from the popular feelings and interests; for he now sought after the old French families to decorate his court, and he did all that he could in order to mix and unite together the ancient noblesse and his new noblesse, even as he had mixed royal dynasties.” Men were not wanting, however, who thought they saw in this union the guarantee of the welfare of the world and the beginning of a golden age; who conceived that this connexion of the favourite of fortune with one of the most illustrious houses of Christendom would reconcile the revolution with its opponents. “But after fortune had done everything for her ungrateful bosom-child; after the Corsican master of war had arrived to such a degree of glory and power as no mortal had attained before him, he wantonly overthrew by his insatiable ambition the colossal edifice of his grandeur.” Some of the acts which tended to his final downfall have been recorded in previous pages: this year added to their number. In the first place, the territory of the Prince Primas was augmented by Hanan and Fulda, and

elevated to the grand duchy of Frankfort; but it was declared the hereditary portion of Prince Eugene Beauharnois, because for the future no temporal dominion was to be united with spiritual dignities. At the same time the remnant of the electorate of Hanover was adjoined to the kingdom of Westphalia, reserving a certain revenue for France: and other decrees equally despotic regulated the aggrandizements of Bavaria and Wurtemberg. But one of the most despotic acts which was committed by Napoleon during this year had reference to Holland. To appease his wrath and gratify his revenge, Louis, Napoleon's brother, and King of Holland, interdicted all commerce with England, and agreed that a French army should be established on the coast of Holland for the purpose of seeing this interdict put into execution. Holland was also to equip a fleet for the service of France, and to cede Dutch Brabant, Zealand, and other territories to this insatiable empire. Yet, after all, Napoleon was not satisfied with his brother's rule. French troops approached the capital of Holland, and Louis abdicated in favour of his eldest son, and sought refuge in Austria. Immediately after Napoleon proclaimed the union of Holland with France, and the people of that country were compelled to submit to his lordly will. By the union of the two countries the empire of France numbered 130 departments, and a population of 42,000,000, and Napoleon ruled this vast empire with absolute power. All Europe, in fact, submitted to his yoke in silence: England alone continued the war both by sea and land. But Russia was beginning to wake as from a dream, and to arise "against the world-empire, which approached nearer and nearer to her frontier." The day of retribution was fast approaching, a day when God and man united to punish this haughty ruler of France and his people, for all the desolations they had commited over the fair face of creation. As they had done unto others, so it happened unto them.

{GEORGE III. 1809—1812}

ILLNESS OF HIS MAJESTY—OPENING OF PARLIAMENT, ETC.

By the non-attendance of his majesty at the opening and closing of the session of parliament for some time, it had been suspected that he was suffering under his old distressing malady. This was found to be too true. His illness has been referred to several proximate causes, both of a public and private nature. The cause, however, most commonly assigned for his affliction was the illness and death of his favourite daughter, the Princess Amelia. As her end drew near, she placed a mourning-ring, with the inscription, "Remember me," on the finger of her doating parent, and it is said that he never recovered the shock thus given to his feelings. His mental distress became immediately great, and in a few days the royal family were alarmed by symptoms of that fearful malady which ever afterwards afflicted him. This was on the 20th or 21st of August; and on the 25th, the anniversary of the king's accession to the throne, it was publicly announced that his majesty was labouring under his old complaint. Parliament stood prorogued till the 1st of November, on which day both houses assembled. As the king, however, was not present, and as no communication could be sent, there was no power either to prorogue or to open parliament. Under these circumstances an adjournment for fifteen days was proposed in both houses,

and agreed to, and successive adjournments took place until the 13th of December, when they finally met for the transaction of business. In the meantime committees had been appointed to examine the attendant physicians respecting his majesty's health. From them it appeared that there were very slight hopes of his recovery, at least for a considerable period; and, besides, the chancellor of the exchequer had by this time took measures for the appointment of a regency. He brought forward three propositions: one, declaring the king's incapacity for the performance of the functions of royalty; a second, asserting the right of the two houses to supply this defect in the executive power; and a third, that means should be devised for giving the royal assent to a bill on the exercise of the regal authority during his majesty's indisposition. The two former of these propositions were assented to without a division, though not without some opposition from Sir Francis Burdett, who declared his solemn protest against the whole proceedings, as aiming a mortal blow against the constitution. Against the third proposition several exceptions were taken. Mr. Ponsonby, indeed, denied that the houses had a right to command the chancellor to apply the king's seal to an act which was thence to be considered as having the royal sanction, and he moved for an address to the Prince of Wales, praying him to take the regal functions on him during his majesty's illness. Sir Samuel Romilly thought the resolutions inconsistent with each other. He remarked:—"In one, the right of the lords and commons to fill up the vacancy is asserted; and yet that vacancy being acknowledged, the royal assent to a bill is to be procured, to which his majesty can give no assent: the will of the lords and common: can in nowise be construed into the king's will; nor can they by any means legislate for the nation. As well might a set of men in common life make a contract for an insane person, and then employ an individual as his solicitor to affix his seal and signature to the deed: in fact, the personal presence of the king, or of a commission signed by him, was essential to every act of legislation; and if the house could dispense with this in one case, they might in others; they might make war or peace, and say such was the king's pleasure." Mr. Ponsonby's motion for an address to the prince was rejected by two hundred and sixty-nine against one hundred and fifty-seven. All the original resolutions were therefore carried, and the same three resolutions were likewise agreed to by the lords. Mr. Perceval, now, on the 3rd of December, proposed the same limitations and restrictions on the powers of the regent as were passed in 1788. These limitations and restrictions were contained in five resolutions. The first four of these resolutions were agreed to on the same day; but the fifth, relating to the care of his majesty's person was postponed till the next day.

{A.D. 1811}

The fifth resolution of the regency bill was not settled for some days. On the 1st of January an amendment to it, tending to diminish the expenses of the king's household, and to curtail the authority of the queen over that household, was carried against ministers by a majority of thirteen; and this decision was confirmed the next day by the rejection of an amendment moved by Mr. Perceval, which went to restore the fifth resolution to its original state. All the resolutions were then sent up to the lords, who, after some discussion, agreed to them; inserting an amendment in the

second for allowing the regent to bestow the peerage upon deserving civilians, lawyers, etc. The commons readily agreed to this alteration in the second clause; and, by an act founded upon the whole, it was provided that the restrictions upon the royal authority, as exercised by the regent, should continue till the 1st of February, 1812, if parliament should be then assembled, and should have been sitting six weeks previously; otherwise, till the expiration of six weeks from the assembling of parliament after that day. A deputation now waited on the prince regent and the queen, to acquaint them with the resolutions which had been passed, and both accepted the office proposed to them, though the prince complained that his powers were to be exercised under so many restrictions and limitations. Their replies were reported to parliament on the 11th of January, when Lord Liverpool moved in the lords a resolution for putting the great seal to a commission for opening the parliament under the regency. This resolution passed the lords, after some opposition from Earl Grey, by a majority of fifty-one against thirty-three, and it was afterwards agreed to by the commons; and then both houses adjourned until the 15th of January, when the session was to be opened for the despatch of business under the regency by the commission thus appointed.

OPENING OF PARLIAMENT BY THE REGENT

Parliament was not opened till the 12th of February, on which day the prince regent, having been previously installed at Carlton-house, opened it by commission. The speech delivered upon this occasion by the commissioners in the regent’s name dwelt upon the success of our armies in the Indian seas, and the repulse of the French and Neapolitans in their attack on Sicily; upon the failures of the French in Portugal and at Cadiz; and it expressed a hope that parliament would enable the regent to continue the most effectual assistance to the brave nations of the Peninsula. The whole speech breathed a warlike spirit; and though some deprecated war in the debate which followed on the addresses, they were carried in both houses without a division.

DEBATE ON THE RE-APPOINTMENT OF THE DUKE OF YORK TO THE WAR-OFFICE.

Soon after the installation of the prince regent it was reported that he intended to restore the Duke of York to the office of commander-in-chief of the forces. During the investigation the duke had been warmly defended by the Perceval administration, so that the report was not likely to be ill-founded. On the 25th of May, indeed, the duke’s reappointment was gazetted; and, although the nation seems generally to have acquiesced in the measure, it did not pass without some animadversion in parliament. Lord Milton moved in the commons, that it had been highly improper and indecorous in the advisers of the regent to recommend the reappointment; but he found few supporters, the motion being lost by a majority of two hundred and ninety-six against forty-seven. The duke signalized his return to office by re-establishing regimental schools on Bell’s system.

THE SUPPLIES.

Mr. Perceval brought forward his budget on the 20th of May. The supplies demanded and voted for the year amounted to £58,021,869; out of which sum £20,276,144 were appropriated to the navy; £23,269,940 to the army; £5,012,378 to the ordnance; £2,100,000 to subsidies, etc., for Portugal; and £400,000 as a subsidy to Sicily.

THE BULLION COMMITTEE, ETC.

At this period, from our differences with America, which were not yet settled, as well as from Napoleon's continental system, a considerable commercial depression was felt, together with a derangement in the money-market, arising in a great measure from the necessity that existed of constantly sending specie to the continent. During the preceding year Mr. Horner had obtained the appointment of a committee to inquire into the reason of the high price of gold bullion, and the state of the circulating medium, and of the exchanges between Great Britain and foreign parts. The report of this bullion committee was presented by Mr. Horner on the 6th of May, on which occasion he addressed the house in an elaborate speech, advocating a speedy return to cash-payments, as the only means of saving the credit of the country. The report itself, indeed, tended to recommend this measure to parliament. It stated, that there was an excess in the paper circulation, of which the most unequivocal symptom was the very high price of bullion, and, next to that, the low state of the continental exchanges; that the cause of this excess of bank-notes was to be found in the suspension of cash-payments; there being no adequate provision against such an excess, except in the convertibility of paper into specie; and that the unfavourable state of the exchanges originated in the same cause, and was further increased by the anti-commercial measures of the enemy. The report added, that the committee could see no remedy for the present or security for the future, except the repeal of the Suspension Act; that they thought this could not safely be done at an earlier period than two years from the time of their report; but that they recommended parliament to make early provision for this purpose. This subject occupied the house four long nights, but Mr. Horner's resolutions were all rejected. Subsequently, however, a bill was carried in the lords, which declared that bank-notes should be taken only at their professed value, and deprived the landlord of a summary remedy by distress whenever tender had been made in bank-notes. This bill was strongly opposed in the commons; but it was eventually carried by majorities of about four to one. In the lords, the bill was chiefly opposed by Lord King, who argued that it would create additional mischiefs and inconveniences; that landlords would refuse to grant leases; and that the bill could not effect the object which it professed to have in view, or retard depreciation of bank-notes. Lord King had recently issued a circular-letter to his tenants, that he would no longer receive bank-notes at par, but that his rents must for the future be paid either in English guineas, or in equivalent weight of Portuguese gold coin, or in bank notes amounting to a sum sufficient to purchase such an equivalent weight of gold. In his reply to Lord King's objections, made in the lords, the chancellor, Eldon, insisted that the claim set forth in this circular to his tenants was oppressive and unjust, and that the bill was necessary to prevent such a grievous oppression. He remarked:—"The restriction act of 1797 interfered so far with individual contracts as to say that a debtor should not

be arrested, if he tendered his debt in bank-notes: the justice of that enactment has never been, disputed; and is it now to be said, that a tenant shall have his goods or stock seized, because he cannot pay in gold, which is not to be procured? Let us suppose a young professional man, struggling with the world, who has a rent to pay of £90 per annum, and who has £3,000 in the bank, in the three per cents. His lordship demands his rent in gold, but the bank refuses to pay the tenant his dividend in gold. Would not the tenant have a right to say—' As a public creditor, I am refused any other payment than in bank-notes; but here is a legislator—one of those by whose act of parliament I am thus refused to be paid except in bank-notes, insisting up on my paying him his rent in gold, which I cannot procure; and because I cannot procure it, my goods are to be distrained?' Would not this be a grievous oppression? Surely, so long as it should be expedient to continue the cash-suspension act of 1797, this present bill must become a part of it; for otherwise there would be no equality in the situation of different contracting parties, nor would equal justice be dealt out to those who had an equal claim to it; as there could be no justice in leaving the tenant who had tendered bank-notes exposed to be distrained upon by his landlord, whilst the debtor, in other cases, who had tendered bank-notes was exempted from arrest."

SUBJECT OF MILITARY DISCIPLINE.

During this session, the subject of military punishment was discussed in the commons. On this subject Sir Francis Burdett particularly distinguished himself. He moved an address on the subject to the prince regent, in doing which he remarked:—"There are but few persons who know what is the dreadful manner in which this torture is inflicted. The instrument, formed of pieces of whipcord, each as thick as a quill, and knotted, is applied by the main strength of fresh men, relieving each other, until human nature can bear no more; and then, if pains are taken to recover the unhappy sufferer, it is only that he may undergo fresh agony. The most disgusting part of the whole transaction is the attendance of a surgeon—whose business seems to be a profanation of the healing art—to detect any lingering principle of life, which can enable the wretched man to undergo more suffering. I do not believe that in the description which the poets give of hell there are any tortures equal to what is called a military punishment." Sir Francis was ably seconded by Mr. Brougham, who contrasted the conduct of the Duke of Cumberland with the more noble conduct of the Duke of Gloucester, whose regiment was in the highest state of discipline, although there had not been a single flogging in it for more than two years. But though the house had been prepared to ameliorate the condition of the slaves of India, the members were not yet in a temper to soften that of their brethren at home: and the address was rejected by a large majority. Subsequently they showed still less sympathy with the sufferings of their fellow-subjects. A corporal in a militia regiment had been sentenced to one thousand lashes. He received two hundred of these; but it was found that he could not endure anymore, and he was placed in the hospital for three months; when, having recovered, he had the option of undergoing the rest of his sentence, or of serving in a condemned regiment for life in the West Indies, which latter alternative he chose rather than expire under the lash. Colonel Wardle moved for inquiry into this case, and only one was found to vote with him. This apathy manifested in the commons tended to increase the desire of

parliamentary reform among the people.

LOUD SIDMOUTH’S MOTION RESPECTING DISSENTING PREACHERS.

In the course of this session Lord Sidmouth introduced a bill, as an amendment of the toleration act; prohibiting any person from obtaining a license to preach, unless he obtained the recommendation of at least six respectable householders of the congregation to which he belonged, such congregation being willing to listen to his instructions. The bill also required that those who intended to be itinerants should bring testimonials, stating that they were men of sober life and character, and qualified to perform the functions to which they aspired. This bill raised a great sensation among dissenters, it being considered liable to be perverted to purposes of intolerance. It encountered, indeed, such a storm of opposition, and the house was so inundated with petitions, that when it came to be read a second time it was rejected without a division.

AFFAIRS OF THE IRISH CATHOLICS.

It was generally understood among the Irish Catholics that the prince regent was favourable to their claims, and his investment with power contributed to increase their activity and zeal. Among other measures, they proposed to establish a committee in Dublin, composed of delegates from each country, for the management of their affairs. But this was deemed unlawful by government; and Mr. Wellesley Pole, the Irish secretary, sent a circular-letter to all the sheriffs and county magistrates, requiring them to arrest all persons engaged in such elections. This letter being brought before parliament excited much discussion; and on the 3rd of March Mr. Pole, having returned from Ireland, stated in explanation that the Catholic committee of 1809, had confined their deliberations to petitioning, whereas the delegates of 1810 were empowered to manage the affairs of the Catholics generally; and that a committee of grievances, which met weekly, imitated all the forms of the house of commons. The opinion of the great law-officers, he said, had been taken by the lord-lieutenant, and the attorney-general had drawn up the circular. This explanation had a due effect noon the house; for when the petition which had been prepared by the committee was presented, although it was supported by the eloquence of Grattan, it was rejected by a majority of one hundred and forty-six against eighty-three. It shared the same fate in the lords, it being thought dangerous to grant any power to men who would be likely to abuse it. The rejection of this petition caused great disturbances in Ireland.

AMENDMENT OF THE CRIMINAL LAW

Among the various statutes of this session there were two which tended to diminish, in the instances of stealing linen and cotton from fields and out-buildings, that long list of offences to which our law assigned the punishment of death. Three other bills, having a similar tendency were passed in the commons, but were rejected by the lords. All these bills were brought in by that enlightened legislator, Sir Samuel Romilly.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 24th of July by commission. The speech expressed the regent’s approbation of the wisdom and firmness which the two houses had manifested, in enabling him to continue the exertions of the country in the case of our allies, and to prosecute the war with increased activity and vigour. At this time there was an end of all hopes of his majesty’s ability to resume the functions of royalty. In the early part of the year his health underwent some variations, with lucid intervals; but the report of the queen’s council on the 8th of July stated that his majesty was totally unable to resume his kingly duties.

DISPUTES WITH AMERICA.

The orders in council not being repealed on the 2nd of February, Mr. Pinkney, the American minister in London, was recalled. He had his audience of leave on the 1st of March, from which time the American ports were closed against English ships, and open to those of our enemy. Attempts were made, in the course of the summer, to effect an adjustment of the subjects in dispute; but these failed, and on the meeting of congress in November, the president recommended vigorous measures of preparation both by sea and land. The finances of the American government, however, were little suited to meet the expense of a war; and the friends of peace, though outvoted in the legislative assemblies, yet felt confident that the prospect of loans and taxes would cool the military ardour of a people unaccustomed to such burthens.

CAPTURE OF JAVA.

A formidable expedition was this year fitted out by Lord Minto, Governor-General of India, and placed under the command of Sir Samuel Auchmuty, against the Dutch settlements in the island of Java. A landing was effected without opposition on the 5th of August, and by the 8th the city of Batavia was captured without resistance. Its garrison retreated to a fortified position within two miles of Cornells, where General Jansens was stationed with the principal Dutch force. These works were now assailed, and they were carried by assault on the 26th; and the whole of the Dutch army was either killed, captured, or dispersed. Jansens fled to Samarang, and prepared for defence; but he was soon compelled to capitulate, and then the whole island of Java surrendered to the British arms.

AFFAIRS OF PORTUGAL.

During the months of January and February the English and French armies in Portugal remained in their respective positions. The French marshal, Massena, was re-enforced by the ninth corps, under General Drouet; and about the same time Soult received orders from Napoleon to act in concert with him by attacking Portugal south of the Tagus; and a new French army was formed in the north of Spain, consisting of about 70,000 men, and placed under Marshal Bessières, who was ordered to give all the assistance he could to the army of Portugal. Soult, as before seen, moved towards the frontiers of Portugal; but deemed it indispensable to reduce Olivenza and Badajoz, before he crossed them, lest he should leave a Spanish garrison in his rear. Napoleon had given his generals directions to keep the English in check, and to cause

them loss of men every day by engagements of advanced guards, until the season became favourable for main operations. Wellington, however, was too cautious to waste his army in affairs of advanced guards, or in any useless skirmishes or operations, so that he kept his forces entire; and at the beginning of March he was re-enforced by about 7000 men. By this time Massena's army had so eaten up the country that he found it necessary to move his quarters. He retreated to the frontiers of Spain, followed by the English, who in the course of the pursuit cut off many of the fugitives, and took much baggage and ammunition. When, indeed, Massena, recrossed the frontiers of Spain, his loss, including the sick and wounded, amounted to no less than 45,000 men. But Massena still counted 40,000 men, besides the garrison left in Almeida; and having placed his army in cantonments between the Coa and Agueda, and given instructions for the blockade of Almeida, Lord Wellington departed for the south, to see the state of affairs on the Guadiana and the country near Badajoz. Thus terminated the third French invasion of Portugal.

AFFAIRS OF SPAIN, CAPTURE OF BADAJOZ, ETC.

During his pursuit of the French army, Lord Wellington was mortified by the intelligence that Soult had captured Badajoz. He had besought the governor, General Menacho, to make a good stand, and promised him speedy assistance; but, unfortunately, the Governor was killed by a cannon-ball, and the command of the garrison devolved upon General Imaz, who proved unworthy of his trust. Although General Imaz knew that Massena was retreating, and that Wellington would soon send him succours, before any practicable breach was made in the walls; and although he was able to hold out for one month, he held up the white flag and suspended hostilities. Badajoz was surrendered on the 11th of March, the garrisons becoming prisoners of war: 9000 Spaniards surrendered to a besieging army which did not exceed 9600 infantry, and 2000 cavalry.

After the fall of Badajoz Soult put his troops in motion to cross the Guadiana and the southern frontier of Portugal; but intelligence from Andalusia induced him to give up the command to Mortier, and to repair to Seville. General Graham, who commanded at Cadiz, when Soult departed from thence, concerted a plan with the Spaniards to drive Marshal Victor out of his lines. For this purpose 10,000 infantry, and 600 cavalry of the allies, being embarked at Cadiz, were landed in February at Algesiras, from which place they marched to Tarifa. At Tarifa they were joined by a considerable British, German, and Portuguese force, and the whole was placed under the command of the Spanish General La Peha. The combined forces marched in the direction of Medina Sidonia, and when within four leagues of the enemy's posts, they were re-organized: the vanguard being given to General Lardizabal; the centre to the Prince of Anglona; the reserve, composed of the British and two Spanish regiments, to Graham; and the cavalry to Colonel Whittingham, an English officer in the Spanish service. On the morning of the 5th of March the allies arrived on the low ridge of Barossa, about four miles from the mouth of the river Santi Petri. A successful attack on the rear of the enemy's lines opened the communication with the Isle of Leon; after which General Graham moved down to the Torre de Bermesa, about halfway to the Santi Petri, to secure the communication across that river, over which a bridge

had been recently thrown. He moved on through the wood in front, but when he had advanced into the middle of the wood, he received notice that the enemy was advancing towards the heights of Barossa; and considering that position as the key to Santi Petri, he instantly made a counter-march to support the troops left for its defence. Before the troops of Graham, however, could reach the ridge of Barossa, the troops left for its defence were obliged to retire, and the left wing of the enemy was rapidly ascending those heights. To retreat in the face of a superior enemy would have exposed the allies to great danger; and, relying on the courage of his troops, General Graham determined on an immediate attack. He was successful: in an hour and a half the French were in full retreat, leaving behind them 3000 killed and prisoners, and some of their cannon. The English, however, lost 1,243 in killed and wounded, among whom were several officers high in estimation; and General Graham finding it impossible to procure supplies, withdrew the next day across the Santi Petri, and afterwards returned to the Isle of Leon. La Peira, whose co-operation in this movement did him no honour, returned with his forces to Cadiz, and the French resumed the blockade.

In the meantime Marshal Beresford, acting under the directions of Lord Wellington, had directed his efforts against Badajoz. He invested that city on the 8th of May; but he had scarcely commenced the siege when intelligence arrived that Soult was returning thither with 15,000 men for its relief. Beresford immediately suspended his operations, removed the battering cannon and stores to Elvas, and being joined on the 14th by the Spanish Generals Castanos and Blake prepared to meet the enemy. Soult appeared in front of the allies, with a force of about 20,000 men; 5000 having joined him in his route. They were attacked by him on the next day; but after a fearful slaughter on both sides, the enemy was driven back across the river. Soult retired to the ground he had previously occupied; and on the night of the 17th he commenced his retreat towards Seville, leaving Badajoz to its own defence. The British sustained a greater loss in this battle than in any that had been fought in the Peninsula; but the steadiness and gallantry of the troops obtained the highest commendations not only from their commander, but from both houses of parliament.

Shortly after this battle Lord Wellington joined General Beresford, and the siege of Badajoz was recommenced. He had left his army opposed to Massena in the north of Portugal under General Spencer, and about this time Massena was recalled to France, and Marmont became Spencer’s opponent. Marmont was resolved to succour Badajoz, if possible; and for this purpose he sent 15,000 men, under Drouet, to re-enforce Sonlt if he should be again able to advance to its relief. This had the effect of quickening Lord Wellington’s operations upon Badajoz: two different attacks were made upon it; but though his troops behaved with their accustomed valour, both attempts failed, and the siege was soon after raised.

In other parts of Spain during this year, the patriots were equally unfortunate. Thus the French marshal Suchet took Tarragona by assault; General Blake was repulsed by the enemy in an attack on Niebla; Soult defeated the army of Marcia, in the vicinity of Baza; Figueras was retaken by the French general, Macdonald; the Spanish general, Abudia, was defeated by Dorsenne in the vicinity of Astorga; Suchet

captured the town and castle of Murviedro; and General Blake was attacked by Suchet in December, and compelled to retire within the walls of Valencia. On the 4th of September Lord Wellington formed the blockade of Ciudad Rodrigo; but on the 25th he retired, and his rear was attacked by Marmont. The infantry, however, forming a square, and presenting a firm front, retreated without being broken. General Hill, with a division of the allied army, surprised and completely routed a French column on the 28th of October, taking 1400 prisoners and all Girard's artillery, baggage, &c., together with the money which he had levied at Merida. About the same time also the Baron d'Eroles defeated the French near Perigeorda. After Marmont had relieved Ciudad Rodrigo he retraced his steps to the valley of the Tagus; and the allied army went into cantonments, Lord Wellington resolving in the course of the winter to collect such materials as would enable him to carry Ciudad Rodrigo by a more effectual and rapid method than that of blockade.

{GEORGE III. 1809—1812}

NAVAL AFFAIRS

The navy of England had not at this period any adequate antagonist to encounter, so that it was only by occasional surprises that it could perform any achievements. During this year, however, there were several severe frigate fights and in-shore operations. In the Adriatic Sea, Captain William Hoste obtained, on the 13th of March, with four English frigates, a complete victory over five French frigates and six smaller vessels, with five hundred men on board. Another victory was gained near Foul Point, Madagascar, by Captain Schomberg, who with three frigates and a sloop recovered Tamatava, which had been recently recaptured by the French, and captured all the vessels in the port, including the commodore's frigate. A gallant exploit was also performed at Sagone-bay in the island of Corsica by Captain Barrie, who with three frigates burned three armed vessels laden with timber for the dock-yards at Toulon, although they were protected by strong batteries and a martello-tower, and defended by two hundred soldiers. On the 24th of August, likewise, Captain Ferris, hoisting French colours, sailed up the Garonne, and captured five French vessels without losing a single man in the enterprise. The actions of this year, indeed, are too numerous to recount. Our fleets and squadrons were engaged in all the four quarters of the globe, and the vessels of the enemy could nowhere move in safety while his coast was kept in continual alarm.

AFFAIRS OF FRANCE.

Fortune still seemed to smile on Napoleon. According to outward appearance everything was still in his favour. On the 20th of March his cup of prosperity seemed to be full; for his empress, Maria Louisa, was safely delivered of a son, to whom was given the titles of Napoleon Francis Charles Joseph, Prince of the French Empire, and King of Rome! Congratulatory addresses were poured in from all the departments and all the principal cities of France, as well as from Belgium, Holland, the Hanse Towns, the confederated states of the Rhine, and from Italy. Soon after this Napoleon

opened the session of the _Corps Législatif_. In his speech he told the members that his son would answer the expectations of France, and bear to their children the sentiments which his father now bore to them; that they must never forget that their happiness and glory were dependent on the prosperity of the throne which he had raised, consolidated, and aggrandized by them and for them, and that the love of France was their first duty. This must have sounded oddly in the ears of some of the members; for at this time Dutchmen from Holland, &c., Germans from the Hanse Towns, Swiss from the Valais, which was now incorporated with France, and Italians from the confiscated states of the church had taken their seats in the _Corps Législatif_. With conscious pride Napoleon also declared to these “complaisant tools of tyranny,” that French dominion during the last year had been extended over sixteen departments, containing five millions of people; the mouths of the Rhine, Meuse, and Scheldt, together with the whole course of the latter river, were now French; that improvements on a gigantic scale had taken place throughout the empire; and that its finances were in such a state that France could go on for ten years without borrowing money. It is possible, however, that Napoleon in making this last assertion had an eye to the plunder of some rich kingdoms, for it was well known that France was not in a prosperous condition. At this very time, indeed, the French, having lost their colonies, were substituting roasted horse-beans for coffee, and extracting sugar from beetroot. The boast of Napoleon, however, was pleasing to a vain-glorious people, and none dared dispute his word. Subsequently to making it, accompanied by his young empress, he visited Ostend, Antwerp, and Amsterdam, where he announced the division of the departments of Holland, and their proportion of the annual expenses. On his return to Paris, however, the course of events bid fair to run more roughly with Napoleon than they had hitherto done. All the cabinets of Europe were at this time anxious to break their fetters, and a rupture with Russia had become inevitable. The czar was offended by Napoleon’s seizure of Oldenburg, the extension of the Grand Duchy of Warsaw, and the continued occupation of Dantzic, and prepared for a contest; and Napoleon replied to his menaces by angry complaints, and by calling out fresh conscripts in order to meet him in the field. At the close of the year 1811 the preparations for war were on such a gigantic scale, that most men in France saw they would be followed by an unprecedented campaign.

CHAPTER XXIX.

{GEORGE III. 1812—1814}

Meeting of Parliament..... Augmentation of the Civil List..... Bill for Prohibiting the Grant of Offices in Reversion, &c. Changes in the Ministry, &e..... Attacks upon Ministers..... Assassination of Mr. Perceval..... Administration of Lord Liverpool..... Financial Statements..... Population Returns, &c. Bill for Preservation of the Peace..... Bill to extend the Privileges of Dissenters..... Prorogation of Parliament, &e..... Capture of Ciudad Rodrigo by the British..... Storm and Capture of Badajoz..... Operations in Spain..... War between France and Russia..... War with America..... Meeting of the New Parliament..... Debates on the War with America..... Financial

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MEETING OF PARLIAMENT.

{A.D. 1812}

Parliament reassembled on the 7th of January, when the speech of the prince-regent was delivered by commission. It dwelt chiefly on the events which had happened in the Peninsula, and on the differences which existed between England and America. The addresses were carried in both houses without a division, though not without debate and censure. In the lords, Grenville and Grey denounced the measures of government in no very soft language as regarded their war and foreign policy, and uttered some predictions of calamities which must follow any new rupture with America. In the commons Sir Francis Burdett proposed instead of an address a strong remonstrance to the regent, containing an elaborate statement of grievances, among which the constitution of the house was one of the most conspicuous. In making this proposal, the right honourable baronet declared that Englishmen for the last eighteen years had been daily losing their liberty; that a detestation of French liberty had produced the present war; that nothing had been done for Spain, and that if its cause was now taken up by the British government it had become hopeless; that the victories won by our armies were useless; and that parliament should be reformed.

AUGMENTATION OF THE CIVIL LIST.

At this time no change had taken place in the indisposition of the king. The general impression on the minds of the people, indeed, was that his recovery was hopeless, that the remainder of his days would be spent in mental debility. This impression was heightened when, in the house of commons, in a committee to consider the question of the king's household, Mr. Perceval stated that, according to the physicians, the expectation of his majesty's recovery was diminished. Under these circumstances he laid before the house the measures proposed to be adopted. Several objections were taken to his plan; but the following resolutions were finally agreed to:—"1. That, for making provision for the due arrangement of his majesty's household, and for the exercise of the royal authority during the continuance of his majesty's indisposition, and for the purpose of enabling the queen to meet the increased expenses to which, in consequence of such indisposition, her majesty may be exposed, there be granted out of the consolidated fund of Great Britain the yearly sum of £70,000. 2. That it is expedient that provision be made for defraying the expenses incident to the assumption of the personal exercise of the royal authority by his royal highness the prince regent, in the name and on the behalf of his majesty." The bill framed upon these resolutions encountered some opposition, but they passed triumphantly. A large addition was also subsequently made to the income of the princesses; and it was in vain that some honourable members pleaded internal distress, and urged that

such demands were not needed: the courtly zeal of parliament prevailed.

BILL FOR PROHIBITING THE GRANT OF OFFICES IN REVERSION, ETC.

As the bill for prohibiting the grant of offices in reversion was now about to expire, Mr. Bankes introduced a new bill in order to render the measure permanent. This was opposed on the second reading by Mr. Perceval, and thrown out; and then Mr. Bankes proposed a bill for the same purpose, but limited to two years. This met with no opposition in the commons, and it was carried through the lords after the rejection of an amendment proposed by Earl Grosvenor for continuing its operation to 1840. At a later date Mr. Bankes brought in a bill for utterly abolishing many sinecure places, and this was carried against ministers by a majority of one hundred and thirty-four against one hundred and twenty-three. On the 7th of May Mr. Creevey also called the serious attention to the tellerships of the exchequer, now held by the Marquess of Buckingham and Lord Camden, which offices were as old as the exchequer itself, and conferred a vested right, with which it was held parliament could not interfere. He moved a series of resolutions, the last of which declared:—"That it is the duty of parliament in the present unparalleled state of national expenditure and public calamity, to exercise its rights still further over the fees now paid out of the public money at the exchequer, so as to confine the profits of the two tellers to some fixed and settled sum of money more conformable in amount to the usual grants of public money for public services, etc." Ministers opposed this motion, and it was lost without a division. An amendment, likewise, proposed by Mr. Brand, for appointing a committee to inquire into precedents, was rejected by a large majority. In these debates the greater part of the opposition took the part of ministers, but in the minority were Whitbread, General Fergusson, Lord Tavistock, Lord Archibald Hamilton, and Mr. Brougham. But though parliament would not interfere in these vested rights, in November of this year the two noble tellers intimated their intention of appropriating to the public service a third of their salary and fees from the 5th of January next to the end of the war: this was an act of true patriotism. Before the session closed an attack was made upon another patent place, that of the office of registrar of the admiralty and prize courts. A bill for regulating this office was brought in by Mr. Henry Martin, but it was rejected by a majority of sixty-five against twenty-seven. In the course of this last debate it was made to appear that Lord Arden, the registrar, whose fees amounted to about £12,000 a year, had made £7000 a year more by interest and profits of suitors' money, and that he had sometimes above £200,000 of such money employed at interest. A bill, however, proposed by Mr. Perceval himself, which declared that the registrar should be entitled to one-third part only of the fees of his office, and that the remaining two-thirds should go to the consolidated fund, was carried, though not without some opposition. This was noble conduct on the part of Mr. Perceval; for this office had been granted in reversion to his elder brother, Lord Arden, and after Lord Arden's death it was to revert to Mr. Perceval himself. Its merits were, however, lowered by the consideration that the reductions of emoluments were not to take place till after the expiration of the existing present and reversionary interests; that is, till after the deaths of Lord Arden and Mr. Perceval.

CHANGES IN THE MINISTRY, ETC.

At this period the present cabinet was not only weak but distracted. The Marquess Wellesley, indeed, who was dissatisfied with some of his colleagues, had signified his intention of resigning almost as soon as parliament met, although he agreed to hold office till the expiration of the year to which the restrictions on the regent were limited. He resigned on the 19th of February, and he was succeeded as secretary for foreign affairs by Lord Castlereagh. Six days before the resignation of Marquess Wellesley the regent wrote a letter to his brother, the Duke of York, in which he began with alluding to the fast approaching expiration of the restrictions; stated that motives of filial affection had induced him to continue the present cabinet; adverted to the success of his first year's administration, and expressed a hope that a new era was arriving. He concluded with these words:—"Having made this communication of my sentiments, I cannot conclude without expressing the gratification I should feel if some of those persons with whom the early habits of my public life were formed would strengthen my hands, and constitute a part of my government. With such support, and aided by a vigorous and united administration, founded on the most liberal basis, I shall look with additional confidence to a prosperous issue of the most arduous contest in which Great Britain was ever engaged. You are authorized to communicate these sentiments to Lord Grey, who I. have no doubt will make them known to Lord Grenville." The prince's letter was shown to both Grey and Grenville, but they flatly refused to join the Perceval administration. The letter, and their reply to the Duke of York, were published in all the newspapers of the kingdom, and from this moment the Whigs began to revile the Prince of Wales, whom they had so long flattered and applauded. They had anticipated a return to power under his rule; and when they discovered that he adhered to his father's line of policy, they no longer looked up to him as their rising sun. The old cry was indeed raised, that there was something behind the throne stronger than the throne itself, something that was subversive of the constitution. Earl Grey declared in the house of lords that the ministry depended for its existence upon an unseen influence; a power alien to the constitution; a disgusting and disastrous influence which consolidated abuses into a system, and which prevented both complaint and advice from reaching the royal ear; an influence which it was the duty of parliament to set its branding mark upon. Both in and out of parliament it was asserted that Lord Castlereagh's return to office was the effect of the influence of a certain lady, and the auspices of the Hertford family.

ATTACKS UPON MINISTERS.

These murmurs broke out into open attacks upon the cabinet. On the 19th of March Lord Boringdon moved in the house of lords for an address to the prince regent, beseeching him to form an administration so composed as to unite the confidence and good will of all classes of his majesty's subjects. His real meaning was that the regent should form a Grey and Grenville administration; but his irregular, if not unconstitutional motion, was got rid of by an amendment proposed by Lord Grimstone, which was carried by one hundred and sixty-five against seventy-two. A more violent attack on the ministry was subsequently made by Lord Donoughmore, when he moved for a committee on the Roman Catholic claims; but though his

lordship’s motion was seconded by the Duke of Sussex his motion was lost: his speech was too much tainted with private pique to be heeded by parliament. A similar motion, urged by the eloquence of Mr. Grattan in the commons, met with a similar fate. At a later period, however, Mr. Canning carried a motion in opposition to ministers, pledging the house to consider early next session the state of the laws affecting the Roman Catholics of Great Britain and Ireland. In the lords a similar proposal made by the Marquis Wellesley was rejected.

ASSASSINATION OF MR. PERCEVAL.

During this session, as the continuance of outrages in several of the manufacturing counties continued, a severe law was enacted, which made the breaking of frames and administration of oaths a capital felony. These commotions were generally attributed to the operation of our orders in council, diminishing the demands for articles of British manufacture; and petitions were presented to both houses for a revocation of these edicts. In compliance with the general wish, a formal inquiry was instituted; but while it was depending, its leader was suddenly cut off by a tragical death. As Mr. Perceval, on the 11th of May, was entering the lobby of the house of commons he was shot through the heart, and after uttering a slight exclamation and staggering a few paces, he expired. The assassin, whose name was Bellingham, made no attempt to escape, and he was immediately arrested. Apprehensions were at first entertained that there might be a conspiracy; but it was soon discovered that no other person had been concerned with him, and that there was no mixture of political feeling in his motives. Bellingham had been a merchant; and in a commercial visit to Russia some time before he had met with serious losses, which he attributed to violence and injustice. He had repeatedly addressed Lord G. Leveson Gower, who had been our ambassador at Petersburgh, and he had presented memorials to the treasury, soliciting a compensation for losses; but these losses not having been incurred in the course of any public service, were considered as affording him no title to compensation. Mr. Perceval had rightly refused to listen to his applications; but Bellingham was enraged at his refusal, and resolved to sacrifice his life. He was found guilty of murder at the Old Bailey, and he underwent the extreme sentence of the law within one week of his perpetration of the fearful deed. Two days after the assassination parliament voted £50,000 for the children of the sacrificed minister, and £2000 to his widow for life. Subsequently another pension was voted to his eldest son, as was also a monument for the deceased in Westminster Abbey. The talents of Mr. Perceval were not splendid, but as chancellor of the exchequer he displayed considerable skill in augmenting the public burdens at a time when the war was conducted on a scale of unprecedented expenditure. His advancement seems to have been owing to his inflexibility on the Catholic question, at a time when a majority of the talented members of parliament was in favour of some concession. But if Mr. Perceval’s talents were not of the highest order, in private life few persons were more deservedly respected, and whose death was in consequence more lamented. Sir Samuel Romilly, in his “Diary of Parliamentary Life,” remarks that he could hardly have accompanied his refusal to listen to Bellingham with any harshness, for few men had ever less harshness in their nature than he had. A recent writer also says:—“We remember well walking through the populous streets and suburbs of the capital on

that afternoon and evening, and seeing the mixed feelings of horror and pity expressed on almost every countenance."

ADMINISTRATION OF LORD LIVERPOOL.

Considerable difficulty was experienced in supplying the vacancy occasioned by the death of Mr. Perceval. Overtures were made to the Marquis of Wellesley and Mr. Canning; but they refused to associate themselves with government, assigning as their reason the avowed sentiments of ministers on the Catholic question. An address was moved to the prince regent on the 21st of May, by Mr. Stuart Wortley, praying that he would take such measures as might be best calculated to form an efficient government. This address was carried; and in his reply the prince regent said he would take it into his most serious consideration. The Marquis of Wellesley was the first applied to; and he proposed, as the chief conditions on which the new cabinet should be formed, the early consideration of the Catholic question, and the more vigorous prosecution of the war in Spain. He attempted to form a ministry on these conditions, but failed; and at length, on the 8th of June, Lord Liverpool informed the house of lords that the prince regent had that day appointed him first commissioner of the treasury, and had authorized him to complete the arrangements for the ministry. The principal accessions made to the cabinet by Lord Liverpool were Lord Sidmouth as secretary of state for the home department; the Earl of Harrowby as lord president of the council; and Mr. Vansittart as chancellor of the exchequer.

FINANCIAL STATEMENTS.

On the 17th of June Mr. Vansittart, the new chancellor of the exchequer, brought forward his budget, which had been nearly arranged by his predecessor. The charges were stated at £7,025,700 for Ireland; and £55,350,648 for Great Britain. This was a terrible extent of charge, he said; but great as it was, the resources of the country were still equal to it. By an enumeration of ways and means, he produced a result of £55,390,460, including a loan of £15,650,000; but there had been previously a loan of £6,789,625; which, added to the new loan, and to exchequer-bills funded this year, created an annual interest of £1,905,924. To provide for this Mr. Vansittart proposed to discontinue the bounty on printed goods exported, and to increase the duties on tanned hides, glass, tobacco, sales by auction, postage of letters, and assessed taxes. The aggregate product of these increased duties were estimated at £1,903,000. The augmentation of the duty on leather was strongly opposed; but the whole budget received the sanction of the house.

POPULATION RETURNS, ETC.

During this session returns under the population act were laid before parliament. From these returns it appeared that Great Britain in 1801 had a population of 10,472,048 souls, and in 1811 no less than 11,911,644. These results revived the question of population compared with its means of subsistence. It appeared by accounts produced about this time, that during eleven years, from 1775 to 1786, the average quantity of grain imported was 564,143 quarters, from 1786 to 1798, 1,136,101 quarters, and from 1799 to 1810, 1,471,000 quarters. The average prices were in the first period named thirty shillings per quarter, in the second forty

shillings, and in the third sixty shillings. During the last year no less a sum than £4,271,000 went out of the country to purchase subsistence for its inhabitants. It must be remembered, however, that at this period vast tracts of land remained uncultivated, and that the science of agriculture was but imperfectly understood.

BILL FOR PRESERVATION OF THE PEACE.

On the 27th of June the regent sent a message to each house of parliament, acquainting them that he had ordered copies to be laid before them of the information recently received relative to riots which had recently occurred in the cotton manufacturing districts of Lancashire and part of Cheshire, the clothing districts of Yorkshire, &c., confiding in their wisdom to adopt measures for restoring tranquillity. These papers were referred to a secret committee in each house, and the result was the introduction of a severe bill for the preservation of the public peace in the disturbed districts. Some members questioned the extent of the danger and the policy of the coercive bill; but it was carried through both houses.

BILL TO EXTEND THE PRIVILEGES OF DISSENTERS.

On the 10th of July Lord Castlereagh brought in a bill to extend the privileges of the dissenters. This bill, which proposed to repeal certain intolerant statutes and to amend others, relating to religious worship and assemblies, &c. was carried. A bill for improving the ecclesiastical courts in England also received the sanction of the legislature.

PROROGATION OF PARLIAMENT, ETC.

Parliament was prorogued on the 30th of July by commission; and on the 20th of September a proclamation was issued by the prince regent, announcing its dissolution.

CAPTURE OF CIUDAD RODRIGO BY THE BRITISH.

During the latter months of the preceding year Lord Wellington had been secretly preparing the means of recapturing Ciudad Rodrigo, the possession of that place still serving the French as a basis of operations on one of the frontiers of Portugal. His situation, says a Peninsular historian, was simply that of a man who felt that all depended on himself; that he must by some rapid and unexpected stroke effect in the field what his brother could not effect in the cabinet. Marmont favoured his designs on this place; for, deceived by his apparent careless attitude, the French armies were spread over an immense tract of country, and Ciudad Rodrigo was left unprotected. Lord Wellington marched against it early in January; and in twelve days from its first investment Ciudad Rodrigo was recaptured. In the assault the British suffered severe loss, there being in the whole about 1000 killed and wounded, among whom were many officers. General Mackinnon, and many of his brigade, were blown up by the explosion of a powder-magazine on the ramparts, and General Craufurd was mortally wounded. The loss of the garrison was also about 1000, besides 1700 prisoners. For the capture of this piece the Spanish Cortes passed a vote of thanks to Lord Wellington, and conferred on him the title of Duke of Ciudad Rodrigo. In England also his lordship obtained a step in the peerage, being created Earl of Wellington, with an

annuity of £2000 annexed to the title. Thanks were voted by parliament both to him and his brave army.

The recapture of Ciudad Rodrigo was attended with fearful scenes. Colonel Napier says:—“Throwing off the restraint of discipline the troops committed frightful excesses: the town was fired in three or four places; the soldiers menaced their officers, and shot each other; intoxication soon increased the tumult; and at last the fury rising to absolute madness, a fire was wilfully lighted in the middle of the great magazine, when the town, and all within it, would have been blown to atoms, but for the energetic courage of some officers and a few soldiers, who still preserved their senses.” After order had been restored, orders were given to repair the breaches and level the intrenchments, while means were taken to provision the place.

{GEORGE III. 1812—1814}

STORM AND CAPTURE OF BADAJOZ.

Having recovered Ciudad Rodrigo, Wellington resolved to attempt the recovery of Badajoz. In preparing for this enterprise great secrecy was maintained; and when all was ready, his lordship, leaving one division of his army on the Agueda, marched with the rest from the northern to the southern frontier of Portugal. His artillery had previously been conveyed from Lisbon by sea to the Setubal river, whence it was carried by land across the Alemtejo to the banks of the Guadiana; and on the 16th of March Lord Wellington crossed that river, and immediately invested Badajoz. The Picurina, an advanced work separated from the body of the place by the small river Ribillas, was taken on the 25th, and on the 26th two batteries opened on the town. Expedition was essential; for at this time Marshal Soult was preparing for its relief, and Marmont, in the hope of effecting a diversion had entered Portugal, and was ravaging the country east of the Estrella. Thus called upon to action on the 6th of April, after three breaches were reported to be practicable, Lord Wellington gave orders for storming the place at ten o’clock that night. Badajoz was captured, but it was with great loss, owing to the formidable obstacles encountered by the allies. General Philippon, the governor of Badajoz, had adopted such an ingenious defence that effectually stopped the way of the British, that had not General Picton succeeded in carrying and establishing himself in the castle, and General Walker in entering the town by escalade in an opposite direction, the attempt might have failed. These successes distracted the French; and Lord Wellington, who had ordered his divisions to retire from the attack, now directed them again to advance, and then every obstacle was overcome. General Philippon with a few hundred men escaped across the Guadiana, and threw himself into Fort St. Cristoval, where he surrendered on the following morning. On the side of the allies about 1000 were slain, and from 4000 to 5000 wounded. The French lost about 1500 men slain, and nearly 4000 were taken prisoners. In Baclajoz from 3000 to 4000 Spaniards, English, and Portuguese, who had been taken prisoners by the French, were found, and were consequently released. It was on the 7th of April that Lord Wellington captured Badajoz, and on the 8th Soult had collected his army at Villa-franca, between Llerena and Merida; but hearing of the fall of the place he commenced a retreat to Seville. He was warmly

pursued by the British cavalry, who cut up his rear-guard at Villa Garcia.

OPERATIONS IN SPAIN.

As soon as Lord Wellington had captured Badajoz he endeavoured to put the place into a state of defence. His lordship, however, had but little time to attend to this important measure. Marmont was at this time making himself strong in the north, and was blockading both the Spanish fortress of Ciudad Rodrigo and the fortress of Almeida. Leaving General Hill in the south, therefore, his lordship, on the 13th of April moved the main body of his army back to the north. Marmont now retreated to Salamanca, hoping to effect a junction with Soult; but he was prevented from this step by the capture of the strong forts which the French had erected at Almaraz on the Tagus, and which were captured by General Hill. At length, on the 13th of June, Lord Wellington broke up from his cantonments between the Coa and the Agueda with about 40,000 men, leaving General Hill near Almaraz with 12,000 more. As his lordship advanced into Spain, he received reports that Marmont was about to be re-enforced by a division consisting of nearly seven thousand men. Marmont already counted 40,000 infantry, 3000 artillery, and 4000 cavalry, so that he already had a decided superiority in numbers. Still Wellington pursued his march, and the whole of his army arrived upon the Val Musa rivulet, about six miles from Salamanca, on the 16th of June. Some of the cavalry and infantry of the enemy lay in front of the town of Salamanca; but they were driven in by the British, and Marmont evacuated the town in the night, leaving a garrison of some eight hundred men, in forts constructed on the rains of colleges and convents, which commanded the bridge that crosses the river Tormes. The allies, however, forded the river in places above and below the bridge, and on the 17th entered the town. Marmont made some efforts to relieve the forts which were now invested; but they were all taken by the 27th, and he then took up a strong position on the northern bank of the Duero. He was followed by Wellington, who took up a line on the southern bank of that river directly opposite to his opponent. Early in July Marmont was re-enforced by the expected division, and on the 11th of that month he threw two divisions across the Duero at Toro, when Wellington moved his army to the left to concentrate it on the Guareha, an affluent of the Duero. Marmont now ascended the northern bank of the river with his whole army, and again crossed over to the southern bank of the Duero, and assembled at Nava del Bey. He succeeded in re-establishing his communications with King Joseph and the army of the centre, which was advancing from Madrid to join him. The two armies remained on the opposite banks of the Guarena till the 20th of July, on which day they moved towards the Tormes in parallel lines. They crossed the Tormes on the following day; the allied army passing by the bridge of Salamanca, and the French by the fords higher up the river. The hostile troops were still facing each other, and both armies were still near Salamanca. In the course of the night Lord Wellington was informed that Marmont was about to be joined by the cavalry and horse-artillery of the north. No time was to be lost, and his lordship determined, if circumstances should not permit him to attack Marmont on the morrow, he would then move towards Ciudad Rodrigo. The morning of the morrow was spent in anxious suspense by the allies, birt the enemy gave no indication of his design to commence battle till noon, when some confusion was observed in his ranks. After a great variety of skilful

manouvres on both sides, Marmont, inspired with the hope of destroying at one blow the whole English army, extended his line in order to enclose his allies within the position which they had taken up. This was an error of which Wellington immediately took advantage. Nearly the whole of his army was brought opposite to the enemy's left, and an attack was commenced upon that wing. Three divisions, under Generals Leith, Cole, and Cotton, charged in front, while General Pakenham formed another across the enemy's flank. This movement decided the victory. The left wing first, then the centre, and finally the right wing were defeated, and as the evening closed the whole force of the enemy was in total rout. The first great blow was given to the power of the French in Spain. In this battle the French lost three generals slain, and Marmont, Bonnet, and Clausel were wounded. Their total loss in killed and wounded was very great, and they left 7000 prisoners, eleven guns, and two eagles in the hands of the conquerors. The loss of the allies was also great, nearly 5000 being slain and wounded: among the slain was General Le Marchant, and among the wounded Generals Beresford, Leith, Cole, Spry, and Cotton; The pursuit of the enemy was renewed next day beyond the Tormes, when the British troops succeeded in capturing three brigades. In the course of the day Marmont was joined by a corps of 1200 cavalry from the army of the north, which covered the retreat of the centre as it hastened toward Valladolid. The pursuit was continued on the 24th, and the enemy was driven from Valladolid towards Burgos. Lord Wellington reached Valladolid the eighth day after the battle, and here he gave over the pursuit in order to make another important movement. On the day after the battle of Salamanca King Joseph had marched from the Escurial with 20,000 men, for the purpose of joining Marmont. On arriving at Arevalo he heard of Marmont's defeat, and he then marched off by the right to Segovia, to attempt a diversion in favour of Clausel, who was now leading the retreating army. Lord Wellington therefore quitted Valladolid, recrossed the Duero, and marched against King Joseph, leaving a force on the Duero under General Paget to watch Clausel. King Joseph now retreated towards Madrid, whither he was followed by Lord Wellington, and from whence he was driven by his lordship. The British forces entered Madrid on the 12th of August, and was received with enthusiastic acclamations. Joseph fled to the left bank of the Tagus to rally his army between Aranjuez and Toledo, leaving a garrison in the Retiro palace. The troops found in the Retiro, however, were made prisoners of war on the 14th of August, so that Lord Wellington had complete possession of the Spanish capital. He appointed Don Carlos de Espaha Governor of Madrid, and the new constitution which the Cortes had made at Cadiz was proclaimed with great exultation. The air resounded with the shouts of "Long live the Duke of Ciudad Rodrigo! long live Wellington!" Subsequently a deputation waited upon his lordship with a congratulatory address, to which he wisely replied: "The events of the war are in the hands of Providence."

In consequence of the capture of Madrid Soult raised the blockade of Cadiz, abandoned the whole of Western Andalusia, and concentrated his forces in Grenada. His retreat to Grenada was very disastrous: his army suffered greatly from the attacks of the allied force of the English and Spanish, the occasional attacks of the armed peasantry, and from the excessive heat and famine. In the meantime General Hill advanced from the Guadiana to the Tagus, and connected his operations with

those of Wellington. On his approach, Joseph Buonaparte abandoned the line of the Tagus, and fell back to Almanza in Murcia, that he might preserve the line of communication with Soult in Granada, and Suchet on the borders of Valencia and Catalonia. By the close of August General Hill occupied all the places on the south of Madrid, and which occupation enabled him to cover the right of the allied army. These successes, however, were far from completing the recovery of Spain, and the situation of Lord Wellington in the Spanish capital was yet very critical. So ineffective was the aid which the natives afforded, and so great the military power which yet remained to be subdued, that a triumphant result was still uncertain. In a little time, indeed, Lord Wellington saw himself menaced by the three armies of the south, the centre, and the north, and he was compelled to retreat from Madrid. Before he commenced his retreat he made an attempt to capture Burgos: an attempt which failed chiefly from want of the requisite means of success. Lord Wellington now moved towards the Duero, and marched upon Salamanca, where he hoped to establish himself; but Soult having united his forces with those of Souham, which had advanced from Burgos, obliged him to continue his retreat. He effected his retreat in a masterly manner, before an army of 90,000 men, against which he could only oppose about 50,000, and on the 24th of November, he fixed his head-quarters at Freynada, on the Portuguese frontier. King Joseph now returned once more to Madrid, while Soult, who took the chief command of the combined French armies, established his head-quarters at Toledo, with his right wing resting on Salamanca. A great outcry was raised against Lord Wellington in England, on account of this retreat; but, fortunately, ministers were satisfied with the explanation of his motives, and resolved to send him all the assistance in their power. His lordship employed the winter months in rendering his army more effective, that he might in the ensuing campaign enter on a more decisive and extended course of operations. For this purpose he proceeded to Cadiz, to make arrangements for the co-operation of the Spanish armies, when it was settled that 50,000 troops should be placed at his disposal. This was full proof that the Cortes still placed confidence in him. They augured, indeed, that under the direction of so great a leader, those troops would pitch their tents on the banks of the Seine. The president remarked, “It would not be the first time that the Spanish lions had there trampled on the old _fleur-de-lys_ of France.”

WAR BETWEEN FRANCE AND RUSSIA.

It has been seen that the Emperor of Russia had declared war against Napoleon. Thwarted in his ambitious views upon the Ottoman empire, which he had been led to expect would be realized from the treaty of Tilsit, Alexander first became cool towards his brother spoliator, and then openly broke with him. Great preparations were made on both sides for the gigantic struggle, and Napoleon resolved to humble the czar in his own dominions. With an army of about 800,000 men he crossed the Vistula in June, and his onward march was a series of triumphs. The Russians everywhere retreated before him, until he came to the plains of Moscow, where he fought a hard battle with an army under Kutusoff, over whom he gained a victory. Moscow now fell into the hands of the conqueror. He entered it on the 14th of September, and took up his residence at the Kremlin, the ancient palace of the czars.

But here his triumphs ended. The Russians had only retreated before him in order to allure him to destruction. Their plan was to avoid a battle till the enemy should be cut off from support, and till winter, famine, and fatigue had wasted his resources. And in order to ensure this final result they were willing to make large sacrifices. Smolensko was reduced to ashes, while Napoleon was on his route to Moscow, lest it should afford a shelter to his troops, and Napoleon had not been long in the imperial city, when the flames were seen casting their lurid glare to heaven on every side. In a brief space Moscow was in ruins, and Napoleon was compelled, in the month of October, to give orders to his troops to return to France. Few of his proud army, however, were destined again to behold their native country.

“Now did the Most High Exalt his still small voice; to quell that host, Gathered his mighty power, a manifest ally; He, whose heaped waves confounded the proud boast Of Pharaoh, said to Famine, Snow, and France, ‘Finish the strife by deadliest victory.’” —Wordsworth

Scarcely had Napoleon commenced his retrograde march when the snow, like a violent storm of the Alps, beat around the devoted heads of his soldiers, and their progress was henceforth a combat against their pitiless foes the Cossacks, who hovered around them, and the still more pitiless elements. Danger awaited him at every step and on every hand, and when he arrived on the margin of the Beresina, his vast army was reduced to about 14,000 men. And not all these reached France. The Russians under Wittgenstein now appeared in his rear, and one of his divisions was either destroyed or captured. Napoleon had passed over the Beresina with a part of his army by means of two frail bridges, leaving the defence of the retreat to Victor. A scene ensued which defies description. The retreating French tumbled each other into the stream, or voluntarily rushed in to escape the fire of the Russians; and in the midst of their terror one of the bridges gave way, and the crowd passing over it perished. When that river was frozen, it presented to the eye of the beholder one vast heap of human beings. Those who gained the opposite bank were saved, and Napoleon, leaving them under the care of Murat, repaired to Paris. He was stripped of everything; and yet he hoped to repair his fortunes. It is said that in the beginning of the next year, when the snow had melted away, 300,000 human bodies and 160,000 dead horses were burnt upon the Russian soil.

WAR WITH AMERICA.

During this year the disputes between England and America broke out into a war. On her part England had done what she could to bring these disputes to an amicable adjustment: even offering to suspend the offensive regulations of which the Americans complained, if the Americans would repeal the restrictive acts by which they had marked their resentment. The person, however, who now directed the councils of the United States was inimical to the interests of Great. Britain, and devoted to the views and interests of Napoleon. War was declared, and the world saw with surprise, a government calling itself free banding with a military despotism which had not its parallel In the world’s history. The Americans commenced the war by the invasion of Canada; but they were defeated in two engagements, and compelled to relinquish the enterprise. They consoled themselves, however, for these

disasters by their success at sea, they having captured two English frigates, chiefly from the superiority of their own in size, weight of metal, and number of men. Similar disasters also attended our naval armaments on the lakes, arising chiefly from the above-mentioned cause. The English cabinet was much censured for want of foresight, in not having been prepared with ships of sufficient size to cope with their antagonists, but neither ministers nor people expected a long continuance of this war, as it was well known that in the northern states there existed a large and powerful party averse to it, as it was prejudicial to their interests. Proposals, apparently conciliatory, were, indeed, made by both parties, but the year closed without witnessing a suspension of hostilities.

MEETING OF THE NEW PARLIAMENT.

Parliament, with a newly-elected house of commons, assembled on the 24th of November; and on the 30th, the regent delivered an address from the throne, which embraced a variety of topics, the most prominent of which was the war in the Peninsula, that in Russia, and the contest in America. In the debates on the addresses, these events gave rise to much discussion in both houses, but they were carried unanimously. The most prominent; measures previous to the Christmas recess were a grant of £100,000 to the Marquess of Wellington for his services in Spain, and of £200,000 for the relief of the sufferers in Russia. The bullion question was also again discussed; but the house repeated Mr. Vansittart’s resolution of last year; namely, that guineas and bank-notes were of equal value in public estimation. Without such a resolution the war could not have been carried on, for there was not sufficient gold in the country to maintain the public credit.

DEBATES ON THE WAR WITH AMERICA.

{A.D. 1813}

On the reassembling of parliament in February, several stormy debates took place on the American war. In these debates the opposition not only blamed the ministry for the negligent manner in which the maritime part of the conflict had been conducted, but also with being the aggressors, and with having provoked an unnecessary and fatal contest. In order, therefore, to clear themselves from all imputations, Lord Castlereagh, on the 18th of February, moved an address to the prince regent, expressing entire approbation of the resistance proposed by his royal highness to the unjustifiable claims of the American government, a full conviction of the justice of the war on our part, and the assurance of a cordial support from that house. The opposition reiterated their complaints; but they would not venture upon a division, and the address was agreed to _nem. con_. Another address of a similar nature also passed the lords in the same triumphant manner.

FINANCIAL STATEMENTS.

The budget was introduced on the 31st of March. The supplies demanded were £72,000,000 out of which England and Scotland were to furnish £8,500,000. This was a larger amount than had been voted in any preceding year, but as the American war

promised to be expensive, and as it was generally felt that we should put forth all our strength in order to finish the contest in Spain, and prolong our aid to Russia, &c., all the estimates were voted by large majorities. Among the ways and means were taxes to the amount of £21,000,000; a fresh loan to the same amount and a vote of credit for £6,000,000.

RENEWAL OF THE EAST INDIA COMPANY'S CHARTER.

One of the most important questions which came before parliament during this session was the renewal of the East India Company's charter. On the 22nd of May Lord Castlereagh observed that the term of the existing charter would expire in May, 1814, and his majesty's ministers had to consider these three propositions.—"Whether the existing government in India should be allowed to continue in its present state;—whether an entire change should take place in the system;—or whether a middle course should be adopted." Evidence was heard at the bar of the house in order to throw light upon this important subject; and the witnesses, chiefly persons who had occupied high stations in India, were generally against opening the trade, or allowing missionaries to repair to the East for the purpose of converting the natives to the Christian religion. Finally, a bill was enacted for the prolongation of the company's territorial power to April, 1834. At the same time it was resolved that such measures ought to be adopted as might tend to the introduction of useful knowledge, and of religious and moral improvement among the natives. The church establishment of the British territories in India was now, indeed, placed under the direction of a bishop and three archdeacons, and missionaries were to be licensed for the propagation of the gospel among the natives.

THE CATHOLIC QUESTION.

During this session Mr. Grattan carried a motion for referring the Catholic claims to a committee of the whole house. On the 30th of April, he presented to the house a bill for the removal of the civil and military disqualifications under which his majesty's Roman Catholic subjects laboured; but this bill, though read a second time, was lost on its passage through the committee, Mr. Abbott, the speaker, having divided the house on the clause by which Catholic members were to be admitted to a seat in Parliament. This was rejected by a majority of two hundred and fifty-one against two hundred and forty-seven, and then the bill was abandoned by its supporters.

CURATES' BILL, ETC.

The toleration displayed in the debates on the Catholic question induced Mr. Smith, one of the members for Norwich, to bring in a bill for the relief of Unitarian dissenters from the pains and penalties to which they were subject by a statute of William III. This bill passed into a law; neither the ministers nor the bench of bishops opposing its principle. Another bill, introduced by Lord Harrowby, was also passed, for the augmentation of stipends payable to curates; a class of divines who, though they bear "the burden and heat of the day," have always, even to the present hour, been inadequately paid for their labours.

APPOINTMENT OF VICE-CHANCELLOR.

In consequence of the great accumulation of business in the court of chancery, a bill, proposed by Lord Redesdale, was passed this session, for the appointment of a vice-chancellor of England. This new official was to have full power to determine all cases of law and equity in the court of chancery to the same extent as the chancellors had been accustomed to determine; and his decrees were to be of equal validity, only they were to be subject to the revision of the lord chancellor, and not to be enrolled until signed by him.

DEBATES ON THE TREATY WITH SWEDEN.

On the 11th of June a treaty with Sweden was laid before parliament, which excited strong animadversion. By the solicitations of the Emperor of Russia the king and crown-prince had been induced to enter into the confederacy against France; and it was resolved, that, as the Danes had been subservient to French interests, they should be deprived of Norway for the gratification of the Swedes. To this stipulation the British court had acceded for two reasons:—first, that by the occupation of Norway the Swedes would be better enabled to secure their independence; and, secondly, because it was desirable that a country which abounded with naval stores should be possessed by a power friendly to England. The Swedes, also, were to receive a subsidy of one million from the English treasury; and the island of Guadaloupe was to be ceded to its monarch, on condition of his opening a depot for British goods at Gottenburg and other ports, in defiance of the continental system. Lord Holland deprecated the transfer of Norway; denounced the cession of Guadaloupe; and opposed the subsidy as inconsistent with the financial difficulties under which the country was labouring. The treaty was disgraceful, he said, both to Russia and Great Britain; and he expressed his disgust at the gross inconsistency of the two courts, which had so loudly exclaimed against Napoleon’s encroachments. Earl Grey was equally severe in his censures; but Lord Holland’s proposal to suspend the execution of the treaty was rejected. In the commons a similar debate took place; Mr. Ponsonby taking the lead as the opposer of the agreement; but a proposal to the same effect as that made by Lord Holland was rejected, and the prince regent was subsequently gratified with a compliant address.

PROROGATION OF PARLIAMENT.

The session closed on the 22nd of July with a speech from the throne, in which the prince regent expressed satisfaction at the favourable state of affairs on the continent, regret at the continuance of the war with the United States, and his approval of the arrangements for the government of British India. He concluded by expressing his resolution to employ the means placed in his hands by parliament in such a manner as might be best calculated to reduce the extravagant pretensions of the enemy, and facilitate the attainment of a safe and honourable peace.

{GEORGE III. 1812—1814}

AFFAIRS OF SPAIN.

The Russian campaign had operated favourably for the progress of the British arms in Spain. The catastrophe by which it was concluded not only prevented Napoleon from re-enforcing his marshals in Spain, But it also obliged him to recall the best of them; and among them Marshal Soult, whose generalship had cost Lord Wellington very serious thoughts. Still the French in Spain were formidable. Soult left behind him 70,000 men to oppose Wellington; and there was still an army, under Suchet, in the eastern provinces. At the opening of this year the French armies were thus disposed:—the army of Portugal, under General Reille, was in and around Valladolid; the army of the centre, under Drouet, was distributed round Madrid; and the army of the south was at Toledo. All these forces were under King Joseph, who was assisted by Marshal Jourdan; Generals Clausel and Foy commanded separate divisions in Aragon and Biscay. Against these forces Lord Wellington could only bring 63,000 British and Portuguese infantry and 6,000 cavalry, on whom he could rely; for, though measures had been taken to improve the Spanish troops, their slothfulness and indiscipline were evils which could not be suddenly remedied; and therefore his lordship did not expect great things from them. He commenced operations about the middle of May, making the allied army enter Spain in three separate bodies; the left under Sir Thomas Graham, the right under General Hill, and the centre under his own command. The French were alarmed; and on the 1st of June they were in full retreat before Graham. Subsequently the three divisions of the allied army united; and Wellington was also joined by the Spanish army from Galicia, and by a Spanish force from the south. Thus strengthened Lord Wellington advanced towards Madrid; and as he advanced Joseph Buonaparte again took refuge in flight. The French army retired to Burgos; but as Wellington approached they blew up the fortifications of the castle, and retreated to the Ebro. A strong garrison was thrown into the fortress of Pancoros, a little in advance of the river, and they conceived that they could defend this line; but Lord Wellington found out a new road through a rugged country, completely turned their position on the Ebro, and drove them back upon Vittoria, after a successful engagement at Osma. Lord Wellington still pursued them; and on the 21st of June he gained a complete victory over them on the plains of Vittoria. In this battle the enemy lost one hundred and fifty-one pieces of cannon, four hundred and fifteen waggons of ammunition, all their baggage, provisions, and treasures, with the French commander’s, Jourdan’s, baton of a marshal of France. Their loss in killed and wounded, according to their own statement, amounted to eight thousand men; while the total loss of the allies was seven hundred and forty killed, and four thousand one hundred and seventy-four wounded. The French army was, indeed, reduced to a total wreck; and they saved themselves from utter destruction only by abandoning the whole _materiel_ of the army, and running away from the field of battle like an undisciplined mob. About one thousand were taken prisoners in their flight; but, lightened of their usual burdens, they ran with so much alacrity that it was generally impossible to overtake them. The spoils of the field also occupied and detained the troops of Wellington, they thinking more of the money and the wine than the flying foe. Lord Wellington, however, continued the pursuit; and on the 25th took the enemy’s only remaining gun. This victory was complete; and the battle of Vittoria was celebrated in England by illuminations and fêtes; while the Cortes, by an unanimous vote, decreed a territorial property to Lord Wellington, in testimony of the gratitude

of the Spanish nation.

When the battle of Vittoria was fought General Clausel, with about 14,000 men, had commenced his march to support Joseph; but now changing his direction, he turned towards Logrono, and then to Saragossa, with the guerilla forces of Mina and Sau-chez hanging on his rear. As for Joseph he scarcely looked back before he reached the walls of Pamplona in Navarre. Joseph was admitted into its walls; but the fugitives from Vittoria were refused an entrance; and when they attempted to scale the walls they were fired upon by their own countrymen, as if they had been mortal foes; and they were compelled to continue their flight across the Pyrenees towards France. Subsequently General Clausel retreated by the central Pyrenees into France; and General Foy likewise, who was with another division of the French army at Bilboa, fell back rapidly upon French territory and the fortress of Bayonne. Except on the eastern coast, where Suchet was with about 40,000 men, there was not a spot in all Spain where the French dared show themselves. Lord Wellington, under these circumstances, turned his attention to the capture of some of the strongholds in which French garrisons were maintained. He established the blockade of Pamplona, and directed Graham to invest San Sebastian; and he then advanced with the main body of his army to occupy the passes of the Pyrenees from Roncesvalles to Irun, at the mouth of the Bidassoa. Early in July, having driven the enemy to his own soil, his sentinels looked down from the rugged frontier of Spain upon the lovely and fertile plains of France. In forty-five days he had conducted the allied army from the frontiers of Portugal to the Pyrenees; he had marched four hundred miles; had gained a great and complete victory; had driven the French through a country abounding in strong positions; had liberated Spain; and now stood as a conqueror upon the skirts of France.

The campaign was not yet over. Sensibly affected by this defeat of Jourdan, Napoleon immediately superseded that officer in the command, and appointed Soult to succeed him, with the title of Lieutenant-general of the empire. His directions were to re-equip the defeated troops, to gather formidable re-enforcements, to lead his masses speedily against Wellington, to clear the French frontier and the passes of the Pyrenees, relieve Pamplona and San Sebastian, and to drive the allied army behind the Ebro. Soult undertook to do all this; and having collected all manner of disposable forces, on the 13th of July he joined the disorganized fragments of Jourdan’s army. On his arrival he forthwith issued one of those boastful addresses for which the French emperor and his marshals had become celebrated. He remarked:—“I have borne testimony to the emperor of your bravery and zeal: his instructions are that you must drive the enemy from those heights, which enable them to look proudly down on our fertile valleys, and then chase them beyond the Ebro. It is on the Spanish soil that your tents must be pitched and your resources drawn. Let the account of our successes be dated from Vittoria, and let the fête-day of his majesty be celebrated in that city.” At this time Wellington’s attention was divided between the care of his army on the frontier of France and the siege of San Sebastian. He was returning from San Sebastian to his head-quarters on the night of the 17th of July, when he received intelligence that the great army of Soult, from 70,000 to 80,000 strong, was in rapid motion; that the French had overpowered his troops in two of the mountain passes on

the right of the allied army; had penetrated into the valleys of the Pyrenees, and were pressing onwards for Pamplona. “We must do the best to stop them,” was the prompt reply; and stop them he did after a week’s almost incessant fighting. From the 25th of July to the 2nd of August a series of engagements took place, the result of which was the retreat of Soult from the Spanish frontiers into France, with a loss, in killed and prisoners, of nearly 20,000 men. In a private letter, just after the “battles of the Pyrenees,” Wellington wrote, “I never saw such fighting as we had here. It began on the 25th of Jury, and, excepting the 29th, when not a shot was fired, we had it every day till the 2nd of August. The battle of the 28th was fierce bludgeon work. The fourth division was principally engaged, and the loss of the enemy was immense. I hope Soult will not feel any inclination to renew his expedition. The French army must have suffered considerably. Between the 25th of last month and the 2nd of this they were engaged seriously not less than ten times, on many occasions in attacking very strong positions, in others beat from them or pursued. I understand their officers say they have lost 15,000 men: I thought so; but as they say so, I now think more. I believe we have about four thousand prisoners. It is strange enough that our diminution of strength up to the 31st did not exceed 1,500 men, although I believe our casualties are 6,000.” In his retreat Soult was closely followed by his adversaries; but, after meeting with severe loss, especially in crossing the Bidassoa, he conducted the main body of his army in safety to France. Lord Wellington at first designed to follow the enemy into his own country, but weighty considerations induced him to abandon this design; and the two armies therefore rested quiet in their respective positions. In the interval of repose efforts were made by the French to relieve San Sebastian; and these were met by an increased activity on the part of the allies to capture both, that place and Pamplona. In his attempt to relieve San Sebastian Soult was defeated by the Spanish troops alone, and the place was captured on the 8th of September, when the garrison, consisting of about 1,800 men, were made prisoners. On the 31st of October, also, the French in Pamplona, having lost all hope of relief, surrendered prisoners of war to Don Carlos de Espana, who had latterly commanded the blockading forces. But before the reduction of Pamplona Lord Wellington had called down part of his troops from the heights of the Pyrenees, and had led them forward a march or two on French ground. Early in October he took possession of the French hills of La Rhune; and on the 10th of November he called down the rest of the allied army, and began to descend into the valleys on the French side. Before taking this decisive step he told the officers and soldiers of the various nations that followed his standard, to remember that they were at war with France because the ruler of the French would not allow them to be at peace, and wanted to force them to submit to his yoke; and he exhorted them not to retaliate on the peaceable inhabitants of France the injuries that the soldiers of Napoleon had inflicted on their own countrymen. It was difficult to convince the Spanish and Portuguese troops that they ought not to retaliate upon the French; but the Portuguese at least attended to the exhortation. The admirable discipline maintained, indeed, the care bestowed to see that the property and persons of the French were protected, converted all around into friends, and they came flocking to the English camp with provisions and wine as to a friendly market. Men, women, and children, struck with admiration at their conduct, followed our troops and wished them success in their enterprise. In the

meantime, Soult had retired to a strong position on the Nivelle, his right resting upon St. Jean de Luz, and his left upon Ainhoe. From this position he was driven on the 10th of November, and Lord Wellington established his head-quarters at St. Jean de Luz, on the right bank of the Nivelle, while the allies went into cantonments between the sea and the river Nive, where their extreme right rested on Cambo. The enemy guarded the right bank of the Nive from Bayonne to St. Jean Pied de Port; but Lord Wellington, being straitened for room and supplies for his army, resolved to cross the Nive, and occupy the country between that river and the Adour. This was effected, and the French were driven to Bayonne. Subsequently, during the month of December, Soult made several attempts to dislodge the British; but all his attacks were repulsed with great loss, and the French marshal finally drew off his troops in despair, and retired into his entrenched camp The allied army had also need of rest and re-enforcements, and it went into winter-quarters. The campaign of 1813, in which the troops of France had been taught the frail tenure of human fame, was terminated.

In the meantime, ill-success had attended the British arms on the eastern coast of the Peninsula. On the 3rd of June, General Sir John Murray had invested Tarragona, but after advancing his batteries against it he received reports that Suchet was marching from Valencia for its relief, and he immediately re-embarked his army, leaving his cannon in the batteries. General Murray was succeeded in his command in August by Lord William Bentinck, who resumed the siege of Tarragona, but it was abandoned on the approach of Suchet, and the French marshal entered the city, destroyed the works, withdrew the garrison, and retired towards Barcelona. At this time the state of affairs in Sicily, and the ill-success of political changes there, rendered it necessary for Lord Bentinck to repair thither, and the command devolved on Sir William Clinton; who as soon as arrangements could be made for restoring the works at Tarragona and supplying with provisions the Spanish troops attached to his command, fixed his head-quarters at Villa-franca With an inadequate force, Sir William had to prevent Suchet from following up his recent advantages, and so to occupy his attention, as to stop the succours which he might send to Soult.

AMERICAN CAMPAIGN.

In the midst of the important affairs on the continent, the events of the war with the United States scarcely attracted public attention. These events were various, though unimportant. In the month of January the Americans collected a large force in the back settlements, and again approached Detroit, when Colonel Proctor routed their advanced guard, and captured five hundred men, with their commander, General Winchester. In April, the American general, Dearborn, took possession of York, at the head of the Lake Ontario, from whence General Sheaffe and the garrison was compelled to retire. About the same time, also, General Vincent was obliged by superiority of numbers to vacate Fort St. George, on the Niagara frontier, and on the 5th of June he compelled the enemy to fall back again on Niagara; but soon after Colonel Proctor was attacked by the American General, Harrison, with 10,000 men, who captured nearly the whole of his force, he himself escaping with a few attendants. Towards the end of October three American armies, each amounting to

10,000 men, marched from different points upon Lower Canada: but this great effort was frustrated by the vigilance of Sir George Prévost. During the autumn a squadron of six British vessels was captured by a superior American squadron, on Lake Erie, but on the whole the campaign was honourable to the British arms. When defeated, it was only by dint of overwhelming numbers. Between the “Shannon” and the “Chesapeak,” ships of superior force, there was a fierce battle in Boston Bay, which resulted in the capture of the American vessel, the “Chesapeak,” although she had in number and weight of guns, as well as in the number of its crew, a considerable superiority over the “Shannon.” After a fierce conflict of fifteen minutes’ duration, the “Chesapeak” was on its way with the conqueror, Captain Broke, to Halifax. In St. George’s Channel, also, an American sloop of war was captured by the British sloop, “Pelican.”

MEETING OF PARLIAMENT.

Parliament met on the 4th of November. In his speech the prince declared that no disposition to require sacrifices from France, inconsistent with her honour and just pretensions, would ever be an obstacle to peace; and that he was ready to enter into discussion with the United States, on principles not opposed to the established maxims of public law and the maritime right of the British empire. The speech naturally noticed the successes which had crowned his majesty’s arms and those of his allies in the present year, and it also spoke of the now prosperous state of British commerce, despite the enemy’s efforts to crush it. The speech of the prince regent was received with universal assent and joy. The voice of opposition, indeed, was entirely hushed, and in both houses the addresses were carried _nem. con_.

BILL FOR ALLOWING THE MILITIA TO VOLUNTEER INTO THE LINE, ETC.

Early in this session Lord Castlereagh introduced a bill for allowing three-fourths of any militia regiment to volunteer for foreign service, which bill passed without opposition. Parliament also gave its ready sanction for a loan of £22,000,000 as well as for subsidies to Sweden, Russia, and Austria. Previous to this, £2,000,000 had been advanced to Spain, two to Portugal, and one to Sweden: the sum to be allowed to Russia and Prussia was estimated at £5,000,000 and the advance to Austria consisted of £1,000,000, together with 1,000,000 stand of arms and military stores in proportion. At this time men of all parties, from a desire to humble our one great foe, concurred in supporting the foreign policy of our cabinet. The desired grants being obtained, parliament adjourned to the month of March.

CHAPTER XXX.

{GEORGE III. 1814–1818}

Parliamentary Measures..... Campaign of Lord Wellington..... The Allies enter Paris; Napoleon dethroned, &c. Treaty of Peace..... Honours conferred on Wellington, &c. Visit of the Allied Sovereigns..... Congress of Vienna..... Campaign in America, &c. Treaty of Peace with America, &c.Meeting of Parliament..... Return of Napoleon from Elba..... Trial by Jury, &c. War resolved on; Financial Measures..... Prorogation of

Parliament..... Congress of Vienna..... Affairs of France..... Battle of Waterloo..... Capture of Paris..... Surrender of Napoleon, &c. Return of Louis XVIII. to Paris..... Britain gains Possession of the Island of Ceylon..... East India Affairs..... Meeting of Parliament..... Debates on the Treaties..... Financial Statements..... Royal Marriages..... Various Motions..... Prorogation of Parliament..... Riots, &c. Expedition to Algiers..... Meeting of Parliament..... Measures of Economy..... Restrictions on Public Liberty..... Committee on the Poor Laws, &c. Prorogation of Parliament..... Riots at Manchester, &c. Death of the Princess Charlotte.

PARLIAMENTARY MEASURES.

{A.D. 1814}

The legislative measures of parliament, when it met in the month of March, are of little historical importance. The budget was laid before the commons on the 30th of July, and the whole amount of supplies exceeded £75,600,000. The session was closed on the 30th of July by the prince regent in person. Nor did the autumnal session present any matter of historical interest. It was opened on the 8th of November by a speech again delivered by the regent in person, and on the 2nd of December the houses adjourned till the 9th of February, 1815. But in the meantime events of the greatest importance took place on the continent which demand attention.

CAMPAIGN OF LORD WELLINGTON.

The last act of the drama was played during this year with great rapidity. At the commencement of this year the progress of Lord Wellington was retarded by the state of the weather, but as soon as it became favourable he broke up his cantonments, resolving to penetrate as far as possible into the interior of France. He first cleared the ground on his right wing by driving the enemy eastward, and by pushing forward his centre with a corresponding movement, after which he prepared with his left wing, under Sir John Hope, to invest Bayonne. Marshal Beresford was also detached with two divisions to occupy Bordeaux, the mayor and inhabitants of which, on his arrival, of their own accord, proclaimed Louis XVIII. Lord Wellington himself, with the main army, advanced to Vig Bigorre, while Soult retreated to some good positions at Tarbes, and then to Toulouse. Soult arrived at Toulouse on the 24th of March, and on the 27th Wellington was close to him in front of that city. Between them lay the deep and rapid river Garonne, and it was not till the 9th of April that Wellington was enabled to get the allied army to the right bank of that stream. On the 10th of April was fought the bloody battle of Toulouse, in which Wellington was again victorious. Soult was driven from his entrenched camp on the eastern side of the city of Toulouse with a terrible loss: the victors also suffered severely. Soult evacuated Toulouse on the 11th of April, retiring by Castlenaudry to Carcassonne. He left behind him in the town 1,600 wounded men, and three generals, besides artillery and ammunition, all of which were taken by the allies, Wellington entered the city on the 12th, when a deputation waited on him, requesting him to receive the key of the good and loyal city in the name of King Louis XVIII. The battle of Toulouse was the last real battle that Wellington had to fight during this campaign. Four days after Soult’s

defeat, indeed, and when the allies were in possession of the city, and the French were flying from it, General Thouvenot, who commanded in Bayonne, chose to make a desperate sortie on the allies in their cantonments, while the troops were all buried in sleep, but though he succeeded in cutting off many, he was repulsed with an equal loss. In the meantime the English Colonel Cooke and the French Colonel St, Simon arrived from Paris with the news that the allies had entered the French capital; that a provisional government had been established in the name of Louis XVIII.; and that Napoleon had abdicated at Fontainbleau, on the 4th of April. These officers were despatched from Wellington's head-quarters to those of Marshal Soult, and after some negociation a friendly convention was signed, and a line of demarcation drawn between the two armies. This convention was signed on the 18th of April, and on the 21st Lord Wellington, by general orders, congratulated his army on the near prospect of the termination of their toils and dangers, and thanked them for their valour in the field, and for their conciliating conduct towards the inhabitants of the country.

THE ALLIES ENTER PARIS; NAPOLEON DETHRONED, ETC.

At length the "world-tyrant" was humbled. Equitable terms of peace had been recently proposed to Napoleon by the confederated princes on the Rhine, where they were assembled in great force, but they were rejected by him with disdain. The confederated princes had collected their armies on the Rhine after Napoleon's disastrous retreat from Moscow, resolved either to restrain his insatiate ambition, or to hurl him from his throne. There were three armies arrayed against him. Bernadotte, crown prince of Sweden, menaced him from the north; Blucher with a Prussian army from the east; and Schwartzenberg, with the grand army from the mountains of Bohemia, on the south. In the whole they numbered about 500,000 men, and Napoleon by fresh conscriptions was enabled to face them with an army of 300,000. He had recently gained victories over the Prussians at Lutzen, and the Russians at Bautzen, and these victories seem to have led him on to ruin. He calculated upon victory still, and therefore, when his generals advised him to retreat at once to the Rhine, he refused, and bade them obey his commands. He marched to Dresden, recently taken by Schwartzenberg, and victory again waited on his steps; his enemies were routed with the loss of their cannon and 20,000 prisoners. But this victory was counterbalanced by the capture of the whole force of Vandamme by the Russians and Prussians, and by the defeats of Oudinot by the Prince of Sweden at Buelow; and of Macdonald at Katzbach. Napoleon now retreated to Leipsic, whither he was followed by the Russians, Prussians, and Austrians. In the plains of Leipsic was fought the battle of nations, in which God gave the victory to the allies. This battle lasted from the 14th to the 19th of October, 1813, and it ended with the terrible loss of 80,000 men on the side of Napoleon, and 50,000 of the allies. The French fled towards Erfurt, and finding no refuge there, continued their flight to Mentz and the Rhine. As he hastened towards the Rhine his path was intercepted by an army of Bavarians, who had taken up their position at Hanau; but he routed them, and then established his troops on the Rhine, the allies encamping opposite, and occupying Frankfort as their head-quarters. After the battle of Leipsic, Europe gained her freedom, and seeing every nation taking up arms against him, Napoleon sued for peace. He was offered France, with the Rhine for its boundary, but he rejected this

dominion as too limited for his sway. War continued; and in January, 1814, the allies crossed the Rhine, and invaded France. Thus menaced, the entire male population of France was summoned to arms, 30,000 of the national guard of Paris were put in motion, and the last resources of France called into action. Napoleon was defeated by the Austrian and Prussian forces at Brienne, in which battle he lost many cannon and prisoners. Peace on equitable terms was again offered him, but peace was again refused: he resolved to conquer or perish. Victory again waited on his arms at Champaubert, where the Prussians had arrived in their onward march to Paris, and he subsequently gained a victory over the Prussians at Montmirail, and also over the Austrians at Montereau. After the battle of Montmirail, a last effort was made to bring him to terms with the allies, but he refused to sheathe his sword. He gained a victory over the Russians at Craonne, but his loss was so great that it was tantamount to defeat. The Russians retreated to Laon, where they united with the Prussians, and where, three days after, they routed and destroyed the French division of forces under Marmont. Hope now fled, and Napoleon sought peace on any terms. But it was now too late: the allies had recently agreed to drive him from his throne as a ruler dangerous to the peace of the world. His own subjects moreover, were now conspiring against him. Paris, Bordeaux, and other cities, were sending upwards shouts for the return of the reign of the Bourbons. Rendered desperate, Napoleon now turned to combat with the Austrians under Schwartzenberg at Arcis; but after a faint struggle his troops retreated. In the meantime the Russians and Prussians were hastening onwards to Paris. It was on the 27th of March that the Parisians heard the sound of war approach their gates. Marmont, Mortier, and Joseph Buonaparte placed themselves with some forces in and around the city for its defence; but on the 30th they were driven from their positions, and then Paris was delivered into the hands of the Russians and Prussians. When Napoleon heard of the fall of Paris he was hastening to its relief, and astounded at the news he returned to Fontainbleau. He still clung to hope, and talked of vindicating his rights by the sword, but his marshals refused to support him, and some hinted that he was no longer emperor. Then his proud spirit was humbled, and he drew up a declaration, which stated that as he was the sole obstacle to the peace of France, he was willing to resign his crown, and leave her shores, if the succession of his son and the regency of the empress were ensured by the allied sovereigns. But this could not be: his unconditional abdication was demanded, and as there was no alternative, he signed a treaty on the 11th of April, which declared him and his descendants to have forfeited the throne of France for ever. By this treaty the island of Elba was assigned to him in full sovereignty, and on the 20th of April he departed with four hundred of his guard to lord it over this island instead of a world. Thus expired the dynasty of Napoleon: a dynasty founded in blood, and which, therefore, by the immutable law of the Ruler of the universe, was doomed to perish. Before Napoleon signed his abdication, the senate, hitherto obsequiously submissive to him, had decreed that he had forfeited the throne of France, and had created a provisional government, charged with the office of re-establishing the functions and administration of the state. The installation of this provisional government was signalized by an address to the French armies, in which they were told that they were no longer the soldiers of Napoleon, that the senate and all France had released them from their oath. Subsequently it was resolved by the senate that

the Bourbon dynasty should be restored; and Louis XVIII. soon after arrived from England, whither he had been residing in rural retirement, and made his solemn entry into Paris. A definitive treaty of peace was signed at Paris between Louis and the allies on the 30th of May and peace was again restored to the distracted world.

TREATY OF PEACE.

The treaty of peace and amity signed at Paris, secured to France its boundaries as they existed in January, 1792. The contracting parties agreed that Holland should have an increase of territory; that the lesser German states should be independent, and united by a Germanic federal league; that Switzerland should enjoy its independence under the government of its own choice; and that Italy, beyond the limits of the Austrian dominions, which were to be restored, should be composed of sovereign independent states. France recovered her colonies from England, with the exception of Tobago, St. Lucie, and the Isle of France with its dependencies. Malta was to be retained by England, which country had recently obtained the Cape of Good Hope by a separate treaty with Holland. French Guiana was restored by Portugal, and the rights of France of fishery on the bank of Newfoundland were all to be restored as they were by the peace of 1783. As a proof of their sincerity in the repeated declarations they had made, that they meant no ill to France—that they waged war only against Napoleon, the allies agreed that their armies should evacuate France, and that all the French prisoners should be restored. This treaty was considered final as regards France; but there were other affairs of an extensive and complicated nature still to be settled, the greater part of Europe requiring reorganization, and her past misfortunes demanding some preconcerted defences for the future—and it was therefore agreed in a separate article that all the powers engaged in the late war should send plenipotentiaries to a congress to be held at Vienna, for the object of completing the pacific dispositions of the treaty of Paris, and of preventing the recurrence of such a war as that in which they had for so many years been engaged, and by which the countries of Europe had been desolated.

HONOURS CONFERRED ON WELLINGTON, ETC.

The news of the important events which had taken place in Fiance arrived while the spring session of the British parliament was sitting. Loud acclamations were heard from every part of the house when Lord Castlereagh, who had been our negociator at Paris, appeared again in the house; but louder and longer still were the shouts of applause, when the great general, who had recently been raised to a dukedom, took his seat among them. A splendid provision was settled on him by parliament. In addition to a former grant of £100,000 the chancellor of the exchequer moved a farther vote of £300,000 for the purchase of an estate for him, but at the suggestion of Whitbread and Mr. Pousonby, two leading members of opposition, it was increased to £400,000. Moreover, the house of commons conferred on his grace the unprecedented distinction of sending a deputation to offer him its thanks, as well as congratulations on his return to his own country. The duke acknowledged this compliment in person on the 1st of July, on which occasion he was greeted by all the members with enthusiasm, and addressed by the speaker in an appropriate and animated speech. Nor were the duke’s companions forgotten. Grants and peerages

were bestowed on Sir Thomas Graham, Sir William Beresford, Sir Rowland Hill, Sir John Hope, and Sir Stapleton Cotton. But there was one name omitted in this list which gave general dissatisfaction in the country—the name of “Picton,” by whose sword the British troops were led to the victorious assault of Ciudad Rodrigo; by whose daring hand the British standard was planted on the castle of Badajoz; whose battalions, when the usurper of the Spanish throne was driven to his last stand at Vittoria, filled the centre of that formidable line, before which the troops of France fled in dismay; and by whose skill, prudence, and valour, exerted in a critical hour, the enemy was foiled in his desperate attempt to break through the barrier of the Pyrenees. Picton received the thanks of the house for his valorous conduct for the seventh time; but that was all, his services were left unrewarded.

VISIT OF THE ALLIED SOVEREIGNS.

As soon as the allied sovereigns had imagined their work was completed in Paris, the Emperor of Russia with his sister, and the King of Prussia with his two sons, came to England on a visit to the prince regent. They were accompanied by a numerous body of counts, barons, dukes, princes, marshals, and generals, among whom were Blucher, and Platoff the Hettman of the Cossacks. The reception given these distinguished visitors was both honourable and flattering; such continuous shows, spectacles, and fêtes were given in honour of their visit as London never before witnessed.

CONGRESS OF VIENNA.

The congress of Vienna was opened on the 1st of November. There were present at this assembly the Emperors of Russia and Austria; the Kings of Prussia, Denmark, Bavaria, and Wurtemburg; the Elector of Hesse: the Grand-duke of Baden; the Dukes of Saxe Weimar, Brunswick, Nassau, Coburg, and several other places. The principal ambassadors and ministers were—from the pope, Cardinal Gonsalvi; from Austria, Prince Metternich; from Russia, Prince Rasumoosky, with Counts Stakelburg and Nesselrode; from Great Britain, Lord Castlereagh and the Duke of Wellington; from Prussia, Prince Hardenburg and Von Humboldt; from France, Talleyrand and Dalburg; from Spain, Don Labrador; from Portugal, Counts Palmella and Lobo da Silveria; from the Netherlands and Nassau, Spoen and Gagern; from Denmark, Bernstorf; from Sweden, Lowenheim; from Sardinia, St. Marsan, &c., &c. One of the first acts of congress was to recognise a new regal title annexed to the British crown, that of Elector of Hanover not being considered suitable to existing circumstances, or to the sixth article of the treaty of Paris respecting the independence of the German states and their federal union. In accordance with the new title annexed to the British crown, a general diet assembled in Germany on the 15th of December, which was opened by the Duke of Cambridge, and which agreed to the plan of a new constitution founded on a representative system. In the same month a protocol from congress announced to the astonished Genoese that their republic would be incorporated with the territories of the king of Sardinia. The fate of its old rival, Venice, was similar; the whole of Lombardy with its fine capital, Milan, was subjected to the leaden yoke of Austria. Of all the sovereigns by right of French conquest Murat, King of Naples, alone was permitted to hold his acquisitions undisturbed.

CAMPAIGN IN AMERICA, ETC.

On the 7th of January the president of congress presented copies of letters which had passed between Lord Castlereagh and Mr. Monroe, in which the former proposed to appoint commissioners to treat about terms of peace, either at London or Gottenburg. The appointed place of meeting was Gottenburg; but the negociations were removed to Ghent, and they did not commence till the following August. In the meantime war continued. Early in February the American general, Wilkinson, moved his head-quarters to Bridlington and Platsburg; and he subsequently attacked a post commanded by Major Hancock, but was repulsed with considerable loss. In the month of May Sir James Yeo and General Drummond reduced the fort of Oswego, on the Lake Ontario, an achievement which was chiefly serviceable by retarding the equipment of the enemy's armament on that water. Soon after this, however, the Americans became the assailants. General Brown, crossing the Niagara, compelled the garrison of Fort Erie to surrender prisoners of war; and then attacked the British lines at Chippawa, and compelled General Riall to retreat on Fort George. This officer, however, being re-enforced by some troops under General Drummond, returned, and compelled the enemy to take refuge under the cannon of Fort Erie. About this time the British government, on the dethronement of Napoleon, having resolved to prosecute the contest with increased vigour, a numerous fleet arrived in the St. Lawrence with 14,000 of the brave troops that had fought in the Peninsula. Sir George Prévost commanded them, and in the month of September he entered the American territory, and advanced against Platsburg, on Lake Champlain, in conjunction with a flotilla under Captain Dordnie of the navy. This expedition, however, resulted disastrously, and Sir George Prevost was recalled to answer charges preferred against him by Sir James Yeo; but he did not live to await his trial. Success, however, attended the British arms in other quarters. During this year Admiral Cochrane destroyed the Baltimore flotilla in the Patuxent; General Ross captured and set fire to the city of Washington, after having encountered and defeated an army of 9,000 Americans; General Pilkington reduced Moose Island, and two others, in the bay of Passamaquoddy; and the English frigate "Phobe" captured the United States' frigate "Essex," off Valparaiso, on the western coast of South America. On the other hand, a British sloop of war was captured by the American sloop "Wasp;" and an expedition, under Admiral Cochrane and Sir E. Pakenham, against New Orleans failed, after a severe rencontre with the American troops who defended the city. The final event of the war was the capture of Fort Bowyer, by the British, in the Gulf of Mexico. But before this event took place, a treaty of peace and amity had been signed at Ghent, which was afterwards ratified by both governments.

{GEORGE III. 1814–1818}

TREATY OF PEACE WITH AMERICA, ETC.

The treaty of Ghent was negociated on the part of America by Messrs. Adams, Bayard, Clay, Russel, and Gallatin; and of Great Britain by Lord Gambier, Mr. Goulburn, and Dr. Adams. On the grand cause of the war, and the primary object of dispute—the right of search, the treaty was wholly silent: the Americans tacitly

abandoning their resistance to the maritime claims of England. The treaty restored conquests on both sides, and concluded a settlement of boundaries on the Canadian frontier, to be afterwards adjusted. Both parties bound themselves to do their utmost in abolishing the slave-trade—yet America is the land of slaves unto this day. The Indians were to be restored to the rights and possessions which they held in 1812. During the interval of the actual conclusion of this treaty and the circulation of the intelligence thereof, a sea-fight took place between the “President,” one of the largest American frigates, and the “Endymion,” a British frigate, commanded by Captain Hope: the “President” was captured.

MEETING OF PARLIAMENT.

{A.D. 1815}

The British parliament reassembled on the 9th of February. The first measure brought under notice was the state of the corn-laws. Mr. Frederic Robinson proposed that no wheat should be imported while the price of a quarter remained under eighty shillings in the United Kingdom; but that it might be introduced from the British territories in North America when the price was sixty-seven shillings. He argued that it was highly impolitic to depend on foreign supplies; and that the greatest encouragement ought to be given to the production of such a quantity of corn as would preclude famine and the necessity of importation. This argument was forcibly controverted by Mr. Baring, who alleged that the practice of importation was not inimical to the progress of agriculture; that the accommodation of general consumers ought to be consulted before the interests of landlords; and that the suggested standard was improperly calculated on the supposed continuance of the present expenses of the latter class. Numerous petitions from the manufacturing and commercial towns were presented against any alterations in the corn-laws, but the bill passed both houses. When it was passed, the corporation of London addressed the prince regent, in hopes that he would withhold his assent from a measure so generally disliked by the nation, but it received his sanction. From that day to this the corn-law question has been a source of constant clamour and discontent. The ferment which the bill occasioned was great: the mob attacked the houses of its supporters, and the military were obliged to be called in to the aid of the civil power before the riots could be quelled: two individuals were shot by the soldiers.

RETURN OF NAPOLEON FROM. ELBA.

While England was thus agitated an event took place which compromised the peace of Europe; this was the return of Napoleon from his insular kingdom to repossess himself of his old French empire. A message from the prince regent was delivered to each house on the 6th of April, communicating this information, and stating that his royal highness had been induced to give directions for the immediate augmentation of our land and sea forces, and to lose no time in communicating with our allies, for the purpose of forming such a concert as might effectually provide for the general and permanent security of Europe. The address in the house of lords passed without a division, but in the commons Mr. Whitbread moved an amendment

expressly recommending the preservation of peace. He was under the impression that the address covertly pledged the house to war, but others of his party thought not, and his amendment was lost by a majority of two hundred and twenty against thirty-seven.

TRIAL BY JURY, ETC.

In the beginning of this session an important act was passed for extending the trial by jury to Scotland. Its provisions differed from those of the English law, and the granting such a trial was made optional in each case with the judges; but the lord chancellor, by whom the bill was introduced, expressed a hope that at no distant period the principle of the bill would receive a further extension. At a later date a bill was passed for the continuance of the restriction of cash-payments by the Bank of England till the 5th of July, 1816.

WAR RESOLVED ON; FINANCIAL MEASURES.

The question of peace or war was discussed at the latter end of May in consequence of a message from the throne. In the lords Earl Grey urged the necessity of a pacific policy, while Lord Grenville advocated war. In the commons Mr. Grattan came forward, and with vehement and eloquent indignation declaimed against the despoiler of Europe, and advocated the most energetic measures to hurl him from his usurped throne. War was resolved on by both lords and commons, and the latter granted the necessary supplies. And this they did munificently; no less a sum than £90,000,000 was voted for the public service. Out of this sum £9,000,000 was to be paid in subsidies to our allies, they still requiring the gold of England to urge them onwards to action. In order to meet the expenditure the unjust and inquisitorial income-tax was continued, and £42,000,000 were obtained by loan. The Irish proportion of the supplies was £9,760,814; the rest was furnished from the inexhaustible sources of Great Britain.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 11th of July by a speech from the throne, in which the prince regent, after recapitulating the events which led to the glorious termination of the war—for the war, as will be seen, had terminated—trusted that there would be no relaxation in the exertions necessary to establish the permanent peace and security of Europe.

CONGRESS OF VIENNA.

The Congress of Vienna continued its sitting at the commencement of this year. The result of the deliberations of the allied sovereigns may be thus briefly stated:—The King of Prussia obtained the electorate of Saxony, Swedish Pornerania, and a great portion of the territory between the Rhine and the Meuse; Russia obtained the grand duchy of Warsaw under the name of the kingdom of Poland; Austria, as before related, recovered Lombardy, etc.; Tuscany was given to the Archduke Ferdinand; Genoa was bestowed upon the King of Sardinia; Parma and Placentia were ratified to the ex-empress Maria Louisa; the foreign policy of the German states was submitted to the decision of a federal diet, under the control of

Austria and Prussia; Sweden acquired Norway at the expense of Denmark; England was gratified by the acquisition of Heligoland, the Cape of Good Hope, the Isle of France, the Ionian Islands, Malta, and all the colonies won during the war; and Holland and Belgium were confirmed as the kingdom of the Netherlands, under the House of Orange. The allied sovereigns were thus engaged in parcelling out the world, when Talleyrand informed them that the prisoner of Elba had returned to France, and was again seated on the throne of the Bourbons.

AFFAIRS OF FRANCE.

Although Napoleon consented to retire to the island of Elba over which he was to rule, it was never his intention to remain there. No sooner had he arrived, in fact, than he commenced his intrigues, in order to effect a return to France and empire. Under the plea of nonnecessity he dismissed his few troops, and these joined their old regiments for the purpose of preparing the general mind to receive back the emperor, who had so often led them on to victory. All these regiments were, in fact, almost to a man in his favour; the tri-coloured cockade was preserved in their knapsacks, and his memory in their hearts. These sentiments were reported to Napoleon; and on the 27th of February he embarked in a brig of war, followed by six light barks, and, stealing cautiously over the Mediterranean, arrived on the 1st of March at Camres. He had with him one thousand soldiers, and his three generals, Bertrand, Drouet, and Cambronne. With these he proceeded onwards to Paris; and during several days he marched without meeting any forces. On the 7th of March, however, a body of seven hundred men presented themselves at the defile of Vizille, near Grenoble; and the officer in command threatened to fire on his party. But Napoleon was not afraid of being shot by Frenchmen. Advancing alone, and throwing open his riding coat, he remarked:—“Soldiers, it is I! Look upon me! If there is a man amongst you who would slay his emperor, he comes with uncovered breast to offer himself to his weapon!” Instead of the sound of musketry the loud shout of “Long live the emperor!” rent the air; and, hoisting the same standard with his own troops all marched together upon Grenoble. They were soon after joined by Colonel Labédoyère, at the head of the seventh regiment; and Ney was the next to join his ranks. Ney had been sent by the French government to check his progress; and he had boasted that he would bring Napoleon to Paris in an iron cage: but no sooner had he reached Auxerre than he declared the Bourbon cause hopeless, and at the head of 14,000 men joined his old emperor’s standard. Finally, with the exception of Marmont, Macdonald, and some other marshals, all the army deserted the cause of the Bourbons. Louis fled from, and Napoleon entered Paris in triumph.

Napoleon resumed the reigns of empire in the midst of the loud acclamations of the Parisians; though there were many who preserved an ominous silence. All, however, seemed to go well; for at an extraordinary assembly in the Champ de Mai of the electoral colleges, a new constitution was sworn to by the emperor and men of all parties. But there was a storm arising in the horizon which was to shatter his throne into pieces for ever. All Europe was preparing to crush his newly risen power. Britain, Russia, Austria, Prussia, and Holland entered into a treaty, binding themselves to support the house of Bourbon; to preserve inviolate the treaty of Paris; to bring into

the field 150,000 men each; and not to lay down their arms until Napoleon was for ever crushed.

THE BATTLE OF WATERLOO.

Napoleon saw the storm arising, and prepared to ward off its fury. France became an immense camp. Armies were dispatched towards Belgium, Lorraine, Franche Comte, the Alps, and the Pyrenees. The head-quarters of the grand army were at Laon, from whence communications were preserved with Valenciennes, Mauberge, Lisle, and the armies assembled on the Moselle. Napoleon joined that section of the army destined to enter Belgium, his design being to “measure himself with Wellington.” The army raised for this project consisted of about 125,000 men and three hundred and fifty pieces of cannon. Against this force Wellington could only oppose 76,000 men, not one half of which were British, and but some eighty-four pieces of cannon. The duke’s head-quarters were at Brussels; and on his left, in and around Namur, lay Marshal Blucher, with about 80,000 men and two hundred cannon. Napoleon commenced operations by crossing the Sombre and taking Charleroi, which was garrisoned by Prussians. This accomplished, Napoleon hastened towards Brussels, resolving to strike a signal blow against the British. The Duke of Wellington was at a ball when intelligence arrived of this movement; and he gave orders for every man to repair to his post. At first the English took up their position at Quatre Bras; but tidings having arrived that Napoleon had again defeated the Prussians at Ligny, the Duke fell back with his army to the position of Waterloo. It was at the dawn of the 18th of June that Napoleon discerned the British on the heights of Waterloo; and in the exuberance of his joy he exclaimed, “Ah! I have these English!” The position taken up by the duke was in front of the village of Waterloo, and crossed the high roads from Charleroi and Nivelles. It had its right thrown back to a ravine near Merke-Braine, and its left extended to a height above the hamlet of Ter la Haye; in front of the right centre the troops occupied the house and gardens of Hougomont, which covered the return of that flank; and in front of the left centre they occupied the farm of La Haye Sainte. By his left the duke communicated with Blucher at Havre, who promised to support him with one or more corps if necessary. In the rear of the British centre was the farm of Monte St. Jean, and a little further behind a village of the same name. While stationed at Quatre Bras a partial engagement had taken place between the two armies—Ney commanding the French—and Wellington had lost 2.380 in wounded, and three hundred and fifty in killed: his force united in the position at Waterloo, therefore, was not 73,000 men, 21,000 of whom were Belgian and Nassau troops, mostly of an inferior quality. Napoleon had lost many in his conflicts with the Prussians at Charleroi and Ligny, and with the British at Quatre Bras. He had also despatched 32,000 men, under Grouchy, to follow the Prussians, and to prevent their joining the English, so that his army was reduced to about 78,000 men when the battle of Waterloo commenced. But his troops were veterans almost to a man, and there were at least 100,000 soldiers of the same quality behind them in France. He collected his army on a range of heights in front of the British position, and not above a mile from it. His right was in advance of Planchenois, and his left rested on the Genappe road, while his rear was skirted by thick woods. On the morning of the 18th, when Napoleon mounted his horse to survey

Wellington’s position, he could see but few troops, and he was induced to fancy that the British general had made a retreat. “Wellington never exhibits his troops,” said General Foy; “but if he is yonder, I must warn your majesty that the English infantry in close fighting are very demons.” Soult added his warning to that of Foy; but, nevertheless, Napoleon commenced the battle confident of victory. It was shortly after ten o’clock on the Sabbath-day—a day sacred to devotion and rest—that a stir was observed along the French lines, and especially near the farm of Rossome, where Napoleon stood with his celebrated old guard. The post of Hougoumont, on the right of Wellington’s centre, was first attacked, which post was occupied by General Byng’s brigade of guards: but the attack was vain; the post was maintained, notwithstanding the desperate and repeated efforts of large bodies of the enemy to obtain possession. This first attack was accompanied by a heavy cannonade on the whole line of the British; which was answered from Wellington’s cannon, and which committed a fearful havoc among the French columns, which successively attacked the post of Hougoumont. The object of Wellington was to maintain his positions till the arrival of some Prussian corps; and the object of Napoleon was to crush him before Blucher could send a single battalion to his support. Hence it was that he repeated his attacks with heavy columns of infantry, with a numerous and brilliant cavalry, and with his formidable artillery. But from every charge his columns returned shattered and thinned. Scarcely a gleam of success dawned upon Napoleon during the whole day. In one of their attacks, indeed, the farm-house of La Haye Sainte was carried by the French; but it was not till the German legion which defended it had perished to a man. Thus affairs stood when Napoleon ordered his cavalry to charge the British infantry in squadrons and in masses—to charge home, and to find a passage through their glittering bayonets. Their efforts were determined, but they all proved fruitless; the British infantry formed in squares, and the best of his horsemen bit the dust. Still Napoleon’s cry was “Forward!” thus goading them on to destruction. Their overthrow was hastened by a charge of British cavalry, which had hitherto been very little more than a spectator of the battle. Seizing the moment favourable for the charge, Wellington called up Lord Ernest Somerset’s brigade of heavy cavalry, consisting of the life-guards, the royal horse-guards, and the first dragoon-guards, and directed them to charge the already crippled cavalry of Napoleon. These regiments proved irresistible; horses and men fell on every hand; and the French cuirassiers, whose breastplates had glittered in so many battles and victories, were completely destroyed. When Lord Ernest Somerset’s brigade returned from their charge, they brought with them about two thousand prisoners, and an imperial eagle. By this time, about seven o’clock in the evening, every part of the French army, except the guards, who had been kept as a reserve had been engaged, repulsed, and beaten. The British loss in killed and wounded had also been immense; but they had not lost a single position, and they were yet full of heart and confidence in their leader. It was evident, indeed, that even if no Prussians should arrive Napoleon would be defeated. At this critical moment, however, a numerous body of men was seen in the distance; and anxiety was depicted in the faces of both Napoleon and Wellington. Napoleon hoped it might be Grouchy, and Wellington hoped it might be Blucher. Onwards the moving mass came, and it proved to be the Prussians under Blucher: he had left a body of men to confront Grouchy, and hastened to support Wellington, As soon as the French

generals discovered who the new comers were, they advised Napoleon to retreat; but although his defeat was now morally certain, his cry was still, “Forward!” Calling forward his guard, he bade them make a desperate effort on the British left centre, near the farm of La Haye Sainte. This guard advanced in two massy columns, leaving four battalions of the old guard in reserve, near to the spot where Napoleon sat on his horse, rigid as a statue, watching their motions. They moved on resolutely under a destructive fire from the British position; and when within fifty yards from the British line they attempted to deploy. The close fire upon them, however, was too terrible to admit of this movement; their flanks were enclosed by some of our guards; they got mixed together in a mass; and in that mass they were broken and slaughtered, or compelled to hasten down the hill in irretrievable confusion. The grand army of Napoleon never again stood to face its enemies; it was in fact destroyed, for “all the rest of the work was headlong, unresisted pursuit, slaughter of fugitives who had entirely lost their military formation, and capture of prisoners, artillery, and spoils.” As the imperial guards reeled from the British position, and just as Blucher joined in person with a corps of his army to the left of the British line, Wellington moved forward his whole line of infantry, supported by the cavalry and artillery, and swept all before him. At every point the attack succeeded. The French fled in the utmost confusion; Napoleon himself setting them the example; and one hundred and fifty pieces of cannon, with all their ammunition, fell into the hands of the conquerors. Wellington and Marshal Blucher met at a farm-house, called Maison Rouge; and here the duke gave orders for his troops to halt, and left the task of pursuit to the Prussians. Blucher declared that he would follow up the French with his last horse and his last man; and he instantly started off with two Prussian corps in pursuit of them. The fugitives dispersed all over the country; but the Prussians did fearful execution upon them, knocking them down in heaps like cattle: at one place eight hundred of them were thus dispatched. Many of the French ran across fields and into woods, where numbers were afterwards found dead or grievously wounded. As for the high-road it resembled the sea-shore after some fearful shipwreck—cannon, caissons, carriages, baggage, arms, and wreck of every kind were picked up by the pursuers. One of the first hauls, indeed, which Blucher made, was sixty pieces of cannon belonging to the imperial guard; and with these were captured carriages, baggage, &c., belonging to Napoleon himself. The retreat, in a word, was most disastrous; the French did not cease flying until they had passed all their frontier fortresses; and then they dispersed all over the country, selling their arms and their horses, and running to their homes. In the battle and in the retreat the French had lost thirty thousand men in killed and wounded; and, what was more fatal to them, by this event their spirits were broken, and they could not again take the field. The loss on the part of the allies was also immense; the British and the Hanoverians alone having 2,432 killed, and 9,528 wounded, in which number there were more than six hundred officers. Among the slain were Generals Picton, Sir William Ponsonby, Lieutenant-colonel the Honourable Sir Alexander Gordon, and Colonel de Lancy, Wellington’s quarter-master general. Among the wounded, the Earl of Uxbridge, General Cooke, General Halkett, General Barnes, General Baron Allen, Lieutenant-colonel Lord Fitzroy Somerset, and the Prince of Orange. Of Wellington’s staff, indeed, there was scarcely an officer who did not receive a wound. Such was

the battle of Waterloo: the victory was gained at a great price; but by it this long and terrible war, which had desolated hearths and firesides and the fair face of nature for many a long year, was finished. So fearful was the scene after the battle that the Duke of Wellington, forgetting the exultation of victory, exclaimed, as he viewed it in the bright moonlight night which succeeded, “My heart is almost broken by the terrible loss I have sustained of my old friends and companions, and my poor soldiers.” Such a sentiment does honour to humanity.

[Illustration: 360.jpg BATTLE OF WATERLOO]

CAPTURE OF PARIS.—SURRENDER OF NAPOLEON, ETC.

The first man that carried the news of the disaster to Paris was Napoleon himself. Leaving his brother Jerome on the frontier to try if he could rally some of the remains of his army, he flew to the capital, where he arrived on the night of the 20th. It is evident that he still calculated upon the devotion of the _corps législatif_ to his cause; but he soon discovered that he had forfeited their affection. Had he been victorious they would, doubtless, still have fawned upon him; but now he was thoroughly beaten, they demanded his abdication. Both chambers declared that there was but one man between France and peace; and Napoleon found himself compelled to sign his second abdication. He did this in favour of his son; but the chambers refused to pronounce his son emperor, and formed a temporary government for the purpose of conducting the administration. In the meantime the allies had been marching towards Paris. They were opposed by French troops at St. Cloud, Issy, and Mendon, but no successful opposition could be made; and Blucher prepared to take a terrible revenge on Paris for the calamities brought on suffering Europe. His vengeance, however, was averted. On the 3rd of July Massena, commander-in-chief of the French forces, signed a capitulation with the allies, by which it was agreed that Louis XVIII. should be restored to his throne; that the French troops should evacuate Paris; and that Paris should be garrisoned by the allied armies Thus deserted, Napoleon resolved to retire from France. A frigate was waiting at Rochefort to convey him to America; but the English cruisers were hovering about the port, and he found escape impossible. In this extremity he presented himself with his suite on board the English ship, Bellerophon, from whence he wrote a letter, asking the prince regent’s protection. He imagined that he would be allowed to reside in England in a private capacity; but his known restless ambition precluded the possibility of this favour being extended to him. Taught by experience that his ambition was irrepressible, an order was given to convey him to St. Helena; and soon afterwards he was conveyed to that rock which was destined to be his retreat, his restraint, and for a time his tomb. The dream of his ambition had passed away for ever.

“Fame is the shade of immortality, And in itself a shadow; soon as caught Contemn’d, it shrinks to nothing in the grasp.” —Young

{GEORGE III. 1814–1818}

RETURN OF LOUIS XVIII. TO PARIS.

Louis XVIII. returned to his capital on the 8th of July. It was not, however, until the 7th of October that the two French chambers, corresponding with the British parliament were assembled. At that time a treaty or convention of the allies was formally announced, and on the 20th of November it received the final signature of the contracting powers. By this treaty—seven French fortresses were to be occupied by 150,000 of the allied troops at the expense of France for a period not exceeding five years, and France was to pay 700,000,000 francs as an indemnity. Among the concessions made, was that of the Ionian Islands being declared independent, under the protection of England. On their part, the allies engaged to employ their united forces on any future occasion, should the same revolutionary principles which supported the usurpation of Napoleon under other forms again disturb France, and menace the repose of other states. This was planting an iron foot upon the neck of rebellion, but it was the only means of securing the peace of Europe. The French government and the nation at large felt the bitterness of the terms: but, conscious of their justice, they submitted to them without a murmur. On the re-establishment of the kingly government in France, measures were taken for the punishment of those who had been most active in the late rebellion. Among those who were punished with death was the celebrated Marshal Ney: “he had sown the wind, and he reaped the whirlwind.”

BRITAIN GAINS POSSESSION OF THE ISLAND OF CEYLON.

During this eventful year the sovereignty of Great Britain was extended over the island of Ceylon. The King of Candy, who possessed the interior, by his atrocities, compelled the inhabitants to throw off his yoke. Early in the year, General Brownrigg, the governor cf the British possessions on the coast, issued a proclamation declaring that he made war on the tyrant alone, and that protection would be afforded to his oppressed subjects. He penetrated to the capital amidst the acclamations of the inhabitants; the king-was delivered into his hands; and a treaty was concluded by which the British authority was established in the whole island, the rights and immunities of the chiefs being secured: torture and mutilation were abolished, and no sentence of death was to be executed without a warrant from the British governor. Thus this fine and fruitful island was added to “Britain’s wide domain.”

EAST INDIA AFFAIRS.

In the East Indies some disputes took place this year between the British government and the state of Nepaul, respecting boundaries. Dispute was followed by hostility, and a force of 30,000 men was ordered by the governor-general, Lord Moira, to penetrate that mountainous and intricate country. Several gallant but unsuccessful attempts were made upon the fort of Kalunga, in one of which General Gillespie the commander, was slain. The fort, however, was finally evacuated by its garrison; but a series of warlike operations was continued for several months with great bravery on both sides, and with various success. The final result of the war, however, was favourable to the British. After a campaign of great difficulty, the whole country from Kemaoon to the Sutlej was ceded to the British company.

MEETING OF PARLIAMENT.

Parliament assembled on the 1st of February, when, in consequence of the indisposition of the prince regent, it was opened by commission. The speech congratulated the two houses upon the successes obtained by his majesty's arms with those of his allies, and expressed a hope that it would be followed by the lasting repose and security of Europe, The prince regent lamented the heavy pressure which the late extraordinary exertions had produced upon the country; but he assured the houses that they might rely on every disposition on his part to concur in such measures of economy as might be found consistent with the interest of the country, and with that station which it occupied in Europe. The address was agreed to in the lords _nem. con._, and in the commons an amendment, moved by Mr. Brand, censuring ministers for the length of the late prorogation, which had caused delay in public affairs of importance, was negatived by ninety against twenty-three.

DEBATES ON THE TREATIES.

On the 9th of February Mr. Brougham moved for a copy of the treaty concluded at Paris, and designated by the title of "the Holy Alliance." By this document, the three potentates by whom it was signed—the sovereigns of Austria, Russia, and Prussia—declared their resolution to take for their guide the precepts of the Christian religion, both in their domestic administration and foreign relations. Mr. Brougham observed, that there was something so singular in the wording of this document as to warrant jealousy of their designs. He could not imagine that it referred to objects merely spiritual, for the partition of Poland had been prefaced by similar language, and the proclamation of the Empress Catherine, which concluded that fatal tragedy, was couched in nearly the same terms. Lord Castlereagh vindicated the motives of the confederated sovereigns, and stated that the prince regent—whose accession to this alliance was prevented by the forms of the British constitution—expressed his satisfaction in its tendency. He opposed the production of the document, because it was contrary to the practice of parliament to call for copies of treaties to which this country was no party.

FINANCIAL STATEMENTS.

From an abstract of the net produce of the revenue in the years ending the 5th of January, 1815, and the 5th of January, 1816, the amount appeared to be £66,443,802, showing an excess of £1,013,821 over that of the preceding year. But notwithstanding this excess the chancellor of the exchequer announced his intention of proposing an income-tax of five per cent., there being no mode, he observed, less oppressive, or so economical. With a view of gaining over the great mass of the people, he declared himself ready to exempt all incomes under £150 per annum, and farms paying less than that sum in rent. But the people were not thus to be bribed. Such a storm of opposition was raised against it by the nation at large that when a motion for the continuance of the income-tax was made, it was negatived by two hundred and thirty-eight against two hundred and thirty one. Thus defeated, the chancellor of the exchequer had recourse to a loan; and this loan was increased by £2,000,000, by the voluntary relinquishment of the war-tax on malt, which tax was

relinquished in order to afford some relief to the agriculturists, who were at this time labouring under great distress. In bringing forward the budget on the 27th of May, the chancellor of the exchequer announced that the surplus of the preceding year's grants in hand amounted to £5,663,755. The supplies for the year were estimated at £39,400,000, and the ways and means to meet them as deficient about £2,500,000; which deficiency was made up by a loan of £3,000,000, obtained from the directors of the Bank of England, at three per cent. The amount of the army estimates provoked a long and vehement discussion; but ministers were successful in their favourite object of maintaining a large standing army, their principal argument being that the situation of the continent rendered such a measure necessary. The number voted was 176,615 men, including 30,000 stationed in France; and a vote of 33,000 men for the navy was also agreed to, after a violent debate. Out of the large military force voted 25,000 men were to be stationed in Ireland, in order to keep that country in awe. The necessity of such a force naturally excited some surprise, and led to some animadversions on the measures of the existing cabinet. But no cabinet: which has ever existed can fairly be charged with all the evils and the abuses which have plagued that country. Generally speaking, these evils and abuses have arisen from the Irish people themselves, their factious spirit having elicited the severe laws enacted to preserve peace. Mr. Peel, who had lately commenced his political career, justly ascribed the disturbances in Ireland to a systematic violation of all laws, which loudly called for the introduction of a military force. The general routine of motions for inquiry into the state of Ireland, and the repeal of Catholic disabilities were followed by their usual results; but a measure of some importance—the consolidation of the British and Irish exchequers—was effected in the course of this session. A bill was also passed for a new silver coinage.

ROYAL MARRIAGES.

A message from the prince regent to both houses on the 14th of March, announced the marriage contract of his daughter, the Princess Charlotte Augusta, with his serene highness, Prince Leopold of Saxe Cobourg. An annual sum of £60,000 was voted to them during their joint lives, the whole to be continued, should the prince die first, and £50,000 to him should he be the survivor; £60,000 were also granted by way of outfit. The nuptials were celebrated on the 2nd of May; the nation partaking in the joy, not only from the lively interest which the people took in the personal character of the princess, but from the circumstance that she united herself with the object of her own choice. Two months after the marriage of the Princess Charlotte, another marriage took place, between the Princess Mary, fourth daughter of his majesty, and the Duke of Gloucester, her cousin. Their establishments were formed on a scale which rendered a further application to the public purse unnecessary.

VARIOUS MOTIONS.

During this session, Mr. Tierney moved the abolition of the office of secretary of state for the department of war and the colonies, which was lost by a great majority. A proposition that the expenditure of the civil list should not exceed the revenue, &c., was also rejected. A bill relative to the registry and regulation of slaves, which had been introduced by Mr. Wilberforce towards the close of the last session, became the

subject of warm debates, in consequence of an insurrection which had taken place at Barbadoes. A petition from the merchants of Bristol deprecated the measure, as disclosing a spirit of interference with the local legislation of the colonies; and on the suggestion of Lord Castlereagh, Mr. Wilberforce postponed his motion, and moved for papers on the subject. Mr. Palmer, who argued that the insurrection arose from expectations among the slaves of entire emancipation, fostered by the proposed registry-bill, moved an amendment to the effect that the colonial authorities should be recommended to promote the moral and religious improvement, as well as the comfort and happiness of the negroes: this amendment was carried.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 2nd of July. The speech of the prince regent expressed regret at the distresses suffered by many classes of his majesty’s subjects; but which it was hoped would be found to have arisen from causes of a temporary nature.

RIOTS, ETC.

The general distress felt at this period arose from the expensive war in which England had been so long-engaged. As the year, advanced, the calamities of an inclement season and a deficient harvest were added to a general stagnation of trade and commerce. The consequence of all this was a sudden rise in the price of the necessaries of life, which was combined with a reduction of wages and want of employment among the poor. Distress engendered discontent; and, unfortunately, there were mischievous characters abroad, who availed themselves of the irritated feelings of the people to stir them up to sedition. Serious tumults took place in the counties of Suffolk, Norfolk, Cambridge, and various other parts of the kingdom; and in the Isle of Ely an organized insurrection broke out which was not suppressed without great difficulty. Some of the rioters were taken, and twenty-four were found guilty, of whom five suffered the extremity of the law. The metropolis had continued tranquil until nearly the close of the year, but at length the distress felt goaded the multitude on to seditious acts. Two meetings were convened in Spa-fields by some of the mob-orators, to petition the regent for a reform of abuses; and a vast concourse of rabble attended which on the second occasion led to a serious riot. Mr. Henry Hunt figured as the principal demagogue; but though his language was seditious and inflammatory, he had the prudence to withdraw before the consequences of his harangue were manifested. Like Gash-ford, however, he had stirred up mischief, though he retired before it was committed. A band of his more desperate associates, who had attended him with a tri-coloured flag, and other symbols of a revolutionary nature, endeavoured to lead the mob into the city. Some few followed their standard; and on their march they broke into the shop of a gunsmith, on Snowhill to obtain arms, and a young man, named Watson, there shot a gentleman who offered some resistance. Seizing all the arms they could find in that and other shops, they proceeded to the Royal Exchange, when the lord mayor and aldermen, after vainly exhorting them to disperse, boldly secured some of the most forward, and shut the gates against the remainder. The mob fired, but without effect, over the gates on the magistrates; but a strong body of troops having been quickly marched into the city,

the rioters were finally overpowered, and compelled to disperse. Some examples were made of the ringleaders; but the greatest criminal, Watson, effected his escape to America. The vigilance of government was by these events excited; and, after experience of this danger, every popular meeting in the vicinity of the metropolis was watched by large bodies of the military and special constables.

EXPEDITION TO ALGIERS.

The piratical state of Barbary had for ages infested the commerce of the Mediterranean, and subjected Christians to the most dreadful slavery. No check had been given them in their career, although during the late war the fears of the barbarians had induced them to respect the British flag. The renewed freedom of commerce, however, after the peace, tempted the three principal states of Tunis, Tripoli, and Algiers to augment the number of their corsairs; and the ferocious system of depredation which they carried on against the vessels of nations in alliance or under the protection of Great Britain, rendered it imperative on the mistress of the ocean to vindicate her honour. For this purpose Lord Exmouth, at this time commanding in the Mediterranean, was instructed to demand security from these piratical states for the commerce of the Ionian Islands; to negociate a peace for Naples and Sardinia; and, if possible, to obtain a general abolition of Christian slavery. His lordship proceeded first to Algiers, where he obtained the release of all Ionian captives, and the ratification of a pacific treaty for Naples and Sicily: the former nation paying a ransom of five hundred dollars, and the latter three hundred dollars per head for their redeemed slaves. His lordship then proceeded to Tunis and Tripoli, the deys of which places appeared disposed to accede to any terms. Lord Exmouth proposed a treaty, for ever prohibiting the making of Christian slaves, and that such prisoners as might be taken in war should be treated according to the practice of civilized Europe. These stipulations were agreed to and the treaties signed. In the meantime he had received instructions to claim from Algiers the privilege of selling and refitting privateers in its port. On his return to that place upon this mission, he took the opportunity of pressing on that state the abolition of Christian slavery; but his request was haughtily refused, and when his lordship was returning to the fleet he was insulted by the crowd, and narrowly escaped assassination. As Lord Exmouth had not received definite instructions from the admiralty, he did not think himself justified in proceeding to extremities; and he therefore agreed that the dey should appoint an ambassador, who might proceed first to Constantinople, for the purpose of gaining the sanction of the Ottoman Porte, and thence to London, to treat on his proposal. His lordship then returned to England; but before he reached its shores, accounts arrived, which determined government at once to exact satisfaction for the past and security for the future. On the 21st of May the dey had ordered the British consul, Mr. Macdonald, to be confined, and all the English vessels in Oran to be seized. The Algerines likewise murdered the crews of several Italian vessels under the British flag, that were engaged in the coral-fishery at Bona. Thus braved, ministers resolved to punish the Algerines, and to enforce obedience on the common enemies of the civilized world. Lord Exmouth received instructions to complete his work; and he sailed on the 28th of July, in the “Queen Charlotte” of 110 guns, with four other ships of the line, five frigates, with sloops,

bomb-vessels, &c., for that purpose. With this fleet he arrived at Gibraltar on the 9th of August, where he met with a Dutch squadron of five frigates and a corvette, commanded by Vice-admiral Von Capellem, who, on learning the object of the expedition, solicited and obtained leave to assist in the enterprise. The Algerines expected this attack, and had been preparing for it by the removal of every article of value, and by strengthening their already formidable fortifications. The city of Algiers is built on the declivity of a hill, in a triangular shape; the base being the sea-front, which rises directly from the water, and is about a mile in length. It was strongly defended by batteries rising one above another, and along a tongue of land, which defends the entrance into the inner part of the harbour, and also the approach to it, was a range of strong batteries, which our ships were obliged to pass, to take their station near the town, for the purpose of bombarding it. In the whole, the city was defended by about one thousand pieces of ordnance. During a conversation with Captain Brisbane, Lord Nelson had named twenty-five ships of the line as the force requisite to attack Algiers, but Lord Exmouth was satisfied he could accomplish the enterprise with the small fleet above described. He arrived off Algiers on the 27th of August; and all proposals for conciliation, and all demands for the relief of the British consul being ineffectual, the fleet passed the batteries and commenced their appointed work. The “Queen Charlotte” led the attack, and she answered to the guns of the batteries with a broadside which swept off’ about five hundred men from the crowded mole, soldiers and spectators. Before the battle became general, the “Queen Charlotte” had demolished the fortifications on the mole; then drawing her broadside more to the northward, she soon brought down the tower of the light-house. Gun after gun fell from the batteries, and the last of them was dismounted just as the artillerymen were in the act of discharging it. The battle had not long commenced when the enemy’s flotilla of gim-boats advanced with daring courage to board the “Queen Charlotte,” which by this time was seconded by the “Leander;” but as soon as they were discovered in the midst of the smoke, a few guns from both these ships sent thirty-three of the Algerine gun-boats to the bottom. The cannonade, which was of the most awful description, had continued for an hour without producing any signs of submission, and then Lord Exmouth determined to destroy the enemy’s ships. This was effected by throwing laboratory torches and carcass-shells on board of the nearest frigates, which, taking fire, communicated the flames to the rest, until they were burnt to the water’s edge. The bombardment continued, with little intermission, till nearly eleven: the Algerines fighting all the time with the utmost fury and desperation. About ten it was deemed advisable to take a large offing during the night. It was extremely dark: but the darkness was illuminated by a violent storm of lightning accompanied with thunder, and by the incessant fire of the batteries. The firing ceased about half-past eleven, and Lord Exmouth collected in his cabin all the wounded that could safely be moved to join with him and his officers in thanksgiving to the Almighty for their victory and preservation. The work was indeed effected: at the dawn of the returning day the city and harbour of Algiers exhibited a shattered heap of ruins. In the conflict, the loss of the Algerines amounted to about 7,000: the British had 128 killed, and 690 wounded, and the Dutch, who nobly aided in this enterprise, thirteen killed and fifty-two wounded. The dey was now humbled. Lord Exmouth now repeated with effect the proposals which had been before rejected, and

the result of the victory was, that the dey agreed to abolish Christian slavery; to deliver up all the slaves in his dominion, of whatever nation they might be; to return all the money received for the redemption of slaves since the commencement of the present year; and to make reparation, and a public apology to the British consul for the wrongs and indignities to which he had been subjected. Before Lord Exmouth quitted the bay of Algiers every Christian prisoner was set at liberty, and the dey had refunded 382,500 dollars to the governments of Naples and Sardinia. The squadron quitted the bay on the 3rd of September, with the conscious satisfaction of having rescued the British character from the imputation of tamely permitting the atrocities which these piratical states had so long exercised against the weaker powers, and with the proud consciousness that every man had done his duty. Lord Exmouth, who was twice slightly wounded in the action, was raised from the dignity of baron to that of Viscount, and a considerable promotion likewise took place among the officers who had so nobly participated in the chastisement of the barbarian foe of the Christian world.

MEETING OF PARLIAMENT.

{A.D. 1817}

Parliament was opened by the prince regent in person. The chief topics of his speech were the continued assurances of amity received from foreign powers; the recent victory at Algiers; and the still existing deficiency in the revenue. He concluded thus:—“In considering our internal situation, you will, I doubt not, feel a just indignation at the attempts which have been made to take advantage of the distress of the country for the purpose of exciting a spirit of sedition and violence. I am too well convinced of the loyalty and good sense of the great body of his majesty’s subjects, to believe them capable of being perverted by the arts which are employed to seduce them; but I am determined to omit no precautions for preserving the public peace, and for counteracting the designs of the disaffected. I rely with the utmost confidence, also, on your cordial support, and co-operation, in upholding a system of law and government from which we have derived inestimable advantages; which has enabled us to conclude, with unexampled glory, a contest whereon depended the best interests of mankind, and which has been hitherto felt by ourselves, as it is acknowledged by other nations, to be the most perfect that had fallen to the lot of any people.”

The prince regent had good reason to complain of the turbulent spirit displayed by the factions: for on his way to the house he had been assailed with tumultuous expressions of disapprobation; and on his return from it, he was assailed by missiles of every description, and the glass of his carriage was broken by what was supposed to be two balls from an air-gun, aimed at his person. This outrage was communicated to the lords by Lord Sidmouth; and a conference was held with the house of commons, at which a joint address, congratulating his royal highness on his escape, was agreed upon. The consideration of the usual address in answer to the speech was postponed till the following day, when Earl Grey moved in the lords an amendment, chiefly for the purpose of expressing an opinion that the prince regent was under a

delusion respecting the degree and probable duration of the pressure on the resources of the country. He declared this to be much more extensive in its operations, more severe in its effects, more deep and general in its causes, and more difficult to be removed, than that which had prevailed at the termination of former wars. Added to this declaration in the amendment, was a profession of regret that the prince regent should not have been sooner advised to adopt measures of rigid economy and retrenchment, especially with respect to our military establishments; and a resolution that the house should go immediately into a committee on the state of the nation. This amendment, however, was negatived without a division; and a similar one moved in the commons was rejected by two hundred and sixty-four against one hundred and twelve.

{GEORGE III. 1814–1818}

MEASURES OF ECONOMY.

On the 7th of February a communication was made by Lord Castlereagh from the prince regent, stating that out of sympathy to a suffering people he had determined upon a cession of £50,000 per annum of that part of his income which related to his personal expenses, during the continuance of the existing distress. At the same time his lordship communicated the intention of ministers to dispense with one-tenth of their official incomes, while the necessities of the state should require such a sacrifice. Lord Camden, also, one of the tellers of the exchequer, relinquished, _pro tempore_, the whole of his large profits with the exception of £2,500, the regulated income of the other tellers. On the reduced scale the expenditure of the year was estimated at £6,500,000 less than that of the preceding year, and a further saving of upwards of £1,000,000 was calculated upon for the year 1818. On the same day that Lord Castlereagh made the above communication to the house, he moved for the appointment of a committee of inquiry respecting the income and expenditure of the state. The first report of this committee was made on the 5th of May, when Mr. Davies Gilbert stated that, in recommending the suppression of certain offices, it was at the same time necessary that his majesty should be enabled to reward meritorious persons, by the power of granting pensions according to merit and length of service. A bill, entitled “the Civil Services Compensation Bill,” was accordingly introduced, with another for abolishing the offices of wardens and justices in Eyre, both of which passed the houses with very little opposition. About the time this bill passed Mr. Abbott resigned the speakership, and was created Lord Colchester, with a pension of £4000 to himself and his immediate successor. He was succeeded by Mr. Charles Manners Sutton, eldest son of the Archbishop of Canterbury.

RESTRICTIONS ON PUBLIC LIBERTY.

On the 3rd of February a message was communicated to both houses, announcing that the prince-regent had ordered the production of papers which contained an account of certain meetings and combinations held in various parts of the country, tending to disturb public tranquillity, to alienate the affection of the people from his majesty’s person and government, and to overthrow the whole frame of the laws and

constitution. His royal highness recommended these papers to the immediate consideration of parliament; and they were accordingly referred by each house to a secret committee. It was expected that coercive measures would be adopted; but in the face of this a mob, headed by Henry Hunt and others, met in Spa-fields on the 10th of February, under the pretext of petitioning for parliamentary reform. The reports of the secret committees were presented on the 18th of February; and, on their recommendation, stringent acts were passed to correct the evil. The first consequence of these reports was the apprehension of the elder Watson, Preston, Hooper, and Keene, who were committed to the Tower on a charge of high-treason; a reward of five hundred pounds was also offered for the apprehension of a man named Thistlewood; and he was also taken and lodged with his associates. The measures adopted by parliament for the security of the public peace, were the suspension of the _Habeas Corpus_ Act until the 1st of July next; an extension of the act of 1795, for the security of the king’s person, to that of the regent; the revival of an act of 1795 against corresponding societies; and a reenactment of that regarding the seduction of soldiers and sailors from their allegiance. Petitions were presented against these restrictions on public liberty, and they were opposed in every stage by the opposition; but they were carried in both houses by large majorities. Although these acts appeared to infringe on the public liberty, yet they were effectual in saving the country from violence and bloodshed, if not from the horrors of anarchy. Powerful measures are required for the restraint of hydraheaded faction. The suspension of the Habeas Corpus struck an unexpected blow against the hopes and plans of the apostles of reform; and Mr. William Cobbett, who at this period figured as one of the most ardent reformers, deemed it prudent to retire to America, promising, however, to return as soon as England should be again under the protection of her constitution, and in the meantime to transmit his weekly register from the land of his voluntary exile.

On the assembling of the peers after the Easter recess, it was ordered, on the motion of Lord Grey, that a copy of the circular-letter recently addressed by the secretary of state for the home department to the lord-lieutenants of counties, relative to seditious or blasphemous publications, be laid before the house. In this document Lord Sidmouth had stated, as it was of the greatest importance to prevent, if possible, the circulation of the blasphemous and seditious pamphlets and writings then distributed in great numbers through the country, he had thought it his duty to consult the law-officers of the crown, whether a person found selling, or in any other way publishing such writings, might be brought immediately before a justice of peace by warrant to answer for his conduct; and the law-officers had given their opinion to the effect, that a justice of the peace might issue his warrant for the apprehension of a person charged before him, on oath, with the publication of such libels, and compel him to give bail to answer such charge. Under these circumstances the attention of the lord-lieutenants was earnestly called to the subject; and they were requested to notify such opinion to the chairman of the quarter-sessions, in order that magistrates might be led to act upon it. When this circular was produced Lord Grey addressed their lordships in a speech, in which he contended against the principle that a justice of the peace might be called on by any common informer to decide what was, or what

was not a libel, and to commit or hold to bail, on his sole judgment, the accused party. His lordship argued that such a specific intimation to magistrates regarding the mode in which they were to construe the law, even supposing the law itself to be clear and undisputed, was a high offence against the constitution. He moved for the production of a case that had been submitted to the law-officers; but it was negatived on a division by a majority of seventy-five against nineteen. A similar motion was made in the commons by Sir Samuel Romilly, and a similar decision given. As towards the close of the session the spirit of disaffection throughout the country was not subdued, a further suspension of the _Habeas Corpus_ Act to the 1st of March, 1818, was carried by a large majority.

COMMITTEE ON THE POOR-LAWS, ETC.

During this session a committee on the poor-laws, with Mr. Sturges Bourne for its chairman, was appointed. This committee made its report in July; but not much new light was thrown upon the subject, as the object of the members seemed to be that of neutralizing every topic as much as possible; probably from ministerial instructions, as the cabinet were averse to making experiments. On the 9th of July Mr. Wilberforce moved for an address to the prince regent, submitting in dutiful, but urgent terms, the expression of our continued solicitude for the universal and final abolition of the slave-trade amongst the European powers, which was agreed to _nem. con_. On the same evening a discussion of considerable interest took place upon a series of resolutions on finance, which had been brought forward by Mr. Tierney; and after a debate of great length the previous question was carried upon each of these resolutions, and counter resolutions, moved by Mr. Grant, adopted in their stead. The last important debate of the session took place in the commons on a motion made by Mr. Brougham, for an inquiry into the state of the nation; a motion introduced chiefly for the purpose of enabling the mover, as the organ of opposition in the lower house to enter a protest, in detail, against the whole of the acts and proceedings of ministers. In exposing the false system on which parliament had long legislated on the subject of commerce, Mr. Brougham remarked:—“The period is now arrived when, the war being closed and prodigious changes having taken place throughout the world, it becomes absolutely necessary to enter on a careful but fearless revision of our whole commercial system, that we may be enabled safely, yet promptly, to eradicate those faults which the lapse of time has occasioned or displayed; to retrace our steps where we shall find that they have deviated from the line of true policy; to adjust and accommodate our laws to the alteration of circumstances; to abandon many prejudices, alike antiquated and senseless, unsuited to the advanced age in which we live, and unworthy of that sound judgment which distinguishes this nation.” The motion was negatived without a division.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 12th of July. In his speech the prince regent expressed regret at the king’s continued indisposition; glanced at the subjects which had been considered during the session; and noticed the prospect of an abundant harvest, not only in this country, but on the continent, from which he anticipated an improvement in the commercial relations of this and other countries.

RIOTS AT MANCHESTER, ETC.

In the last report of the secret committee of the house of commons, mention was made of disturbances which had been experienced at Manchester. These disturbances appear to have been of an extraordinary description. A large body of men, calling themselves friends of parliamentary reform, and urged by the resolution of despair, determined to proceed to London to explain their distress to the regent in person. Each individual provided himself with a blanket and a small stock of provisions. On the day of their departure they met near St. Peter’s church; and such crowds assembled around them that the magistrates thought it expedient to call out the military. The principal instigators of the mob were arrested; but, nevertheless, a considerable number set out on their mission to London. More than five hundred proceeded as far as Macclesfield, where a troop of yeomanry was stationed to provide against contingencies. All, however, remained quiet; and this “Blanketeering Expedition” penetrated into Staffordshire, where it ended; the poor creatures who composed it being obliged to give it up from exhaustion and the want of sustenance. But these riots had at least one effect, it filled the prisons throughout the country with objects of suspicion or of crime. Many of these were as arbitrarily released by the authorities as they had been committed; but the more prominent leaders were either detained in custody, or sent, for greater security, to the metropolis. The trial of the prisoners in the Tower was commenced in the month of June; but Watson, the first tried, being acquitted by the jury, the other cases were abandoned. The prisoners captured in the riots which took place in the northern and midland counties were tried at Derby by a special commission, and twenty-three received sentence of death; three of them only, however, suffered the extreme penalty of the law. The last prosecution was that of a man named Hone, for some political parodies on the Litany and other parts of our church-service. He was tried for a blasphemous libel; but he was acquitted, chiefly on the ground that his parodies were political, and hence not blasphemous; and the public sympathized with the demagogue by raising a subscription, in order to reimburse him for his expenses, and to reward him for the trouble and fatigue which he had undergone in the prosecution. Hone seems to have profited by the lesson he had received; for he withdrew from the disgraceful career which he had commenced, and engaged in literary pursuits more worthy of a rational and thinking being, and of a good citizen of the world.

DEATH OF THE PRINCESS CHARLOTTE.

The close of this year was marked by an event that filled the nation with mourning; this was the death of the idolized hope of a free nation, the Princess Charlotte: she whose looks of health and gladdening smiles had been long hailed by the nation with heartfelt satisfaction by her future subjects, expired on the 6th of November, after giving birth to a still-born child. The indications of sorrow on this event becoming known were unusually general and sincere. The civic procession and entertainment on the Lord Mayor’s Day was abandoned; public entertainments were suspended; and on the 19th, the day of her interment, every shop was closed, and funeral sermons were preached in churches and chapels to large and attentive congregations. The day of her funeral was one of voluntary humiliation, and of sorrowful meditation on the

instability of human happiness. Brief as were the days of this good princess, she had not lived in vain; her life was a bright illustration of piety and virtue. “Put not your trust in princes, nor in the son of man, in whom there is no help. His breath goeth forth, he returneth to the earth; in that very day his thoughts perish.”

CHAPTER XXXI.

{GEORGE III. 1818—1820}

Meeting of Parliament..... Motion for Secret Committees preparatory to a Bill of Indemnity..... Extension of the Bank Restriction..... Treaty with Spain..... Royal Marriages..... The Supplies..... The Alien Act, &c. Prorogation of Parliament..... State of the Manufacturers of Lancashire, &c. Death of Queen Charlotte..... Meeting of Parliament..... Duke of. York appointed Guardian to His Majesty..... Committee on the Criminal Code..... Measures for Resumption of Cash-Payments..... Financial Statement..... Catholic Claims..... Foreign Enlistment Act..... Slave-Trade, &c. Prorogation of Parliament..... Seditious Assemblages..... Meeting of Parliament..... Motion for Inquiry into the State of tha Nation..... Parliamentary Reform..... Cession of Parga to the Turks..... Death of George III.

MEETING OF PARLIAMENT.

{A.D. 1818}

Parliament was opened on the 27th of January by commission. The principal topics of the speech were the continued indisposition of his majesty; the death of the Princess Charlotte; an assurance of the continued friendly disposition of foreign powers; the improved state of industry and public credit; the restored tranquillity of the country; the treaties with Spain and Portugal on the abolition of the slave-trade; and a recommendation that additional churches should be built, “to meet the increased population of the country, and to promote the religious and moral habits of the people.” In the lords the address was voted _nem. con_.; in the commons it met with animadversion from Lord Althorp and Sir Samuel Romilly, who deprecated the demoralizing system of _espionnage_, as well as the arbitrary imprisonment and tyrannical persecutions which had lately been carried on by government; but the address passed without a division.

MOTION FOR SECRET COMMITTEES PREPARATORY TO A BILL OF INDEMNITY.

On the 4th of February Lord Castlereagh brought down a bag of papers respecting the internal state of the country, for the examination of which he proposed a secret committee. As this was understood to be a preliminary step to a general bill of indemnity for all acts performed under the suspension of the _Habeas Corpus_ Act, by which the persons then imprisoned, and since liberated without trial, would be deprived of all legal remedy for such imprisonment, the appointment of a committee was strenuously resisted by opposition, who contended that a different sort of inquiry was called for by the conduct of the administration. The green bag and its contents

formed the subject of much sarcasm; but the appointment of a secret committee was agreed to, and a similar committee was also appointed in the upper house. The report of the committee in the house of lords was presented on the 23rd of February. It related chiefly to recent disturbances in the counties of Nottingham, Derby, and York; to the progress and the check which it had received by various arrests and trials; and to the necessity which existed for continued vigilance against a spirit of conspiracy still active, particularly in the metropolis. The report stated that forty-four persons had been arrested, and discharged without trial; but that such arrests were justified by circumstances, and that no warrant of detention appeared to have been issued, except in consequence of information on oath; the persons detained and not prosecuted had been discharged at different times; and the committee were of opinion that government had exercised the powers vested in them with discretion and moderation. A bill of indemnity, founded on this report, was brought in by the Duke of Montrose on the 25th; and on its second reading the Marquess of Lansdowne proposed, as an amendment, that it should be postponed for a fortnight, to give time for all the petitions recently received from persons who had been imprisoned to be brought up. This amendment, however, was negatived, as was another on the third reading of the bill, the object of which was to do away with it altogether. When introduced in the commons on the 10th of March, it was strongly opposed by Sir Samuel Romilly, who contended that it was improperly called a bill of indemnity. The object of indemnity, he said, was only to protect individuals against public prosecution, without interfering with the rights of private men; but the object of the bill was to annihilate all such rights, to take away all legal remedies from those who had suffered an illegal and arbitrary exercise of authority, and to punish those who presumed to have recourse to such remedies by subjecting them to the payment of double costs. Mr. Lambton moved an amendment that it be read again that day six months, but this was lost by one hundred and ninety to sixty-four. The bill was read a second time on the next day, but the chief discussion took place on the order for committing it, when several petitions, complaining of grievous oppression, were presented to the house: the bill, however, passed on the 13th, and four days after received the royal assent.

EXTENSION OF THE BANK RESTRICTION.

At an early period of the session, Mr. Grenfell inquired of the chancellor of the exchequer whether any event had occurred, or was likely to occur, which would prevent the resumption of cash-payments by the Bank in July. He observed that the public stood in the situation of debtor to the bank for £3,000,000 advanced without interest, and for £6,000,000 at an interest of four per cent; but as the Bank had secured possession of public money deposited in their hands, which for the last twelve years had amounted on an average to £11,000,000 for the repayment of these sums, he asked whether any arrangement was made for discharging, or placing them on a better footing. In reply, the chancellor of the exchequer stated, that the Bank had made ample preparation for resuming cash-payments at the time fixed by parliament, but that pecuniary transactions were going on with foreign powers which might probably require an extension of the restriction: as regards the loan of £6,000,000, he said, he should shortly submit a proposal for its repayment, allowing

the country still to enjoy the benefit of that on which no interest was paid. Later in the session, in submitting some propositions to a committee of the house, he observed that in January, 1817, the Bank had given notice of its readiness to pay in specie outstanding notes of a particular description, for which cash to the amount of about £1,000,000 might have been demanded, but a very considerable sum was called for. At that time, gold bullion was £3. 18s, 6d., and silver 4s. 10d. the ounce: in October notice was given that the Bank was ready to pay in cash all the notes dated prior to January, 1817; but the result was very different, for upwards of £2,500,000 were drawn out, of which scarcely any portion remained in circulation. This arose from the large remittances to foreign countries, consequent on the importation of corn; the residence of Englishmen on the continent; and the negociation of a loan in this country by France. It now therefore became inexpedient for the Bank to resume cash-payments, and the restriction was continued till the 5th of July, 1839.

TREATY WITH SPAIN.

During this session a treaty with Spain, by virtue of which, in consideration of a subsidy of £400,000, that country consented to abolish the slave-trade on all the north coasts of the line, received the sanction of parliament. But this was only a half measure: Spain still continued the privilege of retaining the traffic south of that limit. A right of search was stipulated for each nation, but no detention of vessels was to take place, unless when slaves were found on board.

ROYAL MARRIAGES.

During this year marriages were contracted between the Duke of Clarence and the princess of Saxe Meningen; the Duke of Kent and the Princess Leiningen; and the Duke of Cambridge with the Princess of Hesse.

At the recommendation of the prince regent to parliament, suitable provisions were made for the royal personages, though not on an extravagant scale. During the discussions on the provision to be made for them, Mr. Wilberforce inveighed in strong terms against the royal marriage act: an act which prevented the several branches of the family on our throne from entertaining the best feelings, and from forming connexions which might at once promote their happiness, and guarantee their virtue.

THE SUPPLIES.

The supplies of this year were estimated at £20,952,400. To meet this, in addition to the ways and means, a three-and-a-half per cent, stock was created to the amount of £14,000,000, so that no new taxes were levied, nor any additions made to those existing.

THE ALIEN ACT, ETC.

During this session it was resolved that the alien act should be continued for two years longer; it being necessary to keep out as well as send out of Great Britain persons who might take advantage of the vicinity of France, to excite a spirit hostile to the security of this and other European governments. Sir Samuel Romilly introduced a bill to do away with the capital part of the act respecting private stealing in shops, &c., setting forth in his preamble, that extreme severity of

punishment tends to procure indemnity for crime; but the house was not yet prepared to legislate in a merciful spirit: the bill was rejected. Before the close of the session Mr. Brougham succeeded in his motion for a committee of inquiry respecting the education of the poorer classes; the first step towards that system of popular instruction in which he has effected so much. Fourteen commissioners were to be appointed by the crown, six of whom were to have no salaries. This bill, however, underwent many alterations in the upper-house, chiefly through the exertions of Lord Eldon, who used all his influence against it. The commissioners to be appointed were limited to the investigation of charities connected with education; they were precluded from investigating the state of education among the poor generally; and they were directed to traverse the country and to call witnesses before them, without possessing any authority for enforcing attendance, or for demanding the production of documents. As Mr. Brougham observed, the bill as it came from the lords left everything to the good will of those who had an interest at variance with the inquiry. Yet much good, he anticipated, might result from the exercise of the powers possessed by the house. The means to be used were, that the commissioners should proceed and call witnesses; that they should report to the house, and make returns of the names of all those who refused to give information or produce documents without alleging any just cause of refusal; and the committee, which would be re-appointed next session, might be empowered to call those persons before them.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 10th of June by the regent in person. In his speech his royal highness stated his intention of giving direction for a new parliament, after which he observed:—“I cannot refrain from adverting to the important change which has occurred in the situation of this country, and of all Europe, since I first met you in this place. At that period, the dominion of the common enemy had been so widely extended over the continent, that resistance to his power was, by many, deemed to be hopeless; and in the extremities of Europe alone was such resistance effectually maintained. By the unexampled exertions which you enabled me to make, in aid of countries nobly contending for independence, and by the spirit which was kindled in so many nations, the continent was at length delivered from the most galling and oppressive tyranny, under which it had laboured; and I had the happiness, by the blessing of Providence, to terminate, in conjunction with his majesty’s allies, the most eventful and sanguinary contest in which Europe had for centuries been engaged, with unparalleled success and glory. The prosecution of such a contest for so many years, and more particularly the efforts which marked the close of it, have been followed within our own country, as well as throughout the rest of Europe, by considerable internal difficulties and distress. But, deeply as I felt for the immediate pressure upon his majesty’s people, nevertheless I looked forward without dismay, having always the fullest confidence in the solidity of the resources of the British empire, and in the relief which might be expected from a continuance of peace, and from the patience, public spirit, and energy of the nation. These expectations have not been disappointed. The improvement in the internal circumstances of the country is happily manifest, and promises to be steadily progressive; and I feel perfect assurance that the continued loyalty and exertions of

all his majesty’s subjects will confirm these growing indications of national prosperity, by promoting obedience to the laws, and attachment to the constitution from which all our blessings are derived.”

STATE OF THE MANUFACTURERS OF LANCASHIRE, ETC.

Distress, though mitigated, as stated in the regent’s speech, still prevailed in the country. The cotton-spinners as well as other classes of manufacturers of Lancashire remained in a state of organized opposition to their masters on the subject of wages. From this cause disturbances took place at Burnley, Stockport, and other places, which could only be quelled by the prompt exertions of the Manchester yeomanry. A diversion from these troubles was created by the general election which took place during the summer. Men were too busily employed in securing the election of their favourites to think of the troubles by which they were surrounded.

DEATH OF QUEEN CHARLOTTE.

During the last session of parliament, in consequence of the Queen’s declining health, two amendments had been made in the regency bill; the first empowering her majesty to add six new members, resident in Windsor to her council, in the event of her absence from that residence; and the second repealed the clause which rendered necessary the immediate assembling of a new parliament in the event of the queen’s death. These amendments were opportunely made, for her majesty, after a lingering illness of six months, expired at Kew Palace, on the 17th of November, in the 75th year of her age. Her remains were interred at Windsor on the 2nd of December, and the day was observed with every suitable mark of respect. Queen Charlotte possessed those accomplishments which add grace and dignity to an exalted station. As a wife and a mother she was a pattern to her sex; performing all the tender and maternal offices of a nurse to her offspring, which is so seldom performed by persons even in less exalted stations than that which she occupied. Her morality was, also, unquestionably of the highest order: during the period in which she presided over the British court, she preserved it from the contamination of vice, notwithstanding the dangers proceeding from the licentious examples of other European dynasties, as well as from that moral relaxation which our own prosperity was so well calculated to produce. During the reign of Geo-ge III., indeed, England presented from the throne the example of those virtues that form the great and binding link of the social chain. To this may be in part ascribed our happiness in having withstood the storm which visited the rest of Europe with all the horrors of invasion or anarchy. “The wicked are overthrown, and are not; but the house of the righteous shall stand.”

MEETING OF PARLIAMENT.

{A.D. 1819}

The new parliament met on the 14th of January when Mr. Manners Sutton was re-elected speaker, and Chief Baron Richards took his seat on the woolsack _pro tempore_, in consequence of the lord chancellor’s indisposition. Both houses were occupied till the 21st in swearing in their respective members, on which day the

session was opened by commission. The chief topics of the royal speech were the king’s health: the demise of the queen; the evacuation of France by the allied troops; the favourable state of the revenue; the improved aspect of trade, manufactures, and commerce; the favourable result of the war in India; and the extension of the commercial treaty now existing between this nation and the United States of America to a further term of eight years. In both houses the addresses were carried without a division, though ministers were severely censured by Lord Lansdowne in the lords, and Mr. Macdonald in the commons, for the want of truth in their statements concerning the state of the nation, and for their many political blunders.

THE DUKE OF YORK APPOINTED GUARDIAN TO HIS MAJESTY.

As the death of the queen rendered it necessary that a guardian of his majesty’s person should be appointed, Lord Liverpool named the Duke of York, and his nomination met with general approval. The duke was appointed guardian with a salary of £10,000 per annum out of the public purse for the performance of this filial duty. The grant met with severe opposition, and was only carried by a small majority; and subsequently several debates took place respecting the establishment at Windsor, the expenses of which excited much freedom of remark. It was represented as a mockery of the national distress, no less than of the melancholy visitation of the aged monarch, kept up for the purpose of ministering to the prodigality of the regent, and the rapacity of his courtiers. These sentiments were shared by the people at large.

COMMITTEE ON THE CRIMINAL CODE.

Early this session the attention of parliament was called to the state of the criminal code: a subject deeply interesting to the best friends of humanity. Philanthropists had long deplored the state of our statute-book, more than two hundred crimes being defined by it as worthy of death. This state of things had been denounced as a national disgrace, and Sir Samuel Romilly had frequently brought it under the notice of parliament, and in some instances had been the means of softening down the rigour of our laws. That great man was now dead; but in this session the subject was taken up by Sir James Mackintosh, who proved to be a worthy successor to the deceased philanthropist. A petition from the corporation of London, complaining of the increase of crime, and pointing out the commutation of capital punishment, was referred to a committee for the examination of the discipline and police of the different prisons throughout the country. The appointment of this committee was moved by Lord Castlereagh; but it was thought by some that a distinct committee should be appointed, for the purpose of taking the whole subject into consideration. A motion to this effect was made by Sir James Mackintosh on the 2nd of March; and though Lord Castlereagh opposed it, as unnecessary, it was carried by one hundred and forty-seven against one hundred and twenty-eight. In his speech on this occasion, Sir James Mackintosh, after setting forth a great variety of facts and observations, illustrating the system of subterfuge which the extreme severity of the law in many cases had produced among prosecutors, witnesses, and jurors, with the consequent impunity and increase of crime, proceeded to explain his views of melioration, observing that it was neither his wish nor intention to form a new criminal code. He

did not, he said, even propose to abolish capital punishment; but, on the contrary, he regarded it as a part of that right with which societies are endowed. He held it to be, like all other punishments, an evil when unnecessary; but capable, like them, of producing, when sparingly and judiciously inflicted, a preponderance of good. He aimed not at the establishment of any universal principle; his object was, that the execution of the law should constitute the majority, and its remission the minority of cases. Subsequently Sir James divided the cases connected with capital punishment into three classes: those in which it was always, those in which it was frequently, and those in which it was never put in force. The first and second of these cases he proposed to leave untouched; the third, which comprised more than one hundred and fifty crimes, he contended should be expunged from the statute-book, as a monument of barbarous times, disgraceful to the character of a free and enlightened nation.

MEASURES FOR RESUMPTION OF CASH-PAYMENTS.

On the 2nd of February Mr. Tierney moved for a committee to inquire into the effects of the Bank restriction act. This was met by an amendment from the chancellor of the exchequer, directing an investigation of the state of the Bank of England, with reference to the expediency of its resumption of cash-payments at the appointed period; such information to be reported by the committee as might be disclosed without injury to the public interests. The first report, which was brought up by Mr. Peel on the 5th of April, represented that the Bank, having been induced to pay in specie all notes issued previous to 1817, had been drained of cash to the amount of more than £5,000,000, most of which had gone to the continent, and had been there recoined; and that, to prevent this drain continuing, and to enable the Bank to accumulate a larger store of bullion, with a view to the final resumption of cash-payments, it was expedient to restrain the further payment of notes alluded to in specie. A bill was brought in to this effect, and, the standing orders of the house having been suspended, it was passed through its different stages in the same evening. In the upper house Lord Harrowby moved the suspension of the standing orders, that the bill might pass at one sitting; but Earl Grey and others opposed it at considerable length, contending that, if necessary, it would have been better for ministers to issue an order of council for suspending Bank payments on their own responsibility. The bill, however, was read a third time on the following day and passed; and a similar measure was also carried in both houses for the protection of Ireland. The second report was presented on the 5th of May, when two bills were passed, founded on a plan recommended by the committee for a gradual return to cash-payments. The principal provisions of these bills were, that a definite period should be fixed for the termination of the restriction, while preparatory measures should be taken, with a view to facilitate and ensure, on the arrival of that period, payment of the promissory notes of the Bank of England in legal coin of the realm; that provision ought to be made for the repayment of £10,000,000, being part of the sum due to the Bank on account of advances for the public services; that from the 14th of February, 1820, the Bank shall be liable to deliver on-demand, gold of standard fineness, having been assayed and stamped at the mint, a quantity of not less than sixty ounces being required in exchange for notes at the rate of £4. 1s. per ounce; that from the 1st of October, 1820, the Bank shall be liable to deliver gold at

the rate £3. 19s. 6d. per ounce: and from the 1st of May 1821, £3. 17s. 10d.; that the Bank may at any period between the 1st of February and the 1st of October, 1820, undertake to deliver gold as before mentioned, at any rate between tha sums of £4. Is. and £3. 19s. 6d. per ounce, and at any rate between the 1st of October, 1820, and the 1st of May, 1821, at any rate between the sums of £3. 19s. 6d. and £3. 17s. 10 ½ per ounce, but that such intermediate rate having been once fixed by the Bank, that rate shall not subsequently be increased; that from the 1st of May, 1823, the Bank shall pay its notes, on demand, in the legal coin of the realm; and that it is expedient to repeal the laws prohibiting the melting and the exportation of the coin.

Another select committee was appointed this session, on the motion of Lord Castlereagh, to inquire into the income and expenditure of the country. The receipts for the year ending the 5th of January, 1818, were £51,665,458, while those for the following year were £54,620,000. There were, however, certain arrears of war-duties on malt and property, which reduced the income of 1818 to £49,334,927, while the arrears due to January, 1819, amounted only to £566,639: the expenditure was also less by about £650,000 than was expected, so that the result was a total surplus of £3,518,000, applicable to the reduction of the national debt. If one million were allowed for the interest on the loan, observed Lord Castlereagh, there remained two millions and a half of surplus revenue. Mr. Tierney remarked, that an old debt on the sinking-fund, of £8,300,000, which must be liquidated before the surplus in question could be made available for the expenses of the current year, had been altogether concealed. The various taxes, taken together, exceeded £7,000,000; but this was the extreme of the amount applicable to the army, navy, ordnance, and miscellaneous services; how then, he asked, could it be possible that, with an income of only £7,000,000, and an expenditure of £20,000,000, both ends should be made to meet, and a surplus be left? Would it not be a gross delusion to speak of the sinking-fund as applicable to the public service, while government were obliged to borrow £13,000,000 a year to support it? The chancellor of the exchequer answered, that this statement included certain particulars, which could not be admitted in making a fair comparison. By taking the whole charge of the consolidated-fund and the sinking-fund, it had been shown that our expenditure exceeded our receipts. This must necessarily be the case, since a great portion of the war-taxes had been abolished. Parliament had relieved the country of £15,000,000 of taxes; and thus they prevented the effect which would have been produced in the redemption of the debt by such an annual sum. With respect to any financial plans for the present year, the chancellor stated he should reserve to himself the power of adopting that which the situation of public affairs rendered most expedient.

{GEORGE III. 1818—1820}

FINANCIAL STATEMENT.

A series of financial resolutions was moved by Mr. Vansittart on the 3rd of June. These resolutions stated, that by the removal of certain taxes, the revenue of Great Britain was reduced by £18,000,000; that the interest and charge of the funded and unfunded debt of Ireland exceeded the whole revenue of the country by £1,800,000;

that it was necessary to provide, by a loan or other means, for the service of the present year, the sum of £13,000,000, which, deducted from the sinking-fund of £15,000,000, reduced it to £2,000,000; and that for the purpose of raising this sinking-fund to £5,000,000, it was necessary to impose annually the amount of £3,000,000. This sum parliament agreed to raise by a large duty on foreign wools, and by smaller duties on other articles, such as tobacco, tea, coffee, and cocoa-nuts. Two loans of £12,000,000 each were also raised; one of them supplied by monied men, the other derived from the sinking-fund. Out of these sums there was to be a surplus, of which £5,000,000 were to go towards the repayment of the debt due to the Bank, as recommended by parliament previous to the resumption of cash-payments; and £5,597,000 to the reduction of the unfunded debt. “In adopting this course,” the speaker observed to the prince regent at the close of the session, “his majesty’s faithful commons did not conceal from themselves that they were calling upon the nation for a great exertion; but well knowing that honour, character, and independence have at all times been the first and dearest objects of the hearts of Englishmen, we feel assured that there was no difficulty that the country would not encounter, no pressure to which she would not cheerfully submit, in order to maintain pure and unimpaired that which has never yet been shaken or sullied—her public credit and good faith.”

CATHOLIC CLAIMS.

On the 3rd of May, after numerous petitions had been presented both for and against the claims of Roman Catholics, this great question of internal policy was again brought before the commons by the eloquent Grattan. The causes of disqualification, he observed, were of three kinds—the combination of the Catholics, the clanger of a pretender, and the power of the pope. Grattan asserted, that not only had all these causes ceased, but that the consequences annexed to them were no more; and he concluded by moving for a committee of the whole house to take into consideration the laws by which oaths or declarations are required to be taken or made as qualifications for the enjoyment of office, or the exercise of civil functions so far as the Roman Catholics were affected by them. This motion was lost by a majority of only two in a full house; but a corresponding proposition made in the lords by Earl Donoughmore was lost by a majority of one hundred and forty-seven against one hundred and six. Subsequently another effort was made in the lords by Earl Grey; but, as before, without effect. The bill Earl Grey introduced was for abrogating so much of the acts of the 25th and 30th of Charles the Second, as prescribed to all officers, civil and military, and to all members of both houses of parliament, a declaration against the doctrines of transubstantiation, and the invocation of saints. His motion was rejected by a majority of one hundred and forty-two against eighty-two.

FOREIGN ENLISTMENT ACT.

On the 13th of May, in consequence of complaints made by the Spanish ambassador that English officers were aiding the cause of independence in South America, the attorney-general brought in a bill for prohibiting the enlistment of British subjects into foreign service, and the equipment of vessels of war without

licence. The first of these objects, he observed, had been in some measure provided for by the statutes of George the Second, by which it was an offence, amounting to felony, to enter the service of any foreign state. If neutrality were to be observed, however, it was important that the penalty should be extended to the act of serving unacknowledged as well as acknowledged powers; and part of his intention therefore was to amend those statutes, by introducing after the words, “king, prince, state, potentate,” the words, “colony or district, which do assume the powers of a government.” It was his wish, he said, to give to this country the right of preventing its subjects from breaking the neutrality towards acknowledged states, and those assuming the power of states; and upon a similar principle, he wished to prevent the fitting out of armed vessels, and also the fitting out or supplying other vessels with warlike stores in any of his majesty’s ports, These propositions met with stem opposition. Sir James Mackintosh warned the house, that, in whatever manner the motion might be worded and its real object concealed, the bill ought to be entitled,—“A bill for preventing British subjects from lending their assistance to the South American cause, or enlisting in the South American service.” The statutes of George the Second, he said, were not to have been laws of a general nature, applying to all times and circumstances; but, on the contrary, “intended merely for the temporary purpose of preventing the formation of Jacobite armies, organized in France and Spain against the peace and tranquillity of England.” He concluded by reprobating the measure as one which was virtually an enactment to repress the liberty of the South Americans, and to enable Spain to re-impose that yoke of tyranny which they were unable to bear, which they had nobly shaken off, and from which, he trusted in God, they would finally and for ever be enabled to extricate themselves. In reply, Lord Castlereagh argued that the proposed bill was necessary to prevent our giving offence to Spain, whom that house was too just and generous to oppress because she was weak, and her fortunes had declined. In the subsequent stages of the bill, ministers avowed that the measure had been suggested by the stipulations of a treaty with Spain in 1814, and by the representations which the ministers of Ferdinand VII. had considered themselves entitled by such stipulations to address to the British government. This admission excited severe remarks on Ferdinand’s character; but the bill was carried—in the commons by one hundred and ninety against one hundred and twenty-nine, and in the lords by one hundred against forty-nine. But though this bill was rigorous in its propositions, it was by no means rigorously enforced.

SLAVE-TRADE, ETC.

During this session Mr. Wilberforce complained in parliament of the reluctance displayed by the two great powers to enter into the arrangements necessary for carrying into effect the total abolition of the slave-trade. It grieved him, he said, to cast this reproach on a high-minded people like the French; and he was still more grieved to find that America was not free from blame; but he still trusted that all nations would unite in their endeavours to civilize the inhabitants of Africa. He concluded by moving an address to the prince regent, to renew his exertions for the attainment of this noble object, which was agreed to unanimously, as was a similar one in the lords, on the motion of Lord Lansdowne.

An act of grace for reversing the attainder of Lord Edward Fitzgerald, also passed this session without opposition. The preamble of the bill stated that his lordship had never been brought to trial; that the act of attainder did not pass the Irish parliament till some months after his decease; and that these were sufficient reasons for mitigating the severity of a measure decreed in unhappy and unfortunate times. The attainder itself, as passed by the Irish parliament, was an instance of contemptible servility to the ruling powers by that corrupt assembly. A bill was introduced in the commons on the 11th of May, for enabling the public to accept the Marquis Camden's liberal sacrifice of the surplus profits accruing from his unreduced tellership of the exchequer, as mentioned in a previous page. It was necessary to carry a bill to authorize contributions by his majesty's ministers and other public officers, lest his donation of £69,000 per annum might be considered an illegal benevolence.

The only other business of importance this session was the granting of £50,000, for the purpose of enabling government to divert the current of emigration from the United States to the Cape of Good Hope, the colony to which, it was considered, that it might be most advantageously directed. This money was to be spent in defraying the expenses, &c., of those who emigrated to that colony.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 13th of July. The prince regent in his speech expressed a confident expectation that the measures adopted for the resumption of cash-payments would be productive of beneficial consequences; regretted the necessity of additional taxation; anticipated important advantages from the efforts made to meet our financial difficulties; and avowed a determination to employ the powers provided by law for the suppression of sedition, which still existed in the manufacturing districts.

SEDITIOUS ASSEMBLAGES.

Many causes operated after the war in producing general distress among the poor, both in the agricultural and manufacturing districts. The agricultural population being more thinly scattered, and more passive by habit and education, bore their sufferings with exemplary patience; but the manufacturing labourers in the midland and northern districts, as well as in some parts of Scotland, exhibited a contrary spirit. Secret combinations and seditious assemblages became the order of the day in these parts; nor could all the efforts of parliament put down their factions. At this time a party, which had denominated themselves "Radical Reformers," obtained much notice by their active exertions, and acquired much influence from the sedulity which they propagated the notion that such a reform of parliament, as would make its members true representatives of the people, would be the surest means of putting an end to present and future sufferings. One of the most notorious of the demagogues was Henry Hunt, a man whose only merit consisted in bold daring and mob oratory. The first step of this association was to apply to the Manchester magistrates to convoke a meeting for the alleged purpose of petitioning against the corn bill. This request was refused; and in consequence the meeting was held without authority. Hunt was the hero of the day; and it was not his fault that the assemblage dispersed

without tumult. The example thus set by Manchester was followed by the reformers of Glasgow, Leeds, Stockport, and other places; and many were the dangerous doctrines broached by the orators. The strong measures of precaution, however, taken by the local authorities, in most instances, had the effect of preserving order and tranquillity; but it was feared that if these meetings were allowed still to be held, the inflammatory harangues of their orators would one day stir up the multitude to acts of mischief. Government, indeed, resolved to interfere. At a meeting held at Birmingham the reformers hazarded a bolder experiment than any before displayed. This was the election of a member to represent that great and populous town in the house of commons. Sir Charles Wolseley was put in nomination, and instantly chosen by show of hands. Soon after this Sir Charles attended a meeting at Stockport; and he was taken into custody on account of seditious expressions used at that meeting. Subsequently a meeting took place at Smithfield, when a man named Harrison was arrested for the same offence; and both were tried next year at the assizes, convicted, and sentenced to imprisonment. The officer by whom they were apprehended narrowly escaped assassination at Stockport; and government immediately adopted vigorous measures for the discovery of the offenders, and to put a stop to these seditious meetings. A proclamation was issued against them; but still the reformers were resolved to agitate. Those of Manchester being informed that a meeting they had given notice of, to be held for the purpose of proceeding to the election of a representative as at Birmingham, was illegal, relinquished it; but they held another for the avowedly legal object of petitioning for a reform in parliament. The estimated numbers present were 60,000; and among them were two bands of female reformers, under white silk banners. Hunt was again the lion of the day; but no sooner had he commenced speaking, than the commanding officer of a body of yeomanry, who advanced with drawn swords to the stage, took him into custody. Several other persons were also apprehended, and the yeomanry then aimed at the destruction of their banners. A scene of dreadful confusion arose; many persons were trampled under the feet of the horses, and some were cut down by sabres. A few were killed, while there were between three and four hundred wounded. In a short time the ground was cleared of the mob, and military patroles were stationed in the streets to preserve tranquillity. Hunt and his associates were, after a short examination, conducted to solitary cells, on a charge of high-treason. The next day notices were issued by the magistrates, declaring the practice of military training, alleged to have been carried on secretly for treasonable purposes, to be illegal; and government applauded all that had been done. But the public did not look upon the proceedings at Manchester with the same favourable eye as the cabinet. A meeting was held at the Crown and Anchor in London, at which a series of resolutions was adopted, strongly censuring the conduct of the magistrates and military, and returning thanks to Hunt and his colleagues. Meetings in a similar spirit were held at Smithfield and in the precincts of the palace-yard, Westminster; and at the latter an address to the prince regent, founded on resolutions conspicuous for their violence, was unanimously agreed to. Subscriptions were entered into, likewise, at all these meetings, and throughout the country, for the purpose of defraying the expenses of defending the prisoners. Government contemplated the trial of Hunt and his associates for high-treason; but the circumstances of the case were not sufficiently treasonable to

warrant such a course; and the prisoners were told that they would be prosecuted for a conspiracy only. This was a bailable offence; but Hunt refused to give bail, resolved to be a martyr in the true sense of the word. Some of his friends, however, liberated him; and his return from Lancaster to Manchester had the appearance of a triumphal procession. He was the mob's idol; and he was attended by thousands on horseback and on foot, who hailed him with loud shouts as the assertor of British freedom. His trial took place in the next year, at York, when he was sentenced to two years and a half's imprisonment at Ilchester jail, and then to find security for good behaviour during five years. Three of his associates were also condemned to one year's imprisonment in Lincoln Castle, and were likewise ordered to find sureties. Still faction prevailed. It requires an iron foot to put down a democratical spirit. Meetings were still held at Leeds, Glasgow, and other places; and the orators had the horrible details of the events at Manchester, Birmingham, and other places, wherewith to entertain their auditory. The sufferers at those places were compared to the Russells, Hampdens, and Sidneys of ancient times, and ensigns of mourning were established. The corporation of London even ventured to present an address to the regent, censuring the authorities; but the regent administered to them a forcible rebuke, as prejudging the matter without having had any opportunity of understanding it. In order to counteract the effects of these meetings, and the exertions of the regular opposition, or whig party, loyal addresses and offers to raise yeomanry corps were promoted by the friends of the administration. At the close of this year, indeed, parties became bitterly exasperated against each other; and as persons of property generally adhered to the ministerial side of the question, the lower orders began to entertain a deep-seated indignation against their superiors. But all this exhibition of feeling ended finally in happy results; it contributed greatly to the reform of our institutions. When the minds of men became sobered, the general wish was, as it ever will be in the breasts of true born Englishmen, to promote the general welfare. It cannot be denied that the artisans of our manufacturing districts had their grievances; but there is no state, however well ordered it may be, in which one class of persons are not called upon to suffer more than the others. But if one member suffers, it should always be remembered that every member suffers with it.

MEETING OF PARLIAMENT.

Parliament met on the 23rd of November. In allusion to these disturbances the prince regent remarked in his speech:—"I regret to have been under the necessity of calling you together at this period of the year; but the seditious practices so long prevalent in some of the manufacturing districts of the country have been continued with increased activity since you last assembled in Parliament. They have led to proceedings incompatible with the public tranquillity, and with the peaceful habits of the industrious classes of the community; and a spirit is now fully manifested, utterly hostile to the constitution of this kingdom, and aiming at not only the change of those political institutions which have hitherto constituted the pride and security of this country, but at the subversion of the rights of property and of all order in society. I have given directions that the necessary information on this subject shall be laid before you; and I feel it to be my indispensable duty to press on your immediate attention the consideration of such measures as may be requisite for the

counteraction and suppression of a system, which, if not effectually checked, must bring confusion and ruin on the nation." The regent promised to lay before parliament all the information requisite to direct them in their deliberations, and pressed on the attention of lords and commons, the enactment of such regulations as might tend to suppress the evil. An amendment to the address was moved in the upper house by Earl Grey; in which, whilst the necessity of checking practices dangerous to the constitution was admitted, a strong opinion was expressed of the expediency of conciliation, and of inquiry into the transactions of Manchester, to allay the feelings to which they had given birth, and satisfy the people that their lives could not be sacrificed with impunity. Lord Sidmouth, in reply, stated that there had been more exaggeration, misrepresentation, and falsehood applied to the transactions at Manchester, &c., than to any other public transaction in his knowledge. His lordship defended both the magistrates and yeomanry, denying that they had done anything beyond their duty. The greatest authorities maintained, he said, that the magistrates were justified in the orders they had given, and that the meetings at which the disturbances took place were illegal. The original address was carried by one hundred and thirty-nine against thirty-four, and in the commons, ministers were equally triumphant. A similar address to Earl Grey's, was moved by Mr. Tierney, and was rejected by a large majority. The mover of this address drew a melancholy picture of the state of the country, affirming that ministers had brought it to the verge of ruin, Lord Castlereagh declined following him in his remarks on the state of the country, because the only definite proposition offered, was one for inquiry into the transactions at Manchester, respecting which he should lay a mass of information before the house on the next day and explain the measures contemplated by government. On the next day the promised documents were produced; consisting partly in the correspondence of official persons with the home secretary, and partly in communications made by parties whose names were not made known. The letters from the Manchester magistrates set forth that apprehensions were entertained of a formidable insurrection being in contemplation. At the same time they bore testimony to the alarming distress of the manufacturing classes, and assigned hunger as a natural inducement with the poor to adopt pernicious doctrines, as projects for the amelioration of their sufferings. Other depositions stated that the practice of secret training prevailed to a great extent among the reformers, but merely with a view of enabling themselves to march in the semblance of military array to their meetings, sticks being their only weapons. Lord Fitzwilliam stated in a communication that in the West Riding of Yorkshire the rage for seditious assemblies might be safely left to die away of itself, as the good sense of the people already began to feel they were in error. Sir John Byng, military commander of the district, stated, that simultaneous meetings were to be held in various towns, but that the plan had been frustrated by the disunion existing among the leaders. Other communications represented that pistols, pikes, and other weapons were being manufactured in the factious districts, both in England and Scotland. Finally, the grand jury of Cheshire expressed the alarm which was felt in that county for life and property by his majesty's subjects. This body of evidence having been submitted to the two houses, ministers proceeded to open their measures of defence. As a preliminary step, the lord chancellor introduced a bill for the purpose of taking away from such as should be tried for seditious practices

the right of traversing; allowing the court, however, to postpone the trial, on his showing reason for delay. Against this measure as well as others in preparation, Earl Grey entered his protest; they being calculated, he said, to bring misery, if not ruin on the country. On the second reading of the bill it was opposed by Lords Erskine and Liverpool: and Lord Holland urged on ministers the necessity of legislating on both sides of the question, so as to prevent the delays which occurred in prosecutions on _ex-officio_ informations, as well as in those of indictment. In compliance with this suggestion, the lord chancellor, on the third reading, proposed an additional clause, compelling the attorney-general to bring a defendant to trial within a year, or to enter into a _noli-prosequi_, and the bill thus amended passed without further opposition. The additional measures introduced in the upper house by Lord Sidmouth, and in the commons by Lord Castlereagh were to the following effect:—“An act to render the publication of a blasphemous or seditious libel punishable, on a second conviction, at the discretion of the court, by fine, imprisonment, banishment, or transportation; and to give power, in cases of a second conviction, to seize the copies of the libel in possession of the publisher: a stamp duty, equal to that paid by newspapers, on all publications of less than a given number of sheets, with an obligation on all publishers of such pieces to enter into recognizances for the payment of such penalties as might be in future inflicted on them.” The press being thus restrained, seditious meetings were to be controlled by the following provisions:—“That a requisition for holding of any meeting other than those regularly called by a sheriff, boroughreeve, or other magistrate, should be signed by seven householders: and that it should be illegal for any persons not inhabitants of the place in which such meeting was held to attend it: also, that magistrates should be empowered, within certain limitations, to appoint the time and place of meeting.” To repel danger from the muster of an illegal force, it was proposed to prohibit military training, except under the authority of a magistrate or lieutenant of the county; and in the disturbed districts, to give to magistrates a power of seizing arms believed to be collected for unlawful purposes, and also to apprehend and detain persons so carrying arms. All these bills met with stern opposition, except that for the prevention of secret military training. A clause in the act concerning blasphemous and seditious libels, which decreed the punishment of transportation on a second conviction was withdrawn in the commons, but the penalty of banishment, hitherto unknown in England, was enacted in its stead. The seditious meeting bill was also subjected to a modification, by which all meetings held in a room or building were exempted from its operations. Several alterations, moreover, were admitted into that which subjected small publications to the newspaper stamp duty.

MOTION FOR INQUIRY INTO THE STATE OF THE NATION.

After passing the celebrated “six acts,” the Marquess of Lansdowne moved for a select committee to inquire into the state of the nation, and especially in those districts where distress and radicalism prevailed. His lordship said that the principle called radicalism existed in exactly the same proportion as that of distress in the respective districts; and that he had a right to infer this from the agricultural part of the country being yet untainted, and from the spirit of the principle having reached its height in the manufacturing districts both of England and Scotland. The distress,

he thought, arose from the long war, which gave us the carrying trade of the world, and which created a fixed capital, which still existed, and filled the markets, while no vent could be found for their produce. It was also increased, he thought, by the poor laws, the paper currency, and the spirit of speculation. Two propositions were enforced by his lordship on the house for the alleviation of the distress: namely, to rescind the duties on articles which had decreased in various districts, as tea &c.; and the establishment of favourable commercial treaties, which government had not yet succeeded in accomplishing. The Marquess Wellesley deprecated all such inquiries, as did other noble lords, and the motion was negatived by a large majority.

{GEORGE III. 1818—1820}

PARLIAMENTARY REFORM.

Although the time appeared very unfavourable for a discussion on reform, yet Lord John Russell called the attention of the commons to the unrepresented towns, many of which had risen into great commercial wealth and importance, while certain boroughs which sent representatives to parliament, had fallen into decay. His lordship adduced examples from history, to show that the principle of change had been often acknowledged, and the suffrage withdrawn and conferred on various occasions. He proposed several resolutions in accordance with them, the last being for the disfranchisement of Grampound, the corruption of which borough was notorious. At the suggestion of Lord Castlereagh, who appeared willing to concur in the motion to a certain extent, Lord John withdrew his motion; but he subsequently brought in a bill for the disfranchisement of Grampound, and the transfer of its privileges to some populous town, the second reading of which was deferred until after the Christmas recess.

CESSION OF PARGA TO THE TURKS.

During this year a convention was concluded between Great Britain and Turkey by which the fortress of Parga, which remained after the war in British protection, was ceded nominally to the latter power, but in reality to its bitter foe, Ali Pasha. Considerable animadversion was excited in the political circles by the fulfilment of this convention. The Parghiotes were the last of the Christians in Epirus who had successfully resisted the tyranny of Ali Pasha. In 1807, after the treaty of Tilsit had given the Ionian Isles to Napoleon, they had solicited and obtained a French garrison from Corfu; and in 1814 they had placed themselves under British protection. During the command of General Campbell they enjoyed security; but his successor, Sir T. Maitland, after much intriguing with Ali Pasha, ordered them either to submit to the Albanian despot or to quit their country. Finding their fate inevitable, and knowing the vindictive nature of Ali Pasha, they chose the latter alternative. An estimate was made of their buildings, lands, and plantations, amounting to nearly £500,000; but the compensation ultimately obtained for them was less than a third of that sum. When this circumstance, and the harshness of all the decrees against this brave but unfortunate people are considered, it is no wonder that the whole continent rang with exclamations against the British government, and that they were reiterated even in

our own country.

DEATH OF GEORGE III.

{A.D. 1820}

The protracted existence of the venerable monarch who had so long swayed the British sceptre was drawing to a close. Virtually his long reign terminated in 1810, with the establishment of the regency; but he was still alive, and was still dear to the hearts of his people. In November of the preceding year, however, his health underwent a considerable change, and a general decay of the constitution ensued, which betokened dissolution. Yet the strong was taken away before the weak. On the 21st of January the Duke of Kent, after a short illness, died, leaving behind him an estimable character, a devoted wife, and a princess who now fills the throne. Eight days after this his royal father expired without a struggle, in the 82nd year of his age, and, counting the ten years of the regency, in the 60th year of his reign. Over the last nine years of his reign a dark and mysterious veil had been drawn. In the periods of the deepest national solicitude his mind had felt no interest; and in the hour of the most acute domestic feeling his eye had not been wet with the tears of affection. All was dark within and without, for both reason and sight had departed from him. It does not appear, indeed, that any temporary return of reason allowed him to comprehend and rejoice at the issue of the momentous struggle in which he left his country when his malady drove him into retirement.

“Why,” said a London mechanic, with tears in his eyes, as he viewed the festivities and rejoicings in Hyde Park for the peace of Paris,—“Why is not our good old king well and here to see this sight?” This question displays the general feeling of the nation for the “good old king.” Although the latter part of his life had been a blank, his people had never lost sight of him: their interest had not been wearied by his long seclusion, nor had their love expired in the flood of victories that distinguished the regency. The least information concerning him was read with avidity, while the tear of pity and affection rolled down the cheeks of the reader. When he died, the nation went into mourning; and the writer of this section of the history well recollects the intense anxiety displayed by his subjects to catch a sight of his coffin and the crown that he once wore, when he lay in state. Day after day thousands upon thousands waited at the gate of royalty to gain admittance; and many were the tears shed, and many were the sighs heaved from the full heart, as they paced through the chamber of death. All felt that they had lost a father. The influence of his virtuous character, in preserving the nation from the contagion of French principles; the steady progress which civil and religious liberty had made during his reign: the desire which he had ever evinced to improve the moral and intellectual condition of his people, still lived in their memory, and taught them to feel when he descended into his grave that they had lost a benefactor. He was mourned over as “the dear old king,” and “the good old king,” and he will be venerated as such as long as the roll of British history remains in existence.

CONTINUATION

OF

THE HISTORY OF ENGLAND,

By E. H. Nolan

GEORGE IV.

[Illustration: 374.jpg PORTRAIT OF GEORGE IV.]

CHAPTER XXXII.

{GEORGE IV. 1820–1821}

Accession of George IV..... Declaration of the King, &c. Dissolution of Parliament..... Cato-Street Conspiracy..... Meeting of Parliament..... Bills for amending the Criminal Code..... Education Bill..... Motion for a Committee on the Corn Laws..... Motion for a Committee respecting Free Trade..... The Civil List, &c. Message respecting the Queen..... Trial of the Queen.

ACCESSION OF GEORGE IV.

{A.D. 1820}

GEORGE IV. had long governed the empire, so that the acquisition of the crown effected no other change than that of the title of regent to king. The assumption of this new dignity, however, was followed by perplexities of great magnitude. He had long repudiated his wife, now Queen Caroline, and she had been living in foreign lands as an exile. This step had alienated the affections of his people from him; and at his accession to the throne, when he was induced to extend the limits of the hostility he had displayed towards his consort, they became, out of sympathy for an injured and helpless female, still more embittered against him. His accession to the throne, however, gave Caroline an opportunity of retaliation, which, as will be seen, she was not backward in exercising.

DECLARATION OF THE KING, ETC.

The first public act of the new king was to summon a council, at which the emblems of office, having been surrendered by the officers of the crown, were immediately restored to their former possessors. His majesty then made a declaration, in which, after having alluded to the demise of his father, and his own long exercise of the royal prerogative, he remarked that “nothing but the support which he had received from parliament and the country, in times most eventful and circumstances most arduous, could inspire him with that confidence which his present situation demanded.” He added, that he trusted the experience of the past would satisfy all classes of his people, that it would ever be his desire to promote

their prosperity and happiness, as well as to maintain unimpaired the religion, laws, and liberties of the kingdom. This declaration, at the request of the council, was made public; and on Monday, the 31st of January, the king was proclaimed, first, under the portico of the palace, and then at various stations throughout his good city of London. On the same day the members of parliament were sworn in, and they adjourned to the 17th of February. In the meantime, however, alarming reports arose concerning his majesty's health. He was attacked by a severe inflammation of the chest, which had lately proved fatal to his brother; and his physicians were in doubt about the result. Their forebodings, however, proved groundless; after the lapse of a week he was declared out of danger, although it was a considerable time before his health was re-established.

DISSOLUTION OF PARLIAMENT.

According to the principles of the British constitution, the demise of the crown is followed by a dissolution of parliament within the next six months. On the meeting of parliament a royal message announced an immediate design of calling a new parliament, and invited them to concur in the necessary arrangements for carrying on the public service during the interval, Loyal addresses, suitable to the occasion, were voted _nem. con._; and next day ministers obtained a pledge that the desired measure for the wants of government should be adopted. When the requisite votes of money were proposed, however, Mr. Hume, that pertinacious interrogator, took occasion to ask a very embarrassing question. In the necessary alteration of the form of prayer for the royal family, by his majesty's command, the name of the queen was omitted. Mr. Hume desired to know whether any provision was to be made for her as queen? As Princess of Wales, her former allowance had of course ceased on the death of the late king: was she, as Queen of Great Britain, to be left to wander in beggary through foreign lands? or would parliament make a suitable provision for the maintenance of her dignified station? Lord Castlereagh endeavoured to evade this subject, and to elude an acknowledgment of the queen's title, by stating that the "exalted personage" should suffer no pecuniary difficulties. In reply, Mr. Tierney, by commenting on the omission of her majesty's name from the liturgy, on the rumours in circulation against her character, and on the report of a commission sent abroad to collect evidence against her, strove to force ministers into a direct consideration of the question; but they still preserved a cautious silence. Other members also endeavoured to provoke them to a discussion on the question; but they still adhered to their text—the required supplies, and these were suffered to pass without a division. This done, parliament was dissolved by commission on the 28th of February.

CATO-STREET CONSPIRACY.

In his speech on the occasion of the dissolution of parliament, the lord chancellor referred, in vindication of their late enactments, to a sanguinary conspiracy which had just been detected, and which, he said, was sufficient to open the eyes of the most incredulous to the dangers of the country. The conspiracy referred to was one of the most desperate that could have been conceived by the perverse mind of man. It had for its object the overthrow of the government, and the irremediable confusion of national affairs, by the assassination of the whole cabinet. The chief leader of this plot

was Arthur Thistlewood, who had once served as a subaltern in the West Indies. He had imbibed republican principles in America, and these had been confirmed by a residence in France during the darkest period of the revolution. He had recently been tried as an accomplice of the elder Watson; and when he was acquitted he sent a challenge to Lord Sidmouth, for which offence he was sentenced to a fine and imprisonment. On his liberation he determined to take revenge, and that of the most ample nature. For this purpose he gathered around him men of bold daring and reckless characters. The principal of these accomplices were, Ings, a butcher; Davidson, a Creole; and Brunt and Tidd, shoemakers. After a series of meetings the united band of these desperadoes determined to destroy his majesty's ministers. Their plan was this:—that forty or fifty of them were to commit the tragical act under a pledge of forfeiting their own lives should their resolution fail them; and that other detachments were to seize on the field-pieces at the artillery-ground, and at the London Station in Gray's Inn, and then to occupy the Mansion-House and the Bank, and to set fire to the buildings of the metropolis at different places. This plot was determined upon on, Sunday, the 20th of February; and it was to be put into execution on the following Wednesday, when there was to be a cabinet-dinner at Lord Harrowby's, in Grosvenor Square. It was agreed that a single conspirator should go to Lord Harrowby's with a note addressed to his lordship; that when the outer door should be opened others should rush in; and that while some proceeded to bind the domestics, the rest should perpetrate the horrid massacre. The heads of Lord Sidmouth and Castlereagh were to be brought away as trophies of their success. The whole of the Wednesday was passed in preparations for this fearful tragedy. Arms and ammunition were provided; proclamations were written, ready to be affixed to those edifices which were devoted to the flames; and strict watch was kept on Lord Harrowby's mansion, in order to ascertain whether any of the police or military entered it or were concealed in its vicinity. Towards the evening the conspirators crept towards their place of rendezvous, and by six o'clock all had assembled. The place of rendezvous was a stable in Cato-street, near the Edgeware-road; a building which consisted of two upper rooms, the ascent to which was by a ladder. In the largest of these rooms the conspirators were seen, by the glimmering light of one or two small candles, making ready for their bloody enterprise. They were rejoicing in the speedy prospect of revenge; but their projected crime had been unfolded. Among them was one Edwards, who, though a pretended colleague, was a spy. This man had given them the information of the cabinet-dinner, and then gave the cabinet information of all the proceedings of the conspirators. Every precaution was adopted by ministers to lull suspicion; and the preparations for dinner had been going on as though the ministers would really assemble. By this means the conspirators were detected with arms in their hands. Their capture was effected by a party of police, headed by Mr. Birnie, the magistrate, and supported by a detachment of the Coldstream Guards. The conspirators were on the point of starting for Grosvenor-square, when on a sudden the police entered the room in which they were assembled, and called upon them to surrender. Smithers, an active police-officer, rushed forward to secure the ringleader; but he was pierced through with the desperado's sword, and fell. The lights were now extinguished, and the conflict became general, while some of the gang endeavoured to make their escape.

Although, indeed, the police were soon aided by thirty soldiers of the Coldstream Guards, nine of the conspirators only were taken. Thistlewood himself escaped; but, in consequence of £1,000 being offered for his apprehension, he was seized next morning in bed. Others were apprehended also during the two following days; and on the 27th of March true bills, on a charge of high-treason, were returned against eleven of the prisoners. Thistlewood, Ings, Tidd, Brunt, and Davidson were severally tried and condemned, the other six being permitted to withdraw their plea and to plead guilty; five of them received sentence of transportation for life, and the other, who appeared to have been ignorant of the destined purpose of the meeting in Cato-street, received a free pardon. Thistlewood and his condemned associates were brought to the scaffold; and he, with three of them, died with great hardihood, glorying in their purpose, regretting its failure, and declaring themselves martyrs to the prostituted name of liberty.

MEETING OF PARLIAMENT.

Although the country was still in a disturbed state, and seditious meetings were held on every hand, yet the elections proceeded without any acts of outrageous violence. The result of the elections was that opposition gained a slight accession of strength; but the new parliament appeared to take the complexion of that by which it had been preceded. Its members began to assemble on the 21st of April; but the session was not opened until the 27th of that month. On that day the king declared in his speech that he should follow the example of his father in solicitude for the welfare of the nation, and that the regal dignity should be supported without any additional burdens on the people. He expressed a determination to maintain public peace and tranquillity, lamented the pressure of distress and the prevalence of sedition, and concluded with a hope that the misguided multitude might be brought back to a sense of their errors. The usual addresses were carried unanimously.

BILLS FOR AMENDING THE CRIMINAL CODE.

Early this session Sir James Mackintosh moved for leave to bring in six bills, founded on the suggestions of the committee appointed by the last parliament to consider the important subject of the amendment of our criminal code. Three of these bills passed into law. The first of these was to repeal the act by which private stealing in shops, to the amount of forty shillings, was made punishable with death; the penalty, however, was still retained against those who should so steal to the amount of ten pounds and upwards; by which it would appear that our legislators conceived that a man’s life was not equal in value to such an amount. The second went to repeal certain acts which denounced death to any Egyptian who should remain in England one year, on all notorious thieves who should take up their residence in Cumberland or Northumberland, and on every one who should be found disguised in the mint, or injuring Westminster Bridge. The third repealed various clauses in certain acts, which constituted the offences specified in them capital, and which were converted into simple felonies. Among the offences thus modified were, that of taking away any woman, whether maid, wife, or widow, for the sake of her fortune; the receiving of stolen goods; the destroying of trees, breaking down banks of rivers, and wounding of cattle; the sending of threatening letters; and all the capital offences created by the

marriage act and laws of bankruptcy. For these offences, transportation, imprisonment, or hard labour were substituted for death, at the discretion of the judges. Thus the statute-book of England was purified from many grievous stains; but it was still blotted by many imperfections, and even to this day it contains much that requires purging by enlightened legislators.

EDUCATION BILL.

After having rendered important service to his country by his efforts to establish a system for detecting and remedying abuses in charitable funds and establishments, Mr. Brougham brought forward his plan for the education of the poor. This subject, however, was not destined to receive the concurrence of parties at this period, though the object in view was generally admitted to be desirable. The chief difficulty, and that which induced Mr. Brougham to abandon the bill, arose from the dissenters. They opposed it because they conceived that some of the enactments originated in imperfect information respecting the dissenters in this country, and because, overlooking their numbers, property, and intelligence, and religious character, the whole affair was to be under the management of the clergy of the established church. The consequence of this opposition was that, after the first reading of the bill on the 11th of July, it was abandoned. But this failure only seemed to give an additional incentive to the zeal of Mr. Brougham, and he subsequently reaped the fruit of his labours.

MOTION FOR A COMMITTEE ON THE CORN-LAWS.

During this session Mr. Holme Sumner moved for a select committee to take into consideration the agricultural state of the country. The table of the house was loaded with petitions on this subject from all quarters. The petitions complained of distress; and their general prayer was for additional restrictions, fora high permanent duty in place of a limited prohibition, The debates arising from the motion occupied much time and attention. It was seconded by Mr. Western, and supported by Mr. Gooch, who repeated the statement, that without protection the agriculturists of this country were unable to compete with foreign growers; that the act of 1815 afforded no protection; and that measures more effectual were indispensable. Mr. Robinson, president of the board of trade, in reply, deprecated the motion as tending to excite hopes which could not be realized. He was followed by Messrs. Baring and Ricardo, the latter of whom entered into a luminous exposition of the principles of political economy, and condemned all restrictions on the freedom of the corn-trade as injurious in their tendency. The landed interests, however, prevailed, and the motion for the committee was carried. On the following evening, however, ministers succeeded in neutralizing its effects, by proposing that its inquiries should be limited to the best mode of ascertaining the weekly average of corn prices. This was opposed as a trick of state; but it passed by a large majority, and every material alteration of the corn-laws was deferred till a more convenient season.

MOTION FOR A COMMITTEE RESPECTING FREE TRADE.

A commercial question of still greater importance than that of the corn-laws was also, during this session, introduced into parliament. Petitions from the city of

London, and from Glasgow, prayed for free trade; and Mr. Baring, who presented that of the London merchants to the commons, insisted that freedom from restriction is calculated to give the utmost extension to foreign trade, as well as the best direction to the capital and industry of the country. No formal motion was made in the commons on this subject; but in the lords, on the 26th of May, Lord Lansdowne moved for a committee of inquiry concerning the foreign trade of the empire. This proposal elicited a speech from the Earl of Liverpool, in which his lordship, as head of the administration, declared his assent to the principles of free trade, expressing his conviction that it would have been better for the world had such principles always been acted upon, and advising the recognition of such exceptions only, as the policy of the world and the laws of the country dictated. The motion was carried unanimously.

THE CIVIL LIST, ETC.

The civil list was settled at £1,057,000; and on the 19th of June the chancellor of the exchequer produced his financial statement. There was an increase both in the army and navy estimates, owing to the augmentation of force, necessary from the peculiar state of the country. The sum total for the service of the year, including the interest of the debt, was estimated at £50,500,000. The ways and means proposed to meet this large expenditure were, exclusive of permanent revenues, a continuation of the usual annual taxes; the sum of £2,500,000 from the produce of the temporary excise duties, which had remained in force during the war; £240,000 arising from the lottery; £260,000 from old naval stores; exchequer bills for £7,000,000 to be funded; and £12,000,000 from the sinking-fund. But all questions, whether financial, commercial, or political, were swallowed up in one absorbing topic—this was the arrival of Queen Caroline from Italy.

MESSAGE RESPECTING THE QUEEN

Queen Caroline had retired to Italy to avoid persecution in 1814, by the advice of Mr. Canning. The persecutions to which she had been subjected arose in a quarter from which she least expected it—from her husband, the regent. Her name was not often mentioned in England during her absence; but though the public seemed regardless of her existence, subsequent disclosures showed that she had not been forgotten by her persecutors. Spies had been sent into Italy to watch her conduct; and the result was that she was finally charged with living in open adultery with an Italian courier, named Bergami, a man whom she had raised from that station to the first office in her household. In consequence of these movements, Mr. Brougham, her legal adviser, made a proposal, in June, 1819, to Lord Liverpool, that the income of £35,000 per annum enjoyed by her royal highness, but which was to expire on the death of his majesty, George III., should be secured to her for life, provided she consented to remain abroad without assuming the title of Queen of England. This singular proposition was stated at the time to be made without the knowledge of the princess; and the reply given was, that when the king came to give attention to the subject, there would be no indisposition to acquiesce in such terms, provided she would give her consent. Thus matters rested till she became Queen of England. Government then

thought it necessary that some line of conduct should be taken regarding her, which might prevent disclosures that were on all accounts to be deprecated, and a compromise, founded on Mr. Brougham's former proposal, was transmitted to her: she was to receive £50,000 on condition of renouncing the royal title, and residing in foreign lands. She had heard of the death of her father, and the accession of her husband in February, while at Rome, and she immediately assumed the royal title, and demanded a guard of honour from the papal government. This demand was not complied with, because no official communication had been received from the king or his ministers on the subject: his holiness, indeed, represented that he did not know whether the Queen of England was in Rome or not. Incensed at this reply, her majesty drew up a narrative, dated Match 16th, relating her wrongs, and in which she stated her determination to repair to England. This document, together with a letter written by her to Lord Liverpool, demanding that her name should be inserted in the liturgy, and that a palace should be prepared for her on her arrival, appeared in the papers about the middle of April, and a general idea prevailed that she was rapidly proceeding towards England. Various reasons, however, concurred which induced her to prolong her sojourn at Rome, so that she did not arrive at Geneva till the 9th of May. From Geneva she dispatched a letter to Mr. Brougham requiring his attendance either there, or at one of the sea-ports. In consequence of this communication, Messrs. Denman and Brougham, with other friends of the queen, held a consultation, in which they agreed to request her to repair to Calais without loss of time. Her majesty quitted Geneva instantly on receiving this advice, and in her route thither she was joined by Lady Anne Hamilton, who had formerly been in her service, and by Alderman Wood, one of the representatives of the city of London. On the 20th she arrived at Villeneuve le Roi, whence she wrote two letters, one to the Duke of York, and the other to Lord Liverpool, declaratory of her intention, to be in London within five days, reiterating also her demand for a palace, and requesting that a royal yacht might be in readiness at Calais to convey her to England. At St. Oroers she was met by Mr. Brougham, and Lord Hutchinson, a personal friend of the king, who was entrusted with a confidential communication. The fact is, ministers had determined, from the evidence in their possession, that the queen could not be received in England with the honours due to royalty, and Lord Hutchinson was sent to intimate this, and to make a similar proposition to that which had before been made. Ministers proposed to settle £50,000 per annum on her for life, subject to such conditions as the king might impose; which conditions Lord Hutchinson stated he had reason to believe, were, that she was not to assume the style and title of Queen of Great Britain, or any other title attached to the royal family of England; and that she was not to reside in England, or even to visit that country: the consequence of such a visit would be an immediate message to parliament, and an entire end of all compromise or negociation. The threatened message to parliament was understood by the queen and her counsellors to signify that a public charge of adultery would be exhibited against her; and, indignant at such treatment, the proposal was rejected as one that could not be listened to for a moment. Lord Hutchinson still made attempts at negociation, but they were all vain; nothing could induce her to change her purpose. Irritated by studied insults abroad; incensed by threats of ministerial vengeance; brooding over the wrongs she had endured from one who had promised

before the altar of God to love and cherish her through life; and, above all, assured of the popular support, she pursued her way; and she reached the shores of England on the 6th of June. Although government had made no preparation for her reception, the people’s hearts gave her a ready welcome. Multitudes met her on the beach at Dover, with loud acclamations, banners, and every sign of popular enthusiasm. Her progress to London resembled a triumphal procession, and she was met in the metropolis by 200,000 persons, all shouting her welcome at the top of their voices. They would have conducted her at once to Carlton House, but she was induced to go to Alderman Wood’s mansion in South Audley Street, there to wait the issue of the matter.

The king was now obliged to take the field against a woman in, whose favour the British people were generally interested. On the 6th of June a message was read from the woolsack, communicating certain papers relative to the conduct of her majesty since her departure from England, which the king recommended to the immediate and serious attention of their lordships. A similar message was also delivered to the commons: and in both houses ministers expressed their intention of moving for an address to the king, and a reference of the papers to a secret committee on the following day. In the commons the minister was anticipated on the 7th by Mr. Brougham, who presented a communication from her majesty, setting forth that she had returned to England for the purpose of maintaining her innocence and rights; protesting against any secret tribunal appointed by her accusers; complaining of the insults received from foreign courts, influenced by that of Great Britain; and appealing to the justice of the commons of England. In reply, after the cheers with which this document was received had subsided, Lord Castlereagh said that ministers were neither persecutors nor prosecutors: the king’s message was most gracious; and the secret committee was only a preliminary step to ascertain whether there was any case to proceed with. The trial should be, he added, if there was any trial, open and honourable, Mr. Brougham strongly resisted the appointment of the committee, since although not final, it must deeply affect her majesty’s character. Mr. Canning vindicated the conduct of ministers, and Mr. Wilberforce recommended delay, that, if possible, some compromise might be entered into. In consequence of this suggestion of Mr. Wilberforce the house adjourned to the Friday following; and in the interval the queen, on the advice of her friends, made a communication to Lord Liverpool, through Mr. Brougham, in which, deferring to the expressed opinion of the house of commons, she declared herself ready to take into consideration any arrangement consistent with her dignity and honour. In reply, Lord Liverpool referred her to the memorandum placed in the hands of her own attorney-general and the queen declared that this document, which had been superseded by Lord Hutchinson’s proposition, was now submitted to her for the first time. She added that the recognition of her rank and privileges must form the basis of any arrangement. In reply, ministers declared that any proposition on the part of the king must have for its basis the queen’s residence abroad. To this her majesty rejoined, that she was willing to leave her cause in the hands of any person or persons of high station and character, whom both parties might select; their decision being subject to the approbation of parliament. This proposal was accepted. On the part of the king the Duke of Wellington and Lord Castlereagh were appointed, while Messrs. Brougham

and Denman were appointed on behalf of the queen. Meanwhile parliament, to give time for their negociations, was further adjourned. The referees met on the 15th of June; but it was all to no purpose. The protocol set forth that “the queen must not be understood to admit nor the king to retract any position,” with which insuperable barrier before them the negociations finished as they had commenced: it was contended _in limine_, on her majesty’s behalf, that her name should be inserted in the liturgy, and as this was refused by the king, the conference was broken up. This failure in negociations was reported on the 19th; but on the following day Mr. Wilberforce asked and obtained further delay, in order that he might make a proposition, which he conceived might set the matter at rest. This proposition was made on the 22nd, and it consisted of two resolutions; one regretting the recent failure of negociation, and the other soliciting her majesty to gratify the house by conceding a few points, for the sake of an amicable arrangement. Lord Archibald Hamilton moved as an amendment that the queen’s name should be inserted in the liturgy, which was ably supported by Sir Francis Burdett, who delivered a speech, censuring ministers, which produced a great sensation in the house. In reply, Mr. Canning stated, that, however much provoked by the honourable baronet’s speech, he should abstain from entering the lists with him till a future day; which determination produced a sarcastic retort from Mr. Tierney, who observed, that, “as the better part of valour was discretion, he commended Mr. Canning’s prudence, in postponing his defence of ministers till the effect of Sir Francis’s speech was done away: the fact proved that it was unanswerable.” Mr. Wilberforce’s motion, however, was carried by three hundred and ninety-one against one hundred and thirty-four. A deputation waited on the queen with the message of the commons; but she peremptorily rejected their advice, and its members were, on their return, hissed and hooted by the populace. Every hope of conciliation being now at an end on the motion of Lord Castlereagh, the commons voted a further adjournment, in order to leave initiatory proceedings to the house of lords. But though the commons waited quietly till their lordships made a further movement in the matter, the country did not. The whole kingdom was turned into one great arena of disputation, in which the innocence or the guilt of the queen was advocated according to the different views of the people. Addresses were sent to the queen from all quarters; and in answer to that presented by the common-council of London, she made this declaration,—“In the many and deep sorrows and afflictions with which it has pleased Providence to visit me, I have derived unspeakable consolation from the zealous and constant attachment of this warm-hearted, just, and generous people; to live at home with, and to cherish whom, will be the chief happiness of the remainder of my days.”

The secret committee made their report on the 4th of July. This report stated that the charges appeared calculated so deeply to affect, not only the honour of the queen, but also the dignity of the crown, that in the opinion of the committee it was necessary they should become the subject of a solemn inquiry, which might best be effected in the course of a legislative proceeding. This was followed, on the 6th of July, by a motion in the lords, moved by the Earl of Liverpool, for a bill of pains and penalties; or an act which, according to precedents in former ages, might pronounce the queen guilty of an adulterous intercourse; degrade her from her exalted station;

and dissolve the marriage between her and the king. This bill was read a first time as a preliminary step to the introduction of evidence, and then a copy of it was sent to her majesty by the usher of the black rod. The day fixed for the second reading was the 17th of August, on which day counsel appeared in support of the bill and on behalf of the queen.

In the meantime addresses were presented to her from cities, towns, and villages in every part of the United Kingdom. Encouraged by the popular support, the queen took a house at Hammersmith, on the banks of the Thames, and thither processions went every day, except Sundays, numbering on an average 30,000 people. Eventually she was obliged to appoint certain days in the week for receiving them: the other days were employed in riding about the city and its environs, in which she was always followed by a vast concourse of people. The king was, also, compelled to endure some noise and bustle. In their processions to and fro, the people generally stopped opposite his palace, but it was only to show him the bitter feelings which they entertained towards him. So unpopular had he become by this persecution of his wife, that he was compelled to go from London to the cottage, and from the cottage to London under cover of the night; and even then the people were on the watch to salute him roughly as he passed.

TRIAL OF THE QUEEN.

On the 17th of August mobs of the most terrific description surrounded the two houses of parliament, and filled every street in the vicinity. In this state of things the lords took their places to try the queen: the judges being requested to assist at the deliberations. The names of the peers having been called over, Lord Liverpool moved the order of the day for the second reading of the bill of pain and penalties. The Duke of Leinster moved as an amendment that the order should be rescinded; but this was negatived, and the Earl of Liverpool then moved that counsel be called in and heard in support of the preamble of the bill. On the appearance of the counsel Mr. Brougham obtained leave to state his objections to the principles of the bill in its present state of progress, which he did in a speech of great length, and with extraordinary talent. Taking advantage of the popular feeling he concluded in these terms:—“True it is, that your committee has reported in favour of the bill, but that cannot pledge the house: and he is the greatest of all fools who consults his apparent consistency at the expense of his absolute ruin. The sooner you retrace the step into which you may have been led at an unwary moment, the greater will be the service you render to the country. If you decide that this bill ought not to proceed, you will be the saviours of the state.” Mr. Denman followed on the same side with a speech of great eloquence; and the speeches of the queen’s counsel were answered by the king’s attorney and solicitor-general. Mr. Brougham replied: urging a variety of arguments in favour of his original proposition, and showing the impolicy of the principle contended for by ministers. Successive attempts were made by Lords King and Grey to stop all further proceedings; but their motions were negatived, and the attorney-general was ordered by the lord chancellor to state his case. His statement occupied two days, and the examination of witnesses engaged the attention of the peers to the 6th of September. The evidence in support of the bill was summed up on

the 7th of September, and on the 9th an adjournment took place to the 3rd of October, in consequence of an application from her majesty's counsel. On that day Mr. Brougham entered on the defence in a speech of great power; and he was followed by Mr. Williams, who declared that he should be able to rebut many of the prominent points sworn to in the prosecution by the clearest testimony. The examination of the witnesses for the defence lasted from the 5th of October to the 24th, and Mr. Denman proceeded to sum up the evidence. At the conclusion of his speech he remarked:—"We have fought the battles of morality, Christianity, and civilized society throughout the world; and in the language of the dying warrior I may say:—

'In this glorious and well foughten field We kept together in our chivalry.'

"While he (Mr. Brougham) was achieving the immortal victory, and the illustrious triumph, protecting innocence and truth by the adamantine shield of his prodigious eloquence, it has been my lot to discharge only a few random arrows at the defeated champions of this disgraceful cause." Dr. Lushington followed on the 26th of October, with a luminous view of the case, and the king's attorney and solicitor-general replied. The peers then debated, and on the 6th of November divided on the second reading of the bill, Which was carried by one hundred and twenty-three against ninety-five. Many peers entered strong protests; and a protest was read from the queen by Lord Dacre, in which she made the most solemn assertions of innocence. In this protest it was observed, that "unless these unexampled proceedings should bring the bill before the commons, the queen would make no reference whatever to the treatment experienced by her during the last twenty-five years." This _innuendo_ produced its effects. The lords, indeed, now evidently began to tremble, lest they should be precipitated into the gulf which by their recent vote they had approached. It was felt, moreover, that the king did not come into court "with clean hands;" and therefore when the divorce clause came under discussion several peers, and among them several bishops, who considered the queen guilty, declared their aversion on religious scruples, to vote for it. The partisans of the queen, headed by Earl Grey, seized the advantage offered to them by this difference of opinion among her opponents, and they gave their strong support to it, and the clause was carried. But by this movement the fate of the bill became evident. It was read a third time by a majority of nine on the 10th of November; but there was yet one question to be put,—"that this bill do now pass," and ministers shrunk from the point. The queen petitioned to be heard by counsel against this final step; but Lord Liverpool, in reply, declared that with so small a majority, in the actual state of public feeling, he, and his colleagues felt bound to abandon the bill. A motion was made that the question should be put off to that day six months, which was carried; and thus ended, in defeat and disgrace, the domestic war which George IV. had been carrying on for twenty-five years against his consort. On the 29th of November, her majesty went in state to St. Paul's to return public thanks, on which occasion she was surrounded by such multitudes as to make it difficult for her to reach the cathedral. The general joy was also manifested by illuminations, ringing of bells, firing of cannon, and the presentation of addresses of congratulation. But Queen Caroline was soon destined to see her popularity wane. Tired with the constant rout, orders were given that

addresses should only be presented on one day of the week; and she gradually withdrew herself from the leaders of the whig party. This was the signal for the desertion of her cause. What Queen Caroline was doing soon became as indifferent to the people as what other members of the royal family were doing, and her final fate an object of curiosity more than of interest. At the close of the trial of Queen Caroline, parliament was prorogued to the 23rd of January.

CHAPTER XXXIII.

{GEORGE IV. 1821—1823.}

Meeting of Parliament..... Debate on the Holy Alliance..... The Catholic Question..... Motions for Parliamentary Reform, &c. Report of the Agricultural Committee..... The Navigation Laws..... The Supplies, &c. Coronation of George IV..... Death of Queen Caroline..... Meeting of Parliament..... Changes in the Cabinet..... Motion to restore Roman Catholic Peers to their Seats in Parliament..... Motion on Agricultural Digress, &c. Acts for the Reduction of Expenditure..... Debates on the Currency..... Reduction of Imposts, &c. Motion for Parliamentary Reform..... Cause of the Greeks..... Prorogation of Parliament..... Change in the Cabinet.

MEETING OF PARLIAMENT.

{A.D. 1821}

Parliament reassembled on the 23rd of January, and was opened by the king in person. In his speech, he expressed satisfaction at decreasing evils with reference to domestic concerns; and in noticing foreign commotions, he stated, that his great object would be to preserve the blessings of peace. He noticed the queen, but it was only to suggest the settlement of a provision upon her. But notwithstanding these pacific demonstrations the opposition in both houses prepared all their strength for the overthrow of the ministry. The whigs joined the radicals, and one of the results of this alliance was the presentation of petitions praying for the restoration of her majesty’s name to the liturgy; reprobating the late bill of pain and penalties; and requesting the house to exert its influence with the king to dismiss his ministers. In consequence of these petitions a motion was made on the 26th of January, by Lord Archibald Hamilton, for a vote of censure on ministers for the omission of the queen’s name in the liturgy; but though ably supported by Messrs. Brougham, Hobhouse, Scarlett, Wetherell, and Sir James Mackintosh, the motion was lost by a large majority. A few days afterwards, on a proposition by Lord Castlereagh, for a committee to take into consideration a provision for the queen, Mr. Brougham stated that her majesty was resolved not to accept of any settlement, while her name was excluded from the liturgy. But notwithstanding this statement, his lordship proposed a provision of £50,000 per annum, and after vehement debates the vote passed without a division, and a bill for this annuity was forwarded through the usual stages. On the 5th of February, Lord Tavistock renewed the attack on ministers, by a motion of direct censure on the whole proceedings against the queen, with a view of

compelling the ministers to resign. This motion, however, was lost by a large majority; and a last effort made in the queen’s cause, namely, a motion made for the restoration of her name to the liturgy, met with a similar fate. In the meantime the queen had been reduced to the necessity of either being left without any provision, or of accepting the voted settlement, in contradiction to the statement made by her counsel. Her acceptance of it was necessary to her very existence, but the inconsistency of this determination extinguished all her influence over the public mind. By the issue of this trial, indeed, both the king and the queen were lowered in the public estimation: the respect of the nation for the throne and its occupant especially was greatly impaired.

DEBATE ON THE HOLY ALLIANCE

During this session the consideration of foreign affairs was brought before parliament by motions from Lord Grey in the lords, and by Sir James Mackintosh in the commons. The ostensible object of these motions was the production of all communications between his majesty’s government and foreign states on the concerns of Naples. In reality, however, the purpose of these motions was to elicit the minister’s sentiments concerning the conduct of the Holy Alliance, whose manifesto, recently published at Troppau, had excited feelings of alarm among all the friends of constitutional liberty throughout Europe. In his speech Lord Grey adverted to a document published at Hamburgh, purporting to be a circular of the allied powers, in which a claim was set up of a general superintendence over European states, and the suppression of all changes in their internal administration, hostile to what the alliance deemed legitimate principles of government. These monarchs, his lordship said, had assumed the censorship of Europe; sitting in judgment on the internal transactions of other states, and even taking on themselves to summons before them an independent sovereign, in order to pronounce sentence on a constitution which he had given to his country. Ministers, in their defence, said that our government was in no respect a party to the league; and the motion for the production of the papers was negatived. When the declaration against Naples arrived, however, the subject was renewed by a motion made by Lord Lansdowne, for an address to his majesty for a remonstrance with the allied powers. But this was met by the pretext of a strict neutrality adopted by Great Britain; and Naples was left to fall into the hands of the Austrians.

THE CATHOLIC QUESTION.

Grattan, the great advocate of Catholic emancipation, had recently departed this life; but there were still men in parliament able to advocate his principles. On the 28th of February the question was brought forward by Mr. Plunkett, whose able and lucid speech elicited acclamations from all parts of the house. Mr. Peel was the chief opponent of the measure; but the motion for a committee was carried by a majority of six votes. The house resolved itself into a committee on the 2nd of March, when six resolutions, proposed by Mr. Plunkett, received the sanction of the house. On these resolutions he framed two bills; one repealing disabilities, and the other enacting securities for the safety of the Protestant succession to the crown, and of the

Protestant church. These bills passed the commons; but in the upper house the atmosphere was not quite so congenial to their existence. Their fate was decided on the second day's debate, by a speech delivered by the Duke of York, presumptive heir to the throne. He remarked in that speech:—"Educated in the principles of the established church, the more I inquire, and the more I think, the more I am persuaded that her interests are inseparable from those of the constitution. I consider her as an integral part, of that constitution, and I pray that she may long remain so. At the same time there is no man less an enemy to toleration than myself; but I distinguish between the allowance of the free exercise of religion and the granting of political power." This speech had its effect: the bill was thrown out by a majority of one hundred and fifty-nine against one hundred and twenty.

MOTIONS FOR PARLIAMENTARY REFORM, ETC.

While the peers were thus engaged the commons were considering the subject of parliamentary reform. Mr. Lambton proposed to divide the kingdom into elective districts, extend the franchise to all householders, and limit the duration of parliament to three years. This plan being rejected, Lord John Russell proposed another, which would have extended the right of electing members to populous towns then unrepresented in parliament, and disfranchise every borough convicted hereafter of corruption. The house, however, was not yet prepared to go even thus far, for the motion was rejected by a majority of one hundred and fifty-five. But one decided measure of practical reform was at least effected this session; this was the disfranchisement of the corrupt borough of Grampound, and the transfer of its privileges to the populous county of York.

REPORT OF THE AGRICULTURAL COMMITTEE.

Early in this session, from numerous petitions presented on the prevalence of agricultural distress, and on the motion of Mr. Gooch, a committee had been granted to investigate this subject. The report of this committee was presented to the house on the 18th of June; and it stated that the complaints of the petitioners were founded in fact, in so far as they represented that, at the present price of corn, the returns to occupiers of arable land, after allowing for the interests of investments, were by no means adequate to the charges and outgoings. It also acknowledged that the committee, after much anxious inquiry, had not been able to discover any means calculated to relieve the present pressure. The report, in fact, when made public, extinguished all hopes which had been entertained from the labours of the committee. It stated, "So far as the pressure arises from the superabundant harvests, it is beyond the application of any legislative provisions; so far as it is the result of the increased value of money, it is not one peculiar to the farmer, but extends to many other classes of society." This was essentially true; and our legislators, perceiving that they could not alleviate the distress by legislation, left the matter to be ameliorated in the progression of time.

THE NAVIGATION LAWS.

In the course of the last session ministers had proclaimed views in favour of free trade; and these were more formally developed this year by series of resolutions,

proposed by Mr. Wallace, president of the board of trade, the object of which was to pave the way for a complete revisal of the navigation laws, and the removal of those restrictions which forbade the free interchange of commodities in foreign shipping. Leave was given to introduce bills for the enactment of these important measures in the ensuing session.

THE SUPPLIES, ETC.

The total amount of supplies for this year was £20,018,200; and in aid of the ways and means £13,000,000 were taken from the sinking-fund. A sum of £500,000, also, arose from the pecuniary indemnity paid by France. A preposition to repeal the malt-tax was negatived; but ministers afforded some relief to agriculturists by removing the duty from horses employed in husbandry. In the debates on the estimates of expenditure, Mr. Hume pursued his plan of sifting and disputing almost every item of supply; and though he did not succeed in effecting any reduction of expense, yet by this system ministers were compelled into the necessity of originating measures of retrenchment. Parliament was prorogued by commission on the 11th of July.

CORONATION OF GEORGE IV.

It had been intended that the king’s coronation should have taken place in August, 1820; but the queen’s appearance had set that intention aside. Her trial further delayed it; but after the storm of passion with which that was accompanied had subsided, it was announced that the coronation would take place on the 19th of July of the present year. This announcement brought the queen again into the field. On the 25th of June she preferred a claim to be crowned like her royal predecessors; and the case was argued, at the king’s request, before the privy-council. Her majesty’s claim, however, was rejected; and as soon as she received it, she stated her fixed determination to be present at the ceremony, and demanded a suitable place to be provided for her accommodation. This also was refused; and the queen then requested the Archbishop of Canterbury to crown her alone, a request with which he had not the power to comply. Thus repulsed she prepared a protest, which she determined to deliver personally into the king’s hands on the day of his coronation. This occasioned expectations that the celebration of the coronation would be interrupted, if not prevented, by some popular commotion or infraction of the peace. Every precaution, however, was taken by ministers to preserve the public tranquillity, and to draw off public attention from the queen. Shows, balloons, fireworks, and all sorts of entertainments attracted the populace from the vicinity of the abbey, while, in case any commotion should arise, every disposable regiment was brought into or near the metropolis. There needed, however, no warlike preparation; for while the queen’s popularity had abated, that of the king had so much increased as almost to fulfil Lord Castlereagh’s prediction, that, at the end of six months after the trial of the queen, his majesty would be the most popular man within his dominion. He had, in fact, from that time been courting popularity, and the goddess had greatly favoured him. On the day of the coronation, therefore, no tumult was created in favour of the queen; she, in fact, on whom the populace, almost as one man, had, but a little time before, waited with addresses, assuring her of support and commiseration, was

allowed to go from door to door of the abbey seeking admittance, and to be at every door rejected with contumely and scorn, with impunity. George IV. was crowned without interruption; and a ceremony more august and imposing in all its parts, or more, calculated to make the deepest impression both on the eye and the feelings, could not be conceived. But the propriety of the pomp and magnificence displayed may be questioned, as the nation was still suffering from the effects of the late expensive war.

DEATH OF QUEEN CAROLINE.

Although Queen Caroline had borne her wrongs and injuries proudly up to the coronation of her husband, yet, by the treatment she on that day received, not only from officials, but the populace, her spirit was at length subdued. She had placed her last stake on the hazard of a day; and having totally failed in her object, sunk under the deepest humiliation. But death came to the relief of all her anxieties and all her woes. Soon afterwards she was attacked with an obstruction of the bowels, which, in her state of mind and body, brought on mortification, and terminated fatally on the 7th of August. Her ruling passion was strong in death. She directed that her remains should be interred in her own country, and that this inscription should be engraved on her tomb:—“Here lies Caroline of Brunswick, the injured Queen of England.” Her funeral procession was attended with riots of a serious description. The first stage, where it was to cross the sea, was to Romford in Essex. The road that led to that place from her residence on the banks of the Thames was through the heart of the capital, by her husband’s palace, and St. Paul’s Cathedral. Ministers unwisely sought to prevent the corpse from proceeding in this direction, and endeavoured by the military to force it up a narrow street or lane, so that it might reach the northern outskirts of London, and get into the Romford road without occasioning any popular commotion. The populace, however, whose predilection for the queen, now that she was dead, seems to have returned, were determined that the procession should proceed by the natural route. To this end the pavement was torn up, trenches made in the road, and the avenues blocked up in every other direction. The people triumphed; but at Hyde-Park upper-gate a conflict between the military and the people took place, and two of the latter were shot dead. At length the hearse was forced into the city; and here the procession was joined by the lord mayor and other authorities; the shops being closed, and the bells of the different churches tolling. It is said that his majesty, who, at the time these commotions took place, was enjoying the pleasures of conviviality in Ireland, expressed in somewhat contemptuous terms his dissatisfaction at the want of arrangement and energy on the part of ministers. But this seemed to proceed from the failure of their plans rather than from any respect to his deceased queen. She was persecuted even to the last. In the course of the procession Sir Robert Wilson remonstrated with some soldiers on duty, and this humane interference deprived him of his commission; the directing civil magistrate, also, who consulted humanity in preference to his orders, was dismissed from office. It was unmanly to persecute the departed while in the land of the living; it was unworthy of manhood to carry resentment beyond the grave.

MEETING OF PARLIAMENT.

{A.D. 1822}

On the meeting of parliament in January, one of the first subjects taken into consideration was the state of Ireland. For some years that country had been comparatively peaceable, but distress and outrage were again walking hand in hand in every part. To repress the spirit of lawless outrage, the Marquess of Londonderry—Lord Castlereagh, who had succeeded to that title at his father's death—introduced and carried two bills for arming the administration with additional powers, the insurrection act, and the suspension of the _habeas corpus_. Several members wished the state of Ireland to be thoroughly investigated; but this did not accord with the views of ministers. At length a famine, from the failure of the potatoe-crop in 1821, spread over the country, and disease waited in its train. A fever, of the typhus kind, swept off its thousands, while starvation carried off its thousands more. Government, on discovering this, placed £500,000 at the disposal of Lord Wellesley, the lord-lieutenant, to be dispensed in charitable relief, or in employing the poor on works of public utility, and private charity afforded even more effectual aid; but still the people of Ireland could not be wholly rescued from the calamity which had overtaken them. Many were snatched from the jaws of death by this timely relief, but many more perished.

CHANGES IN THE CABINET.

The continued distress of the agriculturists in England, at the commencement of this year led to some modification in the state of public parties. At many county meetings such a loud and imperative call for retrenchment and remission of taxation, was made by both landholders and farmers, that the treasury-bench began to feel alarm. This, in fact, drove them to the expediency of strengthening their ranks by opening the doors of office to the Grenville party; which, though not united with the whigs, was generally opposed to ministers. Lord Grenville, the political head of the party, had retired from public life, but the Marquess of Buckingham was gratified by a ducal coronet, and Mr. Charles Wynne was made president of the board of control. A greater accession was gained in the exchange of Lord Sidmouth for Mr. Peel, as secretary of state for the home department. Lord Sidmouth, however, was permitted to retain a seat in the cabinet, but Mr. Canning was compelled to retire, the part which he had taken in the affairs of the queen having created feelings of resentment against him in the king's mind.

MOTION TO RESTORE ROMAN CATHOLIC PEERS TO THEIR SEATS IN PARLIAMENT.

On the 30th of April, Mr. Canning, "wishing perhaps to give éclat to his departure from the scene of his glory," moved in the house of commons for leave to bring in a bill for restoring the right of sitting and voting in parliament to Roman Catholic peers. In his speech he asked; "Do you imagine it never occurred to the representatives of Europe, when contemplating the imposing spectacle of the coronation; that it never occurred to the ambassadors of Catholic Austria, of Catholic Fiance, or of states more bigoted, if there be any more bigoted, to the Catholic religion, to reflect, that the moment this solemn ceremony was over, the Duke of

Norfolk would become disseized of the exercise of his privileges among his fellow peers? stripped of his robes of office, which were to be laid aside, and hung up, until the day, when the coronation of a successor to his present most gracious sovereign should again call him forth to assist at a similar solemnization? Thus after being exhibited to the peers and people of England, to the representatives of princes and nations of the world—the Duke of Norfolk, highest in rank among the peers—the Lord Clifford and others, like him, representing a long line of illustrious ancestors, appeared as if they had been called forth and furnished for the occasion, like the lustres and banners that flamed and glittered in the scene; and were to be, like them, thrown by as useless and temporary formalities. They might, indeed, bend the knee and kiss the hand; they might bear the train, or rear the canopy; they might perform the offices assigned by Roman pride to their barbarian forefathers—_Purpurea tollant auloa Britanni_—but with the pageantry of that hour their importance faded away. As their distinction vanished, their humiliation returned: and he who headed the procession of peers to-day, could not sit among them as their equal, to-morrow." This motion was strongly opposed by Mr. Peel, who was unable to see any reason for exempting Roman Catholic peers from political restrictions to which a community professing the same tenets were by law subject. The bill, notwithstanding, passed the commons by a majority of five; but it was rejected by the lords.

MOTION ON AGRICULTURAL DISTRESS, ETC.

Early in this session Mr. Brougham moved that it was the duty of the house to relieve agricultural distress by a reduction of taxes. This motion was made with a view of trying the strength of parties, as the small corps of Grenvillites, which had lately joined their ranks, could not support ministers, if the country members deserted them. Lord Londonderry met this covert attack on the ministers, however, by an assurance, that they intended to propose measures for that purpose, so that the arrow aimed at them fell pointless to the ground. The motion was negatived from this assurance, and his lordship soon after proposed the reappointment of the agricultural committee. On the report of this committee he submitted a plan of relief to the house; the principal heads of which were a repeal of the annual malt-duty, and a loan of £1,000,000 in exchequer-bills to the landed interest, on the security of warehoused corn. It was also enacted that when wheat should reach eighty shillings a quarter, a new scale of duties should be brought into permanent operation. At the same time the chancellor of the exchequer brought forward two financial operations. The first of these was a reduction of the navy five per cents., to stock carrying only four per cent; the holders having the option of being paid off at par, or of accepting the lower rate of interest with a small increase of capital as a bonus: the second was a plan to diminish the present charge for naval and military half-pay and civil pensions, known in financial jargon under the name of the dead-weight, by extending it in the form of annuities over a period of forty-five years, instead of allowing it to be gradually extinguished through the death of annuitants. This scheme appeared fallacious to many members, and unintelligible to others; but it was passed by the house, though subsequently the chancellor of the exchequer had to remodel his plan, as the great capitalists complained of its principles. The arrangement was completed in the following year by a bargain with the Bank of England.

ACTS FOR THE REDUCTION OF EXPENDITURE.

During this session ministers felt themselves obliged to yield to the loud call made upon them for the reduction of expenditure. Encouraged by the co-operation of many of the landed proprietors, opposition commenced a series of attacks on the cabinet on these grounds. The first attack was made by a motion to repeal the salt-duty, which was defeated by the small majority of four only. Sir M. W. Ridley next moved for the reduction of two out of seven lords of the admiralty, which was carried by a large majority against ministers. Thus encouraged, Lord Normandy proposed an address to the throne for the dismissal of one of the two postmasters general, and opposition again triumphed. They now assailed one of the strongholds of corruption, the diplomatic expenditure of the country. But here they were defeated. Lord Londonderry declared that if the house persisted in going into a committee on that subject, it would be the signal for breaking up the administration. This menace had the effect of bringing over the country gentlemen to vote with the cabinet as heretofore, and the motions for inquiry were lost by large majorities.

DEBATES ON THE CURRENCY.

In order to relieve the agricultural distress, Mr. Western brought forward a motion on the subject of the currency. He moved for a committee to inquire into the effect which the act of 1819, for the resumption of cash-payments by the Bank, had produced on our manufacturing and commercial interests. In his speech he assigned the alteration of the currency as the chief cause of the calamity, since it operated injuriously on all classes except the fundholder and annuitant, and by its ruinous effects on private contracts, as well as public payments, was calculated to endanger all kinds of property. Mr. Huskisson combated his views at considerable length; and moved as an amendment, “that this house will not in any way alter the standard of gold and silver.” The house then adjourned; and on the following day the debate was resumed. After many members had spoken on both sides of the question, Mr. Peel rose, and said, that “he would not enter on the discussion of abstract subjects. From the reasonings of gentlemen, down to the speech of the honourable member for Westminster, he was at a loss to guess the objects of the committee. The honourable baronet fairly stated that the real object of the motion was to repeal the bill of 1819; he had declared that the aim of the honourable gentleman, Mr. Western, was to establish a new standard of value, and to reduce the value of one pound to fourteen shillings. The house, he hoped, would pause before they adopted a proposition for reducing the value of the currency by one-third. An honourable gentleman had talked of establishing and securing the foundations of public prosperity; but what would be the consequence to-morrow if that night they adopted the proposition of the honourable gentleman? Every man of common sense would buy up every guinea in the country; the whole of our mercantile transactions would be disturbed, and all private contracts be open to inquiry and to defeat. Seven or eight years had already elapsed since the house had pledged itself to return to the ancient standard of value. In 1814 the house came to a resolution that the Bank of England ought to return to cash-payments; in 1816, when his right honourable friend proposed a resolution on the subject, the Late Mr. Horner would not consent until an express declaration was

made, that the legislative would see that cash-payments should soon be resumed; and his proposition was accordingly adopted. But the restriction was continued to enable the Bank to resume cash-payments with greater convenience; so that since 1814 the country was accommodating itself to this new state of things; and after having accomplished that object, the house was told that the intent of the honourable gentleman's motion was to reduce the value of money from twenty to fourteen shillings. With respect to the situation of the public creditor, he has been paid in a depreciated currency. The public creditor lent his money in 1798 and 1800 on the understanding that, when the Bank restriction should expire, he would be entitled to his demand in the ancient standard of value. If the house, therefore, were to come to any adjustment of the value proposed by the honourable gentleman, undoubtedly the creditor would have a right, and would demand the full payment of his debt. It should be recollected that a great number of persons held debentures who were not the original purchasers, but had bought them for a full and valuable consideration; could the government turn round upon these persons, and say, The original holder gave for this debenture only eighty pounds, you gave ninety-five pounds, but we will not pay you more than eighty pounds? If the house were to proceed upon this principle there would be an end for ever to the very idea of national faith—that faith which had supported us under every difficulty, and which constituted the pride, the glory, and the support of this country." These arguments prevailed; parliament determined not to interfere with the currency. On a subsequent day, however, as the distress among the agriculturists grew to an alarming height, ministers repealed that part of the bill of 1819 which confined the issue of small notes to the period of 1823; the privilege was extended till January, 1833. This measure had the effect of causing symptoms of returning prosperity. Country bankers increased their paper issues; farmers obtained a higher price for their produce; landlords were paid a higher rate for their land; and the natural consequence of all this was the prosperity of trade and commerce. At the same time it proved to be an illusive prosperity.

REDUCTION OF IMPOSTS, ETC.

Warned by their recent defeats, ministers, on the completion of their financial arrangements of this year made several reductions in the imposts. They had resisted the abolition of the salt-tax, but they now announced an intention of lowering it from fifteen to two shillings a bushel. They also remitted the annual duty on malt, the additional tax on leather, and that on windows and hearths in Ireland. By these means a reduction of taxation was effected to the amount or £3,500,000. These important measures were followed by several bills having for their objects the relaxation of the navigation laws, and the promotion of the system of free trade. Ship-owners raised a loud outcry against these enlightened enactments; but time has shown that they were equally beneficial to themselves as to the community at large. It was said that the repeal of the ancient navigation laws would enable other states to outstrip our own and prepare our ruin; but so far from increasing foreign competition, and diminishing British production, it has been the means of decreasing foreign importation, and of increasing our domestic manufactures.

MOTION FOR PARLIAMENTARY REFORM

Early in this session Lord John Russell called the attention of the commons to the subject of parliamentary reform. The scheme he proposed was to add one hundred members to the house, to be returned by the counties and larger towns, and to divest the minor boroughs of half the privileges they enjoyed. This was a moderate proposal, and yet it met with the most strenuous opposition, and especially from Mr. Canning. He conjured the house to oppose the introduction of any visionary schemes; and asserted, that a search after abstract perfection in government was not an object of reasonable pursuit, because it would prove vain. He added:—"I conjure the noble lord to pause before he again presses his plan on the country. If, however, he shall persevere, and if his perseverance shall be successful, and if the results of that success be such as I cannot help apprehending—his be the triumph to have precipitated those results, mine be the consolation, that to the utmost, and the latest of my power I have opposed thorn." The motion was negatived; and the proposal of a general resolution by Mr. Brougham on the influence of the crown, which was introduced with the same ultimate views of reform, shared the same fate.

CAUSE OF THE GREEKS—PROROGATION OF PARLIAMENT.

The contest which was raging between the Greeks and their oppressors this year came under the notice of parliament. The Mussulmen had everywhere committed the most atrocious cruelties, and the sensations of horror which they produced in England caused Mr. Smith to put a question in the commons, regarding connivance, or at least neglect of remonstrance on the part of our diplomatic agents. Lord Londonderry answered in a flippant manner, that a calamity had occurred in which ten or twelve hostages had been executed, but which was justified by the barbarity of the Greeks. Sir James Mackintosh now took up the question in a strong remonstrance. He asked whether it was mentioned in any of the despatches that the markets of Smyrna and Constantinople were filled with Greek ladies and children? whether ministers could afford the nation any account of the new slave-trade recently established in the East for Christian families? and whether any of those persons who had been murdered at Constantinople had been under the protection of the British minister, or had surrendered themselves to the Turks under any pledge, promise, or assurance of safety from our ambassador? Lord Londonderry now confessed that eighty or ninety individuals had been executed; but he denied that they could be considered at all under the protection of the British government, or in such a situation as to require our interference.

Many questions of minor importance were discussed this session, but none that requires our consideration except the foregoing. Parliament was prorogued on the 6th of August: and then, on the 10th, the king paid a visit to Scotland; to drink "health to its chieftains and clans, and to bless the land of cakes."

CHANGE IN THE CABINET.

While the king was in Scotland an event occurred which caused a change in the cabinet: this was the death of Lord Londonderry who put a period to his own existence. The difficulty in finding a successor to the deceased minister was so great

as to subdue the resentment which the king entertained toward Mr. Canning. He had recently been appointed governor of India; but just as he was preparing to set sail he was invited to take the high office of secretary of state, which he accepted. About the same time Mr. Robinson was made chancellor of the exchequer, and Mr. Huskisson president of the board of trade. About the time of his death Lord Londonderry was about to join the congress of Verona, and the Duke of Wellington was deputed to take that place. His grace nobly endeavoured to stem the despotic acts of the sovereigns assembled; but all his endeavours proved unavailing.

They still pursued the despotic measures they had commenced, and Spain especially was doomed to feel their tyranny.

CHAPTER XXXIV

{GEORGE IV. 1823—1825}

Meeting of Parliament..... Affairs of Agriculture and Commerce..... The Supplies..... The Catholic Question..... Affairs in Ireland..... Motions to Reform the Criminal Law..... Motion to Reform the Scotch Representation..... New Loudon Bridge Bill..... Motion respecting the Duty on the Leeward Islands..... Expenses of the Coronation..... Munificence of George IV..... Irish Tithe Commutation Bill, &c.—Prorogation of Parliament..... State of the Country..... Meeting of Parliament..... Attack on Ministers with Reference to Spain, &c. Financial Statements..... The Trade Question..... Alien Bill, &c. Discussion on the Revolt in Demarara,&c. State of the British Colonies..... East India Affairs.

MEETING OF PARLIAMENT.

{A.D. 1823}

Parliament reassembled on the 4th of February. It was opened by commission; and in the speech his majesty declared that he would be no party to those proceedings at Verona which sanctioned the interference of France with the internal affairs of Spain; and that he would endeavour to avert the calamity of war between those countries. This declaration elicited general approbation; but it was thought by some that more energetic measures should be taken than those adopted by ministers. During the session Lord Ellenborough moved in the upper house for an address to his majesty, expressing, in high terms, a condemnation of the conduct of France and other allied powers, as well as of the British cabinet, in requiring Spain to alter her constitution at their dictation. The majority of the lords, however, seemed to consider that ministers had used every judicious and practicable effort to prevent the attack on Spain; and the motion was rejected. A similar disposition prevailed in the commons. Some few thought further interference necessary, and Mr. Macdonald introduced a motion to that effect, but it was lost by a majority of three hundred and seventy-two against twenty. So Spain was left to the mercy of the despots: soon after despotism was restored in that country, together with Ferdinand VII.

AFFAIRS OF AGRICULTURE AND COMMERCE.

The distress of the landed interests was early discussed in the commons, and it led to a proposition made by Mr. Whitmore for reducing the import price of grain two shillings a year till it should fall to sixty shillings. This was negatived; but government manifested a disposition to open the trade in corn. At the same time the foreign committee was re-appointed, and further steps taken to free commerce from restrictions.

THE SUPPLIES.

The new chancellor of the exchequer brought forward his budget on the 21st of February. The total revenue of the year was estimated at £57,096,988, and the expenditure, at £49,852,786. This left a surplus of above £7,000,000, and Mr. Robinson proposed to relieve the burdens of the country by a repeal of assessed taxes to the amount of £ 2,000,000, retaining the other £5,000,000 toward the liquidation of the national debt. His views and statements obtained much applause, so that he carried his estimates for the year triumphantly.

THE CATHOLIC QUESTION.

A motion was made on the 17th of April for a committee on the Catholic claims by Mr. Plunkett The discussion on this subject was chiefly remarkable for an attack made by Mr. Brougham on Mr. Canning. After praising the conduct of Mr. Peel, who had never swerved from his opinions, and who had not taken office with the secret understanding to abandon the question in substance, while he continued to sustain it in words, alluding to Mr. Canning, he remarked that when the point was, whether he should submit to a sentence of transportation to India, or be condemned to hard labour at home—when his fate depended on Lord Chancellor Eldon, and his own sentiments on the Catholic question, he had exhibited the most incredible specimen of monstrous truckling for office, which the whole history of political tergiversation could furnish. At this moment Mr. Canning suddenly started up and exclaimed “It is false.” A deep silence ensued; after which the speaker called on the right honourable secretary to retract an expression which he must know violated the rules and orders of the house. Mr. Canning replied that though he was sorry to have used any word which might violate the decorum of the house, yet he would not retract the sentiment. This declaration was repeated; and as Mr. Brougham would not explain till Mr. Canning had retracted, Mr. Bankes moved that both members be taken into custody by the serjeant-at-arms. All parties, however, were extricated from their situation by the suggestion made by Sir Robert Wilson, of an hypothetical and mutual explanation. Mr. Bankes then withdrew his motion, and the belligerents declared that they would forget their recriminations. The motion which gave rise to this scene was lost.

AFFAIRS IN IRELAND.

A large portion of this session was wasted in discussing the insolence exhibited by the agents of the ascendant party in Dublin. Lord Wellesley had prohibited the Orange faction to dress up the statute of King William in College Green: a ceremony which perpetuated animosity and frequently led to strife and bloodshed. This gave the Orangemen great offence; and on one occasion, when his lordship visited the

theatre, a bottle was thrown at him from the gallery. Three persons were taken into custody, and the attorney-general indicted them for a misdemeanour; but the grand jury would only find bills of indictment against two of them, and as two persons cannot commit a riot, the finding released them all. Mr. Plunkett then filed an ex-officio information against those persons, whom he, on evidence received, believed guilty; but the petty jury would not agree in their verdict, and the prisoners were discharged. This matter was investigated in parliament; but the result merely showed in what a daring manner juries were packed, and the name of justice was abused in Ireland.

MOTIONS TO REFORM THE CRIMINAL LAW.

On the 21st of May Sir James Mackintosh renewed his efforts to reform our criminal code. He moved a series of resolutions on the subject; and though these were rejected, four bills were afterwards brought in to the same effect by Mr. Peel. By these bills government was enabled to employ convicts in hard labour, and the judges were relieved from the obligation of passing sentence of death on certain malefactors, except in case of murder. Subsequently Mr. Lennard obtained leave to bring in a bill to abolish the old and barbarous law which sentenced the corpse of one guilty of _felo de se_ to be buried at two cross-roads with a stake driven through it; leaving the burial to be performed in private, without the ceremonies of the church.

MOTION TO REFORM THE SCOTCH REPRESENTATION.

On the 2nd of June, Lord Archibald Hamilton proposed five resolutions on the state of the Scotch representation, the last of which went to pledge the house to take the subject into its serious consideration during the next session, with a view to effect some extension of the number of votes, and to establish some connexion between the elective franchise and the landed property of the country. His lordship invited the attention of Mr. Canning to this subject, as one with which he had not grappled, and as perfectly different from the question of English reform; but he failed in securing his approbation, and the motion was negatived by one hundred and fifty-two against one hundred and seventeen voices.

NEW LONDON BRIDGE BILL.

Mr. Brogden brought up the report of a bill on the 6th of June, by which the sum of £150,000 was to be advanced by government toward the construction of New London Bridge. Mr. Hume objected against this advance in the shape of a gift, and Mr. Ricardo agreed with him. Mr. Alderman Wood, however, argued that the work was one of great national utility, and not intended exclusively for the benefit of the city of London; that the money was to be paid by instalments, extending over a time of seven years; and that the corporation were ready to give up nearly £200,000 that was in their hands, and to raise £400,000 more on mortgage. The report was received, and the resolution for the proposed advance carried.

MOTION RESPECTING THE DUTY ON THE LEEWARD ISLANDS.

On the 9th of June Mr. Creevey called the attention of the house to a grievance under which the Leeward Islands were oppressed, by what was called the four and

half per cent. duty. He held petitions in his hands from five of these islands, setting forth their distress, stating their utter inability to bear such a tax, and throwing themselves on the liberality of parliament. Mr. Creevey proposed the abolition of this impost; an impost on which were saddled so many pensions granted to the aristocracy. He thought it hard that these five islands should maintain so many ladies and gentlemen in England. He was, he said, the last man to interfere with the private arrangements of the royal family, but the king had given pensions to two of his sisters at the expense of the unfortunate Leeward Islands, and why these islands were singled out for such a purpose he could not conceive. Then there were pensions of £500 each to the Misses Fitzclarence; and there were also gentlemen high in office who condescended to allow the Leeward Islands to support their families. Right honourable gentlemen, he continued, could not say that they were ignorant of the colonies; their own acts proved their knowledge of the fact. They could support the colonies and urge their distress in a particular way; they could tax East India sugar, and the consumer of West India sugar in England; but they could not abate that tax out of which their own pensions were derived. Mr. Canning, who received one of these pensions, replied at great length, objecting to this motion as affecting the right of the crown to this branch of revenue, and its right of appropriating the same in any manner deemed suitable by his majesty's government. With respect to his own case, to which Mr. Creevey had made allusion, he remarked:—"It was true that many years ago he had held an office; on retiring from which, by uniform practice, and that sanctioned by law, he became entitled to a pension of £1200 per annum. He had waived his claim to that annuity; and it was true that such right was afterwards commuted for a pension of half the amount for a person who had direct claims on him for protection. It was certainly open to parliament to deliberate on particular instances in the disposal of this fund, and he would not complain of the manner in which the right honourable gentleman had exerted his right in the present instance; yet he well knew that he could be taunted with the names of persons in the same situation, and connected with parties whom he highly respected. That mode, however, was too invidious to follow: the house had a right to examine into supposed abuses as to the application of this as well as any other branch of the revenue; but the honourable gentleman had not made out any case calling for censure." The motion was lost by a majority of one hundred and three against fifty-seven.

EXPENSES OF THE CORONATION.

During this session the expenses of the coronation came under consideration. Mr. Hume inveighed not only against the length of time which had elapsed before they were laid on the table, but against their enormous extent. The chancellor of the exchequer, he said, had promised that they should not exceed £100,000; but they were £238,000, the surplus having been taken from French indemnities. Estimates at variance with the expenses were a farce. And of what service, he asked, was it to attempt the relief of public burdens by cutting down small clerks, and inflicting distress on other individuals, when such sums were expended for such purposes as the decoration of Westminster-hall, which cost £111,000, and the habiliments of his majesty, for which the master of the robes was paid £27,700? Mr. Hume also reproached the ministry with bad faith, in calling for a smaller, and expending a

larger sum. He also accused the chancellor of the exchequer and his colleagues with violating the public faith, by taking money to which they had no right in order to pay the difference. He thought the house would fail in its duty to the public, if it did not call for an examination into the profligate extravagance of this affair: and he concluded with a proposal for a committee for such purpose, and more especially to inquire by what authority the sum of £138,000 had been applied to the coronation expenses without the previous sanction of the house. This motion was negatived; and the house next went into committee, in which the sum of £160,000 was proposed toward the civil contingencies of 1823. This gave Mr. Hume an opportunity of exhibiting the extravagant system of expenditure pursued, particularizing items as proofs. He moved for a reduction of £52,799 from the sum required; but Mr. Canning defended the expenditure, and satisfied the house, so that this motion also was negatived.

MUNIFICENCE OF GEORGE IV.

This year the king gave an instance of royal munificence, calculated to benefit not only the present age, but to extend its advantages to remote generations. By a letter addressed to Lord Liverpool he signified his intention of presenting the valuable library collected by his father to the British nation. This letter, with certain resolutions of the trustees of the British Museum on the subject, was by his majesty’s command laid before the house of commons. The letter and resolutions were referred to a committee, and on the 16th of April this committee made a report which noticed the great value and extent of the library, and expressed an opinion that if his majesty’s magnificent donation were placed under the care of the trustees of the British Museum, the greatest benefit would accrue to the public. The report recommended that a building should be raised for its reception, and that successive grants should be made to effect the purposes above specified. In consequence of this report the house voted a sum of.£40,000 to commence the work, and the foundation of the structure was forthwith laid. The building was completed in 1827, and the following summer this valuable library was transferred to the Museum. It is a splendid monument of the good taste and patriotic spirit of George IV., and will to the latest ages redound to his honour.

IRISH TITHE COMMUTATION BILL, ETC.—PROROGATION OF PARLIAMENT.

During this session an act was passed for the commutation of tithes in Ireland. A motion was made in the upper house by Lord Lansdowne for the second reading of the dissenters’ marriage bill, which might enable them to perform the ceremony of marriage in their own chapels. This was warmly supported by Lords Ellenborough, Calthorpe, and Liverpool; but if, was thrown out by a majority of twenty-seven against twenty-one. The session was closed by commission on the 19th of July.

STATE OF THE COUNTRY.

During this year the prosperity of the country appeared to advance, and the confidence of the people in the government to be established. This feeling was chiefly attributable to the altered tone of the administration, and the tenor of their measures. From their measures commerce and manufactures revived, and, by a natural

consequence, agriculture was improved. Unfortunately this revival of prosperity gave a dangerous activity to enterprise, and generated a spirit of headlong speculation, which produced disastrous consequences in a subsequent year. It was during this year, indeed, that the memorable era of joint-stock schemes commenced, which ended in the ruin of many families. They that will be rich often fall into a snare.

MEETING OF PARLIAMENT.

{A.D. 1824}

Parliament reassembled on the 3rd of February. It was opened by commission, and one of the leading topics of the speech was, the general prosperity of the country; which congratulations were echoed back in the addresses of both houses.

ATTACK ON MINISTERS WITH REFERENCE TO SPAIN, ETC.

Early in this session the affairs of Spain occupied the attention of both houses. In the upper house Lord Lansdowne deplored the fate of that country, which was occupied by French troops, and thought that a greater advance should have been made towards our complete recognition of South American independence. In the commons, Mr. Brougham attacked the tyranny and particular cruelties of the Austrians in one peninsula and of Ferdinand in the other, and denounced the impotent efforts of government to ward off the blow from the constitutionalists. Subsequently our foreign policy was discussed, on motions made by Lords John Russell and Nugent, but Mr. Canning successfully vindicated it. He showed that the conduct of Great Britain had been regulated by a due regard for her own interests and dignity, as well as by an honourable attention to the first principles of international law; and that while we preserved peace, we had by bold remonstrances paralysed schemes formed by the holy alliance for extending their system of interference from the government of Spain to the internal condition of her colonies. These explanations were satisfactory to the house, and the motions were not pressed to a division. Before the close of the year, ministers gave a pledge of their sincerity by admitting the South American colonies into the rank of independent powers. Treaties of amity and commerce were concluded with Mexico, Columbia, and Buenos Ayres, which gave a fresh impetus to trade and commerce.

FINANCIAL STATEMENTS

With the prosperity of the country the public revenue improved. Taxes had been remitted last year to a considerable amount, but notwithstanding this the revenue had increased. It produced £57,672,999, leaving a clear balance of £1,710,985 over the expenditure, besides the established sinking-fund of £5,000,000. The chancellor of the exchequer proposed to employ a part of this surplus in a grant of £500,000 for the erection of new churches; of £300,000, for the renovation and improvement of Windsor Castle; and of £60,000 for the purchase of the Angerstein pictures, in furtherance of a design to establish a national gallery for the fine arts. In his financial calculations for this year the chancellor of the exchequer anticipated a continued

surplus, on the strength of which he proposed a further repeal of taxes to the amount of more than £1,000,000; and as an auxiliary measure, he suggested the discontinuance of certain bounties on fisheries and manufactures, which he considered no longer necessary. In his arrangement an extension of the scheme for reducing the interest of the national debt formed a prominent feature. He proposed to convert the old four per cent, stock, amounting to £75,000,000, into a new fund, bearing interest at three and a half per cent.; and giving the holders the option of being-paid off at par, or of acceding to the new plan. This arrangement met with the decided approbation of parliament, and was carried into execution with great facility. It may be mentioned that during this year Austria unexpectedly repaid £2,500,000 for loans advanced by the British government during the late war. This was but a small dividend on the debt due to England, but it enabled the ministers to be liberal, as they were disposed.

THE TRADE QUESTION

During this session important steps were taken towards a more unrestricted system of trade. One important measure consisted in a repeal of what were still left of the protecting duties between Ireland and Great Britain. Enactments were also passed tending to withdraw British silk manufacturers from the protection of laws which prohibited the importation of foreign silks. The plan adopted for this was to lower the import duties on raw and thrown silk; to repeal all bounties on the exportation of this article of manufacture; and to substitute a duty of thirty per cent, on foreign silks, instead of prohibiting their importation. This scheme met with the opposition of partial interests, but it was carried by a large majority. Among other important measures of relaxation passed this year was the immediate removal of all unequal restrictions on the import and export trade of wool, with a gradual approach to the same system in the linen manufactures. All these measures greatly tended to increase the trade and commerce of England, and to benefit the community at large. The British silk trade is increased twofold since their enactment, although utter ruin was predicted by the silk manufacturers, and the articles manufactured, though lower in price, vie in beauty with the silks produced by and Indian looms.

ALIEN BILL, ETC.

The alien bill was renewed this session. It was vehemently opposed by Mr. Hobhouse and Sir James Mackintosh; and from their opposition, the act, though carried, henceforward operated with less stringency than before. Much discussion arose on the subject of the abuses in the church of Ireland, but it led to no legislative enactment. Much attention was also given to the state of Ireland; a committee of inquiry being appointed in both houses. But nothing effectual was done to improve the condition of that country. The close of this year, indeed, saw the establishment of a political engine of extraordinary power in the Catholic Association. Mr. O’Connell, a barrister of eminence, soon became the acknowledged leader of the disaffected party, and encouraged them to effect by union and agitation what had been denied to petition. This association subsequently extended its correspondence, and appointed agents for every Roman Catholic parish in the kingdom, and then levied a large

revenue under the denomination of Catholic rent, for the support of the demagogues who were at its head. This “rent” continues to be collected to this day, and Mr. O’Connell and his party divide it among them, promising great things in return, but failing to perform their promises from utter, inability. Ireland, therefore, is still hoodwinked by interested agitators: stop the “rent,” and then they would be silent. Their patriotism depends upon the amount they receive from their miserable, poor, and suffering countrymen.

DISCUSSIONS ON THE REVOLT IN DEMARARA, ETC.

During this session Mr. Brougham called the attention of the commons to the circumstances of a revolt in Demarara. The negroes of that island had been led to believe that their freedom had been granted by parliament, and was withheld by the colonial assemblies. This delusion caused an insurrection; and a missionary, named Smith, was tried by martial law, on a charge of exciting the negroes to revolt, and was condemned to death. His case was sent to England for the consideration of the privy-council; but he died in prison before the pardon extended to him could arrive. Mr. Brougham moved that the court-martial held on him was illegal, and the sentence unjust; and it was with great difficulty that ministers could procure a small majority to acquit his judges. This discussion, however, led to beneficial results. Government formed plans for abolishing the habitual use of the lash; for regulating the punishment of refractory slaves; for preventing the separate sale of husband, wife, and children; for protecting the property of slaves, admitting their evidence, and facilitating their manumission; and for providing them religious instruction, and a regular ecclesiastical establishment, with two bishops at its head; one presiding over Jamaica, and the other over the Leeward Islands, These were the principal measures of parliament during the present session.

STATE OF THE BRITISH COLONIES.

At this time our settlements at the Cape of Good Hope were greatly disturbed by the unpopularity of the governor, Lord Charles Somerset. Another part of the great African continent was also the scene of more tragical events. The administrators on the Gold Coast having taken part in the quarrels of the natives, and violated the terms of a treaty concluded some years before with the Ashantee monarch, he led a well-appointed army against them. Sir Charles Macarthy, Governor of Sierra Leone, advanced against him with a few Europeans and some thousands of barbarian allies; but the King of the Ashantees was victorious. Sir Charles Macarthy was slain, and his forces were defeated with dreadful carnage. Alarm was entertained for the safety of the principal settlements at Cape Coast Castle; but the “Thetis” frigate having arrived with a few troops, and the garrison being strengthened by some auxiliaries from Acra, the enemy were repulsed. They were afterwards overthrown in several engagements by Colonel Sutherland, and compelled to desist from hostilities. In North America our colonies were in the enjoyment of great commercial prosperity, though in Lower Canada dissensions had commenced, which portended future important consequences. From the continent of Australia, also, the most pleasing prospects continued to be unfolded. In New South Wales and Van Diemen’s Land the population, from emigration, had doubled itself; and important returning cargoes of

wool, &c., began to compensate for the expenditure of the mother country. A brisk trade was also carried on from thence with India and the remotest regions of the world. Similar pleasing features were unfolded in the Society Islands and the Sandwich Isles; in the former of these Christianity was established. In New Zealand, also, there was a marked improvement in the manners of the natives: they began to eat potatoes, which they derived from trafficking with New South Wales, instead of human flesh. These improvements were the elements of a new order of things, to be developed fully in the lapse of time.

EAST INDIA AFFAIRS.

During this year a serious war broke out between the East India Company and the Burmese sovereign. For some years a misunderstanding had existed between the two powers, arising from a mutual claim to the countries of Chittagong and Dacca, Moorshedabad and Cassimbazar. These, the Burmese monarch said, did not belong to India; and on several occasions he had demanded them of the company, threatening to destroy their country if the revenues were not given up. It was the Rajah of Ramere who actually laid claim to them; but he could do nothing without the aid of the Burmese king; and the latter took up his quarrel. Under the administration of Lord Teignmouth and Lord Hastings various petty encounters with the Burmese troops had been sustained, as well as with other predatory hordes of India. The contest between the British government and the Burmese empire did not actually commence till the present year. The Burmese forces had advanced for the purpose of restoring the deposed Rajah of Cachar, who had sought refuge in the Burmese dominions, and whose successor was supported by the British. For this and other acts committed by the Burmese sovereign, it was resolved to chastise him. Early in this year orders were given for equipping a force of about six thousand men at the presidencies of Forts William and St. George; and the two divisions were directed to assemble at Port Cornwallis, in the Great Andaman island, whence the combined forces were to proceed to attack Rangoon, the principal sea-port in the Burmese territories. The command was given to Major-general Sir Archibald Campbell; and the total number of troops under him was 8,071, about half being British. The expedition put to sea on the 5th of May, at Calcutta; and a part of the force was detached, under General McCreagh, against the island of Cheduba, and another, under Major Wahab, against Negrais. The rest of the fleet sailed up the Rangoon river on the 11th of May, and anchored off the town. As the place was not prepared for resistance, the governor, after a few shots had been fired from the principal battery, which was quickly silenced by one of the ships, directed the inhabitants to retire into the recesses of the jungle. The city, with its mud houses, was abandoned to the invaders, and everything that could serve for provision was removed far beyond their reach. It had been imagined that the capture of Rangoon, or any part of the enemy’s maritime possessions, would induce the king to accept the terms of government. It was soon found, however, that not only the Burmese monarch, but the people of Pegu, whose co-operation had been reckoned upon, were preparing for decided hostilities. Distress soon prevailed among the British troops, for there were no provisions near, and the boatmen of the Rangoon had removed every serviceable vessel out of their reach. To add to the distress of the army, the rainy season set in; and it was also kept

in continual alarm by the nightly irruption of the enemy into its lines. The chief command, however, had been given to an officer of ability and zeal; and every obstacle was finally surmounted. On hearing of our offensive operations, the court of Ava lost no time in making preparations for our expulsion. Every town and village within three hundred miles of Bangoon was obliged to send its complement of armed men, under their respective chiefs; and the Irrawaddy was covered with fleets of warriors from all the towns on its banks, proceeding to the general rendezvous of the army. The Burmese monarch had said that the English should not disturb the women cooking their rice at Rangoon; and now that they had not only been disturbed, but driven from their homes, he resolved to be revenged on them. The first conflict took place on the 16th of May, when Captain Birch dislodged the enemy from the village of Kemmendine, a war-boat station three miles above Rangoon. Nothing daunted, however, the enemy, as their numbers increased, gradually approached the British position, and threw up stockades in the jungle within hearing of our advanced posts. Of this work the British commander took no notice, as it was his wish to come into close contact with his antagonists, he being unable to attempt any distant operation. On the 28th of May an advanced corps was stockaded within little more than musket-shot distance from our piquets; and Sir Archibald Campbell, with four companies of Europeans and four hundred native infantry, with two field-pieces, moved out to reconnoitre. His advanced guard soon came on the first stockade thrown across the path; but the work being incomplete its defenders retired after exchanging a few shots. Continuing its march, after a progress of about five miles, the column came to a narrow wooden bridge over a morass, where the enemy was beginning to form. This bridge had just been forced by the fire of the artillery, when one of those tempests which usher in the south-west monsoon came on; and as the field-pieces could be dragged no further, the general left them in charge of the native infantry, and advanced with his European troops. They moved on by _échellon_ of companies; and the left flank, which passed close to the jungle, found some villages defended in front by two stockades, whence proceeded shouts of defiance from the enemy. These stockades were attacked at the point of the bayonet; and a fierce and sanguinary conflict took place, in which great numbers of the enemy were slain. During this attack on the stockades the Burmese general in the plain made no movement for their defence; but as soon as the British were seen in possession of the works, a horrid yell was heard, and the whole line of Burmese troops was seen to advance towards them. They were checked by a company which had not yet been engaged, and by the appearance of those troops which had carried the works, who moved forward to receive these new opponents. An attempt at negociation was now tried by the enemy; but it was rather to gain time than to seek peace. They were, in fact, still occupied in erecting fortifications; and our troops were obliged again to attack the war-boat station of Kemmendine, as well as other stockades in different parts. Before the end of June, however, the enemy recovered from their panic; and, having received large re-enforcements, advanced again, under Sykia Wongee, third minister of state. The jungles were animated with living masses, and their tumultuous preparations for battle contrasted strangely with the stillness and quiet of the British lines. Our troops at this time had been much diminished by sickness and death; but they were recruited by the eighty-ninth British regiment from Madras, and the

detachments that had been sent to the capture of Cheduba and Nagrais, places which soon fell into their hands. Early in July a battle took place round the great pagoda, in which the Burmese were signally defeated. Sykia Wongee was recalled in disgrace; but his successor, Soombe Wongee, was not more successful. This latter general lost his life, with eight hundred men, in the fortification; and the jungles and villages around were filled with unhappy creatures who were left to perish. Soon afterward the rains were at their height, and operations ceased in this quarter; but an expedition was sent eastward, under Colonel Miles, who reduced the whole coast of Tenasserim. During the season of tranquility the princes of Tonghoo and Irmwaddy joined the Burmese army, in order to inspire them with confidence, and to keep the officers to their duty. They were accompanied by numerous astrologers, as well as by a corps called “Invulnerables:” men curiously tattooed, and accustomed to exhibit the war-dance of defiance, and to expose themselves to the hottest fire of an enemy, that they might inspire the rest with courage and confidence. The astrologers were some time before they could mark out a propitious day for attacking the British position. At length, however, they fixed on the night of the 30th of August. The invulnerables promised to assault and carry the great pagoda, that the princes and grandees might celebrate the grand annual festival in that sacred place. On the night in question, therefore, this body advanced with swords and muskets, uttering clamorous imprecations against the invaders. They advanced toward the northern gateway; but they were greeted with showers of grape-shot and successive volleys of musketry, which made such havoc in their masses, that they were compelled to seek shelter in an adjacent jungle. At length the Burmese monarch determined to repair the loss of honour which his troops had sustained. He had sent his most celebrated general, Maha Bandoola, to take the command of the Arracan army, destined for the invasion of Bengal. Maha Bandoola had routed a detachment of native infantry at Ramoo, and was busied in erecting stockades as the basis of future operations, when an order arrived for him to return to the defence of the golden empire. His return to Ava not only restored confidence to the Burmese troops opposed to the British, but acted as a spell to draw the reluctant people round his banners. In the meantime, whilst a large fleet of war-boats, with a train of artillery was preparing to fall down the river, and orders were issued for the various detachments to join Bandoola on his progress, the British ranks were thinned by the endemic fever of the rainy season, and a severe dysentery. It was determined to remove the sufferers to Mergui and Tavoy, two towns on the coast of Tenasserim, where they rapidly recovered, and were soon restored to their comrades. In the early part of November, the rains having ceased, and the men again become fit for action, they anticipated with joy a forward movement. At this time re-enforcements were received from Calcutta; and a regiment of cavalry, a troop of horse-artillery, and a rocket corps were ordered to join. Before, however, the British could advance, they had to dispose of the whole military force of Ava, This force now consisted of 35,000 musketeers, 700 Cassay cavalry, and other troops, amounting in the whole to 60,000 men. On the 30th of November this great force assembled in the forest of Rangoon, fronting the great Shoedagon pagoda. On the following night the low hum of voices proceeding from the encampment suddenly ceased, and it was succeeded by the distant but gradually increasing sounds of a multitude moving stealthily through the woods. The British commander soon became

aware that the enemy's masses had approached to the edge of the jungle, ready to rush from their cover at break of day. A great number of war-boats had been seen in the morning, by the "Teignmouth," coming down the river; and in the evening they came forward with fire-rafts. The post was left open to a furious attack by land and water; but it was courageously defended by the garrison under Major Yates, supported on the river by a small naval force. Hostilities commenced on the morning of the 1st of December with a heavy fire of musketry and cannon at Kemmendine, where the "Teignmouth" was again driven from her station by fire-rafts. The yells of the assailants were distinctly heard by our troops at the great pagoda; but when the firing ceased, and the smoke dispersed, the masts of our ships were still seen at their old station off the fort. In the course of the morning, Burmese columns appeared on the west side of the river, marching in five or six divisions; and when they reached the bank of the river opposite Rangoon, they commenced stockades and batteries for the destruction of our shipping. Later in the day columns were seen issuing ont of the forest, with flags and banners, about a mile in front of the eastern face of the pagoda; and the different corps, successively taking up their positions along a sloping woody ridge, formed the left of the line, the centre of which extended from the pagoda to Kemmendine. When this position was taken, the troops began to apply their intrenching tools with such activity and skill, that, in about two hours their moving masses were concealed behind a mound of earth. A detachment of the British army, however, soon forced these intrenchments, and drove the whole line from their cover. The intrenchments were discovered to be a succession of holes, capable of receiving two men each, and so excavated as to shelter their occupants from the weather as well as from the enemy. Every hole contained a supply of water, rice, and fuel, and a bed of brushwood, on which one man could sleep while the other kept watch. The Burmese re-occupied these trenches in the evening, which they protected by a strong corps; and on the next day they intrenched themselves within musket-shot of the northern face of the great pagoda. As their fire could now be brought to bear on the barracks of the soldiers, it became necessary to dislodge them from various points; and a series of attacks and combats commenced which lasted seven clays. Great spirit was manifested by the Burmese troops; for when their left wing was defeated, it merely retreated on the right, and the struggle was renewed until that division also was routed, with the loss of 5,000 men. Still undismayed, the Burmese general intrenched himself within four miles of the great pagoda, at the village of Kokeen, but he was driven from his post after several brilliant exploits, in which the operations of the army were powerfully seconded by the flotilla. This was the last conflict during this year: after it had taken place the Burmese general retired to Donoobew, about fifty miles up the river. After their defeat the Burmese had recourse to negociations; but they were found to be not sincere, and therefore were unheeded. As a great number of inhabitants had returned to Bangoon, they introduced incendiaries into that town, who lighted up a conflagration which was not extinguished until more than a fourth part of the place was destroyed. During the whole of this campaign the British vessels and their boats were occupied in destroying fire-rafts, most of which were about one hundred feet square, and composed of dry wood piled up, with oil, turpentine, gunpowder, and other combustibles.

CHAPTER XXXV.

{GEORGE IV. 1825—1826.}

Meeting of Parliament..... Bill for the Suppression of Unlawful Associations in Ireland..... Catholic Relief Bill..... Committee of Inquiry into the State of Ireland..... Mr. Hume’s Motion against the Irish Church Establishment, &c. State of the Irish Charter Schools..... Debates on Alleged Abuses in Chancery..... Regulation of the Salaries of the Judges..... Rejection of the Unitarian Marriage Act, &e..... Act against Combinations among Workmen..... Free Trade System..... Surrender of the Charter of the Levant Company..... Report of Treaties..... Financial Statements..... Proposals for the Abolition of certain Taxes, &c. Prorogation of Parliament..... Great Commercial Panic..... The Burmese War..... Review of Foreign Relations.

MEETING OF PARLIAMENT.

Parliament was opened by commission on the 3rd of February. The speech took a pleasing view of all our affairs, foreign and domestic, except those of Ireland, where strife and animosity still prevailed. The usual addresses were carried by large majorities.

BILL FOR THE SUPPRESSION OF UNLAWFUL ASSOCIATIONS IN IRELAND.

The proceedings of the Catholic Association in Ireland created alarm in the minds of ministers. It was clear, however, to them that public opinion would be against the enactment of a partial law against that body, while the Orange societies, which were also mischievous in their tendency, were tolerated. A bill, therefore, was introduced by Mr. Goulburn “to amend the acts relating to unlawful associations in Ireland.” This produced a warm discussion, which extended by adjournment through four nights. In the course of this debate Mr. Canning vindicated himself against the insinuations of those who considered him estranged from the Catholic cause. He remarked:—“I have shown that, in 1812, I refused office rather than enter an administration pledged against the Catholic question. Nor is this the only sacrifice I have made to the Catholic cause. From the earliest dawn of my life, ay! from the first visions of my ambition, that ambition was directed to one object, before which all others vanished comparatively into insignificance; that object, far beyond all the blandishments of power, beyond all the rewards and favours of the crown, was to represent in this house the university at which I was educated. I had a fair chance of accomplishing it, when the Catholic question crossed my path. I was warned, fairly and kindly warned, that my adoption of that cause would blast my prospects; I adhered to the Catholic cause, and forfeited all my long-cherished hopes and expectations. Yet I am told that I have made no sacrifice; that I have postponed the cause of the Catholic to views and interests of my own.” Mr. Goulbum’s bill was carried by large majorities; but though the Catholic Association yielded to legal authority and became defunct, it was soon resuscitated under a different form. Ostensibly regulating itself according to the late act, it disclaimed all religious exclusions, oaths, powers of acting in redress of grievances, and correspondence with depending societies; and, concealing its intentions under the mask of charitable purposes, it pursued its original course with

impunity.

CATHOLIC RELIEF BILL.

After the above bill had passed, Sir Francis Burdett brought forward a plan, in which the principal bill for the removal of Catholic civil disabilities was accompanied by two others: one to enact a state provision for the Roman Catholic clergy, and the other to raise the Irish franchise from forty shillings to ten pounds. The principal of these bills passed the commons with large majorities; but it was clearly foreseen that it would not in the lords. In the interval of the second and third readings the Duke of York, in presenting a petition to the upper house from the Dean and Chapter of Windsor, declared that the concession of Catholic claims was repugnant, not only to the king's coronation, but to the principles of the constitution. He added:—"I will oppose them to the last moment of my life, whatever may be my situation, so help me God!" This declaration was extolled by those who opposed the claims, as the most manly, patriotic, and noble expression of sentiment that could be uttered at a critical moment; and it was printed in letters of gold, and became their watchword. On the other hand it gave rise to bitterness of feeling among that class of politicians who were in favour of the bill. Its effect on them was strongly displayed by an intemperate sally into which, on the very next night, Mr. Brougham broke out in the house of commons against the speech of the royal duke, in which he was several times called to order. The great bulk of the nation, however, concurred in the principles to which his royal highness had declared his adherence, from an honest conviction that such concessions to the Roman Catholics were inconsistent with the coronation oath, and fraught with danger to the cause of Protestantism.

The bill was carried up to the lords, and read a first time on the 11th of May; and on the 17th Lord Donoughmore moved the second reading. He was supported by Lords Camden, Darnley, Lansdowne. Harrowby, and Fitzwilliam, and the Bishop of Norwich; and opposed by Lords Colchester, Longford, and Liverpool, and the Bishop of Chester, and the lord chancellor. The debate presented little novelty; on the one side the right of the Catholics to political equality was insisted upon, together with the innoxiousness of their religious creed, &c.; while, on the other hand, it was contended that, with respect both to the nature of the religion in its political consequences, and to the inconsistency of admitting Catholic elements of power into a Protestant constitution, the reasons for excluding Catholics ought to be as operative now as at any other period. The most remarkable circumstance in the debate, was the vehemence with which Lord Liverpool opposed the measure. In allusion to the grand argument in favour of the bill, that of conciliation, he remarked:—"I cannot bring myself to view this measure as one of peace and conciliation. Whatever it might do in this respect in the first instance, its natural and final tendency will be to increase dissensions and to create discord, even where discord did not previously exist. I entreat your lordships to consider the aspect of the times. The people are taught to consider Queen Mary as having been a wise and virtuous queen, and that the world had gained nothing whatever by the Reformation. Nay, more than this: it was now promulgated that James the Second was a wise and virtuous prince, and that he fell in the glorious cause of toleration. Could the house be aware of these facts, and not see

that a great and powerful engine was at work to effect the object of re-establishing the Catholic religion throughout these kingdoms? And if once established should we not revert to a state of ignorance, with all its barbarous and direful consequences? Let the house consider what had been the result of those laws, what had been the effects of that fundamental principle of the British constitution which they were now called upon to alter with such an unsparing hand. For the last hundred and thirty years the country had enjoyed a state of religions peace, a blessing that had arisen out of the wisdom of our laws. But what had been the state of the country for the hundred and thirty years immediately preceding that period? England had been the scene of the most sanguinary religious contentions. The blessings of the latter period were to be attributed solely to the nature of those laws which granted toleration to all creeds, at the same time that they maintained a just, a reasonable, and a moderate superiority in favour of the established church. Their lordships were now called upon to put Protestants and Catholics on the same footing; and if they consented to do this, certain he was, that the consequence would be religious dissension, and not religious peace." Upon a division the bill was thrown out by a majority of one hundred and seventy-eight against one hundred and thirty. The two auxiliary bills, called, by way of derision, "the wings," after this failure were of course abandoned, although they also would have passed the commons by large majorities.

COMMITTEE OF INQUIRY INTO THE STATE OF IRELAND.

In the last session a committee of the lords had been appointed to inquire into the state of those districts in Ireland which were subject to the operation of the insurrection act. Early in this session another committee was appointed to inquire into the state of Ireland generally. The result of the labours of the committee was a brief and vague report, but accompanied by a mass of evidence, which threw great light upon the condition of the general body of the Irish people. It showed that they lived in the most degraded state; that they were without property; and that their existence was sustained by an insufficient quantity of food of the most unwholesome kind. This report, however, was presented at too late a period of the session to be made the basis of any enactments; and though various discussions took place during the session on particular circumstances connected with the state of Ireland, none of them led to any result affecting the condition of the people.

MR. HUME'S MOTION AGAINST THE IRISH CHURCH ESTABLISHMENT, ETC.

On the 14th of June Mr. Hume moved two resolutions relative to the Protestant church of Ireland:—first, "That the property now in the possession of the established church in Ireland is public property, under the control of the legislature, and applicable to such purposes as in its wisdom it may deem beneficial to the best interests of religion and of the community at large, due regard being had to the rights of every person in the actual enjoyment of any part of that property." And second, "That this house will, early in the next session of parliament, appoint a select committee, for the purpose of considering the present state of the Irish church, and the various charges to which ecclesiastical property is liable." The first of these resolutions was negatived without a division, and the second was lost by a majority of one hundred and twenty-six against thirty-seven.

STATE OF THE IRISH CHARTER SCHOOLS.

In consequence of the report of the commissioners on education, which showed that great abuses existed in the chartered schools of Ireland, Sir John Newport called the attention of the commons to that subject. After detailing at considerable length the condition of the funds of these schools, and the barbarous manner in which the pupils placed in them were treated, he moved, “That an humble address be presented to his majesty, expressing the marked sentiments of regret and indignation with which the house of commons perused the details of unwarrantable cruelty practised on the children in several of the charter schools of Ireland, contained in the report presented to both houses of parliament by the commissioners appointed by his majesty for examination into the state of the schools of Ireland; and praying that his majesty may be pleased to direct the law-officers of the crown in that part of the United Kingdom to institute criminal prosecutions against the actors, aiders, and abettors of these dreadful outrages, as far as they may be amenable to law.” Mr. Peel admitted that the system of charter schools was one which did not admit of correction, but ought to be extinguished altogether. He stated that an order had been sent prohibiting the admission of any more children upon those foundations. He thought, also, that if any of the masters could be proved judicially to have been guilty of such atrocities as were stated in the report, they ought not only to be dismissed, but prosecuted. At the same time he hoped that Sir J. Newport would so far alter the wording of the motion, as not to assume the existence of the guilty practices which were to constitute the subject of inquiry. In consequence of this suggestion the right honourable baronet withdrew the original motion, and substituted the following:—“That an humble address be presented to his majesty, that he will be graciously pleased to give directions to the law-officers of the crown in Ireland, to institute criminal proceedings against the persons concerned in the cruelties detailed in the report of the commissioners, so far as they may be amenable to law,” This motion was agreed to _nem. con._

DEBATES ON ALLEGED ABUSES IN CHANCERY.

A commission of inquiry had been appointed last session to inquire into the abuses which were said to exist in the court of chancery. The report of this commission had not yet been made, but nevertheless the subject was again mooted in the commons. Two discussions on it took place in the present parliament. The first of these was introduced on the 31st of May, by Mr. J. Williams, on the occasion of presenting some petitions complaining of particular proceedings in chancery. The speech which Mr. Williams made was an attack not merely upon the court of chancery, but upon the whole law of England. He particularly animadverted upon the law of real property, upon which, notwithstanding, he declared himself ignorant; and the most important part of his speech went to prove, that courts of common law should cease to be so, and that the equitable and legal jurisdiction should be confounded. The subject was brought under discussion again on the 7th of June, by Sir Francis Burdett, who moved that the evidence taken by the commission instituted to investigate the practice of the court of chancery be printed. Mr. Peel opposed this motion, because to print such evidence, without any accompanying report, was contrary to the practice of the

house; and that if it were printed, the session was too far advanced to take the subject into consideration. These attacks were chiefly made against Lord Eldon; and in the course of the discussion, Sir W. Ridley made a remark to which his own party, from whom those attacks came, would have done well to attend. “He wished,” he said, “as much as any man to see the system altered, but he must object to the mode in which an individual was attacked night after night. He was persuaded such attacks did no good; for Lord Eldon stood very high in the estimation of the people of England.” Mr. Brougham, however, did not profit by this advice; for he broke forth into an uncalled-for and indelicate attack upon Lord Gifford, who had been distinguished by the patronage of the chancellor, and was then deputy-speaker of the house of lords. The motion was rejected by a majority of one hundred and fifty-four against seventy-three. A remarkable circumstance in all the debates which took place on the court of chancery was, that none of its assailants ventured beyond general declaration. No part of the system in which the alleged evil lay was specified, and no remedy was propounded. All that these discussions could lead to, therefore, was to render the court of chancery the subject of popular odium, and to lower the general administration of justice in the public estimation.

REGULATION OF THE SALARIES OF THE JUDGES.

During this, session the chancellor of the exchequer brought forward a measure for augmenting the salaries of the judges, and at the same time for prohibiting the sale of those ministerial offices which the chiefs of the respective courts had been allowed so to dispose of. It was proposed at first to allow the puisne judges £6,000 a year; but the scheme ultimately adopted was to give £10,000 a year to the chief-justice of the king’s bench; £7,000 to the chief-baron of the court of exchequer; £8,000 to the chief-justice of the court of common pleas, and £5,500 to each of the puisne justices of the courts of king’s bench, common pleas, and the exchequer. This arrangement met with considerable opposition, some of the members as Messrs. Hume, Denman, and Hobhouse, arguing that the dignity of a judge did not depend upon money, and that the cheapest mode of doing the judicial business of the country was the best. On the contrary, Mr. Scarlett argued that the arrangement was improper because it diminished the emoluments of the lord chief-justice of England; and he moved an amendment, which was lost, that the sum of £12,000; should be given to him. Mr. Brougham, in a different spirit, proposed that £500 a-year should be taken from the salary of the puisne judges, but that alteration was also rejected.

REJECTION OF THE UNITARIAN MARRIAGE ACT, ETC.

The Unitarian marriage act was this year again rejected, although supported in the lords by the Archbishop of Canterbury, the Bishop of Lichfield, and Lord Liverpool. The same fate was awarded Mr. Serjeant Onslow’s bill for the repeal of the usury laws, though Mr. C. Wynne stated that not only himself, but the chancellor of the exchequer, and most of the cabinet ministers, were favourable to their abolition. Ministers had left the house when the subject was discussed, anticipating that the division on the bill would not take place till a late hour, and that their presence was not necessary for its success. While they were absent the bill was rejected by a majority of forty-five against forty. This decision was owing partly to the arguments of

the solicitor-general against the measure. Borrowers, he said, might be divided into three classes: mercantile borrowers, landed borrowers, and persons who might be considered general borrowers; they not belonging to either of the above classes. Mercantile borrowers, he continued, generally obtained a loan to profit by it. They did not borrow from necessity, but to trade; and if they could make ten or twelve per cent, on the borrowed money, there was no reason why they should not pay the lender seven or eight per cent. But was there, he asked, any landed proprietor so ignorant, as not to see, that, if the monied man could lend to the trade, at a higher rate than five per cent., he would not lend to him at that sum. It was one advantage to the lender, that he could recall his capital at pleasure, or get it back at a short notice. Now when a man lent capital to a trader, he was generally enabled to command the use of it when he pleased; but if he lent his money on land he could not do this: there was all the trouble and inconvenience of a mortgage; he could not recall it for two or three years; and therefore in proportion as he could not command the use of his capital when he lent it to the landowner, he would make him pay a higher rate of interest for it than the trader. He believed he was not wrong when he stated that eight out of every ten estates in the kingdom were loaded with debt. Now under what circumstances did the country gentlemen borrow money? Was it to employ it at some seasonable crisis, when by prudence and dexterity he might obtain vast profit? No. The benefits which he could receive as its produce were fixed: he never could obtain from a borrowed sum beyond a determined amount. Could any one say, therefore, that the repeal of the usury laws would be beneficial to the latter class? But if the terms of borrowing were so unfavourable to the landed class, what expectation could the general borrower entertain of being able to obtain a loan under any other than oppressive terms? These persons generally stood in need of only small sums; their necessities were pressing, and therefore they were exposed to the most grinding demands. They could have no choice but to submit to the terms imposed upon them, be they never so oppressive.

ACT AGAINST COMBINATIONS AMONG WORKMEN.

In a former session, Mr. Hume had obtained the passing of an act repealing both the statute and common law concerning combinations among workmen. This act was attended with mischievous effects; and therefore, during this session, Mr. Huskisson called the attention of the house to the subject. In his speech he detailed some painful reports regarding it which had been forwarded to the secretary of the home department: reports which went to show that the most atrocious acts of outrage and violence had been committed by workmen on their employers. Misconceiving the real object of the legislature in the late act, they had, he said, manifested a disposition against the masters, and a tendency to proceedings destructive of the property and business of the latter. This disposition, if it remained unchecked, he asserted, would produce the greatest mischiefs in the country; and the evil was growing to so alarming a pitch in some districts that if not speedily arrested, it would soon become a subject for Mr. Peel to deal with in the exercise of his official functions. As a general principle, he admitted that every man had a right to carry his own labour to the best market, as labour was the poor man’s capital. On the other hand, he contended for the perfect freedom of those who gave employment to them; whose property,

machinery, and capital ought to be protected. Mr. Huskisson entered into details to show the nature of the system which was acted upon in several quarters. Associations were formed, he said, which, if persevered in and prosecuted successfully, must terminate in the ruin of the very men who were parties to them. The associations had their delegates, their presidents, their committees of management, and every other sort of functionary comprised in the plan of a government. By one article in a set of regulations it was provided, he remarked, “that the delegates from all the different works should assemble at one and the same place,” on certain occasions; so that it was not the combination of all the workmen of one employer against him, or even of one whole trade against the masters, but systematic union of the workmen of many different trades, and a delegation from each of them to one central meeting. Thus there was established as against the employers a formal system of delegation, a kind of federal republic, all the trades being represented by delegates, who formed a sort of congress. Another regulation which Mr. Huskisson noticed was to this effect:—“Each delegate shall be paid out of his own work with, these exceptions only—the president, the secretary, and the treasurer are to be paid out of the general funds.” The delegates are elected for six months, and may be re-elected. Here he remarked was a tax levied upon each workman for the maintenance of general funds applicable to purposes of a most mischievous character. Other articles declared that it was the duty of the delegates to point out the masters disliked, and to warn such masters of the danger in which they were placed in consequence of this combination. Here, Mr. Huskisson rightly observed, was an acknowledgment of the dangerous nature of these associations. But, he asked, what followed? Why another duty of the delegates was to try everything which prudence might dictate to put the disliked masters out of the trade: not everything which fairness and justice might dictate to workmen who sought to to obtain a redress of grievances, but everything which “prudence” might dictate. In such a position, “prudence” must be understood as implying that degree of precaution that might prevent the “Union” from being brought within a breach of the law, such as the crime of murder. Was it, he asked, fit, right, or reasonable that persons engaged in commercial or other pursuits should, by combinations thus organized, be kept in constant anxiety and terror about their interest and their property. After noticing other regulations of this class of associations, Mr. Huskisson went on to show that others were governed by regulations, if possible, more extraordinary. One of these regulations was, that no man coming into any given district or county within the control assumed by the associating parties, should be allowed to work without previously paying five pounds sterling, to be applied to the funds of the association. In a similar spirit, another regulation set forth, that any child being permitted to assist, should at ten years old be reckoned a quarter of a man, and pay a proportionate sum accordingly. It was also provided that any man being called in by any collier to his assistance should not be at liberty to work, unless previously adopted, like the collier, by the society, and unless, like him, he should previously pay his five pounds. Mr. Huskisson rightly asked whether this amercement of five pounds, and this subscription of one shilling a week to the funds of the association, which every member was called upon to pay and contribute, would not produce to each of the parties, if placed in a saving-bank, far more beneficial and advantageous results? and whether there were not, among these

combinations, men anxious for the enjoyment of the power and distinction which they considered the attainment of certain posts would confer upon them? With reference to Mr. Hume’s act, he declared that when he looked at the way in which it was worded, and the artful misconstruction that might be put upon it by those who best knew how to mislead and deceive the men who had engaged in these combinations, he was not surprised that the associators should consider themselves to be warranted in their proceedings under that act. It repealed all former statutes, and then enacted that no proceedings at common law should be had by reason of any combinations or conspiracies of workmen formerly punishable under those repealed statutes. Without imputing to the framers of the bill the slightest idea that any misapprehensions could be entertained of its enactments, he did not doubt that a great portion of the associated and combined workmen in the country did actually believe, that so far from violating the law, its second section proved that they were only pursuing a course strictly conformable to the legislature. It declared that “journeymen, workmen, and other persons who shall hereafter enter into any combination to obtain higher rates of wages, &c., or to regulate the mode of carrying on any manufacture, trade, or business, or the management thereof, shall not be subject or liable to any indictment or prosecution for a criminal conspiracy or combination, or to any other proceeding or punishment whatever, or under the common statute law.” “Would not,” Mr. Huskisson asked, “any person, on reading this sentence, suppose it was something fit and commendable for workmen to conspire together to regulate and control the management of any manufacture?” In conclusion, he said, that under this act, the plotting together for the destruction of machinery, and even threatening life or property were no longer any criminal offence; and that he considered the existing law was not adequate to put down an evil which was increasing to a formidable extent: not the evil of committing the offences to which the act adverted, but the evil of workmen being permitted to plot, and the bold, open avowal of carrying such permission into effect. He moved for the appointment of a committee to inquire into the effects of this act, and to report their opinion how far it might be necessary to repeal or amend it. This motion was agreed to, and the committee, after a laborious investigation, made a report, in which they recommended the repeal of Mr. Hume’s bill; the effect of which would be to restore the operation of those laws which were suspended by the second and third clauses of that act. But while recommending that the common law should be restored, the committee expressed an opinion that an exception should be made to its operation in favour of meetings and consultations amongst either masters or workmen, the object of which was peaceably to consult upon the rate of wages to be either given or, received, and to agree to co-operate with each other in endeavouring to raise it or lower it, or to settle the hours of labour; an exception which, while it gave to those in the different classes of masters and workmen ample means of maintaining their respective interests, would not afford any support to the assumption of power or dictation in either party to the prejudice of the other. But in recommending that liberty of associating and co-operating together, so far as wages or labour were concerned, should be preserved alike to masters and workmen, the committee deemed it requisite to propose that the resolution of any such association should be allowed to bind only parties actually present on personally consenting; all combination beyond this should be at the risk of the parties, and open

to the animadversion of the common law, and should be dealt with according to the circumstances of each case. The committee further proposed that every precaution should be taken to ensure a safe and free option to those who were not inclined to take part in such associations. The language of the report on this subject is emphatic. “The most effectual security,” it says, “should be taken that legislative enactment can afford, that, in becoming parties to any association, or subject to their authority, individuals should be left to act under the impulse of their own free will alone; and that those who wish to abstain from them, should be enabled to do so, and continue their service, or engage their industry, on whatever terms, or with whatever master, they may choose, in perfect security against molestation, insult, or personal clanger of what kind soever.” The punishment of offences of the nature alluded to recommended by the committee, was, in case of conviction, six months’ imprisonment, with or without hard labour, according to the circumstances of the case. A bill founded on this report was brought into the commons, and after considerable discussion, was passed into a law. In the committee several of its clauses were resisted, and especially that which made it penal to induce any man to leave his work by threat, or intimidation, or by molesting, or in any way obstructing him. This was said by Mr. Hume to be too vague, as what one man might consider an obstruction, another might not; and by Mr. Mansfield, as being deprecated by the workmen. In reply, Mr. Huskisson said, that he had no intention of acting harshly towards the operative mechanics: the object of the bill was to protect the weak against the strong; to afford to the man who chose to give his labour for a certain value that protection against the combination of large bodies to which every man was entitled. Upon a division the clause objected to was carried by a large majority; the members rightly conceiving that man is free to act upon his own responsibility, and that he should not suffer from the control of others. If a man chooses to give his labour for a certain rate of wages he should be at liberty to do so without intimidation or molestation. And he is the more entitled to act thus independently of his fellow-workmen’s interference, because no man will throw away his labour. Self-interest is, in fact, the best protection from oppression. A skilful mechanic with a good character can always obtain the true value of his labour without the aid of his fellow-operatives. He can act as a man; can ask, and obtain his just wages.

FREE-TRADE SYSTEM.

Many petitions had been presented in the course of this session for and against the existing system of the corn-laws. On the 25th of April Mr. Whitmore was induced to move for a committee of the whole house to consider of these laws; but his motion was rejected. Previous to this, however, Mr. Huskisson, in pursuance of the scheme of commercial policy which he had adopted, brought forward three important subjects: first, “The system of our commercial policy in respect to our colonies;” secondly, “The expediency of revising many of the duties payable upon the import of the raw materials used in our manufactures, and of relaxing the prohibitory duties which, under the name of ‘protection,’ were enforced against the manufactured productions of other countries;” and, thirdly, “The means of affording some further degree of relief and assistance to the interests of our shipping and navigation.” The alterations he proposed in our colonial system were explained by him on the 23rd of

March, when, by entering into historical details at great length, he proved to demonstration that all those articles of manufacture which had been most fostered had most languished; that excessive duties made the smuggler’s fortune, while the manufacturer was disappointed, and the exchequer defrauded; that the apprehension which guarded our fabrics with high duties was unfounded; and that the true policy of the state, as well as the advantage of individuals, would be consulted by the reduction of duties sufficiently to countervail whatever might be imposed upon the raw material used in the different manufactures. Having shown the ungrateful return made by the United States of America, which had been allowed to trade with our colonies, he proposed to open their ports to all friendly powers on the same principle, though with some modifications, as that on which they now traded with Jersey or Ireland. With the further view of encouraging our own trade and that of our colonies with the countries of South America, he proposed to extend to certain ports in those colonies the benefits and regulations of our warehousing system as it was established in this country, by allowing goods from all parts of the world to be bonded and deposited in warehouses without payment of duty till proper opportunities of selling or exporting them should occur. Another boon proposed by him to our colonies and trade was, the abolition of the large fees which were levied for the benefit of public officers in almost all our colonial ports. He further proposed two alterations of a local and specific nature; the one relating to the Mauritius, and the other to Canada. That relating to the Mauritius lowered the duty on sugar to the same rate as that from the West Indies, and that relating to Canada admitted the importation of corn from thence on a fixed and permanent duty. The resolutions embodying Mr. Huskisson’s views were adopted _nem. con._, and were afterwards, with one trifling exception, carried into effect. That exception was, that the bill for establishing the free intercourse in the article of corn, subject to the duty of five shillings per quarter, between Canada and this country, should not be permanent, but limited in its operation to a period of two years.

The other part of Mr. Huskisson’s scheme for promoting commerce was brought forward on the 25th of March. These parts referred to protection rather than revenue, and to the affording relief to the shipping and navigation interests. He began by proposing a reduction of duties on the cotton and woollen trade, as well as those on manufactured linen. In some cases these rose as high as one hundred and eighty per cent.; and Mr. Huskisson proposed to lower them to ten, fifteen, and twenty-five per cent, respectively. He next adverted to foreign paper, books, and glass, which were almost prohibited by excessive duties. He proposed a duty upon all books, bound and unbound, imported into this country, of sixpence per pound; on paper threepence per pound; and upon glass bottles three shillings per dozen. He next proceeded to the duties on metallic substances, as iron, copper, zinc, and lead. The duty on foreign iron was to be reduced from £6. 10s. to £1. 10s. per ton; that on copper from £54 to £27 a ton; that on zinc from £28 to £14 a ton; and that on lead from £20 to £15 per cent. _ad valorem_. Upon tin he proposed to reduce the duty from £5. 9s. 3d. to £2. 10s. the cwt. Mr. Huskisson next proceeded to consider how far it was possible to reduce certain imposts on raw materials which interfered with the success of the capitalist, who was obliged to use them in his manufactures. He

instanced the cases of articles used in dyeing, as well as olive and rape-oil. He wished to take off the duty from the latter altogether, and thereby enable the manufacturer to supply the farmer with cake instead of compelling him to procure it at a large cost in the foreign market. He proposed also to reduce the duty on all foreign wool imported at a lower price than one shilling the pound to one halfpenny. He concluded with proposing measures to relieve the commerce and navigation of the country. There was already a bill on the table to do away with the quarantine duties, which the committee on foreign trade had proposed to lay on the community at large. Mr. Huskisson thought this proposition was equitable, as the amount of these duties was considerable; and they were placed on the shipping interest for the protection of the country. lie proposed further the abolition of all fees on commerce with our colonies, and the removal of the duty payable on the transfer of any share in a ship, or of a whole ship, from one person to another. There was still another mode by which he proposed to relieve the shipping interest. This consisted in a reduction of stamps for bonds, required from exporters of certain goods to be delivered at certain places, from forty shillings to four shillings. He also proposed to apply the same principle to Custom-house debentures, or documents given by way of security to those who were entitled to drawbacks. As conducive to the same end, he further proposed an alteration in the system of our consular establishments, granting instead of fees a regular salary to the officers who superintended them, retaining only certain fees, which were to be small, for acts which were extra consular. Though some members of the house expressed an apprehension that these changes might prove injurious, yet in general they were acceptable both to parliament and the country. The resolutions in which they were embodied were adopted unanimously; and they were afterwards carried into execution by bills framed in conformity with them.

SURRENDER, OF THE CHARTER OF THE LEVANT COMPANY.

Connected with the above changes was the surrender of the charter of the Levant Company. That company was established by royal charter in the reign of James the First, when considerable privileges were bestowed upon it. Thus they were allowed to appoint all the consuls in the sea-ports in the Levant; to levy duties on all English ships for the maintenance of their consuls; and to exercise a certain jurisdiction within the territories of the Ottoman Porte. These powers and trusts had been exercised by the servants of the company with general fidelity for two centuries; but, considering the state of the countries in which the company’s consuls resided, in apolitical point of view, it was now deemed expedient that the public servants of this country in Turkey should hold their appointments from the crown. A meeting of the company was called in consequence of a communication from the ministers; and Lord Grenville, the governor, having proposed the surrender of their charter, the company acceded to it; and an act of parliament was subsequently passed for carrying that surrender into effect.

REPORT OF TREATIES.

During the month of May the secretary for foreign affairs laid three papers on the table of the house of commons, which were of considerable importance. The first of these papers was a treaty of commerce with the independent states of Rio de la Plata;

the second, a treaty concluded with Russia, settling the disputed claims which had existed between the two countries with regard to territories on the north-west coast of America, and to certain rights of trade and navigation in the Pacific Ocean; and the third was a treaty between Great Britain and Sweden, having for its object the abolition of the slave-trade, as carried on under the flag of either nation. The effectual measure of visitation and detention was, with a manly policy, adopted by both powers; so that the cruisers of either under certain limitations, were permitted to stop, and bring in for adjudication, slave-vessels trading under their respective colours.

FINANCIAL STATEMENTS.

On the 28th of February the chancellor of the exchequer gave an exposition of the financial situation of the country, and of the pecuniary arrangements for the year. From his statement it appeared that, notwithstanding the reductions made in taxation during the last session, the finances continued to improve. There was a surplus, he said, of £1,437,774; and he proceeded to show that the receipts of the customs, though about one million pounds sterling had been taken off some of the articles it comprised, had been equal to those of former years. He asked:—"What are the causes which have produced this result? The proximate cause, doubtless, is the increased capacity of the people of this country to consume the produce of other countries, aided and invigorated by the reciprocal facility which our consumption of foreign articles gives to other nations in the extended use of the products of our own industry. That increase may arise in some degree from the demonstrated tendency of population to increase; but, independently of that cause, there is a principle in the constitution of social man, which leads nations to open their arms to each other, and to establish new and closer connexions by ministering to mutual convenience; a principle which creates new wants, stimulates new desires, seeks for new enjoyments, and, by the beneficence of Providence, contributes to the general happiness of mankind." The chancellor of the exchequer next stated that the produce of the excise and of stamps had been greater than had been anticipated by government; and then proceeded to make his calculations for the present year. He calculated the produce of everything at £56,445,370; and that the expenditure would be £56,001,842, including £5,486,654 for the sinking-fund. This would leave a clear surplus of £443,528. He argued from this, that a surplus of £864,676 might be expected for 1826; and of £1,254,676 for 1827. This, together with the surplus of 1824, namely £1,437,744, would make a total of £4,000,624; and in applying this surplus to the diminution of the public burden, the chancellor of the exchequer explained that he had three objects in View: increased facility of consumption at home, in conjunction with increased extension of foreign commerce; the restriction of smuggling; and some alleviation of the pressure of direct taxation. To accomplish these objects, he proposed to lower the taxes on various articles to the amount of £1,526,000. This relief was in general judiciously applied: the imposts reduced were on hemp, coffee, wines, British spirits and rum, cider, and those articles in the assessed taxes, as husbandry-horses let to hire, taxed carts, etc., which pressed particularly on the lower classes of society. Of this it was calculated that there would be lost during the present year about £600,000, so that the total surplus of this and

the two ensuing years, estimated at more than £4,000,000, would be sufficient to meet the diminution. Some parties were dissatisfied because there was not a greater diminution of direct taxation; others, because greater relief was not given to the West Indian interests; and others, because the duties on tobacco were not lowered. On the whole, however, Mr. Robinson’s financial statements were satisfactory to the public at large. The estimates for the year were voted with little opposition.

PROPOSALS FOR THE ABOLITION OF CERTAIN TAXES, ETC.

During this session Mr. Maberly moved for the repeal of the assessed taxes, which was lost by a great majority. On the 5th of May, also, a resolution, proposed by the same member, respecting the duties on beer was negatived. The same fate awaited a motion made by Mr. Hobhouse, for the repeal of the window-tax; and likewise a motion for the repeal of the duties on soap and candles. A more than ordinary share of the time of the members was occupied this year in the consideration of private bills. So great was the passion for joint-stock companies, and so abundant the capital ready to seek employment in schemes of local improvement, &c., that four hundred and thirty-eight petitions for private bills were presented, and two hundred and eight-six private acts were passed.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 6th of July by commission. The speech announced that foreign powers were amicably disposed; regretted the continuance of the war in the East Indies; and expressed satisfaction at the measures adopted by parliament for the extension of commerce. “These measures,” said the speech, “his majesty is persuaded, will evince to his subjects in those distant possessions the solicitude with which parliament watches over their welfare. They tend to cement and consolidate the interests of the colonies with those of the mother country; and his majesty confidently trusts that they will contribute to promote that general and increasing prosperity on which his majesty had the happiness of congratulating you on the opening of the present session, and which, by the blessing of Providence, continues to pervade every part of the kingdom.”

GREAT COMMERCIAL PANIC.

The golden prospects unfolded in the speech of the chancellor of the exchequer when making his financial statements, and reiterated in that of his majesty at the close of the session, soon vanished away. The causes of this reverse were manifold. The abundance of capital, and the consequent low rate of profit, during the last three years, had greatly increased export manufactures. As the system of country banks continued in operation, this apparent prosperity of manufactures attracted much capital to them; and a system of credit was generated which caused a still further extension. Speculation added its impulse to this system; until, in the course of this year, paper money thrown into circulation, increased the currency beyond what the causes determining the supply of gold could sustain. The exchanges now turned against us; the currency became depreciated; and gold, the sinews of a nation’s prosperity, began to flow out of the country. The Bank of England finding that the demand for gold diminished its stock of coin, contracted its issue of notes and its

discounts. In this way, if the state of trade had been good, the currency might have been reduced so as to restore the exchanges to par; but the reduction in quantity took place first among those who had pushed their credit to the utmost; and these persons being unable to meet their engagements became bankrupts. The distress soon reached the bankers themselves. Some of the country banks stopped payment; and apprehensions springing up from thence with respect to the stability of the London banks, caused such a run upon them, that many failed. In the month of December all the usual channels of credit were stopped, and the circulation of the country completely deranged. In this state of affairs several cabinet deliberations took place; and it was at length determined that one and two pound bank notes should be issued for country circulation. This measure was carried into effect on the 16th of December; and an order was also issued to the officers of the Mint to expedite an extraordinary coinage of sovereigns. For one week one hundred and fifty thousand were coined daily. In the meantime meetings were held in London and the great trading towns, in which resolutions were adopted for the support of commercial credit and these had the effect of restoring mutual confidence to a considerable extent. Such was the contrast between the commencement and the close of the present year: it began in visions of prosperity, it closed with a certainty of adversity. The derangement of commercial affairs doubtless arose from the dangerous mania of speculation, aided by a vicious system of making paper money, which increased the currency, drove gold out of the country, and then caused a demand for it in exchange for paper, which it was impossible to meet. The natural consequence was an almost general breaking up of those who depended on paper money, and an approach to its utter annihilation.

THE BURMESE WAR.

{GEORGE IV. 1825—1826.}

During this year the hostilities against the Burmese were prosecuted actively and successfully, but yet without producing any decisive result. After the successes gained by Sir Archibald Campbell, towards the end of the previous year, he remained unmolested at Rangoon; and the only military operations in that quarter in the month of January were some unimportant skirmishes. During that month it was discovered that the Burmese generalissimo had stationed himself at Donoobew, about fifty miles up the river, where, having drawn to his army all the resources of the Pegu vice-royalty, he prepared himself to sustain an attack. It was now determined by Sir Archibald Campbell, though his invading force was small, and his Siamese allies reluctant to join him, to advance into the interior of the empire. He joined the camp on the 13th of February at Mienza, passing through forests lined with formidable stockades, a deserted country, and destroyed villages. On the 26th he arrived at Soomza, of which the governor of the place gave him possession by retiring from his post. In the meantime, Donoobew had been attacked by a division of the British force which had proceeded thither by water, under Brigadier-general Cotton. The outworks of Donoobew were carried, but the main-work was too strong to risk a further advance, and the troops were withdrawn for a time. By the 18th of March General

Campbell crossed the Irrawaddy to the west bank in some of the country canoes, and on the 25th reached Donoobew. He pitched his camp before the extensive works of Maha Bandoola on the 2nd of April. During that morning the enemy kept up a heavy fire on our ranks; but towards noon it ceased. A calm succeeded; but it was the harbinger of a storm. About ten o'clock, when the moon was fast verging towards the horizon, a sharp sound of musketry mingled with war-cries roused the sleeping camp. The soldiers seized their muskets and formed into a line; and this was scarcely effected, when the opposing columns advanced with an intention of turning our right, and at the same time keeping up a distant fire against the left and centre. On their outflanking the right, our two extreme regiments changed front, and by a constant discharge of musketry checked every attempt, so that the assailants were compelled to retreat. A series of various petty actions now took place by river as well as by land; but in the meantime preparations were being made for the attack of the enemy's works. The mortar-batteries and rockets began their work of destruction on the 1st of April, and on the following day the breaching batteries opened, when two Lascars, who had been left prisoners in the fort, came out to inform Sir Archibald Campbell that Bandoola had been killed the day before by a rocket, and that the garrison, in spite of the remonstrances of the other chiefs, had fled. This information was quite correct; for the enemy had retired, leaving behind them all their guns and a large depot of grain. In this service the British commander was ably seconded by the navy under Captains Alexander and Chads, who assisted in forcing the stockades, capturing the formidable war-boats, and conveying our troops to the best places of attack. After the dispersion of Bandoola's army, Prome was considered the best place to stop the invading troops, and the utmost energies of the local authorities were employed in fortifying that place and organizing a force for its defence. All the disposable force of the empire was, in fact, concentrated at this spot: a spot memorable for the many battles fought there with the people of Pegu. But all the Burmese preparations were wholly disconcerted by the rapid movement of our army: Sir Archibald Campbell entered Prome on the 25th of April without firing a shot. Before they withdrew, the enemy had set fire to a part of the town, and one quarter of it was reduced to ashes. In their flight, also, the Burmese troops burned and laid waste all the villages in their route, driving thousands of helpless people to the woods. This now became their mode of warfare; and it has been said that Russia in her memorable resistance to the French armies did not offer to the invading hosts such a scene of desolation as did the Burmese empire to the British troops. Neither man nor beast escaped the retiring columns; and heaps of ashes, with groups of howling dogs, alone indicated the spots where villages and towns had stood. While these movements occurred, a series of actions had put the British in possession of the kingdom of Arracan, and the Burmese were totally expelled from Cachar and Assam. Thus terminated the second campaign of this desolating war. The British army took up its winter-quarters at Prome, where cantonments were provided for the troops, and preparations made for future operations. Nor was the Burmese monarch idle; rejecting all overtures made by the British general, troops were levied in every part of the kingdom, and the tributary Shan tribes bordering on China were called on to furnish their contingent force. Before the end of September a disposable force of 70,000 men was ready to act against the British, who threatened to advance on the

capital. At the close of the year an armistice was agreed upon, and negociations were entered into for a definitive treaty of peace; but as there was no honesty on the side of the Burmese, and no lack of penetration on that of the British, all proposals failed.

REVIEW OF FOREIGN RELATIONS.

Among the events of this year that which seemed pregnant with the most important consequences to Europe, was the death of the Emperor Alexander of Russia. This appeared capable of putting not only the tranquillity of the empire in jeopardy, but of changing the whole course of its foreign policy. This event however, was not felt beyond the limits of Russia; the grand duke Nicolas succeeded to the throne, and professed a determination to pursue that course of policy which had been adopted by his predecessor. France was this year occupied in the coronation of its monarch, whom the people was soon again to repudiate. Sweden, Denmark, and Germany remained without much alteration of circumstances; but Spain was not only in the possession of foreign troops, but was distracted by the miseries of factions, revolts, and changes of administration. In Portugal, the king was induced, chiefly through British influence, to recognise the independence of Brazil, the sovereignty of which was ceded to his eldest son, Don Pedro. The interior state of Brazil, however, was much disturbed by the tyrannical, conduct of its new emperor, and war was also commenced between Brazil and Buenos Ayres. In Italy and Austria all were tranquil; but the relations between Turkey and Russia still continued to be in a very critical state, though no hostilities were commenced on either side. Greece was torn by internal dissensions, and assailed by barbarian foes, who reduced Navarino, and invested Missolonghi. In the United States, Mr. John Quincy Adams was chosen president; and in South America the various republics were proceeding to consolidate their power, though Chili was much disturbed, and Paraguay had fallen under the tyranny of D Francia. The independence of the united provinces of Rio de la Plata was formally recognised by Great Britain, and a treaty of commerce and friendship was concluded between the two powers. A treaty of amity and commerce was also concluded with the congress of Columbia, and with the new sovereign of Brazil.

CHAPTER XXXVI.

{GEORGE IV. 1826—1827}

Meeting of Parliament..... Measures proposed for relieving commercial Distress..... Bill to enable private Banks to have an unlimited Number of Partners, &c. Appointment of a Committee on Emigration..... Modification of the Corn- Laws..... Debates on Free trade..... Financial Statements..... Bill to prevent Bribery at Elections..... Parliamentary Reform..... Alteration of the criminal Code..... Case of Mr. Kenriek..... State of the Colonies..... Motion for amending the Representation of Edinburgh, &c. Resolution for the Regulation of private Committees..... Motion to disjoin the Presidency of the Board of Trade from the Treasurership of the Navy..... Motion to hold Parliament occasionally in Dublin and Edinburgh..... Restoration of forfeited Scotch Peerages..... Catholic Emancipation, &c. India Jury Bill, &e.....

Naturalization Act, &c. Prorogation and Dissolution of Parliament..... General Election..... The Burmese War..... Meeting of the New Parliament..... Motion for a select Committee on Joint Stock Companies, &c. King's Message respecting the Conduct of Spain, &e..... Resolutions against Bribery at Elections.

MEETING OF PARLIAMENT.

{A.D. 1826}

Parliament reassembled on the 2nd of February, when the speech was again delivered by commission. Its principal topic was the depression of manufactures and commerce which still existed. The commissioners remarked:—"We are commanded by his majesty to inform you that his majesty has seen with regret the embarrassment which has occurred in the pecuniary transactions of the country since the close of the last session of parliament. This embarrassment did not arise from any political events, either at home or abroad. It was not produced by any unexpected demand upon the public resources, nor by the apprehension of any interruption to the general tranquillity. Some of the causes to which this evil must be attributed lie without the reach of direct parliamentary interposition; nor can security against the recurrence of them be found, unless in the experience of the sufferings which they have occasioned. But to a certain portion of this evil, correctives, at least, if not actual remedies, may be applied; and his majesty relies upon your wisdom to devise such measures as may tend to protect both private and public interests against the like sudden and violent fluctuations, by placing on a more firm foundation the currency and circulating credit of the country." The commissioners further stated that they had his majesty's commands to lay before parliament copies of conventions, founded on the acts relative to trade and commerce passed last session, which had been concluded with France, and the Hanseatic towns of Lubeck, Bremen, and Hamburg. They concluded by stating that his majesty's attention had been directed to certain measures recommended in the last session of parliament for the improvement of Ireland, and that his majesty had the satisfaction of acquainting the peers and members assembled, that the industry of that part of the United Kingdom was in the course of a gradual and general advancement; an advancement mainly attributable to the tranquillity which now prevailed in that country. The addresses in both houses passed without any serious opposition, although much discussion took place on every topic on which the speech touched, and on some to which it made no allusion. In the upper house Lord King, after ascribing the pecuniary embarrassments to over-issues of paper money by the Bank of England, attacked the corn-laws, and urged the necessity of a complete alteration in them. He moved an amendment to the address, pledging the house to revise the corn-laws in this session; but this proposal was resisted as too precipitate, and the amendment was negatived without a division. The principal object of Lord King, however, and of other peers who spoke on the occasion, was to elicit from the minister some general description of the measures alluded to in the speech, as likely to be proposed for the purpose of preventing future pecuniary embarrassments. Lord Liverpool, in gratifying them, attributed the embarrassments to the mad spirit of speculation which had existed for the last two years; a spirit

doubly mischievous, because it had affected the issues of the country banks to such a degree that they had increased in a far higher proportion than those of the Bank of England. He showed that in the course of the last two years the issues of the country banks had increased from four to eight millions. The correctives government intended to apply were to prohibit the circulation, after a certain period, of notes under £2, whether issued by the Bank of England, or by any private banker; to increase the stability of private banks by enabling them to augment their capital; and to repeal that clause in the charter of the Bank of England which rendered it unlawful for any private banking establishment to consist of more than six partners. In the commons, on the occasion of the debate on the address, Mr. Brougham stated that he believed that the distress now existing proceeded from causes much more complicated than those to which the speech ascribed to it. He believed it to be universal; and he took occasion to combat the opinion of those who derived it from the late introduction of more liberal principles into a commercial policy. He remarked.—"If the embarrassment were confined to any one branch of our commerce, for instance, to the silk trade, then an argument might be raised, and, without any great violence to facts, the distress might be attributed to our new commercial policy. But when it is observed that not only silk, but wool, cotton, and linen are equally affected, it is in vain to deny that the nature of the facts rebut the assertion of any connexion between the present distress and the principles of free trade." The chancellor of the exchequer maintained that many of the difficulties arose beyond the control of government, although he allowed that some were within its reach, and that their influence might at least be modified. The principal of these, he said, were the great increase of the issues of the country banks, and the weak foundation on which many of these establishments stood in point of capital. Mr. Hume denied this hypothesis, and maintained that the true causes of the distress were to be found in the pressure of taxation, and the lavish expenditure of government. The whole empire, he said, presented one scene of extravagant misrule, from the gold lace and absurd paraphernalia of military decoration of the guards up to the mismanagement of the Burmese war: it was a farce, he added, to attribute the distress to the banking system. Other members defended the country banks from the imputations cast upon them; and Mr. Baring passed a high eulogy on the conduct of the directors of the Bank of England in this crisis. He remarked that it was impossible for any public body, for any set of men, to have acted with more honour, promptitude, or good sense, than the Bank evinced upon that emergency. Although it was not till the 10th that the propositions for proscribing the small notes and enlarging bank partnerships were formally brought forward, yet they were incidentally up to that period the subject of discussion. The views of different members on the subject, however, will be better seen in the debates which ensued when the measure was proposed.

MEASURES PROPOSED FOR RELIEVING COMMERCIAL DISTRESS.

On the 10th of February the whole house having resolved itself into a committee on the Bank charter bill, the chancellor of the exchequer brought forward the proposition for prohibiting the circulation of small notes. In doing so he said that though fluctuations were inseparable from trade, in defiance of any precautions

which ingenuity could invent, yet their effects were often aggravated by a state of currency, and a facility of speculation like those produced by the existing issues of paper. The small notes especially carried the consequences of these changes among those on whom they pressed most severely. These notes were chiefly in the hands of the labouring classes, and a few of them constituted a poor man’s fortune; consequently when a panic took place he hastened to save his little store by withdrawing it from the banker. As the alarm spread, the more wealthy imitated this example, and a sudden run brought with it the downfall of the bank. From this he argued that if these notes were replaced by a metallic currency, the security of the banks would be ensured, and the misfortunes which their failures would otherwise produce limited. This measure, he said, was not a novelty, but had been the regular policy of the country; for an act had been passed in 1775 prohibiting the tissue of bank-notes, and in 1777 another act had prohibited their issue under the sum of five pounds. The chancellor of the exchequer argued that any apprehensions of injury to commerce from the proposed measure must be founded upon this—that the prohibition of small notes would diminish the circulation by the amount of these notes; that their absence could not be supplied by gold; and, that, therefore, manufactures and trade would, to this extent, be left without their necessary and legitimate purposes. He went on to show that these apprehensions were visionary; that the withdrawal of the small notes, while it gave security to the bank which issued, and to the party who held them, would not operate injuriously on the currency, or on the trade and manufactures of the country. There were two ways, he said, of effecting this withdrawal: one by enacting that no small notes should be stamped after a certain period; the other by allowing those already in circulation to run a certain course till a fixed period, and prohibiting any new ones to be created. In three years the first of these modes might lead to unsatisfactory results; for if the power of stamping were to remain unlimited during that period, so considerable a number might be stamped as to subject the country, in its ultimate endeavours to get rid of them, to all its present evils. It was intended therefore to propose, that no new notes should be stamped, and that those in circulation should cease to circulate at the end of three years. In conclusion, the chancellor of the exchequer moved the following resolution:—“That it is the opinion of this committee, that all promissory notes payable to the bearer on demand, issued by licence, and under the value of five pounds, and stamped previous to the 5th of February, 1826, be allowed to circulate until February 5th, 1829, and no longer.” Mr. Baring took the lead in opposition to the measure, objecting to it as being inadequate to meet the evils complained of, and ill-suited to the present state of the country. He could not agree, he said, in attributing the existing embarrassments either to speculation or over-trading: much of it had been owing to the conduct previously pursued by the Bank. The resolution was likewise opposed by Sir John Wrottesly, Alderman Thompson, Alderman Heygate, and Mr. Wilson, who were adverse to it on various grounds: that it would be wholly inoperative to give any effectual relief; that it would be positively mischievous; and that the present state of the country required the postponement of such a measure. The scheme of increasing the number of partners in a bank by way of security was treated by opposition as visionary, since it was not on numbers, but on prudence, and their mode of conducting business, that their credit depended. Sir J. Wrottesly

maintained that the country bankers, instead of exciting the mad spirit of speculation, were the only persons who had not speculated; and, in reality, were obliged, from a regard to their own safety, to discourage such a practice on the part of their customers. He asked, where did this spirit of speculation commence? It first showed itself in Manchester and Liverpool, where no local notes circulated. The cotton speculations, in these two places were the first heard of, and yet in neither of them was a single note circulated. The next point at which this spirit was manifested, and at which it had led to its un-happiest results, was not in the country where the notes in question circulated, but on the stock-exchange of London. It was further urged by the opponents of the measure that the very essence of the present pecuniary embarrassments consisted in the curtailed state of the currency; and that the direct tendency of the proposed measure was to increase them by limiting it still more. Taking the currency at twenty millions, it was argued, and the deduction to be made on account, of the recent failures at three millions and a half, the effect of the scheme in contemplation would be to cause a still further deficiency, and reduce it to about ten millions, with which it was impossible to carry on the trade of the country. It was further argued that although a respite of three years was ostensibly granted to the small notes, yet the adoption of the resolution would be tantamount to driving them out of circulation at once, inasmuch as every banker who entertained a due regard for his credit would be compelled to take measures for withdrawing his notes as quickly as possible. They had been issued, it was said, in reliance on the stability of the system, and on the faith of acts of parliament, which ought to be as inviolate as the charter of the Bank; and if these sources were now called in, the course of industry in various channels must be stopped. How, it was asked, was the gap made in the circulation of the country to be filled up? At the termination of the war there existed a strong desire to return to a metallic currency; and during the first years of peace there was a great facility of obtaining specie; but it was not so at the present time. No country could obtain it without giving its value in commodities. At the end of the war, our manufactures, still in their prime, commanded every market, and enabled us to obtain our gold: but at present the manufactures of the continent and America were springing up all around us, and every year we were more and more excluded from foreign markets. The inability to dispose of our commodities was, in fact, it was stated, one of the most aggravated features of the existing distress. In such circumstances, therefore, it was urged, that it would be most unwise to adopt a measure, which besides injuring an individual class, would tend to increase public calamity. The resolution was supported by Messrs. Huskisson, Peel, and Canning, who denied that to ascribe much of the distress which had prevailed to the issues of the country banks, was to attack the character of the country bankers, or that anything had occurred to justify the extreme sensibility which had been manifested on their behalf. With regard to the measure itself, they stated it was not intended so much a remedy for existing evils, as a preventative against their future recurrence, by bringing the currency, to a certain extent, to be a metallic one, and especially that portion of it which alone supplied the wants of the lower classes. All experience, it was urged, proved that this restoration of a metallic currency could not be effected so long as small notes were allowed to be circulated; a permanent state of cash-payments could never exist by their side. It was argued, that if crown notes and

half-crown notes were issued, crowns and half-crowns would disappear; and that if the one pound notes continued to circulate, sovereigns would become rarities. There never was a gold circulation in the country except in Lancashire, where no country notes existed; and when, in the year 1822 and 1823, the Bank of England was anxious to supply the country with gold, the sovereigns sent down by one mail-coach returned with the next. Great sacrifices had been made to effect the introduction of even the partial metallic currency now in existence; and these sacrifices had been made in vain: the currency of the country could never be placed, on a solid basis unless country bankers were prohibited from issuing notes, excepting such as were of a considerably higher denomination than the current coin, so as to save it from the paper currency. The principle of the measure therefore could be resisted only by those who held that the pecuniary relations of the country were best secured by proscribing a metallic currency. But its necessary effect would be to give solidity to the banks themselves, by compelling them to maintain a portion of their circulation in gold, instead of worthless paper; and thus, even where a failure took place, extensive misery, which such an occurrence produced among the lower classes, would no longer return. The security of the poorer classes in such cases lay in the absence of small paper. Let the Bank of England retain in its hands as much gold as might be necessary for the ordinary operations of commerce, for such demands as the exigencies of government might require, or to adjust an unfavourable state of foreign exchanges; let every country bank be governed by the same rules, and compelled to keep an amount of gold proportioned to its operations; and a sensitiveness to occurrences likely to cause a pressure on the country banks would be created, which would tend to the security of the whole kingdom; the issues would be kept within bounds, and gold would be kept in the kingdom. The expulsion of small notes, it was stated, could not operate injuriously to the country bankers. The number of country banks was about eight hundred, and the circulation of each of these would average about £8,000; could it be supposed that a stability which had stood the late shock would be shaken or destroyed by a gradual curtailment of paper, to the extent annually of two or three thousand pounds for three successive years? When the difficulty was thus reduced; when the means were so limited and humble by which a mighty principle was to be established; when, by an operation so minute, and a process almost insensible, the prodigious advantage could be obtained of placing the pecuniary concerns of the country on the broad and imperishable basis of a metallic currency; it would be as imprudent to let slip the opportunity as it would be unreasonable to deny the principle. The intended change was neither to affect the paper circulation at large, nor to trench upon the great mass of paper currency, which was confined to notes of the higher denominations: these might be piled mountains high, provided the base be refreshed by streams of the metallic currency. To those members who, without objecting to the principle of the measure, wished it to be postponed, it was answered, that instead of coming too soon it had come too late. Mr. Brougham, who also supported the resolution, strongly urged the inexpediency of delay when the work was already half done, in consequence of the general want of confidence having of itself greatly limited the issues of the country banks. Mr. Baring moved as an amendment, “That it is the opinion of this house that, in the present disturbed state of public and private credit, it is not expedient to enter

into a consideration of the banking system of the country." This was negatived by an overwhelming majority; as was also an amendment moved by Mr. Gurney, to exclude the Bank of England from the operation of the resolution. A bill for carrying this resolution was immediately brought in by the chancellor of the exchequer; and, though much resistance was offered to some of its details, both in the commons and in the lords, the bill passed into a law. The Earl of Carnarvon, who moved, on the second reading in the lords, that the bill should be read that day six months, stated a new reason why an actual gold circulation ought to be kept as far from our doors as possible. A return of it, he said, would bring back the highwaymen of Bagshot and Hounslow heath.

There was a greater temptation to commit robbery in the case of gold than in the case of paper, because there were greater facilities for escaping detection. It was easy to understand that there could not be so strong an inducement to crime when the currency consisted in notes, numbered, and signed with a known name, as when it consisted of gold coin, which it was impossible to identify. Lord Liverpool, however, had no such fears of highwaymen as the noble earl. He once, when he was a boy, he said, lost all the money he had in his pockets by a highwayman; and it was natural that he should be as much alive to this danger as the noble earl. But still, with all his early associations, he could not help thinking that if danger must revive with a return to a metallic currency, it would have been felt during the last four or five years; for during all that time their lordships had been travelling about, not with notes, but with sovereigns in their pockets. The almost total extinction of highway robberies was to be attributed to the only thing that could check or extinguish them—the establishment of a powerful and effective police.

While this measure for annihilating the issue of small notes in England was making its way through parliament, the fitness of its application to Ireland and Scotland was discussed. In Scotland there was a great opposition even to the very idea of it. In every city and county public meetings were held to deprecate the destruction of the one pound and guinea notes, and men of all ranks and parties joined in one unanimous outcry against the threatened introduction of gold. During the discussion on the bill regarding England, indeed, the tables of both houses were loaded with petitions from Scotland, setting forth the benefits which that country so long had enjoyed from its banking system, and the evils which would arise from every attempt to give it a new and an untried form. Parliament rightly paid respect to the anxiety and unanimity with which these opinions were expressed, especially as they came from parties who were acquainted with the nature and practical effects of the system. Moreover, the difference between the two systems of the two countries, and the difference between the effects of the two systems, formed good reasons why parliament should pause before extending the plan to Scotland. Accordingly select committees were appointed by both houses to inquire into the state of the circulation of small notes in Scotland and Ireland, and to report upon the expediency of altering the laws regarding it. Many Scottish merchants, manufacturers, and bankers were examined by these committees; and the reports presented to both houses towards the end of the session justified the resistance made. The stability of the banking system in Scotland, the committee stated, did not justify any alteration; and they were

apprehensive that a prohibition of small notes would injure one branch of the Scottish system which it was essential to preserve, namely, the giving of cash credits. Under these circumstances they recommended that the paper money of Scotland should not be meddled with. Sir M. W. Ridley, however, who, with others, was apprehensive that a metallic currency in England could not exist with a small paper circulation in Scotland, moved a resolution that the house would, in the course of next session, institute an inquiry as to how far the interests of England and Scotland were likely to be affected by the existence of different systems of currency in the two countries; and to ascertain whether any, or what means ought to be adopted to assimilate the currency in both. But this motion was negatived without a division; and thus Scotland was left for the present in possession of that system of currency under which her commerce, manufactures, and agriculture had so long flourished.

BILL TO ENABLE PRIVATE BANKS TO HAVE AN UNLIMITED NUMBER OF PARTNERS, ETC.

The bill extinguishing small notes in England was followed by two other bills affecting the currency. The first of these bills was to permit the number of partners in each country bank to be unlimited; and the second, as a compensation to the Bank for conceding to this measure, extended its exclusive privileges to a circle round the metropolis, with a radius of sixty-five miles, and authorised the directors to establish branch banks in different parts of the country. While these measures were before parliament, in which they received general support, distress widely prevailed throughout the country. An idea was entertained that ministers would relieve this by the issue of exchequer-bills; but they had the prudence to abstain from any short-sighted and injurious palliatives. They expressed themselves willing, indeed, to keep the Bank harmless to the extent of two millions, if it should think proper to go into the market and purchase exchequer-bills; but they would not involve themselves in a system of artificial relief for a disease which they thought would cure itself better without their interference. Petitions were presented, praying the house to take commercial distress into its consideration; and government was charged by several members with being insensible to the misery which prevailed, and the danger which threatened; but nothing could move them to implicate themselves in transactions which might have involved them in pecuniary embarrassments. But relief was afforded in some degree by the Bank itself. Although the directors had refused to go into the market for the purchase of exchequer-bills, they came to a resolution of lending three millions on direct or collateral security. This measure was immediately carried into execution; and commissioners were appointed by the Bank in the principal provincial towns, in order to distribute the money. The whole of this sum, however, was not applied for; the very knowledge that such loans were attainable having a considerable effect in restoring confidence among the commercial classes. In some of the provincial towns the offices of the Bank commissioners, who were almost uniformly mercantile persons connected with the district where they were stationed, were almost unfrequented. The applications for advances, indeed, were made with great moderation; none were required beyond what the need of the applicant demanded. The adoption of this measure rendered it necessary for the security of the Bank to introduce a bill regarding the law of principal and agent. The

Bank, indeed, in consenting to advance three millions, made it a condition of their compliance, that the protection of the statute should be extended to them immediately. Accordingly a bill was brought in and passed to enable persons in the possession of goods, and of the documents conferring the property of them, although such persons should be merely factors or agents, to pledge them with the Bank as effectually as if such persons were the owners. Such were the measures recommended by ministers, and adopted by parliament, to palliate the existing distress, and to provide security against some of the causes which had produced it. And they tended greatly to those ends. Commerce, feeling itself unshackled, soon repaired its losses and extended its operations; it found its way not only through European nations, where barriers had hitherto been raised against it, but penetrated the most barbarous regions of the earth.

APPOINTMENT OF A COMMITTEE ON EMIGRATION.

During the last four years government had lent its aid to those who desired to emigrate to Canada. In the present year the general misery which prevailed increased the claims of emigration, as a means of relief, tenfold. In Scotland, even the landholders of a county applied to ministers to afford encouragement to intended emigrants; and among the artisans societies were formed for the purpose of projecting plans of emigration, and obtaining assistance both from the crown and from other sources. The subject was brought before parliament on the 14th of March, when Mr. Wilmot Horton moved for the appointment of a select committee to inquire into the expediency of encouraging emigration. Government did not deny the importance of the question, or shut the door against its consideration: no opposition was made to the appointment of the committee; but nothing further occurred on this subject during the present session.

MODIFICATION OF THE CORN-LAWS.

On the first day of this session Lord King had moved an address, pledging the upper house to take the corn-laws into immediate consideration; and the tables of both houses were covered, almost nightly, with petitions, partly from the agriculturists, praying that the law might be allowed to remain as it was; but chiefly from artisans and manufacturers, praying for its instant repeal. Ministers did not deem it prudent to introduce the subject during this session, although they acknowledged its importance. The advocates of a repeal, however, embraced many opportunities in charging government with keeping back the settlement of this great question; and were at length determined to bring it again before parliament. On the 18th of April Mr. Whitmore moved, “That the house do now resolve itself into a committee, to consider the propriety of a revision of the corn-laws.” He allowed that the time at which he submitted his motion was not unattended with inconvenience and the possibility of loss; but not only the expediency, but the absolute necessity of an immediate alteration appeared to him to be imperative. It was mischievous, he said, to delay the decision of the question a single moment after government had applied the principles of free trade to other branches of industry; inasmuch as these principles could never be applied with due effect, nor have practical justice done them so long as the present corn-laws formed part of our commercial policy. Sir

Francis Burdett supported the motion, not from any expectation that it would produce the anticipated effects expressed by the mover, but because the discussion would show, that the landowners, in supporting their own class and station, were advocating that which was essential to the general interests of the country, Mr. Huskisson, in reply, without entering into the merits of the question, deprecated its discussion at the present time. Ministers had announced that the subject would not be brought forward this session, and nothing had happened since to warrant this ill-timed motion. He had every reason to suppose that the subject would be brought forward in the next session, in which case he was most anxious to give it a serious and dispassionate consideration. The motion was lost by a large majority; but though the arrangement of the corn-laws still remained unsettled, it was found necessary, before the end of the session, to introduce two bills for modifying their strict operation. At the present time there was but little diminution of distress; and its continued pressure led to a series of disgraceful riots in Lancashire, where the vengeance of the mob was furiously directed against machinery, especially power-looms, under a notion that these were the great cause of the want of employment. The impression arose from ignorance; but that ignorance had been stimulated by a state of suffering which could not be overlooked. At this time, in the immediate neighbourhood of the scene of distress, in Hull, Liverpool, and other ports, there were between two and three thousand quarters of wheat in bond; and it was supposed that the admission of this into the market would diminish the extent of suffering, while it would have no material effect on the agricultural interests. Mr. Canning brought forward a proposition to allow bonded corn to come into the market, on payment of a duty of ten shillings per quarter, which was passed almost unanimously. Another measure of modification proposed by government, however, met with stern opposition. As it was impossible to foretell the result of the ensuing harvest, it was proposed, as a measure of precaution, to vest in government during the recess a power of permitting foreign grain to be imported on payment of a fixed duty. This was resisted as irregular and unconstitutional, both in the commons and in the upper house; but it was finally carried. Before it passed, however, the opposition was gratified by the limitation of the quantity of corn admissible to 500,000 quarters and the period to two months from the opening of the ports.

DEBATES ON FREE TRADE.

The legislature had begun to act on the principles of free trade in 1824, by taking off those restrictions which prohibited the importation of foreign silks. To the bill which permitted their admission with an _ad valorem_ duty of thirty per cent., and which was now to come into operation, a large portion of both masters and workmen referred the depression of the trade, rather than to causes which did not come so readily within general comprehension. Many manufacturers limited their orders until the effect of this untried system should be somewhat known, while others joined in the outcry against it. The general impression among them was, that the “untried state of being” should not be tried; and many petitions were presented from the persons and districts interested in the silk manufacture, praying for a repeal, or at least a modification of the provision of 1824, for a total prohibition of foreign fabrics, or a higher duty upon their importation. On the 23rd of February, Mr. Ellice, member for

Coventry, moved that the petitions which had been presented on this subject should be referred to a select committee. This motion led to a debate, which, by adjournment, continued two evenings. In this debate Mr. Huskisson was compelled to vindicate the leading part he had taken in the measure under consideration, in which he was ably supported by Mr. Canning. This motion was lost; but soon afterwards Mr. Huskisson was obliged to vindicate the late policy pursued respecting the shipping interest and navigation laws. This arose from the complaints of the shipowners and others connected with the shipping interests, who believed themselves to be affected by the late navigation laws. They complained especially of the system which had been adopted of removing discriminating duties, and allowing articles of merchandise to be imported in foreign vessels, under the same burthens as if they had been imported in British bottoms, on condition of reciprocity in regard to ourselves. They contended in numerous petitions to parliament that such a reciprocal removal of discriminating duties was ruinous to British shipping, because the British and foreign owner could never be put upon an equality, unless the latter were burthened with a higher duty. The petitioners and their adherents in parliament, repeated these complaints at every opportunity; but they did not venture to bring the question formally under the notice of the legislature. Mr. Huskisson, however, thought it expedient to show that their representations were groundless; and on the 12th of May, in moving for “returns of ships built in the British dominions, between 1824 and 1825, both inclusive, distinguishing the number in each year, and the amount of their tonnage,” he entered into an elaborate defence of the late policy. Nothing could be clearer than his exposition of the principles on which the former system was founded, of the changes which had since occurred, and of the consequent necessity of our conformity to those altered circumstances. Having developed the general principles on which the navigation laws were originally founded, the different objects to which these principles had been applied, the modifications which from time to time had been made upon these objects, and the causes, political and commercial, which had rendered such changes necessary he stated, that all the allegations of mischief having ensued, and of an undue preference having been given to foreign over British shipping, in consequence of the late policy, were contradicted by the actual results. The complaint was, that in consequence of this policy a decrease had taken place in the employment of British shipping. Now in December, 1824, the number of British ships which entered our harbour was 19,104, and the tonnage 2,364,000, and the number of foreign ships, 5,280, the tonnage being 66,940. In 1825 the number of British ships entered was 21,980, and the tonnage, 2,768,844, and the number of foreign ships, in the same period, 5,661, the tonnage being 68,192. It was to be recollected, he said, that during this year there was an unusual demand for shipping, both British and foreign, in consequence of the unprecedented extent of speculation in almost every branch of commerce. On looking to these returns, therefore, it was clear that the amount of British shipping had increased in a far greater proportion than that of all foreign nations put together. Such being the case, we were certainly not in such a situation as was calculated to excite alarm with respect to the comparative growth of British and foreign shipping. Even if the latter had increased last year, it formed no ground for alarm, because it might be fairly attributed to the unusual demand for shipping produced by the prevailing spirit of speculation. The

alarm felt upon this subject was in part grounded upon the state of our commerce in the Baltic, and the number of Prussian ships which entered our ports, as compared with British. Now in 1824, the British ships which entered from the Baltic was 440, and in 1825, 942. The number of Prussian ships which entered in 1824 was 682, and in 1825, 827. The number of Prussian ships, therefore, increased only by a fourth, while that of the British ships was more than doubled. Such was the comparative state of the shipping of both countries in the last year; and as Prussia seemed to be the main object of jealousy when there existed so little ground for it with respect to that nation, all apprehensions on this point might be dismissed. Mr. Huskisson’s motion was agreed to; Sir W. Ridley expressing a hope that the subject would receive a full investigation in the next parliament. Later in the session, Mr. Huskisson brought in a bill to give effect to some commercial treaties which had been concluded between this country and Colombia, and the united provinces of the Rio de la Plata. It had been stipulated, as these republics were not in possession of any commercial marine of their own, that vessels, wheresoever built, being the property of any of the citizens of either republic, should be considered as national vessels of that republic: the master, and three fourths of the mariners of the vessel being always citizens of such republic. The design of Mr. Huskisson’s bill was to give effect to these stipulations, and it was passed into a law.

FINANCIAL STATEMENTS.

{GEORGE IV. 1826—1827}

The chancellor of the exchequer opened the budget on the 13th of March. In doing so he took a large review of the whole financial system, particularly of reductions which during several years had been made in taxation, and of the effect of these reductions in the productiveness of the revenue. His statements for the year partook of the favourable character which they had sustained for the last three years, although he admitted that he must make allowance for some loss in various branches of revenue, consequent on the present state of public embarrassment. After all the deductions, however, he reckoned the probable produce of the year before him at not less than £57,000,000, while he calculated on the whole expenditure at £56,328,421. This statement, holding out much happier prospects than, from the distress which prevailed in the country, could have been anticipated, was received by the house with general satisfaction. Mr. Maberly and Mr. Hume, however, maintained not only that there had been no reduction of the public debt, but that there had been an actual increase both in the capital, and in the annual charge, and that taxation had been raised instead of being diminished. They alleged that the capital of the debt had been increased by the enormous sum of £61,646,000 between 1819 and 1826, and that the annual charge had grown in proportion. This assertion, however, rested on an obvious fallacy, arising out of a total misapprehension of the nature of what is called the dead-weight scheme, and of the arrangements which, in pursuance of it, had been made with the Bank for discharging part of the half-pay and pension list. Mr. Hume’s assertion, that taxation had increased during the last three years was still more erroneous; for the chancellor of the exchequer in his statements proved to

demonstration, by actual figures, that from 1816 to 1825 taxes had been reduced to the large amount of £27,522,000, and that no new taxes had been imposed. Subsequently the state of the public debt underwent much discussion, the great questions being not whether it ought or might be reduced, but what was its actual amount, and whether, in point of fact, any diminution of it had been effected during late years. The amount of the army, navy, and civil estimates was also censured by Messrs. Maberly and Hume with other members, but the necessary supplies of the year were readily voted.

BILL TO PREVENT BRIBERY AT ELECTIONS.

On the 2nd of March Lord John Russell moved for leave to bring in a bill for the better prevention of bribery at elections. Leave was given; and on the second reading of it Mr. Wynn stated that he had many objections to it, which he feared it would not be practicable to remove so as to render it fit for the adoption of the house. As he understood it, he said, the principle of the bill was, that upon complaint made to the house by petition, a select committee should be appointed to try the issue, and that their decision should be final. There was an obvious objection to this; namely, that the decision of no committee could be binding upon that house. The inquisitorial powers of the house might be delegated, but not the judicial. A body might be appointed to bring in a true verdict as to fact, but the question of corruption was a question of influence. All that a committee could do was to report to the house, and the house could proceed on that report or not as it pleased. Mr. Wynn also objected to the clause which gave power to present petitions of complaint within six years from the period of election; and that there was no penalty or punishment assigned to an unfounded charge. The bill was supported by Messrs. Hobhouse, Smith, and Fyshe Palmer, but it did not proceed further; for when the report on the bill was to be taken into consideration, Lord John Russell stated that it was not his intention to press it during the session, but that he would probably embody its provisions in the shape of resolutions. On the last day of the session he moved, therefore, that “whenever a petition shall be presented to this house after the expiration of the time allowed for presenting petitions against the validity of the return of any member of this house, by any person or persons, affirming that at any time within eighteen calendar months previous to presenting the said petition, general bribery or corruption has been practised for the purpose of procuring the election or return of any member or members to serve in parliament for any borough, cinque-port, or place, and it shall appear to the house that such petition contains allegations sufficiently specific to require further investigation, a day and hour shall be appointed by the said house for taking the said petition into consideration, so that the space of twenty days shall intervene between the day on which the said petition shall have been presented, and the day appointed by the said house for taking the same into consideration, &c.”—“that at the hour appointed by the said house for taking such petition into consideration, the said house shall proceed to appoint a select committee to inquire into the truth of the matters contained in the said petition, and report the result of their inquiry to the said house, and such select committee shall consist of thirteen members chosen by lot, &c.” Mr. Wynn said, that he did not intend to object to the principles of these resolutions, but he thought they had better be reserved till the

next parliament, as they would have to be confirmed by it. Mr. Peel thought so likewise, as the last day of the session was not a fitting time to give them that consideration which their importance demanded. Lord John Russell, however, pressed his motion to a division, as he could not be certain of having a seat in the next parliament, and the numbers on each side being equal, the speaker gave his casting vote in favour of the resolutions.

PARLIAMENTARY REFORM.

On the 27th of April Lord John Russell again brought forward the question of parliamentary reform. The resolution he proposed was “that the present state of the representation of this country in parliament requires the most serious consideration of this house.” In his speech on this occasion he laid down two premises: first, “that it was a matter of paramount importance to adapt every government to the wants and wishes, the prejudices and existing circumstances of the country for which it was intended; and that the people of this country had arrived at a degree of knowledge, intelligence, and wealth, which made them a people more worthy than had ever before existed of being entrusted with the privilege of electing their representatives, and more capable of exercising it with advantage.” From these premises he concluded that the house of commons as it existed at present, was badly constituted; for instead of being chosen by the more numerous, the more intelligent, and the mora wealthy class, it was elected by the minority, the less intelligent, and the less wealthy. As therefore the elective franchise, instead of remaining in the hands of the many, had become the property of a few, and as such a discrepancy between the condition of the people, and the constitution of the government had unhappily come into existence, calamities would one day or other ensue, unless the state of the representation were amended, from which neither the constitution nor the country would ever recover. After noticing the objections commonly urged against the necessity of reform, the noble mover continued, that, of two modes of reform which it was customary to propose, the one a total reconstruction, and the other a partial renovation of the house of commons, the latter appeared to him of the soundest principle, and the best suited to the condition of the country. The principal feature of his plan, he explained, would be, to restrict a hundred of the smaller boroughs to one member instead of allowing them two, and to give the number of representatives thus subtracted from them to towns of importance unrepresented. These details, however, he said, would be matter of future deliberation. The object he had in view was, in the words of Mr. Fox, “not to pull down, but to work upon our constitution; to examine it with care and reverence; to repair it where decayed; to amend it where defective; to prop it where it wanted support; and to adapt it to the purposes of the present time, as our ancestors had done from generation to generation, and always transmitted it not only unimpaired, but improved, to posterity.” The measure was supported by Mr. Hobhouse, and opposed by Messrs. Dennison and Lamb; but the debate did not present much novelty, and it terminated in the rejection of the motion by a majority of two hundred and forty-seven to one hundred and twenty-three.

ALTERATION OF THE CRIMINAL CODE.

At this period Mr. Peel applied the powers of his clear and dispassionate mind to the simplification and improvement of our criminal code. On the 9th of March he introduced a bill to consolidate the various acts which related to offences against property. He explained the nature of these acts at great length; but the bill was not carried through the commons during this session, Mr. Peel stating, that from the multiplicity of its details, it was necessary to proceed in it with the most cautious deliberation. Another bill, which was introduced by him, and which passed into a law, had for its object the removal of inconveniences belonging to the administration of the criminal law generally, and in particular the amendment of the existing regulations relative to admitting bail in cases of felony. One clause, which Mr. Lamb endeavoured to introduce into the bill, was contested with great vigour on both sides of the house. This was a proposal, which had already frequently been rejected, for allowing counsel to prisoners. This clause was supported by Messrs. Williams, Twiss, Scarlett, Brougham, and Denman; and opposed by the attorney and solicitor-generals, and by Messrs. Peel and Canning. The attorney-general allowed that in regard to its merits the opinion of the bar was divided; but he expressed his conviction that it would be injurious to the prisoner as well as to justice. As criminal proceedings were now conducted, the prosecutor’s case was opened by a simple statement of facts; and the judge always took care that his counsel should not go further, and the evidence was heard dispassionately. After this the prisoner’s case was gone through in the same way, except that there was no previous statement of facts, because the general nature of the case was already understood. There was, finally, the charge of the judge, carefully sifting the evidence, and calmly applying the law. But the case, he argued, would be different if counsel were heard on both sides. There would then be all the zeal, the animation, and the struggle for victory which were usually seen in civil cases. Besides, he continued, the counsel for the prosecution would always have the benefit of a reply whenever the accused called a witness, which might more than counterbalance any favourable effect of evidence. The functions of the judge, also, would assume a character disadvantageous to the prisoner; for if the address of the counsel of the prisoner threatened to be efficient, the judge in many cases would have to interfere: In doing this, it was urged, he might unconsciously pass the exact boundary that ought to circumscribe his remarks; the impression then would probably go forth that the verdict of the jury had been elicited by those remarks; and the judge, instead of being, as he was now, counsel for the prisoner, would be almost compelled to become an advocate against him. On the other side Mr. H. Twiss set forth in a strong light the absurdity of permitting counsel to start and multiply the most frivolous and visionary objections to the form and phraseology of an indictment, with the merits and evidences of their client’s case. He also set forth the hardships under which a prisoner lay, who, wishing to address the jury of the facts of a case, must do it with his own lips, under all the disadvantages of natural disability, physical impediments, or accidents of his situation, while the very incompetency to do himself justice would be aggravated by a knowledge of the serious consequences attendant on his failure. As to the fiction of the judge being counsel for the prisoner, he said, it would in most cases be much more true to say, that he was counsel against the prisoner, and for the prosecutor. Whence, he asked, came the only instructions which the judge received in any of these cases? From the

depositions of the witnesses for the prosecution. Sir Robert Atkyns, in his notes upon Lord Russell's trial, had truly said, "I well know by experience what sort of counsel judges usually be for the prisoner." Mr. Peel admitted that the arguments which might be raised on both sides of this question were very equally poised; that the legal opinions upon it were nearly equiponderant; and that if he were convinced of the alteration being fitting itself, he would not oppose to it merely the antiquity of the law which it was intended to change. His own experience, however, and the knowledge acquired from his official situation, led him to think that justice was most satisfactorily administered under the present system: he felt unwilling to risk any change. The clause was lost on a division by one hundred and five against thirty-six.

CASE OF MR. KENRICK.

In the early part of this session the house considered a charge brought by Mr. Denman against Mr. Kenrick, a magistrate of the county of Surrey, and one of the Welsh judges. Evidence on the charge was entered into; and Mr. Denman moved, that as Mr. Kenrick had shown himself an unfit person to exercise the judicial functions, an address be presented to his majesty, praying him to remove that gentleman from the office of judge of the great session of Wales. The motion, however, was negatived without a division; and this fact became a powerful argument in favour of parliamentary reform.

STATE OF THE COLONIES.

During this session cases of great cruelty and injustice, exercised by owners, magistrates, and judicial courts, against the slaves in our colonies, were brought before the parliament, and eloquently exposed. At the close of 1823, and the early part of 1824, a plan of an insurrection among the slaves on certain plantations in Jamaica had been discovered; and eight negroes had been executed as implicated in the conspiracy. The papers connected with these trials had been laid on the table of the house in 1825; and Mr. Denman now brought the legality and justice of these proceedings under discussion, by moving a resolution to the effect, that the house having taken into consideration the trials which took place at Jamaica for rebellion, conspiracy, and other offences, in the years 1823 and 1824, deem it their duty to express their sorrow and regret at the violation of law which took place upon the said trials; that they lament the manner in which the sentence of death was passed and executed; and recommend some alteration in the mode of administering the code of criminal justice affecting the slaves in the said colony. This motion was prefaced by a speech of great eloquence, analyzing the evidence upon which the accused had been convicted, demonstrating its contradictions, its insufficiency, its absurdity, and arriving at the conclusion that such atrocities, perpetrated under the mask of justice, and the law of evidence which permitted them, required the abolition of the system which placed a negro for trial before interested masters for his judges and jury; and in giving him an appeal to the council, merely gave him an appeal to another body of masters equally prejudiced. Having detailed the trials at length, Mr. Denman said he proposed the above resolutions, that the commons of England might have an opportunity of raising their voice against such acts of crying injustice and barbarity. He was ably seconded by Mr. Brougham, who, in the course of his speech, declared

that if the circumstances of undefended justice passed unreproved, it would go out to the West Indies that the same error, injustice, or cruelty might be committed again and again with impunity, so long as the present system continued; and if the house negatived the motion, it would set the seal of its sanction on a great and crying injustice, and do more than it would be able speedily to undo towards perpetuating the existing system in our colonies. On the other hand, it was maintained by Mr. Wilmot Horton that the courts had only applied the law which they were bound to apply; and that they had applied it according to the forms required by that law, and in circumstances which fairly called for the interference of the legal authorities. He moved an amendment, that the house sees in the proceedings brought under their consideration a further proof of the evils attendant upon slavery, and derives from them an increased conviction of the propriety of resorting to the measures recommended by government in the order of council; but does not deem it necessary, however desirable a change of the law may be, to impeach the sentences passed according to law by a competent trial, and convicted by a jury sworn to give a verdict according to the evidence. This amendment was supported by the attorney-general and solicitor-general, both of whom, however, frankly admitted the vices of the system of law under which the proceedings in question had taken place. It was impossible, said the attorney-general, to look at the case, arising as it did out of the vice of the system, without wishing for a change. If the white man upon his trial had an opportunity afforded him of knowing the charge, and thereby preparing his defence, why should not the black slave have the same advantage? An act of the legislature had lately passed to compel the charge to be delivered in writing. This act was brought into the colonial legislature of Jamaica; but it was accompanied by a proviso that no objection should ever be made on a point of form. Men were prone to confound substance and form to be permitted this latitude. An instance of this was supplied in the present case. The prisoners were accused of being guilty of a rebellious conspiracy, and other charges; thus the prosecutor could adduce whatever evidence he chose under a charge so very broad. Here was a conspiracy charged; but with whom? No individuals were mentioned. Any overt act specified? Time? No time certified. Place? No circumstance or place. When the Slave Evidence Bill was introduced into the colonial assembly of Jamaica, it was rejected on the ground that the slave was too low in the scale of moral beings; that he had no character, no distinct notion of morality, no notion of religion, or of the distinction between truth and falsehood. But when the slave was to be tried, other slaves were admitted as witnesses; and that, too, on their bare word, and an exhortation from the judge not to speak falsely. It was a known rule in this country—and the common law of England was in force in the West Indies—that hearsay evidence should not be received; yet the whole course of these proceedings showed manifold departures from this important rule: while it was an acknowledged law in regard to the whites, it had no application in regard to the blacks. But while the law was acknowledged to be bad, it was argued, that it was another thing to pass a vote of censure for the observance of it, however defective it might be. The house ought, it was said, to separate the defects-of the law from the alleged delinquency of the parties, and reject a motion which went, not to denounce the system of slavery or to censure the law, but to condemn individuals who had no power to alter the one, or to abolish the other. On a division the

amendment was carried by one hundred and three against sixty-three. During this session, however, delay and remedial measures were suggested by Lord Liverpool in the upper house, and by Mr. Canning in the commons, for the extinction of slavery. Mr. Canning declared that if immediate and hasty steps were not taken, our West Indian possessions would be abandoned to a state of savage desolation, of which wild speculators had not the slightest notion. At the same time he was obliged to confess that in most of our colonies the exhortations sent by government, for the amelioration of the condition of their slaves, had been treated with intolerable neglect and contempt. In the lords the resolutions were objected to, on the ground that they were too feeble for the nature of the subject; that though adopted they would produce no practical effect; and that the three years which had elapsed since they were voted by the house of commons—for they had been adopted in May, 1823—had furnished irrefragable evidence of their futility. Lord Calthorpe expressed his deep regret that the commons had not passed resolutions more conformable to the light in which slavery ought to be regarded by a Christian community, and that their lordships were now called upon to concur in opinions better suited to their own dignity. There were not ‘wanting members in the commons who were equally desirous of legislating in the spirit of Christianity, equally with his lordship. It was maintained there with great eloquence that slavery was inconsistent with Christianity and the constitution. Occasion was given for the expression of these sentiments in the commons, by a motion made by Mr. Brougham on the 19th of May, to the effect that “the house has observed with extreme regret that nothing had been effected by the colonial legislature, in compliance with the declared wishes of government and the resolutions of the house of the 15th of May, 1823, for ameliorating the condition of the slaves in the West Indian colonies; and that this house, therefore, pledges itself, early in the next session of parliament, to take into its most serious consideration such measures as may be best calculated to carry into effect the recommendation of the government and the house.” This motion was supported by Dr. Lushington and Mr. Denman; but opposed by Messrs. Canning, Ellis, and Horton. Mr. Canning, however, asserted that government only wished to retard a little the attainment of the object, in order that they might arrive at it with greater security. Sir T. Ackland said, that he did not wish directly to negative the motion; but as he thought the adoption of it would retard the good effects to be looked for from the resolutions of 1823, he moved the previous question, which was carried by a large majority. In the upper house, on the 17th of April, Lord Suffield brought forward a motion to prohibit persons in official situations in the West Indies from being proprietors of slaves; a motion which, he said, had no connexion with the emancipation of the negroes; and was directed not so much to the conceding of civil rights, as to the preventing of criminal wrong. The same topic was brought before the commons by Mr. W. Smith on the 20th of April; but the resolutions thereon were negatived in both houses. At the close of the session, indeed, the colonial legislatures were allowed further opportunity of showing how far they were inclined by timely concessions and purposes of good faith to avert the direct interference of the mother country in their internal regulations.

MODE FOR AMENDING THE REPRESENTATION OF EDINBURGH, ETC.

During this session Mr. Abercromby moved leave to bring in a bill to alter and amend the representation of the city of Edinburgh, which, he said, contained a population of more than 100,000 inhabitants, while the elective franchise was in the hands of a town-council of thirty-three members, self-elected, and what were called the vested rights of that body were generally the principal obstacles thrown in the way of a better system. This motion was strongly opposed by the members for the town and county of Edinburgh, on the ground that no corruption had been charged against the corporation of Edinburgh; and by Mr. Canning, who considered it was intended to undermine the barriers which resisted the inroads of a more wide and sweeping innovation. Mr. Canning also brought forward the unexampled prosperity of Edinburgh, and the contentment which pervaded its population, as a convincing proof of the excellence of the old system. After expatiating on the advantages connected with the Scotch representation, he remarked that his objection to the present motion was its application, as a single instance of reform in a borough, to the general question. It was not unusual, he said, to bring forward an attack on a single borough by an allegation of the prevalence of abuses; but it was quite new to institute a charge against it because its elective was not in proportion to its actual population. This principle, if once admitted, would let in the general question of reform, which would lead to endless squabbles. At the same time he expressed a hope, that the motion might be repeated annually; but it was to this end, for the innocent gratification of Lord John Russell and those who advocated reform! On a division the motion was lost. About the same time that this question was discussed, Sir John Newport moved for leave to bring in a bill for the repeal of the Irish act, 21 Geo. 2nd., c. 10, relating to the elective franchise. By that statute it had been enacted, that, in consequence of the difficulty of finding a sufficient number of resident Protestant freemen, sufficiently wealthy and sufficiently educated to exercise the elective franchise, non-resident freemen should be entitled to vote. Sir J. Newport argued that the cause which produced these enactments had ceased to operate, and that therefore the act itself ought to be removed from the statute-book. On the other hand it was argued by Mr. Plunkett that the country had gone on for seventy years with the principle of non-residence applied to boroughs and corporate towns, and that the effect of the measure would be to affect vested rights, and disturb persons actually in possession. If that act were repealed, he said, the election of every officer of a corporation would be impeachable. The house should especially pause before it assented to such a proposition on the eve of a general election, a proposition, the effects of which upon existing rights, could not be measured. The motion was negatived by seventy-six against thirty-eight.

RESOLUTION FOR THE REGULATION OF PRIVATE COMMITTEES.

On the 19th of April, Mr. Littleton brought forward a series of resolutions for the better regulation of private committees on private bills, especially those relating to joint-stock companies. Great complaints had been made of the conduct of these committees; but Mr. Littleton observed that he believed they were generally ill-founded. It was certain, however, he continued, that the present constitution of committees rendered improper conduct perfectly possible; but this, the plan he had in view would prevent. The grand features of this plan were to remodel the list for the

counties; to secure impartiality by taking only one half of the committee from the county in which the bill originated; to make attendance compulsory, and to prevent the chance of abuse by creating a standing committee of appeal. His scheme was embodied in eight resolutions which were adopted with the general approbation of the house. The only one on which a division took place was that which provided that every petition complaining of the decision of a private committee should be referred to a committee of appeal; and this was carried by a majority of forty-four against thirty-three.

MOTION TO HOLD PARLIAMENT OCCASIONALLY IN DUBLIN AND EDINBURGH.

On the same day that Mr. Littleton brought forward the resolutions alluded to, Mr. Pelham, made one of most extraordinary motions that ever was proposed within the walls of Saint Stephen's. After adverting to the great increase of wealth and population in the principal towns of the kingdom, their distance from the seat of legislation, and the expense of sending witnesses and deputies to London whenever their interests were at stake, he gravely moved, "That it is expedient the imperial parliament should be occasionally holden in Dublin and Edinburgh." The very idea of such a change was justly scouted by the house as unworthy their attention, and no one was found bold enough to second the motion: so St. Stephen's was not yet to be deserted.

RESTORATION OF FORFEITED SCOTCH PEERAGES.

Acts were passed during this session for the restoration of five Scotch peerages which had been forfeited by rebellion in the last century. These were the peerages of the Earl of Carnwath, Earl of Airlee, Lord Duff, Lord Elcho, and the Baron of Threipland of Fingarll. The only person who opposed this measure was Lord Minto, and he avowed that his opposition was founded upon political sentiments. He asked, why should not a bill be brought in for the restoration of titles against all acts of attainder passed under the present and preceding dynasties? Why make a selection of forfeitures incurred for treason, not against the crown, but against the liberties of the subject? Why, for instance, was not the Duke of Buccleugh restored to the dukedom of Monmouth? He confessed that the selection which had been made was most unfortunate; and he was sorry that he had not stated his objections when the bills made their first appearance in the house. Mr. Peel replied by the simple statement that these reversals of attainders had commenced with that of Lord Edward Fitzgerald, and that he himself had made the motion that the descendants of Lord Strafford should be restored to their family dignities.

MOTION TO DISJOIN THE PRESIDENCY OF THE BOARD OF TRADE FROM THE TREASURERSHIP OF THE NAVY.

On the 7th of April, the chancellor of the exchequer moved, in a committee of supply, to disjoin the presidency of the board of trade and the treasurership of the navy. Mr. Huskisson filled these two offices at a salary of £3,000, and it was now proposed that he should become president of the board of trade alone, with a salary of £5,000. The most willing homage was paid to the great talents of Mr. Huskisson by

all parties in the house, together with the high value of his public services; but the proposal was met by a decided opposition, on the ground that the disjunction of the two offices was unnecessary, as no active duty was attached to the treasurership of the navy. At all events, it was urged, its duties might without inconvenience be transferred to the paymaster, the real officer in that department; that by adding £2,000 to the present salary of the treasurer, or giving £2,000 additional as the salary of the presidency of the board of trade., the same amount of remuneration to the individual holding both offices would be made up at a smaller cost to the public. It was insinuated that the scheme of disjoining the offices was merely a cloak for the introduction of a new placeman into the house. On the other hand it was contended by Mr. Huskisson and others that considerable anxiety and hardship arose; out of the union of the two offices; and that it was; altogether erroneous to suppose that the occupation of the treasurer of the navy was merely to pay money. Opposition, however, was so strong against the measure that in a discussion, when the report was brought up, Mr. Canning said that he did not feel himself called upon to press it. He viewed with regret the small support which had been given to it; and though as a matter of principle he was ready to defend it, yet he would abandon it on the ground of expediency.

CATHOLIC EMANCIPATION, ETC.

The question of Catholic emancipation, although not formally stirred in either house during this session, was nevertheless kept alive by petitions from different districts and bodies in Ireland. These petitions were now especially directed to a disclaimer of the imputation of owing a divided allegiance; manifestly on account of the weight which the argument of the anti-Catholics on this point had carried with it in the debate of the preceding session. The speeches delivered on the presentation of them also characterized the imputation of a divided allegiance as a false pretence, because the Catholics in all their petitions declared, that, in the oaths which they took and were ready to take, they swore allegiance to his majesty alone. But Lord Liverpool rightly answered, that although he never doubted the sincerity of the Catholics in disclaiming civil allegiance to any foreign power, the fact could not affect the argument: he contended that spiritual subjection to a foreign power was inconsistent with civil obedience to our own sovereign.

While the claims of the Catholics were merely the subject of incidental remarks, the condition of the Protestant church in Ireland, became the subject of more direct discussion. Lord Kingston moved in the upper house for the appointment of a committee to inquire into the state of the Protestant church in the province of Munster. His motion was founded upon the evils which he stated to have arisen from the union of livings, and the consequent want of churches for Protestant worship. It was not uncommon, he said, to unite five, six, or even seven livings in one person; and in many parishes, if the Protestant inhabitants wished spiritual consolation, or to have the benefit of religious worship, the nearest clergyman who could advise them, and the nearest church in which service was performed was probably at a great distance. It was answered that as the returns on the table of the house, furnished by the lords’ committee to inquire into the state of Ireland last session, showed all the

parishes that existed in Ireland, and the authority by which they had been made, the motion was unnecessary: it was withdrawn. The want of churches, which it was the object of this motion to supply, was connected with the administration of the fund formed of the first-fruits of all ecclesiastical benefices. These revenues, or the first year's income of every benefice, had been originally payable to the pope; but on the Reformation they were vested in the crown, and they had been appropriated by an act of Queen Anne, in part at least, to the building of churches. Sir John Newport brought the management of this fund, and the insufficiency of the system according to which the contributions of the clergy to it were regulated, under the notice of the commons, by a series of resolutions declaratory of its nature and history, and by a motion for the appointment of a select committee to inquire into its condition and administration. He justified his motion by the fact that the first-fruits, where they were paid at all, continued to be paid upon the rate of valuation, for which there was no authority, and that consequently the greater portion of the fund sacrificed by the crown was allowed to remain in the hands of the clergy, while new burdens were laid upon parishioners to effect those very objects for which the fund had been created. This motion was opposed as a covert and most dangerous attack upon the property of the Irish church, and through it upon the property, not only of the church of England, but of all bodies in the state; and as being derived from a fallacious interpretation of the law, warranted neither by history, authority, nor expediency, On a division it was rejected by a majority of forty-eight to twenty-one. The mover, Sir John Newport, was subsequently more successful in endeavouring to institute an inquiry into abuses said to exist in the administration of the parochial rates levied in Ireland for the religious service of the Protestant establishment. He moved resolutions pledging the house to adopt measures for their removal, and on a division the motion was carried. Measures of greater importance were carried by government itself, namely, for promoting the education and moral improvement of the great mass of the Irish people. Grants for these important purposes were voted, though not without opposition from many members, on the grounds of the abuses and oppressions in the management of the schools in Ireland as detailed in the report of the preceding year; and that proselytism was made a part of the system of education pursued therein. In these discussions government manifested no desire to perpetuate abuses, nor any disinclination to cautious and practicable amendment. The same spirit was carried into other departments more strictly connected with the civil administration of Ireland. A committee on the state of the country had presented a report in 1825, recommending the adoption of various measures; and during this session several of those measures were carried into effect. Thus an act was passed consolidating the laws for the regulation and management of prisons; better regulations were enacted for the administration of justice in towns corporate; provision was made to remedy the inequalities of local assessments, by introducing an uniform valuation of baronies, parishes, and other divisions of counties; an act was passed which made provision for a more convenient and abundant distribution of lunatic asylums; and the law of Ireland was amended respecting the assignment and subletting of lands and tenements, by which some check was put to that infinite division, not of property but the use of property which had so impoverished and degraded the Irish peasantry. On the recommendation of the select committee of 1825, also, a motion for an address to

his majesty was carried, praying him to order a commission for inquiry into the tolls and customs collected in fairs, markets, and sea-ports in Ireland. These tolls and customs had been granted to particular individuals and corporations, and great evils existed in the levying of them, whence the motion for inquiry. It was opposed both on the general merits of the measure, and on the inefficiency of the particular mode of inquiry proposed; but the motion was carried, and a select committee accordingly appointed.

INDIA JURY BILL, ETC.

An important alteration was introduced this session into the administration of justice in India, by a bill brought in by Mr. Wynn, for the regulation of juries within the territories of the East India Company. The existing law admitted all British subjects to serve upon juries; but the right had never been extended to all persons born within the British dominions. During late years a large population had sprung up in India, known by the name of “half-caste,” one of their parents having been a native, and the other an European. This class, though born in wedlock, as well as another numerous class, consisting of the illegitimate children of European fathers by Indian mothers, were disqualified from serving upon juries, under the idea that they were not British subjects; and Mr. Wynn moved that this disqualification should be removed, which motion was adopted. A bill was also passed this session allowing the East India Company to appoint any person to a writership who should produce testimonials of character, and undergo such an examination as might be fixed by the court of directors and the Indian board. By an act, passed in 1813, no person was eligible to be a writer in the Company’s service who had not passed four terms in the East Indian college; and in consequence of the extension of the Company’s territories, and the establishment, of new courts in Bengal, much inconvenience had arisen from the restriction, as the college could not supply a sufficient number of young men fit for office.

NATURALIZATION ACT, ETC.

During this session the law of naturalization was extended in Canada. By the act, 179 no person could be summoned to the legislative council, or elect, or be elected, to the legislative assembly of these provinces, unless he was either a natural born subject of Great Britain, or a subject become so by the conquest and cession of the Canadas, or had been naturalized by an act of the British parliament. A bill was now passed giving to a naturalizing act of the Canadian legislature the same effect as to one of the legislature in England; providing, however, that such act should be null and void, unless ratified by his majesty within two years after being presented to him for that purpose. The only other measure regarding our relations with foreign states, besides these already noticed, which occupied the attention of parliament, was the expiry of the Alien Act. This session it died a natural death; and a milder set of regulations, conferring no power of sending aliens out of the country, were adopted in its stead. In relinquishing that power, Mr. Peel said that he had the gratifying consciousness that in no instance had it been abused. The only case in which it had been used was one which had not the slightest shade of a political aspect attached to it. It was that of a person who had menaced a foreign ambassador, and who, it was

believed, would have carried his threats into execution had he not been brought before the privy-council and dealt with according to that act.

PROROGATION AND DISSOLUTION OF PARLIAMENT.

The session of parliament was shortened by the approach of its dissolution. The session was terminated on the 31st of May by commission. The speech, which was delivered by the lord chancellor, mentioned his majesty’s intention of dissolving the present parliament, and directing the issue of writs for the calling of a new one. A leading topic in the speech was the success of the British arms in the Burmese empire, success which had led to the signature on honourable terms of a preliminary treaty with the Burmese monarch, which his majesty had every reason to expect would be the foundation of a secure and permanent peace. Parliament was dissolved on the 2nd of June; and writs were issued for a new election, which were to be returnable on the 25th of July.

GENERAL ELECTION.

The elections which followed immediately the dissolution of parliament presented several scenes of active and vigorous individual combat; but they did not possess the interest which attaches to them when their issue is to decide the fate of contending parties. The chief topics on which candidates were tested were the corn-laws and Catholic emancipation. As the lower classes were under the impression that bread was high, because of the corn-laws, and that they existed to enrich the landholders, an expressed opinion in favour of their abolition was sure to gain cheers at a popular election. But the most prominent question on the hustings, even in England, was Catholic emancipation. The Duke of York’s speech, and the violence exhibited in Ireland, had created a strong feeling against the Catholics; and as it was known that their claims would be one of the earliest subjects of discussion in the new parliament, the success of a candidate generally depended as to whether he was, or was not in favour of Catholic emancipation. It was in Ireland, however, that the giving or refusing of a vote mostly depended on the answer received to the question, Will you vote for emancipation? The demagogues of the Catholic Association gave themselves up to the carrying of this one point; and they were aided by that powerful band of agitators, the Irish priests. The contest on the Irish hustings was, indeed, converted into an award of eternal damnation: the consolations of the church here, and the joys of heaven hereafter, were promised those who voted for an emancipation candidate; but the darkness of excommunication in this life, and the gloom of purgatory first, and then the pains of hell, were denounced against those who voted for an anti-Catholic. The associated barrister and the political priest travelled the country together in order to propagate the common creed; the one by threats of damnation, and the other by the more temporal considerations of civil and religious power; and this tyrannical sway of the artful and designing was irresistible among the forty-shilling freeholders—it procured the large majority pledged to support the claims of Catholic emancipation. The great influence which the priests had over the ignorant multitude was seen in a remarkable manner by the issue of the election for the county of Waterford. Mr. O’Connell and the Rev. Mr. Sheehan traversed that county to rouse it against the family of Beresford; and every tie of respect and civil

influence which had hitherto united the Catholic tenant to his Protestant landlord gave way before the power of the church, The electors were wielded by the priesthood; and Lord George Beresford was compelled by his own tenantry to give tip the contest. At a meeting held in Clonmel to celebrate this triumph, Mr. Sheehan, the priest, remarked, “We said to the people, ‘Here are the natural enemies of your country, and here are your priests who wait on the bed of your sickness, and are your friends alike in prosperity or in woe: follow us or them.’” Such an appeal to the feelings of a superstitious multitude was sure to prevail: there is more might in superstition than in any of the lawful weapons in argument which man can use.

THE BURMESE WAR.

{GEORGE IV. 1826—1827}

There was no faith manifested by the court of Ava in the armistice which had been concluded in September, 1825, and so the war continued. During the negociations which followed, the Burmese monarch had made vigorous preparations for its continuance; and when the armistice had nearly expired, in reply to the proposals made for peace by the British commanders, this haughty and laconic answer was given, “If you wish for peace, you may go away; but if you wish either money or territory, no friendship can exist between us. This is Burmese custom.” The reply was seconded by the advance of 60,000 Burmese troops along the banks of the Irrawaddy against the British and native Indian troops at Prome. The right division, consisting of 15,000 men, under the command of Sadda Woon, moved along the western bank of the river; the centre, of about 30,000, commanded by the Kee Wongee, or head minister, marched along the eastern bank, with numerous war-boats and stores; and the left, 15,000 strong, under Maha Nemiow, moved by a route about ten miles distant from the river, and separated from it by an extensive forest. Besides these there was a reserve of 10,000 men, under Prince Memiaboo, occupying a strongly fortified position at Melloone; another force ready to oppose any movement from Arracan; and Sykia Wongee was still carrying on a desultory warfare in the vicinity of Pegu, and threatening Rangoon. The British force consisted only of 5,000 men, besides a garrison to maintain Prome, and some native troops opposed to Sykia Wongee, and in garrison at Rangoon. A rencontre took place between our advanced guard and Maha Nemiow’s division on the 10th of November, in which the British suffered severely; their commander, Colonel M’Dowall, was slain, and the troops were obliged to retreat. Encouraged by this success, Maha Nemiow marched directly on Prome, close to which he took up his position. About 8,000 of his men were slain whose confidence had not been shaken by contact with our troops; and these levies were accompanied by three young and beautiful women of high rank, who pretended to have the gift of prophecy, and to be possessed of power to turn aside a musket-ball. The Shans were led to believe, indeed, that they were invincible; but they soon discovered that they were unable to compete with the British. Being surrounded by danger on every side, Sir A. Campbell resolved at once to become the assailant; and on the 30th of November arrangements were made to attack the enemy’s forces on the following morning; Commodore Sir James Brisbane with the flotilla being directed

to cannonade their posts on both sides of the river at daylight, while a body of native infantry made a feigned attack on the centre as the columns were marching out for the real attack on the Burmese left, at Simbike. For this purpose the principal force was formed into two columns: one under Brigadier-general Cotton, which marched by the direct road; and the other, led by the commander-in-chief, which crossed the Nawine river and moved along its right bank, in order to come round to the Burmese rear, and to cut off all retreat. The attack everywhere succeeded; the Shans themselves, though they fought with fury, were obliged to take refuge in flight. Every division of the Burmese numerous force was routed with great slaughter; and many of the chiefs, among whom was Maha Nemiow, perished in the fight. One of the fair prophetesses also received a bullet in her breast, and being carried to a cottage in the rear expired. Sir A. Campbell now determined to advance on Ava; and nothing was wanting in the troops, or forgotten by their commander, to ensure success. But the enemy did not yet despair. The stockades at Meaday were made as strong as art could make them; and at Melloone, on the west bank of the Irrawaddy, the reserve under Prince Memiaboo was augmented to 15,000 men. The British troops arrived at Meaday on the 19th of December; and they found it just evacuated by the rear-guard of the enemy, the Burmese having retired to Melloone, where they had received orders again to concentrate. The neighbourhood of Meaday presented to the British a scene of horror and desolation. Within and around the stockades the ground was covered with the dead and the dying; the victims of wounds, disease, and want. The beach and the surrounding jungles were filled with dogs and vultures, collected to consume the loathsome prey. Round about the stockades gibbets were erected, each bearing the mouldering remains of three or four victims, who were thus crucified for, perhaps, no greater crime than that of wandering from their posts in search of food, or of following the examples of their chiefs in flying from the foe. The same horrors presented themselves to the British for fifty miles up the river; and in some places the soldiers could not find a place for their tents without removing dead bodies. The pursuit was continued by forced marches; and on arriving within five miles of Patanagoh, a town opposite to Melloone, it was discovered that the whole of the enemy’s force had crossed to the Melloone side of the river, and occupied with some 12,000 men a series of fortified heights, and a formidable stockade, having in front a rapid stream six hundred yards broad. While the British force was preparing to attack this formidable position, a flag of truce was sent in, with a notice that a commissioner had arrived with full powers to conclude a treaty of peace. This led to a discussion, but without effect; for the Burmese leaders again betrayed a want of faith, and the new envoy hazarded the most glaring falsehoods. Operations again commenced. The British troops having been carried across the Irrawaddy, under the protection of Captain Chads, an attack was made on the fortifications at Melloone; their defenders were driven in utter confusion from the place: and Memiaboo’s treasures, to the amount of 30,000 rupees, with all his stud, fell into our hands. The army again moved forward on the 25th of January; and on the 31st it was met in its advance by Dr. Price, an American missionary, and Mr. Sandford, an assistant surgeon of the army, taken prisoners some months before, whom fear had induced the Burmese monarch to restore to liberty, and despatch as messengers of peace. They brought proposals for a short truce, which was readily granted; and they returned in full confidence that they

should be sent back to ratify terms of peace. This hope, however, proved fallacious: by high bounties, by grants of important privileges, and by the most earnest appeals, 40,000 men had been collected, and the Burmese monarch resolved to continue the war. This new army was styled, Gong to doo, or, “Retrievers of the king’s glory;” and it was placed under the command of a savage warrior, called Nee-Woon Breen, which has been variously translated,—“Prince of Darkness,” “King of Hell,” and “Prince of the Setting Sun.” The certainty of another contest became evident to the British on the 8th of February; and the next day, as they debouched from the forests into the open country, they discovered the Burmese drawn up in an inverted crescent. The British force amounted to about 2,000 men; but undismayed by the number of the enemy and strength of their position, Sir A. Campbell pushed boldly on. The enemy was soon overthrown; their centre was broken, and they were closely pursued in their works, where they were routed with great slaughter; hundreds perished by jumping into the river; and, with the exception of about 3,000 men, the whole army was dispersed. The road to Ava was now opened, and our troops pushed on to within forty-five miles of that city. There was now no longer time for disguise, deceit, or treachery; peace must be made, or Ava would be captured. On the evening of the 24th of February, therefore, Mr. Price, with two ministers of state, arrived at the camp at Yandaboo, to announce that the king and the court would come to terms. A treaty was ratified; the Burmese government engaging to furnish boats for the conveyance of a great part of our force to Rangoon. The articles of peace were, that the four provinces of Arracan, and the provinces of Mergui, Tavoy, and Zea, should be ceded in perpetuity to the East India Company; that the Burmese government should pay one crore of rupees by instalments; that the provinces or kingdoms of Assam, Cachar Zeatung, and Munnipore, should be placed under princes to be named by the British government, residents with an escort of fifty men to be appointed at each court; that British ships should be admitted into Burmese ports to land their cargoes free of duty, not to unship their rudders, or land their guns; that Burmese ships should have the same privileges in British ports; that no persons should be molested for their opinions or conduct during the war; and that the Siamese nation should be included in the treaty. This war was thus brought to a close; a small band, composed of British warriors and their Indian fellow-subjects, stood as conquerors in the centre of the great Burmese empire. After peace had been concluded a party of officers from the army visited Ava, and were received by the humbled monarch with all due honour. Soon after the conclusion of peace the British troops who had maintained this unequal contest commenced their return to Rangoon; and, subsequently, our Indian government sent an embassy to Ava, at the head of which was Mr. J. Crawford, who finally settled points relative to the frontiers, and concluded a treaty of commerce very favourable to the Company. The conduct of Sir A. Campbell advanced his character for enterprise and prudence, as well as military talent, to high renown. In the year 1831 he was created a baronet, and proceeded to New Brunswick as Lieutenant-governor of that province.

Contemporaneously with the exploits of Sir A. Campbell in the heart of the Burmese empire, an important service was rendered to our Indian empire by the commander-in-chief. Lord Combermere. The late Rajah of Bhurtpoor had died in

strict alliance with our government; and by the terms of the treaty each party was bound to assist the other against all enemies. Apprehensive of the consequences which might follow his death, the rajah had during his lifetime declared his son, Bulwart Singh, his successor, and included him in the treaty of alliance with the Company. On the death of the rajah, however, his nephew, Doorjun Sal, having gained a party in the army, raised a successful revolt, gained possession of Bhurtpoor itself, and seated himself on the ground. The expelled prince applied for aid to Sir David Ochterlony, the Company's resident at Delhi, and that officer embraced his cause. At first Lord Amherst, governor-general of India, disavowed the conduct of Sir David; but on receiving further information he confirmed it; and Lord Combermere was directed to march with an army for the purpose of expelling the usurper. His lordship took the field with 25,000 European and native troops, and he directed his first attempt at Bhurtpoor. The fortifications of that place were such, that it might have been supposed they were erected in those days when unlimited command over life and labour produced those stupendous monuments of human art, the pyramids. The wall of the city was of mud, sixty feet in thickness, and of great height, with a very wide and deep ditch. The circumference of the whole was about seven miles; and the walls were flanked with bastions at short intervals, on which were mounted a numerous artillery. The preparations for the attack, however, were made on a scale commensurate with the difficulties; and on the 10th of December Lord Combermere appeared before the city with more than one hundred pieces of artillery. During the night the enemy had cut the embankments of a lake to the northward, for the purpose of filling the broad and deep ditch, a measure of precaution which had been very serviceable in 1805, when the British had vainly attacked the place. In the present instance, however, our troops arrived in time to repair the breach before the water had flowed into the fosse sufficiently to render it impassable. After this a few-days were spent in reconnoitring the works, and fixing on the best points of attack, until the whole battering train with its appurtenances should arrive. In the meantime, from a desire to save the women and children from the effects of the terrible bombardment about to take place, Lord Combermere addressed a letter to Doorjun Sal, requesting him to send them out to him, and promising them safe conduct. This request, however, was barbarously refused; and on the 23rd of December the besiegers commenced their first parallel, under a heavy fire, about eight hundred yards from the north-east angle of the works. On the following morning three batteries opened on the town, and continued, with several others afterwards erected, so vigorous a fire that scarcely a roof in the town was left uninjured. The mud walls, however, still stood erect, so that, on the 3rd of January, it was deemed expedient to employ miners. Several attempts failed; but on the 16th two mines were blown up under one of the bastions; and, with the aid of a day's cannonade, effected such a breach that the result of the enterprise appeared no longer doubtful. The final assault was made on the 18th. Troops destined to rush into the city established themselves in the advanced trenches unperceived by the enemy; and the explosion of a mine, loaded with 12,000 pounds of powder, was to be the signal of attack. At eight o'clock this mine was fired, and the effect was terrific; the ground trembled as if agitated by an earthquake, and after it had heaved up with several convulsive throes, the volcanoes burst forth. The whole of the salient angle and the stone cavalier in its rear were

lifted into the air, and, after the smoke and clouds of dust had passed away, the bastion with three hundred men were seen precipitated below. The two grand divisions of the army now rushed up to the breaches, and the foremost of the opposing foe were soon laid low by the British bayonets, and the rest were chased along the ramparts; in two hours the whole of the rampart was in our possession, and early in the afternoon the citadel surrendered. Doorjun Sal, who attempted to escape, was captured, together with his wife and two sons. The garrison consisted of 36,000 troops, near 10,000 of whom are said to have been slain during the siege. On the side of the British the loss was about 1200 men, many of whom were killed by the explosion of the great mine. After the capture of Bhurtpoor its fortifications were demolished, and all the other fortresses in the rajah's dominions surrendered. The rightful prince was reinstated in his authority, and the inhabitants returned to their abodes and allegiance. For this achievement Lord Combermere was raised to the rank of viscount, and the governor-general, on account of the general success of the British arms, was raised to the dignities of Viscount Holmsdale, and Earl Amherst of Arracan.

MEETING OF THE NEW PARLIAMENT.

The new parliament met on the 14th of November. It was opened by commission; and the speech, which was delivered by the lord chancellor, expressed great satisfaction at the termination of war in India. It spoke, also, of the distress which still prevailed in the commercial and manufacturing districts; but expressed a hope that the time was not far distant when, under the blessings of Divine Providence, the commerce and industry of the United Kingdom would resume their wonted activity. Another leading topic in the speech was the admission of foreign grain into the ports of the United Kingdom, not then admissible by law. His majesty said that he had called parliament together for the special purpose of communicating to them the measures which he had deemed necessary to take in this particular, and that he had directed a copy of the order in council, issued on that subject, to be laid before them, trusting that they would see sufficient reason for giving their sanction to the provisions of that order, and for carrying them into effect. The address was opposed in the upper house by Lord King, and in the commons by Mr. Brougham, both of whom complained that the speech consisted of nothing but blanks. Amendments were moved in both houses; but they were lost by overwhelming majorities. The grand error pointed out by the opposition in the speech was the omission of the subject of the corn-laws, and much discussion was entered into thereupon. When the report on the address was brought up, indeed, Mr. Western moved another amendment, pressing the consideration of this subject on the house; but it was negatived without a division. In the debates, however, Lord Liverpool in the upper house, and Mr. Canning in the commons declared that ministers were prepared to propose a general measure regarding the corn-laws; but that it would be unfair towards the country and towards parliament to bring it forward before the Christmas recess. Under these circumstances the bill of indemnity, which was rendered necessary by the order of the council for the admission of certain grain into the ports of the United Kingdom, a measure demanded by the late scanty harvest, was passed without opposition.

MOTION FOR A SELECT COMMITTEE ON JOINT-STOCK COMPANIES, ETC.

On the 5th of December Alderman Waithman moved for the appointment of a select committee upon the joint-stock speculation of the last three years. In his speech he showed that during the time mentioned there had been no less than six hundred companies formed, requiring for the execution of their intended operations, a capital of many millions. He complained of the dishonest views with which many of these were set on foot; the knavery by which a fictitious value was given to shares which had cost nothing; and of the misery produced by this systematic swindling. He remarked, that if a man purchased in the lottery, he knew something of what he was doing, that he was giving a certain sum for a very unlikely chance, and that in doing so he was conferring some benefit on government. But the joint-stock gambling was of a much more atrocious kind: it was gambling with false dice. The loss itself on the whole speculation was an evil, but the great and signal grievance was, that the holders of the shares, now worth nothing, were not the losers. The original swindlers worked up the market to the point which they had expected it to attain: then down went the shares, and when they were down the original swindlers again bought them up, and were now the holders. He instanced the Arigna Mining Company as a proof of this nefarious practice. In that company, he said, there were three thousand shares, and the first deposit was £5. In one day the premium rose upon those shares from 8 ½ to 24, then it got to 26. and then it dropped to 24. Whether this was or was not a trick he would leave it to the house to determine. How such proceedings were brought about, he said, he would leave to any one to form an opinion. Afterwards, however, he boldly told the house how the proceedings originated. This Arigna Mining Company, he said, were seeking to obtain an act of parliament, and it was first intended that the sum of £15,000 should be divided between four or five individuals. This, however, was not considered safe, and it was agreed to divide the spoil more extensively. One gentleman put into his pocket £2,500 of this money, and afterwards £1,500 as profit upon shares, although he had not paid for those shares, but still owed £375 for them. That individual, he continued, was Sir William Congreve, a member of parliament: and was not, he asked, parliament called upon to do something towards an inquiry into conduct so dishonourable? Never had there been a fouler stain upon the house. After some remarks on the Equitable Loan Company, the alderman moved, “that a select committee be appointed to inquire into the origin, the management, and the present state of the joint-stock companies formed during the years 1824, 1825, and 1826, and to report on the same, together with any special matter touching any member of that house.” Mr. Canning, in reply, objected to the inquiry on account of its extent, asserting that for inquiry to be useful it must be limited and precise. Enough had been said to show that there was strong ground for suspicion, that in the affairs of some few companies there was matter deserving inquiry; but the motion as it stood involved many companies against the utility and management of which no charge had been brought. He moved an amendment, therefore, that the inquiry of the committee should be limited to the management and history of the Arigna Company. He was supported by Mr. Huskisson, who, in his speech, denounced the idea that joint-stock companies of every description were public evils. He was astonished, he said, to hear men of

business talk of mining carried on by joint-stock companies as a thing of recent date. No mine worked in this country had ever been so, except by means of joint-stock companies. Without the formation of such companies, those mines, indeed, would not have been explored. It ought to be, he added, the policy of the law to encourage joint-stock companies; for when embarked in properly and fairly, they are beneficial to the public interests, and fraught with great public advantages. At the same time, he was ready to admit, that those who had been concerned in the speculations and bubbles of the last two years had disgraced themselves; especially if they knew at the time they engaged in them that they were not likely to lead to the public benefit. Mr. Canning's amendment was agreed to without a division, and the committee appointed.

KING'S MESSAGE RESPECTING THE CONDUCT OF SPAIN TOWARDS PORTUGAL.

On the 11th of December, Lord Bathurst in the upper house and Mr. Canning in the commons, unexpectedly delivered a message from the king recounting the hostile and faithless conduct of Spain towards Portugal, and requesting that parliament would enable his majesty to fulfil his obligations towards the oldest of his allies. The message stated that his majesty had for some time past, in conjunction with the King of France, endeavoured to prevent the hostile aggression from Spain, and had repeatedly assured the court of Madrid that such aggression would not be tolerated by England; but that notwithstanding these assurances, hostile inroads into the territory of Portugal had been concerted in Spain, and had been executed under the eyes of the Spanish authorities by Portuguese regiments, which had deserted into Spain, and which the Spanish government had repeatedly engaged to disarm and disperse.

The facts of the aggression complained of were briefly these. On the death of John IV., King of Portugal, he was succeeded by his son, Don Pedro, of Brazil. As the constitution of Brazil had provided that its crown should never be united on the same head with that of the mother country, Don Pedro preferring his transatlantic sceptre, resigned his European crown to his infant daughter, and appointed a regency to govern during her minority. At the same time he remodelled the old political institutions of Portugal, and gave it a constitution in the form of a representative government. There was, however, a large party in Portugal hostile to this constitution, and a conspiracy broke out against it and the regency; Don Miguel, the emperor's brother, being proclaimed king, and having sworn to maintain his rights. Miguel was supported by some regiments of the Portuguese army, and a war ensued between his supporters and the troops in favour of the constitution. For the most part Don Miguel was unsuccessful; and whenever his troops were compelled by want or by his opponents to cross the frontiers, they were not only received and protected by the Spanish authorities, but again organized at the expense of the Spanish government, and sent forth to the invasion of Portugal. The British and Portuguese ministers at Madrid remonstrated; but the cabinet of Spain answered by lying disavowals, or hollow promises; and every day its conduct became more and more perfidious. The invasion was, to all political intents and purposes, an invasion by Spain; and as the

danger increased, the Portuguese ambassador at London made a formal application to our government for the military assistance which the treaties between the two countries stipulated. Ministers waited a few days till the conduct of Spain had been placed beyond a doubt, and then advised his majesty to send the above message to the commons.

In proposing an address to the throne on this occasion, Mr. Canning vindicated our interference in the affairs of the Peninsula and fully developed the principles of his foreign policy. Disclaiming every purpose of interference in the internal dissensions of Portugal or influencing the settlement of her domestic institutions, he considered England as merely called upon to defend her from an invasion organized by foreign aid. In order to prove this position he detailed the provisions of subsisting treaties; after which he called the attention of parliament to the present relative state of Portugal and Spain, asserting that he asked for a vote merely for the defence of Portugal, and not for aggression against Spain. There is still a road open to Spain, he said, for retraction and redress; and this would be greatly promoted by the presence of a British army on the Portuguese territories. Concerning the new constitution he remarked:—“As to the merits of the new constitution of Portugal, I do not think I have any right to offer any opinion. Personally I may have formed one; but as an English minister all I have to say is, May God prosper this attempt at the establishment of constitutional liberty in Portugal! and may that nation be found as fit to enjoy and to cherish its new-born privileges, as it has often proved itself capable of discharging its duties among the nations of the world!” Mr. Canning next went into a detail of the aggressions of Spain, as well as her motives: expressing an earnest hope, that, on hearing of the step we were about to take, that power would act so as to render hostilities unnecessary. He dreaded war; but he begged to be understood not as dreading war in a good cause, from any distrust of our strength and resources; on the contrary, he feared it because this country possessed the power to push any war in which she might engage to consequences the bare notion of which made him shudder. Our position at this time was not one of mere neutrality between contending nations, it was a position preserving the balance of power necessary for the safety of Europe. “Nearly four years of experience,” he remarked, “have confirmed that opinion; and it is to be feared that the next contest in Europe, if it should extend beyond the narrow limits of Portugal and Spain, will be a war of the most tremendous nature, because it will be a war of conflicting opinions. And although this country may enter into it with a desire to mitigate and control its horrors, yet she cannot help seeing under her banners all those who are restless and dissatisfied, with or without cause, in every nation with which she may be placed at variance. The consciousness of the fact, the knowledge that we possess such tremendous power, forces me to feel as I now feel. But it is one thing to have a giant’s strength, and another to use it like a giant. The consciousness that we have this power keeps us safe: our business is not to seek opportunities of displaying it; but to keep it, that hereafter the world may see we knew its proper use, while we shrunk from converting the empire into an oppressor. The consequences of letting loose those passions which are chained up, may be such as will lead to a scene of desolation which no one can contemplate without horror; and such as I could never lie easy on my couch, if I was conscious of having by one

hour precipitated. I would fear much and forbear long; I would almost put up with anything that did not touch our national faith and national honour rather than let slip the furies of war, when we know not whom they may reach, and where the devastation may end. Such is the love of peace which the British government acknowledges, and such the duties of peace which the circumstances of the world inculcate. In obedience to this conviction, and with the hope of avoiding extremities, I will push no further the topics of this part of the address. Let us defend Portugal whoever may be the assailants, because it is a work of duty; and let us end where that duty ends. We go to Portugal, not to rule, not to dictate, not to prescribe laws. We go only to plant there the standard of England, and where that standard is planted foreign dominion shall not come." The speech of Mr. Canning had a most powerful effect upon the house: loud cheers resounded from all sides as he sat down, much exhausted. Yet there were dissentients to the proposed measure. Mr. Hume opposed the address, on the ground that this country was not in a situation to enter upon, and to maintain for any length of period a war on a great scale. He moved an amendment that "the house be called over this day week," which motion was supported by Messrs. Wood and Bankes. On the other hand the motion for an address was supported by Sir Robert Wilson, and Messrs. Baring and Brougham. The latter, in adverting to the ground on which the amendment was principally supported, remarked that its supporters must recollect, and the house and the country must bear in mind that the question is not at present, whether, even at the expense of your character for good faith, you will consent to bear hereafter among mankind a stained reputation and forfeited honour; but whether for a little season of miserable, insecure, precarious, dishonourable, unbearable truce, whether for this precarious, disgusting, and intolerable postponement of hostilities, you will be content hereafter to have recourse to war when war can be no longer avoided, and when its horrors will fall upon you, degraded and ruined in character in the eyes of all the nations of Europe; and, what is ten thousand times worse degraded and ruined in your own. He contended that the burdens of the country, however oppressive, would be borne cheerfully through the impending struggle, if war should be the result, inasmuch as we were governed on wise, liberal, and truly English principles. Mr. Canning's reply to those who opposed the address was even more eloquent than his opening speech. Government was censured for allowing France to usurp and retain the occupation of Spain. In answer to this, Mr. Canning remarked, that when the French army entered Spain, we might if we chose have visited that measure by a war. But we were not then bound to interfere on behalf of Spain, as we now are bound to interfere on behalf of Portugal, by the obligation of treaty. And such a war would not in these days have been the proper method of restoring the balance of power, which varies as civilization advances and new nations spring up. To take a leaf from the book of European policy in the times of William III., or of Queen Anne, for supporting the balance now, would be to slight the march of events, and to regulate our policy by a confusion of facts. He continued:—"I admit that the entrance of a French army into Spain was a measure of disparagement to Great Britain; that it was a severe blow to the feelings of this country. One of the modes of redress lay in a direct attack on France through a war on the soil of Spain: the other was to make the possession of the Spanish territory harmless in rival hands; to make it worse than harmless, to make it injurious to be the

possessor—the latter mode I have adopted. Do you think that for the disparagement of England we have not been compensated? Do you think that for the blockade of Cadiz England has not received a full recompense? I looked at Spain by another name than Spain: I looked on that power as Spain and the Indies; and so looking at the Indies, I have there called a new world into existence, and regulated the balance of power; thus redeeming the movement of France, and leaving her own act on her unmitigated and unredressed, so that she would now thankfully get rid of her responsibility, and shake off a burden too heavy to be borne without complaint. France would now be glad if England would assist her in dispensing with this burden; and the only way of riveting France to the possession of Spain, would be to make that possession a point of honour. I repeat it, the object of the present expedition is not war, but to take the last chance of peace. If England does not go promptly to the aid of Portugal, Portugal will be trampled on, England will be disgraced, and then war will come; come, too, in the train of degradation. If we wait until Spain has courage to ripen her secret machinations into open hostility, we shall have war; shall have the war of pacificators: and who can tell when that war shall end?" Mr. Canning's eloquence prevailed. Mr. Hume's amendment received the support of only three or four members; and the original question was carried with only that number of dissentients. A similar address was moved by Lord Bathurst in the upper house, and was carried with the same unanimity. The measure was, indeed, a popular one, not only in the walls of St. Stephen, but throughout the country. The prompt decision of government quickly effected the purpose intended. It was on the 11th that the king's message was delivered; and on the 14th 5,000 troops, under the command of Sir William Clinton, began to march towards the coast; and by the 25th the first detachment appeared in the Tagus. Their appearance in Portugal was sufficient. The treachery and dissimulation of Ferdinand gave way to his fears; the French government recalled the diplomatic instrument of its intrigues, and the independence of Portugal with its constitution was for a time preserved.

RESOLUTIONS AGAINST BRIBERY AT ELECTIONS.

By the dissolution of parliament the resolutions of Lord John Russell for detecting bribery at elections, which had been carried on the last day of the session, had expired. Under these circumstances they were moved anew by Lord Althorp, in doing which he said that he hoped the new house of commons would not now, by rejecting them, afford a singular contrast between the last session of an old parliament and the first session of a new one. In reply, Mr. Peel said, that if this new jurisdiction was to be created at all, it had better be created by a bill than by resolutions; if there were to be any interference, it would be wiser to make that interference effective, than to adopt a measure so imperfect and inoperative as these resolutions presented. Was it not, he asked, a serious consideration that the committee forming the tribunal before which this offence was to be tried, was without the power of administering an oath? Here was an imperfection and an evil for which the resolutions made no provision; and it was vain to hope that any measure could be salutary or effective in its operations if deficient in so important a point. Mr. Wynn also objected to the resolutions, deeming them, with Mr. Peel, insufficient for the purpose designed. Mr. Scarlett observed, that the resolutions might possibly not meet the difficulties which

it was desirable should be overcome; but at the same time he thought the right honourable secretary had taken a partial view of the question. The resolutions, he said, were not altogether unexceptionable; but he was persuaded that they might be so far modified as to remedy the evil without going the length of inflicting a penalty or imposing costs, as Mr. Peel suggested, and which could be accomplished only by means of a bill. He added, that he thought they might be withdrawn, and reintroduced in an amended form; and Lord Althorp adopted, this suggestion, and withdrew the resolutions for the present. Subsequently Mr. Littleton again proposed the resolutions for the regulation of committees on private bills which had been passed by the late parliament, and they were all adopted.

CHAPTER XXXVII.

{GEORGE IV. 1827—1828}

Death of the Duke of York..... Meeting of Parliament..... Catholic Question..... The Corn-laws..... Dissolution of the Ministry..... Re-assembling of Parliament..... Explanations of, and Hostility to the Ministry..... Opinions of His Majesty on the Catholic Question..... Motion on the Chancellor’s Jurisdiction in Bankruptcy..... Motion regarding the Stamp Duty and Cheap Publications..... The Corn-law Question..... Financial Statements..... Corrupt Boroughs..... The Game-laws..... The Court of Chancery..... Prorogation of Parliament..... Death of Mr. Canning..... Administration of Lord Goderich..... Review of Foreign Policy.

DEATH OF THE DUKE OF YORK.

{A.D. 1827}

The earliest public event of the year was the death of the Duke of York, the heir presumptive of the crown. His royal highness had been for some time seriously ill, and as far back as the month of July his disease had assumed the character of dropsy. The progress of the complaint had rendered an operation necessary in September; but though the result of the operation, aided by the effects of medicine, removed the constitutional complaint, its partial influence on the frame was followed by a mortification in the legs, which, assuming sometimes a more favourable, and sometimes a more alarming appearance, gradually weakened the whole system. His constitution sunk beneath the power of art which was intended to revive it: nature gave up the struggle on the 5th of January, his royal highness being in the sixty-fourth year of his age. His death was accompanied by sincere and universal regret; for though he had failings, they were hidden from the public gaze by his more prominent virtues. Seldom, indeed, have the public services of one so near the throne produced to the country so much solid and lasting good, as resulted from his long administration of the British army. His private character was also formed to conciliate personal attachments: he never made a personal enemy, nor lost a friend. Everyone who had intercourse with him was impressed with the kindness of his heart, kindness which appeared in all his actions. In a word, his public and private character

excited one universal sentiment of respect and esteem. The soldier mourned over him as that of a benefactor to whom he was indebted for comfort, security, and respectability; and all other ranks of society joined in their lamentations over a prince whose personal qualities had been always popular, and to whom, in his public capacity, they felt that the empire owed a heavy debt of gratitude for all that he had effected for its safety and honour. His royal highness was succeeded as commander-in-chief by the only man in whom personal merit and the fullest confidence of the country were united—the Duke of Wellington.

MEETING OF PARLIAMENT.

Parliament resumed its sittings on the 8th of February. One of its earliest measures was to vote an address of condolence to the king on the death of his royal brother, on which occasion all political asperity was forgotten in an unanimous expression of respect for the private character and official conduct of the deceased. Men of all parties, as Mr. Peel, Sir R. Wilson, Mr. Brougham, and others, paid the tribute of high respect to his memory. Mr. Brougham considered it no small praise to the Duke of York that, in his office of commander-in-chief, he never allowed his political principles to interfere in the discharge of the duties of his office; and Sir R. Wilson remarked, that it was worthy of observation that the improvement which he had effected in the discipline of the army was maintained without undue severity. On these improvements Mr. Peel dwelt at great length, clearly showing that the high state of discipline now existing in the British army was chiefly owing to the exertions of the deceased prince.

By the death of the Duke of York his next brother, the Duke of Clarence, became heir presumptive to the crown. Ministers embraced this opportunity of proposing an increase of £6,000 per annum to his income, as well as £3,000 as a jointure to his consort. This motion was strongly opposed by Lord Althorpe, and by Messrs. Hume, Brougham, and Abercromby. Mr. Hume contended that it was ungracious and inconsistent to be proposing an additional burden of £9,000 a year, so soon after a royal letter to the bishops had exhorted them to use all their influence in promoting charitable contributions for the relief of the starving population. He had himself recently presented a petition from the weavers of Blackburn, praying that something might be done which would provide them with food; and the answer given to their prayers was a vote for adding to their burdens. Unwilling, however, to do anything which might look like a reproach to the crown, he would not oppose the motion by a direct negative; but, in order to give ministers an opportunity of withdrawing it, he would move that the chairman should report progress, and sit again for the further consideration of the proposed grant. The principal plea of the opponents of the grant was, that no additional expenses were entailed on his royal highness; but it was finally voted by a majority of ninety-nine against fifteen.

CATHOLIC QUESTION.

At this period circumstances seemed peculiarly favourable to the claims of the Roman Catholics. The Duke of York was dead, Lord Liverpool was seriously ill, and the influence of Mr. Canning was all potent in the cabinet. Public attention had been

fixed on this subject, from the opening of the session, more eagerly than any other which promised to occupy the attention of parliament; and petitions against their claims nightly covered the tables of both houses from the Protestant community. On the other hand, the Catholics were equally active; and at length, on the 5th of March, after having presented their general petition, Sir Francis Burdett brought the question before the house of commons. He moved—"That this house is deeply impressed with the necessity of taking into immediate consideration the laws inflicting penalties on his majesty's Roman Catholic subjects, with the view of removing them." The speech which Sir Francis Burdett delivered on this occasion gave rise to a debate that lasted two nights. In the course of his speech, he remarked, that the claims of the Catholics rested on more undeniable grounds than were supplied by general justice, or by historical deductions—they had been secured to them by treaty. "Every hour," he said, "that the disqualifications were allowed to continue, was a new violation of our solemn engagements, and a breach of public faith. What, the Catholics asked, had been secured to them by the treaty of Limerick? The first article of that treaty was the following:—'The loyal Catholics of this kingdom shall enjoy such privileges in the exercise of their religion as are consistent with the laws of Ireland, or as they did enjoy in the reign of King Charles II.; and their majesties, so soon as their affairs will permit them to summon a parliament in this kingdom, will endeavour to procure the said Roman Catholics such further security in that particular as may preserve them from any disturbance upon the account of their said religion,' Now he apprehended that Catholic peers sat in parliament in the reign of Charles II., so that here was an express stipulation for the benefit of Catholics generally. It was impossible to admit the interpretation put upon this provision by the opponents of the Catholic claims, as if its benefits had been limited to the persons besieged in Limerick; for strange, indeed, would it be, if those who held out longest in arms, and therefore did the greatest extent of mischief to the ruling powers, should yet be held to have been entitled to public favour. It was monstrous to suppose that this treaty related solely to the garrison of Limerick; for what said the 9th article?—'The oath to be administered to such Roman Catholics as submit to their majesties' government shall be the oath aforesaid and no other.' The oath referred to was the 'oath of allegiance,' and no other; and the article comprehended all submitting Catholics generally. But how had faith been kept with them? when it was by the exaction of new oaths, and nothing else, that they had ever since been excluded from the enjoyment of their proper privileges? But even if the interpretation that the men in arms alone were included were conceded, then their descendants (and they must have some) were, though Catholics, invested with these privileges. There necessarily must be some Catholics in the kingdom who were not excluded with the rest of their brethren: and where were they? But such a construction was trifling, contrary to all rules of logic, and all fair modes of reasoning. So far as the treaty of Limerick went, the case was conclusive: faith had been pledged, and faith had been broken." The treaty of Limerick thus brought forward by Sir Francis Burdett became the grand argument in the debate; and it was relied on both by those who favoured and those who opposed emancipation. In supporting the motion, Mr. Plunkett, the attorney-general for Ireland, said that it certainly did appear to him that at the time of signing the articles of the treaty of Limerick, the Roman Catholics of

Ireland possessed certain important privileges; and amongst others the right of admission into parliament. The first article fully recognised their privileges, for it did not refer merely to the exercise of religious rights, but also to the enjoyment of such political privileges as they had exercised in the reign of Charles II., one of which was eligibility to sit in the Irish parliament. It was argued, he said, that this provision extended only to persons who were in the garrison; but the words of the article, which mentioned generally, and without reservation, “the Roman Catholics of this kingdom,” sufficiently proved that it was meant to include the whole body of Irish Roman Catholics. One of the most powerful pleaders on the other side of the question was Mr. Peel, whose speech made a deep impression on the house. “If I could be satisfied that any of the privileges withheld from the Roman Catholics of Ireland, were so withheld in violation of the treaty of Limerick, it would very materially influence my judgment in deciding on the present question. But after having examined into this matter with the greatest attention, I feel a more perfect conviction that that treaty afforded the Catholics no claims to have their disabilities removed. There were various articles in the treaty of Limerick, the first referring to the Roman Catholic gentry and the others to the inhabitants of Limerick generally. Now what he meant to contend was, that political privileges were never in the contemplation of either of the parties to the treaty. It had been contended that the passage in the first article, which stated that the Roman Catholics should be allowed the free exercise of their religion without disturbance or molestation, in the same manner as they had been allowed it in the reign of Charles II., meant that they were not to be subjected to any disabilities on account of their religion. Now, with regard to the construction which was to be put on these terms, it appeared from every writer of that age, that, by the free exercise of their religion, was merely meant toleration instead of political power. That such was the meaning of the expression was clearly proved from the mouth of King William, one of the parties to that treaty, who, shortly after the making of it, stated that he was willing to grant to the Catholics the undisturbed exercise of their religion, but not political power: that they should enjoy freedom with respect to their persons and estates, and the exercise of their religion; that with that they ought to be satisfied; and that he could not comprehend how, when they enjoyed this, they could feel themselves justified in disturbing the quiet of the kingdom. The true construction of the treaty, as proved at the very time of making it, was not that which was now put upon it by the friends of Catholic emancipation.” With regard to the general question Mr. Peel confessed that he distrusted the Roman Catholics. He remarked:—“I do not find fault with the faith of any man, and I think quite as highly of a Catholic as of a Protestant; but if on a man’s faith there be founded a scheme of political influence, then we have a right to inquire in to that scheme. And I cannot contemplate the doctrines of absolution, of confession, and of indulgences, without having a strong suspicion that these doctrines are maintained for the purpose of confirming the authority and influence which man exercises over man. What is it to me, whether that authority be called spiritual, or otherwise, if practically it influence man in his conduct in society? Is it because religious doctrines are made subservient to worldly and political purposes, that they are therefore to be excluded from the consideration of the legislature in the discussion of the present question? On the contrary, if the authority derived from these doctrines be only the stronger on

account of their being borrowed from religion, and misapplied to worldly purposes, that, in my opinion, furnishes an additional motive for closely investigating the doctrines themselves. When I find the pope issuing bulls to the Irish Catholic bishops, and such documents sent forth to four or five millions of people who possessed not the advantages of education, I must say that they are very likely to influence their practice in life. When I hear, too, such doctrines ascribed to a desire to support the pure faith of Christianity, I cannot help having a lurking suspicion that they are rather intended to maintain a spiritual authority capable of being applied to temporal purposes, which has been said to be extinct, but which I contend, is still existing. In 1807 Pope Pius VII. sent to the Catholic bishops of Ireland a bull, which granted an indulgence of three hundred days to all those persons who should with devout purpose repeat a certain ejaculatory address; and by the same instrument another indulgence of one hundred days was granted, for the repeating of a certain other formula, both of them applicable to souls in purgatory. It is painful to think that such a mockery should be made of religion, in order to press the authority of man; it is disgusting to find such things sent by rational men to rational men, to be disseminated amongst an illiterate and fanatical populace. The friends of emancipation may ridicule, if they choose, the indications of a new reformation which now show themselves in Ireland; but so long as free discussion is allowed, and such means as these are used as means of influence over the ignorant multitude, nothing will deter pious persons from doing all in their power to counteract and undermine such influence. The gentlemen of the Catholic Association will soon find that their political discussions have reacted on the public mind; that a spirit of inquiry has gone forth on the subject of their religion. I have no objection to the professors of the Catholic religion as individuals; I quarrel not with their religious tenets as a system of faith; but I am jealous of the political system which is ingrafted on those tenets, and I think I have a perfect right on the present occasion to consider what has been the influence of that political system in different countries. I do not desire to look at this point as it is to be found illustrated in ancient councils, or in times when bigotry and superstition were prevalent throughout the world; but, viewing the effect of the Catholic religion as it exists in the present day in various countries, in some where it luxuriates in undisputed growth, in those where it is only struggling for supremacy, and in others where it is subordinate to another and a purer system, contemplating it under those different aspects, the result of my observation is, that it is expedient to maintain in this kingdom the mild, mitigated, and temperate predominance of the Protestant church.” With regard to the question as to whether the concessions demanded would restore tranquillity to Ireland, Mr. Peel said that he could not make up his mind to believe that the removal of the disabilities of the Roman Catholics would be attended by such a consummation. If they gained power, he said, they would naturally wish to better the condition of their religious system, to extend its influence over the country, and to draw it into closer connexion with government. The consequence of the change would be to bring the Catholic and Protestant religions into collision in such a manner, as might prove the destruction of the latter. And what greater evil, he asked, could be conceived than the confusion which must prevail for ages during the conflict? If, indeed, he could be persuaded that by concession tranquillity would be restored in Ireland, although he believed that the admission of

their claims would endanger our constitution, he would sacrifice his apprehensions of the ultimate result to the attainment of the present benefit. But he could not make up his mind to believe that it would have any such effect. If the friends of emancipation proposed, after having carried their point, to make the religion of the great majority, the religion of the state of Ireland, and open to them all its high offices, he could understand how such a line of policy might appease and tranquillize the Catholics. But this they disavowed. Yet if they proposed to maintain the Protestant establishment as that of the state, there would still be a barrier which the Catholics would endeavour to remove. After passing a censure on the Catholic priesthood for the undue interference exercised at the late elections, and making some observations on the neglect shown by their prelates in restraining such interference, and on the extraordinary asperity of Dr. Doyle's publications, Mr. Peel concluded thus:—"I have now discharged a most painful duty, the opposing the resolution before the house. I have felt that I had no choice but to state with firmness, but I trust without asperity, the principles which my reason dictates, and which honour and conscience compel me to maintain. The influence or some great names, of some great men, has lately been lost to the cause which I support; but I never adopted my opinions upon it from deference either to high station or to high ability. Keen as the feelings of regret must be, with which the loss of these associates is recollected, it is still a matter of consolation to me, that, in the absence of these individuals I have now an opportunity of showing my adherence to those tenets which I formerly espoused; of showing that, if my opinions be unpopular, I stand by them still, when the influence and authority that may have given them currency are gone; and when it is impossible, I believe, that, in the mind of any human being, I can stand suspected of pursuing them with any view to favour or personal aggrandisement." The motion was also opposed by Sir John Copley, master of the rolls, in a long, learned, eloquent, and argumentative speech. In his opinion the whole question was one of expediency, and if the concessions demanded could be granted with safety to the civil liberties and to the religious faith of the Protestant community, he admitted that the Catholics were intitled to them. He denied, however, that any such securities had been or could be offered, A blank and bare proposal of concession, he remarked, which neither acknowledged the necessity, nor contained even the elements of such securities, could not be entertained by the house, if it did its duty to the constitution, the religion, and the feelings of the country. Several departed statesmen, he said, had declared in the most decisive terms their determination not to grant Catholic emancipation without special and efficient securities; and the present secretary for foreign affairs himself, and the Irish attorney-general had uttered sentiments to the effect, that it could not be granted unless adequate securities were given to protect the country against the dangers of foreign interference. It became the house, also, he said, to consider well if the concessions are made, what are the feelings of that body of men who should be returned as members of parliament towards the Protestant church for which they would be called upon to legislate. He thought those feelings could not be learned more correctly than from the language of Dr. Doyle, who thus described the church of Ireland:—"She is looked up to, not as the spouse of the Redeemer, but as the handmaid of the ascendancy. The latter, whenever she becomes insolent or forgets her rank, if rank it may be called, rebuke her into a deportment

more becoming her situation. They extend their protection to her for their own advantage only; and she, working alternately on their hopes and fears, continues to hold her place as a necessary appendage of the family to which she owes her existence. When indulged, she is indolent; when rebuked, she becomes attentive; she draws tight or relaxes her discipline as it may please, or be determined by her masters. Her eye is ever fixed upon her own interests, and she deems nothing forbidden or unhallowed which may serve to promote them. As those who do an injury can never forgive, she is implacable in her hostility to the church which she supplanted; and at this day, she seems indifferent to all things else, but to the concealment of her riches, and the persecution of popery. She occasionally revolts against her fellow-servants, who lay bare her spoils, who tell of her frauds and oppressions, who remind her of her origin, and upbraid her with the profligacy of her misspent life. But she is much more frequently employed in forming offensive and defensive leagues with her fellows in the corporations, showing the advantages of injustice and oppression, in confounding the charter of her servitude with the title-deeds of her employers, in asserting her claim to a tithe of the land and labour of the kingdom, and proving to the satisfaction of the Christian community that, though she receive the patrimony of the poor, she is not bound to exercise towards them a single act of mercy." Such language as this, said Sir J. Copley, is not confined to the individual who used it; the same sentiments are avowed by some of the leading men of the Catholic body, and proclaimed aloud in the Catholic Association. He asked, therefore, when such are the sentiments of a Roman Catholic bishop when speaking of that establishment for which Catholics, elected probably by his influence, would be called to legislate, whether the house would consent that such men, returned by such influence, should have the power of legislating for a church thus described by one of their own communion, without insisting upon securities by which all danger might be averted? The debate was closed by Mr. Canning, who had been pointedly alluded to throughout the whole of Sir J. Copley's speech, and, after disposing of its argument, he ironically vindicated himself for not having concerted measures of security with the Pope of Rome. Government had not the same facilities, he said, with the court of Rome as was possessed by several foreign courts, as those of Prussia, Saxony, and the Netherlands. He had seen in some popular tracts, that to correspond with the pope was high-treason; and, therefore, when his holiness addressed a complimentary note to our present gracious sovereign, he, as secretary of state, took the opinion of the great law-officers on the subject of a reply; and they declared that if he did answer the pope's letter, he would incur the penalties of a premunire. Now the law-officers who gave this opinion were R. Gifford and Sir John Copley himself. I, being an ignorant person, next looked into Burn's Justice, and there I found that the penalties attached to a premunire, were attainder, forfeiture of goods, incapacity to bring an action, and liability to be slain by any one with impunity. As this was a matter touching life and fortune, therefore he could not be expected, after having acquired such knowledge, to go to the Pope of Rome; and yet to the pope they must go if they would have any security. Mr. Canning declared that it was the intention of Mr. Pitt to cany this question, to the truth of which assertion he was ready to depose before any tribunal. He avowed his opinion that the cause had lost ground in the house as well as in the country; but he was convinced that all unfavourable

impressions must give way to the effect of repeated discussions; that which right reason, humanity, and justice demanded could not fail to find an echo in the breasts of Englishmen. On a division the motion was lost by two hundred and seventy-six against two hundred and seventy-four. In consequence of this result, the order of the day in the house of lords, for taking into consideration the Catholic petition, was discharged on the motion of Lord Lansdowne, “who feared to increase, in the present state of feeling in Ireland, the disastrous conviction that a majority of both houses in parliament was opposed to a consideration of the claims of their Catholic brethren.”

THE CORN-LAWS.

Ministers had pledged themselves to bring the corn-law question before the house this session; and great anxiety was felt throughout the nation on this subject. It had been originally intended to introduce the subject simultaneously in both houses; but the illness of Lord Liverpool prevented it being brought forward in the upper house. Mr. Canning introduced the subject in the commons on the 1st of March, when he expressed his surprise that so much of hostile feeling should have been allowed to enter into the consideration of a question where none ought to have been found, and that this asperity should arise where there was no necessity to fly to extremes, and where the difficulties, in point of fact, were less than they were stated in argument. Every body admitted, he said, the necessity of protecting the agricultural interests; the only question was the mode and degree in which the protection should be administered. Of late years three modes of protection, without prohibition, had been proposed: the first, that of Mr. Ricardo, which imposed a duty of 20s. per quarter, to be diminished every year till it should have reached a minimum of about 10s.; the second proposed to begin with a duty of 16s., to be gradually lowered to 10s.; and the third was to impose a duty of 15s, or 16s. once for all, without any reference to the price. All these plans he been devised by persons generally favourable to a free trade in corn; but to all of them there lay the objection that when a pressure came it would bring with it distress to the agriculturists. Experience, he said, proved, that to impose a fixed duty without any reference to the variation of prices was objectionable and insufficient, because it was inevitably sometimes too high, and at other times too low with reference to the state of the country. It was therefore more advisable to adopt a scale of duties, which should vary in a relative proportion to the state of the country. He moved that—“Whenever the average price of wheat made up and published in manner required by law, shall be 60s., and under 61s. per quarter, the duty shall be for one quarter £1. And in respect of every integral shilling, by which such price shall be above 60s., such duty shall be decreased by 2s., until such price shall be 70s. Whenever such price shall be at or above 70s., the duty shall be for every quarter Is. Whenever such price shall be under 60s., and not under 59s., the duty shall be for every quarter £1. 2s. And in respect of each integral shilling, or any part of each integral shilling, by which such price shall be tinder 59s., such duty shall be increased by 2s.” Mr. Canning moved resolutions similar to the above on barley, oats, rye, peas, beans, wheat-meal, and flour, oatmeal, maize, &c. If the produce of, and imported from any British possession in North America, or elsewhere out of Europe, he moved that wheat should be admitted at 5s. per quarter, until the price of British wheat should be 65s. per quarter; and that whenever such price should be at or

above 65s., the duty should be for every quarter only 6d. Similar resolutions were also moved on other grains coming from the same parts of the world. Mr. Canning's last resolution on this subject was, "That it is the opinion of this committee, that all the said duties shall be regulated and determined from week to week by the average prices of corn, made up in the manner required by law; which prices shall, at the several ports of the United Kingdom, determine the several rates of the said duties for and during the week next after the receipt of the proper certificates of such average prices at such ports respectively." The debate on these resolutions was postponed for a week, that every appearance of precipitancy in such an important measure might be avoided. When the discussion was resumed, the motion for the house going into committee was opposed by Lord Clive, Sir E. Knatchbull, and other leading members of the landed interest. Their opposition rested on the grounds that domestic agriculture was entitled to all the protection which parliament could give it, even in the shape of a prohibition; that it was unjust to expose the home-grown, oppressed with taxes, and obliged to purchase costly labour, to a competition with the farmers of foreign countries, where taxation was light and labour cheap; that the plan was only experimental in its nature, in a matter where all experiment was mischief; that its effect would be to reduce prices much below what could be considered a fair remunerating price to the grower; and that, while it thus deprived the agriculturist even of the imperfect protection which he at present enjoyed, it would ultimately prove injurious to the public welfare, by throwing poor lands out of cultivation, thus leaving the country at every moment dependent for its food on foreigners. The chancellor of the exchequer and Mr. Peel replied, and the opposition to the speaker's leaving the chair was not pressed to a division. In the committee, however, an amendment was moved to the effect of raising the medium price by taking 64s. instead of 60s. as the point at which what might be considered the prohibitory duty of 20s. should attach, on which the house divided. But this was lost; and an amendment, proposed by Mr. Whitmore, for an exactly opposite purpose, namely, to reduce the medium price at which the duty of 20s. should attach, shared the same fate. During the progress of the bill through the committee other alterations were likewise proposed, almost all tending to the benefit of the home grower. Thus it was proposed to raise the medium price of rye, peas, and beans, from 35s. to 40s.; to lower the quantity of oatmeal, on which, as being equivalent to a quarter of oats, a given duty should be paid from one hundred and ninety lbs. to one hundred and seventy-six lbs.; and a similar attempt was made to raise the duty on wheat-flour. All these amendments were lost; but ministers themselves, from the representations of county meetings both in England and Scotland, raised the medium price of barley to 32s., and the duty to 12s.; and the medium price of oats from 21s. to 25s., and the duty to 8s. This concession to the agriculturists gave great offence to those who advocated free trade. Mr. Wood told ministers that they had allowed themselves to be bullied by them; to which Mr. Peel calmly answered, that he did not see how a proper and justifiable addition of 2s. to the price of barley could require such an extravagant expenditure of indignation and abuse. The report was brought up on the 27th of March; and the resolutions were carried, after a division on an amendment moved by Mr. Hume. A bill founded on them was brought in; and on the second reading the opposition to it on the part of the landed interest was renewed with undiminished

hostility. Sir Thomas Lethbridge described the bill as one which ought to be entitled, “An act for the more effectual encouragement of speculation in the corn-trade, the more rapid diminution of the growth of grain in Great Britain, and the better encouragement of the growth of grain in other countries for the supply of the British market.” He moved as an amendment, that the bill should be read a second time on that day six months; and its supporters gave ministers to understand that the success of the bill would deprive them, in regard to certain other questions connected with expenditure, of the customary support of their most valued friends. If the price of corn was reduced, they said, everything else ought equally to be reduced. Were ministers then ready, they asked, to reduce the taxes? The defence of the bill was chiefly undertaken by Mr. Grant, the vice-president of the board of trade, who entered into an elaborate view of the whole question. Possessing, as the landowners did, the law of 1815, it was necessary, he said, to show some good reason for the change proposed; and he found a most satisfactory reason in the fact that the law had failed in every one of the objects which had been contemplated in its enactment. The intention of that law had been to effect three objects; namely, uniformity of price, protection to the farmer, and independence of foreign supplies; but it was notorious that the law had not answered any one of these purposes. The amendment was pressed to a division; and the second reading of the bill was carried by a majority of two hundred and forty-three to seventy-eight. It subsequently passed a committee with no other alteration than a clause, authorizing the king to prohibit, by an order in council, the importation of grain from any country where British vessels should be subject to a higher duty than was imposed on the vessels of such country coming to British ports. The bill was finally read a third time, and passed on the 12th of April, on which day the house adjourned for the Easter holidays.

DISSOLUTION OF THE MINISTRY.

About the middle of February the Earl of Liverpool was suddenly attacked by a paralytic stroke. By the end of March his case became hopeless, and Mr. Canning was summoned at that time by the king to Windsor. It was well known that dissensions existed in the cabinet, and that serious difficulties were created by a large portion of it, hostile in the highest degree to Mr. Canning. At the same time a majority of the commons, as well as of the people at large, called upon him to take up the mantle of the premier, and to direct the councils of Great Britain. Mr. Canning was called to this interview with the king merely in his capacity of privy-counsellor, to assist the king in the reconstruction of the cabinet. He recommended that a ministry should be formed unanimous in the rejection of Catholic emancipation; to forward which arrangement he professed his own willingness to retire from office. This advice had the appearance of great disinterestedness and self-denial; but Mr. Canning must have known that it was utterly impracticable: those, indeed, on whom it would have thrown the responsibility of government saw the embarrassment such an arrangement would produce, and instantly rejected it. His majesty now proposed that the plan of administration should be unchanged; and that some anti-Catholic peer should be appointed premier, to prevent such increase of adherents to the Catholic cause as a minister of that rank, being its known advocate, would necessarily promote. To this arrangement, however, Mr. Canning objected, declaring that he would never degrade

himself by forming part of an administration which considered a person entertaining those views which he entertained concerning the Catholic question as disqualified to fill the highest office in the state. By this declaration, in effect, Mr. Canning made known to the king that his services could only be secured by the highest office; and it seems quite clear from other circumstances that such was his aim. But this resolution was the cause of breaking up the Liverpool cabinet. At the same time Mr. Canning obtained the object of his ambition: aided by the general voice, he was made premier. His exaltation, however, was the signal of retreat to other members of the cabinet. Mr. Peel had previously declared that if such an event took place he should decline office; and Lord Eldon resigned, ostensibly on account of his advanced age, but in reality on Mr. Peel's principles, namely, that he could not co-operate with a friend to Catholic emancipation as premier. On the 12th of April the king had received, in addition to these, the resignations, also, the Duke of Wellington, and Lords Bexley, Westmoreland, and Bathurst. Nevertheless, the king confirmed the appointment of Mr. Canning; and it was announced in the house of commons on the same evening, where it was received with deafening shouts of applause. Mr. Canning now proceeded to reconstruct the cabinet. The new ministers were, the Duke of Clarence, as lord high-admiral of England; Lord Anglesea, as master-general of the ordnance, with a seat in the cabinet; Lord Dudley, Mr. Sturges Bourne, and Mr. Robinson, nominated respectively for the foreign, home, and colonial departments; the Duke of Devonshire, as lord-chamberlain; the Duke of Portland, as privy-seal; and Lord Harrowby, as president of the council. Lord Bexley retracted his resignation and retained office; and Lord Palmerston, with Messrs. Huskisson and Wynne, likewise remained in the cabinet. Sir John Leach, Sir Anthony Hart, and Sir James Scarlett, were respectively made master of the rolls, vice-chancellor, and attorney-general. Mr. Canning occupied the two offices of first lord of the treasury and chancellor of the exchequer. A negociation had been opened with the Marquis of Lansdowne to supply several places; but no official appointments resulted from it, although a large body of Whigs offered their support to the administration. The new ministry was gazetted on the 27th of April; and on the 30th his majesty held a court, at which Lords Eldon, Westmoreland, and Bathurst, as well as Mr. Peel, severally had audiences to resign their seals of office; and the new ministers kissed hands on their appointments. Mr. Canning was loudly cheered by the populace in going to and returning from the palace; but he soon discovered that his high office was not a bed of roses. "The premiership had for twelve years been a bed of slumber; it now fell into the hands of one who made it a bed of feverish anxiety and bitter wakefulness,—George Canning, the first debater, the most dexterous politician, and the happiest wit of the house; the most perplexed, unhappy, and disappointed of ministers."

REASSEMBLING OF PARLIAMENT.

The house of commons reassembled on the 1st of May. So much time, however, had been lost through the dissolution of the old administration, and the hostility of parties now consumed so much time, that very little business was completed during the session. At its meeting the public were eager to learn something of the causes which had separated men who had acted so long together in good and in evil report, and which had accomplished an union between parties and individuals whose contest

had generally been a war to the death. The public had not to remain long on the tip-toe of expectation, for no sooner had the house met than the strife of words commenced.

EXPLANATIONS OF MEMBERS, AND HOSTILITY TO THE MINISTRY.

On the motion that a new writ should issue for the borough of Ashburton, for the election of a member in place of Mr. S. Bourne, Mr. Peel said, that as the motion was connected with the succession to that office which he had resigned, he trusted that the house would allow him the opportunity of explaining the grounds on which he had retired from the situation of secretary of state, disclaiming at the same time all intention of opposing the new government, and carrying himself free from every appearance of a factious spirit. He remarked:—"I retired from office because, from the first moment of my public life, I have taken an active and decided part on a great and vital question, that of the extension of political privileges to the Roman Catholics. For eighteen years I have constantly offered an uncompromising, but, I hope, a temperate, fair, and constitutional resistance to every proposition for granting to them any further concessions. My opposition is founded on principle. I think the continuance of those bars which prevent the acquisition of political power by the Catholics necessary for the maintenance of the constitution, and for the interests of the established church. It is not merely that my honourable friend differs in opinion from me on this important question, but the change in administration occasions the transfer of all that influence and power which belongs to the office of a prime minister into the hands of one who will use it for the purpose of forwarding an object which I have always resisted. It is not a transfer of that influence and power from one ordinary man to another ordinary man, but from the most able opponent of the Catholic claims to their most zealous and eloquent advocate." Mr. Peel then vindicated the course taken by his late colleagues in resigning office; the act, he said, was "a splendid example of disinterested conduct to all public men." He vindicated them from the charge of acting in concert, or in the spirit of cabal; declaring that he not only did not hold any communication with the lord-chancellor, as had been said, but that he did not even know hip lordship's intentions The very first person, he said, to whom I stated my inability to acquiesce in the appointment of my right honourable friend as prime minister, was my right honourable friend himself; and I did not then known the intention of any other member of the administration. He added:—"A separation from my right honourable friend, with whom I have acted so cordially on every point but one, is to me a source of deep regret, mitigated, however, in some degree by the recollection that I have done everything becoming my character to prevent it. I retire from the service of my sovereign without any personal regret, except upon one point, namely, that I can no longer avail myself of those opportunities which office afforded of introducing a system of improvement into the existing laws. To effect that object is the chief desire of my life; and I have the satisfaction of reflecting that, during the five years I have held the office of home-secretary, every institution coming under my immediate cognizance has been subject to such reforms as were considered advantageous and useful. I have likewise the satisfaction of recollecting that every law which I found on the statute-book at my entrance into office, imposing extraordinary restrictions on the liberties of the

subject, has been either modified or altogether repealed. I may be a Tory, but I have the satisfaction of observing that such has been my conduct. Tory, as I am, it is gratifying to me to reflect that no law stands on the statute-book, in connection with my name, which has not for its object the mitigation of the severity of the criminal law, and the prevention of any abuse in the administration of justice." This speech was received with loud cheers, and elicited much applause from Mr. Brougham, who at the same time declared his determination to support the policy of the new administration. On the contrary, Mr. Dawson, a brother-in-law to Mr. Peel, and late under-secretary for the home department, damaged his reputation by his explanation, inasmuch as he allowed himself to get into a passion with the premier. Mr. Dawson insisted that Mr. Canning was bound to declare immediately what he intended to do with the Catholic question, and also to bring it forward without delay. In reply Mr. Canning said, that throughout a continued intercourse with Mr. Peel he had uniformly found his conduct distinguished by the same feeling and high principle which were so strongly pourtrayed in the speech he had just delivered; he had behaved, he said, throughout with manliness and candour. He continued:—"The house is greatly mistaken if they imagine my situation to be one of gratified ambition. From the beginning of the discussions on the Catholic claims I felt that the separation of my honourable friend and myself was inevitable, and not far remote. Would to God I could now persuade myself that his retirement will be but for a short time! Had the necessity which has made the retirement of one of as inevitable been left in my hands, my decision would have been for my own resignation, and against that of my right honourable friend. My first object was to quit office; my next to remain in it, with all my old colleagues exactly—exactly on the same terms as usual regarding this very Catholic question." Mr. Canning then went into a long detail concerning the circumstances which preceded his appointment; and he concluded with saying,—"I sit where I now do by no seeking of my own. I proposed at first my own exclusion: it was not accepted. Then conditions were offered to me, which I refused, because they were accompanied by an admission of my own disqualification, to which if I had submitted, I should have been for ever degraded. In the year 1822 I was appointed to an office fraught with wealth, honour, and ambition. From that office I was called, not on my own seeking, but contrary to my own wish; and I made a sacrifice—a sacrifice, be it remembered, of no inconsiderable nature to a poor man—and the offer of a share in the administration was made to me without any stipulation. But if that offer had been made with this condition, that, if the highest place in the administration should become vacant, the opinions which I held on the Catholic question were to be a bar to my succeeding to it, I would turn the offer back with the disdain with which I turned back that of serving under a Protestant premier, as the badge of my Helotism, and the condition of my place." The only parties left to explain their conduct were those members of opposition who had quitted their former station and were settled beside the new ministry. This duty was discharged by Sir Francis Burdett and Mr. Brougham. Their support was defended by Sir Francis as likely to promote enlightened principles of government both at home and abroad, and especially the cause of religious liberty. He had no doubt but the country would soon be operated upon by sentiments of sound policy, justice, and liberality. Mr. Brougham maintained that he and his party, in supporting the present ministry, were acting consistently, as

well as disinterestedly. For himself, he said, he had quitted a situation, eminent beyond his hopes or merits, on the opposition benches, where he was surrounded by one of the largest, one of the most honourable, and one of the most disinterested oppositions ever known in the house, an opposition consisting of men who do what they think best for their country; though in doing so they should feel sure that they were helping to confirm their adversaries in office. “I have quitted this station, enough to satisfy the ambition of the proudest man, under arrangements which made my own acceptance of office impossible. My opinions on foreign and domestic policy have led me to this step with the sincere desire of furnishing a useful assistance to the liberal sentiments of Mr. Canning—including the Irish question. Not that I am for giving it that prominent situation in the public councils which is required by some; but I wished that it should derive every possible advantage from the junction of the two parties which have divided the house and the country, but are now united in a cordial, hearty, and uniform support of such measures as should be deemed best for the country.”

The house of lords met on the 2nd of May; and in that branch of the legislature more explanations were given than in the house of commons. On the first opportunity Lord Eldon declared that the accusations made against him, of having attempted an unconstitutional dictation to his sovereign, was a base and scandalous falsehood. His opinion was, and always had been, that if the claims of the Catholics were conceded, there was an end of the religious liberties of this country, and that with its religious liberties its civil freedom would perish. Holding such opinions as these it was impossible for him to coincide with the views of the new minister, whether those views were immediately to be carried into execution, or suspended for the better securing of his purpose. Could he, he asked, honestly remain in office under an administration formed on principles at variance with his own? He could not allow that the new administration had been formed on principles similar to that of Lord Liverpool. That nobleman had been a zealous, honest, and candid opponent of the Catholic claims; but the present premier would be as zealous in supporting them. As to the mode of his resignation, his lordship wholly disclaimed the imputation of having concerted it with Mr. Peel; that gentleman, for whom he entertained the highest regard and esteem, knew nothing about his sending in his resignation; and he believed the same to be the case with every other minister who had retired. As the retirement of the Duke of Wellington, not only from the administration, but from the command of the army, which was not a cabinet office, seemed to indicate hostility of a more decided character than that of any other seceder, it had excited greater interest. On both these points his grace entered into a full and manly explanation. After adverting to the press which had endeavoured to blacken his character, he remarked, that he was not requested to come and receive explanations concerning evident omissions in the letter first sent to him, nor was he referred to any person for information on these points; although, as he afterwards learned, his colleagues had been invited to go to the minister, and receive any explanations which they might require, or the minister himself had gone to them. Still he would not let any pique of this kind stop an amicable communication, and in that spirit he carried on his correspondence, and wished to contrive means of continuing in his majesty’s

councils. When, however, he found that the right honourable gentleman was to be at the head of affairs, he doubted whether he could, consistently with his principles, join the administration; and under these circumstances he declined office. He considered that the principles of Lord Liverpool's policy had been abandoned, and that the measures of a government constituted on the principles of Mr. Canning's sentiments would be viewed with suspicion by foreign governments, and would give no satisfaction to the country; and therefore he requested Mr. Canning to communicate to his majesty that he wished to be excused from forming a part of the new cabinet. Would he not, he asked, have degraded himself, and deceived the public, if he had sat in a cabinet with a gentleman at its head whom he felt bound to oppose? It was no answer to tell him that the present cabinet acted upon the same principles with that of which Lord Liverpool had been at the head. The two cabinets materially differed: that of Lord Liverpool was formed on the principle of maintaining the laws as they now were, whilst that of Mr. Canning was founded on the principle of subverting them. "Those," remarked his grace, "who formed part of Lord Liverpool's cabinet knew well what it was to which they pledged themselves, for they knew that his lordship was conscientiously opposed to all changes in the existing form of government; but those who coalesced with Mr. Canning had no idea how far their coalition was to carry them,—for he was the most able, active, and zealous partisan of those changes with which the country was at present threatened. The principles of the noble earl were principles by which any man might safely abide; the principles of Mr. Canning fluctuate daily, and depend upon transitory reasons of temporary expediency. These are the conscientious reasons of my resignation." As for the absurd calumny, that he had threatened the king with his resignation unless he was made prime minister, the duke said it hardly deserved an answer. "Could any man believe," asked his grace, "that after I had raised myself to the command of the army, I would have given it up for any but conscientious reasons? I say, raised myself, because I know that, whatever his majesty's kindness had been towards me, he could not have exalted me through all the grades of military rank to the very highest if I had not rendered him and my country some service of which he entertained a high sense. Will any man then believe that when I was in a situation which enabled me to recommend to the notice of his majesty all my former friends and companions in arms, and to reward them according to their merits for the exertions which they had formerly made under my command in the field, I would voluntarily resign a situation so consonant to my feelings and habits for the mere empty ambition of being placed at the head of the government?" In regard to his resignation of the command of the army, his grace said, that although it was not a cabinet office, yet it was one which placed its possessor in a constant and confidential relation with the king and his government. With the prime minister the commander-in-chief is in communication every day, he has not a control even over the army, the chief direction of which is placed in the minister's hands; at the same time the premier himself cannot withdraw any part of the army from a foreign station without consulting the commander-in-chief; he cannot make up his budget, or introduce any reform into the organization of the army without seeking his opinion. No political sentiments, however, would have prevented him from retaining this office under ordinary circumstances, but from the tone and tenor of the communications he had received

from his majesty, from the nature of the invitation given to him by the right; honourable gentleman in his first letter, and from the contents of the last, which he had received from Mr. Canning by his majesty's commands, he saw that he could not remain with credit to himself or advantage to the country: his line of conduct had not been hastily adopted, though he had been wantonly and unjustly abused. The other seceding peers justified their retirement generally on the same ground of political principles which had been taken by the Duke of Wellington, except that Lord Melville and Lord Bathurst expressed an opinion, that without such men as his grace, Lord Eldon, and Mr. Peel, no administration could be formed possessing sufficient stability and capacity for the government of the country. The task of defending the new administration fell to the lot of Lord Goderich, who declared that, so far from casting any imputation of conspiracy among, and cabal on his former colleagues, he believed that if there had been more communication among them, much of the mischief and disorder which had occurred might have been prevented. If the government was not constituted in a satisfactory manner, it was not the fault of either himself or his honourable and noble friends. Mr. Canning had sought to keep the elements of the late ministry together; but they had fallen away: and was he to say to his majesty, "I will run away, and leave you in such a predicament as no sovereign was ever placed in before?" The Marquis of Lansdowne finally explained the principles, and defended the propriety of the coalition of parties; and he justified it on the grounds which had been made in the lower house—the identity between the principles of his party and the spirit of the measures which government had for some time been pursuing, in regard both to foreign and domestic policy. From his statement it appeared that the overtures of alliance had come under the sanction of the king from the ministry; for, he said, when the individuals with whom the formation of a government rested brought to him his majesty's commands, he felt it no less his duty than his interest maturely to consider them, and that after this consideration he felt it his duty to obey them. The union which had taken place, he said, was not the result of a sudden impulse; for three years ago he had supported the just views of government in repairing the finances, widening the resources, improving the commerce and navigation of the country, and in cultivating relations of amity and friendship with that new world whose treasures were now opening to them. In conclusion, he admitted in their full extent the reasons which had been given by the noble lords for their several resignations, and the statements which they had made in accounting for that remarkable coincidence; but he could not help expressing his surprise that government had been able to go on so long, being conducted, as it now appeared, by ministers who did not think proper to communicate with one another upon the most important question which could be agitated among them. Other noble lords, as the Earls of Mansfield and Winchilsea, and Lord Ellenborough, expressed their determined hostility to the new government, and a total want of confidence in its leader. Lord Ellenborough remarked, that it appeared clear to him, and he believed to others, that some deceit was about to be practised. Either his majesty, who had permitted this administration to be formed with the understanding that the Catholic question was to be given up, was deceived, or the hopes held out to Ireland, that the new administration was to extend to that country the peace and tranquillity which that boon alone could bestow, were fallacious. Earls Mansfield and Winchilsea

expressed a determination of bringing the principles of the new cabinet at once to the test; and gave notice of motions on the Catholic question and the state of the nation. Neither of these motions, however, was ever brought to a hearing; and the retired ministers exhibited as little concert out of office as they had displayed in their resignation. In one matter, however, they were all agreed, that of hostility to the present government. In both houses a desultory warfare was carried on against it: single individuals taking upon themselves at intervals the task of castigating its members. In the commons Sir Thomas Lethbridge chiefly undertook this task; but, although he performed it with much pertinacity, he was unfortunately deficient in speech. In the lords the most powerful assistance on the side of the seceders was found in Lord Grey, who announced his want of confidence in the ministry. He gave, his lordship said, all due credit to those members of his party who coalesced with that ministry for disinterestedness, but he could see nothing in it which called for his support. It was said to be formed on the principle of Lord Liverpool’s government. That principle consisted in the exclusion of the Catholic question: was the Catholic question then not to be made a cabinet measure? If so, his determination was taken; it would prevent him from giving support to the government. His lordship then reviewed the whole political career of Mr. Canning, and expressed himself opposed to every part of it; attacking with peculiar severity the noted declaration of the premier of calling the republics of the new world into existence. It was true, he said, that Mr. Canning was called a friend of civil and religious liberty, and that he supported Catholic emancipation, at the same time he proclaimed his opposition to a repeal of the test and corporation acts. He would not dwell on his known opposition to parliamentary reform; that question had not been so uniformly supported, nor had public opinion been so expressed in its favour as that any one should make it a _sine qua non_ in joining an administration; but he could not conceal from himself the fact, that within a few years numerous laws had been passed hostile to civil liberty, every one of which had received the right honourable gentleman’s dissent. Unless he could retrace his steps, and erase some that remained in the statute-book, no confidence ought to be reposed in him as a friend to civil liberty. His lordship added, that he differed from the known opponents of government on most questions as widely as the poles were asunder; but neither could he join those who supported it: the only course, therefore, left him was to pursue the same principles which he professed through life. When the measures of government agreed with those principles he would support them; when repugnant, they should have his opposition.

OPINIONS OF HIS MAJESTY ON THE CATHOLIC QUESTION.

{GEORGE IV. 1827—1828}

The question of Catholic emancipation was soon set at rest for the present. In an interview which the Archbishop of Canterbury and the Bishop of London had with his majesty, soon after Mr. Canning’s elevation, he stated “that he was as firmly fixed as his father had been, in opposition to the pretensions of the papists.” This declaration was made public in a meeting of prelates at Lambeth-palace, and announced by the bishop in the house of lords, so that it was evident that this was a measure not to be

forced. On this declaration, indeed, the motions previously named, which would virtually have been a renewal of the discussion, were withdrawn, and the Catholic question was thereby laid aside for a time. The test acts, no less than Catholic emancipation had been a principal bond of union among the opposition; but neither was this urged; so that every subject which could have brought any party in the coalition to the test, was avoided. Under these circumstances, towards the close of the session some of the Whigs took office. Thus Lord Lansdowne was appointed secretary for the home department; Lord Carlisle, privy-seal; and Mr. Tierney, master of the mint. But about this time the opposition received a more regular form and abler direction. Hitherto Mr. Peel had acted with moderation and urbanity, but he now gave indications of decided hostility. In discovering this Mr. Canning said, that he rejoiced to see the standard openly raised: he always preferred direct hostility to hollow professions or pretended neutrality.

MOTION ON THE CHANCELLOR'S JURISDICTION IN BANKRUPTCY.

On the 22nd of May, Mr. Michael Angelo Taylor again brought the subject of delays in the court of chancery before the commons. The delays, he said, which disgraced that court, and the arrears of business under which it was sinking, were the consequences of the system of the court itself. An additional judge had in a former year been appointed, and yet the arrear of business had not been extinguished. To adopt the language of Mr. Shadwell, not three angels could discharge the duties of the office of lord-chancellor, constituted as that office now was. He proposed, therefore, to withdraw all matters of bankruptcy from the great seal: matters which had not originally been subject to that jurisdiction, but had been made so by parliament, and which were of themselves sufficient to occupy the attention of any single judge. He moved, therefore, "that this house do resolve itself into a committee of the whole house to consider of the statute of the 13th year of Elizabeth, and of certain subsequent statutes, which gave to the lord-chancellor of England jurisdiction in matters of bankruptcy." This motion was opposed by the attorney-general, Mr. Brougham, and Dr. Lushington, the former of whom vindicated the present system at great length. It was an unsound principle, he said, to make places fit to particular men. On the contrary, they ought to seek men fit to particular places; and it would be easy to show that, with three efficient judges, such as they had now got, there was not the least necessity of subtracting from the court of chancery any part of the jurisdiction which it at present possessed. He argued that there were more cases in the court of chancery than could be considered during the year, and that with the present judges in the court of chancery all those in arrear would be speedily dismissed. Mr. D. W. Harvey supported the motion, and entered into an exposition of the mischiefs of the bankrupt-law as at present administered by the commissioners, whom he described as being in general, either young men possessing capacity without experience, or briefless old men possessing experience without capacity, and to whom the appointment was an act of charity. Above all he complained of the inconsistency of those who now pretended that all the evils would be removed by the mere change of men, while the system must remain unchanged. All the splendid denunciations, he said, which had thrilled through every bosom in that house and in the country, were to be considered only as party tactics, were to be looked upon as

the result of disappointed ambition. Professional advancement being obtained, those who had been most loud in their attacks upon the late Lord-chancellor Eldon, had now become the warmest eulogists of his merits. The house was now told, that, if in the vehemence of debate, anything had been said which was calculated to injure his character, it ought to be considered as nothing, as the mere accidental effusion of party spirit. It fell to the lot of Mr. Brougham to defend certain members from this charge of political delinquency, which he did with his usual tact, It had been said, he remarked, that a wondrous change was now visible in various members of parliament; that they were all opposed to the alterations in the court of chancery which they had formerly advocated; and that now being in office they had no objection to the arrangements of that court, though out of office they had poured forth against them torrents of fiery indignation. It was assumed, also, for the purpose of an unfair attack, that he himself, and those who thought with him, had changed their opinions on the subject. Now on what measure of government, on what chapter of policy, on what officer of state, on what judge of the land, had his opinions or principles changed? It had been said by those who contended that Lord Eldon was not to blame for the arrears in the court, that no man could get through the business. But if the business of the court had increased, the means of disposing it had likewise increased by the establishment of the vice-chancellor’s court. But instead of having an efficient chancellor, vice-chancellor, and master of the rolls, there had always been either an unfit vice-chancellor, or an unfit master of the rolls, which left the court in the same situation as before the vice-chancellor’s bill passed. But it was different now: they had as efficient a master of the rolls as could be required; and of the vice-chancellor he would say, that he had been one of the most experienced practitioners in the court of chancery. The new lord chancellor, also, was a person of great legal talents, and of an independent mind. From all this, he had a confident expectation that the business of the court would be despatched in proper time. On a division the motion was lost by a majority of one hundred and thirty-four against thirty-seven.

MOTIONS REGARDING THE STAMP-DUTY AND CHEAP PUBLICATIONS.

During the troubled state of the country in 1819 and 1820, certain legislative measures had been adopted, known by the name of the Six Acts, for the purpose of checking the course of sedition. Some of these had expired by the lapse of time; but one, which subjected cheap periodicals issued for the purposes of agitation to a stamp-duty still remained on the statute-book. On the 31st of May, Mr. Hume brought forward a motion for the repeal of this statute. He had intended, he said, to have made this motion during the preceding session, but he congratulated himself upon the delay, as the changes which had taken place in the government were favourable to the question he now advocated. But Mr. Hume soon found himself mistaken. Mr. Canning and others when in opposition had condemned this statute as a tyrannical and unwarrantable attack against the liberty of the press; but to a man they now resisted the motion, and abused and ridiculed the mover. It was lost by a majority of one hundred and twenty against ten.

THE CORN-LAW QUESTION.

The new corn-law, which had been sent to the house of lords before the recess, only furnished them with an opportunity of triumph. It had originated in the late cabinet of which the Duke of Wellington was a member; but notwithstanding this, he moved an amendment, prohibiting the removal of foreign corn from bond until the price of wheat should have reached sixty-six shillings per quarter. This proposal, though at variance with the principle of the bill, which provided for the admission of corn at all times on payment of a duty proportionate to the average market price, was supported by the high Tory party and peers, who preferred their own interests as landowners, so that ministers were left in a minority of one hundred and twenty-two to one hundred and thirty-three. The consequence of this amendment was, that, when the bill returned to the commons, ministers rejected it altogether; it being fatal, they said, to the principle of the bill, and inconsistent with its application. As for the supporters of the amendment they were abused both within and without the walls of St. Stephen, as men who had sacrificed the public good to forward the purposes of mere faction. Even Mr. Canning, imagining that the opposition was directed personally against himself, described the Duke of Wellington as a tool in the hands of more crafty intriguers. He could not, he said, exclude from his consideration that even so great a man as the Duke of Wellington had been made an instrument in the hands of others on that occasion. As to the members by which that amendment was carried, he asserted, that he believed it impossible that such discordant materials could have been brought together by a conviction of its merits. He looked upon the union not as arising from the merits of the question, but from some deep-rooted design to produce another effect in the other house, or that house, or elsewhere. There was no reason, however, to believe that this step arose from the spirit of faction as a whole; and Mr. Canning’s language was, to say the least of it, indiscreet; language, which pique and provocation might account for, but which neither sound sense nor good feeling could justify. In consequence of the failure of this bill it became necessary to prevent a recurrence of that alarm which had arisen last year on account of scarcity. A temporary bill was therefore prepared and suffered to pass both houses, permitting the release of foreign corn from bond, on the same scale of duties as that proposed by the measure which had been abandoned.

FINANCIAL STATEMENTS.

Mr. Canning brought forward the budget on the 1st of June. The method which he adopted in his statement, was, to state first the financial situation of the country at the end of the preceding year; then to combine and compare that one year with the several years which had preceded it; and finally, to suggest the provision to be made for the service of the present year, and the grounds on which he felt himself justified in looking forward with confidence to the result. By a review of income and expenditure during the four past years, it appeared from his statements, that, on an expenditure of £230,000,000, including the annual sinking-fund of £5,000,000, there was an apparent deficiency of £1,265,687. Against this, however, was to be placed the amount of advances from the exchequer, either in loans to carry on public works, or for beneficial purchases, which the public had in possession as available securities for repayment. The amount of excess in these advances for the four years, was near £2,000,000, so that in fact there remained about £1,100,000, as a real surplus of

income beyond expenditure. Mr. Canning suggested the propriety of providing for the temporary deficiency by an issue of exchequer-bills. The supplies which he demanded for the year amounted to £57,500,000, including the sinking-fund; and the various items of which they were composed were all voted without opposition. At the conclusion of his statements Mr. Canning said, that he intended to bring the expenditure of the country to the lowest possible scale consistent with the public service, and that it was the determination of government to apply their best efforts to the matter, and to call the house into council on the subject. His financial statements, indeed, were made with such ability and candour, that they secured for him the confidence both of the house and the country.

CORRUPT BOROUGHS.

As is usual in the first session of a new parliament, the reports of election-committees disclosed scenes of gross bribery. Samples of corruption were brought before the house by Colonel Maberly and Mr. Sykes from the boroughs of Northampton and Leicester.

Enormous sums had been abstracted from corporation funds for the purpose of defraying the expenses of candidates for the boroughs. Colonel Maberly moved, with reference to the borough of Northampton, that a select committee be appointed to take into consideration the petition which had been presented to the house, complaining of the conduct of the corporation. The attorney-general, in reply, said, that if the case were really as it had been stated, and if the corporation had been guilty of the breach of trust mentioned, then there was an undoubted remedy in the court of chancery, and he argued that this was the ordinary and legal mode of obtaining redress in such cases. The motions, however, was supported by Messrs. Spring Rice, II. Gurney, and Abercromby, with Lords Althorp and Russell, on the ground that there was more in the case than the mere misapplication of funds. They argued that the purpose to which the funds had been misapplied directly affected the privileges and constitution of the house of commons; that the house would degrade itself if it sanctioned the attorney-general’s going before any court, whether of law or of equity, to obtain the decision of that court on the propriety or power of the house to interfere in cases of this nature, and that the case was a fitting one to be investigated by a committee. The application of money for such purposes found an advocate in Mr. Peel, who asked, that if corporation funds should not be spent for any other than corporation purposes, what was to be said of that of London, which had recently voted £1000 to the Greeks? The real question before the house was, that supposing the corporation to have power to apply its funds to other than charitable purposes, had it a right to appropriate them to such a purpose as paying the legitimate expenses incurred in forwarding the election of a particular member of parliament? This was a question which merited deep consideration. Might a peer subscribe one, two, or five thousand pounds towards defraying such expenses?—might not a corporation do so too? He would not advise them to do it; but he was not prepared to say that in doing it they were acting illegally, or would be guilty of a breach of the privileges of the house of commons. He should suggest that a select committee be appointed simply to inquire into the payment, or engagements

for payment, of any sum for electioneering purposes, made by the corporation of Northampton at the last election, which suggestion was adopted. Concerning the borough of Leicester, Mr. Sykes moved that a select committee should be appointed “to take into consideration the petition from the borough of Leicester, to examine witnesses, and to report to the house thereon.” This motion was opposed by Messrs. C. Wynn and Peel, as a manifest attempt to evade the provisions of the Grenville Act, which might forthwith be repealed if motions of this nature were sanctioned. The petitioners, it was said, had taken legal advice on the subject, and finding that they had no case, they allowed the time limited by that act to elapse, and now demanded the special interference of the house. They found this mode of procedure more convenient than the former, under which they would have had to find security for costs in the event of the petition turning out to be frivolous, and would have been obliged at least to maintain their own witnesses. It was inconvenient, unjust, and degrading to the character of the house, it was asserted, to descend into the politics of borough elections, and that applications like this ought to be resisted. On the other hand, Sir Francis Burdett argued that if the petition were rejected, it would be viewed as indicating a want of that constitutional jealousy which should induce them to open their doors widely, instead of shutting them abruptly to complaints of this nature. The house, he said, was imperatively called on to investigate the circumstances connected with the offence. On a division, however, the motion was lost by a majority of ninety-two to sixty-eight.

A severer fate menaced some of the Cornish boroughs. Two of them appeared so pre-eminent in dishonesty, that the most determined advocates of the old system could not ward off retributive justice. A petition against the return for Penryn had been presented, and although corrupt practices could not be traced to the sitting members, yet the committee reported that the most gross and shameful bribery had prevailed. Mr. Legh Keck, chairman of the committee, was compelled by a sense of duty to move the following resolutions:—“That it appears to this house that the most notorious bribery and corruption were practised at the last election of members to serve in parliament for the borough of Penryn, and that such practices were not new or casual in the borough, the attention of the house having been called to similar practices in the years 1807 and 1819. That the said bribery and corruption deserved the most serious consideration of parliament. That leave be given to bring in a bill for the more effectual preventing of bribery and corruption in that borough.” These resolutions were agreed to; the sitting members for Penryn only raising their voices against it, and a bill was ordered to be brought in in accordance with the third resolution. This bill having been read a second time, the house proceeded to examine further evidence in proof of the corruption. In that evidence there was much of mere belief, and much prevarication on the part of some of the witnesses; but the house came to the conclusion that a clear case of bribery and corruption had been established. The grand point, therefore, to consider was, the punishment to be inflicted, or the remedy to be applied. On that subject there was a diversity of opinions. Mr. Keck proposed the extension of the franchise to the hundreds, while Lord John Russell contended that the borough, like that of Grampound, should be disfranchised altogether. He moved as an amendment, “that the borough of Penryn

shall be excluded hereafter from returning burgesses to serve in parliament." The original motion was supported by the ministry, who contended that though enough had been proved to call for the interference of the house, yet there was not sufficient to induce it to proceed to total disfranchisement. Mr. Canning remarked, that he thought it clear that a verdict of "guilty" must be given; but he did not think such a degree of guilt was established as would warrant the extinction of that which in its blameless exercise was a valuable possession, and the taking it entirely away from those who had exercised it innocently because others had abused it. He protested, however, against its being supposed that, in such a case as Grampound, he should feel any difficulty in erecting a new representation in lieu of that which might be taken away; and in giving his vote for the original motion, he would give it with reference to this particular case, avoiding the general question, and the general principles on which it was to be considered. The amendment was supported by Lords Althorp and Milton; by Messrs. Ferguson, Hobhouse, and Brougham; and by Sir John Newport. Such a case, they argued, had been made out that it would be an injustice to the constitution and to the principles on which the house had acted towards other places if Penryn were not disfranchised, and the right transferred elsewhere. The transfer of its privileges, they said, to the adjoining hundreds, would merely bestow them on a few wealthy individuals. On a division the amendment was carried by a majority of one hundred and twenty-four against sixty-nine.

A petition had been presented against the return for East Retford, and the committee had reported that the sitting members were not duly elected; that the election was void, and that bribery had been general and notorious. Similar resolutions to those in the case of Penryn were adopted, therefore, in regard to this borough. The house resolved that no new writ should issue until the evidence should have been taken into consideration; and the result of that consideration was, that leave was given for a bill of disfranchisement. The session, however, closed before any effective proceedings were taken for the disfranchisement of either of these boroughs; but Manchester was generally looked to as a recipient of the forfeited privileges of Penryn, and Birmingham was held out as the place to which the franchise of East Retford would be transferred.

During this session Lord Althorp obtained the appointment of a committee to inquire into the mode of taking the poll at county elections; and Colonel Davies obtained a similar one to inquire into the mode of taking the polls at elections of cities and boroughs. The object of this inquiry was to get rid, if possible, of the enormous expense of electing, whether in county, city, or borough; for in many cases, as matters stood, it was only men of large fortunes who could venture to stand candidates. Lord Althorp likewise brought in and carried a bill for the better prevention of corrupt practices at elections, and for diminishing the expenses. His object was to prevent substantial bribery from being perpetrated under the mask of giving employment, and therefore to deprive all persons of the right to vote who should be employed by a candidate at the election. It was notorious, he said, that at elections different nominal offices were created, to be filled by voters who were classed as plumpers, and received double the pay of split votes. The provisions of the bill, however, were not to apply to any real and fair agent of a candidate, but to those

who went under the spurious names of runners, flagmen, and musicians. On the suggestion of Mr. Spring Rice it was further determined to prohibit the distribution of riband and cockades. Both parts of the bill were opposed: the one as being unjust, and the other as frivolous; but the bill passed into a law. By its provision any person who, within six months before an election, or during an election, or within fourteen days after it, shall have been employed in the election as counsel, agent, attorney, poll-clerk, flagman, or in any other capacity, and shall have received in consideration of such employment any fee, place, or office, shall be incapable of voting at such elections; and that a penalty of £10 for each offence shall be inflicted upon every candidate, who, after the test of the writ, or if parliament be sitting, after the seat has become vacant, shall directly or indirectly give to any voter or inhabitant any cockade, riband, or any other mark of distinction. On the whole, therefore, a great step was taken this session towards the purification of elections; a branding mark, at least, was set upon shameless corruption.

THE GAME-LAWS.

During this session Lord Wharncliffe introduced a bill into the lords for altering the system of the game-laws. The provisions of this bill were threefold: first, it removed the absurd and contradictory qualifications of the old law, and substituted in their place the qualification of property, by permitting every proprietor to kill game on his own lands, whether great or small; secondly, it legalized the sale of game, as one great means of diminishing the temptations for poaching; and, thirdly, it mitigated the severity of the punishments provided by the existing law for certain offences against the game acts. This bill was allowed to be read a second time; but on the third reading it was lost by a majority of one. It had, however, scarcely been rejected when the Marquis of Salisbury introduced another, which proposed to empower all persons qualified by law to kill game to take out a licence, authorizing them to sell game to licensed dealers. This bill was likewise allowed to pass a second reading; but it was lost on a motion for the third reading by a majority of fifty-four to thirty-eight. One great alteration, however, was effected by a bill introduced by Lord Suffield, which abolished the practice of setting spring-guns and other engines of destruction for the preservation of game. This bill, which passed into a law, declared it to be a misdemeanour in any person to set a spring-gun, man-trap, or other engine calculated to kill, or inflict grievous injury, with the intent that it should destroy life, or occasion bodily harm to any trespasser or other person who might come into contact with it. An exception was made in favour of gins and traps for the destruction of vermin, and of guns placed in a dwelling-house between sunset and sunrise for the protection of that house. Scotland was excepted from the operation of the law; the six judges of the court of justiciary in that country having recently pronounced, in a case on which they had adjudicated of a man who had recently been killed by a spring-gun, that such killing, by the law of Scotland, is murder.

IMPROVEMENT OF THE CRIMINAL CODE.

Although out of office Mr. Peel still proceeded with his improvements of the criminal code. By his enlightened exertions five acts were passed, which consolidated into one body the whole law regarding offences against property, purified from an

incredible quantity of ancient rubbish, and advantageously simplified in all its arrangements. The first of these five acts repealed about one hundred and thirty-seven different statutes, wholly, or in part, commencing with the charter _De Foresta_ of Henry III., and ending with the session of 1826. The second statute removed doctrines which had hitherto been useless lumber in the statute-book, or laid down general rules applicable to the whole criminal code. It abolished _in toto_ the benefit of clergy in cases of felony; appointed certain punishment for offences to which no special statute affixed any particular penalty; relieved discharged prisoners from severe official expenses; and purified the law from a load of obscure and unnecessary verbiage. The third act contained the law of offences against property in its new and simplified form; bringing the various species of crime into one view; assigning to each its plain description, with its punishment; and removing distinctions which had frequently given rise to subtile and embarrassing doubts. It abolished the distinction between grand and petty larceny; defined the true nature of burglary; and removed many subtilties regarding possession, and the conversion of possession in the law of embezzlement, as well as in the distinctions of larceny and fraud. It also mitigated the rigour of the penal law, while it recognised four classes of punishments, the offences being distinctly set forth to which each was applicable. The first of these punishments was death: the second, transportation for life, or any term not less than seven years, with the alternative of imprisonment for not longer than four years, with public whipping; the third was transportation for any period under fourteen years, or imprisonment for three years and whipping; and the fourth was transportation for seven years, with the alternative of imprisonment for two years and whipping. The fourth statute comprised those offences which consisted of maliciously injuring the property of another. This act reserved capital punishment for arson, for the demolition of buildings or machinery by rioters, for showing false lights to a vessel, &c.; but left other kinds of injury to be repaid by transportation or imprisonment. Altogether the number of capital offences was considerably diminished; and in many cases a summary mode of proceeding was introduced, which was so far a limitation of trial by jury. The last statute regulated the redress to be sought from the hundred by persons whose property had been injured by rioters, and laid down the mode for applying for such remuneration.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 2nd of July. The speech was delivered by commission, and chiefly referred to the assurances of friendship from foreign powers; to directions which had been given for a review of the financial state of the country, with a view to a diminution of expenditure; to the revival of employment in the manufacturing districts; and to the corn-law question. On this latter subject the speech remarked:—“His majesty trusts that, although your deliberations on the corn-laws have not led, during the present session, to a permanent settlement of that important question, the consideration of it will be resumed by you early in the ensuing session, and that such an arrangement of it may finally be adopted as shall satisfy the reasonable wishes, and reconcile the substantial interests of all classes of his majesty’s subjects.”

DEATH OF MR. CANNING.

The close of this session was soon followed by an event which again dismembered the government, and disappointed all those hopes which the genius and enlightened principles of Mr. Canning had raised in the nation; an event, also, which taught an impressive lesson on the vanity and uncertainty of ambition. Immediately after the close of parliament Mr. Canning issued orders to the heads of different departments, that they should transmit to him accurate accounts of the expenses connected with their several establishments, with a view to their reduction. He had no sooner done this than he was visited by an attack of illness. His attack seemed to yield to medical treatment; and he went down to the beautiful seat of the Duke of Devonshire, at Chiswick, to seek tranquillity and a purer air. The fatigues and cares of office, however, had worn down his constitution, while the desertion and bitter hostility of his ministerial colleagues—men whom he had loved—acted on a frame naturally irritable and enfeebled, and hastened his dissolution. His disease returned; inflammation commenced, and proceeded with a violence and rapidity which defied all art; and on the 8th of August he expired in the same room where his predecessor, Charles James Fox, had drawn his last breath. He was buried in Westminster Abbey, at the foot of Mr. Pitt’s tomb, and his funeral, though private, was attended by a large concourse of noblemen and gentlemen, to whom the deceased was endeared, either by the ties of relationship or personal friendship. The public character of Mr. Canning is clearly unfolded in the altered policy of our government, both foreign and domestic, during his connexion with the Liverpool administration. His ambition was lofty and imperious, but it was coupled with noble ends—the glory of his own country, and the advancement, through her greatness, of the surrounding nations. He was anxious that all should benefit by her commercial prosperity and the blessings of her constitution. Perhaps no minister was ever more thoroughly influenced by the free spirit of the British constitution than he was, at least in the latter part of his career. He began life, indeed, on Tory principles; but he gradually imbibed that spirit, until at length he threw off the trammels of that oligarchy, and acted as a true patriot. When he found that the principles which he professed in his early years began to threaten the safety of the constitution he abandoned them as far as expedient; and conciliating his opponents, he availed himself of their assistance to carry on the measures which he devised for the welfare of his country. Some of these measures, as previous pages unfold, were carried; others were to have been brought forward in the lapse of time, had not death cut short his useful career. It has been truly said, that in him England regretted the most accomplished orator that the age had produced; and that the liberal portion of Europe mourned over the loss of his moral influence as a calamity to the world at large. He will be remembered in England as one who nobly defended the honour, and asserted the dignity of the country among nations, and as having made himself prime minister of England by the mere force of talent.

ADMINISTRATION OF LORD GODERICH.

It might have been expected that, on the death of Mr. Canning, his cabinet, which was composed of heterogeneous materials, and kept together by his influence, would have been broken up. Few changes, however, took place; and their effect was to

bring back some of Mr. Canning’s former friends into office. Lord Goderich became first lord of the treasury, and Mr. Huskisson succeeded to him in the colonial department. The Duke of Wellington re-accepted the command of the army, but without a seat in the cabinet. There was a difficulty in finding a chancellor of the exchequer; it was declined by Messrs. Tierney, Huskisson, and Sturges Bourne; but finally accepted by Mr. Hemes, who had been secretary of the treasury under Lord Liverpool’s administration. The nomination of Mr. Herries, who was brought up in the Vansittart school, was well nigh the cause of breaking up the cabinet. The Whigs objected to him on political grounds; and the Marquis of Lansdowne waited upon the king to tender his resignation. His chief objection, however, was, that he was said to have been a nominee of the king; and when it was explained that the recommendation came from Lord Goderich, and was accepted by his majesty, who was anxious to avoid the fatigue of new arrangements, his lordship consented to retain office. This new ministry, the third which the country had seen in the space of seven months, had within it, however, the seeds of its own dissolution; and, as will be seen, the year was scarcely out when it was dissolved.

REVIEW OF FOREIGN POLICY.

The foreign policy of Mr. Canning occasioned difficulties with which his successor was not able to contend. At this time, not only the commerce of the Levant was destroyed, but all Christendom was shocked by the atrocious cruelties exercised by the Turks in a war with the Greeks. Such a state of things could not be suffered long to exist; and when it was found that the Turkish court was resolved to pursue its own course, Great Britain, France, and Russia resolved to interfere. A treaty was signed between these three powers on the 6th of July, in this year, to defend Greece from the Sultan’s power. One of the articles of this treaty provided, that if the Ottoman Porte did not accept their intervention, the high contracting powers would establish commercial relations with Greece, and order the admirals commanding their naval forces to impose an armistice on the belligerents. Instructions were drawn up, which authorized those commanders to prevent the transmission of troops and supplies from Turkey or Egypt to Greece; but enjoined them to avoid hostilities unless the Turks should endeavour to force a passage. Despatches were sent at the same time to Constantinople and to the Greek government: and Colonel Cradock was sent to Alexandria to endeavour to persuade the pacha to withdraw his Egyptian army. It was arranged that a combined fleet should give effect to these resolutions, and two line-of-battle ships were sent to re-enforce Sir Edward Codrington. The French government, also, sent four ships of the line into the same seas, and Admiral Siniavin arrived at Spithead with a Russian squadron of eight sail of the line and eight frigates; half of which only, however, joined the confederates. But although thus menaced, the Reis Effendi would not listen to any terms. He would not even deign to receive such a communication as the treaty of the 6th of July; and when a copy was left on his sofa, he refused to answer it, or to admit any explanations. The Russian minister now proposed to starve the Divan into compliance by a joint blockade of the Bosphorus and Hellespont. The French minister entered into his views; but Lord Dudley objected on the part of England to such a step, as too violent. Negociations were in this state, when suddenly ominous sounds proceeded from the Bay of

Navarino. In that harbour the Turkish and Egyptian fleets were blockaded by the combined squadrons of England, France, and Russia, under the chief command of Sir Edward Codrington. The Greeks had readily accepted an armistice under the treaty; but Ibrahim Pasha not only refused its terms, but aggravated the miseries of war by devastating the country of Greece. The inhabitants were massacred; villages, vineyards and olive-trees, in which the principal riches of the nation consisted, destroyed. Irritated by such barbarity the allied admirals determined to enforce the armistice on Ibrahim. Their plan was to enter the harbour and renew their demands of an armistice, under the alternative, that, if he refused, they would attack and destroy his fleet. Their first movement towards the harbour was an hostile act. About noon on the 20th of October the combined fleets passed the batteries to take up their anchorage, formed in the order of two sailing lines: the British and French squadrons forming the starboard line, and the Russian squadron the lee line. As it was Admiral Codrington's object only to have the enemy's fleet within his grasp, and then, before laying hold of it, to make his propositions anew to Ibrahim, orders were given that not a gun should be fired unless the Turks should begin. These orders were strictly obeyed; but on seeing the approach of the allies, the Turkish commander concluded that they had come to attack them without any further ceremony, and therefore prepared for battle. As they approached, the Capitana Bey observed,—"The die is now cast; I told you the English would not be trifled with." Their flotilla was drawn up in a crescent with springs on its cables, and it consisted of seventy-nine ships of war, armed with 2,240 guns, beside those in the formidable batteries on shore. In point of strength the Turks had the advantage over the allies, as their ships amounted only to twenty-six, carrying 1,324 guns. The Turks, however, had only three two-deckers, while the allies had ten sail of the line, which greatly compensated for the discrepancy of strength. The fire commenced on the enemy's side; for when the British admiral despatched one of his pilots to the flag-ship of the Turkish commander, expressing an earnest desire to avoid all effusion of blood, the messenger was shot at and killed. The same vessel also soon after fired into the "Asia," and the conflict then became general. The battle continued with fury during four hours; the English bearing the brunt of the engagement. At the end of that time the Turkish and Egyptian fleets had disappeared: the Bay of Navarino was covered with their wrecks, and only a few of the smaller vessels escaped into the inner harbour. The carnage on board the Turkish ships was dreadful: nearly six thousand men had perished in the action. On the part of the allies the severest loss was sustained by the British squadron; having seventy-five killed, including Captain Bathurst of the "Genoa," and one hundred and ninety-seven wounded. The French, who emulated the skill and valour of the English, had forty-three killed and one hundred and seventeen wounded; and the Russians fifty-seven killed and one hundred and thirty-seven wounded. The scene of wreck and devastation on the side of the Turks was such as had not been witnessed since the battle of Lepanto: of about one hundred men-of-war and transports, about half were burnt, sunk, or driven on shore. The allies took no prizes, and detained no prisoners; and in the hour of vengeance they showed mercy by saving many of the Turkish sailors. At the time of the battle Ibrahim Pasha, was absent on a military excursion; but he returned in time to see the smoking remains of his fleet. It is said that he looked on the catastrophe with

complacency, as it extricated him from the dilemma in which he was placed between the sultan's orders and the mandates of the three great European powers. After the battle, the admiral entered into a fresh correspondence with the commanders; and after agreeing that hostilities should cease, the allied fleet quitted Navarino. The news of the disaster was received by the sultan as though he submitted to the will of fate: he heard it without dismay or loss of temper. He demanded, indeed, reparation for what he called a violation of the law of nations; but instead of sending the ambassadors to the Seven Towers, as had been the usual custom, he permitted them to return to their respective courts in safety. In Europe the news of the victory was heard with joy and gladness; but the feeling of exultation was in England confined to a minority. The Tories loudly exclaimed against this aggression upon the forces of an ancient ally, as a wanton act of perfidy, and as forwarding the designs of the Russian autocrat. As for the ministry, they appeared paralysed by the event; for they were afraid to take a manly line of defence, and were uncertain as to what course they ought to pursue. Finally, they virtually pronounced an opinion on the victory by rewarding the officers who achieved it; but they marred this action by despatching Admiral Sir John Gore to the Mediterranean, for the purpose of collecting information. By this vacillating conduct they gave their opponents an opportunity of taunting them with inconsistency. Before parliament met, however, and therefore before the question could be debated, the administration of Lord Goderich had become dissolved. At its dissolution it left England at war with the sultan, together with France and Russia; but the two former powers though united against him were still at heart his friends. Though Russia had been working through a long course of never-changing policy, to accomplish his ruin, they, though at present apparently the instruments of this ambition, were deeply interested in counteracting its designs.

CHAPTER XXXVIII.

{GEORGE IV. 1828—1829}

Duke of Wellington's Administration..... Meeting of Parliament..... Discussions and Explanations concerning the Dissolution of the Goderich Ministry, &c. Questions of Finance..... Motion for a Grant to the Family of Mr. Canning..... Financial Statement..... Repeal of the Test and Corporation Acts..... The Catholic Question..... Motion on the State of the Law, &c. Bills connected with the Election of Members of the House..... Corn-Law Question..... Divisions in the Cabinet..... Prorogation of Parliament..... Disturbances in Ireland..... Death of the Earl of Liverpool..... Foreign Policy.

DUKE OF WELLINGTON'S ADMINISTRATION.

{A.D. 1828}

It soon became manifest that the cabinet with the loss of it great leader had lost all its preservative qualities. Lord Goderich was a man of unquestionable integrity; but he exhibited a lamentable deficiency in that energy, judgment, and firm resolution,

which were absolutely necessary for the keeping together of the discordant materials of which his administration was composed. His incapacity was plainly manifested when he proposed to redeem a pledge given by Mr. Canning, to appoint a committee for the investigation and reform of the finances, in the ensuing parliament. Mr. Tierney, one of the most active members of the Whig cabinet, proposed Lord Althorp as chairman, to which Lord Goderich expressed no objection; merely observing that the appointment principally concerned the house of commons, and referring Mr. Tierney to Mr. Huskisson, its ministerial leader. Lord Althorp was by the consent of Mr. Huskisson appointed; but by some oversight or intention, the matter was not mentioned to Mr. Hemes, who, as chancellor of the exchequer was more immediately concerned in the investigation. It was only on the 28th of November that Mr. Hemes, calling at the colonial-office, accidentally saw a list of the committee and its chairman, drawn out by Mr. Tierney. On the subject being discussed, the chancellor of the exchequer was thought to have acquiesced in the appointment; but Mr. Hemes, in the course of the parliamentary explanations which followed, and which will be related in a subsequent article, denied this to have been the case: declaring at the same time that though he had unfeigned respect for the private character of Lord Althorp, he distinctly objected to his being appointed as chairman of the committee. It is quite clear that Mr. Hemes objected to the appointment; for within twenty-four hours after he saw the list he waited on Lord Goderich, and informed him, that, after considering Lord Althorp’s political views maturely, he must resign office if his appointment were not set aside. On the other hand the retention of Mr. Huskisson, who considered himself pledged to Lord Althorp, became involved in the question, and occasioned much perplexity to the premier. About the same time the news of the battle of Navarino arrived; and, wearied with his situation, on the 8th of January he went down to Windsor, laid his difficulties before the king, and resigned. The coalition ministry was no more. It perished, the victim of that want of confidence which is the natural result of new-born friendship, and of want of power and energy in its leader.

Thus abandoned by his ministers, the king sent for the Duke of Wellington, and commissioned him to reconstruct the cabinet. The new government was speedily constructed, and, with the exception of Lord Eldon, whom infirmity prevented from taking office, the Liverpool administration was reinstated. The Duke of Wellington relinquished the office of commander-in-chief to Lord Hill, and presided over the treasury; Mr. Peel succeeded to the home department; Lord Bathurst became president of the council; Lord Ellenborough was made keeper of the privy-seal; Viscount Melville and the Earl of Aberdeen were made president of the board of control and chancellor of the duchy of Lancaster; Lord Lyndhurst was created chancellor; Mr. Huskisson and Earl Dudley became colonial and foreign secretaries; Lord Palmerston was made secretary at war; Mr. C. Grant became president of the board of trade; and Mr. Goulburn succeeded Mr. Hemes as chancellor of the exchequer. Mr. Hemes was made master of the mint and his acceptance of office under the new administration was considered by the Whigs as a proof that he had undertaken his former office from other motives than qualifications or choice. Mr. Huskisson’s union with the new ministry displeased the personal friends of Mr.

Canning, who thought that he displayed no regard to the memory of his friend, in so soon taking office with those who had deserted him in the hour of need.

MEETING OF PARLIAMENT.

Parliament reassembled on the 29th of January. It was again opened by commission; and the principal topic in the speech was an allusion to the late naval conflict. It remarked:—“Having been earnestly entreated by the Greeks to interpose his good offices, with a view to effect a reconciliation between them and the Porte, his majesty concerted measures in the first instance with the Emperor of Russia, and subsequently with his imperial majesty and the King of France. His majesty has given directions that there should be laid before you copies of a protocol signed at St. Petersburg by the plenipotentiaries of his majesty, and of his imperial majesty the Emperor of Russia, on the 4th of April, 1826, and of the treaty entered into between his majesty and the courts of the Tuilleries and of St Petersburg, on the 6th of July, 1827. In the course of the measures adopted with a view to carry into effect the object of the treaty a collision wholly unexpected by his majesty took place in the port of Navarino between the fleets of the contracting powers. Notwithstanding the valour displayed by the combined fleet, his majesty deeply laments that this conflict should have occurred with the naval force of our ancient ally; but he still entertains a confident hope that this untoward event will not be followed by further hostilities, and will not impede that amicable adjustment of the existing differences between the Porte and the Greeks to which it is so manifestly their common interests to accede.” This is the first time in the British annals that a victory is characterized as an “untoward event.” But the men now in power hated Greece and her cause, and were so blinded by admiration of despotic principles, as not to perceive thé advantages which might accrue to Russia in her future projects, from the destruction of the Ottoman navy, and from the lack of confidence which the sultan would now have in his western allies. In both houses the language of the king’s speech respecting the victory of Navarino was loudly denounced by opposition, it being supposed to indicate that the Duke of Wellington’s cabinet abandoned the line of Mr. Canning’s policy. In the lords the Duke of Richmond especially fixed a quarrel on the phrase “ancient ally:” contending that the sultan could not be termed in any correct sense of the word an ally of this country at all, and much less an “ancient ally.” He disapproved still more of the epithet “untoward,” as applied in the speech to the battle of Navarino. If the term was meant, he said, to cast any blame on the gallant officer who commanded the fleet at Navarino, he would protest against the baseness and ignominy of such an insinuation in the most solemn manner; or if it was to be understood that it referred to that which happened by accident, and which stood across the object we had in view, he entered his protest against it. However much he might lament the effusion of blood which had taken place at Navarino; however much he might lament that we had not yet accomplished the pacification of the two countries, and effected the liberation of Greece, still, if by that word it was meant to say, that the battle of Navarino was an obstacle to the independence of Greece, he could not agree in such views. To him it appeared a great step towards the pacification of Eunrae, and he considered it of more use than a contrary policy could have been in promoting that great and desirable object. In explaining, the Duke of Wellington maintained that the

epithets excepted against were fairly and truly applicable. The Ottoman empire, he said, had long been an ally of this country, and the Ottoman power was an essential part of the balance of power in Europe. Its preservation had been for many years an object not only to this country, but to the whole of Europe, while the revolutions and changes of possessions which had taken place had increased the importance of its preservation as an independent state, capable of preserving itself. As to the term “untoward,” the sense in which it was used referred to the stipulations of the alliance, that its operation was not to lead to hostilities and that the contracting powers were to take no part in hostilities. When, therefore, the operations under the treaty did lead to hostilities it was certainly an “untoward event.” “I must say,” continued his grace, “that the gallant admiral was placed in a very delicate situation; and that he has done his duty to his king and his country. He was in command of a squadron of ships, acting in conjunction with admirals of other nations; and he so conducted himself as to acquire their confidence, and to induce them to lead them to victory. Such being the case I should feel myself unworthy of the high situation I hold in his majesty’s councils, if I were capable of uttering a single word against the gallant admiral. Meaning as I did, that the government should carry the treaty into execution, it would be blamable in me to insinuate a censure against a man who was charged with the execution of difficult orders under a treaty.” Similar exceptions were taken in the commons against the speech; but the usual addresses to the throne were carried in both houses without a division.

DISCUSSIONS AND EXPLANATIONS CONCERNING THE DISSOLUTION OF THE GODERICH MINISTRY, ETC.

As the dissolution of the late ministry had been unexpected, and little had been said of the causes which produced it, and as the conduct of those members who had passed into the new government appeared suspicious, some explanation of these matters was looked for in both houses of parliament. The disclosures began by Messrs. Hemes, Huskisson, and others who had accepted office under the new government. They commenced with Lord Goderich, on whom it was especially incumbent to explain the civil dissensions which had broken in pieces a cabinet of his own framing, and had induced him to throw up the government in a manner neither understood by his older friends or more recent allies. His statement in reply attributed the dissolution of the ministry to an irreconcilable difference between Mr. Huskisson and Mr. Herries, regarding the proposed chairman of the finance committee; and since that difference had caused the resignation of the minister, it implied an admission that his cabinet was so constructed that the removal of either of these gentlemen naturally dissolved it. It remained for Messrs. Huskisson and Herries to state the grounds, therefore, of an obstinacy which had been so fatal to the cabinet; but both remained silent, until Lord Normandy called directly upon them to explain their conduct in the matter. Mr. Huskisson, in his version of the events which had led to the dissolution of the ministry, agreed in general with the statement made by Lord Goderich, simply supplying some deficiencies which his lordship had been unable to fill up. On the contrary, Mr. Herries averred broadly that the difference concerning the appointment of Lord Althorp as chairman of the committee was not the cause of the dissolution of Lord Goderich’s administration. He remarked:—“There

is no truth whatever in the allegation that that difference caused the dissolution of the late cabinet. In all the rumours which have been propagated about design, and artifice, and stratagem, there is not one word of truth. I deny them all most unequivocally. They are false and unfounded in every particular, and have not even the slightest shadow of a foundation." Mr. Tierney and Lord Althorp followed; but they threw no new light on the subject; and all parties ended where they had begun: the public had to believe which of the statements made they chose, according to this or that man's political bias. In a discussion which followed, the attention of the house was directed to the character of the new government, and the conduct of those members of the former government who had joined it. Mr. T. Duncombe remarked, that the house had still to learn how the difference between Messrs. Huskisson and Herries had been made up, and how these members continued to sit in the same cabinet. The colonial secretary, he said, had still to explain "how their pulses, which formerly were so irregular, could beat so soon in unison; by what means the _quietus_ had been produced, and the direful wrath appeased." He was inclined to impute all that had happened to a secret and powerful agency which had not yet been unmasked, and which was exercised, according to the statement of the honourable member, by a Jew stock-broker, and a Christian physician. He had, indeed, "been credibly informed that there is a mysterious personage behind the scene, who concerts, regulates, and influences every arrangement." He continued, "There is, deny it who can? a secret influence behind the throne, whose form is never seen, who name is never breathed who has access to all the secrets of the state, and who manages all the sudden springs of ministerial arrangement,

'At whose soft nod the streams of honour flow, Whose smiles all place and patronage bestow.'

"Closely connected with this invisible, this incorporeal person, stands a more solid and substantial form, a new and formidable power, till these days unknown in Europe. Master of unbounded wealth, he boasts that he is the arbiter of peace and war, and that the credit of nations depends upon his nod. His correspondents are innumerable; his couriers outrun those of sovereign princes and absolute sovereigns; ministers of state are in his pay. Paramount to the cabinets of continental Europe, he aspires to the domination of our own. Even the great Don Miguel himself, of whom we have lately heard and seen so much, was obliged to have recourse to the purse of this individual, before he could take possession of his throne. Sir, that such secret influences do exist is a matter of notoriety: they are known to have been but too busy in the underplot of the revolution. I believe their object to be as impure as the means by which their power has been acquired; and I denounce them and their agents as unknown to the British constitution, and derogatory to the honour of the crown." Mr. Buncombe's denunciation of the secret influence behind the throne was followed by the explanations of Messrs. Stanley and Peel, and Lords Morpeth, Milton, and Palmerston, as to their reasons for joining or not joining the present government. But after the house, as Mr. Brougham remarked, had heard a great deal, it was still left nearly as much in the dark as ever, regarding the substantial facts of the case which it was desirable should be known. The whole transaction, he said was another illustration of Odenstien's remark to his son;—"You see with how little wisdom the

world can be governed." It appeared that two members of the cabinet had been walking about in uncertainty whether they belonged to the government or not; and the head of that government was chiefly distinguished for carrying the resignations of two of his colleagues in his pocket, and for an alarm, when they should leave him, as to what he should do to provide himself with new ones. As for the quarrel of the two resigning members, it was endless, hopeless. Walls of brass were raised to divide the contending parties for ever: to communicate with each other was impossible. Communications were only to be held with a third person, and that third person was not to repeat what either party communicated to him. Every possible course had been resorted to to avoid an explanation, although it would have put an end to the difficulty altogether, is to the explanations of Mr. Herries, said Mr. Brougham, they give me no satisfaction. That gentleman's shining of his ground, first assenting or not objecting to the appointment of Lord Althorp, afterwards protesting against it, and then attributing the dissolution of the ministry to a preconcerted plan on the part of others—all this left doubts remaining in the public mind. There was still something untold which would have explained the matter at once. The most important thing spoken in the debate, he said, was the assertion of Mr. Huskisson, that he never intended to say that he had got a guarantee for office in the new administration before the old one was dissolved. No man had ever meant, or supposed that he had stipulated for and obtained a guarantee, in the legal sense of the words, set down in a formal writing, and on a proper stamp. But, he asked, if a man spoke to an audience of having had conversations, explanations, and understandings, would they not apply those conversations, explanations, and understandings to that subject just as much as if it were written? Would it not be said that explanation was the result, of that conversation; and that the result of that explanation, in the case before the house, was the acceptation of office by the right honourable gentleman? In alluding to the unusual circumstance of a military man being at the head of the government, Mr. Brougham used very emphatic language. He remarked:—"No man values more highly than I do the services and genius of the noble duke as a soldier; but I do not like to see him at the head of the financial department of this country, with the full confidence of his sovereign, enjoying all the patronage of the church, the army, and the state; while he is also entrusted with the delicate function of conveying constant and confidential advice to his royal master. This state of things strikes me as being very unconstitutional. I am, indeed, told that the noble duke is a person of very great vigour in council, and that his talents are not confined to the art of war. It may be so. But that does not remove my objections to his possession of so immense a mass of civil and military patronage. It is said that the noble duke is incapable of speaking in public as a first minister or the crown ought to speak. Now I consider that there is no validity in that objection; for I happened to be present when the noble duke last year had the modesty and candour to declare, in another place, his unfitness for the situation of first minister; and I really thought I had never heard a better speech in my life, or observed less want of capacity in any one who might be called on to take part in a debate. This therefore is not a reason with me for objecting to the appointment. My objection rests on the unconstitutional grounds which I have before stated, and on the experience of the noble duke being wholly military. Let it not, however, be supposed that I am inclined to exaggerate. I have no fear of slavery

being introduced into this country by the power of the sword. It would demand a stronger man even than the Duke of Wellington to effect that object. The noble duke might take the army and the navy, the mitre and the great seal—I will make him a present of them all; let him come on with his whole force, sword in hand, against the constitution, the people will not only beat him by their energies, but laugh at his efforts. There have, indeed, been periods when the country heard with dismay that the soldier was abroad; but such is not the case now. Let the soldier be never so much abroad in the present age, he can do nothing. Another person, less important, nay, even insignificant in the eyes or some persons, has produced this state of things. 'The schoolmaster is abroad,' and I trust more to the schoolmaster, armed with his primer, for upholding the liberties of this country than I fear lest the soldier, in full military array, should destroy them." Mr. Brougham had no occasion to fear the effects of a military premier, even though the schoolmaster had not been abroad; for no prime minister that ever presided over the councils of the British nation has ever shown himself to be more alive to the interests of the country, and the preservation of its constitutional rights, than the Duke of Wellington.

QUESTIONS OF FINANCE.

While these explanations were proceeding, that committee of finance which had dissolved the late administration, was appointed. The motion was made by Mr. Peel, now the acknowledged leader of the house of commons. He prefaced his motion, with an able and comprehensive statement. By his details, it appeared that a reduction of £48,608,000 had taken place in the funded and unfunded debt since the year 1815, while the actual sum of unredeemed debt amounted about £777,476,000. This being the total encumbrance, Mr. Peel next looked at the revenue and expenditure; and after detailing the various items, he stated the income of last year at £49,581,000, and the expenditure at £49,487,000, thus leaving an excess of income equal to £94,000,000. The estimates of the present year, he said, were not completed; but, without binding himself down to extreme accuracy they would be less than those of the present year by £1,168,260. After having made this general statement Mr. Peel declared that he and his colleagues would listen to any suggestion of the committee, for the appointment of which he was about to move. He took that opportunity, he said, of pressing one subject particularly on its notice, namely, the simplification of the public accounts, in imitation of France and America. The motion passed without opposition, except from Mr. Hume, who contended, that if any good was to be done, there should be ten or eleven finance committees; but his plan received no countenance, except from Mr. Brougham; and a single committee of twenty-three members was appointed. The labours of this committee were multifarious and important. One of the first fruits of its appointment was the discovery that the public was regularly losing large sums of money by the system on which the government annuities had been granted. Mr. Hemes submitted a statement to the committee concerning the finances, which Lord Althorp described as, "able, clear, and satisfactory;" and it appeared from that exposition that these annuities had been sold at a considerable loss. The evidence of this was found in certain calculations made by Mr. Finlayson, who was said to have communicated the fact to Lord Bexley in 1819, and subsequently to Lord Goderich. His calculations stated the rate of loss to be

£8,000 a month, and to arise from a false calculation of the duration of life in the tables given by Dr. Price. Either these tables were originally inaccurate, or human life, in consequence of increased comforts, conveniences, and scientific aid, was extended to a longer period. The truth of this statement soon appeared to the committee; but nothing could be done to alter those annuities which had been sold. On the recommendation of the committee, however, a bill was brought in and speedily passed, to suspend the operation of the act under which they had been granted, until a more correct system could be arranged. During the session the committee reported on various matters which had been brought under their consideration, but not early enough to allow their recommendations to be carried into effect. In a report on the state of the ordnance department, the abolition of the office of its lieutenant-general was recommended; but this proposition was opposed by the ministry, and a motion to give it effect was lost by a large majority.

MOTION FOR A GRANT TO THE FAMILY OF MR. CANNING.

When Mr. Canning died he was a poor man. He had begun the world without fortune; he had spent his life in the public service; and the emoluments of the offices which he had held had scarcely sufficed to cover the expenses of his station. As, therefore, he held no sinecures, his sudden death had left his family without a due provision. On these grounds the chancellor of the exchequer proposed to grant a pension of £3,000 a year to his second son, as a mode of providing for the family less onerous than voting a large sum for the payment of debts. This proposition was vehemently opposed by Lord Althorp, Sir M. Ridley, Messrs. Hume, Bankes, D. W. Harvey, P. Thompson, and others, partly on the score of economy, and partly on the ground of its not having been deserved. On the contrary, ministers placed the question on the broad ground, that Mr. Canning had devoted a long life, and talents of the first order, to the service of his country; and in following that service, had not merely lost the means of improving, but had deteriorated his private fortune. What had he not surrendered, it was asked, when he gave up the government of India to fill the unprofitable office of foreign secretary? Mr. Huskisson remarked:—“I regret to be obliged to make reference on such an occasion to information derived from the privacy of confidential intercourse; but I can state, upon my own personal credit, that whatever were the feeling of others, who were justly near and dear to Mr. Canning, it had for years been his warm and anxious wish to be placed in some public situation, however it might sacrifice or compromise the fair and legitimate scope of his ambition, which, while it enabled him to perform adequate public services, would enable him also to place upon a better footing his wife’s private fortune, which he had lessened, and the inheritance of his children, which he had impaired. I will not go so far as to say, that this was a prospect fixed upon Mr. Canning’s mind, or an object that he was bent upon pursuing, for it is difficult to trace the springs of so susceptible a temperament; but under the circumstances it was quite natural, considering his means and his family, that while he honourably sought a situation to render service to his country, he should not be unmindful of the means of repairing the family fortune, which he had diminished while in the service of his country.” A further objection was raised to the grant, founded on disapprobation of Mr. Canning’s policy, or of that policy with which he had been officially connected; but to this it was answered, that

the proposition touched no political principle, and did not imply the abandonment of any political dogma. If the motion, it was argued, went to vote a monument to commemorate his services, members who thought that he had not performed any services to be commemorated, would do right to appose it; but when the motion went only to reward his family, they had merely to consider the fact, whether he had devoted his talents to the public service to the detriment of his private interests. On a division the grant was confirmed by a large majority. Both in the house indeed, and throughout the country, it was felt that this grant was only an act of justice, as Mr. Canning had spent not only his life, but his fortune, in the public service. On this subject it has been well remarked:—"It should be known, in justice to those who held the higher offices under the crown, that their salaries fall short of the expenses to which they are subjected, by the manners of the country and a mischievous convention. This gorgeous scale of living has the double effect of giving an example and impulse to extravagance through every department of the public service; and of securing, perhaps by design, to private wealth, a monopoly of administration. A man vigilantly prudent might perhaps have lived within his income in Mr. Canning's situation, and it is known that he had no prodigal or expensive tastes; but it is also known that he had that utter carelessness of money through which fortune is not less effectually dissipated."

FINANCIAL STATEMENTS.

The budget was opened by the chancellor of the exchequer on the 11th of July; and it was opened with a clearness and simplicity that disarmed even the opposition of Mr. Hume, disposed as he was at all times to cavil about figures. The total ordinary net revenue of the year 1827 was £49,581,576; but to this were added £4,245,000 received from the Bank on account of the dead-weight, and the sum of £660,081 under the head of extraordinary and miscellaneous, making a total revenue of £54,486.657. The chancellor of the exchequer said, that the total ordinary revenue for the year 1828 might be considered as amounting ta £50,381,530, to which must be added £3,082,500, to be received from the trustees of military and naval pensions, together with miscellaneous payments of £438,000, making a grand total of £53,902,030. The expenditure he calculated as £50,104,522, which, being deducted from the revenue, left a surplus of £3,797,508 From this, however, was to be taken the advances to public works, £708,000, so that the clear surplus was only £3,088,708 instead of £5,000,000 to be applied as a sinking-fund. It was considered impossible in the present circumstances of the country, to supply this deficiency of the sinking-fund by additional taxation; so that it was agreed to limit the said fund to the amount of such a balance as might remain after the expenses of the year were liquidated. It was stated by the chancellor of the exchequer that, in the course of the last eleven years, the amount of debt redeemed was £29,000,000. It must be acknowledged, however, that the existing system of incurring debt with one hand, and redeeming it with the other, was a delusion.

REPEAL OF THE TEST AND CORPORATION ACTS.

The grand question of this session was the repeal of the Test and Corporation Acts: acts which excluded dissenters from offices of trust and power, and shut the doors of

all corporations against them, unless they consented to take the sacrament according to the ritual of the church of England. Lord John Russell introduced this subject on the 26th of February, by moving “That this house will resolve itself into a committee of the whole house, to consider of so much of the acts of the 13th and 25th of Charles II., as require persons, before they are admitted into any office or place in corporations, or having accepted any office, civil or military, or any place of trust under the crown, to receive the sacrament of the Lord’s supper according to the rites of the church of England.” In introducing this motion Lord John Russell took a review of the history of the statutes in question, and he argued that they had been originally enacted for reasons which no longer existed. He maintained the justice and expediency of the motion on the ground that while these tests were an infliction on the dissenters, they afforded no protection to the church of England; but on the contrary, exposed her to dangers to which she would not be otherwise obnoxious. Without serving any good purpose, he said, they made the dissenters irritated enemies, instead of converting them into companions or friends. Another objection, he said, rose from the nature of the test, which made it a shameless abuse of the most solemn of all religious rites. The sacrament of the Lord’s supper was held by the church to be most sacred; and yet it was prostituted bylaw to be a mere qualification for office. History stated, he remarked, that it was the custom for persons to be waiting in taverns and houses near the church, and when service was over an appointed person called out, “Those who want to be qualified will please to step up this way,” and then persons took the communion solely for the purpose of receiving office. Such, said his lordship, were the consequences of mixing politics with religion. Political dissensions were aggravated by the venom of theological disputes, and religion profaned by the vices of ambition; making it both hateful to man and offensive to God. The only answers, continued his lordship, which could be made to these objections, were that the dissenters, in consequence of the Indemnity Act, suffered no real hardship, and that the law in its present state was necessary to the security of the church. But neither of these positions was true. The practical grievance suffered by the dissenters was much heavier than the legal grievances appearing on the face of the statutes: even the indemnity act was passed on the ground that the omission to qualify had proceeded from ignorance, absence, or unavoidable accident, and thus refused all relief to those in whom the omission flowed from conscientious scruples. The fact was, that many dissenters refused to take office on such degrading terms; they refused to attain by a fraud upon the statute, honours and emoluments which the law declared they should not attain in any other way. In conclusion his lordship remarked;—“I have proved that these acts violate the sacred rights of conscience, and are of the nature of religious persecution; I have shown that so far from not having inflicted any hardship on the body upon whom they operate, they are fraught with great mischief, irritation, and injustice; and I have shown that they are totally at variance with our own policy in Scotland and Ireland, as well as with the enlightened legislation of all the Christian countries of Europe. If I am asked what advantage the country is to derive from the abrogation of such laws, I answer, that the obvious tendency of the measure, independently of its justice, will be to render the dissenters better affected to the government; to inspire them with dispositions to bear the heavy burdens imposed on them by the necessities

of the state with cheerfulness, or at least, with resignation; and above all, it will be more consonant to the tone and spirit of the age than the existence of those angry, yet inefficient and impracticable laws, which are a disgrace to the statute-book." This motion was seconded by Mr. J. Smith, and ably supported by Lords Milton, Althorp, and Nugent, and by Messrs. Brougham, Ferguson, and Palmer. One of its most powerful advocates was Mr. Ferguson one of the members for Scotland, who desired the house to look at the Test and Corporation Acts, as they affected not merely a minority in England, but even the established religion of a constituent part of the empire. Scotland had a legal national religion equally with England; for at the union it was provided by the parliament of England that no alteration should be made in the principles, doctrine, or discipline, of the church of England, and the Scotch parliament, true to their own particular doctrines, immediately issued orders to their commissioners, that any clause should be null and void which militated in any way against the principles, doctrines, or discipline of the Protestant Presbyterian religion. The religion of Scotland was, therefore, a state religion as well as that of England, yet its members were affected by these penal laws, and prevented from serving their king, but at the risk of incurring these penalties, or renouncing their religion. Why, he asked, this proscription of a whole nation, upon the notion that this mode of exclusion was the best way of defending the church and state as by law established? Why deny a community of privileges to those who confer equal services, and encounter equal danger? On what occasion had the people of Scotland not contributed their full share in support of Great Britain? Were they no longer wanted? Hid the church of England desire to be left to defend the empire exclusively? If so, let the dissenters be told to withdraw, and quit a defence which they could only remain to make under exposure to ignominy. Take the battle of Waterloo, he continued, which had crowned the renown of the most illustrious leader of their times. What would have been the fate of that battle, and that leader, if the army which had conquered, had been filled only by the sons of the church of England? Take from the field the Scottish regiments; take away too the aid of those sons of Ireland, the proscribed Catholics: what then would have been the chance of their arms, divested of the Scottish and Irish soldiers, who filled their ranks and served their navy in every quarter of the globe! And if they had the assistance of such men, when the hour of peril came upon them, they ought not to deny their confidence in a time of tranquillity and peace. Ministers opposed the motion, the opposition being conducted by Messrs. Huskisson and Peel. Their chief defence was that the acts in question led to no particular hardship; and they sought evidence of this in the Indemnity Acts, and in the long silence of the dissenters themselves, from whom it was to have been expected that the constant infliction of a permanent grievance would have drawn forth incessant complaints. Mr. Huskisson said, that he doubted whether the present motion was calculated to remove any grievance. The grievances, indeed, complained of were of an imaginary character: he had yet to learn what obstacles existed against the honourable ambition of the dissenters. They had, he said, their full share of the civil power of the country, and were qualified to fill the first offices in the army and navy. Forty years had elapsed since this subject was discussed, and that period had been marked by many eager discussions on another great question involving the principles of religious liberty: could it be credited that the petitioners before the

house, many of whom possessed acute intellects and intelligent minds, enjoyed the highest consideration in the country, if they knew there was anything in the state of the law to impede the fair, useful, and honourable exercise of their talents, would not have long since, firmly and unanimously, called upon the house to remove the grievance. The fact could not be so, for they had preserved total silence for the long period of forty years. Mr. Peel said that the question was attended with great difficulty. He was not prepared to say that it was essentially interwoven with the interest of the church of England; he did not think, indeed, that the two were so connected, that the church of England must fall, if the Test and Corporation Acts were repealed. He thought, however, with Mr. Huskisson, that the Protestant dissenters did not labour under such grievances as had been represented, and that they did not look at the Test and Corporation Acts, together with the Indemnity Act as honourable gentlemen had described. It had been said, he remarked, that we had shed the blood of the Scotch regiments in the Peninsula and at Waterloo. “What office of naval or military command had been closed against their officers? It was also said that the Test Acts shut them out from the higher offices of government. For an answer, look at the ministry: of the fourteen members of the cabinet, three, namely, Lords Aberdeen and Melville, and the president of the board of trade, were Scotsmen and good Presbyterians, whom these acts nevertheless had not succeeded in shutting out. The fact was,” he continued, “the existing law gave merely a nominal predominance to the established church; and he heartily wished, therefore, that this question had been allowed to remain quiescent, especially as it was practically offensive to no one.” In answer to the views taken by ministers, on the subject, Mr. Brougham maintained that the acts were daily and positively felt to be a most decided grievance. AVas it no grievance, he asked, to bear the mark of the chain remaining, after the fetter had been knocked away? Was it no grievance for a dissenter, wherever he went, to look like, and to be treated like a different being? It was said that temporal interests were not concerned: this he denied. A dissenter could not stand for a corporation. It had been stated that the late lord mayor of London was a dissenter, and that he had taken the sacrament: that statement was in favour of the argument. With respect to Scotland he knew that not one Presbyterian in a thousand would take the sacrament, would not even go to a place of worship where there was an organ, would consider it idolatry to kneel at an altar; if they conscientiously thought so, was it to be wondered at that they evinced a repugnance at what they considered a mixture of idolatry with Christian worship? If in the recent contest at Vintry ward, one of the candidates had differed from the other as to trans-substantiation or anything of that sort, there would be an end to this legal controversy: the court of king’s bench would never have heard of it, and the churchman would have been elected. Was not this a grievance? The knowledge of this act operated so, that, though the dissenter might walk on in his course, when not opposed, yet even if he aspired to a corporation, and no individual opposed him; if he was unanimously elected, and actually filled the place, a single individual might upset his election, he must retire. The consequence was that the dissenter would not seek such places: he retired to his library, to retirement, to private pursuits, with what feelings he might towards the government and the constitution. He was condemned to privacy, because he was of a different religion from the state, and because he

would not sacrifice his religion for his place. Lord Palmerston said that he thought it would be an act of injustice to the Catholics to repeal this minor grievance while they suffered under much severer enactments. Sir T. Acland conceived that a middle course would afford relief, while the theoretical principal of the law would remain untouched. But it was found useless to strive against the spirit of the age. After an abortive project of Sir T. Ackland for suspending instead of repealing the acts in question, as well as a proposition made by Mr. Peel to take more time for consideration, Lord John Russell's motion was carried by a majority of two hundred and thirty-seven, against one hundred and ninety-three.

Government had now one of two courses to adopt; either to resign their opinions or their places. They chose the former alternative; for when the motion for the house going into a committee was brought forward, Mr. Peel said he could not think of pressing his sentiments against those of the majority. Government itself, indeed, now took up the measure, adding by way of security to the established church a form of declaration, which all who accepted office were to take, that they would not exert any power or influence which they might possess by virtue of that office to the injury or subversion of the Protestant church as by law established, or to disturb it in the possession of those rights and privileges to which it is by law entitled. This declaration was described by those who supported simple repeal as both useless and unnecessary; but they recommended that the suggestion should be adopted rather than the bill should not pass. With this amendment it was carried, and it was introduced into the house of peers by Lord Holland. There was no ministerial deposition encountered here, and being in a manner a bill of the government it was generally supported by the spiritual peers. The bishop of Chester said:—"I wish the bill to pass, if for no other reason, yet for this—because the present laws do not answer their purpose. If the declaration now proposed be taken by a conscientious dissenter, it will prevent him from endeavouring, at least from indirectly endeavouring, to injure the establishment; and that is more than the sacramental test, if taken, could effect: if it be taken by a person who does not conscientiously intend to observe it, that person would not be kept out of office by any test whatever." Lord Eldon, however, gave the bill his most decided opposition. He had heard much, he said, of "the march of mind," but he never expected to see it thus march into the house with the Duke of Wellington and the bishops at its head. Of the declaration, he said, that instead of making the taker of office describe himself as belonging to some sort of religion, whether a Unitarian, a Catholic, or a Free-thinker, it did not require him to say, he had only to answer, that he was of the Christian faith; neither did it call on him to observe the declaration by such phrases as "I am a Christian," or as, "I stand in the presence of my God." The confidence to be reposed in the declaration did not rest upon the faith of a Christian, or any other faith whatever. Then again, he said, the declaration is to be extended to all offices of trust and emolument under the crown, and the bill left it entirely to the king to say in such cases, whether his majesty would, or would not require such a declaration: he could not but object to the provisions of a bill, the object of which was to take away the sacramental test merely on the ground of expediency, and to substitute in its place a declaration which, in some instances, might or might not be taken, according to the

will of the sovereign. The form of declaration was also strongly objected to in the committee; and several amendments were carried to meet the views of the objectors, though not narrowing the principles of the bill; and it finally passed by a large majority. The amendments made simply consisted in this, that the man assuming a public office in a Christian community should declare that he was a Christian, or, at least, that he was not an infidel. The commons agreed to all that were made, although some members did not approve of them.

THE CATHOLIC QUESTION.

{GEORGE IV. 1828—1829}

During the discussion on the repeal of the Test and Corporation Acts, frequent allusion had been made to Catholic emancipation. The opponents of that repeal found an additional argument against it, in the supposition that it was but the first step in a course which was to terminate in Catholic emancipation. On the other hand, those who supported the repeal of the Test and Corporation Acts denied that it had any such tendency. The Duke of Wellington remarked, in order to show that he might vote for the measure then before the house, and yet be a determined enemy of the Papists, that there was no person in the house of peers whose feelings and sentiments, after long consideration, were more decided than his with regard to the subject of the Roman Catholic claims; and that until he saw a great change in that question, he certainly should oppose them. Notwithstanding, the repeal of the Test Acts was immediately followed by a motion for removing the Catholic disabilities. On the 8th of May Sir Francis Burdett moved, “That the house do now resolve itself into a committee of the whole house, for the purpose of taking into consideration the state of the laws affecting his majesty’s subjects in Great Britain and Ireland, with a view to such a final and conciliatory adjustment as may be conducive to the peace and strength of the United Kingdom, to the stability of the Protestant establishment, and to the general satisfaction and concord of all classes of his majesty’s subjects.” The debate lasted two nights; but as the speeches were merely repetitions of former arguments, it would be tedious and useless to give even a sketch, of them. The principal speakers in favour of the motion were Messrs. Brougham, Fitzgerald, North, Grant, and Huskisson, and Sirs J. Newport and J. Mackintosh. It was opposed by the attorney-general, Sir R. Inglis, and Messrs. Moore, Foster, Bankes, and Peel. On a division the motion for a committee was carried by a majority of six; and in the committee this resolution was agreed to:—“That it is expedient to consider the state of the laws affecting his majesty’s Roman Catholic subjects, with the view of effecting such a final adjustment of them as may be conducive to the peace and strength of the United Kingdom, the stability of the Protestant establishment, and the general satisfaction and concord of all classes.” Here, however, the commons stopped. Instead of forming resolutions in detail, it was determined to seek a conference with the lords, in order to ascertain whether their sentiments on the subject had changed. This proposal was agreed to by the peers; and a conference was held on the 19th of May, when the resolution of the commons, after being read in the upper house, was ordered to be taken into consideration on the 9th of June. The debate lasted two days;

but the proposition of the Marquis of Lansdowne, “that their lordships should concur in that resolution,” was lost by a majority of one hundred and eighty-one against one hundred and thirty-seven. In this debate, however, the Duke of Wellington’s speech was marked by a conciliatory tone; and the friends of emancipation augured from this that their wishes on a future day would meet-with a less obstinate and uncompromising opposition.

MOTION ON THE STATE OF THE LAW.

Early in this session Mr. Brougham directed the attention of the commons to the state of the common law courts, and the common law itself, in a speech which occupied six hours in delivery, and was remarkable for its vast variety of detail. He moved “that an humble address be presented to his majesty, respectfully requesting that it may be his majesty’s pleasure to cause a commission to issue, to inquire into the abuses which have been introduced in the course of time into the administration of the law of these realms, and of the courts of common law; and to report on what remedies it may seem fit and expedient to adopt for their removal.” It was generally agreed that there was no subject more worthy of attention than the improvement of the law; but at the same time it was obvious that the unbounded nature of the inquiry proposed by Mr. Brougham would prevent it from producing any practical effects. Mr. Brougham’s motion therefore was lost: but in the course of the session two commissions were issued, one to inquire into the state of the common law, and the other to take into consideration the state of the law of real property.

BILLS CONNECTED WITH ELECTION OF MEMBERS OF THE HOUSE.

In the course of this session bills were introduced into parliament to disfranchise the corrupt boroughs of Penryn and East Retford. Penryn first engaged the attention of the commons. A bill transferring its elective privileges to Manchester was carried and sent up to the lords; but the lords threw it out, as not being supported by evidence of corruption sufficient to warrant disfranchisement. A bill was also brought into the house to transfer the franchise of East Retford to Birmingham; but as at the time it was introduced there was a certainty that the Penryn bill would be rejected by the peers, the commons agreed that the measure should stand over till the next session, on the understanding that no new writ should be issued for East Retford. Other bills connected with elections of members of the house were brought into the commons; but they either did not pass that house, or were rejected by the lords, except one, which regulated the manner of taking the poll at city and borough elections, and which passed into a law. The chief feature of this latter bill was, that it cut down the duration of the poll from fifteen to six days.

CORN-LAW QUESTION.

One of the most important questions debated during this session was a new settlement of the corn-laws. This subject was introduced by Mr. C. Grant, on principles similar to those in the bill lost in the preceding session. The act he introduced was constructed on a graduated principle of ascending and descending duties, like that of Mr. Canning; but the medium price was raised from 60s. to 64s. In introducing this bill Mr. Grant scarcely attempted its vindication; declaring at the

same time that it was the best that could be framed with any chance of being passed into a law. The resolutions, he said, so far as the legislature was concerned, were permanent, until the minds of men could be led to entertain juster notions upon this subject; and they would be changed only as the notions which at present prevailed were altered for the better. They were offered to the landed interests as a resting-place, a firm and solid ground on which time and experience might accumulate a richer soil. They were a compromise between conflicting interests and opinions. For himself, he conceived them imperfect, because they fell short of the bill of last year; but they had been brought as near to that measure as was consistent with the likelihood of their being passed into a law. Other members of government also described the measure as one which did not satisfy their own ideas of what was right and expedient; but what they called a compromise of conflicting opinions, was in reality nothing less than a sacrifice of what they admitted they knew to be for the public good, to the views of a party which they were fearful of displeasing. Notwithstanding, the opposition which had been made to the bill of last year was renewed by the agriculturists on the same grounds as before. They struggled for still higher duties; but the bill finally passed both lords and commons without alteration. It has been observed of the contest on this occasion, that “agriculture was considered improperly as opposed both in its nature and objects to manufactures; while, in fact, it is itself a manufacture, and the most advantageous of all manufactures; for its profits are certain, and its employment healthy. All grain raised beyond the seed sown adds the whole extent of such produce to the wealth, and the people employed in its production to the strength of the state. The grand object of every good government is to provide employment for the industry of its people; and the first point to be attended to in this respect is the manufacturing of the raw material produced by the country: for this is real wealth; hence agriculture must always prove the most useful kind of manufacture to every state. The fruits and productions of the soil, raised by labour and capital, are disseminated and divided among all classes, who exchange their labour for that of the agriculturist, until sustenance is obtained by all. It is this internal commerce which is so beneficial and so important, from the rapidity of the exchange and the stability of it, as far as every description of produce is consumed by the inhabitants of a country; and by no other means can manufacturers and tradesmen be so extensively injured as by an oppression of the agricultural interests.” While this, however, may be admitted to be true to a certain extent, it is clear that the agricultural interests should not be protected to the injury of the manufacturing interests, properly so called; and time, as will be seen, has convinced the nation at large of the unreasonableness of such a protection.

DIVISIONS IN THE CABINET.

In the division which took place on the transfer of the franchise of East Retford to Birmingham, Mr. Huskisson redeemed a pledge which he had given to support it; and in so doing divided against his colleagues. On his arrival at home from the house of commons he addressed a letter to the Duke of Wellington, marked “private and confidential,” in which he said that duty led him, without loss of time, to afford his grace an opportunity of placing his office in other hands. The duke immediately laid this letter as a resignation before his majesty; but Mr. Huskisson seems to have

written it solely with a view of being solicited to remain in office. He declared to Lord Dudley that he never intended to resign, and that his letter was marked private in consequence. Lord Dudley immediately waited on the premier, and attempted to pass the matter off as a mistake; but his grace declared emphatically that it was not, and should not be any mistake. Mr. Huskisson made further attempts to retain office; but the Duke of Wellington was inexorable, probably because he did not coincide with all the views of his colleague; and the dismissal of Mr. Huskisson was followed by the resignations of Lords. Dudley and Palmerston, and of Mr. Charles Grant. Their places were filled up in the cabinet by Sir Charles Murray, who succeeded Mr. Huskisson; Sir Henry Hardinge, who was made secretary at war; and Mr. Vesey, who accepted the office of the board of trade; while the Earl of Aberdeen received the seals of the foreign secretary. No further change took place, except that the Duke of Clarence resigned his post of lord high admiral, when a board was appointed on the old system, with Lord Melville at its head.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 28th of July. On this occasion two interesting subjects of foreign policy were introduced into the speech, which was again delivered by the commissioners. These subjects were, war between Russia and Turkey, and the suspension of our relations with Portugal. The sections relating to these events read thus:—“His imperial majesty has found himself under the necessity of declaring war against the Ottoman Porte, upon grounds concerning exclusively the interests of his own dominions, and unconnected with the stipulations of the treaty of the 6th of July, 1827. His majesty deeply laments the occurrence of these hostilities, and will omit no effort of friendly interposition to restore peace.” “His majesty commands us to acquaint you, that his majesty had every reason to hope, when he last addressed you, that the arrangements which had been made for administering the government of Portugal., until the period at which the Emperor of Brazil should have completed his abdication of the throne of Portugal, would have secured the peace and promoted the happiness of a country in the welfare of which his majesty has ever taken the deepest interest. The just expectations of his majesty have been disappointed; and measures have been adopted in Portugal, in disregard of the earnest advice and repeated remonstrances of his majesty, which have compelled his majesty, and the other powers of Europe acting in concert with his majesty, to withdraw their representatives from Lisbon.” As regards the declaration of war against the Ottoman Porte by Russia, the chief pretext for it was, the imperious behaviour of the Porte, in its delay to fulfil the treaty of Ackerman. It seems certain, however, that though it was said to be waged for objects wholly national, that the chief object was aggrandisement. In Portugal affairs had assumed a strange aspect. Don Pedro had recently named Don Miguel regent of the kingdom, on which, a few months before, he had sought to establish himself as monarch. Miguel, however, had spontaneously sworn allegiance to him as natural sovereign, as well as to the constitutional charter, and had also engaged on oath to deliver up the crown to Donna Maria II., as soon as that princess should become of age. After his appointment to the regency Don Miguel paid a visit to England, where he was treated by the nobility in general with high respect. He was twice entertained at the admiralty by the Duke of Clarence, and after

visiting the king at Windsor he returned to Portugal. Before he set sail he addressed a letter to the king, declaring that, if, on his return to Portugal, he attempted anything against his brother or niece, or against the constitution, he should be an usurper, and prove a perjured wretch. Yet Don Miguel had scarcely drawn this character of himself before he assumed it. On his arrival at Lisbon his mother resumed her ill-fated influence over him; and after a series of atrocities the courts were dismissed, the charter abolished, and Don Miguel proclaimed king. All the dungeons in the realm were filled with victims, and thousands perished in them, or on the scaffold; whilst thousands more were banished to the desert coasts of Africa, or voluntarily abandoned their country, to endure the sorrows of unmerited exile. It was these circumstances that gave rise to the withdrawal of his majesty's representatives from Lisbon, as intimated in the speech at the close of parliament. On hearing of these events, Don Pedro, by his ministers at Vienna and London, entered solemn protests against the violation of his hereditary rights, and those of his daughter. He had sent his daughter to Europe, and her destination was Vienna; but on touching at Gibraltar, and learning the events which had occurred in Portugal, she took counsel with the principal officers of her suite, and by their advice she sailed to England, where she was received with royal honours, and entertained with great hospitality and magnificence.

DISTURBANCES IN IRELAND.

During the two previous administrations, those of Mr. Canning and Lord Goderich, Irish agitation had been partially suppressed. The reason of this was that the Catholics had some hopes that government would grant their claims. When, however, the Duke of Wellington assumed the reins of government, hope fled, and Irish agitation instantly revived in full force. The cry of war was raised by its leaders, and they proceeded, aided by the Popish priesthood, to re-organize the Catholic Association. The first display of this united power was exhibited in a contested election for the county of Clare, when Mr. O'Connell adopted the novel experiment of offering himself a candidate for the representation. His opponent was Mr. Vesey Fitzgerald, an advocate for emancipation; but his votes and speeches were considered only as a mockery, while the government to which he belonged was based on the principle of exclusion; and Mr. O'Connell was declared duly returned. The agitator had pledged his professional character as a lawyer, not merely, that, although a Catholic, he was capable of being elected, but that he could sit and vote in the house of commons. After his election, a petition was presented against his return to the house of commons; but the season was so far advanced, that no decision could be pronounced upon it before the prorogation of parliament, and the matter rested as it was, Mr. O'Connell promising to demand his seat in the ensuing session. In the meantime this triumph of the Association urged them to arrange more extended plans of conquest; for it appeared that it might be practicable to carry into effect their threat of returning all the county members of Ireland. With these views a plan was formed and executed, with the aid and agency of the priests, to break that link which united the Catholic forty-shilling freeholders with their landlords. Certain tests were framed, and resolutions adopted, to reject every candidate who should decline a pledge to oppose the Duke of Wellington's administration, and to vote for

parliamentary reform, as well as for the repeal of the subletting-act. The plan which the Association adopted to confirm and extend its power was well fitted to compass the objects it had in view. In almost every county liberal clubs were established, under the direction of the Association, for the purpose of receiving and adopting the pledges, and drilling the county to be in readiness to act upon them on the instant, if required. The agitators, indeed, restrained the Catholic peasantry from habitual outrage and lawless violence, but at the same time they assembled them in large companies, regularly trained for the exertion of physical force, and anxious for its display, if necessary. The state of Ireland at this period was powerfully portrayed by Mr. Shiel, at a meeting held in full force at Munster. He remarked:—"What has government to dread from our resentment in peace? An answer is supplied by what we actually behold. Does not a tremendous organization extend over the whole island? Have not all the natural bonds by which men are tied together been broken and burst asunder? Are not all the relations of society which exist elsewhere gone? Has not property lost its influence? Has not rank been stripped of the respect which should belong to it? And has not an internal government grown up, which, gradually superseding the legitimate authorities, has armed itself with a complete domination? Is it nothing that the whole body of the clergy are alienated from the state, and that the Catholic gentry, and peasantry, and priesthood are all combined in one vast confederacy? So much for Catholic indignation while we are at peace. And when England shall be involved in war,—I pause; it is not necessary that I should discuss that branch of the division, or point to the cloud which, charged with thunder, is hanging over our heads." As the year advanced, the state of the country of Ireland assumed a new and still more fearful aspect. Irritated by the violence of the agitators, alarmed at the menacing attitude of those who followed them, ready to do their bidding, and provoked by the apparent apathy of the British government, the Protestants began to unite in self-defence. The Orange-lodges which had ceased to exist, were now revived, with the grand lodge in Dublin as the centre of their operations: while new associations, under the title of "Brunswick clubs," which included in their lists the most influential classes, and contributed to break up society for the more extended indulgence of mutual animosity. These Protestant clubs had an extensive sway throughout the north, while the Catholic Association held the dominant sway throughout the south. The Association, however, made strenuous exertions to extend their sway even in the camp of the enemy. One Mr. Lawless, an appropriate name for an agitator, was sent thither as an apostle of agitation. This man traversed the different districts from parish to parish, assembling the people in crowds in the Catholic chapels, and addressed them with the usual incentives to steady animosity against their fellow-countrymen. He entered the towns at the head of immense multitudes; and though he was in the stronghold of Protestantism, yet he never allowed himself to be deterred from his mischievous enterprise by any apprehension of the consequences which might arise from bringing into contact multitudes already bitterly incensed against each other. He boasted of having entered Protestant towns at the head of twenty or thirty thousand Catholics, which appears to have been essentially correct. At first he met with no opposition in his wild career. The magistrates warned the people against joining in his processions, and even entreated the man himself to give up his mischievous crusade. On, however, the man

went, until at length the people of the north were aroused to resist his progress. It was his custom to proclaim beforehand the day on which he was to make his entry into the different towns at the head of his legions; and, in accordance with this custom, he gave notice that he should “take possession” of the town of Armagh on the 30th of September. The Protestants of that town, however, resolved to impede his progress, and many of them marched into the city, armed, from all parts of the county. Mr. Lawless proceeded no further with this intention, and the Protestants quietly dispersed. He next announced his intention of entering Ballabay in the county of Monaghan; and here likewise the Protestants resolved to resist him. He was met in the vicinity of the town by a magistrate, who stated what the result would be, and prevailed on him to forego his intentions. Some of his followers, however, were less prudent; and a collision took place between the two parties, in which a Catholic was killed. Mr. Lawless returned to Carrickmacross to await further orders from the Association, at the same time declaring that he would visit all the strongholds of the Orangemen. It was plain to all the world, however, by this time that the Orangemen would not allow these tumultuous find insulting visits to be made without opposition. By the end of September, indeed, the two parties were prepared for a collision, the result of which it was impossible to foresee. The Association, however, began to fear that they had gone too far; and they were wise enough to foresee that if a collision took place the Catholics would be the losers. They boasted, indeed, great things; “that the might of the Catholics would crush the Orangemen into dust,” &c., should a collision take place; but they felt to the contrary. They knew that Protestant Great Britain would interfere, and, as Mr. Shiel said, “cut them down in a week.” “The Protestants,” said the same powerful orator, “are becoming every day more alienated by our display of power. The great proprietors, and all men who have an interest in the security of the state, are anxious for the settlement of the question; but still their pride is wounded, and they see with disrelish the attitude of just equality which we have assumed, Our Protestant advocates, with few exceptions, declined the invitation to join in our late proceedings. As individuals, I hold them in no account; but I look upon their absence as a feature in the existing circumstances of the country. It is clear that the division between Catholic and Protestant is widening. They were before parted, but they are now rent asunder; and while the Catholic Association rises up from the indignant passions of our great body of the community, the Brunswick club is springing up out of the irritated pride and the sectarian rancour of the Protestants of Ireland. As yet they have not engaged in the great struggle; they have not closed in the combat; but as they advance upon each other, and collect their might, it is easy to discern the terrible passions by which they are influenced, and the fell determination with which they rush to the encounter. Meanwhile the government stand by, and the minister folds his arms as if he were a mere indifferent observer, and the terrific contest only afforded him a spectacle for the amusement of his official leisure. He sits as if two gladiators were crossing swords for his recreation. The cabinet seems to be little better than a box in an amphitheatre, from whence his majesty’s ministers may survey the business of blood. There are three parties concerned, the Catholics, the Protestants, and the government: the Catholics advance upon the one hand; the Protestants upon the other; and the government, by whom all ought to be controlled, looks passively on.” Alarmed at the position in which they had placed themselves, the

agitators began somewhat to retrace their steps; or at least they adopted measures to secure peace. The Association on the 26th of September adopted these resolutions:—“1. That while we warmly congratulate the people of Tipperary upon the happy cessation of their feuds, we implore them to discontinue the holding of assemblies of the peculiar character which have recently taken place. 2. That we humbly entreat the Catholic clergy to co-operate with the Association in carrying the above resolution into effect. 3. That Daniel O’Connell, to whose influence deference should be made is hereby called upon to employ his powerful and deserved authority in deterring the people of Tipperary from the holding of such meetings, in an address to be printed and circulated at the expense of the Association. 4. That it be referred to the standing committee to report whether it be, or may become expedient, that a deputation shall be sent to Tipperary, and suggest such other measures, as shall be deemed advisable, in order to dissuade the people from holding such meetings.” Mr. O’Connell issued an address to the people of the county of Tipperary, which enjoined them to obey the laws; and the storm which had threatened to burst over Ireland was allayed. The Catholic priests, sharing in the alarm of the agitators, enforced the directions of the address from their altars; and the threatened danger was prevented. When it was over, government exhibited symptoms of returning life: the lord-lieutenant issued a proclamation enjoining that which Mr. O’Connell had already done; namely, the discontinuance of large and armed meetings, as illegal and alarming. The only effect of this proclamation was to confirm Mr. Lawless in his resolution to proceed no further in his mission to the north; for the assemblies had disappeared before he ventured to call them in question. The apathy of the government at this crisis is scarcely to be accounted for, as it must have been clear to its members that the train was laid, and that it only required the application of the match to occasion a most terrible explosion. The only remarkable declaration which ministers substituted for active measures, consisted in a private letter sent by the Duke of Wellington to Dr. Curtis, Catholic primate of Ireland. In that letter he expressed an anxiety to witness the settlement of the Catholic question; but confessed that he saw no prospect of such a consummation; adding with a species of studied obscurity:—“If we could bury it in oblivion for a short time, I should not despair of a satisfactory result.” A copy of this letter was sent to Mr. O’Connell, and he forthwith carried it to the Association, where it was received with plaudits as a declaration that the Duke of Wellington was now favourable to the Catholic claims. It was ordered to be recorded in their minutes as such, although it was not easy to foresee how such a conclusion could be adduced from the letter. This conclusion, however, was arrived at, and it naturally added to the exultation and confidence of the Catholics. This, however, was trifling compared with the mischiefs which followed. Dr. Curtis, in his reply to the duke, told him plainly, that the proposition to bury the question in oblivion for a time was inadmissible, and would only serve to exasperate those who were already excited. After this he sent a copy of the duke’s letter, and of his answer to it, to the lord-lieutenant, the Marquis of Anglesea. His excellency’s reply showed that he entertained different opinions on the contents of the duke’s letter to those which the Catholics had deduced from it. At the same time he showed himself to be strongly in favour of the Catholic claims. The great agitator himself might have written the following sentences contained in his reply. After

expressing his ignorance of the duke's intentions, and advising the Catholics to make much of him, to avoid provoking him or any other member of the government by personalities, to trust to the legislature, and to avoid brute force, he remarked:—"I differ from the opinion of the duke, that an attempt should be made to bury in oblivion the question for a short time; first, because the thing is utterly impossible; and next, if it were possible, I fear advantage might be taken of the pause, by representing it as a panic achieved by the late violent reaction, and by proclaiming, that if the government at once and peremptorily decided against concession, the Catholics would cease to agitate, and then all the miseries of the last years of Ireland will be reacted. I therefore recommend that the measure should not for a moment be lost sight of; that anxiety should continue to be manifested; that all constitutional means should be adopted to forward the cause, consistent with the most patient forbearance, and submissive obedience to the laws: that the Catholics should trust to the justice of their cause and to the growing liberality of mankind, but should not desist from agitation." For this advice the lord-lieutenant was extolled to the skies by the same lips which three years before had denounced him as an object of execration. The next wind, however, that blew from England brought the mandate which deprived him of office and recalled him from Ireland. This recall furnished him with an example of the value set on the advice which he had tendered to the Catholics not to insult and vilify any one, and especially the Duke of Wellington. At the first meeting of the Association after the recall of the Marquis of Anglesea was known, Mr. O'Connell remarked;—"In my own knowledge of Irish history, and I believe I know Ireland's history well, I never heard any thing so monstrously absurd as the recall of this gallant and high minded-man. The Duke of Wellington said he would be worse than mad if he became premier. He is therefore a self-convicted madman! And yet, gracious Heaven! he continues the insane pilot, who directs our almost tottering state." But if Mr. O'Connell had known the duke's intentions he would not have been thus abusive. On receiving his recall the Marquis of Anglesea is said to have divined immediately the true reason of his dismissal. He remarked:—"I know the duke: his mind is made up to emancipate the Catholics; and I am recalled, because he would have no one to share his victory." It is strange, but it is no less certain, that the latter part of this year was employed by the cabinet in testifying their repugnance to a measure? which it was their first act in the coming year to introduce.

DEATH OF THE EARL OF LIVERPOOL.

During the month of December the Earl of Liverpool, after various fluctuations of health, expired at Combewood. It has seldom happened that a minister ever acquired so much influence, or conciliated so much favour by the mere weight of personal character, as did his lordship. He was undistinguished by great brilliancy of genius or parliamentary eloquence; at the same time he possessed, what is infinitely superior, a sound judgment, with a mind well adapted to business, and stored with all that political knowledge which is requisite to make a great statesman. That which gained the confidence of the country, however, was his unquestionable integrity, and his open and manly conduct: he was never suspected of governing for mere party purposes, or of intriguing for the acquisition of power. It was the good of the country alone that he sought in all his actions. In his distribution of ecclesiastical preferment

he set a splendid example to future premiers. Passing by parliamentary retainers, or those whose only claims are the ties of kindred and affinity, he made a careful selection of men of piety and talent for offices of dignity and responsibility in the church.

FOREIGN POLICY.

The foreign policy of our administration connected with Turkey and Portugal has already been noticed; those of France and Greece require a few words. In France the ministry of M. de Villéle had fallen last year, because they lent themselves to the designs of the court and the church, instead of consulting the growing spirit and intelligence of the nation. The new ministers forced upon the king by this triumph of the liberal party were men of moderate principles; and they were only tolerated by the king as a necessary evil At the head of them was M. Roy, who possessed a considerable knowledge of finance; but the rest were of very mediocre talent. At this time the priests and Jesuits were striving in France for the absolute control of public education, as the most effectual means of recovering their domination. This attempt was resisted by the people, who raised a loud cry of “No Jesuitism!” as in England there was formerly the cry of “No popery!” The new ministers took part with the nation; and in so doing opposed the wishes of the monarch. His majesty’s speech also took a different view from our cabinet of the transaction at Navarino, thus showing that the new administration of France was hostile to our policy. The French, indeed, were in right earnest for the liberation of Greece from the power of the Ottoman Porte. In the autumn of this year the French government sent General Maison, with a strong military force, to the Morea, in order to liberate it from the hands of the Turks. On the 6th of October, the second day after Ibrahim had sailed, Navarino was summoned to surrender, and the demand was supported by a body of French troops under the walls, ready to commence operations. The Turkish governor replied, that the Porte was not at war with the French or the English, and that although no act of hostility would be committed by the Turks, yet the place would not be given up. The French soldiers, however, immediately set to work; and after making a hole in an old breach, they marched in and took possession of the place without opposition. A similar demand was made the same day of the governor of Modon; and the gates were forced open, and the garrison quietly submitted. Coron was more contumacious; but Coron, on learning the fate of Modon, followed its example, and opened its gates. The Castle of Patras had already shown the same complaisance; and the Morea castle alone remained in possession of the Turks. But this castle also, after sustaining a severe battery, surrendered; and by the end of November the Morea was freed from foreign control, and was left at liberty to select the course which she might choose to follow. It was left to the direction of its provisional government, at the head of which was the Count Capo d’Istria, who had been installed president early in the year. In his inaugural address the count told his countrymen that the first care of government should be to deliver them from anarchy, and to conduct them by degrees to national and political regeneration. He continued:—“It is only then you will be able to give the allied sovereigns the indispensable pledges which you owe them, in order that they may no longer doubt of the course which you will take to obtain the salutary object which led to the treaty of London, and the memorable day of October 20th. Before

this period you have no right to hope for the assistance I have invoked for you, nor for anything which can serve the cause of good order at home, or the preservation of your reputation abroad." The president set himself sternly against the piratical habits by which independent Greece had disgraced herself; and he had sufficient authority to make the fleet, which was placed at his disposal, carry his orders into execution. As yet, neither he nor the government had enjoyed leisure to frame any system of finance; but he obtained a loan of money from Russia, and looked forward with confidence for subsidies from Great Britain and France. The question, however, which most engaged the attention of the Greek government was, what were to be the boundaries of their new state? It belonged to the allied powers and Turkey, indeed, to settle this matter; but the government had its own ideas upon the subject, as it was right and proper it should. A commission of the national assembly proposed to the allied powers that the northern mountains of Thessaly, and the course of the river Vioussa, should form its boundary on the north, to the exclusion of Macedonia; those limits, as they observed, seeming to be pointed out by nature herself, and as they had always gotten the better of political events. These considerations were ultimately set aside. And yet they were the very best that could have been adopted. It is true that this boundary would have included some districts which had taken no share in the national struggle, and would have excluded others which had taken an active part in the war; but still it was the most proper. The natural conformation of the line gave it a special political recommendation; and where boundaries do not coincide with some great natural features, but are lines arbitrarily laid down, they tend to tempt an usurper by the dangerous facility which they offer to violation. Sooner or later they produce discord between the neighbouring states. But all these considerations were set aside; and, indeed, at this time our government displayed much apathy on the subject of Greek independence.

CHAPTER XXXIX.

{GEORGE IV. 1829—1830}

The Catholic Question..... Meeting of Parliament..... Suppression of the Catholic Association..... Rejection of Mr. Peel at Oxford..... The Triumph of Catholic Emancipation..... Bill for the Disfranchisement of the Forty-Shilling Freeholders..... The Case of Mr. O'Connell..... Financial Statements..... Motion for Parliamentary Reform..... Prorogation of Parliament..... State of Affairs in Ireland..... Agricultural and Commercial Distress..... Affairs on the Continent.

THE CATHOLIC QUESTION.

{A. D. 1829}

The recommendation of the late lord-lieutenant to agitate, was followed in Ireland to the very letter. When the Duke of Northumberland arrived in Dublin as his successor, he found agitation pervading the whole country. Protestants and Catholics alike were in the field, breathing defiance and revenge against each other, so that there was

every prospect of a civil war. The premier’s situation at the opening of the year, from this cause, was one of great and peculiar difficulty. The whole tenor of his political life had been marked by hostility to the Catholic claims; and every individual associated with him in the government was pledged to resist their claims. The time had arrived, however, at the opening of the year, when it became necessary for the Duke of Wellington to decide on some mode of action; either to determine not to yield, or to grant emancipation, or to retire from the helm of state for a season, and permit a Whig government to carry the measure. The course which he pursued astounded the nation. The wisest and most honourable course which his grace could have taken, would have been to have retired, since it was scarcely fair to steal the crown of victory from statesmen who, during the whole of their political career, had ably and eloquently pleaded the cause of the Catholics. Yet such was the course he adopted. Although he had declared that he saw no prospect of the settlement of the question, and although he had recalled the late lord-lieutenant because he favoured the Catholics, yet he was now determined to grant with a free and liberal hand all that they had ever demanded. Nor did his grace alone change his opinions on this subject. While the country was reposing confidence that the leading members of the government were still faithful to their trust, these very men had determined to go over to the Catholics; and in secrecy and silence were arranging plans for carrying out a broad measure of emancipation. The first thing they did was to obtain the consent of the king; a matter of no small difficulty, as his reluctance to concession was deep-rooted and vehement. It cost the premier months of management, vigilance, and perseverance, to overcome his majesty’s antipathies; and it is probable that he would never have succeeded had it not been for the king’s indolence and love of ease. A dissolution of the ministry would have interrupted his ease; and the thought of this overcame his repugnance to the question. Till his consent was obtained not a whisper had been heard of the change of sentiment which had taken place in the cabinet; but a few days before the meeting of parliament the grand secret was told. The surprise which the announcement excited was only equalled by the indignation and contempt roused by so sudden an abandonment of principle. The Protestant community complained—and very justly—that they had been deceived. Up to that period, indeed, they had been allowed to rest in the belief that the question would not be mooted, or if it were, that the influence of the cabinet would stand in its way; but these, their long-tried friends, had been planning and plotting how they might secure a triumph to their enemies. They had been trusted by the Protestant party as the champions of their cause; but on a sudden they were found offering the hand of friendship to their enemies. It certainly would have been more manly if they had, on resolving to change sides, fairly and honestly avowed it from the first, for then the Protestants would have had time to counteract their designs; but it was evident at the meeting ol parliament that all opposition would be useless. It was too late to make a successful stand against the measure: it must be carried.

MEETING OF PARLIAMENT.

Parliament reassembled on the 5th of-February. The speech, which was again delivered by commission, detailed at length our foreign relations, and announced the continued improvement of the revenue. The all-absorbing topic of interest, however,

was that which referred to the coming measure of Catholic emancipation. It remarked:—“The state of Ireland has been the object of his majesty’s continued solicitude. His majesty laments that in that part of the United Kingdom an Association should still exist which is dangerous to the public peace, and inconsistent with the spirit of the constitution, which keeps alive discord and ill-will amongst his majesty’s subjects; and which must, if permitted to continue, effectually obstruct every effort permanently to improve the condition of Ireland. His majesty confidently relies on the wisdom and on the support of his parliament; and his majesty feels assured that you will commit to him such powers as may enable his majesty to maintain his just authority. His majesty recommends that, when this essential object shall have been accomplished, you should take into your deliberate consideration the whole condition of Ireland; and that you should review the laws which impose civil disabilities on his majesty’s Roman Catholic subjects. You will consider whether the removal of those disabilities can be effected consistently with the full and permanent security of our establishments in church and state, with the maintenance of the reformed religion established by law, and of the rights and privileges of the bishops and of the clergy of this realm, and of the churches committed to their charge. These are institutions which must ever be held sacred in this Protestant kingdom; and which it is the duty and the determination of his majesty to preserve inviolate. His majesty most earnestly recommends to you to enter upon the consideration of a subject of such paramount importance, deeply interest ing to the best feelings of his people, and involving the tranquillity and concord of the United Kingdom, with the temper and moderation which will best ensure the successful issue of your deliberations.” The tendency of this recommendation to parliament was at once perceived by the advocates of exclusion; and they loudly complained of desertion and surprise, charging the duke with a perfidious concealment of his designs till the last moment, and loading Messrs. Peel and Goulbourn with the most bitter execrations, on account of their supposed apostasy. The usual addresses, however, were carried without a division.

SUPPRESSION OF THE CATHOLIC ASSOCIATION.

The first thing to be done was the vindication of the laws: laws which had been long trampled beneath the feet of the Catholic agitators. In pursuance of the recommendation in the royal speech to suppress the Catholic Association, on the 10th of February Mr. Peel asked leave to bring in a bill for that purpose. The general outline of the measure which he proposed was briefly this. It was his intention, he said, to commit the enforcement of the law to one person only; and to intrust to him, who was fully cognizant of the state of affairs in Ireland, and who was also responsible for the tranquillity of that country, the new powers with which the house were now asked to invest the executive government. He proposed to give the lord-lieutenant, and to him alone, the power of suppressing any association or meeting which he might deem dangerous to the public peace, or inconsistent with the due administration of the law; together with power to interdict the assembling of any meeting, of which previous notice should have been given, and which he should think likely to endanger the public peace, or to prove inconsistent with the due administration of the law. In case it should be necessary to enforce the provisions of the law by which these powers would be conferred, it was proposed, by Mr. Peel, that

the lord-lieutenant should be further empowered to select two magistrates for the purpose of suppressing the meeting, and requiring the people immediately to disperse. Finally, it was proposed to prohibit any meeting or association which might be interdicted from assembling, or which might be suppressed under this act from receiving and placing at their control any monies by the name of “rent,” or by any other name. In conclusion Mr. Peel said, that he was of opinion the act should, like that of 1825, which had been intended to suppress the Catholic and other associations, be limited; and he proposed to limit it to one year, and the end of the then next session of parliament. The bill passed both houses without opposition; for although its provisions were somewhat arbitrary in their nature, the friends of the Catholics voted for it as part of a system which was to result in Catholic emancipation. The associators, however, rendered the act unnecessary; for before it was completed, their dissolution was announced. They had gained their point, and for the present they were satisfied; they had demanded emancipation, unqualified emancipation, and nothing else; and when this was promised, when government submitted to their imperious demands, they put up the sword of defiance into its scabbard. The government boasted that they had suppressed the Association. But such a boast, as it has been justly observed, was as if a man should boast of his victory over a highwayman to whom he exclaims, when the pistol is at his breast, “Down with your pistol, Sir, and you shall have my purse and my watch:” the robber would have the best of it, and so had the Association.

REJECTION OF MR. PEEL AT OXFORD.

The University of Oxford had elected Mr. Peel as a champion to the Protestant cause; and when his mind underwent the change it manifested on the subject of Catholic emancipation, he could not in common decency or honesty retain his seat as member for that University. Under these circumstances he addressed a letter to the vice-chancellor, announcing his new views of policy by which he was to be guided, acknowledging that his resistance to the Catholic claims had been one main ground of his election by the University, and tendering his resignation. Mr. Peel, however, was proposed as a candidate at the new election, trusting that he might skill sit as the representative for Oxford in parliament. But in this he was disappointed. He had for an opponent Sir Robert Harry Inglis; and though the united influence of the Whigs was pushed to its utmost limit in behalf of the Home Secretary, Sir Robert Inglis, who was supported by the dignitaries of the church, and by the parochial clergy, was elected. Mr. Peel was subsequently returned for the borough of Westbury; and in this character he brought forward those measures which for twenty years he had repudiated as dangerous and ruinous to the best interests of the country, and which even now he was convinced were pregnant with danger to the constitution.

THE TRIUMPH OF CATHOLIC EMANCIPATION.

On the 5th of March Mr. Peel moved “that the house resolve itself into a committee of the whole house to consider of the laws imposing civil disabilities on his majesty’s Roman Catholic subjects.” He commenced by stating, that, he rose as a minister of the king to vindicate the advice which an united cabinet had given to his majesty to recommend to the consideration of parliament the condition of the Catholics, and to

submit to the house measures for carrying such recommendation into effect. He was aware, he said, that the subject was surrounded with difficulties; which difficulties were increased by the relation in which he himself stood to the question. Having, however, come to the honest conviction that the time had arrived, when an amicable adjustment of the disputed claims would be accompanied with less danger than any other course that could be suggested, he was prepared to act on that conviction, unchanged by the forfeiture of public confidence, or by the heavy loss of private friendship. He had long felt, he said, that with a house of commons favourable to emancipation, his position as a minister opposed to it was untenable; and he showed that he had more than once intimated his desire to resign office, and thus remove one obstacle to a settlement of the question. He had done so on the present occasion, though at the same time he notified to the Duke of Wellington, that seeing how the current of public opinion lay, he was ready to support the measure, provided it were undertaken on principles from which no danger to the Protestant establishment need be apprehended. He was aware, he said, that he was called on to make out a case for this change of policy; and he was now about to submit to the house a statement which proved to his own mind, with the force of demonstration that ministers were imperatively called on to recommend the measure, however inconsistent it might appear with their former tenets. The argument by which the case was made out by Mr. Peel resolved itself into the following propositions:—First, matters could not remain in their present state, the evils of divided councils being so great, that something must be done, and a government formed with a common opinion on the subject. Secondly, a united government once constituted must do one of two things—either grant further political rights to the Catholics, or recall those which they already possess. Thirdly, to deprive them of what they already have would be impossible; or at least would be infinitely more mischievous than to grant them more: therefore, no case remained to be adopted but that of concession. Having illustrated these propositions at great length, and with much force of argument, Mr. Peel proceeded to explain the nature of the measure which he and his colleagues proposed as that which ought finally to settle and adjust the question. The principle and basis of the measure was to be, he said, the abolition of civil distinctions and the equality of political rights, with a few exceptions only. Another pervading principle would be, in fact and in word, the maintenance of the Protestant religion as by law established, its doctrines, its discipline, and government. First of all, he would repeal those laws which placed Catholics, unless they took certain oaths, on a different footing from Protestants even in regard to real property; a distinction which Protestants and Catholics were equally interested in abolishing. The next provision would be the admission of Catholics to parliament on the same terms with Protestants; for unless this was granted, all other concessions of political power would be of no avail. The bill would, also, render Catholics admissible to all corporate offices in Ireland, and all offices connected with the administration of justice, and to all the higher civil offices of the state. He was aware, he said, of the objection as to the last; but having once resolved to yield political power, this could not be refused. In order to leave the avenues of ambition open to the Roman Catholic, he was of opinion that we ought to render him capable of being employed in the service of the country. As regards the oaths to be taken, it necessarily followed from their concessions, he said, that they

should be modified. In the new oath, the Catholic would be called on to swear allegiance in the usual terms; to disclaim the deposing power of the pope, and the doctrine that his holiness had any temporal or civil power, directly or indirectly, within the realm; solemnly to abjure any intention of subverting the church establishment; and to bind himself not to employ any of his privileges to weaken the Protestant religion or government. As regarded the exceptions from the general rule, Mr. Pitt said that they lay within a narrow compass, and related to duties or offices connected with the established church. The only offices he meant to exclude Catholics from were those of lord-lieutenant, or chief governor of Ireland, and of lord high chancellor, or keeper, or commissioner of the great seal. He meant, however, to exclude Catholics from appointments in any of the Universities or Colleges, and from exercising any right of presentation, as lay patrons, to the benefices and dignities of the church of England. In the bill, also, there were certain prohibitions against carrying the insignia of office to places of Roman Catholic worship, and against the assumption, by prelates of that communion, of the same episcopal titles as those belonging to the church of England. There were also certain precautions against the increase of monastic institutions, particularly that of the Jesuits. A more effective check, however, on the consequences which might result from admitting Roman Catholics in Ireland to civil power, was meditated in a law for raising the qualification of the elective franchise, in counties, from forty shillings to ten pounds: by which means that privilege would be limited to persons really possessed of property, and less liable to be misled by the priests. After detailing the features of the plan in a speech which occupied more than four hours, Mr. Peel remarked:—“And now, although I am not so sanguine as others in my expectations of the future, I have not the slightest hesitation in saying, I fully believe that the adjustment of this question in the manner proposed will not only give much better and stronger securities to the Protestant interest and establishment than any other that the present state of things admits of, but will also avert evils and dangers impending and immediate. I might have taken a more popular and palatable course: more popular with the individuals in concert with whom I long thought and acted, more palatable to the constituents whom I have lost; but I have consulted for the best, for Protestant interests and our Protestant establishment. This is my defence against the accusations I have endured; this is my consolation under the sacrifices I have made; this shall be my revenge. I trust that, by the means now proposed, the moral storm may lie lulled into a calm, the waters of strife may subside, and the elements of discord be stilled and composed. But if these expectations be disappointed; if unhappily civil strife and contentions shall arise; if the differences existing between us do not spring out of artificial distinctions and unequal privileges, but if there be something in the character of the Roman Catholic religion not to be contented with a participation of equal privileges, or with anything short of superiority, still I shall be content to make the trial. If the battle must be fought; if the contest which we would now avoid cannot be averted by those means, let the worst come to the worst—the battle will be fought for other objects, the contest will take place on other grounds; the contest then will be, not for an equality of civil rights, but for the predominance of an intolerant religion. If those more gloomy predictions shall be realized, and if our more favourable hopes shall not be justified by the result, we can fight that battle against the predominance of an

intolerant religion more advantageously after this measure shall have been passed than we could do at present. We shall then have the sympathy of other nations; we shall have dissolved the great moral alliance that existed among the Roman Catholics: we shall have with us those great and illustrious authorities that long supported this measure, and which will then be transferred to us, and ranged upon our side: and I do not doubt that in that contest we shall be victorious, aided as we shall be by the unanimous feeling of all classes of society in this country, as demonstrated in the numerous petitions presented to this house, in which I find the best and most real securities for the maintenance of our Protestant constitution; aided, I will add, by the union of orthodoxy and dissent, by the assenting voice of Scotland; and, if other aid be necessary, cheered by the sympathies of every free state, and by the wishes and prayers of every free man, in whatever clime, or under whatever form of government he may live."

The motion was not very powerfully opposed. The principal speakers in opposition were Sir Robert Inglis and Mr. Estcourt, the two members of Oxford University. The chief argument used was an assumption that the grant of equal privileges to Roman Catholics would be the destruction of the Protestant establishment. With regard to Ireland, it was said that discord and agitation were not new features in the condition of that country; that they were not a result of the penal laws; and that they would not cease on the removal of civil disabilities. As regarded the fear of civil war, it was remarked that reliance ought to have been placed on public opinion, and the moral determination of the British people. At best, too, it was argued, the evil days would only be postponed, and resistance to ulterior struggles rendered more difficult. It was asked, with respect to the divided state of the cabinet, why the Duke of Wellington and Mr. Peel, instead of changing their own line of policy, did not rather attempt to bring over their colleagues to their views, especially as they still confessed that there was danger in granting Catholic emancipation. Ministers were also taunted with conceding the question from intimidation; a fact which was evident in the provisions, called securities, against the danger of admitting the Catholics to wield the civil, judicial, and military powers of the state. If Mr. Peel and other converts, it was said, thought they could no longer resist, because they had not a majority in the house of commons, why did they refuse to accept a majority? Why was not parliament dissolved? Such a course, it was argued, was right at any time, when a measure strongly affecting the constitution was contemplated; and it was peculiarly necessary in the present instance, when the country had been deceived into a security, of which those who had practised the deception were now seeking to take advantage. The Marquis of Blandford even maintained, that if the house sanctioned the present audacious invasion of the constitution, it would break the trust reposed in it by the people of England, who were taken by surprise by the unexpected announcement made by ministers. Was it right, he asked, for the government to persist in measures to which public feeling was so strongly opposed? Constituted as the house was then, it did not express the just alarms of the people for the safety of the Protestant institutions of the country. As regards the securities proposed by ministers, they were treated with contempt. Viscount Corry said, that he had in vain looked for them: with the exception of the forty-shilling franchise being raised to ten pounds, there was no

attempt at securities; and even that was a half measure.

The motion was supported by Sir. G. Murray, colonial secretary, and by Messrs. Grant, North, and Iiuskisson. These members repeated and enforced the positions that the pacification of Ireland was necessary to the safety of the empire; and that without emancipation pacification could not be effected. All classes in Ireland, it was argued, had identified themselves with the question, and Ireland had hence fallen into a state in which it was impossible for it to remain: it must either advance or recede; for all the ties which held society together had been loosened or broken. It was conceded that a certain state of things, not deserving the name of society, might be maintained by means of the sword; but such a frame of society, it was added, could have no analogy whatever to the British constitution. The only intimidation to which ministers could be accused of yielding, was the fear of continuing such a state of affairs, and aggravating all its evils by gradual accumulation, instead of restoring mutual goodwill and the peaceful empire of the law. No other intimidation existed: none was felt in Ireland; for what was the force of an unarmed multitude when measured against the force of the state? The power of the Catholics was as nothing. But when it was considered what effects might arise from disunion; when it was considered that a spirit of resentment was growing up, which roused men against each other, there did appear a kind of intimidation, of a nature which did not admit of contempt. The Protestant body—at least the body which arrogated to itself that title—knew the enthralment under which they had held the Catholics, and that an unarmed multitude must submit. But were we, it was asked, to destroy one part of the people, by rousing and inciting the other? It was rather the duty of government to protect the whole; to ensure them the greatest degree of protection; and to give to the people all the privileges they had a right to enjoy. To those who urged a dissolution of parliament, it was answered, that parliament as it existed was as capable of discussing the question now, as any parliament had been at any time during the last twenty-five years; that the question was a fit one for the consideration of the house of commons at all times; and that it was particularly fit for their consideration when it came recommended from the throne, as necessary for the safety and peace of the United Kingdom. A dissolution of parliament, remarked Mr. Peel, must leave the Catholic Association and the elective franchise in Ireland just as they were. If parliament were dissolved, the Catholic Association must be left as it was, as the common law was inadequate to suppress it; and being so left, it would overturn the representation of Ireland. Whatever majority might be returned from Great Britain, Ireland would return eighty or ninety members in the interest of the Association, forming a compact body, against the force of which it would be impossible to carry on the local government of the country. It had, indeed, been said, “Increase the army, or the constabulary force;” but a greater force could not be employed there. He would state one simple fact. Above five-sixths of the infantry had been engaged in aiding the government of Ireland, as by interposing between two hostile parties. Under such circumstances a reaction would compel them gradually to this alternative; namely, instead of resting the civil and social government on its base, to narrow it and to rest it on its apex. It was also denied that there was anything peculiar in the nature of the proposed measure to require a special appeal to the

people, since it was incorrectly called a violation of the constitution. That constitution, it was argued, was not to be sought for solely in the acts of 1688: its foundations had been laid much earlier; laid by Catholic hands, and cemented with Catholic blood. But, even taking the compact of 1688 to be the foundation of our rights and liberties, yet the most diligent opponent of the Catholic claims would be unable to point out in the Bill of Rights a single clause by which the exclusion of Roman Catholics from seats in parliament was declared to be a fundamental, or indispensable principle of the British constitution; that bill merely regarded the liberties guaranteed to the people, and the protection of the throne from the intrusion of Popery. To the objection that the measure now contemplated was unconditional concession, concession without a single security for the Protestant establishment, it was answered, that principles of exclusion were not the securities to which the established religion either did trust, or ought to trust. The real securities of Protestantism would remain, unaffected by this bill, in the unalterable attachment of the people, who, though divided on minor topics, would unite in resisting the errors of Popery. The house, it was said, should also look at the great security which they would derive from the generous attachment of the people of Ireland, who, after ages of oppression, would find themselves restored to their place in society. Moreover, the securities which the bill contained were not so nugatory as they had been represented. Mr. Peel said, that when he looked at the petitions sent from all parts of the country, he could not help being struck with one extraordinary coincidence. These petitions prayed for those securities; and the prayers of them were similar, whether they came from the county of Wicklow, or from the county of Armagh, &c.; that it was impossible to arrive at any other conclusion than that those prayers, and the terms in which they were conveyed, had been suggested by one common head and source. And what were the securities prayed for? Why, the first was, “Put down the Catholic Association;” the second, “Correct the elective franchise of Ireland;” and the third, “Abolish for the future the order of the Jesuits in this country.” Now the bill which he proposed contained all these securities; and if the necessity of obtaining them were so great as the petitioners contended, let him be answered this question: “Would the Protestants ever have had the least chance of obtaining them if his majesty had not recommended that the disabilities of the Catholics should be taken into consideration, with the view to an adjustment of this question? Could any man say it was possible, though the unanimous voice of the Protestants of Ireland declared those securities to be necessary, that any one of them could have been obtained, unless a proposal or adjustment had been made?” On a division the motion was carried by a majority of three hundred and forty-eight against one hundred and sixty; a preponderance which, as regarded the house of commons, was decisive of the ultimate fate of the question.

Resolutions, proposed by Mr. Peel in the committee, were immediately agreed to; and a bill founded on them was introduced and read for the first time on the 10th of March. The opponents of the measure allowed the first reading to take place without opposition, it being arranged that the debate on the principle of the bill should take place on the second reading. That reading was fixed for the 17th, on which day it was moved by Mr. Peel. The motion led to a very warm debate. Sir Edward Knatchbull

strongly attacked Mr. Peel on the desertion of his principles, as well as other members of the government, asserting that from it the confidence which had hitherto been accorded to public men, had received a blow from which it never would recover. Mr. Goulburn admitted that he had adopted new opinions on this subject; but he had done so, he said, because it was impossible that any other thing could be wisely done in the present state of Ireland. He contended that the measure proposed was calculated to give more complete ascendancy to the Protestant establishment, by diminishing the irritation, and removing the prejudices of its opponents. He argued, that it would also have the effect of causing the people to treat the ministers of the Protestant church with the respect and attention to which their character and virtues so eminently entitled them; and that it was only under such circumstances that the church could be employed as an important engine in the moral improvement of the people. These notions, however, were ridiculed by Mr. G. Bankes, who contended that, although the house did not surrender all the rights of the Protestant church at once, they gave the Catholics the first stepping-stone for reaching everything they might desire. It was admitted, he said, that the adherents of the Catholic faith would struggle for ascendancy; and that this bill was to give them the political power which would be the great instrument used in the struggle: and how a bill which did all this would tend to the security of the Protestant church surpassed human comprehension. The very framers of the measure saw the absurdity and the danger which it was employed to conceal; and they had endeavoured to obviate the danger by a precaution which proved its existence, but was impotent to prevent it. They had devised this remedy—that when the prime minister happened to be a Roman Catholic, all power connected with the established church should be vested in the hands of commissioners. But who was to appoint the commissioners? Why the prime minister. Lord Tullamore followed in a similar strain. Ministers, he said, had themselves given the tone on the opposite side of the question at public meetings; they had sat at the festive board, hearing with approbation the avowal of sentiments which they themselves had avowed, but now disclaimed completing the picture drawn by the poet—

“Drunk at a borough, civil at a ball. Friendly at Hackney, faithless at Whitehall.”

The measure was supported by Lord Palmerston and Sir George Murray with much eloquence and animation; but the speech which on this occasion claimed and deserved the greatest attention from the house was that of Mr. Sadler, a man of distinguished abilities, who had recently been returned to parliament for the borough of Newark, by the Duke of Newcastle’s interest. He rose, he said, to add his humble vote to that faithful band who had resigned the countenance of those whom they had hitherto deeply respected; who had surrendered, in the language of many, all pretensions to common sense or general information; who are branded as intolerants and bigots, from whom ministers had happily escaped; and, what was still more painful to generous minds, who were ranked among those that were as devoid of true liberality and benevolence, as of reason and intelligence. He continued: “All these things, however, move us not. In a cause like that of the Protestant constitution of England, now placed for the first time since its existence in a situation of imminent peril, an humble part in its triumph would indeed give me a share of that

unmeasurable joy which its rescue would diffuse throughout the nation; but to be numbered as one of those who, faithful to the end, made a last though ineffectual struggle in its defence, will afford a melancholy satisfaction, which I would not exchange for all the pride, and power, and honours which may await a contrary course." After this preamble, Mr. Sadler argued at great length against the principles of the bill, and its dangerous tendency toward the Protestant church: and showed its utter futility in remedying the evils which oppressed, or repaying the wrongs which she had suffered from so many generations. He remarked:—"Ireland degraded, deserted, oppressed, pillaged, is turbulent; and you listen to the selfish recommendations of her agitators. You seek not to know, or knowing you wilfully neglect, her real distresses. If you can calm the agitated surface of society, you heed not that fathomless depth of misery, sorrow, and distress whose troubled waves heave unseen and disregarded: and this, forsooth, is patriotism, Ireland asks of you bread, and you proffer her Catholic emancipation: and this, I presume, is construed to be the taking into our consideration, as his majesty recommended, the whole situation of Ireland." As regards the nature of the measure, Mr. Sadler contended that it could only be described as an inroad on the constitution of the country, and a preparatory movement towards its final destruction. The securities, also, were treated by him as vague and unsatisfactory. Matters, he said, had reached such a point of noisy and dangerous discord between parties in Ireland, that ministers contended there must be an adjustment of the question. Adjustment generally terminated in mutual concessions and reciprocal advantages: but would the authors of this bill point out what it gave to the Protestant constitution for that which it took away? The Protestant faith surrendered everything, it received nothing. As a security, the office of viceroy, an office of pageantry, was to continue Protestant: but what Protestant cared an iota about it, when its holder was to be surrounded with Popish advisers, and to act by Popish instruments? The king, too, it seems, must still continue to be a Protestant. This reservation was the worst of all, and heightened every objection to the measure into abhorrence and disgust. "What!" he continued, "after establishing by a solemn act the doctrine that conscience ought to be free and unrestrained; that disabilities like that sought to be removed, inflict a wound upon the feelings of those whom they reach, intolerable to good and generous minds, worse than persecution, than even death itself, how do you apply it? Why you propose to sear this brand high upon the forehead, and deep into the heart of your very prince, while you render the scar more visible, and the insult more poignant, by making him the solitary individual, whose hereditary rank must be held and transmitted by the disgraceful tenure which you have stigmatized as the badge of slavery. Freedom of conscience to all subjects, but none to your king! Throw open the portals of legislation, that a Duke of Norfolk may take his seat in your senate; but hurl from his loftier seat there, the throne of the realm, a Duke of Lancaster, if he exercise the same privilege, and presume to have a conscience! Hitherto the British constitution has been fair, uniform, equal, demanding from all the same moral qualification. That qualification has long been declared, by a certain school of politicians, to be slavery. Ministers have now adopted their creed; yet they are content, nay, they propose, that the king shall be the only proclaimed slave in his dominions. Worse than this, however, remained behind: the proposed measure not

only hurt the feelings of the monarch, it touched his title. It was a bill to reverse the attainder which had been passed upon Popery, and the natural consequences of this reversal were obvious. The privileges of Protestantism were the title-deeds of the royal family to the throne, the actual transfer of the estate which the king held in parliament and in the country. It was Protestant ascendancy now become a term of reproach, and Protestant ascendancy alone, that introduced the royal line that rules us; it was that which still formed the foundation of the throne, which combined its title with the very elements of the constitution, identified it with our liberty, consecrated it with the sanctities of our religion, and proclaimed our monarch king by the unanimous suffrages of all our institutions. The act of settlement indeed was to remain; and though it had been passed with difficulty by a parliament exclusively Protestant, it would of course be zealously maintained by a parliament partly Catholic: but still this was to remove the royal title from the broad foundation of national principles, supported by all the analogies of the constitution, and place it upon a mere act of parliament, or rather upon an exception from that act: whatever became of the legal title, the moral title of the king would be touched. But," continued Mr. Sadler, "the intended change of the constitution was doubly objectionable on account of its unavoidable consequences. He contended that it would put the real liberties of the people in jeopardy; and that the united church of England and Ireland would be placed in peril by it, the moment it was passed. The real object of the attack was the establishment, or rather its principles and immunities. The war had begun; the siege commenced: the first parallel was nearly completed; the very leaders of the garrison were summoning a bold and numerous band of fresh assailants to the attack; and the approaches would be carried on till a final triumph was obtained over the most tolerant, the most learned, and the most efficient establishment which any country had ever yet been blessed with. And could any man, he asked, flatter himself that even when this was destroyed, a long and uninterrupted reign of quietness and peace would ensue? When this victim had been hunted down, the same pack would scent fresh game, and the cry against our remaining institutions would be renewed with double vigour, till nothing remained worth attack or defence. An oath was certainly to be taken, verbally forbidding Roman Catholics from harming the establishment; but they must be more or less than men to be enabled to keep such an oath. It was even immoral to present it to them: it established a war between words and principles, oaths and conscience: and which of these would finally prevail needed no explanation. That Roman Catholics once seated in the house should not feel disposed to lessen the influence, and finally to destroy a church which they abhorred was impossible; and that they should not make common cause for a similar purpose with other parties inspired by similar views was equally impossible. Much, it was true, had been said about the weakness of such a party in point of numbers; but a party acting invariably in unison on this point would ultimately carry it, and with it, all others of vital importance." Referring to the apologies which had been made for these portentous changes, Mr. Sadler said that the country had been beguiled by them. He continued:—"I was one of those who thought the conduct of the noble and right honourable individuals who resigned in 1827 a sacrifice to principle and consistency: what it really was, it is now not worth while to inquire, since it was anything than that. It is now too late to rectify the error;

all that remains is to regret most deeply, that, faithfully following those who have so secretly, suddenly, and unceremoniously deserted us, we were taught to regard a highly gifted individual, unhappily now no more, as one who ought not to serve his king and country as the head of the government, because he was favourable to the measure now so indecently forced upon the country. I do heartily repent of my share in the too successful attempt of hunting down so noble a victim; a man whom England and the world recognise as its ornament, whose eloquence was, at these days at least, unrivalled, the energies of whose capacious mind, stored with knowledge and elevated by genius, were devoted to the service of his country. This was the man with whom the present ministers could not act, and for a reason which vitiates their present doings. Coupling, therefore, that transaction with the present, if the annals of our country furnish so disgraceful a page, I have very imperfectly consulted them. But peace to his memory! My humble tribute is paid when it can be no longer heard nor regarded—when it is drowned by the voice of interested adulation now poured only into the ears of the living. He fell; but his character is reserved, it rises and triumphs over that of his surviving,—what shall I call them? Let their own consciences supply the hiatus." Having paid this eloquent tribute to Mr. Canning, a tribute as just also as it is eloquent, Mr. Sadler contended that it was the duty of ministers to have gone to the people, since the invasion of the constitution, bad in itself and ruinous in its consequences, was beyond the power of parliament. The people of England, he continued, had not sent the members of the house of commons for the purpose of throwing open the doors of that house to the admission of Popery, to the scandal, disgrace, and danger of the Protestant establishment in church and state. He added in conclusion:—"Be assured they will resent it deeply and permanently if we proceed. I know how dear this sacred, this deserted cause is to the hearts and to the understandings of Englishmen. The principle may be indeed weak in this house, but abroad it marches in more than all its wonted might, attended, in spite of the aspersions of all its enemies, by the intelligence, the religion, the loyalty of the country; and if the honest zeal, nay, even the cherished prejudices of the people, swell its train, thank God for the accession. Here, sir, that cause, like those wasting tapers, may be melting away: there it burns unextinguishably. It lives abroad, though this house, which is its cradle, may be now preparing its grave. To their representatives the people committed their dearest birthright, the Protestant constitution, and have not deserted it, whoever has. If it must perish, I call God to witness that the people are guiltless. Let it, then, expire in this spot, the place of its birth, the scene of its long triumphs, betrayed, deserted in the house of its pretended friends, who while they smile are preparing to smite; let it here, while it receives blow after blow from those who have hitherto been its associates and supporters, fold itself up in its mantle, and, hiding its sorrow and disgrace, fall when it feels the last stab at its heart from the hand of one whom it had armed in its defence, and advanced to its highest honours."

Mr. R. Grant on the other side contended that it was in vain to speak of applying to the evils of Ireland such cures as it was supposed might be found in the establishment of poor-laws, or the compulsory residence of the absentees: even if the expediency of these measures was assumed, this was not the proper time for their application: the

question at present was, how existing discontent might be allayed, how the raging pestilence might be stopped. It was only after that had been done, that preventives could rationally be suggested, and it was only by removing the grievances of which Ireland complained, that that object could be effected. Although the evils of Ireland, he said, had been traced to many causes these causes themselves, even where they existed, were but the effects of the political distinctions founded on the difference of the religious creeds. The house had been told, for instance, to seek for the source of these evils in the local oppressions practised in Ireland, rather than in the general restrictive laws. Of local oppression, no doubt, plenty had always existed, but it had existed merely because the adherents of one creed were armed with power to oppress the believers in another faith, who were vested with no power. The same mischiefs, it was said, existed before the Reformation, when all Ireland was of one religion. True: and they had existed, just because, even before the Reformation, the same system of excluding the natives from political power had been long followed, though on different grounds. What Sir John Davies, who wrote in the days of Elizabeth, stated to be the cause of the evils of Ireland in his time, was in force still:—"From the earliest times," said that writer of the English government of Ireland, "it seemed to be the rule of policy that the native Irish should someway or other be not admitted to the privileges of the constitution equally with the English residents. And in order to perpetuate the ascendancy of the latter, the governors of Ireland had determined to oppress the former as much as possible. Accordingly, it has been the system of rule in that country, for the last four hundred years, to attempt by all manner of means to root out the native Irish altogether." That system had been acted on since the time of Sir John Davis in some form or other, and with consequences which would last so long as the laws against the Catholics remained unrepealed. This inequality of political power, then, was the cause; and by removing it, an end would be put to the turbulence and exasperation to which it gave birth. Mr. Grant further argued that this might be done without injury to the constitution, and that the constitution did not recognise any principle of exclusion against any portion of the community. Its essence, he said, was the communication of its protection and privileges to all. Lord Palmerston followed on the same side. He admitted that if the question were, whether we should have any Catholics at all; whether the religion throughout the empire should be exclusively Protestant; then all Ireland should be made Protestant. But this was not possible, Catholics there were, and Catholics there must be. There they were, good or bad; and, whether their tenets were wholesome or unwholesome, the persons holding them were six millions in number, and they were seated in the very heart of the empire. What, then, he asked, were we to do with them, since we were not able to exterminate them? Were we to make them our enemies, fiercer and more inveterate in proportion as we persecuted them? or were we by kindness and conciliation to convert them into friends? The latter was clearly the more expedient and desirable in itself, unless it were accompanied by some imminent danger. He called upon the house to turn the materials of discord into strength, and to imitate the skilful and benevolent physician, who from deadly herbs extracted healing balms, and made that the means of health which others, less able, or less good, used for the purposes of destruction.

Of all declaimers against the bill, Sir Charles Wetherell, the attorney-general, was the most violent. He had refused to draw up this bill in his official capacity; but he still remained in office, under a minister who was understood to have made implicit submission to his word of command the tenure by which office was to be held. Knowing that nothing but the difficulty of supplying his place prevented his discharge, he delivered a speech of defiance to his colleagues in office, which produced a great impression in the house and throughout the country. In explaining his objection to frame this bill, he said,—"When my attention was drawn to the framing of this bill, I felt it my duty to look over the oath taken by the lord chancellor, as well as that taken by the attorney-general; and it was my judgment, right or wrong, that, when desired to frame this bill, I was called to draw a bill subversive of the Protestant church, which his majesty was bound by his coronation-oath to support. If his majesty chose to dispense with the obligations of the coronation-oath, he might do so; but I would do no act to put him in jeopardy. These are the grounds on which I refused, and would refuse a hundred times over, to put one line to paper of what constitutes the atrocious bill now before the house. Hundreds of those who now listen to me must remember the able, valuable, and impressive speech delivered two years ago by the present lord-chancellor, then master of the rolls, and a member of this house. It will also be in the recollection of hundreds that that eminent individual, than whom none is more acute in reasoning, more classical in language, and more powerful in delivery, quarrelled with the late Mr. Canning on this very subject. Am I then to blame for refusing to do that, in the subordinate office of attorney-general, which a more eminent adviser of the crown, only two years ago, declared he would not consent to do? Am I, then, to be twitted, taunted, and attacked? I dare them to attack me. I have no speech to eat up. I have no apostasy disgracefully to explain. I have no paltry subterfuge to resort to. I have not to say that a thing is black one day and white another. I have not been in one year a Protestant master of the rolls, and in the next a Catholic lord-chancellor. I would rather remain as I am, the humble member for Plympton, than be guilty of such apostasy; such contradiction; such unexplainable conversion; such miserable, contemptible, apostasy." As for the bill itself, Sir Charles stated, that when it was dissected and anatomized, it destroyed itself. It admitted the danger, and yet provided no security for Protestants. He would not have condescended to stultify himself by the composition of such a bill. The folly and contradictions be upon the heads of those who drew it. They might have turned him out of office; but he would not be made such a dirty tool as to draw that bill. "Let who would, he would not defile pen, or waste paper, by such an act of folly, and forfeit his character for common sense and honesty."

This attack of the attorney-general called up Mr. Peel, who closed the debate. After complaining of the violence of his colleague, he reverted to the grounds on which he had first proposed the bill; again urging the state of Ireland, and the absolute necessity of doing something; the inability of his opponents to do anything better, though they vehemently opposed the measure now offered; the impossibility of any government standing which should set itself on avowed principles against concession; and the folly of treating the question as one which had any connexion with religion. The Catholics were never excluded at any time because of their religious creed; they

were excluded for a supposed deficiency of civil worth, and the religious test was applied to them, not to detect the worship of saints, or any other tenet of their religion, but as a test to discover whether they were Roman Catholics. It was a test to discover the bad, intriguing subject, not the religionist; and, therefore, when he parted with the declaration against transubstantiation, it was not from any doubt which he entertained as to the doctrines of the Roman Catholics, but from looking at it as a test of exclusion, and from thinking that, when the exclusion was deemed unnecessary, the test of exclusion, might be dispensed with. Mr. Peel complained grievously that an unfair application had been made of his unhappy phrase, that the proposed measure would be “a breaking in upon the constitution of 1688.” He meant no more, he said, than that there would be an alteration in the words of the Bill of Rights: and if an alteration of its words were a breaking in upon the constitution, then had the constitution been often broken in upon. He called upon the house to consider the altered position of affairs in Ireland since the annunciation of this measure had been made; and warned it that if the bill was rejected, it would be attended with consequences fatal to the repose of the empire. He added, “I am well aware that the fate of this measure cannot now be altered: if it succeed, the credit will redound to others; if it fail, the responsibility will devolve upon me, and upon those with whom I have acted. These chances, with the loss of private friendship, and the alienation of public confidence, I must have foreseen and calculated before I ventured to recommend these measures. I assure the house that, in conducting them, I have met with the severest blow which it has ever been my lot to experience in my life; but I am convinced that the time will come, though I may not live perhaps to see it, when full justice will be done by men of all parties to the motives on which I have acted; when this question will be fully settled, and when others will see that I had no other alternative than to act as I have acted. They will then admit that the course which I have followed, and which I am still prepared to follow, whatever imputation it may expose me to, is the only course which is necessary for the diminution of the undue, illegitimate, and dangerous power of the Roman Catholics, and for the maintenance and security of the Protestant religion.”

The result of the division on this great question was three hundred and fifty-three for the second reading of the bill, and one hundred and eighty against it. The success of the bill in the commons was therefore certain; and it passed the committee in three days. During its progress in the committee several amendments were moved by the opponents of the bill, but they were all rejected; and on the 31st of March it was carried up to the lords by Mr. Peel, with an unusually large escort of members. It was immediately read a first time; and the Duke of Wellington then moved that it should be read a second time on the 2nd of April. This motion was opposed by Lord Bexley and the Earl of Malmesbury, as too precipitate, urging that on all former occasions a longer time had been allowed for consideration, and that breathless haste was the conduct of men called upon to decide as another dictated, rather than of legislators called to deliberate on a grave matter of public policy. Lord Holland, however, justified the motion, by referring to the haste with which the statutes about to be repealed had been originally passed: and it was carried without a division.

On the appointed day the Duke of Wellington moved the second reading of the bill, by stating that he trusted the house would believe that the course which he had now adopted on this question had not been adopted without the fullest conviction that it was a sound and a just one. His grace then went on to show the state of Ireland as it had existed for many years, describing it as bordering upon civil war, and attended by all the evils of civil war, adducing this state of things in justification of the measure. He conceived it his duty, he said, to correct the evil by other means than force. “I am one of those,” said his grace, “who have been engaged in war beyond most men, and, unfortunately, principally in civil war; and I must say this, that, at any sacrifice whatever, I would avoid every approach to civil war. I would do all I could, even sacrifice my life, to prevent such a catastrophe.

“Nothing could be so disastrous to the country; nothing so destructive to it prosperity as civil war; nothing could take place that tended so completely to demoralize and degrade as such a conflict, in which the hand of neighbour is raised against neighbour; that of the father against the son, and of the son against the father; of the brother against the brother; of the servant against his master: a conflict which must end in confusion and destruction. If civil war be so bad when occasioned by resistance to government; if such a collision is to be avoided by all means possible, how much more necessary is it to avoid a civil war, in which, in order to put down one portion, it would be necessary to arm and excite the other? I am quite sure that there is no man that now hears me who would not shudder were such a proposition made to him; yet such must have been the result had we attempted to terminate the state of things to which I have referred otherwise than by a measure of conciliation. In this view, then, merely, I think we are justified in the measure we have proposed to parliament.” On the other hand, his grace asked, what benefit could arise to any one class in the state from pertinaciously persisting in an opposition which had already produced bad consequences, and threatened worse? One of the chief obstacles to the measure, he continued, was the safety of the Protestant church. Now that part of the united church of England and Ireland which was placed in the latter kingdom, was in the peculiar situation of being the church of the minority of the people; and if violence against it were apprehended, he would ask whether that church was more likely to be defended against violence by an unanimous government, and a parliament united with government and with itself, or by a divided government, and a parliament of which the parts were opposed to each other? No man could look with patience and attention at the present state of this question without being convinced that the real interests of all classes in this country, and particularly the church itself, required the consideration and settlement now proposed. This settlement would give security to the church, strength to every department of the government, and general tranquillity to the country at large. In conclusion, his grace said, “On the whole I entertain no doubt that, after this measure shall have passed, the Roman Catholics will cease to exist as a separate interest in the state as they at present do. I have no doubt that they will cease to excite disunion in this or the other house of parliament. Parliament will then, I hope, be disposed to look at their conduct, and everything as respects that country, as they would look upon the people and the affairs of England and Scotland. I will say, however, that, if I am disappointed in my hopes of tranquillity after a trial

has been given to the measure, I shall have no scruple in coming down to parliament and laying before it the state of the case, and calling for the necessary powers to enable the government to take the steps suited to the occasion. I shall do this in the same confidence that parliament will support me, that I feel in the present case."

In reply, the Archbishop of Canterbury moved an amendment, that the bill should be read a second time that day six months. He was surprised, he said, that any man remembering the conduct of the Catholics at all times, and who knew, as every one must know, that even what was now proposed fell short of their ultimate objects, should attempt to justify a measure, on the ground that it would bring peace to Ireland. When he considered the use which had been made of the concession of the elective franchise, to produce consequences which, it was said, had rendered the present measure necessary; he could see no return of gratitude in the conduct of the Roman Catholics. When, too, he considered the liberality of the public, which had established a college for educating the Roman Catholic youth; when he looked at the liberality of parliament granting supplies for its support; when he saw those very men who had been bred up at the public expense becoming members of an Association which had existed in contempt of the government, and in defiance of the laws, lending themselves to the exaction of a tax levied on the people, and converting their places of worship into meetings for factious purposes; when he looked at all these circumstances, he saw little hope that the measure proposed would produce either tranquillity in Ireland, or safety to the church. To him it appeared irreconcilable with the Protestant essence of the constitution. It mattered not what circumstances produced the laws about to be repealed; they had been adopted, and re-established at the Revolution, as a necessary security for the constitution. By the coronation-oath, as then arranged, the king swore to maintain the true profession of the gospel, and the Protestant reformed religion established by law. How, he asked, was the king to do this? By attending churches in person? No! The king could only act by responsible advisers; and, therefore, when such a clause was inserted in the oath, it was presumed that the king would always have proper servants about him, who would enable him to discharge the obligations imposed upon him by the oath. Suppose the king to be surrounded by ministers who were all Roman Catholics; if so, it was clear he could do nothing towards fulfilling those obligations, for whatever measures he might contemplate for that purpose, there would be no one to carry them into effect. No adviser or minister of the crown, who could not enter into the views of the king for the maintenance of the true profession of the gospel and of the Protestant reformed religion, could assist the king to fulfil those obligations which were imposed upon him by the coronation-oath. His grace then went on to show the vital importance of having ministers in every department of the state well affected towards the Protestant religion. For instance, the secretary of the colonies, he said, had absolute power in respect to the church; church patronage was at his disposal, and the clergy were under his control. In dissensions, also, among the clergy, and for the protection of their interests, he was the person appealed to; and if there was not a strong Protestant spirit in the secretary, it would be in his power to discourage to the most alarming degree, and even almost to extinguish, the church of England in many of the colonies. Under all these circumstances, therefore, his grace concluded by moving, as

an amendment, that the bill should be read a second time that day six months.

The debate in the lords continued four successive nights by adjournment. The spiritual lords who spoke, in addition to the mover of the amendment, were the Archbishops of York and Armagh, the Bishops of London, Salisbury, Durham, and Oxford. All of these opposed the bill, except the last, who contended that concession was called for, not merely by the situation of Ireland, but by the turn which talent and education had taken in this kingdom with reference to the question. Those peers, said his lordship, who opposed concession, were men advanced in years; but the individuals who were rising in the natural progress of things to fill the high offices of the state, were, with scarcely an exception, in favour of this measure. But independently of the fact that the talent, intelligence, and education of the country were marshalled in favour of concession, there were abundant reasons why he should vote for the measure. He would vote for it because it came recommended by his majesty’s speech from the throne; seconded by the declaration of the heir presumptive to the crown; supported by all the members of the royal family, except the Duke of Cumberland; carried through the other house by an overwhelming majority; supported by many members of the house of lords; supported, too, for many years by that great and eloquent statesman whom Providence had recently snatched away from the service of his country; and specially brought forward by those ministers who had hitherto been champions of the Protestant interest. These were extraordinary circumstances which had never been combined before; and he thought that a bill introduced in these circumstances would in a few years produce a different state of things in Ireland. As to the safety of the church of England he had no doubt, since the people of England possessed the most hostile feelings towards all the doctrines of Popery. The Irish church was certainly, he said, placed in an anomalous situation, and he had no wish to depreciate the dangers to which she was exposed; but instead of being increased by the measure before the house, they would be diminished by it. On the other hand, the Archbishop of Armagh argued, that the Irish church had everything to fear from Catholic emancipation. If the house, indeed, could subdue the intolerant spirit of the church of Rome, disarm the priests of their influence over the people, and withdraw the people from their allegiance to the see of Rome, making them citizens of their own country, and letting them take their stand among other dissenters, all might be well. But would any man, he asked, say that they could make the church of Rome tolerant, or persuade the priesthood of that church to hold an inferior rank to a clergy, the validity of whose orders they denied, and whose church they reviled as adulterous? Could any one suppose that the Roman Catholic priests would quit their hold upon the consciences, wills, and the passions of men, when their spiritual despotism was the most powerful engine for their own aggrandisement? The Roman Catholic priesthood must ever stand alone. It had set the indelible mark of separation on its own forehead, by its unnatural, though politic, restrictions, by its claim to exclusive pre-eminence, and by its dangerous and unconstitutional connexion with a foreign state. Ascendancy, he contended, would be placed within the reach of the Roman Catholics by this bill; and could any one believe that they would not attempt to seize upon that ascendancy when it was well known that the promotion of the interests of their church was with them a point of principle

and of honour, which they considered as far superior to the claims of country or kindred. The confederacy of the priesthood, actuated by a hatred of whatever was Protestant, would leave no means untried to exalt their church at the expense of the Protestant establishment, and especially when they found that those who ought to support that establishment were divided into parties. Such must be their objects and their wishes; and the bill would furnish them with both. The bishops of London and Durham expressed the same sentiments regarding the inevitable danger to the Protestant establishments, which must necessarily spring from what was neither less nor more than a deliberate arming of the Catholics with the power required to effect objects which the Catholics themselves bad the caution carefully to conceal or disguise. They also denounced the folly of legislating upon the principle that men would lay down their mischievous designs whenever they obtained the means of putting them in execution. The enemies of Protestantism knew better; and it was remarkable, the Bishop of Durham observed, how strange a combination of persons hailed the dawn of the new policy. It had united in its favour the acclamations of Catholics and of all classes of liberals, down to the lowest grade of Socinians. When men, he added, whose opinions led them to keep down the ascendancy of any church, and others whose conscience bound them to labour against the ascendancy of the Protestant church, so acted, he could not help thinking that the consequences of the measure would be anything but friendly to that ascendancy.

Of the temporal peers the defence of the bill was principally undertaken by the lord-chancellor, the Marquis of Lansdowne, Viscount God erich, the Earl of Westmoreland, Earl Grey, and Lord Plunkett. The lord-chancellor had a difficult task to perform. He was among those who up to this period had earnestly refuted all the pleas of concession which were now brought forward, and he had now to confute all these refutations. As late as last year he had declared his conviction, that emancipation, though accompanied by weighty securities, was pregnant with danger to the constitution and establishment; and he now declared his equally conscientious conviction, that emancipation, without any securities at all, would be conducive to the safety and prosperity of that constitution and establishment. This change of opinion might be fair and honest; but, unfortunately, Lord Lyndhurst denied the change which had taken place in his mind on this subject. He said that he had always held that if concession could be granted consistently with the security of the Protestant established church, and the great interests of the empire, it was the duty of parliament to give it. This was a bold assertion, and one which the public generally was not disposed to believe, since they knew that he had opposed concession with all the force of his learning and eloquence. The world might be wrong in saying that Lord Lyndhurst adopted his new creed by compulsion; but it was undoubtedly right in saying that it was a new creed. Having, however, defended his consistency in the best manner he could, or as he thought most proper, Lord Lyndhurst passed on to the merits of the measure. Ireland, he contended, had for years been growing worse and worse; and it was necessary, to effect a better state of things, that recourse should be had to conciliation. As to the dangers to be apprehended from concession, Lord Lyndhurst said he was now convinced that they were merely imaginary. And even if there were some danger, it seemed to him that the danger to be dreaded from the

discontent of five millions of subjects, if their prayer were rejected, was infinitely the greatest and the worst. But he, for one, entertained no apprehensions that if the professors of the Roman Catholic religion should be introduced into parliament, they would exercise their influence to overthrow or injure the Protestant established church; and he entertained no apprehensions whatever, that in the discussion of those questions which concerned the church, her interests would be sacrificed. Looking at this measure both on a political and a religious principle, he was sure that it would put an end to the contentions and animosities which had prevailed, particularly in Ireland, and that it would operate to the advantage of the Protestant church and the Protestant religion. The Marquis of Anglesea, who had recently been recalled from his government of Ireland because he held out hopes of Catholic emancipation, also entered the ministerial phalanx which combated for that measure. He insisted principally on the military points of view in which the question ought to be considered. Every man, he said, acquainted with the state of Ireland would agree with him, that in a time of profound peace, under the exclusive laws, 25,000 men was but a scanty garrison for Ireland. In the event of war, or even of the rumour of war, that would be an improvident government which did not immediately add a force of 15,000 men to the previous military force. It could not be a question that both France and America wished to do us injury; and in the case of any collision with either of these powers, the first object of both would be to throw arms to a great extent into the hands of the discontented Irish. “I am arguing,” he continued, “be it observed, upon the supposition that the exclusive laws are in existence: for if they were not, the arms would not be received, or, if received, would be turned against the donors. But suppose that we are absolutely at war, and that there is a combination of the powers of Europe (no very unlikely contingency) against us: I then say that it would be madness in any administration, not to throw 70,000 men into Ireland. I should be sorry, with all the power of steam to convey troops from the continent, and all the advantages which modern science has recently introduced into the art of war, to see Ireland with so scanty a garrison in time of war, under the exclusive laws. But, on the other hand, suppose this bill to be passed into law by this day month; declare war if you like the next day; and I assert that you will have no difficulty, within six weeks, to raise in that country 50,000 able-bodied, and what is better, willing-hearted, men, who will traverse the continent, or find their way to any quarter of the globe to which you may choose to direct their arms. The passing of this bill is worth to the British empire more, far more, and I do not wish to exaggerate, than 100,000 bayonets.”

The measure was strongly opposed by Lord Tenterden, the chief-justice of England, the Duke of Richmond, and the Earls of Winchilsea, Harewood, Mansfield, Falmouth, and Ermiskillen. Lord Tenterden declared against it, because he knew it to be a violation of the constitution, and because he believed that it threatened ruin to the Protestant church, which he valued, not only for the purity of its doctrines, but because, of all churches that ever existed, it was most favourable to civil liberty. The other noble lords said that the Protestants had derived consolation from the declaration of the Duke of Wellington, at the opening of the session, that the measure would be found to be one which would satisfy the Protestants, give security to their institutions, and check the growth of Popery. The measure, however, was the reverse

of what had been promised, and justified the worst apprehensions of those who loved the constitution. Instead of being calculated to satisfy the Protestants, the Protestant opinion of the country had already been unequivocally expressed against it. The expression of that opinion, had become louder and more general since the details of the measure had become known; and the rallying sound throughout the country now was, “Protestant ascendancy.” The Protestants of Great Britain were called on to bend before Irish rebels and seditious demagogues, and that too on mere conjectural grounds of imagined expediency. It was said, “You are to examine two dangers, and that the danger of disturbance was greater than any that could flow from concession.” When the latter clanger, however, was the sacrifice of the Protestant constitution, the parliament which incurred it was inexcusable, whether their conduct proceeded from dread of foreign attack, or of domestic dissension. It was easy to understand how men who did not believe that Protestantism formed an integral part of the constitution should pay for tranquillity what must appear to them so low a price. His majesty’s ministers, however, had always been of a different opinion. They had maintained and avowed that a measure like this was pregnant with danger to the constitution; and though their views of the expediency or inexpediency of incurring that danger might have changed, the danger itself must be the same. Nothing that had happened or was likely to happen could be put in the balance against this violation of the constitution. Was the British Protestant constitution a thing for which it was not worth while to encounter danger? would we defend it with our lives against invaders abroad, and yet sacrifice it to demagogues at home? The horrors of civil war were threatened: be it so; was the constitution to be sacrificed, whenever a number of unprincipled men threatened rebellion, if it was maintained? But that apprehension was groundless. The noble mover of this very measure had himself admitted that resistance was nowhere offered; that the Catholics were too wary and cautious to offer it; and that his troops found no occupation because they met with no enemy. Wise and good men would endeavour to tranquillize Ireland; but they would not give up, even for this object, the Protestant constitution of Ireland. The Marquis of Salisbury who had moved the address at the opening of the session, said that he had done so because he was prepared to change the condition of the Catholics; but he had never imagined that securities would not be provided, which securities he thought were to be found only in connecting the Catholic priesthood with the state. By abandoning securities their lordships would be signing the death-warrant of the Protestant establishment of Ireland and if the Protestant establishment of Ireland fell, that of England would shortly follow; and with the downfall of the church a revolution would ensue. Lord Eldon, in obedience to a general call made on him by the house, spoke at great length, and with evident sincerity on this important question. He commenced by stating that ministers who had introduced the bill, were actuated by a sense of their duty, though he lamented their conduct. At the same time he could not acquit the Duke of Wellington and Mr. Peel of wilfully deceiving the people, and bringing them into a state of apathy, by leading them into a persuasion that no measure of the kind would be brought forward at least this session. On Lord Lyndhurst, however, the ex-chancellor was more severe; that noble lord having endeavoured to excuse his own frailty by fixing a similar charge of inconsistency on Lord Eldon. As regards the measure itself, Lord Eldon said that he must say, once for

all, that he did not mean to rest any part of his opposition to it on the terms of the coronation-oath; neither would he contend that to alter any of the laws enacted at the Revolution was beyond the competence of parliament. This, however, (looking at the 13th, 25th, and 30th of Charles II., that the exclusion from parliament produced by the last of those statutes,) was in conformity with the true construction of the acts of 1688, and with the act of union between England and Scotland in the reign of Queen Anne. These he contended were meant to be the ruling and governing principles of the constitution, until a strong necessity for altering it should be made apparent. His lordship then went on to show the futility of the securities demanded, and of the measure itself, as it regarded the tranquillization of Ireland. The securities tendered, he said, were of two kinds: first, those which belonged to the change as it might operate upon the minds of the Roman Catholics; secondly, those which were connected with the bill itself, and the other measure by which it was attended. First, they had passed a law to put down the Catholic Association; but although that was due to the dignity of Parliament, as a security against the dangers which he apprehended, neither that measure nor the precautionary clauses of the one then before the house were, in his mind, anything else than a mere nullity. But it was said, that only six or seven Roman Catholics could be admitted into that house, and only some thirty or forty into the commons. I ask, said his lordship, whether there is no other mode of obtaining seats in that house but by the suffrage of freeholders? The bill itself is one to which I feel the strongest objection. It provides in no shape for that advice which may be given by the ministers of the crown, who may all but one, be Roman Catholics. If there should be but one or two Protestant ministers I cannot see how they can maintain their opinions; and perhaps on the maintenance of their opinion might depend the maintenance of the Protestant constitution. In conclusion, Lord Eldon said, that he should have preferred that a proposition had been made by the noble duke for going into a committee to examine the reasons for originating such a bill, because it would have been but right that, in a matter of so much importance, your lordships should have known something more of the grounds of that expediency upon which you are called to legislate. Lord Plunkett said that he had reserved himself for the purpose of hearing the unanswerable arguments against the bill which Lord Eldon had threatened to produce when the measure came fairly before the house. As that noble and learned lord, however, had brought forth nothing but the _ipse dixit_ of his own authority, unsustained either by ingenious argument, by historical deduction, or by appeal to public and authenticated documents, he felt himself so far absolved from the necessity of refuting anticipated arguments, that he would apply his observations more particularly to the position, that the bill was calculated to subvert the Protestant constitution. In the course of his remarks on this vital point of the question, his lordship observed, that he had been asked whether this was a Protestant kingdom? and whether this was not a Protestant government, and a Protestant parliament? In one sense he admitted it was a Protestant kingdom, but it did not exclude papists. He admitted, also, that the parliament was essentially and predominantly Protestant; and in that sense, but in no other, the parliament was Protestant. He concluded by saying that the present bill did not give the Roman Catholics any benefit without an oath; an oath too which combined in its language every possible security that such a form could afford. Earl Grey spoke at great length,

repeating the argument that an exclusion of Catholics had not originally formed any part of the Protestant government, since they had been found in parliament from the reign of Elizabeth down to that of Charles II.; that the exclusion was adopted to guard against political dangers of a temporary nature, which had long disappeared; that it formed no essential part of the Revolution settlement, or of the bill of rights; and that the coronation oath was never intended to restrain the king from consenting to such alterations as parliament in its wisdom might enact. Earl Grey also entered at great length into that important part of the question, which related to its bearing on the act of union with Scotland. On every ground, he continued, the right to make the change was clear; and, in his opinion, the justice and prudence of making it were equally obvious. The great object of alarm seemed to be the political power which the bill would confer, and which, it was said, was the object at which the Catholics had all along been aiming. The bill would certainly bestow political power; but, he argued, it was power of the most legitimate kind, and that to which they were justly entitled. As to the effect of the bill on the state of Ireland, he would not say that it would at once give tranquillity, and remove all dangers; but he felt sure that without it it was impossible to have tranquillity and freedom from danger in that country. By the system of exclusion, lie said, they had produced more than one rebellion in Ireland, which had been extinguished in blood; but had they, he asked, induced tranquillity? By no means. On the contrary, Ireland had been growing worse and worse every year, requiring a larger military force to keep the people obedient to the laws, and that in a time of peace. Was this the mode of making that country a useful portion of the empire? Was it the way in which we should be preparing for war? But, it was urged, if you pass this bill, the church of Ireland is destroyed, and Catholic ascendancy virtually proclaimed. That church, unfortunately, was placed in a situation which could not be freed from dangers of one sort or another. The great obstacle to its triumph had always been, that it had never been the church of more than a small minority of the people of Ireland; and that it was the church of so very small a minority, he verily believed, was owing to those very laws which they now sought to repeal. Take them away, and the number of its disciples would increase, not from the spirit of conversion..... for any open attempt in that way would be impolitic—but from its superior reason, and from its more wholesome tenets, which would come more fairly into play as soon as it should be relieved from the invidious situation in which it at present stood. Take away the false protection, of exclusive laws, and superior excellence would prevail in the conflict of argument. The debate was closed by the Duke of Wellington, who treated the apprehended danger to the Irish church as futile, considering that the throne would be filled by a Protestant, and that the fundamental article of the union between the two countries was the union of the two churches. Adverting to the charge of inconsistency brought against himself and his colleagues, his grace remarked:—“A different topic to which I wish to advert, is a charge brought against several of my colleagues, and also against myself, by the noble earl on the cross-bench, of a want of consistency in our conduct. My lords, I admit that many of my colleagues, as well as myself, did on former occasions vote against a measure of a similar description to this; and, my lords, I must say that my colleagues and myself felt, when we adopted this measure, that we should be sacrificing ourselves and our popularity to that which we feel to be our duty to our

sovereign and our country. We knew very well that if we put ourselves at the head of the Protestant cry of ‘No Popery,’ we should be much more popular even than those who have excited against us that very cry. But we felt that in so doing we should have left on the interests of the country a burden, which must end in bearing them down; and further, that we should have deserved the hate and execration of our countrymen. Then I am accused, and by a noble and learned friend of mine, of having acted with great secrecy respecting this measure. Now I beg to tell him that he has done that to me, in the course of the discussion., which he complains of others having done to him; in other words, he has, in the language of a right honourable friend of his and mine, thrown a large paving-stone instead of throwing a small pebble. I say, that if he accuses me of acting with secrecy on this question, he does not deal with me altogether fairly. He knows as well as I do how the cabinet was constructed on this question; and I ask him, had I any right to say a single word to any man whatsoever upon this measure, until the person most interested in the kingdom upon it had given his consent to my speaking out? Before he accused me of secrecy, and of improper secrecy, too, he ought to have known the precise day upon which I received the permission of the highest personage in the country, and had leave to open my mouth upon this measure. There is another point also on which a noble earl accused me of misconduct; and that is, that I did not at once dissolve the parliament. Now I must say that I think noble lords are mistaken in the notion of the benefits which they think that they would derive from a dissolution of parliament at this crisis. I believe that many of them are not aware of the consequences of a dissolution of parliament at any time. But when I know, as I did know, and as I do know, the state of the elective franchise in Ireland, when I recollected the number of men it took to watch one election which took place in Ireland in the course of last summer; when I knew the consequences which a dissolution would produce on the return to the house of commons, to say nothing of the risks which must have been incurred at each election—of collisions that might have led to something short of civil war—I say that, knowing all these things, I should have been wanting in duty to my sovereign and to my country if I had advised his majesty to dissolve his parliament.” On a division the same house of peers which in 1828 had declared, by a majority of forty-five, that emancipation would be a breach of the constitution, and dangerous to the Protestant establishment, now declared, by a majority of two hundred and seventeen against one hundred and twelve, it was consistent with the constitution; and that, if it did no good, it would not do any harm to the Protestant church.

On the 7th and 8th of April the bill passed through a committee, in which, as in the commons, many amendments were moved, but none carried. It was read a third time on the 10th of April, after another debate, in which the former arguments were repeated on both sides of the question; and on the 13th of the same month it received its final confirmation in the royal assent. The working of that measure will be best seen in the future pages of this history; but it may be here observed, that it has proved neither an immediate, nor a sufficient cure for the disorders of Ireland. Protestant ascendancy was too deeply and extensively rooted in all its institutions to admit of such a remedy; nor was it likely that the Roman Catholics, having acquired means to break their chain, would remain long without trying their efficiency.

Agitation had procured this boon; and the Roman Catholics, thus successful, have sought to obtain other benefits by the same unhallowed means. Agitation is, in fact, still the bane of Ireland.

BILL FOR THE DISFRANCHISEMENT OF THE FORTY-SHILLING FREEHOLDERS.

{GEORGE IV. 1829—1830}

Emancipation having thus been gained, Mr. Peel brought in a bill for the disfranchisement of the Irish forty-shilling freeholders, and for raising the qualification to ten pounds. This was part and parcel of the general measure, and it met with no serious opposition even in Ireland. The very Whigs supported it, hostile as it was to popular rights and destructive of vested political franchises, as an essential part of a whole; the other and better part of which they were unwilling to lose. Mr. Brougham said, he consented to it as the price, the almost extravagant price, of the inestimable good which would result from emancipation; and it was described by Sir James Mackintosh as one of those tough morsels which he had scarcely been able to swallow. It was opposed by Mr. Huskisson and others as a measure uncalled for by any necessity, and not fitted to gain that object which alone was held out as justifying it. It was absurd, it was said, to allege as a pretext for it, the influence and conduct of the Catholic priesthood; for all who knew anything of that influence, knew that it was chiefly felt when it ran with the current of popular feeling; and that it was even exercised with a view to maintain submission to the laws. If the forty-shilling freeholders had been corrupt, like those of Penryn, their disfranchisement might be defended; but the only offence of the persons against whom this bill was directed, had been that they exercised their privilege honestly and independently, according to the dictates of their own consciences. In reply to this, Mr. Peel mentioned an instance of the power of the priests as having occurred at the Clare election. At the commencement of that election a landlord of the county had promised his interest to Mr. V. Fitzgerald. The landlord had a voter on his estate who was under great personal obligations to him; and previous to the commencement of the contest, he said to this voter, “I shall vote for Mr. Fitzgerald; I suppose you mean to do the same.” The man declared his determination to imitate the example of his patron; but as the struggle drew nearer, a degree of excitement was produced to which it was only necessary to allude: and the freeholder did not escape its effects. He came to his landlord with sixty pounds in his hands, and addressed him thus:—“I have saved this sum while your tenant, and upon your property. I cannot redeem the promise which I gave you. There, take the sixty pounds, make use of it to promote the interests of Mr. Fitzgerald; but my vote I must give to Mr. O’Connell.” “Could anything,” he asked, “be so painful as the situation of him who was obliged to perform such a part, to observe such a doubtful contest between his religion and his conscience?” On a division only seventeen members voted against the bill; and it passed into a law. Mr. O’Connell had publicly bound himself to reject even emancipation if accompanied by such a condition, and to perish in the field, or on the scaffold, if necessary, in defence of his “forties;” but he forgot his vows, and became

silent and acquiescent.

THE CASE OF MR. O’CONNELL.

At the time of the Clare election Mr. O’Connell had assured the people that he was entitled to sit in parliament without taking the oaths, which no Catholic could take. He had staked his professional reputation on this point, and had given assurances that he held other learned opinions to the same purport. His return had subsequently been petitioned against; but a committee to whom the petition had been referred, had reported that he was duly elected. Now, according to the old law, under which Mr. O’Connell’s claim had arisen—he having been elected before the measure of emancipation had passed—if a person known and believed to be a Catholic could take certain oaths, which oaths involved an abjuration of Popery, he was entitled to take his seat. The new act, however, did not seem to forward his pretensions. The oath, indeed, which it substituted for those that were abrogated, could be taken by a Catholic as well as a Protestant; but that provision was expressly limited to “any person professing the Roman Catholic religion, after the commencement of this act, be returned as a member of the house of commons.” Mr. O’Connell and his friends, however, held that from the moment the bill received the royal assent, there was an end to the power of administering the abrogated oaths, or demanding any of the declarations which then stood repealed. On these grounds Mr. O’Connell hoped to take his seat in parliament. He presented himself at the table of the house on the 15th of May; and the clerk produced the oath which had been repealed by the late act. A brief conversation took place; and the clerk having communicated what took place to the speaker, he addressed the house thus: “It is my duty to state, if I have been correctly informed, that the course which the honourable member has proposed to take, is a course which, until overruled by stronger authority, I do not conceive it my duty to acquiesce in. I understand that he proposes to take the oath prescribed to be taken by Roman Catholics as it is to be found in an act of parliament recently passed. As I read that act of parliament, it is my impression, and on my impression it is my duty to act, that it involves two points relative to the course to be pursued in taking seats in this house. The first point is that of repealing the declaration against transubstantiation; the other, that of appointing an oath to be taken by such members of this house as profess the Roman Catholic creed; but with this condition, that those members should be returned subsequently to the passing of the act. Now the honourable member was returned, as the house is well aware, long before the passing of this act. I have, therefore, only to refer to the law affecting all the members of this house until the late act passed; and, with the single exception of repeating the declaration against transubstantiation, I have to state that the construction which has been uniformly put on the law of the land, and which has been repeatedly sanctioned and confirmed by act of parliament, is, that every member, before taking his seat, shall take the oath of allegiance and supremacy before the lord-steward, and the oath of abjuration at the table of this house. This is the course which, by law, the dignity and the privileges of this house require. I state this the rather because it is well known that this house is open to an appeal by petition, or it may be brought forward by any member in this house. In that case, the house will be better able to judge, and to state its opinion of the propriety of the conduct which it

appeared to me to be my duty to pursue. I, therefore, state to the honourable gentleman that he must withdraw." Mr. O'Connell having withdrawn, Mr. Brougham moved, that he should be called back, and heard at the table in support of his claim to be admitted on taking no other oath than that contained in the late act. Mr. W. Wynn was of opinion that Mr. O'Connell was entitled to be heard at the bar of the house, and that it made no difference whether he was heard there or at the table, though it was his opinion it might be better to adhere to the former course. Mr. Peel, however, thought there was a great distinction between hearing the applicant at the table and at the bar; and that he had no right to be heard at the former. The debate on this point was adjourned to the 18th of April; on which day it was finally ordered, on Mr. Peel's motion, "that the member for Clare be heard at the bar, with reference to his claim to sit and vote in the house of commons without taking the oath of supremacy." On his appearance at the bar, Mr. O'Connell maintained that the Act of Union with Ireland entitled him to sit without taking the oath of supremacy; and that the act lately passed entitled him to sit without taking the declaration against transubstantiation. He claimed, under the spirit and effect of the new statute, to sit without taking the oath of supremacy; and he claimed also, under its positive enactments, to sit without taking any other oath than what was therein contained. There were many points in his arguments very strongly put, and they were delivered with a temperance calculated to conciliate the good will of the house. Even the lawyers, also, who were opposed to Mr. O'Connell, confessed that there were doubts as to the true meaning of the oath of supremacy; but the house, notwithstanding, came to the resolution, that unless Mr. O'Connell took that oath, he was not entitled to sit or vote in that house. A motion to that effect, moved by the solicitor-general, was carried by a majority of one hundred and ninety against one hundred and sixteen. Mr. O'Connell was then called again to the bar, and the speaker having put the question to him whether he would take the oath or not, he replied:—"I see, in this oath, one assertion as to a matter of fact which I know is not true, and see in it another assertion, as to a matter of opinion which I believe is not true; I therefore refuse to take this oath." A new writ was now ordered for a new election, and Mr. O'Connell went back to Ireland to be re-elected by his constituents. The decision had an untoward effect upon his mind; for he now loaded ministers with the most opprobrious epithets, as men who having been false to their own party could never be true to any other. It caused him, indeed, to announce his ulterior design to effect a repeal of the union by that system of agitation which had already proved so successful. This purpose he has deliberately followed up by the most inflammatory harangues, and various other modes of popular excitement. From that day to this year, indeed, his whole career has been one long course of agitation to effect the repeal of the union; but whether he or any other agitator in Ireland will ever be gratified by such an event demands a doubt.

FINANCIAL STATEMENTS.

The chancellor of the exchequer opened the budget on the 8th of May. From his statements it appeared that the revenue of the preceding year so far exceeded his estimate as to leave a surplus of nearly £6,000,000 for the sinking-fund. For the present year, however, as the house was anxious to abolish the absurd system of

defraying the expense of military and naval pensions, or the “dead weight” as it was called, by postponing its burdens, he estimated the gross revenue at £51,347,000 and the expenditure at £48,333,593, by which means he left only a clear sinking-fund of £3,000,000 for diminishing the public debt. The finance committee had recommended that this sum should always be kept inviolate for the purpose of reducing the national debt; and as the surplus on which they could calculate was no greater, no part of it could be applied to the reduction of the burthens of the country.

MOTION FOR PARLIAMENTARY REFORM.

The last parliamentary result of the measures passed in regard to Ireland was a motion for parliamentary reform. On the 2nd of June, the Marquis of Blandford, one of the ultra-tories, moved a series of resolutions, which went to declare that there existed a number of boroughs the representation of which could be purchased, and others in which the number of electors was so small as to render them liable to the influence of bribery; and that such a system was disgraceful to the character of the house of commons, destructive of the confidence which the people should repose in it, and prejudicial to the best interests of the country. The Marquis of Blandford supported his motion on the ground that late events had shown how completely the representative body could be separated from the feelings, the wishes, and the opinions of the people. An imperious necessity had also been added to the already existing propriety of putting down the borough-monger and his trade: all the rights and liberties of the country were in jeopardy, so long as majorities were to be obtained by a traffic of seats and services. “After what had happened,” said his lordship, “the country demanded some statutory provision to secure its agriculture, its manufactures, and its trade; but more especially to secure Protestant interests against the influx and increase of the Roman Catholic party, one mode of securing this, and at the same time of purifying the representation, would be to abolish the borough market, which had now been thrown open to Catholics.” This motion, which was intended to be rather in the nature of a notice, than made with any design of having the topics which it embraced fully discussed, was supported by some of the old reformers, though on different grounds from that dislike of free trade, and apprehension of Catholic influence which animated the mover. Mr. W. Smith, in voting for the resolutions, expressed his high satisfaction that the relief bill had produced an effect unanticipated—the transforming a number of the highest tories in the land, into something very like radical reformers. The resolutions, however, were rejected by a majority of four hundred and one against one hundred and eighteen.

PROROGATION OF PARLIAMENT, ETC.

Parliament was prorogued by commission on the 24th of June. The speech regretted that war still continued in the east of Europe; announced that his majesty had been enabled to renew his diplomatic relations with the Ottoman Porte; and adverted to the unfortunate condition of the Portuguese monarchy. In allusion to the Catholic relief bill, the speech remarked: “His majesty has commanded us in conclusion to express the sincere hope of his majesty that the important measures, which have been adopted by parliament in the course of the present session may tend, under the blessing of Divine Providence, to establish the tranquillity and

improve the condition of Ireland; and that by strengthening the bonds of union between the several parts of this great empire, they may consolidate and augment its power and promote the happiness of his people." About this time the legal arrangements rendered necessary by the dismissal of Sir Charles Wetherell were completed: Sir James Scarlett, who had filled the same office under Mr. Canning, became the attorney-general of the Duke of Wellington; Sir Nicholas Tindal was made chief-justice of the common pleas, Chief-Justice Best being removed into the house of peers, under the title of Lord Wynford; and Mr. Sugden succeeded the former as solicitor-general.

STATE OF AFFAIRS IN IRELAND.

The Catholic relief bill was impotent to stem the tide of agitation in Ireland. That country, indeed, in the very year that it passed, presented the same scenes of violence and outrage as before. While the registation rendered necessary by the act which disfranchised the forty-shilling freeholders was going on, Mr. O'Connell was taking measures to secure his re-election for the county of Clare. In a letter to the electors he again raised the standard of defiance to government. It represented himself and his constituents, in fact, as the conquerors of the government; and spoke of it as faithless and insulting. In it he remarked: "The house of commons have deprived me of the right conferred on me by the people of Clare. They have, in my opinion, unjustly and illegally deprived me of that right; but from their decision there is no appeal, save to the people. I appeal to you. In my person the county of Clare has been insulted. The brand of degradation has been raised to mark me, because the people of Clare fairly selected me. Will the people of Clare endure this insult, now that they can firmly but constitutionally efface it for ever? Electors of the county of Clare, to you is due the glory of converting Peel and conquering Wellington! The last election for Clare is admitted to have been the immediate irresistible cause of producing the Catholic relief bill. You have achieved the religious liberty of Ireland. Another such victory in Clare, and we shall attain the political freedom of our beloved country." The victory which had been achieved, he said, was still necessary to be maintained in order to "prevent Catholic rights and liberties from being sapped and undermined by the insidious policy of those men who, false to their own party, can never be true to us, and who have yielded, not to reason, but to necessity, in granting us freedom of conscience." Even the Catholic relief bill itself did not escape the censure of Mr. O'Connell. The prohibition contained in it against the growth of the monastic orders especially was denounced by him. He remarked:—"I trust I shall be the instrument of erasing from the statute-book that paltry imitation of the worst and still existing portion of Jacobinism, a miserable imitation, which pretends to do that which nature and religion forbid to be done—to extinguish monastic orders in Ireland. While it is law, its penalties will be submitted to; but let me add as a matter of fact, that its mandate will most assuredly not be obeyed. It was formerly death in Ireland to be a friar; and the Irish earth is still scarcely dry from the blow of martyred friars: the friars multiplied in the face of death. Oh for the sagacity of Peel, and the awful wisdom of Wellington, that meditate to suppress monastic orders in Ireland by a pecuniary penalty, and the dread of a foreign mission, under the name of banishment!" In this letter Mr. O'Connell made some magnificent promises to the

electors of Clare and the people of Ireland at large. He would obtain the repeal of the disfranchisement act, of the subletting act, and of the vestry bill; would assail the system of “grand jury jobbing, and grand jury assessment;” would procure an equitable distribution of church property between the poor on the one hand, and the laborious portion of the Protestant clergy on the other; would cleanse the Augean stables of the law, for which Herculean task his professional habits gave him peculiar facilities; would procure for every Catholic rector of a parish, a parochial house, and an adequate glebe; would make manifest the monstrous injustice that had been done to the Jesuits and the monastic orders; would wage war against the East India charter; would strain every nerve in the cause of parliamentary reform; and would provide a system of poor laws for Ireland that would be agreeable even to those who had to pay their money for the support of the poor. He added:—“If the gentry of Clare are desirous to have as their representative a man who is able and most desirous to protect in parliament their properties and permanent interests, let them do me the honour to elect me. But let them not lay the flattering unction to their souls, that they can, without an independent man of business as their representative, postpone the introduction of the English system of poor laws.” As soon as Mr. O’Connell took the field an “aggregate meeting” of Catholics, which was nothing else than a meeting of the Catholic Association took place, to consider what steps should be adopted to forward his re-election. The first thing done was to vote £5000 of the rent as an aid to assist the agitator in standing for the county of Clare, The election did not excite much interest, as Mr. O’Connell was not opposed; but it was preceded and accompanied by “triumphant entries” as they were called; that is, assemblages of large crowds of people, to whom were addressed harangues in which inflammatory abuse was mixed up with low buffoonery. On the subject of the repeal of the union with England, he said at Youghall:—“We have now a brighter era opened to us; and I trust that all classes of my countrymen will join together, and, by forming one general firm phalanx, achieve what is still wanting to make Ireland what it ought to be. Ireland had her 1782, she shall have another 1782. Let no man tell me it is useless to look for a repeal of the odious union, that blot upon our national character. I revere the union between England and Scotland; but the union which converted Ireland into a province, which deprived Ireland of her parliament, it is for the repeal of that measure we must now use all the constitutional means in our power: that union which engenders absenteeism, and the thousand other evils which naturally flow in its train. We are bound to England by the golden link of the crown; and far be it from me to weaken that connexion by my present observations: I want no disseveration; but I want and must have a repeal of that cursed measure which deprived Ireland of her senate, and thereby made her a dependent upon British aristocracy and British interests. I may perhaps be told that to attempt a repeal of the union would be chimerical. I pity the man who requires an argument in support of the position that Ireland wants her parliament; and that individual who pronounces the attainment of such a consummation to be Utopian, is reminded of the Catholic question. Look at the Catholic cause. Do I not remember when it was difficult to procure a meeting of five Catholics to look for a restoration of our then withheld rights? I recollect when we agitators were almost as much execrated by our fellow-slaves, as we were by our oppressors. For the attainment of the repeal of the union, I shall have the

co-operation of all classes and grades in society: the Orangemen of the north, the Methodist of the south, and the quiet unpresuming Quaker, who may think his gains shall be thereby augmented, all shall be joined in one common cause, the restoration of Ireland's parliament." But this was a mild attack upon England compared with other portions of the agitator's speeches. It is no wonder then that Ireland soon presented scenes of as much violence as those from which the emancipation bill was to relieve her for ever. The hostile feelings of parties continued, and manifested themselves in the same way as heretofore. Catholics and Protestants alike had recourse to organization, and the slightest accident, the most casual collisions produced contention, and generally ended in bloodshed. Thus on the 12th of July, which the Protestants had resolved to celebrate, the Catholics determined to oppose their intention by force wherever they could, and in the counties of Clare, Tipperary, Armagh, Leitrim, Cavan, Fermanagh, and Monaghan, the aspect of open war was assumed, and it was only prevented by the presence of the military. Many lives were, indeed, sacrificed, and many thousands were driven from their homes by the opposing parties. In several instances where death had occurred from the interference of the police, or from their resistance when attacked, trials ensued; but this only tended to exasperate the Catholics still more. An acquittal, though proceeding on the clearest evidence that life had been justly taken from an armed aggressor, was uniformly ascribed to partiality. Imagining that the law existed only to be used against them they took the task of retribution for supposed injuries into their own hands, and assumed arms to gratify revenge, in defiance of the law Judges, juries, and the government were laughed at by Catholic criminals, for no witness dared to communicate what he knew against them. At the close of this year, indeed, matters had proceeded to such a length in Ireland, and especially in Tipperary, that the magistrates expressed an opinion that nothing but a revival of the insurrection act would secure the peace of the country. But this could not be effected, for it had expired, and parliament was not sitting. So Ireland was left to be rent asunder with the spirit of faction. "State gipsies" were left to pick the pockets of the ignorant as they pleased, or as they could gain control over those of the people, by their artful and seditious harangues.

AGRICULTURAL AND COMMERCIAL DISTRESS.

{GEORGE IV. 1829—1830}

England, also, this year presented its scenes of lawlessness. This arose from different causes to those which gave rise to the insurrection in Ireland. These causes were the distress which prevailed among the agricultural, manufacturing, and commercial classes. The depression in every branch of trade experienced this year naturally gave rise to a reduction of wages among the artisans. These artisans, however, unreasonably ascribed this reduction, not to the necessities of trade, but to the avarice of their employers; and they still more unreasonably proceeded to their usual correctives—voluntary idleness, and the destruction of property. The example was set by the silk-weavers of Spitalfields and Bethnal-Green, who refused to work except at an increased rate of wages, and made their way by night into the shops of workmen

possessed of materials belonging to the refractory masters, and destroyed them. Overawed by the combination, the masters agreed finally to pay the same wages that had been paid in 1824, although its continuation would prove ruinous to them. Similar scenes were exhibited, and the same results followed at Macclesfield, Nuneaton, and Bedworth. Nor did the manufacturing districts of Yorkshire escape the contagion. About the end of May the weavers of Barnsley, like the silk-weavers of Bethnal-Green and Macclesfield, forced upon their employers a list of prices. By August and September, however, the masters found it impossible to keep to these prices; and when they proposed a reduction, the workmen immediately left their work, and commenced a riot. Warehouses were attacked, as were also the houses of such weavers as had taken out work at reduced prices; and it was only by calling in the aid of the military that tranquillity was restored. Yet lawless and mischievous as these proceedings were, it was clear that they originated from the misery of those engaged in them. A report, drawn up at Huddersfield by a committee of masters, stated, “that within the several townships engaged in fancy business, there were 13,000 individuals who had not more than twopence halfpenny per day to live on; and out of this they had to find wear and tear for looms.” This report added, “Whatever be the cause of such distress, it is feared that the agonizing condition of families so circumstanced cannot long be endured. The difficulty of obtaining relief by the ordinary course, and the aggravating circumstances often attending applications for it, have a powerful tendency to drive the applicants ultimately to desperation. In laying these painful statements before the members of his majesty’s government and other influential gentlemen, the master manufacturers wish to do it respectfully, impelled by a sense of duty which they owe to the government and the public, and especially to their workmen, who have hitherto borne their sufferings with extreme patience.” The distress was aggravated by a bad harvest and a severe winter, all of which contributed to bring the productive classes of the community, and especially the lowest orders, into a state of abject misery.

FOREIGN POLITICS.

The foreign affairs requiring notice, as affecting Great Britain, were principally those in the East. During this year Turkey was obliged to sue to the Russian autocrat for peace; for both the Russian army and navy were successful in all their operations. The terms granted were as follows:—The Pruth was to constitute the European limit as before; but Silistria was to be dismantled. An alteration was to be made in the Asiatic boundaries, so that the whole eastern coast of the Black Sea, from the Kuban to the harbour of St. Nicholas, together with the fortresses of Anapa and Poti, should remain in possession of Russia. The principalities of Moldavia and Wallachia were to be confirmed in their rights; but the Hospodars were to be nominated only for life, and no Turks allowed to dwell there. Free trade was to be allowed on the Black Sea, and navigation through the straits for vessels belonging to Russia, as well as all other countries at peace with the Porte. The sultan was to defray the expenses of the war, and to accede to the treaties concluded at London regarding the Greeks. The bases of the intended negociations respecting Greece were finally arranged among the allies, at a conference on the 22nd of March in the present year. The protocol signed by them read as follows:—“1. The continental boundary line of the Greek state is to be

drawn from the gulf of Volo to the gulf of Arsa. All countries south of this line to be included in the Greek state, to which the adjacent islands, comprehending Euboea and the Cyclades, are likewise to belong 2. An annual tribute of 1,500,000 Turkish piastres to be paid by this Greek state. Only a third part to be paid during the first year, and to be gradually increased till it reaches the maximum in the fourth. 3. Turkish subjects who may be forced to depart from the Greek territory to be indemnified. 4. Greece is to remain under the suzerainty of the Porte, which form of government is to approach as nearly as possible to & monarchical form, and to be hereditary in the family of a Christian prince, to be chosen for the first time by the three powers, in concert with the Porte. He is not to be a member of the families reigning in the states which are parties to the treaty of July 6th." Finally, the three powers, however, agreed to restrict the territory of the new state within narrower limits than were assumed in this protocol. The line adopted was further to the south. It commenced on the east at Zeitouni, a little to the northward of Thermopylae, and ran across the country in the direction of Vrachori, till it reached the river Aspropotamos, or the ancient Achelous, whose course it was then to follow as far as the sea. It thus excluded not only Thessaly, but Acarnaniaand the town of Vonizza, which the Greeks had taken early in the year, and an extensive tract of level country lying round the gulf of Calarno. The whole western frontier of northern Greece was left open by it to the attacks of its barbarian foes. And this determination was made without the wishes of the Greeks being consulted, or any communication made to the Greek government. The matter was, in truth, decided at London without the intervention of either Turkish or Greek minister; but the Porte and the Greek government were alike compelled to agree to the articles drawn up by the three powers.

In the Netherlands the session of the States-general, during the present year, was less tranquil and satisfactory than any that had been held since the Restoration. The king himself continued popular; but his government produced general dissatisfaction by some obnoxious measures; especially by dismissing judges who were supposed to be too obstinate; by partiality in official appointments; and by exercising severity against the press when it criticised the policy of administration. When the States-general met, the second chamber was immediately occupied in discussing an immense number of petitions, recommending improvements in the present system of government. Some ameliorations were made; but government resisted the proposal that cases of alleged abuse of the liberty of the press should be tried by a jury, and also the introduction of grand juries, and the extension of jury trials to the provincial courts and other criminal tribunals. On the other hand, a numerous body in the chamber censured every measure of the government, and resisted every project of its ministers; and the session ended with an increase of that excitement and dissatisfaction which for some time had been growing up in the public mind.

During this year, also, the government of France was embarrassed with difficulties. A new ministry had been formed under the presidency of Prince Polignac, all the members of which belonged to that section which advocated irresponsible power in politics, and essential domination in religion. Nothing could exceed the unpopularity of these appointments. The press teemed with denouncements both of

the men and their measures; and prosecutions for its bold sentiments became the order of the day. Prosecutions increased, from the fact that associations were formed to resist the payment of taxes, in case ministers should attempt to rule without a chamber. Finally, the cabinet itself became divided. One great cause of its unpopularity was, that it contained Labourdonnaye, who had signalized himself by recommending a terrific system of proscription, and had, after the manner of Marius and Sylla at Rome, classified those descriptions of people on whom he demanded vengeance. Labourdonnaye retired towards the close of the year; but public opinion continued against the administration as strong and unanimous as ever. At one time, the organs of the cabinet threatened a dissolution of the chambers, and at another, the ultra-journals preached the doctrine of ruling without the chambers. The more accredited organs of the cabinet, indeed, did not openly repeat such sentiments, but they were connected in the minds of the people with that set of opinions which the cabinet represented. If the one party, indeed, were led astray by assuming evil designs not in existence, ministers were equally blind as to the character of their antagonists. The year finally closed in mutual recriminations; ministers keeping their places until the convocation of the legislature should determine, whether the chambers were to decide the fate of the cabinet, or the cabinet that of the chambers. One fact, however, was favourable to the interests of France: namely, that its foreign relations remained peaceful and unaltered.

In Portugal, Don Miguel this year unfolded to the world his true character. Early in this year an unsuccessful attempt was made in Oporto at insurrection in favour of Donna Maria, and the usurper made use of this occurrence to multiply arrests in the capital. Every individual whom any creature of government disliked, or any private enemy thought proper to denounce by an anonymous accusation, was forthwith consigned to the dungeons of the Limveiro, or of St. Julian. The actual conspirators at Oporto were tried by commission, and several of them were exiled, and the rest acquitted as persons against whom nothing was proved. Miguel, however, was shocked at the lenity of the sentence, and refused to ratify it; ordering at the same time a new sentence to be framed, by which five prisoners condemned to perpetual exile were directed to be hanged, and two who were to have been transported for ten years, to transportation for life. In comparison with death, the condition of the prisoners, with whom the jails and fortresses were crowded to suffocation, was scarcely to be envied. Though all were uncondemned, and most of them innocent, the whole were delivered over to the merciless authority of apostolic miscreants, who seemed to find no gratification but in the invention of new modes of inflicting misery.

Among the incarcerated were many persons in affluent circumstances, who charitably contributed to support the poorer prisoners, whom their tyrants were willing should perish by starvation. To deprive them of all assistance, indeed, government ordered their benefactors to be removed from the dungeons in the city, to those of St. Julian, Belem, and Bugio. Here, without being brought to trial, the prisoners were cut off from all communication, even with the members of their own families. Many of them died of want and confinement, and the usurper was suspected of poisoning others. No rank, sex, or character was respected; a child of five years of age was kept in solitary confinement five days, and subjected to the tortures of a

prison to extort evidence against its father and mother. A refugee Spanish bishop, who had been a member of the Cortes of 1812, and had since lived in security at Lisbon, was thrown into a dungeon, and died in four days, in consequence of maltreatment, and his body was thrown into a hole in the esplanade of the castle without burial. The most sanguinary scenes took place both at Oporto and Lisbon. The rage of the tyrant was backed by the priests, who in their sermons and publications applauded the work of death and devastation as an acceptable offering to the Divine Majesty. One Jose Agostino, a monk and court preacher, published a pamphlet called “The Beast Flayed,” urging the necessity of multiplying sacrifices, and recommending that the constitutionalists should be hanged up by the feet, and the people joyfully treated with fresh meat from the gallows. These sentiments only added fuel to the flames of Don Miguel’s vengeance, and the kingdom was laid at the mercy of a set of men to whose vengeance, brutality, and avarice there were no bounds. One step downward in the path of moral turpitude ever leads to another. From the moment of his return, Don Miguel had hated his sister Bonna Maria, because she had been her brother’s regent, and had been faithful to the constitution. Miguel learned that a footman formerly in the service of his sister had set out for England, and he fancied that he had been sent by Donna Maria with her money and jewels, in order to secure them from his rapacity. It is probable, also, that he imagined the servant had been sent to England for the purpose of making known the dreadful state of the country; and enraged thereby, he rushed into her chamber with a pistol in his hand, and demanded an account of the flight of her servant. Donna Maria stood for a while trembling in silence, but as Miguel was about to strike her with the pistol which was armed with a bayonet, she threw herself upon him, and overturned him. Her chamberlain now flew to her rescue. Miguel sprang up, and when on the point of again attacking her, Count Camarido threw himself before him. The tyrant disabled him by stabbing him in the arm, and fired at the princess; and though the ball missed her, it killed a servant by her side. Other domestics now interfered, and the life of Donna Maria was saved. She was hurried away from his brutal fury. While scenes of outrage and wrong were being committed daily throughout the whole of Portugal, the necessities of the government increased, notwithstanding a forced issue of paper money was made. Recourse was had to an expedition to reduce Terceira, one of the Azores, the only spot in the dominions of Portugal which remained true to its rightful monarch. This expedition set sail about the middle of June, and the troops succeeded in effecting a landing; but they were totally defeated by the islanders, under Villa Flor, who had made his escape with the Marquis Palmella and nineteen other general officers from the rage of Miguel. In the meantime the tyrant’s interest was supported at Madrid by the great influence of his mother over the family of Ferdinand, who, in fact, regarded Miguel with peculiar complacency, because he had destroyed a constitutional government. The other sovereigns of Europe however, still kept aloof from any communication with the usurper. It was contended by the Portuguese refugees, and the ministers of Don Pedro, that they ought to drive Miguel from his throne by positive interference. These applications were especially made to the British ministry; but though Lord Aberdeen admitted to their fullest extent the obligations created by the treaties existing between Britain and Portugal, he maintained that they gave no countenance to any

demand made for interference in an internal revolution. He remarked: “It is assumed that the usurpation of the throne of Portugal by the infant Don Miguel has given to her most faithful majesty the right of demanding from this country effectual succours for the recovery of her crown and kingdom. But in the whole series of treaties there is no express stipulation which can warrant this pretension, neither is such an obligation implied by their general tenor and spirit. It is either for the purpose of resisting successful rebellion, or of deciding by force a doubtful question of succession that Great Britain is now called upon to act. But it is impossible to imagine that any independent state could ever intend thus to commit the control and direction of its internal affairs to the hands of another power. For, doubtless, if his Britannic majesty be under the necessity of furnishing effectual succours in the event of any internal revolt or dissension in Portugal, it would become a duty, and, indeed, it would be essential to take care that no such case should exist if it could be prevented. Hence a constant and minute interference in the affairs of Portugal would be indispensable; for his majesty could never consent to hold his fleets and armies at the disposal of a king of Portugal, without exercising those due precautions and that superintendence which would assure him that his forces would not be employed in averting the effects of misgovernment, folly, or caprice. Is this a condition in which any state professing to be independent could endure to exist? The truth is, that the whole spirit of the treaties, as well as their history, shows that the principle of the guarantee given by England is the protection of Portugal from foreign interference.” The British government, therefore, refused to interfere in this domestic quarrel; and it also considered itself bound to observe a strict neutrality in regard to all military operations. A considerable number of Portuguese exiles, resident on our southern coast, appeared to have some design of fitting out an expedition against Don Miguel; and the British government, holding such views as above unfolded, informed the Brazilian minister that it would not allow such designs to be carried on in British harbours, and that the refugees must remove further from the coast. The Brazilian minister replied, that these troops were about to be conveyed to Brazil; and accordingly four vessels, having on board six hundred and fifty-two officers, with Count Saldanha at their head, sailed from Plymouth. The British government, however, suspected that the true design was to land those troops at Terceira; and notice was given to them before they sailed that any such attempt would be resisted. A small force, under the command of Captain Walpole, was despatched to enforce the prohibition; his instructions being to cruise off the island; to inform the Portuguese that he had authority to prevent their landing; and if they made any effort to effect a landing, to resist such an attempt by force, and to drive them away from that neighbourhood. The suspicions of the government were in this instance justified. The expedition of Count Saldanha appeared off Terceira on the 16th of January; and was discovered by Captain Walpole standing right in for Port Praya. Two shots were fired for the purpose of bringing them to; but without effect. The vessels then lay-to; and to a note from Captain Walpole, inquiring what was their object in coming thither, Saldanha answered, that his object in appearing there was to fulfil the orders of her majesty the Queen of Portugal, which directed him to conduct, unarmed, without any hostile appearance, to the isle of Terceira, the men that were on board the four vessels in sight, which island has never ceased to acknowledge Donna Maria II. as its

legitimate sovereign. He added:—“As a faithful subject and soldier, I think it unnecessary to assure you that I am determined to fulfil my duty at all peril.” Captain Walpole replied, that he had instructions to obey, and an imperious duty to perform; that both of them prevented him from allowing the count, or any part of his force, to land either at Terceira, or on any part of the western islands of the Azores, or even to continue in that neighbourhood. To this communication Saldanha replied, that he considered himself and his men, in such circumstances, Captain Walpole’s prisoners; that they would follow his vessels where-ever he chose to take them; but must have a written order to that effect, and be supplied with water and provisions; if he had not this written order, he said, he would pursue his course, and endeavour at all risks to fulfil his instructions. Captain Walpole’s reply still was, “Go where you choose, but don’t stay here; if you persist in hovering about these islands, it is my duty and firm determination to carry those measures you are already in possession of into full effect.” After this angry correspondence the Portuguese finally sailed away; and the British commander having watched them until they arrived within five hundred miles of Sicily, returned to his station at Terceira. Count Saldanha and his squadron instead of returning to England, proceeded to Brest. This occurrence excited much notice in Europe, and it was brought under discussion in the British parliament. It was represented by the opposition as a direct act of hostility in favour of the usurper, against the acknowledged Queen of Portugal, then residing in England; and as an armed interference in favour of Miguel at the very moment when it was pretended that the duties of neutrality did not admit of interference. It was asked, if not bound by treaties to assist the queen in recovering her crown, whence arose our right to prevent her, by means of her own subjects, from making the attempt? Why, when recognizing her right, refusing to admit the title of Miguel, and pretending to maintain a strict neutrality, had we interfered by force against a lawful sovereign? And what could excuse the barbarous injustice of telling the lawful monarch that, in so far as we were concerned, she must work out her own restoration by her own strength; and then, when she puts forth her strength; telling her that we would not allow it to be employed? To all this it was replied that the armament attacked had been fitted out in a British port, an answer which decided the merits of the question; for whether the observance of neutrality between two competitors for the crown of Portugal was right or wrong, appeared in this case a matter of indifference; as it had been decided on, no other course could justly have been taken: and if Miguel’s armament had been fitted out in a British port, it would have met with a similar interruption. If ministers were to be attacked, indeed, the only vulnerable point was the maintenance of a strict neutrality towards a tyrant who had voluntarily sworn to our government that he would obey the laws and preserve the constitution of their country. In the meantime negociations had been going on between Don Pedro and the ministers of England and Austria to effect some arrangement of affairs; and a deputation had been sent by the Portuguese constitutionalists to point out how these affairs stood, and to urge the necessity of adopting active measures. Don Pedro, however, refused to accept propositions from foreign negociation which involved any sacrifice of his daughter’s claims, while he assured the Portuguese that he would maintain the rights of their queen without entering into any compromise with the usurper of her throne. But Pedro did not strengthen the hopes of his friends at this

time by the resolution which he admitted of recalling his daughter from England to Brazil; and the British government itself remonstrated with him on the impolicy of that step. Donna Maria’s return to Rio de Janeiro seemed to convey the idea, indeed, that she had abandoned all pretensions to the crown of Portugal, and had left Don Miguel undisputed master of the field. But such was not in reality the case. Don Pedro had ulterior objects in view by the recall of his daughter; and the Brazilian minister made a public declaration, to the effect that Donna Maria’s departure from Europe neither involved an abdication of the crown on the part of her majesty, nor an indifference on the part of Don Pedro to his daughter’s rights.

The history of Spain furnishes but few events of importance during the present year. In the early part of it, Ferdinand lost his queen, and towards the close he contracted a third marriage with a princess of Naples. The marriage was celebrated at Madrid, to the great dissatisfaction of the adherents of Ferdinand’s brother, Don Carlos. During the year, conspiracies transpired in Catalonia. They were supposed to have been excited by the Count d’Espagne for the sake of private advantage, and they were followed by cruel executions. The rest of the country remained tranquil; but its finances were in so dreadful a state of exhaustion from a long continuance of misgovernment and exclusion, that Cadiz was declared a free port, in the hope of restoring foreign commerce to its ancient condition. At this time, however, the Spanish government, which had been driven from the English money-market by its faithless conduct respecting the Cortes’ bonds, ran the risk of losing its credit with all the European states, by a discovery of its fraud in a French loan.

CHAPTER XL.

{GEORGE IV. 1830—1831}

State of Parties..... Meeting of Parliament..... Motion for a Committee of the whole House on the State of the Nation..... Reduction of the Salaries of Public Officers, &c. Motion for revising the whole System of Taxation..... Committee on the East India Company’s Charter..... Debate on the Proposal to alter the Currency..... Financial Statements..... Bill for Repealing the Duty on Beer, &c. The Question of Reform..... The Case of East Retford, &c. Mr. O’Connel’s Bill for Reform by Universal Suffrage and Vote by Ballot, &c. Bill for Removing the civil Disabilities affecting the Jews..... Bill for Capital Punishment in Cases of Forgery..... Bill for Amending the Law of Libel, &c. Alterations in Courts of Justice..... Illness of the King..... Bill to authorize the adhibiting of the Sign Manual by a Stamp..... Death of the King, and Accession of the Duke of Clarence, William IV.....

STATE OF PARTIES.

{A.D. 1830}

At the commencement of this year, government found itself in a new and unsafe position. It had carried the great party question of Catholic emancipation, but in so

doing it had lost the confidence of a large body of its most faithful adherents. Ministers had, it is true, on the other hand, gained the seeming support of their old enemies of the opposition; but this could not be depended upon. The Whigs were willing to lend them such assistance as would prevent the necessity of seeking a reconciliation with the offended Tories; but they were not willing to concede even this, except as the means of gradually introducing themselves into an equal share of power. They assented to a coalition in parliament; but the price of this assent was coalition in office. In a word, their policy was to aid the government with their countenance and their votes, so far as it would be sufficient to keep it alive, but by no means to give it the robustness and vigour of perfect health. On the other hand, the Duke of Wellington was willing to use them as supporters; but he was not disposed to extend to them an equal share of power. It was his wish, indeed, to be reconciled to his old friends; and, therefore, he stood aloof from a more intimate connexion with the Whigs, that he might keep open the door of reconciliation to the former. He flattered himself, that as each of the two divisions of his adversaries would be unwilling to drive him for the preservation of the ministry into the arms of the other, he might command the occasional assistance of both, to an extent sufficient to enable him to govern without placing himself in the power of either. But this was chimerical. The Tories showed no inclination to trust men whom they considered as their betrayers, and they resisted them as statesmen who had abused their power, and coalesced with their political antagonists, to force upon the country a measure contrary to its opinions, interests, and institutions. They resisted them, also, as politicians who, to effect their purpose had abandoned their tenets, betrayed and surprised their own confiding adherents, and introduced as a principle into the conduct of government, that everything was to be granted which was demanded by clamorous agitation. Between the Tories and the Whigs, the distance was not greater than between the Tories and the ministry; and perhaps it was not even so great, as the Whigs had not betrayed their opponents. The Duke of Wellington, indeed, seems to have had some fear that the two parties might coalesce, in order to effect his expulsion from power. Nor was this fear without foundation. Neither party was in heart his friends; and his own conduct had at once furnished the motives to such an union, and removed one irreconcileable point of difference between the parties whose union he feared. Moreover, in itself the ministry was without the means of making any commanding figure in the house of commons. With the exception of Mr. Peel, who filled the post of leader in that house, there was no man who could fight their battles of debate with any degree of talent and vigour, no one that held any high place in public opinion, either for oratory or information. Finally, the ministry increased their unpopularity by prosecutions for libel arising out of the Catholic relief bill. While that bill was pending, the press had given birth to much vehement and angry discussion, and some of the papers having gone beyond the bounds of allowable invective, the attorney-general resolved to crush them by ex-officio informations. But these prosecutions were received with an universal dislike by all parties in the country; and the temper in which the Whig attorney-general conducted them, gave a severe blow to his public character, and increased the unpopularity of the government.

MEETING OF PARLIAMENT.

Parliament was opened by commission on the 4th of February. The royal speech expressed satisfaction at the conclusion of war between Russia and the Ottoman Porte, and alluded to the embarrassing affairs of Portugal. Concerning the prevailing distress, it remarked:—“His majesty laments that, notwithstanding an indication of active commerce, distress should prevail among the agricultural and manufacturing classes in some parts of the United Kingdom. It would be most gratifying to the paternal feelings of his majesty to be enabled to propose for your consideration measures calculated to remove the difficulties of any portion of his subjects, and at the same time compatible with the general and permanent interests of his people. It is from a deep solicitude for those interests that his majesty is impressed with the necessity of acting with extreme caution in reference to this important subject. His majesty feels assured that you will concur with him in assigning due weight to the effect of unfavourable seasons, and to the operation of other causes which are beyond the reach of legislative control or remedy.” This qualified admission of the existence of national distress gave great offence in both houses of parliament. In the lords, Earl Stanhope moved as an amendment to the address, “That this house views, with the deepest sorrow and anxiety the severe distress which now afflicts the country, and will immediately proceed to examine into its cause, and into the means of effectually providing the necessary relief.” His lordship said that a more inappropriate and unsatisfactory speech had never been addressed to any public assembly. The speech said that distress existed “in some parts” of the country: he asked, in what part it did not exist? The kingdom, he asserted, was in a state of universal distress, embracing alike agriculture, manufactures, trade, and commerce. These great interests had never before at one time been at so low an ebb, nor in a condition which demanded more imperatively the prompt and energetic interference of parliament. The speech ascribed the distress existing, so far as it had admitted it, to unfavourable seasons. This of course operated upon grain; but was the effect of unfavourable seasons usually visible in a reduction of price? Did a bad harvest make corn cheap? The evil was so notorious that nobody but his majesty’s ministers doubted its existence, and they could not deny it, if they only cast their eyes around, and saw the counties pouring on them every kind of solicitation for relief. Why then was inquiry evaded or denied? It was not true that the causes of distress were placed beyond the reach of parliament, it was parliament that had produced them, and yet ministers now wished parliament to disregard the effects, and treat the public distress with indifference. The amendment moved by Earl Stanhope was supported by the Duke of Richmond, and the Earls of Carnarvon and Winchilsea. The Earl of Carnarvon declared that the address called upon them to pledge themselves to statements inconsistent with truth, and declared that he would never lend his countenance to the fallacious representations of mere partial distress, as set forth in the speech. That speech, he said, did not contain one word of the true causes of the country’s suffering; but gravely desired them to take “the state of the seasons” into their consideration. He contended that no small part of the distress was owing to the change in the currency. There had been periods of distress in former times, but they had soon passed away. Now, however, the kingdom was placed in very different circumstances, as the

circulation of specie was no longer commensurate with the demand. He suggested that a silver standard should be adopted, by which he conceived that the resources of the country would be emancipated from the artificial fetters in which they were now bound, and prove sufficient to feed the now starving population. The Earl of Winchilsea said, that, if the house refused to take the distress into consideration, an opinion would be forced on the country, that it was unable to legislate for the public good. A spirit was springing up, he said, in different parts of the country, for forming associations, not to lay the grievances of the people before parliament, but to propose remedies of their own, and to redress their own wrongs. To that spirit, he contended, their lordships would be supplying encouragement if they refused to institute an inquiry into the nature and causes of the existing distress. The amendment was opposed by Lord Goderich, the Marquis of Lansdowne, and the Duke of Wellington. Lord Goderich said that the true object of its noble mover was to get rid of the alterations lately introduced into our commercial system, and to unsettle the basis on which the currency now stood. For his own part he had never been able to learn, from the opponents of what was called “Free Trade,” what that was which they denounced under that name. The noble mover seemed to menace by it the refusal to foster domestic agriculture by prohibiting the importation of foreign wool. That refusal was no modern invention. It was not till 1819 that the importation of foreign wool had been prohibited; and the duty then laid was imposed merely for the purposes of revenue, and not as a protection to trade. The Duke of Wellington said that much more had been made out of the expressions in the speech, concerning the bad seasons, than was meant. It was not set down as the only cause of distress, but was alluded to as one circumstance not to be lost sight of: there had been one bad harvest, and another had been attended, in getting it in, with unusual expense; these were facts to be taken into consideration. Another cause of distress, he said, “was to be found in the state of our manufactures: this it was to which his majesty alluded, when he spoke of me operation of causes beyond the reach of legislative control. Were not, he asked, competition at home and abroad, the introduction of machinery, and the general adoption of steam, calculated to produce distress among our manufacturers? Yet could parliament prevent competition? Could it prohibit the use of machinery, and the application of steam, all of which, by throwing labourers out of employment, produced distress? But,” his grace continued, “I am satisfied that the distress is not universal; that there are parts of the country free from it. The exports of last year had been greater than they had ever been before; and there was not a canal or railway in the country which did not present an increase of traffic. It was true, no doubt, that all this had been done at small profits; but profits there must have been, otherwise the traffic would not exist. Pressure upon the country there certainly was; but not so great as to prevent it from rising, though slowly. The country was not stationary; much less was it falling; it was improving.” His grace in continuance said, that he could not agree with the supporters of the amendment, that what distress existed was to be ascribed to the restricted circulating medium to a metallic currency. There was no foundation in fact for such an opinion: the circulation was greater now than before the restriction, and therefore the distress could not be properly attributed to a deficient circulation. The Marquis of Lansdowne opposed the amendment because its true object was to bring the house to the adoption of one of

the greatest evils which this country had ever endured, an unlimited issue of a paper circulation. If the first were taken, it would lead to subsequent steps, against which it was his duty to guard the house and the public. Distress, he added, unquestionably existed to a lamentable extent; but he concurred in the recommendation that it should receive the most cautious attention. On a division the amendment was lost by a majority of seventy-one against nine.

In the commons the battle on this subject was much more fierce than in the lords. An amendment to the address was moved by Sir Edward Knatchbull, founded, as in the lords, on the alleged misrepresentation contained in the speech regarding the distresses of the country, and the consequent determination of ministers to adopt no measures either of inquiry or relief. Sir Edward Knatchbull contended that the distress was universal; and if he were called upon for other proof than that of his own testimony, he would say, “Let every member who now hears me state honestly and fairly, and without reserve, what is the situation of the place with which he as a representative is immediately connected.” The house was asked on this first day of the session to approach his majesty with a declaration something like a downright falsehood. He did not mean, however, to advert at present to any remedy for the distress. All he asked was this, to state in their address to his majesty the naked truth as to the distress of the country. He therefore moved to strike out of the address the clause affirming existence of partial distress, and to insert the following:—“We lament the existence of that distress which your majesty informs us is confined to some places; but in the painful discharge of our duty we are constrained to declare to your majesty that that distress is not confined to some places, as your majesty has been advised, but is general among all the productive interests of the country, which are severely suffering from its pressure. We beg to assure your majesty that we shall adopt the caution which your majesty recommends in the consideration of the measures to be adopted in reference to these interests, and that our earnest endeavours shall be employed to alleviate and remove the distress now so unfortunately existing.” The amendment was supported by Messrs. Western, Protheroe, Davenport, Maberly, Duncombe, and R. Palmer, who all joined in condemning the extenuating phraseology used by government, as either being the result of gross ignorance regarding the true state of the country, or betokening a reprehensible determination to propose no measure of relief, and to institute no inquiry. The house, it was said, had long been in the habit of hearing complaints from individual classes in the country; but these complaints were no longer reiterated from the old quarters. The productive and industrious classes of the community were in a state of great misery; their distress was settling-down into universal discontent, and the voice of their disaffection would soon be heard, he said, with alarm. It was urged, also, that the pressure was severe on the classes immediately above the industrial portion of the community; and that those who dealt in manufactured goods were in no better situation than the agriculturists. It was stated in proof of this, that among the great body of the traders in the city of London, their stocks had suffered a depreciation of forty per cent. Sufferings so general, it was argued, affecting every interest of importance throughout the country, could not be the result of local causes. The amendment, it was said, corrected a most erroneous representation of a matter

of fact, and it pledged parliament to nothing more than a cautious inquiry into the origin of the state of things which in fact existed. On the other hand the chancellor of the exchequer maintained, that no amendment had ever been moved so little at variance with the speech to which it was intended to apply; and that, although there was distress among both agriculturists and manufacturers in some parts of the kingdom, other parts were in a comparatively flourishing and prosperous state. Mr. Goulburn contended that there was great agricultural prosperity enjoyed in Ireland. This called up Mr. O'Connell, who denied that such was the case. He had, he said, travelled through the provinces of Leinster, Connaught, and Munster, where he not only had not seen proofs of prosperity, but had observed much distress. Mr. Huskisson supported the amendment, thereby giving the signal for his friends to divide against the ministry. It was of the greatest importance, he said, in the present season of universal disquietude and dissatisfaction, not to provoke a hostile discussion between the representatives of the people and the people themselves, and not to call down reproach on the house of commons by understating the distress and difficulty of the time. He believed that the country, in so far as the productive classes were concerned, was suffering greatly; and that if parliament looked at the subject properly, and acted with the caution which one part of the speech recommended, they would find themselves fully competent to cope with the existing difficulties. To some of the causes which had led to the distress parliament could apply no remedy; but it was in their power to satisfy the country as to what those causes were, and to afford a partial relief by giving a better direction to the capital of the country. Mr. Peel expressed surprise that Mr. Huskisson should support an amendment like the present, considering his long-expressed opinions. Session after session Mr. Huskisson had resisted commissions of inquiry, lest he should excite false expectations; and he now supported an amendment founded on principles and intended to lead to conclusions from which he totally dissented, because he thought it stated a matter of fact somewhat more correctly than did the speech itself. Mr. Peel then contended that the speech did not misstate facts; but proved the non-existence of universal distress by the increase of the internal and foreign trade of the country. Several members expressed their intention to vote for the address, although they believed the distress to be more general than the speech represented. As for the Whigs, they were divided between their wish not to leave the ministry, which showed a leaning towards them, exposed to defeat, and the fear of endangering their popularity by appearing to be indifferent to public suffering. Lord Althorp, for instance, was sorry to give a vote which might give him the appearance of joining the opponents of government; but found it to be his duty to vote for the amendment, because he believed the distress to be universal. Mr. Brougham, also said his vote for the amendment was wrung from him, because he thought it more correctly represented the state of things; but if he could bring himself to think that the effect of the amendment would be to displace the present government, he would vote for the address. Mr. Spring Rice expressed himself to the same effect. But these declarations of the leading members of opposition did not prevent their adherents from carrying their votes to the ministry; and the amendment was negatived by a majority of one hundred and fifty-eight against one hundred and five.

On the following day, when the report on the address was brought up, the Marquis of Blandford moved that the following extraordinary amendment, which he termed, “a wholesale admonition to the throne,” should be appended to the address:—“That this house feels itself called upon, in the awful and alarming state of universal distress into which the landed, commercial, and all the great productive interests of the country are at this moment plunged, to take care that your majesty shall not be the only person in your dominions ignorant of such an astounding fact, as well as of the consequent impending danger to the throne and other great national institutions, established by the wisdom of our ancestors for the protection and benefit of the people over whom your majesty has been called to preside,”—“That this house is at no loss to indicate the real cause of this most unnatural state of things; and, in justice to your majesty and the whole nation, it can no longer hesitate to proclaim that cause to the world.

“It is a fact, already too notorious, that this house, which was intended by our ancient and admirable constitution to be the guardian of the nation’s purse, has, from causes now unnecessary to be detailed, been nominated for the greater part by a few proprietors of close and decayed boroughs, and by a few other individuals who, by the mere power of money employed in means absolutely and positively forbidden by the laws, have obtained a ‘domination,’ also expressly forbidden by act of parliament, over certain other cities and boroughs in the United Kingdom.

“That, in consequence of this departure from the wisdom of our ancestors, the nation has been deprived of its natural guardian, and has in consequence become so burdened in the expensive establishments of all kinds, that, in a period much shorter than the life of man, the taxation, has risen from £9,000,000 to nearly £60,000,000 a year, and the poor-rates, or parochial assessments, during the same period, have augmented from £1,500,000 to £8,000,000 annually.

“That to render such a mass of taxation, so disproportionate to the whole wealth of the kingdom, in any degree supportable, recourse has been had, either from ignorance or design, to the most monstrous schemes in tampering with the currency, or circulating money of the country, at one time by greatly diminishing the value of the same, and at another time by greatly augmenting such value; and at each and every of such changes, which have been but too often repeated, one class of the community after another has been plunged into poverty, misery, and ruin; while the sufferers, without any fault or folly of their own, have been hardly able to perceive from what hand these calamities have come upon them.

“That under such circumstances, and with this knowledge before its eyes, this house would consider itself lost to every sense of duty towards your majesty, and guilty of treason towards the people, if it did not seize this opportunity of declaring to your majesty its solemn conviction that the state is at this moment in the most imminent danger, and that no effectual measures of salvation will, or can, be adopted until the people shall be restored to their rightful share in the legislation of the country; that is, to their undoubted right, according to the true meaning of the constitution, of choosing members of this house.” This amendment, was seconded by Mr. O’Connell, and Messrs. Western, Protheroe. Messrs. Smith and Davenport,

declared themselves favourable to its spirit, although they thought it was injudicious to bring forward a topic of such importance as a mere amendment on an address. Sir Francis Burdett took the same course; and in his speech on this occasion he gave the ministry fair warning that they must either enter into a closer connexion with the Whigs, or no longer count on their support. Sir Francis said, that when he found the prime minister of England insensible to sufferings and distress, painfully apparent throughout the land; when, instead of meeting the calamity with measures of relief, he sought to stifle every important inquiry; when he called that a partial and temporary evil which was both long-lived and universal, he could not look on such a mournful crisis, in which public misfortune was insulted by ministerial apathy, without hailing any prospect of change in the system that produced such a state of feeling. What, he asked, could be said of the ignorance which could attribute the distress to the introduction of machinery, and the application of steam, that noble improvement in the inventions of man, to which men of science and intelligence mainly ascribe our prosperity? He felt a high respect for the abilities of the Duke of Wellington in the field; but he thought that the noble duke did himself equal justice when he said, previous to his taking office, that he should be a fit inmate for a lunatic asylum if he were ever induced to take such a burden on his shoulders. In fact, both he and many honourable members about him had long treated the illustrious individual with such tenderness, because they felt that he had conferred the greatest benefit on his country. He was the only man in England who could have accomplished what he had done; and his praise should be in proportion. It should, however, be at the same time remembered, that if his service was great, his recompense had been commensurate: they had repaid him in returns of confidence and approbation; but the time was come when it would be necessary to do much more. On a division the Marquis of Blandford’s motion was lost by a majority of ninety-six against eleven.

MOTION FOR A COMMITTEE OF THE WHOLE HOUSE ON THE STATE OF THE NATION.

In the debate on the address Lord Stanhope gave notice that he should on an early day bring the state of the country under their lordships’ notice, by a special motion. He did so on the 25th of February, by moving that their lordships should resolve themselves into a committee of the whole house on the state of the nation. The proposition on which his lordship founded his motion was, that all the great productive interests of the country were suffering under the pressure of a distress the tendency of which was to go on increasing. Complaints and applications for relief by the agriculturists, he said, had come up from every county, and they had been disregarded, probably because they were couched in respectful language. He said this, because recent experience had shown that if they had formed illegal associations, collected funds, and spoken to government in the language of intimidation, they would have received attention. Of the reasonableness of their complaints no man could doubt who knew their situation. Rents were paid from the capital of the farmer; and numbers of tenants had already been driven from their farms in bankruptcy and beggary. The capital of others, also, was daily extorted from them to meet their current expenses; and when that capital was exhausted they, too, must go forth ruined men. It had been said, “Reduce your rents, and you will remove

the mischief," But this expedient had been tried, and had failed: rents had been reduced fifty per cent.; but there were cases in which no rent could be paid. He knew of one parish, for instance, in Sussex, where all the proceeds of the land were not sufficient to maintain the poor; and neighbouring parishes had been applied to to give them relief. If the existing state of things was not speedily remedied, they must end in ruin and anarchy. Nor, he continued, was the state of the manufacturing population better than that of the agriculturists. Artisans were at work for threepence or fourpence per day; and of those who received employment, a great proportion worked for wages which, when compared with the value of the article on which they were employed, were altogether deceptive. Then, he asked, what was the state of the shipping interest? To realize profit was out of the question; and many of the shipowners had preferred parting with their ships at a certain loss of forty per cent., to continuing to hold them at the risk of a loss still greater. All these interests were, therefore, at present in a state of apparently hopless distress. As for the symptoms to which ministers pointed as those of returning health, they were utterly fallacious. It had been said that the traffic on railways and canals had been increased; the same effect would be produced if the goods had been transported on speculation, and hawked about from one part of the country to another for sale, either in vain or at ruinous prices. With an increasing population consumption must increase to some extent, because the addition to the population would not absolutely famish; but the evil was, that it was consumption which still furnished to those employed in creating the articles consumed the means, not of living with any reasonable comfort, but of mere squalid starvation. Ministers had told them, likewise, to look at the number of new houses which were springing up, and had asked if this was an indication of distress. No one had ever said that every man in the country was distressed. Who had ever said, for instance, that the fund-holders and annuitants felt the general pressure? They might continue to flourish like rank and noxious weeds among surrounding ruins; they still drew their fixed incomes, but their security was diminishing; for that security depended on the productiveness of the revenue; and the revenue, as the natural result of the misery of all the productive classes of society, was fall ing off. Lord Goderich, in reply, said that he had expected the motion would have been supported by something better than the two undeniable propositions that there was great distress in the country, and that it was the duty of ministers to relieve it to the utmost of their power. He should have thought that the noble mover would have stated the causes which had produced the distress of the country, and have given some notion of the remedies which he deemed applicable to the disease. In regard to the one and the other, the house had been left in the dark. While, however, he resisted a mode of inquiry which promised nothing, he did not say that it was impossible for parliament to do anything. In relation to the currency and the state of our taxation, parliament might afford material relief to the country. He thought parliament might also do something by a reduction of taxation; for during the two years that he himself had been chancellor of the exchequer, nine millions of taxes had been removed, and yet that amount had not been eventually lost to the revenue: in some heads of receipt there had been a diminution, but in others there had been an increase. The Earl of Roseberry, also, spoke against the motion: he could not support it, because he thought that in its present form it was neither practicable nor

expedient. The motion was supported by the Duke of Richmond and Lord Eldon. The former insisted principally on various facts proving the extent and pressure of the prevalent distress; and maintained that in common sense the causes of the misfortune should be investigated, before means for removing them were tendered. Lord Eldon, in supporting the motion, accused his ancient colleagues of coming down to parliament with a declaration that there were “other causes” for the distress of the country, which they did not deem it expedient to specify, and which they left to each one’s sagacity to guess at as he might. He contended that the smallest consideration of the causes and remedies of the present all-pervading distress would have been received by the country with gratitude. He was the more confident of this, he said, when he bore in mind the pacific and loyal demeanour of the numerous thousands who were suffering under the most pinching distress, and who, he hoped, would be prevented from being drawn away from the line of good conduct by the expressed determination of parliament to inquire into the causes of their sufferings, with a view to remedy them so far as circumstances might permit. The Duke of Wellington still denied that the existence of distress was so extensive as had been represented, and supported his opinion by the augmented consumption of various articles, by the increase of buildings, by the state of the savings’ banks, and by the advanced traffic on railways and canals. He still maintained, also, that the power of redress was beyond the reach of parliament; and he defied noble lords opposite to do anything on the subject which should be at once politic and satisfactory; expedient and efficacious. Was it right, he asked, for parliament to interfere where it was utterly impossible to do good? The noble mover might recommend a committee; but to what end could they follow his counsel if he could lead them no further? And not one step further had he gone. The Marquis of Lansdowne said that he had no hesitation in stating what he conceived to be the causes of the distress. Much of it, he thought, had been produced by a transition from a state of war to peace. He could not help recollecting, however, that a great part of the difficulties, out of which we had now to extricate ourselves, was to be ascribed to that fatal perseverance, with which we had persisted for many years, in contracting permanent money engagements in a depreciated currency. That was the root of the evil; but in saying so, he did not forget, that, unfortunate as these engagements were, they nevertheless were engagements which the honour of parliament was bound to respect, and which we must find means to discharge. It was one thing, however, to see the cause, and another to point out the remedy: for the present he confessed that he saw but one means of uniting all opinions on the subject, and that was retrenchment, retrenchment qualified by diminution of taxation. The Marquis of Salisbury expressed an opinion that a general inquiry would do more harm than good: he would prefer a select committee, and if that should fail in coming at the cause of the distress, then would be the time for an inquiry of the whole house. Lord King, in conclusion, moved as an amendment, “that a select committee should be appointed to inquire into the depressed state of the agricultural and manufacturing interests of the kingdom for the purpose of ascertaining whether any, and what relief could be afforded.” This amendment, however, was received with as little favour as the original motion, which was lost on a division by one hundred and eighteen against twenty-five.

A similar motion was made, at a more advanced period of the session in the house of commons by Mr. Davenport. The discussion in that house lasted four nights, and in the course of it, the leading members of all parties delivered their opinions, which were in many respects contradictory on the extent as well as on the causes of the evil. The arguments and the views of the speakers, however, were generally the same that had been used in the house of lords, though being used by a greater number of persons, they were presented under a greater number of modifications. The motion was supported by the admitted fact of the prevailing distress; the duty of the house to give relief, if possible; and the necessity for that purpose of ascertaining the causes of the evil. On the other hand it was denied that the distress was general, and that if it was, it would be useless to enter into an inquiry without some specific remedy being pointed out, which had not yet been done. Great objections were also taken to the form of the proposed inquiry. There was no subject of any difficulty with which parliament had ever had to deal, but would necessarily come before this committee, and how could the whole house deal with such an investigation. Sir C. Burrell moved as an amendment that the petitions should be referred to a select committee, but this was still more vehemently resisted: Mr. Peel declaring that a committee of the whole house was the better of the two. Lord Althorp, with the leading members of the Whig party generally, as well as Mr. Huskisson and his followers, took part with the ministry; and the motion was eventually lost by a majority of two hundred and fifty-five against eighty-seven.

REDUCTION OF SALARIES OF PUBLIC OFFICERS, ETC.

Throughout the discussions on the state of the nation, the necessity of reducing taxation, and curtailing the public expenditure, had been insisted on with great force. On the 12th of February, Sir James Graham moved for a reduction of all the salaries paid to official, persons. The foundation of his motion was this:—that, subsequently to the Bank Restriction Act, all salaries had been increased, because the expense of living had increased; and he argued, therefore, that, as the restriction had been removed, and we had returned to cash payments, the salaries ought to be diminished. Justice, he said, demanded such a change High prices, produced by a depreciated currency, had brought them high salaries; low prices, produced by curing that depreciation, must bring them low salaries He did not, however, mean to include in his resolutions the privy-purse and the royal establishment, as these stood upon arrangements entered into at the beginning of the reign, and were hence inviolate. Neither would he interfere with the regular pay of the navy, which had been fixed in 1798, when prices were about the same as at the present time; or of the army, into which our soldiers had entered for a term of years, at a stipulated rate. He meant, however, to include military officers holding civil situations, such as colonial governments, because in many cases their salaries had been augmented without sufficient reason, and because some of these officers being removable at pleasure, their allowances might be altered without difficulty. Sir James Graham enumerated examples in which the salaries of governors had been raised; and stated that there had been an addition of one-third to the number of _employés_, and an increase of fifty per cent, on their salaries in 1827 as compared with 1797. He concluded by moving this resolution:—“That, whereas, subsequently to the act of the 37th George

III., by which a suspension of cash-payments was effected, large augmentations had taken place in the salaries and pay of persons in civil and military employments, on account of the diminished value of money; and whereas the alleged reason for such augmentations had ceased to operate, in consequence of the passing of the 59th George III., which restored a metallic standard of value, resolved that in order to relieve the country from its extensive load of taxation, it was expedient to revise our present system of expenditure in respect of all such augmentations, for the purpose of making every possible reduction that could be effected without violation of good faith, or detriment to public justice." The motion was opposed by Mr. Dawson, the secretary of the treasury, chiefly on the ground that government had done all that as yet had been possible in the way of reduction, and felt a sincere desire to carry the spirit of economy to every practicable extent. Almost every recommendation of reduction, he said, suggested in the reports of committees, or by commissions of inquiry, had been carried into effect; and the recommendation of a committee which sat in 1797 to abolish sinecures and reversions had been acted upon as far as it was found possible. Government had, indeed, already acted upon the course which Sir James Graham recommended; it had been desirous to adopt the scale of 1797, and though that object had not been fully accomplished, yet, looking at the extent of public business now, and in 1797, he thought the house would see that salaries had been brought as near as possible to the rate of the latter year. After demonstrating the truth of his assertions by appealing to facts and figures, he said, that he trusted the house would negative the motion, in which case, in order to show that he was not desirous to get rid of the question, he would himself move the following resolution:—"That whereas his majesty was graciously pleased, in answer to an address of the house, to assure the house on the 27th of June, 1821, that his majesty would cause an inquiry to be made into all the departments of the civil government, with a view of reducing the number of persons employed in the various offices, and the amount of salaries paid: Resolved, that an humble address be presented to his majesty, that his majesty might be graciously pleased to lay before the house an account of the progress which had been made in such inquiry, and of the measures that had been taken in consequence. Also, that it was the opinion of that house, that in every establishment of the state, every saving ought to be made, consistently with the due performance of the public service, and without the violation of existing engagements." Sir James Graham thought this proposition of the secretary of the treasury better than his own, and he therefore withdrew his motion, and the house agreed to that of the minister.

This motion regarded the civil establishments only. On the 15th of February, Mr. Hume proposed a similar resolution in regard to the military and naval establishments, by moving an address to the crown, recommending a repeal or modification of all taxes required for the support of all the naval and military, as well as civil establishments, in order to afford immediate and effective relief to the country. Mr. Hume maintained that the scale at which the army and navy were kept up was much greater than necessity required, or the country could bear; and that they ought to be brought back as nearly as possible to what they had been in 1792, when the whole cost of the civil and military government was little more than

one-fifth of the present cost. In his speech, he treated of every possible topic connected with taxation and expenditure. The taxes he proposed to reduce were numerous; and he insisted that all the reductions he proposed were practicable, if government would only apply the priming-knife to our overgrown establishments. The chancellor of the exchequer declined following Mr. Hume over the field in which he had expatiated, but he objected to the motion as irregular and inexpedient. It was a motion, he said, recommending a reduction of our civil, naval, and military establishments, without waiting for the estimates of those establishments which was to be laid before the house—without waiting to see whether any and what reductions might be proposed in them by ministers. How, he asked, would parliament determine the amount or practicability of any reduction, till it had inquired into the necessity and general bearing of the several branches of the expenditure? And how could that inquiry be instituted before ministers had laid before the house the responsible official statement of the amount of the several estimates for the year, so as to enable the house to decide upon the economy or extravagance observed in the management of the public money? He objected to the motion, therefore, as a departure from the usual practice of parliament. It was opposed by Messrs. Western and Grant, on the ground that it would be better for ministers first to produce their plan, and then to deal with it as the house might think fit. The house was already pledged to the full extent of this motion, which was, generally to reduce expenditure, and the next step ought to be to point out in what particular manner the reduction ought to be made. Lord Althorp said, that he felt every confidence in the economical disposition of ministers; but still it was desirable that the house should express its opinion that the taxes ought to be reduced in proportion to the reductions in the expenditure, although he did not conceive it possible that the taxes ought to be reduced to the extent proposed by Mr. Hume: his duty was to vote, therefore, for the motion. On a division, however, the motion was lost by one hundred and eighty-nine to sixty-nine.

MOTION FOR REVISING THE WHOLE SYSTEM OF TAXATION.

On the 25th of March Mr. Poulett Thompson moved the appointment of a committee to revise the whole system of our taxation. His object, he said, was to examine the incidents of our great taxation; for all authorities of any weight were agreed that revenue did not depend merely on the amount of what actually passed into the exchequer, but on the manner in which it was derived from the people. Mr. Poulett Thompson wished the house in the first place to consider the taxes which affected raw materials; and whether a reduction was not practicable without any diminution of revenue. He then passed in review certain very productive taxes, as those on tea, tobacco, foreign spirits, French wines, &c., the rate of which, he thought, might safely be lowered without any permanent detriment to the revenue. In conclusion, he said, that his wish was to give ministers a power which they could not exercise effectually without a committee. The alterations which he had in view, might produce a deficiency of revenue in the first stages of their operations, but ministers, supported by a committee fairly and impartially selected, might ask of parliament a vote of credit for all that would be necessary to fill up that deficiency with a much greater certainty of obtaining it, than they would have by acting upon their Own responsibility. The chancellor of the exchequer said, that there could be only one

opinion as to the principle on which the motion was founded; namely, the expediency of raising the money required for the public service, in the way least injurious to the sources of public wealth; but he could not accede to the motion founded on this truism, consistently with the interests of the country, or the character of his majesty's government. The wish to relieve the public burthens was not the only guide to be followed in a question like this; regard was likewise due to the faith and honour of the country. Some of the taxes might be open to the objections urged against them; but such as they were we had mortgaged them to the public creditor; and it I was an imperative duty, not so to modify them as to shake the basis of his security, and weaken the strength of public credit. Great inconvenience would arise from consigning to the consideration of a committee all the various topics to which the honourable member had referred; and from calling upon the members of it to pronounce on the amount of our taxation; to decide how far it admitted of repeal or modification; and to declare how far, in their opinion, ultimate compensation might be made for any loss which might accrue from such loss or modification. The motion was supported by Lord Althorp, Sir Henry Parnell, and Messrs. Bankes and Warburton, who argued that it was difficult to conceive why the committee should be refused after the appointment of the late finance committee. If that committee had proceeded with its labours another year, it would have been occupied with the very matters which it was now proposed to submit to consideration. Lord Althorp said that, in his opinion, it would be a good plan to grant relief to the productive classes by a reduction of taxation, and the imposition of a property-tax. Mr. Peel protested against the appointment of a committee which, he contended, was to be neither less nor more than a delegation of the powers of the whole house, and of the government likewise, to twenty-one members. The house, he said, had been found sufficient in former times for the management of the taxes, and he saw no reason why it should now resign its power. On the other hand, Mr. Huskisson maintained that there was nothing unusual in referring questions of taxation to a committee. The salt-duty and the tax on leather had been referred to committees; and in these cases there had neither been alarms in the public mind, nor change of government, nor loss of confidence in his majesty's ministers. If the house could not refer such subjects to a committee without endangering the safety of the country, he thought that it had better give up inquisition altogether. He did not, indeed, expect any further reduction of taxation during the present session from the labours of this committee; but still the inquiry would do good. On a division the motion was lost by a majority of one hundred and sixty-seven against seventy-eight.

COMMITTEE ON THE EAST INDIA COMPANY'S CHARTER.

{GEORGE IV. 1830—1831}

At this period it was the public opinion that the monopoly of the East India Company imposed a mischievous restraint on the trade of the country, without any reasonable cause or counterbalancing advantage. One large portion of the community, indeed, wished to have the renewal of their charter refused _in toto_ to any extent, or under any modification; while another professed themselves willing to be satisfied with

reducing the company to the level of ordinary merchants in matters of trade, leaving them in the possession of their widely-extended territories. In this conflicting state of opinion government had determined not to take the responsibility of proposing any measure of its own; but had promised that in the present session a committee should be appointed to make the inquiries which ought to precede any arrangement affecting interests so varied and important. The appointment of this committee was moved in both houses on the 9th of February; in the upper house by Lord Ellenborough, and in the commons by Mr. Peel. In making this proposition, the latter said, that he had no plan to submit for the future government of India; no opinion of ministers to state as to the renewal or modification of the charter. He proposed the committee that the question in all its bearings might be examined; but the details should be left for future consideration, when that committee should have formed its opinion. He proposed it, he continued, with the plain and honest view of having a full, perfect, and unreserved investigation into the affairs of the East India Company. The house, he said, would feel the importance of such an inquiry. It would bear in mind that higher objects were involved than the mere extension of trade. They would have to consider the whole character of the government, ruling over an immense extent of territory, wielding a powerful force, and administering an ample revenue. They were bound to consider the various modes in which that government affected the people over whom it ruled, and how far any alteration might affect the influence of the crown. The present form of government extended over many millions of people, and it had existed for a great number of years. Whether another form of government might be devised from which equal benefits would flow, he was not prepared to say; but sufficient was known of the present system to induce them to pause before they rashly interfered with it. As regards the company’s commercial concerns, the documents which would be presented to the committee would contain full information on that subject; and at present he would only say that a reference to these returns would convince any unprejudiced mind that the sanguine expectations of great benefits, which some supposed would arise from throwing the trade entirely open, ought not to be entertained. The most interesting objects involved in the inquiry were the welfare and happiness of the Indian population placed under a government. He had seen a census, which made our native subjects in India amount to ninety millions. Looking at the extent of territory which in that country belonged to Great Britain, the vast population there subject to our sway, the great revolution by which they had come under our dominion, the immense distance at which they were removed from our shores, and the difference existing between the languages and usages of the natives and ours, the mind was almost lost in amazement. Whatever might be the wish of a British parliament to enlarge the rights and foster the interests of British citizens, there could be but one feeling as to the moral obligation which we had incurred to promote the improvement of these distant subjects, so far as the feelings, the institutions, and the prejudices of that country would allow. In the list of the committee proposed by Mr. Peel there were the names of three or four East India directors. Messrs. Hume and Baring objected to their being put on the committee, although they expressed an opinion that they would not act unfairly, and that there was a necessity of obtaining the information which they possessed. Mr. Astell, one of the directors named, declared that the company desired nothing more earnestly than

the fullest inquiry. What the directors complained of most, was the ignorance which prevailed on this subject, and which, by deluding the country, was the greatest enemy they had to contend with. He courted inquiry; for the more the subject was investigated, the more likely would it be that the directors would have justice done them. Let the committee obtain the fullest evidence; let them examine all the documents that would be brought before them; and then they would be able to decide whether India could be better governed; whether justice could be more fairly administered; and whether the happiness of the natives could be more humanely consulted. He contended that the directors had done all they could, and that they had never lost sight of the interests of their country in the pursuit of their own. The committee was appointed as proposed, retaining the members of the East India Company.

DEBATE ON A PROPOSAL TO ALTER THE CURRENCY.

During this session Mr. Attwood brought the subject of the currency before the house, by proposing two resolutions; namely, to make silver a legal tender as, he contended, it had been before the Bank Restriction Act of 1797, and to restore small notes. This question underwent a full discussion but the motion of a double standard seemed so objectionable, and any scheme for depreciating the currency appeared pregnant with such dangerous consequences, that the motion was withdrawn without dividing the house. Several members, indeed, expressed an opinion that it was far from being certain that the standard adopted was the best; but the relief to be obtained by the double standard proposed was thought by them to be neither so great, nor so certain, as to justify the making of such an experiment. The motion was ably opposed by Mr. Herries, who said, that the proposal to introduce the silver standard was almost impracticable and unjust. The proposal was, in point of fact, to have the two precious metals in circulation at certain fixed proportions; a condition which rendered the execution of the scheme impossible. It was well known that the proportion in which these two metals interchanged now was different from the proportion which they held in 1798. The mover himself had admitted, indeed, that the difference was five per cent. It might not be quite so much, but assuming it to be so, to what did it lead? It made the proposed resolution a recommendation to the legislature to declare gold and silver equally a legal tender, although there was a difference of five per cent, in their relative values. What would this be, he asked, in practice? Every debtor, it was said, who had money to pay would be enabled to discharge his debt with five per cent, less than he was bound to pay at present; and no doubt, he would, if the opportunity was given to him. Suppose then that the resolutions should be agreed to; what would be the result? It would be proclaimed from one end of the country to the other that this house had come to a resolution the effect of which might be shortly stated thus:—namely, that every man who had claims payable on demand, every man who held notes of small or great value, every man who had outstanding debts, would, if he secured the amount of what was due to him before this resolution passed into a law, get the whole of his money; whereas, if he delayed beyond that period, he would only get ninety-five for every hundred pounds. What, he asked, would become of the Bank of England, or of every banking house in the kingdom, or of all debtors who were liable to pay upon demand all that they

owed? Would not all transactions of commerce be suspended, and the whole country present one scene of confusion, and consternation, and ruin, when the house of commons proclaimed to all who had debts due to them, that if they did not collect them on the instant, they would assuredly be losers to the amount of five per cent.? Mr. Herries also contended that the alleged justice of the proposition was fallacious. Its justice was made to rest on this—that it was only fair to give the debtor the power of paying as he might have done in 1798; and it had been assumed, that up to that time men could discharge their debts in gold or silver, as they pleased. It was a great mistake, he argued, to suppose that silver had been the standard of this country throughout the last century. It had only been a legal tender by weight, but then it had become so depreciated, that, practically, there was no such thing as tender by weight, while by law the tender in coin was limited to twenty-five pounds; so that it was clear that in 1798 silver could not be the standard. He concluded by saying, that if a regulation could be made that a creditor should be obliged to take half his debt in one standard, at the will of the debtor, and that the debtor should not be obliged to pay more than half in one, and half in the other, it might, perhaps, be practicable to have the two; but he did not see how, otherwise, the two could exist together.

FINANCIAL STATEMENTS—BILL FOR REPEALING THE DUTY ON BEER, ETC.

On the 15th of March the chancellor of the exchequer produced his annual exposition of the finances, and of the financial measures to be adopted in raising the expenditure of the present year. His statements presented no remarkable features except the repeal of the beer, cider, and leather duties. By this measure ministers desired to show their wish of alleviating the pressure of taxation on the lower classes. With reference to the extent of the repeal, the chancellor of the exchequer said, that “the amount of the three duties which I thus propose to repeal will be, on freer, £3,000,000, on leather from £340,000 to £350,000, and on cider, £25,000. These reductions will give direct relief to the people, amounting, at least, to £3,400,000., and will give them relief indirectly to a further amount; so that in fact the whole relief cannot be estimated at less than £5,000,000 a year.” The remission of duty on beer was proposed to take place on the 10th of October following, and the reason given for such delay was, that the repeal should take place conjointly with an opening of the trade, when the time arrived for renewing the licences of public-houses. There can be no doubt that the measure proceeded from excellent motives; but it is certain that by encouraging the increase of public-houses to an indefinite extent, immorality and crime had been introduced into every nook and corner of the land. The picture which the poet Cowper drew of the evils of public-houses in his day have been increased a hundredfold by such a measure so that it is literally true, that,

“Pass where’er we may, through city or through town, Village or hamlet of this merry land, Though lean and beggar’d, every twentieth face, Conducts th’ unguarded nose to such a whiff Of state debauch, forth issuing from the sties That law has licensed, as makes temperance rec.”

It is probable that this measure has occasioned more evil than any act passed during the whole period to which this portion of the history of England refers. Yet there can be no question that ministers conceived that they were legislating for the

poor man’s comfort; experience, however, has proved that it was for the poor man’s bane. After stating the intention of ministers on this subject, the chancellor of the exchequer next gave his estimate of the revenue of the present year. The demands of the public service, including the charge of the national debt, were £47,812,000, and the available income was estimated at £50,470,000, leaving a probable balance of about £2,500,000 only for the sinking-fund. In the revenue of last year a deficiency of more than £500,000 below the estimate was acknowledged; but at the same time a clear surplus of £4,000,000 had been applied to the redemption of the national debt. To compensate for the loss of revenue from the repeal of the above duties, it was proposed to consolidate all the laws relative to the stamp-duties, for placing the management of the whole of that branch of the revenue under the stamp-office in England, and make similar articles everywhere subject to the same duties. It was also proposed to levy an additional duty on spirits; and also to effect a yearly saving of about £800,000 by the conversion of four per cent, stock into three and a half. These measures were subsequently carried into effect. The chancellor of the exchequer finally held out hopes of a reduction in the amount of expenditure, by the consolidation of various departments of the public service: this he said was likely hereafter to place at the disposal of the government a great surplus revenue which would enable ministers to make a further repeal of taxes. The principal reduction promised by government this year, that of the beer-duty, was not carried without great opposition. Brewers and publicans alike were arrayed against it, as it would break up their monopoly. The latter complained loudly of the deterioration to which the capital invested by them in the trade would be exposed, since every man who could pay two guineas might take out a licence. The landed interest, likewise, was against this measure: agriculturists wishing rather to see the duty on malt than beer repealed. They spoke much of its deficiencies in not providing any system of control, to secure the proper conduct of publicans, such as existed under the present licensing system. It would convert England they said, and with much truth, into one huge tippling-house, spreading throughout the country universal demoralization. An attempt was made on the second reading to throw out the bill, by a motion that it should be read a second time that day six months. This failed; but in the committee a stronger effort was made in favour of a clause proposed by Mr. Monck, to the effect of permitting the brewer to sell his beer on premises different from those on which it had been brewed. It was contended that this was only an enlargement of the former permission to sell beer on the premises on which it had been brewed; and that it would not injure the object sought by the bill in so far as protection against monopoly was concerned, while it would be beneficial to the interests of the existing dealers, whose interests ought not to be neglected. On the other hand, the clause was opposed as inconsistent with the principle of the bill. The effect of it would be, it was said, to prevent competition, and the public, instead of receiving an improved commodity, would remain as they were. When the committee divided, the proposed clause was rejected by a majority of only twenty-five. Opposition renewed their efforts against the bill on its third reading, when Mr. Batley moved a clause, to the effect of enforcing the statute of James I., against the odious crime of drunkenness. Mr. Brougham in opposing this motion said, that he was one of those who thought the general interests of morality were better consulted by permitting such clauses to

slumber in the cells of the statute-book than by having them enforced. He asked, What was the real meaning of the statute of James I. It was that a penalty should be inflicted on any person who committed the odious and ungodly crime of drunkenness, from any liquor, except claret or champagne. If morality was to be enforced by act of parliament, let the law be impartial, and not punish the poor and illiterate for a crime in which the rich might indulge with impunity. He would like to see the justice of the peace, or magistrate, who would fine a knight of the shire, or independent member of an independent borough, who in the morning might possibly be brought before him in a state presenting a good imitation of the odious and ungodly crime of drunkenness, which called down the wrath of the moral legislators of the age of King James. Sir Robert Inglis having reminded Mr. Brougham that a higher authority than that of James I. had denounced drunkenness, and that if he himself were found in the street in a state of inebriety, no magistrate performing his duty would fail to punish him, Mr. Brougham replied, that he had not the good fortune to be educated at the university represented by the baronet. It was, indeed, well replied by Dr. Johnson to a lady who inquired of him to which university she should send her son: “Why madam, I can only say, that there is an equal quantity of port drunk at each.” He was perfectly aware that a higher authority than King James had denounced drunkenness, but the difference was, that that high authority made no distinction of persons, whereas the act of James did. Could the right honourable baronet point out one instance of a member of parliament having been punished for drunkenness? Sir Robert repeated, that if Mr. Brougham would go into the street drunk, he would soon meet with due punishment; he replied, that it would be grossly unfair, inasmuch as there were thousands of gentlemen in the same situation never noticed. This was an unanswerable argument, and the subject was dropped.

THE QUESTION OF REFORM.

It has been seen that the Marquis of Blandford moved resolutions pledging the house forthwith to employ themselves in the work of reform, as an amendment to the address. On the 18th of February he brought forward a more specific plan. The house of commons, he argued, had ceased to be framed as the essential principles and earlier practice of the constitution required; a circumstance which had arisen from represented places falling into decay, on the one hand, while, on the other, wealthy and populous towns, which had sprung up in the meantime, were unrepresented. His object was, he said, to restore the principles of representation as they had been established in the days of Henry III. and the three Edwards. For this purpose he proposed that a committee should be chosen by ballot, to take a review of all boroughs and cities in the kingdom, and report to the secretary of the home department those among them which had fallen into decay, or had in any manner forfeited their right to representation on the principles of the English constitution, as anciently recognized by national and parliamentary usage. The home-secretary was bound to act immediately on this report, and to relieve all such places from the burthen of sending members to parliament in future, while he filled up the vacancies by towns which had been hitherto unrepresented. Another part of his plan was to revive the custom of paying wages to members for their attendance in parliament; a provision which he thought would prevent abuses. He also proposed to extend the

right of voting to all copyholders and leaseholders, and to place the representation of Scotland on the same footing with that of England. He concluded, by moving, to bring in a bill to restore the constitutional influence of the house of commons. This motion was supported by Sir Francis Burdett, and by Messrs. Pendarvis, Benett, and Hobhouse, with others of the school of reformers. Sir Francis Burdett said, that he could not comprehend all the details of the propositions; but he understood it to be a question of reform, and, therefore, he would support it. He admitted that the house was composed of men of as enlightened understandings, and as addicted to the English principles of freedom, as could be found collected in any nation of the world; but he asserted that they were returned to the house under an influence which rendered them incapable of exerting the faculties of their minds, and injurious to the country. He remarked:—"Look at myself, I have gone through the whole process under the present system of representation, and a most ruinous one it has been. Early in life, I came into this house in order to defend the constitution of England; I purchased my seat of a borough-monger. He was no patron of mine; he took my money, and by purchase I obtained a right to speak in the most public place in England, With my views, and with my love of the liberty of my country, I did not grudge the sacrifice I made for that commanding consideration. If I had abused the right I had thus purchased, and passed through corruption to the honours of the peerage, I should not enjoy the satisfaction I now feel." He had also tried, he said, the county system. He stood for a county, though he would not have given twopence for the representation of that county, his object having been to expose the abominable system, and the oppressive tyranny of solitary confinement in England. He had also gone through the remedial operation as it was called, of the Grenville act, so that, as he had sounded all the shoals and shallows of the system, it was not wonderful he should be a great advocate for an alteration. The question was this: ought the house to be an assembly of retainers of the crown, or of representatives of the people of England. The bill was opposed by Messrs. Feel, Twiss, Maberly, and Stanley. Mr. Twiss said, that a scheme had never been produced so happily calculated to ridicule parliamentary reform, although it was of course far from the intention of the noble lord by whom it had been introduced. Mr. Peel also amused the house with remarks on the title of the bill, and said that he would never be a party to a wholesale depreciation of the elective franchise, or assent even to the first stage of the bill, which devolved on a ballotted committee the power of destroying all boroughs which they might think ought not to send members. Lord Althorp moved as an amendment, "That it is the opinion of this house, that a reform in the representation of the people is necessary," should be substituted for the motion, for leave to bring in a bill; but both the amendment and the original motion were negatived without a division.

THE CASE OF EAST RETFORD.

During this session the proposal for transferring the franchise of East Retford to Birmingham was ultimately rejected, and the privilege extended to the adjoining hundred. During the debate Mr. Peel expressly disclaimed the imputation which had been thrown out, that this selection had been made with a view to increase the influence of the Duke of Newcastle, whom the Catholic relief bill had now thrown into the ranks of opposition. There were circumstances in the case of East Retford which

should induce parliament to extend the franchise to the adjoining hundred. One element in the case which weighed with him, was the consideration that the county of Nottingham sent only eight members to parliament; and he saw no good reason why that number should be reduced. Lord Howick declared, that though he would vote for the transfer of the franchise to Birmingham, he thought it useless to inflict punishment in individual instances, when it was notorious that a large majority of members obtained their seats by venal means. The proper remedy would be to adopt a general measure; and he, therefore, moved the following resolutions:—"That bribery has been repeatedly and habitually employed to influence the election of members of parliament. That this fact has been often established, never denied, and was especially proved at the bar of this house in the first session of the present parliament, in the cases of Penryn and East Retford. That it is notorious that a similar practice is openly resorted to in many of the cities and boroughs of the United Kingdom. That the recent disfranchisement of Grampound does not appear to have in any degree diminished the prevalence of this evil. That this house, therefore, finding that the passing of specific bills directed against particular cases, has neither had the effect of removing the existence, or arresting the progress of corruption, is of opinion that its character may best be vindicated by abandoning these useless and expensive proceedings, in order to adopt some general and comprehensive measure, the only means of effectually checking so scandalous an abuse." These resolutions were negatived by a large majority.

MR. O'CONNELL'S BILL FOR REFORM BY UNIVERSAL SUFFRAGE, ETC.

On the third reading of the East Retford bill, the first attempt was made in the British parliament to introduce principles new to the representation of the country: namely, that the votes of the electors should be given by ballot. This proposition came from that most reckless of all demagogues; that prototype of the Athenian Cleon, Mr. O'Connell, who argued that the ballot would protect the voter from all undue influence, whether of fear or corruption. On the other hand, it was argued that the mode of taking votes by ballot would preclude representatives confronting their constituents; but it was not till after nomination, and the demand of a poll, that the ballot would commence; so that this mode would not take away from constituents the power they now enjoyed of requiring explanations of past conduct, and pledges for the future. The motion, which was lost, had been favoured by certain occurrences at Newark, which were brought before the house of commons on the 1st of March, on a petition from some of the electors of that borough against the Duke of Newcastle. His grace was possessed of large property within the borough—some private, and some held under a crown lease—and had always been able to decide the election. Mr. Sadler had recently been returned on his interest in opposition to Sergeant Wylde; and the petition stated that "the return of Mr. Sadler was obtained by means of the prevailing belief, founded on the experience of former elections, that such of the duke's tenants as should vote against his grace's nominee would be expelled from their tenancies; that many of the tenants gave their votes to the opposing candidate; and that they had in consequence received notice to quit their holdings, whether the same was house or land, and whether it constituted part of the estate of the crown, or the private property of his grace." The petition further stated, that his grace had

neither denied that such notices had been given, nor had disclaimed them; but had rather justified them, by stating that he had a right “to do what he would with his own.” In moving that this petition should be referred to a select committee, Mr. Poulett Thomson informed the house, that not only the use thus made of crown property affected the constitutional character of the representation, but that its original investment was a ministerial job, which had caused a great pecuniary loss to the country. The Duke of Newcastle, he said, held about nine hundred and sixty acres of land surrounding the town, by a lease, granted in 1760, at a rent of only £36. This lease had been renewed in 1815, nine years after its expiration, at a rent of £2,060; but it was still too low, as the estimated value was £3,500. The pecuniary loss was therefore well worthy of attention: but this was a trifle compared to the political purposes to which the property had been applied. The noble lessee never gave a lease for more than one year, in order to keep the voters under his power; and the petition stated the manner in which this power had been employed. If the allegations were true, the house was bound to interfere; for though he did not mean to impugn the just and natural influence of the landlord over his tenant, he appealed to the house whether the power arrogated in the case before them did not rather resemble the tyranny of the slave-driver, than the proper influence of a British landlord. There was not even, in the present instance, the objection of interference with the rights of private property; this was a species of property against the future abuse of which the house might guard, though they could not interfere with the existing lease. They could address the crown, praying that the lease should not be renewed; and, with a view to have the allegations sifted, he moved that the petition be referred to a select committee. This motion was supported by Sir Francis Burdett and Mr. Hobhouse, who set no bounds to their indignation. The latter especially exerted his eloquence on the subject. He remarked:—“Suppose the king’s government should send to his grace the Duke of Newcastle, to let him know that when his lease expired he should no longer have the benefits of that lease; suppose such an intimation was given to his grace, and that it was alleged and understood that his ejectment from the possession of this property took place in consequence of his having given a vote against government upon some great and leading question. If that were done, would it not be denounced as an attack upon our dearest privileges, as an invasion of the most sacred birthright of Englishmen: the liberty to assert and maintain their opinions? Compare the conduct of the government in such a case, with the conduct of the noble peer in the present instance: there were these poor men, because they had to vote against his grace’s candidate, banished from their homes, driven from their happy firesides, and deprived of all the comforts of life. Could such conduct on the part of the noble duke bear comparison with the case of the government depriving the noble duke of these crown-lands on account of his giving a vote against them?” It was stated on the other hand, that many of the allegations in the petition were gross perversions of fact. The crown-lands, for instance, were not in the immediate neighbourhood of the town, but were scattered about among the adjacent villages to a considerable extent; and the crown at the renewal of the lease had only twelve houses and twenty-six cottages. There were others in the neighbourhood who held land to a much greater extent than that belonging to the crown. Mr. Sadler himself said that the petition was a mere election paper, made up of wanton exaggerations, and unfounded

misstatements, for electioneering purposes. He also vindicated his patron's character for humanity and consideration, as regarded the inhabitants of Newark. He denied that he was exposed to the operation of any sinister influence, and could conscientiously say, that the noble duke had left him on all questions to pursue his own line of conduct. Mr. Peel defended the principle of the whole transaction, as well as the mode by which the land in question had been acquired. He could see no valid distinction between this property and that which descended to a man as a freehold from his ancestors. He remarked:—"The lease which his grace possessed of this crown-land gave him a right to deal with it as any other possessions during that period; and in dealing with the property of the crown as with his own, it was obvious that he committed no breach of privilege. Now the petitioners entirely confined themselves to the crown possessions held by the noble duke, praying that a lease of them might in future be refused to him. They did not even refer to his other property, with regard to which he had dealt precisely in the same manner. It was plain therefore that if, in the management of his own private possessions, he had committed no breach of privilege, he had committed none by dealings in a similar manner with the property of the crown. He would not say that the Duke of Newcastle did not dispossess these tenants; but, without entering into the question, he would say that superior to the privileges of that house were other considerations, to which they were bound in duty and conscience to defer, namely, the rights of property. Here was no allegation that menaces had been employed; there was only the fact that seven tenants had been dispossessed. Now, if they were to control the rights of property, under the idea that those rights had been exercised in controlling an election, a precedent would be set which would be not merely inconvenient, but positively dangerous; for nothing could be more dangerous than to say, they would not suffer any tenant to be dispossessed who had voted in opposition to his landlord's wishes. It was in vain that honourable gentlemen exclaimed against the influence which any peer derived from the possession of property: there was no difference between that, and the influence which any other great landed proprietor enjoyed; nor could any species of reform exclude such influence. Property, he contended, should always have an influence in that house, no matter whether it was in the hands of peers or commoners." The motion for referring the petition to a select committee was negatived by a majority of one hundred and ninety-four against sixty-one.

MR. O'CONNELL'S BILL FOR REFORM BY UNIVERSAL SUFFRAGE AND VOTE BY BALLOT, ETC.

Of all the various plans for altering the representation, whether suggested by an honest desire to obviate the necessity of sweeping innovations, or springing from the designs of restless demagogues, there were none against which so little could be said as the proposition for conferring the elective franchise on populous commercial towns. When, therefore, Lord John Russell failed in transferring the elective franchise of East Retford to Birmingham, he did not hesitate to bring the subject before parliament again, by moving for a bill to confer that privilege, independently of all other considerations, on Leeds, Birmingham, and Manchester. He founded the constitutional nature of the proposed alteration on the known practice of parliament, which extended such rights to unrepresented places, when they had acquired

importance by their wealth and population. He remarked:—“It is true the proposal hitherto had been, that the franchise should not be conferred till the house had a forfeiture to dispose of; but it is now plain that if the towns in question are to wait for such a transfer, there is no probability of their obtaining it: so numerous are the difficulties stated in both houses of parliament.” His lordship said that it did not seem very reasonable that the fitness of Leeds or Manchester to be represented should be said to depend on the good or bad conduct of the electors of Penryn or East Retford: their claims must rest on circumstances in their own situation; and if that situation was such as to render it just and desirable that they should be represented, where, he asked, was the sense of saying, that what was just and reasonable ought not to be done, because the electors of some other place had refused to do what was wicked? Lord John Russell then entered into various details demonstrative of the growing greatness of the towns in question. In continuation he remarked that he could not discover any sound reason why so many citizens, and so much wealth, should remain unrepresented, when the principle as well as the practice of the constitution, had pointed out the manner of admitting them into parliament. He knew it would be said that there was no limitation to the principles that if it was held good to admit three towns, it might equally be extended to twenty, thirty, forty, or even indefinitely. He confessed this; and he saw no reason why, if Sheffield, or any other town should at some future period attain the same rank, it should not obtain the same privilege. It was not probable, however, that the principle could ever be applied to more than four or five towns in the whole realm. Parliament, moreover, had not always been so fastidious in regard to the extension of a principle. It had not refused, for instance, the disfranchisement of the forty-shilling freeholders. But the present bill would not even add permanently to the members of the house; he proposed that in future cases of disfranchisement, the franchise should be allowed to drop altogether, instead of being transferred. The whole measure seemed to him incapable of alarming the most timid person, and it ought to be received with willingness by the sternest opposers of innovation. When he looked at other countries, the wisdom and policy of the measure was still more imperiously forced on his conviction. We could not shut our eyes to the fact that a collision between royal authority and popular resistance was rapidly approaching in France, though all must regret that some compromise was not contemplated which might save society from its consequences. It was for us, then, to profit by the warning, and awaken in time to a perception of the nice mechanism of our own representative government. It behoved all who were lovers of liberty without disorder, and of peace without slavery, to watch anxiously at such a period; endeavouring so to accommodate our system to altered times and circumstances, as to render it worthy of the respect and affection of the people. The constitution itself supplied us with the means; we had only to use its own renovating principles. Its fabric was not, as some supposed, that of a Grecian temple, perfect and complete in all its parts, which could not suffer alteration without the destruction of its symmetry; it was rather like a Gothic building, susceptible of enlargement, consistently with the integrity of its ornaments and the security of its duration. The views on which this bill was founded were repeated and enforced by Lord Sandon, General Gascoyne, Dr. Lushington, and Messrs. Huskisson, Bright, and Brougham. All of these members did not go to the same lengths as Lord John Russell, but all admitted that it was desirable

the towns in question should be represented. Some would give them members only as a sequel of the disfranchisement of corrupt boroughs. Mr. Huskisson, who delivered his last speech on parliamentary reform, said that he would have been better pleased to have been able directly to transfer the franchise of East Retford to Birmingham; but as the late decision of the house had rendered that impracticable, he would support the motion. He observed that the time was fast approaching when ministers would be compelled to come down to the house with some measure, or to resign their situations, and nothing was more unwise than for a government to delay important propositions, till compelled by overwhelming majorities. He did not wish it to be understood, however, that his vote implied he could ever be brought to sanction the substitution of a new system of representation for that which existed. He added:—"To a more extensive parliamentary reform, a measure founded upon the principle of a general revision, reconstruction, and remodelling of our present constitution, I have always been opposed; and while I have a seat in this house I shall give it my most decided opposition. If such an extensive reform were effected, we might go on for two or three sessions in good and easy times, and such a reformed parliament might adapt itself to one mode of government on the ordinary concerns of the country; but if such an extensive change were effected in the constitution of parliament, sure I am that, whenever an occasion shall arise of great popular excitement or reaction, the consequence will be a total subversion of our constitution, followed by anarchy and confusion, and terminating either in the tyranny of a fierce democracy, or a military despotism; these two great calamities maintaining that natural order of succession which they have been always hitherto seen to observe. I am, therefore, opposed to such an extensive change and revision of our representative system." The motion for leave to bring in the bill was negatived by a majority of one hundred and eighty against forty.

If this bill was the most harmless modification under which reform could be proposed, that which was subsequently brought before parliament by Mr. O'Connell was, on the other hand, the most wild and ruinous. That arch-demagogue moved for leave to bring in a bill to establish triennial parliaments, universal suffrage, and vote by ballot, the foundation of this system being this proposition—simple indeed in its nature, but tending to anarchy—that every man who pays a tax, or is liable to serve in the militia, is entitled to have a voice in the representation. Lord John Russell, who took occasion of the motion to introduce certain resolutions of his own, embracing a more comprehensive scheme of change than his former proposal, said, that he could not consent to any of Mr. O'Connell's scheme. Triennial parliaments might not be very objectionable; but as to the other propositions, he considered them totally incompatible with the constitution of England. Lord Althorp spoke to the same effect: as any change was an evil, he said, the least change was the limit to which he should go. Mr. Brougham adopted the same course: the duration of parliaments might be shortened, he thought, but he set his face against universal suffrage and vote by ballot. His arguments against them were very cogent and convincing. A county election, he said, could not be managed like an election at a club, where the box was handed round, and the pellet thrown in, and there was an end of it. To contest for a county or extensive city, a man must be constantly among the people. His friends and

himself should be unremittingly engaged in active canvas; committees and subdivisions of committees must be occupied in parcelling out the several districts, and ascertaining how their strength stood in this part and the other; landlords were to be sought out, and they of course would exercise an influence over their tenants. He would suppose that those who advocated this system would be able to devise some plan by which the voter was to be able to vote in such a manner as that mortal could not discover, except from himself, how he voted; that he was to be placed in some kind of sentry-box, and provided with some kind of stamped pellet, the forgery of which would no doubt be made an offence: it being assumed all this while that notwithstanding promises made to his landlord, and the candidate, his friend, the elector intended to give his vote to another. The vote was given, and against a promise. Well, he went afterwards to the candidate, congratulated him upon his prospect of success, not failing to add, that his vote was one of the items which contributed to the prospect. But then see the moral; see how far the concealment of what was done could be continued; how far the knowledge of it could be kept from the landlord, to secure whose interest in retaining him in his farm he had made the promise. No one could see what passed in the sentry-box, or how the pellet was disposed of; but were there no such things as conversation amongst friends in going to or coming from church, or at the club, or at the alehouse? was nothing of the nature of the vote to be allowed to transpire? was a man to keep such a watch and guard over his words and actions for three years, until the next election come, that no mortal could discover what he did? He must not tell it to his wife or his child; he must keep it locked up from his bosom friend; he must not broach it to his pot-companion, but be as dumb as the tankard which they had emptied between them; and this state of silence must be observed for three years. Thus far for the elector: how far was the concealment to be operated upon by the candidate? He had found out that he was unsuccessful; that where he had been promised five hundred votes he had not got fifty, the seed giving back one for ten, instead of yielding ten for one, as a good husbandman had a right to expect. Inquiries will be set on foot as to where the deficiency was. It might be a mistake of the poll-clerks: the poll-books were examined and all was right still. Then the Lord Johns and Sir Roberts, who had promised their interests, were questioned; but they insisted that it could not be amongst their tenants, for they had all promised, and had all, no doubt, religiously kept their words. Each defended his own tallies; but one had not voted for every tally promised. Suspicions were excited, and some of the voters questioned. The man so questioned had only one of three answers to give: he must say that he voted against the candidate, by which he was sure to lose his farm; or he must refuse to say how he voted, by which his loss of the farm would be equally certain; or he must insist and solemnly call God to witness that he had voted as he had promised. But even this latter alternative would not completely lull suspicions: there would still be the watchings and questionings of friends, and of agents, for no act that could be framed could prevent these. In the course of these something would turn up to fix the suspicions on which bad landlords would be ready to act against their tenants; and it was on the assumption of bad landlords, who would visit the refusal to vote for them or their tenants, that the necessity of vote by ballot was at all defended. The bad landlord would act upon suspicion: the more so, as, there being only fifty votes where

five hundred had been promised, the chance was ten to one that any one of the five hundred who said he kept his word, was stating a falsehood. Examples would then be made of a few: and what would be the result? Why, that at the election a vast number would not vote at all. Some even of those who had kept their word would take that as the surest way to prove that they were not in the pay of the opposite party. The landlord would compel others, whom he strongly suspected, not to vote, as the only way of preventing their accession to the other side; or he might persuade some of those who, he knew, if they voted at all, would vote against him, to pair off with those whom he suspected, and thus deprive his adversary of the whole. But was there no other way of coming at the fact of how a voter had kept his word? If, in voting against his promise, he acted for his principles, he would be likely to make it known for the sake of those principles; if from friendship, he would probably tell it to gratify his friend; or if he gave it from motives of interest, nothing was less likely than that he should conceal it, for the attainment of the object would render the disclosure useful; and in this way the secret would come out, and the offended landlord at last get at it, and the visitation upon him, which the vote by ballot was intended to avert, would follow. But was this the only evil which resulted from this system? Was there not a far worse remaining behind? Did not all this study and concealment of a solemn promise violated; this long watching and guard over a man’s words and actions, so as constantly to appear that which he was not, tend to make him lead the life of a hypocrite; that character of whom it was so justly and eloquently said, that his life was one continued lie! What could be expected from a man who had deceived those who had trusted him, and from one election to the other was obliged to keep a constant watch on his words, lest, in an unguarded moment, he should betray his secret, the discovery of which would not be more injurious to his interests than fatal to his character? What must be the opinions of those who could believe that a man, who was for years, nay, even for months or weeks, habitually false on one subject which was dear to him, could be true on all others? Such an opinion was founded in utter ignorance of the human mind: false such a man was, and false he must be, until human nature became totally changed, or until men’s opinions of each other were totally subverted. Thus the ballot would have but little efficiency, and that little would be purchased at a great price. Mr. O’Connell’s motion was lost by a majority of three hundred and nineteen against thirteen; and the resolutions moved by Lord John Russell were afterwards negatived by two hundred and thirteen against one hundred and seventeen. These resolutions proposed to give members to large and manufacturing towns, and additional members to counties of great wealth and population. They also proposed to decrease the numbers of members for boroughs, giving to such boroughs compensation by means of a fixed sum to be paid annually for a certain number of years. Among the towns which were proposed to be comprehended were Macclesfield, Stockport, Cheltenham, Birmingham, Brighton, Whitehaven, Wolverhampton, Sunderland, Manchester, Bury, Bolton, Dudley, Leeds, Halifax, Sheffield, North and South Shields, and it was stated that the same principle would extend to the representation of such large cities as Edinburgh, Glasgow, and Belfast. But the time was not yet come when such an extensive reform as this could be entertained in the British parliament.

{GEORGE IV. 1830—1831}

The only other measure affecting the constitution of the legislative body during this session was proposed by Mr. Grant, who moved for leave to bring in a bill to repeal the civil disabilities affecting British born subjects professing the Jewish religion. In support of this motion Mr. Grant narrated to the house the treatment which the Jews had received from the conquest down to the last century, when the act for naturalizing foreign Jews was repealed within a few months after it was passed, in consequence of the commotions excited by the measure. From that time, he said, nothing had been done respecting: the Jews; they had derived no benefit from the growing liberality of legislation; and were alone still placed beyond the pale of the constitution. They were excluded from practising law and physic, from holding any corporate office; and from being members of parliament. They might even be prevented from voting for members of parliament, if the oath were tendered to them. They were, also, subject to local grievances; for in the metropolis, at least, they could not obtain the freedom of any of the companies, nor exercise any retail trade. And yet they formed a community of peaceable and industrious persons. They were less stained with political offences than any other body of men; and by their wealth they added to the opulence of the country; and all they asked in return was to be admitted to the benefits of the constitution. The house had nothing to do but follow the example presented by the Catholic bill of last year. The introduction of the bill was opposed by Sir Robert Inglis and the chancellor of the exchequer, as inconsistent with what had been the constant practice of the legislature; namely, to protect Christianity under some of its forms in all their enactments. The proposition could only stand upon the principle that no regard should be paid to a man’s religion. It would therefore apply to Turks and Mohammedans as well as to Jews; and it would only teach the people that parliament held Christianity a matter of indifference, though Christianity was bound up as part and parcel of the constitution. As for the Catholic relief bill, that was no precedent; there was a broad distinction between admitting to power in a Christian state, those who were sworn enemies to Christianity, and those who were Christians of different denominations. Jews were aliens in the popular and substantial sense; they had another country and an interest not merely distinct from, but hostile to that of the country which they might happen to inhabit. The solicitor-general said, that, according to the law of England, the Jews had no rights; for when they came back to this country at the Restoration, after being driven out, no law had passed giving them the rights of citizenship. But how did they stand at present? Their religion was protected; their children legitimate; and they had power to purchase land, and to transmit it to posterity. No man could doubt that Christianity was a part of the law of England; and this was to be borne in mind in legislating for those who were not Christians. The question is, “Will you put an end to all religious distinctions?” There could never be a thorough community between Christians and Jews; there was a marked line of distinction between them; a complete individuality in the Jewish character. The bill was supported by Sir James Mackintosh, Dr. Lushington, and Messrs. Macauley and Smith, on the ground that it was

persecution to look at a man's religion when speaking of his fitness for civil rights; and that from the introduction of Jews, no danger was to be dreaded either to the constitution or to Christianity. To refuse the bill, it was said, after admitting Catholics, would be an absurd and inexplicable contradiction. On a division the motion for introducing the bill was carried by a majority of one hundred and fifteen against ninety-seven. Before the second reading came on several petitions were presented in favour of the bill, from London, Leeds, Liverpool, and other places, as well as from private individuals. On the second reading the usual topics in favour of it were enforced by Sir Robert Wilson, Lord John Russell, and Messrs. O'Connell, Brougham, and Huskisson. Sir Robert Peel—for the honourable secretary had now become a baronet by the death of his father—said that he would not go so far as to say that this bill would unchristianize the legislature; but its principle was clearly this, that every form and ceremony whatever, which gave an assurance of adherence to Christianity, should be abolished; and all who supported the bill must maintain that every man, whether a sectarian or infidel, would have a right to the same concession, though he could give no affirmation which would afford a security to the state. General Gascoyne moved as an amendment that the bill should be read a second time that day six months, and on a division this was carried by a majority of two hundred and twenty-eight against one hundred and sixty-five, and the bill was lost.

BILL FOR CAPITAL PUNISHMENT IN CASES OF FORGERY.

On the 1st of April Mr. Peel brought in a bill to alter the law in cases of forgery. The principal object of this bill was to abrogate partially the capital punishment which had so long been affixed to almost every branch of this offence. Thus he proposed to remit the capital punishment in all those cases where serious doubts attended its infliction, and where the complainants by due caution could have saved themselves—such as forging receipts for money, orders for the delivery of goods, forging stamps, uttering forged stamps, attempting to defraud by issuing forged orders for goods, the fabrication of the material of Bank of England paper, and forging deeds and bonds. Capital punishment was still retained in all forgeries of the great seal, privy seal, and sign-manual; in forgeries of wills, on the public funds, on bank or money notes, or orders for the payment of money; and, in a word, of all documents which represent money, and are negotiable and transferable for it. This bill did not meet with the views of a strong party in the house, who thought that the punishment of death should not be inflicted in any cases of forgery, nor extended to any offence short of murder. On the third reading of the bill, Sir James Mackintosh moved a clause repealing the punishment of death in all cases of forgery, except that of the forgery of wills. It also provided that any person against whom a conviction of forgery should pass should lie in prison, either with or without hard labour, at home for the space of fourteen years, or if sent abroad to a penal colony, should be transported for any term not exceeding that number of years. He further proposed to give, not only the power of inflicting either of these punishments, but also that of accumulating both whenever the circumstances of the case should be so atrocious as to deserve the greatest severity. He proposed, likewise, to vest a power in the crown, authorising it to treat all persons convicted of forgery in such a manner as would mark forgery as an offence of a blacker dye than any other which was not directed

against life. Finally, to meet the objection that the importance of employing persons of education in the public service in new and remote colonies would lead, first to the pardon, and then to the employment in public situations of such persons convicted of forgery, he proposed to take away all power of remitting or relaxing the punishment of forgery, except by a representation to the king of the grounds on which it was proposed to remit it, and by a remission of it by the king at home. This clause was carried, and Mr. Peel thereupon relinquished all charge of the bill, hinting at the same time that the house would probably regret the decision to which it had come. On its introduction in the lords, therefore, the lord chancellor declared himself against so sweeping a repeal of the capital punishment, and moved that the bill should be restored to the state in which it had originally been introduced into the house of commons. His views were supported by Lords Tenterden, Wynford, and Eldon. The amendment of the lord chancellor was carried by a large majority; and although when the bill was returned to the commons those who supported Sir James Mackintosh’s amendment complained that the lords had improperly treated them, the lord chancellor’s amendment was finally agreed to, and the bill passed.

BILL FOR AMENDING THE LAW OF LIBEL.

In a previous article certain state prosecutions for libel have been noticed. These prosecutions, and the conduct of the attorney-general in promoting them, were brought before the house of commons by Sir Charles Wetherell, on a motion for copies of the proceedings on the three _ex officio_ informations against the proprietor of a London newspaper. As the motion was merely for the production of papers, and the attorney-general was willing that the papers should be produced, there was no debate, but the general impression of the house seemed to be that the prosecutions were harsh and vindictive, and that Sir James Scarlett, notwithstanding his Whig education and opposition life, was inclined to be a very dictatorial attorney-general. Sir James attempted to recover the favour of the house by a bill to mitigate in some respects the laws of libel as they existed in what were called the Six Acts. By one of these acts it was provided that a second conviction for a seditious or blasphemous libel might be punished with transportation; and another set forth that every person who should publish a newspaper, or certain other publications, should first enter into a recognizance of three hundred pounds, with two sufficient securities, in the metropolis, or of two hundred pounds, if in the country. The object of this clause was to guard against the circulation of blasphemous and seditious libels, and to ensure a forthcoming fund, out of which their authors should pay the awarded penalty. By the bill now introduced the punishment for the second offence was to be repealed, and the securities demanded raised from three to four hundred pounds in London, and from two to three hundred pounds in the country. To the first of these propositions there was no objection; but a strenuous opposition was made to the second, to adopt which, it was said, would be imposing new shackles on the press. When the bill was in committee the clause was rejected on a motion by Lord Morpeth; but on the third reading, the attorney-general having collected a more numerous attendance of ministerial members, moved and carried its restoration.

ALTERATIONS IN COURTS OF JUSTICE.

Committees of the house of commons, and the law-commissioners appointed by the crown, had recently found much to blame in the arrangements for the distribution of justice in Wales. In consequence of this an act was passed during the present session abolishing the separate system of Welsh judicature, and annexing the jurisdiction of the Welsh judges to that of the judges of England. By the same bill the number of puisne judges was increased from twelve to fifteen—a new one being added to each of the courts of king's bench, common pleas, and exchequer. In Scotland, on the other hand, while courts were abolished, the number of judges in the remaining court was diminished by the subtraction of two from its fifteen lords ordinary, or working judges, on whose ability to get through the work depends whether the eight other judges, who sit four and four in two courts of review, shall have judgments brought before them.

ILLNESS OF HIS MAJESTY.

During the sitting of parliament, business was interrupted by the illness of the king. His majesty's health had, indeed, for a considerable time been in a precarious state, but the first bulletin was not issued till the 15th of April, when it was announced that he was labouring under a bilious attack, accompanied by an embarrassment of breathing. The disorder was subsequently ascertained to have been ossification of the vessels of the heart. The symptoms continued to vary, the patient enjoying temporary intervals of comparative ease; but they did not give way, and they brought with them such an accession of bodily debility as rendered painful even the slightest exertion.

BILL TO AUTHORISE THE ADHIBITING OF THE SIGN-MANUAL BY STAMP.

In consequence of the illness of his majesty, on the 24th of May a message was sent down to both houses of parliament, stating that his majesty found it inconvenient and painful to sign with his own hand those public documents which required the sign-manual, and requesting the parliament to provide means for the temporary discharge of that function of the crown without detriment to the public service. A bill, therefore, was immediately passed, allowing the sign-manual to be adhibited by a stamp. Before the stamp could be affixed, a memorandum, describing its nature and its objects, signed by three privy-councillors, was to be endorsed upon the document. The stamp was then to be affixed in the presence of his majesty, by some person whom his majesty should command to do so by word of mouth. The presence of certain high officers of state was likewise required to attest what had been done; and the party affixing the stamp was to adjoin to the royal signature the words, "In his majesty's presence, and by his majesty's command," and subscribe the same with his own name. The bill was limited in its duration to the present session.

DEATH OF THE KING, AND ACCESSION OF THE DUKE OF CLARENCE, WILLIAM IV.

About the end of May a favourable turn of the disorder of his majesty gave rise to a hope of his recovery. This feeling, however, was soon dispersed, for the chest became affected, the lungs completely decayed, blood was mingled with the expectoration, and general debility rapidly ensued. His end was evidently near; and a short time

before it took place his physicians intimated to his majesty that all further endeavours to avert the stroke of death would be unavailing. He calmly answered, “God’s will be done,” and subsequently received the sacrament from the hands of the Bishop of Chichester. Soon after his voice became faint and low, and for several days his words were scarcely articulated; his sleep also was broken and disturbed. At length, on the night of the 25th of June, the angel of death once more approached the palace of the kings of England. He had slept little during the evening, and from eleven to three was in a restless slumber, opening his eyes occasionally when the cough caused great pain. At three o’clock his majesty beckoned to the page in waiting to alter his position, and the couch, constructed for the purpose, was gently raised, and the sufferer lifted to his chair. At that moment, however, a blood-vessel burst, and his attendants hastened to apply the usual stimulants, and to call in the physicians. The royal patient himself perceived that his dissolution was at hand, and exclaimed, “O God, I am dying!” then in a few seconds he added, in a whisper scarcely audible, “This is death!” and when the physicians entered the apartment George IV. had ceased to breathe.

The decease of the monarch had become so much an object of daily expectation, and for years he had lived so much retired from his people, that his death excited less sensation than commonly follows that of English monarchs. Moreover, George IV. was not one of the most popular monarchs in English history.

As soon as the decease of his majesty was known, his next brother, William Henry, Duke of Clarence, was proclaimed by the title of William IV. The new monarch in a short time rendered himself very popular by the plainness of his habits and manners, and by the condescension, or rather the familiarity of his intercourse with his people—qualities which rendered him more popular by a comparison with the secluded life of his predecessors. No immediate change took place in the government, for his majesty, after the usual oaths for the security of the church of Scotland, having signed the instruments requisite at the commencement of a new reign, re-appointed the judges and other great officers of the state to the places which had become vacant, and signified to the members of government that he desired to retain their services.

CONTINUATION

OF

THE HISTORY OF ENGLAND,

By E. H. Nolan

[Illustration: 466.jpg WILLIAM IV.]

CHAPTER XL. (Continued)

{WILLIAM IV. 1830—1831}

Royal Message to Parliament..... Rupture between the Ministers and the Whigs..... Debates on the Question of Regency..... Prorogation and Dissolution of Parliament..... Formation of Earl Grey's Administration..... Death of Mr. Huskisson..... State of foreign Nations.

ROYAL MESSAGE TO PARLIAMENT—RUPTURE BETWEEN THE MINISTERS AND WHIGS-DEBATES ON THE QUESTION OF THE REGENCY.

On the 29th of June the new king sent down a message to parliament, in which he paid a tribute of respect to his deceased brother, and requested the commons to make temporary provision for the public service preparatory to the dissolution of parliament, which would speedily take place according to constitutional usage. An address, in answer to that part of the message relating to the death of the late monarch, was immediately moved by the Duke of Wellington in the upper, and by Sir Robert Peel in the lower house, in the terms of which all parties expressed their hearty concurrence. This harmony, however, did not long prevail. The Whigs had become uneasy because the session had passed away without bringing them into closer contact with ministers; and this uneasiness increased when they saw a new reign commencing, and a new parliament about to be chosen, without any invitation given, or hope held out to them. The time, they conceived, had arrived, when it became necessary, if they hoped to participate in the sweets of office, again to try their strength. They did this on the following day, when the remaining parts of the speech were taken into consideration. The king had recommended that parliament should make provision for carrying on the public service. The Whigs insisted that parliament should continue to sit until a bill be carried through, appointing a regency in case the new king should die before the new parliament could meet—the heir-presumptive, the infant of the late Duke of Kent, being a minor. Accordingly, the ministers having moved in both houses an address simply noting that they would make the temporary provision recommended in the royal message, Earl Grey in the lords, and Lord Althorp in the commons, moved as an amendment, that the consideration of the address should be postponed to the following day. They objected, generally, to the dissolution of parliament, when so many important bills were pending; and insisted more specifically on the necessity of providing for a possible demise of the crown during the interval which must elapse before a new parliament could assemble. They argued that the only inconvenience that could occur was that of sitting a month longer, and they asked why they should not sit, when so imperative a duty required it. The matter, at all events, was so important as to make it reasonable that parliament should have twenty-four hours more deliberation how to address the crown. Ministers replied, that the importance of the question, the difficulties which would arise in the course of it, and the caution with which every part of it must be considered, were the strongest possible reasons for not hurrying it through at the end of a session, when members of the lower house would be thinking much more of the elections for the next parliament than the business of the present. There was, moreover, no present necessity, they said, for this weighty arrangement, as there was no prospect of danger from the king's health. Earl Grey had himself said, it was urged, that his majesty's strong constitution and temperate habits gave promise of a long reign. While the inconvenience, then, was positive and present, the danger was

imaginary and remote. It was in vain to say that the object was to gain twenty-four hours' deliberation. "If the motion is agreed to," said the Duke of Wellington, "it will be viewed as a complete defeat of ministers." Lord Grey declared that the _bona fide_ intention of his motion was to obtain a day's delay, in the hope that the crown might thereby be induced to come forward itself with a recommendation to parliament to consider the question of the regency; and the Duke of Wellington remarked that he believed him. But his grace was right in suspecting that, whatever the mover's object might be, the result was to end in a trial of strength. The discussion, in truth, opened his eyes to the fact that all parties but his own were determined to oppose him: Lords Harrowby, Winchelsea, and Eldon, the Duke of Richmond, the Marquis of Londonderry, Earl Mansfield, and Lord Wharncliffe, one after another, stated their determination to vote for the amendment; even Lord Goderich himself expressed similar sentiments. On discovering this, ministers and their friends lost their temper, and railed against the "unnatural coalition" which, the said, was now shown to have taken place between parties opposed to each other in principle. Earl Grey, in reply, assured the house that he had never either felt or expressed confidence in the government. They had done well in carrying the Catholic Relief bill; they had received all the political and personal support he could give; and that support he could not but feel was of some benefit to the cause; but he claimed no gratitude for what he had done; and, on the other hand, he had none. As to general confidence in the present cabinet, he never entertained such an idea. His public declarations must be known to some of their lordships, and he was certain that, in private, he had often made the same statements. He had repeatedly expressed his belief of the incapacity of ministers, and therefore he could not have any confidence in them. On a division, ministers had a majority of one hundred against fifty-six; but the debate was a declaration of war; and it became evident that their scheme of government, by balancing and trimming their measures, so as to secure the aid of one section of those who trusted them not, against another, was now at an end.

In the house of commons, the language was still more vehement and bitter. The amendment was supported by Messrs. Brougham, Wynn, and Huskisson, Sir Charles Wetherell, and Lord John Russell. Sir Robert Peel had the mortification of receiving a lecture on the subject of consistency from Mr. Huskisson. On a division, the amendment was lost by a majority of one hundred and eighty-five against one hundred and thirty-nine.

PROROGATION AND DISSOLUTION OF PARLIAMENT.

Parliament was prorogued by the king in person on the 28rd of July. In his speech he thanked both houses for their expressions of sympathy and affectionate attachment, conveyed to him on the demise of his lamented brother, and on his accession; and said that he ascended the throne with a deep sense of the sacred duties which devolved upon him, and with a humble and earnest prayer to Almighty God, that he would prosper his anxious endeavours to promote the happiness of a free and loyal people. His majesty referred to the Catholic Relief bill, expressing a hope that it would put an end to religious feuds; and declaring that he was determined to support the Protestant religion as by law established. On the next day

parliament was dissolved by proclamation, and writs were ordered to be issued for the election of a new one, returnable on the 14th of September.

STATE OF PARTIES.

The session just closed had broken up the alliance which enabled ministers to retain office; and as this alliance, whilst it lasted, seemed to widen the breach between them and their ancient friends, they were destined, in the ensuing elections, to meet with a formidable opposition. To oust the ministry was the avowed object of the Whigs, and whoever professed the same object was their friend. The hostility of the Tories rested on different grounds from that of the Whigs, but it was equally formidable. The ministry, therefore, was forced to an election in face of the combined opposition of the two parties—by playing off one of which against the other it had flattered itself with being able to retain its power. Yet the opposition was not stated on any special ground. The manifestoes of the Whigs attacked it on the ground of incapacity; but in what they were incapable was not shown. The Duke of Wellington was said by them to be a domineering soldier, unfitted to conduct alone the government of the nation, yet determined to surround himself with men of mean capacity and dependent spirit, who would act as the unreflecting instruments of his will. Such were the views put forth by the Whigs, and though the offended Tories did not deliberately act in union with them, yet their influence operated in the same direction—namely, to overthrow the ministry. This general spirit of opposition suddenly gained an addition of strength by a revolution in France. The ministers of Charles X., discovering that the new elections increased the number of their opponents, broke through the fences of the constitution, with a determination to establish a species of Prussian government, in which the material interests of the people should dominate over those that are intellectual and political. A royal ordinance abolished the liberty of the press; cancelled the existing system of representation; and fashioned for the kingdom a new system of election, which would produce a chamber of deputies more subservient to the royal will. Paris rose in arms against these decrees, and the rabble overcame the troops. Charles X. and his descendants were then excluded from the throne by the deputies then in Paris, and the French crown was presented by them at the same time to the Duke of Orleans. This revolution in France was followed by another in Belgium, where a national congress declared Belgium an independent state, excluded the house of Orange from the throne, and set themselves about the election of a new king. These events were hailed in England by the Whigs with applause, as the dawning of a new and glorious era in the history of man. Public meetings were held to pass resolutions commending the spirit with which the Parisians had shaken off encroaching despotism, and deputations were sent to congratulate them on their triumph. The people of England were especially called on to remark how little they had to fear from military power, since the citizens of Paris and Brussels had been able to set it at defiance. It was also stated that they were clearly entitled to be heard in the government, since it was in their power to make the government what they chose. The excitement produced by these events, indeed, acted in the elections very unfavourably to ministers; and it had also the effect of bringing forward the question of parliamentary reform in a much more prominent and remarkable shape than it had yet assumed. The force of example

was now added to the existing motives for change, and the notion of transferring the privileges of a corrupt borough to an unrepresented place, or giving the elective franchise to a populous town, was discarded. A wild and indiscriminating change was abroad. Meetings, petitions, and addresses were got up on every hand, advocating extensive alterations in our representative system, all of which, however vague and indeterminate in their respective conditions, tended to confer the elective rights on a much larger proportion of the people than had hitherto enjoyed them. Threats were even uttered that a refusal of these rights would lead to a general convulsion, in which the privileged orders might possibly be forced to yield more than was required. As a natural consequence of these menaces and demands, disturbances took place throughout the country. Lurking incendiaries wreaked their vengeance on property, the destruction of which only tended to aggravate the prevailing distress. Night after night they lighted up conflagrations, by which a large quantity of grain, and even of live stock, was consumed. Bands of men, also, still more daring than the incendiary, attacked machinery of all kinds, particularly thrashing machines, the use of which became so unpopular that insurance-offices refused a policy to those who kept them on their premises. The military force was increased in the disturbed counties, and a proclamation was issued, offering a reward of five hundred pounds for the conviction of an incendiary. A special commission, also, was ordered to proceed into those counties where the outrages were committed. The first offenders that were seized, being tried before county magistrates, met with lenity, from commiseration for their starving condition. But this only increased the evil; and, therefore, the government resolved to quell the riotous proceedings by the strong arm of the law. They were aided in this work by the yeomanry and fanners, who, mounting their horses and scouring the country, aided the civil officers in the discovery and apprehension of offenders.

MEETING OF THE NEW PARLIAMENT.

It was under these gloomy circumstances that, on the 26th of October, the new parliament met for the dispatch of business. The meeting of parliament found parties precisely as they had been at the dissolution, with this difference, that all the elements of opposition had acquired new vigour by the course of events, while new topics had sprung up, on which it would be forced to make a trial of strength. It appeared certain that the question of reform would speedily be brought forward; and the ministers may have hoped that such a discussion would restore to their ranks their former adherents. The session opened in reality on the 2nd of November, the intervening days being occupied in swearing in members, and in the re-election of Mr. Manners Sutton as speaker. The king attended on that day in person. In his speech his majesty alluded to the important events which had occurred on the continent; to the continuance of his diplomatic relations with the new French dynasty; to the endeavours he was making to restore tranquillity in the Netherlands; to the maintenance of those general treaties by which the political system of Europe had been established; and to the hope of renewing his diplomatic relations with Portugal, because the government of that country had determined to perform a great act of justice and humanity by the grant of a general amnesty. The remainder of his majesty’s address referred to the estimates, the expiration of the civil list on the

demise of his late brother, and his own dependence upon the generosity and loyalty of the house and the country.

The usual addresses were carried in both houses, though not without signs of opposition to ministers on the subjects of reform and retrenchment. Earl Grey, in allusion to that part of the address which spoke of the proceedings in Belgium as a revolt against an enlightened government, and expressed our determination to maintain in regard to it those general treaties by which the political system of Europe had been fixed, said, that all this sounded like threatened interference, while our principle should have been, as in the case of France, non-interference. He could not conceive why we should be bound by treaties to interfere between Holland and the Low Countries. We ought to learn wisdom from what had passed before our eyes; and when the spirit of liberty was breaking out all around, it was our duty to secure our own institutions by introducing into them a temperate reform. Unless we did so, he was persuaded that we must make up our minds to witness the destruction of the constitution. He had been a reformer all his life; but at no period had he been inclined to go further than he would be prepared to go now, if the opportunity offered. He did not found this on abstract right. It was said that every man who paid taxes, nay, that every man arrived at years of discretion, had a right to vote for representatives. He denied this. The right of the people was to have a good government, one calculated to secure their privileges and happiness; and if that was incompatible with universal suffrage, then the limitation, and not the extension, was the true right of the people. In reply to Earl Grey on this subject, the Duke of Wellington went beyond his usual prudence and reserve. He remarked:—“The noble earl has alluded to something in the shape of a parliamentary reform; but he has been candid enough to acknowledge that he is not prepared with any measure of reform. I have as little scruple to say, that his majesty’s government is as totally unprepared as the noble lord. Nay, on my part I will go further, and say, that I have never read or heard of any measure, up to the present moment, which could in any degree satisfy my mind that the state of the representation could be improved, or be rendered more satisfactory to the country at large than at the present moment. I will not, however, at such an unseasonable time enter upon the subject, or excite discussion; but I shall not hesitate to declare unequivocally what are my sentiments upon it. I am fully convinced that the country possesses at the present moment a legislature which answers all the good purposes of legislation, and this to a greater degree than any legislature ever has answered in any country whatever. I will go further, and say, that the legislature and the system of representation possess the full and entire confidence of the country—deservedly possess that confidence; and the discussions in the legislature have a very great influence over the opinions of the country. I will go still further, and say, that if at the present moment I had imposed upon me the duty of forming a legislature for a country like this, in possession of great property of various descriptions, I do not mean to assert that I would form such a legislature as we possess now, for the nature of man is incapable of reaching it at once; but my great endeavour would be to form some description of the legislature which would produce the same results. The representation of the people at present contains a large body of the property of the country, in which the landed interest have a predominating influence. Under these

circumstances I am not prepared to bring forward any measure of the description alluded to by the noble lord. I am not only not prepared to bring forward any measure of this nature, but I will at once declare that, as far as I am concerned, as long as I hold any station in the government of the country, I shall always feel it my duty to resist such measures when proposed by others."

In the house of commons Mr. Brougham did not wait even till the address was moved before he gave notice that, on the 16th, he would submit a distinct proposition for a change in the representation. Sir Robert Peel professed that he saw difficulties about the question which he was by no means prepared to encounter. He wished, nevertheless, to say nothing then which might prevent discussion hereafter, or interfere with its advance towards a satisfactory termination. These declarations of ministers spread widely the flames of discontent, which had already been kindled against government; and the consequences appeared in formidable combinations, both in and out of parliament, to embarrass ministers, and thwart their measures.

DISCUSSIONS CONCERNING THEIR MAJESTIES' VISIT TO LONDON.

The embarrassment to which ministers were exposed was greatly increased by a domestic occurrence. Some time before the meeting of parliament the king and queen had promised to honour the lord-mayor's feast at Guildhall with their presence: great preparations had been made by the citizens on the approach of that civic festival, and all London was on tip-toe expectation of the splendid procession. On the 7th of November, however, all their expectations were disappointed: the lord-mayor received a note from the home-secretary, stating that his majesty had resolved, by the persuasion of his ministry, to postpone his visit to a future opportunity, because, from information recently received, "there was reason to apprehend that, notwithstanding the devoted loyalty and affection borne to his majesty by the citizens of London, advantage would be taken of an occasion which must necessarily assemble a vast number of persons by night to create tumult and confusion, and thereby to endanger the property and lives of his majesty's subjects; and it would be a source of deep and lasting concern to their majesties were any calamity to occur on the occasion of their visit to the city of London." This announcement filled the metropolis with doubt and alarm. Men conceived that some atrocious conspiracy had come to light—that a new gunpowder-plot had been discovered—and that the crisis of the constitution and of the country had arrived. The funds fell three per cent.; and in the country every man expected that the next mail would bring intelligence that London was in a state of insurrection. All, however, remained calm; and ministers were naturally called upon to explain the grounds on which they had acted. It appeared that the principal foundation of their proceedings was a note from some person in private life, stating that he was apprehensive the Duke of Wellington would not be very favourably received. Mr. John Key, lord-mayor elect, wrote to his grace informing him that "in London, as well as in the country, there was a set of desperate characters," fond of every opportunity of producing confusion, and that, according to information received by him, some of these desperadoes intended to make an attack on his grace's person on his approach to the hall; and, therefore, suggesting that his grace should come strongly and sufficiently

guarded. The Duke of Wellington stated in the house of lords, and Sir Robert Peel in the commons, that on receiving this letter it was considered an imperative duty to recommend to his majesty the postponement of his visit to a future occasion. “But, besides the letter of the lord-mayor elect to the Duke of Wellington,” remarked Sir Robert, “information had been received that an attack was to be made on his house in the course of the night, when the police were at a distance, under the pretence of calling for lights to illuminate. Any such attack must be accompanied by riot; and the attempt to suppress such riot by force, when the streets were filled with women and children, must be accompanied by consequences which all of us must lament. That, however, is only one of the causes which I have for believing in the possibility of such an attempt at riot taking place. Every one is aware that there exists in the public mind considerable excitement against those authorities which have been appointed, under the sanction of the house, to maintain the public peace—I allude of course to the body which is known by the name of the new police.” In the course of Saturday and Sunday the most industrious attempts were made in various quarters to inflame the public mind against the new police. Thousands of printed handbills were circulated for the purpose of inciting the people against that portion of the civil force which is entrusted with the preservation of the public tranquillity. These were not written papers drawn up by illiterate persons, and casually dropped in the streets, but printed handbills, not ill adapted to the mischievous purposes which they were intended to answer. After reading some of these missives, Sir Robert continued:—“Now, after hearing the inflammatory language of the bills, I call upon the house to consider how great the likelihood is that, after the police had returned to their ordinary duties in their respective portions of the town, a desperate attack would have been made upon them. If it were made, it would of course be resisted by the civil force; if the civil force were insufficient to repel it, military aid would be called in; and then on that night of general festivity and rejoicing, in the midst of crowds of unsuspecting men, women, and children, there might be resistance, and if resistance bloodshed, occasioned by the necessity of supporting civil authorities.” In reply, Mr. Brougham observed that, so far as the statement made did not proceed on the unpopularity of the Duke of Wellington, it amounted simply to this—that it was a bad thing to have a large assembly on the 9th of November; and for this reason, that though nine hundred and ninety-nine men out of one thousand might be peaceable and loyally disposed, yet the odd units, the few who were riotously inclined, might put out the lights in the streets, might involve the town in darkness, and might afterwards commence a scene of riot and confusion which could not end without bloodshed. If this were any objection to his majesty’s attendance at the civic festival, it was not an objection to which the course of events had suddenly given birth within the last two or three days. Every one must have known that such an event as the visit of his majesty to the city of London must, from its rarity, collect thousands, if not myriads, to witness it; so that any accident to which the metropolis was exposed at present, from the collection of a large mass of people together, must have been as palpable a month ago as at the present moment. In the course of his speech Mr. Brougham contrasted with severity the popularity of the king with the hostility exhibited towards the premier.

MAJORITY AGAINST MINISTERS FOR A SELECT COMMITTEE ON THE CIVIL LIST.

It was now obvious that the duke’s administration had received a shock from which it could not recover. The opposition made a final and successful attack upon it on the 15th of November, when the chancellor of the exchequer stated to the house his arrangement for the civil list, which he proposed to raise to the annual sum of £970,000. They insisted that government in many of its departments was extravagant, and, above all, that the portion which was incurred on the personal account of the monarch ought to be kept apart from every other item. Sir Henry Parnell moved, “That a select committee be appointed to take into consideration the estimates and accounts, presented by command of his majesty, regarding the civil list.” The debate on this proposition was brief. Messrs. Calcraft and Hemes, both members of government, opposed the motion, chiefly on the ground that it had never been customary to submit the civil list to a committee, and that retrenchment and simplification had been earned as far as was practicable or prudent. The motion was supported by Lord Althorp and Messrs. Bankes, Wynn, and Holme Sumner, three of which members would in other times have been loath to lend their votes to unseat a Tory ministry; and on a division there appeared a majority in its favour of two hundred and thirty-three against two hundred and four, thus defeating ministers. The consequence of this vote was that on the next day the Duke of Wellington in the lords, and Sir Robert Peel in the commons, announced that they had tendered, and his majesty had accepted, their resignations, and that they continued to hold their offices only until successors should be appointed. They afterwards declared that they came to the resolution not so much on account of the vote on the civil list as from anticipation of the result of a division on Mr. Brougham’s proposition for reform, which stood for the day on which this announcement was made. But if the civil list question had not been deemed important enough to justify a resignation, the majority that decided it showed a settled and stern system of opposition, which must have convinced ministers that they could no longer rule the country. At the request of his friends, Mr. Brougham postponed his motion for reform till the 25th of November, professing to do so with reluctance, “because he could not possibly be affected by any change in administration.” He pledged himself to bring forward his motion on the day appointed, whoever might be his majesty’s ministers. He repeated the same declaration on a motion made by Sir M. W. Ridley to postpone the consideration of election petitions till after Christmas; but two days afterwards Mr. Brougham was gazetted as lord high chancellor of Great Britain with a peerage.

FORMATION OF EARL GREY’S ADMINISTRATION.

{WILLIAM IV. 1830—1831}

The Tories had lent their votes to displace the ministry, but they had formed no plan, and taken no steps, to ensure to themselves any share in the succession. Earl Grey was authorised by the king to form a new administration, of which he himself should be the head; and his lordship accepted the office on condition that he should have authority to make parliamentary reform a cabinet measure. The ministry was formed

in about a week, and it consisted of Whigs, and of those who had been formerly adherents of Messrs. Canning and Huskisson, and who had held office with the leading members of the displaced administration. The greatest difficulty lay in managing Mr. Brougham, who had just declared that no change could affect him, by which it was found he meant that no change would bring him the offer of an office sufficiently high for his ambition. Earl Grey was afraid to leave him neglected or discontented in the lower house, and the honourable gentleman was determined not to sacrifice his importance in that home for any subordinate office. The negotiation ended in Mr. Brougham being made lord-chancellor—a striking instance of the most important judicial functions in the empire being entrusted, as the reward of merely political services, to a man who possessed splendid talents, but who was unprovided with judicial learning, and, above all, destitute of habits and capacity in judicial thinking. No man pitied the fate of Sir James Scarlett, but many thought the Irish chancellor, Sir Anthony Hart, who had stood impartially between contending parties, harshly treated in being made to resign for Lord Plunkett—the new premier considering it necessary to have an Irish chancellor whom he could fully trust and employ in Irish politics. The Duke of Richmond was the only leading member of the old Tory party who entered the new cabinet, and he became postmaster-general. The other members of government were as follows:—Lord Althorp was appointed to lead the house of commons as chancellor of the exchequer; the offices of home, foreign, and colonial secretaries were given respectively to Lords Melbourne, Palmerston, and Goderich; Sir James Graham was made first lord of the admiralty; Lord Lansdowne became president of the council, and Lord Durham privy seal; Messrs. Denman and Home were attorney and solicitors general; Lord Hill was commander-in-chief; Lord Auckland, president of the board of trade, and Mr. C. Grant, of the board of control; Lord Holland, chancellor of the duchy of Lancaster; the Duke of Devonshire, lord chamberlain; the honourable Agar Ellis, chief commissioner of the woods and forests; Mr. E. Grant, judge-advocate; Lord John Eussell, paymaster of the forces; Mr. Poulett Thompson, vice-president of the board of trade and treasurer of the navy; Sir Edward Paget and Sir Robert Spencer, master and surveyor-general of the board of ordnance; Mr. C. W. Wynne, secretary at war; and Messrs. Ellice and Spring Rice appointed joint secretaries of the treasury. In Scotland there were no offices liable to change except those of the lord-advocate and the solicitor-general, the former of which was given to Mr. Jeffrey, and the latter to Mr. Cockbum, both of them long-tried friends of the lord-chancellor, and at the head of their profession. Ireland received, as its chief governor, the Marquis of Anglesea, with Mr. Stanley as secretary, Lord Plunkett as chancellor, and Mr. Pennefather, attorney-general. It was necessary that the new ministers, who had vacated their seats by taking office, should be re-elected, and this afforded an opportunity to the radical party of showing their strength. Thus Mr. Stanley was defeated at Preston by the notorious democrat, Plenry Hunt. After the new ministry had secured seats, no business of importance was transacted during the remainder of the year, except the passing of a regency bill in conformity with the recommendation in the speech from the throne. This bill had been introduced into the house of lords on the day when the fate of the late cabinet was sealed in the commons. It provided that in the event of a posthumous child of the present queen, her majesty should be guardian and regent of the kingdom; and that if such an event

did not occur, then the Duchess of Kent was to be guardian and regent during the minority of her daughter, the Princess Victoria, the heir-presumptive. The princess herself was not to marry while a minor without the consent of the king, or, if he died, without the consent of both houses of parliament; and the regency was to be at an end if the Duchess of Kent, while regent, married a foreigner. A select committee was appointed on the 9th of December to inquire what reduction could be made in the salaries and emoluments of offices held during the pleasure of the crown by members of either house of parliament, and to report their opinion and observations thereupon to the house. On the 23rd both houses adjourned to the 3rd of February—ministers declaring that a long adjournment was necessary, in order to enable them to prepare the different measures which they intended submitting to parliament, especially that plan of reform to which they had pledged themselves on accepting office, and by which alone they could hope to retain it.

DEATH OF MR. HUSKISSON.

Among the most interesting events of this year may be reckoned the opening of the Liverpool and Manchester railway. It was, however, attended by a lamentable catastrophe. Mr. Huskisson, as one of the members for Liverpool, accompanied the Duke of Wellington in the procession; and, neglecting the caution given to visitors against leaving the carriages, he was knocked down by one of the returning engines, and his leg was so dreadfully crushed, that amputation could not be performed. He died of that disorder called tetanus, which commonly occurs after extensive lacerated wounds. His character is recorded in the previous pages of this history.

STATE OF FOREIGN NATIONS.

The revolutions in France and Belgium have already been noticed. The spirit of insurrection displayed in these countries extended itself to Leipsic, Dresden, Hesse-Cassel, Hamburgh, Berne, Basle, and Poland. In this latter country, however, the insurrection did not arise from civil discord, or political machinations, but rather from the harsh and insulting proceedings of Duke Constantine, its viceroy. It was a light to guide and warm a noble people to attempt their national redemption from the hand of a foreign and tyrannical master. A contest took place in the streets of Warsaw, between the people and the Russian troops, and the latter were expelled the city. Subsequently the grand duke was obliged to retire from the frontier, but not till it had been represented to him that it was the universal wish of the nation that the constitution should be carried into complete execution; that the promise of Alexander should be fulfilled, of incorporating with Poland its ancient provinces now under the dominion of Russia; but that no demands pointed to the dethronement of the emperor as their king, in whose name all the changes lately made in the government had been effected. The Poles, however, being doubtful in what light Nicholas, Emperor of Eussia would regard their proceedings, prepared for resistance, should he be determined to treat them as rebels. General Klopicki was named commander-in-chief of the army, and he soon found himself at the head of a powerful force. All the Polish regiments joined the cause of the people; but, divided and mutilated as Poland was, it seemed a hopeless prospect for a portion of it to engage in a struggle with the gigantic power of Russia. Fears were also entertained—and they were too soon

realised—that Austria and Prussia, in fear for their plunder, would be adverse to its cause. Notwithstanding, the Poles made themselves ready for the contest with stout hearts. To secure energy and promptitude in their measures, they invested Klopicki, after the manner of the Romans of old, with dictatorial power. But even in assuming this office, which was to endure till the chambers of the diet, which were convoked for the 18th of December, could be assembled, the dictator disclaimed any design on the part of Poland of throwing off its king, or of demanding anything more than to enjoy under that king, an independent national existence, with the free constitution which had been promised. “The Poles,” said Klopicki, “know how to be faithful; and when all Europe abandoned him before whose victorious eagles the nations had prostrated themselves, the Polish battalions, firm in the hour of reverses, never ceased till the last moment to range themselves round the fallen conqueror. But in the present instance the power of evil had overstepped all bounds; it was impossible to convey the language of truth to the head of the state; flatterers, greedy of reward and prodigal of calumnies, gave us every day new chains instead of liberty. Never was insurrection more legitimate. No; the king himself will be forced to admit the justice of our cause, when he comes to know the extent to which he was abused.” But what could the unhappy Poles have expected from the mercy of the haughty autocrat Nicholas? They sent two commissioners to St. Petersburg, in order to attempt to arrange some terms of compromise; but the emperor refused to listen to their representations, and issued proclamations in which he threatened to inflict on the Poles the most severe punishment for what he called “their horrid treason.” The year closed with a storm thickly gathering over the unhappy country of Poland.

In Spain, Ferdinand deeply offended the Carlists by his abolition of the salique law in favour of the child, if it should be a female, with which his queen was pregnant, and thus gave rise to a war which long desolated the northern provinces of Spain, as well as to the quadripartite treaty, under which it was hoped that the country might enjoy the blessings of a constitutional government. When the infant was born, it proved to be a daughter, and the nation was called upon to proclaim Don Carlos immediately. A civil war commenced; but the Carlists were at the close of the year so far subdued as to leave the government in apparent security. In Portugal, Don Miguel, still cut off from direct communication with European sovereigns, except his brother of Spain, continued, by means of special commissions, to take vengeance on those of his subjects suspected of political delinquencies, and to supply his wants by the confiscation of their property. Blood had, it is true, ceased to flow; but a more terrible and lingering destruction was ensured to his victims by their deportation to servitude in the African settlements. In the beginning of the year about fifty persons, whose only offence was that of being suspected of being malcontents, were shipped off for Angola. These unhappy men, though of good families, and respectable characters, were chained up with the most abandoned ruffians, robbers, and assassins, and doomed to the same punishment. In the middle passage, they were even stowed away in the smallest compass possible, like the slaves of Africa, while the best places were assigned to the malefactors; magistrates, members of the cortes, and other reputable persons occupied the most deadly and pestilential berths. Out of respect for their former situation in life, and pity for their present sufferings, they

were for some time spared the fatigues of hard labours; but the superintendent soon received orders to discontinue this lenity. Nor were the political prisoners confined in the dungeons at Lisbon much better treated. They could scarcely obtain trials, and when declared innocent, they could not gain their liberty. The treatment they received may be seen from a petition which those confined in the castle of St. Julian presented to Miguel against their jailer:—“The prisoners of the tower of St. Julian have been lodged in the worst cells, subterraneous, dark, exposed to rain and all weathers, and so damp that it has frequently been necessary to strew the ground with furze, to enable them to walk on it. They have occupied apartments only nine yards long and three yards wide; and these being crowded, the temperature has been raised to such a degree as to cause cutaneous eruptions, and other complaints. Among these sufferers are the Spanish bishop, Dr. Diego Munoiz Torrero, Doru. Ant. Pinho, and J. Ant. Cansado, these latter being already declared innocent by the commissioners. In one of these cells a complete inundation has occurred more than once, leaving a continual dampness, and causing a consequent deterioration of health. Besides this dreadful state, sir, the governor has ordered the windows to be closed, to shut out the few spans of light of the heavens, and the fresh air, the only remaining part of it being from the fissures of the door, whereto the prisoners apply in turn their mouths, to breathe particles of that air which the Almighty spreads so unsparingly to all animals and living beings. Another cell, called the principal one, from below, is also inhabited, and so dark that, let the sun be as brilliant as possible, six lights will not suffice to lighten it, being twenty steps below the surface of the ground. Such, sir, has been the habitations of your prisoners, not for the space of a few days, but for eighteen, twenty, and twenty-three months; whereas several other better cells are occupied by only three or four prisoners.” The petition further stated that the food given to them was of the most revolting kind; and that those who were sick were thrust into solitary confinement, in dungeons without light, without water, food, or bed, and filled with vermin. But the heart of Miguel was steeled against this petition. It was in vain that complaints were poured into his ears; nor did the death of his mother, who had been blamed for much of this cruelty, and who this year was called to her account at the bar of an offended Maker, make any change in the proceedings of a disposition which her maxims had deadened to the voice of mercy. Earl Grey, on assuming the reins of government, very properly refused to make an alliance with such an infamous usurper; notwithstanding, he was blamed for this line of policy by the members of the late administration. Towards the close of the year, indeed, there were signs of a rupture between the two countries. Part of the Portuguese navy was employed in an attempt to blockade Terceira, where the regency, in the name of the young queen, was still ruling. Miguel made the non-success of these vessels a pretext for seizing some English ships; and threats from the government were resorted to before he would give up the pretended prizes to their owners. Then the usurper relinquished his prey, and war was averted.

The administration of Greece, during the present year, remained in the hands of Capo d’Istrias and his partisans. The allied powers, however, were occupied in attempting to make arrangements for the permanent settlement of its government. The crown was tendered by them to Prince John of Saxony, who declined it. Several

candidates were then passed over in favour of the pretensions of Prince Leopold of Saxe Coburg, and the sovereignty was unanimously offered to him; but, though he had been once anxious for the prize, he also finally rejected it. The causes of his rejection of it were these:—Early in the year the prince wrote to Capo d'Istrias to announce his acceptance of the sovereignty, and to communicate to the Greek community the efforts he had made, and was still making, to obtain from the allied sovereigns as many advantages as possible for the new state. The count, however, did not like the idea of relinquishing his power; and he transmitted letters and documents expatiating on a variety of objections to the arrangements of the allies, and on the dissatisfaction which they had produced throughout Greece. These letters and documents excited the apprehensions of the prince; and the horrors of an embarrassed administration, and of discontented, unruly subjects, prevailed over the glittering radiance of a crown. At the same time the illness of George IV., which was likely to terminate fatally, opened to him new prospects. The question, therefore, regarding the new boundaries of the kingdom, and the separation of Candia from its territory, formed a ready pretext for his rejection of the offer. The three allied courts endeavoured to change his determination; but their efforts were unsuccessful; he definitely declined the crown.

Before the revolution of July, the French government had sent a powerful fleet and army, under the command of General Bourmont, against the dey of Algiers. Bourmont was successful; the dey capitulated, and retired to Naples, leaving the head of the piratical states in the hands of the conquerors. The expedition was principally undertaken to obtain the glory of a military exploit which had baffled the most powerful nations of Europe, and of thus creating popularity for the despotic ministers of Charles X. But no exploit could raise them in the estimation of the people; monarch and statesmen alike were overthrown; and when the expatriated dey heard of the event, he exclaimed, "Allah! Allah! God is great, and the avenger of injustice."

In Belgium, where Prince Leopold finally obtained a crown, the progress of military events was interrupted by foreign interference. The kingdom of the Netherlands had been created by Great Britain, Austria, Russia, Prussia, and France, which powers held themselves bound to look after their work. Some of them wished to compel the Belgians to submit by force. The Rhenish provinces of Prussia were directly opposed to the infection of that spirit which had severed the United States; the Germanic confederation was already attacked by formal claims on Luxembourg; and the King of the Netherlands had appealed to the allied powers to preserve the throne which they had created. On the other hand, it was certain that the new government of France would favour the independence of Belgium, and its people would desire nothing more ardently than a pretext for war, which might terminate in the restoration of these provinces to her dominion. One party in Belgium, indeed, openly declared that her interests demanded a reunion with France; and that there was no doubt that she would receive the protection of that power in case any of the allies should attempt to preserve her connexion with Holland. To avoid war, therefore, the allies agreed to interpose their good offices; and as their first object was to stop hostilities, a protocol, signed at London on the 4th of November, bound all parties to negotiation rather than to have recourse to the sword. These negotiations involved many

difficulties, and were counteracted by many conflicting interests; but their result, as will be seen, was the erection of Belgium into an independent kingdom.

CHAPTER XLI.

{WILLIAM IV. 1831—1832}

State of the Reform Question..... Meeting of Parliament..... Introduction of the Reform Bill..... Debate on the Motion that the Bill be read a Second Time, &c. Motion of Adjournment pending the Ordnance Estimates carried against Ministers..... Prorogation and Dissolution of Parliament..... The Budget..... Proposed Change in Taxes, &c. Arrangement of the Civil List..... General Election..... Meeting of Parliament: The Reform Question renewed in Parliament, and carried in the Commons..... Rejection of it by the Lords..... Consequences of its Rejection..... Financial Statements..... Prorogation of Parliament..... Coronation of William IV..... Opening of the New London Bridge..... Ravages of the Cholera..... Foreign Affairs..... Meeting of Parliament..... New Reform Bill..... State of Ireland

STATE OF THE REFORM QUESTION.

{A.D. 1831}

It has been seen that the ministry which succeeded that of the Duke of Wellington were pledged to apply themselves forthwith to what was termed the reform of the representation; that is, to strengthen and enlarge the democratic part of the constitution. While they were occupied in this work, the details of which were as yet unknown, meetings were held in all parts of the country, for the purpose of getting up petitions in support of their policy. The prayers of the petitions were various, and in many cases very indefinite. Thus one set of petitioners prayed that the right of suffrage should be equalised and extended; but whether they meant such an extension and equalisation as would convert the government into a democracy, or some more modified degree of change, did not appear. Others said that a real, substantial, and effectual reform in the representation of the people had become necessary; but what reform they actually wanted was all conjecture. Some petitions, however, plainly declared what species of reform the petitioners required. These demanded the annihilation of all influence on the part of the aristocracy in returning members of the house of commons; the shortening the duration of parliaments; the extension and equalisation of the elective franchise; and vote by ballot. Another set of petitions recommended a reform of property as well as of representation, actually demanding that the possessions of the church should be seized, and appropriated to “the necessities of the state.” In other petitions, the petitioners, apparently at a loss to conceive what kind of reform was required, were satisfied with announcing that the country was ruined, and that it could only be restored by reform; at the same time gravely leaving it to his majesty’s ministers to declare what change would best answer the purpose. But, besides petitions in favour of reform, permanent political associations had begun to be formed in different parts of the country, for the purpose

of organising large numbers of individuals into one body, to act on the mind of the public, and to press the question upon government. These associations took the name of Political Unions; and they had a regular array of officers, with a council, which transacted the ordinary business. Their objects were to push on changes to any extent possible; to insist on whatever they chose to demand, as a right which could not justly be refused; to repress opposing opinions in their neighbourhood; and to make even the government feel that they existed in order to dictate, not to obey. The whole kingdom was indeed in a ferment; and not only the correction of abuses, but immediate relief from national calamities, was confidently expected by the multitude in a reform of parliament. It was to prove a balm for all their sufferings—the commencement of a golden era of prosperity.

MEETING OF PARLIAMENT.

Parliament met, pursuant to adjournment, on the 3rd of February. Hitherto ministers had veiled in profound secrecy the plan of reform which they intended to produce. The question was introduced on this day by Earl Grey; but it was only to state that ministers had succeeded in framing a measure which would be effective, without exceeding the bounds of a just and well-advised moderation; that it had received the unanimous assent of the government, and that it would be introduced into the house of commons at an early period.

INTRODUCTION OF THE REFORM BILL.

The measure of reform concocted by ministers was brought forward on the 1st of March by Lord John Russell, to whom, though not a cabinet minister, it was entrusted, in consideration of his constant and strenuous exertions in this great question. His lordship commenced by stating, that he was about to propose what had been formed in the mind of Earl Grey himself. Ministers, he said, had discarded the notion of complying with violent and extravagant demands, and had framed a measure which would satisfy every reasonable man in the country. They wished to take their stand between two hostile parties; neither agreeing with those, on the one hand, who thought that no reform was necessary, nor with others who conceived that only one particular reform could be wholesome or satisfactory. His lordship then proceeded to detail the plan by which ministers proposed to satisfy a demand for reform which, as they themselves believed, could be no longer resisted. That plan had been framed so as to remove the reasonable complaints of the people, which complaints were principally directed, first, against nomination by individuals; secondly, against elections by corporations; and, thirdly, against electioneering expenses. As regards the first two grounds of complaint, the ministerial plan consisted, first, in disfranchisement, in whole or in part, of places which had hitherto sent members to parliament; secondly, of enfranchisement, in order to enable unrepresented places to elect members; and, thirdly, of an extension of the franchise, in order to increase the number of electors in those places which were to be allowed to retain, in whole, or in part, their existing privileges. The part of the plan which related to disfranchisement proceeded on a plain rule; namely, to disfranchise all boroughs whose population did not exceed a certain number. It was true, said Lord

John Russell, it would be extremely difficult to ascertain the wealth, trade, extent, and population of a given number of places; but we have been governed by the population return of 1821, and we propose that every borough which at that date did not contain two thousand inhabitants should be deprived of the privilege of sending members to parliament. This, he explained, would disfranchise sixty boroughs, and get rid of one hundred and nineteen members. Disfranchisement was not to stop here. There were some boroughs which should be blotted out altogether, while others, although more flourishing in point of population, were too low to have any good title to retain their present privilege of sending two members to the house of commons. It was therefore proposed that all boroughs whose population exceeded, according to the census of 1821, two thousand, and yet was under four thousand, should only send one instead of two members. The number of these boroughs was forty-seven; and Weymouth, which had hitherto sent four members, was in future only to send two. Having proposed the disfranchisement of these places, amounting in the whole to one hundred and sixty-eight members, Lord John Russell explained the ministerial plan of enfranchisement. It was proposed that each of seven considerable towns should send two members, and twenty others one member each. Then twenty-seven of the largest counties, including Yorkshire, was in future to return four members instead of two, with this exception, that Yorkshire, already possessing four, was to return an additional member for each riding. The representation of London, likewise, was to be more than doubled; the Tower Hamlets, Finsbury, Lambeth, and Marylebone, were each to return two members. But the most important part of the new constitution was as follows:—The cities, boroughs, and counties which were to send members, and the number of members to be elected being ascertained, the existing right of franchise in them all was to be altered, and a new franchise introduced, extending equally to those which remained untouched, with the declared purpose of increasing the number of electors, and of having but one uniform election throughout the empire. The elective franchise was to be extended to all persons paying a rent of ten pounds per annum, whether they occupied the premises or not; copyholders, whose property was of the same yearly value, and all householders to an equal amount, were to be electors for counties; all holders of leases for twenty-one years, which had not been renewed within two years, were to have the privilege of voting in towns; and all leaseholders for twenty years of property worth fifty pounds per annum, were to vote for counties. Existing resident electors were not to be deprived of their right during their lifetime; but no non-resident elector was to be allowed to retain his franchise. Finally, no alteration was to be made in regard to the forty-shilling freeholders. The new constituency being thus formed, Lord John Russell explained the ministerial plan regarding the actual election. All voters were to be duly registered; and in order to diminish the expense of elections, as well as opportunities for bribery, drunkenness, and corruption, the duration of the poll was to be diminished; that for counties was to be taken simultaneously at different places. Such was the general outline of the reform bill, in so far as England was concerned. The only alteration in Wales, was to consist in adding unrepresented towns to those which already sent members: for instance, Holyhead was to be united with Beaumaris, and Bangor to Carnarvon. A new district of boroughs was to be erected, consisting of Swansea, Cambridge, Langhorn, and

three other places, which should have the privilege of sending one member to parliament; the only additional one proposed to be added to the representation of Wales. In Scotland the existing county franchise, which depended on a mere feudal right of superiority over lauds belonging to others, was to be annihilated; the election of members for boroughs was to be taken from the town-councils, and vested in the citizens at large; and the new English franchise was to be introduced, both in counties and in boroughs. Every resident owner of land or houses worth ten pounds per annum, and every tenant under a written lease for nineteen years or upwards, paying fifty pounds a year, was to have a vote in county elections; and in towns the franchise was to attach to the occupancy of a dwelling-house, rented at ten pounds per annum. To some of the large towns, which hitherto had elected only in conjunction with others, as Glasgow and Aberdeen, separate or new members were to be conferred; while the Fife district of burghs was annihilated and thrown into the county; and some counties were conjoined. In the whole, Scotland was to have fifty members instead of forty-five. In Ireland the principal alterations were to be the introduction of the ten pounds' qualification; and that in towns the franchise should be taken out of the hands of the corporations, and given to the duly qualified citizens: Belfast was to return one member, and Limerick and Waterford two each, thus adding three to the existing members for Ireland. The general result of the whole measure, Lord John Russell said, would be to create a new constituency of about 500,000 persons; the increase in counties would be about 100,000; that in towns already represented, about 110,000; in new boroughs 50,000; in Scotland 60,000; and in Ireland, perhaps, 40,000. This numerous body, he said, was connected with property, and possessed a valuable stake in the country; and upon this body it would depend, if any future struggle should arise, to support parliament and the throne in carrying that struggle to a successful termination. The probability of this franchise, he continued, would be an inducement to good conduct; for when a man found that by being rated at a certain rent, and by paying rates, he became entitled to vote in the election of members of that house, he would feel an inducement to be careful, frugal, and punctual in all his dealings, to preserve his character amongst his neighbours, and the place which he might hold in society. This large increase of the constituency would provide for the political and moral improvement of the people. It was true, he said, that the arrangements which he had detailed would diminish the total number of members in the house; but that would not be a disadvantage. There would be an absolute diminution in the whole of sixty-two, which diminution was inflicted exclusively upon England; but it was the opinion of ministers that this reduction would enable the house to transact business more effectually and conveniently. After accounting for two omissions, which might be brought as charges against him—namely, that no provision was made for shortening the duration of parliaments, or for introducing the vote by ballot—his lordship concluded by requesting leave to bring in a bill to amend the representation of the people in England and Wales.

This motion brought on a debate which lasted seven nights, and elicited opinions from between seventy and eighty members. This debate would of itself form a volume, and therefore only a brief outline can be given of it in these pages. Sir Robert Inglis admitted that there was excitement and expectation among the people; but he

argued that the origin of it was to be found in the events which had occurred in France and Belgium, and that, if government would oppose instead of fomenting it, it would soon pass away. Mr. Horace Twiss took the same view of the question. Lord Althorp denied the validity of the grounds of opposition relied upon by the previous speakers, and, in terms nearly identical with those used by Lord John Russell, advocated the measure. Mr. Hume declared that, radical reformer as he was, the plan proposed had exceeded his anticipations. Mr. Baring Wall and Lord Stormont used the usual arguments against the bill; Lord Newark trimmed between its opponents and supporters; and Mr. Macaulay advocated it on the strange grounds that, being opposed to universal suffrage and revolutionary measures, he felt constrained to adopt this proposal. Mr. Hunt, the radical member for Preston, and Lord Morpeth, strenuously supported the motion, and Sir Charles Wetherell most bitterly and vehemently denounced it. The baronet's speech was one of the most eccentric pieces of vituperative declamation ever delivered within the walls of parliament. He nicknamed the bill "Russell's purge!" which afforded much amusement to honourable and right honourable gentlemen on his side of the house, and was taken up out of doors, the party throughout the country using it as if it were expressive of something which ought to be considered very fatal to the measure. Mr. Hobhouse replied with smartness to Sir Charles, aptly quoting Hume's History of England for illustrations of his arguments. This speech was effective on the ministerial side. Mr. Baring made a heavy speech, which fell flatly on the house, and was replied to by Lord Palmerston, who, in a most statesman-like oration, reviewed the whole question, defended the motives of ministers, and exposed the fallacy and folly of the arguments on the anti-ministerial, side. This speech produced a most damaging effect upon the opposition. Sir Robert Peel revived the hopes of the latter by one of his most studied speeches. It was, however, defective in temper, and although received with cheers by the opposition, failed to convince any one that reform was either the unjust or dangerous thing which he represented it. The speech was specious, sophistical and acrimonious; its effect upon the country was to strengthen the public prejudice against the anti-reformers. The Hon. Mr. Stanley, secretary for Ireland, made his reply to Sir Robert effective by illustrations drawn from the condition and wants of Ireland, its yearnings for freedom, and the restrictions which were laid upon the franchise. Mr. Croker made one of those speeches which proved nothing but the impolicy of the speaker. The bill was supported by Lords Dudley Stuart and Howick, Sir J. Johnston, and Messrs. Russell, Wood, Tennyson, and Long Wellesley. It was opposed by Colonels Sibthorp and Tyrrell, Sir George Clerk, Sir George Warrender, and Mr. William Peel, who merely repeated Sir Robert Peel in an ineffective manner. Mr. O'Connell delivered a persuasive and eloquent oration in favour of the immediate adoption of the bill, and intimated that there was danger of insurrection in Ireland if that country were left any longer without reform. Sir James Graham spoke well on the same side, especially in reply to certain unguarded statements of Mr. Croker. Lord John Russell replied, and the motion for leave to bring in the bill, as well as those for Scotland and Ireland, was not resisted. The bill itself was not brought in till the 14th—a delay which gave occasion to some members of the opposition to express their surprise that a plan which ministers were stated to have so long carefully pondered and concocted, and which had already been amply discussed, should be in

so incomplete a state as to be unfit to be presented to parliament. On the 14th, however, the bill, in which one or two alterations and corrections had been made, was brought in, and read a first time without opposition. It was not known why the opponents of the bill allowed the contest to terminate without a division, but it appears to have arisen from the fact that they did not form a combined body, and that they had no regular plan of party operations. Ministers subsequently admitted that if a division had taken place they would have been left in a minority; but the opposition reserved themselves for the second reading—a stage at which, according to the forms of the house, the fate of the principle of a bill is usually decided.

DEBATE ON THE MOTION THAT THE BILL BE READ A SECOND TIME, ETC.

From the moment that the general outlines of the plan of reform proposed by ministers had been discussed in parliament, public excitement daily increased. The bill contained few of those changes for which violent reformers had long clamoured; yet these persons professed to receive it with joy. The secret of their conduct was easy to be understood; for though the bill gave less than they wished or demanded, it granted more than they had expected. They were told, moreover, by their leaders, whose hopes lay in the future, that as ministers had determined to go no further, all would be lost unless government were strenuously supported by those who conceived a change desirable. From these causes they agreed to forget the defects of the bill, and to be silent regarding the ballot, universal suffrage, and annual parliaments. The ministerial measure became their standard; “the bill, the whole bill, and nothing but the bill,” became their watchword; and ministers were invested for a time with a species of infallibility. No part of their measure was wrong, and their conduct was not to be questioned. The manufacturers of petitions again set to work; and the same places which had petitioned a month before for much more, now prayed that the bill might pass untouched and unimpaired. Men, in fact, who had craved reduction of taxation and retrenchment of expenditure—who had desired a more democratic house of commons as the only means of securing those good objects, now conjured the house to enact a measure of which even its patrons declared that it would neither reduce taxation or expenses. The number of petitions was large, but the majority of the names attached to them were from the lowest classes of society, to whom ministers had declared no power could be given. But all this petitioning, though regular, constitutional, and powerful, did not promise to be effective. Ministers had threatened convulsions as the consequences of refusing the bill, and the reformers resolved to support them by opinions which indicated its approach, and exhibitions of mob force which might be used as its means. Language of an intimidating nature was constantly used at their assemblies, and in petitions, against all who should dare to oppose the bill, which intimidation served the purposes of the reformers in two ways: on the one hand, many who were averse to the violent changes proposed were driven into acquiescence from the apprehension that resistance would produce confusion; and on the other hand, those who would actively have resisted the change were overawed from any public expression of their sentiments. The menaces of the reformers were even accompanied with a display of the means of executing them. Everywhere the political unions boasted of the numbers they could bring into the field. Ten thousand men, said Colonel Evans at a reform meeting held in London, are

ready to march hither from Beigate to support his majesty's ministers if they should be defeated; and the chairman of the Birmingham union openly declared that it could supply two armies, each of them as numerous and brave as that which had conquered at Waterloo, if the king and his ministers required them in the contest with the boroughmongers. Nor was the press idle in this critical state of affairs; that daily supplied the fuel by which the excitement was kept up, preaching, in some instances, doctrines subversive of all order and government. Individuals who distinguished themselves in opposing the change were attacked with every species of calumny that enmity could invent; the property of the church and the rights of the peerage were held out as illegally amassed treasures, which the people, in the exercise of their rights, would soon have the pleasure of pillaging; and pretended lists of the names of pensioners and placemen were circulated, in which were to be found the names of men who had never received one farthing from the purse of the state. Even parliament itself was the object of incessant and absurd attack, and privilege seemed no longer to exist.

Such was the state of the public mind when, on the 21st of March, the second reading of the bill was moved. The debate lasted only two days. It was commenced by Sir R. Vyvyan, one of the members for Cornwall, who moved that the bill should be read that day six months. He declared that the bill affected no interests of his own, but it was a measure full of danger to the institutions of the kingdom, and which, therefore, his conscience bound him to oppose. The motion was seconded by Mr. Cartwright, who stated that Mr. Hume had actually written to the radical reformers of Glasgow, entreating them not to say a word about the ballot. Mr. Sheil, an Irish agitator, repeated the usual arguments in favour of the bill, dwelling at great length on the disfranchisement of the Irish boroughs at the time of the union, and the later disfranchisement of the Irish forty-shilling freeholders, as justifying in principle everything that was now proposed. He treated as ridiculous the idea that the bill could be dangerous either to the crown or to the aristocracy. There was variance between the logic of the non-reformers and their sarcasms. The syllogisms were overthrown by their satire, and their arguments evaporated in their vituperation. This bill would wrench despotism from oligarchy, but it would not touch the legitimate influence of property, and birth, and station, and all the other circumstances which create a title to respect. It would take power from individuals, and give it to a class; it would cut off the secret and subterraneous conduit-pipes through which aristocratic influence was now conveyed to that house, and would make it flow in a broad, open, constitutional, and natural channel. Mr. Charles Grant followed on the same side. The solicitor-general said that the whole argument against the bill seemed to proceed on the assumption that there was something in the British constitution inconsistent with change, and that to make an alteration would be to effect its destruction. The history of this country, however, and its institutions, showed that there had been an almost uninterrupted series of conflicts between the principle of democracy and despotism, with alternations of success, and the inevitable consequences of that, a system of perpetual change. The present bill, therefore, was in every point of view in perfect harmony with the whole current of our legislation. In six years after the Revolution, he said, the triennial act was passed, distinctly admitting on the part of the

legislature of that period that the Revolution was not a settlement to be permanently unchangeable. Neither was the triennial act itself treated with undeviating respect, for, in the year 1715, its repeal was sanctioned by some of the very men who had brought about the Revolution; then the septennial act was passed, and another great change effected in the constitution of parliament. Did any one at that period hold that the septennial bill was a revolutionary measure? So far from any such character being imputed to it, the measure had always been treated as one within the constitution of parliament to enact. Sir Edward Sugden complained that the solicitor-general had gone back to the bill of rights, instead of attempting to explain and justify this bill of wrongs. It was perfectly true that the septennial act did not spring from the Revolution; it was brought in by Whig ministers for the same purpose for which the present bill was brought in by Whig ministers—as the only means by which they could retain their places. Mr. Pendarvis warmly supported the bill; and Mr. Cavendish declared his intention of voting for it, although his constituents at Cambridge had petitioned against it; many of them, he said, were not hostile to the whole measure, but objected to the new qualification as being too low. Mr. Ward, on the other hand, opposed it in opposition to his constituents in the city of London, who had petitioned in favour of the bill. He had passed the earlier years of his life, he said, principally in two close boroughs; and among the representatives of those had been, during his remembrance, Messrs. Fox, Pitt, Canning, Perceval, the noble lord at present at the head of foreign affairs, and the Duke of Wellington. Such had been the representatives of those close boroughs, and he much doubted if by a reformed system more able members would be introduced into that house. Again, when he first entered that house he had looked at both sides to see who were the most influential members, and he saw on the ministerial side Messrs. Canning and Huskisson, and on the opposition side Mr. Tierney, Sir James Mackintosh, and the present lord-chancellor (then Mr. Brougham), all of whom had either been, or were at the present time, members for close boroughs. Such was the case, and it would be fortunate if large and populous places always found and returned men of such abilities. On the other hand, during his experience but three members had been called to account by that house in consequence of their conduct, and all these three members were the representatives of large and populous places. Mr. Calcraft, paymaster of the forces under the late administration, who had expressed his unqualified disapprobation of the bill, startled the house by declaring that he intended to vote for the second reading. At length the house divided on Sir B. Vyvyan’s motion, when there appeared for the amendment three hundred and one against three hundred and two, thus leaving Lord John Eussell a majority of only one in an assembly of more than six hundred members. This division was, indeed, in substance, a defeat of ministers, although the mob celebrated it as a victory by illuminations, and by venting its vengeance on the houses of all who would not join in the triumph. Ministers, however, could not labour under such a delusion, although they still resolved to try their fortunes in a committee. That committee was delayed till the 18th of April, and in the meantime the bill was brought in for Ireland.

The bill for amending the representation of Ireland was brought in by Mr. Stanley, the Irish secretary, on the 24th of March. In explaining the bill, he said, in the first

place, that the right of voting for comities would be left to freeholders, as they already stood; but that leaseholders of fifty pounds a year, under leases of twenty years, would be added to them. Clergymen likewise were to vote, if they were freeholders to the extent of fifty pounds; and householders who occupied a house let at the yearly rent of ten pounds per annum. The machinery of the bill was to be nearly the same with that proposed for England; and the necessary result of the measure would be to take the franchise out. of the hands of the corporations, who had hitherto monopolised it; and Mr. Stanley thought that no one could deny its propriety. The English bill, he said, in continuation, made no change in the election of the members for the universities; but an alteration was to be made in regard to the University of Dublin. In future it was to return two members instead of one; and the number of electors was to be increased by bringing back the right of voting to what it had originally been. At Oxford and Cambridge the masters of arts had always voted; but in Dublin, a subsequent charter having excluded scholars from receiving their _stipendia_ after the expiry of the five years, it had been held by a forced construction that they lost their right to vote for the university-member after the same period, though they still continued to be scholars. The present bill would restore the original right, by extending their academic franchise to all persons who at any time had been scholars of the university, provided they placed their names on the books, as claimants of the right, within six months after the passing of the act. Mr. O'Connell admitted that the bill would prove a great boon to Ireland, and would produce an effective constituency; but there were parts of it which he hoped would be altered. In the first place, he thought that a greater number of members ought to be given to Ireland. He objected, likewise, to the arrangement concerning the university, because it still left to the franchise an exclusive character; no Roman Catholic could vote there, because he could not become a scholar of a Protestant university; scholarships, therefore, ought to be thrown open to all classes of the community. Nor did the Irish counties receive justice. Many counties in England, because their population extended to 200,000, were to receive two members each, while in Ireland there were twelve counties, with a population above that point, whose representation was not to be increased. In reply to the demand for opening the university-scholarships to Catholics, and making all masters of arts voters, the Irish solicitor-general announced that the charter did not allow it. At Oxford and Cambridge the charters gave the rights to the masters, but at Dublin it was only given to the fellows and scholars, and it was the principle of the bill to preserve vested rights and settled institutions, as far as could be done consistently with an efficient reform. Mr. Bankes, and Sir C. Wetherell, and Mr. Hardinge, argued, that the giving of additional members to Ireland, as well as Scotland, was unjust towards England, and inconsistent with the fundamental principles of the two legislative unions. They also complained of the effects which the bill would inevitably produce upon the Protestants of Ireland. If the bill passed, it would be impossible, they said, for an Irish Protestant to be returned to parliament, unless two-thirds of the Catholic population chose to vote for him. It would be a virtual exclusion of all Protestants from the representation of Ireland; not one would be elected unless he became an agitator, pledged himself to all that was demanded, and basely pandered to the passions and views of the Catholic electors. The chancellor of the exchequer, in reply to these objections, stated that the bill did

not interfere with the unions, any more than the union with Ireland had violated the union with Scotland; and that as to the different circumstances in which Irish Protestants might find themselves, he and his colleagues entertained no apprehensions of their opponents being able successfully to raise against them a no-popery cry; the public mind was too enlightened to be affected by such idle clamours. The bill was allowed to be read a first time; and the second reading was fixed for the 18th of April.

When the house met, on the 12th of April, after the Easter recess, Lord John Eussell communicated certain alterations which it had been found necessary to make in the schedules of boroughs to be disfranchised, in consequence of inaccuracies discovered in the population returns of 1821, on which the whole plan had been founded. Lord John Russell also declared that, although ministers had not changed their opinion regarding the propriety of reducing the numbers of the house, and would try to carry that clause in the bill, still “they were not prepared to say that this was a question of such essential and vital importance, that, if the feelings of the house were strongly shown in a desire to keep up the present number, they might not be induced to relax their determination on that point. If it should appear to be the sense of the house that the whole number of six hundred and fifty-eight members should be retained, the government would not feel that they were altering a vital or essential part of the measure by agreeing to that proposition.” On the following day Mr. Stanley, when adverting to the same topic, to prevent any misconception that ministers, though they might consent to retain the numbers, would leave them to the boroughs, stated, that they were determined to adhere in all circumstances to the disfranchisement of every borough whose population did not reach a particular standard, and the partial disfranchisement of every borough falling beneath a certain other standard; the number of members to be added should be given to such populous towns as might be considered in that event to have a fair claim to representation.

On the 18th of April, Lord John Russell moved that the house should resolve itself into a committee on the reform bill. In doing so he stated the alterations which had been recently made in it by ministers. According to his statement, it appeared that five boroughs had been transferred from schedule A to schedule B, and allowed to retain one member, and that seven of those in schedule B were allowed to retain their two members, in consequence of its having been ascertained that the population returns had not accurately represented the number of inhabitants. On the other hand members were to be added to the following counties: namely, Bucks, Berks, Cambridge, Dorset, Hereford, Hertford, Oxford, and Glamorgan. Members were also to be added to the following towns: namely, Oldham, Buly, Bochdale, Whitby, Wakefield, Salford, and Stoke-on-Trent: Halifax was restricted to the township, and to return only one member, the parish being twenty-five miles in extent. Sons of freemen entitled to the privilege of freemen, and apprentices having entered into indentures in the same manner, were to retain their franchise on taking out their freedom, being resident, and registered under the provisions of the bill. General Gaseoyne moved as an instruction to be given to the committee, “That it is the opinion of this house, that the total number of knights, citizens, and burgesses

returned to parliament for that part of the United Kingdom called England and Wales, ought not to be diminished." This motion was designed to get rid of the bill altogether, and it produced a violent and contentious debate. Mr. Sadler, who seconded it, delivered a long, argumentative, and learned speech against the general principles of the whole plan of reform. He was followed by the chancellor of the exchequer, who declared that he was quite sure that the amendment was put with a view of destroying the bill. It was impossible to misunderstand it: it was the first of that series of motions by which it was intended to interfere with the progress of the committee, and which, if agreed to, would be fatal to the bill. The debate was adjourned till the next day. On that occasion, of the members who opposed it, some did not see how an agreement to the amendment could be considered hostile to the principle of the bill, even if it were carried; and not one, except ministers themselves, pretended it would be a good reason for abandoning the whole bill. Mr. Bulwer, for instance, thought that this question regarding the number of members would make no difference in the general character of the measure, and Mr. J. Campbell hoped that the bill would go on, though the amendment should be carried. Mr. Wynn, who had resigned office because he was opposed to the bill, also thought that this motion was not of much consequence one way or the other. Sir George Warrington, though opposed to the bill, would resist the amendment, on the idea that the effect of it would be, if the bill went on, to prevent the giving of additional members to Scotland. Sir George Clerk said, that he, also, would vote against it if he anticipated any such results; but he saw no reason that it should be so. Sir Robert Wilson, one of the most zealous of all the reformers, expressed great surprise at the view which ministers, after all that had passed, chose to take of this amendment. In voting for it he was not voting against increasing the representation of either Scotland or Ireland, nor did he believe that the fate of the bill depended in the slightest degree on the success or the failure of the present motion. Mr. Stanley, however, declared that this discussion would decide the fate of the bill. The amendment, he said, was concocted in a spirit of hostility to the bill, and brought forward to embarrass ministers. He warned those honourable members, who, while they professed themselves friendly to reform, supported this amendment, that it would decide the fate of the bill, and that by their votes on this occasion they would be judged by their constituents and by the country. In giving their votes, he added, they would either vote for or against the carrying of that question, for the carrying of which, if now lost, an opportunity so favourable might not soon again return, and that the result of that night's division would be, either to carry that great question, or to defeat the hopes of the people of this country. Sir James Graham, on the same side, remarked that he did not say if this amendment was carried, ministers would abandon the bill; but he did say, that if it should be, it would be a matter of very grave consideration, whether the bill would be so impugned, that they ought not to attempt to carry it through its other stages. General Gaseoyne expressed his surprise at being told that the motion he had made for keeping the sixty-two members was inconsistent with the essence and principles of the bill. If I understood the noble lord who brought in the bill, right, in a conversation which I had with him only yesterday, he distinctly admitted to me that my amendment would not touch the principle of the bill. Lord John Russell replied that the amendment now moved was a different one to that to which General

Gaseoyne alluded: and thus ended this debate. On a division, the amendment was carried by two hundred and ninety-nine against two hundred and ninety-one, being a majority of eight against ministers.

MOTION OF ADJOURNMENT PENDING THE ORDNANCE ESTIMATES CARRIED AGAINST MINISTERS—PROROGATION AND DISSOLUTION OF PARLIAMENT.

{WILLIAM IV. 1831—1832}

It has been seen that ministers looked at the amendment of General Gaseoyne as one likely to destroy the bill of reform which they had introduced into parliament. It was evident from the beginning that a majority of the present house could not be relied on by its supporters. Ministers, however, did not seem at first determined to have recourse to a dissolution. On the 20th, nothing transpired except that Mr. Hume declared that he would offer no opposition to the ordnance estimates, because, after the vote of last night, he was anxious to assist ministers in getting through the necessary business, in order that a dissolution might take place. On the following day, Lord Wharncliffe, in the upper house, asked Earl Grey whether ministers had advised his majesty to dissolve parliament, and whether it had been resolved that that course should be adopted. Earl Grey declined answering the question; and his interrogator then gave notice that he would next day move an address to the king, praying that his majesty would be graciously pleased not to exercise his prerogative of dissolving parliament. The same question was put in the commons by Sir R. Vyvyan, and Lord Althorp replied, that it was not his duty to answer the question. The discussion on the propriety of a dissolution was continued till the morning of the 22nd, and an adjournment on the ordnance estimates was then moved till the next sitting. This was strenuously resisted by the chancellor of the exchequer, on the ground that the topic which had occupied so much time was not a question before the house; and that he wished to get on with the report of the committee of supply on the ordnance estimates. On a division, however, ministers were left in a minority of twenty-two. It was clear from this that ministers had more to decide on than the reform question, and that they had to straggle not merely for their bill, but their places. On the next day, therefore, they resolved to dissolve parliament.

When the house met on the 22nd, the presentation of a petition connected with parliamentary reform furnished occasion in the commons for another discussion on that subject. Sir R. Vyvyan inveighed strongly against the desperation with which ministers were believed to be urging on a dissolution in the present state of the country. He was called to order by Sir Francis Burdett; but the speaker declared that Sir B. Vyvyan was not out of order. A scene of indescribable confusion ensued, in which the authority of the speaker was for some time set aside. At length Sir B. Peel was enabled to address the house. He referred to the scene which had been exhibited, and made a disingenuous use of it, declaring that it was a specimen of what might be expected in a reformed house of commons, whereas the disturbance was created by those who were desirous, _per fas et nefas_, to obstruct the measure before the house. Sir Robert, in a strain of unhappy invective, reiterated his previous denunciations of all reform.

Sir Robert was interrupted by the sergeant-at-arms, who knocked at the door, and the usher of the black rod, who suddenly appeared to summons the speaker and the members, to the house of peers, to hear the prorogation of parliament.

In the upper house proceedings had been of a similar nature to those in the commons. Lord Wharncliffe had scarcely risen to move for an address to his majesty against the dissolution, when the Duke of Richmond rose to complain that all the peers were not sitting in their proper places, as usual on such occasions. This gave rise to a scene of noise and confusion, in which one noble lord was heard to say that ministers were taking the crown off the king's head. Lord Wharncliffe, being at length allowed to proceed, stated that, without wishing to provoke discussion on the subject, he was anxious that it should be entered on the journals of the house, that he in his place yesterday did give notice that he would move an humble address to his majesty not to exercise his undoubted prerogative of dissolving parliament. His lordship then made a motion to that effect. The lord-chancellor said, that he had never yet heard it doubted that the king possessed the prerogative of dissolving parliament at pleasure; still less had he ever known a doubt to exist on the subject at a moment when the lower house has thought fit to refuse the supplies. The near approach of his majesty was now announced, and Lord Shaftesbury was called to the chair amid discordant noises which it was difficult for him to subdue. Lord Mansfield addressed the house, but was interrupted in his speech by the entrance of the king, and the house of commons having been summoned, his majesty prorogued parliament in these words:—"My lords and gentlemen,—I have come to meet you for the purpose of proroguing this parliament with a view to its dissolution. I have been induced to resort to this measure for the purpose of ascertaining the sense of my people, in the way in which it can be most constitutionally and authentically expressed, on the expediency of making such changes in the representation as circumstances may appear to require, and which, founded upon the acknowledged principles of the constitution, may tend at once to uphold the just rights and prerogatives of the crown, and to give security to the liberties of the people." Parliament was prorogued to the 10th of May, and a proclamation appeared the next day announcing its dissolution, and directing a new election, the writs of which were made returnable on the 14th of June.

The dissolution of parliament was hailed by the people with great joy. Illuminations were got up on every hand. That in London was authorised by the lord-mayor; and the consequence was that, in the west end of the town, the rabble vented their fury on the houses of all those members of parliament who had expressed sentiments unfavourable to the bill, and in whose windows no candles were placed. Many people, doubtless, illuminated their houses lest they should become obnoxious to the mob; yet these illuminations were made use of by the reformers to keep up their incessant cry, that the inhabitants of the country, from one end to the other, were animated by one universal feeling of enthusiasm for the reform bill, and for the act which got rid of a parliament that refused it. It has been well remarked that, in political disputes, to place candles in windows is no proof of political opinion, or of anything else than a prudent desire to avoid the outrages of a mob.

THE BUDGET—PROPOSED CHANGES IN TAXES, ETC.—ARRANGEMENT OF THE CIVIL LIST.

The other business of this session related chiefly to financial matters. The budget was opened on the 11th of February by Lord Althorp, who estimated the charge for the year at £46,850,000; while the revenue, on account of the many taxes repealed, would yield only £47,150,000, and thus give an excess over the charge of only about £300,000. This, he said, did not afford much room for the reduction of taxation; but still he thought that something might be done, especially by reducing those imposts which pressed on the industry of the country; by relieving trade from fiscal embarrassments; and by introducing, in many cases, a more equal distribution of taxes. Lord Althorp avowed that he had taken his principles and general views from Sir Henry Parnell's work entitled "Financial Reform." He divided the taxes into three classes:—first, taxes on commodities of which there would be an increased consumption and revenue; secondly, taxes which, instead of being equally and impartially distributed amongst all classes, pressed more severely on one part of the community; and thirdly, those taxes which, besides interfering with commerce, took more out of the pockets of the people than was furnished to the revenue. Under the first head, his lordship explained that he intended to reduce the duty on tobacco, and on newspapers, stamps, and advertisements; under the second, that of sea-borne coal, which he proposed to repeal altogether; and under the third, the duties on tallow and candles, calicoes, glass, &c. The estimated loss of the reductions in the whole was £3,170,000, a reduction which the revenue could not sustain. The next point was, therefore, how to make good this loss without imposing an equal burthen on the people. Lord Althorp proposed to equalise the duties on foreign wines, and foreign European timber and exported coals; and to place duties on cotton, steam-boats, and the _bona fide_ sale or transfer of landed property. The estimated revenue from these sources was £2,740,000; while on the other hand, the amount of taxes repealed or reduced was £4,080,000; so that the country gained £1,340,000, while it was stated the public services would not suffer. This financial project of Lord Althorp was vehemently attacked by all parties in the house. The experiment, it was said, was a dangerous one, and the probability was, that it would be necessary to raise by exchequer-bills a sum to meet the charges of the year; thus gratifying the country for a time by an apparent relief from taxation, only to produce the necessity of afterwards imposing heavier taxes on the people. The experiment was represented as the less justifiable, as not one shilling was included in the budget as being applicable to the diminution of the national debt. It was always believed by some that the budget was not one of reduction, but of mere transposition. Some taxes were reduced, but others were imposed to make up the loss. At all events, it was said, the budget was merely a pretext of doing something, while in truth it did nothing, or did mischief. An attack was especially made on the tax proposed on transfers in the public funds, and Lord Althorp was induced to abandon it. Ministers were also defeated on a division in regard to a proposed diminution of duties on Baltic timber, and an augmentation of those grown in Canada. The tax on steam-boat passengers was likewise abandoned, and an increased duty on our colonial wines, which his lordship consented to reduce. Finally, the proposed duty on the importation of raw

cotton was reduced, and the whole affair produced a strong impression of the practical inefficiency of the government. Under any other circumstances, indeed, ministers could not survive the defeats they had experienced; but the anchor of reform saved the ship in which they had embarked, albeit it was a crazy one, from foundering in the sea of politics.

Ministers were not more skilful in the arrangements of the civil list. The late ministry had gone out of office after a vote by which the house of commons declared its opinion that the civil list should be referred to a select committee. When these arrangements were considered, it appeared that the most material changes made after the abolition of certain offices, were the reduction of the pension list in future to the sum of £75,000 per annum, and the subtraction of £460,000 from the civil list, to be placed under the control of parliament. On hearing the statements of the chancellor of the exchequer, the members of the late government expressed their satisfaction that the present ministers, so loud against expenditure when out of office, and pledged to retrenchment when they came in, had been driven to acknowledge that they found it impossible to carry economy further, in the matter of the civil list, than had been done by their predecessors. The new estimate, they said, was identically the same with the former, except as to the principle, whether a certain portion of the amount should be kept constantly under the control of parliament. The system of retrenchment proposed was by no means satisfactory to Messrs. Hume, Hunt, and others of the radical school. Ministers, they said, had not adhered to their promises of retrenchment in framing the estimates, especially in regard to the pensions. It was of no use to tell the people that most of these pensions were charitable; charity begins at home; and the house was bound to be just to the people before being generous to poor peers, or the poor relations of wealthy peers. Another point on which ministers had to encounter stern opposition from their old allies, was a proposal which they made for an increase in the army of 7680 men. No opposition, however, was offered to a resolution moved in consequence of a royal message, assigning to the queen, in case she should survive his majesty, £100,000 per annum, with Marlborough House and Bushy Park as town and country residences.

GENERAL ELECTION.

The election of the new parliament took place in the midst of general excitement. This was very auspicious for the ministry. The declared intention of the dissolution had been to obtain from the people a house of commons pledged to support the reform bill. The only test by which candidates were tried, was their determination to support that measure. Nor was it sufficient to save a candidate from the storm which raged all over the country, that he should be willing to reform the representation. It was demanded of him that he should support the particular measure which the ministry had proposed. It was to be “the bill, the whole bill, and nothing but the bill.” Candidates who had long represented places were told by the electors that they could no longer vote for them, not because they were against the bill, but that they were against the king; they did not know much about it, but it was the king’s, and it must pass. The official influence of the ministry was put forth unsparingly and

unblushingly. In some instances, indeed, it defeated its own object. Thus, in Ireland, two pledged supporters of the bill were elected for the city of Dublin. The losing candidates petitioned against the return, and it came out in the proceedings before the committee, that the vice-regal government had interfered directly to ensure the success of the sitting members. The consequence of this was that the committee found the sitting members were not duly elected; and, on a new election, two members were returned who were hostile to reform. The tumult and license which usually characterise a general election were more than ordinarily rampant and intolerant. Anti-bill candidates and their supporters were exposed to the most lawless violence wherever they dared to show themselves on the hustings, and were denounced on the one hand as oppressors of the people, and on the other as disloyal opponents of the people. In some instances the life, as well as the property of unpopular men was sacrificed; and in Scotland especially, the elections were controlled by the violence of riotous mobs. At the election for the county of Lanark, the late member was attacked with stones and missiles, from the gallery of the church in which the election took place; and when he was re-elected, those who voted for him were detained prisoners for some hours, until the military arrived to shield them from lawless violence. At Dumbarton, also, the successful candidate for the county was obliged to conceal himself in a garret, till the mob, believing he had escaped, dispersed. From the excitement and violence which everywhere prevailed, it was not surprising that the great majority of the elections terminated in favour of the reforming candidates. Out of the eighty-two county members for England, with the exception of about twelve, all were pledged to support the bill. Ministers, indeed, completely succeeded in obtaining a house of commons fashioned after their own mind: the great majority of the members were pledged to implicit obedience to the will of the people.

MEETING OF PARLIAMENT—THE REFORM QUESTION RENEWED IN PARLIAMENT.

Parliament met on the 14th of June; being opened by commission till the preliminary forms necessary to be gone through in the house of commons should have been completed. On the 21st. after Mr. Manners Sutton had been re-elected speaker without opposition, and all the members were sworn in, his majesty opened the session in person. In his speech his majesty remarked: “I have availed myself of the earliest opportunity of resorting to your advice and assistance, after the dissolution of the late parliament. Having had recourse to that measure for the purpose of ascertaining the sense of my people on the expediency of a reform in the representation, I have now to recommend that important question to your earliest and most attentive consideration; confident that in any measures which you may propose for its adjustment, you will carefully adhere to the acknowledged principles of the constitution, by which the prerogative of the crown, the authority of both houses of parliament, and the rights and liberties of the people are equally secured.” No amendment was proposed to the address in the upper house. The discussion chiefly turned on the dissolution of parliament, the inattention of government to the security of property during the London illuminations, and the arts used to inflame the public mind during the election. The same topics were also discussed in the

commons, and the address was carried there without opposition.

The house of commons having been elected for the purpose of passing a measure of reform, no time was lost in bringing it forward. Lord John Russell moved for leave to bring in a bill to amend the representation of England on the 24th of June. No debate took place on this occasion: Sir R. Peel having stated that he did not wish to divide the house on the first reading, or to have a long debate without a division. At his suggestion the second reading was postponed from the 30th of June to the 4th of July. In the meantime the Irish and Scotch bills were brought in and read the first time: the former on the 30th of June, and the latter on the 1st of July. On the appointed day for the second reading of the English reform bill an animated debate took place. Sir John Walsh moved that the bill should be read that day six months. The debate which followed this amendment continued three nights; and it consisted chiefly of a repetition of the views, arguments, and anticipations which had been brought out at such great length in the former parliament. Ministers and their supporters, however, found new matter for triumph in the evidence with which the general election had furnished them, that the people were generally for reform. All doubt or hesitation was at an end: the voice of the people had decided, not merely that there must be reform, but that it must be that kind of reform contained in the ministerial bill. This voice had been pronounced unanimously, for the returns from close boroughs and particular counties could not be taken into account in estimating the will and the wishes of those who formed the people. The opposition on the other hand contended, that the argument drawn from the mere fact of a popular clamour having been raised in favour of this measure, was fit only for legislators who had been invested with that character on no other terms than those of pledging themselves to discharge the humble duty of delegates, and not to act according to any opinions which they might form on the measures proposed by government. No man, it was said, could deny the violent excitement which had taken place, and few would maintain that large bodies of electors were the fittest persons for deciding on the merits of so complicated and delicate a question; and every man must concede, that least of all could the decision of such assemblages be regarded when made under the influence of agitation, sedulously cherished by false pretexts, and supported by groundless anticipations. Nor could the returns, it was argued, be considered as manifesting the opinion of the country on this plan of reform. They had been influenced, it was said, by considerations not connected with the merits of the proposition; and by identifying it with consequences, to which even its most rational and candid friends admitted that it never would lead. It was asked, Where had been the unanimity in favour of reform before the promulgation of the present measure, and the triumphs of the democracy of France? How little ministers could trust to reason and calmness among the people, and how much they reckoned on everything that was the reverse, was clear from the delicacy and respect with which they treated bodies that ought to have been unknown to them as a government, except for the purpose of checking their pretensions. Ministers had resolved not to intrust ten-pound voters who paid weekly; and this having displeased the Birmingham Political Union, they addressed a letter to the prime-minister on the subject, and that noble lord honoured them with the most friendly recognition. The speech of Mr.

Macaulay, a nominee of Lord Lansdowne for the borough of Calne, in favour of the bill, elicited much applause. He remarked:—“The country and their children for ages to come will call this the second bill of rights; the greater charter of the liberties of England. I believe that the year 1831 is destined to exhibit to mankind the first example of a great, complicated, and deeply-rooted system of abuses removed without violence, bloodshed, and rapine; all forms observed, the fruits of industry not destroyed, and the authority of the law not suspended. These are things which may well make Englishmen proud of the age and country in which they live. These are things which may make them look forward to a long series of tranquil and happy years, during which nothing will disturb the concord of a popular government and a loyal people; of years in which, if war should be inevitable, it will find the people a united nation: of years pre-eminently distinguished by the mitigation of public burdens, by the prosperity of industry, by the reformation of jurisprudence, and by all the victories of peace: in which, far more than in military triumphs, consist the true prosperity of states and the glory of statesmen. It is with such feelings and hopes that I give my most cordial assent to this measure of reform, a measure which, in itself, I think desirable, but which in the present temper of the public mind is indispensably necessary to the repose of empire and the stability of government.” The debate was closed by Lord John Russell, who defended his plan: and on a division the second reading of the measure was carried by a majority of three hundred and sixty-seven against two hundred and thirty-one.

It was proposed that the house should go into committee on the 12th of July, when Lord Maitland, one of the members for Appleby, rose to oppose the disfranchisement of that borough, on the score of a mistake in the population returns. He moved that his constituents should be heard at the bar by themselves and their counsel against the bill, in so far as it affected them, and in support of the allegations in their petition. Ministers declared that they would resist such an inquiry. They asked, whether the progress of this great measure was to be stopped to enter into the examination of a particular case of so insignificant a borough as Appleby? Members would be heard in committee in regard to this and every other borough; but if the house was to hear counsel in the case of Appleby, they might likewise be called on to hear them in the case of the other condemned boroughs, and that would be vexatious. The house had the information furnished by the population returns, which ministers deemed sufficient: if witnesses were examined at the bar, they must necessarily, if they had not been engaged in taking the census, be unable to furnish any other evidence; and if they had been so engaged, they would furnish the same evidence. A stormy debate followed, several members maintaining that there never had been an instance of so arbitrary and unconstitutional an attempt as ministers were now making. The second reading had carried the principle of the bill; but these petitioners were not objecting to the principle, but simply maintaining that, adopting this principle, the rule laid down by the bill itself, and founded on matters of fact, could not apply to them. Ministers, however, were deaf to all remonstrances; and the motion was negatived, although several supporters of the bill ventured to vote in the minority, feeling that the petitioners were justly entitled to show cause why they should not be disfranchised, and that justice would not be done if the motion were rejected. This

motion being lost, a new discussion arose before the speaker left the chair, on the general principles and tendencies of the bill. As many members wished to express their sentiments, and the majority seemed impatient to cut all argument short, Mr. Gordon moved for an adjournment. The chancellor of the exchequer, however, asserted that he would have no further general argument on the bill after that night; and, notwithstanding the motion was ably defended, it was negatived. Repeated motions for adjournment were made, and were as repeatedly negatived; but as the minority still kept to their point, and seven o'clock in the morning was approaching, the chancellor of the exchequer said, that if the house would allow him to go into committee _pro forma_, the chairman might report progress, and ask leave to sit again to-morrow, when the discussion might go on as before. This was agreed to, and the house then adjourned. On the 13th, when the motion was made for the speaker leaving the chair, some discussion took place on the general principles of the bill; but it was very brief; and the house then discussed the measure clause by clause. The discussion on the several clauses continued from the 13th of July to the 15th of September, the opposition combating every point foot to foot with ministers. Amendments were moved as to the general principles of the bill, and as regards particular boroughs; but ministers were triumphant in almost every instance of importance. An amendment, moved by the Marquis of Chandos, that the right of voting should belong-to all occupiers of land paying a rent of not less than fifty pounds, was, however, earned by a majority of eighty-four; and it was incorporated with the original clause, which gave a right of voting for counties to leaseholders for a certain period, and a defined rent. The committee finished its labours on the 7th of September; and the bill, as amended, was reported to the house. The third reading was carried without a debate, on the 15th of September, by a majority of fifty-five; but on the motion that the bill do pass, a debate arose, which continued during the 19th, 20th, and 21st of September. Mr. Macaulay, with brilliant eloquence, admonished the peers to look to the deserted halls of France, and take warning not to oppose popular lights. Mr. Croker who seemed to make a point of rising to address the house after Mr. Macaulay, ridiculed the idea of the peers of England being deterred by fear from the performance of their duty, and reminded Mr. Macaulay that if the halls of France were deserted, it was because the French nobility were so foolish as to make any concessions to popular clamour. Mr. Stanley, then in the noon of his reputation, replied with his usual debating power to Mr. Croker, and carried the sympathies, if not the opinions of the house. Useless and angry recrimination entered largely into the remainder of the debate, in which Mr. Wynn and Sir Charles Wetherell especially figured. The personal influence of Lord Althorp and Sir Robert Peel allayed this angry spirit.

REJECTION OF THE REFORM BILL BY THE LORDS.

The reform bill having been carried in the commons, on the next day Lord John Russell, attended by many of its supporters, delivered the bill to the lord-chancellor in the house of lords. The bill was read a first time, and, on the motion of Earl Grey, was directed to be read a second time on the 3rd of October. In the meantime the reformers vigorously employed all the means in their power to intimidate the peers into submission. Political unions again sent forth their addresses and petitions, and

meetings were convened to warn them of “the tremendous consequences of rejecting the bill,” and to inform them how “deeply and fearfully the security of commercial, as well as of all other property, was involved” in passing it without delay. In a meeting held in the common-hall of London, Colonel Torrens remarked:—“Let the peers refuse this bill if they dare; and if they do, dearly will they rue their obstinacy hereafter. You all remember the Sibyl’s story. She presented her oracles to the court of Tarquin, and they were rejected. She burned a portion, and again offered them, but they were again rejected. After diminishing their number still further, she once more returned, and the remaining volumes were gladly purchased at the price which she had originally demanded for the entire. We, however, mean to reverse the moral, for should the present bill be defeated, we shall bring their lordships another bill, demanding a little more; and then, should they still dare to resist the might, and insult the majesty of the people of England united as one man, we will come forward with a bill of reform in which their lordships will find themselves inserted in schedule A.” Such language as this was used from one end of the country to the other, and the press and orators alike endeavoured to intimidate the peers into submission. They were to have no direct influence in the deliberations of the commons, and now they were to have no deliberate voice in their own house. Such was the state of public feeling when, on the 3rd of October, Earl Grey moved the second reading of the bill. After some prefatory remarks, he said, that being called to form a new administration, he stated to his majesty that the only condition on which he would accept office was that he should be allowed to bring forward the question of parliamentary reform as a measure of government. That condition was sanctioned by the monarch, assented to by the commons, and hailed with joy by the people. Earl Grey next went into the details of the bill, an account of which is given in the previous pages. He added: “You are asked to give up that which is odious, unjust, and unconstitutional, and by retaining which the security of this house may be shaken. The influence which your lordships possess in the representation of sixty-five old boroughs may be taken from you by this bill, but the peers and the landed interest are not thereby deprived of their influence in the representation—on the contrary, that influence is increased.” Earl Grey proceeded to contend that the measure had received the approbation of the country. He was, he said, one of the last men in that house who would grant anything to intimidation, and he would say, “Resist popular violence, and do not give way to popular commotion,” but here there was neither violence nor commotion. The opinion of the people was fairly and unequivocally expressed, and no government could turn a deaf ear to it, and least of all could a government founded on free principles take such a step. The time was passed for taking half-measures; their lordships must either adopt this bill, or they would have in its stead something infinitely stronger and more extensive. The measure was brought forward at the recommendation of the crown; it had been carried by an overwhelming majority of the other house, and it was supported by the prayers of millions, who respectfully knocked at their lordships’ door, and asked, for that which they considered to be the restoration of their just rights. Were their lordships prepared to reject a bill so supported, and that, too, on its second reading? He would venture for a moment, he continued, to address himself to the right reverend prelates who sat near him. While he assured that body that no man was more sincerely attached than

he was to the maintenance of all the rights and privileges of the church—no man held in higher veneration the purity of its doctrine and discipline—no man was more ready to admit the zeal, and learning, and piety of those who presided over it,—let him at the same time ask, that if this bill be rejected by a narrow majority of the lay peers, and if its fate should thus within a few votes be decided by the votes of the heads of the church, what would then be their situation with the country? Those right reverend prelates had shown that they were not indifferent or inattentive to the signs of the times; they had introduced measures for effecting some salutary reforms in matters relating to the temporalities of the church, let them be implored to follow up the same course. The eyes of the country were upon them; he called upon them to "set their house in order," and prepare to meet the coming storm—to consider seriously what would be the opinion of the country should a measure on which the nation had fixed its hopes be defeated by their votes. They were the ministers of peace; he hoped that the result of their votes would be such as might tend to the tranquillity, peace, and happiness of the country. Earl Grey concluded his speech by saying that he was prepared to stand or fall by this measure; the question of his continuance in office for one hour would depend on the prospect of being able to carry through that which he considered important to the tranquillity, safety, and happiness of the country. Lord Wharncliffe addressed the house against the measure, defending nomination, not because it was made by peers or other influential individuals, but because its effect in the house of commons was that it acted as a check on those places which were popularly represented. He further argued, that if a house of commons were once elected on the principles of this bill, it would cramp the crown in the exercise of its prerogatives, and create a body in that house so irresistible as to make their lordships' decisions on all public questions a dead letter. The house of commons would become too much the image of the people. The dangers, indeed, which at this moment surrounded their lordships proved the accuracy of his argument. They had now a popular house of commons—a delegate house of commons; that house had passed this measure, and their lordships were told that nothing was left for them but to record and register the decree of the house of commons. He moved, therefore, that "this bill be rejected." Lords Mulgrave and Mansfield followed..... the former in support of, and the latter against the bill. After which Lord Wharncliffe, lest his motion should be interpreted as an insult to the house of commons, begged leave to withdraw his motion, and to propose in its stead that the bill be read a second time that day six months. After some discussion this alteration was allowed, and the debate was resumed by Lord Winchilsea, who opposed the bill. Lord Melbourne supported the measure, and the Duke of Wellington opposed it. After some introductory remarks, the duke referred to language which Earl Grey had uttered concerning the house of commons in 1817. His words were—"Constituted as it now is, I in my conscience believe that the house of commons is, of all institutions, in all countries of the world, the best calculated for the general protection of the subject." In 1830 he (the Duke of Wellington) had pronounced an opinion in parliament on the subject of reform, of which the noble earl disapproved. What he said was, that he approved of the constitution of parliament; and if he were to invent a constitution for parliament over again, he would endeavour to frame one like it, in which property should preponderate. The noble earl had said

that it was this sentence which had created the spirit of reform now pervading the country. It was not so; the spirit of reform had originated with the French revolution. Ever since the American war, the minds of the people had been occasionally disturbed by the spirit of reform; and when any insurrection grew up in Europe, a desire for reform was sure to be exhibited. Concerning the measure before the house, the noble duke asked whether it was founded on the principles of the constitution? He thought not; he thought the bill violated both the principles and practice of the constitution. It went to establish a new system of representation in every county, borough, and town in the United Kingdom, with the exception of the two universities. The town representation would be placed in the hands of close, self-elected committees, like that which had appointed itself in the metropolis at the close of the last session, and which dissolved itself only in consequence of the notice which its proceedings had attracted in parliament. The undue enlargement of the powers of the town constituency would entirely destroy the balance of the agricultural representation of the counties. The towns already exercised an extraordinary influence in the election of county representatives, and the evil would be aggravated tenfold by the clause of the bill which gave votes to leaseholders and copyholders. The noble duke entered into the details of the measure at great length, and concluded by eulogising the constitution as it now existed. Under it, he said, we enjoyed the largest commerce, and the most flourishing colonies in the world. There was not any country in the universe in which so much happiness, so much prosperity, and so much comfort, were diffused amongst all the various classes of society; none in which so many and such large properties, both public and private, were to be found as in England. There was not a position in Europe in any degree important for military purposes, or advantageous for trade, which was not under our control, or within our reach. All these great and numerous advantages we possess, he added, under the existing system; but it will be impossible to retain them if we once establish a wild democracy, a complete democratic assembly under the name of a house of commons. On the two following evenings the principal speakers for the bill were Lords Lansdowne, Goderich, and Plunkett; and against it, Lords Dudley and Ward, Haddington, and Carnarvon. The fifth and last night of the debate was begun by Lord Wynford, who was followed by Lord Eldon, who condemned the measure as subversive of the right of property as well as of the monarchy, and of every principle acknowledged by the constitution. Lord Eldon concluded his speech by warning their lordships of the danger of conceding the terms required; and by declaring that if the measure passed, there would be an end to the monarchy. The lord-chancellor, after taking a review of the courses taken by the opponents of the bill, denied that the bill was founded upon population, and not property. Lord Lyndhurst resisted the bill because it appeared to him inconsistent with the prerogative of the crown, and with the authority of their lordships; but, above all, because it was detrimental to the rights and liberties of the people. The bill was opposed by Lord Tenterden and the Archbishop of Canterbury, both of whom expressed their belief that it would have a mischievous tendency. The Duke of Sussex supported it; but the Duke of Gloucester, although desirous of temperate reform, opposed it, as he conceived it to be a scheme for a new constitution. Lord Grey, in reply, complained that the opposition to the measure seemed to be carried on, less with a view to defeat the bill, than to drive its

advocates from office. He repeated that he was pledged to this measure, or to one of equal extent; and said, that if a more moderate scheme would satisfy the people, he would not be the person to introduce such a measure. As to what course he should follow if defeated, he could not say; but he should be culpable if he were to resign his office and abandon his king, so long as he could be of use to him; for he was bound to him by gratitude as great as ever subject owed a sovereign. The house at length divided; and the bill, which had occupied so much of the attention of parliament during this session, and for which the people had long been earnestly striving, was lost by a majority of one hundred and ninety-one against one hundred and fifty-eight.

{WILLIAM IV. 1831—1832}

This division in the house of lords took place on the 8th of October. When the house met on Monday, the 10th, Lord Ebrington brought forward a motion, the object of which was to prevent ministers from resigning, by pledging the house of commons to support them. He founded their claims to public confidence, not merely on what they had done for the question of reform, but likewise on other measures which had distinguished their course; the relief, in particular, granted to the poor by the repeal of the duty on soap and candles, the improvements introduced by them into criminal jurisprudence, and the cleansing of the Augean stable of the court of chancery. He moved the following resolution;—"That while this house laments the present state of a bill for introducing a reform into the commons house of parliament, in favour of which the opinion of the country stands unequivocally pronounced, and which has been matured by discussions the most anxious and the most laborious, it feels itself most imperatively called upon to reassert its firm adherence to the principles and leading provisions of that great measure, and to express its unabated confidence in the integrity, perseverance, and ability of those ministers who, by introducing and conducting it, so well consulted the best interests of the country." The motion was supported by Messrs. O'Connell, Shiel, Macaulay, Hunt, and Duncombe, all of whom argued that, as matters stood, the continuance of ministers in office was the only thing that would secure public tranquillity, and that perseverance for a short time was sure to make reform triumphant, while their resignation would produce a state of things where demagogues would be above the law. Mr. Hume described the vote of the house of lords to be the unreasonable and wilful blindness of a miserable minority withholding from the majority their just rights. Others insisted that government should not hesitate, if it seemed necessary, to create as many peers as might be required to secure a triumphant majority. "The people," it was said, "have sent a sweeping-majority of reformers into the house of commons; why should not ministers send an equally decisive majority into the other house?" The motion was opposed by Sir C. Wetherell and Sir Robert Peel, and by Messrs. Croker and Goulburn, as being unnecessary and unfounded. If agreed to, it was said, it would only be a repetition of former votes. Lord Althorp said that the motion was made without any suggestion on the part of ministers. For himself, unless he felt a reasonable hope that a measure equally efficient would be brought forward and carried, he would not remain in office a single hour. The opponents of reform had gained a great triumph, and might rejoice in their success; but he did not think that any great triumph would be eventually

gained; he was confident that the measure was only postponed. If the people of England remained firm and determined, but peaceable, he hoped and believed that there would be ultimate and speedy success. There was only one chance of failure; namely, if their disappointment led them into acts of violence, or to unconstitutional measures of resistance. The motion was earned by a majority of three hundred and twenty-nine against one hundred and ninety-eight.

CONSEQUENCES OF THE REJECTION OF THE REFORM BILL.

The rejection of the reform bill produced an extraordinary sensation throughout the country. Meetings were instantly convened in the metropolis. One was held at the Thatched-house Tavern, consisting of all the members who had supported the bill in its passage through the commons. The common-council also promptly assembled; and this was followed by a meeting at the Mansion-house of merchants and bankers, who passed resolutions approving of the conduct of government, and pledging themselves to its support. Petitions were also carried to the king, praying him to continue his ministers, and have recourse to a new creation of peers, sufficient in numbers to carry the bill. The lord-mayor and corporation went to St. James’s with an address to the throne, and the civic procession was joined in its route by such numerous bodies with similar addresses, that, before it reached the palace, it consisted of more than 500,000 persons. Soon after their arrival the parochial deputies waited on Lord Melbourne, who prudently advised them to commit their addresses to the county members for presentation at the levee. This was announced to the multitude by Mr. Hume, who, while he exhorted them to be firm and united, advised them to be peaceable, and to disperse immediately, so that no advantage might be given to the enemies of reform. Mischief, however, was on foot. The mansions of the Duke of Wellington, the Marquis of Bristol, and that of Earl Dudley, were attacked, and were only saved from destruction by the timely interference of the police. The Marquis of Londonderry and the Duke of Cumberland were personally attacked in the park; and the latter would probably have been killed had not the police rescued him. In the country, also, violence and outrage became the order of the day. At first they were confined to the counties of Derby and Nottingham, at the latter of which places the mob set fire to the castle, the seat of the Duke of Newcastle, one of the sternest opposers of the reform bill. The house of Mr. Masters, also, in the vicinity, was sacked and pillaged; and his wife died in consequence of being obliged to seek shelter under the bushes of a shrubbery in a cold and rainy October night. In both houses of parliament ministers loudly expressed their disapprobation of such proceedings; but they were charged by their opponents with having indirectly encouraged the rioters by the language they had used, and the connexion in which they had placed themselves with large bodies of men acting illegally. While the bill was before the lords a meeting of political unions took place at Birmingham; and this assembly voted an address to the king, setting forth their alarm “at the awful consequences” which might arise from the failure of the bill; their pain at imagining the house of lords so infatuated as to reject it; and their earnest desire that his majesty would create as many peers as might be necessary to carry the measure. The most violent and threatening language was uttered by the speakers at this meeting; and one of the resolutions agreed to was a vote of thanks to Lords Althorp and John Russell. This

was answered in these courteous terms:—“I beg to acknowledge with heartfelt gratitude the undeserved honour done me by 150,000 of my countrymen. Our prospects are now obscured for a moment, and I trust only for a moment. It is impossible that the whisper of faction should prevail against the voice of a nation.” This courteous reply to a body of demagogues was severely deprecated in the house of commons, especially by Sir H. Hardinge, Sir R. Vyvyan, and Sir Charles Wetherell. In the meantime the spirit of insubordination seemed to increase. At Croydon the Archbishop of Canterbury was grossly insulted while presiding over a meeting of the Society for the Propagation of the Gospel; and in Somersetshire the bishop of the diocese was attacked when engaged in the solemn ceremony of consecrating a new church. Several other obnoxious prelates were burned in effigy. But these were trifles compared with the devastation committed at Bristol, when its recorder. Sir Charles Wetherell, arrived there late in October, on his official duties. He had no sooner opened his commission than he was attacked with such violence by the mob, that he was compelled to seek for safety by flight and disguise. Even his departure did not stop the mad fury of the populace. The episcopal palace, the mansion-house, the excise-office, with great part of Queen’s Square, fell a sacrifice to the flames. A large number of warehouses, also, many of which were filled with wine and spirits, shared in the conflagration. The soldiers had been sent out of the city, but they were compelled to be recalled; and as parties of them arrived, tranquillity was restored. The total number of killed and wounded amounted nearly to one hundred; and about two hundred were taken prisoners during the outrages, while others were captured afterwards with plundered property in their possessions. About the same time partial disturbances broke out at Bath, Coventry, and Worcester; but these being vigorously opposed by the municipal and military powers, were speedily checked. A proclamation was finally issued by his majesty in council on the 2nd of November, exhorting all classes of his subjects to unite in suppressing tumults. As winter advanced, however, the alarm of the executive government increased, and serious apprehensions were entertained lest the peace of the country should be endangered by the formidable associations which everywhere existed, and especially by those in London, Birmingham, and Manchester. These associations began even to appoint councils and officers, and to assume a regular plan of organization. The rapid increase of unions at length made it necessary that some steps should be taken to lay them under restraint; and the Gazette of the 22nd of November contained a proclamation, declaring their illegality, and warning all subjects of the realm against entering into such combinations. About the same time a special commission was appointed to try the Bristol rioters, and the result was that eighty-five were convicted: five were left for execution, but four only suffered the extremity of the law. A military court of inquiry was also instituted on the conduct of the officers commanding at Bristol, and a court-martial was appointed on Colonel Brereton and Captain Warrington. The former, overcome by his feelings, and the weight of evidence against him, destroyed himself, and the latter rested his defence for his neglect in suppressing the riots, and preserving the buildings, on the want of directions from Colonel Brereton, and of assistance from the city magistrates, the head of whom purposely concealed himself when his presence was needed; whilst all the aldermen excused themselves for not accompanying the soldiers, by their inability

to ride on horseback. General Sir Charles Dalbiac, however, the crown-prosecutor, laid it down as a fundamental principle of the common law:—“That if the occasion demands immediate action, and no opportunity is given for procuring the advice or sanction of a magistrate, it is the duty of every subject to act on his own responsibility, in suppressing a riotous and tumultuous assembly; and whatever may be done by him honestly, in the execution of that object, he will be justified and supported by the common law. That law acknowledges no distinction between the private citizen and the soldier, who is still a citizen, lying under the same obligation, and invested with the same authority to preserve the king’s peace as any other subject.” Later in the year commissions were issued to try the rioters at Nottingham and Derby.

During all this time Ireland continued in a most distracted state. Associations were promoted in the country by Mr. O’Connell for the repeal of the union, until at length the magistrates dispersed one of his meetings, and apprehended the great agitator and his accomplices for illegal acts. True bills were found against them by the grand jury, and Mr. O’Connell put in a demurrer; but withdrew it, and pleaded not guilty. After several attempts to delay the trial, he withdrew that plea, also, and pleaded guilty to the first fourteen counts in the indictment respecting the holding of meetings in contempt of proclamations. Mr. Stanley, secretary for Ireland, distinctly stated in the house of commons, in answer to a question put by the Marquis of Chandos, that he and his accomplices would be brought up for judgment; but this promise was never fulfilled, and many discussions took place in parliament, as to whether government had made any compromise with the agitators. Ministers denied that such was the case; and that they were not brought up for judgment is perhaps sufficiently accounted for by the state of both England and Ireland. In the latter country the disturbances toward the close of the year greatly increased. In the counties of Clare, Roscommon, Galway and Tipperary, all law was trampled under foot; murder, robbery, and searching for arms by bodies of men were the ordinary occurrences of every day. The lord-lieutenant made a progress through the disturbed counties in the vain hope that his presence would restore tranquillity; but things remained in the same state on his return to Dublin as before his departure from thence. More vigorous measures were afterwards adopted: proclamations were issued in several counties applying the insurrection act to them, and a special commission was sent down to try all offenders captured. A great number of miserable creatures were convicted, but few individuals suffered the last penalty of the law. But notwithstanding these trials, the outrages in Ireland lost little of their horrors. The refusal to pay tithes became general; and many frightful collisions occurred between the peasantry and the authorities which endeavoured to repress their lawless proceedings, The law was, in fact, powerless; and whenever the officers of the law interfered, open war was declared against them.

[Illustration 482.jpg BRISTOL FROM ROWHNAM FERRY]

FINANCIAL STATEMENTS.

On the 3rd of October the chancellor of the exchequer laid his view of finance for the year before the house of commons. This was the second statement within the

year; for the original budget was a failure, and his lordship had been driven to the necessity of changing his operations. His present statement was that the total amount of receipts for the present year would be £47,250,000, and the expenditure £46,756,221. He had, he said, to allow for £200,000 more received from the account of the last year, so that he would take the surplus of revenue over expenditure at £493,000. He begged to observe that this surplus was larger than he had anticipated in February last, notwithstanding he had not succeeded in carrying several of the taxes he had proposed. In the customs there had been a falling off this quarter; but he had grounds for concluding that it would not continue. In regard to the sinking-fund, he said, that, at the commencement of each quarter, he had taken an average of the four preceding quarters, and that sum he had applied to the reduction of the debt in the succeeding quarter, if the revenue was not clearly falling. The act allowed the commissioners for the reduction of the national debt to apply the surplus to the purchase of exchequer-bills, as well as stock; and since the revenue had been diminished so much by the reduction of taxes, the surplus had been applied in the purchase of such bills. He had done this in order to diminish the number of securities in the hands of the bank; and although the plan was operose, the effect was, that the debt was not reduced, unless there was a real surplus of revenue.

PROROGATION OF PARLIAMENT.

The king prorogued parliament on the 20th of October, in person. On the one all-absorbing topic, that of reform in parliament, he remarked:—“In the interval of repose which may now be afforded to you, I am sure it is unnecessary for me to recommend to you the most careful attention to the preservation of tranquillity in your respective counties. The anxiety which has been so generally manifested by my people for the accomplishment of a constitutional reform in the commons house of parliament, will, I trust, be regulated by a due sense of the necessity of order and moderation in their proceedings. To the consideration of this important question the attention of parliament must necessarily again be called at the opening of the ensuing session; and you may be assured of my unaltered desire to promote its settlement by such improvements in the representation as may be found necessary for securing to my people the full enjoyment of their rights, which, in combination with those of the other orders of the state, are essential to the support of our free constitution.” Parliament was prorogued to the 22nd of November, but subsequently by proclamation to the 6th of December.

CORONATION OF WILLIAM IV.

The coronation of William IV. took place on the 8th of September. The ceremony was shorn of the grotesque pageantry of chivalric times, and was confined to the interior of the abbey. The royal procession moved in state carriages from St. James’s Palace, and was escorted by the cavalry. His majesty was saluted with hearty cheers from the multitude, such as greeted his father in the most palmy days of his reign. His majesty, the first naval king that ever sat on the British throne, was dressed in an admiral’s uniform. As the procession passed, the bands which were stationed at different points played the national anthem, which tended to excite the enthusiasm of the people. In conformity with precedents, the coronation was distinguished by the

grant of new honours. Three marquesses, four earls, and fifteen barons were created; and this increase of the peerage was afterwards succeeded by the addition of twenty-eight names to the list of baronets of the United Kingdom, for the express purpose of carrying the reform bill.

OPENING OF NEW LONDON BRIDGE, ETC.

The ceremony of opening new London Bridge took place on the 1st of August. It was honoured by the presence of their majesties, who partook of a banquet in a pavilion erected on the bridge. On the day following, another exhibition of royalty took place in the procession of their majesties to the house of lords, that the king might give his assent to the queen’s dower bill. On the same day, in consequence of a royal message, delivered by Earl Grey, the importance of making a further provision to support the honour and dignity of the Princess Victoria, as presumptive heiress of the crown, was taken into consideration. It appeared that, in consequence of Prince Leopold’s election to the throne of Belgium, £6000 per annum, which he had hitherto allowed his sister and niece, had been withdrawn. Lord Althorp made a similar statement in the commons; and he proposed an addition of £10,000 per annum to the income of the duchess, which resolution was agreed to _nem. con_.

RAVAGES OF THE CHOLERA.

While the country was in the disturbed state described in previous pages, its confusion was increased by the appearance of the cholera morbus. This frightful malady first appeared on the banks of the Ganges, in 1817. The early manifestations of it consisted in violent vomitings and discharges of the bowels. After this, spasmodic contractions, beginning in the fingers, gradually extended themselves to the trunk; the pulse sank; the skin became cold; the lips, face, neck, hands, and feet, and soon after the thighs, arms, and surface assumed a leaden, blue, purple, black, or deep brown tint, according to the complexion of the individual, or the intensity of the attack. The fingers and toes were reduced in size; the skin and soft parts covering them became wrinkled, shrivelled, and folded; the nails assumed a bluish, pearly white hue; the larger superficial veins were marked by flat lines of a deeper black; the pulse became small as a thread, and sometimes totally extinct; the voice sunk into a whisper; the respiration was quick, irregular, and imperfect; and the secretion of urine was totally suspended. Death took place often in ten or twelve, and generally in eighteen or twenty hours after the appearance of well-founded symptoms. Many were the thousands who perished by this visitation in India; the cities of Decca and Patna, the towns of Balasore, Burrishol, Burdavan, and Malda suffered greatly, and throughout the Gangetic Delta the population was sensibly diminished. The scourge was extended eastward along the coast of the Asiatic continent, and through the islands of the Indian Ocean, to China and to Timor. Before the end of 1827, it had traversed the Molucca islands, and the island of Timor, and continuing for several years to ravage the interior of China, it had, by 1827, passed to the north of the great wall, and had desolated some places in Mongolia. In the meantime, also, it extended to the west. Bombay, Persia, Asiatic Turkey, Russia, Poland, Austria, and Prussia, all experienced the dreadful visitation, from 1818 to 1831. Precautions had been taken in England, by enforcing quarantine regulations, to protect the country from the

malady; but notwithstanding, in the month of October of this year, it made its appearance in Sunderland. Before the close of the year, it found its way from Sunderland and Newcastle to the suburbs of the metropolis. At first its outrages were generally confined to the victims of intemperance; but it soon began to attack patients of all descriptions, and to spread from the capital into the provinces. Scarcely any part in the empire, eventually, escaped the fearful scourge, but its inflictions, probably by reason of the habits of the people, and the nature of the climate, were less violent than in the other nations which it had visited. A board of health was established, which made a daily report of cases. Concerning the disease, there was great contrariety of opinion among medical men. The main points on which they differed were as to whether the disease was contagious or not; whether it was the Asiatic cholera or a new complaint; whether it was imported or indigenous; and whether it partook of the properties of the plague, or was to be regarded as a transient scourge. The ratio of deaths in England was found to be about one to three. Some places were entirely free from its ravages, although it was raging near, which gave rise to an opinion that its propagation was extended by currents in the air.

“God proclaims His hot displeasure against foolish men, That live an atheist life; involves the heaven In tempests; quits his grasp upon the winds, And gives them all their fury; bids a plague Kindle a fiery boil upon the shin, And putrefy the breath of blooming health. He calls for famine, and the meagre fiend Blows mildew from between his shrivelled lips, And taints the golden ear. He springs his mines, And desolates a nation at a blast.”

FOREIGN AFFAIRS.

In France, this year was likewise distinguished by tumults. In Paris and Lyons especially there were great disturbances; and at the latter place the riot of workmen advanced to such a height that the Duke of Orleans, accompanied by Marshal Soult, was dispatched thither with extraordinary powers to quell the revolt. In the Netherlands, after Prince Leopold had accepted the crown, which he did in the month of June, Holland, on the 1st of August, declared the armistice to be at an end, and prepared to enforce by arms the rights which Europe had, on a former occasion, declared to belong to the king of that country. A Dutch army entered Belgium, and routed the Belgian forces at Hasselt and Louvain, which latter city it captured. This army, however, subsequently retired before a large French force which arrived at Brussels for the defence of the country. The marches of the Dutch and French armies became a subject of debate, in consequence of which the French troops were recalled. Another set of articles was framed by the conference, which declared that the acceptance of them should be compulsory. Belgium readily accepted them, but they were rejected by Holland. After this, a treaty was signed between the five powers and Leopold, who was recognized by them as King of Belgium; but the Dutch plenipotentiaries entered a strong protest against this instrument, feeling a certainty of being aided in their pretensions by some of the contracting powers, and by a strong party even in Great Britain. The state of possession however, at the close of the year, remained undisturbed; the King of Holland having declared that, although he would not desist from his military armaments, he would employ them at present

only for the purposes of defence. In Spain, this year two attempts at insurrection were made; but they were followed by defeats, arrests, and executions. In Portugal, where Don Miguel's cruelties continued unabated, the hopes of the constitutionalists were revived in the return of Don Pedro, with his daughter. Donna Maria, to Europe, and his preparations for a descent on Portugal. Don Miguel made every exertion to put the forts of the Tagus into a state of complete preparation to repel the expected attack; but all his efforts were weakened by the want of money; and at the close of the year his usurped throne was in danger of being overthrown. Insurrections were also, this year, prevalent in Italy. They occurred in Parma, Modena, and the Papal States, and were put clown by Austrian interference. Greece, during the same period, for whose pacification the powers of Europe had laboured so long, was a scene of violence and war. The popularity of Capo d'Istria, either from his too great attachment to Russian interests, or from the jealousy and discontents of the chiefs, unused to control and jealous of power, had rapidly declined. In consequence of this he became suspicious and tyrannical; and before the year closed he lost his life by assassination. This year was fatal to the liberty of Poland. Driven to insurrection by the faithless and tyrannical conduct of Nicholas, betrayed by France, deserted by England, and persecuted in their low estate by Austria and Prussia, the Poles, after heroically struggling with the armies of Eussia, were finally subdued. Warsaw was captured; the Polish armies disbanded; the nobles degraded; and thousands of every rank, age, and sex subjected to the most cruel punishments, and the nationality of the country destroyed, so far as human ingenuity could accomplish so fell a destruction. Poland rose for a desperate struggle against the Russian giant, and astonished the world with its prowess; but it proved unequal to stem the crushing movements of the Muscovites.

MEETING OF PARLIAMENT.

{WILLIAM IV. 1831—1832}

The British parliament reassembled on the 6th of December. During the recess, ministers had been urged by their reforming adherents to reintroduce the reform bill without delay; and it became evident, from his majesty's speech, that this subject would become the absorbing topic of the next session. His majesty distinctly stated his views on the subject of reform in the opening of the speech, thus:—"I feel it to be my duty, in the first place, to recommend to your most careful consideration the measures which will be proposed to you for a reform in the commons house of parliament; a speedy and satisfactory settlement of this question becomes daily of more pressing importance to the security of the state, and to the contentment and welfare of my people." The other parts of the speech referred to the distress which prevailed; to the appearance of the cholera morbus; to the agitation prevailing in Ireland; to the Portuguese affairs; to the separation of the states of Holland and Belgium; to a convention entered into with the king of the French for the suppression of the slave-trade; to the estimates; and to the recent riots. The address did not produce any division, but several parts of it were objected to in both houses. In the lords, the principal matter of discussion was found in those parts of the royal speech

which regarded the foreign policy of the government, the opposition particularly objecting to that part of the address in answer to it which expressed satisfaction that an arrangement had been made for the separation of the states of Holland and Belgium. At the suggestion of Lord Harrowby the paragraph was slightly altered, so as to meet the views of all parties. In the commons, Sir Charles Wetherell brought under notice that part of the speech which related to the riots at Bristol, in the course of which he made some severe remarks on the libels of the press, which had charged him with being the author of those events; the charge was false, he said, in all its parts, and known to be false by those who made it. Sir Robert Peel proposed the same alteration in that part of the address that related to the affairs of Holland and Belgium, which Lord Harrowby had suggested in the upper house, and it was adopted. In his speech, besides adverting generally to the other topics in the address, he protested against a precedent now established, that of assembling parliament for the dispatch of business without giving the usual notice. He admitted that, by the letter of the law, government was entitled to call parliament together after fourteen days' notice; yet it was laid down by the highest authority that, up to the period when the old law was altered, it was deemed of high importance that forty days' notice should be given of the meeting of parliament. Of the allusion in the speech and address to the necessity of a speedy and satisfactory settlement of the reform question, Sir Robert said that he would not object to it, as ministers had declared that it was not intended to express any pledge. He would candidly avow, however, that he despaired of seeing the question brought to a speedy and satisfactory settlement. In the different discussions on the reform bill, ministers had agitated principles which did not admit of any satisfactory settlement. It was his conscientious belief, indeed, that the principles of the bill were so many impediments to the settlement of the question, which the ministers themselves had not the capacity to remove. In reply, Lord Althorp justified the short notice on which parliament had been called together, by the circumstances of the country. Mr. Hume made some remarks on the distress of the country, which he connected with the paper currency, and he moved this amendment:—"That in the present critical and alarming state of the country, when trade and manufactures were reduced to such difficulties by the withdrawing of, and narrowing the circulation, without a proportionate reduction of taxation, by which the means of all but those who lived upon the taxes were reduced one-half in value, the greatest distress existed; that these were aggravated by the baleful system called free-trade, by which a competition of foreign silks, gloves, and other articles was permitted with our own manufactures; that by these means the people were driven to desperation and frenzy, and that to these causes were to be attributed those incendiary proceedings going on in the country; that for these reasons the house do adjourn, to give time to ministers to prepare a suitable address, taking proper notice of the state and condition of the country." Mr. Hume said that he did not move this amendment to get rid of the address, but to give ministers time to consider whether they would not depart from the practice of making the address a mere echo of the speech. No member, however, would second the amendment, and therefore it fell to the ground.

NEW REFORM BILL.

On the 12th of December, pursuant to notice, Lord John Russell moved for leave to bring in a new reform bill. He first called upon the house to remember Earl Grey's declaration on the rejection of the former bill in the house of lords—namely, that he remained in office only with the view of bringing forward another and no less efficient measure of reform. The principles of the two measures, he said, were the same—any alterations which had been made left its efficiency unimpaired. He conceived that, as a resolution had been passed by the house of commons in favour of the last measure, it was only necessary to explain the alterations in the present bill, which alterations regarded the manner of carrying into effect principles already adopted by the house. These principles consisted in the disfranchisement of decayed and inconsiderable boroughs; the enfranchisement of large and opulent towns; and the introduction of a general new electoral qualification. As regards the disfranchisement of decayed boroughs, the former bill had taken the census of 1821 as the rule, and had fixed on a certain amount of population, disfranchising all those whose population did not at that time reach the amount. Since that time a new census had been taken. This census could not be thrown out of view, but, at the same time, it was liable to objection, having been taken after a particular point of population had been fixed as that of disfranchisement, it was not improbable that pains had been taken to raise certain boroughs above the line of disfranchisement. Ministers had, therefore, rather taken the number of houses than that of inhabitants, it being less likely that improper practices would be adopted in regard to the former than to the latter. It had been found difficult, he continued, to draw a line which should mark where the census should be attended to, and where it was to be disregarded. Ministers had used every effort to obtain a correct account of the size and importance of the boroughs which were to be abolished; and on the data they had obtained schedule A of the new bill was to be founded. The drawing of the line at which disfranchisement should stop, he said, must necessarily be arbitrary, whether the population, the houses, or the amount of the assessed taxes, or the number of boroughs, was to be taken into consideration. It had appeared to ministers that the number which had been fixed last session to be disfranchised was proper, and therefore they proposed to strike off fifty-six, the number which stood in schedule A of the former bill. The consequence of this was that some of the boroughs which formerly escaped disfranchisement in consequence of the population of their parishes being large, though the boroughs themselves were inconsiderable, would now be placed in schedule A, whilst others would be raised out of it, and placed in schedule B. Another part of the disfranchising clauses of the bill regarded the boroughs in schedule B, which were to be deprived of only one of their two members. Ministers had now resolved to give an additional member to a certain number of boroughs in this schedule, taking the number to be included in it to be forty-one, as it had been fixed last session, and dividing the rest of the twenty-three members, with two exceptions, among the newly enfranchised towns which, under the late bill, were to have only one representative.

Of the twenty-three members required to fill up the numbers of the house, it was proposed that ten should be given to the most considerable towns in schedule B, one to Chatham, so as to render it independent of Rochester, and another to the county of Monmouth, from which there had been several petitions, stating that there was only

one district of boroughs in that county, although its population exceeded 100,000. The rest of the twenty-three, he continued, were given to the large towns to which the late bill gave one representative each. The consequence of all this was, that there would be only thirty boroughs in schedule B, instead of forty-one, and that in schedule C. instead of twelve members, there would be forty-two: instead of ninety-six places, as by the old bill, there would be only forty-nine returning one representative each. His lordship next proceeded to the ten-pound qualification clause. As it stood in the last bill, he said, the right of voting in boroughs was to be enjoyed by occupiers of houses assessed to the house-duty, or poor-rates at ten pounds, or rented, or of the annual value of the same; but then this right was afterwards limited thus:—that no one whose landlord compounded for the rates should be entitled to vote unless he claimed to be rated in his own name, and that no one should be entitled to vote for airy premises, unless he had occupied them for twelve calendar months, and had not been in the receipt of parochial relief during that time. He now proposed that every one who occupied a lease of the value of ten pounds should have a right to vote in behalf of it, provided he was rated,—not that he should be rated at ten pounds, but that he should be assessed to the poor-rates, and then the only question to be decided would be, whether he was the occupier of a house or a warehouse of the stated value. It would also be enacted, that any person who was not rated to the poor-rates might demand to be placed upon them, and being so placed upon them, might claim to be put on the registry. In other matters, his lordship said, connected with the right of voting, the present bill would be found to differ from the last, though most of what stood in the latter was still allowed to remain. Thus the former bill had allowed the right of voting to freemen during the lives of those now in possession; the present bill did the same, but it went a step further, in preserving the rights of freemen, acquired by birth or servitude, for ever. Another change related to officers, about which some difficulty arose in the committee on the late bill: it was this, that in any case where his majesty might grant a charter of incorporation to any of the new boroughs to be created by the bill,—such as those in schedule C,—it was intended that the mayor or other chief officer of such corporation should be returning officer of such borough. It was thought much better, he said, to unite the voters in such boroughs in a corporate form on liberal principles, the same as those of London and other places, than to leave them the right of voting without such corporate form. Another right reserved in the bill related to the rights of freeholders in cities being counties in themselves. Freeholders were of three classes: some voted in the county at large; others only for the county of the city or borough; and others did not vote for either. It was intended that the voters for counties at large should remain undisturbed, and those who voted for the county of the city would also be allowed to continue that vote, but those who by the former bill were not to be allowed to vote for either place would now be allowed to vote for the county in which the city or borough happened to be situated. Lord John Russell added in conclusion, that by the late bill commissioners were appointed to make inquiries, and to ascertain the limits of boroughs, and that the reports of these commissioners would be laid before parliament, for it to determine the limits of each. In consequence of the inquiries of these commissioners a mass of information had been obtained, which he hoped to be able to lay before the house soon after the Christmas recess. There were

other alterations of minor importance, he said, in the bill, and some verbal changes, but it was not necessary to allude to them, as the discussion of these would be more proper in the committee. Sir Robert Peel said that in one thing there must be an unanimous feeling on all sides—that of gratitude at the escape which the country had had from the bill of the last session, a danger which he had not till now fully appreciated. The new bill, he contended, was a full and complete answer to the calumnies of which they had heard so much in the last session against the factious delays, as they were then called, of those who sought to introduce some of those very modifications now adopted by the noble lord who brought forward the former measure. There was scarcely an amendment in schedule A which had been offered from the opposition side of the house which had not been adopted. The principle of population was abandoned; and the preservation of the rights of freemen, which the opposition had vainly struggled to introduce last session, was now voluntarily urged by the noble lord, as an improvement in his new plan of reform. He would not stop to inquire, he said, why when five boroughs were taken out of schedule A as many more should be added, so as to make the number fifty-six; nor would he now examine why the number of boroughs having but one member each should be reduced from sixty-nine to forty-nine; nor would he enter into any inquiry as to the cause of the change in the right of voting in cities and counties; he left all these matters for future discussion;—but he must congratulate himself and his friends on the effect of the opposition which they made to the last bill. He was not surprised that the noble mover should have been so severe on the last bill; but he must say, that he was not prepared for such a sacrifice to the manes of the late parliament as the adoption of the resolution of General Gaseoyne, by keeping up the number of members undiminished. After all that had been said, both in and out of the house, as to the nature and the object of the opposition, it was declared to be the deliberate conviction of the king’s government, that the objections which the opposition took were well founded. He rejoiced for the sake of the character of those on that side of the house with whom he had the honour to act, that such a triumphant refutation was brought forward of the charges which had been made against them. He rejoiced, also, not only on account of the amendments which had been made in the details of the bill; but because, if the house should determine, on the second reading of the bill, to adopt the principle of the measure, and to make so extraordinary and extensive a change in the frame and constitution of the government of this country, he could not help thinking that when they approached the discussion of the details, there would be a disposition on the part of the majority of the house to follow the course of ministers, and to introduce more amendments into the measure. Lord Althorp, on the other hand, said that he could not recollect a question moved from the opposition side of the house with respect to any of the alterations which had since been made in the bill. Ministers had given their attention to every reasonable suggestion with regard to the details of the bill, and some of those alterations now proposed might have been pressed upon their consideration; but he did not remember that an opportunity had been given them last session to adopt such resolutions. The bill having been rejected, ministers had employed the interval which had since elapsed in endeavouring to remove all objections to the details of the measure, and in introducing such improvements as were consistent with its great principle; and yet, because they had

done so, the right honourable baronet taunted them with unstable conduct. The giving up the clause regarding commissioners, he asserted, was the necessary consequence of the fact of the commissioners having now made their inquiry. Great alterations were said to have been made in schedule A: fifty-one boroughs out of fifty-six remained as before. The ten-pound clause, again, it was admitted, had not suffered from the alteration which had been introduced in it: the fact was, the clause had been merely simplified in its wording and provisions; in its practical effect it was precisely similar to that contained in the late bill. Some of the Irish members complained that injustice was done to Ireland in not allowing her a greater number of members: twenty-three additional members, it was said, had now been given to England, and eight to Scotland; and yet Ireland was still to receive only the one hundred and five which had originally been allotted her under very different circumstances. The bill, however, was read a first time without a division, and the second reading was fixed for the 16th; after which, Lord Althorp stated that the house would adjourn for the Christmas holidays.

On the 16th, on the motion being made that the bill be read a second time, Lord Porchester moved an amendment that it should be read a second time that day six months. He had hoped, he said, that ministers would have framed a bill which would have been generally acceptable. The debate which followed was continued by adjournment on the 17th. Sir E. Sugden, who seconded the amendment, agreed with Lord Porchester that the bill was more democratic in its tendency than its predecessor, and equally unfounded in any sound principle of the constitution, though some of the alterations made in the details were changes for the better. There were other changes, however, which were alterations greatly for the worst, setting aside the mischievous and unconstitutional tendency of the measure. Mr. Macaulay contended that since opposition admitted that the principles of the bill were unchanged, they had no reason for the exultation in which they had indulged over minor alterations, as if ministers had abandoned their own plans, and gave the preference to theirs. The new bill, he said, was an improved edition of the first; but the first was superior to it in one point, inasmuch as it was the first, and was, therefore, more likely to cement a reconciliation between the refractory aristocracy and the exasperated people. It had been asked, he continued, why they had the temerity to legislate in haste? He did not mean to dispute that a hurried settlement at a season of excitement might not be wholly unaccompanied with evil; but if so, the responsibility must be with those who had withheld concession when there was no excitement. The time had arrived when reformers must legislate in haste, because bigots would not legislate early; when reformers must legislate in excitement, because bigots would not do so at a more auspicious opportunity. Bigots would not walk with sufficient speed, nay, they could not be prevailed on to move at all; and now, therefore, the reformers must run for it. Mr. Macaulay entered into a defence of the principles of the bill; and in conclusion asserted, that, by fair means or foul, either through or over parliament, the question must be carried. He was followed by Mr. Croker, who said that the doctrine now set up, of some terrific and uncontrollable necessity, put an end to all argument and consideration. Lord Althorp, in reply, challenged the opposition to point out any instance in which, ministers had neglected

their duty, or had looked with apathy on the violations of the public peace, or on outrages against persons and property. Mr. Stuart Wortley said he had hoped that ministers, after knowing the sentiments entertained in another place, would have introduced a measure which might, to a great extent, have met the ‘wishes of those who, like himself, were disposed to mitigate their opposition, if it could be done without sacrificing the principles for which they contended. He had been disappointed: and, therefore, notwithstanding the improvements made in the bill, he could not give it his support. He was satisfied that in principle, and in some of the details, this bill was dangerous: yet if members on the other side would declare their willingness to admit of further amendments, he would not be indisposed to give up the point of disfranchisement to a considerable extent, as being the point on which the popular feeling was most strongly excited; provided that, on the other hand, concessions were made in parts of the bill on which the public did not feel so strongly. Lord John Russell contended that it signified little whether they took away this or that number of nomination-boroughs; the time was gone by when any government could be earned on by means of their operation. It must be carried on under the control of the intelligent and respectable part of the community, which control would be provided by the bill. If the bill passed into operation, he had no doubt that men would be returned of sound views, and entitled to the confidence of the country. Sir C. Wetherell, on the other hand, maintained that while the present was the most unfit of all seasons to agitate reform, in consequence of the violent excitement into which the country had been thrown, that excitement itself was mainly attributable to ministers, who had fostered it for the express purpose of carrying the bill. Sir Robert again combated the details of the bill, arguing that they tended to the destruction of the British constitution. He added, in conclusion, “This bill, therefore, I shall oppose to the last, believing, as I do, that the people are grossly deluded as to the practical benefits which they have been taught to expect from it; that it is the first step, not directly to revolution, but to a series of changes which will affect the property, and alter the mixed constitution of the country; that it will be fatal to the authority of the house of lords; and that it will force on a series of further concessions. I will oppose it to the last, convinced that, though my opposition will be unavailing, it will not be fruitless, because the opposition now made will oppose a bar to further concessions hereafter. If the whole of the house were now to join in giving way, it would have less power to resist future changes. On this ground I take my stand, not opposed to any well-considered reform of any of our institutions, which the well-being of the country demands, but opposed to this reform in our constitution, because it tends to root up the feelings of respect towards it, which are founded in prejudice, perhaps, as well as in higher sources of veneration for all our institutions. I believe that reform will do this; and I will wield all the power I possess to oppose the gradual progress of that spirit of democracy to which others think we ought gradually to yield; for if we make those concessions, it will only lead to establish the supremacy of that principle. We may, I know, make it supreme; we may be enabled to establish a republic full, I have no doubt, of energy—not wanting, I have no doubt, in talent; but in my conscience I believe fatal to our mixed form of government, and ultimately destructive of all those usages and practices which have long ensured to us a large share of peace and prosperity, and which have made and preserved this the proudest

kingdom in the annals of the world." The bill was supported by Sir H. Willoughby, Lord William Lennox, Messrs. Bulwer and Slaney, and other members, who all insisted on the absolute necessity of yielding, and of yielding precisely what was contained in the bill, because all the principles therein contained, and the extent to which they should be applied, had been submitted to the people, and had been adopted by them, with a determination which rendered resistance useless. On the other hand, the bill was opposed by Lord Mahon, Sir E. H. Inglis, and other members. It was stated that most members of the house had seen an address to the inhabitants of Leeds, signed "Thomas Babington Macaulay," in which that gentleman stated that he by no means considered the bill as final, but that he looked upon it only as a step towards a more extended suffrage. The house divided on the morning of the 18th, which was Sunday, and the motion for the second reading was carried by a majority of three hundred and twenty-four against one hundred and sixty-two. Immediately after the division, the house adjourned for the Christmas holidays, till the 17th of January.

CHAPTER XLII.

{WILLIAM IV. 1832–1833}

Reform Bill passed by the Commons..... Debates on the Reform Bill in the Lords..... Disturbed State of the Nation..... Re-assembling of Parliament..... Failure of the Attempts to form a New Administration..... Ministers Recalled..... Reform Bill passed..... Irish and Scotch Reform Bills passed..... Bill to Prevent Bribery at Elections, &c. Committees on Irish Tithes..... Financial Statements..... Committee on the Charter of the East India Company, &c. The Affairs of the West Indies..... Prorogation of Parliament..... General Election..... Resignation of the Speaker..... State of Ireland..... State of the Continent

REFORM BILL PASSED BY THE COMMONS.

{A.D. 1832}

When parliament reassembled on the 17th of January ministers expressed their intention of going into committee on the reform bill on the 20th. Messrs. Croker and Goulburn rejected this proposition, as bringing the house into a consideration of the details of the bill before it had been put in possession of the proper information. Lord John Russell and Lord Althorp, however, would not consent to any delay of the committee. On the 20th, when the motion was made for the house to go into committee, Mr. Croker repeated his objection to their proceeding in the state of imperfect information in which they were now left. Lord Althorp, and the material adherents, asserted that the information called for was unnecessary in deciding on the first clause, which respected the number of boroughs to be disfranchised, though they admitted that when they came to the schedule, information would be necessary in order to see whether the boroughs designated ought to be retained or not. Mr. Croker moved as an amendment that the committee should be delayed till the 24th;

but it was negatived by a large majority; and the house then went into committee. On the first clause being read, Lord John Russell said, that as the line must, in any case, be arbitrary, it had been thought best to take the number which had received the sanction of the house in the former bill. Ministers would have liked quite as well fifty or fifty-five, sixty or sixty-five; but in fixing upon a number different from that of the preceding bill, they would have been acting on their own responsibility. After combating this clause with all the arguments that could be enforced, Mr. Croker, in accordance with the views of the opposition, moved, as an amendment, that the number fifty-six should be omitted. Lords John Russell and Althorp, however, repeated that the number had been adopted because it had been sanctioned in the preceding session. The former bill, they said, containing precisely the same number of disfranchised boroughs in schedule A, had been rejected by the lords; and it appeared of great importance to ministers that as little risk as possible should be run of its being again rejected by them, while at the same time they felt it to be of equal importance, to satisfy the country, that the great disfranchising principle of the former bill should be preserved. Mr. Croker’s motion was negatived; and then a similar discussion took place regarding the next clause, which enacted that thirty boroughs, to form schedule B, should in future send only one member to parliament. This was opposed on the ground that no reason was given why this number had been selected, and also on the ground that the principle of giving only one member was an inexpedient principle. Sir Robert Peel moved an amendment, that each of the boroughs in schedule B should continue to return two members; but this motion was also negatived by a large majority. The clauses giving members to various towns hitherto unrepresented, and those which united different places into one for electioneering purposes, were agreed to without much opposition, and without a division. The provision, also, that each of the three ridings of Yorkshire should return two members passed without opposition. Colonel Sibthorp made an ineffectual attempt to prevent the division of the county, but the clause was carried by a large majority. On the clause which provided that the limits of all places having the right of electing members, should be held to be such boundaries as shall “be settled and described by an act to be passed for that purpose in this present parliament,” Lord Althorp admitted an amendment, that the present act should not operate as a law until the boundary bill should have been passed. The provision, that where no particular returning officer was named in the schedule, the sheriff within whose jurisdiction the place lay should annually appoint such resident person as he thought fit to be returning officer, was strongly objected to; but the objections to the clause were not pressed to a division. The clause for dividing certain counties and giving two members occasioned much discussion. An amendment was proposed for the purpose of getting rid of it, and giving the four members to the undivided county. The principal support of this amendment was from the reformers, who opposed this part of the ministerial scheme on the ground that it was inconsistent with the main principles of the bill, as it narrowed the sphere within which aristocratic influence was to act, thus adding to its energy; and that it was a wanton and unnecessary interference with the ancient institutions of the country. Some members who had voted for this clause in the preceding session now declared themselves opposed to it in consequence of the extension of the comity franchise to tenants-at-will; while on

the other hand several members who had voted against it in the former session, conceiving that the division would do good by preventing contests and unsatisfactory compromises, now supported it. Sir Robert Peel said, that though he intended to vote for the clause, he wished to suggest that another arrangement might be made with respect to the right of voting for counties, which would simplify the operation of the bill, and improve it; namely, that wherever a right of voting accrued from property, of whatever nature, in any city or borough, the individual possessing such property should be allowed to vote for the city or borough, but not for the county. Having made that provision for cities or boroughs, he would continue the integrity of the counties, and propose that each county should return four members. He offered this suggestion _bona fide_, as an alteration that would simplify the operation of the bill; and though he did not mean to move it as an amendment, he would ask whether it was not a proposition that was likely to please all parties? Ministers defended the clause on the ground that it would greatly diminish the expenses of county elections, and thus contribute to the purity of the representation, while it would neither tend to throw the power of the elections into the hands of the rural voters exclusively, nor of large proprietors, as it had been objected. As for Sir Robert Peel’s proposition, there was the great objection which he had himself suggested; namely, that it was too great a distinction between the inhabitants of towns and those who were more immediately connected with counties. If the proposition succeeded, the consequence would be that many voters possessing freeholds in boroughs, which, as the bill now stood, would enable them to vote for counties, would be disfranchised. The original clause, however, was carried by an overwhelming majority. An amendment, intended to have a similar result with Sir Robert Peel’s proposal, was subsequently moved by Mr. Praed on the clause, to the effect that no county franchise should arise from the possession of property of any kind situated in a represented borough, and that forty-shilling freeholders in boroughs returning members should be entitled to vote for the borough members only; but this amendment was likewise negatived. No division took place on the clause giving three members to certain of the middle-sized counties, although it was denounced as monstrous and unjustifiable on any principle of fairness or common equity. In the preceding session, while the former bill was in committee, the Marquis of Chandos had succeeded in carrying as an amendment a provision which conferred the county franchise on tenants-at-will paying a rent of not less than fifty pounds per annum. Ministers had opposed this, but had been defeated; and they now, although they had made the provision part of the new bill, sought to get rid of it by an amendment which went to strike it out of the clause altogether. The amendment was moved by Sir Robert Heron, and supported by Lord Milton and Mr. C. Ferguson, but only thirty-two members voted for it, while two hundred and seventy-two supported what was now part of an original clause. A variety of amendments on the clause fixing the qualification of borough electors at ten pounds was moved by Mr. Hunt and others, but were all negatived. The clauses which regulated the formation of registers of the voters, the duration of elections, and the mode of polling, were carried without giving rise to much discussion. By the 20th of February the committee had gone through the different clauses, and then proceeded to take up the schedules, which it had been agreed should be postponed till the other provisions of the bill should be arranged. Mr. Croker argued that great inconvenience

and injustice would result, if the committee proceeded to determine what boroughs should stand in schedules A and B, before they had ascertained whether the calculations on which disfranchisement was made to depend were correct and uniform. In some boroughs, he said, game-certificates and yeomanry exemptions were included, while in others they were omitted: if the rule was not uniform it would be unjust. The fifty-six boroughs for schedule A, and the thirty for schedule B would come up to No. 86 in the list: Helstone No. 84; neither the yeomanry exemptions, nor the game-certificates for that borough had been included; if the former were added, Helstone would be No. 88; if the game-certificates were likewise added, it would be No. 89; in either case it would be raised above the line of disfranchisement. It was impossible for the committee to decide what boroughs ought to be disfranchised, until they had returns of the assessed taxes of each borough, specifying whether game-certificates and yeomanry exemptions were or were not included. The consideration of the schedule ought to be postponed till that information had been obtained. Lord John Russell admitted that there was a difference with respect to many boroughs, and that one uniform rule ought to be observed. Directions for that purpose had been given to the commissioners, and they had endeavoured to obtain returns comprehending the game-duties; but from some misunderstanding there still remained a few cases where the game-duties were omitted. He argued, however, that this was no reason for delay; and the house supporting him in his views, it was resolved to proceed. After a discussion on the principles and calculations on which the schedules had been framed, which led to no division, the committee proceeded to the particular boroughs, and the disfranchisement of the first fifty-two was agreed to without an amendment. The next was Appleby, in regard to which it was contended by the opposition that ministers had repeated the injustice which they had committed last session, by leaving out details which ought to have been introduced, which omission was made for the purpose of securing its disfranchisement. A motion was made for its exclusion from schedule A; but the committee having divided, it was decided that it should remain in the schedule. The last of the fifty-six boroughs to be disfranchised was Amersham, and Mr. Croker moved that Midhurst should take its place. No reason was offered why the one should be disfranchised and the other not; but Midhurst was saved by taking in an adjoining district. Alderman Waithman justified the disfranchisement of Amersham, because it was a corrupt borough, where there had been no election within the memory of man. But this had been the case equally at Midhurst, and yet it was decided by vote that Amersham should be No. 5G in schedule A, instead of Midhurst. Mr. Shiel, who wished to extend the disfranchisement in England, in order that Ireland might receive a larger number of members, moved that Petersfield should be taken out of schedule B and transferred to schedule A. If successful in this, he intended to follow up the motion by one regarding Eye, Wareham, Midhurst, and Woodstock. He conceived it impossible that his motion should be rejected, considering what had been done to Amersham, as that town had far higher claims to return a member than Petersfield, whether as regarded population, wealth, rental, or number of ten-pound houses. Lord Althorp admitted that he could not oppose the motion on principle, though he resisted it on the ground of expediency. Prudence, he said, required that the success of the bill in the house of lords should not be hazarded by sending up to their lordships a bill disfranchising a

greater number of boroughs than had been contained in that which they had rejected. Mr. Shiel withdrew his motion; and on the 28th of February the committee proceeded to the consideration of the thirty boroughs which were to form schedule B. Having thus disposed of the disfranchising clauses, the committee proceeded to schedule C, which gave members to places hitherto unrepresented. The only debate or division which took place in considering this schedule, was on the clause which proposed to confer eight members on the metropolitan districts: the Tower Hamlets, Finsbmy, Marylebone, and Lambeth. The Marquis of Chandos, after contending that to extend the elective franchise in that quarter would lead to a great excitement, and give the capital a preponderating influence over the rest of the country, moved an amendment, that the clause should be omitted. He was supported by Sir E. Sugden, Sir George Murray, and Lord Sandon, who argued that the provision was unnecessary, and far from being expedient. The clause was defended by Lords Althorp and John Russell, and Messrs. Macaulay and C. Grant, who, on the other hand, maintained that an increase to the metropolitan representation, was required both by justice and by the principles of the bill; and that the dangers apprehended from it were visionary, while those which would attend its refusal were real and unavoidable. On a division, the motion of the Marquis of Chandos was lost by a majority of three hundred and sixteen against two hundred and thirty-six. In the consideration of schedule D, which contained those new boroughs which were only to return one member, an unsuccessful attempt was made to include Stockton-on-Tees, and Merthyr Tydvil; but on the bringing up of the report, Lord John Russell informed the house that ministers had resolved to allow the latter place a member of its own: “treating it,” he said, “rather like an English town than a Welsh contributory borough.” By the 9th of March the committee had gone through the bill, and the report was considered on the 14th, on which day Mr. Croker put several resolutions on the journals without pressing them to a division, embodying the objections, not to the principles of the bill, but to the manner in which they had been applied. On the 19th the motion for the third reading of the bill was met by an amendment, moved by Lord Mahon, that it should be read a third time that day six months.

The amendment was seconded by Sir John Malcolm, and was followed by a debate which continued to the 22nd, in which old arguments, both for and against, were reiterated with deep earnestness. On a division, the bill was carried by a majority of three hundred and fifty-five against two hundred and thirty-nine; leaving a majority of one hundred and sixteen for ministers. On the 23rd the bill was finally passed; an amendment which went to raise the qualification to twenty pounds in Liverpool, and all the new boroughs, returning two members, having been negatived without a division.

DEBATES ON THE REFORM BILL IN THE LORDS.

When the reform bill had been thus carried through the commons a second time, the reformers began again to be apprehensive of its fate in the upper house, and to bring again into operation their various engines of clamour and intimidation. It was industriously reported abroad that ministers had been armed with a _carte blanche_ for the creation of peers, in order to carry the measure; but though they did not deny

it, it does not appear that any such power had been delegated to them. At all events the bill was laid before the house of lords without a single peer having been created, and it was read a first time on the 26th of March. The most important part of its reception consisted in the speeches of Lords Harrowby and Wharncliffe, who had led the opposition of last session, but who now declared their intention to vote for the second reading. The Bishop of London was also so impressed with the dangers hanging over the country, that he resolved to follow this example. On the other hand, the Duke of Wellington, the Earl of Carnarvon, and the Marquis of Londonderry, expressed their undiminished aversion to the measure. The second reading was moved on the 9th of April, and the debate was continued up to the 13th. Before the discussion commenced, the Duke of Buckingham gave notice that if there should be, as he trusted there would be, a majority against the second reading of this bill, he would bring in, after the Easter recess, a bill for the purpose of giving representatives to such of the large towns therein to be named, whose importance entitled them to representation; and also for the purpose of joining and consolidating the representation of certain boroughs which now elected members, so as to make room for the new representatives without adding to the members of the house of commons, and to extend the franchise in such a way as to prevent its abuse in boroughs. In proof of his sincerity, his grace moved the insertion of this notice on the journals of the house.

In moving the second reading of the reform bill, Earl Grey said, that he considered himself almost relieved from entering into discussion of its principles, because there were few of their lordships who did not now recognise those principles, and admit that some degree of change was necessary. After briefly mentioning the nature of the bill, its interesting object, the large majority that had sent it from the commons to the lords, and the support it had received from the people, he proceeded to notice the Duke of Buckingham’s intended motion for reform. His very notice, he said, admitted all the three principles of disfranchisement, enfranchisement, and an extension of the right of voting. He felt, therefore, justified in calling on the house to sanction the second reading of a measure founded upon a basis which was acknowledged to be just, even by those who opposed the measure itself; inasmuch as they would have an opportunity of proposing in the committee such alterations in its details as might appear necessary and expedient. The noble earl next proceeded to notice the alterations introduced into the bill, and to defend the ten-pound qualification from objections that had been raised against it. He concluded with an appeal to their lordships on the unjust attacks made on him for having proposed a measure which, in his opinion, was required by that duty which he owed to his sovereign and his country. He especially called their lordships’ attention to the awful silence on the part of the people now prevailing, and taking place of that outcry which first marked the progress of the bill. Silence, he said, might perhaps lead some to imagine that they were not viewing this measure with the same feelings of interest; but he cautioned their lordships against forming such an opinion. “Though the people are silent,” he added, “they are looking at our proceedings this night no less intensely than they have looked even ever since the question was first agitated. I know that it is pretended by many that the nation has no confidence in the peers, because there is

an opinion out of doors that the interests of the aristocracy are separated from those of the people. On the part of this house, however, I disclaim all such separation of interests; and therefore I am willing to believe that the silence of which I have spoken is the fruit of a latent hope still existing in their bosoms." Lord Ellenborough opposed the motion for the second reading, and moved as an amendment that the bill should be read a second time that day six months. His lordship admitted that the bill had passed the commons by a large majority, and that the majority was seconded by a large body of the people: but when he recollected how often material alterations had been made in the bill; that the qualification clause had been remodelled eleven times; that a town had been enfranchised at the very last moment; that among forty-six boroughs of the original bill there had been forty-seven changes; and that no such sweeping alteration had ever been made in the established constitution of a great country, he could not see any reason for adopting this last emanation of an ever-changing mind. There could be no doubt that there were many respectable persons whose opinions ought to be held in proper regard, who were anxious that some change should take place in our system of parliamentary representation. He contended, however, that if this bill passed it was clear, from the constituency which would be created by it, that parliament must be prepared to go further. It would be impossible, he said, to resist the demands of the most numerous and most necessitous class in the state: concession must proceed until universal suffrage was established. Lord Melbourne spoke briefly in favour of the bill, and the Bishop of Durham opposed it. At the same time, the latter said, he by no means considered that the rejection of the present measure implied a rejection of reform _in toto_; it was the duty of ministers to have proposed a measure calculated to satisfy both the party that was anxious for reform, and the party which felt alarmed at the consequences of great changes, while they had introduced a proposition which would gratify neither party. Earl Bathurst took the same view of the question: he had no objections to a bill for reform, but the present measure would make parliament worse than it had ever been. His lordship particularly called on the house to recollect the declaration which the lord-chancellor had made regarding the ten-pound qualification: that it was emphatically a subject for deliberation in committee, and for such alterations as their lordships should think fitting. Now, however, it was not to be touched, though it was a qualification opposed to the recorded opinions of its present patrons, as well as of the people. The Earl of Haddington had changed his opinion on the subject of reform. On the former occasion, he said, till within a few days before the debate, his mind had been made up that the bill should be read a second time, because he conceived it expedient that the question should be arranged by the house as soon as possible. He had abandoned these sentiments from a conviction that, in the existing state of feeling in the country, anything like an amendment in the bill would not be practicable. Lord Gage also declared that he had changed his opinion. He thought it impossible to prevent the people from having a reform, and by refusing to go into committee, their lordships might deprive themselves of the opportunity of introducing such amendments as they wished into the bill. On the other hand, the Earl of Wicklow conceived that the reasons which had led to the rejection of the bill of the last session were equally as potent for rejecting the present; and he therefore continued his hostility to it. The Earl of Shrewsbury, a Catholic peer, distinguished

himself while he supported the bill by a violent attack against the Protestant bishops. The Earl of Mansfield objected to the present bill, as he did to the former. The Earl of Harrowby had already announced that he would vote for the second reading; but he had yet to state his reasons for this change of sentiment, he having been one of the most distinguished opponents of the bill of last session. In doing so, he denied that the sentiments he had delivered against the former bill were those of a man determined to resist, under all circumstances whatever, the considerations of parliamentary reform. On the contrary, the opinion which more than another he was anxious to express was, that they should not treat the present bill as they had treated the last; that though they had then acted right in rejecting the bill, they would not be warranted to do so again; and that they could not hope again successfully to resist a measure which the house of commons had sanctioned a second time by a large majority, and in favour of which the people of England had expressed a decided opinion. It was for this reason that he had prepared a resolution by which the house would pledge itself, in the then next session, to take into serious consideration some plan for extending the franchise to his majesty’s subjects, and for correcting the abuses which had crept into the representative branch of the constitution. He was on the point of moving this resolution, when he was persuaded by some noble friends that to do so then would do more harm than good; that it would be better to wait till the excitement of the public mind had been somewhat allayed before a more moderate measure of reform than that brought forward by ministers should be submitted to parliament. He yielded to the suggestion, hoping that the interval between the two sessions would afford the public and their lordships time to consider maturely the merits of the question, and that both would see that, if the ministers’ plan were adopted, it would prove injurious to all existing interests. In this he had been disappointed; there had been time enough to allow a reaction to have manifested itself; but it could not be denied that, notwithstanding the potent objections which had been urged against the bill, no such reaction had occurred. On these grounds, with others, his lordship said he would vote for the second reading. He was followed by the Duke of Wellington, who said that he could not shift into the course which the Earl of Harrowby, and those who thought with him had adopted. Why he could not, he explained at great length; and he afterwards descanted at large upon the objections which he had to the bill itself. It was bad, he said, because it went to overturn the whole established system of representation; it destroyed for the mere pleasure of reconstructing: it totally revolutionised the representation of Scotland, and put an end to all the arrangements which, three years ago, had been entered into for the final settlement of the catholic question. It put an end, also, to that most valuable principle of our existing constitution—the principle of prescription—which sanctioned the descent, and secured the possession of all kinds of property in this country. It went to destroy a number of boroughs—some holding by prescription, and some by charter—and for no reason whatever, except that such was the will of the minister of the day. Lord Wharncliffe, who had moved the amendment which threw out the former bill, had now come to the conclusion that the danger of rejecting the bill was greater than that of taking it into consideration; and that, by going into committee they might get rid of those parts of it against which a strong objection was felt; and, at all events, would be enabled more thoroughly to weigh its provisions. The

effect of rejecting the bill, in his opinion, would be to place all those who voted against the second reading in a perilous situation with the country. The Duke of Buckingham opposed the bill. His grace introduced no new argument, but urged the house at all costs to resist reform in every shape. He severely animadverted upon the speech of the Earl of Shrewsbury, for attacking the constitution and the ministers of the protestant religion. The Bishops of Lincoln and Llandaff, who had opposed the last bill, now announced their intention of voting for the second reading; at the same time they did not pledge themselves to adopt the measure as a whole. On the other hand, the Bishop of Exeter announced his intention of giving the bill his decided opposition. His speech gave occasion to an angry episode, founded on a somewhat common occurrence. It was generally believed that the Times newspaper, which had recently distinguished itself by great abuse in favour of the bill, was not altogether excluded from the confidential communications of ministers. The Bishop of Exeter, in descanting on the tone and the temper of the press, spoke of some articles in this journal as “breathing the inspiration of the treasury.” On the following evening Lord Durham, son-in-law of the premier, assuming that he was the party pointed at, attacked what he called “the bishop’s gross and virulent invective—his malignant, calumnious, and false insinuations—his well-known powers of pamphleteering slang.” Here the noble lord was called to order, and the Earl of Winchelsea moved that the words “false insinuations” and “pamphleteering slang” should be taken down. After some observations from Earl Grey, Lord Holland, and the Duke of Buckingham, Lord Durham went on to state that he had not the slightest objection to the words being taken down, and denied the imputations cast upon him. The Marquis of Lansdowne argued in favour of the measure; in doing which he denied that he, or the rest of his majesty’s ministers, were introducing new doctrines. They wished, he said, to go back to the elements of the constitution; and he argued that there was nothing contrary to the principles of that constitution, in extending the right of voting to those places which had become the depositories of that knowledge, and the possessors of that influence on society, to which the wisdom and policy of this government had always endeavoured to attach itself; or in disfranchising small and unimportant places, and enfranchising others of importance. As to the apprehensions, he continued, that the new constituency were likely to be governed in their choice of representatives by factious or revolutionary motives, and, above all, by anything like a desire to disturb the tranquillity of the country, they were groundless. In moments of great excitement it might be so; but the class of persons on whom the franchise was now to be conferred would generally feel themselves flattered on being consulted by their superiors, and would in the end rely on their judgment. His belief was that their choice would be governed by a desire to elect such persons as would advocate measures contributing to the public tranquillity; for, having acquired their property by their own industry, they had as deep a stake in the country’ as any noble baron who derived a splendid fortune from his progenitors. Small fortunes were as valuable to them as the ample incomes of any of their lordships. Their lordships might convey away their land, and go to another country to avoid the evils of a revolution; but to the professional man, who depended upon the peaceful exertions of his talents; to the mechanic, who depended upon his weekly wages; to the annuitant and small proprietor, who depended upon their half-yearly and quarterly incomes—revolution,

or even agitation, would bring greater ruin than could come upon their lordships, even by the confiscation of their estates. Lord Wynford, in opposing the bill, said that those who were voting for the second reading, in the hope of introducing amendments in committee, were acting a very foolish and dangerous part. They might beat government on different clauses; but all that was done in the committee might be undone on bringing up the report. Lord Eldon, on the same side, said that no man was or could be an enemy to reform; but, he thought, the first duty of every peer was to consider whether what was proposed was or was not reform; whether it was a measure which the people ought to expect, and which would confer any additional happiness on those for whom it was intended. He had opposed reform for forty years, because he had seen no plan which, in his opinion, would improve the condition of the people: and this last was so vicious in its principles and details, that it would be impossible to carry it into effect with any safety to the institutions of the country. Lord Tenterden likewise declared his continued hostility to the bill; and he went so far as to say that he would never enter the doors of the house again if the bill should be carried, “after it had become the phantom of its departed greatness.” The Bishops of Rochester and Gloucester likewise expressed their determination to vote against the bill; and the latter took occasion to animadvert, with pointed but just severity, on the attack which had been made by the Catholic Earl of Shrewsbury on the ecclesiastical bench. The Earl of Carnarvon opposed the motion, and Viscount Goderich spoke in favour of it. They were followed by the lord-chancellor, who referred to the petitions which had been addressed to the house, the resolutions adopted at public meetings of merchants and bankers, and the composition of the majorities and minorities in the house of commons, to show that the opinion of property, as well as of members, was in favour of the measure, and that the feeling of the people had in no degree subsided. Lord Lyndhurst said that he had not heard or seen anything to convince him that he had acted erroneously in voting against the principles of the former bill; and as the present bill was admitted to be the same, he should vote against the second reading. Earl Grey, in his reply, repeated the answers which had already been put forward to the views taken of the bill by its opponents, and denied the charge of having excited the country. On the subject of the threatened creation of peers, which had been so frequently alluded to, his lordship said that the best writers on the constitution admitted that, although the creation of a large number of peers for a particular object was a measure which should rarely be resorted to, yet in some cases, such as to avoid a collision between the two houses, it might be absolutely necessary. For many reasons he was averse to such a scheme; but he believed it would be found that in a case of necessity, like that which he had stated, a creation of peers would be justifiable, and in accordance with the most acknowledged principles of our constitution. On a division, the second reading was carried in favour of ministers by a majority of nine, the numbers being one hundred and eighty-four against one hundred and seventy-five.

After the reform bill had been read a second time, the lords broke up for the Easter recess. Previous to their breaking up, however, the Duke of Wellington thought proper to enter a protest against the second reading on the journals. This protest embodied all the objections urged against the bill; and it was signed by seventy-four

other peers, including the Dukes of Cumberland and Gloucester. The committee was appointed the first day after the Easter recess.

DISTURBED STATE OF THE NATION.

{WILLIAM IV. 1832–1833}

The interval which elapsed before the reassembling of parliament was a very memorable one in the annals of the country. Every association and political union, tremblingly alive for the fate of the bill, was on the alert, it being conceived that it was in imminent clanger of being lost in committee. At Leeds, Birmingham, Liverpool, Manchester, Sheffield, Edinburgh, Glasgow, Paisley, Dundee, as well as throughout the south of England, meetings were held, at all of which resolutions were passed expressing confidence in Earl Grey and his colleagues; and petitions were got up to the king and the house of lords, beseeching them to pass the bill unmutilated. In the counties of Warwick, Worcester, and Stafford, all the associations agreed to meet at the foot of Newhall Hill, and an immense assembly was collected on the day appointed, when a petition to the house of lords was carried, “imploring them not to drive to despair a high-minded, generous, and fearless people; nor to urge them on, by a rejection of their claims, to demands of a much more extensive nature; but rather to pass the reform bill into a law, unimpaired in any of its great parts and provisions, more especially uninjured in the clauses relating to the ten-pounds franchise.” At Birmingham, the council of the union declared its sittings permanent until the fate of the bill should be decided. In the metropolis, an extraordinary assembly of the national union took place. Mr. Hume was in the chair, and various resolutions were agreed to, all urging the necessity of the bill being passed without alterations; while a petition to the house of lords stated that, in case of its mutilation or rejection, “there was reason to expect that the payment of taxes would cease; that other obligations of society would be disregarded; and that the ultimate consequence might be the utter extinction of the privileged orders.”

REASSEMBLING OF PARLIAMENT.

Parliament reassembled after the Easter recess on the 7th of May. The house of lords then went into committee on the reform bill, no attempt having been made by the opposition to move any obstructions to it. In the committee, Earl Grey stated that the house would probably be inclined to follow the course which had been adopted by the commons; namely, to dispose of the disfranchising clauses, leaving the schedules for future consideration. He proposed that the number fifty-six should not be specified, but that their lordships should come to a successive vote on each individual borough as part of the clause. He thought this the best method of obviating objections which had been made to the clause as it now stood. Lord Lyndhurst, however, thought it would be still more convenient to postpone the consideration of the first clause altogether. If this were done, he should likewise propose the postponement of the second clause; and he would take this course for the purpose of entering on the consideration of the boroughs and places to be enfranchised—a matter which, he thought, ought to be discussed before the house entered on the

question of disfranchisement. His lordship admitted that he considered the second reading of the bill to have fixed the three principles of disfranchisement, enfranchisement, and extension of suffrage; but he contended that the house was not fettered, in the slightest degree, as to the point to which these principles were to be carried, although he had no hesitation in saying that, after all that had passed in both houses of parliament, and looking at the state of the country, and the expectations that were abroad, neither he, nor those with whom he acted, were disposed to suggest any alterations which would render the measure unsatisfactory to intelligent reformers. He observed, that Lord John Russell had said on a previous day, “Let us first agree as to what towns shall be enfranchised, and then we shall see what is to be the extent of disfranchisement—what alterations it may be necessary to propose.” He would proceed on the same principle. It was not prejudging the question of disfranchisement; for their lordships would afterwards measure the extent of disfranchisement by the extent to which they should have carried the principle of enfranchisement. On these grounds, therefore, he moved that the first and second clauses of the bill should be postponed. The lord-chancellor said that, although Earl Grey had proposed to omit the number, that had no connection whatever with any intention not to propose the disfranchisement of all the fifty-six. There would be an inconvenience attending the clause, if it were proposed at once that fifty-six boroughs should be disfranchised, and therefore it had been proposed to leave out the number, but with the certain intention of proposing the insertion of every one of the fifty-six as they went on. The present proposition, however, was of a different character, and considering by whom it was made, and likely to be supported, he could view it in no other light than as a negative of the most important part of the bill. The amendment was supported by Lords Harrowby, Wharncliffe, Winchelsea, and Ellenborough, and the Duke of Wellington, and others, on the ground that its object was not to defeat schedules A and B. Several of these noble lords deemed it expedient to enter on a defence of their character for integrity and fair dealing in thus supporting the amendment; but the Duke of Newcastle avowed boldly that he gave it his support, as he would any other measure likely to frustrate the bill. Lord Holland argued that the proposition was inconsistent with the decision to which that house had come on the second reading; being in reality a proposition against the principles of the bill. The Earl of Harewood thought, that as the bill had passed the second reading, and entered the committee, it ought to be dealt with fairly; and if he believed that the motion now before the house contained anything of a sinister character, he would not support it. If ministers knew the nature of the amendments which would be proposed if the postponement should be agreed to, much of their objection to the proposition would be removed. They were under the impression that the object of the amendment was to defeat schedule A; but he believed that no such intention was entertained; if it were, he would not support it. It was his belief that the amendments which would be proposed would comprise the whole of schedule A. Earl Grey, however, asserted that nothing could have been devised better calculated to defeat the bill than this amendment; and he would state at once that, if it were carried, he would consider it fatal to the bill. He was pledged to the principles of disfranchisement, enfranchisement, and the extension of the qualification. With respect to the two first, he was ready to listen to any suggestions which might be made with a view of

preventing injustice in details, but he would not consent to any reduction of the extent of either disfranchisement or enfranchisement. His lordship also stated that he would resist with the most fixed determination any proposition which, under the pretence of regulation, would have the effect of raising the qualification. These things being fixed, he was so far from considering the proposed motion of little consequence, that it appeared to him of the greatest importance. If it did not subvert the principle of the bill, it materially affected it; and therefore it was impossible that he should give it his assent. He was unable to understand why enfranchisement should be proceeded with before disfranchisement; he might reverse the proposition, and say, that the amount of enfranchisement could not be ascertained till the extent of disfranchisement was settled. A noble lord had expressed a hope that ministers would confide in the peers on the other side of the house, to grant a proper measure of reform to the people; had he observed any such disposition, no one would have been more ready than himself to have met it in a proper spirit; always recollecting that he was irrevocably fixed to the bill. Another noble lord had said, that if any alteration should be proposed which would defeat the principles of the bill, ministers might reckon upon many coming over to them from the opposite side: he could not rely on such a hope consistently with his duty to his king, his country, and himself. It was his opinion that if the present motion should be carried, there would be a difficulty in bringing the bill to a successful issue; and if it should, it would then be necessary for him to consider the course he should be constrained to adopt. At length the house divided, and ministers were left in a minority, the votes for Lord Lyndhurst’s amendment being one hundred and fifty-five, and those against it, one hundred and sixteen.

On this defeat of ministers, Earl Grey immediately moved that the house should resume; and stated that he would then move that the further consideration of the bill be postponed till Thursday, the 10th. Lord Ellenborough expressed his regret that ministers should interpose delay; and took the opportunity of detailing the amendments which his party, after serious consideration, intended to propose. These consisted in a disfranchisement of one hundred and thirteen boroughs, their privileges to be distributed among other places; a prohibition of persons to vote for counties in respect of property situated in boroughs; the adoption of a clearer and more certain mode of ascertaining the genuineness and value of holdings; and the retention, not only of the ten-pound qualification, but of scot and lot where it existed.

Having postponed the further consideration of the bill, Earl Grey and the lord-chancellor proceeded to Windsor, and tendered his majesty the alternative of either arming the ministers with the powers they deemed necessary to enable them to carry through their bill—namely, a creation of peers—or of accepting their resignation. The ministers seem to have expected that he would have adopted the former alternative; but the king hesitated on account of the great number requisite, and the danger of such a precedent. He did not give his answer till the next day, when he informed Earl Grey that he had determined to accept his resignation rather than have recourse to the only alternative which had been proposed. Ministers then resigned _en masse_; and on the 9th Earl Grey in the lords, and Lord Althorp in the commons, announced that the ministry was at an end, and that they held their offices

only till their successors should be appointed. Earl Grey in doing so moved that the order for going on with the committee next day should be discharged; and he did not think it necessary to name another day for that purpose. The Earl of Carnarvon strenuously resisted this proposition: the house would not do its duty, he said, to the country or the sovereign, if it left them in this extraordinary state, by suspending so important a subject as reform. The motion for taking the committee on the following Monday was agreed to.

In the commons, on the announcement of the resignation of ministers, Viscount Ebrington gave notice that he would next day move an address to the king on the state of public affairs, and that he would likewise move a call of the house, that he might “guard against backsliders and time-watchers,” and show the people who were their honest and consistent representatives and who were not. In pursuance of this notice, on the 10th of May his lordship moved, “That an humble address be presented to his majesty, humbly to represent to his majesty the deep regret felt by this house at the change which has been announced in his majesty’s councils by the retirement of those ministers in whom this house continues to repose unabated confidence. That this house, in conformity with the recommendation contained in his majesty’s most gracious speech from the throne, has framed and sent up to the house of lords a bill for a reform in the representation of the people, by which they are convinced that the prerogatives of the crown, the authority of both houses of parliament, and the rights and liberties of the people, are equally secured. That, to the progress of this measure, this house considers itself bound in duty to state to his majesty that his subjects are looking with the most intense interest and anxiety; and they cannot disguise from his majesty their apprehension that any successful attempt to mutilate or impair its efficiency would be productive of the greatest disappointment and dismay. This house is therefore compelled, by warm attachment to his majesty’s person and government, humbly, but most earnestly, to implore his majesty to call to his councils such persons only as will cany into effect, unimpaired in all its essential provisions, that bill for the reform of the representation of the people, which has recently passed this house.” The motion was opposed by Mr. Baring, who, before proceeding to speak against it, expressed a hope that Lord Althorp would give some explanation of the nature of that advice which ministers had tendered to the king, and his majesty’s refusal of which had led to their resignation. Lord Althorp declined answering, and Mr. Baring then went on to say that the house was thus left in utter ignorance. He asked on what facts, therefore, was the proposed address to be rested? Lord Althorp, in reply, said, that he had no objection to state plainly that the advice which ministers had given to the king was, that he should create as many peers as would enable them to carry the reform bill through the house of lords in all its efficiency. It was true he had treated a similar proposition to Lord Lyndhurst’s, when made in the house of commons, as a matter of small importance; but after the decision to which the lords had come, there was no hope left of carrying the measure. From that moment the bill had passed into the hands of its declared enemies; and ministers had to choose between two alternatives,—either to resign immediately, or to tender such advice as would place them in a situation in which they might be responsible for the further progress of the bill; they had adopted the latter alternative, and their advice having been rejected, all

that was left them was to resign. Mr. Hume, in supporting the proposition, stated that it did not go far enough. Lord Morpeth supported, and Sir Robert Peel opposed the motion. The latter said, that the first resolution implied a complete confidence in the existing government. He could not consent to this; with reference to the general course they had taken, he could not say that they deserved his confidence. With respect to the reform question, and with reference to some other points, he was decidedly opposed to the course which the government had pursued. Mr. Macaulay, in supporting the proposition, contended that the house had a right, with respect to the prerogative of the sovereign in the choice of his ministers, as with regard to all the other prerogatives of the crown, to offer its respectful advice. The prerogative vested in the crown of creating peers, for the purpose of carrying any public question, was a valuable and useful power, the existence of which was absolutely necessary, in order, on important questions, to obviate great and pressing inconveniences. He argued, also, that there existed a strong necessity for counterbalancing, by a creation of peers from the Whig party, the number of peers which, during the last forty years, had been made from the Conservative party. There could not be a strong objection to the creation of fifty peers in one day, when no objection had been raised to the creation of two hundred in the course of a generation by the one party that held power during that period. He heartily concurred in the advice which ministers had given to the king, and he regretted it had not been taken: unless ministers were recalled, the reform bill would be lost. On a division, the resolutions were carried by a majority of two hundred and eighty-eight against two hundred and eight.

FAILURE OF THE ATTEMPTS TO FORM A NEW ADMINISTRATION—MINISTERS RECALLED, ETC.

During these proceedings in parliament great agitation prevailed throughout the country. The political unions convened large assemblies in the open air, and violent resolutions were passed, which threatened a dissolution of society. Addresses were voted to the king, praying him to create as many peers as might be necessary, while others were sent to the commons, praying them to stop the supplies. One meeting, which styled itself “a meeting of the inhabitants of Westminster,” assured the king, that, unless their advice was complied with, “tumult, anarchy, and confusion would overspread the land, and would cease only with the extinction of the privileged orders,” The national political union resolved to present a petition, praying that, till the bill passed, no supplies should be allowed to go into the hands of the lords of the treasury, but should be paid over to commissioners named by the house of commons; this course was specifically recommended to them, on the ground that it was taken from “that admirable resolution adopted by the house of commons in 1642.” The national union also resolved “that the betrayal of the people’s cause was not attributable to Lord Grey, or his administration; but to the base and foul treachery of others; that meetings be recommended in every comity, town, and parish throughout the kingdom; which, by inducing compliance with the unanimous wishes of the people, may prevent the mischief that would otherwise result from the general indignation; that a petition be presented to the house of commons, praying the appointment of commissioners to receive the supplies; and that, until the bill pass, they be not managed by the lords of the treasury.” The common-council met at

Guildhall, and passed a number of resolutions, expressing their mortification and disappointment at the distressing communication made by ministers, that his majesty had refused them the means of carrying the reform Dill through the house of lords; declaring that the advisers of such a refusal had put to hazard the stability of the throne and tranquillity of the country; and petitioning the commons to withhold supplies till the reform bill was carried. Tire livery of the city also met, and passed a similar set of resolutions; adding, that “they viewed with distrust and abhorrence attempts, at once interested and hypocritical, to delude and mislead the people by pretended plans of reform, promised or proposed by the insidious enemies of all reform.” The speeches at this meeting dared any administration to assume the reins of government, without undertaking to carry the whole bill. The Duke of Wellington was particularly censured by the speakers: nor did his majesty himself escape censure for yielding to domestic influence, and following the advice of pernicious counsellors. The majority of the house of lords, however, was more particularly attacked: it was said, they were men who would mix blood with corruption; that they were friends of every despotism; and that they were representatives of Miguel and of Ferdinand, of Russian lords and German ladies. Similar meetings were held in Westminster, Southwark, Marylebone, St. Paneras, and Paddington. At Birmingham also, the news of Earl Grey’s resignation had no sooner arrived, than the inhabitants assembled at Newhall Hill, and a petition was voted to the house of commons, which, in addition to a prayer that the supplies might be stopped, contained this ominous sentence: “Your petitioners find it declared in the bill of rights that the people of England may have arms for their defence, suitable to their condition, and as allowed by law; and they apprehend that this great right will be enforced generally, in order that the people may be prepared for any circumstances that may arise.” Some of the inhabitants defied the laws of their country by exhibiting printed placards in their windows to the effect that no taxes would be paid until the reform bill had passed. Similar meetings were held, similar petitions were got up, and similar language used at Manchester, Liverpool, and in various parts of Scotland and Ireland. The annals of England, indeed, clo not present a more alarming period than the interval between the 9th and the 16th of May. The language used at the numerous meetings indicated the bitterness of the disappointment which the people, or at least a certain portion of the people, felt, and their determination of having “the bill, the whole bill, and nothing but the bill,” be the cost what it might. At a public meeting at Paddington, Mr. Hume told the multitude, “that military were marching upon the metropolis; and he asked whether, when other nations were free, they would submit to walk the streets with the brand of slavery upon them? whether they were prepared to bend before a military yoke?” He added that there were one hundred and fifty peers against them, but he did not know how many women, though he heard there were some. This allusion to the queen was immediately followed by groans; and shortly after her majesty, while taking an airing, was grossly insulted by the populace. In fact the king himself, at this period, learned the true value of the shoutings which had attended him as the personal protector of the reform bill. In one of the metropolitan unions a member was loudly applauded for declaring that till the reform bill was passed there was no William IV., but only a Duke of Clarence. The queen, also, was dragged forward, as an active enemy of the bill, to be made the theme of atrocious

insult.

In the meantime the king found a difficulty in forming an administration. As soon as he had resolved to accept the resignation of his cabinet, he sent for Lord Lyndhurst, desiring that nobleman to obtain the opinion of parties respecting the advice which he had rejected, and also authorising him to adopt measures for the formation of a new ministry. At the same time his majesty declared, that “extensive reform was necessary, and was the express condition on which such a ministry must be based.” Lord Lyndhurst, on receiving his majesty’s commands, immediately waited upon the Duke of Wellington. The sentiments of his grace on the subject of reform had been fully and openly declared; but he, nevertheless, was found willing to make large sacrifices, and to encounter any obloquy, in order to extricate his majesty from embarrassment. He desired no office, he said, much less that of prime-minister; yet if necessary for the king’s service, he was ready to serve in any way that might be thought fit. After some consultation, these noble lords considered it advisable to offer the first place to Sir Robert Peel. He was asked if he would accept the office of prime-minister; on the clear understanding that he must carry through a measure of extensive reform, in fulfilment of his majesty’s declaration? Sir Robert replied that by an “extensive reform” he assumed to be understood all the principles of the bill, and that under such a condition, it was impossible to accept office: hostile as he uniformly had been to every plan of extensive reform, he felt that he could be of no service to the king or to the country. Lord Lyndhurst communicated the nature of his commission to several other influential persons, and they were not unwilling to take subordinate situations, but no one came forward as a leader. In the meantime Lord Ebrington’s motion interposed insurmountable difficulties in the way of negotiations. The new ministry was of necessity to be sought for among the opponents of the bill; office must be accepted in defiance of the lower house; and the utter hopelessness of any change from a dissolution of parliament was evident from the agitation already distracting the country. Lord Lyndhurst, therefore, was compelled to inform his majesty that the commission with which he had been entrusted had failed. The king was now reduced to the necessity of renewing his intercourse with his former ministers. On the 10th Earl Grey announced in the house of lords that he had that day received a communication from his majesty, though of too recent a date to be followed by any decided consequence. Both houses adjourned to the 17th; but before the commons separated, a debate took place on the presentation of the London petition, which for boldness of invective and declamation was scarcely ever surpassed. It turned chiefly on the supposed conduct of the Duke of Wellington, and some others, in accepting office under the peculiar circumstances of that period. On the 17th, however, the lords had no sooner met, than the Duke of Wellington and Lord Lyndhurst gave an explanation of their conduct in this matter. The Duke of Wellington remarked:—“When his majesty found that he could not consistently with his duty to the state, follow the advice of his confidential servants, so little communication had he with men other than his responsible advisers, that he had had recourse to a nobleman, whose judicial functions took him almost out of the line of politics, to inquire whether means existed, and what means, of forming an administration on the principle of carrying into execution an extensive reform. That

nobleman communicated to me the difficulties in which his majesty was placed, in order to ascertain how far it was in my power to assist in extricating him from them. With this view, I thought it my duty to institute similar inquiries of others, the rather as I was myself as unprepared as his majesty for the advice which his ministers had tendered, and for the consequences which had ensued from its being rejected. On inquiry I found that there was a large number of most influential persons not indisposed to support a government formed to aid his majesty in resisting the advice tendered to him by his late administration. Under this conviction I attended his majesty; and my advice to him was, not that he should appoint me Iris minister, but certain members of the other house of parliament. So far from seeking office for myself, I merely named those persons I thought best qualified for the service; adding, that, for my own part, whether I was in office or out of office, he and those persons might depend upon my most strenuous support. The object of this advice and tender of assistance was to enable his majesty to form an administration upon the principle of resisting the advice which he had just rejected. These are the first steps of the transaction; and I believe they show that, if ever there was an instance in which the king acted with honesty and fairness towards his servants, and if ever there was an instance in which public men, opposed to those servants, kept aloof from intrigue, and from the adoption of all means except the most honourable, in promoting their own views of the public weal, this was that individual instance; and I will add with reference to myself, that these transactions show that, so far from being actuated by those motives of personal aggrandizement, with which I have been charged by persons of high station in another place, my object was, that others should occupy a post of honour, and that for myself I was willing to serve in any capacity, or without any official capacity, so as to enable the crown to carry on the government." Lord Lyndhurst, in explaining the part he had taken in the matter, bitterly complained of being calumniated by the press, which, he said, now reigned paramount over the legislature and the country. "As far as I am myself concerned," he said, "I despise these calumnies. They may wound, however, the feelings of those allied to me by the dearest ties, and so far they are a source of pain to myself; but apart from the feelings of others, I hold them in the utmost scorn." Several noble lords, although they had in no way been connected with the transactions which had been explained, declared that the conduct of the Duke of Wellington had been high-minded and disinterested. He had been hunted down day after day because he had dared to become minister; and it turned out that he had neither accepted nor sought office. Earl Grey expressed his surprise that the Duke of Wellington and Lord Lyndhurst should have indulged in violent invective against the reform bill and ministers, and "dinned their lordships' ears" with denunciations of the measure, and declarations that the bill, instead of saving, would tend to the destruction of that house and of the monarchy. He thought differently. There were clangers, not imaginary or hypothetical, but substantial and imminent, both to that house and to the monarchy, to be apprehended from proceedings which tended to a collision between the hereditary and representative branches of the constitution. He concluded by declaring that his continuance in office must depend on his conviction of his own ability to carry into full effect the bill on their lordships' table, unimpaired in principle and all essential details. The Earl of Carnarvon said, that if he could venture to make any comment on the reasons

assigned for the proceedings of ministers, he would say that they had hurried on in their violent course, because they feared that if their opponents were permitted to introduce their measures, not all the power and influence of ministers could have produced a collision between the two houses. It was his duty, as the continued day for the committee had been fixed on his motion, now to get rid of it. He therefore moved that “the order for the committee on the reform bill be discharged.” He added:—“Thus I leave it to other noble lords to do their dirty work.” The order was accordingly discharged.

On Friday, the 18th of May, on the assembling of the peers, the Earl of Harewood asked Earl Grey whether it was yet settled that ministers were to continue in office? His lordship answered, that in consequence of having received the king’s request to that effect, and in consequence of now finding himself in a situation which would enable him to carry through the bill unimpaired in its efficiency, he and his colleagues did remain in office. He moved that the committee on the bill, under these circumstances, should be taken on Monday. The Earl of Harewood continued, that he had understood the continuance of Earl Grey in office depended on the power he should receive to carry the reform bill—a power which might be conferred by the creation of peers, or by the act and will of certain lords in seceding from their opposition to the bill. In the choice of these two evils, it was his duty to select the lesser. He had opposed the bill on the second reading, and he would likewise have opposed many of its details in the committee, but the wiser course would be now to withhold further opposition to the bill, rather than render the calamity of creating a great number of peers unavoidable. But though he adopted this course, let it be understood that it was by compulsion, and with a feeling that he never would again enjoy an opportunity of uttering in that house one word in an independent form. Bidding farewell to freedom of debate, let those who had brought this infliction on the country be responsible for their acts when the nation came to its senses. On the other hand, the Earl of Winchilsea, while he admitted that the independence of the house was at an end, and that their lordships might be pointed at with scorn, as belonging to a body which went through the mockery of legislative functions while it was denied all legislative power, expressed his determination still to offer every possible opposition to the bill. Earl Grey had not yet stated in what shape the power of carrying the bill had been conferred; and Lord Wharncliffe, conceiving that before any peer could decide on the course he would adopt, it was necessary to know, put the question direct to him, whether their deliberations were to be carried on under the immediate threat of a creation of peers? or whether it was to be understood that a certain number of peers would absent themselves from the house on the occasion of the discussions that might ensue upon the bill? Earl Grey replied, “I do not feel myself called on to answer the questions which have been put to me by the noble baron. I have already stated to your lordships that I continue to hold office under the expectation that the bill will be successfully carried in its future stages through this house. I do not consider that the noble lord has any right to call on me for any further explanation; and I will add, that I wish to be bound only by what I state myself.” Lord Wharncliffe rejoined, that he could come to no conclusion as to what course he should take until he saw more clearly the real position in which their lordships were placed.

The noble earl opposite had no right to call for any statement as to the course his opponents meant to pursue when he hesitated to communicate his own. The Earl of Carnarvon repeated Lord Wharncliffe’s question, whether it was intended to create peers? but the minister replied that it was a question which ought not to be put, and one which he would not answer. The motion for going into committee on Monday was agreed to.

Although ministers, however, refused to give any answer as to the intended creation of peers, it was soon known that this power was assured to them—at least, as an alternative or an expedient. Sir Herbert Taylor, in the name and by the authority of the king, wrote a circular note to the opposition peers, stating his majesty’s wish that they should facilitate the passing of the bill by absenting themselves from the house when any important part of the measure to which they could not consent came under discussion. Such a request implied that his majesty desired it, as the only means of avoiding the creation of a number of peers; and the opposition lords,—that is, the majority,—understanding the hint, were thus compelled to abandon for a time their rights and duties as legislators. During the remainder of the discussions on the bill, therefore, not more than between thirty or forty attended at a time. The king and the lords were equally opposed to this measure, but both were compelled to bend to the will of the house of commons.

A similar announcement to that which Earl Grey made in the lords was made in the commons by Lord Althorp. This announcement stopped another address to the king in the house of commons, which Lord Milton intended to have brought forward, and furnished to Sir Robert Peel an opportunity of explaining the share he had taken in the late negotiations to form a new administration.

REFORM BILL PASSED.

{WILLIAM IV. 1832–1833}

The committee on the bill was resumed on Monday, the 21st of May, and, as was natural, it now passed rapidly through the upper house. The inverted order of the schedules, taken up at Lord Lyndhurst’s suggestion, was adopted, though in a very different spirit from that which was in the noble mover’s mind. Schedule C was voted at the first sitting up to the Tower Hamlets; and next day the clauses on the Tower Hamlets, to which so many objections had been raised, were passed. Lord Ellenborough wished the county of Lancashire to be divided into three districts, each retaining two members, he conceiving that as the bill now stood the agricultural interest of that county would be utterly helpless; but there were only fifteen peers who ventured to vote with him, while seventy-five adhered to the bill. The bill, in fact, passed, with some few slight verbal alterations, on the 4th of June, one hundred and sixty voting for it, and twenty-two against it. The bill was now ordered back to the commons, and the amendments of their lordships having been agreed to on the following day without any discussion regarding their merits, the royal assent was given to the bill by commission on the 7th of June.

IRISH AND SCOTCH REFORM BILLS PASSED.

It was easy to foresee that the English reform bill having passed, those relating to Scotland and Ireland would be equally triumphant. Deliberation was, in point of fact, at an end. Both bills had been read a first time, and had awaited on the table of the house of commons the fate of the English bill in the house of lords. The bill relating to Scotland was read in the commons on the 21st of May, the day on which the restored ministry resumed the committee in the lords on the English bill. No resistance was made to the second reading, the opposition knowing that it was hopeless, and feeling assured that this measure must follow as part of the general scheme, all the elements of which had triumphed in regard to England. Various amendments were moved in the committee, but they were all rejected by large majorities, and it passed the third reading unmutilated. In the house of lords also, as in the commons, no opposition was made to the second reading, and it passed that house on the 13th of July, The Irish bill called forth more resistance than that of Scotland, though its triumph from the first was equally certain. Mr. Lefroy moved, on its re-introduction, that it should be read that day six months. He said, that if a reform bill was to be passed at all, the present measure, in so far as the country representation was concerned, was not very objectionable; but he could discover no advantage to be derived from it in respect to the alterations in the boroughs. Seven of these boroughs had sent reformers to parliament, and eight possessed an open constituency. In the others the constituency varied from twelve to ninety-four, and none of them could be called decayed boroughs; on the contrary, they were more flourishing than at the time when they received the franchise. Of the one hundred Irish members, eighty-three were popularly returned. Where then, he asked, was the necessity or expediency of the measure? Would any rational man have deemed a reform bill necessary in England under such circumstances? And while the bill was unnecessary, he continued, it was also dangerous—dangerous not merely to the Protestant church of Ireland, but to the sister church of England, and the integrity of the empire. The fall of the Irish church would endanger the connection between the two countries. The leader of the Catholic population in Ireland had told them to choose reformers as the best means of opening the way to repealers; yet it was proposed by opening the boroughs to put them into the hands of this party—a party whose influence would be increased to an extent that no government would have power to oppose. The amendment was seconded by Lord Castlereagh, and supported by Messrs. Shaw, Conolly, and Gordon, who all said that the bill would be ruinous to the Protestant interest in Ireland. Messrs. O’Connell and Shiel defended the bill against the objections urged by the supporters of the amendment, but pointed out other defects, which they expressed a hope would be remedied in the committee. For instance, the name of the ten-pound franchise had been given to Ireland without the reality; the Irish and English freeholders, from the nature of their tenures, and the disproportion between their means, were in opposite positions to each other. In respect to houses also, the franchise was too high; and, instead of being the instrument of reform, it would be productive of corruption. Thus Portarlington, which was formerly sold by a single proprietor, would now be sold by one hundred members. In England, no man was called upon to show his title unless by previous notice; but in Ireland a scrutinising assistant-barrister examined it without any process being-served on the man who came to vote. In Ireland, also, half-a-crown was the sum paid for registry; in England it was a shilling only. Was this

equality? Was this union? Could this conduce to the continuance of the union between the two countries? But while he found so much in the bill of an objectionable nature, he would support it for the good it would effect; he would support it because it would strike down the corporation of Dublin, and because it would open the borough of Belfast, whose representative had hitherto been appointed by the noble Marquis of Donegal, like his groom or his footman. After a few words of opposition from Sir Robert Peel, the house divided on the second reading, and it was carried by two hundred and forty-six against one hundred and thirty.

It was in the committee that the attacks of the Irish reformers against the bill commenced in reality. The emancipation act had been accompanied by the disfranchisement of the forty-shilling freeholders. Mr. O'Connell moved that it should be an instruction to the committee to restore the franchise to these freeholders. The Irish reform bill exhibited gross injustice. England was to have thirty members more than had originally been contemplated, but Ireland was not to derive any such advantage. It was always the way when Ireland was concerned; her aid was invoked in the battle, but when the division of the spoil came, she was forgotten. And in the present instance insult had been added to injury. The Scotch bill had been brought forward by a Scotch legal luminary. Was there no Irish gentleman to whom ministers could entrust the Irish reform bill? Ministers wished to put an end to agitation in Ireland. But how did they set about it? By perpetrating an act of injustice, which would perpetuate agitation. The amendment was supported by Mr. Shiel, who contended that the restoration of the forty-shilling freeholders was just in principle, because it would assimilate the constituency of England and Ireland, and because it would conciliate the people of Ireland without being detrimental to England. Ministers replied, that if the proposed instruction was carried, it would have, the effect of impeding, if not ultimately defeating, the measure. Mr. O'Connell's motion was lost! by a majority-of one hundred and twenty-two against seventy-three; and he immediately moved, as a modification of it; that "the franchise should be restored to persons seized of an estate for three lives, renewable for ever, of the yearly value of forty shillings, provided that the rent did not exceed four pounds per annum, of which one-third was to be profit, and provided also that the renewal fee did net exceed two-pounds." This was opposed by Mr. Stanley, on the ground, that it would create a minute subdivision of independent, property, and by that means would also create an immense multitude of independent voters. The motion, was not pressed to a division; and Mr. O'Connell then took up the subject of the increase of representation in Ireland. Of the five additional members, one was to be given to the University of Dublin, which was now to return two members; and Mr. O'Connell and his party objected to this arrangement, because it would strengthen the Protestant interest. Sir Robert Heron moved as an instruction to the committee, that the University of Dublin should continue to return only one member. The motion was opposed by Mr. Crampton, the solicitor-general of Ireland, who vindicated the character of the electors of Dublin University from the attacks which the Irish reformers made upon it. The proposal was rejected by a large majority: and Mr. O'Connell returned to the attack by moving, as an instruction to the committee, to extend the franchise to persons occupying freehold estates of the yearly value of five pounds. His motion was

founded on this reasoning—that, as Ireland was a poorer country, a ten-pound qualification in England was a twenty-pound qualification in Ireland, and the constituency of the latter would consequently be curtailed. In his speech, he said that the object of all parties seemed to be to exclude the people of Ireland as much as possible from the enjoyment of the franchise. He was justified in making this charge, when he saw two members given to Trinity College, Dublin, in the constituency of which it was impossible there should be a Roman Catholic voter. If the system was acted on, the Catholic question still remained to be settled. Mr. Stanley complained of the unreasonable conduct of Irish members, and especially of Mr. O'Connell, who first desired alterations in the bill, and then complained that it was no longer the same. The change in the plan of registration, he said, had been recommended by Sir Henry Darnel. An alteration had also been made in the leasehold from twenty-one years to fourteen, and this was done at the instance of Irish members. Mr. O'Connell himself had entreated ministers to omit the fifty-pound qualification, which was complied with: but he had hardly effected his purpose, when he turned round and accused the government of making unfavourable alterations in the bill. Members might be astonished, but it was fact, that he had given notice of a motion for the restoration of a qualification which was omitted on his own suggestion. This motion was likewise rejected; as was another, made by Mr. Mullins, to extend the franchise in counties to leaseholders for nineteen years, at a rent of thirty pounds. Ministers, however, yielded something in the committee by consenting to extend the franchise to leaseholders for twenty years, having a beneficial interest to the amount of ten pounds. Mr. Shiel divided the house without success, to get rid of a proviso that required ten-pound voters in boroughs to pay all municipal taxes. The recorder of Dublin was equally unsuccessful in a motion tending to place Irish freemen on the same footing with their brethren in English boroughs; that is, to have their rights as freemen perpetuated, instead of terminating with the lives of those existing, as provided in the Irish bill Before the bill left the committee, Mr. Dominick Browne, one of the members for the county of Mayo, proposed a different plan for Ireland; but his proposition was not entertained by the house. The bill passed the commons on the 18th of July, and was read a second time in the lords on the 23rd. No division took place; but the Duke of Wellington stated at length his objections to the measure, which were replied to by Lord Plunkett. The bill passed through the committee in the peers almost without discussion. The only amendment of importance was one which had been rejected in the commons; namely, to place the rights of freemen in boroughs on the same footing on which they stood in the English bill, by continuing them in perpetuity instead of confining them simply to the children of freemen born after the passing of the bill. When the bill returned to the commons, Mr. Stanley declared that he felt a strong repugnance to this amendment. It was, however, allowed to stand, and by the first week of August all the three bills had received the royal assent.

BILL TO PREVENT BRIBERY AT ELECTIONS, ETC.

Soon after, the reform bill was carried the house of commons was filled with complaints, that, in its working, it was producing, extensive disfranchisement among the new constituencies. It was required by the English bill, that the intended voter

should have paid up by the 20th of July all rates and taxes, payable in the preceding April in respect of the premises on which he claimed. That period was now past, and the non-payers were so numerous as greatly to diminish the new constituencies. Under these circumstances Lord Althorp, on the 7th of August, moved for leave to bring in a bill “for allowing further time for persons to pay the poor-rates, in pursuance of an act passed in the present session to amend the representation of the people in England and Wales.” This was resisted on the ground that the act contained no clause allowing it to be altered, during the present session, and that the proposition was a breach of pledge. The house, it was said, had fully discussed and finally passed a measure effecting a great and extensive change in the constitution of the country, and that measure had gone forth to the country as being the final act of those who had originated it; yet it was now proposed to make an alteration in one of its most essential provisions. The alteration proposed was not unreasonable in itself; but there was danger in permitting any alteration to be made with respect to the reform act. Who could say, if changes were to be made, when they would stop? Lord Althorp argued that there were precedents which would enable the house to get over the difficulty in point of form, but as the bill was to be opposed, and as, in that case, it could not be carried through before the 20th of August, he would withdraw it altogether; he was the more ready to do so, because he thought that the inconvenience had been exaggerated. The subject, however, was taken up by Colonel Evans, who thought that a great number of tax and rate payers entitled to vote were defaulters, and therefore not able to enjoy their franchise. He moved a resolution, which, after adverting to the disfranchisement likely to arise, suggested that the mischief might be remedied by substituting for “the 6th of April,” in the 27th clause of the reform act, “the 25th of September last” for the payment of the poor rates, and the “10th of October last” for the payment of the assessed taxes. This motion was only supported by two members, yet the colonel brought the matter before the house again on the 10th of August, by moving “that an address be presented to his majesty, praying that he will be graciously pleased to prorogue the present, and convene another short session of parliament, to take into consideration the unexpected disfranchisement produced by certain restrictive clauses of the act for amending the representation of the people in parliament.” This motion was opposed by ministers, and was not pressed to a division. It had become clear, indeed, that many of the statements concerning the number of non-payers were without good foundation, and therefore there was no reason for altering the clause. About the same time objections were raised to the boundaries of boroughs as laid down by the commissioners whom ministers had employed, principally on the ground of the influence which, it was supposed, had here and there been given to individuals, by adding large portions of their lands to boroughs. It was objected, for instance, that, in the case of Whitehaven, a rural district, comprehending thirty voters, had been added to a borough containing three hundred. It was said that this was done to conciliate opposition; as this district was the property of Lord Lonsdale, it was stated, he would acquire by its junction with the town a preponderating influence. An amendment was made to exclude it, but ministers resisted it, and it was lost. Lord Althorp said, that nobody who knew the state of parties would believe in these theories of conciliation; and that Lord Lonsdale would have no more influence in the borough than the legitimate influence to which

rank and property entitled their possessor. A similar objection was stated against the boundary allotted to Stamford, which was followed by a similar motion of exclusion; but it found only nineteen supporters, while one hundred and seventy-two voted against it.

Another measure connected with the changes in the representation was a bill brought in to amend and render more effectual the laws relating to bribery and corruption in elections. Lord John Russell, who brought in the bill, stated that its principal object was to subject all cases of bribery to a more complete investigation. With that view, the bill extended the term for presenting petitions complaining of bribery at elections from fourteen days to two years; and provided that it would be lawful for any person to petition the house during that period, complaining that the election of any particular borough had been carried by bribery and corruption. The bill also provided that where the parties complained of undue elections in consequence of bribery, if they proved their case, all their costs and expenses in sustaining their petition should be defrayed by the public. Objections were urged against this measure from both sides of the house. It was argued, that the extension of the period for petitioning would keep members in a state of vassalage for two years; that a new petition might be presented every week, if it only related to a different alleged act; and that the terms which defined what bribery was were so vague, and yet so comprehensive, that it was impossible for a member to know whether a charge could be brought against him or not. Some members thought that nothing but the ballot would prevent bribery, while others suggested that every member on entering the house should take an oath that he had neither given, nor promised to give, or would promise hereafter, by himself, his agents, or friends, any money, security, order, or other thing of value, or any pecuniary fee, or reward of any kind, in consideration of any vote or votes, by which his return to that house had been promoted or served. The bill passed the commons; but when it came to the lords its postponement for six months was moved by Lord Wynford, and the lord chancellor agreeing with him as to the impossibility of carrying its provisions into effect, the bill was thrown out.

During the discussion on the reform question, one strong objection against the destruction of nomination-boroughs had been, that without them there would be no certain means of members who vacated their seats by accepting office of securing a new return. In order to obviate this inconvenience, the Marquis of Northampton brought in a bill to repeal, in so far as certain offices were concerned, the act of Queen Anne, by which an acceptance of any of them vacated a member’s seat. On the motion for the second reading of this bill, the Duke of Wellington said there could be no doubt that some measure of this description was necessary; but it appeared to him that the present bill was only a half measure, because it provided for only half of the inconvenience likely to result. He also objected to the bill being brought forward in the individual capacity of the noble marquis. As the inconvenience would arise from a government measure, government should introduce a remedy, and recommend it to both houses of parliament upon their own responsibility. The lord-chancellor likewise thought that the second reading should be delayed till the matter had been more ripely considered. The second reading, therefore, was postponed, and, as the end of

the session approached, the bill was ultimately laid aside. The last subject of direct reform in the representation was introduced by Mr. Bulwer, who moved an address to the king, praying that his majesty would give the free inhabitants of New South Wales a representative system. He grounded their title to it on the score both of population and taxation; but while ministers admitted that New South Wales must in time have a representative body, they did not think the elements had yet been formed out of which a safe constituency could be created, and the motion was negatived.

COMMITTEES ON IRISH TITHES.

{WILLIAM IV. 1832—1833}

In the speech from the throne, on the opening of parliament, there was this clause:—"In parts of Ireland a systematic opposition has been made to the payment of tithes, attended in some instances with afflicting results; and it will be one of your first duties to inquire whether it may not be possible to effect improvements in the laws respecting this subject, which may afford the necessary protection to the established church, and at the same time remove the present causes of complaint." Both houses, during this session, appointed select committees to inquire into the collection and payment of tithes in Ireland, and the state of the laws relating thereto. The report of the committee of the house of lords was presented on the 16th of February, and that of the commons on the 17th. The report stated that in different parts of Ireland resistance had been made to the payment of tithes, by means of organised, illegal, and in some instances armed combinations, which, if allowed to extend themselves successfully to other districts, would be applied to other objects, and ultimately subvert the dominion of the law, and endanger the peace and security of society. In many districts the report further stated, where resistance had been made to the payment of tithes, the clergy had been reduced to the greatest distress; and in order to obviate this, the committee recommended that his majesty should be empowered to advance to the incumbent, where tithes or compositions had been illegally withheld, or to his representatives, sums not exceeding the amount of the arrears due for the tithes of the year 1836, proportioned to the income of each, according to a scale diminishing as their incomes increased. It further recommended that as a security for repayment of the sums so advanced, his majesty should be empowered to levy, under the authority of a law to be passed for that purpose, the amount of arrears due for the tithes of the year 1831, without prejudice to the claims of the clergy for any arrear that might be due for a longer period. Where the arrears were due in a compounded parish, the sum to be advanced was to be regulated by the composition, and where there was no special agreement, by an average of the produce of the tithe for the years 1827, 1828, and 1829. As the crown was to become entitled to the arrears, it was recommended that the attorney-general should be empowered to sue for them, either by petition in chancery or exchequer, or by civil bill at the county quarter-session. On the tithe system, the committee stated that they had seen sufficient to satisfy them, "that with a view to serve both the interests of the church and the lasting welfare of Ireland, a permanent change of system will be required: that such a change, to be safe and satisfactory, must involve a complete

extinction of tithes, including those belonging to lay impropriators, by commuting them for a charge upon land, or an exchange for or investment in land, so as effectually to secure the revenues of the church, so far as relates to tithes, and at the same time to remove all pecuniary collisions between the clergymen and the tithe-payer, which, at present, were unavoidable." On the 8th of March, the Marquis of Lansdowne in the upper house, and Mr. Stanley in the commons, moved resolutions adopting and embodying the recommendations of the report. In the lords no opposition was offered to them, but in the commons it did not pass so readily. Mr. Stanley said that as he intended to state the whole plan which government had in contemplation, with all its details, he should move for that purpose that the house should resolve itself into a committee on the report; a course which he deemed advisable, because it would put it into his power to give every explanation which might be required, and to take the opinion of the committee separately on each of the resolutions. This motion was sternly opposed by the Irish members. Mr. Brownlow led the attack, by maintaining that the report was too partial and imperfect to be made the subject of consideration in committee. He moved "that the debate be adjourned, until the committee had gone into a full inquiry into the subject of tithes, and the appropriation of church property in Ireland, and until the evidence and report of the committee came before parliament." In support of the amendment, Mr. Shiel said that the Irish members did not oppose the resolutions: they only said, "Wait for the final report, and do not decide on a document resting on one-sided evidence." Catholics, he said, had been excluded from the committee, and only one out of eighteen Catholic witnesses had been examined. Was this just, or fair dealing? It was as if a jury were desired to retire on the closing of the plaintiff's case. They find their verdict; judgment is given; and then the defendant was desired to proceed with her case. If the committee had confined themselves to the recommendation of assisting the clergy, the Irish members would not have complained; but while they came with a purse of gold for the church, they also came with a rod of iron for the people. Mr. Shiel proceeded next to discuss the plan which was supposed to be unknown, in doing which he discovered the true objection of the Irish members to it, namely, that the Protestant church of Ireland was still to be preserved. Other Irish members urged the same objections; and added, that if every thing else in the supposed plan were right, it was wrong to pay the arrears to the clergy, and then ask repayment by coercive measures. Lord Ebrington, who had been on the committee, and concurred in its report, now sided with the Irish members. Sir Robert Peel said that the discussion on the anticipated propositions was foreign to the question before the house. The question was, whether the propositions should be explained now, or after the house had gone into a committee. Pie thought that the latter was the course most conformable to the practice of the house; and by supporting a motion to that effect, no member pledged himself in the least to the proposition of the government. Lord Althorp and Mr. Stanley complained of the course the Irish members had taken in commenting on propositions of which they knew nothing; and on a division the amendment of the Irish members was lost by an overwhelming majority.

The committee was delayed till the 18th, on which day Mr. Stanley moved a series of resolutions similar to those which had been agreed to by the lords. The first of

these resolutions was, “That it appears to the house that in several parts of Ireland, an organised and systematic opposition has been made to the payment of tithes, by which the law has been rendered unavailing, and many of the clergy of the established church have been reduced to great distress.” Mr. Stanley entered at great length into the evidence which proved both parts of this resolution. It was quite clear from the evidence that a system of opposition had been established in Ireland to the payment of tithes, which could not be overcome by ordinary means. Every plan had been adopted by which the operations of the law might be traversed. Tithe-proctors and process-servants were violently assailed; impediments were interposed to prevent the seizure and sale of cattle; and, in a word, every system of determined and organised opposition was manifested that could be displayed by a whole population acting as one man against the payment of a claim legally due. Having proved the truth of the first resolution, Mr. Stanley proceeded to the second, which provided means of relief. It read thus:—“That, in order to afford relief to the distress, it is expedient that his majesty should be empowered, upon the application of the lord-lieutenant, or other chief governor or governors of Ireland, to direct that there be issued from the consolidated fund such sums as may be required for this purpose. That the sums so issued shall be distributed by the lord-lieutenant, or other chief governor or governors of Ireland, by and with the advice of the privy-council, in advances proportioned to the incomes of the incumbents of benefices wherein the tithes, or tithe composition lawfully due may have been withheld, according to a scale diminishing as the incomes of such incumbents increase.” To this resolution Mr. Stanley said that he did not anticipate any objection, inasmuch as it was from no fault of the clergy that the resistance, and the consequent distress had arisen. He then proceeded to the third resolution, which provided for the reimbursement of the sums advanced:—“That, for the more effectual vindication of the authority of the law, and as a security for the repayment of the sums to be advanced, his majesty may be empowered to levy, under the authority of an act to be passed for this purpose, the amount of arrears for the tithes or tithe-composition of the whole or any part of the year 1831, without prejudice to the claims of the clergy for any arrear which may be due for a longer period; reserving, in the first instance, the amount of such advances, and paying over the remaining balance to the legal claimants.” The last resolution pledged the house to an alteration of the existing tithe system on some principle of commutation, though Mr. Stanley said he was not prepared to state the nature of the change. Those who dissented from the resolutions consisted chiefly of the Irish members, and, singular enough, their opposition was chiefly confined to the last resolution. This was, it was said, to introduce a change of system, but it implied that the tithe was still to be a fund available to the established church. It was said to be unjust to demand extraordinary powers for the execution of a law acknowledged to be bad and mischievous, and that every renewed attempt to recover tithes by coercion would only hasten the ruin of the church establishment in Ireland. Some adjustment must be made by which the church property should be applied to the support of the three prominent sects in Ireland, instead of its being bestowed exclusively on one, which only comprehended about a third of the population. It was admitted at the same time that it was right to relieve the clergy who were suffering; but it was asserted that the resolutions held out no hope of any substantial amendment of the

existing state of things. Mr. Shiel argued that the last resolution did not pledge the house not to appropriate church property as it might deem fit, and insinuated that this was what the ministry meant, though they could not venture to speak it out plainly. Sir Robert Peel supported the plan of the ministry, for, although hostile, he said, on general principles, to pledges that the house would do something at a future period, he thought that the interests of religion and the Protestant church required that the present case should be made an exception. As to the proposal to delay the question till the committee should have given a full report, he deemed it unnecessary and mischievous. If the spirit of combination was to be checked, it should be so at once; it would be true mercy to check it as soon as possible, for any delay would only add wings to its already rapid progress. The first resolution was agreed to finally without a division. On the second, Mr. Hunt divided the house, as he did not think the distress of the clergy in Ireland was such as to warrant money being taken out of the pockets of the people of this country for their relief. He was, however, only supported by eleven members, while eighty-six voted for the resolution. The third then passed without a division, and an amendment on the fourth was negatived without being put to the vote, so that the whole were carried. The bill was brought in to be read a second time on the 6th of April, when the Irish opposition pressed for a delay on the ground that it was inconsistent with sound policy to carry through this coercive measure before introducing the other measure for the change or extinction of tithes; that if the arrangements regarding the latter were complicated and required delay, that was the best reason for delaying the former, and that Mr. Stanley, the Irish secretary, ought to take advantage of the Easter recess, then approaching, to pay a visit to Ireland. Ministers resisted all delay, however, and the second reading was carried by a majority of one hundred and nineteen against twenty-one. It was read a third time, without much discussion, on the 16th of April; and in the house of lords, where the resolutions had been agreed to, the bill was passed without opposition.

The tithe-committees still continued their investigations, and on the 25th of June Mr. Stanley stated to the house of commons the measures which ministers intended to recommend for the final settlement of the questions connected with tithes. Three bills were to be introduced: the first, to make the composition act permanent and compulsory, and to render it at the same time more equitable and effective in some of its details; the second, constituting the bishop and beneficed clergy of each diocese into a corporation for the purpose of receiving the tithes for the whole body, and dividing them for their common benefit in the proportion to which the respective parties would be entitled: and the third, providing for a commutation of the tithe on the same principle as the land-tax redemption in England, or the redemption of quit-rents in Ireland—that is, that the party liable to the charge might redeem it, and the money thus paid for redemption would go to a fund as a provision for the clergy in the proportions to which they were at present entitled. Mr. Stanley explained the principles of these three bills at great length; but stated that it was not intended to carry all of them through the house at so late a period of the session. And this, he continued, was not necessary, as the first and second were independent of the third. He moved therefore for leave to bring in a bill for making the tithe-composition act compulsory, and the composition permanent, and another for establishing the

ecclesiastical corporations. Subsequently the latter of these was delayed, and the composition bill only pressed on. The motion for this was opposed by Mr. J. Grattan, who moved as an amendment the following resolutions:—“That it is essential to the peace of Ireland that the system of tithes in that country should be extinguished, not in name only, but in substance, and unequivocally: That in coming to this resolution we recognise the rights of persons having vested interests, and declare that it is the duty of parliament to provide for those persons by making them a just compensation: That we also recognise the liability of property in Ireland to contribute to a fund for supporting and promoting religion and charity; but that such may and ought to be quite different in the mode of collection, and much lighter in effect than that raised by the system of tithes: That we are also of opinion that the mode of levying and the application of such fund and its distribution ought to be left to the decision of a reformed parliament.” As the session was drawing near to a close, the opposition seemed to entertain hopes of rendering the measure abortive by mere opposition. Ministers were first compelled to adjourn the debate from the 3rd of July to the 10th, and on the 10th it was found necessary to adjourn it again to the 13th. On that day, after stern opposition from the Irish members, and especially Mr. O’Connell, who descanted in his usual strain on the “insulting contempt with which all Irish affairs were treated,” a division took place on Mr. Grattan’s resolutions, which were rejected by a large majority, and then the bill passed the second reading without opposition, and the house went into committee. Mr. Stanley in opening the ministerial propositions had adverted to the payment of church-cess and church-rates by Catholics, and expressed an opinion that they might be got rid of by a proper application of the first-fruits. Mr. Shiel moved that “the committee should be instructed to recite in the preamble of the bill, that the tithe composition should be extended, with the view to the levying of first-fruits according to their real value, and to such future appropriation of them to the purposes of religion, education, and charity, as, after making a due provision for the maintenance of the church, should to parliament seem proper.” Mr. Shiel said that the preamble already set forth that the bill was to effect a commutation. The government, however, ought not to stop there: they had declared that they intended to relieve the people from the church-rate, by levying their first-fruits to their full extent, and it was their object to ascertain the full amount of tithes through Ireland in order to tax the church. The committee, also, had reported that the people ought to be relieved in this particular: wherefore then was it not set forth in the preamble? They should be embodied in the bill, and the legislature should give an earnest of their determination to rescue the Irish nation from the most odious imposition in the annals of ecclesiastical taxation, the erection of temples with which the people had no concern. Mr. Stanley, in reply, admitted that he agreed in the principle that the fund arising from the first-fruits should be made available for the repair and erection of churches. When asked, however, “Why not say in the preamble of this bill that there should be an abolition of church-cess and rates for the future?” he said he was not prepared to go to that extent. If he consented to the introduction of these words into the preamble, he should be doubtless told that church-rates were abolished, and that the people of Ireland so understood it. He did not wish, he said, to declare that to be the object of the bill which was not its object, however it might be likely to be effected by the passing of the bill. On a division Mr.

Shiel’s motion was rejected by seventy-nine to eighteen. The bill now proceeded without further delay, and was passed by the commons and the lords. On the second reading in the upper house the Duke of Wellington expressed a wish that it should pass unanimously, he believing it to be the commencement of a series of measures which had the pacification of Ireland for their object.

FINANCIAL STATEMENTS.

As the reform bill and the management of Ireland were the great business of this session, matters of trade did not occupy much attention in parliament. The chancellor of the exchequer made his financial statements on the 27th of July, when it appeared that in the quarter of the year ending on the 5th of January, there had been a deficiency of £700,000, making the revenue of that quarter fall short of the estimate by no less a sum than £1,200,000; ministers having calculated on a surplus of £500,000. The revenue in the year 1830, the chancellor of the exchequer said, was £50,056,616, while the expenditure was £47,142,943, leaving a surplus of £2,913,673. The expenditure of 1831 ending in 1832 was within £19,664 of that of 1830; but this equality did not proceed from an equality of votes in the two years, because in the latter year there arose, from the reduction of four per cents., a saving of £777,443. After entering into minute particulars of the receipts and expenditure, with the savings which government had effected, the chancellor of the exchequer said, that upon the whole there was a decrease of income in 1831, as compared with 1830, of £3,682,176. From this, if the surplus, which would have accrued if the income had been equal to the expenditure in that year, that was £2,933,319, were deducted, there would be an excess of expenditure in 1831 over the income amounting to £698,857. The state of the revenue, therefore, in the commencement of 1832, was, that instead of having a surplus of £2,913,673, as in the commencement of 1831, the expenditure of 1831 being £19,646 below that of 1830, there was a falling off to the amount he had already shown; and the real excess of expenditure over income in 1831 was the sum of £698,857. Lord Althorp attributed this deficiency chiefly to the reduction of taxation in 1830. The whole reduction of taxation in 1831 amounted to £4,780,000. From this, if £3,364,412 were deducted as the loss on customs and excise, there would be a balance of £1,414,588; a clear proof that the resources of the country had increased by nearly a million and a half in the consumption of articles not affected by taxation. He owned he had been too sanguine in the calculation he had made of increased consumption from reduced taxation, but it was satisfactory to observe that, notwithstanding the great reduction of taxation, the deficiency in the revenue had been so small. He felt it right to state, he continued, that the deficiency at the end of the year was increased in the April quarter, the amount in that quarter being £1,240,413. Finding this deficiency his majesty’s ministers had endeavoured to meet it, not by an increase of taxation, but by a reduction of expenditure. They had lowered the estimates by more than £2,000,000, and had reduced official salaries and appointments to the utmost of their power. In two years, the reductions they had made in salaries and officers amounted to £334,353. Lord Althorp next entered into a statement of the gradual decrease of the surplus, and then proceeded to the estimates for the year ending-April, 1833. He calculated that the expenditure of the year ending April, 1833, would be £45,696,376,

which would be £2,162,051 less than that for the year ending in April, 1832. He next proceeded to give a comparative estimate of the income as it was in April, 1832, and as he calculated it to be for 1833. From the various items he expected a total of £46,470,000; deduct from that £45,696,376, as the amount of expenditure, and it left a surplus for the year ending in April, 1833, of £773,624. Against this, however, was to be set the deficiency of 1832, amounting to £1,240,413, and take from that sum the surplus of £773,624 for 1833, and it would leave a deficiency on the two years of £466,789. Mr. Goulburn contended that, according to the noble lord’s statement, there would be a deficiency at the end of the current year, on account of 1832, although in this year there was a surplus. After a few words from Sir Robert Peel, however, who questioned the reality of the reductions made by government, the financial arrangements were carried without opposition.

COMMITTEE ON THE CHARTER OF THE EAST INDIA COMPANY, ETC.

On the 27th of January the president of the board of control moved the appointment of a committee upon the affairs of the East India Company, and to inquire into the state of trade between Great Britain, the East Indies, and China. This was, in fact, only the reappointment of a committee which had sat during previous sessions; but the president hinted that as the charter would expire in April, 1834, and the East India Company had declined to make itself a party to the discussion, it would be necessary that the government should take a more direct management of the question, though without intimating its intentions, so as not to disappoint expectations. It would be necessary to carry this proposal into effect, he said, to have a considerable number of sub-committees, at least six or seven, each taking a separate branch of the inquiry. In the East India House, and in the board of control, the business was divided into six departments, each division having its separate functionaries; and he proposed, therefore, that there should be at least six sub-committees, each taking one of these departments. As it was necessary, he continued, to provide for the absence of members, and as five or six members would be necessary in each subcommittee, he should propose that there should be at least forty-eight or forty-nine in the committee. The present committee, he added, would have this advantage, that, the subject was not entirely new. A large mass of testimony had been obtained; and though the evidence had not been systematically collected, yet the materials were in preparation, and the committee would be supplied with them. In addition to this the board of control had for some time been preparing for the discussion, officers having been employed in classifying the evidence laid before both houses, and in separating the different branches of the evidence. The committee was appointed without opposition. Subsequently, the chancellor of the exchequer proposed the appointment of “a committee of secrecy, to inquire into, and report upon the expediency of renewing the charter of the Bank of England; and also on the existing system of banking by banks of issue in England and Wales.” The circumstance which gave rise to this motion was the renewal of the charter with the Bank of England. As the occasion of a renewal of that charter had always been considered the proper time for an inquiry into the banking system, and had been looked forward to by the public as a proper season for taking the principles of the Bank of England into consideration, therefore the proposition was made. In making

the proposal, the chancellor of the exchequer said that he trusted the house would agree in the propriety of making it a committee of secrecy, in order to prevent any discussions in that house upon the subject pending the inquiry; on such a question, involving the money transactions of the country, nothing could be more objectionable than these discussions. As to the questions which the committee would have to consider, they would have first to decide whether the charter should be renewed, and then, in case of renewal, whether any, and what exclusive privileges should be given to the Bank. Another question for their consideration would be the existing system of banking with reference to banks of issue; and they would likewise have to consider the Bank of England in its quality of banker to the state. It was not, however, intended that the committee should go into the question of the currency; it was to confine itself to banking, properly so called. But one exception to this would be found in the one-pound notes: it would be impossible to exclude that question from the consideration of the committee, if they should consider it was necessary to enter upon it. It was thought by some members that it would be better to restrict the committee from entering into that question, and by others that it would be better to delay the whole subject till a new parliament. In substance, in fact, it was so delayed, for, although a committee was appointed, it had made no report when parliament was prorogued and subsequently dissolved.

THE AFFAIRS OF THE WEST INDIES.

In the latter part of 1831, a violent hurricane had occasioned a great deal of injury in Barbadoes, St. Vincent, and St. Lucia. During this session ministers proposed, and parliament agreed, to grant his majesty £100,000 for the relief of the sufferers in those islands. Jamaica was soon after visited by a calamity of a different kind, though not less destructive. About the end of 1831, a formidable insurrection, which had been organised for some time, broke out among the slaves, particularly in the parishes of Trelawney, Portland, and St. James. The negroes on several estates began at first to refuse to go to their work, and then they assembled together in large bodies, and marched over the country, spreading devastation around them. The destruction which they caused was not confined to the whites; the houses and small settlements of free people of colour were attacked equally with the large plantations of the white inhabitants. It was found necessary on the 20th of December to proclaim martial law, and the militia of the different parishes was called out. Sir Willoughby Cotton also marched to Montego Bay, with between two and three hundred troops. Two engagements took place between the negroes and the militia, in both of which the former were routed. They again made head in some quarters; but at length the troops succeeded in dispersing them; and offers of pardon being issued to all but the ringleaders, the greater part of them returned to their masters. Of the ringleaders, some were shot after trial by courts-martial; and by the middle of January the danger was over, though some of the negroes still remained out, and martial law was not recalled. The insurrection was ascribed by the whites partly to the vague notions existing among the negroes by the orders in council intended to effect the amelioration of their condition, and partly to the arts or imprudence of sectarian missionaries. A belief had been produced among the former that their liberty had been granted by the king; and it was said that they had been encouraged in these

ideas by some of the missionaries. This unfortunately gave rise to the work of retaliation. At Montego Bay. Falmouth, Lucia, and Savanna-la-Mer, the chapels of the Baptists were razed to the ground by the mob, probably at the instigation of the planters. A Baptist and Moravian missionary were arrested on the charge of exciting the insurrection, but nothing was found to criminate them. But apart from the effect which the orders in council might have had in misleading the negroes, they were regarded by the colonists as an unnecessary and mischievous interference with the rights of property, and even with their political privileges. The orders appointed slave-protectors to attend to the rights of negroes against their own masters, fixed the hours of labour, and contained various other regulations, all deemed useful, and intended to prepare the way for a general emancipation. These orders were considered in both sets of islands as dangerous incitements to turbulence among the negroes, and ruinous to the property of planters. There were discontent and irritation everywhere against the government at home; and in the colonies which had legislative assemblies it was plainly spoken out by resolutions and petitions. Nor were the proprietors at home silent on the occasion. On the 6th of April the West-India mercantile body of London presented a protest against the order in council to the secretary of state. This was followed by a public meeting of persons interested in the colonies, where it was resolved to petition the house of lords, praying, “That a full and impartial parliamentary inquiry should be instituted for the purposes of ascertaining the laws and usages of the colonies, the condition of the slaves, the improvements that had been made in that condition, and what further steps could be taken for the amelioration of that condition consistently with the best interests of the slaves themselves, and with the rights of private property.” This petition was presented on the 17th of April, by the Earl of Harewood, and the prayer of their petition was granted. Mr. Buxton, on the 24th of May, made a motion on the other side of the question. He moved: “That a select committee be appointed to consider and report upon the measures expedient to be adopted for properly effecting the extinction of slavery throughout the British dominions at the earliest period compatible with the safety of all classes.” Lord Althorp objected to this motion as too unqualified, and he wished Mr. Buxton to add the words, “in conformity with the resolutions of 15th of May, 1823.” To this Mr. Buxton would not consent, and Lord Althorp then moved them as an amendment on the motion, and they were carried by a large majority. These measures were subsequently followed by pecuniary relief to those who had lost property. The sum of £100,000, which had been granted to the sufferers from the hurricane in Barbadoes, St. Vincent, and St. Lucia, was raised to £1,000.000, and extended to the sufferers in Jamaica by the insurrection. In addition to this, the sum of £58,000 was granted to be applied in giving aid in regard to the internal expenses to the crown colonies, which had adopted the orders in council, and had carried the same into effect.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by his majesty in person on the 16th of August. On the great question of the session his majesty remarked:—“The matters which you have had under consideration have been of the first importance; and the laws in particular which have been passed for the reforming the representation of the people have

occupied, as was unavoidable, the greatest portion of your time and attention. In recommending this subject to your consideration, it was my object, by removing the just causes of complaint, to restore general confidence in the legislature, and to give additional security to the settled institutions of the state. This object will, I trust, be found to have been accomplished." Ireland was still in a disturbed state, on which his majesty remarked:—"I have still to lament the continuance of disturbances in Ireland, notwithstanding the vigilance and energy displayed by my government there, in the measures which it has taken to repress them. The laws which have been passed in conformity with my recommendation at the beginning of the session, with respect to the collection of tithes, are well calculated to lay the foundation of a new system, to the completion of which the attention of parliament, when it again assembles, will of course be directed. To this necessary work my best assistance will be given, by enforcing the execution of the laws, and by promoting the prosperity of a country blessed by Divine Providence with so many natural advantages. As conducive to this subject, I must express the satisfaction which I have felt at the measures adopted for extending generally to my people in that kingdom the benefits of education." At the close of his majesty's speech the lord-chancellor said, that it was his majesty's royal will and pleasure that parliament be prorogued to Tuesday the 16th of October next, to be then holden, and this parliament is accordingly prorogued to Tuesday the 16th day of October next.

GENERAL ELECTION.

{WILLIAM IV. 1832–1833}

After parliament was prorogued, the great objects of public attention were the registration of the new constituency under the reform bill, and other preparations for a general election, which was to follow as soon as the registration was completed. The registration, which was conducted very quietly, having been completed, parliament, which had been prorogued by commission on the 16th of October, was dissolved on the 3rd of December, and the first general election under the reform act took place. The writs were made returnable on the 29th of January, 1833. As regards the machinery of the act, it appeared to work more smoothly than had been anticipated. Generally speaking, in the most populous places, the polling was concluded within the two days allowed by the act. Less time and opportunity were allowed for bribery, and the disturbances which used to arise from drunkenness and profligacy in a great measure ceased. As regards the candidates which the machinery of the act produced, there was a great dislocation of old connexions and previous interests. There were three parties in the field: ministerial candidates; Tories, now called Conservatives; and the Radicals, who have been aptly termed "the apostles of pledges." The elections were generally in favour of the ministerial candidates, or at least of candidates who professed the same general views, and declared their adherence to a reforming ministry. This was natural, for in almost all the boroughs success depended on the newly created electors, who could scarcely refuse their votes to that party by whose means they had procured the right of voting. The Whigs were most successful in Scotland: out of fifty-three representatives elected in that

portion of the empire, not more than twelve were Conservatives; nor could half that number be termed “apostles of pledges.” In Ireland, however, the Whigs were not so successful. O’Connell had denounced the ministers, even while the reform bill was in progress, as acting with insult and injustice towards Ireland in the measure of change meted out to her; and the refusal to abolish the Protestant established church in Ireland had converted him and his adherents into declared enemies. All their energies, therefore, were employed to return members who would either drive ministers from the helm, or drive them to sacrifice the church, and repeal the union. The consequence of his agitation was, that, while Mr. O’Connell was himself elected for Dublin, he brought over with him when parliament met some half-dozen of his own immediate relations, besides various demagogical dependents, as the representatives of Ireland. O’Connell’s manners and language on this occasion were violent in the extreme. In a letter “To the Reformers of Great Britain,” he even ventured to put forth articles of impeachment against the ministers, and he went so far as to offer to coalesce with the Orangemen in order to defeat them. The result of his agitation was that, by his exertions and influence, coupled with that of the minor demagogues of Ireland, the number of Radicals, or “Repealers” was greatly increased.

RESIGNATION OF THE SPEAKER.

As the end of last session was approaching, Mr. Manners Sutton, who had filled the speaker’s chair in six successive parliaments, announced his intended resignation. His chief reason appears to have been that the next parliament would consist of many new faces; and would be differently constituted to those in which he had presided. All parties, however, received his announcement with regret; and Lord Althorp moved, Mr. Goulburn seconded, and the house voted by acclamation the usual resolution of thanks in such cases. An address was also voted to the king, praying his majesty to confer some signal mark of his favour on the speaker; and this was carried into effect by granting to Mr. Sutton £4000 a-year, to be reduced one-half if he accepted office under the crown of equal value, and £3000 a-year to his son on his demise.

STATE OF IRELAND.

This year witnessed the disaffection of all parties in Ireland. Towards the conclusion of the preceding year a systematic opposition to tithes had been organised, and the repeal of the union had been openly advocated. Ministers, doubtless, conceived that the reform bill would conciliate both the agitators and their followers; but in this they were mistaken. The reform bill, indeed, gave rise to new sources of discontent. The Protestants lost all confidence therefrom in the government; and they very naturally felt inclined to have recourse, for means of defence, to the same instruments which the Catholics used against them. They were surrounded by Catholic bands, inclined to pillage and murder, and it was no wonder that they felt irritated by a measure which appeared to give licence to the lawless. A meeting of Protestant noblemen and gentlemen, held in Dublin, put forth a manifesto, enumerating the various grievances of which they thought themselves entitled to complain, and calling upon all their brethren to be vigilant and true to their own interests. The example of this assembly was followed in many parts of the country,

and addresses were voted by numerous meetings to the king. In one of these addresses dissatisfaction and alarm was expressed at the spirit that appeared to influence the councils and direct the measures of the Irish government. Unconstitutional and mischievous associations, it was stated, had been suffered to be formed and continued, the efforts of which were directed to usurp the power of government, and destroy the civil and religious institutions of the country; and these associations, instead of being suppressed, were allowed to take place even in the metropolis, while the instigators of them were rewarded with favour and confidence. This address also expressed strong opinions on the reform bill. It would transfer, it was said, to the Catholics and Catholic clergy an overwhelming influence in the representation; that the boroughs, whose franchise was to be taken from the Protestant corporations and transferred to a larger constituency, had been incorporated for the express purpose of maintaining, by a Protestant constituency, the connexion between the two countries; and that the measure in progress could have no other effect than to vest the dominion of Ireland in the Catholics. On the other hand, the reform bill did not give satisfaction to the Catholics; it gave much, but it did not give all that they desired, or all that was necessary to the completion of their schemes. Their object was ascendancy. Popery could not retain its glories in Ireland, or the Protestant church be destroyed, so long as their fate depended on a Protestant parliament. The union must be repealed; and unless Ireland sent into the house of commons a large body of Catholic repealers, there was no chance of such a consummation. Hence it was that Mr. O’Connell attacked the Irish bill with such bitterness; it did not make a larger addition to the representatives of Ireland, and it did not sink the qualification to a scale sufficiently low to ensure the return of all repealers to the reformed parliament. These “defects of the bill,” therefore, supplied the demagogues with new sources of agitation. The people were told that this pretended reform was an insult; that they had received only a small portion of the justice that was due to them; and that they must still offer unyielding opposition to a government which granted only a part of their demands.

Meanwhile the tithe question became & fruitful source of discontent and bloodshed. A petition was entrusted to Mr. O’Connell to the house of commons against the Protestant church, which, while it announced in plain language their own wishes, gave direct encouragement to violence and outrage. The different counties, in fact, from the agitation of the demagogues, presented one scene of growing lawlessness and crime. The king’s speech was even made to foster this spirit of insubordination. It had recommended the consideration of the tithe question in parliament; and the Irish Catholics construed this into a condemnation of the tax. Looking upon the tithes, therefore, as already denounced by the king and the parliament, they thought they were justified in resisting the payment of them. Everyman refused to pay; and threats, arson, and murder, were directed against all who in any way connected themselves with the payment, or collection of tithes, whether as clergyman, proctor, policeman, or payer. Recourse was even had to intimidation by public proclamation; chapel doors were desecrated by placards threatening death and destruction to all who should pay tithes. Thus instructed at the very sanctuary where peace alone should have been taught, the ignorant and

misguided peasantry everywhere committed acts of violence and outrage. The premises of the tithe-payer were reduced to ashes, and his cattle were houghed, or scattered over the country, or, as in Carlow, hunted over precipices. Moreover, scarcely a week elapsed in which a proctor, or a process-server, or a constable, or a tithe-payer, were not murdered. An archdeacon of Cashel was even murdered in broad daylight, while several persons who were ploughing in the field where the act was committed, either would not, or dared not interfere. Neither life nor property were safe; and in the beginning of February the Irish government found it necessary to have recourse to the peace-preservation act, and to proclaim certain baronies in the county of Tipperary to be in a state of disturbance. This, however, had no effect; large bodies of men everywhere openly defied the law, and roamed about the county, compelling landlords to sign obligations to reduce their rents, and to pay no tithes. They even compelled some farmers to give up their farms and their houses, and, in some instances, they committed the most atrocious cruelties. An end was put not only to the payment of tithe, but to the payment of rent; and the terror which prevailed on every hand acted as a shield to the offenders. In fact, it was considered a crime to be connected with any attempt to execute the law against the insurgents, and to betray any activity in preserving order was to become a marked man; such a man was sure of being made the victim of open violence, or secret assassination. Such an extensive combination had been entered into to resist the payment of tithes, and to protect all who might be implicated, that the ends of justice could not be attained. Jurors were in danger of losing property and life; and at Kilkenny the attorney-general even found it necessary to delay the trials.

Government, as the year advanced, filled the disturbed districts with troops and an augmented constabulary force; but no approach was made to the restoration of order. The magistrates of the county of Kilkenny made an unanimous application to the Irish government for stronger measures to meet the crisis; but the lord-lieutenant stated in his answer, that, from circumstances which had taken place, he had no expectation left of any appeal to the law under the existing excitement proving effectual. He sent, indeed, into that county three additional stipendiary magistrates, and one hundred additional policemen; but this was ineffectual: crime still prevailed, and resistance was successfully made to the payment of tithes. In the meantime, the agitators and their political unions, while they affected to deplore the perpetration of the outrages which were every day occurring, did not cease to address to their countrymen the same exciting language in which they had hitherto indulged, and to devise new schemes and combinations for open resistance to the law. It was quite evident, indeed, that they were at the bottom of all the mischief that was afloat. It is true, they did not recommend openly murder and arson, and that they preached passive resistance; but they called upon every man to refuse payment of tithes, and in that call was involved disobedience to the laws. Dublin was the seat of most of the mischief going forward. From thence the agitators continued to describe Ireland to its inhabitants as the slave of England, and to denounce the existence of tithe. The remedy of the tithe-owner was distraint; but in a few instances only could a sale be carried into effect, and the clergy were at length compelled to give up all attempts to enforce their rights, the more especially as the arrears, if the measures proposed by

ministers were carried, would become debts due to government. Where-ever a sale was effected, all those connected with it were objects of vengeance. Thus, in Kildare, a farmer who had purchased some distrained cattle, was obliged to throw up his farm and leave the country. The opposition against the payment of tithe was directed against the government as well as the clergy. Its intention was to drive ministers, if possible, to recommend and enforce their abolition, by rendering the recovery of them impracticable. Anti-tithe meetings were held in every part of Ireland, and the greater part of the country was involved in one huge conspiracy. During the year government seemed to think it time to try whether the law could not reach the tumultuous assemblies of the conspirators. A circular was addressed to the Irish magistracy, directing them to disperse all meetings collected in such numbers as to produce alarm and endanger peace, as distinguished by banners, inscriptions, or emblems, which tended to disturbance, or to throw contumely on the law. This circular was denounced by Mr. O'Connell as illegal, though he advised that it should be obeyed. Several large meetings were dispersed by the military, headed by a magistrate; but where the meeting was strictly parochial, no opposition was offered to their proceedings. It was this spirit of lawlessness which gave rise to the Irish tithe-bill of this session. The passing of that bill neither mitigated the discord which everywhere prevailed, nor diminished the crimes which that discord produced. The people had been taught to demand as their right, and to expect as a concession, the annihilation of tithe; but they found that the crown, by the Irish tithe-bill, had become creditor instead of the clergymen. They had now, therefore, to struggle with the crown. Proceedings were adopted by the law-officers of government to enforce payment of arrears, and at the same time it was resolved to try the power of the law against the ringleaders of the "anti-tithe meetings." A great number of persons were apprehended on the charge of conspiracy, and of holding illegal assemblies. Some of these on their trials were convicted, and others, on the advice of O'Connell, pleaded guilty, and they were fined and imprisoned; but they were looked upon as martyrs, and the penalties which they were suffering were noted down as another unpardonable injury committed against Ireland by the English government and the Protestant church. The law, however, was not equally successful when directed against the more atrocious crimes of arson and murder, which had been committed in the southern counties. Life was not safe in those parts, and jurors and witnesses alike dreaded the execution of a duty which might involve a sentence of death upon themselves. Rather than attend, they paid the fine for absence; or if they attended, they were afraid to convict, even in the most atrocious cases. The law-officers were, in fact, compelled to give up the prosecutions in despair, and murder remained unavenged. In celebration of this triumph over law and justice, the county of Kilkenny blazed with bonfires, announcing to the world that the guilty had escaped punishment. As for the "acquitting jurors," they were greeted with the popular applause; and because they allowed murder to be committed with impunity, the peasantry hastened in crowds to their fields in harvest-time, and reaped their fields for nothing. Crime, therefore, prospered; and the tale of murder was repeatedly told in the newspapers of the day, while the perpetrators thereof escaped the punishment due to their crimes. Yet no lament was raised by the political guides of Ireland over murdered landholders and clergymen; it appeared to be, in their sight, a just revenge.

At the same time a long wail of woe was heard throughout the country, if it happened that any of the resisting peasantry were killed by the military in the performance of their duties in securing the tithe. Four were thus killed in the county of Cork, and others wounded, the military being compelled to fire in self-defence; and Mr. O ‘Connell immediately sent forth a letter to the reformers of Great Britain, invoking vengeance. And yet this man, who could deplore the fate of violators of the laws, could not find any cause for lament in the deaths of the many clergymen and laymen who had been slain by the infuriated peasantry. He could not find it in his heart to deplore the fact that the blood of peaceful, respectable, and virtuous citizens, had been shed on Irish ground; but he could palliate the conduct of their murderers, and by his agitation virtually sanction the foul crime.

STATE OF THE CONTINENT.

During this year Don Pedro carried his threat into execution, of attempting to recover the throne of Portugal from his brother by force of arms. He had been permitted to levy men, and to purchase vessels and shipments of arms and ammunition, both in England and France, and the naval part of the expedition was placed under the command of a British officer, who became a Portuguese admiral. The expedition sailed from the rendezvous, in the Azores, on the 27th of June, and it consisted of two frigates, three corvettes, three armed brigs, and four schooners, besides transports, and a number of gun-boats to cover the landing. The army on board, including British and French recruits, did not amount to ten thousand men, and it was scantily provided, both with cavalry and artillery. The invaders landed off Oporto on the 9th of July, without any opposition; and in the course of the day they took undisturbed possession of the city, the enemy having retired to the left bank of the Douro, and destroyed the bridge. The possession of this city was doubtless of great importance to Don Pedro; but it was far removed from the capital. He had hopes that the country would rise in his favour, and that the military would abandon his opponent. In these expectations, however, he was doomed to be disappointed. Don Miguel was enabled to concentrate his forces, and to organise the means of resistance; and at the close of the year, after some slight successes in engagements with the enemy, he was shut up in Oporto by the Miguelites, who bombarded the town, blockaded the Douro, and placed him in a very critical situation.

In the East a quarrel took place between the Sultan and Mehemet Ali, Pasha of Egypt, which threatened serious consequences to the Turkish empire, and occasioned such interference on the part of Russia as awakened the jealousy, and aroused the watchfulness of the other European powers. Ibrahim wrested Syria from the Porte, and the Ottoman empire was tottering to its fall, unless the European states should interfere to prevent it, or Russia should realize her long-cherished schemes of aggrandizement by taking the shores of the Bosphorus, which the Sultan was not able to defend, under her own protection. It was feared by the European powers that Russia would thus act; and toward the end of June, ministers dispatched the son-in-law of the premier on a special mission to Russia. Much confidence was placed by the public in the integrity and talents of Lord Durham, and an attempt was made to induce the ministers to embrace this opportunity of mitigating the cruel fate which

hung over the unhappy Poles. Poland, however, was still doomed to be unbefriended. Russia was left to seek the annihilation of its existence as a separate nation at her pleasure. By an ukase this year, indeed, the emperor declared that Poland, with a separate administration, should become an integral part of the empire, “and its inhabitants form but one nation with the Russians, bound together by uniform and national sentiments.” During this session, also, there was a debate on the subject of payments made to Russia without the authority of parliament. This question was connected with the financial affairs of the country, though it was treated more as a question of political party. It arose out of the treaty of 1814 for the incorporation of the Belgian provinces with Holland. By that treaty Great Britain had agreed to pay a certain share of a debt due to Russia by Holland, so long as Holland and Belgium were united. They had now been disjoined for nearly a year, and yet ministers had been making these payments without any new authority from parliament. The subject was brought forward by Mr. Herries, who entered at length on the subject, and contended that England had no right any longer to pay money to Russia: the Dutch had refused to pay any more, and ministers should not have done so without at least new powers from parliament. He moved three resolutions:—“That by the 55 Geo. III., for carrying into effect the convention between Great Britain, the Netherlands, and Russia, the treasury was empowered to issue sums to pay the interest and capital due by Holland to Russia, conformably with the provisions of the convention: That the payment of these sums was made to depend upon the non-separation of the kingdoms of Holland and Belgium; and that, as the kingdoms of Belgium and Holland had been separated, all payments made since that separation were unwarranted by act of parliament, and contrary to the treaty recognising the loan.” Lord Althorp, in reply, said that the true question was, whether the country was not bound in honour to the continued payment of those sums. Looking at it only according to the strict letter of the treaty, we might not be bound; but he thought that by a careful examination of its spirit and provisions, it would be found that our honour was pledged to the payments, and that on no other consideration than that it was so pledged should we have interfered as we had done in the affairs of Holland and Belgium. He argued that the separation contemplated by the framers of the treaty was one produced by extreme force, and had nothing to say to any severance proceeding from internal causes. He argued further, that it was by giving Russia an interest in preventing the severance of Holland and Belgium, that this country concluded the treaty; and that, therefore, to that treaty we were equally pledged. That Holland had refused to pay was immaterial: if one pledged himself to the payment of a debt to which there was also a third party, it would be dishonourable to take advantage of that third party having refused to fulfil his engagement, as a legal reason for also refusing to fulfil your engagement. With respect to the resolutions, he had only to say, that, as the two first were merely declaratory of the fact, he should, as far as they were concerned, move the previous question; but as the third was a direct censure on ministers, he should meet it with a direct negative. Ministers had acted on the opinion of the attorney and solicitor-general, and they now defended that opinion. Lord John Russell also argued that it was the spirit and not the letter of the treaty which must be looked at, and that that spirit justified the payment. He complained that the resolutions were moved with a mere party view, and not from any love of economy or from any desire to maintain a

constitutional principle. He complained also, that a motion should be made for censuring ministers, without calling for papers, and without any allusion to the circumstances which had occurred in 1830 and 1831, and on which the interpretation of the treaty might in a great degree depend. After some stinging comments upon this speech, Sir Robert Peel wound up the debate in one of his most plausible parliamentary addresses. He clearly confuted the main arguments which Lord Althorp used, and produced an effect unfavourable to ministers. When the house divided, the previous question was carried by a majority only of twenty; and government had but the narrow majority of twenty-four for the third resolution. Many of their adherents, including Mr. Hume, voted against them on this occasion; and even their secretary-at-war, Sir Henry Parnell, failed to attend to vote for them, for which conduct he lost his place, and was succeeded by Sir John Cam Hobhouse. The truth was, as it afterwards appeared, ministers had entered into a new convention with Russia, although that convention had not been ratified. Ministers laid this before parliament on the 27th of June; and on the 12th of July Lord Althorp moved the house to go into committee to consider of it, with the view that a bill should be brought in to enable his majesty to execute it. The convention provided for continuing the payments, and the opposition thought this a powerful argument in their favour; if a new convention was necessary, it was said, the former payments were made without authority. They moved the following amendment to Lord Alfhorp's motion:—"That it appears to this house that the payment made by the commissioners of the treasury on account of the interest due on the Russian loan in Holland, in January last, when the obligation and authority to make such payment had, according to the terms of the convention with Holland and Russia, and of the act of parliament founded thereon, ceased and determined, and also when a new convention with Russia, not then communicated to this house, had been entered into, recognising the necessity of recurring to parliament for power to continue such payments under the circumstances which had attended the separation which had taken place, was an application of the public money not warranted by law." Ministers still argued the question on the ground, whether this country was bound in good faith to continue the payments? if we were, they said, this convention was only to fulfil that duty. But the strongest argument in their favour was that adduced by Lord Althorp, which was to the effect, that, if his motion were lost, it would upset the ministry. As the reform bill was still pending, many voted for, who would have voted against them; and, on a division, the amendment was lost by forty-six—one hundred and ninety-seven voting for it, and two hundred and forty-three against it. During the progress of the bill, founded on the motion, Mr. A. Baring moved an address to the king, "praying his majesty to be graciously pleased to direct that there be laid before that house copies or extracts of any documents relating to the convention of the 19th of May, 1815, between Great Britain, Russia, and the Netherlands, explanatory of the spirit and objects of that convention;" but this motion was lost by a majority of thirty-six in favour of ministers. On this occasion Mr. Hume voted for them, although, he said, he knew they were in the wrong. He had come down to the house on the 12th of July, he said, with a firm determination to vote against them; but when he found by whom he was surrounded, he was unwilling to join them in driving ministers from office. He had changed his opinion, and would vote with the Whigs against the Tories, although

he believed the Whigs were in the wrong. But the fact was, he was determined not to assist in turning out ministers until they had completed the great measure of reform. A great deal remained to be done, and he wanted to see a new election take place; he was determined, therefore, to support ministers. The conduct of Mr. Hume was followed generally by the liberal party, and this policy of the extreme sections of liberals alone preserved ministers in office. Another interesting subject was brought before the house by Mr. Lytton Bulwer, relating to the Germanic states. He moved for “an address to the king, requesting his majesty to exert his influence with the diet in opposition to the course which that body was then pursuing.” In making this motion, Mr. Bulwer traced an outline of the political history of the Germanic confederacy, from its free government to its termination with the victories of Austerlitz and Jena, when the principle of aggrandizing the larger states at the expense of the smaller was first avowed and practised. He said that the defeat of Napoleon in his Russian campaign gave to Germany the opportunity of casting off a yoke which had been reluctantly borne. Russia and Prussia then appealed to her former free constitutions, the restoration of which was distinctly promised, when the Germanic states rose _en masse_; and the battle of Leipsic, with the downfall of the French power, speedily followed. By the second article of the congress of Vienna, he continued, the promises of Russia and Prussia were respected, and the rights of every class in the nation were solemnly guaranteed, the only state disagreeing being Wurtemburg. The late protocol of the diet, however, had for its object the rendering of the representative bodies of the several states useless, by relieving their despotic princes from every embarrassment which an efficient control by such assemblies might create, and to protect Austria and Prussia against the influential example of popular institutions. The sovereigns of these two states, he said, are willing to give just so much constitutional liberty to Germany as will not allow its writers to write, its professors to teach, its chambers to vote taxes, make speeches, or propose resolutions; whilst every state should be so inviolate, so independent, that, with or without the invitation of its sovereign, a deputation of Austrian or Prussian hussars may be sent to keep it in order! The question was, therefore, was it politic for England, under such circumstances, to interfere? Our situation, he said, rendered it incumbent on us to express an opinion, at least, in favour of the German people, or we must be thought to take part with their rulers. He could not recommend a foolish and hasty interference with foreign states, yet he could not consent that England should be a cipher in the political combinations of Europe, looking with indifference on the continent, as though no changes could affect her interests. And if there was any one thing more than another which immediately affected British interests, he thought it was the fate of Germany. Unite that country under a good government, and it would be at once a check on the aggrandisement of France and ambition of Russia. Mr. Bulwer concluded with his motion for the address; but Lord Palmerston dissented from his opinions, and was willing to believe that the government alluded to would not be so impolitic as to put down free constitutions. The motion was therefore negatived.

During this year Greece was involved in absolute anarchy. After the assassination of Capo d’Istrias it was left without a government, and although Augustine, brother of the murdered president, concocted a provisional government, and placed himself at

the head, the refractory chiefs could not brook his authority, and began to act for themselves. A national assembly met at Argos in the middle of December, 1831; but it was not more successful in restoring obedience and tranquillity. Everywhere there was confusion and bloodshed, as in the days of the ancients. The national assembly of Argos was overthrown, and every chief ruled despotic in the small district which he was strong enough to occupy. In the meantime the courts of Britain, France, and Russia were occupied in selecting a king who might reduce the country to order more easily and effectually than they could do by protocols and despatches. Their choice fell on Otho, son of the King of Bavaria; and his majesty having accepted the crown on behalf of his son, the conditions were fixed by a treaty, concluded in May, between him and the sovereigns of England, France, and Russia. The territory to be comprehended in the new state was to be somewhat larger than when its sovereignty had been offered to Leopold; and the King of Bavaria was to send along with his son an army of 36,000 men, to be supported entirely at the expense of the country. It might have been expected that the Greeks would have been averse to the rule of a foreign monarch, attended by foreign troops, and professing a different religion to themselves. The assembly of Napoli, however, as soon as they had been informed of the conclusion of the treaty, dispatched an address to the King of Bavaria, praying him to hasten the arrival of their monarch. The address was followed by a deputation, which was received at Munich with marks of royal favour, and which had been commissioned to assure their future sovereign of their good will and ready submission to his rule. The young monarch quitted Munich for Greece on the 6th of December, proceeding by the way of Naples, Otranto, and Brindisi, to Corfu, where he was to be met by the army intended to support his newly-erected throne. He made his entrance into Napoli on the 5th of February, 1833; and the regency appointed for the duration of his minority—for he was a minor—replaced the provisional government.

CHAPTER XLIII.

{WILLIAM IV. 1832–1833}

Meeting of Parliament; Reelection of Mr. Manners Sutton as Speaker..... . Opening of the Reformed Parliament by the King in person..... Case of Mr. Pease..... Irish Coercion Bill..... Irish Church Bill..... Irish Tithe Bill..... Financial Statements..... Bank of England Charter renewed..... . East India Question..... Abolition of Slavery in the Colonies..... Factory Bill..... The Corn Laws..... Resolutions against Bribery, &c. Bill to Remove the Civil Disabilities of Jews..... Prorogation of Parliament..... Foreign Affairs

MEETING OF PARLIAMENT—RE-ELECTION OF MR. MANNERS SUTTON AS SPEAKER.

{A.D. 1833}

The first reformed parliament was opened by commission on the 29th of January. The first business of the commons was to elect a speaker. Mr. Manners Sutton had not

been advanced to the peerage, although such a mark of honour is usually bestowed on those who have filled the chair for so long a period, and with such distinguished applause. At the general election he had been returned one of the members for the university of Cambridge; and ministers having obtained his consent to put him in nomination, resolved to support his re-election as chairman. This intention was not concealed; and on the meeting of parliament Mr. Hume moved that Mr. Littleton, one of the members for Staffordshire, should take the chair. The Radicals, of whom Mr. Hume was one of the leaders, took this step on the score of Mr. Manners Sutton's politics, considering it a matter of the greatest importance that the speaker should concur generally in the political sentiments entertained by a majority of members. Mr. Hume's motion was seconded by Mr. O'Connell, who denounced the intention of government as "another instance of the paltry truckling of the present administration." On the other side, Lord Morpeth moved, and Sir Francis Burdett seconded the motion, that Mr. Manners Sutton should take the chair. In doing so, they insisted on the admitted fact of his superior qualification, as well as the candid and impartial conduct which he had observed during the late political struggles. Mr. Littleton himself requested Mr. Hume to withdraw his motion; but that gentleman declined to do so. Seeing the house universally in the favour of Mr. Manners Sutton, the Radicals now chiefly confined themselves to the question of the pension. The attorney and solicitor-general argued that there was no feasible ground for these objections, and asserted that he would have no claim to his retiring annuity. By act of parliament, any speaker was entitled to his salary till a successor was elected, and Mr. Manners Sutton, being thus entitled to his salary, he could have no claim for a pension. On a division, Mr. Manners Sutton was re-elected by a majority of two hundred and forty-one against thirty-one.

OPENING OF THE REFORMED PARLIAMENT BY THE KING IN PERSON.

The first session of the new parliament was opened by the king in person, on the 5th of February. His speech on this occasion took a comprehensive view of our foreign and domestic relations, in which the affairs of Holland, the approaching termination of the charters of the Bank and the East India Company, the temporalities of the church, and the state of Ireland, were prominently introduced.

In the house of lords the address was voted almost unanimously, a slight discussion only being elicited by the sentiments of Lord Aberdeen and the Duke of Wellington, against the foreign policy of government, and especially that regarding Portugal and Holland. Such harmony, however, did not exist in the commons. A part of the speech which pointed at the adoption of extraordinary measures to suppress insubordination, excited violent indignation among a large portion of the Irish members. Mr. O'Connell denounced the address as "bloody, brutal, and unconstitutional." He concluded by moving an amendment, that the house do now resolve itself into a committee of the whole house to consider of the address to his majesty. Mr. Stanley replied in a speech of caustic severity, which the agitators of Ireland have never forgotten or forgiven. He argued that coercion was necessary; that crime could not be put down in Ireland but by the strong arm of the law. Colonel Davis considered Mr. Stanley's speech as an insult to Ireland, and as proving that he

was totally unfit for office. He was opposed to the repeal of the union; but unless justice were dealt out to Ireland by measures of relief being proposed, he would vote against the coercive policy contemplated by government. Mr. Roebuck expressed himself to the same effect: he would not join with ministers in doing what must produce a civil war in Ireland: if they did not take care, they would find the people rise up in such terrible array that they would not know where to turn. Lord Althorp declared that it was the intention of ministers to remove every grievance they possibly could; but, he asked, was it not a grievance that, in Ireland, life and property were not secure—that murder, burglary, and arson should exist in every part of that country? If it was their duty to remove grievances, ought they not to remove this grievance also? The debate was continued by adjournment on the three following days; the general strain of the arguments adduced coinciding with those expressed on the first day of the debate. The opposition to the address was chiefly conducted by Irish members, although they received likewise the support of Messrs. Hume, Cobbett, Bulwer, Tennyson, and Clay. Mr. Bulwer told ministers that the independent representatives of the people in that house, three hundred in number, were allied to no old party, and attached to no superstitious observance of Whig names; and that these members could not, night after night, hear grievances stated by the Irish members, which, received no other answers except demands for soldiery, without dropping off in serious defection from the ministerial majority. Mr. Tennyson said, that he had no doubt of the good intention of ministers; but he could not approve of their conduct in pressing the house to adopt the address. At the same time he could not support the amendment of Mr. O’Connell, and he therefore proposed another to this effect:—“That the house should declare its readiness to sanction such measures for restoring social order in Ireland, as might appear, on mature deliberation and inquiry, necessary, and to entrust his majesty’s official servants with additional power for that purpose, and to employ its best energies to the putting an end to the disturbances which affect that country; that, while the house would give a willing ear and earnest attention to the complaints and petitions of the Irish people, with the view to promoting an efficient remedy, it was prepared to resist by every means in its power all lawless attempts to effect a repeal of the legislative union between the two countries.” Mr. Macaulay taunted Mr. O’Connell with not having ventured to bring the question of repeal before the house. He asked, what was meant by the watchword of repeal of the union between Great Britain and Ireland. If those who used it meant a complete separation, or a species of Hibernian republic, their conduct was both comprehensible and consistent; but if, as they asserted, they only meant two separate independent legislatures, under the same monarch, the motion was inconsistent with the first principles of the science of government. After having shown this inconsistency by a chain of conclusive reasoning, he said, that he admitted Ireland had grievances to remove; but, he asked, was he in the meantime to see the law outraged and despised by a misguided multitude? Talk of the distribution of church property in a country where no property was respected! and be told that to enforce the laws against the robber, the murderer, and the incendiary, was to drive an injured people into civil war! Did those who talked thus wildly recollect that sixty murders, or attempts at murder, and six hundred burglaries, or attempts at burglary, were committed in one county alone, in the space of a few weeks? This was worse

than civil war. He would rather live in the midst of many civil wars he had read of, than in some parts of Ireland. Civil war had commenced, and if not checked, it would end in the ruin of the empire. Mr. Shiel, in reference to repeal, entrenched himself behind quotations from speeches delivered by Lord Grey at the time of the union, in which he predicted that it would only lead to distress, suspicion, and resentment, and that the people of Ireland would seek an opportunity of recovering rights which they would believe to have been wrested from them by force. The interest of the debate ended with Mr. Shiel's speech, although addresses were subsequently made by Mr. Grant, Mr. Hume, and Sir Robert Peel. On a division, Mr. O'Connell's amendment was lost by a majority of four hundred and twenty-eight against forty; and Mr. Tennyson's, by three hundred and ninety-three against sixty. On the bringing up of the report, Mr. Cobbett moved that the whole of the address should be rejected, and that another which he had concocted should be adopted. This crude amendment was negatived by an overwhelming majority: only twenty-three in a full house voted for it.

CASE OF MR. PEASE.

During the general election, the southern division of the county of Durham had returned Mr. Pease, a gentleman who belonged to the Society of Friends. On the 9th of February, when he appeared to be sworn in, as a Friend he refused to take an oath, but offered to give his solemn affirmation. He was desired by the speaker to withdraw, as no affirmation could be made without the sanction of the house. A committee was appointed, on the motion of Lord Althorp, to report what precedents were to be found on the journals, and what was the state of the law in regard to Friends being allowed to substitute affirmation for oath. The report of this committee was taken into consideration on the 14th, and its chairman, Mr. Wynn, moved that Mr. Pease was, on making his solemn affirmation, entitled to take his seat, without taking those oaths which were demanded from the other members of the house. Mr. Wynn stated, at great length, the reasons which induced him to make this motion, and the solicitor-general agreed in his views. It was quite clear, the latter said, that at the time of passing the 7th and 8th William III., Friends could not sit in parliament, having been excluded, along with all other dissenters, by the 30th Charles II.; but under the act of William they would have been admissible, if its provisions, as they ought to have been, had been construed liberally. At all events, the act of George II. removed every doubt: it was evident that the legislature, in passing that act, intended to put Friends on the same footing in England with all other dissenters, except Catholics; such being the case, the act ought to be construed in accordance with the intention of the legislature in passing it. The motion to allow Mr. Pease to make his solemn affirmation in place of the usual oath was agreed to unanimously.

IRISH COERCION BILL.

On the 15th of February, Earl Grey introduced into the house of lords a bill for the suppression of disturbances in Ireland. In doing so, his lordship related the evils which called for such a measure, clearly showing that it was necessary. In explaining the provisions by which ministers proposed to meet the evils, he said, that the bill combined many provisions of the several laws that had been passed both in the Irish and English parliament for the repression of such outrages as he had related, with

such alterations as circumstances seemed to require. Provision was made for proclaiming districts in a state of disturbance; and it was provided that courts should be appointed in which offences connected with such districts were to be tried. It was also provided that persons prosecuted under this act should be obliged to plead forthwith, as in cases of felony, and not be permitted to delay their trial. By the bill the lord-lieutenant was to be empowered, on due information, to proclaim any district to be in a disturbed state. All persons were to be warned to abstain from seditious and illegal meetings; and no one was to be absent from their houses after sunset until sunrise, unless they could give good reason for their being abroad, under the penalty of being found guilty of a misdemeanour. Another provision was, that meetings for the purpose of petitioning parliament, or for discussing grievances, should not be held without giving ten days' notice to the lord-lieutenant, or without his sanction. It was further thought advisable that proclaimed districts should, to a certain extent, be subjected to martial law. Military courts were to be formed for the trial of all offences under this act, with power to pronounce sentence as definitively as any commission of oyer and terminer. The lord-lieutenant was to have the power for the appointment of courts-martial; and it was provided that courts-martial should not consist of more than nine gentlemen nor less than five. It was further provided, that no officer under twenty-one years of age, or who had held his commission for less than two years, should act on such courts-martial; and that the said courts-martial should not have the power of trying for any offence to which a felonious punishment was attached, except by special direction of the lord-lieutenant; and that, in that case, they should only pronounce sentence of transportation, either for seven years or for life. It was made imperative that a serjeant-at-law or a king's counsel should sit to assist in the judgment. A clause was likewise introduced to shield officers who had. acted on courts-martial under this act from future prosecution: any complaints made against them on account of their proceedings at any court-martial were to be inquired into by a court-martial to be called for that purpose. The bill further gave power to enter houses in search of arms; and persons refusing to produce them were subjected to punishment. It was also made a misdemeanour to disperse seditious papers in a proclaimed district; with a provision that, if the persons actually dispersing them gave up his employer, the former should be discharged. Finally, it was to be enacted, that when an individual arrested under this bill sued out a writ of _habeas corpus_ within three calendar months after his arrest, it should be a sufficient return to the writ, that the person so detained was kept in custody on a charge of offence perpetrated in a proclaimed district; at the same time it was provided that every person arrested should be brought to trial within three calendar months, or should be discharged. This bill was carried in the lords without opposition; some slight amendments being adopted in the committee with reference to the constitution, the powers, and the mode of procedure of the courts-martial. The bill, however, had to encounter a stormy course in the commons. On its appearance there on the 22nd, the first reading was postponed till the 27th, and Mr. O'Connell gave notice that he would move a call of the house for that day, and would repeat the call whenever he perceived any relaxation of its effects, so long as the bill was before them. He taunted ministers with the delay, which he insinuated was interposed to their remedial measures, and reminded them there was another house of parliament through which

they might find it impossible to carry redress of grievances, whatever was the unanimity with which it enacted measures of coercion: “a house where any proposal springing from malignant hatred of Ireland was sure to pass.” Mr. Stanley denied that there was any necessity for remedial and repressive measures going on together; but at the same time he declared that if ministers found themselves unable to carry both they would resign office. On the 27th, the house having been called over, Lord Althorp moved the first reading of the bill. Ministers, he said, had waited to the last, to ascertain what order could be restored by the ordinary administration of the laws; and after relating at length the evils which afflicted Ireland—telling-many a tale of murder committed with impunity, even in broad daylight—he explained the provisions of the bill concocted to repress them. In conclusion, he asserted that the bill had no reference to the collection of tithes, as some had hinted, or any other individual purpose, except the maintenance of social order. The motion was met by an amendment from Mr. Tennyson, that the bill should be read a second time that day fortnight: his object being, as he stated, to give government an opportunity, whether in a select committee or otherwise, to satisfy the house that the dangers which had been stated really existed, and that there were no other means of effectually checking them. The amendment was supported by Messrs. Bulwer and Grote, the former of whom was averse to coercion in any shape, and contended that it would only produce mischief. Mr. Grote admitted that good grounds had been stated why the hands of justice should be strengthened, but he objected very strongly to courts-martial being employed in the administration of justice. To him it appeared that it would be much better if, instead of creating these courts-martial, the bill had granted more extensive, prompt, and efficient powers to the civil courts. Mr. Stanley, in reply to Mr. Grote, said it was true that the committee of last year had recommended a tribunal consisting of the magistrates of the neighbourhood sitting at quarter-sessions, and having power to sit by adjournment from time to time, till tranquillity was restored. He contended, however, that it would be a most objectionable thing to confide the administration of such a law to the local magistracy. The debate was continued up to the 5th of March, the Irish members threatening to have recourse to repeated motions of adjournment if any attempt was made to close the discussion prematurely. The opposition was composed of those who considered that the bill ought to be resisted altogether, as well as of those who thought that delay, as involved in the amendment, should be conceded. The members who opposed it were Messrs. O’Connell, Shiel, O’Connor, Baldwin, Barron, O’Dwyer, and Ruthven, among the Irish members; and Messrs. Romilly and Harvey, with Majors Beauclerk and Fancourt, among the English members. On the other hand, the necessity and efficacy of the bill were maintained by Lord John Russell, Sir R. Peel, and Mr. Macaulay, with other English members; and by Messrs. Carew, Tennent, and Lefroy, Lords Castlereagh and Acheson, and Sirs R. Bateson and C. Coote, among the Irish members. The opposition contended that no necessity for the bill had been made out to any extent, much less to the effect of utterly destroying the constitution over the whole of Ireland; that the “prædial agitation” had no connection with political agitation, and did not require any measure like this to put it down; and that the true cause of these disturbances was the refusal of ministers to abolish tithes, and the true object of it to prevent all expression of public sentiment in Ireland against their faithlessness and

misgovernment. Those who supported the bill contended, on the other hand, that not only were the existing outrages such as to require extraordinary measures contrary to the constitution, and that when this necessity for overstepping the constitution once existed, it was safer to err on the side of vigour than to run the risk of a half-measure; but that it was likewise proved that this “prædial agitation,” as it was called by the repealers, was closely connected with the political agitation; the principle of both was intimidation. Sir Robert Peel admitted that the measure was one of intolerable severity if there was not a paramount necessity for it; but he denied that it was a suspension of the British constitution. As for the amendment proposing delay, Sir Robert said that he could not listen to it for one moment; the necessity for the measure was urgent. What could be answered to the astounding fact that in one year and in one province there had been one hundred and ninety-six murders and attempts at murder, one hundred and ninety-four burnings, one thousand eight hundred and twenty-seven burglaries and attacks on houses? How could the state of society be worse! and how could the people of Ireland be better off by persevering in maintaining the existing law! One hundred and ninety-six murders! Why, great battles had been fought, and great victories achieved by this country at a less expense of human blood. The battle of St. Vincent had been gained at less cost of life; the sanguinary bombardment of Algiers had caused less loss of life; and we had rolled back the impetuous tide of French exultation at the battle of Busaco with less loss of life. There was something animating in the idea of a battle; but what horrid recollections haunted the mind which had witnessed a murder! The debate was closed by Mr. O’Connell, who, smarting under the severe remarks made by some of the speakers, delivered a speech of remarkable energy. Ministers, he said, after combating at length the principles of the measures, had done their best by enforcing the tithe act; it was not their fault that the case was not worse. As for the attacks made upon himself he cared nothing for them personally; but the wrongs of his country were mixed up with them. Why, he asked, did they not pass an act to banish him? That would be fair and manly, and he would consent to it; but let them not banish the constitution from Ireland. He stood in a reformed parliament, in the midst of the representatives of the great and glorious people of England, who, disguise it as they might, were about to legislate against a single individual. What mighty work! He felt compassion for them. On a division, the first reading of the bill was carried by a majority of four hundred and sixty-six to eighty-nine. This was a preponderance which seemed to promise an easy passage through its other stages, especially as the discussion which is generally elicited at the second reading took place on the first reading. When, however, the order of the day for the second reading was moved, Mr. Hume opposed it in a violent speech, denouncing the apostasy of ministers: they had forgotten, he said, and violated the principles of which they had been the noisy advocates for twenty-five years, and to which advocacy they were wholly indebted for their political reputation and power. He warned them against “the wickedness of their proceedings,” and called on them to pause in their rash career. He moved as an amendment:—“That the house deeply laments the disturbed state of some of the districts in Ireland, and is willing to entrust to his majesty whatever powers may be necessary to control and punish the disturbers of the public peace, and the midnight violators of the law; but is of opinion that it has not been satisfactorily shown that the

existing laws are not sufficient for these purposes, and it cannot, therefore, give its consent to a bill which places Ireland out of the pale of the British constitution." Alderman Wood seconded this resolution; but, on a division which took place on the 11th, the second reading being put off on some matter of form to that day, the amendment was rejected, and the second reading carried by three hundred and sixty-three against eighty-four. But notwithstanding this overwhelming majority, the progress of the bill through the committee on the 13th, 15th, 18th, 19th, and 22nd of March was a series of conflicts. On the 13th Mr. O'Connell moved an instruction to the committee to "preserve inviolate and effectual the undoubted right of his majesty's subjects in Ireland peaceably to propose, prepare, and present petitions for redressing grievances to his majesty, and to both houses of parliament." This, he said, would still leave hope to his country. This proposition was rejected by one hundred and twenty-five against sixty-three; and in the committee Mr. O'Connell moved several amendments, which were likewise negatived. In the committee ministers themselves inserted a provision by which, even in proclaimed districts, offences purely political were withdrawn from the cognizance of the military tribunals, and left to be dealt with by the ordinary civil jurisdiction. Ministers, also, of their own accord, omitted, in the clause giving powers to search, arrest, and detain for trial in proclaimed districts, the provision which gave this power to "such other persons as the said lord-lieutenant shall think fit to authorize in that behalf." Divisions took place on the clauses establishing the courts-martial, suspending the Habeas Corpus Act, and protecting those who should act under the bill: but these were all carried by large majorities. The bill finally passed on the 23rd of March, and was immediately sent back to the peers for their concurrence in the alterations which had been made in the commons. Their lordships took these into consideration on the 1st of April; and though much dissatisfaction was expressed by the peers with the amendments, and especially with a proviso inserted in one of the clauses, that no district should be proclaimed because tithes were not paid in it, the bill was finally passed. The effect of the bill was such as was desired. On the 10th of April the lord-lieutenant issued a proclamation suppressing the association of volunteers, after which he applied the provisions of the act to the county of Kilkenny with the best effect. It soon appeared, indeed, that the list of outrageous offenders against the laws decreased throughout the country. The discussions on the coercion act had produced many personal conflicts in debate between Mr. O'Connell and the Irish secretary. O'Connell seemed to regard Mr. Stanley with bitter hostility, arising partly from the vigour with which he repelled the attack of the repealers, and from the supposition that he was not disposed to give up any of the revenues of the Irish church. Mr. Stanley, however, now retired from the battle by accepting the more tranquil office of colonial secretary, which had become vacant by Viscount Goderich being made lord-privy-seal, and advanced a step in the peerage by becoming Earl of Papon. Sir John Cam Hobhouse succeeded Mr. Stanley as Irish secretary.

IRISH CHURCH BILL.

{WILLIAM IV. 1832–1833}

While carrying on their measures for tranquillizing Ireland, ministers had uniformly admitted that grievances existed in Ireland which ought to be redressed. They had also declared their readiness to propose expedients for that purpose. At the head of these grievances, the Irish established church had always been placed, it standing in the peculiar predicament of possessing large revenues, whilst a majority of the people belonged to a faith, the clergy of which had once been the possessors of that opulence. The object of the repealers was to diminish these revenues, while they disclaimed any wish of seeing them bestowed on their own clergy. There were others, at the same time, and those not Irishmen, who, regarding every religious establishment as an evil, considered the property of the church as a fund which might be seized for what they denominated the purposes of the state. It was with this subject that government next dwelt, and in doing so they adopted a middle course—conceding much, but not conceding all that was required of them. The measures which they intended to pursue were unfolded in the commons by Lord Althorp, on the 12th of February. It appeared from his statement that the total revenues of the Irish church were found not to exceed £800,000 per annum. On these funds, he said, it was the intention of ministers, after abolishing first-fruits, to impose a tax varying from five to fifteen per cent. This tax, however, was not to be imposed on clergymen whose livings were under £200 per annum. The larger revenues of the primates, he said, were to be reduced respectively to the amounts of £10,000 and £8000 per annum. The sum thus collected was to be applied under commissioners to the abolition of church-cess; the augmentation of poor livings and building of glebe-houses; the division of unions, and the erection of churches. With respect to the offices of deans and chapters, it was proposed, wherever they were unconnected with the cure of souls, to abolish them altogether, or to unite them to such cure; and with regard to livings, where no duty had been done for the last three years, it was further proposed to suspend the appointment of ministers at the discretion of the commissioners. Ten bishoprics were to be abolished, and the vacated sees were to be annexed to those preserved. With reference to the lands attached to bishoprics the chancellor of the exchequer laid down this principle, namely, that if by the act of parliament to be introduced any new value was given to benefices, that new value not belonging properly to the church might be appropriated to the exigencies of the state. He believed, he said, that £500,000 per annum was the value of all Irish episcopal lands to the lessees or tenants, though the bishops did not receive more than £100,000. By a different mode of granting leases, his lordship showed that a sum of near £3,000,000 might be acquired for the state without any diminution of income to the bishops. His lordship concluded by moving for leave to bring in a bill to alter and amend the laws relating to the established church in Ireland. The plan thus unfolded by Lord Althorp was calculated to produce hostility from two opposite quarters,—from the conservative opposition, who thought its principles destructive to the Irish church; and from the economists, repealers, and radicals, who thought that it left too much of the church untouched. At the same time it was clear that these different kinds of opposition would not endanger the success of the bill in the commons, as ministers were sure of being joined by one of the parties in resisting any amendment proposed by the other. Moreover, most of the Irish members approved of tire plan so far as it went, although Mr. O’Connell denounced the estimate of the Irish

church revenues as “a base delusion,” and the design of government as one which tended to “relieve no grievance except church-cess, not even suspending the war against the poor man’s pig and tenth potato.”

Leave was given to bring in the bill; but it was not brought in before the 1st of March. It was read a first time on the same evening; but the proposal to take the second reading on the 13th was successfully opposed by Sir Robert Peel, Sir R. Inglis, and others, ministers consenting to let it stand for the 14th. On the 14th, when the motion was made for reading the order of the day, Mr. C. Wynn objected that the bill was a tax-bill, and therefore could originate only in a committee of the whole house. This view was combated by Lord Althorp, Mr. Stanley, and the solicitor-general; and supported by Sir Robert Peel, and Messrs. Goulburn and others. The objection was so strong that Lord Althorp found himself under the necessity of discharging the order for the second reading; and, on the suggestion of Sir R. Peel, a select committee was appointed to search for precedents, and report its opinion whether the bill should, according to the rules and orders of the house, originate in a committee of the whole house. This committee reported that the bill was a tax-bill; and in consequence of this decision Lord Althorp, on the 1st of April, moved three resolutions with reference to the Irish church in a committee of the whole house. These resolutions having been agreed to, the bill relating thereto, which was a counterpart of the former, was read a first time. The second reading was fixed for the 6th of May, on which day Mr. Shaw met the motion with an amendment that it should be read that day six months. He opposed the bill, he said, because it would violate the rights of property, and because it tended to lower the character of the clergy. If property so fenced by acts of parliament, as church property was, could be assailed, he asked, what species of property could be safe? He admitted that it was desirable to change the system of church-cess; the Irish clergy themselves would not have objected to a proper remedy for this; but he would have sought a substitute for it in the reduction of the incomes of the bishops, and not in the diminution of their number. The amendment was seconded by Mr. Estcourt, one of the members for the University of Oxford, who thought that where the principles of the bill were not mischievous, as involving the first example of a confiscation of property, they were fallacious in the results which it was promised they would produce. Sir Robert Peel said that he approved of many parts of the bill—as that part which required that the spiritual duties of the clergy should be personally discharged, and of that which provided for the abolition of the church-cess. At the same time there were other parts of the bill, he said, which he disliked. Lord Althorp and Messrs. Stanley and Grant maintained that there was no ground for denying the right of parliament to interfere with the church property; and argued with regard to the diminution in the number of bishops, that the bill did not suppress bishoprics, but only consolidated them. The second reading of the bill was carried by three hundred and seventeen to seventy-eight. Before the house went into committee, Mr. Gillon moved an instruction to the committee, that the bill should contain certain provisions for resuming all the temporalities of the Irish church, and applying them after the demise of the present incumbents to purposes of general utility; but this motion was at once negatived. The reduction of the number of bishops was strongly opposed by the committee; but the clause was nevertheless carried. The

most important discussion arose on that part of the measure which took £3,000,000 from the church to apply it to state purposes. Both the conservative and radical party were opposed to this; and though there could be no doubt that ministers would be able to carry the clause through the commons, they had ascertained that it would certainly be rejected by the lords. On these grounds, when the house came to that clause, Mr. Stanley moved that it should be omitted. He remarked:—“I am well aware that a strong feeling exists against the alienation of church property, and therefore I propose that the sum alluded to should be paid into, the hands of the ecclesiastical commissioners, to be applied to the same purposes as the other with which they are entrusted.” Mr. O’Connell immediately attacked government in a strain of unmeasured reproach. Many other members also contended that ministers, by relinquishing this cause, had degraded themselves in the eyes of the country, and that, if the house was to have tory measures, it ought to have them under a tory ministry. But although many of the supporters of the ministers deserted them from this cause, yet the omission of the clause was carried by a majority of two hundred and eighty against one hundred and forty-eight. In the committee, also, it was agreed that beneficed clergymen in present possession of their livings were to be exempted from the graduated tax: it was only to affect their successors. On the third reading of the bill, Mr. Shiel moved the insertion in the preamble of the following words:—“That whereas the property in the possession of the established church of Ireland is under the control of the legislature, and is applicable to such purposes as may be deemed most fitting for the best interests of the community at large, due regard being paid to the rights of all parties interested.” A long discussion took place on this motion, in which old arguments were repeated, and on a division it was rejected. The bill was read a third time on the 8th of July, by a majority of two hundred and ninety-seven against ninety-four.

It was in the upper house, however, that the bill was exposed to the greatest danger, since there existed among the peers a majority capable of defeating ministers on any occasion which they might consider expedient. It was read a first time in that house _pro forma_, and the second reading was fixed for the 17th of July. In the meantime, the commons, aware of the danger to which the bill was exposed, were on the alert. On the 15th of July Sir J. Wrottesly proposed a call of the house of commons, to promote its success as that of the reform bill had been ensured, namely, by putting the members under arms, as it were, at the critical point of its progress. Ministers deprecated the motion as tending to embarrass the administration, and defeat the very end for which it was proposed. At the same time they declared that their official existence would depend on the success of the bill. The motion was pressed to a division; but it was lost by a majority of one hundred and sixty to one hundred and twenty-five. The debate on the second reading of the bill in the upper house was continued by adjournment on the 17th, 18th, and 19th of July, it being strongly opposed by many of the bishops and peers. After an animated discussion, however, the second reading was carried by one hundred and fifty-seven votes against ninety-eight. In the committee it was proposed by the Duke of Wellington, that instead of all the three civil commissioners being named by the crown, one of them should be named by the head of the church, one by the primate of Ireland, and

one by the archbishop of Dublin. Ministers conceded this point; but they successfully resisted another, moved by the Earl of Wicklow, to the effect that the appointment of the four bishops to the board of commissioners should be vested in the bench of Irish bishops. They also successfully resisted an amendment moved by Lord Gage, that the clause imposing the tax should be extended to lay-impropriators as well as clerical. A proposal was next made that the ten bishoprics should not be immediately abolished, but that as they became vacant the crown, if so minded, might grant them to be held in _commendam_ with the see to which the bill proposed to unite them, while it should have power at the same time to grant their revenues to the commissioners. Earl Grey declared that if this amendment were carried it would be fatal to the bill; and it was lost, though only by a majority of fourteen, seventy-six voting for it, and ninety against it. Lord Wharncliffe then moved that the produce of tax imposed upon the clergy should be appropriated to the augmentation of small livings, and that the commissioners should not have power to apply it to other purposes for which parish cess was levied. This amendment was lost by a majority of twenty; but ministers were left in a minority of two, on the clause empowering the commissioners to suspend appointments to benefices in which divine service had not been performed during three years before the 1st of February, 1833. An amendment was agreed to, that in all such cases the bishop of the diocese in which the benefice might be situated, should be entitled to act as a member of the board; and that the revenues of the suspended benefice should be applied to the building or repairing of the church or glebe-house in such benefice; or if they should not require it, that then the revenues should be paid into the general fund, under the management of the commissioners. On this defeat Earl Grey adjourned the committee, in order to allow time for considering whether ministers ought not to throw up the bill and resign. On the next day, however, his lordship stated that they had resolved to proceed with the bill; the effect of the amendment would be far from an improvement to the bill, but he did not deem it such an alteration, affecting the general efficiency of the measure, as would justify him in abandoning the duty he had imposed upon himself of conducting it through the house. At the same time, he said, he would not disguise from their lordships that he laboured under deep sensations of difficulty and embarrassment in consequence of the vote; and he felt that if any further alterations of the like nature should be made, it would be for him to consider how far it would be possible for him, consistently with his duty to his sovereign and his country, to continue the conduct of the measure. Some further alterations were admitted on the bringing up of the report. One of these went to guard against the future contingency of the lord-chancellor and lord-chief-justice of Ireland, members of the board, being Catholics; and another placed at the disposal of the two archbishops ten livings, not exceeding £800 a-year each, connected with the suppressed bishoprics, for the purpose of being bestowed on the junior fellows of the University of Dublin. The bill was passed on the 30th of July, by a majority of one hundred and thirty-five against eighty-one; and on the 2nd of August the commons agreed to the amendments which had been made by the peers. Mr. O’Connell observed that the lords had not made the bill much worse than they found it, and protested against its being considered in any other light than as the first instalment of the debt due to Ireland.

IRISH TITHE BILL.

Another measure connected with Ireland arose from the difficulty of collecting tithes. It has been seen that in the preceding year an act was passed, enabling government to advance to the Irish clergy such amount of tithes as had been illegally withheld during the year 1833, and empowered the executive, on making such advance, to levy the arrear itself. This expedient only inflamed the animosity of the tithe-payers, since it created a creditor whom it was apprehended would be more difficult to resist. Ministers, therefore, resolved to relinquish this plan; and they proposed instead of it that government should be empowered to abandon all processes under the existing law, to pay up all arrears, and to seek reimbursement in a different manner. On the 12th of June Lord Althorp moved that it was the opinion of this committee that an advance of money should be paid to the clergy of the established church in Ireland, in order to relieve the occupying tenants from payments on account of arrears of tithes, or composition of tithes in the year 1833, such advance to be paid within a limited time by a land-tax chargeable on all land liable to the payment of tithes, the owners of which should not have paid the tithes, or composition of tithes, which became due during such years. This was generally approved of by O'Connell and the Irish members, though they insisted that it should be extended to lay-impropriators as well as clerical. There were others who opposed it because they thought it would be holding out a premium to lawless violence, and an invitation to resistance to the payment of tithes. Moreover, a third party were for rejecting it, because instead of involving the principle that the Catholic population should not be taxed in any shape for the Protestant church, it seemed to contemplate the perpetuation of the impost. In accordance with the expressed opinion of the committee, a resolution was moved to the effect:—"That his majesty be enabled to direct exchequer-bills to an amount not exceeding £1,000,000 to be issued, for the purpose of advancing, under certain conditions, the arrears of tithes due for 1831 and 1832, subject to a deduction of 25 per cent., and the value of tithes for 1833, subject to a deduction of 15 per cent., to such persons as may be entitled to such arrears on such tithes, and as may be desirous of receiving such advances; and that the amount advanced shall be included in the tithe-composition, so as to be repaid in the course of five years, being payable by half-yearly instalments." This plan was strongly opposed, principally on the ground that the money would never be repaid, since repayment was still to depend on a collection of tithe, which never would succeed. The pretended loan would be converted into a gift, and England, besides paying its own tithes, would also be paying those of Ireland. The resolution was carried by eighty-seven to fifty-one, and a bill founded on it was brought in and passed both houses without any important alteration. The measure was regarded by the Conservatives as a mischievous precedent, and they asserted that any existing necessity for it had been produced by ministers' own misgovernment.

FINANCIAL STATEMENTS.

The budget was opened on the 1st of April. As this was the first occasion of bringing any financial statement before a reformed parliament, the chancellor of the exchequer said that he thought it right to state what progress had been made in

redeeming that pledge of economy on which the administration had taken office. In the number of places abolished, he showed that there had been a saving effected of £192,000, and he said that the diplomatic expenses had been reduced by £91,735. A saving of £28,000 had also been effected by bringing a number of persons from the retired list in the revenue department, and placing them on active service. The state of the finances was more satisfactory than during the last session. The chancellor of the exchequer stated that the amount of the income and expenditure of the year was respectively £46,853,000 and £45,366, leaving an excess of income over expenditure of £1,487,000, an excess which would be more than sufficient to cover the deficiency of £1,240,412 of the preceding year. He estimated the revenue for the present year at £46,494,128, and the expenditure at £44,922,219, which would leave a surplus of about £1,572,000. He thought it desirable, he continued, that a reduction of taxes should be made to the extent of this surplus. He proposed to make the reductions on taxes chiefly which fell on industry; and he selected tiles, marine insurance, advertisements, the assessed taxes, cotton, and soap, as the taxes to be reduced. The estimated loss to the revenue by these reductions was £1,056,000, which would leave a surplus for the year, after the above reductions, of £516,000. Mr. Hume thought the reductions were neither sufficiently great nor sufficiently numerous; they ought to be pushed at least to the extent of the estimated surplus. On the contrary, Sir Robert Peel was disposed to think that the chancellor of the exchequer had carried reduction too far: it was dangerous, he said, to reduce taxes to such an extent as might affect our ability to keep faith with the public creditor. He concurred, however, in the general view the noble lord had taken of the subject: he had acted wisely in maintaining the system of taxation as it stood at present. The financial statements of the chancellor of the exchequer appear to have given general satisfaction, for there was no discussion on the details.

BANK OF ENGLAND CHARTER RENEWED.

On the 31st of May Lord Althorp brought the subject of the renewal of the Bank of England charter before the commons. In doing so he stated at great length the terms on which government had determined to consent to a renewal of that charter; after which he laid the following-resolutions on the table of the house, that they might be considered:—“That it is the opinion of the committee, that it is expedient to continue to the Bank of England, for a limited period, the enjoyment of certain privileges now vested in law in that corporation, subject to provisions to be hereafter made: That provided the Bank of England continued liable, as at present, to defray, in the current coin of the realm, all its existing engagements, it was expedient that its promissory note should be constituted a legal tender for sums of £5 and upward: That one-fourth part of the debt at present due by the public to the Bank be repaid during the present session of parliament: That the allowances to the Bank on the management of the national debt, and other public business be continued, subject to an annual deduction of £120,000 from the remuneration at present assigned for that purpose: That the laws restricting the interest of money to five per cent, be repealed, so far as concerned bills not having more than three months to run before they become due: That it is expedient that royal charters be granted for the establishment of joint-stock banks, within a certain distance from London: That all banks should enter into a

composition, in lieu of stamp-duties, at present chargeable at the rate of seven shillings for every one hundred pounds issued in notes: That it is expedient that a bill should be introduced into parliament to regulate country banks, the provisions of which should be such as to encourage joint-stock banking companies in the country to issue the notes of the Bank of England." These resolutions were moved on the 1st of June, and the first of them was met by an amendment to the effect of delaying the consideration of the measure till the ensuing session. The opposition proceeded principally from members hostile to the renewal of the privileges of the Bank; and to that hostility they now added objections to particular parts of the proposed plan. They demanded delay in order that there might be more full inquiry, and they contended that such inquiry would make it manifest, that the exclusive privileges of the Bank ought not to be renewed. The amendment, however, was lost by three hundred and sixteen to eighty-three, and the first resolution, affirming the propriety of continuing the privileges of the Bank was agreed to without a division. The second resolution, making the notes of the Bank of England a legal tender for sums of £5 and upwards was opposed still more energetically, as being both unnecessary and mischievous; but it was carried by a majority of fifty-eight. Lord Althorp, however, agreed so far to modify the proposal as to make it incumbent to pay all £5 notes in gold, if demanded. To the resolution which provided for the continuance of remuneration, a counter resolution was moved, to the effect that it was, in the opinion of the committee, expedient that the remuneration now insured by law to the Bank of England for the management of the public debt and other public business should cease; but this was also lost by a large majority. The sixth and eighth resolutions, which went to regulate the establishment of joint-stock banking companies were abandoned for the present, Lord Althorp conceiving that the opposition was so strong that he should not be able to carry them, at least during this session. A bill founded on these resolutions was brought in and read the first and second time without a division. On the motion for going into the committee, Mr. Gisborne moved as an amendment that the committee should be taken that day six months; but this was lost by a majority of one hundred and nineteen against forty. In the committee multifarious amendments were proposed, but without success. One alteration, however, was made by ministers themselves. They had believed that the existing law prohibited deposit-banks, no less than banks of issue, consisting of more than six partners, from being established in the metropolis, or within a short distance of it; but the solicitor-general had now satisfied himself that, as the law stood, no such restriction existed, and a clause was introduced declaring such to be, and to have been the law, although there were legal opinions the other way, and although the Bank, and all mercantile men, had acted on the belief that the restriction did exist. As the bill passed the commons, its chief provisions were, a monthly publication of the Bank accounts; the repayment of a portion of its capital; a partial repeal of the usury laws which impeded its action; an annual payment of £120,000 in return for privileges conceded; its notes made a legal tender except at the Bank itself, or its branches; a quarterly return of the amount of circulation of all other banks; and certain regulations for the improvement of joint-stock banks. The bill passed the upper house without alterations: an amendment moved by Lord Whynford to leave out the declaratory clause regarding deposit-banks, as being contrary to law, mercantile understanding, and good faith, having been

rejected. Government, also, refused to allow the opinion of the judges to be taken regarding the legality of such companies under the existing law.

EAST INDIA QUESTION.

Another monopoly with which the government had to deed was that of the East India Company, their charter approaching its termination. The arrangements which government proposed should be adopted with the company were explained in a committee of the whole house by Mr. C. Grant, on the 13th of June. He stated first that the political government of India was to be continued in the hands of the company for some time longer; the reasons for it being the good which that government had done. That there were evils in the system of administration in India he would admit; but he argued, that they were more than counterbalanced by the security of life and property, which had been secured to the natives by the rule of the company. The next great question was, he said, the company's monopoly of the trade with China. Public opinion had decided that it should no longer exist; and it was only justice to the expression of the public opinion in this case to state that it was not the clamour of the moment—that it was the voice of an enlightened community formed during a succession of years. After detailing various facts, to show that from the competition of private traders the monopoly of the company could not long continue, even if parliament did not interfere, Mr. Grant said that government proposed the monopoly should cease in April, 1834, and that the trade to China should then be open to all the merchants of this country. In consideration of the East India Company surrendering all its rights and privileges, Mr. Grant said it was proposed that the government of India should be continued in the hands of the company for the period of twenty years, and that an annuity of £630,000 per annum should be granted to them, to be charged on the territory of India. At the end of twenty years, he said, if the East India Company should be deprived of the government of India, then the payment of their capital might be demanded; and if not, the payment of the annuity was to be continued for forty years. He explained further, that certain alterations were likewise to be introduced in the frame of the government of India; and he said that he should further have to call the attention of the house to the state of the ecclesiastical establishments in that country. He concluded by moving the following resolutions:—"That it is expedient that all his majesty's subjects should be at liberty to repair to the ports of the empire of China, and to trade in tea and in all other productions in the said empire, subject to such regulations as parliament shall enact for the protection of the commercial and political interests of this country: That it is expedient that, in case the East India Company shall transfer to the crown, on behalf of the Indian territory, all assets and claims of every description belonging to the said company, the crown on behalf of the Indian territory, shall take on itself all the obligations of the said company, of whatever description; and that the said company shall receive from the revenues of the said territory such a sum, and paid in such a manner as parliament shall enact: That it is expedient that the governments of the British possessions in India be entrusted to the said company, under such conditions and regulations as parliament shall enact, for the purpose of extending the commerce of this country, and of securing the good government, and promoting the moral and religious improvement of the people of India." These resolutions were agreed to

without any opposition; and on the 5th of July they passed the lords without a division, although they were sternly opposed by Lord Ellenborough, who denounced the whole scheme as being a crude and ill-digested plan, the offspring of unfounded theories, formed by men who knew nothing, and desired to know nothing of India. A bill was subsequently brought into the house of commons founded on the resolutions, and, after some unsuccessful motions of amendment, was carried. In the upper house Lord Ellenborough renewed his opposition, and moved, “That all provisions in the bill, which went to alter the existing laws in the East Indian presidencies, should be omitted.” This amendment, however, was not pressed to a division; and the bill was finally passed. One of the greatest advantages which the public gained by this important measure, was that which opened a rich field for the enterprise and industry of our merchants by destroying the monopoly of the trade in tea. Facilities for conducting this branch of commerce, together with a considerable relief from taxation on the article of tea, was given try a subsequent bill for regulating its importation. It must be confessed, indeed, that the adoption of this measure by parliament was highly beneficial to the interests of the community at large. By it the long and complicated account between commerce and territory was settled; the pernicious union of imperial and economical functions in the body of proprietors of East India stock was at an end; every office under the company was thrown open to British subjects without distinction, and the whole of India was opened to European enterprise and European capital. A grand feature of the bill, also, was that which provided for extending the influence and utility of the Anglo-Indian church.

ABOLITION OF SLAVERY IN THE COLONIES.

{WILLIAM IV. 1832–1833}

At the commencement of this session, the minds of reflecting persons were fixed with intense anxiety on the subject of West India slavery. The excitement attending the reform act, indeed, had not been neglected by the friends of emancipation. Meetings were held and petitions got up: and government found themselves under the necessity of framing a measure for the gradual abolition of the trade in the bones and the sinews of man. The subject was brought before the commons by Mr. Stanley on the 14th of May, when he explained the ministerial scheme in a committee of the whole house. Government, he said, impelled by the force of public opinion, resolved to propose a plan which would insure the extinction of slavery, and manumit not only future generations, but likewise the existing generation, providing at the same time against the dangers of a sudden transition. It was proposed, he said, to place the slave for a limited time in an intermediate state of apprenticeship. He was to enter into a contract, by which his master would be bound to give him food and clothing, or in lieu thereof a pecuniary allowance; for which consideration he, on his part, was to give his master three-fourths of his time in labour, leaving it to be settled between them whether that should be for three-fourths of the week or of each day. The remaining fourth of his time, Mr. Stanley said, the slave would be at liberty to transfer his labour elsewhere; but if he were inclined to give it to his master, then his master would be obliged to find him employment according to a fixed rate of wages.

It was a difficult point, he said, to settle the scale of wages; and he could devise no better mode than that of compelling the planter to fix a price on the labourer at the time of his apprenticeship, and by enacting that the wages to be paid by the master should bear such a proportion to the price fixed by him, that for the whole of his spare time he should receive one-twelfth of his price annually. In this manner, he said, the slave and his master would both act in reference to each other: if the master fixed a high price on his negro, he would have to pay him proportionate wages; and if a low price, then upon the payment of that price by any other person on his behalf, the negro would be free. This measure, he continued, must necessarily occasion loss to many of the West Indian proprietors; and, as it was not fitting that they alone should lose by the destruction of this species of property, the legality of which had at least been recognised by parliament, ministers proposed to advance to the West Indian body a loan to the amount of ten years' purchase of their annual profits on sugars, rum, and coffee, which would amount to £15,000,000. It was for parliament to say in what manner, and upon what condition, that loan should be repaid to the country; it might be considered equal to one-fourth of the proceeds of the slaves' labour; and with that sum and the other three-fourths of his labour, the planter, at the end of twelve years, would have received a just compensation for the price of his slave, and for all the expense to which the slave might have put him for food and clothing. It was right, however, to state that during that time the planter would have to pay interest for his loan, and to that amount, perhaps, he might be the loser. In conclusion, Mr. Stanley said, he would call upon the house to aid the local legislatures in the West Indies in establishing schools for the religious and moral education of the slave population. He moved the following resolutions:—"That it is the opinion of this committee that immediate and effectual measures be taken for the entire abolition of slavery throughout the colonies, under such provisions for regulating the condition of the negroes as may combine their welfare with the interest of the proprietors: That it is expedient that all children born after the passing of any act, or who shall be under the age of six years at the time of passing any act of parliament for this purpose, be declared free, subject, nevertheless, to such temporary restrictions as may be deemed necessary for their support and maintenance: That all persons now slaves be entitled to be registered as apprenticed labourers, and to acquire thereby all the rights and privileges of free men subject to the restriction of labouring under conditions, and for a time to be fixed by parliament, for their present owners: That, to provide against the risk of loss which proprietors in his majesty's colonial possessions might sustain by the abolition of slavery, his majesty be enabled to advance by way of loan, to be raised from time to time, a sum not exceeding in the whole £15,000,000, to be paid in such manner, and at such rate of interest, as shall be prescribed by parliament: That his majesty be enabled to defray any such expense as he may incur in establishing an efficient stipendiary magistracy in the colonies, and in aiding the local legislatures in providing for the religious and moral education of the negro population to be emancipated." The consideration of these resolutions was adjourned to the 30th of May. On that day the first resolution, after considerable debate on the character of the planters, and on the subject of the compensation to be given to them, was agreed to without a division. Sir Robert Peel said that he would have preferred a declaratory resolution, it appearing

to him that the co-operation of the colonial legislative was indispensable to tire success of the measure. He doubted the policy of using the words “immediate and effectual measures shall be taken for the entire abolition of slavery throughout the colonies;” they were calculated to raise expectations unwarranted by the measure; it was a great evil in establishing a preliminary resolution. The first impression of any man upon reading this resolution, and especially the first impression of an illiterate and ignorant man would be this:—“You never meant to subject me to coerced labour for twelve years.” The second resolution also passed without a division; but the third, which involved the principle of the compulsory apprenticeship, was met with a direct negative by Mr. Fowell Buxton, on the ground that it was unnecessary and impracticable. It was founded on this assertion—that emancipated negroes would not work, or, at least, would not work more than was necessary to supply the mere wants of life. This opinion he showed by facts was ill-grounded; and he proved to demonstration that the negroes, if free, would work more cheerfully than while enslaved. He moved that the resolution be rejected. He was supported by Mr. Halcomb and Buford Howick, the latter of whom said that it was not necessary as a groundwork for future proceedings; and that, on the other hand, if the house agreed to it, they would pledge themselves to a system of apprenticeship of which they did not yet know the full effect. This was dealing rather hardly by the house; government should avoid calling upon the house, at this stage of the proceeding, distinctly to pledge themselves to do that of which they had not yet heard a satisfactory account. It was easy to talk of apprenticing negroes; but the plan was neither more nor less than a subversion of the existing relations of society in the colonies, and organising an untried system, the adoption of which must be attended with difficulties. His objection to the provision was, that the labour of the negro was, for the greater part of his time, to be obtained by direct compulsion; his opinion was that the negroes would be in a worse condition at the termination of the experiment than they were at the present moment. Ministers replied that the question was not, as it had been represented, merely one of gradual or immediate abolition; no matter what might be the period of apprenticeship, whether ten or twelve years, from the moment the bill passed, slavery in the British colonies, in its offensive and essential features, was for ever annihilated. The bill recognised the rights of property; it conferred freedom from corporal punishment; it respected the domestic ties of the negro in their tenderest relations; and it ensured to him a considerable portion of the fruits of his own labour: with these great enactments surely it was not too much to say that slavery, in its obnoxious features, could not be said to exist. Mr. Buxton, having been assured that the resolution did not bind the house to any particular period of compulsory labour, withdrew his motion to reject it, and proposed to insert words declaring that the labour was to be for wages. He withdrew this likewise; but Mr. O’Connell insisted on dividing the house on the original resolution, when it was carried by three hundred and twenty-four to forty-two. The fourth resolution, respecting the compensation to planters, was attended with still greater difficulty. The original proposal was a loan of £15,000,000, for which they were to pay interest; but ministers found such stern opposition from the West India planters, that they were compelled to convert this loan into an absolute payment of £20,000,000. Mr. Stanley, after admitting the difficulty of ascertaining what the amount of compensation ought to be, moved that

“Towards the compensation of the West India proprietors, his majesty be enabled to grant a sum not exceeding £20,000,000, to be appropriated as parliament may hereafter think fit.” This proposition called forth much opposition and many amendments; but it was finally earned by a majority of two hundred and ninety-six against seventy-seven. The fifth and last resolution was carried by a majority of two hundred and ninety-six against seventy-seven; and the whole were then sent to the peers, who agreed to them on the 25th of June. On the motion for going into committee on the bill brought in pursuant to the resolutions, Mr. Buxton again discussed the question of compulsory apprenticeships. He moved, that it be an instruction to the committee that they shall not, for the sake of the pecuniary interests of the masters, impose any restraint or obligation on the negro which shall not be necessary for his own welfare, and for the general peace and order of society; and that they shall limit the duration of any temporary restrictions which may be imposed upon the freedom of the negroes, to the shortest period which may be necessary to establish, on just principles, the system of free labour for adequate wages. He was supported by Lord Howick and Mr. Macaulay, who before had opposed him on the same question, but who now declared that he had an insurmountable objection to the transition state, which was to be interposed between the cessation of slavery and complete freedom. If it could be proved, he said, that any restraint was proposed, the effect of which was to improve the morals of the negro, to promote his habits of industry, and to enable him better to discharge the duties of a freeman and citizen, he would give his assent to such a restraint; but he thought that the restraint was not laid upon the negro, as it ought to be, with the sole view of improving his character: one of the objects was, not his own advantage, but as a compensation to the planter. In reply, Mr. Stanley said that the compensation was of two sorts: one was a sum to be paid down now for the remission of one-fourth of the labour of the slave, and the whole would be paid by the end of twelve years, when the negro would be completely free. The sum to be paid to the colonies was taken with reference to the estimated value of the slave, and to the interest of money: taking that value at £30,000,000 for 800,000 slaves, would give £37 10s. for each. It was not extravagant to say that such a sum was about the average value of a slave. He went on to say that one-fourth of the labour of the negro was to be taken from the master, and placed at the disposal of the negro himself; but for the remaining three-fourths he was to be maintained by the master. Now the maintenance, taken at a moderate average, was calculated at fifty shillings each; this for 800,000 negroes would be £2,000,000 per annum, and the one-fourth of this would be £500,000; and this at the end of twelve years would make a great difference in the sum to be paid to the master. Calculations would show that if the value of £30,000,000, or £37 10s. each were taken, and the interest of money calculated at six per cent., the sum to be paid to the master would be £27,000,000; but if the value of the slaves were taken at £24,000,000, and the interest of money at six per cent., £15,000,000 would be the sum to be paid to him. Besides this, the allowance for the advances for the support of the slave would, at ten per cent., amount to £3,406,000; at eight per cent., to £3,786,000; and at six per cent, to £4,900,000. This would show that the apprenticeship materially came into the account, in estimating the compensation to the master for his loss; and the compensation would not be made in a state of slavery,

but in a state of comparative freedom. Mr. Stanley said that if the West India proprietors were asked what they thought of the plan of apprenticeship, they would say that they could not go on without it; and that without the application of such a principle in the bill, the colonies would go to ruin, and the proprietors be reduced to beggary. In fact, he said, if Mr. Buxton's motion should be carried, he must be prepared to see the whole frame of civilization in the colonies destroyed, and a state of things brought about which, however they might in time settle down into some improvement, must at least begin in barbarism. On a division, Mr. Buxton's amendment was lost by a majority of only seven, one hundred and fifty-one having voted for it, and one hundred and fifty-eight against it. The result of this division convinced government that they must make some concession on this point; and on the following day Mr. Stanley resolved to reduce the period of prodial apprenticeship from twelve years to seven, and of non-prodial from seven to five years. This was adopted, and clauses were added, empowering the commissioners for the management of the national debt to raise the money by a loan, specifying the manner in which the operation was to be conducted after which the bill passed. In the upper-house some amendments were added to the bill, which did not affect its substance, and these were finally agreed to by the commons. Thus the dark spot of slavery was wiped out of the British annals; we had no slaves at home, and now it was nobly resolved that we should have none abroad—that wherever Britain's power was felt, mankind should feel her mercy also.

FACTORY BILL.

During the former session, Mr. Sadleir had introduced a bill for shortening and regulating the employment of children of certain ages in cotton and other factories, and protecting them against maltreatment, to which it was alleged they had long been exposed. Evidence had been taken regarding the subject matter of the bill before a committee of the house of commons, and in this session a similar measure to that of Mr. Sadleir's was introduced by Lord Ashley. The bill was opposed by the great body of the manufacturing capitalists, many of whom had been sent into the house by the reform act, and who possessed powerful interest out of it. Mr. Patten moved an address to the king to name a royal commission, for the purpose of collecting evidence anew, founding his motion on the ground that the evidence taken before the committee was partial, defective, and untrue. Lord Ashley, and others, contended that this motion was not only uncalled for, but would be detrimental: fresh inquiry was needless, inasmuch as the house was in a condition to legislate on the subject, not only in consequence of the information obtained from the committee of last year, but also of that furnished by the other house of parliament. Mr. Patten's motion was negatived, and the bill was read a second time; and then ministers, alarmed at the probable success of a measure which, as it stood, would seriously interfere with the manufacturers of the country, arrayed themselves more openly against it. Lord Althorp opposed the motion for going into committee, and moved, "That the bill be referred to a select committee, with this instruction—that the committee should make provision in said bill, that no children who had not entered into their fourteenth year should be allowed to work for more than eight hours a-day; and that in the intervals of their labour, care should be taken for their education, and

that inspection of the mills should take place, in order to secure the operation of the above provisions." This motion was rejected, and Lord Ashley's bill was carried into committee, by one hundred and sixty-four to one hundred and forty-one. Government, however, did not give up its opposition. The bill had adopted ten hours as the maximum of labour daily, which extended to all persons under eighteen years of age; and when the second clause, which involved the principle, was moved in committee, Lord Althorp opposed it. He proposed as an amendment, that instead of the word "eighteen," the word "thirteen" should be inserted; expressing, at the same time, his intention of following that up by substituting "eight" instead of "ten". The amendment was carried by a large majority, and Lord Ashley abandoned the bill to the chancellor of the exchequer, in whose hands its enactments were considerably mitigated. As altered, the bill provided that the labour of children in factories under thirteen years of age should be limited to eight instead of ten hours a-day; that the provisions of Sir J. Hobhouse's bill should be extended to other mills besides cotton mills; and that persons under eighteen years of age should not be required to work more than sixty hours in the week. It also provided that it should be illegal to employ any children under nine years of age; that inspectors should be appointed to see that the provisions of the bill are duly enforced; and contained provisions for introducing a general system of education amongst the children in all the manufacturing districts. In the committee Mr. Wood proposed an amendment, to the effect, that at the expiration of six months after the passing of the act, no child under eleven years of age should be permitted to work more than eight hours a-day; that no child under the age of twelve years should be permitted, after the expiration of eighteen months from the passing of the bill, to work for more than eight hours a-day; and that after the expiration of two years from the passing of the bill, no child under the age of thirteen years should be permitted to work more than eight hours a-day. This amendment was opposed by Lord Althorp, on the ground that it would postpone the operation of the measure, but it was carried against him and it formed a part of the measure.

THE CORN LAWS.

The people had long been taught to consider the corn laws as unjust monopolies, which enriched the landowner, by depriving the poor of "cheap bread," and they firmly expected that reforming ministers and a reformed parliament would forthwith abolish them. Ministers, however, were not inclined to take up the question, and parliament was not yet prepared to respond to the general demand. On the 17th of May, Mr. Whitmore moved the following resolutions:—"That the present system of corn laws, founded on a high and ever-varying scale of duties, while it fails of conferring permanent benefit on the agricultural interest, tends to cramp the trade, and impair the general prosperity of this country; that an alteration of these laws, substituting in their stead a moderate duty, fixed at all periods except those of extreme dearth, while it indemnified the agriculturists for the peculiar burthens which press upon them, would, by restoring the commercial relations between this kingdom and foreign countries, increase the manufactures, and render more equal the price of the produce of the country." Lord Althorp objected to the resolutions principally on account of the time at which they were brought forward, considering the many important questions which yet remained for the consideration of

parliament; he therefore moved the previous question, which was carried by three hundred and five against two hundred and six. A few days previously certain resolutions relative to the same question were negatived in the house of lords without a division; and in the commons, on the 18th of June, a motion for leave to bring in a bill to alter the corn laws was rejected. The corn laws, therefore, were yet retained in the British code.

RESOLUTIONS AGAINST BRIBERY, ETC.

The result of the elections showed that the first reformed parliament had no small quantity of bribery to deal with. The prevention of this evil, therefore, was an object which a reformed house of commons was especially bound to secure. On the 6th of February, Lord John Russell moved the same resolutions which had been adopted by the preceding house, and which diminished obstacles that stood in the way of effectually questioning a corrupt election. According to the resolutions which had hitherto been adopted as the standing orders of the house on this subject, the return of a member could be questioned only within fourteen days after the assembling of parliament, or after his return, if the house were then sitting; and it was the practice of persons who made use of bribery to secure their elections, not to make any payments till that period was passed, in order to avoid the penalties attached to such conduct. In the hope of checking this evil, Lord John Russell moved, “That all persons who question any future return of members to serve in parliament upon any allegation of bribery or corruption, and who shall in their petition specifically allege any payment of money or other reward to have been made by any member, or on his account, or with his privity, since the time of such return, in pursuance of, or in furtherance of, such bribery and corruption, may question the same at any time within twenty-eight days from the time of such payment; or if this house be not sitting at the expiration of the said twenty-eight days, then within fourteen days after the day when the house shall next meet.” This resolution was agreed to, many members regretting that it did not go further, and maintaining that a bribery-oath should be administered to the members as well as to the electors. Subsequently petitions were received from Liverpool, Warwick, Stafford, Hertford, Londonderry, Carrickfergus, and Newry; and in all these cases it was proved that gross bribery had been resorted to at the elections. Writs were suspended for Warwick, and bills were brought in for the disfranchisement of Stafford, Hertford, and Carrickfergus, while several individuals were ordered to be criminally prosecuted. As the session was drawing to a close, the bills were not persevered in before its termination. An attempt was made by Mr. Grote, one of the members for the city of London, to establish voting by ballot; that alone, in his estimation, being the only means of securing purity of election. This, however, was negatived, after a long and earnest discussion, by two hundred and eleven against one hundred and six. Another discussion relative to the constitution arose on a motion by Mr. Tennyson, for leave to bring in a bill to shorten the duration of parliaments. In support of his motion, Mr. Tennyson enforced the ordinary topics, that the septennial act had been passed to meet a temporary emergency; that it had originally been an exception from the rules of the constitution; that the consequence of it had been general corruption both among the electors and the representatives; and that it rendered the members too independent of their constituents, and in so far

defeated the object of a representative government, and prevented the operation of the public opinion. There was a difference of opinion, he said, as to the number of years which ought to be fixed for the duration of parliaments, some being in favour of five, others of four, and others of three years. He thought they were bound to consult the general wishes of the people, and it appeared to him that they were in favour of triennial parliaments. At the same time, in the bill which he proposed to bring in, he intended to leave the term of future parliaments unfixed, so that it might form a subject of debate in committee. His bill contained two clauses, one to repeal the septennial act, and the other to determine the period of each parliament's existence. The resistance of the proposition was left to ministers themselves, and Lord Althorp's mode of getting rid of it was by moving the previous question. He was ready to acknowledge, he said, this was a question which he would support, if parliament were in the same situation as heretofore; but things were now changed, and he believed that the feelings and opinions of the people were fairly represented in that house. He did not think, therefore, that the same necessity existed for abridging the duration of parliaments, as before the passing of the reform bill. The motion was supported by Messrs. Cobbett, Kennedy, Shiel, and other members, and opposed by Lord John Eussell and Mr. Stanley. On a division, the previous question was carried by a majority of forty-nine, two hundred and thirteen having voted for it, and one hundred and sixty-four for the motion.

BILL TO REMOVE THE CIVIL DISABILITIES OF JEWS.—PROROGATION OF PARLIAMENT.

At this period the Jews alone were the only class of the community whose religion affected their rights. Towards the close of the session Mr. Goulburn brought in a bill to remove their civil disabilities, and it passed the commons, but was thrown out on the second reading in the house of lords. The session was closed on the 29th of August by his majesty in person, who in his speech touched upon the various important measures that had this session occupied the attention of parliament. It may be mentioned that government had recently appointed a commission for inquiring into the state of corporations, and for digesting into one body the enactments of the criminal law, and inquiring how far, and by what means, a similar process might be extended to the other branches of our jurisprudence. It may also be mentioned that two important acts had been passed for giving constitutions upon sound principles to the royal and parliamentary burghs of Scotland, a change by which the whole system of self-election was entirely abolished. His majesty embraced all these topics in his speech. On the subject of Ireland his majesty expressed his regret that coercive measures had been necessary; but he had not found it desirable, except in a very limited degree, to use the powers confided to him, and he hoped that the time was not far distant when repressive laws might be no longer unavoidable.

FOREIGN AFFAIRS.

{WILLIAM IV. 1832–1833}

During this year a prospect of the close of the dreadful calamities which had so long weighed down the people of Portugal dawned upon them. At its commencement Oporto still continued to be the scene of operations; the regent occupying that city, and Don Miguel maintaining his positions and his battery on the left bank of the river and to the north of the city itself. The operations continued to consist of partial bombardments across the river, or engagements of detachments, occasionally varied by more regular attacks and sallies to destroy works already erected, or prevent new ones from being raised. There was not much blood shed, and the results of the operations made no decisive or permanent change in the relation of the armies to each other. At the beginning of March, indeed, a battle was fought, in which it was stated that the Miguelites lost fifteen thousand men, and their adversary only one hundred; but still it left matters where it found them—Oporto was still besieged. At length, however, a decisive blow was struck at the power of Don Miguel on the seas. While the operations on land were going forward, Don Pedro was involved in a dangerous quarrel with his admiral, Sartorius, which resulted in his giving up the command of the fleet, and with his being replaced by another British officer, Captain Napier. Under his command an expedition sailed to the Algarves, the most southern province of the kingdom, having on board two thousand five hundred men, commanded by the Duke of Terceira, for the purpose of invading that part of the country. The cities of Tavira, Faro, and Lagos were soon captured, and in the course of a week the whole province of Algarves was in possession of Don Pedro. But a still heavier blow awaited Don Miguel. Admiral Napier, having disembarked the troops and witnessed their success, set sail to return to the mouth of the Tagus to watch the squadron of Don Miguel, or bring it to battle. He fell in with it on the 2nd of July, off Cape St. Vincent, and a battle ensued, in which the squadron of Don Miguel was annihilated. He had now only the land to trust to, and there he was soon defeated. Having regained the province of Algarves, the Duke of Terceira marched towards Lisbon, and having reached the left bank of the Tagus he was encountered by an army said to have consisted of five thousand men, under the command of Talles Jordao. The battle was brief, and the victory complete: Jordao was routed, his army scattered, and he himself killed. The effect of the battle was to put Don Pedro’s troops in possession of Lisbon: they entered unmolested on the 24th of July, and Donna Maria was immediately proclaimed Queen of Portugal. As soon as Don Pedro received intelligence of what had taken place at Lisbon, he sailed from Oporto to assume the government. The war was now transferred to Lisbon; and a series of battles took place between the troops of Don Pedro and those of Miguel, and the year closed before the contest was decided. Donna Maria, however, ruled in Portugal, and a British minister again presented himself at the court of the rightful sovereign of the country. The English government at the same time strictly adhered to the neutrality which it had imposed on itself; but, taught by experience, it did not trust to assurances of the same line of conduct from other powers, and especially from the court of Madrid. It prepared itself, indeed, for all events, by sending a powerful squadron under Admiral Parker to the Tagus, with orders to take an active part for Don Pedro the moment a Spanish force should appear in Portugal to assist Don Miguel.

Early in this year Greece received her youthful monarch. Otho was welcomed by the various chiefs and populace with all due marks of respect and obedience; and awakening from the torpor of ages, Greece took her place among the civilized nations of Europe. The kingdom was divided into ten departments:—1. Argolis and Corinth; 2. Achaia and Elis; 3. Messene; 4. Arcadia; 5. Laconia; 6. Acarnania and Ætolia; 7. Locris and Phocis; 8. Attica and Beotia; 9. Eubcea; 10. the Cyclades. The local government of each department was assisted by a council; and at the head of each circle or district into which they were subdivided, was placed an eparch, with a distinct board. The first acts of the government were to disband the irregular troops, to organise a new and regular army, and to endeavour to provide something like an administration of justice. The disbanding of the irregular troops, however, did not contribute to the internal tranquillity of the country; on the contrary, it threw large numbers of savage men out of employment, and many of them formed themselves into bands for the purposes of plunder. One of these bands sacked the Turkish town of Arta, in Epirus slaughtering the inhabitants, and setting their houses on fire. The massacre lasted three days; after which the marauders, laden with booty, took refuge in the mountains.

While Turkey was thus shorn of one of her European provinces, she was doomed to see a rebellious, but victorious vassal make himself master of her Asiatic territories. Ibrahim Pacha, who had during the last year opened a way across Mount Taurus, lost no time in descending into the plains of Caramania. Here he fought a great battle with the Turkish troops, under the command of the grand vizier, Redschid Pacha, whom he utterly defeated and took prisoner. Constantinople was almost at his mercy; there was no obstacle between Ibrahim and the shores of the Bosphorus; and he seemed to be only waiting for the arrival of fresh troops, which were on their march through Syria to join him, to traverse Anatolia and assail the capital. The danger, however, was averted by the exertions of the British government, assisted by that of France. The Egyptian army retired from Asia Minor; and the Russians, whom the Sultan had called in for its defence, and from whom he was in no less danger than from the sword of Ibrahim, left Constantinople. By a treaty which was concluded between the Sultan and Mehemet Ali, the former gave up the whole of Syria, granting at the same time an amnesty to all its inhabitants for the conduct which they might have followed during the expedition of Ibrahim. The Pasha of Egypt became by this treaty more powerful than the master from whom he had revolted; his rule extended from the limits of Asia Minor to the mouth of the Nile. A treaty was subsequently concluded between the Porte and Russia, in which the preponderating power of the latter was fully established. Russia was to aid the sultan in repressing all disturbances, and the sultan was to shut the Dardanelles, in particular circumstances, against all other nations. Both England and France complained that such a treaty had been concluded without their concurrence, and each of them had a fleet near the Sea of Marmora; but their remonstrances were unheeded, and their fleets returned. The popular and prophetic belief of the Byzantines, namely, that “the Russians in the last days should become masters of Constantinople,” seemed to be rapidly approaching its fulfilment.

The Belgian question had its origin in events antecedent to the formation of the present British cabinet, so that ministers were compelled to follow a course which had been adopted by their predecessors. When the revolution first broke forth in the Netherlands, the king called on his allies for troops. These were refused by the English government; but his next request, for the assembling of a conference, was granted. By subsequent acts of that assembly, the principle of separation between the two countries was established; and the task imposed on the present government was to settle the terms on which a separation should take place, so as to provide for the interest and security of all parties. The difficulties encountered in performing this task arose from the obstinacy of the Dutch monarch. By the armistice which his majesty had invoked in November, 1830, the citadel of Antwerp was to be evacuated in fifteen days; but the possession of that fortress enabled him to harass the Belgians, and to intercept their trade on the Scheldt, and therefore he refused to give it up. England and France, failing to obtain the co-operation of the other three powers, were obliged to have recourse to force: Antwerp was besieged by the French troops, and an embargo was laid on Dutch vessels by Great Britain. These vigorous measures disconcerted all the calculations of the Dutch monarch and of his partizans. At the beginning of this year Antwerp, supposed to have been impregnable, surrendered to Marshal Gerard. This event, together with the embargo laid on Dutch vessels, produced the convention of the 21st of May, by which the Belgian question was settled. This convention provided, “That immediately on the ratifications being exchanged, the embargoes laid on by Great Britain and France should be removed, and the vessels and cargoes restored, and that the Dutch garrison which had defended the citadel of Antwerp should return to Holland with all their arms and baggage: That Holland should not recommence hostilities against Belgium so long as a definite treaty had not settled their mutual relations; that the navigation of the Scheldt should be free, which was explained in a supplementary article to mean, that it was to be placed on the same footing as it had been prior to the 1st of November, 1812: That the navigation of the Meuse should be opened, subject to the provisions of the convention of Mayence of the 31st of March, 1831, relative to the navigation of the Rhine: That the communications between the frontier of North Brabant and Maestricht, and between that fortress and Germany, should be unimpeded: That the contracting parties should occupy themselves immediately with the definitive treaty, to which Austria, Prussia, and Russia should be invited to become parties.” The King of Holland having agreed to these articles, the principal point of discussion remaining was that of compensation: in the meantime Europe was secured against the danger of a general war, arising from the differences which had existed between Holland and Belgium.

CHAPTER XLIV.

{WILLIAM IV. 1834}

_Meeting of Parliament..... Mr. O’Connell’s Motion for the Repeal of the Union..... Divisions in the Cabinet..... Commission issued to inquire into the state of the Irish

Church..... Irish Tithe Question..... Renewal of Irish Coercion Bill..... Resignation of Earl Grey, etc..... Rejection of the Irish Tithe Bill by the Peers..... State of Ecclesiastical Questions, and the Claims of Dissenters..... Poor Laws Amendment Act..... The Corn-Law Question..... Financial Statements, etc..... Bill for the Removal of the Civil Disabilities of the Jews, etc..... Disputes with France regarding the Newfoundland Fisheries, etc..... Steam Navigation..... Prorogation of Parliament..... Dissolution of the Cabinet..... Sir Robert Peel appointed Prime-Minister..... Dissolution of Parliament..... The Act abolishing Slavery in the West Indies carried into effect..... The Affairs of Ireland..... State of the Continent, etc._

MEETING OF PARLIAMENT.

{A.D. 1834}

On the 4th of February the session was opened by the king in person. In his speech his majesty alluded to the slavery abolition bill introduced last year, stating that the manner in which that beneficent measure had been received throughout the colonies, and the progress made in carrying it into effect by the legislature of Jamaica, afforded just grounds for anticipating the happiest results. Among the various important subjects still calling for consideration, his majesty enumerated reports from the commissioners appointed to inquire into the state of municipal corporations, into the administration of the poor laws, and into the ecclesiastical revenues of England and Wales. His majesty also recommended the early consideration of such a final adjustment of the tithes in Ireland as might extinguish all just causes of complaint, without injury to the rights and property of any class of his subjects, or to any institution in church or state. Concerning the state of Ireland, his majesty remarked that the public tranquillity had been generally observed, and that the state of Ireland presented a more favourable appearance than at any period during the last year. The speech then reverted to the agitations in Ireland for the repeal of the legislative union, which it denounced in the strongest terms. The chief point in our foreign policy noticed by the king related to the government of Spain. He remarked:—“Upon the death of the late King of Spain, I did not hesitate to recognise the succession of his infant daughter; and I shall watch with the greatest solicitude the progress of events which may affect a government, the peaceable settlement of which is of the utmost importance to this country, as well as to the general tranquillity of Europe.” On the motion for an address in the house of lords, the whole policy of government, both domestic and foreign, was vehemently attacked by the Duke of Wellington, but no amendment was moved. In the commons, Mr. Hume, in opposition to the address said, that although there was a great deal in the speech about the independence of Turkey, and something about Portugal, &c., yet there was not one word about poor tax-ridden England. He moved an amendment to the effect, that the house would pledge itself to take into its immediate and serious consideration the state of the established church, as regarded its temporalities and the maintenance of the clergy, and also with a view to the removal of complaints which arose out of the mode in which tithe and church-rates were levied, in order to accomplish such changes as might give effectual relief both to churchmen and dissenters. This amendment was

negatived by a large majority; and another, altering the paragraph in the address to his majesty, expressive of the satisfaction of the house at the “uninterrupted enjoyment of the blessings of peace,” shared the same fate. Mr. O’Connell moved that the clause referring to the agitation for the repeal of the union should be omitted; but this was also negatived by an overwhelming majority. On the bringing up of the report on the address, an incidental discussion arose on the coercion bill of last session, which gave rise to an extraordinary scene, and to the committal of Lord Althorp and Mr. Shiel to the custody of the serjeant-at-arms. A charge had been made by Mr. Hill, one of the members for Hull, that one of the Irish members who had voted against the coercion bill, went secretly to one of the ministers, urging him not to bate a single jot of that bill, or it would be impossible for any man to live in Ireland. Mr. O’Connell referred to this charge, and he put two questions to the chancellor of the exchequer respecting it—namely, whether he, or any other member of the cabinet, had ever stated that an Irish member had acted in such a manner, and whether any Irish member ever went to the noble lord, or any other minister, and made the statement which had been imputed to him. Lord Althorp replied in the negative to both these questions; but, he added, that he should not act a manly part, if he did not declare that he had good reason to believe that more than one Irish member who voted and spoke against the bill, did in private conversation use very different language. A scene of confusion and crimination then ensued, in which Lord Althorp charged Mr. Shiel with being one of the gentlemen who had so acted, which Mr. Shiel denied in terms which left the house under the impression that a duel between those two members would ensue. Upon the motion of Sir Francis Burdett, both were placed under arrest until assurances were given that the matter should not lead to the apprehended results. Subsequently a committee of privileges was appointed to examine into this affair, and it appearing to the committee that there was no evidence to establish the charge, they made their report in favour of Mr. Shiel. Mr. Hill himself, finding that he had been deceived, acknowleged his error; and Lord Althorp said, that if Mr. Shiel would distinctly say that he had not done what his lordship had stated he had done, he should be bound to believe his assertion. Mr. Shiel readily made this statement, and thus ended this ridiculous interlude. Many believe that the subject was obtruded upon the house as much from a hope of embarrassing a rival in the work of agitation, as from a desire to vindicate the character of a friend. The public in general, however, looked on the matter with indifference.

MR. O’CONNELL’S MOTION FOR THE REPEAL OF THE UNION.

Mr. O’Connell had long made his boast in Ireland, that he would bring forward the question of the repeal of the union in the British parliament. His courage, from his non-performance of this promise, began to be doubted; and to save his credit, he was obliged to bring himself to trial. On the first day of the sessions he had given notices of two motions: one that the house should take the act of union into consideration, with a view to its repeal; the other for the appointment of a “select committee to inquire and report on the means by which the dissolution of parliament was effected—on the effects of that measure upon Ireland, and upon the labourers in husbandry, and the manufacturers in England—and on the probable consequences of

continuing the legislative union between both countries." He proceeded only with the last of the two motions, and he brought that forward on the 22nd of April. He commenced by declaring that there had never existed a greater mistake than to suppose that England possessed any right of dominion over the former country. He then entered at great length into the incompetency of parliament to pass the act of union; and having detailed the means by which it was accomplished, he proceeded to prove that the financial and legislative terms on which the great question had been settled were in their very nature fraudulent and unjust. Looking at these circumstances, he said, he dreaded the probable consequences of a continuance of the union. Ireland felt strongly on the subject; and he demanded that the bitter recollection of the past should be for ever effaced by the restoration of her people to their inalienable rights. Mr. O'Connell was answered at great length by Mr. Spring Rice, who enumerated the manifold advantages gained by Ireland from the union. He moved, therefore, that an address be presented to his majesty, expressive of the fixed and steady determination of the commons to maintain inviolate the legislative union between Great Britain and Ireland—a determination to be justified, not only on general grounds, but by reasons of special application to Ireland itself; declaring also, that while the house endeavoured to remove all just causes of complaint alleged by the Irish people, it would promote every well-considered measure of rational liberty. The debate on the subject was continued by adjournment for several days. The members who took part in it were—for the original motion, Messrs. O'Connor, Barron, Ruthven, Shiel, and others; and for the amendment, Messrs. Tennent, Littleton, Sandford, Lambert, and Sir Robert Peel, and others. Perhaps the most effective speech was that which was delivered by Sir Robert Peel, who said, he believed that no array of official documents, and no force of argument, could strengthen the conviction of the great majority of the house—a conviction that lay deeper than any argument could reach—that they would on no account consent to dismember the British empire. There were convictions connected with the feelings of the heart as well as with the faculties of the mind. Mr. Canning had said, "Repeal the union! re-enact the heptarchy!" The security of the empire depended on the maintenance of that union; without it England would be reduced to the condition of a fourth-rate power in Europe, and Ireland to the desolation of a wilderness. On a division the amendment was carried by the triumphant majority of five hundred and twenty-three against thirty-eight; the minority, with one exception only, consisting of Irish members. On the 30th of April the commons, in a conference, communicated their address to the lords, who, in one spirit, unanimously concurred in its sentiments, and ordered the blank, which was purposely left, to be filled up with the words, "lords spiritual and temporal." It was then presented to the king as the joint address of both houses; and his majesty, in reply, expressed the great satisfaction with which he had received the solemn and united declaration of both houses to maintain the union inviolate.

DIVISIONS IN THE CABINET.

In opposing the repeal of the union, ministers carried along with them the sense and feeling of the people; that was a question on which no man differed from them except O'Connell and his followers. Questions, however, connected with the Irish

church stood in a different light.

The agitators supported the repeal as a measure tending not more to perpetuate their own domination, than to secure the ruin of the Protestant establishment. Many, also, who resisted repeal, still demanded changes and curtailments in that establishment, they considering it the principal cause of all the turbulence and misery afflicting Ireland. There were others again who disliked it, not because it was a Protestant, but because it was a religious establishment; and such men inveighed against what they termed an unhallowed connection between church and state, and the practical injustice of compelling persons of one belief to support the institutions of a different creed. This party was ready to attack, not only the revenues, but the very existence of the Irish church, as the first step towards the destruction of that of England. Union in the cabinet, coupled with a determination not to be driven further than themselves were inclined to go, might have rendered ministers sufficiently strong to defy such destructive reformers. Unfortunately, however, on this question, the cabinet itself was divided. One portion of the ministers, numerically the strongest, seemed inclined to admit the principle of appropriation, which they had repudiated in the bill of last session, by withdrawing the clause in which it was contained. On the other hand, the minority, however willing to remove striking and useless inequalities in the distribution of the ecclesiastical revenue, and to adopt measures which would prevent irritating collisions in its collection, resisted on principle any transfer of it to other purposes; and they especially refused to acquiesce in proposals for making the Protestant establishment depend on the comparative strength or weakness of the Romish church. This discordance of opinion would have prevented ministers from starting the subject; but it was forced on them by a numerous party, which made up in fury and zeal what was lacking in knowledge and discretion. On the 27th of May, Mr. Ward, one of the members for St. Albans, moved a resolution for reducing the temporalities of the Irish church, as exceeding the spiritual wants of the Protestant establishment. This motion gave rise to a division in the cabinet. In supporting his proposition, Mr. Ward contended that vital and extensive changes in the church of Ireland had now become unavoidable on the grounds of mere expediency. The tithe system, he said, was the source of all the disorganisation that prevailed in Ireland. Resistance to it was almost universal, comprehending both Catholics and Protestants. Commutation, he argued, would do no good; a new appropriation of church property alone could produce even a momentary calm. Mr. Ward’s motion was seconded by Mr. Grote, who said that the means of relief must be suggested from a higher quarter when once the principle was recognised. Lord Althorp here arose to request the house to adjourn, in consequence of circumstances which had come to his knowledge since he had entered the house. He could not at present, he said, state the nature of these circumstances; but the house would doubtless believe that he would not make such a proposition without being convinced of its propriety. The house adjourned, according to Lord Althorp’s request; and it appeared that the circumstances to which he had alluded, and which had been communicated to him while Mr. Ward was speaking, was the resignation of those ministers who would not consent to the principle which his motion involved. Those who resigned were Mr. Stanley, colonial secretary; Sir James Graham, first lord of the admiralty; the Duke of Richmond,

postmaster-general; and the Earl of Ripon, lord privy-seal. These vacant offices were soon filled up: the Marquis of Conyngham became postmaster-general; the Earl of Carlisle accepted the privy-seal; Lord Auckland became the first lord of the admiralty; and the colonial office was filled up by Mr. Spring Rice. Lord Althorp stated afterwards that he was not aware of the necessity of these changes till after he had entered the house on the 27th; and the adjournment seems to have arisen from the fear that the retirement of these ministers would bring along with it the resignation of the whole. An address was got up and presented to Earl Grey by a great number of the ministerial adherents in the commons, entreating his lordship to retain his place; but though, in reply he announced his intention of making every personal sacrifice that might be required of him in support of the principles of the administration, he admitted that much embarrassment, as well as mischief, was produced by the reckless desire of innovation. The embarrassment of ministers was rendered still greater by the king himself, who, in reply to an address presented to him by the Irish bishops on the 28th of May, on behalf of the Irish church, remarked with peculiar emphasis:—“I now remember you have a right to require of me to be resolute in defence of the church. I have been, by the circumstances of my life and by conviction, led to support toleration to the utmost extent of which it is justly capable; but toleration must not be suffered to go into licentiousness: it has its bounds, which it is my duty, and which I am resolved to maintain. I am, from the deepest conviction, attached to the pure Protestant faith, which this church, of which I am the temporal head, is the human means of diffusing and preserving in this land. I cannot forget what was the course of events that placed my family on the throne which I now fill. These events were consummated in a revolution, which was rendered necessary, and which was effected, not, as has sometimes been most erroneously stated, merely for the sake of the temporal liberties of the people, but for the preservation of their religion. It was for the defence of the religion of the country that the settlement of the crown was made which has placed me in the situation which I now fill; and that religion, and the church of England and Ireland, the prelates of which are now before me, it is my fixed purpose, determination, and resolution to maintain. The present bishops, I am quite satisfied, have never been excelled at any period of the history of our church by any of their predecessors in learning, piety, or zeal in the discharge of their high duties. If there are any of the inferior arrangements in the discipline of the church—which, however, I greatly doubt—that require amendment, I have no distrust of the readiness and ability of the prelates now before me to correct such things; and to you, I trust, they will be left to correct, with your authority unimpaired and unshackled.”

COMMISSION ISSUED TO INQUIRE INTO THE STATE OF THE IRISH CHURCH.

On the 2nd of June, when the house reassembled, Lord Althorp stated that Mr. Ward’s motion had compelled ministers to take up the question of the Irish church; and he informed the house that his majesty had appointed a commission of inquiry into the state of church property and church affairs generally in Ireland. This commission, he said, was to be a lay commission; and it was to visit the different parishes and districts throughout Ireland; to inquire on the spot into the number of Protestants in each parish; whether that number was stationary, increasing, or

declining; whether it was a benefice, or if a parish forming part of a union; the distance and number of churches and chapels; the situation of the clergyman, how paid, and whether resident or non-resident; the times which divine service was or had been performed; the number of Protestants attending such service; and whether that attendance was stationary, on the increase, or declining. Similar inquiries were to be made in each parish and district with respect to Roman Catholics, and to Dissenters of every description, as well as to the number and the nature of schools in each parish. The commissioners were further to make minute inquiries in all parishes, touching other matters connected with the Irish church or church property, and to report thereupon. Lord Althorp, after making these statements, said that Mr. Ward's motion went to pledge the house that the amount of church property in Ireland was beyond the wants of that establishment; and next, that parliament had a right to regulate the distribution of church property, and to determine upon the reduction of the Irish church revenues as now established by law. He was of opinion that the house should legislate deliberately upon so grave a question, and he trusted that Mr. Ward would withdraw his motion, and feel satisfied with what government had done. Mr. Ward, however, refused to withdraw his motion: he must press, he said, for a recognition of the principle, because, from what was passing around him, he was afraid that the present ministers would not long continue in office. Lord Althorp then moved the previous question, principally on the ground that, of all questions, this was one which most required much previous inquiry and detailed information. Mr. Hume, and Colonels Davies and Evans supported the original resolution, declaring that the shuffling mode of proceeding adopted by government in regard to this question, rendered it impossible to repose confidence in ministers. After a long debate the amendment, however, was carried by a majority of three hundred and ninety-six against one hundred and twenty. The majority would have been still larger, had not a considerable number of conservative members, unwilling to wear even the appearance of tampering with the question, left the house before the division. The subject was brought before the lords on the 6th of June, by the Earl of Wicklow, who moved an address to his majesty for a copy of the commission, a motion which Earl Grey said he would not oppose. Many of the peers embraced this opportunity of stating their objections to the commission, contending that the measures on which ministers appeared to have resolved would end in the ruin of the church. Concession, it was said, could not stop here; it must go on from step to step, till nothing was left to be conceded. Earl Grey denied that he and his colleagues looked forward to anything that could be justly called spoliation of the church; they contemplated a great alteration, but nothing more.

IRISH TITHE QUESTION.

In the meantime ministers had been proceeding with a bill for the amendment of the tithe system in Ireland, founded on principles which should extinguish tithe altogether as a payment to be demanded in kind, and should lay the burden, directly at least, on a different class of payers. The provisions of the intended measure were explained on the 20th of February, by Mr. Littleton, the Irish secretary, in a committee of the whole house, met for the purpose of considering the portion of the king's speech relating to this subject. Government, he said, proposed in the first

place, that from and after the month of November next, composition for tithe should cease in Ireland, and in lieu thereof a land-tax should be imposed, payable to the crown, and to be collected and managed by the commissioners of woods and forests, of the same amount as the tithe-payment now exigible, and to be paid by the same parties who at present were liable. In the second place, he said, ministers proposed that this land-tax should be redeemable at the end of five years, by all who had a substantive interest in the estate. Thirdly, they proposed, he said, that so much of the land-tax as remained unredeemed on the 1st of November, 1839, should be converted into a real charge, equal to four-fifths of the land-tax, and payable by the owner of the first estate of inheritance in the land, who should be entitled to recover the whole amount over against his tenantry; these rent-charges would be redeemable or saleable for the best price to be had, not being less than the consideration for redemption of land-tax. In the fourth place, ministers proposed that the tithe-owners should be paid by warrants issued by the ecclesiastical commissioners for Ireland, and addressed to the commissioners of woods and forests: such payments to be of the amount of the compositions to which the tithe-owners might be severally entitled, subject to a deduction for the trouble, loss, and expense of collection. Finally, ministers proposed that on redemption of the land-tax or sale of rent-charges taking place, the payments by warrants were to cease; and that the redemption or purchase-money should be paid over to the commissioners for the reduction of the national debt, and to yield an interest of 2 ¼d. per diem. The money was to be drawn out from time to time, and invested in land, for the benefit of the tithe-owner entitled to the principal money. The great object of the measure, Mr. Littleton explained, was, if possible, to invest the produce of the land-tax and rent-charge in land, so as to give the tithe-owner £80 in land for every £100 tithe to which he had a claim. Where clergymen had already agreed to compositions, they would get tax to the same amount, redeemable on the same terms as in other cases; clergymen would, indeed, he said, be probably gainers of five per cent, by the change. Mr. Littleton concluded with moving the following resolution:—“That it is the opinion of this committee, that composition for tithes in Ireland ought to be abolished on and after the 1st day of November in the present year, in consideration of an annual land-tax to be granted to his majesty, payable by the persons who would have been liable to such composition for tithes, and of equal amount; that such tax shall be redeemable; and that out of the produce provision be made in land or money for the indemnification of the persons entitled to such composition.” The moderate members reserved their opinions until the details of the measure should be more fully before the house; but Messrs. O’Connell, O’Conner, Shiel, Grattan, and others of the same class, attacked it with unmeasured violence. The bill did not abolish tithe, and therefore it was not a bill to suit their notions. Of all the delusions which had ever been practised, they said, this was the most gross. Did ministers, they asked, think so meanly of the people of Ireland as to imagine that a change of name would be mistaken for a change of the thing, or that tithes would become less odious by being called a land-tax or an annuity? The people of Ireland objected not merely to the amount of tithes paid, but to the application of the funds thence arising: the objection to tithes was double, and now that objection would mix itself with rents. The landlords of Ireland must now look to themselves, for the principle upon which opposition to tithes had hitherto been

conducted would forthwith be applied to rents: the Irish people would not regard the present measure as the smallest alleviation of their misery. Mr. O'Connell proposed that two-thirds of the existing tithes should be abolished, the remaining third being left as a quit-rent on the land; and after providing for the life-interest of present incumbents, he said, he would apply the produce to relieving the landlord from grand-jury assessments, to the support of charities, and to other public purposes. Mr. Barron proposed that the tithe levied, to which he did not object, should be restored in part to the poor, they originally having had an interest in it. Mr. Grattan proposed a third scheme: he wished parliament to recognise the liability of property in Ireland to contribute to a fund for the support of religion and charity, but he wished also that such a fund should be different in collection and lighter in its amount than that now raised by the system of tithes. Lord John Russell characterised Mr. O'Connel's plan as one of direct robbery and spoliation, which would be advantageous to none but landowners. On a division the original motion was carried by a majority of two hundred and nineteen against forty-two. A bill founded upon it was then brought in; and on moving the second reading on the 2nd of May, Mr. Littleton mentioned certain alterations which had been introduced into the measure, evidently for the purpose of conciliating Irish members. The principal changes were that instead of a varying rate of deduction on account of the trouble and expense of collecting, there should be one uniform deduction of fifteen per cent, to tithe-owners, to be increased two and a half in cases where landlords had already taken upon themselves the payment of compositions; and that when leases of tithes had been made to the possessors of lands, the rent reserved on such leases or the composition, whichever was the smaller in amount, should be the measure of the land-tax; but the incumbent lessee was to receive the amount of the rent, subject to a reasonable charge for deficiency, the deficiency being made good out of the funds arising from the deductions. But no change could conciliate the Irish members: their opposition continued not only unrelaxed, but it even increased in violence. No plan, indeed, would have been acceptable to them which did not recognise the principle of despoiling the Protestant church. The new bill, they contended, would be as inefficient to tranquillise Ireland as its predecessors had been; and that a new insurrection act and an additional army would be necessary. The second reading, from the hostility of the Irish members, was not carried without long debates and various manouvres; and even the conservative members aided in delaying the measure. Their objection to it was not that it left too much to the clergy, but that it took too much from them. They deemed it necessary, however, to support ministers, in order to prevent worse measures from being brought forward. It was their belief that the money to be secured by the present measure was to be applied exclusively to the purposes of the church. This belief was somewhat shaken by Lord John Russell, who stated that he understood the bill to be one for securing a certain fund appropriated to religious and charitable purposes; and if parliament found it was not so applied, it would be its duty to consider of a new appropriation. His own opinion was, he said, that the revenues of the church of Ireland were too large for the religious and moral instruction of the persons belonging to that church, and for the safety of the church itself. When, therefore, this property was once successfully vindicated against those who unjustly withheld it, he would be prepared to do justice to Ireland, for if ever a people had reason to complain

of a grievance it was the people of Ireland, in relation to the present appropriation of tithes. These sentiments were hailed by some of the Irish members as announcing an approaching concession of all their demands, while others who thought differently complained that, if such were the intentions of government, they had been induced by a false belief to receive the bill with favour, even at the sacrifice of some of their own convictions. On a division, the second reading of the bill was carried by a majority of two hundred and fifty against fifty-four, the greater part of the minority being Irish members.

When the bill went into committee, lengthy debates ensued, and several important alterations were introduced into it from the opposition encountered. Thus the enemies of the Protestant church had loudly declaimed against the provision by which the redeemed land-tax was to be vested in land, and the land vested in the tithe-owner; and in consequence of this opposition that part of the bill which invested the revenues of the church in land, and consequently the redemption clauses were dropped. The composition was to be converted into a land-tax payable to the crown by the same parties who were now liable for the composition. The amount so collected was to be paid to the tithe-owners, subject to a deduction of three per cent. This state of things was to continue five years, at the end of which period four-fifths of the land-tax was to be converted into a rent-charge to be imposed on the owners of estates of inheritance, who should have the power of recovering it from their tenants, and all others who were primarily liable under the existing composition laws. The amount of these rent-charges was to be received by the crown, and to be paid by the crown to the tithe-owners, subject to a further reduction of two and a half per cent. for the expense of collection. Another objection to the bill had been that under the composition-acts, the tithe had been valued too high, and the payers determined to pay no tithe, and had even failed to attend the commissions by whom the composition had been struck. Effect was now given to this objection by the insertion of a provision conferring a power of appeal against the valuation of the amount of tithe-composition in certain cases and under certain restrictions. All the concessions made, however, failed to conciliate the Irish members. What was required by them was, a legislative declaration to the effect that the tithe should be diverted from Protestant religious purposes. On the 23rd of June, Mr. O’Connell moved as an instruction to the committee, “that after any funds which should be raised in Ireland in lieu of tithes had been so appropriated as to provide suitably, considering vested interests and spiritual wants, for the Protestants of the established church of Ireland, the surplus which remained should be appropriated to purposes of public utility.” This motion was seconded by Mr. Hume, and it led to another long debate, in which all the usual topics were again urged on both sides. This resolution, however, was lost by a majority of three hundred and sixty to ninety, and on the 30th of June the order of the day was moved for going into committee. This step was prefaced by the announcement of new and extensive alterations in the bill. It was now proposed to offer an inducement to the imposition of voluntary rent charges, by exacting that, in any case where the owner of the first perpetual estate in the land should be willing to subject his estate to a rent-charge in lieu of land-tax, and should declare his intention to that effect before the 1st of November, 1836, the land-tax should then cease, and

his property should become liable to a rent-charge, which should be a sum equal to the interest at three and a half per cent, on the amount of the land-tax multiplied by four-fifths of the number of years' purchase which the land might be fairly worth. Mr. Littleton said he thought that the landowners should be subject to no greater interest than three and a half per cent, on the amount of the land-tax thus determined by the proportion of years' purchase of the land, but that the difference between the amount of the rent-charge and the amount of the land-tax should not be less than twenty per cent, or more than forty per cent, on the amount of such land-tax. The difference, he continued, between the bonus given to the landlord and the deduction made from the tithe-owner, which deduction was to remain as originally proposed, would produce a considerable deficiency in the funds accruing to the commissioners of land revenue. It was proposed at first to make up this deficiency in the first instance from the consolidated fund, and to repay it from the perpetuity purchase-fund in the hands of the ecclesiastical commissioners under the act of last session. Finally, in all cases where a rent-charge should not have been voluntarily created before the expiry of five years, a rent-charge equal to four-fifths of the land-tax would be compulsorily imposed. Mr. O'Connell taunted ministers with weak and vacillating conduct, and insisted that the bill should not go into committee till it had been printed with the new clauses. The bill, he argued, was no longer the same: it had been altered again and again; eight additional clauses not originally contained in it, had already been inserted, and now came a fresh quantity of matter. Familiar as he was with the subject, he was not sure that he understood the new alterations, and he was quite sure that nine-tenths of the members did not understand them. Messrs, Stanley and Shaw joined Mr. O'Connell in thinking that some postponement was reasonable and necessary. Mr. Stanley said that it would be more decent to give time for the great alterations in view, and the deviations from the principles formerly adopted to be deliberately considered, after the bill should be again printed and put into the hands of members. The objection to proceeding with the bill was so forcible that Mr. Stanley's proposal was acceded to, and the committee was postponed. On the 4th of July, the house having gone into committee on another bill connected with the Irish church, Mr. Littleton explained more in detail the mode of fixing the bonus to be given to the landlords who submitted to voluntary rent-charges and the financial effects of it on the consolidated fund. He moved "that for any deficit which might arise in the sums accruing to the commissioners of woods and forests out of the land-tax or rent-charges, payable for the composition of ecclesiastical tithes in Ireland, to the payment of which the consolidated fund was pledged, that fund should be indemnified from the revenues in the hands of the ecclesiastical commissioners, and out of the perpetuity purchase-fund, placed at their disposal by the act of last session, entitled the Irish church temporalities act." After a few words from Messrs. O'Connell and Hume, and some other members, Mr. Stanley attacked the measure and the proceedings of his former colleagues in a vehement harangue. He opposed the resolution, he said, because it was both impolitic and dishonest; because it was at variance with the great principle, which for the last three or four years it had been the object of government to abolish, namely, the final extinction of tithes in Ireland by means of redemption; and because it seemed to him to be the commencement of a new system of plunder, and that too by a system of plunder not characterised by the

straightforward course which bold offenders followed, but marked with that timidity, that want of dexterity, which led to the failure of the unpractised shoplifter. He believed that government was committing great injustice, and would yet fail in its aim; that the country was against this injustice, and that Ireland after it had been perpetrated would not be more tranquil; and therefore he would take the sense of the committee on the resolution now proposed. Lord Althorp replied to Mr. Stanley, and vindicated the resolution from the charge of spoliation. He did not see, he said, how it could be spoliation to take property not from a corporation, but from a mass of different corporations, and apply it to other purposes, if, in doing this, he was giving security to the church. Mr. Hume said he believed in his conscience that ministers were afraid of their late colleague, and intimated his intention of acting with him. He moved an amendment the effect of which would be to re-enact the 147th clause of the act of last session, by substituting for the original resolution the following:—"That the surplus monies to the credit of the ecclesiastical commissioners in the perpetuity purchase-fund, to be kept by the said ecclesiastical commissioners pursuant to an act of last session of parliament, should be applicable to such purposes, for the adjustment and settlement of tithes in Ireland, as by an act of parliament of this session should be provided." This amendment gave rise to a lengthy and sharp debate, but it was thrown out by a large majority, and the ministerial resolution was then carried by two hundred and thirty-five votes against one hundred and seventy-one. At this stage, however, the progress of the bill was arrested for a time by circumstances to which it becomes necessary to advert, those circumstances being calculated by their moral and political effects on the composition of government, and on the relations of parties, to exercise a great influence on the spirit of all subsequent measures.

RENEWAL OF THE IRISH COERCION BILL.

{WILLIAM IV. 1834}

In the preceding session it had been found necessary to pass what was termed the coercion bill—a bill intended to put down that insurrectionary violence and combination which filled Ireland with crime and confusion. This act was to expire in August; and ministers, acting upon information received from various parts of Ireland, had determined to propose its renewal, omitting those parts that related to the trial of offenders, in certain cases, by courts-martial. There were, however, other provisions in the bill which the agitators of Ireland viewed with still greater dislike, they interfering with their own influence, by preventing those meetings which enabled them to work on the ignorance and passions of the misguided multitude. To escape from these restrictions was to Mr. O'Connell and his followers an object of greater importance than that the multitude whom they misled should be tried only by the regular tribunals of the country—that the peasant should have the benefit of the jury, or of an investigation by the civil magistrate. The lord-lieutenant of Ireland had recommended that the whole act should be renewed, with the exception of the clause relative to courts-martial; but on the 23rd of June, Earl Grey received a communication from him, stating that the provision against public meetings might

also be omitted. What influence had been used with the Marquis Wellesley subsequently became the subject of much discussion. It appeared that certain members of the cabinet had been corresponding with him without the knowledge of Earl Grey, and that the object of their correspondence had been, not to insure more tranquillity in Ireland, but to smooth the way of ministers by making concessions to O'Connell and his adherents. On discovering this, Earl Grey, who dissented from such views, immediately wrote to the lord-lieutenant to reconsider the subject, taking nothing into account but what was fitting for Ireland. Lord Wellesley, however, still adhered to his recommendation, more especially if, by means of such omission, an extension of the term for the act could be obtained. The subject was now brought before the cabinet, and its members were found to be divided in opinion thereon. The minority, consisting of Lord Althorp, and Messrs. Grant, Rice, Ellice, and Abercromby, objected to a renewal of the clauses in question, though they acquiesced in the determination of the majority, that the bill should be proposed in the form desired by the premier. On the second reading of the bill, Lord Durham objected to the clauses regarding public meetings, when Earl Grey declared his dissent from him to be absolute; if he could not have proposed the bill with these clauses, he would not have proposed it at all. Without them, he said, the bill would be ineffectual, impolitic, and cruel: it would punish the miserable victims of delusion, and let those escape who supplied to Ireland the fuel of agitation and disturbance. In these sentiments the lord-chancellor coincided; the clauses, he said, were as necessary as any others. Attention must be paid to the cause of excitement, as well as to the parties excited; the clauses regarding public meetings no doubt were a suspension of rights; but so were all the other clauses of the bill, to which no objection had been raised. The second reading of the bill was carried without any serious opposition, and the committee was fixed for the 7th of July; but in the meantime disclosures were made in the commons, which stopped the progress of the bill in its present shape, and which led to the resignation of Earl Grey.

RESIGNATION OF EARL GREY, ETC.

Instead of meeting O'Connell with bold defiance, Mr. Littleton, the Irish secretary, had committed the fatal error of secretly negotiating with him, soothing him, and even entrusting him with the views and determinations of the cabinet, giving him assurances, or encouraging expectations, for which he had no authority. He seems to have expected some communication from the lord-lieutenant regarding the omission of the clauses; and he resolved, before the ministers or the cabinet had made any decision known to him, to communicate to O'Connell, under the seal of secrecy and confidence, the sentiments of the Irish government, and to communicate it as ensuring a similar determination on the part of government. He spoke of the propriety of acting thus to Lord Althorp, who said that he saw no harm in it; but, at the same time, entreated him to use extreme caution in his communication, and by no means to commit himself in what he said. Under these circumstances Mr. Littleton sent for Mr. O'Connell on the 20th of June, and made the desired communication, with an assurance that only a short measure for repressing agrarian disturbances would be proposed: and, also, that if the coercion bill was again thought necessary, he would not introduce it. In consequence of this interview, Mr. O'Connell promised

his assistance in putting down disturbances; and he actually withdrew the repeal candidate whom he had started for the county of Wexford. To the dismay of Mr. Littleton, however, the premier and majority of the cabinet determined to retain the clause respecting public meetings, and he was compelled to belie his confidential communication. He had told Mr. O'Connell that he would not be the person to introduce the bill in that shape: and yet he did not resign when it was determined that the bill should be introduced in that shape alone. At the same time he communicated to Mr. O'Connell that his hopes could not be realised; but begged him to take no public notice of this until he should have seen Earl Grey's speech introducing the bill. Mr. O'Connell replied to him, that if he did not resign, he would be guilty of deception; and Mr. Littleton answered, "Say nothing of that to-day," or, "Wait till to-morrow." But with regard to the fact, whether such an answer was or was not given, both O'Connell and Mr. Littleton averred that what the other stated was not consistent with truth. Be this as it may, O'Connell thought he was not bound to secrecy; and on the 3rd of July, two days after the bill had been introduced in the lords, he asked Mr. Littleton whether it was true that the renewal of the coercion bill in its present shape had been advised and called for by the Irish government? Mr. Littleton answered that this was an unusual inquiry to make respecting a bill not before the house; but he would say that the introduction of the bill had the entire sanction of the Irish government. Mr. O'Connell again put his question, as to whether the bill had been called for by the Irish government? and not obtaining a more direct answer, he said, "I now ask the Irish secretary if it his intention to bring the bill forward in this house?" Mr. Littleton replied, "It will be for the government to decide as to its introduction here when the proper time arrives; but, whoever may bring in the bill, I shall vote for it." Mr. O'Connell then said, "Then I have been exceedingly deceived by him;" and the Irish secretary was driven to the necessity of stating the whole matter, and an angry discussion ensued. Two days afterwards Mr. Littleton tendered his resignation; but it was refused, his colleagues, as Lord Althorp stated in the house, valuing his services too highly to dispense with them on such grounds. The coercion bill passed through committee in the lords on the 7th of July, and on the same evening, in the house of commons, Lord Althorp, for the purpose of announcing its approach, presented papers relative to the state of Ireland, which he moved should be printed. This led to a discussion on the sentiments of the cabinet, and the change of opinion manifested by the Marquis Wellesley. Mr. O'Connell moved an amendment, that the papers should be referred to a select committee; and this being rejected by a large majority, he gave notice for the production of so much of the lord-lieutenant's correspondence as would explain the reason why he opposed a renewal of the coercion act on or about the 20th of June. Hitherto there had been no symptoms of change in the ministry, however unfortunate might be the figure which they had been compelled to make. They had even refused to accept the resignation of Mr. Littleton, whose indiscreet negotiations had been the source of all their embarrassments. Lord Althorp, however, seems now to have come to the conclusion that ministers would not be able to carry the bill through in its original form, for, on the very night of this discussion, he sent in his resignation, and persisted in retiring from office. The resignation of the chancellor of the exchequer involved that of Earl Grey. The prime minister, convinced that it was impossible for him to proceed when

deprived of Lord Althorp’s assistance, gave in his own resignation, which his majesty accepted. By the retirement of the head of the cabinet, the cabinet itself was dissolved; but no other resignation followed. The members of the old cabinet, indeed, resolved to remain together, and selected a new head; and Lord Melbourne, the home-secretary, was elevated to this post, and kissed hands on the 16th of July as first lord of the treasury. Lord Melbourne’s first act was to inform the house that ministers did not intend to proceed with the coercion bill now before it, but that another bill, omitting certain clauses contained in the former, would immediately be brought into the house of commons. This announcement produced a vehement discussion, in which the conduct of government and some of its individual members was assailed by the Dukes of Wellington and Buckingham, and several other peers, who maintained, that since the Revolution, no instance had occurred of such inconsistency and tergiversation. A modified coercion bill, however, was introduced on the 18th of July; and having been rapidly carried through the commons, passed the lords on the 29th, under a strong protest, signed by the Dukes of Cumberland and Wellington, with twenty-one other peers. This modified bill re-enacted only those parts of the former which referred to the proclamation of districts. The lord-lieutenant was to have power to proclaim any district which he thought necessary, and in these districts any meeting, not convened by the high sheriff of the county, was to be held illegal. No person was to leave his house between sunset and sunrise, except on lawful business; and constables were to have power to make people show themselves at any hour of the night when they might call at their houses. The operations of the bill were to cease on the 1st of August, 1835.

REJECTION OF THE IRISH TITHE QUESTION BY THE PEERS.

Ministers having thus provided for the tranquillity of Ireland, by what they considered enactments of sufficient energy and severity, now returned to their tithe bill, which, according to them, was to be the great recompense of the temporary submission to a strained power of the law. Accordingly, on the 29th of July, the order of the day was read for the house resolving itself into a committee on the tithe bill. Mr. O’Connell moved as an amendment that the house should resolve itself into a committee that day six months. He did so, he said, on the ground that it was preposterous to go into a committee on a bill containing one hundred and twenty-two clauses at that period of the session, on the ground of the demerits of the bill itself, and on the ground that it would be time enough to legislate after the report of the commission which had been issued should have been received, a regular plan arranged and submitted, with all its details, and all necessary information, to a select committee composed of men of all parties. This amendment, however, obtained only fourteen votes in its favour, though others were carried in committee, which went to alter the operation and consequences of the bill. Thus Mr. O’Connell moved an amendment, the object of which was to relieve the tithe-payer immediately to the extent of forty per cent.; and in consequence of the accommodating language and coy resistance of ministers, it was carried by a majority of eighty-two to thirty-three. Additional concessions were also made in the committee; and even Mr. Shiel remarked that Ireland ought to be grateful. Such, indeed, was the departure from the original principles and arrangements of the bill that one hundred and eleven out of

one hundred and seventy-two clauses were expunged. Thus altered, the bill was read a third time, and passed on the 5th of August.

On the second reading of the bill in the lords, the peers were given to understand by Lord Melbourne that, if it was lost, government would propose no other grant to relieve the Irish clergy. He admitted, he said, that there might be reason for viewing with jealousy and distrust the quarter whence certain alterations made in the bill, subsequently to this introduction, proceeded; but, at the same time he did not think the arrangement bad for the church. The tithe for the future was to be received by the crown, and paid by the landlord, who, in return for the burden thus imposed on him, was to have a deduction of two-fifths or forty per cent, of the original composition. The incomes of the clergy, however, were not to bear the whole deduction, which was only to be twenty-two and a half per cent, on them; that is, twenty per cent, for increased security, and two and a half per cent, for the expenses of collection. The incumbents would, in fact, receive £79 10s. for every £100 without trouble, without the risk of bad debts, and without the odium which had hitherto attended the collection of tithe property. Another consequence was that the clergy would be relieved from the payment of sums already advanced to them from the treasury, as that charge would be laid on the landlord. In conclusion, he said that he thought the revision of existing compositions, made under the acts of 1823 and ‘32, was also a proper enactment. The bill underwent a complete discussion—the Conservatives seeing no security for the rights and interests of the Irish clergy in its provisions as now altered; while their opponents thought that it would be much more advantageous to the clerical body to obtain the sum proposed without risk, than to recover a smaller—if they recovered any at all—through scenes of blood and slaughter. The Earl of Ripon and the Duke of Richmond pursued a middle course—they wished the bill to go into committee in order to restore it to its original state; if unsuccessful there, they would vote against the third reading. The lords, however, were determined to reject it forthwith; and on a division the bill was thrown out by a majority of one hundred and eighty-nine against one hundred and twenty-two. By the rejection of the bill, the Irish clergy was thrown on the charity of the British public, who liberally responded to their demand: a large subscription was made to relieve their distresses.

STATE OF ECCLESIASTICAL QUESTIONS AND THE CLAIMS OF DISSENTERS.

It was not the Catholics alone who regarded the Protestant establishment with a jealous eye; there were discontents and heart-burnings, also, among dissenters. The great majority of the people of England adhered to the established church, yet the dissenters formed a numerous body, possessing in many instances great respectability, wealth, and influence. As a body they were impressed with the idea that, by the church being supported as a national institution, they were stamped with a mark of inferiority. Acting upon this impression, they very naturally employed the power with which they were now invested to bring down the established church to the same level on which they themselves stood; to annihilate all the rights, powers, and privileges which belonged to its members; and, by depriving it of all support from the funds of the state, convert it into a self-constituted religious community. Their

great objects were to obtain those privileges from which they were excluded, and to be relieved from the necessity of supporting an establishment in the advantages of which they did not participate. The occasion was favourable for the enterprise, in consequence of the unsettled and uncertain state in which things stood, and the hopes held out by a ministry who seemed disposed to make concessions to all classes of men if they were but importunate. In accordance with their views, various petitions were presented by them to parliament in the beginning of the session, praying to be relieved from church-rates; and in many instances urging the separation of church and state, or recommending the general establishment of the voluntary system. These petitions, however, led to no other result but that of producing a strong expression of opposite opinions, and calling forth numerous anti-petitions, praying parliament to preserve the church inviolate. Ministers declared that they would listen to no proposition for its destruction; but, notwithstanding this, a motion was made by Mr. Rippon, the new member for Gateshead, to expel the bishops from the house of lords. This motion was seconded by Mr. Gillon, a Scotch member; but on a division it was lost by a majority of one hundred and twenty-five against fifty-eight. The minority seems to have been much larger than had been anticipated, for the announcement was hailed with loud cheers.

Among the grievances of which the dissenters complained in their numerous petitions, none were more forcibly insisted on than their practical exclusion from degrees at Oxford and Cambridge, in consequence of its being required, as a preliminary, that they should conform to the church of England, or to subscribe to her articles. As a matter of civil right, they demanded that all religious tests should be abolished, and the universities thrown open for the education and graduation of men of all creeds. Exertions were made by them to get up petitions from the universities, and in one of them they succeeded. On the 21st of March Earl Grey presented, in the house of lords, a petition from certain members of the senate of the University of Cambridge, praying for the abolition by legislative authority of every religious test exacted from members of the university before they proceed to degrees, whether of bachelor, master, or doctor, in arts, law, and physic. On this occasion, as on others when similar petitions were presented, there was much incidental discussion of the merits of the demand. Ministers declared it to be just and proper, and showed an inclination to grant it; but no distinct motion was made on the subject till after the Easter recess. On the 17th of April, however, Colonel Williams moved an address to the king, “requesting his majesty to signify his pleasure to the universities of Oxford and Cambridge respectively, that these bodies no longer act under the edicts or letters of James I., 1616; by which he would have all who take any degree in schools to subscribe to the three articles’ of the thirty-sixth canon, with the exception of those proceeding to degrees in divinity; nor to require the declaration, namely, ‘that I am _bona fide_ a member of the church of England,’ nor any subscription or declaration of like effect and import.” It was, however, thought for many reasons more advisable to proceed by bill; and Mr. Wood, one of the members for Preston, moved as an amendment for leave to bring in a bill to grant to his majesty’s subjects, generally, the right of admission to the English universities, and to equal eligibility to degrees therein, notwithstanding their diversities of religious opinion, degrees in divinity

alone excepted. The address was withdrawn; and after a discussion, in which even the introduction of the measure was opposed by Messrs. Goulburn and Estcourt, and Sir R. Inglis, three of the four members for the universities, it was carried by a majority of one hundred and eighty-five to forty-four. Although the Cambridge petition had been presented in both houses by members of the cabinet, and government had declared its entire concurrence in the prayer of the petitioners, neither the proposition for an address, nor that for a bill, was brought forward by ministers. They were favourable to the measure, however, and supported it by their speeches and votes. At the same time they wished that neither parliament nor the government should be pressed or hurried to intermeddle, before they could take up the matter with the prospect of terminating it in the best and most satisfactory manner. They hoped, they said, that as a portion of one of the universities was already inclined to it, the object, by allowing some time for consideration, might be effected with the concurrence of those learned bodies, and in a much better form, and to much better purpose, than if they were made reluctantly to act under the compulsion of a statute. That hope, however, was vain. Before the bill was brought in, the sentiments of the great mass in the two universities were fully expressed. It was soon discovered that the sixty-three petitioners at Cambridge, by offending the honest principles of many, and the party-spirit of others, had raised a storm which no argument or explanation could allay. Meetings were almost daily held, pamphlets were distributed on every hand, the public press joined in the contest, and the university pulpits resounded with the most awful denunciations. During the excitement at Cambridge, a counter-petition was signed by two hundred and fifty-eight members, resident and non-resident, comprising eleven heads of houses, eight professors, and twenty-nine tutors; while a second was signed by seven hundred and fifty-five under-graduates and bachelors of arts. These were presented on the 21st of April by the Duke of Gloucester in the lords, as chancellor of the university, and by Mr. Goulburn in the commons, as one of its representatives. A similar document was presented from the university of Oxford by Mr. Estcourt, and on the 9th of May a second petition was sent from Cambridge, signed by one thousand members of the senate who had not signed the other.

Although Mr. Wood brought his bill into the house soon after the Easter holidays, it was not till the 20th of June that he was enabled to move the second reading. Mr. Estcourt proposed as an amendment that it should be read that day six months. Mr. Herbert seconded the amendment. Messrs. Paten, Poulter, and Ewart spoke in favour of the bill, contending that the alteration was necessary, no less for the benefit of the universities, than in justice to the dissenters. By the present system the latter were impeded in their progress to the bar, by having to keep terms for five years instead of three; and were prevented from becoming fellows of the college of physicians, for want of academical degrees. These were positive and weighty grievances, which ought, it was urged, to be remedied. Mr. Spring Rice complained that it was unfair to treat the bill, not according to its own deserts, but according to measures which might or might not be immediately connected with that now under discussion. He asked what could be more inconsistently unjust than the practice of Cambridge, where dissenters were admitted so far as instruction was concerned, but then

excluded from everything to which instruction ought to lead? They were admitted to the fullest and most complete course of study until the twelfth term, when, on being brought into fair competition with their fellow-students, the odious principle of exclusion intervened: the dissenter was told that, however obedient he had been to college regulations, however high the eminence he had acquired, still he would not be allowed the badge or symbol of his acquirements, simply because he was a dissenter. The house, indeed, had the benefit of experience; for in Dublin dissenters were admitted to degrees, though excluded from fellowships, and all participation in the internal management of the university. And what mighty mischiefs, he asked, had followed the admission? Was the university less orthodox in its principles? or less a Protestant foundation than before? Had the zeal of its public instructors been lessened, or their sphere of usefulness narrowed by this interference? It should be remembered that those on whom the exclusions fell were men of active and stirring spirits, men who would excite and probably guide the councils of those with whom they agreed in opinion. It had been said that the dissenters ought to found universities of their own. He concurred in that argument; but the English universities would not allow them to do this. When they proposed such a step, in order to educate the youth of their own persuasion, and reward them with those honours which the university denied, and thus sought to secure to themselves academical honours and privileges, the universities stepped forward and said:—"We will not only exclude you from our own seats, but will also prevent you from enjoying the advantages and privileges of a university of your own." This double ground of exclusion and prohibition was most undefensible. The colonial secretary was answered by Mr. Goulburn, who argued that in proportion as the friends of the bill enforced the danger of excluding dissenters, they rendered manifest the ruinous consequences of concession. If the dissenters really deemed it so great a hardship to be deprived of the empty honour of a degree, what would they say, if they were admitted to degrees, and found a bar raised against their admission to college emoluments and distinctions? Sir Robert Peel characterised the bill as an enactment intended to give to Jews, infidels, and atheists—to the man who professed some religion, and to the man who professed none—a statutable right of demanding admission into our universities. Sir E. Inglis and Lord Sandon opposed the bill, contending that it was impossible to establish any system of religious education in institutions into which persons professing different religious opinions were admitted. Lord Althorp, on the other hand, supported the bill, disclaiming at the same time any hostility to the established church. On a division the second reading was carried by a majority of three hundred and twenty-one against one hundred and seventy-four. In the committee the speaker gave his decided opposition to the bill; and some amendments having been made, it was read a third time, and passed by a majority of one hundred and sixty-four against seventy-five. The bill was conducted in the lords by the Earl of Radnor, who moved the second reading on the 1st of August. The Duke of Gloucester, Chancellor of the University of Cambridge, denounced the bill as being not only uncalled for, but most unjust and mischievous. His royal highness concluded by moving as an amendment that the bill should be read a second time that day six months. He was followed by the Duke of Wellington, Chancellor of the University of Oxford, who sustained the same view of the question. The Earl of Carnarvon spoke

against the bill; the Archbishop of Canterbury maintained the same side. Lord Melbourne admitted that the subject was surrounded with difficulties; that he did not altogether approve of the bill; but, notwithstanding this, the question being brought before the house, he would vote for the second reading of the bill, because he thought a question of such magnitude and importance was entitled to the fullest and most anxious consideration. Lord-chancellor Brougham supported the bill, because he thought it went to remove a practical grievance, without affecting the discipline of the universities or the safety of the church. The discussion was closed by the Bishop of Exeter, who, in a long and ingenious speech, opposed the bill in all its bearings. On a division, the amendment to reject the bill was carried by a majority of one hundred and eighty-seven against eighty-five.

Another grievance of which the dissenters complained was, that they were liable to church-rates—that is, they were taxed towards the expenses of the established church. On the 21st of April Lord Althorp brought forward his plan for the mitigation of this evil in the shape of a resolution: “that, after a fixed time, church-rates should cease and determine; and, in lieu thereof, a sum not exceeding £250,000 should be granted from the land-tax to be applied to the expenses of the fabrics of churches and chapels in such manner as parliament should direct.” He said that his intention was not merely to relieve dissenters, but likewise to provide for the fabrics of the church. This plan, however, did not suit the views of either churchmen or dissenters. The friends of the dissenters, indeed, immediately attacked it with unmeasured violence. Mr. Hume moved that all the words in the resolution should be expunged, except those which declared “that church-rates should cease and determine.” The proposal, it was said, was a contemptible juggle, founded on the old financial principle that if money were taken out of the pockets of the people by indirect means, they would not be sensible of their loss. On the other hand, the friends of the church objected to the plan because it questioned the rights of the church, infringed on some of them, and left others on a foundation less sure than before; and all this without any reason in principle, and confessedly without any good result in practice. Lord Althorp, in his reply, expressed much surprise that the dissenters should receive the proposition so ungraciously; but expressed his determination to persevere in bringing it forward. On a division the original motion was carried by a majority of two hundred and fifty-six against one hundred and forty; but notwithstanding this majority, and the certainty of ultimate success, ministers proceeded no further with the measure. Churchmen considered that one advantage was gained, in the dissenters having been brought to disclose somewhat prematurely the real purposes which they had in view, and to proclaim opinions tending to the complete abolition of a religious establishment. Government were equally unfortunate in another attempt to gratify the dissenters, by allowing them to celebrate the marriage ceremony in their own chapels, and thus escape what was deemed by them a grievous oppression.

The commutation of tithes in England was a subject still more complicated and difficult. It in fact involved so many interests of different kinds, and so many details requiring minute attention, that the adjustment of the question was a work requiring both time, patience, and circumspection. Lord Althorp brought forward the ministerial plan on the 15th of April, and it was contained in the following

resolution:—“That it was expedient that the payment of tithes in kind should cease and determine, and that in the several parishes throughout England and Wales there should be substituted in lieu thereof a payment to the parties who might be entitled to such tithe, such payment bearing a fixed proportion to the annual value of all land whence tithe might be payable, that value to be ascertained throughout the several counties at large, striking an average on the parishes in each county; also that all owners of property liable to tithe be at liberty to redeem the same at the rate of twenty-five years’ purchase.” Lord Althorp then proceeded to develop his plan at great length; but its principles and details were so strongly objected to both by landlords and the clergy that the measure was dropped for the present. Lord Althorp stated as a reason for not going on with it, that he saw, from the state of the public business, and the time which would require to be devoted to the more urgent question of the amendment of the poor-laws, that there was no probability of its being brought to a successful issue before the termination of the session.

POOR-LAW AMENDMENT ACT.

{WILLIAM IV. 1834}

One act was carried this session, which, in itself, is sufficient to signalise the administration under whose auspices it was brought forward. Soon after their accession to office the present ministry had issued a commission of inquiry into the state and operation of the poor laws. The inquiries of the commission were to be directed towards ascertaining what was the cause why, in some parts of the country, the poor-laws were considered a benefit by parishes, while in others their operation had been ruinous and destructive. The commissioners had made their report, and an abstract of the evidence which they had taken had been printed in the course of the preceding session. Government was so strongly impressed by that report, with a conviction of the evils produced by the system in many districts of the country, that they resolved to propose a remedy to parliament. On the 17th of April, therefore, Lord Althorp moved for leave to bring in a bill to alter and amend the laws relating to the poor. The necessity of interference was maintained on the ground that the present administration of those laws tended directly and indirectly to the destruction of all property, whilst their continued operation was fatal even to the labouring classes whom they had been intended to benefit. It was the abuse of the system, rather than the system itself, which was to be apprehended. Its worst abuses, indeed, were scarcely older than the beginning of the present century, and they had originated in measures intended for the benefit of that class of the community to whose interests and welfare they were now most destructively opposed. A feeling at that period prevailed that great discontent existed among the working classes, and a principle was then adopted in legislation, which, though humane and well intended, was found to produce the most baneful consequences. The 36th of George III. laid down the principle that the relief to paupers ought to be given in such a manner as to place them in a situation of comfort. It might have been desirable to place all our countrymen in this situation; but to give relief in the manner prescribed by this statute was rather the duty of private charity than of the public legislature. The effect

of this law had been to give the magistrates the power of ordering relief to the poor in their own dwellings, and the principle being followed up, led from bad to worse, until every spark of independence in the breast of the peasantry had been nearly extinguished. The parish must keep them, it was often said; and they did not care to obtain an honest livelihood by the sweat of their brow. The existing state of things had indeed reduced the labouring population in many districts to a state of deplorable misery and distress. It was evident that there were great dangers to be incurred if matters were left as they stood, and that it was absolutely necessary to adopt sounder principles, and to carry them into execution unflinchingly. In fact, there were examples already to be followed. In about one hundred parishes the evils of the system had compelled the inhabitants to adopt an approved mode of administration, and in every instance they had succeeded, although some of them had been completely pauperised. Where, again, the former system still prevailed, cultivation had been abandoned; so heavy was the pressure of rates, and so great the evils of mismanagement. The consequence of this was that the neighbouring parishes were compelled to support the poor; and it was evident that they also would soon be reduced to a similar situation if the system was not soon and effectually altered. It was on the grounds of this mischief, and the necessity of checking it, that Lord Althorp defended the principle of entrusting the poor-laws to a board of commissioners. He admitted that this was an anomalous course of legislation, and that the board would be entrusted with extraordinary powers. This, however, he argued, was rendered unavoidable by the necessity of the case; a discretionary power must be vested somewhere, in order to carry into effect the better principles to be introduced. But before extending any discretionary power, he continued, it would be necessary to fix a day on which the allowance system should cease; and in the bill it would be fixed in some of the summer months, when the labourers were in full employment. The allowance system, he said, was the foundation of almost all other evils; and until it was abolished, any attempt at amending the poor-laws would be nugatory.

The allowance system being abolished, and the central board established, next came the powers of the commissioners. He proposed one uniform system operating over the whole country, in order to obtain which they were to have power to make general rules and orders as to the mode of relief, and for the regulation of workhouses, and the mode of relief afforded therein. As a check against any abuse, every such rule, order, or regulation so proposed by the commissioners would be submitted to the secretary-of-state: forty days were to elapse before it could be brought into operation, and during that period it should be competent, by an order in council, issued for that purpose, to prevent it from being carried into effect. The commissioners would further have power, he said, to make specific rules and orders for the regulation and mode of relief of the poor in separate districts and parishes: to form unions of parishes, in order to make larger districts; to arrange classifications of the poor in the same or different workhouses; to exercise a general control in such unions as might be established without their consent; and to dissolve unions which might now exist. Unions having been formed, each parish in the union would have to maintain its own poor, or contribute to the general fund the proportion of expense

which it had hitherto borne by itself. The commissioners would likewise have power to call the attention of parishes and unions to the state of their workhouse establishments, and to suggest to them the propriety of adding to those formed, or of building separate and distinct establishments. Another fertile source of mischief had been the practice of ordering relief to the poor in their own houses. The bill would provide that justices should have no power for the future, thus bringing back the law to the state in which it had been previous to the year 1796. Other features of the bill, he explained, consisted in simplifying the law of settlement and removal; in rendering the mother of an illegitimate child liable for its support, and, for its ailment, to save from imprisonment the putative father to whom she might swear it. The great principles of the proposed plan, therefore, went to stop the allowance system; to deprive the magistracy of the power of ordering out-door relief; to alter, in certain cases, the constitution of parochial vestries; to give large discretionary powers to the commissioners; to simplify the law of settlement and removal; and to render the mother of an illegitimate child liable for its support. The bill by which these principles were to be carried into effect having been brought in, the second reading was opposed by Colonel Evans, one of the members for Westminster, and Sir S. Whalley, one of the members for Marylebone. The latter moved an amendment, that the bill should be read a second time that day six months. It was his opinion, he said, that the bastardy clause, which threw all the burden on the mother, on whom the odium rested already, thus held out a premium to immorality and an inducement to infanticide; and the clauses which effected the law of settlement would of themselves justify the house in throwing out the bill. His great objection, however, was to the board of commissioners. The board was unnecessary, for the principal existing defect consisted in the ratepayers not having sufficient control over the expenditure. If they were only vested with complete control over the poor-law management, the evils of the present system would soon disappear. He doubted whether the house had authority to give powers of the description proposed to any set of men—at all events it was impolitic. The bashaws whom the bill proposed to start into life would be omnipotent; they might do as they pleased, and account for their acts by merely stating it was their pleasure. There were to be no less than thirty-six discretionary powers vested in the commissioners; a degree of authority entrusted to three men of which the country afforded no parallel. Government ought to wait before they undertook any poor-law reform: the report of the commissioners had already led to the correction of many abuses, and time only was required to secure a trial to the greater part, if not all, of the recommendations that report contained. The amendment was seconded by Alderman Wood, and supported by Mr. Walter, a reforming representative of Berkshire. Messrs. Grote and Hume, and Sirs J. Scarlett and Francis Burdett, with other members who spoke on the occasion, all agreed that there was no good reason against the second reading of the bill, though none of them approved it as a whole. The chancellor of the exchequer argued in reply, that nothing had been stated which could be regarded as an ostensible reason for not going into committee; and that when in committee all matters which had been noticed would be open to consideration. The second reading was carried by a majority of three hundred and nineteen to twenty. In the committee a discussion took place as regarded the effect of the bill in establishing workhouses, a system which some members disliked;

but the clause was retained. Another discussion also took place on the clause which allowed occupiers and owners to vote in vestries, the latter having accumulative votes proportioned to their property. It was objected to as being inconsistent with popular rights and good management; but it was nevertheless retained. The forty-fifth clause provided that it should be lawful for the commissioners, by such orders or regulations as they should think fit, to declare to what extent the relief to be given might be administered out of the workhouse. An amendment was moved, “that no rule or order of the commissioners shall prohibit the guardians of unions from giving relief out of the workhouse, to such of their sick or impotent poor, and to such widows, orphans, and illegitimate children, as they may think fit so to relieve.” This amendment, however, was only supported by forty, while one hundred and forty-eight voted against it. In the clauses regarding settlement, settlement by having occupied a tenement, and having been assessed to the poor-rates for one year, and having paid such assessment, was added to settlement by birth and marriage.

The clauses which laid the burden of supporting an illegitimate child on the mother, as if she had been a widow, gave rise to much discussion. Mr. Robinson moved that they should be omitted, he objecting to them chiefly on the ground that they removed the liability from the father. He did not object, he said, to so much of them as repealed certain acts affecting the mother, but to that part which let the father go free. The bill proposed, he said, that in case the woman should be unable to support the child, the liability should rest on the father, or if he were not alive, or being alive and not able to support it, then the liability was to fall on the grandfather or grandmother. Could the house, he asked, seriously entertain propositions of this nature, or consent to pass enactments so contrary to every principle of justice and humanity? Lord Althorp protested against these provisions being discussed as matters of feeling; they should be considered not as they affected one portion of society, but the whole of it; and looking at it in this point of view he was prepared to support this part of the bill as a boon to the female population. He left it as an alternative to the committee, that if this clause was struck out, the bastardy clauses should be wholly severed from the bill, and proceeded with in a future session of parliament. The general feeling in the house seemed to be that the clauses should be struck out, and the matters which they involved made the subject of a separate measure, or that they should be postponed till some middle term should be devised. The majority, however, preferred the latter alternative, and it was decided that the provisions in question should not be expunged. On the 21st of March Mr. Miles proposed a modified clause, which still refused any claim to the mother against the father, and gave no power of demanding security before the child was born; but it exposed him to a claim at the instance of the managers of the poor, in the event of the mother and the child becoming chargeable to the parish. The chancellor of the exchequer said he would have preferred the original provisions of the bill; but he acquiesced in the adoption of the proposed clause, because he saw that the opinion of the house was in its favour. Subsequently clauses were added, disqualifying the commissioners from sitting in parliament; requiring all general orders and regulations to be laid before parliament; and limiting the operation of the act, in so far as regarded the commissioners, to five years. The bill was read a third time and

passed on the 1st of July. It was introduced to the lords on the day following, and the second reading was fixed for the 8th of July; but in consequence of the resignation of Earl Grey, it was not again brought forward till the 21st of July. The second reading was moved by the lord-chancellor, who, after giving an historical account of the progress of the poor-laws, pointed out the manner in which they had become the sources of so much evil. The bill found its most violent opponent in Lord Wynford, who moved as an amendment that it be read that day six months. He did not oppose it, he said, on the ground that there was not much in the administration of the poor-laws which required to be corrected, but because he conceived that the remedies proposed by the bill were partly unnecessary and partly inefficient, while some of them were perfectly tyrannical. The Earl of Winchilsea and the Dukes of Richmond and Wellington supported the motion for the second reading, though they did not approve of all the provisions of the bill. The division on the amendment gave seventy-six peers for the second reading, and only thirteen against it. In the committee Lord Alvanley proposed that the bill should be dropped. Lord Wynford urged strong objections to the central board of commissioners, but this was defended by the lord-chancellor, the Earl of Winchilsea, and the Duke of Wellington. The only alteration made in the clauses respecting them and their powers was an addition proposed by the Duke of Wellington, to the effect that they should be bound to keep a record of each letter received, the date of its reception, the person from whom it came, the subject to which it related, and the minute of any answer given to it, or made thereon, and also, where the commissioners differed, of the opinion of each commissioner, and that a copy of such record be transmitted to the secretary-of-state once a year, or oftener if required. The Bishop of Exeter moved to substitute for the leading enactment in reference to bastardy, “That the father and mother of an illegitimate child, or the survivor of them, shall be required to support such child, and that no parish shall be bound to support such child whilst either parent is able to do so, and that all relief occasioned by the wants of such child shall be considered as relief afforded to the father and mother, or the survivor of them.” This amendment, however, was negatived by thirty-eight votes against thirty-four; but the clause itself, being that which the house of commons, on the motion of Mr. Miles, had substituted for the original clause, was likewise rejected. On the third reading the Bishop of Exeter again brought the question before the house, by moving the omission of the clause which provided that any person marrying a woman who had an illegitimate child or children by another man, should be liable to maintain them. The original clause, however, was retained, although by a majority of only eleven, eighty-two voting for and seventy-one against it. Instead of the rejected clause which Mr. Miles had carried in the house of commons, clauses were introduced on the motion of the Duke of Wellington, enacting, that the putative father of any bastard child, so soon as such child became chargeable to the parish by the mother’s inability to maintain it, should be liable to reimburse to the parish the expenses of its maintenance until it attained the age of seven years, on his paternity being proved before the quarter-sessions, but not without the testimony of the woman being corroborated by other evidence; that when a woman had had one bastard child, she should obtain no order in a subsequent case; that an order should be operative only till the child attained the age of seven years; that sums to be recovered from the putative father

should be recoverable only by attachment or distress; and that he should not, in any case, be liable to imprisonment for costs. Subsequently, several other amendments were made of minor importance, as alterations in the allowance system, and in administering out-door relief, &c.; and the bill thus altered passed the third reading on the 8th of August, by a majority of forty-five against fifteen. On the 11th of August, when Lord Althorp moved the commons to agree to the lords' amendment, an amendment was moved that they should be read that day six months. This proposal was chiefly supported by those who were opposed to the bill altogether, or who wished it should be delayed till next session; but Lord Althorp declared that if it did not pass, he would not again bring it forward; and the amendment was negatived by a large majority. All the amendments of the lords were then agreed to, with the exception of the omission of the clause which provided for the instruction of pauper children in the religious creed of his surviving parent or god-parent, and entitled dissenting clergymen to visit workhouses at all times, for the purpose of religious instruction, at the desire of any pauper of any sect. This amendment was said to be a violation of the principle of religious liberty, and an insult to the small portion of good feeling towards dissenters which existed in the upper house, and it was rejected. Finally, the amendment of the commons restoring the clause which had been expunged, was agreed to by the lords, and thus the great experiment of a revision and alteration of the poor-laws commenced.

From the great change effected in the poor-laws, no class of men could eventually expect greater relief than the owners and occupiers of lands. At this time, however, the agriculturists longed after means of relief of more immediate, direct, and certain operation. The subject of agricultural distress had, indeed, formed a paragraph in the king's speech, and it was now brought forward by the Marquis of Chandos. On the 21st of February, after ably stating both the local and general causes of the evil, he moved a resolution, "That, in any reduction of national burdens by the remission of taxes, due regard be shown to that distress of the agriculturists which had been alluded to in the speech from the throne." The resolution was supported by Mr. A. Baring, who said, that importunity and clamour, threats of commotion and resistance to the law obtained that which was refused to the patient suffering of the farmer. Several members spoke against the resolution, not meaning to deny that the agriculturists were suffering, but considering the resolution as not likely to lead to any result; and that the means alluded to by those who supported it were neither efficient nor just. Moreover, the supporters of the motion were far from being of one mind as to the manner in which relief ought to be afforded. On a division the resolution was lost by a majority of four only in a very full house. This success induced the noble mover to bring the subject before the house again. On the 7th of July he moved, "That an humble address be presented to his majesty, expressing the deep regret that this house feels at the continuance of the distressed state of the agricultural interests of the country, to which the attention of parliament was especially called in his majesty's most gracious speech from the throne, and humbly to represent the anxious desire of this house that the attention of his majesty's government should be directed, without further delay, to this important subject, with a view to the immediate removal of some portion of those burdens to which the land

is subject through the pressure of general and local taxation." On a division the motion was lost by a majority of one hundred and ninety against one hundred and seventy-four.

On the 17th of March the question of the malt-duty was brought directly before the house by a motion of Mr. Cobbett, that it should cease and determine from and after the 5th of October next. It was rejected by one hundred and forty-two to fifty-nine.

THE CORN-LAW QUESTION.

While the agriculturists were thus demanding relief, the corn-laws were not only insisted on as an answer to all complaints by those who maintained a different interest, but were also themselves made the subject of a formal attack. On the 6th of March, Mr. Hume moved, "That this house do resolve itself into a committee of the whole house, to consider of the corn-laws, and of substituting, instead of the present graduated scale of duties, a fixed and moderate duty on the import at all times of foreign corn into the United Kingdom, and for granting a fixed and equivalent bounty on the export of corn from the United Kingdom, with the ultimate view of establishing a free trade in corn." Sir James Graham defended the present system as necessary to prevent the destruction of the farmers, and the annihilation of the occupations of an immense body of agricultural labourers. On the other hand, Lord Morpeth, who was himself connected with the landed interest, Lord Howick, and Mr. Clay, member for the Tower Hamlets, supported the motion, contending that it was the corn-laws which kept the agricultural interest in a state of depression while all other interests were prospering. The Irish members who spoke were adverse to the proposition; the very agitation of the question, it was said, would do much mischief in Ireland, unless the house distinctly declared that there should be no change in the existing law. Lord Althorp said that he would meet the motion with a direct negative, although his opinions were favourable to an alteration of the existing system. In opposition, therefore, to his theoretical opinion, he would resist the motion; and he believed that every cabinet minister would vote against it. There were, however, some of the members of government favourable to a repeal of the corn-laws; and Mr. Thompson, vice-president of the board of trade, supported the motion, and delivered a long speech, principally in answer to Sir James Graham's. He contended that so far from the existing system conferring any benefit on the corn-growers, the farmers, who had been deluded by it, had more reason to complain of it than any other class in the country. And what, he asked, were the effects on our manufactures of this system which had ruined the farmers? The motion was rejected by three hundred and twelve against one hundred and fifty-five. The subject was again discussed incidentally, on the occasion of the presentation of a petition from Liverpool in favour of free trade, and especially of a free trade in corn. Sir Robert Peel embraced this opportunity of expressing his opinions on the subject—opinions utterly at variance with the enlightened policy adopted by him at a subsequent date. On the other hand, Sir Henry Parnell said that the pretext of farmers being interested in a continuation of the corn-laws was a gross delusion practised on them by the landlords. It was for their advantage alone that the whole community was taxed.

At this time, also, those concerned in the shipping-interest complained loudly of distress, which they considered to be either caused or aggravated by the admission into our ports of the ships of foreign nations on the same terms on which our vessels were admitted into theirs; an admission which the crown had the power of conceding under the fourth of George IV., c. 77, commonly called “the Reciprocity of Duties Act.” Many petitions for the repeal of this act were presented; and on the 5th of June Mr. G. F. Young moved for leave to bring in a bill for that purpose; but the motion was resisted by ministers, and rejected by one hundred and seventeen against fifty-two.

FINANCIAL STATEMENTS, ETC.

Notwithstanding the distress of the country, the financial affairs of the present year exhibited an encouraging aspect. The chancellor of the exchequer indeed, after providing for the interest on the £20,000,000 granted to West India proprietors, had a disposable surplus of £1,620,000. From various alterations about to be made in the state of taxation with respect to spirits and beer, the estimated surplus might be taken at £1,815,000. Under these circumstances, the chancellor of the exchequer made the following reductions in taxation: in the house-tax, which was wholly abolished,£1,200,000; customs,£200,000; starch, £75,000; stone bottles and sweets, £6000; almanacks, £25,000; small assessed taxes, £75,000—leaving still a surplus of about £230,000. But this surplus would be further reduced by a change which was proposed in the spirit duties. The duty on spirits distilled in Ireland had for several years been fixed at the same amount as in Scotland. That policy was now to be departed from, and the duty on Irish spirits was to be reduced from 3s. 4d. to 2s. 4d. per gallon. After a few words from Mr. Baring against the views of the chancellor of the exchequer, the resolutions proposed were adopted by the house. Subsequently, an important measure of finance was attempted in a plan for the reduction of the four per cent, annuities created in 1826. All holders of that stock who should not signify their dissent, were to have, for every £100, three and a half per cent, in a new stock to be consolidated with the existing three and a half per cent, annuities, which were not liable to redemption before January, 1840. The dissentients were found to be a greater number than had been anticipated. Before the 9th of June, nine hundred and sixty-nine had expressed their dissent, and they held stock to the amount of £4,600,000. In order to provide funds for paying off these dissentients, a resolution was passed on the 7th of June, authorising the commissioners of the national debt to pay them out of the monies, stocks, or exchequer-bills which they held under “the savings’ bank act.” The dissented stock was from the tenth of October following to be considered as converted into an equal amount of three and a half per cents., which were to be vested in the commissioners, and placed in the bank-books to the account intituled “funds for the banks of savings.”

BILL FOR THE REMOVAL OF THE CIVIL DISABILITIES OF THE JEWS, ETC.

{WILLIAM IV. 1834}

During this session Mr. Robert Grant again brought in a bill for removing the civil disabilities of the Jews. The second reading was opposed by Mr. C. Bruce. He moved

that the bill be read a second time that day six months. The amendment, however, was rejected, and the bill carried through committee by large majorities, and it was read a third time and passed on the 11th of June by fifty votes against fourteen. In the lords, on the second reading, the Earl of Malmsbury moved the amendment that the bill should be read that day six months. The Earl of Winchilsea seconded the amendment. On a division the bill was lost by one hundred and thirty-two against thirty-eight.

The distress felt at this time by all classes of the community was dexterously made use of by the opponents of ministers to render their administration unpopular. They became exposed to great inconvenience from a statutory rule of the constitution, which requires that all members of the house of commons who accept certain offices under the crown shall vacate their seats, and take the chance of a re-election. In more instances than one, the candidate thus stamped with the approbation of government had not been re-elected; and even the attorney-general, having, by his promotion, lost his seat for Dudley, was unable to appear in the house of commons. This was the first practical grievance experienced under the reform act, which had swept away all the close boroughs without any exception, and provided no means to compensate the loss. This state of matters induced Sir Robert Heron, on the 1st of May, to move for leave to bring in a bill to obviate the necessity of members vacating their seats on their accepting certain offices under the crown. Mr. E. L. Bulwer was dissatisfied with the proposition, because it failed to remove the worst clanger of the present system. The principle of the constitution, he said, was not that the people should choose ministers, but that they should have an opportunity of deciding whether or not they wished their representatives to become ministers, and this principle the present measure would destroy. Pie moved, as an amendment, “That, for the convenience of the public service, and the promotion of the public interests, it is desirable that one member of each of the principal departments of state should have a seat in that house, but without the privilege of voting, unless returned by the suffrages of a constituency.” Dr. Lushington and Mr. Ward opposed both these propositions, as taking from the people one of the most valuable privileges given to them by the constitution, merely for the purpose of consulting the convenience and safety of the party now in power. Lord Althorp assured the house that the subject had been introduced without the sanction of government; but, at the same time, he stated that ministers had been put to great inconvenience. On the whole, however, he thought that the time was not yet come when a measure like that should be pressed on the house. Both the motion and the amendment were withdrawn.

On the 15th of May Mr. Tennyson submitted a motion for leave to introduce a bill to shorten the duration of parliaments. He reserved to himself the right, he said, of suggesting the precise period to which parliaments should extend, when the measure had gone into committee. The motion was seconded by Sir Edward Codrington, who expressed himself in favour of five years as being more likely to reconcile the different parties. Colonel Davies opposed the motion as being premature; and Lord Dalmeny thought the passing of the reform act the strongest possible reason against entertaining the question. In reply, Mr. Tennyson stated that those who supported the bill would bind themselves only to the propriety of shortening the duration of

parliaments, without at all pledging themselves to any particular period, which might be reserved for determination in committee; whereas, those who voted against it, would give a conclusive opinion that the present term ought to be continued. Mr. E. J. Stanley moved, byway of amendment, that the bill be one to shorten parliaments to five years, which was negatived without a division: the original motion was lost by a majority of fifty. Subsequently Colonel Evans moved for leave to bring in a bill for the amendment of the reform act, in so far as it made the payment of rates and taxes an essential qualification for voting at parliamentary elections, which was supported by Messrs. Hume, Roebuck, Attwood, and O'Connell. The motion was opposed by Lords John Russell and Althorp; and it was lost, on a division, by a majority of eighty-seven. Previous to this, Lord John Russell had introduced a bill to prevent bribery at elections, which had passed the commons. The peers had referred this bill to a select committee; and on the 28th of July, the Marquis of Lansdowne, on presenting the report of the committee, stated that there had been no interference with the powers possessed by the election committees of the house of commons. The single object kept in view by the committee was the attainment of the proposed end in the speediest manner possible. Accordingly an amendment on the bill was suggested, by which it was directed that, when a committee of the house of commons had come to the conclusion that gross and extensive bribery had been committed in any place, the result of that inquiry should be laid before their lordships; and then the crown should issue a commission, over which one of the judges should preside, to form a court of inquiry on the whole matter in dispute. He proposed that this court should consist of seven members of the house of commons, five of their lordships, and one judge, who should have the power of calling before them all persons and documents affecting the subject of inquiry; that the witnesses should be exempted from the consequences of any evidence which they might be called on to give; and that a statement of the result having been drawn up, any legislative enactment with regard to the alleged abuse should be left to the discretion of the two houses of parliament. When these amendments were brought under the consideration of the lower house, Lord John Russell thought them of so extensive a nature as to render the bill almost a new measure; and ultimately he agreed to withdraw it.

On the 15th of April, Mr. Roebuck moved for a select committee to inquire into the political condition of the Canadas. These provinces, he said, in consequence of bad government, were in a state of revolt. By their constitution they had a governor, a legislative council, and a house of assembly. Some years after the constitution had been conferred upon them, the two provinces were permitted to provide for their own expenses, and consequently to have control over the expenditure of the government. It had been proposed to pass the estimates annually; but that plan had been thwarted by the government, which charged the house of assembly with disrespect to his majesty. The representatives of the people next resolved to vote their money by items; but this having excited the jealousy of the officials, put a stop for the time to the business of the state. In consequence of all this the public mind was embittered, and the country was divided into two hostile sections—a small band of official persons on the one hand, and the nation, with their representatives at their head, on the other. Mr. Stanley said, that he was glad of the opportunity of bringing under the

notice of the house the present state of the province of Lower Canada, and after entering into the subject at great length, he moved as an amendment for the appointment of a select committee, to inquire and report whether the grievances complained of in 1828 by certain inhabitants of that colony had been redressed; and also, whether the recommendation of a committee of that house, to which the question of those grievances was referred, had been complied with on the part of government: also to inquire into other grievances set forth in the resolutions of the house of assembly in Lower Canada, and report thereupon to the house. Mr. O'Connell said that the object of government was to thwart the Catholic clergymen of Canada, and to throw obstacles in the way of their building chapels. He recommended that the motion should be withdrawn, and the amendment allowed to be carried, so as to throw upon government the responsibility of appointing the committee. Mr. Hume contrasted the tyranny exercised over the colony by the present government, with the leniency of the measures adopted by Lord Goderich; and Lord Howick expressed a hope that the committee about to be appointed would succeed in effecting an amicable adjustment of the differences prevailing in Lower Canada. Finally the motion was withdrawn, and the amendment of Mr. Stanley adopted.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by the king in person on the 15th of August. In his speech his majesty lamented the still unsettled state of Holland and Belgium; but expressed satisfaction that civil war had absolutely terminated in Portugal. He rejoiced, he said, that the state of affairs in the Peninsula had induced him to conclude with the King of France, the Queen Regent of Spain, and the Regent of Portugal that quadripartite treaty, which had materially contributed to produce so happy a result. Events, however, had since occurred in Spain, to disappoint for a time those hopes of tranquillity, which the pacification of Portugal had inspired. In his speech his majesty alluded to the numerous and important questions that had engaged, and would still engage the attention of parliament.

DISSOLUTION OF THE CABINET.

Before parliament was prorogued the weakness and vacillation of the ministry had been very apparent. From the moment of Earl Grey's resignation, indeed, the want of intrinsic power had rendered them dependent on O'Connell and his faction. And this very support was vouchsafed to them in such a way as tended to bring their government still more into contempt: while the Irish demagogues supported them, they expressed the utmost contempt for them. Thus, in the month of October, O'Connell wrote a series of letters to Lord Duncannon, in which every species of abuse was heaped upon the ministry and the Whigs.

Another circumstance which contributed to lower the reputation of the ministry was the hostility evinced to them by the public press. There was scarcely a daily newspaper, except the _Morning Chronicle_, which did not occasionally express contempt for them; and as for the _Times_, its columns perpetually exposed their feebleness and incapacity to carry on government on any fixed set of principles. The

conduct of Lord Brougham also tended to bring his colleagues into contempt. During the autumn he traversed different parts of Scotland, making speeches wherever hearers were to be found, in which at one time he would go the utmost lengths of ultra-radicalism, and at another, would speak in such a way as would have induced the Conservatives to hail him as their own. The dissolution of the ministry, however, was especially aided by the death of Earl Spencer, which took place on the 10th of November. As that event moved Lord Althorp to the house of lords, it was requisite to find a new chancellor of the exchequer, and a new leader of the house of commons.

On the 14th of November Lord Melbourne waited on the king at Brighton, to submit to his majesty the changes in official appointments which the death of Earl Spencer had rendered necessary, Lord John Russell being the individual selected as leader of the house of commons; but the king thought that business could not be carried on by such a ministry as it was proposed to construct, and he expressed his opinion that Lord Brougham could not continue chancellor, as well as his dissatisfaction with the selection of the members of the cabinet who were to frame the Irish church bill. The king, in fact, announced that he should not impose upon Lord Melbourne the task of completing the official arrangements, but would apply to the Duke of Wellington.

SIR ROBERT PEEL APPOINTED PRIME-MINISTER.

Having thus dismissed the cabinet, his majesty sent for the Duke of Wellington, who advised him to entrust the government to Sir Robert Peel. As Sir Robert, however, was in Italy, he offered to carry on the public business till his return. This course was adopted, and as a temporary arrangement, his grace was appointed first lord of the treasury, and sworn in as one of the principal secretaries of state. On the 21st of November, Lord Lyndhurst received the great seal, and took the oaths as lord-chancellor, but he did not resign the office of lord-chief-baron till the settlement of the ministry in December. Sir Robert Peel, who had been sent for by a special messenger, arrived on the 9th of that month, and one of his first steps was to propose to Lord Stanley and Sir James Graham that they should be members of the new administration; but they both declined pledging themselves to the extent to which they might be considered bound by the acceptance of office. The official arrangements, however, were completed by the end of December, and the new cabinet consisted of the following members:—Sir Robert Peel, first lord of the treasury; Lord Lyndhurst, lord-chancellor; the Earl of Rossyln, president of the council; Lord Wharncliffe, lord-privy-seal; the Duke of Wellington, secretary-of-state for foreign affairs; Mr. Goulburn, secretary-of-state for the home department; the Earl of Aberdeen, colonial secretary; Mr. Alexander Baring, president of the board or trade; Sir George Murray, master-general of the ordnance; Sir E. Knatchbull, paymaster of the forces; Earl de Grey, first lord of the admiralty; Lord Ellenborough, president of the board of control; Lord Maryborough, postmaster-general; the Earl of Jersey, lord-chamberlain; the Earl of Roden, lord-steward; Lord Lowther, vice-president of the board of trade, and treasurer of the navy; Mr. C. Wynn, chancellor of the duchy of Lancaster; Mr. Hemes, secretary-at-war; Mr. F. Pollock, attorney-general for England; and Mr. Follett, solicitor-general. The Earl of

Haddington went to Ireland as lord-lieutenant; Sir Edward Sugden was appointed lord-chancellor of Ireland; Sir Henry Hardinge became chief-secretary to the lord-lieutenant; and Sir James Scarlett succeeded Lord Lyndhurst as lord-chief-baron of the exchequer, with the title of Lord Abinger.

DISSOLUTION OF PARLIAMENT.

Every man of penetration saw that the new ministry had too much of the old leaven to stand long as the present parliament was constituted. Sir Robert Peel, however, did not despair. Though there was a reformed parliament, he fully anticipated carrying on the government with advantage to the country. In the month of November he expounded the principles on which he designed to conduct government, in a long address to his constituents at Tamworth, observing, that he would not accept power on the condition of declaring himself an apostate from the principles on which he had hitherto acted, and declaring that he had not been a defender of abuses, or an enemy to judicious reforms, either before or after the reform bill had passed. It was evident, however, to Sir Robert Peel and his colleagues that government could not be carried on with the present parliament; and therefore, on the 30th of December, a proclamation was issued, dissolving it, and convoking a new one to meet on the 5th of February, 1835.

THE ACT ABOLISHING SLAVERY IN THE WEST INDIES CARRIED INTO EFFECT.

On the 1st of August in the present year, the act for the emancipation of the negroes came into operation. In some islands symptoms of insubordination were exhibited, and the planters were obliged to have recourse to punishment and force, in order to overcome the reluctance of the black population to regular labour; yet this great change took place without any serious disturbances. In Barbadoes, indeed, there was perfect tranquillity and order; and in Jamaica the transition was accompanied with very little alarm or commotion. The slave felt grateful that he was permitted to take his proper station among the great family of mankind.

STATE OF THE CONTINENT.

At the close of the last year, the government of the Queen of Portugal was in possession of the capital, as well as of Oporto. Having an efficient army, as the authority of Don Miguel was obeyed over a large extent of country, the government resolved to pursue its military operations with vigour. The plan adopted was to crush the smaller bodies of men in arms for the pretender in various parts of the kingdom, till there should be no Miguelites but those who were around himself at Santarem. In pursuance of this plan, the Duke of Terceira joined the queen’s army in January, in order that Saldanha might undertake other operations. Saldanha made himself master of Leyria, between Lisbon and Coimbra, and Torres Novas, in which a system of massacre was adopted disgraceful to himself and his officers. His army now separated Miguel from the north, while the army of the Duke of Terceira pressed upon him from Lisbon. Saldanha took up his position at Almoster, where, in February, he was attacked by the Miguelites; but he repulsed them with great slaughter. Events equally favourable to the queen took place in the north, where considerable numbers of Miguelites were still in arms. The provinces north of the Duero were, indeed,

cleared of the enemy by the Duke of Terceira; and he then retraced his steps to expel the partisans of Miguel from the positions which they still held between the Duero and the Tagus, particularly Coimbra, on the Mondego, and Figueiras, at the mouth of that river. Figueiras was reduced by a naval expedition, under Admiral Napier, and Coimbra opened its gates to the duke himself. The queen's forces now pressed upon Don Miguel; and on the 18th of May he abandoned his lines at Santarem, and retreated towards Guadiana, in the direction of Evora. He was followed by Count Saldanha and the Duke of Terceira, who were at the head of 20,000 men; and seeing no hopes of success or escape, he sought a suspension of arms for the purpose of negociating. The government refused to enter into any negociation, or to listen to any terms different from those which had been already tendered; namely, that Don Miguel should leave Portugal within fifteen days, and engage never to return to any part of the Spanish provinces or the Portuguese dominions, nor in any way concur in disturbing the tranquillity of these kingdoms; that he would be allowed to embark in a ship of war belonging to any of the four allied powers; and that he should receive a pension of sixty centos of reis, about £15,000, and be permitted to dispose of his personal property, on restoring the jewels and other articles belonging to the crown and to private individuals. The troops of Don Miguel were to lay down their arms, and return peaceably to their homes under the protection of the amnesty; and he was to issue orders to commanders of fortresses, or of troops, who still recognised his authority, immediately to submit, under the same protection, to the government of the queen. To these terms Don Miguel now consented; and having signed the convention, he went on board a British vessel of war, which carried him to Genoa. The civil war was thus brought to an end in Portugal; and it was this happy event which led his majesty to conclude a treaty with that government, as alluded to in his speech. One act of ingratitude which the Portuguese government committed, however, must not be forgotten. It was chiefly by the valour of the British volunteer auxiliaries that the cause of the queen was triumphant; and these volunteers had been induced to enter into the service by promises of pay equal to that of England, exclusive of allowances for compensation and other advantages. The Cortes, however resolved, in January, 1834, that they should only receive Portuguese pay; and when the war came to an end, the British troops remained unpaid. The men, in fact, on whose bravery the sole dependence was placed when danger was threatened, were left to wander through the streets of Lisbon in rags and poverty, and compelled to prolong a miserable existence on scanty rations of beans and bread, with the occasional addition of a morsel of salt fish. Such is the usual reward of mercenaries who hire themselves out as the supporters of foreign revolutionary governments.

During this year the political relations between Holland and Belgium continued in the same state of uncertainty in which they had been left at the close of the former year. In Spain, also, the history of the present year opens with a continuance of the same contests for the succession to the crown which had marked the close of the preceding. Throughout the whole year, indeed, there was war between the queen-regent and Don Carlos; and the year closed while yet they were in arms. In Switzerland some agitation was occasioned by an attempt of the Poles in that country, in concert with Italian fugitives in the French departments of the Rhone and

Isère, to overthrow the Sardinian throne in Turin, by a sudden attack upon Savoy. Greece, during the present year, suffered both the evils of civil war and of political intrigue. In Turkey, the ascendancy of Russia was increased by an alliance, offensive and defensive, which was concluded between those two powers. The emperor gave up two-thirds of what remained to be paid in respect of the indemnities stipulated for by the treaty of Adrianople; and, on the other hand, to surround his Asiatic frontier, the Porte ceded to him an extensive tract of country in the pachalic of Athattsick. Turkey was to pay that portion of the indemnity which was not relinquished when it might suit her finances; and, in the meantime, Silistria was to remain as a pledge in the hands of the Russians, an arrangement which gave them the effective command of Moldavia and Wallachia, and left the frontier of Turkey defenceless against invasion. Russia also was to have the free passage of the Dardanelles.

CHAPTER XLV.

{WILLIAM IV. 1835—1836}

State of Parties..... General Election..... Ecclesiastical Commission..... Meeting of Parliament; Contest for the Office of Speaker..... Opening of the Session..... Discussion in the Lords regarding the Slavery Abolition Act..... Motion of the Marquis of Chandos to repeal the Malt-tax..... The Dissenters' Marriage Act..... Ministerial Plan for the Commutation of Tithes in England..... Report of Commission regarding the Church of England, &c. The Question of the Appropriation of the Surplus Revenues of the Irish Church..... Resignation of Ministers and the Restoration of Lord Melbourne's Cabinet..... Municipal Reform and the Irish Church..... Agricultural Distress..... Municipal Corporations..... Bill for regulating the Irish Church..... Discussion regarding Orange Societies in Ireland..... The Vote by Ballot, &c. Motion for the Repeal of the Window-tax, &c. The Budget..... Discussions regarding Canada..... Prorogation of Parliament..... State of the Continent

STATE OF PARTIES.

{A.D. 1835}

The state of the political world in this country was, at the opening of the present year, one of great interest and excitement. The dismissal of the Melbourne ministry was received by the country with undisturbed composure and perfect good-humour; but this was viewed by its members and partisans with alarm and humiliation; and, conceiving that it betokened a relaxation of power in the springs to whose action they trusted for their speedy return to office, they resolved to leave no means untried to agitate the country from one end to the other, in order to recover their waning influence. To this end the dismissal of the ministry was announced as exclusively the work of the queen, and as the result of a deep tory plot, and complicated tory intrigues. These tales, however, failed in creating the universal dismay so much desired; and then the organs of the party in opposition constantly insisted on the dreadful fate which awaited the country from the removal of the only men who had

either head to conceive or courage to undertake the task of saving the public weal, and putting in their place politicians who would repeal the reform act, impose new taxes, restore and multiply pensions, establish military law, and finally produce civil war. Still the country remained quiescent: it was known that the picture was fictitious, and men refused to be dismayed. One thing, however, was effected: although the Radicals did not raise any clamorous outcries at the downfall of their former associates, they struck a bargain with the Whigs, and came to terms for the purpose of putting down a common enemy.

GENERAL ELECTION.

The result of the elections crushed the present hopes of the Whigs. Instead of increasing either their numbers or their radical accomplices, it brought an addition of more than one hundred members to the Conservatives, exclusive of those whig reformers, such as Lord Stanley, who refused to identify themselves with the whig opposition in its present character and conduct, and of those among the Radicals, as Mr. Cobbett, who would not consent to be used merely as instruments for lifting men into power who would not manfully adopt any one of their opinions, and yet boasted their alliance as being engaged in a common cause. It must be confessed, however, that the Conservatives placed their all on this cast of the die. The Carlton Club dispersed its agents far and wide throughout the country, and every engine which aristocratic wealth and ecclesiastical influence could put in motion was employed in their cause. In the counties, the fifty-pound clause operated greatly to their advantage, and success generally attended their efforts; but in towns the opposite party were more successful. In Scotland there were some changes, but the comparative strength of parties remained there nearly the same as before; but in Ireland the retinue of the popish agitator was somewhat diminished, although the popish priests exerted themselves to the utmost in his favour. As for O’Connell himself, together with his coadjutors, he practised every form of violence and intimidation against every candidate who would not join in his cry for repeal, vote by ballot, short parliaments, and extension of the suffrage. Thus the Knight of Kerry, who started as a candidate for his native county, and who had spent his whole life in resisting Orangemen, because he refused to become an instrument in the hands of the popish priesthood and their agitator, was denounced as unworthy of being elected; every man who dared to vote for him was to have a death’s-head and cross-bones painted on his door: and the consequence was that he was rejected. Of a candidate for New Ross, who refused to enlist under his banner, O’Connell said, “Whoever shall support him, his shop shall be deserted; no man shall pass his threshold. Put up his name as a traitor to Ireland; let no man deal with him; let no woman speak to him; let the children laugh him to scorn.” Mr. Shiel likewise opposed a candidate for the county of Clonmel in the following words: “If any Catholic should vote for him, I will supplicate the throne of the Almighty that he may be shown mercy in the next world; but I ask no mercy for him in this.” Yet this unconstitutional line of conduct was not always successful, and even O’Connell himself, with Mr. Ruthven his colleague, found it difficult to obtain their return for the city of Dublin. The final result of the elections secured to the ministry a decided majority, in so far as England was concerned.

MEETING OF PARLIAMENT.—CONTEST FOR THE ELECTION OF SPEAKER.

Parliament met on the 19th of February. The attendance in the house of commons on the first day was more numerous than had ever been witnessed, even on the discussion of any great political or party question, it being determined by both parties to contest the election of speaker. Lord Francis Egerton moved that Sir Charles Manners Sutton should be called to the chair. The motion was seconded by Sir C. Burrell, who said that though he had supported Mr. Wynn as a candidate for the chair in 1817, in opposition to the late speaker, he had never found reason to regret his want of success on that occasion. On the other hand, Mr. Denison proposed that Mr. Abercromby should take the chair, which motion was seconded by Mr. Orde. Both these gentlemen expressed the pain which they felt at being compelled by an imperative sense of public duty to oppose the re-election of the late speaker, and declared their hearty concurrence in all that had been said regarding his excellent qualifications; but they maintained that a great public principle rendered it necessary that those qualifications should not be taken into consideration. A debate of considerable length ensued, in which the two candidates themselves took part. On a division Mr. Abercromby was elected, three hundred and sixteen voting for him, and three hundred and six for Sir Charles Sutton. The honourable gentleman was then conducted to the chair, and next day, appearing at the bar of the house of lords, he received from the lord-chancellor an assurance of his majesty’s approval of his election. His election was the first fruits of the treaty of alliance between the opposition and O’Connell; but the smallness of the majority by which it was obtained demonstrated to the opposition that, without his aid, they could never hope to triumph over the present ministry.

OPENING OF THE SESSION.

His majesty opened the session in person on the 24th of February; the intervening days from the election of speaker having been employed in swearing in members of the house of commons. Recently the two houses of parliament had been destroyed by fire, and temporary rooms had been fitted up for the accommodation of the British senate. In the lords the address was moved by the Earl of Hardwicke, and seconded by Lord Gage. An amendment was moved by Lord Melbourne, which was apparently framed for the purpose of catching stray votes, by being so constructed that even its success could not lead to the resignation of the ministry. The Earl of Ripon and the Duke of Richmond, who had both been connected with the late government, expressed their intention of supporting ministers, so far as they could applaud their measures, though they were unable to promise them full confidence. Finally, the amendment was negatived without a division.

In the commons, the address was moved by Lord Sandon, and seconded by Mr. Branston. Lord Morpeth moved an amendment to this effect:—“That in place of the concluding paragraphs should be substituted words expressing a trust that his majesty’s councils would be directed in a spirit of well-considered and effective reform; that, in the same liberal and comprehensive policy which had dictated the reform of our representation and tire abolition of negro slavery, the municipal corporations would be placed under vigilant popular control; that all the well-founded

grievances of the Protestant dissenters would be removed; that all the abuses in the church which impair its efficiency in England, and disturb the peace of society in Ireland, would be corrected; and that the commons beg submissively to add, that they could not but lament that the progress of these and other reforms should have been unnecessarily interrupted and endangered by the dissolution of the late parliament." The amendment was seconded by Mr. Bannerman, and the debate was continued by adjournment on the 25th and 26th of February. The members who took part in it were, for the original address, Sir Robert Peel, Lord Stanley, Messrs. Pemberton, Richards, Robinson, Goulburn, and Praed, and Sir James Graham; for the amendment, Lords John Russell and Howick, Dr. Lushington, and Messrs. Grote, Poulton, Ward, Ewart, Harvey, Fox Maule, Gisborne, Duncombe, O'Connell, and Sir Samuel Whalley. On a division, the amendment was carried by a majority of three hundred and nine against three hundred and two. The majority being so small, Sir Robert Peel intimated that it was possible he might take the sense of the house again on the question of bringing up the report; but next evening he stated that it was not now his intention to do this. The address, therefore, as amended, was presented to the king, who made the following reply:—"I thank you sincerely for the assurances which you have given me, in this loyal and dutiful address, of your disposition to co-operate with me in the improvement, with a view to the maintenance, of our institutions in church and state. I learn with regret that you do not concur with me as to the policy of the appeal which I have earnestly made to the sense of my people. I never have exercised, and I will never exercise any of the prerogatives which I hold, excepting for the single purpose of promoting the great end for which they are entrusted to me—the public good; and I confidently trust that no measure conducive to the general interest will be endangered or interrupted in its progress by the opportunity which I have afforded to my faithful and loyal subjects of expressing their opinions through the choice of their representatives in parliament." On a subsequent day, in answer to some questions put by Lord John Russell, the premier stated that he had not felt it his duty, in consequence of the vote on the address, to tender his resignation; that with respect to the Irish church, he retained his opinion that ecclesiastical property ought not to be diverted from ecclesiastical purposes, although any measures not inconsistent with this principle should have his best consideration; that he had no motive or intention to obstruct corporation reform; and that, in regard to a rumour which had been promulgated about another dissolution, and an alleged intention of government, in case the mutiny bill should not pass, to keep up a standing army in defiance of parliament, he had never sanctioned the first either directly or indirectly, and he had never heard a whisper about the second until it fell from Lord John Russell's own lips. These assurances, however, were not sufficient to satisfy the objections of his political opponents.

The conduct of Sir Robert Peel, in retaining office after an adverse vote upon the address, became the subject of indignant declamation throughout the country, and strengthened the general impression that ministers intended, if possible, to destroy the measures enacted by the reform bill, and to obstruct all further melioration of the law. It was true, as the partisans of the government urged, that there were precedents for the retention of office in the face of adverse votes; but this was a vote

upon the general policy of the government, not upon its policy in some non-essential particular, and constitutionally decided that the ministry did not possess the confidence of the commons house of parliament. According to all rule and precedent, Sir Robert ought to have resigned. The Duke of Sussex, Lord Holland, the great Fox, and other statesmen of acknowledged constitutional principles and respect for public rights, had always maintained these views. The conduct of Sir Robert and his cabinet was, therefore, justly held to be opposed to the practice of parliament and the doctrines of the constitution. Much of the odium of this procedure fell upon the Duke of Wellington, who was supposed to be the potential adviser of Sir Robert in this matter, and whose despotic sympathies, betrayed in many ways, gave great offence to the people. Had not the previous ministers, by their inconsistency, incompetency, and truckling to O'Connell and the Irish priest party, forfeited the confidence of a large portion of their British supporters, the efforts of Sir Robert Peel to retain office in opposition to a majority of parliament, would have created such a storm of hostility to him throughout Great Britain, as would have made it difficult for him to hold any office for many a year.

DISCUSSION IN THE LORDS RESPECTING THE SLAVERY ABOLITION ACT.

On the 27th of February the Earl of Mulgrave, whose efficient administration of the government of Jamaica had made him an authority on the West India slavery question, inquired of the secretary for the colonies, whether it was the intention of the present government to carry out the measure of emancipation recently passed through parliament. Lord Mulgrave strongly represented to the house the apprehensions entertained by the public that, in two respects, the government would differ from its predecessor:—the appointment of impartial magistrates—men not holders of slave property; and the protection of the missionaries, to whom the planters entertained an unjust prejudice, but who, in the experience of Lord Mulgrave in Jamaica, were a most useful body of men, who had in no way transgressed the bounds of their sacred calling in their conduct to slave or master. To these inquiries and remarks the Earl of Aberdeen replied very much in the tone and spirit in which he was accustomed to answer questions when, many years later, during the Russian war, he was prime-minister. He affected surprise that any one should suppose him an opponent to freedom; promised everything that popular opinion demanded; but betrayed, nevertheless, by his sneers and misrepresentations where the missionaries were concerned, and his deep sympathy with the planters, that his heart was set against justice and liberty to the poor apprentices. The Duke of Wellington brusquely said, that he had been opposed to the philanthropic view of the negro question altogether, but the bill passed by parliament he would not consent to see made a dead letter. The duke evidently said what he meant. The well-known honesty of his character assured the Earl of Mulgrave who accepted the reply. It was a good sign as to the policy which the cabinet intended to pursue on this question, that the Marquis of Sligo was requested to retain his office as Governor of Jamaica. The noble marquis was not an experienced politician or administrator; but in his management of the difficult and complicated concerns of Jamaica at that time, he proved himself to be a man of ability and honour.

MOTION OF THE MARQUIS OF CHANDOS TO REPEAL THE MALT-TAX.

The first proposal which ministers found themselves compelled to resist proceeded from one of their own supporters, and it was also one in which their opponents were compelled to join them in resisting. On the 10th of March, the Marquis of Chandos moved a resolution for the repeal of the malt-tax, as a source of relief to the agricultural interest. The motion was seconded by Mr. Handley. Sir Robert Peel, in reply, contended that the motion, if it was to be made at all, ought not to have been brought forward till after an authentic declaration of the national means had been laid before the house. In the course of his speech, Sir Robert Peel said that if the malt-duty were repealed, there was no alternative but to have a property-tax to make up the deficiency. Messrs. Cobbett and Bennett, who supported the motion, saw no objection to such a tax; and the latter gentleman said that the English landowners were too depressed in their circumstances to fear anything from the change, as the property was in the hands of the mortgagees and money-jobbers. The Earl of Darlington was bound, he said, to vote in favour of the resolution, however great his reluctance to do anything that might embarrass a government to which he was friendly, and a minister who, he believed, would endeavour to effect what he considered best calculated for the interest of the country. Messrs. C. Wood, Rice, and Poulett Thompson, all of whom had been connected with the late government, spoke against the motion; as did also Sir Edward Knatchbull, Sir J. Graham, Mr. Baring, Sir R. Gresely, and Mr. Grote. The debate was closed by Mr. Hume, who supported the motion. On a division, however, the motion was negatived by three hundred and fifty votes against one hundred and ninety-two. So convincing were Sir Robert Peel’s arguments, that several members voted with him who had either pledged themselves at their election to take a different side, or had, at least, induced their constituents to believe they would.

THE DISSENTERS’ MARRIAGE ACT.

Sir Robert Peel introduced the first important measure of government on the 17th of March, being a bill to provide relief for those dissenters who objected to have their marriage rites performed according to the ritual of the English church. The measure provided that a civil marriage should take place before a magistrate, who should refer the certificate to the parish clergyman, by whom it was to be inserted in the parochial registry. The various bodies of dissenters might, by arrangements of their own, provide a religious form as a sort of addendum to the civil ceremony. This brief affair was stated by Sir Robert in a very verbose speech, in which he showed a desire to conciliate all parties, and an apprehension that he would fail to conciliate any. Leave was given to bring in a bill.

REPORT OF COMMISSION REGARDING THE CHURCH OF ENGLAND, ETC.

One of the first acts of the new ministry had been the appointment of a commission, consisting principally of the heads of the church, to inquire into and report upon the changes which might be effected in regard to ecclesiastical territory, income, and patronage, so as to render remuneration and labour more commensurate with each other; to enforce residence; and to destroy the necessity of pluralities, by

providing for all a sufficient maintenance. The first report of this commission was presented to the house of commons on the 19th of March, which proposed a new arrangement of diocesses. As regards emolument, the principle adopted was to proportion, as far as might be, the revenues of the bishops to their several stations and duties; not making any reduction where the income did not exceed £5500, and making an addition where it amounted to £4500. The division of large parishes was further recommended; the revenues of new incumbents being supplied from prebends and other preferments which might fall.

On the 12th of March the attorney-general obtained leave to bring in a bill for improving, the administration of justice in ecclesiastical causes, which was one of the measures alluded to in the speech from the throne. On the same day also he obtained leave to bring in another bill, having for its object the better maintenance of the discipline of the church of England. On the 24th of March, Sir Robert Peel brought the subject of the commutation of tithes in England before the house of commons. After a long statement explanatory of his views, he concluded by moving the following resolution:—"That it is expedient to give facilities for the commutation of tithe in the several parishes of England and Wales, and for a payment in moneys, in substitution thereof to be allotted on the tithable lands in each parish; such payment to be subject to variation at stated periods, according to the prices of corn, or for the allotment of land in lieu of tithe in parishes wherein the parties concerned may consent to such allotment." This resolution was agreed to, and a bill founded on it was ordered to be brought in.

REPEATED DEFEATS OF THE MINISTRY IN THE HOUSE OF COMMONS.

While the ministry, by the introduction of these important measures, were vindicating their claim to the character of men who in their policy regarded the prosperity of the country, and were not wedded to anything which might interfere with its welfare, their conduct in other matters furnished manifold indications of the same spirit, and hence disappointed the opposition, which had predicted the continuance and the restoration of every species of abuse. Several committees which had been appointed by the late government were re-appointed; and they professed themselves willing to carry out their well-founded measures. But, notwithstanding all this, their rule was brief; they were unable to disarm the spirit of hostility. During the period in which ministers were proposing their important measures, some minor topics were introduced, in which they found themselves unable to resist the numerical force of their opponents. Thus they were left in a minority on the subject of a petition presented, complaining of Colonel Tremenhere, an officer in the public service at Chatham, as having interfered unconstitutionally in the election for that borough, in which election the government candidate had been returned. Ministers were also left in a minority, when Mr. Tooke moved an "address to his majesty, beseeching him to grant his royal charter of incorporation to the London University, as approved in the year 1831, by the then law-officers of the crown, and containing no other restriction than against conferring degrees in divinity and medicine." Mr. Goulburn moved, as an amendment, that the address should be for copies of the memorials which had been presented against granting the charter, together with an

account of the proceedings before the privy-council; but, on a division, the motion was carried by a majority of two hundred and forty-six against one-hundred and thirty-six. On the 1st of April the king returned this answer to the address:—"That his majesty, desirous that such a subject should receive the fullest consideration, had referred it to his privy-council; that the reply of his privy-council had not as yet been communicated to him; but that his majesty begged to assure his most faithful commons that he should call upon his privy-council without delay, for a report of the proceedings they had adopted on the subject, in order to enable his majesty to judge what would be the best mode of carrying into effect the wishes of his faithful commons respecting a charter to the London University, and what might be the conditions on which it should be granted." These questions, however, did not distinctly affect the government. Frequent hints, indeed, were given to Sir Robert Peel that he ought to retire; but as yet no motion was ventured which, if carried, must necessarily have led to that result. On one occasion, Lord John Russell having remarked that all the prerogatives of the crown seemed in a fair way of being successively compromised, in the course of what he called an attempt on the part of the administration to govern with a majority of tire house of commons against them, Sir Robert-Peel complained that the opposition did not bring the question of the retirement of the ministry to a fair issue. No one was more anxious for this, he said, than he himself was; and if the opposition could not find a day for the purpose, he would facilitate their views. He asked Lord John Russell whether, if ministers had thrown up the government, he would not have turned round on them and said, "You are guilty of a cowardly abandonment of office; you never meant to remove grievances; we never brought forward a direct vote of censure; we were prepared to hear your propositions; but you yourself have shrunk from the trial." Mr. Hume admitted that ministers had reason to complain that the question had not yet been brought to an issue; but he hinted at the same time the opposition would take their own time and day for the attack. Lord John Russell said, that if a direct vote of want of confidence had been brought forward, ministers might have gained a number of votes on the plea of being unfairly treated. They might have said to the opposition, "You now preclude us from being heard; you want to condemn us without trial; and to reject our reforms before you are able to judge of them." He would not expose himself to the chance of receiving such an answer; he would wait for the promised measures of reform. The reply sent by the king to the house of commons on the 1st of April created great dissatisfaction in the minds of the liberal members, and among their supporters in the country. It was denounced as another instance of "back-stairs government" by many; this phrase was intended to describe the influence of the queen, and certain ladies of her suite, in political matters. Many of the people, however, absolved the court from all blame, and attributed what so much offended them to the despotic opinions and dispositions of the cabinet, especially "the duke" and Sir Robert Peel. This feeling was chiefly directed against his grace.

THE QUESTION OF THE APPROPRIATION OF THE SURPLUS OF THE REVENUES OF THE IRISH CHURCH.

On the 20th of March Sir Henry Hardinge, the secretary for Ireland, brought forward, in a committee of the whole house, the ministerial plan for settling the Irish

tithe question, and moved a resolution to this effect:—“That it is expedient to abolish tithes in Ireland, and to authorise a composition in lieu of it, charged upon the land, and payment to the tithe-owner; that such rent-charge might be redeemed, and the redemption money invested in land or otherwise, for the benefit of the persons entitled to such composition; and that the arrears of tithe due in the year 1834 should be made up from what remained of the £1.000,000 advanced by parliament to the clergy of Ireland in 1833.” After a determined resistance from a large portion of the radical members, the motion was carried by a majority of fifteen. This would probably not have been the case, had not Lord John Russell given Sir Robert Peel a qualified support.

Ministers had brought forward everything that could be done practically to remove the evils attending the collection of tithes in Ireland; and the opposition propounded no measure which would go further in the way of securing or arranging the payment of tithe to the Protestant church; they even complained that the new government was merely imitating the conduct of its predecessors. Their only position now was to maintain that it was not enough merely to place on a better and surer foundation the collection of tithe for the Protestant church, but that, to some extent at least, though to what extent nobody attempted to define, it must cease to exist as tithe payable to the Protestant church, and be applied to purposes in which Catholics might have an equal interest. This ground was now taken by the opposition. On the 30th of March Lord John Russell moved the following resolution:—“That this house resolve itself into a committee of the whole house, in order to consider the present state of the church establishment in Ireland, with the view of applying any surplus of the revenues not required for the spiritual care of its members to the general education of all classes of the people, without distinction of religious persuasion.” Lord John Russell said, that if the house should resolve itself into a committee on the motion, and should the resolution be carried in a committee of the whole house, he would move an address to the crown, embodying that resolution with an humble entreaty to his majesty, that he would be pleased to enable the house to carry it into effect—for a measure of this kind should be introduced by a message from the crown. The debate which followed was continued by adjournment up to the 2nd of April. Sir Edward Knatchbull, who followed Lord John Russell, objected to the proposition itself, he said, on the distinct ground that he was not prepared to apply church property to other than Protestant church purposes. Mr. Ward, whose motion of a similar character had been set aside by the appointment of the commission, entered at great length into the general question of the right of the state to appropriate church property to whatever purposes it thought proper; contending that no member should give his vote without remembering the undoubted right which parliament possessed of dealing with all corporate property as the welfare of the community might require, and of so disposing of it as to accommodate its distribution to that state of things which the alterations of time might unfold, or the progress of society occasion. Sir James Graham, in opposing the motion, showed that the income of the Irish church did not amount to so large a sum as represented by opposition; and contended that the evils of the proposed appropriation would not be limited to Ireland, but would extend to England: the church of England would not only be endangered by it, but ultimately

destroyed. Lord Howick spoke in favour of the resolution, but at the same time disclaimed all participation in any wish that it should be the means of turning out the ministry. Messrs Shiei, Poulter, and Wood also supported the resolution; and Messrs. Lefroy and Gladstone, and Sir R. Inglis spoke against it. Sir William Follett, the solicitor-general, followed on the same side as the latter. Mr. O'Connell, after reiterating his charge of misrule, said that he would avoid any discussion upon tithes, and content himself with laying down the broad principle that the emoluments of a church ought not to be raised from a people who did not belong to it. Ireland did not ask a Catholic establishment; the Irish desired political equality alone; they would not accept a shilling for their church. Their church was unpolluted by the mammon of unrighteousness; the voluntary principle had answered every purpose of the Catholics, and they desired no connexion with the state in matters of religion. It was said, he continued, that the number of Protestants was on the increase in Ireland; he contended that the reverse was the case. It was said, also, that there was danger in giving the Catholics ascendancy; they had been in power three times since the Reformation, and they had not persecuted the Protestants. The address of Mr. O'Connell aided very much in deciding the question against the government. His protestations of moderation as to the desires of enlightened Roman Catholics, and his disclaimers of any wish for the ascendancy of his church, produced an effect favourable to Lord John's motion among such liberal members of the house as possessed little knowledge of ecclesiastical history. The protestations of Mr. O'Connell were as insincere as his statements were historically untrue. His church had never been in power without efforts to persecute; and while he made the voluntary principle his confession of faith, it was notorious to the leading Whigs that his pet measure was the purchase of glebes for the Irish priesthood by the funds of the state, and the further endowment of Maynooth College on an enlarged scale. After various addresses, especially one in a very defiant strain by Sir Robert Peel, Lord John Russell briefly replied, and the motion was carried by a majority of three hundred and twenty-two against two hundred and eighty-nine.

The next step was to consider the resolution in committee; and Sir Robert Peel proposed that the committee should not be taken till the following Monday; but the opposition, flushed with victory, would not consent to a single day's intermission. They insisted that the committee should be taken that very day, which was done; and the debate continued by adjournment on the 5th. In the committee, Lord John Russell substituted "moral and religious instruction" for "general education." On a division in the committee, two hundred and sixty-two voted in favour of the resolution, and two hundred and thirty-seven against it. In the meantime the opposition had partly changed their intended plan of operation. It had been announced by them that the carrying of the resolution would be followed up by an address to the crown; but Lord John Russell now gave notice that he would interpose another step between the house and the throne, by asking the former to pledge itself to this further resolution:—"That it is the opinion of this house that no measure upon the subject of tithes in Ireland can lead to a satisfactory and final adjustment, which does not embody the principle contained in the foregoing resolution." Sir Robert Peel allowed the report to be brought up without a division, but he said that he would certainly divide the house on

the new resolution. In support of it, Lord John Russell treated it as a necessary corollary of what the house had already voted; it behoved the house, he said, to continue the work which they had begun, and to say that the principle which they had declared to be essential to the maintenance of peace and the due administration of justice in Ireland, should be carried into effect by some legislative measure. The resolution was opposed by Sir Robert Peel and Mr. George Sinclair; while Messrs. Spring Rice, Perrin, and Gisborne supported it. On a division, the resolution was carried by a majority of two hundred and eighty-five against two hundred and fifty-eight.

RESIGNATION OF MINISTERS, AND RESTORATION OF LORD MELBOURNE'S CABINET.

{WILLIAM IV. 1835—1836}

The majorities of the opposition caused the resignation of ministers. On the meeting of the house, April 8th, Sir Robert Peel stated that he and his colleagues had placed their offices at the disposal of the king. On the same evening a similar announcement was made in the lords by the Duke of Wellington. After Sir Robert Peel's announcement of his resignation, the house of commons met on the 9th for an election ballot, and then adjourned till the 13th. On that day the house was informed by Sir Robert Peel that he had received an intimation from his majesty that the new arrangements were in progress, but were not completed, and the house again adjourned till the 16th. On the 16th Sir Robert was under the necessity of making a similar communication, and the house adjourned to the 18th, on which day the new administration was announced in both houses of parliament. The new cabinet was formed as follows:—Viscount Melbourne resumed his place as first lord of the treasury; Mr. Spring-Rice became chancellor of the exchequer; Lord Auckland was the first lord of the admiralty; Sir John Cam Hobhouse, president of the board of control; Mr. Poulett Thompson, president of the board of trade; Lord Duncannon was placed at the head of the woods and forests; Lord John Russell took his place in the home department; the colonial office was given to Mr. Charles Grant; the seals of the foreign office were again entrusted to Lord Palmerston; Viscount Howick was secretary-at-war; Sir Henry Parnell was paymaster-general; Mr. Cutlar Ferguson, judge-advocate-general; and Sir John Campbell and Mr. Rolfe again became attorney and solicitor-general. There was no lord-chancellor appointed; the great seal was put in commission, the commissioners being the master of the rolls, the vice-chancellor, and Mr. Justice Bosanquet; Lord Mulgrave was made lord-lieutenant of Ireland, with Lord Plunkett once more as chancellor, and Lord Morpeth as Irish secretary. Mr. Perrin was named attorney-general, and Mr. O'Loghlin, solicitor-general. The lord-advocate of Scotland was Mr. J. A. Murray; the Marquis of Conyngham was postmaster-general; and the Marquis of Wellesley, lord-chamberlain. After the announcement had been made, the house adjourned to the 30th of April, but with an understanding that no public business should be undertaken till the 12th of May. In the upper house Lord Alvanley asked Lord Melbourne how the ministry stood in regard to Mr. O'Connell and his followers. He wished to know whether government

had or had not secured their aid; and if they had, the terms on which that support had been obtained. Lord Brougham said that these questions were improper, and advised Lord Melbourne not to answer them. Lord Melbourne, however, was more courteous. The noble lord had asked him, he said, how far he coincided in opinion with Mr. O'Connell? His answer was, "Not at all. As for the question as to 'whether I have taken any means to secure the assistance of Mr. O'Connell, and if so, on what terms?' I answer that I do not know whether I shall have his assistance or not. I have taken no means to secure it, nor have I said anything from which any inference could be drawn in order to secure that individual's support." As to tithes, Lord Melbourne said, that he did not hesitate to say that he considered himself pledged to act on the resolution of the other house. After the houses had adjourned, the new ministers who belonged to the commons sought to be re-elected; but although they were in general successful, they encountered some failures. The severest stroke of all occurred in the case of Lord John Russell himself: he again presented himself to the electors of the southern division of Devonshire; but he was defeated by Mr. Parker, and he did not procure a seat till after parliament had reassembled. Colonel Fox, member for Stroud, accepted the Chiltern hundreds in his favour, and became secretary to the ordnance. By a similar negotiation, Mr. Kennedy, member for Tiverton, made room for Lord Palmerston. These failures were very discouraging, and gave symptoms of the alarm which had been created in the public mind.

MUNICIPAL REFORM AND THE IRISH CHURCH.

When the new ministers explained what they intended to do this session, it was found that the only measures which they meant to bring forward were a bill for the reform of municipal corporations, and a bill founded on the late resolutions of the commons regarding tithes. Changes in the mode of electing municipal authorities and in the general government of boroughs had become inevitable from, and after the passing of the reform bill. A commission had been appointed, in 1833, to inquire into the state of corporations in England and Wales; and on more than one occasion his majesty had alluded, in his royal speeches, to the objects of the commission. The report of the commissioners had not been made when Sir Robert Peel went out of office, but soon after they framed a general report, besides separate reports on individual corporations. The former, and several of the latter, were presented in May, and the general report thus concluded:—"In conclusion, we report to your majesty, that there prevails amongst the inhabitants of a great majority of the incorporated towns a general, and in our opinion a just, dissatisfaction with their municipal institutions; a distrust of the self-elected municipal councils, whose powers are subject to no popular control, and whose acts and proceedings, being secret, are unchecked by the influence of public opinion; a distrust of the municipal magistracy, tainting with suspicion the local administration of justice, and often accompanied with contempt of the persons by whom the law is administered; a discontent under the burdens of local taxation, while revenues that ought to be applied for the public advantage are diverted from their legitimate use, and are sometimes wastefully bestowed for the benefit of individuals—sometimes squandered for purposes injurious to the character and morals of the people. We therefore feel it to be our duty to represent to your majesty that the existing municipal corporations of England and

Wales neither possess nor deserve the confidence or respect of your majesty's subjects, and that a thorough reform must be effected before they can become what we humbly submit to your majesty they ought to be—useful and efficient instruments of local government." Lord John Russell, proceeding on this recommendation, on the 5th of June detailed the plan of municipal government which ministers intended to provide for one hundred and eighty-three corporations. After detailing the many abuses which existed, he said that, instead of the present irregular government of corporations, it was proposed that there should be one uniform system of government—one uniform franchise for the purpose of election: and the like description of officers, with the exception of some of the larger places, in which it might be desirable to have a recorder, or some other magistrates different from the other smaller boroughs. In regard to the qualification of electors, he said it had been determined not to adhere to the parliamentary franchise. By the proposed bill they would be obliged to pay the borough rates, and accord to the established practice of the English government, and the acknowledged and recognised principles of the British constitution. He thought it fair that they should have a voice in the election of those by whom the rates were made, and by whom the corporate funds were expended. As, however, the electors ought to be the fixed inhabitants of the town, known to contribute to the rates, it was proposed that they should be persons who had been rated for three years, and had regularly paid those rates. Provision was also made in the bill for the case of those individuals who might have omitted to pay their rates. In regard to the governing body, there was to be one only—a mayor and common-council. The common-council would consist of various numbers, generally regulated by the population of the different places; their numbers would vary from fifteen in the smallest places to ninety in the largest. It was proposed that the largest towns, of which there were only twenty, should be divided into wards, and a certain proportion, which would be regulated by the schedules to the bill, of common-councillors should be chosen in each ward. In all the rest of the boroughs it was proposed that the whole common-council should be elected for three years. They were to be elected for three years; but one-third were to go out of office every year, thus taking care that two-thirds of the common-council should have experience in the transaction of town business. The mayor was to be elected annually, and he was to be, during the time of his mayoralty, a justice of peace for the borough and likewise for the county. The town-council was to have the power of appointing a town-clerk and treasurer, and it was left to their option whether they would retain their present town-clerks in their office. If, however, another was chosen, and the dismissal of the present town-clerk was attended with any pecuniary loss to the individual, he was to receive compensation. All the old modes of acquiring the freedom of a corporation, such as birth and apprenticeship, were to be abolished; but all pecuniary rights, such as rights of common, exemption from tolls, &c., would be preserved to the persons now enjoying them, during their lives; in future, however, no person should be a burgess, or admitted into the corporations, except in consequence of the permanent occupancy of a house, and the payment of the borough rates. All exclusive rights of trade were to be abolished, due regard being paid to the pecuniary interests of existing individuals. It was proposed, touching the pecuniary affairs of corporations, that town-councils should have the power to appoint committees in order to manage

their financial matters; that their accounts should be regularly audited; and that they should no longer be secret accounts, but regularly brought before the public. Town-councils were further to become the trustees of charitable funds, appointing a committee, if they thought proper, to manage them. For the management of these funds a separate secretary and treasurer was to be appointed, and provision was made for auditing them in a different manner from the general accounts of the borough. The number of persons chosen for the management of these charitable estates were not to be less than fifteen, and they were to be chosen from among the general body of burgesses. The police, as far as regarded the watching of the towns, were to be placed under the control of the town-council. The power of granting alehouse licences was also to be left to town-councils, or to a committee chosen by them from their own numbers, to grant these licences. It was proposed to divide the one hundred and eighty-three boroughs into two schedules; the greater part of these, one hundred and twenty-nine, were to be placed in schedule A, and would have a commission of the peace granted them. The remaining fifty-four might also, if they chose, have a commission of the peace on application to the crown. With respect to those in schedule A, the town-councils were to have the power of recommending to the crown certain persons whom they thought proper to receive the commission of the peace within the borough; but they were not to have the power of electing magistrates in such sense as that the assent of the crown should not be necessary to perfect the election. These magistrates were not to have the power of sitting in quarter-sessions; but the bill enacted that, on a town-council applying to the crown for the establishment of a court of quarter-sessions, and stating that they were willing to continue the salary paid to the recorder, the recorder should be retained if a barrister of five years' standing. With respect to other towns desiring to have quarter-sessions, but which either had no recorder, or where the recorder was not a barrister of five years' standing, it was intended that the crown should in future have the nomination of that officer. Sir Robert Peel said that he would present no impediment to the introduction of the bill, but would reserve all consideration of its details, every one of which deserved a separate discussion, to a future stage of proceedings. The bill was read a second time, without debate and without opposition, on the 15th of June, and the committee began on tire 22nd of the same month. The first disputed point regarded the fixing of the boundaries of those boroughs whose limits had not been defined in the act passed for that purpose in reference to the reform bill. The bill provided, "That they should be, and remain the same as they are now taken to be, until such time as his majesty shall have been pleased to issue his letters-patent under the great seal, that he may be certified concerning the fit metes and bounds to be allotted unto the same respectively, and until such further time as it shall please his majesty, by advice of his privy-council, upon inspection of the return thereof made by the commissioners unto whom such letters-patent shall have been directed, to declare fit metes and bounds of the said last-named boroughs, and the metes and bounds of the said last-named boroughs thenceforward, for the purposes of this act, shall be the same so declared as last aforesaid." This was objected to by several members, as placing a dangerous power where it ought not to be placed. Sir Robert Peel said, he would consent that the boundaries of the existing boroughs should continue as they were until they should be otherwise settled by parliament:

and Lord Stuart Dudley, although a friend of the ministry, moved an amendment to that effect. He was supported by Sir James Graham, Mr. Goulburn, and other members, who argued, that the clause gave the crown a power which the crown ought not to possess, and devolved upon the executive, duties which clearly belonged to the legislature. Lord John Russell said, he had no objection to add words to the effect that his majesty having appointed a commission to settle the boundaries, the report of that commission should be laid before parliament at its meeting, and the boundaries therein named should be and remain the boundaries of these boroughs, unless parliament should otherwise decide. Lord Dudley Stuart, however, pressed his motion to a division; but it was lost by a majority of two hundred and fifty-nine against one hundred and ninety-two. A more important discussion took place on the clause which affected the rights of existing freemen, and the future modes of acquiring freedom in corporations. The bill enacted, “That after the passing of this act no person shall be elected, admitted, or enrolled a citizen, freeman, liveryman, or burgess, of any borough, or by any name, a member of any body corporate in respect of any right or title other than by occupancy and payment of rates within such borough, according to the meaning and provisions of the act.” Sir William Follett opposed this sacrifice of freemen; and he moved an amendment to the effect of preserving their rights without interfering with the municipal government of corporate bodies. Government vehemently opposed this amendment; but various members accustomed to go with ministers declared their intention to vote for it. Sir James Graham thought it would simplify the question if the amendments were limited to the rights of freemen under the reform bill, because the question of inchoate rights would arise more properly under another clause. Sir William Follett acceded to this suggestion; but Lord John Russell still maintained that the provision contained in the clause was a necessary consequence of adopting this new municipal franchise; and, if so, ministers were not proposing it for the sake of altering the reform bill, but for the sake of amending the municipal corporations. The amendment said that the clause must not affect either the rights of property or the privileges to which the freemen were at present entitled. Many of these rights and privileges were of a description hurtful to the inhabitants of towns generally; many of them consisted in a monopoly of trades; and many in an exemption of tolls to which the inhabitants generally were liable. Lord Stanley supported the amendment: he could not see how the clause came to appear in a bill which professed to be a measure to provide for the regulation of the municipal corporations in England and Wales. On a division the clause was carried by a majority of two hundred and seventy-eight against two hundred and thirty-two.

The question, however, was again raised by Mr. Praed, who moved the following amendment:—“Provided always, and be it enacted, that in every borough, whether the same be a county of itself or not, where the right to vote in the election of members or a member to serve in parliament for such borough, is, according to the laws now in force, enjoyed by persons entitled to vote in virtue of some corporate right, nothing whatsoever in this act contained shall in anywise hinder or prevent any person or persons who now enjoy, or who hereafter, according to the laws now in force, might have acquired such corporate right, from enjoying or acquiring such

corporate right for the purpose of voting in such elections." In opposing this amendment, Lord John Russell denied that he was interfering by this municipal bill with the parliamentary franchise: he was not enacting that there should be no freemen; and, therefore, though there would no longer be freemen voting for members of parliament, that was only an incidental consequence of the principle of the bill, which principle was again brought into action, not with a view to parliamentary franchise, but solely with a view to municipal government. The amendment was lost by a majority of two hundred and thirty-four against two hundred and sixty-two. Another amendment, moved by Mr. Ponsonby, for the purpose of protecting inchoate rights of freemen, was equally unsuccessful, being negatived by a majority of two hundred and thirty-four to two hundred and three. The bill arranged all the boroughs into two classes, according to their population, the larger boroughs being divided into wards. In all these boroughs the bill required no qualification in the common-councilmen, except that of being ratepayers. Sir Robert Peel moved as an amendment, "Provided such members of council who shall be elected in boroughs divided into wards shall, at the time of their election, be seized or possessed of personal property of the clear value of £1000, or that they shall be rated on a rental of not less than £40 a-year: and also, provided that all such members elected in towns not divided into wards shall, at the time of their election, be seized or possessed of property, real or personal, of the clear value of £500, or be rated to the relief of the poor on a rental of not less than £20." Sir Robert founded his amendment on what had been the usual practice in enactments regarding corporate towns. It was true that, according to ancient practice, no pecuniary qualifications were required for members of corporations; but the spirit of the charter was, that persons fit for their respective offices should be appointed; and he apprehended that, even in those self-elected corporations, whatever might be their defects in other respects, care was taken to elect persons of wealth and respectability. In opposing the amendment, Lord John Russell, Sir J. C. Hobhouse, Mr. Blackburne, and other members, argued, that it was in contradiction to the spirit of the bill, not agreeable to the provisions of the original charters, incapable of being generally and fitly applied, and not productive of any practical benefit. It was lost by a majority of two hundred and sixty-seven against two hundred and four. On the same day Lord Stanley moved an amendment on the clause which fixed the periods of election, which he proposed should take place only every second year; but this also was lost by a majority of two hundred and twenty against one hundred and seventy-six. Mr. Grote attempted to engraft on this part of the bill a modification of his favourite measure of vote by ballot; but the amendment was withdrawn. A division took place on the clause of the bill which declared that the town-clerk should be removable at pleasure; but it was retained by a majority of sixty. Sir James Graham was also unsuccessful in an amendment on the clause which gave to the set of men who should once get into office a formidable instrument for maintaining their predominance, by vesting in the council the power of granting or refusing all licences within the limits of the borough; the original clause was retained by a majority of forty-five. The labours of the committee were finished, and the report received on the 17th of July; and on the 20th the bill was read a third time without a division, the opponents of the bill leaving it to the house of lords to accomplish those ameliorations in its enactments which they

deemed requisite.

The day fixed for the second reading of the municipal bill in the house of lords was the 28th of July. On that day petitions were presented against it from Coventry, Doncaster, Lancaster, Worcester, Lincoln, and other corporations, praying to be heard against the bill by counsel; and from Bristol and Liverpool, praying to be heard against it by their respective recorders. It was moved, that the petitioners should be heard by counsel, which Lord Melbourne opposed. The Duke of Wellington and other peers contended that it would be a denial of justice to refuse to hear parties against a measure which affected their character as well as their interests. Lord Brougham also said that there would be no objection to counsel being heard, provided the matter was so arranged as to prevent that hearing from becoming interminable. He suggested that two counsel should state all that was to be stated for the whole of the corporations. In this suggestion Lord Melbourne concurred, and it was agreed to by the whole house, after which the bill was read a second time _pro forma_. The hearing of the counsel commenced on the 30th of July, and was continued up to the 1st of August. The two gentlemen who appeared for the corporations were Sir Charles Wetherell and Mr. Knight, who insisted largely on the general character of the bill, as putting an end to all rights enjoyed under any corporate charter in the kingdom; and attacked the reports made by the commission regarding the different boroughs. They claimed a right to tender evidence in order to prove the ignorance and partiality with which the corporations had been treated. After the counsel had concluded their argument, Lord Melbourne gave notice that he would oppose any motion for allowing evidence to be adduced in defence of any corporation. Notwithstanding this notice, however, on the 3rd of August, after his lordship had moved that the house should go into committee on the bill, the Earl of Carnarvon moved, as an amendment, that evidence should now be taken at the bar of the house in support of the allegations of the several petitions. After a long debate on this counter-motion, which was strenuously opposed by the ministers and their party, the house determined in its favour by a majority of one hundred and twenty-four to fifty-four.

Evidence was now heard at the bar, which occupied the house from the 5th to the 8th of August. Witnesses were examined in relation to about thirty boroughs; and the evidence went to show that the commissioners had acted like attorneys employed to get up a case, and with but little prudence, since they chiefly derived their information from partizans of their own opinions. The evidence having been finished, the house went into committee on the bill on the 12th of August, when the Duke of Newcastle proposed the rejection of the bill, by moving that the committee should be taken that day’six months. He did not, however, press his motion to a division, the conservative peers having resolved to pass the bill, in so far as they thought it might do good, after stripping it of those provisions which seemed to be most operative for evil. Lord Lyndhurst proposed the first alteration; He moved a clause preserving to all freemen, to every person who might be a freeman but for this measure, and to their widows and children, or the husband of their daughters or widows, the same rights in the property of the boroughs as would have belonged to them by its laws and customs if this act had not been passed. He did not refer, he said, to general corporate

property, but to individual and specific rights of property enjoyed by freemen in many boroughs—rights of commons and others. Lord Melbourne opposed the motion. He would not be disinclined, he said, to consider a proposal for extending the period during which these rights should be preserved further than it was now fixed by the bill; but he could not consent to preserve in perpetuity rights which he believed to be prejudicial both to the freemen themselves and to the whole community. The Earls of Haddington and Ripon supported the amendment, while Lords Plunkett and Brougham, and the Marquis of Lansdowne opposed it, contending that the rights to which the bill put an end were not rights of property. On a division the amendment was carried by one hundred and thirty against thirty-seven; and, thus victorious, Lord Lyndhurst immediately moved another, to preserve the freemen their parliamentary franchise as secured by the reform bill. Lord Melbourne was hostile to this amendment; but as there was no hope of success, he did not call for a division, and it was adopted. Another amendment, moved by Lord Lyndhurst, which required a certain qualification in the town councillors, after stern opposition from the ministers, was carried by a majority of one hundred and twenty to thirty-nine. The next alteration proposed by the opposition peers was an amendment which provided that a fixed proportion of the town-council should hold office for life. This was described by the supporters of the bill as being more glaringly inconsistent with the principle of the bill than any of those which had been adopted. To agree to it, they said, was to lose the bill; but it was carried by one hundred and twenty-six against thirty-nine. Further amendments proposed by the conservative peers were agreed to without much discussion, and without any division. The provisions which declared that persons who were at present justices of the peace under borough charters should cease to be so in future, were struck out, as were the clauses which took from the county magistrates, and gave to the new town-councils the power of granting licenses. The ecclesiastical patronage of the town-council was further limited to the members of the church of England; and it was decided that town-clerks should hold their offices during good behaviour. All towns containing six thousand inhabitants instead of twelve thousand were to be divided into wards; and the number of councillors allotted to each was to be fixed by a compound ratio of members and property. Finally, instead of the power of dividing boroughs into wards, and fixing the number of councillors which each ward should return, being left to the king in council, who could only act through commissioners, it was given to the revising barristers; and instead of the determination of the boundaries of the burgal territory being left to the government of the new councils, the peers retained it in the hands of parliament. The bill, as amended, was passed by the house of lords on the 28th of August, and the amendments were brought before the commons on the 31st. Lord John Russell in bringing them before the house, said that the lords, by their mode of proceeding, had caused their own amendments to be viewed in a more unfavourable light than would have belonged to them, if they had merely been the result of calm deliberation. The question, however, for the house was, whether the bill even as altered, might not be moulded into an efficient instrument of good municipal government. He would not recommend the adoption of the amendments by which town-clerks were made irremovable, and by which borough magistrates who were now justices by virtue of their offices, should continue to be so. Neither was he

favourable to the provision inserted by the lords, that a certain number of councillors, under the name of aldermen, should be elected for life; he would rather propose that the same number of members of the town-council as the lords proposed should be elected for life, should be chosen for a period of six years, and that one half should always be made at ‘the expiration of three years. Another amendment, from which he did not intend to dissent altogether, regarded the divisions of towns into wards; he proposed that instead of six thousand inhabitants there should be nine thousand in any borough so divided. As regards the lords’ amendment, which gave the crown the power of nominating justices, he proposed that the house should not agree with the alteration. In most of the other amendments he concurred; but he would not ask the house to accede to the provision which limited the exercise of ecclesiastical patronage to such members of the town-councils as might belong to the church of England, or to that clause which perpetuated the exemption from toll enjoyed by freemen in certain boroughs. The radical section of the commons blamed ministers for conceding too much, and indulged in violent language against the house of lords. Mr. Roebuck asked why the real representatives of the people should bear the insults of the lords, when they had the power to crush them? He was an advocate for democracy, and the sooner they brought the matter to an issue the better. It was necessary to stir up the people upon this subject to something like a revolution. On the part of the conservative members of the house there was, also, a difference of opinion; some thought that the amendments of the lords should be preserved in all their integrity, while others were of opinion that the modifications proposed by ministers should be adopted.

Sir Robert Peel, after entering at length into the merits of the amendments adopted by the lords, in which he generally concurred, proposed an additional and alternative qualification for voters—namely, the being rated in £30 in the larger, and £15 in the smaller boroughs. Ministers acceded to this. But there was a greater difficulty encountered in dealing with the exercise of ecclesiastical patronage. Lord John Russell proposed the rejection of the amendment of the lords on this subject; but Mr. Spring Rice proposed an expedient, which was ultimately adopted, to insert a clause directing the ecclesiastical patronage belonging to boroughs to be sold, and the price to be invested for the purpose of being applied to the public good of the boroughs. The amendments of the commons were taken into consideration by the lords on the 4th of September, and were agreed to with few exceptions. They still retained, however, their original amendments providing that justices should be named by the crown, and that the division into wards should begin with boroughs containing a population of six thousand. On the 7th of September the commons agreed to the bill as it had been returned to them from the house of lords, and in that shape it finally passed.

In the meantime, while the lords were occupied in the consideration of the municipal bill, the commons were occupied with the Irish church bill. Lord Morpeth brought this measure forward on the 26th of June, and in doing so, he stated that, in conformity with the bill of last year, and of that which the late government had contemplated, he proposed to convert the existing composition into an annual rent-charge, payable by the owners of the first estate of inheritance, or such other

equivalent estate as would be defined by the bill, equal to seven-tenths of the amount of composition, or £70 for every £100, charging the cost of collection, to the amount of sixpence in the pound, on the tithe-owners. He thought it advisable to make a distinction not only between existing and future clerical incumbents, but also between clergymen and lay impropriators; and he proposed that the existing clerical incumbent should receive £73 8s. for every £100 of composition, the additional five per cent, being charged upon the perpetuity purchase-fund. As the machinery of the bill, he said, was similar to that of last year, he did not feel called upon to enter into any of the details respecting the real charges payable to the crown, and the investments which would be placed under the management of the commissioners of land revenue. The bill would authorise a revision and revaluation of benefices for the tithe composition; and it was likewise proposed to extend the provisions of Lord Tenterden’s act for the limitation of suits to Ireland, in the same way as it was included in the bill of last year. By the report of the commissioners of public instruction, the members of the established church amounted to 853,064, the presbyterians to 642,356, and other dissenters to 21,808 persons; tire number of Roman Catholics was 6,427,712, in other words, the members of the established church amounted to 853,064, and the number of those who dissented was 7,091,876. The distribution of the members of the established church, also, was as disproportionate as their total amount; in the diocese of Dromore, there were 264 members for every 1000 acres; in the diocese of Glogher 26 to every 1000 acres, and in the diocese of Tuam there were only 8 to every 1000 acres. It was proposed, therefore, to suspend the presentation to every benefice in Ireland where the number of Protestants did not exceed fifty. In the case of a suspended parish, in which there was any number of members of the establishment from one to fifty, the ecclesiastical commissioners would be empowered, subject to the approbation and consent of the lord-lieutenant in council, either to assign the cure of souls in that parish to the care of the neighbouring minister, or else to appoint a separate curate. It would further be enacted, that, in all parishes where there now existed a church and a resident officiating minister, a separate curate should be appointed. When the cure of souls was committed to a neighbouring minister, the amount of stipend to be given was not to be less than £10, or more than £50 per annum; and where a separate curate was appointed, the salary was not to exceed £75 per annum, with permission to live in the glebe-house, if he undertook to keep it in repair. In every parish where the cure of souls was committed to a neighbouring minister, or a separate curate, provision was to be made for the erection of suitable places of worship, fit to accommodate the probable number of the different congregations. These places of worship were to be built at a cost not exceeding £100, or rented at a cost not exceeding £15 per annum. In making all these provisions the archbishop of the province and the bishops of the diocesses were to be associated with the ecclesiastical commissioners. With respect to other parishes, if it should appear, after deducting thirty per cent, from the existing tithe-composition and the payment of that tax on ecclesiastical benefices, that the income of any parish should exceed £300 per annum, the commissioners would be required to report the circumstance on the voidance of the benefice to the lord-lieutenant, who would be empowered to make any reduction he might deem proper. The incomes, however, were in no case to be reduced below £300 per annum.

In cases of livings in the gift of the crown and the bishops, he thought that it would be acknowledged there should be no delay in carrying these provisions into effect; but power would be given to indemnify the owners of lay advowsons, and to charge that indemnification on the fund which would be created from the various sources which he had mentioned, and which it was proposed to call “the reserved fund;” a fund which would be applicable to pay the salaries of the neighbouring ministers or separate curates—to pay all charges which might accrue on the suspended parishes, and to pay for the erection of places of public worship. These purposes having been satisfied, the surplus fund accruing from year to year was to be applied by the commissioners of national education in Ireland to the religious and moral instruction of all classes of the people, without reference to creeds or sects. The total number of parishes, he continued, that would come under the operation of the bill, would be eight hundred and sixty. He had computed the salaries of the curates at £65 each, and after the existing interests were provided for, there would accrue to the reserved fund, 47,898, to which there was to be added, on account of indemnified patronage, £10,178, making the whole amount £58,076. Lord Morpeth added, that in the report of the committee on public instruction, it was stated that the Protestants of the church of England were on the increase. Government was not inattentive to this; and it was proposed that where it should appear to the ecclesiastical commissioners that the number of the members of the established church in any of the suspended parishes had increased to such a degree as to make the provisions of the bill inadequate to the religious wants of the place, they would be required to report the circumstance to the lord-lieutenant, and to submit a proposition to meet the exigency. If the lord-lieutenant approved of it, the report and the proposition were to be laid on the tables of both houses of parliament; and the ecclesiastical commissioners, after the expiration of six months, would be empowered to carry the proposition into effect, if parliament should not otherwise direct.

The bill was brought in and read a first time. It contained two distinct sets of provisions—some relating solely to the mode of collecting tithe, and others which established a new distribution of the church funds, so as to create a surplus to be applied to other purposes. Sir Robert Peel gave notice on the 7th of July, that, on the motion for committing the bill, he would move an instruction to the committee to divide it into two bills, that he might have an opportunity of rejecting altogether those parts of the bill which suppressed the Protestant churches of eight hundred and sixty parishes, appropriating their revenues to purposes not immediately in connection with the interests of the established church, and of supporting those provisions in which he could concur. The bill was read a second time _pro forma_ on the 13th of July, and the motion to commit it was made on the 21st. Sir Robert Peel moved the instruction of which he had given notice. Mr. Spring Rice answered Sir Robert Peel. The debate was continued by adjournment on the 22nd and 23rd of July, the leading speakers in support of the motion being Sirs R. H. Inglis and J. Graham, Lord Stanley, and Messrs. Lefroy and Jackson; while the ministerial side of the question was maintained by Lords Howick, Morpeth, and J. Russell, and Messrs. Hume, Shiel, and O’Connell. On a division ministers had a majority of three hundred and nineteen against two hundred and eighty-two, a majority which secured the success of the bill

in the commons. It passed, in fact, without any further opposition, the minority declining to discuss details which, in their opinion, could not be amended except by omitting them. Ministers, however, seem to have been convinced that Sir Robert Peel was correct in stating that they would have no surplus, for they introduced a clause providing that the consolidated fund should immediately begin to make an annual payment of £50,000, for the purposes of general education in Ireland, on the faith of the anticipated surplus, from which it was to be repaid.

The bill passed the commons on the 12th of August, and the second reading took place in the house of lords on the 20th. No opposition was made to the second reading; but it was intimated that the opposition intended in committee to strike out of the bill all the clauses containing the new scheme of appropriation, and the machinery by which it was to be worked. The house went into committee on the 24th of August, and agreed to all the clauses forming the first part of the measure, with the exception of the provisions for opening compositions and for taking a new average, both of which were expunged. When the house arrived at the first of the clauses which formed the new system of appropriation, the Earl of Haddington moved that they should be omitted. The bill was defended by the Marquises of Lansdowne, Glarincarde, and Conyngham, and Lords Plunkett, Brougham, and Glenelg. Lord Melbourne announced that if the motion were carried he would abandon the bill; he would not be a party to sending it back to the house of commons in a shape, both as to form and principle, which would compel that house to reject it entirely. On a division, the motion to omit all the appropriation clauses was carried by one hundred and thirty-eight against forty-one. Ministers now abandoned the bill, being in such a position, by the Catholic majority in the commons, as rendered honourable retreat impossible. On the 29th of August the chancellor of the exchequer brought in a bill empowering the government, on application from the clergy, and on satisfactory proof being given that the parties were not in a condition to pay, to suspend the claim for the instalment which was due from the Irish clergy to the 5th of April, 1846. This bill passed both houses without opposition.

AGRICULTURAL DISTRESS.

{WILLIAM IV. 1835—1836}

On the 25th of May the Marquis of Chandos again brought forward the subject of agricultural distress. The object of his present motion was to give relief by diminishing the pressure of the local burdens to which land was subject. The farmer, he said, severely felt the heavy pressure of the maintenance of prisoners in gaol, and building and repairing county bridges. He was likewise compelled to perform statute labour on the highway. He thought all this should be thrown on the general taxation of the country. He thought also that the duty on windows in farm-houses, and on horses used in husbandry, should be taken off entirely. Lord Althorp had made some reductions; but the benefit would be increased by total relief from these burdens. He moved:—“That an humble address be presented to his majesty, expressing the deep regret this house feels at the continuing distressed state of the agricultural interest of this country, to which the attention of parliament was called by his majesty’s most

gracious speeches from the throne at the commencement of the preceding and of the present session of parliament; and humbly to represent the anxious desire of this house that the attention of his majesty's government may be directed without delay to this subject, with a view to the immediate removal of some portion of those burdens to which the land is subject through the pressure of general and local taxation." The motion was seconded by the Earl of Darlington. Government opposed it on the ground that what was proposed would give no relief, and that the suggestions at which it pointed required deliberate consideration. The home-secretary moved an amendment to the effect, that "the house would direct its early attention to the recommendations of a committee which sat last session of parliament upon the subject of county-rates, with a view to the utmost practical alleviation of those burdens to which the land was subject through the pressure of local taxation." Sir Robert Peel supported the amendment, because the resolution pledged the house to objects which must excite expectations on the part of the agriculturists which could not, consistently with public credit, be fulfilled. The Marquis of Chandos, however, pressed his motion to a division, which was lost by a majority of two hundred and eleven against one hundred and fifty. In the course of the debate on this subject, some members urged that all the evil had arisen from the resumption of cash payments, and that it could only be cured by some alteration of the currency. On the 1st of June, Mr. Cayley moved the appointment of "a select committee, to inquire if there be not effectual means within the reach of parliament to afford substantial relief to the agriculture of the United Kingdom, and especially to recommend to the attention of such committee the subject of a silver standard, or conjoined standard of silver and gold." Sir Robert Peel and Mr. P. Thompson opposed the motion; and Sir C. Burrell and Messrs. Wodehouse, Bennett, and O'Connell supported it; but on a division it was lost by a majority of two hundred and sixteen against one hundred and twenty-six.

DISCUSSION REGARDING ORANGE SOCIETIES IN IRELAND.

During this session a series of parliamentary attacks were directed against the Orange lodges. On the 6th of March, Mr. Shiel moved for the production of addresses presented to the king from certain Orange societies, and the answers which had been returned to them. These papers were granted; but this did not prevent a discussion on the subject, which was distinguished chiefly by the abuse which the Irish opposition poured upon the Orangemen. The subject was again brought forward on the 23rd of March by Mr. Finn, who moved that "a select committee be appointed to inquire into the nature, character, extent, and tendency of Orange lodges, associations, or societies in Ireland, and to report their opinion thereon to the house." Mr. Maxwell, himself an Orangeman, seconded this motion; he courted the fullest inquiry, with a hope that the committee would be constituted in the most impartial manner. The committee was appointed, and was still proceeding with its inquiries when, on the 4th of August, Mr. Hume brought part of them before the house. He had seen in newspapers portions of the evidence, real or fictitious, taken before the committee, by which it appeared that Orange lodges had been introduced into the army, and existed in thirty or forty regiments of the line. These institutions were in direct violation of general orders issued by the commander-in-chief in 1828 and 1829, which strongly reprobated the practice of holding Orange lodges in regiments. The

lodges, he said, had been formed under warrants granted for that purpose by the Duke of Cumberland, who was the grand-master of the Orange body, and a field-marshal. It was true the wan-ants had not the name of his royal highness upon them; but he found it difficult to imagine that he was ignorant of the existence of Orange lodges in the army. Mr. Hume moved a string of eleven resolutions upon this subject. Mr. Patten, the chairman of the committee to which the house had referred the inquiry, complained of the manner in which the subject had been introduced; it was a farce, he said, to appoint a committee to inquire into a subject, if, when a portion of the evidence was printed, and the inquiry was still pending, a member was to be permitted to bring the subject forward in such a manner as must necessarily prejudge the whole question, and at the same time attack the character of individuals. He moved, as an amendment, “That a humble address be presented to his majesty, praying that he will be graciously pleased to direct his royal attention to the nature and extent of the Orange lodges in the army, in contravention of the general orders issued by the commander-in-chief in 1822 and 1829, which strongly prohibit the holding of Orange lodges in regiments: and that his majesty will be graciously pleased to direct an investigation to take place with respect to other secret societies in the army.” In the debate which followed, it was generally admitted that the establishment of lodges in the army was pregnant with mischief and indefensible; but it was maintained, that any use which had been made in this way of warrants for creating lodges had taken place without the knowledge and authority of the grand-master, or the other superior officers of the association. From statements made by the members for Sligo and Cavan, it appeared that non-commissioned officers received warrants signed by those gentlemen and by the Duke of Cumberland, none of whom knew a word about the matter. Colonel Perceval, the member for Sligo, who held the office of grand-treasurer of the grand-lodge, stated that ever since he had held that office it had been his duty to sign warrants in blank, after they had been signed by the grand-secretary, the member for Cavan. In this way, he said, numbers had been sent in parcels to his royal highness, the Duke of Cumberland, who, on seeing his signature and that of the grand-secretary, had appended his own, with the understanding that the warrants were to be applied to purposes conformable to the rules of the association. Lord John Russell condemned this practice, and observed that he could not conceive that the Duke of Cumberland would hesitate, when convinced of the use which had been made of the blank warrants bearing Iris signature, to retire from the association; and he could not conceive otherwise than that he would feel it inconsistent with his duty as a prince of the blood, and filling a high rank in the army, to continue any longer in the situation which in this society he now filled. Lord John Russell suggested that the resolution should not be adopted without giving notice to his royal highness of the debates which had taken place on his conduct as grand-master. This suggestion was adopted; and the discussion was adjourned until the 11th of August. In the interval the Duke of Cumberland addressed a letter to the chairman, in which he denied having issued, or countenanced the issuing, of warrants to soldiers, and stated, that when such a proposal had been made to him he had declined it, on the ground that it was contrary to the orders and regulations of the Horse-guards, and that if any warrants had been so used, they would be annulled. His royal highness, however, did not intimate his

intention of abandoning the Orange institutions. When the discussion was resumed on the 11th of August, Mr. Hume withdrew the 5th and 6th resolutions, referring to the general interference of Orange societies in political matters, thus confining the question to their existence in the army. The only disputed matter, indeed, was the last resolution, which stated that the Duke of Cumberland “had signed warrants in his capacity of grand-master of the grand Orange lodge of Ireland, which warrants have been issued for constituting Orange lodges in the army.” Lord John Russell said, that he did not think the letter of the Duke of Cumberland to the chairman of the committee was all that was required of his royal highness; but he did not wish to agree to the resolution stating that his royal highness, in contravention of an order issued from the Horse-guards, had signed warrants, which were issued for constituting Orange lodges in the army. He wished such a clause to be omitted; and he thought the resolution would then satisfy both sides of the house. The resolution, thus modified, was carried by one hundred and eighty-three to forty; and the other resolutions were agreed to without a division.

THE VOTE BY BALLOT, ETC.

During this session, as usual after a general election, the house had to deal with a considerable number of election petitions. Among others petitions were presented from Great Yarmouth, complaining that bribery had been practised at the election for that borough; these petitions were referred to a committee. The fact of these petitions being presented, encouraged Mr. Grote to make his annual motion in favour of vote by ballot. On the 2nd of June he proposed this resolution:—“That it is the opinion of this house that the votes at elections for members of parliament should be taken by way of secret ballot.” This motion, which was supported on the same grounds which had been urged to the house on former occasions, was seconded by Sir William Molesworth. Mr. Gisborne met it by moving the previous question. Lords Howick, Stanley, and Russell, and Sir Robert Peel opposed the motion. Sir Robert Peel expressed his surprise that government, in opposing the motion, should allow it to be set aside by the previous question, instead of meeting it with a direct negative; and Lord John Russell explained that the amendment of the previous question had been moved without any arrangement with him; if it were withdrawn, he was ready to meet it with a direct negative. After some demur, Mr. Gisborne withdrew his amendment; and the motion was directly negatived by three hundred and seventeen votes against one hundred and forty-four.

THE BUDGET.

The budget was brought forward by the chancellor of the exchequer on the 14th of August. He calculated the income of the country for the ensuing year, ending in July, 1836, at £45,500,000, and the expenditure at £44,715,000, leaving a surplus of £835,000. He regretted, however, to add that this surplus, calculated on the ordinary expenditure of the country, would be found to crumble away before the further statement which it was his duty to make. The interest due to the slave-owners, he said, was to be provided for from the 1st of August, 1834. The maximum of the charge to which the country might be liable from that time was £730,000; and supposing that the whole balance of the loan were to be paid up within three months on discount,

and that the permanent interest on the whole amount of the stock were at once incurred, this would subject us to a further charge of £250.935, making the total charge for the present year, on account of the West Indian loan, nearly £1000. Against this, as a set off, there was a surplus of £885,000; but the probability was that the amount instead of being £1,000,000 would not exceed a sum between £600,000 and £700,000, so that the actual surplus which might be expected would be from £150,000 to £200,000. The chancellor of the exchequer said, in continuation, that though the country was in a prosperous condition, he could not under existing circumstances be expected to make any great reduction in taxation. There were two or three taxes, however, which he thought might be reduced, and he proposed to reduce the duty on licences, which would cause a loss to the revenue of about £40,000; and on flint-glass, on which there might be a loss of about £70,000. He also proposed to relieve Ireland from the stamp-duty on awards, the loss on which would not exceed £500 a year. The resolutions of the chancellor of the exchequer were agreed to without a division.

DISCUSSIONS REGARDING CANADA.

During this session, the affairs of Lower Canada were brought before parliament. That colony was still distracted by dissensions; the French, or democratic party, which had gained a majority in the house of assembly, still insisting on all their pretensions, and declaring their determination to control both the legislative council and the governor, who represented the mother country. Their cause was advocated in the British parliament by Mr. Roebuck, who, on the 9th of March presented a petition from certain members of the legislative bodies of the province, setting forth their alleged grievances. In supporting his motion, Mr. Roebuck held out threats, that, if the demands urged in the petition were not granted, there would be a rebellion. Lower Canada, he said, would inevitably follow the example of the United States. Mr. Spring Rice and Lord Stanley deprecated the use of such language as Mr. Roebuck had adopted; language like this made matters only worse. So far back as 1828, a committee had been appointed to examine into the complaints of the Canadians. Another committee was subsequently appointed, which committee had come to this general resolution:—“That the most earnest desire has existed on the part of the home government to carry into effect the suggestions of the committee of 1823; that the endeavours of the government to the ends recommended have been unremitting, and guided by the desire, in all cases, to promote the interests of the colonies; and that in several important particulars, their endeavours had been entirely successful.” Mr. Roebuck himself was a member of this committee, and was, therefore, a party to this report; but in the face of it he now blamed the government. On the other hand, petitions were presented to the commons on the 16th of March, and to the lords on the 24th of March, deprecating the violence of the democratic party in Canada. In presenting the petition to the house of lords, the Earl of Aberdeen stated that it was signed by 11,000 persons, inhabitants of Montreal and its vicinity, who represented a numerous and respectable body in that country of not less than 100,000 persons.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 10th of September. In his closing speech his majesty alluded to the civil contest still raging in the northern provinces of Spain; and intimated that he had concluded fresh conventions with Denmark, Sardinia, and Sweden, calculated to prevent the traffic in African slaves.

STATE OF THE CONTINENT.

During this year Portugal exhibited a more peaceful and prosperous picture than it had done for some time, although it presented likewise the contests and intrigues of political parties for power and place. The Cortes met on the 2nd of January, and continued in deliberation till the 22nd of April. The principal objects of their attention were the financial state of the country, and the claims for indemnification which had been put forward by those who had suffered under the domination of Don Miguel, or who had sustained loss in consequence of the measures which had now terminated in the establishment of the constitutional system. The bill, which received the sanction of the Cortes, provided that where injuries had been directly caused by individuals, or at the instigation of any individual, such persons were liable for the whole amount, and should be called upon to make it good. On the other hand, all unavoidable damages done in order to defend or attack towns, as well as injuries done by the usurper’s government, were to be made good by the nation at large. In the course of this year, Prince Augustus of Leuchtenberg, the husband of the young queen, arrived in Portugal; but after he had been there little more than a month, he died from exposure to cold in taking exercise. The chambers justly considered the constitutional system to be greatly dependent upon a direct succession to the constitutional throne, and they, therefore, presented addresses to her majesty, praying her to enter into a new marriage as soon as possible. She replied that she was a queen and a Portuguese, and the chamber might be assured that she would make every sacrifice for the public interest which was not inconsistent with her dignity. Before the end of the year, indeed, the queen’s second marriage was arranged, the bridegroom being the nephew of the reigning Duke of Saxe Coburg, and of the King of the Belgians. In Spain all was confusion and revolt. The war between Don Carlos and the queen, or rather the Spanish nation, was still continued, and the year closed while they were yet in arms. Towards the latter part of the year an army of 6000 men crossed the Spanish frontier to assist in the struggle, a convention having been signed between Spain and Portugal to that end: these troops, however, bore no part in the events of the year. In France an attempt was made to assassinate the king, by means of what has been denominated “the infernal machine.” On the second day of the great political festival in honour of the three days of July, 1830, as his majesty was riding along the Boulevard du Temple, surrounded by the crowded citizens, and attended by his civil and military servants, an explosion like a discharge of musketry took place from the window of an adjoining house. The effect was terrific. Several officer’s of rank were killed on the spot, as well as some grenadiers of the national guard of Paris, besides mere lookers on, while many were severely wounded. The horse on which the king rode was wounded, but he himself escaped unhurt. The assassin was captured, and he turned out to be a Corsican, of the name of Fieschi, who had been a noted vagabond for many years. The questions in dispute between Belgium and Holland remained in the same unsettled state in which the preceding year had left

them. In Belgium the formation of Sir Robert Peel’s ministry excited alarm, lest the policy of the great powers should now be less favourable to that country, and in particular lest Britain should refuse to interfere to compel the Germanic confederation to concede to the demands of the Belgians on the duchy of Luxembourg. Communications from the English ministry, however, allayed these fears; and finally they were relieved from them altogether by the return of the Whigs to office. In the autumn of this year the Emperor of Russia met the King of Prussia at Kalisah, and the Emperor of Austria at Toplitz; but neither of these meetings seemed to have been brought about for the purposes of political deliberation. In Greece, on the 10th of June, King Otho having come of age, assumed the reins of government, and the regency deposited its functions in his hands. The changes which took place gave great umbrage to the Greeks, who were already displeased at seeing so many offices in the hands of foreigners. Their displeasure was increased at finding there was no intention of sending away the Bavarian military. Turkey, during the present year, remained unchanged in her relations to the great European powers. On her western frontier she was occupied in putting down an insurrection which had broken out in Albania. The Porte was likewise under the necessity of using its arms against some tribes which had rebelled in Kurdistan. These disturbances saved the Pacha of Egypt from any attack by the Porte in his new Syrian acquisitions. On his part he showed no disposition to proceed further against his sovereign; he occupying himself with completing the subjugation of Syria, and attempting to extend his conquests in Arabia, which attempt was unsuccessful.

CHAPTER XLVI.

{WILLIAM IV. 1836—1837}

Meeting of Parliament..... The Question of Orange Lodges..... Bill to Reform the Irish Municipal Corporations..... Irish Tithe Bill..... Commutation of Tithes in England..... Bill for Registration of Births, Deaths, and Marriages, &c. Bill to alter the Revenues and Territory of the different Sees..... Bill to abolish the secular Jurisdiction of Bishops, &c. Bill to amend the English Municipal Corporation Act..... Bill to Allow Felons Counsel to Address the Jury, &c. Abolition of Imprisonment for Debt, &c. Election Committees..... New Houses of Parliament..... Motion for the Reduction of Taxation on behalf of the Agriculturists..... The Budget, &c. Discussions on the Colonies and our Foreign Relations..... Prorogation of Parliament..... The Affairs of Ireland..... State of the Continent

MEETING OF PARLIAMENT.

{A.D. 1836}

Parliament reassembled on the 14th of February. In his speech his majesty alluded to disputes between France and the United States, which he was endeavouring to allay; and to the civil contests in the northern province of Spain, for the termination of which he had also adopted measures which he hoped would succeed. His majesty also

alluded to a treaty which he had concluded with the Queen of Spain for the suppression of the slave-trade. He expressed his regret that the agricultural interests in England still suffered, and recommended parliament to institute inquiry, with the view of ascertaining whether there were any measures which could be adopted for its alleviation. He then referred to the various measures affecting the united church of England and Ireland, and the state of the poor of Ireland. In the lords the address was moved by the Duke of Leinster, and seconded by the Earl of Burlington. The only part of it which gave rise to a discussion was a passage which repeated the hope, expressed in the speech from the throne, that the Irish municipal corporations would be subjected to a process of change, “founded upon the same principles as those of the acts which had already passed for England and Scotland.” These words raised a question of importance between the contending parties, for, as the municipal acts of England and Scotland established a £5 franchise in one country, and a £10 franchise in the other, to establish in Ireland a system of municipal government founded on a similar basis, was to transfer to the Papists that monopoly of municipal authority hitherto enjoyed by the Protestants. The Duke of Wellington objected to the house being required, in voting the address, to pledge itself to the principles of any measure before the measure itself had come regularly before the house. He moved to substitute the following amendment:—“We shall proceed without delay to the consideration of any defects or evils that may have been shown to exist in these institutions, for the purpose of applying such remedies as may obviate all just causes of complaint, and insure the impartial administration of justice.” Several peers supported this amendment, and the defeat of government was inevitable; but, on seeing this, the Marquis of Lansdowne intimated that ministers conceded the point as one of no particular moment, and the address was then agreed to. In the commons, however, government was stronger, and, therefore, did not exhibit the same spirit of concession. Sir Robert Peel moved the same amendment which the Duke of Wellington had moved in the lords. Lord John Russell defended the clause in the address. Lord Stanley supported the amendment. Lords Howick and Palmerston, and Mr. O’Connell spoke in favour of the address. Mr. O’Connell gave notice, that if Ireland got less than had been granted to England and Scotland, the cry of repeal would immediately be resumed. With an air of self-importance he cautioned the house to beware; if they excited that cry again, it would be at their peril. On a division the address was carried by a majority of two hundred and eighty-four against two hundred and forty-three.

THE QUESTION OF ORANGE LODGES.

On the reassembling of parliament, Mr. O’Connell and his friends lost no time in returning to the attack made last session on Orange lodges. On the 21st of February Mr. Finn moved this resolution:—“That Orangeism has been productive of the most baneful effects upon the character and administration of public justice in Ireland; that its presence in the constabulary and peace preservation force and yeomanry corps of that country has led individual members, as well as large bodies of the above description of force, to the gross neglect and violation of their public duty, and to open, daring, and lawless resistance to the authority of the magistracy and of the executive government, on various occasions; that the systematic and surreptitious

introduction of Orangeism into every branch of the military service, in almost every part of the empire, in direct violation of orders issued in 1822 and 1829 by the commander-in-chief of his majesty's forces, and the absolute power and control vested by its governing body, the grand Orange lodge of England and Ireland, in his royal highness the Duke of Cumberland, together with the rank, station, influence, and numbers of that formidable and secret conspiracy, are well calculated to excite serious apprehensions in all his majesty's loyal subjects, and imperatively call for the most energetic expression on the part of the representatives of the people of this empire, to secure the safe, peaceable, legal, and rightful succession to the throne of these realms." In the speech with which Mr. Finn introduced this resolution, he treated the Orange system as one of deadly hostility to the great mass of the population, and asserted that it was established by the report of the secret committee, that the Orange society set all law, justice, and authority at defiance. Mr. E. Buller, who seconded the resolution, reiterated these sentiments. As notice had been given for the 23rd of February by Colonel Verner, to extend the inquiry to other existing societies in Ireland, and as Mr. Hume was to bring forward certain resolutions directed to the same object on that day, the house adjourned the further consideration of the motion to that day. On the 23rd of February Mr. Hume entered at considerable length into the evidence which had been given before the select committee of the previous session, which included documents laid before it by the office-bearers of the Orange association and private correspondence. Most of the evidence, it would appear, had indeed been derived from the officers of the institution themselves, which was by no means a proof of guilt. Nevertheless, Mr. Hume contrived to make out a case against the association from such evidence; and when he had laid it before the house, he moved this condemnatory resolution:—"That this house, taking into consideration the evidence given before the select committee appointed to inquire into the nature, extent, character, and tendency of Orange lodges, associations, or societies in Ireland, and of Orange institutions in Great Britain and the colonies; and seeing that the existence of Orange societies is highly detrimental to the peace of the community, by exciting discord among the several classes of his majesty's subjects; and seeing that it is highly injurious to the due administration of justice that any judge, sheriff, magistrate, juryman, or any other person employed in maintaining the peace of the country, should be bound by any secret obligation to, or be in any combination with, any association unknown to the laws, and founded on principles of religious exclusion, that even if justice were impartially administered under such circumstances, which is in itself impossible, yet any connection with such societies would create suspicions and jealousies detrimental to the peace and good government of this country: that Orange societies, and all other political societies which have secret forms of initiation and secret signs, and are bound together by any religious ceremonies, are particularly deserving of the severest reprobation of the house, and should no longer be permitted to continue;—an humble address be presented to his majesty, that his majesty will be graciously pleased to direct measures to be taken to remove from the public service, at home and abroad, every judge, privy-councillor, lord-lieutenant, _custos rotulorum_, magistrate, militia officer, inspector, chief-constable of the constabulary and peace preservation force, every officer of police in Ireland, and every functionary

employed in the administration of justice, and in maintaining the peace of the country, who shall attend the meeting of any Orange lodge, of any riband lodge, or of any other political club, institution, or association, whenever or wherever assembled, having secret forms of initiation, and being bound together by any religious ceremony, and with secret signs, and passwords, for recognition of members of such bodies, and who shall not withdraw from such societies or associations, on or before the expiration of one month after the publication of any proclamation which his majesty may be pleased to direct to be issued hereupon, forbidding their continuing to be members of such Orange lodges, societies, and associations." This motion was supported by Sir William Molesworth, who endeavoured to prove that the societies against which it was directed had already been declared illegal; a position which should have simply led to an address to the crown to cause the statutes to be enforced. Lord John Russell agreed that it was desirable to suppress these institutions, and all similar societies; but he intimated that government could not approve of some of the modes of doing so which were now proposed. He thought that the effect of these societies, however good their motives might be, were injurious: by their existence, whether founded upon religion or not, a distinction was made between them and some other part of the king's subjects, who formed! themselves into counter societies, with other names and distinctions; and thus a perpetual and ever-recurring source of disunion, disaffection, quarrels, and bloodshed was created. At the same time, though it might be clear that it was desirable to get rid of this and all other societies of the like nature, whether known as Orange or Riband societies, or by any other name, it was by no means so clear how that object was to be attained. The report of last year by the committee on Orange lodges, stated that the existing statutes, if put in execution, would be adequate for their suppression, as well as that of all other societies of the like nature. He had discussed this question with the attorney and solicitor-general; and they declared that, without looking most carefully into the subject, they could not venture absolutely to pronounce an opinion as to their legality or illegality. The government, therefore, were of opinion that if the several penal statutes already in force did not contain clear enactments against this offence, it was not proper for them to seek some meaning in the law, which would be construed by others into a straining of the provisions of the law, and make it doubtful whether they had not forced the meaning of an enactment, in order to procure a condemnation of the societies in question. Even if they could have discovered that, although the Orange societies had contrived to evade the law in some points, they had yet contravened it in others, and could have obtained a conviction against them, he thought it would be mischievous to the general liberty of the subject to attempt giving a strained interpretation. In 1822, it was held by Lord Gifford and other eminent lawyers, that Orange societies were not held to come within the meaning of the law; and, therefore, if they came at present within the terms of any act, it must be in consequence of some recent change in their constitution. He was, therefore, averse to putting the question on such narrow grounds. Government also had no thought of proposing any new law against them; for, although by such a proceeding the secret signs and distinctive marks presently in use might be made to disappear, they might be succeeded by some other evasion of the law. He thought, also, that a general address to the crown affecting all judges, without entering into the case of each

individual, would be scarcely consistent with the independence of the bench. As to removing every magistrate and person in office belonging to the Orange societies—if they should be removed at once by an address of this kind—without any previous declaration either from the house of commons or the crown, they would conceive such a stigma affixed to them, that they would still remain banded together from a spirit of resentment, and would regard the measure only as an unfair and biassed transaction. His colleagues and himself thought that it would be better to adopt this course:—that where a person applied for any official situation of trust and responsibility under the crown, inquiry should be made whether he were an Orangeman, and if he meant to continue in that society, that his appointment should not take place. It was not only convenient to adopt measures of discouragement in respect to those societies, but he was prepared to add to these discouragements that of an address to his majesty by this house. In conclusion, his lordship moved:—"That an humble address be presented to his majesty, praying that his majesty would be graciously pleased to take such measures as to his majesty seemed advisable for the effectual discouragement of Orange lodges, and generally all political societies excluding persons of different faith, using signs and symbols, and acting by associated branches." The Orange societies of Ireland were defended by Mr. Maxwell. They refused, he said, to be tried by the report of the committee, for its proceedings had been partial and biassed, and the investigation had not been complete. Lord Stanley urged the omission of the specific mention of Orange lodges in the address, inasmuch as they were only part of the secret societies which existed in Ireland. Lord John Russell, however, insisted on retaining the words, denying that they implied any stigma; there was no opinion pronounced as to the legality of these societies, but merely that they, as well as other secret societies, should meet the disapprobation of the crown. His motion was agreed to without a division; and the address having been presented to the king, his majesty, on the 25th of February, returned this answer:—"I willingly assent to the prayer of the address of my faithful commons, that I Would be pleased to take such measures as may seem to me advisable for the effectual discouragement of Orange lodges, and generally of all political societies, excluding persons of a different religious faith, using secret signs and symbols, and acting by means of associated branches. It is my firm intention to discourage all such societies in my dominions, and I rely with confidence on the fidelity of my loyal subjects to support me in this determination." The home-secretary transmitted a copy of the address and the king's answer to the Duke of Cumberland, as the official head of the Orange societies, and his royal highness replied, that before receiving the communication, he had recommended the dissolution of the Orange institutions in Ireland. The Orange societies immediately acquiesced in this recommendation, and from that time they were professedly dissolved; but it was soon discovered that the law and will of king and commons were only evaded, and that Orange lodges were as numerous as ever. The conduct of O'Connell and his Irish adherents in this discussion was as faithless as in their professions of the voluntary principle. They knew well that ribandism was far more extensively prevalent in Ireland than orangeism, and that, whatever might be the character of the latter, the objects and spirit of the former were utterly atrocious. The riband-men were banded for purposes subversive of all law and order—of all liberty, civil and religious—and

they were utterly reckless as to the means by which they promoted their ends. Assassination and incendiarism were the common instruments of this diabolical association of fanaticism and bigotry. Yet O'Connell and his confederates glossed over the evils of this system, or denied their existence, while he and they pretended zeal for public justice and liberty in the destruction of the Orange confederation. The true policy would have been the suppression of all secret political societies.

BILL TO REFORM THE IRISH MUNICIPAL CORPORATIONS.

A commission had been appointed to inquire into the state of the corporations in Ireland, and the royal speech had intimated that the subject would be brought forward during this session. Acting upon this report and intimation, Mr. O'Loghlen, attorney-general for Ireland, introduced a bill for the better regulation of Irish municipal corporations. In doing so he entered into many details to show the limited and exclusive nature of the corporations, and the abuses to which this had led. He proposed to remedy the abuses which had crept into the system, by a bill similar to those already adopted for England and Scotland. In regard to the seven largest towns—Dublin, Cork, Limerick, Kilkenny, Belfast, Galway, and Waterford—it was proposed that every inhabitant possessing the £10 franchise under the provisions of the Irish reform act, should be entitled to vote in the election of municipal offices. As regarded all boroughs containing a population of less than 20,000 inhabitants, it was farther proposed that every occupier of a £5 house should be entitled to vote in the election of municipal officers. With regard to councillors, the qualification in the seven large boroughs was to consist in having property worth £1000, and in the other towns, property worth £5000. In the seven large boroughs, and likewise in Londonderry, Sligo, Dungannon, and Drogheda, where the population exceeded 15,000, there would be a division of wards. Aldermen, likewise, were to be elected by the inhabitants, and were to consist of the councillors who had the greatest number of votes at the election. One half of the councillors and aldermen were to retire every three years; and in the seven large boroughs, the council was to have the power of electing sheriffs, subject to the approval of the lord-lieutenant. The bill further declared that a commission of the peace might be granted in any large borough if the lord-lieutenant thought fit, and in other towns the mayor for the time being would be the magistrate of the borough. It was likewise intended to preserve to the inhabitants of the Irish corporate towns the right of proceeding summarily by petition in cases of misapplication of public funds, instead of leaving them to the ordinary tedious process of the law, and to retain the courts in the nature of courts of conscience, and the right of their suitors to proceed by attachment. It was further proposed that government should have the power of obliging the council, if either or both the persons first chosen were not approved of, to proceed to the election of some other persons, and not, as in the case of Dublin, re-elect the same person. All the other provisions were similar to those comprised in the English bill. The bill was allowed to be read a second time on the 29th of February without opposition; but Sir Robert Peel took occasion to state the views taken of this particular mode of reforming Irish corporations by himself and the party to which he adhered. He avowed that it was not possible to defend the corporation system which existed in Ireland; but he contended that the bill would not be a remedy for the evils. Although the views of the

Conservatives, as explained by Sir Robert Peel, did not allow them to oppose the second reading of the bill, yet when the motion was made that the house should go into committee, Lord Francis Egerton moved that the committee should be empowered to make provision for the abolition of corporations in Ireland, and for such arrangements as might be necessary on their abolition, for securing the efficient and impartial administration of justice, and the peace and good government of cities and towns in Ireland. His lordship said, that in substituting abolition for the process of restoration proposed by ministers, he was not withholding from Ireland any of the benefits intended to be conferred on the other parts of the kingdom by their new municipal institutions; and lie argued generally that there was much in the situation of that country, and in the state of its society, which distinguished it from England and other nations, and which might render it, in certain cases, an unfit recipient for institutions not essential in themselves to good government, and only valuable as being machinery for that purpose. His motion was seconded by Mr. Lefroy. The bill was defended by Lords John Russell, Morpeth, and Hawick, Mr. O'Connell, and other members; and was attacked by Lord Stanley, Mr. Sergeant Jackson, and Sirs Henry Hardinge and James Graham. Mr. O'Connell insisted that Ireland must have justice; and she would not have it if she was not treated as England and Scotland had been treated. Lord Stanley said, that he felt some hesitation in receiving Mr. O'Connell as the plenipotentiary of the people of Ireland to treat with the British parliament. Lord John Russell closed the debate on Lord Francis Egerton's motion. On a division the motion was lost by a majority of three hundred and seven against two hundred and forty-three. In the committee none of the provisions of the bill underwent any important alteration, except the allowing of sheriff's in the large boroughs to be chosen by the town-councils. Ministers listened to the objections urged against this, and retained the nomination of these officers in the power of the crown. The bill was finally passed on the 28th of March, after another debate, by a majority of two hundred and sixty to one hundred and ninety-nine.

A harder battle was, however, to be fought in the lords. On the second reading Lord Lyndhurst expressed his willingness to go into committee, but not with the intention of preserving the bill in all its present features. He did not deny that evils existed in the Irish corporations, but he wished to see some scheme adopted which would not only remove those evils, but prevent the recurrence of others of a similar kind. The present bill, however, was a bill to extend the system of exclusion, and to aggravate all the violations to which justice was now exposed. The town-councils would not consist of persons anxious for the preservation of peace and the security of property, but would be filled with men of the anti-church and Catholic party, advocates of the repeal of the union, and of the separation of British and Irish interests. His lordship argued that the five-pound qualification would increase agitation, would aggrandise radical interests. If excitement, he said, prevailed in Ireland at the election of members of parliament, how far more prevalent would be the excitement which would attend the elections of this bill. His lordship looked also, with alarm, at the formidable power which the priesthood would gain by this bill; and the town-councils, he contended, would be confined to a party of inflammatory demagogues: justice itself would be poisoned at its source, and corporate property

devoted to anything but its legitimate purposes. He concluded by sketching a plan similar to that which had been proposed in the commons by Sir Robert Peel, and which he, or some of those with whom he acted, would propose should be inserted in the bill in place of the clauses containing the new corporations. The house went into committee on the 26th of April, when Lord Fitzgerald moved, as had been done in the commons, “That it be an instruction to the committee to make provision for the abolition of such corporations, and for such arrangements as may be necessary on their abolition for securing the efficient and impartial administration of justice, and the peace and good government of cities and towns in Ireland.” The lord-chancellor and Lords Holland and Melbourne spoke against this motion; and Lords Abinger and Lyndhurst supported it.. The motion was carried by a majority of two hundred and three against one hundred and nineteen. The committee proceeded on the 9th of May, and the first clause, repealing “all acts, charters, and customs inconsistent with this act,” was agreed to; and the existing corporations were thus abolished. Lord Lyndhurst moved certain amendments on the second clause, which reserved the rights of freemen; and after some debate these were carried by a majority of one hundred and seven against fifty-three. Another debate and division took place on the 22nd clause, which enacted that the boroughs should have a mayor, and a certain number of councillors and aldermen, as they were arranged in the schedules. This was struck out. And on the third reading of the bill, the Duke of Richmond proposed limiting the bill to seven of the largest towns. This motion, it was said, was not made by any arrangement or communication with the ministry. Government had never intended to preclude itself from inquiring to what towns corporate powers should be extended. What they were most anxious to preserve was, the corporation principle in Ireland. If that were maintained, the Marquis of Lansdowne said, he should not argue that corporations ought to be continued in the small towns: if any difference was to be made, it ought to be in favour of the large towns, because it was there that corporations must be useful if they were good for anything. The motion, however, was negatived; and the bill, having thus been brought into the form which the minority in the lower house had endeavoured to give it, was sent down on the 19th of May to the commons.

In moving that the lords’ amendments should be printed, Lord John Russell stated that, however willing he might be to come to some arrangement in regard to the constitution of the franchise, he would never consent to deprive Ireland of municipal government altogether, thereby stigmatising and degrading its people. The Radicals were very violent, boldly maintaining that there required an “organic change” in the house of lords. The amendments were moved, by Lord John Russell, to be taken into consideration on the 9th of June. The bill, he said, as amended, contained little or nothing of the bill which had been sent up to the lords. Out of one hundred and forty clauses, one hundred and six had been in substance omitted, while eighteen others had been introduced. A bill had been put up for regulating and renewing corporations in Ireland on the same conditions as in England and Scotland; they had received back a bill which abolished them entirely, but which preserved to many of the persons who held office in these bodies all the power and profit of their situations. In order to meet the concurrence of the lords, however, instead of abolishing the whole of the

corporations, it was proposed that the larger towns, originally divided between schedules A and B should be placed in one, and that all the clauses for the government of corporate towns should be restored to the bill, with the view of applying them to these particular towns. These towns would be Dublin, Belfast, Cork, Gal way, Kilkenny, Limerick, Waterford, Clonmel, Drogheda, Londonderry, Sligo, and Carrickfergus. In regard to the other towns, he would not give them corporations; but at the same time he would not leave them subject to the provisions of the lords' bill. He proposed rather, that the provisions of the act of 1828 should be applied immediately to twenty-two of the towns in schedule C, and that so soon as the five-pound householders in these towns had chosen commissioners, the corporate property, and the right of appointing to the necessary offices should vest in the commissioners. There would be commissioners elected by the inhabitants, instead of being appointed by the lord-lieutenant. In regard to the remaining boroughs of schedule C, as they possessed but little property, he would neither subject them to the expense of a corporation, nor compel them to elect commissioners under the act of 1828; but would leave it to them to have recourse to the latter, if they thought fit. The lords had made other alterations in other clauses of the bill, regarding the granting of quarter-sessions, &c.; but these alterations did not impair the spirit of the original bill, and therefore he would not quarrel with them. The difference which still remained between them was one of principle—should there be municipal governments or not? He thought that municipal government, placed on a popular basis, and under popular control, was excellent and useful in itself; and that in Ireland it would tend to public tranquillity, by assuaging jealousies, and removing causes of discontent. His lordship concluded by moving the rejection of the amendment of the lords on the fourth clause, which implied the continuance of corporations, and which the peers had therefore expunged. This motion led to another debate of two days' duration, in which all the topics previously discussed were again brought forward; superadded to which were many reflections on the house of lords, and on Lord Lyndhurst in particular. On a division, the motion to reject the amendment on the lords was carried by three hundred and twenty-four against one hundred and twenty-eight; and on the 13th and 14th of June, the bill was brought back to the shape proposed by ministers in so far as regarded corporations being limited to the twelve towns mentioned by Lord John Russell. Subsequently, a committee was appointed to draw up the reasons of the house for not agreeing to the amendment of the peers; and the amended bill was delivered to the lords at a conference on the 17th of June. On the 27th, Lord Melbourne moved that the amendments of the commons should be agreed to, which motion was met by a direct negative by Lord Lyndhurst. The motion was lost by a majority of two hundred and twenty against one hundred and twenty-one; and the bill was then sent back to the commons, with the reasons of the lords for adhering to their own amendments. Finally, on the 30th of June, Lord John Russell moved, and the house agreed, that the amendment should be taken into consideration that day three months, and thus the bill was dropped.

THE IRISH TITHE-BILL.

Another great party measure was the Irish tithe-bill. Ministers reintroduced this measure on the 25th of April. It was brought forward by Lord Morpeth, the Irish secretary, who moved this resolution:—"That it is expedient to commute the composition of tithes in Ireland into a rent-charge, payable by the owners of the estate, and to make further provisions for the better regulation of ecclesiastical dues and revenues." In opening the scheme which ministers intended to incorporate in their bill, Lord Morpeth announced that the principle of appropriation would still be declared and acted on. The bill, he said, would follow the uniform precedent of three previous bills, and he believed of four successive administrations, in converting the tithe-composition into a rent-charge, payable by the owners of the first estate of inheritance, as it was termed. The bill would also preserve those terms of commutation which, in the bill of last year, had been adopted by both houses of parliament, by conferring a deduction of thirty per cent, upon those subject to the payment of the tithe-composition. He would not propose any contribution from the national funds towards payment of the arrears of former years; and, on the other hand, he would abandon all claims for repayment of the sums which had been advanced to tithe-owners under the million act, and which amounted to £637,000. Ministers proposed, he said, to entrust the collection of rent-charges to the board of woods and forests for a period of seven years, and thereafter until parliament should otherwise determine. The bill would also contain the provisions for allowing a revaluation of the present tithe-composition in the cases and under the limitations specified in the bill of last year. These were the arrangements to be enacted in regard to existing incumbents. As regarded the future regulation of the church revenues, government felt that they could not abandon those declarations and principles with which they entered upon office; that they could not shake off the engagement under which they conceived themselves to stand, of doing justice to the Irish nation; and the terms of that virtual and most honourable compact they conceived to be that if, in the future disposition of the revenues of the Irish church, something superfluous for its legitimate and becoming uses should arise, they should, after the satisfaction of all existing interests, apply that superfluity to the religious and moral education of the people. He felt that he might consider the principle as established and conceded, that parliament had a right to deal with the revenues of the church, if it should think them superfluous for church purposes; so long as the resolution adopted by the present parliament stood upon their books unrepealed, he had a right to think that that principle was admitted. It was now proposed by government, he continued, that on any future vacancy of a benefice, providing, as before, compensation for the patronage of private individuals in possession of the avowson, the lord-lieutenant should direct the board of ecclesiastical commissioners, now sitting in Dublin, to submit to the privy-council a report containing all particulars concerning such benefice; and a committee of the privy-council would be established with a view to this especial purpose, consisting exclusively of members of the established church, and named by his majesty. Power would be given to this committee to alter the boundaries of vacant benefices, subject to such modifications as subsequent vacancies of contiguous benefices might render advisable to carry into effect. Since

the year 1718 the lord-lieutenant and the privy-council had united two hundred and eighty-nine parishes, consisting of the union of two or more parishes. The committee, after fixing the boundaries, were to apportion such income as they might think proper relative to the duties of the future incumbents, but within certain limitations. Where the number of the members of the established church varied from 500 to 1000, the income would be £300; and where the number varied from 1000 to 3000, the income would be £400. Where the number of Protestants amounted to 3000 and upwards, the income would be raised to £500; but wherever the number was below 50, it was proposed to assign to the incumbent an income not exceeding £100. After thus providing for the Protestant establishment, his lordship said that there would still be a considerable surplus of ecclesiastical revenue. The tithes payable to the clergy at present were £511,000, which, remitting thirty per cent, left a rent-charge of £353,000. The ministers' money might be stated at £10,000, without the expenses of collection; the private bounty fund, £5000; glebe-lands, clear revenue, £86,500; total, £459,550. There were 1385 benefices in Ireland, a considerable number of which were sinecures, not merely from the circumstance of having no members of the church of England within their locality, but also from the fact that they were in the hands of the dignitaries of the church, who performed little or no service in them. There were also many which had been suppressed by the church-temporalities act, divine service not having been performed in them for three years. Perhaps the number necessary to keep up would be about 1250. It was intended, indeed, under this bill, to give power to the privy-council to constitute new benefices in Ireland, of which they were likely to avail themselves to some extent. The whole payment to be made to the clergy of the 1250 benefices he calculated at £361,928, thus leaving a surplus of £97,612. This was a larger surplus than he had hoped for last year; but as the committee of the privy-council would, in certain cases, have the power to constitute new benefices, this surplus would be likely to undergo some alteration. It would also be remembered that no part of the surplus could be expected to be realised for some time to come, from the necessity of satisfying vested interests, and of making other important arrangements. After satisfying all the charges that must be met, it was proposed to have the remainder paid into the consolidated fund, upon which a charge of £50,000 per annum was to be fixed, for the purpose of supplying religious and moral education to the people of Ireland. The second reading was delayed till the 1st of June, when Lord Stanley, who had previously given notice of his intention, moved this amendment:—"That leave be given to bring in a bill for the conversion of tithe into a rent-charge, and for the redemption thereof, and for the better distribution of ecclesiastical revenues in Ireland." In reply, Lord John Eussell reminded the house that he had expressed his willingness to allow Lord Stanley to bring in his bill as a substantive measure; but when it was moved as an amendment on the original motion before them, it was merely a new form of opposing the second reading of the government bill, and raising the question on the principle of that bill. They had been appealed to as gentlemen, but he hoped they were something more; that they were representatives of popular feelings and popular interests—representatives, not of local bodies, but of the whole empire, including the six millions of Roman Catholics in Ireland. In conclusion, Lord John Russell said that it had been asked, whether he meant the income of the glebe-lands generally, or in

part, to go towards giving glebe to the Roman Catholic church? He gave a distinct answer in the negative; government had no intention of providing, out of any surplus of glebe-lands in Ireland, glebe-lands for the Roman Catholic church. The debate continued by adjournment on the 2nd and 3rd of June, the ministerial measure being defended by Lord Morpeth, the chancellor of the exchequer, Messrs. O'Connell, Shiel, Ward, and others; and that of Lord Stanley being supported by Sergeant Jackson, Sirs James Graham, and E. Peel, and Mr. Lefroy, and others. The most remarkable speeches delivered in this debate were those of Mr. O'Connell and Sir Robert Peel. The debate was closed by the chancellor of the exchequer, who complained that the opposition fixed upon ministers all the opinions of those who supported the bill. On a division, ministers had a majority of thirty-nine; the votes for the second reading being three hundred, and for Lord Stanley's amendment, two hundred and sixty-one. A motion was made on the 1st of July for going into committee on the bill, on which day the ultimate designs and the real wishes of the Papists were disclosed by Mr. Crawford, who moved the following resolutions:—"1. That it is expedient that tithes, and all compositions for tithes in Ireland should cease, and be for ever extinguished, compensations being first made for all existing interests, whether lay or ecclesiastical; and that it is also expedient that measures should be adopted to render the revenues of the church lands more productive, and more available for the support of the working clergy of the establishment; and that all persons not in communion with the established church of Ireland should be relieved from all assessment for its support. 2. That it is expedient that the moneys necessary for the aforesaid compensation (estimated at £2,500,000) should be advanced out of the public revenue, and afterwards repaid by instalments from the proceeds of a tax to be imposed on profit-rents; such tax to cease and determine as soon as the said debt shall be paid." These resolutions, however, were rejected by a majority of fifty-one against eighteen. In the committee the Irish leader betrayed his conviction that it would be impossible either to pass the bill, or to make it the means of raising any popular excitement against the house of lords. On the discussion of the first clause, he said, that to discuss anything was only waste of time; for it was clear that no measure for the pacification of Ireland, whether respecting tithes or anything else, was likely to pass. Any bill containing solid relief was sure to be destroyed; they were legislating in despair. He himself intended to have proposed several amendments; but he should not do so, as there could be no doubt the lords would throw out the bill. The only debate which took place in the committee arose on the question, whether the appropriation clause should stand part of the bill. The arguments adopted were a repetition of all that had been formerly urged, diversified with a few new illustrations, and some acrimony of expression. The clause was retained on a division by a majority of two hundred and ninety against two hundred and sixty-four. The bill was finally read a third time, and passed on the 15th of July.

The second reading was moved in the lords on the 22nd of July. Lord Melbourne briefly explained its provisions, observing that it was not necessary for him to go into any lengthened argument on the subject. It was read a second time without opposition, the Duke of Wellington declaring that he was prepared to consider it in committee, with a view to make such amendments as might render it consistent with

the interests of the church and the people. The house went into committee on the 25th, and the bill was passed on the 28th. When passed, however, all the provisions for what was called appropriation were struck out, and all the other important arrangements in the bill were modified. By the bill the clergy were only to receive seventy per cent.; the lords raised it to seventy-five; they raised also the minimum stipend to be paid in any benefice to £300. In this shape the bill was sent down to the commons.

Lord John Russell brought the amendments of the lords before that house on the 2nd of August, when he started a question of privilege, as if the lords had interfered with a money-bill, thereby leaving the commons no other choice than to reject it, independently of the merits or demerits of the alterations which had been introduced. He entered subsequently into the merits of the amendments at large; and having explained them, he said, it was for the house to say whether, after having solemnly affirmed certain principles, it would, because the lords had rejected them, yield them up, and then endeavour to agree with the lords in the alterations of this bill, or in the provisions of a new measure. For himself, he would say, that if the members of the house of commons were to go up to the bar of the house of lords in such humble guise, admitting that they had been in error, and that the wisdom of the house of lords had taught them a lesson of policy they had never learned before, he, for one, would not accompany the commons on such a message. Sir Robert Peel, who followed the home-secretary, moved as an amendment that the lords' amendments should now be taken into consideration; but, after a brief debate, the motion for rejecting the bill was carried by a majority of two hundred and sixty against two hundred and thirty-one.

COMMUTATION OF TITHES IN ENGLAND.

One of the leading measures of the session, as regarded England, was for the commutation of tithes; a measure which was brought forward for the relief of the dissenters. The ministerial plan for the commutation of tithes was brought before the house of commons by Lord John Russell on the 9th of February. The subject, he said, consisted of two parts: namely, the principles on which the commutation should be made, and the machinery by which it was to be carried into execution. The machinery, he confessed, would be borrowed from Sir Robert Peel's bill of last year. There would be a central board of commissioners, consisting of three persons, for the purpose of arranging the question of commutation; and this board would have power to appoint assistant-commissioners to a certain extent, and in certain cases, in the same manner as the poor-law commissioners. His lordship admitted that the selection of the principle on which the commutation should proceed was a subject attended with much difficulty. In the plan government proposed, their object had been to produce as little disturbance as possible in existing interests, not to diminish violently or excessively the income now enjoyed by the tithe-owners, and to produce some uniformity in the mode of calculating and valuing tithe throughout England and Wales. As in the bill of last year, any landowner would be allowed to agree with the tithe-owner for a commutation of his tithe; and having made such an agreement, he would stand to the tenant in the relation not only of landlord, but likewise of

tithe-owner. He also proposed that it should be competent for the possessor or possessors of one-fourth of the value of the tithe to call a meeting of the owners of land in the parish, at which parties might be represented as they now were under the poor-law act. When three-fourths in value of the owners of tithe agreed with three-fourths in value of the owners of land, they would have power to make an agreement binding on the whole parish, if no person appealed against it within a certain period. If any person appealed, it should still be binding against those who did not appeal. The parties appealing would be compelled to appear before the assistant-commissioners, who, on hearing their statements, would make an award, which award, on the ratification of the central board, would become binding on the parish. If, at the end of a certain period, he would say six months, no such agreement were made between the tithe-owners and the tithe-payers, it would be competent for any landowner, or any tithe-owner, to ask the commissioners to make such a general award on the tithes of the parish. When such a demand was made, an assistant-commissioner would be authorised to examine what had been the amount of tithes, and what had been the expense of collecting the tithes for the last seven years; he would then declare the amount of tithes so paid for the last seven years, and that amount would be represented by a certain quantity of wheat, barley, and oats. If any person should appeal against this declaration, on the ground that the amount fixed for the tithes on the composition did not fairly represent their value, the assistant-commissioner would make an estimate of the value of the tithes for the seven years previous, and ascertain the actual gross value of them for that period. If it should appear that the sum of tithes taken in any parish during a period of seven years exceeded seventy-five per cent, of the gross value, then it would be competent to the commissioners to determine that the commutation should amount to seventy-five per cent. of the gross value, and no more, and they would reduce the sum accordingly; if, on the contrary, it appeared that the amount taken was less than sixty per cent, of the gross value of the tithe, the commissioners would be authorised to raise the sum to sixty per cent., and to declare that that should be the amount of the future charge. If the sum paid was between these two limits, it should be competent to the commissioners to make such an award as they thought the circumstances and the justice of the case required. In some cases tithes had been taken to such an extent as ought not to form the basis of a permanent charge; and, on the other hand, there were instances, as had been satisfactorily established by undoubted evidence, of clergymen who did not receive more than forty or fifty per cent, of the amount to which they were entitled. It appeared just to interfere in these cases; and he thought it right to fix a sum to be taken hereafter, which should not exceed or fall below a certain amount, in proportion to the gross value of the tithe. It was open for consideration, whether sixty or seventy-five pounds were the proper minimum and maximum: he referred to these sums only as illustrating the principle. In certain cases, however, a special regulation would be required, as tithes on hops, orchards, and gardens, on which the tithes were extremely high. He proposed giving the commissioners the power of taking certain hop districts, in order to ascertain the average tithe of the last seven years, and fix the amount in future. They would also have the power of declaring what the tithe of any particular land or property should be, supposing hop cultivation to be abandoned; and it was provided that in cases

where land should be brought into hop cultivation anew, it should be subject to an additional payment of fifteen shillings an acre on account of tithe. As regarded orchards and gardens, he had not been able to settle a particular provision on the subject, although he admitted lands thus cultivated were particularly circumstanced. The tithe thus commuted, Lord John Russell continued, would become a rent-charge, payable by the landowner according to the value of grain: thus—the average prices for seven years of wheat, barley, and oats would be published at certain periods by the comptroller of corn returns; this publication would take place every year, and the payment of rent-charge made in lieu of tithe would be varied accordingly. The prices of three different kinds of grain were taken, for the purpose of ascertaining the value and amount of the charge, so that if an individual were chargeable with £300 for tithe, one-third would be estimated by the price of wheat, one-third by that of barley, and the remaining third by the price of oats, which would be giving each a fair proportion in the gross amount. Finally, the intended bill did not deal, his lordship said, with the question of redemption of the rent-charge; that was an important and difficult subject, and would require to be dealt with in a separate measure after the commutations should have been made, and the charge ascertained. Sir Robert Peel said that he would not object to the measure being introduced, since he thought himself entitled to say that it was taken in great part from his bill of last year. The whole of its machinery was, in fact, adopted, and to a certain extent likewise, its principle of voluntary commutation. The bill passed the second reading on the 22nd of February without any division, although various objections were stated, both as to its principles and details; the former being chiefly directed against the compulsory nature of the commutation. When the bill went into committee, ministers made several alterations in its provisions. Thus the period during which voluntary commutations might be entered into was extended from six months to twelve; and the clauses under which a single landholder might compel a commutation in regard to his own property, while there was none for the rest of the parish, were given up; it was now proposed that a fixed proportion of the landowners should have power to enter into a voluntary agreement, which, after a certain time, should become binding on the whole parish. A great deal of hostility, however, was still expressed against the measure, and that even among the ordinary supporters of government. Mr. Hume maintained that no good bill could be enacted till the corn-laws were repealed, since they had given land and its produce an artificial value; and as their repeal was anticipated, this measure would inflict great injury on the landowners, unless the value of the tithe was fixed much lower than was done by the bill. Great opposition was also manifested to the maximum and minimum of seventy-five and sixty pounds, and fixing them merely by the average of the preceding seven years, but the clause was retained. On the bringing up of the report, however, government proposed a modification of the clause, to the effect that the commissioners, on receiving a representation that the sum paid was not a fair composition, should ascertain the gross value of the tithe, and should have power to raise or diminish the sum to be paid in future, but not beyond one-fifth of the sum paid during the preceding seven years. Some amendments of minor importance were moved subsequently, but were rejected; and the bill having gone up to the lords, was read a second time without opposition, and was passed on the 22nd, both sides of the house approving of its

general principles. The Archbishop of Canterbury said, he thought the bill would be very beneficial in its effects, relieving the land from the pressure of tithes, and doing justice to the clergy, and as little liable to objection as any measure that could be framed on a subject so difficult and so complicated. With respect to those lands which might be brought into cultivation as agriculture improved, and for which the bill made no provision, he agreed that to give the clergy a tithe on such land would be to prevent the general object of the bill—the expenditure of capital on the land; but when waste lands were enclosed and brought into profitable cultivation, he could see no reason why such steps should not be taken in favour of the clergy as were usual in other cases, and why a portion of the land should not be given to them. His grace accordingly moved, in the committee, an amendment to the effect, that when waste or common lands should be enclosed, the commissioners should assign a certain portion of the land to the tithe-owner instead of his tithe. This was objected to on both sides of the house, and the amendment was negatived without a division. The bill passed, and the few alterations which had been made in the lords were agreed to with one exception. The peers had agreed to an amendment giving tithe on cows fed in stalls and sheds. This was rejected; and the lords, when the bill returned to them, did not insist upon its retention.

BILL FOR REGISTRATION OF BIRTHS, DEATHS, AND MARRIAGES, ETC.

On the 12th of February Lord John Russell brought in bills for relieving dissenters from the necessity of celebrating their marriages according to the forms of the church of England, and for establishing a system of registration of marriages, births, and deaths. His lordship stated that the two bills were not connected with each other, but that the establishment of a proper system of registration was, in his opinion, an indispensable pre-requisite to any measure for removing from the dissenters their grievances relative to marriage. It was further, he said, an important object, in a national point of view, to have a general scheme of registration. At present there were no registry of births, but only of baptisms; no registry of marriages, because they were only such marriages as were performed by ministers of the church of England; and no registry of burials, as the only burials registered were those in which the service was performed by clergymen of the establishment. He argued that it was necessary we should have a registration, which should comprehend, indifferently and impartially, all sects of the people. The late change effected in our domestic policy, he continued, seemed to furnish the means of attaining this end without any heavy additional expense. By the poor-law amendment act there were two hundred and twenty-eight unions already in England and Wales; and it might be calculated that, when the whole country was divided into unions, there would be more than eight hundred. In every union there was a relieving-officer, each union consisting of about twenty parishes, and containing from sixteen to twenty thousand inhabitants. There was likewise an auditor appointed by the board of guardians. Now the government proposed that the poor-law commissioners should have the power of appointing the relieving-officer, or any other person whom they might think fit, to keep the register of a certain number of parishes; and the auditor of the union, or his clerk, or any other person appointed by the poor-law commissioners, should superintend the register of that part. There would further be a registry-office in each county, and a

chief office in London, subject, however, to the authority of the poor-law commissioners. The superintendent in each union was to send the registers to the county office every two months, and copies would be transmitted thence to the central office in London. As regarded the manner in which the registration was to be made, his lordship said, that the bill would require notice to be given by the occupier of the house in which the child was born within eight days after that event had taken place, and that within fifteen or twenty days the registrar might call upon either the father or mother of the child, or upon the occupier of the house, to give him certain particulars, in order to fill up accurately the register in respect to that child. The person who furnished these particulars would also be required to furnish the name of the child; if that was declined at the time, and withheld to a future period, it would be necessary to postpone it, and the party would be obliged to produce to the registrar a certificate of the baptism of the child, and to pay him a fee of one shilling for making the entry. In cases of death likewise the occupier would have to give an account of the deaths which happened in his house—of the time and circumstances of the event—in the same manner as was provided in the case of birth. The registrar, within a certain time, would also call upon the next of kin, or any person living in the house, to furnish him with further particulars with respect to the death, the age of the deceased, information as to what part of the country the deceased belonged to, and all such other information as was usual and material in such cases. Persons who gave this information would not be required to pay any fees for the entry, or, indeed, for anything; but copies or certificates of the entry at any time afterwards supplied would have to be paid for. Every registrar would receive two shillings and sixpence for each name entered by him within twenty days after birth or death, and one shilling extra after that time, and the superintendent of the registrar would be paid twopence on each entry. It was calculated that altogether there would be about 812,000 entries made in the course of one year, and that the amount paid to the registrars thereon would be somewhat more than £40,000. The total expense, including superintendents and the register-office in London, would amount to about £80,000 per annum. For the present the lords of the treasury would be empowered to pay the expenses of the central register-office in London; the future expenses would be borne by the parishes, according to the number of entries supplied by each. Lord John Russell next proceeded to state the provisions of the registration of marriages. He laid it down as a principle that the state had no interest in the form of the marriage ceremony, beyond that of its being binding on the consciences of the parties. When it was ascertained that due notice of the contract had been given, according to the form requisite to be followed by all parties, that the contract was duly registered, and that the manner in which that contract was entered into was binding upon the consciences of the parties to it, then the state had learned all that it was essential or necessary for it to know. The law of the country, however, as it at present stood, took a very different view. By the marriage law of 1754 it was declared that a marriage, in order to be valid, must be performed—after bans published in the church, or licence granted by authority—in the church, within certain hours, except under a special licence, and in all cases by a clergyman of the church of England. This law he considered as an unnecessary violation of conscience, and he proposed to leave the marriages of the members of the church of England as they were under the present

law, and to allow the Protestant dissenters to be married in their own chapels, according to the religious form most acceptable to themselves. Instead of the publication of bans, he proposed that all persons, whether of the church establishment or Protestant dissenters, should give notice of their intention to marry to the registrar, and that their names should be entered by him in a notice-book, open to inspection for twenty-one days prior to the celebration; but that persons intending to marry by licence would be required to give only eight days' notice; and special licences, issued under the authority of the Archbishop of Canterbury, would still be retained. If the parties were unknown to the registrar, some person known to him would be required to declare that they were the parties they professed themselves to be. After the names had remained twenty-one days on the notice, the registrar would have to give them a notice to that effect, and the marriage might be celebrated within three months from that date. If the parties were members of the church of England, the clergyman, on the production of the certificate within the period, would be empowered to perform the ceremony without the publication of bans; or, if the parties were dissenters, they would be at liberty to go to a dissenting chapel with the certificate of notice, and, on its production, the ceremony would there be solemnized. The chapel, however, must first be duly licensed, on the application of at least twenty householders, who must declare that it was a dissenting chapel, used as a place of worship, and that they desired it to be licensed for the celebration of marriages. It was further proposed that as a dissenting minister was not known so well as a clergyman of the church of England, and that as he might take upon himself the office and lay it down again, the registrar should be present at such marriages, and should afterwards enter the names of the parties on the registry. To those who considered marriage to be altogether a civil contract, he would give something like what had been proposed last year by Sir Robert Peel, with this exception, that the parties, instead of going before a magistrate, would go before the registrar of marriages for the district in which they resided, who would enter the marriage contracted before him in a form of words set out in the bill. In respect to the registration of other marriages, the only difference between members of the establishment and dissenters would be this—that the established clergyman might enter the certificate of marriage in his own register, and send a duplicate copy thereof to the superior registrar of the district, to be forwarded by him to London; while, in the case of dissenters, it would be required that the ceremony should be performed in the presence of the registrar, who would certify that the marriage had taken place after a compliance with all the forms.

The bills were brought in, and were read a second time on the 15th of April without any opposition. The registration bill passed through committee without any important alteration; and the house of lords passed it on the 15th of August, with several amendments, to which the commons agreed. In the committee on the marriage bill, it was proposed to continue the publication of bans in rural districts, as a more effective means of giving notice to families interested in preventing a clandestine marriage than a register, which would require to be daily examined. It was also proposed to allow a dissenting chapel to be licensed for marriage purposes on the application of ten householders belonging to the congregation, instead of twenty, because there

were many such chapels which did not contain ten householders. Both these propositions were rejected, as was also a motion for the rejection of the clause which allowed persons who objected to marry in church, or in a registered meeting-house, to marry at the office of the registrar. This clause was objected to on the ground that it altered the whole marriage law of England, and separated the contract of marriage from all religious sanction; but a large majority decided in its favour. On the third reading Mr. Goulburn moved the insertion of a clause requiring, in all cases where marriages were not solemnized in a church or chapel, nor according to the rites of the church of England, that the parties should make the following declaration:—"I do solemnly declare that I have conscientious scruples against the solemnization of marriage according to the rites and ceremonies of the church of England." This motion, however, was rejected by a large majority, and another was carried, which went to reject the eighteenth clause of the bill, which required persons married before the registrar solemnly to declare that their had conscientious scruples against marrying in either church or chapel, or with any religious ceremony. Sir Robert Peel said, that the bill thus altered had assumed an entirely different aspect; while it provided for the relief of the dissenters, it passed a gratuitous and most intolerable insult on the feelings and principles of the members of the church of England. Lord Lincoln, after making similar remarks, moved, as an amendment, that the bill should be read that day six months; but the third reading was carried by one hundred and four against fifty-four. In the lords the second reading encountered no opposition, objections to it being reserved for the committee. In the committee the Bishop of Exeter moved, in order to avoid the desecration of the marriage contract when the ceremony was not performed in church, that the parties should make the following declaration:—"In the presence of Almighty God and these witnesses, I, M., do take thee, N., to be my wedded wife, according to God's holy ordinance; and I do here, in the presence of God, solemnly promise, before these witnesses, to be to thee a loving and faithful husband during life," instead of, as it stood in the bill, "I call upon these persons here present to witness that, I, A. B., do take thee, C. D., to be my lawful, wedded wife." This amendment was carried; but on the bringing up of the report, the bill, on the motion of Lord Melbourne, was restored in this respect to what it had formerly been. The lords, however, struck out that provision of the bill which abolished the proclamation of bans, and they enacted with regard to all marriages of members of the established church, that bans should still be proclaimed. They likewise enacted that the superintendent of each district should send to the clerks of the unions the names of all persons who gave notice of their intention to marry, they being Protestant dissenters, and that their names should be read weekly, for three successive weeks, at the meetings of the guardians of the poor. Finally, in some parts of the bill they introduced an oath in place of a declaration, and required the interference of the superintendent-registrar, instead of the registrar. Some of these amendments were very unfavourably received by the dissenting interest in the commons, and an amendment was carried expunging the enactment that the names of dissenters intending to marry, should be read by the guardians of the poor at their weekly meetings. To all the other amendments of the lords, the commons, on the advice of Lord John Russell, agreed.

{WILLIAM IV. 1836—1837}

During the administration of Sir Robert Peel, a commission had been appointed to inquire what useful changes, if any, could be introduced in the ecclesiastical condition of the church of England, so as to remove anomalies which might still exist in it, and insure more effective pastoral superintendence. This commission had made a first report before Sir Robert Peel had resigned, and on the occurrence of that event his successors continued it, though its official members were changed. The second report was presented to both houses early in the present session, when it appeared that the inquiries of the committee had been threefold: first, their recommendations referred to the ecclesiastical division of territory, and the revenues of the different sees; secondly, to the cathedral and collegiate revenues, which it was desirable should be made more useful for the church establishment; and, lastly, the residence of clergymen on their benefices. During this session Lord John Russell introduced into the lower house a bill founded on those recommendations, which regarded the new modelling of the episcopal sees in relation to territory and income; and at a later period, another measure was brought in, providing for the suppression of cathedral and collegiate preferments, and sinecure benefices. A third measure was likewise brought into the house of lords by the Archbishop of Canterbury, to carry into effect the recommendations of the commissioners regarding pluralities and non-residence.

The bill concerning the territories and revenues of the diocesses, or the established church bill, recited those parts of the reports of the commissioners which set forth the proposed alterations among the sees, and deductions from their revenues. The first of these reports had recommended a different territorial arrangement of diocesses, with the view of making them more equal; the suppression of two sees; the erection of two others, those of Manchester and Ripon, in their places; and that the revenues of the sees—the two archbishoprics, and the sees of London, Durham, and Winchester excepted, should not exceed £5500, nor fall below £4500. The second report proposed that the diocess of Bristol, which, according to the previous recommendation, was to comprehend part of the diocess of Llandaff, should be united, as far as respected Bristol, with the diocess of Bath and Wells; and, as far as respected the remaining portion of the see, with the bishopric of Gloucester. It was further proposed that the Isle of Man should be united with the bishopric of Carlisle. With regard to the revenues, the second report recommended that the income of the Archbishop of Canterbury should be reduced from £17,000 to £15,000; of the see of London, from £12,200 to £10,000; of Durham, from £17,800 to £8000; of Winchester, from £10,700 to £7000; of Ely, from £11,000 to £7500; and of Worcester, from £6500 to £5000. The excess produced by these deductions was to be divided among thirteen sees, so as to make their respective revenues range between £5500 and £4500 per annum. It was further suggested that some useful measure might be proposed with respect to the mode of granting leases; but this was a subject which

the commission had found extremely difficult in treating with, and therefore they had not agreed upon any proposition. After reciting these various parts of the reports of the commissioners, Lord John Russell's bill incorporated a board of commissioners under the style of "the ecclesiastical commissioners for England," which board was composed of spiritual and lay peers, of the lord-chancellor, the president of the council, and first lord of the treasury, of the chancellor of the exchequer, and such of the secretaries of state as his majesty might name for the time being, and of the right honourable Henry Hobhouse and Sir Herbert Jenner. The bill further enacted that the commissioners from time to time should lay before the king in council such schemes as should appear to them to be best adapted for carrying into effect the before-cited recommendations, and such measures as should appear to them necessary for the proper execution of these schemes, with a power of making such modifications and variations in matters of detail, as might not be repugnant to the recommendations themselves. When any such scheme had been approved of by his majesty, it was to be ratified by an order of the king in council, published in the _Gazette_, and recorded by the registrars in the diocesses, and was thereafter to be of the same force and effect as if every part of it had been included in this act. A clause was inserted, enacting that in future no bishop should hold _in commendam_ any ecclesiastical office, dignity, or benefice, all such grants being declared null and void; and by another clause the commissioners were directed to prepare a scheme for preventing the appointment of clergymen not fully conversant with the Welsh language, to any benefice in Wales, with the cure of souls, where the majority of the inhabitants of the parish did not understand English. On the motion for going into the committee on tire bill, the second reading of which had encountered no opposition, Lord John Russell entered at considerable length into this measure, and likewise the other two bills which were to accompany it in reforming the church. It would be mere repetition to record his expressions on the first measure; but passing to the recommendation of the commissioners for suppressing collegiate and cathedral charges, and benefices without the cure of souls, he said, that the income which would become available from these sources would be £130,000. In making a new application of this revenue, the first regard would be given to the wants and circumstances of the parishes from which the revenue was derived. The want of church accommodation in many places was lamentable. With respect to patronage, Lord John Russell added, it was proposed that instead of the large number of livings now in the hands of the dean and chapters, for the future they should only have the power either of appointing one of their own body, or one of their minor canons to benefices; but if they were not accepted, they should, after three months, be disposed of by the crown in some cases, and by the bishop of the diocess in others. With respect to the patronage of the crown, by which the church was connected with the state, he thought it would be a great evil to have the church totally independent of the state. Patronage was one of the means by which the church was united to the state, and by which the latter was bound to promote the interest and welfare of the church; and on the other hand the clergy were enlisted in the common cause and general policy of the state. He considered also that the patronage in the hands of bishops and individuals was useful; and the commissioners had proposed that the patronage in the hands of cleans, prebends, and residentiaries, should go into the hands of the bishops. On the motion for going into committee the

bill was inveighed against as a mockery of reform, which still left the church too wealthy; merely making a new distribution among the bishops, instead of a reduction; not only not taking sufficient from the richer bishoprics, but giving what it even did take to the other bishops, instead of bestowing it on the poor and working clergy. The bill passed through the committee on the 14th; and on the bringing up of the report, Mr. Hume moved that it should be considered that day three months. This motion was rejected by a majority of more than two to one; and Mr. C. Buller then moved a clause, to the effect that, until due provision should have been made for the adequate payment of the parochial clergy, and for the supply of religious instruction to those parts of the country stated in the report of the commissioners to be destitute thereof, the Archbishop of Canterbury should receive an income of not more than £8000; the Archbishop of York, £7000; the Bishop of London, £4500; and each of the other bishops £4000. This proposition was rejected by a majority of eighty-two against forty-four; but the resistance of ministers seemed only to increase the opposition of their radical opponents. On the motion for the third reading, Mr. Hume moved, as an amendment, that the bill should be read a third time that day six months. It was impossible, he said, that the bill could pass; and if ministers thought it would be passed, they would find themselves mistaken, and do great injury to the liberal cause which they professed to advocate; such a bill was not to be passed while the pledges of the government in regard to the church remained unredeemed. Mr. T. Duncombe bitterly reproached ministers for their supposed dereliction of principle; they might talk as they chose of their Irish tithe-bill and their appropriation clause, but English church reform would be the touchstone by which it would be tried whether they would retain the confidence of the country. On a division, Mr. Hume’s amendment was rejected by a majority of one hundred and seventy-five against forty-four, ministers being supported by the conservatives, and generally by the Irish members. In the meantime the lords had been proceeding with the bill regarding pluralities and non-residence. On the second reading of that bill, the Bishops of Exeter and Hereford expressed strong apprehensions of the consequences of the bill, although, as the house was unanimous in its favour, they would not occasion any vote. The bill was founded on the recommendations of the commissioners previously alluded to. It was proposed that exemptions in favour of non-residence should be granted only to chaplains in attendance on their majesties, or on bishops, the principals of some schools, and in a few other special cases. The law at present allowed incumbents to be absent three months; and it was not proposed to shorten the time, as circumstances did not permit the clergy generally to take advantage of it, and pluralities produced a greater quantity of non-residence than all other causes. In regard to pluralities, therefore, the commissioners proposed, that no clerygyman should hold two livings if the income of one of them exceeded £500, or they were more than ten miles distant from each other; and that, in no case, should any clergyman hold more than two livings. The bill further enacted, that no person should hold more than one benefice, with one cathedral preferment, and that no person should hold preferment in more than one cathedral or collegiate church, except archdeacons, whose office was very laborious, and in general ill-paid. After some remarks made against some of these provisions by the Bishops of Exeter and Hereford, the lords agreed to them; and the bill was passed and sent down to the

commons, but it was dropped for the session. Nothing more was heard of the bills which Lord John Russell had successfully carried through the commons, regarding the new modelling of episcopal sees, &c., and the suppression of cathedral and collegiate preferments and sinecure benefices. With reference to the latter subject, however, a short act was passed, in order to prevent the creation of any new vested interests, by providing generally that all future appointments to any ecclesiastical dignity or office referred to in the recommendations of the ecclesiastical commissioners, should be subject to such regulations as might subsequently be enacted regarding them; and that no appointment should be made to any canonry or prebend of cathedrals and collegiate churches, nor to any sinecure benefice not in the patronage of private persons, or of one of the universities, that was now vacant, or might become vacant during the continuance of the act, which was limited to a year, and to the end of the next session of parliament. Various canons and prebends were excepted, principally those which were attached to professorships and dignities of the universities; but the canonries of York, St. Paul, Carlisle, Chichester, and Lincoln, and prebends held by the Bishops of Lincoln, Lichfield. Exeter, and Salisbury, in their respective sees, were likewise excluded.

BILL TO ABOLISH THE SECULAR JURISDICTION OF BISHOPS, ETC.

During this session an act was passed, by which the secular jurisdiction of the county palatine of Durham, with all forfeitures, mines, treasure trove, and other rights belonging to that authority, were transferred from the bishop of the diocess and vested in the crown. The county-court was abolished; and it was likewise declared that the bishop elect, or any bishop for the time being, should take and hold the see, subject to such provisions as parliament might make regarding it within three years from the passing of the act. By another measure, the secular jurisdiction of the Archbishop of York over the liberty of Ripon and other places in Yorkshire, and the stoke of Southwell, in Nottinghamshire; and the secular authority of the Bishop of Ely over the Isle of Ely, were separated from the sees, and transferred to the king. A third act was passed, imposing restrictions on the renewal of leases by ecclesiastical persons. This bill provided, that where a lease had been granted for more than two lives, no renewal of it should be given till one or more of those lives had expired; and that, even then, the renewal should be only for the surviving lives, or for such new lives as, with the survivors, would make up the number of lives, not exceeding three, for which the lease had been originally granted. Where the lease had been granted for forty, thirty, or twenty-one years, it was not to be renewable till fourteen, ten, and seven years respectively of the original term had expired; and where it had merely been for years, no new lease was to be given for a life or lives. It was further required, that all leases should contain a recital, setting forth, in the case of a lease for lives, the names of the persons mentioned in the original lease as those on whose lives it was granted, and specifying such of the lives as were still existing, or had been exchanged for some other life. If the lease had been for a term of years, the recital was to set forth that term, and how much remained unexpired; and every such recital, so far as related to the validity of the lease containing it, was to be deemed and taken as conclusive evidence of the matter so recited.

BILL TO AMEND THE ENGLISH MUNICIPAL CORPORATION ACT.

When the bill relative to the reform of municipal corporations came into operation, in the end of 1835, it was soon discovered that some of the details of its machinery would require amendment. A bill for that purpose was brought in early in the present session. In some instances the mayor and other corporate officers had been elected, when the person presiding at the election was not legally entitled to preside; and the bill enacted that, notwithstanding this, all such elections, and all acts done by the officers so elected, should be good and valid. The act passed directed that elections should be held before the mayor and assessors; but, in some instances, there had been elections where there were no assessors: the present bill proposed to declare, both for the past and the future, that elections held before the election of assessors, but with the mayor or council presiding, should be as effectual as if they had been made before the mayor and assessors. The act provided, that the councillors who should go out of office were to be those who had been elected by the smallest number of votes; and if the votes had been equal, the majority of the council was to determine who should first go out. This did not provide for the case when there was no division of votes, in consequence of there being no contest; and the present bill provided for this case, by enacting that the majority of the council should select their outgoing colleagues. The act did not provide for the town-councillors being equally divided in the election of mayor or alderman, and instances had occurred of two parties in the council dividing against each other till midnight, after which no election could take place, as the day named in the act had expired: it was proposed by the present bill that, in such a case, the councillor who had the greatest number of votes at the election should preside, but without any casting vote, and that when the councillors could not agree on a mayor or alderman, the election should be referred to the constituent body. The act had abolished various corporate officers, without observing that, by their charter, their presence was necessary at the sessions. Serious doubts had arisen from this as to the legality of the proceedings at the sessions, before the new officers entered upon their duties under the act of parliament. The present bill declared that any court held since the passing of the act of last session, or before the 1st of May, 1836, in presence of the recorder, or any two persons who, at the date of that act, were entitled to act as justices for the borough, had been well and lawfully held. Many of the municipal elections having been questioned by proceedings in the King’s Bench, as being illegally and invalidly made, it was proposed by the bill that these causes should be decided in favour of one of the parties by act of parliament; that the proceedings should be quashed, and suits prohibited, by enacting that the defendants should have the right of getting them discontinued on making payment of costs. This bill passed the commons; and when it came to be read a second time in the house of lords, the Duke of Wellington and Lord Lyndhurst pointed out the grave consideration and the careful examination which many of its enactments would require. Lord Lyndhurst especially called the attention of the house to the tendency of those provisions which had a retrospective operation. After the bill, therefore, had been read a second time, it was referred, with the acquiescence of ministers, to a select committee, which committee made various amendments upon the bill, all of which were agreed to by the house and adopted into the bill. The commons, on

receiving the bill back again, agreed to all the amendments except two. The first of these was an amendment on the provision, that when the town-council was equally divided in the election of mayor or alderman, these officers should be chosen directly by the constituent body. The lords had altered this into a provision that, in case of equality, the town-council should first of all name by lot one of this number to preside at the meeting, and that their presiding councillor should have a casting vote. The second amendment consisted in the insertion of a clause to continue for another year the arrangement contained in the municipal act for the management of charitable trusts. No portion of these new institutions had produced greater jealousy between parties; the popular party were eager to get hold of them, while the other insisted on some arrangement which would prevent the funds of charities from being prostituted to party and political purposes. This jealousy was not set aside by the municipal bill, which left those charitable trusts in the hands of the persons then administering them, till the 1st of August, 1837, unless parliament in the meantime should otherwise provide, and if it did not, then the lord-chancellor was to appoint new trustees. Previous to this Mr. Smith had brought in a bill to administer these trusts by a system of popular election. The town-council of each borough was to fix the number of trustees, and then the trustees were to be chosen by the municipal electors, each elector voting for only half of the number, in the idea that this would give both parties an equal chance. The trustees were to be elected every three years. This bill had not passed when the municipal bill was sent up to the lords; and it proceeded upon a system which their lordships were not likely to approve of. The lords, therefore, had inserted in the municipal bill a clause continuing for another year that administration of these charitable trusts which had been admitted into the original corporation act. The attorney-general moved that the commons should not agree to this amendment, as Mr. Smith’s bill would soon pass; and he further moved that they should not agree to the amendment regarding the election of mayor and aldermen when the town-council were equally divided, on the ground, that it left to chance, and not to the voice of the people, which should be the predominating party in the corporation. This motion was agreed to; and the reasons of the commons for disagreeing with these amendments were communicated to the lords in a conference. The lords, however, still adhered to their amendments, the Duke of Wellington contending that the rejection of them was a departure from the principle on which he and his friends had waived all opposition to the decision of the select committee, and had consented to adopt the amendments as that committee had framed them. The decision of the lords to adhere to their amendments took place on the 1st of July, and on the 28th Mr. Smith’s bill for administering the charities by popular election passed the commons. The second reading was moved in the lords on the 4th of August, when it was opposed by the Duke of Wellington, who deemed it as unreasonable in the circumstances and bad in itself. On a division the second reading of the bill was negatived by a majority of thirty-nine to twenty-two. The commons still refused to agree to the clause which the lords had inserted in the bill on this subject, and there seemed to be no alternative but to drop the bill. The lower house, however, resolved to adopt the only course open to them, namely, that of a free conference, at which the matter in dispute might be debated between the managers _viva voce_. This course was pursued; but the two houses could not come to any agreement on these clauses,

and finally Lord John Russell moved that the further consideration of the amendments should be postponed till that day three months, which motion was agreed to. Certain bills were subsequently brought in and passed, to supply those parts of the dropped bill, in which both houses were agreed.

BILL TO ALLOW FELONS' COUNSEL TO ADDRESS THE JURY, ETC.

Several attempts had been made to obtain an act for allowing prisoners on trial for felony the benefit of counsel to address the jury on their behalf. Hitherto these attempts had been unsuccessful; but notwithstanding this, the subject was again brought before the commons at the commencement of the present session. The bill was introduced by Mr. Ewart, and it passed the commons by a great majority. The second reading of the bill in the house of lords was moved by Lord Lyndhurst, who descanted at large on the justice and reasonableness of the bill in its principle, although he did not approve of all its details. Lords Denman and Wynford also spoke in favour of the principles of the bill, and it was accordingly read a second time without opposition. In the committee, however, several amendments and alterations were made upon the bill, none of which were of great practical importance except one, and all of which, except that one, were agreed to by the commons. It frequently happened that persons were tried for felony where no counsel were present, and by this bill the privileges of the counsel were extended to attornies. The bill, as it came up from the commons, contained a clause entitling the accused to copies of the depositions upon which he had been committed. This clause was struck out, on the ground that the rights of a prisoner in this respect were already settled by law; but, to prevent all doubt upon the subject, a clause declaratory of the right was again introduced, before the bill finally passed the lords. A more important matter, however, regarded the right of the prisoner to have the last word. As the bill passed the commons, this right was established; but the clause enacting that he should possess that right was struck out, and the effect of the alteration was to make the practice the same as in cases of misdemeanour, and in criminal cases, giving the last word to the prisoner, only in the event of his adducing no evidence. The bill now consisted of this simple enactment:—"That all persons tried for felony shall be admitted, after the close of the case for the prosecution, to make full answer and defence thereto by counsel learned in the law, or by attorney in courts, where attornies practise as counsel." When the bill as amended by the lords came to be taken into consideration by the commons, its supporters argued that, as it now stood, it conferred no real advantage, and that it would be better to leave to prisoners the benefit of the commiseration which the state of the law, such as it was at present, induced, than to deprive them of it without giving them anything substantive in return. It was resolved that the lords' amendments should be referred to a select committee, and that committee reported in favour of the other amendments; but they decided that any arrangement which would deprive the prisoner of the last word would be injurious to his interests, and to the ends of justice. The attorney-general urged the house to accept the bill as it stood; but the amendment was rejected, and its rejection immediately communicated to the other house. The lords, however, still resolved to adhere to the amendment, and a conference was held, at which their reasons for adhering to it were communicated to the commons. The amendment was

finally adopted by the lower house, and the bill passed—Lord John Russell stating that the matter in dispute would form a subject of future deliberation, and Mr. Ewart assuring the house that he would not fail still to press upon it the principle which he now sacrificed, rather than reject the bill, which still retained a great deal of good.

Another act passed during this session had reference to the execution of those convicted of murder. By the existing law a person convicted of murder was directed to be executed the next day but one after that on which he was convicted, unless it should happen on a Sunday, in which case the execution was to take place on the following Monday. The law further required that after conviction such persons should be fed only on bread and water, except in case of sickness, and that no other person than the gaoler, surgeon, and chaplain, should have access to them, unless by the permission of the sheriff or the judge who had presided on the trial. During the present session an act was passed repealing these provisions, enacting that "sentence of death maybe pronounced after conviction for murder in the same manner, and the judge shall have the same power in all respects, as after conviction for other capital offences."

A third act passed this session related to medical attendance on inquests. This was an act to provide that when medical men were called from their ordinary duties to serve the public by giving evidence on coroners' inquests, and going through the anatomical and chemical processes which these examinations sometimes required, they should receive a proper remuneration. This bill, which was brought in by Mr. Wakley, enacted that not only the coroner should have power to summon medical witnesses, but "that if the jury were not satisfied with such medical evidence, the coroner should be bound to summon another gentleman of the same profession; and every medical witness so summoned was subjected, in case of non-attendance, to a penalty of £5, to be recovered summarily before the justices." On the other hand, every medical man attending to give evidence was entitled to the fee of one guinea; and if he had performed a post-mortem examination, his fee was to be two guineas. The fees were made payable out of the poors'-rates.

ABOLITION OF IMPRISONMENT FOR DEBT, ETC.

{WILLIAM IV. 1836—1837}

In the preceding session a bill for the abolition of imprisonment for debt had passed the commons; but from the lateness of the session it was not possible for the lords when they received it to take it into consideration. The lord-chancellor took up the subject himself in this session, and a bill similar to that passed by the commons was read a first time in the lords on the 30th of June. It is unnecessary to give the details of the measure as it was not permitted to pass. Indeed the house of lords seemed determined to avenge itself upon the ministry which carried the reform bill, by rejecting every measure it introduced, except where the feeling of the country was too strongly in favour of such measure. On the second reading, the Duke of Wellington objected to taking up at that late stage of the session a measure involving such extensive interests, and introducing a new system of law. His grace moved, that

the bill should be read a second time that day three months; and his motion was supported by Lords Abinger and Wynford, who considered it not as rejecting any measure founded on the principle of the bill, but only as postponing the subject till they could give it due consideration. Lord Melbourne agreed that the weight of business pressing on the house was great; but he did not see anything in it to deter them from proceeding with the bill. The proposed delay, he said, would only carry them to the 1st of August; and there was no probability that parliament would be prorogued by that time. On a division, however, the amendment was carried; and, although the session continued till the 20th of August, the subject was not again brought forward.

In his speech from the throne the king had recommended to parliament “to consider whether better provision may not be made for the speedy and satisfactory administration of justice in some of the departments of law, and more particularly in the court of chancery.” These words had been used in reference to an intention entertained by government of dividing the office of lord-high-chancellor, distributing his functions between two judges, one of whom should be devoted to legal duties, and be irremovable; while the other should retain the patronage and political functions of the office, and should be liable to be dismissed with the ministry who appointed him. On the 28th of April, the lord-chancellor brought forward the measures by which this great change was to be effected; and he founded the necessity of such measures on the increase of business which had taken place in the court of chancery, both in its original and appellate jurisdictions. On the second reading, Lord Lyndhurst objected to these bills in point of principle. The necessary effect of the measure would be, he said, to divide the office of chancellor, and to disqualify him from exercising that very appellate jurisdiction to which he was devoted. This separation was most mischievous; and he, therefore, moved that the bill should be read that day six months. On the other hand, Lord Langdale did not consider that the bill went far enough. He held it, he said, to be indispensable that the judicial functions of the chancellor should be separated from those which were not judicial: and that the appellate jurisdiction of the house of lords ought to be placed under the superintendence of a judge having no connexion with politics. Lord Abinger and the Duke of Wellington supported the amendment; the latter remarking that it was important that the most eminent lawyer in the country should occupy such a position in the councils of his majesty as would give those councils substantial benefit from his assistance. Lord Melbourne contended that the house could do no wrong in going into committee on the bill; but on a division the amendment was carried by a majority of ninety-four to twenty-nine.

ELECTION COMMITTEES.

Early in the session Mr. C. Buller brought the subject of the constitution of election committees before the house of commons, by moving “that a select committee be appointed to consider the laws relating to the determination of the right of voting, and the trial of controverted elections.” In accordance with this motion a select committee was appointed; but its labours did not produce any fruit during the session. In the preceding sessions bills had passed the commons to disfranchise the

borough of Stafford; but none of them had passed both houses. A new bill was passed by the commons, and sent up to the lords in the beginning of April. The second reading of the bill, however, in the house of lords was negatived by thirty-eight against twenty-two. On the 11th of June Mr. Hume moved in the house of commons, that the issuing of the writ for the borough of Stafford should be suspended till ten days after the next meeting of parliament. This motion was carried by a great majority.

Another question touching parliamentary purity attracted still greater attention. In May, 1835, the election of Colonel Bruen and Mr. Cavanagh for the county of Carlow had been declared void by a committee. Messrs. Vigors and Raphael were elected in their stead, by the interest of Mr. O'Connell. Upon a petition, however, these members were likewise unseated; and Mr. Raphael, who resided in London, believing that Mr. O'Connell had broken faith with him, published an account of the bargain by which he had secured his influence. It appeared that Mr. Raphael had begun to negociate with the agitator while the petition against Colonel Bruen and Mr. Cavanagh was still pending, and that the pecuniary treaty was concluded on that petition having terminated unfavourably for these gentlemen. Its terms were contained in the following letter, dated the 1st of June:—"My dear sir, you have acceded to the terms proposed to you for the election of the county of Carlow, viz., you are to pay before nomination £1,000—say £1,000, and a like sum after being returned; the first to be paid absolutely and entirely for being nominated; the second to be paid only in the event of your having been returned, I hereby undertake to guarantee and save you harmless from any and every other expense whatever, whether of agents, carriages, counsel, petition against the return, or of any other description; and I make this guarantee in the fullest sense of the honourable engagement that you should not possibly be required to pay one shilling more in any event or upon any contingency whatever." Mr. O'Connell wrote to the electors on behalf of Mr. Raphael; and, on the 10th of June, Mr. O'Connell received through his son, likewise a member of parliament, the first sum of £1,000. On the 21st he was returned; and, Mr. O'Connell, apparently in the prospect of a petition, wrote thus to his protégé:—"I am glad to tell you our prospects of success are, I do believe, quite conclusive. If only one liberal is to be returned, you are to be the man.

"I have made all the pecuniary arrangements.... I send you Vigors' letter to me. You see how secure we are. Return me this letter, as it vouches £800 for me; with that you have nothing to do, as, of course, I stand between you and everybody." A petition was presented against the return; and Mr. Raphael considered himself safe from any further expense except the sum of £1,000, and that Mr. O'Connell was bound by the express terms of his bargain to defend the return. He paid the second moiety of the £2,000 on the 28th of July; on the same day the election committee was ballotted. Mr. John O'Connell, who had received the money for his father, was himself one of that committee; and the inquiry before the committee having resolved into a scrutiny, Mr. Raphael soon discovered that it was in vain to look for the defence of his seat to his patron. He called upon Mr. O'Connell to fulfil his engagement "by fighting the battle so long as a bad vote for the petitioners remained on the poll, or, at all events, to the end of the session." Mr. O'Connell, however, either could not, or would

not defend him; and Mr. Raphael was unseated along with his colleague, on which he published the whole transaction to the world. Mr. O'Connell felt himself called upon to answer the charges brought against him; and in doing so, he began by abusing his antagonist. He had been put on his guard, he said, against Mr. Raphael, by "honest and experienced men," who described him as "a faithless creature, who never observed any contract, and with whom no person ever had a dealing without being sorry for it." He admitted the terms of the bargain; but he insisted that he only acted as the agent of Mr. Vigors, who was to pay all additional expenses of opposing the petition. The first sum of £1,000 which Mr. Raphael had paid was expended on the five days' poll; and he urged that that gentleman had made an excellent bargain in having all the expenses of nomination and of a five days' poll covered by a £1,000. As for the other £1,000, he said, that had been expended in opposing the petition; and he maintained that there was no obligation to continue that opposition after it had been spent. He averred that he himself had no pecuniary interest in the matter: he had made the bargain as acting for Mr. Vigors; for Mr. Vigors he had received the money; and to him he had paid it over. The most important part of his statement consisted in the admission of the purpose to which the money was to be applied in the event of the return not being petitioned against. He remarked:—"If there should be no petition, I agreed, on the part of Mr. Vigors, that the greater part of the second £1,000, more than one-half of it, whatever might be the amount of the election expenses, should be applied to commence the formation of a fund to indemnify the voters, and their friends and relations, from that persecution which the Carlow landlords then threatened, and have since exercised." The subject was brought before parliament on the 11th of February, by a petition, setting forth the transaction in all its bearings. The petition likewise stated "that the ballot for a committee to try the validity of the said return took place on the same afternoon on which the said second sum of £1,000 had been so received, in respect of such return, by the said John O'Connell, for the use of his father, the said Daniel O'Connell; and the said John O'Connell and Daniel O'Connell both attended the ballot for the committee; and the said John O'Connell was, in fact, balloted as a member to serve on the said committee, and suffered to remain on the list of the committee as finally reduced." The petition prayed the house to inquire into the circumstances; and if the charge was proved, to adopt proper proceedings against the offenders. A similar petition was presented from Bath by Mr. Hardy, member for Bradford; and it was proposed that both petitions should be taken into consideration on Monday, the 15th. Mr. O'Connell wished the discussion to be postponed till the following day, which was agreed to. On the 16th, therefore, Mr. Hardy moved—"That a select committee be appointed to inquire into the circumstances attending the traffic and agreement alleged to have taken place between Mr. Daniel O'Connell and Mr. Alexander Raphael, as one of the representatives for the county of Carlow, at the last election, and to report the minutes of evidence taken before them, with their observations thereon." Mr. Hardy said, that it was impossible to consider Mr. O'Connell in the light of an agent, as he had argued: who had ever heard of an agent becoming responsible to such an amount? The terms of agreement were:—"I hereby undertake to guarantee and save you harmless from any and every other expense whatsoever, whether of agents, carriages, counsel, petition against the return, or of any other description." He

thought that Mr. Vigors was the agent of Mr. O'Connell at Carlow, rather than that Mr. O'Connell was the agent of Mr. Vigors in London. At all events, the consequence of the bargain was, that the member for Dublin, whether as agent or principal, put in two members for Carlow—Mr. Vigors, his old friend _ex animo_; and Mr. Raphael, his friend _ex contracta_. It was of little consequence what sort of representatives the people of Carlow obtained. They had never seen or heard Mr. Raphael, and they knew nothing about his physical or intellectual abilities; all they knew was his address, and there was nothing of him even in that but his name. In his reply, Mr. O'Connell was violent and abusive. He contended that it was not on account of anything connected with the Carlow election that this charge was brought forward, but because he had contributed to put down Toryism, and had thrown his weight into the scale of government to accomplish that object. He demanded that the inquiry should be extensive and searching, comprehending the whole of the late general election. He had neither been guilty of pecuniary corruption by pocketing money, nor of personal corruption by gratifying his ambition by the improper expenditure of the money on the part of other persons. He entered into a long explanation of the circumstances connected with the transaction, making it appear that he was guiltless in the matter. In conclusion, he demanded that the committee should not be a packed one, but a committee of "honourable gentlemen," by which he meant gentlemen who would be inclined to take a favourable view of the matter. Mr. Warburton thought that the motion did not make the object of the committee sufficiently extensive; and he moved the addition of words, authorising them to inquire likewise into "the application of the money said to have been received, together with the circumstances under which it was received and expended." This amendment was agreed to and the committee named, its members being taken equally from both sides of the house. Two nominees were likewise appointed, to assist in conducting the evidence; Mr. Sergeant Wilde on the part of Mr. O'Connell, and Sir Frederick Pollock on the part of his opponents. The report of the committee was made to the house by Mr. Colborne, their chairman, on the 11th of March. It read thus:—"It appears to your committee that the subject may be arranged under two heads—the first as relating to any traffic or agreement between Mr. Raphael and Mr. O'Connell for a seat in parliament, and the second as to the application of the sum said to have been given. It does not appear to your committee to be necessary for them to enter upon any detailed summary of the evidence, but they feel it their duty to draw the attention of the house very briefly to the main points as they bear upon the question. It appears that Mr. O'Connell addressed a letter, bearing date, 1st of June, 1835, in which the agreement for Mr. Raphael's return for the county of Carlow for £2,000 was concluded; the committee cannot help observing that the whole tone and tenour of this letter was calculated to excite much suspicion and grave animadversion; but they must add that, upon a very careful investigation, it appeared that previous conferences and communications had taken place between Mr. Raphael, Mr. Vigors, and other persons connected with the county of Carlow, and that Mr. O'Connell was acting on this occasion at the express direction of Mr. Raphael, and was the only medium between Mr. Raphael and Mr. Vigors and the Political Club at Carlow. It appears that the money was placed to Mr. O'Connell's general account at his bankers in London. It was, however, advanced the moment it was called for to Mr. Vigors; and though some of it was paid in bills, the

discount was allowed; the amount, therefore, was available whenever wanted, and no charge of pecuniary interest can be attached to Mr. O'Connell. It appears also that this money had been expended under the immediate direction of Mr. Vigors and others connected with the county of Carlow, in what may be called legal expenses, or so unavoidable that your committee see no reason to question their legality; and that the balance was absorbed in defending the return of Mr. Raphael and Mr. Vigors before the committee appointed to investigate on the 21st of July, 1835." In moving that this report and the evidence given should be printed, Mr. Colborne stated, that the committee had agreed unanimously in the conclusion at which they arrived, and that he had no doubt that the house would join in the same opinion, if the evidence were considered without any reference to party feeling. To a large party in the house, however, it appeared that the committee had overlooked some important branches of the inquiry, and that matter had come out in the evidence before the committee which rendered the whole transaction more deserving of animadversion. On the 21st of April Mr. Hardy again brought the subject forward, by moving a series of resolutions, which declared that in the transactions regarding this seat, a breach of privilege had been committed. The committee itself had found it proved, he said, that the £2,000 had been paid and received; and if the circumstances under which the payment and receipt were made did not constitute a breach of privilege, he had yet to learn what did. He entered at length into the transaction, and concluded by asserting that there could not be a grosser case in all its bearings. There had been a contract to sell a seat in parliament for £2,000. which money was to be appropriated in a corrupt manner in every respect. From the evidence respecting the Carlow club, and the £1,000 to be applied to county purposes, nothing could be clearer than this, that any tenant who fell into arrear of rent from want of prudence or honesty, had only to say to the club, "My landlord is against you: if you expect my vote, you must pay my arrears of rent." What a system was this! If this were to pass unnoticed, who could object to the formation of Conservative clubs which would say to those shopkeepers, before whose doors the priests threatened the grass should grow, we will indemnify you. Better be without the reform-bill than see it leading to consequences like these. In former days they had to complain of boroughs being sold: now they had to complain of the sale of whole counties. Mr. O'Connell applauded the conduct of the members, of the committee: he would take this stand on their report. The agitator was defended by Lord Francis Egerton; not that he would wish to imitate his conduct in many respects, but he thought that he stood acquitted of pecuniary corruption: that charge was removed, and he did not feel inclined to go upon the minor questions arising out of the case, because he wished to be indulgent as well as just. The transaction did not meet with his approbation, but he looked upon it as part, at least, of the extensive system now carried on in Ireland; and however strongly he might deprecate that system, he doubted whether it would be just or expedient to bring the member for Dublin, or the other parties concerned in the transaction, within the resolutions of the house. He was not one of those who felt a desire to bring any man within the scope of a breach of their privileges. His own hands were as clean as those of most men; but if everything that he had done in violation of those privileges was to be brought against him, if a king's evidence could be found in every instance, he scarcely knew whether he might not himself be brought under the grasp of a tribunal.

Messrs. Warburton and Barneby also stood up in the defence of Mr. O'Connell. Lord John Russell likewise expressed his hostility to any further inquiry or proceeding: the report of the committee, he said, ought not to be touched, unless the house saw some very strong reasons to doubt the opinions, or to distrust the integrity, of the gentlemen who had given judgment. He moved as an amendment a series of resolutions which embodied the report verbatim, making them the resolutions of the house, instead of the opinions of the committee. This amendment, after Lord Stanley, Sir Robert Peel, and others had spoken in favour of the original motion, and other members had stood up in defence of Mr. O'Connell, was carried by a majority of two hundred and forty-three against one hundred and sixty-nine. Lord Stanley then brought the question still more to the point by moving, "That it appears to this house that there was between the contracting parties a distinct understanding, that, if any surplus should remain, after providing for the legal expenses of the election of Mr. Raphael, that surplus should be applied in the first place to the defraying of the expenses of the petition against the former elections, and in the next place to the funds of the Carlow Liberal Club: and such understanding calls for the notice of the house, as liable to serious abuse, as a dangerous precedent, and as tending to subvert the purity and freedom of election." Lord John, in reply, said he would not enter into the matter of fact, or go into anything beyond the report of the committee; if the committee had agreed on these facts, and had thought them material, they would have been reported to the house.

Mr. O'Connell's troubles, however, were not yet over. His return, with that of his colleague, Mr. Ruthven, for the city of Dublin at the last election had been petitioned against, and the petition had been referred to an election committee in the usual manner. This committee made their report on the 16th of May, when Messrs. O'Connell and Ruthven were declared not duly elected, and they were accordingly unseated. Their opponents at the election, Messrs. Hamilton and West, took their seats, after having been excluded from them for the whole of one session and the half of another: the committee being appointed in 1835, and not making their report before 1836. Mr. O'Connell appears to have expected the result of the inquiry, for he had provided himself with another seat by making one of his underlings accept the Chiltern Hundreds: he appeared during the session as the member for Kilkenny. Subsequently, Mr. O'Connell presented a petition from certain electors of Dublin, praying that Messrs. Hamilton and West should not be allowed to retain their seats, on the ground that they had been connected with bribery; but the report of the committee had stated that they were neither directly nor indirectly implicated in such practices, and after reading this report the house ordered the petition to be withdrawn. Mr. O'Connell maintained that the petition must be received, because the matter to which it referred had not come under the consideration of the committee; but the attorney-general declared his opinion that it was one which could not be received, and the speaker having given an opinion to the same effect, it was withdrawn accordingly.

NEW HOUSES OF PARLIAMENT.

In consequence of the destruction of the two houses of parliament by fire in October, 1834, a select committee had been appointed by the commons, to consider all matters connected with the rebuilding of these edifices. On their report an address had been presented to the crown to appoint commissioners to receive plans, from which they were to select not fewer than three nor more than five, to be submitted to the committee. More than ninety plans had been sent in, and the commissioners had selected four out of that number. On the 9th of February the committee was renewed for the purpose of determining which of these four ought to be adopted. This was followed by a motion of Mr. Hume's, that it should be an instruction to the committee to consider the propriety of removing the houses of parliament to another site. Mr. Hume, however, only found forty-four members to vote for his motion, while one hundred and forty-three voted against it. The committee thus re-appointed made their report on the 16th of March. On that day they recommended that an address should be presented to his majesty, praying him to institute inquiries as to what would be the probable expense of executing the plan which had been sent in by Mr. Barry, the architect. The committee had not selected Mr. Barry's plan as the best, but they thought that they could not safely recommend the adoption of any plan till the expense had been ascertained. The proceeding, was, however, a plain intimation that the plan in question was the one which had been adopted by the commissioners and the committee; and a committee also, in the house of lords had arrived at the same conclusion. The manner of proceeding gave great offence to the other competitors, and they brought their complaints before the house of commons on the 21st of June, in a petition which was presented by Mr. Hume. In this petition they stated that they had, in framing their plans, taken the probable expense into account, as an important consideration to which it was their duty to attend; whereas the commissioners declared that they had come to a decision wholly independent of the question of expense, as not an object for their consideration. They further stated that they had given their best attention to the elaborate instructions given by the committee, as regarded the number and dimensions of the offices and apartments, while the commissioners had been guided in the choice by the "superiority of the elevation." They further stated, that, as well by the general instructions, as by a report of the committee of the house on sound and ventilation, of which committee one of the commissioners was a member, they had constructed their plans with reference to these objects; but the commissioners had declared that they did not allow that subject to have weight in determining their preference. Finally, they arraigned the preference which had been given to the four selected plans, and prayed the house would either hear them by counsel at the bar, or appoint competent persons to examine the grounds of the report of the commissioners before finally adopting any of the plans. This matter was allowed to lie over till the evidence which had been taken before the select committee, by whom the commissioners themselves had been examined, should be laid on the table. The whole subject was brought forward by Mr. Hume on the 21st of July, who, after descanting at length on the conduct of the commissioners, moved for an address to the crown, to direct a new competition of designs, without limits as to the style of architecture, but not to exceed a certain fixed sum as the cost of erection, and that such designs should be examined and reported on by commissioners to be afterwards appointed. The motion was supported by

Messrs. Estcourt and Hawes, and opposed by Mr. Tracy and Sir Robert Peel. The latter said, that if the house agreed to this motion, they would strike a fatal blow at the principles of competition, and teach the most eminent of living architects to rue the day when, in compliance with an invitation of the house of commons, they sent in plans which had the misfortune to be found entitled to preference. The question raised was, not whether they should finally resolve to adopt Mr. Barry's plan, but whether they would declare all the proceedings that had been taken to be null. There was not even an implied engagement with Mr. Barry; there was only a _prima facie_ presumption that his plan was entitled to a preference. Mr. Hume, on seeing the general feeling of the house was against his proposition, withdrew it; at the same time he considered that his arguments had not only been unanswered, but that they were unanswerable.

On the 3rd of May Mr. Grantley Berkeley renewed his proposition for admitting ladies to the debates, by moving a resolution, "that it is the opinion of this house that the resolution of the select committee appointed in 1835 to consider the means of admitting ladies to a portion of the stranger's gallery, together with the plan of Sir R. Smirke, should be adopted, and that means should be taken to carry it into effect with as little delay as possible." This resolution was carried by a majority of one hundred and thirty-two against ninety. The chancellor of the exchequer accordingly proposed among the miscellaneous estimates, a grant of £400 to defray the expenses of fitting up an adequate portion of the gallery; but after a few words from the Earl of Lincoln against the motion and Lord Palmerston in favour of it, the grant was refused by a majority of forty-two against twenty-eight.

MOTION FOR THE REDUCTION OF TAXATION ON BEHALF OF THE AGRICULTURISTS.

The complaints of the agricultural class of the community still continued. On the 8th of February Lord John Russell proposed the appointment of a select committee, in order to inquire into the distress complained of. His lordship said, that whenever any great branch of national industry was materially depressed, it was the duty of parliament to give a favourable consideration to the complaints of those engaged in it, to ascertain the facts of the case, and, if possible, to devise a remedy: the proposition arose more from this feeling than from any hope that the distress of the agriculturists would be removed by legislative interference. The low price of wheat was stated to be the main cause of it: the price of wheat was certainly low, but there had not been an equal fall in the other descriptions of grain. The committee would, therefore, have to consider not only the price of wheat, but likewise the alterations which had taken place in the prices of different kinds of grain, and of other articles of agricultural produce. They would likewise have to ascertain and to weigh the changes already produced, and likely to be produced, by the new system of poor-laws. This committee was appointed, and a similar committee was appointed on the 18th of February by the house of lords. These committees, however, ended in doing nothing. On the 21st of July the chairman of the committee stated to the house of commons that they had resolved merely to report the evidence, without giving any opinion. A draft of a report had been drawn up by the chairman; but so much of it was objected

to by those who advocated the agricultural interest, that no report was made.

In the meantime the Marquis of Chandos had brought forward the distresses of the agriculturists. On the 27th of April he moved a resolution, “That in the application of any surplus revenue towards the relief of the burdens of the country, either by the remission of taxation or otherwise, due regard should be had to the necessity of a portion thereof being applied to the relief of the agricultural interests.” Lord John Russell objected to the motion, both on its merits and because he thought it premature to entertain such a question, before the agricultural committee, then sitting, had made its report. On a division it was lost by a majority of two hundred and eight against one hundred and seventy-two.

THE BUDGET, ETC.

{WILLIAM IV. 1836—1837}

By an act of the 4th and 5th of William IV. an additional duty of fifty per cent, had been imposed on spirit licenses. On the 10th of March Mr. Divett moved that the house should resolve itself into committee, for the purpose of considering the propriety of repealing this impost. The chancellor of the exchequer resisted this motion, opposing it principally on account of the circumstances under which it was brought forward.

Various proposals had been made at different times for the reduction or purification of the pension list. This list had been, in truth, as much a matter of political principle and of party feeling as of mere finance. In the preceding session government had consented that it should be printed; and on April 19th, Mr. Whittle Harvey moved this resolution on the subject:—“That a select committee be appointed to revise each pension specified in the return ordered to be printed on the 28th of June, 1836, with a view to ascertain whether the continued payment thereof is justified by the circumstances of the original grant, or the condition of the parties now receiving the same, and to report thereon to the house.” After stating that there were 1303 persons on the pension list, who received amongst them about £150,000 a year, Mr. Harvey went into a history of the restrictions which had been laid on the granting of pensions out of the civil list, from the original bill of Mr. Burke, down to the accession of his present majesty. The motion was opposed by Lord John Russell, on the ground that it contained a proposition against which parliament had already decided, and as being inconsistent with the practice which had been uniformly folio wed. Mr. Harvey’s views were enforced by Mr. Hume; but the motion was negatived by a majority of two hundred and sixty-eight against one hundred and forty-six.

The chancellor of the exchequer opened his budget on the 6th of May. He first explained that the receipts of the last year had exceeded the estimate by the sum of £338,000; while, on the other hand, the expenditure had somewhat exceeded the estimates. The income of last year, he said, had been £46,381,000, and he calculated that it would amount during the present year to £46,980,000. The total expenditure would be £45,205,807 leaving a surplus of £1,774,193. But out of this surplus payment would fall to be made, on account of the West Indian compensation during

the year, to the amount of £1,118,633, leaving, as the utmost disposable surplus with which parliament had to deal, a sum of £662,000. Had it not been for the sums payable to the West-India planters, there would have been a surplus of £2,000,000. In applying what surplus there was, he continued, to the reduction of taxation, he preferred selecting those taxes the repeal of which extinguished a source of fraud to those which merely afford relief. The duties he proposed to reduce were those on paper, plain and stained, on newspapers, and on farming buildings; and he proposed to give up those on taxed carts, and the additional fifty per cent, on spirit licenses. The amount of all the taxes which he proposed to remit would be £351,000 this year, though when the proposed reductions came into full operation it would amount to £568,000. At the same time, when the increased consumption of paper was taken into account, the money collected from the penny stamp, and the increase of duty from advertisements, he thought he might say that government would not lose £530,000 a year. The reduction of the stamp on newspapers was from fourpence to one penny, and this was deemed by many as being a sacrifice to the demands of a political party, and not a concession to principles of political economy or fiscal regulations. There were many other articles, it was contended, a reduction of the duties on which would contribute much more to the comfort of the community, and especially of those classes to which it was proposed to give cheap newspapers and cheap spirits. Sir C. Knightley moved, that instead of diminishing the duty on newspapers, the duty on soap should be reduced. This he represented as a duty which pressed not only severely on the lower classes, but unequally in comparison with the more wealthy—the soap of the poor man being taxed at seventy-five per cent., and that of the rich man only at thirty per cent. This motion was seconded by Mr. C. Barclay, who showed that the revenue would not sustain a greater loss from the reduction of this tax than would arise from the diminution in newspaper stamp duties. The chancellor of the exchequer, however, preferred a reduction of the stamp duties to those on soap; and on a division the motion was negatived by a majority of two hundred and forty-one against two hundred and eight.

As the law stood, there was no distinction between newspapers in regard of duty on account of their size, all differences of this nature having been removed in 1828. By the new bill, however, this distinction was restored, an additional duty being imposed on every newspaper containing more than a certain number of square inches of surface. Government was accused of having so selected the particular number of inches, as to impose the additional duty on some of the most influential journals opposed to them, while it did not apply to their supporters. This imputation was repelled by the chancellor of the exchequer; but it was still maintained that such must have been its effect. It was finally proposed and acceded to by the chancellor of the exchequer, that 1530 square inches, of which the paper might consist without any additional duty, should be limited to the printed part of the sheet, excluding the margin, which would meet the size of every paper in the metropolis. If the sheet exceeded 1530 square inches, but did not exceed 2295, an additional duty of one halfpenny was to be paid; and if it exceeded the latter quantity, an additional duty of one penny. Supplements were likewise to pay a penny additional. Mr. Grote subsequently moved that every newspaper should be stamped with a die peculiar to

itself—an enactment which was introduced into the bill. The bill enacted that two proprietors of a newspaper should be registered along with the printer and publisher. The Radicals contended that every proprietor should be registered at the stamp-office, and on the third reading a clause to this effect was carried, the chancellor of the exchequer himself agreeing to it, he conceiving that it might establish a salutary system of restraint. When the bill went up to the lords this was the only clause which encountered opposition; and Lord Lyndhurst moved that it should be omitted, on the ground that the regulations contained in it were arbitrary, inquisitorial, unjust, and unnecessary. It was defended by the lord-chancellor and Lord Melbourne; but the motion was carried by a majority of sixty-one against forty. The bill was returned to the commons without any other alteration; but on the motion of the chancellor of the exchequer it was laid aside, on the principle that the privileges of the members of the house of commons did not permit them to entertain an amended money-bill. The chancellor of the exchequer, however, immediately brought in a bill which was an exact copy of the one laid aside, except that the provisions in dispute were omitted, and this bill passed both houses without delay.

The speech from the throne on the opening of the session had recommended an addition of five thousand men to the navy. This increase was explained during the session to be necessary for the protection of British merchants in various parts of the globe—in the Pacific, at Lima, Mexico, Valparaiso, the coast of Peru, the northern coasts of the Brazils, the West Indies, Newfoundland, and the East India and the African stations. Demands had been made in all these quarters, and it was impossible to comply with them without withdrawing the British naval force from Spain and Portugal, where their presence was necessary. On these grounds government proposed this additional force, which was granted without a division. Mr. Hume, however, endeavoured to make a compensating saving, by moving a reduction of five thousand men in the army estimates; and when this motion was negatived, he moved a proposition which was directed against the foot-guards as being costly troops, maintained rather for show than use, and enjoying, for the sake of the aristocracy, prerogatives which were degrading to the rest of the army: this motion was also negatived.

DISCUSSIONS ON THE COLONIES, AND ON OUR FOREIGN RELATIONS.

At this period unfortunate differences prevailed in the Mauritius between a part of the inhabitants and the government authorities, and between one part of the population and another. They were said to have originated in the desire of the white population to evade some requirements of the law for the emancipation of the negroes, and were believed to have been aggravated on the one side by indiscretion, and on the other by the honest determination of the colonial judges. More than one judge had been recalled; and the consequence was, that their successors, who did not pursue the same course, and the governors of the island were denounced as being guilty of abusing their powers to prevent the due execution of the emancipation act. Mr. Roebuck took the discontented inhabitants of the Mauritius under his protection. On the 15th of February he moved, that a select committee should be appointed to inquire into the administration of justice in that colony. In supporting his motion, he

said, that the mother country had declared slave-trading to be a felony, and that an order in council was passed, in consequence of a resolution of that house, to the effect that no governor, judge, or registrar of slaves, should hold any species of slave property, either directly, in trust, or mortgage. He charged the whole body of these functionaries with holding slave property. He also charged Sir C. Colville, the late governor, with speculating and creating debts in slave property; and Chief-justice Blackburne, the officers of the supreme court, and nearly all the functionaries of the island, with the same gross violation of that order in council. Proof of the fact, he said, was to be found in the despatches of government; and he entered into a long statement of mal-administration in that colony. His statements, on the other hand, were represented by Sir George Grey, on the part of government, as being mere repetitions of charges which had been abandoned by those who had made them. The motion was supported by Dr. Lushington and Mr. Fowell Buxton, the latter of whom said, that few persons residing in that colony knew its affairs better than himself: the slave-trade prevailed in the Mauritius to such an extent, that no man could live for a single week as governor of the island and not behold it under his own eyes; yet not one of the persons engaged in the traffic had ever been brought to justice. The reason assigned for this impunity was this—that no court would authorise a conviction, and that no public functionary would countenance the man who dared to interfere with their trade. If a case arose in which it was necessary that the prosecution should be placed upon record, the accused was, on the first opportunity, set at liberty. The motion was negatived by a majority of two hundred and twenty-nine against seventy-one.

It has been recorded in previous pages that political discontents prevailed in Canada. A large portion of the population, French in its origin, democratic and intemperate in its views, led on by demagogues, insisted on demands equally inconsistent with a monarchical government, and with the supremacy of the mother country. Democratical as were their views, however, they had their supporters in the British parliament. On the 16th of May, Mr. Roebuck brought forward a proposition for the reform of the Canadian constitution, which was to consist in nothing less than in making both branches of the colonial legislature elective. By the statute 81 George III., c. 81, a constitution was given to the province of Quebec, which was thereby divided into Lower and Upper Canada. The constitution so conferred was professedly a copy of the constitution of England, the governor being as the king, the legislative council as the house of lords, and the house of assembly as the house of commons. The object, Mr. Roebuck said, which he had in view, was to amend the legislative council, which was no more like the house of lords at home than the governor of the colony was like the king of these realms. The members of the legislative council, unlike the house of lords, were poor, having no tenants, and consequently no influence over the people; they were a _clique_ holding power for their own purposes. On the explanation of ministers, Mr. Hume advised Mr. Roebuck to withdraw his motion, to which he conceded, stating at the same time that he did not believe government were prepared to say, that a measure for remedying the evils complained of was delayed only till the report of the commissioners was received.

Civil war was still raging in Spain, and at this time Great Britain had interfered in it—an interference which seemed to be becoming more direct as the situation of the queen became more critical, and the arms of the Carlists more successful. This subject occupied the attention of parliament. On the 26th of February Mr. Maclean directed the attention of the house of commons to the policy of this interference. Lord Palmerston said that the interference of this country had consisted, first, in executing the quadruple treaty; and, secondly, in the order of council which, by suspending the foreign enlistment act, had enabled the British legion to be formed which was now serving in Spain. The treaty was now a new one; it did not raise any new question—no motion had ever been made to disapprove of it—and its execution was admitted to be imperative.

In the beginning of tin’s year a body of Austrian, Russian, and Prussian troops took possession of Cracow, under the plea that it contained the elements of dangerous conspiracies against the neighbouring governments. This subject was brought before the commons on the 18th of March, by Sir Stratford Canning, from whose statement it appeared that the three powers had addressed a joint note to the senate of Cracow, requesting them to send away, within eight days, all Polish refugees and other dangerous persons; that the senate had remonstrated against so sweeping a denunciation of individuals, many of whom had resided there for years; and that military possession had, notwithstanding, been taken on the expiry of eight days. It appeared further that four hundred persons had been given up to the commander of the occupying force, while others had been required to find security for their good behaviour; and that the president of the republic had resigned, and his place been supplied by the direct nomination of the residents of the three powers. He contended that by the treaty of Vienna, the establishment of Cracow as an independent state was provided for by definite articles, being placed under the protection of the three powers now in possession of it. He further contended that Great Britain was an immediate party to this treaty; that its provisions were parcel of our solemn engagements; and that when circumstances so extraordinary occurred as that a state, recognised as free and independent, was occupied by foreign powers, we were called on to look narrowly at these events, and see whether or not any violation of the engagement in which we were interested had or had not taken place. Lord Palmerston found himself embarrassed in consequence of neither the facts of the military occupation nor its causes having been communicated to him officially by the three powers. Doubtless the demand made by the three powers appeared contrary to the letter of the treaty, for they had not required that the persons referred to should be given up by the powers to which they might belong, but that they should be within eight days removed from the territory of Cracow. At the same time, if statements made were true, as a justification of the measure, it might be considered as falling within the spirit of the treaty. It was alleged that a number of person, natives of Poland, assembled in the state of Cracow, and inspired by feelings which, perhaps, in their peculiar circumstances were natural, had established a communication with the inhabitants of some of the Russian and other parts of Poland, calculated to disturb the tranquillity of the neighbouring states. But, although the three powers might be justified in requesting such persons to depart, it did not follow that they were

justified in going to the extreme of military occupation because their demand was not immediately conceded. As yet no sufficient reason had been given either for the entrance of the troops, or the shortness of the interval which had been allowed between the demand and the entrance which had been effected. All friendly means should have been exhausted before any such measures were resorted to; and, under all circumstances, as Great Britain had been a party to the treaty of Vienna, it was the duty of those powers when they made the demand, and before they had recourse to occupation, to have communicated to the government of this country the grounds on which they thought themselves entitled to act, and the intentions they were about to put into execution. Messrs. O'Connell and Hume were violent against the three powers. They advised, that if any part of the Russian Dutch loan due by this country was not yet paid, payment should be refused till satisfaction was made to Cracow. Lord John Russell deprecated the language used by Messrs. O'Connell and Hume, the more particularly as the honour of Great Britain was not committed in the transaction. Lord Dudley Stuart, however, contended that the honour of Great Britain had been violated. Was it, he asked, no affront for these three powers to tell a great country like this, that the treaty which settled the possession of all the powers of Europe, and to which it was a party, should be infringed and violated at their pleasure? By the violation of the neutrality of Cracow a serious blow had been inflicted on our national reputation, and on the security of Europe.

During this session a lengthened discussion took place regarding the dangers to which Europe was exposed from the systematic encroachments of Russia. The subject was introduced by Lord Dudley Stuart, who moved an address for the production of the treaty of Constantinople between Russia and the Porte, the treaty of St. Petersburg, the correspondence between the British government and the governments of Russia and Turkey relative to these treaties, and the correspondence between the courts of London and St. Petersburg regarding the remonstrances made by this country against the conduct of Russia towards Poland. In reply, Lord Palmerston said, that he had no objection to produce the treaty of Constantinople, or Hoonkiar Skelessi; but he would not concede the production of others. Government, in fact, was not officially possessed of the treaty of St. Petersburg, and therefore it could not be supplied. The correspondence, again, between this country, Russia, and Turkey, relative to these treaties could not be produced without inconvenience to the public service, and would not answer any object which could be contemplated by the motion. With respect to the correspondence which had taken place on the subject of Poland, he thought its production would not serve any useful purpose. No good could arise from publishing to the world, after an interval of three years, all the correspondence which might have passed between two governments on a subject respecting which their opinion differed, especially as nothing had occurred to make the publication of this correspondence necessary. Lord Dudley Stuart expressed himself satisfied with the papers which the foreign secretary had expressed himself willing to give. Mr. P. M. Stewart, however, thought that Lord Palmerston was either too blind as regarded Russia, or too confiding. He referred to his lordship's predictions in 1832 regarding Poland. He had said, "As to the idea which is entertained by some honourable gentlemen of its being the intention of Russia to

exterminate a large kingdom like Poland, either morally or politically, it is so utterly impracticable that there need be no apprehension of its ever being attempted." Since these words had been spoken, Poland had been politically exterminated, and every exertion had been made to exterminate her morally. On the 20th of April Mr. P. M.

Stewart brought this subject again before the house, justifying himself for renewing the discussion on the ground that, since the last debate, Russia had actually interfered with our commerce on the Danube. In direct violation of treaties, he said, which declared that the navigation of the Danube should be free to ships of all nations, Russia had extorted tribute from British vessels passing down that river; and she was putting a stop to the trade not merely of England, but of the whole of central Europe on that magnificent stream, by wilful neglect to cleanse its channel, which would soon be so filled up that a Thames punt would not be able to cross it. Mr. Stewart moved—"That an address should be presented to his majesty, praying him to adopt such measures as might seem best fitted to protect and extend the commercial interests of Great Britain in Turkey and the Euxine, and likewise to send a diplomatic agent forthwith to the free and independent state of Cracow." This motion was seconded by Sir Edward Codrington, who urged the necessity of immediately arming, as an expedient which had uniformly been successful in checking aggression. In reply, Lord Palmerston informed the house that government had already sent a consular agent to Cracow, so that this part of the proposed address was unnecessary. Government, he continued, concurred in the importance of maintaining and extending the commercial relations of Great Britain with Turkey, Persia, and the neighbouring countries; but, in his opinion, nothing had happened to confine or check them. There could be no doubt that, by the treaty of Vienna, the navigation of the Danube was free to the commerce of all countries in Europe. We had, however, suffered no wrong as yet; and in dealing with foreign nations, it was not prudent to anticipate injuries at their hands: it was enough to deal with events when they had occurred. Members of all parties expressed similar opinions; and Mr. Stewart finally withdrew his resolution.

On the establishment of the kingdom of Greece, Great Britain, France, and Russia, had agreed by treaty to guarantee a loan of 60,000,000 of francs for the use of the new monarchy. Two instalments of 20,000,000 each had been paid. Greece, on the other hand, had undertaken certain obligations in relation to her revenue and its application; and Russia, on the ground that these obligations had not been fulfilled, refused to concur in raising the third instalment. Under these circumstances ministers found it necessary to introduce a bill for authorising the advance of the money by this country alone. Lord Palmerston made the proposal, and it encountered considerable opposition even from the ordinary supporters of government. The resolution, however, moved by Lord Palmerston, authorising his majesty to guarantee the portion to which this country was liable of the third and last instalment of the loan to be advanced to the King of Greece, was carried by a majority of eighty-one against forty. The bill founded on the resolution encountered the same objections which had been raised to the resolution itself; but it passed without any determined opposition. In the house of lords the Duke of Wellington said, that while he admitted the measure was necessary, he thought that the necessity was an unfortunate one, and might have

been avoided. It did not appear to him that proper measures had been taken to obtain the concurrence of Russia. The first demand made by Greece was for 3,000,000 francs; why was not an effort made to obtain the consent of Russia to advance her share of this sum? Why was Russia left out of that part of the negotiation? If Russia had been called on for her portion, it would have amounted to nearly the sum which this country was about to advance under existing circumstances; and the consequence would have been this—that the three powers would now be placed on the same footing. But how would it be hereafter? Great Britain would be a creditor of Greece to the amount of 20,000,000 francs, with a claim on the resources of Greece, which must and would be pressed, for the interest and sinking-fund of that amount of debt. On the other side, Russia would have in hand the third part of 20,000,000 francs to issue to Greece whenever, and under whatever circumstances she thought proper. France was placed in a similar situation; and both these countries would, therefore, stand in a more desirable relation towards Greece, having always the power of conferring a benefit, than that which would be occupied by this country, who could only be a creditor pressing for payment of a debt.

PROROGATION OF PARLIAMENT.

During this session the proposal for removing the civil disabilities of the Jews was brought forward by the chancellor of the exchequer himself, and was carried through the commons, but was rejected by the lords. Mr. Rippon also renewed a proposal he had made in 1834, for the expulsion of the bishops from the house of lords; but his motion was lost by an overwhelming majority. Mr. O’Connell moved for leave to bring in a bill to reform the whole house of lords, by making that body elective, a motion which gave rise only to laughter. Mr. Grote also brought forward his annual motion for vote by ballot; but it was lost by a majority of one hundred and thirty-nine against fifty-one. Parliament was prorogued on the 20th of August, by the king in person.

THE AFFAIRS OF IRELAND.

The royal speech had announced that tranquillity prevailed in Ireland; but yet that country was not in a state of quiescence. Agitation was still at work: societies and combinations were being formed, and the angry passions of the multitude lashed almost into fury. At this time the authorities were enforcing the payment of tithe; and this excited the wrath of the leaders of the Popish party. This wrath was aggravated by the refusal of the house of lords to create, by passing the ministerial municipal bill for Ireland, a mass of Catholic corporations, of which there was every reason to apprehend that, while they would not have any useful duties to discharge as machines for municipal government, they would become powerful and legalized engines for working out the great aim of the Papists—the destruction of the Protestant church. The clauses which went to reconstruct the Irish corporations were struck out by the lords on the 17th of May; and on the following day Mr. O’Connell put forth a letter “to the people of England,” the object of which was to rouse them to show their gratitude to Ireland for the aid which she had lent them in carrying the Reform Act, by destroying the character and rights of the house of lords. This epistle, however, was addressed to deaf ears; his sentiments rather tended to call forth expressions of opinion that the lords should fearlessly exercise their constitutional

rights. In his letter, he had threatened to re-organize agitation; and finding his exertions to that end useless in England, he resolved to cany out his threat in Ireland. The course which it was wished that the people of Ireland should adopt, was explained by Mr. Shiel in clear terms. It was wished that a strenuous and simultaneous movement of the popular masses should take place; that the millions of Ireland should be roused; and that the might which slumbered in her arm might be developed; above all, that “the active system of organization should again be strenuously applied, with its weekly meetings, its appeals to the people, its enthusiasm, and exciting eloquence.” Doubts were expressed by some persons of the prudence of forming a permanent association at present. Mr. Pigott, a barrister, however, suggested an expedient, by which all the advantages of association might be secured without its name. He recommended that the requisitionists, who had called a public meeting in Dublin for the 23rd of May, should constitute themselves an open committee, with power to add to their numbers, which should meet from time to time as occasion might require, and should arrange communications with the most active inhabitants of the different towns and districts who might be disposed to second their object, in order to obtain petitions from all parts of the country. This plan was adopted; and the objects of the new agitation were declared to be municipal institutions, founded on the same principles of popular election and control which had been adopted in England, and the speedy settlement of the tithe question. This committee dispatched circulars all over Ireland, urging the people to hold public meetings for the purpose of voting petitions to parliament on these two questions, and directing the petitioners how to draw up their petitions. It was soon found, however, that this plan was not effective, and that, therefore, a revival of the machinery of the Catholic association would be necessary, in order to exercise the required influence over the public mind, and to raise funds for the support of agitation. The “petition committee,” as it was called, complained in a meeting, held on the 1st of July, that petitions came in slowly, and that the people of Ireland were dormant and dead to what ought to be now their feelings, of nationality. Under these circumstances it was deemed prudent to “recreate the active system of organization devised by Mr. O’Connell, with its weekly meetings,” and other appliances. A “general association” was now formed on the model of the Catholic association, using the same species of influence, but bearing another name and professing different objects. The two declared objects of the association were to obtain the abolition of tithes and municipal corporations; to these were added a minute attention to the approaching registrations, in order to increase the democratic party in the house of commons. These and the other purposes of the association required money; and accordingly the “justice rent” was established. The association was to meet once a week in the corn-exchange; Mr. O’Connell presented to it the chair of the Catholic association, which had been left in his possession; and the walls of its place of meeting displayed in large characters these words:—“Scotland has municipal reform; England has municipal reform; Ireland has been declared unworthy of municipal reform.” After Mr. O’Connell’s arrival, in August, the association was put into full operation. From him proceeded addresses to the people of England and Ireland, the complete organization of the justice rent, the appointment of committees, and of a reporter on the election registry of every county, city, and town of Ireland. It was

resolved that officers, called pacificators, should be appointed in every parish in Ireland. Each parish was to contain two pacificators; one named by the clergyman of the majority of the parish, and the other by the inhabitants themselves. There was, therefore, the general association sitting in Dublin, holding its weekly meetings, with its registry inspectors, and its agitating pacificators scattered all over the country. It was to maintain this system that justice money was required; and in general the business of each weekly meeting consisted in announcing the amount of “rent” collected during the preceding week, or in receiving more. There was talking at these meetings, it is true, but the term business can scarcely be applied to the verbose and unmeaning speeches in which the orators indulged. The usual topics were the greatness and determination of Ireland; the demand for justice by getting new corporations and abolishing tithes; the flattery of every one who sent money to the association; and the abuse of those who differed from the agitators in opinion. Yet Mr. O’Connell and his party did not fail to stir up the evil passions of the deluded multitude. These “thundering resolutions” were put forth by the association:—“Resolved—That it is incompatible with the principles of religious liberty that any man should be compelled to pay for the ordinances of a church with which he is not joined in communion. That, as under the present appropriation of tithe-composition, a tribute is levied from the whole nation for the uses of the church of only the one-tenth portion of the community, the people of Ireland are, therefore, justified in demanding the total extinction of an assessment so applied. That no settlement of the tithe question can give satisfaction to the people of Ireland which is not founded on the foregoing principle. That the people of Ireland be called upon not to desist from all legal and constitutional means of redress, till they have obtained full and complete relief from an impost equally oppressive and degrading. That, in carrying out these resolutions, the representatives of the Irish people should always keep in mind the adopting such a prudent and wise course as shall enable them to realise for the Irish nation the greatest possible quantity of good, and as shall also enable them to support and sustain in office, without any violation of principle, the first and only true and honest government that has ever been known in Ireland.” This call upon the peasantry not to desist from seeking the abolition of tithes “by all legal and constitutional means of address,” by no means tending to diminish the resistance still shown to every attempt to enforce the steps necessary to the recovery of tithes, where a protecting force did not attend. The process-server was still hunted; mobs still attempted to set aside sales of distrained cattle; and now that the efficacy of the exchequer-process, by merely posting notices instead of service, had been felt, the writs of that court would have been equally set at defiance by brute force, but for the power which they possessed of compelling police and military aid. A scene of bloodshed occurred at Dunkerrin, in the county of Tipperary. A mob attacked a commissioner of the exchequer and his party, in the act of serving a writ, and the bailiff was murdered on the spot, while one of the murderers was killed by a shot from the police. Mr. O’Connell and the association demanded justice for the death of the latter; but not a word was said on the heinousness of his crime, or a syllable of regret was uttered concerning the death of the bailiff.

FOREIGN RELATIONS.

The whole Spanish Peninsula was torn with political dissensions. Revolutions and counter revolutions disturbed British relations with Portugal especially, and prevented the execution of a treaty of commerce which was looked for in England, as a benefit to both nations. England sympathised too much with the faithless queens of both the governments of the Iberian Peninsula, which had the effect of protracting the disturbances which prevailed, and of exciting angry feelings against England. The gallant men who as British subjects volunteered to serve the queen ‘of Portugal were refused their pay, and treated with contumely and injury, just as the British legion in Spain had been used.

The relation of the Sublime Porte to England was also a source of embarrassment, especially to the former country. On the one hand, the pressure of Russia, jealous of her predominating influence, and on the other, the efforts of Britain and France to counteract the exclusive character which that influence was assuming, imposed on the divan the necessity of giving satisfaction to all the competitors for favour. During this year an English merchant of Constantinople, of the name of Churchill, while shooting in the neighbourhood of Scutari, accidentally wounded a Turkish boy. He was dragged to the guardhouse of Scutari, where the officer on duty ordered him first to be bastinadoed, and then sent to the governor of Scutari. The governor declined interfering, and caused him to be conveyed to the office of the reis effendi, or foreign minister, by whom he was thrown into prison. Mr. Churchill immediately addressed a letter to the British consul, acquainting him with the accident that had occurred, and the manner in which he had been treated, claiming, as a British subject, the interference in his behalf. The consul sent a dragoman to the Porte to reclaim his countryman, promising to keep him in custody till the accusation brought against him had been inquired into. This application was rejected; and the British ambassador then sent his interpreter to the reis effendi, who promised that the prisoner should be delivered over to his own authorities. Instead of this promise, however, being observed, Mr. Churchill was thrown into the Bagnio, and fettered in iron chains, by virtue of an order granted by the sultan. The British interpreter again waited on the reis effendi, and expressed to him the surprise Lord Ponsonby had experienced on witnessing so direct and intentional an infringement of the treaties existing between the king of England and the sultan; committed, too, by the very individual appointed by the Porte to preside over their strict and scrupulous observance. The reis effendi now desired one of his officers to proceed with the English interpreter to the Bagnio, and cause the detained merchant to be given up; but the governor of the Bagnio refused to comply with the request, pretending that since the prisoner had been placed under his care in virtue of a firman, he could not release him without a written order from the Porte. Lord Ponsonby now addressed an official note, stating that, as the minister of foreign affairs had violated one of the most important stipulations of the treaties existing between Great Britain and Turkey, he was obliged to declare to the government that he would not any longer hold official communication with his excellency, and to submit to the Sublime Porte, and emphatically to declare to the sultan himself, his just complaint against a minister who had dared to violate the laws

of his own sovereign, and insult the British nation. This step procured the liberation of Mr. Churchill; but Lord Ponsonby refused to consider this alone as any reparation of the breach of the treaties securing to British subjects the right of being tried and punished only through the agency of their own official representatives. His lordship insisted that the reis effendi should be dismissed from his office. He insisted upon this the more strenuously on account of the predominating influence of Russia; for if the injured party had been a Russian subject, the Turkish government would have hastened to make humble apologies, and would have consented to give any satisfaction which the offended dignity of the czar might have required. The Porte endeavoured to mitigate the demand lay negociation; but Lord Ponsonby refused to accept of any satisfaction which did not include the dismissal of the minister. As the Porte seemed to think it below its dignity to grant such a request when merely made by an ambassador, he said he would refer the matter to his government at home. The British merchants, likewise, resident at Constantinople, transmitted an address to Viscount Palmerston, representing the necessity of supporting the demand made by the ambassador. They remarked:—"We will concede that the first outrage was committed by subordinate local authorities, whose acts might admit of excuse or explanation; but the subsequent imprisonment was deliberately ordered by a high public functionary, the official depositary, in fact, of the treaties existing between the two countries, one who could not be ignorant of the privileges they guaranteed, and who was not ignorant that in the instance in question he was grossly and intentionally violating them. Considering, therefore, that the present is not the only instance, although the most flagrant one, of personal violence offered to British subjects, we cannot but see in their repeated occurrence, more especially of late, an intentional infraction of the treaties, and, indeed, the existence of some fixed design on the part of the Turkish government to assume to itself a power of control in such matters which it would be dangerous ever to concede." Before the determination of the British cabinet could be known, the divan of Constantinople had resolved to yield: the reis effendi was dismissed, with a monthly pension of 10,000 piastres; but it was on the pretence that bad health disabled him from regularly attending to the duties of his office. It was said afterwards, that the British ministry viewed the matter in a less serious light than that in which it had been viewed by Lord Ponsonby; and that they were not inclined to consider the demand he had made as one on which it was necessary to insist. It is certain, indeed, that the dispatches of the Turkish envoy ill London, subsequent to the dismissal of the reis effendi, assured the divan of the readiness of the British ministry to settle the controversy on conditions much milder than those on which Lord Ponsonby had stated to be the only terms which his majesty's government could consider proper reparation for the insult offered to its dignity. It is also certain that the credit of the British ambassador, whose successful firmness was neutralised by his government, was greatly diminished at the Porte.

CHAPTER XLVII.

{WILLIAM IV. 1836—1837}

Meeting of Parliament..... Consideration of the State of Ireland..... Irish Municipal Corporations Bill..... Question of Establishing a System of Poor-Law in Ireland..... Irish Tithe Question..... Question of Church- Rates..... The Church of Scotland..... Notices of Motions for Constitutional Changes..... Operation of the New Poor-Laws..... The Affairs of Canada..... State of the Banking System, &c. Consideration of the Foreign Policy of England under the Whig Administration..... Motion on the State of the Nation..... Illness and Death of the King..... Remarks on his Reign, Character, &c.

MEETING OF PARLIAMENT.

{A.D. 1837}

Parliament reassembled on the 31st of January. The session was opened by commission; and the speech of the commissioners referred to the contests in Spain, and the recent events in Portugal. The speech also called the attention of both houses to the state of Canada, stating that the reports of the commissioners appointed to inquire into which, would be laid before them. It further recommended to their serious deliberation the provisions which would be submitted to them for the improvement of the law and the administration of justice, and conveyed his majesty’s desire that they should consult upon such further measures as might give increased stability to the established church. The revenues, moreover, formed a subject of congratulation in the speech, and an early renewal of inquiries into the operation of the act permitting the establishment of joint-stock banks. The concluding topic of the speech was Ireland; such measures as might improve the condition of that country were recommended to be adopted. The present constitution of the municipal corporations of that country, the collection of tithes, and the establishment of some legal provision for the poor were especially noticed as subjects worthy of their attention.

The address in the lords was moved by the Earl of Fingal, and seconded by Lord Suffield. In the commons the address was moved by Mr. Sandford, and seconded by Mr. Stuart Villiers. The debate that followed was enlivened by Mr. Roebuck, who made a violent assault on the whole system of ministerial policy. Sir Robert Peel referred to those parts of the speech relating to the affairs of Spain and Portugal. His remarks with reference to Spain were confined to that passage in the address which expressed the satisfaction of the house that his majesty’s co-operating force had rendered useful assistance to her Catholic majesty. Whatever opinion he might hold on the policy of the quadruple alliance, he had always considered it our duty to fulfil the treaty so long as we stood pledged to it. By that treaty we stipulated to give the assistance of a naval force to the arms of the queen of Spain; and he supported the address on the understanding that the aid we had given had been strictly of that character. The distinction was important. The grant of a military force might have supposed an interference with the civil dissensions and party conflicts of Spain. Might not the precedent be equally adopted by despotic governments claiming a right to support absolute principles among their neighbours? where then would be the peace of Europe? The next paragraph in the address illustrated the danger of

interfering in the civil affairs of other countries. We express our regret that “events in Portugal have occurred which, for a time, threaten to disturb the internal peace of the country.” These events are but the corollary of the revolution in that country in 1834, and which was then called in the speech from the throne “a happy result.” A consequence of this “happy result” is that we have now six sail of the line in the Tagus. For what purpose? To defend the queen of that country from an attack on the part of her own subjects; and to protect the lives and property of the English residing there from the danger with which they are threatened. In reply, Lord Palmerston remarked, that, “when we stated that the effect of the treaty in 1834 was to put an end to the civil war in Portugal, we did not take upon ourselves the responsibility of the government of that kingdom in all future times, or undertake that it should be henceforth free from the civil disturbances to which every country was liable.” This might be true; but if the last revolution in Portugal was the result of the one which we had been instrumental in bringing about, then we were in no slight degree responsible for its occurrence.

CONSIDERATION OF THE STATE OF IRELAND.

Ireland was still the cardinal point of our domestic politics. At this time, in fact, Irish politics had acquired more importance than ever. The state of that country was brought before parliament this session, in a petition from the Protestants, setting forth the dangers by which they were surrounded from the effects of the agitation which everywhere prevailed. This petition was presented to the lords by the Marquis of Downshire on the 28th of April, and it was the occasion of an interesting debate on the state of Ireland. The topics insisted on, however, were for the most part identical with those which had for a series of years been repeatedly adduced in the commons, so that a repetition of them is unnecessary. The debate unfolded one great fact: namely, that the Protestant party were not behindhand with the Catholics in the vigour and perseverance of their agitation.

Government lost no time in bringing the politics of Ireland before parliament. On the 7th of April Lord John Russell moved for leave to bring in a bill for the amendment of the Irish municipal corporations. The bill differed from that of the last year on one material point only. By the former measure the town-councils were not allowed to interfere in the appointment of sheriffs, which was vested in the crown; but they were now authorised to nominate or suggest a certain number of persons for that office; the power of selection, rejection, and appointment being given to the lord-lieutenant. Sir John Hobhouse made an intimation, that the fate of this measure would decide that of the cabinet; he asked of the party opposite, if they succeeded in throwing out this bill and so coming into office, upon what principle they hoped to govern Ireland? Was it by Orange, neckerchiefs and acclamations that they expected to do so? They ought to be prepared to give a decided answer to the question. Sir Robert Peel said, that he doubted the right of any one to catechise his party on the results of a contingency. The motion, which was merely for leave to bring in the bill, was not opposed, and the two parties had therefore no opportunity of making trial of their strength on a division.

The order of the day was read for going into committee on the reform of municipal corporations on the 20th of February. Lord Francis Egerton moved an instruction similar to that which he had brought forward in the last session, to the effect that the committee be empowered to make provisions for the abolition of corporations in Ireland, and for such arrangements as might be necessary on their abolition for securing the efficient and impartial administration of justice, and the peace and good government of Ireland. A long discussion ensued and was adjourned. On the following day Mr. Serjeant Jackson delivered a long speech, which was chiefly directed against the government of Lord Mulgrave. Mr. Vesey followed in the same track. The bill was supported, on the other hand, by Mr. E. L. Bulwer, Lord Howick, and Mr. Roebuck. The latter asked Sir Robert Peel this plain question:—"Can he pretend to carry on the government of Ireland on entirely different principles from those of Great Britain? Does he believe that, at this period of man's history, and by the side of the most enlightened nation of the earth, doctrines of government suited for the meridian of St. Petersburg can be carried into actual practice? In a word, Does he believe that the system of Protestant supremacy can be continued in Ireland without civil war?" On the third night of the debate, Sir James Graham delivered a powerful speech in support of Lord Francis Egerton's amendment. Mr. Shiel followed, in a speech which was more personal than argumentative. Sir Robert Peel deprecated this mode of conducting the debate. He had been reproached, he continued, by Lord Howick for not having earlier seen the necessity of yielding to the Catholic claims. Would the noble lord ask of his noble colleague of the foreign department, why he was not an earlier convert than he had proved to reform? Would he put the same question to the head of the present administration? If it were blindness in him not to foresee in 1825 the necessity of concession to the Catholics, was not the blindness of Lord Melbourne as great when, in 1826, he even opposed the transfer of representatives from Penryn to Manchester? Mr. O'Connell followed, urging his usual topics—the long misgovernment of Ireland, and the necessity of the repeal of the union as her only chance of obtaining justice. After a reply from Lord John Russell, the house divided; when Lord Francis Egerton's amendment was negatived by a majority of three hundred and twenty-two against two hundred and forty-two.

Little discussion took place on the bill when in committee. The third reading was moved on the 10th of April, when Mr. Goulburn opposed the measure as pregnant with danger to the church, and tending by its renewed agitation to place the two houses of parliament in an undesirable situation. Another long debate ensued, in which the bill was defended by Colonel Thompson, Lords Morpeth and John Russell, and Messrs. Bulwer, Charles Villiers, and O'Connell; and opposed by Lord Stanley, Sir James Graham, and Sir Robert Peel. The debate lasted two nights; and on a division the bill was carried by a majority of three hundred and two against two hundred and forty-seven.

The bill was introduced to the house of peers by Lord Melbourne on the 13th of April; and the second reading was fixed for the 25th of the same month. On its introduction the Duke of Wellington gave no opinion on the subject of the bill, but contented himself with observing, that it was only one of the three measures relating to Ireland which had been recommended to the consideration of the house in the

speech from the throne. He added, that, as he thought it desirable before the house decided on the present measure it should have the other two before them, he hoped the noble viscount would appoint a more distant day for its consideration. Lord Melbourne objected to this, stating at the same time that he could not see any necessary connexion between the three measures. In moving its second reading, Lord Melbourne dwelt at great length upon the good effects which had already resulted from the grant of a similar boon to England. On these grounds he called upon the house to accede to the measure. It was only a little to give, but a great deal to withhold. The Duke of Wellington said, that he would agree to the second reading of the bill, on the principle that the existing corporations ought not to be continued. He would not, however, pledge himself to consent to the present measure, to various details of which he had strong objections. He would endeavour to remove these in committee; in the meanwhile he could not but express his surprise that Lord Melbourne should have again brought forward such a measure. Lord Lyndhurst expressed similar sentiments. In reference to the surprise expressed by the Duke of Wellington that the bill should have been reintroduced, Lord Melbourne said the case was not a singular one; and he reminded the duke that he had introduced and carried a measure to which he had been opposed. Lord Brougham regretted that, from the tone of the speeches of the Duke of Wellington, he was led to believe that they would only throw away some five or six weeks of their time in unprofitable discussions on the subject, and be left at the end of this session where they were at the close of the last. This proved to be the true interpretation of those speeches. On the 5th of May, when the order of the day was read for the house to resolve itself into committee on the bill, the Duke of Wellington rose, and moved to defer the committal till the 9th of June. His reason for asking this delay was, that he was anxious to see the result of the deliberations of the other house of parliament on the pending measures of Irish tithe and Irish poor-law. Lord Melbourne objected to the proposed postponement as inconvenient in itself, and dangerous in the motive on which it was grounded. There was no connexion between the church and corporation bills; and if the house of commons should follow the example of the lords, and refuse to consider one set of bills until the lords had passed another to their satisfaction, he apprehended their lordships would not have the best of the struggle. As for the appropriation clause, he denied, as his grace had intimated, that it had been abandoned; it existed in the new bill as strongly as in the former one. The Duke of Wellington replied, that though he objected to much of the present measure, he was not adverse to the establishment, under certain circumstances, of local jurisdictions in Ireland. The Earl of Wicklow and Lord Fitzgerald made yet ampler concessions than his grace; and the Marquis of Lansdowne argued on this, that they assented to the principles of the bill; and that, therefore, no further delay should take place in its progress. Lord Brougham said that he drew no happy augury of the fate of the bill from the very significant speech of the Duke of Wellington. He would not say any sinister motive lurked in his proposition for delay; but if he was averse to the present measure, as he appeared to be, why did he not throw it out altogether? It was very well to talk of amendments; but their lordships would so alter the bill, that the man who drew it would not know it again. Although the different sections under the duke’s command might move by different routes, they would all meet in the end. On a division the motion for postponement

was carried by a majority of one hundred and ninety-two against one hundred and fifteen.

Although the postponement decided on was for more than one month, there appeared to be little probability that either the tithe or the poor-rate bill would be before the lords by the assigned period for resuming the municipal corporations bill. Under these circumstances, when the 9th of June arrived, Lord Lyndhurst rose to move a further postponement of the bill till the 3rd of July next. His lordship took occasion again to state his objections to the measure. Lord Melbourne opposed the further postponement of the bill; but on a division the motion was carried by a majority of two hundred and five against one hundred and nineteen.

QUESTION OF ESTABLISHING A SYSTEM OF POOR-LAWS IN IRELAND.

A board of commissioners had been for some time busied with the consideration of a system of poor-laws in Ireland, and in the last session a report containing the result of their inquiries was laid before parliament. This report, however, was not satisfactory to government. They thought it desirable that some inquiry should be made as to how far it might be practicable to introduce into Ireland a system of relief based upon the principles of the new English poor-law. For this purpose, Mr. Nicholls, one of the commissioners, was sent to Ireland to prosecute the matter by personal investigation. The report of Mr. Nicholls was very able, and on it government grounded the measure which they intended to bring forward on the subject. This measure was introduced in the commons by Lord John Russell on the 13th of February. In introducing it, his lordship called the attention of the house to that part of the king’s speech at the opening of the session, in which the establishment of some legal provision for the poor was recommended. At the same time he laid on the table of the house a copy of Mr. Nicholl’s report upon the subject. In his speech, his lordship first dwelt upon the benefits derivable to a country from a well-administered system of poor-laws; upon its tendency to preserve peace, prevent vagrancy, diminish crime, and establish harmony among all classes of society. Having dwelt on this subject at length, Lord John Russell then stated the leading provisions of the bill as recommended by the commissioner. With respect to the expense of the system, he said, it had been calculated that the whole average charge for each person in the English workhouses, including lodging, fuel, clothing, and diet, was one shilling and sixpence per week. If, therefore, we take one hundred union houses, each containing eight hundred inmates, and suppose them all fully occupied, the annual expense for the whole would be £312,000.

In order to understand the nature of the bill brought in by Lord John Russell, however, it is necessary to give a brief extract of the report made by Mr. Nicholls. He stated that he found the people almost universally favourable to the introduction of a poor-law. But with respect to the question of how far the introduction of the English poor-law was practicable in Ireland, two difficulties suggested themselves—first, whether the workhouse system could be relied on as a test of destitution in Ireland; and secondly, whether the means and machinery existed there for the formation of unions as in England. The great principle of the workhouse system is, that the support which is afforded at the public charge there should be less desirable than

that to be obtained by independent exertion. It would be impossible to make the lodging, clothing, and diet of the inmates of an Irish workhouse inferior to those of the Irish peasantry, and therefore this security would not be found for the efficiency of the workhouse-test. On the other hand, it is to be remembered that the Irish are naturally or by habit a migratory people, fond of change, full of hope, and eager for experiment. They had never been tied down to one limited settlement, and consequently confinement of any kind would be irksome, and therefore the test of the workhouse is likely to prove fully as efficient in Ireland as in England. With respect to the' supply of local machinery for the execution of the law, Mr. Nicholls considered that by making the unions sufficiently large, there would be no difficulty of obtaining boards of guardians of competent intelligence and activity. These might, he said, be elected by the contributors to the county cess; but Mr. Nicholls thought that, in the first instance, large general powers should be vested in some competent authority to control and direct the proceedings of the board of guardians, and, where necessary, to supersede their functions altogether. He further proposed, that the same central authority should be empowered to dispense with the election of the first board of guardians, and to appoint such persons as it should think proper to act in their stead. It was further proposed, that the number of magistrates acting officially as guardians should not exceed one-third of the elected members of the board; and that no clergyman or minister of any denomination should be eligible to act as ex-officio guardian. The enactment of a provision for the destitute at the common charge, would give the community a right to interfere with the proceedings of individuals, so as to prevent the spread of destitution, and enable it to guard itself from loss and damage by the negligence or obstinacy of any of its members. With this view, it was recommended that the central authority should appoint, or empower the board of guardians to appoint, one or more wardens or head-boroughs for every parish, who might superintend the affairs of the district. Assuming the general practicability and expediency of establishing a system of poor-law in Ireland on principles the same with those of the English law, Mr. Nicholls proceeded to consider the details of its application in that country. It was proposed that all relief out of the workhouse should be absolutely refused. Another point to be insisted upon, was, that no individual of a family should be admitted unless all its members entered the house. All relief was to be given by the orders and direction of the central authority. With respect to the formation and regulation of the local machinery, the report recommended that, as in England, the appointment of guardians should be vested in the ratepayers and owners of property in the union. A scale was proposed, by which the number of votes possessed by an individual rate-payer might be raised from one to five, as his rating increased from five pounds to two hundred. The commissioners had proposed that the owner should pay two-thirds of the rate, and that the remainder should fall on the tenant: Mr. Nicholls thought that it would be better to divide the charge equally between the two parties. It was not recommended to establish a parochial settlement in Ireland, as the habits of the people were migratory: if a law settlement should be established, it would be a union of settlement, making the limits of the union the boundary. The simpler the conditions on which this settlement was made to depend, it would be the better. They might, it was stated, be limited to two—birth, and actual residence for a term of years; but, on the whole, it would be better to dispense with

settlement altogether. One great object in the establishment of a legal relief for the destitute would be the right it afforded to take measures for the suppression of mendicancy. The present state of Ireland, and the feelings and habits of the people, threw considerable difficulty in the way of an immediate enforcement of such a prohibition. The best method, it was stated, would probably be to enact a general prohibition, and to cast upon the central authority the responsibility of bringing the act into operation in the several unions, as the workhouses became fitted for the reception of inmates. With respect to emigration, Mr. Nicholls did not think it should be looked to as an ordinary resource; the necessity for its adoption would be regarded as an indication of disease, which it would be better to prevent than thus to relieve. The source, however, would be one which must be employed as a means of relief whenever any population became excessive in any district, and no opening for migration to other districts could be found. In the conclusion of his report, Mr. Nicholls considered the nature and appointment of the central authority upon which the whole administration of the new system would depend. He was in favour of its being carried into effect by the existing English board, inasmuch as the object being to carry the English system into Ireland, it could only be done by persons practically conversant with its administration.

Such were the principles on which the measure introduced by Lord John Russell was founded. On its introduction, Irish members of all parties expressed their satisfaction with it. Mr. O’Connell, however, though he did not oppose it, expressed himself less sanguine as to its beneficial results. The hundred workhouses which it was proposed to erect would afford shelter and relief to eighty thousand persons in Ireland only; and he asked, what proportion that bore to the mass of destitution in Ireland? He objected also to the proposed gradual introduction of the measure. They would thereby create a state of transition, during which neither relief nor charity would be afforded to the suffering population of the country. He disapproved, also, of that part of the plan which confined relief and employment to the workhouses. There was no part of Ireland, he said, which might not be made ten times more productive than it was, and yet it was proposed to feed men in idleness in a workhouse. The system of workhouses acted well in England, where a sort of slave labour was adopted in them, to force the idle to seek employment elsewhere; but what could be expected from it in Ireland where men worked for twopence per day? Many expected that a poor-rate in Ireland would prevent the influx of Irish labourers into England; there could not be a greater mistake: unmarried men would still go to England; and so would the married, leaving their families to be maintained in the workhouse. The experiment, he saw, must be made; and, notwithstanding his objections, he would certainly give every aid in working out its details. Mr. O’Connell urged the necessity of extensive emigration on the consideration of government; but Sir Robert Peel said that he was not sanguine as to any benefits to be derived therefrom. The long sea-voyage would always stand in the way of its adoption to any extent. As to public works, to vote money merely to employ people, that would only aggravate existing evils by interfering with the natural demand for labour. Sir Robert Peel, however, was disposed cordially to support the measure in its general objects; as was also Lord Stanley.

The second reading of the bill did not take place till the end of April. The interval seems to have confirmed Mr. O'Connell in his hostility to the measure. It was not his intention directly to oppose it—some measure of the kind was inevitable; but his deliberate judgment was, that it would aggravate, instead of mitigate, the existing evils of the Irish peasantry. Those evils he ascribed to English misgovernment: the distinct and direct object of the penal laws was to enforce ignorance and poverty by act of parliament. For a century, the Irish had had laws requiring the people to be ignorant, and punishing them for being industrious. And what, he asked, were the natural consequences of this legislation? He entered into a variety of statistical details to prove that, with a less fertile soil, the quantity of agricultural produce raised in England was as four to one compared with that of Ireland; though, according to the number of acres under cultivation, it ought not to exceed two to one. He then proceeded to read numerous extracts from the reports of the commissioners, descriptive of the extreme misery of the Irish peasantry. He described men as lying in bed for want of food; turning thieves in order to be sent to jail; lying on rotten straw in mud cabins, with scarcely any covering; feeding on unripe potatoes and yellow weed, and feigning sickness, in order to get into hospitals. He continued:—"This is the condition of a country blest by nature with fertility, but barren from the want of cultivation, and whose inhabitants stalk through the land enduring the extremity of misery and want. Did we govern ourselves? Who did this? You, Englishmen!—I say, you did it? It is the result of your policy and domination!" With respect to the bill before the house, Mr. O'Connell ridiculed the proposition of relieving the destitution of 2,300,000 persons by building poor-houses to shelter eighty thousand at the expense of £312,000 a year. The charities in Dublin alone amounted to half that sum, and the farmers gave away in kind from a million to a million and a half yearly. As for tranquillizing the country, Mr. O'Connell said that the bill would not have any such effect. On the contrary, as all relief was to be given in the workhouse, every man who was refused would have a pretext for prædial resistance. The man refused would be the very man to resent the refusal; he would go to others and induce them to adopt his quarrel, and perhaps to avenge what he would consider to be his wrong. In conclusion, Mr. O'Connell admitted that he was opposed to a law of settlement, and also to a labour-rate: he thought emigration should be tried on a large scale; and he was still an advocate for a tax on absentees. However much he disapproved of the bill, he would not vote against it: he had not moral courage enough to resist a poor-law altogether. A long and angry debate ensued, which issued in nothing practical.

The only point in the measure in which any serious opposition was raised, respected the law of settlement. On the 12th of May, when the order of the day was read for the house to go into committee on the bill, Mr. Lucas moved,—"That it be an instruction to the committee to introduce a provision for settlement, so as more justly to apportion the pecuniary charges to be incurred and levied under the name of poor-rates." Mr. Lucas suggested a particular scheme of settlement, by which he conceived most of the evils attaching to the system as hitherto practised might be avoided; but his statement of its nature and probable operation was not very intelligible, and his motion was negatived, after some discussion of the subject, by a

majority of one hundred and twenty against sixty-eight. The bill did not proceed beyond this stage of its progress, in consequence of the demise of the crown.

IRISH TITHE QUESTION.

{WILLIAM IV. 1836—1837}

Another cardinal point of Irish policy remaining to be settled, as pointed out to the consideration of parliament in the speech from the throne, was the tithe question. This subject was brought forward in the house of commons on the 1st of May by Lord Morpeth, who, in introducing it, said, that it was the fifth measure which had been brought forward in the last three years for the adjustment of Irish tithes. His present plan was this. He proposed to deduct thirty per cent, from the tithe composition, so as to make a rent-charge on the owner of the first estate of inheritance, in the proportion of £70 to every £100 of the tithe. By the bill of last year power was given to the commissioners of woods and forests to collect the rent-charge; but this was thought to make the clergy too dependant on the officers of government, and they were, therefore, now allowed to collect it for themselves. The provisions of former bills for the revising or reopening of compositions were to be reserved. With respect to the regulation of the incomes of the various benefices, Lord Morpeth proposed to adopt the scale of last session, as recommended by Lord Stanley, with the exception of the minimum of £300, which Lord Stanley had taken as the lowest point of reduction to which the clerical income should be liable. The most novel provision proposed was that which went to apply a portion of the clergyman’s income to the purposes of general education. Lord Morpeth observed, that by a statute, the 15th of the 28th of Henry III., it was enacted, that “every incumbent in each parish in Ireland should keep or cause to be kept within his parish, a school to learn English; and that every archbishop, bishop, &c., at the time of his induction should take a corporal oath, that, being so admitted or inducted, he shall to his best endeavour himself teach the English tongue to all that are under his rule and governance.” Penalties were laid both on the bishop and clergyman for the breach of this statute; and the oath imposed by the act was taken by all rectors and vicars. The question was, continued Lord Morpeth, had this obligation been complied with? There were 2400 parishes in Ireland; and it appeared from the report of the commissioners of inquiry into Irish education, there were only seven hundred and eighty-two schools, the number of benefices being 1242, and the amount of the contributions of the clergy £3299. It appeared from that report, indeed, that, though there were many benefices in which there was no school, yet the act of Henry VIII. was sufficiently complied with by the annual payment of forty-shillings to a schoolmaster. Attempts had been made to revise the act in 1767, and again in the year 1806; but these were abandoned. Lord Morpeth now proposed to raise a fixed rate of ten per cent, upon the ecclesiastical revenues of Ireland, including the incomes of the dignitaries of the church as well as of the parochial clergy; to take effect not on the present holders, but on their successors. The plan of education which he proposed was not to be confined to the teaching of the English language only; it was to combine instruction in letters, lessons of morality and religion, and that upon a national system, comprehending all

sects and denominations. Lord Morpeth, however, did not, he said, intend to propose resolutions which would call upon the house to pledge themselves to the whole of his plan; he contented himself for the present with moving, “That it is expedient to commute the tithes of Ireland into a rent-charge, payable by the first estate of inheritance, and to make further provision for the better regulation of ecclesiastical duties.” The resolution was adopted without comment from either side of the house; but when the bill founded on Lord Morpeth’s resolutions was read a second time, June 9th, Mr. Sharman Crawford opposed it as wholly inadequate to the wants of the people of Ireland. He moved that the bill be read a second time that day six months; but on a division his motion was rejected by two hundred and twenty-nine against fourteen. The decision on the clause for taking livings was deferred, and nothing further was done on this question, the death of the king on the 20th of June precluding all further consideration of it.

QUESTION OF CHURCH-RATES.

Government had for some time been occupied in framing a scheme for the arrangement of the question of church-rates. On the 3rd of March the chancellor of the exchequer brought this subject before the house of commons, by moving that the house should resolve itself into a committee for its discussion. In his speech Mr. Rice first attempted to prove that the existing system could not be maintained. He remarked:—“By the law as it stood at present any vestry has the power of refusing its assent to a church-rate. Can it then be said there is, in fact, any fixed or satisfactory mode of providing for the maintenance of the churches of the establishment? Not only have they the power of refusing their assent, but this power has been frequently exercised. In consequence of the contests that took place in Sheffield on the subject, up to the year 1818, no rate has existed there since. In Manchester, in 1833, a poll took place on a rate, which was lost by a majority of one out of six or seven thousand votes. It is true the majority was set aside on a scrutiny; but it has not been ventured to collect the rate. In 1834 and 1835 the same scenes took place; large majorities were polled against the rates; those majorities were, on a scrutiny, declared to be minorities; but the churchwardens did not dare to act on their decision, or levy the rate that had been assessed. Can, or ought,” asked Mr. Bice, “this state of things to continue? If you depend upon the church-rate for the maintenance of the church, can you depend upon the present state of the law to enable you to enforce that payment? It is not sufficient to assert that the law must be strengthened; if you wish to maintain such a proposition, you must carry the house of commons with you. Can you do so? I confess I should like to see, not the person, but the party, however combined in force or numbers, who could come down to this house and ask of parliament to grant additional power for enforcing the payment of church-rates. They would soon find that they miscalculate the character both of the legislature and of the people whom it represents.” Having thus stated his grievance, Mr. Bice considered the remedy. He expressed his decided objection to the voluntary system; when he could be satisfied that the army and navy could be supported, or the administration of justice provided for on the voluntary principle, then, and not till then, would he apply it to the church. He also objected to a distinctive tax on the members of the established church, to the raising of a fund from pew-rents, and to a graduated impost on the benefices of the

clergy. He further objected to the proposition brought forward by Lord Althorp; namely, that a sum of £250,000 should be voted by parliament, for the purpose of maintaining the fabric of the church. His plan would be different from all these propositions. He proposed to take the whole property of the bishops, deans, and chapters out of the hands of those dignitaries, and to vest them in the hands of a commission, under whose improved system of management it was calculated that, after paying to their full present amount all existing incomes, a sum not less than £250,000 might be saved and applied to the purposes of church-rates. He proposed that there should be eleven commissioners; five of high ecclesiastical rank; three high officers of state; and three paid members of the board. He further proposed that in all cases where pew-rents had been received, or where they could be justly demanded from the rich, the proceeds should be collected, and placed, in the first instance, under the control of a parochial committee, who should be required in ordinary cases to apportion one-fifth of the whole space in the church to free seats for the poor; in the churches built under the church building act, one-third; the surplus to be handed over to the commissioners. The sums received by the commissioners were to be paid to the ecclesiastical commission, to be applied by them to their specific objects. All visitation fees, and fees on swearing in churchwardens, were to be abolished; by which regulation it was stated a saving of £180,000 a year would be effected. A short and desultory conversation took place; in the course of which the liberal members expressed themselves satisfied with the proposition, while those on the other side of the house intimated their distrust of the principles of the measure.

The friends of the church soon sounded an alarm upon this subject. Three days after Mr. Rice had made his statement, a meeting of fifteen bishops took place at Lambeth Palace; and they came to an unanimous resolution in disapprobation of the bill. The same evening the Archbishop of Canterbury, on presenting some petitions against the abolition of church-rates, expressed his feelings on the subject to the house of lords. The principle of the bill was so unkind to the church, he said, and so mischievous in its effects, that he would never give his assent to its becoming law. This protest raised the indignation of Lord Melbourne. He heard this expression of opinion on the part of the most reverend prelate with sorrow and concern, not less on account of the effect which it would have on the success of the measure, than with reference to the interests of the church itself. He would put it, he said, to the archbishop, whether there was not something of undue haste and precipitation in the course which he had adopted; and whether he was not put forward by those who had more guile and deeper designs than himself, in order that his expressed opinions might affect the decision of the question in another place? He thought it would have been more decent if the most reverend prelate had waited for the regular time for the discussion of the matter, and not have thus precipitately announced his intentions with respect to it. He learned with affliction that he should have the most reverend prelate and his brethren against him on this measure; but this would not alter his course: considering it as just in itself, advantageous to the church, and beneficial to the community, he should persevere in urging it upon parliament.

The house of commons went into committee upon the resolutions of Mr. Rice on the 13th March. The discussion was opened by Sir Robert Peel in opposition. Lord

Howick contented himself with replying on one or two points in the financial criticisms of Sir Robert Peel. He was convinced, he said, that the property of the church in land and houses was much greater than was reported by the bishops and chapters, and was greatly improvable under a better management; and he enlarged upon the evils of the present system, and the absolute necessity of removing them for the sake of the church. A discussion followed which lasted several nights. On a division the resolution was carried by a majority of two hundred and seventy-three against two hundred and fifty.

This was a small majority on a question which involved little more than than the taking of the plan into consideration; ministers, indeed, were evidently dissatisfied with the reception of their measure, for they did not seem inclined to urge it through the house. Nearly two months elapsed before the subject was renewed by them: a delay which was made a matter of reproach to the government by some of its supporters without doors, as implying an acknowledgment of failure on the part of the authors of the scheme. The second reading of the resolutions was moved on the 22nd of May. An amendment was moved by Mr. A. Johnstone to this effect: “That it is the opinion of this house that funds may be derived from an improved mode, of management of church lands, and that these funds should be applied to religious instruction within the established church, where the same may be found deficient, in proportion to the existing population.” Messrs. Baines, Hardy, Borthwick, and Horace Twiss, all spoke against the measure. Sir Francis Burdett expressed his regret that he was compelled to act against his former associates in politics, but he could not support the measure. Mr. Shiel endeavoured to make the honourable baronet refute himself by quoting extracts from his former speeches on the same subject. He spoke, however, of the honourable baronet in terms of the highest respect, as “a venerable relic of a temple dedicated to freedom, though ill-omened birds now built their nests and found shelter in that once noble edifice.” On the second night of the debate the bill was supported by Messrs. Brotherton and Charles Buller. Mr. Johnstone withdrew his amendment; and on a division the original resolution was carried by a majority of five only, the numbers being two hundred and eighty-seven against two hundred and eighty-two. This division was a death-blow to the bill: ministers did not even attempt to urge it further in the house of commons. They were still disposed, however, to follow up the inquiries which had been suggested, into the present method of holding and leasing the property belonging to the bishops and chapters. On the 13th of June, Lord John Russell moved a committee “to inquire into this subject, with a view to ascertain the probable amount of any increased value which might be obtained by an improved management, with a due consideration of the interests of the established church, and of the present leases of such property.” This motion was carried by a majority of three hundred and nineteen against two hundred and thirty-six, although it was opposed both by the church party and by honourable members on the part of dissenters. Mr. Coulburn moved a resolution to be added to the original motion, pledging the house to a specific appropriation of any increased revenue derivable from church lands, to the extension of religious instruction by ministers of the establishment. This was lost, but it was only by a majority of two hundred and ninety-one against two hundred and sixty-five. On the other hand, an amendment

moved by Mr. Harvey, for the abolition of church-rates altogether, was negatived by an overwhelming majority of four hundred and eighty-nine against fifty-eight. These divisions possessed some interest, as indicative of the different shades of opinion which prevailed in the house on matters relating to the established church.

THE CHURCH OF SCOTLAND.

On the opening of the first session of this parliament, Sir Robert Peel had made the deficient means of pastoral superintendence in the church of Scotland, the matter of a recommendation from the crown to the parliament. His government did not exist long enough in power to carry these recommendations into effect, and their successors were supposed to be adverse to the subject. On being pressed, however, they consented to the appointment of a commission, which should make inquiry into the whole of it, and report the same to parliament. The first report of this commission was not made till February of the present year, and then government appeared to take no notice of it. Under these circumstances Sir William Rae moved, on the 5th of May, that the “report should be taken into immediate consideration, for the purpose of remedying the evils acknowledged to exist within the district to which it refers, by extending the means of religious instruction and pastoral superintendence furnished by the established church of Scotland, and rendering them available to all classes of the community.” This motion embarrassed government. Lord John Russell said that the general assembly of the Scottish church was about to assemble within a few days, and no doubt it was desired that they should have the ministers’ refusal to consent to this motion, to allege as a presumption of their indifference to the interests of the establishment. He objected to the motion, only on the ground that they had not yet sufficient information on the subject to enable them to deal with it satisfactorily. The motion was opposed by Messrs. Horsman and Oillon on more general grounds; and on a division the order of the day, which was moved by Lord John Russell, was carried by two hundred and seventeen against one hundred and seventy-six: Sir William Rae’s resolutions, therefore, were negatived by a majority of forty-one.

NOTICES OF MOTIONS FOR CONSTITUTIONAL CHANGES.

Within the first week of this session, the notice-book of the house of commons presented the announcement of motions for various “organic changes” in our constitution. Mr. Grote gave notice of his annual proposition of vote by ballot; Sir William Molesworth announced his intention of moving a committee on peerage reform; Mr. Tennyson D’Eyncourt promised to introduce a bill for the repeal of the Septennial Act; Mr. Hume gave notice for the extension of the parliamentary suffrage to all householders; Mr. Duncombe, of another for the repeal of the rate-paying clauses in the reform bill; Mr. Ewart, one of an address to the crown for the appointment of a minister of education; Mr. Roebuck, of a bill for the establishment of a system of national education; and Mr. Clay, a motion for the repeal of the corn-laws.

The motion for the ballot took place on the 7th of March. Mr. Grote’s speech on this occasion contained many specious arguments, and it appears to have had a great effect upon the house. His motion was seconded by Mr. Hodges, and supported by Dr. Lushington and Mr. Charles Buller. The chancellor of the exchequer opposed the

motion. He had as much right as any man to complain of the effects of undue influence and intimidation at his election at Cambridge: but he doubted whether the ballot would prove a remedy for the evil. He thought the only way was to let in public opinion upon the acts and conduct of individuals abusing their power. On a division, the motion was negatived by a majority of two hundred and sixty-seven against one hundred and fifty-five.

Another motion, referring to the exercise or regulation of the parliamentary franchise, was that of Sir William Molesworth, for leave to bring in a bill to abolish the property qualification of members of parliament, which, after a brief discussion, was negatived. The other notice which Sir William had given for a committee on peerage reform was not followed up. The only motion relating to this subject was introduced by Mr. Charles Lushington, who, on the 16th February, moved for leave to bring in a bill for the expulsion of bishops from the house of peers, on the ground that the sitting of bishops in parliament was unfavourable in its operation to the general interests of the Christian religion in this country, and tended to alienate the affections of the people from the established church. This motion was decidedly opposed by Lord John Russell, as introducing a change into one of the most ancient portions of the British constitution. It was a motion not to amend, but to destroy a part of our institutions. And where would such changes stop? The conservative party seemed content to leave this question to be debated between the two parties of their opponents; but when Mr. Buller made some remarks on their silence, Sir Robert Peel declared that if any unpopularity attended resistance to the motion, he was willing to put in a distinct claim for his share. He feared he should not benefit Lord John Russell by his compliments; but he would say that he had never heard a speech delivered in a more manly tone than the noble lord’s, or one that did more credit to his judgment and abilities. On a division, the motion was lost by a majority of one hundred and ninety-seven against ninety-two.

Another motion connected with the reform of the house of lords was brought forward on the 9th of May, by Mr. Thomas Duncombe. He moved by way of resolution, “That the practice of any deliberative assembly deciding by proxy upon the rejection or adoption of legislative enactments is so incompatible with every principle of justice and reason, that its continuance is daily becoming a source of serious and well-founded complaint among all classes of his majesty’s subjects.” This resolution went, therefore, to abolish the right of peers to vote by proxy. Mr. Duncombe observed, that after the house should have affirmed that resolution, he would move, “That a message be sent to the house of lords, requesting a conference, at which the foregoing resolution might be communicated. Lord Stanley and Sir Robert Peel met Mr. Duncombe’s arguments on the subject, by endeavouring to show that if voting by proxy was absurd, the custom of pairing off in the commons, or of coming in to vote at the division without having heard a syllable of the debate, was open to the same objection.” Sir Robert went so for as to parody Mr. Duncombe’s resolution, by drawing up a similar one against the practice of pairing; and he concluded by recommending that they should take the mote out of their own eye before they made any attempt to extract the mote out of that of another. On a division, the motion was negatived by one hundred and twenty-nine against

eighty-one.

Mr. Thomas Duncombe’s motion on the subject of the rate-paying clauses of the reform bill was disposed of in a similar manner. He brought this forward on the 9th of March, by moving for leave to bring in a bill for the repeal of those clauses. Mr. Duncombe made no prefatory observations; on which, the chancellor of the exchequer remarked, that on so grave a motion he thought it much better that argument should precede rather than follow the introduction of the bill. Mr. Duncombe then said, that it was his conviction that the clauses in question operated materially to diminish the number of voters throughout the country. It was promised that the reform act should add half a million to the amount of electors, whereas it did not give more than three hundred thousand. The great reason for this was the want of punctuality in the payment of rates and taxes, and the partiality shown by collectors. The chancellor of the exchequer replied, that the principle on which the clause was founded was one of the oldest in the constitution; namely, that no man should enjoy civil rights who did not discharge his civil obligations. If there was any unfairness in collectors it should be inquired into; they were not appointed by the crown. After a few words from Mr. Wakley in support of the motion, and from Mr. Pease, who opposed it, the motion was carried by forty-nine against thirty-eight. On the second reading of the bill, however, Lord John Russell moved its postponement for six months, which was carried by one hundred and sixty-six against seventy-three, so that Mr. Duncombe’s success was but transient.

Mr. Tennyson D’Eyncourt brought forward his promised motion for the shortening of the legal duration of parliaments, on the 8th of May. The terms of his motion were confined to a repeal of the septennial act, without specifying any particular period to be substituted for the present one. The motion was supported by Mr. Hume, on the ground that seven years was too long a tenancy of a political trust. He thought three years a better term, and one with which, he believed, reformers in general would be content. Lord John Russell opposed the motion. In private affairs a man would no more be disposed to trust his interests to another, without taking account, for three years than for seven. The septennial act at the time of its passing had been considered essential for the security of the Hanoverian succession; but the preamble of that measure showed that it was not intended merely for a temporary purpose, it stated the object to be to diminish the heavy expenses of frequent elections, and to put an end to heats and animosities. It was observable, he said, that from the Revolution to the passing of the septennial act, the persons who had the chief weight and leading authority in the country were peers; since the passing of that act almost every person who has possessed a leading influence has sat in the house of commons. Mr. Roebuck desired a bill of this description, not because it would lesson, but because he thought it would increase the stability of the government, particularly if coupled with the provision that parliament should not sit for more or less than three years. The motion was rejected by a majority of ninety-one against eighty-seven.

On the 4th of April Mr. Ewart renewed the motion which he had made in the previous session, for leave to bring in a bill, providing that in cases of intestacy, or in the absence of any settlement to the contrary, landed property be equally divided

among the children or nearest relatives of the deceased. He quoted Adam Smith, Gibbon, Bentham, &c., in favour of an equal partition of property, and insisted that the system of primogeniture tended only to foster all the harsh and selfish passions of the human heart. The attorney-general opposed the motion. Mr. Ewart's arguments, he said, if they went for anything, would bring us to the system of equal distribution prevailing in France, which he could not think a desirable consummation. The change proposed would create great confusion in our law. The motion was lost by a majority of fifty-four against thirty-three. Mr. Ewart had given notice of an address to the crown, on the appointment of a minister of education; but neither this motion nor those of Messrs. Hume, Roebuck, and Clay, noticed at the opening of this article, were brought forward this session.

OPERATION OF THE NEW POOR-LAWS.

From the last report of the commissioners of the poor-laws, which was made up to July, 1837, it appeared that up to that period, of 18,433 parishes or townships in England, 12,132 had been united under the provisions of the poor-law act. These parishes or townships contained a population of above ten millions and a half; while the number of those not yet included contained a population of two millions and a half. In Wales, of 1049 parishes, twenty-eight only remained not yet united. Those which were not yet brought under the new system chiefly consisted of extensive and populous parishes, administering relief to the poor under local acts; a few others united for rating and settlement; while others were included in the unions established under Gilbert's act. The report stated that the progress of the new poor-law had been made in the face of much resistance, and under the pressure of difficult circumstances. These obstacles, however, had not been so considerable as might have been supposed. The opponents of the law had acted on the principle of agitation; but they had failed to accomplish that which they desired. The report further gave a very favourable account of the practical operation of the law in the habits of the poor. It did appear, in truth, that the new system had so far operated as to induce the farmers to give permanent employment to a much greater extent than formerly. On the working of the new poor-laws, however, there were differences of opinion, differences which were illustrated during this session on an occasion of a motion made by Mr. Walter, to inquire into the operation of the act. On introducing this subject, he brought forward a great many cases of individual hardship under its operation. The terms of his motion were, "That a select committee be appointed to inquire into the operation of the poor-law amendment act, and to report their opinion on it to the house;" but he disclaimed any intention to repeal the bill. Mr. Fielden, the seconder of the motion, was more explicit. His object was, he said, to obtain the total defeat of the obnoxious measure; he had voted against it on every division at the time it was passing; he had attended meetings of the people preparatory to resistance of its introduction into the county of Lancashire; and he had openly declared that if it were attempted to establish its operation in his own peaceable valley of Todmorden, it would be met with opposition, of which he would be the leader. Lord John Russell, in reply, objected to the inquiry; and he moved, as an amendment, "That a select committee be appointed to inquire into the administration of the relief of the poor, under the orders and regulations issued by the commissioners appointed under the

provisions of the poor-law amendment act." On the second night of the debate, Colonel Sibthorp, Mr. Robinson, and other members spoke against the measure; while Sir Robert Peel, Sir James Graham, and the chancellor of the exchequer defended it. The latter said, in conclusion, that the intention of government in proposing the amendment was not to exclude any one topic of inquiry which was not directly opposed to the principle of the bill; on which Mr. Walter consented to withdraw his motion, and the amendment was then carried and the committee appointed.

The committee began its inquiries immediately, and continued them almost daily. Such, however, were the minuteness of examination to which the witnesses were subjected, and the mass of conflicting evidence brought forward on both sides, that the progress of the inquiry was but slow. Mr. Harvey had been one of the members of this committee, but had retired from it, "because it was all a delusion in its consequences, if not in its intention." Before he retired, he adopted the course of printing the evidence before it was reported, in a paper called the _True Sun_, of which he was the proprietor and editor, by way of appealing to the judgment of the public against the prepossessions of his colleagues in the committee. This was made a question of breach of privilege, and as such brought before the house on the 21st of April, by Lord John Russell. The speaker had informed Mr. Harvey that it was a violation of the privileges of the house, and the chairman of the committee had given him due warning that unless he desisted from the practice he should be reported. Lord John Russell, in bringing the subject forward, pointed out the obvious injury to the public which would result from allowing such a discretion to every member of a committee. Mr. Harvey defended his conduct upon grounds peculiar to the object of the poor-law committee. He asked, "Who were the parties composing that committee? On the one hand, there was all the property of the country, in every variety and form, aggregated to support a measure peculiarly framed for its interest and protection. Who was the other party? All that was pitiable and miserable in the land, sunken alike by ignorance and destitution. How, again, were the respective causes of these parties conducted? On the one side was one of the most active and vigilant bodies of men, the poor-law commissioners and their assistants; but who was there on the other to advocate the rights of the unprotected and oppressed millions? How was the working man, chained as he was to the soil upon which he dragged out a miserable being, to become acquainted with what took place except through the newspapers? Such publicity was the more necessary, when it was recollected that the advocates of the law in the committee were as a majority of twenty-two to four." Mr. Harvey's reasoning would have been sound if the committee had been compelled to make a daily report—a course which they subsequently adopted of themselves; but there could be no doubt that it rested only with the committee or the house to determine that point. Lord John Russell's motion was simply declaratory of the privileges of the house in this matter which was carried without a division.

AFFAIRS OF CANADA.

{WILLIAM IV. 1836—1837}

Commissioners had been appointed to inquire into the ground of the complaints which for some years had been alleged by the prevailing party in the legislature of Canada, and by their friends and agents in the British parliament. Early in this session the report of these commissioners was laid before both houses, and on the 6th of March the subject was brought before the commons by Lord John Russell. His lordship declared at the outset that lie did not intend to cast any censure upon the conduct of the house of assembly in Lower Canada. He considered their course to be so much the same with that which other popular assemblies had followed in similar circumstances, that instead of an act of self-will, or caprice, or presumption, it seemed to be rather the obligation of a general law which affects all these disputes between a popular assembly on the one hand, and the executive government on the other. The course of these controversies, he said, seemed to impress this general lesson—that popular assemblies are hardly ever wrong in the beginning, and as seldom right in the conclusion of such struggles. They began with the assertion of right, and ended with the establishment of wrong. His lordship proceeded to state what were the demands of the leading party in the house of assembly. The first was, that the legislative council, which had hitherto been appointed by the crown, should for the future be an elective assembly. The second was, that the executive council should be responsible in the same way that the cabinet was in this country. By a third, it was exacted that the law of tenures should be changed, without respect to the rights obtained under a British act of parliament. Fourthly, it was demanded that the land company should be abolished, with a similar disregard of the rights required under the same act. Having stated the difficulties of the case, Lord John Russell proceeded to propose his remedies. It was now four years and a half, he said, since the judges had received their salaries, and it was high time for parliament to interfere on their behalf. He proposed to apply a certain portion of the revenue of Canada to such payments as in their rejected supply bill of 1833 the assembly had under certain conditions agreed to. The total amount of these would be £148,000, and in so applying them they would simply be applying the revenue of the colony for its own benefit. His lordship next proposed to adopt the recommendation of the commissioners which had been sent out in 1855, and exclude the judges from the legislative council; and to provide that in future the members of that body should not be chosen so exclusively from persons of the English race, but that alternately one of French and one of British extraction should be selected. With respect to the executive council, it was proposed that there should not be more than two or three official persons among its members, and that the rest should be selected by the legislative council, and from the house of assembly. The privileges of the North American Loan Company were to be preserved inviolate; a provision might easily be framed to prevent any abuse of them. As the complaints made against the Canada tenures act were in some degree well founded, it was proposed to repeal that act, care being taken that the lights of individuals vested under it should be respected. Complaints had been likewise made of the commercial relations between Upper and Lower Canada: the upper province, by the act of 1791, was allowed no communication with the sea, except on the payment of heavy duties; while the lower province put various impediments in the way of its commercial progress. It was proposed that, with the assent of the legislatures of the two provinces, a joint committee should sit at

Montreal, composed of four members of the legislative council and eight of the representative assemblies of each, making twenty-four persons in all, who should have power to prepare laws and regulations upon all matters of reciprocal intercourse. These propositions were embodied in a series of ten resolutions, of the first of which, relating to the payment of the judges, &c., Lord John Russell then moved the adoption. These resolutions met with violent opposition on the part of the Radical section of the house of commons. Mr. Leader called the measure a coercion bill, and reminded the noble mover of the rule of unlimited concession in government which his lordship had a few nights before quoted from Mr. Fox, and desired him to apply it not merely to Ireland, but to Canada. He moved as an amendment on the fourth resolution, “That it is advisable to make the legislative council of Lower Canada an elective council.” Mr. Robinson said that the whole of Mr. Leader’s argument was founded on the modest assumption that the government, and commissioners, and legislative council had been wrong, and Mr. Papineau and the house of assembly as uniformly right in everything that had been done. Mr. O’Connell warmly advocated the cause of the Papineau party, whose sole object was, separation from this country. He called for “justice to Canada.” He remarked:—“Give them a legislative council elected by themselves; place them in possession of all the rights and privileges which as British subjects they could reasonably demand; and then if they persevered in their opposition to the home government, it would be time enough to think of adopting some such measures as were now proposed.” The Canadas, he urged, ought not to be governed with reference merely to British interests: Great Britain did not want Canadian revenues. Sir William Molesworth, Colonel Thompson, and Mr. Roebuck followed on the same side of the question. The speech of the latter was more violent than any of his party. Like all the orators on his side of the house, he dwelt much on the example of the American revolution, and on the sympathy and assistance the United States would give to the Canadians if they should resist. He asked, “What is the evil, and what is the remedy? You say, Great merit exists among the public servants. But do you propose to prevent the recurrence of that difficulty? Not at all. You pay the arrears. But who will pay the servants next year? Do you believe that the house of assembly will do so? You know as well as I do that the supplies will again be stopped; the same outcries will be raised, and then, I suppose we shall have another special commission, another delay of three years, another evasion of the difficulty, another breach of faith. Distrust will continue; exasperation will increase; their powers of resistance will increase also; one effort will be made, and you and your shuffling policy, your degraded government, your unworthy peculating and mischievous officials, will be dismissed with ignominy and hatred. I hear eternal talk of the evil consequences of stopping the supplies to those official servants, and hear nothing in reproof of the legislative council, who shut up last year all the primary schools in the country, and left 60,000 children without instruction. All your regards are turned the wrong way. You sought to make out a case of hardship to the servants of the people, but turned a deaf ear to the complaints of the people themselves. But I would ask his majesty’s ministers, Have they well weighed the policy of this measure, and do they know its inevitable result? If not, I will tell them. The direct effect on the minds of the Canadian population will be a determination as soon as possible to get rid of a dominion which entails on them

results so mischievous and degrading. Every year will hereafter strengthen the feeling, and lasting enmity and discord will thus be entailed on the mother country and the colony—discord that will cease only when the colony shall become a great, powerful, and independent community. The immediate effects of this feeling will not be seen in open and violent revolt, but in a silent though effective warfare against your trade. Non-intercourse will become the religion of the people: they will refuse your manufactures, and they will smuggle from the States. The long line of frontier will render all your attempts to prevent this smuggling unavailing. The people will refuse your West India produce, and they will view with hatred your schools of unprotected emigrants. Impatiently will they wait for the moment in which they shall obtain their freedom, and become part of that happy, and, for our interests, already too powerful republic. A war will be waged through an unrestricted press upon your government and your people. In America you will be held up as the oppressors of mankind, and millions will daily pray for your signal and immediate defeat. The fatal moment will at length arrive; the standard of independence will be raised; thousands of Americans will cross the frontier, and the history of Texas will tell the tale of the Canadian revolt."

In reply to Mr. Roebuck's declamation, Sir G. Grey, the colonial under-secretary, appealed to all the papers on the table, to all the instructions which had been sent out to the local government, and to every act which had been done in pursuance of these institutions, and he asked if anything had been done of which a free and independent people had the slightest right to complain? Every grievance which had arisen out of former misgovernment had been redressed: and now the house of assembly took their stand on another ground, and declared that if the constitution were not altered they would stop the supplies. The cry was raised by the house of assembly in Lower Canada alone; the people of Upper Canada disclaimed any share in it. The debate was adjourned to another day, when it was opened by Mr. Hume, who, in a speech of three hours' duration, impugned the whole conduct and policy of the government towards Canada. Finally, the three first resolutions being simply declaratory, were agreed to without division. The fourth, also, was carried on a division by a majority of three hundred and eighteen against fifty-six. This resolution was to the effect, "That in the existing state of Lower Canada, it is unadvisable to make the legislative council of that province an elective body; but that it is expedient that measures be adopted for securing to that branch of the legislature a greater degree of public confidence."

After this decision ministers expressed a hope that the opponents of the resolutions would not throw any obstacle in the way of government. Delay, however, was the object of the Canadian party, apparently in the hope of giving time for a demonstration of popular feeling on the other side of the Atlantic. The committee was not resumed till the 14th of April, and then the fifth resolution came under consideration. This was to the effect, "That while it is expedient to improve the composition of the executive council in Lower Canada, it is unadvisable to subject it to the responsibility demanded by the house of assembly of that province." On this occasion Mr. Roebuck again opposed government, and intimated that the loss of the colony would be the certain eventual consequence of their adoption. At the same time he disclaimed all interest in, or desire to accelerate this consummation. Mr. Roebuck

broached a plan of his own for the settlement of the dispute. Since the house would not make the legislative council elective, he proposed to abolish it altogether. The only useful power at present exercised by the legislative council was that of proposing amendments on the bills passed by the house of assembly. This office he proposed to transfer to an executive council of twelve persons, to be named by the governor, who might amend any measure sent up from the assembly, but not to have the power of rejecting it; that would rest with the governor. The great object of this scheme was, he said, to concentrate responsibility, and to bring it to bear on known individuals; but it was plain that the effect of it would be to bring the executive in constant and direct collision with the popular branch of the legislature by doing away every intermediate power. The other principal feature of Mr. Roebuck's scheme was, the establishment of a general assembly at Montreal, composed of delegates chosen by the houses of assembly of each of our North American colonies, and clothed with certain judicial and legislative powers. In its judicial capacity this assembly was to constitute the tribunal before which the judges of the various provinces might be impeached; and, moreover, might act as a court of appeal, and exercise the functions now performed by our privy-council. Its legislative offices would relate to all matters of dispute or communication between two or more provinces. Lord John Russell remarked, in reply, that whatever might be the merits of Mr. Roebuck's propositions, he had no authority from the colony to make them, and therefore parliament could not think of making them the basis of pacification, As for the threat that the people of Lower Canada would, if their demands were rejected, throw themselves into the arms of their republican neighbours, his lordship contented himself with saying, that it would not be their interest to act thus; nor did he think that the United States would be anxious to seek a quarrel on this question. Mr. Robinson supported and Mr. Charles Buller opposed the resolution. Mr. Roebuck again spoke in reply, and complained that Lord John Russell was doing all in his power to insult and vilify the people of Canada. He doubted, if Sir Robert Peel was in power, that with his wary prudence and caution, he would carry out these resolutions. The right honourable baronet and his friends, he said, were silent on certain questions; they no doubt acted so that they might come into office with clean hands. Sir Robert Peel said that he did not desire to withhold his sentiments on this subject. In his speech, the right honourable baronet took the same view of the policy of the government that had been expressed by Lord Stanley. He observed, that if no other, interests but those of the French Canadians were involved in the question, and if the continuation of British connexion were unpalatable to them, he would say, "God forbid that we should force it upon them." In that case he should think it more for our interest than theirs that the connexion should be dissolved. But he-doubted, if he were to make the people of Lower Canada an offer of establishing their own government, that they would be disposed to accept it. At any rate the question could only be considered in reference to the French Canadians: there was a British population in the province, which had a right to look up to this country for a continuance of the connexion and protection on the faith of which they had established themselves in it. On a division the resolution was carried by a majority of two hundred and sixty-nine against forty-six.

On the 21st of April Mr. Leader moved the postponement of the further consideration of the resolutions, in order to give time to the Canadian people to state whether or not they agreed to Mr. Roebuck's scheme for the settlement of the existing differences between the province and the mother country. This motion was negatived by a large majority; and the house then went into committee on the sixth resolution, which declared the necessity of maintaining inviolate the privileges conferred by an act of parliament on the North American Loan Company. Mr. Roebuck moved as an amendment, deferring all resolutions on the subject of the land company "until an inquiry shall have been instituted into the circumstances under which the land held by that company had been obtained." The company found supporters in Lord Stanley, Sir George Grey, and Mr. Robinson; and even Mr. Grote, and others of the radical section, declined voting for the amendment. On a division the resolution was carried by one hundred and sixty-six against six; and this closed the discussion on this subject in the house of commons. On the 1st of May the resolutions were communicated to the house of lords in a conference.

The subject was brought before the house of lords by Lord Glenelg on the 9th of May, in a speech of considerable length, but which contained the same arguments which had been so frequently urged in favour of the resolutions in the house of commons. The resolutions were supported by Lord Ripon, although he objected to the wording of the fourth resolution, in which it was declared that "in the existing state" of Lower Canada, it was not advisable to introduce the elective principle into the formation of the legislative council. The inference from this mode of expression was, that a state of things might arise when it would be considered advisable to do so; but he could not acquiesce in the principle under any circumstances. The only opposition to the resolutions came from Lord Brougham, who objected to them entirely, as well to the principles as to the policy of them. His lordship chiefly dwelt upon the violation of the Canadian constitution by the advance of moneys, without the consent of the house of assembly. Under the eighth resolution it was intended to replace the £30,000 advanced out of the military chest, to provide the means of defraying colonial expenses. Lord Aberdeen remarked that Lord Brougham, who seemed so shocked at the idea of interfering with the rights of the assembly, had himself been a member of that government which made this advance; and the house of assembly had designated it as a monstrous, and unconstitutional interference, and had prayed that an impeachment might be instituted against the noble and learned lord, and his late colleagues, for committing it. The resolutions were agreed to without a division, Lord Brougham alone saying, "Not content."

STATE OF THE BANKING SYSTEM, ETC.

At this time there was a general impression that there was something in the constitution of the joint-stock banks, that imperatively called for legislative interference. This, indeed, was one of the subjects immediately pressed upon the investigation of parliament, by the speech of the lords commissioners at the opening of the session. In the preceding session a select committee had been appointed to consider the state of the law in reference to this subject. This committee began its inquiries in the month of May, and continued them till the close of the session. In

their report to the house, they stated that they saw so many difficulties in the way of immediate legislation, and so many objections to imperfect legislation, that they would content themselves with merely recommending that the committee should be revived in the following session. On the 6th of February the chancellor of the exchequer made a motion to that effect, on which occasion he observed that he did not mean in any way to anticipate the decision of the committee; but he should be greatly misconceived, if it were supposed that his motion was made in hostility to the general principle of joint-stock banks. It had been suggested, he said, that the range of inquiry should be extended; but he considered the subjects already before them were sufficiently complicated and difficult, without the committee embarrassing themselves with other and still more delicate matters of investigation. He should, however, propose the extension of the committee's inquiries to Ireland; and with that view would move the addition to its number of four Irish members, two from each side of the house. Mr. Hume expressed himself satisfied that the source of the difficulty lay, not in the conduct of the joint-stock banks, but in that of the Bank of England; and he was therefore anxious that the inquiries of the committee should be extended to the proceedings of that establishment, and generally to the banking system of the country. The conduct of the Bank of England, he contended, should form a principal object of investigation; and he moved as an amendment, "that there be an inquiry into the state of banking, and the causes for the changes of the circulation since the year 1833." Mr. Williams seconded the amendment, and urged that the Bank of England had displayed a more reckless disregard of the interests of the country than had ever been shown by any public body intrusted with the management of its financial resources. On the 28th of December, 1833, the issues of the Bank were £32,600,000, and their stock £10,000,000. On the 28th of March, 1835, a reduction appeared on those issues of no less than four millions and a half. Nine months afterwards of the same year, there appeared an increased issue of nearly nine millions, being more than one-fourth of their circulation. What was the consequence? Such an advance in prices, that in September last the cost of every article of import was raised from forty to one hundred per cent. This caused a falling off of trade. Then again in January last the circulation of the Bank of England was £31,000,000, and they had four millions to pay that amount, being little more than half-a-crown in the pound to meet their engagements. The directors professed to have discovered that the true principle for regulating their issues was to keep gold to the amount of one-third of those issues; in so doing they would be safe. But had they acted upon that principle? At that moment, instead of having one-third, they had only about one-seventh or one-eighth of their issues in gold. Mr. Gisborne took a similar view of the conduct of the Bank of England, and urged the necessity of an inquiry into it by the committee, if, at least, any inquiry into the banking system was at all necessary. For his own part he did not think it was; it would only lead to expectations which it would be impossible to satisfy. The debate was closed by the chancellor of the exchequer, who objected to an extended inquiry, and on a division, the original motion was carried by one hundred and twenty-one to forty-two.

CONSIDERATION OF THE FOREIGN POLICY OF ENGLAND UNDER THE WHIG ADMINISTRATION.

There was no part of the conduct of the Whig administration which had been made the subject of more incessant attack than that which related to their foreign policy. This session the line of policy followed by Lord Palmerston in reference to Spain afforded a subject for declamation against him and his coadjutors in the government. At this time British soldiers were fighting in that country without the protection of the British flag, exposed to all the shame and hardships of a disastrous and disgraceful war. In the midst of the public anxiety on this subject, it was brought forward in the house of commons by Lord Mahon, who had been under-secretary for foreign affairs during Sir Robert Peel's administration. His lordship began by expressing a want of confidence in government, and especially in Lord Palmerston: the country, he said, had too long reposed a confidence in his exertions, to which he was neither entitled by prudence nor success. He complained that the public had been kept in a state of ignorance as to whether they were in peace or at war: in his opinion it was a peace without tranquillity, and a war without honour. The object of the quadruple alliance had been to appease the civil dissensions in Portugal; not to sanction the intervention of France and England in Spain. He did not object to this, but he lamented the policy which led to the additional articles signed in 1834, which stipulated for a certain degree of interference. The Duke of Wellington, during the four months he had been in office, had acted up to the spirit of those articles, as he was bound to do; but Lord Palmerston had thought proper to proceed still further, in suspending the foreign enlistment act, and allowing twelve thousand Englishmen to enlist under the banners of the queen. Lord Mahon went on to contrast our position throughout the peninsular campaign. The great object had then been to drive the French out of the Peninsula, an object which had been sanctioned by all our greatest statesmen for more than a century and a half. Lord Palmerston had, however, departed from this line of policy. Count Mole, the prime minister of France, said in the chamber of deputies that "Lord Palmerston considered that circumstances justified the co-operation of France; and that in March, 1836, he notified to General Sebastiani, that it was his intention to land a certain force of marines on the coast of Spain, and invited France to join in that co-operation." At the same time he had offered France the occupation of the port of Passages, and left to her own option the mode and extent of co-operation. M. Thiers had, however, declined the invitation. Next came the revolution of La Grunja, and soon after that event, an increased force was sent to relieve 'Bilboa. More than £540,000 had already been expended in the war, and all the accounts were not as yet sent in. In Lord Mahon's opinion, the influence of Great Britain in Spain had not been augmented by these measures; and in proof of it, he quoted a memorial presented by the British merchants of Alicant, complaining that their interests had been neglected; and that while England carried away three-fourths of the produce of Spain, that country took very little in return. To illustrate still further the decline of our influence with the court of Madrid, Lord Mali on alluded to a tax imposed on British subjects. "For the liberation of the king," originally levied during the captivity of King Ferdinand. This impost had been kept up though the king was now dead. There were other grievances of a similar kind: the only one redressed was a tax on military quarters, which had been ceded to the English residents. Lord Mahon concluded by calling Lord Palmerston's attention to the provinces of Biscay and Navarre, which had been deprived of their legal rights and privileges; and by stating that in bringing

the subject forward, he was not actuated by any partiality for the character of Don Carlos, or any desire of advocating his claims on the crown of Spain. Mr. Cutlar Fergusson, while he admired the moderate and gentlemanly tone of Lord Mahon's speech, yet differed from his views. He defended the alteration which Ferdinand had made in the succession, and which had been approved of by the Cortes, while they looked upon Don Carlos as a pretender. The question for the house was whether this country was not justified in abiding by the terms of the quadripartite treaty. We had done no more, he said, till Don Carlos had published the edict of Durango: after that infamous act an important article had been appended to the treaty, stipulating that arms and stores should be supplied for the maintenance of the war, and, if necessary, a naval force. Mr. Gaily Knight also dissented from Mr. Fergusson's views; while Mr. Fenton expressed his disapprobation of Lord Palmerston's policy. Lord Francis Egerton said that in his opinion we were not the proper judges of the value of those rights and privileges for which the Basques were contending; if they themselves held them dear, every Englishman must feel a sympathy in their cause. Mr. Fergusson had admitted, that could we have foreseen the failure of the Spanish generals, it would have altered the question as to the policy of suspending the foreign enlistment act: were not ministers culpable for such a want of foresight? Surely Lord Palmerston and his colleagues might have distinguished between Spain in the sixteenth century, when her troops were the first in Europe, and Spain during the peninsular war. Had not Lord Palmerston been in office during the war of independence? And had not its records taught him something of Spanish generals and Spanish promises? At any rate, a glance at the pages of a Napier, or a word from the Duke of Wellington would have enlightened him on the subject. Mr. Cutlar Fergusson explained, and Mr. Poulter protested against the doctrine which stigmatized the conduct of government as intervention. Mr. Grove Price defended the character of Don Carlos from the aspersions which had been cast upon it, but he did not attempt to contradict or justify the fact that the Don had issued the edict of Durango; and that, in virtue of the same, some English soldiers had already been executed. He concluded with a tribute to his virtue and magnanimity: so far was he from desiring to establish the Inquisition, that his prime-minister, the Bishop of Leon, had spent his whole life in writing against it, and had obtained a decree from his sovereign for its abolition. This was denied by Mr. O'Connell, whom Mr. Grove Price allowed to be a competent judge, because he was acquainted with the Bishop of Leon. He added, "If it were supposed that Don Carlos admitted Mr. O'Connell to his councils, then no English Protestant gentleman would for a moment countenance the pretensions of that sovereign."

Lord Palmerston ably defended the policy of government. He added, if he could contribute to the establishment of the same happy things in Spain as existed in Belgium and Portugal, he should esteem it a proud satisfaction to the latest hour of his life. Sir Robert Peel complained of the line of argument which had been adopted by Lord Palmerston. He, for one, he said, openly disavowed all participation in the principles, or sympathy with the cause of Don Carlos. He would not say that the objects of British policy would be advanced by the success of that prince; and he begged most distinctly to state that he wished to see Spain in the settled enjoyment of a free and enlightened form of civil government. His belief was, however, that the

course adopted by ministers was defeating its professed objects; it was obstructing the cause of improvement, and was calculated neither to raise our own character as a nation, nor to gain the affections of Spain. Mr. O'Connell spoke against Don Carlos, dwelling at length upon the atrocities which had been committed by his partisans.

Lord Mahon did not press any motion on the house, he being satisfied with the expression of opinion that had taken place. Within a fortnight after the debate the news of the defeat at Hernani arrived; and the political opponents of government eagerly embraced this opportunity of renewing the discussion. Immediately after the Easter recess, Sir Henry Hardinge gave notice of a motion on the subject, which motion he brought forward on the 18th of April. He moved an address to the king, "praying his majesty not to renew the order in council of the 10th of June, 1835, granting permission to British subjects to enlist in the service of the Queen of Spain, which order in council would expire on the 10th of June next following; and praying also that directions be given that his majesty's marine forces shall not be employed in the civil contests now prevailing in Spain, otherwise than in that naval co-operation which his majesty has engaged to afford, if necessary, under the stipulations of the treaty." The motion was seconded by Sir Stratford Canning, who argued that the terms of the quadruple treaty did not justify the interference which government had sanctioned. On the other hand Lord Leveson contended that government had gained great credit on the continent by the part they had taken in the affairs of the Peninsula. Mr. Charles Wood defended ministers: it was not uncommon, he said, for British officers to enter into the service of foreign powers. Mr. O'Connell remarked on the eagerness with which the recent disasters of the legion had been seized upon by gentlemen on the opposite side. The actions in which they had clone honour to the British name were forgotten: nothing was said of their victories; but not a moment was lost in bringing forward their defeat. On the second night of the debate, Sir Robert Inglis adverted to the imputation which had been cast against his party—that they were the enemies of the church of Rome in their own country, but its friends in every other—from its association with despotism. He disclaimed any such feeling on their part. Mr. Ward considered that opposition tried this question merely by the test of success. Why did not Sir Henry Hardinge bring forward his motion soon after the victory at Bilboa? This was the first time that he had heard in the house of commons the misfortunes of an ally urged as a reason for abandoning him. No doubt the legion had suffered a defeat; but not such as to disable their continuance of the contest. General Evans had admitted his losses; yet it was at this moment that an old brother officer in arms had chosen to aggravate his difficulties, and to cast against him the weight of his authority in military matters. In reply to the imputation as to the motives in bringing forward the motion at this particular time, Lord Mahon contended that he and his friends had hitherto exercised the utmost forbearance on the subject. He contended, further, that the country had a right to know whether there was any limit to the expense which we might be called upon to incur: twenty millions might be required by Spain; and did the treaty oblige us to furnish that sum? Dr. Lushington followed, and endeavoured to show that the naval co-operation which we had afforded was precisely that contemplated by the treaty. It could not be supposed that the British fleet was to encounter that of Don Carlos, and drive it off

the seas; the only object could be a naval warfare along the coast. He considered the existence of the present government depended on this motion: if the reformed parliament of Great Britain should now abandon those principles of liberty and independence which they had hitherto advocated, the news would be hailed at St. Petersburg by bonfires. Mr. Grove Price supported the motion, and Mr. Shiel opposed it. The latter argued that the government had put a right construction on the stipulations of the quadruple treaty; and he entered into a long apology for the ill success of General Evans, and for the excesses and insubordination of his troops. With respect to the naval co-operation of the mariners, he referred to their motto, _Per mare ‘per terras_, as of itself setting that question at rest. He continued:—“But it is alleged that the measures of the government have not produced any good result. I ask if those measures had not been adopted, what would have befallen the Spanish people? Would not Bilboa have been taken by assault, and the standard of Don Carlos at this moment have been floating from the castle of St Sebastian? Or try the allegation by another test. Let me suppose this motion carried. The courier that will convey the intelligence will carry tidings of great joy to St. Petersburg, to Vienna, to Berlin; and he will convey tidings of great dismay wherever men value the possession of liberty, or pant for its enjoyment. It will palsy the arm of freedom in Spain—a terrible revulsion will be produced: from Calpe to the Pyrenees the cry, ‘We are betrayed by England!’ will be heard; and over that nation which you indeed have betrayed, Don Carlos will march without an obstacle to Madrid.” In conclusion, Mr. Shiel said:—“I have heard it asked whether it be befitting that in Spain, the theatre of so many of their best exploits, British soldiers should give way before bands of mountain peasants? I feel the force of that question; but there is another which I venture to put to every man who hears me, and, above all, to the gallant officer by whom the motion has been brought forward: I invoke the same recollections; I appeal to the same glorious remembrances, and in the name of those scenes, of which he was not only an eye-witness, but a sharer, I ask, whether it be befitting that in that land, consecrated as it is in the annals of England’s glory, a terrible, remorseless, relentless despotism should be established; and that the throne which England saved should be filled by the tyrant by whom your own countrymen, after the heat of battle, have been savagely and deliberately murdered? Never! the people of this country are averse, indeed, to wanton and unnecessary war; but where the honour of England is at stake, there is no consequence which they are not prepared to meet—no hazard which they will not be prompt to encounter.” The debate was protracted by another adjournment to a third night.

Lord Palmerston, who had been repeatedly called upon in the course of the debates, at length arose to defend government from the imputations of their opponents. The manner, he said, in which the question had been dealt with by opposition was not fitted to impress other people with a notion that their own convictions were very strong in respect to it. Having made a few observations on the conduct of General Evans, on the sufferings of the British soldiers, and on the atrocities which had been committed, he came to the question of the quadruple treaty. Every one knew, he said, under what circumstances, and for what purpose it was concluded. The most superficial observer must have perceived that the change

that had been made in the accession to the Spanish throne, though accompanied by every circumstance cf legality and regularity, yet laid the foundation for a great revolution in that country. It was not merely the substitution of an infant female for a grown man; out of that change must spring a great alteration in the internal constitutions of Spain, and a change too in the tendencies of its external policy. What happened on the death of Ferdinand? A Spanish minister came to London to request of the English government a force to assist in expelling Don Miguel from Portugal. This was refused; but we said:—"Though we will not give you an army, we will give you a treaty." Accordingly, we joined with the three "great powers" of the west of Europe in one alliance. This was the quadruple treaty; and such was its effect, that even before the ratifications were exchanged, Don Miguel's army of twelve thousand men laid down their arms, and the two pretenders abandoned Portugal. Then came the escape of Don Carlos, and his placing himself at the head of the insurgents in the Basque provinces. The four contracting parties considered the treaty to be fully in force, and that it was only necessary to prepare new articles in order to provide for the altered circumstances of the war, which articles, however, should be considered merely as complementary of the original treaty. The noble lord proceeded to defend the manner in which those articles had been carried into execution; and, in conclusion, he observed, that however skilfully the question before them might be disguised, it involved no less than, whether England should continue to fulfil her engagement with the Queen of Spain, or should disgracefully abandon an ally whom she had pledged herself to succour. But this was far short of the real and ultimate tendency of the motion. The contest now waging in Spain was but a portion of that great conflict which was going on elsewhere throughout the world. The house had to decide that night between two opposite systems of foreign policy. Even these were not isolated principles, which might be taken or neglected by themselves: they were intimately connected with, and affected also our domestic interests. The object of the one party was to support Don Carlos and despotism; the other to uphold Isabella and the constitution. Sir Robert Peel replied to Lord Palmerston, reproducing the arguments and facts already urged; and the discussion was closed by Lord John Russell, who defended the existing state of our foreign relations, by contrasting it with that in which they had been left by the right honourable baronet and his friends in 1830, when they quitted office. On a division Sir Henry Hardinge's motion was rejected by two hundred and seventy-eight against two hundred and forty-two. The same subject was brought under the consideration of the lords, April 21st, by Lord Alvanley, in a motion for the dispatches of Lord John Hay relative to the affair at Hernani.

A circumstance occurred which brought the state of our relations with Russia under the attention of parliament. A mercantile house, Messrs. Bell, of London, had fitted out a vessel laden with goods for the coast of Circassia. On attempting to land her cargo she was seized by a Russian man-of-war and confiscated, first, on the ground of the violation of the blockade, to which the Russian government had subjected the whole of the Circassian coast; and, secondly, for an alleged violation of the custom-house regulations established by the same authority in the ports of that country. This proceeding of the Russian government was generally denounced as

unjustifiable; and the subject was brought before parliament on the 17th of March by Mr. Roebuck, who moved for copies of all the correspondence which had taken place between the British and Russian government on this transaction. Lord Palmerston entered into a lengthy statement of the occurrence; but the papers were refused, on the ground that the question was still under negotiation. Mr. Roebuck repeated his inquiries on the subject, when Lord Palmerston stated that, upon a full consideration of all the circumstances of the case, the government had come to the conclusion that there was no room for making any further demand upon the Russian government. Another matter, in which our relations with Russia were concerned, was brought before the house of commons on the 22nd of March by Lord Dudley, who inquired of Lord Palmerston whether any consular agent had been appointed to the state of Cracow. Lord Dudley Stuart said, that in the preceding session a motion had been made by the member for Lancaster for an address to the king, praying that his majesty would appoint a consul to reside in that city; and that the noble secretary for foreign affairs had stated that it was the intention of government to make such appointment, on which the motion for an address was withdrawn. Lord Palmerston admitted the correctness of this statement. It had been his intention, he said, to send a consular agent to Cracow; but he had since been induced to depart from his purpose, finding that greater difficulties would attend it than he had anticipated. His lordship did not state what those difficulties were, and the house seems not to have thought it expedient to press the government further upon the subject.

A more important point of our foreign policy considered this session was the situation of the province of Texas. On the 9th of March, Mr. Barlow Hay moved for “copies of all correspondence which had taken place between our government and those of Mexico and of the United States on this subject;” stating at the same time his sense of its importance, and the suspicions he entertained of the ambitious project of the American government in respect to it. Lord Palmerston admitted the importance of the subject, and its claim on the anxious attention both of the government and the public; but he resisted the production of the papers moved for, and on a division the motion was rejected by a majority of forty-one to twenty-eight.

MOTION ON THE STATE OF THE NATION.

{WILLIAM IV. 1836—1837}

At this time the state of public affairs was such as to induce Mr. Roebuck to bring the subject before parliament. On the 9th of June, when the order of the day had been moved for the second reading of the Irish tithe bill, Mr. Roebuck moved an amendment that the house should resolve itself into a committee for considering the state of the nation. He made some observations upon the extraordinary position in which the representatives of the people were placed. Two bills had been sent to the other house of parliament, but they were told that the house of lords would not take them into consideration until something had been done by that house to please them. He contended that there was no government in the country: ministers were no longer in the position in which they were at the beginning of the session. They stated then that they would place their existence as ministers on the fate of the Irish corporation

bill. What had become of that bill? It was laid on the shelf till the lords knew what that house was about. The other house virtually said, “If you do not what we like, we will not pass your bill.” What good could be got from playing over the farce of discussing the Irish tithe bill? Did they not know that if it passed that house, defeat awaited it elsewhere. Ministers, in fact, were useless for good purposes; and as far as the people were concerned, they were mischievous. Mr. Roebuck’s motion was seconded by Colonel Thompson, who said that ministers had started with a large stock of popular energy in their favour; but, in their fear of the boiler bursting, they had let the fire go out. Like Spanish generals, they had always one eye in their own camp, and the other in the enemy’s; and all their efforts were paralysed by their fear of being too successful. Their situation had become desperate: if any event in the chapter of human accidents should fall out to give them a reprieve, the only consequences would be, that as they had dwindled, dwindled before, they would dwindle, dwindle again. There was no stock of good luck which such conduct would not run out. It was clear what was coming: the Tories must return to power. How long they would stay there was another question; but their return was a phasis, a phenomenon which ministers had rendered it inevitable to go through. Mr. O’Connell eschewed the doctrines of Mr. Roebuck and Colonel Thompson. It was his duty, he said, in the name of the people of Ireland, to protest against his majesty’s government being blamed for not doing more. Government had the confidence and the affections of the people; and whatever might be the opinions of others, he, for one, hoped that they would long continue to occupy their present situations. Lord John Russell, in reply, disclaimed any community of sentiment with Mr. Roebuck in the constitutional views he had broached, either in reference to church or state. He was decidedly opposed to the voluntary system, and to the abolition of the house of lords. As for the doctrine of the honourable member for Bath, that men of moderation and compromise never succeed in establishing anything good or useful, his lordship said it was, on the contrary, his decided conviction that to the moderation and mediation between violent or extreme opinions on both sides, which had been exercised by Lord Somers, and the great Whig leaders at the Revolution, the country was indebted for all her subsequent prosperity. In reference to Mr. Roebuck’s reproach against ministers for not having conciliated the dissenters and popular favour generally by adopting the voluntary principle in church matters, his lordship said that such a course would not have that effect: his own opinion was not in favour of the voluntary system, and he believed that the people of this country were, like himself, still attached to the established church. The opposition, properly so called, took no part in this discussion, and Mr. Roebuck’s motion was negatived without a division. The discussion proved one great fact, namely, that between the extremes of opposition, the Whigs might for a long period maintain their places on the treasury benches; but at the same time they could not but feel embarrassment in a position which left them dependent on their opponents, now on the Radicals and now on the Tories. Had it been possible for the two to have united on any great question, the Whig ministry would soon have been no more; but oil and water might almost as soon have commingled, as the Tories and the Radicals agree.

ILLNESS AND DEATH OF THE KING—REMARKS ON HIS CHARACTER.

Ever since his accession to the throne, the king’s health had in general been good. In the course of the present spring, however, symptoms of decline began to show themselves; and they increased so rapidly, that by the beginning of June his situation became one of serious alarm to his family. His majesty continued to transact business, but it was under such oppressive weakness, that it was clear to his medical attendants that his end was approaching. There was no active disease, indeed, but a general languor and weakness, which foretokened dissolution. His last days were spent in preparing for eternity; nothing seemed to give him greater pleasure than the presence of the Archbishop of Canterbury, who attended him, and from whose hands he received the sacrament. His deportment at this solemn ceremony, as related by a church dignitary, was fully edifying. He says:—“His majesty had already experienced the blessed consolations of religion, and removed the doubts his anxious attendants were entertaining, by eagerly desiring the queen to send for the archbishop, seeming, as it were, anxious to ratify the discharge of his earthly by the performance of his spiritual duties. His grace promptly attended, attired in his robes, and at a quarter to eleven administered the sacrament to his majesty and the queen, Lady Mary Fox communicating at the same time. The king was very calm and collected; his faculties were quite clear, and he paid the greatest attention to the service, following it in the prayer-book, which lay on the table before him. His voice indeed failed, but his humble demeanour and uplifted eyes gave expression to the feeling of devotion and of gratitude to the Almighty which his faltering lips refused to utter. The performance of this act of religion, and this public attestation of his communion with that church, for the welfare and prosperity of which he had more than once during his illness ejaculated short but fervent prayers, was the source of great and manifest comfort to his majesty. Though the shorter form had been adopted by the archbishop, his majesty was nevertheless rather exhausted by the duration and solemnity of the ceremony; but as his grace retired, the king said, with that peculiar kindness of manner by which he was so much distinguished, and at the same time gently moving his hand and inclining his head, ‘God bless you! a thousand, thousand thanks!’ There cannot be more certain evidence of the inward strength and satisfaction which the king derived from this office of religion than that, in spite of great physical exertion, his majesty, after the lapse of an hour, again requested the attendance of the archbishop, who, in compliance with the wishes of the queen, read the prayer for the evening service, with the happiest effect on the king’s spirits. This being done, the archbishop, naturally fearing the consequences of so much mental exertion on his majesty’s debilitated frame, was about to retire, when the king motioned him to sit down at the table, on the opposite side of which he himself was seated. His majesty was too weak to hold any conversation, but his spirits seemed soothed and comforted by the presence of the archbishop, on whose venerable, benign countenance his majesty’s eye reposed with real pleasure. The king at this interview stretched his hand across the table, and taking that of the archbishop, pressed it fervently, saying in a tone of voice which was only audible to the queen, who was seated near his majesty, ‘I am sure the archbishop is one of those persons who pray for me.’ The afternoon of this day witnessed a still further diminution of his majesty’s strength; but in proportion to the decay of his bodily power, was the increase of his spiritual hope and consolation. At nine o’clock in the evening the archbishop was again

summoned by his majesty's desire. The king was now still less able to converse than on the last occasion; but his grace remained more than three quarters of an hour, supplying by his presence the same comfort to the king, and receiving from his majesty the same silent though expressive proof of his satisfaction and gratitude. At length, on the suggestion of the queen that it was already late, and the archbishop might become fatigued, the king immediately signified his assent that he should retire; and crossing his hands upon his breast, and inclining his head, said, as his grace left the room, 'God bless thee, dear, excellent, worthy man! a thousand, thousand thanks!'" This was on Sunday, the 18th of June, the anniversary of the battle of Waterloo, which the king remembered, expressing his desire that the Duke of Wellington should hold his usual banquet on the morrow. That was the day on which his majesty breathed his last. He had spent a tranquil night, but no corresponding effect was produced upon his health. Decaying nature could no longer be recruited by ordinary sources of strength and sustenance. His majesty rose at seven o'clock, for during his illness he had not been wholly confined to his bed, but there was much in his language and manner which bespoke his sense of approaching death. "I shall get up once more," he said to the queen, "to do the business of the country." After joining in the service for the visitation of the sick, performed by the Archbishop of Canterbury, in which his majesty's demeanour was characterised by the most genuine spirit of devotion. Sir Herbert Taylor was summoned, and was directed to get all things ready. As it was Monday, however, there were no papers, and consequently there was no business to transact. In the evening the archbishop visited his majesty for the last time: at half-past ten the king was seized with a fainting fit, on which he was removed into his bed, and from this time his voice was not heard, except to pronounce the name of his valet. In less than an hour death reigned in the palace of the English monarchs. His majesty expired without a struggle, and without a groan, the queen kneeling at the bedside and still affectionately holding his hand, unwilling to believe the reality of the sad event. "Thus expired, in the seventy-third year of his age, in firm reliance on the merits of his Redeemer, King William IV., a just and upright king, a forgiving enemy, a sincere friend, and a most gracious and indulgent master."

Few monarchs, indeed, have possessed the love of their subjects in a greater degree than King William IV. By the common consent of all parties he had the welfare of his country truly at heart. There was but one opinion of his character, and that was expressive of his kindness and amiability. He does not appear to have had a personal enemy in the world, although he sanctioned measures to which a large section of the community were inimical: this is praise as singular as it is high when applied to a king. His intellectual faculties may not have been of a superior order; but he had what more than counterbalanced this defect—a heart which beat high with love for his country.

CONTINUATION

OF

THE HISTORY OF ENGLAND,

By E. H. Nolan

CHAPTER XLVIII.

{VICTORIA. 1837—1838}

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THE ACCESSION OF QUEEN VICTORIA.

{A.D. 1837}

On the arrival of the news in town of the death of King William, orders were immediately issued for summoning a privy-council, which was assembled before noon on Tuesday, at the palace of Kensington. At this council directions were given for proclaiming Queen Victoria, and the act of allegiance was signed by all present, the first name on the list being that of “Ernest, King of Hanover.” When the ceremony of signing the act of allegiance had been performed, the queen made the following declaration to the country:—“The severe and afflicting loss which the nation has sustained by the death of his majesty, my beloved uncle, has devolved upon me the duty of administering the government of this empire. This awful responsibility is imposed upon me so suddenly, and at so early a period of my life, that I should feel myself utterly oppressed by the burden, were I not sustained by the hope that Divine Providence, which has called me to this work, will give me strength for the performance of it: and that I shall find in the purity of my intentions, and in my zeal for the public welfare, that support and those resources which usually belong to a more mature age, and to long experience. I place my firm reliance on the wisdom of parliament, and upon the loyalty and affection of my people. I esteem it also a peculiar advantage, that I succeed to a sovereign whose constant regards for the rights and liberties of his subjects, and whose desire to promote the amelioration of the laws and institutions of the country, have rendered his name the object of general attachment and veneration. Educated in England, under the tender and enlightened care of a most affectionate mother, I have learned from my infancy to respect and love the constitution of my native country. It will be my unceasing study to maintain the reformed religion as by law established, securing at the same time to all the full enjoyment of religious liberty. And I shall steadily protect the rights, and promote to the utmost of my power the happiness and welfare of all classes of my subjects.” On this occasion her majesty is described as displaying extraordinary self-possession: the

dignified composure and firmness of voice with which she pronounced the above declaration were indeed a theme of admiration with those who were present at the scene. Thus commenced the reign of Queen Victoria over the United Kingdoms of Great Britain and Ireland.

One effect of the descent of the crown to a female was the separation from it of Hanover, after an union which had lasted for nearly a century and a quarter. This abscission of territory, however, was scarcely noticed; it hardly called forth an observation in the newspapers, much less an expression of regret—a proof of the little value attached in this country to foreign dominion as a source of wealth or strength.

THE QUEEN'S MESSAGE TO BOTH HOUSES—EULOGIES OF THE LATE SOVEREIGN IN BOTH HOUSES OF PARLIAMENT.

On the news of the death of the king both houses of parliament were immediately summoned to meet. On that and the following day, however, the administration of the oath of allegiance to the members, formed the only business transacted. On Thursday, the 22nd, Lord Melbourne brought the following message from the queen to the house of lords:—"Victoria Regina. The queen entertains the fullest confidence that the house of lords will participate in the deep affliction which her majesty feels in the death of the late king, whose constant desire to promote the interests, to maintain the liberties, and to improve the laws and institutions of the country, must ensure for his name and memory the dutiful and affectionate respect of all her majesty's subjects. The present state of public business, and the period of the session, when considered in connection with the law which imposes on her majesty the duty of summoning a new parliament within a limited time, renders it inexpedient in the judgment of her majesty, that any new measures should be recommended for your adoption, with the exception of such as may be requisite for carrying on the public service from the close of the present session to the meeting of the new parliament." Upon this occasion the leaders of all parties in parliament expressed their strong sense of the sterling and amiable qualities of the departed monarch. Lord Melbourne lamented the loss of a most gracious master, and said that the world had lost a man of the best intentions, the most uncompromising honour, and the strictest integrity. After adverting to the naval education of the late king, to the part which he had occasionally taken in the debates of that house, Lord Melbourne moved an address of condolence to her majesty upon the death of the late king, and of congratulation upon her accession to the throne. This was carried unanimously. Another proposition also was carried with unanimity, to the effect that an address of condolence be sent to her majesty the queen dowager, assuring her majesty of the sympathy which the house entertained for her loss. Lord John Russell brought the same message to the commons, moving a similar address in reply.

BILL FOR PROVIDING THE SUCCESSION TO THE CROWN.

A bill for providing for the contingency of another demise of the crown was brought into the upper house by the lord chancellor on the 3rd of July. Its object was to make provision for the carrying on of the executive government, in such an event,

during the possible absence of the heir presumptive from the country. The bill provided that certain great officers of state, namely, the Archbishop of Canterbury, the lord-chancellor, the lord-treasurer, the president of the council, the lord privy seal, the lord high admiral, and the chief-justice of the Queen’s Bench at the time being respectively, should act as lords-justices, to exercise all the powers and authorities of the successor of the crown, as a king would exercise them at present, until his arrival in the kingdom, or until he should otherwise order. The bill also provided that the heir presumptive to the throne might at any time deposit a list—which list was revocable at pleasure—of such persons as he might appoint to act with such justices, and to be considered as part of them; and the persons named in that list were to exercise, in common with the lords already named, the functions of royalty, until the successor to the throne should otherwise determine. By another provision in the bill, however, the powers of the lords-justices were restricted to those only which were necessary to carry on the government of the country. They were not to have the power of dissolving parliament; nor of creating peers; nor of giving the royal assent to any bill altering the succession to the throne; or for changing the established religion of England, Scotland, or Ireland. The bill passed almost unanimously through both houses of parliament, Lord Brougham only urging an objection against the omission of any portion of the royal family in the lists of lords-justices named in the bill. His lordship even made this omission the subject of a protest entered in the journals of the house. His lordship began at this time to display an obstructive disposition towards the government with which he had so long acted. He had proved that his exaltation to the office of lord-chancellor had inflated his vanity, and made him so self-willed and crotchetty as to render co-operation with him either in the government of the country, or in conducting bills through the legislature, next to impossible.

THE BUDGET, ETC.

On the 30th of June the chancellor of the exchequer made his yearly financial statement. After adverting to the embarrassments which had beset the commerce of the country since the close of the preceding session, he proceeded to state the actual income and expenditure of the country, as compared with the estimate he had formed of its probable amount in the course of the last session. He had calculated, he said, that the customs would produce £20,540,000; the actual receipt was £21,445,000; the excise he had taken at £14,150,000; the actual income was, £14,439,000: the stamps he had calculated at £7,000,000; the receipts were £7,100,000: the assessed taxes he estimated at £3,575,000; they produced £3,681,000: the post-office revenue he had reckoned at £1,450,000; it amounted to £1,618,000. On the whole the income, which on the data then before him he had calculated at £46,980,000, produced £48,453,000. Mr. Rice then proceeded to state the expenditure, with reference to which he had fortunately, he said, rather under than over-estimated the probable income for the present year, as otherwise government would have become embarrassed. He had taken the interest on the funded debt at £28,528,000; the actual payment was £28,537,000: other charges upon the consolidated fund, exclusive of the West India slave-compensation, he took at £2,092,000; the actual charge was £2,183,000. With respect to the army, navy, ordnance, and miscellaneous

estimates of the year, he had taken them at £14,585, but that estimate was taken before all the supplies of the year were voted: the sum actually required was £14,652,000. The estimated expenditure for the whole year, exclusive of the West India slave-compensation fund, was £45,205,000; the actual expenditure was £45,372,000. With respect to the West India loan, Mr. Rice said that he had reckoned we might be called upon to pay annually a sum of £1,111,000; but the call had on that score amounted to £1,448,342. The chancellor of the exchequer next proceeded to make several statements illustrative of the financial and commercial state of the country. He dwelt especially on the excess of the amount of tea duty in the last year over that received in former years, and observed that it was apparent that without any change of duty, the consumption of that article was increasing. Mr. Rice took the estimates for the year as follows:—the army, navy, ordnance, and miscellaneous, £14,895,000; and the charges upon the consolidated fund, and the interest upon the funded and unfunded debt which it was necessary to provide for the current year, £30,890,000. Thus the total expenditure for the current year was calculated at £45,786,000; but that was exclusive of the West India compensation, the amount of which would be £845,000. With respect to the probable amount of the income, Mr. Rice calculated it might amount in the whole to £47,240,000, which would leave a surplus of £1,454,000. When the interest of the West Indian loan, however, was deducted, the surplus would be diminished to £608,585; and that sum would be reduced by the payment necessary to be made to meet various deficiencies of former years; in fact, all the net surplus upon which they could calculate was £384,673. In conclusion, Mr. Rice made some observations on the increased interest now payable on the unfunded debt of the country, and on the general prospects of the nation. On the latter subject, he observed, that he had before him the means of showing that within the last two or three weeks the elements of improvement had been developing themselves in various parts, and that many of the most depressed branches of trade and manufactures were rapidly reviving. As a natural consequence of this the receipts of the revenue were improving, and the condition of the country was such as to inspire him with confidence. A reduction of taxation, he said, would materially assist that revival. He inferred this from the experiment he had made of lowering the duty on various articles of consumption, especially in the instances of glass and paper. The trade in these articles was now rapidly increasing; but with the present small balance of income on hand, it was impossible for him to propose any speculative reduction of taxation. A conversation followed this statement of the chancellor of the exchequer, and several members proposed various economical nostrums for the benefit of the country, but none of them met with the approbation of the house.

ALTERATIONS IN THE CRIMINAL LAW, ETC.

In 1833, a royal commission had been issued for the purpose of inquiring how far it might be expedient to reduce the written and unwritten law of the country into one digest, and to report on the best manner of doing it. A report was made on this subject in 1834; and while the commissioners were occupied in carrying, in some degree, their own recommendations in respect of it into effect, they were further called upon by government to state their opinions on the subject of the employment

of counsel by prisoners, and on the punishment of death. In their second report, which was made in 1836, at great length, this was done, and one result was the bill which was passed in the preceding session, for allowing the assistance of counsel to prisoners in criminal cases. A more important result, however, was the introduction in the present session of a series of bills, having for their object the abolition in many instances of capital punishment. This subject had been brought before the house of commons on the 23rd of March by Lord John Russell, who argued that, if it were thought right that a change should take place in the law of the land on this head, it should be delayed as little as possible. Lord John Russell began by discussing the general doctrines advanced by Paley on the use of severity in criminal punishments, after which he gave some statistical details of capital condemnations in former years. He argued from these details that such a state of things gave a character of great uncertainty to the operation of the law, and rendered it less calculated to inspire that salutary dread in offenders which was the object of criminal punishment. His lordship proceeded to contend that there was no reason to apprehend an increase of crime from the abolition of the punishment of death in certain offences. He instanced the crime of forgery, which, with the exception of the cases of the forgery of powers of attorney and of bills, was now only punishable by transportation. The number of persons committed for this offence in the three years previous to 1833, was one hundred and fifty-five; and in the three following years two hundred and ten. In the first instance only fifty-eight per cent, were convicted; in the latter period the number convicted was seventy-one per cent. From this it appeared that there was no great increase in the number of offences, while the number of convictions was materially increased. The reason of this last effect of the present, criminal law was to be ascribed to the diminished reluctance to prosecute now that the offence was no longer capital. His lordship here stated that in a recent case a man had been tried and convicted of forging a power of attorney. That offence was yet capital; but previously to the case coming before the king in council, the secretary of state received a communication from the bankers of London, expressing their objections to capital punishment: and also another from the governor of the Bank of England, stating, though the Bank directors did not think it their duty to interfere, they had no wish to press for capital punishment. His lordship considered this to be an encouragement to proceed in their course of mitigating the punishment, and particularly for doing away with it in the two reserved cases in forgery. The principle as suggested by the commissioners on which his lordship proposed to proceed was, that capital punishment should be confined to high treason, and, with some exceptions, to offences which consist in or are aggravated by acts of violence to the person, or which tend directly to endanger life. It was proposed that capital offences should be reduced to—1st, high treason; 2nd, murder; 3rd, attempt to murder; 4th, burnings of buildings or ships; 5th, piracy; 6th, burglary; 7th, robbery; 8th, rape. Arson, piracy, burglary, and robbery were to be capital offences only when committed under circumstances or accompanied by acts directly calculated to endanger life. The setting fire to stacks would be no longer a capital offence: the crime, his lordship said, was no doubt a heinous one; but the severity of the punishment had the effect of deterring prosecutions. On the secondary punishments which were to be substituted for capital condemnation, Lord John Russell expressed considerable doubt as to

whether the present system of transportation ought to be continued. In theory it seemed desirable to remove an offender to a great distance from the scene of his crime; but the accounts of the practical working of the system were unsatisfactory. The four or five thousand persons annually sent to New South Wales were not absorbed by the population, but continued to form a large and separate vicious mass. Crime and vice were consequently on the increase in the settlement; and the continual importation of fresh cargoes of criminals threatened to aggravate the evils indefinitely. The punishment operated unequally on the convicts; it depended on the humour or temper of the masters whether their situation should be one of indulgence, or one of intolerable hardship. Moreover, there was no merit in the system on the score of economy, it cost the country from £350,000 to £400,000 annually. His lordship proposed, therefore, to abridge the number of cases of transportation, but to aggravate its operation in those which continued subject to it. No person should be transported for less than ten years, it having been found that the effect of a shorter period was to make the criminals insolent and unruly. The next period was to be for fifteen years, and the last for life. A certain hour of labour in the chain gangs was to be allotted to all the prisoners, and indulgences afforded them according to their good conduct. But these were merely suggestions; he did not in the present session intend to bring in any general measure with a view of carrying them into effect.

No opposition was given to the passing of the bills in the commons. They were brought into the upper house by Lord Denman, and the second reading was fixed for the 4th of July. The propositions were moved by Lord Denman, who alleged in their support similar facts and arguments to those urged in the commons by Lord John Russell. Lord Lyndhurst gave his full support to the principle and object of the bills; but he pointed out certain inconsistencies and anomalies of detail, which were subsequently rectified. The measures were likewise warmly advocated by Lord Brougham, who looked with confidence towards a general and effectual mitigation of the criminal code. Among the amendments which were made by the lords was one changing the term of imprisonment from five to three years, limiting the term of solitary confinement to a month at one time, and to not more than three months in a year, and the taking away the capital punishment for offences against the riot act. Thus amended, the bill passed the lords, and the amendments were afterwards agreed to unanimously by the commons.

An important alteration was made in this session, also, in the civil law of the country in respect of the forms to be observed in the execution of wills. This subject was introduced in the house of peers on the 23rd of February, by Lord Langdale, the master of the rolls. His lordship said that the general object of the measure was to collect the provisions of several statutes relating to wills into one act of parliament; and to make at the same time such modifications of these provisions as should afford additional securities for the prevention of spurious wills, and additional facilities for making genuine ones. His lordship proposed to allow the owner of copyholds and customary freeholds to dispose of them by will, which could not now be done. As the law stood, a person could only bequeath such real property as he was possessed of at the time of making his will; but his lordship said he would enable the testator to

dispose of any he might acquire subsequently to the execution of the will. At present no person under the age of twenty-one could make a will: his lordship proposed to give the power of disposing of personal property to those who were beyond the age of seventeen. With respect to witnesses the bill would enact that in all cases the execution of the will must be attested by two, whether the property were real or personal. An executor would be admitted to give evidence of the validity of a will, which he could not do at present. Under the existing law it was not necessary that both the witnesses should be present at the same time; but the bill provided that the signature of the testator or his acknowledgment should be made in the presence of two witnesses, who should then attest it themselves. With respect to the revocation of wills, no alteration was proposed in the rule whereby a woman's will is set aside, by marriage; but it was proposed to alter the rule adopted from the ecclesiastical courts in modern times, whereby a man's will is considered as revoked by a subsequent marriage and the birth of a child. The bill finally provided for the due construction and effect of certain words. His lordship said that a legislative construction of words had been objected to; but, he argued, that when a rule of construction which plainly violated the lawful intention of testators had been established in the courts of law, there was no way of correcting it but by legislative interposition. The bill was warmly approved of by the leading law authorities in the upper house, and passed almost without discussion. In the commons, also, it met with general approbation; the only opposition came from Sir Robert Inglis, who objected to it chiefly on the ground of the expense which the mode of execution there enjoined would entail on the humbler class of testators. By abolishing holograph wills, and rendering two witnesses necessary, a resort to professional advice would become indispensable. The bill, however, was ably defended by the attorney-general; and it passed into law.

PROROGATION OF PARLIAMENT.

The queen went in state to the house of lords, for the purpose of closing the session, on the 17th of July. On this occasion the speaker delivered an address to her majesty, in which, on behalf of the house of commons, he assured her of their cordial participation in "that strong and universal feeling of dutiful and affectionate attachment which prevailed among the free and loyal people of which they were the representatives, and expressed their trust that this feeling would be strengthened by a long course of constitutional, beneficent, and wise government." In recording the results of the session, the speaker expressly mentioned the acts for the abolition of capital punishments, &c.; and he expressed a hope that the important measures which had been recommended to parliament, and which had not yet been perfected, might be eventually adopted. The royal assent was then given to a number of public and private bills; after which her majesty thus addressed both houses of parliament:—

"My lords and gentlemen, I have been anxious to seize the first opportunity of meeting you, in order that I might repeat in person my cordial thanks for your condolence upon the death of his late majesty, and for the expression of attachment and affection with which you congratulated me upon my accession to the throne. I am very desirous of renewing the assurances of my determination to maintain the

Protestant religion as established by law; to secure to all the free exercise of the rights of conscience; to protect the liberties, and to promote the welfare of all classes of the community. I rejoice that in ascending the throne I find the country in amity with all foreign powers; and while I faithfully perform the engagements of the crown, and carefully watch over the interests of my subjects, it will be the constant object of my solicitude to maintain the blessings of peace." Her majesty next thanked the house of commons for the liberal supplies which they had granted for the service of the year, as well as for the provision which they had made to meet the usual payments chargeable on the civil list. Addressing both houses again, the queen thanked them for the zeal and assiduity with which they had applied themselves to the public business of the country. Notwithstanding the melancholy interruption that had taken place in their labours, she trusted they would have the beneficial effect of advancing the progress of legislation in the new parliament. Her majesty expressed much pleasure in the mitigation of the severity of the criminal code; she hailed it as an auspicious commencement of her reign. In conclusion, her majesty said—"I ascend the throne with a deep sense of the responsibility which is imposed upon me; but I am supported by the consciousness of my own right intentions, and by my dependence upon the protection of Almighty God. It will be my care to strengthen our institutions, civil and ecclesiastical, by discreet improvement, wherever improvement is required, and to do all in my power to compose and allay animosity and discord. Acting upon these principles, I shall on all occasions look with confidence to the wisdom of parliament and the affections of my people, which form, the true support of the dignity of the crown, and ensure the stability of the constitution." The age and sex of the youthful sovereign gave a singular and touching interest to this scene, and the manner in which her majesty delivered the speech heightened its effect. It was read in a clear and unfaltering tone, indicating great presence of mind and firmness of character. The appearance and manners of her majesty, indeed, enlisted in her favour all the best feelings of the august assembly she addressed—all wished that her reign might be long and prosperous.

STATE OF PARTIES AND ELECTIONS.

Queen Victoria ascended the throne at a period of perfect tranquillity. The popularity of the ministers was, indeed, declining, and they were surrounded with difficulties, partly from their own mismanagement of affairs, and partly from the position into which their eagerness for power had placed them. On the other hand the spirit of party was subsiding in the country: calm and impartial thinkers began to embrace a wider circle, yet it seemed clear that the administration could not have long existed had the late king lived a few months longer. His majesty had taken them back to his service with reluctance, and he was supposed to be on the watch for the first favourable opportunity of dismissing them. His demise, however, promised an increased stability to their power. Under their new sovereign they looked for a new order of things. She was believed to have been educated by her mother in principles and predilections favourable to their rule, and her countenance and support was expected to give not merely security, but popularity to their government. Nor did they fail to turn the event to good account. When pressed by their democratic allies to introduce organic measures for which they had no predilection themselves, it had

been their practice to allege the king’s reluctance to proceed, as a reason for not falling in with their views. When, however, Queen Victoria ascended the throne, they eagerly declared their emancipation from the thraldom of an hostile court, and they proclaimed that the young queen had entered warmly into their views, and had espoused their political creed without reservation. Another considerable resource of popular appeal to the ministerial candidates was the alleged misdeeds of the new King of Hanover. Immediately upon his accession to the throne of that kingdom, his majesty had issued an ordinance, by which the then existing constitution was suspended; and it was thought this conduct of one who was an acknowledged leader of the Tories, might be represented to the disadvantage of that party. These, and other topics, were not without their weight with the multitude. Yet, with their assistance, the ministers had sufficient to do to maintain their previous position. By the end of July the elections for English cities and boroughs were nearly over, and the relative strength of parties was little changed as regarded the Whigs. In the county elections they underwent, indeed, a serious defalcation of strength; besides losing twenty-three seats, they failed in fifteen counties out of sixteen in which they endeavoured to substitute members of their own party for Conservatives. As for the Radicals, public opinion was still less in their favour: even Mr. Hume failed in being returned for Middlesex, and was driven to the necessity of appearing in the house as Mr. O’Connell’s nominee for Kilkenny. The Radicals, it is true, did not suffer numerically; but the absence of many of their leaders from the representation of important towns which they had hitherto represented, was significant of the waning popularity of extreme opinions. The loss, however, which ministers sustained in the English representation, was somewhat compensated by the returns of Scotland and Ireland. But while their numbers were not on the whole diminished, there was an evident falling off in quality. Their friends were not the representatives of such an extensive part of the population as they had been in the last parliament.

CITY BANQUET TO THE QUEEN.

During this autumn the great corporation of the city of London distinguished itself by a striking demonstration of its loyalty to the crown, in a magnificent entertainment which was given to the queen in Guildhall, on the 9th of November. On this occasion the utmost enthusiasm prevailed, and her majesty’s reception, both in her progress to the city and at the banquet, must have been highly gratifying to her feelings. Along the entire route, in going to and returning from the city, she was greeted with enthusiastic cheers, and in the evening a brilliant illumination appeared along the whole line of her passage. Nothing was wanting, indeed, to give the utmost possible splendour to the pageant. The event showed that the “liberal” common-council of the city of London still fostered a substantial respect for loyalty—a circumstance of great political interest.

OPENING OF THE NEW PARLIAMENT.

On the 20th of November the queen went in state to the house of lords to open the new parliament. Having read and signed the usual declaration, her majesty read the speech in a clear and audible voice. The speech expressed satisfaction at the friendly assurances of all foreign powers; regretted that civil war still afflicted the kingdom of

Spain; stated that directions had been given for a treaty of commerce, recently concluded with the united republic of Peru and Bolivia, to be laid before parliament; recommended to their serious consideration the state of the province of Lower Canada; and stated that the demise of the crown rendered it necessary that a new provision should be made for the civil list. On this latter subject the queen remarked, that she placed unreservedly at the disposal of the house of commons, those hereditary revenues which were transferred to the public by her immediate predecessor, and that she had commanded such papers as might be necessary for the full examination of the subject to be laid before them. Her majesty's speech concluded thus:—

"My lords and gentlemen—The external peace and domestic tranquillity which at present happily prevail, are very favourable for the consideration of such measures of reformation and amendment as may be necessary or expedient, and your attention will naturally be directed to that course of legislation which was interrupted by the necessary dissolution of the last parliament. The result of the inquiries which have been made into the condition of the poor in Ireland has been already laid before parliament. And it will be your duty to consult whether it may not be wise and safe to establish by law some well-regulated means of relief for the destitute in that country. The municipal government of the cities and towns in Ireland calls for better regulation. The laws which govern the collection of the tithe-composition in Ireland require revision and amendment. Convinced that the better and more effectual administration of justice is amongst the first duties of a sovereign, I request your attention to those measures which will be submitted to you for the improvement of the law. You cannot but be sensible of the deep importance of these questions which I have submitted to you, and of the necessity of treating them in that spirit of impartiality and justice which affords the best hope of bringing them to a happy and useful termination. In meeting this parliament, the first that has been elected under my authority, I am anxious to declare my confidence in your loyalty and wisdom. The early age at which I am called to the sovereignty of this kingdom renders it a more imperative duty, that, under Divine Providence, I should place my reliance upon your cordial co-operation, and upon the love and affection of my people."

The address was moved in the house of lords by the Duke of Sussex, who, in the several topics of his speech, avoided every allusion or expression capable of giving offence to any member of the house. His royal highness referred with much satisfaction to the declaration of the Duke of Wellington at the close of the last session, namely, that he would assist in the settlement of the Irish questions, and also to the approbation he had avowed of the new poor-law. His royal highness further expressed his pleasure at the affectionate reception which the queen had met with in her late visit to the city, and adverted to the peculiar interest with which he regarded a sovereign whose birth he had been one of the first to witness. The address was seconded by Lord Portman, and fully assented to by the Duke of Wellington, who said he would follow the example which had been set him of abstaining from every remark that could awaken party feeling. The address was then agreed to, and ordered to be presented with the usual forms.

In the commons the address was moved by Lord Leveson, and seconded by Mr. Craig. A discussion followed, in which Mr. Wakley took the lead. After hearing the speech from the throne, Mr. Wakley said he rose to remind ministers that they had some radical supporters in the house, a circumstance which they appeared to have forgotten. After hearing the speech from the throne, he could not avoid asking to what purpose they had been so anxious, in 1835, to eject Sir Robert Peel and the Conservatives? It was complained of the speech from the throne framed by Sir Robert in that year, that it was vague and unsatisfactory: he, Mr. Wakley, had never read a speech from any sovereign of this country more open to the same reproach than the present one. He thought that at the commencement of a new reign, with a young queen educated as ours had been, the people had a right to expect a more explicit acknowledgment of their grievances, and some indication of the means of redress. They were now fresh from the hustings, where they had all been liberal in promises: even the Tories had professed themselves the friends of the people, and declared their delight in seeing the operatives come forward, and take a share in politics. In order to test the sincerity of both parties, he would move an amendment, in general terms, in favour of an extension of the suffrage. Mr. Wakley concluded his speech by moving three amendments, which he said he would put to the house separately, in order that members might have no excuse for avoiding to vote on any particular proposition. The first amendment was to the effect, “That this house embraces the earliest opportunity of respectfully assuring her majesty, that it will in the present session of parliament take into consideration the state of the representation of the people in this branch of the legislature, with a view to ensure by law an equitable extension of the elective franchise.” This amendment was seconded by Sir W. Molesworth, and supported by Messrs. Hume and Grote. On the other hand it was opposed by Mr. Liddell, Colonel Perceval, and Lord John Russell. The latter admitted the reproach—if reproach it were—of having framed the speech with a view to preclude discussion. It was desirable that the queen should receive from her first parliament an unanimous address. In allusion to Mr. Wakley’s amendment, his lordship observed that the hon. member had put his powders into three separate papers, as portions of what he considered the same medicine. Without entering into any general discussion of the questions involved in those amendments. He thought it necessary shortly to state his opinion of the present operation of the reform bill, and of his own position with respect to it. He admitted the disadvantages and injuries to which the reform act was subject; corruption and intimidation had prevailed at the late elections to a great extent. With respect to the registration of voters great amendments had been made. These were points on which it behoved parliament to be always attentive, to see that the act suffered no essential injury, and to remedy any error in the details which experience of its actual working might suggest. But these, his lordship continued, were questions widely different from those now brought forward, such as the ballot, the extension of the suffrage, and triennial parliaments, which were, in his estimation, a repeal of the reform act, and placed the representation on a totally different footing. He was not prepared to go thus far. With respect to registration, Lord John Russell said that the attorney-general was about to bring forward the bill of last session in an amended form, and he himself would reintroduce the measure respecting the payment of rates. But as to a second reform

of the representation, having only five years ago placed it on a new basis, it would be a most unwise and unsound experiment, now to begin anew the process of reconstruction; he, for one, at least, would decline taking any share in such a measure. Sir Robert Peel congratulated the house upon the noble lord's aversion to Mr. Wakley's physic. The member for Finsbury called for a change, in order to recover for himself and his party the predominance they had lost; but he was confident that if he were to give Mr. Wakley a _carte blanche_ to cut and carve the constituency as he pleased, he and his party would still be in a minority. Mr. Ward, on the other hand, warned Lord John Russell that by his declaration against the ballot, he had signed his own death-warrant, and chalked out his political grave. On a division, Mr. Wakley's amendment was negatived by five hundred and nine against twenty; and his two other amendments, pledging the house to the vote by ballot and the repeal of the septennial act, were then put, and negatived without a division.

The question having been again put on the address, Mr. Harvey proposed an amendment to this effect:—"That whilst this house is desirous of making the most liberal provision for the support of the becoming splendour and just dignity of the crown, they feel that the same ought to be derived from obvious and direct sources; and that to such end every branch of the hereditary revenues of the crown ought to be placed, without reservation, and without exception, under the control of parliament, as the surest means of protecting the crown against exaggerated impressions of their amount, and as a security against their misapplication." The amendment further set forth, that in the arrangement of the civil list, the house confidently relied upon the ready co-operation of her majesty, in promoting all needful inquiry into the claims of persons to be continued as recipients of state provision. In moving this amendment, Mr. Harvey observed that the former part of it was in substance the same with the proposition ministers had themselves made on the subject when in opposition. He pressed the second part of his amendment, on the ground that a strong feeling existed in the public mind against it as it now stood, which feeling was materially strengthened by the late alteration in the poor-law system. He assured ministers that they had not a superabundance of popularity, and he predicted that Lord John Russell's declaration of that night would operate fatally to his government. In reply, Lord John Russell contented himself with stating that an account of the actual and average receipts from the duties in question would be laid before the committees; and that with respect to the pension list, the precedent of 1831 would be strictly followed. Ministers agreed in thinking it far wiser to provide against abuses for the future, than to take away pensions already granted. If the revision proposed by the hon. member should be adopted by parliament, ministers would claim the right of further consideration, before they decided whether or not they should give it their support. After a few words from Mr. Harvey in rejoinder, his amendment was put and negatived without a division.

Lord John Russell's determination to resist any further movement in the way of constitutional innovation, was made the subject of indignant comment on the part of the radical organs, both in parliament and throughout the country.

THE SUBJECT OF THE CIVIL LIST DEBATED.

The subject first brought before the attention of parliament by ministers was the arrangement of the civil list. On the 23rd of November the chancellor of the exchequer moved that the passage in the queen’s speech relating thereto should be referred to a select committee. He observed that former sovereigns had inherited considerable personal property from their predecessors, while Queen Victoria had derived nothing from that source, and would further be deprived of the revenues of Hanover, now a separate kingdom. Her establishment must also so far exceed that of a king or of a queen-consort, as being composed of ladies as well as gentlemen. Under those circumstances Mr. Rice submitted that the charges of the establishment of the late king were proper for Queen Victoria, These charges were:—

William IV. The Queen.

First class, privy purse..... £110,000 £60,600

Second class, salaries..... 130,000 130,000

Third class, bills 171,500 172,000

Fourth class, special service... 23,000 23,200

Unappropriated money..... 9,000

Total £510,000 £470,000

In conclusion, Mr. Rice touched upon the decrease in the amount of the pension list, and said he should be prepared to prove that the pensions granted by Earl Grey and Lord Melbourne had been awarded in strict conformity with a resolution of the house passed in February, 1834, which recommended the granting of pensions to such persons only as by their services to the crown, or the public, or by useful discoveries in science or art, had a just claim on the benevolence of the crown or the gratitude of the nation. The papers with reference to the civil list were referred to a select committee, consisting of twenty-one members. The result of their labours was a report in favour of the minister’s proposition, which was presented on the 16th of December, when a bill carrying out his views was brought in. The bill was read a third time on the 19th of December, after which Mr. Hume moved that the sum granted to the queen should be reduced from £385,000 to £335,000; and this motion having been negatived, Mr. Grote proposed as an amendment the entire removal of the sum allotted to pensions from the civil list. This amendment was seconded by Mr. Hume, and opposed by the chancellor of the exchequer, who contended that in a monarchical government, the power of conferring honour and rewards should be inseparably attached to the crown. The principle advocated by the honourable member struck at the very root of monarchy. Mr. Rice proceeded to deny that politics had influenced ministers in their grant of pensions to literary and scientific men, as had been asserted by Mr. Grote, and expressed his belief that were any government disposed so to prostitute its power, there was a spirit in literature and science which would save talent from the disgrace of such political profligacy. Mr. Grote’s motion was further opposed by Mr. Charles Buller, albeit he was his friend. He differed from him both as to tire policy of granting pensions at all, and in respect to the quarter in which the power of according them should be placed. He thought that it was

desirable that men of letters should be fostered by the government, when labouring for the public good, and without the support of popular favour. Scarcely a great name in English literature could be produced which had not been supported by regal or individual generosity. At the present day, men of letters would not brook to receive the bounty of private individuals: men like Hobbes or Locke, could no longer consent to depend on the liberality of an Earl of Devonshire, or an Earl of Shaftesbury. On a division Mr. Grote's amendment was rejected by a majority of one hundred and twenty-five to twenty-three. An amendment was then moved by Sir Robert Peel, to the effect that if the sum of £1200 were not granted in pensions in any one year, the difference might be applied in any subsequent year. No opposition was made to this amendment on the part of ministers; but the Radicals divided against them, and it was carried by a majority of one hundred and fourteen to twenty-six. Another and last protest was made against the bill by Mr. Hume, but the bill passed without further division.

The bill was taken to the lords and read a first time on the same evening. Lord Melbourne moved the second reading on the 20th, and in doing so entered into a full explanation of the details of the bill, and emphatically called upon the peers to support it, as they valued the preservation of the monarchy, laws, and liberties of England. He would not say that monarchy was the best form of government that ever existed, but an attempt to alter it in this country would be the height of insanity and crime. The only opposition to the measure in the house of lords came from Lord Brougham, who contended that due consideration had not been employed either in the framing or passing of this bill. The wisdom of making a definite arrangement for the life of a sovereign who might be expected to reign for the next half century was questionable; and yet this was to be done, and a civil list voted which exceeded that of lier majesty's predecessors, while parliament was left in the dark as to those very important revenues possessed by the crown, the incomes of the duchies of Cornwall and Lancaster. After a few words from the Duke of Wellington, who expressed his apprehensions that the bill did not contain a sufficient provision for pensions, the bill went through the committee, and was afterwards read a third time and passed without a division. It was customary that the royal assent should be given to bills of this nature in person, and the queen went in state to the house of lords on the 23rd of December for that purpose. On presenting the bill, the speaker observed, that it had been framed in "a liberal and confiding spirit," on which the queen bowed her acknowledgment, and after the royal assent had been given to that and other bills, her majesty left the house.

On the 11th of December, a message was brought from the queen to both houses, recommending to the consideration of parliament the provision made by law for the support of her royal highness the Duchess of Kent, and expressing her majesty's reliance on their zeal and loyalty to adopt such measures for the future provision of the duchess as her rank and station, and increased proximity to the throne might require. On the following day this message was taken into consideration by a committee of the house of commons, when an additional grant of £8000 a year, raising the annual income of the duchess to £30,000, passed without much discussion.

THE SUBJECT OF THE PENSION LIST.

The chancellor of the exchequer redeemed a pledge which he had given in the debate on the civil list, by moving “for a select committee to inquire how far pensions granted in virtue of the first of William IV. c. 24, and charged on the civil list, and in virtue of second and third William IV. c. 116, charged on the consolidated fund, ought to be continued, having due regard to the just claims of the parties, and to economy in the public expenditure.” Mr. Spring Rice, on this occasion, gave a brief history of the pension list. Sir Robert Peel opposed the motion, and moved a series of resolutions, declaring it advisable to make such provision as should enable the crown to continue all such pensions as had existed at the accession of the late king, or had been granted by him during his reign. This amendment was seconded by Lord Elliot, and supported by several Conservative members. Mr. Harvey took the lead in opposing it. Mr. Spring Rice closed the debate by endeavouring to vindicate himself from the charge of inconsistency; and on a division the motion for a committee was carried by a majority of two hundred and ninety-five against two hundred and thirty-three.

INTELLIGENCE FROM CANADA—DISCUSSION ON THE SUBJECT—ADJOURNMENT OF THE HOUSE.

The settlement of the civil list left ministers at liberty to move the immediate adjournment of the house. Before they separated, however, news arrived of a revolt in Canada. On the 22nd of December, Lord John Russell rose to move the order of the day, for the house to resolve itself into a committee of supply, and at the same time took occasion to state that, although no measures could be taken by the house with regard to Canada, he nevertheless did not consider himself justified, in the actual condition of that province, to move the adjournment of the house beyond the 16th of January. The present state of affairs was this: the assembly having been convened to consider the resolutions passed in parliament, had been adjourned on their refusal to entertain the supplies, or to proceed to business. Despatches, subsequently received from Lord Gosford, showed that the intention was not to seek redress by means of that assembly, but to extort it by violence from her majesty’s government. In this state of things Lord Gosford had tendered his resignation, which had been accepted, and the administration of affairs entrusted to Sir John Colborne, in whose judgment and abilities government felt the highest confidence. They had declared to that officer that, though they were reluctant to resort to means of extreme severity, yet, nevertheless, if he found it necessary to proclaim martial law in the province, they would take upon themselves the responsibility. Accounts of open disturbance had been recently received; and there was reason to believe that a collision had taken place between her majesty’s troops and persons in arms for treasonable purposes. He thought that government had done their duty in the measures they had taken. On the morrow he purposed to produce such details from Lord Gosford’s despatches as might be communicated without injury to the public service, and would call upon parliament, in January, for such measures as the exigency of the case might demand. Mr. Leader applauded the resort of the Canadians to arms, and derided as desperate every effort of the government to put them down; their cause was considered a

common one by all our North American colonies. Sir William Molesworth and Messrs. Grote and Warburton all expressed their sympathy for the Canadian insurgents, and augured their success. A discussion ensued, in which the Radical leaders denounced the mother country in terms as strong as any employed by the leaders of the Canadian insurgents. Mr. Warburton advocated the separation of the colony from the empire. Mr. Gladstone maintained a just view of the dispute between the colony and the mother country, but so mystified his arguments by useless subtleties and verbosity, that the speech failed to produce an effect corresponding to its substantial merits. Mr. Leader boldly expressed his complacency in the dismemberment of the empire, and the speech of the hon. member was denounced by Mr. George F. Young as disloyal. Sir George Grey made a sensible speech, expository of the true condition of Canadian affairs. Mr. Maclean exposed and denounced the conduct of Mr. Papineau, the leader of the French Canadian insurgent party. Lord John Russell delivered a speech sound and statesman-like, which completely “carried the house with the government.” As usual when ministers were at issue with their Radical supporters, the Conservative party took no prominent share in the debate. On the following day both houses of parliament adjourned to the 16th of January.

STATE OF THE CONTINENT.

War still continued in Spain. At the close of the last year the troops of the queen had succeeded in the relief of Bilboa, an event which had the effect of giving rise to dissensions among the Carlists. After this event, many weeks were spent by the Christino commanders in concerting a combined movement upon the Carlist lines in Guipuscoa. An attack was made upon them by General Evans on the 15th of March. His forces were collected at Loyola, the right of the line being composed of Spaniards, and the left of the British legion, which amounted to between four and five thousand men. The attack was at first successful: the Carlists, having maintained a furious fire, after a five hours’ conflict abandoned their last defence, and fell back to Hernani. On the following day, however, matters took a different turn: while the victorious troops were preparing to descend upon Hernani, on a sudden solid masses of infantry appeared behind the town, under the command of Don Sebastian. These troops consisted of ten fresh battalions; and their charge was so impetuous, that the British legion and the Spanish troops were obliged to give way. From this time the army of Don Carlos gained courage, and province after province was invaded by his guerilla chiefs. Still no decisive event favoured his design upon the Spanish throne. In one grand point he, however, succeeded, that of annihilating or dispersing the British legion. Unsupported by the people for whom they fought, many of them were slain in various engagements of desultory warfare; and at length those who remained laid clown their arms, and the British auxiliary legion ceased to exist. Before this event General Evans had returned to England, disheartened by the want of co-operation in the Spanish generals. But the year closed, and the Carlists and Christinos were still arrayed in arms against each other. People of the same nation and the same blood were seeking each other’s destruction with a deadly animosity.

In Portugal, also, there were strifes and divisions, and rumours of intended insurrections. In that country, moreover, the British who had defended the cause of

the queen were ill treated. The unpopularity of the English increased daily, and the ambition and selfishness of Great Britain were the constant themes of the popular press. So odious were our countrymen that the English admiral in the Tagus thought it necessary to issue the following general order to his captains:—“The unsettled state of the country, and the differences known lately to have existed between her most faithful majesty and her present ministers, as well as the difficult position in which his royal highness Prince Ferdinand is placed with regard to the Portuguese people, and the great suspicion with which all foreigners he brought here into his service are viewed, renders it necessary that the utmost caution, should be observed by the English residing in Portugal with respect to private interviews either with her most faithful majesty or her august consort, that neither the government nor the people may have a pretext for entertaining any undue impressions of the intentions of England. It is therefore my most positive orders that you do not yourself call at the palace, nor permit any officer to do so without my previous sanction.” The British ambassador sought, though in vain, to obtain justice for the officers and soldiers who had been in Don Pedro’s service, and whose claims upon the Portuguese government remained unliquidated. A royal order appeared, indeed, informing “the foreigners lately in the service of her most faithful majesty,” that if they were dissatisfied with the decision of the commissioners to whom their claims stood referred, “the law was open to them.” This was most unsatisfactory, as the Portuguese courts of law are notorious for corruption. The privileges of the British, indeed, ceased to be respected in Portugal, and their claims were set aside. They were restrained from carrying on retail trades, which they had hitherto done by virtue of early treaties, and as they were entitled to do by law. At the same time, disputes were constantly taking place on the Tagus between the crews of British vessels and the custom-house officers.

CHAPTER XLIX.

{VICTORIA. 1838—1839}

Parliament reassembles: Debates on Canada; Address to the Throne moved by Lord John Russell; Bill for suspending; the Lower Canadian Constitution..... The Question of Election Committees..... Motion for the Ballot..... Parliamentary Qualification Bill..... Personal Attacks..... Revival of Anti-slavery Agitation..... Debates on the Irish Poor-law Bill: the Bill carried in the Commons..... Motion for the Repeal of the Appropriation Clause..... Ministerial Plan for settling the Tithe Question..... Committee of the House of Commons upon the Irish Municipal Bill; the Bill rejected..... The Coronation..... Debates in the House of Commons on the Irish Tithe Question..... The Irish Poor Law Bill carried in the Lords..... Projected Formation of a Colony in New Zealand..... Financial Statements..... Motion for Repeal of the Corn Laws..... Various Improvements in the Law..... A Select Committee to inquire into the Operation of the Poor Laws..... Combinations in England and Ireland..... Debates in Parliament on John Thorn, alias Sir William Courtenay..... Committee on Church Lands..... Act for abolishing Pluralities..... The Subject of Education discussed in both Houses..... The Question of Canada renewed..... Queen Prorogues Parliament.....

Disaffection among the Working Classes..... Proposed Reduction of the Rates of Postage..... The State of Ireland..... The Affairs of Canada..... The State of the Continent.

PARLIAMENT REASSEMBLES—DEBATES ON CANADA—ADDRESS TO THE THRONE MOVED BY LORD JOHN RUSSELL—BILL FOR SUSPENDING THE LOWER CANADIAN CONSTITUTION.

{A.D. 1838}

Parliament reassembled on the 16th of January. The first subject brought under notice was the affairs of Canada. This subject was introduced by Lord John Russell, who, after recapitulating the principal events that had occurred since the connexion of that colony with Great Britain down to the report of the Committee in 1828, took up his ground on that report, which the assembly of Lower Canada had characterised as “an imperishable monument to the justice and profound wisdom of the committee, an authentic testimonial of the reality of their grievances and of the justice of their complaints, faithfully interpreting their wishes and their wants.” It might have been supposed, said his lordship, that after the people and the government of this country had proved themselves anxious to perform all that was asked for, and that was indicated by the reports of the committee, the Canadians would have been not only satisfied, but willing to express their cordiality towards the British government. The case, however, was the very reverse of this. On the 6th of December, 1828, the house of assembly resolved, “That on the permanent settlement before mentioned being effected, it would be expedient to render the governor, lieutenant-governor, or person administering the government for the time being, the judges and executive councillors, independent of the annual vote of that house, to the extent of their present salaries.” Having adverted to other resolutions indicative of the growing dissatisfaction of the Canadians, Lord John Russell proceeded to state what had been done in order to remedy the grievances set forth in those resolutions. The independence of the judges was demanded; and Lord Ripon, then colonial-secretary, had fully concurred in its reasonableness, and had suggested a method for carrying it into effect. The house of assembly, however, instead of following out that suggestion, tacked to the law by which the independence of the judges was to be secured, certain provisions relating to the hereditary revenues of the crown, and to the establishment of a court of impeachment for the judges. Then as regarded the subject on which the widest difference between the assembly and the imperial government had existed, no opposition had been offered to the terms of the assembly’s resolutions. The judges were informed, instantly, that, with the exception of the chief-justice, it was no longer desirable that they should sit in the legislative council; and a number of persons were added to that body totally independent of the crown, and giving a great majority in the council to those who were unconnected with the government. Of the forty members in the council, indeed, not less than eighteen were French Canadians: many of the members of English origin had quitted the province, and but seven remained in official connexion with the government. Another grievance related to the crown and clergy reserves; and Lord Ripon had declared it was time to put an end to the old

system; and only differed from the assembly in wishing to prevent an undue facility from being afforded to poor and improvident purchasers of waste lands. Concessions had also been made with reference to the property of the Jesuits, which had been ordered to be applied to educational purposes; and on the much-contested, question of the duties collected under the earlier acts, and which the crown had, according to law, the right of appropriating. The Canadians, however, made but a poor return for these concessions. In 1833, a supply-bill, containing the most unusual conditions, passed the house of assembly; and in the following year the assembly adopted a course which had led to the present difficulties. It passed ninety-two resolutions, some of grievance, some of eulogy, and some of vituperation, and amounting in the whole to a long and vehement remonstrance; and after spending an entire session in framing it, it separated without having passed any bill of supply. Since that time no supplies had been voted. The demeanour of the house of assembly in the following years remained unaltered. At the commencement of his speech, Lord John Russell proposed a bill to suspend for a certain time the existing constitution of Lower Canada; and at the same time moved an address pledging the house to assist her majesty in restoring tranquillity to her Canadian dominions, His lordship in the course of his speech gave an outline of the intended bill. Mr. Hume entered at considerable length into a recapitulation of the past and present grievances of the Canadians. He laid the blame of all that had passed upon the government; and said that “it was not the man who shed blood, but the man who stimulated him to shed it, who was the guilty party.” Mr. Grote likewise opposed the proposed address. He threw the responsibility of the failure of the measure which had been taken to adjust the financial disputes, upon Lord Ripon. Not content, he said, with advancing a claim to the appropriation of the casual and territorial revenues to the purposes of civil government without the consent of the house of assembly, that noble lord had thought fit to propose to make them over to the clergy; a step which was at once novel and preposterous, and only embroiled matters still further. Sir Robert Peel promised his cordial assent to the address, because this country had acted with justice and liberality towards Canada. He thought that the military force in the colony should have been immediately increased. In reply, Lord Howick endeavoured to show that the government was not culpable in omitting to back their resolutions of the last year with a military force. He argued that regiments were not necessary to put down meetings: they could not stop speeches, prevent resolutions, or obtain juries to convict men for seditious practices. An additional regiment introduced into Halifax had, in fact, served greatly to increase the existing discontents. Mr. Charles Buller supported the address: the law should be vindicated, and the insurgents put down without parley, unless we were prepared to consent to a separation, and leave Canada to itself. There was no ground for separation, nor could we with any regard to the interests of the colony consent to abandon it; but we ought to comply without delay with all the just demands of the Canadians. Mr. Leader complained of being taken by surprise; and wished the house to adjourn for the purpose of giving himself and his friends time to consider what course they should take, and an opportunity of refuting the “fallacies contained in the noble lord’s speech.” This was opposed by Lord John Russell; and on a division the motion for an address was carried by one hundred and eighty-eight against twenty-eight.

On the following day Lord John Russell brought in his proposed bill for the suspension of the existing constitution of Canada. Its leading object was to enable the governor-general and council, on the motion of the governor, to pass any laws which might be considered necessary, during the present suspension of the legislature of the province. In addition to the means for suppressing the insurrection, the bill would authorise the governor-general to grant a general amnesty. With respect to the future government of Canada, his lordship said, that it was the intention of ministers that the governor-general should be invested with power to convene a certain number of persons; namely, three from the legislative councils of each of the two provinces, and ten “representatives” from each, to form a council to concert with the governor-general as to the measures which might be deemed advisable for the adjustment of the affairs of the province. The persons to be named would be chosen by the governor-general, while those who were to be convened, having a “representative character,” might of course be taken from the legislative assembly. But as in Lower Canada it was almost impossible that the assembly would be brought to act beneficially, it would be competent to the governor-general, both in the upper and lower province, to hold elections for persons, amounting to twenty in the whole, to concert with him upon the general state of affairs. Sir Hussey Vivian said that Mr. Hume had constantly stated in that house that he anticipated a revolt. No man had a greater right to foretell such an event. The man Martin had recently foretold the destruction of Yorkminster; and he had set it on fire to fulfil his prediction. In that same manner Mr. Hume had taken measures for the fulfilment of his prophecy. Sir George Grey, the under-secretary for the colonial department, in reply to some doubts which had been raised by Mr. Hume, with respect to the loyalty of the other North American colonies, cited facts to prove that the best possible spirit existed in Nova Scotia and New-Brunswick. Mr. Grote presented a petition from Mr. Roebuck, praying that he might be heard at the bar in defence of the house of assembly of Lower Canada, and in opposition to the ministerial bill. Lord John Russell thought that the house should be allowed time to consider precedents; and after some further conversation Mr. Grote gave notice that he should call the attention of the house to the subject on the 22nd instant.

The subject of Canada was brought before the lords on the 18th by Lord Glenelg, who moved an appropriate address to the queen. After adverting to the disturbances in that province, he made reference to the intended bill. With respect to ulterior arrangements his lordship saw great difficulties in the way of a legislative union between the two provinces, but thought that considerable advantage might be made of a federal union. In conclusion, his lordship defended the conduct of government in not having provided more troops for the suppression of the insurrection. Lord Brougham ridiculed Lord Glenelg’s despatches, to which that noble lord had referred in his speech. The despatches were certainly the products of a mind inadequately furnished with the experience and knowledge necessary for the task imposed upon it, but the honest intentions of the writer were equally apparent, and might have protected him from the kind of invective to which the noble logomachist subjected him. The whole speech of Lord Brougham was as damaging to himself as to the government which he assailed. He pursued the government with his irony and abuse,

not because they fell beneath him in point of honour or principle, but because they refused him their confidence as Lord Chancellor, when his indiscretions and bullying rendered him alike odious to the court and unendurable to the cabinet. His lordship might fairly be considered as much the “standing counsel” for the rebellious Canadians in the lords, as Mr. Roebuck was in the commons. Nevertheless, the denunciations of the government by the eccentric peer were in the main grounded upon their errors and vacillation, and these vices in their administration were depicted with a scathing eloquence, and a malignant spirit. Lord Brougham played the part of a mere partisan, and was set down by the country for such. The patriotic prestige associated with his name passed away. Lord Melbourne, in reply, characterized Lord Brougham’s speech as “a laboured and extreme concentration of bitterness.” Concerning the charge against ministers of neglect in not providing against the possibility of an outbreak, his lordship said, that it was a difficult question which they had at the time to decide. By not re-enforcing the troops they ran the hazard of what had in fact occurred; but, on the other hand, had a considerable force been sent out, there would have been an end to all chance of an amicable termination of the disputes. It would have been instantly said, that we were filling Canada with troops, and thus manifesting a fixed intention of putting down public opinion by the force of arms. The Duke of Wellington thought that the proceeding’s should have originated in a message from the throne. With reference to the military force, he said, that he must do ministers the justice to say that he could not blame them for not having taken more active measures. He knew several officers in Canada; and the opinions of these officers, as communicated to him, were, that there was not the smallest reason to apprehend anything like insurrection in Lower Canada. At the same time his grace said, that he could not understand, when ministers had found it expedient to move troops from Nova Scotia and New Brunswick into Canada, they did not despatch fresh troops to supply the vacancy thereby occasioned. After a few words from Lord Ripon, who condemned the conduct of government, the Marquess of Lansdowne applauded the candid terms in which the Duke of Wellington had expressed his opinion on the military part of the question. The Earl of Durham, who was about to go to Canada as governor, said, that it was impossible for words to express the reluctance with which he had undertaken the arduous task, and incurred the awful responsibility which must await him in his endeavours to execute the objects of his mission. Nothing but the most determined devotion to her majesty’s service, and the welfare of his country, could have induced him to place himself in a situation in which he feared he should neither answer the expectations of his friends nor of the nation. Having noticed the various tasks which would devolve upon him, his lordship said, with an apparent foreboding of what was to ensue, that he could not perform them without the cordial and energetic support of her majesty’s cabinet, and the co-operation of the imperial parliament. Lord Glenelg closed the debate by retaliating on Lord Brougham for his fierce denunciations, and by contrasting his conduct with that of the Duke of Wellington, whose candour and magnanimity he warmly applauded. The address was agreed to.

According to notice, Mr. Grote, on the 22nd, moved that Mr. Roebuck be heard at the bar on behalf of the assembly of Lower Canada. Mr. Roebuck relied on his title to

be heard as general agent for Canada, but Mr. Gladstone said that he was not aware of any constitutional right or privilege of colonies to appoint agents with powers of this general description. If allowed in practice, it must lead to interminable confusion. Lords John Russell and Stanley also expressed their aversion to hearing Mr. Roebuck as an agent of Canada; but the motion was nevertheless acceded to. On the motion of Lord John Russell, the bill for suspending the constitution of Lower Canada was read a second time; after which Mr. Roebuck proceeded to address the house from the bar. His speech was by no means conciliatory; on the contrary, his care seems to have been to select such topics as were most likely to prove generally offensive to its temper and prejudices. In one passage he remarked:—“Talk to me of being frightened at being called a traitor—at being told that my life is forfeited—at the newspapers setting forth that I am to be sent to the Tower! Do you think that I am to be frightened by such petty warfare? If I be guilty, why are there not some who dare accuse me lawfully? My papers have been seized: let them be produced. I have not run away; because I know that there is a jury in England who will render justice to the accused.” On Mr. Roebuck’s withdrawal, Mr. Hume moved the postponement of the committal to that day six months. This motion was opposed by Sir George Grey, who replied to Mr. Roebuck’s speech in a very able harangue. The subject was renewed on the 23rd by Sir William Molesworth. Mr. E. L. Bulwer gave ministers his cordial support. He thanked them for their determination to uphold the integrity of the empire, and the maintenance of the laws; and he thanked them as a friend to a liberal and popular policy, for their declared resolution to redress the grievances of Canada. He would ask Mr. Warburton and his friends, whether they were aware that till within the last seventy years printing-presses were forbidden in Canada; that at the present day the vast majority of the electors could neither read nor write; and that it often happened that the foreman of a jury could not give in the verdict because of his inability to read it? Was this a colony fit for independence? If it were a republic to-morrow, it would be a monster in legislation—half-jacobinism, half-feudalism. Mr. Bulwer designated Mr. Warburton and his friends, in the course of his speech, by the term “philosophical Radicals.” Mr. Grote, in reply, said that the designation was quite as respectable as that of “literary Whig.” The debate was closed by Lord John Russell. On a division the motion for going into committee was carried by a majority of two hundred and sixty-two against sixteen.

On the 25th Lord John Russell, in moving that “the speaker leave the chair,” informed the house that in looking over the bill he had discovered a number of verbal amendments to be necessary, and as it was desirable that these should be introduced before the discussion was resumed, he moved that the house should go into committee _pro forma_, in order to afford an opportunity for making the requisite alterations. Upon the question being put that the speaker leave the chair, Mr. Warburton rose and made a long speech in opposition, which was utterly devoid of any practicable suggestions. A long and rambling debate followed, without any result.

The house finally went into committee on the bill, and proceeded to consider its several clauses and the amendments proposed. The bill was read a third time, and passed on the 29th of January, by a majority of one hundred and ten against eight; the few non-contents being Radicals.

The bill came before the house of lords on the 2nd of February, when it was opposed by Lord Brougham, in a speech of great length, and in an acrimonious spirit. Lord Aberdeen also, though he supported the measure, expressed his contempt of the conduct of the government. Lord Melbourne had quietly endured the repeated attacks which had been made upon ministers; but on this occasion he retorted upon Lord Brougham's censures with effect, convicting him of a change of principles. Lord Brougham, however, denied that he had changed his principles: it was the changed conduct of others that had compelled him to oppose them. The Duke of Wellington reproduced many of the objections that had been urged in the other house; and Lord Wharncliffe, after censuring the conduct of ministers, gave a reluctant assent to the bill. On the 5th of February, Mr. Roebuck, on the motion of Lord Brougham, was heard by the house as agent of the house of assembly of Lower Canada; but his speech could not arrest the progress of the bill. It was passed on the 8th of February; Lords Ellenborough, Fitzwilliam, and Brougham entering their protest against it on the journals of the house, though on different grounds.

The more important provisions of this bill were that the constitution of Lower Canada was suspended till November, 1840; that her majesty in council was empowered to constitute a special council, and to appoint, or authorize the governor to appoint, such and so many special councillors as she might think proper; that, until November, 1840, it should be lawful for the governor, with the advice and consent of the majority of the said councillors convened for the purpose, to make such laws or ordinances for the peace, welfare, and good government of Lower Canada, as the legislature of that province, at the time of passing the act, was empowered; and that all laws or ordinances so made, subject to the provisions thereinafter contained for disallowance thereof by her majesty, should have the like force and effect as laws passed by the legislative bodies. The governor was further to have the initiative of all measures proposed in the council, five of whom were required for a quorum. Certain restrictive provisoes followed these provisions; and it was directed that a copy of every such law or ordinance "be transmitted to the home government;" and her majesty was empowered, by an order in council, to disallow the same at any time within two years of its receipt.

THE QUESTION OF ELECTION COMMITTEES, ETC.

The necessity of an alteration in the mode of trying controverted elections under the Grenville act had been for some time recognised. A committee had been appointed to examine into this subject in 1837; and Mr. Charles Buller, who had been chairman of that committee, had, on the 21st of November last, obtained leave to bring in a bill similar in its provisions to one which had been in the hands of members in the preceding session, though it had not been discussed. This bill, in its original shape, provided that three assessors, barristers of seven years' standing, should be appointed by the speaker to act as chairmen of election committees for the session only, and as a court of appeal from the revising barristers on matters of law. Subsequently, when this bill was in progress, it was thought better that the first assessors should be named in the act, and that the future appointments should be placed at the disposal of the speaker, subject to the confirmation of the house. On the

same day Mr. O'Connell said that he also had devised a plan, which he was anxious to submit to the consideration of the house; and he likewise obtained leave to bring in a bill for a similar purpose. Mr. Buller's bill came on for the second reading on the 27th of November, when it was opposed by Lord Stanley, who moved that the second reading be postponed till the 12th of May, in order that the question might receive a fuller consideration. Mr. Williams Wynn approved of the bill; and Mr. O'Connell abandoned his own in its favour. Lord John Russell recommended that the bill should be read a second time, thinking that it at least provided some remedy for the evils complained of. On a division the second reading was carried by a majority of two hundred and fourteen against one hundred and sixty. Nothing further was done, however, before Christmas, except that there was much discussion on the subject of election committees.

The house of commons was again occupied with the subject of controverted elections on the 2nd of April. On the motion for the re-committal of Mr. C. Buller's bill, Sir Robert Peel rose for the purpose of bringing the subject generally before the house, and of submitting to their consideration a proposition of his own. Sir Robert's scheme was, that the speaker should nominate a committee, which should be called "a general committee for elections," and which should consist of four or six, or some such limited number. To this committee he would leave the duty of appointing select committees, by whom election petitions were to be tried. These last committees might consist of seven or nine members, and each was to have the aid of an assessor who should be its chairman, and in all respects on an equal footing with the members of the committee. These persons were not to be permanent, but employed as occasion might demand. There was to be no attendance of members at a ballot and the operation of chance was entirely excluded. Mr. O'Connell still thought it would be advisable to take the adjudication of these contests out of the present hands, and to transfer it to the judges. He moved as an amendment, that Mr. Buller's bill should be referred to a select committee, who might report on the subject at large. Lord Stanley moved that Mr. Buller's bill be considered that day six months; and proposed that a committee should be appointed to examine the conflicting cases, and to report on a mode of giving uniformity to the law. Mr. Shiel approved of Sir Robert Peel's plan; but he thought that party spirit would stand in the way of their obtaining a declaratory act, since on some questions the two parties in parliament were systematically opposed to each other. Mr. O'Connell's proposition was negatived, and Mr. Buller consented to withdraw his measure. On the 10th of May, therefore, Sir Robert Peel moved for leave to bring in his bill, dropping that part of his scheme, however, which established assessors. Leave was given to bring in the bill; but the attorney-general thought that all that was necessary was to repeal the Grenville act. They might then go on making one experiment after another, until they arrived at some plan that would give universal satisfaction.

Before the Christmas recess, the freemen and parliamentary electors' bill, which had been dropped in the preceding session, had been reintroduced. The two grand objects of this bill were to relieve householders entitled to the elective franchise, by extending the time fixed by the reform bill for payment of rates and taxes; and to remove the stamp-duty payable by freemen on their admission. The former part of the

bill met with much opposition; and Mr. T. Duncombe moved an amendment, tending altogether to repeal the rate-paying clause of the reform act. This amendment, however, was rejected, and the original clause carried by a large majority. The third reading of the bill came on on the 19th of February, when it was condemned by Sir Robert Peel as involving a serious infraction of the great principle understood to be settled when the reform bill was passed. The bill was finally passed by the commons, by a majority of one hundred and eighty-nine against one hundred and seventy-two; but it was rejected in the house of lords on the second reading, on the 8th of March. The house of commons passed another bill, conceding tire desired relief to freemen alone; but the session closed before the lords were called upon to take it into consideration.

MOTION FOR THE BALLOT.

On the 15th of February Mr. Grote made his annual motion for the ballot. The debate at this time was expected with considerable interest, because it was generally understood to be a question which was becoming an element of disunion in the camp of the reformers. The motion was seconded by Mr. Ward, and supported by Mr. E. L. Bulwer. Mr. Ward, in seconding the motion, intimated that after Lord John Russell's declaration respecting the ballot, the extension of the suffrage, and the duration of parliaments, the people were anxious to see how far the other members of the administration were prepared to identify their opinions with those of the noble lord. He represented the constituents of Sir John Hobhouse, Mr. Poulett Thomson, Sir Hussey Vivian, and Sir Henry Parnell as especially watching their conduct in this matter, and concluded by expressing his conviction that anything like a government opposition to the measure would "have for its effect the production of a new combination most important to the country and to that house." Lord John Russell again manfully stated his general objections to the change; and Sir Robert Peel, in a speech of considerable power, attacked the system of secret voting with effect. On a division, the motion was lost by a majority of three hundred and fifteen against one hundred and ninety-eight.

PARLIAMENTARY QUALIFICATION BILL.

During this session a bill was introduced and passed, which had for its object the extension to personal property of the privilege hitherto confined to real property, as regarded a qualification for parliament. By this act, an estate for life, or for the life of another; or a term of years of which thirteen shall be unexpired at the time of election, or personal estate and effects of any description within the United Kingdom, or the interest or dividends of such, may constitute either the whole or part of the sum required to qualify a member. By another clause, every member before he takes his seat is required to deliver to the clerk, while the house is sitting, a paper signed by himself, containing a statement of the real or personal property whereby he makes out his qualification. By the same clause he is also called upon to subscribe a declaration, that to the best of his belief he is duly qualified to be elected a member of the house. To make a false declaration is declared to be a misdeameanour, and the election becomes void if the member sits or votes without complying with the provisions of the acts. This statute, however, does not extend to the members for the

universities, to the eldest sons of peers, or to persons qualified to be knight of the shire.

PERSONAL ATTACKS.

On the 6th of March Sir William Molesworth, with a view of bringing the whole colonial administration of the empire before the consideration of the house of commons, moved that an address be presented to her majesty, respectfully expressing the opinion of the house, that in the present critical state of many of her majesty's foreign possessions, the colonial minister should be a person in whose diligence, activity, and firmness the house and the public may be able to place reliance; and declaring that her majesty's present secretary of state for the colonies does not enjoy the confidence of the house or the country. The right honourable baronet prefaced his motion by a speech of two hours' duration. His speech was very moderate, although it might have appeared that he was guided by some acrimonious feeling in selecting Lord Glenelg for attack. Mr. Leader seconded the motion; and Lord Palmerston undertook the defence of the colonial secretary. He would meet the motion by a simple negative. Lord Sandon said that he had expected that the affairs of Canada would have formed the basis of the present motion. Lord Palmerston was right in saying that it should not have been directed against Lord Glenelg alone, but against the entire administration. He could not vote with Sir William Molesworth; nor could he be content with a simple negative of his motion. He considered that the troubles in Canada were attributable to the misconduct of ministers; and under these circumstances he should move an amendment, in the shape of an address to the queen, in which would be laid down his own principles, and those of the party with whom he acted. His lordship's address expressed the regret of the house at the treasonable movements in Canada, and their determination to aid her in the suppression of the revolt, and the establishment of a sound constitution; but representing also their opinion, that the present state of things in that colony was mainly owing to the want of foresight and energy, and to the ambiguous, dilatory, and irresolute course of her majesty's ministers. Lord Stanley then addressed the house, and after a speech from Sir Charles Grey the house adjourned; and on the following evening the debate was renewed, many members expressing their opinions on the subject. In the course of his speech Lord John Russell directed some bitter remarks against Lord Stanley, and said that in respect of temper and judgment he was more comfortable now that Lord Glenelg was his colleague than he was when the former nobleman was at the head of the colonial department. His lordship demanded to know whether in the event of the resignation of ministers, there existed means of forming a better administration, or whether the tories could safely appeal to the test of a popular election? Lord John Russell concluded by suggesting to Sir William Molesworth the expediency of withdrawing his motion, in order that the house might divide upon the amendment. The right honourable baronet consented to this; but said that, for his own part, he felt precluded from voting on either side on the amendment of Lord Sandon. On a division ministers had a majority of twenty-nine only; the numbers being, against the amendment, three hundred and sixteen; for it, two hundred and eighty-seven.

REVIVAL OF ANTI-SLAVERY AGITATION, ETC.

At this period anti-slavery agitation again became the order of the day. On the one hand there existed a large class of declaimers and needy orators who were interested in the revival of the subject; and on the other, there was a powerful body of humane people, to whom the contemplation of the sufferings of the negro people had become habitual, and who required little inducement to recur to such an exciting theme. But there was a cause for this display of philanthropy: the slave was still in chains, and was still suffering from the lash of the hard-hearted driver. The legislatures also in the colonies were not free from blame; they acted in many cases with obstinacy and intemperance; and Jamaica especially afforded many instances of systematic violations of the imperial law. The apprentice system, in point of fact, was a complete failure: it produced on the part of the slaves contumacy; and on the part of the masters breaches of the law, cruelty, and violence. From these circumstances there was no difficulty in lighting up a flame in England on the subject. Meetings were held and petitions got up, with a view of hastening the time when the slave should become a man among his fellow-men. The subject of slavery was brought before the house of lords, on the 29th of January, by Lord Brougham, who, after presenting a petition from Leeds, praying the immediate abolition of negro slavery, delivered an eloquent and impassioned speech on the enormities still committed in the slave-trade. The Duke of Wellington and Lord Glenelg admitted that Lord Brougham’s statements of the horrors of slavery were substantially correct. In his speech his lordship had said, that British officers were induced to allow vessels equipped for the slave-trade to escape, in order to secure the head-money, and to wait at the mouth of rivers till the cargoes had been shipped. Lord Minto, first lord of the admiralty, in reply, said, that he would not assert that no single instance of this nature had occurred; but he could say that none such had come to his knowledge, and that he did not believe a similar case had ever existed. He could assure their lordships that the only complaint he had heard against British officers thus employed, was, that they were too ready to take these vessels, and too little careful of themselves, not attending sufficiently to their own security against prosecutions. Every letter he received from those officers lamented the difficulties in the way of obtaining the means of the capture and conviction of these vessels until the cargo was embarked; and they all pressed for the conclusion of further treaties. If those treaties could be extended to all nations under whose flag the traffic was carrying on, there would be no difficulty in putting it down. The case was not the same with respect to Spain as to Portugal. With the former there was a treaty which enabled us to capture all slavers under her flag; but our cruisers could not capture vessels under Portuguese colours until they had taken in their cargoes. Lord Brougham asked, if a reward according to the tonnage of the vessel captured could not be substituted for head-money? His views were supported by Lords Ellenborough and Ashburton, the latter of whom said strong measures should be taken to compel Portugal to desist from the traffic. Lord Glenelg said, that Lord Palmerston was engaged in negotiating a treaty with that country, with a view of putting a stop to the trade. He thought with Lord Brougham that our interference had aggravated the horrors of slavery; but at the same time he contended that parliament had no alternative but to act as it had done; and that the fear of increasing

the evil ought not to have prevented us from taking steps to extirpate the practice. The conversation on this subject here dropped; but it was renewed again on the 20th of February by Lord Brougham, who urged upon the house the propriety of immediately emancipating the negro apprentices. His speech on this occasion gained for him the golden opinions of the good and the wise. He commenced by painting in poetic language the “delicate, calm, and tranquil joy” which pervaded the Antilles on the day when slavery ceased to exist. He continued to show that the predictions of those who had declared that labour would cease when slavery was abolished, had failed. Twice as much sugar was made under the new system; and one planter had said, that with twenty free labourers he could do the work of a hundred slaves. His lordship next proceeded to show that the slave-holders had not kept faith with this country, and that the condition of the negroes, instead of being made better, was in many respects worse than before. They were, he said, the victims of partial tribunals, and of excessive and illegal punishments; and he related the case of eleven females having perished from the punishments inflicted upon them, but whose deaths were, nevertheless, ascribed by a coroner’s jury to “the visitation of God.” At the conclusion of his speech his lordship, after moving that an address be presented to her majesty, beseeching her to take steps for the suppression of the slave-trade, laid these resolutions on the table:—“That the practice of paying head-money to British cruisers should be discontinued. That letters of marque should be issued to private individuals, empowering them to fit out vessels for the capture of slavers. That it was expedient that the period of prædial apprenticeship should cease on the 1st of August, 1838.” The resolutions also further indicated certain regulations for the protection of apprentices in the meantime. Lord Glenelg, in a powerful speech, objected to Lord Brougham’s propositions of issuing letters of marque to privateers, and the discontinuance of head-money. With respect to the condition of the apprentices in the West India colonies, he contended that the change had been more advantageous than Lord Brougham had supposed, although he allowed that abuses and difficulties of a serious nature did exist. Still he did not think that sudden emancipation would be for the advantage of the negroes; and he must, therefore, oppose Lord Brougham’s resolutions. Lord Brougham took the sense of the house on the resolution which regarded immediate emancipation; and on a division it was lost by a majority of thirty-one against seven.

Soon after this the vigilance of Lord Brougham brought to light what appeared to be a new method of establishing a slave-trade. In the colony of British Guiana there had been an old law, which permitted the importation of labourers without restriction. In 1836 a law was passed by the governor and council of policy of the colony, with a view to regulate the relations between the labourers who should come to the colony under articles of indenture, and their employers. On being transmitted to England for approval, the plan was considered on the whole to be an improvement, and therefore it was sanctioned. An order in council was issued in March, 1837, giving assent to the act of the colonial legislature, but with several important alterations, and especially reducing the period of service from seven to three years, and prohibiting the introduction of labourers from Africa, or islands peopled chiefly by the African race. Shortly after these modifications of the law had been

promulgated, an application was made for a different regulation, to be extended to individuals from the East Indies, who, it was said, could not be brought into the colony with any profit, unless the term of service was prolonged to five years. This was conceded by Lord Glenelg; and arrangements were made for the deportation of a class of Hindoos, called “Hill Coolies,” or Highland labourers, to British Guiana. This subject was brought forward by Lord Brougham on the 6th of March, who moved two resolutions in condemnation of the order in council of July. In his speech he asserted that twenty-five thousand Africans had been introduced into the Mauritius in defiance of the law; and predicted that they were about to expose to this infernal traffic the entire Asiatic coast. His lordship complained that no precautions had been taken to secure proper ships, provision, or accommodation for the labourers on their voyage. Lord Glenelg contended that Lord Brougham’s alarm was premature; that he had exaggerated the danger, and was urging ministers to present a “barrier to the circulation of voluntary labour.” The Duke of Wellington suggested that arrangements should be made for the superintendence of the embarkation of labourers by responsible persons; that the nature of the bargain made should be fully explained to the labourer; that provision should be made for his return, if he wished it, at the expiration of his period of service; and that persons should be appointed to go with them while on board, and on their landing, to see the due performance of their respective bargains by the masters and the workmen. Lord Melbourne said that Lord Brougham’s ardent imagination rendered him an unsafe guide in such matters; but he intimated that the Duke of Wellington’s suggestion should receive attention. His grace then said that he thought it unadvisable to divide upon Lord Brougham’s motion; and therefore he would move the previous question. On a division the previous question was carried by a large majority; and the original motion being put, was negatived.

The subject of slavery was introduced on the 29th of March in the house of commons, by Sir George Strickland, who moved the immediate abolition of negro apprenticeship. The motion was seconded by Mr. Pease, and supported by Dr. Lushington and Lord Howick. On the other hand, it was opposed by Sir George Grey, Sir Edward Sugden, Lord John Russell, and Mr. W. E. Gladstone; and on a division it was negatived by a majority of two hundred and sixty-nine to two hundred and five. An attempt was subsequently made by Sir Eardley Wilmot to obtain a resolution from the house in favour of immediate abolition. He succeeded, his motion being carried by a majority of ninety-six against ninety-three. Government, however, still expressed aversion to any alteration of the present system; and on the 28th of May Sir George Grey proposed and carried a resolution which virtually rescinded that of Sir Eardley Wilmot, by declaring that, in the opinion of the house, it was not advisable to adopt any proceeding for the purpose of giving effect to the resolution of the 26th of that month. Sir George Grey’s motion was carried by a majority of two hundred and fifty against one hundred and seventy-three.

Although slavery was still allowed to exist, yet two important bills connected with this subject passed the legislature this session. One of these was entitled “An act to amend the act for the abolition of slavery;” and it contained various provisions, giving further protection to the apprentices, and enforcing such regulations of the former

act as had been disregarded by the planters. The second bill empowered her majesty in council to make rules for the government of the prisons in the West Indies; to appoint inspectors of prisons; to dismiss or suspend officers; and to determine on the fitness or unfitness of any place to be used for the purposes of penal confinement.

DEBATES ON THE IRISH POOR-LAW BILL—THE BILL CARRIED.

It will be remembered that the Irish poor-law bill had arrived at an advanced stage, last session, in the committee, and that many of its important clauses had been discussed and determined, when the demise of the crown put a stop to its further progress. The subject was renewed on the 1st of December, when the bill was read a first time. It was proposed that the house should go into committee on the 9th of February, on which day Mr. O'Connell moved, as an amendment, that it be committed that day six months. When the bill was last year before the house, he said he had addressed them at considerable length in opposition to it. At the same time he had avowed that he had not moral courage to take the course of direct opposition to the measure, although perfectly convinced of its injurious tendency. Since then he had grown both older and firmer; and he was now determined to take the sense of the house on the committal of the bill. He was opposed to the introduction of poor-laws into Ireland, at least so far as regarded able-bodied persons; it might induce them to abandon their habitual industry and economy, and prevent them from providing for the wants of age and supervening infirmity. Any such plan was calculated to diminish self-reliance, to paralyse industry, to decrease economy, and, above all, to damp and extinguish the kindly and generous feelings of nature. He further objected to the bill, because it taxed the occupiers of lands, and involved many difficulties of apportionment between his landlord and himself: it would be a constant source of litigation. Besides, he contended that the mode in which the poor-law was proposed to be carried into effect, was not calculated to benefit Ireland: and he enlarged on the poverty of the people in general, in order to show that they ought not to be called upon to endure taxation to the amount of another million. Messrs. Shaw, W. S. O'Brien, Lucas, and Redington supported the bill, though they all thought that many of its details were objectionable. Mr. O. Gore supported Mr. O'Connell's amendment, he objecting to the workhouse system as prejudicial to the best habits and feelings of the Irish. Other members, as Messrs. Barron, Young, and Litton, supported the measure; while others, as Mr. J. Gibson and Sir F. French, opposed it. On a division the original motion was carried by a majority of two hundred and seventy-seven against twenty-five.

The house went into committee on the 12th of February. The third reading of the bill came on on the 30th of April, when Mr. O'Connell again endeavoured to arrest its progress. His opposition, however, was bootless: it passed the house of commons by a majority of two hundred and thirty-four against fifty-nine.

MOTION FOR THE REPEAL OF THE APPROPRIATION CLAUSE—MINISTERIAL PLAN FOR SETTLING THE TITHE QUESTION.

On the 14th of May Sir Thomas Acland moved for the repeal of the appropriation clause. Lord John Russell had previously given notice that he would bring forward his

resolutions concerning Irish tithes; and in moving that the speaker should leave the chair, the noble lord said that it had been his original intention to refrain from saying a single word, and to reserve his remarks to the time when the house should go into committee. It had pleased the gentlemen opposite, however, to give notice that they meant to interpose another question in order to raise a debate, and produce a division, before allowing the resolutions to be considered in committee. He should consider the proposition made by Sir Thomas Acland in two points of view; with reference to its object of producing discord and bitterness of feeling in the house, and how far such a course was conformable to the professions made by gentlemen opposite with respect to the Irish church. After descanting at considerable length on the subject of the alliance of the church and state generally, and the small influence which the Irish church exercised over the people, the noble lord went on to unfold his scheme. The existing tithe-composition, he said, would be converted into a rent-charge at the rate of £70 for every £100; and he proposed that the rent-charge should, with a saving of existing interests, be redeemed by the government at the rate of sixteen years' purchase on the full sum of £100. The money received in redemption of the rent-charge he proposed should be invested in land, or in such other way as the ecclesiastical commissioners should advise; and the rent-charges themselves, when purchased, should go towards a fund, from which £160,000 should be paid yearly to the constabulary force of Ireland; £20,000 to the Dublin police; £70,000 to the expense of criminal informations; and £100,000 for the purposes of education, instead of the £50,000 now voted annually for that purpose; any surplus was to be applied to charitable purposes. After developing his plan, Lord John Russell descanted on the obstinacy and exorbitance of the clergy, and then attacked Sir T. Acland's motion. He commenced this part of his speech by quoting the Duke of Wellington's declared desire to see the Irish questions brought to a settlement, contending that the present motion was not in accordance with that declaration. With respect to the principle of the appropriation resolutions, his opinion was unaltered: it was a wise and just principle, and he could not consent to its reversal: it would imply a stigma upon ministers which he could not endure. Sir Thomas Acland, however, rose to move that the resolutions of the 7th and 8th of April, 1835, should be read; and after addressing the house at considerable length, he further moved that they should be rescinded. The motion was seconded by Sir Eardley Wilmot. After a long speech from Lord Stanley, and a few words from Lord Morpeth in defence of government, the house was adjourned till the following day, when Mr. Litton renewed the discussion by delivering a speech in favour of Sir T. Acland's amendment. Messrs. Young, Laseelles, Bennett, and Lord Sandon also supported it; while Messrs. Redington and Townley opposed it. Mr. O'Connell remarked that the real question before the house was, how should Ireland be governed? This was the question that had been under discussion for seven hundred years. Should Ireland, he asked, be governed by a section? A loud shout interrupted the speaker, and in the midst of continued uproar, he continued thus:—"I thank you for that shriek. Many a shout of insolent domination, despicable and contemptible as it is, have I heard against my country."—[Here the speaker interfered]—"Let them shout; it is a senseless yell—the spirit of a party. Ireland will hear their shrieks. They may want us again. What would Waterloo have been if we had not been there? I ask not that question for the

renowned commander-in-chief, who is himself an Irishman, but for the hardy soldiery of Ireland, who fought the battle for him. I say again, that is the question." In conclusion, Mr. O'Connell admitted that the ministerial plan did not go far enough, but he was ready to accede to it for the sake of an amicable arrangement. Sir Robert Peel and other members addressed the house, a discussion ensued, when Sir Thomas Acland's motion was lost by a majority of three hundred and seventeen against two hundred and ninety-eight. On the following day Lord John Russell gave the house distinctly to understand that the tithe measure would solely consist of a proposition to the effect that the composition then existing should be converted into a rent-charge.

COMMITTEE OF THE HOUSE OF COMMONS UPON THE IRISH MUNICIPAL BILL—THE BILL REJECTED, ETC.

On the 29th of May Lord John Russell moved that the house should go into committee on the Irish municipal corporation bill. Sir Robert Peel then rose and stated his views and intentions with respect to the two great Irish questions.

The consideration of the subject was renewed on the 1st of June, when, the house being in committee, Mr. Shaw moved that schedules A and B should be consolidated, so that there should be but two schedules instead of three; the first to contain the towns to which corporations were to be given with an uniform ten-pound franchise; and the second to contain those in which the majority of the ten-pound householders might, according to their option, be incorporated. Mr. Shaw further proposed that Sir Robert Peel's mode of estimating the qualification of electors should be adopted. Lord John Russell consented to that part of the proposition which regarded the distribution of towns to be incorporated, but at the same time intimated that government considered an uniform ten-pound franchise too high a qualification. On this point, indeed, the two parties were at issue, for Lord John Russell proposed a five-pound assessment as the qualification, while Sir Robert Peel advocated the ten-pound assessment. On the 11th of June Sir Robert moved to substitute the latter for the former sum; but on a division it was negatived by a majority of two hundred and eighty-six against two hundred and sixty-six. The bill came on for the third reading on the 25th of June, when Lord Francis Egerton moved that it should be read that day three months; but on a division the bill passed by a majority of one hundred and sixty-nine against one hundred and thirty-four.

The bill came under deliberation in the house of lords on the 12th of July, and it was read a third time on the 27th of the same month. The lords, however, had, on the motion of Lord Lyndhurst, substituted the ten-pound for the five-pound franchise, and had also made further alterations in the bill at the instigation of the same noble lord. When the bill in its amended shape came under the consideration of the house of commons on the 2nd of August, Lord John Russell entered into a detailed examination of these amendments. In order to settle the question of the franchise, he proposed that a rated house of eight pounds rent should confer it; and he carried this by a majority of one hundred and sixty-nine against one hundred and fifty-four. A variety of alterations were then introduced into the other amendments of the lords, and the bill was once more sent up to that house. A conference took place, but with no effect,

and the matter ended by Lord John Russell moving in the house of commons that “the lords’ amendments should be further considered that day three months.” The bill, therefore, was again laid aside, and that for the most part from a difference of a pound or two in the qualification. The great principle of granting popular corporations to the Irish towns was conceded by the Conservatives; but they would not overlook the trifling difference contested by them and their opponents in the qualification.

[Illustration: 589.jpg CORONATION CHAIR]

THE CORONATION.

The coronation of Queen Victoria took place on the 28th of June. The principal novel feature of this august ceremony consisted in the substitution of a procession through the streets of London for the banquet in Westminster-hall. The result of this change justified the departure from an ancient usage. The people of all ages, sexes, conditions, professions, arts, and trades assembled on that day to greet their youthful sovereign. The ceremony was conducted with great harmony: happiness and cheerful good humour prevailed among the enormous multitude which thronged the streets; and courtesy and self-restraint were everywhere conspicuous. The coronation was succeeded by a series of fetes and banquets, and many weeks elapsed before the metropolis had ceased to hold festivals in its remembrance. In a word, the utmost enthusiasm for the youthful sovereign prevailed on every hand, and gave promise of a happy and glorious reign.

It was stated in the house of commons shortly after the coronation that the expenses incurred for the coronation of George IV. were £243,000, and that the expenses incurred for that of his successor did not exceed £50,000. On the present occasion the charges amounted to about £70,000, and the chancellor of the exchequer, in explaining the cause of this excess, said, that it was in no respect occasioned by any portion of the ceremony as regarded the sovereign, but for enabling the people to participate in the national festivity. The public, he continued, had voluntarily paid for seats commanding a view of the procession not less than £200,000; and four hundred thousand persons had visited London for the purpose of witnessing the ceremony. He added:—“Never was there given to a sovereign, or to a country, a more exalted proof of good conduct and discretion, than was afforded by the assembled multitude on this occasion.”

DEBATES IN THE HOUSE OF COMMONS ON THE IRISH TITHE QUESTION.

On the 2nd of July the house of commons proceeded to take Lord John Russell’s tithe resolutions into consideration. On the motion for going into committee, Mr. Ward condemned ministers for abandoning the appropriation principle, and moved a series of resolutions for the appropriation of the surplus revenues of the Irish church to the moral and religious education of all classes. Mr. Hawes seconded and Mr. Hume supported the motion. Mr. O’Connell, however, opposed it, contending that it led to a deception and delusion: it offered to the Irish people something as the purchase-money of a tithe bill, which bill they had refused unanimously to take. Their determination was not to pay tithe; and he required that provision should be made for

the established church of Ireland out of the consolidated fund, and that the tithe fund should be applied to the maintenance of peace in the country. By converting tithes into a rent-charge, they would turn landlords into tithe proprietors; and would further throw many landlords into the ranks of White-boys. Mr. Harvey said that three years ago he was denounced by Mr. O'Connell for not supporting the motion which his learned friend was now opposing. On a division Mr. Ward's motion was rejected by two hundred and seventy against forty-six. On the house going into committee, Mr. Shaw moved, as an amendment, that twenty-five instead of thirty per cent, should be substituted. This amendment was carried by a majority of one hundred and eighty-eight against one hundred and sixty-seven.

In a preceding year one million sterling had been voted by parliament for the relief of tithe-owners who had been unable to pay their dues; and out of this sum they had by this time actually received £640,000. At the time of the grant it was intended that the advances should be repaid as soon as the tenants should pay up their arrears. That event was not likely to happen; for, since the grant had been made, a new arrear of tithes had accrued. It was now generally agreed that repayment of the money advanced should not be required; but it became a question how far the fresh arrears were to be settled. Sir Robert Peel suggested that a commission should be appointed to ascertain the entire amount of the tithe, and the nature of each particular case; and that in proportion to that amount, and with due regard to individual circumstances, the sum remaining of the million not yet advanced should be distributed among the respective tithe-owners in purchase of their interests. According to his plan, if a landlord owned tithe, he was not to be included in the proposition; but where the debtors were occupying tenants, there tithe-owners were to have the option of enforcing their claims, or of accepting their proportion of the fund, and exonerating their debtors: government was also to have the right of proceeding against the tenant at their option. This proposition was favourably received; and, on July 16th, Lord John Russell, when the house resumed the consideration of the bill in committee, adopted it with some slight modifications. On the 26th of July the bill came on for the third reading. Mr. D. Browne moved, that the bill be read that day six months; in doing which he contended for a total abolition of tithes. On a division the bill was carried by a majority of one hundred and forty-eight against thirty; and thus terminated the contests concerning "the appropriation clause." The adoption of it had assisted the Whigs in their return to power; and the sacrifice of it enabled them to maintain office.

Lord Melbourne brought the Irish tithe-bill before the house of lords on the 3rd of August. After descanting on the million loan and the arrears, his lordship remarked that it was obvious, unless they closed up all questions with reference to arrears, they would not be giving the measure fair play. This bill directed the lord lieutenant to remit to the clergy the instalments due from them in respect of the loan; and the residue of the million was to be applied in satisfaction of the arrears, according to the claims of the spiritual tithe-owners, which had been accruing during the last four years. Nothing was said of the "appropriation clause" by his lordship: on which Lord Brougham remarked:—"I had not looked to see the day when appropriation should be given to the winds, as if the thing had never been talked of—as if it never had been

the means of seating one ministry and unseating another.”

The bill was read a third time on the 9th of August, Lord Clancarty alone raising a dissentient voice.

THE IRISH POOR-LAW BILL CARRIED IN THE LORDS.

On the 21st of May Lord Melbourne moved the second reading of the Irish poor-law bill in the lords. The motion was opposed by Earl Fitzwilliam, who said that he was opposed to the whole principle of poor-laws. As for the present bill, he said, it could never be carried into effect; it was not an Irish bill, nor was it a bill desired either by the landed interests, the middling gentry, or the poorest classes of Ireland. The Marquis of Londonderry also opposed the bill; while the Duke of Wellington recommended their lordships to give it a second reading, with a view of amending it in committee. Lord Lyndhurst, having adverted to the unpopularity of the bill in Ireland, and cautioned their lordships against setting themselves up as better judges than the Irish people themselves of what was best calculated to promote the interests of that nation, said he should not object to a trial of the bill, provided he thought that they would, in the event of failure, return to their original situation. His lordship then stated his various objections to the proposed bill; but, in conclusion, intimated his intention of voting for the second reading, in the hope that it might be brought into a better state in committee. The Marquis of Clanricarde, Lord Brougham, and the Marquis of Westmeath opposed the bill; and Lord Radnor and the Earl of Devon supported it. On a division the second reading was carried by a majority of one hundred and forty-nine against twenty. In committee, Earl Fitzwilliam moved an am end-mend to the forty-first clause, by which he limited the relief under the bill to age, bodily infirmity, &c.; and he was supported by Lord Fitzgerald and Vesci, who contended that the operations of the bill would be mischievous; but it was not carried. On the 31st the latter noble lord moved another amendment, empowering the guardians to relieve in poor-houses “all destitute persons who are either incurably lame, or blind, or sick, or labouring under permanent bodily infirmity;” also all orphan children left in a state of destitution. Ministers, however, succeeded in carrying the original clause of the bill by a majority of one hundred and seven to forty-one. Subsequently some amendments were made in the minor details of the bill, and it was read a third time on the 9th of July, and carried by a majority of ninety-three against thirty-one. The momentous experiment, therefore, of introducing a poor-law into a country where the people were everywhere opposed to it was to be tried.

PROJECTED FORMATION OF A COLONY IN NEW ZEALAND, ETC.

At this period an association had been formed for the purpose of colonizing New Zealand, under certain grants of territory which had been obtained from the native authorities. During this session an application for a parliamentary sanction to the undertaking was made, and Mr. F. Baring, on the 23rd of June, moved the second reading of a bill to establish the said colony. Sir George Grey opposed the motion. The bill was also opposed by Sir Walter James, Lord Sandon, and Messrs. Goulbourn and Pease, while Messrs. Hutt and P. Howard pointed out the advantages which

would accrue to Great Britain from the measure. The bill was rejected by a majority of ninety-two against thirty-two.

FINANCIAL STATEMENTS, ETC.

The navy estimates were presented to the house of commons on the 5th of March, when Mr. C. Wood moved a resolution to the effect, that there be employed in the fleet for the next thirteen lunar months, ending on the 31st of March, 1839, 33,665 men including 2,000 boys and 9,000 marines. After some opposition, this motion was agreed to; as was another, made by Lord Howick, on the 12th of the same month, to the effect that 89,305 men should be raised for her majesty's land-forces. The ordnance estimates were moved by Sir Hussey Vivian on the 27th of April, and these, likewise, were granted. The chancellor of the exchequer presented his financial statement on the 18th of May, when it appeared that the past year had been one of increased expenditure and diminished receipt. The estimate of revenue, he said, had amounted to £47,240,000, while the actual income did not exceed £46,090,000. The estimate of expenditure had been £47,873,000, and the actual expenditure £47,519,000; so that there existed a deficiency of £1,428,000. But, continued Mr. Rice, if the house would compare the income and expenditure of the two years 1836 and 1837, they would find a surplus of income; and he showed that, taking these two years together, and comparing the anticipation with the actual results, there was no deficiency. The right honourable gentleman proceeded to say that he calculated the income of the next year would be £47,271,803, and the expenditure £47,479,000. Here, also, would be a deficiency; and the question arose, how was this deficiency to be met? There was no ground for considering it permanent; and he should therefore propose to take the course adopted by parliament on former similar occasions. In 1827 Mr. Canning found himself with a deficiency of £2,900,000, and he met it by a resort to a corresponding issue of exchequer-bills. Mr. Spring Rice intimated that he should follow the same course, and should ask for a vote of credit to the extent of a few hundred thousand pounds only.

MOTION FOR THE REPEAL OF THE CORN-LAWS.

On the 15th of March Mr. Villiers moved for a committee of the whole house to consider the act of 9 George IV. c. 60, relating to the importation of corn. In his speech he remarked that the purpose and principle of the corn-laws were protection to the landed interest. It was alleged that the British farmers could not compete with the foreign grower without protection. He considered this principle indefinite and unjust. The motion was seconded by Sir William Molesworth, who drew a gloomy picture of the operation of the corn-laws. Through them, he said, there was an excess of farmers without farm, shopkeepers without customers, lawyers without briefs, clergymen without cure of souls, doctors without patients, sailors and soldiers without employment; besides shoals of architects, painters, surveyors, tutors, clerks, and others. All these classes were uneasy, and the victims of competition. The corn-laws had further the effect of producing great immorality: people either could not marry, or were obliged to many late in life, and consequently there was an excess of unmarried women! Hence immorality prevailed, and every foreigner who visited the land was shocked at the exhibition of profligacy in the streets. Only a few

members supported the motion, which was consequently lost.

On a subsequent evening Colonel Seale proposed that foreign corn in this country should, under certain restrictions, be permitted to be ground while in bond, and exported, security being given for its exportation. The object of this measure was to enable merchants trading to foreign countries, and shipowners, to lay in their supplies in the ports of the United Kingdom, instead of being compelled to obtain them, as at present, from the Baltic. The Marquis of Chandos contended that this measure would repeal the corn-laws: extensive frauds would take place, and a great alteration ensue in the price of corn. On the other hand, Messrs. Warburton and Poulett Thomson argued that the agricultural interest would not suffer from it in the least degree. The latter said that no fraud could take place, and he entered into details to show that the preservation of the whole revenue of the country depended upon the security afforded by the bonded warehouses. Corn could not be smuggled out of them more easily than sugar and tobacco, &c., on which much higher duties were payable. After hearing these statements of Mr. Thomson, several members intimated their disposition to make a concession upon so immaterial a point. Colonel Seale’s motion was carried by a majority of one hundred and twenty-seven against ninety-two, but the bill was, notwithstanding, thrown out on the second reading, by a majority of two hundred and twenty against one hundred and fifty.

VARIOUS IMPROVEMENTS IN THE LAW.

An important alteration in the law took place this session, in the abolition of imprisonment for debt on mesne process. Public attention had been for some time directed to this subject; and during last session a bill passed the house of commons with reference to it, but at too late a period to admit of its discussion in the upper house. On the 5th of December the lord-chancellor brought the subject before the lords, by moving the second reading of a similar bill. Many of the details of the bill, however, were thought to be so defective, that it was referred to the consideration of a select committee. The lord-chancellor again presented his bill, as altered and amended by the committee, on the 12th of June. In his exposition of the measure, his lordship stated that it would empower creditors to get possession of various descriptions of property, which were at present exempt from execution. Thus the bill would authorize the sheriff to seize cash, bank-notes, and bills of exchange; and, under the authority of a judge’s order, and with certain restrictions, stock in the public funds would be available to the creditor. These and similar provisions were framed for the purpose of doing justice to the creditor, by enabling him, if possible, to obtain payment out of his debtor’s property. Having effected this object it seemed but right to abolish imprisonment on mesne process. Still, to prevent fraud, it was necessary to secure to the creditor the right of seizing the debtor’s person in certain cases. The bill, moreover, would authorize a judge, on the creditor’s application, to issue a warrant to restrain a fraudulent debtor from leaving the country before he had surrendered his property. Lords Brougham and Abingdon commended the measure as far as it went; but they still thought it incomplete. The bill was read a third time and passed; and after some minor alterations had been introduced in it by the commons, it finally became law. Another useful act passed during this session

was one which facilitated the recovery of possession of tenements after the determination of the tenancy. This bill empowered any two justices at petty-sessions, in certain cases, and after proof given of the determination of the tenancy, and of the refusal of the tenant to render possession, to issue their warrant to the peace-officers of the place, directing them to enter, by force, if needful, upon the premises unlawfully held over, and to give possession of the same to the landlord or to his agent; such entry to be made not less than twenty, and not more than thirty days from the date of the warrant. The provisions of this bill, however, are confined to premises held at will, or for less than a term of seven years, and which are let for less than £20 per annum, without the reservation of a fine.

In the course of this session, a bill for securing to authors, in certain cases, the benefit of international copyright passed the legislature, and which enabled her majesty in council to direct that the authors of books published abroad shall have a copyright here, provided there be a reciprocal protection in favour of this country in the state in which such publications first make their appearance.

A SELECT COMMITTEE TO INQUIRE INTO THE OPERATION OF THE POOR-LAWS.

During the past and the present year the New Poor-law was exposed to a severe trial. Distress, from a severe winter and the high price of corn, abounded on every hand, while in various parts of the country local and temporary causes operated unfavourably to the labourer. Under these circumstances, the New Poor-law encountered great opposition, and this appeared to be becoming progressively formidable. In the northern parts of the country, indeed, Tories, Whigs, and Radicals alike arrayed themselves against it, all agreeing to seek its entire abolition. The subject had been introduced into the commons as early as the 27th of November of the past year, when Lord John Russell moved for a select committee to inquire into the operation of the New Poor-law. This afforded, however, but little satisfaction to the opponents of the measure; and on the 20th of February Mr. Fielden moved for a repeal of the act itself. He was seconded by Mr. Wakley; and, in the course of the evening, a discussion ensued, in which many members took part. Those who spoke generally concurred in the impolicy of taking any steps in the question until the committee should have made its report. Sir Robert Peel bore testimony to the merits of the bill; remarking that, considering the magnitude of the experiment, which had been but four years under trial, it was as satisfactory as any man could expect. On a division, the motion was rejected by a majority of three hundred and nine against seventeen.

The commissioners made their report on the 4th of August. It had been proposed to authorize the guardians to relieve the families of labourers, by taking one or more of their children into the workhouse. The report stated, “that in the practical application of this exception, it would be difficult to avoid the establishment of a system similar in principle to the scale system; i. e. a regular allowance, in addition to the labourer’s earnings, depending on the number of his children and the rate of wages.” It had further been proposed to obviate the hardship of obliging a man to part with his cottage and furniture, and take up his abode, with his family, in the

workhouse, by admitting the head of the family only into that establishment, and leaving his family at home. The report stated an objection to this proposal thus:—“The small degree of inconvenience sustained by the labourer by a temporary sojourn in the workhouse, whilst his wife and family remain at home, ceases altogether to have the effect upon the employer which is produced by the strict workhouse system; namely, the creating a great reluctance, on his part, to lose temporarily the services of the labourer, lest he should find it impossible to regain them; and a desire so to arrange the work of his farm, as to afford employment, during the unfavourable part of the season, to those upon whose assistance he must rely for the necessary services during the more active periods of the year.” The report proceeded to notice other particulars of the system, as the migration of families from the southern to the northern counties; and the emigration of others to the Australian colonies. It remarked, that the most important and characteristic circumstance of the last twelve months had been the extreme severity of a long winter, and the continuance of the interruption to manufacturing industry which had commenced in 1836. From this circumstance the guardians of various unions had been induced to give out-door relief to able-bodied male paupers, but the commissioners were of opinion that, with few exceptions, it might have been safely withheld.

COMBINATIONS IN ENGLAND AND IRELAND.

For some years combinations of workmen for the purpose of regulating the rate of wages, and other matters connected with the employment of labour, had been permitted by law to exist. At this time, however, these confederacies had become formidable. “Strikes” were constantly recurring, so that the masters lay at the mercy of the operatives. Thus at Ashton fifty-two mills and thirty thousand persons were thrown out of work, by the “strike” of three thousand “coarse spinners,” who could clear at the time about thirty shillings per week; and at Manchester one thousand “fine spinners” struck work, because the masters would not pay them more than thirty-five shillings per week. At Glasgow, where the cotton-spinners had been long noted for the violent and arbitrary proceedings of their confederacy, five individuals connected with their body were taken up, charged with murder, attempts at arson, and other grave offences of a similar character. On their trial, the evidence disclosed some revolting details of the practices and formidable organization of the cotton-spinners’ union of Glasgow; but the jury found the prisoners guilty of the minor charges only, and they were transported for seven years. There was much in these judicial proceedings that, in the opinion of Lord Brougham and Mr. Wakley, required correction, and accordingly they brought the subject under the consideration of parliament, each in their respective spheres.

The subject was introduced by Mr. Wakley in the house of commons, by moving for a select committee to inquire into the constitution, practices, and effects of the association of operative cotton-spinners in Glasgow and its neighbourhood. Mr. O’Connell moved, by way of amendment, for a select committee to inquire into trades’ unions and combinations generally, in the United Kingdom. He remarked that there was no tyranny equal to that which was exercised by the trades’ unionists in Dublin. He had in vain wished to convince those people of the wickedness and

impolicy of their proceedings. Hour after hour had he had interviews with the deputation from the various trades, and had seldom met with men of more ability, information, or skill, in putting forward their own views. He had also challenged discussion, and two assemblies had been held for that purpose; but the workmen had concerted interruption, and they could not proceed in the business of the day. He could not be heard, and they expressed their determination to persist in their system of outrage. Mr. O'Connell proceeded to detail some of the more prominent regulations of the combination. One of their rules was to limit the number of apprentices; another prescribed a minimum rate of wages, so that the best workmen received no more than the worst; and by a third the masters were deprived of all freedom in their power of selecting workmen. The honourable gentleman then proceeded to relate some instances of the prejudicial effects of combination on the manufacturing industry of the country; and he concluded by adverting to the murders and outrages committed by stipendiary assassins acting under the authority of the unions, and by asserting that he had no wish to re-enact the old combination laws. Some combinations were even meritorious: his aim would be to separate unions of this kind from those of a pernicious character. The chancellor of the exchequer paid some just compliments to Mr. O'Connell for the course he had pursued with respect to this subject, and said that he proposed a second amendment, which did not materially differ from that of the member for Dublin. He moved for a select committee to inquire into the operation of the 6th of George IV., and into the general constitution of trades' unions, and also the combinations of workmen and masters in the United Kingdom. Mr. Wakley expressed himself satisfied to leave the question in the hands of her majesty's ministers, and the chancellor of the exchequer's motion was agreed to without a division.

JOHN THOM. ALIAS SIR WILLIAM COURTENAY.

A few years back an individual of the name of John Nicholls Thorn left his home in Cornwall, and went into the county of Kent. Here he exchanged his name for the more euphonious one of Sir William Courtenay, Knight of Malta, and he commenced a practice of parading his naturally commanding person before the admiring people, clad in rich costumes, and pouring forth streams of exciting and persuasive eloquence. Attracted by his romantic appearance, the populace flocked round him with the wildest enthusiasm; and even the superior classes of society, furnished him with partizans. In 1833 he became a candidate for the representation of the city of Canterbury, and he succeeded so far as to poll nine hundred and fifty votes. Not long after, however, he was found to be implicated in a transaction which resulted in his conviction for perjury, and he was sentenced to six years' transportation. Decided symptoms of insanity having exhibited themselves, instead of being sent on board the hulks, in conformity with the act 9th George IV., he was removed from Maidstone gaol to the county lunatic asylum. He remained here four years, and at the expiration of that period, Lord John Russell, in virtue of a power conferred on him as secretary of state by the same act, delivered him up to his friends upon their engaging to take care of him. His friends ill discharged their duty; for in 1838 John Thom reappeared in Kent, and this time under a higher title than that of baronet: he claimed to be, and the people acknowledged his pretensions as, another Messiah. The delusion led to the

“Canterbury riots,” in which a constable was shot by Thom himself, and Lieutenant Bennet was killed by some of his enthusiastic followers. Thom on his trial was proved to be of unsound mind; and several of his followers were sentenced to be transported, some for life, and others for longer or shorter periods of time, according to the parts they had acted in the tragical scene.

COMMITTEE ON CHURCH LANDS.

It has been seen in a former page that a committee had been appointed to ascertain the probable amount of any increased value which might be obtained by an improved management of church property. On the 3rd of May Lord John Russell proposed the reappointment of this committee. He estimated the revenue of the church of England at £3,439,767, and he calculated this income would admit of considerable increase. With respect to the disposal of such additional revenue, when obtained, his lordship said that both himself and colleagues held it as a fixed principle that it ought to be devoted to a purpose clearly and intimately connected with the church. Many honourable members were of opinion that such a fund should be applied to the education of the people: government would prefer to dedicate it to the repairs of the fabric of the church itself. His lordship then entered into details to show that the present system of managing church property was improvident and unsatisfactory; and that the funds of the church were often disposed of in a way contrary to their original purposes, and not desirable for the spiritual interests of the country. By proper arrangements he expected that an annual surplus of £300,000 might be secured. The motion was opposed by Mr. Liddell, who, in moving a direct negative to it, observed that government had been stimulated to stir this “mischievous question, and unsettle men’s minds and properties by the clamour of persons hostile to the church.” The church of Durham, he said, was the great object of their appetency. It certainly had rich possessions, but then its charities were in proportion. It had, moreover, crying wants: many of its cures were underpaid, and many new churches were requisite, for which there were no adequate means of endowment. The honourable gentleman concluded by saying, that should the motion for a committee be carried, he would further move the addition to it of the following words:—“with a view of applying such amount to the gradual diminution of the evils which flow from the deficiency in the means of religious instruction and pastoral superintendence by ministers of the established church.” The original motion was carried by a majority of two hundred and seventy-seven against two hundred and forty-one; and Mr. Liddell’s second amendment was lost by a majority of two hundred and sixty-five against two hundred and fifty-four.

ACT FOR ABOLISHING PLURALITIES, ETC.

During this session an act was passed for “abridging pluralities,” and for making better provision for the residence of the clergy. This bill enacts that no person holding more benefices than one shall accept and hold any cathedral preferment or other benefice; and that no person holding preferment in one cathedral shall hold any in another, with certain exceptions in favour of archdeacons. The bill further enacts that two benefices are not to be enjoyed together, unless within ten miles of each other, nor if the population of the one exceeds three thousand, or the joint revenue

£1,000, unless the yearly value of the one fall short of £150, while the population exceeds two thousand persons; in which case the bishop of the diocese may authorize the two to be held jointly, though at the same time it was made necessary to obtain a dispensation from the Archbishop of Canterbury. By another clause of the bill any spiritual person in the possession of preferment is prohibited from farming more than eighty acres of land without the consent of his diocesan, and from engaging in any trade, unless in cases where the number of partners exceed six, or where the share in a business may devolve upon the individual by operation of law; but in no case may such person carry on or manage trade personally. The bill finally empowers the bishops to grant dispensations to their clergy from residing in the parsonage-houses when unfit to be occupied, provided that the residence selected be within a certain distance of the cure, and further enumerates a variety of other instances in which the bishops may grant licences for non-residence.

During this session also, in consequence of a recent decision in the court of exchequer, that it was unlawful for a clergyman to be a member of a joint-stock company, an act was passed, altering the law on that head. In 1817, an act had been passed prohibiting all spiritual persons from engaging in any trade for gain or profit, and imposing a penalty upon transgressors of the law. It also declared the acts of any partnership into which such spiritual person had been introduced to be null and void.

On the 22nd of February the Earl of Ripon announced to the house of lords that the ecclesiastical commissioners had resolved to recommend the continuance of the bishopric of Sodor and Man as a separate see, and not to unite it with the diocese of Carlisle, as had been proposed. During this session, therefore, a bill was passed for continuing the see upon its original footing.

THE SUBJECT OF EDUCATION DISCUSSED IN PARLIAMENT.

On the 1st of December Lord Brougham brought the subject of national education under the consideration of the house of lords. His lordship’s plan was disclosed in two bills, corresponding with that which he had brought forward in the preceding session, and which were only separated for the sake of convenience. The measure of Lord Brougham seems to have been conceived in an enlightened spirit, and its outline exhibits many excellent features; but it was clear that there would be great difficulty in carrying out its details. The bill was generally approved of, and was read a first time, but it did not come again under the consideration of parliament during this session.

THE QUESTION OF CANADA RENEWED.

While parliament was sitting, Lord Durham sailed for his seat of government in Canada; and news arrived of his first acts in that province. Before his lordship had sailed, however, attacks were made upon him by the opposition, although they had exercised so much forbearance towards him at the outset of his mission.

The main attack on Lord Durham was opened in the house of lords on the 30th of July. Of the many important matters which Lord Durham found on his arrival in Canada unsettled, the disposal of the state prisoners was “by far the most delicate and dangerous.” This difficulty was increased by the restrictions which the

home-government had thought it expedient to impose upon the governor-in-chief. These restrictions were contained in a letter written by Lord Glenelg, and were to this effect:—“From the very commencement of the late disturbances it has been, as your lordship is aware, the earnest desire of the government, that the utmost lenity compatible with the public safety should be exercised towards the insurgents. This is a principle inculcated in my various despatches to the authorities of Lower and Upper Canada, and it is a principle supported by considerations, not only of humanity, which cannot be in such cases admitted as the exclusive test of right conduct, but also of true policy, in reference to the well-being of the Canadas. You will, I am persuaded, enter into the views of the government on this subject; and in order to enable you to act with promptitude in this respect, you are relieved from the restrictions by which your predecessors were prevented, in case of treason, from giving an absolute pardon, or granting more than a respite, till the royal pleasure should be known. The power thus entrusted to you, of granting an amnesty or pardon in all cases, should, in the opinion of her majesty’s government, be exercised largely, but not entirely without exception. Independently of persons committed on charges of murder, to whose cases I have referred in my despatch of the 19th of March to Sir J. Colborne, as exceptions to the class of cases fit to be included in an amnesty, there must probably among the prisoners be some flagrant and prominent cases of delinquency, which it would not be just or advisable to comprehend in the general lenity. These cases it will be for you to select, in order that they may be brought to trial. In the constitution of the tribunals before which these prisoners are to be arraigned, and in the conduct of these trials, her majesty’s government are, after full deliberations, satisfied that there should be no further deviation from the established mode of legal procedure, than was sanctioned in my despatch to Sir J. Colborne. You will, therefore, bring them to trial in the usual manner before the courts of justice, as at present constituted for the trial of criminal offences. By the verdict of the ordinary juries, the fate of the prisoners must be decided.... Except in cases of murder, capital punishments should be avoided.” In dealing with this difficult subject Lord Durham availed himself of the assistance of his special council, the members of which were Vice-admiral Sir Charles Paget, Major-general Sir James Macdonnell, Colonel Couper, the governor’s military secretary, and principal aide-de-camp, Colonel Grey, and Mr. Charles Buller. The council met on the 18th of June; but it was not for the purposes of consultation that Lord Durham convened his board, for on the very day on which they were summoned to meet, appeared the celebrated ordinance, by which Lord Brougham not only accomplished his fall, but contrived that all the odium of the transaction should attach to the ministers themselves The nature of this ordinance will be clearly seen in the following debates which took place in both houses of parliament.

On the day before mentioned (30th July), when the attack was opened on Lord Durham in the upper house, Lord Brougham called the attention of the peers to the ordinance which had been passed by the noble governor of Canada, asserting that if carried into effect it would involve the crime of murder, the whole proceeding being at variance with law. Seven days after, Lord Brougham renewed the attack. No power, he said, to inflict pains and penalties upon individuals who had not been brought to trial, which that ordinance usurped, was conferred upon Lord Durham. He

might make general laws for the good government of the colony, but subject to an exception which restrained him from altering any act of the British parliament. The ordinance in question contravened the provisions of the act 7th William III. “for the trial of treasonable offences;” and if Lord Durham had the power of dispensing with that act, he might condemn in every case as traitors men against whom no witnesses had been examined, and into whose alleged offences no inquiry had been made. Lord Glenelg remarked that Lord Durham had been placed in a situation of extreme difficulty: he had been solicited for extreme punishments on the one hand, and for a complete amnesty on the other; he had adopted a middle course, and when his decision was announced, it gave general satisfaction. Lord Brougham replied, that the noble earl might have accomplished all he was desirous of doing without a breach of the law. If he had said to parties accused or suspected, “I won’t bring you to trial, if you conduct yourselves properly,” he would have acted in a legal manner; but instead of doing this, he said, “I shall send you to Bermuda; and if you leave that island, I declare you guilty of high-treason.” Lord Melbourne deprecated such rigid criticism. He owned that the clause in the ordinance which related to Bermuda was an error on the part of Lord Durham, but he declared his belief that the whole of the remainder was perfectly legal, and warranted by the powers which parliament had committed to the noble governor of Canada. On the other hand Lord Ellenborough contended that all the penal provisions of the ordinance were illegal, and that the whole transaction was alien from the spirit of British jurisprudence. The Duke of Wellington said that he did not approve of the constant attacks on Lord Durham; but he really thought that steps should be taken to set the government of Canada right on proceedings which appeared to be illegal. Lord Brougham followed up the course he had taken on the following night by introducing a bill “for declaring the true intent and meaning of an act passed in the present session of parliament, intituled ‘An act to make temporary provisions for the government of Lower Canada,’ and for indemnifying those who have issued or acted under a certain ordinance made under colour of the said act.” This bill was read a first time in silence, but on the second reading on the 9th of August, Lord Brougham, by way of preface, propounded certain “canons of policy” by which the administration of the government of Lower Canada, during the suspension of the constitution ought, in his opinion, to have been directed. The bill introduced by Lord Brougham was so loosely framed that it afforded Lord Glenelg fair occasion for criticism. He availed himself of this opportunity of encountering his adversary with some effect. In conclusion, Lord Glenelg observed that the bill before the house was not a mere declaratory act, but a new law restricting the powers which the act of that session had already conferred upon the governor of Canada. It would be inexpedient and extraordinary, if, having invested Lord Durham with plenary authority, they were suddenly to abridge the powers which he had been led to suppose he possessed. A warm and acrimonious debate was maintained by the Earl of Ripon, the Duke of Wellington, and other opposition peers on the one hand, and Lord Melbourne and the lord chancellor on the other. The two ex-chancellors made themselves very remarkable on this occasion, Lord Brougham manifesting the utmost excitement, and the most bitter personal hostility to Lord Durham, to whose instrumentality he attributed his being overlooked by Lord Melbourne in his cabinet arrangements. Lord Lyndhurst did the excellent qualities of Lord Durham justice, and displayed a

calmness in debate which contrasted strikingly with the irritability and personalities of Lord Brougham. The debate brought forcibly to light the disposition of Lord Durham to carry matters with a high hand in his new government, and his deficiency in that wariness and prudence so essential to a chief governor. After a few remarks from Lord Brougham, the bill was read a second time by a majority of fifty-four against thirty-six. On the following day Lord Melbourne informed the house that ministers had resolved to advise the queen to disallow of the whole ordinance. It was with the deepest regret and alarm that they had taken this course; nor was it without the greatest apprehension of the consequences that they had come to this determination. His lordship then intimated his approval of the indemnity bill, and that he should in a future stage of the proceedings move a clause explanatory of Sir William Follett's proviso. Lord Brougham commended ministers for their "judicious, wise, politic, and most virtuous resolution." The Duke of Wellington was by no means inclined to sanction Lord Melbourne's proposed explanation of the proviso: Sir John Colborne had acted under the law as it stood, and must have found it sufficient for the purpose. The Marquis of Lansdowne remarked, that if the noble lords opposite acquiesced in the mode in which Sir John Colborne had exercised his authority; if they admitted that he had not exceeded the law, Lord Melbourne's proposed clause would be unnecessary. That gentleman had been permitted to pass an act of attainder, which had lain unnoticed on the table for six weeks. Ministers only claimed for Lord Durham the power which was conceded to his predecessor: he desired to know whether Sir John Colborne had acted in conformity with the law. Lord Brougham replied, that Lord Durham's powers were coextensive with those of Sir John Colborne; but as to whether or not that officer had exceeded the limits of his authority, he begged to say that he did not feel himself at liberty to answer. It is quite clear, indeed, that no noble lord could have answered this question satisfactorily; for if Lord Durham had been guilty in passing an act of attainder, the same guilt must have attached to Sir John Colborne; and if the one had been pronounced innocent, the other must have shared in his innocence. This question, which was one of the greatest importance, however, was allowed to pass over; and in the course of the evening Lord Melbourne moved the insertion of his explanatory clause, which, after reciting the proviso, proceeded to declare, that it should not extend to prevent the governor and council from passing such laws as might be necessary for the safety of the province, or from providing for the punishment or detention of persons engaged in conspiracies against the government. By the results of this clause, in fact, and the discussions which followed, Lord Brougham's bill was stripped of its declaratory character, and reduced to a mere act of indemnity to the parties concerned in the transportation and detention of the Bermuda prisoners. In this mutilated condition Lord Brougham moved the third reading of the bill, which he did with evident reluctance, inasmuch as he rightly considered that its chief value lay in its declaratory character. "As I have been accidentally mixed up with this business," said his lordship, "I have no hesitation in moving the third reading of the bill, as it now stands, although quite sensible that I am making that motion on the part of her majesty's government." On this occasion the lord-chief-justice Denman spoke on the question for the first time. His objections to the ordinance were directed to a gross violation of the constitution. As to the indemnity, he was entirely opposed to it; the

passing of such bills was one of the most unjustifiable practices of parliament. Publie functionaries might be justified by their good intentions in overstepping the law; but parliament had no right to say to the parties who had suffered by such excess of authority, “You can have no redress against those persons who have wronged you, because it is our pleasure to indemnify them.” “If indeed,” he continued, “parliament are of opinion that individuals, actuated by a good and upright intention, and only zealous for the public service, have broken the laws, let them indemnify those individuals out of the public purse, against the consequences of the legal proceedings that may be instituted; but let them not leave the injured party without a remedy.” The bill was finally read a third time, and passed in the lords.

Lord Brougham’s bill was introduced into the house of commons on the 13th of August, and read a first and second time without any discussion. On the following day, however, Lord John Russell brought the subject before the house. His lordship said it was his intention to submit to the house of commons a proposal which he made with extreme reluctance; namely, that they should assent to the bill as it came down from the lords without any amendment. He presumed that no objection would be made to the indemnity which it was the object of the bill to provide; and he then explained in what sense he understood the act for governing Canada. The discussion which ensued was similar in argument and spirit to the debates in the house of lords. The house went into committee on the bill. No amendments were introduced; and on the 15th of August Lord John Russell moved the third reading, which, after a short debate, was carried without a division.

QUEEN PROROGUES PARLIAMENT.

The queen prorogued parliament on the 16th of August. Being seated on the throne her majesty was addressed by the speaker of the house of commons on the subject of the suspension of the constitution of Lower Canada, and the Irish poor-law and tithe bills. The queen then gave the royal assent to a series of bills, after which she proceeded to read the speech. In the speech her majesty lamented that war still continued in Spain; adverted to the affairs of Canada; noticed the progress which had been made towards the entire abolition of negro-apprenticeship; made some approving observations on the attention which had been bestowed upon the amendment of the domestic institutions of the country; thanked the commons for providing for the expenses of her household, &c.; and expressed her satisfaction in having given her assent to a bill for the relief of the destitute poor in Ireland. Her majesty concluded thus: “My lords and gentlemen,—The many useful measures which you have been able to consider, while the settlement of the civil list and the state of Canada demanded so much of your attention, are a satisfactory proof of your zeal for the public good. You are so well acquainted with the duties which now devolve upon you in your respective counties, that it is unnecessary to remind you of them, In the discharge of them you may securely rely upon my firm support; and it only remains to express an humble hope that Divine Providence may watch over us all, and prosper our united efforts for the welfare of our country.”

DISAFFECTION AMONG THE WORKING CLASSES.

During the autumn of this year a turbulent spirit displayed itself among the working classes in the manufacturing districts. Meetings were held in various quarters, and demagogues addressed the assembled multitudes in the most inflammatory language. The twofold cause of this disaffection was the poor-laws and the price of bread; and as a remedy for these evils the people were taught to ask for universal suffrage. A favourite practice with the parties to these transactions was to assemble by torchlight in the open air—a practice which gave a mystery to the meetings well calculated to strike the imagination of the vulgar, and which gave those whose employment did not admit of their being present in the daytime, an opportunity of attending them. The speeches delivered at these meetings have been well characterized as “furious nonsense;” but at the same time they were calculated to work mischief in the community. Happily, however, the Whigs were in office, and for their own interest’s sake they restrained these ebullitions. Had there been a Conservative government, possibly the danger might have been greater.

PROPOSED REDUCTION OF THE RATES OF POSTAGE.

At this time the question of an alteration in the rates of postage was beginning to occupy attention. A proposal was submitted to the country by Mr. Rowland Hill, for substituting a uniform rate of one penny upon every half-ounce, without any reference to distance. This scheme was loudly applauded by all classes of society; and the subject was referred to a committee of the house of commons. The report of this committee was, that the high rates of postage then in existence were extremely injurious to the community, interfering with moral and social improvement; restricting commercial enterprise; impairing general national prosperity; restraining the progress of art and science; circumscribing the operations of religious societies, and acting as a grievous tax upon the poor. The report further stated that the illicit conveyance of letters prevailed to a great extent, and was on the increase; that the law was impotent to arrest the practice; and that the only mode of effectually suppressing it would be to reduce the charges to the standard of the contraband carrier. The report recommended that, prior to the establishment of an uniform rate of one penny, a similar rate of twopence per half-ounce on inland general-post letters should be adopted at the rate of one penny with every additional half-ounce, with certain exceptions. It further suggested that as soon as the revenue would bear a large temporary reduction, it would be expedient to subject all inland letters to a penny postage the half-ounce, increasing at the rate of one penny with every additional half-ounce. It advised also that payment of postage should be required in advance; and for the facilitation of this plan, recommended the adoption of stamped covers, which should have the effect of franking the letters enclosed. The use of these stamps was to be made compulsory as soon as justified by experience. At this time, the report added, it was calculated the number of letters, &c., passing through the post-offices of the United Kingdom were from 75,000,000 to 80,000,000 annually; of which about 5,700,000 were general-post letters. The number of franks was about 7,000,000; and of newspapers, 44,000,000.

THE STATE OF IRELAND.

As usual, Mr. O'Connell devoted his time during the parliamentary recess to "agitation." A series of manifestoes issued from his retreat at Derrynane Abbey, all well calculated to stir up the evil passions of human nature. Nor were these missiles the only instruments of his agitation. On the very day of his arrival in Dublin, after parliament was prorogued, he convened a meeting of his constituents for the morrow, in order to take into consideration "ulterior measures, to procure from the British legislature 'full justice for Ireland,' or to provide for the contingency of a perseverance in the refusal of that legislature to right the people of Ireland." Accordingly, a large concourse of people assembled at the Corn-exchange, and were addressed by the demagogue in that braggart style which he well knew would win its way to their feelings. In his speech Mr. O'Connell intimated his intention of forming a new association, the exertions of which were to be directed to obtain for Ireland a greater share in the representation of the United Kingdom. He developed his plan for accomplishing this design in a series of letters to the people. In these letters he founded his allegation, that Ireland had not her fair proportion of members of the house of commons, on this data. By the last census it appeared that the population of England and Wales was 13,899,675; of Scotland, 2,365,930; and of Ireland, 7,943,940. Scotland, he said, had fifty-three representatives, while Ireland had only one hundred and five; so that the Scotch had more than half the number of representatives possessed by the Irish; whereas, in order to be on an equality, the latter ought to have one hundred and fifty-nine. In order to be on an equality with the English, he said, they ought to have one hundred and sixty-six; but Mr. O'Connell said that he would be satisfied with one hundred and fifty. In order to obtain that number he proposed the organization of an association sufficiently numerous to speak the sentiments of all Ireland. For this purpose, he said, the "Precursor Society" had been established, and was now in progress of enrolment. Mr. T. M. Ray was secretary to the "Precursor Society," and to become a member it was necessary to pay him one shilling at the enrolment. All the population might have the privilege of enrolment—men, women, and children—for the more shillings that were paid, the better for the pockets of the agitators. The operations of the society was to be conducted by local boards, corresponding with that over which Mr. Ray presided at the Corn-exchange Rooms, Dublin. The duty of the "Precursor Society," in every parish, was to procure petitions to parliament for "justice to Ireland;" for a corporate reform; for an amendment of the law of election, and extension of the suffrage, and an increase of representatives. The precursors were also instructed to furnish accurate details of the state of the franchise in every parish, and to keep up and extend the registry. This was what Mr. O'Connell designated in one of his letters as "one great experiment more to obtain justice;" and if this failed, then he would have repeal.

THE AFFAIRS OF CANADA.

It has been seen in the parliamentary debates that the affairs of Canada were in a very unsettled state; it is now necessary, however, to give a brief account of the transactions which had taken place in that province.

During several preceding years great dissensions had existed in Lower Canada; and in the year 1837 these dissensions broke out into open insurrection. The provincial parliament of that province assembled on the 18th of August; but from its refractory conduct Lord Gosford was compelled to prorogue it. He had no other alternative but to dismiss the members, since they plainly declared that they suspended all deliberation until the consummation of the reforms announced by and in the name of the imperial authorities. On the prorogation of the provincial parliament everything denoted imminent troubles. The authorities were on the alert; and plans were formed for the effective disposition of the small force that the local government possessed. Nor were the loyalists inactive: a great meeting was held at Montreal, at which resolutions were adopted in support of the British government. These resolutions were followed up by the formation of regiments of volunteers, thus showing a steady determination to carry them out to the utmost. But, notwithstanding all this, the French party, or patriots, convened a great meeting in the county of Richelieu, which they termed “the meeting of the five counties,” at which place delegates were collected from the various parishes. The people met in a large meadow; and in this meadow was erected a column, surmounted with a cap of liberty, and bearing this inscription:—“To Papineau, by his grateful brother patriots.” Papineau was there; and after haranguing the multitude with other leaders of the faction, and a string of insurrectionary resolutions having been passed, the transatlantic demagogue was conducted to the foot of the column, where an address was delivered to him by one of his brother agitators. The proceedings of the day terminated with a procession of young men, who, marching up to the pillar, sung a patriotic hymn, and, with their hands placed on the column, devoted themselves to their country. Mischief was now fairly afloat. Soon after this a collision took place in the streets of Montreal between the “loyalists and patriots,” in which the latter were defeated. The troops in Lower Canada were reinforced by two regiments sent from Halifax; and Sir Francis Head placed the whole of the troops stationed in Upper Canada at the disposal of the Lower, although there were symptoms of disaffection within his jurisdiction. Still rebellion continued. Every day displayed a new manifestation of an intended rising: on the one side men assembled in arms, using threatening language; and on the other the magistrates issued proclamations and warrants, which the military were called on to enforce. On one occasion a party of volunteer cavalry, who composed the escort of some prisoners, was waylaid by an overpowering assemblage of insurgents, who, receiving them with a galling fire, put them to the rout, and rescued the prisoners. Before the close of the last year many of the leaders of the faction were in prison, and more of them, among whom was M. Papineau, had withdrawn to a place of safety.

The insurrection in Lower Canada rendered it necessary for the British government to appoint a species of dictatorial governor, one who should possess the power of making temporary provision for the government of Canada. It has been already seen that Lord Durham was selected for this important mission, and that he had arrived in the province. Before, however, relating the particulars of his government, it is necessary to take a retrospective view of events in Upper Canada.

Sir Francis Head at this time was governor of the upper province of Canada; and at the period when he arrived there a Mr. Lyon Mackenzie, who had originally emigrated from Scotland, was a principal leader of the “Reform,” or malcontent party in the province. In the year 1832 Mr. Mackenzie made his appearance in London, as the agent of his party; and in that capacity he was received with every mark of respect. Mr. Mackenzie, in fact, was so successful in his mission as to procure the removal of the attorney and solicitor-generals from their posts, a penalty which they paid for the part they had taken in joining in a vote which had expelled their antagonist from the house of assembly. He returned in triumph to Upper Canada; and, supported by the approval of the English cabinet, succeeded in regaining a seat in the house of assembly. At the ensuing election “the reformers” obtained a large majority in that assembly; and the result was that a “grievance committee” was appointed, which committee made a report that was subsequently transmitted to England. It was to redress the grievances therein stated that Sir Francis Head was despatched to Canada; and he was hailed on his arrival there as a “tried reformer.” His appearance under such circumstances naturally excited the distrust of the loyalists, who gave indications of their dissatisfaction. Sir Francis Head, however, was nothing daunted at this demonstration; he had the grievances of Upper Canada to redress, and he had the remedies; and whether the Tories liked the medicine or not, he did not care a straw. At the same time he soon gave an intimation to the Republican leaders that he was not the kind of man they believed him to be. Beyond the grievances they had enumerated in the report, they had a variety of others hitherto unmentioned; and when this was intimated to him, he gave a distinct intimation that he should not take these into consideration. His graphic account of his interview will well illustrate the manner in which he treated the Republicans. He says,—“When Mr. Mackenzie, bringing with him a letter of introduction from Mr. Hume, called upon me, I thought that of course he would be too happy to discuss with me the contents of the report; but his mind seemed to nauseate its subjects. Afraid to look me in the face, he sat with his feet not-reaching the ground, and with his countenance averted from me at an angle of about seventy degrees, while, with the eccentricity, the volubility, and, indeed, the appearance of a madman, the tiny creature raved in all directions about grievances here, and grievances there, which the committee, he said, had not ventured, to enumerate. ‘Sir,’ I exclaimed, ‘let us cure what we have got here first!’ pointing to the report before me. But no; nothing that I could say would induce this pedlar to face his own report; and I soon found that it had the same effect upon all the members, and that, like the repelling end of a magnet, I had only to present it to the Radicals to drive them from the very object which his majesty’s government expected would have possessed attractions.” On his arrival Sir Francis Head promulgated his instructions; a step which had the effect of precipitating matters in Lower Canada. He then proceeded to act, by adding three Reformers to his executive council, making the total number six. By this means the executive council was brought into unison with the majority of the house of assembly. Thus favoured, in furtherance of the views of that body as then constituted, the board requested the governor to bestow upon it a considerable enlargement of its powers. But this sealed the fate of the executive council. Instead of granting their request, Sir Francis, who had already become hostile to the Reformers, dismissed the whole of

the members of which the council was composed. This brought him into collision with the house of assembly; the supplies were stopped, and violent and condemnatory addresses drawn up. Sir Francis, however, fought them with their own weapons; when they stopped the supplies, he refused to assent to bills providing for their own contingencies; and in April, 1836, first prorogued, and then dissolved his exasperated parliament. The next assembly presented a majority of opposite politics to the last, and Sir Francis had everything his own way: he “rode on a full tide of popularity.” Still he was beset with difficulties on every hand; and his mode of governing was of so novel and experimental a nature, that it was evident he must sooner or later become offensive to his superiors at home. Before the close of the year, indeed, he found himself in collision with Lord Glenelg. During that period and in the following year he addressed several memorandums to the colonial office, in which he gave a description of the political state of Canada, and offered his advice as to what measures were necessary for its good government. It must be confessed that his views were generally of the most eccentric character; and hence they were either unnoticed by the government at home, or he was given to understand that they were not thought worthy to be included among those submitted to the imperial government. The points at issue between Sir Francis and his superiors progressively accumulated, until at length the lieutenant-governor broke out into insubordination, and thereby made his recall a matter of necessity. But before his recall, and while the correspondence was passing between Sir Francis and Lord Glenelg, an insurrection broke out, which was headed by Mr. Mackenzie: Toronto was attacked by him, bearing on his colours the name of “Bidwell,” the judge-elect for the court of Queen’s Bench. This attack failed, and it became incumbent on Sir Francis Head’s successor, Major-general Sir George Arthur, to institute proceedings against some of those engaged in the outbreak, who had been taken prisoners. Among these were Samuel Lount, a native of the United States, and Peter Mathews, an Upper Canadian, both of them men of considerable property. Mathews had headed a party, and attacked the city, when Sir Francis Head was shut up in the Town-hall; on which occasion a bridge and several houses were set on fire. Being brought to trial they pleaded guilty, and were sentenced to death—a sentence that was executed on them. Upon being informed of this event, Lord Glenelg wrote to express his regret that these severities should have been deemed requisite, and expressed a hope that no similar necessity might recur. No more of the offenders suffered capital punishment; but great embarrassment was occasioned by the number of prisoners, it being alike inexpedient to pardon and inconvenient to punish. Sir Francis Head had instituted a board of commissioners, with the vice-chancellor of the province at their head, for the purpose of investigating the cases, and classifying the offenders according to their guilt. A considerable number were finally discharged on bail; others were bound over to keep the peace; some were set at liberty; and of the remainder, a few, principally Americans, were banished from the province; while the residue, for the most part men of property and influence, were sentenced to transportation to the penal colonies. But while the government was occupied in the disposal of these prisoners, the marauders on the American side of the border were making preparations for a renewal of hostilities; and on the 30th of May, 1838, a band of these outlaws boarded the Sir Robert Peel British steamer at Well’s Island, situated in the river St.

Lawrence, and belonging to the United States. The passengers were robbed of everything, and the vessel was set on fire and then abandoned. Lord Durham, who had just arrived, offered £1,000 reward for the discovery and conviction of the offenders; but the marauders set the authorities, British as well as American, at defiance. Johnson, their commander, celebrated for his address and courage, became the terror of the coast, and executed his schemes of plunder with success and impunity. During the summer and autumn the preparations for invasion continued to be conducted on the American border without any attempt at concealment, and the alarm of the Canadians was naturally proportionate to the danger. Sir George Arthur devoted himself with the greatest assiduity to the defence of the province upon an extensive scale; but the known lenity of Lord Durham had excited a strong feeling of dissatisfaction in the upper province, and had created a feeling of lukewarmness, against which it was difficult to work. On the other hand, Lord Durham thought that the local government had erred on the opposite side of severity. On this subject he wrote to the government at home:—"It cannot be doubted that events of the past year have greatly increased the difficulty of settling the disorders of Upper Canada. A degree of discontent, approaching, if not amounting to disaffection, has gained considerable ground. The causes of dissatisfaction continue to act on the minds of the reformers; and their hope of redress, under the present order of things, has been seriously diminished. The exasperation caused by the conflict itself, the suspicions and terrors of that trying period, and the use made by the triumphant party of the power thrown into their hands, have heightened the passions which existed before. It certainly appeared too much as if the rebellion had been purposely invited by the government, and the unfortunate men who took part in it, deliberately drawn into a trap by those who subsequently inflicted so severe a punishment on them for their error."

It seemed, too, as if the dominant party made use of the occasion afforded by the real guilt of a few desperate and imprudent men, in order to persecute or disable the whole body of their political opponents. A great number of perfectly innocent individuals were thrown into prison, and suffered in person, property, and character. The whole body of reformers were subjected to suspicion, and to harassing proceedings, instituted by magistrates whose political leanings were notoriously adverse to them. Severe laws were passed, under colour of which individuals very generally esteemed were punished without any form of trial—I make no mention of the reasons which, in the opinion of the local government, rendered those different steps advisable, because my object is not to discuss the propriety of its conduct, but to point out the effects which it necessarily had in augmenting irritation. The revolt in Lower Canada has been noticed at the commencement of this article. After this event Lord Gosford was recalled, and during the interval between his departure, and the arrival of Lord Durham, the functions of government in that province devolved on Sir John Colborne. The first care of Sir John, after the termination of the revolt, concerned the disposal of the prisoners, of whom a great number remained in custody. In the whole, about three hundred and twenty-six were from time to time liberated, leaving about one hundred and sixty in confinement, among whom seventy-two stood charged with being among the principal promoters of the

insurrection. It was not expected that any of these would be convicted if tried by ordinary juries; but Lord Glenelg being informed of this, declined to sanction a resort to any other species of court, without previously submitting as a practical test the anticipations as to the issues of the ordinary tribunals. Sir John Colborne was instructed to take steps for reducing the number of prisoners still remaining, by allowing some of them after arraignment to plead guilty, on the assurance that the judgment recorded against them should not be executed, if they would consent to leave the province. From the remaining number he was directed to select four or five cases, and bring them before the ordinary courts of the province, the juries being convened according to the existing practice; but in case this line of proceeding should not appear expedient, it was suggested that a law should be passed, suspending the _habeas corpus_ act, and that the prisoners should be detained until Lord Durham's arrival. Sir John Colborne adopted this latter course, being little disposed to try state-prisoners under what he considered a certainty of their acquittal. In the meantime, however, the news arrived of the new act of parliament, which provisionally invested him with the powers which were eventually to devolve on Lord Durham. In pursuance of his fresh instructions he proceeded to nominate provisionally a special council, consisting of twenty-one members, of whom eleven were French Canadians, and two natives of the province. After preparing a series of "rules and orders" for the better conduct of their deliberations, this council proceeded to pass ordinances for such domestic objects as would have come before the local parliaments in the ordinary course, and to take necessary measures to meet the peculiar exigencies of the time. Among the latter class may be mentioned enactments suspending the _habeas corpus_, and imposing certain restrictions on the publishers of newspapers. An ordinance was also passed to continue the local act for the transportation of offenders from the province to England, and from thence to New South Wales and Van Diemen's Land; an act which was on the point of expiring. By a second ordinance it was provided that, upon the petition of any person charged with high treason committed in the province, it should be lawful for the person administering the government, before the arraignment of the offender, to grant a pardon upon such terms as should seem proper, which pardon should have the same effect as an attainder, so far as regarded the forfeiture of the real and personal estate of the person therein named; and further, that in case any person should be pardoned under that ordinance, upon condition of being transported, or of voluntary banishment, either for life or for a shorter time, and should afterwards return without lawful excuse, contrary to the condition of his pardon, he should be deemed guilty of felony, and forfeit his life. By a third ordinance it was enacted that if a person against whom an indictment for treason was found by a grand-jury in the province would not appear, he might be summoned by proclamation to surrender himself by a given day, such day not to be less than three months from the date of the proclamation; and in the event of his failing to do so, should stand and be adjudged attainted of the crime expressed in the indictment, and suffer and forfeit accordingly, and judgment be recorded to that effect. After issuing these ordinances, with others of minor importance, and after repealing martial-law in the district of Montreal, on the 5th of May the council was prorogued. On the 29th of the same month Lord Durham arrived at Quebec, and immediately proceeded to the council-chamber at the castle, and took

possession of the government with the accustomed formalities. His first act was to issue a proclamation, assuring the people that he appeared among them as a friend and arbitrator, ready at all times to listen to them without respect to party, race, or politics. On the 31st of May he addressed a circular to the respective members of the executive council, dispensing with their services, having previously formed another, composed of the secretaries to the general government; namely, C. Buller, Esq., M.P., chief secretary; T. E. M. Turton, Esq., secretary; Colonel G. Couper, military secretary; the provincial secretary; and the commissary-general. Among the earliest measures of Lord Durham was the mission of Colonel Grey to Washington, with instructions to expostulate with the American government on the state of things existing on its own borders. Colonel Grey obtained the fullest assurances of the president that the American government desired to preserve the good understanding existing with England, and ample promises of co-operation in any measures which Lord Durham might think necessary to adopt for restoring the peace of the frontier. A more difficult affair for Lord Durham to settle was the disposal of the state prisoners. His lordship himself remarked that it was “by far the most delicate and dangerous” of all the matters requiring settlement. The manner in which his lordship settled this question has already been seen in the record of the recent debates in parliament. Having appointed a special council, consisting of five members only, he, with the sanction of this council, issued an ordinance, which, after reciting that Wolf Nelson, and seven others therein named, had acknowledged their participation in high-treason, and submitted themselves to her majesty’s pleasure, and that Papineau with fifteen others had absconded, enacted that it should be lawful for her majesty to transport Nelson and his seven associates to Bermuda, during pleasure, there to be subjected to such restraints as should be deemed fit; and further, that if any person of the above classes should be found at large, or within the province without permission, they should be deemed guilty of high-treason, and on conviction of coming within the province, suffer death. The ordinance further empowered the governor for the time being to grant, whenever he should think fit, permission to all, or any, of the above-named individuals to return to the province. By a special clause two other classes of persons implicated in the murder of Lieutenant Weir and one Joseph Chartrand, were excluded from the operation of the ordinance, and from the benefit of any amnesty which might be proclaimed. The ordinance was accompanied by a proclamation of amnesty, which declared that, with the exception of the persons named therein, all persons then in custody on a charge of high-treason, or who had withdrawn themselves from justice beyond the limits of the province, should, on giving proper security, be at liberty to return to their own homes. What views were taken in the imperial parliament has been seen. During the debates there, Lord Durham applied himself to the consideration of questions connected with the management of the crown-lands within his dominion. He formed a design for making these lands more subservient to the purpose of emigration than they had hitherto been. A commission of inquiry into the disposal of the crown-lands to that end was issued by him, and he directed similar investigations to be instituted in the other colonies subject to his control. Subsequently his lordship commenced a progress through the two provinces; and, according to his despatches, he was warmly greeted on every hand. He writes:—“Everywhere, in the most insignificant village, as in the

most populous town, I have been received with the utmost enthusiasm: in fact, in no part of England have I ever been more warmly greeted, or received more unequivocal marks of respect from all ranks and classes. I announce this fact with much satisfaction, as it is an unerring mark of the feelings with which the measures which I have adopted for the public good have been regarded by the great majority of the inhabitants of the two provinces." It is quite clear, however, that Lord Durham had not conciliated the great body of the people. During the month of September, those who were charged with the crime of murdering the French Canadian, Chartrand, were tried, and although they were arraigned before a jury consisting exclusively of French Canadians, and were moreover notoriously guilty, they were acquitted. On this subject, in one of his reports, Lord Durham says:—"A perusal of the notes of the chief-justice in this case, will satisfy every candid and well-ordered mind, that a base and cruel assassination, committed without a single circumstance of provocation or palliation, was brought home by evidence, which no man ever pretended to doubt, against the prisoners, whom the jury nevertheless acquitted. The duty of giving this dishonest verdict had been most assiduously inculcated by the French press before the trial came on; the jurors are said to have been kept for some time in the hands of zealous partizans, whose business it was not only to influence their inclination, but to stimulate their courage; the array of the leaders of the party who were present at the trial, was supposed to be collected for the same purpose; and it is notorious that the acquittal was celebrated at public entertainments, to which the jurors were invited, in order that they might be thanked for their verdict." This intelligence seems to have had the effect of opening the eyes of Lord Glenelg and his colleagues, as to the impolicy of the restrictions which had been imposed upon the colonial authorities with respect to the trial of political offenders. In his reply, Lord Glenelg stated that it was the desire of her majesty's government that an ordinance should be passed by the special council of Lower Canada, constituting a tribunal for the trial of treason and murder; leaving it to Lord Durham's own discretion how such a tribunal should be formed. It does not appear, however, that Lord Durham adopted any plan for securing the conviction of such offenders as it might be deemed expedient to bring to trial. He scarcely, indeed, had an opportunity of making any alteration in the criminal law. Soon after Lord Glenelg had given directions on that point, he was compelled to communicate the determination of ministers to annul his celebrated ordinance. After informing him that so much of that edict as related to the Bermudas was generally admitted to be invalid, and that in all other respects the law-officers of the crown thought its provisions were within the competency of the governor and special council; he said that, in consequence of the discussions in parliament, and the unpopularity of the penal parts of the ordinance, government, though reluctantly, advised her majesty to disallow the ordinance. Lord Glenelg then proceeded to direct Lord Durham, with a view of preventing the return of the prisoners from Bermuda, to pass an ordinance subjecting them to such penalty, short of death, as might be thought expedient, in the event of their being convicted of returning to the province without permission. With regard to those who had previously fled from justice, it was suggested it might be sufficient by proclamation to make it known that, should they re-enter the province, they would be forthwith arrested, and dealt with according to law, on the charge of treason. The expediency of suspending the _habeas corpus_ act

was pointed out; and the despatch concluded with an assurance of the earnest desire of ministers to afford Lord Durham the utmost support in the arduous discharge of his duties. Before these instructions were received, however, Lord Durham had despatched a letter notifying his resolution to resign his office. In this letter he dwelt on the incessant persecutions to which he was exposed in the house of lords; the backwardness of ministers in his defence; and the injurious effects of these circumstances upon the moral authority of his government. “Upon two things,” said he, “could I chiefly rely for ultimate success: first, the great extent of the legal powers conferred upon me; secondly, the impression which prevailed throughout the colonies, that I might reckon with perfect confidence on the undeviating support and approval of the government.” Deprived of these by the proceedings in question, he proceeded to say, the prestige of his situation was gone for ever, and he had resolved to quit his untenable post, Soon after this, Lord Durham forwarded to Lord Glenelg a statement of the grounds upon which he was prepared to maintain that no part of the ordinance was illegal, however imperative it might, and must of necessity be without assistance and co-operation at home. In another paper, of the same date, he entered at great length into an examination of the conduct of ministers in the late proceedings, arraigning them with great severity for deserting him in the hour of need. He asked, “in what their opposition to the second reading of Lord Brougham’s bill consisted? In a concession far more calculated to weaken my hands than would have been any vote of the house of lords, in which it is notorious that her majesty’s government have never commanded a majority.” His lordship added, “A vote of the house of lords adverse to her majesty’s government, or merely condemnatory of any proceedings of mine, would have been considered almost as a matter of course in the present state of parties; and would, if it had been decidedly opposed by the ministers, have left my authority untouched, because it would have been attributed to the mere party motives of a powerful opposition.” After remonstrating against the conduct of ministers, Lord Durham proceeded to vindicate his policy. As regarded the particular defect of the ordinance, his lordship contended that he had power to banish people from the province, to keep them in custody during the transit, and to land them at Bermuda or elsewhere. At the same time his lordship admitted that his jurisdiction did not extend further: once landed in Bermuda, the prisoners were subject only to the laws of the island. Lord Durham, after justifying his policy, made some remarks on the impossibility of governing the country with any effect; and then proceeded to consider Lord Glenelg’s suggestions of the course which it was advisable to adopt in the present emergency. His lordship treated the suggestion of another ordinance, banishing from the province the eight persons who had been sent to Bermuda, as futile; and stated that he had strong objections to the suspension of the _habeas corpus_. He remarked:—“Men’s notions of right and freedom would be more shocked at such an universal violation of every man’s dearest rights, than by any summary process adopted for the punishment of the undeniable guilt of a few. In the event of a general outbreak, it might be proper that the government should be armed with the power of arresting objects of its suspicion without trial. But there existed no such necessity at present; and he did not think it justifiable to take away the franchise of a whole people, in order to punish a few known and dangerous individuals, or to guard against the misconduct of twenty-three men, by enveloping them in a general

forfeiture of personal liberty." In conclusion Lord Durham intimated his intention of remaining a few weeks longer, only in order to complete certain measures then in progress. Upon the receipt of Lord Durham's first announcement of his intention to throw up his office, Lord Glenelg endeavoured to soothe his mind, by acknowledging that he had much reason to complain; and entreated him, upon public grounds, to reconsider his decision. His lordship, however, remained firm: he retained office only until arrangements had been made for some one to assume the reins of government. Before he left Canada he proclaimed the act of indemnity, and notified her majesty's disallowance of the ordinance. He accompanied the promulgation of these acts with a manifesto, in which he forgot alike what was due to the country and to himself. The tendency of this manifesto will be seen by Lord Glenelg's remarks upon it. He observed:—"The proclamation of the 9th of October, her majesty's confidential advisers regard not merely as a deviation from the course which has hitherto been invariably pursued by the governors of British possessions abroad, but as a dangerous departure from the practice and principles of the constitution. They consider as open to a most serious objection an appeal by such an officer to the public at large, from measures adopted by the sovereign, with the advice and consent of parliament. The terms in which that appeal has been made, in this instance, appear to her majesty's ministers calculated to impair the reverence due to the royal authority, to derogate from the character of the imperial legislature, to excite amongst the disaffected hopes of impunity, and to enhance the difficulties with which your lordship's successor will have to contend. The ministers of the crown having humbly submitted this opinion to the queen, it is my duty to inform you that I have received her majesty's commands to signify to your lordship her majesty's disapprobation of your proclamation of the 9th of October. Under these circumstances, her majesty's government are prepared to admit that your continuance in the government of British North America could be attended with no beneficial result." Lord Durham's manifesto was deservedly condemned by all parties, as unbecoming the office and character of the queen's representative: it procured for him, in the _Times_ newspaper, the unenviable title of "the lord-high seditioner." In Canada, however, it increased the golden opinions entertained of him greatly. Public meetings were convened, and addresses expressive of sorrow at his resignation poured in upon him from all quarters. At home, also, there were those who admired his character and applauded his conduct. His lordship sailed from Quebec on the 1st of November, and on the 26th he arrived in Plymouth harbour. At Plymouth, Devonport, and Exeter he received complimentary addresses, and unfortunately he was betrayed upon these occasions into renewed indiscretions, the only excuse for which could be that he had received most serious provocation.

In his reply to the addresses at Devonport and Plymouth, Lord Durham boasted that he had "effaced the remains of a disastrous rebellion," and "had conciliated the esteem of a great and powerful nation, in which were to be found all the elements of danger or security to our North American possessions." Before he reached Exeter, however, where another address awaited him, he was compelled to say that he had foreseen another event, the intelligence of which had just been conveyed from Liverpool—the renewal of the rebellion in Canada.

On the departure of Lord Durham, the government again provisionally devolved upon Sir John Colborne. It was expected before he set sail that a renewal of the rebellion would take place during the winter. On the 20th of October, indeed, his lordship had informed Lord Glenelg that the indications of mischief were so numerous and urgent that it was no longer possible to conceal a consciousness of danger. The indications of conspiracy had, in fact, become undeniable. Throughout the French population there existed a formidable organization, bound together by oaths and secret signs. Knowing this, the loyalists in both provinces either took up their abode in the towns, or fled altogether from the British dominion. What made their situation the more critical was the reluctance of the militia and volunteers to take up arms. This was especially the case in Upper Canada, and it seems to have chiefly originated in their dissatisfaction with the lenity of the government. No sooner had Lord Durham departed than the danger became imminent. Arrests took place at Montreal on the following night: domiciliary visits were general; guards and pickets were dispersed in all parts of the city, and its approaches occupied. It was originally intended by the insurgents that the rising should take place at Montreal, on Sunday, the 3rd instant, when the troops were unarmed, and at church. The precautions of Sir John Colborne, however, defeated this scheme, and Beauharnois was selected for the theatre of war. The _habitans_ were now, therefore, once more in arms against the British crown. A numerous party attacked the house of Mr. Ellice, late private secretary to Lord Durham, and that gentleman with three others were carried away by the rebels. On the same day an interesting incident occurred at Caughnawaga, an Indian village. While at church, the Indians were informed that a large body of armed men were secreted in their neighbourhood; and rushing from the sacred walls, they hurried home, seized what arms came to hand, raised the war-whoop, fell upon the enemy, and captured seventy prisoners, with scarcely a show of resistance. The Indians conveyed their prisoners to Montreal, bound with their own sashes and garters; and when Sir John Colborne thanked the chief of the party, he characteristically offered to bring in the scalp of every _habitant_ in the vicinity within twenty-four hours. Sir John Colborne, however, did not think it prudent to give him such a commission, though use of these warriors was made during the struggle. Every day the number of the insurgents increased. Between the 3rd and 6th of November, four thousand were concentrated at Napierville, in La Prairie, under the command of Dr. Robert Nelson, Dr. Cote, and one Gagnor. Upon this point Major-general Sir James Macdonnell was directed to march; but before he could arrive the rebels had dispersed, and were beyond pursuit. In their route they were twice attacked and defeated by a small party of volunteers, losing in the whole sixty men killed, and having about an equal number wounded. The loyalist forces now scoured the insurgent districts, and it was found impossible to prevent many excesses from taking place. The village of Beauharnois was partially destroyed by fire, and the houses of disaffected persons in every part shared the same fate. But while the war was thus easily suppressed in Lower Canada, their American coadjutors were actively engaged on their side. On the evening of the 12th they effected a landing at a place called Prescott, in Upper Canada, to the number of five hundred men, carrying with them several field-pieces. These were, however, defeated by the troops under the command of Colonel Dundas, Major McBean, Colonel Young, and Captain Sandom.

Nearly two hundred of them were taken, and conveyed to Kingston, to be tried by court-martial; many were slain, and the rest escaped across the river. Another attack was made by the American marauders on the 4th of December, near Sandwich, at the western extremity of Upper Canada. A steam-boat and the barracks were set on fire, and Dr. Hume, a military surgeon, having fallen into their hands, was barbarously murdered. On discovering this outrage, the militia, under the command of Colonel Price, assembled, and on their approach the enemy fled. Twenty-six of their number were slain in their flight, and twenty-five captured.

In the meantime Sir John Colborne and his special council were busy in the exercise of their legislative functions. Ordinances were passed for substituting martial law, for suspending the _habeas corpus_, for the attainder of persons against whom the sentence of courts-martial should be given, and for preventing, by highly penal provisions, the administering of unlawful oaths. It had been suggested by Lord Glenelg to Lord Durham, that a special court for the trial of “rebels and murderers” should be instituted. Sir John Colborne, however, preferred to resort to courts-martial for the disposal of prisoners recently captured. Soon after the dispersion of the insurgents, therefore, a general court-martial was convened, and twelve prisoners, all of French extraction, were arraigned before it. Two of these were acquitted, and the rest were sentenced to death; a sentence, however, which was only executed upon two of the most notorious—Cardinal, a notary, and Duguette, a tavern-keeper, who had commanded in both insurrections. In Upper Canada, where Sir George Arthur provisionally governed, the difficulties attendant upon the disposal of the prisoners were greater. The Upper Canadians demanded severity, and would not hear of mercy being extended to men whom they deemed robbers and murderers. A court-martial was assembled at Kingston for the trial of some of the recently captured prisoners; and several of them, as Van Schoultz, a Pole, who commanded the brigands, and three of his associates in command, Abbey, George, and Woodruff, were executed. Not long afterwards five more of the prisoners, three of whom had been engaged in the affair near Sandwich, suffered the same fate. At this time, indeed, according to Sir George Arthur’s report, the feelings of the loyal portion of the inhabitants of the upper province, were in the highest degree exasperated. He writes:—“Never was there a task more difficult than to decide what course, under the existing circumstances of the country, should be pursued, so as to combine the least possible violation of public feeling with a sense of justice, preserving withal a due and necessary regard to mercy in its administration; mercy not only as regards the prisoners, whose fate was yet undecided, but which respectively has reference to the lives that may hereafter be sacrificed by the adoption of a present injudicious measure.”

It may be mentioned that while these events were transpiring in Upper and Lower Canada, the remainder of the British North American provinces were in perfect harmony with the British government. In Newfoundland, indeed, there were the elements of discord between the colonial legislature and their rulers, superadded to which were religious dissensions; but these circumstances gave no cause for alarm. The broils prevailing there owed their existence to Roman Catholic agitation; but the Protestant interests were too strong to be shaken by them, or the government

disturbed.

THE STATE OF THE CONTINENT.

During the whole of this year the war still continued in Spain. The Carlists were less successful and less enterprising than in the two preceding years; but their cause was not yet hopeless. A body of them was defeated at Yebenes, in the province of Toledo, and at Val de Penas in New Castile, by Major-general Flinta; but shortly after this latter defeat they took possession of Almaden, with its famous quicksilver mines, the only element of credit remaining with the queen’s government. Basilio Garcia, however, failed in his endeavours to destroy the works of the mines; and having evacuated the town, retired into the mountains of Toledo, whence he harassed the surrounding country, and levied heavy contributions. While Basilio Garcia was carrying on war in Castile and Grenada, another body of Carlists, under the command of Count Negri, was making its way into the interior. He advanced as far as Segovia, but he then turned to the northward; and after presenting himself to no purpose before the walls of Valladolid, he hastened his retrograde march with all possible diligence towards the mountains. In the meantime Basilio Garcia had been again defeated at Bejar with great loss; and he hurried with the remains of his column into the province of Soria, where he effected a junction with Balmaseda. All this time Don Carlos was at Estella; but on the 10th of May, the discontent of the Nayarese in his service compelled him to withdraw to Tolosa. About this time Espartero, who had been elevated to the rank of captain-general of Spain, commenced active operations. He advanced to Pampeluna, and Don Carlos then removed to Glorrio. A series of conflicts now took place; and the struggle closed with the battle of Maella, in which Cabrera, who was the only Carlist general who in this year increased his reputation, defeated the Christino general, Pardinas, with great loss: out of 4,500 men only 1,500 men are said to have escaped: Pardinas himself was slain. But one of the most important events that took place during this year in Spain was an insurrection at Seville, headed by Cordova and Narvaez; this, however, was quelled by the activity of Espartero.

The history of Portugal for the year is marked by no very striking event. The efforts of the Cortes were chiefly directed to the averting of the catastrophe of a national bankruptcy, which was effected by the acceptation of a loan, conjointly tendered by the Mercantile Association, and the Lisbon bank. Early in March a street riot took place in the capital, and threw it into disorder for some few days; but it did not produce any result beyond the bloodshed which it occasioned. The Miguelite guerillas, however, ravaged Portugal, and especially the southern provinces, more this year than they had hitherto done. Remeihido, especially, who had been educated for the priesthood, committed many daring acts; but in the course of the summer he was attacked in his mountain-fastnesses by Colonel Fontoura, and after a sharp conflict his band was routed, and himself captured: he was shot at Faro.

In the month of March the king of Holland intimated to the conference at London sitting on the Hollando-Belgic question, that “having been constantly disappointed in his just expectations of being able to obtain by negociation better terms for his beloved subjects, he had become convinced that the only pledge which still remained

for him to give of his regard for their welfare, and the sole means to attain his object, consisted in a full and entire assent on his part to the conditions of separation which the courts of Austria, France, Great Britain, Prussia, and Russia, had declared to be unalterable and irrevocable.” His majesty, therefore, declared his readiness to accept the twenty-four articles which had been agreed upon in the year 1831. Belgium, however, now refused to accede to the arrangement, by resolving not to cede Luxembourg. But the conference insisted peremptorily on its cession; and it was quite apparent that Belgium would be compelled to render obedience to its decree.

It may be mentioned that an important treaty of amity, commerce, and navigation, was this year concluded between Great Britain and Austria, thus further cementing the ancient and natural alliance between two countries, of whom it has been said, “that for one hundred and fifty years they have always had the same enemies, though those enemies have not been the same.”

CHAPTER L.

{VICTORIA. 1839—1840}

State of Parties..... Meeting of Parliament..... The Corn- law Question..... The Affairs of Ireland discussed in Parliament..... Proceedings in Parliament respecting Jamaica..... Resignation of Ministers, and Failure of Sir Robert Peel to form a new Administration, &c. National Education..... The Affairs of Canada..... The second Jamaica Bill, &c. Bill for the Suppression of the Portuguese Slave trade, &c. Motion for the Ballot..... Act for the better ordering of Prisons..... Motion for a Committee of the whole House to consider the National Petition..... Birmingham Riots, &c. The Budget; proposed Reduction of Postage Duties, &c. Prorogation of Parliament..... Affairs in the East Indies..... State of the Continent.

STATE OF PARTIES.

{A.D. 1839}

It has been noticed in a previous page that the relative strength of the two great parties in the country continued much the same as they were at the commencement of the year 1837. The Whigs, indeed, gained by the change which had taken place in the monarchy, inasmuch as by the death of the late king they were delivered from an avowed adversary, and by the accession of Queen Victoria they gained a known friend to their cause. The ministers, indeed, found considerable advantage in her support. Yet in the house of commons the number of’ their supporters had upon the whole rather decreased since their accession to the government; and in the country generally their popularity may be said to have continued on the decline. One of the principal grounds in this change is to be found in the connection of government with the agitator O’Connell. Although that gentleman had rendered many services to the cause of reform, yet his delinquencies were so many, that he never enjoyed the sympathy of any considerable mass of the English people. Moreover, popery, of which

he was one of the leaders, is still unpopular in this country, and the Conservatives sedulously took advantage of the connection of the ministers with him to raise apprehensions of Romanist intrigue and encroachment. This was, therefore, a great source of embarrassment to the ministry; and yet they could not offend this man of the people of Ireland by standing aloof from him. Another cause of embarrassment was the movement of the people calling themselves Chartists.

MEETING OF PARLIAMENT.

Parliament was opened by the queen in person on the 6th of February. The speech referred to the discontents in England and Ireland and the insurrection in Canada, and recommended improvements in the law, and reforms as the remedy for this state of things, while it expressed a determination to maintain the authority of the crown.

The addresses in the lords and commons were, as usual, the occasion of long party debates, in which all the irritating topics of the day were made the most of by the opposition. The affairs of Ireland and the East occupied the greatest prominence; next to these, Chartism and the general distress; while Canada and the Iberian peninsula afforded fertile subjects for the opposition speakers, with which to annoy the government. Free-trade, and the duties on the importation of corn, became a subject of important debate at this juncture. In the commons Sir Robert Peel threw himself, acrimoniously, and with all his energy, into this controversy, and used all the exploded arguments of the protectionists with the air of one who for the first time urged them upon the house. Mr. Villiers severely chastised the protectionist champion, showing how unscrupulously he played the part of a plagiarist even in the sophisms he employed. Mr. Duncombe had the bad taste to move an amendment, which he knew there was no hope of carrying, or of finding a tolerable minority to support, thus impeding the public business without any counterpoising benefit.

When the address was brought up, Mr. O’Connell animadverted in strong language upon the transfer of Limbourg and Luxembourg to Holland: it was one of the greatest cruelties ever committed that the five powers should impose such terms on Belgium. In reply, Lord Palmerston observed that by the treaty of Vienna Limbourg was annexed to the Seven United Provinces. Luxembourg, by the same treaty, was constituted a separate sovereignty, as a grand duchy, to be held by the same individual who should be king of the Netherlands; but by a separate title, and transmissible in a separate line of succession. The kingdom of the Netherlands went to the heirs general of the king, while Luxembourg would descend to the heirs male only: the king of the Netherlands in that character was not a member of the Germanic confederation, but he was a member as grand duke of Luxembourg; and when the grand duchy was formed, it became subject to the federal constitution, and to the regulations which bound the members of the confederacy. When the revolution broke out it extended to Luxembourg, and the king of the Netherlands applied for aid to the five powers. It was ultimately found that the only way of arranging the difficulties between Holland and Belgium was a separation; but the five powers did not feel themselves competent, nor were they competent according to the treaties which governed the relations of the states of Europe, to deal with the question as regarded Luxembourg. In the progress of the negociation the Belgian government expressed a

strong desire that a portion of Luxembourg and Limbourg should form a part of Belgium; and the five powers had no objection to this, provided the consent of the Germanic confederation, which had full liberty to re-establish the grand duke in his rights, could be obtained. The diet gave permission, on condition that some equivalent portion of territory should be ceded by Belgium in return for what was detached from the duchy of Luxembourg. To these terms the Belgian government consented, and an arrangement was made, by which it was agreed that for the incorporation of a part of Luxembourg in the kingdom of Belgium an equivalent should be provided by the latter state. This arrangement formed part of the twenty-four articles; and it was perfectly true that these articles, as Mr. O'Connell had said, were accepted by Belgium, and not by Holland. When, however, these articles were incorporated into a regular treaty between Belgium and the five powers, then that treaty became a binding instrument on the contracting party: the five powers were entitled to keep Belgium to the terms of the treaty, and Belgium in turn was entitled to claim their observance of it. The Belgian government had, indeed, on various occasions appealed to the treaty as the charter of its rights; and it was preposterous that, after so regarding it for eight years, they should finally declare to all Europe, because it suited their convenience, that the fundamental articles of the treaty were of no obligation to them. His lordship concluded by saying that, so far from its being an injustice in the five powers to refuse to add Luxembourg to Belgium, it would have been an act of the grossest oppression if they had consented to make a violent seizure of that territory for the purpose of transferring it: all that was done was to leave the matter as it was settled at the congress of Vienna.

THE CORN-LAW QUESTION.

At this time a great many petitions had been presented to both houses of parliament on the subject of the corn-laws. On the 18th of February Lord Brougham moved that these petitions should "be referred to a committee of the whole house, and that evidence be heard at the bar." The Dukes of Buckingham and Richmond and Earl Stanhope opposed the motion; and Lord Melbourne thought that the plan proposed would have no other result than the obstruction of the business of the house, and to perplex and embarrass the question itself. The Duke of Wellington said that the proposed mode of inquiry was without a precedent, and contended that without protection agriculture could not prosper. The reduction of the duty even a trifle too much might involve the country in the utmost difficulty, by rendering the cultivation of the soil impossible, and thereby ruining a large class of industrious and at present happy people. The motion was negatived without a division.

The subject of the corn-laws was debated in the house of commons on the following day. Mr. Villiers moved, "that certain persons be heard at the bar of the house by their agents, witnesses, or counsel, in support of the allegations of the petition presented to the house on the 15th instant, complaining of the operation of the corn-laws." In support of this motion, Mr. Villiers considered at great length the effect of the corn-laws upon the manufactures and commerce of the country. Sir Francis Burdett objected to the course proposed; but, at the same time, he stated that it was his conviction that the landed interest, in which he was himself concerned, was

under erroneous impressions on the subject. The debate which followed brought out speeches from many of the men who afterwards took so prominent a part in promoting or opposing the repeal of the corn-laws—such as Mr. Mark Philips (member for Manchester), Lord Stanley, Lord Howick, and Sir Robert Peel. The first-named made a useful and practical speech; Lord Stanley an absurd one; Lord Howick was as capricious and crotchetty as on most other occasions; Sir Robert Peel repeated himself and other hack orators on the side of the protectionists. Mr. Villiers made a calm and effective reply, in which he especially directed his skill as a debater to the exposure of the fallacies of Sir Robert Peel, whose ignorance or partizanship he handled with a calm and dignified severity. On a division the motion was rejected by three hundred and sixty-one against one hundred and seventy-two.

THE AFFAIRS OF IRELAND DISCUSSED IN PARLIAMENT.

On the 1st of January an Irish nobleman, Lord Norbury, was savagely murdered. His lordship was shot within sight of his own house, in clear daylight, with many people at hand, and yet the assassin escaped with impunity. The occurrence was the more shocking, because the deceased nobleman was a most exemplary character both as a man and as a landlord. His lordship expired on the 3rd of January, after forty-three hours of suffering; and on the same day a notification to the magistrates was issued by the lord-lieutenant of the county, requesting their attendance on the 10th instant, to consider the measures necessary to be taken in consequence of the late outrage. This meeting was held, under the auspices of Lord Osmantown, at Tullamore, and in the course of it resolutions to the following effect were unanimously adopted:—“That it appears to this meeting, that property had its duties as well as its rights; that the answer conveyed to the magistrates of Tipperary by Mr. under-secretary Drummond has had the effect of increasing the animosities entertained against the owners of the soil, and has emboldened the disturbers of the public peace. That finding from the circumstances mentioned in the former resolutions that there is little room to hope for a successful appeal to the Irish executive, we feel it a duty to apply to the people of England, the legislature, and the throne, for protection. That the magistrates assembled are determined to co-operate with the government in any manner pointed out by her majesty’s ministers which may give the slightest hope of restoring tranquillity in this distracted country.” In the meantime the opposite party made efforts of counteraction. Mr. O’Connell was indefatigable in stirring up his Precursor Society and other similar machines of agitation. Festivals were even held in honour of the demagogue; and at one of these Mr. O’Connell actually asserted that the assassin of Lord Norbury had left on the soil where he had posted himself, not the print of a rustic brogue, but the impress of a well-made Dublin boot. By this and other insinuations, indeed, the arch-agitator directed the minds of the audience to the conclusion that the earl had met his death at the hands of one bound to him by the nearest of natural ties—his son.

The state of Ireland being such, it naturally became a subject for discussion in parliament. On the 7th of March Mr. Shaw moved for returns of the number of committals, convictions, inquests, rewards, and advertisements for the discovery of offenders in Ireland, from 1835 to 1839, in order to enable the house to form a

judgment with regard to the actual amount and increase of crime in that country. Lord Morpeth expressed his satisfaction at the course Mr. Shaw had taken; instead of appealing to parliament for a verdict of censure upon government, he had simply moved for papers. There could be no objection to the issue of any information respecting Lord Normanby's administration: he might, indeed, move for returns applicable to a period beyond the last four years, in the confidence that the late lord-lieutenant would have nothing to fear from the comparison. Mr. Colquhoun endeavoured to show, from a long enumeration of cases, that crime had been gaining ground under the system of agitation which prevailed, and which was connived at by the present government. Colonel Conolly, and Messrs. Villiers, Stuart, Litton, and Emerson Tennent, all urged the same serious charge against the Irish administration which had been made by preceding speakers, Mr. O'Connell, after delivering a violent speech, in which he was constantly interrupted, and in which he charged several members with coming to parliament for the sole purpose of villifying their native land, moved that after the word "Ireland" there be added the words, "also similar returns for England, Wales, and Scotland." The last speaker on this evening was Serjeant Jackson, who maintained that by almost every single exercise of patronage, and especially by the appointment of Lord Ebrington to the vice-royalty, government had favoured the cause of agitation. The debate was resumed on the 11th of March, when the house was addressed by Messrs. Lefroy, French, and Sir Charles Styles. As the latter gentleman was speaking the house was counted out, and the discussion, which had little reference to the motion, therefore dropped. The subject of the state of Ireland was introduced in the upper house on the 21st of March by Lord Roden, who moved for a select committee of inquiry into the state of Ireland since 1835, with respect to the commission of crime. His lordship, indeed, adopted the most inculpatory view of the question, and every circumstance in his delineation of the matter—the deeply-rooted ribbon conspiracy; the unredressed grievances of the persecuted Protestants at Achill, and the general insecurity of life and property, were, in his opinion, either created by the conduct of Lord Normanby, or had acquired an aggravated character under his auspices. In reply Lord Normanby vindicated his administration with very great ability. Lord Melbourne also ably defended the noble marquis. The Duke of Wellington and Lord Brougham offered an earnest and eloquent support to Lord Roden's motion. The two noble lords spoke as if they had had a previous concert and arrangement. This alliance of Lord Brougham with the Duke of Wellington did not silence Lord Plunkett. He begged to know what course Lord Brougham would pursue in the event of the motion being carried. Had he any measure of his own to propose, or was he willing to adopt the propositions of others? Was he willing to commit all the friends with whom he had hitherto acted, and to surrender all the principles and opinions which he had advocated throughout life? On a division, Lord Boden's motion was carried by a majority of sixty-three against fifty-eight: a result which gave great dissatisfaction to the ministers. On the day following, indeed, Lord John Russell gave notice of his intention to take the opinion of the house of commons on the government of Ireland in late years in the very first week after the Easter recess.

The vote of the house of lords also alarmed and gave umbrage to Ireland's agitators. Incensed by it, Mr. O'Connell crossed St. George's Channel as soon as the houses had arisen, in order to increase the turbulence of his country. Day after day was he to be seen on the corn exchange haranguing the multitude; on Sundays, after mass, he attended parochial meetings; and the columns of the newspapers were filled with the exercitations of his pen. On the 11th of April a grand meeting was held in the theatre-royal, to prepare petitions to the queen and the house of commons, declaratory of their confidence in the actual administration of Ireland. On this occasion Mr. O'Connell exerted all his eloquence to rouse the passions of his hearers, and their shouts told that he was but too successful. "Shout!" he exclaimed at the close of his harangue. The shout that that day emanated from that theatre would be heard in St. Stephen's, and it would cheer the heart of the queen at St. James's.

When the house of commons, resumed its sittings on the 8th of April, Lord John Russell gave notice of his intention on the 15th to propose the following resolution:—"That it is the opinion of this house that it is expedient to persevere in those principles which have guided the executive government of Ireland of late years, and which have tended to the effectual administration of the laws and the general improvement of that part of the United Kingdom." On the following day Sir Robert Peel gave notice that he should move an amendment on this resolution, and on the 12th the right honourable baronet brought forward the draught of his resolutions. They read thus:—"Resolved, that on the 13th day of March last, a motion was made in this house for the production of various documents connected with the state of Ireland, in respect to crime and outrage; including communications made to the Irish government relating to offences connected with ribbonism, and all memorials, resolutions, and addresses, forwarded to the Irish government by magistrates, or other official persons, in respect of crimes and outrages committed in Ireland, and the answers thereto. That the period included within the returns so called for extends from the commencement of the year 1835 to the present time; and that the motion made for the production of them was assented to by this house, no opposition to it having been offered to it on the part of her majesty's government. That on the 21st day of March last, the house of lords appointed a select committee to inquire into the state of Ireland since the year 1835, in respect to crime and outrage, which have rendered life and property insecure in that part of the empire. That, in consequence of the appointment of such committee by the house of lords, it has been proposed that this house should resolve, 'That it is the opinion of this house that it is expedient to persevere in those principles which have guided the executive government of late years, and which have tended to the effectual administration of the law, and the general improvement of that part of the United Kingdom.' Resolved, that it appears to this house, that the appointment of a committee of inquiry by the house of lords, under the circumstances, and for the purposes above-mentioned, does not justify her majesty's ministers in calling upon this house, without previous inquiry, or even the production of the information which this house has required, to make a declaration of opinion with respect to one branch of the public policy of the executive government, still less a declaration of opinions, which is neither explicit as to the principles which it professes to approve, nor definite as to the period to which it refers; and that it is

not fitting that this house should adopt a proceeding which has the appearance of calling in question the undoubted right of the house of lords to inquire into the state of Ireland in respect to crime and outrage, more especially when the exercise of that right by the house of lords does not interfere with any previous proceeding or resolution of the house of commons, nor with the progress of any legislative measure assented to by the house of commons, or at present under its consideration." The adroitness with which these resolutions were framed are apparent, and needs no comment; they completely evaded all the difficulties of the case. The situation of the ministers was also rendered more difficult by the conduct of the radical section of the house, whose tactics were called into play on this occasion. They felt themselves bound, indeed, to support Lord John Russell's motion, but then they wished him to go further. No sooner had Sir Robert Peel sat down, indeed, than Mr. Duncombe stated that in the event of the noble lord's resolution being-carried, it was in his contemplation to move an addition to it in the following terms:—"And that it is expedient also to effect such further reforms in the representation of the people in parliament as would conduce to their contentment, and to the security and welfare of the kingdom at large."

On the 15th of April Lord John Russell moved his long-announced resolution of confidence on the part of the house in the executive government of Ireland. His lordship dwelt at great length on the constitutional right of the lords to make inquiry into the state of Ireland and the conduct of its government. He did not deny that right; but considering such a measure under all its circumstances, the indiscriminate vehemence of the inculpations allowed to circulate, the limitation of time, the very name of the mover, he could not but feel that he was called upon to demand from the house of commons a definite opinion upon the conduct of the Irish administration. Sir Robert Peel contended that the noble lord's resolution was partial and unintelligible. Mr. Spring Rice, in reply, contended that the vote of the house of lords was a vote of censure upon government; and he remonstrated against the unfairness of making the existence of crime in Ireland a charge against the present government, when nobody ever thought of censuring preceding administrations on account of turbulence and outrages in Ireland. At the close of Mr. Spring Rice's speech the debate was adjourned, and subsequently two adjournments took place. In the course of the debate ministers were supported by Messrs. Smith O'Brien, Bellew, Henry Grattan, Grote, Edward Lytton Bulwer, Hume, the O'Connor Don, Sir William Somerville, and others, and opposed by Messrs. Lascelles, Sidney Herbert, Lucas, Shaw, Colonel Conolly, Sir James Graham, and others. Mr. Shiel delivered a long and eloquent speech in defence of Lord Normanby. The debate was closed by Mr. O'Connell, whose statements, as usual, were more distinguished for their animated delivery than their accuracy. On a division Sir Robert Peel's amendment was negatived by three hundred and eighteen against two hundred and ninety-six; and Mr. Duncombe's rider by two hundred and ninety-nine against eighty-one.

IRISH MUNICIPAL CORPORATIONS BILL.

On the 16th of February Lord Morpeth again moved for leave to bring in a bill for the regulation of municipal corporations in Ireland. It has been seen that the main

point of dispute on this subject between the two houses was the amount of the franchise; the house of lords contending that it should be acquired by the occupation for twelve months of a tenement of the value of ten pounds, to be made up of the sum at which it was rated to the relief of the poor; and the house of commons, that the occupation of a tenement rated at the net annual value of eight pounds for six months should confer the qualification in question. It was proposed to retain this last franchise in the present measure; and the only material difference between the present and the former bill consisted in a provision which was now made for the eventual adoption of the English franchise. Lord Morpeth proposed that in whatever town, otherwise competent to receive such institutions, the poor-law act should have been in operation for three years, all persons resident for that period, and rated to any amount, should be entitled to vote for the election of municipal officers. The whole of schedule A, containing the towns in which corporations were to be established, remained the same; but with regard to schedule B, which enumerated those towns to which municipal institutions might be granted on petition of the inhabitants, it was proposed that, without the signatures of an absolute majority, the crown might establish corporations in those places as well as in any other town of three thousand inhabitants, in which there might be a number of persons occupying premises at not less than £4 per annum, sufficient to make up a constituency. On the second reading of the bill it met with a stern opposition of the conservative party; but it was eventually carried through by the small majority of twenty-six. The bill was committed _pro-formâ_ on the 19th of April; but many delays took place in order that thirty-four clauses, which should have made part of the original measure, should be included. On the 4th of July, however, the house went into committee upon clause twenty, which referred to the value of the franchise. An attempt was made by Mr. Shaw to introduce a £10 qualification, which had been the ultimatum of the Conservatives in the last session: but after a short debate the original question was carried by one hundred and fifty-four against fifty-four. Some other minor amendments were subsequently proposed, but they were negatived; and the bill was finally carried in the commons by a majority of ninety-seven against seventy-six.

On the 22nd of July, the Irish Municipal Corporations bill was read a second time in the house of lords. On the 25th of July, before the house went into committee, Lord Lyndhurst gave notice of the amendments which he intended to move in the course of the evening, and of his intention to vote against the third reading, if the bill should come unaltered out of the committee. The only amendment of the noble lord which gave rise to any discussion after their lordships went into committee was for raising the qualification from £8 to £10. This was objected to by Lord Melbourne, who said, that he could not but think that their lordships were acting no very worthy part, in raising difficulties in the way of what they all considered desirable—the settlement of the question. The Duke of Wellington administered a severe rebuke to his lordship for uttering such a sentiment; and on a division the amendment was carried by a majority of ninety-three against forty-three. A number of minor amendments were also made in conformity with Lord Lyndhurst’s suggestions; and on the 5th of August the bill was read a third time, and passed.

Lord John Russell moved the order of the day, for the consideration of the lords' amendments, on the 12th of August; on which occasion he stated that it was not advisable, in his opinion, to take objection to the bill on the question of privilege, on account of certain clauses transferring certain fiscal powers from the grand-juries to the new town-councils, which had been struck out in the other house, and to send it back to the lords. The only course to pursue would be to bring in a new bill either now or at the beginning of the next session. He moved, therefore, that the amendments be taken into consideration that day three months, in the hope that he might be able finally to adjust the question. This motion was agreed to.

On the 6th of August Lord Brougham brought forward several resolutions on the administration of justice in Ireland under the Marquis of Normanby. His lordship's remarks were chiefly confined to Lord Normanby's public measures; and the debate in general was conducted in a tone friendly to the noble marquis, even by the opposite party. At the same time the resolutions were carried by a majority of eighty-six against fifty-two.

PROCEEDINGS IN PARLIAMENT RESPECTING JAMAICA.

It has been seen that in the earlier part of the preceding year the agitation on the subject of West India slavery had become general throughout the kingdom, and that it gave rise to discussion in parliament. An important bill was passed, entitled "An act to amend the act for the abolition of slavery." Many salutary provisions were made in this instrument for the further protection of the apprentices; and in order to serve the execution of such regulations of the former enactment as had been disregarded by the planters. This act was promulgated in Jamaica by the governor on the 1st of June; and on the 5th of the same month he convened the legislature of that colony. In his speech Sir Lionel Smith informed the assembly that he had called the house together to take into consideration the state of the island, and to recommend the early and equal abolition of apprenticeship for all parties. The assembly entered a warm remonstrance against the abolition amendment act; but nevertheless on the 16th of June the governor gave the royal assent to an act for the entire abolition of prædial apprenticeship from the 1st of August, 1838.

On the arrival in England of the news of this voluntary abandonment on the part of the planters of the remaining term of apprenticeship. Lord Melbourne presented to the house of lords an important bill, founded on the report of Captain Pringle, empowering her majesty in council to make rules for the government of the West India prisons, to appoint inspectors, and regulate other matters of necessary discipline. This bill was sent out and promulgated by the governor in a proclamation affixed to the doors of their house about six weeks before the meeting of the assembly. That meeting took place on the 30th of October, and their very first procedure was to pass four resolutions condemnatory of Lord Melbourne's bill; complaining of the violation of their rights by the parliament of Great Britain; asserting that as a body they (the assembly) had ceased to exist for any useful purpose to the people whom they represented; and that therefore they would abstain from the exercise of any legislative function, excepting such as might be necessary to preserve inviolate the faith of the island with the public creditor, until her majesty's

pleasure should be known, whether her subjects of Jamaica, now in a state of freedom, should henceforth be treated as subjects, with the power of making laws for their own government, or as a conquered colony. Sir Lionel now prorogued the assembly for a few days; but when they again met they asserted their determination to adhere to their resolutions, and the result of their contumacy was the final prorogation of their house.

In consequence of these transactions, on the 9th of April Mr. Labouchere introduced a bill to suspend the existing constitution for five years. In the meantime it was proposed to make provision for the government of that colony by investing it _pro tempore_ in the hands of a governor, and a council augmented by the accession of three persons, who would be sent from England as commissioners, especially qualified by experience to assist in the consideration of some of the more important topics to which their early attention would be directed, as the improvement of the negroes, the poor-laws, and prison discipline. This interval, it was said, would give time for the enactment of such laws as were called for by the transition state of the colony, and the government afterwards proposed to restore the ancient constitution, subject to the requisite modifications. The introduction of this measure was not opposed by the Conservatives. The bill arrived at the second reading on the 23rd of April, when Sir Robert Peel stated that he would again allow it to be read _pro formâ_. Counsel would then be heard at the bar against the measure: he was even content to have the bill committed, and take the discussion on the question that the speaker do now leave the chair. At the same time, before they proceeded to suspend the constitution of Jamaica for five years, and to vest so great an authority of taxation in an unpopular government, he could wish to give to the assembly the power of reconsidering their course, and returning to their duties. If the house of assembly should still adhere to their refractory courses, he was disposed to confide to ministers the power of carrying on the government for a time, until parliament should decide otherwise; or if it could be further shown that public business would be prejudiced by such delay, he would, make no more opposition to the bill. Counsel were then heard; the cause of the colony being pleaded by Sergeant Mereweather and Mr. Burge, the accredited agent of the colonies. The debate on the question was opened on the 3rd of May, when Sir Robert Peel expressed his disappointment that it had not been found practicable to come to some arrangement with regard to the government of Jamaica without any party conflict, or even any serious division on the course to be pursued. He thought that the temporary abrogation of a popular form of government was by no means desirable. Mr. Labouchere maintained that the result of the great experiment of emancipation would depend on the fate of this bill. The only chance of securing the investment of English capital, and ensuring success to the experiments to be tried of cultivating the estates by free labour, lay in the timely introduction of proper regulations. It would be vexatious if, after all, the negroes should take to squatting, and pass their lives in indolence; but half of the good work would have been achieved until the black was raised to the condition of a free and laborious citizen. As matters stood, the negroes refused to enter into contracts; the only method for obtaining from the black population the continuous labour which was notoriously indispensable for the cultivation of sugar, was to induce them to enter

into an agreement to work uninterruptedly for a stipulated sum of money. So arbitrary and partial, however, was the power assigned by the present law of contract, that the negro was reluctant to engage on such conditions. This called for alteration; and so likewise did the law relating to the militia, as well as the vagrancy law and the constitution of the courts of justice. It would also be advisable to introduce some measure of relief for the poor; but nothing could be effected in the present discontinuance of all legislation. Mr. Labouchere added, that the present measure, though avowedly an arbitrary one, would, after all, only place Jamaica on the same footing with the other crown colonies, who were administered by a governor and council. He concluded by proposing two years and a half instead of five as the shortest interval within which the measures in contemplation could be prepared. Mr. Godson opposed the measure; and Mr. Charles Buller delivered a clever speech in its support. Mr. Hume expressed his reluctance to separate himself from the government on this question; but he could not vote in favour of such injustice. Sir George Grey vindicated the measure, noticing a variety of instances in which the assembly had eluded the recommendations of government in favour of the negroes, and referring, in proof of his assertion, to several conservative authorities.

The house then adjourned; and the debate was opened on the following Monday by Mr. Maclean. The bill on this night was supported by Sir Eardley Wilmot, and Messrs. Warburton and O’Connell; and opposed by Messrs. Grote, Gaily Knight, Goulburn, Gladstone, and Lord Stanley. The debate was closed by Lord John Russell, who enumerated a short summary of the arguments for the bill, and declaimed against those of his usual supporters who were about to desert him. On a division the measure was carried by a majority of five only, the numbers being, in favour of the bill, two hundred and ninety-four; against it, two hundred and eighty-nine.

RESIGNATION OF MINISTERS, AND FAILURE OF SIR ROBERT PEEL TO FORM A NEW ADMINISTRATION, ETC.

The result of the debate on the Jamaica suspension bill was followed by the resignation of the ministers. On the 7th of May the leading members of the administration in both houses declared their inability to carry on the government with advantage to the public service, and that they had in consequence tendered their resignations, which her majesty had graciously accepted. After the lapse of a week the house of commons again met, when Lord John Russell stated, that since he last addressed them Sir Robert Peel had received authority from her majesty to form a new administration; and that the attempt of the right honourable baronet having failed, her majesty had been graciously pleased to permit that gentleman to state the circumstances which had led to that failure. In explanation, Sir Robert Peel said that her majesty had invited the Duke of Wellington to assist her in the formation of a new government; and that his grace had informed her that, in his opinion, the chief difficulties a government would have to encounter would be in the house of commons; and for that and other reasons the noble duke had advised her majesty to send for him as the person best qualified to undertake the duties of prime minister. Her majesty accordingly sent for him, and when he waited on her, he stated his sense of the difficulties a new government would have to encounter; but that, having been a

party to the vote of the house which led to those difficulties, nothing should prevent him from tendering to her majesty every assistance in his power. Subsequently he submitted the following list of names to her majesty for approval in the formation of the new cabinet:—The Duke of Wellington, Lords Lyndhurst, Aberdeen, Ellenborough, and Stanley; Sirs James Graham, and Henry Hardinge, and Mr. Goulburn. Sir Robert proceeded to state that no difficulties arose to lead to his relinquishing to form a new administration until Thursday; and that difficulty arose, he said, exclusively from that portion of the household which is filled by the ladies in her majesty's service. On the Wednesday night previous to this event, he had stated to those whom he proposed to submit to her majesty as ministers, the course he intended to pursue with respect to the household. He had little considered the subject; and with regard to the female part of it, he scarcely knew of whom it consisted. He took the red book in his hand, however, and there saw the different appointments. He then stated that with reference to all the subordinate appointments below the rank of a lady of the bedchamber, he should propose no change to her majesty; and that with respect to the superior class he took for granted they would relieve him from any difficulty, by at once relinquishing their offices. If such offices, however, should not be voluntarily relinquished, he gave it as his opinion that they should be subject to some change, although in some instances the absence of all political feeling might render any such change unnecessary. On the Thursday he saw her majesty, when he made a verbal communication to such an effect. He would not enter into the precise nature of this communication, but simply read two letters which had subsequently passed: one, conveying her majesty's impressions, and the other his own. These letters read thus:—

"_Buckingham Palace, May 10th_, 1839.

"The queen having considered the proposal made to her yesterday by Sir Robert Peel, to remove the ladies of her bedchamber, cannot consent to adopt a course which she conceives to be contrary to usage, and which is repugnant to her feelings."

"_Whitehall, May 10th_, 1839.

"Sir Robert Peel presents his humble duty to your majesty, and has had the honour of receiving your majesty's note of this morning. In respectfully submitting to your majesty's pleasure, and humbly returning into your majesty's hands the important trust which your majesty had been graciously pleased to transmit to him, Sir Robert Peel trusts that your majesty will permit him to state to your majesty, his impression with respect to the circumstances which have led to the termination of his attempt to form an administration for the conduct of your majesty's service. In the interview with which your majesty honoured Sir Robert Peel yesterday morning, after he had submitted to your majesty the names of those whom he proposed to recommend to the principal executive appointments, he mentioned to your majesty his earnest wish, to be enabled by your majesty's sanction, so to constitute your majesty's household that your majesty's confidential servants might have the advantage of a public demonstration of your majesty's full support and confidence; and that at the same time, as far as possible consistently with that demonstration, each individual appointment in the household should be entirely acceptable to your majesty's

personal feelings. On your majesty expressing a desire that the Earl of Liverpool should hold an office in the household, Sir Robert Peel requested your majesty's permission at once to offer to Lord Liverpool the office of lord-steward, or any other which he might prefer. Sir Robert Peel then observed, that he should have every wish to apply a similar principle to the chief appointments which are filled by the ladies of your majesty's household: upon which your majesty was pleased to remark that you must reserve the whole of these appointments, and that it was your majesty's pleasure the whole should continue, as at present, without change. The Duke of Wellington, in the interview to which your majesty subsequently admitted him, understood that this was your majesty's determination, and concurred with Sir Robert Peel in opinion, that, considering the great difficulties of the present crisis, and the expediency of making every effort in the first instance to conduct the public business of the country with the aid of the present parliament, it was essential to the success of the commission with which your majesty had honoured Sir Robert Peel, that he should have that public proof of your majesty's entire support and confidence, which would be afforded by the permission to make some changes in that part of your majesty's household, which your majesty resolved on maintaining entirely without change. Having had the opportunity, through your majesty's gracious consideration, of reflecting upon this point, he humbly submits to your majesty that he is reluctantly compelled, by a sense of public duty and of the interest of your majesty's service, to adhere to the opinion which he expressed to your majesty. He trusts he may be permitted at the same time to express to your majesty his grateful acknowledgments for the distinction which your majesty conferred upon him, by requiring his advice and assistance in the formation of an administration, and his earnest prayers that whatever arrangements your majesty may be enabled to make for that purpose, may be most conducive to your majesty's personal comfort and happiness, and to the promotion of the public welfare."

After reading these letters, Sir Robert Peel proceeded to notice certain misrepresentations with regard to his conduct in this affair, and to vindicate his policy in requiring the change alluded to in those letters. Lord John Russell replied at great length, and in reference to the point which proved a stumblingblock to Sir Robert Peel in his efforts to form an administration, said, that her majesty, after relating all the circumstances, was pleased to ask him whether he thought she was justified in making the refusal of a change in her household to the required extent? His lordship said, he replied that he thought her majesty was justified; and then she was pleased to observe, that as in the exercise of the powers of the crown she had hitherto given her support to the administration, she hoped I would consider myself bound now to support her majesty in return. His lordship then proceeded to state that on the next day a cabinet was held in Downing-street, at which her majesty's confidential servants having taken into consideration the letter addressed by her majesty to Sir Robert Peel, and the reply of the right honourable baronet, were of opinion that for the purpose of giving to the administration that character of efficiency and stability, and those marks of the constitutional support of the crown, which are required to enable it to act usefully to the public service, it is reasonable that the great officers of the court, and situations held in the household by members

of parliament, should be included in the political arrangements made in a change of the administration; but they were not of opinion that a similar principle should be applied or extended to the offices held by ladies in her majesty's household. Lord John Russell concluded by saying that he conceived that those who thought her majesty justified in what she had done, should not refuse to assume the responsibility which belongs to their opinion; and that they should neither conceal nor evade the avowal of it, but should trust to the opinion of parliament, and of the country as to the result. In reply Sir Robert Peel said that Lord John Russell had relieved him from the greatest load of anxiety he had ever suffered under during his whole life; and as there was no important difference in their explanations, he thought it would be more respectful to her majesty to let the matter rest where it was. On the following evening a supplementary explanation of these matters was given in the lords; but as it would be mere repetition, it is not necessary to detail any portion of the speeches delivered. In the end the cabinet was reconstructed, and the first act of the house of commons, when it again met, was to elect Mr. Shaw Lefevre to the office of speaker, in the room of Mr. Abercrombie, who had three weeks previously declared his intention of resigning. Mr. Goulburn was nominated by the Conservatives in opposition to Mr. Shaw Lefevre; but the latter gentleman was elected by a majority of three hundred and seventeen against two hundred and ninety-nine. Mr. Shaw Lefevre took the chair accordingly.

NATIONAL EDUCATION.

Since the year 1833 parliament had granted annually the sum of £20,000 for the purposes of education. This money had been equally divided between the National Society and the British and Foreign Bible Society. Government, however, were not satisfied with merely asking an increase; they required liberty to change entirely the mode of its distribution. Their views on this subject were first made known to the house on the 12th of February, when Lord John Russell, in presenting certain papers connected with education, gave an outline of his views upon it, and stated the determination of himself and colleagues respecting it. His lordship proposed that the president of the council, and other privy-councillors, not exceeding five, should form a board for the consideration of the manner in which the grants made by parliament should be distributed. He further stated that the first object of such a board should be the establishment of a good normal school; and, in order to make that as perfect as possible, attention should be mainly directed to four objects—religious instruction; general education; moral training; and habits of industry, applied in learning some trade or profession. This brief outline was regarded with various feelings by the house and the public. Sir Robert Inglis confessed the noble lord had proposed to do less evil than he expected; while Mr. Wyse complained that he proposed much less good than was hoped for. The manner in which this step was followed up by the government subsequently was unfolded in a minute of the privy-council. This minute recommended that the sum of £10,000 granted by parliament in 1835 towards the erection of normal or model schools, should be given in equal proportions to the National Society and the British and Foreign School Society; and that the remainder of the subsequent grants of the years 1837 and 1838 yet unappropriated, any grant that may be voted in the present year, be chiefly applied in aid of subscriptions for

buildings; and, in particular cases, for the support of schools connected with these societies. The report further stated, that the committee did not feel themselves precluded from making grants in particular cases which shall appear to them to call for the aid of government, although the application may not come from either of the two mentioned societies. The opinion of the committee, it was stated, was that the most useful applications of any sums voted by parliament, would consist in the employment of those moneys in the establishment of a normal school, under the direction of the state, and not placed under the management of a voluntary society. Finally, the committee recommended that no further grant be made now or hereafter for the establishment or support of normal schools, or of any other schools, unless the right of inspection be retained, in order to secure a conformity to the regulations and discipline established in the several schools, with such improvements as may from time to time be suggested by the committee. The report added, that a part of any grant voted in the present year might be usefully applied to the purposes of inspection, and to the means of acquiring a complete knowledge of the present state of education in England and Wales. The day after these resolutions appeared, Lord Ashley moved a call of the house for the 14th of June. This motion was seconded by Lord John Russell, who embraced the opportunity of warning the members against the petitions which had been presented against the ministerial scheme. Great error and misrepresentation, his lordship said, prevailed on this subject throughout the country. At the same time he stated that government would not persist in their proposal to found a normal school. His lordship concluded by some remarks on the merits of the National and British and Foreign School Society; and by stating that he should be ready to go into the report of the committee of the privy-council, and should also propose that the vote of £30,000, of which he had given notice, should be divided as it hitherto had been, between the two societies. Lord Stanley objected to the proposition for giving a direct control over the moral and the religious education of the people to a board or committee exclusively political in its character, and having no fixed principle of action. His lordship also objected to the plan for giving a secular rather than a religious education; contending that schoolmasters entrusted with the instruction of youth should be of sound doctrine. He concluded by moving an amendment to this effect, “That an address be presented to her majesty to rescind the order in council for constituting the proposed board of privy-council.” Lord Morpeth said that he conceived that the speech of Lord Stanley went to this extent—to separate by a specific vote of the house the executive government of the country from all superintendence and control over the general education of the people. He combated this notion at considerable length; arguing that so long as the state thought proper to employ Roman Catholic sinews, and to finger Unitarian gold, it could not refuse to extend to those by whom it so profited the blessings of education. Lord Ashley said that he considered the scheme propounded to the house to be hostile to the constitution, to the church, and to revealed religion itself, although he did not mean to assert it was unconstitutional. The remainder of the debate was conducted by Mr. Wyse, Mr. D’Israeli, Sir Robert Inglis, Mr. O’Connell, Mr. Gladstone, and Sir Robert Peel. The house divided on the original question, that the order of the day for a committee of supply be read, which was carried by a majority of two hundred and eighty against two hundred and seventy-five. In

accordance with this vote Lord John Russell, on the 24th of June, moved that the house should resolve itself into a committee of supply, in which committee, after recapitulating many of the arguments previously urged by himself and other members, he proposed that £30,000 be granted by her majesty for public education in Great Britain for the year 1839. Lord Mahon said, he felt it his duty to meet the motion with a direct negative. The debate which followed was chiefly remarkable for an eloquent speech delivered by Mr. Shiel in support of the motion. After a few words from Mr. Goulburn in opposition to the grant, the committee divided, and Lord John Russell's proposition was carried by a majority of two only, the numbers being, for the grant, two hundred and seventy-five; against it, two hundred and seventy-three.

The subject of national education was introduced in the lords on the 5th of July, by the Archbishop of Canterbury; who, after defending the clergy from the attacks made on them by certain parties in regard to this government scheme, and entering into some details of the progress of education in this country, moved a series of resolutions condemnatory of the proposed system of education; and the resolutions were carried by a majority of two hundred and twenty-nine against one hundred and eighteen.

In consequence of this majority the lords went in a body to her majesty to offer their remonstrance against the proposed alteration in the manner of distributing the educational grant.

At a later period of the session Lord Brougham brought forward his plan for educating the people; but its merits were not canvassed by the house, and the consideration of it was adjourned till next session.

AFFAIRS OF CANADA.

On the 11th of February Lord Melbourne laid the report of Lord Durham, and other papers, on the table of the house of lords, expressing a hope at the same time, that before the Easter recess he should be enabled to introduce a measure for the purpose of putting a speedy end to the discontents in that part of the empire. This report had appeared in the columns of the _Times_ newspaper some days before it was presented to either house of parliament; in allusion to which unusual circumstance, Lord Durham said he deeply regretted the premature publication of it. His subsequent statement, however, proved that it could not have been a matter of surprise to his lordship. There had been, he said, an understanding with the ministry that the document should be printed before the meeting of parliament, in order to save time, and accordingly two thousand copies were prepared; and he had himself half a dozen for circulation among his private friends. It would appear from this report that the chief cause of all the troubles that had disturbed Lower Canada was to be found in the spirit of exasperation that had grown up between the two races by whom it was peopled. It was possible, it stated, that under a better system of management this temper would never have been called forth, and that the present disparity between the numbers of the two races would not have existed. During the eighty years that had elapsed since the conquest of Canada, the French inhabitants had increased from sixty thousand to four hundred and fifty thousand souls, while the

English settlers amounted to no more than a fourth of the entire population, notwithstanding the great influx of emigrants which had taken place between the years 1829 and 1837. Another source of evil pointed out by Lord Durham in his report was the lack of education in the colonies. According to returns laid before parliament in 1835, there were in Lower Canada, besides several Roman Catholic colleges, and a number of private seminaries for the higher branches of education, two grammar-schools, one at Quebec and the other at Montreal, and in the three districts of Quebec, Montreal, and Three Rivers, thirty-seven free-schools, with nearly two thousand scholars. In addition to these there were established, under a provincial act of parliament, one thousand one hundred and seventy-one elementary schools, with thirty-seven thousand six hundred and fifty-eight scholars, distributed through the colonies, and placed under the superintendence of trustees annually elected by the inhabitants. The utility of these schools, however, may be estimated by this passage from Lord Durham's report:—"It came to my knowledge that out of a great number of boys and girls assembled at the school-house door of St. Thomas, all but three were admitted upon inquiry to be unable to read; yet the children of this large parish attend school regularly, and make use of books. They hold the catechism-book in their hands as if they were reading, while they only repeat its contents, which they know by rote." The only exception to this state of things made by Lord Durham was in favour of the Catholic clergy, who were represented by him as a respectable and well-conducted class of men, and well-disposed towards the government. The report further stated that there was no combination between the two races for public objects. All public meetings, no matter for what purpose they were called, were attended exclusively by one or the other of the races. They could not harmonize even in associations of charity; and the only public occasion on which they met was in the jury-box, and then they met only to obstruct justice. With such feelings existing in the colony, there could be no wonder that insurrections and tumults abounded.

No discussion arose on the presentation of Lord Durham's report to the lords. On the 15th of February the Duke of Wellington moved an address to her majesty for copies of the correspondence of Sir F. Head with her majesty's government on the affairs of Upper Canada; and also for copies of the correspondence of Sir J. Colborne and her majesty's government relative to the establishment of rectories in Upper Canada. Viscount Melbourne said he was ready to produce such portions of the correspondence as appeared to be necessary for the defence of Sir F. Head, or which afforded general information; he further suggested that the motion should be for "copies or extracts" as to the correspondence of Sir J. Colborne relative to the establishment of rectories. The Duke of Wellington, in reply, intimated that, although he thought the whole correspondence ought to be produced, he would alter his motion according to the suggestion of the noble viscount. The Earl of Aberdeen said it was impossible for the house to legislate upon the affairs of Canada without being in possession of this correspondence; and the Earl of Wicklow contended that there should be superadded any report given by Lords Gosford or Aylnaer. On the 19th of February Lord Winchilsea further moved, that a humble address be presented to her majesty, praying that she would be graciously pleased to order to be laid upon the table of the house any correspondence that had passed between her Majesty's

government and Lord Durham, relative to the appointment of Mr. Turton as his lordship's secretary. This was a topic which had excited severe animadversion in parliament, as well as on the part of the public press; but it does not appear that government had anything to do with it, or that there were any papers to be produced. In the desultory conversation which followed, indeed, Lord Durham took the whole responsibility of the appointment on himself, and insisted that he was justified in making that appointment. He had known Mr. Turton from his earliest infancy; and he knew also his high professional reputation. He had been employed as advocate-general in India, by Lords Combermere and Amherst, and had discharged his office so much to the satisfaction of the governor and council in India, that they voted him five thousand sicca rupees, and a vote of thanks for his conduct. It was not to be endured, therefore, that he was to be taunted for appointing to this trumpery office a man who had previously filled the highest judicial functions in India. Lord Durham concluded by threatening that if this matter were proceeded in further by parliament he would not rest until he had obtained an inquiry into the case of every public man who had received official employment after having been convicted of the same kind of immorality as Mr. Turton.

On the 3rd of May Lord Melbourne presented the following message from the queen to the imperial parliament:—"Her majesty thinks it proper to acquaint the house of lords, that it appears to her majesty that the future welfare of her majesty's subjects in Upper and Lower Canada would be promoted by the union of the said provinces into one province for the purpose of legislating, from and after the period to be fixed by parliament. Her majesty therefore recommends it to the house, to consider such measures as may be submitted to them for that purpose. Her majesty is persuaded that the house of lords will be careful to combine a due regard for the peace and security of these important provinces with such provisions as may be conducive to the welfare of England, and the permanent freedom and prosperity of her majesty's North American provinces." The idea of uniting the two provinces originated in Lord Durham's report, in which he gave several cogent reasons for such a measure. The subject was taken into consideration on the 3rd of June, when Lord John Russell said it became his duty to call upon the parliament to lay the foundation of a permanent settlement of the affairs of Canada. In his speech, his lordship recapitulated the various circumstances connected with the subject of Canadian affairs. With reference to the recommendation contained in her majesty's message, Lord John said that the act of 1791 was founded on two principles: first, that by dividing the province into two the French population might remain in that portion called Lower Canada, whilst British emigrants would have free scope for their industry, and power to establish their own institutions and customs, in the other portion of the province, which was to be called Upper Canada. Another reason was, the French inhabitants being very loyal to the crown, of very simple habits, and possessing institutions to which they were attached, it was advisable that means for maintaining those institutions should be reserved to them. His lordship acknowledged that there might have been at the time reasons for introducing the constitutional act of 1791, but argued at great length that it was a mistaken act of policy. The grievances which had arisen out of it were manifold; and as a remedy for

them he proposed the re-union of the two provinces. Other remedies had been suggested, but his lordship thought that they were not sufficient to meet the exigencies of the case. In support of his own proposition his lordship stated that there were many persons in Lower Canada anxious for such a union, and that the legislature of Upper Canada had decided in favour of the plan. The noble lord concluded by moving these resolutions:—I. “It is the opinion of the house that it is expedient to form a legislative union of the provinces of Upper and Lower Canada, on the principles of a free and representative government, in such a manner as may most conduce to the prosperity and contentment of the people of the united provinces. II. That it is expedient to continue until 1842 the powers vested in the governor and special council of Lower Canada, by an act of last session, with such alteration of those powers as may be deemed advisable.” Mr. Hume protested against this plan, and Mr. Goulburn moved the adjournment of the house. Sir Robert Peel expressed his surprise to find that it was not the intention of her majesty’s government to propose any legislative measure in the present session, having reference to Canada. His parliamentary experience was entirely against resolutions pledging the house to any particular course. The debate was adjourned to the following Monday, when Lord John Russell stated his intention of withdrawing his resolution, pledging the house to the abstract principle of a union of Upper and Lower Canada; giving as his reason for this change in the policy of government, the strong protest against such a measure on the part of the commons house of assembly of Upper Canada; a protest which was contained in a report drawn up by a select committee of that body and presented to her majesty. With reference to the second resolution, Lord John Russell proposed the continuation for three more years of the power now placed in the hands of the governor and special council of Lower Canada. On the resumption of the debate on the 13th of June, Lord John Russell moved for the withdrawal of the first resolution. He was still of opinion, he said, that at some future period such an union should be carried into effect, but in the meanwhile he thought it necessary that certain exciting topics should be disposed of by the legislature. Accordingly he proposed to introduce a measure for the continuance of the act of last session, for the suspension of the constitution until 1842, and at the same time amending that act in several particulars. The amendments proposed by his lordship were the alteration of the clause authorizing the governor to suspend the _habeas corpus_ act; the alteration of the clause known as Sir William Follett’s, limiting its operation to measures affecting the clergy, on the tenures of land; and the introduction of a new clause, giving power to impose rates and taxes not to be paid into the public treasury, but to be applied to such local purposes as watching and the roads. With regard to the bill for the union of the provinces, his lordship said, that he thought it might be necessary to change some of its provisions. The bill he would ask to introduce provided for the establishment of a central district at Montreal and its neighbourhood, where the meetings of the assembly should be held. The other parts of Upper and Lower Canada he proposed to divide into two districts. There would then be a central district, and four other districts. Each of these was to be subdivided into nine other districts, so that supposing each division to return two members, there would be ninety members for the electoral divisions. In addition to these, his lordship proposed that the four largest towns should return two members, making in

the whole ninety-eight. After a brief discussion, leave was given to bring in the bill, and to amend the act of last session, appointing a provisional government.

It was not until the 4th of July that Lord John Russell moved the order of the day for the second reading of this bill. The discussion which followed was a mere repetition of former debates. The bill was then read a second time.

Lord John Russell moved the order of the day forgoing into a committee of the whole house on the 11th of July, when Sir William Molesworth moved a resolution, the object of which was to declare on the part of the house, that considerations of humanity, justice, and sound policy demanded that parliament should apply itself without delay to legislate for the permanent government of the Canadas.

The debate which followed threw no new light upon Canadian affairs, or the policy which ought to be pursued towards the people of the Canadian provinces. The discussions, however, demonstrated the incapacity of the government to deal with matters of such magnitude, and the desire of the opposition to sacrifice justice and expediency to party spirit. The house divided, and the original motion was carried by a majority of two hundred and twenty-three against twenty-eight.

In the committee Mr. Hume objected to the first clause, which appertained to the increased number of councillors, as only making an addition to despotism; but the clause was carried by a large majority. On the second clause being moved, Lord Stanley objected to it as enlarging the extraordinary powers already granted to the governor and council; but, after much discussion, it was carried by a majority of one hundred and seventy-six against one hundred and fifty-six. On the 4th clause being proposed, Sir Robert Peel moved an amendment to prevent any alteration in the law of tenures, which was agreed to; and the remaining clauses were then passed, and the report of the committee ordered to be received on the following Monday.

This bill was brought forward in the house of lords on the 20th of July, by the Marquis of Normanby, who, in introducing it, confined himself to its immediate subjects, and to an explanation of its intentions. The bill, as amended by the commons, was carried. Thus ended all attempts to legislate for the Canadas in the session of 1839: the great expectations formed at the commencement of the session on this important subject were doomed to be disappointed in the results. Conversations of a personal nature took place, but neither party approached the question as became the legislators of a great and mighty empire. Government, it is true, intimated that they had framed a plan for the union of the two provinces, but it was scarcely intimated before it was abandoned. Finally came forth the fragment of a measure which had not the confidence of either party, but which was nevertheless passed into a law.

THE SECOND JAMAICA BILL, ETC.

On the 30th of May Mr. Labouchere brought forward a second measure relative to the affairs of Jamaica. In the newly-proposed bill ministers had resolved to call together once more the colonial assembly, in order to allow them what had been termed a _locus penitentio_. This assembly represented the necessity of ameliorating the existing laws regarding vagrancy, the relation between master and servant, the

state of the militia, and the electoral qualification. At the same time no fewer than seventeen annual acts of importance had been suffered by the assembly to expire, although in many cases the peace of the colony depended upon them. The first clause of the bill related to those matters which did not fall under the head of expired enactments, as vagrancy, contracts, and squatting. With reference to these questions, orders had already been transmitted to the crown colonies, and were now in successful operation. By the bill, therefore, the assembly of Jamaica would be referred to them, with injunctions to legislate in conformity with the spirit of those provisions; and should they fail to do so, it would be competent for the governor, with the aid of the council, after a certain interval, to make tire requisite laws, _mutatis mutandis_, upon the models which had before been indicated. The object of the second clause was to leave a certain time to the assembly for re-enacting the seventeen annual laws, and to invest the governor in council with authority to renew them, in the event of their failing to do so. A brief conversation took place, in which Sir Robert Peel declined offering any opinion on the merits of the bill in its present stage, and the house went into committee upon it. On the 10th of June Sir Edward Sugden proposed on this occasion to omit the first clause of the bill, after which he proceeded to dissect its provisions with considerable acuteness. Mr. Labouchere defended the measure, and Messrs. Gladstone and Goulburn objected to it. The latter said that tire present bill differed but little from the former, and, in his opinion, only differed for the worse, as it offered a premium to the council for disapproving of the acts of the assembly, in order that it might itself acquire the power of legislating in its place. On a division the clause was carried by a majority of two hundred and twenty-eight against one hundred and ninety-four: a result which was chiefly owing to the circumstance that the Conservatives were not prepared for so early a division, but which was nevertheless received with great cheering from the ministerial benches. The order of the day was moved for the third reading on the 19th of June, when Mr. Labouchere stated that the time left to the assembly for deliberation could be extended from the 1st to the 15th of October. The bill was then read without opposition; but Mr. Goulburn immediately rose to move the omission of the first clause, in which he was seconded by Mr. Hume. Lord John Russell urged that the rejection of that clause would prevent any useful legislation on the subjects embraced by its provisions, and that the constitutional difficulty rather rested on the second section. Sir Robert Peel contended that the government was about to give just grounds of complaint to the assembly. In reply, Mr. Labouchere admitted that the method in contemplation was not an agreeable mode of proceeding; but at the same time he argued that it was the best which, under the circumstances, could be adopted. On a division the clause was carried by a majority of two hundred and sixty-seven against two hundred and fifty-seven.

The second reading of the bill was moved in the house of lords on the 1st of July by the Marquis of Normanby, who made some stringent remarks on the conduct and constitution of the Jamaica assembly. On the following day, after the order of the day had been read for going into committee, Lord Lyndhurst moved the expunction of the first clause of the bill. The opposition charged the government with a desire to subvert the constitution of Jamaica, and to tyrannize over the colonists. Lord

Brougham made the question an occasion to vent his personal spleen against the cabinet. The opinions expressed by his lordship were so utterly at variance with those which he had so often uttered when eloquently advocating the cause of the negro, as to betray his personal motives in his opposition to the bill, and to lessen public confidence in his justice and consistency. Lord Melbourne vehemently disclaimed, on the part of himself and colleagues, the least desire to abolish the Jamaican constitution, or to interfere with the rights of the people either in this country or in any of the colonies. What they had done had been done with deep regret and reluctance; and it was with the utmost unwillingness that they made both the previous and present propositions. On a division, the first clause was expunged by a majority of one hundred and forty-nine against eighty. Lord Brougham then moved an amendment to the second clause, limiting the power of the governor with regard to the renewal of money-bills; but was prevailed upon to postpone the discussion till Thursday, on which day, the other clauses having passed, it was agreed that the report should be brought up. When the order of the day for bringing up the report was read, his lordship moved as a proviso, “that nothing herein contained shall enable the said governor, with the assent of the said council, to continue or renew any acts for the raising or appropriating money.” This amendment was strongly opposed by Lord Melbourne and other members of the cabinet, and it was negatived without a division. The report was then received, and on the 5th of July the bill was read a third time and passed. On the 9th of the same month Lord John Russell recommended the house to acquiesce in the amendments of the lords, which was agreed to; and thus the bill finally assumed the very shape which Sir Robert Peel at first suggested should be adopted.

BILL FOR THE SUPPRESSION OF THE PORTUGUESE SLAVE-TRADE, ETC.

On the 8th of March Sir Robert Inglis took occasion to remind Lord Palmerston of the address which had been carried on the subject of the Portuguese slave-trade, and begged to be informed whether the government had succeeded in obtaining a treaty with Portugal, or were prepared to resort to the measures promised by the noble lord in the event of the failure of such negociations. In reply, Lord Palmerston stated, that after four years spent in negociation, a note, which had just been received from Lord Howard de Walden, assured him that there was no longer any hope of procuring the assent of the Portuguese cabinet to a treaty for the suppression of the traffic. It was, therefore, the intention of government to introduce a bill which should give to her majesty’s cruisers and commissioners the same right of search with regard to slave-trading vessels met with below the line, which they already possessed in the case of those which were found north of the equator. This bill was introduced on the 10th of July, and it passed through all its stages in silence until it arrived at the second reading in the house of lords. On that occasion Lord Minto said, that he deemed it necessary to state the present condition of the law relating to the slave-trade, and the existing treaties between Great Britain and Portugal. The most important of these treaties, his lordship said, was that of 1815, by which the slave-trade was declared illegal; and Portugal undertook to bring about its eventual abolition, consenting in the meantime not to suffer her flag to be employed in that traffic for any other purpose than to furnish slaves for her own transatlantic

dominions. For this concession England had agreed to pay, and had paid, £600,000. In 1817, an additional convention was entered into, defining still more precisely the limits within which the slave-trade to the Brazils was to be exercised. By this treaty the Portuguese government undertook, within two months from the date on which it was signed, to pass a law declaring the commerce in question unlawful, and subjecting persons implicated therein to punishment. It was further stipulated that, within a specified period, Portugal should treat with this country for the final abolition of the slave-trade, and assimilate its legislation on the subject with that of Great Britain. His lordship went on to say, that when Portugal ceased to hold the Brazils, the slave-trade ought to have been abolished, as there were no longer any transatlantic possessions to which the terms of the treaty would apply. Yet, notwithstanding these engagements, the traffic had been carried on almost entirely under the flags of Portugal and Spain. With the latter country, however, we had concluded an efficient treaty, which gave us the power of seizing vessels equipped for the slave-trade, without waiting till they had taken on board their miserable cargo, which gave rise to hopes that this would have the effect of extinguishing the trade. It was desirable that we should obtain similar conditions from Portugal; and he was bound to say that the persons opposed to the abolition were not the Portuguese people, but certain influential parties who were interested in the maintenance of the contraband commerce, and continued to violate the treaty with the sanction of the Portuguese government. In conclusion, his lordship entreated the house to pass this bill, which had been introduced in redemption of the pledge given by government in the last session, and formed an indispensable preliminary to any undertaking upon a greater: scale. Through the influence of the Duke of Wellington the bill was rejected by a majority of thirty-eight against thirty-two.

On the 2nd of August Lord Brougham moved the following resolution on the same subject:—“That an humble address be presented to her majesty, praying her majesty, by all the means within her majesty’s power, to negociate with the governments of foreign nations, as well in America as in Europe, for their concurrence in effectually putting down the traffic in slaves; and also, that her majesty will be graciously pleased to give such orders to her majesty’s cruisers as may be most efficacious in stopping the said traffic, more especially that carried on under the Portuguese and Brazilian flags, or by the Brazilian and Portuguese ships, assuring her majesty that this house will cheerfully concur with the other house of parliament in whatever measure might be rendered necessary, if her majesty shall be graciously pleased to comply with this prayer.” Lord Brougham intimated that he moved this address under the apprehension that if it went out to Portugal that the bill recently rejected was done so by the unanimous opinion of the house of lords, their lordships might be represented as giving a sanction, which none of them had ever contemplated, to so odious a traffic. The motion for an address, after some observations from the Duke of Wellington, the Marquis of Lansdowne, and the Earl of Minto, was agreed to, and ordered to be communicated to the other house. On the 8th of August the Duke of Argyle, as lord-high-steward of the household, announced that her majesty had been waited on with the address, and returned the following gracious answer:—“I receive this address with great satisfaction. I will direct orders to be given to my cruisers in

accordance with your wishes, fully relying upon your assurance that you will concur in the measures which will thus be rendered necessary.”

On the same evening, in the house of commons, Viscount Palmerston moved for leave to introduce another bill in the place of that which had been rejected. After stating the grounds of objection against the former bill, the noble lord proceeded to unfold the nature of the clauses in the new bill. Although, he said, the crown might undoubtedly, by its prerogatives, take measures which would effectually put down Portuguese slavers, there were still inconveniences which demanded a remedy. The officers, his lordship said, acting under its orders, would be exposed to harassing suits in the courts of law at London; and, although we might capture ships, and deal with them accordingly, it would not be proper of this country to dispose of vessels which were the _prima facie_ property of subjects of other states without having proved before some court of record the grounds of such proceedings. An act was therefore required to define what constituted a slave-trader. It was not considered necessary for the slaves to be on board: a ship equipped in a certain manner was a proof that she was engaged in the slave-trade; but the courts of admiralty could not condemn a ship on that ground without an act of parliament. It was further requisite, to enable the crown, by the same proceeding, to give to those who capture slave-vessels under this treaty bounties similar to those secured by conventions with other powers. These provisions, his lordship thought, would be sufficient to put down the commerce carried on by the Portuguese flag, and a great point would thereby be accomplished. After, indeed, that they had united all the flags in Christendom to put down this horrid traffic, the slavers might repudiate all flags, and divest themselves of every document which might enable th captor to identify them with any particular nation. That would be the last refuge of despairing crime; and in order to meet those circumstances, he would propose a clause by which such a ship should be dealt with as though it were an English trader, unless it appeared, in the course of the trial, that she belonged to some particular state, in which event the case should not be adjudicated by the court of admiralty, but dealt with as if at the outset she had been of the nation to which she was ultimately shown to belong. His lordship added, that when the nations of Europe were once united in giving a mutual right of search, or the power of condemning by a mixed commission, there would no longer remain any defence for carrying on the slave-trade under any European flag; and he reminded the house that he had already concluded treaties with Chili, Grenada, Venezuela, and that intelligence had recently arrived of a treaty made with Buenos Ayres. After a few words from Dr. Lushington, Sir E. Inglis, and Captain Pechell, leave was given to bring in the bill, and it was brought in and read a first time. The next evening it was read a second time, went through a committee, and passed the commons without a division.

The second reading of this new bill for the suppression of the slave-trade was moved by Lord Melbourne on the 15th of August. Previous to making this motion the noble viscount requested that the address of the house of lords on the slave-trade, together with her majesty’s gracious answer, should be read; and after explaining the provisions of the measure, he stated that, in compliance with the prayer contained in the address, her majesty had given directions to her cruisers to take the most

efficacious measures for putting down the traffic, and that this bill was necessary in order to fulfil their lordships' own intentions and wishes, as expressed in their petition to the crown. The Duke of Wellington still continued his opposition to this measure, and he moved as an amendment that it should be read that day six months. He was supported by Lord Ellenborough, who demanded that any orders which had been issued to her majesty's cruisers should be laid before the house. The measure, however, was supported by the Bishop of London, the lord chancellor, the Earl of Minto, and Lords Brougham, Denman, and Colchester, and the second reading was eventually carried by a majority of thirty-nine against twenty-eight. On the next evening, when the bill was in committee, Lord Lyndhurst moved an amendment to the following clause;—"That in case her majesty should please to issue orders to her cruisers to capture Portuguese vessels engaged in the slave-trade, or vessels of any state whatever engaged in the slave-trade, not having on board, or the masters whereof should neglect to produce, on demand, papers showing of what state she belongs;" which amendment was to this effect:—"That in case her majesty should please to issue orders to her cruisers to capture Portuguese vessels engaged in the slave-trade, or any other vessels engaged in the slave-trade, and Hot justly entitled to claim the protection of any flag." This amendment, which was intended to confine the operation of the bill to Portuguese vessels, and piratical vessels engaged in the slave-trade, after some remarks from Lord Brougham in opposition to it, was finally adopted, and on the 19th of August it was read a third time without discussion. After it had passed, the Duke of Wellington, who had put in a protest both against the second and third reading, stated, that he still retained all his objections to the principles of the bill; it still exhibited its criminal character, for it was a breach of the law of nations, a violation of international treaties, and would rather tend to encourage than to prevent the traffic against which its enactments were directed. On the motion of the chancellor of the exchequer the amendments were agreed to in the house of commons, and the measure became law.

MOTION FOR THE BALLOT.

Circumstances had revived the interest attending the question of voting by ballot, and thus encouraged, on the 18th of June Mr. Grote again brought the subject forward in the house of commons. The motion was seconded by Lord Worsley, and supported by Mr. Macauley; but was opposed by Lord John Russell, who, on this occasion, spoke with unusual energy. It was further opposed by-Lord Howick, Sirs J. Graham and Robert Peel, and Messrs. Gaskell and Milnes. On a division it was rejected by a majority of three hundred and thirty-five against two hundred and seventeen: one cabinet minister only voted with Mr. Grote; but others, who were in favour of it, absented themselves on the occasion.

ACT FOR THE BETTER ORDERING OF PRISONS.

During this session an act was passed for the "better ordering of prisons." By this act it was provided that prisoners might be separately confined, though that separate confinement should not be deemed solitary confinement. No cell was to be used for the separate confinement of any prisoner which was not of such a size, and lighted, warmed, and ventilated in such a manner as might be required by a due regard to

health, and which did not furnish the means of enabling the prisoner to communicate at any time with an officer of the prison. Every prisoner so confined was to have the means of taking air and exercise at such times as should be deemed necessary by the surgeon, and was to be furnished with the means of moral and religious instruction, and with suitable books, as well as with labour or employment. All prisoners were to be divided into the following classes: namely, debtors in those prisons in which debtors might be lawfully confined; prisoners committed for trial; prisoners convicted and sentenced to hard labour; prisoners convicted and not sentenced to hard labour; and prisoners not included in either of the foregoing classes.

MOTION FOR A COMMITTEE OF THE WHOLE HOUSE TO CONSIDER THE NATIONAL PETITION.

On the 12th of July Mr. Attwood moved for a committee of the whole house, to take into consideration a “National Petition,” which had been presented on the 14th of June. In making this motion, Mr. Attwood stated this petition was signed by 1,200,000 persons of the working classes. In it the petitioners urged five demands: namely, universal suffrage, vote by ballot, annual parliaments, remuneration of members for their attendance in parliament, and the abolition of the property qualifications. This proposal gave rise to a considerable discussion; but it was rejected by a majority of two hundred and thirty-five against one hundred and eighty-nine.

BIRMINGHAM RIOTS, ETC.

The defeat of Mr. Attwood’s motion was contemporaneous with alarming riots at Birmingham. These riots arose out of the proceedings of the Chartists. That dangerous body of men had recently resorted to many methods, in order to impose upon the majority of the people that they were the strongest party in the country, and that they could carry their plans into effect without resistance. One mode of proceeding was to go round from house to house with two books, and to say that those persons who subscribed should be registered in one book, while those who did not subscribe were entered in another. Those who put down their names paid a small contribution, and received in return a ticket, which was to be their security in a time of danger: non-subscribers were warned that a time would come when their refusal would be remembered. Another practice of these rash demagogues was to go in procession to the churches some time before divine service commenced, and to take possession of the body of the edifice; some smoking their pipes, and others wearing their hats. These Chartist combinations were very prevalent throughout the country, and in the early part of this year, these combinations in the different cities of the United Kingdom proceeded to the election of deputies, in order to form a national convention, which was to have moveable sittings, and to be entrusted with the ultimate direction of their proceedings. Out of this arrangement arose the “National Petition,” mentioned in the previous article, and which was presented by Mr. Attwood on the 14th of June. Having discharged this duty imposed on them, the deputies proceeded to hold a national convention in the city of Birmingham. By this step great activity was contributed to the motions of the Chartists. It was their practice to assemble in great numbers every evening, on the open place called the Bullring. They met as usual on the 5th of July; but by this time the borough magistrates had

communicated with the home-office, and it was resolved to send down sixty policemen from the metropolis to disperse them. The railway train delivered them at Birmingham that evening, and they proceeded to the scene of confusion, and directed the people to disperse. This injunction, however, was unheeded, and then the police filed off four abreast, and made for the monument of Lord Nelson, which stood in the centre of the Bullring, and which was decorated with the flags of the convention. The flags were captured by them; but the mob, when they saw them in the hands of the police, recovered them by force, broke the poles up into short sticks, and after a fierce struggle overpowered their antagonists: several of the policemen were seriously hurt, and more than one of them stabbed. At that juncture the 4th dragoons arrived on the spot; riding by concert up every avenue which led to the place, the Bullring was completely enclosed. Their appearance was the signal for the people to disperse, and the routed mob proceeded, with the cavalry in close pursuit, down Digbeth and up Broomsgrove-street, to St. Thomas's church. Hero they tore up the palisades, and made a brief stand; but the tumult was eventually reduced: by midnight quiet was restored, and the military, planting a guard in the great square, returned to their barracks. In this encounter several Chartist leaders were captured; as Dr. Taylor, the Paisley delegate to the convention, and Messrs. Lovett and Collins. There was still, however, an under-current of agitation: in fact, the late event was but the precursor to a more furious storm. While it was taking place, Mr. Attwood brought forward his motion for taking the National Petition into consideration. The rejection of' his motion irritated the already inflamed minds of the Chartists. It was generally expected that Mr. Attwood would on the 15th of July address them on his old ground at Holloway-head. Under this apprehension the spot was occupied during the day by small groups of artisans, who amounted at half-past six to about two hundred. Several speakers addressed them; but when it was found that Mr. Attwood would not come, an orator recommended them to form into line, and parade through the principal streets. He recommended that they should walk orderly; but instead of that they proceeded tumultuously to the Bullring. No police were on the spot; and thus favoured, the mob, having been reinforced from all quarters, proceeded down Moor-street to the public office. All the windows of this building were broken by them; and, under the impression that neither the police nor the military were able to withstand them, the tumultuous concourse poured back into the square. Weapons were now sought: broken flagstones, heavy bludgeons, and scythes were brought into use, while some loosened the pavement for the purpose of arming empty hands with missiles. The work of demolition soon commenced: the houses of Mr. Bourne, a grocer, and Mr. Leggett, an upholsterer, were plundered and set on fire. A simultaneous attack was next made upon the Nelson hotel; and by casting the lighted brands into other shops, which had been forcibly driven in, the mob were on the point of kindling a general conflagration. At this point, however, the police made their appearance; and at ten o'clock they were followed by some magistrates and the military. The first onset was followed by complete discomfiture: before the troops came up the ringleaders escaped, and by midnight quiet again reigned. The morning, however, showed a dismal scene of devastation: besides the premises which were consumed by fire, nearly twenty shops were destroyed; and it was reckoned that £40,000 would not cover the damages.

In consequence of these lamentable occurrences, and the excited state of the northern districts of the kingdom, on the 22nd of July, Lord John Russell announced his intention of taking the requisite precautions for securing the tranquillity of the country, by placing at the hands of the magistrates a better organized constitutional force for putting the law into execution, and providing sufficient military means for supporting them in the performance of their duty. On the next evening he moved a resolution to authorize the treasury to advance £10.000 out of the consolidated fund, for the purpose of establishing an efficient police force at Birmingham, which was to be repaid out of the rates to be levied on the said town. In explanation of this resolution, his lordship stated, that there were difficulties in the way of an immediate organization of such a force on account of the excited state of Birmingham, and from the question lately raised in Manchester, with regard to the corporation, whether the municipal body of Birmingham had the power to impose a rate for the establishment of a police. Under these circumstances he proposed that the state should interfere so far as to advance certain funds, to be repaid by the town. This would not be a vote of supply, but a vote forming the foundation of a bill which should provide for the recovery of the money by a rate on the borough, to be imposed by an act of parliament, and, therefore, irrespective of the authority of the corporation. This resolution was carried, and a bill was brought in, which became law. Similar bills, with the exception of the advance of funds from the treasury, were subsequently applied to Manchester and Bolton, to remain in force until the power of the civil functionaries to raise a rate should be determined. A bill was also passed, with the same intention, to enlarge the powers of the justices of the peace for appointing county and district constables, and charging their support upon the districts to which they might be nominated. This measure, however, was not intended to be imperative; but justices in quarter-sessions were authorized to report to the secretary of state the necessity of an additional appointment of constables, wherever the circumstances of their district should call for such an augmentation, in a proportion not exceeding one for every one thousand of the population. At the same time magistrates were to create one or more chief-constables of the county, with whom should rest the nomination of petty-constables and a deputy. A further enactment forbade any constable under the provisions of this hill from voting at an election, or exercising any other employment. In order further to secure the peace of the country, Lord John Russell subsequently moved that an addition of five thousand men should be made to the present military establishment; and after an amendment by Mr. Hume, which was unsuccessful, the house went into committee, and a vote of £75,000 was carried for the increase of the army.

THE BUDGET—PROPOSED REDUCTION OF POSTAGE DUTIES, ETC.

The chancellor of the exchequer brought forward his financial statement on the 5th of July. From his statement it appeared that the expenditure had exceeded the estimates; chiefly in consequence of the war in Canada. The estimates were £46,974,000, and the expenditure £47,760,000, so that there was a deficiency of £786,636. Mr. Rice, however, stated that he did not think himself justified in laying a permanent charge on that account upon the country, and he proposed to meet the deficiency by a vote of exchequer-bills on a subsequent occasion, in the nature of a

vote of credit. The chancellor of the exchequer next stated the estimated income and expenditure of the present year; the former being £48,128,000, and the latter £47,988,000, leaving an excess of £140,000.

In his statements the chancellor of the exchequer took a cheerful view of the commercial prospects of the country; and he referred to the increase of exports for the present year over those of 1838 as a symptom of returning prosperity. So confident was he of a return of prosperity, that he proposed to reduce the rates of postage. At this time there was a committee sitting on the post-office acts; and Mr. Rice moved this resolution:—"That it is expedient to reduce the postage charged on letters to the uniform rate of one penny, for every letter of a weight to be hereafter fixed by law; parliamentary privileges of franking being abolished, and official franking strictly regulated. This house pledges itself at the same time to make good any deficiency of revenue which may be occasioned by such an alteration in the rates of the existing duties." In moving this resolution the chancellor of the exchequer said that he proposed a penny rate, because he had been convinced by the arguments and evidence of the committee that the latter expedient would involve less loss to the revenue than a twopenny postage, which had been recommended by the committee. After some observations from Mr. Goulburn and Sir Kobert Peel, both of whom intimated further hostility to such a change, the resolution was agreed to without a division. On the 12th of July, when the order of the day was read for receiving the report of a committee on the postage-acts, Mr. Goulburn rose for the purpose of proposing a series of resolutions to be substituted for the report. These resolutions were:—"That with a deficiency of revenue during the three years ending on the 5th day of April, 1840, of not less than £8,860,987, it is not expedient to adopt any measure for reducing the rates of postage on inland letters to an uniform rate of one penny, thereby incurring the risk of a great present loss to the revenue, at a period of the session so advanced, that it is scarcely possible to give to the details of such a measure, and to the important financial considerations connected with it, that deliberate attention which they ought to receive from parliament." This amendment was opposed by the chancellor of the exchequer, and supported by Sir Kobert Peel. After a few words from Messrs. P. Thomson and Warburton in favour of the proposition, the original question was carried by a majority of two hundred and fifteen against one hundred and thirteen. The report was then brought up and read; and on the question that the resolution agreed to by the committee be read a second time, Sir R. Peel moved an amendment to omit such part of the resolution as pledged the house to supply any deficiency of the revenue occasioned by the reduction. This amendment, however, was rejected, and the report agreed to; and on the 18th of July Mr. S. Rice brought in a bill, intituled, "An act for the further regulation of the duties on postage until the 5th day of October, 1840." This bill was read a second time without a division, and by the 29th of July it passed the commons.

The second reading was moved by Lord Melbourne in the house of lords on the 5th of August; on which occasion the Duke of Wellington criticised the manner and circumstances under which it had been brought forward in the face of a deficiency of more than one million, which, considering the state of our affairs both at home and abroad, was likely to be greatly augmented by the 5th day of October, 1840. At the

same time the noble duke said that he would vote for the bill, and would recommend their lordships to follow his example. Several other noble lords addressed the house, chiefly in favour of the measure; and the bill was then read a second time, and subsequently became law without further opposition.

In his remarks on the postage-bill the Duke of Wellington recommended ministers to reduce the amount of the floating debt, under the pressure of which the market had been labouring, by funding exchequer-bills. Apparently acting upon this suggestion, on the 12th of August Viscount Melbourne and the chancellor of the exchequer made public their determination, subject to the approval of parliament, to effect the funding of four millions of exchequer-bills in the three per cent, consolidated annuities. This arrangement was effected on the 17th.

PROROGATION OF PARLIAMENT.

In the house of lords the labours of the session were brought to a close by a long and animated discussion on a motion made on the 24th of August, by Lord Lyndhurst, for “a return of all bills that had arrived from the house of commons since the commencement of the session, with the dates at which they were brought up.” In his speech, the noble lord directed the attention of the house to the fate of four important subjects—the Irish municipal corporations, the affairs of Canada, the recommendations of the ecclesiastical commissioners, and tire administration of justice; after which he went on to pass under a searching review, the whole parliamentary conduct of ministers in the course of the expiring session. Lord Melbourne replied in an effective speech. Lord Brougham contended that the country would be glad to see the Conservatives return to office.

Parliament was prorogued by her majesty in person on the 27th of August. After being addressed by the speaker on the various measures which had occupied the attention of parliament, and after having given the royal assent to several bills, her majesty read the speech, which the lord-chancellor put into her hands, in her usual distinct and impressive manner. The speech referred to the various topics which had engaged the attention of parliament, and the differences which had lately sprung up between the British government and that of Persia.

AFFAIRS IN THE EAST INDIES.

Her majesty, in her speech on the prorogation of parliament, alluded to an army which the governor-general had led across the Indus. This “army of the Indus” was put in motion for the western frontier at the commencement of the present year; and the circumstances which led to so important a proceeding were briefly these. The kingdom of Affghanistan has been called the land of transition between eastern and western Asia: a proverb says, “No one can be king of Hindoostan without first becoming lord of Cabool.” The founder of the Affghan empire was Ahmed Shah, who died in 1773. Ahmed Shah made several victorious incursions into the East; and his son, Timour Shah, followed his example. The decease of Timour Shah, however, delivered over the Affghan empire to the domestic hostilities of his sons; and the rival tribe of the Barukzyes took advantage of their dissensions to precipitate them from their sovereignty. When, indeed, Sir Alexander Burnes visited Affghanistan in 1833,

the only portion which remained in the hands of a descendant of Ahmed Shah was the principality of Herat. The remainder was parcelled out in the following manner between the usurping family:—Dost Mohammed Khan ruled in Cabool; Sirdar Sooltan Mohammed Khan ruled Peshawar, although his two brothers. Peer and Sared Mohammed Khan, shared its revenues; and Candahar was governed by Kohun Dil Khan, assisted by Ruhun Dil and Shere Dil, his two brothers. The chief of Cabool owed his success to Futteh Khan, the chief of the great family of Barukzyes, and the most powerful of the Affghan nobles. Futteh Khan, in fact, governed the kingdom under the designation of vizier, while Mahmood abandoned himself to debauchery. If Mahmood, however, submitted to the ascendancy of his able minister, not so did his son, the prince Kamrau. By his orders Futteh Khan was seized at Herat and deprived of his eyesight; and a few months afterwards the unhappy vizier was literally hacked to pieces by the courtiers of Mahmood, in the presence of that monarch. In the days of his power Futteh Khan had distributed the different governments of his kingdom among his numerous brothers, and this act drove them into rebellion. Mahmood abandoned his throne without a struggle, and, although he retained Herat, with the title of king, became, in effect, a vassal of Persia. The Barukzye brothers were left to dispose of his dominions at pleasure, and they determined on recalling Shoojah to the throne, who after many perilous adventures had fallen into the hands of Runjeet Sing at Lahore. Shoojah escaped from Lahore; but the Barukzye brothers having taken offence at his arrogant treatment of one of their friends, transferred their support to his brother, Gyooh: the trappings of royalty were given to him, while they retained to themselves the power and revenues of the kingdom. The dismemberment of the Affghan empire, however, from this time proceeded more rapidly. Runjeet Sing seized some of its finest provinces, including Cashmere; Shere Dil Khan established himself at Candahar as an independent prince; Dost Mohammed made himself master of Cabool; Sirdar Sooltan Mohammed Khan became tributary governor of Peshawar; Balkh was annexed to the kingdom of Bokhara; and the Ameers of Scinde declared themselves independent. Gyooh fled to Lahore; and the only province of the kingdom which remained in the hands of a descendant of the royal family was Herat. The prince who governed Herat was Kamrau, who had directed that the eyes of his lather’s vizier, Futteh Khan, should be put out. Without directly acknowledging the sovereignty of Persia, Prince Kamrau had been for some years in the practice of rendering an occasional tribute to the shah, as often as the governor of the Persian province of Khorassan was strong enough to extort it from him. At this time, however, the prince of Herat refused to perform any such engagement; and he even permitted his vizier to pass through Siestan into Khorassan, where he compelled the chiefs of Khiva and Khafin to pay tribute to his master, and carried away twelve thousand persons, and sold them as slaves. This conduct of Kamrau furnished Mohammed Shah, the Persian monarch—who had recently ascended the throne by tire assistance of British officers, and supplies of money from the English treasury—with a pretext for endeavouring to make himself master of Herat. There was an existing treaty between England and Persia, which stipulated “that if war should ensue between the Persian and Affghan governments, the English government should take no part in it; nor should give assistance to either party, except as a mediator, at the solicitation of both parties, for the purpose of producing peace.” Had the Persian monarch limited

his views to an attack upon Herat, this treaty would have been binding on the English nation; but it soon became evident that he extended them to Ghizni and Candahar. Mr. Ellis, who had been sent to Persia as British envoy in the year 1835, thus wrote at the commencement of the following year:—“The intention cannot be mistaken: Herat once annexed to Persia, may become the residence of a Russian consular agent, who would from thence push his researches and his communications, avowed and secret, throughout Affghanistan. Indeed, in the present state of the relations between Persia and Russia, it cannot be denied that the progress of the former in Affghanistan is tantamount to the advance of the latter, and ought to receive every opposition from the British government that the public faith will permit.” Russian influence, was, in fact, predominant in the councils of Mohammed Shah, and the power of Russia appeared to stand higher in the general opinion than that of Great Britain. Moreover, the Russian ambassador was urgent upon the shah to complete his designs against Herat, and he even offered his military services in the expedition. Under these circumstances Mr. Ellis signified to the Persian ministers the extreme displeasure with which the English would look upon the prosecution of any extended schemes of conquest in Affghanistan: without disputing their right to obtain redress from the prince of Herat, he intimated that the British government would be better pleased if that purpose could be effected by negotiation; and offered to send a British officer to Herat for the purpose of facilitating the adjustment of the existing differences. To this proposal the Persian ministers at first assented, but they afterwards rejected it altogether. In the meantime Uzeez Khan arrived on a mission from Kohun Dil Khan and his brothers at Candahar, with the object of effecting an alliance offensive and defensive, with the shah, and uniting in the attack upon Kamrau. Towards the close of 1835, Dost Mohammed Khan, the chief of Cabool, also dispatched an agent to the court of Persia with letters, in which he offered to co-operate in an attack upon Herat, and sought in general the protection of the shall against the Sikhs. The real objects of the chiefs of Candahar was also to obtain protection from the same enemies; and neither they nor the chief of Cabool had any disposition to become feudatories of Persia. Thus supported, the shah set forth on his expedition; but owing to the appearance of the cholera by the 3rd of November, 1836, he had only reached Asterabad. His army was in fact reduced to such a deplorable condition, from the scarcity of provisions and the predatory incursions of the Turcomans, that all hopes of undertaking a winter campaign against Herat were given up, and, despite the remonstrances of the Russian plenipotentiary, the shah led back his forces into Persia. In the meantime Mr. M’Neill had succeeded Mr. Ellis, and he did not fail to make known the advice which had been tendered by the Russian ambassador in the late expedition; and Lord Palmerston directed the Earl of Durham, our envoy at Russia, to inquire of Count Nesselrode whether the Russian envoy was acting in accordance with the instructions of his government. It was stated in reply that if Count Simonich had acted in the manner mentioned, it was done in direct opposition to his instructions: he had been ordered to dissuade the shah from prosecuting the war at any time and in any circumstances. It was added, that our minister in Persia must have been misinformed; but in a subsequent despatch, Mr. M’Neill stated that tire information he had given had been confirmed by the concurrent testimony of all the Persians with whom he had conversed on the subject, including the

prime-minister. The allegations against Count Simonich were, in fact, indisputable; and the prospect of a combination of Russian and Persian influence could not fail to alarm the government of India; and as the shah's designs against Herat were not given up, Mr. M'Neill was instructed to inform him that any attempt to prosecute schemes of aggrandizement in Affghanistan would diminish the cordiality existing between England and Persia. Mohammed Shah, however, was so far from giving up his designs upon Herat, that he sought to obtain a more intimate alliance with Russia; and he was so far successful, that an envoy was dispatched by him with presents from himself and the Russian envoy resident at his court, to Candahar and Cabool. His preparations for war were still continued; and in the midst of them a messenger arrived from Herat to negotiate an arrangement. Mr. M'Neil was invited to take part in the conference. The terms brought by the envoy from Herat were so advantageous that the British envoy recommended the Persian government to accept them, lest the British government should suspect that Persia, in persisting to prosecute the war, had other objects in view than those avowed. The conditions, however, were rejected, and it was evident that the shah would only be satisfied with the sovereignty of Herat. His troops were again put in motion on the 23rd of July; but in consequence of obstructions, on the 14th of October they had advanced no further than Nishapoor, about half the distance from Teheran to Herat. About this time an emissary from Russia appeared in the Persian camp, from whence he proceeded to Candahar and Cabool; everywhere giving out that he was sent to intimate the arrival of a large Russian army to co-operate with the army against Herat. Dost Mohammed, the chief of Cabool, had sent agents to St. Petersburg, as well as Teheran, to procure assistance against the Sikhs; and shortly after, he applied with the same intention to Lord Auckland, who had just arrived in India as governor-general. Lord Auckland decided on sending Captain Burnes on a commercial mission to Cabool; and that officer reached the capital of Dost Mohammed about the time that the Persian and Russian agents arrived in Candahar and Cabool. Negotiations were commenced between these various agents and the chief of Cabool; and they were not concluded when the Persian army arrived before Herat. The shah had previously captured the border fortress of Ghorian; but he was destined to meet with a different reception before the city of Kamrau Shah: week after week elapsed, and not the slightest impression was made upon its walls. While the siege was proceeding, Lord Auckland directed Mr. M'Neill to proceed to the camp, and make one more endeavour to effect a pacific adjustment, and to obtain redress. He had so far succeeded as to bring the mind of the shah to be favourable to a treaty; but all his efforts were again set aside by the arrival of Count Simonich, the Russian envoy, in the Persian camp. The siege, therefore, continued, nor could subsequent efforts made by Mr. M'Neill set it aside. His failure was made known to the British government; and on the 21st of May he received a despatch from Lord Palmerston, which authorized him to inform the shah that his designs were in complete contravention of the spirit of the alliance subsisting between the two nations; and that he must expect the cessation of intercourse in the event of such hostile proceedings being persevered in. In consequence of this direction Mr. M'Neill wrote the following letter to the Shah of Persia:—"I am directed to inform your majesty that if Herat should have surrendered to your majesty, the British government will consider your continuing to occupy that or any other portion

of Affghanistan as an hostile demonstration against England. Your majesty is no doubt informed by your government of Fars, that a body of British troops, and a naval armament, consisting of five ships of war, have already arrived in the Persian Gulf, and that for the present the troops have been landed in the Island of Karrak. The measures your majesty may adopt in consequence of this representation, will decide the future movements and proceedings of that armament; but your majesty must perceive, from the view which her majesty's government has taken of the present state of affairs, and from the effect which must have been produced upon the minds of her majesty's ministers and the British authorities in India, and by the subsequent proceedings of the Persian government, with which they were not then acquainted, that nothing but the immediate adoption of measures complying with the demands of the British government, can induce the authorities acting under the orders of that government to suspend the measures that are now in progress for the defence of British interests, and the vindication of British honour." Before this declaration had come to the hands of the Shah, the Persian army, after six days of incessant battering, had made a general assault upon Herat; but although the troops went forward courageously, and had even planted their standards three several times upon the breach, they were finally defeated in their attempt: the Affghans attacked them sword in hand, with energy too resolute to be resisted, and drove them with great slaughter across the ditch: nearly two thousand Persians were slain. This failure, however, had not the immediate effect of forcing the Shah to raise the siege.

In the meantime Captain Burnes had failed in his mission to Cabool, and Lieutenant Leach, who had been sent to Candahar, had met with the same ill-success. A treaty had been concluded between Persia and the latter state, under the warrant of the Russian minister; and a treaty of nearly similar import was in progress at Cabool. Under these circumstances preparations were set on foot for marching an army into Affghanistan. The moment was very critical: there was a prospect of Persian dominion and Russian supremacy in all the Affghan states. By Russian subsidies, Kohun Dil Khan, chief of Candahar, besieged Furrah, a dependency of Herat; and Dost Mohammed Khan, chief of Cabool, commenced a system of hostile intrigues even in India. The Ameers of Scinde were called upon to join the league against the English even by the Shah himself; and his efforts were seconded by the Russian emissary, who had so successfully fulfilled his mission at Candahar and Cabool. But notwithstanding all these efforts, the failure of the recent assault of Herat, together with the debarcation of troops at Karrak, and the military preparations which were being made in the north of British India, finally led the Shah to comply with all the demands of the British ambassador, and to abandon his enterprise: the camp broke up on the 9th of September, 1838, and returned to Teheran. Later in the year Count Nesselrode disclaimed on the part of the Emperor of Russia all intentions of disturbing the tranquillity of the British possessions in India; and by the month of February, after considerable negociation, harmony was restored between the Russian and the British governments. The operations of the British army in India were not, however, wholly set aside by these events. At the time of the raising of the siege of Herat, and the retreat of the Shah of Persia, "the army of the Indus" was encamped at Simla, and was about to be put in motion for Ferozepore, on

the Sutledge. At Simla, Sir Harvey Faroe, who commanded the troops, under the direction of the governor-general, published a manifesto, which set forth the causes for the assembling of the army, and the objects which the British government had in view. As regarded the objects in view, the governor-general said, in the manifesto, that he felt the importance of taking steps for arresting the rapid progress of foreign aggressions towards our own territories, and that his attention was naturally drawn to the position and claims of Shah Soojah, who had, when in power, cordially acceded to measures of united resistance against internal enmity; and as the Barukzye chiefs were unfitted, under any circumstances, to be useful allies to Great Britain, or aid us in our measures of national defence, the governor-general felt warranted in espousing the cause of Shah Soojah, whose popularity had been proved by the best authorities. A tripartite treaty had, therefore, been concluded between the British government, Runjeet Sing, and Shah Soojah, whereby the maharaja of the Sikhs was guaranteed in his present possessions, and bound to co-operate in the restoration of the Shah. The manifesto further set forth that a guaranteed independence would be tendered to the Àmeers of Scinde; that Herat would be left in the possession of its present ruler; and that Shah Soojah should enter Affghanistan surrounded with his own troops, and supported against opposition, foreign or domestic, by a British army. As soon as these objects were effected, the British army was to be withdrawn from the Affghan territory; but British influence was to be used to further every measure of general benefit, and heal the distractions which had so long afflicted the Affghan people: even those chiefs whose hostile proceedings had been the cause of the measure, would receive a liberal and honourable treatment. The grand objects, therefore, for which the British troops were assembled at Simla, on tire Jumna, were to dethrone the hostile chiefs of Candahar and Cabool, and to re-establish the Shah Soojah in his dominions. On hearing of the raising of the siege of Herat, the intentions of the Indian government were in some degree modified. It was determined not to send forward the whole force, a part only being thought sufficient to effect the objects in view. The army of the Indus was in fact reduced to a _corps d’armée_, and it was to be commanded by Sir John Keene, the commander-in-chief at Bombay. The army was divided, and proceeded by two different routes; the Bombay division being destined to bring Scinde to submission. The first step of this division was to march upon Hyderabad, which was captured without any effectual resistance. The seizure of the capital was followed by the occupation of Kouratchee, the richest city in Scinde. By these means the Ameers were brought to contract a fresh treaty with the Indian government; agreeing to make an immediate payment of £300,000; to abolish the tolls on the Indus; to maintain an auxiliary corps of four or five thousand men under the command of British officers; and to pay a tribute amounting to nearly one-half of their revenue. Each Ameer, moreover, was for the future to look upon the English government as his suzerain, and procure his separate recognition at its hands. In the meantime the Bengal division was descending the bank of the Sutledge to unite with the Bombay army at Shikarpore, on the confines of Scinde and Affghanistan. The whole army assembled at Shikarpore, with the contingent of Shah Soojah, towards the beginning of March. The fatigues of the march, together with the assaults of the Beloches, had already made fearful havoc with the ranks of the expedition; and as they proceeded their sufferings increased. In the midst of trials

and difficulties, however, they pressed forward., and towards the middle of April, they assembled beyond the reach of danger, in the valley of Pisheen. How dreadfully they suffered in their route may be inferred from the fact, that of 6,000 men which comprised the contingent of Shah Soojah, only 1,500 escaped. Their greatest dangers were encountered in the defiles of Bolau, where they not only had to contend with the natural difficulties of the pass, but with the elements and fierce wild robbers, who hovered upon their flank day and night. In the valley of Pisheen, however, the survivors recruited their strength, and then proceeded to action. Candah offered them no resistance; Kohun Dil Khan quitted the capital and took refuge with his brother, Dost Mohammed., at Cabool. The Bengal division entered the city of Candahar on the 24th of April, and the Shah Soojah was solemnly crowned on the 8th of May. The troops spent several weeks at Candahar, but on the 27th of June they marched forward to Ghisneh. Operations, however, did not recommence till the 21st of July. Ghisneh was captured, after a fierce struggle, on the 22nd, and the son of Dost Mohammed taken prisoner. The capture of this strong fortress made a great impression upon the Affghans. It was expected that the fortress would have kept the English in check for some time; and under this impression Dost Mohammed was proceeding towards the capital with his cavalry and a park of artillery. On hearing of the fall of Gisneh, however, his army broke up, and Sir J. Keene then resumed his march along the rich valley from Ghisneh to Cabool. Shah Soojah entered Cabool on the 7th of August; and his rival, Dost Mohammed, being abandoned by all but the members of his own Barukzye tribe, fled beyond the mountains of the Hazareh into Bokhara. In order to complete the conquest Major Outram was sent into certain disturbed districts between Cabool and Candahar to tranquillize the disaffected Ghilzee tribes, who had not yet acknowledged Shah Soojah, and replace the refractory chieftains with newly-appointed governors. Khelat was also reinvested: that fortress was captured by General Willshire, and the khan, Mehrat, with many of his chiefs, fell fighting, sword in hand. Having achieved these conquests, Sir J. Keene, leaving a detachment for the protection of Shah Soojah, returned home with the main body. Mr. M’Naughten remained as resident at the court of Cabool. Such was the issue of the campaign in Afghanistan. Subsequently her majesty rewarded the services of the more eminent actors in the war. The governor-general was created Earl of Auckland, Sir John Keene was created Baron Keene of Ghuznee in Affghanistan; and baronetcies were conferred on Mr. M’Naughten and Colonel Pottinger.

STATE OF THE CONTINENT.

This year witnessed the virtual conclusion of the war in Spain. The principal event which contributed to this consummation was the rupture between the chief Maroto and Don Carlos. Maroto, indeed, with the battalions of Castile, made their submission, and his defection was followed by twenty-one more Carlist battalions. The terms of this pacification were effected by Espartero; and having concluded them, he led his army towards Don Carlos at Lecumberri. Not daring to await his arrival, Don Carlos withdrew into the defiles of the Bastan; and from the Bastan he fell back to Elisonda; and, finally, on the 14th of September, with six Alavese and two Navarrese battalions, he took refuge in France. The French government assigned to

him the city of Bourges for his temporary residence, and he was escorted thither by Marshal Soult. The Carlist chief, Cabrera, continued for some months to maintain his ground in the central provinces; but the struggle finally became hopeless, and at the commencement of the succeeding year, he, with 20,000 men, followed the example of his master, and took refuge in France. In Portugal the arrival of the bill which had been passed for the suppression of the slave-trade, gave rise to much dissatisfaction. The author of the measure, Lord Palmerston, was loudly charged with hostility to Portugal, and a great estrangement prevailed for some time between the two governments. The breach was widened by the demand made by the British upon the Portuguese government for the payment of the long pending civil and military claims due to the subjects of Great Britain. The requisition was, it is said, accompanied by a menace, that, in the event of a non-compliance, the British government would resort to coercive measures. During this year the territorial differences between Belgium and Holland were settled. The terms which the five powers resolved should be agreed upon between the two parties have been seen in a previous article; and it may be sufficient to state that Belgium, at least accepted them with great reluctance. In Turkey events occurred which attracted the notice of European powers. In 1838 the pacha of Egypt had refused to pay any further tribute to the Porte; and this announcement, together with the usurpation on the part of Meliemet Ali of attributes peculiar to the commander of the faithful alone, determined the sultan to make another effort for the reduction of his vassal. He assembled a large army on the eastern bank of the Euphrates, which menaced the Syrian dominions of the pacha; while Ibrahim, on the other hand, proceeded to concentrate his forces around Aleppo. The governments of France and England were apprehensive lest the discomfiture of the Turkish army should be followed by the arrival of a Russian force in the Bosphorus, in accordance with the stipulations of the treaty signed on an analogous juncture at Unkiar Skelessi. Under this apprehension the representatives of their respective courts at Constantinople and Alexandria were directed to make every effort to prevent war. Large concessions were made by Ibrahim through their mediation; but the interpreters of the law at Constantinople assured the sultan that it was the duty of every true believer to take up arms against an impious usurper, and a solemn declaration of war was accordingly read in all the mosques. In the month of June a great battle took place between the contending armies near Nezib, in which the Turks, under Hafiz Pacha, were utterly discomfited; six thousand of them were left dead on the field, and ten thousand were left in the hands of Ibrahim Pacha, together with fifteen thousand muskets, and more than one hundred pieces of artillery. The sultan did not live to hear of this disaster; he died on the 1st of July, and Abdul Mcdjio, a youth of seventeen, assumed the reins of empire. The death of Sultan Mahmoud the Second gave rise to negociation. The first act of the new sultan was to forward to the viceroy of Egypt an offer of pardon, together with the hereditary possession of the province of Egypt, on the condition that he conformed to his duties of obedience and submission. Mehemet Ali appears to have been willing to submit to these terms; but about the same time that he received them, Achmet, the capitan pacha, had revolted from the sultan, and had arrived at Alexandria. The Ottoman monarchy was tottering to its fall; but at this critical juncture England, France, Russia, Austria, and Prussia resolved to uphold the independence of Turkey, as an

essential element of the balance of power. The year, however, closed before the negociations commenced were perfected.

CHAPTER LI.

{VICTORIA. 1840—1841}

Meeting of Parliament: Announcement of the Queen’s Marriage..... Bill for the Naturalization of Prince Albert..... The Civil List..... Question of Privilege: Hansard and Stockdale..... Affairs of China..... Irish Municipal Corporations Bill, &c. Financial Statement..... The Union of the Canadas..... Ecclesiastical Duties and Revenues Bill..... The Regency Bill..... Prorogation of Parliament..... Affairs of British India..... The Marriage of the Queen..... State of the Continent.

MEETING OF PARLIAMENT.—ANNOUNCEMENT OF THE QUEEN’S MARRIAGE.

{A.D. 1840}

Parliament was opened on the 16th of January by her majesty in person. The opening of her majesty’s speech was one of great interest. It read thus:—“My lords and gentlemen—Since you have last assembled, I have declared my intention of allying myself in marriage with the Prince of Saxe Cobourg and Gotha. I humbly implore that the divine blessing may prosper this union, rendering it conducive to the interests of my people, as well as my own domestic happiness; and it will be to me a source of the most lively satisfaction, to find the resolution I have taken approved of by parliament. The constant proofs I have received of your attachment to my person and family, persuade me that you will enable me to provide for such an establishment as may appear suitable to the rank of the prince, and the dignity of the crown.” In continuance, her majesty congratulated parliament on the termination of civil war in Spain; expressed a hope that the five powers would be able to preserve the integrity of the Ottoman empire, and the peace of Europe; and referred to the success of the European and native troops in India with great satisfaction. Her majesty also declared her confident hope of adjusting our difference with the court of Persia; and intimated that serious attention had been given to her commercial relations with China. In conclusion, her majesty recommended to the early consideration of parliament two important measures relating to our home policy: namely, the state of the municipal corporations in Ireland, and the measures suggested by the ecclesiastical commissioners with respect to the church establishment in this country. In the lords the address was moved by the Duke of Somerset, and seconded by Lord Seaford. The Duke of Wellington fully concurred in the expression of congratulation to her majesty upon the alliance which had been announced to the country. But, his grace continued, every precedent of the reign of George III. had been followed in this matter except one, and that was the declaration that this prince was a Protestant. He knew the prince was a Protestant; but as this was a Protestant state, the fact that the prince was a Protestant should have been officially declared. The house of lords could not omit this; and therefore he moved the insertion of the

word Protestant before the word prince, in the first paragraph of the address. Lord Melbourne said that he considered the amendment superfluous. The act of settlement required that the prince should be a Protestant, and it was not likely that ministers would advise her majesty to break through the act of settlement. All the world knew that Prince Albert of Saxe Cobourg was a Protestant, and that he was descended from the most emphatically Protestant house in Europe. Lord Winchilsea did not regard the insertion of the word Protestant as unnecessary. Near and dear relations of the prince had become Roman Catholics, and the husband of the Queen of Portugal, a first cousin of this very prince, was an avowed Romanist. In the close of his observations, Lord Winchilsea adverted to the alarming state of the country, and censured Lord Melbourne for having recently presented Mr. Owen to the queen—a man who was the notorious advocate of doctrines which struck at the root of all religion and morality. The amendment was agreed to, and the address, as amended, ordered to be presented to her majesty.

In the commons the address was agreed to; and her majesty subsequently replied to the addresses of both houses, expressing satisfaction at their loyalty and affection; thanking them for their support and concurrence in her intended marriage; and assuring them that it would be her endeavour to make her reign conducive to the happiness of all classes of the community.

BILL FOR THE NATURALIZATION OF PRINCE ALBERT.

On the 20th of January, in the house of lords, a bill for naturalizing his serene highness Prince Albert of Saxe Cobourg and Gotha was passed through all its stages. On the second reading, the Duke of Wellington objected that it was not only an act for the naturalization of Prince Albert, but contained also a clause entitling the prince, “for and during the term of his natural life, to take precedence in rank after her majesty, in parliament and elsewhere, as her majesty may think fit and proper; any law, statute, or custom to the contrary notwithstanding.” Under these circumstances, his grace moved that the debate be adjourned, as the house had not sufficient notice of the contents of the bill, and as the title of it did not state anything respecting the precedence of the prince. Lord Melbourne replied, that the omission was purely accidental, and, in his opinion, of no importance. At the same time his lordship admitted that this bill differed in form from any other bills, inasmuch as it gave her majesty an ability to bestow on Prince Albert a higher station than that assigned to Prince George of Denmark, or Prince Leopold. But the reason for the difference, he contended, was to be looked for in the relative situation of the parties. The arrangements with regard to the marriage of the Princess Charlotte were temporary; in this act it was intended to raise the prince to a station next to that of the queen; and no opposition had been offered to this course by those peculiarly interested in point of rank. After a few observations from Lords Brougham and Londonderry, the debate was adjourned till the following week, when the lord-chancellor stated that he should propose that power be given to the crown to allow the prince to take precedence next after any heir-apparent to the throne.

Subsequently, however, Lord Melbourne, in moving the committal of the bill, expressed himself so anxious that it should pass with all possible expedition, that he

had determined to leave out all relating to precedence, and reduce it to a naturalization bill, as expressed in the title. In that shape the bill passed without further opposition. In the commons the bill was passed without discussion.

THE CIVIL-LIST.

On the 24th of June, after moving that the paragraph in the queen's speech relative to Prince Albert's annuity be read, Lord John Russell went into a long detail of precedents of grants to princes and princesses allied to the royal family of England; and concluded by moving "that her majesty be enabled to grant an annual sum of £50,000 out of the consolidated fund, for a provision to Prince Albert, to commence on the day of his marriage with her majesty, and to continue during his life." The debate was adjourned for a few days, and on its resumption Mr. Hume moved as an amendment, that £21,000 be voted annually to Prince Albert, instead of £50,000. In his opinion, indeed, no grant should be made during her majesty's lifetime. The chancellor of the exchequer replied to Mr. Hume, and several members spoke in opposition to the grant; after which the house divided, on the amendment, which was lost by a majority of three hundred and five against thirty-eight. Ministers, however, were doomed to be defeated on this question. Colonel Sibthorp had given notice that he would move an amendment that £30,000 should be the extent of the annuity; and on the defeat of Mr. Hume's motion, the gallant colonel rose to move this amendment. On a division it was carried by a large majority, the numbers being two hundred and sixty-two against one hundred and fifty-eight. This was a great triumph over the ministers, and Colonel Sibthorp was so elated by it, that he endeavoured to follow it up a week or two afterwards by moving for the insertion of a clause in the bill for Prince Albert's provision, to the effect that the annuity of £30,000 should cease altogether in case his serene highness should reside for a less period than six months consecutively in each year within the United Kingdom of Great Britain and Ireland, or should ally himself in marriage with any foreign princess who should not be a Protestant, or should cease to profess and adhere to the Protestant religion as by law established in these realms. Both Sir Robert Peel and Lord John Russell contended that such restrictions were inexpedient and inconsistent, and the gallant colonel, finding that there was no chance of success, did not press his motion to a division.

QUESTION OF PRIVILEGE—HANSARD AND STOCKDALE.

In the year 1835, a bill was proposed in the house of lords, by the Duke of Richmond, for the purpose of appointing inspectors of prisons. In the report of these inspectors, which was printed by Messrs. Hansard, it was stated, that amongst other books in use by the prisoners, one published by John Joseph Stockdale, in 1827, was of the most disgusting nature, the plates being obscene and indecent in the extreme. In 1836, Stockdale brought an action against Messrs. Hansard for the sale of this report, on the ground that the allegation therein contained about the work was a libel. The defendants pleaded two picas: first, "Not guilty;" and, secondly, "That the words complained of in the declaration were true." The jury gave a verdict for the defendants on the second plea; and in his charge to the jury, Lord Denman said that the fact of the house of commons having directed Messrs. Hansard to publish all their

parliamentary reports, is no justification for them, or for any bookseller, who publishes a parliamentary report containing a libel against any man. On the 6th of February, 1837, Messrs. Hansard communicated to the house of commons that legal proceedings had been instituted against them by Stockdale, for the publication of the report, in which he conceived himself to have been libelled. A select committee was then appointed by the house to examine precedents, and report upon the question of its privileges in regard to the publication of reports and other matters. This committee decided in favour of the privilege, which would protect any publication ordered by the house from being made the subject of an action for libel; and the house of commons, on the 30th of May, 1837, passed the following resolutions:—"First, that the power of publishing such of its reports, votes, and proceedings as it shall deem necessary, or conducive to the public interest, is an essential incident to the constitutional freedom of parliament, more especially of this house, as the representative portion of it.—Second, that by the law and privileges of parliament, this house has the sole and exclusive jurisdiction to determine upon the existence and extent of its privileges; and that the institution or prosecution of any action, suit, or other proceedings, for the purpose of bringing them into discussion or decision before any court or tribunal elsewhere than a parliament, is a high breach of such privilege, and renders all parties concerned therein amenable to its just displeasure, and to the punishment consequent thereon." The action, however, went on; and Messrs. Hansard pleaded to the declaration to the effect that the publication in question was a privileged one, on the ground that it was issued by the authority of the house of commons. This plea was demurred to as insufficient in point of law; and judgment was given by the court against the defendants, and damages afterwards assessed, which were paid over to the plaintiff. On the 31st of July, 1839, Messrs. Hansard again informed the house that similar legal proceedings were threatened against them on behalf of a Mr. Polack on account of some alleged defamatory matter contained in a report of the state of New Zealand, which had been published by order of the house of commons. In this case they were directed by the house not to take any step towards defending the action with which they were threatened; but subsequently Mr. Polack communicated to the house that proceedings had been commenced without his sanction, and that he had no intention of taking any legal steps in the matter. The matter seemed thus set at rest; but on the 26th of August, Stockdale commenced a third action against Messrs. Hansard, for again publishing the same libel; the sale of each copy of the report containing the alleged libel being, in contemplation of law, a fresh publication of it. This was also communicated to the house of commons; and Messrs. Hansard were again directed that the action should not be defended. In consequence of this direction Messrs. Hansard served Stockdale with formal notice of the resolutions of the house of commons; but notwithstanding this, on the 26th of October, Stockdale filed a declaration in the said action, wherein the damages were laid at £50,000. On the 1st of November intercalatory judgment was signed for want of a plea; and then Messrs. Hansard again caused notices against proceeding with the said action, together with fresh copies of the resolutions, to be served upon Stockdale. The action, however, went on; notice was given that a writ of inquiry of damages would be executed before the sheriff of Middlesex on the 12th of November. This writ was executed, when the sheriffs' jury assessed the

damages at £600. Stockdale then applied to the court of Queen’s Bench for a rule to compel the sheriff to return the writ of inquiry. This was ordered; and on the 23rd of November a writ of _fieri facias_ was issued and lodged with the sheriff, who thereupon took possession of the printing-office, premises, and stock in trade of Messrs. Hansard. On the 16th of December, Mr. Winsland, a builder, purchased of the sheriff goods belonging to Messrs. Hansard to the amount of £695. The sheriff, however, had not paid this money into the hands of Stockdale, when, on the 16th of January, the case of Messrs. Hansard was brought before the commons by Lord John Russell, who presented a petition from them, which prayed for such relief, under the circumstances, as the house should deem proper. His lordship said that it was incumbent upon the house to come to a decision upon the question. There was, he continued, many ways in which they might dispose of it. They might act upon their ancient and undoubted right, and vindicate the violation of their privilege by the ancient mode of commitment. That was the most constitutional course, and the one most consistent with the dignity and privileges of the house. Again, the house could, if it thought fit, direct that Messrs. Hansard should plead in all cases of future action, and thereby bring the question of privilege before the courts. They could abandon all their privileges, confining all their papers to a circulation among the members only; or they might proceed, if they thought it necessary to have the papers circulated for general use, to provide for the settlement of the question by a bill brought in for that purpose. But their present position was one which ought not to continue; and he should move that, John Joseph Stockdale, the plaintiff, Thomas Barton Howard, his attorney, William Evans, the sheriff, Mr. Burchell, the deputy under-sheriff, and the bailiff who acted in this case, be called to the bar of the house, and then it would be in the power of the house to adopt that course which, under all circumstances of the case, it might think proper to pursue. After a long discussion, in which Sir. E. Sugden, the attorney-general, and other members took part, this motion was agreed to by a majority of two hundred and eighty-six against one hundred and sixty-seven. On the following clay, January 17th, the order of the clay for taking into consideration the petition of Messrs. Hansard was read, and Lord John Russell moved that John Joseph Stockdale be called to the bar. He was accordingly called in, and placed at the bar, when the attorney-general interrogated him concerning the facts of the different actions against Messrs. Hansard in which he was plaintiff. After examining him, he was ordered to withdraw; when Lord John Russell moved that John Joseph Stockdale, having brought an action against Messrs. Hansard for the publication of a report ordered by this house to be printed, has been guilty of a high contempt and breach of the privileges of the house. Mr. Law proposed as an amendment that Mr. Stockdale be discharged from his attendance at the bar; but, after an animated discussion, the original question was carried by a majority of two hunded and forty-nine against one hundred. Lord John Russell then moved, that John Joseph Stockdale, for the said breach of privilege, be committed to the custody of the sergeant-at-arms, and that the speaker do issue his warrant for the committal. After a brief discussion, this was carried by a large majority; and on the next day the sheriffs and bailiffs were called in, and, after examination, ordered to attend on the following Monday. On that clay, the 20th of January, Lord John Russell said that it became him now to state the precise course which should be taken in the present stage of the proceedings; and,

after going at length into the whole question of privilege, he moved, “that it appeared to the house that an execution in the cause of Stockdale v. Hansard had been levied to the amount of £640, by the sale of the property of Messrs. Hansard, in contempt of the privileges of that house; and that such money then remained in the hands of the sheriff for Middlesex.” If that resolution should be carried, he should move further, “that the said sheriff be ordered to refund the said amount forthwith to Messrs. Hansard.” Mr. F. Kelly opposed this motion, and moved, by way of amendment, the following resolutions:—“That, it appearing to this house that an action has been brought against James Hansard and others, for the publication by them, under an order of this house, of certain papers containing libellous matter upon John Joseph Stockdale, and that judgment has been obtained, and execution issued by due course of law against the said James Hansard and others in such action: it is expedient that the said James Hansard and others be indemnified against all costs and damages by them sustained in respect of such action.” This amendment was supported by Sir Edward Sugden, and opposed by Sir Robert Peel and the attorney-general; and, on a division, the original motion was carried by a majority of two hundred and five against ninety. Subsequently the sheriffs were called in, and committed to the custody of the serjeant-at-arms; and Mr. Howard, the attorney of Stockdale, reprimanded by the speaker at the bar, when he was discharged. The matter, however, was not yet at rest.

On the 27th of January Lord John Russell gave notice that he had received a petition from Messrs. Hansard, stating that a fresh action had been commenced against them by Stockdale, and that a writ of summons had been issued upon them on the 25th of January, by Thomas Burton Howard, as attorney for Stockdale. A motion was carried, ordering the said Thomas Burton Howard, forthwith to attend the house: but it was not till the 6th of February that he could be found, and on that evening he was ordered to be committed to her majesty’s gaol of Newgate. Subsequently, on the 17th of February, Lord John Russell presented another petition from Messrs. Hansard, to the effect, that the fifth action had been renewed against them by Stockdale, for the same cause as before, and praying to be directed as to the course they should pursue. His lordship moved to the effect, that Stockdale, by commencing this fresh action, had been guilty of a contempt of the house, and of a breach of its privileges, and that the sheriffs, under-sheriffs, and others, who should aid in the prosecution of the said action, would be guilty of a contempt of the house, and of a violation of its privileges, and would subject themselves to the severe censure and displeasure of the house. This was carried; and on the following evening Thomas Howard, jun., the attorney in this action, was, on the motion of the attorney-general, committed to the custody of the sergeant-at-arms. In the meantime several motions had been made for the discharge of the sheriffs from prison, on the plea of ill-health. These had been all negatived; but on the 5th of March, Mr. Sheriff Evans was allowed to be set at liberty, being at the same time directed to attend at the bar of the house on Monday, the 6th of April. On the same evening Lord John Russell moved for leave to bring in a bill to give summary protection to persons employed in the publication of parliamentary papers, which was carried by a large majority; and the bill was brought in and read a third time on the 12th of the same month. On the 31st of March the

sergeant-at-arms appeared at the bar, and acquainted the house that on Saturday last the assistant-sergeant and four other officers of the house had been served with notice that an action had been commenced against them in the court of Queen’s Bench, at the suit of Thomas Burton Howard. Under the impression that a verdict would certainly be given for the defendants, the attorney-general moved that they should be allowed to appear and defend the action; a motion which, after a few words in opposition by Viscount Howick, was carried by a majority of one hundred and forty against ninety-one. On the 6th April the bill relating to the protection of persons employed in the publication of parliamentary papers was sent up to the lords; and, after making some amendments in committee, the lords passed it and returned it to the commons, who agreed to the amendments; and on the 14th April the royal assent was given to it by commission. On the 15th of April, on the motion of Sir R. Inglis, Mr. Sheriff Evans and Mr. Howard, jun., were discharged. Messrs. Thomas Burton Howard, sen., and Stockdale were still left in Newgate; but, on the 15th of May, on the motion of Mr. T. Duncombe, they were liberated likewise, and thus terminated this much-agitated and important question. In the course of the discussion in the commons the ablest lawyers spoke in favour of the particular privilege of free publication claimed by the house, as essential to the due discharge of its functions as a constituent branch of the legislature; but many of them dissented from the doctrine that it was a breach of their privilege to bring them under the cognizance of a court of law. Above all, they thought that having once submitted the case to the court of Queen’s Bench, by pleading in the action, they were bound to respect the judgment of the court; and if they considered it erroneous, to bring it under the review of a court of error, in the legal and constitutional mode, and not proceed by arbitrary imprisonment against officers who merely acted in their ministerial capacity, and who would have stood exposed to the process of attachment, if they had refused to obey the writs which the court called upon them to execute. Sir William Follett, indeed, broadly stated that the commons were enforcing their privileges in a manner that could not be maintained; that they were assuming powers which the constitution did not give them; and that he was not able to vote for any of the committals which had taken place. He did not deny that the house was the exclusive judge of its own privileges, and that they had the power of committal; but he did not think that if a servant of the house should be questioned for any act done under their orders, that they had a right to deprive the courts of law of their jurisdiction over that servant.

AFFAIRS OF CHINA, ETC.

During the last year a serious collision took place between the Chinese authorities and the British subjects at Canton. This arose out of the contraband traffic in opium. The government of China resolved to put an end to the commerce altogether, and with this view an imperial commissioner arrived at Canton. He resorted at once to decisive measures, by demanding that every particle of opium on board the ships should be at once delivered up to the government to be destroyed; at the same time requiring a bond that the ships would never again dare to introduce that article. In the event of any opium being thereafter brought, the goods were to be confiscated, and the parties were to submit to death. Should the foreigners fail to comply with these requisitions, Commissioner Lin threatened that they would be overwhelmed by

numbers and sacrificed. The whole foreign community was thrown into a state of the deepest distress at these demands; and the chief superintendent, Captain Elliot, considered it to be his duty to take his own countrymen under his protection. He issued a circular, requiring the surrender into his hands of all the English opium actually on the coast of China. On the 3rd of April, however, 20,283 chests of opium were delivered over to the commissioner, from the ships which had assembled for that purpose below the Bocca Tigris. Some merchants had been imprisoned by the Chinese authorities; but on the 4th of May leave was given for all to quit Canton with the exception of sixteen individuals, who ultimately took their departure with injunctions never to return. Captain Elliot immediately ordered every subject of her majesty out of the river; but he did not himself remove from Canton until the 25th of May, when the proscribed persons had been released, and there remained no other British subject in jeopardy. When they were out of danger, he immediately wrote to the governor-general, detailing the course of violence and spoliation which had broken up this great trade; and at the same time applied for armed vessels from the Indian station to protect life and property. Later in the year the breach was widened by an affray which took place at Macao, between some English sailors and Chinese villagers, in which, unfortunately, one of the latter was killed. Commissioner Lin demanded of Captain Elliot that the homicide should be given up; but this was refused, and in consequence an edict was issued by Lin prohibiting any provisions or other articles being supplied to the British at Macao. The British superintendent subsequently removed his residence to Hong Kong, off which lay the _Volage_ frigate, commanded by Captain Smith. At the latter end of the year Commissioner Lin issued an edict against the importation of any British goods, in which he ordained that a bond should be required from any vessel entering the port, certifying that it did not contain any British property on board, and consenting to the confiscation of the ship and cargo, if any such should be therein discovered. In his edict, Commissioner Lin gave all foreigners to understand that it was no use to deceive the Chinese; for there were skilful translators and interpreters among them, who would certainly ascertain the country from whence they came. In this state of affairs. Captain Elliot sent a petition to Commissioner Lin,’ entreating for the restoration of the trade with Canton, until he received further advice from England. The commissioner replied by a haughty refusal; enumerating all the offences of which, in the eyes of the “great pure dynasty,” the British had been guilty; and declaring that, until the murderer of the Chinese was given up, there could be no intercourse allowed between the two nations. But notwithstanding this peremptory refusal, a temporary adjustment of the matters in difference so far took place, that Commissioner Lin permitted the commerce of Great Britain to be carried on below the Bocca Tigris until further instructions should be received from England. The high-commissioner still insisted that the captains of all vessels which traded with Canton should sign the required bond; and this was unfortunately consented to by Mr. Warner, master of the ship _Thomas Coutts_. The consequence of this consent was, that Commissioner Lin determined to break off the arrangement concluded, unless the whole British shipping which was re-entering the Bocca Tigris should agree to the same terms: if not, the vessels were again to depart, or be destroyed. Matters now proceeded to extremities; and the Chinese soon received a lesson from British artillery. Finding

that the inhabitants of the celestial empire were preparing to attack the fleet, and that Admiral Kwan lay in considerable force near Chuenpee, two English frigates, the _Volage_ and _Hyacinth_, were removed to that neighbourhood. Captain Elliot now prepared another address to Commissioner Lin, and then went on board the _Volage_ frigate. That vessel took up her station, on the 2nd of November, not far below the first battery, where an imposing force of war-junks and fire-vessels was collected. On the 3rd, the Chinese squadron, consisting of twenty-nine sail, anchored close to the British vessels, and their attitude became so menacing that Captain Smith, of the _Volage_, resolved to compel them to return to their former anchorage. A brief action took place, which told with terrible effect on the celestials: one war-junk blew up at a pistol-shot distance from the _Volage_, three were sunk, and several others water-logged. In about half-an-hour Admiral Kwan and his squadron retired in great distress to their former anchorage, no obstruction being offered to their retreat. But notwithstanding their palpable defeat, as the English ships soon after set sail for Macao, the Chinese claimed the victory. But this was only the beginning of their sorrows. At the close of the year the English government determined to send an expedition into the Chinese seas, which should be sufficient to attain all the ends we had in view, and compel the great pure dynasty to acknowledge the principles of international law which were acted upon by all the civilized nations of the earth. This armament, which consisted of eight ships of war with frigates, transports, and steamers, arrived at its place of rendezvous at Singapore, in the month of April of the present year. It was placed under the command of Admiral Elliot; Commodore Sir J. J. Gordon Brewer was next in command, and Major-General Burrell had the command of the military force. Previous to this an edict had been issued, warning all foreign vessels from anchoring near the devoted English ships, lest they should be involved in the destruction preparing for the latter—“lest the gem should be consumed with the common stone.” The first arrival of this armament in the Canton river was her majesty’s ship _Alligator_, Captain Kuper, on the 9th of June. Previous to this the Chinese authorities at Canton had sent a boat-load of poisoned tea, packed in small parcels, to be sold to the English sailors. This boat was captured by Chinese pirates, and her cargo sold to their own countrymen, many of whom died in consequence. A proclamation was issued, by the Chinese authorities, offering rewards to all who should destroy the English, and who should be able to capture an English man-of-war. An attempt was indeed made to burn the British shipping, but this happily failed, and then Sir J. J. Gordon Brewer gave public notice, that on and after the 28th of June, a blockade of the river and port of Canton would be established. The commodore, however, with several ships, sailed northward in the direction of Cliusan, and he was followed on the 28th by Admiral Elliot and Captain Elliot. The Chinese authorities now bestirred themselves vigorously to meet the danger. By a proclamation issued on the 2nd of July, the people were called upon to unite heart and hand with the government in opposing the barbarians. All the proclamations and precautions of the Chinese, however, were vain. On Sunday, the 5th of June, the British captured Chusan: for the first time British cannon wrested from his celestial majesty a portion of his dominions.

The policy of government with reference to the affairs of China was made the subject of a series of condemnatory resolutions in parliament. These were brought forward by Sir James Graham on the 7th of April, who introduced the subject by calling the attention of the house to the magnitude of the interests involved in our relations with China. The right honourable baronet then went into a detailed history of the disputes of which a brief account is given above; and finally concluded by moving, that “it appears to the house, in consideration of the papers relating to China, presented to this house by command of her majesty, that the interruption in our commercial and friendly intercourse with that country, and the hostilities which have since taken place, are mainly to be attributed to the want of foresight and precaution on the part of her majesty’s present advisers in respect to our relations with China; and especially to their neglect to furnish the superintendent at Canton with powers and instructions calculated to provide against the growing evils connected with the contraband traffic in opium, and adapted to the novel and difficult situation in which the superintendent was placed.” Mr. Macauley replied to Sir James Graham; and a long debate ensued, in which the motion was supported by Sir W. Follett, Messrs. Thesiger, Sidney Herbert, W. E. Gladstone, and G. Palmer; and opposed by Sirs George Staunton, S. Lushington, and J. C. Hobhouse, and Messrs. Hawes, C. Buller, and Ward. The debate was closed by powerful speeches from Sir Robert Peel in support of the motion, and Viscount Palmerston against it. On a division the motion was negatived by a majority of two hundred and seventy-one against two hundred and sixty-two.

THE IRISH MUNICIPAL CORPORATIONS BILL, ETC.

The second reading of the Irish municipal corporations bill was moved on the 14th of February in the commons by Viscount Morpeth. It was carried by a majority of one hundred and forty-nine against fourteen; and the house, on the 24th of February, went into committee on the bill, when several amendments were proposed and negatived. The bill was read a third time in the commons on the 9th of March; but the second reading was not moved in the lords until the 4th of May. The Earl of Winchilsea moved that the bill be read a second time that day six months, which amendment was supported by the Marquis of Westmeath; but the Duke of Wellington recommended their lordships to vote for the second reading; and, after a few words from Viscount Melbourne, it was carried by a large majority. The house went into committee on the 19th of June, when the Bishop of Exeter delivered a powerful speech against it. Their lordships, however, went into committee, and Lord Lyndhurst proposed several amendments, which were ordered to be printed. On a subsequent evening, Lord Lyndhurst explained the nature of his amendments, and when the house was in committee, he moved and carried an amendment which went to preserve the inchoate rights of freemen, which under this bill were threatened. Several other amendments were agreed to without a division, and some clauses were struck out; and on the 6th of July the bill was recommitted in the house of lords. The third reading was moved by Viscount Duncannon on the 31st July, when Lord Lyndhurst proposed and carried an amendment relating to the recorder of Dublin. He proposed to strike out of the 161st clause, which had reference to the holding of the recorder’s court, these words, “or as the lord-lieutenant shall from time to time think

fit to direct." This proposition was resisted by ministers, but was carried by a majority of sixteen. On the question that the bill do now pass, it was again opposed by the Bishop of Exeter, who predicted that "it would not, and could not come to good;" but it passed, and the bill was, on the 3rd of August, brought down to the commons.

After a brief discussion in the lower house, managers were appointed to conduct a conference with the lords on the subject of their amendments, and the result was more harmonious than heretofore: in some things the commons gave way to the lords, and in others, the lords gave way to the commons; and by this mutual concession, the bill finally received, on the 10th of August, the royal assent.

On the 14th of February Mr. Labouchere moved the second reading of the importation of flour info Ireland bill, which, after some opposition offered by Mr. E. Tennent, was carried by a majority of one hundred and fifty-four against one hundred and two.

FINANCIAL STATEMENT, ETC.

The ministerial budget was brought forward on the 15th day of May. The total income of the year 1840 amounted to £47,685,000, and the total expenditure £49,300,000; leaving a deficiency of £1,457,000. With a view of meeting this deficiency, however, a vote of £1,000,000 of exchequer-bills had been taken, which reduced the balance to £457,000. Mr. Baring calculated the expenditure of the current financial year to be £49,432,000, and the income £46,700,000. To meet the deficiency he proposed to increase the assessed taxes fen per cent.; the customs and excise five per cent.; to lay an additional duty of fourpence per gallon on all spirits, British, colonial, and foreign; and to take a vote of credit of £395,000. He, expected, also, that by a more strict collection of the assessed taxes he should obtain £150,000. His income and expenditure would thus be made equal; but as the increase to be derived from raising the duties would not be available to the full extent this year, he thought it would be necessary to take a vote of credit for £350,000. He concluded by moving resolutions authorizing him to make the proposed additions to the taxes.

THE UNION OF THE CANADAS.

On the 23rd of March Lord John Russell moved for leave to bring in a bill for the union of the Canadas. His lordship said, that he had allowed no time to elapse since the arrival of the propositions from the governor-general of Canada, who had taken the greatest pains to ascertain the sentiments of the people in that colony upon the measure he was about to introduce. In his opinion the union would not have been expedient, had it been repugnant to the feelings of the Canadians themselves. "But," continued his lordship, "the council of Lower Canada have been called together, and have passed resolutions agreeing to the principle of an union, but leaving the details to the imperial parliament. In Upper Canada, the measure has been much discussed, both in the assembly and the legislative council; and, after a full consideration of the whole question, a resolution in favour of the union was passed, unfettered by any restrictions or conditions." His lordship proceeded to state the nature of the proposed union. With regard to the legislative council and assembly, it was proposed, that, together with the governor, they should form the legislature; and that the crown, or

the governor on the part of the crown, should appoint the legislative crown councillors. The nomination of the council was to be for life, the only disqualification being bankruptcy or crime. It was further proposed that the number of representatives sent by Upper and Lower Canada should be equal, with the power of adding members as the population increased. Thirty-nine members were to be allowed to each province, and distributed without any great alteration of the existing boundaries. In Upper Canada, the towns of Kingston, Hamilton, Brockville, London, Niagara, and Cornwall, and in Lower Canada, Montreal, Quebec, and the three Rivers were each to send one member; the rest of the members for each province were to be returned by districts which were to be denominated “counties.” Lord John Russell next entered upon the question relating to the laws, and to the mode in which they were to be enacted. A general power only was to be given to the assembly to enact laws: certain subjects were to be reserved for the assent of the crown, such as those pointed out by the constitutional act of 1791. It was proposed that money-votes should not originate with the assembly; but that a message from the governor, giving the assembly the power of addressing him, should precede any vote on such matters. A permanent appropriation was to be made for the governor and judges, and the civil secretary and all the various expenses connected with the civil establishments were to be voted, either for a period of years, or during the life of the queen. It was also proposed that the duties included in the act introduced by the Earl of Ripon, and collected under the 14th George III., should become part of the crown revenue. His lordship continued to say, that in Upper Canada there was already the form of a municipal government: there were townships and elective offices; and they had likewise districts formed of two or more counties, which were attached to the local courts for the administration of justice: but their powers were limited. He proposed that the power of these municipal councils should be increased, and that they should be enabled to lay a tax of threepence an acre upon all lands. The same authority in local matters was to be granted to the municipal courts in Lower Canada—that of forming districts and settling the boundaries of such districts. His lordship concluded by making some remarks on the clergy reserves, in the course of which he stated that a bill had been passed by the Upper Canada assembly, which proposed that the clergy reserves should be sold, and that one half of the proceeds should be given to the churches of England and Scotland, and that the remaining half should be divided among the clergy of all denominations of Christians recognised by certain acts of the province, such as that of registration. His lordship thought that this bill would give general satisfaction; but Mr. Hume stated that the noble lord was mistaken in supposing that such a bill would settle discontent in Canada. The Canada union bill was read a first and second time without opposition; and on the 29th of May Lord John Russell moved that the house should go into committee on its details. After a few words in opposition from Messrs. Pakington and O’Connell, and in support of it by Messrs. Gladstone and Charles Buller, the house went into committee, and the various clauses of the bill were all agreed to almost unanimously. The third reading was carried by a majority of one hundred and fifty-six against six. In the course of the discussion Sir Robert Peel had suggested that the civil-list should be charged on the consolidated fund of the provinces, and Mr. Ellis had proposed the omission of all the clauses relating to district councils; and on a subsequent evening Lord John Russell

intimated that he should adopt those suggestions. On the second reading in the house of lords, on the 30th of June, a considerable discussion took place; but the bill was allowed to go into committee without a division. In committee the Duke of Wellington moved that the commencement of the operation of the act should be postponed to fifteen months, instead of six, after its passing, as proposed by government; and Lord Ellenborough moved a clause to empower the governor and two-thirds of the council to suspend any member guilty of unworthy and disreputable conduct. Both these amendments were agreed to, and the bill afterwards was read a third time. A bill introduced by Lord John Russell for the sale of the Canada clergy reserves also subsequently passed, without much opposition, through both houses of parliament.

ECCLESIASTICAL DUTIES AND REVENUES BILL.

During Sir Robert Peel’s administration in 1835 an ecclesiastical commission had been appointed for the purpose of considering what changes could be made in the distribution of the revenues of the church of England with benefit to the establishment and to the community at large. These commissioners had made their report, and her majesty in her speech at the opening of parliament had advised the prosecution of the measures recommended by the commissioners. The plan chiefly consisted in a modification of the constitution of chapters and cathedral colleges, and in the reduction of the expenses of cathedral establishments to a large amount; the saving to be expended in the augmentation of small livings, and the supplying the existing want of spiritual instruction by means of additional churches and resident clergymen. The measure for these purposes, which was introduced in the commons by Lord John Russell, created but little discussion and still less opposition; but in the house of lords it was not looked upon with so much favour. The second reading was moved by Lord Melbourne on the 27th of July, and was carried by a majority of ninety-nine against forty-eight. The house subsequently went into committee, and some amendments were proposed, but none which affected the leading principles of the bill.

THE REGENCY BILL.

In consequence of a message from the crown, a bill was passed during this session, appointing his royal highness Prince Albert regent in the possible event of her most gracious majesty’s decease, during the minority of any issue to her majesty, whilst such issue should be under the age of eighteen years, and for the care and guardianship of such issue. This bill was introduced by the lord-chancellor on the 16th of July, and was passed with the unanimous approbation of both houses of parliament.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by her majesty in person on the 11th of August. The speech congratulated both houses on the termination of the civil war in Spain; and informed them that the government of Portugal had made arrangements for satisfying certain just claims of some of her majesty’s subjects, and for the payment of a sum due to this country under the stipulations of the convention of 1827. Her majesty further said that she was engaged, in concert with the Emperors of Austria

and Russia and the King of Prussia, in measures tending to effect the permanent pacification of the Levant. After alluding to the disputes with China, her majesty proceeded to make some remarks on the subject of Canada and the legislative bodies of Jamaica, &c.: and the speech concluded with an expression of regret that it had been found necessary to impose additional burdens upon the people.

AFFAIRS OF BRITISH INDIA.

The army of the Indus having achieved the object for which it had been sent to the north-western extremity of India, by seating Shah Soojah-ool-Moolk on the throne of Cabul, and by storming the fortresses of Ghuznee and Khelat, commenced its retrograde march in the middle of October. 1839. The army marched in two divisions, one to Bengal, under Sir J. Keene and the other to Bombay, by the Bolau Pass and Scinde. At this time Dost Mohammed seemed shorn of his power; he had retired across the Hindoo Koosh, the passes of which were guarded, and the chiefs of Balkh and Bokhara refused to join him. But although the prowess of British arms had wrested from him the throne of Afghanistan, Shah Soojah was by no means secure of it a moment longer than he was supported by European aid, The precarious tenure by which he held his power was seen early in this year, when Syed Hoshein, the chief of Koona, sent a letter to his majesty, couched in the most insulting terms, and stating that, as he had heard the Russians were advancing, it was his intention to join them. On hearing this Sir Willoughby Cotton, who commanded one division of the force which was returning to Bengal, despatched Colonel Orchard from Jellalabad, with a body of troops to attack the fort of Pooshat, where the Koona chief resided. Pooshat was captured, but Syed Hoshein escaped. The state of Affghanistan, however, still remained unsettled, for Dost Mohammed was employed with restless activity in intriguing among the native princes, with a view to recovering the throne which he had lost; and at the close of the year the British troops which had been left to support Shah Soojah imperatively demanded refreshment and repose. In testimony of the services of the army of the Indus, Lord Auckland resolved that all the corps, European and native, in the service of the East India Company, which proceeded beyond the Bolau Pass, should have on their regimental colours the word “Affghanistan,” and such of them as were employed in the reduction of the fortress of that name the word “Ghuznee” in addition. In the same general order he stated, on behalf of the queen’s regiments, that he would recommend to her majesty that the same distinction should be granted to them. Besides this complimentary notice, Lord Auckland ordered that a donation of six months’ full or field batta should be given to officers and men of every rank attached to the army who advanced beyond the Bolau Pass.

THE MARRIAGE OF THE QUEEN.

Her most gracious majesty Queen Victoria was married to Prince Albert of Saxe-Cobourg-Gotha on the 10th of February. This event gave great satisfaction to the people generally, both in the dominions of her majesty and in the duchy of Saxe-Cobourg-Gotha.

STATE OF THE CONTINENT.

During this year the Carlists in Spain were compelled to give up the contest which they had so long carried on against the queen regent. All the principal places held by the chiefs of that party still remaining in the country, fell into the hands of the Christino generals; and Cabrera and Balemaseda took refuge in France, while Borso, another Carlist leader, was captured and shot. In the spring of this year a question arose with the Neapolitan government and the British cabinet, which led to hostilities on the part of England, and at one time threatened to involve other powers in Europe in a general quarrel. This question related to the “sulphur monopoly.” A treaty existed which gave certain commercial advantages to England in respect of sulphur, and the treaty set forth that the Neapolitan government was not to grant any state mercantile privileges hostile to the British interests. But notwithstanding this distinct stipulation, the King of Naples granted some natives of France, in 1838, as well as others of different countries, a monopoly of all the sulphur produced and worked in Sicily. Great Britain naturally considered this grant to be a direct infraction of the stipulation of the existing treaty; and Lord Palmerston called on the Neapolitan government for the immediate termination of the monopoly, and full indemnity for all losses sustained by British subjects arising therefrom. The king professed to comply: Prince Cassaro, the minister for foreign affairs, wrote a note to Mr. Kennedy, stating that the monopoly should be abolished, and that the King of Naples acted thus in deference to England. Shortly afterwards, however, his Neapolitan majesty signified to the British minister that he had determined not to consent to the demands of Great Britain, he not considering the sulphur contract a violation of the treaty of 1816. The British government now proceeded to enforce its demands: orders were sent to Admiral Sir R. Stopford, in the Mediterranean, to hold himself in readiness to commence active hostilities against the Neapolitan flag. Hostilities commenced on the 17th of April by the British ships of war in the vicinity of Naples; an embargo was laid on all in the ports of Malta that bore the Sicilian flag. At first the king prepared to resist: but he was induced finally to accept the proposed mediation of France, in adjusting the quarrel, on the principle that the monopoly should be dissolved, and an indemnity given to the contractors. Early in May amicable relations between the courts of England and Naples commenced. In the month of July this year, the affairs of the Levant were brought to a crisis. A convention was signed at London between England, Russia, Austria, and Prussia—France declined to concur in it; whereby the following ultimatum was offered to the viceroy of Egypt. He was to have the hereditary sovereignty of Egypt, and the possession of the pashalic of St. Jean d’Acre for life. If within ten days from the notification of these terms the pasha should not accept them, the Sultan was to offer him Egypt alone; and, if he still persisted in refusing, the four powers were to compel him by force to accede to the proposed settlement. Disliking the terms, Mehemet Ali endeavoured to gain time by offering a negociation with the Porte: Rifat Bey was sent to Constantinople with certain proposals; but these were not deemed satisfactory; and the Sultan, acting upon intemperate advice, pronounced the formal deposition of the Sultan of Egypt from his pashalic, and sent a firman to Alexandria to notify that event. Mehemet Ali intimated his intention of repelling force by force; and it was then resolved by the four powers that the ports of Syria and Egypt should be declared to be in a state of blockade. Captain Napier immediately captured some Egyptian vessels off the coast of Syria;

and on the 9th of September, Admiral Stopford appeared off Beyrout, and the next day made preparations for bombarding and taking that town and fortress. Beyrout was captured, and the troops of Ibrahim Pasha, which consisted of 14,000 men, subsequently dispersed, while he himself fled to Damascus. The ports of Syria and Alexandria were now strictly blockaded, and in a short time after, Tripoli, Tortosa, and Latakia were evacuated by their Egyptian garrisons, St. Jean d'Acre was next captured, and the Egyptian garrisons in Caiffa and Jaffa immediately evacuated those places; and while they were endeavouring to force for themselves a passage through Palestine into Egypt, were taken prisoners of war. The Syrian tribes, which had hitherto been in the interest of the Pasha of Egypt, now declared in favour of the Sultan, and on the 19th of November the Seraskier was informed that the garrison and inhabitants of Jerusalem had returned to their allegiance to the Porte. About this time negociations were commenced between Commodore Napier and the Pasha of Egypt, but the year closed before a convention was ratified. In Holland, this year was signalized by the abdication of its monarch, William I. In the month of October he voluntarily laid down the crown, and was succeeded by his eldest son, the Prince of Orange, who ascended the throne by the title of William II. In Prussia there was also a change in the monarchy: Frederick William III. expired at Berlin on the 7th of June, and he was succeeded by his son Frederic William IV.

CHAPTER LII.

{VICTORIA. 1841—1842}

Meeting of Parliament..... Poor-law Amendment Act..... Jews' Civil Disabilities Removal Bill..... Church of Scotland; Non-intrusion Question, &c. Law Reform..... Financial Statements..... Discussion on the Corn-laws..... Resolution of Want of Confidence in the Government..... Prorogation and Dissolution of Parliament..... State of Parties..... Meeting of the new House of Commons, &c. Resignation of Ministers..... Sir Robert Peel's Administration..... Statement of Sir Robert Peel as to his intended Course of Proceeding, &c. Financial Statement..... Poor-laws, &c. East India Affairs..... State of the Continent.

MEETING OF PARLIAMENT.

{A.D. 1841}

Parliament was opened by her majesty in person, on the 26th of January. Her majesty's speech chiefly referred to the posture of affairs in the Levant and China, and to serious differences which had arisen between Spain and Portugal about the execution of a treaty concluded by those powers in 1835, for regulating the navigation of the Douro.

On the 4th of February the Earl of Minto moved the thanks of the house to Admiral Sir Robert Stopford, G.C.B., and the officers and men under his command in the late operations on the coast of Syria. This motion was carried _nem. con_. The same

unanimity prevailed also in the commons on the same subject.

POOR LAW AMENDMENT ACT.

On the 29th of January Lord John Russell moved in the house of commons for leave to bring in “a bill to continue the poor-law commission for a time to be limited, and for the further amendment of the laws relating to the poor in England.” The powers of the commissioners were to be continued for ten years, and when his lordship had made this known, several members, as Sir. Burdett, and Messrs. Wakley and Hume, opposed such an extension of powers to them. Leave, however, was given to bring in the bill on the 8th of February; and an important debate took place on the second reading. The debate was opened by Mr. D’Israeli, who opposed the bill, and moved that it should be read that day six months. Mr. Wakley seconded this amendment. The motion was carried by a majority of two hundred and one against fifty-four. But although the principle of the bill was thus emphatically confirmed, yet on several occasions the attacks upon it were renewed by its opponents with much acerbity. Upon the motion for the committal of the bill, Mr. Townley Parker moved, and Mr. Grimsditch seconded the motion, that it should be committed that day six months: but this was negatived by a large majority, and the bill was committed. When the bill was in committee, government gave up the longer period of ten years for the continuance of the powers of the commissioners, and reduced it to five, in deference to the opinion expressed by Sir Robert Peel, and other members. After this, the bill was considerably delayed in its progress by a great variety of amendments suggested by members on both sides of the house, to several of which government assented, and one or two of which were carried against the wishes of ministers.

JEWS’ CIVIL DISABILITIES REMOVAL BILL.

During this session, Mr. Divett, one of the members for Exeter, introduced a bill, the object of which was to do away with the declaration required by the municipal corporations act from all persons taking corporate offices, by reason of which members of the Jewish persuasion had been debarred from holding civic magistracies. This bill was opposed on the second reading by Sir R. Inglis; but on a division it was carried by a majority of one hundred and thirteen against twenty-four. On the third reading Mr. Gladstone moved that it be read that day six months; a motion which was seconded by Mr. Pringle; both objecting to the principle of the bill, as hostile to the constitution and repugnant to the feelings of Christians. Mr. Macauley and Lord Sandon supported, and Mr. Goulburn and Sir R. Inglis opposed the measure. The third reading was carried in the commons by a majority of one hundred and eight against thirty-one; but the bill experienced a different fate in the house of lords. It passed a second reading; but on the third reading its rejection was moved by the Bishop of Llandaff, which was carried by ninety-eight against sixty-four: the bill was consequently lost.

CHURCH OF SCOTLAND: NON-INTRUSION QUESTION, ETC.

On the 1st of May, the Duke of Argyle introduced a measure with reference to the right of patronage in the church of Scotland: a question which had been long the subject of controversy. In introducing his bill, the noble duke, after referring to the

history of the various acts of the legislature affecting the right of patronage in the church of Scotland, proceeded to read some letters from Drs. Gordon and Chalmers, and others of the dominant party in the church, with the view of showing that the total abolition of patronage, as by law established, was not the means by which this party desired the settlement of the existing differences. The object of the bill proposed, the noble duke subsequently explained, was to give effect to the principle of non-intrusion on the right of the congregation to give their approval or dissent to the appointment of any presentee that might be offered them by the patron. He felt convinced, he said, that unless some measure to this effect were passed, the most lamentable consequences to the church of Scotland would ensue, and there can be no doubt but a secession of a large number of the members of the church would take place; while, if the principle of non-intrusion were conceded, the surest means would be taken to put an end to the agitation of those who were opposed to patronage. Lord Aberdeen said that he wished to give full expression to the genuine and honest feelings and wishes of the people in these matters, but he could not give his support to a measure which might lead to the monstrous consequence of compelling the presbytery to reject a presentee, though he were objected to for no other reason than because he had been presented, or because he had been compelled to take the oath of allegiance. Lord Dunfermline and the earl of Haddington opposed, and the marquess of Breadalbane supported the measure, and it was read a first time. On the 27th of May, the general assembly of the church of Scotland deposed seven clergymen of the presbytery of Strathbogie, and these seven ministers appealed to parliament. A petition was presented from them on the 15th of June, by Lord Aberdeen, in which they called upon the house to save them, by its interference, from the consequences of the sentence which had been pronounced. This petition gave rise to a discussion in the house of lords, but no step was taken for the restoration of the deposed ministers.

LAW-REFORM.

During this session there was a further mitigation of the criminal code. Two bills were introduced for this purpose in the house of commons. The first of these was introduced by Mr. Kelly, who proposed to abolish the punishment of death for all the crimes still capital, except murder and treason. This motion was seconded by Mr. Ewart, and the bill was brought in; but shortly afterwards a measure was introduced on the part of government, by Lord John Russell, which proposed to abolish the punishment of death in certain cases of embezzlement; for the offence of returning from transportation; for burning ships, where the act involved no treasonable intent; and for the crime of rape. Mr. Kelly approved of this measure as far as it went, but contended for the superiority of his own more comprehensive measure. He particularly objected to leaving the offence of setting fire to ships in the royal dock-yards capital, and to retaining the punishment of death for attempts to murder. Mr. Kelly’s bill went first into committee; but he experienced so many defeats that he was induced to leave government to deal with their own measures on the same subject. The result was, that near the close of the session a bill was passed, whereby the punishment of transportation for life is substituted for death in all cases of forgery and embezzlement, which had before remained capital, and the crime of rape

is made subject to the same mitigated penalty.

FINANCIAL STATEMENTS.

On the 31st of April, the chancellor of the exchequer entered into his financial statement. When he came forward last year, he said, he had anticipated that the expenditure would amount to £49,499,000, and the income to £48,641,000; leaving a deficiency of £858,000. The results of the year had proved less favourable than he had anticipated: the expenditure had amounted only to £49,285,000, but the income had only reached £47,443,000, leaving a deficiency of more than £1,840,000. He calculated that the expenditure for the ensuing year would be £50,731,226, and the income £48,310,000, which would leave a deficiency of £2,421,000 to be provided for. In order to raise the revenue, Mr. Baring proposed to deal with the two articles, timber and sugar. The present duty on colonial timber, he said, amounted to ten shillings a load, and on Baltic timber fifty-five shillings. These duties he proposed to modify, by raising that on colonial to twenty shillings, and reducing that on Baltic to fifty shillings a load, by which he anticipated an increased revenue of £750,000. He next explained that the alteration which he intended to propose in the sugar-duties would still leave a protection of fifty per cent. to colonial sugar. He would leave, he said, the duty on colonial sugar at the present amount of twenty-four shillings per cwt., but that on foreign sugar, amounting to sixty-three shillings, he proposed to reduce to thirty-six shillings per cwt.; from which change he expected an augmentation of revenue of £700,000. There would still, he said, be a deficiency to be provided for. But Lord John Russell had that evening given notice of his intention at an early period to submit the question of the corn-trade to the consideration of the house; and if the propositions of his noble friend were agreed to, he should be under no uneasiness about the deficiency; if not, it would be his duty to make provision by direct taxation. Messrs. Hume, Ward, Villiers, and other members, expressed their satisfaction at the propositions of the chancellor of the exchequer, while Lord Francis Egerton, Viscount Sandon, Sir Robert Peel, and Messrs. Goulburn and Christopher, complained of them, and especially of the announcement of an intended alteration in the corn-laws. The debate on the budget was protracted to a considerable length, and the nature of the discussion will be seen in the following article.

DISCUSSION ON THE CORN-LAWS.

The announcement made by Mr. Baring, that an alteration in the corn-laws was contemplated by government, caused the anti-corn-law party to set to work with activity to organize new associations, to despatch lecturers and emissaries, which might rouse the public mind throughout the country, and to get up requisitions for public meetings in the principal towns. In parliament, also, the opposition lost no time in coming to the attack. On the 3rd of May, the Duke of Buckingham presented one hundred and twenty petitions against a repeal of the corn-laws.

In the house of commons, Viscount Sandon gave notice of the following resolution, which he would move on going into the committee of ways and means: “That, considering the efforts and sacrifices which parliament and the country have made for the abolition of the slave-trade and slavery, with the earnest hope that their

exertions and example might lead to a mitigation and final extinction of those evils in other countries, this house is not prepared, especially with the present prospects of the supply of sugar from the British possessions, to adopt the measure proposed by her majesty's government for the reduction of the duty on foreign sugars." Lord John Russell gave notice, in the event of the house not going into committee on the sugar duties, and Viscount Sandon's resolution being put from the chair, he should move a counter-resolution; namely, "That it is the opinion of this house, that it is practicable to supply the present inadequacy of the revenue to meet the expenditure of the country, by a judicious alteration of protective and differential duties, without any material increase of the public burdens; that such a course will, at the same time, promote the interests of trade, and afford relief to the industrious classes, and is best calculated to provide for the maintenance of the public faith and the general welfare of the people." A third notice was given by Mr. O'Connell, to the effect that any diminution of the duty on foreign sugar should be limited to that which was produced by free labour, and not extend in any way to the produce of slave labour. The debate on the sugar question was preceded by the presentation of petitions both for and against the alterations proposed by government. In commencing the debate, which lasted eight nights, Lord John Russell took the formal motion for going into committee out of Mr. Baring's hands, and availed himself of the opportunity for pre-occupying the ground, and anticipating the arguments of his opponents. In his speech his lordship remarked, that if this had been merely a financial question, he should have left it in the hands of the chancellor of the exchequer. He regarded it, however, as constituting, by the variety and magnitude of its relations, a great national subject. Government were well aware, he continued, at the commencement of the year, that the finance of the country was matter of great difficulty, and would require great attention. Their resolution to consider the corn-laws was formed before the 11th of March, when the notice was given that the colonial duties would be reviewed.

Government had to meet a deficiency of £2,400,000. It was open to the house to have objected to the expenditure at the time; but now to oppose the going into committee of ways and means, without suggesting any other plan as preferable to that of the government, was unworthy of a great party. Ministers had preferred the plan of altering the import duties, as now proposed, for the purpose of relieving instead of oppressing the people. Being prepared to deal with sugar and timber as questions of revenue, they would not have been justified in excluding the other great question, that of corn; especially with their opinions on the merits of that question, and their belief that, sooner or later, it must be made the means of an extensive change in the commercial situation of this country. Before the house had gone into committee, Lord John Russell had announced the rate of duties which he meant to propose on corn; namely, on wheat, a duty of eight shillings per quarter; on rye, of five shillings; on barley, of four shillings and sixpence, and on oats, of three shillings and sixpence. His lordship now said that the duties he meant to propose, added to the charge of freight, would constitute a sufficient protection, keeping the price of wheat, in all probability, at from fifty to sixty shillings a quarter. With respect to sugar, he considered the true principle was protection, not prohibition. He entered into some

details, for the purpose of showing that West Indian interests would be protected under the proposals of ministers, and that freedom of commercial intercourse among nations had a tendency to improve and cheapen the productions of each. By the admission of foreign sugar, his lordship said, the industry of the West Indies would be stimulated to better means of production, and the English labourer would obtain his sugar on more reasonable terms. His lordship next entered into various statistical details, to prove that the great measure of slave emancipation had been eminently successful; and that the condition of the negroes was not only promising, but prosperous. On Lord John Russell's resuming his seat, Viscount Sandon rose to propose a resolution of which he had given notice.

Lord John Russell then moved _pro forma_ the resolution of which he had given notice as an amendment to Viscount Sandon's; but it was negatived without a division; and that of Viscount Sandon's being carried, the house adjourned. After this defeat it was generally expected that ministers would resign; but on the next day business was resumed, and carried on as though nothing of importance had happened; and when business was over Lord John Russell simply moved that the house at its rising should adjourn to the Monday following. The Earl of Darlington, on hearing this, said that he had been relieved of all suspense as to the intentions of government: it was plain that they meant to stay in office with a tenacity unparalleled in the history of governments, and with the deliberate decision of the house of commons unequivocally declared against them. He asked when Lord John Russell intended to bring forward the question of the corn-laws. And his lordship replied, "On Friday, the 4th of June;" but before that day arrived ministers had suffered another signal defeat, and were compelled to postpone the subject.

RESOLUTION OF WANT OF CONFIDENCE IN THE GOVERNMENT.

On the first day on which the house met after its temporary adjournment, Sir Robert Peel gave notice that he should move, on the 27th of May, this resolution:—"That her majesty's ministers do not sufficiently possess the confidence of the house of commons to enable them to carry through the house measures which they deem of essential importance to the public welfare; and that their continuance in office under such circumstances is at variance with the spirit of the constitution." On the day named the right honourable baronet introduced this resolution with a speech of considerable length and ability. The debate which ensued lasted five nights; in the course of which much was said for and against the motion. The leading speakers in support of it were Lord Stanley, Sirs James Graham and William Follett, and Messrs. Christopher and Sergeant Jackson; those against it were Viscount Morpeth, Sir George Grey, Dr. Lushington, and Messrs. Macauley, Handley, O'Connell, and Shiel. Towards the close of the debate, Lord John Russell denied that the motion was in the spirit of the constitution, and ably defended his own conduct and that of his colleagues in retaining office. Sir Robert Peel briefly replied; and on a division the motion was carried by a majority of three hundred and twelve against three hundred and eleven. After this division, Lord John Russell announced that he would state on the following Monday the course which the government should resolve under existing circumstances to pursue.

PROROGATION AND DISSOLUTION OF PARLIAMENT.

At the meeting of the house on the following Monday, after moving the order of the day for the committee of supply, Lord John Russell said that he and his colleagues had come to the determination not to bring on the alteration of the corn-laws as a government measure. He further stated that, after the late division, he felt that tire government could expect no further majorities in the house of commons, and that they would not make any further struggle for the retention of their offices until the opinion of the nation had been ascertained. A desultory conversation followed, in which his lordship expressly declared that the intentions of government were to advise that no time should be lost in dissolving the present Parliament, and that a new one should be summoned without delay. Subsequently the house resolved itself into a committee of supply; and the estimates were voted without opposition. The session was now virtually at an end, although the condemned parliament lingered on for about a fortnight after the ministerial announcement of a dissolution. In the course of that period Lord John Russell announced many bills, in more or less advanced stages, as abandoned; but he still sought to carry the bill for the better administration of justice. This bill, however, was opposed by Sir E. Sugden, who moved that it should not come into operation till the 10th day of October. This motion was carried; and Lord John Russell then declared his determination to throw up the bill altogether. It thus fell to the ground; but it was revived in the next session, and then passed into a law. After this discussion nothing worthy of note occurred; and on the 22nd of June, parliament was prorogued by the queen in person, after having previously given her assent to the appropriation and other bills. The lord-chancellor then declared parliament to be prorogued to Tuesday, the 29th of June; and on the following day the queen’s proclamation was issued, by which the parliament thus prorogued was declared to be dissolved; and writs for a new one were issued, returnable on the 19th of August. Thus terminated the first session of 1841; a more barren and unprofitable one than which is not to be found in the annals of modern parliaments. It lasted nearly five months, and yet all the great questions brought forward were still in an unsettled state. It has indeed been well remarked, that “the whole operations of this session might have been at once blotted out of the records of parliament, with scarcely any sensible effects upon the laws or institutions of the country.”

STATE OF PARTIES.

On the dissolution of parliament both the great parties in the state—the Conservatives and Liberals—prepared themselves for the struggle which was immediately to ensue at the general election. The hopes and expectations of the two parties were essentially different. On the one hand, the Conservative party had been for some time increasing in numbers throughout the country. Their ranks had been recruited by those who had been accustomed to identify themselves with their opponents, but who believed that the time was come when the exigencies of the country demanded a strong and efficient government, and who were willing to accord to Conservative statesmen the merit of being ready to support all measures of real amendment; knowing that they only had the power of carrying such measures into

effect. There were, moreover, many who although they stood aloof from the Conservative party, and professed jealous suspicion of its future policy, who were not averse to give it once more a trial in the possession of power. It was clear, indeed, that the Conservative party at this period stood the highest in the estimation of the people. The landowners and farmers were united in their favour, and the mercantile body, alarmed at the attack which had been made upon our West Indian and Canadian interests in the articles of sugar and timber, agreed, too, in an anxious desire for their return to power. The Liberal party, however, could still reckon confidently upon the support of the Radicals; and they had an advantage even from their recent defeat. The defeat happened in consequence of certain financial measures which they brought forward in their budget, which measures assumed the character of a removal of disabilities from trade. This afforded good grounds for an appeal to the people, and an attack upon monopoly. Land-owners and West Indian proprietors were styled monopolists: the former, because the legislature had imposed a duty on corn for the protection of agriculture; and the latter, because their interests were protected by a duty on sugar. In like manner it was attempted to excite popular odium against other classes, as favoured in the acquisition of wealth at the expense of the community: all who supported the Conservatives were subjected to the same charge, while the supporters of government were exultingly denominated anti-monopolists. The watchword of the Liberal party was, in truth, “anti-monopoly;” and a strenuous effort was made to enlist popular feeling in its behalf. This cry, however, did not succeed.. Even the city of London, which had before returned four Liberals, now returned only two, which were coupled with two Conservatives. As for the elections, in the counties they went everywhere against the ministry: and in the towns and manufacturing districts the cry of “Low wages!” was raised against that of “Cheap bread!” with considerable effect. In a word, the returns proved more favourable to the Conservative party than the most sanguine among them had anticipated; and it appeared certain that Sir Robert Peel would command a stronger and more efficient majority than had supported any minister for a long period.

MEETING OF THE NEW HOUSE OF COMMONS, ETC.

The new session of parliament was opened by commission on the 19th of August, and the speech was read by the lord-chancellor on the 24th of the same month. The speech referred to a treaty concluded on the 15th of July, 1840, between her majesty and the Emperor of Austria, the King of Prussia, the Emperor of Russia, and the Sultan, the objects of which, it was said, had been fully accomplished. The speech also informed the house that her majesty had ordered the return of her minister to the court of Persia, and announced that the differences which had arisen between Spain and Portugal about the execution of a treaty concluded by those powers in 1835, for regulating the navigation of the Douro had been amicably adjusted. In reference to the disputes with China, a hope was expressed that the emperor would see the justice of the demands which her majesty’s plenipotentiaries had been recently instructed to make. The speech concluded thus:—“My lords and gentlemen,—We are more especially commanded to declare to you that the extraordinary expenses which the events in Canada, China, and the Mediterranean have occasioned, and the necessity of maintaining a force adequate to the protection

of our extensive possessions, have made it necessary to consider the means of increasing the public revenue. Her majesty is anxious that this object should be effected in the manner least burdensome to her people: and it has appeared to her majesty, after full deliberation, that you may at this juncture properly direct your attention to the revision of duties affecting the productions of foreign countries. It will be for you to consider whether some of these duties are not so trifling in amount as to be unproductive to the revenue, while they are vexatious to commerce. You may further examine whether the principle of protection upon which others of these duties are founded be not carried to an extent injurious alike to the income of the state and the interests of the people. Her majesty is desirous that you should consider the laws which regulate the trade in corn. It will be for you to determine whether these laws do not aggravate the natural fluctuation of supply—whether they do not embarrass trade, derange the currency, and by their operation diminish the comfort and increase the privations of the great body of the community." In the house of lords the address was moved by Earl Spencer, and seconded by the Marquess of Clanricarde, both of whom in their speeches vindicated the conduct of government, and advocated the repeal of the corn-laws. The address was opposed by the Earl of Ripon, who arraigned government on many points, more especially on their financial operations. He concluded a long and able speech by proposing as an amendment, that an address be presented to her majesty, "humbly to represent to her majesty, that we observe with great concern that the public expenditure has of late, in each of several years, exceeded the annual income, and that we are convinced of the necessity of adopting measures for the purpose of remedying so great an evil: To assure her majesty that we are deeply sensible of the importance of those considerations, to which her majesty has been graciously pleased to direct our attention in reference to the commerce and revenue of the country, and to the laws which regulate the trade in corn: That in deciding the course which it may be advisable to pursue with reference to such matters, it will be our earnest desire to consult the interest and promote the welfare of all classes of her majesty's subjects: That we feel it, however, to be our duty humbly to submit to her majesty that it is essential to the satisfactory results of our deliberations upon these and other matters of public concern that her majesty's government should possess the confidence of this house and of the country; and respectfully to represent to her majesty that that confidence is not reposed in the present advisers of her majesty: To assure her majesty that in the gracious expression of her majesty's deep sympathy with those of her subjects who are now suffering from distress and want of employment, we recognise an additional proof of her majesty's tender regard for the welfare of her subjects; and that we cordially join in the prayer of her majesty that all our deliberations may be guided by wisdom, and may conduce to the happiness of her people." Viscount Melbourne expressed himself to the effect that the Earl of Ripon's motion came like a thunder-clap upon him. He was ignorant that there existed in the house the spirit on which the motion seemed to proceed. The Duke of Wellington, after alluding to the various allegations brought against government by the Earl of Ripon, said that they sufficiently justified him in calling on that house to vote against the address. He continued to animadvert upon, and to condemn the introduction of her majesty's name in the royal speech, in such a way as to give the country to believe that those who opposed the proposed alterations

in commerce opposed her majesty. At the same time the noble duke passed a warm eulogium upon the general conduct of Viscount Melbourne in his relation to the crown, frankly admitting that the noble viscount had rendered the greatest possible service to her majesty, in making her acquainted with the mode and policy of the government of this country; initiating her into the laws and spirit of the constitution; and teaching her to preside over the destinies of the empire of Great Britain. His grace concluded by making some severe remarks on the budget, about which so much had been said; and by expressing himself to be still adverse to any alteration in the corn-laws. The noble duke was followed by the Duke of Richmond, who, in a short speech, advocated the interests of the agriculturists. The Marquess of Lansdowne said that the government had not proposed a repeal of the corn laws _in toto_, as the Duke of Richmond seemed to have understood: they simply contemplated some change. After a few words from the Earl of Coventry and the Marquess of Northampton, in support of the amendment, and from Lord Brougham, partly in favour of the address, and partly condemnatory of the measures of government, their lordships divided on the original question, when there appeared for it only ninety-six, and against it one hundred and sixty-eight; so that ministers were left in a minority of seventy-two.

In the commons the first business performed was the election of a speaker, and Mr. Shaw Lefevre was re-elected by the consent of all parties. The house then adjourned; after which several days were consumed in swearing in members. This being done, the speaker having read from the chair the speech delivered in the other house by the lords-commissioners, an address was moved in consonance with it by Mr. Mark Phillips, and seconded by Mr. John Dundas. An amendment was moved by Mr. J. S. Wortley, which expressed the regret of the house at the recent increase of expenditure; its determination to provide for that increase; its earnest desire to promote the welfare of her majesty’s subjects; and respectfully to represent to her majesty the necessity that her ministers should enjoy the confidence of the country, which the present administration did not possess. This amendment was seconded by Lord Bruce; and a long discussion followed, in which many members expressed their views. The result showed that ministers were even deserted by some of their tried friends: even Mr. Roebuck declared that he should vote in favour of the amendment. On this occasion Mr. Cobden, who had been elected in the new parliament, and who was destined to be the greatest antagonist of the corn-laws that had ever appeared in the house of commons, came forward to express his views on the subject. On a division the amendment was carried by a majority of three hundred and sixty, against two hundred and sixty-nine. When the house of commons met for the purpose of receiving the report on the amended address, Mr. Sharman Crawford proposed another amendment, to the effect that the house would feel it their duty so to extend the suffrage as to give to the working classes their just weight in legislation; but this was negatived by an overwhelming majority.

RESIGNATION OF MINISTERS.—SIR ROBERT PEEL’S ADMINISTRATION.

At the next meeting of the house of commons, Lord Marcus Hill appeared at the bar, and read this answer to the address:—“It is the greatest satisfaction to me to find

that the house of commons are deeply sensible of the importance of those considerations to which I directed their attention in reference to the commerce and revenue of the country, and the laws which regulate the trade in corn; and that, in deciding on the course which it may be desirable to pursue, it will be their earnest desire to consult the welfare of all classes of my subjects. Ever anxious to listen to the advice of my parliament, I will take immediate measures for the formation of a new administration." The division on Mr. J. S. Wortley's amendment had so emphatically declared the sense of the new house of commons upon the continuance of the Whig government, that no other course remained to them but retirement from office. Accordingly, on the 30th of August, Viscount Melbourne in the lords, and Lord John Russell in the commons, intimated that they and their colleagues had resigned, and that they only continued to hold their respective offices till their successors were appointed. The task of forming a new government was assigned by the queen to Sir Robert Peel, and this time he was successful; the change embracing the queen's household. The following were the principal members of the new administration:—the Duke of Wellington was leader in the lords; Sir Robert Peel himself was first lord of the treasury; Lord Lyndhurst became lord-chancellor; the honourable H. Goulburn, chancellor of the exchequer; Lord Wharncliffe, president of the council; the Duke of Buckingham, privy-seal; Sir James Graham, home-secretary; Earl of Aberdeen, foreign secretary; Lord Stanley, colonial secretary; Earl of Haddington, first lord of the admiralty; Lord Ellenborough, president of the board of control; Earl of Ripon, president of the board of trade; Sir H. Hardinge, secretary-at-war; Sir E. Knatchbull, treasurer of the navy and paymaster of the forces; and Lord Lowther, postmaster-general. After the new government was formed, writs were moved for in the commons for various places, in consequence of the acceptance of office of those members who belonged to that house; and the house afterwards adjourned until the 16th of September.

STATEMENT OF SIR ROBERT PEEL AS TO HIS INTENDED COURSE OF PROCEEDING, ETC.

The re-election of the members of government took place without the loss of a seat, and the house of commons reassembled on the day appointed. Business was commenced by Sir Robert Peel moving _pro forma_ for a copy of the letter of the first commissioners of woods and forests, on the subject of warming and ventilating the new houses of parliament. The right honourable baronet on this occasion stated his intentions as to the course to be pursued with respect to the public business of the country.

FINANCIAL STATEMENT.

Mr. Goulburn brought forward his financial statement in a committee of ways and means on the 27th of September. He first stated what was wanted, showing that the house was called on to provide for a deficiency of £2,467,432. This sum, he said, did not differ materially from the deficiency anticipated by his predecessor; and to meet it he proposed funding a portion of the unfunded debt. He had, indeed, already made proposals to the public, which, he said, had been completely successful; the subscription he had obtained would enable him to give the requisite relief. The sum

subscribed exceeded £3,500,000; and the terms he had offered were not higher than those offered by Mr. Spring Rice in 1838. The bonus would be found to be about 18s. 10d. per cent. With respect to the requisite supply, immediate taxation was out of the question; and he should therefore propose a mode of supply, which as a permanent resource he should deprecate, by an issue of exchequer-bills or a sale of stock, at the option of government. He suggested this alternative method, in order that the market might not be presently flooded again with a quantity of exchequer-bills equal to that from which it had just been relieved. Mr. Goulburn concluded by moving a resolution in accordance with the plan which he had explained, for funding the recent subscriptions in three per cent, consols. This proposition met with considerable opposition from Mr. Baring and other members; but the resolutions necessary for carrying it out were, nevertheless, passed without a division.

POOR LAWS, ETC.

The only measures of importance brought forward this session, after the supplies had been granted, were the bill for the better administration of justice in the court of Chancery, and the poor-law commission continuance bill. The former of these measures was merely a revival of that which was thrown up by the former government, as seen in a previous page; and it now quickly passed both houses, and received the royal assent. The latter subject gave rise to more opposition and debate. It was brought forward by Sir Robert Peel on the 21st of September, by moving for leave to bring in a bill to continue the office of commissioners for six months only; namely, till 31st July, 1842. In the course of the discussion, Mr. Lefroy bore testimony to the generally successful working of the Irish poor-law. On the house going into committee, Mr. R. Yorke moved an instruction to the committee, to the effect that the poor-law commissioners should not be empowered to enforce separation between man and wife, except where application for relief arose from idleness, vice, or crime. The honourable member quoted the injunction of Scripture against separating those whom God had joined together, and called on members on the ministerial side to redeem the pledges they had given to their constituents. After some discussion, this instruction was negatived.

The bill went through the committee and passed.

Parliament was prorogued by lords-commissioners on the 7th of October.

EAST INDIA AFFAIRS, ETC.

It has been seen in the last chapter that Dost Mohammed was still in arms. About the close of the last year his army was completely routed at Bamean by Brigadier Dennie, and he then fled across the Hindoo Koosh into the Khoohun territory. In the mean time, Sir Robert Sale was employed in reducing the strongholds of the partizans of the ex-king in Kohistan; a work in which he experienced considerable difficulty, owing to the determined manner in which the forts were defended. Dost Mohammed subsequently summoned his son Afzul Khan to join him, and he moved from the Nijrow towards the Ghorebund Pass, leading into the Kohistan valley, to effect the junction. Sir Robert Sale, hearing of this movement, resolved to frustrate its object, and breaking up his camp at Bolan, proceeded towards Purwau. At Purwau

a battle took place, and Dost Mohammed again received a signal defeat. His soldiers refused to make any further efforts against the British forces, and Dost Mohammed threw himself upon the generosity of his foes, surrendering himself to Sir William M'Naghten on the 3rd of November. His confidence was not misplaced; he was permitted to take up his residence at Loodianah, and a yearly pension of three lacs of rupees (£30,000) was granted to him. His treatment was so generous that he wrote to his three sons, who were in different parts of the country, to follow his example, and deliver themselves up to the British. During the remainder of this year Afghanistan remained comparatively tranquil; nothing occurred of a hostile nature except the capture of the old fort of Khelat-i-Ghilzee by Major Lynch, on which occasion the garrison was destroyed by a mistake, an event which caused great commotion among the whole of the Ghilzee tribe, as will be seen in a future page. It may be mentioned that in Scinde, during this year, the fortress of Khelat, which had again fallen into the hands of the enemy, was recaptured, and the whole of the Punjaub fell into a state of disorganization; but the British were not called upon to interfere in the internal dissensions which shook the throne, so long and ably occupied by our steadfast ally, Runjeet Sing, whose death gave rise to the commotions.

In China, after Chusan fell into our hands. Admiral Elliot, accompanied by Captain Elliot, sailed to the Pechelee harbour, where he arrived on the 9 th of August, 1840. On the 30th of that month an interview took place between Captain Elliot and Keshen, the-imperial commissioner, the third man in the empire, and the negociations were protracted until the 15th of September, on which clay the admiral sailed away from the Peho. When the squadron returned to Chusan, it was discovered that Admiral Elliot had consented to transfer the negociations from the Pechelee to Canton, where all details were to be settled, and where the Chinese government promised to arrange everything to the satisfaction of the British. Negociations were carried on; but in the meantime Keshen was busily employed in erecting new batteries at the Bogue, barricading the bars in the rivers by sinking boats laden with stones, throwing up breast-works near Canton, and levying troops. It was so evident that the Chinese commissioner was insincere, that hostilities recommenced on the 7th of January. Two of the Bogue forts were reduced, and Keshen then offered to adjust matters without delay. These arrangements were made between Captain Elliot and the imperial commissioner:—"1. The cession of the harbour and island of Hong-Kong to the British crown. All just charges and duties to the empire upon the commerce carried on there to be paid as if the trade were conducted at Whampoa. 2. An indemnity to the British government of 6,000,000 of dollars, 1,000,000 payable at once, and the remainder in equal annual instalments, ending in 1846. 3. Direct official intercourse between the two countries upon an equal footing. 4. The trade of the port of Canton to be opened within ten days after the Chinese new year (the 2nd of February), and to be carried on at Whampoa till further arrangements are practicable at the new settlement. Details to remain matter of negociation." The terms of this convention were much censured; and Lord John Russell declared in the house of commons, on the 6th of May, that they were not approved of by her majesty's government; that Captain Elliot had been recalled; and that Sir Henry Pottinger had been appointed plenipotentiary in his stead. In the meantime it had

become evident that the Chinese had no intention of fulfilling these engagements. On the morning of the 19th of February, a hostile shot was fired at the boat of the _Nemesis_ steamer from North Wangtong, and hostilities again commenced. The British squadron now attacked the Anunghoy batteries, which were soon silenced, and they then landed, and both the ships and land troops proceeded towards Canton. The British colours were soon hoisted on Howqua's fort; and while Sir George Brewer and General Gough were preparing to attack those forts which still remained between them and Canton, the Kwang-chow Foo, as prefect, accompanied by the Hong merchants, came down and admitted that Keshen had been degraded, and that no commissioner had yet arrived to treat for peace, or make any new arrangements. Keshen had, it appeared, delayed the execution of the treaty until he could obtain the emperor's confirmation of it. The emperor, however, looking upon the English "as dogs and sheep in their dispositions," and considering that "both gods and men were indignant at their conduct, refused to ratify a treaty with them; and Keshen was ordered to be delivered over to the board of punishment." The Chinese again contemplated hostilities, and in the month of May the British commanders again determined to advance upon Canton. All the surrounding forts were captured, and it was determined that the city should be taken by assault; but a flag of truce was hoisted on the walls, and Captain Elliot again requested Sir H. Gough to suspend hostilities. He was employed, he said, in a settlement of the difficulties upon the following conditions:—"1. The imperial commissioner, and all the troops, other than those of the province, to quit the city within six days, and to remove to a distance exceeding sixty miles. 2. 6,000,000 dollars to be paid in one week for the use of the crown of England; 1,000,000 dollars payable before to-morrow at sunset. 3. British troops to remain in their actual positions till the whole sum be paid. No additional preparations on either side; but all British troops and ships of war to return without the Bocca Tigris as soon as the whole be paid. Quang-tong also to be evacuated; but not to be re-armed by the Chinese government till all the difficulties are adjusted between the two governments. 4. The loss occasioned by the burning of the Spanish brig, _Bilbaino_, and all losses occasioned by the destruction of the factories, to be paid within one week." In consequence of this arrangement, the British flag was lowered in the various captured forts, and the troops inarched out, and returned to Tsing-hae. The 6,000,000 of dollars amounted to about £120,000, and Captain Elliot appropriated about half that sum to reimburse those who had surrendered their opium-chests to him at the commencement of the disturbances; but this payment was subsequently disallowed by the British government. Matters were at this point, when, on the 9th of August, Sir Henry Pottinger, the new plenipotentiary, arrived in the Canton waters, accompanied by Sir William Parker, who assumed a command of the fleet in the Chinese seas. Having published a copy of his credentials, authorizing him to negociate and conclude with the minister vested with similar power and authority on the part of the Emperor of China, any treaty or agreement for the arrangement of the differences now subsisting between Great Britain and China; and having warned all her majesty's subjects and foreigners against putting themselves in the power of the Chinese authorities, during the anomalous and unsettled state of our relations with the emperor, Sir Henry Pottinger embarked for Hong-Kong, whither Sir William Parker had preceded him. The superseded plenipotentiary, Captain Elliot, left China

on the 24th of August.

STATE OF THE CONTINENT.

An important treaty was signed in London in December, between France, Austria, Prussia, Russia, and Great Britain, whereby the former powers agreed to adopt the English laws relating to the slave-trade. Spain still remained in a state of insecurity. A quarrel took place between that country and Portugal, relative to the navigation of the Douro, and both countries prepared for war; but the question was finally settled without an appeal to arms. Later in the year there was an insurrection at Pampeluna and Vittoria, in behalf of the queen-mother, and a desperate attempt was made to seize the queen in the palace at Madrid, but, through the energetic measures of Espartero, the insurrection was suppressed: Don Diego Leon, one of its leaders, was tried and executed. During this year the long agitated question of the East rapidly approached a settlement. On the 11th of January. Mehemet Ali gave up the whole of the Turkish fleet; and about the same time a finnan was sent from Constantinople, whereby the sultan accorded to Mehemet the hereditary possession of Egypt. At the same time also Ibrahim Pacha was directed by his father to evacuate Syria. Several causes, however, combined against the complete restoration of peace between the sultan and the pacha; and the year closed before negociations were concluded.

CHAPTER LIII.

{VICTORIA 1842—1843}

Meeting of Parliament..... Debate on the Corn-Laws: Proposition of Ministers on the subject of the Corn- Laws..... Financial Measures; Income-Tax Bill, &c.—New Tariff..... Mr. Villiers’s Motion on the Corn Laws..... The Great Chartist Petition..... Bill for Restraining the Employment of Women and Children in Mines and Collieries..... Bribery at Elections..... Law Reforms..... Bill for the Protection of the Royal Person..... Copyright Act..... Poor Law Amendment Bill..... Prorogation of Parliament..... East India Affairs, &c.

MEETING OF PARLIAMENT.

{A.D. 1842}

Parliament reassembled on the 3rd of February. The session was opened under circumstances of unusual splendour, occasioned by the presence of the King of Prussia, who had arrived in England, in order to stand sponsor at the christening of the infant Prince of Wales. Her majesty again addressed lier parliament in a speech of considerable length, and which embraced a variety of interesting and important topics. The chief of these were, the birth of an heir to the throne, the treaty which had been concluded with the other great powers of Europe for the suppression of the slave-trade: the pending negociations with China; the restoration of friendly intercourse with Persia; and a treaty which had been concluded with the Emperors of Austria and Russia, and the Kings of France and Prussia, having for its object the

security of the Turkish empire, and the maintenance of the general tranquillity. In conclusion, her majesty recommended attention to the state of the finances and expenditure of the country; urged the consideration of the corn-laws; stated that measures would be submitted for the amendment of the law of bankruptcy; and expressed regret at the continued distress in the manufacturing districts.

In the house of commons, on the 4th of February, Sir Robert Peel gave notice that he would, on the 9th, move that the liouse resolve itself into a committee of the whole house, to take into consideration the laws which affect the importation of corn. The address was agreed to _nem. con_.

DEBATE ON THE CORN-LAWS—PROPOSITION OF MINISTERS ON THE SUBJECT.

On the 9th of February, the day on which Sir Robert Peel had announced he would develop the ministerial plan for the alteration of the corn-laws, extraordinary interest was exhibited both in and out of the house of commons. Every avenue of the house was thronged at an early hour by persons eager to obtain admission; and when the doors were opened every seat in the strangers' gallery was instantly occupied. A number of the anti-corn-law delegates attempted to station themselves in the lobby; but being prevented by the police they stationed themselves outside the house, where they saluted the members as they passed with the cries of "No sliding-scale!" "Total repeal!" "Fixed duty!" &c. Shortly after five o'clock Sir Robert Peel moved: "That this house resolve itself into a committee, to consider the trade in corn." He then requested that the clerk of the house should read that portion of her majesty's speech which related to that subject. This being done, he observed that it was difficult to discuss this subject without making statements or admissions which would be seized upon by his opponents: but that he trusted to the reason, moderation, and judgment of parliament. The right honourable baronet then proceeded to state that he would not excite a hope that his measure would tend immediately to mitigate the existing commercial distress, and to enumerate the causes which had given rise to that distress. He then adverted to the various opinions obtained in the country as to a change of the corn-laws. Some opposed, he said, all change; others demanded immediate and instant repeal; and others required some modification. His own opinion was, that a total repeal of the corn-laws would aggravate the manufacturing distress; the prosperity of the two classes being identical. There were advantages in a fixed duty which did not apply to a variable duty; but the objection to the principle of imposing any duty on corn was equally applicable to both. Nor could, he argued, a fixed duty be permanent: he did not think they could impose any amount of fixed duty sufficient for the protection of agriculture in years of average supply, which they could determinately and fixedly impose in times of distress and scarcity. Sir Robert Peel next entered into a variety of arguments to show that this country, in ordinary years, was able to supply its own population. From the arguments he used he came to the conclusion that it was not advisable for parliament to alter the principle of the existing law; and the alteration which he would therefore propose went on the principle of retaining a duty on corn, varying inversely with the price of corn in the home market. He continued by observing that the maintenance of that principle

involved the maintenance of a system of averages; and after expressing doubts whether there had not been much exaggeration as to the frauds and combinations to influence the averages, he thus stated the proposals of government respecting them:—“We shall propose to take the averages in the present mode, from the factor, the miller, or the purchaser. We shall propose that the duty of collecting the returns shall devolve on the excise. The excise is perfectly competent to this duty; it has officers employed in each market-town fully competent for the discharge of this duty by having greater duties to perform, and who will be able at a comparatively small increase of expense to fulfil this employment; and by their intelligence, their business habits, and the responsibility which attaches to them as public officers, they will afford far greater security against fraud than can be obtained by intrusting this duty to private individuals.” After stating that the averages were to be taken in all the principal corn-markets, Sir Robert stated the amount of protection to be given to the produce of this country. Having shown how the duty varied under the existing laws, and that they induced fraud, and having made some remarks on the term “remunerating price,” he thus described his new scale:—“We propose that when corn is at 50s. and under 51s. in price, a duty of 20s. shall be taken; but that in no case shall that duty be exceeded. We propose that when the price is 51s. and under 52s., the duty shall be 19s.; and after this we propose that there shall be what I should term a rest in the scale. That at the next items of price the duty should be uniform. Thus it would be: When the price is 52s. and under 53s. and 54s., 18s.; and when 54s. and under 55s., still 18s. When the price is 55s. and under 56s., we propose that the duty be 17s.; when 56s. and under 57s., that it shall be 16s.; and when 57s. and under 58s., that it shall be 15s.; and when 58s. and under 59s.. that it shall be 14s.; and when 59s. and under 60s., that it shall be 13s.; when 60s. and under 61s., that it shall be 12s.; when 61s. and under 62s., that it shall be lis.; when 62s, and under 63s., that it shall be 10s.; when 63s. and under 64s., that it shall be 9s.; when 64s. and under 65s., that it shall be 8s.; and when 65s. and under 66s., that it shall be 7s. At the three next items of price I propose another rest in the scale similar to the former. I should propose on the next three a duty of 6s., that is to say, when the price is 66s. and under 67s., when it is 67s. and under 68s., and when it is 68s. and under 69s. In each of these cases the duty would be 6s. When the price is 69s. and under 70s., I propose a duty of 5s.; when 70s. and under 71s., a duty of 4s.; when 71s. and under 72s., a duty of 3s.; when 72s. and under 73s. a duty of 2s.; and when 73s. and under 74s., a duty of Is. the quarter. When that price is arrived at, I propose that the duty should altogether cease; the sum of the proposition, then, is this, that when corn in the British market is under the price of 51s. the quarter, a duty of 20s. shall be levied, which duty shall never be exceeded, for I am quite satisfied that it is useless to take any greater amount of duty.” With respect to other grain than wheat, Sir Robert Peel proposed to adopt the proportion of value and duty which he found in the present law. “Colonial wheat and flour,” he continued, “shall be imported at a duty of 5s. whenever the price of British wheat is below 67s.; that when the price of British wheat exceeds 67s. it shall then be admissible at a duty of 6d. I propose to give the same advantage to colonial wheat, respecting the reduction of prices at which it shall be admissible, as is given to other descriptions of wheat. But considering that the sudden drop in the prices from 5s. to 6d., on account of the difference of Is. in the

price, is at variance with the principle of the law, which seeks to establish as equable and uniform a reduction of duty as possible, we propose to make this arrangement respecting colonial wheat—that when the price of British wheat is under 55s., the duty upon every quarter of British colonial wheat shall be 5s.; that when at 55s. and under 56s., it shall be 4s.; and when at 56s. and under 57s., it shall be 3s.; and when at 58s. and upwards it shall be Is., thus taking away that sudden fall in the amount of duty, levied upon colonial wheat, which takes place under the existing law; but giving the colonial wheat that advantage in the reduction of the price which is given to other descriptions of wheat." Sir Robert Peel finally thus recapitulated the reduction which his new scale would effect:—"When corn is 59s. and under 60s., the duty I propose is 13s. When the price of corn is at 50s., the existing duty is 36s. 8d., increasing as the price falls; instead of which I propose, when corn is at 50s., that the duty shall be only 20s., and that the duty shall in no case be exceeded. At 56s., the existing duty is 30s. 8d.; the duty I propose at that price is 16s. At 60a., the existing duty is 26s. 8d., the duty I propose at that price is 12s. At 63s., the existing duty is 23s. 8d.; the duty I propose is 9s. At 64s., the existing duty is 22s. 8d.; the duty I propose is 8s. At 70s., the existing duty is 10s. 8d.; the duty I propose is 5s. Therefore it is impossible to deny, in comparing the duty which I propose with that which exists at present, that it will cause a very considerable decrease of the protection which the present duty affords to the home grower, a decrease, however, which, in my opinion, can be made consistently with justice to all the interests concerned." In conclusion, Sir Robert Peel disclaimed the idea of legislating in favour of particular interests, and expressed his conviction that the present was a favourable time for the settlement of the question. After a few words from Lord John Russell, and a brief reply from Sir Robert Peel, the house adjourned. On the following day Lord John Russell gave notice that he should, on the ensuing Monday, move a resolution condemnatory of a sliding-scale. The resolution was couched in these terms:—"That this house, considering the evils which have been caused by the present corn-laws, and especially by the fluctuations of the graduated or sliding-scale, is not prepared to adopt the measure of her majesty's government, which is founded on the same principle, and is likely to be attended by the same results." Mr. Villiers next announced that, on going into committee, he should take the sense of the house on the policy of imposing any duty whatever on foreign corn or food imported into this country. A third notice was given by Mr. Christopher that he should move in committee a scale of wheat duties, instead of Sir Robert Peel's, imposing a maximum duty of 25s. when the price is 50s., and a minimum duty of Is. when the price is 73s., the duty falling by Is., as the price rises by Is.; except that at the rise of price from 59s. to 60s., the duty falls by 2s. The debate commenced on the 14th, when Sir Robert Peel moved that the speaker do leave the chair, in order to a committee of the whole house on the corn-laws. Lord John Russell then brought forward his amendment, and stated his objections to the sliding-seale. He remarked:—"The first objection I have to a sliding-scale, is, that a high, I would say a prohibitory duty, always forms part of it. I could understand a scale not exceeding 10s. or 12s., and going down to 4s., to 3s., or to Is.; but I find that whenever gentlemen speak of a sliding-scale, it is of such a nature as to contain a prohibitory duty. The first duty, when the price is at 50s., and under 51s., is 20s.; and I shall now proceed to show that that is a prohibitory duty. I have looked over the

papers containing the latest information. From the information obtained by Mr. Meek, who was sent to the north of Europe expressly to collect information on the subject, it appears that the original price of Dantzie wheat, when brought from the interior of the country, is 35s.; that the charges, which seem to satisfy that gentleman's mind amount in all to 10s. 6d.; thus making the price at which it could be sold in England in ordinary years 45s. 6d. If you add to that the proposed duty of 20s., you make the entire price of Dantzie wheat, 65s. 6d., when the price at home, is 50s.; showing of course that 20s. amounts to a prohibitory duty. In the same way at Odessa, as stated in the consul's returns, the price would be 26s.; adding to which 10s. for freight, and some further charges, which cannot be taken or less than 5s., as on the former occasions, and adding then the proposed duty of 20s., you would have the price up to 61s., without counting the profit of the merchant who had to deal with this corn; and therefore, though you may say that you have reduced the duty to 20s., to 19s., and to 18s., yet in all three instances it can be shown that the duty is prohibitory; and that when the price is at 55s. or 56s., the price at which the right honourable gentleman said it would please him to see it, nobody can tell why, there would then be a prohibitory duty upon foreign corn." Lord John Russell concluded by moving his amendment. The amendment was opposed by Mr. E. Gladstone, who thought that some of Lord John Russell's opinions ought to have led him to support the government. The debate which followed lasted three nights, and the principal speakers were, on the ministerial side, Lord Sandon, Sir J. Graham and E. Knatchbull, and Messrs. Childers, Ormsby Gore, and B. Ferrand; and in favour of the amendment, Lord Worsley, and Messrs. C Wood, Labouchere, Ward, E. Buller, and Roebuck. The greater part of the speeches delivered consisted of recapitulations and reproductions of the reasonings and statements used by the leaders of either party. On a division the amendment was rejected by a majority of three hundred and forty-nine against two hundred and twenty-six. The house having thus pronounced in favour of the principle of a sliding-scale of corn-duties, it might have seemed illogical and superfluous afterwards to discuss a proposition of which the affirmative had been involved in the preceding decision; namely, whether corn should be subjected to any duties at all. Nothing daunted, however, Mr. Villiers brought forward his intended motion to that effect; a motion which, after five nights' debate, was rejected by a majority of three hundred and ninety-three against three hundred and three. Subsequently Mr. Christopher brought forward his scale of duties as a substitute for those of Sir Robert Peel; but the original proposition was carried by an equally overwhelming majority. In committee various amendments were proposed, but they were all rejected or withdrawn, and the bill was, on the 5th of April, read a third time, and passed.

The second reading of the corn-law bill was moved in the house of lords, on the 18th of April, by the Earl of Ripon. Lord Brougham rose and moved the total and absolute repeal of the duty on foreign corn; but his amendment was rejected by an overwhelming majority. On the following day, on the motion to go into committee, Viscount Melbourne moved, "That it is the opinion of this house that a fixed duty upon the importation of foreign corn and flour would be more advantageous to trade and more conducive to the general welfare of all classes of the people than a

graduated duty, varying with the average of prices in the markets of this country." This proposition gave rise to a lengthy discussion; but it was rejected by a majority of one hundred and seventeen against forty-nine. Subsequently Lord Brougham moved these resolutions:—"That no duty ought to be imposed upon the importation of foreign corn, for the purpose of protecting the agriculturist, by taxing the introduction of food. That no duty ought to be imposed upon the importation of foreign corn, for the purpose of regulating trade, by taxing the introduction of food. That no duty ought to be imposed upon the importation of foreign corn, for the purpose of raising the revenue, by taxing the introduction of food." These resolutions were rejected, as were others moved by Earl Stanhope, Lord Beaumont, and Lord Mountcashel, and the bill passed in its original state.

FINANCIAL MEASURES—INCOME-TAX BILL, ETC.

On the accession of Sir Robert Peel to office he was embarrassed with great financial difficulties. For the ensuing year he had to deal with a deficiency of £2,570,000; with contingencies in China and India of uncertain amount. The present juncture, indeed, demanded a remedial measure of a bold and comprehensive character, and Sir Robert did not fail to bring forward such a measure. On the 11th of March, in a committee of ways and means, the right honourable baronet said, that for the year ending April, 1843, the estimated revenue would be £43,350,000, and the estimated expenditure £50,819,000, leaving a deficiency of £2,469,000. With the contingencies in India and China, indeed, he calculated that the deficit, in the two years ending May next, would not be less than £4,700,000. How, he asked, were these deficiencies to be met? Should the system of loans and exchequer-bills be continued? Was there the prospect of any considerable reduction in expenditure? Was the present deficiency a casual one? Should he impose a tax on articles of consumption and the necessaries of life? Should he revive old taxes? Should he go back to the post-office? or revive the taxes upon salt, leather, or wool? Finally, should he resort to locomotion for the purposes of taxation? All these expedients Sir Robert repudiated; and he fixed upon one which, while it justly gave offence to a large body of the people, has proved to fully answer the end for which it was designed. This was an imposition of an income-tax of sevenpence in the pound upon all incomes from £150 and upwards, and in which was included not only landed but funded property, whether in the hands of British subjects or of foreigners. He estimated the assessable yearly value of the land at £39,400,000; of houses, at £25,000,000; and of tithes, shares in railways and mines, and other similar property, at £8,400,000: total, £72,800,000. From this he would deduct one-fourth for the exemption which he proposed to give to all incomes under £150, and then the tax thus far would give him £160,000. The occupiers of land, assessed at half their rent, would yield £120,000. Next came funded property. The dividend paid in 1841 was £29,400,000, from which he would deduct £1,000,000 in respect of savings' banks; but he added upon bank, foreign, and other stocks £1,500,000, making a total of almost £30,000,000, from which, deducting one-fourth for incomes under £150 a year, he would derive £646,000. Sir Robert Peel next proceeded to incomes of trades and professions, from which he expected to obtain £1,253,000; and he then stated that from the incomes of public officers he calculated upon £150,000. The total would be £3,771,000. With

respect to the duration of this impost, he said, that government might probably require it for five years; but he would in the first instance propose its continuance for three years. In case of war he should deem it reasonable that Ireland should bear her proportion of this tax; but during peace, and for a limited period, he should prefer to raise the quota of that country by other means. He proposed, therefore, a duty of one shilling per gallon upon spirits; the equalization of the stamp-duty with that of England; and a tax of four shillings upon coal exported in British vessels from this country. The aggregate revenue from these sources and the income-tax in England would be about £4,380,000; constituting a considerable surplus, after covering the deficiency on the votes of annual expenditure. This surplus Sir Robert Peel proposed to apply in relaxing the commercial tariff. The duties on raw materials were in no case to exceed five per cent.; the duties upon articles partially manufactured were to be diminished, the highest being twelve per cent.; and upon complete manufactures no duty was to be imposed higher than twenty per cent. He laid upon the table this amended scale of duties, which had been distributed under twenty different heads; in which, he said, would be found an abatement in about seven hundred and fifty articles, and that on about four hundred and fifty the duty had been left untouched. The total diminution of revenues occasioned by the reductions was estimated by the right honourable baronet at about £270,000. He regretted to say that upon sugar, ministers could not offer any reduction; but with respect to coffee he proposed a reduction of fourpence upon British, and eightpence upon foreign, which he calculated would cause a loss of £171,000 to the revenue. On the subject of timber, he said that his measure would be the reverse of that which was brought forward by his predecessors in office; he would advise a great reduction of duty, which would benefit all classes, from the agriculturist to the shipbuilder. His propositions were to lower the duty on foreign timber to twenty-five shillings a load, and to let in the timber of Canada at a duty of one shilling a load; causing a probable loss to the revenue of £600,000. There were yet two other reductions he had to propose: one upon the export of certain British manufactures, and another upon stage-coach duties. These two heads of reduction would produce a loss of £70,000. On the whole these reductions, in addition to the excess of expenditure, would increase the deficit to about £3,700,000; but the estimated produce of the income-tax would not only cover this, but leave more than £500,000 applicable to the contingencies of war in India and China. Sir Robert Peel concluded with an earnest appeal to the house to support the name which the English had inherited from their forefathers, untarnished: and he then moved his first resolution, which was to grant a duty on Irish spirits. No discussion followed Sir Robert Peel’s speech: the motion was agreed to, and the house resumed.

A few nights subsequently, Sir Robert Peel entered into an explanation of the details of the measures he had announced; especially with respect to the machinery by which the income-tax was to be collected. On the motion to go into a committee of ways and means, Mr. T. Baring found fault with Sir Robert Peel’s calculations; and he was followed by Lord Howick, who strongly censured the income-tax, and Lord John Russell, who condemned the construction of tire tariff for not working out its own principle, but sparing certain articles, as sugar, merely from fear of the influential

interests connected with them. After three several motions by Messrs. Cobden, H. Berkeley, and Bernai, “That the chairman do report progress,” which were all negatived by large majorities, Sir Robert Peel was compelled to defer the measure till the 4th of April. The income-tax was resumed immediately after the Easter recess. The first resolution, to impose a tax of sevenpence on every pound upon all incomes, except the incomes of occupiers of land, was put and carried without discussion. On the second resolution, however, imposing a tax on the occupation of laud, calculated at the rate of threepence-halfpenny in the pound on the yearly value being read, Lord John Russell pointed out the operation’ the tax might have in inducing landlords to split their farms, so as to make the rental of each below the amount liable to taxation; and gave notice that, on the report of the resolutions, he should move this amendment:—“That it has been stated to this house, on official authority, that the deficiency of income to meet the expenditure of the country, may be estimated for the years ending the 5th day of April, 1842, at £2,350,000, and on the 5th day of April, 1843, at £2,569,000. That this house is fully sensible of the evil of a continued inadequacy of the public income to meet the expenditure, and will take measures for averting the same in future years. That, by a judicious alteration of the duties on corn, by a reduction of the prohibitory duty on foreign sugar, and an adjustment of the duties on timber and coffee, the advantage of a moderate price to the community may be combined with an increased revenue to the state. That, in addition to those main articles of general consumption, the interests of trade will be promoted by the repeal or reduction of various prohibitory and differential duties, and that extended commerce will improve the revenue, whilst it gives employment to industry. That the amount of taxes taken off, or reduced, from the termination of the last war to the end of the year 1836, exclusive of the tax on income, may be stated in round numbers at £23,873,000. That the income-tax, having been first imposed in a period of extreme emergency and during a most perilous war, was repealed on the re-establishment of peace; and having been again imposed on the renewal of war, was again repealed in 1816, on the termination of hostilities. That considering the various means of supplying the deficiency without enhancing the price of the necessaries of life, or embarrassing trade, it is the opinion of this house that the renewal of a tax, inquisitorial in its character, unequal in its pressure, and which has hitherto been considered as the financial reserve of the nation in time of war, is not called for by public necessity, and is therefore not advisable.” The second resolution was then put and agreed to; as was also the third, equalizing certain stamp-duties in Ireland with those of England; and the report was ordered to be brought up. Lord John Russell’s amendment came on for discussion on the 8th of April, when his lordship, in a speech of great length, charged the government with taking too gloomy a view of affairs, comparing the present aspect of the finances with that when an income-tax was formerly proposed. If new taxes must be resorted to, his lordship recommended a tax on the succession to real property, or the revival of some of the repealed assessed taxes. Mr. Goulburn defended the ministerial policy; and Sir Robert Peel vindicated himself from the charge of over-rating difficulties, and contrasted the state of finances which the Melbourne government found on entering office in 1835, with that which they left on their departure, in the British and Indian empire. The debate on Lord John Russell’s amendment lasted four nights, most of the principal speakers on

both sides taking part in it. On the fourth night the house divided; when it was lost by a majority of three hundred and eight against two hundred and two. The report was then brought up and read, and leave given to bring in a bill founded on Sir Robert Peel’s resolutions. On the motion for the first reading of the bill, on the 18th of April, Lord John Russell moved that it be read a first time that day six months. A debate of considerable length ensued, in which arguments urged for or against the measure were repeated; after which the amendment was rejected by a majority of two hundred and eighty-five to one hundred and eighty-eight. The bill was then read a second time, and a few days afterwards the house went into committee. In committee the first question discussed was the period when the tax should commence; and the time finally decided was the 5th of April, 1842. The original proposition respecting schedule A was then affirmed, as was also schedule B. On schedule C Mr. Ricardo moved an amendment to exempt terminable annuities, and to subject them to special scales according to their market value; but, on a division, the motion was rejected by a large majority. In considering schedule D, which rendered incomes derived from professions, trades, and employments liable to the tax of sevenpence in the pound, Mr. Roebuck moved that it be fixed at half that sum. This motion was warmly supported by several speakers; but it was rejected, as was also another amendment to defeat this clause, moved by Mr. Sharman Crawford. Sir Charles Napier made a proposition on schedule E, to exempt officers in the army and navy from taxation; but this was also rejected: and after this the progress of the bill went on rapidly, more than eighty clauses being disposed of in one night’s debate. A second sufficed to get through the bill; amendments moved by Messrs. Baring, Hume, and Benjamin Wood, being all rejected by large majorities. On the third reading, Mr. Sharman Crawford moved an amendment, to the effect that the present house of commons could not be considered a fair representation of the people; and that therefore it was unfit that any system of increased taxation should be imposed by parliament until all just causes of complaint, with regard to the mode of electing members, should be redressed. Lord John Russell himself opposed this motion, and it was at once rejected; and after some further discussion on the bill, it was read a third time by a majority of one hundred and ninety-nine against sixty-nine. The bill then passed.

NEW TARIFF.

The question of the income-tax being thus settled, government proceeded to carry into effect the other great branch in their financial scheme—the alterations in the tariff or customs duties. A complete copy of the tariff was placed in the hands of each member of parliament previously to the 5th of May, on which day it was announced that it would be moved to go into committee on this important subject. On that day the proceedings in the house of commons, were commenced by an elaborate preliminary statement on the part of the prime-minister, in which he showed that the general object of the present government was to simplify the existing law. Sir Robert Peel then went over in detail some of the chief alterations proposed in duties on what is called raw material. Among the articles under this denomination were clover-seed, woods, ores, oils, extracts, and timbers, on all of which he proposed to reduce the duties. On articles of foreign manufacture, Sir Robert continued to explain that he proposed to levy an amount of duty, generally speaking, not to exceed twenty per

cent. He next proceeded to combat the argument of his opponents, that he had begun at the wrong end, that he should have reduced the duties on articles of provision, and have dealt more largely with the corn-laws. Taking the whole tariff, he contended that it would be seen that the cost of sustenance was greatly reduced. At that moment, he said, under the old law the duty on foreign wheat would have been 27s. a quarter; under the new law it was 13s. Then again, beef, fresh or slightly salted, was absolutely prohibited; but he proposed to admit it at 8s. a hundred-weight. He further proposed to lower the duties on lard, hams, salmon, herrings, hops, &c. Sir Robert then explained that in the amended tariff, on the representation of straw-plait makers, the duty had been increased from 5s. to 7s 6d. in the pound; at the same time he showed that it would be no protection to them, inasmuch as the article was of such a nature that it could be easily smuggled into this country without detection. He then endeavoured to convince those who feared the reduction of duties on live cattle, that their alarm was groundless, arguing that the English grower had substantial security in the quality of the article, and that England from this circumstance might become an exporting country. Mr. Labouchere said that he had heard the speech of the right honourable baronet with great pleasure. At the same time he asserted that the late government had announced a tariff reform; and that it was only the want of success which attended its plans with respect to corn, timber, and sugar, which had prevented it from submitting to the house measures of a similar character to those now brought forward. After a protracted discussion, the house divided on the question, that the speaker do now leave the chair, which was carried by a majority of two hundred and nineteen against one hundred and fifty-two. On the 13th of May, on the motion of going into committee on the customs' duties bill, Lord Howick proposed this resolution:—"That in making a new arrangement of the customs' duties, it is not expedient to impose different rates of duty upon the same articles when imported from foreign countries or from British possessions, in any case where no such difference now exists; and that in those cases in which such a difference already exists, it is not expedient that it should be increased." He argued that such differences would injure the revenue without benefiting the consumer; while they would force colonial traders into precarious existence. This view of the case was ably combated by Mr. Gladstone; and on a division the motion was negatived by a majority of two hundred and eighty-one against one hundred and eight. The house considered the tariff in detail after the Whitsuntide recess; when the duties on cattle and provisions excited keen discussion, the agricultural members being alarmed at the prospect of foreign competition, which they anticipated from the reduced duties. On the house going into committee on the 23rd of May, the motion being made, "That in lieu of the present rates of duty now payable on the articles enumerated in the annexed schedules, there shall be raised, levied, and paid upon the importation of the said articles into the United Kingdom, the rates of duty proposed in the annexed schedules;" Mr. Miles moved, by way of amendment, the following words:—"All live stock imported from foreign countries being charged by weight." In support of his amendment Mr. Miles went into a variety of calculations to show the injury that would result to the farmer from the proposed arrangement of duties, contending that the United States, Denmark, Holland. Prussia, and the various states of Germany, would fatten cattle for the English market, and thus render it impossible for the

farmers at home to compete with the foreign breeder. He was supported by the Earl of March, and Messrs. H. Palmer and G. Heathcote, and opposed by Lords Alford and Norreys, Colonel Wyndham, and Messrs. Gaily Knight and Gladstone. The latter said that a material omission in Mr. Miles's argument, was the want of proof that a large quantity of cattle could be imported so as to injure the English farmer. Lord John Russell, in continuation, said that he rejoiced to hear the principles laid down by Sir Robert Peel; but he argued that they should have been extended to the corn-laws. Other members spoke on both sides of the question; and after a reply from Mr. Miles, the amendment was rejected by a majority of three hundred and eighty against two hundred and sixty-seven. When the committee resumed on the following day, Mr. Miles moved an amendment, imposing a duty of 5s. 6d. per cwt. on live cattle, and 9s. 4d. per cwt. on the dead meat. This amendment, however, was withdrawn; and one moved by Mr. Villiers, that the duty of one shilling per head on oxen and bulls be substituted for the government proposition, was rejected. The items in the tariff were then taken _seriatim_. Discussions took place, and amendments were proposed on the duties affecting swine and hogs, foreign fish, apples, butter, potatoes, timber, cotton manufactures, foreign silk, &c.; but in each case the duties affixed by government were affirmed by large majorities. The third reading of the customs' act was at length moved on the 28th of June, on which occasion Mr. John Jervis moved a clause to grant a drawback on coals proved to be exported for the consumption of British steam-vessels. This motion was rejected; and on the question that the bill do pass, Lord John Russell made some few remarks on its general provisions, and Sir Robert Peel acknowledged the support which he had generally received from both sides of the house. The question being then put from the chair, the bill was read a third time, and passed in the midst of loud cheers.

The customs' act was read a first time in the house of lords two days after it had passed the commons, and the Earl of Ripon moved the second reading on the 5th of July. Two days afterwards the house went into committee on the bill, and every amendment proposed by opposition lords was negatived without division, and the bill passed through committee, and was reported.

The subject of the duties on sugar was brought forward in a committee of ways and means, on the 3rd of June, by the chancellor of the exchequer, who explained the reasons why government could not consent to the admission of foreign sugar at a lower rate of duty, and moved a resolution that the present duties should be continued one year; which proposition, after a lengthened discussion, was confirmed.

MR. VILLIERS'S MOTION ON THE CORN-LAWS.

On the 11th of July, it having been moved to go into committee of supply, the opposition party brought forward the subject of the state of the nation. Mr. Villiers having moved as an amendment for the appointment of a select committee on the laws regulating the importation of corn, with a view to their total repeal, prefaced his motion with a speech, in which he said that he brought the subject forward in compliance with the request of the anti-corn-law delegates; and because, in the late discussion on the state of the nation, a taunt had been thrown out on the ministerial side, that, if the opposition thought that a repeal of the corn daws would remedy the

evil, they ought to submit that proposition to the house. The motion was seconded by Mr. Fielden, and supported by Mr. Aglionby, who declared the new sliding-scale was a delusion. Sir Charles Napier and Mr. Gaily Knight conceived that these debates ought not to be protracted: it was an unfair way of conducting any opposition to a government. Sir Robert Peel bitterly complained of the continual interruption to public business, and of the impediments opposed to a fair trial of the new corn-law. Lord J. Russell, Viscount Howick, Sir John Hanmer, and Mr. Cobden supported the motion; but, on a division, it was rejected by two hundred and thirty-one against one hundred and seventeen.

While these discussions were taking place in the house of commons, the same class of topics were brought forward in the house of lords by Lord Brougham, who moved that a select committee be appointed to inquire into the distress of the country. This motion was supported by Lord Kinnaird and the Marquis of Clanricarde; and opposed by the Earl of Ripon, Viscount Melbourne, and Earl Stanhope. On a division it was rejected by a majority of sixty-one against fourteen.

THE GREAT CHARTIST PETITION.

The most striking shape in which the grievances of the working classes presented themselves to the notice of the legislature during this session, was the presentation of a petition, which, for bulk and signatures, was unparalleled in the annals of parliament. The signatures attached to it exceeded 3,000,000; and in conveying it to the house of commons, it required sixteen men to support it. It was, in fact, too large to be admitted into the door of the house of commons; and, in order to effect its enhance, it was divided into sections. It was presented by Mr. T. Duncombe, who, in calling the attention of the house to its contents, thanked them for the kind and respectful manner in which it had been received. The petition, he remarked, had nearly 3,500,000 signatures; and, making allowance for the signatures of youths and females, he was prepared to prove that there were above 1,500,000 of families of the industrious classes subscribers to that petition. The prayer of the petition was for the enactment of the great constitutional changes which form the “six points” in the Chartist creed, to which was added a demand for the abolition of all kinds of monopolies. Mr. Duncombe concluded by moving, “that the petitioners of the national petition be heard at the bar of this house, by themselves, their counsel, or agents, in support of the allegations of then-petitions.” The motion was seconded by Mr. Leader. The spirit of this petition was bitter, and its language offensive. It was pervaded by a desire for class legislation, and propounded doctrines subversive of the rights of property, and of the national faith and credit. On a division, the motion was negatived by two hundred and eighty-seven against forty-nine.

BILL FOR RESTRAINING THE EMPLOYMENT OF WOMEN AND CHILDREN IN MINES AND COLLIERIES.

In a previous session, after having been the means of carrying a humane law to prevent the cruelties inflicted on children employed in factories, Lord Ashley procured the appointment of commissioners for inquiry into the employment of children. These commissioners examined into the state of young persons in mines and

collieries; and the course of their inquiries brought to light more than the sufferings of children alone; for they found the cases of the women in many places equally pitiable. This subject was brought forward by Lord Ashley in the house of commons on the 7th of June, when his lordship moved for leave to bring in a bill for restraining the employment of women and children in mines and collieries. The speech of Lord Ashley disclosed a state of things in the mining districts the most appalling. Cruel oppressions were perpetrated by the mine owners and overseers, especially upon women and children; and frequently parents showed an utter callousness to the sufferings of their offspring. The work assigned to girls and young women was destructive of health, and was conducted under circumstances so indecent that it was difficult for the noble speaker to state the details to the house. The commons received the intelligence with amazement and indignation; they had no conception that such outrages upon female decency, and upon humanity, existed in England. Lord Ashley proceeded to state the means, which he should call upon the legislature to adopt for an immediate removal of the most hideous and appalling features of the system he had described. The means explained by his lordship were fourfold: the total exclusion of female labour from all mines and collieries in the country; the exclusion of all boys under thirteen years of age; the prevention of the employment of males under twenty-one years of age as engineers; and the abolition of apprenticeship. Lord Ashley concluded his able and humane speech in this appropriate and emphatic language of scripture:—“Let us break off our sins by righteousness, and our iniquities by showing mercy to the poor.” A hearty concurrence was manifested on all sides of the house in the proposition; and the bill having been brought in, was passed rapidly through all its stages, and finally read a third time amidst loud cheers. Before the measure came into the upper house, it was announced by Lord Wharncliffe that ministers would be passive respecting it, each individual member taking what part they deemed prudent. The second reading was moved by the Earl of Devon, who, after vindicating the measure, contended that without any evidence the house would be justified in preventing the employment of women in the places described. Subsequently, the earl explained the alterations which it had been thought advisable to make in the bill; namely, the postponement of the time at which the employment of females should cease until the 1st of March next; the abandonment of a clause for regulating the hours during which children should be employed; the restricting the term of apprenticeship in any mine or colliery to eight years instead of entire prohibition; and the enacting that no boy be apprenticed under ten years of age. Several noble lords spoke for and against the measure; but the motion for going into committee was carried by forty-nine against three. In committee several amendments were successively proposed by Lords Beaumont, Littleton, Skelmersdale, Dunmore, and Mount Cashel; but they were all rejected, and the several clauses were agreed to, with some verbal amendments, and the bill reported. The third reading was opposed by Lord Londonderry, but without success; and the bill passed. The amendments were subsequently agreed to in the commons.

BRIBERY AT ELECTIONS.

On the 6th of May, Mr. Roebuck, having given notice previously of his intention, moved for a committee of inquiry into the election of the members for Reading,

Nottingham, Lewes, Penryn, and Harwich. In making this motion Mr. Roebuck entered into particulars concerning these elections, in all of which he contended bribery had been practised. He wished to inquire into these transactions in order to expose them to the people of this country. He had not, he said, confined his accusations to one side of the house or the other. He had made no party question of it: he stood up for the purity of the house; and, God willing, it should be made pure. The motion was seconded by Mr. Fitzroy, member for Lewes, who warmly challenged inquiry into his conduct. Captain Plumridge, also, member for Penryn, declared that he had never given one penny towards the expenses of his election. On the other hand, Mr. Elphinstone, another of the accused members, declared frankly that, in his election, both parties had been guilty of bribery, and that if the inquiry had proceeded, none of the four candidates for his seat would now have been members of parliament. After a lengthened discussion a committee was appointed, and at the latter part of July the report of this committee was presented to the house, shortly after which Mr. Roebuck gave notice of his intention to move the following resolutions:—"That the compromises of election petitions, as brought to the knowledge of this house by the Report of the Select Committee on Election Proceedings, must, if for the future they be allowed to pass without punishment or censure, tend to bring this house into contempt with the people, and thereby seriously to diminish its power and authority. That all such practices are hereby declared to be a violation of the liberties of the people, and a breach of the privileges of this house; which it will in all future cases inquire into, and severely punish. That whereas in the late elections for Harwich, Nottingham. Lewes, Reading, Falmouth, and Penryn, and Bridport, the present laws have been found insufficient to protect the voters from the mischievous temptations of bribery, it be ordered that Mr. Speaker do issue no writ for any election of members for the said towns, till further legislative enactments have been adopted to protect the purity of elections." In moving these resolutions Mr. Roebuck said that they mentioned no names, but simply provided for future mischiefs. He had proved all his assertions, and much more: and would the reflecting and honest people of England believe, that in buying up poor voters, in debauching, poor constituencies, and afterwards shielding themselves by a contemptible quibble, and buying off the consequences, the conduct of members was either honourable to themselves, or beneficial to their constituents? He believed the people would say the chief criminal was the briber; the rich man who went down with money in his pocket to a large constituency.—some of them oppressed by poverty—and offered them bribes to sell their consciences. A lengthened and stormy debate took place; but the resolutions were all negatived. But, notwithstanding the house of commons refused to affirm these resolutions, the investigation that had taken place had some practical result. One of the terms on which the petition against the return of one of the members for Reading was compromised, was the acceptance of the Chiltern hundreds within a limited time. When that time arrived, however, for carrying this stipulation into effect, an unexpected difficulty occurred. The chancellor of the exchequer now made aware, by the publication of the report, for what the application was preferred, declined to grant it; and the individual who had bound himself to resign his seat, found it beyond his power to do so. The course of proceeding adopted by the chancellor of the exchequer became the subject of

discussion in the house of commons on the 6th of August, when Lord Palmerston moved for “copies of any correspondence which had taken place since the 1st day of July last, between the chancellor of the exchequer and any member of this house, upon the subject of the stewardship of the Chiltern hundreds;” the result of which motion was that the copies were ordered. Subsequently, the writs for filling up vacancies created by the unseating or collusive resignation of members at Ipswich, Southampton, Nottingham, and Newcastle-under-Lyne were all ordered to be issued. The disclosures before the committee concerning Sudbury, induced Mr. Redington, the chairman, to bring in a bill for the disfranchisement of that borough; but though this bill was supported by government, and passed through the commons, owing to the late period at which it was sent up to the lords, it only reached a second reading in that house. The writ, however, was suspended _sine die_. In connection with this subject, it may be mentioned that Lord John Russell brought in a bill for the prevention of bribery, and remedying some of the abuses to which election proceedings were liable; which bill, with some modifications in committee, passed both houses, and received the royal assent.

LAW REFORMS.

In the early part of this session the lord-chancellor gave notice of bills respecting bankruptcy, lunacy, and county courts. Adverting first to the subject of bankruptcies, he commenced by paying a compliment to Lord Brougham, upon the improvements in that department of the law which he had introduced. His lordship continued:—“That system, however, excellent as it was, comprised within its jurisdiction only a circuit of forty miles round London. He proposed to extend the metropolitan district to a hundred miles round London; which would add a fifth to the business of the commissioners, without inconvenience to them. For the country, it was proposed to appoint commissioners at five central points, in five great towns, beyond the London district, invested with the same power which was at present reposed in the London commissioners. They would perform the same quantity of duty now performed by the London commissioners, having a similar range and a similar jurisdiction.” The course respecting the law of lunacy was somewhat similar. His lordship remarked:—“The law of lunacy was administered like that of bankruptcy, the London commissioners having jurisdiction for twenty miles round the metropolis; and the country commissions being like those of bankruptcy, directed to persons of little or no experience, though the inquiries were of the nicest and most delicate character. He proposed that two commissioners should be appointed, for the purpose of executing all those commissions, not only in the metropolitan districts, but throughout the country. From an examination of details he was satisfied that those two commissioners would be amply sufficient for discharging those and other important duties connected with lunacy. The payment of commissioners by fees would be abolished, and they would be added to the visitors at present appointed to inspect the condition of lunatics. They would be taken from among the highest members of the bar.” Concerning the county courts, his lordship said that he was averse to any sweeping change: his measure went merely to extend their jurisdiction. They were presided over by the county clerk, whose jurisdiction extended to forty shillings. “If,” said his lordship, “I appoint a particular place, and give them a jurisdiction to the extent of five pounds, and appoint

persons of respectability and learning, I think I do not innovate upon ancient institutions." His lordship proposed further, that for the recovery of debts to the amount of twenty pounds, persons should be appointed judges of these courts, who should not reside in the provinces where they administered the law, but that they should make circuits, like the judges of the land, into the provinces with which they were not acquainted, and where they had no local connections or prejudices. His lordship proposed that there should be six or eight circuits in the year, to be made by barristers of a certain standing, to be appointed by the crown; who should return to the metropolis after the circuits, where they could mix with their colleagues in the profession, and thus give a security for the uniformity of the law which they administered. The bills were generally approved of, and they passed the upper house unopposed. In the commons an attempt was made to induce government to postpone the consideration of them; and that relating to the county courts was postponed till the following year, but those respecting bankruptcy and lunacy were passed. Another bill, introduced by Sir James Graham, for the amendment of the law relating to the registration of votes in England, was delayed; and three bills proposed by Lord Campbell, to alter the administration of the house of lords as a court of appeal, to alter the system of appeal to the judicial committee of the privy council, and to amend the administration of the court of chancery, were rejected. A question of general interest respecting the marriage law was also raised this session in the commons, by Lord Francis Egerton, who moved for leave to bring in a bill to alter the laws relating to marriage within certain degrees of affinity. The chief feature of this bill was, that it would enable a widower to marry a deceased wife's sister; but, on a division, the motion for leave to bring in the bill was lost by one hundred and twenty-three against one hundred.

BILL FOR THE PROTECTION OF THE ROYAL PERSON.

During this session, in consequence of an attempt upon the queen's life, by an insane person of the name of Bean, Sir Robert Peel brought in a bill on the subject, which met with the unanimous approbation of the house. In introducing this bill, after adverting to the act passed in the reign of George III., for the protection of that monarch, Sir Robert said that he proposed to extend the change of procedure involved in that act, namely, the abolition of the forms usually attendant on trials of high treason, &c., to cases where the offence was that of compassing the wounding of the sovereign. Concerning the class of offences against which his measure was to provide, Sir Robert remarked:—"I propose that, after the passing of this act, if any person or persons shall wilfully discharge, or attempt to discharge, or point, aim, or present at or near the person of the queen, any gun, pistol, or other description of fire-arms whatsoever, although the same shall not contain explosive or destructive substance or material; or if any person shall strike, or attempt to strike the person of the queen with any offensive weapons, or in any manner whatever; or if any person shall wilfully throw or attempt to throw any substance whatever at or on the person of the queen, with intent, in any of the cases aforesaid, to break the public peace, or with intent, in any of the cases-aforesaid, to excite the alarm of the queen; I propose that any party so offending—that is, intending to hurt the queen, or to alarm the queen, shall be subject to the same penalties which apply to cases of larceny; that is,

he be subject to transportation not exceeding seven years. I propose, also, another punishment, more suitable to the offence, and more calculated to repress it, that there be a discretionary power of imprisonment for a certain period, with authority to inflict personal chastisement." In continuance, Sir Robert Peel expressed an opinion that such a punishment would awe miscreants capable of harbouring such designs, and that the provisions of the bill would be amply sufficient for the purpose of protecting her majesty. "For," he added, "observe what we have to guard against—it is not any traitorous attempt against the peace of the nation by conspiring to take away the life of the sovereign, but it is the folly or malignity of wretches who are guilty of acts prompted by motives which are scarcely assignable. The law, in its charity to human nature, has omitted to provide for the case of any being formed like a man who could find a satisfaction in firing a pistol at a young lady, that lady a mother, and that mother the queen of these realms. It never entered into the conception of former law-makers that anything so monstrous should arise, as that the queen of these realms should not enjoy a degree of liberty granted to the meanest of her subjects. I am sure the house will respond to the proposition to give the security of this law for the protection of her majesty." The bill was passed with unanimity.

POOR-LAW AMENDMENT BILL.

During this session government proposed and carried a bill re-enacting the poor-law commission for five years, abolishing the Gilbert unions, and forming districts for the purposes of education and various minor matters. This bill, however, was not carried without much opposition.

PROROGATION OF PARLIAMENT.

Parliament was prorogued on the 12th of August by the queen in person. Having given the royal assent to several bills, her majesty expressed her grateful sense of the assiduity and zeal with which both houses had applied themselves to the discharge of their public duties. In her speech her majesty also alluded to the measures which had been taken into consideration; thanked her parliament for the loyalty and affectionate attachment shown to her person by the act passed for her protection; and made some allusions to reverses which had befallen a division of the army westward of the Indus, and to a victory gained at Jellalabad.

EAST INDIA AFFAIRS, ETC.

During the preceding year the British power in India came into hostile collision with the Ghilzies. This collision was thus brought about. The Khoord Cabul Pass is a long and dangerous defile through which the road between Cabul and Jellalabad runs, and which, therefore, it was necessary to keep open for the purpose of safe intercourse between Cabul and British India. This part of Affghanistan was occupied by the eastern Ghilzies: and it was thought advisable to purchase from them the right of traversing the pass without molestation. An agreement was, in fact, entered into with the Ghilzee chiefs, whereby it was stipulated that a certain sum of money should be paid them yearly out of the Cabul treasury, if they would keep the pass open, and offer no molestation to our troops on their passage between Cabul and Jellalabad. Owing, however, to the financial difficulties of the Cabul treasury, or to some

mismanagement on the part of the officer who was appointed to disburse the money, the whole amount of the stipulated sum was not paid, and the Ghilzies immediately rose in arms and closed the passes. It was necessary to open it by force; and Major-general Sir Robert Sale was sent by General Elphinstone from Cabul for that purpose. The brigade which Sir Robert commanded entered the pass on the 12th of October. The Ghilzies were posted behind a breastwork near the middle of the pass; and as the assailing body approached, the enemy withdrew from this position, and occupied the steep and precipitous ridges of the mountains on either side, from whence they opened a well-directed fire. General Sale was wounded in the ankle and obliged to leave the field; and Lieutenant-colonel Dennie then took the command. Under his direction one section of the brigade got possession of the heights, and their guns were established in a deserted fort on the southern gorge of the pass; but the other division marched back through the defile to the camp at Boothak. But, although the Khoord Cabul Pass was thus cleared, the force under General Sale was compelled to fight with the enemy during eighteen days in their route to Gundamuek, which was reached on the 30th of October. After this the British troops commanded the route to Sookhab; and on the 12th of November they reached Jellalabad. In the meantime a fearful tragedy, which ended in the total destruction of our Cifeul force, had commenced in that city. The British troops were placed in a cantonment on the north side of the city, which cantonment consisted only of a low rampart and narrow ditch, in the form of a parallelogram, thrown up along the line of the Kohistan road, one thousand yards long and six hundred broad, with round flanking bastions at each corner, every one of which was commanded by some fort or hill. The “Mission Compound,” where Sir William M’Naghten, the envoy, and his suite resided, was attached to the cantonment on the north side, and surrounded by a single wall. On the eastern side, about a quarter of a mile off, the Cabul river flowed in a direction parallel with the Kohistan road; and between the river and cantonments there was a wide canal. In itself this cantonment was most insecure; but General Elphinstone threw a bridge over the river so as to render the communication between the Seeah Sung camp and the cantonment still more easy. The most extraordinary oversight, however, was the allowing the commissariat stores to be placed in an old fort detached from the cantonment, and in such a state as to be wholly indefensible. The troops were thus placed when a rebellion took place under Ameenoollah and Abdoolhah Khan. It commenced by an attack on the dwellings of Sir Alexander Barnes and Captain Johnson, who resided in the city of Cabal; Sir Alexander, his brother, Lieutenant Burnes, and Lieutenant Broadfoot were murdered. On discovering this, General Elphinstone sent an order to Brigadier Shelton to march forthwith with a body of troops to the Bala Hissar, or royal citadel, situated at the eastern extremity of the city; the rest of the troops in that camp were withdrawn into the cantonment, and the whole of the camp followers when collected amounted to twelve thousand, exclusive of women and children. A long and miserable siege now took place. The Affghans surrounded the cantonments, and poured in a constant fire from every quarter; and, at length, on the 11th of December, the commissariat fort being captured by the enemy, Sir William M’Naghten was compelled to sign this humiliating agreement with the rebel chief:—“That the British should evacuate the whole of Affghanistan, including Candahar, Ghuznee, and Jellalabad: that they should

be permitted to return unmolested to India; and that supplies should be granted to them on their road thither—certain men of consequence accompanying them as hostages; that means of transport should be furnished to the troops; that Dost Mahomed Khan, his family, and every Affghan then detained within our territory should be allowed to return to their own country; that Shah Soojah and his family should have the option of remaining at Cabul or proceeding with the British troops to Loodianah, in either case receiving from the Affghan government one lac of rupees per annum; that an amnesty should be granted to all who had taken the part of Shah Soojah; that all prisoners should be released; that no British force should ever be sent into Affghanistan, unless invited by the Affghan government." The chiefs, in retiring from the conference, took with them Captain Trevor as a hostage. Much delay took place in carrying any of these terms into effect; and in the meantime a trap was laid for Sir William M'Naghten, into which he fell. On the 22nd of December two Affghans came into the cantonment, and had a private conference with him, in which they made a proposal on the part of Akbar Khan, that Ameenoolah Khan should be seized the next day, and delivered up to the British as a prisoner; that the Bala Hissar should be occupied by one of our regiments: that Shah Soojah should continue king, and Mahomed Akbar become his Wuzeer, or prime-minister; and that our troops should remain in the cantonment until the following spring. To these specious terms the envoy unwarily assented; and on the 23rd of December, accompanied by three officers, he left the Mission-House to attend a conference with Mahomed Akbar Khan in the plain toward Seeah Sung. While in the act of conference, however, Sir William M'Naghten and the officers were seized from behind by armed men; and he and Captain Trevor were murdered; the other officers escaped with difficulty. The situation of the British troops was now evidently desperate, and Major-general Elphinstone deemed it necessary to provide for their safety by again attempting to negociate with the enemy. A convention was entered into, in pursuance of which the troops commenced their march on the 6th of January. In the whole there were 4,500 fighting men about 12,000 camp followers, and a large number of women and children. Their retreat was most disastrous. The snow lay deep upon the ground, and the rear-guard had scarcely quitted the camp before it was attacked by the enemy. As far as Bareekhur the whole way was strewed with the dead and dying, who were immediately stripped and left naked by the Affghans; while the merciless Ghuzees hacked the dead corpses to pieces with their long knives. While at Bareekhur a communication was opened with Akbar Khan, who now offered to restrain the Affghans from further outrages, provided hostages were delivered to him as a security that the British would not march beyond Tezeen, until General Sale had evacuated Jellalabad. The proposal was accepted, and Major Pottinger and Captains Lawrence and Mackenzie became hostages. The troops now proceeded to the Khoord Cabul Pass; but Akbar Khan's promise was futile: they had to force the difficult pass with considerable loss. The next morning the treacherous chief sent to the encampment, professing his concern at his inability to restrain the Ghilzies, who had been most active in the attacks of the preceding day; but he offered to protect the ladies, provided they would put themselves under his care. Eight ladies, including Lady Sale and Lady M'Naghten, placed themselves under his protection; those who had husbands being solaced by their company. In resuming the march the contest

recommenced, and it did not cease until they reached Jugdulluck. Few, however, reached that place. Of the whole force which had left Cabul, amounting to more than 16,000 persons, not more than three hundred are said to have escaped. At Jugdulluck, Akbar Khan effectually interfered, and the unfortunate British were allowed to occupy, without molestation, a ruined enclosure, where they lay down, worn out by fatigue, and helpless, in the snow. Out of this number only one man, Dr. Brydon, lived to reach Jellalabad; the rest, subsequent to the protection afforded them by Akbar Khan at Jugdulluck, were all slain, either by the Affghan troops, or by the inhabitants of the villages through which they passed in their flight. As for General Elphinstone, he was detained prisoner by Akbar Khan, who sent for him under pretence of treating personally with him.

The enemy now approached Jellalabad, which was occupied by Sir Robert Sale, who had maintained his position there since the day on which he reached it. This gallant general had been engaged in several encounters with the enemy, in which he had uniformly punished them. When the enemy approached Jellalabad, Lady Sale, then a prisoner in the hands of the Affghans, wrote a letter, exhorting lier husband to defend his position; saying that she preferred death to dishonour. Sir Robert Sale refused, when summoned, to abandon his post, and he was consequently besieged by the enemy. Vigorous efforts were soon made to relieve the besieged garrison. Lord Auckland was about to retire from the government of India, and a new governor-general, Lord Ellenborough, had arrived at Calcutta on the 18th of February. In the meantime Sir Jasper Nicholls, who was commander-in-chief of the British forces in India, was urged by Lord Auckland to push on to Peshawar as many troops as he could spare. A body of 3500 men arrived at Peshawar on the 27th, but he having failed to force the Khyber Pass, was compelled to remain passive until joined by Major-general Pollock, who, when he arrived, took command of the forces destined for the relief of Jellalabad. A portion of the forces under his command consisted of Sikhs, the troop of the Maha Rajah Shere Sing, ruler of the Punjaub, under General Abitabile. On the arrival of Major-general Pollock at Peshawar, accounts were received from Jellalabad, representing General Sale as in want of immediate succour. Two brigades, consisting of 4,000 men, under the command of Colonel Bolton, had not yet joined his forces; but General Pollock nevertheless resolved to advance forthwith, having under his command about 8,000 men. The task he had to perform was one of the most difficult nature. From Jamrood, on the eastern side, the Khyber Pass extends for twenty-eight miles towards Jellalabad; and the defiles had hitherto been considered as impassable to an army if opposed by an enemy. The pass was defended by the Khyberries; but, despite their opposition, his whole force cleared it by the 14th of April; the first instance in history of an army forcing its way through these dreaded defiles in face of an enemy. The Sikh troops were left in possession of the pass, and on the morning of the 16th of April the troops, under the command of General Pollock, came in sight of Jellalabad, and were loudly greeted by the beleaguered garrison.

Before the arrival of General Pollock at Jellalabad, General Sale had, however, gained some important victories over his adversaries. The most important victory was obtained on the 7th of April, and Sir Robert Sale thus describes the contest:—“The

troops issued from the Cabul and Peshawar gates at daylight this morning. So far from the Sirdhar (i.e. Akbar Kahn) having made any dispositions to avoid the encounter, his whole force (not falling short of 6,000 men) was formed in order of battle, for the defence of his camp, its right resting on a fort, and its left on the Cabul river; and even the ruined works, within eight hundred yards of the place, recently repaired, were filled with Ghilzie marksmen, evidently prepared for a stout resistance. The attack was led by the skirmishers, and a column, under Captain Havelock, which drove the enemy in the most satisfactory manner from the extreme left of his advanced line of works, which it pierced, and proceeded to advance into the plain; whilst the central column directed its efforts against a square fort upon the same base, the defence of which was obstinately maintained. With the deepest regret I have to record that, whilst nobly leading his regiment to the assault, Colonel Dennie, C.B., of her majesty's thirteenth light infantry, received a shot through his body, which shortly after proved fatal. The rear of the work having been finally gained by passing to its left, I gave orders for a combined attack upon the enemy's camp. It was in every way brilliant and successful. The artillery advanced at the gallop, and directed a heavy fire upon the Affghan centre, whilst two of the columns of infantry penetrated his line near the same point; and the third forced back his left from its support on the river, into the stream of which some of his horse and foot were driven. The Affghans made repeated attempts to check our advance by a smart fire of musketry, by throwing forward heavy bodies of horse, which twice threatened in force the detachments of foot under Captain Havelock, and by opening on us three guns screened by a garden wall, and said to have been served under the personal superintendance of the Sirdhar; but in a short time they were dislodged from every point of their positions, their cannon taken, and their camp involved in a general conflagration. The battle was over, and the enemy in full retreat in the direction of Lugliman by about seven a.m. We have made ourselves masters of two cavalry standards; recaptured four guns lost by the Cabul army and Gundamuck forces; and seized and destroyed a great quantity of _materiel_ and ordnance stores, and burned the whole of the enemy's tents. In short, the defeat of Mahomet Akbar in open field, by the troops whom he had boasted of blockading, has been complete and signal." After his defeat Akbar Khan retired in the direction of Cabul, but his troops deserted from him to a man. Such was the state of affairs when the junction between the forces of General Sale and General Pollock took place at Jellalabad. The garrison was suffering severely from want of provisions, but plentiful supplies soon began to pour in from Peshawar, and the two generals subsequently resolved upon offensive operations. At this time the monarch whom the British power had placed on the throne at Cabul was dead: he had ordered a general levy of troops to be made in his capital, to march upon Jellalabad; and, while he was on his way to join these troops at Seeah Sung, he was fired upon by fifty Juzdilchees, who were placed in ambush, and was killed. General Pollock remained at Jellalabad upwards of four months, during which time his troops suffered severely from sickness, and their ranks were greatly thinned by death; and it was not until the 20th of August that he commenced his march towards Cabul. The prisoners, male and female, which were captured by Akbar Khan were in separate forts within the valley of Tezeen, where General Elphinstone died; and during the period of General Pollock's stay at Jellalabad, Akbar Khan sent

two of the British officers in captivity to treat for the liberation of the whole. He wished, however, to make our evacuation of Affghanistan the condition of restoring the prisoners; but as this proposal could not be entertained, all negotiations ceased, and the prisoners were subsequently removed from Tezeen to forts between Cabul and Bameean. Previous to his departure from Jellalabad, General Pollock had issued a manifesto to the chiefs at Cabul, stating his intention of marching upon the city, and promising them that if they restored the prisoners, their property would be protected and their city spared; but that if they allowed Akbar Khan to remove them, they must all be held responsible for the consequences, and that every house in Cabul should be razed to the ground. At length, on the 20th of August, General Pollock advanced from Jellalabad. The first conflict with the enemy took place at Mammoo Khail, about two miles from Gundamuck, where about 12,000 troops under the command of the chiefs Hadji Ali and Kyrrollah Khan were defeated. The two chiefs retreated towards Cabul, and General Pollock advanced thither on the 7th of September. On the 8th he reached the Soorkah, a small river, from which he had to traverse the formidable pass in order to arrive at Jugdulluck, which is about twenty miles distant. An obstinate opposition was made to his progress from the heights by which this pass is surrounded; but it was overcome by the prowess of the British forces, and the enemy took refuge in flight. Their onward march still lay through a difficult country; but General Pollock did not again encounter the enemy until he arrived at the valley of Tezeen. Here the pass was occupied by Akbar Khan himself; and while the British troops were halting to allow the cattle to recover from the effects of the fatigue of their forced march, they were attacked by the Affghans, though without success. A general action took place on the 13th of September, which General Pollock has thus described:—“The valley of Tezeen, where we were encamped, is completely encircled by lofty hills; and on the morning of the 13th it was perceived that the Affghans had occupied in great force every height not already occupied by our troops. I commenced my march towards the mouth of the Tezeen Pass, where I had left two guns, two squadrons of her majesty’s third dragoons, a party of first light cavalry, and the third irregular cavalry. The enemy’s horse appeared in the valley, with the intention of falling upon the baggage; but the dragoons and native cavalry made a most brilliant charge, and with such effect that the whole body of the enemy’s force was completely routed, and a number of them cut up. The Pass of Tezeen affords great advantages to an enemy occupying the heights; and on the present occasion Mahomed Akbar neglected nothing to render its natural difficulties as formidable as numbers could make it. Our troops mounted the heights, and the Affghans, contrary to their general custom, advanced to meet them, and a desperate struggle ensued; indeed their defence was so obstinate that the British bayonet, in many instances, alone decided the contest. The light company of her majesty’s ninth foot, led by Captain Lushington, ascending the hills on the left of the pass under a heavy cross-fire, charged, and overthrew their opponents, leaving several horses and their riders, supposed to be chiefs, dead on the hill. The slaughter was considerable; and the fight continued during the greater part of the day, the enemy appearing resolved that we should not ascend the Huft Kothul. One spirit seemed to pervade all, and a determination to conquer overcame the obstinate resistance of the enemy, who were at length forced from their numerous and strong positions; and our troops mounted

the Huft Kothul, giving three cheers when they reached the summit. Here Lieutenant-colonel Cunningham, with a party of sappers, pressed the enemy so hard, that they left in their precipitation a twenty-four pound howitzer and limber, carrying off the draft-bullocks. Having heard that another gun had been seen, and concluding that it could not have gone very far, I detached a squadron of dragoons, under Captain Tritton, and two horse-artillery guns, under Major Delafosse, in pursuit; the gun, a twelve-pound howitzer, with bullocks sufficient for two guns, were soon captured. The dragoons again got among the enemy, and succeeded in cutting up many of them. Captain Broadfoot with the sappers advanced, and, with the dragoons, happened to fall in with another part of the enemy, of whom upwards of twenty were killed. I have ascertained there were about 16,000 men in the field opposed to me, of whom a considerable portion was cavalry. Mahomed Akbar Khan, Mahomed Shah Khan, Ameen Oolla, and many other chiefs with their followers were present." After this decisive battle Akbar Khan made no further resistance; and on the 15th of September they encamped on the race-ground at Cabul. During their march from Jellalabad, Prince Futteh Jung had arrived in the camp as a wanderer; and on the 16th, General Pollock, accompanied by him, marched to the Bala Hissar, and there planted the British colours. Several of the English prisoners had already joined the camp; and before the 21st of the month, the whole of them, with the exception of Captain Bygrave—who was subsequently liberated—were restored to British protection. By these successes the stain brought upon the British arms was effaced, and the prestige of our name regained its former influence in the East. It was, however, resolved that we should leave Cabul; and a proclamation to that effect was made by the governor-general. But, before leaving Cabul, General Pollock despatched General M'Caskill with a body of troops into Kohistan, where the Affghan chiefs were still assembled in considerable force. On the 29th of September, General M'Caskill made himself master of the strong town of Istalif, totally defeating the numerous bodies of Affghan troops collected for its defence, under Ameenoollah Khan and other chiefs of Cabul and Kohistan. This town was set on fire; and a work of plunder and savage slaughter commenced, which brought a great stain upon the British arms. For two days the place was given up to fire and sword; and all the bitterness of hatred was manifested by the soldiery, both European and native. "Not a man was spared; the Affghans were hunted down like vermin; and whenever the dead body of an Affghan was found, the Hindoo sepoys set fire to the clothes, that the curse of a 'burnt father' might attach to his children." General Pollock also determined to destroy the Char Chouk, the principal bazaar in Cabul, where the remains of the unfortunate Sir William M'Naghten had been exposed to insult. This bazaar was destroyed by gunpowder; and indeed the whole city, with the exception of the Bala Hissar and the quarter of the Kuzzilbashes, was laid in ruins. About this time General Pollock was joined by General Nott from Candahar; and on the 12th of October the two armies left Cabul, the advanced column being under the command of General Pollock, and that in the rear under General Nott. No event of consequence occurred during their march, and on arriving at the fortress of Jellalabad it was levelled with the dust, and rendered unfit for human habitation. Along the whole line of march, indeed, every kind of devastation was committed by the troops, who were exasperated by the sight of the unburied skeletons of their unfortunate companions in

arms, who fell during the fatal retreat early in this year. When the British forces at length emerged from the Bolan Pass, which they did on the 1st of October, thereby evacuating the whole of Affghanistan, they had left behind them a name which will long be execrated in that country. It is true they had suffered deep wrongs; but mercy to the vanquished is a nobler quality than unlimited revenge. The spirit of revenge appears to have pervaded the whole of the British community in India. Even the governor-general, Lord Ellenborough, exhibited it in a proclamation issued to all the princes, and chiefs, and people of India. He writes:—“My brothers and my friends,—Our victorious army bears the gates of the temple of Somnauth in triumph from Affghanistan, and the despoiled tomb of Sultan Mahmoud looks upon the ruins of Ghuznee. The insult of eight hundred years is at last avenged. The gates of the temple of Somnauth, so long the memorial of your humiliation, are become the proudest record of your national glory—the proof of your superiority in arms over the nations beyond the Indus. To your princes and chiefs of Sirhind, of Bajwarra, of Malwa, and Guzerat, I shall commit this glorious trophy of successful war. You will yourselves, with all honour, transmit the gates of sandalwood through your respective territories, to the restored temple of Somnauth. The chiefs of Sirhind shall be informed at what time our victorious army will first deliver the gates of the temple into their guardianship at the foot of the bridge of the Sutlej.” In another proclamation Lord Ellenborough announced that all the Affghans then in the power of the British government should be permitted to return to their own country, and that the Affghan chiefs who were thus released, were, before they passed the Sutlej, to present themselves at the durbar, or levee, of the governor-general in his camp at Ferozepore.

The insurrection at Cabul, which has been described, was not confined to that quarter of Affghanistan. At the time it broke out, General Nott was in command at Candahar, with a force of nearly 10,000 men. The hostility of the Affghans in this part of the country soon displayed itself; Candahar was invested by a large body of insurgents under the command of Mahomed Atta. This chief was joined by Sufter Jung, one of the sons of Shah Soojah; but Tiniour, the eldest brother of that family, remained nominal governor of Candahar. His fidelity, however, was afterwards suspected, and he was placed in confinement. On the 12 th of January the insurgent chiefs took up a strong position on the right bank of a river running through the Achuzye country, about five miles from Candahar. They mustered about 5,000 men; and General Nott attacked them with a force consisting of five regiments and a half of infantry, 1,000 horse, and sixteen pieces of artillery. The position of the army was formidable, being protected in front by canals and a marsh, and both flanks resting on strong gardens. The enemy, however, was routed, and compelled to flee in all directions. Tin’s success was followed by another victory over the insurgents, on the 10th of March; after which they disappeared from the neighbourhood of Candahar. The situation of the British troops, however, at Candahar, Khelat-i-Ghilzee, and Gliuznee, being thought precarious in the midst of a population universally hostile, Brigadier-general England, who commanded the forces in Scinde, determined to march to the relief of General Nott. In his route General England encountered a formidable opposition at the Rujjuk Pass, where Mahomed Seedez, with a large army,

was posted to impede his progress. In an engagement, General England, indeed, lost nearly one hundred men, and he was compelled to return to Quetta: This attempt, therefore, for the relief of Candahar failed; and, not long before this, the British had another humiliation in the surrender of Ghuznee. Ghuznee was garrisoned by about 1,000 troops, under the command of Colonel Palmer, and when the general rising on the part of the Affghan population took place, that fortress and Khelat-i-Ghilzee, in which was a garrison of five hundred men, were invested by the insurgents. Colonel Palmer was obliged to capitulate; and on the 6th of March the garrison marched out from the citadel, and were quartered in a portion of the town immediately below. Scarcely, however, had the troops taken possession of the quarter assigned them by the terms of the capitulation, when they were suddenly attacked by the infuriated Ghuznees. Day after day the murderous attacks continued; and in the end the whole were either slain, or sent in camel-chairs to Cabul, to be kept in custody by Akbar Khan. It was these events that determined General Nott, on evacuating Candahar, in order to co-operate with General Pollock, in case the resistance offered by Akbar Khan should be of such a nature as to render a reinforcement of the British troops necessary. Candahar was evacuated on the 7th and 8th of August, and the troops marched onwards without molestation till they came to Gonine, about thirty miles south-west of Ghuznee. Here General Nott found that Shumsooden, the Affghan governor of that fortress, was awaiting his approach with about 12,000 men. This force, however, was quickly defeated, and their guns, tents, and ammunition captured; General Nott then moved on Ghuznee, which he found full of armed men, under the command of Sultan Jan. Ghuznee was stormed, and the enemy driven from thence in all directions; after which the city and the whole of its works were destroyed. General Nott now advanced upon Cabul, and at Mydan he again encountered the enemy; but the British troops dislodged them from their strong positions; and General Nott effected a junction with General Pollock without further molestation.

In China the British troops still pursued an inglorious war. In the month of August, last year, Sir Henry Pottinger and Sir W. Parker had sailed for Hong-Kong, which was the place of rendezvous for the ships destined for the expedition to the northward. On the 21st they sailed from that island, and anchored on the 25th in the harbour of Amoy. This city is said to have been inhabited by about 70,000 people; and the Chinese army garrisoning it was 10,000 strong. The number of guns possessed by the garrison was about five hundred; and the place was so strongly fortified by nature and art, that the Chinese fancied the place to be impregnable. Amoy, however, wanted a brave and skilful garrison; and lacking this, the place was soon captured. The mandarins and soldiers fled, leaving the city occupied by only a few coolies. This success was attained without the loss of a man on the part of the British; and the number of Chinese killed is supposed not to have exceeded one hundred and fifty. Sir Hugh Gough was mainly instrumental in effecting this conquest; but, on the 30th of August, the troops were withdrawn from the city, a garrison of five hundred men only being left on the island of Cohun-soo, which is distant about 1,200 yards from Amoy. In the proclamation addressed by Sir H. Pottinger on this occasion to “her Britannic majesty’s subjects in China,” he says:—“Her majesty’s plenipotentiary deems it quite

superfluous to say one word as to the manner in which this important service has been performed. The facts require no eulogium. The Chinese government vainly imagined that they had rendered Amoy impregnable; but they were undeceived in presence of the viceroy of the provinces of Chekeang and Fokien (who, with a number of high officers, witnessed the attacks from the heights above the town), in the short space of four hours from the firing of the first gun; and had the opposition been a hundred times greater than it was, the spirit and bearing of all employed showed that the result must have been the same." The state of the weather prevented the expedition from putting to sea and continuing its progress northward before the 5th of September. On the 21st it reached the Chusan group of islands, and afterwards reconoitered the Tinghae and Chusan harbour. The walls of Tinghae were escaladed, and the British colours soon waved over the fortifications. In this attack upon Tinghae the enemy suffered severely; several mandarins were killed, while, on the side of the British, two only were killed, and twenty-four wounded. The next place attacked was Chinghae, which was captured with the same ease, although it was enclosed by a wall thirty-seven feet in thickness, and twenty-two feet in height. Sir William Parker writes concerning this conquest:—"About eleven o'clock we had the gratification of seeing the British colours planted by the troops in one of the batteries on the opposite side of the shore: and in a few minutes the others on that side were all carried, and the Chinese observed flying in every direction before our gallant soldiers on the heights. At a quarter past eleven the wall of the citadel was breached by the fire from the ships; and the defences being reduced to a ruinous state, the Chinese abandoned their guns, which they had hitherto worked with considerable firmness, and a large portion of the garrison retreated precipitately towards the city. Not a moment was lost in making the signal for landing the battalion of seamen and marines, with the detachments of artillery and sappers. Before noon, the boats were all on shore; every impediment presented by the difficulty of landing on rugged rocks was overcome, and the force gallantly advanced to the assault, with a celerity that excited my warmest admiration. An explosion at this time took place in a battery near the citadel gate; and the remnant of the garrison fled without waiting to close it. The citadel was therefore rapidly entered, and the union-jack displayed on the walls. Our people had scarcely passed within them when another explosion occurred, happily without mischief, but whether by accident or design is uncertain." Captain Herbert having secured this post, quickly reformed his men, and advanced towards the city; the Chinese still occupying in considerable force the walls of it, as well as the two batteries beneath the hill on the river side, against which our troops had already turned some of the guns taken on the right bank. A few volleys of musketry speedily dislodged them from both positions, and the battalions of seamen and marines pushed on in steady and excellent order to attack the city.

The wall was escaladed in two places, and in a short time complete possession was taken of Chinghae, the Chinese troops having made their escape through the western gate. Subsequently Sir Hugh Gough captured Ningpo with the same facility, after which no event of importance occurred during the past year. Early in the present year the district cities of Yuydo, Tsikee, and Ftmghwa were temporarily occupied by the British troops; and the Chinese made a bold but ineffectual attempt to recover

Ningpo. After their unsuccessful attack upon Ningpo, the Chinese attempted to annoy the British garrison by obstructing the supply of provisions. A body of about 4,000 Chinese soldiers were encamped at the town of Tse-kee, about eleven miles westward of Ningpo; but they were quickly driven from thence by Sir Hugh Gough with great loss. Ningpo was evacuated by the British on the 7th of May, and on the 16th the fleet came to the city of Chapoo, which was captured. Sir H. Pottinger, who had recently been to Canton rejoined the squadron before it sailed from Chapoo: and its subsequent operations were detailed by him in a “circular,” dated on board the steam-frigate _Queen_, in the Yang-tze-Kiang river. Its operations were first chiefly confined to the destruction of batteries along the Woosung river; after which the fleet entered the great river Yang-tze. In this river operations were directed against the cities of Suyshan, Chin-Keang-foo, and Nankin. The two former were captured: but when preparations had been made for attacking the latter, Sir Hugh Gough and Sir William Parker received instructions from Sir Henry Pottinger to suspend hostilities, in consequence of negociations which he was carrying on with the Chinese high officers who had been appointed by the emperor to treat for peace. Full powers had been given to three commissioners, Keying, Elepoo, and Newkéén, to negociate a treaty of peace which was finally concluded on the 26th of August. The conditions of this treaty were:—That the Chinese should pay 21,000,000 dollars; that the ports of Canton, Amoy, Foo-chow-foo, Ningpo, and Shanghae, should be open to British merchants, with permission to consular officers to reside there; that the island of Hong-Kong should be ceded to the British in perpetuity; that correspondence should be conducted on terms of perfect equality between the officers of both governments; and that the islands of Chusan and Kolang-soo should be held by the British until the money payments were made and arrangements for opening the ports completed.

CHAPTER LIV.

{VICTORIA. 1843—1844}

State of the Country..... Meeting of Parliament..... National Distress..... The Corn-law Question..... Address to the Crown on the Subject of Education..... Affairs of India, &c. The Corn-law Question resumed..... Irish Affairs..... Financial Statements, &c. Education..... Church Extension, &c. Law Reform..... Prorogation of Parliament..... Agitation; Ireland..... Formation of the Free Church in Scotland..... The State of India..... Continental Affairs.

STATE OF THE COUNTRY.

{A.D. 1843}

AT the opening of this year the aspect of public affairs was such as to create disquietude and anxiety. In every branch of trade and industry there was great depression, which was by some attributed to the workings of the new tariff, and by others to a groundless panic occasioned by that measure. Whatever it arose from it certainly existed; and the fact of its existence was clearly proved by the diminished

consumption of those articles which contribute in so large a proportion to the public revenue. The total decrease in the excise, stamps, customs, and taxes on the quarter was £1,379,057, which was equivalent to a total yearly deficiency of £5,516,222. The distress which prevailed naturally give rise to various opinions as to the remedies to be applied. Some suggested and advocated the repeal of the corn-laws; others threw the blame upon the income-tax, and the other financial measures of Sir Robert Peel's government; some attributed the distress to the poor-laws; and others pointed to emigration as the natural safety-valve and outlet for the pressure of a too rapidly increasing population. All these subjects were discussed at length in both houses of parliament; but few practical results arose from these discussions.

MEETING OF PARLIAMENT.

Parliament was opened by commission on the 2nd of February. The speech, read by the lord-chancellor, referred to a treaty which had been concluded with the United States of America and the adjustment of differences which, from their long continuance had endangered the preservation of peace. Allusion was also made to the termination of hostilities in China; and a hope expressed "that, by the free access which would be opened to the principal mart of that populous and extensive empire, encouragement would be given to the commercial enterprise of her majesty's people." The speech continued:—"In concert with her allies, her majesty has succeeded in obtaining for the Christian population of Syria, the establishment of a system of administration which they were entitled to expect from the engagements of the Sultan, and from the good faith of the country. The differences for some time existing between tire Turkish and Persian governments had recently led to acts of hostility; but as each of these states has accepted the joint mediation of Great Britain and Russia, her majesty entertains a confident hope that their mutual relations will be speedily and amicably adjusted. Her majesty has concluded with the Emperor of Russia a treaty of commerce and navigation, which will be laid before you. Her majesty regards this treaty with great satisfaction, as the foundation for increased intercourse between her majesty's subjects and those of the emperor." The affairs of India and the events in Afghanistan were next adverted to; satisfaction being expressed at the victories obtained "on the scenes of former disasters." Concerning the decrease of revenue the speech remarked:—"Her majesty regrets the diminished receipt from some of the ordinary sources of revenue. Her majesty fears that it must be in part attributed to the reduced consumption of many articles, caused by that depression of the manufacturing industry of the country which has so long prevailed, and which her majesty has so deeply lamented. In considering, however, the present state of the revenue, her majesty is assured that you will bear in mind, that it has been materially affected by the extensive reductions in the import duties which received your sanction during the last session of parliament, and that little progress has hitherto been made in the collection of those taxes, which were imposed for the purpose of supplying the deficiency from that and other causes. Her majesty feels confident that the future produce of the revenue will be sufficient to meet every exigency of the public service." The speech concluded by adverting to her majesty's recent visit to Scotland; to disturbances which had taken place in some of the manufacturing districts; and to measures connected with the improvement of the law

which were to be brought forward during this session.

The address was agreed to, and the house adjourned.

In the house of commons also the address was agreed to without a division, and the house adjourned.

NATIONAL DISTRESS.

Allusion had been made in the royal speech to the distress which pervaded the country at this time; and in this state of things Lord Howick give notice for a committee of the whole house to investigate the causes of this distress. The debate commenced on the 18th of February, by Lord Howick, calling attention to the paragraph in her majesty's speech referring to diminished revenue. This having been read by the clerk at the table, his lordship then moved that the house do now resolve itself into a committee upon the said passage in her majesty's speech. The debate on the motion continued during five nights: various members on both sides of the house supporting or opposing the motion. On the fifth and last night Mr. Cobden said that his chief objection to the motion was, that it did not include agricultural as well as manufacturing distress. The agricultural labourers were in a wretched state; neither them nor the farmers were any gainers by the corn-laws. With neither of these classes had landlords any right to identify themselves. The landlord was no agriculturist: he might live all his days in London or in Paris. He was no more an agriculturist than a shipowner was a sailor. The real agriculturists were beginning to get a glimmering of light upon this question. The member for Dorsetshire had attacked the league; he protested against the notion that the league had been the movers of sedition and assassination. He would next inquire why the present motion was to be resisted by the government. When Sir R. Peel took the reins of government, he took with them the responsibility of introducing the measures necessary for the country..The ministers were advocates of free-trade: why did they not carry it into effect? They adopted it, it was said, only in the abstract: the house had nothing to do with abstractions. Length of time was pleaded; he should like to know whether that would be a defence to the claim of a just plaintiff in a court of law? It could not be said that the period was unsuitable; the year lay before them, and there was no pressure of legislative business, publie or private. Had government any other remedy? They had last year imposed a corn-law which gave umbrage to all classes of mercantile men. That law had not given any extension to regular trade, and had ruined the speculators. The tariff had reduced the duty on seven hundred articles, and had omitted the only two which would have done anything for tire people—corn and sugar. Sir R. Peel had it in his power to carry the measures necessary for the people; and if he had not that power as a minister, he would have it by resigning his office. The right honourable baronet should be held responsible individually: the electoral body would compel him to do them justice. Sir Robert Peel declared that no responsibility which Mr. Cobden could fix upon him, or induce others to fix upon him, should deter him from doing his duty. He then proceeded to analyse the nature of the motion, in order to show that it could not be conceded. It was not a motion, he said, to inquire into the causes of the distress; but a motion that the house should resolve itself into a committee of the whole house, Lord Howiok having some proposition to

bring forward for the relief of the distress. Lord John Russell justified the form of the present motion, and the fitness of the time at which it was brought forward; but on a division it was rejected by a majority of three hundred and six against one hundred and ninety-one.

ADDRESS TO THE CROWN ON THE SUBJECT OF EDUCATION.

On the 28 th of February Lord Ashley moved the following resolution in the house of commons:—"That an humble address be presented to her majesty, praying that her majesty will be graciously pleased to take into her instant and serious consideration the best means of diffusing the benefits and blessings of a moral and religious education among the working classes of her people." The motion was agreed to.

AFFAIRS OF INDIA, ETC.

In the early part of this session, some interesting discussions occurred in both houses of parliament, on the recent events and military operations in India. The first of these discussions took place on the 9th of February, when Mr. Vernon Smith moved for the production of some papers relative to Indian affairs. The motion was agreed to.

The following resolutions, after considerable discussion, were carried in both houses:—"That the thanks of this liouse be given to the Right Honourable Lord Ellenborough, governor-general of the British possessions in the East Indies, for the ability and judgment with which the resources of the British empire in India have been applied to the support of the military operations in Affghanistan. That the thanks of this house be given to Major-general Sir George Pollock, G.C.B., to Major-general Sir William Nott, G.C.B., to Major-general Sir John M'Gaskill, K.C.B., to Major-general Richard England, and the other officers of the army, both European and native, for the intrepidity, skill, and perseverance displayed by them in the military operations in Affghanistan, and for their indefatigable zeal and exertions throughout the late campaign. That this house doth highly approve and acknowledge the valour and patient perseverance displayed by the non-commissioned officers and private soldiers, both European and native, employed in Affghanistan, and that the same be signified to them by the commanders of the several corps, who are desired to thank them for their gallant behaviour." About the same time resolutions were passed both in the lords and commons, with respect to the services of the fleet and army employed in the late operations in China. The affairs of India became the subject of discussion again in the house of commons on the 2nd of March, when Mr. Roebuck moved for a select committee to inquire into the causes which led to the late war in Affghanistan; but it ended in mere words: the motion was rejected by a majority of one hundred and eighty-nine against seventy-five.

THE CORN-LAW QUESTION RESUMED.

This great question—a question which interested all parties, and all classes of society—formed the subject of several debates during this session. It was first brought prominently forward by Mr. Ward, who, on the 14th of March, moved, "That a select committee be appointed to inquire whether there are any peculiar burdens especially affecting the landed interest of this country, or any peculiar exemptions

enjoyed by that interest; and to ascertain their nature and extent." This motion was negatived, after a lengthened discussion, by a large majority; but, on the 13th of May, the whole subject of the corn-laws was brought under discussion upon the motion annually brought forward by Mr. Villiers, for a committee of the whole house to consider the duties on the importation of foreign corn. This was met by Mr. Gladstone with a direct negative. The most remarkable speeches delivered were those of Sir Robert Peel and Mr. Cobden. Mr. Cobden combated the notion that if the corn-laws were repealed, the whole system of revenue must be cut down; and declared that the anti-corn-law league would persist in agitation until the attainment of their object. On a division, the motion was rejected by a majority of three hundred and eighty-one against one hundred and twenty-five. Another general debate on the same subject occupied the house on the 13th of June, when Lord John Russell again proposed the consideration of the corn-laws in a committee of the whole house; which, however, was negatived by a large majority. But, previous to this debate, a measure partially effecting the operation of the corn-laws had been proposed in the house of commons by Lord Stanley, the secretary for the colonies. His lordship moved the following resolutions—"Resolved that, on the 12th day of October, 1842, an act was passed by the legislative council and legislative assembly of the province of Canada, and reserved by the governor-general for the signification of her majesty's pleasure, imposing a duty of 3s., sterling money of Great Britain, on each imperial quarter of wheat imported into Canada, except from the United Kingdom, or any of her majesty's possessions, and being the growth and produce thereof. That the said act recites that it was passed in the confident belief and expectation that, upon the imposition of a duty upon foreign wheat imported into the province, her majesty would be graciously pleased to recommend to parliament the removal or reduction of the duties on wheat and wheat flour imported into the said United Kingdom from Canada. That, in consideration of the duty so imposed by the said act of the legislature of Canada, it is expedient to provide that, if her majesty shall be pleased to give her sanction to the said act, the duties imposed upon wheat and wheat flour imported into the United Kingdom from Canada should be reduced. That, during the continuance of the said duty, in lieu of the duties now payable upon wheat and wheat flour imported into the United Kingdom from Canada, under an act passed in the last session of parliament, entitled 'An act to amend the laws for the importation of corn,' there shall be levied and paid the duties following:—viz., for every quarter of wheat, 1s.; for every barrel of wheat, meal, or flour, being one hundred and ninety-six pounds, a duty equal in amount to the duty payable on thirty-eight and a half gallons of wheat." In moving these resolutions, Lord Stanley said that exaggerated notions of the measure had prevailed on all sides; and if he had not given a direct promise to the Canadian legislature, he would not have brought forward a question tending to create uneasiness among them. He brought it forward, in fact, only as a boon to Canada, which he had reason to expect, and of which the refusal would be highly injurious to her interests and feelings. His proposal was, not to let American wheat into England, but to let into England Canadian wheat, and flour ground in Canada, from whatever growth it might be manufactured. That was in accordance with the broad principle of the navigation act—"that all manufactured goods shall be deemed to be the produce of the country in which they are manufactured." The resolutions of Lord Stanley,

after a stormy debate, were confirmed by a majority of two hundred and forty-four against one hundred and eighty-eight. A few days afterwards the house went into committee on them, when Lord John Russell moved an amendment, which proposed to omit that part of them which referred to the Canadian legislature, his lordship objecting to the making of the legislation of the imperial depend on that of the colonial parliament. Lord Stanley defended the course taken by government as necessary to secure the object; and after a desultory conversation, the amendment was negatived. Another amendment, to the effect that no alteration should be made in the corn-law of the preceding session, and in the degrees of protection which it afforded to British agriculture, was moved by Lord Worsley; but this also was negatived; and after some further discussion the house divided on the original resolutions, which were carried by a majority of two hundred and eighteen against one hundred and thirty-seven. On the 2nd of June, a bill founded on the resolutions was brought in when Lord Worsley moved that it be read that day six months. This led to a renewed debate on the measure: but ultimately the second reading was carried by a majority of two hundred and nine against one hundred and nine. A debate in the house of lords took place on the committal of the bill, which was moved by Earl Dalhousie on the 4th of July. Lord Brougham seconded the motion, not “because the measure was a step in the right direction”—that is, towards the removal of the corn-laws—“but because it removed an anomaly.” Earl Stanhope moved, as an amendment, that the bill be committed that day six months; and he was supported in his opposition by the Duke of Richmond, the Earl of Radnor, and Lords Beaumont and Teynham. The amendment was, however, negatived by a majority of fifty-seven against twenty-five. The house subsequently went into committee, and the bill passed without amendment.

IRISH AFFAIRS.

Towards the close of the session the unusually agitated state of Ireland, produced by the repeal movement, noticed in a subsequent article, gave rise to angry debates in parliament. In the month of May ministers proposed a bill requiring the registration of fire-arms, and restricting the importation of arms and ammunition. The second reading of this bill was moved on the 29th of May by Lord Eliot, the secretary for Ireland, who, in introducing the subject, gave a short history of the origin and successive renewal of the Irish arms acts, beginning with the 33rd George III. c. 2, and ending with the bill introduced by Lord Morpeth in 1838. This measure was opposed with uncommon energy and skill by the Irish Roman Catholic members, and by several liberal Protestants among the representatives of Ireland. Messrs. Hume, Roebuck, Buller, and other liberal representatives of Great Britain were also its strenuous opponents. Mr. Shiel, always eloquent, made a brilliant speech in resisting it, which won members of various schools of politics to his opinion. The general feeling of the house and of the country was in favour of the bill, and the Protestants of Ireland declared by their petitions, and through their representatives, that it was necessary to their safety, as in many districts of the country property and life were in constant danger, armed bands of lawless ruffians prowling about by night, committing outrage, incendiarism, and murder upon those who were obnoxious to their political or religious opinions. The second reading was carried by a majority

of two hundred and seventy against one hundred and five. On the motion for committing the bill, Mr. Smith O'Brien moved as an amendment, "that a select committee be appointed to inquire whether the condition of Ireland was such as to require statutory enactments different from those of Great Britain; and, if so, to ascertain to what cause the difference of legislation was to be attributed." This amendment was negatived without a division, and the bill was then ordered to be committed. In the committee the measure encountered the most pertinacious and protracted opposition from many members, who moved repeated amendments, and divided again and again on some of the most obnoxious sections. It was, in fact, the 9th of August before the Irish arms bill reached its final stage in the house of commons. On that day Lord Eliot moved that it should be read a third time, which motion was met by an amendment by Lord Clements, that it be read a third time that day six months. Another warm discussion followed, but the bill was carried by a majority of one hundred and twenty-five against fifty-nine. In the house of lords two nights' discussion took place upon the bill; but it met with a much easier passage in that house, and towards the close of August it passed into law.

In the meantime discussions of a different nature took place in both houses of parliament on Irish affairs. On the 14th of July Lord Clanricarde moved resolutions declaring the dismissal of certain magistrates by the Lord Chancellor, for taking part in the movement in favour of repeal, unconstitutional, unjust, and inexpedient. Their dismissal, he said, had given a great impulse to the prevailing agitation, manifested by the rise in the repeal-rent; and he imputed the state of Ireland, bordering on anarchy, to the policy of the present government. The Duke of Wellington met these resolutions by a direct negative, and contended that repeal agitation originated in the time of the later ministers; the acts impugned were forced upon the present administration. A long discussion ensued; but on a division the resolutions were negatived by a majority of ninety-one against twenty-nine. The state of Ireland again came under discussion in the house of lords on the 8th of August, when Lord Rod en presented a petition from upwards of five thousand of her majesty's Protestant loyal subjects residing in the county of Down, praying for measures to repress the rebellious spirit in Ireland, and expressing surprise at seeing the marked difference made between Protestants and Roman Catholics in respect of the enforcement of the law against processions.

In the house of commons, on the 4th of July, Mr. Smith O'Brien moved, "That this house will resolve into a committee for the purpose of taking into consideration the causes of the discontent prevailing in Ireland, with a view to the redress of grievances, and to the establishment of a system of just and impartial government in that part of the United Kingdom." The debate which this motion gave rise to occupied five nights, and, unlike the other debates on Irish affairs, it was conducted in a calm, practical, and dispassionate temper. The chief speakers for the motion were Messrs. Wyse, Charles Wood, Smythe, Mr. J. O'Connell, Captain Rous, and Viscount Howick; against it, Lord Eliot, Sirs J. Graham and R. Peel, and Messrs. B. Cochrane, Lascelles, and Colquhoun. On a division the motion was negatived, by a majority of two hundred and forty-three against one hundred and sixty-four.

FINANCIAL STATEMENTS.

Mr. Goulburn made his annual statement of ways and means on the 8th of May. His statements were by no means cheering. The revenue, he said, calculated upon by Sir Robert Peel for the year, from the customs, had been £22,000,000, but the actual produce had only reached £21,750,000. On the estimated produce of the excise, there had also been a deficiency of £1,200,000; and upon the whole the revenue had fallen short of the estimate by somewhat more than £2,000,000. That defalcation, however, had been diminished to about £1,250,000, by a payment from China of about £725,000. Against the deficiency thus constituted also was to be set the produce of the income-tax, which had exceeded the expectation formed of it: the net revenue from that source would be about £5,100,000. It might be asked, Mr. Goulburn continued, in what way he intended to meet the deficiency:—he had no new measure to propose; his calculation was, that the causes which had occasioned the deficiency of the last year were of a temporary character; that in the next and subsequent years there would be a surplus of revenue, and out of that he proposed to discharge the deficiency of the past year. Mr. Goulburn next proceeded to present his estimate for the ensuing year. There were two heavy charges, he said, which did not form part of the ordinary expenses of the year—the one a payment of £800,000 to the owners of opium seized in China; the other a payment of £1,250,000 to the East India Company, on account of expenses borne by them for the Chinese war. He proposed to advance the money requisite for these two payments, and to take repayment from the future remittances of China. The total estimate of revenue stated by Mr. Goulburn was £50,150,000, in which, however, he included a sum of £870,000 from the Chinese government; and the total estimated outlay was £49,387,645, which being deducted from the £50,150,000, would leave a surplus of £762,000 in favour of revenue above expenditure. In conclusion, the chancellor of the exchequer said, that though he was not in a condition to make a flattering statement of the country’s resources, he trusted the time was not far distant when he should be able to come down with a proposal for easing the industry of the country by important resolutions. He moved a vote of £47,943,000, which, after some discussion, was granted.

At a later period of the session the state of the public finances was made the subject of debate in the house of lords. On the 14th of August Lord Monteagle moved this series of resolutions:—“1. That this house observes with much concern and disappointment, that the expectation held out of a surplus revenue, exceeding £500,000, for the year ending the 5th of April. 1843, has not been realized; but that there has been an actual deficiency of £2,421,000, notwithstanding the imposition of a tax on property, the application to the public service within the year of £511,406, obtained from the government of China, and a receipt exceeding £1,300,000, as duties upon grain imported. 2. That the charge for the permanent debt has been increased during the last two years, the exchequer balances have been reduced, and upwards of £1,000,000 exchequer-bills held by the trustees of the savings’ banks converted into stock. 3. That under these circumstances it is most peculiarly the duty of the legislature, and of her majesty’s government, to enforce the strictest economy which is consistent with the public service, and to adopt all such measures as may increase the ordinary revenue, by insuring to British industry, whether agricultural,

manufacturing, or commercial, its widest and freest extension, and its largest reward; thus averting from the country the calamity of the reenactment of a tax upon property in time of peace, and promoting the well-being of all classes of her majesty's subjects." The object of Lord Monteagle in introducing these resolutions was to vindicate the Whig administration of the public finances, and to show that the same line of conduct which had been censured in the late ministry had been pursued by the present government. His lordship delivered a long and able speech to this end, which was replied to with equal ability by the Duke of Wellington and Lord Brougham.

Another question, involving fiscal considerations, which occupied the attention of parliament, related to the sugar duties. Government proposed a renewal of tire duties of the year preceding, on which the free-trade party in the house of commons made their usual protest against the preference shown to the produce of the British colonies. On the 22nd of June, when it was moved that the speaker should leave the chair, in order to the house going into committee on the subject, Mr. Cobden moved: "That it is not expedient to compel payment of a higher price for colonial than for other commodities; and that, therefore, all protective duties on colonial produce ought to be abolished." As this resolution, however, extended further than the mere sugar question, on which it had been moved "that the speaker leave the chair," it could not be put; and the house then went into committee on the sugar duties. In committee Mr. Ewart, who condemned the policy of government on this subject, proposed that one uniform duty on foreign and colonial sugar should be levied; but this motion was lost by a majority of one hundred and thirty-five against eighty-five. Mr. Hawes subsequently proposed that the house should cease to maintain an impost which was equivalent to total prohibition, and should lower the duty to 34s.; but this was negatived by a still larger majority, and the proposition of government was confirmed. On a later day, the 17th of July, another important article of traffic was brought under consideration. As an amendment on the motion for going into a committee of supply, Mr. Charles Wood moved "that the house do resolve itself into a committee of the whole house, to consider so much of the 5th and 6th Victoria, c. 47, customs' act, as relates to the duties on the importation of foreign sheeps' and lambs' wool." Mr. Wood supported his motion on the ground that the trade had been declining for nearly thirty years; but it was opposed by the chancellor of the exchequer; and after a desultory conversation, it was rejected by a majority of one hundred and forty-two against seventy. About the same time, however, government showed that they were not disinclined to all further commercial relaxation; for at their instance the restrictions on the importation of machinery, imposed by an act of King William the Fourth, were taken off. A bill for this purpose was brought in by the president of the board of trade, and, being supported by all parties in the house, passed without difficulty. After some opposition from Earl Stanhope, it was subsequently carried in the lords, and was incorporated finally into "an act for amending the customs," which received the royal assent before the close of the session.

EDUCATION.

It has already been seen that, on the motion of Lord Ashley, an address was voted to the crown on the subject of the education of the working classes. The queen's answer to this address was delivered by Earl Jermyn at the bar of the house, on the 8th of March. It read thus:—"I have received your loyal and dutiful address. The attention of my government had been previously directed to the important object of increasing the moral and religious education among the working classes of my people; and the assurance of your cordial co-operation in measures which I consider so necessary, confirms my hope that this blessing will be secured by legislative enactment." On the same day Sir James Graham introduced his promised bill for regulating the employment of children and young persons in factories. Its clauses were, in fact, strongly opposed both in parliament and by the people, being objected to chiefly on the ground of giving a too exclusive management of the schools to the clergy of the church of England, thereby prejudicing dissenters and Roman Catholics. This objection was forcibly urged by several members in the discussion which ensued; while, on the other hand, it was controverted by several members with equal force. Avoiding this source of contention, Lord Ashley earnestly enforced the arguments respecting the necessity of the measure. The bill was finally read a second time. The measure, however, met with so much opposition from the dissenting and Roman Catholic bodies, and appeared to be so distasteful to a large section of the community, that Sir James Graham, on the 1st of May, produced a series of amendments which had been prepared by government. But although the bill was thus altered to meet the views of all classes, it was still strenuously opposed by several members, though eventually it was recommitted. Such was the animosity still displayed by the Roman Catholic and dissenting bodies against the measure, that government at length came to the resolution of abandoning it. The home secretary announced this intention on the 15th of June, on which occasion he promised to state on an early day the future intentions of government. In fulfilment of this promise, on the 19th he declared that government did not mean to give up the remainder of the factories' bill; and on his motion it was recommitted.

CHURCH EXTENSION, ETC.

On the 5th of May Sir Robert Peel brought forward, in a committee of the whole house, a plan for relieving the spiritual wants of the kingdom by the endowment of additional churches, and augmentation of small livings. In explaining his measure, the right honourable baronet said that at the end of 1834 he had advised the crown to issue a commission to ascertain whether aid might not be obtained for religious instruction from ecclesiastical resources. The result of the inquiries of this commission had been to show that the revenues of certain bishoprics, cathedrals, and other ecclesiastical establishments, were larger than their purposes required. The commissioners recommended the transfer of such surplus receipts of the church to a new fund, which now amounted to £25,000. Out of this fund about £16,700 per annum had been applied to the augmentation of small livings; and other analogous purposes had been marked out, which, with the sum applied for, would absorb about £32,000. In a few years the fund would be increased by the falling in of canonries and other preferments; and the question was whether it would be better to wait till that increase should have been realized, or to anticipate that increase by some immediate

measure. Government were in favour of the latter course, and for this purpose it would be necessary to combine the instrumentality of two bodies—the ecclesiastical commissioners and the board of Queen Anne's bounty for the augmentation of small livings. The latter board possessed about £1,200,000, invested in the funds; and what he now proposed, was to authorize the advance of £600,000 by this board, to the ecclesiastical commissioners, on the security of the before-mentioned revenue of the ecclesiastical fund, existing and hereafter accruing. This advance to the extent of £30,000 a year he would apply in endowments for ministers of the church of England; and that annual sum, with the interest on the principal at three per cent., being £18,000 a year, would in seventeen years exhaust the whole. By that time the accumulation in the hands of the ecclesiastical commissioners would, even upon the narrowest calculation, exceed £100,000 a year, and the commissioners would thenceforth continue the £18,000 a year interest, and the proposed augmentation of £30,000 a year, together with the £32,000 already applied, or destined by them to similar or analogous purposes; and they would then possess a considerable surplus, applicable to future improvement. In conclusion, Sir Robert Peel said that he should have rejoiced if he could likewise have carried a grant of public money for these purposes with general goodwill; but he did not think that a public grant without such goodwill would have effectually accomplished the benefits which he anticipated from the application of ecclesiastical revenues. Several members spoke in terms of approbation of the measure, and the motion was unanimously voted.

The great secession in the church of Scotland gave occasion to the introduction of a bill proposed by Lord Aberdeen, on the part of the government to remove doubts respecting the admission of ministers to benefices. This bill provided that the presbytery, or church court, to which objections should be referred to be cognosced, should be authorized to inquire into the whole circumstances of the parish, and the character and number of persons by whom the objections and reasons should be preferred; and if the presentee should be found not qualified or suitable for that particular parish, the presbytery should pronounce to that effect, and should set forth the special grounds upon which their judgment was founded. The bill further abolished the veto, to guard against any doubt or difficulty on that point; providing that it shall not be lawful for any presbytery, or other ecclesiastical court, to reject any presentee upon the ground of any mere dissent or dislike, expressed in any part of the congregation of the parish in which he was presented, and which dissent or dislike should not be founded upon objections or reasons to be fully cognosced, judged of, and determined in the manner aforesaid, by the presbytery, or other ecclesiastical court. Lord Aberdeen declared his belief that the adoption of this measure would retain in the establishment a numerous body of ministers then in a state of suspense. Those parish ministers who had seceded were about two hundred and forty, or one-fourth of the whole number; the unendowed ministers, about two hundred, or about one-third of the entire clergy of Scotland. He did not apprehend, he said, any fatal consequence from the secession; but the bill would tend to tranquillise those who remained within the pale. The measure encountered the most strenuous opposition of Lords Brougham, Cottingham, and Campbell in all its stages; but it passed the upper house, and was introduced in the commons by Sir James

Graham on the 31st of July. After explaining the nature of the bill, and supporting it by all the arguments he could bring forward in its favour, the right honourable baronet expressed a hope that the church of Scotland would find a haven of peace and security, and in that spirit of hope and peace he moved its second reading. Mr. Wallace said that the bill would create more doubts than had heretofore existed, and would make the people renounce the church; on which grounds he moved that it be read that day six months. This amendment was supported by Lord John Russell, and Messrs. Rutherford, Hume, Cochrane, and Alexander Campbell. On the other hand the bill was supported by the solicitor-general, Sir George Clerk, Mr. Hope Johnstone, and Sir Robert Peel; and on a division the second reading was carried by a majority of ninety-eight against eighty. The opponents of the measure renewed their attempts of throwing it out on the motion for going into committee, when Mr. P. M. Stewart moved that it be committed that day three months; but this was negatived, and the bill finally passed, and received the royal assent.

LAW REFORM.

Several reforms in the law were made during this session. One of the most important of these changes was the registration act. This passed the commons without any difficulty; and the second reading of the bill was moved in the upper house by Lord Wharncliffe, on which occasion his lordship thus explained its leading provisions. The objects of the bill, he said, were first, to establish in every part of the country a real and _bona fide_ list of voters; secondly, to settle certain doubts with respect to qualifications which had arisen in the revising barristers' courts; and, thirdly, to prevent the personation of voters, or the possibility of individuals voting twice at the same election. One of the greatest alterations in the bill was that which related to the right of voting, as it depended on the payment of taxes. As the law at present stood a person could not have his name placed on the list of voters unless he had paid all his rates and taxes up to the time of making his claim. By this bill it was provided, that persons should be allowed to have their names inserted in the list of voters if they paid, on or before the 20th of July next ensuing after making their claim, all the poor's-rates and assessed taxes payable from them for twelve calendar months before the 6th day of the preceding April. One great objection to the existing law was, that the decisions of the revising barristers were final; but by this measure an appeal from their decisions, on legal points, was allowed to the court of common-pleas. Provision was also made to clear up doubtful points as to the right of voting in counties, and likewise with reference to the place where a claim to the right of voting should be made, when the party resided in an extra-parochial district where there was no overseer. Another important point provided for by the bill was that which related to votes on account of trusts on mortgage estates. It was now provided that no mortgagee of any lands or tenements should have a vote for members unless he was in actual possession or receipt of the rents and profits of the lands or tenements mortgaged; but that the mortgager in actual possession, or in receipt of the rents or profits, should be allowed to vote in respect of the property, notwithstanding the mortgage. Another bill carried this session made some alterations in the law relating to defamation and libel. By this bill, which was introduced by Lord Campbell, it was made lawful to give evidence of the truth of the

allegations complained of in any criminal proceedings for libel, but subject to this limitation—that the truth shall not, _ipso facto_, constitute a defence, unless the party shall also make out that the publication of it was for the public benefit. Provision was also made for the case of publication of libellous matter by inadvertence in newspapers. In such case the defendant was empowered to plead the facts in extenuation, and also to pay money into court by way of amends. Other clauses were directed against that nefarious system practised by some conductors of newspapers, who drive a trade in slander; while others imposed additional penalties upon those who make the publication of libels, or the threat of such publication, a means of extorting money from individuals. Two other measures brought in by government during this session—namely, a measure for the reform of the ecclesiastical court, and a bill for the extension of county courts—were not received with so much favour as the preceding: both met with stern opposition, and were in consequence postponed.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by the queen in person on the 24th of August. In the speech her majesty alluded with satisfaction to the various measures passed during the session; and thanked both houses for the measures they had adopted for enabling her to give full effect to the several treaties which had been concluded with foreign powers. Her majesty also alluded to the lawless combinations and commotions which had disturbed the public peace in some districts of Wales; and to the agitation in Ireland for a repeal of the legislative union.

AGITATION IN IRELAND, FORMATION OF THE FREE CHURCH IN SCOTLAND, ETC.

After the attainment of the Roman Catholic relief act, Mr. O’Connell had from time to time held out the repeal of the legislative union to the deluded people of Ireland as the great ultimatum, in his view, for their benefit. His exertions in this pursuit were at times relaxed, or diverted in favour of some other object; and there were many who thought his sincerity in this matter demanded a doubt. During this year, however, he took up the cause of repeal with redoubled energy. Abandoning the house of commons, he gave himself wholly up to the task of raising the banner of national independence in Ireland. In this work he resorted to the same plan of organization which had been adopted with success in prosecuting the Roman Catholic claims. An association, indeed, for the furtherance of repeal, provided with all the machinery requisite to give effect to its comprehensive designs, formed the main instrument by which the union was to be assailed. This body, which was styled the National Loyal Repeal Association, consisted of associates, members, and volunteers. The distinction of these classes was marked out by money-payments; for it was the “rent” to which the agitator was mainly looking. Thus associates were to pay one shilling each; while members were to pay one pound each. Cards were issued to all sections of the association; but those issued to members, or those who paid the most “rent,” were distinct from the rest. This card bore the names of four places in Ireland, the scenes of fights in which the Irish had conquered either the Danes or the English. A printed document described these victories. In another part of the card the geographical position of Ireland was contrasted with various states with the following

words underneath:—“Ireland has not a parliament.” The card further set forth the revenue expended by Ireland during the last great war in France, and stated that the commander-in-chief, and two-thirds of the officers and men of the English army and navy on that occasion were Irishmen. Added to these features there was a scroll at the top of the card, bearing the following words:—“Resolved unanimously that the claims of any body of men, other than the king, lords, and commons of Ireland to make laws to bind this kingdom are unconstitutional, illegal, and a grievance;” which resolution was agreed to by the Dungannon volunteers in 1782. At the bottom of the card was an extract from a speech of Mr. Saurin, declaring the union not to be binding on conscience. In addition to the several kinds of members, the Repeal Association comprised officer’s, consisting of general inspectors, repeal-wardens, and collectors. Repeal-wardens were appointed by the association on the recommendation of the clergymen of their parishes; and a book of instruction was prepared, in which the several functions which they were to execute were described. One leading branch of their duties was the transmission and circulation among the associates in every district of certain newspapers devoted to the repeal cause, to be purchased out of the subscriptions in aid of the general object. The main object of the association appears to have been to provide a machinery of the most effective kind for the collection of funds, and to train the people to combination, and prepare them for simultaneous movements at the bidding of their leaders. How well calculated it was for the former object the weekly reports of the “rent” show; and its effectiveness in the latter design was proved by the “monster meetings,” which were held at Trim, Mullingar, and other places throughout Ireland. At all these meetings the most violent language was used by Mr. O’Connell and his coadjutors; and government was importuned to adopt some energetic measures for the suppression of this dangerous conspiracy. The only measures, however, adopted by the ministry for some time was the Irish arms bill, and the removing from the commission of the peace the names of those magistrates who attended or participated in any of the repeal meetings. But the more lenient government showed itself, the more bold and insolent the repealers became. At a “monster meeting” held at Tara on the 15th of August, Mr. O’Connell spoke out with unequivocal significancy. Another “monster meeting” was subsequently held at Roscommon, which Mr. O’Connell said, from its numbers, ought “to strike their enemies with terror, and to give their friends a great consolation.” At a later period of the year other “monster meetings” were held; and at each succeeding meeting the language of the repealers grew bolder and bolder. At length government was roused to action. A great meeting was announced for the 8th of October, to be held at Clontarf, the scene of an Irish victory over the Danes; and the programme of the proceedings to take place on this occasion, and the regulations to be observed by those who should attend it, had been announced with more than common ostentation and solemnity. Against this meeting government issued a proclamation; and as soon as the issue of it was known, Mr. O’Connell called a special meeting of the repeal association, at which, speaking with marked calmness, he said, in consequence of the step taken by government, there would be no meeting on the next day at Clontarf. A counter-proclamation was adopted by this meeting, in which the abandonment of the intended assembling at Clontarf was announced, and the people were exhorted not to assemble. As, however, the proclamation and the

counter-proclamation were issued only the day before the intended meeting was to take place, thousands knew nothing of their promulgation, and consequently repaired to Clontarf, in the expectation of meeting their leaders. Instead of Mr. O'Connell and his associates, they met with troops; and thus disappointed, they returned home. Happily the day passed off with tranquillity; for, notwithstanding the vast concourse who thronged to the scene throughout the day, no disturbance took place. But the operations of government against the repealers did not stop here. A few days afterwards the public were startled by the announcement of the arrest of Mr. O'Connell and his coadjutors, on charges of conspiracy, sedition, and unlawful assembling. Mr. O'Connell entered into recognisances, himself in £1000, with two sureties of £500 each, to abide his trial on the charges preferred against him. Both Mr. O'Connell and his coadjutors were bound to appear on the first day of Michaelmas term, at the court of Queen's-Bench at Dublin; and on their appearance the grand jury brought in the indictment, "a true bill;" but the proceedings of the trial were so much hindered by the various pretexts of the prisoners' counsel, that it was finally agreed that it should be deferred till the 15th of January, 1844.

One of the most remarkable events which occurred in the course of this year, was the secession of a considerable number of the ministers and laity of the established church of Scotland from that body. This secession arose out of a controversy which had been raised upon the limits of ecclesiastical and civil jurisdiction, and the agitation which had been produced in tire minds of the non-intrusion party since the adverse decision of the law-courts and the house of lords in the Auchterarder case. The final act of separation took place in the month of May, during the meeting of the General Assembly of the church of Scotland. A committee had been appointed to consider the propriety of separation; and on the 22nd of May, at a general meeting in the church of Dr. Candlish, the report of this committee was produced, and a resolution incorporating the recommendations of the report was adopted, in which it was resolved that an act of separation should be reported to the Assembly on the morrow. The next day, accordingly, the act of separation was produced; which act solemnly renounced for those who should affix their names to it the status, privileges, and emoluments derived from the establishment, reserving to ministers the right to act as pastors of particular congregations, or portions thereof, adhering to them, with the rights and benefits accruing from the ministers' widows' fund. This document contained an order that the act of separation should be transmitted to the Moderator of the General Assembly—denominated by the seceders "Ecclesiastical Judicatory, by Law Established." The signing of the document occupied four hours, and the act of separation was then transmitted to the General Assembly. The number of ministers who signed it, or were enrolled in the list of the secession during its first assembly, was three hundred and ninety-five; but the ranks of the separatists were subsequently swelled by the addition of a considerable number of ministers and others, who from time to time gave in their adhesion to the "free church." This secession is one of the most remarkable ecclesiastical revolutions on record; and its effects were extensively felt throughout Scotland. The secession even gave rise to outrages on the part of the people. In the course of the autumn several serious disturbances took place throughout the country in connection with the free church

movement; but it is just to remark that those who took part in these disgraceful proceedings formed only a minority cf the people: the general demeanour of the population during this change in their domestic affairs, was that of peace and good order.

In South Wales there was a commotion of a very different nature. The disturbances which took place there, and which were denominated the “Rebecca riots,” were equally singular and unexpected. The grievance which gave rise to them was the heavy and vexatious tolls to which the peasantry were subjected by the mismanagement and abuses of the turnpike-system. Galled by this burden, they resolved to take the law into their own hands, and to break down the gates in every part. There was, in fact, a crusade against toll-gates commenced during this year, in almost every part of South Wales. The supposed head or chief of the gate-breakers was called “Rebecca,” a name derived from this passage in the book of Genesis: “And they blessed Rebekah, and said unto her, Let thy seed possess the gates of those which hate them.” (Gen. xxiv. ver. 60.) “Rebecca,” who was in the guise of a woman, always made her marches by night; and her conduct of the campaign exhibited much dexterity and address. Herself and band were mounted on horseback; and a sudden blowing of horns, and firing of guns, announced the arrival of the assailants at the turnpike selected for attack. The work of demolition was soon effected: gate, posts, and tollhouse were razed to the ground; and the work was no sooner done than the mysterious assailants galloped off, firing their guns and blowing their horns; and no trace was to be found of the quarter whence they had come, or to what place they had retreated. At first the trustees re-erected some of the gates; but “Rebecca,” and her associates speedily demolished them; so that the trustees were finally compelled to desist, and to leave the roads free from toll. All the efforts of the magistrates were unavailing; and they were obliged to appeal to government for protection and support. In the meantime the unchecked success of the insurgents began to work its natural effect in beguiling them into further violations of the laws. Other grievances, as the poor-law amendment act, the working of the new tithe-law, the fees paid to magistrates’ clerks in the administration of justice, and the alleged extortionate rents taken by the landowners for their farms, were all considered burdens too heavy to be borne, and fit objects for removal. Meetings were held in secluded spots, where plans for carrying on the warfare against the ills to be redressed were concocted; and these deliberations soon broke out into action. On the 10th of June “Rebecca” and her followers visited Caermarthen, and in open day proceeded to attack the workhouse. In the midst of their work of demolition, however, the military arrived, and the whole force was compelled to decamp, leaving behind them about one hundred, who were taken prisoners. The insurrection, notwithstanding this, still continued, and even assumed a more malignant aspect. Houses in which persons lived who were obnoxious to the rioters were attacked; and a growing feeling of alarm and insecurity pervaded the peaceable and well-disposed portion of the community. One poor woman, who kept the Hendy turnpike-gate, on the confines of Glamorganshire and Caermarthenshire, was barbarously murdered by the rioters; and such was the influence of fear exercised over the minds of the jurymen who investigated the case, that they brought in a verdict to the effect, “That the deceased died from suffusion of

blood, which produced suffocation, but from what cause is to the jurors unknown." By the continuance of these outrages, government at length sent down to Wales a large body of troops, under a general officer, who was to take the command of the disturbed districts. At the same time a strong body of the London police was sent to exercise their skill in ferreting out the rioters, who had long escaped detection. These measures did not wholly prevent violence under cover of night; but, in a short time, some of the more active leaders of the riots were captured in an affray with the county police, on the borders of Glamorganshire; and from this event, and various other causes, the spirit of disturbance, towards the close of the year, began to decline. Perhaps the most effectual cause of this decline was a prospect of the redress of those hardships which had formed the theme of so much complaint. In October government sent down a commission, which was to examine into the operation of the turnpike-laws, and other alleged grievances of the country. From the report of this commission, poverty and the hardness of the times had more to do with the outbreak than any other specific cause; but, at the same time, the inquiries instituted, and the report itself, showed that the turnpike-laws as administered in Wales did afford a real and substantial ground of complaint.

DISPUTES WITH AMERICA.

During last year the boundary question, which had formed a subject of dispute between England and America, had been happily adjusted by Lord Ashburton, who had been sent to the United States for that purpose. There still, however, remained serious questions of dispute between the two countries; namely, the Oregon territory, the right of search, and the non-payment of state debts. In the year 1818, a treaty between Great Britain and America had been ratified by the prince-regent; and in the month of January, 1819, by the President of the United States, the third article of which stipulated that "whatever territory may be claimed by one or other of the contracting parties on the north-west coast of America, to the west of the Rocky Mountains, as also all bays, creeks, or rivers thereon, shall be free and open to the ships, citizens, and subjects of both powers for ten years from the date of the signature of the present convention." In accordance with this stipulation of the treaty, the Oregon territory had been conjointly occupied up to the present time—the period of ten years being afterwards indefinitely extended by consent of both governments. In the early part of this session of congress, the president announced that he was about to negotiate with the British government for finally settling the claims of the two countries to this territory. Whilst these negotiations were pending, a bill for the occupation and military organization of the Oregon territory was brought into congress by Mr. Linn. This bill, which stated that "the title of the United States to the territory of Oregon is certain, and will not be abandoned," was carried by a majority of twenty-three against twenty-two. On being sent down, however, to the house of representatives, the committee on foreign affairs reported against it, and it was abandoned for this session. Another object which gave rise to dissension between the government of Great Britain and the United States, was the repudiation of public debts by several states of the union. A third subject of dispute between the governments of Great Britain and America was the right of search. Conflicting interpretations existed between them of the treaty of Washington, which gave rise to

a tedious and disputatious correspondence. The year closed, also, before the question was settled; but at the same time, though there were signs of an open rupture between the two governments, yet there were circumstances which gave rise to a well-founded hope, and it has happily proved to be correct, that the swords of England and America would not again be drawn against each other. There was especially a desire existing in America of entering into a commercial treaty on the basis of mutual reductions of import duties; so that it was clear that the Americans saw, equally with the English, that it was their best interests to avoid that dread ultimatum—war.

THE STATE OF INDIA.

The events of the present year in India, although not so exciting as those which occurred in the last, possess deep interest. In Affghanistan nothing of importance occurred after its evacuation by the British, except that Dost Mahomed, who had been permitted to leave our territories when we left Affghanistan, concentrated the chief power of that country in his own hands, and became in effect its ruler. A more important event occurred in the annexation of Scinde to our dominions in the East. Scinde lies between the 23° and 29° of N. latitude, and the 67° and 70° of E. longitude. It is bounded on the south and south-east by the Indian Ocean and Cutch; on the west by Beloo-chistan; on the north by the southern portion of Affghanistan and the Punjaub; and on the east by a sandy desert, separating it from the districts of Ajmeer. The river Indus flows nearly in the centre of the country, through its whole extent, from north to south; and a little below the city of Tatta is divided into two great branches, between which lies a delta, through which smaller channels force their way. Scinde had recently been governed by four chiefs of the Beloochee tribe called Talpoor. The name of the eldest of these chiefs was Futteh Ali Khan, who had the principal direction of affairs, inasmuch as he had been the chief instrument in overthrowing the dynasty of the Caleras, on the ruins of whose throne the Talpoor chiefs sat. The brothers of Futteh Ali Khan were Gholam Ali, Kunn Ali, and Moorad Ali; and the four brothers enjoyed a joint sovereignty over Scinde, under the name of the _Char Yar_, or the “Four Friends.” All these rulers died by the year 1833, the whole leaving male issue except Kunn Ali. Their deaths were followed by a civil war between the sons of the deceased chiefs, which resulted in a distribution of territory amongst them. They were distinguished respectively as Ameers of Hyderabad, Khyrpore, and Meerpore. At the beginning of the present year, the Ameers of Scinde consisted of the following persons:—at Hyderabad, Nusseer Khan, Shabad Khan, Hussein Ali Khan, Mahomed Khan, and Sobhdar Khan; at Khyrpore, Rustum Khan, Nusseer Khan, Ali Moorad Khan, and Chakur Khan; at Meerpore, Shere Mahomed Khan. All of these were Talpoor chiefs, and several of them had sons who were associated with them in the government. They ruled over Scinde with a rod of iron, living entirely for themselves, and wallowing in wealth, while their people were living in the most wretched condition. In 1832, a treaty, bearing date the 20th of April, was executed between the British government in India and Meermoorad Ali, who at that time was the principal Ameer of Scinde, in which a bond of friendship was entered into, and mutual commerce was agreed upon. Another treaty was concluded in 1834, by which the British obtained a reduction of tolls upon vessels navigating the Indus;

and it was agreed that a native British agent should be allowed to reside at the mouth of the river. In 1838, in consequence of the incursions of Runjeet Sing, the ruler of the Punjaub, in the Scinde territory, which were checked by British mediation, it was further conceded that an accredited British minister should reside at Hyderabad, attended by such an escort as might be deemed suitable by his government. Captain Pottinger was appointed to this service. It was soon found, however, that the Ameers of Scinde were not in heart friends of the British. When, in the autumn of 1838, the great military expedition into Affghanistan was undertaken, a large body of Bengal troops marched through a portion of Upper Scinde towards the Bolan Pass. The Bombay troops, also, under the command of Sir John Keane, took their route into Cabul by the way of the Indus; in doing which they encountered great difficulty in prosecuting their onward progress, from the jealousy and disaffection of the Ameers. Their conduct, in fact, became so hostile, that a force was sent from Bombay to be stationed as a reserve in Scinde, to keep the Ameers in check. This force was established at Kurrachee; and before the army of the Indus left Hyderabad in February, 1839, another treaty was concluded with the Ameers, by which it was stipulated that a British force should be stationed to the westward of the Indus: that three of the Ameers—Noor Mahomed, Nusseer Khan, and Meer Mahomed—should pay one lac of rupees (£10,000) each annually, to defray part of the expenses of this force; that all tolls on boats navigating the Indus within the Scinde territories should be abolished; and that the Ameers should rule absolutely in their respective territories; and in case of difference, the British representatives in Scinde should mediate between them. A similar treaty was also concluded with the Khyrpore Ameers; and shortly afterwards Shere Mahomed, Ameer of Meerpore, on his own application was allowed, on the payment of half a lac of rupees yearly, to participate in the treaty granted to the Ameers of Hyderabad. From this time up to the end of 1840, when serious disturbances occurred at Khelat, the state of Scinde was comparatively tranquil. There were, however, strong reasons to suspect that the Ameers were holding communications with the refractory Brahoe tribes, with a view of attacking the British on a favourable opportunity. At this time Major Outram was British resident at Hyderabad; and he had on several occasions to mediate in family discords between the courts of Hyderabad and Khyrpore. In the year 1840 Noor Mahomed died, and was succeeded by his two sons, Meer Sliahdad and Meer Hossein Ali. Their uncle, Nusseer Khan, wished, on the death of his brother to be acknowledged by the British government as the rais or head of the Hyderabad branch of the Tulpoor family, which distinction was not conceded. From that time he seems to have meditated plans of active hostility against the British. The indications of his enmity were so apparent, that he was threatened by Lord Ellenborough with the loss of his dominions if he proved faithless. But he was not the only Ameer hostile to the British government. They were all in arrears with reference to the contribution they were bound by treaty to supply towards the support of the British force at Tatta; and when pressed for payment they evaded compliance, and concerted measures of hostility against us, which rendered it possible they would attack our forces on the first favourable opportunity. Under these circumstances Sir Charles Napier was invested with the chief command of all the forces in Scinde, and also with the authority of a political functionary. He was invested with authority by the

governor-general of India, to propose a new treaty to the Àmeers of Hyderabad and Khyrpore, which was to contain these stipulations:—That the Ameers should be relieved from the payment of any subsidy for the support of British troops; that the British government should have the right to fell wood within one hundred yards of either bank of the Indus for the use of steamers; and that Karrachu, Tatta, and three other towns, with a strip of land on each side, should be ceded in perpetuity to the British government. Sir Charles Napier appointed Major Outrarn to conduct these negociations; and as it was necessary to maintain a resolute front in the management of this treaty, Sir Charles himself marched in February with his troops towards Khyrpore. Meer Rustum Khan fled from his capital to a fort in the desert called Emaumghur, whither he was followed by Sir Charles Napier, who, on arriving at this fort, and finding it deserted, destroyed it with gunpowder, that it might not form a place of refuge. The Ameers were at first adverse to the terms of the treaty; but ultimately they agreed to the stipulations, which were signed on both sides. There was, however, treachery among the Beloochee chieftains. On the 15th of February the British residences at Hyderabad were attacked by a body of 8000 troops, with six guns, who were commanded by Meer Shahdad Khan. Major Outrarn, and the small garrison, of about one hundred men, were compelled to take refuge in flight: they fled to the Indus, where they were received on board one of the British steamers, which conveyed them to Sir C. Napier at Hala. This event was the signal of war; and bitterly did the Ameers pay for their treachery. A great battle was fought at Meeanee, in which the Beloochee rulers suffered a signal defeat: about 5000 of their followers were slain, and the whole of the enemy’s artillery, ammunition, standards, and camp, with considerable stores, were captured by the British. Meer Rustum Khan, and Meer Nusseer Khan; Meer Wullee Mahomed, of Khyrpore; Meer Nusseer Khan, Meer Shadad Khan, and Meer Hossein Khan, all came into Sir Charles Napier’s camp, and surrendered their swords as prisoners of war. Hyderabad, also, was given up to the British commander; and on the 20th of February the British flag waved over that city. The contest in Scinde, however, was not yet over. There was still a large body of troops on the banks of the Fullahi, one of the branches of the Indus, under the command of Shere Mahomed. This body of troops, indeed, consisted of 20,000 men, and they were strongly posted behind one of the large nullahs by which that country is intersected in all directions; but after a combat of three hours they were wholly defeated, and all their standards and cannon were captured. After this latter victory Sir Charles Napier took possession of Meerpore, and on the 4th of April the fortress of Oomercote, an important stronghold in the desert, opened its gates to the victorious British. By these events Scinde was subdued, and the “Scindian population,” says the conqueror, “everywhere expressed their satisfaction at the change of masters.” At a subsequent period of the year Shere Mahomed and Shah Mahomed gathered each an army around them, in order to recover their lost power; but the former was defeated by a detachment under Captain Jacob, and the latter by another detachment under Colonel Roberts. No further disturbance took place this year in Scinde, and the governor-general was able to announce that that country had become a part of our eastern dominions. The six fallen Ameers were conveyed to Bombay; and although they were treated kindly, they arrived there “the very pictures of unmingled grief and hopeless despondency.” It should be mentioned that Ali

Moorad, the Ameer of Khyrpore, remained faithful; and a portion of the territories of the Koostum Khan and Nusseer Khan was transferred to him; but he seems to have imagined that he ought to have had all that the British had taken from the defeated Ameers. Shortly after the country was conquered Sir Charles Napier was appointed governor of Scinde, and empowered to take such measures as might appear best calculated to suppress the slave-trade in every part of the country, and to abolish all duties of transit in every part occupied by the British army. The gallant conduct of Sir Charles Napier obtained the warmest praise of the people of England.

During this year, also, the British troops gained two brilliant victories over the Mahratta forces. The events which led to these contests are briefly these. On the decease of the Maharaja, Jhunkojee Rao Scindia, the British government acknowledged as his successor the Maharaja Jyajee Rao Scindia, who was the nearest in blood to the late Maharaja. During the minority of the new ruler of Mahratta the dignity and power of regent were conferred upon the Mama Sahib. The widow of the late Maharaja and the chiefs concurred in this adoption of a regent, and the British government confirmed their choice. After a short time, however, notwithstanding the remonstrance of the British resident, Mama Sahib was violently compelled to quit the Gwalior state. On this occurrence becoming-known, the British resident was instructed to withdraw from Gwalior; and a British army was sent into Scindia, “not as an enemy, but as a friend to the Maharaja, bound by treaty to respect his highness’s person, and to maintain his sovereign authority against all who were disobedient and disturbers of the public peace.” Having established a strong government at Gwalior, capable of maintaining the authority of the Maharaja, the British armies were subsequently ordered to withdraw to their own territory. They were not, however, destined to return without a severe conflict with the Mahratta forces. They had left Agra in the early part of December; and on the 23rd they crossed the Chumbul river, and halted at Hingona, about twenty miles distance from Gwalior. The governor-general was with the British troops; and during the interval of five days’ halt at Hingona, the Mahratta Vakeels, or agents for the Gwalior Durbar, had an interview with him. He supposed that they were desirous of peace, but war was in their hearts. They were evidently desirous only of gaining time by negociation to assemble and concentrate their forces. This at last became so evident that the governor-general determined on active measures of hostility. While the main body of our army moved on under the command of Sir Hugh Gough from Agra, another division, under Major-general Grey, advanced on Gwalior from Bundle Khand. The main division crossed the Khoraee river early in the evening of the 29th of December; and they found the Mahratta forces drawn up in front of the village of Mahrajpoor, in a strong position. The British troops were about 14,000 strong, with forty pieces of artillery; and the Mahrattas numbered 18,000 men, including 3000 cavalry, and one hundred guns. An obstinate battle was fought, in which the British lost about one hundred killed, and had about seven hundred wounded; while the Mahrattas are said to have lost more than three thousand men. The British were victorious, not only defeating the enemy, but capturing many of their standards, and most of their guns. On the same day, Major-general Grey, with a force of only 2000 men gained another victory at Punniar over a Mahratta force, estimated at 12,000 in number. The

consequence of these victories was the submission of the Mahratta Durbar to the demands of the Indian government; Colonel Stubbs was appointed by the Maha Ranee governor of the fort of Gwalior, which commands the city; the Mahratta troops were disbanded: and a British contingent, consisting of seven regiments of infantry and two of cavalry, was to be maintained in the country at the cost of the Gwalior government, which government was also to pay forthwith the expenses of the campaign.

During this year Sir Henry Pottinger issued a proclamation, in which he announced that the ratification of the treaty, mentioned in the last chapter, between Great Britain and China had been exchanged, and that he had concluded with the Chinese high commissioner, Keying, a commercial treaty and tariff. The ports to which the British were admitted by this treaty were those of Canton, Amoy, Foo-chow-foo, Ningpo, and Shanghae; and an order in council was issued, in which her majesty prohibited her subjects from resorting, for the purposes of trade and commerce, to any other ports than these in the dominions of the Emperor of China, under a penalty not exceeding £100 for every such offence, or a term of imprisonment not exceeding three months, at the discretion of the court before which the conviction should take place. Mr. T. Lay was appointed consul at Canton, and Sir Henry Pottinger formally assumed the government of the island of Hong-Kong. The town destined for the seat of government, and the residence of merchants and others, was founded on the northern side of the island, and named Victoria. It was not long before the cupidity of trade displayed itself. Sir Henry Pottinger had refused to allow opium to be stored in warehouses in Hong-Kong; and six of the merchants at Victoria withdrew to Macao on account of this decision. In consequence of this manifestation of dissatisfaction, a proclamation was published in order to point out the risk which those subjected themselves to who were resolved at all hazards to import opium.

CONTINENTAL AFFAIRS.

An interesting event took place in September of this j’ear, when her majesty Queen Victoria, accompanied by Prince Albert, paid Louis Philippe a visit in his own dominions. They arrived in their steam-yacht at Tréport, close to Eu, where the royal family of France were sojourning; and after receiving a most cordial reception from their illustrious host and the French people, they proceeded on their voyage to Ostend. About the same time one of the French monarch’s sons, the Prince de Joinville, was married to Princess Francisca, the sister of the Emperor of Brazils, and the Queen of Portugal. But while in France all were merry as a “marriage bell,” the unhappy country of Spain was disturbed from one end to the other by insurrections. Madrid was even captured by Generals Narvaez and Aspirez, who headed the insurgent forces; and Espartero was compelled to take refuge on board an English ship of war at Cadiz, after having in vain bombarded Seville. Espartero proceeded to Lisbon, whence he issued a manifesto to the Spanish nation, after which he sailed to England. At the close of this year, indeed, Spain was torn in pieces by factions, though the queen was still enabled to keep her seat on the throne.

CHAPTER LV.

{VICTORIA. 1844–1845}

Meeting of Parliament..... Motion of the Stoppage of Supplies..... Affairs of India..... Irish Affairs: Irish Municipal Franchise, The Irish Church Question, Irish Charitable Trusts Bill, Roman Catholic Penal Acts Repeal Bill..... Restrictions on Labour in Factories, &c. The Corn Laws and Free Trade Question..... Financial Statements..... Sugar Duties Bill, &c. Bank Charter and Banking Regulations..... Dissenters' Chapels Bill..... Sees of Bangor and St. Asapli..... Miscellaneous Measures of the Session..... Prorogation of Parliament..... The State of India..... Proceedings against Mr. O'Connell..... Continental Affairs.

MEETING OF PARLIAMENT.

{A.D. 1844}

Parliament was opened by the queen in person on the 1st of February. Her majesty's speech first alluded to her friendly relations with foreign powers; to the treaty concluded with China; to the annexation of Scinde to the British empire in India; to the estimates; and to the improved condition of several important branches of the trade and manufactures of the country. The speech then recommended attention to the revision of the charter of the Bank of England; to the state of the law and practice with regard to the occupation of land in Ireland; and to the law of registration in that country.

The debates on the address in both houses were not in any way remarkable, except for a bold speech by Mr. Sharman Crawford, demanding redress of the grievances of which the people of both England and Ireland complained. A contest also occurred between Lord John Russell and Sir Robert Peel in reference to the duties on the importation of foreign corn, the opposition leader maintaining that a fixed duty was desirable, and the ministerial leader advocating the system of variable duties, called a sliding-scale.

MOTION FOR THE STOPPAGE OF SUPPLIES.

In his speech during the discussion on the address, Mr. Sharman Crawford had threatened to move the stoppage of supplies. In accordance with this threat, on the 6th of February, after enumerating the grievances which the house had refused to inquire into, such as class legislations consisting of various commercial monopolies, he moved his resolution. After a few words in favour of the motion by Mr. Hume, and against it by Colonel Sibthorp and Mr. Trelawny, it was negatived by a majority of one hundred and thirty against twenty-two.

AFFAIRS OF INDIA.

During this session the policy of government in relation to the affairs of India became the subject of discussion on several occasions. On the 12th of February motions were brought forward in both houses for the thanks of parliament to Sir Charles Napier and the army employed in the operations of Scinde, which motions were agreed to unanimously. Soon after this an event occurred which produced a

startling effect. On the 21st of April Sir Robert Peel, in answer to a question put to him by Mr. T. B. Macaulay, said, “I beg to state that, on Wednesday last, her Majesty’s government received a communication from the court of directors, that they had exercised the power which the law gives them, to recall at their will and pleasure the governor-general of India.” This announcement soon spread abroad; and in the house of lords, on the 29th of April, Lord Colchester addressed to the Duke of Wellington these questions:—“Whether the communication from the court of directors to government alleged any reason for the recall of the governor-general? If so, whether there was any objection to state such reason? and whether the reasons were considered satisfactory by government?” In reply, the noble duke stated that reasons had been given for the recall of the governor-general, but that those reasons had not been concurred in by her majesty’s government; nay, more, they remonstrated against the measure. The noble duke, in fact, roundly condemned the court of directors for taking such a step, pronouncing it to be the most indiscreet exercise of power he had ever known. Several discussions subsequently took place in both houses of parliament on the recall of Lord Ellenborough; and motions were moved for copies of the correspondence between the court of directors and her majesty’s government relative to this subject; but these motions were negatived, and the discussions led to no practical result. They were, in truth, only made the medium of giving utterance to party sentiments and opinions.

IRISH AFFAIRS.

The subject which gave rise to the most animated discussions in parliament this session was the ministerial policy towards Ireland; especially their conduct in reference to the trial of Mr. O’Connell and his associates. On the 13th of February, the Marquis of Normanby moved in the house of lords, a resolution condemnatory of the government administration of Irish affairs. After a very long and angry discussion, the debate was adjourned, and on the next evening was continued by Earl Fitzwilliam and Lord Monteagle on one side, and the Earls of Haddington and Ripon on the other. On a division, the motion was negatived by a majority of one hundred and seventy-five against seventy-eight.

In the house of commons, on the 13th, Lord John Russell, in a speech of three hours’ continuance, opened a discussion on the subject of Irish policy, which was protracted for nine evenings. The motion which he made on this occasion nominally aimed at the appointment of a committee of the whole house to consider the state of Ireland. The debate which ensued presented much sameness and repetition. On a division, Lord John Russell’s motion was negatived by a majority of three hundred and thirty-four against two hundred and twenty-five.

It had been announced in the speech from the throne that government would, in the present session, take up the question of the registration of voters in Ireland. In fulfilment of this announcement, Lord Eliot, early in April, introduced a bill into the house of commons for that purpose; leave was given to bring in the bill; but it was evidently so distasteful to the Irish members and their supporters, that, on the 1st of July, Sir Robert Peel announced that it was abandoned by government.

On the 9th of May Mr. Hume moved:—“That an humble address be presented to her majesty, praying that she will be graciously pleased to consider whether it would not be for the advantage of Ireland, and for the interest of the United Kingdom, to abolish the office of lord-lieutenant of Ireland.” Mr. Hume contended that this office was one of the principal causes of repeal agitation, and that by abolishing it peace would be restored to the country. His motion was seconded by Captain Bernai, and opposed by Lords John Russell and Eliot, Sir Robert Peel, and Captain Layard. Ultimately, Mr. Hume withdrew his motion. On the 11th of July Mr. Ward brought on his annual motion about the Irish church. On a division it was rejected by a majority of two hundred and seventy-four against one hundred and seventy-nine.

A measure of great importance to the Roman Catholic community in Ireland was introduced by government, and passed during this session; namely, a bill which had for its object the making of a provision for the better security and regulation of moneys settled upon charitable and religious trusts. This bill was first introduced in the house of lords, where it passed with very little opposition. Sir James Graham moved its second reading in the commons on the 29th of July. In making this motion, he explained the law as it then stood relative to the management and supervision of charitable bequests and donations in Ireland. The existing system was regulated by a statute passed at the beginning of the present century, by which a board was constituted for the government and administration of charitable trusts. This board consisted almost exclusively of Protestants; whereas nearly three-fourths of the bequests placed under its jurisdiction were Roman Catholic endowments. By the bill now proposed, it would be enacted that the master of the rolls, the chief baron of the exchequer, and the judges of the Prerogative Court, should be _ex officio_ members of the board; and that in the presence of them, or any of them, one or the other should preside, according to his rank—first, the master of the rolls; in his absence, the chief baron of the exchequer; or, in the absence of the other two, the judge of the prerogative court. The bill next provided that the crown should appoint ten commissioners, five of whom should be Protestants, and five Roman Catholics. By the sixth section it was further provided, with respect to matters concerning the doctrine, discipline, or constitution of the church of Rome—that if a question arose as to the _status_ or condition of any person who had a right, or claimed to have a right, under any of the deeds of bequest brought under the consideration of the commissioners, such question should be referred, if the claimant were a Roman Catholic, to the Roman Catholic commissioners only; and it was provided that they should grant a certificate of their decision, which certificate should be received as evidence. One of the principal objections to the existing law was removed by the tenth clause, which limited the power of the commissioners to apply donations and bequests according to the intention of the donor or donors. The thirteenth clause also obviated the existing difficulty under the statute of mortmain, which made bequests chargeable upon land for a given class of persons, or their successors. This clause would enable real or personal property, without limitation as to its amount, to be held in perpetuity, for building and maintaining chapels, for building and maintaining residences for the Roman Catholic clergy, or for the use of the priests for the time being, for the purpose of any particular charge. In conclusion, Sir James Graham said that he could

only anticipate one objection to the bill on tire part of the Roman Catholics, and that arose from the peculiarity of their ecclesiastical jurisdiction. He believed they would object to the decision of any ecclesiastical matters relating to their church by persons who were not in holy orders of the church of Rome; but he would remind them that under the existing law, such matters might be brought before the supreme judicial tribunal of the country—the judge of that court, the lord-chancellor, being a Protestant. According to the present bill, however, such matters would be left to the decision of a board, composed of Protestants and Catholics equal in number. The bill was loudly condemned by Messrs. More, O'Ferral, Bellew, and Shiel; while, on the other hand, Lord Arundel thanked government for the conciliatory spirit it displayed. Mr. Hume said that the bill seemed to him to be framed in a spirit of peace, and he wished all the Irish grievances were met in the same feeling. The proposed tribunal was a fair and proper one, and he should be glad to see as good a one for the administration of English charities: there ought to be "justice to England." The second reading was carried by a majority of seventy-one against five; and on the motion that the bill should be committed, Mr. M. J. O'Connell gave notice that he should in committee move amendments. The bill having been subsequently reported, and being moved for a third reading, Mr. Dominick Browne expressed a wish for its postponement. The Roman Catholic hierarchy, he said, was entirely opposed to it; although he admitted that he believed it to be proposed in a spirit of conciliation. He moved that the bill be read that day three months; but the amendment found no one to second it; and after a few observations from Mr. M. J. O'Connell, who now expressed himself in favour of it, the bill passed.

During this session Lord Beaumont, a Roman Catholic peer, brought in a bill for the abolition of a number of penal acts, for the most part obsolete, though still retained in the Irish statute-book. The lord-chancellor urged Lord Beaumont to abstain from pressing his bill, as government were about to revise the whole of the penal laws; but finding his lordship resolved to press the matter, he took the bill into his own hands. The measure having been amended by the lord-chancellor, was brought before the house of lords on the 30th of July. In explaining the various enactments which it was intended to repeal, Lord Lyndhurst said that the first was a statute of Elizabeth's reign, directing a particular form of prayer to be used, under a penalty of three months' imprisonment for a first offence, six months for a second, and for life for a third. The second act intended to be repealed punished the denial of the sovereign's supremacy in ecclesiastical and religious matters: first, with forfeiture of goods and chattels; second, with the penalties of a premunire; and for a third offence, with the penalties of high-treason. Another act made reconcilement to the see of Rome high-treason; and imposed a fine of two hundred marks on every priest performing, and one hundred marks on every person hearing the ceremony. By another, a Jesuit remaining in England a certain number of days was made liable to be prosecuted for high-treason; and persons residing abroad for the purpose of being educated, who should not return within six months after proclamation to that effect, were also rendered liable to the penalties of high-treason. Other statutes imposed penalties on any Roman Catholic who should be found more than three miles distant from his abode; on parents who sent their children abroad to be educated; and for not

going to church. Another act declared any one newly converted to the Roman Catholic faith, and his children, if educated in that faith, incapable of holding any place of trust or profit. A statute of William and Mary enacted that no Roman Catholic should come within ten miles of the metropolis, and forbade them to have any weapons of defence in their houses. By the same bill it was also provided that if they possessed a horse worth more than five pounds, it was liable to be forfeited and seized. The bill would also repeal the act of the 31st George III., which act was an extraordinary jumble of legislation: they had an act of Elizabeth which required a party to take a certain oath, and if he refused he was guilty of high-treason; but by the subsequent act they provided that if he took another oath, and a much milder one, he was free: yet if a man professing the Roman Catholic religion did not take either of the oaths, he would be guilty of high-treason, and liable to all the penalties which attached to that crime. The only “non-content” to this measure in the house of lords was the Bishop of London: and he only opposed it because government had taken it up at the eleventh hour, and without consulting the hierarchy. The second reading was moved in the house of commons on the 5th of August by Sir Robert Peel, who took occasion to explain that it did not do away with any security which had been taken for the established church by the act passed in 1829 for the relief of Roman Catholics; the acts to be repealed were mere dead letters, encumbering and discrediting the statute-book. Mr. Hawes requested to know whether, if obsolete statutes of a similar nature were to be found on the statute-book, applicable to the same or other denominations of Christians, government would be prepared to frame a measure for repealing them. Sir Robert Peel replied that he would not make any pledge upon the subject; but if there were any statutes which compelled a conscientious dissenter from the church of England, upon a heavy penalty, to attend divine service in that church, he could see no objection to its being erased from the statute-book. The bill then passed, and received the royal assent.

RESTRICTIONS ON LABOUR IN FACTORIES, ETC.

On the 5th of February Sir James Graham introduced a bill for the regulation of labour in factories. In explaining the proposed enactments, he said, that with respect to age, it was resolved that the term “child” should be defined to mean children between nine and thirteen, instead of eight and thirteen. Such children were not to be employed for more than six hours and a half each day, and were not to be employed in the forenoon and afternoon of the same day. In the existing law, “young persons” were defined to be persons between the ages of thirteen and eighteen: he did not wish any alteration in this respect; but he should propose that such young persons should not be employed in any silk, cotton, wool, or flax manufactory, for any portion of the twenty-four hours, longer than from half-past five o’clock to seven in the summer, and from half-past six o’clock to eight in the winter:—thus making thirteen hours and a half each day, of which one hour and a half, should be allowed for meals and rest. In respect to females, they were not, under any circumstances, to work more than twelve hours. By this bill, moreover, the recovery of lost time, from the use of steam and water, would not be allowed, except where the power used was water-power only: no person so employed was to work more than thirteen hours. Inspectors would be empowered to notify to mill-owners whenever they observed that

any portion of their machinery was dangerous, and that in their opinion it required to be cased or covered up: and if after such notification any accident should occur injurious to any of the workmen employed, then the inspector would be empowered to institute a suit for recovering compensation for such injury, and the damages awarded should be given to the injured party. As to education, all that the bill would do, would be to give the child from eight to thirteen years old time for receiving instruction: he was not to be employed more than six hours and half daily—the remaining portions of the day _might_ be devoted to education. Leave was given to bring in the bill, and the house went into committee upon it on the 15th of March. On one of the clauses being proposed which fixed the limitations of the hours of labour, Lord Ashley, after forcibly depicting the effects of factory labour, the injury it inflicted on those employed in it as the system now existed, both physically, mentally, and morally, moved that the night, instead of being computed from eight o'clock in the evening, should be computed from six o'clock. This amendment gave rise to an animated and earnest debate, which lasted two nights; and on a division, it was carried by a majority of one hundred and seventy-nine against one hundred and seventy. The proposal of government having been thus negatived, Sir James Graham said it would not be consistent with his duty to drop the measure at the present stage. On the eighth clause, Lord Ashley would have to move the substitution of "ten" for "twelve" hours, and the question could then be considered in a more substantive form. On the next day Lord Ashley said that it was his intention to make this proposition; and if affirmed, he should then prepare a clause, enacting that the present duration of labour, twelve hours, should continue till the 1st of October, 1844; the period should then fall to eleven hours, to continue so till the 1st of October, 1846, when the period of ten hours should commence. In pursuance of this intention, on the 22nd, when the eighth clause was taken into consideration, which provided that no young person should be employed daily more than twelve hours, Lord Ashley moved an amendment, substituting "ten" for "twelve." A contest followed this motion; but the debate which ensued was characterized by very little novelty, and on a division it was rejected by a majority of one hundred and eighty-eight against one hundred and eighty-one. At the same time the clause for twelve hours was rejected by one hundred and eighty-six against one hundred and eighty-three. Sir J. Graham then moved that the chairman report progress; stating that he should take until the following Monday, the 25th, to consider the course proper for him to adopt under these circumstances. On the 25th Sir James Graham announced that government had resolved to abandon the bill in order to bring in a new one. This was not effected without considerable opposition; but ministers finally triumphed, and leave was given to bring in a new bill on the 27th. The new bill stood for the second reading on the 22nd of April; previous to which Lord Ashley announced that he was determined to move, on the third reading of the bill, the addition of certain clauses, for the purpose of carrying out the amendments which he had proposed in the former bill. On the 22nd, the second reading of the bill having been moved, with an understanding that the main question was to be considered at a subsequent stage, Mr. T. Duncombe said that in agreeing to such a course Lord Ashley had surrendered the whole case. He now merely proposed to take a flying shot at the bill when it was leaving the house after the third reading: if that shot missed, the bill would be gone

before he could fire a second barrel. Under these circumstances, on the order of the day for going into committee of the whole house, he would move that the bill should be referred to a select committee above stairs. This motion was made, but it was rejected, and the bill passed through committee without alteration. The debate on the third reading commenced on the 10th of May, and was continued for two nights by adjournment. The new bill enacted that no young person should be employed more than “twelve” hours daily, as in the abandoned measure: but Lord Ashley, according to his notice, moved on this occasion a clause restricting the hours of labour to eleven from October, 1844. On a division, however, this amendment was negatived by a majority of two hundred and ninety-seven against one hundred and fifty-nine, and the bill then passed the commons. In the house of lords this controverted bill passed without much discussion.

THE CORN-LAWS AND FREE-TRADE QUESTION.

During this session, as Sir Robert Peel had proclaimed at its commencement the intention of government to maintain the recent settlement of the corn-laws, the exertions of the free-trade party in parliament were confined to two or three desultory motions, rather indicating their protest against the existing system than tending to practical results. On the 12th of March Mr. Cobden brought the corn-law question before the house of commons, in the shape of a motion for a committee to inquire into the effects of protective duties on agricultural labourers and tenants. This motion gave rise to a considerable debate, but it was negatived by a majority of two hundred and twenty-four against one hundred and thirty-three. About the same time Mr. Ricardo moved, “That an humble address be presented to her majesty, praying that her majesty will be graciously pleased to give directions to her servants not to enter into any negociation with foreign powers which would make any contemplated alterations of the tariffs of other countries; and humbly expressing to her majesty the opinion of this house that the great object of relieving the commercial intercourse between this country and foreign nations from all injurious restrictions will be best promoted by regulating our own customs’ duties, as may be most suitable to the financial and commercial interests of this country, without reference to the amount of duties which foreign powers may think it expedient for their own interests to levy on British goods.” In advocating this motion, Mr. Ricardo dwelt on the inutility of all our recent commercial diplomacy; and contended that our objects might be as effectually attained by judicious legislation with respect to our imposts, as by intricate negociations with respect to exports. The motion was seconded by Mr. Ewart, and supported by Sir J. Hanmer and Mr. Hume; but there not being forty members present, the house was counted out. Mr. Villiers brought forward his annual motion against the corn-laws on the 25th of June. He moved:—“That it appears by a recent census, that the people of this country are rapidly increasing in number. That it is in evidence before this house that a large proportion of her majesty’s subjects are insufficiently provided for with the first necessaries of life. That, nevertheless, a corn-law is in force, which restricts the supply of food, and thereby lessens its abundance. That any such restriction, having for its object to impede the free purchase of an article upon which depends the subsistence of the community is indefensible in principle, injurious in operation, and ought to be abolished. That it is

therefore expedient that the act 5 & 6 Vic. c. 14, shall be repealed forthwith." The debate on this motion occupied two evenings. Mr. Villiers supported it on the same ground which had been traversed by former argument on the same subject. By the facts and arguments which he adduced, he contended that he established these positions:—"That the supply of food had been deficient; that great inconvenience had resulted; and that the protective system had led to the cultivation of the land in a most slovenly manner." Mr. Gladstone, on the part of government, announced his intention of calling upon the house to give a direct negative to the original resolutions. Lord John Russell said that the motion placed him in a difficult position: he could not vote for the total and immediate repeal of the protective duty, neither could he assent to maintain the existing corn-law. Sir Robert Peel, who spoke towards the close of the debate, said that the performance of the evening had been for the benefit of the company which usually performed at Covent Garden Theatre. Mr. Villiers, in closing the debate, said, that there was nothing for him to reply to, since no one had controverted his arguments. The speech which Sir Robert Peel had delivered would please the agriculturists; but he had made the same sort of speech for them in 1839, and had thrown them overboard afterwards, because the state of the season and the distress of the people had made it indispensable to give some relief to the country. He predicted that the same thing would happen again. The motion was rejected by a majority of three hundred and twenty-eight against one hundred and twenty-four.

FINANCIAL STATEMENTS.

At this time, in consequence of the great abundance of capital in tire market, there was a general impression that the time had arrived when a considerable saving might be effected to the country, by a reduction in those stocks which bore the highest rate of interest. Early in the present session, indeed, it was discovered that government contemplated a plan for reducing the three and a half per cent, consols, which, at the commencement of the year, had reached the price of 102 ½. This plan was developed by Mr. Goulburn, in a lucid and able speech, on the 8th of March. He was about to ask the house, he said, to deal with the largest sum for which any government had been called on to propose a regulation, being no less than £250,000,000 of money. Never, he continued, was there a period when capital, seeking an investment, was so plentiful, and the rate of interest so low as at present; and there was nothing in the circumstances of the times which gave any reason to suppose that this state of things would prove transient. The condition of the public finances also was favourable to the proposed object; for, thanks to the firmness of the house of commons, the revenue once more exceeded the expenditure. In explaining this measure, he said that he was not disposed to purchase an immediate relief by increasing the burdens of succeeding times. He had, therefore, rejected the idea of lowering the present interest by augmenting the capital of the debt. His intention was to propose the conversion of the three and a half into a three and a quarter per cent, stock, which should continue until October, 1854, after which period the interest should be reduced to three per cent., with a guarantee that for twenty years there should be no further reduction. By this measure the public, from October, 1844, to 1854, would save £625,000 per annum, which saving, from and after 1854, would become £1,250,000 per annum. Mr.

Goulburn also proposed to make such arrangement that, from next October, the payments of interests would be nearly equalized in each quarter. His speech was received with loud demonstrations of approbation from both sides of the house; and the resolution being put, was carried unanimously. The bill brought in, to give it effect, passed rapidly through its stages in the house of commons; and it was carried through the upper house with equal unanimity and facility, all being convinced that it was a sound and practical measure, and honest withal to the public creditor.

The annual financial statement for this year was made on the 24th of April, when Mr. Goulburn had the satisfaction of showing that the receipts exceeded the expenditure. There had been an increase of amount in all the estimates: in the customs, the excise, the stamps, the taxes, the post-office, and the property-tax. The estimate of the total revenue was £50,150,000; the sum received £52,835,134, showing an increase of about £2,700,000. The expenditure also was less than the estimate by £650,000; and the total result was that, instead of the estimated surplus of £700,000, the gross surplus amounted to £4,165,000. From this, however, there was the deficiency of last year to be taken, namely, £2,749,000; and when this was discharged there was a net surplus of £1,400,000 over the expenditure of the year ending April, 1844. The total estimate of the revenue for the year following was £51,790,000, and the expenditure £49,643,170, whereby an apparent surplus of £3,146,000, or, making a deduction for a portion of the debt to be discharged next year, £2,376,000. Mr. Goulburn proceeded to say that this balance having been anticipated, he had been pressed from all quarters to reduce various taxes. He would gladly have done so, but the source of the surplus was not permanent: it was mainly the income-tax which was to be considered next year, in order to determine whether it should be prolonged, as had originally been proposed, for two years beyond the first. If other taxes were now hastily reduced before the operation of the tariff could be known, the house might have no alternative next year but to continue this tax. It was under these circumstances that he resisted large reductions; but he thought there were some articles upon which remission might be afforded, with a fair prospect of making up revenue by an increased consumption, and with a probability of increasing the consumption of other articles. The items which he proposed to select for such remission were glass, vinegar, currants, coffee, marine insurance, and wool, upon the aggregate of which the amount of duty to be remitted would be £387,000 per annum. Later in the session he intended to take the sugar duties into consideration; when he should recommend that England should admit, at a differential duty of ten shillings per cwt., the sugar of those states which do not cultivate that commodity by slave-labour. After considerable discussion, in which several members recommended the reduction or abolition of other taxes, the motion of Mr. Goulburn was agreed to; and the customs duties bill, and other bills founded on his proposition, subsequently passed through both houses with unanimity.

SUGAR-DUTIES BILL, ETC.

The great conflict of parties was reserved for the sugar duties. The chancellor of the exchequer’s views on this subject were propounded on the 3rd of June, when, after delivering a lucid and able speech on the sugar duties at present existing, and

explaining his intended alterations in those duties, he moved:—“That towards raising the supply granted to her majesty, the several duties now payable on sugar be further continued for a time to be limited, save and except that from and after the 10th day of November next, there shall be charged on brown Muscovado, or clayed sugar, certified to be the growth of China, Java, or Manilla, or of any other foreign country, the sugar of which her majesty in council shall have declared to be admissible as not being the produce of slave-labour, £114s. the cwt., together with the additional duty of £5 per cent, on the afore-mentioned rate. That from and after the 10th day of November next her majesty be authorized by order in council to give effect to the provisions of any treaty now in force, which binds her majesty to admit sugar, the produce of a foreign country, at the same duties as are imposed on sugar the produce of the most favoured nation.” Lord John Russell had announced that he would propose an amendment for including slave-grown sugar in that foreign produce which was to be admitted at diminished duties; but Mr. Goulburn said he could not believe that the house would consent to throw away the whole of that large amount which the country had recently paid for the abolition of slavery, by creating, through a new rise of prices, an additional stimulus to the importation of slaves into the foreign colonics. Lord John Russell, however, combated the views of government at great length; after which he moved, as an amendment, “That towards raising the supply granted to her majesty, instead of the duties of customs now payable on sugar, there shall be charged on brown, or Muscovado sugar, the produce of any foreign country, the sum of £1 14s. per cwt.” In support of his motion the noble lord argued, that the time was come when the sugar duties ought to undergo a full consideration. It was proposed, he said, to admit the sugar of Java and Manilla as free-grown, though the policy of these countries was questionable in point of personal freedom; but the sugar of Porto Rico was excluded, because our conscience was shocked at the notion that some part of it might have been produced by slaves. But what was thus forbidden directly, was allowed circuitously; we were willing to refine and export this slave-grown sugar, and to take the hemp and tallow of Russia in its stead, which seemed to be an easy way of letting down our consciences. This savoured of hypocrisy. If the United States were permitted to send us their sugars, which they would do to the extent of 50,000 tons per annum, they would take slave-grown sugar into their own consumption to the same extent; and to that whole extent, therefore, would give encouragement to slave-grown sugar. No implicit faith, moreover, was to be placed in the certificates of the Americans. Messrs. Gladstone and Baring defended the government measure; and Messrs. Hume, Labouchere, and M. P. Stewart opposed it. On a division Lord John Russell’s amendment was negatived by one hundred and ninety-seven against one hundred and twenty-eight. A few days afterwards, a bill founded on the chancellor of the exchequer’s resolutions was brought in, and was read a second time without discussion. But the most critical crisis for ministers had yet to be encountered. On the 14th of June, the house having resolved itself into committee on the sugar-duties bill, Mr. P. Miles objected to the change proposed by ministers in the old amount of protection as a measure which was not expedient, and not final in its settlement; wherefore he moved as an amendment, “That, from the 10th of November next, the duty on British colonial sugar should be. 20s.; on the sugars of China, Java, and Manilla, 30s.; with a duty of 34s. upon the foreign sugars, when imported at a

certain degree of refinement, and with an addition, as usual, of five per cent, upon the whole." This amendment was seconded by Mr. H. Baillie, who described the measure of government as causing general dissatisfaction; and asserted that, while it violated the principle of refusing encouragement to the foreign slave-trade, it gave but partial advantages to the British people. A long discussion took place, in which many members took part; and on a division government was defeated by a majority of two hundred and forty-one against two hundred and twenty-one. The committee then adjourned to the 17th; on which day Sir Robert Peel rose to put the house in possession of the course which government intended now to pursue. After explaining the nature of the sugar duties, and their views in the proposed alterations, and asserting that he believed a concurrence between the friends and the opponents of ministers had been concerted in the late division, he said the course which government would now take, and on which all members would be free, who had not engaged to vote for Mr. Miles's proposal of 20s., would be to propose, as an amendment, that 24s. should be the duty. They wished it to be known in the countries east of the Cape what the intentions of government were. Sir Robert Peel went on to explain the reasons why he did not content himself with merely proposing a renewal of the present sugar duties; after which, he said, that he was not insensible to the impediments which had been opposed to the progress of ministerial legislation. In certain of their measures, government had failed to obtain the approbation of some whose support they valued: but they were not prepared to purchase that approbation at the price of refraining from the policy which they deemed essential to the welfare of the country. They had felt it their duty to make a relaxation of duties; in that course they held it their duty to persevere: and he was anxious that on so important an occasion there should be no deception and no reserve. Lord John Russell considered that the proposal of Sir Robert Peel was neither more nor less than that the house should retract its former vote, and thus disgrace itself with the country. For his own part he was not much moved by their threats of quitting office, as he had not been one of the general supporters of the government. He justified the degree of concert which had taken place between Mr. Miles and the opposition; and asked if there had not also been a combination on his side. In conclusion, he warned the house that if they gave Sir Robert Peel the victory on this occasion, they would henceforth be wholly in his power. Mr. P. Miles denied that the conspiracy existed of which the right honourable baronet had spoken, and expressed his regret that he intended to persevere with his bill: he should have thought he would have been justified in paying due deference to the decision of a majority of that house, and postponing his measure till another session. Messrs. Cochrane and Labouchere opposed; and Sir Howard Douglas, and Messrs. Kemble and Warburton expressed their intention to vote with ministers. Mr. D'Israeli was not a little lost in wonder when he heard the threatened resignation of ministers; and facetiously congratulated the administration and the country, that instead of resigning, the right honourable baronet had simply moved an amendment. Several other members took part in the debate; and on a division Mr. Miles's motion was negatived this time by a majority of two hundred and fifty-five against two hundred and thirty-three; after which Sir Robert Peel's amendment, that 24s. and 84s. should be inserted, was agreed to. In committee further discussion occurred, and several amendments 'were moved; but they were all negatived and the

bill finally passed the commons.

The principal debate in the house of lords took place on the 2nd of July, when Lord Dalhousie moved the third reading. In his speech, the noble lord showed the prejudicial effects of the emancipation of the slaves in the West Indies on the supply of labour, and the consequent diminished production of sugar. This diminution had increased the price; and it became requisite to provide a supply from other quarters to answer the increase of demands. It was for this purpose that the present measure was introduced. By the act, which it was intended to supersede, all foreign sugar was subjected to a duty of 63s. per cwt. and five per cent.; and British sugar to a duty of only 24s., and five per cent. This bill proposed to leave the duty on sugar, the produce of the British possessions, as it then stood, namely, 24s. and five per cent.; but it proposed to effect an important alteration with respect to foreign sugar, by allowing the sugar of China, Java, and Manilla to be admitted at a duty of 34s. and five per cent., such sugar being the produce of free labour; and it also proposed to give to her majesty in council a power to admit, under peculiar circumstances, sugar, the produce of other countries with which we had reciprocal treaties, such being-certified to be _bona fide_ the sugar of those countries, and the produce of free labour. The bill was opposed by the Marquis of Lansdowne, Earl St. Vincent, and Lord Monteagle; and supported by the Earl of Radnor, and Lords Ashburton and Brougham. After a few words from Earl Dalhousie, in reply, it was read a third time, and passed without a division.

BANK CHARTER AND BANKING REGULATIONS.

In the speech at the opening of parliament, her majesty had alluded to measures about to be brought forward for the regulation of the Bank of England, and the administration of banking concerns in general. On the 6 th of May, in accordance with this announcement, the house having resolved itself into a committee upon the Bank charter, Sir Robert Peel explained these measures. The act of 1833, he said, had empowered the government to notify to the Bank, before August, 1844, that parliament meant to deal anew with the subject; and government now proposed that parliament should exercise that power of notification. The right honourable baronet went on to consider the principle of value. What, he asked, was a pound, and what the engagement to pay a pound? He contended that the word meant more than an abstraction—that it meant a certain weight of precious metal; and the engagement of a maker of a promissory note was to pay on demand a definite amount of that metal and fineness. A real measure of value in this just sense had existed till the year 1797, when bank paper became issuable without being convertible into metal. For some years the subject attracted little attention, until the bullion committee of 1810 propounded a sounder theory. This theory, however, was unsatisfactory to the people at large, and a notion became general that a pound was merely an abstraction. Some writers had argued, he continued, that gold was unfit to be a particular medium, because it was an article of commerce. There were several theories upon this subject. For instance, Mr. Ricardo conceived that paper should be convertible only when the notes tendered for specie should reach to upwards of a certain high amount; but he preferred, to adhere to the present system of a single gold standard, and a five pound

note convertible into gold. The right honourable baronet next proceeded to state his views respecting the principle for the regulation of a paper currency, making a distinction between bills of exchange and those promissory notes, which, being payable to bearer, served the direct purposes of money. He next stated the outline of the practical measures he was prepared to recommend. He remarked: “I propose, with respect to the Bank of England, that there should be an actual separation of the two departments of issue and banking—that there should be different offices to each, and a different system of account. I likewise propose that to the issue department should be transferred the whole amount of bullion now in the possession of the Bank, and that the issue of bank-notes should hereafter take place on two foundations: first, on a definite amount of securities, and, after that, exclusively upon that of bullion; so that the action of the public would, in this latter respect, govern the amount of the circulation. There will be no power in the Bank to issue notes on deposits and discount of bills; and the issue department will have to place to the credit of the banking department the amount of notes which the issue department by law will be entitled to issue. With respect to the banking business of the Bank, I propose that it should be governed on precisely the same principles as would regulate any other body dealing with Bank of England notes. The fixed amount of securities on which I propose that the Bank of England should issue notes is £14,000,000; and the whole of the remainder of the circulation is to be issued exclusively on the foundation of bullion. I propose that there should be a complete and periodical publication of the accounts of the Bank of England, both of the banking and issue departments, as tending to increase the credit of the Bank, and to prevent panic and needless alarm. I would, therefore, enact by law that there should be returned to the government a weekly account of the issue of notes by the Bank of England; of the amount of bullion; of the fluctuations of the bullion; of the amount of the deposits; and, in short, an account of every transaction, both in the issue department and the banking department of the Bank of England; and that the government should forthwith publish, unreservedly and weekly, a full account of the circulation of the Bank.” Sir Robert Peel next explained the regulations proposed by him for private banks. The general rule, he said, would be to draw a distinction between the privilege of issue, and the conduct of banking business: the object being to limit competition, but to make the great change with as little detriment as possible to private interests. From this time no new bank of issue would be constituted; but all those existing would be allowed to retain the privilege, upon condition that they do not exceed the present amount, to be calculated upon the average of a term of years. This would enable the Bank of England to know the extent of issue with which it would have to compete. While the issues would be restricted, banking business would be facilitated; the privilege of suing and being sued, at present withheld from joint-stock banks, would be accorded; the law of partnership would be so altered, that while the acts of an individual director, or otherwise authorized partner, would bind the whole, the acts of an unauthorized partner would not do so; and joint-stock banks in London, at present forbidden to accept bills for a date of less than six months, would be placed on an equality with other banks, and allowed to accept bills of any amount and any date. If the last privilege were abused by the circulation of small bills, he would then appeal to parliament to correct the evil. All joint-stock banks would be required to publish a

full and complete periodical list of all partners and directors, and banks of issue to publish an account of their issues. Joint-stock banks would also be prohibited from having shares of less than £100, £50, or some fixed amount; and no new joint-stock bank should be constituted except upon application to a government department, on registration of prospectuses, and probably registration of shares and paid-up capital. Reverting to the proposition respecting the Bank of England, Sir Robert Peel remarked:—"It is to be allowed issues to the extent of a fixed amount of securities, £14,000,000. The existing loan of £11,000,000 to government, at three per cent., will be continued, there appearing no advantage in change.

"The remaining £3,000,000 will be based upon exchequer bills and other securities, over which the Bank will have entire control; with the power, however, of limiting its issues on that portion of the securities, to restore the exchanges, and so forth: there could hardly be a case in which the securities could safely be diminished to less than £11,000,000. The Bank will also be allowed to extend its issues beyond the £14,000,000 on emergency, but only with the assent of three members of the government; and in such case the whole of the net profit on any amount beyond the £14,000,000 will revert to government. A case might arise such as the sudden extinction of £2,000,000 of the provincial currency, which would need an extension of the Bank currency to fill the gap. Without seeing any great advantage in the 'legal tender' clause, it is proposed to continue it, in order to facilitate the circulation of bank paper. The pecuniary arrangements between the Bank and government have to be explained, The Bank retains the privilege of issuing notes on securities to the amount of £14,000,000, at three per cent., which would yield £420,000. From this there are deductions to be made. The total cost of the Bank on an issue of £20,000,000, has been estimated at £117,000; but take it at about £113,000, which, taken from £420,000, leaves £307,000. There is then to be deducted about £60,000 composition with the Stamp-Office for the privilege of issuing notes. Then there is about £24,000 paid by the Bank to those bankers who undertake to issue Bank of England notes: taking-one per cent, on a payment of three per cent. The result, after subtracting these items, is £220,000 derived from the issuing of notes. Hitherto the Bank has paid £120,000 to government for its privileges: its privileges are now to be affected; but on the other hand increased stability is to be given to its banking business; and I propose that in future the Bank should still pay that sum, besides the £60,000 for the composition with the Stamp-Office, making in all about £180,000. Government pay to the Bank £240,000 for the management of the public debt; and the difference between the two last sums would be the balance that government would have to pay over to the Bank." After stating that the present measure would not be extended to Ireland and Scotland, Sir Robert Peel concluded with moving a string of resolutions which embodied the above propositions. His scheme met with general approbation; and on the 20th of May, the house having gone into committee on the resolutions, Sir Robert Peel made some further explanations upon points in the detail of the measure. He would suppose, he said, that the circulation in the country was £8,000,000; that the country banks would desire, by agreement with the Bank of England, to reduce this by one-half; and that it might become necessary for that establishment to make fresh issues in order to supply the vacuum. The cases then in

which he would allow the Bank to do so, would be those of a country bank failing, or closing, or commuting its own circulation for that of the Bank of England. With respect to the question, whether the bullion on which the Bank of England was to issue its notes should include silver, he proposed that it should; but without departing from the great principle that there must be but one standard, and that standard a gold one; all he meant was, that if a party brought silver to the Bank, the Bank might, within a certain limit, give its notes in exchange for it. If this were not permitted, the Bank having no interest in keeping a supply of silver, would probably cease to keep it; but it was important for the country to have access to such a supply, not only for domestic circulation, but with reference to foreign commerce. He proposed, therefore, to permit an issue of notes upon silver bullion, in the proportion of one-fifth of the whole, or one part in silver to four in gold. With respect to banks of issue, he would save them their circulation until parliament should make further order, and he would compute that circulation upon the average of its amount from the 6th May, 1842, to the 6th May, 1844, requiring henceforth a weekly publication of it. Where one bank took the business of another, the benefit of the averages of the extinguished bank should be given in the circulation of the surviving bank. If a bank should increase its branches, it would not be allowed to increase its total issues. If private banks should coalesce, the consolidated concern, being still a private bank, should be permitted to retain the benefit of the circulation of all the component banks, but a change of character would not be permitted: joint-stock banks would not be authorized to buy up the circulation of private banks. Sir Robert Peel next explained the way in which he intended that the new plan should operate with respect to those banks which had been issuing Bank of England notes, and announced that the Bank of England was prepared to enter into negociations with other banks for arrangements under which its notes should be circulated by them. He concluded by adverting to some exceptions which had been taken to some parts of his measure, in doing which he showed that they were founded upon safe and just principles. After a brief discussion, the resolutions were passed, and the second reading of the bill founded upon them was moved on the 13th of June. Mr. Hawes moved as an amendment:—“That no sufficient evidence has been laid before the house to justify the proposed interference with banks of issue in the management of their circulation.” This motion was supported by Messrs. Hastie, Woolehouse, C. Buller, Gisborne, and Williams; and opposed by the chancellor of the exchequer, Sirs R. Peel and W. Clay, and Messrs. Hume and Warburton. On a division it was negatived by a majority of one hundred and eighty-five against thirty; and after some further discussions in committee, in which some members attempted to introduce modifications in the bill, all the original propositions were carried, and, with the exception of a small section, with the general concurrence of the house. In the house of lords it received very little discussion. The first and second readings passed _sub silentio_; and it went through committee without any division: the Earl of Radnor and Lord Ashburton only expressing fears of its practical working.

DISSENTERS’ CHAPELS BILL.

During this session a bill was brought into the house of lords by the lord-chancellor for confirming the possession of religious endowments in the hands of dissenters, and

arresting such litigation as had recently taken place in the case of Lady Hewley's charities, which were endowed by her for Calvinistic Independents, but which had gradually passed to the Unitarians, whose occupancy was successfully opposed. The lord-chancellor's bill proposed to terminate all further legal controversy respecting the right to voluntary endowments connected with dissenting chapels, by vesting the property in the religious body in whose hands it had been for twenty years. The bill was opposed in the house of lords by the Bishops of London and Exeter, the Earl of Winchilsea, and Lords Kenyon, Teynham, and Mountcashel; but it was carried by a large majority. Before it came under discussion in the house of commons a vigorous opposition was manifested against it, especially by the Trinitarian dissenters. Public meetings were held, and petitions were sent up from all quarters against the obnoxious proposition. Under these circumstances, on the 6th of June, when the second reading of the bill was moved, the attorney-general explained its objects, which, he said, had been misunderstood. The alarm which this bill had created, namely, that it would have the effect of encouraging Unitarian doctrines, he contended was wholly unfounded. An act had been passed in 1813, legalizing the foundation of schools and chapels for the benefit of the Unitarians, and placing them upon the same footing as other Protestant dissenters. The question then arose respecting foundations which might have been made before 1813, when the Unitarians were excepted out of the Toleration Act: namely, would they or ought they to take from that body, which was now legal, and could legally endow chapels, that which they possessed, because it was given them before the year 1813? The first clause of the bill put not only Unitarians, but all Protestant dissenters on the same footing; it rendered the toleration act retrospective. The second clause, he continued, related to dissenting chapels only; not to general charitable foundations. By the present law, the will of the donor must be binding; but it was not to be assumed, in the case of every religious charity, that it was founded for a particular sect, even though the donor held the doctrine of that sect. It was said, that the bill would encourage trustees to violate their trusts, and hand over the property for purposes not intended by the donor. It could do no such thing. Dissenting chapels were thus founded:—Congregations of dissenters wishing to establish places of meeting and chapels for worship, formed together voluntary associations, which associations subscribed funds, purchased the land, and built the chapels. In the first instance these chapels were vested in trustees; but he was told that so little had the trustees to do with the arrangement or control of these chapels, that in the great majority of cases when the original trustees died, no fresh ones were appointed to succeed them: the congregation relying upon possession. In this country every question of private right was decided upon usage; twenty or thirty years' possession prevailed against both the crown and the church. Why then should it not be applied to the property in dissenters' chapels? He was told that the consequence might be, that property now possessed by Presbyterians or other dissenters would in the lapse of time fall into the hands of the Unitarians. How could it be so? By the bill the usage must be that of the congregation. Notwithstanding this explanation, the bill was strenuously opposed in the commons by Sir Kobert Inglis, who moved that it should be read a second time that day six months, and by other members of the house, who looked upon it as outraging and insulting the Christian feeling of the country. On a division the

amendment of Sir Robert Inglis was negatived by a majority of three hundred and seven against one hundred and seven. The house then went into committee on the bill, and having made some unimportant amendments to it; it passed and was sent up to the lords, where it again became the subject of discussion. It was opposed in its progress by the Bishop of London, who moved “that the amendments be taken into consideration that day three months,” but this was negatived by two hundred and two against forty-one, and the bill then passed.

SEES OF BANGOR AND ST. ASAPH.

During this session the Earl of Powis renewed his proposition for repealing so much of the act of the 6th and 7th William IV. as related to the union of the sees of St. Asaph and Bangor. In Ins speech the noble lord laid great stress on the numerous petitions from every county in North Wales, and from many in South Wales and England, as testifying the unanimous feeling pervading the clergy throughout both countries and all classes in Wales against the suppression of one of those ancient bishoprics. On its second reading, the measure was opposed by the Duke of Wellington and the Archbishop of Canterbury; and supported by the Bishops of St. Davids, Lincoln, Exeter, London, and Salisbury, and the Earls of Winchilsea and Harrowby. On a division, it was carried by a majority of forty-nine against thirty-seven; but though the second reading was thus carried, a difficulty arose in another quarter, which frustrated the endeavours of the friends of North Wales to preserve the integrity of its episcopate. On the motion for its third reading, the Duke of Wellington announced that the bill was one which touched the prerogative of the crown, and that he was not authorized to give her majesty’s consent to its further progress. The manner in which the question of the crown’s prerogative arose in this case was explained by the lord-chancellor. His lordship remarked, that during the vacancy of a see, the temporalities belonged to the crown; and any alterations in a see, therefore, affected the pecuniary interests of the crown; and there could be no doubt that where the pecuniary interests of the crown were concerned, its consent was necessary. He doubted whether he was authorized in putting a question affecting the royal prerogative without the consent of her majesty; and he suggested the appointment of a committee to search for precedents. A committee was appointed, and under these circumstances Lord Powis announced his determination to withdraw the bill, stating at the same time his conviction that the matter would not rest where it was. He believed that during the whole period the house of Hanover had been on the throne there was no precedent to be found to sanction the present course adopted by government. There was no measure that parliament had expressed a wish for them to consider, in which the crown had introduced its authority to prevent the further consideration of that measure.

MISCELLANEOUS MEASURES OF THE SESSION.

In the course of the session there were several acts passed of great utility without any prominent discussion. One of the most important of these was an act for the regulation of railways, which was brought in by Mr. Gladstone, and which embodied a variety of enactments designed to protect the public against the injurious effects of monopoly and combination, by vesting in the government a controlling power over

such companies as should thereafter come to solicit powers from parliament, and a right of intervention for the reduction of charges and tolls whenever the profits of a railway should exceed the maximum of ten per cent, on its capital. The act also contained salutary regulations for securing economy and comfort in travelling to the poorer classes. Another act passed contained provisions of practical importance for the regulation of joint-stock companies. The main object of this measure was to protect the public against fictitious and delusive schemes, by requiring from all joint-stock companies the observance of certain conditions for the purpose of ascertaining their real character, and subjecting them to an efficient responsibility. There was to be a system of registration under a proper superintendence, whereby the names and descriptions of the projectors, and the particular nature and objects of the undertaking were required to be enrolled at an office established for that purpose. Upon compliance with these regulations, certain privileges were to be accorded to the company, and some anomalies and inconveniences heretofore existing removed. Reports were also to be made annually to parliament by an officer to be appointed under the act, relating to such companies as should have come within its provisions during the year. A third Act remodelled the entire system of turnpike-road management in South Wales, the abuses of which had given rise to the Rebecca riots. The leading principle of this measure was the consolidation of trusts, the debts of those existing being paid off by a system of arbitration, to be conducted by three commissioners appointed by government; the money required for this purpose being lent by the treasury, and secured on the rates of the several counties. The consolidation having been effected, all the roads in each county were to be administered by a now executive body, consisting partly of _ex-officio_ members, partly of magistrates, and partly of ratepayers. A further alteration was made this session in the original poor-law amendment act, the principal feature of which was an alteration in the enactments of the statute of 1835, relating to the maintenance of illegitimate children. By this alteration, a more efficient mode of obtaining from the father a provision for his child’s maintenance was placed in the power of the mother, by means of a proceeding in which she herself was entitled to make the application, and not, as under the original law, the officers of the parish: more stringent remedies were also substituted for enforcing the remedy against the putative father than had before existed. Towards the close of the session, repeated discussions of an animated nature took place in both houses of parliament, on the subject of a petition which was presented by Mr. Thomas Duncombe, from Serafino Calderara, Joseph Mazzini, W. J. Linton, and William Lovett, complaining that their letters had been opened at the post-office. Mr. Duncombe, in the commons, and the Earl of Radnor in the lords, moved for committees of inquiry, which were ultimately appointed; and these committees made their reports during the session; from which reports it appeared that the warrants of the secretary of state had only been issued in peculiar emergencies; and that the cases in which his power had been exercised formed a small annual average, and did not amount to an invasion of private correspondence, which the assailants of government had represented. No other result arose out of the conflicts upon this subject than a bill introduced by Lord Radnor, in the house of lords, for the abolition of the power complained of; but this bill did not proceed beyond the first reading.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by commission on the 5th of September. The speech announced that her majesty had given her cordial assent to the bill for regulating the issue of bank-notes; adverted to some discussions which had taken place with the government of the king of the French on events calculated to interrupt the friendly relations of the two countries, but which danger had been averted; congratulated the houses on the improvement which had taken place in the condition of manufactures and commerce; and expressed high satisfaction at the spirit of loyalty and cheerful obedience to the law manifested in all parts of her majesty's kingdom. The commissioners concluded:—"We are commanded by her majesty to assure you that when you shall be called upon to resume the discharge of your parliamentary functions, you may place entire reliance on the cordial co-operation of her majesty in your endeavours to improve the social condition and to promote the happiness and contentment of her people." Thus ended this important session—a session signalized in the addition to the statute-book of severed important measures, conceived in a safe and judicious spirit of reform, well suited to the circumstances of the country and to the temper of the age.

THE STATE OF INDIA.

The event of chief interest connected with the present year was the recall of Lord Ellenborough, the governor-general, by the unanimous vote of the court of directors. This subject, as noticed in a previous page, gave rise to discussion in both houses of parliament. What were the real motives of the directors of the East India Company in exercising their right of recalling a governor-general, which from non-use had almost become obsolete, and in thus acting in direct opposition to the views and wishes of her majesty's government have never been fully developed; and the public have therefore been driven to conjecture on the subject. The most probable opinion, perhaps, may be, that the directors were offended at his evident mania for military achievements. Throughout the whole of his administration he showed his desire of conquest; and even when he left India he did not scruple to say, at a farewell entertainment given him by the military society of Calcutta, that the only regret he felt in leaving India was that of being separated from the army; and that the most interesting period of his life was that which he had passed in cantonments and camps. Another cause of offence may have been derived from his proclamations, which were offensive to good taste, and which justly exposed him to ridicule. His behaviour towards the directors also was by no means judicious; for, although he had bound himself to attend exclusively to their orders, he was by no means an obedient servant. But whatever may have been the directors' motives, Lord Ellenborough was recalled from his government, and Sir Henry Hardinge was, at the suggestion of Sir Robert Peel, appointed his successor; and he arrived in India in the month of July.

In Scinde nothing of importance occurred this year. The worst foe which the British had to encounter there was the climate, owing to which a distressing sickness prevailed among the troops. In consequence of this several Bengal native regiments were ordered to march on Scinde; and, although they at first refused to march, from an impression that they were destined for foreign service, they finally marched

thither, with the exception of the thirty-fourth native infantry; and that regiment was ignominiously broken at Meerut, in presence of all the troops at the station.

During this year a governor-general was appointed over our recent acquisitions in China, in the person of Mr. Davies, well-known for his admirable work on China, and who had resided many years at Macao, as chief superintendent under the East India Company. Mr. Davies arrived on the 7th of May at Hong Kong, the seat of the new government; and, at the end of July, Sir Henry Pottinger, whose mission to that empire had been attended with such complete success, sailed for England.

PROCEEDINGS AGAINST MR. O'CONNELL.

It has been seen in the last chapter that the trial of Mr. O'Connell and his associates for a seditious conspiracy was postponed till the commencement of the present year. It was intended that the trial should commence on the 15th of January; and, although the defendant sought to obtain a postponement of it till the 1st of February, this intention was carried out. On that day the Court of Queen's Bench was crowded with barristers and spectators, in the expectation that the trial would commence. Before the jury were sworn, however, Sir Coleman O'Loghlen, on the part of Mr. O'Connell, challenged the array, on the ground of the irregularities in the preparation of the jury lists, stating at the same time that the challenges of the other counsellors, or traversers, as they were called, because they had traversed the indictment, were identically the same, and would be handed in very shortly. The attorney-general demurred to the challenge; on which the question previously debated was re-argued. The judges, however allowed the demurrer; and then the court adjourned without swearing the jury. On the 16th, after some delay, twelve jurymen were sworn, when Mr. Napier opened the pleadings; after which Mr. Smith, the attorney-general, opened the case. The court adjourned at five o'clock; and next day the hearing of evidence commenced, which continued up to the 11th day of the trial, January 26th, on which day the case for the prosecution closed. On the next day Mr. Shiel opened the case for the defence, as counsel for himself and Mr. John O'Connell. In his speech he contended that Mr. O'Connell shrank with abhorrence from the sanguinary aims imputed to him; and bitterly complained that poems and articles in newspapers should be brought as evidence against him, as if he were the editor of the several journals from which that evidence had been collected. It was like making, he said, Mr. Cobden answerable for all that appeared in the _Chronicle_, or the _Globe_, or the _Sun_: he was accused, in fact, of conspiracy with men who, so far from conspiring together, were rivals. "They pay their addresses to the same mistress; but they cordially detest each other." How formidable, then, was this doctrine of legal conspiracy! In 1819, when England was in a perilous condition, it was proved that men were drilled by night near Manchester; yet an English jury would not find Henry Hunt guilty of conspiracy. Mr. Shiel next undertook to show that his clients' objects were legal, and sought by legal means; and concluded with an impassioned address to the jury on behalf of Mr. O'Connell and all the traversers. He asked:—"Shall I, who stretch out to you in behalf of the son the hand whose fetters the father had struck off, live to cast my eyes upon that domicile of sorrow in the vicinity of this great metropolis, and say, 'Tis there they have immured the liberator

of Ireland with his fondest and best beloved child. No; it shall never be! You will not consign him to the spot to which the attorney-general invites you to surrender him. No! When the spring shall have come again, and the winter shall have passed—when the spring shall have come again, it is not through the windows of this mansion that the father of such a son, and the son of such a father, shall look upon those green hills on which the eyes of so many a captive have gazed so wistfully in vain; but in their own mountain home again they shall listen to the murmurs of the great Atlantic; they shall go forth, and inhale the freshness of the morning air together; 'they shall be free of mountain solitude;' they will be encompassed with the loftiest images of liberty upon every side; and if time shall have stolen its suppleness from the father's knee, or impaired the firmness of his tread, he shall lean on the child of her that watches over him from heaven, and shall look out from some high place, far and wide, into the island whose greatness and whose glory shall be ever associated with his name. In your love of justice; in your love of Ireland; in your love of honesty and fair play, I place my confidence. I ask you for an acquittal, not only for the sake of your country, but for your own. Upon the day when this trial shall have been brought to a termination; when, amidst the burst of public expectancy, in answer to the solemn interrogatory which shall be put to you by the officer of the court, you shall answer, 'Not guilty,' with what a transport shall that glorious negative be welcomed! How will you be blessed, adored, worshipped! And when retiring from the scene of excitement and of passion, you shall return to your own tranquil homes, how pleasurably will you look upon your children, in the consciousness that you will have left them a patrimony of peace, by impressing upon the British cabinet that some other measure beside a state prosecution is necessary for the pacification of your country." On the thirteenth day Mr. Moore addressed the jury on behalf of the Reverend Mr. Tierney, and Mr. Hatchell for Mr. Ray. On the fourteenth day Mr. Fitzgibbon spoke on behalf of Dr. Gray, his address occupying two days. In the course of his address an extraordinary scene took place, in consequence of a challenge which the attorney-general had sent to Mr. Fitzgibbon to fight a duel. Of this circumstance Mr. Fitzgibbon took every advantage. After handing the note to the judges which contained the challenge, he said that he left him to their lordships to answer for his conduct. Mutual recriminations and explanations followed; but the matter resulted in Mr. Smith's withdrawing the note, which was allowed by the consent of all parties. On the four following days, Messrs. Fitzgibbon, Whiteside, M'Donnah, and Henn, successively addressed the court for different clients. On the nineteenth day, Mr. O'Connell commenced his defence. He began by showing that he had a right to demand from the jury a favourable verdict; after which he came to the consideration of the case itself; in doing which he retraced, with more or less of variety, arguments already employed. In referring to the indictment, he said that it was the history of the last nine months; and that he defied the most brilliant imagination to grasp the monstrous accumulation of matter. Its entire strength rested on the meaning of that cabalistic word, "conspiracy." He continued:—"If, my lords, I look into the dictionary for the meaning of that word, I find that it is 'a secret agreement between several to commit a crime;' and that is the rational, common-sense definition of it. This word, however, in recent times, has been taken under special protection by the government; and the definition of it now is, not only a secret agreement between several to commit crime,

but they have taken two loops to their bow, and the further depiction given of it is, to effect, or attempt to effect, a legal object by means that are considered illegal; and thus a conspiracy is spelt out by the construction put upon the means that are used to attain the object sought, however legitimate that object may be. It has been admitted even by the crown, that in this case there is no privacy, no secresy, no definite agreement to do anything whatsoever; but, above all, no secret agreement, no secret society, no private information. It has been admitted by the crown that there has not been even one act of private communication; that everything was openly avowed, published to the world; that this ‘secret conspiracy’ had no secrecy at all. What a monstrous thing it would be to hold that that was a conspiracy which everybody knew of, everybody heard of, and three-fifths of the people of this country were engaged in. And what was the evidence of those conspirators assembling together? That Mr. Such-a-one attended at such a meeting; that Mr. Barret attended at a certain meeting; and that Mr. Duffy attended once or twice; that I. myself attended; and this is the way the charge of conspiracy is to be spelt out. Is it common sense that that should be denominated a conspiracy? Conspiracy! where was it made? when was it made? how was it made? Was it made in winter, or in summer? in spring or in autumn? Was it made on a holiday, or on a Sunday, or on a week day? Tell me the hour, the week, the month, the year it was made? In which of the three quarters of the twelve months did the gestation of this conspiracy commence? Who proposed it? Who seconded it? Who was present at it? I don’t know whether it was said that I was present at the concoction of this conspiracy, or this agreement, private or public, or who else was there. When and where did it take place? Ought I not, at all events, to have the advantage of being-able to prove an alibi? No; but you must go over nine months, and toss up which time or place you may select. Do you not believe that if there was a conspiracy it would be proved, and that the only reason it was not proved, is, because it did not exist? The attorney-general told you it did exist; that it must have existed: but that is all imaginary; and you are called upon to find me ‘guilty’ if you imagine that this agreement was entered into. I don’t want to speak of the talents of the attorney-general. I admit the ingenuity, the talent, and the industry with which he conducted this case. He was eleven hours, eleven mortal hours detailing the facts to you. What did he tell you the conspiracy consisted of? He made a long statement, and when he came to the end, he told you to go back to the beginning, find out the conspiracy, and what it consisted of. I say, gentlemen of the jury, without tire least affectation, if any gentleman could have found out evidence of a conspiracy, it would have been found by the attorney-general.” Mr. O’Connell proceeded at great length to defend the means of his agitation, and then proceeded to vindicate its object—the repeal of the union. On the latter subject he remarked:—“I mean first to demonstrate that the English Parliament has, from the remotest period at which she possessed the power, governed Ireland with a narrow, jealous, restrictive, and oppressive policy. By way of parenthesis, I would first beg of you to recollect the history of the woollen manufactures of Ireland, in the reign of a monarch whom you are not disposed to condemn. I shall next demonstrate in succession, that the transactions of 1782 were intended to be a final adjustment, and that it was then intended and agreed that the Irish parliament, after having achieved its independence, should maintain it, and that the union was forced upon the Irish

people against their consent, by the most criminal means. I shall next show you in detail the many evils that resulted from the union, and the gross injustice of the enactment of that statute. I shall show you the increasing distress and destitution which have arisen from that statute; and that there is no probability of restoring prosperity to this country, or of avoiding ultimate separation from England, save by the restoration of her parliament." In support of these propositions, Mr. O'Connell read extracts from the writings and speeches of various statesmen, both native and foreign. In conclusion he said to the jury:—"I leave the case in your hands. I deny I have done anything to stain me. I reject with contempt the appellation of conspirator. I have acted boldly, in the open day, in the presence of the magistracy: there lias been nothing secret or concealed. I have struggled for the restoration of the parliament of my native country. Others have succeeded before me; but, succeed or fail, it is a struggle to make the fairest land in the world possess those benefits which nature intended she should enjoy." On the next day some evidence was gone into on behalf of the defendants, in the course of which it was proved that on the 16th of July, when an arch was erected bearing the inscription, "Ireland, her parliament, or the world in a blaze," Mr. O'Connell expressed disapprobation of it, and Mr. Steele stood by to see that it was taken down before the people were fully assembled. The next two days were chiefly occupied by the solicitor-general's reply, which recapitulated the principal points of the evidence, and stated its bearings upon the different charges laid in the indictment. After he had concluded, the lord-chief-justice commenced the charge: in doing which he first explained the nature of the indictment, and of the single offence with which the traversers were charged, "conspiracy;" then explained the law of public discussion and public meeting; next proceeded to consider the evidence that had been given; then commented on the large funds collected in Ireland, England, Scotland, and America, towards the "exchequer" of the association; and finally, alluding to the scheme for bringing into disrepute the courts of justice as established by law through the arbitration courts, showed in what maimer the conspiracy was to be inferred. He asked:—"Have you or have you not Dr. Gray coming forward and telling the assembled multitude that the time was coming when they would be taken out of the hands of those petty tyrants who at present preside in their courts of justice? Have you or have you not Mr. O'Coimell himself adverting to the same system at the Clifden and other subsequent meetings; recommending the appointment of arbitration courts, and the placing thereon the magistrates who had been dismissed? And have you or have you not Mr. John O'Coimell making a speech recommending the same systems, and appearing himself to act under the appointment of the repeal association, in presiding over an arbitration court established in Blackrock?" The jury retired about half-past seven o'clock, and the judges withdrew. Later in the evening, Mr. Justice Crampton returned, and remained in court to await the return of the jury. They brought in a verdict of "guilty" against all the traversers on various counts; but stated "no finding" upon others, deeming them too comprehensive. This verdict was handed back by Mr. Justice Crampton, saying, that it was imperfect: they must find a verdict of "guilty" or "not guilty" upon every part and every person. Finally, they were ordered to be locked up till Monday, on which day they were summoned, and an issue paper was given them, which set forth the five several issues in the indictment in a distinct

shape, against which they were directed to write their finding. This was done, and all the prisoners were found guilty on one or other of the counts, and some of them, including Mr. O'Coimell, on them all, Sentence was pronounced on the 30th of May against the traversers, with the exception of the Reverend Mr. Tierney, against whom the attorney-general did not press judgment, by Mr. Justice Burton in these terms:—"With respect to the principal traverser, the court is of opinion that he must be sentenced to be imprisoned for the space of twelve calendar months; and that he is further to be fined in the sum of £2000, and bound in his own recognizances in the sum of £5000, and two sureties in £2500, to keep the peace for seven years. With respect to the other traversers, we have come to the conclusion that to each shall be allotted the same sentence: which is, that they be imprisoned for the space of nine calendar months, each of them to pay £50 fine, and enter into their own recognizances of £1000, and two sureties of £500, to keep the peace for seven years." In accordance with this sentence the traversers were imprisoned: but in consequence of the sympathy, real or supposed, which they met with in the English parliament, their full sentence was not carried into execution. On the 9th of August, Messrs. Shiel, Wyse, Lord John Russell, and others, called upon government to release them from imprisonment; and the result of this appeal was, that on the 4th of September, the judgment of the house of lords was pronounced, reversing the judgment of Mr. O'Connell and his co-defendants. The prisoners were freed from confinement; but the result of the trial was, that the virulence of the agitation for repeal abated.

CONTINENTAL AFFAIRS.

France this year was engaged in a war with the Emperor of Morocco, over whose forces the French troops triumphed on the banks of the river Isly on the 14th of August. The result of this battle was a treaty between the two countries, in which the Emperor of Morocco engaged to prevent troops from assembling on his frontiers for the invasion of Algeria. During the autumn, Louis Philippe and the Emperor of Russia paid a visit to Queen Victoria, and stayed a few days in England, where they were treated with all due honours. In Spain the civil war which had so long convulsed the nation was ended; but it was succeeded by a state of doubtful tranquillity, and isolated insurrections broke out in various parts of the country, which were only put down by force of arms. The same fate awaited Portugal: there was a revolt of troops at Torres Novas, headed by Count Bomfin; but the rebels having shut themselves up in Almeida, that place was invested with government troops, and finally surrendered, the leader of the insurrection taking refuge in flight. In Greece the most important event was the framing of a constitutional charter by the National Assembly, consisting of one hundred and seven articles, which was signed and ratified, after some hesitation, by King Otho. During this year the King of Prussia narrowly escaped assassination at Ischl by the Burgomaster Tschech, who fired two shots from a double-barrelled pistol in quick succession against the carriage. In the early part of the year a conference took place at Vienna of plenipotentiaries from the different German states to frame measures to secure themselves by all the means in their power against the slightest change in the existing order of things, which at this time were threatened by a formidable parly, in the different states hostile to all authority. In Sweden this j'ear witnessed the death of Bernadotte, the king of that country, the

most permanently successful of all the generals who took part in the French revolution. Although of obscure birth and a foreigner, he was called upon to wear the crown of Sweden by the unanimous voice of the nation; and he so identified himself with their interests, that he reigned in peace and died universally beloved by his subjects. In Switzerland disturbances took place this year in the Valais and at Lucerne: but order and tranquillity were quickly restored by the federal troops of that country.

CHAPTER LVI.

{VICTORIA. 1845–1846}

Meeting of Parliament..... Finance and Commercial Policy..... Retention of the Income Tax, &c. The Sugar Duties Question..... Corn Laws and Free Trade..... The Affairs of Ireland..... Maynooth Improvement Bill, &c. Academical Education in Ireland..... Colonial Policy..... Question of the Oregon Territory..... Miscellaneous Measures of the Session..... Prorogation of Parliament..... The Affairs of India..... The State of the Continent.

MEETING OF PARLIAMENT.

{A.D. 1845}

Parliament was opened by the queen in person on the 4th of February. The speech first referred to the prosperous state of trade and commerce; to the royal visits made to her majesty by the Emperor of Russia and the King of France; to the estimates for the ensuing year; and to the peace which at this time prevailed in Ireland. Her majesty continued:—“I recommend to your favourable consideration the policy of improving and extending the opportunities of academical education in Ireland. The report of the commission appointed to inquire into the law and practice in respect to the occupation of land is nearly prepared, and shall be communicated to you immediately after its presentation. The state of the law in regard to the privileges of the Bank of Ireland, and to other banking establishments in that country, and in Scotland, will no doubt occupy your attention. The health of the inhabitants of large towns and populous districts in this part of the United Kingdom has been the subject of recent inquiry before a commission, the report of which shall be immediately kid before you. It will be highly gratifying to me if the information and suggestions contained in that report shall enable you to devise the means of promoting the health and comfort of the poorer classes of my subjects. I congratulate you on the success of the measures which three years since were adopted by parliament for the purpose of supplying the deficiency in the public revenue, and arresting the accumulation of debt in the time of peace. The act which was passed at that time for imposing a tax upon income will shortly expire. It will be for you to determine whether it may not be expedient to continue its operation for a further period, and thus to obtain the means of adequately providing for the public service, and at the same time of making a reduction in other taxations. Whatever may be the result of your deliberations in this

respect, I feel assured that it will be your determination to maintain an amount of revenue amply sufficient to meet the necessary expenditure of the country, and firmly to uphold that public credit which is indispensable to the national welfare. The prospect of continued peace, and the general state of domestic prosperity and tranquillity, afford a favourable opportunity for the consideration of the matters to which I have directed your attention; and I commit them to your deliberation, with the earnest prayer that you may be enabled, under the superintending care and protection of Divine Providence, to strengthen the feelings of mutual confidence and goodwill between different classes of my subjects, and to improve the condition of my people."

FINANCIAL AND COMMERCIAL POLICY—RETENTION OF THE INCOME-TAX, ETC.

The great scheme of commercial reform alluded to in her majesty's speech at the opening of the session was brought forward by Sir Robert Peel, in a committee of ways and means, on the 14th of February. The right honourable baronet commenced by saying that though he had considerable experience in the discharge of official duties, and though he had often addressed the house on matters of great public concern, he could not approach the subject on which he had then to address the committee without great anxiety, and a deep consciousness how inadequate and imperfect the explanation would be which he should endeavour to place before it. After the declaration made in her majesty's speech, that it was the intention of ministers to propose the continuance of the income-tax for a certain number of years; he had no other alternative than to submit to the house the general views which the government took of the financial condition and the commercial policy of the country. In explaining their views, after referring to the estimate of the probable revenue and expenditure made by the chancellor of the exchequer in April, 1844, and, after showing that the surplus revenue, on which he had calculated for the whole year had been greatly exceeded by the actual amount of revenue received on the 5th of January, 1845, he proceeded to estimate the surplus revenue which would be in the exchequer on the 5th of April in the present year, at a sum not less than £5,000,000. He next submitted to the house an estimate of the probable receipt of the revenue for the year ending the 5th of April, 1846, on the assumption that the house would not sanction the income-tax. He calculated that the receipts up to that period would be £51,000,000, and the expenditure £48,557,000; but if they deducted from this surplus the revenue derived from half a year's income-tax, which would become due in the interim, and from the payment of the instalment from China, there would then be a small deficiency in the revenue as compared with the expenditure of the year. The question then arose, whether ministers were justified in demanding, under such circumstances, an increased expenditure on account of the public service. He was satisfied that they were justified. He did not propose an increase in the army, but he could not consent to its diminution. The military estimate for the present year would be £6,600,000; and there were reasons which induced him to propose an increased estimate for the navy; namely, the growing necessity for a further protection to our commerce in every part of the globe, and in the establishment of three new naval stations—one on the coast of Africa, another in the Pacific, and a third in the Chinese

seas. He should propose an increase of four thousand men, which would cost £184,000; and in respect of the vote for the navy, and tire ordnance connected with the navy, there would be in the votes of this year an increase of nearly one million. He thought the revenues of the next year would meet this increased expenditure, even if the house would not consent to continue the income-tax. It was quite clear, however, that if it did not continue the income tax, there would be a decrease of revenue in the following year. The question, therefore, which he must put to the committee was, whether they would run the risk of deficiency by making no provision to meet it, or whether they would postpone the consideration of the deficiency till the year 1846. But ministers were induced to propose the continuance of the property-tax for a further period. If the committee sanctioned it, the revenue on the 5th of April, 1846, would amount to £53,700,000; and so long as the other sources of revenue were productive, might be calculated at that sum, deducting only a sum of £600,000 from China, which would only be receivable for one year more. He would take the amount then at £53,100,000, and deducting £49,000,000, the estimated expenditure, from that sum there would be a net surplus of £4,100,000, or if the committee acquiesced in the increased naval estimates, £3,409,000. Sir Robert Peel next approached the most important question of all; namely, the mode in which this surplus was to be applied to the relief of taxation. If the property-tax were continued, ministers intended to make a great experiment with respect to taxation; and in explaining their views Sir Robert Peel said that he would first take the customs, and submit to the house a proposition with respect to the duty on sugar. On brown Muscovado sugar, which now paid a duty of 25s. 3d., he proposed to reduce the duty to 14s.; on free-labour sugar he proposed that the protecting duty should not exceed 9s. 4d., and therefore the duty would be 23s. 2d.; on British plantation sugars he proposed that the duty should be 16s. 4d., instead of 25s. 3d.; that the duty on sugar imported from India should be 21s. 9d.; and that the duty on free-labour foreign sugar should be 21s. 9d.—thus retaining the whole amount of discriminating duty which was imposed last year, but applying that discriminating duty in a different manner; giving 9s. 4d. as a protection on Muscovado sugar, and an increased protection of lis. 4d. on the more valuable and costly article. Sir Robert Peel said that he proposed to reduce the duty on molasses; and after giving an estimate of the supply of sugar which he considered likely to come from our possessions this year, stated that the effect which would be produced on the price of sugar by this reduction in the duty would be a reduction of three halfpence per pound. The estimated loss to the revenue from this source would be £1,300,000. Sir Robert Peel next proceeded to state that in the tariff of 1842 he had abolished generally the duty on all exports, with the exception of some few articles: he now proposed to abolish the duty on all articles. By this plan the export duty on coal would cease to exist, which would be a loss to the revenue of £120,000. He next proceeded to a consideration of the duties on raw materials used in manufactures: the tariff included eight hundred and thirteen such articles, and he proposed to remove the duties applicable to four hundred and thirty of them; which would occasion a loss to the revenue of about £320,000. He next stated that he was prepared to abolish the duty on cotton-wool, which would cause a loss to the revenue of not less than £680,000. These were all the alterations he proposed in the customs; and the right honourable baronet next proceeded to the excise-duties. Among the

duties which he proposed to to repeal was the auction-duty on the transfer of property. He likewise proposed that auctioneers, instead of taking out several licences, at an expense of five pounds each, for selling different articles, should take out one general licence only, at fifteen pounds each; and as the number of auctioneers was 4000, this would produce a revenue of £60,000. Sir Robert Peel next stated that he proposed to relieve the article of glass from all duty, the loss of revenue arising from which would be £642,000. This was the whole of the articles, he said, on which he proposed a remission of taxation; and the total immediate loss which the revenue would sustain by their repeal or abolition, would amount to £3,338,000, which would nearly absorb the surplus of £3,409,000. He confessed that this was a bold experiment; but, responsible as he was to parliament for its success, he was not afraid to ran the risk of making it. He then proposed to the committee to continue the income-tax for a further limited period of three years; because he had a confident persuasion that the reduction in the price of articles of great importance would be, if not a complete, yet a great compensation for its burden. He would not say that it might not be wiser to give a longer time than three years for testing this experiment; but he thought that parliament ought to have a control over the duration of such a tax. Sir Robert Peel concluded by expressing a hope that the house would be prepared to decide on the principle of his resolutions on the following Monday, the 17th, and after several members had made some brief remarks on isolated parts of the plan, most of them expressive of satisfaction with it, he moved that the chairman report progress; and gave notice that on the following Monday he would move—“That it is the opinion of the committee, that, towards raising the supply to her majesty, the respective duties on property, professions, trades, and offices, and the stamp duties in Ireland, granted by two several acts passed in the fifth year of her present majesty, be continued and further granted to her majesty for a time to be limited.” This resolution was read in a committee of ways and means on Monday, the 17th of February, after which Lord John Russel addressed the committee, factiously opposing the scheme of the premier, without offering any sound practical suggestion, or propounding any principle. Several amendments were moved by various members; but they were all negatived, and the bill passed through committee. A discussion of considerable length was renewed on the 10th of March, by Mr. Charles Duller, but the bill was read a third time and passed.

In the house of lords the principal discussion on the income-tax took place on the 4th of April, when the third reading of the bill was moved by the Earl of Ripon. The bill was read a third time and passed.

THE SUGAR-DUTIES QUESTION.

On the 24th of February, the house of commons having resolved itself into a committee of ways and means, Mr. Gibson, with a view of obtaining a permanent arrangement of the sugar-duties, moved, as an amendment upon the resolution of Sir Robert Peel, a resolution stating that no arrangement of these duties would be satisfactory and permanent, which did not involve an equalization of duty on foreign and colonial sugar. In support of this resolution Mr. Gibson called the attention of the house to a plain matter of justice in taxation, and asserted that it was not consistent

with the fair performance of their functions, when they were resolving themselves into a committee of ways and means to consider of a supply to her majesty, in order to enable her to meet the expenditure of the country, to levy another tax, which was not paid either to the crown or to the exchequer, but to a class of men who had not made good their claim to any compensation fora grievance inflicted on them. The protection afforded to the West India proprietors, he said, was not for revenue, for it defrauded revenue; not for the protection of the producer, for his produce had not been increased; not for the benefit of the exporter at home, for the export to those colonies were stationary; and not to be defended on the score of consistency, since Sir Robert Peel was going to admit cotton, the produce of the East Indies and the United States of America, on the same terms. The motion was seconded by Mr. Ewart, and supported by Lord Howick, and Messrs. Ricardo, Cobden, Villiers, Miles, and Bright. On the other hand, it was opposed by Sir George Clerk, and Messrs. James, Gladstone, Labouchere, and Goulburn. On a division it was rejected by a majority of two hundred and seventeen against eighty-four. Subsequently several amendments were moved, but without success, with the exception of one proposed by Mr. Hawes; namely, to the effect—"that provision be made in the bill for the drawback of the amount of the duty reduced on such duty-paid sugar as now remains in the queen's warehouses." This amendment was at first resisted by Mr. Goulburn; but finding that the house was in favour of it, Sir Robert Peel consented to make arrangements, not to return the whole duty, but to make compensation for the loss. On this understanding Mr. Hawes withdrew his amendment, and the bill passed through committee. Various discussions took place, during the progress of the hill, upon the other parts of the ministerial tariff, but they were all affirmed, and the bill then passed. Its progress through the upper house was speedily effected.

CORN-LAWS AND FREE TRADE.

This long-agitated and great question formed a prominent subject of debate during this session. The first occasion which led to a general discussion of the policy of the protective laws as regards agriculture, was furnished by a motion made by Mr. Cobden, on the 13th March, "for a select committee to inquire into the causes and extent of the alleged existing agricultural distress, and into the effects of legislative protection upon the interests of landowners, tenant-farmers, and farm-labourers." In support of this motion Mr. Cobden endeavoured to prove the existence of distress among the farmers; asserting that half of them were in a state of insolvency, and that the other half were paying rents out of their capital, and were fast hastening to the same melancholy condition. Mr. Cobden next contended that there was a want of security in tenure, and that this fact not only prevented the application of capital, but that it also kept the land in a bad state of cultivation. The farmer without a lease was afraid that if he made any improvement in his farm, he should be called upon to pay a higher rent; and he proved this fact by reference to the language used by many distinguished members of agricultural associations. He asked why land should not be let on the same condition as manufactories, which were let with a schedule of the state of the manufactory; and when the tenant left them he was bound to make compensation for any damage which it might have suffered. Having advocated the plan of leasing farms at great length, Mr. Cobden proceeded to contend that a free

trade in corn would be more beneficial to the farmers and to the labourers than to any other class of the community. He had thought so before the new tariff; and he contended so now with tenfold confidence. He then described the lamentable condition of the agricultural peasantry; and asked the landlords, after they had brought their labourers to such a melancholy state, whether they could have anything to fear from risking this inquiry? What had government done for them in their financial scheme? Nothing that was calculated, if he had heard aright, to benefit the agricultural population. Well, then, what would they do? Protection had been a failure when it reached a prohibitory duty of 80s. a quarter; it had been a failure when it reached the pivot price of 60s.; and it was a failure now when they had got a sliding-scale; for they had admitted the lamentable condition of their tenantry and peasantry. Let them accede, then, to his proposition for a committee, and he would pledge himself to explode the fallacy of agricultural protection, and to put an end to the present system within two years from the publication of its report. Mr. S. Herbert, secretary at war, announced that government would meet Mr. Cobden’s motion with a direct negative. On a division the motion was negatived by a majority of two hundred and thirteen against one hundred and twenty-one.

On the 3rd of June Mr. Ward resumed his exertions to obtain a select committee to inquire into the existence of the peculiar burdens and exemptions of the landed interests. Taking advantage of an admission contained in a speech of Sir James Graham, that during the last twelve months pauperism had diminished, and trade and commerce had improved in the country because the price of wheat was low, Mr. Ward said that he was not going to underrate the benefit produced by an abundant harvest, but he believed that still greater benefit had been effected by the liberal policy of government. The idea that there were any peculiar burdens on the land, was a fallacy peculiar to English gentlemen brought up in the school of the corn-laws. He denied that the land-tax, poor-rates, tithes, county-rates, highway-rates, the malt-tax, and similar impositions, were peculiar burdens on land; but if they were, he contended that there were to be set against them the exemptions enjoyed by the land in not being liable to the legacy and probate duty, and in the cultivation of it being relieved from the horse-tax, from the tax on husbandry servants if employed for domestic services, and various other taxes. Mr. Ward moved for a select committee of inquiry into this subject; and his motion was supported by Dr. Bowring, and Messrs. Cobden and Vernon Smith. Sir John Tyrell opposed it, as did also Messrs. Sidney Herbert and Newdegate. On a division it was rejected by a majority of one hundred and eighty-two against one hundred and nine.

The subject of the corn-laws was taken into more complete consideration on the 26th of May, when, pursuant to notice, Lord John Russell moved the following resolutions:—“That the present state of political tranquillity, and the recent revival of trade, afford to this house a favourable opportunity to consider of such measures as may tend permanently to improve the condition of the labouring classes. That those laws which impose duties, usually called protective, tend to impair the efficiency of labour, to restrict the free interchange of commodities, and to impose on the people unnecessary taxation. That the present corn-law tends to check improvements in agriculture, produces uncertainty in all farming speculations, and holds out to the

owners and occupiers of land prospects of special advantage which it fails to secure. That this house will take the said laws into consideration, with a view to such cautious and deliberate arrangements as may be most beneficial to all classes of her majesty's subjects. That the freedom of industry would be promoted by a careful revision of the law of parochial settlement which now prevails in England and Wales. That a systematic plan of colonization would partially relieve those districts of the country where the deficiency of employment Iras been most injurious to the labourers in husbandry. That the improvements made of late years in the education of the people, as well as its more general diffusion, have been seen with satisfaction by this house. That this house will be ready to give its support to measures founded on liberal and comprehensive principles, which may be conducive to the further extension of religious and moral instruction. That a humble address be presented to her majesty to lay the foregoing resolutions before her majesty." In support of these resolutions, Lord John Russell made a long and comprehensive speech, embracing the several topics to which they had reference. Adverting to the corn-laws, he said, that experience had shown that the present system was founded in error, and produced the very evil against which it was intended to guard. The graduated scale was a complete failure, and equally injurious to the purchaser and consumer. It was contrary to all true commercial principles, and was perfectly ruinous to the farmer. It also tended to check all improvements in agriculture, and to render the cultivator of the soil careless as to the system of cultivation which he pursued. Mr. Sharman Crawford moved as an amendment that the following words be inserted after the word "opportunity," in the first clause:—"To give immediate attention to the claims, so repeatedly urged in the petitions of the people, for the extension of the parliamentary suffrage, as well as—." Sir James Graham, in reply, said that he agreed to the first resolution moved by Lord John Russell, but not to the rest; and, therefore, he moved the previous question. The house divided on Mr. Crawford's amendment, which was negatived by a majority of two hundred and fifty-three against thirty-three. Sir James Graham then moved the previous question, which was carried by a majority of one hundred and eighty-two against one hundred and four.

Mr. C. Villiers, according to his annual custom, on the 10th of June submitted to the house of commons a motion for the appointment of a committee of the whole house for the purpose of considering his resolutions for the abolition of all restrictions on the importation of foreign corn. On a division, the motion was negatived by a majority of two hundred and fifty-four against one hundred and thirty-two.

AFFAIRS OF IRELAND—MAYNOOTH IMPROVEMENT BILL.

On the 3rd of April, Sir Robert Peel brought in a measure for improving and increasing the grant to the college of Maynooth. The intention of the premier had been made known before, and a large number of petitions were on that evening presented against any such grant; in reference to which Sir Robert Peel said that he had given timely notice of his intention to consider the case of Maynooth in a friendly spirit; and therefore he was not unprepared for the demonstration which had been made, and which no doubt proceeded from persons actuated by conscientious

scruples. In continuation, he observed, that it appeared to the ministers there were three courses which they might pursue:—to continue the present system, and grant without alteration; to discontinue the vote altogether, and to repudiate all connexion with Maynooth; or liberally to adopt, improve, and extend the institution provided for the education of the Roman Catholic priesthood. He proceeded to discuss these three courses in succession; and after showing that they could not conscientiously adopt the two first, he said:—“There remains, therefore, but one other course, and that is the course we are prepared to take. We are prepared, in a liberal sense and confiding spirit, to improve that institution, and to elevate the tone of education there. Will you not take that course?” Sir Robert Peel then stated the proposals of government to the house. The trustees of Maynooth college, he said, could purchase land to the extent of £1,000 per annum; but they could not receive it on any other terms than for the lives of the trustees; he proposed to incorporate the trustees by the title of “the trustees of Maynooth college;” and to enable them to hold real property to the amount of £3,000 per annum, should members of the Roman Catholic faith be desirous to contribute to the college so incorporated. The stipend of each professor did not now exceed £120 per annum; instead of defining what should be the amount paid to each professor, he proposed to allot to the trustees a certain sum, which should be placed at their discretion for the payment of salaries. The sum would admit of a payment of £600 or £700 per annum to the president of the college; of £260 or £270 to the professors of theology; and of £220 or £230 to the other professors. A sum not exceeding £6,000 would be allotted to the trustees for making provision for the officers of that institution. At present there were about four hundred and thirty students in the college, divided into three classes: the twenty Dumboyne students, the three senior classes, and the four junior classes. It was proposed to allot £40 per annum to each of the Dumboyne students: and to make provision on the whole for five hundred free students; that there should be two hundred and fifty students in the four junior classes, and two hundred and fifty in the three senior classes, these being divinity students. For the maintenance of each of these students, it was proposed that a sum should be placed at the disposal of the trustees of £28 on the average. It was further proposed that to each of the students in the three senior classes, £20 per annum should be allowed for their own personal expenses. The sum required for the students would be £14,560; the total sum for the establishment, £26,360. It was further proposed that the college should be made, in appearance and in fact, worthy of an institution of the kind; and that proper provision should be made for the accommodation of the presidents and professors; and for every purpose ministers asked for a vote, not annual, of £30,000. Sir Robert Peel further stated, that it was proposed the board of works should undertake the repairs of the college, as they did of the other public buildings, in order that they might be conducted with the greatest economy; and that the expenses of the repairs should be an annual vote, included in the annual estimates for the board of works, as in other cases. Instead of the present _ex-officio_ ministers—the lord-chancellor and the judges—it was further proposed that the crown should appoint five visitors, who were to visit the college once a year, and as often as the lord-lieutenant might direct. These visitors were not to interfere with any matters relating to the doctrine and discipline of the church of Rome; but for those objects three more visitors would be elected by the other five, as at present to

be members of the Roman Catholic church. Such, Sir Robert Peel continued, was an outline of the measure. It had not been the subject of any stipulation with the authorities of the Roman Catholic church: but the ministers had intimated their intentions to these dignitaries; and they had every reason to believe they were satisfied with, and grateful for, the measure. He added, in conclusion:—"We do not think that there is any violation of conscientious scruples involved in our proposition. We believe that it is perfectly compatible to hold steadfast the profession of our faith without wavering, and at the same time to improve the education, and to elevate the character of those who, do what you will—pass this measure or refuse it—must be the spiritual guides and religious instructors of millions of your fellow-countrymen." Sir Robert Inglis met the motion for leave to bring in this bill by a direct negative. Messrs. Law, Bruce, Grogan, and others, followed with similar expressions of sentiment. Mr. Plumptre especially expressed in strong terms his repugnance to the proposal on religious grounds; avowing, as the basis of his objections, the belief that the Roman Catholic religion was idolatrous. On the side of the liberal, all were in favour of the motion, except Mr. T. Duncombe, who expressed himself averse to all religious establishments supported out of the public revenue. Some on the conservative side, as Lords Francis Egerton and Sandon, and Mr. J. S. Wortley, spoke in favour of the measure. Several of the Irish members anticipated a great improvement in the Roman Catholic priesthood, and Lord John Russell, while he supported the motion, expressed a hope that it was the commencement of a series of measures which would unite the two countries in an enduring bond. On a division, the motion for leave to bring in the bill was carried by a large majority; but the measure, though destined to become law, was subsequently most strenuously opposed, both in and out of parliament. Those who were ardently attached to the vital principles of Protestantism felt an apprehension that the endowment of the Roman Catholic hierarchy in Ireland, and the rapid downfall of the established church in that country, if not in England also, was involved in such a measure; and their zeal being thus awakened, no exertions were spared to frustrate the plans of government. On the second reading of the bill being moved on the 11th of April, the measure was opposed by Mr. Colquhoun. Mr. Colquhoun concluded by moving that the bill be read a second time that day six months. Mr. Grogan followed on the same side; and the Earl of Arundel and Mr. Gladstone supported the measure: the latter stating that he did so in opposition to the prevailing opinion, and to his own deeply cherished prepossessions. Mr. D'Israeli said that Sir Robert Peel had declared there were three courses open to him. "In a certain sense, and looking to his own position, he is right: there is the course the right honourable gentleman has left; there is the course that the right honourable gentleman is following; and there is usually the course which the right honourable gentleman ought to pursue. Perhaps, sir, I ought to say that there is a fourth course; because it is possible for the house of commons to adopt one of those courses indicated by the right honourable gentleman, and then having voted for it, to rescind it." Mr. D'Israeli proceeded to complain of the course pursued by Sir R. Peel towards his supporters, in which he indulged in private personalities, which was strongly condemned by Mr. Roebuck, who described his speech as being poor in execution as it was malicious in motive. Mr. Roebuck proceeded to defend the measure; and he was followed by Messrs. Fox Maule and Stafford O'Brien, both of

whom opposed it. Mr. Macauley considered it merely a matter of pounds, shillings, and pence: it was not a question of principle, but purely a question between £9000 and £26,000. Mr. Shaw energetically opposed the endowment; and Lord Lincoln and Mr. Sidney Herbert supported it. Mr. Byng, the venerable member for Middlesex, also declared himself in favour of the measure; and Lord Ashley and G. A. Hamilton opposed it; Lord Ashley had never known a measure more important for good or evil, not even excepting the Roman Catholic relief bill. His lordship contended that the proposal of government amounted to almost a declaration, that, as far as the power of enactments and statutes extended, the Roman Catholic religion should never cease to be the religion of Ireland. But while Lord Ashley opposed the measure, he disclaimed being actuated by any feeling of hostility towards the people of Ireland. If he thought, indeed, that this concession would really content the people of Ireland, he would pause before he came to a decision in the matter. The bill was further supported by the Chancellor of the Exchequer, Lords John Manners and Russell, Sirs George Grey and James Graham, and Messrs. Cobden, Smyth, and Shiel. On the other hand it was opposed by Messrs. Bright, dimming, Bruce, Blackstone, Ferrand, Sharman Crawford, T. Duncombe, Muntz, and Law. The debate was closed by Sirs Robert Inglis and Robert Peel; the former against, and the latter for the measure. On a division the second reading was carried by a majority of three hundred and twenty-three against one hundred and seventy-six. The battle, however, was not yet ended. On the order of the day being read for going into committee, Mr. Ward moved the following resolution as an amendment:—"That it is the opinion of this house, that any provision to be made for the purposes of the present bill, ought to be taken from the funds already applicable to ecclesiastical purposes in Ireland." A long debate ensued on this motion, which was continued for two nights; but on a division it was negatived by a majority of three hundred and twenty-two against one hundred and forty-eight. On the 25th a resolution, authorising a grant of £30,000 for improving Maynooth college, and for the payment of the amount requisite for salaries and other expenses, out of the consolidated fund, was passed by the house; but on the motion for bringing up the report, opposition to the measure was renewed by Mr. Law, who moved as an amendment that it be brought up on that day six months. Another lengthened debate took place, but the motion was negatived by one hundred and twenty-eight against fifty-two; and several other amendments, subsequently moved by Mr. Hindley and other members, were rejected by large majorities. The whole question was reopened on the motion for the third reading, and a discussion commenced which continued for three nights; but the third reading was carried by a majority of three hundred and seventeen against one hundred and eighty-four. The last attempt to defeat the measure was a motion by Mr. T. Duncombe, on the question, "That the bill do now pass," proposing a clause to limit its operation to three years. This was objected to by Sir Robert Peel, and the proposal was negatived by a large majority, after which the bill was passed.

The second reading was moved by the Duke of Wellington in the house of lords, on the second of June. Lord Roden had given notice of intention to move, as an amendment, for a select committee to inquire into the character of the education given at Maynooth; and he now rose for the purpose of thus endeavouring to get rid

of the bill. Instead of the measure being looked upon in Ireland, he said, as a boon, it was looked upon as one extorted by fear. He quoted a letter from Dr. Higgins, one of the Roman Catholic bishops, to show that no conciliatory effects could result from the measure. Nor was it his opinion that it would improve the education given at Maynooth: rather, it would afford facilities for recruiting the priesthood from the lower classes of the people. He maintained that the system of instruction given there had anti-social and disloyal tendencies, which he illustrated by a reference to the text-books, and details in the history and conduct of the institution. The Bishop of London supported the amendment: he could not consent to any measure which would make the college of Maynooth an integral part of the constitution. The Earl of St. Germains and Lord Beaumont vindicated the measure; and the Duke of Manchester and the Bishop of Cashel opposed it. The debate having been adjourned, was resumed by the Earls of Hardwick and Carnarvon, who supported the bill. The Earl of Winchilsea followed, and condemned the bill in vehement terms; and the Marquis of Normanby defended it as a proper concession to a nation of which seven-eighths were Roman Catholics. The Archbishop of Dublin supported the measure. The Bishop of Exeter argued against the measure that the college was not originally meant to be endowed by the state; and denied that the improved visitation which the bill professed to give would be a system of education. The debate having been again adjourned, was resumed by Earl Spencer and the Bishop of Norwich. On a division, Lord Roden’s amendment was negatived by a majority of one hundred and fifty-five to fifty-nine; and the house having again divided on the original resolution, the second reading was carried by a majority of two hundred and twenty-six against sixty-nine. Subsequently, a discussion took place on the committal of the bill. On the motion for the third reading another debate took place; and the Bishop of Llandaff moved that the bill be read a third time that day six months; but on a division this amendment was negatived by a majority of one hundred and eighty-one against fifty. On the question that the bill do pass, the Earl of Winchilsea moved another amendment to the effect that the operation of the bill should be limited to a period of three years; but tins also was negatived, and the bill then passed.

ACADEMICAL EDUCATION IN IRELAND.

Another scheme, emanating from government, for the improvement of the Irish people, was a plan for the extension of academical education in Ireland. This measure was developed by the secretary of state for the home department. On moving for leave to bring in the bill, on the 9th of May, Sir James Graham said that the object in bringing it forward was to improve the social condition of Ireland. The difficulty of accomplishing such an object, he said, would be discerned, when he stated that the plan which he conceived to be the most essential was the diffusion of the benefits of education among the higher classes of the people. Religious differences formed the great obstacle to the adjustment of the general question of education in Ireland. For a long series of years the religion of the majority of the Irish people had been treated by the state as hostile. That notion, however, had been gradually abandoned: the penal laws had either been removed, or were in the course of removal, although traces of them were still perceptible, and operating most noxiously in their interference with the education of the people. Sir James Graham next proceeded to

discuss what was the best mode of educating the people of Ireland, contending that it consisted in the absence of all religious tests. It was on this principle that the bill he proposed was founded. Government recommended to the house the establishment of three provincial institutions for education in Ireland, and founded upon the same principles as the metropolitan colleges of London and Edinburgh. Cork was proposed as the site of the college for the south; Galway, or Limerick, for the west; and Deny, or Belfast, for the north of Ireland. He could not pledge himself for the exact amount of the expense which would be necessary to carry this proposal into execution; but he conceived that £30,000 would be wanted for the erection of each college; and he would therefore mention £100,000 as a sum amply sufficient for that purpose. He further recommended the sum of £6000 for each of the colleges, to meet the annual expenses of the officers of these institutions, and of the prizes to be established for the encouragement of learning. Sir James Graham then gave a sketch of the different officers whom he would establish in these institutions. In each college there was to be a principal and ten or twelve professors; and at Belfast and Cork there would be a medical school attached to each college. The professors were to be nominated by the crown; and the crown was to possess the power of removing them for good cause. There were no professorships of divinity to be established; but religion was not to be neglected; on the contrary, every facility would be given for the voluntary endowment of theological professorships; but the attendance at these lectures would not be compulsory, for the fundamental principle of the measure would be the avoidance of all interference, positive or negative, in all matters affecting the conscience. The right honourable baronet went on to state that there was already an academical institution at Belfast for the Presbyterians of the north of Ireland, which was supported by a parliamentary grant, at the cost of £2100 per annum; and government proposed to continue this grant. There was another subject, he said, with which, although a difficult one, he was prepared to grapple. The bill only founded colleges in Ireland: the question was:—“Should these three colleges be incorporated into one great central university, or should parliament invest each of them with the power of granting degrees in the arts, sciences, and medicine?” He proposed that the bill should afford her majesty means to establish a new university in Dublin for this purpose—Trinity College being founded on Protestant principles, and therefore excluding Roman Catholics or dissenters from all privileges—or to incorporate into the existing university these colleges. Lord Palmerston promised ministers the fair and honest support of the Whigs. The measure was opposed by Sir Robert Inglis; but leave was given to bring in the bill, and it was read a first time. On the motion for the second reading, which was moved on the 2nd of June, a debate was commenced, which continued by adjournment for two nights. The debate was opened by Lord John Manners, who moved that it be read a second time that day six months: his belief was, that if it passed in its present shape it would prove a curse, and not a boon to Ireland. Sir James Graham defended it from this charge. He proceeded to state some proposed alterations in the bill. The first change proposed was with regard to the visitorial power of the crown. He proposed to give the crown the power of appointing visitors, which visitors would have authority to inquire into any abuse which might arise in these institutions, and to apply an effective remedy thereto. He also now thought that there should be attached to each of the colleges a hall or halls in which

religious instructions might be given to the students by pastors of their own religion; and he was disposed to add a clause to that effect. The Roman Catholic bishops had presented a memorial praying that a fair proportion of the professors and office-bearers in the new colleges should be members of the Roman Catholic church; that Roman Catholic professors should fill the chairs of history, logic, metaphysics, moral philosophy, geology, and anatomy; that there should be a Roman Catholic chaplain in each of the colleges, to superintend the moral and religious instruction of the Roman Catholic pupils, and that each of these chaplains should be provided with a suitable salary; and that all Roman Catholic professors should be appointed to a local board of trustees. Sir James Graham could not consent to such demands: as a majority of the students would belong to the Roman Catholic church, it was probable that a majority of the professors would belong to it also; but they could not be exclusively provided by the measure. Mr. E. B. Roche, who had at first hailed the measure as a boon, now declared his intention of opposing its further progress, because the nomination of all the professorships was in the crown, and there was no "fixity of tenure" for any administration which entertained friendly sentiments toward the Roman Catholic population of Ireland. Sir Robert Inglis repeated that this bill was "a gigantic scheme of godless education;" and agreed with Mr. O'Connell in thinking that these new institutions would be deficient in that species of education which was the only legitimate one for an immortal being—education in the duties which every man had to perform, and the principles on which those duties rested. The second reading was supported by Lord John Russell, who nevertheless wished to amend it in committee, and Lord Mahon, and Messrs. Redington, Milnes, Osborne, Wyse, and R. M. O. Ferrol; and opposed by Messrs. Acland, B. Hope, and Hamilton. Mr. Acland called attention to the fact that some of the speakers in behalf of the bill gave an unqualified support to it; and contended that not one of them had proved that it would give such education as would be useful in any respect to Ireland. Sir Robert Peel spoke at great length in behalf of the measure; and announced that, if adopted, and the plan worked well, government would consider whether the three colleges should be incorporated into a university, and what power that university should have in conferring degrees. After a few words from Messrs. M. J. O'Connell and Shaw in favour of the second reading, though not of entire approval of the measure, the amendment was negatived by a majority of three hundred and eleven against forty-six, and the bill was read a second time. Upon the resolution of the committee of the whole house for the grant being reported, Mr. O'Connell took occasion to declare his protest against it; and to thank Sir Robert Inglis for calling it "a godless system of education." Subsequently, on the committal of the bill, he again declared his objections to its principle: and Lord John Russell coincided with him in his statement, that unless the bill was made acceptable to the Roman Catholics, by providing for the religious instruction of the pupils, it would be useless. On the first clause, relating to the grant of £100,000 for building the three colleges and necessary buildings, Lord John Russell proposed, as an amendment, to include among the buildings to be thus paid for, halls for the accommodation of the students. This motion, however, was negatived; as was also another, moved by Mr. Wyse, on the clause which declared that the appointment of professors should be vested in the crown, and after a time limited should revert to parliament. Mr. Wyse desired that the professors should be

chosen, after an investigation into their qualifications, by a competent board of examiners; but Sir Robert Peel opposed the amendment, as premature, and likely to operate to the discouragement of the students.. Several other amendments were proposed in committee, but they were all rejected; and on the third reading Mr. Bernai Osborne introduced a collateral discussion upon the revenues and management of Trinity College, Dublin, by proposing the following resolution:—"That an humble address be presented to her majesty, praying that she will be graciously pleased to direct an inquiry to be made into the amount of the revenue of Trinity College, Dublin, from rents of college-lands, endowments, and bequests, fees on matriculation, on taking degrees, and from every other source; also into the manner in which that income is expended; the number of senior and junior fellows, of professors, scholars, and all other officers of the college, with the amount of salary and allowances to each of them, with a view to ascertain whether the income or funds at present applied solely to the benefit of Protestants in Trinity College, Dublin, might not be beneficially extended so as to make Roman Catholics and Protestant dissenters eligible if otherwise qualified, to all scholarships, and to all such fellowships, professorships, and other offices in Trinity College, Dublin, as are not intended for ecclesiastical purposes immediately connected with ecclesiastical endowment." Mr. Osborne, in support of this resolution, contended that Trinity College was not founded with Protestant money, but with the property of the Roman Catholic Earl of Desmond, confiscated by Elizabeth in 1592; and that it was not until forty years afterwards, in the time of Strafford, that Roman Catholics were mentioned, and rendered ineligible for the professorships. The motion was opposed by Sirs Thomas Freemantle and R. Inglis, the latter of whom denied that the college was founded with Roman Catholic money. It was erected on the site of the old monastery of All-Hallows, which having become vested in the mayor and citizens of Dublin, by grant from Henry the Eighth, was by them given for the establishment of this college. The funds for its erection and endowment were raised by a contribution among the gentry of Ireland, for which purpose a circular letter was sent to them by the Lord-deputy Fitzwilliam, the archbishop, and the lords of the council in 1791: the original foundation of the college might, therefore, he said, be as purely Protestant as could be imagined. The motion was supported by Messrs. Warburton and Shiel, the latter of whom contended that Queen Elizabeth's charter did not contemplate exclusively Protestant objects. But it was rather on the ground of justice than on such grounds, he said, that this subject ought to be discussed. He remarked:—"There are seventy scholarships; the scholars have lodging and commons for a nominal sum, with £10 a-year and £40 a-year in the last three years: the scholarships being exclusively Protestant. So long," he continued, "as you keep up Trinity College in its supremacy you will make your measure of academical education, for all political purposes, an entire failure. Your provincial academies will be marked with all the characteristics of mediocrity, which will only render the elevation of Trinity College more conspicuous by the inferiority with which it will be surrounded. How stunted and dwarfed the groves of our new academies when compared with the rich luxuriance of the gardens of Trinity! I had a thousand times rather you had applied your £18,000 a-year to the establishment of new fellowships and new professorships in the metropolitan and national institutions; because if you had done so, Englishmen

would have got a value—a value in peace, a value in contentment, a value in pacificatory results—for their money. Now your measure, for political purposes—I say, for political purposes, though I won't deny that the advantages of education will be distributed to a certain extent—but your measure, though for political purposes it may partially succeed, yet as a message of peace it will be a failure." Sir Robert Peel contended that he and his colleagues had exerted themselves to make equality in Ireland, at the expense of giving umbrage to the majority of the people in this country. He appealed to the enlarged grant to Maynooth, and to the way in which the charitable bequests act had been carried out, as showing the conciliatory disposition of the government. Yet, after all their exertions for peace they were doomed to be disappointed. He regretted Mr. Shiel's speech on account of the use that would be made of it in this country. It would be said—"See how unavailing all attempts are to conciliate the Roman Catholics of Ireland. Regardless of the warnings, the feelings, and fears of their friends, they hoped by proposing certain measures, that they would make an impression on the Irish mind; but, instead of this, the leading Roman Catholic member in the house of commons gets up and tells them that, unless they went ten times as far as they had yet gone, they would have an insurrection in Ireland." This he believed, however, was not the feeling of the Irish people; he believed that government had made an impression on the feelings of the Irish people. After a few words from Lord John Russell, the house divided on Mr. Osborne's amendment, which was negatived by a majority of one hundred and sixty-eight against ninety-one, and the bill was then read a third time and passed.

The second reading of the Irish education bill was moved in the house of lords by Lord Stanley on the 21st of July. The Earl of Shrewsbury opposed the measure. Government he said, had been overawed by the fanatic feeling of the English people; and he urged ministers to withdraw the bill for a season, and reintroduce it in a shape better suited to the wants and wishes of Ireland. The bill was further opposed by the Earl of Carnarvon, who protested against the divorce of religion from education, and expressed his fears that such a precedent might be applied to Oxford and Cambridge. The bill was defended by the Duke of Newcastle, the Marquis of Lansdowne, the Bishop of Norwich, and Lords Brougham, Beaumont, and Clifford. The second reading was affirmed without a division; and subsequently the bill passed through committee, and was read a third time without any fixed opposition.

COLONIAL POLICY.

In the early part of this session intelligence had arrived which announced a disastrous collision in New Zealand between the natives and the settlers at the Bay of Islands, and which terminated in defeat and serious loss on the part of the latter. This intelligence produced considerable sensation in the public mind, more especially among those connected with the colonists in those islands. The New Zealand Company loudly accused the colonial office, and the administration of the governor, Captain Fitzroy; while other parties contended that the evil which had arisen had been in a great measure induced by the company itself. The event became the subject of several discussions in parliament. The first of these discussions took place on the 11th of March, when Mr. Somes moved for all copies of correspondence between the

colonial office and the governor of New Zealand, respecting the issue of debentures and the rendering them a legal tender in that colony, the taxes proposed in the legislative council, the outrages recently committed by the natives in the Bay of Islands, and a proclamation issued by the governor of New Zealand, allowing the sale of land by the natives at a less price than that fixed by the act of the 5th and 6th Victoria. This motion was seconded by Mr. Aglionby, who asked whether government was not aware that in that colony inconvertible paper had been made by the governor a legal tender for sums as low as two shillings? whether the governor had previously received authority by warrant from the colonial department to issue such debentures to the amount of £15,000? whether it was true that in a colony that was to flourish by its agriculture a tax of 10s. had been levied on every sheep imported, and a similar tax on every dog imported to herd them? what the house thought of a governor who placed a tax of £1 on every house in which more than three rooms were inhabited? and whether the governor had vindicated the character of this country by protecting the whites from the outrages of the natives? Nine of our countrymen, he continued, had been tomahawked after they had given up their arms: had the governor made inquiry into the circumstances of this massacre? or had he gone, as was reported, to the murderous tribes, and declared himself satisfied? He also wanted to know in what manner the honour of the British flag had been vindicated, after it had been cut down at the custom-house; and made several inquiries respecting the sale of lands in New Zealand, observing that when he had obtained an answer to his questions, he should bring forward a distinct motion on the subject, and should call for further information. Mr. Hope, the under-secretary, protested against the course pursued by Mr. Aglionby, demanding why he did not boldly come forward, make his charge against government, and endeavour to substantiate it. He proceeded, however, to answer the questions put by Mr. Aglionby. The government, he said, had disapproved of the debentures issued by the local governor, ami they had been withdrawn. Respecting the taxes imposed in New Zealand he knew nothing, as government had been an unusually long time without intelligence from that colony. With respect to the outrages at the Bay of Islands, troops had been sent for their repression; and the governor, he thought had sufficiently vindicated the honour of the British flag. On the other subjects of interrogation he had no information to communicate. Other members took part in the discussion; and finally the motion was agreed to.

A more lengthened discussion on the condition of this colony took place on the 17th of June, on which occasion Mr. Charles Buller brought forward a series of resolutions relating to the policy pursued towards New Zealand. In his speech he contended that the colonization of New Zealand, after it had been successfully commenced by the New Zealand Company, had been marred by the interference of her majesty’s government. He proceeded to show the superiority of the scheme of colonization adopted by the company with that pursued by the colonial office. After pointing out the great importance of New Zealand in a national and political point of view, and the fair field which it afforded for the development of the capital and labour of England, he showed that at the time when it was first colonized, strong reasons existed for colonizing it regularly, lest it should be colonized irregularly. The whole of the native population did not exceed 100,000 souls, and they were principally

concentrated in the northern parts of the island. Was that a circumstance which ought to prevent any other country from colonizing the southern parts of it, which were almost totally unoccupied, or the northern parts, which were almost all left uncultivated? It was wicked to deny the right of civilized man to cultivate the wilderness; but he was bound to treat the savage with kindness, and to communicate to him the advantages of civilization. The New Zealand Company had treated the savage with kindness, making him ample compensation for the land purchased of him, by setting a part of it to his service after it had been brought into cultivation. The colonial office, however, conceived that its duty was discharged towards the savage when it had obtained for him a large price for his land, and had not taken any measure to apply it to his future amelioration. Mr. Buller next entered into a minute history of the proceedings of the colonial authorities in New Zealand, from the time of the conclusion of the treaty of Waitangi, down to the present period; and vindicated the conduct of the New Zealand Company, showing that their settlements had been founded on a scale of liberality and munificence hitherto unknown in the history of English colonization. Their principal object had been merely to protect themselves from loss, whilst engaged in diffusing the arts and industry along with the laws and language of England; yet Lord Stanley had adopted measures which had marred all their prospects of future success. Mr. Buller proceeded to enter into a discussion of the land question between Lord Stanley and the New Zealand Company. He contended that the company had a right to expect to be put in possession by government of the number of acres awarded to them; yet, after spending £800,000 of its own, and £300,000 more on credit, obtained from the public, it had not obtained the grant of a single acre. Its capital was exhausted; its proceedings were suspended; and, what was worse, the unhappy emigrants had been debarred from all access as owners to the land which they had purchased with hard cash in England. The crops which they had raised were destroyed by fire, and their lives had been menaced; and when they applied for redress to the colonial office, that aid had been coldly refused. They now apprehended a general massacre; and yet Captain Fitzroy prohibited them from arming themselves in self-defence. His policy had inspired the New Zealanders with an overweening confidence, and our countrymen with fierce resentment; and the consequence would be that the first would perish under the attacks of the last, as they would be no more in the hands of Englishmen than mere children in the hands of full-grown men. In conclusion, Mr. Buller expressed his conviction that Lord Stanley had put down the most promising experiment of colonization that had ever been attempted by England; and moved that the house resolve itself into a committee of the whole house to consider the resolutions. The motion was seconded by Mr. Milnes, who contended that a case had been made out for the interference of the house. Mr. Hope defended the character of Lord Stanley at great length, denying that his lordship was influenced by any hostility either to colonization or to the New Zealand Company. He was not prepared, he said, to justify all the acts of Captain Fitzroy; but he was convinced that he did himself frequent injustice by the scanty reports he sent home. In reply to the allegation that the colonial office was chargeable with all the disasters of the colony, he insisted that they were mainly attributable to the hasty proceedings of the New Zealand Company, in taking possession of that island without authority from the crown. Mr. Hope next proceeded to give an account of the state of

the colony according to the latest advices received from thence; endeavouring to show that the settlers and the natives generally were on good terms, and that there was no fear of a collision between them. He concluded by entering into a consideration of the resolutions, and by declaring that government would not consent to them. The debate was then adjourned, and on the following day it was resumed by Captain Rous, who brought some grave charges against the New Zealand Company. He did so, he said, for the purpose of giving the directors of that company, who had been described as philanthropic gentlemen, an opportunity of replying to those charges. Mr. Aglionby, in reply, protested against them; but declined to enter into a refutation of them on the present occasion: the details of them all had been inquired into in the previous session by the select committee, and on every one of them a verdict of acquittal had been given by that committee. Other members who took part in the debate for the motion were Lords Howick and John Russell, and Messrs. Ellice, Hawes, Mangles, Colquhoun, and Shiel; against it, Sirs Robert Peel, James Graham, Robert Inglis, and Howard Douglas and Mr. Cardwell. After a brief reply from Mr. Buller, the house divided on the motion, which was negatived by a majority of two hundred and twenty-three against one hundred and seventeen.

Towards the end of the session the New Zealand question again became the subject of a lengthened investigation. Intelligence continued to be received from New Zealand of the hostile disposition and violent conduct of the natives, and the precarious tenure on which the lives and properties of the settlers depended. Under these circumstances, on the 21st of July, a petition was presented by the New Zealand Company, praying the house “not to separate without taking measures calculated to allay the apprehensions prevalent among the colonists of New Zealand, and to revive confidence in the company, by which its usefulness would be restored, the friendly communication between the colonists and the aboriginal races renewed, and the prosperity of New Zealand secured.” On the same day Mr. C. Buller proposed a resolution to the effect, that “the house regarded with regret and apprehension the state of affairs in New Zealand, and that those feelings were greatly aggravated by the want of any sufficient evidence of a change in the policy which had led to such disastrous results.” A long debate ensued, which was continued by adjournment; but on a division the motion was negatived by one hundred and fifty-five against eighty-nine. A few nights afterwards, on the vote being proposed, in a committee of supply of £22,565 for New-Zealand, Mr. J. A. Smith stated that negociations had been resumed between the Colonial office and the New Zealand Company, and that the result only waited the final approval of Lord Stanley, who was absent from town. He asked, if the hope of a favourable issue were not realized, whether Sir Robert Peel would afford another opportunity, before the close of the session, for some remarks on the present state of New Zealand, Sir Robert Peel promised to do so; but expressed a strong desire to co-operate in the colonization of New Zealand, and to bring the differences with the company to a conclusion. It would seem that government were now, indeed, convinced that the policy of the government of New Zealand was unfavourable to the prospects of the colony; for about this time Captain Fitzroy was recalled. Government also appears to have been convinced that some better policy must be adopted; for Mr. Hope, on the occasion of the last debate on

New Zealand, stated, that a gentleman unconnected with the subject had been called in to give his advice, and he was now engaged in arranging the matter for his full consideration.

QUESTION OF THE OREGON TERRITORY.

The great question of this year between Great Britain and the United States was the boundary-line running through the Oregon territory. The proposals of the British government to Congress were not acceded to; and up to this period, negociation, in which the British cabinet had shown themselves desirous of terminating the dispute amicably, had failed. The American authorities asserted a valid claim to all the territory, and were unwilling to allow any portion of it to be given up to England. In the present year, the dispute assumed more the aspect of war than it had hitherto done; for Mr. Polk had been chosen president, and he was decidedly hostile to the claims of the British to this or any portion of this territory. His hostility was clearly unfolded to the world by his presidential message to congress.

The inaugural address of President Polk being of such a belligerent nature, naturally created strong apprehensions in the public mind of England of an intended encroachment upon our rights in the matter of the Oregon territory. The subject was introduced in the house of lords, by Lord Clarendon, on the 4th of April, with a view to elicit from government some information as to our relations with the United States upon this question, and the course it was intended to pursue, in case congress, acting upon the president’s express opinion, should proceed to take possession of the country. His lordship expressed an anxious hope, that, while whatever could be justly claimed by the United States should be readily conceded, government would not shrink from vindicating, if necessary, the nation’s honour, and upholding her interests. In reply, Lord Aberdeen said that our position was precisely the same as it had been for the last eighteen years, under the treaty of 1827. The provisions of that treaty had been prolonged for an indefinite period, subject to the right of either party to terminate it by giving a year’s notice. This could not be done without a vote of congress, and that body would not assemble until December; so that sufficient time was still left to bring the matters in dispute to a satisfactory conclusion.

The same subject was brought before the commons on the same day by Lord John Russell.

The Oregon question was introduced into the discussions of the American Senate on the 15th of December, by General Cass, who made a violent speech in favour of President Polk’s views of the subject. Referring to the above debate in Parliament, and particularly to the speeches of Lord John Russell and Sir Robert Peel, he dwelt strongly upon the rapacities of England; and congratulated his country that it had secured Texas in spite of her attempts to wrest it from America. The object of the speech of General Cass was clearly to involve the United States in a war with Great Britain; but there were men in the American senate who, conscious of the weakness of their cause, stood in the breach. This year closed, however, before the dispute was terminated: it was still left open to arbitration.

MISCELLANEOUS MEASURES OF THE SESSION.

Early in the present session Lord-chancellor Lyndhurst introduced a bill into the upper house, having for its object the relief of persons, of the Jewish persuasion from certain tests which had previously been required from them upon their election to municipal offices. The bill was read a second time in the house of lords on the 10th of March, without a division; and having passed through that house, it came down to the commons, where the second reading was moved by Sir Robert Peel on the 17th of July. It was opposed by Sir Robert Inglis, who regretted that Sir R. Peel had lent the sanction of his name to it. And moved that it be read that day three months. On a division the amendment was negatived by a majority of ninety-one against eleven. The second reading was then carried, and the bill subsequently became law.

During this session a bill was introduced by the Lord-advocate for the amendment of the poor-laws in Scotland. The chief objects of this bill were thus described by Sir James Graham on the debate on the second reading:—“Provisions had been made for local inspection; for a responsible supervision by a board sitting in the capital; for perfect publicity; for an appeal to the sheriff of the county on the part of the poor man to whom relief was refused; for empowering the sheriff to order relief; and, if the quantum were too small, for a power of appeal, without expense, to the central board, which had complete power, without limitation, to deal with the quantum of relief; and on the other hand, if the quantum was too great, the parish might appeal to the court of session. Provision had also been made for subscription to lunatic asylums; for the education of pauper children; for medical attendants; and for building poor-houses in large cities.” This bill encountered much opposition in both houses; but it finally passed into law, with very trifling alteration made in the house of lords.

Among the minor fruits of this session were two bills introduced by Lord Ashley; one for the regulation of juvenile labour in calico-print works, and the other to provide for the better care of lunatics. The former of these bills was a supplement to Lord Ashley’s exertions in former sessions, for the protection of persons employed in factories. In introducing the latter, Lord Ashley startled the house by some distressing statements of the abuses by which the law had been perverted in the treatment of pauper lunatics.

Mr. Duncombe opposed it; but the feeling of the house was strongly in its favour, and it was adopted.

Two bills were this year brought in by Sir Robert Peel, for the regulation of banking in Scotland and Ireland, based on similar principles to that by which he had remodelled the English banking system in the preceding year. In explaining these measures he first touched upon a peculiarity in Irish banking as distinct from Scottish—the existence of the national bank of Ireland. It enjoyed the exclusive privilege of issuing and paying notes, except of large amounts and at longdates, within a circle of sixty-four English miles radius. Its capital was £6,729,000.; and there was a debt due by government of £2,630,000, on which three and a half per cent, interest was paid. There were eight other banks of issue in Ireland—joint-stock banks: those banks had four thousand shareholders, and many thousand more customers; to many of whom it was a serious inconvenience that they could not transact business through the national bank. He proposed, with the willing

concurrence of its directors, to withdraw all the exclusive privileges of the national bank, except that he would continue to it the government business, and the present rate of interest on the government debt, as payment for conducting the official business. He would also abolish the oaths in that establishment, distinguishing Roman Catholic office-bearers from Protestants. The bank would also make a weekly return, like that of the Bank of England. In Scotland, as in Ireland, there were no private banks of issue: all were joint-stock banks. There were nineteen banks, to which number they were restricted by the acts of last session. Three had charters; two were incorporated under act of parliament; the rest were not incorporated. It would be better to give them all charters of incorporation; but still he would make that permissive. He would not abolish the power of issuing notes under five pounds in amount either in Scotland or Ireland—he would not run the risk of encountering the opposition which such a proposal would excite; though he did not know that the use of tire small notes could be justified by argument. He would not establish any fixed proportion between the notes under £5, or above; but he would, as in the case of the English banks, restrict the future issues of the banks to the amount of the average issues for a ces tain time past; namely, the period of the 27th of April, 1844, thirteen lunar months. In Ireland it was necessary to take an extended time, because there had been a greater increase on the issues within the last three or four months. He would solve the doubt in Scotland as to the question of law, whether Bank of England notes were a legal tender or not, by making them _not_ a legal tender. There was in this country a security against derangement of the currency, in the general diffusion of gold coin, probably not less than £30,000,000 or £35,000,000, through every part, a security which did not exist in Ireland or Scotland: he would therefore oblige any excess of the issues of the banks, over the amounts now fixed, to be based not on bullion or Bank of England notes, but on bullion alone; gold or silver bullion; making silver under two pounds a legal tender. It would be advantageous to encourage an increase of silver, especially in Ireland. The banks would, in future, be obliged to make weekly returns of the notes in circulation: but in Scotland, returns of the circulation each day would be fallacious, on account of exchanges with other banks; and therefore he would continue the present system of making a return of the last day in each week; the average would be struck on the returns for four weeks, and the circulation, or any excess, calculated on that average. Several statistical particulars, such as the amount of gold in each bank, or distinction between the £5 and the lower notes, the description of issues, &c., would be required; but the information thus exacted by government would be in confidence: the monthly returns published by the stamp-office resembling those now made in England. The average circulation of the Scotch banks in the thirteen months since the 27th of April was £3,041,000; but there was in the November of each year an excess in the issues of about £500,000, which would of course have to be based on bullion. The average circulation in Ireland would in future be, of the national bank, £3,706,000; of the other banks, £2,565,000; in all. £6,271,000. As there was in Scotland no national bank to supply any deficiency caused in the circulation by the failure of any joint-stock bank, he would give permission for any bank to dispose of its circulation to another bank; the aggregate of the two amounts to be taken as the joint circulation. To avoid any inconvenience or precipitancy, the plan would not come into operation until the 1st of January, 1846.

Sir Robert Peel concluded by expressing his belief that this plan would add to the stability of the circulation in the United Kingdom, and would be an equitable way of making Ireland and Scotland bear their share of the burden of providing a guarantee against commercial panic. These bills passed through both houses without much discussion, and became law.

During this session a measure was passed by government for facilitating the enclosure of commons in England and Wales, by appointing a board of commissioners with extensive powers, and removing the necessity of obtaining private acts of parliament for the enclosing of lands.

The business of the session was closed by Lord John Russell’s taking the opportunity for a formal motion for papers, to enter into a critical review of the results of the session, and the general policy of the administration.

PROROGATION OF PARLIAMENT.

Parliament was prorogued by the queen in person on the 9th of August. After the speaker had addressed her majesty on the measures of the session, and some bills had received the royal assent, her majesty read the royal speech.

THE AFFAIRS OF INDIA.

In the early part of this year the important subject of railroads in India was taken into serious consideration. Various companies were formed in England, for the purpose, if possible, of carrying out schemes of railway communication in that country. In order that full preliminary information might be obtained before any project was sanctioned, the court of directors sent a despatch to the governor-general, directing him to take the subject into his best consideration, as one in which the interests of India were deeply concerned.

Until the close of the year, peace pervaded the whole of India, and Sir Henry Hardinge was employed in promoting the interests of the natives, by giving his attention to the important question of education. While thus humanely employed, the state of our north-western frontier summoned him to engage in warlike preparations. The Anglo-Indian dominion on the left bank of the Sutlej was suddenly invaded by a Sikh army. What part the government at Lahore took in this invasion is uncertain. It is alleged on the part of the Ranee, the queen-mother, and the other advisers of the youthful monarch, Dhuleep Singh, and the Durbar at Lahore was at the mercy of the army; and that the restless and mutinous Sikh soldiers, in defiance of government, determined to cross the Sutlej, in hopes of finding the British unprepared, and carrying off an immense quantity of booty. This sounds like fiction; and it would rathe appear that the Lahore government, standing in awe of the Sikh army, was glad of any pretext for finding it employment in British India, in order to avoid violence within the Punjaub territory. Be this as it may, the Sikhs invaded our borders; and we had no alternative but to treat the invasion as a formal declaration of war on the part of the Lahore government, and to take measures for proceeding against the Punjaub government as a hostile state. On the 2nd of December Sir Henry Hardinge arrived at Umballah; on the 6th he removed from Umballah towards Loodianah; and on the 12th his whole force marched towards the Sutlej, and took up a position at Busseeau, an

important point, where the roads leading from Umballah and Kurnaul meet. It was not till the 13th that the Sikh army crossed the Sutlej, and on that day Sir Henry Hardinge issued the following proclamation:—"The British government has ever been on terms of friendship with that of the Punjaub. In the year 1809 a treaty of amity and concord was concluded between the British government and the late Maharaja Runjeet Singh, the conditions of which have always been faithfully observed by the British government, and were scrupulously fulfilled by the late Maharaja. The same friendly relations have been maintained with the successors of Maharaja Runjeet Singh, by the British government, up to the present time. Since the death of the late Maharaja Shere Singh, the disorganized state of the Lahore government has made it incumbent on the governor-general in council to adopt precautionary measures for the protection of the British frontier; the nature of these measures, and the cause of their adoption were at the time fully explained to the Lahore Durbar. Notwithstanding the disorganized state of the Lahore government, during the last two years, and many most unfriendly proceedings on the part of the Durbar, the governor-general in council has continued to evince his desire to maintain the relations of amity and concord which had so long existed between the two states, for the mutual interests and happiness of both. He has shown on every occasion the utmost forbearance, from consideration to the helpless state of the infant Maharaja Dhuleep Singh, whom the British government had recognised as the successor to the late Maharaja Shere Singh. The governor-general in council sincerely desired to see a strong Sikh government re-established in the Punjaub, able to control its army and protect its subjects. He had not, up to the present moment, abandoned the hope of seeing that important object effected by the patriotic efforts of the Sikhs and people of that country. The Sikh army recently marched from Lahore towards thu British frontier, as it was alleged, by the orders of the Durbar, for the purpose of invading the British territory. The governor-general's agent, by direction of the governor-general, demanded an explanation of this movement; and no reply being returned within a reasonable time, the demand was repeated. The governor-general, unwilling to believe in the hostile intentions of the Sikh government, to which no provocation had been given, refrained from taking any measures which might have a tendency to embarrass the government of the Maharaja, or to induce collision between the two states. When no reply was given to the repeated demand for explanation, and while active military operations were continued at Lahore, the governor-general considered it necessary to order the advance of troops towards the frontier, to re-enforce the frontier posts. The Sikh army has now, without a shadow of provocation, invaded the British territories. Tire governor-general must, therefore, take measures for effectually protecting the British provinces; for vindicating the authority of the British government; and for punishing the violaters of treaties and the disturbers of public peace. The governor-general hereby declares the possessions of Maharaja Dhuleep Singh, on the left, or British bank of the Sutlej, confiscated and annexed to the British territories. The governor-general will respect the existing rights of all jagheerdars, zemindars, and tenants in the said possessions, who, by the course they now pursue, evince their fidelity to the British government. The governor-general hereby calls upon all the chiefs and sirdars in the protected territories to co-operate cordially with the British government, for the punishment of

the common enemy, and for the maintenance of order in these states. Those of the chiefs which show alacrity and fidelity in the discharge of this duty, which they owe to the protecting power, will find their interests promoted thereby; and those who take a contrary course will be treated as enemies to the British government, and will be punished accordingly. The inhabitants of all the territories on the left bank of the Sutlej are hereby directed to abide peaceably in their respective villages, where they will receive efficient protection by the British government. All parties of men found in armed bands, who can give no satisfactory account of their proceedings, will be treated as disturbers of the public peace. All subjects of the British government, and those who possess estates on both sides of the river Sutlej, who by their faithful adherence to the British government, may be liable to sustain loss, shall be indemnified and secured in all their just rights and privileges. On the other hand, all subjects of the British government, who shall continue in the service of the Lahore state, and who disobey this proclamation, by not immediately returning to their allegiance, will be liable to have their property on this side of the Sutlej confiscated, and declared to be aliens and enemies of the British government." On crossing the Sutlej, the Sikh army, under the command of Sirdar Tej Sing, invested Ferozepore on one side, and took up an intrenched position at the village of Ferozeshah, about ten miles in advance of Ferozepore, and nearly the same distance from Moodkee. Ferozepore was garrisoned with about 5000 troops, with twenty-one guns, under the command of Major-general Sir John Littler. The great object of the governor-general was to effect a junction between the separated portions of the Anglo-Indian army before an attack could be made upon them by the Sikhs. For this purpose orders were issued by the governor-general, while on his route, to the force at Umballah, with Sir Hugh Gough at their head, to move up towards Ferozepore by rapid marches. On the 18th those troops reached the village of Moodkee, and on that day a battle was fought, which will be best told in Sir Hugh Gough's own words. In his dispatch he writes:—"Soon after midday, the division under Major-general Sir Harry Smith, a brigade of that under Major-general Sir J. M'Caskill, and another of that under Major-general Gilbert, with five troops of horse-artillery, and two light field-batteries, under Lieutenant-colonel Brooke, of the horse-artillery, and the cavalry division, consisting of her majesty's 3rd light-dragoons, the body-guard, 4th and 5th light-cavalry, and 9th irregular cavalry, took up their encamping ground in front of Moodkee. The troops were in a state of great exhaustion, principally from the want of water, which was not procurable on the road, when, about three p. m., information was received that the Sikh army was advancing; and the troops had scarcely time to get under arms and move to their positions, when the fact was ascertained. I immediately pushed forward the horse-artillery and cavalry, directing the infantry, accompanied by the field-batteries, to move forward in support. We had not proceeded beyond two miles, when we found the enemy in position. They were said to consist of from 15,000 to 20,000 infantry, about the same force of cavalry, and forty guns. They had evidently either just taken up this position, or were advancing in order of battle against us. To resist their attack, and to cover the formation of the infantry, I advanced the cavalry, under Brigadiers White, Gough, and Martier, rapidly to the front, in columns of squadrons, and occupied the plain. They were speedily followed by the five troops of horse-artillery, under Brigadier Brooke, who took up a

forward position, having the valley then on his flanks. The country is a dead flat, covered, at short intervals, with a low, but in some places, a thick low jungle, and dotted with sandy hillocks. The enemy screened their infantry and artillery behind this jungle, and such undulations as the ground afforded; and whilst our twelve battalions formed from echellon of brigade into line, opened a very severe cannonade upon our advancing troops, which was vigorously replied to by the battery of horse artillery under Brigadier Brooke, which was soon joined by the two light field-batteries. The rapid and well-directed fire of our artillery appeared soon to paralyse that of the enemy. And as it was necessary to complete our infantry dispositions without advancing the artillery too near the jungle, I directed the cavalry, under Brigadiers White and Gough, to make a flank movement on the enemy's left, with a view of threatening and turning that flank, if possible. With praiseworthy gallantry, the 3rd light-dragoons, with the 2nd brigade of cavalry, consisting of the body-guard and 5th light-cavalry, with a portion of the 4th lancers, turned the left of the Sikh army, and, sweeping along the whole rear of its infantry and guns, silenced for a time the latter, and put their numerous cavalry to flight. Whilst this movement was taking place on the enemy's left, I directed the remainder of the 4th lancers, the 9th irregular cavalry, under Brigadier Martier, with a light field-battery, to threaten their right. This manouvre was also successful. Had not the infantry and guns of the enemy been screened by the jungle, these brilliant charges would have been productive of greater effect. When the infantry advanced to the attack, Brigadier Brooke rapidly pushed on his horse-artillery close to the jungle, and the cannonade was resumed on both sides. The infantry under Major-generals Sir Harry Smith, Gilbert, and Sir John M'Caskill, attacked in echellon of lines the enemy's infantry, almost invisible amongst wood and the approaching darkness of the night. The position of the enemy was such as might have been expected from troops who had everything at stake, and who had long vaunted of being irresistible. Their ample and extended line, from the great superiority of numbers, far outflanked ours; but this was counteracted by the flank movements of our cavalry. The attack of the infantry now commenced, and the roll of fire from this powerful arm soon convinced the Sikh army that they had met with a foe they little expected; and their whole force was driven from position after position, with great slaughter, and the loss of seventeen pieces of artillery, some of them of heavy calibre; our infantry using that never-failing weapon, the bayonet, whenever the enemy stood. Night only saved them from worse disaster; for this stout conflict was maintained during an hour and a half ot dim starlight, amidst a cloud of dust from the sandy plain, which yet more obscured every object." This victory, however, was dearly purchased: amongst those who fell was Sir Robert Sale, the hero of Jellalabad, and Sir John M'Caskill. After remaining encamped for two days, Sir Hugh Gough moved with his whole force towards Ferozeshah, where the Sikh army was posted in a strongly entrenched camp, defended by a formidable park of artillery. Here a junction was formed between the troops under Sir John Littler and those of Sir Hugh Gough. About four o'clock on the afternoon of the 21st, the united forces advanced to attack the entrenched camp of the Sikhs. At this time Sir Henry Hardinge himself had joined Sir Hugh Gough; and he took an active part in the events of the day, as second in command. The camp of the enemy was in the form of a parallelogram, of about a mile in length, and half a

mile in breadth, including within its area the strong village of Ferozeshah: the shorter sides looking towards the Sutlej and Moodkee, and the longer towards Ferozepore and the open country. The British troops moved against the last-named place, and their operations were thus detailed by Sir Hugh Gough:—“The divisions of Major-general Sir John Littler, Brigadier Wallace, and Major-general Gilbert, deployed into line, having in the centre our whole force of artillery, with the exception of one on either flank, and one in support, to be moved as occasion required. Major-general Sir Harry Smith’s division and our small cavalry force moved in second line, having a brigade in reserve to cover each wing. I committed the charge of the left wing to Lieutenant-general Sir Henry Hardinge, while I personally conducted the right. A very heavy cannonade was opened by the enemy, who had dispersed over their position upwards of one hundred guns, more than forty of which were of battering calibre: these kept up a heavy and well directed fire, which the practice of our far less numerous artillery, of much lighter metal, checked in some degree, but could not silence: finally, in the face of a storm of shot and shell, our infantry advanced, and carried these formidable entrenchments: they threw themselves upon their guns, and with matchless gallantry wrested them from the enemy; but when the batteries were partially within our grasp, our soldiery had to face such a fire of musketry from the Sikh infantry, arrayed behind their guns, that, in spite of the most heroic efforts, a portion only of the entrenchment could be carried. Night fell while the conflict was raging. Although I now brought up Major-general Sir Harry Smith’s division, and he captured and long retained another part of the position, and her majesty’s 3rd light-dragoons charged, and took some of the most formidable batteries, yet the enemy remained in possession of a considerable portion of the great quadrangle, whilst our troops, mingled with theirs, kept possession of the remainder, and finally bivouacked upon it, exhausted by their gallant efforts, greatly reduced in numbers, and suffering extremely from thirst, yet animated by an indomitable spirit. In this state of things the long night wore away. Near the middle of it, one of their heavy guns was advanced, and played with deadly effect upon our troops. Lieutenant-general Sir Henry Hardinge immediately formed her majesty’s 80th foot, and the 1st European light-infantry. They were led to the attack by their commanding officers, and animated in their exertions by Lieutenant-colonel Wood, who was wounded in the outset. The 80th captured the gun; and the enemy, dismayed by this countercheck, did not venture to press on further. During the whole night, however, they continued to harass our troops by fire of artillery, wherever moonlight discovered our position. But with daylight of the 22nd came retribution. Our infantry formed in line, supported on both flanks by horse-artillery, whilst a fire was opened from our centre, by such of our heavy guns as remained effective, aided by a flight of rockets. A masked battery played with great effect upon this point, dismounting our pieces, and blowing up our tumbrils. At this movement Lieutenant-general Sir Henry Hardinge placed himself at the head of the left, whilst I rode at the head of the right wing. Our line advanced, and, unchecked by the enemy’s fire, drove them rapidly out of the village of Ferozeshah and their encampment; then, changing front to its left, on its centre, our force continued to sweep the camp, bearing down all opposition, and dislodged the enemy from their whole position. The line then halted, as if on a clay of manoeuvre, receiving its two leaders, as they rode along its front, with a gratifying

cheer, and displaying the captured standards of the Khalsa army. We had taken seventy-three pieces of cannon, and were masters of the whole field. The force assumed a position on the ground which it had won; but even here its labours were not to cease. In the course of two hours, Sirdar Tej Sing, who had commanded in the last great battle, brought up from the vicinity of Ferozepore fresh battalions and a large field of artillery, supported by 30,000 Ghorepurras, hitherto encamped near the river. He drove in our cavalry parties, and made strenuous efforts to regain the position at Ferozeshah. This attempt was defeated; but its failure had scarcely become manifest, when the sirdar renewed the contest with more troops, and a large artillery. He commenced by a combination against our left flank; and when this was frustrated, made such a demonstration against the captured village, as compelled us to change our whole front to the right. His guns during this manouvre maintained an incessant fire; whilst, our artillery ammunition being completely expended in these protracted combats, we were unable to answer him with a single shot. I now directed our almost exhausted cavalry to threaten both flanks at once, preparing the infantry to advance in support, which apparently caused him suddenly to cease his fire, and to abandon the field." This victory, by which the enemy was driven to the banks of the Sutlej, was not achieved without heavy loss; and among the slain were Major Broadfoot, political agent in the north-western provinces, Colonels Wallace and Taylor, and Major Fitzroy Somerset, military secretary to the governor-general. The Sikh army retreated on the fords of the Sutlej, and, disheartened by the capture of its artillery, and the loss it had sustained in killed and wounded, crossed over to the other side of the river. Early in the next year the victorious British followed them, and pressed onwards to Lahore. Terms of peace were agreed on; and one of the stipulations between the two states was the disbandment of the Sikh force. The importance of these victories was acknowledged by government, and the people of England at large; who joined in admiration of the conduct of the governor-general, the commanders, and the troops, by whom the victory was achieved.

In the vicinity of Scinde Sir Charles Napier was employed in military operations against the mountain desert tribes on the right bank of the Indus, north of Shikarpoor.

This was a hazardous service, requiring, as Sir Henry Hardinge remarked, "on the part of the general, the utmost prudence, skill, and foresight; and on the part of the troops, the greatest fortitude in enduring the fatigues and privations to which they were exposed." In these operations, however, Sir Charles Napier was completely successful. On the 9th of March he wrote to the governor-general an account of his victory in these terms:—"I have to report to you the conclusion of the war against the mountain and desert tribes, who, driven into their last refuge, the stronghold at Truckee, have this day laid down their arms: the fort of Deyrah is destroyed; and Islam Boogtie, the only chief not a prisoner, is said to be a lonely fugitive in the Ketrau country, far in the north, and ruled by a chief whose daughter Islam married. To detail the movements which led to this result, would produce a despatch of greater length than is necessary; nor, indeed, could it be well understood, as no map exists of this part of Schwistan and Cutchee; suffice it therefore to say that the mountain tribes occupy a country of extensive deserts and barren mountains,

stretching about one hundred and forty miles from east to west. Into this apex, or smaller part, we succeeded in driving the robber chiefs; but with great difficulty, for this part of the country is full of the most dangerous defiles. To enter them with a regular force is an operation which threatens it with destruction. The only credit to be acquired in such a war is that which results from patience, under privations created by the dearth of water, and the difficulty of getting supplies. These deprivations were borne by this whole force with so much good humour as to show that the eager desire of every one to do his duty absorbed all other feelings; and deserves my highest praise. These privations fell especially hard upon those hard-working and much-enduring men, called camp-followers. The result of this campaign may be divided into two parts—the physical effect and the moral effect. With regard to the first the results are as follows:—First, the total destruction of the robber tribes; Deyriah Khan, chief of the Jackranies, Dinanah Moondrannee, Sooliman Ramdanee, and Toork Ali, and their tribes, all surrendered on the 5th, accompanied by Jumea Khan, nephew of Beeja Khan Doomkie, with a large portion of that tribe. These men I pardoned, and saved from plunder, but on condition of their being transplanted into the Scinde territory. The great chief, Beeja Khan, and the rest of the Doomkies, refused to surrender on the proffered conditions. They held out till this day, when they were forced to submit unconditionally, together with Meer Hussen Notanee, a leading chief ot the Boogtie tribe, and his followers; also Mundoo Khan Doomkie, nephew to Beejar Khan, and Wuzeer Doomkie, son of Beejar Khan: Ali Sher Boordie, a minor desert chief, surrendered a week ago, and was the first who broke the coalition. The chiefs and their tribes who have held out have been deservedly plundered by the troops which I had despatched in all directions to intercept their retreat, with their baggage, cattle, and household furniture; almost everything has been taken except what was in possession of their women and children, who have been in no way molested, or even approached by the troops. The moral effect of this expedition has been:—1st. To spread a wholesome respect for our arms among the neighbouring nations, who, seeing that tribes so warlike and honoured among them have been broken to pieces without daring to fight a battle, even when posted in the celebrated fastness of Truckee, will form a just idea of the British power. Indeed, I have already received, within the last few days, letters from neighbouring tribes, asking me to attach their territory to Scinde, to be under the British rule, and thus to be protected from the pillage and misery in which they live. 2nd. The moral effect in Scinde will be to give confidence to the people; especially those bordering on the desert frontier, whose cries against the government during the last summer, for not affording them protection against the robber tribes, were both frequent and just; but the great heat at that time rendered it impossible to give them that protection. The example now made of the robber tribes, will show the people of Scinde that the government has both the will and the power to protect them."

THE STATE OF THE CONTINENT.

The war which France had waged in Algeria for a considerable period continued throughout the whole of this year and was marked by several reverses experienced by its forces.

Little of interest occurs in the annals of Spain during this year. The chiefs, Zurbano and Muro, were captured near Logrono, and were both shot. The hopes of Don Carlos were now cut off, and he was under the necessity of issuing this farewell address to the Spanish nation:—“Spaniards, my faithful defenders, called to the crown of Spain by imprescriptible rights, my sole desire has constantly been, the happiness of my beloved country. That happiness now requires my renunciation in behalf of my very dear eldest son, Charles Louis, prince of the Asturias. No sacrifice could be too great to me when the welfare of my land was at stake. I have willingly made that of the renunciation in behalf of my son, whom you will acknowledge as my lawful successor, and surround with the same affection and fidelity. He will, on his side, know how to reward, as they deserve to be, your loyalty and constancy in upholding the sound principles which alone can save Spain. In quitting public life, I feel great satisfaction and consolation in expressing my gratitude for the heroic achievements by which you have astonished the world, and which will ever remain engraven on my heart. Farewell, my constant defenders and faithful companions. Pray unto God with me that He may take pity on the miseries of our country, and vouchsafe us quieter and happier days.” During the year some disturbances occurred at Madrid, and the state of Catalonia caused government considerable uneasiness; but these insurrectionary movements were finally put down, though not without loss of life.

At Rimini, in Italy, on the 23rd of September, a revolt broke out against the papal authority. A number of persons, armed with muskets, assembled in the Square-del-Corso; and when the garrison was called out the soldiers joined the populace, and a provincial junto was appointed. Other towns followed the example of Rimini, and emigrants from the Tuscan dominions united with the insurgents. Their leaders were Counts Biancoli, Pasi, and Beltrami; and they took up a position near Faenza; but being attacked by detachments of pontifical and Austrian soldiers at this place, they were finally compelled to fly for refuge into the Tuscan states, where they were protected by the grand duke, and whence, subsequently, they set sail for Marseilles.

During this year the King of Holland paid a visit to her majesty Queen Victoria, to which event, on his return to his dominions, in his speech to the States-general, he thus referred:—“The visit which I have paid to her majesty the Queen of England will contribute, I hope, to consolidate the good understanding which exists between the two countries and their governments. For my part, I shall retain the most agreeable impression of the welcome which I received on that visit.”

CHAPTER LVII.

{VICTORIA. 1845–1846}

State of Public Affairs at the Commencement of this Year, &c. Meeting of Parliament..... Settlement of the Corn Law Question.

STATE OF PUBLIC AFFAIRS AT THE COMMENCEMENT OF THIS YEAR, ETC.

{A.D. 1846}

The close of the last year and the commencement of the present, were marked by great activity among all classes on the subject of the corn-laws. The agents of the anti-corn-law league were everywhere active. Meetings were held in every part of England; and converts to the free-trade doctrine were made daily. Even the farmers at this time began to think that their interests were concerned in the matter; and some landowners adopted the views of the great leader of the movement, Mr. Cobden. A stimulus was given to the exertions of the free-traders in the failure of the potato crop in the autumn of 1845, both in England and Ireland. It was generally felt, indeed, that some alterations in the corn-laws must be made, and that government itself would be compelled to throw the trade open. While the hopes of the free-traders in Sir Robert Peel were thus excited, those of his own party seemed proportionably cast down. They, too, held meetings, and formed agricultural protection societies in every part of the United Kingdom. It was, in truth, evident to every man that a change was coming; and while the mass hailed the prospect with delight, the great landowners, with some exceptions, stretched every nerve to stem the onward progress of free-trade principles. The hopes of the one party, and the fears of the other, were heightened by the quarrel with America concerning the Oregon territory. It was thought by all that the abolition of the corn-law would for ever destroy all chance of war between England and the United States, inasmuch as the latter country would see that its interest was concerned in cultivating that great blessing of life—peace. Coming events thus cast their broad and ample shadows before.

From the thirteenth century, downwards, there are numerous instances on record of the interference of the legislature with the course of trade in every department. A few centuries ago, indeed, it was usual to fix the prices of many articles of consumption; and that of corn was more interfered with than any other. One circumstance which led to this interference was scarcity; and another, the want of adequate means of internal communication, which often rendered it more profitable to the corn-factor to ship the surplus produce of our maritime districts to a neighbouring country, than to send it to other counties in England. As a remedy for these evils, exportation was prohibited. But such a measure, inasmuch as exportation would not take place except when a better price could be got abroad than at home, was a palpable injustice to the grower. On the other hand, when the general supply was supposed to be more than sufficient, importation was prohibited; but as wheat could never be imported except when it was cheaper in foreign countries than in our own, an injustice was done to the consumer. These restrictions failed to effect their object, and a third party was then fixed upon as the object of further legislation; from alternately restricting the export and import of corn, stringent restrictions were laid on the buying and selling of corn within the country itself. The buying of corn in one place, to sell in another, was even looked upon as an unnecessary and improper interference on the part of the dealers. Both the farmers and the people looked upon them as interlopers: men who had no right to deal in corn, and who, to enhance their own gains, increased the price without any profit to the former, and the manifest detriment of the latter. The complaints against them were so general that the

legislature interfered. Protection to the growers of corn pervaded the legislature down to the period of 1815; but so badly were the arrangements for this purpose laid, that the protective laws were often abortive. Generally, the country raised more corn than it consumed—a sufficient cause for rendering protection inoperative. In 1773 the period closed during which this country commonly raised a surplus of corn beyond its own consumption, and the duties on importation became oppressive. Mr. Robinson brought forward the resolutions which were embodied in the celebrated corn-law of 1815. The report of a committee in 1814 fixed the remunerating price at 80s., and it was proposed absolutely to prohibit the importation of foreign wheat till it reached that price, and of colonial wheat till it reached 67s.; when over those prices, respectively, the imports were to be free. This measure was in itself oppressive, but it was made doubly so by the mode adopted for fixing the averages. These were fixed every three months upon the prices of the previous six weeks, and continued the same until the expiration of the quarter. However great might be the demands of the country for import, no rise of price could affect the scale of duties until the arrival of the next period for fixing the averages. The measure created a great sensation throughout the country, and met with much opposition in both houses of parliament; but it passed into law. Agriculturalists now considered that the price of 80s. per quarter for their corn was certain, and cheerfully entered into contracts with their landlords upon that basis. It soon, however, proved to be mere delusion. The three next years witnessed deficient harvests, which had the effect at one time of raising the price to 112s. 7d.; but the ports were at length opened, and in September, 1817, the price had fallen to 74s. The harvest of 1819 was an average one, and the price of corn through’ the year, ranged at 72s. But this was a remunerating price, and the farmers and landowners were induced to increase the breadth of land sown, in the hope of selling the produce at remunerating prices. They were still convinced that the act of 1815 was efficient to protect their interests, and they should still flourish. But the harvest of 1821 was abundant, and the effect was such as to surprise, though it did not instruct them. The price of corn in July, 1821, was 51s., and the two next harvests being abundant likewise, the price sunk in August, 1822, to 42s. The law of 1815, therefore, had the effect of seducing the farmer into a course of conduct which induced ruin rather than prosperity. Committees were appointed to inquire into the causes of distress then prevailing among them. These inquiries were useless; but, by the year 1824, much of the capital invested in the poorer description of soils, under the stimulus of the high prices of previous years, was withdrawn, and less corn being brought to market, the price rose considerably, and an improved condition of the farmer took place accordingly. For several years nothing was done permanently to settle the terms upon which foreign corn could be admitted into the market. Colonial corn was still excluded till the average price reached 67s. In 1825, however, an act was passed, admitting corn from our North American colonies at a fixed duty of 5s. per quarter, till July, 1827; and by another act passed at the same time, corn from our other colonies was admitted at reduced duties: the stocks of corn in bond were further admitted for consumption at lower duties. In 1826 there was a partial failure of the corn-crops, and an order in council was issued in September 1st, admitting for home consumption oats and oatmeal, rye, peas, and beans, on the ground that there was great cause to fear that much distress might ensue to all classes of his majesty’s

subjects. A meeting of parliament was summoned in November, to indemnify ministers for this order in council, on which occasion Mr. Canning announced the intention of government early in the ensuing session to introduce a general measure on the corn-trade. This measure was brought forward soon after the next meeting of parliament; and its plan was a sliding-scale, with a more regular and artificial range of duties than those of the existing law; the object being to keep the price of wheat somewhere between 55s. and 65s. This bill passed the house of commons by a large majority; but the bill met with so much opposition in the upper house, that Mr. Canning, whose health was now declining, dropped the measure, and announced another of a similar character early in the ensuing session. Before that period arrived, however, Mr. Canning died, and the task of introducing the measure of 1828 fell to the share of Mr. C. Grant, then president of the board of trade. His resolutions differed from those of Mr. Canning, chiefly in making the protection afforded when the average price should range between 60s. and 70s. more restrictive by an amount varying from 3s. to 7s. per quarter. The new scale was also less regular in its construction; and thus afforded greater inducements to the commission of frauds upon the averages. This bill, notwithstanding, passed both houses: it being accepted by the landed interest as the best to be obtained in the then state of parties, and by their opponents as a step towards further reform. The scale of duties as established by this law fixed the price of 1s. per quarter when the average of six weeks per quarter was 73s.; but when the average was 60s. no less a sum than 36s. 8d. was to be paid for duty. From this period down to 1842 no further change took place in the corn-laws, though year after year the subject was agitated in one shape or the other, and committees were appointed to inquire into the state of agriculture. In the year 1842 her majesty’s speech at the opening of the session recommended the taking of “the state of the laws which affected the import of corn” into consideration, and expressed regret at the continued distress in the manufacturing districts. For the measure brought forward by Sir Robert Peel, the reader is referred to the parliamentary debates of that year; it will be sufficient here to state, that in his resolutions he retained the sliding-scale, and introduced such amendments as he conceived would diminish the oscillations previously experienced under that mode of levying the duties. Up to the year 1846, Sir Robert Peel resolutely defended the measure passed in 1842; giving a decided negative to all the free-trade propositions moved by Lord John Russell and Messrs. Cobden and Villiers, with other members of parliament. His constant reply was, to these propositions, that his experience of the present system was not such as to induce him to propose “further change at present.” He was at length convinced by the arguments of his opponents that the corn-laws were no longer tenable. He resigned office, promising Lord John Russell, whom he recommended to her majesty as his successor, his support in the final adjustment of this great question. There was no one, however, able to settle this question but himself; and when Lord John Russell failed in forming an administration, he resumed office with a fixed resolution, at the risk of being denominated a changeling and a deceiver of party, to open the English ports to all the world. How he grappled with and settled the question will be seen in the ensuing debates.

MEETING OF PARLIAMENT.

Parliament reassembled on the 19th of February. As her majesty proceeded to the walls of St. Stephen, a significant incident occurred: at the corner of Bridge-street, one of the spectators exclaimed, “No monopoly!” at which her majesty smiled, graciously bowing, at which a hundred voices united in the shout of “God save the queen!” The speech delivered by the queen first referred to friendly relations with allied powers; to an adjustment of differences between the Ottoman Porte and the King of Persia, to negociations pending for the pacification of the states of Rio de la Plata, in which for several years a desolating and sanguinary war had existed; and to the convention concluded with France last year for the more effectual suppression of the slave-trade. On the dispute with America her majesty remarked:—“I regret that the conflicting claims of Great Britain and the United States, in respect of the territory on the north-western coast of America, although they have been made the subject of repeated negociation, still remain unsettled. You may be assured that no effort consistent with national honour shall be wanting on my part to bring this question to an early and peaceful termination.” Having adverted to the estimates, and to the crime of assassination in Ireland, which was more flagrant than even in former years, her majesty proceeded to say:—“I have to lament that in consequence of a failure of the potato crop in several parts of the United Kingdom, there will be a deficient supply of an article of food which forms the chief subsistence of great numbers of my people. The disease by which the plant has been affected, has prevailed to the utmost extent in Ireland. I have adopted all such precautions as it was in my power to adopt for the purpose of alleviating the sufferings which maybe caused by this calamity; and I shall confidently rely on your co-operation in devising such other means for effecting the same benevolent purpose as may require the sanction of the legislature. I have had great satisfaction in giving my assent to the measures which you have presented to me from time to time, calculated to extend commerce, and to stimulate domestic skill and industry, by the repeal of prohibitory and restrictive duties. The prosperous state of the revenue; the increased demand for labour, and the general improvement which has taken place in the internal condition of the country, are strong testimonies in favour of the course you have pursued. I recommend you to take into your early consideration, whether the principles on which you have acted, may not with advantage be yet more extensively applied, and whether it may not be in your power, after a careful review of the existing duties upon many articles the produce or manufacture of other countries, to make such further reductions and remissions as may tend to insure the continuance of the great benefits to which I have adverted, and, by enlarging our commercial intercourse, to strengthen the bonds of amity with foreign powers.”

Before proceeding with the address, Sir Robert Peel announced that on the next Monday, he should propose the appointment of a committee to consider the mode in which the house should deal with railway bills; and that on Tuesday, the following day, he would make, in committee of the whole house, a statement as to the intention of her majesty’s government with respect to the commercial policy of the country, and the corn-laws.

The address was moved in the commons by Lord Francis Egerton. Lord Francis had long been a noted Conservative, and a supporter of the corn-laws; but he now

avowed himself favourable to free-trade. The address was seconded by Mr. Beckett Denison. Sir Robert Peel rose to explain the late ministerial crisis, and his own views and measures. He attributed the cause which led to the dissolution of the cabinet, to that great and mysterious calamity—the failure of the potato crop. At the same time he confessed, that it would be uncandid to attribute undue importance to that one cause. “That particular cause,” he continued, “appeared to me to preclude any further delay, and to require immediate decision—decision, not only upon the measures which it was necessary at the time to adopt, but as to the course to be ultimately taken with regard to the laws which govern the importation of grain.” Sir Robert Peel continued to say he should have wished that another parliament should have had the opportunity of considering this question; but in the course of last autumn occurred that visitation of Providence, the consequences of which it was still difficult to foresee—the failure of the potato crop in Ireland, and in some parts of England—and it became a question whether it was not desirable to take immediate steps to meet the threatened evil. Government had instituted inquiries, and had received much correspondence from foreign countries on the subject; and from all the accounts they had received, it became evident that something must be done. The right honourable baronet next came to the explanation of what had occurred in the cabinet, and how he had been led to tender his resignation. He would not have abandoned his post, he said, if he had been supported by an unanimous government; but that was not the case, and he had no alternative but to quit office. Her majesty accepted his resignation, and of her own choice sent for Lord John Russell, who undertook the task of forming an administration. Their appeared every probability that the question would have devolved on his lordship; but before he went to Windsor to take a final farewell of the queen, he learned that Lord John had failed to form a government. On meeting Sir Robert, the queen informed him that so far from taking leave, she was obliged to require him to continue his services; and the colleagues who differed from him not having advised the formation of a cabinet on the principles of protection, and Lord John having failed, he did not hesitate to withdraw his resignation. Accordingly he resolved to meet parliament, prepared to submit those measures which he thought necessary to meet the emergency. These measures would be brought forward on Tuesday next, and therefore he would not anticipate the discussion. Lord John Russell rose to explain his conduct during the recent negociations, and how he had failed in forming an administration. Having received her majesty’s commands, he called together those with whom he had been in the habit of acting, and had stated that he would endeavour to frame an outline of a measure on the corn-laws. He had previously been informed by Sir Robert Peel that it was not advisable he should state the details of the measure he should have brought forward under the responsibility of his own government: and, therefore, he had to consider what it would be the duty of his government to propose, should he succeed in forming one. The result of his exertions on this subject would be best explained by reading a letter which he addressed to her majesty:—“Lord John Russell presents his humble duty to your majesty, and has the honour to state that he has found it impossible to form an administration. Lord John Russell was aware from the first moment, when your majesty was pleased to propose this commission, that there were very great difficulties in the way, which it required the most cordial co-operation on

the part of his friends, and the firm support of a large portion of those who followed Sir Robert Peel to surmount. Those who have served your majesty and your royal predecessor in cabinet-offices during the administration of Lord Grey and Lord Melbourne, who were now in political connexion with Lord John Russell were consulted by him. They agreed on the principles by which they would be guided in framing a measure for the repeal of the corn-laws. Thus one great difficulty was surmounted. But, as the party which acts with Lord John Russell is in a minority in both houses of parliament, it was necessary to ascertain how far they were likely to obtain the support of Sir Robert Peel. Your majesty is acquainted with all that has passed on this subject. Lord John Russell is quite ready to admit that Sir Robert Peel has been willing, from the commencement to the end, to diminish the difficulties in the course of a new government prepared to attempt the settlement of the corn-laws. But Sir Robert Peel could not, of course, rely on the support of his political friends should the proposed measure be in their eyes dangerous and unwise. In this uncertainty of obtaining a majority in the house of commons it was absolutely necessary that all those who were prominent in the political party to which Lord John Russell is attached should give their zealous aid, and act in concert in the new administration. Lord John Russell has, in one instance, been unable to obtain this concert; and he must now consider this task as hopeless, which has been from the beginning hazardous. Lord John Russell is deeply sensible of the embarrassment caused by the present state of public affairs. He will be ready, therefore, to do all in his power, as a member of parliament, to promote the settlement of that question which, in present circumstances, is the source of so much danger, especially to the welfare and peace of Ireland. Lord John Russell would have formed his ministry on the basis of a complete free trade in corn, to be established at once, without gradation or delay. He would have accompanied that proposal with measures of relief to a considerable extent of the occupiers of land from the burdens to which they are subjected. But he will be little disposed to insist, as a member of parliament, on what may seem to your majesty’s advisers an impracticable course. The country requires, above all things, an early and peaceable settlement of a question, which, if not soon settled, may, in an adverse state of affairs, cause a fearful convulsion.” Lord John Russell concluded by expressing the obligations he felt to her majesty for the gracious manner in which she entrusted him with the task of forming the administration; and by stating that, whether in office or out of office, he should be ready to give his assent to measures calculated to benefit the country, without reference to the proposer. Mr. D’Israeli was not so liberal in his sentiments. As the champion of protection, he asked, what would be thought of a statesman who, having served under four sovereigns, came forward and declared that, after an observation of three years, he had found it necessary to change his convictions on a subject which must have presented itself for more than twenty years to his notice?

The peers waved their right to discuss these great topics on the first night of the session; awaiting the discussion in the commons. The Duke of Richmond endeavoured to bring on a debate; but ministers were taciturn; and after a long and discursive speech delivered by Lord Brougham, which touched upon the subjects of the Oregon dispute, the corn-laws, and Irish affairs, the address was carried. In the course of the

evening, the Duke of Richmond wished the Duke of Wellington to explain the reasons which induced the government to accept and to re-accept office; but his grace said that he could not do so without her majesty's permission. On the following Monday, however, the noble duke explained their reasons in his own plain, straightforward, and characteristic manner. What these reasons were has been touched upon before.

SETTLEMENT OF THE CORN-LAW QUESTION.

The house of commons resolved itself into committee on Tuesday, the 3rd of February, to consider that portion of the speech from the throne referring to the commercial policy of the government. Sir Robert Peel commenced his speech by bespeaking the patient indulgence of the house. He was about to act, he said, on the assumption adopted in the queen's speech, that the repeal of prohibitory duties, and the relaxation of protective duties is in itself a wise policy. He was about to act on the presumption, that during the last three years, notwithstanding the relaxation of heavy taxes, there had been increased revenue, increased demand for labour, increased commerce, increased comfort, contentment, and peace in the country. Passing on to the explanation of his views and designs, the right honourable baronet said, that within the last three years, the tariff, that is, the whole scheme of customs' duties, had been submitted to the review of parliament; and the general principle of the changes then effected was, to remit the duty on raw materials, and to subject foreign manufactures to a duty of twenty per cent. Notwithstanding the fears of a falling revenue, those remissions were carried further: in 1844, the duty on wool was altogether reduced; in 1845, the duty on cotton-wool. Almost the only articles of the nature of raw material still subjected to duty were timber and tallow; and he now proposed to reduce these. Tallow, which was chiefly imported from Russia, had a duty on it of 3s. 2d. per hundred weight; he proposed, mainly with a view to our own interests, and partly to induce Russia to follow our liberal policy, to reduce it to Is. 6d. With respect to timber, he could not yet state particulars, as the details needed careful adjustment. The course which government would probably take would be a gradual reduction of the existing amount of duty, where it should rest a certain time lower than at present: the reduction being so apportioned, if possible, as to prevent any derangement of internal trade by inducing parties to withhold the supply of timber, in the hope of realising a large amount of duty; and yet at the same time, as the importation of timber from the Baltic partook in some respect of a monopoly, care would be taken that the reduction of duty should be an advantage, not so much to the producer as to the consumer. Having given the manufacturer the advantage of a free command, without any impost, of the raw materials which enter into his fabrics, he should call upon the manufacturers of the three great articles which entered into consumption as the clothing of the great body of the community, to give a proof of the sincerity of their convictions as to the impolicy of protective duties, by consenting to relax the protection on their manufactures. These three great articles were linen, woollen, and cotton manufactures; and he asked the manufacturers of these at once to set the example to others, by relaxing, voluntarily and cheerfully, the protection they enjoyed. It should not be said, that he considered only the "great interests," and injured the minor interests. As the case now stood, the great articles of the cotton manufacture, such as calicos, prints, &c., were subject to a duty of 10 per cent, on

importation; while cottons made up, as cotton stockings, &c., were subject to a duty of 20 per cent. With respect to the former articles, he proposed that they should be duty free; and that the duty of 20 per cent, on the manufactured articles of cotton in a more advanced state should be reduced to 10 per cent. He proposed also to call on the manufacturers of linen and woollen to relinquish protection on the coarser manufactures used in the clothing of the great body of the people. There would be some loss to the revenue; but he believed that the importation of some articles competing with the production of our manufacturers would stimulate their skill; and, with the capital and enterprise of this country, he did not doubt but they would beat foreign manufactures. At present woollen goods which were made up were subject to a duty of 20 per cent.: he proposed they should be reduced to 10 per cent. Flax was a raw material, he continued, imported free of duty: the duty will be taken off the coarser manufactures; on the finest and made up kinds it would be reduced one half. Silk enjoyed apparently a protection of 30 per cent., practically ranging indeed to 78, or even 145 per cent, on some made up articles, such as net and bonnets, or turbans: but a false reliance was placed on that protection. It was a delusion: many houses in London and Paris undertook to introduce silken goods into this country at half the duty. The revenue and the trade were robbed by the smuggler; and the manufacturer was deluded by an unreal protection. With respect to silks, he proposed, therefore, to adopt a new principle. The general rule would be, enumerating each article of silk manufacture, to levy a duty of so much per pound, giving an option to the custom-house officers of levying for every £100 value of silk, a duty of 15 per cent. Sir Robert Peel went on to explain the reduction of duties on paper-hangings, carriages, metal manufactures, soap, &c., most of which articles are noticed in a subsequent page. By the measure of 1842, he continued, the tariff was greatly simplified. There were one thousand articles still on the list, five hundred of which were free of duty: he proposed that many other articles should be relieved from duty. Brandy and foreign spirits were to be reduced from 22s. 10d. per gallon to 15s. With respect to sugar, he could not enter into details; and he feared his proposition would not satisfy all parties. He would still exclude slave-labour sugar; but on free-labour sugar, the differential duties would be reduced from lis. 8d. for clayed sugar, to 8s.; for Muscovado, from 9s. 4d. to 5s. 10d. He next came to the articles connected with agriculture; first taking those not immediately used as food for the people. On leek and onion seed, he said, the duty was 20s. per cwt.: he proposed to reduce it to 5s. With reference to maize, or Indian corn, he proposed that the duty upon it should hereafter and immediately be nominal. By removing this duty he did not conceive that he was depriving agriculture of any protection. Maize was generally used in the United States, and partly for human food: and he believed that, though it was disregarded in this country, on parts of the Continent it was made into excellent food. His object in providing for its free importation was the better feeding of cattle, which would be an advantage rather than a detriment to the agriculturist. Buck-wheat was to be subject to the same rule: maize and buck-wheat, and the flour of these corns, were to be admitted duty free. “Rice feed,” as a substitute for the expensive article of linseed-cake was also to be introduced, for the better feeding of cattle, duty free. He now came to the food of man. He feared that his proposal would not satisfy both sides—those who insisted on protection, and those who insisted on its total abolition.

He could assure both that his desire was, without any favour or undue partiality, to suggest that which he believed to be just, and calculated to terminate that conflict, the continuance of which all must regret. He considered that it was for the public advantage, at least, to lay the foundation of a final settlement of this question; but he was not about to propose the immediate repeal upon grain. But first he explained his course with reference to other articles. Butter, the duty of which was 20s. per cwt., hops £4 10s., and cured fish 2s., were each to be reduced one half. On those articles which constituted meat as distinguished from grain, namely, fresh or salted beef, salt or fresh pork, potatoes, vegetables of all sorts, and un-enumerated articles of the kind, he proposed a total repeal. The duties on live animals also would be abolished. Some urged him to make a distinction in the importation of lean or fatted cattle, as it was unfair to levy an equal amount on both kinds: his proposal to admit materials for fattening cattle would meet that objection. He hoped that these advantages would be considered as somewhat a compensation for any immediate loss that might be felt by the introduction free of the other animals. He asked those connected with agriculture, while he was proposing these reductions, to bear in mind that he had already proposed the removal of protection from some of the great articles of manufacture connected with clothing in this country. He directed their attention not merely to the protection connected with the land, but asked them to remember that he had called on the manufacturers to set the first example of the relinquishment of protection. They would bear in mind that their farm servants and domestics would be able to command a cheaper supply of clothing; and they would, therefore, be disposed to follow the example of those whom he had called upon to make the first example of relinquishment. Sir Robert continued:—“I will now state, with the permission of the house, the proposal which I mean to make on the subject of grain. I propose that, from the passing of the act, some articles shall be admitted duty free. On the one hand, I do not propose the immediate repeal of the corn-laws; but in the hope of a final arrangement, of preventing undue apprehensions, and giving time for the adjustment of agriculture to the new state of circumstances, though I propose a temporary continuance of protection, I propose it on the distinct understanding, that, after the lapse of a certain time, foreign grain shall be imported into this country duty free. I am deeply convinced that any intermediate proposal would be of no avail. It would have been entirely out of my power to explain or to suggest any modification of the existing corn-law with a guarantee that it should be continued. The choice is either between the maintenance intact of the existing amount of protection in every particular, or laying the foundation for an ultimate settlement by means of ultimate freedom. I propose, therefore, a considerable reduction in the existing amount of duties; and I propose that the continuance of the duty so reduced shall be for a period of three years; that it shall then continue till that period of the year in which I believe there will be least inconvenience in the termination of that protection. I propose that on and after the 1st of February, 1849, oats, barley, and wheat shall be subject only to that nominal rate of duty which I have proposed to apply to maize and buck-wheat. But what shall be the intermediate state of the law during the continuance of these three years?” Sir Robert Peel then explained the duties on wheat, oats, and barley, which will be found in a subsequent page; after which, he stated that the arrangement of them would be accompanied by other provisions, calculated, if not to

give compensation, at least to advance the interests of the agriculturists. “Take,” he said, “some of the burdens on land, and see whether they are not capable of alleviation, not by their transfer to others, but by introducing reforms into their administration. Take that admitted grievance, the highway-rates. As railways advance, the parish highways will become of increased importance. There are 16,000 local authorities that have charge of these highways. There is a nominal surveyor to each parish—a surveyor who knows nothing about rates. Such a division of authority makes lax expenditure and bad management. An existing act of parliament authorizes the union of parishes for the management of highways; but the act is permissory—the union must be voluntary; and in very few cases has advantage been taken of the statute. I propose to make what is now voluntary, compulsory. Taking the scale of the poor-law, there will be 600 district authorities, instead of 16,000.” Further aid would be given to agriculture in loans of public money for improvement of estates, to persons applying for assistance; the public to be secured against ultimate loss. The loans were to be made by the exchequer-bill commissioners, and the administration of the measure entrusted to the newly-appointed inclosure-commissioners; the preliminary expenses to be borne by the applicant for aid. An annual repayment by instalments was to be secured as a rent-charge, having priority over other charges; but the commissioners would have the discretion left to them of allowing objections made by parties already having a charge on the land. This alteration, Sir Robert said, he believed would lay the foundation for great agricultural improvement throughout the country. He further proposed to relieve the counties of the whole expense of prisoners, and place it upon the consolidated fund: the charges of that fund to be subject to periodical review in the house. The estimated cost of that change was £64,900. In England half the expense of the prosecutions, in Scotland all, is paid by the treasury: he proposed to make the treasury pay the whole in England and in Ireland. The relief would not be great; but it would be of importance, as giving greater control over prosecutions: the estimated expense in England was £100,000; in Ireland, £17,000. At present part of the police force in Ireland was borne by the land: he proposed to impose the whole expense on the state. He proposed, also, that government should bear a share in the cost of medical relief under the new poor-law act; half to be defrayed by government, half by local authorities—the estimated cost was £100,000 for England, and £15,000 for Scotland. Aid also would be given in providing education in workhouses; the unions to appoint, and government to pay the schoolmasters. The expense of this would be £30,000. Finally, government proposed to pay the poor-law auditors in England and Ireland, which would cost £15,000. Sir Robert concluded by thanking the house for the patience with which they had listened to his financial exposition.

A long and desultory conversation followed this explanation of the ministerial measure of free trade; several members avowing their determined hostility, and others promising unlimited support. At the suggestion of Sir Robert Peel, Monday, the 9th of February, was fixed for the day on which the discussion should commence. In order to enable the reader to understand rightly the reductions and alterations proposed in the tariff, it is necessary to glance at the resolutions proposed by Sir Robert Peel in committee of the whole house on the customs and corn act. The first

resolution related to the importation of corn, grain, meal, or flour, setting forth the duties to paid until the 1st day of February, 1849, when the duties were wholly to cease. Thus, on wheat, when under 48s. per quarter, 10s. duty was to paid; and this duty was to be lowered Is. on the rise of wheat up to 53s., when there was to be a duty paid of 4s. for every quarter. Barley, oats, rye, peas, and beans, wheat-meal and flour, barley-meal, oatmeal, rye-meal, pea-meal, and bean-meal were by tire same resolution, taxed in equal proportion, until the 1st day of February, 1849, when these duties were likewise to cease and determine; or, at least, to pay only a nominal duty of 1s. per quarter on wheat, let the price be what it might, and the other corn in proportion to its value. By the second resolution, in lieu of duties of customs then chargeable on certain articles, reduced duties were, from the passing of the bill, to be exacted. These articles consisted of what might be termed the necessaries and luxuries of life; and the duties were reduced on some to the amount of one hundred per cent. The articles enumerated in the resolution were agates, or cornelians; ale and beer; almonds; amber (manufactures of); arrowroot; band-string twist; bailey, pearled; bast-ropes; twines, and strands; beads: coral; crystal; jet; beer or mum; blacking; brass manufactures; brass (powder of); brocade of gold or silver; bronze (manufactures of); bronze-powder; buck-wheat: butter; buttons; candles; canes; carriages of all sorts; casks; cassiva-powder; catlings; cheese; china or porcelain; cider; citron; clocks; copper manufactures; copper or brass wire; cotton; crayons; crystal (cut and manufactured); cucumbers; fish; gauze of thread; hair, manufactures of hair or goats' wool, &c.; hams; harp-strings; hats or bonnets of straw, silk, beaver, felt, &c.; hops; iron and steel, wrought; japanned or lacquered ware; lace, made by the hand, &c.; latten-wire; lead (manufactures of); leather (manufactures of)—calashes, boots, and shoes, of all sorts; linen, or linen and cotton, viz., cambrics, lawns, damasks, &c.; maize, or Indian corn; musical instruments; mustard-flower; paper, painted or stained paper, &c.; pencils, lead and slate; perfumery; perry; pewter; pomatum; pots of stone; puddings and sausages; rice; sago; seeds, garden, &c.; silk (manufactures of), &c.; silkworm gut; skins (articles manufactured of); soap, hard and soft; spa-ware; spirits, viz., brandy, geneva, and other foreign spirits, &c.; steel manufactures; tallow; tapioca; tin; tobacco; tongues; turnery; twine; varnish; wafers; washing-balls; wax (sealing); whipcord; wire; woollen manufactures. If any of the articles here enumerated was the production of a British possession, they were to be admitted at a reduced duty. Thus, while the woollen goods of foreign countries were to pay £10 for every £100 value, those of British possessions were only to pay £5. By a third resolution the duties of customs, chargeable upon certain goods, wares, and merchandise imported into the United Kingdom, were to cease and determine. These goods, wares, and merchandise were—living animals: viz., asses, goats, kids, oxen, and bulls; cows, calves, horses, mares, geldings, colts, foals, mules, sheep, lambs, swine, and hogs, and sucking-pigs; bacon; beef (fresh and salted); bottles of earth and stone; casts of busts, statues, or figures; caviare; cranberries; cotton manufactures, not being articles wholly or in part made up, not otherwise charged with duty; enamel; gelatine; glue; hay; hides, tawed, curried, or in any way dressed, not otherwise enumerated; ink for printers; inkle (wrought); lamp-black; linen, manufactures of linen, or of linen mixed with cotton, or with wool, not particularly enumerated, or otherwise charged with duty, not being articles wholly or

in part made up; magna-grocia ware; manuscripts; maps, and charts; matresses; meat, (salted or fresh), not otherwise described; medals; palmetto-thatch manufactures; parchment; pens; plantains; potatoes; pork, fresh and salted; silk, thrown or dyed, viz., silk, single or tram, organzine, or crape-silk; thread, not otherwise enumerated or described; woollens, viz., manufactures of wool, not being goats' wool, or of wool mixed with cotton, not particularly enumerated or described, not otherwise charged with duty, not being articles wholly or in part made up; vegetables, all, not otherwise enumerated or described; and vellum.

Sir Robert Peel announced the intentions of government with respect to the reductions in the timber duties on Tuesday, the 10th of February. He was anxious to make the statement at the earliest opportunity, on account of the importance of the subject, and as the American mail was on the eve of sailing from Liverpool. "We propose," he said, "to make ultimately a reduction in the differential duty on foreign timber, so that the duty shall remain after the reduction at 15s., instead of the present amount. I think on hewn timber the duty is now 25s.; we propose to reduce it 15s. But, with the view of insuring to the consumer as great a benefit as possible, the Baltic timber-trade partaking now very much of the nature of a monopoly, in consequence of the very great demand for it, we do not propose that the reduction shall be immediate. We propose that from the 5th of April, 1847, the period of the year we think most suitable for making a reduction of duty, the duty on hewn timber shall be reduced by 5s.; and on the 5th of April, 1848, by another 5s. With respect to sawn timber maintaining the same proportions, the reduction of duty ought to be 6s. on the 5th of April, 1847, and another 6s. on the 5th of April, 1848. With respect to the smaller description, such as lath-wood, spars, and oars, the reduction will be proportionate."

Such were the great measures of free-trade brought forward by the government. By the people they were not met with any national demonstration, or by any well-pronounced declaration. The signs of the prevalent opinion, however, were well seen in various quarters, particular as well as general, official as well as popular. Meetings were held in various parts of the country, but success was very partial; and if there was no enthusiastic and unqualified manifestation of the abolition of the corn-laws on the part of "the country," the opposition to it proved, to be disjointed and petty in the extreme. In parliament the Conservatives put forth all their remaining strength to check the onward progress of free-trade. On the 10th of February, the day fixed for the resumption of the discussion, a "monster debate" commenced, which, as will be seen, continued for some weeks. It was brought on by Mr. P. Miles, who, on the motion that the house resolve itself into a committee, moved that it should do so on that day six months. The measure was further opposed by Lord Norrys, Sirs W. Heathcote and J. Walsh, and Mr. W. S. Lascelles: Lord Sandon and Mr. Cochrane, both of whom were Conservatives, supported it. Lord John Russell proceeded to discuss the mode in which Sir Robert Peel had treated the question. With the principles of the measure he agreed; but he advocated immediate abolition of the corn-laws, and hoped that Sir Robert Peel would reconsider that part of his plan. His lordship concluded by drawing a contrast between the disinterested support which the Whigs were now giving to the free-trade measures of a Tory

government, and the factious opposition which the Tories gave to the same measure when proposed by a Whig government. He thought that if the free-trade measures of the Whig government had been allowed to pass when originally proposed, much of the sufferings of 1842 would have been avoided; and that if Sir Robert Peel had then been true to himself, he would have escaped, much of the invective now heaped upon him. After a few words from Sir Robert Inglis and Captain Fitzmaurice in support of the amendment, and from Mr. S. Herbert in favour of the measure, he having "changed his opinion on the subject," on the motion of Mr. S. O'Brien, the debate was adjourned. The debate continued by adjournment up to February 28th, before any division or amendment took place: the opposition wishing to stop it on the very threshold. On the last night of the debate the house was addressed by Mr. Cobden, who complained that extraneous matter had been introduced into the discussion to a greater extent than had ever been introduced previously into any corn-law debate. The two main topics, he said, on which it had turned, were the conduct of ministers and the propriety of an appeal to the country. The people of England believed that the discussion on the first topic was a quarrel got up for no other purpose than to evade the real question, and to conceal from public observation that there was no justification for the corn-laws. He assured their opponents that the more they covered ministers with obloquy, the more sympathy they would obtain from the country. In point of fact they were making ministers popular: if Sir Robert Peel were to visit the manufacturing districts, his march through them would, be one continued triumph. Even Sir James Graham, who had rendered, himself unpopular by certain measures, by his magnificent contribution to free trade, and still more by the nightly attacks which had been made upon him during this debate, had become an object of popular sympathy in Manchester and Liverpool. As to the wish of the protectionists to appeal to the country, nobody knew better than they did, that they had no chance of obtaining a majority at the next election. Three months ago he had said that the advocates of a free trade had no chance of obtaining that majority; but now that the protectionists were a broken party, and had lost all the talent and intelligence which formerly directed their tactics, the case was altered, and it was they who had now no chance of success in an appeal to the constituency. Speaking of the intelligence of the people on this subject, Mr. Cobden remarked:—"I will tell you what my thoughts were, as T sat at home patiently reading these debates. As I read speech after speech, and saw the fallacies which I had knocked on the head seven years ago reappearing afresh, my thought was, What fun these debates will afford the men in fustian jackets! All these fallacies are perfectly transparent to these men; and they would laugh at you for putting them forward. Dependence on foreigners! Who in the world could have supposed that that long-buried ghost would come again to light! Drain of gold! Wages rising and falling with the price of bread! Throwing land out of cultivation, and bringing corn here at 25s. a quarter! You forget that the great mass of the people now take a very different view of these questions from what you do. Seven years ago they gave in to your reiterated assertions that wages rise and fall with the price of bread. You had a very fair clap-trap against us, as we happened to be master manufacturers, in saying that we wanted to reduce wages. But the right honourable baronet at the head of the government, and the right honourable baronet, the home-secretary, are not suspected by the English people of having such motives

on these questions. The English people have no disinclination to refer to high authorities on these matters. They assume that men high in office have access to accurate information; and they generally suppose that those men have no sinister motive for deceiving the great body of the people on a question like the present. You see I do not underrate the importance of your leaders having declared in favour of free trade. On the contrary, I avow that that has caused the greatest possible accession to the ranks of the free traders. Well then, the working classes, not believing that wages rise and fall with the price of bread, when you tell them that they are to have corn at 25s. per quarter, instead of being frightened, are rubbing their hands with the greatest satisfaction. They are not frightened at the visions which you present to their eyes of a big loaf, seeing they expect to get more money, and bread at half the price. And then the danger of having your land thrown out of cultivation! Why, what would the men in smock-frocks in the south of England say to that? They would say, 'We shall get our land for potato-ground at ½ d. a lug, instead of paying 3d. or 4d. for it.' These fallacies have all been disposed of; and if you lived more in the world, more in contact with public opinion, and less within that charmed circle which you think the world, but which is anything but the world—if you gave way less to the excitement of clubs, less to the buoyancy which arises from talking to each other as to the effect of some smart speech in which the minister has been assailed, you would see that it is mere child's play to attempt to balk the intelligence of the country on this great question, and you would not have talked as you have talked for the last eleven days." Mr. Cobden proceeded to discuss the effect of the march of free trade on farmers; proving to demonstration that they were not alarmed by it, and that they were at the very time the discussion was going forward, and with a certainty of the repeal of the corn-laws in prospect, taking farms at a higher rent, and engaging to drain lands at great cost. Speaking of public opinion on protection, he said:—"What is this boasted protection? The country has come to regard it as they regard witchcraft—as a mere sound and a delusion. They no more regard your precautions against free-trade than they regard the horse-shoes that are nailed over stables to keep the witches from the horses. They do not believe in protection; they have no fear of free-trade; and they are laughing to scorn all the arguments by which you are trying to frighten them. How can protection, think you, add to the wealth of a country? Can you by legislation add one farthing to the wealth of a country? You may by legislation, in one evening, destroy the fruits and accumulations of a century of labour: but I defy you to show me how, by the legislation of this house, you can add one farthing to the wealth of this country? That springs from the industry and intelligence of the people of this country." In conclusion, Mr. Cobden called upon the protectionists cheerfully to make concessions for the good of the community. The debate was closed by Lord George Bentinck, who condemned the proposition of government as vicious in principle, and likely to be deeply injurious, not only to agriculturists, but to all the great interests of the country, On a division, the amendment was negatived by a majority of three hundred and seven against two hundred and forty.

This great fact was now apparent to all men. The Conservatives, however, did not yet give up the struggle, though they fought as men in despair. Having failed in

defeating the measure in the whole, they sought to defeat it in its details. On the house resolving itself into committee on the customs' acts, amendment after amendment was moved by them; and when these were all negatived, they commenced another struggle to defeat the second reading. A division on the second reading took place on the 28th of March, which was carried by a majority of three hundred and two against two hundred and fourteen. Nor yet was the battle won. As if exhausted by the struggle, both parties rested awhile from the strife; but it recommenced on the 5th of May, on a motion that the house resolve itself into a committee of the whole house on the corn-importation bill. This was opposed by Lord George Bentinck, who was considered as the champion of protection; he moved that the speaker do leave the chair that day three months. No division took place on his lordship's amendment, and the house resolved into committee on the corn-law importation act. Amendments were moved on some of its clauses, but they were all either negatived or withdrawn; and by the 9th of May the report was brought up. Sir G. Burrell moved that the report should be received that day six months; but after a long discussion, which was more distinguished for personal attacks than for sober argument, the amendment was withdrawn, and the bill was ordered to be printed, and to be read a third time on the 12th. The third reading was on that day moved by Sir James Graham, and the final struggle in the house of commons on this great subject commenced. The Marquis of Granby moved that the bill be read a third time that day six months; and in doing so, he did not believe the measure would pass the legislature; but if it did, he hoped their anticipations of evil would prove inaccurate, and that the anticipations of Sir Robert Peel, however vague, would be verified. The debate on the third reading continued by adjournment up to the 16th of May, its opponents putting forth all their strength to defeat it—arguing and pleading for the corn-laws as though the very existence of England depended on their continuance.

On a division, the third reading was carried by a majority of three hundred and twenty-seven against two hundred and twenty-nine, and the bill was then read a third time, and passed amidst loud cheering.

The report of the customs' duties bill was brought up in the commons on Monday the 18th of May, and though strenuously opposed by Lord George Bentinck, and others of his party, was agreed to without a division; and on the morrow it was read a third time without either discussion or division, and passed.

On the 18th the corn-importation bill was introduced into the lords by the Duke of Wellington, who moved its first reading. The Duke of Richmond said that he could not permit the bill to be read even a first time without entering his protest against it. The first reading was carried without a division, the Duke of Richmond being the only peer who expressed dissent. The Duke of Wellington gave notice that he would move the second reading of the bill on Monday the 25th. This motion was introduced, however, on that day by the Earl of Ripon. The Duke of Richmond moved that the bill be read a second time that day six months; feeling it to be a measure likely to inflict a deadly blow upon British agriculture and the national greatness. The debate continued by adjournment up to Thursday the 28th of May, most of the peers being anxious to deliver their sentiments on this great subject. Lord Ashburton justified the

principles of protection. The system of protection, he said, was founded upon three grounds: it was necessary in order to secure industry; it secured us against dependence on foreign countries for food; and there were peculiar burdens upon the land, for which landowners were entitled to compensation. The debate was closed by the Duke of Wellington, who justified the measure in an emphatic speech, and warned their lordships, that if they rejected it, it would only be to have another brought before them. On a division, the second reading was carried by a majority of two hundred and eleven against one hundred and sixty-four.

The customs' duties bill was read a first time, after the stern opposition of the Duke of Richmond, in the house of lords, on the 20th of May. The second reading was moved by the Earl of Dalhousie on the 4th of June; in doing which is lordship stated generally the ground on which it was based. The noble lord went through the detail of the several articles of the tariff on which reductions were proposed, and concluded by repudiating the notion that the measure was one of pure free trade, and therefore did not go far enough: it was no free-trade measure at all; but one for the removal of prohibitive, and the gradual repeal of protective duties. The Duke of Richmond said, that after the decision to which their lordships had come on the corn-importation bill, he felt it was little use to trouble them with any remarks; and therefore he should content himself with moving that the bill be read a second time that day six months. After a few words from the Earl of Wicklow and Lord Ashburton against the bill, and from Earl Grey and Lord Monteagle in its support, the bill was read a second time, and ordered to be committed on Monday week. Before proceeding with the tariff, however, their lordships went into committee on the corn-importation bill. The first night of the committee's sitting was Friday, June 12th; and the opponents of the measure brought forward so many amendments, that the several clauses were not gone through till the 19th. On that day, after all the amendments had been negatived, it was arranged that the report should be brought up on the 22nd; that afterwards the tariff bill should be proceeded with, as far as possible, and continued on the following day; and that on the 25th the corn-bill should be read a third time. In accordance with this agreement the report of the corn-bill was brought up on the following Monday, and the house went into committee upon the tariff-bill. Several amendments were proposed and negatived, and at length the opponents of the measure gave up the contest. On the following day the bill was reported without amendments, and ordered to be read a third time on Thursday with the corn-importation bill. Upon the motion for the third reading of these bills several noble lords, in opposition, urged their previous arguments, and entered their solemn protests against them; but all opposition was futile: they passed their final stage triumphantly, and on the morrow, Friday, the 26th, the royal assent was given to them by commission, and they became laws.

Thus triumphed Sir Robert Peel. Yet with his triumph as a patriot came his downfall as a minister. Simultaneous with these great and twin measures, the corn-bill and the customs-bill, he had brought in a protection life-bill for Ireland. The premier, in bringing in this bill, was aware that the Whigs, who had supported him in his great free-trade measures, would be to a man adverse to any coercive measure for that country; and his only hope of success was that those of his recent colleagues

whom he had so grievously offended by striking the final blow at their darling measure, the corn-laws, would forget their resentment, and act according to their conscience, in a matter which, under ordinary circumstances, and according to their usual policy, would have obtained their hearty support. That hope was vain. They, his former stanch adherents, considered that government had forfeited all claim to their confidence, and therefore declined “to supply them with unconstitutional powers.” The protection life-bill was thrown out by the commons—the Tories uniting with the Whigs, that they might crush a man whom they had idolized—by a majority of seventy-three, although it was urged by stern necessity, and enforced with the whole weight of a triumphant cabinet. On the day after the triumph of the corn-bill and the customs-bill, the premier went down to Osborne-house to tender the resignation of his ministry, in his retirement he carried with him the sympathy and admiration of the great body of the people. All felt that he had not only benefited England by these great measures, but all the world. Nor must the name of Cobden be forgotten in this achievement. The retiring premier, indeed, nobly attributed the whole triumph to that long-tried champion of free-trade. But the names of Peel and Cobden will ever be associated in the annals of the country, as the names of those who struck the final blow at laws which enriched the few at the cost of the whole population.

CHAPTER LVIII.

{VICTORIA. 1846}

Position of the Conservative Party on the Defection of Sir Robert Peel, and the Parliamentary Success of his Free- Trade Measures..... Formation of a Whig Cabinet..... The Sugar Duties..... Dreadful Condition of Ireland..... Decline of Mr. O’Connell..... The Young Ireland Leaders..... Colonial Affairs..... War with the Sikhs..... Foreign Affairs..... Coolness with France..... Spanish Marriages

POSITION OF THE CONSERVATIVE PARTY ON THE DEFECTION OF SIR ROBERT PEEL, AND THE PARLIAMENTARY SUCCESS OF HIS FREE-TRADE MEASURES.

{A.D. 1846}

The adoption of a free-trade policy by Sir Robert Peel disorganised the conservative party, then more frequently designated Protectionist. The chief difficulty arose from the scarcity of talent in its ranks, and, therefore, the apparent impossibility of procuring a leader. At last the commons and the country were startled by the announcement of a new conservative chief in the person of Lord George Bentinck. So unfavourable were the antecedents—at all events, the immediate antecedents—of this nobleman, that the announcement of his name as the leader of the Protectionists excited the mirth of parliament, which found a loud echo in the country. After the public press had lampooned him—the _Times_ scarcely condescending to launch its thunders, only allowing a distant rumble to be heard—after the _Examiner_ had exhausted its pungent and polished satire, and _Punch_ had caricatured the noble

member for King’s Lynn, and while yet his own party scarcely ventured to hope anything from his leadership, Lord George proved himself an orator and a debater, a party tactician, and an energetic, vigilant, intelligent chief of opposition. Perhaps no public man ever burst so suddenly upon the house of commons as a leading party politician. He had been well known as a member of parliament, had conciliated general esteem, and won extensive respect, as a private gentleman, from both sides of the house; but as a politician he had scarcely been noticed, nor had he taken any pains to make himself felt in debate: his irruption, so to speak, upon the ranks of the ministerialists, was sudden and effective. Mr. Disraeli has written an elaborate memoir of the noble lord, which exaggerates his capabilities and achievements, and in a style less eloquent than showy, holds up his policy to the admiration of his country. Mr. Disraeli, however, pays in many respects a tribute that is no more than just to the memory of Lord George, and his book affords material for an impartial judgment. At that period the noble lord was a distinguished patron of the turf: all England knew him as a sporting gentleman, a first-rate judge of horses, and an extensive winner on the course. In allusion to his habits in these respects, it became a popular sneer that the Conservatives required “a stable mind,” after the versatile performances of Sir Robert Peel, and they had at last found such in Lord George. But although his whole mind had apparently been given up to the turf, it was not actually so. He had been a member of parliament for eighteen years, and was a shrewd observer of party, as he was of men and things in general life. Before entering parliament he had for three years served as private secretary to Mr. Canning, whose sagacity was seldom at fault in the selection of persons of indisputable ability. The great statesman was connected with Lord George, for he married the sister of the Duke of Portland. The young nobleman’s powers of observation were such, that he was not likely to be in constant and intimate communication with such a man as Canning, without gleaning some political intelligence and experience. After Lord George entered parliament he remained for some time in the army, but gradually abandoned his military tastes for those of the turf, and his speculations in that direction were carried out on a scale of unprecedented magnitude. Politically, his sympathies and opinions appear to have been what might be designated Conservative-Whig. When the partisans of Mr. Canning left the Duke of Wellington’s administration, Lord George Bentinck ranged himself in opposition. Under Earl Grey’s administration, he sat on the ministerial side of the house. The Mends of Mr. Canning, who were associated with Lord Grey, entertained high opinions of Lord George’s talents for official and administrative service, so that he was requested to accept office, but he declined. These offers were repeatedly renewed, under the same auspices, and as often rejected. He desired to be unfettered in his parliamentary position, and freely gave up the chances of Downing Street for those of the race-course. He voted for the reform bill, and afforded a cordial and constant support to that and nearly every measure of the whig administration, until Lord Stanley abandoned the party. To that noble lord he was personally and politically much attached, and of Mr. Spring Rice, afterwards Lord Monteagle, he also had a high opinion; but no friendship nor influence was sufficient to retard what may be called his retrograde course: like his friend, Lord Stanley, he became less and less a Whig, and finally stood in the foreground of Conservatism. He was a warm supporter of the

Irish Roman Catholics, but did not appear ever to have understood their political tactics. His sympathy for what is termed Puseyism may have accounted for his leanings to the Irish Romanist party, although in this respect, according to Mr. Disraeli, “he was for the Established Church, and nothing more.” According to the same author he was a Whig of 1688. It is admitted that his personal prejudices were strong; but those who allow this maintain that he had no prejudice as to things, but examined all doctrines and theories with a strong common sense and a clear judgment. His painstaking to inquire after truth is much vaunted by his biographer; but his speeches as leader of the Protectionists do not reveal this quality,—for while no orator of the time, not even Sir Robert Peel, relied more upon statistics, or at least made a larger use of them, no advocate of any cause was ever more unfortunate in the data selected as groundwork for argument. Such was the man in whom the conservative opposition found a leader, when despairing of being again able to form an effective and organised opposition. It was on the 27th of February, 1846, that Lord George made his _début_ in his new capacity. His speech was excellent in everything but its logic. Modest yet courageous in manner, plain but not ungraceful in style, his address told upon the house. The tone, however, was too aristocratic for the place and the times, and his arguments proved that he had not mastered the controversy, into the midst of which he had so chivalrously launched. He brought forward numerous details; but his facts were, as they say in Ireland, “false facts.” He had not investigated the science of political economy, or the condition of the nation, but had only “crammed,” as they say in college phrase, for the occasion and the controversy. He had industriously read whatever was written, and listened to whatever was said on the side of protection, but had not followed the counsel of an ancient adviser—_audi alteram partem_; and the result was that even the most transparent fallacies of the Protectionists were uttered by him with an air of serious but honest importance, as if they were truths which he was raised up irrefragably to establish by new and original arguments. When a free trade in corn was at last sanctioned by the legislature, Lord George continued to offer an industrious, courageous, and ingenious opposition, and by the vigour of his mind and the incessant energy of his attacks, kept up the party life of the opposition, which he resuscitated and led. Lord George looked upon himself as the champion of a class; to save or serve the aristocracy, irrespective of the interests of the masses of the people, was, in his opinion, patriotism, and he was willing “to spend and be spent” in that service. Throughout the debates on the customs bill, and upon the measures of reduction of duties generally which Sir Robert Peel proposed, Lord George offered an animated and pertinacious, although unavailing opposition.

At this juncture the state of Ireland was melancholy in the extreme. Unlawful confederacies were formed among the peasantry and small farmers, and outrages of the most sanguinary character were perpetrated in the open day. Disaffection pervaded the masses of the Roman Catholic population, and language of daring menace was employed towards the government by the popular leaders of every rank, both in and out of parliament. Neither life nor property was safe, in any part of the country, except where the Protestants predominated. The loyal and peaceable petitioned for some measures of protection, and this class was indignant that the

government did not propose laws which would afford security to the well-disposed. Sir Robert Peel listened to these demands, and prepared a bill, known as the “life-protection bill,” which was very stringent in its nature, and proposed utterly to disarm the whole population, except under restrictions which would not be felt by the peaceable inhabitants, but would reach effectually the disaffected masses. This bill was at first supported by both the Whigs and Tories, acting under a sense of the common danger to society in Ireland, which would exist so long as the refractory populace had easy access to arms. The efforts to procure both fire and side-arms, all over the country, were extraordinary; this fact alarmed the Whigs, and made them feel disposed to support Sir Robert: the Conservatives were always ready to entertain repressive measures for Ireland. Both parties at last perceived that the tendency of the bill was to strengthen Sir Robert’s government, and, therefore, although they supported the first reading, they determined to give it, in its future stages, a determined opposition. The ground taken by Lord John Russell, as the whig leader, was, that if Ireland was criminal she was also oppressed; that measures of coercion and redress should proceed _pari passu_. He would not support repression, unless accompanied by relief. Lord George Bentinck, as the conservative leader, took different ground. He admitted that the state of Ireland was such as to require extra constitutional remedies, but such ought not to be entrusted to any but constitutional ministers; that Sir Robert did not advise her majesty in the spirit of the constitution, and he (Lord George) would not therefore confide so large a responsibility to his administrative discretion. The union of the two parties ensured the minister’s defeat, although the first reading was carried after seven nights’ debate. Sir W. Somerville, then a popular and influential member of the whig party, proposed an amendment on the 9th of June, when the bill was brought up for a second reading; the amendment was its postponement for six months, and was carried by a large majority. This decided the fate of the Peel administration. During the debate Lord George Bentinck gave an unhappy proof of his inaccuracy of statement and party spirit. He accused Sir Robert Peel of having made up his mind in favour of Roman Catholic emancipation, before he turned Mr. Canning out of office on that very question. This allegation was made in terms of the bitterest reproach, and was placed in such a form and light before the house, as, if true, must have left the impression that Sir Robert was a man destitute of all principle and honour. The following Friday, the 12th of June, the honourable baronet exculpated himself in one of the happiest speeches which he ever delivered in parliament. On this occasion Mr. Roebuck defended Sir Robert, and assailed Lord George with much justice and more acrimony; but the speech was well received by the house, and by the country, and increased the honourable member’s reputation as a debater and a politician. Mr. Hume, then in the zenith of his influence, followed up the blows so heavily dealt by Sir Robert and Mr. Roebuck. The efforts of Lord George’s followers to cover his disastrous defeat were feeble and fruitless. It was not until the 20th that the amendment proposed by Sir William Somerville on the 9th was carried, and on the 29th the announcements were made in the lords and commons that ministers had resigned. The Duke of Wellington made it known to the lords, as the ministerial leader in that house, and never was a similar communication so laconically delivered. Sir Robert made a long speech, vindicating his policy and his personal consistency, and declaring his unabated confidence in the measures in

favour of free-trade, which he had been enabled to carry, and which he averred would bring peace, contentment, and prosperity to the country. The farewell address of the minister was rendered still more remarkable than it otherwise would have been, by his announcing that the Oregon dispute with the United States had been amicably adjusted. This was well received by the house and by the country, although, perhaps, neither had given such attention to the nature of the differences between the two countries on that subject, or the character of the adjustment. The foreign policy of Sir Robert had neither been firm nor dignified, and the basis of the settlement of the Oregon dispute was simply concession on the part of England. There can be no great merit in a minister preserving peace by giving up everything, or nearly everything, for which he might have to go to war. On this principle our foreign politics would be easy enough to all administrations, and the only talent really necessary would be, the ability to persuade parliament that, in conceding what was justly ours, we saved the expense of defending it, and that such a course was wise, honourable, and statesman-like. The spirit infused into our foreign policy by Sir Robert, and which the Earl of Aberdeen too faithfully represented, proved, afterwards, costly alike to our resources and our honour.

On the resignation of Sir Robert, her majesty sent for Lord John Russell, and confided to him the task of forming an administration. His lordship succeeded in this object, and presented himself to parliament as first lord of the treasury and prime-minister, with Lord Cottenham as lord-chancellor, Lord Lansdowne as president of the council, Mr. Charles Wood as chancellor of the exchequer, and the three chief secretaries of state—home, foreign, and colonial—were Sir G. Grey, Lord Palmerston, and Earl Grey.

The public were not displeased with the formation of a whig ministry, although, had the parliament been dissolved upon the question simply of Sir Robert or Lord John, the former would have had an overwhelming majority. Some discontent was expressed with the prevalence of the Grey family in the cabinet—three members of that connexion in three of the principal offices gave too much patronage and influence to a single family, especially as their nepotism had brought discredit upon the late earl, even in the height of his popularity. The chancellorship of the exchequer, and the home and colonial secretaryships, being now in the hands of this aristocratic house, the departments, it was alleged, would be overwhelmed with scions and _proteges_ of the noble lord, the representative of the race. Some of the liberal journals sneered at the administration as “the Grey government” from the beginning, and prepared the minds of the more radical portion of the people for an administrative failure. The conservative press caught up the tone of the Radicals, and ridiculed the new whig government in similar terms, affecting to feel a constitutional alarm and jealousy at the prevailing influence of “the Grey sept.”

When Lord John appeared in the house as the head of the government, Mr. Duncombe, one of the members for Finsbury, a popular and patriotic commoner, challenged the premier to make a full and explicit statement of the principles upon which he intended to administer the affairs of the country. This appeal met with a noble response in a clear, manful enunciation of free-trade principles, justice to

Ireland, peace as far as that could be maintained in justice and honour, and the "maintenance and extension of religious liberty, which, together with its civil liberty, had made England conspicuous as one of the greatest nations of the world."

The first parliamentary measure introduced by the Whigs was a plan for the better regulation of the sugar duties. On the 20th of July Lord John introduced his plan, which he professed would meet the wishes and expectations of the producer, the consumer, and the treasury. His proposal was substantially a protective duty of twenty shillings the cwt. upon all foreign Muscovada sugar, to be diminished annually in a certain ratio, so that in 1851 it would be only fifteen shillings and sixpence, and after that year permanently fourteen shillings. This was a great advantage to the consumers as compared with the old prohibitory duty of sixty-three shillings, and the protective duty of twenty-three shillings and fourpence. Lord John met the objections of "the negroes' friends," as to the admission of slave-grown sugar, by showing that the exclusion of such sugar was impracticable, inasmuch as by treaty, states producing slave-grown sugar were entitled to demand its admission under "the most favoured nation clause." To conciliate the West-India interest, his lordship announced that it was his intention to introduce a bill giving the queen power to assent to any act of the West-India legislatures, modifying or abolishing the differential duties established there in favour of British goods. As these differential duties were only five or seven per cent., the West-India interest considered that his lordship mocked them by a show of concession. The whole of that interest was "up in arms," as their parliamentary and colonial opposition, moral and political, was described. This interest had not joined the Conservatives in resisting the repeal of the corn laws, but, nevertheless, it now supplicated conservative support in impeding the measures of the ministry. The English landed interest was anxious to strengthen itself by the aid of the West-India planters and merchants, and therefore affected to be generous, and to repay evil by good. Lord George Bentinck's boastful words were paraded before all monopolists to induce their co-operation with his party—"If we are a proud aristocracy, we are proud of our honour, inasmuch as we have never been guilty, and never can be guilty, of double-dealing with the farmers of England, of swindling our opponents, deceiving our friends, or betraying our constituents." The West-India party was happy to gain help from any quarter, and joined "the farmers' friends" in adopting Lord George Bentinck as their leader. The premier had proceeded by "resolution," as it is constitutional to do in all measures affecting the public revenue. When the resolution was reported, Lord George moved as an amendment, "That in the present state of the sugar cultivation in the East and West-India possessions, the proposed reduction of duty upon foreign slave-grown sugar is alike unjust and impolitic, as tending to check the advance of sugar produced by British free labour, and to give a great additional stimulus to slave labour." In support of this amendment the noble mover paraded a vast array of "facts and figures," which made a wonderful show of industry and knowledge; but his statistical statements were illusory as his logic was unsound. The awkward manner in which his amendment was expressed embarrassed his arguments and those of his party, justifying the description of him in the following passage of his memoir, written by Disraeli:—"He had not much sustained his literary culture, and of late years, at any rate, had not given his mind to

political study." Sir Robert Peel gave the government a qualified and hesitating support. He started so many objections to the government measure that the opposition might have fairly looked for his support, but he answered his speech by his vote. In the course of his oration he predicted evils which never came to pass, and after all that had occurred, even his own glorious triumph in repealing the corn laws, the speech proved that he was not only an unwilling reformer, but that he had not clear and fair convictions of the truth of the great principles of political economy, that he was still the man of mere political expediency, and almost as jealous as ever of all bold attempts at theoretical or practical reform. The support of Sir Robert, such as it was, saved the government, for on this question, at all events, he held the balance of power. The debate lasted through the nights of the 27th and 28th, the West-India interest affecting great horror of slavery, and depicting the encouragement the measure would give to that evil in terms of great and even pious alarm. Never did a party resort more scandalously to cant and hypocrisy to serve a purpose than this, on the memorable occasion of "the sugar debate." The resolution was carried, and a bill embodying it rapidly passed the commons, but was resisted in the lords with much tenacity of purpose. This was in a considerable measure the result of a remarkable petition presented to that house by Mr. Clarkson, of whom Mr. Wilberforce had been a disciple. Mr. Clarkson was a philanthropist and a Christian, but neither a political economist nor a politician. The Bishop of Oxford proposed an amendment, on the second reading, which would have virtually destroyed the bill; but the original motion was carried, and the remaining stages were unobstructed.

This was a most important measure to the comfort of the people and the commerce of the country. The government was logically and politically right; and the Whigs left the impression upon the country, by the bill itself, and the arguments by which they conducted it through the house, that they had been of late successful students in the important department of economics. A considerable stir among the wealthy and influential body of English citizens, the Society of Friends, was created, by the support which Mr. Bright, Mr. Crewdson, and others of the Quakers of the north of England, gave to the sugar bill. The body at large considered that support inconsistent with their professed principles. Mr. Bright, and those who took his views, eloquently defended themselves against the criticisms of the Friends, and Mr. George Thompson, the celebrated anti-slavery lecturer, espoused their cause with great ardour. Mr. Bright and his fellow-labourers of the Quaker persuasion were in a minority. The great body of the Friends disapproved of his conduct, and the old anti-slavery party throughout the country joined in the disapprobation. Mr. Bright was not a man to be deterred by friends or foes from pursuing a course which he thought right, and he persisted in giving to the government a very hearty and efficient support. The Manchester school accepted the bill with great favour, and upheld the ministry in carrying it. Large assemblages were convened in Manchester and the manufacturing districts, but especially in South Lancashire, Cheshire and Staffordshire, on behalf of the measure, and the various chambers of commerce and commercial associations passed resolutions or sent petitions in its favour. It was a good beginning for Lord John as premier, and conduced to the tenure of office which he was enabled to maintain.

THE CONDITION OF IRELAND.—DISTURBED STATE OF THE COUNTRY.—DISAFFECTION OF THE POPULACE.—FAILURE OF THE POTATOE CROP.—DISTRESS.—AGITATION BY THE YOUNG IRELANDERS.—DECLINE OF O'CONNELL.

Some notice has been taken of the condition of Ireland as leading to the dissolution of the Peel ministry. It is appropriate to resume here the thread of Irish history. The affairs of that country, politically and socially, became rapidly worse. From day to day the people of England were startled with tidings of fierce conflicts which faction waged, the disloyalty of the great majority of the people, the relentless cruelty with which the Ribbon Society exacted its victims, and the continued pressure of famine and sickness upon the physical life of the people. Ireland, so long conversant with misery, was still to taste the cup in all its bitterness. Everything meant for her good by the legislature brought with it some new form of evil, or aggravated some that existed. She had sought and obtained emancipation, but while her arms wore no longer a manacle, she still clanked her broken chain, and with it smote her benefactors or wounded herself. The removal of restrictions from commerce, effected by Sir Robert Peel, she regarded as an injury; the majority of Irishmen believed that the repeal of the corn laws was designed to enrich England at the expense of Ireland, and that it was the most fatal blow ever given to her agricultural and commercial prosperity. There were many enlightened Irishmen who advocated the repeal of the laws which made the food of the people dear;—of seven men who met in Manchester to form the anti-corn-law association, out of which sprang "the League," at least two were Irishmen. Perhaps the man to whom that cause was originally indebted, more than to any other, was Archibald Prentice of the city just named, a native of Scotland; but among his earliest and most earnest coadjutors were Irishmen. The merchants of the three principal cities in Ireland—Dublin, Cork, and Belfast—favoured Sir Robert Peel's law, especially those of the enlightened and enterprising town last named; but the Irish agriculturists, and the inhabitants of the country generally, resented it as a new Irish grievance! Lord George Bentinck did not misrepresent the feeling of the Irish people towards the free-trade movement, when he claimed the country, with some exceptions only, as on his side. Even the educational boon, so recently accorded by parliament, was regarded as a religious affront. "The Queen's colleges" were denounced by Mr. O'Connell and the priests as "godless colleges." In parliament he opposed, in Ireland he vituperated it.

A new phase of mischief gradually ripened during the year 1846. O'Connell had taught the people habits of political organisation, and while he had so wielded the masses thus organised as to prevent insurrection, he kept the government in continual alarm, lest some sudden outbreak should rend society and deluge the country with blood. The "agitator" professed to hold the doctrine of moral force in opposition to physical force; but while he proclaimed that the liberties of Ireland were "not worth the shedding of one drop of blood," and in long letters and speeches declared that whoever committed crime was his enemy, and the enemy of Irish freedom, he palliated those crimes, when committed, defended the criminals, shifted the blame to the Protestants, the local authorities, the government, the law, or the Saxon; and so wrote and spoke as was calculated to lead the perpetrators of outrage

to regard themselves as having an excuse for their crimes, in their own condition or that of their country. The general feeling of the disaffected in reference to Mr. O'Connell's exhortations of peace was, that he was only sincere so far as expediency dictated; that he had no other objection to physical force than his conviction that the prospects of success did not warrant recourse to it. Accordingly, whilst a great display was made of carrying out his "moral force" policy, and his "pacificators" were the ostensible preservers of the peace,—taking the credit themselves, or claiming it for their chief, of preventing an open insurrection,—murder, incendiarism, assault, and religious persecution were carried out in detail. When any were arraigned, no scruples were entertained as to the means by which conviction might be prevented; perjury, intimidation, and assassination were among these instrumentalities. When convicted, the criminal was regarded as suffering for his religion and country, although the crime for which he was condemned was some cruel and cowardly assassination, or attempt to commit such. "The liberal press," as the newspapers devoted to the agitation were designated, was filled with extenuations or denials of the culprit's guilt, and the most vengeful attacks were made upon all who sought to enforce the laws, and preserve peace and life from the ruffian hands of the Ribbonmen, and "the moral force agitators." Lord John Russell has often resorted to _finesse_ in his parliamentary tactics which has not always done him honour, but he never erred in this respect more egregiously than when, withdrawing the Irish arms bill, he reported that the law had its unimpeded course, that juries did their duty, and that crime was effectually restrained. So far from juries doing their duty, it was difficult in the provinces to obtain convictions, where a portion of the jury were O'Connellites, if the person before them was arraigned for an agrarian offence, or an outrage against the persons of those who were loyal. Neither Whigs, nor Protestants who were politicians of a school yet more free, nor liberal Roman Catholics who respected the law, or enforced their rights as landlords, were spared by the secret societies, any more than the most rabid Tories or the most flaming Orangemen. A reign of terror prevailed through the country; the perpetrators of outrage were everywhere, and the popular masses sympathised with them. An illustration of the state of things then prevailing was afforded in the following paragraph from the _Illustrated London News_ of the 21st of February, 1846:—

"On Friday (last week) Bryan Seery was executed at Mullingar. The conviction took place under the following circumstances:—Some time since Sir Francis Hopkins was shot at by a man in Westmeath; Sir Francis tried to seize the assassin, but he escaped; and afterwards Seery was captured. The sole witness to the prisoner's identity with the assassin was the prosecutor: the defence was the common Irish defence—_alibi_, which was of course sworn to stoutly, as it always is in Ireland. One jury could not agree to the verdict, two Roman Catholics standing out against conviction: a second jury condemned the man: efforts to procure commutation of his sentence failed, and he was left for execution. Seery, at the place of execution, solemnly denied his guilt. A circumstance highly characteristic of the feeling of the public occurred. The morning was calm—the sounding of bugles and peeling of drums were heard in all directions: there was a perfect cessation of business in the town. About ten o'clock all the shops were closed, and not a single human being was to be

seen in the streets—not one individual came in from the country. Thus the people determined to mark their opinion of this awful tragedy, for all regard Seery as a martyr. At eleven o'clock the military were paraded before the gaol, and not one human being appeared before the scaffold but themselves and the police. Even the magistrates of the county stayed away—not one of them appeared, except Mr. Uniacke, who walked up and down with Captain Despard. Under the imposing head of the 'Mullingar Tragedy,' the reporter of the _Dublin Freeman_ furnishes that journal with a long and highly-coloured account of the interment of Bryan Seery. The melancholy spectacle took place on Sunday, in the presence of vast multitudes of the country people, whose numbers were estimated by the writer to amount to fifty thousand or sixty thousand souls."

On other occasions the populace attended the execution of criminals in large numbers, and exhibited their sympathy by demonstrations of respect and of regret for their fate, speaking of them as "the blessed martyrs" for their religion, or their country, or both. An execution took place at Nenagh, in the county of Tipperary, early in June, which was thus noticed in a paper, neither unfavourable to the rights of the people, nor the exercise of the utmost clemency on the part of the government towards the misguided:—"Three men were executed at Nenagh on Friday (last week), pursuant to their sentences; two—namely, Patrick Hayes and Patrick Rice—for conspiring to murder the late Mr. Patrick Clarke; and one, named William Fogarty—for shooting at Mr. M'Donald, a steward in the slate quarries. An immense multitude collected to witness the scene. The three men were accompanied to the drop by Roman Catholic clergymen. They died after a brief struggle, having made no public confession of their crimes. A large police force of one hundred and fifty men, and a company of the 72nd depot, comprised the guard in attendance. All was quiet and peaceable, says a local paper, and nothing heard but the moanings of the friends of the culprits. After the usual time of hanging, the bodies were lowered into coffins, and given to the relations. The long respite obtained by these men whilst various points of law were urged in their favour, gave much additional interest to their cases."

Executions did not, however, extinguish the prevalence of crime, nor were the precautions of the executive sufficient to wrest the weapon from the murderous hand. A Galway paper, in "the liberal interest," recorded a murder near the junction of that county with the county of Clare, immediately after the execution at Nenagh, and various others of a similar character throughout the country. This atrocity was very much in character with those which disgraced the whole south and west of Ireland, and which, to a less extent, took place in the north and north-eastern portions of the land:—"We regret to state that, on the night of Thursday (last week), a barbarous murder was committed at a village near Woodford, in this county. The unfortunate object of the assassin's vengeance was a man named Pat Hill. Two persons came into his house, and brought him out of his bed to a place about forty yards distant, and there inflicted no less than forty-two bayonet wounds on his person, besides a fracture of the skull. His wife, hearing his screams, went to his assistance, and, having begged for mercy, she was told by the heartless ruffians that if she did not go away, she would herself be treated in a like manner. Having completed their purpose,

the miscreants, who are unknown, walked off, and their victim almost immediately expired. An inquest was held at Portumna, when a verdict of ‘Wilful murder’ was returned against persons unknown. Deceased was in rather comfortable circumstances, and bore a most excellent character.”

While disaffection, secret societies, fanatical intolerance, and wide-spread personal outrage cursed unhappy Ireland, the failure of the potato crop intensified every other form of evil to which the country was subjected. Very early in the year it was obvious to intelligent observers that the failure of 1845 would be exceeded in 1846. The distress developed itself very early. In February the Rev. W. B. Townend, rector of Aghadda, in the diocess of Cloyne, county of Cork, published a letter, in which he thus described the sufferings and the prospects of the people:—“In this part of Ireland we are in a frightful state—the humbler classes are all living on the contaminated potato; the sides of fields and gardens literally covered with rotten ones, thrown away. The detail of destruction is endless. That employment should be wanted for the people, while one-third of Ireland is as much waste as the woods in Canada, and the rest badly cultivated, not affording half labour, is a strange anomaly.”

Later in the year the Rev. J. B. Tyrwhitt, an English clergyman of the Established Church, settled in Keny, published an account of the sufferings and prospects of the people of the south and west of Munster, truly appalling. The reverend gentleman wrote in the celebrated Vale of Iverah, where the O’Connells held property, and exercised an almost absolute sway:—“The prospects of the people of this very poor barony, and all along from the River Kenmare, Sneem, Darrynane, to Cahirciveen, and thence towards Killorglin, is harrowing and startling. The whole potato crop is literally destroyed, while over a very wide surface the oat crop presents an unnatural lilac tinge to the eye; at the same time, in too many instances, the head is found flaccid to the touch, and possessing no substance. The barley crop, too, in many places, exhibits the effect of a powerful blight. In some places, also, where turnips have been grown, they present—as, indeed, has been the case in other parts of the county—a healthier exterior in top and skin, but, on being opened, are found deeply impregnated with a taint similar to that which has smitten the potato, to such an extent, that one cannot stand in the blackened fields without being overpowered by the offensive effluvia.”

From the county of Clare statements arrived in London, if possible, more appalling. Early in April pestilence manifested itself in various places, and the county of Tipperary was disturbed by famine riots, independent of the normal disturbances which subjected that county to such misery, and earned for it so terrible a reputation. At Clonmel food riots assumed a formidable appearance, and the military had to guard the flour mills. The Roman Catholic clergy exerted themselves successfully to soothe the minds of the peasantry, and prevent that increase of their sufferings, which would result from the plunder of private property. The peasantry of Ireland were not addicted to robbery, and whatever outrages fanaticism, political and religious, might goad them to commit, the necessities of their famishing wives and children alone could cause them to resort to plunder. Thus, at a large and peaceable

meeting of the peasantry in the county of Galway, at the end of April, they made this declaration:—“If employment be not immediately given, we can no longer stand the distress under which we are suffering.” Of course it was necessary to put down tumult and protect property, and very painful were the duties which in consequence devolved upon the civil and military power. _Ex uno disce omnes_. At Kilsheelan, between the counties of Tipperary and Waterford, an occurrence took place, which was described in the language of one of the leading journals of the south of Ireland in the following terms:—“On Thursday morning, in consequence of information received by the magistrates, they very prudently had cars stationed in the barracks for the prompt conveyance of the troops in case of necessity; and subsequent proceedings will show how very judicious and prudent their arrangements were. In a short time an express arrived in town stating that an immense mob was plundering the boats at Kilsheelan, within four miles of Clonmel, and forthwith a party of the 33rd got on the cars and proceeded to the scene of outrage, together with a party of the 1st Royal Dragoons, under the command of Major Galloway. Mr. J. Bagwell, Mr. W. Riall, Major Shaw, and Sub-inspector Fosberry accompanied them, and when within a short distance of the scene of plunder, word reached them that the robbery going on was most extensive. Mr. Fosberry and a mounted policeman immediately galloped on, and when they reached the spot, the scene which met their view is more easily imagined than described. An immense multitude were plundering the boats; a vast quantity of Indian corn, the property of Mr. Going, of Caher, was destroyed or made off with, and a quantity of wheat, the property of Mr. T. Hughes, was also stolen and destroyed. The military quickly came up, and a regular engagement took place. Stones were firing in all directions—several soldiers were struck; Mr. Fosberry received a blow of a stone in the leg, and it was not until some time had elapsed that this lawless rabble were subdued, and thirteen of them taken prisoners and brought into our gaol. Nothing could exceed the coolness of our magistrates, officers, and soldiers during this rencontre, and we are happy to say that a portion of the wheat was retaken.”

Such was the state of Ireland up to the harvest time of 1846, when, unhappily, all the fears of men, such as have been quoted, and the predictions of Sir Robert Peel, were fulfilled. There was another failure of the harvest; the crops of potatoes and oats suffered to such an extent as to increase, many fold, all the miseries previously experienced, and the dangers previously apprehended. Five millions, five hundred thousand tons of potatoes, and five millions two hundred thousand quarters of oats, below the average, was produced that harvest. The estimated loss in money, from the deficient produce of the year, was sixteen millions pounds sterling!

The efforts to mitigate these evils were manifold. Subscriptions were raised in every part of the British Isles, and, indeed, in every part of the British empire. From various places on the continent, especially France, donations were transmitted in either money or food. The Sultan of Turkey sent a generous contribution to the common stock of relief. From the United States of America supplies also came. The world might be represented as laid under contribution to relieve the miseries of Ireland. The government also made great exertions. Sir Robert Peel’s administration made secret and extensive purchases of Indian corn, which were sold, or distributed gratuitously, according to circumstances. By donations for public works, and “general

presentments," Sir Robert Peel also prepared for the coming disaster. He had expended in this way more than eight hundred thousand pounds, a little more than the half of which had been repaid by rates levied in Ireland under the powers intrusted to the grand juries. Lord John Russell, soon after he passed his sugar duties bill, made proposals to parliament calculated to meet the distress as it then existed, and in some measure to anticipate the relief which he foresaw would be required. He proposed to empower the lord-lieutenant to summon sessions of counties and of baronies, to consider the propriety of making public works for the relief of the poor, and to give to those sessions, under certain circumstances, authority to determine upon what works were desirable or necessary, which the board ot works would upon such decision execute. The imperial treasury was to make advances for carrying on these works, to be repaid in ten years at three and a half per cent, interest. Grants of £50,000 each would be made to certain poor districts which would be unable to repay advances. His lordship moved resolutions embodying these proposals, which were carried, and a bill founded upon them passed through both houses with the utmost rapidity. The introduction of these measures seemed to produce a good effect on Ireland, for crime and outrage abated. The ministers took advantage of this circumstance to claim great merit for their administration, and, on the 28th of August, when parliament was prorogued by commission, the speech delivered ascribed to her majesty great satisfaction in the relief so cordially provided by parliament for the Irish poor, and the beneficial effects produced. These tokens of returning peace were as the morning dew, which soon passes away, and the measures of parliament, notwithstanding their magnitude, were soon proved to be inadequate. The government acted, however, with generosity and courage, although their wisdom and administrative aptitude were not equally conspicuous. During a portion of the interval of the reassembling of parliament, in January, 1847, the government, unauthorised by parliament, expended a million sterling per month. The cabinet felt assured that parliament would indemnify and England approve. Immense supplies of Indian corn and other articles of food were carried by government steamers to such points of the coast as were convenient for their prompt dispersion to the interior. The labourers on the public works were paid from one shilling to one shilling and sixpence per day. In the county of Mayo, where the distress was peculiarly aggravated, nearly half a million sterling was expended in public works, in districts the Ordnance valuation of which was little more than half that amount. These works were unproductive, and baronies were pledged to their whole value, some for a year, and others for several years, in repayment of the grants, although the plan of repayment to the government was, that only half the amount advanced should be refunded. Many private individuals, both in Ireland and in Great Britain, exhibited a noble generosity; and the heroic self-sacrifice of clergymen, medical men, and others, in the midst of the famine and plague-stricken people, cannot be too much commended. The liberality and exertions of the Irish residents in England and Scotland was much to their own honour and to the reputation of their country. Notwithstanding all these exertions, the aid of the government and of private individuals was abused, and the annals of the world do not contain any narrative of ingratitude and selfishness more base than those which record the transactions of certain classes of the Irish people during that terrible crisis. Many of the landed

gentry took occasion to have their own fences and private roads repaired at the public expense, and there were few parts of the country where “public works” did not mean improvements of the domains, and the creation of roads to the mansions of the gentry. The Roman Catholic chapels, and the ways of access to them, were also treated as “public works.” The conduct of “the Board of Works” was far from unimpeachable, and men distinguished in her majesty’s service cut a poor figure in connection with the inquiries and discussions to which the modes of managing the public relief ultimately led. The moral effect of the charity was most injurious to the country, whatever its material advantage in the urgency of the occasion. This was exemplified in many ways. The peasantry were unwilling to bestow a fair amount of labour upon works of acknowledged utility, although paid nearly double the ordinary rates of wages; they lazily preferred public works, so that there was a scarcity of hands to gather in the imperfect harvest until the government partially withdrew its competition from the labour market. Considerable numbers of farmers, some of whom held as many as sixty acres of land, applied for tickets from the relief committees, and were placed upon the public works, thus drawing off the money from the legitimate objects of aid. Small farmers in numbers received gratuities of Indian corn and other food, whose means were such as ought in common decency and common honesty to have prevented such an application. The local committees acted with partiality and injustice, and numbers of the peasantry perished of starvation, while the greedy, who were not necessitous, preyed upon the public charity. In the county Clare, five thousand persons were struck off the lists of those who were employed by the labour rate, and who, it is scarcely necessary to add, rendered no return for the money they had received, for the ostensible labour was in these cases a sham. The most scandalous of all the exhibitions of want of probity which the crisis developed was the revival of efforts to procure arms. The peasantry, farmers, town-population—all of every rank—sought to possess themselves of weapons of war, especially fire-arms. The demand for powder and percussion-caps was as eager as for weapons. Birmingham was kept busy; every hand in the gun-making trades there was employed; Sheffield was also labouring at sword cutlery, and in the manufacture of daggers and bayonets; while the smithies of Ireland were extensively engaged in the manufacture of pike heads. The money expended by benevolent persons and by the government on the vast scale which the emergency and a noble compassion dictated, was employed to procure arms which those who purchased them intended to turn upon the hands that fed them as soon as opportunity allowed. Whatever thanks might be felt by the peasantry towards those who on the spot gave of their private store to mitigate the pangs of the sufferers, no gratitude was entertained to the British public or to the government. Starving Ireland armed to strike down her benefactors with weapons procured by the misuse of the boon which these benefactors had extended. However painful it may be to relate the story of such turpitude, truth constrains it: the Irish peasant begged, that he might arm against the charitable hand that succoured him. Persons actually perished leaving some, money, with which surviving relatives, in the depths of their misery, purchased arms. It was thought that no other opportunity so favourable would arise to turn the gold of the Saxon into steel, which might be pointed against his own breast. The object most at heart with the famishing crowds was the ascendancy of their religion, to be accomplished by the subjugation

of British authority; for this they famished and bought muskets and horse-pistols, powder and percussion caps, old swords and bayonets. To such an extent was this carried that in Clonmel, a town of about 18,000 inhabitants, and where the people rioted for food, as already recorded, nearly twelve hundred stand of arms were sold in a few days. These were purchased by the silver which the government Board of Works had paid in the charitable employment of the people on non-productive labour.

Much difficulty arose, in the distribution of gratuitous supplies of food, from the routine of the public offices. So complex were the details which the under-officials were obliged to observe, that men actually perished while a useless routine correspondence was being conducted. It was satirically said by an English observer, “the delivery of a few quarters of English corn to those who want it requires as much correspondence and documentary forms as a chancery suit.”

The refusal of grand juries to “present” was another obstacle to the prompt relief of the people. They were unwilling to carry into force the presentment act, because the money advanced should be one-half repaid, and, while held as a loan, be chargeable with interest. These bodies, which refused presentments on grounds that it was not desirable or necessary to make them, were amongst the most clamorous in the kingdom for their share of patronage in dispensing the money and food for which no repayment was to be made.

POLITICAL AGITATION.—YOUNG IRELAND.

During the progress of all this misery and turbulence, and while the government required to put forth all its energies to mitigate the one and suppress the other, Ireland was torn by political factions, and the voice of party was never for a moment silent. On previous pages the reader will find the state of Irish parties depicted as they stood in 1845. Throughout the year 1846 some new phases of the political spirit of the people were presented. O’Connell still declared that the only remedy for Ireland was the repeal of the union; and that while he gave a modified support to a whig government, so long as it sincerely attempted the melioration of Irish circumstances, he merely did so to prove that he was not a partisan, and in the hope of eventually bringing all men to believe that no effectual redress for the wrongs of Ireland was to be expected from the imperial legislature—that Ireland’s only hope lay in “a native parliament.” This the great agitator declared he would obtain by moral force only, if the people of Ireland abstained from rebellion, and preserved the moral attitude of a united demand for the repeal of the legislative union between Great Britain and Ireland. Gradually there arose in “the Repeal Association” a more spirited section, which went by the designation of “Young Ireland.” These men laughed at O’Connell’s moral force doctrines, or denounced them with disdain. At first they professed unbounded respect for himself, and an approval of his aims, but an irreconcileable antipathy to his measures. They maintained the right of all men to use arms in defence or in the assertion of liberty; proclaimed that Ireland was too noble a country, and the Irish too fine a race, to be subjected to a provincial _status_. “Ireland a nation—not a province,” so often proclaimed by O’Connell, became in earnest the watchword of this new and vigorous party. They derided the time-serving and place-hunting of O’Connell’s partisans, and declared that, by asking places from the

English government for his followers, O'Connell had corrupted and dishonoured his country. They also opposed "the rent," which O'Connell received as a tribute from the people, and a means of enabling him to employ various agencies for the prosecution of his labours. He had given up the practice of his profession, to him most lucrative, in order to devote himself wholly to what he believed to be the good of his country, and, accordingly, the people contributed liberally to enable him, as the leader of the Roman Catholics of Ireland, to hold his place without indignity in the face of the parliament and people of England. In theory this contribution was at all events creditable to the generosity and zeal of the Irish people, and no discredit to O'Connell himself. Nor can it be alleged with truth that he accepted it from mercenary motives, or used it selfishly. His fortune was small; his position required large expenditure; and it is notorious that the money he received was not hoarded, nor used to enrich his family, but employed for political and often charitable purposes which had the entire approbation of the donors. The Young Irelanders, however, at first furtively and anonymously, afterwards more or less openly, and, finally, in the columns of the newspaper press, and in the Repeal Association itself, stigmatised the rent as mercenary. This new party divided influence with "the Liberator" upon the boards of the Corn Exchange, and in public meetings generally, and was the cause of great distraction in the councils and operations of the Repeal Association. At first they treated O'Connell as conscientiously wrong-headed on the subjects of moral and physical force; but they gradually widened their ground of attack, and suggested that he was actuated by corrupt motives, not for his own advantage, but in order to obtain places for a host of needy adventurers who constituted what was termed his "tail." Finally, they denounced him as a coward, and the abettor therefore of a cowardly policy: that being afraid to place himself at the head of his armed countrymen, he affected to abhor bloodshed, and held out a hope which he knew to be delusive—that Ireland could conquer the restoration of her legislature by moral, in contradistinction to physical force.

Before noticing further the effect of these differences upon O'Connell and the Irish repeal party, it is desirable to glance at the character and talents of the leading Young Irelanders, as these men will occupy much prominence in the history of succeeding years. Thomas Davis was generally alleged to be the founder of this section of the repeal party. He was only a student in Trinity College, Dublin, when he first entered upon political life. He imbibed early in youth a passionate love of country, and retained it until his death, which, to the general regret, occurred in a few years after he had entered upon political life. Mr. Davis was a poet, although not of a high order; several specimens of good ballad composition are amongst his remains. He cultivated classic literature with success; as an antiquary and an historian acquired reputation; wrote energetically and fluently; spoke in public with earnestness and force, but had none of the graces of the finished orator, and he despised all "rhetorical artifices." In conversation he was persuasive, but in public debate deficient in this quality; and while he possessed courage to confront mobs, or dictators, as he did also to meet an armed host in his country's service, he was not characterised by that presence of mind in public discussion, so necessary for effective repartee and popular power. He was in religion a Protestant, and a member of the

Established Church; but it is obvious, from his various papers in connection with Irish affairs, that he was not a very earnest Protestant, and was entirely unacquainted with theological studies. His letters and speeches also show that he was not conversant with political economy, and that his social views were unsound. He was a man of many excellences, a true friend, an amiable companion, an honest and brave patriot, a gentleman, a scholar, and a _litterateur_.

The next most notable person among the leaders of the Young Irelanders was William Smith O'Brien. Like Thomas Davis, his integrity was indisputable. A member, and the representative of probably the oldest family in Europe, descended from the celebrated Brien Boroighome, who was monarch of Ireland in the twelfth century, he was proudly jealous of the honour of his lineage and of his name, and never did man bear a proud name with more unsullied honour than O'Brien. He mourned over the sufferings of his country with a tender and compassionate heart, and he ascribed these sufferings to bad government. It was his desire to remove all grievances by constitutional means, but his experience as a member of the imperial parliament led him to believe that Ireland never could receive proper legislative consideration until the union was repealed. Perceiving that O'Connell's agitation was never likely to effect that object, despising the mean and corrupt practices by which that agitation was attended, and being filled with horror at the occurrence of so much agrarian crime, he came to the conclusion that an armed attempt to sever Ireland from Great Britain was the duty of Irishmen, and the only hope left for her political or social redemption. Mr. O'Brien was a member of the Church of England, and his sympathies were with the evangelical section. He was well acquainted with the great fundamental differences between the church of Rome and Protestant communions, and was conscientiously and firmly a Protestant, while his mental habits and religious principles alike made him the consistent friend of religious liberty. It was generally supposed that his views of government were monarchical; and as he was the undoubted representative of the Irish monarchy, it was also believed that he had sufficient ambition to look forward to the time when independent Ireland would restore to him his family honours. The personal and moral influence of Mr. O'Brien were such as to qualify him to be a leader. He was much loved, and deserved to be so. As a man he was amiable, as a gentleman courteous, as a friend true. Intellectually, he was not fit to conduct a powerful party through great dangers. Scholarly and accomplished, he was yet not profoundly read, nor did he possess any great power as a writer or speaker. He could not shake the senate like Grattan, Flood, or Curran, nor could he move the popular will by his pen, like Moore or Davis. Whatever he undertook for Ireland was in the spirit of a patriot, and his courage was as unquestionable as his truth. He had studied too little the character of his countrymen, and the political influence of their religious predilections, or he probably would never have embarked upon the stormy sea of the repeal agitation. Had he pondered deeply the philosophy of Irish character, and of the Protestant and Roman Catholic religions, by which the people were so extensively and sincerely influenced, he must have foreseen that the Irish Roman Catholic population would never enter upon any political enterprise to which their priests were opposed; that the priests would never favour any political scheme that did not comprise the ascendancy of Rome; and that

the Irish Protestants, deeply and thoroughly convinced of that fact, would not extensively join any confederacy for political purposes where the priesthood could possibly exercise any authority. All these things William Smith O'Brien, from his position as an Irish Protestant gentleman, ought to have known; knowing these things, he never could have plunged into the raging surge of an Irish popular insurrection. He meant honestly, failed signally, and suffered himself to be involved in a hapless enterprise, because he had not sufficiently studied the people among whom he lived, nor the religious influences to which they were subjected.

A third leader of this party was Thomas Meagher, who afterwards called himself O'Meagher, son of a wealthy and respectable Roman Catholic citizen at Waterford. Mr. Meagher was the youngest of all the Young Ireland leaders.

He had been educated at the Jesuit College, Stonyhurst, Lancashire, where it would appear that one principle undermined another in his education; for while he came forth a Roman Catholic politician and a patriot, he found that the consistent profession of the one came into such frequent collision with the other, that his honest and manly mind could not reconcile them, and, as some regarded it, he sacrificed his creed to his country. Sir Jonah Barrington represents the Roman Catholic leaders of his day as sacrificing their country to their church. Thomas Meagher certainly appeared to perform the converse of this. His enunciations of religious opinion were boldly liberal, and utterly incompatible with the ascendancy of his own or any other church. In this respect, as, indeed, in every other, he preserved throughout his course a most laudable consistency. He probably comprehended the principles of civil and religious liberty better than any other member of the Young Ireland confederacy. Young Meagher was full of ardour for the cause of repeal. Like Davis and Smith O'Brien (to both of whom he was attached by the tenderest friendship), he believed it to be the salvation of his country. His soul was inflamed with love of her, and he consecrated his genius and his life to her resuscitation by the modes which alone appeared to him calculated to restore her from political death. Intellectually, Mr. Meagher was superior to any other leader of the party. Davis had neither the compass nor versatility of Meagher, who was the only finished orator of the remarkable group of men whom he intellectually outshone. Some of his orations are as chaste and fervent as Emmet's, as rich and varied as Curran's, as intellectual as Grattan's, as logical as Flood's, and as graceful and eloquent as Shiel's. There are few specimens of political oratory in the English language which rival some of the speeches of this young tribune. He was almost as gifted with his pen as with his tongue. His letters abound with pathos, and poetry of thought and feeling; his descriptions are graphic and lifeful; his analysis of character accurate and discriminating; his aspirations noble and pure. There was a pleasing fascination in his oratory and writing which never passed away. One can hardly think of his sad story without remembering also the simile of his national poet:—

"You may break, you may ruin the vase if you will, But the scent of the roses will hang round it still."

John Mitchell was another remarkable member of this fraternity. He was a solicitor, a Protestant, and a Dissenter. He was the most fiery of all "the rebels," as

these agitators ultimately became. Mitchell was a native of Ulster, and possessed much of the spirit of the old Presbyterian United Irishmen of 1798; indeed, some of their leaders were his relations. He possessed a vigorous intellect, great energy of thought and action, overbearing-purpose, and unflinching courage. His information was not extensive, nor his judgment profound, and yet he was a well-educated, well-read, and very thoughtful, reflective man. He was adapted to be the sole leader of an insurrection where the object might be clear, the undertaking desperate, and the work short. His nature was not adapted either to lay an extensive plan, or co-operate with other men of mental power in the execution of such. He was crotchetty and impracticable, a man of rash judgment and hasty action-as brave and as tenacious as a bulldog. In private life he was gentle and loving; it was easy, as a friend or companion, to argue with John Mitchell, but impossible to co-operate with him as a compatriot. He had not the mind of a statesman, nor had he the prudence and policy requisite for a popular leader anywhere, much less in Ireland, at a crisis of her history so peculiar. This gentleman did much to precipitate the insurrection which drew down upon Ireland, so soon after the period of which we write, disgrace and ridicule. Like Smith O'Brien, he did not thoroughly understand the people he was to lead, nor those of his countrymen to whom he and they were so certain to be opposed, nor did he compute the religious prepossessions by which those distinct parties were respectively influenced. Mr. Mitchell was nominally a Unitarian in his religious creed, but he held very lax notions of this theology, and verged to Deism.

His views of political economy were erroneous and impracticable; yet he seemed to pride himself upon his absurd economical theories. He seemed to have no fixed views of government; he was neither monarchist, aristocrat, nor republican: his opinions seemed to be incompatible with all organised government, except a popular despotism, such as the French empire exemplified. Hatred to England, her name, race, and institutions, seems to have amounted to a monomania with him; yet he was not himself of Celtic lineage. His intolerance of opinion and rashness of action would have been utterly unendurable, were it not for the directness of his aims, the sincerity of his motives, the disinterestedness of his spirit, and the suavity of his disposition. The only other member of the Young Ireland party deserving notice as a chief was Charles Gavin Duffy, the editor and proprietor of the _Nation_ newspaper. Mr. Duffy was a Roman Catholic, and professed unbounded respect for the priests. He was generally suspected of coquetting with them to secure their patronage of the Young Ireland cause, and that at heart he despised the popular subserviency to them. There was much in his speeches and literary articles to confirm this view, but there was also a great deal to lead to the belief that he was at heart "a priest's man." Certainly their reverences did not think, or, at all events, appear to think him, a very particular friend to their order, for they frequently opposed the circulation of his paper, and denounced himself. He bravely,-'-but respectfully battled with them, and lost the game-the circulation of his paper fell as the Roman Catholic tone of it was lowered. Whether this circumstance had any influence, as was alleged, it is beyond doubt that, while he continued to maintain his young Ireland theories, he became more chary of combat with the clergy, and no paper put forth a more wild and daring ultra-montanism than the Dublin _Nation_, at the very time that its columns were

filled with passionate poetry dedicated to the rights of country and of kind. Articles asserting that all Irishmen should be held equal before God and the law, and that Orange ascendancy and all party ascendancy was destructive to Ireland, were strangely in contiguity with others asserting the most despotic claims for the church of Rome that ever were put forth in her name. On the whole, the inference might be fairly drawn from the writings and speeches of Mr. Duffy that he hated England with an indiscriminating and malignant rancour; that her peculiar virtues were as hateful to him as her vices, her glorious deeds as her errors; and that he hated her for the power with which she supported a certain degree of civil and religious liberty, as much as from any grievances of which his country had to complain, or any distaste he entertained to her race, her habits, or the idiosyncracies of thought by which her people were characterised. He was anxious to see his country independent and prosperous, and in order to be so, wished to see a severance from England, and a full and unmitigated ascendancy of the Roman Catholic religion. Personally, Mr. Duffy was too generous, kind-hearted, and manly to persecute, and would have been among the first to endanger himself by interposing to protect another from the chain or brand of the persecutor; but the tone of his writings, and the writings of those who found readiest access to the columns of his journal, was relentlessly bigoted. If mobs fell upon zealous, or, it may be, over-zealous clergymen or Scripture-readers, the Nation always extenuated the ruffianism, and abused the objects of popular violence. Some reason for this course, applicable only to the particular case, or to a class of cases under which it was ranged, was always relied upon in justification of these bitter outbreaks of intolerance, but the paragraphs in which the vituperation found vent always disclosed some bigoted principle which constituted the core of the article. O’Connell obtained an unhappy celebrity for his violence in religious disputation, but there was always a waggery in his most virulent sectarian harangues which relieved them, and left the impression that his bigotry was professional or forensic rather than heartfelt, but the _Nation_ newspaper allowed no humour to shed a ray of relief upon the dark sentences of its intolerance. If indomitable fortitude, endurance, and perseverance could win a cause, Charles Gavin Duffy would have secured all for which he afterwards struggled and suffered. The political economy of Mr. Duffy, judging from the columns of the _Nation_, was not much more enlightened than that of his coadjutors.

Such were the men who constituted the leaders of the Young Ireland section of the Repeal Association. There were others who possessed eloquence, courage, and patriotism, but they did not occupy the front rank. With this fresh, youthful, earnest, intellectual, and uncompromising body of young men O’Connell had to compete almost single-handed; for although he was well supported by the priests, and by the old hacks of the association, he alone could confront intellectually so gifted an array of antagonists, or maintain, with any chance of victory, his side in the logomachy which was perpetually proceeding within the circle of the Repeal Association. Moore, in one of his melodies, represents the demon of discord as annually appearing in the Boyne, and casting forth the burning arrows which were ignited by his breath; but the scene of the fiery fiend’s operations might be well supposed as changed to “Conciliation Hall,” and his arrows thence flung over the inflammable isle. However

indifferent the loyalists might be to the conflicts between Old Ireland and Young Ireland, the government could not be so, for “O’Connell’s tail” was, if no ornament, of some use on the ministerial benches. O’Connell denounced the Whigs, but intrigued to keep them in power, or help them to obtain it. The old Ireland party had votes in parliament, and gave them with more or less fidelity on the side of Lord John’s administration; whereas the Young Irelanders had yet to gain the heart, if not the ear of their country, and were not recognised as a power, except so far as they constituted an _imperium in imperio_ within the circle of the Repeal Association. The bolder doctrines of this young party tended also to inspire a spirit of determined and organised revolt, which the government could not observe without concern, and the temper of the people was so embittered by the feuds of their leaders, as to be at least an unfavourable set-off against the probability that these contests would impair the moral influences of those who waged them. As a specimen of the state of feeling between these two parties, the proceedings of the Repeal Association for June 22nd may be adduced. At that time Sir Robert Peel was still in office, if not in power; but every one in Ireland believed that the Whigs would soon resume place, and that O’Connell would pass from the sphere of unqualified opposition to that of qualified support. The Young Irelanders took advantage of these impressions to weaken O’Connell’s influence as a leader. This cut him to the heart: he received the tidings in London, and chafed under the vigilant restraint which this opposition in his own parliament placed him as to the policy he might adopt at St. Stephen’s. He wrote to the association a letter, which showed his annoyance and apprehension; the following is an extract, the most pertinent to the purpose for which the reference is made:—“It is with the bitterest regret and deepest sorrow that I witness the efforts which are made by some of our juvenile members to create dissension and circulate distractions amongst the repealers. It is manifest that the great majority of the Repeal Association must exert themselves strenuously to support the association, or the persons to whom I allude will divide its ranks, and finally destroy the association itself. For my poor part, I will not be an idle spectator of such a struggle. ’Tis true that the people may be induced to desert me, but I never will desert the people. I perceive that it is—I will not use the proper term—but I will say, most unhandsomely suggested that, in the event of the Whigs coming into power, the repeal cause is to be abandoned, or postponed, or compromised. I utterly deny the assertion. While I live the repeal cause shall never be abandoned, postponed, or compromised, to advance any persons to power, to support any party or faction. I have long since; nailed the colours of repeal to the mast, and they shall, during my life, never be taken down, unless to cover the entry of the Irish members into the Irish parliament in College Green.”

The contests between the two sections of repealers ended in the secession of the Young Irelanders from the Repeal Association. O’Connell was at heart glad of this, for his physical and intellectual energies were flagging, and the constant tantalising to which he was subjected in the association by these young men irritated his nervous system, and impaired his health. He made a show of conciliation, and sent a Roman Catholic clergyman of considerable importance, the Rev. Dr. Miley, to open negotiations with Smith O’Brien, whom he did not hesitate publicly to declare was the only man of weight among them. O’Brien was not to be won by the voice of the

charmer, and O’Connell became furious, attacking the literary men, who principally led the Young Irelanders, in terms which gave offence to the whole press, and strengthened the ranks of his opponents. The Whigs treated the Young Irelanders contemptuously, but endeavoured by every means in their power to conciliate the old repeal party. Not only was the arms bill dismissed from parliament, but place and patronage was at the beck of O’Connell; and many of his followers, notwithstanding their anti-English feeling, and the need of their services which they supposed their country had, accepted situations in England and the colonies. The magistrates who had been dismissed by Sir Robert Peel’s government for attending repeal meetings, or joining the association, were all restored to the commission of the peace. Dublin Castle unbarred its venerable portals to those who had ceased to be welcome there, because of their connection with the repeal agitation. O’Connell’s reiterated declaration, that the Young Ireland leaders did not possess the intelligence, experience, tact, or discretion to conduct any great movement, much less one of such magnitude and peril as they proposed, made a deep impression on the minds of the people, and checked the insurgent progress of these eloquent declaimers.

A circumstance occurred in the English house of commons, in the early part of the year, which damaged the _prestige_ of Smith O’Brien, and although O’Connell exerted himself in parliament on his behalf, the event gave the arch-agitator satisfaction. He had many a private joke at the expense of O’Brien, and few men could wound with a brighter point than O’Connell in his best moods of satire. Mr. O’Brien was nominated on a committee, and refused to serve, alleging that the affairs of his country were so neglected that he would not attend to any other business than such as related to it. This was untrue, the affairs of Ireland had for some years occupied much of the attention of the house, and, moreover, if Mr. O’Brien did not choose to be amenable to the rules of the assembly, he ought to have resigned his seat. Persisting in his refusal to serve on the committee, he was, by order of the speaker, taken into custody by the serjeant-at-arms, and confined to a chamber within the precincts. After some time he was released, upon the motion of Mr. Shaw, an Irish Conservative member. The obstinate conduct of Mr. O’Brien, on this occasion, vindicated no principle and asserted no right; it caused his own pure patriotism to be suspected, and brought his country and himself into ridicule.

Such was the political condition of Ireland when 1846 closed in cold and gloom over its sickening, starving population. The year expired in the midst of the most frightful social condition to which any European people had ever been reduced. O’Connell too truly described it, in one of his strange and varied harangues in the Repeal Association, in the following manner:—He commenced by saying, that he deeply regretted to be obliged to announce that the state of the country was tenfold worse than it was that day week. The frost had set in, and cold and hunger were doing their work—in fact, starvation was stalking through the land. In Connaught there were no less than forty-seven deaths from starvation within the week—not merely reports of deaths, but forty-seven cases in which coroners’ juries returned verdicts of death from starvation. This was a horrible state of things, and he hoped that they would soon be put an end to. The landlords had come forward to give relief—at least, to some extent; but the merchant classes, he regretted to say, were

holding back. He had seen no meeting of these men; however, he soon hoped to hear of one; and, in the name of the forty-seven starved and murdered victims, he would implore of them, and the men of all classes, to come forward and render every assistance in their power to relieve the distress.

The orator on that occasion was less than just to the merchants, and somewhat more than just to the landlords. It was brought to light by certain correspondents of the London press, that on Mr. O'Connell's own land the state of the people was most deplorable; that this was so even before the failure of the crops; that the ordinary condition of his tenantry bordered upon famine. Mr. O'Connell was, in fact, "a middle man;" he rented extensive lands, and sub-let at a very large profit. The persons who were his tenants were ground down with an oppressive rent, and vainly endeavoured, without capital, profitably to cultivate their "takings." On the land over which he had himself full control, the people had little ground of complaint, and much cause for gratitude. Although he did not come out unscathed from the controversy, which was raised about the state of the people on his own lands, he was as much sinned against as sinning—there was an unfair effort to fasten upon him an imputation of selfishness, which, at all events, he confuted.

Such was Ireland in 1846. Much was done for her; but she suffered not only in spite of these benevolent efforts, but even by them. She sorrowfully exemplified the song of her bard—

"Thy suns, with doubtful gleam. Weep while they rise."

The effect of the opposition of the Young Irelanders upon O'Connell was signal; he evidently began to droop; his physical power no longer endured. The attacks made upon him by the London press, in connection with his conduct as a landlord, deeply depressed him; for although he positively denied the imputations, and furiously assailed his critics, he felt to the core the exposure of whatever was wrong in his conduct on that matter. The failure of the potato crop, and the starvation of the people, were all that seemed necessary to complete the physical decline of this remarkable man. It was remarked in Dublin, at the close of the year, that his voice had so far failed that he could scarcely be heard in the Repeal Association; indeed, similar complaints had been made in parliament months before. He walked as if weary; his head drooped, and he wore a prodigious mass of clothing, especially about his throat and chest. He might be sometimes seen walking between his sons, leaning on their arms, his head bowed down, as if to escape the winter's blast, and his body bent as if unable any longer to walk upright. Sometimes he might be seen passing to or from the association on a "jaunting car," so muffled up that only those conversant with his habits could have identified him. The public power of O'Connell was evidently drawing to a close.

AFFAIRS OF INDIA.—BATTLE OF ALIWAL.—TOTAL EXPULSION OF THE SIKHS FROM THE WEST BANK OF THE SUTLEJ.—SUBMISSION OF THE LAHORE GOVERNMENT.—INSURRECTION OF THE CASHMERE PEOPLE.

The year 1846 was an eventful one for India and for British interests there; it opened in the midst of one of the most formidable warlike straggles ever witnessed

since the English first began their conquering progress under Clive. Although the Sikhs had experienced such defeat at Moodkee and Ferozashooshah, they were not yet disheartened, but were determined to maintain the war. By the close of 1845 they had been driven from all their posts of importance on the left bank of the Sutlej, except their strong works at the bridge of Sobraon. Early in January, 1846, they began operations by crossing the river, so as to draw supplies from the fertile resources of the territory from which they had been so recently, and after such hard fighting, expelled. The Sirdar Runjoor Singh Majeethea crossed over to the bank opposite Philoor, and occupied Baran Hara. This place was situated between the old and new courses of the Sutlej, and was favourably situated for the purpose of cutting off the communications of the British, and of alarming the garrison of Loodiana, then one of the most important places in that part of the country. Brigadier-general Godby held command of the garrison at Loodiana, which consisted of only three regiments of native infantry; but other troops were rapidly moving up to reinforce it. Some of those troops had to march from Umballah. While Runjoor Singh was crossing the Sutlej and taking up a position at Baran Hara, the British were also engaged in active operations. Lord Gough had sent a detachment from the division of Sir Hairy Smith against Dhurrumkote. The town was defended by a fort, and it was reported that the garrison would make a desperate resistance. Sir Harry Smith in person commanded the troops sent against the place, and proceeded with such celerity, that the town and fort became an easy conquest. The garrison proved to be entirely composed of irregular auxiliaries to the Khalsa, and they made no show of determination. The movements of the sirdar, already described, became so threatening to Loodiana, that Sir Harry Smith was ordered, upon the reduction of that place and the security of the stores of grain which it contained, to manouvre for the defence of the menaced British garrison; and Brigadier-general Wheeler was ordered, with the second brigade of Sir Harry’s division, to follow in support. General Smith marched rapidly from Dhurrumkote to Jugroon, and then, to use the language of General Gough, “breaking down” from Jugroon, he marched towards Loodiana. This movement was extremely hazardous, for the sirdar’s forces were by far the more numerous, and his infantry, active and well disciplined, burned to avenge the previous disasters. Runjoor marched his forces parallel to those of the British general, opening upon him, as occasion allowed, a heavy cannonade; for the Sikh forces were well supplied with cannon, and their gunners were capable of maintaining, with coolness and skill, a well-directed fire. Both parties showed great skill in manoeuvring, and the major-general required all the ability which he displayed to extricate himself from the superior force, which pursued his march and harassed all his movements. On several occasions, the whole force of Major-general Smith was in imminent peril, but its gallant commander never quailed, was never thrown off his guard, and was not in a single instance out-generalled. On one occasion the enemy obtained, by his superior numbers, a most advantageous position, which placed the small British force in great peril, for, bending round one wing of his army, the sirdar enveloped the flank of the British. The English general with admirable coolness, extricated his brigade, retiring by _échelons_ of battalions, suffering heavily, but maintaining the order and steadiness of his troops until the imminency of the peril was over, when he opened his communications with Loodiana, at once securing his own force, and affording

safety to the garrison. Brigadier-general Wheeler was unable at once to follow up these movements; the skilful and complicated manoeuvres which Sir Hairy made to evade the enemy threw the brigadier off the communication. The Sikhs were, on the whole, encouraged by these proceedings; they had interrupted the communication of Generals Smith and Wheeler, captured considerable baggage, acted for some time on the aggressive, and inflicted loss upon the British. It was, therefore, with some confidence, that they took up an intrenched position at Budhawal, resting for support on the fort connected with that place. The position was not, however, a safe one. Smith and Godby were on one Hank, and Wheeler, cautiously feeling his way, hung dangerously upon the other. The sirdar became alarmed lest Wheeler should be reinforced, and the British generals should then fall on both his flanks; he accordingly fell back upon the Sutlej, a movement bad in strategy, but which was forced upon him by the movements of the English generals—unless, indeed, he had suddenly, with great rapidity and boldness, attacked them in detail. Wheeler and Smith formed a junction, and moved clown upon the abandoned post of Budhawal. Here General Smith was further reinforced, and he found himself at the head of a body of men, European and native, sufficiently formidable to justify him in acting at once upon the offensive. Before General Smith could attack the new position of the sirdar, the latter was reinforced by a brigade of cavalry, twelve guns, and a small division of infantry, probably numbering about four thousand men. Finding himself at the head of a force numerically so superior to the British, the enterprising sirdar once more took the offensive; but instead of attacking the army of Sir Harry Smith, he attempted to intercept his communications with the main army, by the occupation of Jugroon. To prevent the accomplishment of this object, the English general determined to bring on a general engagement. Accordingly, on the morning of the 28th of January, the British force made directly for the enemy, with whom they came up after a march of six miles. The Sikhs were in position along a ridge of elevated ground, close to the village of Ullewall, or, as it is called in the British despatches, Aliwal. The right of the enemy rested upon a somewhat precipitous ridge, while the left was defended by intrenchments. As the British cavalry came near the enemy, they deployed, and advanced boldly, presenting an imposing array, especially the European lancers. The ground was favourable for cavalry; it was like a fine English sward. The troopers then took ground to the right and left by brigades, the infantry advancing in column. From the Sikh camp the scene was more brilliant; as the cavalry broke away the columns of the advancing infantry appeared full in view, the sheen of their bayonets brightly gleaming in the eastern morning sun. Still more brilliant was the scene as the advancing columns deployed into line, for what sight so impressive, where masses of men constitute the objects of interest, as lines of British infantry drawn up in the array of battle ‘? The cavalry now assumed direct échelon to the rear of both flanks of the infantry. The artillery were placed on either flank and in the centre. A review day in Hyde Park, Aldershot, or in the undulated and picturesque Phoenix Park, at Dublin, could not present a more orderly and trim appearance than this magnificent line of British soldiers, drawn up before the acclivities of Aliwal. There was no wind, no dust. The sun was bright, but not so hot as might be expected in that climate, and the troops moved with noiseless foot, hoof, and wheel over the hard grass, as if it were a fairy scene, and the baton of the British chief were the wand of an enchanter, every

movement of which called into gay and brilliant reality some new feature of the “glorious pomp and circumstance of war.” Viewed from the British lines, the Khalsa host was also imposing, as its dark masses of infantry were ranged along the position, from whence they looked sullenly down upon their skilful and gallant foe. The Sikh cavalry, in constant and unnecessary motion, gave some life to the stillness which brooded over the long lines of the compact and motionless infantry of the Khalsa army. It was a moment of extreme suspense, for upon the fortune of this battle much depended. If the sirdar repulsed the British, he would undoubtedly cutoff their communications, oblige them to fall back upon Loodiana, and paralyse the advance of Lord Gough upon Sobraon. If the British conquered the enemy’s lines, the sirdar’s army had no retreat; the river was in his rear, and it was in no place easily fordable, nor had he other means of crossing, adequate to the safe retreat of such an army—defeat and destruction were to him the same. It was a day for valour to aid men; life, hope, honour to both armies depended upon the deeds to be that day enacted upon the grassy slopes of Aliwal.

The superiority of the enemy in numbers enabled him, by his left, to outflank the British; Sir Harry Smith, accordingly, ordered the troops to break into open columns and take ground to the right. The British line had advanced one hundred and fifty yards; it was now ten o’clock, and suddenly from the whole of the Khalsa position a fierce cannonade was opened. At first the balls fell short, but as the British advanced, the enemy’s shot told fearfully upon their ranks. Still, under this heavy fire, the line was halted, that the general might execute a manoeuvre which appeared to open a prospect of more speedy victory. The village of Aliwal was discovered to be the key of the position, and the British general, by moving his right successfully upon it, could with great advantage operate against the left and centre of the enemy’s line. This the English commander executed in the most brilliant manner: the first brigade of his own division, under Brigadier Hicks, immediately supported by Brigadier Godby’s brigade, which had constituted the garrison of Loodiana, gallantly stormed the village of Aliwal, and from this new vantage-ground opened a deadly fire upon the right of the enemy’s left, and his left centre. Sir Harry then ordered his whole line to advance, which was gallantly achieved, the 31st (or Young Buffs) European regiment distinguishing itself, although the native regiments showed a noble emulation to be first in front. The cavalry on the enemy’s left were now in a position to act effectively against the British, but the brigade of cavalry on our right flank, commanded by the skilful and clashing Brigadier Cureton, charged them, sabring numbers, and driving the rest pell-mell upon their infantry, whom they threw into confusion. Another body of British cavalry, consisting of the light-horse and the body-guard, made a second charge equally brilliant. The intrenchments of the enemy, filled with infantry, were now brought into view; but General Smith ordered Godby’s brigade to change front and take them _en revers_; this manouvre increased the confusion of the enemy, whose infantry gave way, leaving several guns in the hands of the victorious brigade. These movements on the enemy’s left were decisive of the action, but the British behaved equally well on other portions of the field. Brigadiers Wheeler and Wilson assailed their right, storming their lines and capturing their guns. The Khalsa army reeled back, broken and despairing, and sought the river, in the vain hope that they

might manage to cross by fording or by boats. The rapid movements of the British turned the retreat of the enemy into a disorderly and desperate flight. The sirdar had, however, made some provision for defeat; he had occupied strongly the village of Bhoardec, so as to cover the retreat to the river, and if possible to cover also the passage. Here the 16th Lancers behaved splendidly. The enemy had a strong force of infantry drawn up on one flank of the village; the 16th charged them; the foe stood the charge heroically; the 16th penetrated their square; the Sikh square, notwithstanding the efficiency of the lance in such warfare, closing behind the cavalry as they charged through. The lancers wheeled, and this time used the sword more than the lance, disconcerting the arrangement of the enemy, and breaking their square. The 3rd Light Cavalry completed the work of destruction, bursting through the formation of the infantry, and putting great numbers to the sword. The fighting might be said, to be in some sense more desperate after the battle was lost and won than during the operations upon which stragetically its issue depended. While these brilliant, cavalry charges were occurring on the right of the village, her majesty's 53rd carried the village itself by storm, and the 30th native infantry, wheeling round by the left of the houses, took the fugitives in rear. The same masterly skill and heroic valour which was shown in taking Aliwal conquered Bhoardee, the last hope of the defeated; for although about 1000 Khalsa infantry rallied under a high bank to check the destructive advance of the English, there was no longer any hope of covering a retreat across the river. Even this rally only added to the slaughter and the ultimate confusion: a heavy fire of musketry from 1000 men, closely directed, was galling to our soldiers, but the 30th native infantry took them, at the point of the bayonet, and as they retreated, twelve guns which were previously moved up to within three hundred yards, opened a deadly fire of canister, mowing down the fugitives in a manner which even those engaged in deadly strife thought it awful to witness. To complete the horror of this flight, her majesty's 63rd, who moved up to the support of the 30th native infantry, pursued the fugitives, pouring in a close, deadly, unremitting stream of musketry. With wild cries of despair, casting away their arms, and lifting up their hands as if beseechingly to their victors, the whole of the Khalsa troops cast themselves into the river, except such of the earliest fugitives as secured the boats and made good their passage. The river was swollen; at the shallowest place the infantry were up to their necks, and were under the fire of the artillery and musketry of their pursuers. Those who succeeded in crossing drew up with a few guns, but the fire of the artillery caused their speedy departure, leaving their cannon behind. Lieutenant Holmes, of the irregular cavalry, and gunner Scott, of the 2nd brigade horse-artillery, here performed a gallant exploit; they swam their horses across the stream, and spiked the guns, exposed to the fire of the enemy's skirmishers, but covered by the British fire from the left bank. The conflict of Aliwal was over, and one of the most skilfully fought and completely won battles of modern times reflected its glory upon the name of Sir Harry Smith, and the valour of the British army of India.

The scene after the battle was horrible; the whole field of combat was covered with the slain; the river's banks were thickly strewn with the dying and the dead; the Sutlej itself bore to the Sikhs at Sobraon the tidings of the battle, for not only "redly ran its blushing waters down," but the corpses of the slain Khalsa soldiery were

borne along in such numbers by the current as to reveal the horrible nature of the slaughter, and to fill with dismay the Khalsa host.

The slain of the enemy was computed variously, from eight to ten thousand men; the trophies of war were, nearly all the Khalsa standards, fifty-one pieces of cannon, and a vast quantity of ammunition, small arms, and camp equipage.

Every arm of the British force behaved with admirable gallantry and skill; the infantry carried every point under the most galling fire, preserving their formation in a manner beyond all praise; the cavalry swept the horsemen of the enemy from the field, as the tide rolls the wreck upon the shore; the artillery could not be surpassed by that of any army in Europe: towards the close of the action, the manner in which two 8–inch howitzers, ordered up by Sir Harry Smith himself, were worked, excited the admiration of the troops.

This battle, however, did not determine the war. The Sikhs occupied such strong positions on both sides of the river at Sobraon, that they were willing to believe their post impregnable, that an attempt to storm it would be fruitless, and that in fact there a barrier existed, against which the surging wave of British power would be broken. This was the only point of occupation then held by the Khalsa army on the left bank of the Sutlej. All fears for Loodiana having now subsided, the mission of Sir Harry Smith at the head of a separate _corps d’armée_ was over, and he marched to join the grand army under the command of the intrepid veteran Sir Hugh Gough, one of the noblest soldiers that ever served in the British army. General Sir Charles Napier, in his own eccentric way, said of him that he was “as brave as ten lions, each with two tails and two sets of teeth.” Sir Charles rivalled Mr. Roebuck, the radical English commoner, in the scantiness of his commendations; his droll eulogy of Sir Hugh Gough will therefore be appreciated. On the 8th of February, Sir Harry Smith made his junction with the army of his chief, and was received in terms not more flattering than just from a general who never refused to merit its just meed.

The first duty of the English commander-in-chief was now to capture the stronghold of the enemy, which was extensively fortified, mounted more than seventy heavy pieces of cannon, and was garrisoned by 30,000 men, the select troops of the grand Khalsa army. Even with the addition of Sir Harry Smith’s division, the brave old chief was hardly strong enough for the task imposed upon him; but happily his artillery, which very much needed it, was reinforced from Delhi by several howitzers and mortars.

On the morning of the 10th, General Gough considered himself in a condition to proceed against the works of Sobraon; these had been well reconnoitred previously, and never was an army more confident in its chief, its resources, and its own will than the British army of the Sutlej. The enemy had been ceaselessly employed since the battle of Aliwal in throwing up field-works on the right bank of the river, so as to command the flanks of the works on the left bank. Easy communications between the two camps were preserved by an excellently constructed bridge. As this is a general History of England, and not a History of India, or of the War in India, the space allotted to our task will not allow of more minute particularisation of the defences.

Sir Hugh Gough made his dispositions of battle on the evening of the 9th, according to which, at daybreak on the 10th, the cannonade was to open. A dense mist, however, covered the sphere of intended operations, rendering it impossible to open fire until the sun had penetrated the obscure atmosphere. On the extreme right of the works, close by the river, Major-general Sir K. Dick, with two brigades of infantry, awaited the signal to begin. On this point the attack was to be led by Brigadier-general Stacey, at the head of her majesty's 10th and 53rd foot, brigaded with two native regiments: the 10th now, for the first time, came under fire during this war. Brigadier Wilkinson, at the head of the sixth brigade, was posted within 200 yards in support of Brigadier Stacey. The reserve was commanded by Brigadier Ashburnham. The right of the attack was occupied by the division of Major-general Sir Hany Smith, its extreme right approaching the river. The centre was commanded by Major-general Gilbert, whose division was posted with its right resting on the Little Sobraon. Brigadier-general Cureton threatened the ford at Hurrakee, and remained in observation of the enemy's horse, posted on the other side. The force under Cureton was to make a feint of attempting the ford.

The supports were commanded by Brigadier-general Campbell and Major-general Sir Joseph Thackwell; the former in support of Smith's left and Gilbert's right, the latter in support of Gilbert's left and the right of General Dick.

As soon as the mists were dispersed by the morning sun, the Sikhs appeared behind well-constructed redoubts and breast-works of planks and fascines. The British field-batteries opened fire, and received a terrible response.

At nine o'clock, Brigadier Stacey advanced, supported on either flank by artillery. The movement was orderly and beautiful, the infantry preserving its line in double quick time, the artillery galloping up to take possession of every advantage of the ground, until the infantry again occupied the advanced position; thus mutually supporting, the artillery and infantry arrived within three hundred yards of the ponderous batteries of the works. Here a terrible fire opened upon the advancing force, before which many fell, and few believed, who could see what was passing, that Stacey and his brigade would ever reach the intrenchments of the enemy. The troops of Brigadier Wilkinson were well up in support, and under cover of the fire of our field-pieces and horse-artillery. Stacey's brigade charged' the intrenchments, entered them, drove the enemy in at the point of the bayonet, fighting desperately as they receded. This took place within view of a large portion of the army, and the exultation and assurance of victory which was consequently excited, materially affected the fortunes of the day. The whole of this brigade, European and native, behaved with the greatest intrepidity, "the brave Irish of the 10th," as Major Edwardes on another occasion described them, were especially distinguished. They never fired a shot until within the intrenchments; they discharged their pieces into the breasts of such of their enemies as withstood them, or in pursuing volleys upon those who retreated within the inner area of the works. The 53rd regiment also, as in the battle of Aliwal, behaved with great courage, and showed the highest discipline.

As soon as General Gough perceived the success of Stacey, supported by Wilkinson, he directed brigadier the Hon. T. Ashburnham to follow the supports, and

Generals Gilbert and Smith’s divisions to throw out their light troops against the enemy’s centre and left, and to open a heavy fire of artillery. The cannonade against the enemy’s centre, and more especially against his left, was delivered with amazing rapidity, at a close range, and with deadly aim. The Sikhs, at the same time, worked their very heavy pieces with skill, so that while a fierce bayonet encounter went on within the trenches on the enemy’s extreme right, one hundred and twenty pieces of cannon sent their messengers of death across the opposing lines, and rolled their thunders over the valley and the waters of the Sutlej. The Sikhs began to expect that the British centre and right would confine the attack to an artillery battle, and therefore detached their infantry in masses from those points against Stacey’s brigade, which had then fought their way well within the works. General Gough, thereupon, ordered the centre and left trenches to be attacked, so that the whole semi-circle of the works was stormed. At the first onset the Sikhs gave way on every point, but they returned with desperation to the conflict, especially where there was a chance of precipitating themselves upon the native regiments. Three British divisions of infantry fought hand to hand with the enemy; but the battle seemed doubtful, from the numbers and desperation of the enemy. A manoeuvre was now executed which was generally regarded as novel, but which, on a small scale, British cavalry accomplished also in America. The sappers and miners of the left attack broke passages through the intrenchments, through which the cavalry of Sir Joseph Thackwell rode, in single file, forming as they passed through, and then charging within the area of the defences, cut down the Sikh gunners and infantry mercilessly. The 3rd Dragoons, with less assistance from the sappers, and making many “break-neck leaps,” sprang within, the defences, and used their swords with the skill for which that gallant corp had obtained so high and so well-deserved a reputation. The conduct of that intrepid regiment surpassed, if that were possible, its own glory at Moodkee and Ferozashooshah. Light field-pieces were brought in through every opening, and were worked in murderous proximity to the enemy. Infantry, cavalry, and artillery were now within the works, which were no longer tenable, and the Khalsa soldiery fled precipitately to the bridge, pursued with a carnage similar to that at Aliwal. Here, however, the bridge befriended the fugitives, but an artillery and musketry fire was directed upon it, making havoc in the confused and dense masses—men whose hurried flight impeded their progress, and increased the slaughter. As they gained the bridge their pursuers were at hand, precipitating them over it into the Sutlej. Another column of fugitives attempted to ford the river, but the waters were high, and swept them from their feet. The horse artillery galloped into the river, and discharged showers of grape upon the unresisting masses who struggled through its dark waters. Little quarter was given, for, true to Eastern usage, those who now were fugitives and cried for mercy, murdered the prisoners whom in the early part of the action they had captured. Their conduct resembled that of another Asiatic nation which calls itself European, years afterwards, on the slopes of Alma, and on the plateau of Sebastopol. To the circumstance of the Khalsa soldiery refusing to give quarter the unsparing vengeance of our troops was to be attributed; and it must also be admitted that when the Sepoy soldiery are thoroughly excited, they display a ferocity which none who are only acquainted with their ordinary conduct and character would ever suppose possible. The battle was over by eleven

o’clock. History furnishes few instances of such a signal victory so soon won. On no occasion, not even excepting Aliwal, did the Company’s troops fight better: the testimony of Sir Hugh Gough was very much to their honour in this respect. He especially selected for encomium the Ghoorkhas, as bravest where all were brave. “I must,” wrote the general in his despatch, “pause in this narrative to notice the determined hardihood and bravery with which our two battalions of Ghoorkhas met the Sikhs wherever they were opposed to them. Soldiers of small stature, but indomitable spirit, they vied in ardent courage in the charge with the grenadiers of our own nation, and, armed with the short weapon of their mountains, were a terror to the Sikhs throughout this great combat.”

The battle of Sobraon destroyed the Khalsa army, and humbled the military power of the nation. The spoils of war were sixty-seven pieces of cannon, more than two hundred camel swivels, numerous standards, ammunition, small-arms, side-arms, accoutrements, tools, and every appendage of a fortified place. The loss of the British army was very serious in effecting such important achievements.

Major-general Dick, one of the heroes of Waterloo, was killed; also Brigadier-general Taylor; and Major-general McLaren was mortally wounded. In all, thirteen European, and three native officers, were killed; one hundred and one European, and thirty-nine native officers, were wounded. The total of men killed was only three hundred and twenty, but more than two thousand were wounded, many of them mortally. The loss on the part of the Khalsa army was enormous; notwithstanding that they fought behind works, a larger number were slain than at Aliwal.

Sir Hugh Gough lost no time in utilising his victory, for the same day he passed a division of native infantry over a bridge of boats across the Sutlej, the bridge of Sobraon having been broken and burnt at the close of the action, and the ford at Hurrakee being impassable, the river having risen some seven inches in a short time. The destruction of the bridge of Sobraon does not appear to have been a politic measure; it was not necessary as a precaution, because the enemy was so totally defeated as not to be able to make use of it any longer.

On the 14th of February, the whole of the British army of the Sutlej bivouaced at Kussoor, within thirty-two miles of Lahore, the Sikh capital. The governor-general there issued a proclamation, announcing his determination to prosecute the war until the complete submission of the Lahore government was obtained; at the same time, his excellency declared that he had no wish to subvert the Sikh government, but only desired to obtain security for the future good faith of the maharajah’s ministers, and the peace of the bordering possessions of British India. The Lahore government was terror-struck at the rapid approach of the British army, and at the moral effect which the proclamations of the governor-general were likely to have upon the Sikh population. Gholab Singh, the wuzeer, represented to the ranee, or queen-mother, that the Khalsa army had lost twenty thousand men in the last two battles, and that unless terms were made with the governor-general, the dominions of her son would be soon forfeited. The ranee called a council, and it was then agreed that Gholab should repair to the British camp and sue for peace. The wuzeer undertook the task,

on the condition that the ranee, the durbar, and the chief officers of the army, as well as the members of the punchayete, should sign a solemn declaration that they would abide by the terms he might accept, and do all in their power to enforce their observance by the Sikh soldiery and population. This was acceded to; and on the 15th the wuzeer, accompanied by Dewan Deena Nath, and Fakeer Kboroodeen, proceeded to the British camp. These three persons were conjointly empowered to negotiate, and they were attended by many influential Sikhs, anxious for peace; among them was the Banuhzie chief, Sultan Mohammed Khan, and several sirdars of great eminence. Thus a strong moral guarantee was given to the British that the negotiations were sincerely opened by the Lahore government. Sir Henry Hardinge admitted the deputation coldly, refusing to receive the muzzars offered and accepted on all occasions of important negotiations in the East. The terms demanded by Sir Henry were the surrender of the territories east of the Beas, in addition to the province which had in December been declared confiscated; the surrender of every gun which had been pointed at the British; the disbanding of the Khalsa army, and its reorganisation on the principles observed by the Maharajah Bunjeet Singh; the entire regulation and control of both banks of the Sutlej; a reorganisation of the Lahore administration, and the payment of one million and a half sterling as indemnification for the expenses of the war. It was also demanded that the young Maharajah Dhuleep Singh should meet the governor-general eleven miles from Lahore. Sir Henry refused to discuss these points in person with the Rajah Gholab Singh, but referred him to his secretary, Mr. Currie, and to Major Lawrence. The rajah remained until midnight discussing the terms with these officers, and finally accepted them. On the 17th Gholab again renewed his interview with Mr. Currie and Major Lawrence, when various details were settled. On the 18th the young maharajah, attended by a magnificent suite, presented himself, at Lulleeanee, to Sir Henry, who received him without a royal salute, or any other mark of royal distinction. The maharajah, an amiable and gentle prince, submitted to the governor, expressing his contrition for the outrage which had been inflicted upon British territory. Of course this was a mere formal ceremony, as the prince was too young to take any share in the responsibility of these occurrences. When submission was made in due form, a royal salute thundered from the British camp, and all the etiquette due to an eastern prince was observed towards the young maharajah.

The relics of the Sikh army were at this time drawn up about eighteen miles from Lahore, at a place called Raebaun, under the command of the two notorious leaders, Sirdar Fej Singh, and Rajah Sail Singh. The soldiery of this force had the hardihood to request that they should be led against the British, and their murmurs and threats of revenge did not cease during the proceedings which were taking place, and which ended in the establishment of peace. Indications were already given that neither the Khalsa army nor its chiefs felt even yet vanquished. Immediately after the maharajah made submission, the governor-general put forth the following proclamation:—“The chiefs, merchants, traders, ryots, and other inhabitants of Lahore and Umritsir, are hereby informed that his highness Maharajah Dhuleep Singh has this day waited upon the right honourable the governor-general, and expressed the contrition of himself and the Sikh government for their late hostile proceedings.

“The maharajah and durbar having acquiesced in all the terms and conditions imposed by the British government, the governor-general has every hope that the relations of friendship will speedily be re-established between the two governments. The inhabitants of Lahore and Umritsir have nothing to fear from the British army. The governor-general and the British troops, if the conditions above adverted to are fulfilled, and no further hostile opposition is offered by the Khalsa army, will use their endeavours for the re-establishment of the government of the descendant of Maharajah Runjeet Singh, and for the protection of its subjects. The inhabitants of the cities in the Punjaub will, in that case, be perfectly safe in person and property from any molestation by the British troops, and they are hereby called upon to dismiss apprehension, and to follow their respective callings with all confidence.”

On the morning of the 20th the British army were under the walls of Lahore, where not a cannon appeared in the embrasures. The governor-general thought it politic to send Dhuleep Singh, the young king, with some ceremonial to his palace, he accordingly issued the following general order, which made a favourable impression on the inhabitants of Lahore, as well as on the chiefs of the Sikh nation:—

“The right honourable the governor-general requests that the commander-in-chief will cause the following arrangements to be made for escorting his highness the Maharajah Dhuleep Singh to his palace, in the citadel of Lahore, this afternoon. The escort will consist of two regiments of European cavalry, two regiments of native cavalry—the body-guard to be one—one regiment of irregular horse, two troops of horse artillery, one European and one native. The secretary to the government of India, F. Currie, Esq., will take charge of his highness and his suite, and will be accompanied by the political agent, Major Lawrence; the governor-general’s private secretary, Charles Hardinge, Esq.; the aides-de-camp of the governor-general; two aides-de-camp of the commander-in-chief, one aide-de-camp from each general officer of division, in uniform. The escort will be formed at the nearest convenient spot to the governor-general’s camp at two o’clock, and proceed to his highness’s camp, and thence to his palace. On alighting from his elephant a salute of twenty-one guns will be fired by the horse artillery.

“His highness the maharajah of the Sikh nation, selected by the chiefs as their sovereign, having on the 18th instant intimated his intention to proceed to the governor-general’s camp at Lulleeanee, attended by his highness’s wuzeer, the Rajah Gholab Singh, and other chiefs, was received in durbar on the afternoon of that day by the governor-general, the commander-in-chief and the staff being present. His highness’s ministers and chiefs there tendered his submission, and solicited the clemency of the British government.

“The governor-general extended the clemency of the British government to a prince the descendant of the maharajah, the late Runjeet Singh, for so many years the faithful ally and friend of the British government, as the representative of the Sikh nation, selected by the chiefs and the people to be their ruler, on the condition that all the terms imposed by the British government and previously explained to his highness’s ministers and chiefs should be faithfully executed.

“On withdrawing from the durbar, the maharajah received the usual salutes due to his highness’s exalted rank. His highness has since remained near the governor-general’s camp; and, as it will be conducive to his highness’s comfort that he should rejoin his family, the governor-general desires that he may, with all honour and in safety, be conducted by the British troops to the gates of his palace this day.

“A proclamation was issued on the 18th instant by the governor-general, promising protection to all persons at Lahore and elsewhere who peaceably continue in their usual employments of trade and industry.

“The governor-general is satisfied, after the experience of this campaign, that he can rely on the discipline of this invincible army, as fully and securely as he has always been confident that the clay of battle, under their distinguished commander, would be one of victory.

“He trusts, at present, that no officers or soldiers will pass the advanced sentries of their encampment to enter the town of Lahore, and he requests his excellency the commander-in-chief to give the necessary instruction to carry this order strictly into effect, as well as to protect all persons bringing provisions into the camp.”

The report of the secretary concerning the installation of the young maharajah in his palace, under the British auspices, is very striking, and exemplifies the grandeur and customs of oriental courts and conquerors:—

“I have the honour to state, for the information of your excellency, that, in accordance with the instructions contained in the order of the governor-general of yesterday’s date, I proceeded in the afternoon with the escort ordered, and accompanied by the officers mentioned below, on elephants, to conduct the Maharajah Dhuleep Singh to his palace in the citadel of Lahore:—Major Lawrence, the govern or-general’s political agent; W. Edwards, under-secretary of the foreign department; R. Oust, Esq., assistant-secretary to the foreign department; C. Hardinge, Esq., private secretary to the governor-general; Lieutenant-colonel Wood, military secretary to the governor-general; Captain Cunningham; Captain Hardinge, aide-de-camp to the governor-general; Captain Grant, ditto; Lord Arthur Hay, ditto; Captain Mills, ditto; Captain Bagot, aide-decamp to the commander-in-chief; Captain Edwardes, ditto; Captain Gilbert, aide-de-camp to General Gilbert; Captain Tottenham, aide-de-camp to General Smith; Lieutenant-colonel Smith, ditto; Captain Napier, ditto; Captain Smith, ditto.

“The procession was arranged in the following order:—9th irregular cavalry, 3rd light cavalry, her majesty’s 16th Lancers; troop horse artillery, Europeans; troop horse artillery, natives; her majesty’s 9th Lancers, the secretary, with the maharajah and suite, the governor-general’s body-guard.

“The escort was formed in open column of troops left in front, commanded by Brigadier Cureton, C.B. We proceeded in this order to the encampment of the maharajah, about one mile and a half from our pickets, and nearly the same distance from the citadel gate of the city. At about three-quarters of a mile from the maharajah’s camp I was met by the minister, Rajah Gholab Singh, and some of the chiefs. Intimation of our approach was then sent on to the maharajah, that he might

be ready upon his elephant upon our arrival.

“On reaching the maharajah’s camp, the troops of our escort drew up, and the maharajah, with Bhaee Kam Singh on the same elephant, came forward from his tent, accompanied by several chiefs. After the usual salutation and complimentary questions and replies, I placed the maharajah’s elephant next to mine, and the troops having fallen in, as at first, proceeded round the walls of the city to the gate of the citadel. On arriving, Brigadier Cureton drew up the escort in line in front of the gateway, and I took the maharajah, accompanied by the officers enumerated in the former part of this letter, with Rajah Gholab Singh and the other chiefs, into the interior of the citadel, and to the inner door of his palace. I then observed to the maharajah and chiefs, that by the order of the right hon. the governor-general, I had thus brought the maharajah, conducted by the British army, to his palace, which his highness had left for the purpose of tendering submission to the British government, and for placing himself, his capital, and his country at the mercy of the governor-general, and requesting pardon for the insult that had been offered; and that the governor-general had thus restored him to his palace as a mark of the favour which he desired to show to the descendant of the late Maharajah Runjeet Singh.

“A salute of twenty-one guns was then fired by the horse artillery. We then took leave of the maharajah at the gate of his palace, and returning to the outside of the city, we, continuing our progress round Lahore, thus returned to our camp. As our camp is situated opposite the south-east end of the city face, and the citadel is immediately within the city walls, at the north-west angle, we made the entire circuit of Lahore. I considered this preferable to going through the city, the streets of which are very narrow, and would have much impeded the progress of our large escort. We did not see one gun on any part of the walls, all their embrasures were empty.”

On the 22nd of February the governor-general occupied the citadel and the palace, and issued a general order, proclaiming the termination of the Sikh war. The army which had been engaged, and all regiments ordered up to its support, received a year’s _batta_ (pay). Fej Singh, who was twice wounded at Sobraon, was at the head of a very considerable force in the neighbourhood of Umritsir; but, notwithstanding the devotion of his troops, he did not dare to offer resistance; his cannons were surrendered, the soldiery uttering loud cries of rage, and the officers, in tears, uttering suppressed groans of remorse and shame. The disbanded troops disturbed and plundered various districts in the country.

On the 25th of February, the men of the 16th Lancers and of the 31st foot (Young Buffs) were ordered to Bombay to embark for England, permission being given to such of the men as thought proper to volunteer into regiments still serving in India. The bulk of the British army remained in the Punjaub for some months, various circumstances affording grounds for suspicion as to the good faith of the ranee and her durbar. The treaty of Lahore was however completed, and was sufficiently stringent. It has already been shown upon what terms negotiations were opened: when the stipulations were reduced to regular form, they assumed a more binding character, the following items having been introduced:—The hill country between the Beas and the Indus to be ceded instead of one lac of rupees, part of the indemnity.

Fifty lacs of rupees to be paid by the maharajah on the ratification of the treaty. The Lahore army to be limited to twenty-five battalions of regular (Aeen) infantry, and twelve thousand cavalry. The entire control of the rivers Beas and Sutlej, to the confluence of the Indus at Mikenkote, and the control of the Indus from the point of the confluence to the borders of Beloo-chistan. The maharajah never to take into his service any British subject, nor the subject of any European or American state without permission of the British government. Rajah Gholab Singh to be recognised as an independent sovereign over such territories as the British should make over to him. All disputes arising between him and the Lahore government to be referred to the British. All change in the frontiers of the Lahore state prohibited without British sanction.

In pursuance of the stipulations concerning Gholab Singh, a treaty between him and the British government was concluded at Neuritzen on the 16th of March. The following articles of it will sufficiently disclose its character:—In the first article, the British made over to the rajah all the hilly country just conceded by the Lahore government. This territory was situated to the eastward of the river Indus, and westward of the river Ravee, including Ohumba, and excluding Lahool. In consideration of this transfer, the rajah should pay to the British government fifty lacs of rupees on the ratification of the treaty, and twenty-five lacs on the 1st of October. The British government to give the rajah assistance against all external enemies. Maharajah Gholab Singh to acknowledge the supremacy of the British government; and in token thereof to present annually one horse, twelve perfect shawl goats, and three pairs of Cashmere shawls. The symptoms of discontent, on the part of the disbanded troops and the defeated chiefs, rendered necessary an extra article to the treaty of Lahore, for the purpose of garrisoning that city for the defence of the young maharajah during the reorganisation of his army on a different footing. It was agreed to occupy the citadel and town of Lahore to the end of 1846.

While all these events were passing, Sir Charles Napier, the governor of Scinde, made great exertions to render such service as he could to the policy of the governor-general of India. Sir Charles hastened forward from the seat of his government, but on passing up the Sutlej was fired upon; he landed at Ooch, and proceeded to Bhawulpore, where he arrived on the 20th of February. He there made a political visit to the rajah, and proceeded on to Ferozepore, which he reached on the 22nd of February; but the governor-general was then in the neighbourhood of Lahore. Before Sir Charles could arrive, all that has been related transpired. By the same date, Lord Elphinstone had arrived as far as Delhi, _en route_ to the governor-general’s camp.

Matters did not long remain quiet in the Punjaub. The ranee was an unprincipled woman; her paramour, Lall Singh, was an unprincipled man; and this pair began to plot further commotions before those which had so nearly overwhelmed them were entirely composed. Lall Singh hated Gholab; the installation of the latter as maharajah of Cashmere excited his jealousy, especially as Gholab, having been wuzeer, continued to tender his advice to the ranee. It was in fact determined at Lahore, that Gholab should never enter upon his independent sovereignty.

Mohee-ood-Een had been governor of the district under the Lahore supremacy. A son of this person, entitled the Sheik Enam-ood-Een, was made Sail Singh's instrument for carrying out his scheme. Acting as the new wuzeer of the ranee, who was regent during the minority of her son, Dhuleep Singh, Lall Singh directed the sheik to summon a meeting of the chieftains of the mountain country subjected by treaty to the new Maharajah Gholab Singh, and to organise among them an armed resistance to his power. Gholab was more of a diplomatist than a soldier; he marched against the bold mountaineers, was defeated, and obliged to call for the aid of the English. Brigadier-general Wheeler, an experienced, gallant, and spirited officer, was ordered to march upon Cashmere and occupy the capital. The sheik, panic-struck, came in and made submission, revealing the treachery of the ranee's paramour and adviser. Lieutenant-colonel Lawrence got possession of such documents as proved the treacherous complicity of the Lahore government; a formal demand was therefore made upon that government for the expulsion of Lall Singh from the Lahore territory, and for a renewed promise that the treaty of the 9th of March between Gholab Singh and the British should be respected. The Lahore government was once again all submission, and Lall Singh was seized and carried across the Sutlej into the British territory. In consequence of these transactions, the governor-general demanded that a British resident should be received at Lahore, to whom all political questions should be referred before obtaining a practical application. Also that English troops should be at liberty to occupy any fort or territory, if necessary to preserve the public peace and enforce the due observance of the treaty. The Lahore state to pay twenty-two lacs of new Nameck-shee rupees, of full tale and weight, per annum, in order to reimburse the expenses which the British government should incur, in preserving by an armed force the authority of the maharajah, and the observance of the treaty against the refractory chiefs or disbanded soldiery. On the attainment of his sixteenth year, the maharajah to be recognised as of age, and the regency of the ranee and the council of regency to cease, or sooner, if the governor-general and the Lahore durbar so agreed. Thirteen of the principal sirdars of the Punjaub signed these agreements in the presence of Lieutenant-colonel Lawrence and Mr. Currie, not one of whom, in all probability, contemplated the observance of the stipulations a moment longer than suited their own views.

Little further of importance occurred in the Punjaub during 1846. British India generally was quiet, but disturbances of all sorts prevailed in the surrounding territories. The new conquest of Scinde was consolidated by the genius of the eccentric and gallant man who conquered it, and his name was, by a strange perversion of compliment, used as a synonyme for "_Shatan_" all over Beloo-chistan, Affghanistan, Delhi, and the Punjaub. Lieutenant-general Sir G. Arthur was incapacitated by ill-health from that active administration of the Bombay presidency which had characterised his government. He had done much to consolidate British authority there by his firmness and humanity, his goodness and justice, and not only by those high moral qualities, but also by his intellectual aptitudes for sustaining the responsibility imposed upon him.

One of the causes of disquietude in various places, and more especially in the Punjaub, was an increasing desire of the whole native population to expel the British.

This partly arose from fanaticism, and partly from hostility of race. The Sikh ranks had been mainly recruited from our disbanded Sepoy soldiery and deserters. Sir Charles Napier made vigorous efforts to correct the evils which he found to exist in the army within his own government, and made representations to Sir Henry Hardinge full of prophetic foresight as to the disposition of the Sepoys, whom the gallant conqueror of Scinde believed to be disloyal almost to a man. According to statements made long afterwards by Major-general Tucker (the adjutant-general), and by Major-general Lord Melville, Sir Henry Hardinge, while he actually eulogised the Sepoy army especially for their loyalty, privately expressed his alarm at the unsafe foundation upon which British power in India rested, in consequence of the secret unfaithfulness of the Sepoy troops! This very much resembled Sir Henry's procedure afterwards, when Lord Plardinge and commander-in-chief of the British army. Possessing administrative capacity, military talents of a high order, and as dauntless a heart as ever beat in a British soldier's breast, he had the soul of a "red-tapist" and a "snob," and was ready to sacrifice his own opinions and the welfare of the service, to official, aristocratic, or court influence. He fought and governed well, but not so much for the good of the country as the objects of his caste. His conduct in reference to the Sikh war was much reprehended for unpreparedness, want of promptitude, and for a tampering and concessive policy unsuitable to oriental nations. His extreme gallantry in the field, and the successful issue of the war, blotted out these reprehensions both from his own name and from the public mind. His instructions from home accounted for his time-serving hesitation, unpreparedness for the war, and forbearance with an enemy upon whom such indulgence was lost. All this vacillation harmonised with the foreign and domestic policy of Sir Robert Peel, under whose instructions he acted. It met with the disapprobation _ab initio_ of all men competent to form an opinion on Indian affairs. The chivalry of the soldier covered the faults of the governor-general, and the impolicy of the government under whose instructions he acted.

When the tidings of these events in India reached England, the rejoicing was very great. Never had the arms of England been more signally crowned with success; and never had such suspense attended the first tidings of the dangers to our Indian empire, menaced by the invasion of the far-famed and highly-disciplined Khalsa army. The country felt relieved of a great pressure of care, as when, after a long and gloomy night—

"Man wakes again to joy, and peace, and hope, Day dreams, and bright reality."

Parliament was prompt to express the general admiration for the brave.

On Monday, the 4th of May, the House of Commons resolved itself into a committee on a message from her majesty, respecting a provision for the governor-general and the commander-in-chief. Both these gallant men had been raised to the peerage. Sir Robert Peel (the minister) proposed a grant of £3000 a year to Lord Hardinge and his two next male heirs, and £2000 a year to Lord Gough and his two next male heirs. These propositions received the assent of the house. Mr. Hogg, on the part of the East India Company, announced that the company had made grants of £5000 per year to Lord Hardinge for life, and £2000 per year to Lord

Gough. Lord Francis Egerton drew attention to the claims of Sir Harry Smith, which both Sir Robert Peel and Lord John Russell treated as an interference with the prerogative of the crown.

On the following night, in the Lords, the Earl of Ripon moved an address to her majesty in answer to her message. On that occasion the Earl of Clanricarde eloquently eulogised both the gallant generals whose exploits in the Punjaub had added fresh wreaths to the chaplets of their fame.

The civil affairs of India were occasionally the subject of discussion in the British press throughout this year: the Indian railway projects, the high price of money at Calcutta and Bombay, and the fluctuations of commerce in our Eastern territories, demanded the attention of economists and politicians.

On the 9th of November, an extensive list of brevet promotions in the Indian army was announced in the _Gazette_, which comprised thirty-four major-generals, twenty lieutenant-colonels, and two bunded and forty-one captains. This gave great satisfaction to the profession and the public.

An interesting occurrence in connection with India took place in the earlier part of the year. Lieutenant Waghorn, whose enterprising genius led him to prosecute the problem of an overland route to India, saw his labours at last crowned with success. The government resolved, with certain modifications, to adopt the basis of his scheme.

STATE OF AFFAIRS AT THE CAPE OF GOOD HOPE.—SUCCESSES OF THE CAFFRES.—VICTORY OVER THE TRIBES OF STOCK AND PATO BY COLONEL SOMERSET.

Among the many eventful matters of 1846 was a Caffre war. The tribes bordering the British territory were brave, restless, and predatory. Almost the only property which they valued was cattle, and they were tempted by the large flocks of the colonists to make border raids. The force at the disposal of the settlers was not sufficient to preserve their property, nor check these incursions, much less to punish them. The various tribes could precipitate nearly thirty thousand, and, on occasions, forty thousand men at once upon the colony; resolute, robust, wild men, physically superior to the Fingoes and Hottentots within the territory of her majesty, and equal in that respect to the Boers or British. The marauders were also mentally superior to the black races within the colony, and altogether more interesting savages, braver in battle, and capable of a higher civilisation. One of these tribes, numbering about ten thousand, was in alliance with the British, but the whole population of the Cape able to bear arms, and the troops, taken together, did not reach twenty thousand men. The nature of the country favoured the action of savage assailants, especially such as were intellectually so well capable of taking advantage of it as the Caffres. For disciplined troops it was unfavourable, where there was such an enemy to encounter. During the early part of the year the Caffres moved simultaneously on various points, capturing cattle, and slaying or driving the settlers into every post upon which they might fall back for safety. It was not war, for the Caffres literally hunted the borders, striking terror into the hearts of the colonists, and carrying off their property. As the

year advanced the settlers assumed a well-organised attitude; the Fingoes and Hottentots were armed, and showed some courage in defence of the colony and the harassed troops; by dint of courage and exertion they appeared in various directions intime to keep the enemy at bay, and preserve the lives and habitations of the Dutch and English settlers. This was the state of matters when, on the 26th of April, the Caffres came down in great numbers and swept away the cattle of the colonists, driving them through the Fish River. In carrying away this booty they passed, with great hardihood, close to the fortified post called “Trompetter’s Drift.” The guns of the position opened with grape and canister, at point-blank range, and accomplished a dreadful slaughter, but none of the booty was recaptured; the enemy even earned away all his wounded and slain.

On May the 5th a formidable force came upon the neighbourhood of Fort Beaufort. The colonists stood to their defence, and a sharp action ensued, in which three of the settlers were killed and many wounded. A much larger number of the marauders were put _hors de combat_, but the victory, on the whole, was with the Caffres, who brought away seven horses, three hundred and thirty head of cattle, and seventeen thousand sheep. At this juncture Colonel Somerset, of the 7th Dragoon Guards (then quartered at the Cape, and mounted as light cavalry), displayed an enterprise and courage which entitled him to much honour. He was wise in council, energetic in business, indomitable in resolution, and heroic in battle. To these qualities of a man’s sterner nature, he added those of a humane and amiable heart. The colonel was on the watch for an opportunity to strike a severe blow against these freebooters, and on the 8th of June opportunity was afforded. On the previous evening a party of burghers and Fingoes scoured the Fish River bush, and performed this duty efficiently, the Fingoes showing spirit, and generosity to the enemy. Colonel Somerset formed a junction with this force on the morning of the 8th. The colonel had under his command the Cape Mounted Rifles, a detachment of the 7th Dragoon Guards, and two heavy guns. Early in the day the united detachments encountered a very large force, under the command of the notorious marauding chief, Stock. The Caffres, confident in their numbers and in their recent successes, challenged the British to come on, and, in fact, commenced the action, throwing out skirmishers with something of the practice of regular troops; they afterwards made some furious charges with the assigai. The measures taken by Colonel Somerset were marked by his usual ability and promptitude, and the enemy suffered a most sanguinary defeat. When Stock perceived that the day was going against him, notwithstanding a protracted combat, he sent off several mounted men express for Pato, another chief. The latter sent a chief named Umhala, who advanced at the head of his tribe, but having no conception that his friends had experienced defeat, and supposing that he was only about to aid in taking a spoil, he was astonished to find himself suddenly in front of the fine force of Colonel Somerset. Meanwhile, Lieutenant-colonel Lindsay, who commanded in Fort Peddie, perceiving that the firing of cannon and musketry was heavy and protracted, sent out Captain Hogg, with a troop of the 7th Dragoon Guards and a gun, who came upon the rear of Umhala’s party just as Colonel Somerset met them. The Caffres, placed between two fires, their retreat cut off, numerous although they were, lost confidence and broke. They were charged fiercely,

and cut to pieces. Estimates were given of their loss, varying from three hundred to twice that number. The British loss was slight; about seven troopers fell, and several officers were very severely wounded, in close combat, by the assigai, a formidable weapon in the hands of a South African. Among the officers hurt were Sir Harry Darell, who was wounded in the thigh and arm severely; Cornet Bunbury also received several wounds. Captain Walpole, of the Engineers, was shot in the thigh, and a blow from an assigai upon the neck laid bare the windpipe. Those officers, Lieutenant O'Reilly, and others, displayed much personal prowess, cutting down the Caffres with their swords in close, desperate, and successful conflict.

The following letter gives a good description of the scene presented to the reinforcement sent out by Lieutenant-colonel Lindsay:—

"Colonel Somerset has been out to-day in the direction of Stock's Kraal. About an hour after he left we heard heavy firing, which lasted for two or three hours. It appears that they were challenged by a lot of Caffres in the bush; they went in after them and gave them a regular mauling, shot a great number of them, and coming out on the flat when they had polished these gentlemen off, they fell in with a body of about five hundred to six hundred, whom they also charged, and shot like so many dogs. I believe, at the lowest computation, three hundred and fifty were left dead on the field. This last body that they fell in with were Pato's Caffres, who heard the firing at Stock's Kraal, and were hastening to his assistance, when, luckily for us, they were caught upon the open flat, and the 7th Dragoons and Cape Corps charged them, and literally rode over them. I trust that this affair, coupled with the attack on Peddie, will cool their courage considerably. One corporal of the Cape Mounted Rifles was shot dead, and Sir Harry Darell, Captain Walpole, Royal Engineers, and Bunbury, together with some men of the 7th, are slightly wounded: I think four of them slightly, and one very dangerously. Colonel Somerset seems the only man that can bring them to their senses. They were all going down to attack supply waggons that were to come up from Trompetter's to-morrow morning, but I fancy, after to-day, they will not attempt it. I must now give you an account of the slaughter that took place shortly after. We were all very tired, having been on our legs from nine o'clock last night to midday to-day, with hardly any refreshment; we therefore hastened to the camp; however, we were disappointed in having refreshment. We saw the colonel's division a mile or two ahead, marching quietly on. Presently we saw a party ride ahead, and soon after a race. Then firing commenced. I rode up as fast as I could to the ridge; a spectacle was then presented to my view which I shall not forget. A large party of Caffres had collected near the Kieskamma, intending to move to-day towards the Fish River to intercept the waggons, and stop the communication. This party heard the firing and thought that the waggons were attacked. They hastened to help, but what was their astonishment when they found a large force in front of them. Fortunately, there was no bush to shelter them; they fired one volley and dismounted from their horses—about three hundred mounted and seven hundred foot. The Dragoons then charged them, and killed many; a panic seized them—they ran off, and were shot like sheep—dragoons, Cape Corps, Boers, all firing at them, following them up full six miles. They became completely exhausted—they could not run. The slaughter was awful! They were followed up to near the Kieskamma. The slaughter was on the

Gwanga, near Mr. Tainton's late place. The lowest estimate is, I believe, three hundred killed; very few were seen to get away. We took three prisoners—one at Hmpa-kati, belonging to Creili. He said the intention of the Caffres was to drive the Umlunguinto the sea. We asked how it was to-day. He said it was all finished to-day. Pato has crossed the Kieskamma. Umhala and Seyolo were with this command. How they fared we cannot tell. It is supposed that Stock was this day killed."

After this Colonel Somerset followed up his success. Many skirmishes, much plunder, and considerable loss of life occurred, but, in the end, the British forces remained victors. The Caffres, however, were not prevented from reorganising themselves for fresh forays.

STATE OF NEW ZEALAND.—SUPPRESSION OF THE NATIVE REVOLT.

It was not at the Cape only that our troops had to contend with savages of a superior race: the year began with a conflict in New Zealand. Captain Grey, the governor, having in vain endeavoured to conciliate the disaffected chiefs, proceeded, at the head of eleven hundred men—sailors, marines, and soldiers—to attack the principal pal, which was defended by stockades, so skilfully constructed, that it was necessary to erect works, and mount cannon and mortars, to dislodge their occupants. The subjugation of the place was effected after severe loss on the part of the enemy, and, unhappily, considerable loss on the part of her majesty's force. The capture of the pal led to the surrender of the chiefs, and before the month of January expired, peace was restored to the colony.

BORNEO.

The proceedings of the Borneo pirates having led the British Rajah Brooke to demand assistance, Captain Mundy, under the direction of Admiral Sir Thomas Cochrane, operated during the month of July in command of an effective maritime force. The squadron sailed up the river to Brune, the capital of the country, which was defended by several strong forts, and a heavy battery, _à fleur d'eau_, of eight brass and two iron guns, sixty-eight pounders. All; these defences were carried by the British sailors and marines, and terrible destruction inflicted upon the pirates. After effecting what appeared to be a complete subjugation of these hordes of sea robbers infesting these coasts, the squadron retired.

OUR NORTH AMERICAN COLONIES.

Canada.—The relations between Great Britain and the United States were so unsatisfactory at the beginning of this year that considerable uneasiness existed in Canada lest war should break out, and that colony become the chief theatre of contest. A militia bill passed the Canadian legislature, which was calculated to give confidence to the imperial government, and which placed the colony in an armed attitude towards her great neighbour.

The free-trade measures proposed to the British parliament caused even more disquietude than the differences with the United States. The Canadian producers were very jealous of these states as a competitor in supplying the English market, the legislature passed strong resolutions expressive of their alarm, and addressed the

crown, representing that free trade in corn between the neighbouring states and the mother country would be productive of the heaviest injuries to the colony. This address was one of the most sturdy pronouncements of protectionist opinion which the discussions of the day brought forth. The Canadians were happily disappointed. The imperial legislature was not checked in the enactment of its free-trade measures by this memorial; good was done to Canada in spite of herself; the legislators of the parent country understood the interests of Canada better than her own provincial parliament did, and the great prosperity of that country may be said to have begun with free trade. The year was one of alarm and discontent in both the upper and lower provinces. A dreadful fire in Quebec, which nearly destroyed the city, added to the other causes of disquietude.

Nova Scotia.—This colony also suffered some commercial depression, and endured apprehension of a war upon the North American continent. The fisheries were comparatively unproductive, and the potato crop failed. Happily the corn crops prospered, relieving considerably the pressure upon the resources of the people. A militia bill, occasioned by the apparently hostile policy of the United States government, provided for the defence of the province. Certain differences arose between the legislature and the crown, in connection with the crown revenues and the civil list, but the year closed upon the colony in peace, and with a fair measure of prosperity.

Newfoundland.—The affairs of this colony were characterised by nothing remarkable during the year, in a political point of view, but a great social calamity attracted the attention of the American colonies and of the mother-country. A conflagration broke out at St. John’s, which laid nearly the whole city in ashes. The fire happened on the 9th of June, and as the houses of the town were mostly built of wood, it soon spread beyond the power of any efforts which the population could command to restrain it. The Custom-house, Roman Catholic Church, Protestant Episcopal Cathedral, Court-house, jail, ordnance store, all the newspaper and printing-offices, the banks, the Hall of Legislature, post-office, and police-office, were all burnt clown, together with two whole streets, each more than a mile long, leaving 12,000 persons without a habitation. The shipping, near the wharves also caught fire, and some of the vessels were destroyed. The loss of property exceeded a million sterling.

FOREIGN AFFAIRS.

The United States.—On another page sufficient reference has been made to the circumstances attending the chief subject of dispute between Great Britain and the North American Union. The Oregon boundary was adjusted, and all fear of war between the two countries removed. The propositions made by the Earl of Aberdeen, the English foreign minister, were so unfavourable to his own country, and so completely a concession to America, that the president and senate at once accepted them. Had the navy of the United States driven our fleets from the Pacific, President Polk could hardly have expected terms more favourable to his nation. Indeed, the only energy which the noble earl displayed in his management of foreign affairs was in conceding what his queen and country had a good right to claim.

SOUTH AMERICA.

Brazil and La Plata.—On the southern part of the American continent events also occurred of some interest to England. During the previous year a united British and French force operated successfully against the dictator Rosas, who, in spite of the remonstrances of England, France, and Brazil, persisted in hostile operations against the republic of Monte Video. Notwithstanding the chastisement inflicted by the European navies, Rosas continued his hostility to Monte Video during the year. The measures taken against the tyrant by the governments of England and France were half measures. The Earl of Aberdeen and M. Guizot seemed to be associated in wondrous harmony of action, or rather inaction, when the joint interests of the two powers were concerned.

Differences arose between Great Britain and the Brazils in connexion with the slave-trade. A convention had existed between the two countries for its suppression on the coasts of Brazil; the period for which the convention existed expired early in the year, and the government of the Brazilian emperor notified to that of her Britannic majesty that it should not be renewed. This gave great umbrage to the latter government, which saw that the design of the Brazilians was to continue the infamous traffic. The British parliament consequently passed an act for subjecting Brazilian vessels, suspected of being engaged in the trade, to the jurisdiction of the English tribunals. Against this the Brazilian government protested, and sent a circular note conveying a copy of the protest to all other powers. On the 3rd of May the emperor delivered an address to the representatives of the nation, stating that he would support the dignity of his crown against the interference of Great Britain, and calling upon the assembly to support him. He at the same time, however, declared that he would be faithful to his engagements in putting an end to the trade in Africans. This was so vaguely expressed, and the desire of the Brazilian government was so evidently to foster that illicit commerce, and, if possible, involve England in a quarrel with some of the other maritime powers, that the English government was much incensed, and resolved upon stringent measures. In this they were opposed by the Manchester party, even by some among them who had taken a most active part in anti-slavery movements. The persons thus inconsistent were chiefly among the Society of Friends, who, while on the one hand they hated oppression, on the other hated war, even when waged to succour the oppressed. The chief movers in the Manchester agitation against the government policy towards Brazil, were, however, neither anti-slavery men, nor members of the Peace Society, but certain merchants engaged largely in the Brazilian trade, and whose political principles were very accommodating, always, somehow, being on the side of their interests, or supposed interests, in commercial matters. No war ensued, but the firm attitude taken by the English government prevented the renewal of the slave-trade by Brazilian merchants.

RELATIONS WITH CONTINENTAL EUROPE.

France.—The year 1846 was one of much discussion between England and France. Louis Philippe proved himself as insincere and selfish as the Bourbons always were, to whatever branch of that faithless family belonging. M. Guizot, the chief minister of the king, was as little candid as his master. The same treachery which

sullied the reminiscences of Ghent, characterised the procedure of the minister towards England in 1846. There were various subjects of difference between the two countries; but that which most occupied the attention of Europe was the Spanish marriages. Louis Philippe had a numerous family, was avaricious to the last degree, and allowed avarice and nepotism to govern his policy, rather than the honour and interests of the great kingdom over which he presided. He was desirous that one of his sons should marry the Queen of Spain, and that another should be united to her sister. The queen-mother favoured this idea, as did also the chief minister, Narvaez. On the other hand, it was alleged that the English government was intriguing for a prince of the house of Cobourg. This was not the case—at all events, when the Whigs came into power. Lord Palmerston, on behalf of his court and government, disclaimed it, and demanded that the royal family of Spain should be left free to follow their own inclinations, excepting only as regarded members of the royal family of France, against a union with which the English whig foreign minister protested, as a breach of the treaty of Utrecht. Mr. Disraeli, and others of the conservative party, were of opinion with M. Guizot, that such marriages as the French ministry contemplated would not infringe that treaty, which guaranteed that the throne of France and Spain should not be filled by the same person, but made no provision against marriages upon which such an event might appear to be contingent. The British government was firm in regarding the proceedings of Louis Philippe as directed by an unprincipled ambition, in defiance of treaties, and of the alliance between Great Britain and France then subsisting. The English government did not encourage a member of the house of Cobourg, but advocated the pretensions to her majesty’s hand of a Spanish prince, Don Enrique, the Queen of Spain’s own cousin. To this the French government was opposed, because Don Enrique was of liberal political opinions, and it was the policy of Louis Philippe and his _alter ego_, M. Guizot, to keep down liberal aspirations in Spain. The reaction policy of the French king and his minister was now in full operation, and this was, unfortunately, more felt at Madrid than at Paris. The King of the French wished, he alleged, to see the choice of the Spanish princess fall within the Bourbon circle; but a ban was laid on Don Enrique, because of his constitutionalism, or, as Guizot was pleased to designate it, his revolutionary opinions. The intrigue of the French government was successful, so far that the Queen of Spain was married to a Spanish Bourbon, brother to Don Enrique, a man whom the queen personally hated, a bigoted devotee and reactionary, whose fanaticism against liberty was morbid, and who was an avowed Carlist, openly denying the right of the Queen of Spain to the throne. Whatever could be supposed as likely to influence the fortunes of the young queen and of the Spanish nation, unfavourably, in connection with a royal marriage, was associated with this; but Louis Philippe and M. Guizot cared for none of these things, so as their own project was accomplished. At the same time the sister of the queen was married to the Duc de Montpensier, a son of Louis Philippe. The two marriages were celebrated together with great pomp and ceremony. The Spanish government did not much care whether the royal lady married an Orleans or a Cobourg, so as France or England were engaged on its side against the apprehension of a republican or Carlist revolt; and, on the whole, France was supposed more likely to interfere for such a purpose than Great Britain.

The singular dishonesty of M. Guizot and his master startled the politicians of Europe. The French government had pledged itself to the English not to take any step to secure the hand of either of the royal ladies of Spain for a French prince. M. Guizot afterwards justified his conduct by alleging that the English government was secretly abetting the interests of a Cobourg. He admitted that he could not prove this, but justified his acting upon such a strong suspicion as he entertained. When, in 1847, M. Thiers brought on certain stormy discussions in the French chambers on this subject, the admission was wrung from the French foreign minister that the conduct of England had been loyal and honourable—that no efforts had been made to press a Cobourg upon the attention of the Spanish court; this too celebrated person thus convicting himself of premeditated bad faith, and of resorting to accusations and falsehood to vindicate a policy which he had falsely and wilfully initiated, or, at all events, pursued, when initiated by his royal master.

One feature of the infidelity of the French court and minister to their engagements excited the indignation of all honourable minds acquainted with it. When the English government detected the intention of Louis Philippe to break his engagements and to prosecute the Montpensier marriage, that government urged that, at all events, it was desirable, if the treaty of Utrecht was to be observed, that the Queen of Spain should have an heir to the throne before the marriage of her sister took place. The French minister promised that the marriages should not take place _at the same time_. When the English government remonstrated upon the disregard of this engagement, shown in the actual fact that the two marriages had their celebration together, M. Guizot justified himself by alleging that, inasmuch as the queen was married first, although her sister was married immediately after, the ceremonial was not celebrated at the same time! This audacious departure from every decent observance of truth and honesty was perpetrated by a man who is lauded by the _savons_ of France to this day as one of their illustrious number. His Memoir of Sir Robert Peel is popular in England, and he has since been received with favour in London! The whole administration of M. Guizot, foreign and domestic, was a dishonour and a curse to France, and supplies one of the dark pages of her history.

It was on the 10th of October that Louis Philippe and M. Guizot consummated their treachery to England, and their selfish policy towards Spain, and laid the foundation for an alienation between the French and English governments, which continued until the hypocrite king was hurled from the throne of France.

Spain.—The policy of the King of the French to Spain was not regarded with any interest by the mass of the Spanish people. The English government and citizens supposed that the Spanish marriages would bring about a revolution, but the people looked coldly on. The French king understood the Spanish nation better than it was understood in England. There was, however, a large party in Spain which regarded the designs of the French king with an enlightened and politic alarm. Thus, when the Spanish government selected him as mediator with the pope, to effect a reconciliation between the courts of Rome and Madrid, the language of suspicion uttered by Senor Leijas Lozano expressed the real views of most men of cultivated minds in Spain:—“For my part, I admit that I had much suspicion, mingled with fear,

when it was determined to select France as our mediator with Rome, and these fears I have not yet got rid of. The question is, are the offers of service made by France to the Spanish government sufficiently frank?—are they sincere? I fear they are not. _Her interests are not identified with ours_. I may be mistaken, but my firm belief is that it is the interests of France that we shall remain as isolated as possible until the great events she desires be effected."

A strong conviction was entertained by many eminent men in Spain, that Sir Robert Peel and the Earl of Aberdeen had complicated the question of the Spanish marriages; that, although the Whigs repudiated with sincerity all interference, these two statesmen had coquetted with the question of a Cobourg alliance for the Spanish queen, and that in doing so they were only carrying out the wishes of the English court; that the knowledge obtained of these facts by the secret agents of the French king, and of the queen-mother of Spain, made both less scrupulous, and hastened the perfection of a plot which, but for such discoveries, the royal intriguants would not have had the boldness to prosecute.

Ministerial changes were frequent in Spain throughout the year. The Narvaez ministry was broken up, and that of Senor Isturitz followed; that too was destroyed. Narvaez was successful in his intrigues, supported by the queen-mother and the King of the French. England looked on with jealousy; and it was supposed in Spain that, but for the disasters and conflicts which occurred within the bounds of her own empire, she would have interfered in a more tangible manner. French gold was freely spent in Spain to facilitate French policy; and so corrupt were the public men of that country, that, as Louis Philippe well knew, money, applied skilfully, could change ministers and effect revolutions with a facility unknown to any other country in the world.

Portugal.—The Portuguese government gave satisfactory assurances, in answer to the demands of England, that the anti-slavery stipulations between the two countries should be carried into effect more efficaciously than heretofore; the intercourse between the two nations was therefore peaceful and satisfactory. The intrigues of the French court were, however, extended to that part of the Iberian peninsula also. The court of Portugal was invited to reactionary measures by the French minister, and French political agents were busy in Lisbon, Oporto, Coimbra, and elsewhere. The Cabrai government became unpopular; Castro Cabrai was supposed to exercise an undue influence; and José Cabrai, his brother, the minister of justice, was unpopular everywhere, but especially at Oporto, from which city he had to flee for his life. The Cabrai government was ultimately driven from office and from the capital: these events occurred in May. The queen now committed affairs to the Marquis de Palmella, and issued proclamations restoring liberty of the press, and remitting the exorbitant burial fees demanded by the priests, which had been enforced by the government: these measures restored peace. The French court incessantly intrigued against this government also, and in four months after its formation it was abruptly dismissed; the result was civil war. Two distinct insurrections went on together—a republican or radical one in the south, and a Miguellite revolt in the north. It was generally supposed by the Portuguese that the

faction of the court was in favour with the court of England, as Colonel Wylde, equerry to Prince Albert, attended the camp of the royal commander-inchief. The colonel, however, acted as commissioner of the British government, which felt a deep interest in the distresses of Portugal—peculiar treaties binding the two countries. The year 1846 closed over the Iberian peninsula in discord, turbulence, and woe.

The Papal States.—According to the constitution, England held no diplomatic connection with the court of Rome. The proceedings of that court, however, had an important influence upon the British empire, as four-fifths of the Irish population were Roman Catholics, and in Eastern Canada, Newfoundland, and other British colonies or dependencies, many of the people were of the same religion. The events of the year at Rome were the death of Pope Gregory XVI., and the election of Cardinal Mastei to the pontifical chair, who assumed the title of Pius IX. One of his first acts was to publish an amnesty for political offenders, which gave great satisfaction to the inhabitants of the Roman States. This was speedily followed by a tariff reform, based upon sound views of the interests of the Roman people. Throughout the year, his civil and sacerdotal administration were alike popular within the states, throughout Italy, and all over Europe. The French, Austrian, Neapolitan, Spanish, and Portuguese governments were all, however, incensed at the liberal tendencies of the new pope. The Roman Catholic subjects of the Queen of Great Britain and Ireland received the announcements of the pontifical liberality with favour; it was thought that by these means the objections of Protestants would be softened, and a way opened for the reconciliation of many, especially liberal churchmen, to Rome.

Poland.—The sympathies of England were aroused by events in Poland, which extinguished the last spark of Polish liberty. Throughout all the provinces, a desire existed to make one effort more for freedom. The hope of disenthralling their native land animated every heart. An ill-concerted insurrection, was the inevitable consequence of this strong feeling; and as Cracow was a free city, under the guarantee of the treaty of Vienna, the insurgents believed that they could use it as a _point d’appui_. In the month of February, the circle of Tarnow rose in arms. The peasantry of Silesia, armed with scythes, attacked the Austrian troops under General Collin, and drove them out of Cracow. A provisional government was instituted there; Poland was called upon to rise at once; and all nations, especially France and England, were appealed to in passionate terms for aid. After various successes by the revolters, they were at last encountered by superior forces, and repeatedly defeated: Cracow was taken by the Austrians, and its independence extinguished. The English and French ministers protested against this as a violation of the treaty of Vienna. Russia and Prussia supported the policy of Austria, who replied to the Western diplomatists that the proceedings of the Poles was a violation of the treaty of Vienna, and that it was necessary to the integrity and peace of the Austrian empire that Cracow should be no longer a focus of rebellion. The Western governments satisfied themselves with protests, and the last green spot of Polish independence had its life stamped out by the foot of Austrian despotism.

Such were the general relations of England during the year 1846. Colonial revolt was suppressed; a powerful invader was driven back from her oriental territory; and

she maintained with honour her European policy, and peace with neighbouring nations, under circumstances of great provocation; her star shone with more lustre in the eyes of foreign nations when the year terminated than when it opened.

HOME.

The parliamentary events of the year have already been narrated. There were many home incidents which were not comprised in the records of parliament. In the month of January, Wales was visited with disastrous inundations, which destroyed a vast amount of property, and caused much distress. More liberal arrangements were made about this time for the reward and promotion of deserving privates and non-commissioned officers of the army. In the month of February, Captain Rous, the member for Westminster, having accepted office under Sir Robert Peel's administration, a new election became necessary. The captain was opposed by Lieutenant-general Sir de Lacy Evans, one of the most chivalrous and accomplished soldiers in the British army. The result was in favour of the gallant general by nearly one thousand. Sir de Lacy, being returned as a thoroughly liberal politician, this event was "a heavy blow, and great discouragement" to the administration of Sir Robert Peel. In South Nottinghamshire an election also occurred, in which Lord Lincoln, a political _protégé_ of Sir Robert's, was defeated by Mr. Hildyard, a protectionist, by a very large majority. These events were supposed to foreshadow the speedy demise of the Peel administration. In the following month, Lord Lincoln was defeated at North Nottingham, polling only two hundred and seventeen votes against one thousand seven hundred and forty-two, polled by Lord H. Bentinck. During the early part of the year, a serious revulsion took place in railway speculation; the rate of money became high; a panic seized the speculators and adventurers in such undertakings: in this way many incurred serious loss. The public were startled in various parts of Great Britain by shocking railway accidents, generally the result of carelessness on the part of the officials, or deficient inspection and control on the part of directors.

On the 25th of May, her: majesty was safely delivered of a daughter.

Much interest was excited in June by a visit from Ibrahim Pasha, the celebrated Egyptian prince and soldier. His highness inspected the dock-yards and public places, paid his respects to the court, and was feted and entertained by public men, especially of the navy and army.

A public dinner was given to the postage reformer, Mr. Rowland Hill, on the 17th of June, and a testimonial presented to him on the part of the merchants of London, which (including a first instalment handed to him in 1845) amounted to £13,360 19s. 5d.

On the 25th, the infant princess was baptised: the name given to her was Helena Augusta Victoria. The sponsors were her Royal Highness the Duchess of Kent, proxy for the Duchess of Orleans; his Royal Highness the Hereditary Grand-duke of Mecklenburg-Strelitz; her Royal Highness the Duchess of Cambridge.

Prince Albert visited the town and port of Liverpool, on the 30th, for the purpose of opening the Albert Dock, and of laying the first stone of the Sailors' Home. The

reception of his royal highness was worthy of the great commercial community by which he was invited.

August was ushered in by one of the most terrible hailstorms ever witnessed in London. It lasted for more than three hours, and created great devastation. Inundations spread, and the windows of the public buildings were extensively shattered. The glass in the roof of the picture-gallery at Buckingham Palace was totally destroyed; the damage was estimated at £2000. In the Houses of Parliament and Westminster Hall, seven thousand panes of glass were broken; in the head office of police, Scotland Yard, three hundred; in Burford's panorama, ten thousand. A Citizen steamer on the river was struck by lightning off Battersea. The suburbs of London suffered from floods, hail, and lightning, and the royal parks were much damaged, especially that at Windsor.

Much interest was excited by the marine excursions taken by her majesty during that summer to the Channel Islands, and various places on the southern coast of England.

On the 29th of September, an event occurred in London which attracted much attention. The equestrian statue of the Duke of Wellington, by Wyatt, was removed from the artist's studio, in the Harrow Road, to the Triumphal Arch, at Hyde Park Corner, where it was set upon the pedestal prepared for it. The illustrious spectators in Apsley House were almost as much objects of interest to the multitude below, as the colossal statue erected to the honour of the hero of Waterloo.

The failure of the harvest throughout the British Isles caused in England a profound sensation. Prayers set apart to be used in a time of scarcity were offered up, and subscriptions for the poor were most generously bestowed by those whose means were ample, and by many from limited resources: British benevolence had been seldom seen to such advantage. During the month of November tempestuous weather prevailed along the coasts, causing many wrecks and much loss of life. Early in December, the severity of winter fell upon the British Isles. On the 10th, the mercury was fourteen degrees below the freezing-point in London. This severe weather added to the sufferings of the people, already pressed by scarcity of food. In the Highlands of Scotland, and in Ireland, stern destitution was experienced by the whole peasantry.

During the year many eminent persons died whose names shed a lustre on British history. In January, the Eight Honourable John Hookham Frère, M.A., expired, who had been ambassador to Spain at the beginning of the century. His representations had much influence in inducing the English government to set on foot the expedition to the peninsula, which shed so much glory on the arms of Britain. Earl Granville, whose name is so closely associated with English political and diplomatic history, also died within the month. During the following month, the antiquary, Gaily Knight, and General Sir Henry Clinton, G.C.B., were among the celebrities who passed away. In the month of March, the decease of Mr. Liston, the comedian, attracted public notice. In June, Haydon, the celebrated painter, died by his own hand, impelled by want. He had frequently been indebted to the generous-hearted liberality of Sir Robert and

Lady Peel for aid, and the last assistance he ever received was from these compassionate benefactors, the friends of so many artists and literary men, as well as of poor Haydon. The genius of this artist, as well as the record of his misfortunes, will go down to posterity. Soon after Haydon's melancholy death, in the month of July, "Charlotte Elizabeth," the writer of so many beautiful religious books, was called to her happy home. The same month, the Eight Honourable Sir George Murray, the friend and companion of Wellington, in both his military and political career, died in London. August witnessed the decease of the veteran anti-reformer, Sir Charles Wetherell. In September Lord Metcalfe died, regretted much by the political world; and Thomas Clarkson, the philanthropist, to whose exertions in the first instance humanity was indebted for the abolition of the slave-trade, also passed into rest. In the last month of the year the Eight Honourable Thomas Grenville died in his ninety-first year, after a political and diplomatic life very eventful.

The year 1846 was replete with transactions of great historical importance; at its close England stood with a crown of many victories upon her brow, but with many cares and anxieties; the chief of these was the distress in England, and wide-spread starvation in the Highlands of Scotland and in Ireland. Another chapter will reveal how evils of such magnitude were encountered.

CHAPTER LIX.

{VICTORIA. 1847}

Colonial Affairs..... Foreign Relations..... State of Ireland: Progress of Famine and Disease; Political Agitation; Prevalence of Crime..... Death of O'Connell..... Old Ireland and Young Ireland Parties..... General State of Affairs in Great Britain..... Naval and Military Events..... Home Incidents..... Decease of Remarkable Persons..... Parliamentary Proceedings.

COLONIAL AFFAIRS.

{A.D. 1847}

It is convenient to notice first in order the colonial and foreign relations of the country, as home events derived their character from these; parliamentary and party proceedings, more especially, turned often, in a great measure, upon the prospects and condition of our colonies, and the relations which we bore to foreign powers. This was less the case in 1846 and 1847 than in most other periods, because the failure of the harvests, the consequent overwhelming distress through out the British Isles, and the disaffection in Ireland, demanded the most earnest attention of parliament and the ministry.

India.—The state of India, throughout this year, was one of prosperity and peace. The Punjaub, however, created some disquietude, and there were border disturbances within the acquired territory of Scinde.

It will be recollected that in the last chapter the appointment of a council of regency at Lahore was recorded. This body excited the ranee's jealousy, whose disposition for intrigue was once more evoked; she endeavoured to neutralise the action of the council. Representations concerning this state of things were made to the governor-general, who signified his approbation of the policy proposed by the council for her exile from the capital. She was accordingly seized, and sent under escort to a distance, where she' was detained, and Lahore and the Punjaub were exempt from troubles throughout the year.

In Scinde the border tribes were restless, and made frequent predatory incursions upon the British territory. On one occasion, a body of seven hunded infantry and a troop of horse, headed by several chiefs, made a foray. Lieutenant Merewether, of "the Scinde Irregular Horse," was sent, at the head of about one hundred and thirty men, to observe, and, if possible, disperse them. This gallant young officer came up with the marauders in a locality unfavourable for immediate action; they were moving in a direction which would have afforded them the protection of some sand hills and jungle. Mr. Merewether rode along their front without charging them, in order to gain their flank, and compel them to keep the open plain, in a situation more favourable for the action of cavalry. They did not understand this manouvre, and supposed it to signify that the lieutenant did not deem it prudent to assail them. Encouraged by this idea they attacked him, coming on with great exultation. This gave the skilful and intrepid young officer the advantage he desired; he wheeled to the left, formed his men in an instant, charged, and cut up the enemy fearfully. The infantry endeavoured to retreat; such of the horsemen as were left galloped away. Mr. Merewether allowed their infantry no opportunity to retire to a position where they might receive cavalry advantageously; but still acting upon their flank, and keeping them in the open plain, he again and again charged, each time cutting them down as the mower cuts the ripe hay. They were offered quarter, but with great bravery stood to their arms, until not one-fourth of their original number remained; they then laid down their weapons. Of the whole body, except the few horsemen who became fugitives after the first charge, not one escaped destruction or captivity. Lieutenant Merewether lost very few men; he himself had miraculous escapes, for he was foremost in every charge, exposing himself with the utmost audacity. This gallant little action drew upon the young soldier the attention and commendation not only of his superiors in authority, but of the army of India. The exploit was recorded in the papers at home, and was the theme of every news-room and club. The English people are always more quick to appreciate and reward valour than their government.

Sir Charles Napier, after conquering Scinde by the highest military daring and skill, ruled it with a rare political sagacity. His attempts at military reform brought upon him the ill-will of the Indian military authorities, and the directors at home. The reforms introduced by the gallant general bore the impress of his genius and his indomitable will. His prophetic predictions concerning the evils that would certainly result from the state of discipline in which he found the Sepoy armies, were, unfortunately, all fulfilled. In the memoir of this gallant general, written by his brother, Lieutenant-general Sir William Napier, the merits of the case are amply, although it must be admitted, not dispassionately discussed. The material is,

however, afforded for a just judgment upon the controversy. It can hardly be doubted the gallant general was insubordinate; that he assumed authority to which he was not entitled, and ruled with a glorious and intellectual tyranny, which was not the less a tyranny because of the genius by which it was directed. The general's faults were, however, overlooked by his country, which was served by him through an eventful life, with much honour to himself; it is sad to say that his services as well as his errors were overlooked by the government.

The public appreciation of him was just; they regarded him as a hero, and a bold and skilful governor. His brother justly described the public opinion of England when he wrote—"His fame has been accepted by the British people as belonging to the glory of the nation."

Lord Hardinge did not long continue to govern India after Sir Charles resigned the government of Scinde. Upon his resignation Lord Dalhousie was appointed, through the especial influence of the Duke of Wellington. This appointment has been described as the only job which the illustrious duke ever perpetrated, and reasons were assigned for this unsuited to the pages of this history. Lord Dalhousie possessed many qualifications for his high office, but he was pedantic, had too jealous a sense of the dignity of his office, and often refused to listen to the advice of officers, well qualified to offer it, on military matters, which, whatever might be the noble lord's opinions of his own parts, were rather beyond his knowledge. He entered upon his government under auspicious circumstances. The celebrated Akhbar Khan, the malignant enemy of the English during the unfortunate affair at Cabul, died this year, and made one less to the many opponents of British rule among the chiefs of India and the contiguous countries.

The Cape of Good Hope.—The disturbances of the previous year were not wholly quelled at the Cape. The Caffres continued to make forays within the colony, and to plunder cattle. They were pursued and punished, and considerable herds were recaptured. The feelings of all the Caffre tribes were utterly hostile, and peace was only attainable by the exercise of indisputable force.

Our American Colonies.—Peace and prosperity characterised the history of our American colonial possessions during this year. The failure of the potato crop caused some inconvenience and distress, but the general agricultural and commercial success compensated for this disadvantage. Security was also felt, as apprehension of a war with the United States had entirely passed away. In the legislatures of Canada and Nova Scotia there was, however, discontent with the measures of the governors of these colonies, and the imperial administration and legislature. This discontent found vent in orations, and through the columns of the press, but did not disturb colonial tranquillity nor interrupt the progress of government: those free countries were gradually laying the foundation for a future and a glorious period of wealth and greatness.

Borneo.—It was again necessary to chastise the Borneo pirates. On the 30th the British steam frigate _Nemesis_ engaged a fleet of Soluprahus, off Labuam The ship was crossing over to Labuan from Brune, with the rajah of Sarawak on board. When

off the island of Moora the _Nemesis_ came suddenly upon a fleet of eleven pirate boats, pursuing a trading prahu. The _Nemesis_ chased the pirates to the shore, who drew up in line along the beach. The pirates first opened the combat. For about two hours the cannonade lasted; when the fire of the prahus was subdued, the marines and sailors proceeded in boats to finish the destruction of the pirate craft. Five of these war prahus were destroyed, and about eighty pirates killed, and perhaps as many wounded. The rest and their crews escaped, but the boats were much disabled. From the guns and other material captured, it was plain that a Dutch merchant ship of considerable value had fallen into the pirates' hands. Some operations on shore speedily followed, from which the robbers suffered severely. One British seaman was killed, and seven wounded.

FOREIGN RELATIONS.

The conduct of the Chinese, ever since the peace executed by Sir Henry Pottinger, had been such as to show that the treaty was not intended to be kept by the authorities any longer than force constrained, and that with the people all intercourse with foreigners on equal terms was unpopular. During 1846 unoffending Europeans at Canton were frequently attacked, and on one occasion the factories were stormed, and only after a protracted conflict did the Europeans and Americans succeed in expelling the assailants. The government of Canton always affected to deprecate this violence on the part of the Cantonese, and as far as proclamations went there was a magnificent display of justice. Several Englishmen and other foreigners were murdered, and certain innocent Chinese were seized and executed by the mandarins, while the murderers were notoriously at large. In 1847 the merchants, who had often in vain called for protection and redress from the British government, drew up a memorial of their wrongs, which induced Sir John Davis, the governor of Hong-Kong, to interfere on their behalf. Sir Robert Peel and Lord Aberdeen seemed to adopt the policy of submitting to any indignities the Chinese government or people might offer, rather than interrupt commercial relations, or create any embarrassment at home. Possibly the state of parties and the general distress at home may have influenced the premier and the foreign minister to adopt this course, but its result was injurious to British interests and to humanity; it entailed a still greater interruption of commerce, and involved a larger sacrifice of human life.

The demands of the merchants were:—1. A distinct recognition of their rights to go such distance into the surrounding country as could be traversed, either by land or water, in one day out and home; and full protection during such period from attack or insult.—2. A space of ground of about fifty acres at Honan, or in some other convenient part of the suburbs, for the erection of warehouses and dwelling-houses.—3. A site for a church and church-yard* for British residents.

* By a "church yard" was meant a burial-ground attached to the church, for Europeans only.

—4. A burial-ground for the Parsee community, either on Dares or French Island, of forty thousand square feet.—5. A bridge to be thrown over the passage of Hog Lane, to connect the two factory gardens.—6. A cook-house for Lascars in Hog

Lane.—7. The railing in of Lower China Street and the lower part of Hog Lane, and the garden walls to be kept free from Chinese buildings, excepting the military and police stations already erected.—8. Removal of the stationary boats which at present encumber the avenue to the factory gardens at the river-side.

Sir John Davis determined upon seeking redress for the various insults and outrages which had been inflicted, whatever might be the propriety of requesting the concession of such advantages as the merchants sought. In the opinion of Sir John, who knew the Chinese well, no demand would meet with attention which was not backed with military force. Orientals comprehend only that argument which Europeans regard as the _dernier resort_. The Chinese authorities were taken by surprise, or they would have prepared for resistance, and met the military demonstration of the English governor with defiance or stratagem. Major-general D'Aguilar commanded the British troops. As soon as he received the directions of the plenipotentiary, he consulted with Captain M'Dougall in command of her majesty's ship _Vulture_. These officers agreed that the force at their disposal was inadequate to the enterprise, but that, as audacity and promptitude were the best weapons with oriental nations, it would be well to act at once with such forces as they could employ. General D'Aguilar considered it also important to impress practically upon the mind of the Chinese authorities the possibility of the garrison and the naval force at Hong-Kong being sufficient, without aid from India or England, to chastise any affronts or injuries offered to British persons, honour, or interests. It had been well if, in subsequent events, similar views had been entertained by British officers and British governments. The promptitude of the general's action harmonised with the wisdom and boldness of his opinion. By midnight of the day on which he received his orders, the troops were embarked; and at nine o'clock the following morning the squadron arrived at the Bocca Tigris. The _Vulture_ then lowered her boats, into which the general ordered two detachments, the one under Lieutenant-colonel Brereton, the other under his own immediate orders. On landing, all the batteries were seized, the guns spiked, the ammunition destroyed, and the garrisons sent, unmolested, away. This bold measure was necessary to the safety of the general's small force, for had he left these batteries in his rear, his return would have been endangered. At six o'clock, the squadron arrived at Whampoa. As the _Vulture_ was of too large a draught to proceed higher, the troops were placed on board the steamers _Pluto_ and _Corsair_. Sir John Davis accompanied the general in the _Pluto_. At eleven o'clock the squadron arrived before several forts, which were attacked. Lieutenant-colonel Brereton, landing, took two of them by a _coup de main_, blowing in the gates with gunpowder, and instantly seizing and spiking the guns. General D'Aguilar and his party were received by the other two forts with round and case shot, but the boats pushed in, blew open the gates, and spiked the guns, the garrison retreating by the rear. The expedition then proceeded to the French Folly Fort, a stronger place than any of those already captured, and situated on one of the narrowest bends of the river. The British swooped down upon this place as an eagle upon its prey, and their rapidity was rewarded by its immediate capture, for a few minutes delay and the guns of the work would have given our troops a reception more warm than welcome. Four other batteries were taken and spiked on

their way up river by the general and commodore, and by six o'clock in the evening the troops were landed in the factories. Eight hundred and seventy-nine pieces of Chinese cannon had been spiked, to the amazement of the enemy, who had no time to recover from the panic into which so sudden an incursion threw them. The general, upon landing, placed the factories in a state of efficient defence by barricades, and such other means as were at his immediate command. The Chinese commissioner, Keying, now waited upon Sir John Davis, but refused to comply with his demands; the next day, however, the high commissioner requested another day's delay. This was granted, and the terms demanded were ultimately agreed to by the commissioner. General D'Aguilar withdrew the troops, except a company of sappers, and the light company of the 18th royal regiment of the line. These were ordered to remain until what was promised should be fully executed. This feat of the English general's was one of the most dashing ever executed with so small a body of men. The whole military force did not amount to one thousand men, and the naval force could only afford a few hundred sailors and marines for land operations. Audacity and rapidity carried the day—the grand secret of success in Asiatic warfare.

The Chinese, however, had no intention of observing the treaty; and when all appeared to be adjusted, six British subjects, who made a short excursion, in agreement with one of its clauses, were barbarously murdered. They were attacked by the whole population of the place which they visited. The Englishmen, when at last compelled to defend themselves, slew one and wounded several of their assailants. It required much negotiation to secure the punishment of some of the murderers, four of whom were decapitated, and a few others received minor punishments.

Whenever the French found that the British displayed vigour towards the Chinese, they made out a grievance, and sent an armed force to demand redress somewhere. Their object seemed to be to show that France also was a great nation, and could enforce respect. Two French ships of war appeared in the Bay of Touron during this year, to demand redress from the government of Cochin China, for injuries alleged to have been inflicted upon French Roman Catholic priests. Their demand not having been at once complied with, and some treachery on the part of the natives having been detected, the French ships opened fire upon the war-junks, sinking and destroying many, and slaying more than a thousand men.

The conduct of the Chinese to Europeans generally, during the year 1847, kept them, the British more especially, in a constant sense of danger. Applications were made for reinforcements, but, notwithstanding the prodigious armaments of England in India, and her resources elsewhere, it was with extreme difficulty that any additional force could be obtained. The following parliamentary papers show the perilous routine necessary on every occasion when our officers require even the most paltry reinforcement. General D'Aguilar applied to Major-general Smelt, the officer commanding at Ceylon, for two guns and a few artillerymen. In a month after, General Smelt wrote to Lord Fitzroy Somerset, the military secretary at the Horse-Guards, informing him that if he (General Smelt) _heard again_ from General D'Aguilar that the reinforcement was necessary, he would send it! but that, in doing so, he should leave Ceylon all but utterly unprotected, so far as artillery was

concerned. Lord Torrington, the governor of Ceylon, at the same time communicated this “great fact”—that two guns and a few men were wanting at Hong-Kong—to Earl Grey, the colonial minister, who, at the latter end of November, sent a despatch to General D’Aguilar, telling him not to do anything against the Chinese without authority from home! The discretionary power in the hands of Sir John Davis, and the promptitude, energy, and enterprise of the general, obtained, with less bloodshed than frequently occurred in a street riot in Canton, redress of grievances, a recognition of rights, and a series of important concessions. If it had been necessary to refer these disputes to the Colonial Office at home, everything would have been frustrated. Possibly a grand expedition, at an enormous expense, would have gone out in a year or so afterwards, and an expenditure of British as well as Chinese life on a large scale have resulted. In spheres so distant, men thoroughly competent to act ought, in both civil and military matters, to be appointed, and the honour of the country should be committed to their hands. With a small force, complete in itself, at the disposal of such men, more could be effected at the moment for the honour and interests of the country than by long and roundabout despatches, passing through so many hands that one fool in authority nullifies all, as a bad link in an otherwise good chain renders the whole useless. Omitting the other portions of the correspondence, the following letter from Major-general D’Aguilar, dated Hong-Kong, August 21, 1847, to Major-general Smelt, reveals sufficiently the incompetent arrangements for British interests in China, in 1847:—

“Although I have not the pleasure of your personal acquaintance, your character and services are so well known to me, that I venture to address you without form or ceremony. I have every reason to hope that things will settle down here peaceably, but I have no positive assurance of it; and if circumstances should occur to oblige me to go to Canton again, I am but badly off for artillery. I can never hope to surprise the Chinese defences a second time; and whatever I do must be done in form, and with reference to the altered position of things.

“Under these circumstances, I write to ask if you can spare me half a company of artillery, with their proportionate number of field-guns and ammunition complete. I should only want them for six weeks, and I promise you to send them faithfully back the moment the service is over.

“Should the contingency—the possibility of which is on the cards—occur, I shall endeavour to avoid taking the field before the end of November, when the cool weather will add strength to our exertions; and I will take care to give you the earliest notice of my intention. In the meantime, perhaps, you would kindly prepare Lord Torrington for this request on my part, and afford me your interest in giving effect to it, should circumstances render it necessary.

“A couple of 9–pounders, with the half-company of artillery, would be the best; but if they are not to be had, then anything your people are supplied with.”

On receipt of the above, Major-general Smelt wrote as follows to Lieutenant-general Lord Fitzroy Somerset.

The letter was dated Colombo, Ceylon, September 22nd, 1847:—

“I have the honour to inform your lordship that I received, two days ago, a letter from Major-general D’Aguilar, commanding in China, informing me that it is likely that he would require a reinforcement of artillery in the event of operations being carried on at Canton towards the end? of this year, and requesting me, if I could spare it, and circumstances rendered it necessary, to afford him a half company of artillery, with two 9–pounder guns complete, with ammunition, &c.

“I shall therefore be prepared, should I hear again from General D’Aguilar that their services would actually be required, to send such force as, in the present strength of artillery in this command, would be in my power. But your lordship is aware that the whole amount of artillery throughout this island only consists of two weak companies, reduced in their number of Europeans in consequence of a proportion of gun-lascars; and the only ordnance that I could spare, at present equipped for service, are 4 ⅖ inch howitzer guns, having neither 9–pounder nor 6–pounder guns, excepting two of the latter, which have no carriages.

“Under these circumstances, and with the recommendation of his excellency the governor, I should be able to afford a detachment of one officer and twenty-five gunners, with a proportion of non-commissioned officers and the two howitzers above mentioned. I am informed by General D’Aguilar, who will give me the earliest notice of his plans, that he would only require this force for six weeks, and that it should be sent back to me immediately the service is over; in the meantime, as this draft would reduce my strength of European artillerymen in this island by about one-third, I shall, in order to repair the deficiency, cause a portion of the soldiers from the line regiment, equal to about five men per company, to be trained and exercised at the gun drill.

“I have to add that a draft of one hundred and twenty men of the Ceylon Rifle Regiment are under orders, and will probably sail the end of this month for Hong-Kong, to complete the six companies at present serving there to their full complement of one hundred rank and file; these companies having been sent to China so much under their establishment with a view to their being completed by recruits sent from Singapore, but the uncertain state of things there rendering it quite necessary now that trained soldiers should be sent from this place, which I trust will meet with the approbation of his grace the commander-inchief.”

The foregoing offer of assistance was finally countermanded by Earl Grey, in a despatch to Major-general D’Aguilar, dated Colonial Office, November the 24th, 1847:—

“The governor of Ceylon has communicated to me an application which you have made to the major-general commanding her majesty’s troops in that island, for a reinforcement of half a company of artillery, with two guns, and a proportionate supply of ammunition, to be held in readiness to be forwarded to Hong-Kong, should circumstances render it necessary to undertake any further military operations at Canton.

“I have desired the governor of Ceylon not to send to Hong-Kong the detachment for which you have made application; and I have further to signify to you that her

majesty’s government peremptorily forbid you to undertake any further offensive operations against the Chinese without their previous sanction. Her majesty’s government are satisfied that, although the late operations in the Canton River were attended with immediate success, the risk of a second attempt of the same kind would far overbalance any advantage to be derived from such a step. If the conduct of the Chinese authorities should, unfortunately, render another appeal to arms inevitable, it will be necessary that it should be made after due preparation, and with the employment of such an amount of force as may afford just grounds for expecting that the objects which may be proposed by such a measure will be effectually accomplished without unnecessary loss.”

Lord Grey was right, that a similar expedition, if made with the same force, would probably fail. General D’Aguilar knew that rather better than Lord Grey, and did not need a pompous despatch from the Colonial Office to inform him of it. But the general did not mean to attempt the same thing with the same force, and therefore sent for aid where he might naturally have expected to derive the little he sought. There can be no doubt that if matters had been left to the general’s own discretion, and his forces been adequately strengthened, he would have performed what was proper to the occasion, and, perhaps, all that English safety and interests required, and thereby have averted future conflict, as well as the humiliations which Englishmen had to endure, and to punish at a great cost of treasure and immense sacrifice of blood.

France.—The Spanish marriages caused stormy debates in the French chambers, which reflected much moral discredit upon the King of the French, his minister Guizot, his ambassador M. Bresson, the queen and queen-mother of Spain, and Narvaez, the chief abettor and tool of the faction of Christina. The eloquent denunciations of M. Thiers against Guizot and his policy told upon the French mind, and led to modifications in the cabinet; but this clever invective was purely in the spirit of party: the honour of France and the love of truth were as little considered by the one leader as the other. The British government maintained an attitude of coldness to that of France, but it was not possible to act independently of it: in many of the affairs of other countries to which England stood related, and in every instance, the influence of the French king was prejudicial to the interests and moral influence of England. On the completion of the Spanish marriages M. Bresson returned to Paris, and had the impudence to demand, as his reward for his share in that transaction, the embassy to London. This was refused, on the ground that the relations of France to Great Britain were too delicate to be committed to the minister who had the chief part in producing the coldness which existed. He then demanded the embassy to St. Petersburg, but this post required higher qualifications than were conceded to M. Bresson by his government. He was nominated to the French ministry at Naples, and proceeded to his destination reluctantly, considering the appointment a slight after sustaining French affairs with the government of a superior country. Soon after he arrived at Naples, perceiving the evil consequences of the Spanish marriages, his chagrin was so increased that he put an end to his own existence.

Spain and Portugal.—Spain passed a year of disorder and bad government, but, excepting as regarded the affairs of Portugal, England had no especial connection

with the proceedings of the Spanish government. The state of Portugal was desperate. The Miguellites and liberals continued to maintain the civil war against the queen. The former were repeatedly defeated. Their leader, M'Donnell, perceiving that all hope of inducing the party to adopt measures sufficiently bold were at an end, collected around him a chosen band, and precipitating himself upon the queen's cavalry, fell fighting sword in hand. The radical or constitutional party made their head-quarters at Oporto, where they set at defiance the queen's government. Meanwhile the French and Spanish governments were desirous to interfere on behalf of the queen, whose opinions and sympathies were despotic, and in harmony with those of the French king and the Spanish queen. To prevent such an interference the English government reluctantly consented to a joint interference of England and Spain only. Accordingly, the British navy co-operated with a Spanish army for the purpose of putting down all armed opposition to the queen's government, at the same time obtaining indemnification for all in arms against her majesty, and a guarantee on the part of her majesty, by her solemn promise and the dismission of her reactionary ministry, that she would respect the constitutional rights of her people. This was effected, and Louis Philippe was balked of his desire to interfere in Portugal to promote a reactionary policy. The queen, however, did not keep faith with her allies; she did not dismiss her government until the English minister made such demands as compelled compliance. Peace was by these measures restored to Portugal; but no party within or beyond the bounds of her kingdom had any confidence in the good faith, good sense, or good feeling of the queen.

Lord Palmerston was much censured as the originator of the British policy in Portugal, but an impartial examination of the course he took will show that it was politic, and that by it he enforced upon Portugal the only plan possible to secure her independence of foreign despotic interference, and her release from internecine war. Portugal was saved for the time, and the designs of Louis Philippe were permanently baffled.

STATE OF IRELAND.—PROGRESS OF FAMINE AND DISEASE.

The year 1847 opened upon Ireland in many respects as gloomily as that which preceded. During the early months of the year the weather was very severe, and this added materially to the miseries of an already famine and disease-stricken people. The most heart-rending events connected with these disasters occurred everywhere throughout the country. The government continued its efforts for the mitigation of the prevailing evils; but the plans put forth for this object were not always wise, and the conduct of the people, high and low, baffled the projects of relief. All the mischievous proceedings of a social nature narrated in the previous chapter continued, and many of them were aggravated. The result was that great numbers perished in all parts of the country, especially in the south and west; and philanthropic men in Europe, in America, and throughout the whole world where civilised man dwelt, perused the records of Ireland's sufferings and infatuation with horror and awe. This state of matters continued even to the harvest, and although there was then the prospect of abundant crops, that circumstance neither revived the hopes, nor assuaged the political rancour, of the people. Late in the month of June a

clergyman addressed a letter to a Dublin newspaper, describing the condition of the peasantry in his locality, and it but too faithfully depicts the sufferings prevalent in most other places. It was as follows:—“The population of the district for which I would plead amounted at the last census to eight thousand seven hundred souls, but, owing to the dreadful ravages of famine and disease, it is generally considered that two thousand have perished during the past brief season of unexampled horror. Notwithstanding the relief administered through the medium of public works, and the subsequent distribution of rations, many instances have recently occurred of horses being stolen and destroyed for human food, and great distress still extensively prevails. During previous years, every available spot of land was alternately cultivated with potatoes and wheat or oats; but this year, owing to the utter destitution of the farmers, generally speaking, it is computed that one-third of the land last year under the potato crop still lies waste, while almost all the stubble ground remains untouched. If then, after the harvest of last year, when all the existing tillage was cultivated, and some proportion of the potato crop, such as it was, was available for food, such wholesale destruction of human life has taken place in this district, under circumstances of such a character that their mere recital fills the mind with horror and dismay—if, after two thousand have been swept away by the devastating power of famine and disease, four thousand eight hundred and twenty-nine of the survivors are at this moment kept from impending death by the daily distribution of rations,—what are we reasonably to anticipate for the time to come, unless prompt and energetic measures are adopted to provide means for sustaining those who may be spared?”

CONTINUED POLITICAL AGITATION.—DREADFUL PREVALENCE OF CRIME.

Unfortunately, the progress of crime and outrage kept pace with that of famine and pestilence, until the moral condition of the people seemed to be worse than their physical. Men were murdered in the open day, in the presence of numbers who made no effort to stop the deed of blood, and who would make no revelations to the officers of justice calculated to bring punishment upon the coldblooded assassins. The motives for these sanguinary outrages were various: sometimes it was purely agrarian; sometimes for the purpose of plundering food or money. Some were murdered from purely political hostility, and others on account of their prominence in religious movements distasteful to the people. Intolerance, contempt for law, a sense of wrong under the influence of the laws of landlord and tenant then in existence, and despair caused by their sufferings, constituted the incentives to atrocities which threw a hue of blood and gloom over the pages of Irish history.

The political differences which had long rent the country were exasperated, although men of all sects and parties united with equal zeal for the relief of the poor. No charities seemed to soften the heart of the Irish peasant towards those who entered strongly into political or religious combinations to which he was averse.

The new political disputes gathered strength; the different sections of repealers waged not only a wordy war with one another, as in the previous year, but the “Old Irelanders” frequently committed outrages upon the “Young Irelanders,” characterised by insolent intolerance and ferocity.

Foreign nations saw, with admiration, the magnitude of the scale upon which government extended relief. By an act of parliament a loan of eight millions sterling was contracted by government for the purpose of mitigating the wants of Ireland. On the first of March it was adjudicated; Messrs. Barings and Rothschilds having coalesced, they were declared the contractors. The loan was in 8 per cent. Consols; the bidding was 89 ½. The total amount of stock created by the transaction was £8,938,548. The annual charge for the dividend was £268,156 8s. 10d. The scrip, which opened at 2 premium, rapidly fell to discount, and gradually declined, showing the feeling of the monied interest regarding the monetary prospects of the period as affected by Ireland. The commercial distress in Ireland, partly consequent upon the famine and partly upon the general causes then operating in England, was extensive and profound. Heavy failures, in connection with houses of much reputation, shook the general credit, and aggravated the other existing influences by which suffering was originated or increased.

A new form of lawlessness appeared along the Irish coasts. Piracy had not been known there for a great length of time: the coast-guards and revenue cutters prevented that crime, as well as smuggling; but, early in the spring, formidable piratical attempts were made along an extended line of coast. Generally such attempts were frustrated when any weapons of offence were possessed by the attacked; for these enterprises, although furtive and made by considerable numbers, were seldom conducted or maintained with spirit. Thus, in April, the _Christian_, while on her passage from Liverpool to Westport, with a cargo of Indian corn, was suddenly boarded, seven or eight miles off Broadhaven, by three boats' crews, who broke up the hatches, and carried away thirty-three bags of corn. On the following day they again approached, but the circumstance of the master presenting a gun was sufficient to deter them from any attempt to board. The men effecting these robberies seem to have been actuated by distress; they seldom committed violence, and bore all the aspect of famine and despair.

DEATH OF O'CONNELL.

The political events of the year were much influenced in every way by the absence of Mr. O'Connell from public life, and by his death. Early in the year his powers of mind and body became so much enfeebled, that his physicians insisted upon his leaving London, and upon his excluding all intelligence concerning Ireland. In obedience to these directions, he took up his abode at Hastings; but, although some intervals of apparent recovery occurred, he sank gradually until the imminency of his danger became evident to his friends and to himself. He had a wish to live, probably that he might continue the struggle for the great object of his life—the ascendancy of his religion, and the greater political power of his country. As the spring advanced, his friends were of opinion that a journey to Italy might benefit him; he, believing that his illness was fatal, wished to go to Rome, that he might die there with the blessing of the pope to sanctify the closing scene. His illness increased so rapidly that he was not able to reach Rome, and died at Genoa. A _post mortem_ examination revealed that his brain was extensively diseased, accounting for the melancholy which pervaded his illness. Old age, the failure of his hopes, prophecies, and schemes after

the Emancipation Act, and deep mental anxieties about the distress of his country, the divisions in the repeal party, and the hopelessness of his agitation, caused his death. He had attained a good old age (seventy-four), and departed this life on the 15th of May. His latest anxieties were lest he should be buried alive, and he gave to his confessor, physician, and servant, constant and peculiar directions to guard against such a casualty. His heart he bequeathed to Rome! The tidings of his death reached Dublin on the 25th. Immediately placards were issued from Conciliation Hall, and were posted in town and country, announcing the event. The people gathered in crowds wherever a placard was seen, and perused it with deep sorrow, the men moving silently away, or gathering in groups to talk earnestly concerning the deceased and the prospects of their country—the women in many cases uttering loud lamentations. The bells of the Roman Catholic chapels tolled mournfully, and arrangements were made to offer public prayers for the soul of the deceased. Probably there was not a Roman Catholic in Ireland that did not privately offer such petitions upon the reception of the intelligence. The Repeal Association summoned an especial meeting to prepare an address to the people of Ireland suitable to the occasion. The corporation met and adjourned for three weeks as a mark of respect. The Roman Catholics of Ireland, and such Protestants as were considered liberal, made every manifestation of respect for the memory of the great leader. Ireland, in the midst of her starvation and sickness, felt a still deeper sorrow—the whole land appeared in mourning.

The mortal remains of the great popular chief were conveyed to Dublin, and on the 5th of August they were interred in the Glassnevin Cemetery. The day preceding the Reverend Dr. Miley preached his funeral sermon at the Metropolitan Chapel, Marlborough Street. It was an eloquent eulogy upon the character of the departed; his errors, personal and political, were passed over, and the idea pervaded the discourse that the departed was a martyr and saint.

The funeral procession was one of the most remarkable which had ever been witnessed in Ireland,—when the character of the deceased, his influence upon public affairs, the national feeling, the intense curiosity excited, and the conduct of the ceremonial, were considered. At twelve o’clock the corpse was removed from the Metropolitan Chapel. The procession was a mile and a half (Irish) in length, composed of the Trades’ Unions on foot, followed by the triumphal car which had been used to convey him from Richmond Penitentiary to his house in Merrion Square, when his acquittal of the charge upon which he had been incarcerated was pronounced by the House of Lords. The coffin was placed on a large open hearse, constructed with very little regard to taste. The hearse was covered with rich Genoa velvet. It was immediately followed by the family of the deceased, his personal and political friends, and a large assembly of the Roman Catholic bishops and clergy. All along the route to Glassnevin, multitudes were assembled in the streets and windows, and even upon the house-tops. Persons came from very great distances in the country to be present at the interment, or take some part in the ceremonial. At the cemetery the services appropriate to the Roman Catholic religion were conducted, and the coffin was consigned to a vault prepared for its reception. The site selected for the place of sepulture was the best which the cemetery afforded, and the whole scene

was solemn and impressive. It was a public funeral, worthy of a great man, by a people whom he had zealously, faithfully, and disinterestedly served. It was computed that one hundred thousand persons were present. There was a deep gloom upon the people when the ceremony was over. The religious ceremonies prescribed by the Roman Catholic Church for eminent persons deceased, were continued for a considerable time.

Thus passed away a man whose name will long remain upon the pages of his country’s history, and whose influence upon the whole empire of Great Britain was greater than was publicly recognised at the time, and than historians have since recorded.

The fate of the reform bill very much depended upon the support accorded to it by Daniel O’Connell. It is probable that the bill would have been lost without the support of the Irish liberals, led by the agitator. To the repeal of the corn laws he also rendered effective aid, although his oratory in favour of that measure appeared to be less hearty than that on behalf of the reform bill. The impression prevailed very extensively among the great body of the free-traders that, while O’Connell agreed with their theory, and deemed it politic to co-operate with them, he did not regard it as immediately beneficial to Ireland, and did not feel personally cordial to the movement. On many local church questions, also, and to a very great extent, on colonial matters, the influence of the Irish leader was felt in parliament by the parties most interested, and by the governments. For a time the scale of office was held in his hand; he made and unmade ministers. He was not corrupt, or place, power, and pension might have been obtained by him and his. After his death some members of his family did receive government situations, and even before his death connexions of his obtained such advantages; but they were in all cases fit for the posts to which they were appointed, and filled them with honour—nor was the emolument much, in any case. On the whole, the Whigs did not treat the family of O’Connell with gratitude. He had more than once put them into power, and frequently, when the certainty of their losing office without his aid occurred, he gave them the requisite assistance. He was often—indeed, always—in some measure their opponent; but this rather strengthened them in Great Britain, while on great party divisions “the tail” was always to be relied upon by the Whig cabinet. Never had a public man such opportunity of raising himself to the most elevated offices, and securing emolument for himself and his family—never were these temptations more faithfully resisted. Yet O’Connell did not disdain office, and he especially valued promotion and honours in his own profession: but these things were nothing to him in comparison with what he regarded to be his mission. He was fully convinced that God had raised him up for the especial purpose of serving the Roman Catholic religion, and, in connection with that of serving his country, he pursued this object with unswerving fidelity. If he could have obtained high office, and thereby have inflicted no injury upon the cause which he espoused, he would have eagerly sought a position in the cabinet or on the bench; he would have been as much opposed to the repeal of the union as Mr. Lucas, the editor of the _Tablet_, and other English Roman Catholics, if he had believed that it would injure the Roman Catholic religion. Many supposed that he was never sincere in prosecuting repeal; while others, whose opportunities of judging were ample,

believed that he was most honest in that agitation: in fact, both were right. As an Irishman, he had a desire that his country should cease to be a province, and he probably believed that her resources, moral, intellectual, and material, were sufficient to maintain the dignity and power of a nation; it was also his conviction that the repeal of the union would be a means of improving the government and social condition of Ireland, but he chiefly regarded it as an instrument for the aggrandisement of his religion. It would enable the Roman Catholic party to suppress the distribution of Protestant tracts and bibles, to silence Protestant controversialists, and to treat bible-readers and circuit-preachers as vagabonds and disturbers of the peace. O'Connell's speeches abound with expressions of opinion, that it was the duty of the British government to do all these things in deference to the wishes of the Roman Catholics, they being a majority. He invariably held up all attempts to "proselyte the people" as a crime which ought to be punishable by law; and where the government failed "to protect the people from the bible men, saints, soupers, and fanatics" (the names which he generally applied to earnest Protestants in his abusive and bigoted polemical speeches), then the people should use all means within the law—a sort of qualification never intended to be accepted by those to whom it was addressed—"to put down" all persons obnoxious to the religious hostility of the priests. In the earlier part of his career he was accustomed, with the assistance of Brick, O'Dwyer, and others of his followers, to disturb the religious public meetings called by Protestants, especially associations for the distribution of the bible. O'Connell and his colleagues would intrude upon such meetings, often attended by a violent rabble, whose language and behaviour on these occasions were coarse and brutal. The intruders would propose amendments to the resolutions submitted to the members of these societies, and make violent speeches at the meetings, full of ridicule and abuse, which were loudly applauded by the mob, who forced their way in to support these proceedings. When the advocates of the resolutions attempted to reply, they were met by hootings, and sometimes by violence. There was always a perfect understanding between the mob who intruded below, and the gentlemen who made their way or were invited to the platform. The latter affected to protest against the tumult while it went on, but afterwards extenuated or denied it in the newspapers, or in speeches elsewhere, averring that the clergymen and laymen, who convened the meeting, were unable to answer the arguments of the Catholic champions. In many of these meetings free discussion was secured, and faithful reports of the arguments on both sides were published in newspapers and pamphlets, with the result of shaking the faith of many Roman Catholics in various parts of the country: the agitators, under O'Connell's advice, then gave up this mode of procedure, and shunned all such meetings. O'Connell also perceived that he had created a prejudice against himself, his country, and his creed in England, by the violence he connived at, and the bigotry which he uttered.

Repeal of the union, besides enabling him to accomplish the class of religious objects thus described, would also have given him power to transfer the funds of the Irish Established Church to the Roman Catholic. He and most of his followers having loudly professed "the voluntary principle," it may seem to readers, cognisant of that fact, and unacquainted with the modes of procedure adopted by the Irish popular

party, as unlikely that those who composed it, or, at all events, he who led it, would ever desire the establishment of the Roman Catholic Church in Ireland. The truth is, that most of the men who declaimed in favour of the voluntary principle were chiefly actuated, like O'Connell himself, in their political agitation, by the desire and hope of Roman Catholic ascendancy. The great repeal leader proved at last that he was utterly insincere in these protestations of voluntarism, for afterwards, during the English agitation concerning the Maynooth grant, he turned "the voluntaries" and their principle into open ridicule. He had served his turn of them, and then held them and the principles he pretended in common with them to support, in derision. Yet O'Connell was not a dishonest politician, apart from his religious mission. He was a man to be trusted in political engagements; few public men of the day would act with such truth and honour to party, and in any purely political contest or interest. When the promotion of his Church was concerned, his conduct proved that he believed a doctrine which he often repudiated—that the end sanctified the means. He was educated a Jesuit, was one in spirit, was allied with them in the purposes and objects of his private life, and his public policy. If any considerable amount of Romish influence could have been introduced to the British cabinet, with the hope that it would become a permanent element in the government of England, O'Connell would have been the deadliest enemy of repeal: the Roman Catholic Church in Ireland would have put down repeal as injurious to it. The Young Irelanders would have still agitated for Irish independence; but they would have been mobbed, or assassinated, or otherwise soon crushed as a party. The Protestants would then have been the repealers. The argument of Mr. Lucas, that repeal would weaken the Irish Roman Catholic body, through the influence of the English government upon the colonies and foreign states, was that which prevailed with so many Romanists of respectability in Ireland, and with the English Roman Catholic party, in keeping them aloof from the repeal agitation, and inducing them even to oppose it; nor was O'Connell himself free from the effect of such a consideration. His professions of the supreme value of repeal were based upon the conviction that it was hopeless to overcome the religious hostility of the British people to any increased influence of Romanism in the government; yet he lingered on, hoping against this conviction, and feeling the difficulty, if not desperation, of the task he imposed upon himself, declaring still that he would only turn to repeal as the _dernier ressort_, and that his first cry was "Justice to Ireland." Had everything been conceded which was claimed, "Justice to Ireland" would still have been, the cry, on the ground that, being an integral part of the United Kingdom, she was entitled to see her religion established in a fair proportion of the colonies, or placed on a par with the English Church in them all. With O'Connell and with Ireland the grievances were religious; the social evils of Ireland were abetted by many who were repealers: yet there was a sense of political injustice, and a patriotic desire on the part of O'Connell and the people for the glory of Ireland, so far as it was not necessary to merge that in the glory of Rome. Civil and religious liberty for Ireland and for the world were not desired by either the Irish Roman Catholic party or their political champion. The spirit of the speeches at Conciliation Hall, of the Irish press in that interest,—even of the Irish press in the Whig service, which was conducted by Romanists, and the tone of confidential conversation among Irish Roman Catholics at that period, all proved this allegation.

Foreign despotisms, if Protestant, were abused and denounced; if Romish, they were treated with respect, and sympathy in case of any disturbance in their dominions; or if it were not for the moment politic to abet their proceedings, their misdeeds were passed over in silence. All the social wrongs and civil tyrannies practised at Rome were upheld as warmly in Ireland, and especially in Conciliation Hall, as they could have been in the conclave of cardinals. One of the favourite topics of the day among the Roman Catholics of Ireland, even amidst their sufferings, during 1847, (and subsequently still more so), was the prospect of the Roman Catholic religion becoming the established religion of the United States, through the instrumentality of the Irish and German Roman Catholics of the immigration. While they cried aloud for religious equality for themselves, they carried on in Ireland a fierce and brutal religious persecution, which was only restrained by the influence of the more enlightened and liberal laymen of their own communion, and by fear of the law; the impolicy of such a cause was not sufficient to check the raging zealotry which so extensively prevailed. All this O'Connell sanctioned and fostered, and, except when doing so would hamper his policy or political relations in England, he invited it.

Intellectually, O'Connell was a giant. His grasp of mind was comprehensive and tenacious; and he was capable of reasoning clearly whenever his religious bias allowed of his doing so dispassionately. His perception was quick, keen, and discriminating, especially where character was concerned. His knowledge of human nature was profound, although he had not been a successful student of metaphysics. His eloquence was more varied than that of any other man of his times; and he possessed the faculty of adapting himself to his audience, and to the changing feelings of an audience, to a degree which few men ever attain. In a moment he could melt a popular audience to tears or convulse it with laughter. He could be plain or ornate, coarse or courteous. The eloquence of invective and vituperation was carried by O'Connell to a very inglorious perfection. His eulogies were as dextrous and expressive as they were, nevertheless, morally repugnant to honest minds. The writer of these lines has heard him address a mob of peasants in the county of Waterford on repeal, and an assembly of Quakers, Methodists, and "other sectaries," as he would himself call them, in the city of Cork, on an anti-slavery occasion, with equal effect. His broad-brimmed and sedate audience were as much delighted with his elegant and pathetic eloquence in favour of humanity and natural rights, as his peasant mob were while he discoursed to them upon the certainty and glory of repeal, and declared that "they were the finest peasantry in the world." On the one occasion his action was graceful, and at times expressive even to sublimity; on the other, it was bold and broadly natural, nor less expressive of the passion he felt or simulated, and endeavoured to excite. He possessed the oratory necessary for an Irish tribune, and that which was adapted to the English senator: In his profession he held a high place. Having given up his life to politics and polemics, he could not have become a first authority in law, but he was unsurpassed as a counsel, especially in criminal cases. Most men thought that he had not the mental and moral qualities necessary for the bench, while he was pre-eminently the man of the bar. This, however, is hardly a fair estimate of him. He possessed in a remarkable degree all those qualities in an advocate which entitle him to cherish the ambition of becoming a judge. From the

judgment-seat, when his bigotry did not blind him, O'Connell would have given charges as luminous and just as his speeches in court were powerful specimens of effective advocacy. His general attainments were very considerable. The writer of this history once took part in a conversation where O'Connell displayed a knowledge of Biblical criticism, and a capacity to apply what knowledge of that description which he possessed, which was very astonishing. On the same occasion he brought forth stores of ecclesiastical history, which proved that, although his studies had been confined to a particular school on that subject, his reading within the limits of that school were very extensive, and his memory altogether extraordinary. He had the faculty of attaching men strongly to him, not only as a party-leader, but as a man and a friend. Many thought him jealous of the fame of other orators of his time; but there is no just ground for this. No man approached him in reputation except Richard Lalor Shiel. O'Connell did not betray in public any jealousy of this great oratorical rival; but he often indicated, where he did not profess it, a distrust of his good faith— and the suspicions of the leader were not ill founded: Shiel was never in earnest in his arguments for the separation of the Irish from the English parliament, but preferred the policy of infusing Roman Catholic influence: he also preferred a high imperial position to that of a provincial demagogue. This, in the opinion of the Irish popular party, was treason to Ireland; and no doubt O'Connell sympathised with that feeling, and suspected that the man second only in power to himself was neither so ardent an Irishman or Roman Catholic as his countrymen desired him to be. This feeling on O'Connell's part will account for many acts towards Shiel which were set down to personal jealousy. Dr. Michelsen is very unjust to O'Connell in the following critique upon his character:—"His greatest fault was no doubt his egotism; he could not endure a rival at his side, and would not have hesitated to annihilate any one who did not follow him with implicit obedience." O'Connell would have hailed with delight any accession of eloquence or personal power to Conciliation Hall; but a particular policy had been arranged between O'Connell and the priests—they intrusted their cause to him, and when men started up and questioned, or attempted to modify this policy, O'Connell regarded it as rebellion, not merely against his leadership, but his party, and the church itself; hence, it was necessary for him to put down the disturber; and he was backed by clergy and people in doing so, which would not have been the case had not the understanding between him and the Roman Catholic hierarchy of Ireland been complete. Dr. Michelsen again says:—"It is a mistake to suppose that O'Connell entertained an irreconcilable hatred to England; he had never ceased to regard her as his second fatherland, as the land of his glory, of his intellectual activity. His partiality for England was only surpassed by his excessive love for his native home, and many apparent contradictions in his life can only be reconciled by this double sympathy in his character."*

* "England since the Accession of Queen Victoria," by Edward H. Michellen, Ph.D.

It is obvious that the writer of this paragraph has neither studied O'Connell, his country, or the party which he led. One of the grand causes of O'Connell's failure in many things was his rancorous hatred to England. Thomas Gaspey, Esq., in his "History of England," views this matter correctly in writing of O'Connell's death, and the feeling in England concerning him:—"In England his departure was regarded

with indifference. The hostility and scorn he frequently expressed for the Saxons, and his disparaging remarks on English women, had precluded him from gaining any of the popularity he had enjoyed in Ireland."

The hatred of O'Connell to England was threefold—that of race, of nation, and of creed. He regarded England as the chief abettor of heresy in the world, and therefore would have rejoiced over her downfall; this was the common feeling of his party. So far as his animosity was connected with race and nationality, it was not unprovoked. The English people cherished deep prejudices against Ireland and the whole Celtic race; and the English newspapers frequently discussed the universal claims of the Anglo-Saxon to dominancy, and every social and national virtue, thereby creating a feeling of resentment in all countries where these articles were reprinted. The chief invidiousness, however, was to the Celt, and among Celts to the Irishman. This circumstance made repealers of numbers of Irishmen who were neither Celtic in race nor Roman in creed.

MR. JOHN O'CONNELL ASSUMES THE PRESIDENCY OF THE REPEAL ASSOCIATION—INFLUENCE OF THE REPEAL AGITATION UPON THE GENERAL ELECTIONS IN IRELAND.

The death of Mr. O'Connell, it was generally supposed in England, would allow agitation in Ireland to die of itself. Others supposed that it would now assume a worse form, in consequence of the absence of those restraints which the superior sagacity of the arch agitator laid upon the more fiery and imprudent ringleaders. The latter opinion was the correct one, and the people of England were astonished to find that Mr. O'Connell's son John not only became the chairman at Conciliation Hall, but the recognised leader of the agitation. The priests gave him their confidence, and, at first, the people very generally; but he was not possessed of those qualities which enabled him to hold the reins of power. As Richard Cromwell to the deceased Oliver, so John O'Connell exhibited a contrast to his father, which soon caused the people to fall off from his leadership: his name, and the influence of the priests, were the means of retaining it for him for a time. After the death of his father, the temporary inheritor of his position indicated much energy and activity, although, even in this respect, none of the agitators approached their late chief: O'Connell's powers of physical endurance and toil had been prodigious.

A general election, the policy of which will be noticed on another page, called out the leadership of John O'Connell, and the action of the committee at Conciliation Hall, in a manner to test whether the people were disposed to follow them. The general impression in England was, that the popular fervour had ebbed, and that the repeal members would not generally be returned: the English press made confident predictions to that effect. John O'Connell and the clique at Conciliation Hall accepted the ordeal, and were backed by priests and people in their policy. An extraordinary meeting was convened, and an address to the electors of Ireland resolved upon. It was a document which ought to be retained upon the page of history, for it discloses the spirit and temper of the repeal party, and of the Roman Catholic electors who responded practically to such an appeal. The repealers, as has been already shown, were not confined to Roman Catholics, nor were all that communion repealers; but,

on the whole, the religious division of Protestant and Romanist defined the boundary between anti-repealers and repealers.

The following is copied from _Saunders' News Letter_ of the 12th of June:—

Address of the Loyal National Repeal Association to the Electors of Ireland.

"'God prosper the cause!—oh! it cannot but thrive, While the pulse of one patriot heart is alive. How sainted by sorrow its martyrs have died! Far, far, from the footprint of coward or slave, The young spirit of freedom shall shelter their grave!'

"On you—fellow-countrymen—electors—at this moment devolves the good and holy task of protecting the graves of the sorrow-sainted martyrs of Ireland from the polluting tread of coward or of slave. None such will be found amongst you—none such will dare to show themselves if you be true.

"In this year of death, our country still survives! Weeping, fainting, bleeding, yet she lives; and lives to claim, aye, and to have—the services of her true children.

"Yes! although from him whose life's devotion to Ireland was repaid by her confidence and her love, and from those without whose potent aid his labours had been vain—the beloved clergy of the people—down throughout all ranks and orders of the national organisation, Death has been busy, still enough remain of devoted, determined, patriot hearts, to carry out the good work he began, and to make it, with the blessing of a merciful God, speedily triumphant!

"Rally, then—rally, electors of Ireland—your country calls! Your dead brethren, even from their graves, invoke you. Drive from your hustings the men who shall have dared to think you cowards—who shall dare to ask you to continue slaves! And there are those who will so dare;—mark you not the exulting tone of Whig and Tory, and every other class of panderers to English passions and prejudices:—'Repeal,' they say, 'is gone!' 'Ireland is at last subdued—she begs for bread, and is fearful to demand her rights lest we withhold our alms!' It is false; how foully false you know, and at the elections you will prove. Deep as is the baseness of those who build their party hopes upon a nation's misery, deeper still would be our baseness if ever, even amid all the heart-crushing calamities of the time, we shrunk in aught from our high purposes, and from our vows for Ireland's regeneration.

"Nay, if but the hope of relief from our present distress were to animate us, even so should we cry out for that home parliament which alone can bring back wealth and abundance to the land—alone can guard her from recurring season after season of want, of pestilence, of death!

"Be ready then in time, fellow-countrymen, the elections are at hand; give us repealers—true and trusty repealers—men pledged to the safe, peaceful, constitutional principles you have been taught by him whom you followed so devotedly, and whom you mourn so affectionately and sincerely!

"On you—on each one and all of you together, and on none but you, the task now lies of helping Ireland at this fearful crisis of her fortunes. Yours, and yours alone, will be the glories of success, or the shame of not having sought it. Your distress has

left the Repeal Association without funds to aid your contest, and we can do no more than to exhort and to advise. Let not the wily enemies of your freedom delude you. The duty is upon you; the means are in your hands, not in ours; if the duty be not done, poor Ireland will suffer the disastrous and ruinous consequences; but the blame of them, and the shame, will be upon you. Fellow-countrymen, this must not be—nay, this will not be. We answer for you. Unaided, undirected, as you are, you will bestir yourselves—on yourselves will depend, and you will achieve the victory. Meet in your committees; encourage the timid, cheer up the desponding; turn away with contempt from the whig or tory dependent, who would counsel you to dishonour, and vote for none but a staunch repealer—for one who will maintain the peace principles of the association, and aid it to work out and re-establish the inalienable and imperishable right of Ireland to legislate for herself.

“Had our own parliament ruled us, the landlords would not have had their tyrannies sanctioned and increased in license till the suffering people were reduced down to the lumper potato for a wretched, and, alas! a fatally precarious subsistence. Our manufactures would yet exist, giving comfort to our skilful artizans, and offering refuge to the peasant, unable to obtain a maintenance upon the land. In every village neighbourhood, the money raised by the hard toil of the labourer would be finding its way back, and briskly circulating there, by reason of the thousand sources of employment that would arise around the restored residence of the large proprietor. Irish money would thus stay at home to create and increase Irish wealth, and to support Irish poverty; and the grudging doles of an alien parliament would never more be needed in the land.

“Fellow-countrymen, for such results the association has been struggling—for such objects you are now called upon to work. By all that this wretched land has yet endured from English misrule,—by the accumulated and aggravated suffering of the last disastrous forty-seven years, with their fell climax in this year of death,—by the myriads of fresh graves, the fearful husbandry of death, that are ridging your fields and even your humble homesteads,—by the holy and most adorable name of the Deity, who chasteneth whom He loveth,—we entreat, we implore, we exhort, we adjure you to stand true to Ireland at these elections; to spurn Whig and Tory, and to prove yourselves worthy of your rights by returning none but those who will unflinchingly assert them;—and foremost amongst those rights, before all and above all, the right to make your own laws in your own parliament at home.”

The elections issued in a triumph for which the Repeal Committee itself was hardly prepared. There was a great increase in “repeal members.” This arose from a variety of causes. The Conservatives had lost heart in connection with the expenses which the famine had imposed upon their estates. The people universally attributed their distress to the government, and to their connection with heretic England. The priests made great exertions throughout the country. Fearful scenes of violence took place, “the moral-force repealers,” lay and clerical, inciting the people to these outrages by the most inflammatory appeals to their fanaticism, and by examples which were calculated to encourage them. The most awful denunciations were heaped upon the heads of “all bad Catholics who should vote against their religion and country.” These

denunciations came from sacerdotal lips, and from the altar as well as the pulpit. The popular press rivalled the priests in anathemas against all who were not willing “to vote for Ireland against the Saxon.” Public placards might be seen in town and country, headed, like the address of the Repeal Committee to the electors, with inflammatory poetry: a favourite couplet on these occasions was—

“On our side is virtue and Erin, On theirs is the Saxon and guilt.”

The context of these lines was judiciously omitted from the placards, but not from the speeches of the electioneering agents and orators—

“Then onward—our green banner rearing— Go, flesh every sword to the hilt.”

If this injunction was not obeyed to the letter, it was nearly so, and at all events it was carried out in spirit.

Of green banners there was abundance, and if the sword gave place to the brickbat and the bludgeon, the consequences were pretty much the same—“Green Erin” gained a great victory over Erin of the Orange preferences, and over the Saxon in general. The spirit in which this result was received at Conciliation Hall, and its effect upon the hopes and aspirations of the people, may be gathered most readily from the address of the General Election Committee of the Repealers to the people of Ireland, when the elections had closed.

“_Fellow-countrymen_,—Even in this hour of triumph—even now, when you have so nobly vindicated at the elections the glorious cause of repeal—our congratulations must, in sad accordance with the unvarying fate of Ireland ever since Englishmen have controlled her fortunes, be mingled with considerations of mournfulness and peril! It is not merely—and, alas! that such a calamity should have to be treated as of secondary magnitude—it is not merely that the niggard state charity of England is now at once to cease and be entirely withdrawn, but we have to contemplate a still more fearful and far wider-spreading misery at the end of autumn and in the early winter.

“All-bounteous Heaven has blessed our fields with abundance; but Ireland’s poverty—the unholy doing of man—must cause the produce of her harvest to be exported away from her starving people, and sold at the rich markets of England, to meet the enormous rents of cruel absentees. Five millions of your money go annually to those absentees; and so many have lately fled from the sight of the calamities their carelessness for their country had allowed England to inflict, that more than an additional million must be drained away this year!

“What is there to save our people? The potato has not been sown in one-third of the extent of former years. The substitute crops, though promising, will be fearfully short of the deficiency caused by the loss of the potato; and those crops would be taken from us by the high prices in England, even if we had not to send them there to get money for the absentees. Food gone, and money gone, what is to become of us? The stinted relief that England gave us is out. The means voted with grudging and insult are expended and gone. Her representatives are pledged to give us no more, and not only to refuse if the government should propose a further advance, but to call upon

the minister to insist strictly and speedily on repayment of that which has been given. We therefore have no hope of money from England! Have we then any money at home? Alas! it is but as the dribblings of the mountain stream when the winter floods have passed, and the summer heats are exhausting and absorbing its waters; and had we tenfold what little remains, how are the rates to be paid, when, according to even the starvation scale of the government soup-kitchens, the cost of maintaining our poor will exceed by nearly double the whole rated value of the property in Ireland! No Whig nor Tory can tell us of the means of meeting the coming disaster. The members of the ministry have not touched upon it at any of their elections. The press of England is mute, save when it gives utterance to calumnies and insults. Ireland is not in the thoughts of any of our English fellow-subjects. Their own interests, their own monetary perils, their own necessities, absorb their whole attention.

“Should we not then take counsel from ourselves? Should not our newly-elected members agree to come together here in Dublin, and consult for the safety of the country, and decide upon the matters they will urge upon the reluctant ear of the English parliament? Should they not meet, if only to concert how best to recall the absentees to their long-neglected duties at home; how best to compel all the monies of the country to be spent at home; and thus to give a chance of saving our unhappy people from being swept off the face of the earth by widely-desolating famine, or the yet more desolating and dreadful agency of a bloody, a bootless, a criminal, and all-destroying civil war?

“Again we shall address you, when the time is near that parliament is to assemble, and ask of you to announce to your representatives your opinions. We shall carefully make use of the intervening time to collect and concentrate the expression of your sentiments respecting each particular point of policy that should be pressed upon your members’ attention, as well as respecting the great leading principles of the national movement. Thus shall the ‘Council of National Distress and National Safety’ come to its labours with materials prepared and suitably digested, and thus be enabled all the readier and speedier to take, boldly and explicitly, its decisions and resolves, and maintain them firmly, undauntedly, and perseveringly in the British House of Commons. Thus shall the Irish members best show themselves to be worthy of the high trust with which they have been honoured, and of the far higher and prouder distinction of being again, and at no distant time, deputed to represent their beloved country in her restored native parliament.”

The representation that the relief England had given to the people was stinted, was a vile calumny, showing the utter want of principle of the party from which it emanated. The intimation that it was not the intention of government to do more; that the “stinted relief” which England gave was “out;” and that nothing but ruin remained, although rich England was at hand to save, if she were only charitable and just,—was well calculated to keep up disaffection in the public mind.

The success of the repealers at the elections might be supposed as tending to quiet the country, as it afforded a constitutional medium of expressing their views. But it had not that effect: the desire to procure arms which showed itself in 1846 continued through 1847, and notwithstanding the great distress so generally felt, the

expenditure of money upon aggressive weapons was in some parts of the country larger than in the previous year.

BITTER DISPUTES BETWEEN “OLD IRELAND” AND “YOUNG IRELAND.”

The Young Irelanders were encouraged by the death of O’Connell to believe that they could take the lead in public affairs among the Roman Catholics, and they supposed that the Protestant population were more likely to listen to arguments in favour of an effort to achieve national independence, coming from them, than they were to hearken to the old repeal arguments from the Old Irelanders. In this they were disappointed; notwithstanding that several of the leaders were Protestants, no considerable number of that persuasion followed the new faction. The true tendency of that agitation was seen by the Protestants, who rather prepared to resist both the Old Ireland and Young Ireland parties, in the struggle which might be brought about by a coalition of these parties. Such a coalition was the policy of the Young Ireland party; but they made the doctrine of physical force a _sine qua non_ in the creed of the coalesced parties; and the Old Irelanders, still clinging to the policy of their deceased chief, refused the terms. John O’Connell and his adherents were then made the objects of unsparing ridicule by the _literati_ of the new party, and the lampoons and caricatures of which the chairman and committee of Conciliation Hall were the victims, told upon the people, and gradually insinuated a contempt for the weak and vacillating policy, as it was described, by which they were guided. The party of John O’Connell, as when under the guidance of his father, was not slow to resort to physical violence, whenever there was a chance of doing so with impunity, while they continued to proclaim the sanctity and permanent obligation of the O’Connell doctrine of moral force. The Young Irelanders endeavoured to reunite Irishmen to lift the arm of a manly and brave revolt against English connection. The Old Irelanders had no objection to kill scripture-readers, break church windows, waylay Protestants, and maltreat them at market or fair, and riotously disperse the assemblages of Young Irelanders, while they preached passive resistance as alone justifiable to the government. Of course the leaders of Old Ireland denounced all breakers of the laws; but when outrages were committed, especially on Young Irelanders or Protestants, they palliated them, or denied them in the face of evidence which was conclusive. John O’Connell found himself in a hurricane of political passion, which he could not quell, and through which he had neither power nor skill to direct his course. By the end of the year he found the reins of authority slipping through his hands; Smith O’Brien and his compeers were rampant; and Ireland, stained with blood, blackened with pestilence, exhausted by famine, raged with impotent fury against the imperial government and Great Britain: in all the folly of domestic faction, she was pitied and scorned by Great Britain when she supposed herself feared. There were no men amongst the leaders of the disaffected in Ireland to command the respect of England, in that sense which a dominant nation respects the power of a rival, or of an insurgent province. The wish became very extensive in Great Britain that all Irish grievances should be redressed, and that in every respect Ireland should be placed

on a footing with the other portions of the United Kingdom, if in any a sense of injustice were experienced; but to the honest menaces of the Young Irelanders, and the hypocritical reliance on moral persuasion of Conciliation Hall, the people of Great Britain only gave their ear from curiosity, perfectly regardless of any power which any faction or union of factions might put forth. Great Britain awaited the outburst of passion which was in Ireland so rapidly coming to a crisis,' as unmoved as the crag abides the eddies of the current which bubble and burst against it.

GENERAL STATE OF AFFAIRS IN GREAT BRITAIN.

This year was one which, in many respects, tested the power and resources of Great Britain. In her colonies she had conflicts to wage of great magnitude. Ireland was smitten with famine and disease, and turbulent. In the Highlands of Scotland the hardy peasantry suffered from the scarcity of provisions caused by the failure of the potato and other crops during 1846.

The commercial embarrassments of the year were felt from the beginning, and continued, with more or less pressure, to the close. From the operations of various causes, money was dear both on the European and American continents. Early in January, so severely was this circumstance felt in Paris, that the Bank of France applied to that of England for aid, which was granted; but the consequence, of course, was a rapid rise in the rate of interest in Great Britain and Ireland. This continued until all speculative transactions were paralysed. The timely increase in the price of accommodation by the Bank of England did much to mitigate the evils of the crisis. These were produced by recent bad harvests, and the failure of the potato crop. The great extent to which railway transactions had been carried, and the consequent drainage of capital; the wild speculations which began to prevail in France, and were so marvellously developed in England, also conduced to the monetary disturbance. Besides the operation of all these causes, there was an uneasy feeling on the continent connected with political affairs, which communicated itself to England, and made capitalists timid.

During the month of September panic pervaded the monetary and commercial world. Failures in every branch of business in London and in the provinces were numerous and disastrous. The following were among the most extensive in London:—

Liabilities.

Sanderson and Co..... £1,725,900

J. and S. Woolley 90,500

Reid, Irving, and Co..... 1,500,000

Gower, Nephews..... 450,000

Cockerell and Co..... 600,000

Bensusan and Co..... 60,000

Perkins, Schlusser, and Mullens..... 150,000

Luall, Brothers, and Co..... 400,000

Philips and Co..... 150,000

Prime, Ward, and Co..... 100,000

Robinson and Co..... 96,000

Castellain..... 100,000

Giles and Co..... 160,000

Some of these persons, and many others who incurred like misfortune, had been regarded as opulent merchants or bankers, and were men of position and influence. Mr. Robinson was, at the time of his failure, a governor of the Bank of England; Sir John Rae Reid had lately filled that office. Mr. Gomer and Mr. Settle were bank directors at the time of their stoppage.

The Bank of England not only raised its rate of interest to eight per cent., but contracted the time of accommodation to thirty days. The funds, always susceptible of the influence of an uneasy state of public affairs, and of violent changes in the money market, were at this juncture peculiarly so, falling as much as two per cent, in a single day. Consols were as low as eighty-four. Railway shares suffered more than any other kind of stock or scrip, becoming so depreciated in the market as to be unsaleable. A great outcry was raised against the monetary policy which had been initiated by Sir Robert Peel. “Peel’s bill” was the subject of unmeasured denunciation by all who were accustomed to obtain bank accommodation, but to whom that advantage was no longer open. Early in October a deputation from the city bankers waited upon the government for the purpose of inducing some relaxation upon the stringency of Sir Robert Peel’s bill. The deputation consisted of most influential men—such as Mr. Masterman, Mr. Abel Smith, Mr. Glynn, Mr. Bevan, Mr. Barnett. The chancellor of the exchequer addressed the deputation in terms which led them to expect that the object for which they were deputed would be accomplished. Their expectations were not disappointed, for the following letter was addressed to the governors of the Bank:—

“Her majesty’s government have seen with the deepest regret the pressure which has existed for some weeks upon the commercial interests of the country, and that this pressure has been aggravated by a want of that confidence which is necessary for carrying on the ordinary dealings of trade. They have been in hopes that the check given to transactions of a speculative character, the transfer of capital from other countries, the influx of bullion, and the feeling which a knowledge of these circumstances might have been expected to produce, would have removed the prevailing distrust. They were encouraged in this expectation by the speedy cessation of a similar state of feeling in the month of April last. These hopes, however, have been disappointed, and her majesty’s government have come to the conclusion that the time has arrived when they ought to attempt, by some extraordinary and temporary measure, to restore confidence to the mercantile and manufacturing community. For this purpose, they recommend to the directors of the Bank of England, in the present emergency, to enlarge the amount of their discounts and advances upon approved security; but that, in order to retain this operation within reasonable limits, a high rate of interest should be charged. In present circumstances

they would suggest that the rate of interest should not be less than eight per cent. If this course should lead to any infringement of the existing law, her majesty's government will be prepared to propose to parliament, on its meeting, a bill of indemnity. They will rely upon the discretion of the directors to reduce as soon as possible the amount of their notes, if any extraordinary issues should take place within the limits pi escribed by law. Her majesty's government are of opinion that any extra profit derived from this measure should be carried to the account of the public, but the precise mode of doing so must be left to future arrangement. Her majesty's government are not insensible to the evil of any departure from the law which has placed the currency of this country upon a sound basis; but they feel confident that, in the present circumstances, the measure which they have proposed may be safely adopted; and that, at the same time, the main provision of that law and the vital principle of preserving the convertibility of the bank-note may be firmly maintained."

The Bank directors passed resolutions consequent upon this letter, which were of great importance to the trading community. These resolutions were conveyed to the government by a letter from the governor and deputy governor of the Bank:—

Bank Resolutions.

"Resolved,—That this Court do accede to the recommendation contained in the letter from the First Lord of the Treasury and the Chancellor of the Exchequer, dated this day, and addressed to the Governor and Deputy Governor of the Bank of England, which has been read;

"That the minimum rate of discount on bills not having more than 95 days to run be 8 per cent;

"That advances be made on Bills of Exchange, Stock, Exchequer Bills, and other approved securities, in sums of not less than £2000, and for periods to be fixed by the Governors, at the rate of 8 per cent, per annum."

The immediate effects of this measure can be most briefly shown by the following reference made a few days afterwards by an authority in such matters:—"As soon as the correspondence between the Bank of England and the Government was made public, a rise of nearly two and a half per cent, immediately ensued. Consols on Saturday left off at 80 ¾ to ⅞, and on Monday 83 ½ ⅝. Several fluctuations, however, occurred in the course of the day; and a fall of one per cent, on the announcement by the Bank broker of the truth of the correspondence alluded to above, excited much surprise. On Tuesday, the market was very unsettled, operations being nearly confined to Consols. The opening quotation was 83 ⅝, and the highest quotation 84 ⅜, with numerous fluctuations. A tendency to reaction was visible on Wednesday; the first price was 83 ¼ for money, which declined to 82 ⅜, but afterwards rallied to 82 ½¾, at which price they closed. On Thursday, there was scarcely any fluctuation until towards the close of business. The news of a banking failure in the West of England caused a fall of nearly ½ per cent.; and, at closing, 82 ¼ for Money, to 82 ⅜ to ½ for Time, were the current quotations. Exchequer Bills have considerably fluctuated during the week; about 20s. dis. for large bills is the closing quotation. Bank Stock has rather improved, but India Bonds continue very much depressed, quoting about

30s. dis."

The prevailing feeling among political economists was unfavourable to the measure; and there were many effects attending upon it which vindicated their judgment. In the provinces banks gave way, and mercantile houses of eminence were closed; a general apprehension among the more skilful financiers was entertained that no _ultimate_ benefit, but considerable ultimate injury, would ensue. The judgment of this class of persons may be best combed in the following review of the event:—"On this resolve being generally circulated, nothing could exceed the agitation that prevailed. Everywhere it became the engrossing subject of conversation; and, while many who were favourable to the 'expansion' objected to the high rate of interest, others, more experienced, remembering 1825 and 1836, with all the train of evils that resulted upon the withdrawal of the notes then issued, loudly expressed their disapprobation of this invasion of the most valuable clause in the Bank charter bill. Its mere relaxation, it was observed, robs the measure, at once and for ever, of the powerful check to over-trading that a knowledge that, under no circumstances whatever, a relaxation would be resorted to, was calculated to produce. The immediate effect in Liverpool has been to raise the value of cotton one per cent. This is a direct hindrance to manufacturing, and Manchester, Leeds, &c, consequently suffer. It is remarked at Liverpool that eight per cent., although high, is nothing in comparison with being obliged to sell. It follows, therefore, that, when sold, all the charges incident to withholding must be paid by the purchaser, and ultimately by the consumer. From Manchester, advices have been received of the failure of Messrs. Fairbridge and Mr. Robert Gardner (the latter is greatly regretted); from Leeds, of a firm it would be premature to mention. In the meantime, money in London is rather dearer than cheaper. Discount houses, and the joint-stock banks, are taking money repayable at short dates at six percent., five having hitherto been the current rate. Good bills will not be done under eight per cent., and second-rate at scarcely any price. The Directors of the Bank of England at present have not been subject to any great demands since Monday; the difficulty of offering good security being at once an obstacle to firms partially insolvent. At present, it is almost premature to judge, but doubts are entertained whether the benefits resulting, even for the present, from the 'relaxation,' will at all balance the baleful effects anticipated."

The government did not expect that such opinions would be entertained by so large and influential a portion of the public, and were desirous to retrace their steps as soon as they could do so with a good grace, for before a month had passed measures were taken to that effect. The following letter was addressed by the cabinet to the governors of the Bank:—

"Her majesty's government have watched with the deepest interest the gradual revival of confidence in the commercial classes of the country. They have the satisfaction of believing that the course adopted by the Bank of England on their recommendation, has contributed to produce this result, whilst it has led to no infringement of the law. It appears, from the accounts which you have transmitted to us, that the reserve of the Bank of England has been for some time steadily

increasing, and now amounts to £5,000,000. This increase has in great measure arisen from the return of notes and coin from the country. The bullion exceeds £10,000,000, and the state of the exchange promises a further influx of the precious metals. The knowledge of these facts by the public is calculated to inspire still further confidence. In these circumstances it appears to her majesty's government that the purpose which they had in view in the letter which we addressed to you on the 25th October has been fully answered, and that it is unnecessary to continue that letter any longer in force."

The harvest of 1847 was such as to restore confidence in some degree, and from that and other causes, especially the cessation of all speculative undertakings, money became easier. The government, however, claimed credit for their plan, which, in the opinion of so many qualified to judge, did more harm in some directions than it did good in others. If the number and magnitude of the different commercial failures were to be taken into account, there appeared as much necessity for the government measure when it was withdrawn, as when, twenty-eight days before, it was introduced. The following were announced to the end of November:—

IN GLASGOW. Liabilities.

Campbell of May..... £600,000

A. and J. Bournie..... 200,000

IN LIVERPOOL.

Ashburner 30,000

Napier of Camlachie..... 40,000

IN NEWCASTLE.

Carrand Co..... 70,000

IN MANCHESTER.

David Ainsworth 30,000

IN BLACKBURN.

Roget and Co..... 76,000

IN LONDON.

Freemanand Cook..... 350,000

Sargeant, Garden, and Co..... 150,000

Thurbonand Co..... 120,000

Coates and Co..... 100,000

Leaf, Barnet, and Co..... 100,000

Farmer and Ward..... 55,000

Ryder, Wimbolt, and Co..... 50,000

Pemberton and Co..... 30,000

Abbot and Co..... 30,000

Besides the great number of mercantile firms which failed, several banks were reduced to the same necessity: the West India, the Shrewsbury, Market Drayton, and the Honiton, were among the principal. Many foreign mercantile establishments which had connections with British houses also stopped payment, adding to the distress and alarm.

During the ensuing month large imports of bullion arrived from the continent and America, and the aspect of affairs became more hopeful.

Throughout the year the English populace experienced much distress, and bore it with patience; still there were food riots and disturbances of various sorts, which had to be put down by the strong arm of the law.

Notwithstanding the gloomy condition of all monetary and mercantile transactions, there were men of enterprise, who contemplated future undertakings of great magnitude. Among these projects was one proposing the formation of a ship canal across the Isthmus of Suez, which, however, was not carried into effect. The French government and people were very desirous to have such a work accomplished; but English politicians regarded it with jealousy, especially Lord Palmerston, then the highest authority in England on foreign affairs. By him the measure was regarded as impracticable, at all events, as a pecuniary speculation; and in its political tendency, likely to separate Egypt from Turkey, and to give France, as a great Mediterranean power, an undue preponderance. He also regarded it as endangering, and not remotely, English empire in India. At all events, Mr. Stephenson, the great English engineer, investigated the subject, and surveyed the line through which certain French speculators proposed that the canal should be cut. As the subject is technical, Mr. Stephenson’s views are given in his own words, used ten years afterwards:—

“In 1847, in conjunction with a French and Austrian engineer, he investigated the matter, feeling how important would be the establishment, if possible, of a communication between the Red Sea and Mediterranean. The levels given by a French engineer, who visited Egypt in 1801, during the French invasion, indicated a difference between the Red Sea and the Mediterranean of something like thirty-two feet. It was suggested that if the old canal of Ptolemy were opened again, a current might be established between the Red Sea and the Mediterranean, which would not impede steam navigation, and would at the same time scour the canal and enable a perfect channel to be maintained. However, after investigation, he and the other engineers found that, instead of there being thirty-two feet difference of level between the Red Sea and the Mediterranean, there was no difference at all, though the notion of that difference of level had been entertained for upwards of fifty years. While that notion existed it was believed by professional men that a canal, or a new Bosphorus, as it was called, might be maintained between the Red Sea and the Mediterranean; but the difference of level being found to be _nil_, the engineers with whom he was associated abandoned the project altogether, and he believed justly. Since that time he had walked over the district, at some considerable inconvenience,

and investigated the feasibility of opening a canal between the two seas, assuming them to be on a level, and supposing the canal to be supplied with water from the higher level of the Nile, but he had come to the conclusion that the thing was, he would say, absurd, were it not that other engineers, whose opinion he respected, had been to the spot since and declared it to be practicable. He coincided in opinion with the first lord of the Treasury. Money, it was true, would overcome any difficulty, but, commercially speaking, he must frankly declare that he believed this scheme to be unfeasible. Whatever its political import might be, he believed it to be an undesirable scheme, speaking as an engineer. In his opinion, the railway now nearly completed would be more effective, as far as India and postal arrangements were concerned, than this new Bosphorus between the Red Sea and the Mediterranean."

POLITICAL AGITATION IN ENGLAND.

The commercial distress gave an opportunity for certain political charlatans to stir up the minds of the people. The Chartists, headed by Fergus O'Connor, took advantage of the privations of the populace by appealing to their passions and their sufferings, representing them as the dupes of the upper and middle classes, especially the latter, who were described as enriching themselves at the expense of the poor. The "people's charter" was declared to be the panacea; all social evils were to vanish before the application of that political remedy. Some of the political demands of the chartists were just; all classes of liberal politicals felt that the people were entitled to a wider distribution of the franchise, but many who thus felt were deterred from the concession by the intemperate language and impracticable schemes of Fergus O'Connor and the lesser leaders of the confederacy. Whatever might be supposed imprudent as a measure of political agitation in a rich country, and where the vast mass of the people had a strong aversion to all constitutional, or as it was the fashion to name them, "organic changes," by sanguinary or violent means, was resorted to by Mr. O'Connor and his coadjutors. He propounded principles of political economy so absurd, that it was difficult to suppose he could have any faith in his own theories,—holding out the hope of an ultimate division of the land among the people: others propounded the doctrine of a law by which every man should be provided with "a fair day's wages for a fair day's work," and the duty of supplying that "fair day's work" for him rested, it was alleged, with the government. These men, in fact, did their utmost to bring about a social war, and the doctrines of communism were actively propagated and eagerly received among large numbers of the operatives in the metropolis and the north of England, and among the labourers elsewhere. There was, probably, no important town in England that had not its chartist association, which looked forward to a violent political revolution by which high wages could be procured by little labour. The Chartists, like the Irish repealers, were divided into sections, characterised respectively by their profession of physical force or moral force. The moral force Chartists were like the Old Irelanders, not generally very sincere in their belief of its efficacy. They professed it merely as a cover to conceal what they meditated; they were as much physical-force men as those who were so designated, but did not deem it politic to make the avowal.

After the dissolution of parliament (which will be recorded in its details upon another page), Mr. O'Connor succeeded in gaining his election. This circumstance filled his followers with revived hopes, and the agitation became more enthusiastic and demonstrative. Large public meetings were convened, which were conducted with order, and dispersed peaceably, although the speeches on these occasions were very inflammatory. The government regarded these "monster meetings" with uneasiness, and they were closely watched. The loyalty of the middle and of large sections of the poorer classes, however, gave the government a sense of security, notwithstanding the menacing attitude of the Chartists; and this loyal feeling was extended as the peaceably disposed became alarmed by the seditious and unprincipled harangues which the chartist orators addressed to such large assemblages. Many of the most active Chartists were socialists, and used the confederacy as a means of propagating their atrocious doctrines. As a specimen of the tone and method which characterised the chartist gatherings where order was maintained, the following account of one which took place after the elections will suffice:—"A meeting of Chartists, to the number of nearly ten thousand, took place at Newton Common, on Sunday. The object was to address the operatives in the manufacturing districts of Manchester, Oldham, Rochdale, Bolton, Buy, Preston, Liverpool, Wigan, &c., on the land and labour questions. Shortly after one o'clock, Mr. Fergus O'Connor, M.P., accompanied by Mr. W. H. Roberts, the miners' attorney-general, appeared in the crowd, on their way to the platform. Both these gentlemen were received amidst the loudest demonstrations of applause. Mr. Roberts having been duly proposed and seconded, assumed the office of chairman. He addressed the meeting at much length, on the progress and prospects of Chartism, and encouraged the vast multitude then before him to take courage from the past, and work with determination and zeal for effecting the great cause of the people's charter. A resolution, proposing that a committee, or a conference of delegates, should go to London, to escort Mr. O'Connor into Parliament on its opening, was agreed to. Mr. O'Connor then came forward and spoke at great length. He reviewed the great progress of Chartism, abused the Whigs, and browbeat the press. He next narrated the plans he had adopted, and was adopting, for the benefit of all who became Chartists. He anticipated great results from his scheme of labour palaces—denied the propriety of being placed in the election returns as a feather in the quill of Whiggery—was an earnest advocate for the amelioration of Ireland, and still willing and determined to agitate for their cause. He would go to parliament, and record his first motion for 'The people's charter, and no surrender.' The meeting was conducted in a very orderly manner."

As very considerable numbers of the working classes in Lancashire and Yorkshire had been taught in Sunday-schools, and the Sabbath day was much regarded in that part of the country, the collection of such a vast concourse of persons from great distances, on a day so sacred, created prejudices against the chartist confederacies even in their own strongholds, which, irrespective of every other difficulty, ensured their defeat. The agitation, however, did not come to a head during the year of which we write, and it is unnecessary further to trace its progress in this chapter.

This was not the only agitation which disturbed the equanimity of Great Britain throughout the year. The Protectionists, led by Lord George Bentinck, were active and acrimonious. Agricultural dinners and public meetings gave opportunities for the most violent denunciations against Sir Robert Peel, the government, and free trade. The manufacturers—the creators of wealth, and who sustained so large a portion of the public burdens—were represented as a selfish, callous set of men, eager only to acquire riches, even at the expense of all other classes of the community. They were described as disloyal and revolutionary, and bent upon the destruction of throne and constitution. It would be difficult to determine whether the orations at the protectionist groupings, or those at the chartist gatherings were most characterised by class invidiousness; nor could it be adjudged in which the less sound views of political economy were enunciated. The eloquence greatly preponderated on the side of the Chartists. Cotton was also quite as patriotic as corn. The operatives declared that “the country” was ruined by class legislation, and therefore desired that their own class should thenceforward possess the legislative power. The landowners declared that “the country” although not yet destroyed, was on the brink of destruction, and must speedily perish amidst blood and bankruptcy, unless the landed interest had again the power to make laws of which the Reform Bill had deprived it, and unless agricultural produce was “protected,” by legislatively enhancing its price for the benefit of the producers. “A fair day’s wages for a fair day’s work,” and the state to have the responsibility of securing it to the liking of those who made the demand, was as much the principle of squires as of operative cotton-spinners. Lord George Bentinck was a Fergus O’Connor for “the country party,” and Fergus was the Lord George Bentinck of the labouring town populations.

The public demonstrations of both these parties were often very unfortunate, in consequence of mismanagement by those to whom the getting up of these affairs were committed. These occurrences tended to lower both Chartists and Protectionists in public estimation, as various witty publications lampooned the prominent actors, and exposed them to overwhelming ridicule. The most signal opportunity afforded to the wits in this way was by the Chartists. On the 25th of October they announced a great public dinner to be given in London to eighteen members of parliament, whom they alleged had been returned to the House of Commons by their influence, and to represent their opinions. When the dinner-party assembled, not one of the eighteen honourable gentlemen appeared, nor did it transpire that even one had given any acceptance of the invitation! Fergus O’Connor was an exception from the application of these remarks. He was there as a matter of course, and elaborately puffed his absurd land scheme, by which so many were afterwards ruined.

The anti-slavery party were in many respects active, notwithstanding the home incidents which occupied the public mind. It was necessary to watch the conduct of government in reference to the recent enactment concerning the sugar duties, and also their general policy in regard to the sugar question, and the West India interest. The conduct of the West India party was suspicious, and required the vigilance of the anti-slavery men; and the coalition between that party and Lord George Ben thick added another motive still for watchfulness. Many of the anti-slavery people turned

their attention to India, and were supported by gentlemen of influence, military and mercantile, in efforts to rouse public interest in the resources of India, and the adaptation of these resources to English requirements, rendering the importation of commodities produced by slave labour unnecessary. George Thompson, Esq., who had been returned for the Tower Hamlets, one of the largest and most influential constituencies in the kingdom, a man of surpassing eloquence, took a very active part in this movement. A correct insight as to its object and spirit may be imparted to the reader by a resolution passed at a great meeting of the inhabitants of the Tower Hamlets on the 26th of October:—"After an eloquent address, expository of the subject, G.Thompson, Esq., M.P., moved a resolution to the general effect that it had been demonstrated that India had the capacity of producing every tropical raw commodity required by England for the constant and profitable employment of her population. That England, although mistress of India, was rendered year by year more dependent upon the United States for her supply of raw cotton and tobacco; both being the produce of slave labour. That, consequently, the prosperity of this country, and the stability of a large portion of the public revenue, were made dependent upon the vicissitudes of the seasons, upon the maintenance of peace between England and America, and upon the continuance of internal peace among the Slave States. That such dependence, besides perpetuating slavery, was to a great extent, the source of existing calamities, and pregnant with future evils to the interests of England. That the free agricultural population of British India would become the natural customers of this country in the exact measure that they would if permitted to become the producers of commodities for the wants of England, but that they were rendered incapable of competing with the United States, by reason of the burdens imposed upon their soil and industry. Therefore, resolved—That it is the duty of the people of England, for the sake alike of England, of India, and of the enslaved throughout the world, to require of the legislature the immediate removal of all imposts which depress the agricultural energies of the native population; and the institution of a strict and impartial inquiry, in India, into the condition of the natives, and into the conduct and the acts arising out of the peculiar government ruling over them, which affect their well-being, and retard their prosperity. Mr. W. Howitt seconded the resolutions, which were carried unanimously, and the meeting separated."

THE COURT.

There were few incidents of interest connected with the court during the year. In February Prince Albert was proposed to the University of Cambridge as candidate for the chancellorship. He was opposed by Earl Powis, and with such effect as to prove very mortifying to the court.. Prince Albert was elected by a majority of only one hundred and sixteen votes, and it was obvious that but for the prodigious exertion of government patronage, that result would not have been obtained. His royal highness was installed publicly at Cambridge early in July. Her majesty, having determined to accompany her husband on this occasion, a vast concourse of persons repaired to Cambridge, and the government made every effort to give _éclat_ to the event. The royal party travelled by the Eastern Counties railway, and were received by the mayor and corporation of Cambridge with much pomp. Repairing to the Hall of

Trinity, they were received by the dignitaries of the university. There her majesty took her seat on a chair of state on a dais. The new chancellor, accompanied by the Duke of Wellington (Chancellor of Oxford), and other great personages, presented an address to her majesty, congratulating her on her arrival. The prince, having read the address, retired with the usual profound obeisances, which not only amused the spectators, but afforded much diversion to her majesty, whose mode of smiling indicated how much she enjoyed the burlesque of the scene.

The following day, the Installation Ode was performed in the presence of the new chancellor. Her majesty was present as a visitor. The ode was composed by Wordsworth, the poet-laureate, and set to music by Professor Walmisley. Flower-shows, public breakfasts, concerts, levees, grand university dinners, entertained the numerous visitors of rank during the stay of the royal party. Her majesty had seldom before been attended by so august and splendid a retinue, consisting of Prince Waldemar of Prussia, Prince Laurenstein, Prince Peter of Oldenburg, the Prince of Saxe-Weimar, Lieutenant-General Sir Harry Smith (the hero of Aliwal), the Bishop of Oxford, and nearly all the gentry of the eastern counties. Cambridge had probably never witnessed such a festal occasion, and never before did her majesty seem so much to enjoy herself. It was generally observed that her fondness for the prince was carried to excess, and that her enjoyment was mainly derived from the honour done to him. That this amiable character, so much calculated to ensure her own domestic happiness, and to set a good example to her people, belonged to her majesty in a degree seldom evinced by royal personages, many proofs had been given before, and many were given after, the visit to Cambridge. A work entitled “The Journal of Thomas Baikes, Esq.,” professed to make many singular revelations to that effect. Mr. Baikes, the son of a wealthy London merchant, had somehow an early introduction to _haut ton_, and continued, in London and Paris, to live in the society of men of rank and fashion, a species of Beau Brummel. The Duke of Wellington gave to Mr. Baikes the following incident, which took place at the marriage of the Princess Augusta: “When we proceeded to the signatures, the King of Hanover was very anxious to sign before Prince Albert, and when the queen approached the latter, he placed himself by her side, watching the opportunity. She knew very well what he was about; and just as the archbishop was giving her the pen, she suddenly dodged round the table, placed herself next the prince, then quickly took the pen from the archbishop, signed, and gave it to Prince Albert, who also signed next, before it could be prevented. The queen was also very anxious to give the precedence at court to King Leopold before the King of Hanover, and she consulted me about it, and how it should be arranged. I told her majesty that I supposed it should be settled as we did at the Congress of Vienna. ‘How was that,’ said she, ‘by first arrival?’—‘No, ma’am,’ said I, ‘alphabetically, and then, you know B comes before H.’ This pleased her very much, and it was done.”

This was hardly fair to the Duke of Cumberland, and shows her majesty’s strong attachment to the Cobourgs; but his grace of Cumberland and majesty of Hanover never acted as an uncle to the queen, and would have gladly made the Orange party available to mount her throne. The Duke of Wellington knew all this; and as he regarded it to be one of his especial missions to watch over her majesty, he willingly

lent himself to those little artifices which tended to place the King of Hanover in an inferior position relative to that of Prince Albert, or of the King of the Belgians.

The only other event connected with the court, except such as will appear in the history of parliamentary transactions, was the visit to Scotland in August. This visit was paid in compliance with the wishes of the prince, who had on a previous occasion greatly enjoyed the opportunities of sporting which Scotland afforded. On the 11th of August, the queen, the prince, the Prince of Wales, the Princess Royal, and suite left Osborne House in the _Victoria and Albert_ yacht, with the _Fairy_ as tender, and escorted by a fleet of war-steamers. Her majesty stayed one night at the Scilly Islands, then passed through the Menai Straits, and steered for the Isle of Man. The fleet sailed close to the island, but her majesty did not land. On Monday, the 16th, the fleet anchored in Loch Ryan: their entrance to the mouth of the Clyde was very picturesque, and was observed by great numbers, in yachts and steamers, who had made excursions for the purpose. On the following day her majesty landed at Dumbarton, and inspected the old castle. The squadron anchored for the night under the castle of Rothsay, from which place the Prince of Wales derives his Scottish ducal title. On the Wednesday they proceeded up Loch Fyne; at Tarbut her majesty gazed with long and deep interest upon the glorious scenery. The royal party landed at Inverary, where the Duke of Argyll and the Campbells paid feudal homage, the clansmen assembling in their national costume.

From Inverary the court proceeded to Staffa, where they examined the cave. The prince also landed at Iona, where so many ancient kings and heroes of Scotland found sepulture. On Friday morning they arrived off Fort William, where, on Saturday morning, her majesty and suite left the squadron and proceeded by land to her Scottish autumn residence. The accounts of this expedition published in the journals of the day greatly interested the British public. A periodical not remarkable for its loyalty thus referred to the voyage:—“Never, certainly, were the habitual life and disposition of a sovereign exhibited to a nation in more favourable guise than those of Queen Victoria during her sea voyages. The history of the cruise to Scotland is like those which have preceded it. It displays the chief traveller in the most engaging light. We see her, the ruler of a maritime people, recurring for her holiday pleasures to the enjoyment of the sea; riding the waves with a fearless familiarity that yet has in it nothing unfeminine. The sovereign is pleased to gratify her people by going among them and reciprocating courtesies. Less reserved than some other predecessors, Queen Victoria, surrounded by her family, still seems attended by a thoroughly English spirit of domesticity; the manner in which the children accompany their parents, share the walks of their father on shore, and enter into the whole spirit of the voyage, is simply a model of the national manners according to their best type. And while her husband and the children are ‘stretching their legs’ on shore, the accomplished lady is seen with her pencil, exercising her talents by sketching the scenery around.”

Her majesty’s progress after the landing was such as to give her the happiest assurances of the loyalty and love of the Scottish people. The following description of the latter part of her journey is picturesque:—“The road to Ardverikie passes round

the north end of Loch Laggan, crossing the Padtock Water by an ingenious boat bridge. At this point Macpherson, of Cluny Macpherson, with about thirty of his tenantry in the costume of his clan; Duncan Davidson, of Tulloch, and a few of his followers; Sir John Mackenzie, of Selvin, and others, were assembled, the Highlandmen armed with broadsword and target. About eighty, thus armed, lined one side of the road, and the same number, unarmed, lined the other; while about five hundred persons of both sexes, in holiday costume, posted themselves on the face of the hill. The Marquis of Abercorn, in full Highland costume, and wearing the order of the garter, with the Duchess of Bedford, was also present. Shortly after eleven o'clock a signal was made from Ben Nead that the royal party were approaching, and' presently the royal carriages were seen rounding a hill half a mile distant. Cluny then put himself at the head of the Highlandmen, and behind him stood the standard-bearer, with the venerable green silk flag of the Macphersons, which was 'out' in the rebellions of 1715 and 1745. Cluny himself wore the shield which Prince Charles Stewart carried at Culloden. The royal carriage drew up opposite the bridge, the path to which, as well as the bridge, was carpeted. Having greeted the marquis and Cluny, her majesty shook hands with the Duchess of Bedford, and, with the prince, repeatedly acknowledged the cheering of the people. Prince Leinengen was also in the royal carriage, and shared the attentions of the people. Next to her majesty and her royal consort, the Prince of Wales was the object of interest, as, led by his royal father, and wrapped in a tartan cloak, he walked down to the bridge. The royal party then entered a carriage in waiting on the south shore, and drove slowly off to the lodge. The Duchess of Norfolk and Lady Jocelyn followed; and in a third carriage came the Duke of Norfolk, Earl Grey. General Wemyss, and Sir J. Clark, who were received with demonstrations of respect. The last carriage having passed, an anker of whiskey was brought forth, with cakes and cheese, to feast both great and small. Cluny then proposed 'Health and happiness to her majesty,' which was drank with nine cheers enthusiastically given; and the crowd, after discussing some forty gallons of whiskey, dispersed.

"Her majesty was not accompanied by military, and in the evening all the county police were dismissed, the force of seven London police being considered more than sufficient for the protection of her majesty and the royal party."

Ardverikie, where her majesty sojourned during her visit to the north, was formerly a hunting park of Fergus, King of Scotland. In front is Loch Laggan, which is very extensive, being about eight miles in length, although not so picturesque as most of the Highland lochs.

On the 17th of September, her majesty left her Highland residence, and sailed from Fort William to the Isle of Man, where the prince landed. Thence the royal party steered to Fleetwood, in Morecomb Bay, Lancashire, whence they proceeded by rail to London.

The conjugal and parental love shown by her majesty, and, indeed, her affectionate interest in all her royal relatives, endeared her to her people, the more so because it was the general impression that the house of Brunswick was deficient in these virtues. In proof of that absence of family kindness which has in most instances

characterised her majesty's royal predecessors, the following was extensively circulated in the periodicals of the day, which, at the same time, held up the queen's loving spirit to public admiration:—"Ever since the accession of the house of Guelph royalty has freed itself from one of the most universal and honourable, though somewhat expensive duties of kindred, and this, too, without observation, much less censure. The poorest of mankind mark the grave of parents, wife, and children by some humble memorial; the richer place tablets or raise tombs to their relatives. So gratifying to the heart is this duty, that rarely, if ever, is it omitted from any other cause than poverty. A foreigner visits the royal depository in St. George's Chapel, and asks where are the royal monuments? But no son, daughter, brother, nephew, or niece of the present dynasty has erected a funeral monument of any kind to the kindred dead. Even if affection did not produce such a testimonial, it might have been expected from regard to ancient custom, and from desire to conform to the habits of civilised life. The only monuments to our kings and their descendants, with the exception of the statue to George III. in Windsor Park, by George IV., and of the beautiful mausoleum which the King of Hanover is building in memory of his consort, have been erected by the public; and in the instance only of the Princess Charlotte's monument, which was raised by subscription, has one been placed in church or chapel. There is absolutely nothing—not even an engraved slab—to tell where the ashes of George I., II., III., and IV., and William IV., or of any one of all their numerous progeny, repose. No doubt the world knows; and the omission is only remarkable or important from its being at variance with the custom of the country, from the injury which it has caused to art, and from the idea which it creates of heartlessness in the survivors; not one of whom has expended a shilling on what would appear to be the most natural of social duties."

HOME NAVAL AND MILITARY AFFAIRS.

The naval and military incidents of the year at home, which were of a nature to record in history, were not numerous. The most important of them was the organization of a coast defence, which was thus described in a paper of the day, having a character for accurate naval and military intelligence:—"The organization of the coast-guard for the national defence, is the plan of the Earl of Auckland, first lord of the Admiralty, under the approbation of the commissioners of customs. The carrying out of the system is vested entirely in the hands of Captain Houston Stewart, C.B., the controller-general of the coast-guard, in whose hands a sum of money has been placed for the purpose. It will be recollected that this gallant officer commanded the _Benbow_, 72, at the siege of Acre. Commander Jerningham is an additional commander appointed to the _Excellent_ gunnery-ship, and has been selected for the purpose of carrying into operation the plans and arrangements of Captain Stewart, and to superintend the system of instruction of the men at great gun exercise, which is precisely the same as that laid down in the 'Rules for exercise and service of great guns in her majesty's ships.' Wherever guns have been placed for the instruction of the coast-guard, warranted gunners from the _Excellent_ have been appointed to instruct the men, under the superintendence of Commander Jerningham, who was gunnery-lieutenant of the _Wellesley_, in China. They receive four shillings a day, in addition to their present pay, and the men who are brought to the guns for

instruction receive one shilling a day for six days, during which time they are excused from all other duty. It is proposed to instruct the coast-guard by means of ship platform batteries of one gun each, constructed exactly similar to the ports of a man-of-war, placed in a position in each district convenient for the drill of fifty men, and in a situation in which it may be rendered available for defence, as well as affording a range to sea for practice."

In after years this institution proved of great value. Lord Auckland's administration of the Admiralty will, on this account, be memorable, although certainly on no other.

The return of Sir Harry Smith from India was hailed by the public, who sought every opportunity of demonstrating their respect for a hero who had so nobly sustained the military reputation of England. Theregiment of lancers, upon which so much depended in Sir Harry's separate command connected with the events of Loodiana and Aliwal, had also returned to England. The following exciting and singular scene occurred in the autumn at Brighton. The address delivered by the general was remarkable for the interesting incidents which it brought out, and its reference to the opinion of the Duke of Wellington:—"On Friday afternoon, Sir Harry Smith paid a visit of inspection to the 16th Lancers at Brighton. The gallant general arrived by railway at two o'clock, and was met at the terminus by Colonel M'Dowall who went out with the regiment in 1822 as a lieutenant. He accompanied the general to the cavalry barracks, situate a mile north-west of Brighton. Shortly after his arrival at the barracks, Sir Harry and Colonel M'Dowall, went into the barrack yard, where the regiment was drawn up for an undress parade. As soon as the general made his appearance the band struck up, 'See, the conquering hero comes.' The regiment was drawn up in squadrons by Lieutenant-colonel Smithe, who so gallantly led it into the field at Aliwal. Sir Harry inspected the troops, occasionally stooping as he proceeded down the line, addressing some of the veterans, who bore upon their breasts medals and stars, presented to them for their victories in India. Sir Harry inspected them on foot; but afterwards mounted a horse, and put the regiment through a variety of evolutions, which were performed to his great satisfaction. This done, the regiment was drawn up in close column. Sir Harry rode up to the front, and addressed the troops as follows:—'Soldiers of the 16th Lancers, I hope you are now as happy as you made your enemies unhappy. You served in India with the highest honour. Whenever you were called on, you were ready to obey your officers, either in the field or in quarters. If I have not this day addressed each separate individual whom I know, it is not because I do not feel towards you all as I know you all feel towards me, but because I do not keep you and your officers on the ground. I have served many years, and commanded many soldiers; but never did I know a regiment of dragoons or of infantry superior, either in the field or in quarters, to my gallant comrades of the 16th Lancers. I think I now see you on the morning of Aliwal, marching in that order which would have done honour to a barrack parade—your hearts in the right place, your hands on your lances, and doing what I believe was never before done—charging twice through a dense mass of infantry. On the following morning I saw half of you, I believe, with your heads bound up, looking in the field of battle for your dead and wounded comrades. I saw you also, when the enemy had taken your baggage, with a cheerful heart and ready hand, willing to redeem what was considered to be a

reverse, when I asked you to do it, and to make the enemy and the world know that you were equal to all trials. The Duke of Wellington has often talked to me about this regiment of dragoons, who have frequently distinguished themselves under his command, and also of the memorable morning of Aliwal. Soldiers of the 16th, I have on this occasion more particularly addressed you. I beg to address Colonel M'Dowall and the officers of the 16th Lancers: That you are gentlemen we all know, and none know it more than the privates of the regiment, and that they have a commander and officers who will ask nothing of them which they will not obey. I regard the 16th Lancers as the nucleus of another corps, which in future times will achieve another Aliwal. I tell you again, what I told you at Lahore, where Runjeet Singh asked if you were all gentlemen, and if her majesty had many such regiments of gentlemen; on that morning I told you I loved you. I repeat it, and the love of a comrade is known to none but to soldiers. My dear fellows, I rejoice to be amongst you again.' Sir Harry then said (turning to Colonel M'Dowall)—' Pray do not let them be kept any longer.' The troops then gave a loud huzza, and marched off the ground with the band playing."

On the 1st of June a general order was issued from the Horse-guards, to the following effect:—"Her majesty having been graciously pleased to command that a medal should be struck to record the services of her fleets and armies during the wars, commencing 1793, and ending in 1814, and that one should be conferred on every officer, non-commissioned officer, and soldier of the army who was present in any battle or siege, to commemorate which medals had been struck by command of her majesty's royal predecessors, and had been distributed to the general or superior officers of the several armies and corps of troops engaged, in conformity with the regulations of the service at that time in force,—general and other officers, non-commissioned officers, and soldiers, who consider that they have claims to receive this mark of their sovereign's respect, are each to apply to the secretary of the board of general officers, Whitehall, London, and to send in writing a statement of their claim, for what action, at what period of time, and the names of the persons, and the titles of the documents by which their claim can be proved."

The occasions for which medals were granted, in pursuance of the general order of which the above is an extract, were:—

Maida, 4th July, 1806.

Bolein, 17th August, 1808.

Vimeira, 21st August, 1808.

Sahagun Benevento, December and January, 1809.

Corunna, 16th January, 1809.

Martinique, February, 1809.

Talaveia, 27th and 28th July, 1809.

Guadaloupe, January and February, 1810.

Busaco, 27th September, 1810.

Barrosa, 5th March, 1811.

Fuentes d’Onor, 5th May, 1811.

Albuera, 10th May, 1811.

Java, August and September, 1811.

Ciuclad Rodrigo, January, 1812.

Badajoz, 17th March and 10th April, 1812.

Salamanca, 22nd July, 1812.

Fort Detroit, America, August, 1812.

Vittoria, 21st June, 1813.

Chateauguay, America, 26th October, 1813.

Nivelle, 10th November, 1813.

Chrystler’s Farm, America, 11th November, 1813.

Nive, 9th to 13th December, 1813.

Orthes, 27th February, 1814.

Toulouse, 10th April, 1814.

The Admiralty issued an order similar to that of the Horse-guards. Gold medals to flag officers and captains were issued by the Admiralty for the actions undermentioned:—

Lord Howe’s victory over the French fleet, 1st June, 1794.

Lord St. Vincent’s victory over the Spanish fleet, 14th February, 1797.

Lord Duncan’s victory over the Dutch fleet, 11th October, 1797.

Captain Sir Edward Hamilton. Surprise and recapture of the _Hermione_, 15th October, 1799.

Lord Nelson. Battle of Trafalgar, 21st October, 1805.

Sir R. Strachan. French squadron taken, 4th November, 1805.

Sir J. Duckworth. Action off St. Domingo, 6th February, 1806.

Captain Bresbane, of the _Arethusa_, and three other ships, take Curaçoa.

Captain M. Seymour, of the _Thetis_, captured the _Amethyst_, 10th November, 1808.

Captain Stewart, of the _Seahorse_, captured Turkish frigate, _Badere Zaffer_, 6th July, 1809.

Captain Mounsey, of the _Bonne Citoyenne_, captured the _Furieuse_, 6th July, 1809.

Captain C. Cole, of the _Caroline_, captured the _Banda Neira_, 9th August, 1810.

Captain W. Hoste, with the _Antphion_ and three other ships, action off Lissa, 13th March, 1811.

Captain Talbot, _Victorious_, captured Rivoli, 22nd February, 1812.

Captain Broke, of the _Shannon_, captured the _Chesapeake_, 1st June, 1813.

Captain E. Palmer, of the _Helvis_, captured _L'Etoile_, 27th March, 1814.

Captain E. Hope, of the _Endymion_, defeated the _President_, 25th January, 1815.

The issue of these orders, and the grant of the medals, gave general satisfaction; but severe animadversions were offered in the London press against the want of public spirit, on the part of successive governments, in allowing such actions so long to remain without the honour thus tardily accorded. Many of the heroes who contributed to this glorious list of victories by sea and land, had passed away, their breasts unhonoured by the badge which they would have prized so much. It was no new thing for England's braves to be neglected by their country, or rather, by those to whom the government of the country was so often unworthily committed.

GENERAL HOME INCIDENTS.

The year was remarkable for many railway accidents, resulting from the carelessness and mismanagement of the various companies, exciting public indignation, and causing uneasiness generally, in respect to personal safety in railway travelling. In the first six months of the year, according to parliamentary returns, one hundred persons were killed, and an equal number more or less injured.

In September an interesting event occurred in connection with the memory of the great national poet. In pursuance of the will of the deceased owner, the house at Stratford-upon-Avon, popularly known as the birthplace of Shakspere, was sold by public auction. When the writer of these lines visited the place, the house had nothing very remarkable in its appearance. It was old, of course, but did not look so venerable as might be expected. It was situated in the High Street of the obscure little town. It had been originally a mansion, but, at the date of its sale, part had been removed and the rest was let in small tenements. It was "knocked down," in auctioneers' phraseology, for the price of £3000, the purchasers being a committee appointed by an association formed for the purpose of obtaining possession of the building. The house was given to the government in trust to be preserved as a public memorial of the great man who first saw the light beneath its roof. This proceeding was very creditable to the national feeling, for though no certain proof exists that Shakspere was born there, still, as it was in possession of his father before, at, and after the birth of the great dramatist, there is probable ground for believing that it was his birthplace. It had been purchased from the descendants of the original possessor for £250, by the gentleman under whose will it was put up to auction.

During the autumn and winter, numerous disasters occurred at sea, especially on the east coasts of England and Scotland. By these wrecks many lives and much property were lost.

Few events in England excited such general interest among all classes as the arrival of Jenny Lind, the celebrated vocalist and actress. She made her first appearance at the Italian Opera House on the 4th of May, and was received with an enthusiasm never before lavished on any performer: during her stay in England this enthusiasm never abated.

Under the head of “General Home Incidents,” seems hardly the most suitable place to record the proceedings of the Hudson’s Bay Arctic Expedition. Yet, as it did not belong to the foreign or colonial affairs of the country, and as the expedition had been determined upon and ordered at home, this may be the most appropriate place in which to introduce it. From the nature of the transactions, it is necessary to give the relation in the words of the authorised report:—

“In July, 1846, the Company dispatched an expedition of thirteen persons, under the command of Doctor John Rae, from Fort Churchill, in Hudson’s Bay, for the purpose of surveying the unexplored portion of the Arctic coast, at the north-eastern point of the American continent. The expedition, which has just returned, has traced the coast all along from the Lord Mayor’s Bay, of Sir John Ross, to within a few miles of the Straits of the Fury and Hecla, proving thereby the correctness of Sir John Ross’s statement that Boothia Felix is a peninsula. From Doctor Rae’s Report to the Company the following interesting details are gathered:—Having divided his men into watches, the doctor started from Churchill on the 5th of July, 1846, and reached the most southerly opening of Wager River on the 22nd, where they were detained all day by immense quantities of heavy ice driving in with the flood and out again with the ebb tide, which ran at the rate of seven or eight miles an hour, forcing up the ice and grinding it against the rocks, causing a noise resembling thunder. On the 24th the party succeeded in making Repulse Bay, and cast anchor within eight miles of the head of the bay under shelter of a small island. Here Doctor Rae found some Esquimaux Indians, with whom he quickly established friendly relations, and from a chart drawn by one of the party he inferred that the Arctic Sea (named Akhoolee) to the west of Melville Peninsula was not more than forty miles distant, in a N.N.W. direction, and that about thirty-five miles of the distance was occupied by deep lakes; so that they would have only five miles of land to drag their boat over—a mode of proceeding he had decided upon even had the distance been much greater, in preference to going round by the Fury and Hecla Strait. Here he established a wintering party, and having unloaded the boats, and placed one of them, with the greater part of her cargo, in security, the other was hauled three miles up a rapid and narrow river which flowed from one of the lakes they were to pass through. This work occupied them the whole of the 26th, as the current was very strong, and the channel so full of large boulder stones, that the men were frequently up to the waist in ice-cold water whilst lifting or launching the boat over these impediments. Their landing-place was found to be in latitude 66° 32′ 1″ north. The rate of the chronometer had become so irregular that it could not be depended upon for finding the longitude, and during the winter it stopped altogether.

“Proceeding according to the course he had adopted, the party and their adventurous leader on the 3rd of August, at 11 o’clock a.m., rounded a high bluff

cape, which they called after the lady of Sir John Henry Pelly, Bart., Governor of the Hudson's Bay Company. It is situated in latitude 67° 28′ 00″ north; longitude, by account, 87° 40′ west.

"Having succeeded, after surmounting many difficulties, in reaching Melville Peninsula, he was ultimately obliged to retreat from the numerous obstacles that rendered his progress impossible; he therefore paid a short visit to the wintering party at Repulse Bay, to ascertain how they were getting on. Ultimately he found himself obliged to give up all hope of prosecuting the survey on that occasion. His reasons we give in his own words:—' My reasons for arriving at this conclusion I shall here briefly mention, as such a step may seem somewhat premature. I saw, from the state of the ice, and the prevalence of northerly winds, that there was no likelihood of our completing the whole of the proposed survey this season; and although part of the coast, either towards the Strait of the Fury and Hecla or towards Dease and Simpson's furthest, might be traced, yet to accomplish even this might detain us so long, that there would be no time to make the necessary preparations for wintering, and we should thus be under the necessity of returning to Churchill without accomplishing the object of the expedition; or, if we remained at Repulse Bay, run the risk of starving, for I could obtain no promise of supplies from the natives, and all the provisions that we carried with us amounted to not more than four months' expenditure, which was all that our boats could carry. We should have thus to depend almost altogether on our own exertions for the means of existence, both in regard to food and fuel.'

"The party, therefore, commenced preparations for passing the winter, and on the 2nd of September their house was furnished. Its internal dimensions were 20 feet long by 14 feet broad; height in front, 7 ½ feet, sloping to 5 ½ at the back. The roof was formed of oil-cloths and morse skin coverings, the masts and oars of our boats serving as rafters. The door was made of parchment deer skins stretched over a frame of wood. It was named Fort Hope, and was situated in latitude 66° 32′ 16″ north, longitude (by a number of sets of lunar distances) 86° 55′ 51″ west. The variation of the compass on the 30th August, 1846, was 62° 50′ 30″ west; dip of the needle, 88° 14′; and the mean time of 100 vertical vibrations in the line of declination 226.

"On the 5th of April in the present year, Doctor Rae commenced his spring journeys in company with three men, the Esquimaux, Ibit-Chuck, and Oulibuck's son, as interpreter; and, on the 15th, which was very stormy, with a temperature of 20° below zero, they arrived at the steep mud banks of a bay, called by their guide Ak-ku-li-guwiak. Its surface was marked with a number of high rocky islands, towards the highest of which (six or seven miles distant) they directed their course, and were, before sunset, comfortably housed under a snow roof. Early in the morning of the 17th, he set out in company with two of the men, for the purpose of following the coast to some point surveyed by Sir John Ross, as he felt confident that the veteran discoverer was correct in his opinion as to Boothia Felix being part of the American continent. They directed their course to the furthest visible land, which bore N.W. (true). Cape Berens (the point alluded to) is equated in latitude 69° 4′ 12″ north, and

longitude 90° 35′ west. It is formed entirely of granite partially covered with moss. Thirteen miles beyond this they arrived at two narrow points in the small bay, between which they built their snow hut.

“As they were now near the latitude and longitude of Lord Mayor’s Bay of Sir John Ross, he struck across land nearly in a north direction, and at noon, when passing over a considerable lake, the latitude of 69° 26′ 1″ north was observed. Advancing three miles beyond this, he reached another lake. A walk of twenty minutes brought him to an inlet not more than a quarter of a mile wide. This he traced to the westward for three miles, when his course was again obstructed by land. Ascending some high rocks, from which a good view could be obtained, he thought he could distinguish rough ice in the desired direction. With renewed hopes, he set out at a rapid pace, plunging among deep snow, scrambling over rocks and through rough ice, until he gained some rising ground close to the beach. From the spot where he now stood, as far as the eye could see to the north-west, lay a large extent of ice-covered sea, studded with innumerable islands. Lord Mayor’s Bay was before him, and the islands were those named by Sir John Ross ‘The Sons of the Clergy of the Church of Scotland.’

“The isthmus which connects the land to the northward with Boothia Felix is only one mile broad, and, judging by the number of stone marks set up on it, it appeared to him to be a favourite resort of the natives. Its latitude is 69° 31′ north; longitude, by account, 91° 29′ 30″ west.

“After taking possession of his discoveries with the usual formalities, the Doctor returned to his quarters on the island above-mentioned, where, as they were all more or less affected with snow-blindness, and the dogs were still weak, they remained on the island, which he found to be situated in latitude 68° 53′ 44″ north; longitude, by account, 89° 56′ 00″ west. It is formed almost entirely of granite, and is upwards of seven hundred and thirty feet above the level of the sea. From the highest point of it, he obtained a fine view of the bay, and was thus saved the trouble of tracing its shores. It extends sixteen or eighteen miles to the southward, and contains a number of rocky islands, the highest of them being that on which they encamped. The bay was named Pelly Bay, after the governor of the company; and the group of islands, Harrison Islands.

“The party, on their return, traced the shores of the tracts across which they had made overland journeys when coming out. The country was low, flat, and very regular in outline. They arrived at Repulse Bay on the 5th of May, all safe and well, but as black as negroes, from the combined effects of frost-bites and oil-smoke. The Doctor subsequently traced the west shore of Melville Bay, and for that purpose started on the evening of the 13th of May.

“The nature of the service, and the hardships to be endured on such expeditions, may be understood from the few short extracts from the report in reference to this last exploring visit:—‘Our snow-house, on the 25th, was built in lat. 68° 48′ N., long. 85° 4′ W., near a small stream, frozen (like all others that we had passed) to the bottom. We had not yet obtained a drop of water of nature’s thawing, and fuel being

rather a scarce article, we sometimes took small kettles of snow under the blanket with us, to thaw it with the heat of our bodies. Leaving two men to endeavour to fish and shoot, I went forward with the others, and crossed Garry Bay, passing inside a number of islets.'

"The party returned to their snow hut on the 25th, where, says the report—' The men we had left here were well, but very thin, as they had neither caught nor shot anything eatable, except two marmots. Had we been absent twelve hours more, they were to have cooked a piece of parchment skin for supper.' The whole party returned safe and well to York Factory on the 6th of September last."

During the year 1847, several eminent men were called away from the sphere of their earthly honour and usefulness. Among these was Mr. Gurney, of Norwich, a man who attracted a considerable share of public attention by his talents, energies, and benevolence. As a member of the Society of Friends, he became very influential in that body, and was recognised as one of the most enlightened of their ministers. He took part with his sister, the celebrated Mrs. Fry, in prison visitations. His interviews with M. Guizot concerning negro slavery were very influential with that statesman. Mr. Gurney was an author, especially on Biblical and polemical topics. He also wrote on scientific subjects, but chiefly in their relation to theology. As a writer he was more scholarly than elegant, more learned than profound, more discursive than logical. He lived and died an eminently good man.

On the 13th of February, in the 66th year of his age, Sharon Turner, the historian of the Anglo-Saxons, departed this life. He was a distinguished archaeologist and historian.

On the 22nd April, Thomas B. Martin, Esq., M.P. for Galway, died. He was the largest landed proprietor in Ireland, and a very noted man in the political and social affairs of that country.

The 27th of April witnessed the death of a very remarkable man, Lord Cowley, in the 75th year of his age. He was the youngest son of the first Earl of Mornington, and consequently youngest brother of the Duke of Wellington. Mr. Henry Wellesley began professional life as aprecis writer in the Foreign Office. After serving for two years there, he accompanied the embassy of Lord Malmesbury to Lisle. In 1797 he accompanied his brother, the Marquis Wellesley to India, as private secretary. He was, after twelve months' service in that capacity, appointed one of the commissioners to Mysore. In that office he showed not only talent but genius. Subsequently he was sent to Oude, on an especial mission, and conducted his diplomacy with so much tact, that he obtained the cession of territory which brought the company a revenue of nearly a million sterling. He was subsequently appointed to the government of the country thus ceded. On his return from India he entered parliament, where his mode of speaking very much resembled that of his brother Arthurshort, pointed, and to the purpose. He resumed his diplomatic engagements, and was appointed envoy to Spain. He resigned his position in the treasury, under the government of the Duke of Portland, for this office, in 1809, and continued in it until 1811, when he was directed to continue his services at that court, with the title of

ambassador. In 1812 he was made a Knight of the Bath. He continued in Spain until 1822. He was then sent to Vienna, and ultimately to the court of the Tuileries, as the representative of his country. He was made a peer, and various other public honours were conferred upon him. Upon the breaking up of Sir Robert Peel’s administration, he gave place to the Marquis of Normanby, but took up his residence at Paris, and remained there until the time of his decease. He was twice married; in the first instance to Lady Charlotte Cadogan, which marriage was dissolved. His second wife was Lady Georgiana Cecil, daughter of the Marquis of Salisbury. The talent which characterised the whole of the Wellesley family was very extraordinary; every member of it distinguished himself in some way in the service of his country, and obtained honour, won by his own assiduity and genius.

Sir Robert Stopford, admiral of the red, vice-admiral of the United Kingdom, and governor of Greenwich Hospital, died on June 25, in the 88th year of his age. This distinguished sailor had entered the navy in very early youth, and was in most of the great actions that were fought during his eventful life. He was much beloved by the navy. His life was remarkably free from disputes with public men, especially in his own profession. There was one notable instance, however, to the contrary. Sir Charles Napier, who served under him off the coast of Syria, disobeyed orders, and added to the disobedience fierce attacks upon the gallant old admiral, who came out of the discussion with honour, while his disputatious antagonist suffered much in public opinion by the attacks which he made upon his superior officer.

On the 28th of July, the death of John Walter, of Bearwood, Berkshire, caused a great sensation. To that gentleman the _Times_ newspaper owes its progressive power. His inventive genius, his business habits, dispatch, punctuality, and enterprise, raised the paper to the pitch of popularity it afterwards attained, and which it has ever since preserved.

On the same day another eminent man passed away, Sir George Martin, G.C.B., admiral of the fleet, and vice-admiral of the United Kingdom. His services were innumerable. Through a long life he endured the perils and shared the glory of naval war, and died regretted by his country.

On the 7th of December, Mr. B. Liston, the celebrated surgeon, died; and during the same month many professional men, and many men of letters.

The space allotted to this history would not allow of even a brief notice of all the eminent persons who passed from life during this year in the British Isles, and subjects of Great Britain in other countries. Many distinguished men were lost to the navy and army, whose valour and renown were precious in the esteem of the nation; but so numerous are the heroes of Great Britain, in all ages, that the names of deceased warriors are only noticed with ordinary respect and regret, whose death would, in any other nation, be an event to attract the sustained attention of the people. The year made sad havoc especially in the navy list, from which the names of many of the best and bravest were removed.

PARLIAMENTARY HISTORY OF THE YEAR.

The distressed condition of the poor of the British Isles, the disarrangement of commercial affairs, the famine in Ireland, and the crime prevailing in that country, rendered it necessary to open the session of 1847 earlier than usual. Accordingly, on the 19th of January her majesty, in person, read the speech from the throne. It referred to all these subjects in a manner appropriate to the occasion. The marriage of the Infanta of Spain to the Duke of Montpensier, was simply noticed as having given rise to a correspondence between her majesty's government and that of France. When her majesty came to the passage referring to the Montpensier marriage, the house was intensely still, and every eye watched the royal countenance to see if any indication of her private feelings would be given. This portion of the royal speech was read with a peculiar expression of displeasure by her majesty, never before witnessed in her countenance on a public occasion. In private, the royal lady did not hesitate to denounce the conduct of Louis Philippe as utterly faithless, and she was accustomed to refer to him as incapable of acting with the honour of a private gentleman, for he had given his hand to her while making a solemn promise that this marriage should not take place. This state of feeling on the part of her majesty was well known to the King of the French, who, while he regretted it, took credit to himself for having frustrated her majesty's own intention to have the infanta married to a Cobourg. Her reference to the extinction of the free city and state of Cracow was made in terms of great severity, as a manifest violation of the treaty of Vienna, and her intention of laying before the house copies of her protests to the three states was expressed. Allusion was made to the action of the combined squadrons of France and England in the River Plate. Her majesty read the passages which described the condition of Ireland with a subdued tone, as if mingled shame and sympathy struggled within her breast.

The debates which ensued upon the address were neither remarkable for judgment nor eloquence. Lord Stanley, in the lords, was, as usual, apt, ready, and ingenious, but dealt in platitudes unworthy of his reputation. Lord Brougham was bitter against his former friends, allowing his personal spleen to interfere with his patriotism and the public welfare. He did not succeed either in embarrassing the ministry or enlightening the lords. The debates in the commons were regarded with more interest by the country than those in the lords. Mr. Disraeli's sarcasm that the house of lords had become "the high court of registry," had truth in it. The address gave rise to much animated discussion, envenomed by party spirit. Smith O'Brien laid the grievances of Ireland before the house in terms more patriotic and honest than wise. Lord George Bentinck taunted the government with the failure of their remedial measures for Ireland, political and material, and his taunts were keenly felt. The cabinet was not equal to the crisis.

On the 21st of January Lord John Russell moved that the house should go into committee on the corn importation acts; and he announced his intention to follow that up by a motion on the navigation laws, by which they should be suspended until the 6th of November. He accordingly first proposed the suspension of the duties on the importation of foreign corn until September. Bills were brought in, and passed both houses with the utmost rapidity, the standing orders being waived. On the 25th they received the royal assent. On that day ministers communicated their plans for the

melioration of Irish suffering. So overwhelming was the wretchedness of Ireland, that the amount of relief for January was calculated by Lord John Russell at three-quarters of a million sterling. Colonel Jones, who was at the head of the board of works in Ireland, with very little advantage to his country, and no moral advantage to himself, had, in a letter dated the 19th, stated the difficulties which were admitted to stand in the way of employing labourers. The people were so reduced by famine that task-work could not be imposed upon them, and Colonel Jones was therefore of opinion that to give food was, on the whole, cheaper than to employ such labour. Lord John Russell made very effective use of this letter in support of the views which he presented to the house. He stated that the money advanced for public works should not be exacted in full, but half remitted upon the payment of each instalment. The next proposal of the premier was for a grant of £50,000 in advance, to enable proprietors to procure seed for the land. His lordship animadverted in very indignant terms upon the conduct of men of mark in Ireland, who, instead of paying their rates for the relief of the poor, invited them to make demands with which no government could comply. He instanced the union of Castlebar, in the county of Mayo, where there was room in the workhouse for six hundred persons, and only one hundred and twenty were admitted, while the Marquis of Sligo and Mr. Moore addressed a letter to the people of the district, calling upon them to meet at Castlebar and “demand their rights.” Lord John dwelt eloquently upon the want of self-reliance and co-operation displayed in Ireland, and affirmed the utter impossibility of government or any human power interposing so as to prevent the continuance of many of the painful consequences of harvest failure already experienced. His lordship’s counsels and cautions were badly received, both by the Irish members and by the people of Ireland, and notwithstanding his liberal measures of relief, his speech added to his unpopularity in that country. The Irish were very unwilling to adopt the philosophy of Mr. Disraeli, “Whether, under any circumstances, it should be the office of a government to supply the people with food is a very interesting question. When famine prevails there will always be a numerous party who will maintain the affirmative. Death and decimation are stern facts which seem to bring conviction. Yet it is the duty of a minister to consider whether, if the government were to interfere, the death might not be increased, and the rate of mortality aggravated.”

Another measure for the relief of Ireland was proposed by ministers to enable government to make advances from the treasury on the security of the rates, and excited a debate, when its committal was moved on the 8th of February. This debate was remarkable as giving an opportunity to the great agitator for his last parliamentary effort. He declared that two millions of the Irish population must perish if the parliament did not come forward with adequate relief; while he proclaimed their measures totally inadequate, and showing either ignorance of the state of the country, or want of sympathy for its sufferings. He affirmed that in the ruin which had fallen on the land, any attempt to levy rates would be abortive, and drive the people to desperation. The honourable and venerable member depicted the condition of the people with truthful eloquence, and he was no less correct in showing the shortcomings of the government schemes of relief. His speech was delivered in a faint voice, and with every symptom of physical exhaustion. He was

heard with the most profound attention and respect. His predictions, unfortunately, came to pass. His dissolution was hastened by his inability to procure an assent to his views in the house, and by the consequences which he so clearly foresaw.

Lord John's measures for the relief of Ireland having been carried, he on the 1st of March proposed a permanent measure to compel the land to support the pauper poor. On the 12th of March his lordship made an elaborate defence of his scheme, which was warmly debated, Mr. Roebuck acrimoniously attacking Irish landlords, and Mr. Smith O'Brien insisting that the blame of the condition of Ireland rested upon the government. Government, however, was not left alone to initiate measures of Irish relief. Lord George Bentinck, on the 4th of February, brought forward a motion for the reproductive employment of Irish labour by the construction of railways in Ireland. This motion his lordship advocated eloquently, and it has been agreed that his oration was the best he ever delivered. His plan was in all respects sound considered in reference to the principles of political economy, and more useful, practically, than any which the government had devised; yet the ministerial side of the house treated it with ridicule. An advance of sixteen millions sterling to promote railways in Ireland they scouted as preposterous; but no effective answer was given to the facts and figures of Lord George, who was singularly careful on this occasion in his preparation of both. The bill was brought in without any opposition from the government, but it was foreseen that the influence of the cabinet would be used for its defeat. Accordingly, on the 12th of February, on the proposal of the second reading, government opposition was offered: the debate, after an adjournment, was resumed on the 15th, and continued through that day and the next, when the bill was thrown out by an overwhelming majority.

On the 22nd of February the chancellor of the exchequer made his financial statement, and made a demand for an eight millions loan on behalf of Ireland, noticed elsewhere. He gave an appalling picture of the state of the English poor, showing that, in Manchester alone, nearly thirty thousand workmen and labourers were out of employment, while the prospect of the augmentation of the unemployed there was disheartening. The grant for Ireland was especially opposed by two members of the house, who, while they sympathised beyond most other members with the political agitators of Ireland, looked upon her material condition without an equally warm interest, and regarded her rather from an English than an imperial point of view; these members were Mr. Hume and Mr. Roebuck. Government was triumphant in those measures, so far as the support of a majority in the commons was concerned. It was, however, felt that neither the men nor the measures were adequate to the exigencies of party, any more than to the magnitude of the occasion. Lord John Russell was vacillating and time-serving, although with a show of resolution in resisting and defeating measures which afterwards met, at all events, his qualified approval. This was most singularly exemplified in connection with Lord George Bentinck's measure for an advance of money to create railways in Ireland. On the 26th of April the house was taken by surprise when the chancellor of the exchequer proposed a loan to certain Irish railways. The proposed sum was £620,000, half a million of which was to be advanced to one particular railway—"the great South Western." This gave great offence to many. Mr. Hume led off the opposition, Mr.

Roebuck followed, of course, with fiery impetuosity; Sir Robert Peel disapproved of it, and the whole Peel party echoed his objections. Lord George Bentinck exulted in the homage paid to his counsels by the tardy, trimming, half measure, or less than half measure of her majesty's advisers. Notwithstanding so rigorous an opposition from so many quarters, government was so well backed by the Irish members and the ministerial hacks who represented British constituencies, that they carried this and several other measures to which a similar opposition was offered. The remark that the railway scheme of Sir Charles Wood was the fag-end of Lord George Bentinck's measure, was received with loud cheers by the house, and was repeated much "out of doors." During these debates the grossest ignorance of Ireland, her people, resources, and financial relation to Great Britain, was evinced by English representatives. Mr. Hume and Mr. Roebuck were very conspicuous in this respect. Mr. Disraeli had the folly to say that the railway scheme of Lord George Bentinck would be beneficial to Ireland, in a political, moral, and social point of view, irrespective of material advantage, because the Roman Catholic and Protestant populations would be brought to work together as "navvies!" Mr. Disraeli did not know that not one man, probably, out of five thousand in that class of labourers in Ireland was a Protestant, and that if working together in the same employments would be sufficient to reconcile them, the reconciliation must have been long ago effected—over the whole of Ulster, at least. The differences between Irish Protestants and Roman Catholics were founded in principle, cherished deeply and warmly by them respectively, and were not, and are not, to be healed by the political or economical quackery of Mr. Disraeli, or politicians who, like him, share with neither party in the earnestness of their opinions. The Irish Protestant and the Irish Roman Catholic believe that the political ascendancy of their respective creeds is necessary to the development of their power and usefulness, and strive, therefore, with jealous eagerness and honesty for that ascendancy. Whatever concessions on this ground the Protestants might be induced to make, the spirit of Irish Romanism is ultramontane in every province and in every social grade of the people.

The Earl of Lincoln and Lord Monteagle united in bringing under the notice of the commons and lords the subject of Irish emigration, and each of these noble persons occupied the time and attention of parliament with an impracticable measure. The general want of parliamentary tact and practical sagacity evinced by the members of both houses at this juncture was discouraging to those who regarded parliament as the hope of the nation.

Parliament was much occupied with Irish and financial questions during the session; several other matters, however, occupied earnest attention. Mr. Fielden, member for Oldham, brought before the commons a measure for shortening the hours of labour of women and children, and young persons in factories. His agitation of this subject derived additional interest from the fact that he himself had been a poor factory boy, and had, to use his own expression, always "stood by his order." His measure proposed the limitation of labour to twelve hours a clay, allowing two hours out of the twelve for meals, and he would apply this rule to all young persons between the ages of thirteen and eighteen. On Saturday, however, he would limit the hours to eight, making a total of sixty-three hours in the week until the 1st of May, 1848, after

which the total hours of labour for each young person in the week should be fifty-eight. These restrictions he would apply to all females, of whatever age, engaged in factory labour. The working-classes were strongly in favour of Mr. Fielden’s motion. Mr. Cobden had said the previous year that, if the matter was postponed for twelve months, the feelings of the working-classes would change; but that eloquent and philanthropic man very often proved himself a bad prophet, and never more signally than in this instance. The desire of the working-classes for some such law had greatly increased since the time Mr. Cobden declared that it would abate. On the second reading of the bill a fierce opposition was offered, based upon principles of political economy. Sir Robert Peel, Mr. Hume, Mr. Trelawney, Sir Charles Wood, Mr. Mark Philips, and Mr. Bright, were the chief opponents of the measure. Mr. Bright very ably animadverted upon the vacillation of Lord John Russell upon this subject, and the mischief inflicted upon the interests in question by the noble lord’s indecision.

Lord John Russell avowed his support of the principle of the measure, because parliament had already given its sanction to that principle, but he objected to the details. The bill was very ably supported by Mr. Ricardo and Mr. Duncombe. Several speeches were made on its behalf, which were calculated to damage it, and to awaken the alarm of the manufacturing interest; these were made by Mr. Sharman Crawford, Mr. Ferrand, Mr. Borthwick, Sir Robert Inglis, and Mr. Newdegate. Mr. Roebuck offered an able and formidable opposition to it. Mr. Brotherton made a feeling appeal to the house, assuring it that the working-classes were borne down by the oppressive number of their hours of toil; that it was impossible for them to accomplish a better arrangement by voluntary agreement; that he himself had worked in a factory, and felt the oppressiveness of the burden, resolving, if ever he could, to contribute to the emancipation of the workmen from so great an evil, and declaring that he still retained in their original freshness the feelings he then cherished. This noble appeal was received by the house with warm demonstrations of applause. Sir James Graham endeavoured to remove the effect which it produced, setting out with the paltry sophism that Mr. Brotherton had risen by the long-hour system, ergo, he should not oppose it! The fair implication of Mr. Brotherton’s speech was that he had risen _in spite_ of the long-hour system, and if Sir James could have regarded the arguments of the honourable member for Salford with common candour, he must have drawn that inference. The bill was carried through both houses with rapid success, after undergoing certain modifications. Lord Brougham took occasion to launch his thunders against his former friends in the ministry for their varying opinions, forgetful that from him this reproach, however well founded, came with the worst possible grace.

On the 22nd of March Mr. Fox Maule moved the second reading of a bill for shortening the period of service in the army. The bill was opposed by Sir Howard Douglas, who did not on this occasion give his last mistaken opinion on military affairs. Colonel Sibthorp, the opponent of every improvement in the law, was an appropriate companion for Sir Howard Douglas in this opposition. Colonel Reid also denounced the measure. It received support from Major Layard, who exposed the injustice of the Duke of Wellington’s Horse-guards’ administration by instances of the

gross political partiality displayed in the promotion of officers. Sir De Lacy Evans, the friend of the soldier, the supporter of every liberal opinion and just law, supported Mr. Maule. Mr. Sidney Herbert afforded a qualified support. The measure passed the commons, and received an eloquent and powerful advocacy in the lords from the Duke of Wellington. This mainly contributed to the success of the bill, for the lords were disposed to throw it out. The Earl of Lucan proposed a plan calculated to reconcile parties; but the Duke of Wellington was so strenuously in favour of the plan of the government, that it was carried, but by a very small majority.

GOVERNMENT PLAN OF EDUCATION.

Few subjects had engaged the attention of the country more than that of popular education. The government resolved upon an enlarged scheme, and submitted their views to parliament. The plan was essentially in the interest of the Established Church, and had the appearance of being intended not only as a means of proselytizing dissenters, but also to disparage them. No measure could be more adapted to aggravate the differences between the two great sections of English Protestants. An opposition was awakened among all the dissenting communities of the most hearty nature, and the government sowed the seeds of distrust of the whig party, which their old abettors, the dissenters, have cherished to this day, although ten years have since elapsed. It is unlikely that the Whigs, as a party, will ever regain the confidence of the Protestant dissenters of Great Britain. The whig government showed its usual inaptitude to perceive the real state of public feeling among the lower strata of the middle classes, and the unhappy faculty of making unpalatable measures, as _mal apropos_ as possible in the time and mode of their introduction.

Lord Lansdowne introduced the measure to the lords. Upon certain minutes emanating from the privy council the government based their measure. It comprised a system of educational grants, and of school inspection, which virtually consigned the education of the country to the custody of the clergy of the Established Church. In the lords the measure of the ministers passed with little question; in the commons numerous and stormy debates ensued. Mr. Macaulay, on the one hand, and Mr. Bright, on the other, threw some acrimony into these debates, but probably the former never appeared to less advantage in parliament, nor the latter to more advantage than in this discussion. Government succeeded in disarming the Roman Catholic members from opposition by a private understanding that, although by the minutes of the educational committee of the privy council then under consideration, they were debarred from any grant, separate minutes would afterwards be introduced in their especial behalf. There was also an understanding with the Wesleyan Methodists on the principle of the grants to their schools, the inspection to be exercised, and the selection of pupil teachers, which disarmed the opposition of that numerous and energetic body. The Unitarians were also conciliated by the explanations which were offered to them, and that body was so extremely anxious for the spread of education, that they were ready to accept a position of great denominational disadvantage, in order to see the extension of some plan that would conduce to the mitigation of popular ignorance. The Congregationalists and Baptists, Presbyterians and Friends, and various other bodies of Methodists who adopted the

voluntary principle, were beyond conciliation. They boldly demanded equal rights for all, and perfect freedom of education. This large class of persons were much maligned by the Earl of Surrey, when he consented to have Boman Catholics excluded from the minutes, because, in his opinion, if they were placed within the circle of advantage which the government was willing to accord, all the dissenting sects would assail them with an increased and perhaps successful opposition. The objections of the “voluntary dissenters,” and more liberal sections of churchmen, were unaffected by theological considerations; they desired that their schools should be protected from government interference, and remain uncorrupted by government patronage, and they objected to the unconstitutional authority, as they deemed it, exercised by the privy council. No public man out of their own party ever had so much intercourse with those classes as Lord Brougham, who, at the same time, understood them so little. His lordship affected to “live and move and have his being” in an atmosphere of liberality and enlightenment too high for the earnestly religious men of the country to attain. From this elevation he looked down upon their conflicts with an affected compassion, which if meant to cover his disdain was very unsuccessful, and it brought out more prominently his lordship’s thorough ignorance of the tone and principles of these classes, many of whom had studied the merits of the whole question with far more undivided attention, and not less capacity, than he had.

Lord Lansdowne could not introduce a more comprehensive plan, but he admitted the impossibility of his so doing, because society was divided into two great classes, churchmen and dissenters, who loved education much, but controversy more. Never was a sentence uttered in parliament where the religious feelings and opinions of the people were concerned, even by Lord Brougham himself, more unfounded in fact. The assertion was certainly true of a great many, both churchmen and dissenters, but there was a far greater number of each who loved education very much, and who did not regard controversy with any favour—men of strong conscientious principles, and of deep and earnest piety, who were not prepared to sacrifice their opinions to any government, or to any view of expediency, whatever the end proposed.

Instead of making these classes the object of his constant sneers, Lord Brougham would have rendered more service to his country, and have been more just, had he honoured their scruples, and devoted himself to the production of some scheme which, whether successful or not in passing the legislature, would have laid the basis of an ultimate acceptance by its respect for the religious rights of all. No plan of education will ever gain acceptance in England, so long as there is freedom of discussion and religious liberty, which recognises either a sectarian or a state ascendancy in education. As the Bishop of Oxford once said, as to the feasibility of a compulsory system of education—“We are too free a people for such a scheme ever to be carried out amongst us.” Carlisle showed his philosophy and accuracy of historical knowledge when he described the Roundheads and Cavaliers as honest, earnest men,— heroes, because nobly true to the principles they had espoused, and fearless of all consequences in their avowal; but that eloquent writer showed, like Lord Brougham, his ignorance of the classes of men which, in the present age, succeed to the opinions of Roundheads and Cavaliers, when he declares that there are no such

men in the England of to-day. They are now as earnest and more numerous: let the same circumstances call them forth and they will be found. A superior civilisation, a clearer understanding of the principles of civil and religious liberty, a more tolerant temper now prevail, but there is as much conscientiousness still; and now as ever, in this and in every land, men, deeply imbued with the principles of Christianity, will be found ready to bear the testimony of the advocate or the confessor, as events demand. The spirit evinced by Lord Brougham pervaded, to a less extent, a large number of the members of both houses, and produced impressions amongst the numerous classes thus contemptuously treated, which worked deeply into their hearts, and influenced for many a year the votes at elections, and the general feeling of the people towards the great historical parties by which parliament had been divided.

The government carried its measure; £100,000 was devoted to educational purposes on the plan provided by the minutes of the Committee of Education of the Privy Council. The discussions so long existing on the question of education received, however, a new impetus, and became more acrimonious than before. A very large party was gradually created favourable to a national system of secular education, leaving the religious care of the scholars to denominational supervision. A very large class of earnest men became still more devoted than ever to the voluntary system of education, and prodigious efforts were made to promote it. It was found, however, that the expense was such as to defy voluntary efforts, except as sustained through a long period, while the deficiency to be met was urgent and extensive. To carry out any government system that would at all meet the necessity, and respect the scruples of all classes would also entail an enormous burden upon the nation. In the debate on the question to which this section refers, Mr. Duncombe depicted the heavy public burdens that would be thus imposed: Mr. Macaulay exclaimed, “A penny ahead.” Mr. Duncombe’s retort, that this statement was a romance was merited. Mr. Macaulay could never have examined the financial bearing of this great question thoroughly, or his acute mind must have discovered the fallacy of the opinion he so rashly hazarded.

The discussions in and out of parliament brought to light a vast mass of statistics as to the crime and ignorance with which the worthful elements of society had to contend. The alarm felt by good men in the result of these revelations strengthened the hands of government in passing the bill. Objections were raised by many in view of the magnitude of the evil to be encountered, and a sense of responsibility in connection with some immediate and extensive action. The reverend Doctor Guthrie, on a different and subsequent occasion, eloquently expressed what was at this juncture so generally felt:—“When men die, corruption commonly begins after death, but when nations die, it always begins before it. And as in that man’s gangrened extremities, and swollen feet, and slow circulation, I see the heralds of death approaching,—in these godless masses, sunk in ignorance, lost to the profession of religion, and even to the decent habits of civilised society, I see the most alarming signs of a nation’s danger, unless remedies are promptly applied, the unmistakeable forerunners of a nation’s death. Unless early, active, adequate measures are employed to arrest the progress of our social maladies, there remains for this mighty empire no fate but the grave—that grave which has closed over all that have gone

before it. Where are the Assyrian and Egyptian monarchies? Where is the Macedonian empire? Where the world-wide power of Rome? Egypt lies entombed amid the dust of her catacombs. Assyria is buried beneath the mounds of Nineveh. Rome lives only in the pages of history, survives but in the memory of her greatness, and the majestic ruins of the 'Eternal City.' Shall our fate resemble theirs? Shall it go to prove that Providence has extended the same law of mortality to nations that lies on men—that they also should struggle through the dangers of a precarious infancy; grow up into the beauty, and burn with the ardour, of youth; arrive at the vigour of perfect manhood; and then, slowly sinking, pass through the blindness and decay of old age, until they drop into the tomb? Under God, it depends upon ourselves whether that shall or shall not be our fate. Matters are not so far gone but it may yet be averted. A great French general, who reached the battle-field at sundown, found that the troops of his country had been worsted in the fight; unskilful arrangements had neutralised Gallic bravery, and offered the enemy advantages they were not slow to seize. He accosted the unfortunate commander; having rapidly learned how matters stood, he pulled out his watch, turned his eye on the sinking sun, and said, 'There's time yet to gain the victory.' He rallied the broken ranks; he placed himself at their head, and launching them with the arm of a giant in war, upon the columns of the foe, he plucked the prize from their hands—won the day. There is no time to lose. To her case, perhaps, may be applied the words, which we would leave as a solemn warning to every worldly, careless, Christless man, 'Behold, now is the accepted time; behold, now is the day of salvation.'"

BILL FOR CREATING A NEW DIOCESS OF MANCHESTER.

The government brought in a bill for this purpose which excited much discussion in parliament, and much discontent in the locality more immediately interested. The second reading was proposed by Lord Lansdowne on the 7th of June. The bill also created a new archdeaconry of Liverpool, The bill proposed to exclude the new bishop from a seat in parliament. This evoked opposition from the high church party, but the success of the measure was secured by this proviso; for the opposition raised in Lancashire was so great that the government could hardly have proceeded with the bill had a seat in the House of Peers been associated with the new see. It was provided, however, that when a vacancy, by death or otherwise, occurred on the bench of bishops, the bishop of Manchester should succeed to a seat in that house. This introduced a new principle in the relations of the episcopal bench to the peerage; for a bishop would not in future have a seat in their lordships' house as a matter of course, but would occupy his see without such privilege until a vacancy occurred.

DEBATE ON THE ANNEXATION OF CRACOW.

The annexation of Cracow to the Austrian empire has been already related in this chapter. Several allusions were made to this in the debates on the address, but on the 4th of March Mr. Hume brought the subject forward in a formal manner. Mr. Hume, however, so mixed up the subject with the Russo-Dutch loan, that his resolutions as far as regarded Cracow were impracticable, and he withdrew them after uselessly occupying the time of the house by a long debate.

There were few matters of interest connected with the remainder of the session. Lord Palmerston delivered a speech in which he animadverted so severely on the bad faith of the Spanish government, in reference to Spanish bonds, as to produce great indignation in Spain. It was supposed that the good effects of the speech, however, would be felt by those interested in the punctual disbursements of the Spanish government. That government had too little probity to meet the calls of honour, and too little shame to be moved by the disapprobation of honest men.

It was resolved by the government of Lord John Russell to advise her majesty to dissolve parliament, so that the elections might terminate before harvest; various bills were therefore postponed or abandoned.

Lord Lyndhurst had been accustomed to take a retrospective view of each session, in a speech which recapitulated the doings and misdoings of government, according to his lordship's view of them. Lord Brougham, ambitious to do everything, even when he knew others could do it better, resolved to perform the task usually sustained by his brother ex-chancellor. The performance was inferior to that usually accomplished by the noble Baron Lyndhurst, although in declamatory force Lord Brougham's oration was perfect. All the bills passed in the session he described as bad ones. Many of those lost or abandoned, if introduced by government, he represented as useless, and their introduction as a waste of time. Every epithet of contempt furnished by the English language, and by any other which his lordship knew, however imperfectly, was heaped upon the defunct bills. They were consigned to the shades below, to that "lean world" where—

"Ibant obseuri sola sub nocte per nmbram Perque domos Ditis vacuas et mania regna."

What his lordship said of the defunct measures will be true of himself, when his great energies are still, and his eloquent tongue silent for ever—"A thousand faults and a thousand freaks died with them." His lordship appended a condemnatory motion to his speech, which, like most of his motions, came to nothing. The house was greatly amused, and even instructed, by the noble lord's oration, but not at all edified. The Marquis of Lansdowne replied with that calm and graceful dignity by which that venerable peer was so much distinguished; and his reply carried with it the weight of his consistent political character, for the house unanimously adopted his course.

PROROGATION AND DISSOLUTION OF PARLIAMENT.

On the 23rd of July, parliament was prorogued by her majesty. As the parliament which had been called together in 1841 had been one of the longest during the century, the prorogation, which was made by her majesty in person, excited very great public interest, and the queen's speech was looked for with unusual public attention. The streets leading to the House of Lords presented the same animated appearance as is usual on similar occasions. Her majesty, accompanied by Prince Albert, and attended by the usual great officers of state, entered the royal carriage, and proceeded from Buckingham Palace to the House of Lords shortly before two o'clock. As the royal procession passed through St. James's Park, and along the line

of road, her majesty and her illustrious consort were loudly cheered by the spectators who had assembled to witness this splendid pageant. On the arrival of the royal _cortège_ at the House of Lords, it was announced by a discharge of cannon.

Her majesty having robed, she immediately proceeded to the house, and took her seat on the throne. Prince Albert occupied a state chair on the right of the sovereign. The entrance of her majesty to the house was announced by a nourish of trumpets. The peers and peeresses all rose as the queen entered. The new house was crowded, and presented a brilliant spectacle. All, or nearly all, the foreign ambassadors and ministers were present. The dresses of the ladies were very elegant.

Her majesty having taken her seat, the Lord Chancellor directed Sir Augustus Clifford, Usher of the Black Rod, to summon the House of Commons to hear the royal speech on the prorogation of parliament. In a short time the speaker, accompanied by a number of members, appeared at the bar, when the right honourable gentleman, as is usual, addressed her majesty in a short speech, recounting the business of the session, and concluded by praying the royal assent to several bills which had passed both houses. Her majesty then read the following most gracious speech:—

"_My Lords and Gentlemen_,—I have much satisfaction in being able to release you from the duties of a laborious and anxious session. I cannot take leave of you without expressing my grateful sense of the assiduity and zeal with which you have applied yourselves to the consideration of the public interests. Your attention has been principally directed to the measures of immediate relief which a great and unprecedented calamity rendered necessary.

"I have given my cheerful assent to those laws which, by allowing the free admission of grain, and by affording facilities for the use of sugar in breweries and distilleries, tend to increase the quantity of human food, and to promote commercial intercourse.

"I rejoice to rind that you have in no instance proposed new restrictions, or interfered with the liberty of foreign or internal trade; as a mode of relieving distress. I feel assured that such measures are generally ineffectual, and, in some cases, aggravate the evils for the alleviation of which they are adopted.

"I cordially approve of the acts of large and liberal bounty by which you have assuaged the sufferings of my Irish subjects. I have also readily given my sanction to a law to make better provision for the permanent relief of the destitute in Ireland. I have likewise given my assent to various bills calculated to promote the agriculture and develop the industry of that portion of the United Kingdom. My attention shall be directed to such further measures as may be conducive to those salutary purposes.

"My relations with foreign powers continue to inspire me with confidence in the maintenance of peace. It has afforded me great satisfaction to find that the measures which, in concert with the King of the French, the Queen of Spain, and the Queen of Portugal, I have taken for the pacification of Portugal, have been attended with success; and that the civil war which for many months had afflicted that country has, at last, been brought to a bloodless termination. I indulge the hope that future differences between political parties in that country may be settled without an appeal

to arms.

“_Gentlemen of the House of Commons_,—I thank you for your willingness in granting me the necessary supplies; they shall be applied with due care and economy to the public service.

“I am happy to inform you that, notwithstanding the high price of food, the revenue has, up to the present time, been more productive than I had reason to anticipate. The increased use of articles of general consumption has chiefly contributed to this result. The revenue derived from sugar, especially, has been greatly augmented by the removal of the prohibitory duties on foreign sugar.

“The various grants which you have made for education in the United Kingdom will, I trust, be conducive to the religious and moral improvement of my people.

“_My Lords and Gentlemen_,—I think it proper to inform you that it is my intention immediately to dissolve the present parliament.

“I rely with confidence on the loyalty to the throne, and attachment to the free institutions of this country, which animate the great body of my people. I join with them in supplications to Almighty God that the dearth by which we have been afflicted may, by the Divine blessing, be converted into cheapness and plenty.”

An event occurred at this juncture not unimportant to the government, and in which the Roman Catholics of Ireland felt concern. The O’Connor Don, one of the members for Roscommon, and a lord of the Treasury, died. He was a patriotic Irishman, of superior education and intelligence, and much respected, not only by the county he represented, but in Ireland generally. In the province of Connaught he was regarded with the reverence paid to a Celtic chief.

Parliament having been dissolved, writs were at once issued for the election of members for a new one. The especial feature of this election was the want of a definite policy on the part of the great body of the candidates. The Whigs seemed to have no clear notion of what they ought to propose to themselves or to the country. Lord John Russell, as has always been his custom, referred to his past life as the standard by which the electors should judge his future policy. A suspicion existed in the electoral body in Great Britain that it was the intention of government to endow the Roman Catholic clergy, and this injured the cause of such Whig candidates as were not very explicit on this matter. The previous parliament had added to the influence of the church by increasing the number of bishops, and by their education plan; this prejudiced many of the Dissenters against Whigism in general, and the government leaders of that school as its most prominent advocates. There was a general expectation that, whatever the complexion of the new parliament, Sir Robert Peel would of necessity be in power before its dissolution. The energy of the country party was, however, mainly directed against the Peelites, and their strength was sufficient to bar, for a time at all events, the approaches to power against Sir Robert.

The elections proceeded throughout Great Britain with fairness, except that the landlords in some places exercised an influence which was unconstitutional and unjust. Tenants were evicted because they voted according to their conscience; and

the tradespeople in country towns were menaced with loss of custom by the neighbouring landowners. In Ireland the landed interest also exercised an undue influence, and many cases of extreme hardship occurred. The Boman Catholic clergy used the power of their office for electioneering purposes, in a way injurious to their own moral influence, subversive of the rights of the people, and dangerous to law and order.

The elections terminated by the return of a majority, ostensibly in favour of government, but there was little earnestness of principle or purpose to give consistency or continuity to their support.

ASSEMBLING OF A NEW PARLIAMENT.

In consequence of the public distress in Great Britain, the famine in Ireland, and the disturbed state of that country, it became necessary for parliament to assemble sooner than had been customary. Accordingly, on the 18th of November, the first session of the new parliament began; Mr. Shaw Lefevre was re-elected speaker. On the 23rd, the Marquis of Lansdowne was commissioned to read her majesty's speech. That document referred with hope to the state of commercial matters in Great Britain, and with gratitude to Providence for a bountiful harvest. Her majesty expressed her sympathy for Irish suffering, and her abhorrence of Irish crime. She expressed her pleasure at the alacrity showed by all classes to relieve the destitute in Ireland; and recommended her parliament to take measures for repressing outrage, and preserving the public peace in that country. She expressed her regret that civil war had broken out in Switzerland, and her readiness to use her influence to heal those distractions. The speech announced a treaty with the republic of the equator for the suppression of the slave-trade, and avowed confidence in maintaining the general peace of Europe. The navigation laws, the health of the metropolis, and the revenue, were also subjects to which she called the attention of her parliament.

In the debate upon the address, in the lords, Lord Stanley was unreasonable and virulent; Lord Brougham, always in opposition to somebody, refuted the conservative leader. He "praised the government for calling parliament together so soon; justified the interference with the bank charter, recorded on another page; declared that Ireland stood in a shameful and hateful pre-eminence of crime, and trusted that effectual measures would be taken to disarm the people, and protect life and property."

The debate on the address, in the commons, was chiefly remarkable for the boldness and extent of Mr. John O'Connell's demands upon the Treasury for the relief of Ireland. Sir Benjamin Hall made some very foolish replies to Mr. O'Connell, and added to the bitterness of the debate. Mr. Maurice O'Connell made the startling declaration that not more than one-fifth of the sum voted for Ireland had ever reached that country.

A Roman Catholic archdeacon, named Laffan, at a public meeting in Cashel, had made a very inflammatory speech, which had excited the indignation of the public, and was the subject of animadversion in parliament. Mr. Mahon, an Irish member, was chairman of that meeting, and the mode in which he palliated the atrocious

speech of the archdeacon caused murmurs of disapprobation in the house. Ireland appeared to great disadvantage in this debate, and the tone of English members was not so generous as it ought to have been. The dreadful crimes perpetrated in Ireland had produced a state of feeling in England which was almost resentful, notwithstanding the compassion entertained for the sufferings of the Irish poor. There could be no doubt, as Mr. Stafford O'Brien reminded the house, that some of the best of landlords had been assassinated. There appeared to be a relentless thirst for blood among the Irish peasantry, prompted by fanaticism, famine, and despair, which was calculated to destroy the sympathy of the representatives of Great Britain.

The address in the commons was ultimately agreed to after a most acrimonious debate, protracted by the Irish members and their opponents far beyond the limits usual on such occasions.

DEBATE ON THE DISTRESS OF THE NATION.

On the 30th the chancellor of the exchequer rose, pursuant of notice, to move for "a select committee to inquire into the causes of the recent commercial distress, and how far it has been effected by the laws for regulating the issue of bank-notes payable on demand." After an intellectual debate, except so far as some incoherent rhapsodies of Mr. Urquhart made it otherwise, the motion was acceded to. Sir Robert Peel appeared to singular advantage in this discussion; he placed the causes of public distress luminously before the house, and supported the policy of government. In the lords there was a similar debate, remarkable for the extraordinary assertion of Lord Brougham, that the public distress was chiefly to be attributed to the obstinacy of government and parliament in not taking his advice and that of the Duke of Wellington, proffered for the last ten years. His lordship seemed ambitious of identifying himself with the illustrious duke on all possible occasions, although scarcely any two men could have entertained opinions more dissonant than these two noble persons.

MEASURES FOR THE REPRESSION OF HOMICIDE AND OUTRAGE IN IRELAND.

The party of Lord John Russell had thwarted the government of Sir Robert Peel when endeavouring to enact a law for the preservation of life and property from the lawlessness of the peasantry in Ireland: it was Lord John's fate, in this session, to invoke Sir Robert's aid in carrying measures very similar. It became necessary to pass some enactment calculated to hold Irish outrage in check. Lord John's influence ultimately suffered by so frequently opposing others in their more timely efforts to carry measures of which he was glad at last to avail himself.

In the six months ending October, 1847, there were ninety-six murders, while the appalling number of one hundred and fifty-six attempts at assassination had been made. During the same period, one hundred and sixteen dwelling-houses had been set on fire by incendiaries. But offences against life, property, and the civil and religious freedom of the respectable inhabitants, were innumerable. Portions of Ireland were under a reign of terror. The sympathies of whole districts were on the side of those by whom rapine and assassination were committed; and there was a general unwillingness, even among the better class of farmers, and persons in higher

stations still, to bring the malefactors to justice.

Sir George Grey introduced the remedial measures of government. The proposed bill was to be applicable only to such portions of Ireland as the lord-lieutenant should proclaim to be disturbed. The reserved force of Irish constabulary was to be increased from four hundred to six hundred men—a feature of the scheme so absurdly inadequate as to expose its authors to ridicule. From this paltry reserve his excellency was to send forces into the proclaimed districts. This force would be paid out of the district it was sent to protect—a most salutary arrangement, as giving the small farmers and clergy an interest in checking insurgent proceedings. All persons, unless especially exempt from the prohibition, were to be forbidden the use of arms in proclaimed districts, but they might have such in their own houses. This provision, which appeared reasonable in itself, was practically mischievous, for the houses of many became depots of arms for their companions in disaffection more suspected than themselves. Robberies of arms were perpetrated by _unarmed_ bands, who were nevertheless not resisted. Any violation of the disarming clause of the bill would subject the culprit to three years' imprisonment. The lord-lieutenant had power to authorise search for arms in the houses of the suspected, and all prohibited weapons were to be delivered up on proclamation to that effect, under penalties. This also was evaded, for as soon as a district was proclaimed, the arms disappeared into a neighbouring district, not so situated, from whence incursions were made into the proclaimed district, where the force was generally too feeble to protect the numerous points upon which the depredators fell. The police had power to call upon all males between sixteen and sixty, in any district where a murder was committed, to join in pursuit of the murderer; and any one who refused, was held guilty of misdemeanour. This clause alarmed the disaffected more than any other.

The bill was received with loud cheers. Mr. John O'Connell, who had declared that he would "die on the floor of the house" rather than allow a coercion bill to pass, admitted the necessity of some provision against the outrages which had prevailed, and that Sir George Grey's bill was moderate and just; but he strangely added that he would oppose it at every stage, unless government passed such a bill regulating the law of landlord and tenant as he and his party approved. Mr. Fergus O'Connor bantered Mr. John O'Connell for his subservience to ministers, which ill accorded with his loud demonstrations of ministerial hostility in Conciliation Hall. Mr. O'Connor opposed the bill, even in its first stage. That gentleman wished the Irish repealers to join the chartist movement, and to place himself at the head of both. Mr. Horsman sensibly observed that the most appalling thing to him was that the government had allowed these murders to go on ever since, by the union, the imperial parliament had undertaken to govern Ireland. Mr. Maurice O'Connell did not oppose the bill. He also had been a man of fiery words in Ireland, and paltry deeds in the presence of the government and the legislature in England. Mr. Disraeli satirised the great outcry about suppressing outrage, if the addition of two hundred constables were sufficient. When the second reading was moved on the 6th of December, Mr. John O'Connell opposed it, and moved "that the orders of the day be read." The honourable member had been so pressed by Conciliation Hall, and the Young Irelanders had raised such an outcry against the measure, that although he approved

of the bill, and took care to let the house see that he did, yet he was obliged to oppose it, or forfeit his leadership of “Old Ireland.” His opposition, however, influenced the people of England against the O’Connells and their class. Murder and outrage stalked abroad, and whatever were the wrongs of Ireland, incendiarism and assassination were not the means of redress upon which brave men could look unmoved. That a country should fall into such a state of crime was horrible; that the political leaders of any party in it could be found to oppose measures so mild, and so little ultra-constitutional, to put down these dreadful deeds, was still more horrible. The speech of Mr. John O’Connell exposed himself and his country to just ridicule. A party numbering millions of persons, choosing as their principal leader a man so little qualified for the task, or for any great political undertaking, could not but sink in its relative importance. In spite of the opposition of a few Irish members, the bill passed the commons almost unanimously. In the lords but little opposition was offered. On the motion for going into committee on the 16th December, Lord Farnham brought under the notice of the house that Major Mahon was murdered after he had been denounced from the altar of the Roman Catholic chapel by a priest named M’Dermot, to whom Major Mahon had offered no other offence than objecting to that gentleman and his clerks constituting the relief committee of the district. The debate was rendered still more remarkable by a frank and manly speech from Lord Beaumont, a Roman Catholic peer, deprecating these altar denunciations, which had so frequently been followed by the murder of the persons denounced. Lord Beaumont expressed his astonishment that the bishops, clergy, and laity of the Roman Catholic community did not bring their moral influence to bear upon those priests who offended against the laws of God and man in so flagrant a manner. This gave rise to severe animadversions upon the whole body of Irish Roman Catholics for not having acted as Lord Beaumont pointed out. Lord Stanley especially adopted this line of remark, with the dextrous facility his lordship possessed for turning every occurrence and every admission of an opponent into an element of party attack. The measure was speedily passed through the house of lords, and became law.

Notwithstanding these weary debates upon Irish affairs, the house of commons was obliged to participate in another as acrimonious as any of the former. Mr. Fergus O’Connor moved for a committee of inquiry into the circumstances which led to the legislative union between Great Britain and Ireland, the means by which that act was attained, and its effect upon the working-classes of both countries. Mr. Henry Grattan denounced the speech of Mr. O’Connor, and his general spirit and conduct. Mr. John O’Connell and Mr. Smith O’Brien gave their support to the motion. It was all but unanimously rejected.

MOTION FOR THE REPEAL OF JEWISH DISABILITIES.

Baron Rothschild, a distinguished member of the Jewish persuasion, having been elected member for the city of London, the question of the right of Jews to sit in parliament was raised and warmly discussed, in the public press and in the country. Lord John Russell was also elected for the city of London, and was bound, therefore, by his especial duty to the citizens, to look particularly to the settlement of this matter. He moved, on the 16th of December, “that the house should resolve itself into

a committee, to consider the removal of the civil and religious disabilities affecting her majesty's Jewish subjects." The resolution was carried by a very large majority, its principal opponent being Sir Robert Inglis, one of the members for Oxford.

ADJOURNMENT OF THE HOUSE.—CLOSE OF THE PARLIAMENTARY LABOURS OF 1847.

On the 20th of December the house adjourned for the Christmas holidays, and did not meet again until February. Thus closed the first session of the new parliament, and the legislative business of the year.

Throughout the year the sanitary deficiencies of large cities, and their moral peculiarities, were the subjects of desultory conversation in parliament, and of extensive discussion in the newspapers and at public meetings. To such a degree did the sanitary question excite public interest, that her majesty was advised to recommend its consideration to the new parliament; and during the educational debates, the moral and intellectual condition of large towns, and especially of the metropolis, was a theme of desponding comment. The reverend Dr. Guthrie, of Edinburgh, has since then eloquently shown that the providential dispensation which consigns so large a portion of our people to the close confines of cities, like all the other arrangements of Providence, however mysterious, are full of goodness and mercy:—"Somehow or other, amid their crowding and confinement, the human mind finds its fullest, freest expansion. Unlike the dwarfed and dusty plants which stand around our suburban villas, languishing like exiles for the purer air and freer sunshine that kiss their fellows far away in flowery field and green woodland, on sunny banks and breezy hills, man reaches his highest condition amid the social influences of the crowded city. His intellect receives its brightest polish where gold and silver lose theirs—tarnished by the searching smoke and foul vapours of city air. The finest flowers of genius have grown in an atmosphere where those of nature are prone to droop and difficult to bring to maturity. The mental powers acquire their full robustness where the cheek loses its ruddy hue and the limbs their elastic step, and pale thought sits on manly brows, and the watchman, as he walks his rounds, sees the student's lamp burning far into the silent night."

CHAPTER LX.

{VICTORIA. 1848}

Warin India..... Colonial Affairs..... Foreign Relations..... Revolutions throughout Continental Europe..... Distress and Crime in Ireland..... Disaffection of the Irish Roman Catholics, and attempted Revolt..... Enforcement of Law and Order in Ireland..... Chartist Disturbances in England, and their suppression..... Home Incidents..... Transactions of Parliament.

{A.D. 1848}

The year 1848 was one of the most eventful which had ever occurred in the history of Europe, or in the history of the world, since the introduction of Christianity; and the relations of England to the great transactions which passed like a whirlwind over the continent were such as to enhance her dignity and her glory. It is difficult to write the History of England, during a period so interesting to continental Europe, without enlarging upon the events which took place upon other fields of action, and by which England was in many respects so much influenced. It will aid in confining the relations of this chapter within proper bounds, to narrate first those transactions in which England was exclusively interested, so far as other European powers were concerned.

THE WAR IN INDIA.

The Punjaub had, in 1847, as already related, been the theatre of most stirring incidents. The reader of this History can hardly fail to have observed, that although the defeat of the Sikhs was so complete, the subjugation of the spirit of that people was far from having been effected. The dispersed Khalsa army cherished a fierce hostility to the government of British India, and they were ready to enrol themselves under the banner of any chief who would lead them, in numbers sufficient to afford hope of success, against their recent conquerors. An opportunity occurred in the person of Moolraj, the chief of Mooltan. Mooltan is a large and fertile country, situated between the left bank of the Indus and the right bank of the Sutlej, and terminates at one end where these two rivers form a junction. It gives its name to the capital, which was protected by defences unusually strong for an eastern city.

When the British obtained the submission of the regent of the Sikh monarch, Dhuleep Singh, Mooltan was governed by Moolraj. Moolraj owed allegiance to the government at Lahore, to which the chieftainship of Mooltan had been subjected by conquest. The durbar of Lahore purposed the deposition of Moolraj, and negotiated with him for that purpose. He affected to acquiesce, and, in consequence, Mr. Agnew, a political agent of the Honourable East India Company, and Lieutenant Anderson, of the Bombay Fusileers, were deputed to attend the new governor appointed by the government of Lahore, to instal him in his office. This official was named Sirdar Khan Singh, and was an object of extreme jealousy to Moolraj. The party arrived at Mooltan, accompanied by their respective suites and a small escort of cavalry. On the 17th of April, the authority was surrendered in due form by Moolraj, and the object of the British officers seemed to be accomplished. On the 18th they were attacked and desperately wounded; it was at first supposed from a sudden impulse on the part of the soldiery of Moolraj, but it was afterwards known to be the result of treachery. The officers, accompanied by the new governor, were carried to a small fort outside the town. A fire was opened upon the place from Mooltan, but it was ineffectual. A few days afterwards, however, the fort was attacked by the soldiers of Moolraj; the Sikhs who garrisoned the place, and among whom were the escort, treacherously opened the gates, and the assailants entered, foaming with rage, and demanding vengeance upon the infidel officers. Lieutenant Anderson was in a dying state; but Mr. Agnew, although so badly wounded, defended himself with resolution to the last: both officers were murdered. Moolraj declared that he had no knowledge of the transaction, but no

one believed his disclaimer. Intelligence of these barbarities reached Lahore with the speed so peculiar to the East; and a force of three thousand cavalry and some infantry was dispatched, under Sirdar Shere Singh, against the refractory city. There happened to be upon the Indus, at the head of a small force, a young and gallant officer who had served with distinction upon the staff of Lord Gough, and who was favourably known by his clever contributions to the India press on the state of the Company's territory, civil and military: this officer was Lieutenant Edwardes. He was engaged in settling a disturbed district of country, and in collecting the land tax due to Moolraj, as Sikh governor of Mooltan. At the same time, Colonel Van Courtlandt, a native of India, and a distinguished officer in the service of the Company, occupied Dherra Ismael Khan, also in the neighbourhood. Lieutenant Edwardes crossed the river into the Deerajat, whence he wrote to the Khan of Bhawulpore, requesting him to make such a movement of troops as would prevent Moolraj from falling upon either of their forces. The khan's territories were so situated as to enable him to effect a military disposition to accomplish this object. The khan made the required demonstration. When Edwardes crossed the Indus, he left a detachment of three hundred horse to protect the collection at Serat, where, on the 18th of May, they were attacked by a body of cavalry exceeding their own in number, sent against them from Mooltan, with ten light field-guns (zumbooruks). The British force so manoeuvred as to attain a good position, although under the fire of the zumbooruks, and then charged brilliantly, dispersing the Mooltanese, and capturing their guns.

Colonel Courtlandt was as prompt as Edwardes in the measures taken by him. He left the port of Dherra Ismael Khan, and proceeded by the base of the hills southward. On his route he was joined by a Beloochee chief, with one hundred of his wild followers. Courtlandt detached these, with a portion of his own troops, against the fortress of Sunghur, westward of the Indus. The commander of the fort refused the summons of surrender, and for six hours maintained a gallant resistance; he then brought off the garrison by a skilful manoeuvre, reaching Mooltan in safety.

Lieutenant Edwardes and Colonel Courtlandt effected a Junction of their small forces, and on the 20th of May were attacked by a division of the Mooltan army. The united forces of Courtlandt and Edwardes were so disposed that not more than one thousand five hundred men could be brought into action, while the enemy numbered three thousand. The artillery force of each was about equal. Edwardes was, however, joined by a body of irregular cavalry, and a party of Beloochees, which brought up the British force more nearly to an equality of numbers. The Sikhs in British pay happily showed no disposition to fraternise with the Mooltan army, although the calculations of Moolraj were based upon such an expectation.

The enemy suffered a signal defeat and great slaughter. The Beloochees behaved remarkably well. The skill of the British officers turned the balance in favour of the native army under their command.

After this engagement, Edwardes, acting upon the authority which he possessed as a civil officer of the company, demanded a reinforcement from the Khan of Bhawulpore, and in the meantime recruited his force by Sikhs, Beloochees, Affghans, and men from the hills of various tribes. The faculty of organisation, the ceaseless

activity, and the courage of this young officer were surprising. Colonel Courtlandt was also equal to the part assigned him; but, although senior to his colleague in military rank, the civil functions of the latter gave him an especial, and, in some respects, superior authority. The Khan of Bhawulpore responded to the demands of assistance, and a plan was laid for a junction of the troops. In pursuance of this, Edwardes and Courtlandt crossed the Indus on the 10th and 11th of June. Moolraj was informed by his spies of every movement, and the intelligence was conveyed to him with astonishing rapidity. He accordingly marched a large force to intercept either army, and beat both in detail. On the 14th he crossed the Chenab, leaving a considerable force on the other bank. This detachment marched to Khan Ghur, but on the following day crossed the river, being surprised at that place by the advance of Edwardes's irregulars. The Mooltanese had barely time to cross the Chenab, when the scouts of Edwardes galloped into Khan Ghur. The Sikhs, instead of giving battle at that place, and practically attempting the scheme proposed by Moolraj, encamped on the opposite side of the river, in observation of the British officer and his little army. This delay and timidity was fatal; for Edwardes was soon joined by the infantry and a portion of the artillery of Courtlandt, whose cavalry were scouring the country. The situation of affairs became now interesting and important, for the Bhawulpore forces had arrived on the enemy's side of the Chenab, within twelve miles. Edwardes made a retrograde movement, so as to place himself opposite the Bhawulpore encampment. The enemy advanced to within four miles of that position. In the course of the night, the raw levies of Edwardes contrived to cross the river in a very irregular manner, and within dangerous proximity to the enemy's patrols, but were unmolested. On the 18th, early in the morning, the lieutenant crossed with the remainder of his little army, except the horses and artillery, which remained with Courtlandt on the opposite side, for a more slow and safe transport across the river. Scarcely had the lieutenant gained the opposite bank than he was attacked by the Sikh army, which had been moving up from Bugurrarah while he was gaining the passage. This was a terrible engagement. The sun had hardly risen upon river, and swamp, and undulating plains, when the Mooltanee forces fell upon the motley crowd of the British levies, and in such superior numbers that victory seemed certain. For nine hours the English lieutenant resisted the onslaught, and by his valour, activity, presence of mind, and moral influence, kept his undisciplined forces in firm front to the foe. At last Courtlandt's guns were brought over, and made the contest somewhat equal; later in the day, two regular regiments belonging to the colonel's division arrived, with six guns, and the enemy panic-struck fled, leaving a large, proportion of their troops upon the field, slain, wounded, and prisoners, with six guns, and their entire baggage and munitions of war. The conduct of Edwardes throughout the day was splendid, and laid a deeper foundation for his military reputation.

Moolraj retreated to Mooltan, followed by the British, and the Khan of Bhawulpore, who had rendered hitherto but little assistance, and whose movements led to the suspicion that he had more sympathy with Moolraj than he dared to avow.

On the 28th of June, a Sikh brigade under the command of Sheik-Emaum-ood-deen, which had been dispatched by the government of Lahore, arrived to reinforce the English. The whole army appeared before Mooltan, consisting of eighteen thousand

men, comprising the levies of Edwardes, the division of Courtlandt, that of the Khan of Bhawulpore, and the newly arrived brigade of the sheik.

Moolraj collected his army between the city and the invaders, and intrenched himself in a strong position, near the village of Sadoosan. Edwardes attacked the camp with one portion of his force, storming the breastwork, and with another taking the intrenchments in flank. The discomfited enemy was driven in disorder within the city. The loss of the allies was about twenty killed and less than one hundred wounded: the enemy suffered severely. The difficulties of Edwardes increased with his victories, for it was impossible for him to take Mooltan by a _coup de main_, and he had no siege _matériel_. To remain inactive was dangerous, for little reliance could be placed on the sheik, still less on the khan, and even the regular regiments of Courtlandt were not very trustworthy: he had mainly to rely upon his brave but undisciplined Affghan and Beloochee levies. With such an army, so collected, and without siege train, or heavy artillery of any kind, the conquest of Mooltan was an impossibility, and yet affairs demanded speedy and decided action. He accordingly sent to Sir Frederick Currie, the British resident at Lahore, acquainting him with the delicacy of his situation, and urging the dispatch of siege guns, and such other material of war as was requisite. Communication was made to Lieutenant Edwardes by the British resident at Lahore, that troops, material, and a general officer of experience to take the command, would be sent as speedily as possible, and meanwhile Edwardes was to watch the movements of the enenry. This he effectually did; Moolraj could execute nothing beyond the walls of Mooltan, for the eyes of the vigilant English lieutenant were constantly upon his movements.

On the 18th of August General Whish arrived from Lahore with two regiments of native infantry, a regiment of irregular horse, a troop of horse artillery, and the 10th regiment of her majesty’s foot. The next day a column arrived from Ferozepore, consisting of three regiments of native infantry, two regiments of native cavalry, one regular and one irregular, a battering train, a troop of horse artillery, and her majesty’s 32nd regiment of the line. The forces before Mooltan then amounted to six thousand Europeans, and more than twenty-two thousand native troops, including the levies of Edwardes, and the khan’s forces.

Scarcely had the army under General Whish assembled before Mooltan, when other events still more formidable than the defection of Moolraj occurred elsewhere.

MUTINY OF SIKH TROOPS IN THE PUNJAUB. AND REVOLT OF CHUTTUR SINGH.

Sirdar Chuttur Singh (father of Rajah Shere Singh) was governor of the Hazareh country, under allegiance to the Maharajah Dhuleep Singh, of Lahore. That chief took advantage of the revolt at Mooltan, and opened correspondence with other chiefs for the purpose of tampering with the Sikh soldiers in garrison in their different provinces. The government of Lahore was guilty of complicity in these movements, although affecting to be incensed against the refractory chiefs and provinces. A knowledge of this circumstance soon spread among the Khalsa* soldiery all over the Punjaub, and disposed them to follow any leader who had the boldness to hoist the

standard of rebellion.

* “Khalsa,” or church. This name was assumed to express the idea that the army was composed only of the faithful; the Sikh religion being a sort of eclectic religion, chosen from Mohammedanism, Brahminism, and other oriental systems.

Early in September the whole Hazareh country was in ostensible insurrection, and an attack was made upon Attock. Happily Major Lawrence was then, in the phraseology of the Indian political service, the assistant at Peshawur. He sent Lieutenant Nicholson, at the head of a detachment of cavalry and infantry, to take possession of: the fort. By a forced marched this was effected before the arrival of the rebellious sirdar’s troops. Cabbot Abbot, the political agent in the Hazareh, joined Lieutenant Nicholson, and their position was very precarious. Major Lawrence, whose comprehensive mind was prepared for every emergency, had troops moved to their assistance from Peshawur and Jullundur. The revolt, however, spread in every direction. Peshawur was begirt, with disciplined and fanatical enemies, and at last, early in November, Major Lawrence and family had to fly for their lives from that place, the troops in the garrison having mutinied on the approach of Chuttur Singh and his army. Major and Mrs. Lawrence, with Lieutenant Bowie, found refuge at Kohat, under the protection of Mahomed Khan. Mahomed, either through fear or treachery, or both, gave them up as prisoners to Chuttur Singh. The sirdar treated them with kindness, and frequently conversed with them on the prospects of restoring the Sikh ascendancy in the Punjaub; nor were the dissuasions of Major Lawrence of any effect, for Chuttur believed in the Khâlsa confederacy.

On the 18th of December, when Shere Singh was at the head of a numerous force, Major Lawrence was brought to his camp with the object of using him for negotiations with the governor-general. It is necessary, in order to preserve the collateral relation of events, to return to the army of Whish before the besieged city.

SIEGE AND CAPTURE OF MOOLTAN.

General Whish pressed his operations against Mooltan with skill and energy. He was ably aided by Edwardes, Courtlandt, Brigadier-general Markham, and other officers. During the first ten days of September skirmishes were frequent, and some of these were sharp and spirited. On the 12th Whish determined to attack certain posts, the capture of which was essential to the execution of his plans. The enenry had established an extensive and formidable outpost in a village and garden near the walls. To capture this a body of the besiegers, numbering two thousand five hundred, were told off. They began the attack at break of day, under the command of Brigadier-general Harvey. The contest was very severe, but ended in the accomplishment of General Whish’s design. The slaughter of the Mooltanese was signal, and the heroism of the European regiments extraordinary. The loss on the part of the British was heavy. Major Montazambert, of the 10th foot, Colonel Pattoun, of the 32nd, Quartermaster Taylor, also of that regiment, were the officers of the royal regiments which fell. Lieutenant Cubit and Ensign Lloyd, of the Company’s service, also fell. The latter officer was treacherously cut down while parleying with the enemy. The 10th regiment fought desperately, making havoc of the Mooltanese

with the bayonet.

The next day the besieged made a sortie against the camp of Lieutenant Edwardes, but were beaten back, the pursuit issuing in the capture of another important outpost. The defence had arrived at its crisis, but Sikh treachery averted from the city the impending blow. On the morn-, ing of the 14th, Shere Singh, with the whole of the Lahore troops, five thousand in number, went over to the enemy. This event, at once lessening the army of the besiegers, and increasing that of the besieged, made their relative numbers so disproportionate, that the siege was raised, the army withdrawing to a position a few miles distant, where they intrenched. Soon after the British took up this position, Shere Singh left Mooltan and marched along the banks of the Chenab, forming a junction with Chuttur Singh, which placed the former at the head of thirty thousand men. It became necessary for another British army to encounter this enemy, while Whish and his troops could do nothing against Mooltan until strongly reinforced. On the 21st of December, a strong division of the Bombay army arrived at General Whish’s camp, and thus strengthened, the general resolved upon active operations. His army now numbered about seventeen thousand Sikhs, Beloochees, Affghans, and other contingents, about fifteen thousand more Queen’s and Company’s troops, and one hundred and fifty pieces of cannon. On the 27th General Whish resolved upon a grand attack, and moved his army forward in four columns. The enemy falling back from their outposts, the British took a position in the suburbs within five hundred yards of the walls. That day and night batteries were constructed on all appropriate points, and early on the 28th a terrible bombardment began. By the 29th, the works were carried forward to within eighty yards of the place, breaches began to be effected, the granary was fired, and the batteries and buildings of the enemy suffered much under the heavy cannonade of the besiegers. On the 30th a shell blew up the principal magazine of the city. The shock was felt for two miles, and the camp of the besiegers literally rocked above the convulsive throes of the earth. The magazine contained sixteen thousand pounds of powder. The explosion was instant; with one fierce crash and a long-continued roar, the smoke and flame gushed upwards—one of the most grandly terrible sights upon which human eye could look. Eight hundred men perished, their charred limbs and whole carcasses were cast far beyond. The houses of the chief persons, the public buildings and temples, were shaken down by the vibrations; yet the walls of the fort endured, and the bulk of the city was intact. A fire was communicated, which raged through several streets, but was extinguished. It was supposed that this event would lead to the surrender of the place, but next day Moolraj sent word to General Whish that he had still powder enough for a twelvemonth’s siege, and that he would hold out while one stone remained upon another. This was supposed to be mere bravado, and a summon was sent to surrender. Moolraj, with perfect _sang froid_, rammed the letter down one of the longest guns, and fired it at the British. During the following night a distinct breach was effected in the Delhi gate of the city, and the next day another at the Bohan gate. The fire of the besiegers was plied hotly for the two following days and nights, the city blazing like a hell, amidst the crash of falling buildings, and the outcry of wounded women and children. On the 81st the Sikhs made a sortie from the south-west gate against the camp of Edwardes. That officer, ever vigilant, and ably

seconded by the engineer officer, Lieutenant Lake, repulsed the sortie, inflicting heavy loss. The cannonade continued for fifty-six hours longer, and on the 2nd of January the assault was made. The Bengal and Bombay divisions were formed into separate columns, and precipitated upon the two breaches. These columns moved forward with great daring and under a heavy fire. The Bengal column found the breach impracticable, with an open drop in front, and strong defences in the rear. While the Bengal Sepoys were obstructed by obstacles which they could not surmount, the Bombay column gained an entrance. The sergeant-major of the Bombay Fusileers boldly planted the British flag above the breach. The Bengal column turned and followed their more fortunate comrades of the other presidency. The enemy resisted at every step, receding only before superior force, and it was not until the sun went down over the blackened ruins and blood-stained streets of Mooltan that the city was completely in the hands of the conquerors. The troops of Moolraj retreated to the citadel, which was a place of surpassing strength, and could only be taken by regular approaches. Parallels were opened, and a fierce cannonade was directed against it on the 4th; but it was not until the 18th that any decided impression was made. By that date the intrenchments were carried up to the very walls, but such was their extraordinary strength that they were proof against artillery—at all events, any artillery of the calibre possessed by the besiegers. Whish resolved to effect their destruction by mines. On the 18th three mines were exploded, and the counterscarp was blown into the ditch. A shaft was then sunk under the trench, and a gallery cut towards the wall. At the same time a battery was placed on a level higher than the citadel itself; another carrying eighteen and twenty-four pounders was placed close up to the wall. From this battery the most extraordinary cannonade and bombardment was conducted. Eight-inch howitzers discharged live shells into the wall, which buried themselves in the mud and brickwork of which it was built, and, exploding, tore away large portions. On the 19th the sap reached the crest of the glacis, and on the 21st the engineer officer in charge announced that there were two practicable breaches. General Whish gave prompt orders for the storm on the following morning. Moolraj had been seriously alarmed during the progress of the works for the few days previous, and repeatedly offered to surrender if his life would be spared. The answer returned informed him that no terms but an unconditional surrender would be conceded. On the 22nd, the British columns were forming for the assault, when the garrison hauled down its flag, and Moolraj surrendered at discretion.

The scenes which followed were at once picturesque and painful. The discomfited troops marched forth as prisoners of war. First came a few hundreds of the most miserable, dispirited looking men, ill clothed, and wan with fatigue. These were fanatics who had under a vow devoted themselves to especial peril and labour in the defence, and as is so frequently the case with men under the influence of fanaticism, defeat brings reaction in the form of despair. A column of about three thousand five hundred soldiery, stern looking men, next came. With such troops it was no wonder that Moolraj made so glorious a defence. This splendid body of men laid down their arms with reluctance, and looked back upon the breaches as if they fain would return and die there, with their arms in their hands. The body-guard of Moolraj followed, a

splendid body of soldiers, whose equipment in arms and uniform was superb. The chiefs, friends, and family of the governor next came. They were deeply dejected, and uttered words of expressive anguish and shame. Moolraj himself was the last man of the Khalsa host who left the citadel. He was gorgeously appareled in silks, and decorations expressive of Khalsa religious or military associations. He wore jewels, carried arms superbly ornamented and of superior make, and rode a beautiful Arab charger, covered with a scarlet saddle-cloth, with gilt or golden trappings. His personal appearance was impressive, his countenance manly and well formed, with quick, fiery, expressive eyes. Above the middle height, his form was strong, muscular, and yet elegant. His bearing was manly and gallant; there was no assumed or insolent defiance, no fanatical contempt expressed by it, nor did he allow dejection to betray itself. He and his followers became prisoners of war, and were placed at the disposal of the governor-general. It was alleged that the British army was guilty of plunder, and that officers of engineers were discovered appropriating to themselves prizes, which belonged either to the custody of the prize agents, or were sacred as private property. It would appear that these allegations were circulated by certain agents of persons in England having interests adverse to the Honourable East India Company, and were utterly unfounded. Lord Ellenborough, more than eight years afterwards, confuted the calumny.

Mooltan, and the territory of which it was the capital, was now completely subjugated, and our ally, the khan, returned to his own province a wiser if not a better man, his further services being confined to the maintenance of peace in his own territory, and to the exercise of a certain degree of vigilance in reference to surrounding provinces. The fall of Mooltan was received over all British India and the neighbouring independent states as one of the grandest events in Indian history, and filled the petty chieftains with awe, while it excited exultation in the presidencies. Far different were the feelings created in the minds of the Sikh soldiery and people; they were exasperated, and determined to hazard all upon a single throw. To avenge past disasters, and expel the British from the country of the five rivers became the passionate purpose and ambition of chieftain and soldier, and everywhere desultory bands made war, as they pressed onward to join the great chiefs, Shere Singh and Chuttur Singh who were now at the head of a powerful army.

CAMPAIGN IN THE PUNJAUB UNDER LORD GOUGH.

It has been already related that Shere Singh quitted Mooltan with a strong division of Khalsa troops, on the 9th of October, and formed a junction with Chuttur Singh.

The latter returned to the territory of Hazareh, leaving the bulk of his forces under the command of Shere Singh, who was gradually joined by other chiefs and sirdars, whose followers augmented his army,—that army consisted of men inured to combat, the flower of the Sikh nation. Lord Gough, the commander-in-chief of the army in India, was ordered to assemble an army at Ferozepore, and act against Shere Singh, and, in fact, reconquer the Punjaub. Bombay and other troops were ordered to join the army collecting at Ferozopore, and the victorious troops of Whish, Courtlandt, and Edwardes were ordered to follow and form a junction with the grand army. These troops did not join as soon as Lord Gough expected, and the Bombay division, under

the Hon. Major-general Dundas, was so dilatory as to evoke from the good-natured general-in-chief a most stinging rebuke. The major-general was urged by despatches to advance with all possible celerity, but he expressed himself as not perceiving the necessity of such speed. “Tell him,” said the gallant commander, “to stay with the native troops if he likes, but to send on the Europeans!”

Before, however, the army which had acted before Mooltan could render any assistance to Lord Gough, months before that city had fallen, events gathered within the Punjaub in gloomy and rapid association. It was on the 21st of November before General Gough assumed the active command of the army at Seharun, a central position. The river Chenab is the central one of the five rivers which give name to the district, and the theatre of conflict was midway between the Chenab and its confluence with the Indus. On the left bank of the former, about a mile and a half from the river, the town of Rumnugger was situated: there Shere Singh had taken up his quarters. Opposite that town the river bends, and there was an island in mid-channel; this island was about two acres in area. The main force of Shere Singh was posted on the right bank of the river, but a strong brigade of four thousand men occupied the island, and erected batteries. These batteries commanded the only available ford, or “nullah,” as it is called in the vocabulary of the country. The opposite town of Rumnugger was favourably situated for defence; it was flanked by a grove, and by the bend in the river. This position Shere Singh had skilfully fortified. On the 22nd, at two o’clock in the morning, Lord Gough approached the enemy. While the right bank and the island were occupied by the chief forces of the sirdar, he had a strong body also posted on the left bank, and it became the first object of Lord Gough to dislodge them. Between the island and the right bank the passage was effected by boats, so that the enemy was able to preserve his communications with tolerable certainty and ease. The nullah or ford was not difficult, although the descent to it from the left bank of the river was steep. It was directly commanded by the guns on the island, and was exposed to a raking cross-fire on either side from batteries placed on the right bank. The 8th light cavalry (Company’s service) advanced along the left bank, skirmishing, supported by her majesty’s 3rd Light Dragoons. The horse artillery pushed into the deep sand on the margin of the river, and commanded the batteries at Rumnugger, but were obliged to retire before their superior metal, leaving behind one gun and two ammunition waggons embedded in the sand. The enemy took skilful and immediate advantage of this reverse, and pushed over a powerful cavalry division. Orders were given to charge them, and the 14th (Queen’s) Light Dragoons, and the 3rd light horse of the Company’s army, in spite of overwhelming numbers and of imperfect supports, cut through the enemy and dashed after them into the nullah. The passage was familiar to the latter, who made good their retreat to the island; the latter were of course ignorant of the ground, and were impeded in their pursuit by that circumstance, had none other obstructed them. As soon as the Sikh cavalry cleared the ford, the batteries of the island and the flanking batteries on the right bank opened with deadly effect. How any British officer could have been so imprudent as to give the order to charge into the nullah is almost inconceivable; that the error was not evident, while the brave men were being mowed down by an artillery fire, which they could do nothing to

silence, is still more marvellous; such, however, was the case. Colonel Havelock dashed into the ford at the head of the 14th Light Dragoons, but was never seen again. A native trooper supposed he saw him in the nullah soon after he entered it, unhorsed, and several Sikh soldiers “hacking his person.” After much useless slaughter was thus incurred by Havelock’s gallant brigade, Major-general Cureton rode up with an order from Lord Gough for the troops to retire. He had scarcely given the order when he fell dead from two shots, by which he was instantaneously struck. The troops retired with a loss, in every corps engaged, of officers and men. Lord Gough considered the end attained in driving the enemy from the left bank was worth the sacrifice. The death of General Cureton was severely felt by the army, and was in some degree irreparable. He had risen from the ranks by his superior soldiership, and was deemed one of the best, perhaps the best, officer for outpost duty then in India.

On the 30th of November Lieutenant-general Thackwell was ordered to cross the Chenab above Rumnugger, where an indifferent ford had been discovered, and where Captain Nicholson had provided boats. Thackwell was to take the Sikhs in the flank and rear, while Lord Gough observed them from his old position, ready to take advantage of any favourable opportunity for attack which the manouvre of General Thackwell might create. That gallant and skilful officer performed well the part assigned to him. He gained the right bank of the river; but Shere Singh was also a skilful commander, and did not allow Thackwell even to menace his rear or flank, for he detached a strong force to attack the intruder, as soon as he saw that the river had been forded. It was the 3rd of December before Thackwell secured the passage, and on the fourth he began his march along the right bank towards the lines at Rumnugger. He soon discovered that a strong body of Sikhs were marching in a north-west direction. They threatened his flank with cavalry, and cannonaded him severely. Thackwell’s orders did not allow of his taking any measure for attack, and the enemy drew off after a sharp and heavy cannonade. As soon as this officer’s artillery was allowed to open upon them, they marched towards the Jhelum. Perhaps the enemy were decided in abandoning their strong positions, not only from fear of their left flank being turned by General Thackwell, but also by the energetic proceedings of Lord Gough, after the force detached to observe Thackwell had departed. Lord Gough opened a heavy cannonade upon the island, and upon the batteries on the right bank of the Chenab. On the morning of the 3rd a brigade of infantry, under Brigadier Godby, passed by a ford not far from Rumnugger, his passage being covered by the approach of General Thackwell, who had by that time been advancing from the passage at Wuzerabad. Shortly after, the 9th Lancers and 14th Light Dragoons, under General Gilbert, were ordered to cross the river, and harass as much as possible the retreating enemy. The British generals seem to have believed that the Khalsa army would abandon their chiefs and disperse to their homes, and this impression influenced their proceedings; for although Gilbert with his cavalry followed the enemy briskly, there was not that celerity in the movements of the British which actual circumstances demanded.

On the 28th of December Lord Gough, with his whole army, crossed the river and encamped. The right bank was now clear of the enemy, Shere Singh having followed the previous division of his army to the Jhelum, where he ultimately took post in the

formidable position of Russool, with a force which was augmented to forty thousand men, and a powerful artillery, estimated variously from sixty-two to ninety guns.

While these events were passing, Chuttur Singh, who, as before noticed, had retired to his own province, pressed the fort of Attock, which had been long and gallantly maintained by Major Herbert. When it fell the major contrived to send tidings to Lord Gough, and to warn him that Chuttur Singh had repaired with his army to the upper Jhelum, to form a junction with the army of Shere Singh. Lord Gough determined at once to follow the Sikh forces, and bring them to a decisive action. On the morning of the 12th of January he marched from Loah Tibbah to Dingee. The sirdar was represented by the British commander-in-chief in his despatch as holding with his right the village of Lukhneewalla and Futteh Shah-ke-Chuck, having the great body of his force at the village of Lollianwalla, with his left at Eussool, on the Jhelum. This position lay on the southern extremity of a low range of hills, intersected by ravines, and difficult of access to assailants. The post was well chosen by the sirdar, who showed a subtle generalship throughout the war. The information furnished by Lord Gough's spies was not always faithful, and his lordship, therefore, was not accurately in possession of the forces of the sirdar, nor of the topographical peculiarities of his position. The British commander directed his march upon the village of Bussool, and there reconnoitred.

The advance to the ground chosen by the sirdar was impeded by a jungle, to avoid which, and to distract the enemy's attention, Lord Gough took a considerable _détour_ to the right. He succeeded in avoiding the intricacies of the jungle, but not in distracting the attention of Shere Singh. That general moved from his encampment, and took ground in advance, a manouvre calculated to hide the strength of his position, and to disconcert any previous arrangements of the British commander.

About noon on the 13th, Lord Gough was before the village of Bussool, and finding a very strong picket of the enemy on a mound close to that place, his lordship, after some fighting, dislodged it. Ascending the mound, the general and his staff beheld the Khalsa army ranged along the furrowed hills in all the majestic array of war. The British officers gazed with admiration and professional ardour upon the long lines of compact infantry and the well-marshalled cavalry, mustered in their relative proportions and positions with scientific exactness. The sirdar's batteries were chiefly masked by jungle. The scene was striking in its aspect, from the magnitude of the events associated with it, and the excitement it stirred up within the hearts of the brave. Alas, how many noble hearts were necessarily to bleed before victory crowned the arms of England, and that fine Khalsa army succumbed to the destiny of England's Asiatic foes!

Lord Gough found that he could not turn the flanks of the sirdar's army, they were so protected by jungle, unless he detached a portion of his army to a considerable distance, which he deemed unsafe. The day was too far advanced to begin any operations. The engineer officers were ordered to examine the country in front, and the quartermaster-general was about to take up ground for the encampment, when the enemy advanced some horse artillery, and opened a fire upon the skirmishers in

front of Bussool. Lord Gough ordered his heavy guns to open upon the enemy's artillery, and for this purpose they were advanced to an open space in front of the village. Shere Singh did not act with his usual good strategy, in exposing the positions of so many of his cannon, which the jungle had concealed, and which might have remained hidden until an attack upon his line would have afforded him opportunity to use them with sudden and terrible advantage, as he afterwards was enabled to use those on his right. As it was, he replied to the British cannonade with such a powerful field-artillery as constrained Lord Gough to draw up in order of battle, lest in the night the sirdar's guns should be moved still more forward, and open on his camp. His lordship, keeping the heavy guns on his centre, placed Sir Walter Gilbert's division on his right, flanked by Brigadier Pope's brigade of cavalry, strengthened by her majesty's 14th Light Dragoons, and three troops of horse artillery, under Colonel Grant. This arrangement was necessitated by the large force of cavalry observed upon the enemy's left. On the left of the British line, Brigadier-general Campbell's division was formed, flanked by Brigadier White's cavalry, and three troops of horse artillery under Colonel Brind.

The demonstrations of the enemy were such that, late as was the hour, and weary as the troops were with marching, Lord Gough determined to attack at once. His lordship's critics, influenced by the events which followed, have severely censured him for attacking under such circumstances, more especially as the ground was unknown to his lordship. It was true that sufficient time had not been obtained to reconnoitre the enemy's positions, but it was not correct to allege that Lord Gough was entirely unacquainted with the ground, as he had previously known it, especially the country to the left of the enemy. It was generally supposed by his lordship's censors that the attack was a wanton waste of life, and arose from the brave, rash, and unreflecting temperament of the general, and the irritation caused by the sudden and severe artillery fire opened upon him. On the other hand, the Duke of Wellington declared that he would, in Lord Gough's place, have acted as he had done; and so full of confidence were the Sikhs in their numbers and resolution, that had not the general given battle, he would have been obliged to defend himself from a desperate night attack under circumstances far less favourable. There can be no doubt, on the part of any who know the noble old soldier, that he acted from his sense of duty to his army and his country, and not from personal irritation.

The battle began, or, it may be said, was resumed, by a heavy cannonade which lasted for more than an hour when Lord Gough ordered his left to advance, making a flank movement. In executing this manouvre, the troops exposed their own flank to a galling fire from heavy guns, the positions of which had remained covered by jungle, and the Sikh batteries were so placed as to pour a most destructive cross-fire upon the British. When the 3rd and 4th brigades reached the enemy's guns, they were received by a cannonade so overwhelming that they were obliged to retire. As soon as it was known that these two brigades were engaged, the 5th, under Brigadier Mountain, was ordered to storm the centre. They were received with round-shot the moment they moved; with grape and canister as they advanced through the jungle; and, finally, with musketry within close and deadly range. Many of the Sikh soldiers, at the cost of their own life, advanced and shot down the British officers. Brigadier

Mountain had distinguished himself in China, and had the entire confidence of Lord Gough, under whom he had served there. Under his able guidance, the British stormed the batteries and spiked the guns, under a flank fire from other guns which they also spiked, while the enemy, without giving way, poured upon them musket balls thick as hail. Detachments of musketeers took them on each flank, and some getting to their rear among the jungle, fired upon them with deadly aim. The British were thus compelled to cut their way back to their own lines through hosts of encircling foes. While this was going on upon the centre, Sir Walter Gilbert advanced against the enemy's left. That general occupied the extreme right of his division, and Brigadier Godby the extreme left. They marched through a dense jungle almost unmolested, and then were confronted by infantry. Had the British at once charged with the bayonet, the result might for them have been less sanguinary; they, however, opened fire, and the Sikhs, more numerous, returned the fire and outflanked them. Two companies of the 2nd (or Queen's) British regiment charged with the bayonet, but were surrounded. These gallant and skilful soldiers immediately faced about, and after some file-firing charged, rear-rank in front. At this critical moment, Deane's battery arrived, and drove back the enemy by the precision of their fire. Several guns were here captured by the British. The heroism and losses of the 2nd regiment were very great. While the infantry had thus been engaged in close and deadly battle, the cavalry also were occupied both on the left and right. On the former flank of the British, Brigadier White's brigade charged the enemy, covering the retreat of the infantry. On the extreme right Brigadier Pope's brigade, strengthened, as has been already shown, by the temporary attachment of the 14th Light Dragoons of the Queen's army, was ordered to charge a body of the enemy's cavalry, the numbers of which were much superior. Instead of obeying the orders given, they wheeled right about, and galloped off the field, breaking through the artillery, upsetting artillerymen, drivers, and waggons in their course, until they reached the field hospital. According to some narrations of this transaction, the men galloped away under a mistake of orders; other accounts represent this to have been impossible, because their own officers and officers of the artillery endeavoured to stop and rally them without success, except so far as a portion of the 9th Lancers was concerned. The enemy was not slow to take advantage of this extraordinary flight; they pursued—dashed in among the horse artillery—cut down seventy-five gunners, and took six guns. The arrival of artillery reserves, the rallying of a portion of the 9th Lancers, and the steadiness of the infantry, prevented the destruction of the whole right wing. The fresh artillery which came up opened upon the Sikh cavalry with grape and canister, with such precision and fury that they retreated. Two of the captured guns were recovered in the retreat. The Sikhs gradually withdrew, leaving the field of battle in possession of the British, who, on this account, claimed the victory. The enemy, in the night, carried away all the guns which the British had spiked during the action, the four pieces of horse artillery which they took on the British right, and five stand of colours, and on these grounds also claimed the victory; and a salute of twenty-one guns in honour of the triumph was, as the English thought, most impudently fired. This was also done at Attock, in the capital of Chuttur Singh, and wherever the Sikh troops held a position. The Sikhs also claimed the victory for the same reason as the English did—being left in possession of the field. It was, in

truth, a drawn battle. The Sikhs having began the engagement, and the English having retained the ground on which they fought, while the former retired their line, the battle may more correctly be said to have been won by the British; but the advantages gained were altogether on the part of the Sikhs, who continued to occupy for a month positions from which the British did not attempt to dislodge them. During that time Lord Gough waited for reinforcements, and felt the tardy arrival of some of the troops whose presence had been detained before Mooltan, as has already been shown.

The loss sustained by the Sikhs it is impossible to calculate; according to themselves it was much less than that of the English; and this is credible when the strength of their position is considered, and the losses to which the unaccountable flight of Pope's brigade exposed the British light. The English loss, according to the official returns, was three thousand men in killed and wounded, nearly one-third of whom belonged to the former class; this, however, did not comprehend all the slain, for many were so horribly wounded by the close discharge of artillery that they died in a few days. The proportion of the wounded who were hit mortally was beyond that which usually occurs in battle. There were also many desertions of Sepoy soldiers to Shere Singh, but more especially of Sikh soldiery under Lord Gough's command.

The flight of the large body of cavalry under Brigadier Pope was the subject of much investigation and of shame. The brigadier was too old for the duties imposed upon him; he had no experience in war, and was placed in the command from seniority. This gave occasion, in England, to denounce the substitution of seniority for fitness, so common in the British army. Unhappily, the officer himself who was so much concerned in the responsibility of the event, and who had been much respected by his brother officers and his commander, was placed beyond all human accountability, for he fell in front of his fugitive soldiers. Colonel King, of the 14th Light Dragoons, who succeeded Colonel Havelock, who fell at Rumnugger, was also much censured. His defence was, that he did his utmost to rally his men in vain; that they were generally light small men, mounted upon light small horses; whereas the cavalry immediately opposed to them were not only much more numerous, but cuirassiers—powerful, heavy men, with long and superior swords, and admirably mounted. The colonel complained of the bad manufacture of the English weapons, which bent or broke against the swords and cuirasses of the Sikh cavalry, When Sir Charles Napier arrived to command the forces in India late in the spring, he inspected the 14th, and addressed them, referring to the allegations of their colonel, and telling them that they were fine, stalwart, broad-chested fellows, that would follow anywhere that they were led. Colonel King took this so much to heart, that he retired from the field of inspection and shot himself. Sir William Napier (brother to Sir Charles) afterwards denied in the London newspapers that his brother intended to cast any reflection upon Colonel King. It was, however, generally believed in the army, that Sir Charles levelled a censure at the unfortunate officer, whose sensitive honour could not endure such a reflection from so high an authority. His fate excited deep commisseration, and the address of Sir Charles was disapproved of indignantly by the whole army.

The generalship of Lord Gough became the subject of anonymous criticism in India, and open attack in England; but the brave and skilful general proved at the subsequent battle of Goojerat that he knew how to gain victory at as little cost of blood as it was possible for military knowledge to ensure. The late drawn battle—if such it may be called—was designated the battle of Chillianwallah, after a village in the immediate neighbourhood of which the British had encamped. The Sikhs know it as the battle of Russool, the more appropriate name to give it, as it was in its vicinity the chief strength of the Sikh position was found.

Leaving the movements of the two armies confronting one another to the narrative of another chapter, it is now necessary to turn to other scenes of interest.

CANADA.

This fine colony continued prosperous and powerful, yet the dissatisfaction of previous years with the imperial administration was not removed. On the 28th of February the first session of the new parliament was opened by the governor-general, who delivered a speech which was intended to be concilatory, but which did not accomplish its purpose. An amendment was proposed to the address, which was carried against the government by a majority of fifty-four to twenty. In this amendment the legislature plainly declared its want of confidence in the governor’s advisers; the ministry therefore resigned.

THE WEST INDIES.

During this year the West India colonists were discontented, and complained of distress, while at home they were regarded with suspicion by the religious and anti-slavery public, as designing, if possible, to restore slavery.

The immigration of hill Coolies from India into several of the colonies, which was promoted by the West India legislative bodies at the public expense, increased this jealousy towards the planters. The taxes to meet the expenses incidental to the immigration were levied in such a manner as to fall especially upon the emancipated negro, to compete with whose labour the Coolie was imported. This irritated the classes in England whose dispositions were unfavourable to the planter. The press, the pulpit, and missionary meetings denounced the Coolie trade and traders, and, in terms of eloquent indignation, represented the negro inhabitants of the West Indies as still subjected to the plunder and persecution of a tyrant race. The Coolie immigration was depicted as rivaling the slave-trade in atrocity, and its failure was boldly predicted on every religious platform. These predictions certainly were fulfilled—the Coolie speculation was a failure. A writer of that date, well acquainted with the facts of the case, thus noticed them:—“One of the most recent efforts made to substitute free for slave labour in the West Indies, it will be recollected, was the bringing of a number of hill Coolies from India for this purpose. The experiment has miserably failed, as acknowledged by the chancellor of the exchequer in his speech on the introduction of the sugar duties bill, now in progress through parliament. The Coolies were conveyed to Demerara from Madras in ship-loads to supply the labour market in British Guiana, at the expense of that colony; and, as our correspondent learned, at a rate which even reached the Negro himself, against whom they came to

compete. Many agents were employed in their importation, and large bounties were given; such temptations led parties to crowd the colony with numbers of miserable persons, quite unable to perform any laborious employment. It was the general opinion that, owing to physical inability, scarcely one in a hundred of these Coolies was fit for manual labour; and whilst our correspondent was at Demerara a law was issued by the governor granting permission for labourers to enter Guiana from certain countries only, omitting the East Indies. The wretchedness of these immigrant Coolies was truly distressing; numbers of them might be seen wandering about, and living in the open air on charity, in George Town, congregating about the market-house and elsewhere, many of them covered with sores, and all but naked. Hospitals were subsequently provided for them in different places, in which they were maintained at the public expense; and by this means they were removed from about the town and frontier of the colony. Mr. Stocqueler, in his very useful ‘Oriental Interpreter,’ refers to the Coolies in connection with the Bheels, a race of people who inhabit the northern part of the chain of Ghauts, running inland parallel with the coast of Malabar. On one side they are bordered by the Coolies, and on another by the Goands of Goandwana. They are considered to have been the aborigines of Central India, and, with the Coolies, Goands, and Ramooses, are bold, daring, and predatory marauders—occasionally mercenaries, but invariably plunderers. There are, however, many shades of difference in the extent of the depredations of these several people, in which the balance of enormity is said to be considerably on the side of the Bheels. They are, nevertheless, described as faithful when employed and trusted; and the travellers who pay them their _choute_, or tribute, may leave untold treasure in their hands, and may consider themselves as safe with them as in the streets of London. Their word is sacred, their promise unimpeachable.’”

There was another class of immigrants who were found more useful, the Portuguese, from Madeira. They were highly prized by the Demerara planters; but even among them the mortality was very considerable.

FOREIGN RELATIONS.

In the East the only hostile acts required from the British government, during the year 1848, was the suppression of Chinese piracy. During the year, also, the Rif pirates gave trouble on the shores of northern Africa. Employment was also given to British cruisers in various other parts of the world in the suppression of piracy and the protection of British commerce.

THE UNITED STATES.

The measures of Sir Robert Peel’s late government in the disputes which arose between England and the United States, whatever their demerits, had the effect of preserving peace between the two countries, which, during the tumults of continental Europe, the disturbances in Ireland, and the agitations in England during 1848, was of the utmost consequence to Great Britain. The discovery of gold in California, although an American event, exercised much influence upon the commerce and monetary affairs of the British Isles, and tended still more to draw the bonds of amity close between the two great British nations.

SPAIN: DIPLOMATIC DISAGREEMENT WITH THAT COUNTRY; DISMISSION OF THE ENGLISH AMBASSADOR.

Spain, ever fruitful of internal discord, was not less so in 1848. The history of the court was one of scandal, and of the government one of weakness, fickleness, and incapacity. The year 1847 closed by a change of ministry, when the infamous Narvaez was in the ascendant, and his creatures were gathered around him in the guise of a cabinet. The queen-mother, it was declared, had been married in December, 1833, to her paramour, Munoz, within three months of the decease of the king her husband, and this was kept secret for fifteen years from the Spanish people, until, under the auspices of the new government of Narvaez, it was at last brought to light, for purposes at once venal and revolting. This disclosure incensed the Spanish people, and revived the hopes of both the republican and Carlist parties. The corrupt practices of Senor Salamanca also coming before the public, disgusted the nation with its public men. As will be seen on another page, France effected a new revolution in February. Louis Philipp was dethroned, and the republic was once more proclaimed. From the immediate contiguity of the two countries it was feared that the French republic would find some cause of quarrel with the imprudent and despotic government of Spain. England, alarmed lest she should be once more involved in a war with France for the protection of the Iberian peninsula, looked with concern upon the tyrannical and profligate conduct of the Spanish court and government; and Lord Palmerston, therefore, addressed a note to Sir H. Bulwer, the British representative at Madrid, requesting him to make such representations to the government, and offer such advice as would tend to consolidate the independence and preserve the peace of Spain. This Sir H. Bulwer performed; but the Spanish minister, the Duc de Soto Mayer, resented this interference as an insult to Spain, and the British minister was dismissed from Madrid. In England Lord Palmerston was denounced as a meddler, and a minister whose policy was provocative of foreign discord. The course of policy, however, adopted by the noble viscount was customary with all British ministers, did not exceed the right which one friendly nation has to advise another, and was based upon the actual and recognised relations of Spain and Great Britain. It afforded, however, an opportunity to ignorant declaimers, in and out of parliament, to oppose the astute yet direct and manly policy of the great English foreign minister. The interruption of diplomatic relations between the two countries continued throughout the year.

THE CONTINENTAL REVOLUTIONS.

Although not strictly forming a portion of the history of England, it would be impossible to relate the events in which the interests of England were involved, without some extended reference to the mighty moral earthquakes of continental Europe. France was the centre of these terrible upheavings of human passion and power. Her government, under the base king Louis Philippe, whom the revolution of 1830 had placed upon the throne, was the most corrupt which France had ever known. Tyranny infinitely more oppressive than that which he was permitted to wield had often cursed France, but never before were such efforts made as by him to corrupt the whole people. The unprincipled conduct of every department of the

government directed by Guizot, the treacherous and subservient tool of his bad master, utterly disgusted all honourable men; and even those who were willing to sell themselves and their country, despised and hated the purchasers. Even the correct manners of Louis Philippe's court, and the strict domestic morality observed there, at last increased the public indignation and contempt, for it left the universal impression that he was a cold and heartless hypocrite. During 1847 a desire for electoral reform, which had existed for many years among the more thoughtful politicians of France, became more thoroughly developed among most classes of citizens, and agitations to accomplish this object were set on foot. The tyrant king opposed this feeling and these movements, at first by corrupt means, and, ultimately, by the hands of his unscrupulous minister, he resorted to coercion. Public meetings were suppressed, and the liberty of the press was invaded. The insulted citizens of Paris rose in arms, barricades were erected, and the king, as cowardly as he was corrupt, had not the manhood to stand by his own measures, but fled, with craven spirit, to take refuge in the country whose queen and people he had betrayed. Under the common English name of Smith this proud prince found means of escaping from the country he had deceived, pillaged, and oppressed, and which allowed him to pass away without pursuit, and without malediction, because of its own magnanimity and the contempt with which it regarded him. Louis Philippe found a home in England, at first at Claremont, and then in Abingdon House, Kensington, where he lived for some time in apparently tranquil enjoyment, the delightful and salubrious vicinity affording to his family means of retired and pleasurable recreation.

The expulsion of the nefarious old man, who had for eighteen years ruled France on a system of false pretences, was followed by the appointment of a provisional government, consisting of Dupont (de l'Eure), Lamartine, Arago, Marie, Armand Marrast, Garnier Pages, Albert, Ledru Rollin, Ferdinand Flocon, Louis Blanc, Cremieux. No sooner was the provisional government appointed, than it was discovered that harmony among its members was impossible. The republican party was divided into two great sections—the old republicans and the "reds." The former, like those of the United States of America, contended for self-government and equal political rights, for civil and religious liberty. The latter declared for what they called "a republic, democratic, and social," and their aim was to establish socialism by subverting all rights, civil and religious, fusing all interests in a communal equality, no longer being subject to individual claims. The unknown of Paris were ignorant, and many of them suffered much from low wages and irregular employment; these madly grasped at a theory which promised to them a maintenance at the public expense. The state ought, in their opinion, to provide them with wages sufficient for their support, they being themselves the judges of the requisite amount, and the state should find employment, if it could, for those who were so requited, the amount of labour to be rendered was also to be decided by the workers. The theory was substantially that which prevailed among the English Chartists. The whole subject of this division of feeling and opinion in the provisional government and in the nation, with the practical results, was thus clearly set forth by a writer of that day:—"In this conflict of opinion upon the question of labour, or of communism, is the _resumé_ of all the great events that have taken place in France since the declaration of the

republic on the 24th of February last. This key unlocks them all, and the efforts of this principle to establish itself, and to overthrow its opponents, explain events otherwise inexplicable, and show us in the clearest possible manner what are and what are not the great opposing forces that have since been at feud. All other forces in France have been as nothing compared with these two. The friends of monarchy, whether of the Orleans or the old Bourbon dynasty, and the friends of Napoleon, have, it is true, endeavoured to make themselves heard; but their voices have been mere whispers in comparison with the shouts and hubbub of the communists and anti-communists—of the tricolor republicans and the republicans of the _drapeau rouge_. Without this clue to the character of the revolution, the remark of Milton that the wars of the Saxon heptarchy were as unintelligible as those of kites in a neighbouring wood, would apply to the proceedings of the Parisians. Almost each day, after the 24th of February, brought tidings of change in all the relations betwixt man and man. There was fighting one day, embracing the next; every rotation of the hand brought to view a wonderful and unexpected change of figures in the political kaleidoscope. Day after day, in endless succession, there were mouthings of tumid, florid, and often unintelligible speeches, and of still more unintelligible and mysterious theories for the regeneration of mankind. Every speech and newspaper article breathed only peace and goodwill towards all men, yet almost every ordinance of the government was directed towards the organisation of armed men. There were assemblings of the people, reviews, marchings, and counter-marchings, hasty summonings at all hours, the beating of the _rappel_, and the sounding of the tocsin, in the dead of night and the early dawn. The ‘Marseillaise Hymn’ and the ‘Mourir pour la Patrie,’ were sung in every street, court, and alley, and were heard on the pillow of every recumbent citizen. Journalism became a power of tremendous magnitude and extent. People read leading articles by torchlight, and shouted out to the moon apostrophes to liberty, ay, ‘liberty, equality, fraternity.’ These three talismanic words, too often devoid of meaning in the apprehension of those who shouted them with a fervour sufficient to split the ears of the groundlings. Liberty? every man doing what he deemed best, seemed to be the interpretation of the mob. Equality? every man trying to get above every other man, seemed its natural consequences. Fraternity? every man knocking down every other man who happened to be of a different way of thinking from himself, was the manner in which the men of the _faubourgs_ seemed to construe it. Such seemed to be the epitome of the French revolution; but it was not so. There was order amid disorder; two principles were at work; and the revolution—so frivolous in its details, so momentous in its results; exhibiting so much talent and energy, so much vanity and folly, so much honesty and treachery, such kind feelings and such malignant passions, such planting of trees and cutting of throats, such recommendations of order, such instances of disorder, so much wisdom producing so much folly, so much goodness mingled with so much wickedness, so much gravity combined with so much levity, such long speeches and such brief epigrams—was quite explainable wherever the mind was able to grasp it as a whole, and see the operation of the two great and all pervading principles which we have mentioned.”

The party of the communists in the provisional government comprised three members—Ledru Rollin, Louis Blanc, and Albert. This number, being small in proportion to the whole, offended the socialists; but Lamartine and Arago possessed such influence with the three “reds,” that they were for a time induced to co-operate with the rest for the general good, and in a system of rational government. To those two great men France was deeply indebted; their appearance was at times sufficient to still a tumult.

The three communist members of the government gradually became more exacting, and at last the influence of the philosophical republicans and statesmen, who were associated with them, failed to keep within bounds the communist sympathies of these hot-headed and imprudent men. In an evil hour, Lamartine and some of his colleagues, who, like him, had just notions of state affairs, and correct views of political economy, conceded to Ledru Roll in and his brothers of the _drapeau rouge_ a certain organisation for the employment of labour. From that hour the doom of the new republic was sealed—it was the beginning of the end. Men of property and sagacity stood aloof. M. Goodcheaux resigned, and many official persons of eminent knowledge and experience followed his example. Meanwhile Paris was kept in continual apprehension by popular demonstrations, and commercial failures shook the public credit. The working population became more and more dissatisfied, and menaced public order and the existence of all rational government.

The provisional government called a constituent assembly, and the representatives of the people were to assemble in Paris on a certain day in April, but the assemblage was afterwards deferred to the 4th of May. Ledru Rollin addressed a circular to the prefects and other departmental and commercial authorities, urging upon them the support of republican candidates at the elections. This measure Ledru Rollin and some of his colleagues justified on the ground that there were already parties whose reactionary efforts might be successful in returning Orleanist, Buonapartist, or ultramontane representatives, who might form a majority in the assembly, or, at all events, a minority large enough to embarrass the republic. By republican members, however, Rollin and Louis Blanc meant socialists, and this effort on their part to influence by official means the returns of the constituent assembly, destroyed all confidence in their justice, impartiality, and toleration. Rollin defended the measures he had adopted in terms, if possible, more imprudent than the measures themselves, and Albert and Blanc went still further in their indiscreet words, as well as excited zeal. The result was that moderate men not only lost confidence in them personally, but became apprehensive of the designs and tendency of their party, and the elections were much less favourable to the views and wishes of the “reds” than would otherwise have been the case. While Ledru Rollin and his communist colleagues in office were mismanaging everything connected with home interests, Lamartine was conducting the foreign affairs of France with surpassing judgment. At first all European governments saw the proclamation of a French republic with awe, and their thoughts were only how most effectually to arm and combine against French republic propagandism. Lamartine soothed this alarm. He addressed a diplomatic circular to all the agents of France through Europe, expounding the principles upon which the French republic was founded. His policy might be summed up in a single

sentence of this manifesto,—“The republic is the will of a great people; it derives its title from itself. Its policy is peace.”

The government adopted the plan of large workshops, and workmen were employed at the rate of a million and a half sterling a year. Louis Blanc admitted that unless the work produced should prove remunerative in the market, it would be impossible for the government to continue so enormous an outlay. The operatives, perceiving the hesitation of the government, prepared to carry their communistic views into operation themselves, without having the trouble of using the provisional government for their execution.

On the appointed day the assembly met, and the republic was proclaimed. The real feelings and opinions of the assembly were soon seen; they were elicited by the ministerial reports. The following description of the scene presented on the occasion is quoted from the contemporary press:—

“All the preliminaries having been gone through, powers verified, a president (M. Buchez) and vice-presidents, secretaries, &c, appointed, the members of the government proceed to lay before the assembly an account of their ministries since the establishment of the republic.

“On Saturday, May 6, the president announced that the citizen minister, Lamartine, was about to make a communication from the government, when that gentleman ascended the tribune, and proceeded to read a document, which purported to be a report of the acts of the provisional government in their _ensemble_—the restoration of order, organisation of the national guard, _mobile garde_, the army, &c.—enumerating what had been done in the midst of two months of a crisis during which not a drop of blood had been shed. Many portions of this report were much applauded, and at the close there was great enthusiasm.

“He was succeeded by Ledru Rollin, the minister of the interior, who read a report of the acts of his administration, which he read with great vehemence, but without exciting applause, except of a very partial kind from a small minority.

“The minister of justice (M. Crémieux) next ascended the tribune, and proceeded to read a report of his official acts, in which he recounted all the ameliorations applied to the administration of justice, the abolition of capital punishment for capital offences, abolition of the pillory, &c.

“The next member of the government who ascended the tribune was M. Louis Blanc, who excited a smile by his first act, which was to stoop and arrange a _tabouret_, or footstool, on which to raise himself high enough to be seen. The voice that came from this small form was firm, clear, and loud; and he, instead of reading, delivered an extempore oration in favour of his _Organisation du Travail_, to which he said the government stood committed by its promises to the people assembled before the Hôtel de Ville the day after the revolution. The assembly received his oration with a coldness which augured ill.

“M. Carnot, the minister of public instruction, was afterwards heard, and was succeeded by M. Bethmont, the minister of commerce, who deposited on the table the

exposé of the state of his department. M. Gamier Pages, minister of finance, concluded his report on the financial condition of the country.

“M. Arago, the minister of war and marine, and M. Marie, the minister of public works, next presented the situation of their departments; and were succeeded by M. Lamartine, minister for foreign affairs, who took a short review of the aspect of affairs throughout Europe. The general tone of his remarks was pacific, and in accordance with the principles of his address some time before to the diplomatic agents of France.

“In the course of the sitting a note from Béranger, the poet, resigning his seat for Paris, was read; but the assembly unanimously refused to accept the resignation.

“A stormy discussion then arose on the motion of M. Domes, offering the thanks of the assembly to the provisional government for their conduct in the administration of affairs, and nominating a committee of five to act as a government _ad interim_, until the permanent government of the country had been constituted. Subsequently, after fearful uproar, the motion was modified by the withdrawal of the latter part of it, and the assembly voted that the provisional government had deserved well of the country. The vote was almost unanimous, M. Barbes, M. Durrien, and another rising alone against it.

“On Tuesday, at eleven o’clock, M. Buchez, the president, took the chair.

“Some apprehensions were entertained that the result of this sitting would occasion disturbances. The workmen met in several quarters of Paris, and in the wood of Boulogne, and were understood to have declared that if M. Ledru Rollin was excluded from the government, they would take arms. Extraordinary precautions had accordingly been adopted around the hall. A large force was stationed in the adjoining garden, and invitations had been sent to the national guards to hold themselves in readiness to march at the first signal.

“On the following Wednesday, the appointment of an executive committee, in lieu of the provisional government, was announced. The result of the ballot was—

Arago..... 725

Gamier Pages..... 715

Marie 702

Lamartine 643

Ledru Rollin.....,..... 598

“Those five members having obtained the required majority, were proclaimed members of the executive committee. M. Louis Blanc, M. Albert, and M. Flocon were entirely excluded—a fact which the _peuple_ and the ‘communists’ cherished in vindictive remembrance. M. Ledru Rollin, whose violence had alarmed the majority, though not excluded, was at the bottom of the list; and M. de Lamartine, who had lent his high name and great popularity to support M. Ledru Rollin, was placed next lowest—all of them being most significant facts to show the spirit of the assembly,

and the probable policy to be hereafter expected from it."

The discontent of the _ouvriers_ gathered strength, and on the 15th of May they rose in insurrection. After much severe fighting the insurgents were defeated, the loyalty of the troops, national guards, and _garde mobile_ to the republic sustaining the cause of order. The _garde mobile_ had been organised from the very lowest classes in Paris— classes below the workmen—and was composed of mere youths, who distinguished themselves beyond all other forces by their heroic courage throughout that eventful day. The result to the leaders of the socialists was that many of them, such as Albert, Barbes, Blanqui, Raspail, and Sobrier were consigned to prison. Louis Blanc had a very narrow escape of being numbered among them.

The suppression of the clubs and of the _atteliers nationaux_, followed this success on the part of the government, but still more exasperated the workmen. In this condition of affairs Prince Louis Napoleon was elected for Paris, as representative in the room of one of the double returns made in the general election. He was also elected for three departmental vacancies, caused also by double returns in the general election. It at once became the fashion to laud the prince. All parties, except the "republicans pure and simple," seemed to think that Napoleonism offered a refuge from anarchy. The "reds" favoured him from hatred to the party of the executive committee, or rather the majority of that party; but in reality no faction hated Louis Napoleon at heart so much as they. At all events, his name became a rallying word for nearly all the lovers of order, who were not believers in the theory of philosophical republicanism. The most ominous thing connected with these demonstrations was the appearance of a journal entitled _Le Napoléonien_. Placards also appeared with the words "_Louis Napoleon! Vive l'Empereur! A bas la République!_" and crowds, shouting the name of Buonaparte, collected in various parts of Paris, the _générale_ and the _rappel_ were beaten, troops assembled, and the guards, _sédentaires_ and _mobile_, were frequently assembled to protect the government and the representatives. Shots were fired, some lives were lost, and the panic became general throughout Paris. Lamartine took advantage of this, and proposed to the assembly that the laws of 1816 and 1832 should be enforced, forbidding the entrance of any of the Buonaparte family into France. This motion was received by the assembly with loud shouts of "_Vive la République!_" Many who joined in that shout would have shouted still more cordially for Louis Philippe or the representative of the older branch of the Bourbon family. The cry of the republic answered their present purpose of committing the executive committee to imprudent measures, and of excluding the Buonapartists, who were regarded as more formidable rivals to the Bourbons than the republicans, old or new. The assembly was not able to carry out its own resolution; after coquetting with public opinion and persisting for a time, the exclusion of the Buonapartes was given up as impracticable; and the prince, again elected for Corsica and other electoral districts, took his place in the legislative assembly, accepted the oaths to the republic, and before the year expired was president. Before that was accomplished France was doomed to undergo fresh trials, and Paris to witness still more sanguinary scenes.

The question of labour-regulation continued, under every improvement and modification that was devised, to embarrass the government; and it was at last resolved to remove from Paris great numbers of the workmen to distant parts of the country, to be engaged there on various public works. This the men determined to resist, and to subvert a government which dared to suggest such a measure. The government was, however, forced to adopt at once some plan to rid itself of the peril and imminent ruin of the _atteliers_. In the National Assembly, Victor Hugo, M. Léon Faucher, and others, denounced the connivance of the executive committee with a state of things that must speedily destroy France. The number of workmen then engaged in the government workshops of Paris was one hundred and twenty thousand. On the night of the 22nd of June, cries of “Down with the Assembly!” were raised by the _ouvriers_ in the streets. In the morning, signs of disturbance were indicated in many quarters. In the course of a few hours the workmen began to erect barricades. Fighting began between the national guards and the constructors of the barricades at the Porte Saint-Denis. Throughout the day barricades were demolished by the national guards and _gardes mobiles_, but only after fierce and deadly conflict. During the night of the 23rd new barricades were raised as if by magic, and on the morning of the 24th, a system of ingenious and powerful defences existed through a large extent of Paris, behind which and commanding which, from the windows and house-tops, well-armed and determined men were placed. Happily the government consigned to General Cavaignac, minister of war, all the functions of a dictator. He was ably seconded by General Lamoricière, and other officers of rank, several of whom sealed their fidelity in death. During the 24th, terrible battle raged in the streets of Paris, but the troops and civic soldiery stormed the barricades and conquered. Mortars were used, from which showers of shells were discharged, which bursting behind the barricades shattered these defences, ponderous although they were, scattering them, and the bodies of the brave men who defended them to the last. Shells also were thrown into the houses, whence a fire was kept up upon the military in the streets: many of these houses were torn to pieces, burying the defenders in their ruins. In some streets the troops had to cut their way from house to house, the sappers knocking down the party-walls: the contest in these directions resembled that at Saragossa, where, amidst crumbling walls and blazing roofs, men fought foot to foot, in the agonies of valour, fanaticism, and despair. Throughout the 25th and 26th the conflict raged, but was terminated on the evening of that day. Twenty thousand men were killed or wounded. General Cavaignac was elected by the assembly president of the council. The gallant general conducted his administration with justice and wisdom.

During the month of June, a committee appointed by the assembly was engaged in drawing up a constitution; they presented a report to the following effect:—They proposed that there should be a president elected by universal suffrage for a period of four years; he was to be a French citizen, not less than thirty years of age. The legislature to consist of one chamber; that chamber to consist of seven hundred and thirty members. The ministers to be appointed and dismissed at the pleasure of the president. A council of state to be appointed out of the assembly, forty in number, and chosen by the assembly itself; that body to draw up the projects of law which the

government might think fit to bring in. The punishment of death for political offences was interdicted. Slavery to be abolished in all French colonies. The press to be free. All religions to be allowed, and their ministers to be paid by the state. Public instruction to be free, subject to the superintendence of the state. Substitutes for the army and navy to be disallowed. The national debt to be deemed sacred. Property inviolable. Algeria, and all other French colonies, to be integral parts of the French soil, but to be governed by laws peculiar to themselves. Trials to be public, and the office of judge to be permanent.

This project of constitution was accepted as a base for further consideration. Subsequently it was modified, but not in any way essentially to alter its principles. The resolution regarding colonial slavery roused the whole colonial interest of France against the republic. That which forbid substitutes for the army and navy created wide-spread dissatisfaction. The former of these provisions of the constitution was so just and humane, that it deserved to be carried out at any cost; the other was impolitic, as it deprived large numbers who would not serve in the army or navy of the opportunity of avoiding that service, if they fell under the ballot, by nominating a substitute willing to serve if remunerated.

The question of the adoption of the constitution was finally put on the 4th of November, and carried, thirty voices being dissident. In the evening of the same day, one hundred and one cannon shots announced to Paris and its environs that the work of preparing the constitution had been completed. The public made no manifestation of feeling. Only the old republican party valued so free a constitution. The _ouvriers_ cared not for it, nor for anything short of socialism. The Absolutists hated liberty in every form. The Buonapartists regarded it as an instrument that might be made available for reconstituting the empire. The Orleanists received it with more malignant hostility than any other class. They professed the theory of a constitutional monarchy; but the free and just and noble constitution of the republic contrasted so advantageously with the corrupt practices and _doctrinaire_ theories of Louis Philippe and his favourites, that the Orleans party betrayed the most malevolent feelings to the republican leaders, such as Cavaignac and Lamartine, and the uttermost repugnance to the republic itself. Louis Philippe, in England, entertained his friends with garrulous accounts of his own wisdom in all the measures he had adopted, predicting that France, enamoured of the glory of his reign, would repent and return to him again! His queen, equally incapable of appreciating France, dwelt only upon the injury inflicted upon religion by the conduct of the French people in dethroning their king, and making an indiscriminate establishment of all churches a feature of the constitution. Her silence, gravity, and the religious view she took of the event were strangely in contrast to the vanity, levity, and self-gratulation with which the king talked of his temporarily humbled fortunes.

The proclamation of the constitution failed in quieting enemies, restoring public confidence in the state of affairs, or reviving material prosperity, notwithstanding all that so many eloquent orators of the old republican party predicted to that effect. The _Presse_ at this juncture gave a most melancholy account of the sufferings of the poor, and the distress of the commercial classes:—“It will be necessary to feed at the

public expense two hundred and sixty-three thousand persons during the present month, two hundred and eighty thousand during the month of December, three hundred thousand during the month of January, three hundred thousand during the month of February, three hundred thousand during the month of March, and two hundred and eighty thousand during the month of April next; and the sum granted by the assembly will not afford each individual more than 12 centimes (1d. and ⅖ths) per day each to exist upon. At the same time the revenue of the city of Paris has fallen off by a sum of 16,000,000 fr. (£640,000), which must be made good by an addition to the assessed taxes of more than 50 per cent."

The Socialists were not without hope that matters would turn to their account; and although they did not dare to defy the republic in action, they became more resentful in language than ever. They continued to hold meetings, in which opinions at variance with all morality and civil order were expressed, and which would have alarmed every government in Europe, had not recent events been of a character to confine the attention of these governments to domestic affairs. A banquet, under the title of "The Confederation of the People of Europe," was held, at which eight hundred men, French, Poles, Belgians, Germans, and Italians assembled; the most furious threats to kings, governments, persons of property, and to all persons everywhere not favourable to communistic projects, were uttered. One blasphemous toast will show the _animus_ of the assembly, and of its orators. It was delivered by M. Saint Just:—"To the men strong, courageous, and valiant in the cause of humanity. To those whose names serve as a guide, a support, and an example to the degenerate beings—to all those whom history calls heroes!... To Brutus, to Catiline, to Jesus Christ, to Julian the Apostate, to Attila!... To all the thinkers of the middle age.... To unfortunate thinkers!... To Jean Jacques Rousseau, and his pupil, Maximilian Robespierre!" This enumeration of names was received with a triple salvo of applause, and was encored, with which request M. Saint Just complied. The banquet concluded with the "Marseillaise" and the "Chant du Départ" sung by the entire company.

The great work of electing a president proceeded without interruption or disturbance, and the result was the election of Prince Louis Napoleon by an overwhelming majority. The following, by an eye-witness, is a condensed account of the transactions in the assembly upon the occasion of formally announcing this result. The letter was dated November 20th, and referred to the previous Wednesday, as selected for the ceremony by the executive government, instead of Thursday, which had been publicly announced; the change of the day arising from the apprehension of disturbances consequent upon an attempt which was expected to be made to greet Napoleon as emperor. The prince himself acquiesced in the arrangement, to prevent unnecessary bloodshed:—

"At two o'clock orders were forwarded by the government to the colonels of the 24th regiment of infantry and of two regiments of dragoons to march their corps towards the National Assembly. At three o'clock two battalions of the former, and a battalion of _garde mobile_, preceded by a detachment of national guards, entered the Garden of the Tuileries, and advanced to the gate of the Place de la Concorde, a

general, accompanied by his aide-de-camp, and escorted by a few lancers, taking his station close to the obelisk. In the meantime, the quays adjoining the palace were lined with dragoons. The presence of these troops, which nobody could account for, created much uneasiness, though in some groups a report circulated that the assembly was about to proclaim the president of the republic.

“At half-past three o’clock M. Marrast, president, took the chair. The assembly was extremely numerous, and animated groups were to be seen here and there through the hall. Prince Louis Napoleon was not present at the opening of the sitting, but his cousin, Jerome Buonaparte, occupied his seat. The public galleries were crowded. In one of them we remarked Princess Mathilda, sister of Jerome, and next to her M. Emile de Girardin. Two aides-de-camp appointed in the morning by the prince, M. Edgar Ney, and a son of General Pajol, were also present. No serious discussion could take place in the state of excitement of the assembly, and most of the orders of the day were adjourned. Two applications for leave to prosecute Messrs. Caussidière and Turk, representatives of the people, were rejected.

“The committee charged with examining the electoral returns for the presidency entered the chamber at four o’clock, when the president immediately called to the tribune M. Waldeck Rousseau, the reporter of the committee, who read the report. It stated that seven million three hundred and forty-nine thousand citizens of the republic had voted at the presidential election, and that the votes had been divided in the following proportion over the surface of the country:—

M. Louis Napoloen had obtained ... 5,434,226 suffrages.

General Cavaignac ..... 1,448,107 „

M. Ledru-Rollin ..... 370,119 „

M. Raspail..... 36,900 „

M. Lamartine ..... 17,910 „

General Changamier ..... 4,790 „

Votes lost..... 12,600 „

Among the latter were many containing unconstitutional denominations, and the committee had besides denounced to the minister of the interior for prosecution a few individuals guilty of acts of violence. At Grenoble, in particular, public tranquillity was slightly disturbed. The committee had, moreover, examined several protests addressed to it against the election of M. Buonaparte. In one of them he was declared ineligible, because he had forfeited his rights as a Frenchman by his naturalisation in Switzerland. The members of the committee however had, by a unanimous decision, passed to the order of the day on that difficulty. By the number of the votes, and the regularity of the operation, M. Louis Napoleon was the real elect of the nation, and the assembly had only to order that the executive power be transferred to his hands. After paying a tribute of praise and gratitude to General Cavaignac, which was ratified by the loud acclamations of the entire assembly, M. Rousseau concluded by calling upon it to proclaim the president, and exclaimed, ‘Have confidence, God

protects France.'

"General Cavaignac, having then ascended the tribune, said, 'I have the honour of informing the National Assembly that the members of the cabinet have just sent me their collective resignation; and I now come forward to surrender the powers with which it had invested me. You will understand, better than I can express, the sentiments of gratitude which the recollection of the confidence placed in me by the assembly, and of its kindness to me, will leave in my heart.' This short address was received with deafening cries of 'Vive la République!'

"M. Marrast then rose and said, 'In the name of the French people! Whereas Citizen Charles Louis Napoleon Buonaparte, born in Paris, possesses all the qualifications of eligibility required by the 44th article of the constitution; whereas the ballot gave him the absolute majority of suffrages for the presidency: by virtue of the powers conferred on the assembly by the 47th and 48th articles of the constitution, I proclaim him President of the French Republic, from this day until the second Sunday of May, 1852, and I now invite him to ascend the tribune and take the oath required by the constitution.'

"M. Louis Napoleon, who was seated near M. Odilon Barrot, then rose and advanced towards the tribune. He was dressed in black; on his left breast was a _crachat_ set with diamonds, and under his coat he wore the grand cordon of the Legion of Honour. Having mounted the tribune, the president read to him the oath of fidelity to the constitution, to which M. Louis Napoleon replied, 'Je le jure.' He then asked leave to address a few words to the assembly. The suffrages of the nation and his personal sentiments, he said, commanded his future conduct, and imposed upon him duties which he would fulfil as a man of honour. He would treat as enemies of the country whoever should attempt to subvert the constitution, and between him and the assembly would exist the most perfect harmony of views. He would exert himself to place society on its real basis, and to relieve the sufferings of a people who had borne such generous and intelligent testimony. He would endeavour to restore to the government the moral force of which it stood in need, and to maintain peace and order. He had called around him men distinguished for talent and patriotism, who, notwithstanding the differences of their political origin, would assist him in consolidating the new institutions of the country. He then eulogised the becoming conduct and loyalty of which General Cavaignac had given so many and such signal proofs, and pledged himself strenuously to labour to accomplish the great mission of founding the republic, without recurring to reactionary or Utopian means; and, with the assistance of God, he trusted to achieve useful if not great things.

"This speech was received with unanimous cries of 'Vive la République!' and M. Louis Buonaparte, having descended the tribune, went up to the seat of General Cavaignac, and cordially shook him by the hand. The new president was then met by M. Odilon Barrot and his friends of the right, who escorted him out of the hall. In leaving the hall the president was accompanied by a great number of the members of the assembly, and passed between a double line of soldiers and national guards, which extended through the Salle des Pas Perdus to the gate upon the quay facing the Place de la Concorde. There was no manifestation of enthusiasm at this moment.

A carriage waited for the president at the gate, in which he left for the palace of the Elysée Bourbon, escorted by a squadron of dragoons and lancers. The cannon of the Invalides were discharged as a salute at the moment. General Changarnier attended on the occasion, and directed the proceedings. It was remarked that, on the occasion of this solemnity, all the enthusiasm of the assembly was shown to General Cavaignac, and the utmost coldness towards Prince Louis.

“M. Marrast next announced that M. Odilon Barrot was charged with the construction of the new cabinet, which would be communicated by a message to the assembly. The house afterwards adjourned.”

Such were the great events in France during the year 1818, events which too nearly affected the connection of England with that country to be given here in less detail.

During the progress of these transactions the relations of Great Britain and France became delicate and critical; but the wisdom of the provisional government on the one hand, and of the British government on the other, prevented any collision. Diplomatic relations were necessarily interrupted for a time by the revolution, and the flight of the king; but her Britannic majesty, in her speech proroguing parliament, expressed her satisfaction that she had been enabled to resume the usual intercourse between the two governments. Several occasions arose when even a slight deviation from international equity on the part of the French provisional government might have involved the two countries in war. In England the Chartists continued the agitations already recorded, and made a grand demonstration, which will be related in another section of this chapter. While they were preparing to put forth this exhibition of strength, a correspondence was kept up by many of their leaders with those of the French Communists, and the excitement of the latter was intense as the hour approached for the grand _denouement_. Indeed, all classes of the French, except the most intelligent, especially in Paris, regarded a revolution in England as inevitable. They were under the delusion that Fergus O’Connor and his colleagues and followers were, politically speaking, the English people. The following account of this impression was given by a gentleman then resident in Paris:—“Never, during the many years I have resided in Paris, did any event in England excite such universal interest among all classes of the French as the great chartist demonstration has done. For days and days it was a leading topic in the newspapers, and for days the general subject of conversation. Both newspapers and talkers, relying on the big swagger of the Chartists, and the undisguised alarm of the government, confidently expected a stern and terrible straggle, with barricades, and bayonets, and pikes, and deluges of blood, and awful slaughter. To this expectation many added the hope of seeing a complete revolution effected—a revolution which would overthrow throne, aristocracy, and middle class, leaving the people and the republic triumphant. So deeply had this hope taken possession of the more sanguine, that they could not bear to hear the slightest doubt of its realisation expressed.”

Strange as it may seem to English readers, the chartist proceedings in England, and those of the Irish repeal party, had considerable influence not only in sustaining unreasonable expectation among the French workmen, but even on their modes of

procedure. It was not until the speeches of O’Connor and other Chartists claiming “the land for the people,” and the articles of Mitchell and others in Ireland demanding for the farmers a right in the soil, were circulated in Paris, that the workmen there began an agitation against rent. This they maintained until the restoration of order restored to the house-owners the means of asserting the rights of property. The following graphic and lively description of the agitation, incited and fostered under such circumstances, is no exaggeration:—“The past week has been the calmest which we have had since the revolution. We have had no forced illuminations, no planting of trees of liberty, no physical-force demonstrations, no great display of any kind; in fact, we have been decidedly dull. But in some parts of the city, our sovereign lord and master, the Mob, has been graciously pleased to afford us a little interesting excitement by bullying the landlords into giving receipts for their rents, without the usual preliminary ceremony of fingering the cash. ‘Base is the slave that pays his rent’ is now the motto of the mob, and his mobship chalks it up along with ‘liberty, equality, fraternity!’ To show, however, that he is really a good fellow at heart, the said mob no sooner swindles (I am afraid it amounts to swindling in English) the landlord out of his rent, than he invests a small portion of the coin in the purchase of a tricolor flag, with which he decorates the landlord’s house. And such is the worthy fellow’s moderation, that even when the landlord has refused to be victimised, the mob has not inflicted summary vengeance on him; he has only stuck a black flag before the offender’s door, or playfully made his effigy dangle by the neck from the nearest lamp-post.”

In Ireland the progress of sedition afforded a much more favourable opportunity for displaying the equity and prudence of the French provisional government. An address was voted to the republic of France by the Young Irelanders, who styled themselves the people of Ireland, although they well knew that millions of Irishmen, numbering among them her most intelligent and influential citizens, repudiated the principles and proceedings of the party. A deputation, consisting of Mr. Smith O’Brien and several other gentlemen, were sent to Paris to express the sympathy and congratulation of the Irish people on the new-born liberty of the citizens of France. It was well understood in England, and much better understood in Ireland, that the deputation were expected to sound the French government as to any hope of assistance in case of a rising in Ireland; and also to stir up the minds of the French people generally to more decided interest for Ireland, and a greater willingness to identify the French republic with Irish hopes and aspirations. On the 3rd of April the young Ireland deputation was received by the provisional government at the Hôtel de Ville, and there presented an address in the spirit of their mission. The following reply was read by Lamartine:—

“_Citizens of Ireland_,—If we required a fresh proof of the pacific influence of the proclamation of the great democratic principle,—this new Christianity, bursting forth at the opportune moment, and dividing the world, as formerly, into a Pagan and Christian community,—we should assuredly discern this proof of the omnipotent action of an idea, in the visits spontaneously paid in this city to republican France, and the principles which animate her, by the nations, or by fractions of the nations, of Europe.

“We are not astonished to see to-day a deputation from Ireland. Ireland knows how deeply her destinies, her sufferings, and her successive advances in the path of religious liberty, of unity, and of constitutional equality with the other parts of the United Kingdom, have at all times moved the heart of Europe. We said as much, a few days ago, to another deputation of your fellow-citizens. We said as much to all the children of that glorious Isle of Erin, which the natural genius of its inhabitants, and the striking events of its history, render equally symbolical of the poetry and the heroism of the nations of the north. Rest assured, therefore, that you will find in France, under the republic, a response to all the sentiments which you express towards it.

“Tell your fellow-citizens that the name of Ireland is synonymous with the name of liberty courageously defended against privilege—that it is one common name to every French citizen. Tell them that this reciprocity which they invoke—that this hospitality of which they are not oblivious—the republic will be proud to remember and to practise invariably towards the Irish. Tell them, above all, that the French republic is not, and never will be, an aristocratic republic, in which liberty is merely abused as the mask of privilege; but a republic embracing the entire community, and securing to all the same rights and the same benefits. As regards other encouragements, it would be neither expedient for us to hold them out, nor for you to receive them. I have already expressed the same opinion with reference to Germany, Belgium, and Italy; and I repeat it with reference to every nation which is involved in internal disputes—which is either divided against itself or at variance with its government. When there is a difference of race—when nations are aliens in blood—intervention is not allowable. We belong to no party in Ireland or elsewhere, except to that which contends for justice, for liberty, and for the happiness of the Irish people. No other part would be acceptable to us, in the time of peace, in the interests and the passions of foreign nations. France is desirous of reserving herself free for the maintenance of the rights of all.

“We are at peace, and we are desirous of remaining on good terms of equality, not with this or that part of Great Britain, but with Great Britain entire. We believe this peace to be useful and honourable, not only to Great Britain and the French republic, but to the human race. We will not commit an act—we will not utter a word—we will not breathe an insinuation at variance with the principles of the reciprocal inviolability of nations which we have proclaimed, and of which the continent of Europe is already gathering the fruits. The fallen monarchy had treaties and diplomatists. Our diplomatists are nations, our treaties are sympathies. We should be insane were we openly to exchange such a diplomacy for unmeaning and partial alliances with even the most legitimate parties in the countries which surround us. We are not competent either to judge them or to prefer some of them to others; by announcing our partizanship on the one side, we should declare ourselves the enemies of the other. We do not wish to be the enemies of any of your fellow-countrymen. We wish, on the contrary, by a faithful observance of the republican pledges, to remove all the prejudices which may mutually exist between our neighbours and ourselves. This course, however painful it may be, is imposed on us by the law of nations, as well as by our historical remembrances.

“Do you know what it was which most served to irritate France and estrange her from England during the first republic? It was the civil war in a portion of our territory, supported, subsidised, and assisted by Mr. Pitt. It was the encouragement and the arms given to Frenchmen, as heroical as yourselves, but Frenchmen fighting against their fellow-citizens. This was not honourable warfare; it was a royalist propagandism waged with French blood against the republic. This policy is not yet, in spite of all our efforts, entirely effaced from the memory of the nation. Well, this cause of dissension between Great Britain and us, we will never renew by taking any similar course. We accept with gratitude expressions of friendship from the different nationalities included in the British empire. We ardently wish that justice may found and strengthen the friendship of races; that equity may become more and more its basis; but while proclaiming with you, with her (England), and with all, the holy dogma of fraternity, we will perform only acts of brotherhood, in conformity with our principles and our feelings towards the Irish nation.”

At the conclusion of this reply some present exclaimed, “Vive la République!” others “Vive le Gouvernement Provisore!” and a few cried out, “Vive Lamartine!” but the general impression was one of dissatisfaction. Smith O’Brien and his companions retired discomfited. The British government and people received the intelligence of this reply with the greatest satisfaction, and their confidence in the provisional government, and in Lamartine, more especially, was much increased. There was already more reliance upon the friendly policy of the republic than there had been upon the monarchy and the monarchial ministry of Louis Philippe. In Ireland the reply of Lamartine gave satisfaction also to the Protestants, and such of the Roman Catholic citizens as were opposed to the O’Brien movement; but the Young Irelanders, and most of the Old Irelanders, were exasperated, and in their speeches and newspapers denounced Lamartine as the enemy of liberty, the sycophant of England, and the incubus of the French provisional government. It was said that he had married an English lady, and was more English at heart than French—that he would betray the republic to England or to monarchy. Those persons who had been foremost in holding him up as a demi-god, now abused him not only as a traitor, but as weak in purpose, policy, and intellectual grasp. John Mitchell denounced him as the great obstruction to the development of European freedom, which no doubt he was to such freedom as Mitchell advocated—the plunder and tyranny of a modified communism; for while essentially holding that theory, he in some way, not very intelligible to others, repudiated it. Lamartine began his career of power by emancipating the negro race; Mitchell commenced his career as a free exile in America, some years after, by the most violent advocacy of the fetter and the whip for the coloured population of that country. The _Nation_ newspaper, week after week, informed its readers that Lamartine was an idle dreamer, a mere theoretical politician; that his mind was only constituted for the regions of romance; and that his opinion on the affairs of Ireland, England, France, or Europe was worthless. A week or two before the same paper held him up as the very Achilles of freedom, and the hope of Ireland—for it was the habit of both the parties claiming nationality in Ireland, to hope for liberty from the courage and efforts of others rather than from their own. The reply of Lamartine caused as much despondency in Ireland among the

seditious, as it inspired confidence among the loyal, and among all the intelligent citizens in Great Britain. Throughout the year the conduct of the French government was internationally just and courteous, and England had no cause for complaint, but every reason to be thankful that Louis Philippe and Guizot had given place to such men as Lamartine and Cavaignac.

The revolution in France was of more importance to England than the revolutions which took place in Italy and Germany—they require, therefore, only a comparatively brief notice.

ITALY.

All Italy felt the shock of the French revolution, although, in point of time, the revolutionary feeling developed itself in Italy before it burst forth in France. Throughout the year 1847 all Switzerland, and Austrian and Papal Italy, were uneasy; and in January, six weeks before the dethronement of Louis Philippe, there were disturbances in Milan. Indeed, from the moment Pius IX. ascended the papal throne, a change came over the people of Italy: it was supposed that the pope was a patriot, and would favour the struggle for Italian liberty, and this delusion was not dispelled until after the battle of Novara. It was then found that the pope and the kasir were allies, even while the troops of the former were marching forth ostensibly to do battle for Italy.

When the tidings of the revolt in Paris reached Italy, the people flew to arms. General Radetzsky and his Austrian troops were driven from Milan; a provisional government was formed, and all Italy was called upon to arm. The King of Sardinia, who had proclaimed a most liberal constitution for his own kingdom, marched an army into Lombardy; Venice revolted; and Radetzsky retired upon Verona. The Austrian lines along the Mincio were forced, and the position of Radetzsky’s forces was dangerous. Two circumstances, however, favoured him—the supineness of the papal troops, and the junction of Nugent, an Irish marshal in the Austrian service, with the troops under his command. After various fortunes, the allied Italians were beaten; Lombardy and Venice were entirely subjected to the Austrian arms; and but for English and French diplomacy, Sardinia also would have fallen before the victorious Austrian. The English government was desirous to see Italy freed from Austrian domination, and would not have submitted to see Sardinia overthrown by an invasion of the kasir’s army. France, also, regarded events there with views similar to those entertained by England, but it did not suit the policy of either country to interfere beyond the diplomatic interposition by which Sardinia was saved. Probably they were also influenced by the suspicion that the royal house of Sardinia was more actuated by ambition than by a desire for the liberties of Italy. The fact of the king having granted a constitution did not altogether prevent such suspicions, because that was his only hope of gaining ascendancy in Italy; and the general tone of the Sardinian court and cabinet gave a colour to the impression that their policy was not entirely disinterested. His majesty was glad to consent to an armistice with Radetzsky, and to fall back behind the shields of France and England for safety. The king, however, was obliged to abdicate; shame, the defeat of his armies, the failure of his policy, and the certainty that if he remained upon the throne, the kasir would

seize the first opportunity to make war upon him, determined him to abdicate.

THE PAPAL STATES.

Early in the year the pope published a new plan for the organisation of the executive government of his dominions, which gave satisfaction to the liberal friends of the popedom. On the 14th of March he proclaimed a new constitution. The resistance offered to the national will, in the case of Austria, caused him to become unpopular. On the 29th of April he addressed the cardinals in conclave, disavowing the act of the papal troops proceeding against the Austrian armies in Italy. This caused a popular tumult; the next day the people took possession of the post-office and the offices of state, and discovered that the pope and cardinals had been intriguing with Austria. The result was the entire sacrifice of the pontiff's popularity; all confidence in his honour, and that of his cardinals, was erased from the Roman mind. Under the pressure of the public demand, he, on the 1st of May, proclaimed war against Austria, but never intended to adopt such measures as would carry the declaration into effect. He intended to deceive the people, seeing that they were determined on war; and he knew that this could be better done by retaining his authority over the troops, than by allowing the war to be carried out by a popular and lay administration, which would be in earnest. Early in May a new ministry of a liberal character was formed, but the pope's private advisers counteracted their policy. The result was a revolution—not against the pope's ecclesiastical, but solely against his temporal, authority. Scenes of the most dreadful nature followed, all of which might have been averted by an honest course on the part of the pontiff, and the college of cardinals. The pope was really willing to concede much; but the demand that the temporal government of the people should be by and for the people, he was not willing to admit; and by covertly attempting to destroy or counteract all that he publicly and ostensibly admitted, he filled the people with incurable resentment against those who surrounded him, and to whom they attributed, rather than to himself, the faithless and despotic policy in secret pursued. A chamber of deputies was convoked, to whom the pope formally surrendered his government, declining to take any part in their doings, or to afford any sanction. Several of the high ecclesiastics and lay authorities, by whose agency he sought to counteract the efforts for constitutional liberty which the people made, were slain, and others driven from Rome. At last, on the 24th of November, he disguised himself as a livery servant in attendance upon the Bavarian ambassador, and mounting the box of that gentleman's carriage, beside his coachman, was driven to the house of the Bavarian embassy; thence, disguised as the chaplain to the embassy, he succeeded in escaping to Gaeta, a town within the Neapolitan territory. The flight of the pope was followed by a protest on his part against the liberalism of his people, who organised a regular government on liberal principles; their efforts were counteracted by the spies and agents of the pope, and the embassies of all the Roman Catholic powers: among the foreign representatives, none was more hostile to the incipient liberties of Rome than the ambassador of the French republic.

The pope, the kasir, the king of Naples, and the despots of the smaller Italian states, considered that England was the chief fomenter of Italian disturbance. This

arose from one of those whig _mal àpropos_ movements for which their party had of late years earned a bad reputation. Lord Minto was dispatched to Italy in a semi-official capacity; the real object of his mission was to open diplomatic relations with the pope, who, although very desirous to respond to the wishes of the English Whigs, thought it a good opportunity to extort some concessions as to the interests of the Roman Catholic religion in British territory. The Whigs, knowing that they dare not face the public opinion of Great Britain, if they made such concessions as the pope's demands and their own wishes would prompt, were baulked in their undertaking. They succeeded, however, in obtaining a certain amount of influence upon the Roman Catholic clergy of Ireland, restraining the latter from favouring the revolutionary designs existing in that country. It was remarkable that while the Irish Roman Catholics were abusing Lamartine and the French provisional government, for not assisting by arms revolution in Ireland,—that is, a revolution of a portion of the Irish who followed certain leaders,—they were equally abusive of the people of Rome for daring, against the will of the pope, to assert any measure of civil or religious liberty, however modest. Impudent threats were made of sending an Irish army to the pope's assistance, at the very time that the persons so vaunting were afraid of the Dublin police!

The close of the year saw the pope a fugitive and the people free.

NAPLES AND SICILY.

These countries did not escape the revolutionary contagion. Sicily flew to arms, and the revolt succeeded. The English government was desirous to see Sicily separated from Naples; and their emissary, Lord Minto, so betrayed this feeling to the king of the two Sicilies as to inspire him with intense hatred to England, and to confirm him in the opinion that English agency was busy in creating or sustaining the confusion of the continente, Lord Minto had the preposterous folly to suggest to the king that Sicily should only be garrisoned by Sicilian troops! This, of course, was indignantly rejected by both the king and cabinet.

The Sicilians published a manifesto of their free and moderate opinions, which was very excellent. The document was very deceptive, and designed to gain support in England and France. One of the false promises of the manifesto was the entire freedom of religion; one of the first acts of the Sicilians in their short-lived power was a rigorous establishment of the Roman Catholic religion, and this was enacted in terms which disclosed the bigoted feelings of the nation. Sicily wanted to be independent of Naples, but it had not the same wish to be separated from the despotic principle. An independent nation, without a free people, was the highest aspiration of revolted Sicily. England and France left her to her fate, except so far as Lord Minto's meddling complicated her condition. The temporarily vanquished Neapolitans returned to the contest, and the revolution was ingloriously suppressed.

In Naples the victory of the constitution was as short as the independence, of Sicily. The king acted without sincerity, and the deputies without prudence. The king found an opportunity of resistance, for which he had well prepared himself. He was surrounded by Swiss guards, recruited from the bigoted Roman Catholic cantons of

the Sonderbund, or what had been so termed before its tyranny was crushed the previous year. The king had also the lazzaroni on his side; some thirty thousand thieves, assassins, street beggars, and burglars were in his majesty's royal pay and royal favour. They were enthusiastic for king, church, and plunder. It was alleged that the royal promise was held out to them that if they conquered the citizens they would be permitted to sack the city. The event seemed as if such allegation were true; the united Swiss and lazzaroni conquered, and the city was sacked. The king permitted, and his minions encouraged, the most infamous proceedings: riot, robbery, and debauch filled every street and almost every house, while blood, the blood of the best citizens of Naples, flowed in torrents. There is no knowing to what extent these horrors might have been carried by the "faithful lazzaroni," had not the French admiral in the bay declared that he would act against the king if these inhumanities were not at once stopped. The lazzaroni must have been at the king's beck, for the moment he was alarmed by threats of the interference of a French squadron, he called in his bloodhounds, and held the leash until the threatened danger passed.

BELGIUM.

Much concern was felt in England as to the part which Belgium would take in the terrible continental tragedy. The king being her majesty's uncle, and also the uncle of her consort, the safety of his throne was regarded anxiously by the English court. As he had by his second marriage connected himself with the family of Louis Philippe, the French republicans looked upon him as a very suspicious neighbour; but the prudent policy of Lamartine prevented any collision, and checked the propagandism which both sections of French republicans desired to bring to bear upon Belgium. The "Reds," perceiving that the provisional government was not disposed to embroil itself with foreign powers, organised an _émeute_ in Belgium with a sort of filibustering expedition of their own. Several hundred socialists made their way into Belgium, and used every effort to induce the people to join them, but in vain,—a few only, who like themselves, held extreme and impracticable views of democracy, made any insurrectionary movement; and the affair exploded as harmlessly as Smith O'Brien's abortive attempt at revolution in Ireland. Had any success, short of a complete revolution, attended the efforts of the French "sympathisers," the armed intervention of England might have been necessitated, and another long war with France have spread its terrors, havoc, and ruin in Belgium.

GERMANY.

The people of Germany were ripe for revolt when the tidings of the French revolution came suddenly as a flash along the electric wire. No people had ever been more basely deceived by princes than the Germans. Constitutions were promised, and the promises shamefully violated, sometimes ostensibly conceded, but really never acted upon. The oaths of kings were synonymous for falsehood throughout the great fatherland. Schiller has sung—

"The human being: May not be trusted with self-government;"

but the poet and philosopher must have understood that the human being is as worthy to be trusted with self-government as with the irresponsible government of other men, no way his inferiors—perhaps, morally and intellectually, superior to him. The Prussian people could have governed themselves with as much ability as the king governed them. The Hanoverians could have managed their own affairs as morally as the English Duke of Cumberland, or his son George conducted them. Nor did the wisdom of the Austrian emperor, for matters of government, exceed the intelligence of the educated citizens of Vienna.

The first vibration of the great French earthquake was felt in the grand Duchy of Baden. The people, as one man, demanded liberty; the demand was too unanimously made to be resisted; the victory was won without a shot. On the 3rd of March the Rhenish provinces of Prussia felt the shock, and Cologne was in arms; on the 4th, Wisbaden; on the 5th, Dusseldorf; on the 8th, the Hessians of Cassel barricaded the streets, and flew to arms—their victory was won without blood. Early in March the people of Munich demanded their rights, which none but slaves consented to forego; they were refused; the people responded to the first cry “to arms” that was raised; the troops would not charge the people, but mingled in the shouts of “a republic! a republic!” The alarmed king conceded, tampered with his own concessions, and at last abdicated. His son and successor made a great flourish of proclamations and promises, throwing himself upon the popular sympathy until time enabled him to forswear himself. The credulous people who believed the oaths of kings, generally paid afterwards the penalty of their credulity in blood or fetters.

In Saxony there was no harmony between the court and people; the former were Roman Catholic, and the latter Protestant. The prudence of the monarch, however, prevailed over the solicitations of his court to treat his people with disdain, and he saved his throne and his honour.

The King of Hanover was less honest, as well as less compliant, but even he had to recognise, for the time being, a constitution.

Prussia proper was affected, as well as her less homogeneous provinces, by the grand convulsion. After a series of conflicts in the streets of Berlin, order was at last restored, and the constitution modified so as to satisfy a large portion of the people. The Poles in Posen revolted, and perpetrated the utmost atrocities, but were put down by the Prussian troops without obtaining any of the objects for which they so wildly fought, and so vaguely demanded. The people of Posen had been practised upon by their own nobles, and incited by their priests. Their insurrection was one of fanaticism, not of freedom; the revolters carried the symbols and images of their creed, not the banners of nationhood before them,—they deserved to fail. Their chief oppressors were the privileged classes of their own countrymen, from whom the Prussian government derived no aid in its efforts to meliorate the condition of the province. Education was resisted, industry discouraged, and the religious rights of minorities assailed by ignorant and fanatical mobs. The freedom required in Posen was an emancipation of the people from their own passions and prejudices.

THE AUSTRIAN EMPIRE.

The revolutionary history of the Austrian empire during the year 1848 was instructive, and full of the most eventful changes and great results. On another page the progress of affairs in Austrian Italy was sketched, and the relation of the kasir's interests there to contiguous Italian states pointed out. The whole empire was, however, convulsed, and the throes of every part communicated its vibrations to the whole. The revolt in Hungary constituted the most interesting and important part of the great transactions which occurred within the limits of the empire. The government of the kasir succeeded, by exciting the jealousy of Magyar and German, Croat and Hungarian, metropolitan and provincial, in holding the difficult balance, and in preserving the empire in its integrity from the flood which flowed over it with such disintegrating force.

The revolution in Hungary was completely successful, and Vienna itself was menaced by a Hungarian army. The heroism of an Englishman, General Guyon, rendered the greatest military services; and the eloquence and wisdom of a civilian, Louis Kossuth, guided the aspirations and resolves of armed Hungary. Ultimately, indeed, by the aid of Russian armies, the Austrian was enabled once more to tread out the fire of Hungarian liberty; but 1848 saw the gallant Magyars victorious.

The Viennese, notwithstanding their contiguity to the court and their close dependence upon the kasir, rose in arms, and obtained an extensive recognition of those rights which the people everywhere claimed. Those who by extreme measures and views marred the cause of freedom elsewhere, did so at Vienna. The socialist element was the ruin of the revolution. The thinking and the morally sound portions of the citizens were detached from the popular cause, in and out of Vienna, and the arms of the emperor finally triumphed over the barricades of the capital.

THE GERMAN CONFEDERATION.

Representatives from all the German states, where successful revolutions had been effected, assembled in Frankfort to form a closer confederacy of the German states. The ambition of Prussia and Austria found scope in this new sphere of action. The Prussian king was desirous to be elected emperor of Germany, and supposed that the Frankfort parliament would subserve his purpose. Never did an assembly of men utter finer, noble principles, than that, nor did any display such utter impracticability. They occupied the time in visionary schemes, which ought to have been devoted to secure the liberty of each individual state, and they sacrificed the interests of nations to the German invidiousness of race. The socialist party tried to force their own especial objects upon the assembly, and when unsuccessful, deluged Frankfort with blood. They followed the policy and conduct of their prototypes, the red republicans of Paris, in their resistance to the provisional government. The irreconcilable differences of opinion between the advocates of change gave kings advantage in the reactionary policy which they meditated before the year was out.

DENMARK.—SCHLESWIG-HOLSTEIN.

The inhabitants of the duchies revolted against the king of Denmark; this arose partly from that hatred to all other races characteristic of the German. The Schleswig-Holsteiners could not endure amalgamation, or even close alliance with

the Scandinavian race, much less with the Sclaves, should the Emperor of Russia inherit the throne of Denmark. The people of the duchies were desirous to be identified more with Germany, and this was, notwithstanding other pretences, the main-spring of the revolt. The King of Prussia, never true to his engagements, violated treaties, and marched his troops into the duchies. This dispute was one with which England might have been involved, as she had certain treaty obligations which rendered the possibility of such a result the subject of speculation.

RUSSIA.

The empire of the autocrat was undisturbed, but the revolutionary feeling seemed ready to invade it on all its European frontier. Large bodies of troops were gathered in Southern Russia for the purpose of entering the Turkish Danubian provinces, in order to suppress the spirit of revolution which there manifested itself, and found vent in a fervent political agitation. In Poland, also, the czar concentrated a great army. Warsaw bristled with bayonets; and a diplomatic message was sent to the court of Berlin, assuring it of the czar's friendly feeling, but warning it that, in case of any disturbances on the Polish frontier of Russia, if they were not very promptly suppressed, the Russian government would take measures to effect the security of its own frontier. The message amounted to a hint that if a Russian army were needed by the Prussian monarch, the czar was not unwilling to lend it, or, if need should exist, he would find a reason, without being asked for his aid, to cross the frontier, and put down democracy.

The following arrogant presumption of divine right was put forth by the czar:—

"After the benefits of a long peace, the west of Europe finds itself at this moment suddenly given over to perturbations which threaten with ruin and overthrow all legal powers and the whole social system. Insurrection and anarchy, the offspring of France, soon crossed the German frontier, and have spread themselves in every direction with an audacity which has gained new force in proportion to the concessions of the governments. This devastating plague has at last attacked our allies the empire of Austria and the kingdom of Prussia, and to-day in its blind fury menaces even our Russia—that Russia which God has confided to our care. But Heaven forbid that this should be! Faithful to the example handed down from our ancestors, having first invoked the aid of the Omnipotent, we are ready to encounter our enemies from whatever side they may present themselves, and without sparing our own person we will know how, indissolubly united to our holy country, to defend the honour of the Russian name, and the inviolability of our territory. We are convinced that every Russian, that every one of our faithful subjects, will respond with joy to the call of his sovereign. Our ancient war-cry, 'For our faith, our sovereign, and our country!' will once again lead us on the path of victory: and then, with sentiments of humble gratitude, as now with feelings of holy hope, we will all cry with one voice, 'God is on our side: understand this, ye peoples, and submit, for God is on our side.'"

On the whole, England preserved peace with all foreign states during the rage of this political tempest. Her attitude was morally sublime. The waves rose, and the

hurricane raged around her, but she towered above the billow and the tempest, her crown bright with the glory which the sun of liberty shed upon it. The stranger who found a refuge and a home within her borders, might well offer to her the tribute which the poet Moore so gracefully inscribed upon the pedestal of her freedom and her power:—

“Hail to thee, Albion! that meetest the commotion Of Europe, as calm as thy cliffs meet the foam; With no bond but the law, and no bound but the ocean, Hail, temple of liberty! thou art my home.”

IRELAND.

Famine and Pestilence.—Frightful as was the state of Ireland in 1847, it was still worse in the year 1848. Commercial affairs were embarrassed by so many disturbing circumstances, that public confidence was not restored throughout the year. The potato disease, agrarian outrage, Ribbonism, the repeal agitation, and an insurrectionary combination, all combined to restrict commerce.

The destitution of the people was terrible. It is unnecessary to go into the details of the horrid story: numbers perished of famine, and pestilence went forth with devastating fury where hunger had stricken. The “famine fever” carried away multitudes to an untimely grave. This disease extended also to the Irish in England. Many in London died of it, and great numbers in Manchester, but the affliction fell still more heavily upon Liverpool. Several Roman Catholic clergymen in those towns fell victims, nor did medical men escape. Efforts continued to be made by the government, and by voluntary charity, to mitigate the calamities which befel the country, but their variety and magnitude set at defiance all the noble efforts that were made, and the exhaustless compassions of the noble hearts that made them.

Continuance of Crime and Outrage.—The story of the two previous years was the same of this: crime raged everywhere; the hand of the assassin was constantly uplifted; and woe to the landlord who expelled a tenant for whatsoever violation of contract, and to the zealous Protestant, lay or clerical, who claimed a right to discuss his religious opinions, even in self-defence, or to circulate there, even in the most inoffensive manner.

Much of the crime of Ireland was to be attributed to a secret society which the government never made any adequate efforts to suppress, and which was commonly called the “Ribbon Society.” No means were taken by the respectable Roman Catholics to break up this exclusively Romanist confederacy, the chief object of which was the extermination of Protestants, and it was in 1848 that, in this respect, little was to be then expected from them. No public protest against the worst and the wildest of the ultramontane proceedings of previous years had been made by Roman Catholics, clerical or lay, English or Irish, or of any rank in life; and the “liberal Roman Catholics,” as they liked to be called, could not be surprised if Protestants began to put no faith in their liberal professions. Yet this section of the Roman Catholics had gained much confidence and respect with liberal Protestants in both countries. It was chiefly on their representations that the once formidable Orange societies were suppressed, and although these societies changed their constitution in

compliance with the law, yet they never acquired public confidence after: through the instrumentality of Mr. Hume’s exposure of the dangerous tendency of the confederacy, the law was put in force against them. The liberal Romanists were accustomed to say that Ribbonism was, so to say, but the complement of Orangeism; that if the latter were made illegal, the other would die of itself. This was believed by the whig and radical parties of the day; and after a feeble resistance on the part of the Tories, Orangeism was at last discountenanced by the state, and literally turned out of doors, after having been used and misused, petted and pampered, for half a century. Instead, however, of Ribbonism taking a voluntary departure, as lay and priestly liberal spouters of the popular Roman Catholic party presumed, it increased in extent, numbers, and virus. Portions of Ireland where it had previously no footing became the high places of its power; every town in England where Irish Roman Catholics lived had affiliated societies formed; London, Manchester, Liverpool, and Lancashire generally, counted their tens of thousands of sworn enemies to the English government and name, and to the toleration and even existence of Protestants. The oaths of the members were again and again revised, becoming more relentless and bloodthirsty, just as every concession was made to Roman Catholic demands. As the system of Ribbonism was in 1848, nothing more bloody and diabolical was ever conceived by lost human minds. Nothing like it _could_ exist except amongst a people in whose hearts bigotry had so uprooted all tolerance and charity, that their ferocity of zealotism would vie with that which an Irish Romanist described of others:—

“Men of the saintly murderous brood. To carnage and the Koran given, Who think, through unbeliever’s blood, Lies the directest path to heaven.”

Political Agitation.—The Repeal Association continued its meetings, and notwithstanding the prevailing distress, considerable sums were subscribed; some weeks as much as £80 was received. Mr. John O’Connell presided at those meetings, which were barren of all utility for the party, and destitute of the eloquence which in the days of O’Connell and Shiel enlivened and gave importance to public meetings.

The young Ireland party was all activity, and although few of its orators were really eloquent, there were many of them good speakers, several who rose to the rank of superior platform address, and one (Mr. Meagher) of surpassing eloquence. The Young Irelanders, on the whole, wrote better than they spoke, and very able articles appeared from their pens in the press, not only in Dublin, but throughout Ireland. The _Nation_ newspaper, conducted by Charles Gavan Duffy, a man of wonderful energy and courage, of discriminating literary taste and fine talents, was perhaps the most ably managed newspaper in the British Isles, so far as literary claims were concerned. The most passionate and exciting ballads, full of poetical and patriotic fervour, the most elaborate and elegantly written dissertations on Ireland, her history, music, poetry, language, and people, and popularly written and able articles on politics, filled its columns. Their influence upon the mind of the young men of Ireland who were of the Roman Catholic persuasion, and of many Protestants who were too liberal in sentiment to suspect their Roman Catholic fellow-countrymen of desiring religious ascendancy, was great. When John Mitchell considered that the

Nation had too little sympathy with red republicanism, he set up a paper called the _Irishman_, which he made the vehicle of the most outrageous doctrines, political and social. The leading articles of the _Irishman_ were written by Mr. Mitchell himself, with a nervous power, eloquence, boldness of thought, and audacity, which were very extraordinary. These articles were amongst the ablest specimens of newspaper writing which had ever been known in Ireland. Their effect was electric; they maddened the young men of the movement with a fierce spirit of nationality. The clubs read them with ecstasy, and John Mitchell was the idol and hero of all men of extreme opinions. His defiance of government, his incitements to rebellion, were so open and intrepid, that they seized upon the imagination of the people, and much disturbed the government. Pikes and side-arms were manufactured in every part of the country, and John Mitchell wrote various articles on the proper pattern of a pike, on the best way of using that “queen of weapons,” as he termed it, and to prove how hopeless it would be for either cavalry or infantry, disciplined on the ordinary system, to face corps of Irish pikemen disciplined on his plan. These military articles were eminently absurd, and excited the ridicule of military men; but the style in which they were written was so admirably adapted to the taste and tone of thought of those whom they were designed to influence, that they told wonderfully, and inspired confidence in the clubs and in the country, that means were at last found by which the trained troops of England could be encountered with a superior weapon.

Meanwhile the lord-lieutenant of Ireland, the Earl of Clarendon, proved himself a most vigorous governor. He entered into negotiations with the Orangemen, who were true to the throne to a man. One hundred and fifty thousand men of that confederacy, and of the Protestants who held their principles and sympathised with their party, although not enrolled in the lodges, were ready to take up arms on the side of the government, and many stand of arms were to be distributed should necessity arise. A very large distribution was made, and the Orangemen, and vast number of other Protestants, were ready to turn out at a moment’s notice. The number at the call of the government were quite sufficient, with a small body of troops as a point of support, to put down any force the disloyal could bring into the field. How such men as Mitchell, Meagher, O’Brien, and Duffey could fail to see that, was extraordinary. They still went on, talking of Ireland as about to “arise in her majesty and shake off the English yoke,” at a time when a million and a half of Irish Protestants would have preferred any yoke under heaven to that of their own Roman Catholic countrymen; and while some of the most papal of the Roman Catholics themselves had no hope in the movement, no confidence in the leaders, and a strong conviction that any effort against England was impracticable, and would lead only to a waste of blood. His excellency displayed such vigour that, early in the spring, two hundred and eighty thousand persons, comprising the wealth and intelligence of the country, signed a document expressive of their confidence. His lordship was keenly alive, also, to the influence of the press, and subsidised various papers to oppose the Young Irelanders. He did not display as much caution in this department of his policy as he did vigour and sagacity in other directions. He hired a man named Birch, who edited a paper called the _World_, which was very ably conducted. The terms on which his excellency put himself with Mr. Birch were discreditable to the government, and the

spirit in which he wrote and acted was insulting to the country, and when his connection with the Castle became known, the hands of government were weakened by the circumstance.

The negotiations with Rome were productive of more effect than giving subsidies to the press, for both sections of the anti-union agitation did their utmost to gain the priests over to their cause. The priesthood was, however, suspicious of the Young Irelanders, from the conviction that they were generally indifferent to religion. This impression was also received at Rome; and the English government, by its secret agency, did its best to strengthen that opinion. The pope had sufficient reason to dread any tendency to red republicanism in any part of the world where his disciples or subjects might be influenced by it. He accordingly issued a rescript, which created a powerful sensation in Ireland. The _Nation_ newspaper, and the press generally which sympathised with it, denounced the English government, and the English Roman Catholics, with having, by false representations, induced the pope to issue this document. The censures fell with especial weight upon the English Roman Catholic aristocracy, who were believed to have a peculiar prejudice against Ireland, and in this case to have allowed their antipathies of race and nationality to interfere with the good of their religion; for it was alleged that the promotion of agitation, and even revolution, in Ireland by the priesthood, was the surest way to make England concessive to the Roman Catholic clergy and people. It was also maintained that the severance of Ireland from England would give a wider scope to the influence of the church, and rescue one of her fairest provinces from the sceptre of a heretic sovereign. These different grounds were taken up by various organs of the press, according to their degrees of prudence, or the especial light in which they regarded the transaction. At all events, it was felt that the rescript would baulk the efforts of the Young Irelanders to engage any portion of the priesthood on their side, and greatly lessen the chances of their success. The Protestants of Ireland, ignorant of the true nature of the mission of Lord Minto to Italy, which the government organs systematically misrepresented, and ignorant also of the progress which the English government had made at Rome, through certain Roman Catholics of influence, considered the rescript as a _ruse_ on the part of the pope, acting in concert with the Irish episcopacy, to throw the English government off its guard. The Protestants were therefore stirred up to more vigorous preparation to resist the approaching insurrection, while, at the same time, the hopes of the opposite party were damaged, and depression was necessarily communicated to their exertions.

The following is a copy of the papal rescript, addressed to the Roman Catholic prelates of Ireland:—

“_Most Illustrious and Reverend Lord_,—The reports now for nine months circulated by the English newspapers concerning the political party-strifes in which some ecclesiatics have allowed themselves to be carried away, and the desecration made of some of the Irish churches for the purpose of aiding and promoting secular concerns—nay, more, the reports which have reached us relative to the murders which we are informed are so frequent, and by reason of which the clergy have been stigmatised, and some of them charged with imprudence, and as giving indirect

provocation from the pulpit, or, at least, extenuating the guilt of these murders—these reports must surely awaken the solicitude of the sacred congregation.

“This sacred congregation cannot bring itself to believe that such reports, so extensively raised abroad, can be true; nor can it believe that ecclesiastics have forgotten that the church of God should be the house of prayer, not of secular concerns, or the meeting-place of politicians; neither can the sacred congregation believe that ecclesiastics have ceased to recollect that they are the ministers of peace, dispensers of the mysteries of God—men who should not involve themselves in worldly concerns—in a word, men who should abhor blood and vengeance. Nevertheless, this sacred congregation deems it its duty to require certain and satisfactory explanation on all these matters, that it may know what importance to attach to the above-mentioned damnatory reports. Wherefore, at the suggestion of his holiness, I have deemed it my duty to forward this letter to your lordship, praying you to satisfy this most reasonable solicitude of the congregation; and, meantime, it exhorts you to admonish the clergy, that seeking the things which are of Jesus Christ, they sedulously apply themselves to watch over the spiritual interests of the people, and in nowise mix themselves up with worldly affairs, in order that their ministry may not be brought into disrepute, and those who are against them may not have wherewith to charge them.

“I pray God long to preserve your lordship.

“J. Ph. Cardinal Fransoni.

“Rome. From the Congregation of the Faith,

“January 3rd, 1848.”

Early in the year the legislature passed stringent laws to suppress crime and outrage in Ireland, and to bring the perpetrators to justice. Proceedings were also taken of various kinds against several of the more prominent promoters of sedition.

On the 15th of May, William Smith O’Brien was tried before Lord Chief Justice Blackburn and a special jury, upon an _ex officio_ information, charging him with having delivered a speech, on the 15th of March, in the parish of St. Thomas, Dublin, for the purpose of exciting contempt and hatred against the queen in Ireland, and inducing the people to rise in rebellion. The traverser pleaded not guilty. There could be no doubt that in point of fact and law he was guilty, for it would be difficult to cull language from a seditious speech more pertinent to the charge than that quoted by the attorney-general from the speech of Mr. O’Brien on the 15th of March. He was ably defended by Mr. Butt, an eloquent queen’s counsel. The jury could not agree, and by the consent of the attorney-general they were discharged. It was not expected that the jury would agree in a verdict; there was a determination among the disaffected that when summoned as jurors they would not give verdicts in charges of this nature. The government were determined to procure convictions, if possible, and the trial of Mr. O’Brien was followed by an indictment of T. E. Meagher. He was also arraigned on an _ex officio_ information for a seditious speech delivered on the same occasion as that which furnished O’Brien with an opportunity for his delinquent

oratory. When the jury returned into court they were asked if they had agreed in their verdict; the foreman replied, “We are not, my lord.” Mr. Favel, one of the jurors, remarked, “We are all agreed but one, and he is a Roman Catholic.” The report of this trial produced a very great sensation in England. Men everywhere remarked, “If a single Roman Catholic on a jury prevents the course of justice, a remedy must be found for such a state of things; there must be power accorded to the crown.” It was not generally understood in England that a Roman Catholic had often little reason to hope for justice when high party Protestants composed the jury.

In the Commission Court, before Mr. Baron Lefroy, and Mr. Justice Moore, John Mitchell, proprietor of the _United Irishman_ newspaper, was placed upon his trial. He had been arrested under the act passed in the beginning of the year to meet such cases, entitled, “An act for the better security of the crown and government.” True bills were found by the grand jury against him for felony. To each he handed in a plea praying that the indictment might be quashed, on the ground that one of the members of the jury was also a member of the town-council of the borough of Dublin, and as such disqualified. These pleas were put in merely to gain time, which led the attorney-general to enter a _nolle prosequi_ to each, and to file ex officio information against Mr. Mitchell. After various other artifices to obtain delay, the prisoner was compelled to plead, and he pleaded “not guilty.” The terms of the indictment were, that the traverser endeavoured to take away the style, honour, and royal name of our sovereign lady the queen, and to make war against her majesty, her heirs, and successors. The trial was chiefly remarkable for the bold and manly tone of Mr. Holmes, the prisoner’s counsel. Never did an advocate more fearlessly do his duty to his client and his country. The judge charged against the prisoner, and the jury, after three hours and a half’s deliberation, returned with a verdict of guilty. The sentence was transportation for fourteen years. The bearing of the prisoner was manly and dignified throughout. He was known to be a man of strong domestic affections, and of warm friendship, and the sentence was received with intense dissatisfaction throughout Ireland. The violent opinions and proceedings of Mr. Mitchell in his public capacity could not destroy the popular partialities for him as a brave, generous, and amiable man; it was allowed on all hands that the time had arrived for stopping his political career, but it was hoped that a temporary imprisonment would have satisfied the ends of justice. The public sympathy for his amiable wife and his little children was very strong, and it was desired by all classes that at the earliest possible occasion which would give the government an opportunity to exercise clemency, his sentence might be greatly mitigated.

It was allowed on all hands that the government were compelled to prosecute. In the pages of the _United Irishman_ he had uttered the most vehement defiance to the government, and to the lord-lieutenant of Ireland especially. He had invoked a prosecution, and in one furious article in the _United Irishman_ had told the vice-regal government that if it did not pack a jury and prosecute him, it was restrained only by cowardice. What the motives of Mr. Mitchell were in thus wishing to be made a victim it is impossible to affirm. Many believed that he wrote in the confidence that no Irish jury, however packed, would find him guilty; others supposed that he calculated upon a packed jury finding a verdict against him, but that he felt

sure of a popular revolt for his rescue, and thus desired to precipitate the insurrection. A large class of persons who did not sympathise with his doctrines and efforts, alleged that, foreseeing the utter hopelessness of the cause upon which he had embarked, he desired to bring matters as regarded himself at once to a conclusion, and as he could not withdraw with honour from the course he had espoused, he was anxious to incur the lesser penalty for sedition, than to risk encounter with the queen's forces as the leader of a bootless insurrection. His sentence was rapidly carried out, the populace making no effort to save him. The leaders found various excuses for not at once rising, and Mitchell was carried ignominiously away, and departed before their eyes, not an arm raised, not a blow struck by those who vehemently cheered him in his career of folly, and promised to follow him to the death.

During and immediately previous to these transactions, the Repeal Association and the Young Irelanders made a great parade, after their own fashion, for their own ostensible objects. The Young Irelanders called a convention of three hundred representatives or delegates from every part of the country; these were, in fact, to be the representatives of the insurrectionary clubs, ostensibly of the people. Smith O'Brien, the last time he appeared in the English House of Commons, had the temerity and absurdity to advise the premier to put himself in communication with this council of three hundred, and be guided in his measures by them. This was after the visit of the honourable member to Paris, to induce the French government to espouse the cause of insurrection in Ireland. His recommendation was received with shouts of derisive laughter, and his treason was chastised by the premier reminding him that he had taken the oath of allegiance, and at the same time was encompassing the dishonour of the queen's throne.

At a meeting of the Old Irelanders in April, in Conciliation Hall, a Mr. Aikins in the chair, the following business was transacted, which will show the position which that party desired publicly to take both to the Young Irelanders and to the government:—

"Mr. Maurice O'Connell proposed, and Mr. T. Galway seconded, the following resolutions, which were unanimously adopted:—'That we, this association, view with disgust and indignation the bill brought in by the ministers, entitled, A bill for the better security of the crown and government of the United Kingdom. That we consider such bill, instead of answering its professed purposes, to be of such a character as the odious six acts of Lord Castlereagh's ministry, with the aggravation that the latter were only legal and temporary, while this is intended as general and perpetual. That we consider such bill as in fact a bill to encourage the odious spy system, and prevent all discussion of the wants of the people, whether by the press or at meetings. That we therefore express our detestation of this measure, and call upon the repeal members of parliament to oppose the passing of such bill by all constitutional means.'

"Mr. O'Connell next proposed, and Mr. Galway seconded, a resolution, that it be referred to the committee to have a case prepared for counsel upon the construction of the convention act, 33 George HI., cap. 29. Mr. O'Connell observed that although his father had not matured the project of assembling three hundred delegates in

Dublin, he had never abandoned it up to the period of his death. (Cheers.) 'The liberator' had frequently consulted lawyers of great celebrity, to fortify his own opinion, but the result of his consultation with others was that he had grave and fearful doubts as to its legality. The project was accordingly suffered to remain in abeyance. They were determined never to advise or sanction any rash or precipitate act; they would act only within the law, and were anxious to ascertain whether the delegates could assemble legally in Dublin. This was the object of obtaining counsel's opinion upon the subject; and if the step could be taken with safety, and within the bounds of law, in the name of God they would take it. (Cheers.)

"Mr. O'Connell called the attention of the association to a resolution adopted at the last meeting of the Confederation, admitting 'to membership all enrolled members of the Conciliation Hall, on the same ternis as members of the Confederation.' It was also intimated that seats would be reserved at the meeting of the Confederation for the accommodation of the members of Conciliation Hall. Now he (Mr. O'Connell) wished to warn every member of the association against accepting that invitation, or making use of the privileges (if privileges they were) thus offered by the Confederation. (Hear, hear.) The safety of the association consisted entirely in keeping strictly within the letter of the law, and he hoped none of its members would directly or indirectly sanction or identify themselves with any of the proceedings of the Confederation."

The Orangemen, as a body, also took active measures. They addressed a memorial to the lord-lieutenant, protesting their loyalty, and offering their support.. Their assistance was accepted, arms were distributed to them, and there is no doubt they would have been bravely used on the side of the government. A knowledge that the Orangemen were arming in support of the crown, tended very much to depress the hopes and check the actions of the seditious. The rifle clubs adopted ball-practice, it is true, but they confined their shooting to the precincts of the clubs. When a petty insurrection did break forth, not a shot was fired by the clubs, after so much preparation on their part, and so much expenditure of eloquence in boasting of their bravery, and eagerness for the field.

The transportation of John Mitchell did not extinguish the zeal of the insurgent press. The _United Irishman_ was suppressed, to resume a new life under the title of the _Felon_, which was as true to its designation as treason could make it. A paper called the _Irish Tribune_ vied with the _Felon_ and the _Nation_, in open incentives to insurrection.

It was the policy of the leaders to wait until the harvest was gathered, and this was openly proclaimed by them, which enabled the government more effectually to frustrate their schemes. The editor of the _Felon_ counselled the people, however, to resist if their leaders were arrested, even if the harvest were not reaped. "After harvest if we may; before harvest if we must," was the counsel of this authority, and the general tenour of the advice given by all the chiefs. The government, upon these indications, took vigorous measures to enable the lord-lieutenant by extraordinary power to suppress or prevent any revolt; the _Habeas Corpus_ Act was suspended, and it was left to the discretion of his lordship to call out the Protestant yeomanry of

the north of Ireland.

The House of Commons having assembled on Saturday, the 22nd of July, for a sitting at noon, Lord John Russell rose, amidst profound silence, and proposed a motion of the most important character: a relation of the circumstance is introduced here, rather than in the parliamentary history of the year, because it places in a clearer view the progress of the Irish insurrection, and the government policy in respect to it. His lordship, after a pause in which he betrayed considerable emotion, moved for leave to bring in a bill to empower the lord-lieutenant, or other chief governor or governors of Ireland, to apprehend and detain, until the first of March, 1849, such persons as he should suspect of conspiring against her majesty's person and government. The noble lord having expressed his deep regret at being compelled to suspend the constitutional liberties of Ireland, and declared that, in his opinion, such a measure was absolutely necessary for the preservation of life and property in Ireland, for the prevention of the effusion of blood, and for the stopping of insurrection, proceeded to state the grounds upon which he rested his proposition. He considered it would be necessary for him to prove three things:—First that the present state of things in Ireland was fraught with evil; that it threatened danger; that we were on the eve of an outbreak, if not timely prevented. Secondly, that there were means sufficient to produce great evils and dangers unless some measures should be adopted to counteract them. Thirdly, that the measure he proposed was the most appropriate for its purpose. He did not propose to rest his case on any secret information known only to the government; but he would rest it on facts patent, notorious, and palpable. He then traced the history of the Irish Confederation, establishing, from the manifestoes published in the _Felon_ and _Nation_ newspapers, that the determination of these confederates was to entirely abolish the imperial government; to take away from the queen all authority in Ireland; to annihilate all the rights of property; to hold up the hope of plunder to those who would break their oaths of allegiance and join in rebellion; and to hold up the threat of depriving all those of their property who would remain fast to their allegiance, and refuse to assist in the insurrection. One of these manifestoes, entitled, "The Value of the Irish Harvest," set forth that there was growing on the Irish soil eighty millions of produce, and declared that it would be for the new Irish Council of Three Hundred to decide how this produce should be apportioned: thus showing that, by one sweeping confiscation, the masters of this red republic were prepared to disregard all existing social rules, and to reduce everything to anarchy. The noble lord then described the means of effecting their treasonable objects possessed by the confederates. All the intelligence received by the government proved that the organisation of the clubs was formidable, that it was rapidly progressing, and that in many parts of the country the plans of the associates were ripe for execution. He adduced the accounts obtained from Tipperary, Meath, Louth, Cork, Waterford, and other counties, as evidence of the formidable nature of the organisation of the insurgents; the information received from all quarters, and the opinions obtained from various persons, being to the one effect, that though persons of property and the clergy of all denominations were decidedly against an outbreak, no influence would have any effect in deterring many thousands of the younger men, especially of the farmer class, from joining in the

proposed insurrection; in fact, nothing was now wanting but the naming of the day and hour, to be fixed by the leaders, for carrying into effect this fatal revolution. The noble lord quoted a letter received that day from Lord Clarendon, in which the lord-lieutenant stated that the aspect of things was growing worse, and that the increasing disloyalty, on the part of the Irish people, was most rapid within the last few days. It might be necessary, he said, to introduce a measure for the prevention of the organisation of clubs, but the first, the most direct, the immediate and efficacious remedy for the existing evil would be the suspension of the _Habeas Corpus_ Act—a power to be given to the lord-lieutenant of at once securing the persons of those suspected of high treason. The government might have been justified in demanding this power at an earlier period, but they delayed it as long as it was possible. He implored the house, if their conviction was this measure should pass, to lose no time in arming the lord-lieutenant with the power requisite. Without it, rebellion could undoubtedly be put down, but it would be at the expense of blood—at the cost of much misery and ruin. No man could say what the consequence of withholding these powers even for a day would be. The government undertook the responsibility, however odious it might be, of proposing this measure; and they confidently asked the house to accept their responsibility, mindful of the blessings they would preserve, and aware of the risks they might incur.

A petition was presented to the house from the mayor and leading merchants of Liverpool, expressing gratitude for this measure, and declaring the apprehensions entertained from the active communications passing between the disaffected in Ireland and the large Irish population in Liverpool. In all the great towns of Lancashire sympathy with Ireland was expressed, and threats were made of firing the manufactories and the merchants' stores, to prevent the dispatch of troops to that country. A Mr. MacManus, a trader in Liverpool, was the most prominent person among the disaffected in Lancashire. This person procured a beautiful uniform of green and gold, and proceeded to Ireland, expecting to appear on the field of action as an extempore commander. The police were on his track, and he was arrested, with all his military finery, and committed to prison, without even having signalised himself in command of a corporal's guard of pikemen. Mr. MacManus was an honest man to the cause to which his whole heart was given. The night before he left for Ireland, he slept at the house of a merchant in Manchester, named Porteus; that gentleman used all his influence to dissuade his friend from so mad an exploit, but in vain. The embryo chief left a considerable store of pistols in the custody of Mr. Porteus, which were delivered to the chief constable of Manchester.

The vigorous proceedings of the executive, both in England and Ireland, compelled the Irish leaders, without waiting for the harvest, to decide upon a course of action. Their first project was to seize the metropolis. It was garrisoned by about twelve thousand men—a small force, had there been unanimity and determination on the part of the Irish people; but the leaders were obliged to fly to the provinces, or conceal themselves, in order to avoid arrest; and, in fact, they felt that the fortitude of the clubs could not be relied upon for so bold an enterprise. After all their preparations and their boasting, the members of the clubs—their chief reliance—were too few in number, and inadequately armed for such an exploit.

The project was then adopted for the leaders to repair to those parts of the country where the clubs were most numerous, and supposed to be most resolute, and there proceed with their organisation until the government attempted to arrest them, when the clubs were to rise for their rescue. It was supposed that the excitement produced by the arrest of the leaders was necessary to inflame the enthusiasm of the populace. How little did they know the real feelings of the multitude upon whose generosity and manhood they thus adventurously threw themselves!

On the 26th, the _Habeas Corpus_ Suspension Act arrived in Dublin, and warrants were issued for the arrest of all the club leaders. Troops were moved upon the principal points where it was desirable, for strategetic and political purposes, to concentrate them. Extraordinary precautions were taken for the capital. Sir Charles Napier was placed in command of a powerful steam squadron on the southern coast, Cork and Waterford being especially menaced by the guns' of the ships. A proclamation was issued by the viceroy declaring the clubs illegal, and "commanding all persons to withdraw from and abandon the same." On the last day of July, the privy council held a sitting at Dublin Castle, when it was resolved to place a number of baronies and counties under the Prevention of Crime and Outrage Act. By this means opportunity would be most easily taken to disarm the rebels. The districts put under the stern surveillance of this law were the counties of Kerry, Wexford, Carlow, Queen's County, counties of Galway, Kildare, Wicklow, Westmeath, Louth; seven baronies of the county Cork, eight baronies in the King's county, four baronies in the county of Cavan, two baronies in the county Armagh, and the barony of Newry, county Down. Proclamations of reward were also offered for the arrest of Smith O'Brien, £500; for Francis T. Meagher, John B. Dillon, and Michael Doheny, "each or either," £300. The ground assigned for the arrest was "having taken up arms against her majesty."

The _Hue and Cry_ gave the following descriptions of the personal appearance, ages, &c, of the leaders:—"William Smith O'Brien, no occupation, forty-six years of age, six feet in height, sandy hair, dark eyes, sallow long face, has a sneering smile constantly upon his countenance, full whiskers, sandy, a little grey. A well set man, walks erect, and dresses well.—Thomas Francis Meagher, no occupation, twenty-five years of age, five feet nine inches, dark, nearly black hair, light blue eyes, pale face, high cheek bones, peculiar expression about the eyes, cocked nose, no whiskers, well dressed.—John B. Dillon, barrister, thirty-two years of age, five feet eleven inches in height, dark hair, dark eyes, thin sallow face, rather thin black whiskers, dressed respectably, has a bilious look.—Michael Doheny, barrister, forty years of age, five feet eight inches in height, sandy hair, grey eyes, coarse, red face, like a man given to drink, high cheek bones, wants several of his teeth, very vulgar appearance, peculiar coarse, unpleasant voice, dress respectable, small short red whiskers.—Richard O'Gorman, junior, barrister, thirty years of age, five feet eleven inches in height, very dark hair, dark eyes, thin long face, large dark whiskers, well-made and active, walks upright, dress black frock coat, tweed trowsers.—Thomas Davy M'Ghee, connected with the _Nation_ newspaper, twenty-three years of age, five feet three inches in height, black hair, dark face, delicate, pale, thin man; generally dresses in black shooting coat, plaid trowsers, and thin vest.—Thomas Devin Keily, sub-editor of the

Felon newspaper, twenty-four years of age, five feet seven inches in height, sandy, coarse hair, grey eyes, round freckled face, head remarkably broad at the top, broad shoulders, well set, dresses well."

The peculiar personal appearance of the men who comprised, with a few others, those who fomented the insurgent feeling in Ireland is of some interest for the page of history, especially of contemporaneous history. The delineation was faithful, and aided very much in rendering concealment difficult, for it prevented the timid from affording shelter to the chiefs as soon as they became fugitives. For the masses, this minute description had an alarming appearance, as if government were well informed of its enemies.

At last the period arrived for the struggle, if ever it was to be made, and contemporaneous with the projected outbursts, movements were made by the Irish residents in Great Britain, the Chartists sympathising with them. The last week of July was especially an anxious period in Lancashire. The chief danger was apprehended in Manchester, but the only occurrence was a demonstration of the clubs, which was made on Tuesday evening, the 26th:—"The members of the several confederate clubs met in their respective club-rooms, and proceeded thence, about nine o'clock, in military order, to a large space of vacant ground adjoining the new Roman Catholic chapel, on the Cheetham Hill Boad. The number present was very great. No speech was delivered, but three cheers were given for 'the cause,' immediately after which the assembly dispersed. The intention of holding the meeting having been made known to the authorities, steps were taken to prevent any disorder."

In Liverpool, and on the opposite side of the Mersey at Birkenhead, it was necessary to resort to very extraordinary precautions. The following extracts from letters written from these places at that time, describe a state of considerable apprehension in the public mind, and the necessity of great exertions to intimidate the Irish population:—"There being reason to apprehend a movement in Liverpool, to act as a diversion in favour of the insurgents, should a rising take place in Ireland, preparations are accordingly being made by our local authorities to guard against a surprise. From the Liverpool papers of Tuesday we learn that twenty thousand special constables have been sworn in in the several wards of that town. Steps have also been taken to organise the corps and to appoint leaders. A place of rendezvous has been taken in each ward, and there a guard is placed night and day, to give the alarm, should the necessity for so doing arise. About one thousand men belonging to the dock works have been sworn in, and amply provided with formidable weapons, and all the public buildings in the town are guarded day and night. There can be no doubt, it is stated, that confederate clubs are being formed in Liverpool, for the avowed purpose of aiding the people of Ireland in any insurrectionary movements which may be originated. The idea is, that by rising in Liverpool, Glasgow, and other places, whenever a rebellion breaks out in Ireland, troops, instead of being sent across the water, will be kept at home to put down disturbances, and thus the forces of the government in Ireland will be considerably weakened. It is stated that clubs to the number of fifty have been established in the former town—that they number one

hundred men each. The subscription of each member is 1s. a-week. The money is spent in the purchase of fire-arms, the general price being about 12s. 6d. a-piece. Every night for the payment of subscriptions, a raffle takes place for the muskets, which the members are enabled to procure with the subscriptions. Several arrests have taken place; and it is hoped that the bold front displayed by the authorities will have the effect of preventing the contemplated outbreak. It may be stated here, as a circumstance showing how much on the alert are those who are endeavouring to repress the rebellious movements of the disaffected, that information was received yesterday morning by the authorities, that two sons of Hyland, the notorious pike-maker of Dublin, arrived from that city in Liverpool on Monday last. The magistrates of Birkenhead have requested the inhabitants of that town 'to act as special constables for six months.' A summons, signed by four magistrates—Colonel Gregg, Mr. W. Hall, Mr. J. W. Harden, and Mr. J. S. Jackson—was served to every householder, requiring them to attend on Monday at the Town Hall and take the necessary oath, and by half-past ten every respectable inhabitant was sworn. Accompanying the summons was a notice, signed by Messrs. Townsend and Kent, clerics to the magistrates, informing the parties that 'by disobedience to the precept a penalty of £5 would be incurred.'"

On the 27th the London _Times_ contained the following startling telegraphic communication, which caused the funds to fall, and created alarm throughout the provinces:—

"The whole of the south of Ireland is in rebellion.

"The station at Thurles is on fire, the rails for several miles torn up, and the mob intend detaining the engines as they arrive.

"At Clonmel the fighting is dreadful. The people arrived in masses. The Dublin club leaders are there. The troops were speedily overpowered; many refused to act.

"The military at Carrick have shown disaffection, and have been driven back, and their quarters fired.

"At Kilkenny the contest is proceeding, and here the mob are also said to be successful.

"No news from Waterford or Cork."

The writer of this History was in Dublin at that time, and remembers the city being thrown into a state of great excitement by the foregoing intelligence. The alarm was, however, of short duration, as the citizens of the Irish capital were better acquainted with the disposition of the people, and the probability of their sustaining a close contest with the troops. Besides, there existed confidence in the loyalty of the police, whether Roman Catholic or Protestant. An incident occurred in Dublin which greatly strengthened that confidence; it was thus related in the papers of the day:—"A policeman who attempted to arrest three of the club-men, who were armed, was stabbed in several places, and now lies dangerously wounded at Mercer's hospital. The brave fellow never let go his grasp of two of the fellows, and they and a third are in custody, and will, no doubt, be indicted capitally at the next commission. The

unfortunate constable (Byrne) at first, on being submitted to medical treatment, continued for some time to improve, but fever having set in, it was deemed advisable for him to make a declaration, and the magistrate on Thursday repaired to the hospital for that purpose."

Happily the telegraphic communication was found to be false; it was managed by persons in the interest of the insurrection, in order to spread alarm, to magnify the undertaking, and drive many of the Irish people, both in Ireland and Great Britain, to join the confederacy. But while the startling tidings of the telegraph were false, other news, authentic and very alarming, reached London concerning the movements of the insurrectionary chiefs, and the reception which they met with from the people. The following piece of correct intelligence influenced the funds, and produced a considerable degree of anxiety in the public mind:—

"On Sunday evening, July 23rd, Smith O'Brien and Thomas Francis Meagher reached Carrick-on-Suir at half-past five in the evening from Kilkenny. On their route, at Gallan, they addressed thousands, and told them for the present not to interfere with the police or soldiery, as they performed their duties, but when the word should be given, not to spare any who opposed them. Monday being fair-day at Carrick, the town was filled with country people, and Messrs. Meagher and O'Brien addressed the people in a more violent and determined strain than heretofore, stating their determination not to be arrested under the provisions of the new act. Both gentlemen were armed with pistols, which they are determined to use in the event of an attempt being made to capture them; they stated that they had spent their fortunes in the people's cause, and would hazard their lives for their service, and would now throw themselves on the protection of the people. A number of Waterford men, who were at Carrick doing business at the fair, begged of Mr. Meagher to come to Waterford, alleging that his fellow-citizens would protect him from arrest; but Mr. Smith O'Brien would not listen to that proposal, and brought off Mr. Meagher to Cashel, or, as others said, to Tipperary. Whilst this scene was enacting, two hundred of the 3rd Buffs marched in from the camp at Besborough, and took up their position in the barracks. Few of either party slept during the night; the Young Irelanders, however, did not do anything to disturb the peace of the town, but business is totally at a stand-still, and all in and about the town are resting on their arms, waiting for the battle hour. In Waterford the clubs are described as being well organised, and armed, and ready to act when called upon. The people seemed reckless from poverty; groups of workingmen might be seen in the streets by day and night, discussing politics and retailing the news of the hour. The queen's forces in Waterford were about one thousand strong. The _Rhadamanthus_ steam-vessel was in the river, and it was proposed to form two camps on the hills which command the town. In the country the peasants were arming; at Coolnamuck so much timber had been cut down for pike-handles, that the clubs would not allow any more to be taken thence, in compassion to the proprietor. At Mount Bolton the owner had it cut and left outside the wood for the people, to prevent further waste; at Lord Waterford's demesne more ash-trees had been cut down, and the useless parts left behind. All the anvils in the country ring with pike-forging, and every weapon is put in order for the fray."

The effect upon the government, the legislature, and the country, of the electric telegraph and other communications, false and true, may be judged of by the readers of these pages from the following speech by Sir George Grey, the home-secretary in the House of Commons, on Thursday evening, the 27th. Sir George had been questioned on this subject, and thus replied:—

“I have great satisfaction in stating that I have every reason to believe that the alarming accounts which have appeared in the later editions of the morning papers, and which were transmitted this morning from Liverpool by the electric telegraph, to the effect that insurrection had actually broken out in the south of Ireland, are totally destitute of truth. Sir, on receiving the copy of the paper containing the intelligence said to have been sent from Liverpool this morning, I dispatched a letter to the honourable member for Stoke-upon-Trent, to induce him to forward a communication by the electric telegraph to the mayor of Liverpool, requesting to know from him what information had been received in Liverpool from Ireland, and I received a despatch from that functionary, by the electric telegraph, stating that the information published this morning was accompanied from Ireland by a letter, dated Dublin, Wednesday evening, which represented that Mr. Conway, of the _Dublin Evening Post_, had received from the Castle a most dreadful rumour, which he was about to publish in a second edition of that paper. The writer then went on to say, that he took advantage of our queen’s messenger going off at the moment for London, to forward the intelligence in a parcel to Messrs. Willmer and Smith, of Liverpool, who, no doubt, would transmit it to London by the electric telegraph. The mayor of Liverpool, about an hour after this, further communicated to me that he is perfectly satisfied that the Irish intelligence, contained in the paragraph published in the morning papers, is utterly untrue, unless government have received a despatch from Lord Clarendon, confirming it. He also states that a queen’s messenger certainly had arrived from Dublin by a steamer this morning, and he left Liverpool by the half-past six express train. Now, it is perfectly true that a queen’s messenger was dispatched from Dublin last night. I had sent him over with a despatch, stating that the bill for suspending the Habeas Corpus Act had received the royal assent, and he left Dublin with a despatch from the lord-lieutenant yesterday evening, and arrived in London by the express train this morning by half-past one o’clock. This despatch certainly describes the state of the country in the neighbourhood of Clonmel, Carrick, and Thurles to be dreadful, but in relation to any actual outbreak it is perfectly silent, and makes no mention whatever. I have seen the messenger, and he states that he left Dublin at three o’clock yesterday afternoon, but he assures me he brought no parcel or letter for any party whatever. The messenger is stated to have come over by a special steamer from Kingston yesterday, that he started at three o’clock by the steamer which was reported to have had the queen’s messenger on board. Now, no queen’s messenger came over in that steamer; but I have received letters from the lord-lieutenant, written after the departure of the queen’s messenger yesterday afternoon, which contain no allusion to those frightful accounts. I am also assured by an hon. member that the hon. gentleman the member for Totness left Dublin yesterday by the steamer which leaves at seven o’clock, and that everything was tranquil when he left—that no rumour of the kind had reached his ears when the

steamer left the port. I will only add that I certainly shall endeavour to trace the wilful originator of the report. I have now given all the information in my power, and it enables me to concur with the honourable gentleman that these reports were fabricated for a wicked and malicious purpose. With respect to the state of Ireland, I may only add, that by the letters which I have received from the lord-lieutenant, it appears that Sir Charles Napier had arrived at Cork with his squadron, with an able and ample body of troops, who, I am sure, are always ready to discharge their duty with unflinching bravery, and who are, therefore, entirely free from the imputations which the reports circulated this day have unfoundedly cast upon them."

Lord Lansdowne was also questioned in the House of Lords, and made a similar reply, when the Marquis of Londonderry, in a very spirited maimer and amidst the applause of the house, inculpated the government for allowing the agitation in Ireland to rise to such a head, arguing that had the seditious writing, speaking, and acting of the confederates been timely prevented, the law would have been vindicated, public peace and order undisturbed, and many thousands of poor deluded men would have been saved from wandering after the _ignis fatuus_ of the Confederation. This philippic was well deserved by the government; had they really desired that the pear should ripen before they plucked it, they could not have proceeded otherwise than they did. The insurrection might have been crushed in the bud had the government exercised proper wisdom and firmness. It will scarcely be believed that during these exciting transactions, any member of the legislature would have the folly to introduce measures for repealing the union or holding parliaments in Ireland. There were, however, such persons: Fergus O'Connor and John O'Connell repeatedly advocated repeal, and Mr. R. M. Fox gave notice of a motion for holding a parliament in Ireland, which, on the 26th, he withdrew, amidst the derisive laughter of the house, the honourable member assuring it that he deprecated the union of repealers and republicans in Ireland. The government and the legislature were very much strengthened by the support which the executive received from Sir Robert Peel. In one of the debates upon the political condition of Ireland during that memorable week, Sir Robert, with great warmth and energy of manner, said, "He was prepared to give his unqualified support to the government. He trusted in the veracity of the ministers when they stated that the conspiracy was wide-spread and imminent, and he was ready to take his part with the crown against those mock kings of Munster of whom they had heard, and against those conspirators who were working to substitute for the mild sway of her majesty a cruel and sanguinary despotism. There was now no excuse for further delay in coping with the Irish traitors, and he for one was prepared to consent to the suspension of all the forms of the house in order to the speedy passing of this bill; and if additional powers should be required, he trusted the government would not hesitate a moment in bringing them forward. Having referred to the results of revolution on the continent, the right honourable gentleman concluded by reiterating his conviction that the throne of this country was firmer than ever fixed in the hearts and affections of the people."

The Roman Catholic clergy were never favourable to the Young Ireland party. They desired the repeal of the union, and even the entire separation of the two countries; but they had no confidence in the ringleaders of the Confederation, because, in their

opinion, some were sceptics, and some heretics, and all men of a judgment below the undertaking: of this a considerable body of the clergymen of the Romish church in Ireland were well competent to judge; they knew the feelings of the people better than any other class of men did, and in their own ranks were numbered a great many men of high attainments and superior intellect. Some of the very old clergymen in the south, who remembered the great insurrection at the close of the last century, and the sufferings which the people experienced, spared no efforts of persuasion and moral influence to prevent a like occurrence, while some of the younger and more active clergymen literally horsewhipped the people to their homes who had turned out. But for these efforts of the priests, there would have been an insurrection of some force; and had the priests given it active encouragement, a wide-spread and sanguinary rebellion must have ensued. Lord Glengall declared in his place in the House of Lords that the country was much indebted to the Roman Catholic priests for the preservation of the peace. The general discontent of the people, and their disloyalty to the throne, had been, however, much perverted by the bigoted spirit and inflammatory harangues of their teachers.

After vain attempts to rouse the people to turn out, Mr. O’Brien, with persistence and courage worthy of any cause, placed himself at the head of a mob of a few hundred peasants and labourers, and without any well-poised aim or determinate plan of action, proclaimed open revolt against the queen’s government. On the 29th of July he appeared as the leader of this hopeless corps, to make war against the mightiest empire in the world. He was, however, compelled to resort to some decisive measure by the proclamations of reward offered for his arrest, and by the efforts which were put forth immediately upon the proclamations having been posted up. Kilkenny was one of the principal _foci_ of the strength of the confederates, and O’Brien seems to have relied mainly upon the men of Kilkenny and Tipperary.

While O’Brien, Meagher, and a few others were mustering their poor forces, others of the leaders appear not to have taken very much precaution against arrest. Charles Gavan Duffy was taken early in July, so was Doheny, and several more of the most boisterous of the club chiefs. Mr. Blake, the county inspector of constabulary in Kilkenny, arriving at Harley Park, discovered that O’Brien and his forces were quartered among the colliers of Boulagh, within a mile of Ballingarry. He immediately sent to Callan, where the constabulary of the district had been concentrated for some days, to avoid being attacked in small parties by the populace. Nearly sixty men left Callan, under Inspector Trant. Mr. Blake sent to Kilkenny, and other military positions, for troops, which were dispatched so as to surround the neighbourhood where the confederates had mustered. The country people soon communicated to Smith O’Brien and his followers these facts; and Mr. O’Brien thereupon reviewed his force, consisting of colliers and peasants, variously armed. They all promised faithfully to stand by him. While thus engaged, Inspector Trant and his police detachment were seen approaching from Ballingarry, and the insurgents, numbering twenty to one, dashed forward to meet them. The police perceiving the disparity of force, made for a farm-house known as the widow M’Cormack’s. The mob broke their array, and rushed also to seize the house; but the police were first there, and barricaded it with the furniture and such other materials as were at hand. Mr.

O’Brien parleyed with the police, shaking hands with them through the lower windows, and used every persuasion to induce them to deliver up their arms, which of course they refused. The peasants and colliers then directed showers of stones against the doors and windows, and also opened a fire of small arms from an outhouse. This was replied to by the police, who killed several and wounded many others. O’Brien was perfectly incompetent to give any useful direction, and his men began to retire before the sharp practice from the fire-arms of the police, when at last the latter, advancing under cover of some low walls and haystacks, drove the crowd from the neighbourhood, O’Brien escaping on the inspector’s horse. Neither skill nor courage was shown by the assailants. O’Brien’s conduct has been criticised with much severity on this occasion; but it is false to represent him as having acted without spirit; he, of course, in giving directions to his party, placed himself where he might best do so, and avoid the aim of the police; but if he or his followers had been fit for the work they had undertaken, they would either have stormed the house or retired in order; and, possessing so intimate a knowledge of the country, they might have evaded the armed parties in pursuit, until, with increased numbers, they had fallen upon some place of arms which they would have made their _point d’appui_. As it was, their proceedings were ludicrous, and afforded subject-matter for _Punch_, which contained a caricature representing an army of Irish rebels scared by the shadow of a policeman. There can be no doubt that O’Brien would have dared anything which a sense of duty and honour dictated, and which opportunity afforded; but to lead an insurrection was a task utterly beyond his capacity. It is difficult to believe that the more crafty of the confederates were sincere in the language they employed in inciting him to the preposterous acts in which he took part. For instance, a letter written by Charles Gavan Duffy was found in Smith O’Brien’s portmanteau after his arrest, which contained the following absurdly eulogistic incitement to place himself in the foreground of the revolt:—

“There is no halfway house for you. You will be the head of the movement, loyally obeyed, and the revolution will be conducted with order and clemency; or the mere anarchists will prevail with the people, and our revolution will be a bloody chaos. You have at present Lafayette’s place, so graphically painted by Lamartine; and I believe have fallen into Lafayette’s error—that of not using it to all its extent, and in all its resources. I am perfectly well aware that you don’t desire to lead or influence others; but I believe, with Lamartine, that that feeling which is a high personal and civic virtue, is a vice in revolutions. If I were Smith O’Brien, I would strike out in my own mind, or with such counsel as I valued, a definite course for the revolution, and labour incessantly to develop it in that way.”

Had Mr. Duffy desired to precipitate a weak man—the leader of other weak men—into certain ruin, these extracts, and the letter from which they are taken, would be perfectly consistent and intelligible. Had Mr. Duffy himself been quite sure of escape, by some means, from the consequences of insurrection, and had he desired to aid the government in bringing the disaffection existing into actual maturity, such a mode of addressing the proud, brave, and honest man to whom he wrote, would be rational; but with the clergy and gentry of all sects in Ireland adverse to any such movement, and with a fourth at least of all the other classes in Ireland, except the

mere peasantry, equally hostile,—while many of those favourable to the Confederation were afraid to move hand or foot in its behalf,—such a letter, written by a man who ought from his position to have known Ireland well, is one of the most extraordinary episodes in the history of the eminently foolish transactions of the party.

After the wild affair at Boulagh Common, Smith O'Brien became a fugitive. There was no more preparedness or spirit to rise in his behalf than there had been for Mitchell; and indeed so destitute were leaders and people of any military knowledge or resources, that in any effort against the soldiery, the insurgents would have gone forth as sheep to the slaughter.

On the 5th of August O'Brien was arrested at the Thurles railway station, having taken a ticket at that place for Limerick. He was recognised by Hulme, a guard on the Great Southern and Western Railway, and the police and military were promptly summoned to Hulme's aid. General M'Donald treated the prisoner with all possible courtesy, and sent him to Dublin. The courtesies of the gallant general were rather disdainfully repelled. Mr. O'Brien requested his portmanteau to be sent for, as it contained various necessaries. This request was granted, but all papers which it contained were abstracted by the Irish secretary, and several documents and letters from the other leaders, of a treasonable nature, were discovered. Nine years after this event, when Mr. O'Brien as a pardoned convict was permitted to return to his country, he had the puerility to complain of this act in a letter to the public. The man who could fail to see the justice and propriety of such a step on the part of the government, was so far beyond reason on political matters, that all astonishment at the impracticability of his insurrectionary attempts during the autumn of 1848 ceases.

On the 28th of September Mr. O'Brien was put upon his trial at Clonmel. The trial lasted until the 9th of October, when a verdict of guilty was returned, and a strong recommendation for mercy, the jury stating that, on many grounds, they were of opinion that Mr. O'Brien's life should be spared. Probably every impartial person in the kingdom snared their views. The judges, however, recorded sentence of death.

The trials of MacManus, Meagher, and O'Donoghue resulted in verdicts of guilty, and sentence of death was recorded in each case. When they were brought to the court for that purpose, and asked what they had to say why sentence of death should not be passed upon them, Mr. MacManus delivered a manly and sensible speech, in a tone and with a manner so frank and direct, as to produce a strong impression in his favour throughout the court, as it did throughout the country, by all who perused it. The speech of Meagher was an eloquent failure; it appeared as if he had kept the noble and unfortunate Emmet before him as a model. He addressed the judges as if he were about to expiate his error upon the scaffold, whereas he knew, as all Ireland knew, that it was not the intention of government to put the sentence of the law in force. This circumstance gave an air of display and bombast to a speech that, if the realities of the speaker's position had corresponded with it, would have been thrillingly effective.

Soon after these events, a number of other participants in the revolt were put upon their trial for their connection with it, or for seditious writings. The following notices, under the head of “State Trials,” appeared in the papers of the day, and will sufficiently exemplify the general character of such proceedings and their results:—“The trial of Mr. Williams was closed on Friday se’nnight, by the acquittal of the accused. It appeared that he could not be fixed upon as the author of any of the articles indicted. Those which were most violent had been published during a period when he was confined to his room, and could not, and did not, take part in conducting the _Tribune_. Mr. O’Doherty, the part-proprietor of the _Tribune_, less fortunate than Mr. Williams, has been sentenced to ten years’ transportation. In Dublin the sentence on Mr. O’Doherty was not expected to be so severe. He is a young man, not more than twenty-two, and his high character for humanity, and the recommendation of the jury, induced the public to believe that, though the sentence would be severe, the punishment would not so nearly approach that of those who preceded him in his career. With his sentence, and the discharge of Mr. Williams, the commission terminated. Mr. Duffy still remains in the custody of the gaoler of Newgate.”

The sentence of death upon the prisoners at Clonmel was afterwards commuted to transportation, and this was carried into effect. The people of Ireland felt that the crown had acted with justice and clemency; and all regretted the necessity of visiting with so severe a punishment men whose conduct arose from fervent patriotism and honest purpose.

The case of Charles Gavan Duffy was the most remarkable of any which was brought before the Irish law courts in connection with the insurrection. Certainly, the charges brought against him were as clearly proved as were those against any other of the party leaders. Yet the trial was so managed, and juries were found so obstinate, that notwithstanding the appearance of the most pertinacious prosecution on the part of the crown, a conviction could not be obtained. The following extract from a journal published Saturday, the 23rd of December, exhibits the general character of the proceedings against Mr. Duffy, and the questions which were raised to postpone his trial and embarrass the prosecution:—

“On Friday (se’nnight) the important trial of Mr. Duffy commenced, before Baron Richards and Mr. Justice Perrin, and the first two days were consumed in arguments for and against the quashing of a former indictment found in the county of Dublin against the prisoner. On Monday the court decided the point. The motion of the prisoner’s counsel was, that Mr. Duffy be not called upon to plead to the indictment found against him by the grand jury of the county of the city of Dublin, because another and a similar indictment was put in against him in the county of Dublin; and as it would be an injustice to him to be called upon to plead to one indictment during the subsistence of another in which the crime laid was the same.

“The judgment of the court was, that the whole of the cases previous to the passing of the act 6 Geo. IV., cap. 51, were against the case made on behalf of Mr. Duffy, and that there was nothing in the act to take it out of the operation of those decisions. The act did not directly apply to the present case at all, and the court could not imply anything to disqualify the crown from taking whatever course it should think fit to

take in furtherance of the administration of justice.

“The counsel for the prisoner, however, had not stated all their objections; and on Mr. Duffy being called on to plead to the indictment, his counsel handed in on his behalf a plea of abatement, on the ground of the disqualification (by reason of non-residence, or not being householders) of two of the grand jury who found the bill. The counsel for the crown retired, and, ultimately, the further consideration of the plea was postponed to the next day.

“The court intimated that in the decision they had come to on the motion before them in the morning, they by no means desired or intended to leave Mr. Duffy open to the indictment found in the county along with that found in the city. Before he pleaded to the latter, the crown should declare what course would be adopted—whether a _nolle prosequi_ should not be entered on the other.

“Application having been made to rescind the order of the court made on Saturday, prohibiting the proceedings at the trial to be published in the newspapers until the trial had been concluded, the court refused to accede to the request.

“On Tuesday, the arguments on the plea, handed in on the previous day, engaged the court the whole day. Their lordships took time to consult the various authorities cited, before giving judgment. Before rising, the court refused to hear Mr. Duffy, who applied to have the order against the publication of the proceedings at the trial in the newspapers rescinded, and directed the application to be made by counsel; stating at the same time that the order must remain in force, unless it could be shown that the prisoner would sustain damage from the non-publication.

“On Thursday morning, Mr. Holmes inquired at what time their lordships would deliver judgment as to the validity of the plea in abatement? Mr. Justice Perrin replied that they hoped to be able to give judgment to-morrow (Friday). It was clear that, no matter what that decision might be, the trial could not be commenced until after Christmas.”

After many and intricate legal questions had been disposed of, Mr. Duffy finally escaped the meshes of the law, and resumed his avocations as proprietor and editor of the _Nation_ newspaper, which journal he conducted for a time with more moderation, although the government still allowed him an extraordinary degree of license.

Irish Agitation fob Rotatory Parliaments.—The extinction of the Irish insurrection did not suppress agitation. The moral-force Repealers kept up a certain amount of clamour: said much, but not to any purpose, and did nothing.

A considerable number of noblemen and gentlemen, more remarkable for their high position and character than for intellectual power, formed an association for the purpose of promoting what they called Rotatory Parliaments, which would lead to the frequent holding of legislative sessions in Dublin. On the 18th of December, a meeting for this purpose was held in Dublin, at the Northumberland Buildings, Lord William Fitzgerald in the chair. The meeting was but thinly attended, probably on account of the extreme wet which prevailed all day. Mr. Sharman Crawford proposed

the first resolution—“That the present mode of legislation for Ireland is at the root of all the difficulties under which this country labours.” Mr. Crawford referred all the evils under which Ireland laboured to English misrule and Irish landlords. Dr. Carmichael moved the next resolution:—“That amongst the many striking instances of the neglect which Irish affairs, even of vital importance, usually meet with in the imperial parliament, may be stated the failure of all attempts by the Irish members to improve the laws relating to medical charities.” The next resolution was as follows:—“That the present mode of legislation for Ireland tends to alienate the affections of her people; to prevent their industry and self-reliance, and would be impolitic even in a recently conquered country.” The fourth resolution stated:—“That the waste lands of Ireland offer a vast field of remunerative employment for her unemployed population, while the many abortive attempts that have been made to legislate on the subject in the imperial parliament sitting at Westminster, furnishes another argument for a meeting of the imperial parliament in Dublin.” All the resolutions were passed unanimously. Lord Massarene was then called to the chair; and a vote of thanks having been passed to Lord W. Fitzgerald, the meeting separated.

This agitation, which enlisted the attention of so many respectable persons, was never supported by the people. Had the priests, and their lay agents, and organs of the press favoured it, it would in all probability have attained to some degree of importance. The people began to lose faith in all associations, and the programme of this was not sufficiently _piquant_ for the political taste of the violent and bigoted sections of the community. The association met with some favour in high quarters in England, but not with so much as its promoters believed would be the case.

Religious Feuds.—Conflicts between Landlords and Tenants.—The social and agrarian warfare continued when the political fires were quenched. Men were waylaid and murdered on account of their religious opinions being too prominently expressed for the bigotry of their assassins, and the utmost religious animosity raged through the land. Landlords who were active in proselytising, or who in any way showed religious zeal or earnestness, were subject to insult and injury in every form.

The conduct of the owners of land was not generally forbearing and praiseworthy, while the laws were all designed to operate in their favour. The tenantry were not more just than the owners of the soil; and altogether the relations of landlord and tenant in Ireland were most unhappy. A letter written from Ireland at the close of the year, thus depicted the state of affairs:—“The evictions and house-levelling do not cease in activity. At Ardnacrusha, a little hamlet about two miles from Limerick, twenty houses were levelled on Monday. Thousands of the fertile acres of Tipperary are waste, and these are increased each day by further evictions. The case is the same in Limerick and in Clare. We find daily announcements of large farmers running away, and sweeping all with them. They grow alarmed lest their turn may soon come, and they evade the fate of others by leaving the land naked on the landlord’s hands. A few days since, in a district of Clare, while the farmers were at market with their produce, the landlord’s agents descended on the farmers, with a large body of armed followers, and without legal process or authority of any kind, it is said, swept away all

the stock on the land to satisfy the landlord’s claims. On the other side of the picture we find that a tenant, holding ninety-seven acres of land, had sold off everything, and, with the whole of the produce in his pocket, had reached Limerick, to emigrate, when he was arrested at the suit of his landlord and other creditors.”

Advent of Cholera.—Many as were the social and political evils of Ireland during the sorrowful year of 1848, there was a providential visitation which added to her miseries. Cholera made its appearance in several places during the autumn; the cases were not very numerous, but were in general fatal, and excited great apprehension as to the progress of the pestilence, which, in the following year committed fearful ravages. It was observable that the famine fever disappeared as this still more deadly enemy approached.

Such was the history of Ireland during one of the most eventful years in the annals of the world. She had passed through a terrible ordeal, and although not wholly uninstructed by it, yet any lessons it was calculated to teach were reluctantly received and imperfectly learned.

ENGLAND.

Political Events.—On former pages we sketched the violent political convulsions of continental Europe, and the relation which England bore to the changes which so rapidly took place: within her own confines there was much uneasiness, and some danger, but law and order triumphed over their adversaries.

The chartist confederacy put forth all its force, and its leader, Fergus O’Connor, assumed unwonted boldness, both in and out of parliament. Meetings were held in various parts of the country, in which the government was denounced for not employing the people; and the virtue (as it appeared to these assemblages) of appropriating the property of the landholders and manufacturers, was loudly insisted upon.

One of these meetings, which excited considerable apprehension, was held at Kennington Common, on the 13th of March. Much preparation appeared to be made by the chartist leaders to give it the appearance of a very great popular demonstration. Nearly fifteen thousand persons assembled, the greater number from curiosity, the love of mischief, or any other than political feeling. The speeches were inferior to those usually made at such meetings, and except in the more than usual amount of abuse offered to all who were not operatives, the meeting was not remarkable, and was dispersed by a shower of rain. The consequences of the assemblage were of more importance: many respectable persons were robbed and beaten; provision dealers were plundered, and a pawnbroker’s house of business was stripped of all valuable articles. Rioting subsequently occurred, although nearly four thousand police were in the neighbourhood or in reserve. This meeting seriously damaged the chartist cause in the metropolis. The upper and middle classes saw that plunder and molestation awaited them and the peaceable portion of the poor, if Chartism should gain the ascendant; and a determination arose to meet and suppress, with a resolute hand, the first outbreak. Early in April, fifteen of the rioters were put upon their trial for robbery with violence; eleven were convicted, and

sentenced to various terms of transportation. This infuriated their confederates, and preparations were made for another demonstration of immense magnitude, to which Mr. Fergus O'Connor gave all his energy and influence. It was proposed to hold another meeting at Kennington Common on the 10th of April, ostensibly to carry a petition to the parliament house for making "the Charter" law. One hundred and fifty thousand Chartists were expected to assemble from very great distances. It was generally believed that the intention was to effect an English socialist revolution. Probably on no occasion, since the apprehension of invasion from the great Napoleon, was the London public so much alarmed. The subject, of course, fell under the consideration of parliament, where Fergus O'Connor was accused of attending seditious meetings and making treasonable speeches; this he denied with the greatest effrontery, affecting to be a pattern of order and law, although it was notorious that he was bent upon revolutionary attempts, and that his main motive was to resent certain affronts offered to himself by the Whigs. He had been jealous of O'Connell, whom that party to a certain extent petted, giving him private power and patronage, while Fergus was treated, as he himself believed, without consideration. His first attempts at agitation were in his own country, Ireland; but O'Connell turned him into ridicule, and eventually denounced him. Fergus then saw that the only hope of becoming an agitator of name and influence lay among the discontented English operatives; and he sought fame and power in that direction by means unworthy of any man, and ultimately ruinous to himself and to many of his dupes. On Tuesday, the 5th of April, the following conversation occurred in the commons, which showed the apprehensions of government and of the public, the hypocrisy of Mr. O'Connor, and the folly of Mr. Hume, who, always meaning well, so often inflicted injury on the liberal cause by his imperfect judgment and decided prejudices:—

"Mr. J. Walsh inquired of the secretary of state for the home department, if the attention of the government had been directed to the notice issued by the chartist body, of their intention to hold a numerous public meeting on Kennington Common on Monday next, and to go thence in procession to the House of Commons, for the purpose of presenting a petition in favour of 'the people's Charter;' and if the right honourable baronet was prepared to take any steps to prevent the independence of the House of Commons from being overawed by any public meeting, or to protect the loyal and peaceable inhabitants of London? —Sir G. Grey replied that the attention of her majesty's government had been directed to the notice in question, emanating from a convention consisting of forty-nine delegates elected at public meetings held in several of the large towns of the kingdom. This notice stated that those delegates met in London for the purpose of superintending the presentation of a petition in favour of the Charter to the House of Commons, and to adopt any other course that might be deemed advisable in order to secure the passing of the Charter into law. It likewise stated that a great public meeting would be held on Kennington Common on Monday next, and that the parties composing that assemblage would march in a procession, regulated and superintended by marshals, with their petition to the House of Commons. The attention of the government having been called to that notice, and other information having reached them respecting the intended proceedings, the government had directed a notice to be issued, which would be

published in the course of half an hour throughout London, pointing out that, by the statute and common law of these realms, the intended procession was illegal, warning the loyal and peaceable subjects of her majesty to abstain from taking any part in the procession, and calling upon them to give their best aid to the constituted authorities towards preventing any disturbance, maintaining public order, and preserving the public peace.—Mr. F. O'Connor said, if there were the slightest intimation of committing a breach of the peace on the occasion of this procession, he would not be a party to the proceeding—that the parties concerned in the affair were peaceably disposed—and that every man of them would consider himself as a special constable, upon whom the preservation of peace was incumbent. Their whole object was to present to that house a petition, signed by between five and six millions of the people. The present announcement would certainly take the people by surprise.—Sir G. Grey could not see how they could be taken by surprise. The government had, at the earliest moment, taken the subject into deliberation, and resolved to take the course he had indicated.—Mr. Hume was sorry to find the government had taken up the subject so seriously, and advised them to rescind the proclamation."

Notwithstanding Mr. Hume's advice, the government did take it up as a serious matter, and the opinion of the public was with the government. Among other measures which the executive took to ensure security, the following were conspicuous:—"A large supply of fire-arms and cutlasses have been sent from the Tower to the East India House, and their different warehouses, the Custom House, Excise-office, the Post-office, Bank of England, the Mansion House, the various departments at Somerset House, the Ordnance-office, Pall-Mali, the Admiralty, and the different government offices at the West-end; also to a great many banking-houses in the city, and the dock companies. The clerks and persons employed in these establishments will be ready to act, if absolutely necessary, against any outrage that may be committed by a mob. The swearing-in of special constables is proceeding rapidly in Lambeth, Walworth, Camberwell, the Borough, and the districts on the Surrey side of the water, where the tradespeople and householders all show their desire to protect the public peace if called upon."

These preparations were followed by the following proclamation:—

"_NOTICE_

"Whereas the assemblage of large numbers of people, accompanied with circumstances tending to excite terror and alarm in the minds of her majesty's subjects, is criminal and unlawful.

"And whereas not only those persons who take an active part in such, assemblage, but those also who by their presence wilfully countenance it, are acting contrary to law, and are liable to punishment; and whereas an act of parliament, passed in the thirteenth year of the reign of his late majesty King Charles II., intituled, 'An act against tumults and disorders, upon pretence of preparing or presenting public petitions or other addresses to his majesty in the parliament,' it was enacted, 'that no person or persons whatsoever shall repair to his majesty, or both or either of the

houses of parliament, upon pretence of presenting or delivering any petition, complaint, remonstrance, or declaration, or other addresses, accompanied with excessive numbers or people, nor at any one time with above the number of ten persons.'

"And whereas a meeting has been called to assemble on Monday next, the 10th instant, at Kennington Common, and it is announced in the printed notices calling such meeting, that it is intended by certain persons to repair thence in procession to the House of Commons, accompanied with excessive numbers of people, upon pretence of presenting a petition to the Commons house of parliament; and whereas information has been received that persons have been advised to procure arms and weapons, with the purpose of carrying the same in such procession; and whereas such proposed procession is calculated to excite 'terror and alarm in the minds of her majesty's subjects.

"All persons are hereby cautioned and strictly enjoined not to attend, or take part in, or be present at, any such assemblage or procession.

"And all well-disposed persons are hereby called upon and required to aid in enforcing the provisions of the law, and effectually to protect the public peace, and suppress any attempt at the disturbance thereof.

"(Signed) C. Rowan,

"R. Maxne,

"Commissioners of the Police of the Metropolis.

"Metropolitan Police Office, Whitehall Place,

"April 6, 1848."

The government resolved wisely to permit the meeting to assemble, at the same time announcing that any attempt to cross the bridges in a formal procession would be resisted. By this means, which it was alleged had been taken by the advice of the Duke of Wellington, the immense concourse of the seditious was placed at the side of the river where they could do least mischief, and the passages of which by the bridges could be easily defended by a small force. The government thus showed the impotency of the chartist party, and its own respect for constitutional rights.

On the morning fixed for the great experiment London presented a strange appearance. A vast body of persons was called out to act as special constables. Men of every rank of life might be seen in this capacity, among them Prince Louis Napoleon Buonaparte, afterwards Emperor of the French, stood with his constable's baton as a custoder of order. The troops, which had been called from distances, and were billeted in the suburbs, rapidly concentrated at tap of drum and call of bugle. The Duke of Wellington, having the command, so disposed them that, without appearing through the day, they were ready to act at a moment's notice, wherever their presence might be necessary, and so posted that each detachment could readily render support to another, in a regular chain of defensive positions. From every part of the provinces chartist delegates arrived, by railway and coach, bringing large rolls

of petitions to be appended to the general roll.

Very early in the morning the Chartists gathered, in large bodies, at each separate rendezvous. Russell Square, Clerkenwell Green, and Stepney Green, were the grand points of meeting, where the greatest numbers assembled before marching to Kennington Common. Some of these processions were composed, to a great extent, of old men, boys, and women, and were attended by bands. Poles, surmounted by caps of liberty, flags, and streamers, were borne in the ranks or in carts. All these detachments were watched by mounted police and special constables, and at each rendezvous a large body of special constables on foot was drawn up to prevent any breach of the peace. The police being concentrated on various points, their ordinary duty was performed by special constables, who were distinguished by official staves and a white band round the arm. The shops were closed, and the public buildings were all well guarded and fortified. Buckingham Palace seemed the only place upon which no extra care was expended. No one supposed that the home of her majesty would be insulted, no matter what party was in the ascendant. As the troops took up their several positions within the public buildings, they were loudly cheered by the people in the streets, for it was evident, notwithstanding the immense chartist concourse, that an overwhelming majority of the Londoners was opposed to their proceedings. While matters were taking this course with the general public, the chartist delegates met in their usual place, the Literary and Scientific Institution, John Street, Fitzroy Square; Mr. Reynolds was called to the chair at nine o’clock. Mr. Doyle, the secretary, announced that a communication had been received from the head police-office, Scotland Yard, intimating that no procession from Kennington Common to the parliament house with the petition would be allowed, but that the petition itself would be permitted to pass the bridge in the custody of a suitable number of persons. Several speakers urged that the government should be set at defiance, and the petition proceeded with at all risks, until delivered at the House of Commons. Fergus O’Connor dissuaded them from any collision with the authorities. In a speech full of bombast and egotism, he declared that he was personally marked out for slaughter by the authorities. Thus, after all the bluster of this great tribune, as his followers called him, he showed the white feather. He was not prepared, like Smith O’Brien, gallantly to go out, with his life in his hand, and verify, by exposing himself to every peril and penalty, the words which he uttered when it was safe to utter them. Mr. O’Connor’s dissuasions in the interest of peace did not meet the approbation of the delegates, who seemed unanimously resolved to force their way across Westminster Bridge when the hour should arrive for so doing. In this spirit the meeting was adjourned to Kennington Common. The following graphic account of the departure of the delegates, their progress thither, and their arrival, was given by an eye-witness:—

“During this discussion two newly-constructed cars had driven up to the doors of the institution. The one intended for the conveyance of the monster petition was on four wheels, and drawn by as many very splendid farm horses. The body of the car was square, and surmounted by a tastefully constructed canopy. The attendants bore streamlets in the varied colours of red, green, and white, having appropriate inscriptions. The van or car in waiting for the delegates was upwards of twenty feet in

length, with seats arranged transversely, in so commodious a manner as to afford comfortable accommodation to the delegates, as well as several representatives of the press. The body of the car was inscribed with the motto, ‘The Charter. No surrender. Liberty is worth living for and worth dying for.’ On the left, ‘The voice of the people is the voice of God;’ while on the back of the car was inscribed, ‘Who would be a slave that could be free?’ ‘Onward, we conquer; backward, we fall.’ Eight banners were fixed (four on each side) to the car, inscribed, ‘The Charter.’ ‘No vote, no muskets.’ ‘Vote by ballot,’ ‘Annual parliaments,’ ‘Universal suffrage,’ ‘No property qualification,’ ‘The payment of members,’ and ‘Electoral districts.’ To the vehicle were harnessed six farm-horses of superior breed, and in the highest possible condition. The marshals (designated by a silk sash of the colours red, white, and green) having announced, at ten minutes past ten o’clock, all in readiness, Mr. F. O’Connor was the first to ascend the car. The honourable gentleman was received with loud cheers by the crowd which thronged John Street, and took his seat in front of the van. He was followed by Mr. Ernest Jones, Mr. Harney, Mr. M’Grath, Mr. Clark, Mr. Wheeler, Mr. Reynolds, Dr. Hunter, and other leaders of the convention. The rest of that body having also taken their seats, the _cortege_ set forth amidst loud cheers. Passing along Goodge Street into Tottenham Court Road, along High Street, Bloomsbury, the National Land Company’s office was reached, and from that building five huge bales or bundles, comprising the petition, with the signatures, were brought out, and secured on the first car, prepared for their reception. Again the cavalcade moved forward, and progressing along Holborn and Farringdon Street, reached New Bridge Street, the crowd increasing the train at every step. So far the shops in the line which had been passed were only partially closed. The utmost order prevailed, though the delegates were recognised by numerous friends and adherents, and at intervals most vociferously cheered. At the Waithman obelisk the alderman of the ward, Sir James Duke, was in attendance, with his deputy, Mr. Obbard; but up to this spot not a single policeman was to be seen. The windows of the houses in New Bridge Street were filled with spectators, and, amidst much applause, the moving mass took an onward course across Blackfriars Bridge. At this time, a strong detachment of a battalion of pensioners, under arms, and fully accoutred, were observed to have just landed at the city pier, from Woolwich, and were loudly cheered by the vast concourse that now crowded the bridge. On reaching the Surrey side, the first display of the civil force appeared. On each side of Albion Place, were drawn up, in military order, a strong body, in double file, of the L division of the metropolitan police, while the city police maintained the ground on each side of the bridge, which was within the limits of the city jurisdiction. This force was under the orders of Mr. Henry, one of the magistrates at Bow Street. Opposite the end of Stamford Street, a party of the mounted police, fifteen strong, under the command of an inspector, was stationed. In its passage along the Blackfriars Road to the Elephant and Castle, the crowd continued to increase, and hem in the vehicles on both sides; still, everything was peaceable and well-conducted. At the Elephant and Castle a new mass joined in the rear of those who, walking eight abreast, and followed the train from the place of departure, and on reaching Newington Church the appearance of the masses was most bewildering. Proceeding along the Kennington Road the common was reached at half-past eleven o’clock. Here had already assembled the Irish confederalists, and

the various bodies of the trades of London, who had intimated their intention of joining in the demonstration. These had taken their position in numerical order on the common, having arrived from their different rendezvous some time previously. Each trade had its emblematic banner, and the Irish confederalists displayed a very splendid green standard, emblazoned with the harp of Erin, and the motto ‘Erin go bragh.’”

The delegates addressed the meeting, and recommended peace, but chiefly on the ground that they were not prepared to contend with the armed force directed upon all the strategetic points where it might be made available. The magistrates and some of the chiefs of police were assembled at the Horns Tavern, Kennington, where they sent for Mr. O’Connor, requesting an interview. The mob supposed that he was arrested, and loud cries arose for his rescue. They were pacified, however, by his return, accompanied by Mr. M’Grath, and he was welcomed by the people with a tumult of cheers. He had given the magistrates assurance that order should be preserved, and he communicated the fact to the people, many of whom, believing that the day would issue in a revolution, were dissatisfied. Discussions arose on Cuffey advising the people to force Westminster Bridge, and present the petition themselves. The more moderate of the leaders, having their recommendations well backed by the statement that the troops were under arms and the police provided with cutlasses and pistols, prevailed, and the mob at last consented that the petition should be taken in a cab by Mr. O’Connor and certain others, and be presented by the honourable member for Nottingham that night. Upon the departure of Mr. O’Connor and the other delegates with the petition, a Mr. Clark moved the adoption of a petition to the House of Commons against the bill for providing more effectually for the security of the crown and government:—“The humble petition of the inhabitants of the metropolis of England, in public meeting assembled, showeth: That your petitioners have heard, with feelings of indignation and astonishment, that, by a bill which is now before your honourable house, for the ostensible purpose of providing more efficiently for the security of the crown and the government of these realms, it is sought to alter the law relating to the indefinite charge of sedition, and to punish by transportation that which is at present punishable by fine and imprisonment. That your petitioners regard this bill as an attempt to deprive the people of the right of expressing their just horror at the atrocious legislation which is generally practised by your honourable house, and your petitioners beg your honourable house to stamp this infamous measure with condemnation, by its unanimous and ignominious rejection.”

This resolution was seconded by a Mr. Kydd, and eloquently supported by Mr. Reynolds, and at half-past one the assembly broke up. The multitudes of course pressed to the bridges, but found their progress everywhere obstructed by police. Those who chose to cross the toll-paying bridges, were permitted to do so upon payment, under the eye of strong bodies of police. At London Bridge and Blackfriars, the crowd made desperate efforts to force their way across, and repeatedly swept the police before them, but were encountered by stronger efforts, and inch by inch driven back again. At Westminster Bridge the chief struggle was maintained, so that fears were entertained lest the bridge should give way beneath the swaying masses. On

these three points many of the more sturdy of the mob were severely wounded by the swords of the mounted police, and many were arrested and placed in custody under the charge of riot. When the “monster petition” was brought over Westminster Bridge, the excitement of the multitude assembled in Bridge Street and Parliament Street was very great, and the police had to disperse or capture many ill-disposed persons who had no public object in collecting together. The petition and chartist executive committee arrived at the lobby of the commons by half-past three o’clock.

The house met at the usual hour. When the gallery was opened, the chartist petition, of awful bulk, stood rolled up in front of the table. An unusual number of members were present; several peers occupied the seats allotted to them in the chamber, and the public gallery was filled. Mr. Smith O’Brien was in his place, and he was the object of much observation. After the transaction of private business, Mr. F. O’Connor rose and said—“Sir, I have the honour to present a petition signed by five million seven hundred and six thousand persons, and another signed by thirty thousand persons, praying for annual parliaments, universal suffrage, vote by ballot, equal electoral districts, no property qualification, and the payment of members. As I have already received so much courtesy from the house, I will say nothing further at present, but move that the petition be read at the table.”

The petition having been read by the clerk, Lord Morpeth rose to apologise for the necessary absence of the home-secretary. The noble lord said that the secretary of state would have been in his place, only that he was occupied with the numerous details of his office. It was his opinion, with regard to the matters of the petition, that he would not willingly be wanting in proper respect to a petition so numerously signed.

The petition was then received, and was, with difficulty, rolled down the floor of the house to the bar.

Mr. Lushington gave notice that on Friday night he would ask the first lord of the treasury whether he could hold out a distinct hope that, in the present session, he would introduce himself, or support the introduction of any measure for the extension of the suffrage, the abridgment of the duration of parliaments, the formation of electoral divisions, and the vote by ballot. This motion was hailed with loud cheers.

The strangers’ gallery, and wherever spectators could be accommodated, was full during this scene, and the public desire to hear what notice the lords would take of these events was nearly as great; there also every allowable space was occupied by anxious expectants, to hear the Duke of Wellington and other ministers express their opinions.

The Marquis of Lansdowne, in reply to a question from the Marquis of Northampton, stated that the meeting which had caused so much alarm throughout the metropolis had taken place at Kennington Common that day, and the multitude had been dispersed by the police without requiring the aid of the military, and without any difficulty. The petition had, he believed, been brought to the House of Commons in a cab, and had been presented according to the usual form.—Lord Brougham, who made his first appearance in the house since Christmas, remarked

that however high he held the right of petitioning, and of meeting for the purpose of discussing public affairs, he was decidedly of opinion that such a multitudinous meeting as that referred to, as well as the monster meetings of Ireland, could be viewed in no other light but as demonstrations intended to overawe the parliament and the crown by an exhibition of physical force. Although he had condemned the manner in which the Manchester meeting in 1819 was put down, it was his opinion, as well as the opinion of Lord Plunkett and the late Lord Abinger, that such a meeting could not be considered _bonâ fide_ meant for discussion, and that it was illegal.—The Duke of Wellington quite concurred in the law as declared by Lord Brougham, and considered that the metropolis had deep reasons for complaint in having trade interrupted, commerce suspended, the inhabitants kept in a state of alarm and terror for several days, owing to the assemblage of large bodies of people, whose only object could be, by meeting in such multitudes, to overawe the legislature. He sincerely rejoiced that the peace had been preserved without the appearance of a single soldier.—The Marquis of Northampton heard the explanations given with pleasure. He thought the country was greatly indebted to the noble duke, and also to all concerned, for their exertions in maintaining the peace.—The Marquis of Lansdowne declared that it was most gratifying to him and to the government to find the enthusiasm displayed by all the respectable inhabitants of the metropolis, who had come forward to enrol themselves as special constables. The noble marquis said that the exemplary conduct of the police was also deserving of the highest commendation.

Allegations having been made that the names attached to the petition were not nearly so numerous as alleged, and that many of them were forgeries, an inquiry was called for, and the committee on public petitions had the task assigned to it of making the investigation. The report made by the chairman to the house was most singular, showing that in fact the privilege of petition had been abused, and the house trifled with. On the 13th of April Mr. Thornley brought up the report of the committee on public petitions, which stated that upon the 26th of November last, a committee was appointed to report to the house the number of signatures attached to all petitions presented to that house, and that they had felt it their duty to make a special report to the house upon the subject of the national petition, presented on the 10th of April by the honourable member for Nottingham, signed by subjects of the British crown. The committee attached the utmost value to the right of petitioning, and to the exercise of that most important privilege by the subjects of this realm, and felt deeply the necessity of preserving the due exercise of such privilege from abuse, and having also a due regard to the importance of a petition so very numerously signed, had made that petition the subject of their present report. They felt bound, in the discharge of their duty, to represent to the house that with respect to that petition there had been a gross abuse of that privilege. The honourable member for Nottingham, upon presenting the petition, had stated that the petition was signed by upwards of five millions of persons. Upon the most careful examination of the number of signatures in the committee, with the assistance of thirteen law-stationer’s clerks, who acted under the superintendence of the various clerks of the committees, the number of signatures attached to the petition does not, in the opinion of the

committee, amount to two millions. It is further found that a large number of the signatures were consecutively written by the same hand. It was likewise observed that a large number of the signatures were those of persons who could not be supposed to have concurred in its prayer; among these were the name of her majesty, signed Victoria Rex, the Duke of Wellington, Sir Robert Peel, &c, &c. There was also noticed a large number of names which were evidently fictitious, such as “Pugnose,” “Longnose,” “Flatnose,” “Punch,” “Snooks,” “Fubbs,” and also numerous obscene names, which the committee would not offend the house or its dignity by repeating, but which evidently belonged to no human being. Upon the motion that the report do lie upon the table, a somewhat angry and personal discussion arose, in which Mr. Cripps was very severe in his censure of the conduct of Mr. O’Connor, in alleging that upwards of five millions of signatures had been attached to the petition. The motion was eventually agreed to. At the conclusion of the discussion Mr. F. O’Connor left the house; and a hostile meeting between him and Mr. Cripps having been presumed likely, in consequence of the personal nature of what had passed, Mr. O’Connor was, on an order of the house at a late period of the evening, taken into the custody of the sergeant-at-arms, but was subsequently released, and a reconciliation with Mr. Cripps effected.

Throughout the year attempts were made by the Chartists to create disturbances, and many of them were arrested and punished for riot, assault, or sedition. The leaders were very active in disseminating among the working classes opinions adverse to the rights of property and of society at large. These proceedings injured the cause of electoral and parliamentary reform. There were many members in the House of Commons, and many persons of influence throughout the country, who were favourable to some of the principal political opinions put forth in “the people’s Charter,” but there was no sympathy among these classes for the economical and social theories of the party by which the Charter was chiefly upheld. Reform in parliament, which was still desired by the people at large, was thus postponed by the alarm which the extreme views and violent temper of the Chartists created amongst the classes who possessed property, and amongst religious and peaceable citizens.

VISIT OF FRENCH NATIONAL GUARDS TO LONDON.

The political excitement of the times was much increased by a visit to London, made at the end of October, by more than a thousand National Guards of Paris, in full uniform. Aged persons who remembered the first French revolution, and the subsequent wars, were somewhat alarmed at this sudden appearance of French uniforms. The masses of the people welcomed the peaceful invaders, and the British Guards fraternised with them. Every public place was thrown open to them, and in the theatres and public gardens they were greeted with applause, the bands performing French national music. The visitors departed, expressing their high sense of the cordiality with which they had been received.

COMMERCIAL AFFAIRS.

This year was one of severe trial to Great Britain. The credit of many great mercantile houses was shaken, and many failed. The distress which prevailed at the

beginning of the year, both in Great Britain and Ireland, disheartened the trading community, and impeded the usual course of business. When the French revolution suddenly burst forth, business received a shock such as only political events of the greatest magnitude can communicate; but when that event was followed by a series of continental revolutions, destroying the old European system, and convulsing nearly all the great monarchies, commercial affairs were nearly paralysed. The threatened disturbances in Ireland, and the chartist agitation at home, aggravated the evil effects which so many other causes produced. Banking accommodation was extremely difficult of attainment, and the funds fell very low. About the end of March affairs assumed some hopefulness, and the funds rose; but so many events crowded on in rapid succession, like dark clouds impelled by the storm, that these encouraging indications were checked. Still, public confidence in the stability of British institutions sustained public credit, and the disturbed state of other countries likewise caused the investment of capital in England to a surprising extent, keeping up the funds, and extending commercial transactions. As soon as the great chartist demonstrations of April were over, and the safety of the government placed beyond doubt, monetary and mercantile matters rapidly improved; and although English merchants and bankers suffered from the fluctuations of credit on the continent, yet the security of England reacted upon all European commerce, and caused the continental losses of our capitalists and traders to be far less than could have been expected in a season so politically tempestuous.

THE COBDEN TESTIMONIAL.

Soon after the repeal of the corn laws, it was resolved by certain friends of that measure to give Mr. Cobden a testimonial of national gratitude for his services. The public knew his deserts, but they did not know that he had consumed his fortune in their behalf. The business of Mr. Cobden was that of a calico-printer, which he carried on in the neighbourhood of Manchester. By the excellence of his colours, his execution, and the novelty and good taste of his patterns, he created a vast and distinctive trade, which he necessarily neglected while conducting the agitation against the corn laws; and the result was perilous to his business and ruinous to his purse. Viewed in this respect the national testimonial was but an act of justice, apart from any consideration of the great services which he rendered to the cause of free-trade. None but those immediately cognizant of his efforts could conceive his herculean labours to promote the repeal of the corn laws. His eloquence was characterised by intelligence, directness, the absence of all meretricious ornament, and an eagerness to convince and carry his hearers with him, which was singularly effective. His addresses were not only free from all ambition as to ornate or attractive language, but also as to original or characteristic thought. There was such an entire absence of all self-seeking about the man, and he so thoroughly identified himself with the people whose interests he pleaded, that, possessing a fair readiness of speech, and aptness for _ad captandum_ argument, he could not fail to secure the favourable attention of earnest men on a subject where their interests were largely engaged.

Although Mr. Cobden promoted the agitation of the question on broad national grounds, he, nevertheless, looked at it from a class point of view more particularly, and this was one of the elements of his power with the traders. When he began the agitation it was as a manufacturer, for the redress of a grievance which affected his class; it was as he went on in the agitation for that object, that he began to look upon the question as one of general interest; and then his speeches assumed a higher tone and a larger scope, and sound principles of political economy were uttered by him with all the force of truth which he felt, and which he had capacity ably to express. It could, however, scarcely fail to strike men that whether in Free-Trade Hall, in Manchester, or in the commons house of parliament, his speeches on free-trade were rather those of the merchant than the philosopher or the statesman. On all political and politico-economical questions, the tone of his mind was the same: he regarded them rather in reference to the effect likely to be produced upon commerce in its immediate or proximate interests, than in the ulterior consequences, or the great political and ethical principles involved. The interests of trade, rather than the honour of England, engaged his heart. He was, consequently, accused of being deficient in patriotism; but no public man was more willing to sacrifice himself for the welfare of the people of England, or was personally less selfish. He was kind, amiable, truthful, honourable, and upright; and desired with all his energies to promote, not only the welfare of his countrymen, but of all men.

A public subscription having been set on foot, the committee by whom it was conducted reported the result of their labours about the end of April. Seventy-nine thousand pounds were contributed; it would have been twice the sum, but for the distress, and the disturbance of public affairs by the torrent of revolution which was sweeping over the continent. The birthplace of Mr. Cobden, in Sussex, was purchased for him, and the remainder of the money invested according to his wish. A sum of £10,000 was raised for Mr. Bright, whose services, however great, were justly deemed inferior to those of Mr. Cobden. Mr. Bright, however, was supposed to possess considerable pecuniary resources, although he also spent freely his private property for the public welfare; and it was alleged that, but for his liberality in this respect, Mr. Cobden could not have maintained his post in the face of so many personal sacrifices. Mr. Bright was the less popular man of the two, partly from temper, and a certain _hauteur_ which contrasted unfavourably with the more simple and cordial manners of Mr. Cobden, partly from his religious opinions bringing him, under a sense of duty, into collision with the Established Church on various irritating questions, such as church-rates. The general attainments of Mr. Bright were higher, and his oratorical talents far superior to those of Mr. Cobden. The latter frequently fell beneath his ordinary standard of effectiveness, Mr. Bright scarcely ever. The author of these lines has frequently attended public meetings in which these gentlemen took part, and he hardly remembers a single instance in which Mr. Blight’s speech did not possess a high order of eloquence; whereas many of Mr. Cobden’s speeches were only interesting on account of the facts they detailed, and the clear manner in which they were communicated.

Some time after these contributions of goodwill from the country to the two principal orators of the Anti-cornlaw League, a similar tribute was paid to the

services of Mr. Archibald Prentice, for many years editor and proprietor of the _Manchester Times_. This gentleman was the founder of the Anti-corn-law Association, out of which the League sprung, and, as an able writer and public speaker, did much to prepare the way for the men who afterwards conducted that agitation to victory. Mr. Prentice fought bravely and pertinaciously for the repeal of the corn laws, long before the wealthy supported it, or the suffrages of statesmen and men of influence gave it a leading position in the questions of the day.

It was not to the credit of some others (a very small number) who were advocates of the League, that they were as eager to set on foot subscriptions for themselves, as the public were for those who had really earned them. One individual, who hung about “the League rooms,” and made speeches often undesired by the committee, and when inconvenient to their arrangements, was very indignant that a subscription was not raised for him. Without eloquence in speech, temperance in council, or discretion in action, he became prominent only by overbearing boldness, and an ever-meddling officiousness.

AGITATION CONCERNING THE NAVIGATION LAWS.

Early in the parliamentary session, the government indicated an intention to repeal the navigation laws. In this they were supported very ardently by Mr. Hume, Mr. Ricardo, Mr. Cobden, Mr. Bright, Mr. Milner Gibson, and by many other ardent friends of the Manchester school. The time was ill-chosen for any movement on this subject, because the seamen as well as the shipowners were opposed to any alteration, and the disturbed state of continental Europe, and indeed of the British Isles, made it extremely unwise for government to irritate a class whose physical energy, peculiar position, and popularity with the people, gave them, if disposed, peculiar capacity to disturb the peace.

The party which desired the repeal of the navigation laws maintained that free-trade in ships and seamen was as necessary as in other matters, and the cotton districts called loudly for the change. The leader of the shipping interest was James Mather, Esq., of South Shields, a gentleman not connected with ships or shipowners, but moved by patriotic feelings alone. Mr. Mather possessed all the qualities necessary for a leader in the agitation of a great political and politico-economical question. With a highly cultivated intellect, conciliatory address, fearless spirit, and astonishing physical energy, he was just the man to please at once the educated mariners, and the rough, bold, hardy tars. The gentlemanly bearing of Mr. Mather was also calculated to impress his opponents favourably, and a graceful persuasiveness of mien and language, aided in qualifying him for that object. Mr. Mather grappled with the arguments of Cobden, Bright, and the other leaders of the cotton districts, whose influence at that time, fresh from their victory over the corn interest, made it important to confute the arguments they addressed to the public. Mr. Mather addressed a letter to the editor of the _Shipping Almanack and Gazette_, which produced a great impression where the arguments of the Lancashire leaders had been accepted as irrefutable. It is desirable to reproduce this document, as the controversy was one of the most important in its day, and the policy ultimately adopted remained longer open to question than any other of the anti-protectionist

measures which were adopted. Mr. Mather's letter was the more effective, because it exposed an artifice to which Mr. Gladstone especially resorted, but in which he was supported by the Lancashire members:—

"The combined attack of Messrs. Gladstone, Bright, Cobden, and two or three others in the House of Commons, upon the navigation laws, on account of their preventing the importation of a few cargoes of cotton lying at Havre, and demanding a suspension of these laws for the immediate necessities of the manufactories, and the advantage of British shipping, was as unfair and discreditable a proceeding as party men have for a long time been guilty of. For the sixty-five thousand bales of cotton at Havre, brought across the Atlantic chiefly by French ships, it is, they assert, of advantage to British shipping to destroy that amount of carriage on the long voyage, and allow this cotton to be brought from France to England, which a few trips of a steamer would easily effect. The very statement of the matter, in plain language, refutes the absurd assertion. You are losing the carriage of thirty cargoes of cotton, these gentlemen asserted. No, it is replied, for by preventing their admission from France, as there is a great abundance of cotton in America, we are gaining the carriage of thirty cargoes on the long voyage—a portion in British ships; and you will get cotton just as cheap, nay cheaper for the manufacturers, as the expense of transhipment will be saved.

"But the cotton is immediately wanted, they assert. Now this was a mere pretence, which the parties clearly understood, to give a momentary effect to a most untenable charge. Events have corroborated this.

"Within a few days thirty-three vessels have brought seventy-three thousand six hundred and forty-nine bales of cotton from America; and such is the great want of it, sufficient to annihilate or suspend the navigation laws, that the manufacturers only bought nineteen thousand six hundred and sixty bales, while nine hundred and seventy bales were bought for exportation; that, instead of requiring cotton, they are exporting it from the manufacturing district in which it was stated to be so much required.

"If cotton was in such demand, would it be upwards of thirty per cent, lower than it was last year, and would it be falling in price as it is now? Prices are at present within ⅛d. per lb. of the lowest they were ever reduced to. For two months it has been a falling market, and at the very moment these men were advancing such assertions, was the cotton market in a state of decline, giving the broadest contradiction to them. If cotton had been wanted, the price, as in any other article, would have been high, not low, and would have been advancing, not receding, especially with a limited supply.

"The importation last year was the smallest for ten years. Increasing previous to 1845 for fifty years, it has since rapidly decreased, and now it has been found that nearly one-third less stock is required than there was in 1843, 1844, and 1845.

BALES.

In 1843 it was..... 1,557,597

1844..... 1,490,984

1845..... 1,652,731

1846..... 1,134,194

1847..... 1,087,058

“And in this year (1848), up to this month, it has been ascertained that one-third less stock than in the previous low year of 1847, is more than enough. (See _George! Holt &c.; Co.’s Circular, and Liverpool Prices Current_, for the 7th of April). In addition, a reduction of upwards of thirty per cent, in price, from that of last year, indicates a still more limited requirement.

“While the stock is only, up to this period for this year, three hundred and twenty-two thousand eight hundred bales, against the corresponding period last year, four hundred and ninety-two thousand six hundred bales; showing, with upwards of one-third less stock one-third less price—a demonstrative proof that the supply is infinitely greater than the demand. Whenever the price advances, indicating demand, the American supply will be poured into the market without any necessity for importations from France. Had the navigation laws been suspended, as urged by some of their opponents, and the French cotton brought in, it would only have been a drug in the market, useless and unsaleable. More has since been brought in than was lying at Havre, at thirty per cent, less than they have had it for two years, and they will not buy it. It was not wanted; only an excuse was wanted to strike a blow—a most unfair one—at the navigation laws, and the British commercial marine, which all the little opponents throughout the country, in their gross ignorance, have quoted and applauded.”

Meanwhile, the agitation of the mariners and shipowners was exceeding great, especially in the three grand centres of maritime activity—the Thames, the Mersey, and the Tyne. Along the north-east coast of England, the tidings that the government meant to repeal the navigation laws sped with rapidity, and produced the most intense excitement. Public meetings were called at Hull, Scarborough. Whitby, Sunderland, Newcastle-upon-Tyne, Shields, and Berwick, which were attended by great numbers, and which were eloquently addressed. The sailors attended these meetings with boisterous enthusiasm. They were under the impression that a great wrong was about to be perpetuated, and they were resolved to do anything which loyalty allowed to defeat the meditated alterations in the law. Under the guidance of a man less just and scrupulous, and less jealous for the constitution than Mr. Mather was, much mischief might have arisen from the sense of grievance which the sailors entertained. That gentleman, however, so conducted the agitation as to gain a large measure of public support, and to defeat, during that year, the proposed alterations.

A convention of shipowners and seamen of the Tyne was held at Shields, one of the largest and most important ever held in England. Mr. Mather proposed the following resolutions, which were enthusiastically adopted: they will disclose the purpose and opinion of that community:—

“Resolved—That we will resist, by every legal and constitutional means in our power, the repeal of the navigation laws, so violently agitated by theorists and self-interested men, which were adopted, and have been sustained, by the wisest statesmen in all ages for the support of the shipping and seamen of Britain, to prevent the cheap ships and ill-fed and badly-paid foreigners from underselling and destroying the British mercantile marine.

“Resolved—That we pledge ourselves, on arriving in London, to take measures, in conjunction with all the seamen there, loyally and respectfully, as becomes British seamen, to lay, personally, an urgent memorial at the feet of her majesty, warning her of the consequence of driving British seamen into the service of a foreign state, where that protection and encouragement are freely given them that, by the repeal of the navigation laws, will be denied them in their own country; and humbly entreating her majesty to interpose her royal authority for the protection of that class of men who, in time of war and danger, her ancestors and this kingdom have ever found their best protection and their greatest glory.”

At this meeting Mr. Mather was deputed to proceed to London, and lay the statements of the shipowners before the government. A speech made by that gentleman at Shields, places the controversy in the light in which it was then viewed by the shipping interest:—

“All the maritime laws that have guided the policy of this great state for centuries, that have made her ‘great, glorious, and free,’ are to be repealed under the most frivolous pretexts. Mr. Labouchere, the organ of the government, a supporter of reciprocity and equal rights to the commercial marine of the world—British and foreign—propounds a measure in which he bestows all the preponderating advantages upon the opponents of his own country. Had the act being that of an enemy it would have been proper. The whole foreign and colonial trade is to be given up to foreign shipping, free and unfettered, while that of Britain is to be bound down hand and foot, and scarcely capable of moving. First, then, your ships are to be built of taxed timber, 15s. and 20s. per load, exclusive of its freight, and expenses as much more, and to go into competition with the foreign ships with not a shilling per load duty or freight. You are not only obliged to compete with your heavily-taxed ships, and to pay foreigners freight to bring you the timber to build them, but you are obliged to carry three-fourths British crews in these offered-up trades, while the foreigner’s crews are to be all of his own country, half-paid and half-fed. You know well the wages and feeding of foreign crews; you have all been witnesses and are daily witnesses of it. It is a truth, and undeniable, that these foreigners have only from 15s. to 25s., the highest wages per month. It is thus with Danes, Russians, Prussians, Swedes, and Norwegians, while your wages are more than twice as much—60s. per month. They can be fed, too, on 6d. per day—in most instances, much less; while British seamen cannot be fed under 1s. per day, to feed them as their climate and constitutions require—hence their extraordinary energies. Yet, with these great disadvantages, in ships, wages, and provisions, it is determined to risk three-fourths of the commercial marine of Britain in a contest with foreigners that must be overwhelming. But Mr. Labouchere feels no difficulties, has no political

qualms of conscience, in thus offering up a sacrifice three-fourths of the commercial marine of Great Britain. He says, ‘Look at the results of the same system tried so far back as the beginning of the seventeenth century in Holland—the Dutch by free trade became the most prosperous nation in Europe. Look at her great commercial marine. Under it the carriers of the world—her ships were on every sea.’ It is very surprising that this gentleman did not continue to follow history in that country and at home since that period downwards. The iron-headed Cromwell, great by his acts, had the sagacity to perceive that the commercial marine was the soul of the navy, and that as long as the Dutch had the carrying trade, Britain and other colonies were in danger. So he strengthened the old restrictive laws of Richard II., Henry VII., and Elizabeth, and passed the navigation laws, under which the British commercial marine has been protected to the present time, with the exception of the tampering they have met with lately. And what has been the result? The Dutch, with her free-trade system, has sunk her commercial marine to the lowest condition, while Britain, with her protective system, has grown a commercial marine, the greatest the world ever saw—her ships in every sea, her flag overshadowing the world. How does it happen—and let Mr. Labouchere and the whig government answer—how does it happen that the Dutch commercial marine has been ruined by the free-trade system, and that we have grown great, _pari passu_, by a restrictive system? But figures are appealed to by the present government to show that since the introduction of the reciprocity treaties, or free trade in a limited extent, our commercial marine has greatly increased.

“These figures Mr. Labouchere adduces as a strong argument in favour of Mr. Huskisson’s relaxations, commencing at the former period. Observe these figures more closely, and you will find that the tonnage of the United Kingdom, to which the reciprocity treaties apply, have increased considerably under one-half, while the trade to which they did not apply has more than trebled its tonnage. To overwhelm the defalcations in the British trade with the reciprocity states, by the extended or more prosperous state of the general trade, was both unfair and disingenuous. Yet, this has Mr. Labouchere not a moment hesitated to do. Knowing, for he must have known, that the British commercial marine, in its trade with the reciprocity states, had either decreased or only in a smaller proportion increased with those states, it was a great fallacy and a deceit for him to proclaim it as the source of prosperity. How stand the facts with the reciprocity countries.

“In twenty-two years, then, there has been a decrease of British tonnage employed in three of the five principal reciprocity states, and an enormous increase of foreign tonnage in four of the five states. In the two states where British tonnage has increased, the foreign, or the tonnage of the same states, has infinitely surpassed it; in Denmark, 2793 to 82,284; and in the United States, 160,129 to 281,924; and yet a British minister of state cites the cause of the increase of British tonnage to the reciprocity treaties as a reason for this momentous change. In thirty years averaging twenty of the reciprocity treaties, our tonnage has increased only 38 per cent., while our population and its wants have increased 50 per cent., and imports 104 per cent. Thus, in every phase that the question is presented to us, the shipping appears to have kept no pace with the other interests of the kingdom, presenting to our view some great obstructive cause; and that cause, I humbly submit, is the reciprocity

system adopted so generally in 1824. Notwithstanding which, here have we a government insisting upon extending, without a moment's hesitation, this system which has already so deeply injured us, to three-fourths of the commercial marine of this country. And what are the flimsy pretences in addition? Why, that Prussia has threatened on one hand, and the United States coaxed on the other, and that British masters and mates are intemperate, and British seamen insubordinate. I will take the libel first, and ask Mr. Labouchere and the whig government how it happens that British ships, commanded by such masters and manned by such crews, are at the great marine insurance office of the world, Lloyds, always insured 1 per cent., 1 ½ and 2 per cent, lower than the eulogised foreign ships, with their masters and crews? Will they explain that indubitable fact? And also, I beg to know of these sage legislators the cause that in the winters of 1846–47, out of two hundred and ninety-four corn-laden British ships from America, there were only three foundered, while out of four hundred and thirty United States' ships performing the same voyage, with similar cargoes, seventeen foundered. And how out of the same number four British only were stranded, while there were twelve American? Not a fourth part of the casualties amongst the British that there were amongst the United States ships; yet the Americans are an experienced, gallant, and well-conducted race of seamen. These things gave the broadest refutation to such a calumnious charge. It is not wise for a minister of state of Britain to proclaim to the world a character of the bravest and most important class of men of Britain, that disgraces them indelibly, injures the property of their employers, and dishonours the country. The twenty thousand gallant schoolmasters afloat that are busy day and night, educating and developing the powers of the future defenders of Britain, making them able and worthy sons—the ablest and worthiest of their great country—to be thus traduced by those who should ever and above all protect them, is an act of the most revolting nature."

The effect of Mr. Mather's exertions were seen in a grand demonstration on the 9th of February, in London, which, in deference to the civic authorities, was made on the river, rather than, as originally intended, in the streets of London and Westminster. According to the _Shipping Gazette_, there were ten thousand seamen from the Tyne and its neighbourhood in the port of London that day. On the evening previous to the demonstration, the crews of all British vessels in the Thames were in a high state of excitement, full of preparation for the morrow. Between three and four hundred vessels were in the Pool, the Gallions, Bugsby's Hole, and Longreach, and their crews manifested the utmost eagerness to show their sense of what they considered their rights. The next day a grand procession of boats, partly tugged by steamers, proceeded to Westminster Bridge. The vessels and boats carried the union jack, and various flags; the sailors were dressed in their holiday suits, and bore the words "Navigation Laws" round their hats, in large yellow letters, the masters and mates in gilt letters. The _Standard_ newspaper estimated the number of seamen in the procession at about fifteen thousand. The banks of the river and the bridges were crowded with spectators, whose sympathy was shown in every way that the most enthusiastic popular feeling could evince. Cheers rang along the river, cannons were fired, and the leaders of the demonstration, Mr. Mather, Captain Smith, and Mr.

Butchert, were received everywhere with the loudest plaudits of the people. The appearance of the boats and steamers, manned by tars in their best attire, and bearing gay flags, was exceedingly picturesque. Perhaps no metropolitan sight so imposing had been witnessed by the generation of Londoners then living. The wind was boisterous and the sky lowering; the procession had also to make its way against tide; but these obstacles only broke the formality of the line of procession, while evoking an activity on the part of those who manned the boats, which heightened the interest of the scene, giving characteristic traits to a procession afloat, which in gentler weather it would not have exhibited. Even the cloudiness of the sky aided the picture, which would have been seen to less advantage under a glaring sunshine; yet, occasionally, the clouds broke away, and the sun fell upon the scene with that splendour, which, if wholly wanting, would have deprived the view of much of its effect.

The following is a copy of the memorial presented by the deputation:—

“TO HER MOST GRACIOUS MAJESTY.

“_The loyal and humble memorial of the masters, mates, seamen, shipwrights, and other naval artizans now assembled in London, and the delegates representing the outports of the kingdom_.

“May it please tour Majesty,—We, your majesty’s loyal and dutiful subjects, beg most respectfully to approach your majesty to lay this humble memorial at the foot of the throne, believing that the subject-matter of it involves not only the well-being of your memorialists, but the security of your majesty’s dominions in every part of the world.

“Your majesty’s memorialists have learnt with deep regret and indignation that it is seriously contemplated to repeal the navigation laws, the principle of which, for the protection and encouragement of British ships and British seamen has been the undeviating policy of this maritime state for nearly five hundred years.

“Your memorialists most respectfully and loyally, but firmly, as ardent friends of their country, which they sincerely love, beg to represent to your majesty that the repeal of the navigation laws will bring ruin on your memorialists and the commercial marine of Britain.

“That by such a measure, admitting the cheap foreign ships, half-paid and ill-fed foreign seamen, of which your memorialists have the most correct personal knowledge, it will reduce, by a competition, the lowest in the world, the condition of your memorialists, and their families, and strike a blow at their very existence.

“That thus your memorialists will be driven to seek employment in another state, speaking the same language and possessing similar laws, where seamen’s interests and seamen’s rights are carefully attended to, and where thousands of British seamen have already found protection—so weakening your majesty’s empire, and giving additional strength to an already great maritime competitor.

“Your memorialists, therefore, urgently pray your majesty to throw your royal protection around your memorialists, and the commercial marine of Great Britain,

whose predecessors in all ages in time of war and danger, your ancestors and this kingdom have ever found their best protection and their greatest glory.

“God bless your majesty, and counsel you in wisdom, your petitioners will ever pray.”

This demonstration, while it postponed the repeal of the navigation laws, did not avert various modifications in our maritime code, which were made in the ensuing year. The consequences were not so disadvantageous as those who objected to the experiment feared, whereas the abettors of repeal contend that free trade in ships and sailors has proved, like free trade in corn, advantageous to the country.

Soon after the demonstration, Sir George Grey wrote to Mr. Mather, assuring him that her majesty had received the memorial in the most gracious manner.

REWARDS FOR INDIA SERVICE.

The conduct of the officers and men, who had served so gallantly in the Punjaub, received the approval of the country, parliament, and the throne. Medals were struck off for officers and privates alike, and clasps appended for the separate battles of Sobraon, Aliwal, and Perozashooshah. Honours of various kinds were conferred upon the officers who had distinguished themselves. Lieutenant Edwardes was promoted to the rank of major; but the Company’s being a seniority service, the friends of routine vigorously opposed the gallant and skilful young lieutenant’s promotion. He was also made a C.B. The Company, in other and substantial forms, indicated its approval of this officer’s very valuable services.

REFORM OF THE CAMBRIDGE UNIVERSITY.

The syndicate, regarding the study of classics and mathematics as the basis of a superior education, yet nevertheless was of opinion that greater encouragement ought to be afforded to the pursuit of various other branches of learning, which in the general community were acquiring more importance, recommended various improvements in the curriculum to that end. The study of mental and moral philosophy, natural history, chemistry, &c, were in future to be stimulated, and every facility afforded to those who desired high attainments in these and some other branches of learning. This movement was not very popular in the university, but gave great satisfaction to the general public.

THE COURT.

There were but few incidents which especially concerned the royal family, but these were important. On the 18th of March her majesty gave birth to a princess, her fourth daughter. The baptism took place on the 13th of May, in the private chapel at Buckingham Palace. The Archbishop of Canterbury officiated. The Duke of Mecklenburg-Schwerin, the Duchess of Saxe-Meinengen, and the Grandduchess of Mecklenburg-Strelitz, were the sponsors, represented by Prince Albert, the queen-dowager, and the Duchess of Cambridge, as proxies. The name of the princess was Louisa Carolina Alberta. The queen gave a state banquet in the picture-gallery, in honour of the occasion, and afterwards an evening party..

On the 27th of May her Royal Highness the Princess Sophia died at Kensington Palace. She expired in her arm-chair, painlessly, at the age of seventy-one. She was the twelfth daughter of George III., and was born on the 3rd of November, 1777.

PARLIAMENTARY PROCEEDINGS.

West-India Interest.—On the 3rd of February parliament reassembled after the Christmas recess. When the usual preliminaries on those occasions were over, the first matter of business was in connection with the West India interest, which complained much of distress, and attributed it to imperial legislation. Lord George Bentinck, who became the leader of the West-India, as well as of the country party, moved for a select committee of inquiry into the condition of the West-India colonies. Mr. James Wilson and Mr. Bernai delivered themselves more happily than the other honourable members who engaged in the discussion. The motion was agreed to without a division. This was followed by a motion on the part of the chancellor of the exchequer for a loan of £200,000 to certain of the West-India colonies. On the 10th of June Lord John Russell proposed certain remedial measures for the West-India colonies, which gave rise to long and intensely bitter discussions; but the government succeeded in carrying substantially through parliament its proposals. During these discussions Mr. Hume made himself very conspicuous as a champion of the West-India planters, and showed an indifference to the rights, liberties, and interests of the labourers, irreconcilable with correct views of civil and religious liberty, and with the honourable member’s own professed liberalism where popular claims were concerned. The part taken by Mr. Bright gave great offence to the anti-slavery party, who considered it more consistent with his interests as a Lancashire cottonspinner, than with his profession as a quaker and an anti-slavery man. In the course of these debates, Lord George Bentinck, in indignant terms, denounced Lord Grey, as the head of the Colonial-office, for returning to parliament garbled extracts from the reports and despatches of colonial governors. In the lords, Earl Grey defended his conduct from this imputation; but Lord Stanley, with uncommon eloquence, reiterated the charge. No public man ever came out of a personal discussion less favourable than the noble minister for the colonies on this occasion. The simple truth evoked was, that while a committee of the house supposed that they were possessed of full and complete reports, they were supplied with only curt and crude extracts, calculated to place matters in the ministerial light, but not really affording the committee the opinions of those whose views they purported to be. This practice was, unfortunately, common with great officers of state; but it seemed to be so much beneath the high reputation of Earl Grey, that the public were astonished and scandalised. Few modern events tended more to destroy the popular confidence in eminent public men, and with the people Lord Grey never recovered his popularity. He had been guilty of a trick which ought to have been punishable by parliament, for it was incompatible with all just views of ministerial responsibility.

Financial Measures of the Government.—The Whigs had for some time proved themselves to be indifferent financiers. In this respect Sir R. Peel had for years maintained a reputation superior to that acquired by any of the whig leaders. During this year the government was not successful in reconciling either parliament or the

country to their plans of revenue. Their defeats were signal, and their victories very hardly won. Soon after the meeting of parliament, Lord John Russell made a financial statement, from which it appeared the income fell short of the expenditure by nearly three millions. Lord John estimated that the balance for the year 1848–9 would show a deficiency of more than two millions. To meet these adverse balances upon two years, his lordship proposed that the income-tax, which was to expire in April, should be continued for five years, and be increased from sevenpence in the pound to one shilling. This proposal was received by a burst of ironical cheers, and other sounds indicative of the strong disapprobation of the house. His lordship stated that Ireland would not be included in the measure, as from her recent and present sufferings, she was unable to bear increased taxation. This statement was received with the most violent and vehement shouts of disapprobation from the English and Scotch members on the ministerial side of the house, and the most boisterous cheers from the Irish members on both sides—the opposition, generally (with the exception of the exultant Irish conservative members), remaining silent. The opposition to the income-tax out of doors was very energetic, so that on the 28th of February the chancellor of the exchequer came forward with an amended budget. He proposed that the income-tax should continue at the same rate for three years. After a warm parliamentary opposition, led by Mr. Hume, the government resolutions were carried.

Bill to legalise diplomatic intercourse with Rome.—A bill for this purpose was introduced in the lords by the Marquis of Lansdowne. It was opposed by the Duke of Newcastle and the Bishop of Winchester with great earnestness, the latter particularly objecting to the expression “sovereign pontiff” in the bill. The influence of the Duke of Wellington secured the second reading without a division. On the committal of the bill, the illustrious duke proposed the substitution of the words “sovereign of the Roman states” for those of “sovereign pontiff.” The Whigs, always ready to conciliate their Roman Catholic supporters at the expense of principle, offered the utmost resistance to the duke’s proposal, which, in spite of his great authority in the house, was only carried by a majority of three. In the commons the bill was also carried, and by large majorities. The opposition to it was badly led by Mr. Anstey; the chief champion of the measure was the celebrated Irish orator, Richard Lalor Shiel. During these debates the Whigs, and especially the members of government, adopted the vocabulary of Roman Catholics, such as “the holy father,” “the holy see,” “the head of the church,” &c. Mr. Shiel exceeded the bounds of prudence in this respect. Still, while from some quarters a warm opposition out of doors was offered, the great bulk of the people in Great Britain regarded the progress of the measure with indifference.

Bill for the Alteration op the Navigation Laws.—It has been already shown that the intention of the government to make some alteration in these laws was the occasion of a fierce agitation, and of one of the most remarkable popular demonstrations ever made in this country. A variety of circumstances tended to determine the government. The free-trade party insisted upon it as necessary to carry out their principle; and the legislative council and assembly of Canada, had, in 1847, adopted a joint address to the queen, praying for the opening of the St. Lawrence to all nations, and the abolition of the navigation laws. From various other colonies

remonstrances as to the operations of these laws were constantly arriving at the Colonial office; foreign powers had also expressed complaints and offered reciprocity. On these grounds, as well as on sound principles of political economy, the government pressed for a decision of the house against the continuance of the state of the laws as they stood. Sir Robert Peel gave the government a very effective support, declaring that these laws could not possibly be preserved on their present basis. Mr. Hume, who was a very forward champion of English radicalism and colonial monopoly, at first objected to the new policy, but in equivocal and undecided terms, and finally supported the government. Mr. Gladstone spoke as if for the purpose of showing that he could consistently support either side, as he practically opposed both. Mr. Cobden made a “peace-society” speech, as illogical as it was inappropriate, in reply to which Mr. Disraeli delivered an oration, the statistics of which were for him unusually accurate; and confuted the allegations upon which Mr. Cobden based his theory, that we did not require to nurse a marine for martial purposes. Mr. Disraeli satirised with great effect the representations of the _quies gentium sine armis_, which Mr. Cobden had been so much in the habit of making before 1848. The appeal to the patriotism and glory of the country, with which the honourable member concluded his speech, was followed by the cheers of the whole house The government, however, triumphed, but was deterred by the opposition out of doors, and the feelings of the seamen, which their demonstration had so plainly indicated, from pressing forward its views in the form of a bill. Leave, however, was granted to bring in a bill on the subject, the consideration of which was postponed to another session.

Bill for the Removal of Jewish Disabilities.—The impossibility of a Jew sitting in parliament, in consequence of the form of oath containing the expression “upon the true faith of a Christian,” gave much umbrage to the Israelitish community, and the general public sympathised. The election of Baron Rothschild, along with the premier, in the representation of the city of London, drew attention to this subject with revived force. The government brought in a bill to enable Jews to sit in parliament, the house, in their case, dispensing with the form of oath to which they were opposed. Mr. Augustus Stafford proposed that the bill be read a second time that day six months. He was very ably and eloquently answered by Mr. Monckton Milnes. After adjournments and fierce discussions the government, as usual, triumphed by a large majority. In the House of Lords it was especially opposed by the Earl of Ellenborough. The most effective speech delivered by the opposition was that made by the Bishop of Oxford; but it was marked by a party acrimony so intense as to weaken much the force of its eloquence.

He accused the premier of having gained his return for the city by the bribery to which rich Jews resorted on his behalf. This he found it necessary to apologise for and withdraw. The bill was lost by a considerable majority against it.

Irish Encumbered Estates Bill.—Very early in the session the lord-chancellor introduced a measure to facilitate the sale of encumbered estates in Ireland. This bill was resisted chiefly by those it was designed most to benefit; it was, however, ultimately carried, and under its administration a very large portion of landed

property in Ireland changed hands. The operation of the measure was beneficial, but was not sufficiently sweeping in its powers, and failed to produce all the good that a better concerted scheme might have worked out.

Measures for Repressing Insurrection in Ireland.—On other pages a minute account of Irish suffering and sedition has been given, and references were then made to the proceedings in parliament which had reference to these transactions. On the 21st of July, Lord John Russell, amidst the cheers of the house, gave notice of motion to enable the lord-lieutenant of Ireland to arrest and detain persons suspected of treasonable designs against her majesty's throne and government. The same night the Earl of Glengall brought under the notice of the peers the existence of treasonable clubs, the manufacture of pikes and the importation of fire-arms, the treasonable correspondence with France and America, the denunciations made by the rebel press and rebel orators, and the atrocious anti-social doctrines propounded—among others, the right and duty of exterminating the eight thousand Protestant landlords. Lord Brougham startled the house by reading a private letter, written to a friend by Daniel O'Connell a short time before his death, in which he declared it necessary for Ireland that coercion should be employed, and that the suspension of the habeas corpus was, in his opinion, the best and least oppressive way of putting down Irish disturbance. The publicly expressed opinions of the agitator had been so very adverse to those conveyed in this private communication, that its perusal caused a great sensation in the house. As O'Connell's writing was well known to Lord Brougham, and most of the noble lords who sat around him, there could be neither misapprehension nor imposition. The government measures were opposed by some Irish members, but their opposition was deficient in dignity and good sense. Mr. Fergus O'Connor so nearly approached treason in one of his speeches, that the premier was obliged to interfere formally, as did Sir Robert Peel on another occasion. Mr. Sharman Crawford, with excellent temper, but substantially with absurdity and impracticability, rivalled Mr. O'Connor in the earnestness of his opposition. The measure of the ministry was carried, much to the satisfaction of the country.

Bill for the better Security of the Crown and Government—This measure was introduced by Sir George Grey, for the double purpose of quelling Irish insurrection, and repressing the disturbances caused by the English Chartists. One of the clauses of the bill was for the suppression of "open and unadvised speakings."

This gave offence to the liberal party, and there was a general suspicion throughout the country that under the disguise of putting down chartism, the government was solicitous to check the increase of public meetings for reform in church and state, which became very numerous, especially in the north of England, and most especially in Lancashire. In those parts of the country, the disapprobation of the clause was very strong, and occasion was taken at public meetings, even of a religious nature, to denounce it. Mr. Hume, Mr. G. Thompson, and Mr. Fox argued well against the "gagging clause" as it was called, and eloquently pointed out the consequences which, upon a forced construction, might ensue. Mr. M. J. O'Connell declared that some such measure was necessary to the peace of Ireland, and he

would give the government his support. This circumstance, taken in connection with the private letter read by Lord Brougham in the House of Lords, left a strong impression among liberal members of the commons, and of the community, that the O'Connells had been insincere in their professions to Ireland. The press, both in the Old and Young Ireland interest, censured Mr. M. J. O'Connell, in terms of bitter severity, and the cry was raised that the younger O'Connells were more of place-hunters than patriots. After some warm personal altercations, the bill passed.

Mr. Samuel Martin, afterwards Sir Samuel Martin, and a baron of the exchequer, much increased his personal and legal reputation by opposing "the gagging clause." This, however, he did in a temper and mode which secured the respect of the government as well as of the country.

Alien removal Bill.—The vast number of foreigners in England, and especially in London, was at that time a source of uneasiness to the well-disposed, and eventually became so to the government. These immigrants so conducted themselves as to expose the country to the danger of being embroiled with foreign powers; and they expressed openly their sympathy with English Chartists and Irish Confederates. A bill was brought into the House of Lords by the Marquis of Lansdowne, giving power to the home secretary to remove foreigners whose presence might be an inconvenience. Their removal was to be determined by their conduct in England, not in the place from which they had come. This bill was introduced in the middle of April. It readily passed the lords. On the first of May it was introduced to the commons by the home secretary, and after an opposition of great force, from Sir William Molesworth and others, was carried.

Motion for Extension of the Franchise, Triennial Parliaments, and Apportionment of Members to Population.—A very extensive and influential agitation for these objects, headed by Mr. Hume, was maintained throughout the country, by persons much opposed to the socialist doctrines and riotous practices of the Chartists. On the 21st of June, Mr. Hume moved a resolution declaring the opinion of the house to be in favour of these measures, It was seconded by Dr. Bowring, afterwards so famous in connection with the government of Hong-Kong. Mr. Henry Drummond partly supported the views of those gentlemen, but nevertheless exposed, in very able and eloquent terms, the inconsistencies of Mr. Hume's speech, who seemed to have no clear and definite notions of the way in which his own theory should be carried out. Lord John Russell opposed the resolution in a speech as anti-reform in its character as if it had been made by Sir Charles Wetherell. Mr. Fergus O'Connor bitterly opposed Mr. Hume's motion, and afterwards voted for it. Mr. Urquhart and Mr. Anstey offered to it an opposition foolish and factious. Mr. Cobden supported Mr. Hume's resolution, but not upon any political principle, but exclusively in reference to his own economical views, which he considered it would, if carried, promote. Mr. Cobden was ably answered and exposed by Mr. Sidney Herbert. The resolution found only eighty-four supporters in a house of four hundred and thirty-five members.

Discussions on Foreign Policy.—The conduct of the government in sending Lord Minto to Italy, as a sort of _quasi-envoy_, and its interference in the quarrel between Sicily and Naples, led to long discussions, in which Lord Stanley and Mr. Disraeli

laboured with unusual energy to gain a party victory over the government. The reply of Lord Palmerston was, however, so luminous and convincing that it dispelled all doubt of the wisdom of the policy which he had pursued. His lordship resumed his seat amidst cheers from both sides of the house—the government was triumphant. Nevertheless there existed throughout the country a strong antipathy to the mission of Lord Minto; nor did the public feel quite sure that the management of the Sicilian affair was discreet—and it certainly was not successful.

The differences with Spain, in connection with the dismission of our ambassador, gave rise to another warm debate. The wisdom of the ambassador and of the foreign minister was impeached, while the conduct of the Spanish government was deemed rash, unnecessary, and insulting. The conduct of the government in exposing the country and its queen to such insult was now called in question. Lord Stanley on the 6th of May, called for the correspondence between Lord Palmerston, Mr. Bulwer, and the Duke of Soto Mayer. In his speech, which was very eloquent, the noble lord expressed the highest respect for the person and powers of Lord Palmerston, but considered that, in this particular case, he had erred. It was evoked, during the discussion, that the published despatch of Lord Palmerston did not contain certain words used by the noble foreign secretary, which gave to the ambassador a discretion as to the propriety of making the communication dependent upon the tone of public opinion in Spain, and the nature of events. It was generally considered by the lords, that any indiscretion which had taken place was at the embassy in Madrid, and not in the Foreign-office. The ambassador at the court of Madrid had been appointed by the Earl of Aberdeen, whose management of the Foreign-office was in every direction disastrous. The Peel foreign policy required men of a certain stamp, whose agency little suited the policy or character of Lord Palmerston’s foreign-office administration. Mr. Bankes withdrew his motion, and Mr. Urquhart was clamoured down in a subsequent attempt to address the house upon the subject. That gentleman seized every opportunity, in and out of the house, to vituperate Lord Palmerston, and persisted in reiterating as facts, fallacies which had been many times exposed. The house and the country became utterly weary of his absurd harangues, hence the extraordinary ebullition of feeling among honourable members on that occasion.

CLOSE OF THE SESSION.

On the 30th of August, Mr. Disraeli reviewed the labours of the session after the manner so effectively observed by Lord Lyndhurst in the other house. The oration was ingenious, and eloquently amusing; it entertained honourable members very much, but it neither instructed nor edified the commons or the country. Some curiosity was entertained as to how he would notice the measure for removing Jewish disabilities; he declared that he “personally approved of that measure, but condemned the policy of government in bringing it forward without the hope of carrying it, for by that means the cause lost ground.” This was mere pretence on the part of the honourable and rhetorical leader of the opposition; he knew well that, assured of the support of the commons, the government acted justly to the country and to those aggrieved by bringing the measure through the lower house, and throwing the responsibility of rejecting it upon the lords. Besides, the election of

Baron Rothschild for the city of London constrained the government to adopt some course, and that which they chose was the most dignified and constitutional. Mr. Hume made some able strictures on the speech of “the reviewer of the session,” and Lord John Russell replied to it at length with skill and dignity. Nevertheless, the brilliant periods of “the oriental orator” had their effect on both sides of the house; and Mr. Disraeli was on the whole a more popular man, so far as admiration of his genius was concerned.

On the 5th of September the house closed its labours. It had been one of the longest sessions on record; but from various causes, such as the indifferent management of the government, the failure of the chancellor of the exchequer, the obstructions offered by the opposition, and the disturbed state of public affairs, very little was accomplished. Her majesty prorogued parliament in person in the new chamber of peers, which was made ready for the occasion. The Dukes of Nemours and Joinville (sons of the fallen French monarch) were present. The usual formalities on these occasions took place, rendered remarkable only by the congratulations expressed in the address to her majesty, delivered by the speaker of the House of Commons, on the loyalty of her majesty’s people, notwithstanding the efforts of some “misguided men.” Her majesty’s speech briefly, and in the usual common-place terms, referred to the various legislative measures of the session, and she alluded, in terms of strong approbation, to the conduct of the lord-lieutenant of Ireland (the Earl of Clarendon), and to the loyalty of her people, in promptly suppressing the efforts of evil-disposed persons to disturb the public peace, for purposes of malice and pillage. The parliament stood prorogued to the 2nd of November.

The wearied members, after ten months’ almost unremitting and patient exertions, went to the moors, the seaside, and upon excursions of pleasure at home and abroad, to prepare themselves for renewed labour. Many went to Paris, to study the progress of the revolution there, and the practical working of those recent changes which had shaken the world. Probably that capital was never before, at one time, visited by so many English senators.

Although tranquillity was not perfectly established in either England or Ireland, and there was rioting in the former and assassination in the latter, yet the executive was left strong to cope with any old or new form of turbulence and crime, and the confidence of parliament and people was firm, that the executive would be found equal to any emergencies that might arise.

DEATHS OF EMINENT PERSONS.

Many persons celebrated in arts and arms were removed by death in this eventful year. On the 6th of January the country lost the services of Sir Thomas Usher, C.B., K.C.H., Rear-admiral of the White, and naval commanderin-chief on the Irish station. This gallant sailor was born near Dublin, in the year 1779, and was said to have been a descendant of the great Archbishop of Armagh, whose name he bore. He was the officer who, when a post-captain, brought the great Napoleon to Elba after his abdication. The day following saw the decease of Admiral Sir Robert Laurie, who had also seen much service.

On the 19th of January, at Bradenham House, Buckinghamshire, died Isaac Disraeli, Esq., aged eighty-two. This gentleman was the son of a Venetian merchant, who had long been settled in this country, and was the father of Benjamin Disraeli, who occupies so important a place in the politics and literature of the day. Mr. Isaac Disraeli was a literary man of much eminence, his chief work, “The Curiosities of Literature,” having won for him a great reputation. In his day, literary history and criticism were but little valued, and he conduced much to a higher appreciation of that department of letters. He was the author of many pieces of great merit in the periodicals of the day. He also published many separate treatises which met with great public favour, such as “A Dissertation on Anecdotes,” “Essay on the Manners and Genius of the Literary Character,” “Miscellanies, or Literary Recreations,” “Calamities of Authors; including some Inquiries respecting their Moral and Literary Characters,” “Quarrels of Authors, or some Memoirs for our Literary History; including Specimens of Controversy to the Reign of Elizabeth,” “Inquiry into the Literary and Political Character of King James the First,” “Commentaries on the Life and Reign of Charles the First,”—the University of Oxford conferred upon him the degree of a doctor of the civil law for this production, which it absurdly called “Optimi regis, optimo defensori” “Amenities of Literature,”—this work he wrote when blind, his daughter acting as his amanuensis; he notices eloquently and feelingly her devoted services. Mr. Disraeli was the friend, of literary merit in the obscure and unfortunate, in which he was the rival of Sir Robert Peel, as his son Benjamin became in the career of parliamentary oratory and politics. He married, in 1802, Miss Basseni, of Brighton, aunt to the celebrated architect Basseni, and who became the mother of the celebrated leader of the tory and protection party in the commons, after the decease of his less able predecessor, Lord George Bentinck. Few men ever pursued literature, for its own sake, with more heartiness than Isaac Disraeli. It was no wonder that his son should set out in life with the ambition of writing a great book, and being a great orator—an ambition which can seldom be realised by the same man, requiring mental qualities so different.

At Tunbridge Wells, in his eighty-fifth year, died General Frederick Maitland, who had seen many fields of war, and had always distinguished himself. During this month, in which death was so busy with eminent persons, especially in the profession of arms, there died also, at Edinburgh, Pringle Stoddardt, Rear-admiral of the White, and Lieutenant-general Sir John Maclean, officers who had served in almost every clime, and always with honour.

The eminent persons who died in February were Major-general Carlo Joseph Doyle; Major-general William Goodday Scott, Governor of Quebec; Lieutenant-general Sir Thomas Reynel, the sixth baronet of the kingdom of Ireland, K.C.B., and K.C.H.; Dr. Hamley, Archbishop of Canterbury, and primate of all England; the Honourable James William King, Rear-admiral of the Red, seventh son of the second Earl of Kingstown, of Mitchelston Castle, Ireland; the Right Honourable Lord Graville Charles Henry Somerset, a privy-councillor, and M.P. for Monmouthshire; Rear-admiral Inglefield.

In March, Rear-admiral Warren; Major-general Sir W. Gosset, Bart., Serjeant-at-arms attending the House of Commons—he was a native of Jersey, and had seen some active service; at Aix-la-Chapelle, John Burke, Esq., the compiler of the "Genealogical and Heraldic Dictionary of the Peerage and Baronetage of the United Kingdom," "The Commoners of Great Britain," "A Genealogical and Heraldic Dictionary of the landed gentry of Great Britain and Ireland," "A Genealogical and Heraldic History of the Extinct and Dormant Baronetcies of England," "A general Armoury of England, Scotland, and Ireland," republished under the title of "Burke's Encyclopaedia of Heraldry," "Heraldic Illustrations, comprising the Armorial Bearings of all the principal Families of the Empire, with Pedigrees and Annotations," "The Royal Families of England, Scotland, and Wales, and the Families descended from them." This learned and laboriously-compiled collection of heraldic works gained for the author great and well-merited fame.

At Brompton, a western suburb of the great metropolis, died Madame Guizot, at the age of eighty-three. This lady was a native of France, but joined her son, who was exiled with his king, Louis Philippe, whom he had served too faithfully, but faithlessly to his country. Madame Guizot was a lady of indomitable will, and abounding charity; she was most remarkable for her unconquerable and zealous attachment to the Protestant Church of France.

In April several very eminent persons were removed by death: among them was Sir Samuel Rush Meyrick, LL.D., F.S.A. He was the author of several works of considerable reputation: "The History and Antiquities of the County of Cardigan;" he united with Captain Smith in producing a book on the subject of the costume of the early inhabitants of these islands. He also published "A critical Inquiry into ancient Armour as it existed in Europe, but particularly in England, from the Norman Conquest to the Reign of King Charles the First, with a Glossary of Military Terms of the Middle Ages." Several arch geological works were subsequently written by him, and he left behind him the reputation of a profound antiquarian.

In May, the death of some valuable persons took place. Baron Ashburton, who, as a cabinet minister and a financier, and in one instance as a negotiator, earned distinction. Sir Thomas Dick Lauder, of Haddington, distinguished as a writer, especially in the region of fiction; also Sir William Hotham, Admiral of the Red.

June saw an equal number of famous men laid low. Among them none was more remarkable than Tom Steele, an ardent follower of O'Connell, and his "head pacificator." Steele was a gentleman and a Protestant; he had studied with great success at Cambridge University, and was a proficient in mathematics. He began life with bright prospects; talents, education, connections, and property—all were his. He wrecked all in the service of Ireland, as he believed—in the service of an Irish faction, as the event proved. Steele burned with indignation at the disabilities of his Roman Catholic fellow-countrymen, and joined in every exertion to obtain them justice. He conscientiously believed that Ireland could never prosper while in connection with England, and he struggled for their separation. O'Connell and his party had ulterior objects—the ascendancy of their religion, and the persecution of Protestants; but Steele's honest nature refused to believe what was so opposed to their professions,

notwithstanding the warnings which he received from many whose experience of that party, and of Ireland, qualified them to offer him counsel. He was only undeceived shortly before his death, which took place at Peel's Coffee House, Fleet Street, London, where he had taken up his abode in sickness and in poverty, his fortune and his heart broken. He felt bitterly the desertion of his old confederates, and much bitter censure has been heaped upon the Irish Catholic and Repeal party, for thus abandoning the man they had flattered and used when he was in the heyday of his prosperity. It must be admitted that every one in Ireland said "poor Tom Steele!" when his sorrows were heard of, and his death was announced; but none came to the rescue, and few words of sympathy were afforded to him. It is but just to say that Ireland was at that time in the throes of a revolutionary struggle, and all were forgotten who dropped for a moment out of public view. Besides, the distress of the country spread alarm and grief on every side. These circumstances will, in great measure, account for the neglect which Ireland showed to her sinking patriot. But a similar excuse cannot be offered on behalf of the eminent and wealthy Roman Catholics of England, of Irish repeal members of parliament, and of other prosperous Irishmen in England attached to that party. As soon as the distress of the brave and patriotic man was known to his former opponents, English and Irish, they literally rushed to his relief, for all believed him to be an honest man and a pure patriot. Among the first in the work of kindness was Lord Brougham, an inflexible and terrible opponent. May the generosity of the deed be ever recorded to his honour! Colonel Perceval, one of the chief ringleaders of the Irish Orangemen was another; he sought the bedside of the sufferer, and consoled his closing hours. Proffers of aid on a large scale were made by his old opponents; but the stern and disinterested man died in his poverty, accepting only those acts which aided and soothed the closing scene. It was bitterly but too justly said by an eloquent writer, an old opponent of poor Steele, "Ireland gave him words, England deeds; Ireland took his life, England gave him a grave."

In August, Captain Marryat of the royal navy, whose early life had been full of heroic adventure, and whose latter days were honoured by successful authorship. His "Diary in America" gave just displeasure to the American people, and betrayed a national invidiousness unworthy of a literary man and a British naval officer.

Mr. Edward Baines, the proprietor of the _Leeds Mercury_, and for many years M.P. for Leeds. This indefatigable and able man entered the town of Leeds a poor printer, and earned his first wages there through the influence of Mr. Obadiah Williams, a cloth manufacturer, a man of shrewd judgment of character, and whose benevolent disposition prompted him continually to generous actions. Mr. Baines worked as a journeyman-printer on the _Leeds Mercury_, then a mere local paper; he ultimately became the proprietor, and under his management it became one of the most ably conducted papers in the kingdom, and had a wide-spread circulation. Mr. Baines represented Leeds as successor to Mr. Macaulay, and as representative of that town was one of the most useful members of parliament. He was not a man of refined bearing or mental cultivation; as a public speaker he was ungainly in manner, his pronunciation common and provincial, his voice monotonous, and his style dry and common-place; but he was serviceable, practical, pertinent, experienced; and the

soundness of his judgment, and the weight of his character, gave force to what he said. His son, Matthew Baines, Esq., a barrister, became a member of the cabinet, and another son, Edward, became proprietor of the _Leeds Mercury_, and an enlightened leader of the dissenters of the west riding of York. He sustained the business reputation of the paper, after his father's decease, and raised it to a much higher place as a literary journal. Few good men have had sons so worthy of their sire.

In August also died George Stephenson, Knight of the Order of Leopold, F.B.S., the originator of our railway system. This eminent engineer is a rare example of a self-taught genius. Born of parents too poor to give him any schooling, at eighteen years of age, when full grown, and following the occupation of a fireman, he was not ashamed to commence his education at an evening school. His steady industry and unconquerable perseverance ultimately won for him a position second to none in his profession. Looking at the influence of his labours on the whole human race, there are few names on the pages of history so pre-eminent as that of George Stephenson.

On the 21st of September, Lord William George Frederick Cavendish Bentinck, M.P. for Lynn, was suddenly removed by death. He was found dead in the grounds where he had been walking alone. As leader of the opposition, his death, so unexpected and so painfully sudden, made a great sensation.

In November Lord Melbourne, who had filled the office of premier in the beginning of her majesty's reign, departed this life. The queen was much indebted to the courtly and constitutional skill of this nobleman in her first essays of government. He was her majesty's faithful subject, minister, and friend, and she was justly much attached to her preceptor. He was too indolent, and too little acquainted with the tone and temper of the whole people for the office of premier. He was, however, a man of superior intellect and extensive culture, and was well versed in constitutional law.

Dr. James Pritchard, the celebrated naturalist and ethnologist, died in this month.

The death of Colonel Sir Frederick Augustus D'Esté, K.C.B., son of the Duke of Sussex by Lady Augustus Murray, daughter of the Earl of Dunmore, was the last decease of a remarkable person publicly noted in this year. The marriage of his royal highness without the consent of the crown rendered it invalid, and Sir Augustus was unable to obtain the inheritance or title of his father.

Thus terminated the events of 1848 which admit of record in a work like the present. The year expired leaving England on the whole stronger, and more confident in her stability and power. The whirlwind which had swept over the nations, shaking down the trophies and glories of antiquity which had remained after the first great French revolution, did not affect England—she heard its fury, but felt not its power.

CHAPTER LXI.

{VICTORIA. 1849}

Colonial Affairs..... Termination of the War in the Punjaub..... Operations against Borneo Pirates, and in the Chinese Seas..... Cape of Good Hope; Agitation against making it a Penal Colony..... Canada: Disturbances..... West Indies: Economical Discussions; Discontent of the Planters..... Ionian Isles: Insurrection..... Foreign Affairs..... General State of the Continent, and Relations to England..... Naples and Sicily: Interference of England and France..... Demand upon Turkey by Russia and Austria for Extradition of Refugees; Interposition of England..... Ireland: Potato Blight; Great Distress of the People; Cholera; Political Agitation; Continuance of Crime and Outrage..... Great Britain: Prevalence of Cholera; State of Trade and Agriculture; Parliamentary Debates; Deaths of Eminent Persons.

{1849}

The year 1849 was one of more importance to continental Europe than to the nations of any other portion of the world. It was, however, a year of considerable events for the British empire. In India a sanguinary war was brought to a successful termination, and a large and fertile territory added to the British dominions. At the Cape of Good Hope the colonists successfully resisted the authority of the mother country. In Canada, insurrectionary violence interrupted the usual order of government. In Cephalonia the disloyalty and fanaticism of the Greek population found violent vent, and generally the greatest circumspection was required on the part of the home government in reference to our vast colonial empire. In foreign affairs England preserved a dignified non-interference, except in the case of Naples and Sicily, where her interposition brought neither honour nor profit. In the case of Turkey it was otherwise; the advice tendered to the Porte by the British ambassador averted conflict, and saved an ancient ally from humiliation. The chief difficulty of the empire was Ireland. Constitutional government was there impossible, crime was rampant, distress all-penetrating, and the people seditious. At home the visitation of a fearful pestilence caused distress and sorrow, while party fury rent the parliament and disturbed the repose of the country. Through every trial to which she was put, the genius and resolution of England conducted her, under the care and blessing of Him who can elevate and abase empires, and the great law of whose moral government is, “Righteousness exalteth a nation, but sin is a reproach to any people.”

PROSECUTION OF THE WAR IN INDIA, AND ANNEXATION OF THE PUNJAUB.

The general consequences of the battle of Chillianwallah (an account of which engagement concluded our relation of the war in India, in the last chapter) were the encouragement of the Sikh sirdars, soldiery, and people, and the renewal of exertion on the part of the civil and military authorities of India for the vigorous continuance of the war. In England the news of the battle produced sensations of alarm, and indignant dissatisfaction. In parliament the subject was mooted angrily, not only by the opposition, but by the more radical supporters of the government. Lord John Russell, however, quieted many fears by announcing, which he did in his most pompous manner, that Sir Charles Napier had been selected to command the army in India. This was received with loud cheers and every demonstration of confidence. Had Lord John stated that an army of thirty thousand European soldiers was about to be dispatched to save the glory of the British arms in India, the tidings could not have

inspired a sense of security more complete than appeared to be entertained by the house from the announcement of this one name. Sir Charles had retired from the government of Scinde, having quarrelled with the Company and the governor-general. No two human beings could be assorted with less likelihood of concord than Lord Dalhousie and Sir Charles Napier. With Lord Hardinge the eccentric general could have agreed better; but he was a man so much more just than that nobleman, and so much more able and original in his conceptions as a military man and a statesman, that they also would have been very ill-assorted. Sir Charles Napier, during his government of Scinde, had acquired such a knowledge of the government of India, civil and military, and differed so widely from the principles applied to that government, that there could be little hope of his long retaining any command or government in India. Sir Charles had complained warmly of the way in which the army of India was officered; of the love of ease, and the indulgence in luxury which had begun to characterise the officers of that service; of the little sympathy with their men which the officers of some portions of the Company's troops betrayed; and of the mode of recruiting, especially in selecting soldiers from the Brahmin caste, rather than from Ghoorkhas, Beloochees, and low-caste Hindoos. These views were so distasteful to the governor-general and chief officers of state in India, that the gallant general was set down as a very troublesome fellow, whose presence in India was more mischievous than useful, who prided himself more on Meannee than Scinde was worth, and whose essays of government there were odd, oppressive, and out of the routine of Indian government. Sir Charles had given just cause for as many complaints against himself as he had made of others; this the government at home knew well; but the board of control, and the board of directors also, felt that the public dissatisfaction caused by the battle of Chillianwallah, must be soothed, and knowing the supreme confidence which the public felt in the eccentric but heroic and intellectual general, they nominated him to the post of commander-in-chief of the army in India. Sir Charles was very unwilling to accept this command, and it was alleged that he only yielded to the importunities of his friend, the Duke of Wellington, then commander-in-chief of the army, who was represented as having said, "Either you go, or I go." This high compliment was so felt by the sturdy old warrior, that he is said to have instantly acquiesced. The opinions of this brave chief on Indian affairs were much canvassed at the time, and much more canvassed since. Circumstances arose to justify many of them, and in few instances did his predictions fail. It was supposed that the Punjaub would be the earliest scene of his exploits, and concerning it he thus expressed himself:—"A large country full of rivers, mountains, climates, plains, deserts, supplies scarce, and a hostile, well-armed, brave people, apparently resolved to wage a partizan warfare." The population was, on the whole, better inclined to us than the army, nor did they show so much a disposition to wage what is called a partizan war, as to risk the fate of their country and the endurance of their power upon regular warfare, conducted in well-arranged campaigns and general battle. So far Sir Charles somewhat mistook the people against whom he was sent out as the especial champion of his country, but whom he was never destined to encounter.

His opinion on the constitution of the army has been already glanced at. Concerning its dangers in a campaign, involving long marches and distant operations, he thus wrote:—“Suppose the army in march, and to consist of ten thousand fighting men, and that an enemy attacks the fighting men and camp followers, amounting in the mass to forty thousand or sixty thousand men, of which thirty thousand or fifty thousand are unorganised, unmanageable camp-followers; suppose them to be attacked suddenly, and that when so attacked, they all rush back upon the column of fighting men, as they always do, and always will do, until well organised. When you have painted this pretty picture in your mind—this picture of noise, confusion, danger, and slaughter—I will ask you how the column of ten thousand fighting men are to fight? borne down by multitudes—confused by noise—how are they to form in order of battle? If once, by the exertion of their officers, they do form, how are they to fire?—on their own followers! their own animals! What may happen no one can tell; but human foresight says that the whole will stand a fair chance of being utterly defeated. It is said that this took place, and caused, in a great measure, the Cabul massacre. I can easily believe it.”

The following warnings were prophetic:—“Let the army be in every way worthy of the empire that it won and holds—holds by _discipline!_ Let not the word become an empty boast. Let it not lose its reality. Let not victory lull our soldiers to sleep. Let every British officer recollect that powerful nations surround our Indian empire; that they are rapidly acquiring our military system, our tactics, our arms. Let him compare our earlier battles with our last—Plassey with Ferozashooshah and Sobraon—setting our losses in killed and wounded at each battle in juxta-position. Let us look to these matters, that we may not have to exclaim with Pyrrhus at Asculum, ‘Another such victory will undo us!’”

But notwithstanding the dangers which were thus the subject of the military seer’s discourse, he had a high opinion of the Indian army as a whole, as the following quotation proves:—“The Indian army, when well commanded is indomitable: it is capable of subjugating all the countries between the Black and Yellow Seas. The population from which it is drawn is so numerous and warlike—the land so wealthy—that the noble Indian army may vie with any force existing, in numbers, courage, and equipment. Its discipline and intelligence are in proportion. The European officers are all English, Irish, and Scotch gentlemen, whose honour and courage have created in their troops such an intrepid spirit as to render India secure against every evil from which an army can protect a country.”

Notwithstanding the supposed necessity of Sir Charles Napier’s appointment, no great dispatch was used in his departure, and the public began to suppose that the object of the government in this delay was to gain time for Lord Gough to redeem his honour. This increased the public irritation, which was exasperated by the private letters that reached England from Lahore, and from Lord Gough’s own camp. These letters led the English public to believe that a general panic prevailed, not only in the Punjaub, but at the head-quarters of Lord Gough’s army. The following are specimens of the letters, which, on their arrival in England, so disturbed the public mind:—

“I have much pleasure in giving you the following latest information from the commander-in-chief’s camp, dated 16th instant; it indeed has been a sad business, and it is impossible to predict when our mishaps, and such fearful butchery and wanton sacrifice of life will end or stop, under such a commander-in-chief. Unless the governor-general recalls Lord Gough to the provinces, the chances ate he will not only lose the splendid army under his command, which he has already done his best to cripple and weaken, but he will so compromise the government that the most serious apprehension may be entertained as to the ultimate result of this contest.

“I told you Gholab Singh had an army of ten thousand men not far in advance of the commander-in-chief’s camp, doing nothing, but alive and awake to take every advantage of the first serious mishap that might occur to our army under its present chief; in addition to which Dost Mohammed has a force of ten thousand to twelve thousand Affghans, at a short distance from Attock, ready to co-operate with Chuttur Singh. Gholab. Singh has fourteen pieces of cannon with his ten thousand men, but he is not present in person; the wary chief is abiding his time in the hills; he has, however, deputed a vakeel to offer a nuzzur at Lahore to our resident; but deep craftiness and the most wily treachery are at the bottom of this proceeding. The vakeel has been instructed to apprise his master of every single occurrence that takes place at Lahore, and to keep him well informed of all movements on our part. It is extremely strange our government will not believe in the treacherous intentions of Gholab Singh.

“There are from thirty to forty thousand men in arms leagued against our power and supremacy north of the Jhelum, with a park of artillery, varying, according to reports, from fifty to seventy guns.

“In a letter from Lahore of yesterday’s date, which reached me this morning, it is stated that the commanderin-chief has ordered Brigadier-general Wheeler’s force to join him, but of course, I suppose, not until after the general has taken Ram Singh. This proceeding has been rendered necessary and urgent in consequence of her majesty’s 24th, the 36th, and 58th regiments of native infantry having been rendered next to useless. Sir Dudley Hill’s reserve force of eight thousand five hundred men will have to be brought into active service yet, as troops are required not to proceed against, and be the aggressors of the enemy, but to act on the defensive, and hold our active, brave, and courageous foe in check until General Whish’s force joins, to enable the whole army to advance to Peshawur.

“Our government appear now to be so afraid of the issue of our contest with the Sikhs (as they have neither troops sufficient to conquer them and hold the country, nor money to pay the enormous expenses of this prolonged campaign), that I should not be at all surprised they will do their utmost to patch up a peace, which will, to say the least, be not only humiliating to our arms, but disgraceful to British feelings. I am perfectly certain, however, that the Sikhs will entertain no terms with us, except they are based on our quitting the Punjaub, and retiring across the Sutlej; this is a _sine qua non_ with them.” The same letter from Lahore mentions, “You have, no doubt, heard of the late awful butchery of human life. As usual, the troops advanced without order or any arrangement. The 14th Dragoons led the advance, and, on the

Goorchurrahs advancing, the brigade of cavalry, it is said, retreated, afraid, apparently, of being led into another trap like the Eumnuggur one. The cavalry brigade overthrew the artillery, and, galloping right through them, was the cause of our loss of six guns, two of which, however, were since retaken. Brigadier Pope was mortally wounded (since dead), and the cavalry were only brought up by the Doolies at the general hospital. Of the 24th foot, four field-officers, one captain, and seven subalterns, were killed, together with four hundred men. The 30th, the 36th, and 56th regiments behaved well, but lost so many officers, killed and wounded, that they must be sent back, and some other corps sent to supply their place. There were twenty-four officers buried the day after the fight, and many more since. The chief was strongly advised to defer the engagement until next day, but it was of no use. Two shots fell near him, and he ordered an immediate attack, left his position, and joined the _mêlée_, and was not to be found anywhere to give directions. A more undisciplined attack, or less tactics, was never heard of. He swears that the first officer who presumes to give advice, he will put in close arrest! Poor Eikins was killed in endeavouring to rally the 14th Dragoons. The artillery have demanded a court of inquiry, but I suppose the business will be hushed up, as it it was in the 62nd foot."

A second letter, dated Lahore, the 18th, gave the following extract of a letter from camp Chillianwallah, 16th January:—

"On the 12th we marched to Dingee, on the 13th we marched again, and at 11 a.m. came upon one of the enemy's outposts. The 3rd light field-batteries and heavy guns were brought to the front to drive them in, which they did in about five minutes. The infantry was then brought up, and each regiment deployed into line. The commander-in-chief meant to have encamped here, and sent for quartermasters of corps to mark the ground. The enemy, however, about two o'clock, fired a few shots, which came in beyond our flags, and the commander-inchief resolved to attack them at once. The whole line then advanced, getting into thicker and thicker jungle every minute; all this time our heavy guns, which were in the centre, opened their fire, and were answered by every one of the enemy's, about sixty in number. It would be impossible to describe the action. There was no plan of attack. The three light field-batteries were at one time close to the enemy without any support near them. These were at last ordered to advance at a gallop to support Hoggan's brigade, and the 46th regiment of native infantry assured the officers of these light field-batteries that their fire alone saved them. The action lasted until dark.

"At four o'clock in the afternoon we were completely surrounded by the enemy, and our artillery firing at the same time to the front, to the rear, and to the flank. Our loss has been tremendous—one thousand nine hundred killed and wounded: we have taken twelve guns and lost six (two of which have been recovered). The loss of our guns was owing to the cowardice of —— who (you will hardly believe it) ran away from a party of the enemy's cavalry right through Christie's and Huish's troops of horse-artillery, knocking over every one of Christie's waggons, horses and all! They were so crowded among the guns, that the gunners could not unlimber. The result was that the enemy's cavalry got among our guns, and cut our men down right and left. The —— never drew reign until they got right through the general hospital in the

rear, knocking over the Doolies and everything that came in their way. What caused this panic no one knows.

“Of the above one thousand nine hundred killed and wounded, nine hundred and fifty are Europeans. Above thirty-six officers have been buried. Her majesty’s 24th foot lost their regimental colour. The 25th regiment native infantry lost a colour. The 30th regiment native infantry lost a colour—some say two colours. The 56th regiment native infantry lost the standard they took at Gwalior. Her majesty’s 24th foot lost thirteen officers killed, including every one in the list above the junior captain. The enemy are now encamped at Eussool, four miles only from the commander-in-chief’s camp. A letter that I have just seen states that Major Loftie, of the 30th native infantry, was not killed but only wounded, and that Major Ramfield, commanding the 56th regiment native infantry, was killed. In the 2nd Europeans, which behaved nobly, one officer was severely wounded, Lieutenant Nightingale.”

Another letter, dated camp, the 15th January, stated:—

“I dare say you will have heard of the battle fought by our army on the 13th instant. It commenced about 1 p. m., and fasted till after dark. It was a devil of a battle, and many hard knocks and wounds were received, as the casualty list will show. The Sikhs fought with the greatest gallantry, and, as for our men and infantry generally, they were quite heroes. The 2nd Europeans displayed great bravery; they advanced to the charge and drove the Sikhs back at the point of the bayonet; and after this found another body of Sikhs, a regularly organised battalion, armed and dressed like our troops, in their rear. There were also some of the enemy on the right flank. This regiment had to right-about-face and charge to the rear, which they did, killing and wounding a great many of the Sikhs, and took and spiked four of their guns. Nightingale was wounded when about to do this, and Gaynor, who did it, had a most narrow escape. The former is the only severely wounded officer in that regiment, but I trust not dangerously, the ball having passed out in coming round the head, but the bone is fractured. One or two officers had narrow escapes. The 2nd Europeans had but fifty men wounded, and five killed; the cases of the former, some of them very severe, are mostly in the body and legs. There has been a fearful mortality in the 24th foot, thirteen officers killed and eight wounded, while the men said to be killed and wounded amount to four hundred. The 29th foot also suffered much, and the artillery a good deal. All our wounded are doing well, I rejoice to say. The doctors were at one time quite within range of the enemy’s shot, and a bheestie of the 2nd European regiment had his arm knocked off just behind where the surgeons of that corps were riding: a spent ball rolled under my horse’s feet. Lieutenant Weston and Godby, of the 36th native infantry, were wounded, but not severely. Brigadier Pennycuick and his son both killed. I believe we have gained a regular victory, though at first it was doubtful. I hear Pope’s brigade of cavalry got a kind of panic at one time, and came to the rear, but afterwards moved up in good style: there was something wrong with the —— for they drove us in from the rear and dispersed all the doctors, &c., at the field hospital, where I had just arrived to see if any assistance was required. There was an alarm of the Sikhs being in our rear, and then there was a regular ‘bolt.’ Such a night we all passed is better imagined than

described—it was so very cold and rainy, with a high wind blowing, enough to cut one in two. Several Doolies were captured by the enemy, and the band instruments of the 2nd Europeans are missing.

“All letters agree in stating that a panic overtook the —— when ordered to charge. I hear on all sides that it would be a wise and prudent measure on the part of the governor-general to recall Lord Gough from the Punjaub, and restrain his ill-judged valour within our peaceful provinces. His lordship fancied himself at Donnybrook Fair, and was in the thick of it, in the _mêlée_, and lost to sight!

“P.S.—The 56th regiment native infantry was brought out of action with three hundred men, under the command of its junior captain, a cadet of 1840!”

These communications, although affording intelligence which was, unfortunately, too true, were in several respects erroneous. They placed matters in a gloomy aspect, which was not justified by the facts. The battle of Chillianwallah, however doubtful as a victory, and however disastrous as to the loss which we experienced, neither perilled the existence of British rule in India, nor shook the hold of the English upon the Punjaub. The arrival of the despatches, and the issue of an extraordinary gazette, in some measure reassured the public; and as Lord Gough was decidedly and deservedly a favourite, people became anxious that before Sir Charles Napier should arrive out and take the command of the army, his lordship might be enabled to revenge Chillianwallah by a well-fought battle and decided victory. The friends of Lord Gough even entertained the hope that he might conclude the campaign by the entire dispersion of the Sikh army, and the reconquest of the Punjaub. It was very generally felt that the ministry, whatever their private feeling and private intentions, had shown too much eagerness to disclaim him, and to signify, by making their only measure for the emergency in India the appointment of a new commander-in-chief, that they supposed the blame of any misfortunes there to have been exclusively with Lord Gough. Military men pointed out that the previous policy of Lord Hardinge, and the immediate policy of Lord Dalhousie, both as it regarded their military and political management, invited the resistance to our power which had been awakened. The chief apprehensions entertained arose from the course which Gholab Singh and Dost Mohammed might pursue. The former, with his Sikh soldiery, occupied positions that kindled some suspicion of his intentions, while he had, as an ostensible ally, omitted to strike a single blow in our favour. He had collected, it was alleged, one hundred and fifty pieces of cannon; and he was represented as having declared that his control over his own soldiers was imperfect, and that their sympathy was wholly with the troops of Chuttur and Shere Singh. As it was not uncommon for the native princes, when hesitating between the British and their enemies, to represent their soldiers as untrustworthy and dangerous to themselves, Gholab’s account of himself, his province, and his army, caused him reasonably to be suspected. Dost Mohammed rendered substantial aid to Shere Singh; at least twelve thousand Affghans were encamped under the command of that general, and fresh levies were said to be descending the passes from Peshawur and from Candehar towards Scinde. Reports had arrived in England that all the Affghan chieftains were in arms, and that the war of the prophet was proclaimed. The Affghan infantry were without discipline, and out

of their own fastnesses it was presumed that they would not display courage; but some supposed that, subjected to the Sikh discipline, and led by Sikh officers, as well as by their own chiefs, they would prove formidable, being physically a fine race, and naturally brave. The reinforcements sent by them, however, were chiefly composed of cavalry, and their efforts as auxiliary to our enemies were too tardy to influence materially the fortunes of the war; by degrees these facts became known at home, and the absence, in Lord Gough's despatches, of any alarm, and the entire confidence breathed through them and the official tidings from the Indian government, at last wholly reassured the English public.

The following is the list of ordnance and ordnance stores captured from, the enemy in the action of the 13th of January:—

Six of these guns had carriages and limbers, and six were without limbers; all of the pattern nearly in use with our field-pieces.

Two ammunition carriages (one partly destroyed by explosion), one platform-cart, one hundred and forty-four cartridge-liners fixed to shot, sixteen cartridges unfixed, and eighteen port-fires, were also taken.

Assault of Dullah by General Wheeler.—Lord Gough was unable to undertake any active operations after the severe losses at Chillianwallah, until he should receive reinforcements. These he expected from Mooltan, under Whish, and also a brigade of Wheeler's force, which had been actively engaged in another direction, where he had been detained by the obstinacy of a rebel chief named Earn Singh. This redoubtable chieftain was ascendant in the Baree Doab, and he occupied a strong fortified position on the heights of Dullah. In the middle of January Wheeler attacked this position, but so inaccessible was the fastness that the most he could, do, and that with considerable loss, was to drive out Ram Singh and his followers, whereas the gallant general hoped to accomplish either his capture or destruction. On the 11th, Wheeler ordered the 4th native infantry to take up a position to the northward of the enemy's post, so as to intercept him in case he should be obliged to evacuate the fort, and retreat in that direction; the main force tarried at Shorpore, where they had been in quarters, until the 13th, the sappers, pioneers, and labourers being engaged in making a practicable road through an exceedingly difficult country consisting of defiles and "ghauts." This road was laid for about seven miles, as far as the village of Cote on the course of the Ravee, about three miles distant from Ram Singh's position. On the 14th, the little army of General Wheeler took up ground under the Dullah heights. That day and the next was occupied in cutting roads, transporting guns and mortars upon elephants, and making arrangements for storming the fort. On the morning of the latter day, Captain Hicks, of the 3rd native infantry, was dispatched with four companies of that regiment, and Mr. Hodgson, with two companies of the Guide corps, to take post west of the Dullah heights, on the opposite bank of the Ravee. The precautions taken by detaching these bodies of men were necessary from the topographical character of the neighbourhood. The Ravee, debouching from the mountainous region in which it has its birth, flows through a beautiful valley, where a series of hills runs from east to west, presenting an unequal ridge; on this ridge, overlooking the river, the little village of Dullah was situated, in which Ram Singh

had so cleverly fortified himself. In every direction from the village the rock dipped almost perpendicularly, beside being protected by the river, which wound partly around it. Access was by paths, partly lying in hollows formed by former streams, and partly cut through the rock. These paths were circuitous, and nearly covered with brushwood, admitting only by single file of an approach to the platform on which the village rested. On either side of the path were precipices from twenty to eighty feet deep, and huge boulders lay profusely across the way. A few men could defend such a position against very many. The 4th native regiment was to advance against the face of this defence, from the direction where it had taken post some days, and the signal was to be the firing of a gun from the British camp. The 3rd and the Guides were at the same moment ordered to advance, at the same signal, against the west of the ridge, and crown a height visible from head-quarters. As soon as the success of this detachment was ascertained, the remainder of the 3rd regiment, and two hundred men of the 2nd irregular cavalry, who, with Lieutenant Swinton, had volunteered to serve on foot, were to advance upon another face of the ridge, from the little village of Chulbarah, where they had been posted; this party, ascending a spur of the hill on its left, was to co-operate opportunely with the advance of the other detachments. Major Fisher, at the head of a body of regular native infantry and irregular cavalry, with guns mounted upon elephants, were in support, and to ascend (the cavalry, of course, dismounting) when the various detachments had come well into action. There was yet another point upon which an ascent was to be attempted—that which was in front of the camp of the British. Major Davidson, with a few hundred Sikh auxiliaries, regular and irregular, supported by two companies of the 1st Sikh light infantry, under Lieutenant Peel, was ordered to make this attempt.

At the moment for action, the signal gun was fired, but no one appeared to take any notice of it—no men were seen to make their way along the ridge. There was a long pause on the side of the British, the guns of the enemy at the same time firing. None of the detachments appearing on the ridge, Major Butler was ordered to attempt to storm it, in conjunction with the other party already appointed to ascend in front: this was happily accomplished, after a very sharp conflict. Major Davidson was shot through the hand, Lieutenant Peel was mortally wounded, and Lieutenant Christie killed. The detached parties, trusting to native guides, were purposely misled, and thus could not come into action. Ram Singh had by this means the way kept open for his retreat when resistance was no longer possible, and all the skilful arrangements that had been made to catch the eagle in his eyrie were thwarted by the treachery of the natives, who had been, unfortunately, too implicitly trusted in an important service.

Retreat of Shebe Singh from Chillianwallah.—On the 12th of February Shere Singh struck his tents, and retired from the strong positions which he had so skilfully occupied. Lord Gough threw forward his cavalry, but the Sikh general interposed the whole of his mounted force, covering effectually his retreat. On the 15th the English general learned that the Sikhs were at Wuzeerabad, and his spies informed him that the sirdar was marching upon Lahore. It is probable that these reports were correct, but the approach of a portion of General Whish’s army defeated the project. The cavalry of Whish were pushed on to the Chenab, preventing the passage of the ford of

Wuzeerabad. The sirdar swept the whole district of supplies, and sent messengers to Chuttur Singh informing him of his dangers, and intimating that he would take post at Goojerat. Chuttur Singh hastened to the support of Shere, and their united forces constituted a splendid army of eighty thousand men, with fifty-nine pieces of cannon, most of them of large calibre, and worked by a choice body of artillerymen. While Whish guarded the fords of the Chenab, Wheeler hastened to join Lord Gough, having cleared the Baree Doab of Ram Singh and his adherents. On the 16th his lordship left Saporee, and arrived at Sundalpoor, a village only a few miles from the Chenab, which separated his army from that of the victor of Mooltan. The latter skilfully fabricated a bridge of boats at Hurreke Puttum, and joined the commander-in-chief. While this was being accomplished, a body of Affghans from Dost Mohammed Khan, who professed to be neutral, joined the enemy. The entire number of Lord Gough's army, after every accession, scarcely exceeded twenty-five thousand men. The enemy, when joined by the Affghans, nearly quadrupled the forces of the British general. Lord Gough, however, determined to attack him, and on the 20th reconnoitred his position with that object. Shere Singh made the village of Goojerat his head-quarters: this place lay between the Jhelum and the Chenab, nearer to the former; a small river ran nearly around it, but was at that juncture very low, so that its bed was in some places nearly dry. Between this river and the city, the enemy had taken his position.

Lord Gough resolved upon his plan of attack, and early on the 21st put it into execution.

Battle of Goojekat.—Lord Gough's artillery was in excellent order, and an overmatch for that of the enemy. He determined upon using this arm of offence to the uttermost, and opened along his line a murderous cannonade. His chief danger lay in the difficulty of passing his troops over the "nullah" (or dry bed of the river) under the enemy's fire; for it was impossible for his infantry to enter the bed of the stream in any direction without being exposed to their musketry; his guns kept those of the enenry hotly engaged. The numerous cavalry of the foe threatened his flanks, and exposed him, inferior as he was numerically in this arm of the service, to another peril. Both these risks he provided against with skill, and conquered them with resolution and energy. The array of battle was superb; the order of the engagement scientific; and all its parts conducted with obedience and alacrity by those to whom they were committed.

The first fault of the enemy was opening his artillery practice at too great a distance; this indicated the number and position of his guns, as well as their range, and enabled the British general to make his calculations accordingly. He advanced his right wing under cover of his superior artillery fire; the infantry dashed into the nullah, cleared it, and stormed a village on its banks, where a strong body of infantry was posted. The enemy's left and centre were thus separated, and while the British right pressed upon the Sikhs' left centre, the British left cleared the nullah, stormed another strong infantry post in a village, and completely doubled up the centre of the sirdar's army. His cavalry made various efforts to fall upon the flanks of the victorious infantry, but the British horse-brigades, with horse artillery, prevented the success of

these movements, and punished the rash approach of the Sikh troopers. The Khalsa soldiers fled through their own tents, Brigadier Campbell and the Honourable Major-general Dundas, sweeping round the town or village of Goojerat, drove them in confused flight. Major-general Gilbert followed the fugitives with the cavalry; the defeated Sikhs cast away their arms and accoutrements in the utmost panic. Never was victory more complete, and seldom did victorious battle redound to the honour of a victorious general so signally as at Goojerat.

The loss of the British was three officers killed and twenty-four wounded, the total killed of men and officers did not exceed one hundred, and the killed and wounded of the whole army did not reach in number one thousand men. The Sikhs lost thousands in slain, all their guns but two were captured, and many thousand men were left wounded and prisoners in the hands of the pursuers. The following extracts from Lord Gough's despatch will throw additional light on the course of the conflict:—

"With my right wing I proposed penetrating the centre of the enemy's line, so as to turn the position of their force in rear of the nullah, and thus enable my left wing to cross it with little loss, and in co-operation with the right to double upon the centre, the wing of the enemy's force opposed to them.

"At half-past seven o'clock the army advanced in the order described, with the precision of a parade movement. The enemy opened their fire at a very long distance, which exposed to my artillery both the position and range of their guns. I halted the infantry just out of the fire, and advanced the whole of my artillery covered by skirmishers. The cannonade now opened upon the enemy was the most magnificent I ever witnessed, and as terrible in its effects.

"The Sikh guns were served with their accustomed rapidity, and the enemy well and resolutely maintained his position; but the terrific force of our fire obliged them, after an obstinate resistance, to fall back. I then deployed the infantry, and directed a general advance, covering the movement by my artillery, as before.

"The village of Burra Kabra, the left one of that name, in which the enemy had concealed a large body of infantry, and which was apparently the key of their position, lay immediately in the line of Major-general Sir Walter Gilbert's advance, and was carried in the most brilliant style by a spirited attack of the 3rd brigade, under Brigadier Penny, consisting of the 2nd Europeans, and the 31st and 70th regiments of native infantry, which drove the enemy from their cover with great slaughter. A very spirited and successful movement was also made about the same time against a heavy body of the enemy's troops in and about the Chota Kabra, by part of Brigadier Harvey's brigade, most gallantly led by Lieutenant-colonel Franks, of her majesty's 10th foot.

"The heavy artillery continued to advance with extraordinary celerity, taking up successive forward positions, driving the enemy from those they had retired to, whilst the rapid advance and beautiful fire of the horse artillery and light field-batteries, which I strengthened by bringing to the front the two reserve troops of horse artillery under Lieutenant-colonel Brind (Brigadier Brooke having the general superintendence of the whole of the horse artillery), broke the ranks of the enemy at

all points. The whole infantry line now rapidly advanced, and drove the enemy before it; the nullah was cleared; several villages stormed; the guns that were in position carried; the camp captured; and the enemy routed, in every direction—the right wing and Brigadier-general Campbell's division passing in pursuit to the eastward, the Bombay column to the westward, of the town.

"The retreat of the Sikh army, thus hotly pressed, soon became a perfect flight—all arms dispersing over the country, rapidly pursued by our troops for a distance of twelve miles, their track strewn with the wounded, their arms, and military equipments, which they threw away to conceal that they were soldiers."

At dawn next day Major-general Sir Walter Gilbert took the command of a corps of the army, principally consisting of cavalry, in pursuit. The retreat of the Sikhs, or rather their flight, was covered by fifteen hundred Affghan horse, who had arrived just before the battle. These, however brave, constituted a very irregular force, and soon became mixed with the mass of the fugitives. The flight of the Khalsa army was in the direction of the Khoree Pass. At the entrance General Gilbert halted, with the Bombay division, and sent General Mountain through the gorge to Pooran. It was necessary to secure this pass, as, if the enemy had been able to hold it, considerable difficulties might have been thrown in the way of the pursuers, especially as torrents gushed from the mountains, and the weather was wet and tempestuous.

On the 24th the pursuers resumed their march, but by that time the Sikhs had crossed the river, and the British did not succeed in getting sight of them until reaching Noorangabad. During this march, Major Lawrence joined the camp of Sir Walter Gilbert; Chuttur Singh, whose prisoner he was, permitting him on parole to proceed to the camp of the commander-in-chief with proposals from Shere Singh. Akram Khan, with part of the Affghan auxiliaries to the Khalsa army, retreated upon Attock.

On the 27th and 28th, Sir Walter Gilbert brought his forces over the Jhelum, compelling Shere Singh, with the relics of his army, to retire with precipitation. Gilbert was obliged to leave a portion of his forces behind in consequence of the high waters in the river, but by the 5th of March these followed. Before these detachments effected their passage, the armies of pursuers and pursued were nearly equal in number; but the Sikh chief wisely concluded that if he could not, with nearly four times the number of the British, prevent the latter from storming his strong position near the Chenab, he was not likely to hinder them, when their numbers were superior, from crossing the Jhelum. Gilbert was speedily reinforced, and at the head of an army of about twenty thousand men, with nearly fifty pieces of cannon, he so menaced the Sikh general, that the latter intimated his intention to lay down his arms.

On the 8th of March terms of submission were personally discussed, Shere Singh having come over to General Gilbert's camp. The English general demanded an unconditional surrender; and as the rajah hesitated, the English advanced to Hoormuk. Chuttur Singh and Shere, with several great sirdars, came over to the British camp, followed by the guns taken at Chillianwallah. The surrender of the

whole army was arranged to take place the next day. It was not, however, until the 14th that all the Sikhs had laid down their standards and their arms, which they did with the greatest reluctance, their countenances and tones being expressive of the deepest anguish. The conduct of the British was most generous. Each Sikh soldier received a rupee to enable him to reach his home; the cavalry were allowed to retain their horses—a boon which was highly appreciated, many of them expressing, and really feeling, the deepest gratitude. The artillery surrendered amounted to forty-one guns, and a number of tumbrils and carriages: the artillery horses were retained by the English. During the short campaign the enemy had lost one hundred and fifty-eight pieces of cannon, many of them of larger calibre than any in the English army. The detention of General Gilbert in negotiating and securing the surrender of the Sikhs, was favourable to the escape of the Affghans. Chuttur Singh had given up to them the fort of Attock, which they precipitately abandoned, their main force marching rapidly for the Indus. Gilbert endeavoured to intercept them, but was only in time to witness their success in making good their passage, and the destruction of the bridge of boats by which pursuit would have otherwise been made. The Affghans were reduced to less than half the force with which they joined Chuttur Singh, but they drew up on the bank of the river, and offered an artillery fire, to which the British replied in a manner that soon cleared the bank of the Indus of every trace of the enemy. Detachments were sent to take possession of Attock, and also of Hyderabad, on the right bank of the river. The British did not succeed in crossing the Indus until the 20th, when the Affghans had very far distanced their pursuers. They continued their march unmolested, either by Sir Walter Gilbert’s or any other force, entered the Khyber Pass, and proceeded to. Cabul. The sensation produced in that city by the total destruction of the Sikh army was very great. The Affghan fugitives, after the manner of orientals, gave the most absurd exaggerations as to the prowess of the British soldiers, especially of the officers, many of both being described as fiends, who proved their infernal nature by deeds of superhuman daring and strength. An alliance with “Shatan” was of course a mode of accounting for defeat which saved the honour of the fugitives, and satisfied the denizens of Cabul, as well as the wild clans _en route_ thither, that a retreat was wisdom. The government of Cabul became uneasy for the consequences, and Dost Mohammed Khan took measures to placate the British government, whose policy was not to pursue the war into Affghanistan. The government of Calcutta annexed the Punjaub to British India, and thus terminated the Sikh war. The governor-general issued, on the 29th of March, the following proclamation:—

“For many years, in the time of Maharajah Runjeet Singh, peace and friendship prevailed between the British nation and the Sikhs. When Runjeet Singh was dead, and his wisdom no longer guided the counsels of the state, the sirdars and the Khalsa army, without provocation and without cause, suddenly invaded the British territories. Their army was again and again defeated. They were driven, with slaughter and in shame, from the country they had invaded, and at the gates of Lahore the Maharajah Dhuleep Singh tendered to the governor-general the submission of himself and his chiefs, and solicited the clemency of the British government. The governor-general extended his clemency to the state of Lahore; he

generously spared the kingdom which he had acquired a just right to subvert; and the maharajah having been replaced on the throne, treaties of friendship were formed between the states.

“The British have faithfully kept their word, and have scrupulously observed every obligation which the treaties imposed upon them. But the Sikh people and their chiefs have, on their part, grossly and faithlessly violated the promises by which they were bound. Of their annual tribute, no portion whatever has at any time been paid, and large sums advanced by the government of India have never been repaid. The control of the British government, to which they voluntarily submitted themselves, has been resisted by arms. Peace has been cast aside. British officers have been murdered when acting for the state; others engaged in the like employment have been treacherously thrown into prison. Finally, the army of the state, and the whole Sikh people, joined by many of the sirdars of the Punjaub who signed the treaties, and led by a member of the regency itself, have risen in arms against us, and have waged a fierce and bloody war for the proclaimed purpose of destroying the British and their power.

“The government of India formerly declared that it desired no further conquest, and it proved by its acts the sincerity of its professions. The government of India has no desire for conquest now—but it is bound, in its duty, to provide fully for its own security, and to guard the interests of those committed to its charge. To that end, and as the only sure mode of protecting the state from the perpetual recurrence of unprovoked and wasting wars, the governor-general is compelled to resolve upon the entire subjection of a people whom their own government has long been unable to control, and whom (as events have now shown) no punishment can deter from violence, no acts of friendship can conciliate to peace. Wherefore, the governor-general of India has declared, and hereby proclaims, that the kingdom of the Punjaub is at an end; and that all the territories of Maharajah Dhuleep Singh are now and henceforth a portion of the British empire in India.

“His Highness the Maharajah shall be treated with consideration and with honour. The few chiefs who have not engaged in hostilities against the British shall retain their property and their rank. The British government will leave to all the people, whether Mussulman, Hindoo, or Sikh, the free exercise of their own religions; but it will not permit any man to interfere with others in the observance of such forms as their respective religions may either enjoin or permit. The jagheers, and all the property of sirdars and others who have been in arms against the British, shall be confiscated to the state. The defences of every fortified place in the Punjaub, which is not occupied by British troops, shall be totally destroyed, and effectual measures shall be taken to deprive the people of the means of renewing either tumult or war.

“The governor-general calls upon all the inhabitants of the Punjaub, sirdars and people, to submit themselves peaceably to the authority of the British government, which has hereby been proclaimed. Over those who shall live as obedient and peaceful subjects of the state, the British government will rule with mildness and beneficence; but if resistance to constituted authority shall again be attempted—if violence and turbulence be renewed, the governor-general warns the people of the

Punjaub that the time for leniency with them has passed away, and that their offence will be punished with prompt and most rigorous severity."

As soon as matters were placed on a footing of order as to the government of Lahore, Moolraj was brought to trial before a special military commission, consisting of four British and two native officers, and a colonel of the Sikh army. The charges against him were:—"1. Having aided the murderers of Mr. Van Agnew and Lieutenant Anderson; 2. Having been an accessory to that crime before the fact; 3. Having been an accessory after the fact."

The object of pressing the one charge of murder in a threefold form was to prevent the captive obtaining a verdict of not guilty, if only the first form expressed the charge. He was allowed the service of an advocate; Captain Hamilton performed that office in a very able and ingenious manner. After a trial which lasted fifteen days, he was found guilty on all the charges, and sentenced to death. The sentence was commuted by the governor-general into imprisonment for life at Singapore. This was not accepted by the captive as a favour, who demanded rather to die like a soldier than live a captive. He had borne up with the noblest manhood, and received with a slight smile and composed countenance, but without any bravado, the announcement that he must die; but the commutation of his sentence caused the most passionate lamentations. He desired to be shot at Mooltan, or, if he must he a captive, there to spend his captivity; but to be a prisoner, and expatriated, was intolerable, and he craved to die. The orders of the governor-general were not, however, affected by the patriotic desires of the murderer—for such Moolraj was. His heroic conduct in honourable war won the admiration of the British officers, civil and military, but they could not forget that he murdered in cold blood their brethren. Intelligence of these events caused much joy in England, for the disturbed state of the continent, the distressed and agitated state of Ireland, and in part of England, caused apprehensions that a foreign war might possibly break out, and this at such a time would render conflict with the Sikhs a perilous matter to the empire, as they were the only remaining power dangerous to British interests in India. There were, however, many unfavourable reports raised of the mode in which the negotiations were conducted which closed the war under Lord Hardinge, as well as that which had just terminated. These created dissatisfaction in England, and led to inquiries in parliament; the questions which excited most attention in the country referred to the appropriation of the celebrated Koh-i-noor diamond, and the new regulations about _batta_, which caused discontent in the Sepoy army.

On the 3rd of July, in the House of Lords, the Earl of Ellenborough moved for papers explanatory of the circumstances under which the crown had granted to the Court of Directors of the East India Company, or to the army in India, property conquered from the enemy; the question involved being with reference to the confiscation of the property taken in the district of Lahore, including the Koh-i-noor diamond, which the governor-general had agreed by treaty should be appropriated to the liquidation of the accumulated debt due by one of the states to the Indian government, instead of devolving to the crown as booty, such booty having always been granted to the armies since the year 1758, as then decreed by patent. The noble

earl concluded his speech in favour of inquiry, by stating that, for every battle in India previous to those in the Punjaub, a pecuniary reward, under the name of batta had been given, but not so in the latter cases; and he implored their lordships and the government, if they desired to retain the Indian territory, above all things to do justice to the army.

The Marquis of Lansdowne detailed the circumstances under which the property was acquired, explaining that Dhuleep Singh was not a prisoner, but was treated as sovereign prince when the treaty was made, and doubtless the governor-general considered himself at liberty to conclude such a treaty, and dispose of the property obtained from the state of Lahore in any way which he thought best for the government of India. The subject, however, should be reconsidered in reference to its legal matters.

The Duke of Wellington defended the governor-general from, the implied suspicion of a want of attention to the merits of the Indian army, entered into some technical explanations as to the treaty, and suggested that the subject should be left in the hands of the government at home, and the governor-general in India, to settle the question of booty (there being immovable as well as removable property involved, which could not, strictly speaking, come under the designation of booty), who were most anxious to do full justice to the Indian army.

State of India after the Annexation of the Punjaub.—The peace of India was not entirely secured by the termination of the Punjaub war; the hill tribes in the neighbourhood of Peshawur gave uneasiness, more or less, throughout the year. The enemies of Gholab Singh continued their intrigues, and in considerable numbers had recourse to amis. It was supposed that the English would not again interfere on his behalf, as he had acted more like the ally of Chuttur and Shere Singh, and the other sirdars, previous to the battle of Goojerat, than as the ally of the British. Gholab had, however, the address to engage the Company’s civil servants, and the military men acting in that capacity, on his side; and he managed to hold up the English name _in terrorem_ to his refractory subjects, so as to keep them from maturing, or at all events effectuating, a decided revolt. The Affghans were also troublesome on the Scinde frontier, and by their agents sought to stir up the Beloochees to predatory and desultory warfare.

Troubles in the Gwalior Territory.—The withdrawal of troops for service elsewhere left Gwalior with but few military detachments, this circumstance encouraged the disaffected there, and a partial insurrection took place. Two leading chiefs were implicated. Lieutenant-colonel Graves collected troops, and successively stormed a series of forts, thus putting an end to the power of the insurgents.

The arrival of Sir Charles Napier was hailed with satisfaction, as the prestige of his name had spread all over India. Lord Gough’s departure was, however, a subject of regret, for the venerable and glorious old general had by his heroism, urbanity, and goodness, won every heart. Enemies respected and esteemed him; his soldiers, and all connected with the government of India, respected and loved him. During the autumn long conferences were held at Simla, between the governor-general, the

commander-in-chief, and the ex-commander-in-chief. Sir Charles Napier there imbibed impressions unfavourable to the government of India in many respects, and previous prejudices, which he was known to entertain, were strengthened. His views of the constitution and management of the Bengal army, and of the way in which the armies of all the presidencies were officered, were such as to excite in his mind alarm for the fidelity of the Bengal Sepoys, and the safety of our Indian possessions. He subsequently left Simla on a tour of inspection through the Punjaub to Peshawur; various suggestions were made by him which were not attended to; the reforms which his subtle mind saw to be necessary, and his vigorous habits required to be immediately put in force, were obstructed by both military and civil authorities; and it soon became obvious that he could not long co-operate with the authorities of India, either there or at home. He had hardly assumed the command-in-chief when prognostications were indulged concerning his early resignation, which were, unfortunately for India and for England, fulfilled.

In the Madras presidency, disturbances were occasioned by Mohammedan fanatics. Wherever in India Mohammedans resided, they were disloyal. No kindness conciliated them; and in some places, such as Delhi, where they were numerous, an unarmed European was always in danger. In the Bengal and Madras presidencies, the army was to a great extent recruited from that sect, and in the former provinces much to the hazard of the government, for that soldiery united to the fanaticism of Mohammedanism all the pride of caste characteristic of the heathens, and these united peculiarities fostered a deadly enmity to the government whose salt they eat and whose arms they bore. In the Madras presidency, a sect of Mohammedans existed known as Moplahs. It was the custom of these Moplahs to gather together and perpetrate some sanguinary outrage, and then shut themselves up in a strong place, and sell their lives as dearly as possible. By this course they hoped to kill as many Giaours as possible, and obtain a large reward in the paradise of the prophet. During the month of August a body of these fanatics pursued a course of violence and depredation, but were pursued by the police. The fugitives shut themselves up in a temple, a very strong place, from which the police either could not or would not dislodge them. Captain Whyte, at the head of a detachment of the 43rd native infantry, was sent to perform this service; but his men, after firing a volley, fled as if panic-struck, leaving the captain and a few other men, Europeans and Hindoos, to the will of the Moplahs. Their “tender mercies were cruelty,” for they cut the captain and his few brave followers to pieces. The conduct of the native troops was treated as unaccountable—a sudden fear for which they could give no reason; the fact being that they sympathised with the assassins whom they were sent to assail. Afterwards a detachment of the 94th European regiment attacked the temple, and, after some severe fighting, were repulsed; a second onset was more successful, and the murderers who made it their garrison were put to the bayonet.

There were many trials for India during the year 1849. Cholera raged fearfully, sweeping away a large proportion of the population of many villages and large towns, and also laying its cold hand upon many a European.

At a great heathen festival at Trichinopoly, during an outburst of fanaticism, four hundred persons were trampled to death, and a vast number injured. These mad assemblages for idolatrous purposes not only received too much tolerance from the government, but sometimes were favoured with encouragement.

During the rainy season, the country was deluged, and the region of the five rivers, the theatre of such sanguinary war, especially suffered. The floods were so overwhelming, that they were said to have rushed up the rivers at the rate of seventy miles a day, until the whole country was inundated. The torrents which poured along the course of the Chenab swept away the great fortress of Mooltan, so long the prize of conflicting armies. The Sikh nation was exposed to much suffering, as well as signal defeat, and their humiliation was only beginning, for the native princes were on every occasion reminded, at Calcutta, of their fallen fortunes. This may be exemplified in an extract from the “American Merchant Abroad,” by G. F. Train, who attended a ball at Government House, Calcutta, long after the conquest of the Punjaub, just before Lord Dalhousie retired; he thus records his impression of the scene:—“There, too, were the brave Sikhs of the mountain dens, Shere Singh and Chuttur Singh, who held their passes, those bold chieftains who fought like tigers in their country during that memorable campaign of 1848–9, and finally, overpowered by the superior force brought against them, after going through the celebrated battles of Chillianwallah and Goojerat, were brought to bay at Raweel Pindee, where, after the most obstinate war, they surrendered their sabres to Sir Walter Gilbert, the able general, who was made a G.C.B. and a baronet for his bravery and judgment on that occasion. It was pitiful to see brave warriors so painfully humiliated, for they moved about the room in their stockinged feet like so many automatons, shrinking and cringing before their conquerors, evincing the greatest pleasure in receiving the least attention from the civilians in the room. Their appearance without shoes is by order of the governor-general, to remind them of their disgrace, and to show proper respect to those that hold the sway: this, I am told, is the custom of the land. This last tax upon their pride might at least have been passed over, for why strike them while they are down? These princes, it will be remembered, were the chieftains of the Punjaub, and their surrender was the signal of annexing that great kingdom to the British empire. The ameers of Scinde, I believe, are also among the dark faces opposite. Other warriors as brave as they have been unfortunate—the captives, or rather the victims, of Sir Charles Napier.”

The ameers were of course subjected to similar indignities: these things could but inspire hatred among the native princes, which broke out malignantly soon after Lord Canning’s Indian career commenced.

CHINA.

The governor and garrison of Hong-Kong were startled by a deed of atrocity and perfidy on the part of the Chinese. On the 22nd of August the governor of Macao, who had acted more firmly towards the commissioner at Canton than his predecessors, was waylaid and assassinated. Proofs arose that the Chinese authorities were concerned in the outrage, and a conflict of a serious nature ensued between the Chinese and the Portuguese troops. The British, French, and American naval officers

on the station brought up their war-ships to protect the residents at Macao who belonged to their respective countries, and to render such assistance as might be possible to the Portuguese authorities. But for this, the Europeans resident at Macao would probably have all been massacred.

At the same time, the chief commissioner of his Chinese majesty at Canton issued very stringent edicts against smuggling, and the English merchants and marine were subjected to repeated insults. No conflict, however, occurred; but the seeds were sowing for future contest. After laborious negotiations, and many minor outrages, a peace between the Portuguese of Macao and the Chinese was ultimately arranged. The Portuguese themselves were as little to be trusted or respected as the Chinese; probably, where religion was concerned, less bigotry was exhibited by the Pagan Chinamen. An instance in proof of this occurred at the very juncture when Englishmen were offering their assistance to the Portuguese authorities, and preserving the lives of Portuguese subjects, which their own government had not force sufficient to do. On the 25th of August, Mr. Summers, an English missionary, was cast into prison because he did not take off his hat to the procession of _Corpus Christi_ in the street. The Englishman excused himself by a declaration that his conscience would not allow him to do any act of religious reverence in such a case; but that he meant no disrespect, and regretted that he did not think of passing into some other street, thereby avoiding the procession. These reasonable explanations and polite statements did not mollify the Portuguese civil and ecclesiastical authorities; and an English Protestant subject was incarcerated for not performing an act of Roman Catholic worship in the public streets of a city which English arms were saving from pillage and massacre! Captain Keppel, of her majesty’s ship _Meander_, however, demanded Mr. Summers’s release, which was refused, when he gallantly landed a party of marines, and took him out of prison. The Portuguese resisted with fierce fanaticism, and some loss of life ensued; but the English officer accomplished his purpose, and inflicted humiliation upon the bigots whose tyranny compelled his prompt and manly act.

BORNEO.

Sir James Brooke, the Rajah of Sarawak, whose heroic efforts to suppress piracy in the Indian Seas have been noticed on a former page, continued his exertions in clearing those seas of the pirates, and in building up settlements on the coasts of Borneo. July was generally the expeditionary season for the pirate chiefs, and Sir James resolved this year to prepare for their severe chastisement, and, if possible, for their extirpation. Accordingly, Commander Farquhar, in command of her majesty’s brigs _Albatross_ and _Royalist_, the celebrated steamer _Nemesis_, belonging to the East India Company, and the steam-tender _Ranee_, were joined by the rajah himself in command of a native flotilla. The squadron entered the mouth of the Sarrebas river, as the rajah had certain information that the pirates intended to inflict pillage and massacre upon the people of that neighbourhood. On the evening of the 30th, tidings reached Sir James that the pirates were attacking a place called Palo. The next day one of the look-out boats brought in tidings that the pirates were advancing in full force. The _Nemesis_ first put to sea; and being seen by the pirates, they made

for the Kaluka river. The boats under the command of Lieutenants Wilmshurst and Everest, with the native boats under Sir James, intercepted the pirate flotilla, the men-of-war's boats opening a sure and destructive fire upon them. The night had already fallen, and the naval officers were anxious lest they should fire into the rajah's boats instead of those of the enemy. A pass-word had been agreed upon to avert this danger—the word "rajah;" but the occupants of the native boats never ceased screaming this word, rendering it difficult for the naval officers to determine in what quarter there was an enemy, in which a friend also was not in danger of their fire. This state of hesitation favoured an effort to escape on the part of the piratical prahus, two of which made sail seaward. The steam-tender pursued, but the larger prahu made again for the river, was run down by the _Nemesis_, and her crew, sixty in number, were destroyed. The other prahu kept seaward, pursued by the tender, who fired into her a large congreve-rocket, by which she was destroyed. The boats of the squadron then rowed up the Sarrebas river, and destroyed a few prahus, some pirate villages, and a town which seemed to be the head-quarters of the pirates in that direction. The flotilla next proceeded up the Rejanz river, and severely handled the natives indiscriminately; for it was known that such as were not pirates themselves aided them in every practicable way. Several hostages and prisoners were taken; among others a little child, very fair, and apparently having belonged to European parents who were murdered by the Dyaks. It was found that, during the night conflict, a very extensive destruction had been inflicted upon the prahus and their crews. Dead bodies lay in great numbers washed upon the shores, with shattered boats, presenting a scene of wreck and slaughter terrible to contemplate. Of one hundred and twenty prahus which constituted the force of the piratical expedition, eighty were destroyed; about twelve hundred men of their crews perished. Most painful scenes were presented to the British in the course of their proceedings, horribly verifying all that had been heard of the cruelty of the natives of these regions. They had taken many captives, and before putting to sea decapitated them, and gashed their bodies with knives: many who had been thus treated were women. When the news of these proceedings reached England, there was a great public outcry; Mr. Hume, Mr. Cobden, and many members of the Peace Society, alleging that Rajah Brooke had instigated these measures for his personal interests; that the inhabitants of these coasts were not pirates; that their armed prahus were their fleets, by which they desired to protect themselves from the rajah's aggressions; and that England was dishonoured by the sanguinary destruction of harmless and unoffending natives. Evidence was adduced, on the other hand, to show that the persons destroyed were not inoffensive seafarers, but bloodthirsty barbarians and pirates. This evidence failed to convince those who raised and sustained the outcry, and ultimately the rajah had to return to England and defend, himself. He satisfied the government and the general public; but the party which had attacked him conceded little or nothing, and continued to denounce the proceedings of Sir James, in Borneo, as unjust and aggressive, with the ostensible object of abolishing the piracy alleged to be so prevalent on those coasts.

THE CAPE OF GOOD HOPE.

An event occurred which disturbed the loyalty of this colony. The home government felt considerable difficulty in dealing with its convicts, and, among other places, the Cape of Good Hope was selected for experiment in the establishment of convict colonisation. The inhabitants resisted with the greatest determination; and the haughty manner in which Earl Grey, the colonial minister, bore himself, exasperated the colonists, and inflamed their animosity against the proposed measure. Public meetings were called, in which the ministers of religion took a very prominent part; and it was resolved neither to sell to the government nor the convicts. The ship having arrived which bore the unwelcome freight, every form of opposition previously determined upon was put into execution, and the government was at last compelled to give up its purpose, and the convict-ship was ordered away to Van Diemen’s Land. The Colonial-office had long projected making the Cape a penal colony, and it was supposed that political convicts would not be objected to. The colonists believed that this was merely the plan of insinuating the thin edge of the wedge, which would ensure the whole being driven home. John Mitchell was among the convicts; that gentleman having suffered at Bermuda from the climate, the government desired in mercy to place him in one more salubrious for persons afflicted with pulmonary disease. The colonists of the Cape were willing to receive him as a settler, but not as a convict, and expressed themselves concerning him in terms of sympathy and respect. The plan of the government to make it a place for political prisoners, was as unsuccessful as the project of making it a general penal settlement: and in the end the people of the Cape obtained, by their obstinacy and energy, a complete victory over the Colonial-office.

The contest in the parent country between the principles of protection and free-trade affected the political and social condition of the West Indies. Jamaica, being the principal colony, its example had a beneficial or baneful influence upon all the other West-Indian colonies. The Governor of Jamaica, Sir Charles Grey, was very unpopular, and his instructions from the Colonial-office were neither wise nor conciliatory. Those instructions, however, being necessarily made in the free-trade spirit then ascendant in the British legislature, would hardly have pleased the planters, however well intended or judiciously ordered. In that particular, the _suaviter in modo_ would never have compensated for the _fortiter in re_. The new Assembly was hostile to the governor, and its votes showed its hostility, especially in reference to the supplies. Throughout the year, this state of things continued. The negro population sympathised with the government, and boasted of their willingness to turn out and fight for the queen. The parish of St. Ann elected a black representative. Agitation of almost every kind that could afflict a West-Indian colony prevailed in Jamaica. The other colonies in that region were generally discontented, although in most the crop of sugar was good; in some however it failed, increasing the dissatisfaction which the prevalence of free-trade opinions in England created. At Antigua and St. Kitts the chief cause of complaint was the want of rain. In Demerara, the political aspect of affairs was more favourable to the government—the combined Court, which had refused the taxes, having, by a small majority, retraced their steps, and effected an understanding with the governor, which facilitated his administration.

CANADA.—POLICY OF THE GOVERNMENT.—OPPOSITION AND INSOLENT PROCEEDINGS OF THE BRITISH PARTY.

The state of Canada during 1849 was most unhappy, and the policy of the English ministry most unjust. The discontent existed chiefly in Upper or Western Canada, and amongst the population, which was British, or of British origin. In 1837–8, when nearly all Lower or Eastern Canada was in open rebellion, only partial insurrection existed in the Western province, where people armed in behalf of the government. During the rule of Lord Metcalfe, a bill of indemnity passed the Canadian legislature, on behalf of the loyalists of Western Canada, who had suffered loss of property in consequence of their loyalty. As soon as Lord Elgin became governor-general, claims were set up for the loyalists who had incurred losses in Lower Canada. This seemed to be reasonable and just; but the portions of that province which had suffered at all had been the foci of rebellion, and the sufferers were those who had perilled life and property in opposition to the government; it was therefore a trick on the part of the Lower Canadians, who had been the rebels, to reimburse themselves at the expense of the loyal population. The proposal therefore excited in Upper Canada, in portions even of Lower Canada, and in Great Britain, warm indignation, and a formidable opposition was organised. During the Canadian session of 1848, the colonial ministry was obliged to resign in consequence of a vote of want of confidence; that ministry had belonged to the British party, but the vote constrained the governor to choose his ministers from the Lower Canadian, or French party. This ministry was of course favourable to the scheme of their own party, and encouraged those whose rebellion had caused their losses, to prosecute the demand, which practically amounted to a tax upon the loyal, for the especial advantage of the disloyal. In consequence of the opposition, by the English party, the bill actually brought in provided that no person who had been guilty of treason after the 1st of November, 1837, should be allowed to claim under the act of indemnification. This concession, which appeared to comprehend all that was necessary, and to place the measure on an equitable basis, did not satisfy the British party, who declared they had no confidence in the ministry, whose sympathies were wholly French, and who would find pretexts for indemnifying their own party by ignoring the proofs of their treason. The bill, however, passed through the Canadian parliament, after a fierce struggle from the opposition. The British party still remained quiet, in the hope, faintly entertained, that the queen’s representative would refuse the royal assent, dissolve parliament, and take the sense of the colony on the question. The governor, either on his own judgment, or by the directions of the Colonial-office, instead of taking that course, which under such circumstances would have been the most just and constitutional, gave his sanction to the measure, as well as to some other bills which were not palatable to the Western settlers. The ministry had, at the same time, exasperated the Protestant and British Canadians, by various acts which savoured of hostility to them, and of partiality to the French and Roman Catholic Canadians. After the governor-general gave the royal assent, his carriage was stoned by a mob consisting mainly of gentlemen, and the parliament house itself was broken open while the members were in debate, the building fired and destroyed, the members being permitted to retire unmolested. The governor, Lord Elgin, in his despatch to Earl Grey, described the population of

Montreal as numbering fifty thousand inhabitants, of whom he gave on the whole an indifferent character, as belonging to secret societies, and “having other agencies of mischief,” with only two policemen in the service of government, and seventy in the service of the corporation. If, however, no complaints of the disloyalty or disorder of Montreal had been customary, and a few police were sufficient to maintain peace, it is presumptive proof that his lordship was influenced more in using this language by the feelings excited in his own mind, from the opposition and indignation of the most loyal and respectable citizens of the place, than by any demerits on the part of the Montreal citizens. The parliament met in the Market Hall, and by a large majority voted an address of confidence to the governor-general. The citizens met in the open air, in the Champs de Mars, and voted with acclamation an address to the queen, begging her to refuse her assent to the Indemnity Bill, which they indignantly designated “an insult and a robbery to every man who, in the time of trial stood forth to defend her majesty’s crown and dignity.” The memorial also prayed, in very earnest terms, for the recall of the Earl of Elgin.

On the 31st of May, the governor-general prorogued the parliament, but the governor took no measures to soothe the English settlers, while his ministry, proud of their triumph, offered them many gratuitous affronts. The British party, on the other hand, conducted itself with much arrogance and violence, to which it was moved as much by the free-trade measures of the imperial parliament as by any grievance it felt in connection with the Lower Canada Indemnity Bill, or the ascendancy of the French party in the local government. An assembly had been convened from all parts of Canada, and other portions of the North American colonies, which called itself the “British League;” this body was ostensibly formed to consider the interests of the country, which it was assumed were neglected by the parliament and government. The League assembled on the 25th of July, and broke up after six days’ deliberations, on the day when parliament was prorogued. It was the intention of those who formed it to alarm the government by an impression that a movement would be made for annexation with the United States, and many were really in favour of such a measure. There were objections which, however, weighed against such a step in the minds of the British party generally. One was the antipathy felt to negro slavery under any circumstances, but more especially as tolerated in the United States. Another was the hostility generally entertained in the latter to the principle of an Established Church, whereas nearly all the Episcopalians, Presbyterians, and Methodists of the party were in favour of state establishments of religion, which had been one of the most fertile sources of party dispute in both the Canadas. It was generally supposed that the United States’ policy would be more in favour of the protective system than Great Britain; and that Canada could form stipulations on that basis which would render her annexation a mutual advantage. This, however, was denied strongly by many of the party, and doubted by more. Before the League closed its labours, it issued a manifesto to all the colonies of Great Britain in America, and passed the following resolution, which sufficiently sets forth the spirit of the manifesto itself:—“Resolved—That a president, six vice-presidents, secretaries, a treasurer, and an executive committee of ten, be appointed by the convention for the purpose of conducting at the seat of government the general business of the league. Every

township, village, town, and city in the province will have its branch; and in each district the presidents and vice-presidents of its Branch Leagues will form an executive body for district business; and all these officers, together with those first named as the general executive, will constitute the Central League. Protection to home industry, with the view of encouraging the establishment of domestic manufactures; retrenchment in the expenditure of the government, or the better apportionment of that expenditure to the existing means of the province, and an extension of our home market, and the consolidation of British interest, by the union of the colonies—these present specific objects worthy the employment of our highest efforts for their attainment."

This was the last act of the convention. The demonstration was on the whole loyal, contrary to the expectation of both its promoters and government. That the general public of British birth or extraction did not meditate rebellion at this juncture was evinced by the following record in a Montreal journal, of an occurrence which took place on the very day that the parliament was prorogued, and the British League adjourned its sittings:—"A public meeting of the citizens of Montreal was held on the 31st ult., at which it was all but unanimously agreed to lend the credit of the city to the extent of five hundred thousand dollars to the completion of the St. Lawrence and Atlantic Railway, which will connect Montreal with Portland (Maine), and open out the splendid intermediate county. This, with two hundred thousand dollars from other sources, it is expected will execute one-half the work, and then the guarantee of the legislature under a general act comes in; and an expectation is entertained that the other half may be borrowed in England, on the joint security of the railroad and the province."

A very large party, however, contemplated the peaceable separation of the Canadas from the mother country; others supposed that Great Britain would consent to the union of all the North American provinces, and, after a time, recognise the independence of the new province thus formed. These agitations showed how deeply laid, and how extensively prevalent was the discontent among the most industrious, enterprising, and respectable colonists. Religious animosities amongst the colonists themselves embittered the social condition of the country. At a place called Bytown, during the autumn, there were repeated conflicts between Protestants and Roman Catholics, which left lasting acrimony and dissatisfaction among the former, from the fact that Lord Elgin's government appeared to favour the latter party. This circumstance renewed the desire for annexation, and a petition containing twelve hundred signatures of persons of respectability, of British birth or lineage, was got up for presentation to the queen. This petition would have been far more numerously signed, but for the impression that it could not be received, being unconstitutional. At the close of the year the division of parties, especially "Annexationists" and "Anti-annexationists," ran high, and a new element of discord was introduced by the projected removal of the seat of government from Montreal to Toronto or Kingston. This subject was discussed with heated temper, even by those who were for separating the Canadas altogether from the mother country, and who might be supposed without interest in the question.

At home a certain party in the commons and the country favoured the views of those who would separate the colony from the crown. The speeches of these gentlemen encouraged dissatisfaction in Canada, and contributed largely to the elements of disturbance there. The Irish Roman Catholic members of parliament, and the newspaper organs of that party, were singularly inconsistent; they argued for the separation of the colony, yet they denounced the disloyalty of the party in Canada which promoted it, because that party was chiefly formed of Protestants, and were adverse to the French and Catholic sections of the colonists. The influence of the Irish newspaper articles, and of the speeches of those who partook of the opinions, expressed by them, were mischievous in Canada, where even' expression of opinion pronounced at home was watched and reproduced. Some of the disloyal papers in Ireland, while abusing the Canadian Protestants with bitterness, expressed their hope that they would settle the dispute by an appeal to arms, forcibly severing the colony from the sceptre of Victoria. These treasonable wishes were published with impunity. The year 1849 closed sadly in Canada: blood had been shed, incendiarism had been perpetrated, disloyalty had spread; and the main causes of this state of things were the infatuation of the colonists in favour of commercial protection, and the inability of the governor-general of the Canadas, and of the ministry at home, to descry the policy which was most calculated to serve the interests of the mother country and the colony together.

AUSTRALIA.—DISCONTENTS CREATED BY THE TRANSPORTATION QUESTION.

The Australian colonies were generally prosperous in 1849; few new incidents of any kind occurred, and none to make the year peculiar in history. The convict question, however, caused uneasiness. In Van Diemen's Land horrible outrages were committed by "ticket-of-leave men," and some parts of the island resembled pandemonium.

At New South Wales, much discontent was created by the English Colonial-office violating an existing compact with that colony, to send them no more convicts, and the Assembly passed the following resolutions—"1. That, considering the arbitrary and faithless manner in which this colony has been treated by the Right Honourable Earl Grey, this meeting most humbly prays her majesty to remove that nobleman from her majesty's councils.—2. That it is indispensable to the well-being of this colony, and to the satisfactory conduct of its affairs, that its government should no longer be administered by the remote, ill-informed, and irresponsible Colonial-office, but by ministers chosen from, and responsible to, the colonists themselves, in accordance with the principles of the British constitution.—3. That this meeting, having unanimously agreed to the preceding two resolutions, the following humble address to her most excellent majesty the queen, embodying them, be adopted, and that such address be signed by the chairman on behalf of the meeting. [The address was a mere transcription of the resolutions, placed in the ordinary form.]—4. That, considering the discourtesy shown by his excellency the governor to the former meeting, and to its deputation, this meeting abstains from appointing a deputation to wait upon his excellency with the preceding resolutions and address; but requests the chairman to transmit them to him, with a written request that his excellency will be

pleased to forward it to her majesty the queen for her gracious consideration."

With reference to the arrival of convicts which had just taken place, the _Sydney Morning Herald_ had the following:—"All the convicts will be removed from the ship this morning. They have all been engaged. In addition to those previously mentioned, a large draft was sent to Paramatta on Saturday. The forty-five sent to Moreton Bay were forwarded at the expense of the government, not being under any engagement, but merely sent to the district in order that the settlers may have the opportunity of hiring them. All the rest have been taken from the ship at the expense of the employers. We believe that the only restrictions are that the men shall not be landed in Sydney, and that they shall not be employed in the county of Cumberland."

The policy of Earl Grey was, for the time being, carried out.

CEPHALONIA.

The disturbances which prevailed in 1848 were continued in 1849, and revived again and again, fitfully, when they seemed to have been suppressed. An attempt was made to assassinate the governor of the island, and a soldier was shot by his side, and several others near him were wounded. Murder and incendiarism prevailed everywhere, and open revolt where there was any chance of even temporary success. The same cause which existed in 1848—the desire for annexation to Greece—produced these proceedings; but certain banditti chiefs took advantage of the feeling, in order to promote their own predatory designs. The musket and the gallows suppressed these outrages. The public trials of the chief offenders betrayed a state of dishonesty, treachery, treason, and bloodthirstiness among the population generally, disgraceful to the Greek race.

The colonial history of the British empire during this year involved no other incidents that were remarkable—in general it was discontented and disturbed; but the energy of the military and civil officers, and the fidelity and valour of the troops, subjugated all opposition, or held adverse interests at bay, and kept down disaffection, until future opportunities allowed of more signal success. India was the scene of more striking events, which had their full share of peril and glory.

THE ARCTIC EXPEDITION UNDER SIR J. ROSS.

Perhaps no subject engaged the mind of the British people more sympathetically and powerfully than the fate of the brave men who formed the great Arctic expedition. Sir John Franklin was popular, and eminently deserved to be so; and the public desired that every effort should be made, and every risk incurred, for his deliverance—or, at all events, a satisfactory solution of the doubts which prevailed concerning his existence. For this purpose an expedition was sent out under Sir James Ross, with specific instructions to prosecute the search in a certain direction, which would not interfere with efforts elsewhere, so as to determine, at all events in one great field of exploration, if he yet survived. Sir James and his gallant crews arrived off Scarborough on the 3rd of November, and on the 5th the gallant officer presented his report at the Admiralty. The following account of that report, from official authority, will afford sufficiently full information of the result:—

“It is Sir James Ross’s confident opinion that neither Sir John Franklin, nor any of his brave companions, are eastward of any navigable point in the Arctic regions; and if there be any chance of their existence, it is in the supposition that he proceeded in a westerly direction, and in such case we can only expect to hear from the missing adventurers by the Mackenzie detachment, or by her majesty’s ship Plover, Commander Moore, by way of Russia.

“Sir James traversed at least two hundred and thirty miles on the ice, the bergs of which were frightful, much more so than any of the experienced Arctic voyagers had seen before. Sir James and his party penetrated as far as the wreck of the _Fury_, where he found the old tent standing, and everything about it in a state of the best preservation. At this point Sir James deposited a large quantity of provisions, and also the screw-launch of the _Enterprise_. The march of Sir James across the boundless regions of ice is truly stated as a most unparalleled feat in exploration. We are sorry to find, however, that it was in no way successful. The captain, officers, and ship’s company have worked together most harmoniously—a spirit of emulation having animated every one in the great philanthropic task of endeavouring to cany help and succour to their long lost friends. In the whole courses of his researches it is said Sir James Ross never met with a single Esquimaux.

“Sir James speaks most highly of all those who have been connected and associated with him. He is fully satisfied that all is done that could be done by the Admiralty, in the appropriation of the vessel, the selection of the crew, and the extensive equipment of each vessel, in stores, provisions, &c.”

FOREIGN AFFAIRS.

A glance at the state of Continental Europe is necessary for a clear view of the relation of England to other states. The revolutionary spirit of 1848 had not passed away, yet already symptoms of reaction appeared in several of the continental states. The daring and dissolute doctrines of French, German, and Italian socialists created universal alarm, among all who regarded, with any sacredness, the ties of family and the rights of property. It was seen that, however hateful despotic monarchy, and the ascendancy of a bigoted and superstitious church, these oppressions were far preferable to the levelling and loathsome tyranny of socialism, in any of the forms in which it presented itself in England, France, or Germany. Whatever was abhorrent to the natural sense of justice, and the dear claims of kindred, was propagated by socialism; and which the socialists, whether called Owenites, St. Simonians, or red republicans, were ready by force to establish. Enlightened men were therefore in doubt, during the early part of 1849, what part to take; their aspirations were for liberty; but the multitude preferred license, and, without the multitude, nothing could be enforced upon despotic governments and ecclesiastical systems. It was now hoped that governments had been warned; that kings would never again venture to violate political promises to their people; that constitutions would never again be revoked by princes; and that, consequently, little was to be apprehended from the governing powers: whereas, everything dear to social order, happiness, and sacredness, was to be feared from the social and political fanatics that to so great an extent guided the peoples,—exciting false hopes, stimulating violent action, propounding doctrines

destructive of social order, and menacing a tyranny more formidable than had ever before been witnessed in the world. With these feelings, the good and true rallied round the centres of ordinary government and order—but, alas! they were deceived; they did not take the Scripture warning, “Put not your trust in princes.” Pledges and promises were made by the foreign despots and their ministers, more profusely than even during the war of 1812; but all this was only destined to exemplify the necessity for the warning given by Him who best understood human nature—“Cease ye from man, whose breath is in his nostrils.” The friends of order, peace, and rational liberty believed the protestations of potentates, and used their influence, and armed on the side of governments in the conflicts of 1849. The result was, they unconsciously abetted a reaction by which the old chains were riveted upon the people, and new ones forged still further to fetter them.

The state of France most interested England, because all great changes in that country influence the whole of Continental Europe, and, in fact, affect more or less the whole civilised world. France, throughout the year, was rent by the violence of party. Three royal factions, the Buonapartists, the Orleanists, and the Bourbons, _par excellence_, were sowing broadcast the seeds of social dissension. The two great-republican parties—that of the socialists (or “reds”), and that of a philosophic and rational republicanism, led by Cavaignac and Lamartine—were ardent in their appeals for popular support. The party of the church watched all the others, ready to exert its influence wherever it could serve itself, by preventing any political sect from settling into power, except under such conditions as, in its own interest, the church should prescribe. The party of the president (the Buonapartists) gradually and steadily gained over all the others; the soldiery and the peasantry were Napoleonist; the church saw this, and threw its weight into the presidential scale. The union of peasant proprietary, the army, the church, the Buonapartists proper, and the friends of order, who believed in the oath of the prince-president, constituted the will of France;—the policy of Napoleon was accepted by many because it was his: it was his, because he knew it would be acceptable to many as the only safeguard against anarchy, and the only form of absolutism that could be substituted for liberty, or impose upon its friends.

While revolution raged everywhere, Rome was in arms, the pope was a fugitive, and a provisional government ruled the estates of Romagna, Bologna, and Ferrara, in the name of freedom. The Romans conducted themselves justly and heroically, but the Austrian government, whose successes in Italy and Hungary, as well as in the duchy of Austria, gave her confidence, was anxious to restore the pope and enforce his government by the bayonet. This was not acceptable to either the governments of England or France. The latter resolved to interfere, and the question arose and was anxiously mooted in England, what, under such circumstances, was the true policy of Britain? Lord Palmerston, who was strongly opposed to Austrian ascendancy in Italy, was favourable to French intervention; and there were persons who asserted that the idea itself originated not at the Tuileries, but in the English Foreign-office. At all events, no opposition was offered, and a French expedition to Rome resulted. The Romans fought in a way worthy of Romans, but, borne down by the superior power of France, their proud city yielded to the invader, and the pope, under joint French and

Austrian protection, returned to rule his reluctant people at the Vatican. It then became necessary for France to modify and restrain the fiery persecution which the restored pontiff visited upon his temporal subjects, at the instigation of Austria and Naples. In this, however, the French were not as zealous as in restoring the pontifical tyranny; and, as in the misrule of Louis Philippe, his chief agent of corruption and wrong was a protestant, M. Guizot, so in the agency of French despotism at Rome, a protestant general, D'Hilliers, was the most active instrument.

Meanwhile the socialists, under Ledru Rollin, attempted to upset the presidential government, but were beaten by General Changarnier, at the head of the troops and national guards, Ledru Rollin becoming a fugitive. The president of the French republic worked his will.

The general condition of Europe was well described by M. Mauguin in the French Assembly, as under arms from the line of the Ural to the Atlantic. The attitude, however, which the president resolved to maintain, was one of peace with foreign powers, and, except in the instance of Rome, of non-interference. This exception he justified on the grounds of the necessity of counteracting the ascendancy of Austria in Italy, and of the Catholic feeling of the French nation, which forbid the deposition of the head of the church.

One of the most remarkable incidents in French history during the year, and that in which the English people undoubtedly took most interest, was the assemblage of a Peace Congress of all nations at Paris. Deputations from England and America were the most conspicuous persons in the assembly, which met on the 22nd of August, in the Salle St. Cécille, a music-hall in the Chaussée d'Antin, M. Victor Hugo in the chair. The vice-presidents were Messrs. Cobden, Vesschères, Coquerel, Degnore, and Durkee. The secretaries were Messrs. Joseph Gamier, Alochin, Elihu Burrit, the celebrated American blacksmith, editor of the _Olive Leaf_, and Henry Richards, secretary to the English Peace Society. The two principal speakers were the Reverend John Bennet, a congregational minister, residing at Camberwell, near London, a very eloquent orator, and Victor Hugo, who said he believed the object they had at heart was a religious one, and not only desirable, but practicable and realisable:— "Four centuries ago, the different provinces of France made war against one another; and he expected to see the day arrive when that which took place with respect to the provinces of one country would mark the whole of Europe; and that, as Normandy and other provinces formed one France, at peace with itself, so the different nations of Europe could dwell in harmony as one country. Then would be no longer war, but civilisation; and cannon would only be seen as curiosities shut up in museums." M. Hugo proceeded to descant on the vast expense of keeping up standing armies, and the great advantages that would arise if such money were thrown into the channels of labour, by which commerce would be promoted and intelligence advanced. M. Hugo concluded by announcing that 500 francs would be given for a peace essay, and 500 francs for the best collection of facts showing the horrors of war. The Archbishop of Paris gave his adhesion to the objects of the assembly. The president of the republic looked coldly upon the gathering, having no cordial feeling to the chairman. The meeting was got up by the English peace party,

and chiefly under the auspices of Mr. Cobden. They regarded it as peculiarly well-timed, whereas it is almost inconceivable how any number of men of ability could suppose the occasion suitable, or that the state of Europe offered the smallest hope of producing any influence by such a convention. The resolutions submitted to the congress show how impracticable they were at that juncture, and events in Europe have since proved how uninfluential was the congress itself, and the opinions it expressed. Tire resolutions proposed were adopted, and were as follow:—

“1. As peace alone can secure the moral and material interests of nations, it is the duty of all governments to submit to arbitration all differences that arise among them, and to respect the decisions of the arbitrators whom they may choose.

“2. It is advisable to call the attention of governments to the necessity of entering, by a general and simultaneous measure, upon a system of disarmament, for the purpose of reducing national expenditure, and of removing, at the same time, a permanent cause of disquietude and irritation from among the nations.

“8. The congress recommends all the friends of peace to prepare public opinion, in their respective countries, for the formation of a congress of nations, whose sole object should be to frame a code of international laws, and to constitute a supreme court, to which should be submitted all questions relating to the rights and reciprocal duties of nations.

“4. The congress condemns all loans and taxes intended to aid the prosecution of wars of conquest and ambition.

“5. The congress recommends all its members to endeavour to eradicate from the minds of all in their respective countries, both by means of a better education of youth, and by other methods, those political prejudices and hereditary hatreds which have so often been the cause of disastrous wars.

“6. The congress addresses the same invitation to all ministers of religion, whose sacred mission it is to encourage feelings of goodwill among men; as well as to the various organs of the press, which exercise so powerful an influence over the development of civilisation.

“7. The congress earnestly hopes for the improvement of the means of international communication; for the extension of postal reform; for the universal adoption of the same standard of weights, measures, and coinage; and for the multiplication of peace societies, which shall keep up a correspondence with each other.

“8. The congress decides that the committee be instructed to draw up an address to all nations embodying the resolutions of the congress; and that this address shall be presented to the various governments of Europe and America, and particularly to the president of the French republic.”

There was one political effect produced by the assemblage; the fact that the French government allowed it, and that the Archbishop of Paris patronised it, led to a general impression in Europe that the policy of Louis Napoleon would be peaceful. It is probable that in giving his permission for the convention he calculated upon such

an effect, which suited the purpose of the hour, and comported with the necessities of his _régime_. The policy of the French president towards Great Britain was peaceful and friendly. In various minor matters he endeavoured to gain the confidence of the English government. He had implicit faith in the honesty and goodwill of the English foreign minister, who believed Napoleon to be a necessity, and counselled his cabinet to maintain amity with him. The British ambassador to the French republic was treated with more marked respect than the minister of any other power delegated to it, and citizens of the United Kingdom were treated with the most marked consideration in France whenever the emperor found opportunity of showing it. As a proof of his goodwill, a _souvenir_ of his residence in London, and the courtesies which, when an exile, he had received there from the Army and Navy Club, he presented that body with a superb piece of Gobelins tapestry, and a letter couched at once in the most respectful and cordial terms. In greater matters, he appeared anxious to secure the sympathy of Great Britain: difficulties arose in the East, which engaged the attention of English politicians very much, and the English Foreign-office was officially led to consider that reliance might be placed upon the co-operation of France. Events, in a few years, brought this feeling more thoroughly and practically to the test.

STATE OF GERMANY.

The condition of Germany much interested the English government and people. The contests between the duchies of Schleswig-Holstein and Denmark threatened to call for the interference of Germany on the one hand and Russia on the other, and to involve England in embarrassing questions. The attempt of the German democracies, triumphant in 1848, to fuse the powers of Germany into a whole, a new Germanic empire, also involved questions of great intricacy, and which, however England might desire to keep aloof, tended to affect treaties in which she was concerned. The union of all Germany as one authority would introduce a new element into European relations, disturbing the balance of power. Russia and France had much to apprehend from such a union; England but little, so long as the united German power abstained from invading the territory or independence of the Scandinavian nations. United Germany, possessing popular liberty, would be a natural ally of England, and a counterpoise to France, whose ambitions England had had so often to check, and a counterpoise to Russia also, whose aggrandising policy was so menacing to England and to Europe.

The disagreements of the German people as to the respective merits of monarchy and republicanism, but more especially on social questions, rendered the union of Germany politically impossible. The jealousies of Austria and Prussia were equally fatal to such a project. The houses of Hapsburg and Hohenzollern were competitors for the prize of German empire; and this, rather than the welfare or union of Germany, engaged their subtlety and energy. An Austrian archduke became vicar of the German unity, and, unless so far as there appeared any probability of his securing the supreme authority for the royal family of Austria, his object was to humour the German parliament at Frankfort, and gradually to wear it out, restoring things to their original condition. When the royal houses of Austria and Prussia found that

neither could obtain a permanent supremacy, they concerted together for the purpose of breaking up the parliament, and in the meantime, of practically preventing any invasion of the independence or separate prerogative of the individual states and their governments by the central representative power which the revolution had set up. Accordingly, on the last day of September a convention was signed at Vienna, by Austria and Prussia, for the establishment of a provisional central power for Germany. This was shortly after ratified by both courts. The first article was for the purpose of giving the archduke vicar an opportunity of resigning his authority to the provisional central power.

“1. The government of the Germanic confederation, in concert with the vicar, agree on a provisional form or interim, during which time Austria and Prussia assume the administration of the central power for the German confederation, in the name of all the governments of the confederation, until the 1st of May, 1850, unless this power cannot be transferred to a definite power before that period.

“2. The object of the interim is to maintain the German confederation as a union founded on the right of the states appertaining to the German princes and of the free cities, to having preserved the independence and the integrity of their states comprised in the confederation, and to having maintained the internal and external security of Germany.

“3. So long as the interim lasts, the affair of the German constitution is left to the free concertation of the individual states.

“It is the same with those affairs which by art. 6 of the federative act, belong to the full assembly of the diet.

“4. If, at the expiration of the interim, the German constitutional question should be not yet settled, the German government will come to an understanding with respect to the prolongation of the present treaty.

“5. The affairs hitherto carried on by the provisional central power, in so far as, according to the legislation of the confederation, they came within the competency of the late assembly, are transmitted for the entire duration of the interim to a dietary committee, to which Prussia and Austria appoint each two members, to sit at Frankfort. The other governments can be represented by plenipotentiaries accredited to the said committee, either by each individual state or by several states conjointly.

“6. The committee of the confederation carries on affairs in an independent manner, but are responsible to the powers that respectively nominate them. It forms its resolutions after deliberation in common. If the members cannot agree, the decision takes place by means of negotiation between the governments of Prussia and Austria, and which latter, in case of need, will refer to a judgment of arbitration. This judgment is pronounced by three governments of the confederation. In such case, Austria will nominate each time one of the arbiters, and Prussia the other. The two governments thus designed have to decide upon a third arbiter for completing the tribunal of arbitration. The members of the committee of the confederation divide the affairs assigned to them in this mode, that according to the legislation of the existing confederation, and especially according to the military constitution of the

confederation, they either personally carry them on, or else direct and superintend the carrying of them on.

“7. As soon as the ratification by the governments aforesaid of the great proposition shall have taken place, the archduke vicar will renounce his dignity and depose the rights and duties of the confederation that have been confided to him into the hands of the Emperor of Austria and the King of Prussia.”

DEMANDS OF THE RUSSIAN AND AUSTRIAN EMPERORS UPON THE SULTAN OF TURKEY. —INTERPOSITION OF ENGLAND AND FRANCE.

Varied and important as the changes and conflicts were in Western and Central Europe during this year, none of these events menaced the general peace of Europe so much as a demand made by the czar and the kasir upon the sultan for the extradition of certain Hungarian refugees.

During the general convulsion of Europe, Hungary flew to arms, and the Austrian empire was in danger of dismemberment from the success of the Hungarian revolt. Russia, however, joined her armies to those of the great German power, and the result was the suppression of the Hungarian revolution. The chiefs of that movement took refuge within the Turkish territory. This circumstance led to a demand by the ambassadors of Russia and Austria at the Porte, for the surrender of all Polish and Hungarian refugees into the hands of the governments to which they owed allegiance. The sultan refused, and the ambassadors demanded their passports. The alarmed sultan consulted the learned doctors of the Koran, and received for reply that the abandonment of the refugees would be contrary to the law of Mohammed. The English and French ministers counselled resistance, and the sultan increased his armies, and ordered remnants of troops towards the Austrian frontier. The terms and tone in which the communications of the ministers of the czar and the kasir were made, were insulting to the sultan, and aroused the indignation of the French and British governments, whose interposition was of such a character as to lead Austria and Russia to believe that a war with the western powers would ensue if the haughty requisition was persisted in. The communications between the English ambassador at St. Petersburg and the czar’s minister for foreign affairs, although maintaining the forms of courtesy, were pervaded by an indifferently concealed acrimony, which showed that a bad feeling between the two governments underlayed the ceremonies of diplomatic civility. A special minister from the Porte was sent to St. Petersburg with a conciliatory note from the sultan to the emperor, and this, with the firm tone of the French ambassador, and the energetic exertions of the English minister, caused the emperors to relax their demands, and to insist only upon the removal of certain of the refugees from the territory contiguous to that which had been the theatre of their revolt. The ill feeling which sprung up on this occasion between the governments of Vienna and St. Petersburg, on the one hand, and those of England and France, on the other, continued until events arose still more grave for Turkey, and for all these powers.

Through another year of grave occurrences, and political difficulties and involvements such as Europe had seldom Been, Great Britain pursued the even tenor

of her way, by her moral influence everywhere aiding liberty and checking excess, maintaining her own prestige and international rights, yet pursuing a policy of non-interference. Her foreign relations at the close of 1849 were in all respects satisfactory, but it required all the skill and vigilance of the remarkable man then at the head of the foreign office to maintain at once peace and the honour of the country.

CONTINUED DISTRESS IN IRELAND—CRIME AND OUTRAGE—POLITICAL AGITATIONS EFFORTS OF GOVERNMENT TO MEET THE EXIGENCIES OF THE COUNTRY.

The state of Ireland during this year was a continuation of the want, misery, criminality, and sedition which made up its history for so many previous years. The causes already noticed so fully in previous chapters operated in producing famine and its attendants, disease and social discontent. Notwithstanding all the efforts of government by parliamentary aid, and of the people of Great Britain by their generous subscriptions, the poor in Ireland continued to die of starvation, and where death did not immediately happen from that cause, it arose from it mediately, through the instrumentality of famine, fever, cholera, dysentery, or gradual decay. The efforts of the government were still, to a great extent, rendered abortive by the frauds committed upon the funds devoted to Irish relief, not only in Ireland, but in England; much that was supposed to be applied for the relief of the Irish famishing poor never reached Ireland, and much more that did arrive in that country never found its way to the objects for whom it was intended. The failure of the potatoe crop had so impoverished the people, that, during the spring of 1849, the destitution in some parts of the country equalled that which had been known even during the three previous years. The queen, in her speech at the opening of the session, referred to the failure of the potatoe crop, and recommended her parliament to make further provision to relieve the destitution which prevailed. In pursuance of this recommendation, parliament voted £50,000 for the relief of distressed unions, a sum utterly disproportioned to the necessities of the case. A bill was brought in for levying “a rate in aid,” as it was termed, the object of which waa to levy a rate upon solvent parishes to aid insolvent parishes. This was both inequitable in its conception and application, and was one of those make-shifts of the government which, while it raised opposition, failed in accomplishing the object contemplated. A vote of £100,000, in anticipation of “the rate in aid,” was proposed and carried, but this also waa inadequate to the purpose for which it was designed. Some idea of the magnitude of the miseries of Ireland at this juncture may be formed from the fact that the poor-law guardians of Kilrush expended £1000 per week in support of the paupers of that union. Kilrush is a remote and not particularly populous district, and was a specimen of the general expenditure to which the distressed unions were exposed.

The terrible distress prevailing brought on a state of social calamity and discord such as has seldom been witnessed in the history of the world. As the year went on, the prospects of an abundant harvest inspired hopes that peace and plenty would at last smile upon unhappy Ireland, but these hopes were doomed to disappointment.

The growing crops became objects of contention between the miserable tenant, and, in many cases, almost equally miserable landlord. The tenants sought to cut and remove the crops clandestinely. Suddenly the corn would be cut over a vast area of land, and carried away, as if by magic, beyond the bounds to which any existing legal process on the part of the landlord might be applicable. Rents were refused. Many of the farmers were unable to pay, many were unwilling from dishonesty, and many considered that the tenants had as good a right to the land as those from whom they rented it. They talked of themselves as descended from the old families, the natural lords of the soil, and of those who then claimed the rents as the seed of the invader and the spoiler, whom it was just to deprive of what he had no right to, unless conquest and force could confer the right,—a doctrine that did not suit the popular interests. The landlords, on the other hand, sternly evicted the tenantry; whole town-lands were depopulated, the expelled tenants died of starvation on the public roads, or crowded the workhouses, where they were supported by rates levied on the industrious occupier. The poor-law was continued upon a plan which protected the property of the rich English absentee, and threw the burden upon the resident landlords who cultivated their own land, and upon the farmer who rented land. The agents of these absentees exacted the rents with bitter severity, and often the dwelling of the wretched occupier was pulled down about his sick and starving children, who frequently perished within the roofless walls. It was civil war, without any of the redeeming manhood which strips even that of its aspects of misery and horror. Frequently the police, armed as regular cavalry and infantry, were called out to seize the corn in process of clandestine removal, or to execute an eviction. On these occasions, sometimes, the unarmed peasantry, maddened by despair, would resist, and a conflict ensue in which victory did not always determine on the side of arms and discipline. The military were often in requisition to seize carts of corn under process of removal, or to enforce the expulsion of some tattered, hungry, sick, woe-stricken family from their miserable holding into the “wide wide world,” houseless and hopeless. Frequently the parish allowed an outcast of this description at the rate of seven-eighths of a penny per day to sustain existence. An English periodical writer truly and compassionately remarked, “nothing like Irish misery exists under the sun.” Whatever the disturbances generally prevailing, a very great number of the people offered no resistance to the law; they obeyed and died. Mr. P. Scrope* truly observed that the people bore these hardships “with a patience and resignation which it is heart-breaking to witness, and which one scarcely knows whether to praise or to blame.”

* “Notes of a tour in England, Scotland, and Ireland, with a view to inquire whether our labouring population be really redundant.”

Yet Mr. Crope, while he denounced the state of the law in Ireland as affecting landlord and tenant, in terms which attracted the attention of the country, and of foreign lands, described the difficulties of landlords in a way just to the class and to his subject. “A moment’s consideration,” he says, “will show the futility of expecting any mercy to be shown to these poor people by those whom the law at present arms with the power of destroying them. It sounds very well to English ears to preach forbearance and generosity to the landowners. But it should be remembered that few

of them have it in their power to be merciful or generous to their poor tenantry. They act under compulsion, usually of the severest kind. They are themselves engaged in a life and death struggle with their creditors. Moreover the greater number of the depopulators are mere agents for absent landlords or for the law-receivers under the courts acting for creditors, and bound by the established rules and avowed practice of the Court of Chancery itself (the fountain and head of justice) to make the utmost of the property entrusted to them, without regard to any other consideration than the pecuniary interest of the parties, which is committed to their care. Those landlords who have yet some voice in the management of their estates, seeing the highest court of judicature in the realm sanction this principle of action, think themselves justified—most of them, indeed, are compelled by the overwhelming pressure of their own difficulties—to follow the example. It is vain to expect mercy to be shown under such circumstances. All is done in the sacred name of the law. The sheriff, the representative of the majesty of the law, is the actual exterminator. The officers of the law execute the process. The constabulary, acting under the orders of the magistracy, stand by to prevent resistance; and if any is expected, the queen's troops are brought to the spot, to quell with all the power of the throne what would amount to an act of rebellion. It is absurd, then, to cast the blame of these foul deeds, and their horrible results, upon a few reckless, bankrupt, wretched landlords. It is to the law, or rather to the government and legislature which uphold it, and refuse to mitigate its ferocity, that the crime rightly attaches; and they will be held responsible for it by history, by posterity—ay, and perhaps before long, by the retributive justice of God, and the vengeance of a people infuriated by barbarous oppression, and brought at last to bay by their destroyers." It is difficult to read such statements and wonder that agrarian outrage prevailed extensively in Ireland, and that all over the land murder stained the soil with blood.

It is impossible to write the history of Ireland in any given year without having to record assassinations springing from religious discord, and 1849 was no exception.

Political disturbance was only kept down by the arm of the law. Early in the session, Earl Grey moved in the house of lords for a renewal of the "suspension of the _Habeas Corpus_ act," and in doing so he stated that although there was no reason to fear an insurrection, yet disaffection existed extensively, and especially in the districts which had been the scenes of insurgency in the previous year. His lordship never knew much of Ireland in any respect—her people, the philosophy of her turbulence, or the policy which ought to be pursued towards her; had he formed acquaintance with such subjects he would hardly have spoken of disaffection existing in certain districts, for it is chronic in Ireland. The masses of the people have been disaffected since the English first obtained the ascendancy in Ireland; but independent of any hostility of race or nationality, a deep-rooted religious animosity towards the creed of England rankles in the hearts of all in Ireland who differ from that creed.

The Young Ireland party was not extirpated by the events of 1848, although as a public organized body, suppressed. Its writers continued to write, although there was little public speaking. Charles Gavan Duffy, more fortunate than his fellows, was

enabled to escape the legal penalties attached to his undoubted treason; juries would not convict, notwithstanding the plainest evidence. The Roman Catholics in the juries were obstinate in refusing a conviction. This circumstance deepened the general distrust existing among Protestants in the fidelity of Roman Catholic jurors on any question in which they took a political or ecclesiastical interest. There is no reason, however, to suppose that this spirit of inequitable partizanship was confined to Roman Catholics. Such incidents never justified the government in refusing them alterations in the jury laws, popularly demanded, and in exercising so sternly the right of challenge which belonged to the crown in such prosecutions. Mr. Duffy resumed his place at the office of the _Nation_ newspaper, affecting to believe that there was no hope of achieving what he called Irish independence by political agitation; that the country needed material improvement in the first instance, and that in proportion as it increased in wealth would it be likely to obtain a national existence. Mitchell, in his exile, denounced this doctrine; and when he afterwards escaped to the United States, he impugned these opinions of Mr. Duffy as dangerous to freedom, and as a cover to his retreat from the patriotic advocacy of Irish nationality. The recriminations of these two champions of Young Irelandism showed what little prospect there ever had been of any harmony existing in an Irish provisional government, if success had attended the efforts of these men. Mr. Duffy, while for a time persisting in his new course, and making his paper more an organ of the ultramontane priesthood, took every opportunity of inciting the people to treason, at first covertly, but gradually in a more open manner. This the government permitted, to the disparagement of the loyal, and the injury of peace and improvement in Ireland. The Old Ireland party continued to agitate, but their agitation assumed still more of a sectarian character. Yet the name of O’Connell had lost much of its spell, and at an auction of his library in Dublin, his books, even with his autograph, barely fetched the prices which the same volumes would have brought at any other public auction if the property of an unknown person.

The winter of 1849 smote Ireland with fresh accumulations of suffering. Gaunt famine stalked abroad; pestilence lurked in the hovels of the country, and the cellars and garrets of the great towns; cholera ravaged as fiercely in some places as if no other destroyer visited the unhappy realm; crime lurked by the wayside, and sedition and bigotry muttered their curses everywhere. It seemed as if a wide-wasting ruin covered all.

The queen’s visit to Ireland made this year memorable in her history. An account of this will appear in the narrative of the court in another page.

POLITICAL STATE OF ENGLAND.

Notwithstanding the humiliation of the Chartists in 1848, they still continued blatant. Some rioting occurred, and but for the conviction that the people at large would support the government in strong measures, the tendency to disturbance would have been still more decidedly manifested. The anti-free-traders were still a large and powerful party, and, led by Mr. Disraeli, formed an imposing array both in and out of parliament. The free-traders were also active and resolute, giving to the government a very general support. The agitations in the country assumed no new

phases, and almost all political questions assumed a politico-economical aspect from the temper in which men discussed them, and the prevailing tone of the time. The alteration —virtually the repeal—of the navigation laws caused much excitement in the sea ports, as the agitation of the subject did the previous year; but the government and the free-trade party mustered all their strength, and succeeded with the measure. The government was not popular, but was accepted as a political necessity. Lord John Russell had great weight in parliament, “in the city,” and with the old whig party everywhere; but the more advanced liberals had lost confidence in him, and some of his colleagues were unpopular. Foreign politics engaged much of the attention of the nation, and the tide of reaction which began to roll back over the continent, sweeping away so many newly acquired liberties, was a cause of abundant regret, and even alarm to the English people.

COMMERCIAL AFFAIRS.

The year did not begin or end very prosperously in business and monetary matters. The successive blights of the potatoe crop, the advances to Ireland, the ruinous bankruptcies of 1848, the enormous railway calls, the many failures upon the continent of both banking-houses and commercial establishments, by which English firms sustained great losses, and the continued disturbance of commercial relations in consequence of the civil conflicts on the continent, were causes sufficiently numerous and potent to create and sustain apprehension, and embarrass the usual proceedings of trade. Still money flowed into England from continental Europe, as the place of security which, whatever might betide the world, was supposed to be beyond the range of political convulsion. Thus capital was plentiful, and money was easily obtained by all creditable establishments. The peace, good order, and constitutional liberty by which these blessings were established, afforded England a source of prosperity amidst so much that was calculated to impoverish. The wrecks of many nations floated around her shores, but within her borders all was safe; the shadow of the thundercloud passed over her, and she heard its peals, as it burst in lightning and torrent on less favoured lands.

THE CHOLERA.

There was one calamity, which befel so many nations, from which England was not spared. The mysterious cholera, which appeared in 1848 in some places, broke out in the autumn of this year with surprising fury. Its ravages were far more extensively fatal than in 1832. In 1832 the number attacked in London was 14,154, and the number of those who fell victims was 6729. In 1848–49, the number attacked exceeded 30,000, and nearly half the number perished. In 1832, one out of every 250 of the population died; in 1848–49, one out of every 150. More than 80,000 persons died of cholera and diarrhoea in Great Britain during the latter period. The disease spared neither sex nor age. It was found in London to prevail most near the banks of the Thames, and on the south side of the river, where the ground was lower and worse drained than on the north. In the higher grounds, north and south, the disease inflicted but little injury. Where the water supply was from the less pure portions of the Thames, the havoc was greater than where it was drawn from a portion of the river further up, or from other sources. The disease prevailed most during hot

weather both in Great Britain and Ireland. The faculty was as little able to treat it as when it first appeared; and there was a disposition to rely too much on general sanitary measures, without regard to the specific virus of the disease.

PARLIAMENTARY HISTORY OF 1849—OPENING OF THE SESSION.

On the second of February the queen in person opened a new session. Her majesty's speech referred to most great matters which had occurred in the latter part of 1848, and to such subjects as formed the leading features of the policy of the ministry for 1849. Her majesty especially recommended an alteration in the navigation laws, and she asked for further administrative power to preserve order in Ireland. The general tone and tenor of the speech were congratulatory. Lord Stanley, in the lords, moved an amendment to the usual address, which represented that the state of the country was not such as to call for or justify an address pervaded by a spirit of gratulation. The amendment was rejected, but only by a majority of two. In the commons Mr. Disraeli moved an amendment upon the address, similar to that which Lord Stanley had proposed in the lords, and with no better success. Mr. Disraeli especially contended for keeping up a much larger fleet and army than the government proposed. His arguments were singularly opposed to those which, without any professed change of principle, he used eight years afterwards, against the government of Lord Palmerston, for refusing to reduce the army and navy when serious perils demanded their increase in the judgment of that astute and experienced minister. Mr. Grattan, son of the distinguished Irishman who assisted Irish independence in 1782, proposed an amendment adverse to the ministerial policy for Ireland, but it was rejected in a very decisive manner. The temper of the house, as displayed towards Mr. Grattan, was harsh, invidiously national on all sides, and especially offensive to the popular party in Ireland.

REPEAL OF THE NAVIGATION LAWS.

On the 14th of February Mr. Labouchere renewed the motion for the repeal of the navigation laws, which had been defeated the previous year by the agitation of the shipowners and sailors, particularly those of the Tyne, under the leadership of James Mather, Esq., of South Shields. On the 9th of March the second reading came on, and was met by an amendment proposed by Mr. Hemes, such as is usually offered in order to defeat a bill. This amendment was negatived, in a house of four hundred and seventy-six members, by a majority of fifty-six. The government was much mortified that the minority was so very considerable. In committee Mr. Labouchere modified the bill in a manner which proved the want of proper forethought and decided policy in its preparation. This was the case with most whig measures. On the 23rd of April Mr. Hemes again endeavoured to defeat the bill, securing a very large minority, which further annoyed the ministry, but failed to obstruct the progress of the measure. In the lords the bill was opposed vehemently by Lord Brougham, who denied that it was based upon the principles of free trade. By a majority of ten only the government succeeded in carrying it, and it was generally believed that it would have been lost, only that the government raised a report of intended resignation if the bill had been lost. This decided the opposition of Lord Brougham, who desired to produce such a result, and influence the doubtful among the Conservatives, as they

were not prepared at that moment to resume the reins of power. The Bishop of Oxford proposed an amendment intended, by securing the anti-slavery lords, to defeat the measure by a "side wind;" but his object was transparent, and his end was not attained. The bill was carried, and ordered to take effect from the beginning of 1850.

AGRICULTURAL DISTRESS—MOTION FOR GOVERNMENTAL RELIEF.

The agricultural interest was as discontented as it had been since the repeal of the corn-laws. It was still hoped that the greater part of the public burdens would be shifted to the shoulders of the commercial middle classes; and the party calling itself "the agricultural interest," but in reality adverse to the prosperity of the farmers and farm-labourers, clamoured for public relief. Mr. Disraeli had now fairly succeeded Lord George Bentinck as the leader, and he on the 5th of March proposed a resolution for a committee of the whole house, to consider such measures as might relieve the owners and occupiers of real property, and establish a more equitable apportionment of the public burdens. Sir Charles Wood, in an awkward and clumsy speech, confuted Mr. Disraeli, no difficult matter even in such a speech, for the honourable leader of "the country party" had collected his statistics carelessly, and used them illogically. His speech was also deficient in the eloquence so striking generally in his elaborate orations. It failed to produce any effect upon any party, even upon his own, and he could only muster the support of seventy members against three hundred and ninety-four. This motion greatly damaged the prestige of Mr. Disraeli: it was thought that he was not competent to lead a great party, and but for the paucity of talent in the conservative ranks, his leadership would have immediately terminated. In the country generally, but especially in the large cities and manufacturing districts, the speech excited a stronger political hostility to Mr. Disraeli than had before prevailed.

IRELAND.

A very considerable portion of the session was occupied by the affairs of Ireland. Under the section devoted to the concerns of that country such notice was taken of the proceedings in parliament bearing reference to her, as makes it unnecessary to enter at length into their record in this place. Early in the session the government requested the house to renew the act for the suspension of Habeas Corpus: it was granted. Measures bearing upon the poor-laws, and the commercial state of the country, were subsequently discussed, the government always succeeding in obtaining the support of the house. A bill for facilitating the transfer of encumbered estates was introduced on the 26th of April; its object was, chiefly, to amend a similar act of 1848, which had been found to a great extent impracticable, the usual fate of most whig measures. The new bill was carried; but while it did much good, it was sometimes an instrument of injustice, very imperfectly answered its own objects, and was not conceived or framed in a comprehensive or statesman-like spirit. The great changes which its abettors predicted it would create in the social condition of Ireland were not realized. The estates brought into the court were often purchased by their former owners, or occupiers, or by other Irish landowners, who borrowed money for the purchase at a heavy interest, on the credit of the estates themselves, which soon

became as much encumbered as they had been before. English companies and assurance offices were also purchasers: their management was generally bad, expending large sums without obtaining an adequate return. Ignorance of the habits of the people caused much loss to such occupiers, and a species of quackery in cultivation sprung up which was injurious to the interests of the owners and of the country.

VOTE OF THANKS TO THE ARMY IN INDIA.

Votes of thanks to the troops engaged in the war of the Punjaub were proposed and carried on the 24th of April. These were advocated with eloquence, and conceded with enthusiasm. Sir Robert Peel passed an eloquent eulogy on Lord Gough, which was as just to the brave old veteran, after having served his country with honour for fifty-six years, as it was creditable to the impartiality, temper, and talent of Sir Robert.

MR. COBDEN'S MOTION FOR REDUCING THE ARMY AND NAVY.

The Whigs were not good financiers. Sir Robert Peel excelled his contemporaries, and more especially his opponents, in the practicability of his financial arrangements. The government had been placed in circumstances of great difficulty by events purely of a providential nature; but there existed a general impression that they did not meet the emergency with skill. A society called the Financial Reform Association grew into existence in consequence of this feeling. Its head-quarters was at Liverpool. Many important facts were brought to light by it, and much information extended, but there was a want of tact in the management which defeated these laudable and enlightened exertions. The society had a singular fatality for urging particular measures precisely at the juncture when there was least likelihood of gaining the ear of either the public or the legislature. Mr. Cobden made himself conspicuous in this agitation, and began that career of impracticability which gradually limited his public usefulness, and at last expelled him from parliament. When the whig budget came on for discussion, Mr. Cobden was agitating a scheme for returning to the expenditure of 1835, by which he alleged ten millions annually would have been saved. The state of Ireland and the continent rendered it unlikely that the country would consent to any very great reduction in its military and naval defences, yet it was in these departments Mr. Cobden contemplated his economical experiments. On the 26th of February he submitted a motion to the house embodying the principles for which he had contended at public meetings. The chancellor of the exchequer showed that no reductions which even Mr. Cobden himself dare submit to the house would reduce the national expenditure to the proposed extent, and proved that the defence of the commerce and independence of the country forbade any such reduction. Mr. Cobden only obtained seventy-seven to support him, in a house of three hundred and fifty-three members. This did not arise from any indisposition to reduce the public burdens, but from a conviction that Mr. Cobden rested his motion upon false data, and that his scheme was utterly inapplicable to the circumstances of the times.

THE BUDGET.

On the 29th of June the chancellor of the exchequer brought forward his budget. He estimated the ordinary income at £51,550,000, and the extraordinary income at £580,000. The expenditure he estimated at £53,287,000. He contemplated a surplus income for the ensuing year of about three quarters of a million sterling. The statement was received favourably, but a general impression existed that the chancellor might have carried retrenchment much farther. The supplies, however, were granted upon the basis of the statement offered.

MOTION ON THE STATE OF THE NATION

On the 2nd of July Mr. Disraeli moved for a select committee on the state of the nation. He did not expect that the government would concede, or the house support it; but he made it the occasion for a general attack upon the whig policy, and especially the free-trade policy which that party had originated in parliament, although Sir Robert Peel, their successful rival in this department, carried away the credit of having done so. The speech of Mr. Disraeli was rhetorically, and only rhetorically, successful. He reenumerated the misfortunes which befel Ireland and the colonies during the three previous years, and all the monetary difficulties which befel England, and attributed them, with dextrous dishonesty, to whig impolicy and free trade. These calamities, which were chiefly caused by delaying free trade too long, he ascribed to that measure. The perverted ingenuity thus displayed did not serve his party or convince his opponents. He was opposed in a blunt and candid speech by Mr. Hume, and in one of the happiest orations ever delivered by Sir Robert Peel. Lord John Russell also made an effective reply. Mr. Disraeli received small support from his followers. If the chief was not equal to the exigencies of the party, neither was the party worthy of the chief. Only one hundred and fifty-six votes sustained him, although Mr. Disraeli did his utmost to induce a decided display of strength. The motion was lost by an overwhelming majority.

THE PROROGATION.

Few events of public interest occurred in the parliamentary history of the session except those which are here recorded. The prorogation occurred on the 1st of August. The president of the council read the queen’s speech, which referred in the usual vague and general manner to the topics which had been discussed, but paid a generous tribute of acknowledgment to the heroism of the troops in the Punjaub. The blessing of domestic peace, and of the prospects of a good harvest were dwelt upon in terms of thankfulness to the Divine goodness.

The session of 1849 was not in any way remarkable. Few good laws were passed, few good speeches made, and no incidents of striking importance entered into its history. The state of parties remained what it had been when the session commenced; perhaps, if any change took place, the Whigs were on the whole strengthened. Sir Robert Peel gave them a qualified support, taking care frequently to express his want of confidence in their Irish policy, although nothing in his own past policy warranted the expectation that he would have governed Ireland substantially better than his rivals.

THE COURT.

Outrage on her Majesty.—There were various occurrences in the course of the year of interest or importance to the court, and to the public as having reference to the court.

On the 19th of May her majesty held a drawing-room, and shortly after her return, drove out with three of her children in the park. She was returning a little before six o'clock, when a shot was fired as the carriage passed down Constitution Hill by a man who stood within the railing of the Green Park. He was seized, and narrowly incurred being torn to pieces by the people, who were in a state of furious excitement at the occurrence. He was eventually rescued from the populace by the park-keepers and police and conducted to the guardhouse of the palace. Her majesty displayed the coolest self-possession and courage. Prince Albert, who rode on before, heard the occurrence from her majesty's lips as she alighted. The name of the criminal was Hamilton; he was a native of Adair, county Limerick, Ireland. General Wemyss, who rode exactly in the line between her majesty and the criminal, thought that the pistol was fired at him, and was of opinion that, had it been loaded with ball, he must have been struck; he also considered the report to be from a blank cartridge. This opinion proved to be correct, he had no intention of hurting any person, and seemed either to have been actuated by a desire for display, or to place himself in the hands of the authorities as a criminal, for sake of maintenance, as he was in great destitution. He was sentenced to seven years' transportation.

THE QUEEN'S VISIT TO IRELAND.

The ministry had, with much wisdom, advised her majesty to visit Ireland in the autumn of 1849. It was supposed by them that such an event would soothe the spirit of party, and restore the loyalty which was supposed to exist before 1848. Such was its tendency; but it ought to have been understood that the people were no more disloyal in that year than in the year which preceded it, or any other previous one; and the visit of her majesty, although beneficial for a time, on the whole, was not likely to give any permanent effect to the loyalty of those who might, during her visit, display the like. The Young Ireland press denounced the policy of the visit as a trick to ensnare the generosity of the Irish character, and to divert the people from the only true political pursuit for Irishmen—the separation of their country from Great Britain; and those papers predicted that the reception of her majesty, notwithstanding that national generosity which they truly asserted, would be painful to the royal lady, and demonstrate the unwillingness of the Irish people to be her subjects. The Old Ireland press, like the Old Ireland leader in parliament (Mr. John O'Connell), gave a very "uncertain sound"—it "blew hot and cold with the same mouth," protesting that the Irish people were most loyal, but at the same time in a very treasonable state; spurned, doubted, and encouraged the ministerial policy by turns. The newspapers made a point of averring, that if her majesty would only grant repeal and justice to Ireland, and, in fact, whatever the party demanded, she would find the Irish people, always excepting Orangemen and "swadlers," most peacefully disposed. The words of the national poet were echoed by these persons:—

“There never were hearts, if our rulers would let them, More formed to be tranquil and blest than ours.”

The Irish people not connected with these two parties made every exertion to prove their real and unaffected loyalty and devotion to her majesty; and they boldly declared that the prophecies of the Young Irelanders, and the doubts of the Old Irelanders, as to the probability of the queen receiving insult, were unworthy of notice. The Irish are too gallant a nation to insult a lady and a queen under any circumstances, and there was not a man among either Old Ireland or Young Ireland who would do the like, however wavering in loyalty; nor was there one among them who would not risk his life to chastise such conduct, had it happened in his presence.

After the prorogation, the court proceeded to Cowes, where a squadron was in readiness, and her majesty, with her husband and children, embarked and proceeded on their voyage on the night of the 1st of August. The next night, at one o’clock, the squadron arrived at Cove, “amidst a blaze of illumination by sea and land.” In the morning, the little town of Cove received the designation of Queenstown from her majesty, at the request of the inhabitants, as commemorative of her arrival there. It was noticed that the moment her majesty set her foot on shore, the sun, which had been clouded, burst forth with brilliancy. In the afternoon, the royal party visited the city of Cork, to receive various deputations, and afford the queen an opportunity of seeing the city. She proceeded up the river, and never did the scenery on the banks of the beautiful Lee look finer than on that bright autumnal day. Her majesty’s reception in Cork was most enthusiastic. There is no country in the world where public enthusiasm appears to greater advantage than in Ireland, when displayed in a good cause; and in no part of Ireland are the people more hearty in any feeling than m the sunny south. The reception of her majesty and suite was everything she could wish it to be. She received an address from the city, while seated on the quarter-deck of the royal tender. As the first address presented to her in Ireland, it has historic interest:—

May it please your Majesty,—

We, your majesty’s dutiful and loyal subjects, the mayor, aldermen, and councillors of the ancient city of Cork, humbly approach your majesty to tender to you, on behalf of ourselves and our fellow-citizens at large, the homage of our profoundest loyalty, and of our deepest affection and attachment to your majesty’s sacred person and crown.

We gratefully beg to express our deep sense of the high honour and distinction conferred on us by your majesty graciously condescending to select our city as the place where you, and your royal and much-loved consort, pay your first visit to this portion of the kingdom; and we hail with the sincerest feelings of joy and exultation your august presence here, and ardently hope that your majesty will be graciously pleased to cheer and gladden us by frequent visits, and thus diffuse pleasure and happiness amongst us. We sincerely hope that your majesty’s gracious visit will be like those of the angel of mercy, with healing on its wings, and that it is the harbinger of bright and better days for our country, which your majesty must be aware is

passing through a fearful ordeal.

We know that your majesty deeply sympathises in the sufferings and privations which your people have undergone, and are still going through; and we are convinced that nothing would afford a higher gratification to your royal breast than to mitigate and relieve those sufferings, and to raise the moral and social condition of your majesty's much and long enduring, but patient and faithful Irish subjects.

We trust that your royal advent here will lay the foundation of a better order of things than lias hitherto existed; be the means of fully developing the great and varied natural resources of our beautiful and fertile country; and that its prosperity, and the consequent comfort, happiness, and contentment of its people, will be the glorious and blessed results of your auspicious visit.

That your majesty may enjoy a long and prosperous reign over a united, happy, and contented people, and that you, your royal consort and family, may possess every happiness that this world can afford, is the ardent and sincere prayer of your loyal and attached subjects, the council and citizens of Cork.

Her majesty's sail down the Lee was even more picturesque than her voyage up; and her departure from Cove was such a scene as, no doubt, the royal lady, as well as her subjects of the south, will long and vividly remember. Her majesty's yacht tarried the next night at Waterford harbour, but she did not visit the city.

On Sunday, the 5th, her majesty was expected to arrive at Kingstown, and the people of the metropolis, and the surrounding country for many a mile, poured multitudinously along the beautiful shores of Kingstown and Killany. When in the evening the squadron approached, the enthusiasm of the people was boundless. At twenty minutes past seven, the squadron dropped anchor in the deep clear waters of Kingstown harbour, and every token of cordial greeting that a people could express, or a queen receive, indicated the popular spirit. The sea was crowded with barques, the shore with people. The former were gaily decked, the latter in elegant attire; and over sea and shore rang the loud cheers of a vast and excited multitude. Few sights were ever presented to her majesty equal in scenic effect. She appeared on deck, and bowed in acknowledgment of the cheers of her people. Prince Albert next presented himself, and was received with an ardour as great as that which marked the welcome of the queen. Her majesty and the prince having retired, the people renewed their cheers, when the royal pair again came forward, with their four children, and, amidst renewed demonstrations of welcome, bowed to the people in the boats, and on the shore. The attempt at illumination in Kingstown was a failure. It had been intended to light bonfires on the Wicklow and Dublin mountains; this would have been a picturesque and national welcome, but the scheme was not executed.

On Monday, the 6th, according to previous announcement, her majesty was to land, and proceed by rail to Dublin, about six miles. The morning broke over the beautiful bay and the bold hills of Wicklow in peculiar loveliness. From Howth to Bray Head the mellow light of an autumn morning shed its richness; the clear waters of the noble bay, the green hills of Dublin, the majestic city, west and south the granite peak of "the Sugar-loaf," and the broad forehead of Bray Head, glistened in the glorious

day. The very earth and heavens welcomed the Island Queen. Amidst all the loveliness on which she looked, the fairest spot was that which was washed by the waters of Killany Bay, where the soft sweet vale of Shanganah, with its silver strand, its green bosom, and noble background, stretched away between Bray Head and Kingstown. They were scenes amidst which one of queenly taste might love to linger, and were well calculated to impress her majesty and family with the beauty of the fair but sorrowful land upon which she was about once more to tread.

At ten minutes to ten on Monday morning, her majesty, consort, and children, came upon deck, and were received with acclamations. The moment she set foot on Irish ground, the harbour master hoisted the royal standard, and the cannon sent their thunders echoing over the bay, and among the hills.

The royal suite proceeded by rail to Dublin, the line profusely decorated, and the banks thronged with people, waving hats and handkerchiefs, and filling the air with their hurrahs. At the Sandy-Mount station the royal carriages were in waiting, and a grand procession of the authorities and gentry of the county. Seated in open carriages, the royal personages then drove, attended by a splendid military escort, to the vice-regal Lodge, Phoenix Park. The route was indeed triumphal, everywhere along the magnificent course which the cortege pursued, the national expression, "_caed mile failthe_" (a hundred thousand welcomes), was heard. There were several halts in the line of progress: the first to afford opportunity to the lord mayor to present the keys of the city to her majesty; the second was of her majesty's spontaneous desire, in order to admire the beautiful church of St. George; the third was at the triumphal arch at the foot of Eccles Street, where a scene of much interest was presented. As the royal carriage was about entering the triumphal arch, a beautiful fawn-coloured dove, ornamented with a white ribbon, was lowered to her majesty by Mr. Robert Williams. Her Majesty received this suitable emblem of the effect which her royal visit was expected to produce with smiles, and most graciously acknowledged the simple but significant gift. The bird was held out by her majesty to the royal children, to whom it at once became an object of attraction. The Prince of Wales soon obtained possession of the bird, which seemed to absorb his attention. In the evening Dublin was illuminated, and maintained its well-established fame for pyrotechnic displays.

Her majesty during her stay held a brilliant court, which was attended by the nobility and gentry of Ireland, numbering many among them of those most famed for arts and arms, literature and politics. The royal party visited most of the public institutions, in which they appeared to take an interest, and many expressions were said to have dropped incidentally from the queen indicative of her concern for the peace and welfare of Ireland, as well as of her admiration of the country. On the Tuesday evening the illuminations were spontaneously renewed, and with more brilliancy than before, and on the Wednesday evening all the public buildings were a third time illuminated. On the morning of that day a levee was held at the Castle, the most brilliant ever known in Ireland. The costume of the queen attracted the highest admiration. She wore a robe of exquisitely shaded Irish poplin, of emerald green, richly wrought with shamrocks in gold embroidery. Her hair was simply parted on her

forehead, with no ornament save a light tiara of gold studded with diamonds and pearls. On the Friday the royal party visited the Duke of Leinster, the premier peer of Ireland, and the same evening embarked at Kingstown for Belfast. Her departure, like her arrival, was attended by vast multitudes. Her majesty ascended the paddle-box of the steamer, and waved her hand again and again in response to the adieus of the great multitude. On Saturday morning the royal squadron arrived at Belfast, where her majesty and suite landed, and received as hearty a welcome as elsewhere. The same night she embarked, and steamed through a violent gale for the Scottish coast, but was obliged to defer the attempt until Sunday, in the evening of which the squadron arrived at Loch Ryan, in Argyleshire.

THE ROYAL VISIT TO SCOTLAND.

After her majesty’s triumphal visit to Ireland, the loyal Scottish people were most anxious to show her their warm affection and deep respect. Arrangements were accordingly made for public entry into Glasgow and Perth, by which route her majesty determined to proceed to her autumn residence at Balmoral. Ardent as was the hospitality of the Irish, it was rivalled by the patriotic fervour of the Scots, and the cities of Glasgow and Perth made demonstrations of attachment of which the royal lady might well be proud. On the 15th of August the court reached Balmoral, and entered upon those happy and private recreations which the royal family were wont to enjoy at their delightful Highland home. On the 29th of September the court was once more at Osborne.

DEATH OF THE QUEEN DOWAGER.

On Sunday morning, the 2nd of December, the queen dowager died at Stanmore Priory. The royal lady was the relict of King William IV., the uncle of Queen Victoria. She was supposed to have been much attached, through her husband’s reign, to the Conservative party, and to have favoured those intrigues in that interest which kept alive so long and so fiercely the spirit of faction during the discussions about the reform bill, and for some time after that measure was carried. Her majesty was buried on the 13th, at St. George’s Chapel, Windsor, where her coffin was placed beside that of her husband.

DEATHS OF EMINENT PERSONS.

It is always a subject of deep interest to a nation when its most eminent citizens are called away from the duties and honours of their citizenship. How frequently has the decease of a great person turned the scale of party, baffled armies or states, restored a country from peril, or placed it in the imminency of danger? Such was not the case with England in 1849, yet many very remarkable persons were that year numbered with the dead; the most notable person whose removal took place in this way, was the queen dowager.

On the 1st of January the Earl of Auckland died. This nobleman had attracted for some years previously a large share of public attention. He was not remarkable in youth for any special gift. In the House of Commons, which he entered in early life, he made no figure. The public were therefore amazed when, in November, 1830, he was appointed by Earl Grey a member of the cabinet, with the important post of president

of the board of trade, and also the office of master of the Mint. In 1834, he was made first lord of the Admiralty. In 1835 he was appointed governor-general of India. In 1841 he was displaced, a conservative government coming into office. In 1846 he again appeared at the head of the Admiralty board. His business habits and good sense qualified him for office, and at the Admiralty he rendered some service, but had he not been a peer and a friend of Lord Grey, he would never have occupied so prominent a place in the government.—On the 7th Earl Talbot died. His career was remarkable only for his having proved himself very unfit to govern Ireland, having exemplified, when lord-lieutenant, how little the conservative party at that time considered the importance of placing a man in the important situation because of his aptitudes.—On the 20th Mr. Cadell, the eminent Scotch publisher, and, in great degree, founder of cheap literature in Great Britain. He was identified with Sir Walter Scott in the cheap issue of his immortal volumes.

Feb. 1st. Lieut.-general Sir Thomas Arbuthnot, a very distinguished officer. He was born in the county of Mayo, in Ireland, and died at Salford, Manchester, while in military command of the northern district.—19th. Bernard Barton, the quaker poet, the amiable and useful author of so many pious and instructive compositions. He was born near London, and died at Woodbridge, in the sixty-fifth year of his age.

May 9th. General Sir Robert Thomas Wilson, Bart. This officer had distinguished himself through a long series of years in the most active and daring military services, especially in Germany, Poland, and Russia. He was particularly known as having, in conjunction with two other British officers, effected the escape of Count Lavalette, after the battle of Waterloo. He was a native of London, and died at an hotel there in the seventy-third year of his age.—13th. General the Hon. Sir Edward Paget, the last surviving brother of the Marquis of Anglesea. Sir Edward’s services in the Peninsular war are matters of pride and honour in British history.—19th. Sir Nesbit Josiah Willoughby, Rear-admiral of the White. This gallant officer served both by land and sea, having, when not engaged by the British Admiralty, joined the Russian army, in which, as a colonel, he greatly distinguished himself. He was born in Warwickshire, at the family seat, and died in London, in the seventy-third year, of his age.—21st. At Edgeworthstown, county of Longford, Ireland, in her eighty-fifth year, Miss Edgeworth, so celebrated as a novelist, and deserving equal celebrity as a metaphysician, for her novels abound with the most accurate and acute speculations in mental philosophy, incidentally occurring in the course of her narratives. She was small in stature, lively in disposition, vivacious in thought, a good correspondent, and an affectionate friend. The opinion has gained currency since her death, that the more intellectual portions of her writings were the products of her father’s genius, whose hand appeared in nearly all her novels.—22nd. At his house in Pall Mall, aged seventy-five, William Vernon, Esq., an artist and a tasteful collector of pictures. He had been a successful man of business, and left a large fortune to the nation in works of art, the productions of native artists, which reveal the talent prevailing among native painters, whom it was the fashion to undervalue.

June 4th. The Countess of Blessington. This beautiful and accomplished lady, so well known as the friend of Byron, was born at Curragheen, county Waterford,

Ireland, and she was distinguished through life for literary eminence as well as personal beauty. She possessed a noble generosity, especially to obscure men of talent. Her house at Kensington Gore, near London, was for many years the resort of the most eminent literary men. She died at Paris.

July 8th. Mr. Wilson, the celebrated Scotch vocalist, at the early age of forty-nine. He was born in Edinburgh, and died at Quebec.—12th. Horace Smith, the author, known in connection with “The Pic-nic Papers,” “The Rejected Addresses,” &c. He was born in London, and died at Tunbridge Wells, at the age of seventy.

Sept. 12. William Cooke Taylor, LL.D. This learned and gifted man was born in Youghall, county of Cork, Ireland. He fell a victim to cholera, in Dublin, in the fiftieth year of his age.

Nov. 3rd. Mr. Duncan, the African traveller, on board her majesty’s ship _Kingfisher_. He was a native of Wigtonshire, in Scotland.

Dec. 1. Ebenezer Elliott, “the Corn-law Rhymer.” He was born and died in Yorkshire. He was the author of several pleasing poems, of a somewhat epigrammatic character.

The year 1849 was remarkable for the death of eminent general officers and military men of inferior rank. Naval heroes, of a reputation extensive as the world, were also called away. The numbers of persons of great mark in the nation who died during the year were too great to receive notice within the limits of this history. To point out a few in whom the public of the present day take most interest is all which space will allow in this volume.

CHAPTER LXII.

{VICTORIA. 1850}

Foreign Relations..... Colonial Affairs..... Ireland..... Home Incidents-Debates in Parliament..... Deaths of Remarkable Persons.

{A.D. 1850}

The year 1850 was not a striking period of English history. There was no foreign war, no colonial revolt, no great question to be solved at home; yet in every department of the national affairs there were occurrences of importance, as might be expected in so vast an empire, with so many and complicated interests.

FOREIGN RELATIONS.

Spain.—The interruptions of diplomatic relations with Spain, in consequence of the offence taken by General Narvaez at the interference of Sir Henry L. Bulwer, was brought to a termination by the appointment of Lord Howden as envoy extraordinary, and ambassador plenipotentiary of the Queen of Great Britain to the court of Madrid. This event seemed to give great satisfaction to the Spanish court and people, and her

Iberian majesty, on the assembling of the cortes, made the matter a prominent topic in her address; but little interest was taken in Great Britain in connection with the event.

Greece.—The independence of the Greek kingdom was not followed by any improvement in the condition or character of the people. The government constituted by the three protecting powers (England, France, and Russia) was corrupt and incompetent, and the king despotic and faithless. Russia had an interest in keeping Greece disturbed, and especially in exciting both king and people to ambitious projects against Turkey, and Louis Philippe, King of the French, aided in promoting the corruption, and founded a policy for France inimical to the permanent advantage of Greece and the peace of Europe. The Greek government well knowing the unfavourable feeling of both Russia and France to England, treated British subjects with insult, and frequently allowed Greek subjects to treat them with wanton and unprovoked injury. The remonstrances of the English minister were unavailing, the wrongs of English citizens were unredressed. At last, the British foreign minister determined to make a categorical demand for justice, and in case of refusal to take reprisals. The demands made by Lord Palmerston were for satisfaction of the following claims:—

1. Mr. Finlay, an English subject, was deprived of land in 1838, which was enclosed in the gardens of the royal palace at Athens, in 1840.

2. M. Pacifico, a native of Gibraltar, was insulted, his house broken into at Athens in open day by a mob, aided by soldiers and gendarmes, in 1847. The mob supposed that certain measures of the government were incited by the British, and that M. Pacifico had personally some part in the matter. The government made no effort to restrain the rioters, and refused all reparation.

3. In October, 1846, six Ionian boats were plundered at the custom-house of Salcina. The Greek government refused all satisfaction.

4. Two Ionians were illegally arrested at Pyrgos, in 1847, and cruelly flogged.

5. The police at Paints arrested two Ionians, and subjected them to various cruelties and indignities for putting up some English, Ionian, and Greek flags on the awning of a coffee-shop.

6. The boat’s crew of a British man-of-war landed the son of the British consul at Patras, in January, 1848, when Greek soldiers seized the unarmed sailors, beat and imprisoned them. The Greek government refused to apologise for the outrage.

After these claims were made, another was added—that the isles or rocks of Corvi and Lapienza belonged to the Ionian Isles, and that, therefore, the Greek government should forego all acts of sovereignty in respect to them.

On the 28th of December, 1849, Mr. Wyse, the English minister at the court of Athens, called the attention of M. Londos, the minister for foreign affairs at the court of Athens, to the claims of England, declaring, that the long forbearance of her majesty’s government must not be construed into indifference. No notice was taken of the note; the Greek king and his ministers had for so many years been permitted to

offer insults to the English government with impunity, they could not conceive that it was now in earnest. The conduct of Lord Aberdeen in the English foreign office had especially encouraged this state of feeling, and Lord Palmerston had found no opportunity during the eventful years 1847–8–9, to enter upon the matter with such purpose as the case required, from the known sympathies of Russia and France. On January 10th, Mr. Wyse and Admiral Parker had an interview with M. Londos, who listened to their representations, but reserved a formal reply. The next day he read a note, refusing the concessions required. No allusion was made in any of these transactions to the cession of the islets. Mr. Wyse then made a formal written demand, and allowed twenty-four hours for a reply. During that time the agents of both Russia and France were consulted by the Greek minister, who was encouraged by them to resist the English requisitions. This was notorious at Athens; yet, at the expiration of the twenty-four hours, M. Londos offered to submit the matter to the arbitration of France and Russia. Her majesty's minister, of course, refused to bring in the arbitration of the powers whose jealousy and intrigue had led to the situation. He accordingly declared the blockade of the Piræus by the English fleet, and himself embarked on board Sir W. Parker's flag-ship. The Greek government treated the blockade with contempt, and sent out the _Otho_, and other government vessels. These were seized and sent to Salamis by the admiral, or detained near his own ships. On the 20th, M. Londos sent a protest to Mr. Wyse against these proceedings, and an hint that the other nations of Europe would interfere. Sir W. Parker next laid an embargo upon all Greek ships, and made arrangements for the capture of all he might find at sea.

On the 5th of February, M. Drouyn de Lhuys made an offer in London of friendly offices on the part of France, which were accepted, and on the 12th official notes were exchanged to that effect. Orders were, consequently, sent to Mr. Wyse and Admiral Parker to suspend coercive measures, pending the friendly intervention of France. The French government sent out a negotiator, Baron Gros, who arrived at Athens on the 5th of March. That gentleman, on examining the claims, fixed upon those of M. Pacifico as exaggerated, and no agreement between him and the British negotiator could be concluded; and on the 23rd of April, he notified the failure of his mission to the Greek government.

While this was going on at Athens, the French ambassador in London and the English foreign minister had agreed upon a plan of settlement, and the French government sent immediately a frigate with despatches for Baron Gros, instructing him to that effect. From some mistake or oversight the English government sent no orders to Mr. Wyse, and the result was that he refused to recognise the instructions sent out to the baron by his government. Hostilities commenced next day, which compelled the Greek government to submit to the demands of the English minister.

When tidings of these transactions reached France the French ambassador quitted London, but the difference between France and England was ultimately arranged by friendly explanations, and by the English government substituting the terms of agreement which had been made by the two governments at London, for the mere stipulations accepted by the Greek government at Athens.

The czar was enraged at these proceedings, and his ministers addressed a remonstrance to the British cabinet, couched in terms indignant and affrontful. The diplomatic turmoil in connection with the affairs of Greece caused considerable discussion in the country and the commons, which will be noticed under the section appropriated to parliamentary proceedings.

Liberia.—The British government, in its desire to put down negro slavery, took a deep interest in the prosperity of the free black colony of Liberia. The English public regarded it as a great experiment as to the adaptation of the negro race for self-government and modern civilization. The origin of the colony was not as philanthropic as was supposed in England. It did not originate in the benevolence of American citizens anxious to promote the advantages and progress of the negro, but in the selfishness of those who favoured slavery, and were desirous to exile the free blacks from the land of their birth, where their good conduct was a reproach to oppressors, and their freedom a temptation to the whole negro race to break their own bonds. In 1848–9 negotiations for a treaty of commerce, based on reciprocal advantages, was opened between the infant black state and her Britannic majesty. It consisted of eleven articles, which stipulated perpetual peace and friendship, freedom of commerce, mutual protection of the subjects of the respective states, the establishment of consuls, the slave trade to be piracy, English vessels of war in pursuit of slavers to be received with hospitality, and at liberty to visit any suspected vessels sailing under the Liberian flag. This treaty belongs strictly to the history of the previous year, but became known to the British public generally at the beginning of 1850.

Costa Rica.—The trade of England with the South American republics having for many years assumed considerable importance, a formal recognition of the principles by which it was desirable to conduct that trade became necessary with this particular state. This treaty consisted of sixteen articles, which engaged the powers mutually to preserve perpetual amity; freedom of commerce; freedom of correspondence; “the most favoured nation” clause; personal freedom and protection; exemption from forced loans and military conscriptions; establishment of consuls; in case of any interruption of friendly intercourse, citizens on the coasts to be allowed six months, and in the interior twelve months, to wind up their affairs, and safe conduct to be afforded to them; liberty of Christian burial and protection of places of sepulture; total prohibition of the slave trade. This treaty was signed at San Jose de Costa Rica, November 27th, 1849, and ratified at London, February, 1850. The treaty to exist for seven years, or longer, unless either party gave notice to the contrary after that date.

St. Domingo.—This was a treaty of eleven articles, engaging the respective powers named to mutual friendship; freedom of commerce; personal protection and protection of property; “the most favoured nation” clause; consular immunities and privileges; religious freedom for the subjects of each state within the territory of the other; perpetual prohibition of slavery; “right of search;” existence of treaty to be ten years, and after that, until due notice on either party had expired. Subsequently, an additional article was inserted, providing for the possible suspension of the previous articles in case the Dominican republic should continue at war with Hayti, or be again

at war with that nation.

The treaty was signed at St. Domingo on the 6th of March, and the ratifications were exchanged at the same place on the 10th of September.

Coast of Guinea.—On the Gold Coast, or Coast of Guinea, the Danes had long held certain positions or forts, named Christiansbergh, Augustabergh, Kongensteen, and Prindsensteen; connected with these was an undefined amount of territory. The Danish merchants, who at first derived some profit from these establishments, soon found that they could obtain from Great Britain more cheaply the various articles of that commerce, than by direct communication with the country itself. This arose from the numerous interests of Great Britain, and the broader foundation of her commercial speculations. The Danish government felt the African possessions cumbersome and expensive, and agreed to cede them, with their guns, stores, property, territorial rights, &c, to her Britannic majesty for the sum of £10,000. A treaty to this effect was signed in London on the 17th of August, and ratified there September 11th.

COLONIAL AFFAIRS.

Australia.—Considerable excitement existed in the Australian colonies for a more constitutional form of government, and at last the imperial legislature took up the subject with earnestness. Constitutions were granted to the Australian colonies in harmony with their British origin. These concessions of the mother country were hailed with delight in the colonies. The general prosperity of Australia secured peace. Crime, however, prevailed to a great extent in New South Wales, Victoria, and Van Dieman’a Land: in the first and last named, from the presence of convicts, or those who had been such. Many of this class had made their escape to the colony of Victoria, where they committed depredations and violence, and brought some disrepute upon the settlement.

Canada.—The annexation movement continued to disturb the province and disquiet the government. Persons holding civil situations, and officers of militia who took any part in the agitation, were dismissed; and by a vigilant repressive policy the government gradually brought the Canadas into a more quiescent state. A reaction at last set in, and general expressions of loyalty prevailed where opinions in favour of an independent confederation of the British American provinces had been boldly announced. The ministry by which the indemnity bill was carried during the previous year were not able to retain power. The governor, on opening the provincial parliament at Toronto, delivered a speech in French and English, which was well received by both parties. Before the year closed it was proved that a large majority of the people of the Canadas were against separation from the mother country.

The West Indies.—The West India Islands were in a discontented state throughout the year. Jamaica led the way in the expression of dissatisfaction. The English free-trade measures were the chief source of the disquietude, and tinged every disappointment or misfortune that befel the colonists. The post-office arrangements; the local finance; the provision required by the imperial government for the support of the various colonial administrations; the relation of the planters to

the negro free labourers, were all topics of angry debate in the colonial press and legislatures. A very general desire to unite with the North American States was felt, or at all events, expressed; the desire being, as in Canada, to escape free trade, and the additional motive that, by such a change, negro slavery might possibly be restored. A fear and hatred of freedom was the grand source of colonial sedition throughout the continent and islands of British America.

INDIA.

The vast territory comprised in British India was seldom wholly at peace, the agitations of contiguous countries extending to it, and requiring the constant vigilance of the government, lest mischief beginning beyond the borders should spread within them.

In the early part of the year there were signs of disaffection throughout the north-west districts, and the native garrison of Delhi manifested some insubordination on account of batta which they demanded if ordered beyond the Sutlej, and which the government had determined to refuse. Sir Charles Napier persevered in his attempts to reform the army, and put down drunkenness and gaming among the officers, and some severe examples were made even in the case of officers of professional merit. In these efforts the commander-in-chief was not seconded by the governor-general and the authorities at Calcutta.

In the Nizam’s territory disturbances occurred which compelled the attention of the Indian government. At Sikhim, in the latter part of the previous year, two British officers were seized by the independent sovereign of that country, formerly a dependency of Nepaul. The offence of these officers was entering the territory without permission; and the severity, and even cruelty and indignity with which they were treated, called for the interposition of the authorities at Calcutta; but it was necessary to move troops against the tyrant before he gave the satisfaction required.

The border tribes in the neighbourhood of Peshawur gave great uneasiness notwithstanding that severe chastisement was inflicted upon them at the close of the previous year by Colonel Lawrence. Sir Colin Campbell was sent against them, at the head of a considerable force, but his expedition was not attended with success. Dost Mohamed used every exertion to prevent the peaceful occupation of the province by the English, his hope being that they would abandon it as too troublesome and expensive, and that he might take possession of it on their retirement. Early in June one of the most terrible calamities which had ever occurred in British India took place at Benares. A number of magazine boats were in the river, which by some means ignited and blew up, spreading destruction far and wide. One thousand persons were killed, many of them blown to pieces, and great numbers besides were injured. Rumours reached England of the dissatisfaction expressed by Sir Charles Napier with many things connected with the native armies in India. The extravagance and dissipation of the officers, and the constitution generally of the army of the Bengal Presidency, were named as the subjects of his displeasure.

IRELAND.

The condition of this unhappy country during the year 1850 was only a little less miserable than it had been in what were emphatically called the “famine years.” Great distress prevailed, aggravated by bad laws, and the general social state and spirit of the people. The moral condition of the country was still worse than its material circumstances. Scarcely had the year opened, when a series of the most atrocious murders that ever disgraced a country were perpetrated. A gentleman, steward to a person of large landed property in the county Tipperary, was shot near his own dwelling by cowardly assassins, who fired upon him from behind a hedge. Two brothers, in the same county, disputed about land; the younger clove the skull of the elder with the spade which he held in working. A poor emaciated man, in the same blood-stained county, while in a state of starvation pulled a turnip in a turnipfield, and was caught by the owner in the act of satisfying his hunger upon it; the inhuman wretch shot the miserable delinquent on the spot.

These atrocities were but samples of the barbarous deeds which took place over many districts in Ireland throughout the year. The criminals were not always poor men; farmers, farmers’ sons, and even men of this class possessing what might be called affluence, either committed, or caused others to commit, the savage acts which disgraced their country and shocked all civilized nations. Sometimes the murders were effected by men who had no wrong to complain of, no injury to redress, but who for a small sum of money, or being chosen by the ballot of the ribbon lodges, assassinated men whom they had never seen before, having been pointed out by their associates in the ribbon conspiracy. Sometimes the assassinations were on account of religion; in a few cases, for personal vengeance; but, generally, they were in connection with disputes about land. The state of the law was such as to have enabled the government to put down these societies, and to disarm the people, who were unworthy to be trusted with the liberty of keeping dangerous weapons; but the Whigs were unwilling to incur unpopularity, and only acted with spirit and determination when the government itself was endangered, and anarchy impended. The Conservatives charged the government with tolerating, to a certain extent, for political purposes, evils which nothing could justify a government for allowing to be perpetrated. This imputation was deserved.

The political agitations were of the usual character, but gradually diminished; the events of the two preceding years having nearly extinguished the Young Ireland party, and so lowered the tone of its rival, as to deprive it of much notice either in Ireland or England.

An agitation for what was called tenant right extended itself, but especially in Dublin, the great centre of all Irish agitation, and in the north. The character of this movement will more fully appear when noticing the debates in parliament which afterwards took place on the subject: it is here only necessary to say, that the ostensible and real objects of the agitators were very different. They professed to seek justice for the occupying tenant; they desired to inflict injustice upon the owner of the soil. The Irish tenant suffered much from an unfair state of the law in favour of the landlord, who often used to the uttermost the inequitable advantage thus afforded him. In the province of Ulster this was less the case; a more generous disposition

prevailed among the landlords, and a more confiding one among the tenantry; the relations between the two classes were, as described by themselves, “live, and let live.” The outgoing tenant claimed a right to a certain sum for his improvements and interest, from the incoming tenant, which was altogether irrespective of any bargain between the latter and the owner of the soil. This prescriptive right was so generally recognised, that all parties were satisfied. In the other provinces of Ireland it was otherwise. The English and Scottish settlers in Ulster found this usage, which was an old Celtic tradition, and adopted it; their power enabled them to assert it; but the vanquished Celts themselves were not permitted by those to whom the estates were confiscated, to retain a custom so favourable to the occupier. The professed object of the agitation was to secure compensation to the occupying tenant all over the country for his improvements, and such certainty of tenure, according to the nature of his lease or taking, as would secure him from vexatious lawsuits and inequitable ejectments, against which, notwithstanding that they were inequitable in the eyes of all men, there was no redress. As the agitation was developed, it was plain that the real object was political and religious on the part of the prime movers. It became noticeable that while the clergy of the Established Church, the Methodists, Congregationalists, &c, abstained from all participation in the struggle, those of the Roman Catholic and Presbyterian communions fiercely fanned it. The higher classes were generally episcopal Protestants, the former in the north, to a large extent, were Presbyterians, and in the other provinces Roman Catholics; it was the interest of the clergy of both sects that their flocks and chief supporters should be placed in as independent position as possible. Ultimately, however, the two parties ceased to coalesce, their objects became so dissimilar, that all co-operation was impossible. The tenant-right league became a focus of Roman Catholic agitation, for purely Roman Catholic objects. Mr. Lucas, an English proselyte to the Church of Rome, who had formerly been a Quaker, became a very prominent person, and he carried his fanaticism to great lengths. Charles Gavan Duffy coalesced with him, and these men, abetted by others, so disgusted their Presbyterian confederates, that the latter seceded altogether from the confederacy. The doctrines taught by the party which remained became increasingly bold, and it was soon apparent that the league was a knot of conspirators, whose object was to transfer the property of the Protestant landlords of Ireland to the hands of their Roman Catholic tenants, the former having a sort of rent-charge upon their own land, which would in time have been also taken from them. The state of the law of landlord and tenant was so unjust, that a well-organized opposition to it, conducted with truth, dignity, and honour, must have speedily adjusted matters. The imperial legislature could not have resisted demands so fair. But the movement, like almost all others in Ireland, no matter for what object originally framed, became a mere sectarian and party one, conducted without justice or decency, and with designs that were disloyal to the government, and insidious to all classes of Irishmen not identified with it. These remarks anticipate the progress and character of this unprincipled agitation, as it soon became, but in doing so, an explanation is afforded to the reader which enables him to comprehend occurrences and debates which entered into the history of subsequent years.

The remaining matters of interest connected with Ireland will be found in the section given to the affairs of parliament.

HOME EVENTS.—PROPOSAL FOR AN EXHIBITION OF THE INDUSTRY OF ALL NATIONS.

Early in the year a project was mooted for bringing together in one vast building specimens of the industry of all nations, The object in view was to promote commerce and national amity. The persons who projected this scheme had several consultations at the Institution of Civil Engineers, in Westminster, and it was finally agreed, if possible, to interest Prince Albert in the matter, give him all the credit of its origin, and its chief direction. On communicating the matter to the prince, he accepted the responsibility, and from that moment her majesty became deeply concerned in its success. The interest taken by the queen and her consort soon communicated itself to the rest of the royal family and to the government, and every exertion was made to secure the aid of foreign courts and governments, and the sympathy of foreign nations. A committee was organized of the most likely persons to conduct such an undertaking to a fortunate conclusion, and the powerful influence of the court was exerted throughout the British Isles. It was resolved to erect a building in Hyde Park for the display of the various productions that might be forwarded, and although a fierce opposition was raised by the aristocracy of Kensington and Knightsbridge, the court and government supported the committee as to the site they had chosen. A design was made by Mr. Paxton, gardener to the Duke of Devonshire, to erect a structure of glass, which was accepted, and Messrs. Fox, Henderson, and Co., of Birmingham, contracted for the erection. The contemplated size of the “Palace of Industry” was such as to make the undertaking one of much courage and enterprise on the part of those who made themselves responsible for its construction: the particulars will be most properly given under another chapter.

On the 2nd of March, the Lord Mayor of London gave a splendid entertainment at the Mansion House to the chief magistrates of as many towns and cities of Great Britain and Ireland as could accept the invitation. There were present two hundred and two chief magistrates of English and Welsh cities and boroughs, ten provosts of Scotch burghs, and five mayors of Irish cities and boroughs. Prince Albert was present on the occasion. The assembled magistrates received such information as enabled them in their respective localities to promote the object. The bringing together so unusual an assembly attracted the notice of the empire and of the civilized world; the project was in that way greatly accelerated.

A very large portion of the upper classes were, however, very much opposed to the whole design. An alarm was spread that men would be brought together from all nations, revolutionists and anarchists, especially from France, Italy, and Germany, and that possibly, with the assistance of these invaders landing upon our shores in the disguise of promoters of peace and industry, a revolution of the disaffected among ourselves would be attempted. Many were the dissuasions resorted to for the purpose of checking the zeal of the committee, and causing the court to swerve from its patronage of so bold a measure! The court, the government, the committee, and the leading men in the mercantile interests of the metropolis and the provinces,

pursued the even tenor of their way, amused at the folly of so many persons in a condition of life to know better. These fears proved how large a portion of the classes who occupy the higher positions in society are ignorant of their own countrymen, and of the world. They could not comprehend the scheme, sympathise with its objects, or appreciate its benefits. Many men of strong conservative tendencies who wished to persevere in what they called the good old ways for ever, declared that the shopkeepers of London would be ruined, and that western London would be lost in a deluge of immorality, the result of such an influx of wicked foreigners from every clime. All these apprehensions were destined to be dissipated; but it was in vain that men eminent for wisdom and experience, pointed out their groundlessness; they were indulged until facts confuted them.

Meanwhile, communications were transmitted from foreign courts and governments that the most eminent persons in their respective countries were nominated as commissioners to collect and arrange the products of those countries in the form and way most calculated to ensure the end in view. Intelligence of this sort was received from Russia, Sweden, Norway, Denmark, Prussia, Saxony, Bavaria, the Hanse Towns, Nassau, Hanover, Oldenburgh, Mechlenburgh, France, Holland, Belgium, Spain, Turkey, Sardinia, Switzerland, the United States, Venezuela, and some other foreign countries, as well as from the governors of all our colonies, and from various Indian princes.

It would appear as if the exhibition which had been held in France for various limited objects, and that intended to be held in Vienna, in 1851, had suggested to the English projectors the feasibility and desirableness of uniting all nations in one grand attempt to exhibit together their products, natural and industrial, in the great centre of finance, commerce, and power—the metropolis of the world. The Emperor of Austria, however, entered heartily into the views of Prince Albert, and postponed the exhibition intended at Vienna to the year 1852. Throughout the year the great preparations were pursued, and at the appointed time in the ensuing year reached a happy consummation, to the amazement of all, and gratification of most of those whose vaticinations were so gloomy.

COMMERCE AND INDUSTRY.

The commercial condition of Great Britain throughout the year was favourable. The railway speculations of previous years exercised a prejudicial influence upon the money market, and “calls” were severely felt; but the foreign commerce of the country increased rapidly, and the revenue was in a state which tended to preserve public confidence, and showed that the resources of the nation were unimpaired notwithstanding so many recent calamities. Free trade began already largely to tell upon the great interests which it affected, and justified its advocates and promoters.

The farming interest was, however, distressed; free trade in corn had deranged their habits, and rendered alterations necessary in their customary procedure as to the landowners, their farms, and the markets which they were reluctant to adopt. The landlords were unwilling to concede lower rents, and kept up those which were brought about by war prices during the great struggle with France. Hence a

protectionist agitation pervaded the country, unsettling the minds of the farmers, inspiring false hopes, irritating the trading classes, producing counter agitation, and by all these means inflicting injury upon the country.

THE CHOLERA.

The cholera, which broke out at the close of 1848, slumbered during the winter and spring, 1849, and then ravaged the country, continued to afflict, more or less, during this year also. The mitigation and removal of the disease during the year enabled medical and scientific men to give more calm and undisturbed investigation as to its phenomena. Some of the laws which characterized its advance, prevalence, and removal, were discovered and brought before the public; but the cause or source of the pestilence still remained a mystery, and no specific treatment was discovered. It was remarked that it appeared generally in the same districts, towns, streets, houses, and some persons affirmed, even apartments, which had entered in the year 1832.

PAPAL AGGRESSION.

The most striking home incident of the year, was the event which went generally under the name of papal aggression. England, since the Reformation, had been exceedingly jealous of any exercise of authority by the Roman pontiff within her dominions, and in consequence of this feeling it had been deemed politic at Rome to govern the Roman Catholics of England by vicars apostolic. For some years, however, the church and court of Rome had been encouraged by the Romanist tendencies of the “High Anglican” and Puseyite parties in the English church. Many clergymen and laymen went over to Rome, especially of the former, and very many more were known to be inclined to follow. It was also alleged that a large body of the clergy and gentry were favourable to a union of the Church of England with the Church of Rome. In many of the churches, the communion-table was turned into an altar; lighted candles were employed in the daytime, crucifixes were placed above what was called the altar, and the clergy practised genuflexions and intonations which were supposed to be peculiar to Roman Catholicism. All these things prepared the minds of the people, who were in the main attached to Evangelism, and were steady in their Protestantism, to meet any aggressive action on the part of Rome with anger, and even exasperation. An occasion arose to put this to the test. The pope issued “a brief,” constituting an episcopal hierarchy in England instead of the vicars apostolic. One archiepiscopal and twelve episcopal sees were created, and the territorial limits of the province and the sees were marked out. Dr. Wiseman, elevated to the rank of cardinal, was appointed Archbishop of Westminster. The language of the brief was arrogant in the extreme, and literally outraged the feelings and the honour of the English people. It was followed by a document still more offensive, written by Cardinal Wiseman, which he termed a pastoral, and dated “Out of the Flaminian Gate at Rome.” This was addressed to the faithful about to become, and whom he treated as though they had already become, his subjects. The arrogance of this document was such as to move the Protestant feeling of the country, and to awaken a spirit of hostility to the Church of Rome which seemed unlikely ever to be quenched. The irritation created among the Protestant population was greatly increased by the tone

in which the cardinal and his newly-created bishops addressed their followers upon their appointment to their new offices. The cardinal adopted the style of a prince, commencing with the royal “We,” his authority to “rule over” the province to which he was nominated. His vindication of the course pursued by the pontiff was a bitter sneer at English and Protestant institutions, mingled with an insulting defiance of the established authorities of the British nation. He reminded his hearers and the whole British nation (whom he knew would at such a crisis peruse his address) that he had no authority in Westminster, or in Westminster Abbey, by law, and that he would still pay the entrance fee to go into Westminster Abbey like other liege subjects, resign himself meekly to the guidance of the beadle, and “listen without rebuke when he pointed out to his admiration detestable monuments, or show a hole in the wall for a confessional.” “He would still visit the shrine of St. Edward, and meditate on the olden times when the church would fill without a coronation, and multitudes hourly worshipped without a service.”

The popish Bishop of Birmingham, Dr. Ullathorn, went beyond his master in boasting, and uttered the following blasphemous address:—“The people of England, who for many years had been separated from the see of Rome, were about, of their own free will, to be added to the Holy Church. He did not recollect any people on earth, but those of Great Britain, who, having rejected the religion of God, were again restored to the bosom of the Church. The hierarchy was restored, the grave was opened, and Christ was coming out.”

Great as was the excitement produced throughout the country by the event itself, and by the preposterous pretensions of the new Roman bishops, the public feeling was much intensified by a letter of Lord John Russell’s to the Bishop of Durham. The prelate was supposed to be an ardent and consistent Protestant, and the circumstance of a man of such a character being selected by the premier as the medium through which to give his opinions to the public, parliament not being then sitting, led the country to believe that his lordship really sought its support for some great and practical purpose; that the letter was intended to indicate an anti-papal policy for the future, for which the support of the nation was sought. It was as follows:—

TO THE RIGHT REV. THE BISHOP OF DURHAM.

My dear Lord,—I agree with you in considering “the late aggression of the pope upon our Protestantism” as “insolent and insidious,” and I therefore feel as indignant as you can do upon the subject.

I not only promoted to the utmost of my power the claims of the Roman Catholics to all civil rights, but I thought it right, and even desirable, that the ecclesiastical system of the Roman Catholics should be the means of giving instruction to the numerous Irish immigrants in London and elsewhere, who, without such help, would have been left in heathen ignorance.

This might have been done, however, without any such innovation as that which we have now seen.

It is impossible to confound the recent measures of the pope with the division of Scotland into dioceses by the Episcopal Church, or the arrangement of districts in England by the Wesleyan Conference.

There is an assumption of power in all the documents which have come from Rome—a pretension to supremacy over the realm of England, and a claim to sole and undivided sway, which is inconsistent with the queen's supremacy, with the rights of our bishops and clergy, and with the spiritual independence of the nation, as asserted even in Roman Catholic times.

I confess, however, that my alarm is not equal to my indignation.

Even if it shall appear that the ministers and servants of the pope in this country have not transgressed the law, I feel persuaded that we are strong enough to repel any outward attacks. The liberty of Protestantism has been enjoyed too long in England to allow of any successful attempt to impose a foreign yoke upon our minds and consciences. No foreign prince or potentate will be permitted to fasten his fetters upon a nation which has so long and so nobly vindicated its right to freedom of opinion—civil, political, and religious.

Upon this subject, then, I will only say, that the present state of the law shall be carefully examined, and the propriety of adopting any proceedings with reference to the recent assumption of power deliberately considered.

There is a danger, however, which alarms me much more than any aggression of a foreign sovereign.

Clergymen of our own church, who have subscribed the Thirty-nine Articles, and acknowledged in explicit terms the queen's supremacy, have been the most forward in leading their flocks, "step by step, to the very verge of the precipice." The honour paid to saints, the claim of infallibility for the church, the superstitious use of the sign of the cross, the muttering of the liturgy so as to disguise the language in which it is written, the recommendation of auricular confession, and the administration of penance and absolution, all these things are pointed out by clergymen of the Church of England as worthy of adoption, and are now openly reprehended by the Bishop of London in his charge to the clergy of his diocese.

What, then, is the danger to be apprehended from a foreign prince of no great power, compared to the danger within the gates from the unworthy sons of the Church of England herself?

I have little hope that the propounders and framers of these innovations will desist from their insidious course; but I rely with confidence on the people of England; and I will not bate a jot of heart or hope so long as the glorious principles and the immortal martyrs of the Reformation shall be held in reverence by the great mass of a nation which looks with contempt on the mummeries of superstition, and with scorn at the laborious endeavours which are now making to confine the intellect and enslave the soul.

I remain, with great respect, &c.,

J. Russell.

Downing-street, Nov. 4.

Whether the noble writer of this letter was sincere in the feelings he expressed was doubted by few at the time, although his subsequent turning and time-serving justified the public in believing that the letter was used merely for the party purpose of forestalling the opposition by an appeal to the Protestant feeling which then seemed irresistible. The immediate effect of the letter upon the country was to stimulate afresh the indignation which had been so keenly felt and warmly expressed. Public addresses were presented to the Queen, the Archbishop of Canterbury, and other notable persons, by the clergy of the various dioceses, the universities, the corporations of cities, and voluntary assemblies, pledging those who presented them to the most loyal support of her majesty and the legislature in resisting the pretensions of popery. On the 5th of November, the anniversary of the gunpowder plot, there was a burst of anti-popish feeling all over the kingdom, such as had not been witnessed since the glorious revolution of 1688. The pope, Cardinal Wiseman, the new bishops, members of the conclave at Rome, and various other persons, offensive by their popery, were burnt in effigy, and “Guys” were carried about through London and the provincial cities in mockery of their assumed dignity and pretensions.

These events produced very opposite effects upon the Roman Catholics themselves. Cardinal Wiseman manifested some alarm, and endeavoured to appease the popular wrath by directing his emissaries to speak slightingly of the importance of the matter, and to represent it as an ecclesiastical arrangement only of any interest to Roman Catholics themselves. Lord Beaumont, and other members of the Latin church, who were men of culture and enlightenment, deprecated the whole proceeding of the court of Rome, and the haughty spirit in which its English agents proclaimed them. In Ireland the Roman Catholic party were stirred up to perfect fury, and “Conciliation Hall” echoed with blustering attacks upon the government, and upon Protestantism. The following extract of a speech of John O’Connell’s depicts the spirit of the Irish sympathies with Cardinal Wiseman and his English coadjutors:—“If a cry be raised against the Catholic Church, cannot a cry be raised against the Protestant Church? In Ireland, at least, we shall do so. Does the Cardinal Archbishop of Westminster send tax-gatherers and bring the force of law to bear upon Protestants to compel them to contribute to the support of his dignity? No; he will be supported by the voluntary contributions of the Catholics; he will receive no money under false pretences; he will take no money for services he does not render. But the Protestant Archbishop of Dublin, and the Protestant archbishop and bishops of other sees are not so; they receive money under false pretenses—they exact money for services they do not perform. The Cardinal Archbishop of Westminster, or the other Catholic bishops in England or Ireland, do not enforce the payment of tithes at the point of the bayonet; the life of no widow’s son is taken on their account. The soil of Ireland has been saturated with blood in the forced collection of this odious impost, and the Catholic people are still compelled to pay it indirectly, for they cannot get their receipts for their rent until they pay the tithes to the landlord, who has to pay it

to the parson in the first instance. We must put an end to this. I hope the country will rally, and meet the cry against popery by a cry against the Protestant Church establishment."

The cardinal and his colleagues persisted in their assumption of territorial ecclesiastical authority, and the ceremony of his enthronisation was attended with extraordinary pomp and parade, while the doctrines propounded on the occasion showed Rome to be, as to her ambition and purpose, _semper eadem_.

Finally, a bill rendering illegal and punishable the assumption of ecclesiastical titles was brought into parliament under the auspices of the premier: the right of prosecution was, however, reserved to the government, and as it was well known that the Whigs would never exercise that right from fear of losing the parliamentary support of the Romanists, their bill was seen by the public to be a sham. This circumstance, taken in connection with the premier's vehement letter to the Bishop of Durham, threw an imputation of inconsistency and insincerity upon the political character of Lord John Russell, which impaired his subsequent usefulness and credit.

COMPLIMENT TO LORD PALMERSTON.

The keystone of the whig political arch was Lord Palmerston. He was by far the ablest man attached to the party. It was well understood that the connection of the noble viscount with the whig government was not from any partizan predilections, but from approval of their foreign policy, and from a patriotic desire to maintain the honour and credit of the country in its relation to other states, by devoting his diplomatic talent and experience to the conduct of the foreign office. The conservative party, knowing the powerful support which the presence of the noble lord in the whig cabinet gave to it, was unscrupulous in its desire to weaken his prestige, and "the peace party," considering that his lordship would be prompt in claiming redress for any injuries offered to British subjects, affected to believe that his policy was rash, and to desire on public grounds his removal from office. The policy of Sir Robert Peel, and his foreign minister, Lord Aberdeen, was essentially one of compromise: it preserved peace by a concession of everything that the national temper would allow to be conceded. This answered the views of the peace party, and of those whose commercial interests were subserved by peace at any price, and who therefore identified themselves with "the peace party on principle," although not holding at heart its theory. The House of Commons supported the policy of Viscount Palmerston, and early in June originated a subscription among its members for the purpose of presenting to Lady Palmerston a picture of her gifted husband. On the 22nd of that month a deputation, consisting of about ninety members, waited upon her ladyship, and presented the portrait, with a suitable address. The picture was a full length, and represented Lord Palmerston in cabinet council, a portrait of Canning, his political preceptor and exemplar, being suspended in the council-room. It was a curious and happy coincidence, that on the day on which this tribute of respect to her husband was presented to Lady Palmerston, a telegraphic despatch from Paris announced the settlement of the Greek question.

ARRIVAL OF THE KOH-I-NOOR.

Considerable excitement was created by the arrival of this magnificent diamond. “The mountain of light,” as its eastern designation means, was valued at two millions sterling, and was the most costly precious stone in the world. A certain Brazilian gem in the crown of Portugal was alone admitted to be a rival. Its discovery was made in the mines of Golconda, and passed into possession of the Mogul emperors from the king of that country. From Delhi it was borne away by the conquering Persian, and when his rebellious subjects assassinated him (Nadir Shah), Ahmed Shah carried away to Affganhistan this treasure. Runjeet Singh obtained it thence by inhospitable and unjust stratagem. At the conquest of Lahore the gem became the property of the British crown. The great diamond at the top of the Russian sceptre weighed a greater number of carats, but was not so beautiful. The arrival of the “glittering carbon” was opportune for the great Exhibition of 1851. Many events of political importance caused less conversation and curiosity than the arrival of this “mountain of light.”

ATTACK UPON GENERAL HAYNAU.

During the struggles between the Kasir and his insurgent provinces, one of his most efficient and successful generals was Haynau. He was also, unfortunately, one of the most cruel and sanguinary, women having been frequently subjected by his orders to the most indecent and merciless application of the lash.

This officer visited England during the autumn, and his presence excited much indignant comment, and various demonstrations of personal dislike. It occurred that, on the 5th of September, he, with two other foreigners, presented themselves at Barclay’s brewery for permission to inspect that very great establishment, so much an object of curiosity among foreign visitors. According to the rules of the establishment, visitors sign their names in a book, and this circumstance caused the general to be identified by the numerous work-people, who were excited with an intense disgust of his presence. The draymen and brewers abandoned their occupations, and cried out. “Down with the Austrian butcher,” “Down with the woman-flogger,” and many other expressions too truly descriptive of the general’s character. He was assailed with every form of indignity, even with blows, and sought for safety in flight, pursued by a large and furious mob, every moment increasing. The general ran along Bankside, and found refuge in the “George” public-house, whither the mob pursued him, forcing open every door but that in which the general found concealment. The police opportunely arrived, and with difficulty dispersed the mob; the general was then brought out upon the wharf, and brought up the river to Somerset House in the police galley, crowds following along shore, uttering menaces and execrations. None of the perpetrators of the attack were identified or punished; and it is beyond question that the authorities did not pursue the matter as international relations with Austria gave that power a right to expect. A diplomatic quarrel between the two governments ensued, which threatened the interruption of all friendly communication. The Austrian foreign minister dispatched an indignant protest against the inhospitality shown to a dignified subject of the Kasir, and the apathy of the British government in reference to the offence of the offenders. It was the cause of much bad feeling to England in the higher circles of Vienna; yet it impressed the government of his imperial majesty, and other foreign governments,

with the fact, that the people of England sympathised with liberal policy, and hated cruelty and oppression; that no European state could be guilty of the atrocities which Austria had committed, and hold the respect or esteem of the English people.

PARLIAMENTARY HISTORY.—OPENING OF THE SESSION.

Parliament was opened by commission on the last day of January. The lord chancellor read the royal speech from the throne. The speech referred to the leading events, the history of which have been already related in this chapter. It also gratified the house by the intelligence that Sweden and the United States of America had taken steps to reciprocate the advantages conceded to the ships of these nations. Her majesty referred to her visit to Ireland with great satisfaction, and the countenances of the audience expressed sympathy with these statements. The address to her majesty in the Lords, was moved and seconded by the Earl of Essex and Earl Methuen. The former complimented the press in eloquent and judicious terms for the great services which it had rendered to the cause of law and order during the tumultuous seasons that had so recently passed. An amendment was proposed declaring that recent legislative enactments, and heavy local taxation, oppressed the agricultural interest and caused distress. The mover of this amendment was the Earl of Stradbroke, and it found a seconder in the Earl of Desart.

It was obvious thus early in the session that the Protectionists were prepared to urge their principles, and if possible compel the legislature to retrace its steps on the subject of free trade. “Out of doors” this produced anger and discontent among the numerous and powerful classes who had carried the free-trade agitation to a successful issue. It had the effect of lowering the reputation of the conservative party for wisdom, discretion, and disinterestedness. The leaders of the party were boldly reproached by the press as anxious to sustain their luxurious living by taxing the necessaries of the people, and the House of Lords was denounced by the popular press, and at popular meetings, as “a normal school of agitation,”—the title given by Lord Lyndhurst as speculatively applicable to popular corporations. Lord Stanley lent his great name and his able advocacy to the support of the amendment; it was opposed by the free-trade lords and the ministry, and defeated. In the commons, a similar amendment to the address was moved by Sir J. Trollope, and seconded by Colonel Chatterton. After a debate of two nights, the amendment was rejected by an overwhelming majority.

AFFAIRS OF GREECE.

The political campaign of the session might be said to have opened on the 4th of February, when Lord Stanley demanded explanations from ministers in reference to the affairs of Greece. The Marquis of Lansdowne gave a clear, temperate, and just exposition of the facts, and of the policy of the government. Lord Aberdeen animadverted upon that policy in a manner that was deficient in all those qualities which characterized the speech of the ministerial leader. It was neither clear, temperate, nor just.

In the commons, Mr. Disraeli and Mr. Milner Gibson, both addressed demands for explanation, Mr. Disraeli in the interest of the tory opposition, and Mr. Gibson in the

interest of the “Peace at all price” party, as a certain knot of gentlemen in the house was designated. The answers of Lord Palmerston were lucid and statesman-like; his opponents were no more than children in his hands. He had neither the eloquence of Disraeli, nor the assurance, which ignorance alone can supply, possessed by Mr. Milner Gibson, who, whatever his merits, was innocent of all knowledge, for good or evil, on subjects of foreign policy; but his lordship showed his perfect cognizance of all the bearings of the dispute, of international law, and of the policy which his country could alone pursue, with honour to herself, and justice to her injured subjects.

So long as the Greek question remained open both these sections of opponents tormented the ministry, and when, on the 15th of May, the French ambassador suddenly left London, a perfect storm of hostility fell upon the cabinet. Lord Palmerston defended the policy of the foreign office throughout with candour, courtesy, and yet with a satirical wit, which keenly annoyed the opposition, while no excuse was left them to impeach the veteran minister’s politeness, or constitutional respect for the house. The ministry were not apprised that the French ambassador had been withdrawn from any dissatisfaction with England, but the explanations given in the French Assembly soon left no doubt of that. Lord Stanley brought on a debate on the 18th of June. He arraigned the policy of government with an eloquence which was most formidable. He was supported by Lord Aberdeen in a disingenuous and un-English speech. The government was never more feebly defended, and the result was a signal defeat, Lord Stanley’s motion of censure being carried by a large majority.

In the commons, Mr. Roebuck brought forward a resolution of confidence in the cabinet on the 24th of June. The speech of the honourable member was constitutional and effective. Lord Palmerston delivered a most powerful _exposé_ of his foreign policy. Sir Robert Peel took much the same views in the commons as Lord Aberdeen did in the lords, and, considering that both these statesmen had by their impolicy allowed the grievances to accumulate which it devolved upon Lord Palmerston to redress, their conduct was equally inequitable and ungenerous in withholding from him their support, not to say opposing him. The speech of Sir Robert Peel was the last he ever delivered, and was remarkable for that circumstance as well as for the ability it displayed; but the principles of foreign policy put forth by the illustrious baronet were such as tended to make the country weak in its foreign relations, and were more calculated to subserve the immediate interests of Lancashire than the permanent interests of that powerful district, or the honour and weal of the empire at large. Mr. Gladstone and Mr. Cobden were also among the prominent opponents of Lord Palmerston’s policy. The minority was large, the government policy having been supported only by a majority of forty-six.

CONSTITUTIONS FOR THE COLONIES.

On the 8th of February, Lord John Russell made a statement in regard to colonial government. His lordship denounced the imprudence of the Colonial Reform Association, which, by its correspondence with disaffected persons, kept alive discontent wherever it existed, and indirectly promoted it everywhere else. The pith

of the noble lord’s statement was, that the colonies were a source of strength in peace and war, contrary to the doctrine propounded by Messrs. Cobden and Bright: that it was the duty of England to preserve her colonial influence, and to extend civilization and freedom wherever her flag was planted; and that in most cases the colonies were in a position, as to population and intelligence, to justify the institution of a constitutional form of government in harmony with that of the parent state. The noble lord’s speech was received with loud cheering, especially on the conservative side of the house, when he announced the opinion of the government that the colonies were sources of commercial and political strength, and ought to be retained. The speech was followed by the proposal of resolutions in harmony with its statements. A very wide diversity of opinion was expressed by the house, Mr. Gladstone animadverting with bad temper upon such portions as did not meet his approbation.

AUSTRALIAN COLONIES’ BILL.

On the 18th of February, in pursuance of these resolutions, Lord John Russell moved “the Australian Colonies’ Bill.” Mr. Roebuck criticised the measure in a tone of severity, in which he was followed by other members, but the second reading was easily carried. On its committal, considerable opposition was offered, in the form of amendments, to which the government could not accede. Mr. Roebuck and Sir William Molesworth led this species of opposition, and neither in a fair or national spirit. The bill was carried, with some slight modifications; but, upon bringing up the report, Sir William Molesworth moved the re-committal of the bill, and was seconded by Mr. Gladstone. The object of Sir William was to initiate a broad and liberal line of policy in colonial affairs on principles which, it appeared to the government, would be adverse to the interests and subversive of the authority of the parent country. Mr. Gladstone was actuated by sheer party opposition. Only forty-two votes were found in favour of the re-committal.

Mr. Gladstone then moved an additional clause, giving the Church of England in the colonies the power of synodical action. The speech of the honourable member was so thoroughly sectarian as to forbid any chance of success, as it awakened prejudices in many directions which a more prudent politician would have endeavoured to allay. The portion of the house usually known as “Young England,” sustained Mr. Gladstone, but the government opposed him, and the house at large went with it.

On the third reading, Mr. Gladstone made another attempt to oppose its progress by moving that it be suspended until the opinion of the colonies could be taken as to its provisions. This motion was plausible, and this time the obstructor spoke plausibly, concealing the temper which really pervaded his opposition. Mr. Roebuck seconded it, although his motives and policy were utterly opposite to those of the mover. The majority was large which rejected the postponement. Other modes of obstruction less prominent were unattended by success.

In the lords the second reading was carried _nemine contradicente_. Afterwards, Lord Brougham, who co-operated with Mr. Roebuck in the commons, moved that

counsel should be heard at the bar against the bill; this motion was defeated. The Bishop of Oxford, who co-operated with Mr. Gladstone in the commons, moved that the bill be referred to a select committee; the motion was refused. The lords accepted the bill with great reluctance, but continued to deal with it in good faith; they amended it in various particulars, to which the commons afterwards consented, and the bill became law.

LOCAL BURDENS ON LAND.

On the 19th of February, Mr. Disraeli moved for a committee of the whole house to consider the burden of the poor law and other local burdens borne by the land, and with a view to such revision as would relieve that interest. The debate was a renewal, under another form, of the protectionist controversy. Mr. Bright, Mr. James Wilson, and Sir Robert Peel, made very effective speeches against the motion. On a division, Mr. Disraeli secured a powerful minority, his motion having been defeated by a majority of only twenty-one votes.

PARLIAMENTARY REFORM.

On the 28th of February, Mr. Hume brought on a motion for the extension of the franchise. Like most of that honourable gentleman’s measures, this was as ill-timed as it was well-intended. Sir Joshua Walmsley seconded it. Mr. Roebuck, Mr. Fergus O’Connor, and some other members advocated it, who did not bring any parliamentary or moral influence to its support. Only ninety-six votes were given in its behalf.

IRISH DISTRESS.

The parliamentary measures concerning Ireland have been noticed under the section of the chapter devoted to its history, and therefore only require a passing reference. Early in the session Lord John Russell made a statement to the house concerning Irish distress, and proposed various resolutions pertinent to the repayment of loans, and the modes of dealing with insolvent “unions.” These resolutions were agreed to, and a bill founded on them was passed.

IRISH FRANCHISE BILL.

At the passing of the Reform Bill Ireland was not placed on an equality with England, and this fact operated strongly in promoting the disloyalty which had prevailed there. But for the Irish liberal members the reform bill for Great Britain could not have been carried, and the Irish people expected from the liberal representatives of Great Britain similar support, which was not accorded. This filled the minds of the Irish with strong resentment, and caused them to agitate for a reform bill on terms substantially as popular as that accorded to Great Britain. Moved by considerations of this sort, Lord John Russell resolved to enlarge the Irish franchise, and a bill was brought in for that purpose. It was warmly supported by Mr. Hume, Mr. Bright, and other English members of the liberal party, who desired even a more democratic measure for Ireland.

The main feature of the bill was the extension of the franchise to all occupiers of land to the amount of £8 per annum, adopting the rating as the ultimate standard of

value. The bill was read a second time, after a fierce conservative opposition, which continued until it finally passed the commons. In the lords it was vehemently opposed by Lord Brougham upon principles not reconcilable with his well-known political creed. Lord Desart proposed to raise the qualification to £15, and carried his proposition. Lord Stanley made a proposal intended to obstruct the registration, and carried it against the government. In this state the bill passed.

In the commons the amendments of the lords were discussed with bitter acrimony, and a strong sense of injury, deepened into resentment, was circulated in Ireland, when the tidings of the lords' amendments reached that country. This reacted upon the commons, and the government was considerably embarrassed by the suspicions and anger of its own general supporters among the Irish members. Lord John proposed that the commons should confer with the lords upon the feasibility of establishing a £12 franchise instead of the £8 or the £15. Some other amendments of the lords were rejected. A conference ensued, and the lords conceded to the commons on the basis of their new proposals.

BILL FOR THE ABOLITION OF THE LORD-LIEUTENANCY OF IRELAND.

On the 18th of May, the premier moved for leave to bring in a bill for this purpose. This was one of the many ill-digested and inconsiderate measures by which Lord John Russell's government was characterised. The Irish people almost unanimously opposed it, and so did their representatives. Mr. Shiel, however, who had become a mere ministerial hack, took part with the government against the known feeling of his countrymen. He was chastised by Mr. Disraeli in one of that gentleman's most eloquent and happy orations.

The second reading was carried by a large majority, but it was so obvious that if the bill were proceeded with, it would be by virtue of an English majority on an Irish question, against the feeling of the Irish members and their constituents, that the government abandoned it. Much evil was inflicted by its introduction in the temper it evoked in Ireland; and much evil was also accomplished by abandoning it, for it exposed the vacillation of the premier and the government, so as to lessen their moral influence in both Great Britain and Ireland.

MISCELLANEOUS TOPICS OF DEBATE.

There were few other measures of importance as to general government or law introduced by the cabinet, but the subjects introduced by private members were very various, such as—the conduct of government on the question of the extradition of Hungarian refugees from Turkey, brought on by Lord Dudley Stuart; the abandonment of the naval efforts on the coasts of Africa to suppress the slave-trade, introduced by Mr. Hutt, and efficiently opposed by Mr. Buxton; different party questions, connected with outrage in Ireland, on the social condition of that country; bill for a new tribunal instead of the judicial committee of privy council; reform of the universities; alteration of the law of marriage as to degrees of affinity; Sunday labour in the Post-office; amendment of the factory act; debate on the continuation of the annuity of £12,000 per year to the Duke of Cambridge, on occasion of the death of his father, &c. The city of London having elected Baron Rothschild, a Jew, as their

representative, and he having refused to take the oaths, “on the faith of a Christian,” a debate ensued of much importance in the commons. Mr. Hume moved that the oath should be administered to Baron Rothschild on the Old Testament. This was obstinately resisted by the tory members, but ultimately carried. The next day, Baron Rothschild was sworn on the Old Testament, but refusing to adopt the words, “on the true faith of a Christian,” he was ordered to withdraw. Sir F. Thesiger moved that a new writ should be issued for the city of London. The attorney-general proposed two resolutions:—1st, that the oath taken by Baron Rothschild was not according to law, and did not entitle him to take his seat; 2nd, pledging the house to a bill in the next session, altering the form of the oath. A debate ensued, which was confused and desultory, and much opposition from both sides of the house was offered to the resolutions, which were, however, eventually carried. The issue was not satisfactory to the city of London, the members of the Jewish persuasion, or the country.

FINANCE.

The financial campaign may be represented as having opened on the 8th of March, when Mr. Cobden made a series of resolutions, pledging the house to retrenchment. The basis of the honourable member’s speech and motion was, that warlike armaments were not necessary, there being no likelihood of any nation going to war with us; and the costly character of such armaments affecting the progress of commerce and civilization, and depriving the people of comfort by an oppressive taxation. The honourable member was of opinion that the differences between states did not require a resort to arms, and that if our government only adopted proper means to effect it, they would find it possible to adjust all disputes with foreign countries by arbitration. The resolutions were rejected by an overwhelming majority.

On the 13th, Mr. Drummond submitted to the house a resolution, recommending economy in the public outlay. This was entertained as a party resolution by the protectionists, who thus suddenly became the professed advocates of economy for the purpose of allowing the agricultural burdens to be relaxed. Being a party motion, it was well supported, and the motion was rejected by a majority of less than fifty members.

Various motions were made by individual members to give a new form to the pressure of taxation, and to adjust in a different way the public burdens. The chancellor of the exchequer, in his financial statement, which is given at the close of this section, anticipated some of these motions, and secured their defeat by his success in inducing the house to acquiesce in his own budget. Others came on before the budget was introduced, but all shared a like fate, as the financial policy of the government received the decided support of the house. Some of the financial motions of the session made by independent members attracted much attention, and produced some impression in the house, being supported by considerable minorities. Thus Lord Duncan moved for the repeal of the window duty. There followed a debate of the most animated character in a thin house, various leading men opposing the government. On a division, the motion was rejected by only a majority of three, there having been eighty to seventy-seven. This was the narrowest escape in the commons which the government experienced in the session.

Mr. Cayley was recognised as the champion of the favourite financial measure with the protectionists, the repeal of the malt duty. He accordingly introduced that subject by motion, which was seconded by Mr. Christopher, another champion “of the agricultural interest.” It was warmly supported by several of the leading Conservatives; but Lord John Russell, Mr. James Wilson, and the chancellor of the exchequer, delivered powerful speeches against it. Mr. Milner Gibson, always intelligent on economical questions, made a very able speech against the repeal of the tax. The motion was lost, a large majority being against it.

On the 15th of March, the chancellor of the exchequer made his financial statement, which was eagerly looked forward to by both sides of the house, and by the country, as it was supposed that a vigorous effort to defeat the ministry on that point would be made. The minister was determined, if possible, to meet the ideas of all parties, and he hit upon the expedient of relieving the agricultural interest by reducing the duty on bricks. Neither the ministers nor their supporters were very sanguine that this would give satisfaction, but it met with very general approval, the trading, tenant, and agricultural interests all felt concerned in the cheapness of this useful material, then heavily taxed; and the result was unanimity in the favourable reception given to the chancellor’s proposal. The following correctly describes the ministerial scheme.

THE BUDGET.

The house having resolved itself into a committee of ways and means,—The chancellor of the exchequer proceeded to lay before it the financial statement for the ensuing year. He had to lay before the house two estimates—one, that up to the 5th of April next, and the other up to the 5th of April, 1851. He had estimated the income for this year at £52,262,000; but he was happy to say that it would probably amount to £52,874,000. He could not, however, take the estimate for next year so high, as, during the last quarter, the returns bad not been so good. He would, however, take them at £52,785,500. He had estimated the expenditure of last year at £50,853,622, but it amounted only to £50,553,651; and he calculated that next year there would be a surplus of two millions and a quarter. He had calculated last year on a surplus of only £104,000, whereas the increase amounted to £523,500. He did not, however, anticipate such favourable results from the customs this year as last, for there would be a probable loss on sugar of between four and five hundred thousand pounds; on brandy, and likewise on corn, there would also be probably a loss. The right honourable gentleman then enumerated the various sources of revenue from which he anticipated revenue, as follows:—

Excise 14,045,000

Stamps 6,860,000

Assessed Taxes 4,320,000

Income Tax 5,410,000

Customs 20,000,000

Post-Office 820,000

Crown Lands 160,000

Miscellaneous 260,000

Old Stores 410,000

Making a total of £52,285,000.

With respect to the expenditure,

The interest on the Funded Debt was 28,105,000

Other charges on the Consolidated Fund 2,620,000

Navy Estimates 6,613,000

Army Estimates 6,120,006

Ordnance 2,434,417

The Militia 110,000

Commissariat 500,000

Miscellaneous 211,159

Excess of expenditure in former years 4,000,000

Making altogether an expenditure of £50,613,582.

To this should be added the expenses of the new houses of parliament, and for a building to hold the records of the house. Upon the whole, he calculated, after meeting their expenses, upon an available surplus of fifteen hundred thousand, in round numbers. The right hon. gentleman then adverted to the propositions which had been made to reduce the duties on windows, tea, timber, malt, soap, bricks, paper, advertisements, and attorneys' certificates; and also the proposition of the hon. member for Buckingham, to place on the consolidated fund certain charges otherwise provided for hitherto, and said he would not assent to those propositions, for which no special case had been made out. When he remembered that, within the last few years, no less a sum than £148,000,000 had been laid out in railways, he could not help thinking that there was a strong symptom of a return to more prosperous times. He would now state his own views on the subject. He had thought that they should first direct their attention to a reduction of the debt, and he should state to the house the fact, that since 1831, we had borrowed no less than £35,000,000, while in the same twenty years we had only applied £8,000,000 towards its repayment, leaving a balance of debt of no less than £27,000,000. If they were always to borrow when the revenue was deficient, and never to pay when they had an excess, he could not see how they were to get out of debt at all. Neither could he see how they would get rid of the income-tax if they were to apply every surplus to the reduction of taxation instead of to the reduction of the debt. He felt it desirable, however, that some relief should lie given in the way of taxation; and the first class to which lie should apply the principle would be the small holders of land, by reducing the stamp duty on the sales of land up to £1000, and rendering it more equitable on transfers above that amount. Also a reduction of the duty on mortgages and bonds,

and to reduce the stamp duty on leases from one to half per cent. He also thought it desirable that the habitations of the labouring classes should be improved, and he should therefore propose the total repeal of the duty on bricks. He estimated the loss to the revenue at £300,000 on stamps, and at £455,000 on bricks; making a total of £755,000, which was about one-half of the surplus available. He thought, therefore, that he was making a fair distribution of the surplus, one half to the reduction of taxation, and one half to the reduction of the debt. He proposed to make advances for the purpose of drainage and land improvement as an inducement to an expenditure of capital, which could not fail to be considered a national as well as an individual benefit. The last sum granted in this was for England and Scotland, £2,000,000; and of this, owing to priority of application, the gentlemen north of the Tweed had got no less than £1,600,000. He proposed to advance another £2,000,000, and to take care to reserve a fair share of it for England. He also proposed to advance for similar purposes £1,000,000 to Ireland, £800,000 of which should be for arterial drainage. He hoped to be able to make these advances without any addition whatever to the public debt. These were the proposals he had to submit to the house. He also proposed to apply £25,000 in order to got rid of the perpetual annuities. He hoped to be able to make these advances without making any addition whatever to the funded debt, if the house would leave him a surplus to do so. He proposed, by the payment of a sum of £250,000 out of the surplus in hand, to extinguish the equivalent fund, which was a charge on the public funds of £10,000 a year, since the junction of the debt of Scotland with that of England at the time of the Union. That would leave him £500,000; and that he thought the house should leave him as a reserve fund. The right lion, gentleman concluded by moving a vote of £9,200,000, to be raised by exchequer bills, for the service of the year.

After some discussion, in which Mr. Hume, Mr. Newdegate, Lord John Manners, and several other members took part, the motion was agreed to.

DEATH OF SIR ROBERT PEEL.

A record of this event properly belongs to parliamentary history. Disraeli justly described the baronet when he called him “a very great member of parliament.” It was as a member of parliament, rather than as a man or a minister, that Sir Robert Peel was great. Possessing superior culture and extraordinary talents, he was not a man of genius. His administrative abilities were of a very high order, perhaps we might say, of the highest order that this country had ever known in a minister; but he was indebted for his conceptions sometimes to his friends, often to his opponents. The great aim of his policy was conservative—conservative of class privilege and old institutions. He resisted every measure of civil and religious liberty introduced in his time, until the overwhelming pressure of public opinion rendered further resistance hopeless. Thus, he opposed Catholic emancipation, the repeal of the corporation and test acts, the reform bill, and free trade, until all these measures were forced by public opinion. It was his gift to discern more keenly than other men when the moment arrived beyond which public opinion could be no longer safely opposed, and he was then generally ready to adopt the very measures which he had before so warmly denounced, and blamed others so strongly for promoting. He had, by his

timely apostasy on all great questions conciliated the masses, and by preventing the conflict of parties and classes on these occasions, he did much to promote the public welfare at the expense of his own consistency. Measures seemed to be regarded by him, not in the light of principle, but in that of political expediency. He passed bills, not because truth, freedom, and justice demanded them, but because they promoted the interests of party, or, it might be, because he thought it was expedient for the national interests at the time that they should be passed. Even the great measure of the repeal of the corn laws he retarded longer than any other man could have retarded it. He was the minister who passed it, and who hindered it from passing sooner. His whole political history was a confession of political error, and repentance. Yet he did not leave the honour of carrying out their own measures to men who had formed a public opinion concerning them, and who could with conscience and honour have conducted them through parliament; he refused them all aid in each efforts, and when his time arrived, seized the schemes and carried them, demanding the homage of the Conservatives for conceding so little to the people, and the homage of the people for conceding to them so much more than they could have obtained from anybody else.

The personal history of this eminent man contained little that was striking; a cold prudence preserved him from engaging in and personal matters that could make his life eventful. He was born in the year 1788, in a cottage near Bury, in Lancashire, where his father then lived in humble circumstances. Mr. Peel founded in that neighbourhood works for calico-printing, and laid by that means the foundation of a very great fortune. He was afterwards knighted, and having written a pamphlet entitled, “The National Debt a Source of National Prosperity,” he was frequently consulted by Mr. Pitt, and it is alleged, conceived the idea that his son might become Mr. Pitt’s successor. He sent young Robert to Harrow at an early age, where he was on the same form with Byron the poet, who thus recorded his impressions of him: “There were great hopes of Peel among us all, masters and scholars. As a scholar he was greatly my superior; as a schoolboy out of school I was always in scrapes, he never; and in school he always knew the lesson, and I rarely.” “The boy was father to the man” in both these cases, for Peel through life maintained the same cautious, industrious, and circumspect habits, which certainly never characterised his far greater schoolfellow. He left Harrow for Oxford, where he especially distinguished himself as a classic. In 1809 he became of age, and entered parliament for a rotten borough openly bought for him by his father. His first speech was a success, and although he never gave promise of becoming a brilliant orator, he grew in favour with the house by the practicability of his views, and his faculty of perceiving the tone of feeling prevailing in the assembly at the time. In March, 1811, he made a very able speech in favour of the Duke of Wellington, then fighting the battles of the Peninsula, and against whom a public outcry had been raised. Percival, then in power, was so pleased with the speech that he invited Mr. Peel to take office, and he commenced his career, before he was twenty-three years of age, as under-secretary of the colonies. Upon the death of Percival he was appointed chief secretary for Ireland, under the administration of Lord Liverpool. During his Irish secretaryship he opposed Catholic emancipation with great zeal and some bitterness. Afterwards he held office in

various other situations. During the free-trade agitation of 1819, he was its warm opponent, and when the great Lancashire meeting took place at Peterloo, afterwards the site of the free-trade hall in Manchester, and the Peterloo massacre occurred, Mr. Peel defended that act, which left for so many years a deep discontent in the hearts of the operatives of Lancashire. When in 1821 Lord John Russell first brought forward his motion for a reform in parliament, he met from Mr. Peel a determined opposition, such as the honourable baronet continued to offer against all increase in the power of the people, until Lord John had the pleasure of carrying his view triumphantly through parliament in the shape of the reform bill. Even after that measure passed, Sir Robert devoted his talent to advise and lead his party in every practical attempt to defeat it. In 1822, while preparation was making to invade Spain, at the instigation of “the Holy Alliance,” Mr. Brougham called the attention of the house to the circumstance, and eloquently denounced that despotic confederacy. Mr. Peel, with his usual caution, defended “the Holy Alliance;” but notwithstanding his guarded language, he left no doubt of his sympathy with foreign as well as domestic tyranny. The defender of the Peterloo massacre and the Holy Alliance gave no promise of ever being popular with the people of England. The other leading facts and features of his political career will be found in the pages of this history, where his part in public affairs has been noticed.

Sir Robert married, in 1820, Julia, youngest daughter of General Sir John Floyd, Bart., and when his death occurred, his family consisted of Robert, his successor in the baronetcy, then secretary of legation in Switzerland; Frederick, then M.P. for Leominster; William, a captain in the royal navy; John Floyd, an officer in the Fusilier Guards; Arthur Wellesley, not then quite of age; Julia, married to Viscount Villiers; and Eliza.

The circumstances of Sir Robert’s death were as follow: On Saturday, the 29th of June, he had been to Buckingham Palace, where he had made, a call, and entered his name on her majesty’s visiting book. He then rode slowly up Constitution Hill. When he arrived nearly opposite the wicket gate leading to the Green Park, his horse suddenly became restive. The baronet was a bad horseman, and he soon lost all control of the animal, which at last threw him over its head. Several gentlemen rendered assistance immediately, and among them two medical men. Mrs. Lucas, of Bryanstone Square, was passing in her carriage, in which he was conveyed to his residence. Dr. Foucart, of Glasgow, and Sir James Clark accompanied him in the carriage. An examination of his person was immediately made, when the medical gentlemen present pronounced that he had incurred severe injury of the shoulder and fracture of the collar bone; it was hoped that no internal consequences had been produced by the fall. The fracture was compound. He continued to grow worse in spite of every surgical remedy, until the Tuesday night following, when, a little after eleven o’clock, he expired. After death it was perceived, _for the first time_, that the fifth rib had been fractured on the left side. It is astonishing that the faculty Were unable to discover this, for it was the region in which he had felt most pain. This was supposed to have been the cause of his death; but the family opposed a _post mortem_ examination.

Mr. Becket Denison and Lord Villiers had ridden the horse to prove it, and it had met the bands and the omnibuses without shying, so that no apprehension was entertained that Sir Robert's deficient horsemanship would be of any serious consequence with so quiet an animal; he had also ridden it regularly for a week without having any cause of alarm. The event seemed, therefore, one of those singular providences which so often occur, baffling human precautions, confounding calculations, and showing that that the ways and destinies of men are in the hands of an all-ruling Power.

Tidings of his death spread with great rapidity, and universal regret was displayed by the people. Shops were closed, the flags of the ships in the river and on the public buildings were lowered, and many went immediately into mourning. The funeral took place the ensuing week; the body was laid in the mausoleum of the family, at Drayton, near Tamworth, the whole population of the district manifesting every token of respect and sorrow of which the occasion allowed.

On Thursday, July the 4th, the following occurrences, in the house of commons, marked at once the estimation in which Sir Robert was held by public men, and his own singular and unostentatious character. Lord John Russell introduced to the house the circumstance of the honourable baronet's decease, and said:—"It is impossible not to lament that hereafter this house will be no longer guided by that long and large experience of public affairs, by that profound knowledge, by those rhetorical powers, by that copious yet exact memory, with which this house was wont to be enlightened, instructed, and guided. It is not for me, or for this house to speak of the career of Sir Robert Peel. It never happened to me to be in political connexion with him; but so late as that last debate to which I have referred, I took occasion to thank him for that fair and frank support which he had given to the present government. Sir Robert Peel, sir, in that speech which preceded the one which I addressed to the house, and in which he opposed the policy of the government, spoke with such temper and such forbearance towards all those who might hold an opposite opinion to his, that it must be a satisfaction to those remaining that his last act should have been one of such candour and kindness towards those all around him. Sir, there can, I think, be no doubt that, however history may deal with the wisdom of the course he pursued, that it will be admitted that on two great occasions when he held power, undisturbed and apparently with every sign of security, and when he proposed measures to this house which shook, and, after a time, subverted his party, he did so from those motives of deep love for his country which ever distinguished him." Having slightly adverted to the course of the late right honourable baronet on the corn-laws, the noble lord concluded by observing, "That if it should appear to the family and friends of the late Sir Robert Peel to be desirable to take such a course, though I shall not now proceed to make any motion on the subject, I will give my willing support to a proposal for conferring the same honours on his remains that was awarded to Mr. Grattan and Mr. Pitt. I may, perhaps, be permitted to add, that I thought it right to obtain the sanction of the crown before I made this proposal, and I feel assured that anything which could do honour to the memory of Sir Robert Peel, or which could add any further tribute of respect to his name, would be unhesitatingly acquiesced in by her majesty. Sir, I wish, therefore, in concluding

these few words, to say that, in disposing of this proposal, I place myself entirely in the hands of the friends of the late Sir Robert Peel. Having had no political connexion with him, this proposal comes from me without the tinge of partiality; and I may say in conclusion, without any fear of a charge of insincerity, that I do feel, that this country, as well as posterity hereafter, in recognising the claims of individuals deceased to the title of eminent statesmen who have adorned the annals of this country, or contributed to its lustre, those of the late Sir Robert Peel will be amongst the foremost."

Mr. Goulburn, while acknowledging, on the part of the family of the late lamented right honourable baronet, the high honour shown to his memory in the offer made by the noble lord, begged gratefully to decline it, as opposed to the wishes of Sir Robert Peel, as expressed in his will, which was dated May 8, 1844, and in which he stated, "I desire that I may be interred in the vault in the parish of Drayton-Bassett, in which my father and mother were interred, and that my funeral may be without ostentation or parade of any kind." Nor did this sentiment undergo any alteration; for, not later than six weeks since, when alterations were made in that particular church to which that memorandum referred, Sir Robert Peel pointed out to Lady Peel the very spot in the vault in which he wished and trusted his body might be laid, without any of that parade or ostentation which he so strongly deprecated, and the absence of which gave him such great satisfaction in the case of the funeral of the late queen-dowager. Under these circumstances, therefore, he was sure that he (Mr. Goulburn) had but one duty to perform, and the family of the late Sir Robert Peel but one wish, and that was the thankfulness with which he (Mr. Goulburn), on their part, had to acknowledge the intentions, both of her majesty and her parliament, in wishing to confer on his late lamented friend that, the greatest honour that could be paid to a subject—a proposition which they were compelled respectfully, but thankfully, to decline. He (Mr. Goulburn) only entreated the house to add to that mark of respect which they had paid to the ability and public services of his lamented friend the further mark of respect to his simplicity of character, and give effect to his desire as to the way in which he wished his funeral obsequies to be conducted. The entry of the adjournment of the house immediately after its meeting on the previous day, out of respect to the memory of the deceased statesman, was an honour which would live for ever in the journals of that house, and an honour which was never before paid to a subject.

It was subsequently intended to make Lady Peel a peeress in her own right, but she declined the honour, her late husband having enjoined that none of his family should accept any honour or reward from his country.

When the tidings of Sir Robert's decease reached other countries, much sympathy was expressed; the French assembly, and also the Congress of the United States, having in the most marked manner paid tributes of respect to his memory. M. Guizot, the favourite minister of Louis Philippe of France, wrote a memoir of Sir Robert, which displays much talent, but over praises the subject of the memoir, without doing justice, nevertheless, to his policy. The opinions and measures of the great statesman will long be a subject of discussion, not only in England, but in other nations. The

following estimate of his political principles and career by Count Cavour, the eminent Sardinian statesman, a man intellectually superior to Sir Robert, is probably the truest and best of the many which has appeared. It was uttered in a speech during a sitting of the Sardinian senate, in the year 1857, when sufficient time had elapsed for foreign statesmen, at all events, to form a fair judgment of the man, unbiassed by the interests of their respective states. Count Cavour had been taunted with having expressed himself in very high terms of Sir Robert's commercial and financial policy, while he at the same time refused, in many respects, to accept him as an exemplar. He, consequently, addressed to the senate the following remarkable speech:—"I entertain the highest admiration for that statesman; I believe that few men have rendered greater services to mankind than he has. Yet I do not believe that Sir Robert Peel was always infallible in his political career. It is my opinion that Sir Robert Peel would have left a much more illustrious name behind him, if, instead of having been compelled by circumstances to introduce reforms, he himself had originated them. I think that Sir Robert Peel would have left behind him a fame unequalled in history, if, instead of proposing the emancipation of the Catholics in 1829, he had proposed it in 1825. I think that his name would have eclipsed all those of ancient and modern statesmen if the reform of the corn-laws had been initiated in 1840—a good harvest year—instead of being passed in consequence of the famine which desolated Ireland, and instead of being in some measure a consequence of the potato disease. In fact, if Sir Robert Peel had been the originator of reforms, he would at his death have left to his friends a political inheritance far different from that which he bequeathed to them. If Sir Robert Peel had associated his name and his whole career with successive reforms, there would be no need of recording at the present time a strange fact which has taken place in England—namely, that a party, consisting of eminent men, including the most eloquent speaker in parliament, and the most able legislators, has been completely routed at the late elections. And this, gentlemen, is the fate of parties who allow themselves to be led by public opinion, and who wait to the last moment to carry out reforms which they have not the courage to introduce. I trust that the senate, convinced of this truth, will give its support to the present government, which, while following the example of Sir Robert Peel, nevertheless deviates from the course he adopted by making itself the originator of reforms, not waiting to grant them to any popular pressure, nor to the pressure of unforeseen circumstances."

PROROGATION OF PARLIAMENT.

The queen in person prorogued parliament on the 15th of August. The address to her majesty, and the royal speech, were ordinary documents. The houses were prorogued to the 15th of October, but parliament did not meet again for the transaction of business that year.

THE COURT.

Birth of a Prince.—On the 1st of May her majesty was delivered of a son, the third prince that had been born to her. The baptism took place in the chapel of Buckingham Palace, on the 22nd of June. The ceremony was unusually superb.

Her Royal Highness the Duchess of Kent, her Royal Highness the Duchess of Cambridge, his Royal Highness Prince George, her Royal Highness Princess Mary, his Royal Highness the Prince of Prussia, his Serene Highness Prince Edward of Saxe-Weimar, his Serene Highness the Prince of Leiningen, his Grace the Duke of Wellington; the Belgian, Portuguese, and Prussian ministers; the Marquis of Lansdowne, the Earl of Minto, Lord John Russell, Sir George Grey, Viscount Palmerston, Earl Grey, Sir Charles Wood, Sir Francis Baring, Sir John Hobhouse, the Earl of Carlisle, the Right Hon. Fox Maule, Sir William Somerville, and others invited to the solemnity, assembled in the old dining-room, at the palace, at six o'clock, the royal family being conducted to an adjoining drawing-room, and were conducted to seats in the chapel.

The Archbishop of Canterbury, the Bishop of London, the Bishop of Chester (clerk of the closet), the Bishop of Oxford (lord high almoner), with the Rev. Henry Howarth (rector of the parish of St. George, Hanover-square), the Hon. and Rev. Gerald Wellesley (resident chaplain to her majesty), the Rev. Lord Worthesley Russell (deputy clerk of the closet), and the Rev. Henry George Liddell (chaplain to his Royal Highness Prince Albert), assembled in the room adjoining the old dining-room, and took their places at the communion-table. The Archbishop of Canterbury commenced the baptismal service, and on arriving at that part for naming the child, the Countess of Gainsborough handed the infant prince to the archbishop, when his royal highness was named Arthur William Patrick Albert.

The queen, the prince, and the royal personages then passed up the grand staircase to the Throne-room, where her majesty was joined shortly before eight o'clock by her Royal Highness the Duchess of Gloucester. The remainder of the company continued in the Green Drawing-room. The queen wore a dress of white, watered, and brocaded silk, with a broad flounce of Honiton lace, trimmed with white satin ribbon. Her majesty also wore a diadem of emeralds and diamonds, and ornaments of emeralds and diamonds to correspond. From the ribbon of the Most Noble Order of the Garter was suspended a most splendid George, set in brilliants; the ribbon itself was confined on the left shoulder by a diamond clasp. The queen also wore the garter as an armlet, the motto being formed of diamonds. The infant prince had a robe and mantle of Honiton lace over white satin, with a cap to correspond. The Princess Royal, the Princess Alice, and the Princess Helena, wore dresses of white watered silk with satin stripe, trimmed with white satin ribbon and silver fringe; the silk woven at Spitalfields. The dress of her Royal Highness the Duchess of Kent was of the richest white watered silk, of English manufacture, trimmed with blonde, having diamond ornaments down the front, and the stomacher adorned with brilliants. Her royal highness's head-dress was formed of feathers, blonde lappets, and pearl and diamond ornaments. The necklace and earrings were diamonds. His Royal Highness Prince Albert wore a field-marshal's uniform, with the collars of the Orders of the Garter and the Black Eagle (of Prussia), with four stars set in diamonds of the Garter, the Thistle, St. Patrick, and the Bath, and the ensigns of the Golden Fleece.

Her majesty was conducted by the lord steward and the lord chamberlain, at eight o’clock, to a state banquet in the picture-gallery, accompanied by the royal family, the foreign ministers, the cabinet ministers, and the other ladies and gentlemen who attended the ceremonial. “The christening cake” was placed in the middle of the dinner-table on the plateau of the magnificent service of gold plate. The top of the cake represented an octangular fountain, ornamented with a number of small vases, filled with miniature bouquets. The fountain rested on a circular plinth, containing a number of painted vignettes, set in silver frames.

After the toast of “The Queen and the Prince,” her majesty rose from the banquet, and proceeded to the White Drawing-room, accompanied by her Royal Highness the Duchess of Gloucester, her Royal Highness the Duchess of Kent, her Royal Highness the Duchess of Cambridge, her Royal Highness Princess Mary of Cambridge, and the other ladies present. Soon after which, his Royal Highness Prince Albert, his Royal Highness the Prince of Prussia, his Royal Highness Prince George of Cambridge, his Serene Highness Prince Edward of Saxe-Weimar, his Serene Highness the Prince of Leiningen, and the other guests, proceeded to the Music-room, when the doors of the White Drawing-room were opened, and the queen received an evening party.

The name of Patrick was given to the infant prince in compliment to the people of Ireland, and was a graceful sequel to her majesty’s confiding visit to that country the previous autumn.

Arrival of the Nepaulese Ambassador.—This illustrious person arrived on the 25th of May, accompanied by his two brothers, and a brilliant suite. He brought presents to her majesty, worth a quarter of a million sterling. On his arrival at the Custom House, the officials attempted to search his luggage, but he intimated that by their so doing he would lose caste, and in case of any attempt of the kind, he would not persevere in the object of his visit, but return by the next steamer. His religious scruples were respected, but to make himself certain, he placed a man with a drawn sword constantly beside his baggage. The ambassador was feted by the great, and his liberality in dispensing presents of precious stones did not detract from his popularity. He was received at court most graciously, and returned to his country greatly impressed with British power, and remained a friend and an ally of England.

Death of his Royal Highness the Duke of Cambridge.—On the 8th of July, this popular prince died at Cambridge House. He was the seventh son of George the Third. His remains were interred at Kew Church, with many demonstrations of sorrow on the part of the people. Her majesty was much attached to her royal relative, and was much afflicted by his death.

Visit of her Majesty to the King of the Belgians.—On the 21st of August, lier majesty, the prince, and four of the royal children, embarked at Osborne for Ostend, in tempestuous weather. Her majesty being “a good sailor,” was seldom deterred from her voyages by bad weather. The royal visitors only remained a few days, and returned to Osborne. The visit had no political significance, but was dictated simply by the affection of the royal pair for their uncle, the Belgian king.

Her Majesty’s Visit to Scotland.—On the 27th of August, the court paid its autumnal visit to the north. A visit was paid, _en route_, to Castle Howard, the seat of the Earl of Carlisle. At Newcastle-upon-Tyne the royal party was received by Earl Grey, and the corporations of Newcastle and Gateshead made many demonstrations of loyalty, which were gratifying to her majesty. As on the previous year her majesty visited Dublin, Cork, Belfast, and Glasgow, it was deemed politic and respectful to pay a visit to Edinburgh, of such a nature as to show the inhabitants of the Scottish metropolis her interest in it.

The citizens of “the modern Athens” vied with those of the other great cities of her majesty’s dominions in enthusiastic loyalty. The queen took up her residence in Holyrood House, which greatly gratified the national feeling of the Scotch. Immediately on her arrival, she entered the apartments which were once occupied by the beautiful and unfortunate Mary, Queen of Scots. Her majesty regarded the historical objects there presented to her, with melancholy interest. The following day the royal family ascended to the top of Arthur’s Seat, where it was said her majesty was intensely excited by the magnificence of the scenery. The following day, Prince Albert laid the foundation-stone of the Scottish National Gallery. The remaining portion of the day was spent in visiting remarkable persons and places. On the day following, her majesty and suite proceeded to Balmoral. On the 10th of October the court left their Scottish retreat, and returned to Edinburgh, remaining at Holyrood Palace for the night, and the next day proceeded to England. The first tidings which met her majesty on her return to Buckingham Palace were, of the death of the Queen of the Belgians, her august aunt, by marriage.

[Illustration: 796.jpg HOLYROOD PALACE]

The Queen and the Papal Aggression.—During the winter, while the court was at Windsor, the papal aggression disturbed the country. It was known that her majesty felt great indignation, and her people determined to regard the act of the court of Rome as an insult to her as well as to the nation. The corporations of London and Oxford, and the University of Oxford, have the privilege of demanding audience of the crown; they were all received by the queen in a manner to mark her sense of the indignity offered to her by the Roman court.

Assault on the Queen.—On the 27th of June, her majesty having visited her uncle at Cambridge House, as she re-entered her carriage, a man rushed forward and struck her on the face with a cane; the blow drew blood, and caused a considerable swelling. A poor man present instantly struck the ruffian in the face in return; and other bystanders seized him, and handled him very roughly. He was taken into regular custody by the police, and interrogated at the Home Office. He had been an officer in the army. He was sentenced to seven years’ transportation. His sanity was doubted, as his manners were incoherent.

DEATHS OF REMARKABLE PERSONS.

During the year a number of persons died remarkable in every department of fame. Some of these have come in review under other sections, as in the case of Sir Robert Peel and the Duke of Cambridge. The following persons of note may be

referred to in this section, as all that our space allows.

January 7th, in London, Lieutenant Waghorn, R. N. This remarkable man had devoted a very considerable portion of his life to the establishment of steam communication between this country and India. He explored several overland routes to India with success. In these enterprises he expended his fortune, and the government refused all suitable acknowledgment for the great services he had rendered to the state and to commerce, except a paltry pension, unworthy of the donors.

This year was remarkable for loss to the naval service by the death of distinguished officers. Only two days after the decease of the gallant and indefatigable Waghorn, Admiral Schombergh died, an officer who had seen extraordinary variety of service, and had carried into effect several improvements in victualling the navy.

On the 16th, Commander Le Vesconte, more popular, however, as a consul than distinguished as a commander.

February 14th, Rear-Admiral Sir Gordon Bremer, after long and arduous services to his country.

It would be a task beyond our limits to notice the individual history and exploits of the heroic men in the naval service who died during this year. Among the most memorable of these were the Hon. Vice-Admiral Bouverie, and Vice-Admiral Sir Charles Richardson, K. C. B.

Among many notable military officers who died, the following deserve especial notice:—

February 23rd, Captain Maurice O’Connel, nephew of the late Baron O’Connel, chamberlain to the Emperor of Austria. This officer had no rank in the British service.

March 7th, the Hon. Sir Hercules Robert Pakenham, lieut.-general. This officer, well-known as the brother-inlaw, and one of the generals of the great Duke of Wellington, had seen long and trying services, and was always distinguished by his great gallantry.

The month of August closed with the announcement of the death of Major-General Sir Alexander Cameron, G.C.B. This heroic man had served in nearly every country of Europe, where the standard of England floated over the field of battle. At Corunna he, with Sir John Hope, carried to a boat the last wounded Highlander, that could be descried straggling near the scene of action. Marshal Soult and his staff observed this act of heroism, and warmly expressed their admiration.

The list of literary and scientific men who passed to the great account, was a longer and more remarkable one than that of England’s deceased warriors.

In January, Mr. Charles Robert Forrester, whose writings were very popular, under the _nomme de plume_ of “Alfred Crowquill.”

On the 26th, Francis Jeffrey, one of the judges of the Court of Session in Scotland. He was the colleague of the Rev. Sydney Smith and Henry Brougham in founding the

Edinburgh Review, and celebrated in every country for his critical contributions to that periodical.

February 2nd, Rev. Edward Bickersteth, rector of Watton, Hertfordshire. His place amongst literary men was won by his religious writings, which were exceedingly popular and useful. This eminent clergyman shed great lustre on the church by his devoted religious life, and gained for himself great renown in the department of religious literature.

On the 17th, the Rev. T. S. Grimshaw, A.M., vicar of Biddenham. This renowned clergyman distinguished himself in the department of literature in which the Rev. Mr. Bickersteth gained so much fame. Mr. Grimshaw wrote a “Life of the Rev. Leigh Richmond” (author of “The Dairyman’s Daughter”), the “Life and Works of William Cowper,” &c.

On the 23rd, Sir William Allan, R.A, limner to Her Majesty for Scotland, president of the Royal Scottish Academy. This artist was original and indefatigable, but could obtain no patronage out of his own country, where his treatment of Scottish subjects won for him popularity.

On the 2nd of March, John Peter Deering, Esq., a celebrated architect. He designed Exeter Hall, London, the University Club-house, and the best portions of University College, London.

April 7th, Canon Bowles, of Salisbury, eminent as a Latin and English poet. His early sonnets were highly intellectual and artistic in their versification. His memoirs of the poet Pope, and of other distinguished persons, were extremely popular, but did not obtain the lasting fame of his poetry.

On the 17th, in New York, Thom, the self-taught and celebrated Scottish sculptor. His “Tarn O’Shanter,” and “Old Mortality,” obtained for him a wide-spread fame in Great Britain and the United States of America.

On the 23rd, at Rydal Mount, near Ambleside, William Wordsworth, D.C.L., the poet, whose works have had a universal circulation. His chief productions are “The Evening Walk,” “The Excursion,” and “The White Doe of Rylstone.” He also wrote many deeply touching minor poems.

May 24th, Miss Jane Porter, authoress of many works, which have been translated into various languages. The most popular of these were “Thaddeus of Warsaw,” and the “Scottish Chiefs.” Sir Walter Scott is represented as having admitted to George IV. that his idea of the “Waverley Novels” was suggested by the perusal of the “Scottish Chiefs.” If this currently believed anecdote be correct, Miss Porter was the founder of the school of modern historical novels, and not Sir Walter Scott.

On the 27th, Mr. Richard J. Wyatt, known as a sculptor of great merit throughout Europe. His death took place at Rome.

July 4th, at Barham, Suffolk, Canon Kirby, rector of that parish. He was a distinguished naturalist, and the author of various eminent works, especially in the department of entomology. His _Monographic, Apium Anglio_, his description of the

Fauna Boreali Americana, and his “Bridgewater Treatise,” on the “history, habits, and instincts of animals,” have made him a world-wide tame.

July 12th, Mr. Robert Stephenson, civil engineer, who had obtained an honourable notoriety for his achievements in his profession.

August 19th, Sir Martin Shee, president of the Royal Academy. He was not only celebrated as a painter, but was an accomplished scholar and author.

On the 30th of October, one of the most benevolent and amiable ladies in the world of letter’s, Mrs. Bell Martin, died at New York. This gifted lady was born at Ballinahinch Castle, in Galway. Her father, Mr. Thomas Barnewell Martin, M.P. for Galway, died in 1847. Miss Martin married a Mr. Bell, who assumed the name of Martin. The estates of Mr. Martin, of Ballinahinch, were in area the largest in the United Kingdom, and Miss Martin was commonly styled “the Irish heiress,” from her very large patrimony. The failure of the potato crops, and the ensuing famine, which afflicted Ireland for several years, ruined Miss Martin’s inheritance. The estates were encumbered, and as landed property in Ireland during “the famine years” brought but little in the market, the Ballinahinch properly was thrown into the Encumbered Estates Court, and there were no assets for “the heiress,” She left the extensive region over which she had almost reigned as a princess, without any longer having a claim to a single acre. She was in deep distress, and, to the dishonour of the gentry of Ireland, she found no friends in her hour of trial. She took up her residence on the continent, and supported herself by her pen: she was the authoress of “St. Etienne, a tale of the Vendean war,” “Julia Howard,” and some minor works. Her contributions to the _Encyclopédie des Gens de Monde_ were numerous, and gained her high reputation. She eventually sought New York as the sphere of her enterprise. During the voyage she was prematurely confined, and died in consequence, soon after her arrival at the Union Place Hotel. It was generally believed in that city, and in the land of her birth, that uneasiness as to her temporal prospects aggravated, and perhaps caused the illness, which proved fatal to this highly gifted lady.

November 15th, Joseph Hullmandle, whose inventions and improvements connected with lithography, and tinted lithographic printing, contributed so much to the perfection of that branch of artistic skill.

November 26th, Lord Nugent, a celebrated politician, poet, and man of letters. The title was Irish, and became extinct with him.

December 8th, Mr. William Sturgeon, celebrated for his scientific learning, his voluminous productions on electricity, and various branches of natural science. He had been originally a shoemaker, afterwards a soldier, subsequently scientific lecturer at Addiscombe College, and in his old age suffered much from poverty. Lord John Russell obtained him a grant of £50 per year from the Civil List, so paltry a recognition of such great merits and services as is exceedingly dishonouring to the country.

Several remarkable persons were removed by death from various walks of life unnecessary to classify. The following were the most remarkable instances:—

On the 24th of January, Sir Felix Booth, the celebrated brewer, a man of large wealth, and a patron of science. He fitted out, at an expense of £17,000, the expedition in search of the North-West passage, commanded by Captain Ross, who commemorated the name of his munificent patron by giving to the northern termination of the American continent the name of Felix Boothia.

On the 6th of March, Sir James Gibson Craig, Bart., who had distinguished himself as a leader of the Scottish Whigs for many years.

July the 8th, at Cambridge House, Piccadilly, H.R.H. Prince Adolphus Frederick, of Brunswick Lunenburgh, Duke of Cambridge, youngest surviving son of George III. He was a very benevolent prince, liberal in politics, patriotic in feeling, and much beloved by the country.

July 20th, Sir Robert Peel, Bart., the statesman and parliamentary leader. Such ample notice has been taken of his life and death, on former pages, that it is not necessary more particularly to refer to it in this place.

August the 7th, Louis Philippe, the exiled King of the French, aged 77 years. Few princes experienced so many and such great vicissitudes of fortune. He died at Claremont, in Surrey. When in his power the most obsequious homage was paid to him by the court and the citizens of London; in his exile, he was allowed to sink almost unnoticed into obscurity and death. His faithlessness to political engagements, his avarice, and want of principle generally, had created a universal obloquy round his name.

CHAPTER LXIII.

{VICTORIA. 1851}

General Condition of Great Britain: Agitation against “the Papal Aggression,” and strong national feeling against the Pope and the Church of Rome; Efforts of the “Protectionists,” and hostility of the people to that party..... Parliamentary Conflicts: Resignation of the Russell Ministry, and its Resumption of Power..... Exhibition of the Industry of all Nations..... The Census..... General Condition of Ireland..... The Court..... Colonial Affairs: War in South Africa; Discovery of Gold in California; Hostility of the Arabs near Aden..... Foreign Affairs: European Relations..... Outrage upon an English gentleman by an Austrian officer in Florence..... Deaths of Eminent Persons in 1851.

{A.D. 1851}

The year 1851 opened more auspiciously upon England than several preceding years. There was neither pestilence nor famine in Great Britain or Ireland. No commercial panic smote the prosperity of the country. Crime was not more than usually prevalent, and was rather on the decrease. The royal family were in health, and their happiness was a subject of universal care, as their persons were the objects of

devoted loyalty. No sovereign in the world held so high a place in the affections of her people, or presided over dominions on the whole so united and prosperous.

The great home subject of interest was “the papal aggression,” referred to in a former chapter. Nearly all classes of Englishmen were indignant at the terms in which the pope decreed the new arrangements for the episcopal government of his church in England. There were many, especially among the dissenters, who considered that the true policy to pursue on the part of the English people was to view the whole affair with contempt, but even these were angry at the haughty contumely with which the pope’s bulls and rescripts treated the queen, government, and people of England not of the Roman Catholic communion. Mr. Roebuck was especially the champion of the pope and the new hierarchy, asserting the right of Romish hierarchs to assume territorial titles here, as they did in the United States. Lord John Russell was the champion of the anti-aggression movement, and his pen and tongue were animated by a peculiar fervour in the controversy. The dissenters and many churchmen doubted his lordship’s sincerity, believing that his zeal was simulated, and that he cared more for the service rendered to his government by raising a politico-religious cry at a critical period of his parliamentary ascendancy, than he did for protecting the rights of the crown, or the honour of Protestantism, against such invasions of either as the papal procedure had initiated. Whatever might have been the case in this respect, the agitation led by his lordship against the papal aggression was the chief means of carrying him safely through the session, in which the parliamentary tactics of his party and of his government were without consistency or cleverness, and the financial management of his chancellor of the exchequer as clumsy in detail, and what might be called manipulation, as destitute of invention, originality, and foresight.

When parliament was opened on the 4th of February, by her majesty in person, the public anti-popery demonstrations were very decided, and an outburst of loyalty came from all classes, such as only could arise from a thoroughly excited state of the public mind. It was known that Lord John Russell was to bring in a bill making it penal for the Roman Catholic hierarchy to assume territorial ecclesiastical titles, and this gave to the people an extraordinary interest in the progress of her majesty in state to the House of Lords. From her palace at Pimlico to her palace in Whitehall vast crowds collected, who rent the air with tumultuous and excited cheers and exclamations of loyalty. On no occasion of a royal progress were the assembled multitudes greater, and the peculiar excitement of their voices and deportment was such as no great festal occasion evokes. The royal speech referred to the cause of this excitement, and when her majesty assured the assembled senators that she was determined to preserve “the rights of her crown, and the independence of the nation,” her elocution was at once so precise, emphatic, and animated, as to cause an unusual sensation among her hearers; and when the passage was read by the general public, accompanied by the fervent panegyrics of the press, the public zeal against the papal brief was, if possible, intensified.

The general conduct of the Roman Catholic body, hierarchy, and press, was provocative of popular anger, and calculated to create an illiberal feeling towards

Roman Catholics. Various pretensions were asserted in a highhanded manner by the Roman Catholic bishops in their epistolary communications; and their literary organs spared the Protestants of England no bitterness of invective, to which the most exasperating polemics could give expression.

The public irritation on this controversy was kept up during the whole year, for the pretensions of the Romish hierarchy were not moderated, and in Ireland the chief bishops of the Roman Catholic church openly derided and defied the power of the government and people of England to put any law against their assumptions into practical effect. It is probable that these magnates had good information that Lord John and his government merely intended to carry a bill which might be held _in terrorem_—a mode of legislating against the church of Rome, which an experienced politician must have known was futile.

The bill brought into parliament by Lord John, to vindicate the rights of his royal mistress and the independence of England, was called “the Ecclesiastical Titles Bill,” and may be described in a single sentence as providing penalties, in the shape of a moderate fine of £100, against every Romish ecclesiastic assuming a territorial title belonging to the Protestant hierarchy. The Roman Catholic members of the commons opposed it with a vituperative eloquence, neither creditable to their religion, country, nor the especial cause of their advocacy. The whig ministry, and their supporters on both sides of the house, justified the bill on narrow and inconsistent grounds. The Protestant abettors of “the aggression” treated the hubbub raised as unworthy the greatness of England—the pope being a poor prince of very little power. Disraeli, with even more than his usual ability, supported the measure of the government, urging that the pope had, it was true, no formidable military force, but he had an army of a million of priests, and still greater numbers of persons belonging to various religious orders, the members of which were wholly devoted—mind, body, and estate—to his behests. This reasoning produced considerable effect on the house, and destroyed the effect of Mr. Roebuck’s arguments for allowing the Roman Catholic religion to develop itself in its own way. The bill met with so much opposition in its later stages from Sir James Graham and the Peelite party, that its progress was somewhat obstructed; but the vehement demands out of doors for its enactment, lowered the tone of the parliamentary opposition to it, and it was carried ultimately by a very large majority. It was introduced, by Lord John Russell, as early as the 7th of February. In consequence of the opposition it encountered, the cabinet divested it of several of the more stringent clauses, and on the 7th of March Sir George Grey reintroduced the bill, after a temporary absence from office of the government. It was not until the close of July that the bill received the royal assent.

Several cases were brought into courts of justice throughout the year, which kept up the irritation thus excited. Among these was the case of Miss Talbot, a Roman Catholic lady under the guardianship of the Earl of Shrewsbury, a Roman Catholic peer. The lady had a fortune of £80,000. She was advised by her guardians to enter a nunnery, and was placed there to pass through the preliminary stages before finally taking the veil. In that case, the whole of the vast property she possessed would be made over to the Roman Catholic church. The Berkeley family brought the matter

into court, and such an exposure was made of the bigotry of Lord Shrewsbury, and the schemes set on foot to deprive the young lady of her property in favour of the church, as exasperated the already intensely excited popular mind. The young lady married Lord Howard, son of the Duke of Norfolk, and so settled the contest, at the same time disproving the allegations and oaths of the ecclesiastical party, who sought to victimize her, that she was about to take the veil in the result of her own importunity for permission so to do.

The public indignation against the Church of Rome was much stimulated by a remarkable law case, Métairie _versus_ Wiseman and others. The co-defendants with the cardinal were several Roman Catholic priests, and some laymen known as much devoted to sacerdotal influence. The plaintiff was one Julie Métairie, next of kin to a deceased Roman Catholic gentleman, a native of France, whom it was alleged, when in a state of mental incapacity, was induced by a priest named Holdstock to make a testament of his property in favour of the Church of Rome, and of certain charities favoured by that church. It was given in evidence that the man had been a sceptic nearly all his life, hated priests, and was especially prejudiced against the peculiar disposition of his property, which the priests alleged that he had actually made upon his death-bed. A Roman Catholic physician, one Gasquet, had called in the priest. It appeared on the trial that no will, or other document, disposing of his property, could be produced by Cardinal Wiseman, or the priests his co-defendants, in the handwriting of the deceased, or of his attorney. A document, however, was drawn up by a Roman Catholic barrister, at the confessor’s request; and, according to the affidavits, the dying man was held up in the bed by the priest, while the latter took hold of the hand of the expiring man, and with it signed a deed, conveying £7,000 to certain trustees for Roman Catholic uses. Cooke, the barrister, by whom the deed was drawn up, prepared a power of attorney, by which the property was placed in his hands upon the decease of M. Carrée (the name of the man thus entrapped). This paper also the dying man was made to sign, but he intimated his desire to retain the papers which he signed, but was not allowed. One of the allegations made at the trial which most prejudiced the public was, that the priest who effected the trick did not again visit the dying man, who was permitted to die unabsolved, unanointed, without any of the “consolations” which Roman Catholics prize so much.

The plaintiff, on behalf of himself and other relatives of the deceased, filed a bill in chancery, demanding judgment upon the invalidity of the deeds by which M. Carrée’s property was wrested from his relatives, and placed in the hands of the priests. After nine days’ argument the defendants paid the money into court. The matter was not again argued, as the defendants consented to pay £4,000 out of the £7,000 over to the relatives not to proceed. This was accepted to avert any uncertainty in the issue dependant upon doubtful points of law, and to avoid exhausting the property by litigation. The public expected that the priests, in order to the vindication of their own proceedings in the case, would have promoted the investigation, and have, in case of a decision in their favour, acted generously towards the relatives of the alleged legatee.

Various cases in which priestly pretension and intolerance were rumoured, kept alive the feeling created by the trials referred to; so that during the whole year manifestations of popular resentment towards the Roman Catholic Church, and especially its ecclesiastics, were put forth in almost every part of Great Britain. When the 5th of November arrived, the day upon which the detection of Guy Faux's attempt to blow up the parliament usually receives a popular celebration, there was an outburst of patriotic hostility to the Church of Rome, which the magistrates in London and the great cities of the provinces in vain endeavoured to prevent or moderate. Cardinal Wiseman and the Pope were carried about the streets in effigy, and the figures by which they were ludicrously caricatured, were burnt amidst the acclamations of vast crowds, not always confined to the lower orders.

Various events in Ireland, of violence offered to clergymen and scripture readers, and assassinations of gentlemen whose protestant zeal was prominent, aided the circumstances which in England kept the public exasperation against popery at so high a pitch.

Incidents of persecution abroad, not materially differing from common occurrences, and such as happen without particular notice by the English people at other periods, were related and commented upon by the English press in terms of the bitterest reproach to the Roman Catholic religion, and its abettors. On the whole, no subject occupied the minds of the inhabitants of the United Kingdom so constantly throughout the year 1851, as that of the aggressive acts and spirit of the papal court and its ultramontane supporters.

The public mind was also much agitated by the question of "Protection of Industry." A powerful party, consisting chiefly of the landlords, clergy, shipping interest, farmers, and certain sections of persons who had profited by "protection duties," were determined, if possible, to revoke the decision of the legislature in favour of a free trade in corn, and to reverse the policy of Sir Robert Peel, of relaxing and finally removing all differential duties and taxes, imposed otherwise than for revenue, upon foreign commodities. The leaders of this reactionary party were very eloquent men—the Earl of Derby, and Benjamin Disraeli. Both these gifted persons have since been repeatedly in power, and, while evidently as hostile to a free-trade policy in office as well as when out of office, yet they affected in their parliamentary orations to be on the side of the popular theory of free trade, and often made speeches so glaringly inconsistent with those previously made by them as to damage the reputation of public men in the national esteem. Presuming upon the ignorance, or forgetfulness, of the population at large, the peer and the commoner have frequently spoken as though they had been the invariable champions of freedom of commerce, and of civil and religious liberty. In 1851 they were the persistent and acrimonious opponents of freedom, religious, political, and commercial, and by their eloquence stimulated those who sympathised with them, and incensed those who believed that a great economical victory had been accomplished by the free-trade legislation of Sir Robert Peel, which was irreversible. Those who considered that the "Derby-Disraeli party" only used their anti-free-trade agitations to accomplish a mere party purpose, to regain office, and check the general progress of free institutions

and reform, were exasperated at the political charlatanism which they considered to be thus displayed, so that the public lost temper with the party, and was disposed even to violent manifestations of its hostility. A remarkable instance of this occurred at Tarnworth, previously the seat of the lately deceased parliamentary champion of the repeal of the corn-laws, Sir Robert Peel. The landowners of North Warwickshire, and their party adherents, convened a public meeting to discuss their alleged grievances, and selected Tamworth as the place of meeting. The populace and the free-traders declared that the place chosen was not one which would naturally be appointed for such a gathering, and believed that Tamworth was named for the meeting in order to insult the memory of Sir Robert Peel, and by a display of strength affront the liberal party, in matters of commerce, on the spot where the ashes of their chief reposed. The Protectionists would not yield to any suggestions concerning the bad taste displayed as to the moral battle-ground they had chosen. They were warned that it would become a material battle-field as well, but the warnings were rejected. The ringleaders in the great agricultural demonstration, Lord Lewisham, and Messrs. Newdegate and Spooner, members of parliament, marshalled their hosts, and it was intended to make such a demonstration of strength on behalf of the agricultural interest as would awe the government, and impress the country with an idea of the growing power of the party. The populace, however, attacked the meeting—a severe conflict ensued; the Protectionists were driven from the town. The vehicles of the agricultural party were broken or thrown over Tamworth Bridge; many persons were dangerously wounded, especially among the Protectionists; and the issue was a fresh demonstration of the unpopularity of protectionist doctrines, and of their chief advocates. The moral effect of the incident throughout the country was adverse to the party who promoted the assemblage. The riot occurred on the 28th of May, and the strong popular hostility evinced, had its influence in parliament in emboldening the hostile eloquence of the free-traders, and damped the ardour of the protectionist gatherings in the coming autumn.

Throughout the parliamentary session the agricultural interest made its complaints incessantly heard. The leaders declared that the landed gentry and farmers were rapidly proceeding to ruin in consequence of free-trade, and their vaticinations of frightful calamities to the nation were singular displays of extraordinary hypocrisy, or delusions. Amongst the most doleful prophets and lugubrious friends of agriculture was Benjamin Disraeli. He was also the most acrimonious of advocates, while defending claims ignored by the nation as unjust, denounced by political economists as injurious; and, obviously in the exclusive and selfish interests of a class, he denounced the advocates of free commerce as without honour, honesty, or patriotism, sparing his opponents neither as individuals nor as members of a party. The moral effect of this unprincipled vituperation upon the country was injurious to the party it was intended to serve, and lessened the confidence which the people had been accustomed to repose in the integrity of public men. Early in the session Mr. Disraeli introduced a resolution on agricultural distress. An opening, almost an invitation, for him to do so was given by Lord John Russell, who, with his usual mal-adroit attempts to conciliate his opponents, inserted in the queen’s speech an expression of regret for the distress borne by the agricultural interest. Disraeli

accordingly proposed, “That the severe distress which continues to exist among the owners and occupiers of land, lamented in her majesty’s speech, renders it the duty of the government to introduce, without delay, measures for their effectual relief.” In his speech he advocated the remission of taxes from the landed interest, as the alternative to protection, attributing the distress complained of to the repeal of the corn laws. The chancellor of the exchequer, in a matter of fact speech, refuted Mr. Disraeli’s allegations that land was taxed disproportionately to other property, or that the repeal of the corn laws had failed of its object. Sir James Graham, in a clever _ad captandum_ speech, called upon the house and the country to beware that the real object of Mr. Disraeli and his party was to re-impose the corn laws. Mr. Labouchere argued upon the same view of the policy of Mr. Disraeli’s party, which Sir James Graham had exposed. Mr. Cardwell and Mr. Cobden in very eloquent terms adopted the same strain. The latter gentleman said that there could be no doubt of the meaning of Mr. Disraeli’s motion, for whether a duty on corn, or compensation for the loss of it, were the object immediately aimed at, the result would be the same—the advantage of a class at the expense of the country. He threatened the renewal of a national agitation against the exclusive selfish policy of the landlord class. Lord John Russell declared that he considered Mr. Disraeli’s motion as fraught with more dangerous consequences than any motion which in the course of his public life he ever recollected. Mr. Disraeli’s resolution was negatived by a majority of only fourteen.

At this juncture in the agricultural agitation political affairs in parliament assumed peculiar and various complications. On the 20th of February Mr. Locke King, the member for East Surrey, asked for leave to bring in a bill to make the franchise in counties, in England and Wales, the same as in boroughs—the occupation of a tenement of the value of £10 a year. Lord John Russell refused the assent of his government, pledging himself to bring in a bill to improve the representation, a promise which through many succeeding years his lordship was in no hurry to fulfil. The motion of Mr. King was carried against the government by a majority in the proportion of nearly two to one. It was generally felt that this vote virtually sealed the fate of the government. The agricultural party were therefore emboldened to renew their previous tactics on the discussion of the budget, and to press for the especial exemption of their class from a large proportion of the general taxation. The budget had been previously introduced (on the 17th), in a committee of ways and means. The income had exceeded the expenditure by more than two and a half millions sterling. This fact left an opening for the reduction of taxation, which the agriculturists had already claimed in their own peculiar interest. They were prepared upon the 21st of February, upon the order for going into committee on ways and means, to make propositions, which, if carried, would appropriate to themselves the two millions and a half of surplus as effectually as if the money were taken and divided among them. Lord John Russell requested the postponement of the order of the day to the 24th, intimating that he was moved to desire this postponement for especial reasons. It was well known that his lordship felt himself incapable of carrying on the government against the attacks of the Protectionists, on one hand, and the parliamentary reformers on the other. On the 24th Lord John informed the house of this fact, and

declared that he spoke “as the organ of a government which no longer existed.” Lord Stanley had been invited by her majesty to form a government, but did not succeed, and she again called upon Lord John to construct a new cabinet. His lordship informed the house that he had undertaken the task, and requested an adjournment. On the 28th the house resumed its sitting. It then appeared that Lord Aberdeen had been summoned by her majesty to form a ministry, but his lordship, Sir James Graham, and the Peel party generally, refused to co-operate with Lord John in the ecclesiastical titles bill, the Peelite section of both houses, especially its leader, Lord Aberdeen, being committed to the new ecclesiastical party called Puseyites, who sympathised with the efforts of the Roman Catholics to restore the grandeur of their hierarchy. Lord Aberdeen dared not face the popular feeling on that question. Finally, the Duke of Wellington’s advice having been sought by his royal mistress, he advised her, as the best solution of the difficulty, to confide to Lord John Russell the reconstruction of his ministry. The protectionist party determined to oppose the government on every measure which afforded a chance, by small defeat, of weakening its influence over the house and the country. When the ecclesiastical titles bill again came before the house, Sir F. Thesiger moved three amendments, the object of which was to make it more effective. This the party of Sir Frederic knew well neither Lord John, his ministry, nor the Whigs generally, really desired. By this means the true whig view of the question was forced out. Lord John resisted the amendments. The house was indignant. His lordship confided in the votes of the Roman Catholic members, but they, anxious to humiliate him, walked out of the house in a body. The amendments were carried amidst the derisive cheers of the Protectionists. Large majorities in every case defeated the half measures of Lord John. So little did he appear to comprehend the spirit of the house and the country, that instead of bowing to their decision, or resigning his office, he attempted on the third reading of the bill to reverse the votes carried by such overwhelming majorities: he failed still more signally than before. He stood in a false position to the house, the country, and the Roman Catholic party. He had brought in, with vast pretensions to a zealous Protestantism on his lips, a measure which was never intended by him, or his party, to answer the purpose proclaimed. His opponents took it out of his hands with skill and moderation, and made it much more practicable for its ostensible purpose, although still short of a sound and efficient bill to restrain the hierarchy of Rome from the assumptions it desired.

The Protectionists found another occasion to damage the government during the discussion of the budget. On the 5th of April the chancellor of the exchequer made his second financial statement for the year, which was much more favourably received than the former one. He, however, retracted some of the boons conceded in the first budget to the agricultural interest. This gave satisfaction to the majority, but exasperated the protectionist party, which attempted to defeat the government on the question of the income tax, by direct resolutions moved by Mr. Herries; a considerable majority defeated the movement. On the bill going into committee Mr. Hume, then in the zenith of his influence, moved an amendment to the effect that the tax should be maintained for one year only. The honourable member was an extreme Liberal in politics, but his support of the free-trade party was neither very warm nor

very intelligent. His amendment was energetically opposed by the government, and by the free-trade leaders, especially Mr. Cobden and Mr. Sidney Herbert. The Protectionists rallied round Mr. Hume, and the little circle of radical members who, like Mr. Hume, were suspected of being heterodox to the free-trade doctrines. The temporary coalition was led by Mr. Disraeli, always in the van when a political or parliamentary trick was the hope of his party. The government was defeated, and acquiesced in the motion. This success greatly encouraged the Protectionists, who made a direct assault upon the government, on the 8th of May, when Mr. Cayley proposed the abolition of the malt tax, but was beaten by a large majority.

On the 17th of June Mr. Bass moved that half the malt tax should be repealed in October, 1852. On a division the motion was rejected. Various other attempts were made on isolated subjects to support the landlord interest by the remission of taxes bearing on it. Lord Naas repeatedly defeated the government on the mode of assessing the spirit duties, but ultimately the ministry got rid of the resolutions of his lordship. In June Mr. Disraeli moved a series of resolutions on the position and prospects of the country and the policy of the government, in which he was supported by the entire strength of the tory party. The object of the resolutions was to oppose the application of the surplus revenue to the reduction of taxes, such as the window, coffee, and timber duties, until the result of a select committee on the income tax, proposed by Mr. Hume, should be known. The object of the resolutions was to preserve the surplus revenue for the reduction of taxes borne by a single class, that of the landlords, and for their exclusive benefit. It was the question of the right of peculiar advantage by the landed interest brought out in another form. Mr. Disraeli appeared to great disadvantage as a financier, political economist, and even as a party leader. His speech was factious in spirit, resting upon no sound principles of policy or economy, and altogether unworthy of the leader of a great party, and of one who aspired to a reputation for statesmanship. The chancellor of the exchequer made an unusually happy speech in reply. It was not usual for that honourable member to indulge in the witty and satirical vein which so cleverly and appropriately pervaded that particular oration. The disingenuousness and factiousness of Disraeli roused the spirit of Sir Charles, and inspired him with a sarcasm unlike his own serious and even dull tone of address. He accused Mr. Disraeli with delivering a two hours’ speech on fiscal and economical subjects, from which a single proposition could not be extracted, and concluding by trite reflections upon the necessity of maintaining public credit, couched in highflown language about the empire of the Cæsars, with its triple crown, the mines of Golconda, pillared palanquins, and other things having as little to do with the question. These poetic fancies were very pleasing, but the house would have better liked to hear arguments in support of a motion against repealing taxes. The following passage from the speech of the chancellor of the exchequer excited much mirth among the members, at the expense of the protectionist leader:—“Mr. Disraeli would not jeopardize public credit (by repealing taxes); but only six days after Mr. Hume’s motion (for continuing the income tax only one year) was carried, Mr. Cayley moved the house to remit £5,000,000 by the repeal of the malt tax. If it be wrong to jeopardize public credit, surely it was as much endangered on the 8th of May (when Mr. Cayley proposed the remission of the malt tax), as it was

on the 30th of June (when the ministers proposed to repeal duties which affected the whole community), yet on the division list in favour of Mr. Cayley's motion I find the name of Benjamin Disraeli! Can it be that there are two Benjamins in the field? One Benjamin voting for the reduction of five millions of taxes, and another Benjamin who is afraid to meddle with a surplus of £1,600,000."

The effect of this cutting and just satire upon the dishonest pretences of Mr. Disraeli in refusing the repeal of taxes to the amount of the surplus revenue, on the ground of maintaining public credit, was exceedingly striking. The house was at first convulsed with laughter, after which serious murmurs rolled along the benches to the right of the speaker's chair, and the Conservatives, in sullen and moody silence, showed their consciousness of the moral effect of this _exposé_, especially as the resolutions were lost by a very large majority. The speech of Sir Charles Wood was much quoted out of doors, and Mr. Disraeli became, for a considerable time, most unpopular throughout the country. It was much mooted among the opposition whether he should not be deposed from a leadership which his eloquence did not always serve, and which his reckless inconsistency so often damaged.

The Protectionists were unable to make any impression upon the house or the country favourable to a reversal of free trade, or the removal from the landed gentry of the taxes which they professed bore most heavily upon them.

In connection with the protectionist agitation, the navigation laws, and their repeal, held an angry prominence. The shipowners agitated the peculiar burdens on shipping almost as loudly as the landlords complained of the peculiar burdens on land. The cause of the shipowners was espoused by the landlords, and among them the Earl of Derby was the most prominent. The act of 1849, for the removal of maritime restrictions, was discussed in both houses, and the shipowners and landed interests demanded that the legislature should retrace its steps on that subject. The house, however, maintained the policy of 1849.

GENERAL PARLIAMENTARY HISTORY OF 1851.

In the foregoing notices of proceedings in parliament, reference was made to them in connection with the great subjects which agitated the country at large. Those notices necessarily abridge the relation of this section of the chapter.

Although the session was not fruitful in legislation, a considerable range of important subjects was embraced by the discussions which took place. The ministry was desirous to improve the laws, and carry some useful measures. Private members in vain sought opportunity to direct the attention of parliament to practical and useful legislation: the great agitations of the day, and mere party disputes, consumed the time of the house. The Protectionists caught at so many opportunities for prolonged debates, for the purposes of gaining some pecuniary advantage, and of worrying the ministry, that the public business was greatly impeded. The Peelites, especially in the commons, were hostile to the ecclesiastical titles bill. That small section of the house which prided itself in following the policy of Sir Robert Peel in everything, belonged, in almost every individual case, to the Puseyite party in the established church, and viewed with apparently bitter animosity the attempt of Lord John Russell to curb the

pretensions of the Romish hierarchy. Mr. Gladstone and Sir James Graham, always hostile to the religious liberties of Protestant dissenters, led the opposition to the government measure. It was obvious enough that the house and the country were resolved upon the passing of the bill, but the Peelite and Puseyite orators resisted it at every stage, with a zeal and activity which surpassed that of the Roman Catholic members. In vain the government pressed upon the house the urgency of the public business, and the number of the measures which ought to occupy attention: Puseyites and Protectionists maintained debates on every possible occasion, rendering legislative measures on a great variety of subjects impracticable.

The ministerial crisis has been already referred to, and its termination, by the announcement (on the 3rd of March) that the government had resumed office.

The defeat of the government on the motion of Mr. Locke King, for leave to bring in a bill to assimilate the elective franchise in boroughs and counties upon a ten-pound value occupation has incidentally been noticed in connection with the ministerial crisis. Mr. Locke King brought in his bill, and moved the second reading on the 2nd of April. The debate which ensued was remarkable from the circumstance that Lord John Eussell pledged himself to bring in, at the beginning of the next session, a bill to extend the franchise. This pledge, up to the close of the session of 1859, more than eight years, has never been redeemed. The excuse urged has been always the same—the pressure of public business—an excuse, the sincerity of which cannot be accepted by the most credulous friends of his lordship’s party. Mr. Disraeli declared that he desired to see the “great settlement of 1831” improved, in the sense of confirming “the proper territorial influence and power,” which he assured the house was essential to the liberties of the English nation. Mr. Disraeli desired an improvement of the Reform Bill which would consolidate the power of a class: Lord John promised a reform which would increase the power of the people. Persuaded by his lordship’s specious promises, those of Mr. Fox Maule, and other members of the government, the Liberals supported the government, and Mr. Locke King’s bill was lost by a vast majority. The speech of Mr. Bright much conduced to this result, as he showed that the ten-pound occupants, in counties, would be under the control of the landed interest, which Mr. Bright denounced as opposed to the material interests and civil and religious liberties of the people.

Mr. Henry Berkeley endeavoured to secure another measure of reform—the conducting of elections by vote by ballot. The government resisted this, and Lord John Eussell, with a tone of ridicule and acrimony, offered the motion an ostentatious opposition. The government was beaten by a majority of eighty-seven to fifty. The bill was read a first time, but Mr. Berkeley did not proceed with it, the same pretence set up by the government on Locke King’s motion soothing the reformers.

Mr. Cobden signalized himself by proposing a resolution pledging the house to arbitration in case of national differences. Mr. Cobden’s motion was in itself impracticable, his statistics partial, and his tone personal and unjust to the statesman by whom our foreign relations had been conducted. Lord Palmerston replied in one of the most happy speeches he ever delivered, vindicating himself from the implications made by Mr. Cobden. Mr. Roebuck supported Mr. Cobden, whom, and whose party,

he has so often opposed since, when their peculiar opinions were advocated in a similar manner. The motion was withdrawn, in consequence of the conviction of all parties being strongly expressed that the course proposed by Mr. Cobden was utterly impossible.

In the House of Lords a remarkable debate arose upon a proposition of the Earl of St. Germains, to make marriage with a deceased wife's sister legal. The measure was opposed by the bishops. The Bishop of Norwich made a speech of remarkable clearness and force in opposition. Lord Campbell, the lord-chief-justice, made an oration of an eccentric and illogical character; its spirit and temper were even worse than its arguments; the people of Germany and America were referred to in a manner the most insulting and unjust. The bishops and the law lords defeated the bill.

Lord Redesdale, one of the champions of Puseyism in the established church, made a motion in the peers for the revival of convocation, which was successfully opposed by the evangelical "primate of all England."

One of the subjects introduced during the session which excited most interest in the country, was the removal of Jewish disabilities. Lord John Russell produced a bill in the commons which was carried, but was thrown out in the lords. Events followed of an important nature and of historical interest. An alderman of the city of London, named Salomons, had been elected to sit in parliament for the borough of Greenwich. He determined to take his seat. He presented himself at the table of the house on the 18th of July, but refused to take the oaths "on the true faith of a Christian," the form prescribed by the rules of the house. He was then ordered by the speaker to withdraw. Mr. Salomons sat down on one of the benches of the ministerial side of the house, but the speaker insisted upon his withdrawal, upon which he returned to the bar, but under protest of his right to take his seat. Called upon, in the course of the discussion which ensued, by various members to do so, he repeatedly resumed his seat, addressed the house, and voted on divisions concerning himself. After long protracted and violent discussions, he was conducted forcibly by the sergeant-at-arms below the bar. The house, at the instance of Lord John Russell, resolved that he had not a right to sit until he took the oath of abjuration on the true faith of a Christian. Lord John at the same time intimated his intention to persevere in seeking the emancipation of Jewish citizens from all civil disabilities on account of their religion. These events in the English House of Commons attracted the attention of the Jewish community all over the world, and the reports were perused extensively abroad as well as at home.

On the 27th of May a party debate arose upon the conduct of Lord Torrington, when governor of Ceylon. Debates occurred in both houses, the object of the opponents of government being to condemn the policy of Lord Torrington, and the friends of government to uphold him. Nothing was proved against his lordship sufficient to justify the course pursued against him, but it was made plain that his appointment to the government of a colony as distracted as it was important, did not arise from the noble lord's fitness, but from his political interest; and that Earl Grey, the whig colonial minister, had performed his official duties in a way crotchety, self-sufficient, and arrogant—in the spirit of the partizan rather than of the patriot.

Various bills were passed in reference to administrative departments of the church, and of the state. A bill for the removal of Smithfield market was carried on humane and sanitary considerations, after a discreditable opposition from the corporation of London. Law reform made some progress, especially in connection with the court of chancery. There were several sharp discussions and important motions on colonial and foreign affairs, which will be more appropriately noticed when referring to those departments of the history of the year.

On the 8th of August parliament was prorogued, and the legislative history of 1851 terminated.

[Illustration: 802.jpg GREAT EXHIBITION]

EXHIBITION OF THE INDUSTRY OF ALL NATIONS.

Among the home incidents of the year none excited more general interest than “the Great Exhibition of the Industry of all Nations,” which was opened on the 1st of May. During 1850 public expectation had been intensely directed to it. The patronage of the queen, and the active assistance as well as patronage of her consort, threw a halo of respectability and popularity around the undertaking. The design was to erect a large temporary building, into which might be brought, in an honourable and peaceful rivalry, specimens of the manufacture and art of all nations. The site selected for the building was Hyde Park, near the Prince’s Gate. Mr. Paxton (afterwards Sir Joseph Paxton), gardener to the Duke of Devonshire, devised a plan for erecting the building of glass—a bold and novel scheme, which resulted in a structure elegant and useful. Mr. Fox (afterwards Sir Charles) was the principal contractor. All concerned worked with zeal and skill, and their task was brought to a satisfactory termination. The building was a parallelogram, 1,848 feet long by 408 feet wide. The distribution of the articles sent for exhibition was upon the principle of giving to each country a separate compartment in the building, with the exception that all working machinery was placed together at the north-west end. It would require a volume to describe the wonderful variety and beauty of the productions of skill and labour brought together in this Crystal Palace of industry; nothing equal to it for curious and instructive interest had ever before been realized. On the 1st of May this fairy fabric was opened with all the circumstances of pomp which royalty and multitudes of persons gathered from many nations could present. There were arrivals from almost every nation; and from Europe and America the numbers were so great that the vast area of London seemed thronged day by day, and almost night by night, with crowds. The various national physiognomies and costumes gave a picturesque effect to the streets and parks, and especially to the interior and neighbourhood of the building for the Exhibition on the opening day. Everything connected with its inauguration was auspicious, and public order was preserved in a wonderful manner; all men from all nations and peoples seemed earnest to maintain the harmony and decorum of the happy occasion. Those classes of English society which made themselves notorious for their hostility to human progress, and especially to the increase of manufactures in England, had been opposed to the project of the Exhibition; and had it not been for the ardour with which the prince, the husband of her majesty, took up the enterprise, opposition from these classes would have been

far more vigorous and virulent. All the fears of the objectors to the undertaking proved groundless, and all their vaticinations false; improvement to the national industry, and social enjoyment of England, and a happy intercourse with their brethren of many nations were the results. It was, however, a long time after the Exhibition had accomplished its good purposes, and the last fragment of its material was swept away from the site it had occupied, before the murmurs and objections of the anti-progress classes died away.

THE CENSUS.

This year was remarkable for the accurate knowledge obtained of the amount of the population, the decennial census having been taken. The importance of this subject can hardly be overrated. Population, as we are taught by an inspired instructor, is a leading element in the prosperity of a nation: “In the multitude of the people is the king’s honour; but in the want of people is the destruction of the prince.” Only in modern times have we arrived at any enumeration of the people on competent authority; the estimates of earlier periods are of comparatively little value. Amidst the scenes of carnage presented in the first thousand years of our authentic history, the natural growth of the population was constantly checked, and there were probably periods when the numbers were greater than just after the desolations produced by the Roman conquest, at which time the population of Great Britain was estimated at only 1,700,000 persons. After the desolating wars of the Roses ended with the accession of Henry VIL, in 1485, to the English throne, the numbers of the whole of the people in Great Britain were estimated as only 3,000,000. In the time of Elizabeth they reached 4.000,000, according to a calculation based upon the parish registers. Mr. Reckman, an authority on this matter, gives the following estimates:—

Years. Population. Rate of Increase.

1600..... 4,811,700 15–66

1630..... 5,600,317 16–38

1670..... 5,773,646 3–09

1700..... 6,045,608 4–70

1750..... 6,517,035 7–51

1760..... 6,479,730 7–28

1770..... 7,227,586 11–54

1780..... 7,814,827 8–12

1790..... 8,540,738 9–29

1800..... 9,187,176 7–56

From the last of these periods we have had a census every ten years; the following are the results:—

Years. Population. Rate of Increase.

1801 ..... 10,267,893 .....

1811 ..... 12,047,455 14

1821 ..... 15,180,350 18

1831 ..... 16,364,893 15

1841 ..... 18,658,372 14

1851 ..... 20,936,468 12

It will thus be seen that our people more than doubled their numbers during the first half of the present century. The population is now more than twelve times as great as it was immediately after the Roman conquest. These numbers did not increase in equal proportion over the face of the whole island. Some of the rural districts have been thinned by emigration, which had proceeded with great rapidity for some time, partly to the manufacturing districts, and partly to the colonies and to the United States of America. The agricultural districts also furnished the greater proportion of recruits for the army, an average of from thirty to forty thousand a year. The number of emigrants from the whole of Great Britain during 1842 amounted to 128,344. The great increase of population has been in our manufacturing towns, such as Birmingham, where there were only 73,670 persons in 1801, and 173,081 in 1851; Sheffield, which in 1736 contained 14,105, had increased to 88,447 in 1851; Manchester, exclusive of Salford, had only 41,032 in 1734, whereas in 1851 it had 316,213; Liverpool, in 1700, had no more than 5,145 inhabitants, in 1851 it had 375,955. Glasgow three hundred years ago contained only 4,500 inhabitants, in 1851 its numbers reached 344,986. The density of the population was found to vary in different parts of England, and Wales, from as few as eighteen persons in a square mile, to as many as 185,751 in a similar area. A very curious and interesting illustration has been furnished of the increased proximity of the inhabitants, in consequence of the increase of population, during the present century. A messenger to deliver a thousand letters, at a thousand houses of average proximity, in 1801, would have to travel two hundred and six miles; but in 1851 he could perform his work by travelling only one hundred and forty-three miles. As the people were no longer serfs of the soil, but free to rove as their interests or pleasure dictated, a wonderful readiness to change the locality of their homes had displayed itself during the first half of this century, and especially the last decade of it. In this way large additions were made to the population of certain great centres of trade. It was found that the disposition to settle in London was greatest in the Metropolitan, Southern, Eastern, and South Midland Counties. The people to the north of Nottingham, Leicester, &c., were less inclined to live in London. Their tendency, strengthened by the opportunity of finding employment, was to resort to the great manufacturing districts of Yorkshire and Lancashire. The census led incidentally to considerations connected with the general progress of Great Britain. Its material and social interests kept pace with its population. It is a law which operates with the increase of the people, that the increase of the means of supporting them augments in a superior ratio. The masses realized the advantages of progressive science and art, the variety of manufacture, division of labour, freedom of commerce, and freedom of thought. They were in possession of many luxuries as well as comforts not known even to

noble and royal persons in previous ages of our history. The 3,647,611 inhabited houses of Great Britain, from the palace of the monarch down to the humble dwelling of the cottager, presented a striking contrast to the miserable hovels of the poor, and the inconvenient magnificence of the great, in the bygone periods of Anglo-Saxon and Anglo-Norman history, and of the Plantagenets, the Tudors, and the Stuarts. Great improvements had began in the domiciles of the lower classes; in the sanitary condition of cities and towns: and in draining, lighting, and paving. The progress of the arts and manufactures in Great Britain had been then very great. Coal and iron, which lie at the base of our manufacturing industry, were appreciated, and had reached a great production. Until 1740 wood only had been used for the smelting of iron; after that year coal was applied successfully. In 1788 the produce was several thousand tons; in. 1800 it was one hundred and eighty thousand; in 1851 it reached the enormous amount of two millions and a half. Iron and steel were brought into use for the most excellent tools, as well as for the works in which they have been employed. This branch of improvement made a remarkable progress, little known beyond the circles of men of science and artizans. It has been correctly observed that the calculating machine of Mr. Babbage could not have been executed by means of the imperfect tools which were formerly in the hands of our machinists. We are indebted to the efforts made for the completion of that apparatus for some of the most beautiful tools.

The marvellous increase of our cotton, woollen, and silk manufactures, more especially, strikingly illustrate the general law of material progress with the increase of population. To give the details of these statistics would be entering upon a subject too extensive for our limits, but the reader would find them an interesting accompaniment to the population reports of 1851.

IRELAND.

The year 1851 was singularly free from agitation in Ireland; still the social condition of that country was not free from its usual elements of disturbance. The papal scheme for establishing a territorial hierarchy in England, caused in Ireland an extraordinary degree of exultation. Addresses from the altars, and through the columns of the press, testified the sacerdotal enthusiasm that the event enkindled. The opposition of Mr. Gladstone, Sir James Graham, and others—who either openly espoused Puseyism or had an inclination towards its dogmas—to the ecclesiastical titles bill greatly encouraged the priest party in Ireland. Yet the Irish and English Roman Catholic laity had little sympathy. O’Connell had often publicly declared that the aristocratic predilections of the English Roman Catholic gentry, and their prejudice against the Irish people, of all sects and parties, made them a dead weight upon the Roman Catholic cause, to which his party tact and _ad captandum_ oratory had given buoyancy. He had thoroughly indoctrinated the Irish Roman Catholic laity, and even the older clergy, with this view. The younger members of the priesthood were so thoroughly ultramontane, that they, without counteracting Mr. O’Connell’s statements and opinions on this subject, at least publicly, gave way to the wildest hopes and aspirations of papal ascendancy in England, and ultimately, through English instrumentality, in the colonies. The ecclesiastical titles bill called forth the

most malignant denunciations of Lord John Russell, politically and personally; the house of Bedford was singled out from the aristocracy of England for vehement abuse; a wild controversy raged through the land; sermons against Protestantism, remarkable for the absence of all argument such as the Roman Catholic priests of the old school prided themselves on using, and pervaded by a fierce fanaticism, were delivered throughout the country; and all reply on the part of Protestant clergymen were treated not as theological arguments, but as insults, which disturbed the public peace, and constituted a peculiar “Catholic grievance.” Many Protestants in Ireland countenanced this feeling; controversy and proselyteism, on the part of the Church of Rome, were by such Protestants held up as a proof of Roman Catholic zeal. Controversy and proselyteism on the part of the Protestant clergy were denounced as proofs of clerical imprudence, an attack on the “rights” of Roman Catholics, and a proof of some connection, open or covert, with Orangemen. This description of feeling amongst certain classes of Protestants in the higher ranks in England and Ireland was fashionable, but the honest zeal of the middle and poorer classes of Protestants restrained its manifestation. The columns of the Roman Catholic newspapers, and the sermons of the priests, during 1851, in Ireland, furnished extraordinary specimens of vindictive fanaticism.

Although public disturbances and assassinations were less common in 1851 than was usual in Ireland, there were some heartless proofs of class and religious animosity. In the month of July a singular trial took place evincing this. A gentleman named Smyth, of landed property, and considerable influence in his county, was, with one Helier, put upon his trial for the murder of his own mother, for the purpose of inheriting her property. Witnesses were called who swore to complicity, or a knowledge of complicity on the part of others, in a conspiracy, in which Mr. Blood Smyth was the moving person, for the murder of his mother. The evidence of these persons revealed a state of moral feeling, in the south of Ireland, among the peasant and low farmer class, perfectly atrocious. The result of the trial was, that the clearest proof was obtained that the deceased lady had died a natural death; that no attempt to murder her had ever been made; that the alleged criminals had really no motive for such a crime; that they were innocent, and that the accusation was the fruit of a conspiracy among dismissed servants and tenants of the accused, in order to be revenged upon him. The family of the accused were considered over zealous Protestants, and this formed an additional incitement to combine for the purpose of a legal assassination more cruel and terrible than if he had, like so many other Irish gentlemen, been shot down upon the public road. The latter terrible fate befell Mr. E. White, of Abbeleix, for asserting his right to some peat land which he had purchased. This circumstance offended the “Ribband” men, who in open day lodged a bullet in his heart, in a populous neighbourhood. The murderers were well known, but the populace sympathised with them. In the north of Ireland several gentlemen and men of humble note fell victims to the weapons of the “Ribband” assassins, under circumstances plainly indicating the complicity of the great mass of the peasantry of the Roman Catholic communion. Mr. Bateson, brother of Sir Robert Bateson, was beaten to death with bludgeons on the road near Castle Blayney. Men were arrested against whom the strongest proofs of guilt were produced, but the jury refused to

convict. The difficulty of obtaining Roman Catholic members of juries to convict in Ribband cases, even upon the clearest evidence, greatly impeded the course of justice in Ireland. Mr. Eastwood, a magistrate, and deputy-lieutenant of a county, incurred a fate similar to that of Mr. Bateson. It was generally felt by the peaceable and loyal in Ireland, and by the people of England generally, that justice was not scrupulously administered by the whig party in Ireland. Anxious to preserve their majority by the votes of the Irish Roman Catholic members, and of latitudinarian members who represented Roman Catholic constituencies, the Whigs were unwilling to do anything, however called for by equity or imperial policy, which offended the popular party in Ireland, unless a _quid pro quo_ were attainable in increased English support. The ecclesiastical titles bill, however imperfect (designedly so), secured an amount of British support which more than balanced any loss of Irish members; but in Ireland the priest party were coaxed by the Whigs, and concessions made to them unworthy the dignity of imperial administration. The whig government in Ireland was utterly unprincipled and corrupt. At the close of the year a great law case established that in a singular manner. The case is given in law reports as Birch _versus_ Somerville, Bart. Birch was a Dublin newspaper proprietor; Somerville, Bart., the Irish secretary. The action was for £7,000 “for work and labour done.” The work and labour was the support of the whig government in _The World_ newspaper, in a mode and for ends utterly disreputable. The Earl of Clarendon, Lord-lieutenant of Ireland, and Sir W. Somerville, personally prompted this Birch, whose paper had an infamous reputation. These high officers of state disposed of the public money, and it may be also their own, to bribe this Birch. The Earl of Clarendon was examined, and admitted that Birch had been in his pay for years to support law and order; and acknowledged that independent of the money given to Birch in Ireland, he had also received money in London for the same object. The moral effect of this trial was so damaging to the government of Lord Clarendon, that it lost all hold upon the support of the respectable classes in Ireland. Lord Naas subsequently brought the subject under the notice of the House of Commons, when its damaging effects upon the existence of the Russell ministry was such as would probably have led to its downfall, irrespective of all casual circumstances or internal feuds.

The census of Ireland, taken this year, revealed the following facts as compared with 1841. In the metropolitan province of Leinster, in 1841, the number of houses was 320,051; a diminution had taken place of considerably more than 40,000 houses—the number being 277,552. The reduction in the number of families was nearly the same, from 362,134 to 321,991. The population was lessened from 1,973,731 to 1,667,771. The reduction in the other provinces was even greater in proportion; so that, in all Ireland, the number of houses was decreased, within the decade, from 1,384,360 to 1,115,007; and the population from 8,175,124 to 6,515,794; a decrease of more than twenty per cent.—the total decrease being 1,659,330.

With a population of more than six millions and a half, a fertile soil, and temperate climate, it was felt that Ireland ought to become a powerful and prosperous country. Belgium, Holland, Portugal, Switzerland, all the different states of Italy, Germany, and Scandinavia, were inferior to Ireland in the number of inhabitants and in national

resources. Good government, and good conduct on the part of the people, it was generally believed, would develop the country to a condition of prosperity rivalling that of most other lands.

[Illustration: 805.jpg THE GRASS MARKET EDINBOROUGH]

THE COURT.

The incidents of the year affecting royalty were few. On the 27th of August her majesty, consort, and several of the royal children, left the marine residence at Osborne, Isle of Wight, for Balmoral, in the Scottish Highlands. The royal progress was marked by the usual manifestations of loyalty. On the 7th of October the court left Balmoral. Two accidents occurred on the railway to the train in which her majesty travelled; the first on the journey to Edinburgh, when, after leaving Forfar, the axle of a carriage-truck became heated by friction, and some delay occurred, which caused alarm at Edinburgh. It gratified the inhabitants of the Scottish capital that her majesty and suite took up their brief abode at Holyrood Palace. Between Glasgow and Edinburgh, while the train was driven at the rate of thirty miles an hour, one of the feeding pipes from the tender to the engine burst with a loud explosion; the train was obscured in steam, and came to a stand at Kirkliston, where it was obliged to remain until assistance arrived from Edinburgh. During these accidents the composure and courage of the queen struck all observers with astonishment. It had been arranged that Liverpool should be visited by the royal travellers; and a magnificent reception was prepared for them. Her majesty was not, however, favoured upon the occasion with that beautiful weather which generally smiles upon her voyages, journeys and public appearances in her great cities. One of the most gloomy and rainy days ever known at Liverpool frowned upon the loyal efforts of its inhabitants. This did not repress their enthusiasm. A vast concourse filled the streets, and made the most hearty demonstrations of welcome to their queen. From Liverpool the court proceeded to Worsley Hall, the mansion of the Earl of Ellesmere. This was probably, the most remarkable of all her majesty’s previous journeys. The queen and suite embarked at Liverpool, in barges, and proceeded by the Bridgewater Canal to Worsley. While at Worsley, only a few miles from Manchester, her majesty paid a visit to that great city. On no occasion, even in the metropolis, was so vast a multitude of persons collected to see the queen; and, probably, on no occasion was she ever welcomed in a provincial city with so prodigal an expenditure and splendid a display of loyalty. Manchester and Salford were both traversed in their great principal thoroughfares by the royal procession, attended with military pomp, and many persons of very great eminence in the nation were in her suite. The profuse expenditure, displayed in flags and decorations, attracted the notice of the royal lady so much, that she expressed her regret that the citizens of Manchester should have gone to so great an expense on her account. A large public pleasure-ground in Salford, set apart by public subscriptions for the recreation of the people, and designated Peel Park, in honour of the free-trade champion, lay in the route taken by the royal _cortège_. In that park one of the most extraordinary fights was presented to her majesty ever witnessed by a monarch—eighty thousand Sunday-school children, of all religious denominations, were assembled to see their queen. The

bringing together of such a mass of young persons, and the arrangements for placing them in a proper position to see and to be seen, was a work of anxiety and toil of which those only can form a conception who took part in it. Much of the credit of the occasion was due to the late Robert Needham, Esq., solicitor, of Manchester, who, with extraordinary toil, from the effects of which he never recovered, arranged and carried out the vast work. The writer of this history was present on the occasion, and can never forget the spectacle, which partook of the sublime and the affecting. Together with the vast host of children, dressed in holiday array, and with the fair and open countenances for which the children of Saxon Lancashire are remarkable, there were their teachers and ministers, and in the rear a vast multitude consisting of the parents and friends of these children, and of the religious congregations whose zeal and liberality provided instruction for their juvenile charge. There were fourteen tiers of galleries around the chief carriage-way of the park. These tiers were so arranged that the _cortège_, passing along the road, could see at once the whole array, and the children from every tier see the queen and her attendants. As her majesty entered the park, the whole host raised their voices and began the national anthem. For a few moments the effect was sublime; it was, however, only during the first verse. The boys of the Irish Roman Catholic schools burst the limitations of their orders, and of their positions, and raised a tumultuous shout, which was caught up in an instant by the other children, and almost as soon by the vast multitudes who filled the park. The author of these pages has witnessed many public entries of royal persons into great cities, and many, especially, in the great metropolis of these islands, but never were sounds or scenes presented to his senses so imposing and inspiring as on that occasion. The queen was evidently much affected, and the great Duke of Wellington, who was in her suite, and was an object of nearly as hearty demonstrations as even her majesty, showed emotion, and was heard to say that he had never witnessed so interesting a scene. The young members of the royal household were naturally objects of intense interest to the multitude of children, and they, by their greetings and eager expression of countenance, showed how much they felt the excitement which such a multitude of young persons was calculated to inspire in princes and princesses of their own age. Probably, when many more years have run their course, and some of these royal children shall sit on thrones, they will remember a lesson profitable to royalty—the loyal spirit of the juvenile population of Manchester, and of all that population, in the year 1851. Doubtless the same virtues which, on the part of their royal parents, commanded respect and affection, will characterise those scions of the royal house of England, who already tread with early, but no uncertain step, the path of honour and goodness in which their queenly exemplar and teacher has conducted them. The great Manchester demonstration was followed by illuminations so general and so costly that her majesty and her suite were represented as taking an interest in them, such as pyrotechnical displays did not usually excite. From Worsley the queen and a portion of her suite proceeded to Windsor.

On the 18th of November the court received, by electric telegraph, intelligence of the death of the King of Hanover, her majesty’s uncle, in the 81st year of his age. He had never been regarded as kind to her majesty when Princess Victoria; and had been

by far the most unpopular prince in the family of George III. A considerable party among the Tories, both in England and Ireland, gave rather open expression to their desire that the Duke of Cumberland (King of Hanover), rather than the rightful claimant, the Princess Victoria, should come to the throne on the decease of William IV. Great indignation was excited at the time by the supposed existence of a conspiracy to effect this object, for the success of which there could have been no hope, so thorough was the detestation of the people to the Duke of Cumberland, and so generous their recollections of the Duke of Kent, and their feeling to his only child—their rightful sovereign. Whatever might have been the feeling of her majesty on these matters, she commanded the court to go into mourning upon her uncle's decease.

COLONIAL AFFAIRS.

The Cape of Good Hope.—The earliest important events of the year connected with our colonial empire occurred in the Cape settlements. During the autumn and winter of the previous year the governor, Sir Harry Smith, suppressed all indications of rebellion, deposed the chief, Sandilia, and proclaimed his mother sutee in his stead. Sandilia, however, prowled about the English borders making incursions for plunder. Sir Harry directed a column, six hundred strong, under the command of Colonel Mackinnon, to disperse the marauders. That officer committed the error so common on the part of British commanders—he marched without flanking parties, or an advanced guard, except a party of Caffre police, who of course led him into an ambuscade, at the expense of a number of officers and men killed and wounded. This success on the part of the savages led to a general rising of the tribes, especially the brave and cruel Gaikas; the English colonists lost much property and many lives. No adequate means had been adopted either by the government or colonists to guard against the deceit common among uncivilized races. Sir Harry Smith, and the troops which he commanded, were in imminent peril at Fort Cox. By the beginning of the year 1851 the Caffres had penetrated to the very heart of the colony. Sir Harry Smith escaped from Fort Cox, at the head of a flying escort, to King William's Town, where he established his head-quarters throughout the war. On the 21st of January the first general action was fought at Fort Hare and the Fingo village of Abee. The Caffres were the assailants, and numbered about six thousand men. There were two 24–pounders in Fort Hare, and their fire drove back the aggressors, who had suffered severely during their repeated assaults. The garrison made a sortie at a moment of confusion in the Caffre ranks, caused by the havoc of the guns; the sortie was successful, but not until after a fierce conflict at close quarters. The force at Sir Harry Smith's command was totally inadequate to suppress such an insurrection, unless, indeed, by singular good fortune, and with most severe loss. The Hottentots, encouraged by the success of the Caffres, burst into sudden rebellion, and committed numerous murders upon the settlers, as well as inflicting loss upon the armed bands of loyalists, and troops, with whom constant skirmishes were maintained. The natives in the English pay, even the Cape Mounted Rifles, deserted in great numbers, and strove earnestly to organize Caffres and Hottentots for more effective war. Colonel Somerset, now promoted to the rank of major-general, succeeded in coming upon the main force of the Hottentots with two columns of British, one six hundred and the

other three hundred strong. The general committed precisely the same errors, and in the same manner, as Lord Clyde and his lieutenants in India, in the mutiny of 1857, afterwards made the English nation accustomed to expect from British officers—the stronghold of the Hottentots was so carelessly invested that they escaped, and the war, which, so far as they were concerned, might have been terminated, was consequently prolonged. In various actions which took place the Caffres and Hottentots fought well; the Fingoes, the allies of the British, fought indifferently. The English suffered from successful ambushes on the part of the enemy, and from being badly supplied with ammunition. Colonel Fordyce, who was very active, but not always successful, in command of separate columns under the orders of General Somerset, was killed, and many brave officers and men fell.

On the 31st of October a draft of a constitution for the colony, dispatched by Earl Grey, arrived at Cape Town. It was transmitted to the Cape for the approval of the legislative council, in order eventually, by the queen’s sanction, to become law. According to that document the parliament of the colony was to consist of the governor, the legislative council, and a house of assembly. The legislative council was to be elective, the members retiring by rotation at intervals of five years, until ten years had expired, when the members should hold their places in the council for ten years. The house of assembly to consist of members elected for five years. The franchise to be possessed by occupiers of tenements of the value of £25. The sessions were to be annual. The colonists received this constitution with unbounded joy, and petitioned the queen to grant this as the charter of the colony, without any reference to the legislative council then existing, in which the petition declared that the people had no confidence. The granting of a constitution to the Cape was the result of the energetic requests of the colonists, their dissatisfaction with the administration of Earl Grey in the colonial office in London, and the demands of the English House of Commons: the matter was also expedited by the enormous charges for the Caffre war upon the imperial exchequer, which the English government and parliament were anxious to escape; the readiest and safest mode of accomplishing which the House of Commons declared was by granting to the colonists self-government. Lord Derby, regretting the liberty conceded to the colonists, threw obstacles in the way of the measure, but, by a very small majority, he was defeated in the House of Lords.

The rebellion at the Cape of Good Hope was prolonged during the opening months of 1851, and finally died out from the exhaustion of the enemy, in the presence of reinforcements of British troops. As tidings of its progress arrived in England, they occasioned grave discussions in the press, and party debates in parliament.

The Cape of Good Hope alone, of all the British colonies, was a source of public anxiety during the year 1851. India, so often the field of conflict, triumph, and disaster, afforded comparatively few incidents of great public interest suited to the records of a general history. Peace, loyalty, material development, and prosperity characterised the colonial chronicle of the year.

Discovery of Gold in Australia.—In September news reached England of the discovery of gold fields at Bathurst, in New South Wales. Before the close of the year intelligence was received in England of fresh discoveries; these were in Victoria. The

immediate consequence of the gold discoveries was disadvantageous to the colonies, as men of all trades and professions forsook their callings to repair to the “diggings,” and the shepherds abandoned their flocks, so that hundreds of thousands of stock were lost, or perished. The ultimate effect upon British Australia was, however, most prosperous—several of the colonies of that vast region becoming enriched with mineral wealth. Although the public announcement of the treasures contained in the mineral resources of certain of the Australian settlements was made at the period above referred to, it was known to the authorities many years previously that gold might be obtained, but, under the influence of a false policy, the fact was concealed.

Hostility of the Arabs at Aden.—The British settlement at Aden, important because of the command of the Arabian Sea, which it enabled the English to maintain, suffered this year in various ways. The station was most sickly, and the Europeans, and Bombay sepoys, in garrison, were alike exposed to heavy mortality. The Arabs resorted to violence and assassination; British officers were murdered if they strayed beyond the limits of the garrison. The crews of British merchantmen on the coast were attacked, and some wrecked mariners were massacred.

The Mohammedan populations of the British empire showed indications of intense irritability against the English, and, indeed, everywhere amongst Mohammedans, animosity to Europeans appeared to increase.

FOREIGN AFFAIRS—EUROPEAN RELATIONS.

France.—The relations of the United Kingdom with France, are not only more important in themselves than those which the former sustains with any other nation, but they influence the whole foreign policy of the British government. France is ascendant upon the continent notwithstanding the rivalry of Russia, and the policy of France often complicates the relations of England with other powers. This has arisen frequently from national jealousy, and as frequently from the sudden and extreme changes to which the government of France is liable in its form and principles. The revolution of 1848 brought France morally nearer to England. Louis Philippe had much difficulty in holding in rein the war spirit, which for, his own selfish and crooked policy, he had himself evoked. After that corrupt prince was driven from the throne by the people he had betrayed, a friendly feeling sprung up towards England. The moderate republican party regarded Great Britain as a land of freedom, and the natural ally of France. That party, however, maintained its ascendancy but for a short time. The Napoleonists, red republicans, priests, and peasants, united in the support of Charles Louis Napoleon Buonaparte. He was elected president of the republic, and 1851 witnessed, through his instrumentality, events of great magnitude, and which exercised potent influence upon the public mind and policy of England.

There can be no doubt that from the hour Louis Napoleon took his place in the National Assembly he had resolved, by the aid of the partizans of his name, the priests, and their agents connected with the press, to undermine the assembly, and hold it up to the ridicule and resentment of the country. The hostility of that body to universal suffrage, and the advocacy of that political theory by the Buonapartists, gave to the president of the French republic a popularity with the “reds,” which

otherwise he never could have obtained.

In the latter part of 1850, a great review of troops took place at Sartory, during which cries, from many of the soldiers, of “Vive l’Empereur” were heard, and were encouraged by the generals in the Buonapartist interest. Some officers who repressed those exclamations, and others who refused to join in them, were dismissed by Louis Napoleon’s executive. These circumstances raised formidable debates in the assembly, and afterwards led to votes and demonstrations hostile to Louis Napoleon. On the other hand a large number of the representatives, who were indebted for their return chiefly to the priesthood, and what remained of a landed aristocracy, used every instrumentality they could bring into requisition to damage the executive, to lower the authority of the president, and to create a monarchical reaction. While they brought forth as a crime the fact that the soldiers had cried “Vive l’Empereur” they took every opportunity themselves to utter the party shouts of “Vivent les Bourbons!” or “Vivent les Orleans!” A singular circumstance exhibited the efforts of a large proportion of the assembly to bring about a monarchical reaction. During the prorogation a permanent committee was formed, in which a small minority of republicans was placed by the votes of the assembly. There were twelve reactionists; these men were found to be in constant communication with the two branches of the exiled Bourbons. Six of them spent most of the time of the prorogation at Wiesbaden, with the _pseudo_. court of the elder Bourbon branch; the other six went to England, and were constantly at Claremont with the Orleanist branch of the exregal house. As M. Flaudin taunted these sections of the assembly with desiring, they really purposed that Louis Napoleon should be a _president fainéant_, while yet permitted to retain the nominal functions of government. Louis Napoleon strengthened himself by a new ministry, in which the assembly, by a large majority, declared its want of confidence. M. Montalembert and some others, who were expected to vote on the side of the opposition, voted with the Buonapartists. This made it evident that a strong party among the priesthood deemed it the best policy to support Louis Napoleon, as the friend of the pope’s temporal power at Rome, and of the Roman Catholic religion in France. A very large number of the priests, and of the lay devotees, refused to trust Louis Napoleon as a friend of the church. They did not forget that his first public act, on arriving at the estate of manhood, was to create, or at all events aid in council, and in the field, an insurrection against the pope. Neither did they forget that, although a French army garrisoned Rome, to support the pope under the auspices of the president of the French republic, that the president in his less fortunate days had animadverted in severe terms upon the education and patriotism of the Roman Catholic clergy of France. He had in one of his works drawn invidious comparisons between them and the German clergy, much to the disadvantage of the former. The following was especially quoted by that section of the French clergy and laity who were unwilling to give the president a warm support:—“The clergy will cease to be ultramontane when they shall be obliged, as formerly, to distinguish themselves by learning, and to obtain their education from the same sources as the generality of’ citizens. Southern Germany, without contradiction, is the country in which the Roman Catholic clergy are the best instructed, the most tolerant, and the most liberal; and why are they so?

Because the young men who in Germany destine themselves to the priesthood, learn theology in common with students destined for other professions. Instead of being from infancy sequestered from the world, and obtaining in ecclesiastical seminaries a spirit hostile to the society in the midst of which they have to live, they learn at an early age to be citizens, before being priests. The consequence is that the German Catholic clergy are distinguished by great enlightenment and ardent patriotism. There are no sacrifices which they are not ready to make for the triumph of liberty, and for the independence of Germany. In their eyes to be a priest is to teach morality and charity; is to make common cause with all the oppressed; to preach justice and toleration; to predict the reign of equality; and to teach men that political redemption must follow religious liberty. Let the education of the clergy be the same in France as it is in Germany, and it will produce the same results. By the union of priests and laymen there will be a double action which will be favourable to society; priests will become citizens, and citizens will become more religious. Then—but then only—we shall be happy to see, as in Germany, the ministers of religion at the head of education, teaching youth the morality of Christ, which destroyed slavery, taught men, that they are equal, and impressed on them that God has placed in their hearts faith and love, in order to believe in what is right, and to love one another."*

* "Complete Works of the Emperor Napoleon III.," vol. ii. Chapter on "The Clergy and the State."

The espousal of the president's cause by M. Montalembert, then recognised as the lay leader of the ultramontane party, decided many waverers, notwithstanding their affection for the elder Bourbons, and their horror of such liberal enunciations by Louis Napoleon.

When the president's ministry of favourites was turned out by the vote of the assembly, he resorted to the extraordinary measure of forming a ministry of men who had no votes in that body. This he alleged was only a provisional ministry, but the assembly did not place faith in these assurances, and offered it every opposition. The new ministry were allowed to sit in the assembly as ministers, to answer any interpellations, or make any statements connected with their offices. This ministry remained in office until the 11th of April, when it gave place to that which it had provisionally succeeded, and which in its turn encountered the opposition of the assembly.

During the months of April and May petitions were got up in Paris, and the provinces, in favour of a revision in the constitution Of 1848. On the 28th of May the assembly was entitled, by its original constitution, to entertain the question of a general revision of the constitution of the state, but no alteration could take place unless approved by three-fourths of the entire votes. Motions for an alteration in the constitution were made by the Buonapartists, and supported in various details by the monarchists of both branches of the Bourbons. The great aim of these parties was the prolongation of the president's official term, and the enacting of laws to prohibit and punish public banquets and public meetings of a political nature. For this purpose, and for any purpose of repression (as he had said in a speech at Djion), the assembly was always ready to respond to the demands of the president of the republic.

Although so ready to uphold the ministry in their repressive measures there was a determination in the assembly to frustrate their power as the ministry of Louis Napoleon. This they soon effected by a formal vote of censure, for using improper influence in order to obtain from the provinces, through the medium of the public functionaries, petitions for a revision of the constitution.

The new ministry was still in the interest of the president of the republic. The assembly, which had been prorogued on the 10th of August, recommenced its duties on the 4th of November. Business began by a long “message” presented in the name of the president of the republic, the main feature of which, and that which excited most attention in the assembly, and in France, was a proposal to abolish the electoral law of the 31st of May, 1850, and to re-establish the electoral law of the 15th of March, 1849. The last named provided that all citizens of age, who have resided six months in the commune were electors. The law of May, 1850, abolished universal suffrage. That act of the legislature was a revolution; the assembly by passing it virtually abolished the constitution, which could be only legitimate as the act of a constituent assembly. The assembly was to a large extent elected under the influence of the priests, who struggled incessantly to accomplish a reactionary policy. From the moment that universal suffrage was abolished, the great mass of the people abetted the pretensions of the president of the republic, whose writings had always advocated universal suffrage. Thus the assembly secured the ascendancy of Louis Napoleon by the very means which they believed most efficacious in thwarting his power and restoring that of the Bourbons. When the reading of the message of the president of the republic terminated, the assembly presented a scene of strange agitation, which was rendered still more intense when the minister by whom the message was read, M. Thurigny, demanded “urgency.” A violent discussion ensued upon this demand. The discussion took its tone from the known ambition of Louis Napoleon Buonaparte, and his open attempts to tamper with the army. To prevent a _coup d’état_, of which many became apprehensive, the assembly began a struggle to obtain more direct power over the troops. A _projet de loi_ was brought forward by the questors to that effect. The ministry and the Buonapartists demanded that the sole power over the army should be vested in the chief of the state—the president of the republic, and not in the president of the legislative assembly. General St. Arnaud, afterwards commander-inchief of the French army in the Crimea, was foremost in the interest of Louis Napoleon. It would be difficult to say which of the two parties, that consisting of the Buonapartists and the executive on the one hand, or the majority of the assembly on the other, was the more unconstitutional, faithless, and ambitious. The allegation of M. Cremieux was true, “the majority of the assembly had no great attachment to the republic. It incessantly invoked the constitution, which it every day trampled under foot. The assembly was afraid because it did not feel behind it that force which supported assemblies.” The assembly voted against the government by a large majority. The conflict between that body and the executive increased from day to day. Both parties contemplated a _coup d’etat_, and each proceeded to its execution characteristically. The assembly prepared a bill, the real object of which was to facilitate the impeachment of the president of the republic. Numerous causes for impeachment were provided, such as the president taking command of the armed

force in person, inciting his own re-election to the presidency, or attempting to change the form of government. The most serious provision of this _projet de loi_, was that whenever the president of the republic was accused, "_the accused immediately ceases his functions_." By the introduction of this project things were brought to a pass, between the assembly and the president of the republic, in which the power of one or other must perish. If Louis Napoleon permitted the project to become law his personal destruction would be effected by the legitimist majority. If he were not re-elected president of the republic, and descended into private life, he would be politically ruined, for he was heavily in debt, and no pecuniary resources were at his disposal sufficient for his maintenance as a public man. Then or never must he make some bold and comprehensive movement to countervail the majority of the assembly. The issue of this conflict has been presented by the author, in another of his works, with such brevity, that he cannot hope to offer a more complete condensation. It was as follows:—"On the 1st of December a proclamation was put forth dissolving the assembly, and calling upon the people by universal suffrage to accept a government identical with the scheme of Napoleon I. when first consul. The proclamation made known the desire of the president to surrender his position into the hands of the people, or to accept the headship of a new government on the plan he proposed, and resting on universal suffrage. These proclamations were posted on all the walls of Paris by dawn of the 2nd of December; all the leading men of the assembly were arrested; Paris was filled with troops. After struggles on the part of the assembly, and many casualties in the streets, the eventful day of the 2nd of December wore away. On the 3rd the people awoke from the stupefaction with which the suddenness of the _coup_ struck them, and preparations were made by the republicans and red republicans for resistance. On the 4th that resistance was offered; barricades were erected, and every token of a fierce contest quickened into life. Whenever an opportunity occurred, the soldiery were assassinated, and the military retaliated with savage vengeance. Men, women, and children were swept from the streets by discharges of musketry and grape. By the night of the 4th, the conflict was over. The president ruled all things. The 'ticket' put to the electors was as follows:—'The French people wills the maintenance of Louis Napoleon Buonaparte's authority, and delegates to him the powers necessary to frame a constitution on the basis of his proclamation of the 2nd of December.' This was to be carried by a simple affirmative or negative by all Frenchmen twenty-one years of age, in possession of their civil rights. On the 20th and 21st of December the ballot took place, and the result was that more than eight millions of men voted in the affirmative. The votes of the army were taken separately. The army in France voted almost unanimously for Buonaparte; in Algiers a large majority was against him. Before twelve months the empire was proclaimed."*

* Nolan's "History of the War against Russia," vol. ii., chap, lxxvii. J. S, Virtue, City Road.

Events of domestic interest to France have been treated at this length under the head of our own foreign relations, because upon the event just related turned the European policy of England during many years. The closing events of 1851, in France, influence materially the foreign relations, and even the domestic policy, of

England, while these sheets are passing through the press, at the close of 1859. Eight years have rolled away, and yet the power of Louis Napoleon in France, achieved by the revolution which he effected by the _coup d'état_ of 1851, was the hinge upon which turned the foreign policy of the United Kingdom, even in 1860, not only in Europe, but in Asia, not only in the eastern but in the western hemisphere.

When the tidings arrived in England of the strange, sudden, and daring occurrences at Paris, men's minds were greatly agitated. A conflict of opinion arose in parliament and throughout the nation. Some regarded the _coup d'état_ as Montalembert regarded it in 1859, as a violation of conscience, a treason, a perjury, a sanguinary violation of the rights of the French people; others deemed it an advantage gained by order, and even freedom, over anarchy and the despotism of red republicanism; they spoke of it as Montalembert did in 1851, when he addressed his countrymen, and told them that "to vote against Louis Napoleon would be to declare in favour of the socialist revolution, the only thing which can at present succeed the existing government." It will, however, belong to other chapters of this history to depict the effect upon English affairs, and English public opinion, of the policy and power of him who seized the reins of government, in France, with a hand as daring as that of his renowned uncle.

DISCUSSIONS IN THE ENGLISH PARLIAMENT CONCERNING THE STATE OF AFFAIRS AT NAPLES.

Throughout the year 1851 the state of the kingdom of Naples attracted the attention of the civilized world, but made most impression in England. The King of Naples was a bigot and a tyrant, a man of obstinate will, and he exhibited a fierce hatred to both civil and religious liberty. During the European struggle for freedom, in 1848, he swore to give a constitution to his subjects, and to observe it for ever. Utterly faithless in his own character, he violated his oath when the opportunity of power permitted. The description Milton gives as the probable result of restoring Satan and his fallen host to their primitive glory, on professions of repentance, depicts the actual conduct of the Neapolitan Bourbon when he attained to power, after being spared by his subjects the humiliation so generally the lot of European princes in the great year of revolutions—

"Height would recall high thought, and ease recant Vows made in pain, as violent and void."

A pamphlet, written by Mr. Gladstone, roused intelligent persons in England, and in Europe generally, to the atrocities perpetrated upon virtuous, loyal, and even illustrious subjects, in sheer wantonness of power, by the Neapolitan king. Lord Palmerston, then at the head of foreign affairs, sent a copy of the pamphlet to the English minister at every court of Europe, with the design of calling the attention of all civilized nations to the oppression with which the people of the kingdom of Naples were overwhelmed by their perjurious prince. This announcement was received by enthusiastic cheers in the House of Commons. Lord Palmerston, however, was disappointed in his expectation that the moral influence of Europe would be brought to bear upon the Neapolitan government, in favour of humanity. Some of the

European states upheld the conduct of the King of Naples, and the pope especially lent him his moral support, although twenty thousand citizens of the kingdom of the Two Sicilies were incarcerated for expressing liberal opinions, or demanding the institutions which the king had sworn to respect. Thus supported by the despotic states, and the sovereign pontiff, he bid defiance to the constitutional states of Europe, and even increased the cruelties of his stern absolutism.

DIPLOMATIC DISPUTE WITH AUSTRIA AND TUSCANY, ARISING FROM AN OUTRAGE UPON A YOUNG ENGLISH GENTLEMAN AT FLORENCE.

It was early in January, 1852, that the tidings arrived in England of one of the most unprovoked and barbarous outrages ever perpetrated upon one of her sons, but the event itself occurred in 1851. The events of this chapter relate to that year, but as the transactions at Florence, in which England suffered so much humiliation, extended into 1852, it is proper the narrative should also extend into that year, so far as they are concerned.

It appears that a young English gentleman, Mr. Erskine Mather, about nineteen years of age, and his younger brother, Mr. Thomas M. Mather, about sixteen, had been for some time in Paris, where their parents had placed them to promote their education. The elder brother being delicate, had been ordered south as the winter approached. In this search after health they had a desire, at the same time, to acquire in the country a knowledge of the language of Italy, and of the art for which that land is celebrated. They had already spent two or three months at Nice, and in November had moved down to Genoa, and then on to Florence, where they meant to reside for the winter; at which place the injury and insult were inflicted. On the 29th of December Earl Granville, the foreign minister of England, in writing to the Honourable P. C. Scarlett, the _charge d’affaires_ at Florence, thus speaks of these young Englishmen, and the outrage:*—

* From No. 3 Despatch, in Official Documents.

“The story of the young men is so candidly told, and they appear, from the tenor of another letter which has been shown to me, to be such well-conditioned and inoffensive persons, that I cannot question the truth of their statement, or entertain any doubt that a cowardly and cruel injury has been inflicted on the elder of them.” The following are the facts of the case as detailed by the young gentleman himself to M. Salvagnoli, the distinguished Tuscan lawyer, and which were afterwards confirmed, in every point, by the evidence of Italian and French witnesses who saw the deed committed.

STATEMENT OF MR. ERSKINE MATHER TO M. SALVAGNOLI.*

* From 2 in No. 13, Official Papers

On the 29th of December, 1851, my brother and I set out to go and breakfast at a _café_ in the Piazza del Duomo.

Passing by the Piazza San Marco we stopped to look at the band of the regiment, and other soldiers standing about; after waiting three or four minutes we passed on, leaving them still there. When we arrived about the middle of the Via Langa we again heard the music, and, as they were marching the same way, we walked on their right hand nearly to the end of the Via Martelli. That street being very narrow, as you are aware, and at this time rendered more so by a carriage passing along, as our _café_ was on the other side we were obliged to cross between the band and the guard, where they had left a space of about forty or fifty feet, and many other persons were crossing at the same time. While walking arm in arm with my brother I suddenly received a violent blow on my back, making me turn short round. I then perceived that it was given by the officer in advance of the guard, who held in his hand his naked sword, with the flat edge of which he had struck me.

I asked him somewhat angrily, but without threat or gesticulation, in the best Italian I knew, why he had struck me, using nearly these words, "_Perche m'aveti dato questo?_'" While I was speaking to the officer I was suddenly interrupted by another person, dressed in the Austrian uniform, who placed himself between the officer and me, at the same time giving me a blow in the face which drew blood. The blow made me start and fall back; before I could recover myself I received another cut, on the head, from the first officer, which stunned me; it passed through my hat, making a wound nearly three inches and a half in length, and down to the bone, causing the blood to flow violently.

A short time after I begged my brother to follow the officer, that he might recognise him; and I was taken to the hospital of Santa Maria Nuova, where I was obliged to remain three weeks before I could return home. As it has been said that I used threatening language to the officer after the first blow, I solemnly assure you that it is utterly false and without foundation, which the following reasons will prove:—

1st. It is impossible to believe that I could for a single instant have contemplated an act so full of folly and madness, as alone, and, unarmed, to threaten a man with his sword in hand, at the head of a large body of men by whom he was supported.

2nd. If I had contemplated the folly of opposing an officer under such circumstances, I should have done so by a sudden and instantaneous blow, and not by taking a position, and thus inviting the irresistible assailment of so many armed men.

3rd. Another proof that I was not in a menacing attitude, and was not prepared for any personal attack, is the fact of the second assailant giving me, without opposition or hindrance, a violent blow on the face.

4th. If I had been in a menacing attitude, or prepared for defence, with my arm raised, instead of receiving the blow on my head he would have struck my raised arm.

5th. The wound, which I to this moment bear, was not given, holding the sword short, near the point, as all the military officers who have examined it can testify; which proves that I was at a considerable space from him, only reached by a sword or other weapon: thus he was beyond any threatening attitude of mine, as I was without sword or arms.

Thus I have proved the absurdity of the assertion that I made any threatening resistance; equally untrue is the assertion that the blow was given because wearing a white hat they thought I was a Tuscan. If the first reason had been sufficient, the other, miserable as it is, had not been necessary. But all the defence is palpably false, contradictory, and nothing worth. An untruth defended cannot become truth. All these facts, without troubling you further, prove the truth of my statement, which it has been my duty to give you.

I am, &c,

James Ekskine O. Mather.

The British residents and travellers then at Florence were strongly indignant at so cowardly and unjustifiable an attack on their young countryman. The British residents were the pride and ornament of the Tuscan court on days of high ceremony and festival, but on the grand reception day, the first day of the year, they unanimously intimated officially that they would mark their dissatisfaction of the disgraceful assault by abstaining from presenting themselves, without the fullest investigation and redress were granted. This feeling of indignation rose so high that it was with difficulty the many young Englishmen at Florence could be restrained from making an attack upon the officers of the Croat regiment, Kinsky, amongst whom was Lieutenant Forshalier, the brutal assailant.

After much negotiation at Florence and Vienna, the British _charge d’affaires_ was at length informed, on the 15th of January, by Prince Lichtenstein, that he had been authorized by Marshal Radetzky to state that the marshal approved that an inquiry should be instituted into the affair. This inquiry was gone into in secret, without any professional man being permitted to be present in the interests of justice, or in defence or support of the wounded Englishman. The city of Florence in command of Austrian troops,—its duke replaced on his throne and there supported by them,—all the official men and courts existing, as it were, by the tolerance of those troops, an inquiry to investigate fairly a charge, by those thus humbly protected, against one of the officers of their proud protectors would seem hopeless. Yet such were the manly independence, veracity, and courage of the Italian and French witnesses that the whole truth came out, and, as the British _chargé d’affaires_ afterwards writes to the Duc de Casigliano, the foreign minister of Tuscany, “the evidence which has thus been obtained, conclusively establishes that a most unprovoked outrage was committed on an unarmed and unoffending British subject;” and the British government were satisfied, he said, that “the government of Tuscany must be anxious to mark their abhorrence of this outrage inflicted upon an innocent individual.”*

* Official Papers, No. 18.

Of that evidence Mr. Scarlett, the _chargé d’affaires_, writes to Earl Granville** that, “All the witnesses concur, more or less, in bearing out Mather’s statement.

** Official Papers, No. 18.

None are in contradiction with it. Perhaps the most important evidence is that of Pini, which exactly corroborates Mather’s statement, and certainly there is not a

single syllable, from first to last, at variance with it." Thus speaks Giovanni Pini, the important witness of the scene of blood and outrage:—"On the day in question, about twelve o'clock, more or less, I was in the Via Martelli, about half way down, when I heard coming towards me the Austrian military band, which was accompanying, as usual, the detachment intended to relieve the guard of the city. As soon as the band had passed, I stationed myself on the path where the people were, that is between the band and the soldiers who were behind. The street being rather narrow the people who were close by the band, I may say in a crowd, were pressing upon each other. A few steps further on I observed an Austrian officer, who had a cap on, and was therefore at the time off duty, strike, with his left hand, a young man who was on that side of him, with a blow which hit him on the face, and I suppose it was given with some force, for the young man who received it staggered backwards; and I observed that, as soon as he had recovered himself, another Austrian officer, who was the one at the head of the soldiers, and marching with them with his drawn sword, strike with it the same young man on the head, inflicting a wound on his forehead, from which blood began to flow in such quantities, as wine from a broken bottle. I immediately ran to the assistance of the poor youth, who had been so unreasonably ill-treated, since I could not find that he had offended the soldiers in any manner. Besides myself he was assisted by a gentleman who showed that he was his brother, although he could not speak Italian, and a Frenchman whom I do not know. There was also a priest, who was moreover unknown to me. There were other persons, also, who witnessed the transaction like myself, but I could not discover among them any of my acquaintance. The wounded person, whom I understood to be an Englishman, signified to me his gratitude for the assistance I had afforded him, but said little, as he spoke only in his own language to his brother, who started off from us immediately in order to look at the officer, who had inflicted the wound, so as to be able to recognise him, and then came back directly. He overtook the officer at the Piazza del Duomo, because the detachment was going towards the Piazza del Gran Duca. I and the brother of the wounded man then conveyed him to the first doctor's shop, which is on the Piazza del Duomo, at the corner of the Via Martelli; but, finding that the apothecary could not treat him, we went off forthwith to the hospital of Santa Maria Nuova, where the wounded man, having lost much blood, fainted away, and after having been brought to, was put into bed.... From the wounded man himself, as well as from the medical men who were attending in the room, I heard that if the Englishman had not had on his head a rather stout hat, he might have been killed on the spot; but I do not know how deep the wound was."*

* Page 51 of Official Papers.

Francis Catani, a priest, also gave evidence, to a certain extent, to the same effect, and added, "that he had heard that if the Englishman had not had his hat on his head he would have been killed on the spot, for it was that which alone protected him."

And the Senator Giuseppe Vai states that "the young Englishman went aside quickly towards the end of my house, the Casa Marchesini, or perhaps rather under it, and at the same time I heard that a few words were rapidly exchanged between them, which I did not understand, because I was too high up to be able to distinguish

them (he was at an upper window of his house), and also because the band was making a noise, and at the same moment I saw that the said officer, raising his sabre, gave the young man a blow on the forehead with it, using the cutting edge, by which the latter fell down upon the step by the wall of' the Casa Marchesini, but with almost the rapidity of lightning he got up again, and when he was standing I saw the blood was flowing from the place where he was struck.... Because this act produced upon me a disagreeable impression I withdrew from the window."

These extracts of evidence demonstrate the guilty nature of the outrage, and the careful and truthful statement of the young Englishman, as well as his cool and courageous conduct in a case at the time apparently so desperate.

Mr. Mather, the father of these youths, immediately left England for Florence, and, as he passed through London, laid the case before the foreign minister, as far as the detail had reached him by the letters of the younger brother, which were handed to the minister. He arrived at Florence after his son had been three weeks in the hospital; part of that time in a dangerous state. The kind attention and the great skill of the medical officers of that magnificent Florentine institution were doubtless the chief causes of his recovery. The conduct of these young Englishmen under such trying circumstances has been praised by almost every political writer who took an interest in the subject, and there seemed only one opinion throughout the country, that their coolness, courage, and endurance, under great difficulties and personal dangers, could not have been surpassed by the bravest and most experienced men.

Lord Palmerston, after the publication of the Official Papers, on reviewing the whole facts of the case, in a debate upon it in parliament, declared "that he found much to criticise in almost all the parties concerned, except Mr. Mather and his sons."*

* House of Commons debate, June 14, 1853.

In the route to the hospital, in the occurrences there, as well as in the account of the outrage, the graphic details by the generous-hearted Giovanni Pini bring the reader in presence of the cruel and bloody scene. While ill in hospital, pressed by professing friends, the British _chargé d'affaires_ among them, to authorise proceedings in the Tuscan law courts, Mr. E. Mather firmly refused his sanction. He at once elevated the question to its right position by an appeal to the representative of his country for the redress of an injury done to a British subject, and for the future protection of British subjects, to be redressed by the Tuscan government to the satisfaction of that of Britain, without reference to his own private wrong. His young brother, before the day had closed, sought out Mr. Scarlett, the British _chargé d'affaires_, and also Prince Lichtenstein, the Austrian commander-in-chief, taking with him two witnesses to testify to the exactitude of his statement, and to them he poured out in clear and emphatic language the story of the outrage committed. The conduct of these two young Englishmen, without friends in a strange city, relying on their sense of right, and sustained by their own firmness and courage, was truly heroic. Their father, one of the most patriotic and useful public men in the north of England, warmly approved of their course of conduct, and pursued their views for

redress. It is humiliating to our country to write what historical truth compels us to admit, that their efforts were met by the chicanery of diplomacy and treachery on the part of British officials, which have left behind an unpleasant impression of incapacity and want of principle, when the purest honour, and a high sense of national justice should have exclusively prevailed. They were well sustained, however, in their course by the generous sympathy of the people of Florence, and at home by the warmest feelings of their countrymen. As an eloquent public writer earnestly expressed himself in reference to their conduct, and that of the Earl of Malmesbury, the successor to Earl Granville:—"Both father and sons have nobly vindicated themselves as Englishmen; it was only when the national honour was confided to the minister, that the national honour was degraded by the spirit of the Jew pedlar." After several weeks' delay in Florence, the Mathers removed from that city to Genoa, where the father leaving his sons in safety, and for the purpose of the better recovery of the eldest, himself returned to England, to press the case personally upon the foreign minister of England. His first demand was punishment of the officer who had committed what Lord Granville called, "a cruel and cowardly outrage," and then, but not without the first was granted, compensation to the injured youth by the government under whoso jurisdiction the culprit acted. The Earl of Malmesbury, then foreign minister (the Whigs having left office), after several imperfect and ineffectual attempts for the better security of his countrymen abroad, by the signal punishment of the Austrian officer, wrote to Mr. Mather, senior, by his under-secretary, a letter, on the 24th of May, 1852, in very pitiable terms, to the effect that no national redress had been obtained; but that one thousand francesconi had been placed to the credit of his son, by the Tuscan government, for the injury which he had sustained. Mr. Mather's answer, with his indignant refusal of the acceptance of such redress, received high eulogies from the public writers of the day, and brought on debates in both houses of parliament. We extract a portion of the letter:—

"Now, my lord, you will do me the favour to remember, that a British subject, my son, was attacked in Florence by two armed Austrian officers, receiving the most 'unmerited and brutal treatment,' as your lordship has expressed it; that he was cut down by one of them, left in his own blood, his life in danger for a length of time, and his health perhaps for ever injured; and all this without any provocation, any offence, as it has been proved by evidence not to be controverted, of the most respectable witnesses,—people the subjects of the state whose officers had so acted,—yet for all this no real redress has been obtained; that officer is still at large, and remains unpunished....

"Whatever personal reparation you might deem proper to demand, which I conceded with regret, to your lordship's express commands (as I foresaw a probable misapplication of such concession), was, as you know, to give place to public honour.

"You now inform me that Prince Schwarzenberg, the late prime-minister of Austria, 'prior to his death had addressed a note to her majesty's government expressing his great regret at the occurrence, and at the act of the Austrian officers.' The extent of such regret may be estimated by this:—the Austrian officer, who stained the honour of the Austrian army by his bloodthirsty and cowardly act, has

been allowed to go free and unpunished, and his conduct has been approved, at least defended, by Prince Schwarzenberg's lieutenant, the Austrian commander-in-chief in Tuscany, Prince Lichtenstein. This man I frequently saw, in all the pride of military array and overbearing insolence, in the streets of Florence, a public example to his brother officers, and the world, of the impunity with which British subjects may be treated, and the evidence of the low estimation of his superiors for British honour, and British power. This all the while that British statesmen and diplomatists were making urgent demands for redress, your lordship among the number.... Has it been obtained?...

"The patriotic manner in which I have repeatedly expressed myself in this unfortunate affair, as you are pleased to observe, has originated in feelings that induce me now to express the pain which I feel that this crime is sought to be compromised, and the indignation, as far as I am concerned, with which I reject the offer of the Tuscan government, and any participation in such proceedings.

"I will not pretend to be a judge of what is due to the honour of England, but I know what is due to my own."

The effect of this note was that Lord Malmesbury threw the responsibility on Mr. Scarlett, his representative in Tuscany, and annulled his proceedings. He then sent out Sir Henry Bulwer to endeavour to arrange the affair, or to withdraw the embassy from Florence. A sort of apology was given by the court of Florence for the outrage, and a responsibility was assumed by it for the future, in case of injury to British subjects—as if the law of nations had not already secured it. No redress or punishment for the outrage ever followed Sir Henry's mission. He might, for all its purposes, have as well remained in England. The Mathers refused to the last the money compensation, and to this hour, in this infamous matter, the guilty officer has never met his just punishment, nor public honour been satisfied. It is known that had the course been pursued which the father and sons adopted, and justice been satisfied, any personal compensation was to have gone chiefly to the public hospital of Florence, and for other public institutions of that refined capital, in which those Englishmen had received so much kindness and sympathy when it was personally dangerous to yield it, in the presence of their barbarous Croat invaders. Mr. Erskine Mather is now a scientific British officer, and bears amidst the ranks of England's defenders the visible scar of the wound so treacherously and wantonly inflicted upon him because he was an Englishman: a remembrance to every Englishman of how little he may rely upon the defence of his own honour, or the honour of his country in his person, while the diplomacy of England is in the hands of men who sympathise with foreign despotism, or find luxurious and lucrative appointments at foreign courts under the ostensible duty of watching over the interests of their country.

The remaining features of English affairs, in relation to foreign nations, were of too little interest to require notice in these pages.

DEATHS OF EMINENT PERSONS DURING THE YEAR 1851.

No one who knows England can wonder that her annual obituary presents such long lists of great names, when it is remembered how wide-spread is her empire, and

how varied her enterprise. It is only possible to select a few of the remarkable persons for notice, whose departure from this life in 1851 excited the attention and regret of large classes, or of the whole nation.

On the 1st of February occurred the death of Mrs. Shelley, widow of Percy Bysshe Shelley, the celebrated poet. Mrs. Shelley was a lady of extraordinary gifts, and these were stimulated by the genius of her husband. As an authoress she will always rank high, although only one of her books has attained a just proportion of fame, “Frankenstein.” That was received throughout Europe and America as one of the most remarkable works of imagination which the 19th century had seen, and it gained for her a reputation as lasting as extensive. “Lodore,” “Volperga,” “The Last Man,” and others produced also a great impression, but not one of a very permanent character, at least, in the British Isles. “The Last Man” deserves a higher estimation than has been awarded to it. There is a very penetrating sadness in all Mrs. Shelley’s works written after the loss of her gifted husband, and an impression of enervated physical strength, and effort to write in spite of depression, is conveyed to the reader.

On the 5 th, at Guildford, Surrey, the Rev. John Pye Smith, D.D., LL.D., F.R.S., for many years Principal of the Independent Congregational College, at Homerton. He was one of the greatest scholars of his age. The author of this work knew him well, and can in truth say his virtues were as conspicuous as his scholarship was profound. He was especially benevolent and modest. A celebrated divine once said of him that he “had a very _troublesome_ conscience,” referring to its extreme tenderness, and his nervous scrupulousness lest he should wear the remotest appearance of evil. His religious works are chiefly critical and controversial, and are written in a style of quiet and graceful simplicity, with great perspicacity of expression and perspicuity of thought. His “Scripture Testimony of the Messiah” is a wonderful monument of human learning and clear, candid, and cogent logic. It is the greatest standard work in the language, on “the Unitarian Controversy.” When he retired from the direction of’ the college at Homerton, where he trained many eminent men for the Christian ministry among congregationalists, three thousand guineas were presented to him as a tribute of respect. At his death the interest of the same was applied to divinity scholars in the college for candidates for the Christian ministry among the congregationalists, established at St. John’s Wood, London, the Principal of which was Dr. John Harris, author of many curious and literary productions much prized in tire religious world.

February 23rd, at Hampstead, London, Joanna Baillie, the celebrated authoress. She was the friend of Sir Walter Scott, who admired both her poetic and dramatic genius exceedingly. Her plays, although open to criticism as to selection of subject, plot, and stage effectiveness, display the poetic power of her mind to great advantage.

April 28th, in London, aged eighty-one, Admiral Sir Edward Codrington. He saw great variety of service as a naval officer, and displayed professional skill and personal courage. In 1826, he received the command of the Mediterranean fleet. He commanded the following year the combined fleets of England, France, and Russia, in the destruction of the Egyptian fleet, at Navarino. A son of this eminent and amiable

man subsequently commanded the British army in the Crimea, during a war of England and her allies against Russia.

May 23rd, at Florence, where he officiated as British minister to the court of Tuscany, the Right Honourable Richard Lalor Shiel. He was the son of an Irish merchant, and was born in Dublin. His early education was in the English Jesuit College, at Stonyhurst, a place which made many bad Catholics by the excess of its ultra-montanism. Mr. Shiel was afterwards a student of the Dublin University, where he distinguished himself. He was called to the Irish bar in 1814. He wrote several plays which had merit, and were for a time made popular by the acting of Miss O'Neil. Mr. Shiel was never very successful as a lawyer, his taste lying in the direction of dramatic literature and politics. He began his political career at an early age; his first passionate oration, to a Dublin Roman Catholic audience, was made at eighteen years of age. He became one of the leaders of the Roman Catholic emancipation movement, being second to O'Connell only as a leader of party and an orator; his eloquence, however, was more refined than that of his more potential colleague. His speeches were dramatic, rhetorical, and effective. Their moral tone was offensive, vituperative, and vindictive. He was very small of stature, ungainly and unprepossessing in appearance, and had a strange squeaking voice; but in spite of these and other defects he was, next to O'Connell, the most powerful agent in carrying Roman Catholic emancipation. He was, however, never heartily trusted by O'Connell, who saw his value as an instrument and flattered his vanity by fulsome panegyric: when, however, the great agitator suspected the drift of any movement of Shiel, he turned against him his keen although coarse satire, and, by his contemptuous sneers and ludicrous and striking caricatures, turned the tide of popular feeling against his subtle and unreliable colleague. After Roman Catholic emancipation was achieved Mr. Shiel became a member of the imperial parliament, where he distinguished himself by his eloquence more than he ever did as a tribune. His oratory was, however, characterised more by histrionic passion, rhetorical artifice, and boldness of declamation, than by logic or truth. Many times the beauty of his parliamentary orations dazzled his opponents, and drew forth their admiring eulogy, and often his sarcasms smote them with a severity more terrible than any launched from his side of the house. He became a mere whig partisan; his ambition was office, and he excited the strong resentment of the Irish party, with which he had acted, by his silence where "Irish or Catholic interests" were concerned, if the whig party were opposed to their demands. No orator had espoused with more seeming heartiness various liberal opinions, which he abandoned when he became a pet of the Whigs. Like O'Connell he had harangued with great fervour large democratic assemblages in favour of the voluntary principle in religion, and like O'Connell he mocked it and vituperated it, when it served his purpose to do so. He had been a great anti-slavery agitator, uttering fervent sentiments concerning the equal right of men of all creeds and colours, and the duty and policy of applying this great principle in the West India possessions of England, and all over the world; but when his parliamentary party adopted a course which displeased the anti-slavery party, and a deputation of eminent philanthropists waited upon him, believing that in Richard Lalor Shiel the black man had a friend as true as he had been an eloquent advocate,

those gentlemen were received with a haughty insolence, and a contemptuousness which there was not even a decent effort to suppress. Upon the Protestant dissenters of England he poured loud and eloquent praise when he was agitating for Roman Catholic emancipation, as the English dissenters gave an ostentatious support to that movement. When the end was gained which he hoped to serve by such flattery, he manifested a profound animosity to those whose services he had commended. His real views on subjects of civil and religious liberty were selfish and narrow. His professed patriotism was to a certain extent real, but it was narrow and invidious where true, and it was for the most part simulated. He was an object of hatred to the ultramontane party in his own church; and a report prevailed in Europe, which does not appear to have been substantiated, that he was, by that party, ingeniously deprived of life through skilful agency appointed for that purpose.

August 5th, Mrs. Harriet Lee, in her ninety-eighth year. This lady was one of the authoresses of the “Canterbury Tales.” Her works were various and popular.

August 6th, at Hong-Kong, the distinguished missionary, Gutzlaff. He was by birth a Pomeranian, but was associated with the English so intimately as interpreter, and as secretary to the Hong-Kong government, that he was always regarded as a British citizen.

August 12th, aged fifty, the Honourable Elliott Drinkwater Bethune, a man whose efforts for legal reform in England and India won for him the gratitude of the good, and caused him to incur the bitterest hostility of the selfish classes affected by proposals of reform.

November 18th, aged eighty-one, at Herenhausen, the King of Hanover, uncle to her majesty.

December 19th, at Chelsea, London. Joseph Mallord William Turner, the great English landscape painter, whose works are too well known, and whose fame is too widely spread, to require more particular notice.

CHAPTER LXIV.

{VICTORIA. 1852}

Home Affairs: General State of Great Britain; Religious Agitations; Death of the Duke of Wellington; The Court; Parliamentary Discussions; Changes of Ministry..... Ireland: Animosities on Account of Religion; Insecurity of Life; Terrible Assassinations..... Colonies: War at the Cape; Gold in California; General Condition of the British Colonies..... Foreign Affairs: Electric Telegraph Between London and Paris; Revival of the French Empire; English Policy in Reference to that Event; Indignant Feeling of the English nation towards Austria and the despotic Princes of Italy; Efforts of the British Navy to put down Piracy and Slavery.

{A.D. 1852}

The year 1852, like its predecessor, opened in the British Isles with fierce religious controversies. The agitation about the papal aggression had not died away, and events occurred, from day to day, inflaming the spirit of religious difference. Yet this was not an unmixed evil—“The greatest blessings have been achieved by discussions, errors suffer in the ordeal; truth never does; the dross is consumed in the fire; the gold comes out more brilliant, more precious, more pure.”*

* Rev. Dr. Cumming’s “Apocalyptic Sketches,” p. 153

What was generally called the Achilli trial, early in the year, aggravated the existing religious dissensions, and extended the spirit of polemical conflict. Although the trial did not take place until June, the public anticipated it with intense excitement. Dr. Achilli had been a Roman Catholic priest; he left the Church of Rome, and devoted himself to preach against its tenets, and the spirit of persecution which it breathed. He produced a powerful impression both in Great Britain and Ireland. It became exceedingly important to silence him, and the Romish church resorted to its old instrument in such cases, defamation. The Rev. Mr. Newman, a Roman Catholic priest, a convert from the Church of England, who had, as a clergyman of that church, distinguished himself at Oxford by his Jesuitical casuistry in upholding Puseyism, and teaching that, by receiving the Church of England Articles in a “_non-natural sense_,” clergymen might remain in her communion, and receive her emoluments, while they taught the doctrines peculiar to the Church of Rome, publicly attacked the character of Dr. Achilli, averring that he was unworthy of credit, because he had been expelled from the Church of Rome for dissolute habits. Achilli took an action for libel, which was tried in the Court of Queen’s Bench, when a verdict was given in favour of Dr. Achilli. The case assumed a peculiar aspect from the fact that a number of women had been brought from Italy, by the Roman Catholic priests, who swore that they had participated with Dr. Achilli in criminal intercourse. The doctor solemnly swore that some of these women he had never seen, and that, in respect to others whom he had known, no accusation had ever until then been brought against him. The mode in which these women gave their testimony, and the contradictory character of it, left the jury no alternative but to believe the allegations of Dr. Achilli, that the case was got up against him, by a conspiracy of Roman Catholic priests, for the purpose of destroying his moral reputation, and thereby preventing his effective preaching from injuring their sectarian interests.

Another event still more aggravated the _odiumtheologicum_ which prevailed. In the town of Stockport fierce religious riots broke out between the Irish Roman Catholics and the Protestants of that town. A religious procession of an offensive nature was got up by the Roman Catholic clergy. This was resented by the Protestant population as an insult: the Roman Catholic party persisted in the aggressive movement, and the result was riot and bloodshed for several days. This event produced terrible excitement elsewhere: and in Ireland some of the newspapers in the Roman Catholic interest incited the people to commit violence upon their Protestant neighbours. In addition to the animosity which raged between Protestants and Romanists, the controversy concerning the admission of Jews to parliament divided other sections of the community. The parliamentary debates on this subject in

the previous year were remembered, and the remembrance embittered by various incidents. Among these was the trial of Miller _versus_ Salomons. Mr. Salomons having been elected member for Greenwich, presented himself in the House of Commons, and voted. The action was to enforce a penalty of £500 for having voted without taking the oath of abjuration. The case was tried in the Court of Exchequer, before the barons, who were, with the exception of Baron Martin, unanimous in a decision against Mr. Salomons. This trial took place in April, and had the effect of exasperating the wealthy Jewish community of London and exciting the liberal politicians, who desired the emancipation of their Jewish fellow citizens from all civil disabilities on account of their religion.

The general condition of Great Britain was prosperous. The influx of gold from the newly-discovered gold regions, especially those of Australia, stimulated enterprise. The recent remissions of duties afforded relaxation to the pressure of taxation upon industry; trade was good; the industrial classes were contented; the farmers, sharing in the general prosperity, yielded less willingly to make themselves instruments of agitation in the hands of Lord Derby. Benjamin Disraeli, and other less prominent leaders of the opponents of free-trade, especially in corn. With the exception of the Cape of Good Hope, the tidings received from the colonies were favourable. No foreign war threatened, although many apprehended that the “_coup d’état_” by leading to the revival of the empire, would also lead to a revival of the old imperial attitude of France to England,—that of menace and ambition. The policy pursued by the British government was, however, so conciliatory and fair, that no opportunity was left for France to make a quarrel. It was moreover the interest of the French president to court alliance with England, to prevent the possibility of a continental coalition against him, which he knew would never dare the power of France while England was her ally. The discussions connected with the outrage committed upon Erskine Mather, Esq., at Florence, by Austrian officers, alone agitated the country in connection with foreign politics. The progress of that event was laid fully before the reader in the last chapter. During the debates about it in parliament and the press, in 1852, a strong public sentiment was evoked against the Duke of Tuscany, and the Austrian government and army. Much sympathy was felt towards the young Englishman who had so well maintained his country’s honour, and to his father, by whom he was sustained in the manly and patriotic course which he had adopted. The procedure of the diplomatic agents of the English government, of the English government itself, and of the foreign minister, Lord Malmesbury most especially, excited the indignation of the people, and tended much to weaken the cabinet of which Lord Malmesbury was so prominent a member: probably the apathy and want of manly spirit and patriotism displayed by the British government and its _employés_ in the Florence affair, did more to shake the confidence of the people in the administration than all the party attacks to which in its short existence it was exposed.

Among the home events of the year which excited general interest were a series of earthquakes, which spread alarm over a large portion of Great Britain. Such rare phenomena in this island naturally attracted the attention of the philosophical, and affected the multitude with awe. On the 4th of November the inhabitants of the

north-western districts of England felt the shocks usually characteristic of earthquake. The chief force of the subterranean commotion seemed to be beneath Liverpool and the districts that surround it. In Manchester the shock was felt more severely than in most other districts. On the opposite coast of Ireland, especially in the counties of Dublin and Wicklow, the vibrations of the earth were nearly as remarkable as in Lancashire and Cheshire.

[Illustration: 814.jpg THE DUKE OF WELLINGTON.]

DEATH OF THE DUKE OF WELLINGTON.

The decease of the most remarkable man in Europe, perhaps in the world, the great Duke of Wellington, filled the country with grief, commanded the sympathy of all nations friendly to Great Britain, and the attention of civilized men in every portion of the world. In England, it was the most important event of the year's history. No man exercised the same influence over her fortunes. His name was a tower of strength before her enemies, and his wisdom the chief and _dernier ressort_ in her councils. He was the most confidential private counsellor of the queen, who regarded him with the veneration and affection due to the friend of her childhood, when she was neglected by the corrupt court of one uncle, and the apathetic court of another, the sovereigns of the empire over which she also was destined to reign. The removal of the great Duke was an irreparable loss to her majesty and to the country she so wisely ruled; and in no branch of the public service was this loss felt more than in the army, which he had raised to an unprecedented pitch of efficiency and glory. A brief notice of the life of this extraordinary man is desirable, that the reader may more clearly see the important influence his death necessarily had upon the position and policy of the United Kingdom. Concerning the origin and career of this glorious man, J. H. Stocqueler has made the following striking remarks:—

"Nobly born, carefully educated, and connected with people enjoying considerable political influence, he was subjected to no early wrestlings with fate. He was launched upon the stream of life under the most favourable auspices, tasting neither the bitterness of poverty nor the humiliation of obscurity. His public life, from first to last, was one uninterrupted chain of glory, each link more brilliant than its predecessor, and, unlike other great adventurers, whose course from insignificance to splendour was broken, through a series of mischances or their own unsteadiness of character, his progress knew no culminating point—his fame no tarnish, his fortunes no reverse.

"But the even tenor of his career is no disparagement of the vast merit of the Duke of Wellington. If his antecedents were less humble than the public beginnings of other men, let it be remembered that he reached a higher eminence than any personage of whom the annals of England possess a record—always excepting John, Duke of Marlborough, his prototype in all things but political virtue. Nor has his upward path been free from a thousand obstructions, which none but a gigantic mind and a firm heart could surmount. His difficulties began with his direct responsibility. His triumphs followed as the results of his indomitable perseverance, his unflinching courage, and his amazing constancy."

The most accurate and, at the same time, brief account of the birth, education, and early professional progress of the future hero, is one written by the author just quoted.*

* Stocqueler's "Life of Wellington," p. 23.

"It was in March, 1769, that Arthur Wellesley first saw the light. Biographers differ as to the date and the locality; but it appears by the evidence taken before a parliamentary committee in 1791, to inquire into a petition against his return for the borough of Trim, on the ground of his being a minor, that he was really born at Dangan Castle, in the county of Meath, Ireland, at the time alleged above. His father was the second Earl of Mornington, who enjoyed much celebrity for his nice musical taste; his mother, Anne, the eldest daughter of Viscount Dungannon. Early in life Arthur Wellesley was sent to Eton College for his education, in conjunction with his afterwards distinguished brother, Richard.

"Being desirous for the military profession he was sent to the college of Angiers, directed by Pegnard, a celebrated French engineer.

"At the age of eighteen, after he had gone through a course of French military instruction, Arthur Wellesley was gazetted to an ensigncy in the 73rd regiment. This was in March, 1787. Nine months later he was promoted to a lieutenancy in the 76th. Subsequent exchanges carried him into the 41st foot, and the 12th Light Dragoons.

"In 1791 (30th of June), being then twenty-two years of age, he procured a company in the 58th Foot, whence, four months later, he exchanged to a troop in the 18th Light Dragoons. Under the system in force in the British army, officers, avid of rapid promotion, must seek it in other regiments than their own, if their immediate seniors are prepared to purchase advancement. As Arthur Wellesley had had no opportunities of displaying zeal and gallantry in the field during these four years of service, his quick progress may be fairly set down to the combined action of ministerial favour, and a sufficiency of pecuniary means. Neither at school, nor college, nor in the performance of the easy regimental duty peculiar to a time of peace, and incidental to five exchanges, did he display any of those qualities which developed themselves in so remarkable a manner a few years later.

"Previous to obtaining his company, Lieutenant Wellesley was returned a member of the Irish parliament. He sat for three years, during a portion of which time he was an aide-de-camp to the Earl of Westmoreland, then Lord-lieutenant of Ireland.

"The young member occasionally spoke, always in opposition to liberal measures; and his oratory was characterised more by a curt and decided form of expression than by the efflorescence then popular among the Grattans, Cuffs, Parnells, and other members of the legislature. His opinions were of the tory cast; and, even at that early period he opposed himself to any consideration of the Catholic claims, and to schemes of parliamentary reform. As an aide-de-camp, and a member of a Protestant family, his sentiments were, of course, coloured by the opinions of the noblemen and statesmen with whom he associated."

The early military services of Arthur Wellesley, both in Europe and in India, were brilliant. Some of his first exploits in action were marked by promptitude and genius rivalling in lustre the feats of his proudest days. In India, his conquests of the refractory chiefs, Dhoondiah and the Peishwah, and his successes in the Mysorean war, under Baird, were full of daring and of glory.*

* For an extended account of General Wellesley's Indian campaigns see "Nolan's History of the British Empire in India and the East." Virtue; City Road and Ivy Lane, London.

As a general officer, he showed every quality which commanded respect from his seniors, reverence from his juniors, confidence alike in those whom he commanded, and those who devolved responsibility upon him, and the astonishment and admiration of his enemies. The treatment he received in India was not just nor considerate, and to the latest period of his life he felt that neither by his brother the Marquis Wellesley, the East India Company, nor the government at home, was he requited as his merits deserved, nor did he deem that their conduct to him while on actual service was what it should have been. The self-mastery and loyalty with which he endured slights and injustice while rendering great services, have probably never been exhibited equally by any soldier of ancient or modern times. On the occasion of his being superseded at Bombay by General Baird, he wrote:—"My former letters will have shown you how much this will annoy me; but I have never had much value for the public spirit of any man who does not sacrifice his private views and convenience when it is necessary."**

** "The Duke of Wellington's Supplementary Despatches relating to India." Edited by his Son.

The time has arrived when foreign writers, even in France, are beginning to do justice to the hero's fame, and to the genius displayed in his Indian campaigns, which have been so much overlooked both at home and abroad, although so well appreciated in India. An able writer, a French officer—Captain Brialmont—has, in a recent work,*** especially drawn the attention of military men in France to the Indian campaigns of General Wellesley.

*** "History of the Life of Arthur, Duke of Wellington," from the French of M. Brialmont, Captain of the Staff of the Belgian Army. With emendations and additions by the Kev. G. K. Gleig, M.A., Chaplain-General to the Forces.

In describing the conduct of the general at Assaye, Brialmont remarks:—"It was an inspiration of the greatest hardihood which induced the English general to engage a force ten times as great as his own, and covered in its front by an important river. The battle of Assaye will always be regarded as one of the boldest enterprises of that general, whom certain authors represent as endowed only with the qualities which are necessary for defensive warfare."

Some time after his arrival in Europe, he was entrusted with a command in Portugal, against the French then occupying that country. He was much embarrassed by his own government, and the wilfulness of the people to rescue whom was his mission. The convention of Cintra arrested his successes. The stupidity of his

superiors defeated his schemes of conquest. “Yet, even as things stood, the success achieved was of no ordinary character. The British soldiers had measured their swords against some of the best troops of the empire, and with signal success. The ‘Sepoy General’ had indisputably shown that his capacity was not limited to oriental campaigns. He had effected the disembarkation of his troops—always a most hazardous feat—without loss, had gained two well-contested battles, and in less than a single month had actually cleared the kingdom of Portugal of its invaders. The army, with its intuitive judgment, had formed a correct appreciation of his services, and the field-officers engaged at Vimiera testified their opinions of their commander by a valuable gift: but it was clear that no place remained for General Wellesley under his new superiors, and he accordingly returned to England, bringing with him conceptions of Spanish affairs which the event but too speedily verified.”*

* Traveller’s Library: “Memoir of the Duke of Wellington.”

Previous to the expedition to Portugal, and after his return, he sat in parliament, and held the office of Secretary for Ireland. In 1809 he received the thanks of parliament for his military services at Vimiera and Rolica. In the meanwhile, disaster frowned upon the arms of Spain. “Her armies were dispersed, her government bewildered, and her people dismayed; the cry of resistance had ceased, and, in its stead, the stern voice of Napoleon, answered by the tread of 300,000 veterans, was heard throughout the land.”**

** “History of the Peninsular War,” by Sir William Napier.

Portugal was menaced. Sir John Cradock, who commanded, was unequal to the occasion, and the British government was about to withdraw the English army of occupation, when it occurred to Lord Castlereagh that Sir Arthur Wellesley ought to be consulted. That officer counselled the augmentation of the British forces, and drew up a plan of defence. The government offered him the command of the Portuguese, which he declined. Finally, Cradock was recalled, and Sir Arthur accepted the command of the allied English and Portuguese. He again landed in Portugal, amidst the acclamations of troops and people, and, with his characteristic activity, commenced operations. Then followed the passage of the Douro, one of the most daring exploits recorded in the history of war.***

*** Captain Brialmont says that French generals admit that the passage of the Douro was bold even to rashness.

The passage of the Douro foiled the French commander, and compelled him to retire. After various complicated movements, the rival armies confronted one another at Talavera, where a dreadful conflict issued in victory to the British. The British, unsustained by proper support, through the negligence of the English government, and the irrational conduct of the Portuguese, were compelled to fall back. Before doing so, Wellesley accomplished another grand feat—the execution of the lines of Torres Vedras. This defensive position was skilfully selected, and as skilfully fortified. Such was the secrecy and celerity observed in the construction of the works, that the French had learned nothing of their existence, numerous as were their spies, and the English army generally knew as little of it as the French. When the moment arrived

for the execution of his project, the English general retired behind these lines, in the face of an overwhelmingly numerous enemy, who gazed with wonder upon the impregnable defences which were presented to their view.

Before, however, the British accomplished their retreat, one more victory testified their greatness in battle, and the superiority of their chief. The English took post on the heights of Busaco. The French attacked the position, and were repulsed. Having entered the lines of Torres Vedras, the British awaited the advance of the grand army which was to drive them into the sea. Massena advanced in his pride and his power, but recoiled from the task of storming such well-prepared positions. Having waited long enough, without being able to make any impression upon the English lines of defence, to bring disease, discouragement, and scarcity of provisions upon his own army, he retired, harassed in his retreat by the exulting English. While Wellesley was thus engaged in personally superintending the defence of Lisbon, by maintaining the fortified lines thrown up between the Douro and the sea, he was also occupied with general plans for ultimately driving the French out of the Peninsula, directing operations in places at a distance from his head-quarters, and carrying on a laborious correspondence with the Portuguese and British civil authorities, and even with the Spanish patriots. When Massena was driven into Spain, Wellesley’s first care was the reconquest of the frontier fortresses. Almeida, Ciudad Rodrigo, and Badajoz, fell into the hands of the British general, then Lord Wellington. His successes were, however, obtained with great difficulty and loss of his soldiers, through the inadequate supply of material to his army by the home authorities. Every fortress which was not strategically abandoned by the French, was won by the skill of the general-in-chief, and the recklessness of life shown by his soldiers, in spite of the want of almost every appliance proper for an army. The sieges which Wellington prosecuted to a successful result “will always reflect immortal honour on the troops engaged, and will always attract the strongest interests of an English reader; but which must, nevertheless, be appealed to as illustrations of the straits to which an army may be led by want of military experience in the government at home. By this time the repeated victories of Wellington and his colleagues had raised the renown of British soldiers to at least an equality with that of Napoleon’s veterans, and the incomparable efficiency, in particular, of the Light Division was acknowledged to be without a parallel in any European service. But in those departments of the army where excellence is less the result of intuitive ability, the forces under Wellington were still greatly surpassed by the trained legions of the emperor. While Napoleon had devoted his whole genius to the organization of the parks and trains which attend the march of an army in the field, the British troops had only the most imperfect resources on which to rely. The engineer corps, though admirable in quality, was so deficient in numbers, that commissions were placed at the free disposal of Cambridge mathematicians. The siege trains were weak and worthless against the solid ramparts of Peninsular strongholds. The intrenching tools were so ill made that they snapped in the hands of the workmen, and the art of sapping and mining was so little known that this branch of the siege duties was carried on by drafts from the regiments of the line, imperfectly and hastily instructed for the purpose. Unhappily, such results can only be obviated by long foresight, patient training, and costly provision; it was not in the

power of a single mind, however capacious, to effect an instantaneous reform, and Wellington was compelled to supply the deficiencies by the best blood of his troops."*

* "Memoir of the Duke of Wellington."

The terms in which this illustrious man complained of the incompetency of the government at home are instructive to those who, in the present generation, contend for reform. "I do not receive one-sixth part of the money necessary to keep so great a machine in motion." "The French army is well supplied," he wrote on one occasion, "the Spanish army has everything in abundance, and we alone, on whom everything depends, are dying of hunger." "I am left entirely to my own resources," he wrote in 1810, "and find myself obliged to provide, with the little which I can procure, for the wants of the allies, as well as for those of the English army. If I yield, God help me, for nobody will support me." This sorrowful language was too true, for so utterly corrupt was the English administration, that in order to save themselves from public odium, they would have ruined him. A distinguished reviewer of one of the memoirs of his grace thus comments upon the treatment which he received:—"From the inadequate supplies of money sent to him from his government, he had to create a paper-money of his own, and to increase his supplies by opening a trade in corn with America. When he complained of the attention which the home government paid to the criticism of some of his officers, they replied that these officers were better generals than he; they compelled him to send back the transports on which, in the event of a defeat, the safety of his army depended; and on one occasion Lord Liverpool gave instructions to an officer of engineers at Lisbon of which Wellington knew nothing, and which began with these words, which were also news to him:—'As it is probable that the army will embark in September, &c.'" So much was the duke dependant on his own resources that, being unable to prevent the departure of some of his generals, he was often obliged to discharge himself, on the same clay, the duties of general of cavalry, leader of the advanced guard, and commander of two or three columns of infantry. His want of material was such that at the siege of Badajoz he had to employ guns cast in the reign of Philip II., and, for lack of mortars, he had to mount his howitzers upon wooden blocks; while at Burgos he was obliged to suspend the attack till a convoy of ammunition should come up, which had been expected for six weeks. He was even obliged to complain of his army. "We are an excellent army on parade," he said, "an excellent one to fight, but take my word for it, defeat or success would dissolve us." The discipline was by no means perfect. After the battle of Vittoria the soldiers obtained among them by way of booty about a million sterling; many regiments disbanded themselves, and some three weeks afterwards the commander-in-chief had to announce that there were still 12,500 marauders among the mountains absent from duty.

Notwithstanding every impediment which the lazy, conceited, and impracticable character of the Spaniards, the want of civil organization in Portugal, and the ignorance and incapacity of his own government could interpose, Lord Wellington, in a series of campaigns, and of great and sanguinary battles, drove the French from Spain, followed them into France, defeated them at Bayonne, Orthes, and Toulouse, and only paused in his career of victory upon the announcement of the allies entering

Paris, and the abdication of Napoleon.

The policy and conduct of the Duke of Wellington during the occupation of France by the allies were stern, but just and wise. He was inflexible in carrying out the objects of the allies, but temperate and equitable in curbing the vindictive propensities of the allied chiefs and armies. He met the great continental sovereigns and generals in Paris on a footing highly honourable to himself and his nation; his influence preponderated in their counsels, and he received more marks of deference than any other man of the times and the occasion.

On his return to England, his name and person were surrounded by honours. He received in the House of Lords at once the recognition of all the steps of the peerage—they had been conferred upon him in his absence. He was the idol of the court and the aristocracy, and to a considerable extent of the people. The escape of Napoleon from Elba led to the British and Prussian campaign in Belgium, which involved the sanguinary battles of Quatrebras and Waterloo, in the former of which Ney sustained a terrible repulse from Wellington, and in the latter Napoleon was utterly defeated and put to flight, and the way to Paris opened for the conquerors. Once more the duke occupied France with his armies, and with still greater opportunity than at the close of his previous campaign for displaying the eminent qualities which he possessed in the council, as well as in the field. After the peace, and the banishment of Napoleon to St. Helena. Wellington obtained an extraordinary influence in the councils of successive British sovereigns, and became one of the most active and potential politicians in Europe. His career of war had closed—a new public race was run by him, in which his countrymen were less disposed to regard him with favour. How he fulfilled his new destinies is still matter of discussion. The tory school of politicians, to which he belonged, consider him as having in a great measure forsaken his party, and lowered the standard of his principles. Liberal politicians regard him as having struggled to maintain class interests contrary to the convictions of his great mind, and in subservience to the interests and prejudices of his “order.” His country generally has, therefore, not given him credit for the highest order of statesmanship, but reveres his memory as that of a man who served the country and the crown with fidelity, and who studied the national honour in all things. Probably the following estimate of his political capacity, position, and services, is as accurate as any ever given to the public:—“By a destiny unexampled in history, the hero of these countless conquests survived to give more than one generation of his countrymen the benefit of his civil services. Such an ordeal has never before been endured by any public character. Military experience does not furnish the fittest schools of statesmanship, especially when the country to be governed is that of a free, intelligent, and progressive people. But, if the political principles of the great man who has now departed were not always reconcilable with the opinions and demands of modern advancement, they were at least consistent in themselves, were never extravagantly pressed, never tyrannically promoted, and never obstinately maintained to the hindrance of the government or the damage of the state. In estimating Wellington’s politics it must never be forgotten that he was a politician of 1807, and that he descended to us the last representative of a school that had passed. If he was less liberally-minded than the statesmen of his later days, we may fairly

inquire how many of his own generation would have been as liberal as he?”

In 1822, the duke appeared at the allied conference at Vienna, the object of which was to put down the rising demand on the continent for constitutional government. Spain was intensely agitated, and its imbecile monarch was afraid to resist any longer the call for free institutions, so loudly and unanimously made by his subjects. The continental sovereigns viewed the slightest approach to political freedom with alarm. The restored Bourbon government of France took the lead in the policy of repression, and demanded the countenance of the continental powers, and of England, for an invasion of Spain, to support the king in trampling out the last spark of liberty among his subjects. Mr. Canning was minister for foreign affairs in England. He instructed the Duke of Wellington to resist the proposal of France, and to insist upon non-intercession. Either his grace performed his part inadequately, as was generally believed in England, or the continental sovereigns, having used England for the destruction of Napoleon, were agreed to thwart her influence, and make no concessions to her opinion, for they unanimously supported the project of a French invasion of Spain. This event took place, inflicting upon the Spanish people more indignity, disdain, and injury than the invasions by Napoleon had done. The British government talked much and did nothing. “The Holy Alliance” took no notice of the indignant orations in the British parliament, the protests of the ministry, and the explanations of the duke. A French invasion overthrew liberty in Spain within little more than ten years of the date when a British army had driven out the French in the name of liberty, independence, and non-intervention. The Spaniards never believed that the duke was free from some participation in this aggression, and his popularity, such as it was at the close of the war, was never regained in that country. The event also deprived the Spaniards of all confidence in professions of non-intervention and respect for national independence in England. They did not believe that her powerless protests were sincere, but regarded her as having made the previous war in the Peninsula for a policy exclusively her own—the suppression of the popular and imperial elements in France. The Duke of Wellington, in his place in the house of peers, declared that he had faithfully carried out Mr. Canning’s instructions, but that the allied courts were unmoved by arguments or protests.

In 1826 the duke was sent by his sovereign on an especial embassy to St. Petersburg. He was not favourably impressed with the Emperor Nicholas or his people. He regarded the whole policy of Russia as faithless and aggressive, and only friendly to England as far as she might be made, through the false representations of the Russian diplomatists, unconsciously subservient to the territorial aggrandisement of Russia, especially in the direction of Turkey. The Emperor Nicholas himself the duke learned to regard with distrust, mingled with personal contempt for his duplicity.

At home, the duke was the object of innumerable honours. A mansion was erected for him, called Apsley House, at Hyde Park Corner, £200,000 was voted to purchase for him and the inheritors of the title, the estate of Strathfieldsaye, in Hampshire, which is entailed, on condition of the noble owner, for the time being, annually presenting a tri-colour flag to her majesty, on the 18th of June, the anniversary of the

battle of Waterloo. These flags have been since accumulating, and hang in the armoury of Windsor Castle, with similar trophies commemorative of the battle of Blenheim, rendered by the heirs of the great Duke of Marlborough.

In 1818 the duke was made master-general of the ordnance; in 1819, governor of Plymouth; and in 1820, colonel of the Rifle Brigade.

The great continental courts in 1818 gave him the rank of field-marshal in their respective armies, together with military and civil distinctions, such as were only customarily conferred on crowned heads, or the very noblest of their subjects.

Meanwhile the British Isles were intensely agitated; a cry for parliamentary reform resounded from the gates of Buckingham Palace to the Land’s-end, to John O’Groat’s house, and to the cliffs of Connemara. Roman Catholic emancipation was another demand, which was ceaselessly heard, and the Protestant dissenters of England were active and importunate in demanding redress for the grievances of which they complained. The duke was adverse to all these concessions, and determined to resist them as long as they could be resisted, with safety to the crown and peerage. The people hated the prince-regent, and when he reached the throne as the fourth George, he was one of the most unpopular monarchs in Europe. The measures adopted by this prince to preserve illiberal institutions were bloody and remorseless; executions for political offences were numerous all over the land, men of virtue and honour were incarcerated for liberal opinions uttered or printed, public meetings were put down by charges of cavalry, or by cannon loaded with grape and canister, drawn up against an unarmed and really loyal people, exasperated by unendurable oppressions. Against these wickednesses the duke exerted no influence, raised his voice in no protest, but was in the minds of the people regarded as one of the haughtiest of their oppressors. On the death of Lord Liverpool, and the appointment of Mr. Canning to the premiership, he received from the duke an uncompromising, bitter, and ungenerous opposition. Canning was professedly a Conservative, but his opinions were moderately liberal, and everything liberal was resisted by Wellington and his _alter ego_ in politics, Mr. Peel, afterwards Sir Robert. There was a bigoted and angry party spirit in all the duke’s proceedings. He would not command the army nor direct the ordnance, but resigned all his military offices, because the king made Canning the chief of a ministry in which the duke himself served. Canning and Huskisson introduced a corn-bill, which was the first relaxation proposed by members of a government to the corn-law. This measure had been prepared in the Liverpool cabinet, and received the assent of the duke himself; yet such was his animosity to the moderately liberal policy of Canning, that he proposed the rejection of the bill in the lords, and threw it out. There was a want of honour and good faith in this conduct, wholly at variance with the manly, frank, straightforward character of the duke, and there is no way of accounting for it but by supposing that he was instigated to the course he adopted by Peel, whose tortuous and uncertain principles and policy began to assume prominence. It was Peel’s character throughout his career to betray all who trusted in him as a leader, and to cany by trick and treachery all the measures against which, in his public life, he most vehemently and acrimoniously inveighed. The duke was taunted in the house with intriguing for the premiership. He declared,

in reply, that he was “unqualified for such a situation.” Nevertheless, when offered, he accepted it. He declared that he “should be mad even to think of it;” but he did think of it, at all events afterwards, and took it, and also filled it better than his tory predecessors. Perhaps the truth of the case was, that Peel originated all the intrigues against Canning, in which the duke was unconsciously an abettor of the designs of that artful man. Peel saw that his best hope of attaining to the chief post in the councils of the country was by using skilfully and patiently the influence he had acquired over the duke. He foresaw, as it was easy to foresee, that events would soon make the duke tired of the post, and that he would in such case certainly devolve it upon him, as “his man of all work.” One of the most harassing oppositions to which an English premier was ever exposed was directed and led by Wellington and Peel against Canning, chiefly on the ground of his willingness to concede Catholic emancipation, and some relaxation of the duties upon corn, and the restrictions upon trade. In this opposition the duke was sincere, but there is good ground for believing that Peel, filled with envy against Canning, was already laying his own schemes for carrying concession even farther than Canning or Huskisson ever dreamed of doing. Canning was shamelessly deserted and betrayed on all hands. He displayed wonderful ability, justifying the language of Byron: “Canning is a genius, almost a universal one, a scholar, a wit, a statesman, an orator, and a poet.” He struggled against the factious opposition treacherously carried on in the name of principles by men who, like Peel, felt no homage for them, until his proud and sensitive heart broke. The Peel and Wellington faction killed him. In the fourth month of his premiership he died at his post, leaving to posterity a great name, and an eternal reproach against his unprincipled persecutors.

Lord Goderich (“prosperity Robinson”) could not carry on the government. The duke was made premier, eight months after he had publicly declared his own incapacity for such an office. One of his first acts, notoriously under the influence of Peel, was to give office to Huskisson, the champion of free trade, and the energetic colleague of Canning! He added four more of Canning’s colleagues. Thus, after he and Peel had declared Canning and his cabinet to be irreligious, revolutionary, and dangerous to the country, in all the cant phrases of the time, their very first act was to take possession, as it were, of the Canning cabinet itself, and next of the Canning policy, on account of which the illustrious dead had been solemnly denounced by the one, and vituperated, in a manner far exceeding parliamentary licence, by the other. The repeal of the corporation and test acts, demanded by the dissenters, the emancipation of the Roman Catholics, and the claims of the commercial community, and the political economist, for a relaxation of the protectionist policy were now to be satisfied; but the policy chosen was to keep all these parties at bay, to resist all melioration of things as they were as long as possible, and then to concede nothing on the ground of justice, or of human rights, but only what popular power could force. This policy Peel did not manage happily, and the duke was brought down with him as by a dead weight. The parliamentary tact of Peel, his debating power, his aptitude for public business, and the singular influence of the duke, worked wonders for a time; but eventually much more had to be conceded to the public power, than, if at first and generously, the government had shown a reforming spirit, would have been at once

insisted upon.

Lord John Russell moved for a repeal of the corporation and test acts, oppressions which goaded the dissenters, and which in themselves were as profane as they were hypocritical. Of course the duke and Mr. Peel resisted this, but the House of Commons carried the measure.

Instead of the duke and “his man Friday,” as the wags of the day termed Peel, resigning, as men of honour ought to have done, they resolved to take up the measure against which they had voted and argued, and uttered the most earnest warnings on the sacred ground of religion! The duke carried the measure through the House of Lords!

A month afterwards a corn-bill, the first inroad actually effected upon the protective system, was carried in the House of Commons. The duke declared the repeal or modification of the corn-laws to be especially wicked, as injuring the landed interest; nevertheless, he took up the measure and carried it through. Corn might come in, if only Whigs and Radicals could be kept out. Thus early, measures which Canning proposed with consistency and honour,—and for proposing which these men hunted him to death,—they inconsistently, and with a violation of principle which lowered the character of public men, carried through parliament to preserve the ministerial ascendancy of Peel and the party.

As the session advanced the spirit of reform both in and out of parliament advanced. Penryn and East Retford were rotten boroughs, with only a handful of constituents. The reformers demanded the transfer of the representation from two such insignificant and corrupt places to Manchester and Birmingham. The duke would not consent to the enfranchisement of the two great centres of manufactures; he held fast by the rotten boroughs. Huskiseon, Grant, Lamb, and Lords Dudley and Palmerston resigned. Thus the Canning cabinet was expunged, and a pure tory remainder formed the nucleus of a new ministry, which was composed of Lord Aberdeen, Sir H. Hardinge, and Sir George Murray,—men in every way immeasurably inferior to those who, no longer able to follow the bigoted yet inconsistent and time-serving policy of the duke and Peel, were obliged to resign office.

The state of Ireland now became alarming. The Roman Catholic population, led by O’Connell, menaced insurrection, and a system of agitation was maintained very effective, and very embarrassing to government. The Roman Catholics knew that nothing would be conceded by Wellington and Peel on principle, but that anything might be wrung from them, if, by the concession, they supposed that they thereby gave a longer lease of power to the privileged classes. The army began to discuss the question of religious disability, and a third of the force was alleged to be Roman Catholic. The duke came to the conclusion that to avert civil war, Roman Catholic emancipation must be effected. In his public statements he greatly exaggerated the dangers of withholding the measure; but as neither he nor Peel were supposed at heart to be very earnest, although very illiberal Protestants, the public considered it a new trick to take popular public measures out of the hands of the liberal party, to pass them in forms less in harmony with the principles involved in them, than would

have been the case if carried by the Whigs. In February, 1829, the measure of Roman Catholic emancipation was announced in the speech from the throne, and was carried through parliament by all the power which the ministry could command. The high Protestants lost confidence in the duke, and the Earl of Winchelsea impeached his private honour in connection with the events which had transpired. On the 31st of March the duke and the earl met in Battersea Fields to fight a duel. The duke fired and missed; Lord Winchelsea fired in the air, and the affair terminated. Throughout the political transactions of his premiership his grace showed much passion, and a tyranny to his colleagues in office more suitable to the barrack-room than the cabinet. Peel was the abettor of all this, and by many deemed the inventor of it. After conceding such a large measure of religious liberty, his grace seemed to dislike more inveterately than ever all measures of free-trade and parliamentary reform. The French revolution of 1830 excited the whole country, and an agitation for reform of threatening magnitude arose and spread throughout the land. He had the hardihood to attempt prosecutions of the press, although by such means the French king had brought about his dethronement. He defied public feeling, and did so with an air of peremptory authority and insolence offensive to parliament and the people. He became one of the most unpopular men in England. Almost all parties united in deeming him unfit to lead the government of the country in such a crisis. He was hooted by mobs in the streets; the windows of his mansion were broken, and had to be defended by iron casings. A new parliament was elected; a reform was demanded. The duke met the demand by a sturdy defiance. He declared, “that the country already possessed a legislature which answered all the good purposes of legislation, that the system of representation possessed the full and entire confidence of the country, and that he was not only not prepared to bring forward any measure of reform, but would resist such, as long as he held any station in the government of the country.” With those words the career and credit of the duke as a statesman may be said to have closed. A perfect hurricane of rage arose around him through all the land. He was hurled from power, and the Whigs came into office pledged to a Reform Bill, which, after vain and fierce opposition, became the law of the land. King William IV. became alarmed at the rapid progress of reform; he suddenly dismissed the Whigs, and “sent for the duke.” The latter failed again in his discernment of the true slate of public feeling in England. He refused to become premier, advised the king to send for Sir Robert Peel (what the latter had been all along planning and expecting). Sir Robert arrived and formed a ministry, the duke becoming minister of foreign affairs and leader of the government party in the House of Lords. This ministry was speedily swept away by the popular indignation, and the Whigs again returned to power. From that time the duke seems to have made expediency his sole rule of political action; he became heart and soul a Peelite. In 1841 he had an opportunity of upholding Sir Robert Peel in power for some time, and of aiding him in the great work of commercial and economical reform, against which both had all their life protested and straggled. It can hardly be urged in excuse for the duke’s long opposition to commercial reform, that questions of finance and political economy were out of the proper range of his subjects, for he was a first-rate financier, and a successful student of political economy. He is represented to have said of himself that his true genius was the Exchequer rather than the War Office. “At one of the most critical

conjunctures of the Peninsular war, he drew up a most able paper on the true principles of Portuguese banking; and at Seringapatam, after very serious evils had been experienced from a long-standing debasement of the coinage, a memorandum was accidentally discovered in the treasury from the pen of Colonel Wellesley, every prediction and observation of which had been exactly verified by events." His desire to stand by his order, to uphold government by that order, and to maintain its revenues by the protection of territorial produce overpowered alike his sense of justice, and his patriotism.

In 1843, he resumed the office of "commander-in-chief of the land forces," which he held until his decease. In his management of the army, he displayed the same repugnance to reform as in civil life, and a determination to resist all changes that lessened aristocratic influence in its government, or the promotion of its officers. The liberal views and measures which spontaneously emanated from the Duke of Cambridge, in 1858–9, would have been impossible to the Duke of Wellington, except under such a pressure of popular power as made a concession of some things necessary to preserve others. The improvements which gradually grew up in the condition of the common soldier seldom, almost never, had his approbation, and were generally carried out by successive whig governments in opposition to the commander-in-chief.

On the 10th of April, 1848, when the great Chartist meeting took place near London, the dispositions made by the great duke to put down any attempt at insurrection, excited the admiration of all military men.

At no period in the Duke of Wellington's history did he so fully enjoy the confidence and respect of his countrymen as when death approached. The mode of his death was such as might be expected at his advanced age. It was easy—as the lamp expires when the oil which fed it becomes exhausted. One of the honours which he bore was that of warden of the Cinque Ports; he was therefore staying at Walmer Castle when his brief but fatal illness occurred. His remains were there placed in a coffin, which the inhabitants and the troops of the surrounding garrisons were permitted to see. On the 10th of November, the body was removed to London, and laid in state at Chelsea Hospital, where a vast concourse of persons were permitted to see it. Thence it was taken to the Horse Guards, whence the funeral procession went forth to St. Paul's Cathedral, in the dome of which, beside the body of Nelson, it was to be deposited. The funeral was the grandest which ever took place in England, or perhaps in Europe. Military representatives from all the important nations in Europe, except Austria, attended. Vast multitudes of people crowded the thoroughfares along which the procession moved, and of that multitude exceeding great numbers were dressed in deep black. In parliament and throughout the country, demonstrations of respect for the memory of the departed hero were made, and the court went into mourning. Thus closed the life and obsequies of one of the greatest men to whom the British Isles had ever given birth. His grace was a widower at his death. He had married, in 1806, an Irish lady of rank, the Honourable Catherine Pakenham, daughter of the second Baron Longford, and sister to the gallant Generals Pakenham, who distinguished themselves under the command of his grace in the Peninsular. The

duchess died in 1831, leaving two sons, the Marquis of Douro, heir to the title, and Lord Charles Wellesley, both military men. Lord Charles Wellesley, from loss of sight, has since been obliged to give up the military profession; and the successor to the great duke, although a man of general talent, and allowed by military men to possess remarkable ability for the profession of arms, has not followed that career, but maintains a high position at court and in public affairs.

THE COURT.

There were few incidents connected with the court in 1852 interesting to the general reader. Her majesty and the royal family spent the usual season in London, especially in connection with ministerial changes and parliamentary proceedings. Windsor Castle and Osborne House also received their royal proprietor at the accustomed seasons. In the summer, however, her majesty made a cruise in her yacht, before retiring to her autumnal Scottish retreat. A royal yacht squadron escorted the queen and the royal household from Cowes along the southern coast of England to Plymouth, the party landing at various points celebrated for their picturesque situation. Having cruised about the south and south-west coast, the squadron returned to Osborne. At the close of August, her majesty, the prince, and the elder five children left Osborne for Balmoral. Her residence there was shortened by tidings of the death of the Duke of Wellington, which reached her September 16th. Early in October she left for Windsor, visiting _en route_ the Menai Straits, and passing through the tubular bridge.

A curious circumstance occurred to her majesty on the 30th of August. The royal lady was then made aware that she was legatee to a large fortune, bequeathed by a barrister of Lincoln’s Inn. He was a man of singularly penurious habits, allowing himself to be in want of necessary food, and neglecting cleanliness. An old housekeeper, who had served him twenty-six years, he left without any provision whatever. The sum bequeathed to his sovereign was £250,000.

[Illustration: 819.jpg SOUTHAMPTON]

PARLIAMENTARY PROCEEDINGS AND PARTY CONFLICTS DURING 1852.

The parliamentary history of 1852 was in various respects eventful. It was rendered so by the character of the debates both on home and foreign questions, by the rivalry of Lord Palmerston and Lord John Russell, for the leadership of the whig party, the changes of ministry, and the last effort of the tory and protectionist party to gain ascendancy.

On the 3rd of February the queen opened parliament in person. “The speech” referred to the necessity of amending the Reform Bill. Lord John Russell hoped by this means to prolong his lease of power, which was seriously menaced in consequence of his dismissal of Lord Palmerston from the cabinet the previous year. Such was the confidence reposed in that noble lord by the commons and the country for the management of foreign negotiations, that from the moment it was understood that serious differences existed between the premier and the foreign secretary, the government lost its moral power. An impression also gained ground throughout the country that Prince Albert interfered with the legitimate transaction of business at

the foreign office, that the premier was so much of a courtier as to connive at this, and that Lord Palmerston, having asserted the dignity and independence of an English minister, became an object of dislike to the prince, Lord John sacrificing his colleague to the caprices of the court. Whatever might have been the truth, these impressions prevailed among the people, and contributed to Lord John Russell's displacement from office. Even after both those noblemen gave explanations in the commons, the public retained the impressions, sympathised with Lord Palmerston, and withdrew much of their confidence from Lord John, nor has his lordship been able to regain the popularity he previously possessed, even up to the time these sheets are passing through the press, near the commencement of the year 1860.

Parliament had only just met when Sir Benjamin Hall, by questions directed to the premier, brought out a statement of the circumstances which led to his dismissal of the popular foreign minister. It appeared that without any instigation from Lord John, the queen complained to him of the management of the foreign office. Her majesty demanded that all despatches should be shown to her, that no decision on foreign questions should be made by the foreign minister until her opinion was taken, that no despatch which she had signed should be arbitrarily altered by the minister, and that she should receive early and prompt intimation of all negotiations between the foreign office and the ministers of foreign courts. Her majesty directed Lord John Russell to show the document conveying her demands to the foreign secretary. From the production of this stern, severe, and rebukeful missive from the royal hand, it became evident either that Lord Palmerston had failed in his duty, abused the confidence of her majesty, and behaved with intolerable insolence, assumption, and arrogance, or that a conspiracy existed to prejudice the mind of the queen against a faithful and most competent minister, and that the premier either aided that conspiracy, or took no decided stand to resist it. It appeared that the main occasion of the cabinet and court differences with Lord Palmerston was in connection with the _coup d'état_ in Paris. The court and the premier sympathised with the house of Orleans, and consequently with the opposition given by the French assembly to the president of the republic. Lord Palmerston believed that the assembly provoked the conduct of the president by invading his constitutional rights, and by violating the constitution formed by the constituent assembly, and in virtue of which the legislative assembly of France existed. Despatches sent to the English minister at Paris, the Marquis of Normanby, of a private nature, were by that nobleman shown to the French minister for foreign affairs, and out of that event arose the complication. Lord Palmerston pleaded unqualified innocence of the impeachment implied in her majesty's written commands to Lord John. Lord Normanby was well known to be of Lord John's section of the whigs, and a court favourite. From all these circumstances, the country drew the following conclusions with extraordinary unanimity:—that Lord Palmerston acted with more independence of the first minister than was customary on the part of a secretary of state, but that his great talents, great experience, great influence at home and abroad, justified him; that Lord John Russell was imprudent in overlooking the peculiar claims and qualifications of the foreign minister, displayed an unworthy jealousy of his great colleague, and probably by his private complaints of insubordination, caused the letter of her majesty, so humiliating to her long-tried and

most able minister; that Lord Normanby either showed grave indiscretion, or played his part in a plot adverse to Lord Palmerston; and finally, that the court was unduly sympathetic with the Orleans dynasty. No efforts on the part of Lord John Russell's friends could root out these convictions from the general public, and although the House of Commons said little about it, there were sufficient indications given that such convictions were largely shared there. In the debate that ensued, all sides of the house expressed confidence in Lord Palmerston's sense of duty and responsibility, and respect and admiration for his talents. It became at once evident that the days of Lord John Russell's ministry were numbered, and that it must be long, in any fresh ministerial combinations, before he could occupy the same high post in the counsels of her majesty.

PARLIAMENTARY REFORM.

On the 9th of February, Lord John made a statement as to his views of parliamentary reform. His lordship proposed the disfranchisement of all small constituencies proved to be corrupt by a system of inquisition adapted to the purpose. He declared that a ten-pound franchise in boroughs was too high, and proposed a five-pound franchise. The county franchise of fifty pounds he would reduce to twenty pounds. The copyholds and long leaseholds of ten-pound qualification he would reduce to five pounds. All persons living within boroughs paying two pounds a-year assessed taxes he would enfranchise as county voters. Boroughs having less than five hundred electors were to have the number of the enfranchised augmented by adding neighbouring towns in the same representations. Property qualification of members to be repealed. Reform, mainly on the game plan, to be extended to Scotland and Ireland.

Mr. Hume expressed dissatisfaction with any measure that did not comprise the ballot and triennial parliaments, and a large number of liberal members sympathised with the radical leader. The majority of the liberal members received the announcement of the premier with great favour. His lordship proposed introducing a bill on the 23rd of February. Sir Robert Inglis and Mr. Newdegate opposed the measure with expressions of earnest apprehension, because it was proposed by Lord John to abolish the oath of abjuration. Mr. Disraeli, however, offered the chief opposition to the measure. He endeavoured to lead the house to postpone the consideration of the bill, but obviously for the object of gaining time to throw out the bill itself. Sir George Grey, in a speech of unusual felicity, exposed the dishonesty of Mr. Disraeli's pretences as to the necessity of delay in order to perfect measures which he was eager to defeat.

The house gave leave to bring in the bill. It never was brought in, new events depriving its author and the cabinet of the power to carry any measure. The foregoing statement of the character of the proposed reform bill of 1852 is, however, important, as the question of reform occupied attention for several years subsequently in a serious degree, and "the proposed bill of 1852" was constantly referred to by all parties in the discussions which took place.

THE MILITIA BILL.—DEFEAT AND RESIGNATION OF THE CABINET.

On the 16th of February, Lord John, in a committee of the whole house, explained his intentions in reference to the local militia acts. This question excited considerable interest, as the Duke of Wellington and Sir John Burgoyne had pointed out the possibility of an invasion, and the defenceless state of the coasts and of the country generally. The _coup d'état_ in France had also created considerable public uneasiness. The secrecy, sternness of purpose, swiftness of action, boldness, and indifference to bloodshed shown by the president of the French republic, caused most men to reflect upon the possibility of some terrible _coup de main_ being attempted against England; the president, in his writings as Prince Charles Louis Napoleon Buonaparte, having so often asserted that he represented a defeat, the defeat of Waterloo, which France must avenge. Lord John proposed to allow the plan of "the old regular militia" to fall out of use, and to establish a new scheme for a local militia. Ireland was to be exempt from the measure. In twelve months, the number of men to be raised was 70,000, in two years 100,000, in three years 130,000, after which period Great Britain alone should furnish, if necessary, 180,000 men.

Lord Palmerston's expulsion from the cabinet was then about to tell on the ministry, and the future history of party. His lordship opposed the ministerial measure; and, released from ministerial privacy, declared that he had urged upon Lord John in vain since the year 1846 the organization of a militia. His lordship opposed the plan of a local militia, preferring the old force, and, as an Irish peer, expressed some warmth that Ireland was excluded from the arrangement.

When the bill came forth from the committee, Lord Palmerston proposed amendments in harmony with the principles upon which he had criticised the measure on going into committee. The two noble lords were now fairly pitted against one another as rivals for parliamentary influence, and the result was the defeat and resignation of Lord John Russell. The Irish members supported Lord Palmerston in great force, and threw out the ministry. His lordship also received considerable support from the Derby-Disraeli party. From that moment it was obvious that Lord John ceased—at all events for many years, should Lord Palmerston survive—to be the leader of the House of Commons.

THE EARL OF DERBY'S ADMINISTRATION.

The majority in favour of Lord Palmerston's measure caused the adjournment of the house. The queen sent for Lord Derby, and committed to him the reins of power.

One of the first acts of his lordship, after conferring with Mr. Disraeli and a few of his most attached adherents, was to offer a seat in his cabinet to Lord Palmerston. Mr. Disraeli had, however, in the debate upon the address, renewed his agitation of the previous year for re-adjusting taxation in favour of the landed interest, as compensation for the loss of high prices for corn, which had been secured by protection. As this was only another mode of re-enacting protectionist laws, and one which was especially offensive to all the community not inheriting land, it was impossible for Lord Palmerston to accept office with Lord Derby, even if their political differences were less. Failing to strengthen his government by the accession of Lord Palmerston, Lord Derby, had recourse to Mr. Gladstone, but his repugnance

to act with Disraeli personally, and his opposition to the protectionist schemes of both that minister and Lord Derby, rendered all negotiations unsuccessful. The ministry, therefore, became a pure tory and protectionist cabinet, except so far as Lord Stanley was concerned, whose opinions were supposed to be liberal, although connected with the ministry by the influence of his father.

The following ministry was ultimately formed:—

In the Cabinet.

First Lord of the Treasury ... Earl of Derby.

Lord Chancellor ..... Lord St. Leonards.

Chancellor of the Exchequer Mr. Disraeli.

President of the Council ..... Earl Lonsdale.

Privy Seal..... Marquis of Salisbury.

Home Secretary ..... Mr. Horace Walpole.

Foreign Secretary..... Earl of Malmesbury.

First Lord of the Admiralty..... Duke of Northumberland.

President of the Board of Control Mr. Hume.

Post-Master General ..... Earl of Hardwicke.

President of the Board of Trade Mr. Henley.

First Commissioner of Woods/Forests Lord J. Manners

Not in the Cabinet.

Commander-in-Chief of Her of Majesty’s Land Forces ..... Duke of Wellington.

Master-General of the Ordnance Viscount Hardinge.

Paymaster of the Forces, and Vice-President of the Board of Trade Lord Colchester.

Chancellor of the Duchy of Lancaster.... Mr. Christopher.

Secretary at War ..... Major Beresford

Secretary of the Admiralty..... Mr. O’Brien Stafford.

Attorney-General..... Sir Frederick Thesiger.

Solicitor-General ..... Sir Fitzroy Kelly.

Judge Advocate-General..... Mr. Banks.

Chief Poor-Law Commissioner..... Sir George Trollope.

SCOTLAND.

Lord-Advocate..... Mr. Anderson.

Solicitor-General ..... Mr. Inglis.

IRELAND.

Lord-Lieutenant ..... Earl of Eglinton.

Lord-Chancellor ..... Rt. Hon. Mr. Blackburn.

Chief Secretary..... Lord Naas.

Attorney-General..... Mr. Napier.

Solicitor-General ..... Mr. Whiteside.

QUEEN'S HOUSEHOLD.

Lord-Steward..... Duke of Montrose.

Lord-Chamberlain..... Marquis of Exeter.

Master of the Horse..... Earl of Jersey.

Mistress of the Robes ..... Duchess of Athole.

This ministry was but slightly modified during the year, and altogether apart from political changes. The death of the Duke of Wellington led to the appointment of Lord Hardinge to the Horse Guards, Lord Raglan becoming master-general of the Ordnance.

This ministry was not popular. In the cabinet the lord-chancellor was not an accession of strength. Although a very high Tory, he was not liked by the aristocracy; and although a very good lawyer, he was believed by the country to be narrow-minded and prejudiced. Lord John Manners was extremely unpopular, in consequence of his well-known couplet, expressive of the desire that learning and commerce should perish rather than that the power of the aristocracy should be diminished. The Duke of Northumberland was considered utterly unfit for the important duties imposed on him, and it was supposed that he would patronise "jobbing," and promotion by unfair means.

Out of the cabinet, the English appointments were generally severely criticised, except those of the household and the law officers. These latter were considered able men, but bigoted partizans—clever enough for attorney-general and solicitor-general, but very unsuitable for judges, to which honours the offices notoriously led.

All the Irish appointments were popular in Ireland, although the gentlemen who filled them belonged to a party of so small a minority. Lord Eglinton was a gentleman personally liberal and generally esteemed, generous, and off-hand, fond of Ireland, and adapted to intercourse with the Irish. Mr. Blackburn, the lord-chancellor, was considered the greatest equity lawyer in Ireland, and an impartial judge. Lord Naas, the chief secretary, was an Irishman who knew the country well, and was connected with many popular families. Joseph Napier was held to be a first-rate lawyer and scholar, a polished gentleman, and a sincere Christian. Whiteside was regarded as having too much of the clever, eloquent, fiery Irish agitator in his own constitution, not to have some complaisant sympathy with such qualities in his countrymen.

Accordingly, the government worked well in Ireland for its own ascendancy, but every step it took in England rendered the hope of ministerial longevity impossible. Lord Derby and Mr. Disraeli were personally liked; both were believed to be more liberal than their relation to their party allowed, and their brilliant eloquence made the country proud of them in or out of office.

The time soon arrived for testing the House of Commons as to the amount of toleration it was likely to show to the new ministry. On the 27th of February, Lord Derby offered the lords an exposition of his views, which, even while he was yet speaking, found its way substantially to the commons, and was buzzed about among the members. In his speech, his lordship disavowed any intention to interfere violently with free-trade principles, but avowed himself still a Protectionist, declaring, that in his opinion, the importation of all articles which competed with the industry of the country ought to be taxed, and that corn ought not to be exempt. A report of his lordship’s speech had scarcely reached the commons, when it was evident that so far as the parliament then sitting was concerned, the doom of his ministry was sealed. When, the next day, the wings of the press bore to the country his lordship’s oration, indignation was everywhere excited, and the free-traders were united and strengthened, in a manner they had not been from the time of the repeal of the corn-laws.

Lord Derby made a statement connected with reform, which proved to be nearly as distasteful to a majority of the people out of doors as that on free-trade. He expressed his intention not to proceed with Lord John Russell’s reform bill, which he described as unsettling everything and settling nothing, which began by exciting the country, and finished by dissatisfying it.

His lordship, as if not satisfied with the opposition such statements were likely to raise against him, provided himself with a third element of hostility, by invoking the assistance of his hearers for the extension of the established church, and of an education entirely under the control of the parochial clergy. The dissenters and Roman Catholics were much alarmed ly this portion of his lordship’s speech, and quietly, but extensively and effectually, prepared to give a strenuous opposition to his government. Thus, in his _début_ as premier, Lord Derby contrived to set against him the free-traders, reformers, dissenters, and Roman Catholics, at a moment when there was a majority against him in the commons. The premier’s oratorical onslaught was so indiscreet, that only the most headstrong and ignorant of his own party had any hope that he would display the tact, sagacity, self-control, and party-moderation which alone could enable him to hold his ground against the opposition in the commons, and the general want of confidence in his ministry.

Such was the imprudence of the first minister, that although Earl Grey gave him an easy opportunity of withdrawing his anti-free-trade doctrines, the most in the form of concession which he (Lord Grey) could extort was, that the government had no _present_ intention of proposing a tax on the importation of corn, but regarded it as a question still open, and remaining with the intelligence of the country for solution. Some of the high whig peers expressed their approbation of his lordship’s views in terms of warm support. On the other hand, the Earl of Aberdeen strenuously opposed

the purpose which the government evidently contemplated, of imposing a new corn-tax.

In the commons, an adjournment to the 12th of March was proposed and carried.

When the houses resumed their sittings, it became evident to the government that the imprudent speech of Lord Derby had roused the opposition to a high pitch of excitement. Demands were made as to whether the government intended to re-impose the corn-laws. No honest answer could be extracted in either house—experience had made the leaders wary: the answers given were, in effect, that the government would abide by the decision of the country. This reply made it evident that parliament was to be dissolved on the question of free-trade and a corn-law. After the country had reasonably concluded that the question was settled, fierce disputes from end to end of the kingdom were about to be raised. The old members of the Corn-law League accordingly convoked meetings in London and Manchester, and it was determined to resuscitate that powerful body, and with new and more effectual instrumentalities of agitation, upon the first proposition for imposing a tax upon the importation of corn. The uneasiness throughout the country became very great, and a personal ill-will to the two tory leaders began to show itself in the north of England, and throughout Scotland.

On the 15th of March, Lord Beaumont presented a petition from certain inhabitants of the West Biding of Yorkshire, praying the house to set at rest the question of free-trade, as commercial enterprise was seriously injured. Lord Derby answered that he did not consider the question settled, and that the next general election must decide it. On the same evening, Mr. Villiers, the leader of the anti-cornlaw party in the commons, demanded final and explicit explanations from the government, alleging that distrust and alarm filled the country. Mr. Disraeli denied the statements, and resorted to the usual tricks of words to evade the interrogatory; the inference from his reply was that a desperate effort would be made to gain a corn-law majority in a new House of Commons, and, in case of success, re-impose the corn-laws. Lord John Bussell, Sir James Graham, Mr. Gladstone, Lord Palmerston, Sir A. Cockburn, and other prominent men on the liberal side of the house, expressed their determination to offer every resistance they could employ to the re-imposition of any duty, in any form, upon the importation of corn.

Rumours began to circulate, that the government would endeavour to go on with the public business in the face of an adverse majority, and on the 19th of March, the Duke of Newcastle demanded explanations in the lords from the premier. The duke presented a petition from the Commercial Association of Manchester, praying for relief from the confusion and uncertainty thrown into commercial operations by the speeches of the leading members of government, in fact, demanding that the question of a corn-law should once more be submitted to the country. Lord Derby denied the assertions of the Manchester Association, refused to dissolve parliament, or to give any explicit information as to his intentions in reference to free-trade.

In the House of Commons, the same night, Lord John Bussell demanded that the public should be at once relieved from all uncertainty by an appeal to the country. So

decided and angry was the aspect of the house, and so loud the demonstrations of its determination not to be trifled with on the great subject of a corn-law, that Mr. Disraeli was compelled to give that assurance which Lord Derby refused, and pledged the government to dissolve parliament, and meet the new house within the year, and as soon after the public business necessary to the country was disposed of.

It was, however, found difficult to transact business—the house was so excited; so that the question of dissolution was again and again renewed in angry and almost boisterous terms. Mr. Cobden called the attention of the house to the fact that the country had once more a protectionist government; that the fact was indisputable, and ought to be met with that intelligence and decision which became the greatest question of the day. He urged the house to limit the rates of supply, until the country decided whether it wished a tax upon bread, to enrich the landlords. Mr. Cardwell, in language as decided as that of Mr. Cobden, urged the house to fulfil its constitutional obligations, and compel the government of the minority to give suitable assurances of an early dissolution. Lord John Bussell declared that the government had taken a course for which there was no precedent in the constitutional history of England. He followed Mr. Cobden and Mr. Cardwell in insisting upon the government adopting such a course as to a dissolution, as would remove from the house the necessity of taking measures to assert its own high prerogatives. Mr. Disraeli declined pledging the government more definitely than he had done, which drew from Mr. Bright an invective full of fire, yet marked by a dignity unusual with that honourable member; he demanded that the supplies should be stopped, or the house be assured that no effort would be made by the government to retain power by unconstitutional methods. The result of these vigorous proceedings were statements made in both houses on the part of the ministry, that it was the intention to dissolve parliament and have an autumn session to settle the question of protection. It does not appear that these promises were made in good faith;—at all events no autumn session was called, although a new parliament met in November, and the question in debate set at rest.

The government introduced a militia-bill, which Lord John Bussell and the Whigs generally opposed. Lord Palmerston supported the government, as did the Peel party, his lordship criticising the tactics of Lord John with severity. The opposition between these two statesmen kept the liberal party divided, and alone enabled the government to maintain its course.

Lord Brougham introduced a bill to enable parliament to meet thirty-five days after a dissolution. The bill was carried through both houses without opposition.

The government took up a bill of Lord John Russell’s for the disfranchisement of the borough of St. Albans, on account of gross bribery and corruption. The bill was carried, no opposition being offered except by a small number of Lord Derby’s own party in the House of Lords.

Sudbury and St. Albans being disfranchised, a question arose as to the appropriation of the four seats. On the 10th of May, Mr. Disraeli brought in a bill for the purpose, proposing that the four vacant seats be given to great county constituencies in the north of England. Mr. Gladstone opposed the measure, on the

ground that the government was trifling with the prerogatives of the house. It was a government in a minority, and its duty was to pass no measures but such routine business as the country absolutely required. Mr. Disraeli had given this promise, and, notwithstanding, sought to appropriate to county constituencies the four borough votes of which other constituencies had been penally deprived. The speech of Mr. Gladstone was received with enthusiasm by the house, and his amendment, “That the house do pass to the order of the day,” was carried by a very large majority. That this was purely a party movement of Mr. Gladstone was soon made evident enough, for he assisted the government soon after in carrying a bill for giving New Zealand a constitution; and he himself brought in a measure termed “the Colonial Bishops’ Bill.”

Various motions were brought under the consideration of the house, but were received with impatience, and all further attempts of government to prolong the session by inducing the house to entertain bills, were fruitless; all were bent upon one object,—that of bringing to an issue before the country the question of the re-imposition of a tax upon corn.

FOREIGN POLICY OF THE GOVERNMENT.—OUTRAGE ON MR. MATHER AT FLORENCE.

The impatience of the house for a dissolution did not prevent it from discussing the foreign policy of the government. It was considered that Lord Malmesbury had shown a sympathy for despotic states, and had by his diplomacy played into-the hands of Austria, and the petty tyrannical Italian governments. Lord John Russell brought his lordship’s conduct, as well as the policy of the government, before the house on the 14th of June.

In the last chapter, our readers were informed that a young English gentleman of moral excellence and high culture, the son of a patriotic and influential gentleman of the county of Durham, named Mather, was wantonly cut down in the streets of Florence by an Austrian officer. Lord John Bussell exposed the conduct of Lord Malmesbury in this affair, and was ably supported by Lord Palmerston. The government suffered much in reputation, both in the house and throughout the country, from this debate. Their defence was extremely feeble, while the attacks of the opposition glowed with indignant eloquence. Probably at no period of party strife did the two great parties in the house appear more strongly contrasted than during that debate. Lord John Russell and Lord Palmerston spoke with exceeding force, and uttered sentiments worthy of British patriotism and British statesmanship. Mr. Disraeli, on the other hand, spoke with an apathy, where insults to England and to a defenceless Englishman were concerned, which was discreditable to a statesman of any free country, or indeed to any speaker that had a sympathy with manhood and national dignity. In the elections which ensued, the tone adopted on that occasion by the chancellor of the exchequer, and the conduct of Lord Malmesbury, told effectively against the government in various constituencies in the north of England. A feeling was created that the rights of Englishmen in foreign countries were neglected by their own government, and that so far as English ambassadors and ministers were concerned, Englishmen abroad were at the merey of any foreign tyrant who thought proper to wrong them. This feeling had extended for some years upon the continent,

and the debate in the commons promoted by Lords John Russell and Palmerston, brought out such glaring criminality on the part of the English foreign office in connection with Mr. Mather, that the sentiment became strengthened on the continent that unless an English traveller had powerful connections in his own country, he might be made the object of foreign outrage with impunity. Mr. Bernai Osborne only expressed the truth in the strong language with which he concluded his speech, “Lord Malmesbury had trifled with the honour of the country, and disgraced it in the eyes of the whole continent of Europe.” In the House of Lords, warm debates arose upon the same question, in which Lord Malmesbury made a defence still more disingenuous and unpatriotic than it was feeble.

LAW REFORM.

Notwithstanding the difficulties of the government, various useful bills which had been prepared by the Whigs, but which the Russell government was unable to carry, were passed into law. By the end of June, all these measures were enacted as laws.

PROROGATION AND DISSOLUTION OF PARLIAMENT.—GENERAL ELECTION.

On the 1st of July, her majesty in person prorogued her parliament, and announced her intention of speedily dissolving it. This event took place shortly after, and was followed by a general election, when the voice of the country was so decidedly given against protection as to cause the abandonment of all idea by the protectionist party of re-imposing a corn-law. The orators of the government, however, announced throughout the country their intention to promote a parliamentary struggle for the re-adjustment of the public burdens, so as to relieve the landlord interest of a large share of the proportion of the taxes borne by them.

MEETING OF THE NEW PARLIAMENT.

The houses of parliament assembled on the 4th of November. On the 11th her majesty in person delivered the speech from the throne. The speech referred to commercial policy in terms which the Hon. Mr. Villiers denounced as “vague and equivocal.”

BOTH HOUSES CARRY RESOLUTIONS PLEDGING THEM TO THE FREE-TRADE POLICY.

On the 23rd of November, the Hon. Mr. Villiers proposed a series of resolutions affirming the prosperity of the country, and the comfort of the poorer classes, as resulting from the policy of free-trade, and more especially in corn, pledging the house to support the measure of 1846, by which all duties on corn were repealed. The chancellor of the exchequer moved an amendment with the intention of defeating these resolutions. The government, however, assumed the tone of converts to free-trade on the ground that the country had pronounced for it. Mr. Frederick Peel, with bitter and eloquent irony, in the best speech he probably ever delivered in parliament, reminded Mr. Disraeli of his taunts and abuse of Sir Robert Peel for changing his opinions on the subject of a corn-law, and invited the right honourable satirist to account for his own change, if it were effected by any other motive than to retain office. He went to the country advocating the re-imposition of a corn-tax, and

on his return presented himself to the house a convert to the opinion that it would be wrong to disturb the settlement of 1846. After a protracted debate, Lord Palmerston proposed an amendment which more generally embodied the public opinion, and was more adapted to party exigencies. All opposition to it on the part of the government was so hopeless, that most of their supporters left the house. Eighty remained, and voted against his lordship; four hundred and eight members supported it. The House of Commons was pledged to the free-trade policy.

A similar debate took place in the lords with nearly identical results. Various measures were discussed without leading to any parliamentary decision or useful law. It was evident that on all subjects of free-trade and financial philosophy the government and the majority of the house were at issue—the one desiring to restore protection under various sly and indirect pretences, the other anxious to develop free-trade principles, and a system of national finance in harmony with the principles of political economy.

THE GOVERNMENT SCHEME OF FINANCE.—DEFEAT AND RESIGNATION OF THE MINISTRY.

On the 3rd of December, the chancellor of the exchequer stated to the house the views which the government entertained of the principles of finance which were applicable to the condition of the country. He declared that he accepted as irreversible the decision of the country in favour of a free commercial policy, and that his object was to harmonize with that the system of national taxation. He proposed to relieve certain interests which he considered had suffered by the free-trade policy. The first of these named by him was the shipping interest. His views connected with that subject met with general approbation, as they comprehended only the removal of special and unjust taxation. He proposed to satisfy the West India interest by allowing sugar to be refined in bond. The opinions stated by the right honourable gentleman were so at variance with his former violent orations in favour of the shipping interest, and that of the sugar-growing countries, as to excite astonishment and amusement in the house. Observing this feeling, he exclaimed, “I may be called a renegade, I may be called a traitor—” but the sentence remained unfinished amidst shouts of laughter from all sides of the house, and reiterated bursts of derisive cheers from the opposition. In fact, the leader of the commons gave up the shipping and colonial interests, with some slight show of concession, which nearly the whole house was prepared to make. The third interest for which he demanded relief was that of the owners of land. He adverted to the local burdens which he had so often pointed out as intolerable to the landowners, and admitted, amidst long-continued peals of laughter, that the agricultural interest had no longer ground of complaint on such matters, and denounced contrary opinions as obsolete. For the relief of the agricultural interest he announced his intention to reduce the malt-tax one half, and to abolish the drawback from spirits made in Scotland. He would reduce one half the duty on hops; he would continue the income-tax, about to expire, but reduce that of farmers by one-half. This announcement was received with demonstrations of astonishment and anger by the opposition. He would impose the income-tax in Ireland, but would exempt the landed interest of that country from its application. This announcement threw the house into

extraordinary agitation. Perceiving this, the right hon. gentleman expressed sympathy with the sufferings through which Ireland had passed, and drew from the fact of these sufferings the inference that while imposing new taxes upon other portions of the community in that country, the landed interest ought to be exempt. He would also increase the house-tax, in order that the inhabitants of the metropolis might bear a proportion of the burden from which land would be relieved, and would extend the tax to all houses rated at £10. The right hon. gentleman intimated that his financial scheme should be considered as a first step in a new direction.

The financial statement of the chancellor excited an intense ferment through the country. The landed, the West Indian, and the shipping interests, which were all supposed to derive advantage from protection, supported him, all the rest of the community exhibited an angry opposition. The monied and commercial classes in Ireland, the English manufacturers, and the London householders, were Mr. Disraeli's fiercest opponents. Besides the popular hostility, Mr. Disraeli had to encounter that of the political economists, and all the leading financiers in the country. The monied interest ridiculed the estimates, and it became evident in a few days after the announcement of his plan to the house, that it had seriously impaired the reputation of its propounder. His unfitness for the post of chancellor of the exchequer was proclaimed everywhere, and every where accepted as true.

On the 6th of December, on the report of the Committee of Supply being brought up, the House of Commons, led on by Mr. Gladstone, showed an uncompromising opposition to the whole scheme of Mr. Disraeli.

After a series of adjournments, Mr. Disraeli replied to the criticism of his opponents in language personally offensive, and full of party violence. This led to a scene of singular excitement: Mr. Gladstone retorted in the most eloquent speech he ever delivered in parliament. Attempts were made by the government party to stifle his voice in uproar, but the house sustained him by repeated and long-continued rounds of applause. Mr. Gladstone's denunciation of the budget as a delusive and dishonest scheme was followed by a vote which rejected it. The protectionist members voted to a man with the government, but a majority was against them, and the government resigned.

FORMATION OF A NEW MINISTRY.

The queen sent for Lord Lansdowne, by whom she was advised to send for Lord Aberdeen, as the most prominent member of the Peel party, upon whom it would properly devolve to form a government, as that of Lord Derby was defeated on a question of political economy and finance.

On the 27th of December the new government appeared before parliament. Its constitution was as follows:—

In the Cabinet

First Lord of the Treasury..... Earl of Aberdeen.

Lord-Chancellor ..... Lord Cranworth.

Chancellor of the Exchequer..... Mr. Gladstone.

President of the Council..... Earl Granville.

Privy Seal..... Duke of Argyle.

Home Secretary ..... Viscount Palmerston.

Foreign Secretary..... Lord John Russell.

Colonial Secretary ..... Duke of Newcastle.

First Lord of the Admiralty .... Sir James Graham.

President of the Board of Control Sir Charles Wood

Secretary at War..... Mr. Sidney Herbert.

Commissioner of Works/Buildings Sir W. Molesworth.

Honorary.....,..... Marquis of Lansdowne.

On meeting parliament, an adjournment until February was approved by all parties.

The government was not popular: few of the positions were occupied by those whom the country regarded as the men for the place. The premier had, as foreign minister, neglected the honour of England more than Lord Malmesbury had done. He had been outwitted by Louis Philippe, and had been the sycophant of Russia and Austria. He was, to use his own phraseology, “regarded as a sort of Austro-Russian.” His sympathy with Puseyism made him unpopular with large and influential sections of the religious public. Indeed the Aberdeen cabinet was regarded as, on the whole, more Puseyite than any which England had seen since the rise of the party in the established church. The Duke of Newcastle, to whom the administration of colonial affairs was entrusted, was of the Puseyite school, and his appointment, when known in the colonies, gave great dissatisfaction. The chancellor of the exchequer was more a champion of ecclesiastical exclusiveness than any member of the Derby cabinet, and Mr. Sidney Herbert rivalled Mr. Gladstone in this respect. The Lord Chancellor was also of this politico-ecclesiastical party, and was regarded as a crotchetty man, of little intellectual strength. As an equity lawyer, he had won reputation; as a judge there had been more appeals from his decisions than from all the other judges of the bench.

The appointment of Lord John Russell to the foreign-office, while Lord Palmerston was placed in the home-office, was regarded as an absurd inversion of their appropriate positions, and the arrangement was considered as an unwarrantable concession by Lord Aberdeen to the vanity of the ex-premier. Events justified the suspicions and dislikes of the public, except in the instance of Lord Palmerston, who proved himself to be the most efficient home-minister the country ever possessed.

The Irish appointments were very unpopular amongst the Protestants in Ireland, and among those in England who gave themselves any concern about Irish appointments. The Irish ministry of Lord Derby was greatly superior to that of Lord

Aberdeen, in talent, moral standing, and influence in the country where their functions were to be sustained.

With the adjournment of the house closed the parliamentary history of 1852.

IRELAND.

The distracted state of Ireland was, as usual, a source of uneasiness to the empire. There was, indeed, no insurrectionary movement, but the spirit of agrarian outrage continued, and numerous murders were perpetrated of a most savage nature—the country people conniving at the crimes, and secreting the criminals. These evils were, to a great extent, provoked by the unjust state of the law between landlord and tenant. Efforts were made in parliament to mitigate the injustice and oppression to which the tenantry in Ireland were subjected; but the landed interest in England upheld that in Ireland in resisting all melioration.

Religious intolerance continued to agitate every other malady of Ireland. Indeed this was the _fons et origo mali_, for it deprived honest men and patriots of opportunity to combine for their country’s freedom and prosperity. During the elections caused by Lord Derby’s dissolution of parliament, the priests incited the populace, in some places, to acts of disturbance and violence. At Six Miles Bridge the soldiery were attacked while protecting voters in the free exercise of their franchise. Proceedings were taken against a Roman Catholic priest for the part which it was alleged he took in those disturbances. Public opinion considered him to have been the cause of the outbreak, but the tory government, anxious for party purposes to conciliate the Roman Catholics, did not dare to prosecute him.

The Young Ireland agitation was not extinguished, and it received some new inspiration of hope from the escape of Thomas Meagher, from Australia. That adventurous young man made his way from his penal abode at the antipodes to America, where he became a citizen. He was a true patriot, and an ardent friend of liberty; he had no sympathy with the pro-slavery and red republican opinions of his former coadjutor, Mitchell, nor with the raving and malignant bigotry of Charles Gavan Duffy. In the United States he was an object of universal respect, his amiability and eloquence winning, in private and public, “golden opinions from all sorts of men.”

Ireland showed various symptoms of returning prosperity. The only agitation in which the higher classes took part was in opposition to the unjust scheme of Disraeli, to tax the Irish fundholder for the advantage of the English and Irish landholder. This measure was denounced by the capitalists of Ireland as a violation of faith to the public creditor, and sapping tire foundations upon which the security and sacredness of property rested.

The ribbon conspiracy was active during the year, and no suitable effort was made by Lord Derby’s government to uproot it.

COLONIES.

The colonies were generally prosperous throughout the year, and quietude and contentment prevailed. The Cape of Good Hope, and even India, were less disturbed than usual; but in each of these places a few events occurred to which we shall

especially refer.

CAPE OF GOOD HOPE.

In the early part of the year, the troubles which harassed the colony in the previous year exercised some influence. The efforts of the governor to establish tranquillity and good government met with co-operation from the colonists. The Boers, however, showed a disposition hostile to the British, chiefly because they hated the liberty which the English enjoyed and extended to the coloured population. The eagerness of the Boers to subdue to slavery the natives who came within their control, was not abated by the bitter lessons which their past experience had received. Before the year had far advanced, the whole colony was in repose, law and order for a time having been everywhere established.

INDIA.

India generally was quiet throughout this year, except upon the frontiers of Birmese territory. The vast regions comprehended under the name of British India, are never free from some tumults, local insurrections, and sudden and almost unaccountable revolts of petty chiefs. The year 1852 was not without events of this sort, but there was no startling incident except a war with Birmah, which of course was waged from India, and by the governor-general. A brief account of it will appear most appropriately in the relation of the foreign affairs of the empire.

The author of “The Three Presidencies” relates the political events of interest to the English in India, with the following brief but correct summary:—“Throughout India, with the exception of the north-western frontier, the most profound peace has reigned. The only disturbance which broke this complete tranquillity was the periodical incursion of some of the hill-tribes, especially of the Momunds. Their forays were mainly directed against the inhabitants of the villages in their vicinity, where they frequently committed great destruction of life and property. These marauders occupied the forces under Sir Colin Campbell from early in January, at various periods, until quite the end of the year, often falling upon our troops when not expected, and inflicting considerable loss. These freebooters mustered very strong in light horse, by the rapidity of their movements and their intimate knowledge of every mile of the country, bade defiance to such of our troops as were brought against them. In Scinde, the occurrence of the year was the deposition of Ali Morad from his princedom. The plots and falsehoods of this designing intriguer having been completely brought home to him, and it being made clear how nefariously he had deprived both his brothers and the British government of large tracts of territory, no time was lost in stripping him of his ill-gotten honours and estates, and reducing him to the rank of a simple chief. An attempt was made, during 1852, to establish an annual fair at Kurrachee, for the supply of the great commercial marts above the Indus with European goods, and the disposal of their produce in return.”

FOREIGN AFFAIRS.—BIRMESE WAR.

The general relations of Great Britain with other nations were tranquil during the year, although some alarms were entertained as to the intentions of her nearest neighbour on the European continent. The war with Birmah was, however costly and

sanguinary and was the most prominent matter of public interest in the foreign relations of the British empire. It was in 1851 that the occasion for hostilities was given by the Birmese, and that the governor-general took measures for reprisal. Various acts of oppression and cruelty to British subjects were perpetrated by the authorities of Ava.*

* For a minute and extended account of the causes of both the wars with Birmah, see Nolan's "History of the British Umpire in India and the East." Virtue: City-road.

It was not, however, until 1852 that the conflict assumed a serious character, and that tidings reached the English public of this new Indian war. Early in January, 1852, the King of Ava pretended a willingness to settle the differences between him and the British by negotiations. By this means he succeeded in capturing a number of English residents at Rangoon, whom he subjected to indignity and suffering. Commodore Lambert, who commanded the naval expedition, blockaded the Birmese ports. The governor-general despatched from Calcutta, and the Governor of Madras, from the capital of that presidency, strong bodies of troops. Preparations of an extensive nature were made to bring the war to a speedy issue. Several officers of eminent ability, among them the great and good Havelock, afterwards Sir Henry, and the saviour of India, joined the force. By the 24th of February, six steamers left Bombay for Madras, where they embarked the troops destined for the Birmese campaign, under the command of General Godwin, viz., two European and four native regiments, with four corps of artillerymen, chiefly Europeans. These left Madras on the 29th of March, whilst at Calcutta the armament had been equally hastened. The last of the force despatched there left the Hoogly on the 25th of March, the total having been similar to the Madras force—two European and four native regiments, with their accompaniments of artillery, in four steamers and four transports. These amounted in the aggregate to about eight thousand men.

The 1st of April was the clay appointed for the ultimatum. A steamer was sent to Rangoon, to obtain the king's reply. The English envoy found the river lined with stockades, and from thence a heavy fire was opened upon him; this was the only answer to the British ultimatum his Birmese majesty deigned to give.

Admiral Austin, with the Bengal force, arrived at this juncture, and at once attacked and conquered Martaban, so that, by the evening of the 5th of April, the British were masters of the place. The Madras troops arrived on the 7th, and the forces of the two presidencies proceeded up the river and attacked the stockades, which were defended by twenty-five thousand men.

Early in May, the British resolved upon attacking Bassein, sixty miles up one of the branches of the Irriwaddy. From that point, the Birmese commander contemplated an invasion of the British province of Arracan. After a desperate struggle, a very small number of British succeeded in storming the stockades and capturing the place.

While the English were engaged capturing Bassein, the Birmese attempted the reconquest of Martaban, but were repulsed with great slaughter, by a very small force, with little loss.

On the 5th of July, Prome was attacked: the conquest was easy, but the conqueror did not deem it necessary to garrison the place; consequently, as he retired to Rangoon, the enemy re-entered Prome.

The incompetency and inactivity of the British general caused July and August to pass uselessly. The whole army murmured. All the abuses of British military official routine prevailed, and the accounts which arrived in England excited, as tidings from India had so often done, much popular discontent. A popular writer thus criticised General Godwin's conduct, and gave the following relation of his proceedings:—"The expected reinforcements having reached head-quarters, the force available amounted in the month of September to nearly twenty thousand men, in the highest state of efficiency, and quite large enough to have at once swept all before them to the very gates of the emperor's palace. But this did not appear to be the view taken of the matter by General Godwin, who now made preparation for once more attacking Prome. In tire middle of this month, two regiments, a field-battery, with a detachment of sappers and miners, left Rangoon, followed within a few days by the general, and a party of artillerymen. They ascended the river without opposition until the 9th of October, when, as they approached the stockaded defences of the city, they were fired upon from many sides. The enemy's gunnery was not of first-rate quality, and in less than two hours was entirely silenced, the ground being completely cleared of the opposing force by the shells thrown from the steamers. The troops were landed towards the evening, and, advancing at once upon a pagoda and the few remaining defences, carried everything before them at the point of the bayonet. Night fell before the town could be reached, and it was therefore not until the next morning that Prome was occupied for the second time by our troops. A large body of Birmese troops, amounting to upwards of six thousand men, were known to be posted within a few miles of the town, strongly entrenched behind stockades, and out of reach of our steamers, the artillery practice from which appears to have impressed them with a proper sense of our superiority in that arm of war. To have dislodged them with the force at his command would have been a matter of comparative ease; but so thought not General Godwin, who, fearful probably of terminating the war too quickly, determined to await the arrival of further troops before attempting any forward movement. He did not wait long, however; but within a day or two left for Rangoon, in search of the troops considered to be requisite for further operations. This reinforcement was dispatched towards the latter part of the month. By this time the Irriwaddy, which had been previously deep enough throughout for our largest steamers, sank so suddenly, and as it appears so unexpectedly, that several of the flotilla were left aground in the middle of the stream, with every prospect of having to remain there until the next rains should float them."

The English general seemed to be unable to manage the large reinforcements which he had received, or to avail himself of the combinations which the activity of the governor-general made to facilitate the objects of the expedition.

The general resolved to attack Pegu again, which had been abandoned after a previous successful attack. The conquest was easy, and a garrison was established. This detachment was attacked in December by large numbers of the enemy. The

garrison was hemmed in, and in the greatest danger; General Godwin, after failing to relieve the place, by ill-judged and inadequate measures, at last sent a strong force, which successfully encountered every obstacle, and dispersed the enemy.

On the 28th of December, 1852, Pegu and Martaban were “annexed” to British India by proclamation of the governor-general. When these tidings reached Ava, a revolution occurred, promoted by the emperor’s brother, with the design of propitiating the English, and making peace. The emperor was made a captive, and his brother ascended the musnid.

Meanwhile, the British forced the great pass between Arracan and Pegu, leading through it two hundred and fifty elephants sent from Calcutta to convey stores to the army under Godwin. Baffled and beaten, the Birmese troops fell back upon the capital early in the year 1853.

The British opened negotiations with the new sovereign, which were tediously protracted until May. An embassy was sent to the Birmese court, and the emperor had the folly and arrogance, after all the disaster and defeat experienced by the arms of Ava, to demand homage from the English envoys. The firmness of these gentlemen, and the fear of renewed hostilities, caused the sovereign to waive his claims to forms and ceremonies of abject submission, and the issue was peaceful. Cordial relations with the Birmese dominions were not however established, either at that juncture or subsequently: but the salutary fear of British power, caused by the war of 1851–2–3, prevented any violent interruption of good neighbourhood on the part of the Birmese.

FRANCE.

The most important of all the foreign relations of Great Britain are those connected with France—the most powerful of all the allies or enemies of England. During 1852, peace and professions of friendship prevailed between the two nations, but there existed considerable apprehension in Great Britain that the designs of the French president were hostile to England, and that the country was inadequately defended. The Duke of Wellington, without giving any opinion as to the intentions of the president, made more powerful than ever by the _coup d’état_, declared that there was danger from the defenceless state of the country, and recommended the government to fortify and aim. His grace inspected the coasts, and by the opinions he pronounced increased the public apprehension of peril, while he also stimulated the confidence of the country in its great capacity for defence. Sir Howard Douglas, the distinguished engineer officer, accompanied the duke in his coast inspections, and in a work* published by him on the subject, he thus describes the duke’s impressions;—

* “Observations on Modern Systems of Fortification.” By General Sir Howard Douglas, Bart.

“When the late Duke of Wellington visited the coast defences—on the alarm of an invasion, soon after the accession of Louis Napoleon, the present Emperor of France, to the presidency—his grace, being at Seabrook, between Sandgate and Hythe, conversing with his staff and the other officers, the principles of permanent camps and other fixed defences became the subject of discussion, when the duke used the following expressions, ‘Look at those splendid heights all along this coast; give me

communications which admit of rapid flank movement along those heights, and I might set anything at defiance.'"

The fears felt in England that a struggle with France would be speedily necessitated were intensified, when, at the close of the year, the president of the republic appealed to the universal suffrage of France, as to whether he should assume the name and power of emperor. This appeal was answered by 7,824,189 "ayes," and 253,143 "noes."

On the 1st of December, the senate and legislative corps met, and proceeded to St. Cloud, to announce to the president of the republic that he had been elected sovereign of France. He accepted the splendid boon, and declared himself Napoleon III. The British government recognised the title, declaring that whatever form of government the French people chose to adopt would be acknowledged and respected by England.

GENERAL EUROPEAN RELATIONS.

England interested herself in certain diplomatic discussions concerning the succession to the crown of Denmark, and in the disputes which occurred between the government of Copenhagen and the German Confederation, connected with Schleswig Holstein.

A treaty of commerce and navigation, between her Britannic majesty and the King of the Belgians, also signalized the year.

No other events of serious importance engaged the attention of England in connection with Europe.

UNITED STATES OF AMERICA.

Another of the many disputes concerning territory, or rights, perpetually occurring between Great Britain and the United States, took place in 1852. The contest regarded the fisheries off the American coasts; the citizens of the United States claiming the right, in virtue of a certain convention dated 1818, to fish off the coasts, and dry fish on the coasts, of an extensive area of British territory. The British colonial minister, Sir J. Pakington, conceded nearly all that the Americans demanded, to the mortification of the colonial subjects of Great Britain. Discussions concerning Central America, and the formation of a ship-canal between the Atlantic and the Pacific, also engaged the diplomatic abilities of British and American ministers. Ostensible agreements were entered into, but neither nation heartily acquiesced, and no expectation was entertained in England that the people of the United States regarded the settlement as final.

EFFORTS AGAINST THE SLAVE TRADE, AND TO SUPPRESS PIRACY.

The energy put forth by the British government to destroy the traffic in slaves by an armed naval force off the coasts of Africa were this year unremitting and successful. Several vessels trading in slaves were taken, and though the British squadron was not sufficient to suppress, it was a powerful check upon the slave trade.

Naval operations off the Chinese coasts, within the Straits of Malacca and on the coasts of Labuan, were also crowned with success. Through the instrumentality of Rajah Brooke, the Malay pirates were defeated and ultimately extirpated from the bays and creeks of Labuan. The position of the rajah at Sarawak afforded him facilities for directing these enterprises, which his indomitable courage and energy enabled him to make available. His country did not appreciate his deeds as highly as they deserved, and certain cliques in England decried his labours and aspersed his motives. He rendered commerce and his country great and disinterested services.

DEATHS OF EMINENT PERSONS.

During the year 1852, death was as usual busy in the circles of eminent persons: the fame and talents of some of the deceased render it desirable and necessary to record their names upon the page of history.

On the 22nd of January, George Herbert Rodwell, the celebrated composer and writer, was removed from among the living. His musical compositions and stage productions were numerous and popular.

In the month of February, Samuel Prout, F.S.A., celebrated for his drawings in water-colours, and a peculiar style of depicting public buildings, died. Also, Dr. Murray, Roman Catholic Archbishop of Dublin, a man of extraordinary influence, acquired by prudence, moderation, patriotism, and consistency of character.

The most remarkable man who departed this life in the British Isles during 1852 was Thomas Moore, the poet. He died in his seventy-third year, at Sloperton Cottage, Wiltshire, where, through the generous patronage of Lord Lansdowne, the poet spent his most tranquil years. This extraordinary man was born in Aungier Street, Dublin, in the year 1779. The poet’s father was a grocer, but subsequently received an appointment as quarter-master to a regiment. The poetical genius of Thomas Moore was shown at a very early period of life—in his thirteenth year he contributed to the Dublin periodicals. He was at that time under the care of a very celebrated schoolmaster, Mr. Samuel Whyte, who took a deep interest in the precocious genius of his pupil, and had no small share of honour in bringing him into notice. As early as fourteen years of age he entered the Dublin University. He was scarcely more than a year a pupil in the university when he published a paraphrase on the fifth ode of Anacreon. This was so well received that he proceeded to translate the remaining odes, which performance ultimately met with a most encouraging reception. In his nineteenth year, he proceeded to London in the hope of obtaining by subscription a sufficient amount to secure the success of his “Anacreon,” and also to enter as a student the Middle Temple. The work did not appear until 1800, when, under the patronage of the Earl of Moira, he was enabled to dedicate it to the Prince of Wales. In 1802, he published a volume under the designation of, “The Poetical Works of the Late Thomas Little.” The moral tone of these productions offended the public taste, and inflicted injury upon the poet’s reputation which his subsequent life did not remove, even when the glory of his genius shed lustre upon his name and his country. His more popular works are well known. In politics he was a whig partizan, but was not at heart attached to any school of politics. He was ostensibly a Roman Catholic,

and was intolerant as a writer in defence of Romanism, while in private he was most liberal on religious subjects, and showed no earnest belief in any system of theology. He was one of the most accomplished scholars of his day, but was not a profound thinker, and was regarded as rather a lazy writer. His imagination was not of the highest order, but it was rich and diversified. His artistic taste and harmony as a poetical writer were exquisite. His love of music and song was a deep passion. In society, he held every circle as in a spell, so charming were his conversation and manner, and so brilliant and vivacious was his wit. Lord Byron, who had so happy a power of describing a notable character in a single sentence or paragraph, said of him, “He is gentlemanly, gentle, and altogether more pleasing than any individual with whom I am acquainted.”

When Lord Melbourne was in office, in 1835, he counselled her majesty to bestow a pension on the poet of £300 a-year. Moore had found it difficult to realize this sum by his writings, as his prose works did not meet the expectations raised by his poetry. When he became a pensioner he seldom wrote, verifying the predictions of his friends. He exchanged too early in life the department of literature in which he had made so great a reputation for prose, in which he sought by memoirs, historical writing, and even controversy, to increase his income, and establish a new reputation. A passionate love for Ireland pervaded most of his writings, especially his Irish melodies. He constantly breathed a fervid wish from his earliest years for her national independence, and severance from England. Yet when a large portion of his countrymen flew to arms for that purpose, in 1798, he, although nineteen years of age, took no part in the struggle: neither did he show any desire to live in Ireland, but courted English aristocratic society, and served English party interests. During three years before his death, the brain gradually softened, and he sunk into childishness. None of his children survived him. His widow, a charming person, retained a pension of £100 a-year, conferred upon her by the government.

The poetical works of Thomas Moore retain their popularity in many lands. Not only in England, where he spent by far the greater part of his life, and in Ireland, where he was born and educated, and whose popular joys, sorrows, hopes, aspirations, traditions, and prejudices he sung so sweetly, but wherever the English language is spoken, his fame is cherished and his verse repeated. Nor is the delight inspired by his works limited to the language in which they were written. All over the continent of Europe, among the nations whose language is of Latin and Celtic origin, his muse inspires deep interest and pleasure. His extraordinary oriental poem, “Lalla Rookh,” has been translated into Persian, and delights the literary sons of Iran as it erst thrilled the imagination and heart of all persons of poetic temperament in the British Isles. In the city of Dublin, a statue has been erected to his memory, close by the old senate, now used as the Bank of Ireland, and near the poet’s Alma Mater, Trinity College. The statue is a failure, private partiality and _clique_ interest having stifled public competition and robbed the great sculptors, and the poet, of the reward of genius, the city of Dublin of an ornament of which it might have been proud, and his country of the opportunity of paying a suitable tribute of respect to one of the most gifted of her sons. Had M’Dowell or Hogan been allowed to execute a statue for Moore, it would have been accomplished _con amore_, and in a way worthy of the

poet and of the sculptor.

The month of February witnessed the death, at the advanced age of ninety, of John Landseer, the celebrated engraver. He left behind him three sons, all eminent—George, Charles, and Sir Edwin.

Among the deaths of remarkable persons in April was that of General Arthur O'Connor, aged eighty-nine, at the Chateau de Rignon, near Nemours. This notable person was one of the leaders in the terrible Irish rebellion of 1798. He was the third son of Roger Connor, of Connorville, by Anne Longfield, sister of Lord Longueville. He was called to the Irish bar in 1788. Lord Longueville returned him to the Irish parliament as representative of Philipstown, in the King's County, in the year 1790. Lord Longueville afterwards deprived him of his seat in parliament, and disinherited him, by which a loss occurred to Mr. O'Connor of £10,000 a-year, in consequence of his violent advocacy, in the Irish parliament, of "Catholic emancipation." He afterwards became a leader of the "United Irishmen," and one of "the Directory of Five," of that body. After various unsuccessful efforts to separate Ireland from Great Britain, he was arrested, and made an ingenious and desperate effort to escape, assisted by the Earl of Thanet. In 1804, he was deported from Ireland, his life being spared on condition, it was alleged, of some disclosures as to the plans for insurrection even then entertained by him and his colleagues. Buonaparte made him a general of division, and he subsequently received further promotion in the French army. In 1809 he married a niece of Marshal Grouchy, daughter of the Marquis Condorcet, the French mathematician. In 1834, he was permitted by Earl Grey, then in power in England, to revisit Ireland for the purpose of disposing of some property inherited by him, and which the British government had not confiscated. With the proceeds he purchased the chateau where Mirabeau was born, and there General O'Connor died. The celebrated agitator Fergus O'Connor, once member of parliament for Cork, and afterwards for Nottingham, was nephew to the general.

In May, Mrs. Coleridge, only daughter of Samuel Taylor Coleridge. She was a lady of extraordinary attainments and vigour. Her acquaintance with the classics was most extensive and accurate, and by her translations from the Latin her reputation was to a great extent made. Wordsworth and Southey were her intimate friends, and intense admirers of her genius. In a review written by an eminent critic, it was remarked of her that "she was the inheritrix of her father's genius, and almost rival of his attainments."

In August, in his eightieth year, Thomas Thompson, M.D., F.R.S., London and Edinburgh, Regius Professor of Chemistry in the University of Glasgow, and President of the Glasgow Philosophical Society. Dr. Thompson, as a chemist and inventor, had obtained a great celebrity.

In August, the death of Joseph W. Allen, the celebrated landscape-painter, took place at Hammersmith. He was the son of a schoolmaster in that place.

In September, George Richardson Porter, senior, Secretary of the Board of Trade, Treasurer of the Statistical Society. The statistical writings of this remarkable man brought about many changes in the law, and conduced signally to the repeal of "the

corn-laws.”

Dr. Macgillivray, Professor of Natural History, and Lecturer on Botany in the University of Aberdeen. As a writer, a professor, and a philosopher, the doctor obtained an enduring fame, not only in Scotland, but throughout the learned world.

Augustus Nathmure Welby Pugin, the celebrated architect, was among those called away by death in this month.

In November, Gideon Alderson Mantell, LL.D., F.R.S., F.S.A., F.L.S. He was distinguished in early life by a thirst for knowledge, and a capacity to attain it under the greatest difficulties, being lowly born—the son of a shoemaker at Lewes. As a chemist, a physician, a naturalist, and a geologist, he obtained a wide-spread reputation.

The Countess of Lovelace died this month. This lady had achieved nothing remarkable by any effort or genius of her own, but the country felt great interest in her as the only daughter of the popular poet. Lord Byron: of her he had sung,—

“Ada, sole daughter of my house and heart.”

She was a lady of very elegant mind, and capable of accurate and profound thought; her intellectual attainments were very considerable, and of a nature unusual for ladies. Her remains were laid beside those of her father.

In December, the death of the Rev. Samuel Lee, D.D., was recorded. He was Canon of Bristol, and Regius Professor of Hebrew in the University of Cambridge. His knowledge of languages was vast and critical, and he attained especially a great reputation in the dead languages of the East. He was born in great obscurity, and received his first rudiments of learning in a charity school. He was one of the most remarkable men of the age.

At Kensington, Mr. Stephens, the celebrated entomologist, added another to the list of remarkable persons removed during this year.

It is not possible within the space allotted to this work to notice the removal from life of all the eminent persons recorded in the obituary of this year—persons whose life was a portion of English history in its most interesting aspects, and whose death excited the deep attention and regret of the nation, A record of great political events, merely, will not depict the history or progress of a nation, but as her mighty children one by one disappear from the social state, upon which they have impressed their own intellect and character, their names and deeds should be presented as forming a glorious part of the facts and history of the country and the time.

CHAPTER LXV.

{VICTORIA. 1853}

Condition of Great Britain..... The Court..... State of Ireland..... Colonial Affairs..... Foreign Affairs..... The War with Russia..... Parliamentary and Party Events..... Deaths

of Eminent Persons.

GENERAL STATE OF GREAT BRITAIN.

{A.D. 1853}

Great Britain was peaceful and prosperous—no internal strife, no civil feud, no general discontent disturbed her fair aspect, or impeded her glorious progress. The working classes were better off than in previous years. Pauperism declined, crime was greatly lessened. In 1852, the commitments in England and Wales were 3899 fewer than the average. In 1853, the favourable difference was seen not so much in decreased numbers as in the lesser gravamen of the offences. Much sickness was caused by the excessive severity of the weather during the spring quarter. From the 20th of-April to the 15th of May, the temperature on one day fell to 14° below the average, on another to 13°, and on others to 10°, 9°, and 8°. There was a heavy fall of snow in April, and still more heavily during the first fortnight in May. The snow in the north was so accumulated upon the ground that the lines of railway were occasionally closed, and trains embedded in the snow. The effect of such severe weather late in the spring and in the opening of summer was disastrous upon the crops, and entailed upon the harvest consequences which formed a check to this otherwise prosperous year. With a deficient harvest came the certainty of a war with Russia, still further embarrassing a year which opened with so many felicitations. The appearance of Asiatic cholera in the autumn tended also to depress the close of the year. That fell disease burst out with extraordinary violence at Newcastle-upon-Tyne in the month of August, where more than 2000 lives were sacrificed to its fury. The disease reached London the same month, and there also effected serious ravages, both in 1853 and in 1854.

The revenue of the year 1853, up to the 8th of January, 1854, was—receipts, £69,410,976 15s.; disbursements, £55,769,252 4s. The surplus revenue, after adding balances to the actual income, exceeded three millions and a quarter sterling—a financial condition of the country proving great prosperity: and one for congratulation at a time when war so imminently impended.

THE COURT.

On the 7th of April, her majesty was delivered of a son. Her recovery was, as on similar occasions, speedy, and the country hailed the event with joy. On the 28th of June, the infant prince was baptized in the private chapel of Buckingham Palace. The splendour usual on such occasions was perhaps somewhat surpassed. Many foreign princes and ministers were present. The sponsors were the King of Hanover, the Princess of Prussia, the Princess Mary of Cambridge, and the Prince of Hohenloe-Lengenburgh. The child was named Leopold George Duncan Albert. The ceremonial was followed by a brilliant state banquet.

The court was not exempt from illness prevalent during a portion of the year. In July, measles attacked her majesty, Prince Albert, the Prince of Wales, the Princess Royal, and others of the royal children. This event postponed the visit of the court to

the Dublin Exhibition, and caused uneasiness for a short time both in Ireland and Great Britain.

On the 11th of August, her majesty reviewed a portion of her fleet at Spithead. It was a magnificent spectacle, affording one of the most gorgeous and glorious displays of naval power ever presented to the eyes of even a British sovereign. Her majesty wherever she appeared was received with the greatest enthusiasm; and, in this grand review, she was attended by the members of both branches of the legislature.

On the 29th of August, her majesty visited the Dublin Exhibition of Industry, an event which is more particularly noticed in the following section.

After her majesty's visit to Ireland, she sailed to Holyhead, whence, on the 5th of September, she proceeded to Balmoral, to enjoy her Scottish Highland retreat. While at Balmoral an incident occurred illustrative of the character of the royal family. A fire broke out near the palace. Her majesty rendered prompt assistance, directing the efforts used to extinguish the fire, while Prince Albert and the Prince of Wales personally worked with ardour and assiduity to accomplish that object.

On the 14th of October the royal family arrived at Windsor Castle for a prolonged residence.

Thus the United Kingdom, in its capitals, great harbours, and even remote hills and glens, continued to witness the domestic happiness, private virtues, queenly goodness and dignity, and public usefulness and activity of their noble queen and her family. It might in truth be said that every heart in the British Isles felt the aspiration "God save the queen."

STATE OF IRELAND.

The condition of the sister kingdom was still one of faction, feud, and fiery religious and political agitation. Emigration to the British colonies, and the United States of America continued, and by this means the land was relieved of such a portion of its pauper population as lowered the poor-rates and gave relief to the occupiers. Increased attention began to be paid by the landlords to the cultivation of the soil, and commerce appeared somewhat to revive. The expectations of improvement in Ireland, which were entertained in England, were too sanguine. When these hopes of seeing Ireland more peaceable and prosperous were much cherished, tidings continually arrived of deeds of violence and blood, connected with the law of landlord and tenant. To this fruitful source of crime in Ireland, much of the evil state of things there was attributable. The landlords were exacting, and cherished no kindly feeling for the peasantry, especially where political and religious differences existed between the landlords and the priests. The people, on the other hand, shared with their spiritual advisers in a rancorous religious and political hostility to the landlords, whom they regarded as the descendants of invaders and plunderers. It was a common impression among the peasantry, that the rightful owners of the forfeited Irish estates were the descendants of those who had been dispossessed. Prophesies, attributed to various Irish saints, were in circulation among the people, promising the reconquest of Ireland by the children of her own land and

of the true faith, the expulsion of the stranger, and the restoration of the soil to the families from whom it had been taken by the sword. With these feelings to the landowners on the part of the farming and labouring population in the Roman Catholic provinces of the country, it cannot be matter of surprise that any trick, or act of violence by which a landlord was deprived of his just rights, was regarded either as a “venial offence,” or no offence, or even a patriotic and virtuous act, according as the conscience of the rude casuist was more or less under such influences. Had the landlords as a body administered their estates in a spirit of justice; used their power to bring land questions under the influence of just and simple legislation; and, as magistrates and legislators, set an example of moderation, good sense, and true patriotism, the prejudices of the peasantry would have been worn down, in spite of sacerdotal or other influences to sustain and foster them. Such a happy state of affairs had not arrived in 1853, and the old tales of brutal and barbarous murders filled Europe-with a sense of astonishment and mystery as to the social and political condition of Ireland.

It was peculiarly remarkable that during the prevalence of a general state of affairs so lamentable, there should arise in Dublin a Palace of Industry, the sequel of that erected in Hyde Park. The site chosen was admirable—the lawn of Leinster House, at a former time the property of “Ireland’s only Duke,” but then in possession of the Dublin Royal Society. Mr. William Dargan, a celebrated contractor for railway works, with patriotic feeling, conceived the idea of erecting a building, at his own risk, for the display of the industrial products of Ireland. One thousand men were employed daily for many months in completing the structure, which was admirably adapted to its purpose.

On the 12th of May, the building was opened with much _éclat_. It was found more imposing and elegant than the public expected, and the pleasure felt by the people of Ireland and their British friends was thus much enhanced. It was divided into three “halls.” The centre hall was 425 feet long, and 100 feet wide; two lesser ones were each 355 feet long and 50 feet wide. The elevation of the three halls was equal, 65 feet. The whole area occupied by this Palace of Industry was 210,000 square feet. Light was admitted only from above, an arrangement which was deemed better for the peculiar kind of exhibition made than that of the London Crystal Palace, which was an edifice of glass, All the designs and plans, and the superintendence of the entire construction devolved on Mr. Dargan. He advanced £80,000 to the object, expecting a heavy loss, and repudiating any intention to derive any gain.

The exhibition was opened by the Lord-lieutenant, the Earl of St. Germans, attended by the Irish court. The Knights of St. Patrick joined the procession in all the insignia of their order. All were welcomed by the populace without, and the assembled rank and fashion within the building, with that enthusiasm characteristic of the Irish people. None received such applause as the generous and skilful man who originated and carried out the undertaking; and none of the many gifted and useful men who rendered the event memorable by their presence, deserved equal honours on the occasion. Mr. Dargan declined the honour of a baronetcy; that of knighthood was conferred on Mr. Benson, the architect.

The productions exhibited surpassed public expectation still more than did the building itself. Various descriptions of manufacture attracted the attention of visitors from Great Britain, the continent of Europe, and from America. The linen and damask of Ulster, the products of the Dublin silk-loom, especially the tabinets and poplins, fine woollen cloths, “Irish frize,” Limerick gloves and lace, received high encomiums from the manufacturing and commercial visitors from Great Britain and distant countries, as well as from the general public. It was, however, chiefly in works of art that the exhibition excelled. The splendid sculpture of M’Dowel, Hogan, and other sculptors, was most of all conspicuous. The paintings of Shee, M’Lise, O’Neil, and many more, almost rivalled the display of sculpture. There were also beautiful carvings in Irish oak, “bog oak,”* and arbutus, from the beautiful specimens which in natural woods crown the hillsides in Kerry, especially near the Killarney Lakes.

* Found in the “peat” or “turf.” The word “bog,” so well known in India, and other portions of the East, as meaning a garden, has the same signification in Irish, and marks the places where gardens or woods once flourished, now reduced to masses of peat.

Old Irish illuminated MSS., the rarest in the world—no nation having attained the same perfection as the Irish in that department of taste—and specimens of ancient sculpture from before the Christian era, excited the attention of the lovers of antiquity, and admiration for the genius of ancient Ireland.

The English and French newspaper press and reviews complimented the Irish people upon those qualities of artistic taste which their exhibition proved them to possess, and the London _Times_ asserted in several leaders, that whatever might be the superior qualities or advantages of the English people, industrial or otherwise, as compared with the Irish, the latter possessed in a far higher degree, artistic genius, and taste in its superior developments.

The queen and court of London felt great interest in the Dublin exhibition. Her majesty visited it, and expressed her gratification in a manner most flattering to the Irish people, and especially complimentary to the patriotism of Mr. Dargan. Her majesty’s visit to the exhibition was one of those happy circumstances in her reign, in which her noble qualities of head and heart were made conspicuous, and in which she appeared so auspiciously, as the healer of contention, the soother of social asperities, the patroness of art, and the encourager and rewarder of industry and merit. It was on the 29th of August the court visited the Irish metropolis. They arrived early on the morning of that day at Kingstown Jetty, and her majesty, accompanied by the Prince of Wales, and Prince Albert, drove through the streets of Dublin, which were thronged with multitudes of persons, offering the most enthusiastic and unanimous demonstrations of respect and welcome. In the evening, the city was brilliantly illuminated. Her majesty’s visit to the exhibition was one of the most gratifying incidents in modern Irish history. The royal party, while remaining in Dublin, drove much in the environs, and paid a visit to the house of Mr. Dargan, as a compliment to the enterprise and patriotism of that gentleman. Queen and people were delighted with the royal visit to Ireland, which also, as a matter of public policy, was wise and beneficent.

GENERAL CONDITION OF THE COLONIES.

The year was not very eventful to our colonial empire. There was general prosperity. India was, as usual, the theatre of Oriental cabal, and Oude was the scene of its chief features, and the seat of most of the intrigues and plots against English dominion in Hindustan.

CANADA.

This province was especially prosperous, but it experienced the consequences of the policy so embarrassing at home—of allowing Irish religious disturbances, and those who create them, to pass without sufficient reprobation by the government. In Canada the Irish were numerous. The Protestant Irish there were energetic and zealous for their creed. The Roman Catholic Irish were full of a fierce fanaticism. Orangeism and Ribandism flourished in Canada, even as at Belfast, and used such opportunities as arose to fight as fiercely.

One Gavazzi, an Italian priest, left the church of Rome, and lectured against his former faith in Great Britain and Ireland. The liberty enjoyed in Great Britain by all men to discuss publicly their opinions, was not possessed in Ireland. There, indeed, the government conceded such a right, but the local magistracy often acted in a spirit adverse to the British constitution; and the priests and people of the Roman Catholic religion, although always waging an active controversial warfare against Protestants, never tolerated a reply; and whenever any aggressive controversy was set on foot by any sect of Protestants, they were generally assailed with brutal violence, their places of worship attacked, and the persons of the preachers or polemists fiercely assaulted. The Irish Roman Catholic immigrants in Canada carried with them to their adopted country the same spirit of religious intolerance and mob violence, so indulgently treated by whig and tory governments in their own country. Gavazzi was the occasion, in June, 1853, of evoking this fact in a startling manner in Canada. He visited Quebec, and lectured against the Romish church in “the Free Church” in that city. He alluded in his argument to the condition of the Roman Catholics of Ireland, as influenced by their religion. The statements of the reverend gentleman were such as the members of any other communion than the churches of Rome or Greece would have considered matter for reply and fair argument. The Roman Catholics of Quebec, especially the Irish of that communion, resorted to their usual mode of opposing a controversialist: they attacked the preacher with brutal violence, uttering the fiercest yells and denunciations, and in language horrible, as proceeding from men on religious grounds. Gavazzi had to fight for his life, which was with difficulty saved. In Montreal the lectures of the Italian polemist were attended by disturbances more serious and more general. The police protected him, as they would have protected a Roman Catholic clergyman had he been assailed by intolerant Protestants. The police were nearly overwhelmed by the onslaught of a multitude of Irish Canadian Romanists, anxious to imbrue their hands in the blood of a man who had, as a clergyman, left their church and made a public protest against it. Fire-arms were used on both sides, to the disadvantage of the rioters, some of whom were killed. The military arrived in time to protect the place of worship, in which the Italian doctor lectured, from being demolished. The Romanists collected in greater strength, and

fired upon the soldiery, who returned the fire, killing seven, mortally wounding six, otherwise wounding many more, and finally driving the aggressive bigots from the streets. The authorities did not follow up with justice or spirit this disgraceful affair; a fear of the Roman Catholic influence in the English parliament deterring them. When tidings of these events arrived in the United Kingdom, the Roman Catholics in parliament, at public meetings, and by the press, expressed sympathy with the violators of law, and the riotous mobs which had attempted to tread down civil and religious freedom; while denunciations, false, vehement, and intolerant, were directed upon the Reverend Doctor Gavazzi. The principles upon which this course was based, were those so commonly assumed by the party in Ireland, when it was needful to justify violence and bigotry there; namely, that the Roman Catholic Church, being the true church, should have immunity from polemic charges against its doctrines and worship; and that, as all attacks upon it are sure, amidst a Roman Catholic population, to lead to a breach of the peace, Gavazzi ought to have been punished by the authorities, and the authorities who neglected to do that should be regarded as accessories to the riot, and guilty of the murder of the rioters who fell. The leaders of the opposite sections of Whigs and Tories in the English parliament treated such arguments very blandly, and instead of denouncing any party or sect which impeded religious liberty, no matter what its theological opinions, the tone adopted was more in sympathy with the Roman Catholic party in parliament, to gain whose votes each party was after its own mode bidding, each alike willing to sacrifice the liberty of public controversy for the political aid thus sought to be procured.

FOREIGN AFFAIRS.

The year 1853 witnessed little in the foreign relations of the United Kingdom to excite the public interest, except in connection with the dangers to which the integrity of the Turkish empire became exposed. The establishment of the empire in France consolidated the amity between that country and the British government and people. With Europe generally the best understanding existed. Various treaties were formed with countries of minor power, all having a tendency to preserve peace and promote commerce. The public were made acquainted with others which had been made or ratified the previous year; and the expectation was general that the repose of Europe would remain undisturbed. A treaty of friendship, commerce, and navigation, was ratified the previous October with the republic of Peru, and published the beginning of January. A similar treaty was ratified at Guayaquil on the 23rd of January with the republic of the equator. On the 1st of February, a treaty relative to the succession of the crown of Greece was ratified in London, between her Britannic Majesty, the French Emperor, and the Emperor of Russia. “Declarations” were signed at Florence and Rome, on the 17th of November, and exchanged between the governments of Great Britain and the Roman States, “for securing national treatment to the vessels and commerce of the one country in the other.”

THE WAR WITH RUSSIA.

Early in the year, events transpired which ultimately led to a war on the part of the United Kingdom, France, and Turkey against Russia. Designs against the integrity of the Turkish empire had long been entertained by Russia, and there was reason to

believe that Austria was an abettor of those schemes, in the hope of being a partaker of the spoil. Sir Hamilton Seymour, the British Ambassador at St. Petersburg, came to the conclusion that those two great powers were in secret league against the Turkish empire. They dared not, however, proceed in their plans in opposition to the will of England and France, and the ambassadors of both countries were sounded by the czar, to ascertain with what part of the territorial plunder contemplated they would be satisfied. Both powers indignantly refused to participate in any aggression against the sultan, and made known their reasons in terms calculated to deter his imperial majesty from the like. Austria had fomented disputes on the Turkish frontier, and threatened armed interference when the sultan made military preparation to restore the peace of his provinces. Russia ostensibly opposed Austria in these proceedings, but, as was afterwards proved, secretly abetted her. The attitude of the czar towards Turkey was one of vigilance and preparation, as an armed robber watches the wayfaring man. The czar was encouraged to hope that events would arise from the policy of France favourable to his own designs. This expectation arose from the ostentatious interference of France in the disputes between the Latin and Greek Christians. French agents were spread over Syria; and a tone at once insolent to the authorities, defiant to the Greeks, and unworthy the dignity of the representatives of a great power, was adopted by these men. The French ministers and consuls in the Turkish empire were rather religious partizans, than political agents acting in harmony with the authorities of the country to which they had been accredited. Frequent disputes arose in Jerusalem, in connection with Greek and Latin rites in celebration of certain anniversaries at the Holy Places. Disturbances of a fierce nature at last rendered the interference of the Turkish authorities necessary, who acted with impartiality. The French ambassador resorted to menace and intrigue on behalf of the _protégés_ of France—the professors of the Latin rite; and the sultan, intimidated, yielded everything which French violence demanded. The English ambassador in vain advised moderation on the one hand, and firmness on the other; the French minister seemed to disdain all temperate counsels, and the Porte was too much awed by his threats to adopt an attitude of resolution, or even dignity. The concessions wrung from the sultan by the French furnished the Russian government with the occasion it had long sought. An especial envoy was sent to demand the restitution of all the privileges of which the Greeks had been deprived. The vacillating sultan yielded to his new tormentor. Negotiations were set on foot by the ministers who represented the great powers; and France was induced by the influence of England to adopt a concessive tone, and to withdraw from the insolent and hostile position she had assumed. The Russian minister, Prince Menschikoff, and his master, were elated by their success, and increased their demands. An ultimatum was put forth on the 21st of May, that contained stipulations which virtually made the czar protector of the Greek Christians throughout the Turkish empire. It was at the same time notified by the envoy, that if the ultimatum were not complied with, he would leave Constantinople in eight days. The events connected with these transactions, and the results, are described by the author of this History, in his _History of the War against Russia_, in the following terms, which are here transcribed. The account is the result of careful and painstaking researches, and of confidential intercourse with official persons well acquainted with the diplomacy and events of the period.

This ultimatum was declined by the Porte, and Prince Menschikoff withdrew from Constantinople. During these negotiations the Russian armies were concentrated upon the Bessarabian frontiers, and at the same time the Emperor Nicholas was sounding Sir H. Seymour at St. Petersburg. These conversations were accompanied by despatches and protestations that the emperor would not, in the quarrel then pending, attempt any territorial occupation. But Odessa and Sebastopol were filled with naval and military preparation, and the Russian army was massing upon the Pruth, ready at a moment's notice to invade the principalities. The moment at last came. Prince Metternich, and Count Nesselrode (the Russian minister for foreign affairs), baffled in their intrigues by the resolution of the sultan, gave place to other and more decisive performers. Prince Gortschakoff crossed the Pruth on the 25th June, at the head of a numerous army, organized to the highest efficiency on the Russian principle, and attended by a most powerful artillery and _matériel_ of war. Contemporaneous with the advance of his armies, the autocrat published a manifesto, which left his motives and objects no longer in disguise, and which no persons could misapprehend, except those whom the disclosures of Sir H. Seymour had failed to enlighten. Means were taken to reassure the Western governments that no conquest was intended. Count Nesselrode wrote diplomatic circulars to the Russian ambassadors and consuls at the various courts and capitals; M. Druhyn de L'Huys, the French minister of foreign affairs, and our own foreign minister, wrote countercirculars; and time was bootlessly expended by the Western governments that ought to have been given to the preparation of armaments. The Russians lost no time. Having advanced upon Wallachia by way of Leova, and upon Moldavia by way of Skouliany, they rapidly penetrated to the capitals of the provinces, where the clergy of the Greek Church, and the leading officials also of that communion, gave them public welcome. _Te Deum_ was sung in the churches, and the Russian armies acted as if on conquered territory. It was on the 3rd of July that the Pruth was crossed; on the 8th Prince Gortschakoff assisted in the ceremonies of the Church of St. Spiridion, at Jassy; on the 29th he received the compliments of the assembled bishops of the Greek Church of the provinces at Bucharest, 150 miles nearer to the Danube. By this date the Russian army had greatly increased; Gortschakoff, Dannenberg, and Luders had at their disposal nearly 20,000 cavalry, 144 pieces of cannon, of a larger calibre than had ever before been brought into the field by any army, and a force of infantry not so large in proportion to these arms of the service, but the precise number of which it is impossible, amidst so many conflicting statements, to verify. General Osten-Sacken remained within the Russian frontier with powerful reserves, and reinforcements were pouring along in unbroken streams from the great centres of Russian military power. The fierce Cossack from the Don and the Dneister, the Tartar from the Ukraine, the beetle-browed and predatory Baschkir, with all their variety of wild uniform, and "helm and blade" glancing in the summer's sun, crowded on the great military thoroughfares, while fresh supplies of well-appointed and formidable artillery were carefully transmitted. The foundries of Russia were blazing in the manufacture of warlike weapons; and the workshops of Belgium were ransacked for the musket and rifle. The shores of the Sea of Azoff and of the Black Sea were alive with craft of every size, bearing military resources to the points destined to receive them. By shore and river in the occupied cities of the provinces, and far off in the

cities of imperial Russia, the din of ceaseless preparation was heard; and it was evident to all men—still only excepting our government and the diplomatists—that Russia was preparing for a struggle against whatever forces might be brought against her, and was resolved to peril her empire upon one desperate effort to humble Europe, and grasp from Turkey some of her richest provinces, or compel the formal admission of her vassalage.

The Russian armies crowded down to the sweeps of the Danube, occupying every strategical position, and fortifying themselves by entrenchments and other defences as occasion seemed to require; the Russian leaders the while consolidating their hold upon the provinces thus occupied by deposing the hospodars, levying taxes and rations for the troops, taking the direction of the militia and municipalities, and when payments were made for anything giving only Russian paper, which it was never intended to redeem. Vast quantities of corn were accumulating upon the Danube and at Odessa, which could not be exported. The Russian armies must be fed; and it was a part of the policy of the occupation to detain these stores for any emergency that might arise. With all these evils pressing down the unfortunate Wallachians and Moldavians, forced enlistment was resorted to; and the boyards who refused complicity with the treasonable hospodars were placed in the Russian ranks. To crown all the horrors which filled with fear these wasted and tortured lands, cholera, which broke out in the corps of General Luders, communicated itself to the people of the country, and every town and many districts, from the windings of the Danube to the confines of Podolia, were swept by the cold hand of the unseen messenger of woe. As statements of all these calamities reached Western Europe, the people of England were indignant; and although the desire for peace was intense, the increasing indignation of the British people was loudly expressed. None of these things moved their government—their faith was in protocols and protests, both very gentle and harmless; and the Western powers literally did nothing effective during the summer and autumn until the 10th of September, when the French ambassador, as if in sudden alarm, and without any orders from his government or concert with his colleague of the British embassy, ordered three frigates to ascend the Sea of Marmora and anchor in the Bosphorus. The English minister, after much importunity, adopted a similar measure; but pains were taken to make the Czar and the world believe that this measure was intended to protect the Porte from its own subjects, and not from him. Indeed, the allies seemed to name Russia with “’bated breath;” while Russia was filling the world with boasting, fabricating reports of successes over the tribes of Central Asia, pushing a force even to Bokhara, and menacing and wheedling Persia by turns. The _Petersburg Gazette_ threatened that if England went to war, peace should be dictated to her from Calcutta; she was treated by the emperor and his subjects with utter disdain.

The Turkish government took example from Russia rather than from the allies; she made prodigious efforts to meet the exigency. Her first care was wisely not in the direction of the Danube. She knew that, numerous as were the Russian legions, they could not force the passage of the Balkan, and meet her in defence of her capital upon the plains of Roumelia, before the allied fleets and allied troops would secure it. She had another and more urgent danger; that pointed out by Lord Aberdeen in his

despatch upon the treaty of Adrianople.

* * * * *

Russia might penetrate through Armenia into Asia Minor; she might, from the southern shores of the Black Sea, rundown new hosts, overrun provinces comparatively unprotected, and by another route reach the Dardanelles, and menace not only Constantinople, but the allied fleets within its waters. The divan accordingly organized an army of Asia, and with it occupied Anatolia. Selim Pasha was appointed as commander-in-chief and seraskier of the province. Had he possessed the genius of Omar Pasha, to whom the army of the Danube was committed, he might, as events have since proved, have driven the Russians from Georgia and Circassia, and freed the Caucasus from their presence. He was wholly unfit to command a division, much less an army. The Asiatic danger provided against, Omar was sent to collect and organize an army in Bulgaria, and strong reinforcements were promised to be held ready at Adrianople. Two conscriptions, of 80,000 men each, were made before the end of September; and Russia replied to these demonstrations by two enormous levies.

Thus the note of preparation sounded through all the vast empire of the sultan, from Hindostan to the Bosphorus, and thence to the Danube.*

* Nolan’s “History of the War against Russia.”

The allies made attempts to open negotiations at Vienna, in which the Russian, Austrian, and Turkish diplomatists proved themselves superior to those of Western Europe. The only result was to prove that the dispute could be settled only by the arbitrament of war. This the sultan declared on the 4th of October, the new year’s day of the Turks. Fifteen days were given by the sultan for the czar to withdraw his armies before any attack was made upon them.

The events which followed will best and most briefly be depicted by a quotation from the author’s work already referred to.

Four days after the declaration of war, the sultan made a formal demand for the allied fleets to enter the Dardanelles. The demand was complied with, and the ministers of the Western powers presented the admirals with great “pomp and circumstance” to the sultan. The further request of the sultan that the fleets or a portion of them should pass also the straits of the Bosphorus was refused by the ambassadors, on the ground that the Western powers were not at war with Russia. In vain the foreign minister of the sultan urged the danger to which his ships and coasts were exposed in the Black Sea. The answer was, that Prince Gortschakoff had promised to make the war on the part of Russia strictly defensive; and that Count Nesselrode, in his circular despatch (above referred to), had repeated that promise. There was, in the opinion of the ambassadors, no reason for doubting the good faith of the Russian government; and they would not, by a demonstration so hostile as that of sending the fleets into the Enxine, provoke Russia to change the character of the war, and make it one of offensive operation. The reply of the Turkish minister was, that Russia could not make the war offensive upon the shores of the Black Sea if the fleets were to cruise there and that the only chance of her being able to convert the

war upon the Danube into one of active offensive operations, was her having command of the Black Sea for the easy transport of stores of all kinds to the vicinity of the armies. This reasoning, irrefutable although it obviously was, and most important as it soon and fatally proved itself to be, was met by the reply that the ambassadors had no instructions for any demonstration more active than the assemblage of the fleets for the protection of Stamboul. Again the Turkish minister pressed upon the ambassadors and admirals the exposed situation of the coast of the Black Sea and the Turkish squadron within its waters; and showed that, for the present, there was no necessity for the allied fleets in the Sea of Marmora; that the sultan, in calling them through the Dardanelles, contemplated their further progress through the other straits; that the Russians could not endanger the capital until they had forced the Danube, captured Shumla and Sophia, forced the passes of the Balkan, and were victors at Adrianople; or, from the eastern frontier, had pushed a victorious campaign from the Caucasus, through Asia Minor. It was, however, in vain that the enlightened men then in the Turkish foreign-office demonstrated that if the fleets were sent to defend Turkey, the Black Sea was their appropriate sphere of action: the admirals had no orders, and the ambassadors would give them none, and pleaded the absence of any discretionary power.

While the fleets spread the tricolor and the union-jack upon the gentle breezes of the Bosphorus, Omar Pasha, with frame of iron and intellect of light, seemed to do everything, as well as direct everything, upon the northern frontier of Bulgaria; and only just allowed the fifteen days' "notice to quit" to expire, before he showed Russia and the world that the Turks had a general, and that with a general they were still soldiers, as when the blazing scimitar of Orchan first flashed upon Europe, or Byzantium shook before the thunder of the artillery of Mohammed II. They were still worthy of their father, Osman, the "Bone-breaker;" and, in hand-to-hand combat, an overmatch for the boors of Russia, both in courage and strength. It must be said, to their disadvantage, that they were not very precise concerning the declaration of war; for on the very day it was declared, and without the knowledge of their chief, a semi-brigade hurried over the river, fell upon a Russian detachment, routed it, seized a considerable booty, and, like true Bashi-bazouks, were away again upon their own side before the foray could be chastised.

With the end of October, the time granted to Prince Gortschakoff by Omar Pasha expired; by whom strong detachments were immediately expedited to the Russian side of the disputed river. Crossing at once in several places, they were soon established in some force upon the frontier of Wallachia, and pushing forward a strong advance-guard upon the Russians, the latter skirmished, refused battle, and slowly and sullenly retreated upon Slatina. The Turks fought and gained several sanguinary battles on the Danube during the month of November, which was followed by various contests, less important, but scarcely less sanguinary.

The month of November, however glorious to the Turkish armies, was disastrous to its navy. The fleet lay in the harbour of Sinope, upon the Black Sea. The Russians, contrary to the official declaration made to the allies, to confine the war to defensive operations, resolved to attack the Turkish fleet by a surprise. The enterprise of the

Russian admiral was successful. The unsuspecting Turks were surprised; no opportunity of surrender was given; the attack led, not to a battle, but to a massacre. The whole fleet was destroyed, with an unsparing barbarity and a vindictive bloodthirstiness that must leave a stain for ever upon the pages of Russian history.

War continued to roll along the Bulgarian and Wallachian frontiers to the close of the year; the Turks displaying undaunted heroism, and surpassing the Russians in nearly every soldierly quality, so that the Russian armies lost by battles and marches 35,000 men, exclusive of the sick and wounded.

Prodigious efforts were made by the Russian emperor and the nation. The people contributed voluntarily 150 millions of silver rubles for the expenses of the war between the date of Omar Pasha's crossing the Danube to the end of the year. Of this vast sum the clergy contributed nearly one-half. All Russia was wrought up to a pitch of fanatical enthusiasm for the war, and every heart burned with ambition to see the Greek cross upon the dome of St. Sophia.

Tidings of the massacre of Sinope flew through Europe, and every man out of Russia, Austria, and the countries inhabited by Greeks, perused the harrowing story with indignation and disgust. In England and France the popular feeling against the tardiness of their governments rose high. The English ministry never regained the confidence of the public. The Earl of Aberdeen, Mr. Gladstone, Mr. Sidney Herbert, and the Duke of Newcastle, were known to be the members of the cabinet chiefly accountable for the policy of respect and timidity towards Russia, which had caused the British nation to take so tame and unworthy a part. The diplomatists continued to lose time by tedious and worthless negotiations, giving Russia the advantage of calling forth and organizing her resources, and fomenting by her agents sedition and insurrection among the Greek subjects of the Porte.

Little was effected by the hostile powers upon the theatre of Asia after the declaration of war during that year, but the clangour of arms resounded on the shores of the Black Sea, and along the confines of the two great empires.

PARLIAMENTARY HISTORY.

On the 10th of February parliament assembled. The usual fencing occurred between the leaders of parties. Lord Derby was fiery and impetuous, Lord Aberdeen reserved and pragmatical. Law reform first engaged the attention of the peers. The lord chancellor did not possess the confidence of the house, either as to his capacity or zeal in that direction, and, at the hands of Lord St. Leonards, his proposals received severe and able animadversion.

The topics in both houses were interesting during the first few weeks of the session, but only as connected with passing events. There was nothing done worthy of extended record, nor of particular notice within the space allotted to these volumes. The question of Jewish disabilities occupied the attention of members, under the auspices of Lord John Russell; but a bigoted hostility to the measure pervaded a large minority in the commons and a large majority of the lords. The leader of the party opposed to any concession to the Jews was the Earl of Shaftesbury, who, in a speech mild and impressive in manner, but bigoted and illogical in matter, succeeded in

persuading the lords to throw out the bill.

The financial plans of the government met with the support of the commons. Mr. Gladstone introduced the budget in a speech of extraordinary eloquence, which lasted five hours, and was applauded throughout by a great majority of the house. There were no original propositions, no very ingenious contrivances; but the right hon. gentleman threw around his statements an attraction by his eloquence which won his audience: like his preceptor, Sir Robert Peel, he proved himself to be, in the language of Disraeli, “a very great member of parliament.” In the debates which followed, Mr. Gladstone received several severe defeats from the more advanced liberals on his own side of the house; but all efforts on the part of the tory and protectionist section to defeat his proposals, upon their own principles, were abortive.

INDIA BILL.

The house, the public, the East India Company, and all interested in the great Eastern dependencies included under the general name of India, looked forward with anxiety to the bill which it was necessary to pass in reference to the relations of the country and the East India Company.

On the 3rd of June, Sir Charles Wood, in a speech of five hours’ duration, proposed his plan for the future government of India.*

* See Nolan’s “History of the British Empire in India and the East.”

Mr. Bright, in one of his most elaborate parliamentary efforts, criticised the measure; he eloquently inveighed against the East India Company, but his information upon subjects connected with India did not support the influence his parliamentary powers were so calculated to command. Lord Stanley, during the debates that ensued, distinguished himself for the first time on Indian subjects, over which in a few years he was destined to hold so important an influence. The bill of the government passed the commons, but was subjected to various alterations in the interest of the East India Company in the lords. Thus amended, it was accepted by the commons and became law.

To give even the briefest abstract of this measure would be as unnecessary as it is undesirable, within the limits of our space, for in a few years a great insurrection in India led to the abolition of the act, and the removal of the East India Company from all political power in India, and the vesting in the crown the government of all our eastern possessions.

The main objects of the act of 1858 were to lessen the power of the East India Company still more than it had been fettered by previous acts; to enlarge the scope of the board of control; to increase the direct authority of the president of that board and the governor-general of India; and to simplify the procedure of the home, action, on Indian government.

DISCUSSIONS ON FOREIGN AFFAIRS.—RUSSIA AND TURKEY.

Some party debates ensued upon certain speeches made “out-of-doors” by cabinet ministers about French affairs, in which some personalities towards the French emperor were indulged. Hardly any other foreign topic engaged the debating powers of the members, except the all-absorbing one of the hostile proceedings of Russia against Turkey. It was the general opinion of the English people, that the French emperor, for dynastic purposes, brought on the war. He had not been recognised by the Russian emperor, and the policy was obviously to bring on a conflict in which, with England and Turkey for allies, victory was certain, and the beaten czar would be obliged to recognise an emperor in the person of his conqueror.

Discussions upon the relations of Turkey and Russia began as early as April, and were continued, with short intervals of intermission, while parliament sat. During these debates the ministry was severely arraigned for incapacity, tardiness, crotchety and conceited views, confidence in the czar, which could only be inspired by sympathy with his despotic views, and instability of purpose. To the Aberdeen section of the cabinet these failings were especially attributed, and the justice of the imputations was too plainly established. The Earl of Derby, Lord Lyndhurst, and the Marquis of Clanricarde, showed a large acquaintance with the subject, and their orations against the policy of the government were the happiest political and parliamentary efforts ever made by those noblemen. In the commons, Mr. Layard, Lord Dudley Stuart, and Mr. Duncombe, made severe and eloquent denunciations against the ministerial policy, which “out-of-doors” encountered universal reprobation. It was the general opinion that Lord Palmerston ought to be placed at the head of affairs: even the conservative section of the country desired such a change, but were of opinion that his lordship should serve as minister for foreign affairs, or minister of war, under Lord Derby as premier. It was plain that while Lord Palmerston supported his colleagues ostensibly, he did not interfere much in foreign affairs, but attended to the duties of the home-office, which had never before been so efficiently performed. He was an object of jealousy, both to the Russell Whigs and the Aberdeen Peelites, and possessed more of the confidence of his opponents than of either. Much dissatisfaction was created throughout the country by the temper and policy displayed by Mr. Cobden, Mr. Bright, Mr. Fox, and other gentlemen of the Manchester school. The great abilities of those gentlemen, the general conviction entertained of their honesty of purpose, and their past services to their country, on economical questions especially, made men reluctant to exhibit the dissatisfaction felt, and which, at a later period, displayed itself by strong practical demonstrations. These gentlemen lauded Russia as a highly civilized and Christian state; Turkey, on the other hand, was denounced as a robber power, which ought to be dispossessed. It was asserted that it was for the good of English trade that Russia should succeed in conquering Turkey; and that, at all events, it was the interest of England to be neutral, and leave France, Turkey, and Russia to concuss, as the waves of the sea against one another and the shore. A general impression, however, arose, that as the Manchester trade with Turkey and Eastern Europe was mainly transacted through Greek merchants and agents, it was the commercial interest of these men to conciliate the enemies of the sultan, apart from the political aspect of their relations. The cabinet was undoubtedly much influenced by this section of its supporters in the

blind confidence it snowed to the czar, in their presumption that moral influence would suffice to prevent a war, and in the niggardly, and therefore unwise, and ultimately costly scheme upon which armaments were provided. Probably never in the House of Commons was rebuke more eloquently and sincerely given, or more justly merited, than when Lord Palmerston exposed the contradictory, selfish, and unpatriotic policy advocated by Mr. Cobden.

The hostile feeling of the Manchester section of the liberal party towards Lord Palmerston increased from that time, and his lordship made no efforts to conceal his dislike of the party, but sometimes showed it in a manner even contemptuous. The influence of the party was exercised upon the cabinet, and Lord Palmerston felt himself treated by so little consideration, that on the 16th December he resigned. Her majesty wisely refused to receive his resignation. No explanations of the cause of the circumstance were ever given in parliament, but the country, una voce, pronounced that it arose from his lordship’s dissatisfaction with the truckling policy of the Aberdeen party in the cabinet, and his popularity rose still higher.

The session of 1853 was not unproductive. Various measures of importance were transacted. The cabinet possessed much administrative ability, and displayed it by carrying a number of bills of great practical utility. It was a good peace, but a bad war, ministry.

DEATHS OF EMINENT PERSONS.

In modern English history much of the greatness and glory of the country may be learned by noticing the names, characters, and exploits of the eminent persons who pass away from the theatre of life and action. So fruitful is the country in men of renown, and men who deserve renown, that to notice these is to see the mighty position which Great Britain occupies, and is likely to occupy, in the world.

The obituary of 1853 was not more remarkable than that of previous years; but still the number of the great and good who dropped into the silence of the grave was too great for any justice to be done to their memories, or to their country, jealous of their fame. Throughout the year, admirals and general officers, who had well served their country, were removed from the ranks of her defenders. So numerous were these, that it would be invidious to select from them any for particular notice.

Among the men of other professions it is more easy to point out a few of those whose decease excited general regret.

In January, Jonathan Pereira, Esq., M.D., F.R.S., and F.L.S. He was distinguished as a professor of _Materia Medica_, and a writer on medical subjects.

In February, Dr. Kay, Bishop of Lincoln. The son of a linen-draper of Hammersmith, near Kensington. He rose by force of his superior intellect to the highest honours in the church. As a general scholar, as well as a theologian, he attained great eminence.

In June, the Earl of Ducie. This nobleman was one of the most excellent in the peerage. His religious zeal and charity received the acknowledgments of all classes of men, although his resources were small. He was a proficient in agricultural science,

and invented various agricultural implements of utility. As a breeder of stock he was unequalled. His “Example Farm,” at Whitfield, gained him much reputation. He was a sound political economist and freetrader. The author of these lines had opportunities of seeing his lordship’s attainments in these respects severely tested in private intercourse with men of the highest name.

July witnessed the death of Lady Sale, widow of the heroic General Sale, who died from wounds received upon the field of battle. Lady Sale was one of the captives made by Akbar Khan in the disastrous Affghan war. During that war, and more especially during her captivity, she displayed wonderful fortitude. She possessed extraordinary military skill and knowledge, and showed judgment in campaigning and in diplomatic affairs, far superior to most of the chief officers with whom she came in contact. Her narrative of the Affghan war is ably written, and a record of most romantic events. After the death of her gallant husband, she received a pension of £500 a year from the queen. She returned to India, and resided among the hills, and ultimately died at Cape Town, Florentia, on the 6th of July, universally regarded with respect and admiration.

Although the names of eminent officers in the army and navy, who died in this year, have been passed over in these notices, from their great number, one is especially deserving of being selected from the heroic crowd.

Lieutenant-general Sir Charles James Napier, G.C.B. This extraordinary man was the eldest son of the Hon. Colonel George Napier, comptroller of the army accounts in Ireland. Before he finished his twelfth year, he was appointed to an ensigncy in the 22nd regiment of foot; and it is a remarkable fact, that his conquest of Scinde was mainly effected by the instrumentality of that regiment. His services were arduous and heroic. His mind was original, and active exceedingly. He possessed amazing vigour in command, and powers of organization rarely exhibited. The great duke held him in high estimation as a general. He was seventy-one years of age at his death, which took place at Oaklands, near Portsmouth. A monument, to celebrate his exploits, has been erected in Trafalgar Square, near to that of Nelson.

As December opened, Mrs. Opie, so celebrated as a writer, died at Norwich, her native place, in her eighty-fifth year.

On the 17th, the Marchioness of Wellesley, an American lady of Irish parentage. Her life was an eventful one. She was much esteemed as the lady of the Lord-lieutenant of Ireland, when the noble marquis held that post. She had been for many years a favourite of Queen Adelaide, and died in the Palace of Hampton-court.

The Rev. W. Jay, the eminent Congregational minister of Bath, died on the 27th, in his eighty-fifth year. He began to preach before he had attained his sixteenth year. Before he was of age, he had delivered about one thousand sermons. He had been sixty-two years minister of Argyle Chapel, Bath. His writings were varied, beautiful in style, and rich in thought and illustration. They were productive of a vast amount of good, as all denominations of Christians and all ranks of men perused them. The author of this History was on terms of intimacy with this remarkable man, and can testify that his powers of conversation were as varied and rare as his talents in the

pulpit, and as a writer on religious subjects.

CHAPTER LXVI.

{VICTORIA. 1854}

Home Affairs: General excitement at the beginning of the year..... Declaration of War against Russia..... The Court..... Tidings of the loss of Captain Franklin..... Cholera..... Ireland: Party animosities and murders..... Colonies: Their General peace and prosperity..... Foreign Relations: The French Alliance..... War with Russia..... Battles by sea and land..... Dreadful sufferings of the British Army..... Parliament: Contests concerning the conduct of the war..... Break-up of the Aberdeen government..... lord Palmerston premier..... Deaths of Eminent Persons.

HOME AFFAIRS.—GENERAL PROSPECTS.

{A.D. 1854}

The year 1854 opened gloomily upon the United Kingdom. Sickness prevailed; bad harvests in western and southern Europe caused a dearth of food; and there was reason to fear that the fleets and armies of England and France would encounter those of Russia in open war. There was much dissatisfaction with the government. The Earl of Aberdeen and the whole Peelite section of the cabinet were believed to be too friendly to the czar, and adopting a policy unworthy of English greatness and of English honour. The court was supposed to be influenced by the German powers in favour of Russia, and to be secretly hostile to the French emperor. An active and almost authoritative interference in the administrative affairs of the government, home and foreign, was attributed to Prince Albert; and that interference was believed to be unfavourable to free opinions at home, and a dignified attitude on the part of England to foreign powers. A passion for Germanizing the army and the home-office, for centralization—so contrary to English opinions and traditions—and for subjecting the policy of England to German interests, necessities, or views, was believed to possess the prince, and to spread its influence in the court. The prince, who had won so wide a popularity, became, in fact, unpopular. No open demonstrations were made of this feeling, but his royal highness was received coolly when he appeared in public, and the newspapers of the whole of the united kingdom gave him the discredit of such rumours. Happily, when parliament met, the statements of the ministers lessened these unpopular impressions, but did not efface them. It was thought that the public men who were favourable to England’s taking a spirited part in defence of Turkey, in conjunction with France, and against the wishes of the German courts, were thwarted by the prince.

The desire was universally entertained that parliament should meet at the beginning of January, but it was the last day of that month before it assembled.

The approaching rupture with Russia occupied the attention of the public intensely; the youth of the country burning for war against a power so despotic and

cruel. The massacre of Sinope had goaded the English nation to a feeling of resentment against the czar personally, and to an antipathy to the genius and spirit of the nation which he governed. For sake of treating the events of the time with unity, we shall pass over the home incidents connected with the proclamation of hostilities until the peaceful incidents which were important to the country are first recorded.

A new Crystal Palace was erected at Sydenham, which excited a wide-spread interest, that even the thunders of war could not distract.

The friends of literature were gratified by the erection of a monument to Thomas Hood, in the cemetery at Kensal Green. No writer of modern times, in prose or verse, possessed his facility for touching the hearts of his countrymen, and leaving his words deep in their memory.

In the autumn the public were much affected by tidings concerning the fate of the great arctic navigator, Captain Franklin, which left no longer a hope that he had survived the perils of the polar seas. Dr. Rae, the celebrated American traveller, landed at Deal, in October, and made a communication to the admiralty to the following effect: that the captain and his whole party had, according to the testimony of certain Esquimaux, perished of cold and famine in the spring of 1850. Dr. Rae and his party purchased various articles from these people, which were undoubtedly relics of the unfortunate expedition. During September, the screwsteamer, _Phoenix_, had arrived at Queen’s Town, on her return from a searching voyage in connection with the gallant captain. This vessel was the remains of the little squadron, commanded by Captains Collinson, McClure, and Belcher. Captains Collinson and McClure succeeded in establishing the fact of a north-west passage. They were, however, unable to discover any traces of the Franklin expedition, such as would lead to any certainty as to his fate.

During the summer and autumn the cholera smote London and the provinces with great severity. During the quarter ending September, about thirty thousand persons perished in England of cholera and diarrhoea; during the three months ending with December, several thousands more were added to the sad enumeration.

One of the events of the year which most interested the commercial public, was the great loss of property by shipwreck. The coasts of the United Kingdom were strewn with wrecks in every direction, but especially along the north-east of England. There were upon the coasts of Great Britain and Ireland nine hundred and eighty-seven wrecks. During the first month of the year the greatest havoc was made. During that month four hundred and sixty-seven lives were lost. The total number lost by shipwreck during the year was one thousand five hundred and forty-nine. Such was the report of the Admiralty’s register; but it is certain that omissions were made, and that the number was considerably higher.

THE COURT.

The Russian war caused her majesty many anxieties, and an expression of care and deep concern was observed upon her countenance when she appeared in public. The festivities usual to the British court, and the rural enjoyments to which her majesty and her court were so much addicted, were greatly abridged by the demands of

public business upon the queen, and the exciting vicissitudes of the war.

The events of chief interest to the court, apart from the great turmoil of public affairs, were the visits of certain royal persons to the queen, and a visit made by the royal consort to the Emperor of the French.

On the 2nd of June, the young King of Portugal, with his brother, the Duke of Oporto, arrived at Buckingham Palace. Every hospitality was shown to these princely guests; and they accompanied her majesty and Prince Albert to various places worthy the inspection of foreign princes.

The Egyptian prince, El Hami Pasha, heir of Abbas, the Pasha of Egypt, arrived at Southampton in July. The prince was attended by various great officers of the Egyptian viceroy.

On the 5th of September several princes visited the French Emperor at Calais and Boulogne. Among them was Prince Albert and his uncle, the King of the Belgians. The prince was attended by detachments of the Life Guards and the Horse Guards as an escort. These troops were objects of much curiosity and admiration on the part of the French citizens and soldiers.

On the 14th of September her majesty paid her customary autumnal visit to her Scottish Highland retreat. _En route_ she slept at Holyrood, the palace of the famous and unfortunate Mary, Queen of Scots. On the 12th of October her majesty left Balmoral for Windsor.

IRELAND

As usual, the people of England were, from time to time, startled by accounts of agrarian outrage, and of murders perpetrated under circumstances of savage ferocity hardly paralleled anywhere. Some of the worst criminals were found guilty; generally, juries in the Roman Catholic districts were unwilling to convict, and frequently the prosecution rested on the evidence of informers too infamous to believe. All the old evils which had so long harassed that distracted country remained in full force. The spirit of party, and of religious rancour, raged fearfully. The most terrible exemplification of sanguinary bigotry which, perhaps, the world ever witnessed, occurred in the north in September. During periods of persecution in all countries, man has proved himself swift to shed blood under the influence of intolerance and fanaticism; but seldom, if ever, in cold blood, had so horrible an atrocity been contemplated, as was attempted by the anti-Protestant party in Ulster, on the 15th of September.

The city of Londonderry, it is well known to the readers of English history, made an extraordinarily gallant defence against the army of James II., during the revolutionary war of 1688–9. Ever since it has been customary for the Protestant citizens of Derry to commemorate the glorious event. So it was, also, in the September of 1854. A large number of Protestants, many of whom were Orangemen, residing in Enniskillen and the neighbourhood, resolved to join their brethren of Derry in their festivities. For this purpose they hired a train on the railway. They arrived at Derry, joined in the

demonstrations made by “the maiden city,” and resumed their places in a returning train. The hostile party determined to effect the destruction of the whole party. Impediments were placed ingeniously on a particular part of the road, by which one of the two engines that drew the train was thrown down an embankment, and the other flung back upon the carriages. One of the engine-drivers was killed; two were terribly wounded. The Earl of Enniskillen, who headed the party, was on the engine, and narrowly escaped death. Several passengers were injured. It was wonderful that any escaped. The country people could hardly be prevailed upon to render assistance, they sympathised with the murderous purpose which had barely failed. The Roman Catholic party raised a great outcry against the Orangemen _for provoking_ such an outrage. The liberal party in parliament and in the press could not afford to do without the Roman Catholic vote, and took up the same key-note of denunciation of the Orangemen. It is astonishing how little indignation the British public showed at this attempt at wholesale assassination by fanatics. A verdict of wilful murder was returned by a coroner’s jury against six navvies who worked upon the rail. No adequate means were adopted by the government to trace out the offenders, or bring them to the condign punishment so extraordinary an atrocity deserved.

COLONIAL.

The colonies were generally prosperous and peaceable; much alarm was excited, especially in Australia, India, and the Straits of Malacca, by the want of fortifications and ships of war for their protection. It was deemed possible that a Russian fleet might sail through the straits, from its Siberian rendezvous, and commit great ravages in India, and that Australia was still more open to attack. Great efforts were made by the colonists to place the colonies in a good defensive condition, and even to aid the parent country in a war so popular in every part of the empire.

In Canada several public disasters occurred during the year: chiefly a terrific fire at Quebec, by which a large portion of the city was destroyed.

The coasts of India, especially of Western India around Bombay, suffered from storm. The war with Ava bore its fruits; peace was confirmed, the Birmese were taught a salutary fear of British power, and deprived of the resources by which they might again make war upon our Indian empire. There were various matters of moment to India. Oude was, like Ireland, in chronic distraction; and the policy pursued towards it by the governor-general of India and the board of control was neither salutary, nor even safe. The space allotted to this History does not allow of even a review of the affairs of the vast empire of Hindostan.

FOREIGN AFFAIRS.—THE ALLIANCE WITH FRANCE, THE WAR WITH RUSSIA.

As the events of 1853 upon the Danube and in Asia Minor became known in Western Europe, the bonds of amity between the two great Western nations were drawn more closely, and it was finally resolved to unite with Turkey in war against the haughty and sanguinary autocrat of the North.

As before related, the British parliament met on the 30th of January. It was anxious, if possible, to avert war. Whatever the events which fill up the measure of national calamities, it was felt that war was, of all, the most terrible. Still, the

parliament and nation felt the truth of language directed by Lord Palmerston against Mr. Bright: “War is a calamity; but there is a greater calamity than war—national dishonour!” This was the sentiment of the nation, and of its representatives in parliament assembled. Fiery debates filled up the interval until war was actually proclaimed, and then her majesty put forth her manifesto of hostilities, with the unanimous support of a mighty people.

On the 8th of February the Russian ambassador withdrew from the British court, and the British ambassador was ordered from St. Petersburg. During the month of February troops continued to embark for Malta and for the Bosphorus. Sad were the scenes of parting which were then witnessed throughout the British Isles; more especially in the great metropolis, through or from which a large proportion of the number of troops sent proceeded. It was most touching to witness the battalions of glorious men, attended by sympathizing crowds, passing along our great thoroughfares to the expressive music of their bands—“We are going Far Away,” “Love Not,” “Cheer, Boys, Cheer,” “The Girl I left behind Me,” and other popular pieces, which suggested the sad but gallant emotions that filled the breasts of our brave. Her majesty took leave of her guards with touching tokens of her confidence, hope, and yet sorrow, for the need that arose of their services; they responded by the most enthusiastic demonstrations of loyalty and devotion. Yet, after all, it was but a demonstration of ten thousand men, which the ministry thought would exercise a decisive _moral_ influence upon the proceedings of the czar. Mr. Gladstone was great with indignant and pompous eloquence upon the glory of this achievement.

The troops landed on the shores of the Bosphorus unprovided with almost all the great essentials of a modern army. The Duke of Newcastle and Mr. Sidney Herbert, upon whom the arrangements mainly devolved, were unequal to the task. Lord Hardinge presided at the Horse Guards—a man of party prejudices, and who was ever willing to sacrifice the interests of the army to family influence and political considerations. Lord Raglan was nominated to the command in chief—an officer who had never commanded a brigade in the field, and found himself destitute of the chief qualitities necessary in a commander of an army in a campaign. These proceedings passed before war was proclaimed. It was supposed that the mere demonstration would effect the end really in view—to cause the czar to recede somewhat in his demands. At last war was proclaimed. On the 29th of March this august solemnity took place. The people hailed it with pleasure, for it was felt that, however undesirable the event, it had been impolitically delayed. France made a similar declaration. The two great Western nations went to war with the Muscovite for the integrity of the Ottoman empire.

On April the 21st, her majesty proclaimed a day of fast and humiliation, which was observed by the whole nation on the 26th. A French journal observed, that “seldom was a sublimer spectacle presented to the world than a mighty nation, which had buckled on its armour for war, humbling itself before the Almighty, and appealing to his power and protection with one voice.” Such were the leading home incidents preparatory to the great struggle in which great nations battled for ascendancy. Preparations still went on in England for the struggle, which was so soon to ensue in

all its sanguinary earnestness. The estimates, which parliament was asked to vote for 1854, beginning on the 1st of April, were utterly inadequate to to the crisis; they were—

Proposed Vote. Increase.

For the Army.... 6,287,488 262,470

„ Navy.... 7,487,948 1,202,455

„ Ordnance 3,854,878 792,311

£17,630,314 £2,257,236

These estimates were of course the occasion of much parliamentary discussion, the feeling of the house being in favour of a larger vote. The chancellor of the exchequer, Mr. Gladstone, hoped by this “bit by bit” preparation for the war to show his majesty the czar British desire for peace; and expected to conciliate him by showing how few regiments we were willing to raise, and the modicum of expense wo contemplated. All who knew the habit of thought in Asiatic nations—and Russia is essentially an Asiatic nation—were aware that this parsimonious war-making would have a contrary effect: the czar understood it as a token of a commercial disgust to war, and a dread of adding to the national debt, and he was encouraged to proceed. That such was the feeling at St. Petersburg private letters at the time, and subsequently, abundantly established.

The naval preparations for the war made better progress than those of the army. A fleet was fitted out, the most magnificent the world ever saw, and was committed to the command of Vice-admiral Sir Charles Napier. Rear-admirals Chads and Plumridge were also appointed to important commands under Sir Charles. This fleet was exercised daily off Portsmouth by Admiral Chads, especially in gunnery, who had obtained great celebrity in that department of a naval officer’s qualifications. The Russian fleets had paraded about the Gulfs of Bothnia and Finland the preceding autumn, and the usual boastings were heard through the Russo-German organs of the press, and from the friends of Russia in the London clubs. In consequence of these boastings, the public were very anxious for the dispatch of the Baltic fleet as early as possible in the spring, and the 11th of March was fixed upon.

The powerful fleet under Sir Charles Napier’s command was reviewed by her majesty on the 7th of March. It consisted of sixteen war steamers; of which two, the _Duke of Wellington_ and the _Royal George_ were, three-deckers, while three carried admirals’ flags—Sir Charles Napier’s in the _Duke_, Admiral Chads’ in the _Edinburgh_, and Admiral Plumridge’s in the _Leopard_. The _Euryalus_, screwsteamer, was subsequently added.

The second division, under Vice-admiral Corry, which afterwards joined Sir Charles Napier, consisted of—seven ships of the line, four screw ships, and twelve steam frigates, sloops, &c.

Sir Charles Napier stated publicly, and personally assured the author of this History, that his fleet was badly manned as to the quality of the men, and

inadequately as to the numbers on board. The proportion of skilled seamen was altogether beneath what the necessities of the fleet required, and exposed it to great danger. The admiral went so far as to aver, that had the Russian fleet the courage to come out, so unskilfully manned were his ships, that the enemy might have secured an easy conquest. This statement excited strong protests and contradictions, and has been always regarded with indignation by the gallant men who walked the decks of these proud ships of war.

It may be here a suitable place to state the force and the arrangement of the troops ultimately constituting the British expeditionary army in Turkey. It was of course subjected to various modifications afterwards, but the following is an accurate representation of the divisional arrangement of the army, and its constituent regiments:—

First Division.—Lieut.-gen. the Duke of Cambridge. _First Brigade_ (under the command of Major-general Bentinck).—Grenadier Guards, 3rd battalion; Coldstream Guards, 1st battalion; Scots Fusilier Guards, 1st battalion. _Second Brigade_ (under the command of Major-general Sir Colin Campbell).—42nd Royal regiment, or “Royal Highland Watch;” 78th regiment (Rosshire Buffs); 93rd, or Sutherland regiment.

Second Division.—Lieut.-gen. Sir De Lacy Evans. _First Brigade_ (under the command of Major-gen. Pennefatuer).—30th regiment; 55th regiment; 95th regiment (a new regiment). The old 95th served throughout the Peninsula and at Waterloo. _Second Brigade_ (under the command of Brigadier-general Adams).—41st regiment (Welsh); 47th regiment (The Lancashire); 49th regiment (The Princess Charlotte’s).

Third Division.—Lieut.-gen. Sir Richard England. _First Brigade_ (under the command of Brigadier-general Ryhe).—1st regiment (The Royal regiment, formerly called Royal Scots); 28th regiment (North Gloucester), during the present century this regiment has been Irish; 38th regiment (1st Staffordshire). _Second Brigade_ (under the command of Brigadier-general Sir J. Campbell).—44th regiment (East Essex), during the present century this regiment has been an Irish one; 56th regiment (West Essex); 68th regiment (Durham Light Infantry).

Fourth Division.—Lieut.-gen. Sir George Cathgakt. _First Brigade_ (under the command of the senior Lieut.-col., as Brigadier).—20th regiment (East Devonshire); 21st regiment (Royal North British Fusiliers); 1st battalion Rifle Brigade. _Second Brigade_ (under the command of the senior Lieut.-col., as Brigadier).—63rd regiment (West Suffolk); 46th regiment (South Devonshire): 57th regiment (West Middlesex).

Fifth, or Light Division.—Lieut.-gen. Sir George Brown. _First Brigade_ (under the command of Brigadier-general Goldie).—Royal Rifle Brigade, 2nd battalion; 7th Royal Fusiliers; 23rd Royal Welsh Fusiliers; 33rd regiment (Duke of Wellington’s own). _Second Brigade_ (under the command of Brigadier-general Buller.)—19th regiment (1st York, North Riding); 77th regiment (East Middlesex; 88th regiment Connaught Rangers).

Cavalry Division.—Lieut.-gen. the Earl of Luoan. _First Brigade, Heavy_ (under the command of Brigadiergen. the Hon. J. Scarlett).—1st (Royal) Dragoons; 2nd (Royal) Dragoons (Scots Greys); 4th Dragoon Guards (Royal Irish); 5th Dragoon

Guards (commonly called Green Horse); 6th Dragoons (Inniskillens). _Second Brigade, Light_ (under the command of Major-gen. the Earl of Cardigan).—4th Light Dragoons (Queen’s own); 8th King’s Royal Irish Hussars; 11th Hussars (Prince Albert’s own); 13th Light Dragoons; 17th Lancers.

It was finally agreed upon between the two Western governments, that England should furnish 30,000 men, and France 70,000. It was then thought that an allied force of 100,000 men in support of a Turkish army equally numerous, would be sufficient to drive the armies of the czar out of the Principalities.

Leaving for a while the din of preparation, and the dispatch of troops, it is necessary to return to the operations of the Turks upon the Danube. It is not suitable to this History to record all the victories gained by the Osmans, it is only necessary to observe, that they were almost uniformly victorious, and fought with dazzling bravery. The grand struggle, however, on the part of the Turks was in the defence of Silistria. Against that place a powerful Russian army, under its ablest artillerists and engineers, was directed. The Turks were few and badly provided, but they were encouraged by the presence of various British officers of the most heroic mould. Among these none was more distinguished than Captain Butler, who perished from a wound received in the defence, while beside the gallant British General Cannon (Behram Pasha), by whom the garrison of Silistria had been reinforced.

There was something mysterious about the policy pursued during the siege of Silistria. The place was driven to the utmost straits, although Omar Pasha was at the head of a large army at Shumla, and the Western allies were at Varna. The latter declared that they were unable to move from want of those campaigning appliances, which a French army has not been usually known to stand in need of either before or since. Omar Pasha said he could not move for want of beasts of burden, and from strategical reasons; although he supplied the allies in Bulgaria with pack animals and 500 _arobas_, or carts, from Shumla, and no reason could be seen why he did not push on his troops to the relief of the beleaguered and endangered city. At last he sent a portion of his troops forward, and Russia was destined to undergo a signal humiliation. When the troops of Omar Pasha sent to relieve the place advanced for that purpose, the Russians had so completely invested it against the approach of a relieving army that there seemed no hope of accomplishing that object. The Turkish army was not strong enough to fight a pitched battle, and cause the Russians to raise the siege. It was of the last importance that the drooping, wearied, and dispirited garrison should be relieved by fresh men. This exploit was accomplished by the genius and promptitude of one heroic man—General Cannon, bearing the Turkish title of Behram Pasha. He commanded the light division of the Turkish army. He caused letters to be written to the officers of the garrison, laying down a plan by which they were to co-operate with him in entering the city at a certain hour, by a certain point. These letters he managed should fall into the hands of the Russians. They accordingly prepared in great strength to defeat the stratagem they had, as they supposed, so opportunely discovered. The British general made a long detour, and after a night of forced marching he came upon an opposite part of the city, an entrance by which the Russians could not have supposed possible, and to the joy and

wonder of the garrison, the best division of the Turkish army, with its best general at the head, marched into the city. From that hour the contest was no longer dubious. The Russians saw that the prize was carried from their grasp. They at last raised the siege, to be pursued by Cannon and other British officers, at the head of their gallant Turks, from victory to victory, until the baffled and beaten Muscovite fled through the Principalities he had so boastingly invaded, and so ruthlessly plundered and oppressed. To General Cannon’s skill and courage the raising of the siege of Silistria, the grand turning-point of the campaign, is to be attributed. The conception of the plan, the peril of the attempt, and the glory of the achievement were all his own.

Contemporaneously with the war on the Danube, operations were conducted in Asia Minor, but no British or French troops were sent there at any period of the war.

During the closing months of 1853, the Russians organized a powerful army to drive the Turks out of Asia, but the Circassians and other tribes of the Caucasus were in arms against Russia, and fought so gallantly and perseveringly, that the troops of the czar were unable to effect anything until late in the summer of 1854. The Turks organized an army for the defence of their Asiatic possessions, and committed it to the command of Jazif Pasha, an utterly incompetent man and bigoted Mohammedan. Under him was another officer, of like character, Selim Pasha, who experienced defeat at the hands of far inferior forces of the enemy. A number of Polish and Hungarian officers, who had fought in the Hungarian revolution of 1848, were sent to assist the Turkish Muchir in forming and disciplining an army. Some of these men became Mohammedans, and obtained substantial rewards and honours; others, refusing to renounce the profession of Christianity, were not allowed to hold real authority, but acted as a species of aides-de-camp of high rank, and counsellors of the pashas. Among the foreign officers of this description was a native of the west of England, named Guyon, a man of rare genius, and as rare bravery. He had taken part in the Hungarian revolution, and as the despotic power of Austria was sacred in the eyes of Lord Stratford de Redcliffe, the British ambassador at Constantinople, and all revolutionists, however honourable their cause, were hateful to his lordship, Guyon met with no countenance or support from him. The personal prejudices and predilections of the noble ambassador were always in the ascendant, and often were sufficiently strong to injure the cause of Turkey and the allies. Guyon was, however, raised to the rank of pasha, and got the surname of Kurschid. The native pashas set his advice and authority at defiance, plundered the troops, the people, and the government, and acted more like the allies of Russia than generals or dignitaries of Turkey. Such a state of tilings in the Turkish army encouraged the Russians, and they advanced, notwithstanding the embarrassments created by the intrepid raids of the mountaineers of the Caucasus, under the enterprising Schamyl and his lieutenants. The Polish officers in the Turkish service were jealous of the superior skill and chivalrous heroism of Guy on. Indeed, throughout the war in Asia, the English officers who acted there were opposed with envenomed rancour by the Poles who happened to serve in the same cause with them, and one or two Germanized-Hungarians joined in this anti-British feeling. But for Guyon the Turkish army would have been annihilated before the autumn of 1854, and yet the mendacious Muchir and his Feriks laid the blame of every defeat upon the European officers, but especially upon the

best and the bravest of them all—the dauntless and noble-hearted Guyon.

During August, 1854, the Russians advanced, with the design of attacking Erzerum. The Turkish pashas were too much intent upon plundering every one within the range of their power to offer any effectual resistance. Hungarian, German, and Polish officers, especially the two latter, were equally zealous in quarrelling with one another. Guyon alone, among the officers of superior rank in the Turkish service, displayed activity, intelligence, foresight, and spirit; but he was thwarted by the other Europeans, and insulted and defied by the Turkish Muchir, Feriks, and Beys. Again and again he pointed out the sure road to victory, and the fact that the Turks were superior in numbers and resources to their foes: his counsel was despised, delays were interposed, when no alternative but the ostensible adoption of his plans remained, and the result was the almost total dispersion of the Turkish armies, and the imminent danger of Erzerum, and even Kars, falling into the hands of the enemy without a struggle. This state of things continued until Lieut.-colonel (afterwards Major-general Sir Fen wick Williams, Bart.) Williams appeared upon the scene as the commissioner of her Britannic majesty. In that character he was invested with an authority poor Guyon could not claim, and without which the latter officer struggled in vain. Colonel Williams, like Guyon, was an object of the insatiable jealousy of Lord Stratford de Redcliffe, who gave him no support, and, in spite of the entreaties—and, at last, of the commands—of the English minister for foreign affairs, thwarted Colonel Williams in every conceivable way. Supported, however, by the decision, perseverance, and intelligence of Lord Clarendon, the English commissioner held his ground in spite of the coldness, and even opposition, of the ambassador, and was enabled to re-organize the dispersed armies of the Porte, to place Kars and Erzerum in conditions of defence, and to throw such obstructions in the way of the Russians, then flushed with success, as retarded their advance, until the fall of Sebastopol decided virtually the fortunes of the war.

Leaving the struggle in Asia in the position above noticed, it is necessary to turn once more to Turkey in Europe.

When the conquering Turks drove the flying Russians before them through the Principalities, the Austrians marched in and took possession of the quarters abandoned by the fugitives. Interposing between the victors and the vanquished, the Austrians rendered valuable services to the Russians, and, perhaps, preserved their army from total destruction. Without the knowledge of the Western allies, Austria concluded a convention with the Porte for the occupation of the Provinces. There were many circumstances to prove that the French government was privy to this design, and a special policy on the part of France began to develop itself. Whatever the motives of that policy, it had, for its effect, a concert with the Austrians in exercising a domination over the Roman Provinces far more intolerable than that from which Turkish valour had delivered them. The oppressed Romans sought and obtained the sympathy of the English; but both Austria and France were jealous of that sympathy, and dreaded the dissemination of English constitutional opinions. Austria, ever the foe of freedom, barred out, as it were, English intercourse and views, in virtue of the power she obtained by her convention of occupation with the

sultan. The policy of Austria was also vacillating and indeterminate. At one time she would appear ready to join the fortunes of the allies, and immediately after direct her endeavours to secure the Russian frontier from the assault of the allied armies. It was generally believed that Russia was more vulnerable from the confines of Podolia, and by a campaign carried into Poland, than elsewhere. Austria dreaded the appearance of French and English uniforms in too close proximity to Russian Poland; nor was Prussia less timid of that phenomenon; for both were apprehensive of a general rising of Poland against her tripartite oppressors. At one time Austria was said to be willing to join in the war and march across the Russian frontier in the rear of an allied invasion, provided England and France backed the movement by a certain amount of force. As the Western nations could not, or would not, march an amount of troops in that direction, such as Austria deemed necessary in consequence of the vulnerability of her own frontier line, she declined the peril, and satisfied herself with holding the Dacian Provinces in the name of the sultan; but, for her own purposes, Austria had designs upon Moldavia and Wallachia, and when the war was brought to a termination, could with difficulty be persuaded to withdraw her troops from them, and did not retire until public opinion, in England and France, was expressed in terms of resentment and menace. Such was, in brief, the history of the success of Turkey upon her own European frontier, and of the quality of the help afforded by Austria to Turkey and the allies during the war.

Another sphere of action now demands attention. The allied fleets entered the Bosphorus immediately upon the slaughter of Sinope. Still, as war was not declared, they confined their action to keeping the Russian ships of war blockaded in their own harbours. One Russian vessel, the _Vladimir_, gallantly broke the blockade; scoured the Black Sea; and, in spite of the allied cruisers, inflicted severe injury upon Turkish shipping all around the coasts of the Black Sea to the very entrance of the Bosphorus, escaping back to Sebastopol with impunity. Throughout the war, the enterprising and daring captain of the _Vladimir_ performed feats worthy of the reputation of any navy in the world. It became necessary for the allies to send a flag of truce to Odessa, the bearers were treacherously fired upon. This exasperated the allies, and Odessa was bombarded. The admirals endeavoured to spare the commercial portions of the place, it being a free port; the destruction of the defences was, in consequence, only partially effected, while much damage was nevertheless inflicted upon the city itself. After the bombardment, the Muscovites, with great activity, repaired and strengthened the defences, so that the bombardment was little more than an empty demonstration of power. It displayed, however, the skill of the allied squadrons; for one of the most scientific and beautiful naval operations of the war was accomplished. The ships fired while in motion; circling round the place; delivering their broadsides as they passed; and, by their rapidity of movement, gave little chance to the batteries on shore to inflict any damage.

The British and French navies held possession of the Black Sea, incurring little loss. The destruction of the British frigate _Tiger_ was, however, an incident which caused much regret in England. In certain operations in shallow water near Odessa, the ship went aground, and was captured. The Russians, vindictively and cowardly, continued to fire upon it while any living object was seen upon its decks. Few acts

were ever perpetrated, by even the most barbarous enemy, more at variance with the laws of war, and the instincts of honour, gallantry, and generosity. The allied armies continued most uselessly to linger on the shores of the Bosphorus and at Varna, until the season proper for military operations had passed away. Never was an expedition more unprofitable. The Turks were allowed to battle against the whole power of Russia upon the Danube without the slightest help, while two large armies were within forty miles of them. In England, suspicions of treachery were entertained. Some believed that the Aberdeen government was unwilling to weaken the power of Russia; others believed that France and Austria had covert designs, and were unwilling to prosecute the war. It was not until the middle of September that the allies acted in concert. In the meantime, Russia fomented disturbances in the Greek provinces of Turkey, and invited the Greeks of independent Greece to invade the sultan’s territory. The troops of the padishaw suppressed revolt with sanguinary effect, and drove the Greek sympathizers across the borders. The allied fleets landed detachments of troops in Greece, and compelled neutrality.

At last the period arrived for the decisive movement of the allied armies, and it was resolved to invade the territory of Russia, and destroy her great naval and military arsenals on the Black Sea. For this purpose the troops were embarked at Varna and other places, and escorted by the fleets to the Crimea. A landing was effected at Old Fort without opposition. The allies began their march towards Sebastopol, skirmishing as they proceeded. Eupatoria, a port and city in the Crimea, was also seized by the allies, and put in a state of defence on the land side, so as to be held by a garrison against any army likely to be sent to recover it.

The armies, arriving at the river Alma, found the heights which commanded its passage occupied by the enemy in great force. A battle ensued; the first of the war in which the British and French were engaged together. The allies were successful. The Russians were completely defeated; and had the French consented to pursue them, it is possible that the Russian army might have been cut off. The British distinguished themselves greatly at the battle of the Alma. The second division, under the chivalrous Sir De Lacy Evans, bore the brunt of the combat on the British lines. His division was ably assisted by Sir Richard England, who was left in support, and without orders from his chief. He, with his guns, hastened to the aid of Sir De Lacy Evans, and distinguished himself by his courage, promptitude, and presence of mind. The Duke of Cambridge commanded the first division, with Sir Colin Campbell as his senior brigadier. His royal highness displayed in this, his maiden battle, the skill and courage for which all who had served under him had given him credit, and which he was destined to evince still more signally on the bloody slopes of Inkerman.

The allies, in consequence of the want of carriage and other appliances of a campaign, lingered for days on the site of their victory before they resumed their march against the great citadel. On arriving at the north side, it was deemed by the allied commanders desirable and feasible to effect a flank march to the south side. Curiously, at the same juncture, the Russian army, under Prince Menschikoff, attempted another flank march from the south to the north. The wings of the hostile armies came into collision; many Russians were slain or made prisoners. Neither

army had any idea of the strategy of the other, and both were surprised at the partial rencontre. Arriving at the south side, Balaklava was made the basis of the allied operations: the British occupying the right, and facing, of course, the left defence. The Honourable General Cathcart advised an immediate assault upon the place, which was very indifferently defended in that direction; but General Burgoyne, the chief officer of British engineers, and the commanderin-chief, were alike opposed to it. General Evans, and other officers of high authority, were against the plan of General Cathcart as rash. Those officers still retain the opinions which then influenced the decision arrived at. It was determined to besiege the place, and conquer it by regular approaches. The Russians, who were so dispirited that it is questionable whether they would have resisted an immediate assault with any vigour, took heart and threw up defences. A young officer of engineers, named Todtleben, conceived the idea of vast erections of earthworks, and the Russians were set to defend the place with pick and mattock more strenuously than by artillery or musketry. The result was a protracted defence. The Russians plied the spade and shovel with astonishing vigour and perseverance, and Todtleben proved himself equal in genius to the exigency. The Russians were reinforced; confidence took the place of despair, and the city was defended with desperate hardihood and energy. Besides the garrison, there was a Russian army in the field upon the Tchernaya, and the heights by which it was commanded. Such was the state of affairs, with occasional skirmishing and gunnery, up to the 26th of October, when the too celebrated battle of Balaklava was fought, and the British generals incurred the imputation of folly, such as seldom has been laid to the account of military chiefs, and the British army gained a reputation for chivalrous valour which will live when even the stupidity which made the occasion of its display is forgotten. It would be impossible, within the limits of this work, to give the details of such a battle. There were redoubts thrown up in the plain beyond the heights of Balaklava, which were garrisoned by Turks. The worst possible generalship was displayed by the British commander-in-chief in occupying these redoubts with small bodies of troops far from any support. The Russians attacked and conquered the redoubts; Sir Colin Campbell, at the head of a body of infantry, took up a position in the plain. The Earl of Lucan and the British cavalry advanced beyond that position. The Russians occupied a gorge between two hills, flanked with field-pieces, a line of horse artillery in front, and guns of position placed Upon the heights so as to rake the ground upon which an attacking force must approach. To draw the British to attack them in this strong position, was the strategy of the Russian general. He succeeded. The cavalry were ordered to charge; the order was conveyed from Lord Baglan to Lord Lucan by Captain Nolan. The lieutenant-general has been censured for obeying the command; but he had no discretion allowed him; it was in writing—it was distinct—and the officer who delivered it, coming directly from Lord Baglan, must have known what the latter really intended. It has been universally believed that Captain Nolan used insulting language to the Earl of Lucan, taunting him with cowardice. This is untrue; the author of this history can declare so upon the authority of the noble lord himself. Captain Nolan did point to the enemy and the captured guns borne by them from the Turkish redoubts, and directed the general’s attention to the duty of their recapture. The Earl of Lucan had no alternative but to obey, more especially as the cavalry had been much criticised by anonymous writers

from the camp. The Earl of Lucan ordered the light brigade of his division to charge, and advanced the heavy brigade to its support as far as it could be brought for such a purpose. Some of the regiments of the heavy brigade advanced so far as to be under the fire of the enemy's guns. The light brigade was commanded by the Earl of Cardigan, who led it into action in the most gallant style. Whoever has read Tennyson's poem, "The Six Hundred," will have perused the most graphic and striking description of the exciting scene which followed. The brigade moved on, losing the gallant Nolan before it had reached the charge; he was the first who fell. It is commonly supposed that he led the charge. This is not so; he rode at a little distance from the line when the shot took effect, which deprived the army of one of its ablest and bravest cavalry officers. In this terrible charge, the charge of six hundred men against an army in position, with its flanks defended by strong batteries on elevated positions, there was no flinching. The gallant leader has told the author of this work that various officers shouted, brandished their swords, and were excited; that if any effort were required on the part of the commander, it was to keep the men cool and the lines regular as they galloped forward to the terrific encounter. The charge was made, how gallantly the whole world admits. The wonder is that any escaped. Probably, hardly any would, had not Colonel Sewell, at the head of the Royal Irish Hussars, thought of the peril of the Russian cavalry wheeling from the flanks and blocking up the way of return. He immediately turned his rear and found this danger in actual existence. He charged the Russian cavalry, and, with the aid of a handful of French horsemen, kept open the way for the return of those who had dashed,

"With fetlock deep in blood,"

their fiery steeds through the lines of the enemy. The leader and a portion of his gallant band escaped. It has been said of the Earl of Cardigan that "he was the first in and the first out." This is simply not true. He entered the Russian lines at the head of his men, and when his brigade was broken in pieces upon the guns and lines of the enemy, he, as a fragment of the shattered mass, like other fragments, turned to reform and act as duty then might dictate. He rode slowly from the Russian lines under the fire of the enemy, and joined the rest of the survivors, who received him with cheers. The Earl of Lucan, with the heavy brigade, rendered the retreat of the light brigade possible. The Russian cavalry swept down in masses, approaching the British infantry, by whose fire they were deterred from charging. They approached the cavalry camp; General Scarlett was ordered, with a portion of the heavy brigade, to charge them. It was a gallant and glorious deed. Lord Raglan, who witnessed it from the heights, declared, in his despatch, that he had rarely seen such a splendid charge of cavalry, and that it was so made as never for a moment to leave success in doubt. The Russians retired to their positions and kept there, but the redoubts were held by them. Had Lord Raglan advanced his infantry, an action of a more general and scientific character would have ensued, and an opportunity might have been made available for inflicting a defeat upon the enemy which would have relieved Balaklava of his vicinity. Such was the opinion of various officers of authority, and Sir De Lacy Evans, who had as good opportunities as any general to form a judgment upon the occasion, and was as competent as any officer in Europe to do so,

expressed, in conversation with the author of this History, the same opinion.

The men and horses of the British army were now suffering severely from the climate, and from various privations, which the bad commissariat arrangements, and the want of energy and capacity on the part of the commanderin-chief, entailed upon them. November opened gloomily in every way upon the besiegers. Its first event of importance was the battle of the Little Inkerman, as it was called among the soldiers. The Russians attempted a surprise upon the dangerous and exposed post of the second division, which was fortunately commanded by Sir De Lacy Evans. The result was the most scientifically-fought battle of the war. General Evans, not hampered by the interference of a commander-in-chief, whose only title to command him was that conferred by his social rank and favour with the ministry, had full scope for his own superior powers. The Russians were repulsed with great slaughter and with little loss to their victors. The French offered assistance tardily, but their aid was declined—good generalship won the battle. The men of the second division knew how to obey the commands of a general whom they trusted, and to follow a leader himself the bravest of the brave.

The battle of the Little Inkerman was soon followed by that called, _par excellence_, the battle of Inkerman. The morning of the 5th of November dawned mistily and dimly over the plateau before Sebastopol, and along the dark course of the Tchernaya. The Russians ascended stealthily against the flank of the British. A terrible battle ensued. The English, surprised, fought in their great-coats; although otherwise imperfectly dressed, and some without shoes or shakos. Evans, who would have been at the head of his second division, was ill on board ship at Balaklava, and his place was nobly filled by General Pennefather. At the sound of the cannon booming heavily over the plateau of Balaklava, Evans rose from his sick bed and hurried to the front of battle, where he remained during the terrible morning of conflict which opened that eventful day. The English were all but overpowered, although they fought as Englishmen—as probably no men ever before fought—with a tenacious obstinacy that yielded to no force, with a chivalrous dash and daring which contemned all odds. The Duke of Cambridge, probably, escaped greater danger than any British officer on the field. For a time he rode along the line encouraging his men, the fire of the advancing columns of the Russians directed upon him; nearly all around him were killed or wounded. It was a critical and awful moment: the Russians were gaining the summit of the ascent; they would there have had room to deploy, and the British would have been in danger of being driven from their intrenchments, and the allied armies of being forced back upon the sea. Fortunately the French, who were engaged in watching the manoeuvres of Liprandi in the valley beneath, at last came to the assistance of their allies, and fell upon the Russian flanks. The British at the same moment received supplies of ammunition, of which they had been in need through the wretched management of everything that depended upon head-quarters; their ranks rallied and poured deadly volleys of Minié bullets upon the masses of the enemy struggling with the French. The slopes of the plateau were strewn with dead, and slippery with gore; the Russians, foiled everywhere, retreated. The French, fresh for pursuit, would not pursue unless the weary guardsmen led the van. Canrobert, the successor of Arnaud in command of the French army, complimented the British, but

did not act heartily with them. The services of Sir Richard England at Inkerman have been generally overlooked by British writers. England was not favourable to the agents of the press, and he showed this feeling in a manner which offended that class. This was unwise, both for himself, his division, and the service. Were it not for that circumstance, the valuable services of that general would have become better known to the public. When the battle of Inkerman began, England occupied a position to the left of the English lines, near to a ravine which separated them from those occupied by the French. Leaving a portion of his troops under the command of one of his brigadiers, he dispatched the rest under Brigadier Campbell to the right, and himself followed. His opportune arrival supported the divisions exposed to attack; and as their several detachments moved to the more immediate theatre of conflict, England's troops occupied the ground from which they had been removed, and which would have been exposed to the enemy. It is remarkable that the plan of the Russian generals was to make the principal attack upon the extreme left of the British, so as to separate the English left from the French right. The officer in charge of the attacking column missed his way, delay was thus caused as well as the plan of assault totally deranged; possibly, to these circumstances may be attributed the failure of the Russian attack of the 5th of November.

After this battle, Sir De Lacy Evans strongly recommended Lord Raglan to change his position. He was influenced in offering this advice by the total inadequacy of the English army, numerically, to occupy such extended lines, and by the suffering of the army from ill health, climate, and deficient supplies, personal and military. This letter of the general has been much misrepresented in the London clubs, and among coteries unfriendly to the general's liberal parliamentary policy. It was, however, the opinion of Sir De Lacy that, unless reinforcements arrived in numbers far superior to what was then probable, the British would be unable to hold their ground; and, notwithstanding the actual issue, such advice was sound, and based upon facts and probabilities.

After the battle of Inkerman, the condition of the British army became truly horrible, so that the closing winter months of 1854 were such as tried the fortitude of the British troops and their hardihood of endurance to the uttermost. It would be in vain to attempt to portray, upon these pages, sufferings which excited the wonder and sympathy of all nations, or to depict the patriotism and enduring devotion to duty by which such protracted miseries were sustained. Great numbers perished of cold, hunger, and sickness; and the cholera, which ravaged the encampments of Gallipoli and Varna, pursued the army to the trenches before Sebastopol. The Russians also suffered much, and bore it as good, hardy, and loyal soldiers; but they had the shelter, hospitals, and supplies of the city. The troops on the Tchernaya were relieved by the garrison of the city, and supplied from its almost exhaustless stores. The Russian armies had the whole power of the empire in their rear; but, notwithstanding the herculean efforts made by the czar to recruit and feed his armies, the drain of life was terrible, from causes similar to those by which the English were swept away in such numbers. The French army was far better organized and more honestly administered than the armies of England and Russia, and the loss of life during 1854, after the landing in the Crimea, was less than was experienced by the British or

Russians. The cholera, however, took greater effect upon the Turks, French, and Muscovites, than upon the British. At Gallipoli and Varna this was strikingly exemplified. In the Dobrudscha, upon the Danube, the division of General Espineau was nearly destroyed by the pestilence.

During the whole period to which this relation of events refers, the allied fleets were masters of the Turkish waters, from the gates of the Dardanelles to the Sea of Azoff. When the fleets conveyed the armies to Old Fort and Eupatoria, they appeared before Sebastopol; and the Russians, fearing that the enterprise of the British might penetrate the harbour, sunk their fleet in two lines, so as to bar its entrance and prevent their capture. This bold measure did much to prolong the defence. It also mortified the allies, who were thus prevented from taking naval prizes, and from conquering the place, or very much promoting its conquest by naval artillery. The Russians reserved some of their most efficient vessels behind the range of sunken ships, and with those they commanded the flanks of the besiegers, causing much waste of life, and obstructing seriously the progress of the siege.

The naval force of the czar in the Black Sea was estimated very differently by various writers. A number of statements were put forth, all professing to be authentic. We select two, and our readers will be able to judge for themselves the probable statistics. Haxthausen represents the Black Sea fleet as consisting of three divisions, each of which comprised ordinarily 1 three-decker, 2 two-deckers (among the last two ships mounting each 84 guns), 6 frigates, 1 corvette, and 4 smaller vessels. Mr. Danby Seymour is more precise, and furnishes us with what purports to be a complete list of the Russian naval force in the Euxine in 1854, viz.:—20 ships of the line, 7 frigates, 5 corvettes, 12 brigs, 9 schooners, 7 cutters, 2 yachts, 1 bombard, 30 steamers, 28 gun-boats, and 30 transports.

The British fleet consisted of the _Britannia, Trafalgar, Vengeance, Rodney, Betterophon, Queen, Lynx, Sphynx, Tribune, Sampson, Terrible, Furious, Retribution, Highflyer, Spiteful, Cyclops, Vesuvius, Albion, Arethusa, London, Sanspareil, Agamemnon, Firebrand, Triton, Niger_, constituting a most powerful navy. At that juncture, so great were the maritime resources of England, that a naval authority thus reported concerning her resources:—“From our ships in reserve and building, we could form a naval force far surpassing that which any other nation in the world can boast of having afloat. We have in reserve, at the four ports of Portsmouth, Devonport, Chatham, and Sheerness, not less than 161 vessels of the ‘effective ships of the royal navy,’ and these estimated to carry not less than 6,807 guns. Besides these, too, we have a goodly number of paddle-wheels and other small craft. Though some of the vessels may not, without considerable repairs, be in a state to send to sea, yet most of them are excellent sea-going vessels—far superior, indeed, to anything Russian—and could be fitted out for service on very short notice. Then we have of vessels building—5 at Portsmouth, 7 at Devonport, 1 at Sheerness, 6 at Chatham, 11 at Pembroke, 4 at Deptford, 4 at Woolwich, and one at Mill wall.—Total 39.” The French naval force in the Black Sea, under the command of Vice-admiral Hamelin, was composed of the _Friedland, Valmy, Ville de Paris, Henri IV., Bayard, Charlemagne, Lena, Lupiter, Marengo, Gomer, Descartes, Vauban, Mogador,

Cacique, Magellan, Sanê, Caton, Sérieuse, Mercure, Olivière, Beaumanoir, Cerf, Prométhée, Salamandre, Héron, and Monette._ The squadron of Vice-admiral Bruat, intended to act in the Black Sea, the Sea of Gallipoli, and in the Eastern Archipelago, comprised the following vessels:—_Montebello, Napoléon, Suffren, Jean Bart, Ville de Marseille, Alger, Pomone, Caffarelli, Roland_ and Primauguet. Independently of these three squadrons, and all the frigates, or steam corvettes, which were assembled in the Mediterranean for the transport of the army of the East, were all the naval stations in the West Indies, the Pacific Ocean, the Indo-China seas, and in all quarters where the fishing interest existed.

The first bombardment of Sebastopol took place on the 17th of October, in which the fleet took an active part; but the combined efforts of the artillery, afloat and ashore, failed to subdue the gigantic works which had arisen for the defence.

The allied fleets rendered great services in protecting Eupatoria, which had been garrisoned mainly by Turkish troops, and which the Russians vigilantly watched and incessantly harassed.

Various bombardments and incessant watching occupied the fleets until, in the following year, the grand catastrophe occurred, and southern Sebastopol fell under what the Russian commander called “the fire infernal” of the allies.

On the 14th of November, a terrible storm smote the Black Sea and the Crimea. The tents of the camps were blown away, many ships were wrecked, and many lives were lost. The want of prevision, management, and organization, on the part of the chief authorities of the British, led to costly sacrifices of human life, _matériel_ of war, and supplies.

The operations in the Baltic were not so important as those in the Black Sea. The fine British fleet, commanded by Sir Charles Napier, was aided by a powerful French fleet, under the command of Vice-admiral Parseval-Deschênes. The achievements of those fleets did not answer the expectations formed. The French arrived late in the season, and acted so dependency upon the British, that they did not even attempt anything. The English admiral showed neither spirit nor activity. Partly through his want of enterprise, and still more from the neglect of the Admiralty at home to provide vessels of draught suitable to the shallow waters of the Baltic, no attempt was made to conquer any of the Russian strongholds. The island and forts of Bomarsund were captured and destroyed, the British and French engineers and artillery having the chief glory of the conquest. The British engineer officer, General Jones, greatly distinguished himself.

Operations were also conducted in the White Sea by the allied squadrons, but the assistance rendered by the French was trivial. The allies, particularly the French, arrived too late in the season to effect much.

In the Pacific Ocean the blunders and tardiness which characterized the allies were extraordinary: incompetency was impressed on all their undertakings. The Russians were attacked in their far-eastern settlements, especially Petropaulovski; but the allies suffered signal and sanguinary defeat, arising from the incompetency of the naval officers in command.

Such were the fortunes of the great war with Russia during 1854.

[Illustration: 840.jpg BATTLE OF ALMA]

[Illustration: 841.jpg BATTLE OF INKERMAN]

PARLIAMENT.

The session of 1854 was not barren. The war occupied men’s thoughts, and engaged the time of the legislature; the reform bill of Lord John Russell was put off _sine die_; yet many useful bills were carried through the legislature, and much valuable business transacted in both houses, of importance to the country. The war debates, however, occupied most of the attention of the houses. In the beginning of the year their subjects were:—the want of spirit, preparation, and intelligence on the part of the ministry; the deference, and even amity, shown to Russia by Lord Aberdeen and his chief supporters, while the czar was deceiving them, and prosecuting his ambitious designs with energy. The financial schemes of the chancellor of the exchequer caused much debate. He propounded the doctrine that increased taxes on income, and other sources of taxation, must cover the expenses of the increased military preparations—that the income of the year should pay the cost of the year. Nothing could more clearly show that he had no conception of the magnitude of the conflict upon which his country was about to enter. Whatever might be Mr. Gladstone’s abilities as an economist, or a financier, he proved himself incapable as a statesman. On the 12th of August, her majesty prorogued the parliament in person.

During the session several changes in the ministry had occurred. Lord John Russell, who at the beginning of the session held a place in the cabinet without any office, was appointed to the presidency of the council, Lord Granville giving way in his favour; as did Mr. Strutt, chancellor of the Duchy of Lancaster, for Lord Granville. The Duke of Newcastle held the secretaryships, both of war and the colonies, at the beginning of the session. He was clearly incapable of filling both, and was ultimately proved unequal to either. He, however, resigned the colonies, a fourth secretaryship—that for war—being created for the occasion. The duke persisted in selecting that office, and Lord Aberdeen and the Peelite section of the cabinet insisted on conferring it upon him, in spite of the desire of Lord John Russell, the whig section of the cabinet, and the general voice of the country, that Lord Palmerston should, at such a juncture, assume that most important official position. The result was a terrible breakdown in the administration of the war department, disastrous to the ministry, the army, and the country. The vacant secretaryship of the colonies was given to Sir George Grey, who was certainly unequal to its requirements. On the whole, the changes gave dissatisfaction to the country, and prepared the way for the destruction of the cabinet. In the midst of such great dangers to the country, it was found that the patronage bestowed by the ministry, especially in connection with the army, navy, and colonies, was partial, unjust, and even, in some cases, disgraceful. A wide-spread feeling of indignation arose among the people, and a desire for the speedy fall of the Aberdeen cabinet. After the breaking up of parliament the ministry dispersed, and appeared to concern

themselves very little about the fate of the country. Two men among them were exceptions to this—the Duke of Newcastle and Lord Palmerston. They worked in their respective offices with untiring assiduity; unfortunately, what the duke did had been, in the main, better left undone, but he industriously performed his duty to the best of his power. When the tidings of Balaklava, Inkerman, the bombardment of Sebastopol, the false news of its fall, the storm which nearly wrecked the transport fleet and destroyed vast supplies, were flying through Europe and stirring the heart of England to its depth, the ministers were amusing themselves, and showed no signs that they comprehended their glorious position as the leaders of a mighty empire at war with another. It appeared afterwards that Lord John Russell was watching anxiously the progress of affairs, although his particular office did not give prominence to his activity.

On the 12th of December parliament was reopened by her majesty in person. The ministry was denounced in both houses for its incompetent conduct of the war, and made a feeble defence. Thanks were voted by both houses to the generals, officers, and soldiers, who had participated in the battles and hardships of the various naval and military campaigns. The foreigners' enlistment bill caused much discussion, in which very little wisdom was shown by either house. The militia bill passed rapidly through the legislature. This closed the brief period during which parliament sat in December, 1854.

DEATHS OF EMINENT PERSONS.

In consequence of the war many men of whom England and any nation might be proud fell bravely in battle, or as bravely died at their posts wasted by disease. So great was their number, and so much did the loss of such men extend the lists of this year's obituary, that the task of even glancing at it becomes impossible within the space allotted to this work. One noble soldier died peacefully, full of years and honours—the Marquis of Anglesey, the companion of Wellington in his campaigns—the chivalrous Earl of Oxbridge, the most dashing _sabreur_ of the British army, the heroic soldier whose surpassing courage at the head of the British cavalry at Waterloo shone conspicuous. Death, during the year, reaped his full harvest from men of literature, science, and art, and from among the greatly good: he was not satisfied with the dark wreaths he gathered over so many battle-fields, he spared not for this the homes of England, but threw his cold shadow over the sanctuary of piety and the abode of genius.

CHAPTER LXVII.

{VICTORIA. 1855}

Home Affairs..... State of Public Opinion..... Death of the Czar..... Severity of the Weather..... Visits of the French Emperor, the King of the Belgians, and the King of Sardinia to her Majesty..... Visit of her Majesty to the Emperor of the French..... Distribution of Crimean Medals by the Queen..... Ireland..... Parliamentary, Diplomatic, and Ministerial Conflicts and Changes..... The Progress of the Russian

War..... Events in the Crimea, Asia Minor, the Baltic, the White Sea, and the Pacific Ocean..... General Prosperity and loyalty of the Colonies..... State of India..... Annexation of Oude.

HOME AFFAIRS—PUBLIC OPINION, AGITATION OF PEOPLE AND PARLIAMENT.

{A.D. 1855}

The state of the country at the opening of the year was very peculiar. The whole population of the British Isles was deeply moved by the tidings which had arrived of the sufferings of their brethren and fellow countrymen in the Crimea. It was humiliating to the country to learn that an army within seven miles of the sea, with the most splendid fleets and transports at its service, was perishing from want of food and fuel because the abounding stores, wasting and rotting on the sea-shore, could not be conveyed to the camp. All political considerations were lost sight of in the universal desire to get rid of a cabinet so utterly incompetent to direct the affairs of the country. With some of the members of the cabinet there was general satisfaction; Lords Palmerston and Clarendon were popular, and Lord John Russell at that time shared the public favour which he was so soon destined to lose. It was against the Peelite section of the ministry, and more especially its chief, that the universal indignation arose. This led to the defeat and resignation of the Aberdeen cabinet; the circumstances which attended that result will be related when noticing the parliamentary vicissitudes of the year.

A fast was ordered in England and Ireland for the 21st of March, which was extensively and solemnly observed; and a day of thanksgiving was kept with as unanimous a spirit, when, in September, Sebastopol fell.

DEATH OF THE CZAR.

On the 2nd of March the people of London were astonished by a telegram that the Emperor of Russia had died that morning. Seldom was so profound and general a sensation created. It was believed by nearly all persons that the war would be speedily brought to a close, as he who had created it had passed away. It was not then generally understood that the Emperor Nicholas was the representative of the feeling and opinion of the whole Russian nation. His ambition, love of conquest, aggrandizement of territory, did not pass beyond the degree in which these qualities were cherished by his people. The desire to propagate the Greek church by the sword alike possessed emperor and subjects. The war, therefore, continued, although the successor of Nicholas—Alexander II.—was, as alleged, a mild prince, more desirous to draw out the resources of his empire by peace than to extend it by war. At all events the conflict continued to rage, to the disappointment of all who hated bloodshed, and felt for the miseries of their fellow creatures.

It was alleged that the death of the Emperor Nicholas was caused by the defeat of his arms at the battle of Eupatoria. On the 17th of February, forty thousand Russians attacked the Turkish army under Omar Pasha, then quartered there. The occupation of that place by the allies was a great hindrance to the operations of the Russian

armies, and was dangerous to the Crimea and its communications with the southern provinces of the Russian empire. The emperor had, therefore, ordered it to be carried at any cost. He, no doubt, felt humiliated that the Turks, whom he had so recently attacked in their own territory, should now, in their turn, be invaders, and he burned with indignation at this affront to his power. By this battle his soldiers were defeated, his ambition and his hopes blasted. He began at last to see the magnitude of the war he had provoked, and the perils with which his empire were environed. He drooped from that hour. A severe cold, taken in the persevering discharge of his high functions, hastened his dissolution.

DEPARTURE OF THE BALTIC FLEET.

On the 4th of April the first squadron of the Baltic fleet for the naval campaign in that sea set sail from Spithead. This fleet was probably the most powerful that had ever appeared upon the seas.

FINANCIAL OPERATIONS FOR THE YEAR.

In the middle of April the government effected, with great ease, a loan of sixteen millions sterling to carry on the war. This was followed by similar transactions.

SEVERITY OF THE WEATHER.

The first days of the new year were unusually warm, the temperature ranging 11° above the average. On the 9th the thermometer marked 50°; but on the following day fell to 26°, being the commencement of the longest and most severe winter experienced for many years. On the 14th a period of very cold weather set in, and continued without intermission to the 24th February; some of the days in the middle of February being from 15° to 18° below the average. From the 24th February to the 6th March the weather was more moderate; but on that day the cold again set in, and the weather continued to the 26th June to be cold, nipping, and miserable beyond record. In January, on several days, the mercury was as low as 13°. In February it was, on many days, as low as from 3° to 10°. The coldest day in London was the 18th, when the thermometer marked 7°; the lowest temperature recorded by authority was 0° 8 (or not quite 1°), at Berkhampstead; at Belvoir Castle it was 2° 5. During this long period, the wind was almost uniformly north-east. Rain was very deficient; but snow fell on the 9th January, and on every day, at one station or other corresponding with the Meteorological Society, from January 13th to February 28th, from March 8th to the end of month, and frequently to the middle of May. It was replete with snow crystals, and unusually dense, eight inches of snow producing one inch of water. Hail and fogs were frequent all over the kingdom; and aurora were numerous. The effects of so ungenial a season upon the mortality and health of the population were as evil as could be anticipated. The deaths greatly exceeded the average. In the winter quarter 134,605 deaths were registered, or 20,000 in excess of the average; and this excess was distributed over the whole kingdom. To the immediate effects of the cold must be added the great dearness of all the necessaries of life. Wheat, which in March, 1853, was 45s. 7d. a quarter, had risen in March, 1854, to 79s. 6d, and in 1855, to 69s. 11d.; and the sale had fallen from 1,236,493 quarters to 780,232 and 1,143,999 quarters. Potatoes ranged from 105s. to 110s. per ton, at wholesale prices.

The cold weather covered the ornamental waters with ice, and gave opportunity for the healthy and exhilarating exercises proper to the season. Those who ventured before the ice was well formed ran considerable risks, and many persons were immersed; but the only disastrous accident occurred on the 20th of January, when four lads were drowned in St. James's Park. The ice everywhere was crowded with performers on the slide and the skate, both male and female, and with innumerable spectators; the long-continued frost also brought forward many splendidly-equipped sledges. The Thames was encumbered with large masses of frozen snow or ice, which had formed on lakes and ponds communicating with it. These masses, in their passage up and down, were ground together by the tide, and made a loud murmuring noise, which could be heard at a great distance. At low water these masses became jammed together, so as to form a rough and dangerous passage from shore to shore; while the stranded pieces formed miniature icebergs. Within the limits of the tide the whole mass was in motion; but above Teddington the river was frozen over, wherever any obstruction occurred above locks and weirs, and afforded a secure passage. At Richmond there was nearly three miles of continuous ice transit, and for some distance above Teddington Lock and Kingston Bridge. All navigation was necessarily suspended. In the Pool numerous accidents occurred from ships being swept from their moorings and crushed by the ice, or driven on shore.

On the night of the 22nd of February a very singular spectacle was got up on the Serpentine. Late in the evening a fine "brass band," attended by near a thousand torchbearers, suddenly marched on to the ice on the ornamental water in Kensington Gardens, and struck up popular airs; as by a signal, large fires were lighted on the ice, tents were erected, and barrels of beer were broached. Suddenly, several hundred skaters, each bearing a lighted lamp at his waist-belt, emerged from the crowd, and shot under the bridge on to the Serpentine, and commenced quadrilles, polkas, and divers figures; in a few minutes their erratic motions were illuminated by red, blue, crimson, and green fires, lighted on the banks, and by rockets and other lights. This fantastic and beautiful exhibition was repeated on another evening.

The canals were of course frozen, and all traffic, except of skaters, was at an end.

In the country the effect of the cold upon the rivers and canals was the same—they were hard frozen. The roads were covered with snow, which made traffic impossible; and when the snow had been cleared away, they were equally dangerous from the frozen surfaces. As usual, in certain localities the cold was more intense than in the registered spots; country newspapers recorded thermometers which marked 4°, 6°, and more, below zero. Derwentwater was entirely frozen over; fires were lighted and feasts given to mark the occasion; and carts and waggons passed over to the island. Windermere was also frozen over, and parties skated not only across, but from end to end: a traffic was established between the villages by wheelbarrows. All round the coast the very unusual spectacle was witnessed of ice formed in the bays of the sea, and left aground among the rocks at low-water. A traffic was established over the ice, chiefly by amateurs, from Boston to Lincoln—thirty-five miles.*

* "Annual Register."

The closing months of the year were also severe. In October there was a great fall of rain. Fogs unusually dense and hard frosts occurred in November. December was a very cold month, and through the last quarter of the year there were many storms. During the year 1,141 ships were lost.

VISIT OF THE EMPEROR OF THE FRENCH.

One of the most interesting home events of the year occurred in the middle of April—a visit of the Emperor and Empress of the French to the queen. They left Paris on the 15th April, and on the 16th sailed for England. Their arrival at Dover and their journey to London was a triumph; and on their arrival, their progress through the great capital was marked by a popular demonstration, which, from its enthusiasm and vastness, may be called sublime. The line of carriages passed through crowded streets—crowded from the kerbstones to the house-tops—? until they reached Hyde Park Corner. It is said that the emperor pointed out to the empress the street, leading into St. James's Street, where he had humble lodgings, when, seven years before, he was an exile residing in London. On the 10th of April, 1848, he turned out, bâton in hand, to serve as a special constable, when the Chartists, under the guidance of the unfortunate Fergus O'Connor, threatened an invasion of London. Seven years and one week, save a day, had elapsed since Napoleon was thus obscure; and it was reserved for him to pass through the streets of the great city, guarded by the household troops of her majesty, her guest, and the companion of her consort, while her whole people turned out to confirm her invitation, and add to the honours she had reserved for him. _O tempora mutantur, et mutamur cum illos!_ When the illustrious visitors entered Hyde Park, an entirely new scene awaited them.

Comparatively few of the lower classes were there; but nowhere else in Europe could such an array of carriages and horsemen be presented. The writer of this History took up his position near the Magazine, where a tolerable opportunity of seeing the procession was offered; but so dense were the carriages and the equestrians, that persons on foot were much impeded. The imperial pair, with Prince Albert, were seated in an open barouche. Six of the royal carriages, each drawn by four horses, and attended by outriders, conveyed the visitors and suite to the Great Western Station. The pace was too rapid for the gratification of the people, and the respect due to their efforts to make them welcome. Immediately on the arrival of the royal and imperial party at the Paddington Station they proceeded to Windsor.*

* "Nolan's History of the War against Russia." J. S. Virtue, City Road and Ivy Lane, London.

During the week the imperial pair were received in the City by the corporation, and many demonstrations of respect and popular enthusiasm greeted them. On Saturday they returned to France; where the emperor, soon after, while riding in the streets of Paris, narrowly escaped death by the hand of an Italian assassin.

DISTRIBUTION OF MEDALS BY THE QUEEN.

Among the home incidents which attracted the attention of the people of England was the distribution of medals to the officers, non-commissioned officers, and privates who had returned from the Crimea invalided or wounded. Her majesty had

resolved to distribute the medals in person, and this greatly increased the interest of the occasion. It was deemed by the public a most graceful and befitting act on the part of her majesty, to give, with her own hands, the decorations won by those whose valour so nobly shielded lier throne. The feelings of the brave men who were to receive these decorations were raised to enthusiasm, when they learned that they were to receive such a reward of their courage and constancy from their beloved queen herself. The place appointed for this grand ceremony was most appropriate—the square of the Horse-Guards, in St. James's Park. The writer of this History, as he looked upon the extensive and magnificent preparations for this event, felt strongly the sequel it presented to the scene which he witnessed little more than a year before, near the same spot, when the people's representatives passed along to Buckingham Palace to assure her majesty of their support in the war she had declared. Galleries were erected for the accommodation of the lords and commons, for the members of the government, and for the families of those who were to be publicly honoured—a most graceful tribute on the part of the country to the feelings of these gallant men. How proud that day must many a wife's, and parent's, and brother's, and sister's heart have been, as the objects of their affectionate solicitude bowed before his sovereign to receive upon his breast the glorious badge his noble conduct won! The royal family occupied a capacious balcony projecting from the lower central windows of the Horse-Guards, which was festooned with scarlet cloth, and otherwise decorated.

At ten o'clock on the morning of the 18th of May, the scene presented from the windows of the Horse-Guards, and the windows and roofs of the neighbouring houses,' was most striking and effective: a vast mass of people filled the whole area within view, yet all preserving the greatest order. Her majesty dispensed the medals with her own hand to men of all ranks, and of all branches of the service.

VISIT OF THE KING OF THE BELGIANS.

In the month of July her majesty's uncle, the King of the Belgians, paid her a visit, which excited many political rumours, and attracted much notice throughout Europe.

HER MAJESTY VISITS THE FRENCH EMPEROR.

On the 18th of August her majesty, accompanied by Prince Albert and the Prince of Wales, visited the French emperor.

His imperial majesty, and the people of France, displayed a cordiality of welcome and a tasteful hospitality which rivalled those exhibited in England on the occasion of the emperor's visit.

VISIT OF THE KING OF SARDINIA TO THE ENGLISH COURT.

On November the 30th the King of Sardinia visited her majesty, and was received with much enthusiasm by the people. The prompt and gallant way in which his majesty and his people had joined Western Europe in the war against Russia made him popular.

IRELAND.

There were few events connected with Ireland which possessed any peculiar general interest. The alacrity with which recruits entered service for the war, and the terrible proceedings of the disloyal Ribbon Societies, were remarkable. Thus Ireland at once exhibited a generous loyalty and a sanguinary sedition. The newspapers were literally filled, during the closing winter months, with recitals of murders or attempts at murder. The character of the assassinations was even more than usually brutal and vindictive; and although some of the criminals were arrested and punished, government was even more than usually remiss in applying remedies to a condition of society so deplorable. Among the events in Ireland which excited most horror and astonishment in Great Britain, were those connected with burning the Bible. There was much excitement among the Roman Catholic religious orders, and efforts were made by them to create a species of revival in various parts of the country. On some of these occasions the Bible was burned during the fervour of fanaticism excited.

PARLIAMENTARY PROCEEDINGS, MINISTERIAL CHANGES, AND DIPLOMATIC STRUGGLES.

A notice of the parliamentary conflicts of the session, of the ministerial vicissitudes resulting from them, and of the diplomacy which was acted upon by each, and which itself influenced both, will here find its proper place in this chapter.

On the 22nd January, when the parliament assembled after the Christmas recess, Mr. Roebuck gave notice of a motion for inquiry into the number and condition of the army before Sebastopol, and into the conduct of those departments of government which were responsible for the efficiency of that army. This notice produced the gravest consequences: the house was thrown, into a high state of excitement, and the treasury benches especially partook of it. It is marvellous that the government did not prepare itself for some such occurrence; but, as in the management of the war, so in the management of the house, they were always “too late”—so that the nickname of “the late ministry” was bestowed upon them while yet they held, with whatever firmness they at any time possessed, the reins of power.

Rumours on Thursday evening, the 21st of January, prevailed extensively that Lord John Russell had resigned his connection with the ministry, and on grounds of the most startling and alarming nature. The evening papers came out earlier than usual, acknowledging the fact, and commenting upon it according to the spirit of their respective party bias. On Monday evening, the 25th, it was announced in both houses that Lord J. Russell had resigned his connection with the ministry. Both houses adjourned to the next evening, in order to learn the grounds upon which Lord John had come to that determination. Having the _entrée_ of the houses, the author of this History hurried to the palace at Westminster. Vast crowds surrounded it, and public excitement and expectation were at a very high pitch. In the lords, the chancellor took his seat, and the house of lords, with a dull gravity, began its business. The proceedings were important, from the announcement made and the explanation given by the Duke of Newcastle, the minister of war. His bearing was gentlemanly, and there was an air of conciliation about it which bespoke the thoroughbred gentleman. His voice was low, and his manner in speaking ungainly; an awkward and finicking gesture with the right hand below the table, to which he advanced when speaking,

gave an idea of pettiness of thought, which his manner in other respects aided. The Earls of Winchelsea and Fitzwilliam seemed very desirous to have something to say; no one seemed willing to listen, and at last, by Lord Derby's interposition, they were "quieted down." Lord Ellenborough manifested most activity on the opposition side of the house, and what he said was spoken with energy, self-confidence, and commanding manner. Lord Lansdowne was the most active person on the ministerial benches, he moved about with a grace and affability which account for his great popularity in the house. His mode of putting down the pertinacity of Lord Fitzwilliam and Lord Winchelsea was authoritative, yet courteous, and in a few epigrammatic sentences he disposed of them. The most interesting sight was, however, old Lord Lyndhurst, who rose to give notice of his already famous motion concerning the conduct of the war. The house was very full of spectators. When his lordship rose, the silence was profound, and his venerable years, the magnitude of the question which his notice involved, his vast reputation, and his dignified and judicial manner, inspired a respect which manifestly pervaded every part of the house. The crowd around the throne seemed especially solicitous to observe his lordship when he rose. We could not avoid contrasting the intellectual features of the old ex-chancellor with the contracted expression of the occupant of the woolsack, and wondering what the latter would be like at the age of eighty-four, to which Lord Lyndhurst had arrived. The important event of Lord John Russell's resignation, announced by the Duke of Newcastle, prevented the discussion of Lord Lyndhurst's motion, and caused the house to break up early.

On the next evening, Lord Aberdeen's statement in the peers was almost as eagerly looked for as Lord John Russell's statement in the commons. The earl declared that he hardly knew why the noble president of the council retired from his colleagues, on the eve of a discussion concerning events in connection with which he fully shared their responsibility. The premier admitted that he had been aware that the noble president of the council had been dissatisfied with the general management of the war; that he had expressed that dissatisfaction, and had made certain proposals concerning the occupation of the war office, with which he (Lord Aberdeen) did not think it his duty to comply; that he, and the government of which he was the head, would resist Mr. Roebuck's motion, which he considered a vote of censure upon the ministry. The premier's address was cold, stiff, haughty, and quietly defiant, but did not appear to make the least impression upon the peers, who were, like the rest of the public, burning with impatience to know the terms and result of Lord John's explanation in the commons. We did not remain in the house of peers, being more anxious, like their lordships, about what was announced to occur in the other house. Lord John Russell made his famous statement. Perhaps no statement was ever made in parliament which excited so profound an interest. Every nook in the house was full, except a small portion of the ministerial gallery. The most conspicuous persons were two Parsee merchants, dressed in a showy oriental costume, who occupied the first bench in the Speaker's gallery, and who, the previous evening, were admitted behind the throne in the lords. Lord John was nearly inaudible at first, his elocution throughout the speech was inferior, and utterly unworthy of his great name as a speaker. He was listened to with evident partiality, and every period which told at all

against the conduct of the war elicited cheers from the opposition, and the ministerial benches were far from silent on these occasions. After his lordship sat down, Lord Palmerston arose on behalf of the government, amidst breathless expectations. His adroitness was extraordinary, and his intellectual superiority to his notable compeer obvious; but it was equally obvious that Lord John's moral influence was in the ascendant, and the latter part of Lord Palmerston's statement was heard with impatience, which extended to the galleries, although the order of the house was more than once invaded by expressions of approbation to the anti-ministerial remarks of Lord John. It became evident from Lord Palmerston's address, that his lordship would be installed in the war-office, if the motion of Mr. Roebuck failed. Mr. Roebuck did not speak with his usual energy, but although illness incapacitated him, his voice rang out as clear as a bell, and every tone told upon the whole house. His speech was devoid of that acrimony which pervades so generally the matter and the manner of the honourable member for Sheffield. The government seemed indisposed to reply; but loud calls from all sides for Sidney Herbert, provoked the right hon. secretary to one of his best elocutionary efforts. We were certainly most unfavourably impressed with his deportment all through the evening. There was a bitterness of expression in his countenance while Lord John was speaking, and a sneer and a whisper to his colleagues whenever Lord John made a good hit, which argued a consciousness of error, and a bad spirit with it. But Mr. Layard utterly demolished the case of Mr. Herbert, and with a gravity of purpose, fulness of information, discreet distribution of subject, and logical cogency, which mark that gentleman as one of the most rising men in the commons, and in the country. The government were literally overwhelmed with his speech. The impressions of the oldest observers of parliamentary proceedings whom we met, declared they had never witnessed such a moral defeat.

It may be readily believed that Lord John Russell's speech prepared the way for Mr. Roebuck's motion. The "honourable and learned member" was in bad health, but although unable to express all he had intended to lay before the commons, he produced a decided impression upon the house. The fact of being unable to continue his speech from weakness rather added to the effect; so that Mr. Disraeli truly said that, were not the house aware of the learned member's illness, the abrupt termination of his address on such a plea, and at such a moment, might appear an ingenious and rhetorical artifice. In his argument, Mr. Roebuck charged the government, the officials at home, and those in command abroad, with incapacity, conceit, and indifference to the welfare of the soldiery. When at last the house divided, the motion was supported by 305 members, and opposed by only 148, leaving a majority of 157—one of the largest, on a great public question involving the fate of a government, ever known in the house of commons. The announcement was received with exultant cheers from both sides of the house. The extinction of the ministry was decided; the house and the country accepted the vote, not merely as an expression of want of confidence politically, but as a vote of censure morally and politically. Yet in this grave emergency the house adjourned, in order to observe the anniversary of "King Charles the Martyr!" Incredible as this may appear, while the country was in the most imminent peril, such was the fact.

A cabinet council was called, and the ministry, of course, resolved to resign. The queen and court were in great suspense and excitement, being very unwilling to accept the resignation of the cabinet. They were the prince’s friends and favourites, and her majesty therefore was disinclined to their forfeiture of office, and was prepared for any constitutional measure which would give back to them the possession of place and power. When the noble earl at the head of the government resigned the seals of office, he recommended her majesty to seek advice from the Earl of Derby. This noble earl had made some of the best speeches he had ever delivered during the war debates, and his views on the subject showed superior information and superior judgment to what the ministry, in their aggregate capacity, possessed in connection with foreign politics and war. It was, however, eventually, Lord Palmerston, to whom, after many intrigues and much public agitation, the task was confided.

Lord Palmerston, after some difficulty, succeeded in forming a government, which was in fact but a reconstruction of the old one. Lord Aberdeen, the Duke of Newcastle, and Lord John Russell, were left out; and the only accession was Lord Panmure, who was nominated secretary of war. This nobleman was better known to the country, and perhaps to other countries, as the Honourable Fox Maule. He had considerable experience in ministerial matters, and was regarded both by statesmen and by the public as an upright and amiable man. From 1846 to 1852 he served in the Bussell administration as secretary at war: he afterwards served as president of the board of control, until the breaking up of the ministry. On Tuesday, the 8th of February, the new ministry was completed, and was thus arranged:—

First Lord of the Treasury..... Viscount Palmerston.

Lord Chancellor ..... Lord Cranworth.

President of the Council..... Earl Granville.

Privy Seal..... Duke of Argyle.

Foreign Secretary ..... Earl of Clarendon.

Home Secretary ..... Right Hon. S. Herbert.

Colonial Secretary ..... Sir George Grey.

Minister of War ..... Lord Panmure.

Chancellor or the Exchequer..... Right Hon.W.E. Gladstone.

First Lord of the Admiralty..... Sir James Graham.

Public Works ..... Sir W. Molesworth.

In the Cabinet, but without office The Marquis of Lansdowne.

President of the Board of Control Sir Charles Wood.

On the 16th of February the house met for the transaction of business, and very eager was the public ear for the words that should fall from the lips of the new premier. He informed the house, with brevity and clearness, of the circumstances

which placed him in the situation he then held; and bespoke in energetic, self-reliant, and courteous terms, the confidence of the commons of England.

It was generally known that negotiations were about to be opened in Vienna, with a view to a treaty of peace. Lord Palmerston took the country, if not the house, by surprise in announcing that he had chosen Lord John Russell as the representative of England at the conference about to ensue. This gave public satisfaction, as Lord John Russell's recent conduct, and the general disclosure upon the breaking up of the cabinet, showed that his lordship had been a very warlike member of it.*

* Nolan's "History of the War against Russia." London: J. S. Virtue

The cabinet of Lord Palmerston was not destined to remain long unbroken. When the period arrived for appointing a committee of inquiry, in virtue of Mr. Roebuck's motion, it became evident that the ministry was divided. The Peelites were in favour of an attempt to defeat the appointment of a committee. Lord Palmerston was opposed to its appointment also, but would not risk the overthrow of his power by any attempt to thwart the wishes of the house. The Peelites resigned, and the cabinet had to be reconstructed. On the 22nd of February the secession was publicly announced.

Lord Palmerston obtained Sir Charles Wood—a man of inferior talents, but superior moral weight—in place of Sir G. Graham. Sir G. Cornewall Lewis became chancellor of the exchequer, who was much inferior to Mr. Gladstone in that post, but a man of more direct and reliable opinions. Mr. Vernon Smith was made president of the board of control. Lord John Russell, who was (as before noticed) nominated to the Vienna conference, accepted the colonial-office, which Sir George Grey occupied _ad interim_, as well as the home-office, which he accepted _en permanence_. The secession of those men from the cabinet, to whom our military disasters were mainly attributable, was a gain to its moral influence, and saved the premiership of Lord Palmerston from an extinction, probably, as signal as that of his predecessor. In the month of March the ministry was modified in its inferior offices in a way calculated to improve its strength. Generally, throughout the united kingdom, it inspired confidence and received support.

One of the last acts of the Aberdeen ministry was to establish an order of military merit for bravery—the Victoria Cross.

Upon the resignation of the Aberdeen ministry, the court paid signal attention to its members; and the fallen premier received the highest badge of honour the queen could bestow—the Order of the Garter. This excited loud murmurs throughout the country, and impaired public confidence in the vigour of will possessed by the premier, when the will of the court was expressed apart from the great and leading principles of his policy.

The estimates for the service of 1855 were much discussed in the house, and were generally considered far below the exigencies of the country. The estimates for the army were £13,721,158; for the navy, £10,716,388; for the transport service, £5,181,465; for the ordnance, £7,808,042. The whole nearly equalling thirty-seven millions and a half sterling.

With the discussions of March, and the consolidations of the cabinet, ended the parliamentary events, of the year most worthy of note; although various discussions, full of interest and importance, arose from time to time throughout the whole of the session. Those which were most vital to the government arose out of the negotiations of Vienna, where Lord John Russell appeared as the chief representative of England. The sittings of this conference were held in March and April. Both Lord John Russell and the French plenipotentiary agreed to terms which, as they were ultimately rejected by the allied governments, need not be referred to here.

The unsuccessful termination of the Vienna conferences produced a great sensation in England and France, murmurs were heard in both countries that their negotiators had laboured without results; and both the English and French plenipotentiaries were compelled by public opinion to retire from their offices in the cabinets of their respective countries. Count Nesselrode addressed an artful note to the ministers and agents of Russia in various states, the object of which was to represent the allies as resisting all conciliatory offers on the part of Russia. The tone and representations of the note were identical with the arguments of Gortschakoff and Titoff at the conference. The French plenipotentiary and foreign minister resigned his place in the imperial cabinet; the English plenipotentiary and colonial minister retained office until the cause of the French minister’s retirement became known; and his conduct contrasted very favourably in English opinion to that of the English minister. Earl Clarendon and Lord Palmerston held back from the British parliament and public a correct knowledge of the facts, until it transpired, through Parisian gossip, that the French, English, and Austrian ministers were willing to accept peace on the condition of Russia and the allies keeping an equal naval armament in the Black Sea. The way in which Austria had hoodwinked the Western negotiators, and played into the hands of Russia, became at last evident; and Lord John Russell was forced to leave the English ministry. There were other results of the conference, and these rapidly developed themselves. It was no doubt a conviction on the part of the Russian government that its duplicity throughout these negotiations, and its falsehood in accepting as a basis the four points, had deprived it of all moral influence in Europe, that led to the crafty and deceptive circular of Count Nesselrode, already referred to, in which he sought to persuade the world that Russia was—as some of the English peace lecturers frequently represented—a most ill-used nation. If no other result than that of unmasking Russia—even to the Peelites and their supporters—were attendant upon those conferences, it was so much gained for the prospect of a more united public opinion in England. But these negotiations tore the mask from Austria; she was evidently not an ally of the Western powers, but an accomplice of the foe; she dreaded Russia, but she was still more afraid of France.

When the people of the united kingdom and their representatives in the commons had time to review all these things, the outcry against Lord John Russell was as great as it had been before against Lord Aberdeen. The popular voice stopped the pens and silenced the tongues of the diplomatists, and negotiations gave place to fierce and sanguinary war.

England, however, became disgusted with professional and ministerial diplomatists, and denounced all negotiations with Russia until, by sword and lance, rifle and cannon, the foe was humiliated.

There can be no question that the energy and force of the popular sentiment—often right, though sometimes erroneous, and sometimes obstinately and wilfully wrong—have occasionally interfered with the success of negotiations. But this is one of the evils inseparable from a free government. The French court, from the death of Louis XIV., was anxious to pursue a pacific policy, to improve their marine, and to pursue Colbert's maxim, that a long war was not for the benefit of France. But the democratic party, which had been formed before the death of Louis XV., employed diplomatic agents at every court to upset and overturn the pacific policy of that king's ambassadors.*

* Vide "la Politique de tous les Cabinets de L'Europe."

This is one of the few disadvantages attendant upon constitutional states in negotiation; but, _per contra_., such states also enjoy some pre-eminent advantages. In such states foreign powers do not co-operate with domestic factions, as they sometimes do in more absolute monarchies.

Presence of mind, coolness, and firmness, tell oftener in negotiations than mere talent and learning. The presence of mind of Augustus, who was of doubtful valour, obtained an ascendancy over Marc Antony, a brave soldier, but wanting in proper firmness.

Richelieu preferred firmness and patience in a negotiator to any other qualities. Suppleness, no doubt, often supplies the place of patience, and the man who can tack and veer was formerly not without his value; but the time for using these small wares has now passed for ever. They have been worn threadbare by a politician of our day, and are foul in the nostrils of every civilized nation. In the middle ages, and in Italian courts, such tricks may have been necessary, but they are unsuitable to constitutional states. A pope of Rome is recorded to have said of the Abbé Polignac:—"This young man always appears to be of my opinion at first, but at the end of the conversation, I find I am of his." Such an "artful dodge" and dissembler would be disrelished now by all pure and honest men. An attempt has been made by some French writers to attribute the science of negotiation to Mazarin. But the science existed before the time of the wily cardinal, or even of that good King Dagobert who, according to the old rhyme, "_Mit sa culotte à l'envers_;" and France, and other modern countries, as well as Egypt, Greece, and Rome, had produced great negotiators.

On the 14th of August parliament was prorogued, and soon after the ministry showed renewed activity in the work of diplomacy, without any advantage to the nation. The policy of the prorogation was much arraigned by the public; but the evening on which it took place tidings arrived of the bombardment of Sweaborg, which drew away the public attention to a real and brilliant, although partial, triumph.

[Illustration: 848.jpg BOMBARDMENT OF SWEABORG]

THE CONDUCT OF THE WAR—OPERATIONS IN THE CRIMEA AND BLACK SEA.

January opened upon the starving British army still more terribly than the December of 1854 closed. The French also suffered, but their superior military organization, commissariat, and care of the sick, spared them many miseries which afflicted the whole of the British lines. It was remarkable in the British army that very few officers perished of cold, none of hunger, while their men fell in such numbers. Very few officers died from sickness, unless such as fell victims to cholera, which smote with impartial hand the poor private and his titled chief. Various sick and wounded officers died in consequence of not having been removed in sufficient time to the Bosphorus, or to such other quarters as were not only possible, but convenient, had it not been for the heartless and stupid routine by which the heads of departments, at home and abroad, civil and military, were guided. It was the more remarkable that so few officers died in the camp in proportion to the men who perished, as the proportions were reversed in combat. The facts were, that the officers in battle exposed themselves more gallantly than the men, nobly, although, the latter fought and fell; but in the lines, and at Balaklava, out upon the plain below the plateau, and in the trenches, the officers had such comforts as were procurable for money, and which were unattainable to the men. Stores sent to the soldiers were plundered at Balaklava, and sold in the trenches by Turks, Greeks, Tartars, and rogues of all nations who had followed the army. Those who had money purchased, and fared comparatively well; the poorer soldiers hungered and died. The medical regimental officers behaved nobly; but, generally, they were unwilling to complain of any want of stores and medicines, as they, by doing so, incurred the resentment of the medical chiefs, and their promotion was suspended, or prevented altogether. It became necessary at last to introduce the civil element into the medical care of the army. Among the efforts put forth to this end was the establishment of a civil hospital at Smyrna. The government encouraged various medical men of eminence to abandon their professional prospects in London and go to the East. These men were regarded with jealousy by their brethren in the military service, and with indifference and want of courtesy very frequently by military men in high official positions, The government which, like preceding ministers, had in its contracts for the public service obtained such unenviable notoriety for breach of faith, signalized itself in an especial manner in violating honour and duty with the medical civil officers. This was especially seen in the requital of the officers attached to the hospital at Smyrna. In “Nolan’s History of the War against Russia” there is incorporated an account of the Smyrna hospital, by a very gifted and learned man,* which is too long for quotation here, but which will exemplify all that is here stated of an evil so great, and injustice so flagitious.

* Dr. Arthur Leared, Finsbury Place, South, and 12, Old Burlington Street, London. Chap, xlviii., pp. 810, 811.

According to the imperial commissioner with the French army, the month of January “was fertile in partial combats, and sudden but sanguinary and obstinate struggles.” Mr. Woods, the correspondent of the London _Morning Herald_, affirmed that the combats were useless skirmishes.

February in the Crimea was chiefly signalized by the battle of Eupatoria, which, as shown in a previous section of this chapter, issued in the signal defeat of the Russian army by Omar' Pasha, and was probably the cause of the czar's death. The accession of Alexander II. to the throne of the Russian empire, while it encouraged diplomatic efforts for peace, led to renewed efforts for war, the young emperor being anxious to show his people zeal for "the orthodox church," and reverence for the policy of his predecessor, whom Russia regarded as a saint and a martyr. The Emperor Alexander resolved upon a desperate effort to bring the war to an issue favourable to his empire by force of arms, unless, through the instrumentality of Austria at the Vienna conference, he could more cheaply conquer peace.

During the month of March, the allies became more active in the siege of Sebastopol. Efforts were put forth of a sanitary nature, which improved the health of the troops, and means of storage and transport were greatly facilitated and enlarged. The soldiers rallied with better food and more favourable weather.

The English generals displayed more activity, but did not inspire more confidence in the troops. Sorties and combats continued. The Russian forces in the Crimea were also refreshed and recruited, although the efforts to accomplish these things drained the resources of the empire.

On the 20th of the month it was known that Prince Gortschakoff succeeded Prince Menschikoff in command of the Russian Crimean forces. The latter prince—the cause of so many troubles, a blind zealot, whose influence over the Emperor Nicholas was most unhappy—was wounded and disabled. The Russian admiral, Istomine, a very brave man, was killed in the Mamelon Fort. Burial truces, combats, and sorties closed the month. In one of these the pious and heroic Captain Vicars fell.

During April the allies made powerful efforts again to bombard the place, The troops continued to suffer through March and the first week of April, although their situation was meliorated from day to day; the spirits of the men were recruited, and an ambition to signalize themselves by some decisive feat of arms was evident among them.

During this period, the Black Sea fleet operated in watching the enemy's coasts in that sea, and in harassing him in his harbours in the Sea of Azoff.

On the 8th of April Sebastopol was once more bombarded. The English shells were, in a vast proportion, harmless from their bad manufacture. The bombardment eventually failed; the industry, energy, and perseverance of the Russians enabling them to repair the earthworks and batteries as fast as their demolition by the allies seemed to advance. April was signalized by such marked differences of opinion between the French and English generals, that co-operation before Sebastopol was difficult, and impossible elsewhere, although plans for operations at other places were discussed.

May opened brightly and beautifully, as it generally does in the Crimea, and all around the trampled plateau was decked with flowers, which sprung up with wonderful rapidity in the most unlikely places, displaying their grace even among the tents of the warriors. May was attended by as unhappy differences of opinion

between the allied generals as was April, although the presence of General Pelissier in the French army tended to promote good feeling and generous forbearance.

Much sickness was experienced in May by the troops of the English army, and the extravagance, dirt, and confusion of the transport service caused a heavier sick list than would otherwise have been reported.

The King of Sardinia having joined the alliance against Russia, several thousand fine troops from that nation landed at Balaklava. They were eventually quartered upon the Tchernaya, and, with some Turkish detachments, and French divisions, held at bay the Russian army in the field, and rendered all further operations of the enemy against Balaklava impossible.

An expedition was sent against Kertch.

When May closed, the allies and the Russians confronted one another, in formidable force, upon the opposite heights of the Tchernaya.

June was an eventful month before Sebastopol. It began with a third bombardment of the gallant city, which, like previous ones, was a failure—the means of the allies, vast as they were, being inadequate to the undertaking. The French made a successful attack upon the White Works and the Mamelon; and the British were equally successful in attacks upon the Quarries, by which the part of the Russian lines which they opposed were protected. The Russians made desperate, but eventually abortive, attempts to retake all these positions.

The third bombardment having failed, the allies lost no time in bringing fresh resources of attack and storm against the defences. A fourth bombardment produced signal havoc and extensive dilapidation. On the 18th of the month, the allies attempted to take the place. A combined assault of a most sanguinary nature was made and defeated. This defeat was accompanied and followed by the loss of many distinguished officers in the British army. On the 28th the English commander-in-chief died. Illness and anxiety, with chagrin at his failure in conducting the siege to the satisfaction of his country, brought on his death. Cholera was the immediate agent in his removal. General Simpson succeeded to the command of the British army, through the instrumentality of his patron and countryman, Lord Panmure. He was still less competent than Lord Raglan for so great a responsibility, and the people of the United Kingdom were indignant at the jobbing and patronage to which the interests of the country were sacrificed. General Simpson while he remained in command was in every respect feeble, and a mere cipher in the hands of the French general. Lord Raglan, by his reserve, dignity of manner, and high rank, preserved influence and respect notwithstanding his inactivity and dulness; but General Simpson possessed no qualities that could set off or redeem his utter incompetency, unless, perhaps, his modesty, and the absence of all self-seeking about him. He urged upon his government that he was unequal to so great an appointment, but Lord Panmure insisted in thrusting the honour upon him.

General Simpson, on his assumption of command, ordered the siege to be prosecuted without intermission, in the hope of giving a fresh and successful assault. The month of July and part of August witnessed the progress of events for the grand

and final struggle, but before it could take place, incidents apart from the siege excited general attention in Europe. Lord Raglan had been very anxious for operations against Kertch, and ordered a second expedition against it, which was successful, and was a means of greatly annoying, distracting, and injuring the Russians.

After the failure of the assault on the 18th of June, the opposing hosts on the Tchernaya assumed gradually a more menacing attitude, so that from the middle of July a battle was daily and even hourly expected. It was the interest of the Russians to strike the first blow, and the allies prepared to ward it off, and, if possible, deal in return a more deadly stroke. The great trial of strength on the banks and steep acclivities of “the Black River” was destined to occur in August. On the 16th, the Russians attacked the whole line of the French and Sardinian posts, and, after a long and sanguinary battle, were defeated. This decisive repulse of the Russian army in the field, left the allies more at liberty to prosecute to perfection the works necessary to secure a successful assault. Before that event occurred the British experienced many serious losses; a surprising number of regimental officers fell in conflict or died. The disgraceful state of the English transports caused many deaths. The same inaptness and incompetency for general management characterized the English chiefs as at the very beginning of the siege. The British army experienced a serious injury in the retirement of Lieutenant-general Sir Richard England. He had probably endured more fatigue, and worked on with more patience, perseverance, and continuity of action than any officer in the British army. One by one the English chiefs had fallen away by death, or wounds, or sickness, General England, with frame of iron and indomitable will, still bearing up, although sharing cold, watchings, labours, and privations with his soldiers in a way characteristic of his generous nature and military temper. He was perhaps the least ostentatious soldier in either army. He never put himself forward prominently, but was always ready to perform the most arduous task committed to him with scrupulous precision, and quiet and indomitable resolution. Had he not offended the agents of the press by his resolution of not allowing any reporters within his division—under the conviction, probably erroneous, that the reports which found their way into the English papers, gave information to the enemy injurious to the service—he would have had many a gallant deed, and his stern uncompromising sense of duty, emblazoned to the world. His health at last suffered so severely, that he was obliged to return home, shortly before the grand conquest was achieved.

September opened with the immediate preliminaries of the grand struggle. The final bombardment of the strong city began. The number of guns with which the allies opened the bombardment was 803. On the old French attack there were 332 pieces; on the French Inkerman attack, 267 pieces: making a total in the two separate French attacks of 599 pieces of ordnance.

The English had 204 pieces, consisting of 91 mortars, and 113 guns.

The bombardment began upon the 5th,—the heaviest ever known in the history of sieges. Terrible mischief was effected by the constant discharge of so many engines of destruction; and the alarm and distress of the inhabitants and garrison could be

witnessed from the lines of the besiegers. The following extract from the author's "History of the War against Russia," describes with brevity and accuracy the final bombardment.

When the sun set, the shells, rockets, and other fiery missives from the besieging lines, sped like flights of meteors over the enemy's works, and searched the recesses of the city. Throughout the night of the 5th a fire of musketry had been directed against the faces of the works to be assailed; but on that of the 6th, this was more sustained and heavy. During the 6th, the enemy made a comparatively feeble resistance. On the early morning of the 7th, the bombardment gave place to a cannonade, which was as terrible as if opening for the first time., The enemy opened a galling fire from their Inkerman batteries across the harbour upon the French right, sweeping the batteries of the latter, slaying many, and damaging the works. A strong wind blew the smoke from the town, accompanied by clouds of dust, into the faces of the besiegers, impeding their aim, and rendering it difficult for them to observe the effect of their shot.

At half-past three a fine two-decker in the harbour was set on fire, and continued to burn through the remainder of the day and all night, with a flame exceeding in intensity and volume that of previous ships. A fire also broke suddenly forth in the rear of the Great Redan. Late in the evening another broke out in the town over the Woronzoff Road, and another at the head of the dock-yard. The combined effect of all these conflagrations was terrible beyond description, associated as they were with the deafening roar of at least 1000 pieces of cannon, for as many were constantly engaged, notwithstanding that the number of the enemy's guns silenced was very great. When daylight died the cannonade was, as before, succeeded by a bombardment, with all its fierce concomitants. The Russians showed throughout the night a constant apprehension of assault, for they threw showers of vertical grape-shot; and notwithstanding the glare of the flames from the burning ships, and the fires in the city, they lighted up their works with fire-ball and carcasses. They repeatedly threw bouquets into the trenches of the French. Thus, until the morning of the 8th, shells and rockets fell in fiery deluge upon Sebastopol, and the roll of the musketry against the faces of the chief defences never ceased. On the morning of the 8th the cannonade began with the day, and was delivered more rapidly and fiercely than before. Meanwhile preparations were made for the assault.

The assault on the English side was unsuccessful; the same bad generalship which marred the actions of the English so frequently throughout the war, threw its fatal influence over their efforts on the terrible day of the 8th of September. The French would also have failed, in all probability, had they not effected a surprise, by suddenly seizing the Malakoff, the key of the defence, at a moment when the Russians felt secure that no attack would be made. The French with great courage and adroitness secured the advantage gained, and that advantage was decisive of the contest. The Russians, after a vain struggle, retreated from Southern Sebastopol, having lost a multitude of slain, and leaving vast spoil in the hands of the captors.

The tidings of this result was spread by the electric wire and by the press until all Europe caught the exultation and rejoiced everywhere—except in the courts of

Naples and Athens, and among the members of the Greek church, who, wherever they were scattered, showed the utmost sympathy for Russian tyranny and bigotry.

During September, the allies gathered the spoils of war from the conquered city. October and November afforded fine weather for military operations, but nothing of importance was done by the allied commanders from the basis of operations before Sebastopol; while the Russians still lay in strength beyond the Tchernaya, and held Northern Sebastopol in greater strength than ever.

General Simpson resigned his command, in obedience to the popular opinion at home; and General Codrington, a general of less than two years standing, assumed the important post. Discord among the allied commanders, and intrigues in the French foreign-office and the imperial court of France, paralyzed the vigorous purposes of the English cabinet. The French emperor wished to conciliate his brother autocrat of Russia, and was unwilling to strike a blow which in proportion as it humbled Russia exalted England. A fear lest any glory or influence in the East should accrue to England swayed the French ministry. Napoleon had other designs which England was less likely to favour than was Alexander II., and the policy adopted was to gain an ally in the enemy which England aided him to subdue.

A second winter encampment before Sebastopol was necessary. The dreary plateau was once more the abode of the weary and suffering soldiers during the inclement period which terminated the year in the Crimea. The British soldiers were, however, cheered by increased numbers and efficiency, and by the care and comfort which the indignant patriotism of the British people compelled the government to bestow upon its noble army.

During the inactive of the allied armies before Sebastopol, and in the neighbourhood of the Tchernaya, certain expeditions were undertaken, which were important. An expedition was ordered against certain strong places on the European shores of the Black Sea. The reduction of Kinburn, a strong naval arsenal and place for ship-building, was effected; and Ockzakoff, an important place from which the approaches to Kinburn could be well defended, was totally destroyed.

At Eupatoria the Russians, notwithstanding the continual drain upon their resources at Sebastopol, harassed the garrison. Cavalry skirmishes were frequent, and rather sanguinary. The allies maintained their position, and constantly threatened the enemy’s communications.

OPERATIONS IN THE SEA OF AZOFF.

During the autumn and winter the allies conducted extensive and effective operations in the Sea of Azoff. All around its coasts strong places were bombarded and stormed. The granaries from which the Russian armies were fed were consumed. The fishing establishments which were on a great scale, and by which also the Russian armies received support, were wasted; and the craft which traversed that sea, as well as the armed vessels by which they had been protected, were all captured or swept away.

OPERATIONS IN ASIA MINOR.

On a previous page the arrival of Colonel Williams as her majesty's commissioner, and his efforts to restore order in the Turkish armies, and to correct the rapacity and disorder of its chiefs, were noticed. That skilful and gallant officer, now so well known as Major-general Sir Fenwick Williams, Bart, of Kars, late M.P. for Calne, and Governor of Woolwich, and while these pages are going to press, commander-in-chief of the forces in Canada, put forth almost superhuman efforts to save Asia Minor from the Russians during the summer and autumn of 1855. In consequence of the wretched conduct of the Turkish pashas, and the quarrels of the European officers in the Turkish service, especially the Poles, Germans, and Hungarians, Colonel, or as we shall now call him General, Williams shut himself up in Kars. The Turkish pashas immediately conspired together to neglect him, to refuse succours military or material, and by leaving Kars to fall into the hands of the Russians, bring discredit upon the foreign general, and deter the sultan from committing commands or positions of authority over the faithful to infidel generals. The limits of this history do not allow of the detail of the defence of Kars. It is one of the most remarkable and romantic in history. So extraordinary was the capacity of General Williams that he inspired confidence in the minds of the abject Turks, and ensured order among the wild and predatory auxiliaries who came to the assistance of his garrison. His exceeding sweetness of temper, urbanity of manner, and ease and persuasiveness of address, enabled General Williams to secure the support of the people of Kars, the wild Lazi, and his own little band of noble British officers. He defended Kars without any European troops whatever against the best general in the Russian service, and one of the most noble and generous as well as her officers, Mouravieff. The Russians were repulsed again and again by the townspeople and their rude and undisciplined assistants from the country. The army of Mouravieff was punished with appalling slaughter, and had food been sent to the garrison, which the Turkish pashas could have effected, General Williams would not only have saved Kars, but have driven the Russians back upon the line of the Caucasus. Famine, however, conquered the heroic chief and his devoted followers. The surrender of Kars became necessary, and the famished garrison and its adored chief went forth prisoners to the Russian camp. Severely as the besiegers had suffered, they used language of unbounded admiration for the skill and gallantly of General Williams and his officers, and for the devotion, endurance, and courage of their followers.

While yet the struggle was going on in Kars, Omar Pasha, at the head of a Turkish army, was dispatched to the northern shores of the Asiatic coast of the Black Sea to create a diversion, and cause the siege of Kars to be raised. In this undertaking Omar was not sincere. He, like the other pashas, was jealous of Williams, and wished Kars to fall. Omar landed, lost time wherever he could on any pretence make a stay, beat his enemy to prove his own generalship, and took care to reap none of the fruits of victory lest Kars should be saved. The skilful renegade shared with the old Turkish muchirs, feriks, and pashas, all the corruption of those classes, and all their hatred to foreigners, even although indispensable allies. Omar had been offended by the insulting contempt of Lord Raglan, and the stupid apathy of General Simpson; the French commanders had, from motives of separate policy, alienated him, so that he led an army into Asia rather to accomplish purposes of his own than to relieve Kars.

The conquests of Omar in the direction of the Ingour were rapid, signal, and brilliant. He, however, was obliged to retreat, from the severity of the season exposing his army to the bitterest sufferings and great loss of life.

The foregoing pages give as complete a view of the actions of the allies in the waters and on the shores of the Black Sea and the Sea of Azoff, as the space allotted to the account in this History can possibly allow.

OPERATIONS OF THE ALLIES IN THE BALTIC.

While war was raging on the eastern side of the Russian and Turkish empires, the western waters and shores of Russia were also the scenes of sanguinary contests. The vast fleet which, under the command of Admiral Dundas, proceeded rather too late in the spring to the Baltic, accomplished some important enterprises. The troops and stations of the Russians on the shores of Finland were shelled. Landing-parties ascended the creeks and rivers, and burned great quantities of naval stores, and destroyed or captured numerous small vessels, military or commercial. Sweaborg was bombarded, and a large portion of the fortifications destroyed, and many of their defenders slain. Cronstadt was approached as in the previous year; but was pronounced to be impregnable to the means at the disposal of the allies, vast as they were. The want of gun-boats and vessels of light draught was the chief ingredient in the elements of discomfiture which affected the allies. Throughout the year the allies hemmed in the Russian ships in their unassailable harbours of refuge, or as at Sweaborg, destroyed them by the fire of their gun-boats.

OPERATIONS IN THE WHITE SEA.

These were similar to what took place in the Baltic. Inaccessible harbours defied the allied fleets. Want of vessels of small draught rendered pursuit impossible when Russian ships made the sinuosities of the coast, and shallow rivers, available for retreat. Still great havoc was effected, and the loss of property sustained by the Russians was very severe. Both in the Baltic and White Seas the allies arrived too late in the season, and left too early.

OPERATIONS IN THE PACIFIC, AND AGAINST THE RUSSIAN SETTLEMENTS IN KAMTSCHATKA.

As in the previous year, the Russians showed superior foresight, activity, and intelligence to the allied naval forces in the Pacific. In vain the powerful squadrons of France and England pursued their enemy hither and thither; little was accomplished—incapacity and tardiness marred all enterprise. The allies, however, inflicted a heavy chastisement upon the settlement of Petropaulovski, but more by causing the Russians themselves to accomplish the work of destruction than by inflicting it through the agency of the allied arms. The Russians, unable to cope with the allies, sought safety in flight, both by land and sea; but always effected their retreat with so much courage, deliberation, and yet promptitude, as to leave no great renown to their foes. Everywhere, on every sea and shore, England and France, on the whole, triumphed; and the close of 1855 saw Russia beaten and humiliated, but still great in strength and wanton in defiance.

COLONIAL AFFAIRS.

Little occurred in the colonial history of 1855 suitable to a general work such as the present. There was, however, one sphere of English influence where opinions and feelings were working, and events were preparing the way for great results—that sphere was India.

INDIA.

During the whole of the year 1855, General Outram, as the British political agent at Lucknow, was engaged in disputes with the King of Oude. According to instructions from Lord Dalhousie, the governor-general, demands were made which the king and his people resisted. General Outram acted with all the humanity and courtesy which his stern instructions allowed. Lord Dalhousie was determined to annex the rich and fertile kingdom. The British cabinet, acting through the board of control, encouraged him. The author of these pages knows that the directors of the East India Company generally disapproved of the annexation, and some of them foresaw the consequences. The act of parliament of 1853, which came into operation in 1854, left the company so little power, that there was no use in its intelligent members opposing the caprice and aggrandizement of the board of control. At all events, the directors offered no open opposition, and Lord Dalhousie was left to his own unfettered judgment to carry out his scheme. At the close of 1855, General Outram was ordered to assemble a large military force at Cawnpore, and to enter into negotiations with the Oude government, “for the purposes mentioned in the despatch of the honourable court.” On the 30th of January, 1856, General Outram summoned the prime-minister of Oude to the residency at Lucknow, to inform him of the decision of the governor-general. On the 1st of February the king addressed “the Resident,” protesting in mild but dignified language against the subversion of his rightful authority. The resident declined all discussion, informing his majesty that the determination of his government was inflexible. He gave the king three days to decide. The army and people of Oude were as one man in the desire to raise the standard of resistance; and the sepoys of the Bengal army, being soon made acquainted with the danger to the independence of Oude, their native territory, heartily, but secretly, sympathized with its king and people. His majesty did not dare, however, to encounter the superior power of the British; he disarmed his troops, and dismounted his guns. On the 4th of February, General Outram demanded that the king should sign a declaration that his “infraction of the essential engagements of the previous treaties had been continued and notorious.” His majesty, giving way to vehement grief and indignation, refused to sign this condemnation of himself, and expressed his determination to lay a memorial of his wrongs at the feet of the Queen of Great Britain. In 1858, he, by his agents, endeavoured to obtain from her majesty redress of the grievances of which he complained. The king also refused to sign a new treaty, abrogating that of 1801, submitted to him by General Outram. On the 7th of February, the general issued a proclamation, declaring that “the British government had assumed to itself the exclusive and permanent administration of the territories of Oude.” From that moment the soldiery and people of the kingdom were resolved to take the first opportunity of reasserting the independence of their country, and taking

vengeance upon those whom they considered its oppressors. General Outram compelled many nobles _to give bail_ for their good behaviour, and many were placed under surveillance. General Outram has been much blamed for the part he took, but he merely performed his duty as the governor-general’s agent. He was taken into his excellency’s counsels no farther than to evoke his opinion on the _modus operandi_ by which the orders of Government-house might best be carried out. General Outram had no responsibility as to the policy of the transaction.

In the above relation of the transactions in India, events are anticipated for unity of subject, as in 1855 the orders went forth which annexed Oude, and nearly lost India in 1857.

CHAPTER LXVIII.

{VICTORIA. 1856}

Conclusion of the Russian War..... General Foreign Relations..... Correspondence of the English Foreign Minister with the Sardinian Plenipotentiaries to the Paris Conference..... Relations with Naples..... British Policy in the East..... Treaty of Commerce and Friendship with Siam..... War with Persia..... War with China..... Disputes with the United States of America..... India..... Ireland..... Financial and Commercial Condition of the Country..... Parliamentary Proceedings.

CONCLUSION OF THE RUSSIAN WAR.

{A.D. 1856}

It will aid the consecutive narrative of events to relate the conclusion of the Russian war, and the home events connected with it, in the opening sections of this chapter.

The early winter months of 1856 were spent inactively by the opposing armies, and negotiations for peace were opened, chiefly through the instrumentality of Austria, backed by Prussia. France, however, it was suspected in England, had made overtures to Russia privately, the French emperor having maintained all through the struggle a separate and selfish policy while uniting with England to destroy the power of Russia in the Black Sea. It was to the interest of France to destroy Muscovite influence in the neighbourhood of the Mediterranean, and to limit the preponderating influence of the Russo-Greek church in Turkey. It was the especial interest of the emperor to compel the czar to recognise him as a great European sovereign, the _de facto_ and _de jure_ sovereign of the French, although not of the line of its legitimate kings. These objects were partly attained, and were obviously attainable as far as France or the emperor had any interest in prosecuting them. Once assured of this, his imperial majesty and his political coadjutors changed their tone (they could scarcely be said to change their policy) towards England. It was declared in France that England had sinister designs in keeping up hostilities; that she was desirous to use the power of France to lessen Russian power in Asia in the

interest of the Anglo-Indian dominions. The question, too, was raised in France, how far it was for the advantage of that country to extirpate the naval power of Russia, which might be employed, possibly, in resisting the dominant navy of England. During the war, the French navy performed an inglorious part. It fought well when brought into action, but its operations were entirely subsidiary to those of England. France was jealous of this evident superiority, and from the fall of Sebastopol toiled incessantly to counteract and rival the naval power of England. Everything Russian was popular in France after the capture of southern Sebastopol—everything English was decried. The most mendacious statements, under official authority, were put forth, exaggerating the losses of the English navy and army, and lessening the computation of the losses of Russia and France. The French official journals described the loss of the Russian army at a quarter of a million of men. Lord Panmure, in his place in the British parliament, estimated it at half a million. His lordship, as war minister, was acquainted with the facts as regarded all the armies in the field, and no one ever impeached his truthfulness and moderation. During the two years and a quarter that the Crimean campaign lasted, out of an army, of which the average strength was 34,500, 20,800 died from all causes; but of these deaths only 5,000 occurred in action, or from wounds inflicted by the enemy. Two-thirds of the whole mortality arose from other causes more destructive than shot, bullet, or bayonet. An equal number of men of the same ages would, according to the average death-rate of the more healthy districts of England, have suffered a loss of only 610, in lieu of 20,000. While every credit is given to the war secretary for moderation and truth, his statistics are open to some strictures. They were thus commented upon by the author of this History, in his “History of the War against Russia.”*

* Vol. ii. p. 745.

“Lord Panmure’s statement referred to the army, but it did not include soldiers on board ship, nor the naval brigade, nor the marines. His lordship’s account does not agree with a corrected calculation from the various reports made from time to time. These bring up the computation to a figure higher by several thousands. This may be accounted for by several circumstances. His lordship’s lists excluded the commissary and hospital departments, also the army works and land-transport corps. Besides, his computations only begin with the encounter of the Bulganak, previous to which the sufferings of the soldiers in landing at Old Fort were so great, that on the short march to the bivouac of the Bulganak many men dropped out from cholera, dysentery, thirst, or weakness, who never rejoined their corps; and some of whom, it is to be feared, from the want of transport and ambulances, perished unaided where they fell. Forty thousand would be nearer the total loss than 23,000.”

Small as was the part taken by the navy of France in the war, her losses were great. The _Moniteur de la Flotte_ published the returns of the casualties experienced by the French imperial navy during the expeditions to the Crimea, the Baltic, and Petropaulovski, in 1854, 1855, and 1856. The ships’ crews lost 11 officers and 144 seamen killed by the enemy’s fire, and 39 officers and 3,237 men who died of their wounds or from sickness—in all 50 officers and 3,381 men; the naval artillery corps had 2 officers and 31 non-commissioned officers and soldiers killed, and 3 officers

and 231 non-commissioned officers who died of their wounds or from sickness—in all 5 officers and 262 men, and the marine infantry, 9 officers and 73 non-commissioned officers and men killed, and 12 officers and 1,057 non-commissioned officers and men who died of their wounds or from sickness—in all 21 officers and 1,130 men. Total—270 killed and 4,579 dead; in all 4,819. According to Marshal Vaillant, the French minister of war, France sent to the east 309,628 men, 41,974 horses, and 597,686 tons of stores; and brought back 227,125 men, 9.000 horses, and 126,880 tons of stores.

The result of the negotiations brought about by the chief German powers, and ardently desired by France, was a treaty of peace on the 30th of March, 1856. It was ratified on the 27th of April. Six months was fixed for the evacuation of Russian territories by the allies. The French army commenced its embarkation more than a fortnight before the ratification, as a sort of overt proof of the good will of the French emperor to his new ally and recent enemy. In less than three months, on the 5th of July, the whole of the French army had abandoned the soil of Russia, On the 8th of August the last French soldier left Constantinople on the homeward voyage. The British army was more easily removed from its smaller number and its greater transport power.

On the 23rd of April one of the grandest sights ever witnessed from the shores of England was presented at Portsmouth. Never were the waters of the Solent so crowded with “craft of all dimensions” as on that day. Notwithstanding the shameful failures of the English navy in the Pacific, and the dilatory proceedings of the Admiralty, which rendered the blockades in the White Sea so much less effective than they ought to have been—although the massacre of Sinope did take place, and “Old Charley” nursed his gout or drank his grog, when he ought to have been reconnoitering Sweaborg—still the Russian navy of the Euxine had perished rather than meet Dundas; the stores, granaries, and fisheries, were swept from the coasts of the Sea of Azoff; and not a ship of the enemy dare put to sea for two years in the Baltic. After all, Britannia did “rule the waves,” and was more able to rule them than ever. The fleet was assembled for her majesty’s personal review, and consisted of 240 steam vessels, including gun-boats, mortar-boats, and floating batteries. There were three vessels of 100 guns each, six of 91, an equal number of 80 guns, and vessels of every order; frigates, brigs, sloops, &c, had their proportionate numbers. The steam-power equalled that of 31,000 horses, and 3,000 guns were carried. The fleet, covering a space of twelve miles, was manned by 30,000 sailors and marines. On the 29th of April peace was proclaimed. The author of this work witnessed the proclamation in several parts of the metropolis, but the crowds were not such as the great city usually sent forth on occasions of magnitude. The fact was, England did not consider that the war had been prosecuted to its legitimate consequences, and felt that the French emperor had not pursued a direct and fair policy.

The return of the British troops was hailed with enthusiasm, and a review of a portion of them—especially the guards—by her majesty in Hyde Park, elicited unbounded enthusiasm from all classes of the people. Among the most exciting home incidents connected with the war was the distribution by her majesty, in Hyde Park,

of the Victoria Cross—the badge of a new order of merit, bestowed for valour upon a number of gallant recipients.

Peace had scarcely been proclaimed when the country was irritated by tidings that Russia was endeavouring to evade its stipulations, and that France and Austria were playing into her hands. One of the terms of the treaty was that the Russian frontier should recede from the Danube. That crafty power had taken advantage of an erroneous French map, introduced by the French diplomatists at the conference, to deceive the allies as to the boundary agreed upon. After much negotiation and dispute, conducted as to England and Turkey on the one side and Russia on the other with intense acrimony, Russia was obliged to conform to the demands of the allies. Another stipulation of the treaty was the free navigation of the Danube. Russia endeavoured to seize upon the Isle of Serpents, off the Sulina mouth of the delta of that river. The island was a portion of the dominions of the sultan; an English naval officer secured the possession of it to the Turkish sovereign. France rendered little assistance to England in these disputes, and displayed sympathy with Russia and jealousy of British influence. The neutrality of the Black Sea, and the destruction of all naval arsenals on its Russian shores, or rivers communicating with its shores, was also a stipulation of the treaty which Russia evaded. Here also England by her firm diplomacy, almost unaided by France, constrained Russia to conform to the terms of the peace. Another article of the treaty referred to the emancipation of the sultan’s Christian subjects from all disabilities on account of their religion. This the sultan and the orthodox Turks evaded, and have continued to evade to the present time, although ostentatious proclamations in the spirit of the treaty were put forth by the sultan’s government, and engagements the most determinate were subscribed. The general conduct of the Christians of the empire was disloyal and dishonest; they sought, like the Russians and Turks, to obtain all the advantages of the treaty, and fulfil none of its obligations. The remaining among the articles of the treaty of chief importance regulated the liberties, and relations to the sultan, of the provinces of Moldavia and Wallachia. Here also difficulties arose, fomented by the united policy of the French and Russian governments, who intrigued—with the Wallachs especially—to insist on acting in a manner hostile to the constitution assigned by the treaty for their government. These disputes continued for years after the termination of the war. England resisted the intrigues which France and Russia set on foot inimical to the interests of the sultan, but her diplomacy and influence were not so successful as in reference to the other terms of the treaty. The great powers played a part that was not great, after the peace.

GENERAL CONDITION OF THE FOREIGN RELATIONS OF THE UNITED KINGDOM.

Sardinia.—The gallant little kingdom of Sardinia had rendered important aid in the war, and at its conclusion urged upon the representatives of the great powers assembled in conference in Paris the importance of preventing an outbreak in Italy, by compelling Austria and the other despots of Italy to govern with justice and observe treaties. On March the 27th, 1856, the plenipotentiaries of Sardinia addressed a _note verbale_ to the Earl of Clarendon, her majesty’s foreign minister,

urging upon England the consideration of the dangerous state of Italy, and the complications to which it would give rise. Sardinia especially protested against the occupation of the Roman states by foreign troops—those of Austria and France—thus suppressing all free expression of action and opinion by the people of these states.

On April the 16th the plenipotentiaries of the Sardinian king, then resident at Paris, addressed a voluminous memorandum to Lord Clarendon, entering at large into the affairs of Italy, portraying the danger to Sardinia from Austrian aggression, and showing that it was the duty and interest of England to insist upon the termination of the state of things which existed.

On the 26th of May the Earl of Clarendon addressed a despatch to Sir James Hudson, the English minister at the court of Turin. This despatch was brief, and contained nevertheless a very full exposition of the righteous and sympathising policy of England towards the people of Italy. This despatch obtained much significance from the events which followed. Lord Clarendon’s prediction was but too truly verified,—a few years witnessed the complications foretold,—the peace of Europe was disturbed, and the foreign occupation of Italy was at once the cause of the war and the theatre of its devastations.

The brevity of Lord Clarendon’s despatch to Sir James Hudson allows of its insertion:—

“_Foreign Office, May 26_, 1856.

“Sir,—I herewith inclose the copy of a note which was addressed to me when at Paris by the plenipotentiaries of Sardinia.

“The verbal communications which I frequently had the pleasure of holding with Count Cavour, both before and subsequently to the receipt of this note, can have left no doubt upon the mind of his excellency that her majesty’s government take a deep and sincere interest in the affairs of Italy, and are desirous of doing everything which can properly be done by them with a view to ameliorate the condition of the Italian people.

“No fresh assurances could add weight to those already given to Count Cavour, and I did not, therefore, think it necessary to send an answer in writing to the note of the Sardinian plenipotentiaries; but as it has come to the knowledge of her majesty’s government that it would be agreeable to the Sardinian government to receive one, they cannot hesitate to declare their opinion that the occupation of the Papal territory by foreign troops constitutes an irregular state of things, which disturbs the equilibrium, and may endanger the peace of Europe; and that, by indirectly affording sanction to misgovernment, it promotes discontent and a tendency to revolution among the people.

“Her majesty’s government are aware that as this state of things has now, unfortunately, for some years been established, it may be possible that it could not suddenly be brought to a close without some danger to public order, and the risk of producing events that all would deplore; but her majesty’s government are convinced that the evacuation of the Papal territory may be rendered safe at an early period by

a policy of wisdom and justice, and they entertain a hope that the measures agreed upon by the governments of France and Austria will lead to a gradual withdrawal of their respective forces, and to bettering the condition of the subjects of the Pope.

“You will read and give a copy of this despatch to Count Cavour.

“I am, &c,

“[Signed] Clarendon.”

Naples.—The state of Naples was at this time appalling, the king was the most unruly man in his kingdom. Oppressions the most barbarous were wrought by his sanguinary and faithless hand. The governments of France and England advised, remonstrated, protested in vain. His majesty adopted the principle of doing what he pleased with his own, to the ruin of his kingdom, the sufferings of his people, and the disgrace of his reign. Various English subjects were injured, but no effectual measures were taken by either England or France to put a stop to the insult and defiance they received. Austria professed to offer the Neapolitan monarch advice in the interests of moderation and good government—it was even alleged that Russia did the same; but his majesty was deaf to all counsel, and expressed his determination to rule absolutely, and deal with his people as he pleased, in spite of the threatened interposition of foreign powers.

BRITISH POLICY IN ASIA.

Siam.—The British government used all its influence to cultivate friendly relations with all the Asiatic governments, in the hope that a more extended and peaceful intercourse might spring up between these nations and the British empire. The most decisive results of such negotiations were seen at Siam and Persia. In the former country peace and friendship were confirmed; in the latter, war closed a vexed correspondence, which England conducted with the sincerest desire to secure justice and amity. A treaty of friendship and commerce was signed at Bangkok, May 13, 1856, between her Britannic majesty and the King of Siam. A supplementary agreement was afterwards signed. Dr. Bowring was the British plenipotentiary. His excellency’s account of the embassy and the accomplishment of its purpose has been published, and opens up interesting and instructive views of the people of that region.

THE PERSIAN WAR.

The foundation of this quarrel was laid during the war with Russia. That crafty and active government sought to create a diversion against England by causing Persia to make the occasion available for advancing upon Herat, and pushing her designs upon Affghanistan. The intrigues of Russia developed themselves too slowly for her purpose, and 1856 arrived before the war broke out. During the year the temper and spirit of the Persian court became intensely irritable towards, the English ambassador and his suite. A circumstance arose which brought this out painfully. On the 15th of June, 1854, Mr. Thomson, the English minister, wrote to Lord Clarendon, then minister for foreign affairs, informing him that he had chosen one Meerza Hashem Khan as the Persian secretary to the British mission. This person was courtly, learned, and in every way suitable to the office assigned to him. Lord

Clarendon confirmed the appointment. The Persian court immediately persecuted the favourite of the English mission. The Hon. C. A. Murray succeeded Mr. Thomson, and he also favoured Meerza Hashem. The Persian court continued its persecution, and finally seized and imprisoned the khan's wife. Mr. Murray demanded satisfaction for this outrage upon the staff of the British mission, and the release of the lady. His demands were treated with disdain, and Mr. Murray felt bound to maintain the dignity of the government he represented by striking his flag on the 20th of November, 1855. The Persian prime-minister put a report into circulation that both Mr. Murray and his predecessor had intrigues with the khan's wife, and therefore employed him in the embassy. The Persian premier at last made the allegation to Mr. Murray himself, in a despatch. On the 5th of December, after having endured many insults, he left Teheran.

In July, 1856, Lord Clarendon caused the ultimatum of his government to be delivered to the Persian _charge d'affaires_ at Constantinople. It was to the following effect:—The sadr azim (prime-minister) to write in the shah's name a letter to Mr. Murray, expressing his regret at having uttered and given currency to the offensive imputation upon the honour of her majesty's minister, requesting to withdraw his own letter of the 19th of November, and the two letters of the minister for foreign affairs of the 26th of November. A copy of this apology to be communicated officially to each of the foreign missions at Teheran, and the substance of it to be made public in that capital. The original letter to be conveyed to Mr. Murray, at Bagdad, by the hands of some high Persian officer, and to be accompanied by an invitation to Mr. Murray, in the shah's name, to return with the mission to Teheran, on his majesty's assurance that he shall be received with all the honours and consideration due to the representative of the British government. Mr. Murray, on approaching the capital, to be received by persons of high rank deputed to escort him to his residence. Immediately on his arrival, the sadr azim to go in state to the British mission and renew friendly relations with Mr. Murray. At noon on the following day, the British flag to be hoisted under a salute of 21 guns, and the sadr azim to visit the mission immediately afterwards, which visit Mr. Murray will return. Should Herat be occupied by the shah's troops, his majesty to engage to withdraw them without delay. The British mission to defer to his majesty's wish, if renewed, respecting Meerza Hashem, by not insisting on his appointment at Shiraz; the Meerza's wife, however, to be restored to him.

The ultimatum failed to secure redress. A series of fresh outrages was offered at the embassy upon such servants of the British government as remained there. Orders were sent to Consul Stevens to quit Persia, and take the means usual in such cases to secure the liberty and property of British subjects.

On the 1st of November, the governor-general of India declared war against Persia. Three proclamations were issued by his excellency, which, when they arrived at Constantinople, caused the Persian plenipotentiary to withdraw from all further negotiations, and to treat his former agreements as null and void. Major-general Outram, K.C.B., had returned to England from Oude, and while at home was in consultation with the British government concerning the Persian expedition. He was

appointed to command it, and arrived in Bombay for that purpose.

On the arrival of General Outram, active operations commenced. The British landed in Bushire, and defeated the Persians. The place was garrisoned by a portion of the troops, while the main army marched into the interior, driving the Persians with ease before them; and afterwards an expedition was made to Mohammerah, a considerable distance up the Persian Gulf. This was attended with complete success. By the end of March all these conquests were effected. They were followed by an expedition to Akwaz, upon which place the defeated Persians had retired from Mohammerah. The squadron proceeded up the Gulf with great judgment and rapidity, and the enterprise was crowned by the accomplishment of the object proposed, the Persians being obliged to retreat far inland. The English remained masters of the Persian Gulf and its shores throughout the year. Meanwhile, negotiations went on at Paris between the British minister there and the Persian ambassador. The shah ultimately consented to receive the English ambassador at Teheran with all the honours insisted upon in the English ultimatum, to redress the grievances, and satisfy the complaints of the embassy, and to engage to renounce all claims upon Herat. The treaty involved a clause that Bushire was to be occupied by the British until all the concessions made to the English government were practically carried out. In virtue of this arrangement General Havelock remained at Bushire, with a garrison, until May, 1857, when he proceeded thence to perform in India the glorious exploits which terminated his illustrious career. General Outram and the main body of the expeditionary army sailed for India in May, 1856.

WAR WITH CHINA.

The year 1856 was fruitful in events in Asia interesting and important to Great Britain. Among these was the breaking out of another war with China. The origin of the war may be thus briefly stated. A small vessel, called a lorcha, was the property of a British subject, resident at Hong-Kong. It was boarded, while carrying the British flag, by the Chinese authorities, who alleged they were in search of a pirate among the crew. The whole crew were arrested, chained, and carried away prisoners. This was in contravention of the existing treaty with China. The English consul demanded that the captured persons should be returned to the lorcha, and that their investigation should be made according to the treaty. Governor Yeh not only refused to do this, but did so in terms insolent, and almost menacing. The consul at Canton reported the case to the governor of Hong-Kong, Sir John Bowring. The reclamations of that functionary were treated as disdainfully as those of the consul, and it became necessary, as a last resort, to appeal to arms. The outrage upon the lorcha was committed on the 8th of October, 1856. On the 22nd of October, Rear-admiral Sir Michael Seymour, on board the _Coromandel_, accompanied by a squadron of gun-boats, captured a number of forts by which the entrance to Canton was defended. On the 28th he took possession of a fort known by the name of the Dutch Folly, situated on an island opposite Canton. Commissioner Yeh seemed now to be alarmed for the safety of the city, and offered to surrender ten out of twelve of the men taken out of the lorcha. This the British authorities declined. He then sent the twelve, but demanded that two of them, whom he alleged were guilty of piracy,

should be returned, to be dealt with according to the laws of China. Consul Parks had, however, demanded at first that the men should be as publicly sent back to the lorcha as they had been taken away. The twelve men were accordingly brought back by the Chinese authorities again to Governor Yeh. That strange person refused to receive them any more, probably considering that they had brought sufficient trouble and danger on him already. Sir John Bowring then demanded, that as Canton was included in the five ports opened by the treaty of 29th of August, 1842, such facilities for commerce as existed at the other four ports should be opened to British residents at Canton. The English had waived this privilege so far as Canton was concerned (although reserving their right), in order to conciliate the prejudices of a province supposed to be more hostile than any other in China to foreigners. To the demand of Sir J. Bowring, Yeh returned no answer. Sir M. Seymour accordingly opened fire upon some large government buildings on the 27th. Yeh's own residence was amongst the buildings thus attacked. A body of troops, drawn up on a rising ground, was shelled by the British, and driven from the position. Yeh, as high commissioner of his imperial majesty, offered, by proclamation, a reward of thirty dollars for the head of every Englishman. On the 29th, a breach being made in the walls, seamen and marines landed, blew in the city gate, penetrated the interior of the city, and captured the governor's house. Admiral Seymour, more gallant than wise, proposed a conference with the commissioner, who declined it. On the 3rd of November, Canton was therefore again attacked. On the 5th a fleet of war-junks was destroyed, and the French Folly fort captured. Sir Michael Seymour was infected by the old British absurdity in dealing with the Chinese, that of negotiating, when prompt and sustained action to compel them to seek negotiation was the only sound policy. Sir Michael carried on a correspondence with the chief mandarin concerning the surrender of the Bogue forts, and their restoration, unimpaired, under certain contingencies. The mandarin regarded the correspondence useful so as to gain time, but he would make no concessions. On the 12th of November the forts were attacked, and on the 13th captured with ease, although defended by 400 guns. On the same day the Ammughoy forts on the side opposite to the Bogue entrance were attacked and captured, with very little resistance, although mounted by 210 guns. On the 14th of December the foreign factories at Canton were fired by the Chinese, and nearly all destroyed. Admiral Seymour could effect nothing during the month of December, his force being inadequate. While he awaited reinforcements the year terminated.

DISPUTES WITH THE UNITED STATES OF AMERICA.

During the year 1855 disputes existed with the North American republic, which were happily brought to a termination in 1856. The differences between that power and Great Britain referred to two subjects—the enlistment of recruits by British officers, and "the Clayton-Bulwer treaty" concerning Central America. England withdrew her recruiting agents, and made reparation for her conduct. The Clayton-Bulwer treaty was not so easily adjusted. It was a dispute between the two great American powers—England and the United States—for influence in Central America. It was supposed that the convention completed between the two ministers (Bulwer and Clayton) had put an end to the hostile feeling which had arisen. The Americans were not, however, satisfied with the arrangement, and put an

interpretation upon the treaty opposed to that which England acknowledged. The British government, by going to the verge of pusillanimity, averted war, but the adjustment made was only temporary; the Americans virtually ignored the treaty, and England, while virtually submitting, still preserved an ostensible recognition of her rights. These events gave rise to fierce debates in the American congress and the British parliament, but an open rupture between the two countries, which appeared imminent, did not take place. The subject of Central America became a generic question, including various specific grounds of quarrel. A question arose as to the British protectorate of Mosquito. The English government issued a proclamation, declaring the Bay Islands a British colony. This offended the United States, and an angry, though courteous, correspondence ensued between Mr. Buchanan and the Earl of Clarendon. The English were anxious to refer the question to the decision of a third power, to which the Americans would not consent. A convention was formed with the republic of Honduras on the 27th of August, which vested in the latter power certain disputed territory which had given rise to much heat and dispute between England and the United States.

INTERNATIONAL MARITIME LAW.

At the congress of Paris, where peace with Russia was negotiated, a new principle was recognised in international maritime law, that “A neutral flag covers an enemy’s goods.” This was not a popular measure in England. It was believed to be a blow struck by France at the maritime power of Britain. The English navy regarded the principle with much hostility, and it was hotly debated in parliament, a large party opposing the government for consenting to such a principle.

INDIA.

The general condition of the British colonies continued prosperous; but in India certain potent elements of disturbance were at work. The annexation of Oude began to produce its fruits, the people of all ranks—high and low, military and civil—were preparing for revolt; and a scheme was set on foot for corrupting the native army of Bengal, chiefly recruited from Oude, which, within a year, produced the most appalling results. Various symptoms of sedition, in different parts of India remote from one another, were indicated, but were not taken notice of by the authorities, either wisely or vigilantly. Among the most remarkable signs of a movement of some kind being on foot, was the transmission of little cakes, called _chupatees_, from hand to hand, throughout all the cities and villages of India. Many officers predicted, from this circumstance, that a conspiracy to a revolt was in progress, but the government discountenanced all warnings, and treated contemptuously all information communicated to it which was calculated to call for its watchfulness. The authorities believed that the chupatee movement was harmless. Even now, this is the opinion of many familiar with India, although the majority I conversant with that country were of a contrary opinion.

One intelligent writer* presents the subject in the following light: “The transmission of such little cakes from one district to another is supposed by the Hindoos to effect the removal of epidemic disease. When cholera broke out in this

division, the villagers frequently attached the disease, as they fancied, by some ceremonies, to a buffalo, and drove it across the Ganges, or into some other village. This latter course frequently caused fighting between the villagers. It was also found that a similar transmission of cakes had taken place on a former occasion, when a murrain attacked the cattle of the districts bordering Oude, and the disease was supposed to be stayed as soon as the said cakes reached the holy fanes of Hurdwar. The agitation was fostered, and false rumours founded thereon, prejudicial to government, were almost invariably propagated by Mussulmans, while the transmission of a cake is a purely Hindoo practice. The shape and size of the cakes was that of the common Brahmin 'Pooree.' The excitement at the time among the sepoys, and the occurrence afterwards of the mutiny, has led many to connect this cake distribution with our disturbances, but without any sufficient grounds for so doing. It is probable that if any connection existed it was accidental, and the relationship acknowledged by either designing or ignorant persons, was consequent upon the distribution, and did not cause or precede it. Those, indeed, who have attempted to explain the 'chupatee movement,' as it is called, to be a sort of 'fiery cross' signal for a united rising, appear to have succeeded in proving little by their own ingenuity. Its real origin was, doubtless, a superstitious attempt to prevent any return of the fearful visitation of epidemic cholera which devastated the north-west provinces the year before, and still lingered in scattered spots."

* Robert Henry Wallace Dunlop, B.C.S.

The symptoms of disaffection, which were evident before Lord Dalhousie retired from the government, became still more marked after the arrival of Lord Canning. Lord Dalhousie left India in March, Lord Canning arriving before the departure of his predecessor in office. The two proud noblemen met at Government-house, and appeared publicly together at a grand ball at that celebrated palace of English governors. An American gentleman, a correspondent of the _New York Herald_,** was struck with the haughty bearing of both these noblemen, their coldness to men of rank and great talent, and their general indifference of manner towards those whom it was their duty, as it ought to have been their privilege, to conciliate.

** Mr. Train, author of "Young America Abroad."

The American observer, who looked on with an intelligent and impartial eye, was especially disgusted with the insolent bearing of the European officials, as well as of the noble governors-general, to the native princes, especially those who were conquered in the great Sikh war. They were obliged to put off their shoes in token of submission, after the manner of the East, when a conqueror or superior is approached. The American gentleman noticed the look of dejection and distaste expressed in the countenances of these once powerful native chieftains, and foreboded that a government which pursued a policy so arrogant, and where officers were characterized by so offensive an hauteur, must hold the sword tightly in its hand, or public indignation and resentment would arise, dangerous, if not fatal, to its power.

Lord Canning signalized his dawning power by a proclamation on the affairs at Oude, which exasperated to the last degree the vengeance nursed in the hearts of the whole people of that region.

Towards the end of the year the troops of the Bengal army were sullen and almost mutinous. Intelligent, officers noticed the dark scowl which the soldiery in vain endeavoured to conceal. In the public bazaars of the great cities a sort of secret intelligence between the sepoys and the people was observed, and all men, except the high officials, seemed to hear the murmuring of the distant thunder, and the first struggles of the storm, so soon to burst in blood and destruction over so large a portion of India. Thus closed the year 1856 in the British Indian empire: 1857 had scarcely dawned, when the thundercloud burst over its fairest provinces, and the deluge fell by which so many human beings, so many interests, and so vast an army, were swept away.

IRELAND.

The progress of Ireland in material prosperity was obvious, and a source of gratulation to the empire. The moral progress of the country did not keep pace with its temporal advancement; in this respect the predictions of its best friends in parliament and in Great Britain were not fulfilled. Agrarian outrage was as common as in previous years, and the murderous riband conspiracy still dealt out slaughter, and held the good and peaceable in terror without any proper attempts on the part of government to put it down. The following remarks of the editor of the _Annual Register_ were as true and just as they were pertinent and expressive of the facts:—“Many of the homicidal crimes in Ireland arise from motives which must be found in every society, and which therefore are not to be accounted as a peculiar reproach upon the natural character. Many of these foul deeds would not deserve any especial record, were it not needful that they should be noticed simultaneously with those more horrible assassinations perpetrated under the influence of a secret tribunal which has for generations been the curse of that unhappy land. Although the national prosperity of Ireland for some years back has been such as to alter the aspect of the country, it will probably take many years of content and good government—perhaps the passing away of more than one generation—to purge the land of the monstrous organization which keeps all men in dread.”

HOME—GENERAL CONDITION OF GREAT BRITAIN.

The year 1856 opened mildly as to the season, compared with 1855. The winter and spring months passed away without witnessing the severity of weather, or its fatal influence upon health and life which characterized the corresponding months of the previous year. The attention of the people was much occupied by foreign politics and events. The unwelcome peace with Russia, the wars with Persia and China, the threatening aspect of affairs in India, especially in Oude, engaged the minds of men most seriously, and checked in some measure the general prosperous condition of affairs.

There were few incidents connected with the court interesting to the public. The King of the Belgians paid a visit to his august niece early in the year, and rumour

attributed a motive in connection with it which referred to the projected peace with Russia. His majesty, indeed, never visited England but some rumour did not prevail as to the influence he sought to exercise over the mind of her majesty, in sympathy with some foreign nation not altogether in harmony with British interests and views. It was believed that he came on this occasion to make as easy terms as possible for Russia. The movements of the royal family throughout the year were as had been customary. The return of the troops from the seat of war gave her majesty opportunity to show her interest in her brave soldiers, and to put forth her benevolence wisely and freely on their behalf.

The prosperity of the country may best be contemplated from trade returns of the year: these were reported by command of her majesty to both houses of parliament. On March 19, 1857, returns were made to the legislature, containing abstracts of reports of the trade of various countries and places for the years 1855—1856, received by the board of trade, through the foreign office, from her majesty's ministers and consuls. Those abstracts are too voluminous for these pages: a perusal of them in their original form would repay the reader, and show that the great commercial country of the world was Great Britain—that so extensive and ramified were her trade transactions, that she might be considered the centre of universal commerce. The great manufacturing towns in the north of England increased prodigiously in wealth and influence, and the chief provincial ports became hives of industry, while their waters were crowded with forests of ships. The Liverpool Year-book for 1856* disclosed an extraordinary state of power and prosperity in that great commercial thoroughfare and _entrepot_ of the world.

* Edited and compiled by Lee and Nightingale, published by Benson and Mallett, Liverpool.

During the official year, which ended August 31, 1856, the nett ordinary income of the borough amounted to £223,319 18s. The docks of Liverpool were amongst the wonders of England; and since 1856 they have been improved and enlarged, so as to surpass in magnitude and adaptation all previous speculation.

NATIONAL FINANCE.

The expensive war with Russia entailed its costs long after the first outlay and havoc passed away. The financial returns for the year ending with March, 1856, were, however, most encouraging, and proved how great were the pecuniary resources of England for war or peace. The following is a brief abstract of income and expenditure:—"The public income for the year ending the 31st March, 1856, amounted to £70,552,145 against £64,091,571 in 1855, and the expenditure to £93,149,310 against £70,236,817 in 1855. Thus there was an excess of expenditure over income in 1855–56 of £22,597,165, and an excess of £6,145,246 in the year 1854–55. The customs (in 1855–56) yielded £35,635,552; the excise, £5,210,384; stamps, £7,063,610; the assessed and land-taxes, £3,136,077; the income-tax, £15,159,458 against £10,922,267 in the year ending the 31st of March, 1855; the post-office, £2,767,201; and crown lands, £421,715. The duties on spirits and wines remained very stationary; those on malt, coffee, tobacco, snuff, and sugar increased.

The house-tax yielded £728,689, and land-taxes £1,157,525. The expenditure in 1855–56 included £2,863,353 for collecting the revenue; £28,112,825 for the public debt; £1,695,052 for the civil government; £3,192,420 for law and justice; £366,443 for diplomatic salaries; £47,461,188 for the army, navy, and ordnance (against £28,321,707 in the preceding year); and £4,200,000 for the vote of credit (war with Russia). The army cost the country £17,395,059; the navy, £19,654,585, and the ordnance, £10,411,544. The civil list, privy purse, the salaries of the royal household, and the payments of the queen's tradespeople included the sum total of £371.808."

PARLIAMENTARY PROCEEDINGS.

There was little in the session of 1856 to demand attention from the historian, except the debates upon the three great wars in which the nation was engaged. The wars with Russia and Persia excited party debates of long duration and fierce conflict. The war with China occurred too late in the year for parliamentary disputation, until the session of 1857. The terms of the peace agreed on at Paris with Russia caused very prolonged discussions, but in these, and in the opposition sustained in connection with the Persian war, the ministry was successful.

The differences with the United States afforded another opportunity for the parliamentary opposition to attack the government. A debate was opened by a motion, introduced by Mr. G. H. Moore, "a member of the Irish independent opposition," which was badly managed by the introducer and the parties who supported him; the government was victorious.

Education, especially in Ireland; life peerages; civil service appointments; the use of torture in India; law reform; difficulties in the execution of the treaty of Paris; the questions connected with the Isle of Serpents and Bulgrad, on the new Russo-Bessarabian frontier; the disposal of the Aland Islands conquered by the allies during the war in the Baltic; the Turkish firman in favour of the Christians in fulfilment of the treaty of Paris; annexation of Oude; and maritime international law,—were the subjects which engaged the attention of the members of both houses. The men who were most prominent in these debates were Lords Lyndhurst, Brougham, Campbell, Derby, and the Duke of Argyle in the lords; Lords Palmerston and Russell, Sir James Graham, Sir Charles Napier, and Benjamin Disraeli, in the commons.

The eventful year of 1856 commenced and closed in war. War with Russia and Persia existed at its commencement: war with China was waging at its close.

England, always victorious in the East, won there fresh laurels; always embroiled in India, she had made for herself fresh complications; always bold and enterprising in her industry, she had, in spite of war and warlike expenses, increased marvellously her prosperity, material resources, the comfort of her people, and the real conditions of her power.

CHAPTER LXIX.

{VICTORIA. 1857–1858}

Foreign Affairs..... European Treaties in alliance with France..... Difference with the United States of America..... War with China, to the conclusion of Peace in 1858..... Treaty with Japan effected by Lord Elgin in 1858..... Colonial..... Chinese Insurrection at Sarawak..... India: the Mutiny..... Home: General State of the Country; Monetary Panic..... Debate on the Chinese War..... Defeat of the Ministry..... General Election..... Marriage of the Princess Royal..... Parliamentary Proceeding's..... The Court..... Art-Treasures Exhibition, Manchester.

FOREIGN AFFAIRS: RELATIONS WITH FRANCE, AND WITH OTHER EUROPEAN POWERS THROUGH THE FRENCH ALLIANCE.

{A.D. 1857–1858}

The importance of the French alliance was acknowledged by all classes in England, but the maintenance of it was extremely difficult. The policy of the French emperor was considered capricious and dynastic, and not regulated by good faith and justice. His eagerness to create an alliance with Russia, at the expense of England, was obvious in every circumstance which brought the three powers into diplomatic connection. This was more especially the case as regarded the Danubian Principalities. On every question which arose in connection with those provinces of the Turkish empire, Russia fomented dispute between herself and Turkey, between the Porte and the Provinces, and between France and England. France fell in with the views of Russia, thwarted the Turkish government, bore herself affrontfully and dictatorially to the sultan, and peevishly and even menacingly towards England, by which nation the rights of Turkey were from the first consistently espoused. The boundary question was conducted so that it was difficult to believe that France and Russia had not conspired against the rights of Turkey and the policy of England, ostensibly to enforce which France made war upon the czar. Austria generally sympathized more with England than with France and Russia in these disputes, but no power could place confidence in the perfidious government of the kasir, any more than in that of the czar. Prussia showed neither justice nor magnanimity. Her policy was selfish and cowardly. Although the grandson of the King of Prussia was affianced to the Princess Royal of England, that circumstance made no difference in the pro-Russian sympathies of the king. He abetted Russia in all her designs. The Prussian people generally expressed disapprobation of the policy of the court, but did not show spirit or purpose to counteract it. On June the 19th, a treaty was signed at Paris, and ratified on the last day of the year, between Great Britain, Austria, France, Prussia, Russia, and Sardinia, relative to the frontier of Bessarabia, to the Isle of Serpents, and to the delta of the Danube. The policy of England, on the whole, triumphed in this treaty. The Swiss Canton of Neufchâtel, which appertained to the government of Prussia, revolted against that government. In consequence of that event, much diplomatic difficulty and discussion arose in Europe. The moderate plan of arrangement recommended by England influenced the decision of the contest in a manner satisfactory to the Swiss Confederation and the people of Neufchâtel. The

King of Prussia submitted to the arrangement ungraciously, and did much in sustaining a selfish policy, which was calculated to create a European war. At Paris, June 16, 1857, a treaty was signed, which settled these turbulent affairs. The parties to the treaty were Great Britain, France, Prussia, the Swiss Confederation, Austria, and Russia.

DIFFERENCE WITH THE UNITED STATES.

The “Clayton-Bulwer treaty” of 1850 was still the fruitful source of contention. It was hoped that the “Dallas Clarendon treaty” of 1856 would settle all disputes, but this hope was unsustained by events. The President of the United States recommended the abrogation of these treaties altogether, and the commencement _de novo_ by the diplomatists of the two nations of negotiations for a new settlement. The gist of the dispute lay within a small compass. Both governments had agreed to acquire no territory in Central America. England affirmed that such a stipulation fairly assumed that she was to retain possession of the territory and protectorate she already held and exercised. America denied the correctness of this interpretation; alleging that the idea entertained by the statesmen of the republic was, that neither power should hold any territory in Central America. The Americans declared that if England acquired or retained territory in Central America they also would acquire territory there, and the result must be a struggle between the two nations for dominion in Central America. Whereas if England renounced all territorial possession, the United States would concur in a mutual arrangement for the neutrality of the great transit way across the American continent between the Atlantic and Pacific. The proposal of the United States appeared to be the only practicable one to secure peace. The discussion, however, was maintained with much courtesy and resolution on both sides, and the dispute remained open.

CHINA—PROSECUTION OF THE WAR.

In the last chapter the British admiral was left awaiting reinforcements at the close of the year 1856.

On the 12th of January the British fired the western suburbs of Canton, which continued to burn for two days. So weak was the British force that it was obliged to drop down the river, and the squadron took up a position near Macao.

During the month of May, the English having been somewhat reinforced, Commodore Elliott conducted operations against Chinese war-junks up certain creeks of the Canton river with great success. In June Commodore Keppel directed similar operations with still greater success. The Chinese supposed the positions where their war-junks were sheltered were impregnable, and were astonished and terrified to find that the English stormed and silenced their batteries, and captured, sunk, or burned their war-junks with the utmost celerity. So difficult were the positions chosen by the enemy that the British, although securing a brilliant series of victories with extraordinary rapidity, suffered heavy loss.

While these events were proceeding, Lord Elgin was on his way as plenipotentiary to the Chinese emperor; he arrived at Hong-kong in July. On his way thither he touched at Singapore, where he received news of the Indian mutiny, and a request

from the governor-general of India to detach a portion of his force to assist in suppressing the mutiny then raging there. From Hong-kong Lord Elgin proceeded to India with the remainder of the troops, as the peril there admitted of no delay, while the Chinese dispute would allow of postponement. In the latter part of the autumn Lord Elgin returned to Hong-kong. In October a French squadron arrived to co-operate with the English, accompanied by Baron Gros, as the plenipotentiary of the French emperor. Count Puteatin arrived in the same capacity for the Emperor of Russia; and Mr. Reed represented the North-American republic. Both Russia and the American States were jealous of the combined influence of England and France, and showed rather a disposition to coalesce, in order to thwart the allied powers of Western Europe, while yet the representative of each of the two jealous nations was solicitous to make a treaty in the separate and even selfish interests of his country. England and France were desirous for the co-operation of all civilized powers to obtain a treaty in the interests of all, but this did not suit the policy of America, still less of Russia. France moreover displayed an eagerness to force some exclusive convention in favour of the Roman Catholic religion, in which the other powers had no interest, and which they felt to be invidious and improper. The French also, in their co-operation with the British, were avaricious of glory, and by their self-assertion, vanity, ambition, and ostentatious depreciation of everything not performed by themselves, offended the self-respect of the English, who were in far superior force.

It was December before active hostilities were renewed, Lord Elgin and Baron Gros having in vain pressed upon Governor Yeh their demands. On the 28th and 29th of December Canton was bombarded. The great city was on two sides enveloped in flame. The allies landed amidst the roar of the bombardment and the engirdling flames, escaladed certain defences, drove the Chinese into the city, and occupied with promptitude the strong positions from which the enemy was driven.

The appearance of matters in Canton was now very strange. The populace pursued their ordinary occupations; the Tartar army had abandoned the city and taken post in the country; while the authorities took no notice of the enemy, made no submission, sought no negotiation, and seemed to rely only on passive resistance. Thus the year 1857 ended, and the events of the Chinese war which transpired within it. It is however desirable, for the sake of consecutive narrative, to continue here the relation of this war to its close in 1858, notwithstanding the plan of the History gives a separate chapter to the incidents of each year.

On the 5th of January, 1858, detachments of troops penetrated into the city. The three most important persons in authority were captured—Yeh, the viceroy, or chief governor; Pehkwei, governor of the city; and Tseang Keun, the Tartar general. Yeh was sent a prisoner to Calcutta. The Tartar general was set at liberty, on condition of disbanding his troops; and the civic governor was ordered to continue his functions, subject to a military commission. This last arrangement did not work well, the Chinese governor continuing to elude the vigilance of the commission, and perform many hostile and even cruel acts. It is astonishing that with all their experience of the Chinese, the English should have expected any other result.

The Emperor of ‘China degraded Yeh, and appointed another governor of the province of Canton in his stead.

The allied plenipotentiaries opened communications with the emperor, and foolishly awaited a reply, which of course never came. The Russian ambassador encouraged the plan, and affected to participate,—he knew well that no answer would arrive, and probably used whatever influence he had to prevent its arrival. The wearied plenipotentiaries at last set sail for the Peiho, hoping, by the display of their power nearer the capital, to compel negotiations. The ambassadors arrived at the Peiho on the 14th April. They were received in a very flattering manner by the mandarins, who at the same time began to strengthen the defences of the river, so as to oppose the further progress of the fleet. According to the despatch of Admiral Seymour these defences “presented a formidable appearance.” The forts were ultimately attacked, silenced, and captured. The fleet proceeded up the river, and found junks, filled with combustibles, moored across with chains, but the enemy fled. The impediments were removed, and the fleet advanced to the city of Tien-sin, at the end of the grand canal. The city contained 300,000 inhabitants. The ambassadors landed under a flag of truce, and were courteously received, on the 29th May.

When the emperor learned the resistless progress of the forces of his enemies, he sent two commissioners, who alleged that they had full powers to treat for peace. They arrived on the 4th of June. They insisted on negotiating with the European plenipotentiaries separately, and first with the representative of England. On producing their credentials, and their commission, an insolent and haughty document was read delegating power to make peace with the barbarians, if the latter did not ask for anything contrary to Chinese custom, and Lord Elgin immediately retired from the conference. After various efforts to create delay, which were resisted by the plenipotentiaries, a treaty was signed to the following effect:—

Article 1. Confirmed the treaty of Nankin of 1842, and abrogated the supplementary treaty to that so named, and the general regulations of trade then agreed upon.

Art. 2. Agreed to the residence of ambassadors at the courts of the powers party to the treaty.

Art. 3. Guaranteed regulations for the residence of an English minister at Pekin.

Art. 4. Provided for the correspondence of the British minister at Pekin.

Art. 5. The ministers of the Emperor of China should transact business with the British minister at Pekin on terms of perfect equality.

Art. 6. Concedes to a minister of China in London the same privileges.

Art. 7. Permits consuls in the open ports of China.

Art. 8. The Christian religion, as professed by Roman Catholics and Protestants, to be protected by the Chinese government.

Art. 9. British subjects to travel, for pleasure or trade, into all parts of the empire with passports from their consuls, countersigned by the local authorities.

Art. 10. Regulations for trading ships.

Art. 11. Five more ports to be opened to foreign trade.

Art. 12. British subjects may purchase and hold landed property in China.

Art. 13. British subjects may employ Chinese subjects.

Art. 14. British subjects free to hire boats; the Chinese authorities free to punish smugglers.

Art. 15. British, authorities to decide upon all questions of rights and property between British subjects.

Art. 16. British offenders to be punished according to the laws of England; Chinese subjects to be punished according to the laws of China.

Art. 17. Settles the modes of procedure in case of offences.

Art. 18. Protection of the persons and goods of British subjects.

Thus apparently ended the war of 1856–7–8. Nothing remained but the ratification of the treaty, and the fulfilment of its stipulations, which the Chinese court never intended to perform.

JAPAN.

Lord Elgin resolved to proceed to Japan, and endeavour to open that jealously guarded country to foreign intercourse. He made for his excuse to enter the Japanese waters, that his queen authorized him to bear from her a present of a beautiful steam-yacht to the Emperor of Japan. It was on the 3rd of August, 1858, that Lord Elgin reached the capital of the Japanese empire; but the circumstance is related in this chapter to preserve a continuous account of his excellency’s important mission to the Eastern Seas. Lord Elgin’s mission was successful. A treaty substantially the same as that with China was formed, and the trade of that country opened to Europe. As in China, so in Japan, American and Russian jealousy played an unworthy and not altogether ineffectual part.

COLONIAL.

The general colonial interests of the United Kingdom were flourishing. Extensive reports were published this year by government, which showed that nearly all the colonies were making great and rapid strides on the road of material progress and prosperity.

SARAWAK.

The independent British settlement of Sarawak, in the island of Borneo, was exposed to imminent peril of utter destruction. Sir James Brooke, anxious to restore British influence in the Eastern Archipelago, which the policy of former governments of Great Britain had ignorantly and recklessly sacrificed to the Dutch, established at Sarawak an English settlement, upon which chivalrous attempt he expended a large private fortune, risked life in almost every form, and by undaunted courage, perseverance, energy, and talent, succeeded in his undertaking. The British

government, after recognising his position and fostering it, refused to accept its sovereignty for her majesty, or to adopt the means necessary either for forming Sarawak into a colony, or establishing there an ostensible and real protectorate. Sir James Brooke did great things for his country, and met with injustice, and as far as the government was concerned, ingratitude, in return. A concession of Sarawak having been made to him by the prince who had power to make it, the English government recognised him as rajah of the territory, but left him to his own resources, except as an occasional ship of war arrived, and joined with him in some gallant exploit to put down piracy in the neighbouring seas. In the industrial enterprises of the rajah, Chinese immigrants were encouraged to work the mines, and toil in other industrial pursuits. These persons rose in insurrection against the rajah, and brought on a terrible catastrophe of bloodshed and destruction. In waging the war of 1856–7, the Chinese government sent orders to its subjects, emigrants in British settlements, to hold themselves in readiness to obey the commands of their mandarins, and attack the British in those countries whenever summoned to do so. These commands were received with ready obedience, and consequently at Hong-kong, Australia, Singapore, and Sarawak, mischief was effected in proportion to the number and relative power of the Chinese. In Australia they could effect nothing except a few trivial but treacherous outrages, which incurred a barbarous retaliation. At Hong-kong the agitation, inconvenience, and danger of the English were very great. At Singapore a terrible outbreak was threatened and expected, but the energy and steadfastness of the English, their success in China, and the bloody defeat of the insurgents at Sarawak, deterred the Singapore Chinese from any combined and vigorous attempt. It would appear that batches of fresh immigrants arrived from Penang and Malacca, and brought orders from their mandarins to rise and attack the English. The Chinese population of Sarawak exceeded 5,000, about one-tenth being children, and perhaps a twentieth women. These settlers lived in communities, were very industrious and very prosperous; they were favoured by the English because of their plodding perseverance, and hard-working habits. They made no complaints, were treated kindly, and were apparently as happy as in their industrial pursuits they were successful. On the night of the 18th of February, marching in a body, the whole Chinese force of the settlement attacked the little capital, set fire to the houses, murdered several English and their servants, endeavoured to seize the person of the rajah, and succeeded in making the bishop captive, burning his valuable library, and committing every sort of depredation. They preserved the bishop unmolested, in the hope of using him, in case of defeat, to make better terms for themselves, or, in case of success, to induce him to act as their negotiator with foreign barbarians! The rajah, and most of the English settlers, escaped to the opposite side of the river, where they concealed themselves in various places adapted to their purpose, until a body of Dyaks (natives of the country) were gathered for their defence. A small British steamer opportunely entered the river, which, with the English residents and the Dyaks, attacked the Chinese, defeated them, slew three-fourths of the men, drove the rest into the interior, burned down their villages, and executed upon them a terrible vengeance. Sir James Brooke, with his usual energy and dexterity, repaired the disaster, and subjected future Chinese settlers to regulations which rendered rebellion too desperate for attempt.

INDIA.

The year 1857 will be ever memorable in the history of India. A mutiny, chiefly of the Bengal army, and a rebellion, chiefly in the Bengal provinces, disturbed the whole country from Cape Comorin to the Himalayehs, agitated deeply the British empire, and excited the attention and astonishment of the world. The progress of commerce, revenue, and prosperity in every form was of course interrupted. Nevertheless, during a portion of the year, and over a large area, the usual operations of trade were continued. While a brilliant career of material improvement and commercial advancement was developed by our Indian empire, the event burst forth which deluged the Bengal provinces, and Central India, with blood, and appalled the world. It is now our duty to give a brief record of that terrible event.

THE MUTINY.

In a previous chapter it was related, that at the close of the year 1856 symptoms of mutiny were exhibited in the Bengal army. At the beginning of 1857 these symptoms became demonstrative and terrible. It is difficult to say how far an acute and foreseeing government might have prevented the evil, but the last persons to observe the signs of the times, and provide against the rising calamity, were those in high authority. “There were,” wrote the editor of an Indian paper, “deep tokens of disaffection everywhere, suspicious looks and expressions daily heard in the bazaar, and a belief that all was not sound in the minds of Englishmen unconnected with the services. Every class, except the members of the governing body, was impressed with a foreboding of evil. No one, however, without the pale of authority dreamt of the magnitude of the dangers by which we were about to be assailed; and inside that potent circle not a soul had gained an inkling of the coming horrors. The ship of the state was struck by a white squall, with every sail set, and not a man at his post to warn the crew of their peril. On the 22nd of January, 1857, Captain Wright, of the 70th native infantry, brought to the notice of Major Bontein, commanding the depot of musketry at Dum-Dum, the fact that there was a mutinous spirit among the troops in connection with the greased cartridges.” From that date the conspiracy developed itself rapidly, but at no stage of its incipient progress did the government show sagacity in detecting the causes of the outbreak, or efficient means for its repression.

At Barrackpore and Berhampore indications of mutiny of a decisive nature were made. General Hearsey, who commanded at Barrackpore, gave the government explicit information, and foretold results. The government would not be warned.

A mutiny of the 19th regiment led to the disbanding of that corps. This regiment was by no means among the more disloyal sepoys; it had been seduced into acts of insubordination, and regretted it. There was, however, little discrimination on the part of the Calcutta authorities. Some corps attempted to murder their officers, and were treated with surprising leniency. General Anson, who commanded the forces in India, was at Simlah, where the military records also were, and much loss of time and great confusion resulted from the necessity of the government at Calcutta carrying on a correspondence, with so remote a station, on subjects of such vital moment. When at last the commander-in-chief became convinced of the danger that existed, he

hurried down to Umballah, and issued a conciliatory proclamation to the army, which had the effect of increasing the pride and self-importance of the sepoys.

Matters proceeded in this way until May, when the first grand effort of mutiny burst forth at Meerut. The sepoys suddenly arose there, attacked their officers, murdered some, and, having set fire to the cantonments, marched to Delhi. Major-general Hewett, who commanded the garrison, showed extraordinary weakness and vacillation, and took no prompt or vigorous measures to intercept the flight of the fugitives, or to pursue them. The mutiny occurred on Sunday evening, the 10th of May. The rabble of the neighbourhood joined the mutineers. Both the revolted sepoys and the insurgents showed a sanguinary delight in murdering women and children. As soon as the fugitive mutineers arrived at Delhi the whole city rose in insurrection; its garrison revolted, women and children were butchered, the ex-king of Delhi, a pensioner of the British government, was placed at the head of the revolution, and his sons were leaders in every act of barbarity and cowardice. The magazine was defended by a few officers and soldiers. Among them was Lieutenant Willoughby, who, when defence was no longer possible, blew up a large portion of the magazine, causing the death of a considerable number of the assailants, estimated, according to different testimonies, at from one to two thousand.

On the 18th of May the general at Meerut sent a despatch to say that he could not move his troops against Delhi, or for any operations in the field, _for want of carriage_. Such was the management of military affairs in India.

General Anson slowly collected a force at Umballah, and Sir John Lawrence sent Sikh troops from the Punjaub. General Anson died, and the command devolved upon General Barnard, who marched upon Delhi. It must not be supposed that Sir Henry Barnard, in his advance to Delhi, was unopposed. Whatever the sepoys may have been in British pay, in revolt they were energetic and persevering, and, as long as they entertained any hope of success, fought with keenness; as a loyal native in Delhi described them, “they were willing to take life, and willing to give their lives away.” It had been arranged, before General Anson’s death, that a brigade should advance from Umballah, under General Barnard, and that General Hewett, at Meerut, should order another brigade to advance from that station, the two forces to form a junction, and storm or lay siege to Delhi. In pursuance of this plan General Hewett placed a small body of troops under the command of Colonel Archdale Wilson, consisting of five hundred men of the 60th Royal Rifle regiment, two hundred of the carbineers, and one battery of artillery, to which a troop of horse-artillery was subsequently added. They marched on the 27th of May, and encamped on the 30th at Ghazeeoodeen Nuggur, a large Hindoo village on the left bank of the river Hindoun, eighteen miles east of Delhi. At that place there was a suspension bridge, the possession of which commanded the passage of the Hindoun from Meerut. Brigadier Wilson was attacked there by a force from Delhi, who hoped, by defeating the colonel, to prevent the junction of his forces with troops from Kurnoul. A battle ensued, the first of the war, as the previous struggles between mutineers and loyalists did not assume the form of a regular engagement. The rebels not only disputed the passage of the river, but opened a heavy cannonade with five guns from a well-chosen

position. Wilson brought all his troops into action. The rifles were very efficient, fighting in a mode similar to that afterwards attributed to the Turcos of the French army in the war in Italy. They rushed forward with great rapidity for short spaces, then falling flat on their faces, timing their intervals of movement by the play of the enemy's guns, which they watched skilfully. In this way they suffered exceedingly little in their advance, until at last springing upon the guns they captured them instantaneously, piercing the gunners with their sword bayonets. The sepoy infantry made a stand, but the rifles, in a hand to hand combat, were easy victors. The battle was decided in favour of the British; the sepoys fled, pursued by the carbineers, who continued the pursuit until night closed around conquerors and fugitives. The loss on the part of the English was eleven killed, and twenty-one wounded and missing. Of the killed five met their death by the explosion of a powder-waggon, fired by a desperate sepoy. Captain Andrews, of the Rifles, was one of those blown up.

On the 31st Colonel Courtance, of the carbineers, was actively employed watching strong reconnoitering parties of the enemy's horse, so that the brigade could not advance far on the left side of the river without another action. At one o'clock five thousand mutineers and irregulars took up a position on an elevated sweep of land. A battle of artillery ensued; the mutineers of the 3rd Bengal cavalry charged the English guns repeatedly, but were repulsed. After more than two hours, spent in a contest of this kind, Colonel Wilson ordered his line to advance, and the mutineers were routed. The English were too much exhausted by the heat to pursue: several men in all branches of the service dropped dead from sun-stroke. The rebels bore away their guns. The English lost twenty-four men; about half from sun-stroke. Lieutenant Perkins was among the slain; Captain Johnson, and Ensign Napier, among the wounded. The stubbornness of the mutineers led Colonel Wilson to maintain his position and await orders and reinforcements. On the 3rd of June he was joined by another company of the Royal York Rifle regiment, and by a battalion of Goorkhas. These troops remained faithful, for, although attached to the Brahminical religion, they are more superstitious than fanatical, and hold the sepoys, and even Sikhs, in contempt, while the British are objects of military admiration to them. On the 6th the brigade reached the rendezvous at Rhagput.

The force from Umballah left that place on the 24th of May, and readied Kurnaul on the 25th. Anson died on the 27th. In his last illness he confided the capture of' Delhi to General Barnard, and telegraphed to Lord Canning that he had done so, who confirmed the general in the command of the forces acting against Delhi. Before the command delegated to Barnard by Anson could be confirmed at Calcutta, General Reid, in virtue of seniority, became chief of the army, but he carried out the wish of General Anson in confiding the attack on Delhi to Sir. H. Barnard.

After various misunderstandings and serious delays on the part of Colonel Wilson, caused by the obstruction offered by the sepoys, and by taking a circuitous and difficult route, the two brigades met on the 6th of June, and on the 7th the whole force was re-organized near Delhi.

The brigades under both generals had been considerably augmented on the march. The officials took no steps for preventing disaster, but acted in the same way as in

England and elsewhere, that occasioned so much loss of life and reputation before Sebastopol. Sir H. Barnard found himself and all about him, upon whom in the first instance the duty devolved, bewildered, and incapable of combining, arranging, or devising expedients to supply governmental and commissary defects. The army before Delhi, on a small scale, for a time repeated the faults and follies of the army before Sebastopol. Those upon whom the army depended for intelligence, succour, and directions, gave no real aid, but created additional embarrassments. The time consumed in deciding anything was extraordinary, although in the early part of the siege the telegraphic wire lent all its aid between Agra and Calcutta. General Barnard found that he could not take Delhi by storm; a regular siege was therefore resorted to. Throughout the month of June a fierce conflict raged around the once proud capital of Hindostan. During July these conflicts were continued, and rendered fiercer by the arrival of large forces-of mutineers from Rohilcund. Mutiny was discovered in the camp of the besiegers. Sickness also smote the British, so that by the end of July there were 1,200 invalids in the little army. Battle and disease must have utterly wasted it had not Sir John Lawrence sent troops' and supplies, and with them the skilful and intrepid young General Nicholson. The sickness and ultimate decease of Sir Henry Barnard caused the demand to devolve on the senior general, Reid. His health also giving way, General Wilson, an excellent artillery officer, assumed the command.

Early in August the English made an effort to destroy the bridge of boats, by floating detonating machines, which was unsuccessful, and the mutineers continued to make it available for purposes hostile to the besiegers, and advantageous to themselves. On the 1st of August 5000 men made a sortie, if such, in the peculiar circumstances of the siege, it could be called. The Metcalf picket-house and the flag-staff tower became the objects of incessant attack. The sepoys, however, fought in vain. During August reinforcements for the rebels poured into the city of Delhi, from the various districts, far and near, where revolt had raged.

In the beginning of September the siege-train arrived, and strong reinforcements of troops; the sick and wounded then reached the number of 3000. A terrible bombardment was opened against the city on the 11th, which continued until the 14th, when the assault was ordered, and after desperate fighting it proved successful. It was not, however, destined to triumph on the first day. On all points but one the British were victorious. The attack on the western suburbs failed from the inefficiency of the Cashmere contingent, the bravery and number of the sepoys, and their contempt for the native force under Captain Dwyer's command. After a fearful conflict for possession of the Redghat, the whole attack on the western side was abandoned. The English held the posts won within the gates: the enemy showed unflinching resolution, and even threatened the English flanks and rear. Night closed over the sanguinary scene, the English having lost 8 officers killed, and 52 wounded; 162 English and 103 native soldiers killed; 512 English, and 310 natives wounded. The first and second columns held all the towers, bastions, and ramparts from the vicinity of the Cashmeregate to the Cabulgate; the third column and the reserve held the Cashmeregate, the English church, Skinner's house, the Water bastion, Ahmed Ali Khan's house, the college gardens, and many buildings and open spots in that part

of Delhi; while the fourth column, defeated in the western suburbs, had retreated to the camp or the ridge. It was not until the end of that the long and bloody succession of assaults ended in the total subjugation of the place, after deeds of slaughter seldom paralleled. The king and several members of his family escaped, but were pursued by Major Hodson, and captured under circumstances of extraordinary daring and presence of mind on the part of that officer.

The taking of Delhi was a deadly blow to the hopes of the rebels all over India.

The progress of the mutiny and its suppression in other directions must now be related. It was alleged that the King of Delhi was treated with extraordinary indulgence, reinstated in his palace, and was treated by the company's civil officers with even marks of homage. These reports were set at rest by a letter written to the brother of his captor, by Mrs. Hodson, the major's wife. The letter was deeply interesting, and depicted the ex-royal family as in a condition of abject ignorance and moral degradation.

The narrative of the siege of Delhi having been conducted to its close, it is necessary to show the occurrence of events taking place in other directions, which were contemporaneous with those which happened around and in the capital of the Mogul.

While the incidents just related passed in and around Meerut and Delhi, Scinde and the Punjaub were greatly agitated. Conspiracy to revolt and murder, similar to what had taken place elsewhere, were discovered in these two provinces. In both they were promptly and effectually suppressed. Scinde remained tranquil, after a few arrests and executions had been effected. In the Sikh districts Sir John Lawrence acted with extraordinary sagacity, management, vigour, and courage, putting down at once, and with a high hand, all attempts at mutiny or insurrection, so as to direct the great resources of the Punjaub to the assistance of the other provinces, and especially during the siege of Delhi. The services of that great man have never been sufficiently acknowledged by the British government.

In the presidencies of Bombay and Madras the army and people, with few exceptions, remained quiet, and to a considerable extent were loyal. In Central India the disturbance was universal, and the contingents of native princes burst into open hostility. The presidencies of Madras and Bombay were much endangered by this state of things, but "field forces" were organized in the presidencies, by which the rebel districts of Central India were penetrated from the south and west, until the revolt was crushed. The troops of Madras displayed more loyalty than those of Bombay. Some of the Bombay regiments mutinied, bringing upon themselves a swift and terrible punishment.

In the eastern districts of Bengal there were only the perturbations caused by the great earthquake of revolution, which had its centre far north and west. The disposition to insurrection in Assam and Chittagong was kept down by astonishingly weak forces. Along the Assam frontier a few troops sufficed to preserve tolerable quietude. A small detachment of British sailors, acting as infantry of the line, awed a vast region of eastern Bengal.

The native troops of the Bengal army, stationed on the eastern shores of the Bay of Bengal, showed the same disposition to revolt as upon the eastern land confines of that presidency; but the people of Pegu, Martaban, and the other provinces on the sea-coast, were loyal. The troops there were mostly European, and were moved up the bay to Calcutta, as occasion demanded and opportunity served.

In Lower Bengal the people were too unwarlike to aid the troops who mutinied.

Upper Bengal and the dominions which had been recently wrenched from the King of Oude, were the grand foci of mutiny and rebellion; although Jhansi, Delhi, and Meerut, were also centres of active revolt.

Agra, the queen of the upper provinces, suffered much. Mr. Colville acted with prudence, temper, and energy; but committed the general fault of the officials, civil and military, of placing too much confidence in the native troops.

Benares, the ecclesiastical capital of heathen India, was more loyal than any city in the disturbed regions. The protection afforded to the religious rites of the Brahmins in that city, and the security of pilgrims travelling to its far famed shrines, through the order enforced by British power, caused a respect for the English name and authority not only in the city of Benares, but throughout the province, which acted favourably to the preservation of order. The vigour of Brig.-gen. Neill, and the fear he inspired, had also much to do with these results.

Allahabad was the centre of many intrigues hostile to British power: the heroic little garrison of that place suffered much, and endured nobly and successfully until help arrived, and Brig.-gen. Neill quelled the power, if not the spirit, of rebellion all around.

Throughout Oude, comprising in the designation the provinces, whether of older or more recent date, which fell within the circle of that kingdom, the mutiny and rebellion were fiercest. Cawnpore was one of the great capitals of revolt. Situated near Bithoor, the residence of the infamous Nana Sahib, the principal chief of the insurrection, it suffered much, possibly more than any other place. “The Nana” collected all the force which his retainers and the people of his district could contribute, and with the mutineers of Cawnpore, and neighbouring garrisons, he attacked the British quartered in that city, who were under the command of the veteran hero, General Wheeler. In vain the little band of English were assailed; they remained unconquered by the multitudes of their enemies, and by famine and fatigue, until treachery secured their destruction. They were induced to capitulate, under promise of protection and safe escort. They were brutally and barbarously murdered by the bodyguards of Nana Sahib; women and children, as well as soldiers and civilians, were unpityingly consigned to a common slaughter, and their bodies cast into the well of Cawnpore. Since the mutiny, a memorandum upon the events connected with the Cawnpore mutiny and massacre has been prepared by Lieutenant-colonel Williams, military secretary to government in the north-western provinces:—“Forty-two depositions from persons of all classes and creeds—Christians, Mahomedans, and Hindoos—have been recorded, and valuable evidence obtained from respectable and influential residents in the city. These

depositions, together with the native journal of a city resident, have been translated, and relate the first attempts made by the Nana to tamper with the troops, his ready success, the earliest meeting held by the conspirators, and their proceedings on and subsequent to their mutiny, from the 1st of June to the advance of the British force in July. The evidence shows the Nana's brother, Bala Sahib, to have taken as (if not more) active and prominent a part as even the Nana himself. There are no traces of any conspiracy prior to the arrival of the Nana at Cawnpore, on the 22nd of May, 1857, with the two guns, and 300 horse and foot, for the avowed purpose of aiding in the maintenance of order. But about that time it would seem that two sowars, the one named Rahem Khan, of Bishenpore, near Bithoor, the other Muddut Alee, of Bancla, and in the service of the Nana, were employed by Bala Sahib to corrupt the fidelity of the troops. The 2nd Cavalry, already ripe for mutiny, needed but little persuasion." Among those who perished were the heroic General Wheeler and his heroine daughter.

In Lucknow, the capital of Oude, Sir Henry Lawrence (brother to Sir John) maintained a resolute defence, but was wounded in a sortie, and died of his wound. Colonel Inglis afterwards maintained the defence with true British obstinacy and intrepidity.

The time at last arrived when the tide of tumult and blood should be rolled back upon the mutinous garrisons and rebel cities in the southern parts of Upper Bengal, in Oude, and in Central India. Brig.-gen. Neill, of the Madras Fusiliers, having with detachments of his regiment been sent on to Allahabad, restored order and even tranquillity to that place, as related on a previous page. On the return to India of the portion of the expeditionary army of Persia, under General Havelock, that officer was sent on to Allahabad, and superseding Brig.-gen. Neill in the command, he marched at the head of what forces he could muster, about 2,000 men, to the relief of Cawnpore. He had to fight his way thither, displaying extraordinary valour and military genius. With his small force he conquered Cawnpore, and drove the rebel Nana to Bithoor; but, alas! the noble garrison of Wheeler was not relieved on the advance of Havelock: the Nana, driven to despair, perpetrated the wholesale murder which blackens the page of Indian history with the name of Cawnpore. Havelock resolved on tracking the murderer to his den: Bithoor was attacked, and the Nana beaten. Havelock ordered Neill to bring on all his forces from Allahabad that could possibly be spared, and that officer took the command of Cawnpore, where, as at Allahabad, he soon created order, and subjected to his stern and resolute rule all disaffection. He took terrible vengeance upon the captured mutineers and rebels. Havelock pressed onward to relieve the garrison at Lucknow. Battle after battle was fought, Havelock, with a handful of men, dispersing hosts. Never, in the history of English military glory, were such achievements performed by so few. Even the mighty deeds of Clive and Wellington in their Indian warfare were surpassed by Havelock in his extraordinary marches upon Lucknow. At last, his troops were so reduced by battle and sickness that he retired upon Cawnpore and awaited reinforcements. These arrived, and with them a superior officer, General Outram. That hero refused to deprive Havelock of his command, and acted as volunteer in Havelock's army. The garrison at Lucknow was relieved; provisions, medicine, money, and men were

conveyed to the city and the Alumbagh a strong place on the Cawnpore road, within four miles of Lucknow. So numerous was the enemy, that the relieving army, like that which it relieved, was hemmed in by a host of mutineers and rebel zemindars, with their retainers. It became necessary that another army should relieve Outram, Havelock, and Inglis. Sir Colin Campbell had been sent from England to bring the insurrection to a speedy termination, the supreme military authority having been committed to him.

The arrival of Sir Colin Campbell to take the command of the army was not hailed with so much satisfaction in India, as the event was regarded with confidence in England. Sir Colin, however, knew how things were managed by governors-general in India, and by officials at head-quarters. He therefore expected to find much confusion, embarrassment, and neglect. The chief military authority in India was supposed to be at Calcutta, but the records were at Simla, the sanitary station to which the commander-in-chief was wont to repair, and where in fact commanders-in-chief spent most of their time, having generally been very old and feeble men. Sir Colin set to work with indefatigable industry to gather up an intelligible and connected account of the military condition and resources of India, especially of the Bengal provinces. This was essential to any consecutive plan of operations, and in this work, and in other important preparations, his time was consumed, when every day’s delay, every hour’s hesitation, every act of procrastination or tardiness, was perilous beyond estimate.

At Calcutta, in their conveyance to the different spheres of action, or in the provision made for their comfort, our gallant army was not thought of, either by the officials at Calcutta, or by the government at home, with that wisdom, consideration, or generosity which befitted their merits, the occasion, or a great country. Sir Colin organized a system for the general suppression of the mutiny, and he himself advanced with a very inadequate force, for the second time, to effect the relief of the British garrison of Lucknow. This was achieved after battle and victory highly honourable to the British name. Sir Colin brought off the women and children, sick and wounded, leaving the cantonments and the neighbouring Alumbagh well garrisoned. General Wyndham had been left in command at Cawnpore. During the operations of the commander-in-chief at Lucknow, Wyndham was attacked by vast numbers of the enemy, and beaten. Sir Colin hastened to the rescue, and Cawnpore, after a sanguinary action, was saved. Reinforced, and with a plan of combined action by different forces from various directions, Sir Colin advanced upon Lucknow for its relief the third time. After regular approaches and bombardment, Lucknow was taken by storm; but to the discredit of the commander-in-chief and some of his superior officers, the rebels escaped, to make war and havoc elsewhere. General Havelock died of fatigue and exhaustion, regretted by all men, and leaving behind him an immortal fame.

Among the losses of British officers, caused by the efforts to relieve Lucknow, was the death of Brig.-gen. Neill, whose services had been so eminently valuable. A statue, by the sculptor Behnes, is to be erected to the memory of General Havelock, in Trafalgar Square. Brig.-gen. Neill has had this honour conferred upon his memory

in a most conspicuous manner. A magnificent colossal statue of the general has been ordered to be placed in the city of Madras. It has been executed by a sculptor, Matthew Noble, whose genius is as much an honour to his country as the heroic deeds of him whom that genius thus commemorates. The same great sculptor executed another statue of Neill, which has been erected in Ayr, the hero’s native place.

Sir Colin committed the following up of the enemy to Grant. He was as unsuccessful in this as he had been in preventing the escape of the rebels from Lucknow, and returned to head-quarters utterly baffled.

Rohilcund continued in arms; the great cities and towns, such as Bareilly, Shajehanpoor, and Moorshedabad, were in the hands of the rebels. Khan Bahadoor Khan ruled at Bareilly, and his force was not to be despised. It now became apparent to everybody how serious were the consequences of the bad generalship which allowed the rebels and mutineers to escape from Lucknow.

The plan of the commander-in-chief was now to scour the borders of the province with two columns, which, setting out in opposite directions, should meet at Bareilly, the capital where two of the Delhi princes had taken shelter with Bahadoor Khan. Brigadier Jones was ordered to advance from Roorkee, with what was designated the Roorkee field force, and to take a direction south-east. The other column was to leave Lucknow under Brigadier Walpole, and both columns were to form a junction at an appointed rendezvous. Walpole had experienced a severe reverse, but at last the different forces met before Bareilly. Again the commander-in-chief was victorious, and again permitted his beaten enemy to escape. After long and harassing operations, continued through the year 1858, Oude and Rohilcund were restored to order.

In Central India long-sustained and fierce conflicts followed brutal and cowardly massacres. General Rose crowned his name with many honours, having defeated Tantia Topie, the Rhani of Jhansi, and the rebel leaders, and sweeping with his avenging sword the revolted provinces of Central India. Nana Sahib, the Begum of Oude, and other leaders retreated through the jungles into Nepaul, where most of them perished of jungle fever, and many by the arms of Jung Bahadhoor, the Regent of Nepaul. It was not until 1859 that the traces of the great rebellion and mutiny were completely cleared away, and Lord Canning could pronounce India once more subject to the sceptre of England.

HOME.

The year 1857 began its course under circumstances favourable to the domestic peace and prosperity of the country. The mind of the public was directed towards the remission of taxes, and legal and social reform. The London clubs were more than usually active with political and party gossip at the opening of the year. Mr. Gladstone, and the Peel party of which he was the leader, kept the quidnuncs constantly busy as to probable parliamentary coalitions and party movements. The versatile gentleman, whom the Peelites delighted to honour, and who was also much in favour with the Manchester party, was supposed to be favourable to a coalition

between his followers and the Tories. An arrangement between Lord Derby and the Peelite financier was much talked of, and scandalized the country. Most persons in political circles outside the houses of parliament believed that such a combination would be too unpopular for either the Conservatives or the Gladstone section to accept. In and out of parliament it was asserted that should such an alliance be formed it would break up any conservative ministry, and throw Lord Derby out of power before he could consolidate, even if he should be able _pro tempore_ to obtain, a parliamentary majority. Such was the condition of feeling in England when the session of 1857 began. The close of the year was marked by commercial and monetary panic, wide-spread, and entailing disastrous results.

PARLIAMENT.

The first session was opened on the 3rd of February. Earl Grey in the lords, and Mr. Disraeli in the commons, opened the party campaign by assailing the foreign policy of the government; and Disraeli was alike caustic and unjust upon Lord Palmerston, scarcely avoiding personality, while inveighing against the public conduct of the veteran statesman.

One of the first subjects of a practical nature introduced to parliament was law reform, which the lord-chancellor brought forward. His lordship seldom gained the approbation of the house for his measures, and when he was successful it was always under circumstances which betrayed the weakness of his personal influence. Lord Cranworth was neither popular in the lords nor in the country, and was less so in his ostensible legal reforms than on any other subject. Politically he was the incubus of the ministry, although as a chancery judge, or at all events a chancery lawyer, he possessed reputation. Some improvements were effected during the session, but on the whole the country was disappointed, and this disappointment was chiefly occasioned by the incapacity, intellectual and administrative, of Lord Cranworth to deal with any comprehensive public measure.

Mr. Locke King introduced his motion for the extension of the county franchise to £10 householders. Lord John Russell and Sir James Graham advocated the measure, which they had previously so strenuously opposed. As this was obviously for the purpose of defeating the government, and gaining popularity for party purposes, the public gave them no credit for sincerity, and even expressed disapprobation. This measure was lost by the small majority of thirteen.

A committee of inquiry into the operation of the Bank Charter Act was, early in the session, nominated in the commons.

On the 13th of February the chancellor of the exchequer made his financial statement. Mr. Disraeli and Mr. Gladstone offered an unworthy party opposition to almost every item of the budget, but they were defeated by very large majorities. Lord John Russell appeared to advantage in these discussions, as he seconded the just and reasonable views of government, although it was well known that he was desirous of a coalition with the Peelites and the Manchester school to turn them out.

DEBATES ON THE CHINESE WAR-DEFEAT OF THE MINISTRY.

The grand party struggle in parliament took place upon the subject of the Chinese war. The opposition had previously made attempts, led by Lord Grey and Mr. Disraeli, to overturn the cabinet on the subject of the Persian war, but signally failed. Lord Derby proposed a vote of censure, in the lords, against Dr. Bowring, for his conduct at Canton, and the policy of the cabinet by which he was supported. The lords, by a considerable majority, upheld the government. Mr. Cobden made a motion in the commons similar to that made by Lord Derby in the House of Peers. The Peelites and the Manchester school coalesced, Lord John Russell, Mr. Roebuck, and other independent “members,” fell in with the coalition, and the government was beaten by a majority of sixteen. The ministry did not resign, but adopted the alternative of dissolving parliament.

PROROGATION AND DISSOLUTION.

On the 21st of March parliament was prorogued to the 30th of April. On the same day the dissolution took place, which was to test the opinion of the country for or against the ministry.

GENERAL ELECTION.

The election was attended with great excitement, and resulted in a great increase of members supporting the ministry. Many of the Manchester school were thrown out; not because of their economical philosophy, but because of their supposed readiness to sacrifice national honour and justice for the temporary and passing advantage of the manufacturing interest. Mr. Cobden lost the representation of the West Riding of York, Mr. Bright and Mr. Gibson lost that of Manchester, and the followers of these gentlemen fared no better than their chiefs.

REASSEMBLING OF PARLIAMENT.

On May 7th the houses resumed business. It was announced by the ministry that the Princess Royal was betrothed to Prince Frederick William of Prussia. The house made provision for the princess.

The abolition of “ministers’ money” in Ireland was accomplished, after a determined opposition by Mr. Disraeli in the commons, and the Earl of Derby in the lords. The tax so called was a source of heart-burning and contention in Ireland, a country afflicted by so many causes of social, political, and religious disputes, that it might be supposed parliament would have eagerly adopted any course to remove some of those occasions of discontent. The Derby-Disraeli opposition was overborne by large majorities, although the final struggle in the lords was ended by only a majority of seventeen.

Long and violent debates ensued on an attempt by Lord Palmerston to remove the ineligibility of Jews to sit in parliament. In the commons his lordship triumphed, but in the lords was defeated. Sir F. Thesiger in the commons and the Earls of Derby and Shaftesbury in the lords, were the leading opponents of the measure. The Jews were much excited by this defeat, and were, it was alleged, resolved to put forth their great wealth to agitate the question on an extended scale: the temper of the country would have been favourable to such an attempt.

Lord John Russell made another effort to obtain the admission of Jews, but failed. The exasperation felt by the Jewish community now reached a degree of great intensity, and the public sympathized with what was considered their wrongs. Much indignation was felt against certain Irish Roman Catholic members of parliament, who, in the supposed interests of their own church, opposed the emancipation of their Jewish brethren.

The remainder of the session was chiefly occupied by party squabbles, to the exclusion of useful and practical business. The opposition raised numerous debates on the Persian war, and the Indian mutiny, which were defeated. Mr. Disraeli signalized himself by much bitterness of invective, and the avowal of principles which when in office, previously and subsequently, he neither advocated nor acted upon. Some useful discussions upon military and legal questions took place, and a bill for facilitating divorce, in cases where that would be just and moral, was carried. On the 28th of August parliament was prorogued.

SUDDEN CONVENTION OF PARLIAMENT IN DECEMBER.

The assembling of parliament in December was rendered necessary by the terrible monetary panic which, originating in New York, extended to the continent of Europe, and the British Isles. The rate of discount was raised by the Bank of England to 10 per cent. That corporation applied to the government to relax the restrictions of the Bank Act of 1844. This was adopted by the government, and the convention of parliament on the 3rd of December was mainly to pass an act of indemnity.

Commercial law reform, Jewish disabilities, church questions, and the Indian mutiny, occupied the attention of the house until the close of 1857.

THE COURT.

On the 14th of April her majesty was safely delivered of a princess, her fifth daughter, and ninth child. The infant was baptized on the 16th of June. She was called Beatrice Mary Victoria Feodore. The sponsors were the Princess Royal, the Duchess of Kent, and Prince Frederick William of Prussia.

On the 5th of May, his Royal Highness Prince Albert opened the great exhibition of Art Treasures in Manchester.

On the 26th of June Prince Albert received the title of Prince Consort.

The 6th of August was signalized by a visit to the queen on the part of the Emperor and Empress of the French. The visit was paid at Osborne, and was generally believed to have been a political one, having for its object some agreement between the governments of England and France in reference to their general policy, which had for some time been so divergent.

Two ambassadors from Siam arrived in November, and attracted great notice.

The great event of the years 1857–8 to her majesty and the court was the marriage of the Princess Royal of England with the heir-presumptive to the Prussian throne. “A treaty” for this purpose was concluded between her majesty and the King of Prussia, which was signed at London on the 18th of January, 1857. The ratifications were

exchanged in London on 18th of January, 1858. The solemnization of the marriage subsequently took place in the chapel of St. James' Palace, exciting deep and universal interest among the people.

ART EXHIBITION IN MANCHESTER.

The exhibition in the Hyde Park Crystal Palace in 1851 suggested various other enterprises of a similar kind. Those of Paris and Dublin were especially brilliant. In Manchester, however, a plan was devised by which the glories of all those exhibitions were surpassed. The scheme was to gather the art treasures of the United Kingdom, and present them together before the public. A building suitable to the purpose was erected. It was not only not beautiful itself, but was exceedingly unsightly. It was, however, spacious, convenient, and so lighted as conduced to effect in an artistic display. The collection of productions was estimated, in money value, at six millions sterling. Amidst this glorious arrangement of works of genius, none probably attracted so much attention as those of MacDowell, the Irish sculptor. His _chef-d'ouvre_, the "Death of Virginia," occupied the centre of the exhibition, and in this advantageous position commanded extraordinary admiration. On the day of opening the Prince Consort inaugurated the auspicious occasion. Her majesty and many foreign princes afterwards visited it. All these rich trophies of genius were restored without injury to their owners, except a very valuable China vase, which was knocked down and broken.

CHAPTER LXX.

{VICTORIA. 1858–1859}

Foreign Affairs..... Various important transactions in Asia..... Breaking out of a new War with China..... Violation of treaty by Japan..... Russian designs upon that Empire..... Russian encroachments upon China..... French attempts at conquests in Cochin China..... France: Rivalry with England; irritating language of the French Press; ostensible alliance and co-operation with England; real jealousy and contravention of British interests and policy; dispute about a Ship Canal across the Isthmus of Suez; also concerning electric communication between England and France..... Commercial intercourse..... Supposed designs of France in Northern Africa..... Attempt to Assassinate the Emperor of the French, and effect upon the alliance with England..... War between France and Austria, and its influence upon English public opinion and policy..... Naples..... Prussia: closer alliance with England..... Spain: war with Morocco; English protests..... Hanover: the Stade dues..... United States of America..... Relations with the South American States..... Colonies: India, Borneo, Australia, New Zealand, African Settlements, British Colombia, Jamaica..... Ireland..... Home: the Court, National Finance, Commerce..... General Home Polities and Prospects..... Parliamentary Affairs..... Conclusion of this History.

FOREIGN AFFAIRS.—CHINA AND JAPAN.

{A.D. 1858–1859}

The foreign transactions of 1858 have been partly related in the last chapter; the conclusion of a peace with China, which was hailed with great satisfaction in Europe, was among those transactions. After the peace a work was published by Mr. Laurence Oliphant, who held a position on the civil staff of Lord Elgin, relating the events of the war. Mr. Oliphant had been distinguished as a traveller and writer, and his work upon the mission of Lord Elgin to the Eastern seas naturally excited very great attention. In that work it transpired that Sir Michael Seymour, the admiral commanding the British fleet in the Chinese waters, did not heartily co-operate with Lord Elgin. The admiral disapproved, or affected to disapprove, of the actively hostile proceedings of Lord Elgin. He was for carrying on the war by blockades and compromises, after the fashion desired by certain merchants in China and in England connected with the Chinese trade, who did not wish China thoroughly opened to all nations, or to all English merchants, and who desired to go on much in the old way—dealing and quarrelling with the Chinese alternately, enduring all insults except personal oppressions, the plunder of property, and the stoppage of trade; so that a restricted intercourse with the Chinese might continue available to these merchants, already in the trade and experienced in Chinese intrigue, but calculated to deter others from entering a field of commerce so hazardous and uncertain. With this British merchant-clique the Manchester party in England sympathized. This at first seemed inconsistent with the principles of that party, which involved free trade with all nations. The system adopted in China, however, was believed by many of the party to work well enough for the trade of Manchester. Many of that school, who did not think so, believed that a Chinese war would prove so expensive, and inflame the minds of the Chinese so much, that on the whole it was better to patch up a peace any how, or endure a troublesome peace, rather than have open hostilities. The general conviction in Lancashire that a war anywhere, great or small, was injurious to the trade of the district, had much to do with the inveterate objection of the northern politicians to a Chinese war. A considerable number of influential persons, in the middle and northern counties of England especially, adopted the peace principles as a religious dogma. They held that war, under any circumstance, for whatever purpose, offensive or defensive, was a sin, and they deemed it their duty to oppose whatever government went to war. On a vote connected with the Chinese war the government of Lord Palmerston was defeated, by a combination of the tory and the Manchester parties: the latter, acting conscientiously as opposed to war; the former, taking a party advantage of the situation, and voting against the government for doing what, in office, they would do themselves. These two parties were strengthened by Lord John Russell, then in opposition, and a small section of Whigs led by him, who, in a spirit as factious and still less honourable, joined the great conservative party to throw out the Palmerston ministry. Sir J. Pakington, a determined Tory, became first lord of the admiralty, and the other lords were of course of the same party, they had come into office by a vote adverse to the Chinese war and to the Palmerston government for lending any sanction to it.

When Admiral Sir Michael Seymour learned these facts, he thwarted Lord Elgin as much as he could in the naval operations, especially in the Peiho. This Lord Elgin and Mr. Oliphant declared; and the admiral admitted that his slowness to cany out the plenipotentiary's requisitions arose partly from disapproval of the policy that functionary was sent out to enforce. In fact, Sir Michael knew that he would be backed by a tory admiralty, at the head of which was such a thorough-going party man as Sir J. Pakington, in adopting their policy, and thwarting a whig plenipotentiary. Sir Michael judged correctly; his very bad conduct was pronounced exemplary by the admiralty, and the queen's plenipotentiary was hindered and affronted with impunity. That was not the first time a British admiral acted similarly, very much to the injury and peril of his country. In the history of the British empire in the East there are various exemplifications of admirals setting at defiance or impeding the authorities which they were bound in duty to obey.

The work of Lord Elgin was not destined to prove stable in China. The treaty was broken when the English minister, the Honourable Mr. Bruce—sent to Pekin for its ratification—appeared in the Peiho. Fortifications had been thrown up; the approach of the English and French envoys refused; their escorts were attacked; and after a desperate effort on the part of the small allied squadron to force its way up the Peiho, it was beaten back with terrible slaughter, by a large Tartar army defending the fortified obstructions raised against its progress. The British admiral, Hope, after displaying extraordinary gallantry, was terribly wounded. The allied French and English withdrew, and awaited reinforcements and the further orders of their governments. Those governments resolved to enforce the treaty, and conquer a passage to Pekin. Large forces, comparatively with those of former expeditions against the Chinese, were sent forth, and such was the attitude of affairs when the period to which this History is conducted closed.

The treaty of Lord Elgin with the Emperor of Japan did not work so smoothly as was expected, any more than that with China. The ratification of the treaty, was effected on the 11th of July, 1858; soon after, the Japanese government attempted to evade it by seeking to confine foreigners to a small island about ten miles from Yeddo, and to establish the same sort of _surveillance_ over them as they formerly exercised at the Dutch settlement of Décima. They further sought to establish a new coin as the only one to be used in commercial dealings with foreigners, but at the same time forbidding its currency among the natives, so that all payments in the new coin would have to be exchanged at the government treasury for the old itzabon; and the relative values fixed by the government produced a depreciation of 66 per cent, on foreign coins, which, according to treaty, were to be received at their intrinsic value as metal. Mr. Alcock, the British consul-general, issued a protest, and stopped the trade. The calm and firm attitude he assumed had the desired effect. Soon after, a variety of dishonest and extraordinarily scandalous practices on the part of the British traders exasperated the Japanese people and government. The interference of the English consul to restrain the nefarious practices of his countrymen, and maintain the character of his country, restored matters to a peaceful aspect.

It is remarkable, that during the state of things recorded in the foregoing chapters, of British relations with China and Japan, that a large trade took place. The following is taken from an issue of the _Chinese Telegraph_ at the close of 1859:—

“The aggregate amount of our trade with China, imports and exports, including those of India, in 1857, reached £22,122,469, although there was a cessation of the tea trade with Canton. Last year, even with the effects of the commercial panic of the previous year, and the stoppage of Canton trade, the aggregate commerce with China, British and Indian, was over £20,000,000, exclusive of any colonial trade, Australian, or with the Archipelago. In 1833, the declared value of the British manufactures exported to China was only £630,578; in 1840 it was as low as £524,198; and at the close of the war of 1842 it stood at £969,381. In a few years after the opening of the five new ports to foreign commerce, the value of British goods shipped had increased fully 50 per cent., while it has now nearly tripled in value.

“The import and consumption of tea in this country has more than doubled since the consular ports were thrown open. So also with silk. As we have formerly shown, the demand has been extensive, and China can supply enormous quantities. From a trivial export, silk has become the second great staple of shipment. Although our imports from China have hitherto consisted chiefly of three or four principal staples, there is no reason, looking at the extensive resources of that vast empire, why they should continue so restricted. Something has even been done of late years in this respect. Chinese wool has come in to some extent, having risen in some years to half a million of pounds; although, from its harsh quality, and mixed and dirty character, it is only fitted for coarse woollens, yet it is saleable at low prices. There are other drugs, besides camphor, rhubarb, and essential oils to be obtained thence. A demand has sprung up for sugar, and we can draw supplies from China as well as from Manilla. There are other spices too, besides cassia lignea, to be procured from China.

“In addition to the exports to Great Britain, China exports tea, silk, drugs, and sundries to the continent of Europe, North and South America, Australia, New Zealand, India, and the various settlements of the Eastern Archipelago. The Indian trade has now reached about £10,000,000 in value, one article, opium, constituting the chief export; and this, since the recent treaty, had increased in value by upwards of £1,500,000. The shipments of cotton from India to China would seem to be declining. Whether this arises from a greater demand from England, an increased home production in China, or the internal rebellion, we are not prepared to state. The American imports from China, since the opening of the five ports, have more than doubled in value.

“The British interest in the indirect trade is also worthy of notice. In addition to the large balance against us on the direct trade, we have to provide for that created by the excess of value in exports to Australia, America, &c, all of which are paid for by bills drawn on London. We may except a small portion remitted direct by Australia in gold. India forms the only exception. Her exports amount to over nine millions, while the imports are under one million. In this way we settle, indirectly, the balance of trade.”

The commerce with Japan was too imperfectly organized at the period when this History closes to afford reliable statistics. It was, however, considerable, especially in mineral productions. Gold, silver, copper, and iron abounded; and as the Portuguese and Dutch in former days enriched themselves by importing the precious metals from Japan, so it promised, in 1859, to be the Ophir of the Eastern seas, if not of the world. The war with China, and the opening of commercial relations with Japan, were not the only matters of interest in the relations of England to these countries. Russia opened a negotiation with the Japanese emperor, for the cession of a position upon a small island, which there was no doubt in England was intended as a _point d'appui_ for Russian aggression. In China the same power made prodigious inroads, and it was believed in Great Britain and in India, that Russian agents and Russian material of war contributed to the defeat of Admiral Hope and his French allies in the Peiho.

The following communication from St. Petersburg contains interesting details relative to the extension of the Russian dominions in Asia:—"I have received an interesting letter from the harbour of Weg-Chaz-Weg, in the Yellow Sea, dated the 13th of July, 1858. It announces that Count Mouravieff Amoorski arrived there that day on board the steamer _America_, coming from Japan and Corea, to visit the coast of China. The port is in the neighbourhood of the Gulf of Pechelee. Colonel Boudgoski, chief of the commission for fixing the boundaries between the Russian possessions in Mantchouria and the celestial empire, is going to Pekin to obtain the approbation and definitive confirmation of the new limits of Russia in Asia. According to the new line, the entire coast of Mantchouria, on the Yellow Sea, and all that part of the country not hitherto claimed by any power, becomes a Russian possession. The territory acquired by the last treaty with China is thus considerably increased. All the southern part of the coast near Corea—that is to say, all under the same latitude as the Caucasian provinces, is supplied with a considerable number of excellent harbours. In fact, in no other country in the world is there to be found so many good harbours so near to each other; in fine, it is difficult to decide which is the best. The famous port of Sebastopol, and the Golden Horn in the Bosphorus, are inferior as compared with these bays and ports. The land on the borders of the coast is covered with virgin forests, in which are to be found oaktrees of nine feet in diameter. The writer of the letter adds that the sight of this gigantic vegetation filled him with amazement. It is expected that this newly-acquired territory will become of immense importance, the forests being situate so near such magnificent harbours. The labyrinth of bays, harbours, and islands is called the Gulf of Peter the Great, and the best port is named Vladiwosjok (Dominator of the East), because it is the cradle of the Russian fleet in the Pacific Ocean, and the commencement of Russian domination in the East. This letter was received at St. Petersburg through Pekin, and thence by a Chinese courier through Mongolia and Kiachta. This gives an idea of the celerity with which communications are transmitted between St. Petersburg, Pekin, and the Gulf of Pechelee."

France had also designs of Oriental empire, which, however awkwardly prosecuted, had never been abandoned. Her efforts during 1857–8–9, in Cochin China, to establish a position there and make acquisitions of territory, were expensive and persevering, although not attended with the success which English and Russian

enterprise has so generally secured.

FRANCE.

England and France were ostensible allies during the period of which we now write; but there existed a mutual jealousy, certainly provoked by France, which seemed to regard rivalry with England as the grand object of her political mission. The emperor made great efforts to bring up the revenues of France to a standard that would enable him to undertake all the schemes of his ambition. The actual results in that part of his labours were as follows, taking the statement of the government official organ, the _Moniteur_:—"The general revenue for the year 1858–9 amounted to 1,094,614,000 fr., being an increase of 2,916,000 fr. on 1857–8. The items which show an improvement are: import duty on foreign sugar, 12,020,000 fr.; duty on potable liquors, 8,439,000 fr.; postage, 3,462,000 fr.; sundry duties and receipts, 2,864,000 fr.; import duty on sundry merchandize, 2,697,000 fr.; salt duties, 1,496,000 fr.; sale of tobacco, 1,471,000 fr.; import duty on corn, 577,000 fr.; navigation dues, 557,000 fr.; stamp duties, 521,000 fr.; customs' export duties, 425,000 fr.; money orders, 185,000 fr.; transit charge on foreign letters, 26,000 fr. Those which have fallen off are registration duties, 15,036,000 fr.; duty on beetroot sugar, 6,286,000 fr.; sundry customs' receipts, 1,489,000 fr.; sale of gunpowder, 597,000 fr. The increase of revenue in 1859, as compared with 1857, was 41,931,000 fr."

These returns were no doubt coloured, as French official reports generally are; but, if correct, showed that the financial resources of France were far inferior to those of England.

A variety of irritating topics were got up in France, and continued to be so discussed in the press, with the connivance of the French government, that the minds of the people of both countries became inflamed with anger, and a disposition to adjust differences of opinion and policy by the sword, eagerly advocated by the French, was reluctantly adopted by the English. The French emperor, finding that the English alliance had again become indispensable to him, silenced the aspersers of his ally, or directed the same journals to uphold the alliance they had so bitterly and pertinaciously decried. The creation of a ship-canal across the isthmus of Suez was one of the most popular themes of French vituperation. A French company desired to carry out this object, or at all events to gain _grants of territory in Egypt_ for that ostensible purpose. The demands made for territorial concession upon the pasha would have given the French government in Egypt a hold upon that country subversive of its independence, and of the rights of the Porte, most menacing to British rule in India, and dangerous to Europe. Even if the scheme for the ship-canal were never executed, no one doubted that France would make use of the territory granted for that purpose to consolidate power in Egypt, England successfully opposed the concession to a French company of any portion of the Egyptian territory. Russia, Austria, and Prussia, from jealousy of England, and especially of her Eastern dominions and marvellous commercial prosperity, aided France in her efforts to induce the sultan to comply with her requests. The policy of England on this subject was still in the ascendant at Constantinople when the session of the British

parliament rose in 1859.

Electric communication between England and France formed another subject of difference. The French government was anxious, for its own political purposes, to give exclusive advantages to a particular company; the English government communicated its wish to throw open to competition such undertakings. France pretended acquiescence at one time and indifference at another, but at length, in harmony with the emperor's usual mode of acting, he suddenly granted a thirty years' monopoly to the company which, for the reasons referred to, he all along secretly or openly favoured. During the latter part of 1859, the British government made efforts to induce that of France to slacken the restrictive commercial system which it had favoured. At a later period, a treaty was made with such object, through the intervention of Lord Cowley and Mr. Cobden on the part of England.

A war broke out between Morocco and Spain, which England used great exertions to prevent, but which France not only encouraged but instigated. The British government protested against Spain conquering territory, and occupying strongholds on the African coasts opposite to Gibraltar. So far as France was concerned in this war she betrayed a desire that Spain should do what England was interested in preventing; the French knowing that they could, from their own conquests in Africa, drive out the Spaniards when they pleased, while the two nations united in holding positions of strength in Africa, might countervail the power in the Mediterranean which England derived from Gibraltar.

On the 12th of January an attempt was made to assassinate the Emperor of the French, while in his carriage proceeding to the opera. The plot was concocted by an Italian refugee, named Orsini, who was aided by others, especially three Italians, named Rudio, Pierri, and Gomez. The instruments of murder were shells, so made as to be thrown by the hand, and detonate when coming in contact with any hard substance. These shells had been manufactured in Birmingham, where Orsini, and some of his companions, had temporarily resided. This circumstance inflamed the mind of the French emperor and the French army against England. The latter presented addresses to his majesty, from various corps, denouncing England as the asylum of conspirators, and a den of assassins; and denominating the English people as the confederates and encouragers of conspirators and assassins. Offers were made by some of the corps of the French army to invade England, and drag from "the assassins' den" the conspirators. These inflammatory addresses were well received at the Tuileries, and answers given which were not respectful to England. These proceedings in France were followed up by addresses from the senate, in which foreign governments were called upon, in a dictatorial and insolent tone, to make their laws against refugees more stringent. These addresses, and the way in which the French emperor received them, produced a great ferment in all the free countries of the world, and the people of England were stung to the quick. The English government, however, bore tamely these insults. An affrontful despatch, through the French ambassador, made a climax to the haughty proceedings of France, and the mode in which the government received it was so time-serving and timid in the eyes of the English people, that the popularity of the Palmerston administration was

destroyed. That administration had been restored to power with increased popularity, as well as a large majority, upon the dissolution caused by the defeat of the previous year on the Chinese question, but the timidity shown in dealing with the insolence of the French ambassador, army, emperor, press, and people, deprived it of all weight in the country. The defeat and resignation of the English ministry resulted from this feeling. The general tone of the French government, however, became modified by the strength of will shown on the part of the English people, united with their unmistakable abhorrence of the crime which led to the bad feeling—at all events the immediate bad feeling—between the two countries. The emperor made such acknowledgments to the British government as amounted to an apology, and the mind of the people became quieted on the subject, especially as the ministry was, for its pusillanimity, hurled from power. Still, during the whole of 1858, although the ostensible alliance was never broken, there existed no good will towards England on the part of France, and no confidence in the peaceful disposition of France and its emperor either to England or any other power pervaded the public opinion of Britain. The suspicions of the English people were verified in 1859. On the first day of that year, at a reception in Paris, the emperor lectured the Austrian ambassador in a manner insulting to the sovereign he represented, and which portended war. The Austrian dominion in Italy was harsh, bigoted, and unjust. The Germans, always so invidious in pride of race, were so in Italy to a degree which goaded the Italians to desperation. The Austrians at last violated the Sardinian territory, and France declared war. The French and Italians, allies in a short campaign, drove the Austrians, with terrible slaughter out of Lombardy, and all their Italian provinces except Venice. The French emperor made peace as suddenly as he had made war. A convention at Villa-franca, followed by a conference and treaty at Zurich, settled the affairs of Italy, as far as the two emperors were concerned. The Italian people were not, however, parties to the treaty, and would not be bound by it. They determined upon annexation to Piedmont, whereas the emperor resolved to restore the Italian duchies to the sovereigns. Events may here be anticipated, so far as to say that the diplomatic interposition of England was used in favour of the Italian people, and influenced France in favour of a policy less concessive to Austria. Throughout the period 1858–9, the firmness and good sense of the people of England, acting decisively upon their government, ensured peace with France, which the intemperance, intrigue, and arrogance of our ally made it difficult to preserve.

NAPLES.

For many years the intercourse between the governments of her majesty and the King of Naples were unsatisfactory, for the reasons assigned in previous chapters. During the period included in this chapter, Naples was in a very disturbed state, and the people of Italy were desirous to aid their brethren of that kingdom in bringing about a revolution. A ship, called _Cagliari_, the property of Sardinian subjects, was engaged, ostensibly for other purposes but really to land a small force in Naples, with supplies of arms and munitions of war, and precipitate a revolution. The captain of the ship was a Sardinian, and ignorant of the plot. The engineers were Englishmen, and also ignorant of the plot. The conspirators seized the ship, and compelled the captain and engineers to direct the vessel to Naples. The government of that country

had information of the design, and sent a war vessel to intercept that on board of which the conspirators were. The capture was effected. The Sardinian captain and British engineers, although obviously innocent, were subjected to cruel injuries and indignities. The Sardinian government interposed, but was not in a condition to enforce its rights. Lord Palmerston’s cabinet neglected the claims of the British subjects so injured, except by empty and futile remonstrances. When that cabinet was thrown out for its timid policy towards France, on the refugee question, the government of Lord Derby took the matter up with energy, and Lord Malmesbury, then foreign secretary, adopted a tone as bold and as English, as his conduct in the case of Mr. Mather, in Tuscany, some years before, was incompetent and cowardly. The threat of force by the English government secured the restoration of the unjustly imprisoned English, and some measure of compensation. This circumstance gave weight to the government of Lord Derby, both at home and abroad.

PRUSSIA.

On the 20th of January the Princess Royal of England was married to the eldest son of the Crown Prince of Prussia. For a time this increased the influence abroad both of England and Prussia, and the two nations seemed to be very firmly allied. After a short time, Prussia relapsed into her old pro-Russian sympathies, and lost all popularity in England. The marriage of the heir-presumptive of the Prussian throne and the Princess Royal of England caused great festivities, both in London and Berlin, in January, and gave satisfaction to the freer nations of the Continent.

SPAIN.

During the years 1858–9 a feeling sprang up in Spain hostile to England. This was partly attributable to France, which, in every direction, professing alliance with England, endeavoured to foster jealousies and enmities against her. Partly the feeling arose from the demands of the English government for the payment of a debt due by that of Spain ever since war between Don Carlos and Christina. Nearly half a million sterling was then advanced by England to aid the cause of the Spanish queen. The queen and her government, while indulging in the most reckless extravagance, were unwilling to pay.

In 1859 Spain went to war with Morocco, on grounds which England did not deem sufficient, and projects of territorial aggrandizement were suspected as actuating the Spanish administration. England could not allow Spain to erect a fortress opposite to Gibraltar, on the Straits, and such was believed throughout Europe to be the real object of the Spanish minister. France was solicitous to weaken the power of the Moorish empire, and so promote her own designs of encroachment. A Spanish war was favourable to such an object. It would also be practicable for the French, at any time, to expel the Spaniards, and seize upon their positions, and hold a point as powerful for the command of the Straits of Gibraltar as the rock itself. The policy of France was anti-English and anti-Spanish throughout, although O’Donnel, the Spanish minister, regarded it as advantageous to Spain. The demand by England for repayment to her of the loan so long due by Spain, at such juncture, was interpreted by the Spanish government and people as an act of hostility; and the press of Paris,

with the connivance of the imperial government, kept up, and, to a great extent, created the opinion. The _modus operandi_ of the English government was, however, so conciliatory, yet firm, as to force respect from the cabinet of Madrid, and evoke assurances which were satisfactory, although few in England believed them sincere.

HANOVER.

The Hanoverian government had levied for a long time, at the mouth of the Elbe, certain monies, called “Stade dues.” This excited much complaint amongst English merchants, and led to an investigation in the English house of commons, in 1858, of the claims put forward by Hanover to such exactions. The committee of the commons reported that the imposts were injurious to British trade, and that Hanover rendered no return. This led to negotiations which, after much tedious diplomacy, ended in the extinction of the rates thus levied upon British ships.

THE UNITED STATES OF AMERICA.

The opening paragraphs of the message of the President of the United States contained the following statements, which were as just and true as they were remarkable, coming from that source:—

“It has been the misfortune of both countries, ever since the period of the revolution, to have been annoyed by a series of irritating and dangerous questions threatening their friendly relations. This has partly prevented the full development of those feelings of mutual friendship between the peoples of the two countries, so natural in themselves, and so conducive to their common interest. Any serious interruption to the commerce between the United States and Great Britain would be equally injurious to both. In fact no two nations ever existed on the face of the earth which could do one another so much good and so much harm.”

The year 1858 terminated one of the questions thus referred to by the president—“the right of search.” It was settled, as all questions between England and the United States have been, by concession on the part of the former. English ships of war were, on no pretence, in time of peace, to board, or detain, the American commercial marine on any pretence whatever.

SOUTH AMERICAN STATES.

COLONIES.—INDIA.

The colonies of Great Britain, stretching over so large a portion of the globe, could not fail to attract the attention of the people and government of the British empire. The most important of all these territorial acquisitions was India. The extinction of the mutiny and revolt in the Bengal provinces of that country was related in a previous chapter. It is here necessary to point out the issue of that mighty struggle. The political power of the East India Company was abolished by an act of the imperial parliament, and the government of India vested solely in the crown. Her majesty was proclaimed Empress of India, throughout all its provinces, to the amazement of princes and peoples, with the mute submission of many, and the joyful acclamations of more.

A letter from Calcutta, in the August of 1859, thus reported:—

“Our trade returns, up to the 1st May, 1859, have just been published. They show an increase of about a million:

Year. Imports. Exports. Total.

1858–9 15,46,49,766 15,25,67,555 30,72,17,321

This total includes treasure, but the chief increase is in merchandize, especially the following articles:—

Increase.

Cotton..... 10,37,928 Rs.

Haberdashery..... 8,18,318

Hardware..... 5,99,185

Copper..... 6,51,599

White and grey cottons..... 1,7228,679

Ale..... 15,00,821

Twist..... 31,20,698

The commerce of England and her friendly relations with several of the South American States were much developed during the period to which this chapter refers, although with other portions of that vast region it was impossible to hold any intercourse, so riven were they by faction, oppression, and civil war. With Brazil the commercial connections of England were important, and the amity of the two states assured. Chili, Peru, and Panama dealt largely with the European western nations, and should the liberal party in those countries succeed in checking the encroachments of the priests, it is obvious that a much further development of commercial intercourse would take place.

Showing a new trade of £2,000,000 sterling with Manchester alone.

“In exports, the great fluctuations have been in—

Increase.

Silks..... 10,26,928 Rs.

Opium..... 42,85,474

Sugar 38,63,928

Jute..... 21.49,089

Linseed 20,81,914

Mustard seed..... 14,84,683

“The exportation of rice has decreased by half a million sterling. The increase in the import of Manchester goods will not be so rapid this year, the market showing

some signs of a glut. The import of silver has been twenty-six millions in five years!”

Such a condition of commercial development and prosperity, during a period of terrible contest, is one of the most marvellous of modern historical facts. The progress of railways was, if possible, more surprising as to the development of the material resources and aptitudes of India at such a period. The condition of material prosperity shown by India, in spite of the sanguinary sepoy revolt, was scarcely more encouraging than the reports of the way in which the finance of India passed through the terrible convulsion.

THE AUSTRALIAN COLONIES.

South Australia.—The extraordinarily rapid progress to wealth, power, and importance of the Australian colonies was one of the great wonders of the age. The following account of the condition of South Australia, in 1859, is full of interest to every patriot and every friend of human progress:—“The population was estimated at upwards of 120,000, and the total immigration, from the 1st of January to the 8th of October, had been 3,881. There had been an emigration, however, to the extent of 2,139 persons, leaving a balance in favour of immigration of 1,742, comprising 917 male adults, 579 female adults, 101 male children, and 145 female children. The average number of destitute persons relieved at the public expense in the three months ending the 27th of September was 756. The extent of crown lands sold, from the 1st of January to the 13th of October was 113,731 acres, which realized £150,616—an amount and acreage below the average of former years. The earnings of the government railways—from Adelaide to Port Adelaide, and from Adelaide to Gawler Town—amounted to £37,205 in the first 41 weeks of the present year, being an increase of £1,340 as compared with the corresponding period of 1858. There are 254 permanent ecclesiastical buildings in the colony, besides 104 dwelling-houses and places temporarily used for religious worship; sittings are thus provided for 51,831 persons, and the average congregations are estimated at 41,000. The Wesleyan Methodists provided 16,261 sittings; the Church of England, 6,335 sittings; the Roman Catholics, 4,790 sittings; and the Congregationalists, 6,051 sittings. The remainder were supplied by other denominations too numerous to particularize; but it may be added that the German Lutherans figure in the return to the extent of 5,164 sittings. The total number of children in the various schools in the colony maintained at the public expense was in 1858, 8,237: viz. 4,395 boys, and 3,842 girls. The total number of schools was 182, and the amount of government aid given was £11,329. These figures exhibit an astonishing advance as compared with 1849, when there were only 27 schools, with 848 scholars, and government aid to the extent of £707. There were besides 11,982 scholars in Sunday schools in 1858, and 210 of those institutions were in existence, as compared with 45 schools and 2,563 scholars in 1848.”

Victoria.—The progress of this colony was more rapid and extensive than that of any other in the Australian group. The balance-sheet of the colony for 1858 revealed the following startling facts. The receipts for that year amount in round numbers to £3,000,000, the import duties alone amounting to £1,318,000, the export duty on gold to £316,000, the sales of public lands to £628,000, the rent of public lands and

licences of different trades to £331,000, and the postage to £89,000. The surplus revenue was expended by the assembly of representatives in the following manner:—£114,000 for education, £24,000 for scientific purposes, £25,000 for sanitary improvements, £769,000 for useful public works, £25,000 towards the relief of sufferers by the sepoy mutiny, £7,000 for a public library, £8,000 for an university purely secular. After these and similar votes, a cash balance of nearly half a million sterling remained in hand.

BRITISH AMERICA

Nothing peculiarly calling for statement or remark was presented in the aspect of the British American colonies in 1858–9, except Jamaica and British Columbia.

Jamaica.—This island has been well styled the Queen of the Western Indies. Slavery, bad government, the ignorance and bigotry of the colonists, had all militated against its improvement—1858–9 was no exception to these remarks. According to _De Cordova's Mercantile Intelligencer_, the Commercial annals of the year "were peculiarly unhealthy." This was the only British American colony to which such a remark would apply.

British Columbia and Vancouver's Island.—This new settlement made great progress from the very dawn of its recognition as a colony. The capital, called Victoria, sprang up as if by magic, and became a centre of business activity and colonial enterprise. Situated on the Pacific, the climate is favourable, and the position, politically and commercially, most important. The citizens of the United States laid claim to an island near Vancouver's Island, which was a source of alarm lest war between the two states should arise from the dispute. This question was not adjusted when this History was brought to a termination.

In 1859, the _Canadian News_ contained the following statements illustrating the value of this colony:—"Her majesty's ship _Plumper_ arrived at Esquimault on the 1st of November from Nanaimo, having concluded her surveying operations on the northern part of the Strait of Georgia for the present season. During this cruise, several new anchorages have been discovered and surveyed between Nanaimo and Cape Laso (or Point Holmes, as it is sometimes called), a distance of about fifty miles. But, perhaps, the most important discovery is the existence of a considerable river in Vancouver's Island, navigable for boats or small stern-wheel steamers, on the banks of which are extensive tracts of excellent land, varying from 20 to 100 feet in elevation, and clothed with a rich luxuriant grass. This land is ready for the plough, is entirely clear of the pine-tree, and studded here and there with a better kind of oak than is usually found on the cleared lands of Vancouver's Island. This river, which has received the name of Courtenay, in honour of Admiral Courtenay, who formerly commanded her majesty's ship _Constance_ in these waters, empties itself into a good and spacious harbour, Port Augusta, which lies in about 49° 36′ north latitude, and is scarcely 50 miles from Nanaimo. Major Downie was on his way down from the Upper Fraser River region by the Lillooet trail and Port Douglas. There were reports of his having made some valuable geographical discoveries on his journey from the

coast to Port Alexander, among which were a chain of lakes extending along the route 150 miles, so that steamers drawing 12 inches of water can navigate a distance of 100 miles further than steamers drawing 4 feet, which latter run on Senas River, and a practicable portage of 40 miles will then reach Fort Alexander. These reports are looked upon at Victoria as important, as, if true, the upper mining districts will be much more accessible than heretofore, being brought almost within water communication with Victoria."

IRELAND.

Of this country, at the close of our History as well as so frequently during its progress, it is a painful duty to relate that its moral and material progress was retarded by barbarous and cruel assassinations perpetrated by member's of a secret conclave, called the Ribbon Society. This society was exclusively composed of Roman Catholics, and fanatics of that creed. Their brutal murders were partly agrarian, and partly of a bigoted character; but the effect upon the social condition and prosperity of the country was disastrous. Still progress was made, and agricultural and commercial enterprise increased. A government report, on the agricultural statistics of Ireland for 1858, just published, gives the following particulars:—"The land under crops was 5,882,052 acres; under grass, 9,354,117 acres; fallow. 42,551; woods, &c, 313,271; and bog or waste, 4,667,331 acres. In some counties the area under tillage continues to increase; in 13 of them it has diminished. The total increase last year, on 1857, was 22,935 acres. The principal crops grown in Ireland, are oats, potatoes, and hay, which in 1858 occupied 78 acres in every 100 of the entire extent under cultivation. In that year, the proportionate area under oats was 34, potatoes 24, and hay 24 acres in every 100. Wheat covered only nine, turnips six, and flax not quite two acres per cent, of the whole area under crops. The area under crops in 1858 is thus divided:—Wheat, 546,964 acres; oats, 1,981,241; barley, 190,768; rye, 11,470; and beans, 11,038; potatoes, 1,159,707; turnips, 338,202; mangold-wurtzel, 29,547; flax, 91,646; rape, 14,067; and meadow and clover, 1,424,495 acres. The grass lands of Ireland cover nearly one-half of the entire surface of the island. These tracts do not include the land under meadow and clover (or the hay-producing lands), but merely those returned to the enumerators as used for pasture at the time of the collection of the statistics. The turf-bog is a very valuable portion of the land, the turf being used for fuel, and till coal becomes cheap enough to supersede it, the reclamation of bog will be but slow in many parts of the island. There were 599,178 holdings in Ireland in 1858: viz. 38,198 of 1 acre (not exceeding); 83,219 of 1 to 5 acres; 181,267 of 5 to 15 acres; 139,618 of 15 to 30 acres; 71,791 of 30 to 50 acres; 53,544 of 50 to 100 acres; 21,566 of 100 to 200 acres; 8,383 of 200 to 500 acres; and 1,592 of above 500 acres. The holdings have increased by 4,786. Of the entire 20,259,322 acres forming the area of Ireland, nearly one-half is in the possession of farmers holding from 15 to 100 acres, of which 1,475,433 acres, or 14·9 in every 100 is waste or unproductive; about one-third is under farms of 100 to 500 acres, of which 1,741,956 acres, or 28.5 per cent., is bog or waste, and one-tenth of which, more than 1,260,535 acres, or nearly one-half, are unprofitable for tillage, is occupied by farms of above 500 acres; the remainder, which includes only 189,407 acres of the waste lands, is in the hands of farmers holding under 15 acres. The following is the return of live stock for 1858:

viz. 630,611 horses and mules, 163,323 asses, 3,667,304 cattle, 3,494,993 sheep, 1,409,883 pigs, 228,351 goats, and 9,563,185 poultry. The value is computed at £34,977,244. The weed nuisance is still bitterly complained of by the Irish registrar-general, who urges the passing of a bill to compel the destruction of weeds with winged seeds before they are allowed to ripen. Besides the Blue-book from which the above figures are copied, two small papers have been printed, giving briefly the statistics for 1859. Last year, then, it appears that 465,497 acres were under wheat, 1,981,197 under oats, 1,200,144 under potatoes, 322,266 under turnips, 136,329 under flax, and 1,436,680 under meadow and clover. The gross total area under crops was 5,861,666 acres, against 5,882,052 in 1858. There was a decrease in cereal and an increase in green crops. The net total decrease was 20,386 acres. Weeds are again complained of. The live stock in 1859 included 628,916 horses, 3,810,136 horned cattle, 3,588,356 sheep, and 1,262,873 pigs."

HOME.—THE COURT.

The marriage of the Princess Royal took place January the 25th, under the circumstances referred to in a previous chapter.

One of the earliest incidents connected with the court, of any general interest, was the investiture of the King of Portugal with the order of the garter. This event took place in Lisbon, where the Marquis of Bath and Sir George Young officiated, as her majesty's plenipotentiaries, in conferring the honour. The ceremony took place on the 27th of May, 1858.

On the 15th of June her majesty, accompanied by Prince Albert, visited Birmingham, on occasion of a "People's Park" being set apart. Her majesty was the guest of Lord Leigh, of Stoneleigh Abbey.

A distribution of the Victoria Cross took place on Southsea Common, by her majesty in person, on the 2nd of August.

Soon after, her majesty, attended by a brilliant court, proceeded to the inauguration of Cherbourg as a great port and arsenal, and the opening of the Napoleon Dock at that place. The attendance of the Queen of England upon an occasion intended to celebrate a work accomplished for the menace of her dominions, and more especially of her naval power in the Channel, was generally regarded abroad as a sign of timidity on the part of the English government, and of a willingness to conciliate the French emperor at all costs, even of national respect.

On the 10th of August her majesty sailed from Gravesend for Germany, to pay a visit to her daughter, the Princess Frederick William of Prussia.

The year 1858 was remarkable for the number of visits paid by the court. On the 6th of September her majesty visited Leeds. Avast concourse of people, from every part of the great West Riding of York, thronged the town, and the demonstrations of loyal attachment made by the people were most gratifying to their sovereign. The object of the visit was the opening of the Town Hall. A great musical festival followed, one of the most successful ever held in England.

The court, during that portion of 1859 which falls within the limits of this History, was not in any especial way connected with great public events.

COMMERCE AND FINANCE.

One of the most remarkable features of the commerce of the period was the importation of corn:—In 1858, wheat, 4,275,435 qrs.; barley, 1,673,477 qrs.; total of all grain, 11,572,702 qrs.: 1859, wheat, 4,023,578 qrs.; barley, 1,742,217 qrs.; total of all grain, 10,516,193 qrs.

In 1858 there was a reduction of taxation to the amount of £2,100,000; new taxes were imposed to the extent of £456,780.

The rental value of land in England in 1859 was estimated at £41,000,000.

The following statement of railway property at the close of 1858, is from a return ordered in consequence of a parliamentary motion, made by Mr. Henley, in the session of 1859:—"The grand total amount of railway capital authorized by act of parliament previous to the 31st of December, 1857, was £287,908,636 by shares, and £98,273,070 by loans. In 1858, £5,253,792 was authorized by shares, and £2,199,409 by loans. The total capital and loans authorized previous to the 31st of December, 1858, was £392,682,755; £181,837,781 of the capital was not receiving, nor entitled to receive, any preferential dividend or interest. The total dividends on the share capital amounted to £6,161,099; £61,854,547 was the stock receiving, or entitled to receive, preferential dividend or interest, to the amount of £829,331. The total debts of companies at the end of 1858, amounted to £81,683,179; and the interest thereon payable to £3,591,148. £325,375,507 was the total sum which at the end of 1858 the railway companies had raised by shares or loans, and £67,307,248 the total amount which at the same period they retained power to raise, either by existing or by new shares, or by loans. The total amount expended on railroad works and rolling stock was £287.800,208. The total length of line and capital appropriated by parliament for the construction of lines, for which the powers for the compulsory purchase of land have been allowed to expire previous to the 31st of December, 1858, without the exercise of such powers, were respectively 2,534 miles, and £41,082,954."

The value of imports and exports to the United Kingdom for 1858 and 1859 was enormous. The following comparative view, based on the returns of the board of trade, is therefore of much interest. The general increase of exports in 1859 over 1858 was £13,831,671, while to the colonies and the United States it was £14,022,424. The balance of our business carried on with all other parts of the world resulted, therefore, in a falling off.

The total income of the national exchequer, when the accounts were made out in 1858, was a little more than sixty-eight millions. The expenditure amounted to nearly two and a half millions more.

PARLIAMENTARY AND POLITICAL.

On the 4th of February, 1858, the business of parliament began. The life of the French emperor having been attempted by an assassin, who had resided as a refugee in England (as recorded under the head of our relations with France), the

government brought in a bill to bring refugees more stringently under the cognizance of the executive. The spirit of the measure was to conciliate France, and gratify the French emperor. This was distasteful to the nation; for the French press, and the French army, with the connivance, and even at the instigation of the French government, abused and menaced England, in a manner such as no great nation before had endured from another in time of peace. The bill of Lord Palmerston was supported by the whole strength of the tory opposition. The independent Liberals, however, made so determined an opposition to the measure, and to the whole policy of the government in truckling to France, that the tory party resolved to make that hostility available to overthrow the government. It appeared that an insulting despatch had been sent by Count Walewski, the French minister, to the English minister for foreign affairs. To this despatch no reply was returned, whereas the house of commons and the country considered that a reply, prompt and indignant, should have been given. Mr. Milner Gibson, then especially hostile to the Palmerston government, moved what was tantamount to a vote of censure, on the ground of the silence of the cabinet under the singularly offensive despatch of the French minister. The combination of independent Liberals and Tories, upon this motion, threw out the government.

Lord Derby was sent for by her majesty, and empowered to form a ministry. The new cabinet was thus composed:—

First Lord of the Treasury..... Earl of Derby.

Lord-Chancellor..... Lord Chelmsford.

President of the Council..... Marquis of Salisbury.

Lord Privy Seal..... Earl of Hardwicke.

Home Secretary..... Mr. Spencer Walpole.

Foreign Secretary..... Earl of Malmesbury.

Colonial Secretary..... Lord Stanley.

Secretary at War..... General Peel.

Chancellor of the Exchequer..... Mr. Disraeli.

First Lord of the Admiralty..... Sir J. S. Pakington.

President of the Board of Control Earl of Ellenborough.

President of the Board of Trade Mr. Henley.

First Commissioner of Works.....Lord J. Manners

The members not in the cabinet were selected from the other leading members of the late tory opposition in both houses.

So unpopular had the ministry of Lord Palmerston become, by its subserviency to the French emperor, and its neglect of the honour of England, in the instance of the two English engineers, captured on board the Sardinian ship, _Oagliari_, by a Neapolitan frigate, that there was a very general disposition, among all parties, to

give Lord Derby's government "a fair trial."

The course of this ministry did not, however, run smooth, and they, soon lost popularity and power, by their prejudices, incapacity for the crisis, and a disposition to increase their power by petty trick and indirect artifice. This last feature of their ministerial character was most especially exemplified in the commons by Mr. Disraeli.

The Earl of Derby abandoned the foreign refugee bill, which he and his followers had, when out of office, supported.

During the discussion which arose concerning India, and the transaction of business with that empire resulting from the mutiny, the Earl of Ellenborough acted with a partizanship so flagrant and unjust, that in order to save the cabinet it was necessary that he should retire from it, go strong was the indignation against him both in the commons and the country. Lord Stanley, who had filled the office of colonial secretary with great ability, assumed the office vacated by Lord Ellenborough, and was afterwards made "secretary of state for India," an office created by "the government of India act." Sir Edward Bulwer Lytton became secretary for the colonies in the room of Lord Stanley. The chief work of the new tory ministry was to carry a bill for the government of India. Almost every other measure introduced by them was unpopular, yet the feeling against the late Palmerston ministry was so strong, that there was no desire to expel the cabinet.

Lord Lucan, in spite of the public opposition, and still more intense private opposition of Lord Derby, carried a measure for the parliamentary emancipation of the Jews, which was admirably devised, and ably brought forward and supported by the noble earl.

The grand failure of the Derby ministry was a reform bill, which was an indirect and sly scheme to increase the power of the landed interest. The bill was ignominiously spurned by the people and the popular branch of the legislature. From that hour the Derby ministry was doomed, although another question was that upon which its defeat was destined to take place. A very important measure was carried by Mr. Locke King,—the abolition of the property qualification for members of parliament. The same honourable member carried a bill for enfranchising ten pound householders in counties, over a second reading in the commons, signally defeating the government. The lateness of the session at the time when this was achieved prevented the further progress of the bill.

On the 3rd of August the session of 1858 terminated.

The session of 1859 opened at the usual period. Rumours of war between France and Austria gave an extraordinary interest to the occasion. That war broke out, after strenuous efforts by Lord Derby's government to prevent it. The _animus_ of Lord Malmesbury's diplomacy was evidently in favour of Austria, and without any sympathy for Italy, while it was decidedly hostile to France. By this policy the cabinet was overthrown, and Lord Palmerston formed a ministry. Public opinion in England was hostile to the Emperor of the French, but still more so to the kasir, while an intense desire for Italian freedom existed in the United Kingdom. The general

sentiment of the nation was therefore adverse to the foreign policy of the Derby government, and, before a motion in the commons condemnatory of that policy, the cabinet fell. Lord Derby was not disposed to yield to an adverse vote without taking “the sense of the country;” but the country showed him no favour, and he resigned. Lord Palmerston had the honour of forming the new cabinet. He became first lord of the treasury; Lord John Russell, minister for foreign affairs; Sir G. Grey, home secretary; Mr. Gladstone, chancellor of the exchequer; Sir Charles Wood, secretary for India; the Duke of Newcastle, for the colonies; Lord Granville, president of the council, and Mr. Sidney Herbert, minister of war. This was a strong government. The elections were decisively in their favour. The party conflicts of the year impeded legislation. Mr. Gladstone startled the house by a bold and comprehensive system of finance, and when in August the session terminated, Lord Palmerston held the reins of power with a firm hand, and the country felt that after all his faults, and the vicissitudes of his career, he was the great statesman of the age, to whom the government of England could be most safely entrusted, whenever a great emergency demanded that a great man should hold the helm of affairs.

THE END.